SUPPLEMENT NO. 54
VOLUMES I AND II
July 2026

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2026-002, effective February 19, 2026.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 53
VOLUMES I AND II
January 2026

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-047, effective November 6, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 52
VOLUMES I AND II
September 2025

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-034, effective September 14, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 51
VOLUMES I AND II
July 2025

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-016, effective May 12, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 50
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MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-004, effective March 30, 2025.

See the Code Comparative Table—Volume II for further information.

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-038, effective December 5, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 48
VOLUMES I AND II
October 2024

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-029, effective September 16, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 47
VOLUMES I AND II
June 2024

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-013, effective May 2, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 46
VOLUMES I AND II
April 2024

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-006, effective April 12, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 45
VOLUMES I AND II
January 2024

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-032, effective November 11, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 44
VOLUMES I AND II
October 2023

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-030, effective October 19, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 43
VOLUMES I AND II
July 2023

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-013, effective June 22, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 42
VOLUMES I AND II
April 2023

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-003, effective March 31, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 41
VOLUMES I AND II
January 2023

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-034, effective December 10, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD15:75—CD15:80	CD15:75—CD15:80.2
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SUPPLEMENT NO. 40
VOLUMES I AND II
August 2022

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-019, effective August 5, 2022.

See the Code Comparative Table—Volume II for further information.

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xvii—xxv	xvii—xxv
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CD3:153, CD3:154	CD3:153, CD3:154
CD3:169—CD3:171	CD3:169—CD3:172.1
CD5:1	CD5:1
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CD6:11—CD6:30.2	CD6:11—CD6:30.16
CD9:261, CD9:262	CD9:261—CD9:262.1
CD10:62.9—CD10:62.15	CD10:62.9—CD10:62.22
CD10:67—CD10:74	CD10:67—CD10:74.1
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CDi:17, CDi:18	CDi:17, CDi:18
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CDi:89, CDi:90	CDi:89—CDi:90.1

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SUPPLEMENT NO. 39
VOLUMES I AND II
February 2022

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-050, effective January 17, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 38
VOLUMES I AND II
September 2021

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-039, effective September 26, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 37
VOLUMES I AND II
July 2021

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-033, effective July 29, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD3:105—CD3:114.1	CD3:105—CD3:114.1
CD3:134.3—CD3:134.7	CD3:134.3—CD3:134.8
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SUPPLEMENT NO. 36
VOLUMES I AND II
April 2021

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-010, effective April 22, 2021.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 35
VOLUMES I AND II
January 2021

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-054, effective December 17, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CDi:35—CDi:36.1	CDi:35—CDi:36.1
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SUPPLEMENT NO. 34
VOLUMES I AND II
September 2020

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-031, effective September 1, 2020.

See the Code Comparative Table—Volume II for further information.

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xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD9:136.3—CD9:138	CD9:137—CD9:138.1
CD9:291—CD9:294	CD9:291—CD9:294.1
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SUPPLEMENT NO. 33
VOLUMES I AND II
July 2020

MUNICIPAL CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-020, effective May 21, 2020.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xvii—xxiv	xvii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 31
VOLUMES I AND II
January 2020

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-048, effective January 20, 2020, and

Ordinance No. 2019-050, effective December 20, 2019.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDi:113—CDi:122	CDi:113—CDi:122.1

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SUPPLEMENT NO. 30
VOLUMES I AND II
September 2019

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-026, effective September 22, 2019.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD4:23	CD4:23, CD4:24
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CD10:76.1—CD10:78	CD10:77—CD10:78.1
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SUPPLEMENT NO. 29
VOLUMES I AND II
July 2019

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-013, effective May 6, 2019.

See the Code Comparative Table—Volume II for further information.

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CDi:68.3—CDi:74	CDi:69—CDi:74.1
CDi:95—CDi:96.2	CDi:95—CDi:96.2
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SUPPLEMENT NO. 28
VOLUMES I AND II
February 2019

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-68, effective January 24, 2019.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Amendment ratified 2018 General Election, November 6, 2018.

See the Charter Comparative Table for further information.

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CD15:97, CD15:98	CD15:97, CD15:98
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SUPPLEMENT NO. 27
VOLUMES I AND II
October 2018

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-50, effective September 30, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 26
VOLUMES I AND II
July 2018

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-40, effective June 29, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 25
VOLUMES I AND II
April 2018

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-10, effective March 19, 2018.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Resolution No. 2016-135, ratified November 8, 2016, certified December 28, 2016.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 24
VOLUMES I AND II
December 2017

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-65, effective November 14, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 23
VOLUMES I AND II
September 2017

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-36, effective September 3, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 22
VOLUMES I AND II
April 2017

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-13, effective April 2, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 21
VOLUMES I AND II
February 2017

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-59, effective January 15, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 20
VOLUMES I AND II
October 2016

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-25, effective September 26, 2016.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 19
VOLUMES I AND II
May 2016

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-7, effective April 4, 2016.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 18
VOLUMES I AND II
March 2016

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-47, effective December 29, 2015.

See the Code Comparative Table—Volume II for further information.

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CD2:35—CD2:40	CD2:35—CD2:40
CD3:65, CD3:66	CD3:65—CD3:66.1
CD3:81, CD3:82	CD3:81—CD3:82.1
CD3:139, CD3:140	CD3:139—CD3:140.7
CD3:175, CD3:176	CD3:175, CD3:176
CD3:239, CD3:240	CD3:239—CD3:240.7
CD6:119—CD6:124.1	CD6:119—CD6:124.2
CD10:43, CD10:44	CD10:43—CD10:44.1
CD10:49, CD10:50	CD10:49—CD10:50.1
CD11:3, CD11:4	CD11:3, CD11:4
CD11:13, CD11:14	CD11:13—CD11:15
	VOLUME I I
xvii—xxii	xvii—xxii
CD13:9, CD13:10	CD13:9—CD13:10.1
CD13:51	CD13:51
A:85, A:86	A:85—A-87
CCT:197, CCT:198	CCT:197—CCT:199
CDi:19, CDi:20	CDi:19—CDi:20.1
CDi:25, CDi:26	CDi:25—CDi:26.1

Remove Old Pages	*Insert New Pages*
CDi:35—CDi:38	CDi:35—CDi:38.1
CDi:83—CDi:90	CDi:83—CDi:90.1
CDi:97—CDi:102	CDi:97—CDi:102
CDi:117, CDi:118	CDi:117—CDi:118.1

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SUPPLEMENT NO. 17
VOLUMES I AND II
July 2015

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-21, effective July 25, 2015.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxii	xvii—xxii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5	SH:5, SH:6
CD5:23, CD5:24	CD5:23, CD5:24
CD5:29, CD5:30	CD5:29—CD5:32
CD6:91, CD6:92	CD6:91, CD6:92
CD6:119—CD6:124	CD6:119—CD6:124.1
CD7:19—CD7:22.1	CD7:19—CD7:22.1
CD10:62.11—CD10:62.15	CD10:62.11—CD10:62.14
CD10:73—CD10:78	CD10:73—CD10:75
CD11:67, CD11:68	CD11:67, CD11:68
CD11:83—CD11:86	CD11:83—CD11:85
CD11:97—CD11:100	CD11:97—CD11:99
	VOLUME II
xvii—xxii	xvii—xxii
CD12:1	CD12:1
CD12:129—CD12:130.1	CD12:129—CD12:130.1
CD12:292.1—CD12:294	CD12:293—CD12:294.1
CD12:311, CD12:312	CD12:311, CD12:312
CD12:340.15—CD12:340.18	CD12:340.14.1, CD12:340.14.2
	CD12:340.15—CD12:340.17
	CD12:400.3, CD12:400.4
CD12:553—CD12:556	CD12:553—CD12:556.1
A:85, A:86	A:85, A:86

Remove Old Pages	*Insert New Pages*
CCT:197, CCT:198	CCT:197, CCT:198
CDi:13—CDi:18	CDi:13—CDi:18
CDi:43, CDi:44	CDi:43, CDi:44
CDi:58.1	CDi:58.1
CDi:89, CDi:90	CDi:89, CDi:90
CDi:93, CDi:94	CDi:93, CDi:94
CDi:105, CDi:106	CDi:105, CDi:106
CDi:109, CDi:110	CDi:109, CDi:110
CDi:143, CDi:144	CDi:143, CDi:144

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SUPPLEMENT NO. 16
VOLUMES I AND II
May 2015

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

Included in this Charter Supplement is:

Amendment of June 8, 2010.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5	SH:5
CD6:9, CD6:10	CD6:9—CD6:10.1
CHA:43—CHA:45	CHA:43—CHA:45
CHCT:1	CHCT:1

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SUPPLEMENT NO. 15
VOLUMES I AND II
February 2015

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-54, effective December 29, 2014.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxii	xvii—xxii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:5	SH:5
CD1:17—CD1:24	CD1:17—CD1:24
CD4:3, CD4:4	CD4:3, CD4:4
CD4:8.1—CD4:12.1	CD4:9—CD4:12.1
CD4:21—CD4:24	CD4:21—CD4:23
CD4:31—CD4:35	CD4:31—CD4:35
CD6:1	CD6:1
	CD6:155—CD6:162
CD9:1	CD9:1
CD9:135—CD9:142	CD9:135—CD9:142
CD11:101—CD11:104	CD11:101—CD11:104
CD11:119, CD11:120	CD11:119—CD11:120.1
	VOLUME II
xvii—xxii	xvii—xxii
CD12:1	CD12:1
CD12:29, CD12:30	CD12:29—CD12:30.1
CD12:41, CD12:42	CD12:41, CD12:42
CD12:157, CD12:158	CD12:156.1—CD12:157
CD12:167—CD12:170	CD12:167—CD12:170
CD12:227, CD12:228	CD12:227, CD12:228
CD12:249—CD12:250.1	CD12:249, CD12:250
CD12:274.9—CD12:276	CD12:275—CD12:276.2

Remove Old Pages	*Insert New Pages*
CD12:311—CD12:312.1	CD12:311—CD12:312.1
CD12:340.18.9—CD12:340.18.14	CD12:340.18.9, CD12:340.18.10
CD12:381—CD12:384	CD12:381—CD12:384.1
CD12:631	CD12:631—CD12:636
A:85, A:86	A:85, A:86
CCT:197	CCT:197, CCT:198
CDi:19, CDi:20	CDi:19, CDi:20
CDi:27, CDi:28	CDi:27, CDi:28
CDi:63—CDi:68	CDi:63—CDi:68.1
CDi:89—CDi:94	CDi:89—CDi:94
CDi:105—CDi:114	CDi:105—CDi:114.1
CDi:137—CDi:142	CDi:137—CDi:142.1
CDi:145	CDi:145

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SUPPLEMENT NO. 14
VOLUMES I AND II
June 2014

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-25, effective June 15, 2014.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Resolution No. 2012-225, ratified November, 6, 2012, certified December 4, 2012.

See the Charter Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD3:253—CD3:256	CD3:253—CD3:256
CD7:19—CD7:22.1	CD7:19—CD7:22.1
	VOLUME II
xxi, xxii	xxi, xxii
CD12:1	CD12:1
CD12:629, CD12:630	CD12:629—CD12:631
CHTOC:3, CHTOC:4	CHTOC:3, CHTOC:4
CHA:29, CHA:30	CHA:29—CHA:30.1
CHCT:1	CHCT:1
A:85, A:86	A:85, A:86
CCT:195, CCT:196	CCT:195—CCT:197
I-5, I-6	I-5—I-6.1
CDi:64.1—CDi:66.1	CDi:65—CDi:66.1
CDi:87, CDi:88	CDi:87, CDi:88

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SUPPLEMENT NO. 13
VOLUMES I AND II
May 2014

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-21, effective April 27, 2014.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
xvii—xxii	xvii—xxii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3, SH:4
CD2:35—CD2:40	CD2:35—CD2:40
CD3:65, CD3:66	CD3:65, CD3:66
CD3:85—CD3:88	CD3:85—CD3:88
CD3:107—CD3:110	CD3:107—CD3:110
CD3:147, CD3:148	CD3:147—CD3:148.1
CD3:181, CD3:182	CD3:181, CD3:182
CD5:25—CD5:26.1	CD5:25—CD5:26.1
CD6:55—CD6:62	CD6:55—CD6:62.1
CD7:43—CD7:48	CD7:43—CD7:48.1
CD9:125—CD9:136	CD9:125—CD9:136
CD9:207, CD9:208	CD9:207—CD9:208.1
CD9:235—CD9:241	CD9:235—CD9:243
CD10:5, CD10:6	CD10:5, CD10:6
CD10:43—CD10:62.10	CD10:43—CD10:62.9
CD11:3—CD11:10	CD11:3—CD11:10
CD11:105, CD11:106	CD11:105—CD11:106.1
CD11:113, CD11:114	CD11:113, CD11:114
CD11:118.1—CD11:122	CD11:119—CD11:122.1

Remove Old Pages	*Insert New Pages*
	VOLUME II
Title page	Title page
xvii—xxii	xvii—xxii
CD12:1	CD12:1
CD12:13, CD12:14	CD12:13—CD12:14.1
CD12:41, CD12:42	CD12:41, CD12:42
CD12:51—CD12:66	CD12:51—CD12:66.1
CD12:71, CD12:72	CD12:71—CD12:72.1
CD12:81—CD12:94	CD12:81—CD12:94.1
CD12:99, CD12:100	CD12:99—CD12:100.1
CD12:105—CD12:112	CD12:105—CD12:112.1
CD12:158.1—CD12:158.3	CD12:158.1—CD12:158.3
CD12:173, CD12:174	CD12:173—CD12:174.1
CD12:228.1—CD12:228.5	CD12:228.1—CD12:228.3
CD12:247—CD12:250	CD12:247—CD12:250.1
CD12:272.1—CD12:274	CD12:273—CD12:274.9
CD12:311, CD12:312	CD12:311, CD12:312
CD12:340.18.9, CD12:340.18.10	CD12:340.18.9—CD12:340.18.14
CD12:353—CD12:354.1	CD12:353—CD12:354.1
	CD12:400.1, CD12:400.2
CD12:577, CD12:578	CD12:577—CD12:578.1
CD12:586.1—CD12:590	CD12:587—CD12:590.2
CD12:595, CD12:596	CD12:595, CD12:596
CD13:21, CD13:22	CD13:21—CD13:22.1
CD14:55—CD14:62	CD14:55—CD14:62
CD14:67, CD14:68	CD14:67—CD14:68.2
A:85	A:85, A:86
CCT:193, CCT:194	CCT:193—CCT:196
CDi:1—CDi:8.1	CDi:1—CDi:8.1
CDi:15—CDi:24	CDi:15—CDi:24
CDi:33—CDi:46	CDi:33—CDi:46
CDi:56.1—CDi:58	CDi:57—CDi:58.1
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:73, CDi:74	CDi:73—CDi:74.1
CDi:83—CDi:94	CDi:83—CDi:94
CDi:105—CDi:108	CDi:105—CDi:108.1

Remove Old Pages	*Insert New Pages*
CDi:113—CDi:124	CDi:113—CDi:124
CDi:135—CDi:138.1	CDi:135—CDi:138.1

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SUPPLEMENT NO. 12
VOLUMES I AND II
June 2013

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-15, effective June 23, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3
CD2:37, CD2:38	CD2:37, CD2:38
CD3:101, CD3:102	CD3:101—CD3:102.1
CD3:192.3—CD3:194	CD3:193—CD3:194.1
CD7:19—CD7:22.1	CD7:19—CD7:22.1
CD7:29, CD7:30	CD7:29, CD7:30
CD9:87, CD9:88	CD9:87—CD9:88.1
CD9:95—CD9:102	CD9:95—CD9:102
	VOLUME II
CD12:353—CD12:354.1	CD12:353—CD12:354.1
A:83, A:84	A:83—A:85
CCT:193, CCT:194	CCT:193, CCT:194

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SUPPLEMENT NO. 11
VOLUMES I AND II
January 2013

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-20, effective November 19, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:3	SH:3
CD2:37, CD2:38	CD2:37, CD2:38
CD7:25—CD7:36	CD7:25—CD7:36.1
CD9:155, CD9:156	CD9:155, CD9:156
	VOLUME II
A:83, A:84	A:83, A:84
CCT:193, CCT:194	CCT:193, CCT:194

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SUPPLEMENT NO. 10
VOLUMES I AND II
August 2012

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-15, effective August 19, 2012.

See the Code Comparative Table for further information.

Remove Old Page	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD3:107—CD3:110	CD3:107—CD3:110
CD3:134.5—CD3:134.7	CD3:134.5—CD3:134.7
CD3:149—CD3:150.1	CD3:149—CD3:150.1
CD3:169—CD3:172	CD3:169—CD3:172.1
CD3:201, CD3:202	CD3:201, CD3:202
CD3:209—CD3:212.1	CD3:209—CD3:212
CD3:232.3—CD3:232.7	CD3:232.3—CD3:232.7
CD6:149—CD6:153	CD6:149—CD6:154
VOLUME II	
CD12:1	CD12:1
CD12:565, CD12:566	CD12:565—CD12:566.2
	CD12:629, CD12:630
A:83, A-84	A:83, A-84
CCT:193	CCT:193, CCT:194
CDi:65, CDi:66	CDi:65—CDi:66.1
CDi:87, CDi:88	CDi:87—CDi:88.1

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SUPPLEMENT NO. 9
VOLUMES I AND II
February 2012

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-1, effective February 12, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
CD2:13, CD2:14	CD2:13, CD2:14
CD4:10.1—CD4:12	CD4:11—CD4:12.1
CD9:1	CD9:1
CD9:229—CD9:232	CD9:229, CD9:230
	VOLUME I I
xvii—xxii	xvii—xxii
A:83	A:83, A-84
CCT:193	CCT:193
CDi:17, CDi:18	CDi:17, CDi:18
CDi:27, CDi:28	CDi:27, CDi:28
CDi:37, CDi:38	CDi:37, CDi:38
CDi:83, CDi:84	CDi:83, CDi:84
CDi:113, CDi:114	CDi:113, CDi:114

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SUPPLEMENT NO. 8
VOLUMES I AND II
August 2011

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-27, effective August 28, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
CD1:3—CD1:10	CD1:3—CD1:10
CD2:17—CD2:20	CD2:17—CD2:20
CD3:83—CD3:100	CD3:83—CD3:100.2
CD3:119—CD3:134	CD3:119—CD3:134.7
CD3:141—CD3:144	CD3:141—CD3:144.1
CD3:159—CD3:162	CD3:159—CD3:162.1
CD3:169—CD3:192	CD3:169—CD3:192.3
CD3:197, CD3:198	CD3:197, CD3:198
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CD4:7, CD4:8	CD4:7—CD4:8.1
CD5:17, CD5:18	CD5:17, CD5:18
CD5:25, CD5:26	CD5:25—CD5:26.1
CD6:11—CD6:30	CD6:11—CD6:30.2
CD6:40.3, CD6:40.4	CD6:40.3, CD6:40.4
CD6:45—CD6:58	CD6:45—CD6:58.1
CD6:85, CD6:86	CD6:85—CD6:86.1
CD7:19—CD7:22.1	CD7:19—CD7:22.1
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xvii—xxii	xvii—xxii
CD12:443, CD12:444	CD12:443, CD12:444
CD13:45, CD13:46	CD13:45, CD13:46

Remove Old Pages	*Insert New Pages*
CD14:5, CD14:6	CD14:5, CD14:6
A:83	A:83
CCT:191, CCT:192	CCT:191—CCT:193
CDi:7—CDi:8.1	CDi:7—CDi:8.1
CDi:17, CDi:18	CDi:17, CDi:18
CDi:25—CDi:28	CDi:25—CDi:28.1
CDi:36.1—CDi:42	CDi:37—CDi:42.1
CDi:83, CDi:84	CDi:83, CDi:84
CDi:89—CDi:92	CDi:89—CDi:92
CDi:113, CDi:114	CDi:113, CDi:114
CDi:129—CDi:132	CDi:129—CDi:132
CDi:139, CDi:140	CDi:139, CDi:140

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SUPPLEMENT NO. 7
VOLUMES I AND II
February 2011

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-60, effective January 16, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1, SH:2(following the Checklist of up-to-date pages)
CD1:15, CD1:16	CD1:15, CD1:16
CD3:3, CD3:4	CD3:3, CD3:4
CD3:21—CD3:24	CD3:21—CD3:24.1
CD10:1	CD10:1
CD10:43—CD10:62.18	CD10:43—CD10:62.15
	CD10:115—CD10:120
CD11:1	CD11:1
CD11:3—CD11:14	CD11:3—CD11:14
VOLUME I I	
xvii—xxii	xvii—xxii
CD12:153—CD12:158	CD12:153—CD12:158.3
CD12:221—CD12:228	CD12:221—CD12:228.5
CD12:253, CD12:254	CD12:253, CD12:254
CD12:340.17—CD12:340.18.4	CD12:340.17—CD12:340.18.4
CD12:340.18.9, CD12:340.18.10	CD12:340.18.9, CD12:340.18.10
CD12:373, CD12:374	CD12:373—CD12:374.1
CD14:47—CD14:52	CD14:47—CD14:52
CD14:73, CD14:74	CD14:73, CD14:74
A:81, A:82	A:81—A:83
CCT:189, CCT:190	CCT:189—CCT:192
CDi:3, CDi:4	CDi:3, CDi:4

Remove Old Pages	*Insert New Pages*
CDi:15—CDi:20	CDi:15—CDi:20
CDi:31—CDi:36	CDi:31—CDi:36.1
CDi:89—CDi:98	CDi:89—CDi:98
CDi:105—CDi:108	CDi:105—CDi:108
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SUPPLEMENT NO. 6
VOLUMES I AND II
July 2010

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-22, effective July 1, 2010.

See the Code Comparative Table for further information.

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VOLUMES I AND II
SUPPLEMENT NO. 5
May 2010

MUNICIPAL CODE

City of

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Looseleaf Supplement

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Ordinance No. 2010-9, effective April 25, 2010.

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SUPPLEMENT NO. 4
VOLUMES I AND II
February 2010

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-2, effective February 25, 2010.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 3
October 2009

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-32, effective August 30, 2009.

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SUPPLEMENT NO. 2
VOLUMES I AND II
July 2009

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-19, effective May 31, 2009.

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SUPPLEMENT NO. 1
March 2009

MUNICIPAL CODE

City of

FRESNO, CALIFORNIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-6, effective March 13, 2009.

See the Code Comparative Table for further information.

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MUNICIPAL CODE

and

CHARTER

of the

CITY OF FRESNO, CALIFORNIA

MUNICIPAL CODE ADOPTED NOVEMBER 17, 1955
EFFECTIVE JANUARY 1, 1956
REPUBLICATION EFFECTIVE SEPTEMBER 4, 2007

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FOREWORD

Some time ago the City Commission decided it was of the utmost importance to have all the city's ordinances studied, revised, compiled and codified in order that every citizen, in theory bound to know the law, could readily discover for himself what is required of him. The need for this was great. The ordinances of the City of Fresno, accumulated for more than half a century, were more than four thousand in number. Many contained ambiguities, inconsistencies and duplications and the existence of some of them obviously had been forgotten.

The concept of a municipal code was not a new idea, yet few cities had taken the initiative in making available for their communities the many advantages of such a work. The City Commission, with commendable foresight, investigated the possibility of producing a municipal code for Fresno.

The office of the City Attorney was too busy to absorb such a monumental project. Consequently, after exploring similar situations which confronted other cities, the City Commission appointed and empowered Mr. Chalmers E. Lones, a Fresno practicing attorney with previous compilation experience, to produce a draft of the proposed municipal code. The efficient manner in which he has carried out and completed his assignment is manifest. This volume is a credit to him and an invaluable contribution to the working tools of the city.

Considerable time was devoted to revising, streamlining and compiling the subject matter for the code. Successive drafts of each proposed chapter were submitted to and approved by the departments to which the subject matter pertained. The departments were particularly helpful in recommending the elimination of obsolete provisions and the addition of much needed regulations.

Every effort will be made to keep the Fresno Municipal Code up to date, and the citizens of our city, present and future, will be the beneficiaries.

GORDON G. DUNN,
Mayor

November 10, 1955

BILL NO. B-51

ORDINANCE NO. 2007-54

AN ORDINANCE OF THE CITY OF FRESNO, CALIFORNIA, TO REORGANIZE THE FRESNO MUNICIPAL CODE THROUGH THE ADOPTION OF A CODE REORGANIZATION ORDINANCE RELATING TO A COMPREHENSIVE REORGANIZATION OF CHAPTERS, ARTICLES, AND SECTIONS, AND THE RENUMBERING, AMENDMENT, AND REPEAL OF CERTAIN PROVISIONS OF THE CODE.

THE COUNCIL OF THE CITY OF FRESNO DOES ORDAIN AS FOLLOWS:

SECTION 1. The Council finds that it is in the best interest of the City of Fresno that this Code Reorganization Ordinance be adopted. The Council makes further findings and declarations of intent as follows:

A. The current organization and structure of the Fresno Municipal Code ("Code") is overly burdensome, duplicative, and outdated.

B. There is a need to reorganize the Code in a comprehensive manner to make it easier for members of the public and City officials to utilize and to access the Code.

C. A comprehensive reorganization of the Code necessitates detailed renumbering of chapters, articles and sections of the Code.

D. It is the Council's intent that in amending this Code by this Code Reorganization Ordinance, whether the amendment be by express amendment, by repeal and re-enactment, by new titling or by renumbering of a provision, if the amendment is substantially the same as any Code provision previously adopted and relating to the same subject matter, the amendment shall be construed as a restatement and continuation of the previous provision, and not as a new enactment.

E. It is the Council's intent that staff reports submitted to the Council as part of the background for adoption of this Code Reorganization Ordinance and a transcript of the Council meetings wherein this ordinance is introduced and adopted shall be deemed part of the legislative history regarding this ordinance. The legislative history shall be filed and maintained by the City Clerk in the same manner that maintenance of the Code is required.

F. It is the Council's intent that the City Attorney work closely with the Code Publisher and City Clerk to ensure that Code provisions are not inadvertently repealed as part of this Code Reorganization Ordinance. In that event, it is understood the City Attorney and City Clerk may make "alterations necessary to correct a typographical or clerical error or omission" as authorized by Charter Section 600(f).

G. This Code Reorganization Ordinance constitutes the new framework for the Code. Detailed review, analysis, rewriting, renumbering, amendment, and repeal of the Reorganized Code will be conducted in Phase 4 of the Code Streamlining Project.

H. The complexity of this ordinance requires a longer effective date period of 90 days rather than the standard 30 day period.

SECTION 2. The chapters of the Fresno Municipal Code are amended, reorganized, and renumbered to read:

FRESNO MUNICIPAL CODE
Table of Contents

Chapter 1. General Provisions.

Chapter 2. City Government.

Chapter 3. City Personnel.

Chapter 4. City Purchasing, Contracts, and Sales.

Chapter 5. City Facilities.

Chapter 6. Municipal Services and Utilities.

Chapter 7. City Finances, Revenue, and Taxation.

Chapter 8. Assessment Districts and Bond Procedures.

Chapter 9. Regulations Regarding Businesses and Personal Conduct.

Chapter 10. Regulations Regarding Public Nuisances and Real Property Conduct and Use.

Chapter 11. Building Permits and Regulations.

Chapter 12. Land Use Planning and Zoning.

Chapter 13. Sidewalks, Streets, Parkways, and Underground Utility Districts.

Chapter 14. Vehicles and Traffic.

SECTION 3. The Fresno Municipal Code is amended by reorganizing and renumbering the chapters and articles of the Code to read as follows below. After the effective date of this Ordinance, the organization of the Chapters and Articles of the Code shall be as provided below. The current content of the Code shall be relocated into the new organizational format as indicated by the text in the brackets.

Chapter 1 General Provisions

Art. 1 **General Provisions** [Ch. 1, Art. 1. General Provisions.]

Art. 2 **Definitions and Rules of Construction** [Ch. 1, Art. 2. Rules of Construction; Ch. 1, Art. 3. Definitions and Interpretation.]

Art. 3 **Code Enforcement; Judicial and Administrative Remedies and Procedure** [Ch. 1, Art. 4. Code Enforcement; Judicial and Administrative Remedies and Procedures.]

Art. 4 **General Administrative Hearing Procedure** [Ch.1, Art. 5. General Administrative Hearing Procedure.]

Art. 5 **Cost and Penalty Recovery** [Ch.1, Art. 6. Cost and Penalty Recovery.]

Chapter 2 City Government

Art. 1 **Implementation of Mayor-Council Form of Government** [Ch. 2, Art. 3. Implementation of Mayor-Council Form of Government.]

Art. 2 **Council Districts** [Ch. 2, Art. 2. Council Districts.]

Art. 3 **Council Meetings and Rules of Order** [Ch. 2, Art. 1. Council Meetings and Rules of Order.

Art. 4 **City Manager and Administrative Organization** [Ch. 2, Art. 7. Chief Administrative Officer; Ch. 2, Art. 8. Departments, Divisions, Offices and Agencies.]

Art. 5 **Emergency Services Ordinance** [Ch. 2, Art. 27. Emergency Services Ordinance.]

Art. 6 **Publications and Official Advertising** [Ch. 2, Art. 31. Publications and Official Advertising.]

Art. 7 **Display of Flags and Emblems** [Ch. 2, Art. 35. Display of Flags and Emblems.]

Art. 8 **Boards and Commissions** [Ch. 2, Art. 9. Boards and Commissions.]

Art. 9 **Conflict of Interest Code** [Ch. 2, Art. 20. Conflicts of Interest.]

Art. 10 **Elections** [Ch. 2, Art. 14. Elections.]

Art. 11 **Candidates for Elective City Office—Campaign Contribution Limits** [Ch. 2, Art. 22. Candidates for Elective City Office—Campaign Contribution Limits].

Art. 12 **Registration of Lobbyists** [Ch. 2, Art. 23. Registration of Lobbyists.]

Art. 13 **Redevelopment and Community Development** [Ch. 17, Art. 1. Redevelopment and Community Development - General Provisions and Definitions; Ch. 17, Art. 2. Redevelopment and Community Development -Redevelopment Agency; Ch. 17, Art. 3. Redevelopment and Community Development - Community Development.]

Chapter 3 City Personnel

Art. 1 **Personnel System** [Ch. 2, Art. 15. Personnel.]

Art. 2 **Civil Service Regulations** [Ch. 2, Art. 16. Civil Service Regulations.]

Art. 3 **Fire and Police Retirement System** [Ch. 2, Art. 17. Fire and Police Retirement System.]

Art. 4 **Second Tier of the Fire and Police Retirement System** [Ch. 2, Art. 17A. Second Tier of the Fire and Police Retirement System.]

Art. 5 **Employees' Retirement System** [Ch. 2, Art. 18. Employees' Retirement System.]

Art. 6 **Employer-Employee Relations** [Ch. 2, Art. 19. Employer-Employee Relations.]

Chapter 4 City Purchasing, Contracts, and Sales

Art. 1 **Purchases of Personal Property and Contracts for Services and Work** [Ch. 3, Art. 1. Purchases of Personal Property and Contracts for Services and Work.]

Art. 2 **Sale or Mortgage of Property** [Ch. 3, Art. 2. Sale or Mortgage of Property.]

Art. 3 **Lost or Unclaimed Property** [Ch. 3, Art. 3. Lost or Unclaimed Property.]

Art. 4 **Prevailing Wages for Public Works** [Ch. 3, Art. 4. Prevailing Wages for Public Works.]

Art. 5 **Design Build Contracts** [Ch. 3, Art. 5. Design-Build Contracts.]

Art. 6 **Regulated Communications with Elected Officials in City Procurement Process** [Ch. 3, Art. 6. Regulated Communications with Elected Officials in City Procurement Process.]

Chapter 5 City Facilities

Art. 1 **Naming and Renaming City Facilities** [Ch. 2, Art. 34. Naming and Renaming City Facilities.]

Art 2 **Fresno City-County Community and Convention Center Manager and Management** [Ch. 2, Art. 29. Fresno City-County Community and Convention Center Manager and Management.]

Art. 3 **Transit Regulations**[Ch. 2, Art. 28. Transit Regulations.]

Art. 4 **Airport Regulations** [Ch. 2, Art. 32. Airport Regulations.]

Art. 5 **Parks and Playground Regulations** [Ch. 8, Art. 4. Parks and Playground Regulations.]

Chapter 6 Municipal Services and Utilities

Art. 1 **Billing and Collection Procedures for Municipal Utility Services** [Ch. 2, Art. 11. Billing and Collection Procedures for Municipal Utility Services.]

Art. 2 **Solid Waste, Recyclable and Green Waste Collection and Disposal** [Ch. 9, Art. 4. Solid Waste, Recyclable and Green Waste Collection and Disposal.]

Art. 3 **Sewage and Water Disposal** [Ch. 9, Art. 5. Sewage and Water Disposal.]

Art. 4 **Wells** [Ch. 9, Art. 6. Wells.]

Art. 5 **Water Regulations** [Ch. 14, Art. 1. Water Regulations.]

Art. 6 **Heat Transfer Systems Utilizing Water** [Ch. 14, Art. 2. Heat Transfer Systems Utilizing Water.]

Art. 7 **Solid Waste, Recyclable and Green Waste Collection and Disposal** [Ch. 9, Art. 4. Solid Waste, Recyclable and Green Waste Collection and Disposal of Ordinance.]

Art. 8 **Urban Storm Water Quality Management and Discharge Control** [Ch. 14, Art. 3. Urban Storm Water Quality Management and Discharge Control.]

Art. 9 **Cross-Connection Control** [Ch. 14, Art. 4. Cross-Connection Control.]

Chapter 7 City Finances, Revenue, and Taxation

Art. 1 **General** [Ch. 4, Art. 1. General.]

Art. 2 **Assessment, Equalization, Levy and Collection of Taxes** [Ch. 4, Art. 2. Assessment, Equalization, Levy and Collection of Taxes.]

Art. 3 **Sales Tax** [Ch. 4, Art. 3. Sales Tax.]

Art. 4 **Use Tax** [Ch. 4, Art. 4. Use Tax.]

Art. 5 **Uniform Local Sales and Use Tax** [Ch. 4, Art. 5. Uniform Local Sales and Use Tax.]

Art. 6 **Transient Room Tax** [Ch. 4, Art. 6. Transient Room Tax.]

Art. 7 **Payments by Municipal Utilities in Lieu of Taxes** [Ch. 4, Art. 8. Payments by Municipal Utilities in Lieu of Taxes.]

Art. 8 **Real Property Transfer Tax** [Ch. 4, Art. 9. Real Property Transfer Tax.]

Art. 9 **Fiscal Administration** [Ch. 2, Art. 12. Fiscal Administration.]

Art. 10 **Business Licenses** [Ch. 5, Art. 1. Business Licenses - General Provisions; Ch. 5, Art. 2. Business Licenses - Exemptions; [Ch. 5, Art. 3. Business Licenses - License Fees.]
Art. 11 **Business Improvement Area** [Ch. 5, Art. 4. Business Licenses - Business Improvement Area.]

Chapter 8 Assessment Districts and Bond Procedures
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SECTION 4. In order to reduce inconvenience and disruption that may occur, the publisher will include a Renumbering Table as part of the republished Code.

SECTION 5. In order that the restructured Code may be easier to use and access, the Code shall be formatted for printing on 8½ x 11 inch paper and it shall be maintained on the City's website. To ensure that the Code is printed in a uniform manner, the City Clerk and City Attorney shall provide publication instructions to the publisher including, but not limited to, the printing on 8½ x 11 inch size paper, pagination, and double-sided printing.

SECTION 6. For this and any other ordinance adopted to complete the Code Streamlining project, the City Attorney is authorized to work with the publisher to make non-substantive changes to the Code, such as, formatting, numbering, numbering systems, organizational structure, headings and subtitles, and inclusion of legislative history to meet the goals and intent of the Code Streamlining project.

SECTION 7. This ordinance shall become effective and in full force and effect on the 90th day after its final passage.

* * * * * * * * * * * * * *

STATE OF CALIFORNIA)
COUNTY OF FRESNO) ss.
CITY OF FRESNO)

I, REBECCA E. KLISCH, City Clerk of the City of Fresno, certify that the foregoing ordinance was adopted by the Council of the City of Fresno, at a regular meeting held on the 26th day of June, 2007.

AYES : Calhoun, Dages, Duncan, Sterling, Westerlund, Xiong

NOES : None

ABSENT : Perea

ABSTAIN None

Mayor Approval: July 6 , 2007

Mayor Approval/No Return: N/A , 2007

Mayor Veto: N/A , 2007

Council Override Vote: N/A , 2007

REBECCA E. KLISCH
City Clerk
BY:_____
Deputy

APPROVED AS TO FORM:
CITY ATTORNEY'S OFFICE
BY:_____
KATHRYN C. PHELAN
Deputy City Attorney

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature and ordinances that amend subject matter not found in the Code are not codified and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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2010-25	Omitted	Supp. No. 7
2010-26	Omitted	Supp. No. 7
2010-27	Omitted	Supp. No. 7
2010-28	Omitted	Supp. No. 7
2010-29	Omitted	Supp. No. 7
2010-30	Omitted	Supp. No. 7
2010-31	Omitted	Supp. No. 7
2010-32	Omitted	Supp. No. 7
2010-33	Omitted	Supp. No. 7
2010-34	Omitted	Supp. No. 7
2010-35	Omitted	Supp. No. 7
2010-36	Omitted	Supp. No. 7
2010-37	Included	Supp. No. 7
2010-38	Included	Supp. No. 7
2010-40	Omitted	Supp. No. 7
2010-41	Included	Supp. No. 7
2010-42	Omitted	Supp. No. 7
2010-43	Omitted	Supp. No. 7
2010-44	Included	Supp. No. 7
2010-45	Omitted	Supp. No. 7
2010-46	Omitted	Supp. No. 7
2010-47	Omitted	Supp. No. 7
2010-48	Included	Supp. No. 7
2010-49	Included	Supp. No. 7
2010-50	Included	Supp. No. 7
2010-51	Omitted	Supp. No. 7
2010-52	Omitted	Supp. No. 7
2010-53	Included	Supp. No. 7
2010-54	Omitted	Supp. No. 7

Ord. No.	Included/ Omitted	Supp. No.
2010-55	Omitted	Supp. No. 7
2010-56	Omitted	Supp. No. 7
2010-57	Omitted	Supp. No. 7
2010-58	Omitted	Supp. No. 7
2010-59	Omitted	Supp. No. 7
2010-60	Omitted	Supp. No. 7
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2011-2	Included	Supp. No. 8
2011-3	Included	Supp. No. 8
2011-4	Included	Supp. No. 8
2011-5	Omitted	Supp. No. 8
2011-6	Included	Supp. No. 8
2011-7	Omitted	Supp. No. 8
2011-8	Omitted	Supp. No. 8
2011-9	Omitted	Supp. No. 8
2011-10	Included	Supp. No. 8
2011-11	Omitted	Supp. No. 8
2011-12	Omitted	Supp. No. 8
2011-13	Omitted	Supp. No. 8
2011-14	Included	Supp. No. 8
2011-15	Omitted	Supp. No. 8
2011-16	Included	Supp. No. 8
2011-17	Omitted	Supp. No. 8
2011-18	Omitted	Supp. No. 8
2011-19	Omitted	Supp. No. 8
2011-20	Omitted	Supp. No. 8
2011-21	Omitted	Supp. No. 8
2011-22	Omitted	Supp. No. 8
2011-23	Included	Supp. No. 8
2011-24	Omitted	Supp. No. 8
2011-25	Included	Supp. No. 8
2011-26	Omitted	Supp. No. 8
2011-27	Omitted	Supp. No. 8
2011-28	Omitted	Supp. No. 9
2011-29	Omitted	Supp. No. 9
2011-30	Omitted	Supp. No. 9
2011-31	Omitted	Supp. No. 9
2011-32	Omitted	Supp. No. 9
2011-33	Omitted	Supp. No. 9
2011-34	Included	Supp. No. 9
2011-35	Omitted	Supp. No. 9
2011-36	Included	Supp. No. 9
2011-37	Omitted	Supp. No. 9
2011-38	Omitted	Supp. No. 9
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2012-3	Omitted	Supp. No. 10
2012-4	Included	Supp. No. 10
2012-5	Included	Supp. No. 10
2012-6	Included	Supp. No. 10
2012-7	Omitted	Supp. No. 10
2012-8	Omitted	Supp. No. 10
2012-9	Omitted	Supp. No. 10
2012-10	Omitted	Supp. No. 10
2012-11	Included	Supp. No. 10
2012-12	Omitted	Supp. No. 10
2012-13	Included	Supp. No. 10
2012-14	Omitted	Supp. No. 10
2012-15	Omitted	Supp. No. 10
2012-16	Included	Supp. No. 11
2012-17	Included	Supp. No. 11
2012-18	Omitted	Supp. No. 11
2012-19	Omitted	Supp. No. 11
2012-20	Omitted	Supp. No. 11
2012-26	Omitted	Supp. No. 12
2013-1	Omitted	Supp. No. 12
2013-2	Omitted	Supp. No. 12
2013-3	Included	Supp. No. 12
2013-4	Omitted	Supp. No. 12
2013-5	Omitted	Supp. No. 12
2013-6	Omitted	Supp. No. 12
2013-7	Included	Supp. No. 12
2013-8	Omitted	Supp. No. 12
2013-9	Omitted	Supp. No. 12
2013-10	Included	Supp. No. 12
2013-11	Included	Supp. No. 12
2013-13	Included	Supp. No. 12
2013-14	Omitted	Supp. No. 12
2013-15	Omitted	Supp. No. 12
2012-22	Included	Supp. No. 13
2013-12	Omitted	Supp. No. 13
2013-16	Included	Supp. No. 13
2013-17	Omitted	Supp. No. 13
2013-18	Omitted	Supp. No. 13
2013-19	Omitted	Supp. No. 13
2013-20	Omitted	Supp. No. 13
2013-21	Included	Supp. No. 13
2013-22	Omitted	Supp. No. 13
2013-23	Omitted	Supp. No. 13

Ord. No.	Included/ Omitted	Supp. No.
2013-24	Omitted	Supp. No. 13
2013-25	Omitted	Supp. No. 13
2013-26	Omitted	Supp. No. 13
2013-27	Included	Supp. No. 13
2013-28	Included	Supp. No. 13
2013-29	Omitted	Supp. No. 13
2013-30	Omitted	Supp. No. 13
2013-31	Omitted	Supp. No. 13
2013-32	Omitted	Supp. No. 13
2013-33	Omitted	Supp. No. 13
2013-34	Included	Supp. No. 13
2013-35	Included	Supp. No. 13
2013-36	Included	Supp. No. 13
2013-37	Included	Supp. No. 13
2013-38	Omitted	Supp. No. 13
2013-39	Omitted	Supp. No. 13
2013-40	Omitted	Supp. No. 13
2013-41	Omitted	Supp. No. 13
2013-42	Omitted	Supp. No. 13
2013-43	Omitted	Supp. No. 13
2014-1	Included	Supp. No. 13
2014-2	Included	Supp. No. 13
2014-3	Included	Supp. No. 13
2014-4	Omitted	Supp. No. 13
2014-5	Omitted	Supp. No. 13
2014-6	Omitted	Supp. No. 13
2014-7	Omitted	Supp. No. 13
2014-8	Included	Supp. No. 13
2014-9	Included	Supp. No. 13
2014-10	Omitted	Supp. No. 13
2014-11	Included	Supp. No. 13
2014-12	Omitted	Supp. No. 13
2014-13	Omitted	Supp. No. 13
2014-14	Omitted	Supp. No. 13
2014-15	Included	Supp. No. 13
2014-16	Included	Supp. No. 13
2014-17	Included	Supp. No. 13
2014-18	Included	Supp. No. 13
2014-19	Included	Supp. No. 13
2014-21	Omitted	Supp. No. 13
2012-140(Res.)	Included	Supp. No. 14
2012-225(Res.)	Omitted	Supp. No. 14
2014-20	Included	Supp. No. 14
2014-23	Omitted	Supp. No. 14

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2014-24	Included	Supp. No. 14
2014-25	Omitted	Supp. No. 14
2014-26	Included	Supp. No. 14
2014-27	Included	Supp. No. 15
2014-28	Omitted	Supp. No. 15
2014-29	Included	Supp. No. 15
2014-30	Omitted	Supp. No. 15
2014-31	Included	Supp. No. 15
2014-32	Included	Supp. No. 15
2014-33	Omitted	Supp. No. 15
2014-34	Included	Supp. No. 15
2014-35	Omitted	Supp. No. 15
2014-36	Included	Supp. No. 15
2014-37	Omitted	Supp. No. 15
2014-38	Included	Supp. No. 15
2014-39	Omitted	Supp. No. 15
2014-40	Omitted	Supp. No. 15
2014-41	Omitted	Supp. No. 15
2014-42	Omitted	Supp. No. 15
2014-43	Omitted	Supp. No. 15
2014-44	Omitted	Supp. No. 15
2014-45	Included	Supp. No. 15
2014-46	Omitted	Supp. No. 15
2014-47	Omitted	Supp. No. 15
2014-48	Omitted	Supp. No. 15
2014-49	Included	Supp. No. 15
2014-50	Included	Supp. No. 15
2014-51	Included	Supp. No. 15
2014-52	Omitted	Supp. No. 15
2014-53	Omitted	Supp. No. 15
2014-54	Omitted	Supp. No. 15
Charter Amd. of 6-8-10	Included	Supp. No. 16
2015-1	Omitted	Supp. No. 17
2015-2	Omitted	Supp. No. 17
2015-3	Omitted	Supp. No. 17
2015-4	Omitted	Supp. No. 17
2015-5	Included	Supp. No. 17
2015-6	Included	Supp. No. 17
2015-7	Omitted	Supp. No. 17
2015-8	Omitted	Supp. No. 17
2015-9	Omitted	Supp. No. 17
2015-10	Included	Supp. No. 17
2015-11	Included	Supp. No. 17
2015-12	Omitted	Supp. No. 17
2015-13	Included	Supp. No. 17
2015-14	Included	Supp. No. 17

Ord. No.	Included/ Omitted	Supp. No.
2015-15	Omitted	Supp. No. 17
2015-16	Omitted	Supp. No. 17
2015-17	Included	Supp. No. 17
2015-19	Omitted	Supp. No. 17
2015-20	Omitted	Supp. No. 17
2015-21	Omitted	Supp. No. 17
2015-18	Included	Supp. No. 18
2015-22	Included	Supp. No. 18
2015-23	Included	Supp. No. 18
2015-24	Included	Supp. No. 18
2015-25	Omitted	Supp. No. 18
2015-26	Included	Supp. No. 18
2015-27	Included	Supp. No. 18
2015-28	Omitted	Supp. No. 18
2015-29	Included	Supp. No. 18
2015-30	Omitted	Supp. No. 18
2015-31	Omitted	Supp. No. 18
2015-32	Included	Supp. No. 18
2015-33	Included	Supp. No. 18
2015-34	Included	Supp. No. 18
2015-35	Omitted	Supp. No. 18
2015-36	Omitted	Supp. No. 18
2015-37	Included	Supp. No. 18
2015-38	Included	Supp. No. 18
2015-40	Included	Supp. No. 18
2015-41	Omitted	Supp. No. 18
2015-42	Omitted	Supp. No. 18
2015-46	Omitted	Supp. No. 18
2015-47	Omitted	Supp. No. 18
2015-39	Included	Supp. No. 19
2015-43	Included	Supp. No. 19
2015-44	Included	Supp. No. 19
2015-45	Included	Supp. No. 19
2016-1	Included	Supp. No. 19
2016-2	Omitted	Supp. No. 19
2016-3	Omitted	Supp. No. 19
2016-5	Omitted	Supp. No. 19
2016-6	Omitted	Supp. No. 19
2016-7	Omitted	Supp. No. 19
2016-4	Omitted	Supp. No. 20
2016-8	Omitted	Supp. No. 20
2016-9	Included	Supp. No. 20
2016-10	Included	Supp. No. 20
2016-11	Included	Supp. No. 20
2016-12	Included	Supp. No. 20
2016-13	Omitted	Supp. No. 20

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2016-14	Omitted	Supp. No. 20
2016-15	Omitted	Supp. No. 20
2016-16	Included	Supp. No. 20
2016-17	Omitted	Supp. No. 20
2016-18	Omitted	Supp. No. 20
2016-19	Omitted	Supp. No. 20
2016-20	Omitted	Supp. No. 20
2016-21	Omitted	Supp. No. 20
2016-22	Omitted	Supp. No. 20
2016-23	Omitted	Supp. No. 20
2016-24	Omitted	Supp. No. 20
2016-25	Included	Supp. No. 20
2016-26	Omitted	Supp. No. 20
2016-27	Omitted	Supp. No. 20
2016-28	Omitted	Supp. No. 20
2016-29	Omitted	Supp. No. 21
2016-30	Omitted	Supp. No. 21
2016-31	Omitted	Supp. No. 21
2016-32	Included	Supp. No. 21
2016-33	Included	Supp. No. 21
2016-34	Omitted	Supp. No. 21
2016-35	Omitted	Supp. No. 21
2016-36	Omitted	Supp. No. 21
2016-37	Omitted	Supp. No. 21
2016-38	Included	Supp. No. 21
2016-39	Omitted	Supp. No. 21
2016-40	Omitted	Supp. No. 21
2016-41	Omitted	Supp. No. 21
2016-42	Included	Supp. No. 21
2016-43	Included	Supp. No. 21
2016-44	Included	Supp. No. 21
2016-45	Included	Supp. No. 21
2016-46	Omitted	Supp. No. 21
2016-47	Included	Supp. No. 21
2016-48	Included	Supp. No. 21
2016-49	Omitted	Supp. No. 21
2016-50	Included	Supp. No. 21
2016-51	Included	Supp. No. 21
2016-52	Included	Supp. No. 21
2016-53	Included	Supp. No. 21
2016-54	Included	Supp. No. 21
2016-55	Included	Supp. No. 21
2016-56	Omitted	Supp. No. 21
2016-58	Omitted	Supp. No. 21
2016-59	Omitted	Supp. No. 21
2017-1	Included	Supp. No. 22

Ord. No.	Included/ Omitted	Supp. No.
2017-2	Included	Supp. No. 22
2017-3	Omitted	Supp. No. 22
2017-4	Omitted	Supp. No. 22
2017-5	Included	Supp. No. 22
2017-6	Omitted	Supp. No. 22
2017-7	Omitted	Supp. No. 22
2017-8	Omitted	Supp. No. 22
2017-9	Omitted	Supp. No. 22
2017-10	Omitted	Supp. No. 22
2017-12	Omitted	Supp. No. 22
2017-13	Omitted	Supp. No. 22
2017-11	Included	Supp. No. 23
2017-14	Omitted	Supp. No. 23
2017-15	Included	Supp. No. 23
2017-16	Omitted	Supp. No. 23
2017-17	Omitted	Supp. No. 23
2017-18	Omitted	Supp. No. 23
2017-19	Included	Supp. No. 23
2017-20	Omitted	Supp. No. 23
2017-21	Omitted	Supp. No. 23
2017-22	Omitted	Supp. No. 23
2017-23	Omitted	Supp. No. 23
2016-57	Included	Supp. No. 23
2017-24	Omitted	Supp. No. 23
2017-25	Omitted	Supp. No. 23
2017-26	Omitted	Supp. No. 23
2017-28	Omitted	Supp. No. 23
2017-29	Omitted	Supp. No. 23
2017-30	Included	Supp. No. 23
2017-32	Omitted	Supp. No. 23
2017-27	Omitted	Supp. No. 23
2017-31	Omitted	Supp. No. 23
2017-33	Included	Supp. No. 23
2017-34	Omitted	Supp. No. 23
2017-35	Omitted	Supp. No. 23
2017-36	Omitted	Supp. No. 23
2017-37	Included	Supp. No. 24
2017-38	Included	Supp. No. 24
2017-39	Omitted	Supp. No. 24
2017-40	Included	Supp. No. 24
2017-41	Omitted	Supp. No. 24
2017-42	Omitted	Supp. No. 24
2017-43	Omitted	Supp. No. 24
2017-44	Omitted	Supp. No. 24
2017-45	Omitted	Supp. No. 24
2017-47	Omitted	Supp. No. 24

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2017-48	Omitted	Supp. No. 24
2017-49	Omitted	Supp. No. 24
2017-50	Omitted	Supp. No. 24
2017-51	Omitted	Supp. No. 24
2017-52	Included	Supp. No. 24
2017-53	Omitted	Supp. No. 24
2017-54	Included	Supp. No. 24
2017-55	Omitted	Supp. No. 24
2017-56	Included	Supp. No. 24
2017-57	Included	Supp. No. 24
2017-58	Included	Supp. No. 24
2017-59	Omitted	Supp. No. 24
2017-60	Omitted	Supp. No. 24
2017-61	Omitted	Supp. No. 24
2017-62	Omitted	Supp. No. 24
2017-63	Included	Supp. No. 24
2017-64	Included	Supp. No. 24
2017-65	Omitted	Supp. No. 24
2017-66	Included	Supp. No. 25
2017-67	Included	Supp. No. 25
2017-68	Included	Supp. No. 25
2017-69	Omitted	Supp. No. 25
2017-70	Omitted	Supp. No. 25
2017-71	Omitted	Supp. No. 25
2017-72	Included	Supp. No. 25
2018-1	Included	Supp. No. 25
2018-2	Included	Supp. No. 25
2018-3	Included	Supp. No. 25
2018-4	Omitted	Supp. No. 25
2018-5	Omitted	Supp. No. 25
2018-6	Included	Supp. No. 25
2016-135(Res.)	Included	Supp. No. 25
2018-7	Omitted	Supp. No. 25
2018-8	Omitted	Supp. No. 25
2018-9	Omitted	Supp. No. 25
2018-10	Included	Supp. No. 25
2018-11	Omitted	Supp. No. 26
2018-12	Omitted	Supp. No. 26
2018-13	Included	Supp. No. 26
2018-14	Included	Supp. No. 26
2018-15	Omitted	Supp. No. 26
2018-16	Omitted	Supp. No. 26
2018-18	Included	Supp. No. 26
2018-19	Included	Supp. No. 26
2018-21	Omitted	Supp. No. 26
2018-22	Omitted	Supp. No. 26

Ord. No.	Included/ Omitted	Supp. No.
2018-23	Included	Supp. No. 26
2018-24	Included	Supp. No. 26
2018-26	Omitted	Supp. No. 26
2018-28	Omitted	Supp. No. 26
2018-29	Included	Supp. No. 26
2018-30	Omitted	Supp. No. 26
2018-31	Omitted	Supp. No. 26
2018-32	Omitted	Supp. No. 26
2018-17	Included	Supp. No. 26
2018-20	Omitted	Supp. No. 26
2018-25	Included	Supp. No. 26
2018-27	Omitted	Supp. No. 26
2018-33	Included	Supp. No. 26
2018-34	Omitted	Supp. No. 26
2018-35	Omitted	Supp. No. 26
2018-37	Included	Supp. No. 26
2018-38	Included	Supp. No. 26
2018-39	Included	Supp. No. 26
2018-40	Omitted	Supp. No. 26
2018-36	Omitted	Supp. No. 27
2018-41	Omitted	Supp. No. 27
2018-42	Omitted	Supp. No. 27
2018-43	Omitted	Supp. No. 27
2018-44	Omitted	Supp. No. 27
2018-45	Included	Supp. No. 27
2018-46	Included	Supp. No. 27
2018-47	Included	Supp. No. 27
2018-48	Included	Supp. No. 27
2018-49	Included	Supp. No. 27
2018-50	Included	Supp. No. 27
2018-51	Omitted	Supp. No. 28
2018-52	Omitted	Supp. No. 28
2018-53	Omitted	Supp. No. 28
2018-54	Omitted	Supp. No. 28
2018-55	Included	Supp. No. 28
2018-56	Omitted	Supp. No. 28
2018-57	Omitted	Supp. No. 28
2018-134 (Res.)	Included	Supp. No. 28
2018-58	Included	Supp. No. 28
2018-59	Omitted	Supp. No. 28
2018-60	Omitted	Supp. No. 28
2018-61	Omitted	Supp. No. 28
2018-62	Omitted	Supp. No. 28
2018-63	Omitted	Supp. No. 28
2018-64	Included	Supp. No. 28
2018-65	Included	Supp. No. 28

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2018-66	Included	Supp. No. 28
2018-67	Omitted	Supp. No. 28
2018-68	Included	Supp. No. 28
2018-69	Omitted	Supp. No. 28
2018-191 (Res.)	Omitted	Supp. No. 28
2018-302 (Res.)	Omitted	Supp. No. 28
2019-001	Omitted	Supp. No. 29
2019-002	Omitted	Supp. No. 29
2019-003	Included	Supp. No. 29
2019-004	Included	Supp. No. 29
2019-005	Omitted	Supp. No. 29
2019-006	Omitted	Supp. No. 29
2019-007	Omitted	Supp. No. 29
2019-008	Omitted	Supp. No. 29
2019-009	Omitted	Supp. No. 29
2019-010	Omitted	Supp. No. 29
2019-011	Included	Supp. No. 29
2019-012	Omitted	Supp. No. 29
2012-23	Included	Supp. No. 29
2019-013	Omitted	Supp. No. 29
2019-014	Included	Supp. No. 30
2019-015	Included	Supp. No. 30
2019-016	Included	Supp. No. 30
2019-017	Omitted	Supp. No. 30
2019-018	Omitted	Supp. No. 30
2019-019	Included	Supp. No. 30
2019-020	Omitted	Supp. No. 30
2019-026	Omitted	Supp. No. 30
2019-021	Included	Supp. No. 31
2019-022	Omitted	Supp. No. 31
2019-023	Included	Supp. No. 31
2019-024	Omitted	Supp. No. 31
2019-025	Omitted	Supp. No. 31
2019-027	Omitted	Supp. No. 31
2019-028	Omitted	Supp. No. 31
2019-029	Omitted	Supp. No. 31
2019-030	Included	Supp. No. 31
2019-032	Included	Supp. No. 31
2019-033	Omitted	Supp. No. 31
2019-034	Included	Supp. No. 31
2019-035	Included	Supp. No. 31
2019-036	Included	Supp. No. 31
2019-038	Included	Supp. No. 31
2019-039	Included	Supp. No. 31
2019-040	Omitted	Supp. No. 31
2019-041	Omitted	Supp. No. 31

Ord. No.	Included/ Omitted	Supp. No.
2019-042	Included	Supp. No. 31
2019-043	Included	Supp. No. 31
2019-044	Included	Supp. No. 31
2019-045	Omitted	Supp. No. 31
2019-046	Omitted	Supp. No. 31
2019-047	Omitted	Supp. No. 31
2019-048	Included	Supp. No. 31
2019-049	Omitted	Supp. No. 31
2019-050	Omitted	Supp. No. 31
2020-001	Omitted	Supp. No. 32
2020-002	Included	Supp. No. 32
2020-003	Included	Supp. No. 32
2020-004	Included	Supp. No. 32
2020-005	Omitted	Supp. No. 32
2020-006	Omitted	Supp. No. 32
2020-007	Omitted	Supp. No. 32
2020-008	Omitted	Supp. No. 32
2020-009	Included	Supp. No. 32
2020-010	Included	Supp. No. 32
2020-011	Omitted	Supp. No. 32
2020-012	Included	Supp. No. 32
2020-013	Omitted	Supp. No. 33
2020-014	Omitted	Supp. No. 33
2020-015	Included	Supp. No. 33
2020-016	Included	Supp. No. 33
2020-019	Omitted	Supp. No. 33
2020-020	Included	Supp. No. 33
2020-017	Omitted	Supp. No. 34
2020-018	Included	Supp. No. 34
2020-021	Omitted	Supp. No. 34
2020-022	Included	Supp. No. 34
2020-023	Omitted	Supp. No. 34
2020-024	Included	Supp. No. 34
2020-025	Omitted	Supp. No. 34
2020-026	Omitted	Supp. No. 34
2020-027	Included	Supp. No. 34
2020-028	Omitted	Supp. No. 34
2020-029	Omitted	Supp. No. 34
2020-030	Included	Supp. No. 34
2020-031	Included	Supp. No. 34
2020-032	Omitted	Supp. No. 34
2020-033	Omitted	Supp. No. 34
2020-034	Included	Supp. No. 35
2020-035	Omitted	Supp. No. 35
2020-036	Included	Supp. No. 35
2020-037	Included	Supp. No. 35

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2020-038	Included	Supp. No. 35
2020-039	Included	Supp. No. 35
2020-040	Included	Supp. No. 35
2020-041	Included	Supp. No. 35
2020-042	Omitted	Supp. No. 35
2020-043	Included	Supp. No. 35
2020-044	Included	Supp. No. 35
2020-045	Included	Supp. No. 35
2020-046	Omitted	Supp. No. 35
2020-047	Omitted	Supp. No. 35
2020-048	Omitted	Supp. No. 35
2020-049	Omitted	Supp. No. 35
2020-050	Included	Supp. No. 35
2020-051	Included	Supp. No. 35
2020-052	Included	Supp. No. 35
2020-053	Omitted	Supp. No. 35
2020-054	Included	Supp. No. 35
2020-055	Omitted	Supp. No. 35
2020-056	Omitted	Supp. No. 35
2020-057	Omitted	Supp. No. 36
2021-004	Included	Supp. No. 36
2021-001	Omitted	Supp. No. 36
2021-002	Omitted	Supp. No. 36
2021-003	Omitted	Supp. No. 36
2021-005	Included	Supp. No. 36
2021-006	Omitted	Supp. No. 36
2021-007	Omitted	Supp. No. 36
2021-009	Omitted	Supp. No. 36
2021-010	Included	Supp. No. 36
2021-008	Omitted	Supp. No. 37
2021-011	Omitted	Supp. No. 37
2021-012	Included	Supp. No. 37
2021-013	Included	Supp. No. 37
2021-014	Included	Supp. No. 37
2021-019	Omitted	Supp. No. 37
2021-020	Omitted	Supp. No. 37
2021-021	Included	Supp. No. 37
2021-022	Included	Supp. No. 37
2021-023	Included	Supp. No. 37
2021-024	Omitted	Supp. No. 37
2021-025	Omitted	Supp. No. 37
2021-026	Included	Supp. No. 37
2021-027	Included	Supp. No. 37
2021-028	Included	Supp. No. 37
2021-029	Included	Supp. No. 37
2021-030	Included	Supp. No. 37

Ord. No.	Included/ Omitted	Supp. No.
2021-031	Omitted	Supp. No. 37
2021-032	Included	Supp. No. 37
2021-033	Omitted	Supp. No. 37
2021-034	Omitted	Supp. No. 38
2021-035	Omitted	Supp. No. 38
2021-036	Included	Supp. No. 38
2021-037	Omitted	Supp. No. 38
2021-038	Omitted	Supp. No. 38
2021-039	Included	Supp. No. 38
2021-040	Omitted	Supp. No. 38
2021-041	Included	Supp. No. 39
2021-042	Omitted	Supp. No. 39
2021-043	Omitted	Supp. No. 39
2021-044	Included	Supp. No. 39
2021-045	Included	Supp. No. 39
2021-046	Omitted	Supp. No. 39
2021-047	Omitted	Supp. No. 39
2021-048	Included	Supp. No. 39
2021-049	Omitted	Supp. No. 39
2021-050	Included	Supp. No. 39
2021-051	Omitted	Supp. No. 39
2021-055	Omitted	Supp. No. 39
2022-002	Included	Supp. No. 40
2022-003	Included	Supp. No. 40
2022-001	Included	Supp. No. 40
2022-005	Included	Supp. No. 40
2022-006	Omitted	Supp. No. 40
2022-007	Included	Supp. No. 40
2022-008	Included	Supp. No. 40
2022-009	Included	Supp. No. 40
2022-010	Included	Supp. No. 40
2022-011	Included	Supp. No. 40
2022-012	Omitted	Supp. No. 40
2022-013	Included	Supp. No. 40
2022-014	Included	Supp. No. 40
2022-015	Omitted	Supp. No. 40
2022-016	Omitted	Supp. No. 40
2022-017	Included	Supp. No. 40
2022-019	Included	Supp. No. 40
2022-020	Omitted	Supp. No. 40
2022-021	Omitted	Supp. No. 41
2022-022	Omitted	Supp. No. 41
2022-023	Omitted	Supp. No. 41
2022-025	Omitted	Supp. No. 41
2022-026	Included	Supp. No. 41
2022-027	Omitted	Supp. No. 41

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2022-028	Included	Supp. No. 41
2022-029	Included	Supp. No. 41
2022-030	Omitted	Supp. No. 41
2022-031	Omitted	Supp. No. 41
2022-032	Omitted	Supp. No. 41
2022-033	Included	Supp. No. 41
2022-034	Included	Supp. No. 41
2022-035	Omitted	Supp. No. 41
2022-036	Omitted	Supp. No. 41
2022-037	Included	Supp. No. 42
2023-001	Omitted	Supp. No. 42
2023-002	Omitted	Supp. No. 42
2023-003	Included	Supp. No. 42
2023-004	Omitted	Supp. No. 42
2023-005	Omitted	Supp. No. 43
2023-006	Omitted	Supp. No. 43
2023-007	Omitted	Supp. No. 43
2023-008	Omitted	Supp. No. 43
2023-009	Omitted	Supp. No. 43
2023-010	Included	Supp. No. 43
2023-011	Omitted	Supp. No. 43
2023-012	Included	Supp. No. 43
2023-013	Included	Supp. No. 43
2023-014	Omitted	Supp. No. 43
2023-015	Omitted	Supp. No. 43
2023-016	Omitted	Supp. No. 43
2023-017	Omitted	Supp. No. 43
2023-018	Omitted	Supp. No. 43
2023-019	Included	Supp. No. 44
2023-020	Included	Supp. No. 44
2023-021	Omitted	Supp. No. 44
2023-022	Omitted	Supp. No. 44
2023-024	Included	Supp. No. 44
2023-025	Included	Supp. No. 44
2023-026	Omitted	Supp. No. 44
2023-027	Omitted	Supp. No. 44
2023-028	Omitted	Supp. No. 44
2023-029	Omitted	Supp. No. 44
2023-030	Included	Supp. No. 44
2023-031	Included	Supp. No. 45
2023-032	Included	Supp. No. 45
2023-033	Omitted	Supp. No. 45
2023-034	Omitted	Supp. No. 45
2023-035	Omitted	Supp. No. 46
2024-001	Included	Supp. No. 46
2024-002	Included	Supp. No. 46

Ord. No.	Included/ Omitted	Supp. No.
2024-003	Included	Supp. No. 46
2024-004	Omitted	Supp. No. 46
2024-005	Omitted	Supp. No. 46
2024-006	Included	Supp. No. 46
2024-007	Omitted	Supp. No. 47
2024-008	Included	Supp. No. 47
2024-009	Omitted	Supp. No. 47
2024-010	Included	Supp. No. 47
2024-011	Omitted	Supp. No. 47
2024-013	Omitted	Supp. No. 47
2024-012	Included	Supp. No. 48
2024-014	Included	Supp. No. 48
2024-015	Included	Supp. No. 48
2024-016	Omitted	Supp. No. 48
2024-017	Included	Supp. No. 48
2024-018	Included	Supp. No. 48
2024-019	Omitted	Supp. No. 48
2024-020	Included	Supp. No. 48
2024-021	Omitted	Supp. No. 48
2024-022	Omitted	Supp. No. 48
2024-023	Omitted	Supp. No. 48
2024-024	Included	Supp. No. 48
2024-025	Included	Supp. No. 48
2024-026	Included	Supp. No. 48
2024-027	Included	Supp. No. 48
2024-028	Included	Supp. No. 48
2024-029	Omitted	Supp. No. 48
2024-030	Omitted	Supp. No. 49
2024-031	Omitted	Supp. No. 49
2024-032	Omitted	Supp. No. 49
2024-033	Omitted	Supp. No. 49
2024-034	Included	Supp. No. 49
2024-035	Omitted	Supp. No. 49
2024-036	Omitted	Supp. No. 49
2024-037	Included	Supp. No. 49
2024-038	Included	Supp. No. 49
2024-039	Omitted	Supp. No. 50
2024-040	Omitted	Supp. No. 50
2024-041	Omitted	Supp. No. 50
2024-042	Included	Supp. No. 50
2024-043	Included	Supp. No. 50
2025-001	Omitted	Supp. No. 50
2025-002	Included	Supp. No. 50
2025-003	Included	Supp. No. 50
2025-004	Omitted	Supp. No. 50
2025-005	Included	Supp. No. 51

SUPPLEMENT HISTORY TABLE

Ord. No.	Included/ Omitted	Supp. No.
2025-006	Omitted	Supp. No. 51
2025-007	Omitted	Supp. No. 51
2025-008	Included	Supp. No. 51
2025-009	Included	Supp. No. 51
2025-010	Included	Supp. No. 51
2025-011	Included	Supp. No. 51
2025-012	Omitted	Supp. No. 51
2025-013	Omitted	Supp. No. 51
2025-014	Omitted	Supp. No. 51
2025-015	Omitted	Supp. No. 51
2025-016	Omitted	Supp. No. 51
2025-017	Omitted	Supp. No. 52
2025-018	Omitted	Supp. No. 52
2025-019	Omitted	Supp. No. 52
2025-020	Included	Supp. No. 52
2025-021	Included	Supp. No. 52
2025-022	Included	Supp. No. 52
2025-024	Included	Supp. No. 52
2025-025	Omitted	Supp. No. 52
2025-026	Included	Supp. No. 52
2025-027	Omitted	Supp. No. 52
2025-028	Omitted	Supp. No. 52
2025-029	Omitted	Supp. No. 52
2025-030	Omitted	Supp. No. 52
2025-031	Omitted	Supp. No. 52
2025-032	Omitted	Supp. No. 52
2025-033	Omitted	Supp. No. 52
2025-034	Omitted	Supp. No. 52
2025-035	Omitted	Supp. No. 53
2025-036	Included	Supp. No. 53
2025-037	Included	Supp. No. 53
2025-038	Omitted	Supp. No. 53
2025-039	Included	Supp. No. 53
2025-040	Included	Supp. No. 53
2025-041	Included	Supp. No. 53
2025-042	Omitted	Supp. No. 53
2025-044	Omitted	Supp. No. 53
2025-045	Omitted	Supp. No. 53
2025-047	Omitted	Supp. No. 53
2025-043	Included	Supp. No. 54
2025-048	Included	Supp. No. 54
2025-049	Omitted	Supp. No. 54
2025-023	Included	Supp. No. 54
2025-046	Included	Supp. No. 54
2025-050	Omitted	Supp. No. 54
2025-051	Omitted	Supp. No. 54

Ord. No.	Included/ Omitted	Supp. No.
2025-052	Omitted	Supp. No. 54
2025-053	Omitted	Supp. No. 54
2025-054	Included	Supp. No. 54
2025-055	Omitted	Supp. No. 54
2025-056	Included	Supp. No. 54
2025-057	Included	Supp. No. 54
2025-058	Included	Supp. No. 54
2025-059	Included	Supp. No. 54
2025-060	Included	Supp. No. 54
2025-061	Included	Supp. No. 54
2025-062	Omitted	Supp. No. 54
2026-001	Included	Supp. No. 54
2026-002	Omitted	Supp. No. 54

MUNICIPAL CODE OF THE CITY OF FRESNO

CHAPTER 1

GENERAL PROVISIONS*

Art. 1. General Provisions.
Art. 2. Definitions and Rules of Construction.
Art. 3. Code Enforcement; Judicial and Administrative Remedies and Procedures.
Art. 4. General Administrative Hearing Procedure.
Art. 5. Cost and Penalty Recovery.
Art. 6. City Attorney Subpoena Power.

***Editor's note—**Ord. No. 2007-55, §§ 2 and 4, effective September 4, 2007, amended the Code by repealing former Ch. 1, §§ 1-101—1-108, 1-201—1-214, 1-301—1-303, 1-401—1-414, 1-501—1-512, and 1-601—1-617, and adding a new Ch. 1. Former Ch. 1 pertained to similar subject matter. Original history information has been retained with the appropriate section, where possible.

ARTICLE 1 GENERAL PROVISIONS

Sec. 1-101. Reference to Code.
Sec. 1-102. Effect on Past Actions and Obligations Previously Accrued.
Sec. 1-103. Severability of Parts of Code.
Sec. 1-104. Amendments to Summaries.
Sec. 1-105. Access to Code.
Sec. 1-106. Maintenance of Code.
Sec. 1-107. Master Fee Resolution.

SEC. 1-101. REFERENCE TO CODE.

This Code may at all times be referred to as the "Municipal Code of the City of Fresno" or "Fresno Municipal Code" and whenever cited in an ordinance, may be referred to as "this Code". It shall be sufficient to designate any ordinance adding to, amending or repealing this Code as an addition or amendment to, or repeal of, the "Municipal Code of the City of Fresno" or "Fresno Municipal Code." Also, in any prosecution for the violation of any provision of this Code, it shall be sufficient to designate this Code as the "Municipal Code of the City of Fresno" or "Fresno Municipal Code".
(Orig. Ord. 4789; Am. Ord. 98-62, § 1, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-102. EFFECT ON PAST ACTIONS AND OBLIGATIONS PREVIOUSLY ACCRUED.

Neither the adoption of this Code nor the repeal hereby of any ordinance of this city shall in any manner affect the prosecution for violations of ordinances, which violations were committed prior to the effective date hereof, nor be construed as a waiver of any license or penalty at said effective date due and unpaid under such ordinances, nor be construed as affecting any of the provisions of such ordinances relating to the collection of any such license or penalty or the penal provisions applicable to any violation thereof, nor to affect the validity of any bond or cash deposit in lieu thereof, required to be posted, filed or deposited pursuant to any ordinance, and all rights and obligations thereof appertaining shall continue in full force and effect.
(Orig. Ord. 4789; Am. Ord. 98-62, § 1, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-103. SEVERABILITY OF PART OF CODE.

If any chapter, article, section, subsection, sentence, clause or phrase of this Code is for any reason held to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this Code. The Council hereby declares that it would have passed this Code, and each chapter, article, section, subsection, sentence, clause and phrase thereof, irrespective of the fact that any one or more chapters, articles, sections, subsections, sentences, clauses or phrases had been declared invalid or unconstitutional. The separate inclusion of a savings clause in any part of this Code shall not affect the intent of Council that this section shall apply to the entire Code.
(Orig. Ord. 4789; Am. Ord. 98-62, § 1, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-104. AMENDMENTS TO SUMMARIES.

Whenever a new article, division or section is added to this Code, or an existing article, division or section is repealed, or the heading of an article, division or section is altered, the summary of articles at the beginning of each chapter, or divisions or sections at the beginning of each article, or sections at the beginning of each division, as the case may be, shall be and hereby is amended to show the addition, deletion or change in title of such article, division or section.
(Orig. Ord. 4789; Am. Ord. 98-62, § 1, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-105. ACCESS TO CODE.

This Code shall be made available on the City's website. Copies of this Code, in such numbers as the Council may deem adequate, and including the Charter, an index, and such other material as the City Attorney may prescribe, shall be prepared and maintained by the City Clerk in loose-leaf form and shall be mounted in binders to withstand heavy usage. Consistent with the American with Disabilities Act, copies of the Code will be made available to the public in alternative formats upon request without charge to the requesting party. Form, size, arrangement and page numbering shall be determined by the City Attorney.
(Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2011-6, § 1, eff. 4-10-11).

SEC. 1-106. MAINTENANCE OF CODE.

Whenever the Council adopts an amendment or addition to this Code, or repeals any of its provisions, or whenever the Charter is amended, or whenever the table of contents or index is amended, the City Clerk shall cause the loose-leaf pages of the Code or printed matter in which changes have been made to be reprinted, showing the changes and a notation as to the ordinance, if any, by which such changes are adopted. Certified copies of each ordinance amending the Code shall be filed and maintained by the City Clerk.
(Orig. Ord. 4789; Am. Ord. 5311, 1958; Am. Ord. 98-62, § 1, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-107. MASTER FEE RESOLUTION.

All fees, penalties, refunds, reimbursements and charges of any kind collected by the city shall be specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time. Whenever applicable throughout the Code, reference shall be made to the Master Fee Resolution in lieu of any reference to specific fee amounts.
(Added Ord. 80-115, § 2, eff. 8-8-80; Am. Ord. 80-132, § 1, eff. 10-3-80; Am. Ord. 98-62, § 1, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 2 DEFINITIONS AND RULES OF CONSTRUCTION

Sec. 1-201. Headings.
Sec. 1-202. Construction.
Sec. 1-203. Code Numbering.
Sec. 1-204. Definitions.
Sec. 1-205. Grammatical Interpretation.
Sec. 1-206. Exemptions Created by State Law.
Sec. 1-207. Territorial Applicability.
Sec. 1-208. Reference to Ordinances and Charter.
Sec. 1-209. Reference Includes Amendments and Penalties.
Sec. 1-210. Reference to Depositions and Matters of Record.
Sec. 1-211. Prohibited Acts: Including Causing, Permitting, Etc.
Sec. 1-212. Notices, Etc., to be Written and in English Language.
Sec. 1-213. Notices: Service and Proof.
Sec. 1-214. Certification or Declaration Under Penalty or Perjury.
Sec. 1-215. Continuity of Code Provisions.
Sec. 1-216. Renaming of Departments, Divisions, or Offices.
Sec. 1-217. Modifications to Signature and Writing Requirements for People with Disabilities.

SEC. 1-201. HEADINGS.

The headings of chapters, articles, divisions and sections contained in this Code shall not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any chapter, article, division or section of the Code.
(Orig. Ord. 4789); Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-202. CONSTRUCTION.

The provisions of this Code and all proceedings under it are to be construed with a view to effect its objects and to promote justice.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-203. CODE NUMBERING.

(a) In this Code, except for Chapter 12 and Chapter 15, the following order shall be used for classification of provisions: Chapter, Article, Section, Subsection, Subdivision, and subpart with Chapter covering the broadest category and subpart covering the smallest category.

(b) In reading a section number from left to right, the digit or digits to the left of the dash shall designate the chapter number of this Code. The first digit to the right of the dash shall indicate the article number in such chapter, and the two remaining digits the section number within such article; provided, however, that when there are four digits to the right of the dash, the first two digits shall indicate the article number. Figures to the right of a decimal

point shall indicate new sections or chapters inserted between existing sections or chapters, as the case may be. The decimal system shall be used in maintaining the numerical order of such sections and chapters.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2015-39, § 5, eff. 1-9-16).

SEC. 1-204. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section and in other parts of the Code shall govern the construction, meaning, and application of words and phrases used in this Code. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "City" shall mean the City of Fresno or the area within the territorial city limits of the City of Fresno and such territory outside the city over which the city has jurisdiction or control by virtue of any constitutional or Charter provisions, or any law.

(c) "Council" shall mean the Council of the City of Fresno.

(d) "County" shall mean the County of Fresno.

(e) "May" is permissive.

(f) "Must" and "Shall" are mandatory.

(g) "Person" shall mean natural person, joint venture, joint stock company, partnership, association, club, company, corporation, business trust, organization, or the manager, lessee, agent, servant, officer or employee of any of them, and shall include every department of the city and every officer and employee of such department while working in the course and scope of employment.
(Orig. Ord. 1076, Am. Ord. 4789, 1955; Am. Ord. 5311, 1958; Am. Ord. 6007, 1961; Am. Ord. 6028, 1961; Am. Ord. 6515, 1964; Am. Ord. 80-115, § 3, eff. 8-8-80; Am. Ord. 98-66, § 1, eff. 10-1-98; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-205. GRAMMATICAL INTERPRETATION.

(a) "Gender." Any gender includes the other genders.

(b) "Singular and plural." The singular number includes the plural, and the plural includes the singular.

(c) "Tenses." Words used in the present tense include the past and the future tenses and vice versa, unless expressly provided otherwise.

(d) "Uses of words and phrases." Words and phrases used in this Code and not specifically defined shall be construed according to the context and approved usage of the language. The provisions of Sections 13 and 1645 of the Civil Code of the State are hereby adopted in the interpretation of words and phrases, unless otherwise provided herein.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-206. EXEMPTIONS CREATED BY STATE LAW.

Whenever any provision of this Code requires that any person engaging in a business, profession, trade or calling take an examination, or obtain a certificate of registration, post a bond, or pay a fee other than for revenue purposes before engaging in such business,

profession, occupation, trade or calling, such provision shall be limited in its application so as not to conflict with any state regulation on the subject if the State regulation is a matter of statewide concern and not a municipal affair.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-207. TERRITORIAL APPLICABILITY.

This Code shall refer only to the omission or commission of acts within the territorial limits of the city and to that territory outside this city over which the city has jurisdiction or control by virtue of any constitutional or charter provision, any law, or any agreement.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-208. REFERENCE TO ORDINANCES AND CHARTER.

Any reference to an ordinance or the charter in this Code shall mean such ordinance or charter of the City of Fresno.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-209. REFERENCE INCLUDES AMENDMENTS AND PENALTIES.

Any reference in this Code to an ordinance or provisions of this Code shall mean such ordinance or provision as now or hereafter amended. Reference to any section of this Code shall be understood to refer to and include the penalty section relating thereto, unless otherwise expressly provided. In case of the amendment of any section of this Code containing provisions for which a penalty is provided in another section, the penalty so provided in such other section shall be held to relate to the section so amended, whether re-enacted in the amendatory ordinance or not, unless such penalty is specifically repealed therein.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-210. REFERENCE TO DEPOSITS AND MATTERS OF RECORD.

The provisions of this Code shall not in any manner affect deposits, bonds, policies of insurance or other matters of record which refer to, or are otherwise connected with, ordinances which are therein specifically designated by number or otherwise and which are included within this Code, but such reference shall be construed to apply to the corresponding provisions contained within this Code.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-211. PROHIBITED ACTS: INCLUDE CAUSING, PERMITTING, ETC.

Whenever in this Code any act or omission is made unlawful, it shall include causing, allowing, permitting, aiding, abetting, suffering, or concealing the fact of such act or omission.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-212. NOTICES, ETC., TO BE WRITTEN AND IN ENGLISH LANGUAGE.

All notices, reports, statements, applications or records required or authorized by this Code shall be made in writing in the English language unless it is expressly provided otherwise.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-213. NOTICES: SERVICE AND PROOF.

Whenever a notice is required to be given under this Code, unless different provisions herein are otherwise specifically made, the notice may be given either by personal delivery thereof to the person to be notified or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to such person to be notified at the person's last known business or residence address as the same appears in the public records or other records pertaining to the matter to which such notice is directed. Service by mail shall be deemed to have been completed at the time of deposit in the post office, or any United States mailbox. Proof of giving any notice may be made by the certificate of any officer or employee of this city or by affidavit of any person over the age of eighteen years, which shows service in conformity with this Code or other provisions of law applicable to the subject matter concerned.
(Orig. Ord. 4789; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-214. CERTIFICATION OR DECLARATION UNDER PENALTY OF PERJURY.

Whenever an oath, sworn statement, declaration, verification, certification, or affidavit, in writing, of the person making the same (other than a deposition or an oath required to be taken before a specified official other than a notary public), is required to be given under this Code, unless definite provisions are otherwise required, such matter may with like force and effect be evidenced by the unsworn statement, declaration, verification, or certification, in writing, of such person stating the date and place of execution, and which is subscribed by that person and certified or declared by that person to be true "under penalty of perjury."
(Added Ord. 6176, 1962; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-215. CONTINUITY OF CODE PROVISIONS.

Whenever any part of this Code is amended, whether such amendment be by express amendment or by repeal and re-enactment, or by renumbering of a provision, insofar as said amendment is substantially the same as any Code provision previously adopted, relating to the same subject matter, such amendment shall be construed as a restatement and continuation of the previous provision, and not as a new enactment.
(Added Ord. 6914, 1966; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-216. RENAMING OF DEPARTMENTS, DIVISIONS, OR OFFICES.

The Code frequently references specific departments, divisions, offices and positions by name. From time to time the City renames departments, divisions, offices and positions. It shall be unnecessary to amend this Code to recognize the name change. Whenever this Code

refers to a specific department, division, office or position, that reference shall include any new name of that department, division, office or position. Said department, division, office or position shall retain all the same powers, duties, and obligations, unless otherwise specified. (Added Ord. 2002-51, § 22, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-217. MODIFICATIONS TO SIGNATURE AND WRITING REQUIREMENTS FOR PEOPLE WITH DISABILITIES.

(a) Whenever the city requires an individual to provide a signature, an individual who is unable to sign by reason of a disability may satisfy the signature requirement by creating a mark (including use of a signature stamp), the signer's name being written near the mark by a witness who writes his or her own name near the signer's name. If the individual is unable to create a mark they may have another person sign on his or her behalf, by first signing the signer's name, then writing "signed and witnessed by" and his or her name near the signature. Consistent with California Code of Civil Procedure section 17, if the signature is required to serve as a signature to a sworn statement, any signature provided under this section must be witnessed by two individuals. The witnesses may be city employees.

(b) Whenever the city requires that a communication be in writing, whether pursuant to the state or local law, regulation or policy, and a person is unable to write because of a disability, alternative means of communication may be used.
(Added Ord. 2011-6, § 2, eff. 4-10-11).

ARTICLE 3 CODE ENFORCEMENT; JUDICIAL AND ADMINISTRATIVE REMEDIES AND PROCEDURES

Sec. 1-301. Declaration of Purpose.
Sec. 1-302. General Enforcement Authority; Enforcement Officers.
Sec. 1-303. Authority to Inspect.
Sec. 1-304. Code Violations.
Sec. 1-305. Criminal Citations.
Sec. 1-306. Failure to Appear as Misdemeanor.
Sec. 1-307. Police Chief Powers.
Sec. 1-308. Administrative Citations and Penalties.
Sec. 1-309. Issuance of Permits; Violations of Law
Sec. 1-310. Adjudicatory Decisions.

SEC. 1-301. DECLARATION OF PURPOSE.

The Council finds that the enforcement of the Fresno Municipal Code and other applicable laws throughout the city is an important public service. Code enforcement is vital to protection of the public's health, safety, and quality of life. The Council recognizes that enforcement starts with precise regulations that can be understood by city officials and members of the public and effectively applied in administrative enforcement hearings and judicial proceedings. The Council further finds that a comprehensive code enforcement system that uses a combination of judicial and administrative remedies is critical to gain compliance with code regulations.
(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-302. GENERAL ENFORCEMENT AUTHORITY; ENFORCEMENT OFFICERS.

(a) The City Manager or any of his or her designated enforcing officers as set forth in this Code have the authority and powers necessary to gain compliance with the provisions of the Code and applicable laws. The term "enforcement officers" includes any city employee vested with authority to enforce the Code, which also includes any employee or person under contract with the City Attorney appointed to investigate and/or prosecute violations of this Code. These powers include the power to inspect public and private property and use whatever judicial and administrative remedies are available under the Code or applicable laws.

(b) Notwithstanding any Code provision otherwise, and in addition to any authority granted the Director or others, but excluding any authority granted solely to the Police Chief or Police Department, the City Attorney, pursuant to Charter section 803(b), shall have the authority and discretion to investigate and prosecute any violations of this Code by administrative citation, civil action, and/or criminal prosecution.

(c) Where the Director or City Manager has authority to enforce the code or approve regulations to implement or interpret the code, such authority shall also be granted to the City Attorney.
(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2018-46, § 1, eff. 9-17-18; Am. Ord. 2019-019, § 1, eff. 9-19-19).

SEC. 1-303. AUTHORITY TO INSPECT.

Any enforcement officer shall also have authority to enter upon any property or premises to ascertain whether provisions of the Fresno Municipal Code or applicable state codes, regulations, or ordinances are being obeyed, and to make examinations and surveys as may be necessary in the performance of their duties. These may include taking photographs, video, samples, or other physical evidence. All inspections, entries, examinations, and surveys shall be done in a reasonable manner and where entry onto the premises is necessary with the consent of the owner, agent, or occupant. If an owner, occupant, or agent refuses permission to enter or inspect, the enforcement officer may seek an inspection warrant pursuant to the procedures provided for in Code of Civil Procedure Sections 1822.50 through 1822.59 or their successors to perform duties imposed upon said person.
(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-304. CODE VIOLATIONS.

(a) Except for violations of the City Charter or as otherwise specified in this Code, any person convicted of a misdemeanor under the provisions of this Code shall be punishable by a fine of not exceeding one thousand dollars ($1,000.00) or by imprisonment in the Fresno County jail for a period of not more than one year, or by both such fine and imprisonment.

(b) Any person violating any of the provisions or failing to comply with any of the requirements of this Code shall be guilty of a misdemeanor unless:

(1) Such Code provision makes violation thereof an infraction; or

(2) The City Attorney files a complaint charging the offense as an infraction; or

(3) The court, with the consent of the defendant, determines that the offense is an infraction, in which event the case shall proceed as if the defendant had been arraigned on an infraction complaint; or

(4) The city, at its discretion, may issue an administrative citation and civil penalty in lieu of charging any violation of the Code as a misdemeanor or an infraction. The enforcement of those civil penalties shall be governed by the civil administrative citation procedures set forth in this article or as more specifically provided in other provisions of the Code.

(c) Any person convicted of an infraction under the provisions of this Code herein shall be punishable by

(1) a fine not exceeding one hundred dollars ($100.00) for a first violation;

(2) a fine not exceeding two hundred dollars ($200.00) for a second violation of the same provision within one year of the date of the first violation;

(3) a fine not exceeding five hundred dollars ($500.00) for each additional violation of the same provision within one year of the date of the violation.

Except as otherwise provided by law, all provisions of law or ordinance relating to misdemeanors shall apply to infractions.

(d) Each person shall be guilty of a separate offense for each and every day during any portion of which any violation of any provision of this Code is committed, continued, or permitted by such person and shall be punished accordingly.

(e) In all cases where the same offense is made punishable or is created by different clauses or sections of this Code, the City Attorney may elect under which to proceed; but not more than one recovery shall be had against the same person for the same offense.

(f) The City Attorney has discretion to institute the appropriate civil action to ensure compliance with the Fresno Municipal Code, including an action for a temporary restraining order, a preliminary or permanent injunction, a receivership, or an action to recover any damages incurred as a result of any Code violation.

The City Attorney may pursue the remedy of a receivership when the property is a parcel within the City of Fresno; the property has extensive and continuing violations of the Fresno Municipal Code, California Fire Code, California Building Code, California Health and Safety Code or extensive ongoing criminal activity; and the property's record owner has shown an unwillingness or inability to correct the violations.
(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2002-51, § 10, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2015-40, § 1, eff. 1-21-16).

SEC. 1-305. CRIMINAL CITATIONS.

(a) The provisions of Part 2, Title 3, Chapter 5c of the Penal Code, as amended, shall govern the procedures required for criminal enforcement of the Fresno Municipal Code.

(b) Criminal Citation Officer. When in this Code, or in any other ordinance of the city, an officer or employee of the city is empowered to enforce, or charged with the duty of enforcing, any particular provision or provisions of this Code or of any other ordinance of the city, the violation of which provision or provisions would constitute a misdemeanor or infraction, the officer or employee so empowered, or so charged with such duty, shall have the authority to arrest without warrant and to issue criminal citations as set forth in this section for the purpose of enforcing this Code. Such public officer or employee shall be deemed a criminal citation officer and shall have all the powers and protection, as conferred pursuant to California Penal Code § 836.5.

(c) Training Requirements. Before a criminal citation officer may exercise criminal citation authority pursuant to this section, that officer or employee must complete an enforcement training program established at the discretion of the Chief of the Fresno Police Department. The training program shall be designed to instruct officers and employees regarding:

(1) The provisions of this Code to be enforced;

(2) The evidentiary prerequisites to proper prosecution for violations thereof;

(3) The procedural requirements of citations, including completion of the forms, processing and amendment of citation forms; and

(4) The limitations attendant thereto.

(d) Criminal Citation Authority. In addition to the Police Chief and peace officers employed by the Police Department, upon completion of the training prescribed by subsection (c), the following officers and employees have the authority to issue criminal citations, both misdemeanor and infractions: City Manager, Director of Administrative Services, Director of Housing and Neighborhood Revitalization, Planning and Development Director, Director of Public Utilities, Public Works Director, City Attorney, and Fire Chief. This authority relates only to Fresno Municipal Code criminal citations.

(e) Delegation. An officer or employee designated in subsection (c) has the authority to appoint employees to assist in the enforcement responsibilities. Such employees shall likewise have the authority to issue criminal citations following the written confirmation by the City Manager of the appointment of such employees by the officers designated in subsection (b) and completion of the training required by subsection (c).

(f) Notice to Appear. Citation officers vested with criminal citation authority pursuant to this section, may, pursuant to Sections 836.5, 853.5 and 853.6 of the California Penal Code, issue a citation in the form of a NOTICE TO APPEAR to a person where any such citation officer has probable cause to believe that the person to be issued the citation has violated a provision of this Code in the citation officer's presence, which the citation officer had the discretionary duty to enforce, and therefore, has committed a misdemeanor or infraction.

(g) Release on Written Promise to Appear. A criminal citation officer exercising the authority pursuant to this section may release the person to be issued a citation on his or her written promise to appear in court. The citation officer shall under no circumstances take the person to be issued a citation into custody.

(h) Refusal to Sign. In the event that the person to be issued a citation refuses to provide his or her written promise to appear in court, a citation officer may summon a Fresno Police Department peace officer and request that such peace officer take the person into custody. If the person demands to be taken before a magistrate, the citation officer may summon a Fresno City Police officer and request that such peace officer take the person into custody, or seek assistance of the City Attorney and request that a complaint be prepared and filed against that person.

(i) Filing and Maintenance of Files. Criminal citation officers having a duty to enforce the provisions of this Code, and who exercise the authority to issue a citation pursuant to this section, shall maintain a file of executed citations and such citations shall be forwarded to the City Attorney's office for issuance of a complaint and filing with the appropriate magistrate.

(j) Additional Authority. Nothing in this section shall be considered to limit any authority otherwise vested in the named officers and employees, provided elsewhere in this Code, or by State law.
(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2019-019, § 2, eff. 9-19-19).

SEC. 1-306. FAILURE TO APPEAR AS MISDEMEANOR.

Any person willfully violating his or her written promise to appear in court is guilty of a misdemeanor regardless of the disposition of the charge upon which the person was originally arrested.
(Added Ord. 98-63, § 2, eff. 10-1-98; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-307. POLICE CHIEF POWERS.

The Police Chief and all peace officers employed by the Police Department are hereby empowered to enforce, and are charged with the duty of enforcing, any and all provisions of this Code or of any other ordinance of the city, including the power to arrest for such violations in accordance with the laws of the State of California, together with such other powers as are conferred upon them by the city. The Police Chief may authorize employees of the Police Department, excepting employees whose duties do not fall within the scope of law enforcement services, to enforce any and all provisions of the statutes of the State of California, of this Code, or of any other ordinance of the city where the violation of such provision or provisions would constitute an infraction, including the power to cite for such violations in accordance with the laws of the State of California. The Chief of Police may also authorize said employees to regulate traffic at the scenes of accidents or disasters or at such locations as may require traffic direction for orderly traffic flow, and to remove vehicles from highways, public property, and private property, when authorized by state law or local ordinance.
(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-308. ADMINISTRATIVE CITATIONS AND PENALTIES.

The Council finds that there is a need for an alternative method of enforcement of violations of the Municipal Code. The Council further finds and declares that an appropriate method for enforcement for violations of the Code is the following administrative citation and civil penalty program.

(a) **Administrative Citation.** Any person violating any provision of the Code may be issued an administrative citation by an enforcement officer as provided in this article. A separate civil penalty for each violation of the Code may be assessed by means of one administrative citation. Violations deemed a threat to health and safety as defined in this Code or pursuant to Health and Safety Code Section 17920.3 shall be penalized as set forth in the Master Fee Schedule.

(b) **Contents.** Upon discovering or observing any violation of the Municipal Code, an enforcement officer may issue an administrative citation, in a form approved by the City Attorney, to a violator or property owner, with the following contents:

(1) Date and location of the violation(s), including the street address, if any, and the approximate time the violation(s) were observed;

(2) Section(s) of the Code violated and brief description of how the section(s) are violated; if the citation is for a violation of the Management of Real Property Ordinance set forth in Chapter 10, Article 7, the citation shall include a statement specifying the behaviors which constitute the nuisance.

(3) Description of the action required to correct the violation(s), if applicable; and if applicable, the date by which the violation must be corrected.

(4) Statement explaining the consequences of failure to correct the violation(s);

(5) Amount of penalty imposed for the violation(s);

(6) Explanation of how the penalty shall be paid and the time period by which it shall be paid, and the consequences of failure to pay the penalty;

(7) Right to contest the contents of the administrative citation and right of appeal, including the name and address of the City Manager for purposes of filing any notice of appeal; and

(8) Signature of the enforcement officer.

(c) **Issuance.** The enforcement officer shall attempt to issue the citation to the responsible party for any violation of this Code. For purposes of issuance of a citation to a business, the citation may be issued to the person in immediate control of the business on site at the time of the issuance of the administrative citation and penalty. The citation officer may, but is not required, to obtain the signature of the person upon whom the citation was issued. The lack of signature shall in no way affect the validity of the citation and subsequent proceedings.

(d) **Issuance When Unable to Locate Violator.** If the enforcement officer is unable to locate the violator(s) then the administrative citation shall be mailed to the responsible party and property owner, if different than the violator. Administrative citations issued for violations of the provisions in Chapter 10, Article 3 of the Municipal Code (Animal Shelter) shall be mailed to the violator(s) or property owners(s) by first class mail with proof of service. Proof of service shall be documented at the time of service by a declaration under penalty of perjury executed by the person effecting service, declaring the time and manner in which the service was made. All other administrative citations shall be mailed to the violator(s) or property owners(s) by certified and first class mail. The failure of any person with an interest in the property to receive such notice shall not affect the validity of any proceedings taken under this chapter. Notice by the methods described above shall become effective on the date of mailing.

(e) **Imposition of Penalty.** An administrative citation issued for a violation of a building, plumbing, electrical, or other structural or zoning regulation, that does not create an immediate danger to public health or safety, may be issued to the responsible party, and the citation shall state the date by which the violation must be corrected, which shall be a reasonable period of time, given the circumstances; 18 calendar days shall be a default time to correct, unless the circumstances indicate a shorter or greater time is appropriate. It shall be the responsibility of the person receiving the citation to correct the violation and provide proof to the city that it has been corrected, as set forth in the citation, or call for an inspection, as set forth in the citation, to verify the correction was made on or before the date specified on the citation. If the correction was fully and timely made, then the citation, or that part of the citation, shall be dismissed. If the correction was not fully and timely made, then the citation shall continue and penalties shall be deemed final, and failure to correct shall be deemed a continuing violation until the specified violations are verified as corrected by the city, with further penalties incurred as set forth in this Code. An administrative citation issued for a violation of a state law or this code that is a nuisance, for example, parking a vehicle on an unimproved surface, not otherwise a violation of a building, plumbing, electrical, or other structural or zoning regulation, may be issued to the responsible party immediately, and each successive day the violation continues shall constitute a separate violation with further penalties incurred as set forth in this Code.

(f) **Appeal.** Any person issued an administrative citation may contest the contents of the administrative citation by filing an appeal under the City's Administrative Ordinance set forth in Article 4. If no appeal is filed within the time prescribed, the penalty shall be final and immediately payable.

(g) **Penalty.** Except as otherwise set forth in this Code, the Master Fee Schedule shall establish the base schedule for the amount of the civil penalty assessed for code violations, which may vary by types and numbers of violations.

(h) **Failure to Correct.** If the violator or property owner fails to correct the violation, subsequent administrative citations and penalties may be issued for the same violation(s) or the city may institute any other applicable action permissible under this Code to gain compliance. The amount of the penalty for each subsequent violation of the same Code provision shall increase at a rate specified in this Code.

(i) **Payment of Fine Without Correction of Violation.** Payment of any penalty shall not excuse the failure to correct the violation nor shall it bar further enforcement action by the city. The failure of any person to pay any penalty assessed by administrative citation within the time specified on the administrative citation shall result in the assessment of an additional late fee to be charged. The amount of the late fee shall be ten percent of the total amount of the civil penalty due and owing.

(j) **Collection of Penalty.** The city shall collect delinquent and late fees under the provisions of the Cost and Penalty Recovery Ordinance in Chapter 1, Article 5 of the Code.

(k) **Authority to Issue Administrative Citation.** The following officers and employees have the authority to issue administrative citations and civil penalties: City Manager, City Attorney, Planning and Development Director, Director of Public Utilities, Public Works Director, Police Chief and Fire Chief, and Director of Parks and Recreation and any other person delegated such authority by any of the above.

(l) **Payment of Penalty and Use of Proceeds.** Except as otherwise provided, all civil penalties assessed shall be payable to the city.

(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2002-51, § 11, eff. 10-31-02; Am. Ord. 2003-20, § 2, eff. 4-1-03; Am. Ord. 2005-14, §§ 19, 20, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2010-50, § 1, eff. 1-16-11; Am. Ord. 2016-38, § 1, eff. 10-20-16; Am. Ord. 2018-46, § 1, eff. 9-17-18; Am. Ord. 2019-035, § 1, eff. 11-11-19).

SEC. 1-309. ISSUANCE OF PERMITS; VIOLATIONS OF LAW.

When in this Code, or in any other ordinance of the city, an officer or employee of the city is empowered and has the duty to issue a regulatory permit, and the officer or employee has reason to believe that the applicant is engaged in, or has on his premises a violation of law, ordinance, or city regulation, and exercise of the permit will propagate, encourage, or perpetuate the violation, then the officer or employee, with the approval of the City Attorney, may refuse to issue the permit until such time that it is established that the violation has been abated or does not exist, provided that the officer or employee may, with the permission of the City Attorney, issue the permit upon conditions reasonably calculated to eliminate the violation and in such case the permit may be revoked upon failure to perform or conform to the condition.

(Added Ord. 98-63, § 2, eff. 10-1-98; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-310. ADJUDICATORY DECISIONS.

Except as otherwise provided in Section 1002 of the Charter, the provisions of Section 1094.6 of the California Code of Civil Procedure shall be applicable to all adjudicatory decisions of the Council, any board or commission established pursuant to the Charter or this Code, and any hearing officer pursuant to the Administrative Hearing Ordinance in Chapter 1, Article 4.

(Added Ord. 98-63, § 2, eff. 10-1-98; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 4 GENERAL ADMINISTRATIVE HEARING PROCEDURE

Sec. 1-401. Title.
Sec. 1-402. Findings.
Sec. 1-403. Applicability.
Sec. 1-404. Rules and Regulations.
Sec. 1-405. Hearing Officer.
Sec. 1-406. Service of Process.
Sec. 1-407. Filing a Notice of Appeal.
Sec. 1-408. Conduct of Hearing.
Sec. 1-409. Hearing Officer Authority.
Sec. 1-410. Decision.
Sec. 1-411. Enforcement of Hearing Officer Decisions.
Sec. 1-412. Records and Hearing Room.

SEC. 1-401. TITLE.

This article shall be known as the "City of Fresno Administrative Hearing Procedure Ordinance" or "Administrative Hearing Ordinance."
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-402. FINDINGS.

(a) The Council finds that there is a need to establish uniform procedures for administrative hearings conducted pursuant to the code.

(b) It is the purpose and intent of the Council to ensure that the administrative hearing procedures afford due process of law as required under federal and state law.

(c) Due process of law includes adequate notice, an opportunity to be heard by an impartial fact-finder, and an adequate explanation of the reasons justifying the administrative action.

(d) The Council finds that it is important to establish procedures which efficiently, expeditiously and fairly resolve issues raised in administrative, regulatory or enforcement actions.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-403. APPLICABILITY.

Except where specifically provided otherwise in this Code, this article shall provide the procedures, rules and standards for all administrative hearings provided under this Code or administrative hearings provided under rules or regulations promulgated pursuant to this Code.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-404. RULES AND REGULATIONS.

The City Manager may adopt written rules, regulations, policies and procedures that are consistent with the intent or provisions of this article, as may be necessary or desirable to aid in the administration or enforcement of the provisions of this Code.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-405. HEARING OFFICER.

The City Manager shall appoint persons to serve as hearing officers under the following rules:

(a) Permanent Hearing Officer. The City Manager may appoint a person or persons to serve as permanent hearing officers with compensation on a flat rate or hourly basis. The compensation for the hearing officer shall not exceed $100,000 per year or $10,000 per month, including reimbursement for costs, without a majority vote approval of the Council. Permanent hearing officers shall be hired for a one year contract with an annual option to renew, subject to thirty (30) days' notice prior to the termination of the contract. The hearing officer may not be terminated without cause and the basis of termination shall not be related to the outcomes of hearings. A permanent hearing officer may be appointed to hear all types of administrative hearings or may be appointed to hear a select category of hearings or a select number of hearings.

(b) Temporary Hearing Officer. The City Manager may appoint a person or persons to serve as temporary hearing officer on an as needed basis for those hearings in which the city does not have a permanent hearing officer or where the permanent hearing officer(s) is/are unable to serve because of the existence of a personal conflict or for practical reasons or where the Code otherwise requires appointment of a person to hear a particular class of hearings. The City Attorney's Office shall monitor the time allocated each month by the hearing officer and any time the hours exceed sixty-four (64) hours per month the City Attorney's Office shall notify the City Manager of a need for temporary hearing officers. The City Manager shall retain at least two temporary hearing officers to serve on an as needed basis, when the permanent hearing officer is incurring in excess of sixty-four (64) hours per month in preparation for and conduct of appeal hearings. Temporary hearing officers may, by contract, be assigned particular types of matters. The following persons may serve as temporary hearing officers:

(1) Any person willing to serve without compensation or valuable consideration or promise of future compensation or valuable consideration;

(2) Any person serving for compensation shall be compensated on a flat rate or hourly basis;

(3) A person serving for compensation who has previously served as a temporary hearing officer within the past year may serve as a temporary hearing officer upon written consent of the appellant or the person whose property or interest

is the subject of the hearing after disclosure by the city of the person's prior service for the city, including, if requested, disclosure of the final determination of any prior decision(s) by the hearing officer;

(4) A person serving for compensation who has served as a temporary hearing officer within a year may serve without the written consent of the appellant where the person is randomly selected from a list or panel of at least four persons who have all agreed to serve as temporary hearing officers under such a random selection process;

(5) A salaried city staff member who regularly supervises at least ten people and who does not, and has not within the previous twelve months, directly supervised the division or unit of the staff member responsible for representing the city in the appeal and who has not participated in the order, citation, decision or determination being appealed may serve as a temporary hearing officer; or

(6) A State Administrative Law Judge under a contract with the Office of Administrative Hearings or an arbitrator employed by a private independent arbitration service, such as JAMS or the American Arbitration Association.

(c) Multiple Hearing Officers. Where more than one hearing officer, whether temporary or permanent, is available to hear the same administrative hearing, selection of the hearing officer shall be determined either by the terms of the hearing officer's contract or by random process.

(d) The City Attorney's Office through Contract Compliance shall provide oversight, as needed, to ensure decisions made by the hearing officer are in compliance with the appropriate municipal code and Master Fee Schedule fines. Contract Compliance shall compile quarterly or as needed statistical reports summarizing case types, dispositions, and fines assessed.

(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2014-36, § 1, eff. 10-3-14; Am. Ord. 2015-32, § 1, eff. 11-19-15).

SEC. 1-406. SERVICE OF PROCESS.

Service of any notice, hearing packet, or order under this article shall be by personal service or first class mail. The date of service shall be considered the date the notice, hearing packet or order was personally served or three days after the date of mailing. (Added Ord. 2005-14, § 49, eff. 4-9-05).

(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-407. FILING A NOTICE OF APPEAL.

(a) Standing. Only a person who has a legal existing interest in the property, right or entitlement subject to the city order, citation, decision or determination sought to be appealed from has standing and a right to appeal under this article. A notice of appeal that fails to allege standing may be rejected as defective.

(b) Notice of Appeal. A notice of appeal shall be filed in writing in duplicate with the hearing officer within fifteen calendar days after the service of the order, citation, decision, or determination appealed from. The appeal shall be addressed to the hearing officer and shall contain the following:

(1) The name, address, and telephone numbers of the appellant;

(2) A statement describing the appellant's legal existing interest in the property, right or entitlement subject to the city order, citation, decision or determination sought to be appealed from;

(3) A brief description of the specific order, citation, decision, or determination being appealed;

(4) A statement of the relief sought;

(5) The reasons why such relief should be granted;

(6) A statement of the Appellant, "under penalty of perjury," that the facts stated in the appeal are true of the appellant's own knowledge, except as to matters which are not within the appellant's knowledge and are not of public record, and as to those matters that the appellant believes the facts stated to be true.

(c) Late Appeals. Upon a showing of good cause, the hearing officer may, in his or her discretion, permit the filing of an appeal, or an amended appeal, after fifteen calendar days, in which case the appeal shall be considered in the same manner as if it had been timely filed.

(d) Defective Notice of Appeals. If, in the opinion of the hearing officer, the appeal or an amended appeal fails to comply substantially with the requirements of this section, the hearing officer may give written notice of such insufficiency to the appellant at any time within fifteen calendar days after the appeal is presented, stating with particularity the defects or omissions therein. Failure of the appellant to file an amended appeal within fifteen calendar days of the date of service of such notice of insufficiency shall constitute a waiver of the appeal. Failure of the hearing officer to give notice of any insufficiency within fifteen calendar days shall result in the appeal being heard on its merits, without regard to any insufficiency.

(e) Notice of Hearing. Upon receipt of an appeal, or if notice of insufficiency is given in accordance with this section, upon receipt of an amended appeal within the time specified, the hearing officer shall cause one copy to be stamped indicating the date of receipt thereof, and shall immediately forward the other copy to the officer or employee whose order, citation, decision, or determination is being appealed. The hearing officer shall set the appeal for hearing and shall give to the appellant and to the officer or employee whose order, citation, decision, or determination is being appealed not less than fifteen calendar days written notice of the date, time, and place of hearing. The hearing officer shall schedule each appeal hearing for a specific date and time. No appeal hearing shall be scheduled at the same time as any other hearing. Each party shall provide the hearing officer with a reasonable time

estimate of how long it will take to present its case. Each hearing shall be timed and must be completed within the allotted amount of time, which is reasonably based on the parties' estimated time requirements. The appellant, or his/her authorized representative, may waive the fifteen calendar days written notice, so long as said waiver is in writing and received by the hearing officer. The notice of the hearing to the appellant shall include a statement as to the appellants' rights as provided in subsection 1-408(c).

(f) Hearing Packet. Upon receipt of the copy of the notice of appeal from the hearing officer, the employee or officer who issued the order, citation, decision or determination shall prepare a hearing packet that forms the basis of the citation, order, decision or determination. The hearing packet shall be served either within seven calendar days (if service is by mail) or five calendar days (if personally served on the appellant) of the date set for the hearing.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2014-36, § 2, eff. 10-3-14; Am. Ord. 2022-014, § 1, eff. 7-22-22).

SEC. 1-408. CONDUCT OF HEARING.

(a) Continuance. Upon good cause shown, the hearing officer may continue the hearing by written notice before the scheduled hearing or orally at or during the hearing. Failure of the parties to exchange documents in advance of the hearing does not constitute good cause, and is not a basis for a continuance.

(b) Hearing. At the hearing, the officer or employee who issued the order, citation, decision, or determination or his or her designee shall present evidence in support of the findings or reasons upon which the order, citation, decision, or determination, was based. The appellant, or any individual authorized in writing to represent the appellant, may then present evidence in support of the contentions made in the notice of appeal. The hearing shall be informally conducted. The hearing officer shall call each hearing and conduct the hearing in an orderly manner. The hearing officer shall maintain control over the order of evidence and order of witnesses called. The hearing officer shall maintain processes and procedures to facilitate an efficient and effective handling of multiple hearings.

(c) Rights of Parties. The parties and anyone who participates in a hearing may be represented by an attorney or other person of the parties' choice. The parties have a right to appear, testify, present evidence, examine and cross-examine witnesses, and present written or oral arguments. Additionally, the parties may request and the hearing officer may allow the parties to submit written briefs, either before, during or after the hearing.

(d) Evidence. All administrative hearings shall be governed by the following rules of evidence:

(1) Oral evidence shall be taken only on oath or affirmation which shall be administered by the hearing officer. Only credible testimony shall be considered by the hearing officer.

(2) Each party may call and examine witnesses, introduce exhibits, and cross-examine and impeach any witness on any matter relevant to the issues. If the appellant does not testify in his/her own behalf, the appellant may be called and examined as if under cross-examination.

(3) Such hearing need not be conducted according to the technical rules of law relating to evidence and witnesses. Any relevant evidence may be admitted if it is the type of evidence on which responsible persons are accustomed to rely on in the conduct of serious affairs, regardless of the existence of any common law rule or statute which might make improper the admission of such evidence over objection in civil actions. Hearsay evidence may be used for the purpose of supplementing or explaining any direct evidence but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.

(4) Copies of the reports and records of any governmental agency, division, or bureau will be accepted as evidence in lieu of the original thereof.

(e) Scope. The scope of the hearing shall be limited to the order, citation, decision, or determination being appealed, the grounds for relief raised in the notice of appeal and any specific requirements of this Code. The hearing officer may expand the scope of the hearing on a finding that it is necessary to ensure a fair process.

(f) Burden of Proof; Burden of Evidence. Except where otherwise provided in this Code, the burden of proof and production of evidence shall be with the city. Except where otherwise provided in the Code, the burden of proof shall be preponderance of the evidence.

(g) Open to the Public. All hearings shall be open to the public. Any interested person shall have the right to speak at the hearing subject to the hearing officer's right to exclude irrelevant and unduly repetitious evidence. Notwithstanding the above, the parties have the right to petition the hearing officer and the hearing officer may in his or her discretion accept submission of evidence outside the presence of the public, if such evidence would not be disclosable under the Public Records Act, California Gov't Code §§ 6250, et seq.

(h) Waiver of Rights. The failure of the appellant or any interested party to raise an objection to the hearing officer either before or during the hearing of any defect in notice or procedure provided under the Code or at law or in equity shall be deemed a waiver of the defect. For purposes of a waiver of objection in this subsection, defect in procedure shall include a claim that the hearing officer is biased when facts regarding the claimed bias are known or readily discoverable by the appellant or interested party or have been published to the appellant or interested party by the city. An objection of bias of the hearing officer shall be raised to the City Manager.

(i) Failure of Appellant to Appear. Unless otherwise provided in the Code, if the appellant fails to appear for the hearing at the time and place noticed, the hearing officer in his or her discretion may conduct the hearing to a conclusion or may dismiss the appeal. If the appeal is dismissed, the order, citation, decision, determination appealed from shall become final

and effective on the date of the hearing. Upon a showing of good cause, the hearing officer may set aside his or her decision or dismissal upon the appellant's failure to appear and may reschedule the appeal for hearing.

(j) Recording. Code Enforcement appeal hearings shall be digitally sound recorded and made available for inspection and copying in the City Clerk's Office or on the City Clerk's website. Additionally, the proceedings may also be recorded by a certified shorthand reporter. If an appellant requests a certified shorthand reporter the costs of the reporter shall be borne by the appellant.

(k) Ex parte communication. Other than at the hearing, there shall be no direct oral communication between the parties and the hearing officer on any matter related to the hearing without both parties being present. Any written communication to the hearing officer by a party shall be copied and served to the other party.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2014-36, § 3, eff. 10-3-14; Am. Ord. 2015-32, § 2, eff. 11-19-15).

SEC. 1-409. HEARING OFFICER AUTHORITY.

(a) Order of Attendance or Production. At the request of either the city or the appellant, the hearing officer or the City Clerk shall, on behalf of the city, issue orders for attendance of witnesses at the hearing, or production of documents on a date certain. In no event shall the date for the production of documents be less than ten days after the date the order was issued. Failure by a party to comply with an order of attendance or production may be considered a violation of this Code and, at the petition of a party, the hearing officer may impose a civil fine of up to one hundred dollars ($100) at the time of the hearing and may take such failure into consideration in making his or her determination of the hearing.

(b) Subpoenas. At the request of either the city or the appellant, the hearing officer or the City Clerk shall, on behalf of the city, issue subpoenas for attendance of witnesses at the hearing or production of documents on a date certain. In no event shall the date for production of documents be less than ten days from the date the subpoena was issued. Disobedience of such subpoena or the refusal to testify, upon other than constitutional grounds, shall constitute a misdemeanor.

(c) Inspection of Premises. The hearing officer may inspect the premises involved in the hearing at any time prior to a decision, to investigate or confirm the existence of the violation(s) or conditions which are on appeal, provided that:

(1) Consent is granted by a person with the lawful right to grant consent or an inspection warrant is obtained;

(2) Reasonable notice of such inspection is given to the owner before the inspection is made;

(3) The parties are given an opportunity to be present during the inspection;

(4) The hearing officer shall place in the record the material facts and the conclusions drawn from the inspection either orally at the time of the hearing or in writing after the hearing; and

(5) Each party then shall have a right to rebut or explain the matters so stated by the hearing officer for the record either at the hearing or by filing a written statement within ten calendar days after the hearing.

(d) Oaths. The hearing officer shall have the power to administer oaths and affirmations.

(e) Procedures. The hearing officer shall have the authority to establish procedures before or during a hearing consistent with this article and the Code for purposes of efficiency and order.

(f) Review Authority. The hearing officer shall sit as the trier of fact and shall rule on questions of law and admissibility of evidence. The hearing officer may affirm, reverse, modify, or set aside the order, citation, decision, or determination appealed from or may delete or impose conditions as the facts and law warrant. The hearing officer may not increase a penalty or impose a harsher remedy beyond the penalty or remedy imposed under the order, citation, decision, or determination being appealed.

If the hearing officer finds any nuisance or legal violation set forth in the citation or notice and order is continuing and remains as of the time of the hearing, the hearing officer shall order the record owner and or occupants to repair or otherwise remedy the illegal condition within thirty days from the date of the order. The hearing officer shall set a hearing to occur between thirty and sixty days after the date of the order to confirm whether the record owner and or occupants have made all repairs or remedied all illegal conditions as ordered. If the owner and or occupants show at the subsequent hearing they have made substantial progress, but have not been able to complete repairs or remedy all illegal conditions for reasons beyond their control, the hearing shall be continued to a later date to allow sufficient time to complete repairs or remedy all illegal conditions as ordered. If it is shown at a subsequent hearing the record owner and or occupants have failed to fully repair or otherwise remedy the illegal conditions, the hearing officer shall order payment of double the maximum fines permitted in this code, as well as all allowable costs and fees. Additionally, the willful failure of the owner and or occupants to timely comply with the hearing officer's order shall be deemed a criminal violation and may be prosecuted as a misdemeanor in superior court, subject to fines and or imprisonment as set forth in Section 1502 of the Charter.

(g) Limitations. The hearing officer shall not have authority to waive any requirements of the Code or law. The hearing officer is required to adhere to any citation amount set in the Code or Master Fee Schedule and may not increase or decrease the amount imposed on the parties, except in cases where the citation amount is more than $100,000. In those cases alone, the Hearing Officer shall have authority to reduce the citation amount to a reasonable

amount not below $100,000 if, after a thorough legal analysis, the Hearing Officer finds the original citation amount is constitutionally excessive. The parties themselves maintain the discretion to reduce citation amounts in order to independently settle the dispute.

(h) Record keeper. The city shall maintain the administrative record of the hearing and make it available upon request by either party. The record shall be maintained for two years from the date the case is closed and no further appeals are available under the Code or at law.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2014-36, § 4, eff. 10-3-14; Am. Ord. 2016-11, § 1, eff. 4-21-16; Am. Ord. 2024-034, § 1, eff. 11-2-24).

SEC. 1-410. DECISION.

(a) Decision. Unless otherwise agreed by the parties, within twenty-one days of the conclusion of the hearing, after the hearing officer has considered all evidence presented and the relevant standard of review, the hearing officer shall issue his or her decision of the appeal in writing. The decision shall include a statement of the issues, findings of fact, a summary of the relevant evidence, a resolution of the credibility of witnesses where there is conflicting testimony and the final determination and order. Alternatively, the decision may be issued orally at the conclusion of the hearing, so long as it is accompanied by a written decision within seven days of the hearing.

(b) Notice of Code of Civil Procedure Section 1094.6. The written decision shall include a notice that the parties have ninety days to pursue a petition for a writ of administrative mandamus of the decision under Code of Civil Procedure Section 1094.6.

(c) Effective. Unless otherwise provided in the Code or the hearing officer's decision, the decision shall be effective upon issuance, whether at the hearing or upon serving notice of the written decision pursuant to Section 1-213.

(d) Finality. Unless otherwise provided in the Code or the hearing officer's decision, the hearing officer's decision shall be a final agency action for purposes of writ review.

(e) Continuing Jurisdiction to Enforce Decisions. The hearing officer may maintain continuing jurisdiction to enforce a decision and impose additional conditions or penalties as provided in Section 1-411 or to take action upon direction of a court of law.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-411. ENFORCEMENT OF HEARING OFFICER DECISIONS.

Upon finding a violation of an order, the hearing officer may modify the decision or order in his or her discretion or impose a sanction of up to one-thousand dollars ($1,000.00) per violation. Any sanction imposed by the hearing officer under this section is collectable under the Cost and Penalty Recovery Ordinance (Chapter 1, Article 5) as a penalty. Alternatively, upon city staff or the hearing officer finding a violation of a hearing officer's order, the City Attorney may seek a modified decision from the hearing officer, pursue a civil action to

enforce the order, or prosecute a criminal action under Chapter 1, Article 4. Any decision modified as provided herein shall be treated as a new final decision for purposes of the requirements of Section 1-410.
(Added Ord. 2005-14, § 49, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SECTION 1-412. RECORDS AND HEARING ROOM.

(a) The City Clerk shall be responsible for maintaining all records of code enforcement appeals. Records shall be maintained in a manner such that a member of the public may inspect and copy records, except for such time when the records shall be in the possession of a hearing officer as necessary to prepare for, hear, and decide appeals.

(b) The city clerk shall be responsible for maintaining the "docket" or schedule for all code enforcement appeal hearings. The docket shall be made available for inspection and made available for public viewing on the City Clerk's website.

(c) The City Manager shall designate an adequate and suitable meeting room in City Hall for code enforcement appeals. Thereafter, in the designated meeting room code enforcement appeals shall take priority for scheduling over all other matters upon a minimum of seven (7) days' notice.
(Added Ord. 2015-32, § 3, eff. 11-19-15).

ARTICLE 5 COST AND PENALTY RECOVERY

Sec. 1-501. Title.
Sec. 1-502. Findings and Purpose.
Sec. 1-503. Definitions.
Sec. 1-504. Recovering Abatement and Enforcement Costs and Penalties.
Sec. 1-505. Invoice of Costs.
Sec. 1-506. Public Hearing to Confirm Costs.
Sec. 1-507. Recovery of Penalties.
Sec. 1-508. Recovery of Enforcement Costs.
Sec. 1-509. Recovery of Abatement Costs.
Sec. 1-510. Personal Obligation.
Sec. 1-511. Lien.
Sec. 1-512. Special Assessment.
Sec. 1-513. Recovery of Graffiti Abatement Costs.
Sec. 1-514. Subsequent Civil or Criminal Judgment.
Sec. 1-515. Repair and Demolition Fund.
Sec. 1-516. Blighted Building Fund.

SECTION 1-501. TITLE.

This article shall be known as the "Cost and Penalty Recovery Ordinance."
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-502. FINDINGS AND PURPOSE.

The Council finds that substantial public resources are spent each year to enforce the Code and State laws enacted to protect the public health, safety and welfare. The Council finds that the responsibility of these costs should be properly placed on those persons responsible for violating the Code or State laws and or causing public nuisances. The Council further finds that the recovery of costs incurred by the city to enforce these laws and to collect penalties issued to those persons causing public nuisances and or violating these laws is important in deterring future violations and maintaining the integrity of the city's code enforcement system. The purpose of this article is to provide a means for the City of Fresno under its charter city authority and other State law authority to recover these costs and penalties from those persons responsible for creating, causing, committing or maintaining a public nuisance or Code or State law violation.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2003-66, § 1, eff. 8-23-03; Am. Ord. 2005-14, §§ 2—5, 50, 51, eff. 4-9-05; Am. Ord. 2005-22, § 4, eff. 4-16-05; Am. Ord. 2005-101, § 3, eff. 10-29-05; Am. Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-503. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article.

(a) "Abatement Costs" means all actual and reasonable costs incurred by the city to abate a public nuisance. These costs shall include all direct and indirect costs to the city that

result from the total abatement action, including, but not limited to, investigation costs, costs to enforce the Code or State law, clerical and administrative costs to process paperwork, costs incurred to provide notices and prepare for and conduct administrative hearings, and costs to conduct actual abatement of the nuisance. Examples of abatement costs include, but are not limited to, staff costs to prepare and issue a notice of violation or a citation, fire suppression costs, costs to prepare a hearing packet, administrative overhead costs, costs for equipment, such as cameras and vehicles, staff time to hire a contractor to remove trash or board up an abandoned building. These costs shall include reasonable attorneys' fees incurred by City. At any administrative hearing, judicial action or special proceeding to recover attorneys' fees, the prevailing party shall be awarded attorneys' fees not to exceed the amount of reasonable attorneys' fees incurred in the action, hearing or proceeding. Abatement costs may be established in the Master Fee Resolution.

(b) "Bona Fide Encumbrancer" means a person who (i) receives a lien or encumbrance on the subject property after the city incurs abatement costs or enforcement costs and (ii) at the time he or she acquired the interest did not have actual or constructive knowledge of the city's interest in the property.

(c) "Bona Fide Purchaser" means a person who (i) purchases any portion of the subject property after the city incurs abatement costs or enforcement costs and (ii) at the time he or she acquired his or her portion of the subject property did not have actual or constructive knowledge of the city's interest in the property.

(d) "Disturbance" shall include conduct in violation of Fresno Municipal Code sections 8-305, 8-306, and 8-503, as amended.

(e) "Enforcement Costs" means all actual and reasonable costs incurred by the city to enforce compliance with any State or city public health and safety law that does not involve the existence of a public nuisance. These costs include, but are not limited to, actual cost of the enforcing department's services including, but not limited to, costs of personnel, including costs of workers compensation benefits, fringe benefits, administrative overhead, costs of equipment, costs of materials, costs related to investigations pursuant to the Code or State law, costs related to issuing and defending administrative citations, and costs incurred investigating and abating violations of the Code or State law violations.

(f) "Enforcing Department" means the department or division of the city that directed and is responsible for the enforcement of the Code or State law or the abatement of a public nuisance or violation of the Code or State law.

(g) "Noticed Party" means the person or entity that is required to be noticed in the underlying abatement or enforcement action in which costs were incurred, but in all cases must include the record owner(s) of the property. A "Noticed Party" must be notified for purposes of cost or penalty recovery in the same manner as they were

required to be noticed, either by Code or State law, in the abatement or enforcement action which resulted in the incurring of costs or penalties sought to be recovered under this article, and shall include notification by certified mail.

(h) "Penalties" means fines imposed by administrative citations issued under authority of the Code. "Penalties" for purposes of this article do not include criminal fines.

(i) "Public Nuisance" means a public nuisance as declared or defined by any provision of the Code, including, but not limited to the Waste Collection and Disposal Ordinance of the City of Fresno (Chapter 9, Article 5), the Public Nuisance Abatement Ordinance (Chapter 10, Article 7), the Street Trees and Parkways Ordinance (Chapter 13, Article 3), the Land Use Planning and Zoning Ordinance (Chapter 12), the Sign Ordinance (Chapter 12), the Fresno Housing Regulations (Chapter 11, Article 3), the Dangerous Building Ordinance (Chapter 11, Article 4), the Management of Real Property Ordinance (Chapter 10, Article 8), and Disturbance as defined within this section.

(j) "Record Owner" shall mean the person to whom land is assessed as shown on the last equalized assessment roll or the supplemental roll, whichever is more current.

(k) "Responsible Party" means a person or entity identified by the Code or law as responsible for creating, causing, committing, or maintaining the violation of the Code or law and or responsible for the abatement of a Code or law violation, including public nuisance, as defined in this section.

(l) "Subject Property" means the real property that is the subject of any enforcement or abatement action by the city for which the city incurred costs sought to be recovered under this article.

(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2003-66, § 1, eff. 8-23-03; Am. Ord. 2005-14, §§ 2—5, 50, 51, eff. 4-9-05; Am. Ord. 2005-22, § 4, eff. 4-16-05; Am. Ord. 2005-101, § 3, eff. 10-29-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-504. RECOVERING ABATEMENT AND ENFORCEMENT COSTS AND PENALTIES.

The cost of abating a public nuisance and or enforcing the Code or State law shall either be a lien on the subject property, a special assessment against the subject property, or the personal obligation of the owner of the subject property and/or the person responsible for creating, causing, committing or maintaining the public nuisance or violating the Code or State law. Costs incurred by the city are recoverable even if a public nuisance or Code violation is corrected by the property owner or other responsible party. This article shall govern the procedures used to recover all abatement and enforcement costs incurred by the city in the abatement of a public nuisance or Code violation and/or the enforcement of the Code or law pursuant to the procedures and authority found in this Code. Additionally, this article shall govern the procedures used to recover administrative penalties imposed pursuant to the procedures and authority found in this Code. The above notwithstanding, the remedies provided in this article shall be cumulative to any other provided in this Code or by law.

Nothing in this article shall prevent the city at any time from accepting payment for unpaid costs or penalties in whole or by way of a payment plan, provided the rules on debts owing to the city are complied with as may be required in the Code.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2003-66, § 1, eff. 8-23-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-505. INVOICE OF COSTS.

(a) The enforcing department shall keep an itemized account of the abatement and or enforcement costs incurred by the city.

(b) The enforcing department may invoice the noticed party for the costs incurred by the city.

(c) The invoice shall notify the noticed party of the following:

(i) A description of the abatement or enforcement action taken by the city, a description of the property subject to the abatement or enforcement, and the total amount of the costs incurred by the city;

(ii) That should the noticed party fail to pay the costs within thirty days from the date of service of the invoice and the costs may be collected in any or all of the following ways: by a collection agency as a personal obligation, by the City Attorney's Office through judicial action, as a lien attached to the subject property, or as a special assessment on the subject property;

(iii) That before a lien or special assessment is placed on the subject property, an administrative hearing officer will confirm the costs by a public hearing. A notice will be issued at least fifteen days before the public hearing and he or she will be allowed to file an objection before the public hearing with the City Clerk.

(iv) That the invoice may be recorded as a Notice of Costs in the Fresno County Recorder's Office.

(d) Recording. The enforcing department may record the invoice as a Notice of Costs in the County Recorder's Office. The record owners or any other interested party may appeal the recording of the Notice of Costs to the City Hearing Officer at any time under the procedures found in Article 5 of Chapter 1. Once payment is received for the outstanding costs, or there has been a successful appeal to the City Hearing Officer, and no further action will be taken under this article, the enforcing department shall record a Notice of Satisfaction. The Notice of Satisfaction under this subsection shall be filed with a copy of the original invoice of costs and shall state that no further action by the city will be taken to collect the costs referred to in the invoice of costs.

(e) This section is inapplicable to the collection of unpaid administrative penalties.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-506. PUBLIC HEARING TO CONFIRM COSTS.

Before the city may collect costs or penalties under the procedures provided for liens or special assessments under this article, the costs or penalties must be confirmed by an administrative hearing officer in a public hearing under the procedures and requirements found in this section.

(a) Report. The enforcing department shall prepare and file a report with the City Clerk that includes a description of the abatement and or enforcement action taken by the city; a statement as to whether the monies to be collected are abatement costs, enforcement costs, or penalties; a statement as to whether the monies are to be collected as a lien or as a special assessment under this article; the itemized and total account of the costs or penalties; and a description of the subject property. Once the report is filed, the City Clerk shall deliver the report to the administrative hearing officer and set a date and time when the administrative hearing officer shall pass upon the report. Any such report may include costs or penalties on any number of properties, whether or not contiguous to each other.

(b) Notice. Notice of the public hearing shall be provided to all noticed parties by the enforcing department at least fifteen days before the hearing is scheduled. The Notice shall contain a description of the subject property sufficient to enable the person(s) served to identify it; shall state that the city intends to collect unpaid costs or penalties by placing a lien or a special assessment on the subject property; shall specify the day, hour and place where the administrative hearing officer will hear and pass upon the report and any objections or protests that have been submitted to the City Clerk; shall specify that the property may, in some cases, be sold after three years by the tax collector for unpaid delinquent assessments or be subject to judicial foreclosure before the three years; shall specify that if they intend to protest the amount of the costs they may file a written protest with the City Clerk at least twenty-four hours before the time set for the hearing on the report. Notice shall also be published by the City Clerk at least one time, at least fifteen days before the date set for the hearing, in a daily newspaper published and circulated in the city.

(c) Protests. Any interested person wanting to protest the amount of the costs must file a written protest with the City Clerk. The protest may be filed at any time up until twenty-four hours before the time set for the hearing on the report. Each such protest shall contain a description of the property as provided in the Notice of the Public Hearing. The City Clerk shall deliver the protests to the administrative hearing officer.

(d) Hearing. At the date and time fixed for the hearing to pass on the report and confirm the costs or penalties for a lien or special assessment by the administrative hearing officer, the administrative hearing officer shall consider the report of the enforcing department, together with any filed protests. The scope of review of the hearing shall be limited to the amount of the costs or penalties when there has already been an opportunity for a hearing for the underlying violation. The administrative hearing officer may make such revisions, corrections or modifications in the report as may be

just and reasonable, provided that the hearing officer may only reduce the city's actual costs upon a showing that the costs were unnecessary or unreasonable. The administrative hearing officer may adjourn the hearing from time to time. Upon the close of the hearing, the administrative hearing officer shall have confirmed the original, revised, corrected or modified report or have set the matter for an additional hearing. Any decision by the Hearing Officer on the report and protests shall be final.

(e) Administrative Hearing Officer. Public hearings under this section shall be conducted by an administrative hearing officer selected in accordance with the Administrative Hearing Ordinance in Chapter 1, Article 4.

(f) Prior Hearing. There is no right to a public hearing if the costs have already been confirmed by a court of competent jurisdiction. There is no right to a public hearing to confirm penalties under this section if they have been previously upheld in a hearing under Chapter 1, Article 4. In such a case, the Hearing Officer shall confirm the costs and or penalties for a lien or special assessment based upon adequate proof presented by city staff of the previous judgment and or hearing decision.

(g) Contest of Confirmed Special Assessment or Lien. The validity of any lien or special assessment levied under the provisions of this article shall not be contested in any action or proceeding unless such action or proceeding is commenced within thirty days after the lien or special assessment is confirmed by the administrative hearing officer in a final decision.

(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2005-14, § 21, eff. 4-9-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-507. RECOVERY OF PENALTIES.

Administrative penalties unpaid after thirty days from issuance of the citation or, if the citation is appealed, thirty days from the date a penalty is upheld under Section 1-406(f), may be collected using the procedures found in Sections 1-510, 1-511, and 1-512. To collect penalties using the procedures found in Section 1-511 or 1-512, the city must follow the procedures in Section 1-506. The city is not required to send an invoice under Section 1-505. Penalties collected under the procedures found in Sections 1-511 and 1-512 may only be made a lien upon a subject property when the record owner of the subject property was issued and properly noticed with the citation. Any lien attached to property under the procedures in this article to collect unpaid penalties shall have the priority of a judgment lien, and not a tax lien, unless otherwise provided by State law. The Master Fee Schedule may provide for additional penalties to be added to unpaid citations.

(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-508. RECOVERY OF ENFORCEMENT COSTS.

Enforcement costs may be recovered using the procedures found in Sections 1-510, 1-511, and 1-512. To collect costs under the procedures found in Sections 1-511 and 1-512, the city must send an invoice under Section 1-505 and follow the procedures in Section 1-506. Any lien

attached to property to collect enforcement costs under the procedures provided in Sections 1-511 and 1-512 shall have the priority of a judgment lien, and not a tax lien, unless otherwise provided by State law.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-509. RECOVERY OF ABATEMENT COSTS.

Abatement costs may be recovered using the procedures found in Sections 1-510, 1-511, and 1-512. To collect costs under the procedures found in Sections 1-511 and 1-512, the city must send an invoice under Section 1-505 and follow the procedures in Section 1-506. A lien attached to property to collect abatement costs under the procedures in Section 1-511 shall have the priority of a judgment lien, and not a tax lien, unless otherwise provided by State law. A special assessment lien attached to property to collect abatement costs under the procedures in Section 1-512 shall have the priority of a tax lien, unless otherwise required by State law.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-510. PERSONAL OBLIGATION.

Any costs or penalties subject to collection under this article may be recovered as a personal obligation against the responsible party and may be referred to a collection agency or the City Attorney's Office for collection. Upon referral of these costs and obligations, the collection agency and the City Attorney's Office may seek collection through any legal means provided to them, including judicial action. Nothing in this section shall be affected by or affect the city's use of any other procedure provided in this article or by law to collect unpaid costs and penalties. In a judicial action to recover abatement costs, the City Attorney's Office may elect to recover attorney's fees. In any action in which the City Attorney's Office elects to recover attorney's fees under this section, attorney's fees will be recovered by the prevailing party. The City Attorney shall take action to obtain a personal judgment, in addition to any liens, for unpaid penalties, costs, fines, and any other form of damages due to the City when the amounts owed exceed $1,000, the amounts reasonably appear to be collectible, and it will be cost effective to pursue judgment and collection.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2015-32, § 4, eff. 11-19-15).

SEC. 1-511. LIEN.

(a) Recording Notice of Lien; Creation of the Lien. Upon the administrative hearing officer confirming the costs or penalties under the requirements of Section 1-506 for a lien under this section, the enforcing department shall execute and file in the Fresno County Recorder's Office a Notice of Lien. The Notice shall be indexed in the grantor-grantee index. Immediately upon the recording of the Notice of Lien, the confirmed costs or penalties shall be a lien on the property.

(b) Form of Notice of Lien for Abatement or Enforcement Costs. The Notice of Lien on a lien to collect abatement or enforcement costs shall be in substantially the following format:

NOTICE OF LIEN

Pursuant to the authority vested in the City of Fresno by the provisions of Article _____ of Chapter _____ of the Fresno Municipal Code, the city did on or about the _____ day of _____, 20____, [short description of city actions] to [abate a nuisance/enforce the Fresno Municipal Code] on the real property described below ("Subject Property"), and an administrative hearing officer did on the _____ day of _____, 20____, confirm the costs of such [abatement/enforcement] on the Subject Property, and the costs have not been paid, and the City of Fresno claims a lien on the Subject Property in the amount of _____ Dollars ($_____). The lien shall be on the property until the amount is paid, plus legal rate of interest to be accrued from the date of recording this Notice, and any and all administrative costs to file and record the lien. The claimed lien shall have the priority of a judgment lien and shall attach on the date of the recording of this Notice. The Subject Property upon which the lien is placed is located at _____ in the City of Fresno, County of Fresno, State of California, more particularly described as APN # _____ and:

[LEGAL DESCRIPTION OF PROPERTY]

The record owner(s) of the Subject Property is/are _____, who reside(s) at _____.

Dated: This _____ day of _____, 20____.

_____

[name of Enforcing Department]

Director of the City of Fresno

(c) Format of Notice of Lien for Penalties. The Notice of Lien for a lien to collect unpaid penalties shall be substantially in the following format:

NOTICE OF LIEN

Pursuant to the authority vested in the City of Fresno by the provisions of Article 4 of Chapter 1 of the Fresno Municipal Code, the city did on or about the _____ day of _____, 20____, issue a citation to the record owner(s) of the real property described below ("Subject Property") for a violation of the Fresno Municipal Code existing upon the Subject Property, and an administrative hearing officer did on the _____ day of _____, 20____, confirm the penalties imposed by the citations for a lien on the Subject Property, and the confirmed penalties have not been paid, and the City of Fresno claims a lien on the Subject Property in the amount of _____ Dollars ($_____). The lien shall be on the property until the amount is paid, plus legal rate of interest to be accrued from the date of recording this Notice, and any and all administrative costs to file and record the lien. The claimed lien shall have the priority of a judgment lien and shall attach on the date of recording this Notice. The Subject

Property upon which a lien is claimed is located at _____ in the City of Fresno, County of Fresno, State of California, and is more particularly described as APN # _____ and:

[LEGAL DESCRIPTION OF PROPERTY]

The record owner(s) of the Subject Property is/are _____, who reside(s) at _____.

Dated: This _____ day of _____, 20____.

_____

[name of Enforcing Department]

Director of the City of Fresno

(d) Foreclosure; Exception. A lien imposed under this section may be foreclosed at any time by an action brought by the city for a money judgment. The city may recover from the record property owners any costs incurred regarding the processing and recording of the lien and providing notice to the property owner as part of its foreclosure action to enforce the lien. A foreclosure may not be made under this section on an owner-occupied residential dwelling.

(e) Priority. A lien imposed under this section shall have the priority of a judgment lien, and not a tax lien, unless otherwise provided by State law. If State law allows a lien with a different priority, the enforcing department shall so specify in the Notice of Lien to be recorded with the county.

(f) Release of Lien. Once payment in full is received for the lien, including applicable penalties, administrative fees and interest charges; the amount is deemed satisfied pursuant to a subsequent administrative or judicial order; or the amount is written off pursuant to procedures provided in Chapter 7, Article 9, the enforcing department shall either record a Notice of Satisfaction or provide the property owner or financial institution with the Notice of Satisfaction so they can record the Notice with the Fresno County Recorder's Office. The Notice of Satisfaction shall include the same information as provided in the original lien. Such Notice of Satisfaction shall cancel the lien. The Notice of Satisfaction shall be indexed in the grantor-grantee index.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-512. SPECIAL ASSESSMENT.

(a) Recording Special Assessment Lien; Creation of Lien. Immediately upon the hearing officer's confirmation of costs or penalties for a special assessment under Section 1-506, the enforcing department shall record a Notice of Special Assessment with the Fresno County Recorder's Office. Immediately upon recording the Notice of Special Assessment, the Special Assessment shall become a lien upon the subject property, except that if any real property to which the lien would attach has been transferred or conveyed to a bona fide purchaser for value, or if a lien of a bona fide encumbrancer for value has been created and attaches thereon, prior to the date on which the first installment of taxes that included the special assessment imposed under this section would become delinquent, then the lien that would otherwise be imposed by this section shall not attach to real property and the costs of abatement and enforcement relating to the property shall be transferred to the unsecured roll for collection. The Notice of Special Assessment shall be indexed in the grantor-grantee index.

(b) Form of Notice of Special Assessment. The form of the Notice of Special Assessment shall be substantially in the following form:

NOTICE OF SPECIAL ASSESSMENT

Pursuant to the authority vested in the City of Fresno by the provisions of Article _____ of Chapter _____ of the Fresno Municipal Code, the city did on or about the _____ day of _____, 20____, [short description of city's action(s)] to [abate a nuisance/enforce the Fresno Municipal Code] on the real property described below ("Subject Property"), and an administrative hearing officer did on the _____ day of _____, 20____, assess the cost of such [abatement /enforcement] on the Subject Property, and the assessment has not been paid, and the City of Fresno claims a lien on the Subject Property in the amount of _____ Dollars ($_____). The lien shall be on the property until the amount is paid, plus legal rate of interest to be accrued from the date of recording this lien, and any and all administrative costs to file and record the lien. The claimed lien having been created to collect for [abatement/enforcement] costs shall have the priority of a [tax/judgment] lien and shall attach upon the recording of this Notice. The Subject Property may be sold after 3 years pursuant to Revenue and Tax Code §3691 for unpaid delinquent assessments. The subject property upon which the lien is claimed is located at _____ in the City of Fresno, County of Fresno, State of California, and is more particularly described as APN #_____ and:

[LEGAL DESCRIPTION OF PROPERTY]

The record owner(s) of the Subject Property is/are _____, who reside(s) at _____.

Dated: This _____ day of _____, 20____.

_____

[name of Enforcing Department]

Director of the City of Fresno

(c) Form of Notice of Special Assessment for Penalties. The form of the Notice of Special Assessment for unpaid penalties shall be substantially in the following form:

NOTICE OF SPECIAL ASSESSMENT

Pursuant to the authority vested in the City of Fresno by the provisions of Article 4 of Chapter 1 of the Fresno Municipal Code, the city did on or about the _____ day of _____, 20____, issue a citation to the record owner(s) of the real property described below ("Subject Property") for a violation of the Fresno Municipal Code existing upon the Subject Property. The record owner(s) have not paid the penalties issued in the citations, and an administrative hearing officer did on the _____ day of _____, 20____, assess these unpaid penalties on the Subject Property. The assessment has not been paid and the City of Fresno claims a lien on the Subject Property in the amount of _____ Dollars ($_____). The lien shall be on the property until the amount is paid, plus legal rate of interest to be accrued from the date of recording this lien, and any and all administrative costs to file and record the lien. The claimed lien having been assessed to collect

for unpaid penalties shall have the priority of a judgment lien and shall attach upon the recording of this Notice. The subject property upon which the lien is claimed is located at _____ in the City of Fresno, County of Fresno, State of California, and is more particularly described as APN #_____ and:

[LEGAL DESCRIPTION OF PROPERTY]

The record owner(s) of the Subject Property is/are _____, who reside(s) at _____.

Dated: This _____ day of _____, 20____.

_____

[name of Enforcing Department]

Director of the City of Fresno

(d) Filing Special Assessment. In addition to recording the Notice of Special Assessment, the enforcing department shall prepare and file a certified copy of the special assessment with the Fresno County Auditor. The special assessment shall be delivered to the County Auditor before the date fixed by law or by the County Auditor for the delivery of the assessment book to the County Board of Equalization.

(e) Collection with Taxes. After filing the special assessment with the County Auditor, the County Tax Collector may collect the amount of the special assessment at the same time and in the same manner as ordinary municipal taxes, and impose the same penalties and procedures, including the sale of the property, in case of delinquency, as provided for ordinary municipal taxes. All laws applicable to the levy, collection and enforcement of property taxes shall be applicable to the special assessment. If the property is assessed for nuisance abatement costs, the property may be sold for delinquent taxes in three years pursuant to Revenue and Taxation Code Section 3691, with the exception of owner-occupied residential dwellings.

(f) Release of Special Assessment and Lien. Once payment in full is received for the special assessment, including applicable penalties, administrative fees and interest charges; the amount is deemed satisfied pursuant to a subsequent administrative or judicial order; or the amount is written off pursuant to procedures provided in Chapter 7, Article 9, the enforcing department shall either record a Notice of Satisfaction with the Fresno County Recorder or provide the property owner or financial institution with the Notice of Satisfaction so they can record this Notice with the Fresno County Recorder's Office. The Notice of Satisfaction shall include the same information as provided in the original Notice of Special Assessment. Such Notice of Satisfaction shall cancel the lien created under this section. In addition to recording the Notice of Satisfaction, the city shall file a Notice with the County Auditor to strip the assessment from the tax rolls. The Notice of Satisfaction shall be indexed in the grantor-grantee index.

(g) Refund. The Council may order a refund of all or part of a tax paid pursuant to this section if it finds that all or part of the tax has been erroneously levied. A tax or part thereof shall not be refunded unless a claim is filed with the City Clerk on or before November 1 after the tax became due and payable. The claim shall be verified by the person who paid the tax, or his/her guardian, executor or administrator.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-513. RECOVERY OF GRAFFITI ABATEMENT COSTS.

(a) Application. This section is intended to implement the provisions of Sections 38772, 38773.2, and 38773.6 of the California Government Code making the costs of abatement of a nuisance caused by graffiti of personal or real property a lien or special assessment on the real property of a minor or other person causing the graffiti or the parent or guardian of the minor.

(b) Definitions. For purposes of this section the terms "graffiti," "expense of abatement," "minor," "other person," and "responsible person" have the same meaning as specified in Chapter 9, Article 25 of this Code and Government Code Sections 38772, 38733.2, and 38773.6.

(c) Procedures. The procedures to assess or lien property under this section shall be those provided in this article unless otherwise provided in this section or in Government Code Sections 38772, 38733.2, and 38773.6.

(d) Notices. All notices required or allowed under this article shall be provided to all record owners of the real property that will be subject to the special assessment or lien. The invoice of costs, under Section 1-605, shall notify the minor or other person causing the graffiti, or the parent or guardian of the minor that caused the graffiti that should the invoiced costs go unpaid under that section, the property owned by them shall be subject to a lien or special assessment.

(e) Form of Notice of Graffiti Abatement Lien. The Notice of Graffiti Abatement Lien shall be in substantially the following form:

NOTICE OF GRAFFITI ABATEMENT LIEN

Pursuant to the authority vested in the City of Fresno by the provisions of Article 1 of Chapter 8 of the Fresno Municipal Code and Government Code Sections 38772 and 53069.3, the city did on or about the _____ day of _____, 20____, cause the abatement of graffiti on public or private, real or personal property. _____ is/are the record owner(s) of the premises described below ("Subject Property") and is the minor/person causing graffiti/parent or guardian of the minor who caused the graffiti. An administrative hearing officer did on the _____ day of _____, 20____, confirm the costs of the graffiti abatement, and the costs have not been paid, and the said City of Fresno claims a lien on the Subject Property in the amount of _____ Dollars ($_____) under Government Code Section 38773.2. The lien shall be on the property until the amount is paid, plus legal rate of interest to be accrued from the date of recording this lien, and any and all administrative costs to file and record the lien. The claimed lien having been imposed to collect for graffiti abatement costs shall have the priority of a

judgment lien and shall attach upon the recording of this Notice. The Subject Property upon which the lien is claimed is located at _____ in the City of Fresno, County of Fresno, State of California, and is more particularly described as APN #_____ and:

[LEGAL DESCRIPTION OF PROPERTY]

The record owner(s) of the Subject Property is/are _____, who reside(s) at _____.

Dated: This _____ day of _____, 20____.

_____

[name of Enforcing Department]

Director of the City of Fresno

(f) Form of Graffiti Abatement Special Assessment. The form for a special assessment for graffiti abatement shall be in substantially the following form:

NOTICE OF GRAFFITI ABATEMENT SPECIAL ASSESSMENT

Pursuant to the authority vested in the City of Fresno by the provisions of Article 1 of Chapter 8 of the Fresno Municipal Code and Government Code Sections 38772 and 53069.3, the city did on or about the _____ day of _____, 20____, cause the abatement of graffiti on public or private, real or personal property. _____ is/are the record owner(s) of the premises described below ("Subject Property") and is the minor/person causing graffiti/parent or guardian of the minor who caused the graffiti. An administrative hearing officer did on the _____ day of _____, 20____, assess the cost of the graffiti abatement on the Subject Property under Government Code Section 38773.6, and the assessment has not been paid, and the City of Fresno claims a lien on the Subject Property in the amount of _____ Dollars ($_____). The claimed lien having been assessed to collect for graffiti abatement costs shall have the priority of a tax lien and shall attach upon the recording of this Notice. The lien shall be on the property until the amount is paid, plus legal rate of interest to be accrued from the date of recording this lien, and any and all administrative costs to file and record the lien. The Subject Property may be sold after three years pursuant to Revenue and Tax Code § 3691 for unpaid delinquent assessments. The Subject Property upon which the lien is claimed is located at _____ in the City of Fresno, County of Fresno, State of California, and is more particularly described as APN #_____ and:

[LEGAL DESCRIPTION OF PROPERTY]

The record owner(s) of the Subject Property is/are _____, who reside(s) at _____.

Dated: This _____ day of _____, 20____.

_____

[name of Enforcing Department]

Director of the City of Fresno
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-514. SUBSEQUENT CIVIL OR CRIMINAL JUDGMENT.

Under the provisions of Government Code Section 38773.7, upon entry of a second or subsequent civil or criminal judgment within a two-year period finding that an owner of property or a minor or other person causing graffiti is responsible for either a public nuisance or graffiti, except for conditions abated pursuant to Health and Safety Code Section 17980, the court may order that person to pay treble the costs of the abatement.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-515. REPAIR AND DEMOLITION FUND.

Any monies recovered under this article for costs incurred in the repair, rehabilitation or demolition of substandard and/or dangerous buildings as set forth in Chapter 11 shall be paid when collected to the Controller and Director of Finance, who shall place the same in the Repair and Demolition Fund as provided in Chapter 11.
(Added Ord. 2002-51, § 23, eff. 10-31-02; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 1-516. BLIGHTED BUILDING FUND.

All penalties collected from administrative citations issued for the keeping, maintaining, or owning of a blighted building, as defined in the Public Nuisance Abatement Ordinance in Chapter 10, Article 7, shall be placed in a special fund to be known as the "Blighted Building Fund" and shall be used solely for enforcement and/or abatement of blighted buildings under the Public Nuisance Abatement Ordinance.
(Added Ord. 2003-17, § 2, eff. 4-22-03; Added Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 6 CITY ATTORNEY SUBPOENA POWER

Sec. 1-601. Enforcement of Local Laws.
Sec. 1-602. Enforcement of Federal or State Law.
Sec. 1-603. Enforcement.

SEC. 1-601. ENFORCEMENT OF LOCAL LAWS.

(a) In investigating any matter where the City Charter, this Code or any other ordinance of the City grants or affords to the City Attorney the duty or power to investigate, enforce, or prosecute a matter, the City Attorney shall have the power to inspect, upon reasonable notice, all papers, books accounts, records, documents and other items that may be relevant to the City Attorney's investigation, enforcement action or prosecution.

(b) The City Attorney shall also have the power to issue subpoenas for the attendance of witnesses, to compel their attendance and testimony, to administer oaths and affirmations, to take evidence, and to issue subpoenas for the production of any papers, books, accounts, records, documents or other items that may be relevant to the City Attorney's investigation, enforcement action or prosecution.

(c) The City Attorney may exercise these powers prior to or following the filing of any civil, criminal, or administrative action to the fullest extent permitted by law.
(Added Ord. 2024-010, § 1, eff. 5-10-24).

SEC. 1-602. ENFORCEMENT OF FEDERAL OR STATE LAW.

(a) Unless otherwise prohibited by federal or state law, in investigating, enforcing or prosecuting any matter where federal or state law grants or affords to the City Attorney, the duty or power to investigate, enforce, or prosecute any matter under federal or state law, the City Attorney shall have the power to inspect, upon reasonable notice, all papers, books, accounts, records, documents or other items that may be relevant to the City Attorney's investigation, enforcement action or prosecution.

(b) The City Attorney shall also have the power to issue subpoenas for the attendance of witnesses, to compel their attendance and testimony, to administer oaths and affirmations, to take evidence, and to issue subpoenas for the production of any papers, books, accounts, records, documents or other items that may be relevant to the City Attorney's investigation, enforcement action or prosecution.

(c) The City Attorney may exercise these powers prior to or following the filing of any civil, criminal, or administrative action to the fullest extent permitted by law. The City Attorney shall notify Council of all subpoenas issued.
(Added Ord. 2024-010, § 1, eff. 5-10-24).

SEC. 1-603. ENFORCEMENT.

If any person refuses or fails to comply with a subpoena of the City Attorney issued pursuant to this Article, the City Attorney may petition any court of competent jurisdiction

for an order compelling the person to attend and testify or produce the books, papers, records, accounts, documents, or other items required by the subpoena before the officer named in the subpoena.
(Added Ord. 2024-010, § 1, eff. 5-10-24).

CHAPTER 2

CITY GOVERNMENT*

Art. 1. Implementation of Mayor-Council Form of Government
Art. 2. Council Districts
Art. 3. Council Meetings and Rules of Order
Art. 4. City Manager and Administrative Organization
Art. 5. Emergency Services Ordinance
Art. 6. Publications and Official Advertising
Art. 7. Display of Flags and Emblems
Art. 8. Boards and Commissions
Art. 9. Conflict of Interest
Art. 10. Elections
Art. 11. Candidates for Elective City Office-Campaign Contribution Limits
Art. 12. Registration of Lobbyists
Art. 13. Redevelopment and Community Development

***Editor's note—**Ord. No. 2007-55, §§ 3 and 5, effective September 4, 2007, amended the Code by repealing former Ch. 2, §§ 2-101—2-108, 2-201—2-209, 2-301—2-320, 2-401, 2-501—2-505, 2-601—2-612, 2-701, 2-702, 2-801, 2-901—2-903, 2-1001—2-1003, 2-1101—2-1106, 2-1201—2-1214, 2-1301—2-1307, 2-1401—2-1411, 2-1501—2-1506, 2-1601, 2-1602, 2-1701 and 2-1702, and adding a new Ch. 2. Former Ch. 2 pertained to similar subject matter. Original history information has been retained with the appropriate section, where possible.

ARTICLE 1 IMPLEMENTATION OF MAYOR-COUNCIL FORM OF GOVERNMENT

Sec. 2-101. Mayor-Council Form of Government.
Sec. 2-102. Continuance of Laws.
Sec. 2-103. Council Actions Subject to Mayor's Veto and Reconsideration.
Sec. 2-104. Procedure for Veto Process.
Sec. 2-105. Procedure for Reconsideration Process.
Sec. 2-106. Single Action Rule.
Sec. 2-107. Other Action Subject to the Mayor's Veto or Request For Reconsideration.

SEC. 2-101. MAYOR-COUNCIL FORM OF GOVERNMENT.

In accordance with Section 1503 of the Charter of the City of Fresno, this article implementing the Mayor-Council form of government shall become operative on January 7, 1997.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-102. CONTINUANCE OF LAWS.

All provisions in this code, uncodified ordinances, resolutions, and other rules and regulations now in force and not in conflict or inconsistent herewith are continued in force until they have been repealed, amended, or superseded by proper authority.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-103. COUNCIL ACTIONS SUBJECT TO MAYOR'S VETO AND RECONSIDERATION.

This article sets forth the procedures to be followed relating to actions taken by Council which are subject to the Mayor's veto and the Mayor's request for reconsideration.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-104. PROCEDURE FOR VETO PROCESS.

(a) Clerk's Duties. Upon the adoption of a resolution or ordinance subject to the Mayor's veto, the City Clerk shall retain the original of the ordinance or resolution and forward a copy of the item to the Mayor within 48 hours. The City Clerk shall attach a transmittal memorandum as a cover to the resolution or ordinance. The transmittal memorandum shall include, but not be limited to, the date of adoption, the title of the resolution or ordinance, tally of vote taken on the item, the final date for the Mayor to file the approved item or written objections and a veto with the City Clerk, space for the Mayor's approval and signature or veto and written objections, space for the City Clerk to record the "date received" of the item received from the Mayor and record whether the item has been expressly approved or vetoed, space for the City Clerk to record the final date for Council to take action to override the veto, and space for the City Clerk to record the date of final passage. The City Clerk shall record the date of final passage as described under subsection (b) of this section or described under subsection (d) of this section on both the transmittal memorandum and on the original resolution or ordinance.

(b) Mayor's Duties. Upon receipt of a resolution or ordinance subject to the Mayor's veto, the Mayor may consider the item for approval or veto. If the Mayor vetoes the resolution or ordinance, the Mayor must file the veto with written objections within 10 days of receiving the resolution or ordinance from the City Clerk. If the Mayor approves the resolution or ordinance, the date of receipt by the City Clerk from the Mayor shall be deemed the date of approval and the date of final passage. In the event the Mayor fails to file an approval or a veto with written objections within the required ten-day time limit, the tenth day shall become the date of final passage.

(c) Council's Duties. If the Mayor files a veto of a resolution or ordinance, the Council may reconsider the vetoed resolution or ordinance and take action thereon. Any Councilmember may request the City Clerk to place the resolution or ordinance on the agenda for an override vote. The resolution or ordinance must be placed on the Council's agenda in accordance with the Ralph M. Brown Act, Government Code Sections 54950, et seq. An override action must be taken within 30 days from the date the Mayor files a veto of the resolution or ordinance with the City Clerk. The Council may vote on the resolution or ordinance with or without deliberation.

(d) Enactment Over Veto. Any resolution or ordinance vetoed by the Mayor which receives the vote of five or more Councilmembers shall be deemed adopted notwithstanding the Mayor's veto. The date of approval shall be deemed the date of final passage. If the Charter or other superseding law requires more than five votes for the adoption or approval of any resolution or ordinance, such larger vote shall be required to overcome the veto. If a vetoed ordinance or resolution is not overridden within 30 days of the veto, the resolution or ordinance is deemed disapproved.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-105. PROCEDURE FOR RECONSIDERATION PROCESS.

(a) Clerk's Duties. Upon the Council's decision not to approve a resolution or ordinance subject to the Mayor's request for reconsideration, the City Clerk shall retain the original and forward a copy of the item to the Mayor within 48 hours. A decision not to approve shall include a tie vote, a vote taken which fails to receive a majority of votes, and a vote taken which fails to receive a specific number of votes or a super majority vote required by the charter or other applicable law. The City Clerk shall attach a transmittal memorandum as a cover to the resolution or ordinance. The transmittal memorandum shall include, but not be limited to, date of disapproval, the title of the resolution or ordinance, tally of any votes taken on the item, the final date for the Mayor to file a request for reconsideration with the City Clerk, space for the Mayor to record his/her request for reconsideration, space for the City Clerk to record the "date received" of the Mayor's request for reconsideration, space for the City Clerk to record the final date for Council to reconsider the item, space for the City Clerk to record the vote on reconsideration, and space to record the date of final passage, if applicable. The City Clerk shall immediately deliver a copy of the transmittal memorandum to the members of the

Council. After Council's reconsideration, the City Clerk shall record the date of final passage as described under subsection (c) of this subsection on both the transmittal resolution or ordinance or shall record thereon that the item was not adopted after reconsideration.

(b) Mayor's Duties. Within 10 days from Council's decision not to approve a resolution or ordinance which is subject to the Mayor's request for reconsideration, the Mayor may file a written request for reconsideration with the City Clerk. The request must be filed within 10 days from the date the resolution or ordinance was disapproved by the Council.

(c) Council's Duties. If the Mayor files a request for reconsideration, the Council must reconsider the resolution or ordinance and take action thereon within 30 days from the date the Mayor files a written request for reconsideration with the City Clerk. The City Clerk shall place the item for reconsideration on the agenda of the next regular meeting of Council. The resolution or ordinance must be placed on the Council's agenda in accordance with the Ralph M. Brown Act, Government Code Sections 54950 et seq. The Council may vote on the resolution or ordinance with or without deliberation.

(d) Adoption After Reconsideration. Any resolution which has been reconsidered by Council in accordance with this subsection which receives a majority vote shall be deemed adopted. Any ordinance which has been reconsidered by Council in accordance with this subsection which receives the vote of four or more councilmembers shall be deemed adopted. If the Charter or other superseding law requires a higher number of votes for the adoption or approval of any resolution or ordinance, such larger vote shall be required. The date of approval of a resolution or ordinance under this subsection shall be deemed the date of final passage. If a reconsidered resolution or ordinance does not receive the requisite vote, it shall be deemed disapproved. A resolution or ordinance adopted under this reconsideration process, which has not been altered by Council, shall not be subject to the Mayor's veto.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-106. SINGLE ACTION RULE.

The implementation of the Mayor's veto process and the Mayor's request for reconsideration process shall not be construed to require new notice publication requirements relating to a particular action taken. A matter that has been noticed by local, state, or federal law shall be considered by Council. After Council action, the veto process or the request for reconsideration process shall proceed, if applicable. In the event of a veto or request for reconsideration, the matter shall be placed on Council's agenda. Council shall vote on the resolution or ordinance. Although state law requirements for placing such a matter on the agenda and for allowing the public an opportunity to be heard must be met, such review process does not require new publication of notices as all these proceedings relate to the same subject and are deemed part of a single action.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-107. OTHER ACTION SUBJECT TO THE MAYOR'S VETO OR REQUEST FOR RECONSIDERATION.

Any action of Council subject to the Mayor's veto or the Mayor's request for reconsideration shall proceed pursuant to the procedures set forth in this article, irrespective of whether the title of the action is a resolution or ordinance.
(Added Ord. 96-68, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 2 COUNCIL DISTRICTS

Sec. 2-201. Title.
Sec. 2-202. Purpose.
Sec. 2-203. Definitions.
Sec. 2-204. Initiation.
Sec. 2-205. Petition.
Sec. 2-206. Proceedings.
Sec. 2-207. Criteria.
Sec. 2-208. Annexations.
Sec. 2-209. Adoption of Council District Map.

SEC. 2-201. TITLE.

This article shall be known as the "Council District Ordinance of the City of Fresno."
(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-202. PURPOSE.

The purpose of this article is to implement Section 304.1 of the Charter by setting forth rules, procedures, principles, objectives, and criteria relating to the determination, redetermination, and modification of Council districts in which each councilmember is required to reside.
(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-203. DEFINITIONS.

(a) Unless the particular provision or context otherwise requires, the definitions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Chapter 1 Article 2 shall also govern this construction, meaning and application of words and phrases used in this article.

(b) "Determination" means the establishment of the boundaries of Council districts and the numbering of such districts by ordinance adopted not less than one hundred twenty days prior to the 1979 general municipal election.

(c) "Modification" means any change by ordinance of the boundaries of Council districts previously established by determination, redetermination, or modification.

(d) "Council District Report" means a written document prepared by the City Manager which provides the Council with information, an analysis of such information, and a recommendation for the determination, redetermination, or modification of the boundaries of Council districts. Such document shall include:

(1) The Council districts proposed to be determined, redetermined, or modified.

(2) Suggested boundaries for those districts to be determined, redetermined or modified.

(3) Such supporting information as the City Manager deems relevant and material, which information may include maps, diagrams, tables, statistics, and public comment.

(e) "Redetermination" means a required review of Council district boundaries upon publication of the 1980 federal census and each decennial federal census thereafter, together with any ordinance the Council may adopt to change the boundaries of Council districts as a result of such required review.
(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 81-157, § 6, eff. 12-11-81; Am. Ord. 87-139, § 1, eff. 11-13-87; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-204. INITIATION.

Proceedings for the determination, redetermination, or modification of any Council district shall be held pursuant to the provisions of Section 2-206. Determination and redetermination proceedings shall be automatically initiated upon the adoption of this article and the publication of each decennial federal census thereafter, and modification proceedings may be initiated at any other time by the filing of a petition pursuant to the provisions of Section 2-205 or by the adoption of a resolution of initiation by the Council at such time as deemed necessary by the Council or at such time as required by Section 1504 of the Charter relating to expansion of Council membership. In addition, the City Manager shall make a recommendation to the Council regarding the population of the city every five years from the date of this ordinance. The Council shall act on this recommendation at a regularly scheduled Council meeting.
(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-205. PETITION.

Proceedings for the modification of any Council district may be initiated by the filing of a petition with the City Clerk in compliance with the provisions of this section.

(a) Contents. A petition shall consist of the following parts:

(1) The names and business or residence addresses of at least one but not more than five proponents of the petition.

(2) A statement and/or map identifying the Council districts to be modified, describing the proposed modification, and containing reasons for such modification.

(3) Qualified signatures of registered voters.

(b) Qualified Signatures. No signature shall be qualified unless personally affixed by the signer who additionally shall affix the date of such signature and his or her:

(1) Printed name.

(2) Residence address, giving street and number, or if no street or number exists, adequate designation of residence so that the location may be readily ascertained.

(3) The number of the Council district in which such residence address is located.

(c) Number of Qualified Signatures. The number of qualified signatures required to initiate proceedings for the modification of any Council district shall be equal in number to not less than 15% of the registered voters residing in a Council district to be affected by the proposed modification, or 10% of the registered voters of the city, according to the County Clerk's last official report of registration to the Secretary of State; provided, that only signatures which were affixed within the last ninety days immediately before the petition is filed with the City Clerk shall be counted.

(d) Ascertainment of Requisite Signatures. Within thirty days from the filing of a petition, the City Clerk shall ascertain whether or not the petition was signed in a timely manner by the requisite number of qualified signatures. The City Clerk shall file with the petition a certificate showing the results of the examination. The City Clerk shall give the proponents a copy of the certificate upon their request.

(e) Insufficient Petition. If the petition contains an insufficient number of signatures on its face, it shall be filed and no further proceedings had thereon. If the petition contains the requisite number of signatures but an insufficient number are qualified, the petition may be supplemented within ten days of the date of the certificate by filing supplementary petitions identical to the petition originally filed, except as to signatures and matters required to be affixed by the signers.

(f) Supplementary Petition. Within ten days after the supplementary petitions are filed, the City Clerk shall make a certificate showing whether or not the petition as supplemented is sufficient.

(g) Insufficient Supplemented Petition. If the certificate shows that the petition as supplemented is insufficient, no action shall be taken thereon and the petition shall remain on file.

(h) Sufficient Petition. If the certificate shows that the petition, together with any supplementary petition, is sufficient, it shall be submitted to the Council at its next regular meeting. The certificate shall contain:

(1) An identification of the Council districts to be modified.

(2) A description of such modification.

(3) Reasons for such modification.

(4) The number of signatures required by this article.

(5) The total number of signatures on the petition.

(6) The number of qualified signatures on the petition.

(7) The number of disqualified signatures on the petition.

(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-206. PROCEEDINGS.

(a) Notice. The City Clerk shall give notice of the initiation of district determination, redetermination, or modification proceedings as follows:

(1) Determination. In the event of proceedings for determination of Council districts, immediately after the adoption of this article.

(2) Redetermination. In the event of proceedings for redetermination of Council districts, immediately after being informed by the City Manager of the publication of the decennial federal census.

(3) Modification. In the event of proceedings for modification of Council districts:

(i) By petition, immediately after a certificate of a sufficient petition is submitted to the Council.

(ii) By Council resolution, immediately after adoption of a resolution of initiation by the Council.

(b) Contents of Notice. The notice of proceedings shall contain the following information:

(1) The manner by which such proceedings were initiated.

(2) A statement that a Council District Report is being prepared by the City Manager.

(3) A statement that public comment may be submitted in writing to the City Manager within fifteen days after publication of the notice.

(c) Manner of Notice. The City Clerk shall give notice of the proceedings by:

(1) Publication at least once in a newspaper of general circulation in the city.

(2) Mailing copies of the notice to any individual, group, or organization which has previously requested such notice.

(d) Council District Report. The City Manager shall prepare, complete, and file a Proposed Council District Report with the City Clerk no later than thirty days after publication of the notice of the proceedings.

(e) Notice of Hearing. The City Clerk shall give notice of the public hearing on the Council District Report by publication at least once in a newspaper of general circulation in the city no later than ten days after the filing of such Report. The City Clerk shall also give notice by mailing copies of the notice to any individual, group, or organization which has previously requested such notice. The notice shall contain the following information:

(1) A statement that proceedings for determination, redetermination, or modification of Council districts, whichever is the event, are being held.

(2) Identification of the Council districts proposed to be determined, redetermined, or modified.

(3) The date, time, and place of the hearing at which the Council District Report will be presented and at which public comment may be given.

(4) A statement that the Council District Report is available for public review in the office of the City Clerk and, if available at other public places for review, the location of such other public places.

(f) Conduct of Council Hearing. The Council hearing shall be conducted pursuant to City Council rules. Within fifteen days following the close of the hearing the Council shall, by ordinance, adopt the boundaries set forth in the Council District Report, or such other boundaries as it deems appropriate considering the criteria set forth in Section 2-207 and the public comment received in accordance with this section.

(g) Failure to give any notice specified in this section shall not invalidate any boundaries fixed in accordance herewith.
(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Am. Ord. 92-51, §§ 1—7, eff. 8-21-92; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-207. CRITERIA.

Council districts are created for the purpose of ensuring more representative government in this city by disbursing the residences of elected representatives throughout the entire community in order to effect the representation of all diverse groups, elements and areas thereof on the legislative body. In order to implement this guiding principle, the following criteria shall be utilized in fixing Council district boundaries:

(a) Conform to State and Federal Law. All districts shall be drawn in conformance with the requirements of the law of the State of California and of the United States including the federal Voting Rights Act of 1965, Section 1973 of Title 42 of the United States Code, as amended.

(b) Communities of Interest. Any identifiable geographic concentration of persons sharing common social, political, and economic interests shall be, insofar as reasonably possible, located within the same Council district.

(c) Population. Population within the districts shall be as nearly equal in population as may be according to the most current of the following:

(1) Population census of the United States Bureau of the Census.

(2) State of California Department of Finance City and County Population Estimates.

(3) Statistics compiled by the Planning and Development Department based on (1) or (2) above.

Any other census, estimate, survey, and population projection may be considered.

(d) Boundary Lines. Unless good cause requires otherwise, Council district boundaries shall be:

(1) Census tract lines of the United States Bureau of the Census;

(2) Streets (excluding alleys), highways, or freeways;

(3) Railroad rights-of-way;

(4) Waterways; or

(5) Natural or artificial barriers.

(e) Contiguous and Compact.

(1) Territory shall be so located in Council districts as to promote contiguity and compactness of such districts.

(2) Territory of a Council district shall be contiguous except as to any territory which is wholly noncontiguous to any Council district upon annexation.

(3) Council districts shall be compact except for any irregularity of the City of Fresno boundaries.

(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Am. Ord. 2001-47, § 1, eff. 7-13-01; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-208. ANNEXATIONS.

Any territory which is annexed or otherwise attached to the city shall be allocated to a Council district pursuant to the provisions of this section, effective upon the completion of such annexation or other proceedings.

(a) Contiguous Territory. If the annexed or otherwise attached territory's boundary is contiguous to the boundary of not more than one Council district, such territory shall be allocated to such Council district. If the territory's boundary is contiguous to the boundaries of two or more Council districts, the City Manager shall make recommendations to the Council for the allocation of all or portions of the territory to council districts based on criteria contained in this ordinance.

(b) Wholly Noncontiguous Territory. If the annexed or otherwise attached territory's boundary is not contiguous with the boundary of any Council district, the distances between the boundaries of such territory and Council districts in the proximity of such territory shall be ascertained, and such territory shall be allocated to the Council district to which the distance is the shortest.

(Added Ord. 78-95, § 1, eff. 6-30-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-209. ADOPTION OF COUNCIL DISTRICT MAP.

(a) The Council adopts that certain map bearing the following identification: COUNCIL DISTRICTS, and establishes seven Council districts and the boundaries thereof as designated on such map. The name of each Council district designated in color on such map and, pursuant to the provisions of Charter Section 304.1, the number of each councilmember's office and the corresponding Council district in which each councilmember is required to reside is as follows:

Color	*Number*
Purple	1
Blue	2
Green	3
Yellow	4
Orange	5
Red	6
Grey	7

(b) Such adopted map, as may be amended from time to time pursuant to this article, shall be known as the "Official Council District Map."

(c) The Official Council District Map shall be kept on file in the City Clerk's Office. The City Clerk shall keep a record of all ordinances amending the Official Council District Map. The Planning and Development Department shall immediately cause designation of such amendments to be placed upon the Official Council District Map. The Official Council District Map as herein adopted and as subsequently amended shall be prima facie evidence of the existence and legality of the Council districts designated thereon. The Planning and Development Department shall maintain the record of the Office Council District Map, including by electronic media, as it may be amended by Council.
(Added Ord. 78-161, §§ 1, 2, eff. 11-24-78; Am. Ord. 87-139, § 1, eff. 11-13-87; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 3 COUNCIL MEETINGS AND RULES OF ORDER

Sec. 2-301. Regular Meetings.
Sec. 2-302. Special Meetings.
Sec. 2-303. Agenda.
Sec. 2-304. Presiding Officer—Duties.
Sec. 2-305. Call to Order—Presiding Officer.
Sec. 2-306. Roll Call.
Sec. 2-307. Quorum.
Sec. 2-308. Order of Business.
Sec. 2-309. Reading of Minutes.
Sec. 2-310. Rules of Debate.
Sec. 2-311. Addressing the Council.
Sec. 2-312. Manner of Addressing Council—Time Limit.
Sec. 2-313. Silence Constitutes Affirmative Vote.
Sec. 2-314. Decorum.
Sec. 2-315. Persons Authorized Beyond Podium.
Sec. 2-316. Special Committees.
Sec. 2-317. Reading of Ordinances.
Sec. 2-318. Rules of Procedure.
Sec. 2-319. Closed Session Attorney-Client Privilege.

SEC. 2-301. REGULAR MEETINGS.

The Council shall hold regular meetings and shall provide the time, place, and manner of holding its meetings by resolution.
(Rep. and Added Ord. 6033, 1961; based on former Sec. 2-503 and 2-504; Am. Ord. 67-64, 1967; Am. Ord. 69-52, 1969; Am. Ord. 73-113, § 1, eff. 8-26-73; Am. Ord. 73-170, § 1, eff. 11-29-73; Am. Ord. 77-18, § 1, eff. 3-20-77; Am. Ord. 77-87, § 1, eff. 8-26-77; Am. Ord. 90-7, § 1, eff. 2-9-90; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-302. SPECIAL MEETINGS.

Special meetings of the Council may be held at any time upon the call of the President of the Council or, in his/her absence or unwillingness to make such call, upon the call of a majority of the members of said Council. Notice of any such meeting shall be given in accordance with the Ralph M. Brown Act, Government Code Sections 54950 et seq., as amended.
(Rep. and Added Ord. 6033, 1961, based on former Sec. 2-505; Am. Ord. 96-67, § 1, eff. 11-22-96; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-303. AGENDA.

(a) Procedure. All reports, communications, ordinances, resolutions, contract documents, and other matters to be submitted to the Council shall be delivered to the City Clerk prior to 5 p.m. of the fifth business day prior to the Council meeting at which they are to be submitted. The City Clerk shall prepare an agenda of such matters according to the order of business as determined by the Council, and furnish each member of the Council, the Mayor,

the City Manager, City Attorney, and department directors with a copy of the same prior to the Council meeting, and as far in advance of the meeting as time for preparation will permit. No item

shall be submitted to the Council, except in accordance with the foregoing procedure. In accordance with statutory exceptions of the Ralph M. Brown Act, Government Code Section 54950 et seq., as amended, the Council may discuss and consider an item not on the agenda.

(b) State Law. The Agenda shall be posted and prepared in accordance with the Ralph M. Brown Act, Government Code Sections 54950 et seq., as amended.
(Rep. and Added Ord. 6033, 1961; Am. Ord. 6369, 1964; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2009-10, § 1, eff. 4-26-09).

SEC. 2-304. PRESIDING OFFICER—DUTIES.

The President of the Council shall be the presiding officer of the Council. The presiding officer shall preserve strict order and decorum at all regular and special meetings of the Council. The President shall state every question coming before the Council, announce the decision of the Council on all subjects and decide all questions of order, subject to an appeal to the Council, in which event a majority vote of the Council shall govern and conclusively determine such question of order. The President shall vote on all questions, and in roll call votes the President's name shall be called last.
(Rep. and Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-305. CALL TO ORDER—PRESIDING OFFICER.

The President of the Council, or in his or her absence, the Acting President, shall take the chair precisely at the hour appointed for the meeting and shall immediately call the Council to order. In the absence of the President of the Council and Acting President, the City Clerk shall call the Council to order, whereupon a temporary chairperson shall be elected by the members of the Council present. Upon the arrival of the President of the Council or Acting President, the temporary chairperson shall relinquish the chair upon the conclusion of the item of business immediately before the Council.
(Rep. and Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-306. ROLL CALL.

Before proceeding with the business of the Council, the City Clerk or his/her deputy shall call the roll of the members, and the names of those present shall be entered in the minutes.
(Rep. and Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-307. QUORUM.

A majority of all the members elected to the Council shall constitute a quorum at any regular or special meeting of the Council. A vote of the majority of the quorum shall be

sufficient to pass or adopt any motion, order or resolution, other than an ordinance or a resolution required by the Charter or other applicable law to have a greater vote for adoption. (Added Ord. 6033, 1961; based on former Sec. 2-506; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-308. ORDER OF BUSINESS.

All meetings of the Council shall be open to the public, except closed sessions permitted under the Ralph M. Brown Act, and Government Code Sections 54950 et seq., as amended. Promptly at the hour set on the day of each regular meeting, the members of the Council, the City Manager, the City Clerk, and the City Attorney shall take their regular stations in the Council Chamber, and the business of the Council shall be taken up for consideration and disposition in the order determined by Council resolution. Such order of business may be altered in any particular instance with the approval of the Council.
(Added Ord. 6033, 1961; Am. Ord. 6704, 1965; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-309. READING OF MINUTES.

Unless a reading of the minutes of a Council meeting is requested by a member of the Council, such minutes may be approved without reading if the Clerk has previously furnished each member with a copy thereof.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-310. RULES OF DEBATE.

(a) Presiding Officer May Debate And Vote. The President of the Council or such other member of the Council as may be presiding may move, second and debate from the chair, subject only to such limitations of debate as are by Council Resolution or this Section imposed on all members.

(b) Getting The Floor—Improper References To Be Avoided. Every member desiring to speak shall address the chair, and, upon recognition by the presiding officer, shall confine any comments to the question under debate, avoiding all personalities and indecorous language.

(c) Interruptions. A member, once recognized, shall not be interrupted when speaking unless it be to call him or her to order, or as herein otherwise provided. If a councilmember, while speaking, is called to order, the councilmember shall cease speaking until the question of order is determined, and, if in order, he/she shall be permitted to proceed.

(d) Privilege Of Closing Debate. The Councilmember moving the adoption of an ordinance or resolution shall have the privilege of closing the debate.

(e) Motion To Reconsider. A motion to reconsider any action taken by the Council may be made only on the day such action was taken. It may be made either immediately during the same session, or at a recessed or adjourned session thereof. Such motion must be made by one of the prevailing side, but may be seconded by any member, and may be made at any time and

have precedence over all other motions or while a member has the floor; it shall be debatable. Nothing herein shall be construed to prevent any member of the Council from making or remaking the same or any other motion at a subsequent meeting of the Council so long as the ability to make such motion meets the requirements of applicable laws.

Notwithstanding this subsection, when the Mayor makes a written request for Council reconsideration in accordance with Article 3 of Chapter 2 of this Code and Charter Section 605(d), the Council shall reconsider the action without a motion to reconsider.

(f) Remarks Of Councilmember - When Entered In Minutes. A Councilmember may request, through the presiding officer, the privilege of having an abstract of his or her statement on any subject under consideration by the Council entered in the minutes. If the Council consents thereto, such statement shall be entered in the minutes.

(g) Synopsis Of Debate - When Entered In Minutes. The Clerk may be directed by the presiding officer, with consent of the Council, to enter in the minutes a synopsis of the discussion on any question coming regularly before the Council.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-311. ADDRESSING THE COUNCIL.

Any person desiring to address the Council, at any time, shall first secure the permission of the presiding officer.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-312. MANNER OF ADDRESSING COUNCIL—TIME LIMIT.

Each person addressing the Council shall step up to the microphone. A person addressing the Council will be asked, but not required, to give his or her name and address in an audible tone of voice for the city's records. Unless further time is granted by the Council, speakers will be limited to three minutes. All remarks shall be addressed to the Council as a body and not to any member thereof. Consistent with the American with Disabilities Act, alternative methods of addressing the Council shall be allowed for persons with disabilities. No person, other than the Council and the person having the floor, shall be permitted to enter into any discussion, either directly or through a member of the Council, without the permission of the presiding officer. No question shall be asked a Councilmember except through the presiding officer.
(Added Ord. 6033, 1961; Am. Ord. 73-132, § 1, eff. 10-7-73; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2011-6, § 3, eff. 4-10-11).

SEC. 2-313. SILENCE CONSTITUTES AFFIRMATIVE VOTE.

Unless a member of the Council states that he or she is not voting, silence shall be recorded as an affirmative vote.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-314. DECORUM.

(a) By Councilmembers. While the Council is in session, the members must preserve order and decorum, and a member shall neither, by conversation or otherwise, delay or interrupt the proceedings or the peace of the Council nor disturb any member while speaking or refuse to obey the orders of the Council or its presiding officer, except as otherwise herein provided.

(b) By Persons. While the Council is in session, all persons must preserve order and decorum. No person shall engage in conduct or speech which is designed to or is likely to provoke others to violent or riotous behavior, which disturbs the peace of the meeting by loud and unreasonable noise, which is irrelevant or repetitive, or which disrupts, disturbs or otherwise impedes the orderly conduct of the Council meeting.

(c) Breach of Decorum. The presiding officer shall request that a person who is breaching the rules of decorum cease such conduct. If, after receiving a warning from the presiding officer, a person persists in disturbing the meeting, the presiding officer may order the person to leave the Council meeting. If such person does not leave, the presiding officer may request the Police Department, or City Hall security personnel pending arrival of Police Department personnel, to take appropriate action.

Any person who resists removal may be charged with a violation of this Section and shall be guilty of a misdemeanor.
(Added Ord. 6033, 1961; Am. Ord. 68-56, 1968; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2001-9, § 1, eff. 3-18-01; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-315. PERSONS AUTHORIZED BEYOND PODIUM.

No person, except city officials and their representatives may be permitted beyond the podium in the Council Chamber without the express consent of the Council.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-316. SPECIAL COMMITTEES.

All special committees shall be appointed by the presiding officer, unless otherwise directed by the Council.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-317. READING OF ORDINANCES.

At the time of the adoption of an ordinance after reading of the title, any member of the Council may request the reading of the ordinance in full. If no such request is made, the reading of the ordinance in full shall be deemed to have been waived by the Council. If a member requests the reading of an ordinance in full, its reading can only be waived by a vote of four members of the Council.
(Added Ord. 6033, 1961; Am. Ord. 96-67, § 1, eff. 11-22-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-318. RULES OF PROCEDURE.

The rules set forth in this article shall serve as the primary Rules of Procedure for Council meetings. The Council may supplement those rules by the adoption of Council resolutions. The Council may also use the current edition of ROBERT'S RULES OF ORDER, NEWLY REVISED. It is understood that Robert's Rules are a guide only and may not be used to violate mandatory charter, code, or statutory provisions which may govern a particular matter.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-319. CLOSED SESSION ATTORNEY-CLIENT PRIVILEGE.

(a) City officials and employees, and former City officials or employees, providing written materials or an image of written materials, or disclosing the content of materials, that are clearly marked "Confidential Closed Session Attorney-Client Privileged" or disclosing the content of closed session attorney-client privileged discussions, to any unauthorized person is prohibited. For the purpose of this Section, "unauthorized person" shall mean any person or entity to whom disclosure is not approved in advance by a majority vote of Council, or in advance in writing by the City Attorney.

(b) Whistleblower Protection. If an official or employee has a reasonable good faith belief that one or more other city officials or employees are violating the law, but the belief is based upon confidential closed session attorney-client privileged communication or records, then that official or employee may then contact law enforcement authorities and disclose that confidential information necessary to address the claimed legal violation. Compliance with this paragraph shall not constitute a violation of this ordinance.

(c) A waiver of the closed session attorney-client privilege may be approved only by Council majority vote or pursuant to a claim or defense asserted by the City Attorney in a legal matter.

(d) If a person has any concern whether particular information or records are confidential and subject to this ordinance, that person may contact the City Attorney for written advice. If that person then follows the written advice provided by the City Attorney that the particular information or records are not confidential or may be disclosed to a certain person, then that shall constitute a complete defense to a claim of violation of this ordinance.

(e) The City Attorney, or independent counsel hired by the City Attorney or the Council, may prosecute willful violations as a misdemeanor with maximum penalties as set forth in this code. If a city elected official is suspected of violating this Section, the Council will hold a closed session and give direction on how to proceed.
(Added Ord. 2019-043, § 1, eff. 12-21-19).

ARTICLE 4 CITY MANAGER AND ADMINISTRATIVE ORGANIZATION

Sec. 2-401. Administrative Organization.
Sec. 2-402. City Manager Authority.
Sec. 2-403. Number of Positions Authorized.
Sec. 2-404. Delegation of Authority Generally.

SEC. 2-401. ADMINISTRATIVE ORGANIZATION.

The departments, divisions, offices and agencies of the city shall be those provided for in the annual budget of the city as approved by the Council. Any amendments shall be made by resolution as required by Section 801 of the Charter.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-402. CITY MANAGER AUTHORITY.

(a) The officer filling the position designated in the city budget as "City Manager" shall be vested with all of the powers, rights, duties and responsibilities imposed upon the City Manager by the Charter or by any city ordinance, resolution, agreement, document or other authority. Whenever the term "City Manager" is utilized in any such ordinance, resolution, agreement, document or authority, it shall mean the "City Manager" as so designated.

(b) The City Manager may execute all authorized contracts and documents on behalf of the City, except where applicable law requires otherwise.

(c) No official employee or agent of the City is authorized to modify, amend, delay, or waive any provision of a contract, development agreement, subdivision map, conditional use permit, or fee, without the express written approval of the City Manager, except where a provision of the Charter, Municipal Code, resolution, or an implementing document expressly provides such authority to a person other than the City Manager.
(Added Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2016-45, § 1, eff. 12-29-16).

SEC. 2-403. NUMBER OF POSITIONS AUTHORIZED.

The number of positions which are authorized in any of the offices or departments of the city shall be determined in the preparation of the annual budget. Such determination, however, shall not preclude the addition of positions during the fiscal year as may be needed in the service of the city, provided the funds to cover the expense of such employment are transferred, if necessary, from one of the existing appropriations, to the appropriation applicable to such employment. The Council is authorized to provide for such employment by ordinance or resolution and shall be deemed to have done so in the ordinance or resolution adopting the annual budget.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-404. DELEGATION OF AUTHORITY GENERALLY.

Unless expressly prohibited by charter, state law or this Code, whenever by the provisions of this Code any power is granted to, or a duty is imposed upon, a City employee, the power may be exercised or the duty performed by a duly appointed deputy, designee or other person duly authorized by law.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 5 EMERGENCY SERVICES ORDINANCE

Sec. 2-501. Title and Purpose.
Sec. 2-502. Definitions.
Sec. 2-503. Declaration of Emergency.
Sec. 2-504. Emergency Services Council.
Sec. 2-505. Emergency Services Organization.
Sec. 2-506. Powers and Duties of Director of Emergency Services During Disaster, Emergency or State of Emergency.
Sec. 2-507. Departments, Divisions, Services and Staff of the Emergency Services Organization.
Sec. 2-508. Suspension of Certain Regulations during Alarm Period.
Sec. 2-509. Volunteers.
Sec. 2-510. Closing of Public Ways.
Sec. 2-511. General Provisions.
Sec. 2-512. Punishment of Violations.
Sec. 2-513. Price Gouging.
Sec. 2-514. Response to COVID-19 Emergency.
Sec. 2-515. Outdoor Dining During COVID-19 Emergency.
Sec. 2-516. Third Party Food Delivery Service Charges.

SEC. 2-501. TITLE AND PURPOSE.

This article shall be known as the Emergency Services Ordinance of the City of Fresno. Its purpose is to implement and complement the California Emergency Services Act (Chapter 7, Division 1, Title 2 of the Government Code, Section 8550, et seq.), and shall be liberally construed to effect the purposes thereof.
(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-502. DEFINITIONS.

(a) Civil Defense or Emergency Services means the preparation for and carrying out of all emergency functions, other than functions for which military forces are primarily responsible, to prevent, minimize, and repair injury and damage resulting from disasters or emergencies.

(b) Disaster or Emergency shall mean any extraordinary air pollution, fire, flood, riot, storm, epidemic, earthquake, sudden and severe energy shortage or the threat thereof, or any actual or threatened enemy attack or sabotage, which causes or threatens to cause long term health issues, or loss of life or property and in which occurrences the responsibility devolves upon the regularly constituted authorities for the maintenance of public peace and order and the preservation of life and property. It shall not include any conditions resulting from a labor controversy. When proclaimed, as provided by this article, a disaster or emergency shall also mean "local emergency," within the meaning of the California Emergency Services Act.
(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-503. DECLARATION OF EMERGENCY.

(a) The Mayor, or in his or her absence, the Council President, or in the absence of both the Mayor and Council President, the City Manager may request the Council of the City of Fresno to proclaim the existence or threatened existence of a disaster or emergency and the termination thereof, if said Council is in session, or to issue such proclamation if said Council is not in session, subject to confirmation by said Council at the earliest practicable time;

(b) The Mayor, or in his or her absence, the Council President, or in the absence of both the Mayor and Council President, the City Manager may request the Governor to proclaim a state of emergency in the City or in an area in and around the City, when in the opinion of the Director the prevailing conditions are such that they are or are likely to become beyond the control of the services, personnel, equipment, and facilities of the City or the City in combination with any other local agency available to meet the emergency.
(Added Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-504. EMERGENCY SERVICES COUNCIL.

The Council of the City of Fresno shall serve as the Emergency Services Council for the City of Fresno. The Emergency Services Council shall be a disaster council as described in Article 10, Section 8610 of the Government Code, upon proper certification. The Council shall provide for continuity of government to ensure the proper performance of its duties as the Emergency Services Council and may reconstruct itself pursuant to Government Code Section 8643. Vacancies filled in such manner shall be for the sole purpose of serving as Emergency Service Council and only until vacancies are filled as required by the Charter.
(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-505. EMERGENCY SERVICES ORGANIZATION.

The City of Fresno Office of Emergency Services is hereby created and shall consist of the following:

(a) The City Manager, who shall be Director of Emergency Services pursuant to Section 2-506 of this article. If the City Manager is unavailable, as defined herein, an Assistant City Manager shall assume the powers and duties of the City Manager as Director of Emergency Services.

(b) Fire Chief, who shall be assistant Director of Emergency Services. In addition, Assistant directors, designated by the City Manager in successive order, who shall be Assistant City Managers and/or City Department Directors. In the absence of, or at the direction of, the Director and Assistant Director, the first available succeeding Assistant Director shall act on all matters within the purview of this article.

(c) The City of Fresno Emergency Preparedness Officer shall be the Emergency Services Coordinator, who shall have the responsibility to:

(1) Coordinate the City's Emergency Services Program in accordance with applicable State and Federal guidelines;

(2) Coordinate the development of the City's Emergency Operations Plan;

(3) Provide advisory assistance to responsible City departments concerning assigned operations during emergency situations; and

(4) Interact with the news media, the medical community, other public agencies, and the general public to promote disaster preparedness and mitigation activities.

(d) Such directors, heads, and chiefs of operating City departments, divisions, sections, or services as may be directed or required to render services connected with Emergency Services.

(e) Such representatives of civic, business, labor, veterans, professional, or other organizations having an official group or organization Emergency Service responsibility as may be appointed by the Director with the advice and consent or ratification of the Emergency Services Council.

(f) All officers and employees of this City, together with those volunteer forces enrolled to aid them during a disaster or emergency, and all groups, organizations, and persons, pressed into service under the provisions of this article, who by agreement or operation of law may be charged with duties incident to the protection of life and property in this City during a disaster or emergency.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 87-8, § 1, eff. 2-13-87; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-506. POWERS AND DUTIES OF DIRECTOR OF EMERGENCY SERVICES DURING DISASTER, EMERGENCY OR STATE OF EMERGENCY.

In the event of the proclamation of a disaster or emergency as herein provided or by the proclamation of a state of emergency by the Governor or the State Director of Emergency Services, the Director, or City Council by majority vote (except for subsections (a), (b), and (o) below), is hereby empowered to:

(a) Control and direct the effort and personnel of the Emergency Services Organization of this City for the accomplishment of the purposes of this article and to make and issue rules and regulations on matters reasonably related to the protection of life and property of the public;

(b) Direct coordination and cooperation between divisions, services, and staff of the Emergency Services Organization of this City, and to resolve questions of authority and responsibility that may arise between them;

(c) Request, contract for, receive, and implement State and Federal aid of all types, including measures available under California Emergency Services Act relating to disaster preparedness and relief;

(d) Order the opening or closing of any building or premises owned or controlled by the City, as in his discretion he may determine to be in the public interest;

(e) The powers granted under subsection (d) above may be so exercised as to any public building or premises when the agency in control thereof requests or allows such action;

(f) Establish at some central, safe, and enclosed place in this City, a room or rooms, which shall be in use in times of imminent public danger as the center from which the Emergency Services Organization shall be directed and coordinated. The Director shall establish one or more alternate control centers for use in case the primary control center is damaged, destroyed, or otherwise unusable;

(g) Designate, and have marked, as necessary, highway evacuation routes for use in connection with regional and state disaster plans;

(h) Represent the Emergency Services Organization of this City in all dealings with public or private agencies pertaining to disaster or emergency services.

(i) Make and issue rules, regulations, and proclamations on matters reasonably related to the protection of life and property as affected by such emergency; provided, however, proclamations must be confirmed at the earliest practicable time by the Emergency Services Council;

(j) Obtain vital supplies, equipment, and such other properties found lacking and needed for the protection of life and property of the people, and bind the City for the fair value thereof, and if required immediately, to commandeer the same for public use. Any expenditures made in such connection with emergency service activities, including mutual aid activities, shall be deemed conclusively to be for the direct protection and benefit of the inhabitants and property of the City;

(k) Command the aid of as many citizens of this community as he or she thinks necessary in the execution of his duties; such persons shall be entitled to all privileges, benefits, and immunities as are provided by state law for registered emergency service worker volunteers;

(l) Require emergency service of any City officer or employee and require any City officer or employee to remain available on a standby basis, for regular and emergency service, but without compensation for remaining so available, notwithstanding any salary resolution or other form of ordinance to the contrary;

(m) Order a general curfew applicable to such geographical areas of the City or to the City as a whole, as he or she deems advisable and applicable during such hours of the day or night as he or she deems necessary in the interest of the public safety and welfare, and reasonably calculated to avoid damage or injuries to persons, property,

or the public peace; the curfew is defined as, and shall be when so declared, a prohibition against any person or persons being or remaining in any alley, street, highway, public property or vacant premises within the curfew area;

(n) Make in the interest of public safety and welfare any or all of the following orders:

(1) Order the closing of all retail liquor stores;

(2) Order the closing of all beer taverns;

(3) Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor or beer is permitted;

(4) Order the discontinuance of the sale of beer and liquor;

(5) Order the discontinuance of selling, distributing, or giving away gasoline or other flammable liquid, flammable or combustible products in any container, other than a gasoline tank properly affixed to a motor vehicle;

(6) Order the closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution, or giving away of firearms, ammunition, or explosives of any character whatsoever;

(7) Order the discontinuance of selling, distributing, dispensing, or giving away of firearms, ammunition or explosive of any character whatsoever;

(8) Order the closing of any and all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing, or giving away of firearms or ammunition;

(9) Order the closing of any and all establishments and premises where crowds gather or tend to gather, including, but not limited to, theaters, stadiums, dance halls, gymnasiums, amusement areas, etc.;

(10) Issue other orders relating to the closing of businesses or areas or portions thereof or restricting the activity of similar establishments, which might be special targets of, or supply depots for, unruly persons; and

(11) Order a price or rate freeze on consumer goods or lodging facilities which may have limited availability as a result of an emergency or disaster situation; and

(o) Execute all ordinary powers as City Manager, all of the special powers conferred by this article or by resolution adopted pursuant thereto, all powers conferred by the Charter, any statute, ordinance, or agreement approved by the Council for the City of Fresno, or by any other lawful authority to exercise complete authority over the city and to exercise all police power vested in the city by the Charter.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 87-8, § 2, eff. 2-13-87; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2020-037, § 1, eff. 9-17-20).

SEC. 2-507. DEPARTMENTS, DIVISIONS, SERVICES, AND STAFF OF THE EMERGENCY SERVICES ORGANIZATION.

The functions, powers, and duties of the Fresno Emergency Services Organization shall be distributed among such departments, divisions, services, and special staff as the Director may prescribe subject to the approval of the Emergency Services Council by resolution. Insofar as possible, the form of organization, titles, and terminology shall conform to recommendations of the federal government and the Emergency Services agency of the State of California.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-508. SUSPENSION OF CERTAIN REGULATIONS DURING ALARM PERIOD.

The provisions of every law of this city and every administrative order made pursuant thereto, requiring any illumination (lighting) to be maintained in conflict with this article or with any rule or regulation made pursuant to this article, shall be deemed suspended during the period when any civil defense or emergency services warning signal is in effect requiring the blacking out or darkening of the city or any part thereof.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-509. VOLUNTEERS.

All persons, other than officers and employees of the city, volunteering services pursuant to provisions of this article, shall serve without compensation from the city. While engaged in such services, they shall have and enjoy the same immunities as officers and employees of the city performing similar duties. Volunteer registration shall be in compliance with current State Disaster Service Worker Program guidelines.

(Rep. and Added Ord. 68-56, 1968; based on former Sec. 2-2708; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-510. CLOSING OF PUBLIC WAYS.

A proclamation made pursuant to this article shall constitute a calamity under Penal Code Section 409.5 and be authority for the Chief of Police to take the steps therein provided and authorized and pursuant to authority of this article.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-511. GENERAL PROVISIONS.

The following general provisions apply to proclamations, rules and orders made pursuant to the foregoing sections of this article.

(a) Any proclamation or order promulgated pursuant to the authority conferred by this article shall be in force and effect from the time of promulgation and until amended or repealed by the Director, or Assistant Director, or until repealed by the Council.

(b) Any conditions or activities conducted or maintained contrary to the proclamation or orders are public nuisances.

(c) All proclamations and orders, other than the closing of public ways under Section 2-510 shall be in writing and shall be available for public inspection at the place and during the hours fixed by the Director.

(d) Persons going to or coming from or attending to any public utility, health or disaster or emergency service, or duly authorized by any news service, newspaper, radio, television, or network to gather or report the news, shall not be subject to any curfew ordered under this article.

(e) This article shall not be construed so as to conflict with any state or federal statute, regulation, or order relating to conditions in the city during the effectiveness of said proclamations or orders.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-512. PUNISHMENT OF VIOLATIONS.

It shall be a misdemeanor for any person during a disaster/or emergency:

(a) Willfully to obstruct, hinder, or delay any member of the emergency services organization in the enforcement of any lawful rule, proclamation, or regulation issued pursuant to this article, or in the performance of any duty imposed upon him by virtue of this article;

(b) To do any act forbidden by any lawful rules or regulations issued or curfew ordered pursuant to this article, or,

(c) To wear, carry, or display, without authority, any means of identification specified by the emergency services agency of the State of California or the City of Fresno.

(Rep. and Added Ord. 68-56, 1968; Rep. and Added Ord. 72-157, 1972; Am. Ord. 2005-9, § 1, eff. 3-19-05; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-513. PRICE GOUGING.

(a) The city hereby finds that during a state of emergency or local emergency, including, but not limited to, an earthquake, flood, fire, riot, storm, drought, plant or animal infestation, disease, or other natural or manmade disaster, some merchants have taken unfair advantage of consumers by greatly increasing prices for essential consumer goods and services. While the pricing of consumer goods and services is generally best left to the marketplace under ordinary conditions, when a declared state of emergency or local emergency results in abnormal disruptions of the market, the public interest requires that excessive and unjustified increases in the prices of essential consumer goods and services be prohibited. It is the intent of the city in enacting this act to protect residents from excessive and unjustified increases in the prices charged during or shortly after a declared state of

emergency or local emergency for goods and services that are vital and necessary for the health, safety, and welfare of consumers. Further, it is the intent of the city that this section be liberally construed so that its beneficial purposes may be served.

(b) Upon the proclamation of a state of emergency declared by the President of the United States or the Governor, or upon the declaration of a local emergency by the city, and for a period of 30 days following that proclamation or declaration, it is unlawful for a person, contractor, business, or other entity to sell or offer to sell any consumer food items or goods, goods or services used for emergency cleanup, emergency supplies, medical supplies, or building materials, for a price of more than 10 percent greater than the price charged by that person for those goods or services immediately prior to the proclamation or declaration of emergency. However, a greater price increase is not unlawful if that person can prove that the increase in price was directly attributable to additional costs imposed on it by the supplier of the goods, or directly attributable to additional costs for labor or materials used to provide the services, during the state of emergency or local emergency, and the price is no more than 10 percent greater than the total of the cost to the seller plus the markup customarily applied by the seller for that good or service in the usual course of business immediately prior to the onset of the state of emergency or local emergency.

(c) The prohibitions of this section shall be in effect at all times during which there is a declared emergency in the City, if deemed necessary to protect the lives, property, or welfare of the residents.

(d) A violation of this section is a misdemeanor punishable by imprisonment in a county jail for a period not exceeding one year, or by a fine of not more than one thousand dollars ($1,000), or by both that fine and imprisonment. Alternatively, an administrative citation may be imposed pursuant to Section 1-308 of this code with an administrative fine of up to $10,000 per violation.

(e) A violation of this section shall constitute an unlawful business practice and an act of unfair competition within the meaning of Section 17200 of the Business and Professions Code. The remedies and penalties provided by this section are cumulative to each other, the remedies under Section 17200 of the Business and Professions Code, and the remedies or penalties available under all other laws of this state.

(f) For the purposes of this section, the following terms have the following meanings:

(1) "State of emergency" means a natural or manmade emergency resulting from an earthquake, flood, fire, riot, storm, drought, plant or animal infestation, disease, or other natural or manmade disaster for which a state of emergency has been declared by the President of the United States or the Governor.

(2) "Local emergency" means a natural or manmade emergency resulting from an earthquake, flood, fire, riot, storm, drought, plant or animal infestation, disease, or other natural or manmade disaster for which a local emergency has been declared.

(3) "Consumer food item" means any article that is used or intended for use for food, drink, confection, or condiment by a person or animal.

(4) "Emergency supplies" includes, but is not limited to, water, flashlights, radios, batteries, candles, blankets, soaps, diapers, temporary shelters, tape, toiletries, plywood, nails, and hammers.

(5) "Medical supplies" includes, but is not limited to, prescription and nonprescription medications, bandages, gauze, isopropyl alcohol, and antibacterial products.

(6) "Building materials" means lumber, construction tools, windows, and anything else used in the building or rebuilding of property.

(7) "Goods" has the same meaning as defined in subdivision (c) of Section 1689.5 of the Civil Code.

(g) A business offering an item for sale at a reduced price immediately prior to the proclamation or declaration of the emergency may use the price at which it usually sells the item to calculate the price pursuant to subdivision (b).

(h) All businesses selling the goods or services outlined in this Section shall post notices provided by the city at front entrances informing the public of the provisions of this Section. Failure to post such notices shall be subject to administrative citation.
(Added Ord. 2020-009, § 1, eff. 3-16-20; Amd. Ord. 2020-015, § 1, eff. 4-23-20)

SEC. 2-514. RESPONSE TO COVID-19 EMERGENCY.

For so long as there is a City State of Emergency in effect due to the COVID-19 pandemic, the following shall apply:

(a) The City shall not discontinue utility and sanitary service to any customer for reason of nonpayment, and no late fees or interest shall accrue. Any customer whose utility service has been shut off or terminated for nonpayment shall have service restored for the duration of the declared emergency, without any reconnection charges.

(b) Non-essential City services may be suspended; responding to requests under the California Public Records Act may be delayed during and following the emergency.

(c) No refunds shall be owed or paid pursuant to the Money Back Guarantee, Fresno Municipal Code 12-2301, et seq., as a result of extended processing times related to the COVID-19 pandemic.

(d) Senior Hot Meals programs shall continue, with appropriate health and safety precautions in place.

(e) City busses shall be cleaned and disinfected at least daily. The City Transportation Department shall have full authority to modify or add bus routes and schedules to accommodate the public need and welfare during the emergency.

(f) As of March 4, 2020, there shall be instituted a price and rate freeze on consumer goods and lodging facilities which may have limited availability as a result of an emergency or disaster situation. No person or business shall charge a price greater

than 10% above prices charged for such goods as of March 4, 2020. This provision shall be enforced via the price gouging emergency ordinance approved by Council on March 16, 2020.

(g) Rent Deferral, Eviction Moratorium, and Foreclosures.

(1) To the extent allowed by State law, no residential tenant, including, without limitation, a mobile home tenant, in the City shall be evicted for nonpayment of rent during the state of emergency caused by the COVID-19 outbreak.

(2) To the extent allowed by State law, commercial landlords in the City are hereby prohibited from evicting commercial tenants for nonpayment of rent during the state of emergency caused by COVID-19, and for a period of 90 days after the declaration of local emergency is terminated.

(3) A tenant, whether residential or commercial, must notify their landlord in writing they cannot pay rent due to a COVID-19 related impact. Within ten days of this notice, the tenant must provide documentation to support the claim that they cannot pay rent. For purposes of this section, "in writing" includes e-mail or text communication to the landlord. Any documentation provided to support the claim is deemed to be adequate for this purpose in accordance with state law. Any medical or financial information provided to the landlord shall be held in confidence and used only for purposes of evaluating the tenant's claim.

(4) Tenants will have up to six months after the termination of the emergency declaration to repay any back-due rent. No interest, late fees, or other penalties shall accrue or be owed as a result of rent deferrals pursuant to this Section.

(5) This eviction moratorium shall be in effect continuously for so long as the City's declaration of local emergency is in effect, and for commercial tenants, for a period of 90 days following termination of the declaration of local emergency.

(6) A tenant may use this order as a legal defense in any action for unlawful detainer.

(7) Residents and businesses should not face foreclosure as a result of COVID-19. Lenders are encouraged to provide a forbearance agreement for up to six months for borrowers impacted by COVID-19, without impacting the borrower's credit. The city will follow all laws and orders of the State with respect to foreclosure protection.

(h) City staff shall apply for all available state and federal funding related to the COVID-19 emergency.

(i) The City Manager, or designee, is directed to identify funds and create a COVID-19 Emergency Response Fund to support City actions that are appropriate and necessary to address the impacts and exigencies arising from the COVID-19 pandemic. The City Manager, or designee, shall report this information to the Council at the next Council meeting and thereafter shall report to the Council as promptly and as often as is reasonably possible regarding the expenditures made

from the COVID-19 Emergency Response Fund. At a minimum, any fines collected as a result of price gouging, non-essential businesses remaining open, or other matters related to the COVID-19 pandemic shall be allocated to the COVID-19 Emergency Response Fund.

(j) Reserved.

(k) Bars and taverns as defined in City of Fresno Emergency Order 2020-01 (establishments with California Alcoholic Beverage Control (ABC) license types 40, 42, 48, 51, 57, 60, and 61) may provide curbside or delivery of alcoholic beverages so long as accompanied by food, if permitted by their CUP and State law, including, without limitation any ABC Notice of Regulatory Relief.

(l) Reserved.

(m) Upon confirmation of a positive COVID-19 case among an employee or customer of a business, the employer shall notify all employees of the possible exposure within 24 hours. Such notification shall maintain confidentiality of the individuals involved or affected, in compliance with Americans with Disability Act and privacy laws. An employer shall follow all local, state and federal public health requirements and recommendations, including sanitizing, and cooperating with contact tracing protocols. No cause of action shall exist against a business for COVID-19 infections alleged to stem from the business, so long as the business is in full compliance with State and local mandatory safety measures related to COVID-19.

(n) Any business ordered to close that remains open in violation of an Emergency Order of the city, shall alternatively be punishable by administrative citation. The city shall provide a warning, and thereafter noncompliance shall be subject to a fine of $1,000 for the first offense, $5,000 for the second offense, and $10,000 for the third or subsequent offense.

(o) If any provision of this Ordinance or its application to any person or circumstance is held to be invalid, then the reminder of the Ordinance, including the application of such part or provision to other persons or circumstances, shall not be affected and shall continue in full force and effect. To this end, the provisions of this Ordinance are severable.

(p) This Ordinance shall be immediately translated into Spanish, Hmong, and Punjabi, and accommodations made for all disabled persons to read its contents; it shall also be distributed to all local media and made prominently available on the City's website.

(Added Ord. 2020-010, § 1, eff. 3-19-20; Am. Ord. 2020-012, § 1, eff. 3-25-20; Am. Ord. 2020-016, § 1, eff. 4-23-20; Am. Ord. 2020-024, § 1, eff. 7-16-20; Am. Ord. 2020-036, §§ 2, 3, eff. 9-17-20; Am. Ord. 2021-030, § 1, eff. 6-17-21).

SEC. 2-515. OUTDOOR DINING DURING COVID-19 EMERGENCY.

Notwithstanding the provisions of FMC 15-2744, for so long as restaurants are prohibited from operating at full capacity due to an emergency order related to the COVID-19 pandemic, the following shall apply:

(a) Outdoor dining is permitted in common areas of shopping centers and parking lots, with permission of the property owner, and on City property, with permission of the City Manager. Outdoor dining may include consumption of alcohol so long as it is combined with consumption of food, all in compliance with California Alcoholic Beverage Control requirements.

(b) Proper social distancing shall be maintained with dining areas demarcated with tape or barriers. Excess seating shall be removed when feasible, or blocked off if the seating or tables are permanently affixed. For parking lots, every other parking stall may be used, and those stalls between stalls used for tables shall remain vacant, but no disabled person parking stalls may be used. Businesses shall also follow any additional State and County requirements in effect at the time.

(c) All employees must wear masks and wash hands frequently.

(d) This section is subject to further regulations issued by the City Manager, with approval by the Police Chief and City Attorney.

(e) Facilities that establish temporary outdoor dining facilities pursuant to the requirements of this ordinance, shall not be in violation of FMC sections 15-2744, 15-2403-B, 15-2407, 15-2408, 15-2409, 15-2411, or 15-2414 until this ordinance expires, is repealed, or is otherwise rendered ineffective. Temporary outdoor dining facilities established pursuant to this ordinance shall not be deemed a nuisance under FMC Section 15-6304, and shall not be subject to enforcement pursuant to Chapter 15, Article 63 of the Fresno Municipal Code until this ordinance expires, is repealed, or is otherwise rendered ineffective.

(f) Facilities that establish temporary outdoor dining facilities pursuant to the requirements of this ordinance, shall be permitted to provide limited outdoor entertainment, which does not disrupt neighboring businesses or residences, in accordance with the following limitations:

(1) A facility providing outdoor entertainment shall not increase capacity beyond the facility's normal seating capacity.

(2) Entertainment may only be provided on Thursdays, Fridays, Saturdays, Sundays, and holidays.

(3) Live music shall be limited to a maximum two-piece band.

(4) Entertainment shall comply with the music standards as set forth in FMC section 15-2744.

(g) This section shall expire and be repealed one year from the effective date unless extended by the City Council.

(Added Ord. 2020-020, § 1, eff. 5-21-20; Am. Ord. 2020-043, § 1, eff. 9-24-20).

SEC. 2-516. THIRD PARTY FOOD DELIVERY SERVICE CHARGES.

(a) **Definitions.** For purposes of this section, the following definitions apply:

(1) "City" means the City of Fresno.

(2) "Delivery Fee" means a fee charged by a Third-party Food Delivery Service for providing a Retail Food Establishment with a service that delivers food and beverages from such establishments to customers. The term does not include any other fee or cost that may be charged by a Third-party Food Delivery Service to a Retail Food Establishment, such as fees for listing or advertising the Retail Food Establishment on the Third-party Food Delivery Service platform or fees related to processing the online order, including, but not limited to, service fees, fees for facilitating Online Orders for pickup, and credit card processing fees.

(3) "Online Order" means an order placed by a customer through or with the assistance of a platform provided by a Third-Party Food Delivery Service, including a telephone order, for delivery or pick-up within the City.

(4) "Purchase Price" means the price, as listed on the menu, for the items contained in an Online Order, minus any applicable coupon or promotional discount provided to the customer by the Retail Food Establishment through the Third-Party Food Delivery Service. This definition does not include taxes, gratuities, and any other fees or costs that may make up the total amount charged to the customer or an Online Order.

(5) "Retail Food Establishment" means a restaurant, delicatessen, bakery, coffee shop, or other eat-in or carry-out service of processed or prepared raw and ready-to-eat food or beverages.

(6) "Third-party Food Delivery Service" means any website, mobile application, or other internet service that offers or arranges for the sale of food and beverages prepared by, and the delivery or pick-up of food and beverages from, no fewer than 20 Retail Food Establishments located in the City that are each owned and operated by different persons.

(b) **Fee limits.** The following limits shall apply any time Retail Food Establishments are restricted by law from allowing indoor dining, and for a period of 90 days after Retail Food Establishments are allowed to reopen at 50% or greater indoor customer capacity:

(1) It shall be unlawful for a Third-party Food Delivery Service to charge a Retail Food Establishment a Delivery Fee that totals more than 15 percent of the Purchase Price of each Online Order.

(2) It shall be unlawful for a Third-Party Food Delivery Service to charge a Retail Food Establishment any amount designated as a Delivery Fee for an Online Order that does not involve the delivery of food or beverages.

(3) It shall be unlawful for a Third-party Food Delivery Service to charge a Retail Food Establishment any combination of fees, commissions, or costs for the Retail Food Establishment's use of the Third-party Food Delivery Service that is greater than 5 percent of the Purchase Price of each Online Order. Fees, commissions, or costs do not include Delivery Fee.

(4) It shall be unlawful for a Third-party Food Delivery Service to charge a Retail Food Establishment any fee, commission, or cost other than as permitted in Subsections 1 through 3, above.

(5) It shall be unlawful for a Third-party Food Delivery Service to charge a customer any Purchase Price for a food or beverage item that is higher than the price set by the Retail Food Establishment without the approval of the Retail Food Establishment.

(6) It shall be unlawful for a Third-party Food Delivery service to retain any portion of amounts designated as a tip or gratuity. Any tip or gratuity shall be paid by the Third-party Delivery Service, in its entirety, to the person delivering the food or beverages.

(c) **Penalties and Enforcement.**

(1) A violation of this section is a misdemeanor punishable by imprisonment for a period not exceeding one year, or by a fine of not more than $1,000, or by both fine and imprisonment. Alternatively, an administrative citation may be imposed pursuant to Section 1-308 of this code with an administrative fine of up to $10,000 per violation.

(2) A violation of this section shall constitute an unlawful business practice and an act of unfair competition within the meaning of Section 17200 of the Business and Professions Code. The remedies and penalties provided by this section are cumulative to each other, the remedies under Section 17200 of the Business and Professions code, and the remedies or penalties available under all other laws of this state.

(Added Ord. 2020-036, § 1, eff. 9-17-20).

ARTICLE 6 PUBLICATIONS AND OFFICIAL ADVERTISING

Sec. 2-601. Official Newspaper.
Sec. 2-602. Necessary Proofs.
Sec. 2-603. Publication of Legal Notices.

SEC. 2-601. OFFICIAL NEWSPAPER.

Any newspaper of general circulation which is printed and published in the City of Fresno which meets the requirements of Sections 6000 to 6007 of the Government Code of the State of California pertaining to "Publications and Official Advertising", and which has also obtained a judicial decree in the Superior Court of the State of California in and for the County of Fresno under the provisions of Sections 6020 to 6027 of said Government Code pertaining to "Establishing Standard as Newspaper of General Circulation" shall be deemed an official newspaper of the City of Fresno in which shall be published all official advertising for the City of Fresno, save and except where such official advertising is required by law or otherwise or by an order of the Council to be published in a newspaper of general circulation printed and published outside the Fresno city limits.
(Added Ord. 5313, 1958, based on former Sec. 2-2601; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-602. NECESSARY PROOFS.

Every publisher of a newspaper who desires to take advantage of the privileges conferred by Section 2-601 shall file with the City Clerk the necessary proofs showing that his newspaper has procured the judicial decree specified by Section 2-601.
(Added Ord. 5313, 1958, based on former Sec. 2-2602; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-603. PUBLICATION OF LEGAL NOTICES

(a) All legal notices shall be posted on the City Clerk's website and published in the Fresno Bee, and also The Business Journal when a second publication is required by law.

(b) Legal notices subject to this requirement include:

(1) CEQA Environmental Determinations

(2) Notice of Public Hearings

(3) Notice of Federal Funds Available (NOFA)

(4) Housing Element

(5) Items requiring publication under HUD's Public Participation Process:

(i) Annual Action Plan

(ii) Substantial Amendment to the Annual Action Plan

(iii) Five Year Consolidated Plan

(iv) Consolidated Annual Performance and Evaluation Report

(v) Annual Report on the Effectiveness of Section 3 Program Report

(c) The City Clerk, in consultation with the City Attorney, may alter the list in subsection (b) from time to time as requirements change and as otherwise may be appropriate. (Added Ord. 2015-18, § 2, eff. 7-23-15).

ARTICLE 7 DISPLAY OF FLAGS AND EMBLEMS

Sec. 2-701. Display of POW/MIA Flag.
Sec. 2-702. Confederate Flag.

SEC. 2-701. DISPLAY OF POW/MIA FLAG.

So that the people of Fresno will not forget the sacrifices of those members of the United States armed forces who, after the termination of hostilities, remain prisoners of war or missing in action, as well as the sacrifices of missing United States nonmilitary personnel and civilians, the flag of the National League of Prisoner-of-War/Missing-in-Action (POW/MIA) Families, a black and white banner symbolizing the United States' missing, shall be displayed in front of the Fresno City Hall on each and every day that the Flags of the United States, the State of California, and the City of Fresno are displayed. At the discretion, and at administrative directive, of the City Manager, the POW/MIA flag may be displayed with the same frequency at other city facilities where the Flags of the United States, the State of California, and the City of Fresno are displayed. The display of the POW/MIA flag shall serve as a reminder to people everywhere of our country's firm resolve to achieve the fullest possible accounting for every member of the United States Armed Forces, and United States nonmilitary personnel and civilians.

This section shall cease to apply and the display requirement for the POW/MIA flag shall terminate upon a determination by the President of the United States that the fullest possible accounting has been made of all members of the Armed Forces and civilian employees of the United States who have been identified as prisoner of war or missing in action in Southeast Asia.
(Added Ord. 96-51, § 1, eff. 8-16-96; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-702. CONFEDERATE FLAG.

The City of Fresno, a California Municipal Corporation, may not display or sell the Battle Flag of the Confederacy, also referred to as the Stars and Bars, or any similar image, or tangible personal property inscribed with such an image, unless the image appears in a book, digital medium, or city museum that serves an educational or historical purpose.
(Added Ord. 2015-24, § 1, eff. 9-10-15).

ARTICLE 8 BOARDS AND COMMISSIONS

Sec. 2-801. Board and Commissions Created by Charter.
Sec. 2-802. Limited Boards and Commissions.
Sec. 2-803. Boards and Commissions Subject to the Brown Act.

SEC. 2-801. BOARDS AND COMMISSIONS CREATED BY CHARTER.

The following boards and commissions are created by the Charter:

Planning Commission (Sections 906, 907)

Civil Service Board (Sections 908, 909)

Retirement and/or Pension Boards (Section 910).

(Am. Ord. 81-157, § 7, eff. 12-11-81, based on former Sec. 2-901; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-802. LIMITED BOARDS AND COMMISSIONS.

All boards, commissions, committees and similar bodies not created by Charter, by ordinance or by resolution of the Council shall automatically terminate two years from their creation, unless otherwise specified by the Council.

(Am. Ord. 81-157, § 7, eff. 12-11-81; Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-803. BOARDS AND COMMISSIONS SUBJECT TO THE BROWN ACT.

(a) Posting of Agendas and Supporting Documents.

(1) For all boards and commissions subject to the Brown Act, all documents to be presented to or considered by the body, including agendas, staff reports, supporting documents, and previous meeting minutes, shall be provided to the City Clerk and posted in compliance with the Brown Act in the following locations:

(i) On the City Clerk's website. (Agendas, Minutes and Reports)

(ii) In a secured public space inside City Hall. (Agenda Only)

(iii) In a secured public space outside City Hall. (Agenda Only)

(2) All posting locations shall be accessible to the disabled.

(3) This section shall not apply to documents deemed confidential by law.

(4) Unless otherwise required by law, no documents shall be accepted for review by a board or commission unless they are submitted to the City Clerk at least twenty-four hours prior to the agenda item being heard. Nonetheless, the presiding officer of the board or commission shall retain discretion to accept additional documents at or prior to the time the board or commission item is to be heard.

(b) Training. Members of public boards and commissions shall receive annual training provided by the City Clerk (or designee) and the City Attorney (or designee) on how to run a meeting operated under the Brown Act, and an overview of the board or commission's rules of procedure by February 28 of each year.
(Added Ord. 2015-18, § 1, eff. 7-23-15).

ARTICLE 9 CONFLICT OF INTEREST

Sec. 2-901. Conflict of Interest Code.
Sec. 2-902. Penalties.
Sec. 2-903. Project Area Committee Members.

SEC. 2-901. CONFLICT OF INTEREST CODE.

(a) The Political Reform Act, Government Code Sections 81000, et seq., requires state and local government agencies to adopt and promulgate Conflict of Interest Codes. The Fair Political Practices Commission has adopted a regulation, 2 Cal Code of Regs. Section 18730, which contains the terms of a standard Conflict of Interest Code which can be incorporated by reference, and which may be amended by the Fair Political Practices Commission to conform to amendments in the Political Reform Act after public notice and hearings. The terms of such standard Conflict of Interest Code and any amendments to it duly adopted by the Fair Political Practices Commission are hereby incorporated by reference as the City's Conflict of Interest Code, along with the Appendix, which shall be that Council resolution in which employees are designated and disclosure categories are set forth, constitute the Conflict of Interest Code of the City of Fresno.

(b) Pursuant to Section 4 of the standard Conflict of Interest Code, designated employees shall file statements of economic interest with the City Clerk. Statements for all designated employees will be retained by the City Clerk.
(Am. Ord. 85-111, § 2, eff. 9-13-85; Am Ord. 97-62, § 1, eff. 12-6-97; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-902. PENALTIES.

A violation of any provision of this article shall constitute a misdemeanor and shall be subject to such additional penalties as are specified in the Political Reform Act of 1974 (Government Code Sections 81000 et seq.).
(Am. Ord. 85-111, § 2, eff. 9-13-85; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-903. PROJECT AREA COMMITTEE MEMBERS.

For purposes of this article, members of project area committees established under Community Redevelopment Law, Health and Safety Code Section 33000 et seq. shall be deemed designated employees.
(Added Ord. 87-161, § 1, eff. 12-18-87; Am. Ord. 97-62, § 2, eff. 12-6-97; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 10 ELECTIONS

Sec. 2-1001. Resolution Requesting County Clerk to Conduct Elections.
Sec. 2-1002. Time for Meeting to Install Elected Officers.
Sec. 2-1003. Filing Fees for Mayor and Council Candidates.
Sec. 2-1004. Filing Fee Waiver Petition.
Sec. 2-1005. Filing Fee Waiver Procedures.
Sec. 2-1006. Filing Fee Waiver Requirements.

SEC. 2-1001. RESOLUTION REQUESTING COUNTY CLERK TO CONDUCT ELECTIONS.

(a) The Council may by resolution request the County Clerk of the County of Fresno to assume and discharge any or all of the functions of the City Clerk relating to the conduct of municipal elections, as those functions are or may be hereafter delineated under the provisions of the Elections Code of California for the holding of elections in general law cities. The resolution may request such functions to be performed in all future city elections until the request is withdrawn by further resolution of the Council to be transmitted to the County Clerk not less than one hundred eighty days prior to any general or special municipal election, and may request and authorize the County Clerk to furnish all the voting equipment and supplies and to pay the cost of publications of notices and to compensate election officers and other necessary personnel.

(b) The resolution may request and authorize the County Clerk to:

(1) Establish precincts and designate the polling places within the city consisting of either regular election precincts established for holding state or county elections or as such precincts may be divided, altered or consolidated in accordance with the provisions of the Elections Code of California;

(2) Appoint the election officers required by the Elections Code of California to be appointed in municipal elections, from the register of applicants for such positions on file in his office, and present to the Council, at a regular meeting, a list of such precincts and polling places and the names of the election officers appointed to serve therein for approval and confirmation by the Council. The County Clerk may also be authorized to appoint substitute election officers and designate different polling places without approval and confirmation by the Council whenever, after such list has been approved and confirmed as provided herein, any election officer named in such list is unable or refuses to serve or a polling place designated in such list shall for any reason become unavailable.

(c) The resolution may request and authorize the County Clerk to canvass the returns of municipal elections and the returns of any district election with which a municipal election is consolidated, and to prepare and present to the Council, at its usual place of meeting, a certified abstract showing the whole number of votes cast for city candidates and city measures, the total votes cast for each candidate for a municipal office and for and against each city measure submitted in each election, and the number of votes cast at each precinct for each candidate for a municipal office and for and against each measure. The resolution shall provide

that the abstract of the returns of any municipal election shall be presented at the first regular Council meeting following completion of the canvass of the returns of a municipal election, at which meeting the Council shall declare the results of the municipal election.

(d) The resolution shall provide for the repayment to the County of its costs in the conduct of each municipal election including a reasonable charge for the use of voting equipment. Upon receipt of a bill from the County covering the total cost of conducting any consolidated election within the City, the Director of Finance shall bill and collect from any district participating in the consolidated election its proportionate share of such total cost.
(Rep. and Added Ord. 6253, Based on former Sec. 2-1405; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1002. TIME FOR MEETING TO INSTALL ELECTED OFFICERS.

On the first Tuesday following the first Monday of each odd numbered calendar year, the Council shall meet to install the newly-elected officers. This is the date on which new terms of office begin as set forth in Section 303 of the Charter. The installation of officers elected by special election to complete a term of office shall be at the meeting in which Council declares the special election results as set forth in Section 2-1001(c) of this Code.
(Rep. and Added Ord. 6253, 1963, Based on former Sec. 2-1406; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1003. FILING FEES FOR MAYOR AND COUNCIL CANDIDATES.

The City Council, by resolution, may establish filing fees for the elective office of Mayor and Councilmember. Those fees shall not exceed the cost reasonably borne for conducting the election for the seat in question. The costs to be covered by the filing fees shall include all costs associated with the candidate's filing, including, but not limited to, the proportional cost in administering the election by the City Clerk or County Clerk under contract to provide election services.
(Added Ord. 93-32, § 1, eff. 5-4-93; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1004. FILING FEE WAIVER PETITION.

In lieu of payment of the filing fees required under Section 2-1003, a candidate may gather signatures on a form to be provided by the City Clerk or County Clerk under contract to provide election services. For Council candidates, the number of signatures required shall be two hundred and fifty registered voters registered to vote within the Council district boundary. Candidates for Mayor shall collect five hundred signatures from voters registered within the City. A voter may sign both the nomination papers and the Filing Fee Waiver Petition for each candidate. A voter may only sign one filing fee waiver form for each office in which he or she is eligible to vote.
(Added Ord. 93-32, § 2, eff. 5-4-93; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1005. FILING FEE WAIVER PROCEDURES.

By resolution, the City Council may adopt further regulations to implement the filing fee waiver process. The filing fee waiver forms shall be provided at no cost to each candidate upon request. However, the elections official may, rather than provide the candidate with the number of forms necessary to gather the requisite signatures, or, upon request of a candidate, provide the candidate with a master form, which may be duplicated by the candidate for the purpose of circulating additional petitions. No other form except the furnished form, or duplicates thereof, shall be used by a candidate to secure signatures. All forms shall be made available commencing forty-five days before the first day for circulating nominating papers. However, in case of vacancies for which a special election is authorized or required to be held to fill the vacancy, and where the prescribed nomination period would commence less than forty-five days after the declaration of the vacancy by the City Council, the forms shall be made available within five working days after the City Council declaration. The forms to be used shall be in substantially the same form as the nomination papers signature form.
(Added Ord. 93-32, § 5, eff. 5-4-93; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1006. FILING FEE WAIVER REQUIREMENTS.

The fee waiver process shall be subject to the following provisions:

(a) Any registered voter may sign an in-lieu-filing-fee petition for any candidate for whom he or she is eligible to vote.

(b) If a voter signs more candidate's petitions than there are offices to be filled, the voter's signatures shall be valid only for those petitions which, taken in the order they were filed, do not exceed the number of offices to be filled.

(c) In-lieu-filing-fee petitions shall be filed at least fifteen days prior to the close of nomination period. Upon receipt of the minimum number of in-lieu-filing-fee signatures required, the elections official shall issue nomination papers provisionally. Within ten days after receipt of a petition, the elections official shall notify the candidate of any deficiency. The candidate shall then, prior to the close of the nomination period, submit a supplemental petition to cover the deficiency.

(d) Each candidate may submit a greater number of signatures to allow for subsequent losses due to invalidity of some signatures. The elections official shall not be required to determine the validity of a greater number of signatures than that required by this section.

(Added Ord. 93-32, § 4, eff. 5-4-93; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 11 CANDIDATES FOR ELECTIVE CITY OFFICE-CAMPAIGN CONTRIBUTION LIMITS

Sec. 2-1101. Title.
Sec. 2-1102. Purpose and application.
Sec. 2-1103. Definitions.
Sec. 2-1104. Timing for Fundraising.
Sec. 2-1105. Campaign contributions—Limitations on amount and document filing methods.
Sec. 2-1106. Loans.
Sec. 2-1107. Affiliated entities: aggregation of contributions.
Sec. 2-1108. Restrictions on contributions by candidates.
Sec. 2-1109. Return of excessive contributions.
Sec. 2-1110. Separate bank account for attorney's fees.
Sec. 2-1111. Enforcement authority—Complaints, legal action, investigatory powers.
Sec. 2-1112. Enforcement.
Sec. 2-1113. Applicability of other laws.

SEC. 2-1101. TITLE.

This article may be cited as the "Local Campaign Contribution Limits Ordinance" of the City of Fresno.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1102. PURPOSE AND APPLICATION.

The purpose of this article is to ensure that individuals and interest groups have a fair and equal opportunity to participate in municipal elective and governmental processes. This article is intended to supplement, and in no way conflict with, the Political Reform Act of 1974 ("Political Reform Act"), as amended. Statutory references to specific provisions of the Political Reform Act shall include its amendments.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1103. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the provisions, definitions of words and phrases, and interpretations of the Political Reform Act codified in Government Code Sections 81000 et seq., and its implementing regulations in California Code of Regulations, Title 2, Sections 18110 et seq., as amended, are to be relied upon in administering this article.

(b) "Election" means any direct primary election, any general municipal election, and any special municipal election as outlined in Charter Sections 1400 and 1401. For purposes of this article, "election" does not include recall elections or elections on ballot measures.

(c) "Enforcement Authority" means the officer, agent or organization designated by resolution of the Council to enforce the provisions of this article. Nothing in this article shall be construed as limiting the authority of any law enforcement agency or prosecuting attorney to enforce the provisions of this article.

(d) "Entity" means any person, other than an individual.

(e) "Majority-owned" means an ownership of more than 50 percent.

(f) "Person" means an individual, proprietorship, firm, partnership, joint venture, syndicate, business trust, company, corporation, limited liability company, association, committee, a controlled committee, and any other organization or group of persons acting in concert, as defined in Government Code Section 82047.

(g) "Political Party Committee" means a state central committee or county central committee of an organization that meets the requirements for recognition as a political party pursuant to Section 5100 of the Elections Code, as defined in Government Code Section 85206.

(h) "Small contributor committee" as defined in Government Code Section 85203, means any committee that meets all of the following criteria:

(1) The committee has been in existence for at least six months; and

(2) The committee receives contributions from 100 or more persons; and

(3) No one person has contributed to the committee more than two hundred dollars ($200) per calendar year; and

(4) The committee makes contributions to five or more candidates.

(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1104. TIMING FOR FUNDRAISING.

Though Charter Section 309 limits campaign solicitations and contributions to a time window of the election filing date through the end of the calendar year, the city shall not enforce that provision. Candidates are not limited as to the timing of fundraising for city offices.

(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2018-13, § 1, eff. 4-9-18).

SEC. 2-1105. CAMPAIGN CONTRIBUTIONS—LIMITATIONS ON AMOUNT AND DOCUMENT FILING METHODS.

(a) A person, other than a small contributor committee or a political party committee, may not make to any candidate for elective City office, and a candidate for elective City office may not accept from a person, any contribution totaling more than five thousand five hundred dollars ($5,500) per election. The provisions of this section do not apply to a candidate's contributions of his or her personal funds to his or her own campaign.

(b) A small contributor committee may not make to any candidate for elective City office, and a candidate for elective City office may not accept from a small contributor committee, any contribution totaling more than ten thousand nine hundred dollars ($10,900) per election.

(c) The contribution limitations set forth in this article shall be adjusted in January of every odd-numbered year to reflect any increase or decrease in the Consumer Price Index, as determined by the Fair Political Practices Commission pursuant to Government Code Sections 83124, adjusting the limits set forth in Government Code Section 85301(a) for subsection (a) hereinabove, and 85302(a) for subsection (b) hereinabove.

(d) It is the finding of the City Council that an elected officer, candidate, committee or other person required to file statements, reports, or other documents described by Chapter 4 of the Political Reform Act of 1974 (commencing with Government Code Section 84100) shall file those statements, reports, or other documents online or electronically with the City. The City's online system can and will operate securely and effectively and will not unduly burden filers. By way of this finding, the use of online or electronic filing is hereby authorized and required for elected officers, candidates, committees and other persons filing statements, reports or other documents described in Chapter 4 of the Government Code.

(1) In any instance in which an original statement, report or other document must be filed with the Secretary of State and a copy of that statement, report, or other document is required to be filed with the City, the filer may, but is not required to, file the copy online or electronically.

(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07; Am. Ord. 2014-3, §§ 1—3, eff. 2-10-14; Am. Ord. 2015-38, § 1, eff. 1-9-16; Am. Ord. 2016-33, § 1, eff. 10-21-16; Am. Ord. 2017-37, § 1, eff. 9-23-17; Am. Ord. 2023-024, § 1, eff. 9-15-23).

Editor's note—The contribution limits set out in subsections (a) and (b) reflect the adjustments adopted in 2020.

SEC. 2-1106. LOANS.

(a) The provisions of this article do not apply to loans and extensions of credit made to a candidate by a commercial lending institution in the lender's regular course of business on terms available to members of the general public for which the candidate is personally liable.

(b) In accordance with Government Code Section 85307, a candidate for elective City office may not personally lend to his or her campaign an amount, the outstanding balance of which exceeds one hundred thousand dollars ($100,000). A candidate may not charge interest on any loan he or she made to his or her campaign.

(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1107. AFFILIATED ENTITIES: AGGREGATION OF CONTRIBUTIONS.

(a) The contributions of an entity whose contributions are directed and controlled by any individual shall be aggregated with contributions made by that individual and any other entity whose contributions are directed and controlled by the same individual.

(b) If two or more entities make contributions that are directed and controlled by a majority of the same persons, the contributions of those entities shall be aggregated.

(c) Contributions made by entities that are majority-owned by any person shall be aggregated with the contributions of the majority owner and all other entities majority-owned by that person, unless those entities act independently in their decisions to make contributions.

(d) Contributions made by a husband and wife may not be aggregated, and shall be treated as contributions from separate persons. Contributions made by a child under 18 years of age is presumed to be a contribution from the parent or guardian of the child.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1108. RESTRICTIONS ON CONTRIBUTIONS BY CANDIDATES.

A candidate for elective office or committee controlled by that candidate may not make any contribution to any candidate for elective city office in excess of the limits for persons set forth in Section 2-1105(a).
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1109. RETURN OF EXCESSIVE CONTRIBUTIONS.

The candidate or the candidate's controlled committee shall return any amount in excess of the contribution limit set forth in this article to the contributor within 14 days of receipt. The excess contribution and the date of its return shall be reported on a form prepared or provided by the City Clerk.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1110. SEPARATE BANK ACCOUNT FOR ATTORNEY'S FEES.

(a) A candidate for elective city office or an elected city officer may establish a separate account to defray attorney's fees and other related legal costs incurred for the candidate's or officer's legal defense if the candidate or officer is subject to one or more civil or criminal proceedings or administrative proceedings arising directly out of the conduct of an election campaign, the electoral process, or the performance of the officer's governmental activities and duties. These funds may be used only to defray those attorney fees and other related legal costs.

(b) A candidate may receive contributions to this account that are not subject to the contribution limits set forth in this article. However, all contributions shall be reported in a manner prescribed by the Political Reform Act.

(c) Once the legal dispute is resolved, the candidate shall dispose of any funds remaining after all expenses associated with the dispute are discharged for one or more of the purposes set forth in the Political Reform Act.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1111. ENFORCEMENT AUTHORITY—COMPLAINTS, LEGAL ACTION, INVESTIGATORY POWERS.

(a) Any person who believes that a violation of any portion of this article has occurred may file a report with the Enforcement Authority. If the Enforcement Authority determines that there is reason to believe a violation of this article has occurred, he or she shall make an investigation. Whenever the Enforcement Authority has reason to believe a willful violation of this article has occurred or is about to occur, he or she may institute such legal action at such time as he or she deems necessary to prevent further violations or to redress prior violations.

(b) The Enforcement Authority shall have such investigative powers as are necessary for the performance of the duties prescribed in this article and may demand, and shall be furnished, records of campaign contributions and expenses at any time.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1112. ENFORCEMENT.

(a) Each candidate or treasurer who received part or all of the contributions in violation of the contribution limits of this article, shall pay promptly, from available campaign funds, if any, the amount received in excess of the amount permitted in this article, to the City Controller for deposit in the General Fund of the city, even though outstanding debts remain unpaid because of such forfeiture.

(b) Any person who knowingly or willfully causes another person to violate any provision of this article, or who aids and abets any other person in the violation of any provision of this article, shall be liable under the provisions of this section.

(c) Prosecution of violation of any provision of the article shall be commenced within four years after the date of the violation.

(d) The enforcement provisions of this section are in addition to, and not in place of, any means of enforcement or remedies at law.

(e) Any person who violates any of the provisions of this article shall, in addition to any other provisions of this article, be subject to the enforcement provisions set forth in the Political Reform Act, which are hereby incorporated by reference.

(f) The Enforcement Authority may institute such legal action at such time as he or she deems necessary to prevent further violations or to redress prior violations.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1113. APPLICABILITY OF OTHER LAWS.

Nothing in this article shall exempt any person from, or excuse such person's noncompliance with, applicable provisions of any other laws of the state or any other jurisdiction.
(Added Ord. 2003-84, § 1, eff. 11-2-03; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 12 REGISTRATION OF LOBBYISTS

Sec. 2-1201. Title.
Sec. 2-1202. Definitions.
Sec. 2-1203. Registration; Time.
Sec. 2-1204. Registration Fee.
Sec. 2-1205. Registration Requirements.
Sec. 2-1206. Renewal of Registration.
Sec. 2-1207. Registration Statement; Amendment; Termination.
Sec. 2-1208. Exemptions.
Sec. 2-1209. Enforcement.
Sec. 2-1210. Applicability of Other Laws.

SEC. 2-1201. TITLE.

This article may be cited as the "Registration of Lobbyists Ordinance" of the City of Fresno.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1202. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Elective Officer" shall mean the Mayor and councilmembers acting in their capacity as (1) Mayor or councilmember; or (2) member of the Redevelopment Agency; or (3) member of any board, commission or committee created by the Charter, ordinance or resolution of Council.

(c) "Lobbyist" means any person who is employed or contracts for economic consideration, other than reimbursement for reasonable travel expenses, to perform lobbying services which shall include communicating directly or through his or her agents with any elective officer or staff member for the purpose of influencing, supporting, promoting, modifying, opposing, delaying or advancing any municipal legislation.

(d) "Municipal legislation" means resolutions, motions, appeals, applications, petitions, hearings, nominations, ordinances, amendments, and other matters pending, proposed, or which may eventually come before the Council.

(e) "Person" means an individual, proprietorship, firm, syndicate, committee, labor organization, joint venture, joint stock company, partnership, association, club, company, limited liability company, corporation, business trust, or any other organization or group of persons acting in concert.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1203. REGISTRATION; TIME.

Every lobbyist shall register by filing a registration statement with the City Clerk no later than 10 days after accepting employment or contracting as a lobbyist.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1204. REGISTRATION FEE.

Each lobbyist required to file a registration statement under this article shall be charged a registration fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1205. REGISTRATION REQUIREMENTS.

The registration statement of a lobbyist shall include:

(a) If the person is an individual, the full name, business address, telephone number, the name and address of his or her employer, if any, or his or her principal place of business if the person is self employed.

(b) For all those persons other than an individual registering hereunder, the full name, business address and telephone number of each person who will be providing lobbying services on behalf of the lobbyist.

(c) The full name and business address of each and every client for whom the lobbyist is employed or contracts to provide lobbying services.

(d) Any other information required by the Council consistent with the purposes and provisions of this article.

(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1206. RENEWAL OF REGISTRATION.

Each registered lobbyist which will be conducting activities which require registration shall renew its registration annually by filing a registration statement with the City Clerk on or before April 1st of each year. Such lobbyist shall be charged a renewal of registration fee in the amount specified in the Master Fee Schedule except that lobbyists who file their initial registration within thirty days of April 1st shall not be required to renew their registration.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1207. REGISTRATION STATEMENT; AMENDMENT; TERMINATION.

If any change occurs in any of the information contained in a registration statement, an appropriate amendment shall be filed with the City Clerk by the tenth day of the month following the month in which the change occurred. However, if the change includes the addition of the name of a client, the registration statement of the lobbyist shall be amended

and filed to show that change prior to the lobbyist engaging in lobbying services as set forth in this article. Lobbyists which cease all activity which required registration shall file a notice of termination within 20 days after such cessation.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1208. EXEMPTIONS.

The provisions of this article are not applicable to:

(a) Any elected public official acting in his or her official capacity, or any governmental or public agency employee acting within the scope of his or her employment or any employee of the city acting upon terms and conditions of his or her employment.

(b) Any newspaper or other periodical of general circulation, book publisher, radio or television station (including any individual who owns, publishes, or is employed by any such newspaper or periodical, radio or television station) which in the ordinary course of business publishes news items, editorials, or other comments, or paid advertisement, which directly or indirectly urge action upon municipal legislation.

(c) A person when representing a bona fide church or religious society solely for the purpose of protecting the public's right to practice the doctrines of such church.

(d) An attorney acting on behalf of others in the performance of a duty or service, which duty or service lawfully can be performed for such other only by an attorney licensed to practice law in the State of California.

(e) A person who is a member or employee of any nonprofit organization when representing such nonprofit organization for the sole purpose of promoting the interest of such nonprofit organization, unless such employee is engaged primarily in lobbying services for such nonprofit organization.

(f) A person who is an employee of any business entity when representing such business entity for the sole purpose of promoting the interest of such business entity unless such employee is engaged primarily in lobbying services for such business entity.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1209. ENFORCEMENT.

The City Attorney may institute such legal action at such time as he or she deems necessary to prosecute, enjoin, or to redress a violation of any of the provisions of this article.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1210. APPLICABILITY OF OTHER LAWS.

Nothing in this article shall exempt any person from, or excuse such person's noncompliance with applicable provisions of any other laws of the State or any other jurisdiction.
(Added Ord. No. 95-73, § 1, eff. 10-20-95; Am. Ord. 2007-55, § 4, eff. 9-4-07).

ARTICLE 13 REDEVELOPMENT AND COMMUNITY DEVELOPMENT

Sec. 2-1301. Construction.
Sec. 2-1302. Agency.
Sec. 2-1303. Reserved.
Sec. 2-1304. Community.
Sec. 2-1305. Community Development.
Sec. 2-1306. Community Redevelopment Law
Sec. 2-1307. Council Declared to be the Agency.
Sec. 2-1308. Community Development Program.
Sec. 2-1309. Reserved.

SEC. 2-1301. CONSTRUCTION.

The general provisions and definitions contained in the Community Redevelopment Law, except as modified by this article, and the general provisions and definitions set forth in this article shall govern the construction of this article, unless the context otherwise requires.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1302. AGENCY.

"Agency" means the Council in the exercise of the powers granted to it as the Redevelopment Agency of the city by the Community Redevelopment Law and this article.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1303. RESERVED.

Editor's note—Ord. 2020-050, § 1, effective November 30, 2020, amended the Code by repealing former § 2-1303 in its entirety. Former § 2-1303 pertained to the housing and community development commission, and derived from Ord. 2007-55, effective September 4, 2007.

SEC. 2-1304. COMMUNITY.

"Community" means the city.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1305. COMMUNITY DEVELOPMENT.

"Community development" means the overall program formulated by the community for the physical, environmental, and economic improvement of the community, including in its scope, without limitation, provision for decent housing, a suitable living environment, and the expansion of economic opportunity for all within the community but with emphasis on the needs of persons of low and moderate income. Formulation of a community development program includes planning and replanning, design and redesign, construction, clearance, reconstruction, rehabilitation, historical preservation, open space development, neighborhood facilities development, economic development and industrial recruitment, and human services to further the objectives of the program, for all or part of designated survey and

activity areas singly or in combination, and also includes provision for such residential, industrial, recreational, public, or other facilities necessary or appropriate for the public welfare.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1306. COMMUNITY REDEVELOPMENT LAW.

"Community Redevelopment Law" means the Community Redevelopment Law of the State, as set forth in Part 1 of Division 24 (commencing with Section 33000) of the Health and Safety Code of the State, and as the same shall be amended.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1307. COUNCIL DECLARED TO BE THE AGENCY.

(a) The purpose of the action taken by the Council herein to assume all the rights, powers, duties, privileges and immunities heretofore vested in the Redevelopment Agency of the city, created and existing and heretofore functioning as an appointive agency pursuant to and under the Community Redevelopment Law, is to effectuate a consolidation and coordination of redevelopment project activities within the community with related planning, capital improvements, housing promotion and rehabilitation, public works, and other projects and activities conducted by the city. The principal objectives of such consolidation and coordination are the ultimate reduction or elimination of duplication of personnel effort through consolidation of functions, and improved coordination of the budgeting and administration or redevelopment project activities with community development activities of the city. The Council finds, therefore, that its action declaring itself to be the Agency will serve the public interest and promote the public safety and welfare in a more effective manner than the current organization.

(b) The Council declares that the Redevelopment Agency of the city has been designated and has continuously existed for more than three years. The Council has conducted a public hearing, duly noticed and held as required by the Community Redevelopment Law, and finds that there has been full public disclosure of all reports and proposals relating to the Council's intent to declare itself the Agency.

(c) Under and pursuant to the Community Redevelopment Law, the Council declares itself to be the Redevelopment Agency of the city. On the effective date of the ordinance adding this chapter to the Code the members of the Council shall become the members of the Agency and the appointive members heretofore comprising such agency shall cease to be members thereof and their appointive offices shall be vacated.

(d) The action of the Council herein declaring itself to be the Agency shall effect no change in the status of the Redevelopment Agency of the city as an existing public body, corporate and politic, which shall continue to exist as the same legal entity without change. Such

action shall not be construed as making the Agency a department or other part of the government of the city, but the city as a municipal corporation and the agency shall be and remain separate, independent legal entities.
(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1308. COMMUNITY DEVELOPMENT PROGRAM.

Projects comprising a community development program shall be formulated and proposed by the City Manager and/or the Executive Director of the Redevelopment Agency annually or as otherwise directed by the Council. Such projects shall include among their objectives the following:

(1) The elimination of slums and blight and the prevention of blighting influences and the deterioration of property and neighborhood and community facilities of importance to the welfare of the community, principally persons of low and moderate income;

(2) The elimination of conditions which are detrimental to health, safety, and public welfare, through code enforcement, demolition, interim rehabilitation assistance and related activities;

(3) The conservation and expansion of the city's housing stock in order to provide a decent home and a suitable living environment for all persons, but principally those of low and moderate income;

(4) Achievement of a balanced relationship, through coordinated and mutually supportive activities, of the community's physical facilities with the ability of the community to deliver services, principally for persons of low and moderate income;

(5) The attainment of a more rational utilization of land and other natural resources and the better arrangement of residential, commercial, industrial, recreational, and other needed activity centers;

(6) The reduction of the isolation of income groups within communities and geographical areas and the promotion of an increase in the diversity and vitality of neighborhoods through the spatial deconcentration of housing opportunities for persons of lower income and the revitalization of deteriorating or deteriorated neighborhoods to attract persons of higher income; and

(7) The restoration and preservation of properties of special value for historic, architectural or esthetic reasons through the redevelopment process or other means.

(Added Ord. 2007-55, § 4, eff. 9-4-07).

SEC. 2-1309. RESERVED.

Editor's note—Ord. 2020-050, § 2, effective November 30, 2020, amended the Code by repealing former § 2-1309 in its entirety. Former § 2-1309 pertained to commission functions in community development, and derived from Ord. 2007-55, effective September 4, 2007.

CHAPTER 3

CITY PERSONNEL

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ARTICLE 1 PERSONNEL

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SEC. 3-101. SCOPE OF ARTICLE. DEFINITIONS.

(a) Except as may be otherwise specifically provided herein, the provisions of this article shall apply and refer to employees in both the classified and the unclassified service.

(b) Unless a different meaning is clearly required by the context, the words and phrases defined in Article 2 of this chapter shall have the same meanings when used in the article.

(c) The terms "firefighting personnel" and "firefighting employee," whenever used herein, shall mean any employee of the city whose classification involves the performance of firefighting duties, and shall include, but is not limited to, any firefighter.

(d) The terms "police personnel," and "policing employee," whenever used herein, shall mean those employees of the police department whose classification involves the performance of peace officer duties, and shall include, but is not limited to, any police officer.

(e) Whenever in this article or in Article 2 of this chapter employees are designated by group or unit, such as, for example, "Management and Confidential Group," "Nonsupervisory Blue Collar Unit," etc., such designation shall mean and refer to employees in such groups or units as set forth in the current salary resolution or other action of the Council fixing the compensation of city employees.
(Rep. and Added Ord. 5988, 1961; Am. Ord. 76-54, § 1, eff. 7-11-76; Am. Ord. 82-79, § 1, eff. 9-17-82; Am. Ord. 2006-112, § 1, eff. 9-28-06; Ord. No. 2020-003, § 1, eff. 3-2-20).

SEC. 3-102. FULL-TIME EMPLOYMENT DEFINED. EMPLOYMENT OUTSIDE CITY SERVICE.

(a) Forty hours of actual attendance on duty, less time off on authorized leaves of absence as provided for in this article, shall constitute a minimum work week for all full-time employees of the city, except that fire fighting personnel who work a twenty-four hour shift shall be deemed full-time employees:

(b) Employees holding full-time permanent positions shall devote their whole time and attention to city service except as hereinafter provided. No such employee shall engage in or work at any other remunerative occupation, including self-employment, without having first obtained an outside work permit.

(1) **Application.** Every applicant for an outside work permit shall file an application with their Appointing Authority (City Manager, Department Head, Councilmember, City Attorney, City Clerk, or Retirement Administrator) on a standardized form. The Appointment Authority shall make a determination whether the proposed outside work is compatible with the applicant's city position and with the terms of this Section, or will adversely affect the efficiency of the employee.

(i) For those employees who report to a Councilmember, City Attorney or City Clerk, the Appointing Authority shall approve or deny the permit. The Council shall be notified of all work permits issued by the City Attorney or City Clerk.

(ii) For those employees of a Department or Division that reports to the City Manager, the Department Head shall forward the application and their recommendation to Personnel Services, which shall recommend issuance or disapproval of the permit, and the City Manager or designee shall either approve or deny the permit. In the event either the Department Head or Personnel Services recommends disapproval, the applicant shall be notified of such recommendation prior to submission of the work permit application to the City Manager.

(2) **Issuance.** The Appointing Authority shall issue an outside work permit unless there is cause for denial. Such cause may include but shall not be limited to one or more of the following reasons:

(i) The work request might be in violation of the California Government Code Section 1126, which currently states, "a local agency officer or employee shall

not engage in any employment, activity or enterprise for compensation which is inconsistent, incompatible, in conflict with or inimical to his or her duties as a local agency officer or employee"; or

(ii) The number or arrangement of the hours of employment in the proposed outside work is such that the efficiency of the applicant in their city position will be impaired to any degree; or

(iii) The applicant's city position is one which requires occasional or regular standby duty for emergency call and the proposed outside work would seriously restrict the availability for such emergency call; or

(iv) A medical disability or infirmity of the applicant (as indicated by sick leave record, injury records, or medical examination) may be aggravated by the proposed outside work or the medical condition and/or nature of the work for the city is such that the applicant's efficiency in their city position may be impaired by the outside work; or

(v) If not self-employed, failure of the applicant to indicate proof of workers' compensation insurance in the outside employment; or

(vi) The applicant has willfully mis-stated on the application any fact concerning the nature of the outside work.

(3) **Restrictions.** All approved work permits shall be issued subject to the restrictions as specified herein including, but not limited to the restrictions stated and implied in the California Government Code section 1126.

(4) **Time Limit. Hours.** An outside work permit shall be granted for such periods of time as the Appointing Authority prescribe but not to exceed a period of one year, and shall be renewable in the same manner as issuance of the original work permit. Each work permit shall show thereon the date of its expiration, and it shall be the duty of the employee holding such permit and desiring its renewal to file an application for renewal sufficiently in advance of the expiration date to avoid lapse. However, the Appointing Authority, in their discretion, may retroactively issue a work permit. The maximum number of hours for which a work permit may be approved shall be sixteen hours per week for eight and ten hour shift employees and twenty-four hours per week for twenty-four hour shift employees. Any exception to these time limits will be determined on an individual basis and will be governed by the nature of the work to be performed, the nature of the applicant's city duties, and other pertinent factors that have bearing on the individual's ability to devote their full time and attention to city employment.

(5) **Revocation.** The Appointing Authority shall revoke any outside work permit they issued for any reason which would have required the denial of such permit under Subsection (2) hereof, or for any other good cause. Work permits may be revoked where any act or behavior of the employee in performing their outside work reflects unfavorably upon their Department or the city. Written notice of the revocation

stating the effective date thereof shall be given to the employee who shall surrender the revoked permit to the Appointing Authority on or before the effective date of the revocation. An employee whose work permit has been revoked shall cease outside employment immediately upon receipt of such notice. Work permits automatically shall become invalid and remain invalid, without notice, for the duration of the time that an employee is:

(i) On any leave used for sickness or physical incapacity, such as Sick Leave or Annual Leave; or

(ii) Receiving workers' compensation injury pay (including California Labor Code Section 4850 pay and temporary disability pay). Exception: Employees with an approved work permit may continue to perform such outside work provided it is consistent with the work restrictions/limitations imposed by their treating physician and no light duty is available within the city. In cases of dispute regarding an employee's medical status, the opinion of the most recent specialist shall prevail.

(6) **Review.**

(i) Denial or revocation of a work permit by a Councilmember, City Attorney, or City Clerk shall be appealable by submitting a written request for review to the Council President within seven business days of the decision. The Council President shall establish an Ad Hoc Review Committee consisting of three Councilmembers (excluding the affected employee's Appointing Authority).

(ii) The City Manager's decision to deny or revoke a work permit shall be appealable by submitting a written request for review to the Director of Personnel Services within seven business days of the City Manager's decision. The request shall be reviewed by a Work Permit Review Committee, consisting of one management group member to be assigned by the City Manager, an employee representative selected by the affected employee, and a third member shall be a city employee in a permanent position jointly selected by the management group member and the employee's representative. No member of the committee shall be a member of the affected employee's Department.

(iii) The request for review shall include any evidence which bears upon the issuance, denial, renewal, or revocation of the work permit. The applicable review committee shall review the request and render a decision within forty-five days to issue, modify, deny, or revoke the work permit, using the criteria outlined in this Section.

(Rep. and Added Ord. 5988, 1961, based on former Sec. 2-1504; Am. Ord. 6073, 1962; Am. Ord. 71-128, 1972; Am. Ord. 82-85, § 1, eff. 9-17-82; Am. Ord. 2016-10, § 1, eff. 5-12-16; Ord. No. 2020-003, § 2, eff. 3-2-20).

SEC. 3-103. PERMISSIBLE POLITICAL ACTIVITIES.

The limitations on political activities imposed by Section 813 of the Charter shall not be deemed to prevent any person who holds a position in the administrative service, or whose name is on any register for appointment to a position in the administrative service, from

(1) Attending a political meeting;

(2) Enjoying entire freedom from all interference in casting a vote;

(3) Seeking signatures to any initiative or referendum petition affecting their rates of pay, hours of work, retirement, civil service, or other working conditions provided such activity is not carried on during hours of work.

(Rep. and Added Ord. 5988, 1961, based on former Secs. 2-814 and 2-815; Am. Ord. 69-90, 1969; Ord. No. 2020-003, § 3, eff. 3-2-20).

SEC. 3-104. LEAVE OF ABSENCE WITHOUT PAY.

The City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, may grant a leave of absence from duty without pay to an employee for a period not exceeding one hundred and twenty calendar days; provided, however, that if it shall appear that it is for the good of the service and the benefit of the city, they may extend such leave. Application for such leave shall show the following:

(a) That the position from which the leave is sought is a permanent position;

(b) The beginning and ending date of the leave requested;

(c) The reason for the applicant desiring such leave.

(Rep. and Added Ord. 5988, 1961, based on former Sec. 2-1666; Ord. No. 2020-003, § 4, eff. 3-2-20).

SEC. 3-105. REVOCATION OF LEAVE OF ABSENCE.

An employee may, at any time during leave of absence granted, be called back to duty by the Appointing Authority, subject to the approval of the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority. The employee shall be served personally or by certified mail with written notice of such order to return to duty. If the employee fails to report for duty at the specified time, and if the excuse for failure to so report is not satisfactory to the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, the employee shall be subject to suspension or dismissal for inexcusable absence without leave.

(Rep. and Added Ord. 5988, 1961, based on former Sec. 2-1667; Ord. No. 2020-003, § 5, eff. 3-2-20).

SEC. 3-106. RETURN TO POSITION AFTER LEAVE.

Upon the expiration of leave of absence duly granted in accordance with the provisions of this article, an employee shall be returned to the same or equivalent class as occupied when the leave of absence was granted, subject to the right of the Appointing Authority to require a medical examination, as provided in this article, before allowing the employee to return to duty.

(Rep. and Added Ord. 5988, 1961, based on former Sec. 2-1668; Ord. No. 2020-003, § 6, eff. 3-2-20).

SEC. 3-107. SICK LEAVE.

(a) Employees of the city whose salaries are fixed on a monthly or yearly basis, including those in the unclassified service, and part-time employees, shall accumulate Sick Leave with full pay according to the following schedule:

(1) Sick Leave shall be accumulated at the rate of eight hours for each completed calendar month of employment. Employees exempt from the payment of overtime may use accumulated Sick Leave after one completed calendar month of employment. For all other employees, Sick Leave may not be used until the employee has completed ninety days of employment. Firefighting personnel working a twenty-four-hour shift shall accumulate Sick Leave at the rate of one-half shift for each completed calendar month of employment.

(2) Part-time employees shall accumulate Sick Leave at the rate of eight hours of Sick Leave for every one hundred sixty hours worked, but not to exceed ninety-six hours of Sick Leave in any fiscal year. An employee holding a position to which more than one rate of pay applies, depending on the nature of the work performed, shall be compensated while on Sick Leave at the rate applicable to the work performed on the last day before going on Sick Leave.

(3) New employees holding full-time permanent positions who commence work on or before the fifteenth day of the month shall be entitled to full Sick Leave credit for that month. Such employees who commence work after the fifteenth day of the month shall not be entitled to Sick Leave credit for that month.

(4) Employees in positions compensated by a fixed monthly or yearly salary who are on leave or suspension without pay for more than eighty hours in any calendar month, and fire-fighting personnel working a twenty-four-hour shift who are on leave or suspension without pay for more than five working shifts in any calendar month, shall not accumulate Sick Leave for that month.

(b) The Council, in a salary resolution, city approved labor memorandum of understanding, or other action establishing rates of pay for city employees, may designate positions, classes of positions, or employee groups for which the calculation, accumulation, or allowance of Sick Leave is different from that provided in this section.

(c) Sick Leave may be taken for absences from duty made necessary by:

(1) Illness or sickness of the employee, the employee's child, parent, spouse, registered domestic partner, parent-in-law, grandparent, grandchild, or sibling, caused by factors over which the employee has no reasonable immediate control;

(2) Injury not incurred in line of duty except where traceable to employment by an employer other than the City of Fresno;

(3) Medical, dental or eye examination or treatment for the employee, or the employee's child, parent, spouse, registered domestic partner, parent-in-law, grandparent, grandchild, or sibling, which appointment cannot be made outside of working hours.

(d) An employee who absents themselves from duty on Sick Leave shall notify the head of the department or office, or such other person as departmental rules may provide, promptly on the first day of absence and any other day of absence if such absence is unscheduled and unanticipated, and failure to do so may be grounds for denial of such leave with pay for the period of absence.

(e) Sick Leave while on vacation is authorized only if the employee is confined to a hospital. Verification shall be submitted from the attending physician or the hospital.

(f) Upon the death of an employee's child, parent, spouse, registered domestic partner, parent-in-law, grandparent, grandchild, or sibling, the employee shall be allowed to use Sick Leave as is actually necessary to take care of funeral arrangements or attend the funeral, but not to exceed four working days; provided, however, that fire fighting personnel working a twenty-four hour shift shall be allowed to use Sick Leave not to exceed two regular shifts. Sick Leave to attend the funeral of a person other than the employee's child, parent, grandchild, or sibling may be granted an employee by the Appointing Authority. The Appointing Authority shall notify the Personnel Services Director when any employee is granted the use of Sick Leave for bereavement.

(g) Sick Leave may be used on the day of the birth of an employee's child.

(h) Holidays and regular days off occurring while an employee is on Sick Leave shall not be charged against such employee's Sick Leave credits, except that holidays shall be so charged if such employee is a part of the fire fighting personnel working a twenty-four-hour shift.

(i) Sick Leave shall not be allowed where the cause of the injury or illness is directly traceable to city employment or to any compensated employment or remunerative occupation of any kind, including self employment, unless the employee has exhausted temporary disability benefits under Section 3-118 and any other disability insurance payments. If such temporary disability benefits and other disability insurance payments are exhausted, the employee may use Sick Leave for such injury or illness.

(j) Sick Leave shall automatically terminate on the date of separation of city service, of the employee or on the date on which an ordinary disability allowance under the retirement system becomes effective.

(k) Inability to work because of intemperance is not an authorized reason for Sick Leave.

(l) Ordinary tiredness, restlessness, and muscular fatigue are not valid reasons for Sick Leave.

(m) Notwithstanding any other provisions of this section, whenever employees are paid on an hourly basis and the compensation of such employees, including Sick Leave with pay, is budgeted and funded under a program sponsored by another governmental entity, then such employee shall accumulate Sick Leave in accordance with subsection (a)(2) of this section to the extent of such funding.

(n) As used in this section, "child" means a biological, foster, or adopted child, a stepchild, a legal ward, a child of a domestic partner, or a child of a person standing in loco parentis of the employee; "parent" means a biological, foster, or adoptive parent, a stepparent, or a legal guardian of the employee.
(Added Ord. 5988, 1961, based on former Secs. 2-1670 and 2-1671; Am. Ord. 6049, 1962; Am. Ord. 6290, 1963; Am. Ord. 6666, 1965; Am. Ord. 70-77, 1970; Am. Ord. 72-20, 1972; Am. Ord. 73-116, § 1, eff. 9-2-73; Am. Ord. 79-52, § 1, eff. 4-27-79; Am. Ord. 82-85, § 2, eff. 9-17-82; Am. Ord. 83-75, § 1, eff. 7-1-83; Am. Ord. 83-131, § 1, eff. 10-21-83; Am. Ord. 91-119, § 1, eff. 12-13-91; Am. Ord. 2017-67, § 1, eff. 1-18-18; Ord. No. 2020-003, § 7, eff. 3-2-20).

SEC. 3-108. LEAVE FOR VACATION.

(a) All employees who are employed in permanent positions shall accumulate Vacation Leave with pay in accordance with the salary resolution or applicable city approved labor memorandum of understanding, for each completed calendar month of employment.

When any such employment [employee] commences work on or before the fifteenth day of a calendar month, they shall be credited with the Vacation Leave accrual for that month. Entitlement to Vacation Leave accumulation in this subsection shall commence on the first day of the month following the date on which the employee shall have been continuously employed for the prescribed period.

(b) The time at which an employee shall take Vacation Leave shall be determined by the Appointing Authority with due regard for the wishes of the employee and particular regard for the needs of the service.

(c) No employee shall be entitled to any Vacation Leave credit that will exceed the accumulation limit as listed in the salary resolution or applicable city approved labor memorandum of understanding; however, the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, may allow an additional accumulation of not to exceed twenty per-cent of such limits if they shall find an employee was prevented from reducing their Vacation Leave accumulation below the limit applicable to them by (i) absence from duty on account of injury compensable under Section 3-118; or, (ii) an unexpected emergency affecting the public peace, health or safety which precluded their absence from duty; or (iii) a refusal of the employee's department head

of a written request for Vacation Leave submitted by the employee at least one month, and not more than six months, prior to the month in which the employee's maximum accumulation of unused Vacation Leave credit exceeds the limit applicable to their position and length of continuous service; but provided further, that any excess accumulation so allowed shall be automatically cancelled to the extent of any excess over the applicable limit remaining to the credit of such employee (a) ninety days after the date of their return to duty from absence as provided in provision (i) hereinabove; or (b) ninety days after the expiration of the period of emergency, as provided in provision (ii) hereinabove; or (c) ninety days after the date on which the employee's maximum accumulation of unsaved Vacation or Leave exceeded the limit applicable to their position and length of continuous service, pursuant to provision (iii) hereinabove, unless extended one or more such ninety-day periods by refusal of written request or requests for Vacation Leave submitted during the original or subsequent ninety-day periods.

(d) Vacation Leave credit which was earned by service in any calendar month, or, in the case of part-time employees, which was earned because of the completion of a unit of one hundred and sixty hours of work during any calendar month, shall be allowed and become creditable to the employee's unused accumulation of Vacation Leave as of the first day of the following month.

(e) Employees in permanent positions who are on suspension or leave without pay for more than eighty hours in any calendar month, and fire-fighting personnel working a twenty-four-hour shift who are on suspension or leave without pay for more than five working shifts in any calendar month, shall not accumulate Vacation Leave for that month.

(f) Formerly subsection (k) (Repealed Ord. 6943, 1967).

(g) If a holiday occurs during a vacation, it shall not be charged against Vacation Leave except in the cases of employees who accrue Holiday Leave on a monthly basis.

(h) Notwithstanding any other provisions of this section, whenever employees are in part-time service and are paid on an hourly basis, compensation of such employees, including vacations, is budgeted and funded under a program sponsored by another governmental entity, then such employee shall be granted Vacation Leave in accordance with this section.

(i) In a salary resolution, city approved labor memorandum of understanding, or other action of the Council establishing the rates of pay of employees in the city service, may be designated positions, classes of positions, or employee groups for which the rate of, calculation of, or accumulation of Vacation Leave credit shall be different from that provided in this section.

(Added Ord. 5988, 1961, based on former Secs. 2-1673 and 2-1675; Am. Ord. 6306, 1963; Am. Ord. 6477, 1964; Am. Ord. 6943, 1967; Am. Ord. 67-54, 1967; Am. Ord. 70-77, 1970; Am. Ord. 73-116, § 3, eff. 9-2-73; Am. Ord. 76-54, §§ 2, 3, eff. 7-11-76; Am. Ord. 76-112, § 1, eff. 1-2-77; Am. Ord. 82-85, §§ 3—6, eff. 9-17-82; Am. Ord. 89-120, § 1, eff. 10-3-89; Ord. No. 2020-003, § 8, eff. 3-2-20).

SEC. 3-109. LEAVE FOR COMPELLED ATTENDANCE IN COURT OR ADMINISTRATIVE HEARINGS.

(a) With the approval of the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, any employee who is compelled by subpoena to attend any hearing or trial for the purpose of testifying during their regular work hours for the City, may be entitled to do so without loss of pay during the period they are required to remain in attendance at such hearing or trial. If the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, has approved the employee's attendance at such hearing or trial without loss of pay the employee shall demand and obtain from the person who subpoenas them any fee allowed by law or otherwise payable for such attendance in court or hearing, and shall promptly pay over to the Controller the full amount of all fees received for such attendance.

(b) Any employee who is required by the City Attorney or their designee to attend for the defense of an action against the city any civil court proceeding or administrative hearing during their regular work hours wherein they or the city, or both, are parties defendant as a result of an incident arising out of or occurring in the course of employment, or wherein testimony, shall be entitled to do so without loss of pay while required to be in attendance in court or hearing if the City Attorney or their designee, determines that such attendance is necessary for a proper defense of the action. If an employee is required to attend any such proceeding or hearing on a day off, they shall be entitled to overtime if it is required under Section 3-117 or applicable city approved labor memorandum of understanding.

(c) Any employee who is required to attend during their regular work hours the trial of any civil action in court as a party plaintiff where the action arises out of or during the course of employment with the city shall be entitled to a leave of absence with pay if the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, determines the absence is primarily for the benefit and protection of the city's interest and the employee shall be entitled to a leave of absence without pay determined the absence is primarily for the employee's own benefit.
(Added Ord. 5988, 1961; Ord. No. 2020-003, § 9, eff. 3-2-20).

SEC. 3-110. LEAVE FOR JURY DUTY.

All employees shall receive their regular wages or salary during the time they are required to be absent from the duties of their position to attend any court in response to a summons for jury duty or while service on a jury, but shall pay over to the city any fees received for such attendance or service. This section does not apply to elective voluntary jury service, such as grand jury service.
(Added Ord. 5988, 1961; based on former Section 2-1507; Ord. No. 2020-003, § 10, eff. 3-2-20).

SEC. 3-111. MILITARY LEAVE.

Employees shall be entitled to such military leaves of absence as are provided for by Division II, Part 1, Chapter 7 of the Military and Veterans Code of California, including such leaves with pay as are provided therein, and subject to the rights, benefits, and limitations provided therein and in the Charter, this Code, administrative orders and/or the salary resolution pertaining to city service.
(Added Ord. 6049, 1962, based on former Sec. 2-1669; Am. Ord. 73-116, § 4, eff. 9-2-73; Ord. No. 2020-003, § 10, eff. 3-2-20).

SEC. 3-112. LEAVE FOR WORKERS' COMPENSATION MEDICAL EXAMINATIONS, MEDICAL TREATMENT, AND ATTENDANCE AT—WORKERS' COMPENSATION APPEALS BOARD HEARINGS.

Employees who have been injured in the course and scope of their employment with the city and who are required, as a result of such injury, to be absent from duty to undergo medical examinations or treatment authorized by the city's workers' compensation administrator or the Workers' Compensation Appeals Board or to attend hearings of the Workers' Compensation Appeals Board may be granted leaves with pay for such absences by the Personnel Director when such absences are determined to be in the best interest of the city.
(Added Ord. 5988; Am. 6049, 1962; Am. Ord. 91-34, § 1, eff. 5-17-91; Ord. No. 2020-003, § 12, eff. 3-2-20)

SEC. 3-113. SUBSTITUTE LEAVE; LEAVE OF ABSENCE WITH PAY FOR FIRE FIGHTING PERSONNEL WHERE SUBSTITUTE PROVIDED.

(a) Subject to the conditions and limitations provided in this section firefighting personnel of the Fire Department, during the time of incapacity for the performance of duty because of illness or injury not incurred in the performance of employment with the city or with any other employer, shall be entitled to a leave of absence with full pay if a qualified substitute is provided to perform the duties of their position. Such leave of absence shall be designated as "substitute leave."

(b) The right to substitute leave shall be limited to firefighting personnel who are working a twenty-four hour shift at the time the incapacity for duty occurs.

(c) No firefighting personnel who is entitled to substitute leave unless they have first exhausted all the Sick Leave, Vacation Leave, and Holiday Leave available on the date the substitute leave commences or which becomes available if the substitute leave continues into a new fiscal year.

(d) No firefighting personnel who is eligible for service retirement, or who is qualified for disability retirement under the Fresno Fire and Police Retirement System shall be entitled to substitute leave, and before any application for substitute leave for such a firefighting personnel may be approved, there shall be filed with the department head the certification of a city Physician that has examined the firefighting personnel and has found the firefighting personnel's incapacity for performance of duty is not permanent, or anticipated

to be extended duration; provided, however, that nothing contained in this subsection shall be deemed to limit or restrict any right or privilege under the provisions of such retirement system to request a determination by the Retirement Board of the applicant's eligibility for disability retirement.

(e) A schedule of substitution, listing the names of all substitutes and the shifts they will work, shall accompany each application for substitute leave, and may be amended from time to time when necessary to add or delete the name of a substitute. The schedule, and any amendments thereto shall be signed by each listed substitute and shall contain a statement over their signature assigning to the firefighting personnel on leave all right to salary and all other benefits, except benefits resulting from on-the-job injury, which shall accrue on account of work performed as a substitute and that for the purpose of payment of salary or the payment of accrual of such benefits, the city may consider the work as having been actually performed by the firefighting personnel on leave. No fire fighting personnel shall work as a substitute for more than one working shift in any calendar week. The schedule of substitution shall be subject to the approval of the department head or their designee.

(f) In cases where the firefighting personnel claims the illness or injury is industrial but no final determination has been made, such illness or injury may nevertheless be deemed non-industrial for the purpose of eligibility for substitute leave, until such final determination has been made; provided, if such final determination is that the illness or injury is industrial, all payments of salary to such firefighting personnel while they were on substitute leave shall be deducted from any entitlement due under Section 3-118 of this Code.

(g) Substitute leave shall extend for the duration of the incapacity of the firefighting personnel for the performance of duty or until the firefighting personnel is separated from city service or retired under the provisions of the Fresno Fire and Police Retirement System; provided, that no firefighting personnel who is eligible for any retirement and who is permanently incapacitated from returning to the duties of their position and would have otherwise been separated from service but for entitlement to substitute leave shall be allowed to remain on substitute leave for any period which, when added to their prior service, would allow the firefighting personnel to accumulate ten years of service; and provided further, that in no event shall such leave be allowed for a total period of more than six months on account of any one illness or injury. The department head or their designee may require such further medical examinations of a firefighting personnel on substitute leave as the department head or their designee may deem advisable to determine the firefighting personnel's continued eligibility for such leave.

(h) Written application for substitute leave, accompanied by the required schedule of substitution, shall be filed in duplicate with the department head. The department head, upon approval of the application, shall forward a copy thereof to the Director.
(Added Ord. 6094, 1962; Ord. No. 2020-003, § 13, eff. 3-2-20).

SEC. 3-114. SUBSTITUTE LEAVE; LEAVE OF ABSENCE WITH PAY FOR POLICE PERSONNEL. OVERTIME CREDIT DONATED.

(a) Subject to the conditions and limitations provided in this section a police personnel of the Police Department, during the time of incapacity for the performance of duty because of illness or injury not incurred in the performance of employment with the city or with any other employer, shall be entitled to a leave of absence with full pay if overtime credit donations by other police personnel are made as provided in this section and if such leave is approved by the Chief of Police or their designee. Such leave of absence shall be designated as "substitute leave."

(b) No police personnel shall be entitled to substitute leave unless they have first exhausted all the Sick Leave, Vacation Leave, holiday credit, and overtime credit available on the date the substitute leave commences or which becomes available if the substitute leave continues into a new fiscal year.

(c) No police personnel who is eligible for service retirement, or who is qualified for disability retirement under the Fresno Fire and Police Retirement System shall be entitled to substitute leave, and before any application for substitute leave for such a police personnel may be approved, there shall be filed with the department head the certification of the city physician that has examined the police personnel and has found that the police personnel's incapacity for performance of duty is not permanent, or anticipated to be of extended duration; provided, however, that nothing contained in this subsection shall be deemed to limit or restrict any right or privilege under the provisions of such retirement system to request a determination by the Retirement Board of the police personnel's eligibility for disability retirement.

(d) Written application for substitute leave shall be made to the Chief of Police. The application shall contain a schedule of proposed donations and shall include the written authorization of each police personnel who has agreed to donate the equivalent of one or more days of time from their accumulated overtime credit to the credit of the police personnel requesting substitute leave. In the authorization, each donor shall agree that they assign to the police personnel on leave all right to salary and other benefits which shall accrue on account of time donated by them. When donation is made by a police personnel of a different class from that of the police personnel on substitute leave, the value of the time donated shall equal the value of the time received by the police personnel on leave, computed to the nearest hour. For the purpose of payment of salary or the payment or accrual of such benefits the city may consider the work as having been actually performed by the police personnel on leave. The schedule of donations shall be subject to the approval of the Chief of Police, and, upon their approval of the leave of absence and the substitute credits, they shall forward a copy thereof to the Director.

(e) In cases where the police personnel claims the illness or injury is industrial but no final determination has been made such illness or injury may nevertheless be deemed non-industrial, for the purpose of eligibility for substitute leave until such final determination has been made provided, that if such final determination is that the illness or injury is

industrial, all accumulated overtime credits donated to and used by such police personnel while on substitute leave shall be restored to the police personnel who donated such credits.

(f) Substitute leave may extend for the duration of the incapacity of the police personnel for the performance of their duty or until the police personnel is separated from city service or retired under the provisions of the Fresno Fire and Police Retirement System; provided, that no police personnel who is eligible for any retirement and who is permanently incapacitated for return to the duties of their position and would have to remain on substitute leave for any period which, when added to their prior service, would allow them to accumulate ten years of service; and provide further, that in no event shall such leave be allowed for a total period of more than six months on account of any one illness or injury. The department head may require such further medical examinations of a police personnel on substitute leave as may be deemed advisable to determine the police personnel's continued eligibility for such leave.
(Added Ord. 6287, 1963; Ord. No. 2020-003, § 14, eff. 3-2-20).

SEC. 3-115. UNAUTHORIZED ABSENCE AS DEEMED RESIGNATION.

(a) An employee who without prior authorization is absent for three consecutive regular working days, or two shifts in the case of a fire-fighting personnel working 24-hour shifts, shall be deemed to have resigned effective as of the end of the day on which they last performed any of the duties of their position or the last day they were absent with prior approved leave; provided, however, the employee shall not be deemed to have so resigned if the employee returns to their regularly assigned duties at the commencement of the next regular working day or on-duty shift or obtains written approved leave by their appointing authority following the expiration of the aforementioned period of absence or failure to discharge duties. Within fifteen calendar days after the effective date of such resignation, such employee may file with the appointing authority a written request for reinstatement. The appointing authority, in conjunction with the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, may reinstate the employee on the appointing authority's finding there is good cause for the absence. In the event an employee is reinstated, such reinstatement shall constitute the period of such absence as a retroactive leave of absence without pay, unless the appointing authority determines there was no fault on the employee's part and allows the use of the employee's paid leave. This subsection shall not apply to elected officers or members of boards or commissions.

(b) An elective officer has resigned when their elective office becomes vacant under the provisions of the Charter or when they have filed a resignation in writing addressed to the Mayor, Council, or the City of Fresno with the Mayor or City Clerk. Any other officer or employee may resign by tendering their resignation in writing to the Director or appointing authority. A written resignation shall be effective on the date designated therein, and if no date is so designated, it shall be effective immediately.
(Added Ord. 73-116, § 5, eff. 9-22-73; Ord. No. 2020-003, § 15, eff. 3-2-20).

SEC. 3-116. HOLIDAYS.

(a) Unless modified by a city approved applicable labor memorandum of understanding or salary resolution, all employees in permanent positions shall be entitled to a leave of absence of no more than eight hours without loss of pay on the following holidays:

(1) January 1.

(2) The third Monday in January.

(3) The third Monday in February.

(4) The last Monday in May.

(5) July 4.

(6) The first Monday in September.

(7) November 11.

(8) Thanksgiving Day.

(9) The Friday after Thanksgiving Day.

(10) December 25.

(11) Any day or part of a day declared by the Council, by ordinance or resolution, to be a holiday.

(b) If January 1st, July 4th, November 11th, or December 25th falls upon a Sunday, the Monday following is a holiday.

(c) Unless modified by an applicable city approved labor memorandum of understanding or salary resolution, all employees in permanent positions who are required to and do work on any of the holidays specified in Subsection (a) of this section, shall be entitled to additional compensation or compensating time off for such work, in accordance with the overtime provisions applicable to the position, if any.

(d) When any holiday listed in subsection (a) hereof falls on a Saturday, eight hours shall be credited, on the first day of the next calendar month, to the Holiday Leave bank of each employee entitled to leave for holidays pursuant to this section; provided however, that any such employee who is required to and does work on any such Saturday holiday, and receives overtime compensation for such work, shall not be entitled to any Holiday Leave credit on account of such holiday. This subsection shall not apply to any such employee whose regularly scheduled work week consists of working days which are other than Monday through Friday, or to any temporary employee.

(e) When the regularly scheduled work week of an employee entitled to leave for holidays pursuant to this section consists of working days which are other than Monday through Friday, and a holiday falls on a regular day off, eight hours shall be credited, on the first day of the next calendar month, to Holiday Leave bank of such employee; provided, however, that

any such employee who is required to and does work on any such holiday, and receives overtime compensation for such work, shall not be entitled to any Holiday Leave credit on account of such holiday. This subsection shall not apply to temporary employees.

(f) Unless modified by an applicable city approved labor memorandum of understanding or salary resolution, every employee in a permanent position shall be entitled to a leave of absence of eight hours without loss of pay, or additional Holiday Leave as hereinafter provided, on each anniversary of the employee's birthday.

(g) (1) Notwithstanding any other provisions contained in this article, the provisions of this article relating to overtime pay, compensating time off for holiday work, and leave for birthday anniversaries shall not apply to firefighting personnel of the fire department who work a twenty-four-hour shift, or to police personnel of the police department or airports department.

(2) Firefighting and policing employees who are absent from duty on leave without pay or suspension without pay, or who are absent from duty with pay because of injury incurred in the course and scope of their employment, for (i) more than five working shifts, in the case of fire-fighting personnel, or (ii) more than eighty hours in the case of police and airport public safety officers, shall not accumulate Holiday Leave for that month.

(h) An accumulation of or use of Holiday Leave different than that previously provided in this section may be established by a salary resolution, city approved labor memorandum of understanding or other action of the Council.
(Added Ord. 5988, 1961; Am. Ord. 6049, 1962; Am. Ord. 6477, 1964; Am. Ord. 6499, 1964; Am. Ord. 6943, 1967; Am. Ord. 70-77, 1970; Am. Ord. 70-87, 1971; Am. Ord. 71-64, 1971; Am. Ord. 74-95, § 1, eff. 10-20-74; Am. Ord. 76-126, § 3, eff. 1-23-77; Am. Ord. 77-24, § 1, eff. 3-27-77; Am. Ord. 79-162, § 1, eff. 11-9-79; Am. Ord. 81-99, § 1, eff. 9-25-81; Am. Ord. 82-85, §§ 7—12, eff. 9-17-82; Am. Ord. 85-187, § 1, eff. 1-17-86; Am. Ord. 90-70, § 1, eff. 8-24-90; Ord. No. 2020-003, § 16, eff. 3-2-20).

SEC. 3-117. OVERTIME.

(a) It is the policy of the city that overtime work is to be discouraged. However, in case of emergency or whenever the public interest requires, the City Manager, City Attorney, City Clerk, or Retirement Administrator, as appropriate for their respective areas of authority, or their respective designees, with respect to any employee in their department, may require an employee to perform overtime work.

(b) All employees not exempt from the overtime provisions of the Fair Labor Standards Act (FLSA) shall be compensated for approved overtime work by additional pay in accordance with their applicable city approved labor memorandum of understanding or the salary resolution, or other action by Council.

(c) Overtime shall not be credited for units of overtime less than one-tenth of an hour, and fractional units of overtime less than one-tenth of an hour shall not accumulate.
(Added Ord. 5988, 1961; Am. Ord. 6049, 1962; Am. Ord. 6362, 1963; Am. Ord. 6477, 1964; Am. Ord. 6921, 1967; Am. Ord. 73-116, § 6, eff. 9-2-73; Am. Ord. 78-119, § 1, eff. 9-1-78; Am. Ord. 82-85, §§ 13, 14, eff. 9-17-82; Ord. No. 2020-003, § 17, eff. 3-2-20).

SEC. 3-118. SALARIES WHILE ABSENT DUE TO ON THE JOB INJURY.

The percentage of wages or salary and benefits received by an employee holding a permanent position who suffers an injury in the course and scope of city employment shall be the percentage and benefits established by the State of California workers' compensation laws set forth in the California Labor Code.
(Added Ord. 5988, 1961, based on former Section 2-1505; Am. Ord. 68-168, 1968; Am. Ord. 70-64, 1970; Am. Ord. 83-112, § 1, eff. 9-16-83; Am. Ord. 85-124, § 1, eff. 9-27-85; Am. Ord. 91-44, §§ 1, 2, eff. 5-3-91; Am. Ord. 2010-44, § 1, eff. 11-16-10; Ord. No. 2020-003, § 18, eff. 3-2-20).

SEC. 3-119. PAYMENT FOR MANAGEMENT, ANNUAL, VACATION, HOLIDAY, SUPPLEMENTAL SICK LEAVES, AND OVERTIME, UPON SEPARATION OF CITY SERVICE.

(a) Any employee of the city who resigns, or is removed for cause, or retires under the retirement provisions of this Code, shall be [paid] for all accumulated Management, Annual, Vacation, Holiday, and Supplemental Sick Leaves, and accrued overtime, if any, at the time of separation from active employment. If an employee dies, the employee's estate shall be entitled to the accumulated pay listed above unless otherwise pre-designated in writing by the employee and on file with the city.

(b) Employees shall receive their full entitlement to Vacation or Annual Leave for the calendar month of separation of city service if such separation occurs after the 15th day of such month.
(Added Ord. 5988, 1961, based on former Sec. 2-1674; Am. Ord. 6943, 1967; Ord. No. 2020-003, § 19, eff. 3-2-20).

SEC. 3-120. VOLUNTEER RESERVE POLICE OFFICERS.

(a) The Police Chief shall have the power, on the application of any person showing the necessity therefore, to appoint volunteer Reserve Police Officers to do volunteer police duty in the City of Fresno, at no expense to the city.

(b) Application for appointment as a volunteer Reserve Police Officer shall be made to the Police Chief. Before appointing any person a volunteer Reserve Police Officer, the Police Chief shall first cause an investigation of the applicant to be made, and shall refuse to appoint anyone as a volunteer Reserve Police Officer unless, as a result of the investigation, the character of the applicant is found to be satisfactory and above reproach. In addition, no

person shall be appointed a volunteer Reserve Police Officer unless they are a citizen of the United States, have received the training required by California Penal Code Section 832, and at a minimum must possess a current Basic Peace Officer Standard Training Certificate.

(c) Every person appointed a volunteer Reserve Police Officer shall:

(1) Take an oath administered by, and filed in the office of, the City Clerk that they will faithfully perform the duties of a volunteer Reserve Officer of the city;

(2) Be issued an identification card in the form prescribed by the Police Chief, containing a statement of the scope of the volunteer appointment;

(3) Sign an agreement holding the city harmless from liability for any activities outside the scope of the volunteer appointment, in a form approved by the City Attorney.

(d) In cases of great public emergency, all volunteer Reserve Officers shall be subject to call by the Police Chief for active general police duty.

(e) All volunteer Reserve Officers shall conform in all respects to whatever rules and regulations of the Police Department are applicable to them.

(f) Any volunteer Reserve Officer may be removed or discharged from service by the Police Chief at any time without cause.
(Added Ord. 5988, 1961; based on former Sec. 2-1506; Am. Ord. 81-77, § 1, eff. 7-31-81; Ord. No. 2020-003, § 20, eff. 3-2-20).

SEC. 3-121. SPECIAL POLICE PROTECTION.

(a) No member of the police department shall perform any law enforcement, traffic safety, or crowd control services while wearing a city police uniform, badge, or other equipment bearing a city insignia, for any person or entity other than the city, except as provided below.

(b) In conformance with any applicable city approved labor memorandum of understanding, any person or entity who desires or is required to provide a uniformed city officer or volunteer reserve office for law enforcement, traffic safety, or crowd control purposes shall file a written request for such services with the Police Chief or designee stating the nature of the event, the number of officers requested, the approximate length of time such services will be required, and an agreement to pay for the city for the services.

(c) The Police Chief may approve or disapprove such request in their sole discretion; provided, however, that when a request is received from a person or entity charged with the management or control of any city-owned or operated property or facility for police protection for an event scheduled on or at such property or facility, the Police Chief shall furnish such officer as they deems necessary (considering the hours during which the activity or event is to occur, the type and nature of the activity, the age or character of the participants therein, and the age or character of the audience most likely to attend the same) to enforce the law, maintain the public peace, and protect such property and the public at large.

(d) The person or entity requesting police services pursuant to this section shall, prior to filing of an application hereunder, deposit sufficient funds with the Controller (or make arrangements satisfactory to the Controller) to pay for such services at the rate fixed by the Controller, including the cost of workers' compensation insurance and fringe benefits applicable to such services, if any. At the conclusion of such services, the Police Chief shall report to the Controller the names of the officers actually utilized and the number of hours worked by each. The Controller shall thereupon bill the person or entity requesting such services for the cost thereof and the same shall constitute a debt to the city.

(e) When assigned for duty hereunder, officers shall be police personnel of the police department or volunteer reserve officers appointed and authorized in Section 3-120 of this Code and shall be under the general supervision of the Police Chief or any officer in charge under their command and in conformance with any applicable city approved labor memorandum of understanding.

(Added Ord. 72-15, 1972; Amd. Ord. 78-137, § 1, eff. 9-29-78; Am. Ord. 2005-142, § 1, eff. 1-12-06; Ord. No. 2020-003, § 21, eff. 3-2-20).

SEC. 3-122. LAW ENFORCEMENT SERVICES TO PRIVATE INDIVIDUALS OR ENTITIES.

The city, recognizing the need for additional law enforcement services during a time of severe budgetary constraints, hereby adopts the following ordinance under its authority as a charter city, for the constitution, regulation, and government of the city police force (Cal. Const. Art. XI, § 5) and to preserve the peace, health, safety, and general welfare of its citizens.

(a) The city may contract to provide supplemental law enforcement services to private individuals or private entities to preserve the peace. Contracts entered into pursuant to this section shall provide for full reimbursement to the city of the actual costs of providing those services, as determined by the City Controller.

(b) The services provided pursuant to this section shall be rendered by regularly appointed full-time peace officers, as defined in Section 830.1 of the Penal Code, or as negotiated with the respective certified employee organizations.

(c) Peace officer rates of pay shall be governed by a city approved labor memorandum of understanding.

(d) A contract entered into pursuant to this section shall encompass only law enforcement duties and not services authorized to be provided by a private patrol operation, as defined in Section 75821.1 of the Business and Professions Code.

(e) Contracting for law enforcement services, as authorized by this section, shall not reduce the normal and regular ongoing service that the city would otherwise provide.

(f) The Chief of Police is authorized to contract with private parties and to adopt rules and regulations governing the application of this section.

(Added Ord. 98-30, eff. 6-19-98; Ord. No. 2020-003, § 22, eff. 3-2-20).

SEC. 3-123. PROHIBITION ON BASE SALARY REDUCTIONS FOR UNCLASSIFIED EMPLOYEES' JOB PERFORMANCE.

(a) Deductions from an unclassified employee's existing salary or reductions in an unclassified employee's future salary for job performance are detrimental to city employee morale, stable employee relations, and are an inefficient means of providing city services.

(b) Deductions from an unclassified employee's existing salary or reductions in an unclassified employee's future salary for job performance are prohibited.

(c) This prohibition shall apply to all unclassified city employees, including those under an employment agreement or covered by an applicable city approved labor memorandum of understanding which took effect prior to the effective date of this Section.
(Added Ord. 2006-131, § 1, eff. 10-12-06; Ord. No. 2020-003, § 23, eff. 3-2-20).

SEC. 3-124. TRANSPARENCY IN CITY GOVERNMENT.

(a) It is the policy of the City, in order to safeguard City funds and provide for transparency and accountability, that there be full disclosure and comparative analysis of the terms, conditions and compensation applicable to employment of, contracting for, and services of its officers, employees, elected officials and consultants.

(b) Council may establish by resolution policies and procedures to implement this section.
(Added Ord. 2010-38, § 1, eff. 9-27-10).

SEC. 3-125. STIPENDS FOR CITY COUNCIL INTERNSHIPS.

Individuals who volunteer as interns within an office of a City Councilmember may be issued a maximum stipend of $500 per month for the duration of the internship to defray out of pocket and incidental expenses related to the internship. Stipends shall be allocated from the discretionary budget of the Council District for which the intern volunteers.
(Added Ord. 2017-11, § 1, eff. 4-8-17).

SEC. 3-126. ORGAN AND BONE MARROW DONATION LEAVE ("THE TONI HUNTER ORGAN DONOR PROTECTION ACT").

(a) This section shall be known and may be cited as the Toni Hunter Organ Donor Protection Act.

(b) Full-time and part-time employees in permanent positions shall be granted the following leave of absence with pay:

(1) A leave of absence not exceeding 30 work days of the employee who is a major or vital organ donor in any one-year period, for the purpose of donating their organ to another person, beginning on the day of the procedure, or earlier if deemed medically necessary.

(2) A leave of absence not exceeding five work days of the employee who is a bone marrow donor in any one-year period, for the purpose of donating their bone marrow to another person, beginning on the day of the procedure, or earlier if deemed medically necessary.

(c) In order to receive a leave of absence pursuant to subdivision (b), the employee requesting the leave shall provide written verification from a physician that they are an organ or bone marrow donor and that there is a medical necessity for the donation of the organ or bone marrow.

(d) Any period of time during which the employee is required to be absent from their position by reason of being an organ or bone marrow donor is not a break in their continuous service for the purpose of their right to salary adjustments, leave accruals including paid holidays, and continuation of the employee's health and welfare benefits.

(e) Notwithstanding any existing law, bone marrow and organ donation leave shall not be taken concurrently with any leave taken pursuant to the federal Family and Medical Leave Act or the California Family Rights Act.

(f) Leave provided pursuant to this section may be taken in one or more periods.

(g) Leave provided pursuant to this section shall not be granted if the employee requesting such leave is already out on any other paid leave.
(Added Ord. 2019-036, § 1, 11-24-19).

SEC. 3-127. ANNUAL LEAVE

Annual Leave established by city approved memorandum of understanding or salary resolution can be used in accordance with Section 3-107 and 3-108.
(Ord. No. 2020-003, § 24, eff. 3-2-20)

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SEC. 3-201. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in Section 3-202 shall govern the construction, meaning and application of words and phrases used in this article and, except to the extent that a particular word or phrase is otherwise specifically defined in Section 3-202, the definitions and provisions contained in Article 2 of Chapter 1 and Article 1 of Chapter 3 of this Code shall govern the construction, meaning and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be. (Rep. and Added Ord. 5313, 1958; Rep. and Added Ord. 6128, 1962; Am. Ord. 71-128, 1972; Am. Ord. 73-116, § 7, eff. 9-2-73; Am. Ord. 76-90, § 1, eff. 10-24-76; Am. Ord. 82-99, § 1, eff. 10-15-82).

SEC. 3-202. DEFINITIONS. SPECIAL.

(a) (1) "Applicant" shall mean a person who has made application to take a Civil Service examination.

(2) "Appointing Officer," "Appointing power" or "Appointing authority" shall mean the officer, council, board or body having power of appointment or removal from any position in the city service.

(b) "Board" shall mean the Civil Service Board of the City of Fresno.

(c) (1) "Calendar Year" shall mean a twelve-month period beginning January 1 and ending December 31.

(2) "Candidate" shall mean a person whose application has been accepted and who competes in an examination.

(3) "Charter" shall mean the Charter of the City of Fresno, California, and amendments thereto.

(4) "City Physician" shall mean the City Physician of the city or any physician for whom the city has paid for furnishing medical services.

(5) "City service" shall mean service rendered as an employee of the city for compensation.

(6) "Class" or "class of positions" shall mean a group of positions in the city service sufficiently alike in functions, duties and responsibilities that the same general title can be applied, the same specifications will serve and the same standards of selection can be used.

(7) "Classification" shall mean the official act of the Director by which the class of a position is determined.

(8) "Classified service" shall mean and include all positions in the city service not specifically included in the unclassified service.

(9) "Class specification" shall mean the written description of a class containing its title, statements of duties, functions, authority and responsibility, knowledge and abilities, and other qualifications required for appointment.

(d) "Director" or "Personnel Director" shall mean the Director of the Personnel Department.

(e) (1) "Eligible" shall mean a person who has qualified for a permanent position in the classified service or to an intermittent position and whose name is on an eligible list for appointment.

(2) "Eligible list" shall mean a list of candidates qualified by competitive examination for entry into city service.

(3) "Emergency appointment" shall mean an appointment made during an actual emergency to prevent the stoppage of public business.

(4) "Emergency employee" shall mean an employee holding a position under emergency appointment.

(5) "Employee" shall mean any person legally holding a position in the city service.

(f) Reserved.

(g) Reserved.

(h) Reserved.

(i) (1) "Intermittent employee" shall mean an employee who may work a normal work day or fraction thereof and such work is done at irregular intervals or without set pattern.

(2) "Intermittent position" shall mean a position created as needed to perform work of a seasonal, irregular or short-term duration.

(j) Reserved.

(k) Reserved.

(l) "Limited position" shall mean a position created for a specified purpose and for a specified period of time.

(m) Reserved.

(n) Reserved.

(o) Reserved.

(p) (1) "Part-time employee" shall mean an employee holding a permanent position for which the regularly scheduled work week is less than forty hours, or an employee holding a position which has been designated as part-time in the current budget of the city, the class specification or in the current salary resolution or other action of the Council fixing the rate of pay for the position; excepting, however, any employee whose position is established as full-time under Section 2-302(a).

(2) "Permanent employee" shall mean an employee in the classified service who has been appointed to a position in a class from an eligible list and who has satisfactorily completed the probationary period.

(3) "Permanent intermittent employee" shall mean an employee appointed from an eligible list to an intermittent position in a class and who has satisfactorily completed the probationary period.

(4) "Permanent position" shall mean a full-time or part-time position in the classified service created pursuant to this article, or a position in the unclassified service, the duration of which is not limited by the terms of the ordinance, resolution or other authorized action creating it.

(5) "Permanent status" shall mean the status of an employee who is lawfully retained in his position in the classified service or in an intermittent position after the completion of the probationary period provided by this article.

(6) "Position" shall mean a group of current duties and responsibilities assigned or delegated by competent authority requiring the full-time, part-time or intermittent employment of one person.

(7) "Probation" shall mean a working test period during which an employee, newly appointed from an eligible list, a promotional eligible list, or a reinstatement list, to a permanent position in the classified service or to an intermittent position, is required to demonstrate fitness for such position by satisfactory performance of the duties required in the position.

(8) "Probationary status" shall mean the status of an employee who has been certified and appointed from an eligible list, reinstatement list or a promotional eligible list, but who has not completed the probationary period provided by this article.

(9) "Promotional examination" shall mean an examination for positions in a class, admission to which is limited to permanent employees in the classified service or in an intermittent position who have held a position in another specified class for the required period of time.

(10) "Promotional eligible list" shall mean a list of persons eligible for certification for a specific class resulting from a promotional examination.

(11) "Provisional employee" shall mean an employee who has been appointed provisionally to a permanent position in the classified service pending the establishment of an eligible list for the class.

(q) Reserved.

(r) "Reinstatement list" shall mean a list of persons in a specified class who have held a permanent position in the classified service or an intermittent position in the unclassified service and who, because of economy, department reorganization, lack of work or budget curtailment, have been separated from or demoted in the city service.

(s) Reserved.

(t) "Temporary employee" shall mean an employee appointed to a limited position in the city service.

(u) "Unclassified service" shall mean the exempted officers and positions as specified in Section 1000 of the Charter.

(v) Reserved.

(w) Reserved.

(x) Reserved.

(y) Reserved.

(z) Reserved. (Added Ord. 82-99, § 2, eff. 10-15-82).

SEC. 3-203. ADOPTION OF CLASSIFICATION PLAN.

The schedule of classes adopted by the Board and approved by the City Commission on July 1, 1956, together with subsequent additions, amendments and revisions, constitutes the classification plan for all positions in the classified service. (Rep. and Added Ord. 6128, 1962).

SEC. 3-204. MAINTENANCE OF PLAN.

The classification plan shall be so developed and maintained that all positions substantially similar with respect to the kind, difficulty and responsibility of work are included in the same class and the same examining process used for filling all positions in the class. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1605).

SEC. 3-205. DELETION OF CLASSES.

Whenever a class in the City service, as defined in Section 3-202(c)(6), or as it may from time to time be amended, is deleted, the City Council shall approve a Resolution to establish a pay relationship for that class to calculate retirement benefits for any incumbent with qualifying service in the deleted class. The Resolution shall, in addition to identifying a benchmark class, establish a pay comparison by either declaring the salary range for the benchmark class to be equivalent to the salary range for the deleted class or by identifying a percentage that should be added to, or subtracted from, the salary range for the benchmark class. The City shall, by administrative instruction, establish a process for notifying employees and recognized employee organizations in advance of presentation of the Resolution to Council. (Added Ord. 94-41, § 1, eff. 7-8-94).

SEC. 3-206. PROCEDURE IN REVISING PLAN.

(a) **Creation of New Class.** Whenever a department head, with the approval of the Chief Administrative Officer, desires to create a new class the duties of which have not previously been performed in whole or in substantial part, in any existing class in the city service, he shall request the Director to draft job specifications therefor. When the specifications have been approved by the Chief Administrative Officer, the department head and the Director and filed in the office of the Director, they shall be in effect.

(b) **Change in Class Duties.** Whenever a change in duties or responsibilities of any existing position in the classified service is claimed to have occurred or is contemplated in any proposed reorganization of a department or division thereof, the Director, on his own initiative or upon the written request of the appointing officer or any employee whose position is involved, when such request is approved by the Chief Administrative Officer, shall investigate the duties of the affected position. The Director shall hold a public hearing on the proposed change. All employees whose positions are involved in the reclassification, and all affected appointing officers, shall be given not less than five days' written notice of the time and place set for the hearing and accorded the opportunity to appear at the hearing and present reasons why the reclassification should not be made.

(c) **Division of a Class.** Whenever the duties of different positions in an existing class become diverse and a single examination will no longer provide qualified applicants, the Director shall divide the class into two or more classes and assign the positions in the old class to the proper new classes. The employees filling the positions so assigned shall, with the consent of the head of the department and the Director, be transferred to the new class subject to the provisions of Section 3-209.

(d) **Addition of Total New Operation.** Whenever the city shall take over the operation of any other jurisdiction or corporation or other operating activity, the Director shall, as soon as practicable, classify each position then existing and proposed to be created in such activity, in conformity with the existing classification of positions in the city service, and shall conduct such special examinations as may be necessary to provide eligibles for certification to each position. Pending the certification of eligibles for the positions mentioned in this section, such positions shall be filled in accordance with the provisions of this article. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1605; Am. Ord. 73-117, § 1, eff. 9-2-73).

SEC. 3-207. PERSONNEL TRANSACTIONS RESULTING FROM CITY-REDEVELOPMENT AGENCY CONSOLIDATION.

(a) Each person holding a permanent appointment to a full-time position with the Redevelopment Agency of the City of Fresno ("Agency") as of May 2, 1976, hereinafter referred to as an "Agency employee," shall, not more than two years from the effective date of this section, provided he is at that time an Agency employee, be offered an appointment to a permanent position in the unclassified or in the classified service of the city in accordance with the provisions of subsection (d) of Section 3-206; provided each such Agency employee first passes a special qualifying examination conducted in accordance with said subsection and

provided each such Agency employee qualifies for appointment by conformance to the physical standards established pursuant to Section 3-287. Classification of positions to which Agency employees are offered appointment shall be at the sole discretion of the Director. Sections 3-240, 3-241, 3-242, and 3-243 shall not apply to any qualifying examination given under this section.

(b) A refusal by an Agency employee to accept an appointment offered pursuant to subsection (a) hereof, or a failure to conform to the physical standards upon receipt of an offer of appointment, shall relieve the city henceforth of any obligation under this section to offer employment to such Agency employee.

(c) Each Agency employee shall be entitled to credit for his full-time continuous employment by the Agency as city employment for purposes of determining completion of his probationary period pursuant to Section 3-272, for purposes of determining the applicable rate of vacation accumulation pursuant to Section 3-101, for determining his qualifications for admission to a promotional examination, and for computing seniority for the purpose of determining the order of layoff in accordance with Section 3-291; provided, however, if the cause of the layoff is a result of a diminution or elimination of functions, activities or services which, except for the consolidation with the Agency, would not be conducted, performed, or rendered by the city, the Agency employee shall not be entitled to credit for such employment by the Agency. No credits for such employment by the Agency shall be allowed for any benefit except as expressly provided herein or in Article 3 of this chapter.

(d) The continuity of full-time continuous employment by the Agency for which an Agency employee is entitled to credit as city employment shall not be deemed broken by any leave of absence without pay; provided, however, that the time a person has been on a leave of absence without pay, for any reason, shall not be included in calculating such person's credit for continuous employment pursuant to subsection (c) of this section. In determining whether a person's employment with the Agency has been full-time, reference shall be made to and the matter decided in accordance with subsection (a) of Section 3-102.

(e) Upon employment by the city, each Agency employee shall be credited with the number of hours of sick leave and vacation leave accumulated to the employee's credit with the Agency as of the end of the last day of employment with the Agency. One year from the date of an Agency employee's appointment to a position in the service of the city, any accumulation of such employee's unused vacation leave credit in excess of the limits prescribed in Section 3-108(h) shall thereupon be canceled.

(f) The provisions of this section shall apply to any Agency employee employed in accordance herewith on or after July 1, 1976. (Added Ord. 76-72, § 1, eff. 8-29-76; Am. Ord. 76-104, § 1, eff. 11-14-76).

SEC. 3-208. PERSONNEL TRANSACTIONS RESULTING FROM CITY-WATER DISTRICT CONSOLIDATION.

(a) Each person holding a permanent appointment to a full-time position with the Fresno County Water Works Districts ("District") as of December 31, 1988, and who has held such

appointment for more than three months prior to December 31, 1988, hereinafter referred to as a "District employee," shall be offered an appointment to a permanent position in the unclassified or in the classified service of the city in accordance with the provisions of subsection (d) of Section 3-206; provided each such District employee first passes a special qualifying examination conducted in accordance with said subsection and provided each such District employee qualifies for appointment by conformance to the physical standards established pursuant to Section 3-287. Appointment shall be to the class which reflects the majority of duties in District employment. The District Manager position shall be placed into the city Water Division at no less than the Water Manager position. Sections 3-240, 3-241, 3-242 and 3-243 shall not apply to any qualifying examination given under this section.

(b) A refusal by a District employee to accept an appointment offered pursuant to subsection (a), or a failure to conform to the physical standards upon receipt of an offer or appointment, shall relieve the city henceforth of any obligation under this section to offer employment to such District employee.

(c) Each District employee shall be entitled to credit for that employee's full-time continuous employment by the District as city employment for purposes of determining completion of each District employee's probationary period pursuant to Section 3-272, for purposes of determining the applicable rate of vacation accumulation pursuant to Section 3-108, for determining qualifications for admission to a promotional examination for computing seniority for the purpose of determining each District employee's qualifications for admission to a promotional examination and for computing seniority for the purpose of determining the order of layoff in accordance with Section 3-291; provided, however, that a District employee who has passed the District's probationary period shall retain that status upon transfer to the city. No credits for such employment by the District shall be allowed for any benefit except as expressly provided in Articles 2 or 5 of this Chapter 3.

(d) The continuity of full-time continuous employment by the District for which a District employee is entitled to credit as city employment shall not be deemed broken by any leave of absence without pay; provided, however, that the time an employee has been on a leave of absence without pay, for any reason, shall not be included in calculating such employee's credit for continuous employment pursuant to subsection (c). In determining whether an employee's employment with the District has been full-time, reference shall be made to and the matter determined in accordance with subsection (a) of Section 3-101.

(e) Upon employment by the city, each District employee shall be credited with the number of hours of sick leave accumulated to the employee's credit with the District as of the end of the last day of employment with the District. District employees are entitled to credit for up to eighty hours of vacation accrued at the District. (Added Ord. 88-148, § 1, eff. 1-12-89).

SEC. 3-209. RECLASSIFICATION OF A POSITION.

(a) **Filling of Reclassified Position.** Upon the reclassification of a position from one class to another class of the same, a lower level, or a higher level, the method of filling the position shall be determined in accordance with the rules regarding transfer, demotion, or promotion, as may be appropriate, except as otherwise provided in this section.

(b) **Selection of Incumbent.** In the event of the reclassification of a position to a class of a higher level, the incumbent shall be granted the same status in the new class as he had in the former class, if the Director should find that all of the following conditions have been met.

(1) That the reason for the reclassification of the position is the gradual accretion of new duties and responsibilities over a period of two or more years immediately preceding the effective date of such reclassification.

(2) That the accretion of duties has taken place during the incumbency of the present incumbent in such position.

(3) That the added duties and responsibilities upon which the reclassification is based have not been previously assigned to a class of the same or lower level.

The Director may, before recognizing such status in the class of higher level, require such evidence of the qualifications and fitness of the incumbent, including such hearings, investigations, and noncompetitive examinations as he deems warranted. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1605; Am. Ord. 73-117, § 3, eff. 9-2-73).

SEC. 3-210. CONTENT OF CLASS SPECIFICATIONS.

The Director shall provide and, after consultation with the department head, may amend written specifications for each class in the classification plan. Each class specification shall include the class title, a description of the duties and responsibilities of the work and a statement of the qualifications a person should possess to enter upon the duties of a position in the class with reasonable prospect of success. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1605; Am. Ord. 73-117, § 4, eff. 9-2-73).

SEC. 3-211. INTERPRETATION OF SPECIFICATIONS.

The definitions in class specifications are descriptive and not restrictive. They are intended to indicate the kinds of positions that are assigned to the several classes as determined by their functions, duties and responsibilities and are not to be construed as declaring what the duties or responsibilities of any position may be or as limiting or modifying the power of an appointing authority to assign, direct and control the work of employees under his supervision. The use of a particular expression or illustration as to duties shall not be held to exclude others not mentioned that are of similar kind or quality; nor shall any specific omission necessarily mean that such factor is not included. (Rep. and Added Ord. 6128, 1962).

SEC. 3-212. HOW CLASSIFICATION IS DETERMINED.

In determining the class to which any position should be assigned, the definition of each class shall be considered as a whole. Consideration shall be given to the general duties, specific tasks, responsibilities, qualities and relationship to other classes as a composite description of the kind of employment the class is intended to employ. (Rep. and Added Ord. 6128, 1962).

SEC. 3-213. USE OF CLASS TITLES.

The title of any class shall be the official title of every position assigned to that class for the purpose of personnel actions and shall be used on all payrolls, official records and reports relating to the position. Any abbreviations or code symbols required by a department may be used in lieu of the class titles to designate the class of position for official records. Any other title desired and authorized to be used by the appointing authority may be used as a designation of any position for purposes of internal administration or in verbal or written contacts with the public. (Rep. and Added Ord. 6128, 1962).

SEC. 3-214. PROMOTIONAL CLASSES.

The Director may arrange the various classes of positions in promotional series, indicating the lines of promotion to and from each class. The lower classes from which promotion is provided may be in the same or different departments, provided the duties and responsibilities thereof would prepare the occupants of such lower class positions for the higher class positions in the same promotional series. Only those classes of positions which in the judgment of the Director are closely related or similar in the degree of requirements or duties and responsibilities shall be arranged in promotional series and the promotional series authorized herein shall be changed by the Director as the creation or abolishment of positions or changes in the duties and responsibilities of positions required. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1606; Am. Ord. 73-117, § 5, eff. 9-2-73).

SEC. 3-215. CONTENT OF ANNOUNCEMENTS.

Announcements shall specify the title and salary range of the class for which the examination is announced, the nature of the work to be performed, the qualifications required, any unique work-related to qualifications pursuant to subsection (j) of Section 3-252, the time, place and manner of making application, the general scope of the examination, the relative weights to be assigned to the different parts of the examination, the length of time the eligibility list will be valid, and other information which the Director considers pertinent. (Rep. and Added Ord. 6218, 1962; Am. Ord. 87-1, § 1, eff. 2-6-87).

SEC. 3-216. NOTICE AND DISTRIBUTION OF ANNOUNCEMENTS.

(a) Open examination recruitment announcements shall be posted on the official bulletin board in the Human Resources Office. Such recruitment announcements shall be given other publicity as the Director deems warranted to attract sufficient numbers of qualified candidates to compete in examinations. The Director may limit the filing period to a specific date or dates when a large number of qualified applicants is expected.

(b) Promotional examination recruitment announcements shall be posted on the official bulletin board in the Human Resources Office. Promotional examination announcements shall be posted for a period of not less than five working days. Promotional examination announcements shall be supplied to each appointing authority under whom there are employees eligible to compete. It shall be the duty of each appointing authority to bring such announcements to

the attention of eligible employees under their jurisdiction. (Rep. and Added Ord. 6128, 1962, based on former Secs. 2-1620 and 2-1627; Am. Ord. 72-20, 1972; Am. Ord. 95-10, § 1, eff. 3-3-95; Am. Ord. 95-33, eff. 5-12-95; Am. Ord. 95-62, § 1, eff. 9-22-95; Am. Ord. 96-50, § 1, eff. 8-16-96).

SEC. 3-217. OPEN COMPETITIVE EXAMINATIONS.

Open competitive examinations shall be open to all qualified applicants eligible for employment in the United States. The Board may refuse to examine an applicant or, after examination, to certify one otherwise eligible, who is found to lack any of the preliminary requirements for the examination for the position or employment applied for. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1607; Am Ord. 82-99, § 3, eff. 10-15-82).

SEC. 3-218. JOINT RECRUITMENT/EXAMINATION PROCESSES.

Notwithstanding any other provision of this Code, the Civil Service process, including, but not limited to, recruitment, examination, certification, and appeal procedures when conducting a joint recruitment/testing process with other governmental agencies for Firefighter Recruit/Firefighter positions, non-represented classes, and entry-level classes in the Non-Supervisory White Collar, Management Confidential, Management Non-Confidential, Non-Management Confidential, and Non-Supervisory Blue Collar Units shall be governed by City Council Resolution. (Added Ord. 94-2, § 1, eff. 2-4-94; Am. Ord. 95-55, § 1, eff. 9-15-95; Am. Ord. 96-50, § 2, eff. 8-16-96).

SEC. 3-219. PROMOTIONAL EXAMINATIONS.

Promotional examinations shall be open to permanent employees who meet the minimum qualifications. Admission to promotional tests may be restricted by the Director to permanent employees of a specific division or department. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1627; Am. Ord. 95-33, § 2, eff. 5-12-95; Am. Ord. 95-62, § 2, eff. 9-22-95; Am. Ord. 96-50, § 3, eff. 8-16-96).

SEC. 3-220. WHO MAY FILE. CONTENTS.

(a) Any individual who meets the minimum qualifications on or before the posted final filing date may file for the examination. No person who has been removed for cause from any position, temporary or permanent, in the city service shall be entitled to file or take any examination for any class unless such person shall secure the approval of the Director, which approval must be on file in the Personnel Services Department prior to the time fixed for the examination. The Director shall approve the examination of a removed employee if he/she is satisfied that the cause of removal no longer exists or does not apply to the position applied for or any promotional position above it. Application forms prescribed by the Director shall be used. Applications must be delivered to the office of the Director between the dates specified on the announcement. Applications shall include a statement from the applicant of all pertinent information, which the Director deems necessary. The truth of all statements contained in the application shall be certified by the applicant's signature.

(b) The Director may close the filing period of an open examination when a predetermined number of applications, as stated in the posted announcement, has been received. The Director may also randomly limit the number of candidates in a manner that is reflective of the community's population to be processed in an open examination when it is determined necessities necessary relative to the filling of positions, the degree of difficulty of the filling of the positions from the labor market, the number of applications received, or the number of existing and anticipated vacancies justify limitations. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1607; Am. Ord. 72-21, 1972; Amd. Ord. 95-33, § 3, eff. 5-12-95; Am. Ord. 95-62, § 3, eff. 9-22-95; Am. Ord. 96-50, § 4, eff. 8-16-96; Am. Ord. 2000-29, § 1, eff. 4-24-00; Am. Ord. 2003-24, § 1, eff. 5-20-03).

SEC. 3-221. FREEDOM FROM DISCRIMINATION.

No question in any form or application, or in any examination, shall be so framed as to elicit any information concerning the political or religious opinions or affiliations of any applicant, nor shall any inquiry be made concerning such opinions or affiliations, and all disclosures thereof shall be discountenanced. No discrimination shall be exercised, threatened or promised by any person in the employ of the city against or in favor of any applicant, eligible or employee because of any classification protected by state or federal law.
(Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1619; Am. Ord. 2010-13, § 1, eff. 6-14-10).

SEC. 3-222. ADMISSION TO EXAMINATIONS.

Each candidate whose application has been submitted for an examination and who meets the minimum qualifications shall be scheduled for the examination, subject to other provisions within this Article. Each candidate shall be given an admission card stating the time and place of the examination. No candidate may be admitted to any assembled examination after the noticed time once the doors at the examination site have been closed. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1620; Am. Ord. 95-33, § 4, eff. 5-12-95).

SEC. 3-223. REJECTION OF APPLICATIONS, REMOVAL OF ELIGIBLE FROM LIST.

(a) The Director may reject the application of any person for admission to an examination and may remove from any list the name of any person who:

(1) Lacks any of the minimum qualifications as stated in the announcement;

(2) Is addicted to the habitual or excessive use of habit-forming drugs or intoxicating liquors;

(3) Has been dismissed for good cause from any previous employment unless, if such dismissal was from previous employment with the city, approval of the Director has been given, as provided in Section 3-220;

(4) Has used or attempted to use political pressure or bribery to secure an advantage in an examination or appointment;

(5) Has made a false statement of any material fact or has practiced or attempted to practice any deception or fraud in his application or examination, or in securing eligibility for appointment.

(b) Action of the Director under subsection (a) hereof may be reviewed by the Board pursuant to Section 2-1642.1 of this article.
(Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1607; Am. Ord. 6918, 1966; Am. Ord. 72-19, 1972; Am. Ord. 79-32, § 1, eff. 3-16-79; Am. Ord. 2003-24, § 2, eff. 5-20-03).

SEC. 3-224. APPLICANTS WITH FELONY, MISDEMEANOR CONVICTION.

(a) Except as otherwise provided herein, conviction (including pleas of guilty and nolo contendre) of a felony or of any misdemeanor which in the judgment of the Director evidences moral turpitude on the part of the candidate shall be prima facie grounds for said candidate's removal from any list, or rejection of such candidate's application.

(b) The Director, in rejecting an application or removing from any list the name of a candidate, shall consider the seriousness and type of offense as it relates to the nature and sensitivity of the position being applied for. The candidate may present evidence of rehabilitation to the Director. A list of factors to be considered by the Director in assessing rehabilitation or lack thereof shall include but not be limited to:

(1) All circumstances surrounding the conduct giving rise to the conviction;

(2) The length of time that has passed since the unlawful conduct took place;

(3) The age of the candidate when the conduct took place;

(4) Any specific efforts in furtherance of rehabilitation taken by the candidate.

(c) Notwithstanding any other provision of this section, no application shall be processed for, or appointment made to the position of Peace Officer for any applicant or candidate who has suffered any felony conviction or conviction of any misdemeanor involving moral turpitude.

(d) Action of the Director under subsection (a) or subsection (b) hereof may be reviewed by the Board pursuant to Section 2-1642.1 of this article.
(Added Ord. 79-32, § 2, eff. 3-16-79)

SEC. 3-225. ACCESS TO CRIMINAL RECORDS.

In order to further the objectives set forth in Section 3-224, and as authorized by California Penal Code Sections 11105(b)(10) and 13300(b)(10), the Director is hereby authorized to have access to and utilize Criminal History Record information on file with the California Department of Justice and/or local law enforcement agencies when it is necessary for such records to be utilized to fulfill employment or certification duties as set forth in Fresno Municipal Code Section 2-1621.1 and California Labor Code Section 432.7.
(Added Ord. 79-32, § 3, 3-16-79).

SEC. 3-226. REGISTRATION FOR SELECTIVE SERVICE.

Any individual who is required to register with the Federal Selective Service System shall submit documentation evidencing such registration at time of employment with the City of Fresno. Employment with the City of Fresno shall be prohibited until such time as required documentation is submitted.
(Rep. and Added Ord. 98-89, §§ 1, 2, eff. 12-20-98; Am. Ord. 2010-13, § 2, eff. 6-14-10).

SEC. 3-227. MEDICAL EXAMINATIONS.

Eligibles who receive conditional offers of employment to designated positions shall take and pass an appropriate medical and/or psychological examination(s) as determined by the Director. An eligible on any list whose medical and/or psychological condition, as determined by such examination(s), does not conform to the standards established for the class may initiate an appeal through a process defined by administrative instruction. If the determination remains that an eligible does not conform to the standards, his/her name shall be permanently removed from such list; provided, however, that such removal shall not prejudice his/her right to apply for and be examined for placement on any succeeding list created for the class.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1607 and 2-1639; Am. Ord. 80-62, § 1, eff. 5-23-80; Am. Ord. 97-5, § 1, eff. 2-28-97)

SEC. 3-228. ANONYMITY OF CANDIDATES.

Names of candidates shall not be made public prior to the announcement of the results of an examination, except by permission of the Board.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1616).

SEC. 3-229. CONDUCT OF EXAMINATION.

Written and performance tests shall be conducted as simultaneously as practicable in as many places as are necessary for the convenience of the candidates and yet practicable for proper administration and control. The Director may designate as monitor as many persons as may be necessary to conduct tests under instructions provided by him. During the administration of an examination, candidates will be required to obey such regulations as to conduct and time limits as may be established by the Director.
(Rep. and Added Ord. 6128, 1962).

SEC. 3-230. POSTPONEMENT AND CANCELLATION OF EXAMINATIONS.

The Director may extend the application filing period of an examination in the event a sufficient number of qualified applications has not been submitted. The Director may also cancel an examination for reasons including, but not limited to, position deletions during

budget process, reorganizations, lack of qualified candidates, or other operational concerns. Applicants and the appointing authority in such cases shall be given written notice of the action.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1623; Am. Ord. 95-10, § 3, eff. 3-3-95; Am. Ord. 95-33, § 6, eff. 5-12-95; Am. Ord. 95-62, § 5, eff. 9-22-95; Am. Ord. 96-50, § 6, eff. 8-16-96).

SEC. 3-231. CHARACTER OF OPEN COMPETITIVE EXAMINATIONS.

Examinations shall relate to those matters which fairly test the capacity and fitness of the persons examined to discharge the duties of the office or employment sought by them. Any means or measures may be used which are reasonably well calculated to test the fitness of candidates to become employees in positions of the class for which the examination is being held. Such means or measures may include any required statement or any valuation of education, experience, or record of accomplishment, any test of knowledge, skill or capacity, intelligence or aptitude, or any inquiry into the moral character or any quality or attribute which seems desirable. When oral examinations are used, a record of the examination, showing basis of ratings, shall be made.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1621).

SEC. 3-232. CHARACTER OF PROMOTIONAL EXAMINATIONS.

The provisions of Section 3-231 shall also apply to promotional examinations. In addition to other factors promotional examinations will take into consideration the quality of service and an appraisal of promotability where records are available to provide the basis for such ratings.
(Rep. and Added Ord. 1628, 1962).

SEC. 3-233. IDENTIFICATION SHEETS OF CANDIDATES.

To assure anonymity of candidates in written examination, no examination paper or answer sheet shall be identified until after all have been finally scored.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1617).

SEC. 3-234. RESERVED.

Editor's note—Ord. No. 2010-13, § 3, effective June 14, 2010, amended the Code by repealing former § 3-234 in its entirety. Former § 3-234 pertained to disqualification, and derived from Ord. 6128 of 1962.

SEC. 3-235. CONSULTANTS.

In the development of examinations the Director may confer with the appointing authorities concerned and with others skilled in or familiar with work requirements to be tested. The Director may also utilize appropriate examinations, or parts thereof, prepared by other personnel agencies or associations which prepare examinations for other public jurisdictions.

The Director shall select persons who are qualified in the appropriate fields to serve as oral examiners. Every precaution shall be exercised by all persons participating in the development and administration of tests to maintain the highest integrity and security in examinations. (Rep. and Added Ord. 6128, 1962).

SEC. 3-236. PARTS, WEIGHTS AND FINAL SCORE.

All official bulletins shall state the weight assigned to each step of the examination process. Each part of an examination process shall be graded independently with a passing score necessary to either advance to the next step of the examination process or to be placed on the eligible list. The score obtained in each step shall be multiplied by its assigned weight. The sum of the resulting products shall be totalled and that total, including veteran's preference points, if applicable, shall determine the candidate's rank on the eligible list. The minimum final score required for placement on the list shall be seventy. The minimum passing point in a written examination shall be set by the Director before identification of the answer sheets. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1622; Am. Ord. 74-39, § 1, eff. 4-21-74; Am. Ord. 94-106, § 1, eff. 12-9-94; Am. Ord. 95-33, § 7, eff. 5-12-95; Am. Ord. 95-62, § 6, eff. 9-22-95; Am. Ord. 96-50, § 7, eff. 8-16-96).

SEC. 3-237. MINIMUM GRADE FOR EACH PART.

A candidate who fails to attain the minimum grade established for any part in an examination shall be considered as having failed the examination. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1608).

SEC. 3-238. VETERANS PREFERENCE.

(a) In any open competitive examination a veteran shall be allowed an additional credit of five points after having attained the passing mark established for the examination.

(b) For the purpose of this section, "veteran" means any person who has served full time for thirty days or more in the armed forces in time of war or in time of peace in a campaign or expedition for service in which a medal has been authorized by the Government of the Unites States, or during the period June 27, 1950 to January 31, 1955, inclusive, or who has served on at least one hundred eighty-one (181) consecutive days since January 31, 1955, and who has received an honorable discharge, but does not include any person who has served only in auxiliary or reserve components of the armed forces whose service therein did not exempt him from the operation of the Selective Training and Service Act of 1940. For the purpose of this section, World War II began December 7, 1941, and terminated as of midnight, December 31, 1946.

(c) In any examinations to establish eligible lists in which credits are allowed for experience, periods of service in the recognized military service shall be counted by the Board as experience upon showing by the veteran that such service involved duties and responsibilities of the kind for which credit for experience is being allowed. Any applicant seeking the benefits of this section must submit proof of his eligibility at the time of application, or at a later date if the Director shall find that the promulgation of the eligible list will not be delayed thereby. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1622; Am. Ord. 73-116, § 8, eff. 9-2-73).

SEC. 3-239. OPEN CONTINUOUS EXAMINATIONS.

When necessary to meet continued requirements for filling positions and when there is no available large number of applicants for a class, the closing date for any examination may be indefinite and applicants may be tested continuously in such manner and at such times and places as the Director may provide. No applicant who fails to achieve a passing score in which open continuous tests may compete again in the written portion of the same test for a period of six months following the original date of taking the test. The closing date for any open continuous test may be set at any time by the Director, with notice of this action to be posted in the office of the Director at least ten days prior to the effective date of the action. (Rep. and Added Ord. 6128, 1962; Am. Ord. 2003-24, § 3, eff. 5-20-03).

SEC. 3-240. INSPECTION OF EXAMINATIONS.

(a) During regular office hours beginning on the first working day after a noncontinuous or nonstandardized examination has been held, a participant may inspect, at the office of and in the presence of an employee under the Director, a keyed copy of the questions in the examination by making an appointment to do so. Duration of the inspection privilege will be determined by the Director on a ratio of one day to each fifteen candidates who took the written portion of the examination, but in no event shall the inspection privilege be for a period of more than five working days. Only one inspection will be allowed. During that period, plus one working day, the participant may file with the Director a written objection to any part of the test stating the item or items objected to and the reason for the objection. Protests based purely on personal opinion and without cited authority will not be considered.

(b) The Director shall consider all properly made protests before the final scoring of the examination papers. In the event the Director determines that a protest has sufficient validity to invalidate or make improper any question or answer, he shall either delete said questions or correct the answers.

(c) Any participant who has so protested and who claims the action of the Director is incomplete or erroneous may appeal his/her action pursuant to the procedure in Section 3-241. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1624; Am. Ord. 72-20, 1972; Am. Ord. 73-116, § 9, eff. 9-2-73; Am. Ord. 96-50, § 8, eff. 8-16-96).

SEC. 3-241. NOTICE OF EXAMINATION RESULTS.

(a) For all promotional examinations:

(1) Every candidate shall be mailed written notice of his/her final rating and of his/her relative standing on the eligible list or of his/her failure to obtain a place on the list. The notice shall state on its face the date of mailing.

(2) During the five working days immediately following the date of mailing of such notice any candidate may inspect his/her written examination papers in the Human Resources office during regular office hours, and shall, upon his/her request and within such time, be granted a consultation with the Director, or the Director's designee, to discuss the correction

of any claimed errors in the compilation of the candidate's total score and to review the reasons for his/her rating. The consultation may include a discussion of the candidate's oral examination ratings and the answers of his/her references, subject to the limitations upon disclosure set forth in Section 3-243.

(3) Any candidate who, after requesting and participating in the consultation as provided for in Subsection (a)(2), claims that his/her final rating in the examination, as determined after such consultation, is erroneous because of clerical error or error in the interpretation or application of any rule relating to the computation of his/her final rating or that there was irregularity, discrimination within the meaning of Section 3-221, or fraud in the conduct of the examination, or any part thereof, may file with the Director, not later than five o'clock P.M. of the tenth working day after the date of mailing of notice of his/her final rating, a written request for review by the Director of his/her contentions. The candidate's request shall specify each claim of error or of impropriety in the conduct of the examination which the Director is requested to review, together with a brief statement of the facts upon which he/she bases each claim. The request shall be verified by the candidate, and the candidate may file therewith additional data, including affidavits, relevant to the facts alleged therein.

(4) Promptly after receipt of any such request, the Director shall inquire into the matters alleged in the request and take action on the request. If the Director finds during this inquiry facts which justify it, the Director may take any one or more of the following actions:

(i) Affirm the final rating of the candidate as determined after the consultation.

(ii) Affirm the results of the examination as not involving any such irregularity, discrimination, or fraud as alleged in the candidate's request.

(iii) Modify the final rating of the candidate by correcting any clerical or other error in the computation of his/her final rating.

(iv) Declare the entire examination, or the oral examination only, a nullity and cancel the eligible list created therefrom, if the Director finds that in the conduct of the examination there was irregularity, discrimination within the meaning of Section 3-221, or fraud, which resulted, or in his/her opinion could have resulted, in substantial prejudice to any candidate.

(5) Upon completion of the inquiry, the Director shall prepare and file in Human Resources, as a public record, a report of the findings and action taken. The Director may include in the report the affidavit of any person concerning facts which the Director may deem relevant to the inquiry. A copy of the report shall be mailed or delivered personally to the candidate who filed the request for review, and, if the action was to cancel the eligible list, a copy of the report shall be mailed or personally delivered to each candidate who was qualified by the examination for placement on the eligible list. If the entire examination is rescheduled, all candidates who participated in the original examination shall be notified and shall be entitled to take the rescheduled examination without further qualification.

(6) Any candidate who requested a review pursuant to Subsection (a)(3) may appeal to the Board from any action of the Director upon the review, and any candidate who was qualified by the examination for placement on the eligible list may appeal to the Board from any action of the Director nullifying all or any part of the examination. The appeal shall be in writing and shall specify the action and the particular parts of the Director's report to which the appellant takes exception, and may include affidavits relevant to the appellant's contentions. Failure to file an appeal with the Board within five calendar days of the date of personal service or within ten calendar days of mailing of a copy of the report to which appellant takes exception shall constitute a waiver of the right of appeal. Upon the filing of any appeal, the Director shall file with the Board a copy of the report and a copy of the request for review. The Director shall notify the appellant of the date of the meeting of the Board at which the matter will be first presented to the Board.

(7) The Board may, upon the record filed with it and without taking additional evidence, affirm the action or actions of the Director and deny the appeal, or it may grant the appeal and order a hearing thereon, to be held not less than ten nor more than fifteen days after the date of its order. Notice of the time and place fixed for the hearing shall be mailed, not less than five days prior to the hearing date, to the appellant, to the candidate who requested the review, and to each candidate who was qualified by the examination for placement on the eligible list, at the address of each as shown on his/her application or the city's personnel records.

(8) At the hearing the Director may present additional evidence, and the appellant, the candidate who requested the review, and any candidate who was qualified by the examination for placement on the eligible list may appear personally, or with representation, and may present evidence and argument. The request for review, the Director's report, and the appeal shall be deemed evidence upon which the Board may find facts upon which to base its decision, and the Board may limit the evidence to be received at the hearing to that which it deems necessary to its decision.

(9) At the conclusion of the hearing the Board shall affirm the action or actions of the Director as set forth in the Director's report unless it shall find from the evidence that any such action constituted an abuse of discretion by the Director. As to any action with respect to which it shall make such a finding, the Board may overrule such action and order the Director to take any alternative action authorized by Subsection (a)(4) relating to the subject matter of the action overruled. The decision of the Board on the appeal, together with findings of fact in support thereof, shall be contained in a written decision filed with its minutes, and, when so made, the decision of the Board shall be final and conclusive.

(10) No decision of the Board upon any appeal hereunder shall be contested in any action or proceeding in any court unless the action or proceeding is commenced within thirty days after the appeal is denied, or, if a hearing is ordered, the date on which the written decision thereon is approved by the Board for filing with its minutes.

(11) Notice of the Board's action denying the appeal, or, if the appeal is granted, a copy of the written decision thereon, shall be mailed to each person entitled under Subsection (a)(5), to notice of the hearing.

(b) For open examinations:

(1) Every candidate in an open examination shall be mailed written notice of his/her final rating and relative standing on the eligible list or of his/her failure to obtain a place on the list. The notice shall state on its face the date of mailing.

(2) During the five working days immediately following the date of mailing of such notice any candidate may inspect his/her written examination papers in the Human Resources office during regular office hours, and shall, upon his/her request and within such time, be granted a consultation with the Director, or the Director's designee, to discuss the correction of any claimed errors in the compilation of the candidate's total score and to review the reasons for his/her rating. The consultation may include a discussion of the candidate's oral examination ratings and the answers of his/her references, subject to the limitations upon disclosure set forth in Section 3-243.

(3) Any candidate who, after requesting and participating in the consultation as provided for in Subsection (b)(2), claims that his/her final rating in the examination, as determined after such consultation, is erroneous because of clerical error or error in the interpretation or application of any rule relating to the computation of his/her final rating, or that there was irregularity, discrimination within the meaning of Section 3-221, or fraud in the conduct of the examination, or any part, may file with the Director by the fifth working day following the consultation, a written request for review by the Director. The candidate's request shall specify each claim of error or of impropriety in the conduct of the examination which the Director is requested to review, together with a brief statement of the facts upon which he/she bases each claim and any additional data, including affidavits, relevant to the facts alleged.

(4) Promptly after receipt of any such request, the Director shall inquire into the matters alleged in the request and take action on the request. If the Director finds during this inquiry facts which justify it, the Director may take any one or more of the following actions:

(i) Affirm the final rating of the candidate as determined after the consultation.

(ii) Affirm the results of the examination as not involving any such irregularity, discrimination, or fraud as alleged in the candidate's request.

(iii) Modify the final rating of the candidate by correcting any clerical or other error in the computation of his/her final rating.

(iv) Declare the entire examination, or any part, a nullity and cancel the eligible list created, readminister a specific part, or promulgate the eligible list based upon the scores achieved in the remaining phases of the examination process, if the Director finds that in the conduct of the examination there was irregularity, discrimination within the meaning of Section 3-221, or fraud, which resulted, or could have resulted, in substantial prejudice to any candidate.

(5) Upon completion of the inquiry, the Director shall prepare and file in Human Resources, as a public record, a report of the findings and action taken. The Director may

include in the report the affidavit of any person concerning facts which the Director may deem relevant to the inquiry. A copy of the report shall be mailed or delivered personally to the candidate who filed the request for review, and, if the action was to cancel the eligible list or a specific part of the examination process, a copy of the report shall be mailed or personally delivered to each candidate who was qualified by the examination for placement on the eligible list. If the entire examination is rescheduled, all candidates who participated in the original examination shall be notified and shall be entitled to take the rescheduled examination without further qualification.

(6) No decision of the Director upon any appeal hereunder shall be contested in any action or proceeding in any court unless the action or proceeding is commenced within thirty calendar days after the date on which the written decision is mailed. (Rep. and Added 6128, 1962; based on former Sec. 2-1625; Am. Ord. 67-95, 1967; Am. Ord. 84-92, § 1, eff. 7-27-84; Am. Ord. 95-33, § 8, eff. 5-12-95; Am. Ord. 95-62, § 7, 9-22-95; Am. Ord. 96-50, § 9, eff. 8-16-96).

SEC. 3-242. SUSPENSION OF APPOINTMENTS.

(a) No appointment shall be made from any eligible list until the expiration of the time provided in Section 3-241 for the granting of consultations.

(b) If any consultation is granted and held, no permanent appointment shall be made until the expiration of the time provided in Section 3-241 the filing of written requests for review, or, if such a request is timely filed, until the Director's report thereon is filed. Thereafter, unless the eligible list has been canceled by the Director's action, permanent appointments may be made from the list as affirmed or as modified by the Director's report, but subject to the qualification, to be agreed to by each appointee in writing, that in the event the eligible list shall be canceled or so modified as to render the appointee ineligible for certification for the appointment, employment in the position shall thereupon automatically terminate. (Added Ord. 67-95, 1967; Am. Ord. 95-33, § 9, eff. 5-12-95).

SEC. 3-243. CERTAIN PAPERS CONFIDENTIAL.

(a) Every candidate's written examination papers, oral rating sheets, and answers of references to inquiries regarding any applicant or candidate, and all information contained therein, shall be deemed confidential and not subject to public disclosure, and shall be subject to inspection only by authorized employees of Human Resources, by the members of the Board, and by such other persons and under such circumstances as hereinafter provided in this section.

(b) The right to inspect any candidate's written examination papers shall be limited to the candidate and to the appointing authority and the City Manager when the candidate has been certified for appointment.

(c) The right to inspect oral rating sheets and answers of references of any applicant or candidate shall be limited to the appointing authority and the City Manager when the candidate to whom they refer has been certified for appointment.

(d) In the course of any consultation with a candidate concerning his rating the candidate may, if requested, be informed of the contents of his oral rating sheets or the answers of his/her references, but to the extent only that disclosure can be made without identifying, directly or indirectly, any oral examiner or any reference as the source of any particular statement or information disclosed, and any Director's review or any appeal proceedings under Section 3-241 shall be subject to the same limitations on disclosure.

(e) Any information or right to inspect to which a candidate is entitled under this section shall also be afforded to his/her attorney and/or to the authorized representative of any employee organization whom the appellant may designate in writing as his/her representative. (Added Ord. 67-95, 1967; Am. Ord. 95-33, § 10, eff. 5-12-95).

SEC. 3-244. PRESERVATION OF EXAMINATION PAPERS.

Examination papers of each examination shall be preserved by the Director for the life of the list created by such examination. The examination papers of an eligible certified for appointment shall be open to the inspection of the appointing officer during such time as the said papers are on file in the office of the Director. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1626).

SEC. 3-245. ORDER OF PLACEMENT ON LIST, OPEN EXAMINATION.

Candidates obtaining the required minimum score in each part in any open examination shall have their names placed on an eligible list for the class for which they were examined in the order of their final scores, including veteran's preference points, if applicable. In the event two or more candidates achieve the same final score, including veteran's preference points, ties shall not be broken. All candidates at that score shall have equal standing on an eligible list. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1630; Am. Ord. 94-106, § 2, eff. 12-9-94; Am. Ord. 95-33, § 11, eff. 5-12-95; Am. Ord. 95-62, § 8, eff. 9-22-95; Am. Ord. 96-50, § 10, eff. 8-16-96).

SEC. 3-246. ORDER OF PLACEMENT ON LIST, PROMOTIONAL EXAMINATION.

The names of candidates who have obtained the required minimum score in each part of any promotional examination shall be placed on a promotional eligible list for the class for which they were examined in the order of their final scores. In the event two or more candidates achieve the same final score, ties shall not be broken. All candidates at that score shall have equal standing on an eligible list. (Rep. and Added Ord. 6128, 1962; Am. Ord. 94-106, § 3, eff. 12-9-94; Am. Ord. 95-33, § 12, eff. 5-12-95; Am. Ord. 95-62, § 9, eff. 9-22-95; Am. Ord. 96-50, § 11, eff. 8-16-96).

SEC. 3-247. DURATION OF LISTS.

Eligible and promotional eligible lists promulgated from a group of persons who have been examined in a competitive examination shall be effective for a period of two years or as determined by the Director and included in the official bulletin announcing the examination.

The duration of an eligible list may be extended by the Director, with written notice to the eligibles, but in no case shall an eligible list remain in effect for longer than three years. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1628; Am Ord. 73-116, § 10, eff. 9-2-73; Am. Ord. 83-2, § 1, eff. 2-4-83).

SEC. 3-248. REMOVAL OF NAMES FROM LISTS.

The director shall remove or withhold from certification the name of an eligible on a list for any of the following reasons:

(1) The eligible has been or is to be appointed from such list to fill a permanent position in the class;

(2) The eligible has been or is to be appointed from a list for another class the minimum salary of which is higher than the minimum salary for the class of the list from which removed;

(3) Filing of a statement by the eligible that he/she is not willing to accept appointment, where approval of a waiver or declination has not been obtained from the Board;

(4) Declination by the eligible of an appointment under such conditions as an eligible had previously indicated in writing would be accepted;

(5) Failure by the eligible to respond within seven calendar days to any written inquiry of the Director or an appointing authority relative to availability for appointment;

(6) From a promotional eligible list, upon separation of the eligible from the city service for any reason other than lay-off;

(7) For classes in the Police Management Unit, after being considered but not appointed to a permanent position from one open eligible list for six vacancies;

(8) For all units, groups, or classes not specifically listed in (7) above after being considered but not appointed to a permanent position from one open eligible list for eight vacancies;

(9) Disapproval of the appointment of the eligible by the City Manager, in writing and for good and sufficient cause, pursuant to Section 705(c) of the Charter which shall result in the withdrawal from certification, and the withholding from re-certification, of the name of the eligible for the specific vacancy for which the appointment was disapproved. (Rep. and Added Ord. 6128, 1962; Am. Ord. 6590, 1965; Am. Ord. 94-52, § 1, eff. 8-26-94; Am. Ord. 94-62, § 1, eff. 9-16-94; Am. Ord. 95-33, § 13, eff. 5-12-95; Am. Ord. 95-26, § 10, eff. 9-22-95; Am. Ord. 96-50, § 12, eff. 8-16-96).

SEC. 3-249. REVIEW OF DISQUALIFICATION OF APPLICANT OR ELIGIBLE.

Any applicant or eligible whose application for examination has been rejected or whose name has been removed from any list by the Director pursuant to Section 3-223 or Section 3-248 of this Code may file a written request with the Board for a review of the action of the Director. Such request for review shall be filed within seven calendar days after the date of mailing of notice of the Director's action, and shall contain a statement of the facts upon which

the request is made. The Board shall notify the applicant or eligible of the time when it will review the action of the Director and shall afford the applicant or eligible an opportunity to appear and present his case. The decision of the Board shall be final. The Board shall act on any such request without unnecessary delay, but no examination shall be postponed because of the pendency of a decision on any such request. No appointment for which a removed eligible would have been entitled to certification shall be made until the time for filing such request for review has expired, or if such a request is timely filed, until the Board has rendered its decision thereon.
(Added Ord. 6128, 1962).

SEC. 3-250. PERMANENT APPOINTMENTS, PRIORITY OF REINSTATEMENT LIST.

Except as otherwise provided in this article, permanent appointments in the classified service shall be made only through certification from an eligible list; provided that appointments shall be offered first to eligibles on the reinstatement list for the class in which the vacancy exists.
(Rep. and Added Ord. 6128, 1962; Am. Ord. 73-116, § 11, eff. 9-2-73).

SEC. 3-251. REQUISITION FOR CERTIFICATION OF ELIGIBLES.

When a vacancy in a permanent or intermittent position in the classified service is to be filled, the appointing authority shall submit a requisition to the Director. The requisition shall state the class title, the number of positions to be filled and other appropriate information as may be required by the Director.
(Rep. and Added Ord. No. 6128, 1962, based on former Sec. 2-1634; Am. Ord. 82-99, § 5, eff. 10-15-82).

SEC. 3-252. CERTIFICATION AND APPOINTMENT OF ELIGIBLES.

(a) Upon receipt of a requisition for certification to fill a permanent position, the Director shall certify eligibles in the following manner and order:

(1) The name of the person standing highest on the reinstatement list for the class shall be certified first. If the requisition requests certification for more than one vacancy in the same class, the Director shall certify from those highest on the reinstatement list for the class up to as many names as there are vacancies.

(2) For all classes identified in Section 3-268(b) where the minimum qualifications mandate current City service: The names of the five persons standing highest on the promotional eligible list shall be certified, if there is no reinstatement list. The first vacancy shall be filled by the appointment of one of the respective highest eligibles certified. The second and each succeeding vacancy shall be filled by appointment from the respective highest then- remaining names. Three names for classes mentioned in Section 3-268(b) shall be considered the minimum necessary to comprise a basic certification.

(3) For all units, groups, or classes not specifically identified in Section 3-268(b), and which are in the classified service: An eligible list shall be established. The Appointing Authority, at the time of requisition, shall identify the composition of the certification using the following options:

(i) A Department Certification that shall be composed of the ten highest-ranking permanent employees working with the requested department. If there are fewer than ten eligibles meeting the criteria for a Department Certification if it is selected as an option, it shall be completed with a General Certification followed by an Open Certification until the appropriate number of eligibles have been certified.

(ii) A General Certification that shall be composed of the ten highest-ranking permanent City employees. If there are fewer than ten eligibles meeting the criteria for a General Certification, it shall be completed with an Open Certification until the appropriate number of eligibles have been certified.

(iii) An Open Certification that shall be composed of the ten highest-ranking persons on the eligible list, without regard to City employment. The first vacancy shall be filled by the appointment of one of the respective highest eligible certified. The second and each succeeding vacancy on subsequent requisitions shall be filled by appointment from the ten highest then-remaining names unless there are not a sufficient number of eligibles on the list to comprise a basic certification. Five names shall be considered the minimum necessary to comprise a basic certification.

(4) When there are fewer than the required number of names on an eligible or a promotional eligible list and certification is requested pursuant to either (2) or (3) above, the Director shall certify the number thereon, and the Appointing Authority may, at the Appointing Authority's option, accept such certification and appoint therefrom, or decline such certification and defer permanent appointment pending the creation of a new list.

(5) When there is neither a reinstatement nor an eligible list for the class, certification from the list authorized pursuant to Section 3-254 of this Code may be made in the order and manner as if such list were for the class.

(b) The names of eligibles who are certified but not appointed shall remain in their relative placement on the list from which they were certified provided such list or the eligible's right to remain thereon has not expired pursuant to other provisions of this article.

(c) When a new eligible or a new promotional eligible list is created, the names of all persons on any existing list which such new list supersedes shall be certified for appointment, pursuant to subsection (a) hereof, before any certifications are made from the new list provided that when the older list contains the names of fewer than the maximum number of names that can be certified, the name or names remaining on such older list shall

be placed at the top of the new list and shall be included in all certifications of persons from the new list until appointed, removed from such list pursuant to this article, or their eligibility for consideration has expired.

(d) When the requisition requests certification to fill a limited position pursuant to Section 3-256 of this Code, certification shall be made in the same order and manner as provided in this section for permanent positions.

(e) The Appointing Authority, or the Appointing Authority's designee, shall be permitted to examine the application and personnel records of each eligible certified for appointment.

(f) Persons eligible for referral pursuant to Section 3-255 of this code shall be referred in addition to the number of names eligible for referral under this section.

(g) Certification and appointment to positions in the Bus Driver and Emergency Services Dispatcher I/II classes shall be made from an eligible list and whenever a vacancy exists in one or more positions in said classifications, the Appointing Authority may select and request certification for appointment of the names of one or more eligibles on such list, without regard to their relative standing on the list. As the initial list is exhausted, additional names will be certified in the same manner as described in this subsection. A requisition shall be submitted for each vacancy being filled. This subsection shall not be deemed to preclude the filling of a Bus Driver and Emergency Services Dispatcher I/II vacancy by transfer thereto of an employee who has qualified for such transfer under section 3-261.

(Rep. and Added Ord. 6128, 1962; Am. Ord. 81-110, § 1, eff. 9-25-81; Am. Ord. 82-99, § 6, eff. 10-15-82; Am. Ord. 87-1, § 2, eff. 2-6-87; Am. Ord. 94-52, § 2, eff. 8-26-94; Am. Ord. 94-62, § 2, eff. 9-16-94; Am. Ord. 95-33, § 14, eff. 5-12-95; Am. Ord. 95-62, § 11, eff. 9-22-95; Am. Ord. 96-50, § 13, eff. 8-16-96; Am. Ord. 2010-13, § 4, eff. 6-14-10; Am. Ord. 2019-048, § 1, eff. 1-20-20).

SEC. 3-253. WAIVER OF APPOINTMENT.

An eligible on any list may waive or decline an appointment to a part-time, intermittent or limited position without losing his place on the list. An eligible on any list who has been certified for appointment to a permanent position may apply in writing to the Director for approval to waive the appointment, stating the reasons for the requested waiver. If the application is denied, the eligible's name shall be permanently removed from the list; if approved, the Director shall determine the further placement of the eligible's name on the list.

(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1647; Am. Ord. 73-117, § 6, eff. 9-2-73; Am. Ord. 82-99, § 7, eff. 10-15-82).

SEC. 3-254. USE OF COMPARABLE LIST.

Whenever there is neither a reinstatement nor an eligible list for the class to which a position belongs, appointment may be made from a list for a class which the Director finds to be comparable in character and to have substantially similar or higher duties, responsibilities and qualifications, and which has substantially the same or higher salary range.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1636; Am. Ord. 73-117, § 7, eff. 9-2-73).

SEC. 3-255. RE-EMPLOYMENT.

A person who achieves permanent status and who voluntarily resigns from city service with proper notice pursuant to Section 3-115 and who had a satisfactory performance record in the last position held may request consideration, without further competitive examination, for appointment to a vacant position in the class in which permanent status was last held or in a lower class in the same series. Such request shall be made in writing to the Director. Consideration for appointment shall be limited to the twenty-four months following the effective date of resignation. When an eligible list is in effect, referral of such person to an appointing authority shall be made in addition to the names certified from an eligible list. Referral may also be made in the absence of an eligibility list. After four referrals hereunder, a person shall no longer be eligible for consideration for appointment. Any person selected for appointment pursuant to this section shall be subject to the same conditions of probation and benefits applicable under the provisions of this article to an employee appointed to the class from an eligible list. There shall be no right of appeal regarding denial of consideration or appointment.
(Added Ord. 84-20, § 1, eff. 3-16-84; Am. Ord. 2010-13, § 5, eff. 6-14-10).

SEC. 3-256. LIMITED AND PROVISIONAL APPOINTMENTS.

(a) When services are needed for an anticipated limited period of time, the appointing authority shall submit a requisition to the Director stating the duration of the proposed employment, and shall appoint an eligible certified by the Director from the appropriate list. The eligible may accept or decline the limited appointment without loss of his position on the list. If there are no eligibles willing to accept appointment to the limited position, the appointing authority may appoint temporarily a qualified person to fill the existing vacancy. No limited appointment shall continue for a period longer than six months, except

(1) during the continuance of any leave of absence of a permanent employee whose position is being filled by such limited appointment, or

(2) when an extension is approved by the Chief Administrative Officer, upon a finding by him that unusual circumstances require such extension.

(b) When a requisition has been submitted to fill a vacancy but no reinstatement or eligible list for the class exists, the appointing authority may appoint provisionally a qualified person to fill the vacancy pending the creation of an eligible list, provided the Director shall have first certified that such person possesses the minimum qualifications

established in the class specifications for the class. When a list for the class has been created, the Director shall forthwith make certification for permanent appointment in the manner provided in this article, and the appointing authority shall then promptly make a permanent appointment to the position, or notify the Director that the appointment will not be made. Any provisional appointment made pursuant to this subsection shall terminate automatically upon the appointment of the eligible to the position, except as provided in subsection (c) of this section.

In no event shall any vacancy in any such position be filled by provisional appointment for a period longer than six months; provided, however, that the Chief Administrative Officer may extend such period, for an additional ninety days only, if he finds from evidence submitted by the Director that difficulties encountered in recruitment require additional time for the creation of a list, or upon a finding by the Chief Administrative Officer that unusual circumstances require such extension.

(c) An employee separating from a permanent position, whether permanent or provisional, may be retained in that position for a period not to exceed 30 days after his replacement has been appointed when, in the opinion of the appointing authority and the Chief Administrative Officer, the best interests of the city would be served by such retention, provided budgeted funds are available. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1649; Am. Ord. 73-116, § 12, eff. 9-2-73; Am. Ord. 82-99, § 8, eff. 10-15-82).

SEC. 3-257. RETENTION OF SEPARATED EMPLOYEES.

An employee separating from a permanent position, whether permanent or provisional, may be retained in that position for a period not to exceed 30 days after his replacement has been appointed when, in the opinion of the appointing authority and the Chief Administrative Officer, the best interests of the city would be served by such retention, provided budgeted funds are available. (Added Ord. 82-99, § 9, eff. 10-15-82).

SEC. 3-258. PROVISIONAL AND INTERIM APPOINTMENTS.

(a) An appointing authority, subject to the approval of the Chief Administrative Officer, may fill a vacant permanent position in a class in the classified service when there is no list by advancing a permanent employee who meets the minimum requirements of the class. During such provisional appointment such employee, when advanced, shall retain permanent status in the regular position without pay therefor, but in lieu thereof, shall be entitled to the compensation to the higher position to which appointed. A provisional appointment to a vacant classified position shall terminate thirty (30) days after certification of names from an eligible list. In no event shall a vacant permanent position be provisionally filled for a period longer than six months except upon written approval of the Chief Administrative Officer.

(b) An appointing authority, subject to the approval of the Chief Administrative Officer, may make an interim appointment to a vacant permanent position in a class in the unclassified service by advancing a regular permanent employee who meets the minimum requirements of the class. During such interim appointment, the employee shall retain permanent status in the permanent position in the classified service without pay therefor, but in lieu thereof, shall be entitled to the compensation of the higher position. The interim appointment may be terminated at the discretion of the appointing authority whereupon the permanent employee shall return to the former permanent position in the classified service. In no event shall a vacant permanent position be filled on an interim basis for a period longer

than six months except upon the written approval of the Chief Administrative Officer. (Rep. and Added Ord. 6128, 1962, based on former Secs. 2-1659 and 2-1663; Am. Ord. 82-99, § 10, eff. 10-15-82).

SEC. 3-259. APPOINTMENT OF PERMANENT EMPLOYEE TO LIMITED POSITION.

An appointing authority, subject to the approval of the Chief Administrative Officer, may fill a vacant limited position by temporary appointment of a permanent employee thereto, for a period not to exceed one year. No such appointment shall be made without the consent of the employee if a reduction in compensation will result. During the temporary appointment, such employee shall retain his permanent status in his regular position without pay therefor, but in lieu thereof he shall be entitled to the compensation of the limited position to which he has been appointed. Unless the rate of pay for such limited position has been calculated to include compensation for sick or vacation leave or both, the employee shall be entitled to such a benefit or benefits which otherwise would have accrued, during the period of temporary appointment, as though he were in his regular position. The appointing authority may at any time cancel the temporary appointment. Upon cancellation of the appointment or end of the period of appointment, the employee shall be returned to his regular position without the prejudice except as provided in this section. (Added Ord. 73-116, § 13, eff. 9-2-73).

SEC. 3-260. TEMPORARY ASSIGNMENT TO PERFORM DUTIES OF ABSENT EMPLOYEE.

(a) Whenever an employee holding a permanent position is absent from duty for any cause, the appointing authority shall, if possible, temporarily assign to one or more employees in the same or higher class such of the work of the absent employee as cannot be deferred until his return. When such assignment is not practicable, the appointing authority of the absent employee may temporarily assign another employee in the same department or office holding a permanent position in a lower class to perform the duties of such absent employee. The employee so assigned shall be entitled to receive the compensation attached to the higher position if his class specifications do not require that he perform said duties in the absence of the regularly assigned employee and if he meets the conditions hereinafter provided in this section.

(b) After any such employee has completed twenty full working days of service (or for Firemen working a twenty-four-hour shift, ten full working shifts) in a higher class pursuant to one or more such assignments, he shall thereafter be paid while so assigned to such higher class the rate of pay attached to such higher class. An employee who has held permanent status in the higher class prior to such assignment shall not be required to complete the qualifying period of service set forth above and shall be paid for the entire duration of his assignment to the higher class at the rate of pay assigned to such higher class.

(c) Before ordering any such assignment to a higher class for which entitlement to qualifying service credit or a higher rate of pay is sought, or promptly after such an assignment

if ordered under emergency conditions, the appointing authority shall execute, and file with the Chief Administrative Officer for his approval, a written statement of such assignment setting forth the assigned employee's name and permanent class, the class and position to which he has been assigned, the period for which the assignment or extension is to be or has been made, and the certification of the appointing authority that:

(1) The assigned employee will perform, during the entire period of such assignment, substantially the full range of the duties and responsibilities of the higher class,

(2) The duties and responsibilities of the position of the absent employee are of such nature that they cannot be held over until the absent employee returns to duty, and

(3) It is not practicable to assign the duties of the absent employee to any other employee or employees in the same or a higher class. No assignment under this section shall be considered for qualifying service credit or any higher rate of pay unless such statement has been filed, and approved by the Chief Administrative Officer, as provided herein.

(d) The provisions of this section relating to compensation shall not apply to an employee assigned to a position in a higher class the rate of pay for which is fixed in accordance with the second paragraph of Section 809 of the Charter. Such an employee shall be paid the rate of pay applicable to the higher class during any such assignment.

(e) In the computation of qualifying service rendered, or the amount of the higher pay to which an employee may be entitled, on assignment hereunder, only full days or shifts of actual duty shall be included, and part days or shifts shall not be combined to make full days or shifts. Time on leave occurring during any assignment shall not be included in any such computation.

(f) A qualifying period and/or rate of compensation different than that previously provided in this section may be established by a salary resolution, memorandum of understanding or other action of the Council. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1663; Am. Ord. 6334, 1963; Am. Ord. 6928, 1967; Am. Ord. 68-3, 1968; Am. Ord. 83-111, § 1, eff. 9-16-83; Am. Ord. 83-141, § 1, eff. 11-18-83; Added Ord. 89-135, § 1, eff. 12-8-89)

SEC. 3-261. TRANSFERS.

(a) A transfer of an employee from a position in one division of a department to a permanent position in the same class in another division in the same department may be made at any time by the appointing authority concerned. All such transfers shall be promptly reported to the Director.

(b) A permanent employee may be transferred from a permanent position in one department to a permanent position in the same class in another department with the approval of the appointing authorities concerned.

(c) A permanent employee may request transfer consideration from a permanent position in one class to a permanent position in another class, the transfer being either within one department or between departments. The appointing authority or authorities concerned must approve such appointment. The employee must either have once held permanent status in the

class to which transfer is being sought and maintained continuous permanent City employment since or the transfer is to an equal or lower class for which the employee meets the minimum qualifications as determined by Human Resources. For purposes of this section, "equal or lower class" means a class having a top step equal to or lower than the top step of the class from which transfer is sought. "Top step" equals base pay only at the highest step in the pay range. It excludes vacation, sick leave, pension, disability payments, premium pay, anticompaction pay, allowances, benefits, or other forms of compensation which is/are either now or hereafter provided by the city;

(d) A permanent employee may be transferred from a position in one class to a position in another class, the transfer being either within a department or between departments, if the appointing authority or authorities concerned and the Director of Administrative Services approve. No such transfer shall be made without the consent of the employee if a reduction in salary will result.

(e) Except where an employee is transferred pursuant to subsection (a) of this section or is transferred without his or her consent, an employee transferred pursuant to this section shall be required to serve a probationary period, as provided in this article, in the position to which transferred, during which time he shall be subject to the same conditions as required on an original appointment except that his rights and privileges already earned shall not be affected. If the transferred person is terminated during the probationary period in the position to which he was transferred, he shall have the right to return to his/her former position; provided, however, that if such former position shall have been abolished, then such employee shall be deemed laid off and his/her name placed on the reinstatement list for the class of such former position in the manner provided in this article for laid-off employees.

(f) Transfers authorized by this section may be made at the request of the employee, if approved by the appointing authority or authorities concerned. Except as provided in subsection (c) of this section, such transfers may also be made upon the initiative of an employee's appointing authority without the consent of the employee whenever the appointing authority deems the transfer to be for the good of the service.

(g) Notwithstanding any other provisions of this article, a transfer made pursuant to this section may be made even though an eligible list exists for the position to which the transfer is made. A request for transfer pursuant to this section shall be considered and determined prior to the making of an appointment to such position from such an eligible list.

(h) Notwithstanding any provision of this section to the contrary, any police officer assigned to motorcycle duty on August 31, 1981, shall be deemed eligible for appointment to the class of Police Specialist. (Rep. and Added Ord. 6128, 1962, based on former Secs. 2-1660 and 2-1661; Am. Ord. 73-116, §§ 14, 15, eff. 9-2-73; Am. Ord. 76-53, § 5, eff. 7-11-76; Am. Ord. 81-113, §§ 1, 2, eff. 9-25-81; Am. Ord. 81-169, § 1, eff. 1-15-82; Am. Ord. 82-99, §§ 11—13, eff. 10-15-82; Amd. Ord. 95-33, § 15, eff. 5-12-95; Am. Ord. 95-62, § 12, eff. 9-22-95; Am. Ord. 96-50, § 14, eff. 8-16-96).

SEC. 3-262. TRANSFERS OF EMPLOYEES PHYSICALLY INCAPACITATED.

(a) An employee who becomes physically incapacitated for the performance of his duties may be transferred with the approval of the Chief Administrative Officer and the written consent of the employee to a position in the same or a lower class for which he is qualified. If no such position is available, the employee may be transferred with the approval of the Chief Administrative Officer and the written consent of the employee to a vacant position in a higher class provided the Director certifies that the employee has the qualifications required to perform the duties of the new position and the employee passes a qualifying examination. Such transfers may be made only if the City Physician finds that the employee meets the medical standards for the new position with no reservations upon the finding.

(b) Whenever an employee transferred pursuant to this section regains his physical capacity for the performance of the duties of the class from which he was transferred, he may, with the approval of all appointing authorities concerned, be retransferred to a position in his former class when a vacancy occurs. If the employee so regains his physical capacity and applies for retransfer and before retransfer is separated from his position for any reason stated in subsection (a) of Section 3-292, he shall be placed upon a reinstatement list for both positions under the provisions of Section 3-292. The regaining of physical capacity shall be determined under Section 3-288.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1662; Am. Ord. 71-8, 1971; Am. Ord. 73-122, § 1, eff. 9-16-73).

SEC. 3-263. SPECIAL PROVISIONS RELATING TO POLICE SPECIALIST CLASS.

(a) Notwithstanding any other provision of this Code, the classes of Patrolman and Police Specialist in the Police Department shall have the status and relationship, and shall be subject to assignment of personnel from one such class to the other, as provided in this section.

(b) No person shall be a candidate for the class of police specialist unless he shall have attained permanent status as a Patrolman in the Police Department and shall have served as a Patrolman for the number of years specified as a qualification in the announcement of any examination.

(c) No person heretofore appointed or hereafter assigned to the class of Police Specialist shall attain permanent status in that class, but shall, at all times during his service as a Police Specialist, retain his permanent status of Patrolman.

(d) The promotional eligible list for the Police Specialist class shall be established and maintained in accordance with the provisions of this article, except as follows:

(1) Such list shall be utilized to establish eligibility for assignment in the manner herein provided, and not for appointment, to the class of Police Specialist, and shall be a continuing list having no expiration date;

(2) Names of candidates who have qualified in a promotional examination for placement on such list shall be placed on such list in alphabetical order, without reference to examination scores;

(3) The appointing authority may assign to a vacant position in the class of Police Specialist any eligible on such list;

(4) The name of any person whose name has remained on such list continuously for a period of three years without having received an assignment to Police Specialist shall be permanently removed from such list, and such person shall not thereafter be deemed eligible for appointment until he has again qualified for the list by examination under the usual procedures.

(e) A Police Specialist may be assigned by order of the appointing authority to a position in the class of Patrolman whenever the appointing authority determines such assignment is necessary or desirable for the good of the police service. The assignment order shall state the reason for the assignment and a copy of the order shall be delivered to the person assigned, who shall have the right, if he requests it, to a conference with the appointing authority or his designated representative, within thirty days after the assignment, but shall have no right of appeal from the appointing authority's decision. Upon such assignment the person assigned shall revert to his permanent status as a Patrolman and shall be compensated during such assignment at the highest step in the salary range for Patrolman but provided, that if the assignment order shall state that the assignment is for a stated period or for the duration of a specified emergency requiring augmentation of the patrol force, then during such temporary assignment, but not exceeding sixty days, the person so assigned shall continue to be compensated as a Police Specialist.

(f) Any Police Specialist who is assigned pursuant to subsection (e) shall have his name restored alphabetically to the promotional eligible list for Police Specialist, and shall, except as provided in subsection (d)(4), continue thereafter to be eligible for assignment to the Police Specialist class.

(g) Nothing contained in this section shall be deemed to preclude provisional appointments pursuant to Section 3-258, or temporary assignments pursuant to Section 3-260, to the class of Police Specialist.

(h) Notwithstanding any provision of subsection (d) of Section 2-1651.2 to the contrary, any police officer assigned to motorcycle duty on August 31, 1981, shall be deemed eligible for assignment to the class of Police Specialist.
(Added Ord. 71-9, 1971; Am. Ord. 81-170, § 1, eff. 1-15-82).

SEC. 3-264. SPECIAL PROVISIONS RELATING TO FIREFIGHTER TRAINEE CLASS.

(a) Notwithstanding any other provision of this Code, whenever the class of Firefighter Trainee is created, the selection and appointment of persons to positions in the class, the tenure of employees in such positions, and their entitlement to employee benefits, shall be governed by this section.

(b) The class of Firefighter Trainee is a class created for the special purpose of providing an interim training class leading to ultimate appointment to the class of Firefighter. Subject to the limitation in subsection (e) on duration of service in the position, each position in the Firefighter Trainee class shall be deemed a full-time permanent position in the classified service in all respects, including membership in the Fire and Police Retirement System, except as otherwise provided in this section.

(c) Certification and appointment to positions in the Firefighter Trainee class shall be made only from an existing eligible list for the class of Firefighter. Whenever a vacancy exists in one or more positions in the Firefighter Trainee class the appointing authority may select and request certification for appointment of the names of one or more eligibles on such list, without regard to their relative standing on the list. This subsection shall not be deemed to preclude the filling of any Firefighter Trainee vacancy by transfer thereto of an employee who has qualified for such transfer under 3-261.

(d) Persons appointed to positions in the Firefighter Trainee class shall be subject to the probationary service requirements in this article; provided, that at any time after such appointment the appointing authority may appoint any Firefighter Trainee to a vacant position in the Firefighter class whenever he finds from a review and evaluation of the employee's service record that his performance merits such appointment. Employees so appointed to positions in the Firefighter class shall serve the same probationary period, and subject to the same conditions of probation, as required of other appointees to the Firefighter class.

(e) The name of a Firefighter Trainee who is terminated during his probationary period shall not be restored to the eligible list from which he was appointed or to any other eligible list. If a Firefighter Trainee is not terminated during probation, the Firefighter Trainee shall attain permanent status and shall be entitled to appointment, in the order of attainment of permanent status, to the first available vacant position in the Firefighter class, notwithstanding the existence of an eligible list for, or employees qualified under Section 3-261 for transfer to, such class.
(Added Ord. 74-37, § 1, eff. 4-21-74; Am. Ord. 76-26, § 2, eff. 4-25-76; Am. Ord. 78-40, § 2, eff. 4-14-78; Am. Ord. 2017-68, § 1, eff. 1-18-18).

SEC. 3-265. SPECIAL PROVISIONS RELATING TO POLICE OFFICER RECRUIT CLASS.

(a) Notwithstanding any other provision of this Code, whenever the class of Police Officer Recruit is created, the selection and appointment of persons to positions in the class, the tenure of employees in such positions, and their entitlement to employee benefits, shall be governed by this section.

(b) The class of Police Officer Recruit is a class created for the special purpose of providing training and experience for employees leading to ultimate appointment to a position in the class of Police Officer. Each position in the Police Officer Recruit class shall be deemed a full-time permanent position in the classified service in all respects, including membership in the Fire and Police Retirement System, except as otherwise provided in this section.

(c) Certification and appointment to positions in the Police Officer Recruit class shall be made only from an existing eligible list for the class of Police Officer or Police Officer Recruit. If, in the judgment of the Chief Administrative Officer, it becomes necessary to establish a list for the class of Police Officer Recruit, the examination process used for establishing such a list shall be substantially similar to that used to establish the list for Police Officer. Whenever a vacancy exists in one or more positions in the Police Officer Recruit class the appointing authority may request certification for appointment of the names of one or more eligibles on such lists and make appointments based thereon without regard to their relative standing on the list. This subsection shall not be deemed to preclude the filling of any Police Officer Recruit vacancy by transfer thereto of an employee who has qualified for such transfer under Section 2-1651.1. No appointment to a position in the class of Police Officer Recruit may be made from the list for Police Officer if a current list for Police Officer Recruit exists, provided there are at least three names on such list.

(d) Persons appointed to positions in the Police Officer Recruit class shall be subject to the probationary service requirements in this article; provided, that at any time after such appointment and satisfactory completion of a prescribed course of instruction at the Police Academy, the appointing authority may appoint any Police Officer Recruit to a vacant position in the Police Officer class whenever he finds from a review and evaluation of the employee's service record that his performance merits such appointment. Employees appointed to positions in the Police Officer class from a position in the class of Police Officer Recruit shall serve the same probationary period, and be subject to the same conditions of probation as required of other appointees to the Police Officer class.

(e) The name of a Police Officer Recruit who is terminated during his probationary period shall not be restored to the eligible list from which he was appointed and shall be removed from the list for Police Officer if he is on such list. If a Police Officer Recruit is not terminated during probation, he shall attain permanent status and shall be appointed, in the order of his attainment of permanent status, to an available vacant position in the Police Officer class, each such appointment alternating one for one with appointments from the eligible list for Police Officer. The provisions of Section 3-275(b) shall not apply to an employee terminated during his probationary period as a Police Officer after appointment from a position in the class of Police Officer Recruit in which the employee obtained permanent status.
(Added Ord. 75-97, § 1, eff. 10-26-75).

SEC. 3-266. SPECIAL PROVISIONS RELATING TO POLICE CADET CLASS.

(a) Notwithstanding any other provision of this Code, the selection, appointment and tenure of employees in the Police Cadet program shall be governed by this section.

(b) The classes of Police Cadet I and Police Cadet II are created for the special purpose of providing training and experience to incumbents and are designed ultimately to lead to appointment to a full-time permanent position in the Police Department. Each position in the Police Cadet series shall be a permanent full-time position, except as otherwise provided in this section.

(c) Certification and appointment to positions in the Police Cadet I class shall be made from an eligible list established for the class of Police Cadet I. Whenever a vacancy exists in one or

more positions in the Police Cadet I class, the appointing authority may request certification for appointment of the names of one or more eligibles on such list and make appointments based thereon without regard to their relative standing on the list.

(d) Persons appointed to positions in the Police Cadet series shall be required, as a condition of employment, to participate in prescribed on-going training and education activities designed to prepare a Police Cadet for appointment to a full-time permanent position in the Police Department. Employment in the series of Police Cadet shall be limited to four calendar years (48 months) during which period a Police Cadet shall be examined and appointed to a full-time permanent position in the Police Department or shall be terminated from the program. Employment in the program may be extended beyond the four-year period only until such time as a vacant full-time permanent vacancy becomes available in the class for which the Police Cadet has been examined and deemed eligible for appointment.

(e) The name of a Police Cadet who is terminated from the program shall not be restored to the eligible list from which that individual was appointed and shall be removed from the eligible lists for Police Officer, Police Officer Recruit, Academy Trainee, Emergency Service Dispatcher, Community Services Officer, Property and Evidence Technician, Neighborhood Services Representative and Identification Technician. The provisions of Section 3-275(b) shall not apply to an employee terminated during the probationary period in any full-time permanent position if appointed directly from a position in the class of Police Cadet. (Added Ord. 91-117, § 1, eff. 12-13-91; Am. Ord. 93-63, § 1, eff. 11-5-93; Am. Ord. 2002-18, § 1, eff. 4-29-02).

SEC. 3-267. EMERGENCY APPOINTMENTS.

Any department head, with the approval of the Chief Administrative Officer, may employ such persons as may be needed in any emergency without complying with the provisions of this article governing appointment. Such emergency appointments shall be reported to the Director within twenty-four hours, and shall not exceed fifteen days' duration.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1650).

SEC. 3-268. SUSPENSION OF COMPETITION.

(a) Where a vacancy exists in a position which requires the person employed therein to render professional, scientific, technical or expert services of a peculiar or exceptional character, the Director may, if satisfied that the position can best be filled by the selection of some designated person of recognized attainments, authorize appointment to be made to such position by the appointing authority without the creation of an eligible list by competitive examination.

(b) For the classes of Police Sergeant, Police Lieutenant. Police Captain, Deputy Police Chief, Firefighter Specialist, Fire Captain, Fire Battalion Chief, and Fire Deputy Chief, and

(c) For all units, groups, or classes not specifically listed in (b) above: When the number of applications received from qualified applicants exceeds the "Rule of" by five or less, the Director may suspend competition, thereby providing all qualified candidates directly to the appointing authority with equal standing for hiring consideration. Qualified candidates shall be placed upon the eligible list in alphabetical order by last name.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1651; Am. Ord. 95-10, § 4, eff. 3-3-95; Am. Ord. 95-33, § 16, eff. 5-12-95; Am. Ord. 95-62, § 13, eff. 9-22-95; Am. Ord. 95-99, § 1, eff. 1-19-96; Am. Ord. 96-50, § 15, eff. 8-16-96; Am. Ord. 2010-13, § 6, eff. 6-14-10).

SEC. 3-269. ASSIGNMENTS OF MANAGEMENT AND CONFIDENTIAL UNIT EMPLOYEES.

(a) The Chief Administrative Officer may for purposes of training, job enrichment, personnel exchange, or other reasons deemed to benefit the city:

(1) Assign an employee holding a permanent position in the management and confidential unit to work for a private or public entity pursuant to a contract executed by the Chief Administrative Officer which shall require the assigned employee's full salary and retirement benefits be paid by the entity to which assigned, and which shall set forth all other terms and conditions of the assignment.

(2) Release an employee holding a permanent position in the management and confidential unit from city service to work for a private or public entity on such terms and conditions as the Chief Administrative Officer may specify in writing. An employee released from city service under this subsection shall have the same rights and benefits, including reinstatement rights and retirement benefits, as do employees absent on military leave pursuant to Section 3-111 of this Code, except that such rights and benefits shall not accrue when the employee does not return to city service at the end of the authorized release period.

(b) No assignment or release under this section shall exceed one year.
(Added Ord. 73-116, § 16, eff. 9-2-73; Am. Ord. 83-33, § 1, eff. 4-15-83).

SEC. 3-270. SPECIAL PROVISION RELATING TO EXPERIENCE AS QUALIFICATION FOR PERMANENT APPOINTMENT TO POSITION IN CLASS OF WASTE COLLECTOR.

(a) A part-time employee paid on an hourly or per diem basis holding a position in the class of Waste Collector on October 16, 1979, who completed at least 1040 hours of service in that class during the eighteen-month period prior to October 16, 1979, shall be rated on his performance in that class by his department head on a form provided by the Director. Such rating shall reflect the employee's qualifications as exhibited by his performance during such period, for permanent appointment to a position in the class of Waste Collector.

(b) The final performance rating given under subsection (a) shall be the employee's examination grade. Employees who receive a grade of seventy or higher shall have their names placed at the top of the eligible list for the class in the order of their respective examination grades. Appointed of any such eligible from an eligible list created pursuant to the above shall be in accordance with the appropriate provisions of this article.

(c) Any such employee, as defined in subsection (a), who fails to achieve a position on an eligible list, due to a final performance rating which does not qualify him for such placement, shall be dismissed from employment.

(d) An employee who qualifies for placement on an eligible list in accordance with this section may be removed from his part-time position only for cause, subject to a right to appeal such termination to the Civil Service Board, as provided in this article.

(e) This section shall not apply to any employee whose position is funded, in whole or in part, by another governmental agency. (Added Ord. No. 74-82, § 1, eff. 9-22-74; Am. Ord. 76-122, § 1, eff. 1-16-77; Am. Ord. 79-189, § 1, eff. 1-40-80).

SEC. 3-271. SPECIAL PROVISION RELATING TO EXPERIENCE AS QUALIFICATION FOR PERMANENT APPOINTMENT TO POSITIONS IN THE CLASS OF RECREATION LEADER OR RECREATION SPECIALIST.

(a) Part-time employees paid on an hourly or per diem basis holding temporary positions in the class of either Recreation Leader or Recreation Specialist on December 1, 1987, who completed at least 1040 hours of continuous service in either class during the eighteen-month period prior to June 1, 1989, shall be rated on their performance in that class by the department head on a form provided by the director. Such rating shall reflect employees' qualifications, as exhibited by their performance during such period, for permanent appointment to positions in the class of Recreation Leader or Recreation Specialist.

(b) The final performance rating given under subsection (a) shall be the examination grade. Employees who receive an overall grade of seventy or higher shall have their names placed on the eligible list for Recreation Leader or Recreation Specialist in order of their respective examination grades. Appointment of any such eligible from an eligible list created pursuant to the above shall be in accordance with the appropriate provisions of this article.

(c) Such employees, as defined in subsection (a), who fail to achieve a position on an eligible list, due to final performance ratings which do not qualify them for such placement, shall be dismissed from employment.

(d) An employee who qualifies for placement on an eligible list in accordance with this section may be removed from a permanent position only for cause, subject to a right to appeal such termination to the Civil Service Board, as provided in this article. (Added Ord. 89-130, § 1, eff. 11-17-89).

SEC. 3-272. PROBATIONARY PERIOD.

(a) Except as otherwise provided in this section, all employees appointed to permanent positions in the classified service are subject to a probationary period of one year, or such lesser period as may be designated by resolution of the Council for employees appointed, on or after July 1, 1974, to permanent positions in classes specified in such resolution.

(b) The appointment of any person on a reinstatement list to the position in which he held permanent status immediately prior to his placement on such list shall not be subject to a probationary period; nor shall the appointment of any person from a reinstatement list to a position in the same department and having the same class title as that held by him immediately prior to his placement on such list be subject to a probationary period.

(c) The probationary period for any person appointed to a part-time permanent position or to an intermittent position shall be for a period of actual service equal to the probationary period established for a full-time permanent position in the same class. For the purpose of this subsection, a probationary period of one year shall equal 2080 hours of work, not including overtime, and a probationary period of six months shall equal 1040 hours of work, not including overtime.

(d) The probationary period shall be an essential part of the examination process and shall be used for the effective adjustment of the employee and for the elimination of any probationary employee whose performance fails to meet the required standard of work. Time spent on any leave of absence, or time during which an employee is unable to perform the full range of duties due to injury or illness whether or not job-related, shall not be considered as a part of any probationary period, and such time will be added to the probationary period. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1639; Am. Ord. 72-20, 1972; Am. Ord. 74-68, § 1, eff. 8-26-74; Am. Ord. 82-99, § 14, eff. 10-15-82; Am. Ord. 83-92, § 1, eff. 7-22-83).

SEC. 3-273. TERMINATION OF PROBATIONER DURING PROBATIONARY PERIOD.

Any probationary employee may be terminated by the appointing authority during the probationary period for reasons related to such employee's qualifications or the good of the service, or for failure to demonstrate merit, efficiency, fitness or moral responsibility. Notice of such action, accompanied by the statement of the specific reasons therefor, shall be approved

by the statement of the specific reasons therefor, shall be approved by the Chief Administrative Officer and filed by the appointing authority with the Director, and a copy shall be served upon such employee.
(Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1640).

SEC. 3-274. TRANSFER WHILE ON PROBATION.

An employee may be transferred during his probationary period from a permanent position in one department to a permanent position in the same or lower class in the same or another department. Such employee shall be required to serve a full probationary period as required in this article in the position to which transferred, during which time he shall be subject to the same conditions as required on an original appointment except that privileges already earned shall not be affected. Transfers pursuant to this section shall be subject to the provisions of subsections (c) or (d), and subsection (g), of section 3-261.
(Rep. and Added Ord. 6128, 1962; Am. Ord. 78-120, § 1, eff. 9-1-78; Am. Ord. 82-99, § 15, eff. 10-15-82).

SEC. 3-275. EFFECT OF TERMINATION DURING PROBATIONARY PERIOD.

(a) The name of a terminated probationary employee shall not be restored to any list unless he was appointed from a reinstatement list in which case his name shall be restored to such list in the place to which he would be entitled if the termination were an original layoff, or, if the sole reason for the termination is that the position has been abolished or a decision made not to fill the position, the terminated employee's name shall be restored to its former place on the eligible list from which he was appointed, if such eligible list has not expired.

(b) A probationary employee who is terminated for any reason, and who, immediately prior to his appointment to the position, held permanent status in a position in another class in the city service, shall have the right to resume his permanent status in such former position if the appointing authority for such former position gives his written consent thereto, and provided that such former position has not been abolished and is either vacant or temporarily filled by a provisional appointee; otherwise he shall be placed, at his request, on the reinstatement list for the class of such former position as if he, as of the date of his probationary termination, had been laid off from such former position. Election to resume his former position, or to be placed on the reinstatement list, as the case may be, shall be made by the employee within ten calendar days after notice is given to him of his termination, which notice shall advise him of his rights under this subsection. Notwithstanding the foregoing, if the termination is from a promotive position, the employee shall resume the position from which he was promoted, but if such former position shall have been abolished, his name shall be placed on the reinstatement list for the class of such former position.
(Rep. and Added Ord. 6128, 1962, based on former Secs. 2-1642 and 2-1644; Am. Ord. 73-116, § 17, eff. 9-2-73).

SEC. 3-276. PROMOTED EMPLOYEE, ELIGIBILITY FOR EXAMINATION ON FAILURE OF PROBATION.

An employee who has passed a promotional examination and received an appointment to the position, and who fails to qualify during his probationary period in the new class, shall not be permitted to take the examination for the same position for a period of one year following the date of the order of his termination.
(Rep. and Added Ord. 6128, 1962).

SEC. 3-277. EMPLOYEES IN THE UNCLASSIFIED SERVICE.

(a) Any employee who has achieved permanent status in the city service and is thereafter appointed to a position in the unclassified service, may, at any time within six months of appointment to said position in the unclassified service, resign such position and be reinstated to a position in the classified service previously held by the employee.

(b) In the event an employee in the unclassified service elects to exercise the option provided under subsection (a) of this section and is reinstated to a position in the unclassified service, the provisions of Section 3-291(b) shall be applied in order to accommodate such reinstatement.

(c) In the event of a general reduction in force or layoff, other than by reorganization or elimination of individual positions, a represented employee in the unclassified service whose permanent position is eliminated shall have the same rights, under the same conditions, as provided to classified employees pursuant to Section 3-291, except that nothing herein shall restrict the appointing authority's ability to determine the positions in the unclassified service to be eliminated. This provision shall not apply to represented employees in Bargaining Unit 14, hired by the City on or after December 30, 2013.

(d) A Council Assistant shall be automatically terminated from City service no later than when the appointing Councilmember's successor assumes office. This provision shall not prohibit a Council Assistant from being reappointed by another Councilmember or in any other position in City service.
(Added Ord. 81-50, § 1, eff. 5-22-81; Am. Ord. 2010-14, § 1, eff. 6-14-10; Am. Ord. 2014-8, § 1, eff. 2-19-14; Am. Ord. 2015-33, § 1, eff. 11-19-15).

SEC. 3-278. FAILURE TO RESPOND: WHEN DEEMED A DECLINATION. REQUEST FOR RESTORATION TO LIST.

(a) When an eligible certified for an appointment shall fail, within seven calendar days, to answer any inquiry of the Director relative to his availability for certification, he shall be deemed to have declined the appointment. If, after having accepted an appointment, such an eligible fails to present himself for duty at the time agreed upon, he shall, unless the time is extended by the appointing authority, be deemed to have declined the appointment.

(b) A person whose name has been removed from an eligible list for failure to respond to a certification may request that his name be restored to such list. The request shall be in writing

and shall state satisfactory reasons for failure to respond. The Director may, in his discretion, approve or deny such request. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1645; Am. Ord. 73-117, § 8, eff. 9-2-73).

SEC. 3-279. RESIGNATION.

Whenever an employee resigns from the city service he shall execute the necessary forms prescribed by the Director for termination purposes. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1653).

SEC. 3-280. PROCEDURE TO PRECEDE IMPOSITION OF FINE, SUSPENSION OR REMOVAL.

(a) Prior to the final determination by the appointing authority to initiate disciplinary action against an employee having permanent status, in the form of a fine, suspension, or removal, the appointing authority shall serve personally upon the employee who is the subject of such proposed action, or, if the employee cannot with reasonable diligence be found, shall mail to said employee at the employee's address, as shown by records maintained by the Department of Personnel and Labor Relations, a Notice of the Proposed Action, which Notice (1) shall be on a form prescribed or approved by the Director, (2) shall advise the employee of the reasons for the proposed action, (3) shall include the charges against the employee and have attached thereto and incorporated therein by reference any written material upon which the proposed action is based, and (4) shall advise the employee that imposition of the proposed action shall be stayed for a period of seven calendar days from the date of service or mailing of the Notice during which time the employee may respond to the charges, either orally or in writing, to the appointing authority. The Director shall, at the written request of such employee, prior to expiration of such period and for good cause shown, extend the period during which the proposed action is stayed and during which such employee may respond to the charges. The Director may, at his sole discretion, extend such period to facilitate fair administration of the disciplinary process. The stay, whether for seven calendar days or for such greater number as an extension granted by the Director may permit, shall be deemed terminated upon earlier receipt and review by the appointing authority of the employee's response to the charges, whether such response is made orally or in writing.

(b) Any written response by the employee to the charges shall be filed by the employee with the appointing authority not later than the end of the period during which imposition of the disciplinary action has been stayed. Such response shall be subscribed by the employee and shall declare under penalty of perjury that the assertions of fact contained therein are true and correct.

(c) Upon receipt of a timely response filed by the employee, whether oral or written, and after giving consideration to the response filed, or upon expiration of such period in the event the employee has not filed a response, the appointing authority may proceed to impose disciplinary action in accordance with the provisions of Sections 3-282 through 3-290 of this Code.

(d) In those extraordinary circumstances, wherein the appointing authority determines immediate disciplinary action is necessary against an employee having permanent status as a result of accusations against such employee involving misappropriation of public funds or property, drug addiction, mistreatment of persons in the custody of the employee, physical assault upon another employee or a member of the public, or action which would constitute a felony or misdemeanor involving moral turpitude, the appointing authority may proceed to impose disciplinary action in accordance with the provisions of Sections 3-282 through 3-290 of the Code without compliance with the procedure set forth in this section. (Added Ord. 75-125, § 2, eff. 1-4-76).

SEC. 3-281. SUSPENSION.

(a) The appointing authority may, subject to the approval of the Chief Administrator Officer and the provisions of the Charter, suspend for disciplinary reasons, without pay, an employee under his jurisdiction for a reasonable time, not exceeding thirty days, for any one offense and at any one time; provided, however, that when an employee is charged with the commission of a crime, the appointing authority, subject to the approval of the Chief Administrative Officer and the provisions of the Charter, may suspend such employee, without pay, until the charge against him has been finally determined or otherwise terminated. If such employee is convicted, or enters a plea of nolo contendere, he shall receive no compensation for the period of time he shall have been under suspension, and shall again be entitled to compensation only from and after the effective date of his reinstatement after further proceedings for suspension or removal in conformity with this article. If such employee is acquitted, his suspension shall be lifted and his pay which has been withheld shall be restored, less any sums earned by the employee in other employment during such suspension. Any employee suspended pursuant to this section shall be served with an order of suspension in the same manner as provided in this article for orders of removal, and the same rights and procedures for answer and hearing shall apply. In lieu of suspension a department head may fine an employee not more than one hundred dollars ($100.00) for any one offense. The amount of the fine may be increased by mutual agreement between the City and a particular bargaining unit through an approved Memorandum of Understanding, Side Letter of Agreement, or authorized Resolution of the Council. Any employee upon whom such a fine has been imposed shall have the same right of answer and hearing as in the case of a suspension without pay. All fines levied under this section shall be deposited in the general fund of the city.

(b) Except as otherwise provided in this section, no employee shall be suspended from his position for disciplinary reasons for any cause under the provisions of this article for a period of longer than thirty calendar days. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1654; Am. Ord. 79-51, § 1, eff. 4-27-79; Ord. No. 94-95, § 1, effective 11-11-94).

SEC. 3-282. REMOVAL OF PERMANENT EMPLOYEE.

(a) The appointing officer, subject to the approval of the Chief Administrative Officer and the provisions of the Charter, may remove any permanent employee under his jurisdiction for any cause provided in this article and, within ten calendar days thereafter, he shall file with

the Board an order of removal, stating the cause or causes on which the order is based. Within such period of ten calendar days, the removed person shall be served personally with a copy of the order of removal; provided, that if he cannot with reasonable diligence be found, then a copy thereof shall be mailed within such period to his last known address. Such mailing shall be deemed to be equivalent to personal service. Proof of such service shall be filed with the Board.

(b) The person so served may file with the Board, within fifteen calendar days of the service upon him of an order of removal, a written answer to the allegations and charges in such order and a demand for an appeal hearing. The written answer shall specify the allegations in the order which are disputed and shall contain denials thereof or contrary allegations, and if the extent or degree of disciplinary action is disputed, the reasons for such dispute. The Director may provide a standard answer form, which, upon approval of its use by the Board, shall be used by the appellant. If, in the opinion of the Secretary of the Board, an appeal fails to comply substantially with the requirements of this subsection, the Secretary may give written notice of such insufficiency to the appellant at any time within five calendar days after the appeal is presented, stating with particularity the defects or omissions therein. Failure of the appellant to file an amended appeal within five calendar days of the date of personal service or within ten calendar days of mailing of such notice of insufficiency shall constitute a waiver of the right of appeal or the right to challenge any portion of the order, as the Secretary shall designate in the notice. The Secretary of the Board shall immediately serve one copy of any appeal on the appointing officer. The Board may adopt rules and regulations designed to clarify, simplify, and limit the issues before the Board. A failure to timely file such an answer and demand shall terminate the right to a hearing and the order shall be deemed final. Pending any hearing for reinstatement, the removed person shall receive no compensation. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1655; Am. Ord. 71-78, 1971; Am. Ord. 83-117, § 3, eff. 9-30-83).

SEC. 3-283. ALTERNATE APPEAL PROCEDURE.

(a) An approved memorandum of understanding between the Council and an appropriate employee unit may provide that a permanent employee holding a position within such unit who has been served with an order of removal, suspension, demotion or fine in lieu of suspension may, in filing a written answer and demand for an appeal hearing with the Board pursuant to subsection (b) of Section 3-283, expressly waive his right to a hearing before the Board and demand that his appeal be governed by the provisions of this section and be heard by a hearing officer selected as provided in subsection (b) of this section, which demand shall be on a form provided by the Director. The hearing officer shall regulate the conduct of the hearing process. The hearing officer shall set the date, time and place of the hearing, which place shall be on city premises, and shall, by certified United States mail, postage prepaid, give not less than ten days' notice of such date, time and place to the appellant, or his designated representative, the appointing authority and the Director. The hearing shall be recorded by a court reporter or electronic process. Oral evidence may be heard only on oath or affirmation. Such hearing shall not be subject to the provisions of Section 3-284. The hearing officer shall, within thirty (30) calendar days of the close of the hearing, file with the Board his findings of

fact and decision recommending affirmation, modification, modification with conditions, or revocation of the order, and shall mail a copy of his findings and decision to the appellant and to the appointing authority. At its next regular meeting after the filing of such findings of fact and decision with the Board, or on the date to which the matter may have been continued by the Board, the Board shall, without taking evidence or hearing argument on behalf of either the appellant or the appointing authority, consider the findings of fact and decision of the hearing officer and either affirm, modify, modify with conditions, or revoke the order. Notice in writing of the decision of the Board shall be mailed to the appellant and the appointing authority and shall be filed with the Director.

The decision of the Board shall be final for all purposes unless an action or proceeding is commenced in a court of competent jurisdiction to determine the validity of the decision within thirty calendar days of the date of mailing of the notice of decision to appellant and the appointing authority.

(b) The hearing officer shall be selected as follows: The city, by and through the Chief Administrative Officer or his designated representative, and the employee or the recognized employee organization ("Organization") representing employees pursuant to Article 6 of this chapter, on behalf of the employee and with the employee's written concurrence and acceptance of the procedure and obligations set forth herein, shall request a list of neutrals from the State Conciliation Service or the American Arbitration Association. Such list shall be requested within five working days of receipt of an employee's appeal demanding a hearing before a hearing officer. The Chief Administrative Officer, or his designee, and the employee, or the Organization upon written authorization by the employee, shall meet not later than three working days after they have received the list and, utilizing the alternate strike method with the party striking first determined by the toss of a coin, shall select the hearing officer. Should the person selected as the hearing officer be unavailable to commence the hearing process within three weeks of the date of his selection, the parties shall request another name from the State Conciliation Service or American Arbitration Association and shall proceed again through the list as provided above. Should the hearing officer thereafter selected be so unavailable, another list of neutrals shall be jointly requested and the selection process repeated. The fees and expenses of the hearing officer shall be shared equally by the parties, the employee paying, through payroll deduction over a period not to exceed twelve payroll periods or through deduction from any sum payable to the employee upon removal or upon resignation prior to satisfaction of the employee's obligation hereunder, half such fees and expenses (or such other portion as determined by the hearing officer and concurred in by the Civil Service Board as provided below); except as the Organization has, prior to the striking of names, indicated in writing to the Director its acceptance of such responsibility, in which event such amount shall, over a period not to exceed six months, be deducted from monies payable to the Organization pursuant to Section 3-620 and any applicable memorandum of understanding. The hearing officer may apportion fees and expenses on other than a fifty-fifty basis, subject to the concurrence by the Board. Should the Board not concur, such fees and expenses shall be shared equally by the parties. The decision of the Board shall be final. (Added Ord. 77-23, eff. 3-27-77; Am. Ord. 81-42, § 1, eff. 5-7-81)

SEC. 3-284. APPEAL PROCEDURE, DISCIPLINARY MATTERS.

(a) Each hearing upon an appeal from any order of suspension, fine, demotion, or removal and the answer thereto shall be had as soon as practicable after the answer is filed. The Board or the Secretary of the Board shall fix the time and place for such hearing, and not less than ten days' notice of the time and place of such hearing shall be given to the appointing officer, the City Attorney, and to the appellant or his representative of record. Each party may be heard in person or by representative, and produce witnesses and evidence on his behalf.

(b) If the appellant shall fail to appear, either personally or by his representative, at the time and place described in the notice of the hearing or in any order of the Board or written stipulation of the parties filed with the Board, and if it shall appear that the notice of the hearing or any continuance thereof ordered by the Board was duly served upon or known to the appellant or his representative, the Board shall dismiss the appeal, and the order appealed from shall thereupon be deemed final.

(c) The Board shall regulate the conduct of hearings so that the same will not be necessarily prolonged. Continuances of the hearing may be granted by the Board on motion of either party for good cause shown or on the Board's own motion. A request for continuance by stipulation of the appellant and the appointing officer or their representatives may be granted by the Chairman of the Board.

(d) The Board may confine witnesses in their testimony to the matters under consideration, and shall not be bound by the technical rules of the evidence and pleading, and may refuse to hear cumulative testimony. Oral evidence may be heard only on oath of affirmation. During the course of the hearing the Board may visit any place involved in the proceedings and may there receive oral testimony of any sworn witness. Unless express written waiver is received from both parties, the hearing shall be recorded by a court reporter or electronic process.

(e) The Board may affirm, modify, modify with conditions, or revoke the order. The decision of the Board shall be final for all purposes unless a court review thereof is sought within thirty days after such decision is entered into the minutes of the Board. Written findings and decision shall be rendered by the Board and copies thereof shall be delivered to the appellant and the appointing officer and filed with the Director. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1656; Am. Ord. 71-78, 1971).

SEC. 3-285. DEMOTION OF PROMOTED EMPLOYEE.

The appointing officer, subject to the approval of the Chief Administrative Officer and the provisions of the Charter, may demote a promotional appointee who has attained permanent status in a promotive position to the position he occupied on a permanent status prior to his promotional appointment, for any cause for which he might have been suspended or removed from such position. Any employee demoted pursuant to this section shall be served with an order of demotion in the same manner as provided in this article for orders of removal, and the same rights and procedures for answer and hearing shall apply. (Rep. and Added Ord. 6128, 1962; based on former Sec. 2-1657).

SEC. 3-286. CAUSES FOR SUSPENSION OR REMOVAL.

(a) Any employee holding a position in the classified service may be suspended without pay or removed from such position for malfeasance, misconduct, incompetence, inefficiency, or for failure to perform the duties of his position or to observe the established rules and regulations in relation thereto, or to cooperate reasonably with his superior or fellow employees.

(b) Malfeasance and misconduct shall be deemed to include, for the purposes of this section, but shall not be construed to be limited to the following acts or omissions:

(1) Failure to pay just debts or failure to make reasonable provision for payment of just debts, whenever such failure causes garnishment or threats of garnishment of the employee's salary or wages or repeated creditors' inquiries to any supervising employee or department.

(2) Conviction of a crime involving moral turpitude. "Conviction" shall be construed to be a determination of guilt by jury verdict, by decision of a court, or by plea of guilty by the accused, regardless of subsequent disposition of the case by suspension of sentence, grant of probation, or otherwise. The words, "moral turpitude" shall be construed to mean any base, vile, lewd, depraved, dishonest, immoral, or corruptly-motivated act.

(3) The damaging of public property or the waste of public supplies through negligence or wilful misconduct.

(4) Conduct unbecoming an officer or employee of the city.

(5) Inexcusable absence without leave.

(6) Violation of any provision of the Charter or of any ordinance of the city or of any resolution adopted by the Council relating to conduct in office of persons employed in the classified service.

(7) Insubordination by refusal or wilful failure to obey any lawful and reasonable order or directive made and given by any superior officer.

(8) Dishonesty, by any wilful misuse or misappropriation or attempted misuse or misappropriation of public funds or public property, by the rendering of any wilfully false statement or report to the city or to any superior officer, or by the willful omission to report information or to disclose facts which the duties of the position require to be reported or disclosed.

(c) Incompetence shall be deemed to include, for the purposes of this section, any permanent or chronic physical or mental ailment or defect which incapacitates any employee for the proper, safe and efficient performance of the duties of his position.

(d) It shall be the duty of every employee to maintain his physical condition so as to conform to the physical standards established for his position, and failure by any employee to so maintain his physical condition shall be deemed a failure to observe the established rules and regulations in relation to his position within the meaning of this section. (Rep. and Added Ord. 6128, 1962; Am. Ord. 75-125, § 1, eff. 1-4-76).

SEC. 3-287. PHYSICAL STANDARDS.

The Chief Administrative Officer shall establish and maintain minimum physical requirements for applicants seeking appointment to, and for employees serving in, the various positions in the City service. Such requirements shall be known as the "Physical Standards." (Rep. and Added Ord. 6128, 1962; Am. Ord. 80-130, § 1, 10-3-80).

SEC. 3-288. PHYSICAL EXAMINATION AT REQUEST OF APPOINTING AUTHORITY.

Whenever an appointing authority, from his personal observations or from information received from any source whatsoever, believes that an employee has contracted an ailment or disability, which may in any substantial degree interfere with the performance by him of the duties of his position or which may endanger the safety and life of fellow employees or the public, the appointing authority may request that such employee submit to a physical examination, given by the City Physician and based upon the duties of his position and the physical standards of the city. (Rep. and Added Ord. 6128, 1962).

SEC. 3-289. NOTICE TO EMPLOYEE, PHYSICAL EXAMINATION.

Whenever the appointing authority determines that an employee is to be given a physical examination, he shall give to the Director a written notice in duplicate, stating the name of the employee, the employee's position and department, and the reasons for the belief that a physical examination is required. Immediately upon receipt of the notice the Director shall set a time and place for the examination and shall serve, or cause to be served, upon the employee a written notice of the time and place of the giving of the physical examination, together with a copy of the notice from the appointing authority. (Rep. and Added Ord. 6128, 1962).

SEC. 3-290. CHARGES MAY BE BASED UPON MEDICAL REPORT.

Upon receipt of the report of the examining City Physician, the Director shall transmit a copy of the report to the appointing authority. If the examining City Physician finds in his medical report that the employee's physical condition does not conform to the physical standards established for his position or that the employee suffers from a permanent or chronic physical or mental ailment which incapacitates him for the proper, safe, and efficient performance of the duties of his position, the appointing authority may remove the employee from his position. The charges shall contain a copy of the report of the examining City Physician. (Rep. and Added Ord. 6128, 1962).

SEC. 3-291. REDUCTION IN FORCE AND LAY-OFFS.

(a) The appointing authority, with the approval of the Chief Administrative Officer, may reduce the number of employees in the classified service upon the grounds of economy or because of lack of work or lack of funds, by laying off employees in any class in which he determines the curtailment is necessary. Lay-offs within a class shall be in the following order: Temporary, provisional, probationary status, permanent intermittent, permanent part-time,

and permanent full-time. Where the lay-off must be of one or more permanent employees, the order of lay-off shall be determined by seniority in the particular class in the department where the lay-off occurs. Where an employee was employed in the same class, or in a class having identical job duties, in another department prior to his transfer to the department where the lay-off occurs, and his service has been continuous, such prior service shall be considered in computing his seniority for the purpose of determining the order of lay-off. Where an hourly employee has prior service with the city on a monthly basis, and his service has been continuous, his total service in the class shall be considered in computing seniority for lay-off purposes.

(b) An employee subject to lay-off in one department who has greater seniority than one or more employees in the same class in another department shall be transferred to the position held by the least senior employee in such class, and the least senior employee in such class shall be subject to lay-off.

(c) In the event an employee subject to lay-off does not qualify for transfer pursuant to the provisions of subsection (b) and such employee has previous service in a lower class, and his service has been continuous, the appointing authority shall demote the employee scheduled for lay-off to a position in such lower class. Any employee demoted pursuant to the provisions of this subsection shall be deemed the most senior employee in such lower class. In the event two or more employees are demoted pursuant to the provisions of this section, the employee with the most seniority at the higher class shall be deemed the most senior employee in the lower class. The employee with the least seniority occupying a position in the lower class may in turn be laid off, demoted or transferred, in the same manner to the end that the last person employed in the lowest class shall be the person laid off.

(d) The provisions of this section shall not apply to temporary lay-offs of hourly employees because of inclement weather or lack of work.

(e) A permanent employee transferred pursuant to the provisions of this section, except subsection (f), shall not be required to serve a probationary period. An employee who has not achieved permanent status and is transferred pursuant to this section shall serve the probationary period, subject to the same conditions of probation, applicable under the provisions of this article to an employee appointed to the class from an eligible list.

(f) Notwithstanding subsection (c), an employee subject to lay-off who does not qualify for transfer pursuant to the provisions of subsection (b) may submit a written request to be considered for transfer to any vacant position in a class for which the employee meets the minimum qualifications, as provided in the class specification, and as determined by the Director, provided such class has an equivalent or lower salary range. The employee may be transferred to the vacant position with approval of the appointing authority wherein such position exists, and subject to serving the probationary period for the new class. Seniority in the new class shall be determined based upon the effective date of the transfer. For purposes of this section, "equivalent salary range" means a range with a maximum salary which is not more than two per cent higher than the salary range for the class from which the transfer is sought. An employee may file a written request for review of the Director's determination that

the employee does not meet the minimum qualifications required under this subsection. Such request for review must be filed pursuant to Section 3-249 of this Code. (Rep. and Added Ord. 6128, 1962; Am. Ord. 6299, 1963; Am. Ord. 81-112, § 1, eff. 9-25-81; Am. Ord. 82-99, § 16, eff. 10-15-82; Am. Ord. 83-118, §§ 1—3, eff. 9-30-83; Am. Ord. 83-125, § 1, eff. 10-14-83).

SEC. 3-292. REINSTATEMENT LIST. ORDER OF PLACEMENT.

(a) Notwithstanding any other provision in this Code, any employee holding a permanent appointment who, by reason of economy, lack of work, budget curtailment, or departmental reorganization, has been laid off, transferred, or demoted from a position in the city service, shall be entitled to placement on a reinstatement list for the class from which he was laid off, transferred, or demoted. In the event more than one employee is laid off, transferred, or demoted, the order of their standing on the reinstatement list shall be determined by their comparative seniority in the particular class from which they were laid off or demoted.

(b) A person whose name has remained on a reinstatement list continuously for three years without reinstatement shall be no longer deemed to have standing on such list for preferential certification or appointment pursuant to Section 3-250 or Section 3-252(a)(1), and such person shall no longer have any right to reinstatement in any position in the class for which such list was created; provided, however, that such person shall thereafter be designated as an "optional appointee" and shall be deemed eligible for certification and appointment to the extent hereinafter provided, and, for such purpose only, his name shall remain on the reinstatement list. Whenever certification is made under Section 3-252, other than from the reinstatement list, to fill any vacant position in the class for which such reinstatement list was created, the name of each optional appointee on such reinstatement list shall be certified along with and in addition to the names of the eligibles certified from any eligible or promotional eligible list for appointment to such vacancy, and the appointing authority may appoint any such optional appointee to fill such vacant position. The name of a person who has been certified for appointment as an optional eligible four times and not appointed shall be removed from the reinstatement list.

(c) Upon reinstatement from a reinstatement list an employee shall resume his employment with full credit for all prior service with the city as such prior service affects his entitlement to salary and vacation, and shall be credited with sick leave credits equal to his unused accumulation of such sick leave at the time of his lay-off, except that any employee who had not achieved permanent status at the time of placement on the reinstatement list shall serve a full probationary period commencing from the date of the employee's permanent appointment from such list. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1677; Am. Ord. 68-14, 1968; Am. Ord. 78-120, §§ 2, 3, eff. 9-1-78; Am. Ord. 83-119, § 1, eff. 9-30-83).

SEC. 3-293. ORGANIZATION OF THE BOARD.

(a) Meetings of the Board may be called at any time by the chairman or secretary, or any two members of the Board, upon giving twenty-four hours' advance notice to each member of the Board.

(b) Robert's "Rules of Order" shall guide the Board in its proceedings, except as may be otherwise prescribed in rules and regulations adopted by the Board. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1681).

SEC. 3-294. MINUTES.

The Secretary of the Board shall record in the minutes the time and place of each meeting of the Board, the names of the members of the Board present, all official acts of the Board, the votes given by the members, the record of any member's dissent, with his reasons, and shall cause the minutes to be written up forthwith and presented for approval or amendment at the next meeting. The minutes, or a true copy thereof, certified by the Secretary, shall be open to public inspection at all times. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1682).

SEC. 3-295. PUBLIC MEETINGS.

The meetings of the Board shall be open to the public, but after a public hearing the Board may go into executive session to consider its judgment. When conducting oral interviews as part of the examining process, meetings shall be closed to the public. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1683).

SEC. 3-296. CONTEMPT.

Any person who obstructs a Civil Service Board proceeding shall be guilty of contempt of the authority of the Board. The following conduct shall constitute contempt of the authority of the Board and shall be punishable as a misdemeanor:

(1) Disorderly or contemptuous behavior toward the Board or member thereof, a city officer or employee, an attorney, an employee representative, a witness, or any other person, during a Board proceeding, tending to obstruct the due course of the proceeding;

(2) A breach of the peace, boisterous conduct, or violent disturbance during a Board proceeding or so near the place thereof as to obstruct the proceeding; or

(3) Any other conduct substantially interfering with a hearing of the Board.

The Board may order a person engaging in contemptuous conduct to cease and desist. Upon the person's willful failure and refusal to comply with the order of the Board, the Board may file a verified statement of the facts constituting the contempt with the Superior Court. Thereafter, the Court shall have jurisdiction of the matter. The same proceedings shall be had as in the case of a person who has committed a contempt in the trial of a civil action before a superior court. (Added Ord. 84-123, § 1, eff. 9-28-84).

SEC. 3-297. COMMUNICATIONS.

Communication and requests to the Board shall be made in writing. All written communications shall be filed with the Director prior to a Board meeting and the substance of such

request and the action of the Board thereon noted in the minutes. All communications and requests shall be promptly answered by the Director. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1684).

SEC. 3-298. DUTIES OF DIRECTOR.

The Director shall:

(1) Be the general manager of, and be responsible for, the direction of, the work of the Department of Personnel and Labor Relations;

(2) Determine which examinations are needed and set the dates for holding them;

(3) Make certifications of those eligible for appointment or employment;

(4) Shall have charge of all matters pertaining to the preparation and conduct of examinations. He shall:

(i) Prepare or cause to be prepared and posted official bulletins announcing examinations;

(ii) Determine or cause to be determined the subjects in each examination and the relative weights of each;

(iii) Prepare or cause to be prepared suitable questions to be asked in the various examinations, and report the results of each examination;

(iv) Appoint experts to aid him in preparing questions and rating examination papers, whenever necessary, and appoint persons to serve on qualifications appraisal boards;

(v) Direct the work of examiners or the employees subordinate to him and take care to secure accuracy, uniformity and justice in their proceedings;

(vi) Pass upon all questions relating to the eligibility of applicants for examination, based upon their written application, except such as relate to particulars appearing on the face thereof, and also questions relating to the admissibility of candidates when they appear for examination;

(5) Be responsible for the maintenance of the classification plan;

(6) Conduct salary surveys. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1686; Am. Ord. 73-116, § 18, eff. 9-2-73).

SEC. 3-299. PERSONNEL ACTIONS AND CERTIFICATION OF PAYROLLS.

(a) All appointments, promotions, transfers, and any other personnel action affecting employee status or compensation shall be made in writing on forms prescribed by the Director and in accordance with the provisions of this article. Each such personnel action shall be executed by the appointing authority, certified by the Director, and approved by the Chief Administrative Officer.

(b) The heads of the various departments shall certify that the payrolls of their respective departments are correct and in conformance with all applicable laws, rules, and regulations. The Controller, after audit of such certified payrolls, shall issue warrants for the amounts as indicated on the payroll. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1687; Am. Ord. 82-68, § 1, eff. 8-13-82).

SEC. 3-299.1. LIABILITY OF DEPARTMENT HEADS.

Any department head knowingly and willfully violating any of the provisions of this article shall be personally liable to the city for any monies paid out by the city in violation thereof. (Rep. and Added Ord. 6128, 1962, based on former Sec. 2-1687).

SEC. 3-299.2. CLASSIFIED POSITIONS FUNDED BY FEDERAL OR STATE GRANT.

(a) **Exception made.** Notwithstanding any of the other provisions of this Code, whenever compensation for any position in a new or existing class in the classified service is to be paid from a grant from any department or agency of the United States Government or the State of California, and the terms of the grant agreement for such grant or any program funded thereby impose conditions or restrictions, either mandatory or as suggested guidelines, upon the eligibility standards, qualifications, recruitment, or appointment of applicants for, or upon the status in the city service of incumbents in, such position, then such position may be denominated, authorized, and filled, and the incumbent shall have the status in the city service, all as provided in this section.

(b) **Grant-funded position, authorization and status.** The position shall be denominated by the job title for the class, followed by the words "Grant-Funded" in parentheses (for example, "Typist Clerk (Grant-Funded)"), and shall be authorized in the budget of the employing department under that denomination. Any position may be so denominated a grant-funded position and its authorization continued as long as at least fifty percent of the total cost of such position to the city is paid or reimbursed from a federal or state grant as described in subsection (a). Subject to such funding limitation on its duration, a grant-funded position shall be deemed a permanent position in the classified service in all respects except as otherwise in this section provided.

(c) **Eligibility and selection standards.** Eligibility of applicants for grant-funded positions shall be determined by the Director in accordance with this subsection, and shall be known and referred to as the "eligibility and selection standards." Applicants shall conform to all qualifications specified for the class in the class specifications and in this Code. In addition, the Director may specify such further conditions or restrictions upon eligibility, and such criteria for selection, as shall be necessary to meet any mandatory requirements for eligibility or suggested guidelines for selection imposed under the grant agreement or grant-funded program which is funding the position.

(d) **Announcement required.** Whenever a grant-funded position in any class has been authorized, the Director shall prepare an announcement giving notice of the availability thereof. The announcement shall specify the eligibility and selection standards for the position.

(e) **Requisition and certification.** Requisition and certification for grant-funded positions shall follow generally the usual rules and procedures provided in Sections 3-251 and 3-252 for the filling of permanent positions in the classified service, except as otherwise provided in this section. Notwithstanding the provisions of Section 3-252 the Director may certify for appointment to any grant-funded position a greater or lesser number of names than specified by such section, and the appointing authority may appoint any person on the list so certified but shall not be required to appoint from a certification containing fewer names than the minimum entitlement under such section.

(f) **Certification from existing lists.** The names of persons on any reinstatement, promotional, or eligible list for the class existing at the time the requisition is received who meet the eligibility and selection standards and who desire certification shall be certified first, and from the lists in the above order, for any grant-funded position. In the event that there are fewer names than the minimum entitlement mentioned in subsection (e) above, certification shall be from the reinstatement, promotional, eligible, and grant-funded eligible lists pursuant to the procedure in subparagraphs (4) and (6) of subsection (a) of Section 3-252. Any person on such a list who accepts appointment to a grant-funded position, or who declines certification or appointment thereto, shall retain his status on such list.

(g) **Recruitment to establish grant-funded eligible list.** If all authorized grant-funded positions cannot be filled from existing regular lists under subsection (f), the Director shall recruit applicants for examination to qualify for a special eligible list, to be designated a "grant-funded eligible list," from which to certify names for appointment to any remaining vacancies, or to any subsequently occurring vacancies which cannot be filled from any such regular lists. The Director shall utilize such recruitment methods as he shall deem necessary to obtain sufficient applicants who meet the legibility and selection standards, to comply with any special recruitment procedures required by the funding agency, and to give a reasonable opportunity to eligible persons to compete for the available positions. The Director may, by statement in the announcement, limit the applications to be received to a maximum number reasonably calculated to provide sufficient qualified candidates for the number of positions to be filled.

(h) **Examination process.** The Director shall cause candidates to be examined and qualified for certification by any means and measures which, in his opinion, generally comply with Section 3-231 and Section 1001 of the Charter. Sections 3-240, 3-241, 3-242, and 3-243 shall not apply to any examination given under this section.

(i) **Grading.** Examinees shall be graded to indicate their attainment in the examination process by such measures as shall be determined by the Director and stated in the announcement.

(j) **Grant-funded eligible list.** Candidates who receive a passing grade in the examination process shall have their names placed on a separate eligible list, designated as a "grant-funded eligible list," in the order of their final earned grades. Persons on such list shall be eligible for certification only to grant-funded positions in the class for which such positions were authorized. Such lists shall expire contemporaneously with the expiration of authoriza-

tion of all grant-funded positions in the class, but shall be subject to reactivation, at the option of the Director, if any of such grant-funded positions shall be reauthorized within six months after their expirations.

(k) **Probationary periods.** All appointments to grant-funded positions shall be subject to a probationary period of one year which shall be deemed a continuation and an essential part of the examination process to determine the capacity and fitness of the employees for permanent status in the position and the class. All of the provisions of this article pertaining to probationary status shall apply to incumbents in grant-funded positions, except Section 3-274.

(l) **Provisional appointment.** Provisional appointment to a grant-funded position may be made, under and subject to Section 3-256(b), of any person who qualifies under the eligibility and selection standards for the position.

(m) **Transfer.** After satisfactory completion of his probationary period, an employee in a grant-funded position may be appointed, without further examination, to a vacant nongrant-funded permanent position in the same class. Such employee may be so appointed to a vacant nongrant-funded position in the same class, during his probationary period, if the Director certifies that the examination upon which his grant-funded appointment was based was the same as or substantially equivalent to that given to employees appointed to nongrant-funded positions in the same class. Such appointment may be made even though there is an unexpired eligible list for the class, but any such vacant permanent position shall first be offered to persons on any reinstatement list for the class.

(n) **Existing Employees in Funded Positions.** Persons employed in state or federally funded positions which qualify for authorization as grant-funded positions under this section may be qualified for appointment to their positions as grant-funded positions authorized pursuant to this section, provided such persons shall have taken and passed a competitive or noncompetitive qualifying examination. Such qualifying examination shall be such as the Director shall prescribe in substantial compliance with Section 3-231. (Added Ord. 71-95, 1971; Am. Ord. 72-39, 1972; Am. Ord. 91-118, § 1, eff. 12-13-91)

ARTICLE 3 FIRE AND POLICE RETIREMENT SYSTEM

Sec. 3-301. Definitions.
Sec. 3-302. Alternative Definition of Average Compensation. Election of Member. Adjustment of Allowances.
Sec. 3-303. Creation of Retirement System.
Sec. 3-304. Police Chief, Alternate Retirement Plan.
Sec. 3-305. Retirement Board Created. Powers and Duties. Retirement Administrator to be Secretary. Powers and Duties of Retirement Administrator.
Sec. 3-306. Absences on Military Service.
Sec. 3-307. Amendments.
Sec. 3-308. Estimates of Age and Service.
Sec. 3-309. Benefits Exempt from Execution.
Sec. 3-310. Time to Apply for Benefits.
Sec. 3-311. Application for Rehearing.
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Sec. 3-313. Creation and Control of Retirement Fund; Investments.
Sec. 3-314. Investments.
Sec. 3-315. Duty of Department Head.
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Sec. 3-320. Payment of Contributions of Members by City. Application of Collective Bargaining Laws.
Sec. 3-321. Normal Contributions of Members Upon Re-entry Who Commenced Service Prior to August 27, 1990.
Sec. 3-322. Collection of Members' Contributions.
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Sec. 3-341. Optional Modification of Allowances at Retirement.
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Sec. 3-343. Retirement Allowances Payable.

Sec. 3-344. Non-forfeiture of Right to Retirement Allowance.
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Sec. 3-347. Effect of Marital Dissolution or Legal Separation or Termination of Domestic Partnership.
Sec. 3-348. Dissolution or Legal Separation or Termination Prior to a Member's Retirement.
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Sec. 3-350. Judicial Review of Certain Board Decisions.
Sec. 3-351. Direct Transfers of Eligible Rollover Distributions.
Sec. 3-352. Minimum Required Distributions.
Sec. 3-353. Deferred Retirement Option Program ("DROP").
Sec. 3-354. Post-retirement Supplemental Benefit.
Sec. 3-355. Rights of Domestic Partners.
Sec. 3-356. Qualified Excess Governmental Benefit Arrangement.

SEC. 3-301. DEFINITIONS.

The following words and phrases as used in this article, unless a different meaning is plainly required by the context, shall have the following meanings:

(a) (1) "Accumulated contributions" shall mean accumulated normal contributions plus accumulated prior contributions.

(2) "Accumulated normal contributions" shall mean the sum of all the normal contributions, deducted from the compensation of a member, standing to the credit of the member's individual account, together with regular interest thereon.

(3) "Accumulated prior contributions" shall mean prior service contributions together with regular interest thereon from and including July 1, 1955.

(4) "Actuarial equivalent" shall mean a benefit of equal value when computed upon the basis of such mortality tables as shall be adopted by the Retirement Board, and interest at the rate fixed by the Board.

(5) "Actuarial present value" shall mean the lump sum amount which is the actuarial equivalent of a future series of payments. The actuarial assumptions used in the determination of an actuarial present value shall be the interest rate and mortality tables last adopted by the Board prior to the time the actuarial present value is being determined.

(6) "Actuary" shall mean the consulting actuary employed by the Retirement Board in accordance with the provisions of Section 3-305.

(7) "Alternate payee" shall mean the spouse, domestic partner, former spouse, or former domestic partner of a member of this System who, as a result of petitioning a court of competent jurisdiction for the division of community property, has been awarded an interest in the benefits payable to a member. A spouse, domestic partner, former

spouse, or former domestic partner who is awarded an interest in such benefits shall not be or become a member of this System by reason of such award or payment of such benefits.

(8) "Annuity" shall mean equal monthly payments for life derived from a member's accumulated contribution account.

(9) "Average compensation" shall mean the average monthly compensation attached to the rank or ranks held by a member during employment in the Fire Department, Police Department, or Airport Public Safety Division, unless the member commenced service prior to August 27, 1990 and elected the definition of average compensation contained in Section 3-302. Said average shall be the sum of the products of the compensation attached to the respective ranks held by the member and the service rendered in such ranks, divided by the total service with which the member is entitled to be credited. Such average compensation of a member, and the allowance based on it, shall be adjusted from time to time, as the compensation attached to said rank or ranks is changed, after the member's retirement or death, provided that compensation shall be considered as attached to a rank only for the period of service specified in any ordinance or resolution which fixes rates of compensation, exclusive of time elapsing from the expiration of such period to the date, such as but not limited to the first of the month next following, upon which a different compensation is effective.

(b) (1) "Beneficiary" shall mean any person in receipt of a retirement allowance, death benefit, or other benefit from the Retirement System.

(2) "Board" shall mean "Retirement Board" as created by Section 3-305.

(c) (1) "Charter" shall mean the Charter of the City of Fresno.

(2) "Class" or "Classification" shall mean a group of positions to which the same title is applied and the same rate of salary or compensation is paid or attached.

(3) "Compensation," as distinguished from benefits under Division 4 of the Labor Code of the State of California, shall mean the remuneration payable by the city, in amounts fixed for members of the Fire Department, Police Department, and Airport Public Safety Division, by ordinances existing on July 1, 1955, and ordinances or provisions of this Code, or resolutions of the Council, thereafter enacted. When the compensation of a member is a factor in any computation to be made under this article, there shall be excluded from such computation any compensation based on overtime, except compensation payable during absence from duty on overtime leave, any compensation payable, upon separation from city service, for unused vacation and overtime leave, and any bonus or award payable solely for marksmanship attainment or other achievement of proficiency in any skill and not based on any additional or higher duties performed or to be performed by the recipient thereof. For individuals who first became members in the System before July 1, 1996, there shall be no limit on the compensation taken into account in determining his or her benefits. For individuals who first became members in the System on or after July 1, 1996, the annual compensation of each member taken into account under the System for any year shall not exceed the maximum amount provided in Internal Revenue Code Section 401(a)(17). In applying this rule for individuals who first became members on or after July 1, 1996, the following special rules shall apply:

(i) Effective with respect to the plan years commencing on or after July 1, 1996, and before July 1, 2002, the maximum amount is $150,000 as adjusted for cost of

living increases by the Secretary of the Treasury. Each subsequent year that maximum is subject to further adjustments for cost of living increases in accordance with regulations issued by the Secretary of the Treasury. Any such increases shall be automatically incorporated into this Code without the need for specifically amending this Code each time the maximum is adjusted.

(ii) Effective only for the 1996 plan year, if any individual is part of the family of a highly compensated employee in the group consisting of the ten most highly compensated employees paid the greatest compensation by the city during the plan year, then such individual shall not be considered a separate employee. Compensation paid to such individual by the city shall be treated as if it were paid to the highly compensated employee. In applying this rule, the term "family" shall include only the spouse of the highly compensated employee and any lineal descendants of the highly compensated employee who have not attained age nineteen before the end of the plan year and the term "highly compensated employee" shall refer to those employees defined in Internal Revenue Code Section 414(q).

(iii) If the provisions of subsection (ii) above are applied to any member and his or her family in the aggregate, the compensation counted for each aggregated employee shall be reduced pro rata to stay within the limit of subsection (i), except that if any family member is not participating in any qualified retirement plan sponsored by the city, then the compensation counted for that family member shall be reduced to zero before any other reductions are made under this subsection.

(iv) Effective with respect to plan years beginning on and after July 1, 2002, the annual compensation of a plan member which exceeds $200,000 (as adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Internal Revenue Code) may not be taken into account in determining benefits or contributions due for any plan year. Annual compensation means compensation during the plan year or such other consecutive 12-month period over which compensation is otherwise determined under the plan (the determination period). The cost-of-living adjustment in effect for a calendar year applies to annual compensation for the determination period that begins with or within such calendar year. If the determination period consists of fewer than 12 months, the annual compensation limit is an amount equal to the otherwise applicable annual compensation limit multiplied by a fraction, the numerator of which is the number of months in the short determination period, and the denominator of which is 12. If the compensation for any prior determination period is taken into account in determining a plan member's contributions or benefits for the current plan year, the compensation for such prior determination period is subject to the applicable annual compensation limit in effect for that prior period.

(v) As used in this Section, the term "eligible member" means a person who first became a member of the City of Fresno Fire and Police Retirement System prior to the plan year beginning after December 31, 1995. Pursuant to Section

13212(d)(3)(A) of OBRA '93, and the regulations issued under that section, eligible members are not subject to the limits of Section 401(a)(17) of the Internal Revenue Code.

(4) "Compensation earnable" by a member shall mean the compensation as determined by the Retirement Board, which would have been earned by the member had he/she worked, throughout the period under consideration, the average number of days ordinarily worked by persons in the same rank or ranks held by the member during such period, and at the rates of compensation attached to such ranks. The compensation for any absence shall be based on the compensation earnable by the member in the rank first held by the member in service.

(5) "Contributions" shall mean normal contributions plus prior contributions.

(6) "Controller" shall mean the Controller of the City of Fresno.

(d) (1) "Disability," as a basis for retirement, shall mean permanent disability or disability of extended and uncertain duration, as determined by the Board upon the basis of competent medical and other information.

(2) The following definitions apply to domestic partnerships and to domestic partners:

(i) "Domestic partnership" shall mean (1) a registered domestic partnership that has been established by filing a Declaration of Domestic Partnership with the Secretary of State pursuant to Division 2.5 of the California Family Code; or (2) a legal union of two persons of the same sex, other than a marriage, that was validly formed in a jurisdiction other than California if such union is recognized as a domestic partnership pursuant to California Family Code Section 299.2.

(ii) "Domestic partner" shall mean a person who has entered into a domestic partnership.

(iii) "Former domestic partner" shall mean the person who had established a domestic partnership with a member, where that partnership has since been terminated pursuant to California law or other applicable law.

(iv) "Surviving domestic partner" shall mean the person with whom a deceased member, at the time of death, had established a domestic partnership and who survives the member's death.

(e) "Employee" shall mean any person who occupies a position created by or which is under the jurisdiction of the city, whose compensation is paid by the city, and who is a member of the Fire Department or Police Department or as a public safety officer/supervisor in the Airport Public Safety Division.

(f) "Firefighter" with respect to persons who became members of the System on July 1, 1955, shall mean any officer or employee of the Fire Department, and with respect to persons who have entered or enter such department after that date, shall mean any officer or employee of the Fire Department, except one whose principal duties are those of a telephone operator, clerk, stenographer, machinist, mechanic, or otherwise, and whose functions do not clearly fall

within the scope of active fire fighting and prevention service, even though such an employee is subject to occasional call or is occasionally called upon, to perform duties within the scope of active fire fighting and prevention service, but not excepting persons employed and qualifying as firefighters of equal or higher rank, regardless of the duties to which they are assigned.

(g) Reserved.

(h) Reserved.

(i) "Service-connected" in reference to the death or disability of any member of this System shall mean death or disability which results from injury or disease arising out of and in the course of the member's employment as a member of the Fire Department or Police Department or as a public safety officer/supervisor in the Airport Public Safety Division, and such employment contributes substantially to such death or disability.

(j) Reserved.

(k) Reserved.

(l) Reserved.

(m) "Member" shall mean any person included in the membership of the Retirement System, as provided in Section 3-303.

(n) "Normal contributions" shall mean contributions at the rates provided for in Section 3-319, without interest.

(o) "Overtime leave," for the purposes of this article, is any absence from duty with compensation allowed or allowable on account of overtime, which is the aggregate service performed by an employee as a member in excess of the hours of work considered normal for employees on full-time basis.

(p) (1) "Part-time employee" shall mean an employee who engages in the employee's duties for less time than is required of employees serving on a full time basis, even though the employee is subject to call at any time.

(2) "Pension" shall mean equal monthly payments for life derived from contributions made by the city as provided in this article.

(3) "Police officer," with respect to persons who became members of the System on July 1, 1955, shall mean any officer or employee of the Police Department, and with respect to persons who have entered or enter such department after that date, shall mean any officer or employee of the Police Department, except one whose principal duties are those of a telephone operator, clerk, stenographer, machinist, mechanic, or otherwise, and whose functions do not clearly fall within the scope of active law enforcement service, even though such an employee is subject to occasional call or is occasionally called upon, to perform duties within the scope of active law enforcement service, but not excepting persons employed and qualifying as patrolmen or equal or higher rank, regardless of the duties to which they are assigned.

(4) "Public safety officer/supervisor" shall mean employees in the class of public safety officer or public safety supervisor or, in the case of individuals appointed after January 1, 2000, airport public safety manager in the Airport Public Safety Division or, in the event class titles are added within the class series or are changed, also in such classes.

(5) "Prior contributions" shall mean contributions paid to the Retirement System as provided in Section 3-318.

(q) Reserved.

(r) (1) "Rank" shall mean a group of positions to which the same title is applied and the same rate of salary or compensation is paid or attached.

(2) "Regular interest" shall mean interest at the authorized rate as adopted by the Board and compounded, computed, and credited in the manner prescribed in Section 3-305, including such additional interest as the Board may declare from year to year as authorized under this article.

(3) "Retirement" shall mean withdrawal from active service with a retirement allowance granted under the provisions of this article.

(4) "Retirement allowance" shall mean the pension plus the annuity.

(5) "Retirement Fund" shall mean "Fresno Fire and Police Retirement Fund," as created and established in Section 3-313.

(6) "Retirement System" or "this Retirement System" shall mean "Fresno Fire and Police Retirement System" as created in Section 3-303.

(s) (1) "Service" shall mean service rendered as a firefighter in the Fire Department, a police officer in the Police Department, or as a public safety officer/supervisor in the Airport Public Safety Division of the city for compensation, and for the purpose of the Retirement System a member shall be considered as being in the "service" only while the member is receiving compensation from the city for such service. When service is a factor in the computation of allowances and other benefits hereunder, fractional years of service shall be added to make complete years, and any remaining fractional year shall be included in the computation, unless only completed years are required by the context.

(2) "System" or "this System" shall mean "Fresno Fire and Police Retirement System" as created in Section 3-303.

(t) "Plan year" shall mean the consecutive 12-month period beginning on July 1 and ending on June 30 of the following calendar year.

(u) "Limitation year" shall mean the calendar year.

(Rep. and Added Ord. 5313, 1958, based on former Sec. 2-701; Am. Ord. 5667, 1959; Am. Ord. 6058, 1962; Am. Ord. 6167, 1962; Am. Ord. 6394, 1964; Am. Ord. 68-124, 1968; Am. Ord. 85-139, § 1, eff. 10-18-85; Am. Ord. 94-27, §§ 1, 2, eff. 5-27-94; Am. Ord. 96-41, § 1, eff. 6-28-96; Am. Ord. 96-54, §§ 1, 2, eff. 9-20-96; Am. Ord. 98-35, § 1, eff. 6-27-98; Am. Ord. 98-98, §§ 1—6,

eff. 1-9-99; Am. Ord. 2000-11, § 1, eff. 3-3-00; Am. Ord. 2001-72, § 1, eff. 11-10-01; Am. Ord. 2006-15, § 1, eff. 3-10-06; Am. Ord. 2011-1, §§ 1, 2, eff. 3-7-11; Am. Ord. 2012-22, § 1, eff. 1-21-13).

SEC. 3-302. ALTERNATIVE DEFINITION OF AVERAGE COMPENSATION. ELECTION OF MEMBER. ADJUSTMENT OF ALLOWANCES.

(a) This section applies only to members who commenced service prior to August 27, 1990.

(b) "Average compensation" shall mean, in the event election is made pursuant to this section, the average monthly compensation earnable by a member during the last three years of the member's employment in the Fire Department, Police Department, or the Airport Public Safety Division.

(c) Any member, prior to retirement on or after January 1, 1973, or, if a member shall die on or after January 1, 1973, but before retirement, and with no election by the member in effect at the member's death, then the person or persons first entitled to any continuation allowance payable under the System on account of the member's death while a member of the System, or any such person's guardian, may elect, by written designation duly executed and filed with the Retirement Administrator, that the allowance payable to or on account of such member shall be based upon average compensation of the member determined in accordance with the definition set forth in subsection (b) hereof instead of the definition provided in Section 3-301.

(d) Other provisions of this section to the contrary notwithstanding, any former member who attained age sixty and was mandatorily retired under Section 3-332(1) on or after January 1, 1972, and prior to January 1, 1973, or, if such former member shall die prior to January 1, 1973, with no election by the member in effect at the member's death, then the person or persons first entitled to any continuation allowance payable under the System on account of the member's death after retirement, or any such person's guardian, may elect, by written designation duly executed and filed with the Retirement Administrator prior to January 1, 1973, that the allowance payable to or on account of such former member shall be based, from and after the effective date of the member's retirement, upon average compensation determined in accordance with the definition set forth in subsection (b) hereof. An election made by a former member pursuant to this subsection shall be irrevocable as to the member's retirement allowance and any continuation allowance payable on account of the member's membership in the System. An election made by a person or persons first entitled to a continuation allowance on account of a former member's death before January 1, 1973, with no election by the member in effect at the member's death, shall be irrevocable as to any continuation allowance thereafter paid on account of such member's membership in the System. Nothing contained in this section shall be deemed to entitle any other former member or person claiming under the member to any of the benefits of this section.

(e) An election made by a member before retirement pursuant to this section shall be irrevocable as to the member's retirement allowance and any continuation allowance payable on account of the member's membership in the System, unless revoked by written revocation duly executed by the member and filed with the Retirement Administrator prior to the

effective date of the member's retirement. An election made by a person or persons first entitled to a continuation allowance on account of any such member's death before retirement with no election by the member in effect at the member's death shall be irrevocable as to any continuation allowance thereafter paid on account of such member's membership in the System, unless such election is revoked by written revocation duly executed by such person or persons, or the guardian of any such person, prior to the date of the first payment of such continuation allowance.

(f) Monthly allowances based upon average compensation as defined in subsection (b) shall be adjusted from time to time solely in accordance with this section. As of July 1 of each year, commencing with the year 1973, every such monthly allowance shall be increased by a percentage (which shall be not less than zero) of the total allowance then being received which shall approximate, to the nearest one-tenth of one percent,

(1) if the allowance is payable to or on account of a person who prior to the person's retirement or death was a member employed in the Fire Department, the percentage by which the weighted mean average monthly compensation attached to all ranks of members employed in the Fire Department during the current fiscal year shall have changed from that of the preceding fiscal year, or

(2) if the allowance is payable to or on account of a person who prior to the persons's retirement or death was a member employed in the Police Department or employed as a public safety officer/supervisor, the percentage by which the weighted mean average monthly compensation attached to all ranks of members employed in the Police Department and employed as a public safety officer/supervisor during the current fiscal year shall have changed from that of the preceding fiscal year;

provided, that such increase shall not exceed five percent of any monthly allowance in any year, regardless of the percentage of change in such weighted mean average monthly compensation.

(g) Determination of the percentage of change in the weighted mean average monthly compensation shall be made annually after the compensation of the ranks of firefighters, police officers, and public safety officers/supervisors in the respective departments has been fixed for the current fiscal year, and upon such determination the monthly allowances governed by this section shall be adjusted retroactively to July 1 of such year. In determining the weighted mean average monthly compensation for any fiscal year the following shall be used:

(1) The number of positions authorized in each of the ranks as contained in the annual budgets for the respective departments contained in the annual city budget for such fiscal year as originally adopted by the Council pursuant to Charter Section 1205, disregarding changes in any amendments of or supplements to such departmental budgets thereafter made.

(2) The compensation of each of the ranks, at the highest step, as fixed by the Council in the original salary resolution or other action of the Council establishing the rate of compensation for each of the ranks in the respective departments for such fiscal year.

For any increases in compensation in such fiscal year that are effective on a date other than July 1st, such increases shall be recalculated and converted to an equivalent annualized increase by rank at the highest step and included in the weighted mean average monthly compensation calculation.

For the purposes of this section "fiscal year" shall mean the period July 1 to June 30, inclusive, and "current fiscal year" shall mean the fiscal year as of July 1 of which the adjustment of monthly allowances is made.

(h) The amount of any percentage of change in the weighted mean average monthly compensation which is in excess of the maximum annual allowable adjustment of five percent provided in subsection (f) shall be accumulated from year to year and included in the computation of increases in succeeding years. The provisions of this subsection shall be applied to individual beneficiaries by groups based upon the fiscal year in which the member retired or died, so that each allowance shall have applied to it only such increase as shall have accumulated after the fiscal year in which the member retired or died.

(i) The adjustment provisions of this section shall not operate to reduce the retirement allowance payable to any former member or the continuation allowance payable to any beneficiary on account of a member's death before retirement below the amount payable to such former member or beneficiary on the date of first entitlement thereto; nor shall such provisions operate to reduce the continuation allowance payable to any person on account of a former member's death after retirement, or on account of the death of the member's spouse after the member's retirement and death, below the amount which such person would have received had such former member died on the date of the former member's retirement.
(Added Ord. 72-142, 1973; Am. Ord. 96-54, §§ 3, 4, eff. 9-20-96; Am. Ord. 98-35, § 2, eff. 6-27-98; Am. Ord. 98-98, §§ 7—9, 1-9-99; Am. Ord. 2000-4, § 1, eff. 2-10-00; Am. Ord. 2006-120, § 1, eff. 10-6-06).

SEC. 3-303. CREATION OF RETIREMENT SYSTEM.

(a) There is hereby created the City of Fresno Fire and Police Retirement System. All persons who were members of the Fire or Police Department at the close of June 30, 1955, and who were then subject to the Relief and Pension Fund under the provisions of Ordinance No. 3116, shall be members of the Retirement System established by Ordinance No. 4611 and this article and shall be subject to the provisions thereof, on and after July 1, 1955. All persons who became or become firefighters in the Fire Department on or after July 1, 1955, police officers in the Police Department on or after July 1, 1955, or public safety officers/supervisors in the Airport Public Safety Division on or after July 1, 1988, including persons reinstated from retirement, but excluding part-time employees, shall be members of the Retirement System established by Ordinance No. 4611 and this article and shall be subject to the provisions thereof, effective on the date of employment or reinstatement, as the case may be. Former members of the Fire or Police Department and dependents of such former members who are receiving benefits from the Relief and Pension Fund under Ordinance No. 3116, on July 1, 1955, shall be beneficiaries under this Retirement System on and after said date, and benefits

being paid to said former members and dependents, on said date, shall be continued at their existing rates and in accordance with the provisions of said Ordinance No. 3116, but shall be paid from the fund created under this article. The mortality, service and other tables and the rates of contribution for members as recommended from time to time by the actuary and the valuations determined by the actuary from time to time and approved by the Retirement Board in accordance herewith, shall be final and conclusive and the Retirement System shall be based thereon. The total amount, as determined by the actuary and approved by the Retirement Board, of the contributions required during any fiscal year of the city under the Retirement System in accordance with this article, shall be paid into the Retirement Fund, hereinafter created, by the city during such year. The determination heretofore of membership in the Retirement System, in accordance with this section, is hereby validated and confirmed.

(b) Members who first commenced service prior to August 27, 1990 shall be subject to the provisions of this article. Individuals commencing service on or after August 27, 1990, while members of the System, shall be subject to the provisions of Article 4 concerning vesting, definitions of compensation, employee contributions, benefits, and other matters. Accordingly, for example, sections 3-302, 3-304, 3-319, 3-330, 3-331, 3-332, 3-333, 3-338, 3-341, 3-347, 3-348, and 3-349 apply only to members who commenced service prior to August 27, 1990.

(c) The purpose of the System is to secure contributions from the City and from employees, and to distribute System assets only to members, retired members, and their beneficiaries, pursuant to the System's plan of benefits and to pay reasonable expenses of administration.

(d) No part of the System's assets or income may be used for, or diverted to, purposes other than for the exclusive benefit of members, retirees, or their beneficiaries and no part of the System's assets or income may revert to the City.

(e) Forfeitures arising from termination of employment, death, or for any other reason, will not be applied to increase the benefits any member, retired member, or beneficiary would otherwise have received from the System at any time prior to the termination of the System, although the effect of forfeitures may be anticipated in determining the System's costs.

(f) Upon termination of the System or upon the complete discontinuance of contributions to the System, the rights of each employee to benefits accrued to the date of such termination or discontinuance are non-forfeitable.

(g) The City of Fresno Fire and Police Retirement System is established as a qualified governmental defined benefit plan under the Internal Revenue Code of 1986, as amended from time to time (hereinafter referenced as "Internal Revenue Code" for purposes of this Code), pursuant to Sections 401(a) and 414(d) of the Internal Revenue Code or such other provision of the Internal Revenue Code as applicable and applicable Treasury regulations and other guidance.

(Rep. and Added Ord. 5313, 1958; Am. Ord. 5667, 1959; based on former Sec. 2-702; Am. Ord. 98-35, § 3, eff. 6-27-98; Am. Ord. 98-98, § 10, eff. 1-9-99; Am. Ord. 2001-13, § 1, 2-13-01; Am. Ord. 2011-1, § 3, eff. 3-7-11).

SEC. 3-304. POLICE CHIEF, ALTERNATE RETIREMENT PLAN.

(a) Any other provision of this article to the contrary notwithstanding, on and after January 1, 1979, the person appointed to the position of Police Chief, provided that the person commenced service prior to August 27, 1990, may elect not to be a member of this System on condition that during the member's entire tenure in the position the member shall participate in the alternate retirement plan provided by this section. Upon such consent the Council shall activate an alternate retirement plan for the benefit of such employee in accordance with this section, which plan shall be made effective as of the date of commencement of the member's employment in the position.

(b) The Council hereby establishes, with the International City Management Association Retirement Corporation, a national nonprofit corporation, (hereinafter referred to as the "corporation"), a fund (hereinafter referred to as the "alternate fund") for the relief and pensioning of any such employee whose election not to be a member of this System is made and consented to pursuant to subsection (a) hereof. The alternate fund shall be activated for the benefit of any such employee when:

(1) The Council shall have authorized an agreement between the city and the Corporation whereby the Corporation agrees to act as the city's trustee to receive and administer for the city, for the deferred benefit of such employee or the employee's beneficiary upon the employee's disablement, superannuation or death, moneys deposited by the city in the alternate fund for such employee's account; and

(2) The employee shall have entered into an agreement with the city whereby:

(i) The city agrees that the total compensation of the employee for the employee's services as Police Chief shall be the sum of the regularly established compensation for the position, as fixed from time to time in the current salary resolution or other action of the Council establishing the compensation of city employees, and an added amount equal to $7,500 annually, payable semimonthly, such payments to be made directly to the Corporation by the city; and

(ii) The employee agrees, in consideration of the Council's consent to the employee's election hereunder and of the city's agreement to augment the employee's compensation as hereinbefore provided;

1. That the employee waives any and all rights and benefits of an employee of the city under this System; and

2. That at all times during the employee's tenure as Police Chief the employee will maintain, at no cost to the city, the employee's eligibility to participate in the deferred compensation retirement plan of the Corporation.

(c) Any election and consent made pursuant to this section shall be irrevocable; provided, however, that in the event it shall become necessary, during the tenure of such employee as Police Chief, to terminate the alternate retirement plan provided herein for the employee, because of the employee's failure to retain eligibility for participation therein under the rules of the Corporation, or because of failure of the Corporation to maintain its plan for any reason,

or for any other cause not the fault of the city, then upon such termination the employee shall become a member of this System as if the employee were first employed by the city on the date of such termination or such earlier date as may be fixed by the Council, unless the employee shall have previously been a member and shall qualify for re-entry under Section 3-327(b).

(d) Service in the position of Police Chief by an employee who has been qualified under this section for participation in this alternate retirement plan shall not be deemed "city service," within the meaning of this article, for the purpose of qualification for membership in the System or for any benefits thereunder, except to the extent that the Council permits a retroactive re-entry pursuant to subsection (c) above. If, therefore, the employee who has been so qualified is a member of the System at the time of the employee's appointment to such position, then for the purposes of continuance of the employee's membership under the provisions of this article the employee's "city service" shall be deemed discontinued upon commencement of the employee's employment in such position, unless and until the employee re-enters the System as authorized herein.

(e) Any individual appointed to the position of Police Chief on or after January 1, 1979, shall be retired on the first day of the month next following that in which such individual attains the age of sixty-five.
(Added Ord. 79-13, § 1, eff. 2-16-79; Am. Ord. 98-35, § 4, eff. 6-27-98).

SEC. 3-305. RETIREMENT BOARD CREATED. POWERS AND DUTIES. RETIREMENT ADMINISTRATOR TO BE SECRETARY. POWERS AND DUTIES OF RETIREMENT ADMINISTRATOR.

(a) The management and control of this System shall be vested in the Board which is hereby created. The Board shall be the successor to, and have the powers and duties of, the Pension Board created by Ordinance No. 3116, as amended, in addition to the powers and duties conferred by this article. The Board shall consist of the following five members:

(1) Two members who are city management employees appointed by the Mayor and approved by the council;

(2) A member of the Fire and Police Retirement System who is a firefighter, elected by members who are firefighters in an election conducted by the Board;

(3) A member of the Fire and Police Retirement System who is a police officer or a public safety officer/supervisor elected by members who are police officers and public safety officers/supervisors in an election conducted by the Board;

(4) A qualified elector of the County of Fresno, not connected with the government of the City of Fresno, elected by the previously designated four members. If such person has been retired for service or disability, and is receiving or is entitled to receive a retirement allowance under the Fresno City Employees Retirement System, such person shall be elected by a unanimous vote of the previously designated four members. A person receiving or entitled to receive a retirement allowance under the Fire and Police Retirement System shall not be eligible to serve on the Board.

(5) The four employee Board members shall serve without compensation. The four employee Board members shall determine whether, in what amount, and under what conditions a stipend for attending Board meetings and for participating in other activities directly related to the performance of Board duties is payable from the Retirement Fund to the Board member they elect.

(b) The Board, in conjunction with the Employees Retirement Board, shall appoint and direct a Retirement Administrator who shall be a member of the City of Fresno unclassified service; shall serve at the Boards' pleasure; shall report to the Boards; shall administer the retirement office and its financial affairs; shall appoint, suspend, and remove subordinate employees subject to the Civil Service System provisions of the City of Fresno Charter and the Municipal Code; and shall perform such other administrative duties as the Boards require. The Retirement Administrator shall serve as the Secretary of the Board without additional compensation.

(c) The Board shall, when necessary, employ a consulting actuary, who shall be a person skilled by training and experience, in both the technical and administrative features of retirement systems. The Board may employ or contract for professional or consulting services, including legal services, to carry out and effect the functions of the Board.

(d) The Board shall have the sole power and authority to hear and determine all facts pertaining to applications for and awards of any benefits under the System, or any matters pertaining to the administration thereof.

(e) As of June 30, 1958, and thereafter at intervals of not to exceed two years, the Board shall make an actuarial investigation into the mortality, service, and compensation experience of the members and beneficiaries, and further, shall make an actuarial valuation of the assets and liabilities of the System. From time to time the Board shall determine the rate of interest being earned on the Retirement Fund. Upon the basis of all or any of such investigation, valuation and determination, the Board shall:

(1) Adopt for the System such interest rate and mortality, service and other tables, or any of such items, and any other actuarial assumptions, as shall be deemed necessary and shall set forth the actuarial assumptions as adopted in its rules.

(2) Make such revision in the members' rates of contribution under the System as shall be deemed necessary to comply with this article and such revision in the city's rate of contribution under the System as shall be deemed necessary to comply with this article and article 4, provided that before such revised rates of contribution are adopted by the Board, a public hearing on the question of the proposed revision shall be held by the Board; and,

(3) Transfer to or from, as the case may be, either or both of (i) the accumulated investment income in excess of interest credited to contributions, and (ii) the accumulated contributions of the city held for the benefit of members on account of service, amounts necessary to bring amounts available, in the accounts required herein to be kept, to meet the obligation of the System on account of benefits that have

been granted, including the annuity portion of such benefits, to or on account of persons who have retired or died, on the basis of the mortality tables and interest rate adopted by the Board.

(f) The Board shall determine the service rendered by and shall credit such service to members, and shall fix and may modify allowances for service and disability and fix other benefits. One year and proportionate parts thereof shall be credited on the basis of ten months or more of service rendered by monthly employees, but not more than one year shall be credited for all service in any fiscal year. Time during which a member was or shall be absent from duty without compensation shall not be allowed in computing service, except

(1) Time of absence on military service shall count as service as provided in this article; and,

(2) Time of absence from service by reason of disability retirement shall count as service and the member shall not be required to make contributions for the time of such retirement. Time during which a member is absent with compensation shall be credited as service in the same proportion that such compensation bears to the compensation earnable by the member in full-time service.

(g) The Retirement Administrator shall credit contributions of members, of beneficiaries and of the city with interest, at the rate adopted by the Board. The Board, however, at the end of each fiscal year, may credit to all contributions held in the Retirement Fund at the end of such fiscal year such additional interest as it may deem proper in the light of the earnings on the Retirement Fund during such fiscal year; provided, that the total interest credited to contributions during any fiscal year shall not exceed the earnings on the Retirement Fund during that year; and provided further, that interest at the rate adopted by the Board pursuant to this section, compounded annually, shall be used in the calculation of benefits under any mortality table adopted by the Board, regardless of any additional interest allowed on contributions under this subsection (g).

(h) The Retirement Administrator shall keep in convenient form such data as shall be necessary for the actuarial valuation of the System, and, in addition to such other records and accounts as the Board may require, shall keep such records and accounts as shall be necessary to show at any time:

(1) The total accumulated contributions of members;

(2) The total accumulated contributions of retired members less the annuity payments made to such members;

(3) The accumulated contributions of the city held for the benefit of members on account of service credited to members;

(4) All other accumulated contributions of the city, which shall include the amounts available to meet the obligation of the city on account of benefits that have been granted.

(i) The Retirement Board shall control, administer, and manage the provisions set forth in article 4.

(Rep. and abated Ord. 5313, 1968, based on former Sec. 2-703; Am. Ord. 5667, 1969; Am. Ord. 6029, 1961; Am. Ord. 68-124, 1968; Am. Ord. 73-91, § 1, eff. 7-8-73; Am. Ord. 76-49, § 1, eff. 7-14-76; Am. Ord. 84-42, § 1, eff. 5-4-84; Am. Ord. 85-167, § 1, eff. 11-29-85; Rep. and Added Ord. 90-55, §§ 1, 2, 7-13-90; Am. Ord. 95-41, § 1, eff. 6-23-95; Am. Ord. 96-54, §§ 5—9, eff. 9-20-96; Am. Ord. 98-35, § 5, eff. 6-27-98; Am. Ord. 98-98, § 11, eff. 1-9-99; Am. Ord. 2001-13, § 2, eff. 3-26-01; Am. Ord. 2001-48, § 1, eff. 7-3-01; Am. Ord. 2005-84, § 1, eff. 9-25-05).

SEC. 3-306. ABSENCES ON MILITARY SERVICE.

(a) It is the intent of this section to comply with the reemployment of members from military service as set forth in section 1101 of the Charter of the City of Fresno; in the Uniformed Services Employment and Reemployment Rights Act (USERRA), codified as Chapter 43 of Title 38 of the United States Code; and in section 414(u) of the Internal Revenue Code. Notwithstanding any provision of this article to the contrary, contributions, benefits, and credit for service with respect to military service shall be provided in accordance with section 414(u) of the Internal Revenue Code.

(b) Any member absent on military service, who returns to city service not later than one hundred eighty days after the member's honorable discharge from such service (unless that period is extended by USERRA), shall receive credit for the time of the absence as service in the same manner as if the member had not been absent. Such member shall not be required to contribute to the Retirement System for the time of such absence (unless that period is extended by USERRA), and the member's rate of compensation during such absence, for purposes of the System, shall be the same as the member's rate immediately prior to the beginning of such absence. This section shall be applied retroactively to members in city service who were absent on military service prior to the effective date of this ordinance.

(c) Military service means the performance of duty on a voluntary or involuntary basis, including active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, and attending a fitness-for-duty examination, in the Armed Forces, the Army or Air National Guard, the commissioned corps of the Public Health Service, or any other category of persons designated by the President of the United States in time of war or emergency.

(d) The city's liability under the System for benefits based on service so credited, shall be included in the liabilities which are used as the basis for the city's current service rate of contributions relating to members whose employment began after June 30, 1954, at its periodical determination as required by this article; or included in the city's liability for contributions required by this article, to be made as benefits are paid, with respect to other persons.

(e) Effective with respect to deaths occurring on or after January 1, 2007, while a member is performing qualified military service (as defined in chapter 43 of title 38, United States Code), to the extent required by Section 401(a)(37) of the Internal Revenue Code, survivors of

a member, are entitled to any additional benefits that this Code would provide if the member had resumed employment and then died, such as accelerated vesting or survivor benefits that are contingent on the member's death while employed. In any event, a deceased member's period of qualified military service must be counted for vesting purposes.

(f) Beginning January 1, 2009, to the extent required by Section 414(u)(12) of the Internal Revenue Code, an individual receiving differential wage payments as defined under Section 3401(h)(2) of the Internal Revenue Code from an employer shall be treated as an employee of the employer making the payment, and the differential wage payment shall be treated as compensation for purposes of applying the limits on annual additions under Section 415(c) of the Internal Revenue Code. This provision shall be applied to all similarly situated individuals in a reasonably equivalent manner.
(Added Ord. 5667, 1959; Am. Ord. 2002-36, § 1, eff. 8-22-02; Am. Ord. 2011-1, § 4, eff. 3-7-11).

SEC. 3-307. AMENDMENTS.

No amendment or other modification of this article, as now existing and as hereafter amended, shall be made by the Council, unless such amendment or other modification shall be previously submitted to the Board for its consideration.
(Rep. (See Sec. 2-2704) and Added Ord. 5313, 1958, Based on former sec. 2-704).

SEC. 3-308. ESTIMATES OF AGE AND SERVICE.

If it shall be impracticable for the Board to determine from the records the length of service, the compensation, or the age of any member, the said Board may estimate, for the purpose hereof, such length of service, compensation or age.
(Rep. (See Sec. 2-2705) and Added Ord. 5313, 1958, Based on former Sec. 2-705).

SEC. 3-309. BENEFITS EXEMPT FROM EXECUTION.

The right of a person to a pension, an annuity, a retirement allowance, or the return of contributions, the pension, annuity, or retirement allowance itself, any optional benefit, or any other right or benefit accrued or accruing to any person under the provisions hereof and the moneys in the fund created herein, shall not be subject to execution, garnishment, attachment, or any other process whatsoever, and shall be unassignable; provided, however, that the right of any member to the return of contributions upon his permanent separation from the service may be assigned by such member to any credit union in which eligibility for membership is limited to persons employed or formerly employed by the city, as collateral for any loan made by such credit union directly to such member; and provided further, that no such assignment by a member to a credit union shall be deemed a waiver by such member of his right, under any provision of this article, to allow his accumulated contributions to remain in the Retirement Fund. Assignments permitted hereunder shall be deemed acknowledged by the Board upon the filing thereof with the Retirement Administrator, but neither the city, its

officers and employees nor the Board, its members, and employees shall be liable to any credit union for any loss or damage on account of failure for any reason to give effect to any such assignment.
(Rep. (See Sec. 2-2706) and Added Ord. 5313, 1958, Based on former Sec. 2-1706; Am. Ord. 6396, 1964; Am. Ord. 96-54, § 10, eff. 9-20-96).

SEC. 3-310. TIME TO APPLY FOR BENEFITS.

Proceedings before the Board for the collection of benefits provided under the Retirement System, upon the death of a member or beneficiary, must be commenced within one year from the date of death, or from the date of appointment of a guardian or trustee of the person to whom the said benefits would be payable, if such person is incompetent or under twenty-one years of age.
(Rep. (See Sec. 2-2707) and Added Ord. 5313, 1958, Based on former Sec. 2-1707).

SEC. 3-311. APPLICATION FOR REHEARING.

Any applicant, or in the event of the death or incompetency of the applicant, any person legally qualified to act for said applicant, may file an application for rehearing of any application, whether for a benefit hereunder or retirement, within thirty days after written notice of the determination by the Retirement Board has been sent by mail to the applicant or his attorney of record, upon any of the following grounds:

(1) That the Retirement Board acted without and in excess of its powers;

(2) That the order, decision, or award was procured by fraud;

(3) That the evidence does not justify the determination of said Retirement Board;

(4) That the applicant has discovered new evidence material to him which he could not, with reasonable diligence, have discovered or procured at the hearing.

(Rep. (See Sec. 2-2708) and Added Ord. 5313, 1958, Based on former Sec. 2-708; Am. Ord. 5667, 1959).

SEC. 3-312. DETERMINATION OF APPLICATION FOR REHEARING.

The determination of the Board on any application for rehearing shall be made within sixty days after the filing thereof, or said application shall be deemed denied and such determination shall be final and conclusive and it shall have no jurisdiction to entertain any subsequent application regarding the same matter.
(Rep. (See Sec. 2-2709) and Added Ord. 5313, 1958, Based on former Sec. 2-709).

SEC. 3-313. CREATION AND CONTROL OF RETIREMENT FUND; INVESTMENTS.

(a) A trust fund is hereby created, to be known as the Fresno Fire and Police Retirement Fund and to consist of all the moneys paid into it as herein provided, whether such moneys shall take the form of cash, securities or other assets, plus the assets in the Fund created by

Ordinance No. 3116, as amended, said Fund being hereby discontinued. The assets so transferred shall be applied on the city's obligation under Section 3-318. The Retirement Board shall have exclusive control of the administration and investment of the said fund herein created.

(b) Except as provided in this article or in article 4, no member or employee of the Board shall have any interest, direct or indirect, in the making of any investment, or in the gains or profits accruing therefrom. No member of the Retirement System and no member or employee of the said Board, directly or indirectly, for himself or as an agent or partner of others, shall borrow any of its funds or in any manner use the same except to make such current and necessary payments as are authorized by said Board; nor shall any member or employee of the Board become an indorser or surety or become in any manner an obligor for moneys invested by the Board. Effective as of July 1, 1989, a member or employee of the Retirement Board shall not engage in a transaction prohibited by Section 503(b) of the Internal Revenue Code.

(c) In the exercise of its control of the administration and investment of the Retirement Fund, the Retirement Board may by resolution specify certain classes or kinds of securities in which the moneys in the Retirement Fund may be invested and may authorize the Retirement Administrator to:

(1) Invest moneys in the Retirement Fund, from time to time as such moneys become available, in securities of any of the classes or kinds so specified, and

(2) Surrender matured securities in the Retirement Fund upon their maturity and reinvest the proceeds in securities of any such specified classes or kinds.

(d) The City of Fresno Fire and Police Retirement Fund may participate under Section 401(a)(24) of the Internal Revenue Code in a qualified group trust that meets the requirements of Section 401(a) of the Internal Revenue Code in accordance with Revenue Ruling 81-100, as amended by Revenue Ruling 2004-67.
(Rep. and Added Ord. 5313, 1958, based on former Sec. 2-710; Am. Ord. 6394, 1964; Am. Ord. 70-30, 1970; Am. Ord. 96-54, §§ 11—16, eff. 9-20-96; Am. Ord. 98-35, § 6, eff. 6-27-98; Am. Ord. 2011-1, §§ 5, 6, eff. 3-7-11).

SEC. 3-314. INVESTMENTS.

(a) The Board is authorized to acquire every kind of property, real, personal or mixed, and every kind of investment, specifically including, but not by way of limitation, corporate obligations of every kind, and stocks, preferred or common, which persons of prudence, discretion and intelligence acquire for their own account.

(b) In investing, reinvesting, purchasing, acquiring, exchanging, selling and managing the assets of the Retirement Fund, the Board shall exercise the judgement and care, under the circumstances then prevailing, which persons of prudence, discretion and intelligence, acting in a like capacity and familiar with such matters, would use in the conduct of an enterprise of

like character and with like aims. In addition, the Board shall diversify the investments of the Retirement Fund in order to minimize the risk of large losses, unless under the circumstances it is clearly prudent not to diversify.

(c) The Board may by resolution adopt rules and regulations to carry out the provisions of this section and to govern procedures of the Board in the management of the assets of the Retirement Fund.

(d) Should an investment manager or investment advisor be retained under contract to provide investment management or investment advisory services with respect to the purchase, sale or exchange of stocks, shares and securities to be purchased or purchased with moneys in the Retirement Fund, the Board may by contract authorize such investment manager or investment advisor to purchase, sell or exchange stocks, shares and securities without prior approval by the Board of any such transaction; provided, however, that any such contract shall provide that the investment manager or investment advisor shall comply with investment guidelines adopted by the Board by resolution.
(Added Ord. 69-24, 1969; Am. Ord. 74-14, § 1, eff. 3-3-74; Am. Ord. 77-42, § 1, eff. 5-27-77; Am. Ord. 82-53, § 1, eff. 6-18-82; Am. Ord. 85-119, § 1, eff. 9-13-85; Am. Ord. 92-27, § 1, eff. 5-22-92; Am. Ord. 93-64, § 1, eff. 11-12-93; Am. Ord. 96-54, §§ 17—19, eff. 9-20-96).

SEC. 3-315. DUTY OF DEPARTMENT HEAD.

It shall be the duty of the head of each office or department to give immediate notice in writing to the Retirement Administrator of the change in status of any member in his office or department resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal, death, or other cause. The head of each office or department shall furnish other information concerning any member as the Retirement Administrator may require.
(Added Ord. 5313, 1958, based on former Sec. 2-711; Am. Ord. 96-54, § 20, eff. 9-20-96).

SEC. 3-316. DUTY OF MEMBER OR BENEFICIARY.

Each member and beneficiary shall be subject to all revisions hereof and to all the rules and regulations adopted by the Board, and shall furnish to the Board such information affecting his status as a member or beneficiary of the System as the Board may require.
(Added Ord. 5313, 1958, based on former Sec. 2-712).

SEC. 3-317. MEMBERSHIP CEASES—WHEN.

Should any member die or be retired, or should he be paid his accumulated contributions, he shall thereupon cease to be a member.
(Added Ord. 5313, 1958, based on former Sec. 2-713).

SEC. 3-318. MEMBERS' CONTRIBUTIONS UNDER PREVIOUS FUNDS.

Contributions deducted under other Police and Fire Retirement or Pension Funds of the city, from the compensation of members, shall be paid by the city to the Retirement System, with regular interest from and including July 1, 1955, said payment to be made prior to the

time or when said accumulated contributions are payable to or on account of members, or are applicable toward providing part of members' or dependents' allowances. Such contributions shall be credited, together with regular interest, to the individual accounts of the respective members from whose compensation the contributions were deducted.
(Added Ord. 5313, 1958, based on former Sec. 2-714).

SEC. 3-319. NORMAL CONTRIBUTIONS OF MEMBERS WHO COMMENCED SERVICE PRIOR TO AUGUST 27, 1990.

The normal rate of contribution of each member who commenced service prior to August 27, 1990, shall be based on the member's age taken to the next lower completed quarter year, (1) at the date the member became a member under Ordinance No. 3116 or its predecessor, in the case of persons who were members under Ordinance No. 3116 at the close of June 30, 1955, or (2) at the date the member becomes a member in the case of persons who become members upon employment, on or after July 1, 1955, without credit for service. If, however, a person who is included in item (1) of the preceding sentence, was absent from duty without compensation, after the date of the member's first employment as a member of the Fire or Police Department, more than two months in any fiscal year, the age upon which the member's rate of contribution shall be based, shall be taken to the next lower completed quarter year, at the date derived by deducting the years of service with which the member is entitled to be credited, as calculated under this article from July 1, 1955. The normal rate of contribution of each such member, to be effective on and after the effective date of membership in this Retirement System, shall be such as, on the average, will provide, assuming service without interruption, one-third of the service retirement allowance to which the member would be entitled, including automatic continuance to dependents, upon first qualifying as to service and age not less than fifty years, for retirement hereunder, which is based on service rendered after the date upon which the member's age is based for determination of the member's rate of contribution according to the first two sentences in this paragraph, and assuming the contribution to be made from that date, it being the intention for purposes of this section that the retirement allowance of such member who serves without interruption, upon retirement for service when qualified at age fifty or higher age, and with twenty years of service, shall be, on the average, one-half of the member's average compensation, and when qualified at age sixty with less than twenty years of service, the fraction of one-half, that the member's service is of twenty years. The portion of the rate of contribution which is calculated to provide for automatic continuance to dependents shall be based on the assumption that the dependent is a wife three years younger, or a husband three years older, as the case may be, than the member at the time of qualification for service retirement. If at the date of retirement for service or disability, said member has no wife or husband or domestic partner, as the case may be, who would qualify for the continuance of the allowance to her or him, after the death of such member, the accumulated contributions resulting from the dependent portion of the normal rate, shall be refunded to the member forthwith. The Retirement Board shall adopt members' normal rates of contribution to comply with this section. The rates so adopted shall remain in effect until revised by such Board in the manner provided in Section 3-305.
(Added Ord. 5313, 1958, based on former Sec. 2-715; Am. Ord. 5667, 1959; Am. Ord. 5673, 1960; Am. Ord. 98-35, § 7, eff. 6-27-98; Am. Ord. 2006-15, § 2, eff. 3-10-06).

SEC. 3-320. PAYMENT OF CONTRIBUTIONS OF MEMBERS BY CITY. APPLICATION OF COLLECTIVE BARGAINING LAWS.

Notwithstanding any other provision of law, the city shall pay all of the contributions required to be paid by all members. Such payments shall be reported as employer-paid, "picked up" contributions under Section 414(h)(2) of the Internal Revenue Code, although designated as normal contributions under this Code, and shall be credited to the members' accounts. Such payments shall be made in lieu of a like amount of salary otherwise payable to all members, so that the members' compensation shall in no way be affected by such payments. Notwithstanding any provision to the contrary, a member shall not be permitted to opt out of this Section or to receive the contributed amounts directly instead of having them paid by the city to the City of Fresno Fire and Police Retirement System.

Nothing in this section shall be construed to limit the authority of the city to periodically increase, reduce, or eliminate the payment by the city of all or a portion of the contributions required to be paid by the members.

The provisions of this section shall be subject to any applicable collective-bargaining laws. (Added Ord. 86-39, § 1, eff. 4-18-86; Am. Ord. 2011-1, § 7, eff. 3-7-11).

SEC. 3-321. NORMAL CONTRIBUTIONS OF MEMBERS UPON REENTRY WHO COMMENCED SERVICE PRIOR TO AUGUST 27, 1990.

Upon the re-entry of a member who commenced service prior to August 27, 1990 into the Retirement System at reinstatement from service or disability retirement, or upon the member's re-entry to service following the member's election under Section 3-328 to allow the member's accumulated contributions to remain in the Retirement System, the member's normal rate of contribution shall be based upon an age determined by adding the number of completed years of the member's absence from service, to the age upon which the member's normal rate of contribution, as it was prior to said retirement or election, as the case may be, was based. The same percentage of the member's average, compensation per year of service which, prior to retirement, the member's contributions and those of the city, were calculated to

provide upon retirement for service at the member's lowest optional service retirement age without reduced benefit shall be used in the calculation of the member's normal rate of contribution at reinstatement.
(Am. Ord. 98-35, § 8, eff. 6-27-98).

SEC. 3-322. COLLECTION OF MEMBERS' CONTRIBUTIONS.

The Board shall certify to the head of the respective departments and the Controller the normal rate of contribution for each member provided for in Section 3-319 and Section 3-405. The head of such department or the Controller shall apply such rate of contribution to the compensation of the member to determine the amount to be contributed by each member, and shall furnish immediately to the Board a copy of each and every such payroll; and each of said amounts shall be deducted by the Controller and shall be deposited in the Retirement Fund, herein provided for, and shall be credited together with regular interest, to the individual account of the member for whom the contribution was made. The Controller, however, may accept cash payments by any member of amounts necessary to correct or adjust the contribution account of such member, the amount so accepted to be deposited and credited in the same manner as if deducted on a payroll. Every member shall be deemed to consent and agree to the contribution made and provided for herein, and shall receipt in full for the member's salary or compensation, and payment less said contribution shall be a full and complete discharge and acquittance of all claims and demands whatsoever, for the services rendered by such person during the period covered by such payment, except the member's claims to the benefits to which the member may be entitled under the provisions hereof.
(Added Ord. 5313, 1958, based on former Sec. 2-717; Am. Ord. 98-35, § 9, eff. 6-27-98).

SEC. 3-323. ADJUSTMENTS.

If more or less than the normal contribution required of members, or the city, is paid, proper adjustment shall be made in connection with subsequent payments, or such adjustment may be made by direct cash payments between the member, the city, or the Board. Adjustment regarding payments to or by the Board, including adjustment of contributions, with interest, which are found to be erroneous as the result of corrections of dates of birth, may be made in the same manner. Adjustment to correct overpayment or underpayment of a retirement allowance may also be made by adjusting the allowance so that the retired person or the retired person and his beneficiary, as the case may be, will receive the actuarial equivalent of the allowance to which the member is entitled. Underpayments or delayed payments or corrected payments or similar adjustments to a member or person shall include interest, where appropriate, at the interest rate adopted by the Board.
(Added Ord. 5667, 1959; Am. Ord. 85-139, § 2, eff. 10-18-85; Am. Ord. 95-41, § 2, eff. 6-23-95).

SEC. 3-324. CITY CONTRIBUTIONS.

There shall be paid into the Retirement Fund, by contributions of the city, amounts necessary to pay all allowances, other benefits allowable under the Retirement System to or on account of members and not provided by members' accumulated contributions, and all

administrative costs as set forth in Section 3-325. Until revised by the Board on the basis of experience, as determined in accordance with Section 3-305, the city's rate of contribution for the purposes of this section shall be 38.95 percent. This rate shall be adjusted by the Board in accordance with such tables and rates as the Board may adopt pursuant to Section 3-305. The above city rate shall be the sum of the following:

(a) With respect to members whose employment in the Fire or Police Department began prior to July 1, 1954, the liability on account of those members or beneficiaries on the pension roll on July 1, 1975, shall be amortized over a thirty-year period and expressed as a level percentage of the aggregate amount of compensation earned by all active members of the retirement system.

(b) With respect to the liability of the retirement system other than that in subsection (a), the city shall have a normal contribution rate which shall be computed as a level percentage of compensation which, when applied to the future compensation of the average new member entering the system, together with the required member contributions, will be sufficient to provide for the payment of all prospective benefits of such member. The portion of liability not provided by the normal contribution rate shall be amortized at a rate determined by the System's actuary pursuant to the Board's actuarial funding policy, as it may be amended from time to time, that is in accord with Article 16, Section 17 of the California Constitution.

(Added Ord. 5313, 1958, based on former Sec. 2-718; Am. Ord. 5667, 1959; Am. Ord. 76-46, § 1, eff. 6-27-76; Am. Ord. 88-145, § 1, eff. 12-23-88; Am. Ord. 91-48, § 1, eff. 6-7-91; Am. Ord. 96-54, § 21, eff. 9-20-96; Am. Ord. 2013-10, § 1, eff. 5-31-13).

SEC. 3-325. ADMINISTRATIVE COSTS.

Costs related to the provision of administrative, professional, or consulting services performed by employees of the city for the benefit of the Retirement System, including but not limited to, clerical and other staff support and employee representation on the Retirement Board and the costs incurred whenever the Board employs or contracts for services pursuant to the provisions of Section 3-305(c), the cost of such services shall be considered a charge against the assets of the Retirement System.

(Added Ord. 5313, 1958, based on former Sec. 2-719; Am. Ord. 78-163, § 1, eff. 12-1-78; Am. Ord. 84-42, § 2, eff. 5-4-84; Am. Ord. 91-48, § 2, eff. 6-7-91).

SEC. 3-326. GUARANTY.

The payments of the city into the Fresno Fire and Police Retirement System, as provided in Sections 3-324 and 3-325, are hereby made obligations of the city. There shall be appropriated, in the budget for each fiscal year, such amounts as are necessary to make such payments, and the amounts so appropriated shall be provided for in the tax levy.

(Added Ord. 5313, 1958, based on former Sec. 2-720).

SEC. 3-327. REFUND OF CONTRIBUTIONS.

(a) Should the service of a member in a status requisite for membership in the System be discontinued, except by death or retirement, the member shall be paid not less than six months after the date of discontinuance, and upon the member's demand, the member's accumulated contributions; provided that, if in the opinion of the Board, said member is permanently

separated from service by reason of such discontinuance, the member shall be paid forthwith all of such contributions. In intervals between meetings of the Retirement Board, the Retirement Administrator shall act under this section, for and in lieu of the Board, by making payment of accumulated contributions in the same manner and with the same effect as if the conditions prescribed herein for the Board were prescribed instead for the Retirement Administrator. Such payments shall be reported to the Board at its next meeting.

(b) Any member, upon re-entering the Retirement System, shall redeposit in the Retirement Fund, in one sum or in not to exceed six monthly or twelve semi-monthly payments, (1) an amount equal to that which the member withdrew therefrom at the last termination of the member's membership, and (2) an amount equal to the additional interest which would have been credited to the member's account had such contributions not been withdrawn, and (3) in the case of members electing to make repayment other than in one lump sum, interest on the unpaid balance of the amount payable to the System under such an election, beginning on the effective date of such election, at the rate of interest currently being used from time to time under the System. The member's rate of contribution for future years shall be based on an age determined by adding the number of completed years of the member's absence from membership in the System, to the age upon which the member's normal rate of contribution, as it was prior to such termination, was based, and the member's membership shall be the same as if unbroken by such last termination. The same percentage of the member's average compensation per year of service which, prior to refund, the member's contributions and those of the city were calculated to provide upon retirement for service at the member's lowest optional service retirement age without reduced benefit shall be used in the calculation of the member's normal rate of contribution at reinstatement. If a member who commenced service prior to August 27, 1990 fails to make such a redeposit within the time period set forth in this subsection, the member shall be deemed to be subject to the provisions of article 4 as of the date the member re-entered service. (Added Ord. 5313, 1958; based on former Sec. 2-721; Am. Ord. 5667, 1959; Am. Ord. 95-41, § 3, eff. 6-23-95; Am. Ord. 96-54, § 22, eff. 9-20-96; Am. Ord. 98-35, § 10, eff. 6-27-98).

SEC. 3-328. DEFERRED BENEFITS AFTER SEPARATION.

Any other provision in this article to the contrary notwithstanding, if the service of a member is discontinued by reason of resignation or discharge or by reason of lay-off or leave of absence deemed by the Board to have resulted in permanent discontinuance (and in such case, as of the date of the determination by the Board of such permanence), or if the disability retirement of a member is followed by cessation of the disability and by cancellation of the disability allowance, but the member does not re-enter service, and he is entitled to credit for ten years of service, he shall have the right to elect, within ninety days after the date upon which notice of said right is mailed by the System to the member's last address on file in its office, whether to allow his accumulated contributions to remain in the Retirement Fund. Failure to make such election shall be deemed an irrevocable election to withdraw his accumulated contribution. A member having made such election may, at any time before the effective date of any deferred retirement allowance for which he has qualified under this

section, rescind his election in writing and upon such rescission he shall be paid forthwith his accumulated contributions. A member whose membership continues under this section is subject to the same age and disability requirements as apply to other members for service or for disability retirement, but he is not subject to a minimum service requirement. After the qualifications of such member for retirement by reason of age or disability, he shall receive a retirement allowance based upon the amount of his accumulated contributions and service standing to his credit at the time of retirement and on the city contributions held for him and calculated in the same manner as for other members, except that the provisions in this article for minimum retirement allowances do not apply to him, unless he meets such minimum service requirements. No death benefits shall be payable if the death of the member occurs on or after such election is made and before any re-entry into service, except as provided in Subsection (b) of Section 3-330. (Added Ord. 5313, 1958, based on former Sec. 2-722; Am. Ord. 6735, 1965).

SEC. 3-329. DEFERRED BENEFITS AFTER ENTERING EXCLUDED CLASSIFICATION.

(a) Other provisions in this code to the contrary notwithstanding, the accumulated contributions of a member who has entered or enters a classification which is requisite for membership in the City of Fresno Employees Retirement System remain in the Retirement Fund. A member whose membership continues under this section is subject to the same age and disability requirements except as provided in subsection (c) of this section, as apply to other members for service or for disability retirement, and the member is subject to a minimum service requirement of ten years credited under this system and the City Employees Retirement System. After the qualifications of such member for retirement by reason of service and age or disability, the member shall be entitled to receive a retirement allowance based upon the amount of the member's accumulated contributions and service standing to the member's credit at the time of retirement and on the city contributions held for the member, and calculated in the same manner as for other members, except that the provisions in this article for minimum retirement allowance do not apply to the member, unless the member meets such minimum service requirements.

(b) Upon the death of such member, while employed in such classification, a death benefit as described in Section 3-330 shall be payable, but computed upon the basis of compensation earnable by the member during the six months preceding the member entry into such classification. The portion of such death benefit which is derived from contributions of the city shall be reduced by an amount equal to the portion so derived, of any death benefit to which such member may be entitled, from the City Employees Retirement System.

(c) A member with accumulated contributions remaining in the City Employees Retirement Fund pursuant to Section 3-537 of Article 5 and who retires for service or disability under the City Employees Retirement System shall be retired under this System, for service or disability as the case may be, regardless of the member's age or service credited thereunder, but subject to the requirement in subsection (a) of at least ten years under both systems. Such allowances shall be calculated as provided in this Article 3, except for the greater discount of the Service

Retirement Allowance, and except that the disability retirement allowances under the two systems shall be combined for application of the provisions in Sections 3-336 and 3-547 relating to minimum allowances and only one such minimum allowance shall be calculated on the basis of the combined credited service and the higher of the average compensation or final compensation. The minimum allowance so determined shall be prorated between the two Systems according to the credited service under such Systems.

(d) This section shall be applied retroactively to include persons who would have been subject to its provisions if it had been in effect when they entered such classification. (Added Ord. 5667, 1959; Am. Ord. 2001-13, § 3, 3-26-01).

SEC. 3-330. DEATH BENEFITS.

(a) Upon the death before retirement of a member, the Retirement System shall be liable for a death benefit, which, if an amount be due under paragraph (3) of this subsection or an allowance be payable under Section 3-338, and if there be a surviving spouse or surviving domestic partner or surviving children or parents, shall be paid in monthly installments and to the surviving spouse or surviving domestic partner and children and parents as prescribed therein; otherwise such death benefit shall be paid to such person having an insurable interest in the member's life as the member shall nominate by written designation duly executed and filed with the Retirement Board or, if the member has not designated such a person or if the person so designated is not living at the time of the payment, to the member's estate. Such death benefits shall consist of:

(1) The member's accumulated contributions, and in addition thereto;

(2) An amount equal to one-sixth of the member's compensation earnable during the six months immediately preceding the member's death multiplied by the member's completed years of service as a member of the System not to exceed six, and if such death is service-connected, in the opinion of the Retirement Board, in addition thereto;

(3) An amount sufficient, when added to the amounts provided in the next preceding paragraphs (1) and (2) to provide, when applied according to mortality tables and interest rate adopted by the Board, a monthly death allowance, equal to the service retirement allowance which the member would have received if the member had retired for service on the day of the member's death, provided the member was at least fifty years of age, and was entitled to be credited with at least twenty years of service, but such allowance shall not be less than one-half of the member's average compensation; otherwise, equal to one-half of the member's average compensation, to be paid to the surviving spouse or surviving domestic partner, to continue as long as the spouse or domestic partner shall live; or if there be no qualifying surviving spouse or qualifying surviving domestic partner, or if the spouse or domestic partner shall die, to the unmarried child or children of such member who are unmarried or not in a domestic partnership, collectively, under the age of eighteen years, to continue until every such child dies or marries or attains age eighteen; provided that

no child shall receive any allowance after marrying or attaining age eighteen. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen but leave a child or children who, pursuant to terms and conditions adopted by the Retirement Board, is or are determined by the Board to have been disabled prior to age eighteen and whose disability continues past age eighteen, the child or children while so disabled shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner otherwise would have received. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen years, and no disabled child whose disability continued past the age of eighteen years, but leave a parent or parents dependent upon the member for support, the parents so dependent shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner otherwise would have received during such dependency. If payment of the allowance be stopped because of death of the surviving spouse or death of the surviving domestic partner or attainment of the age of eighteen years by, or the death or marriage of, a child, or cessation of disability in a child whose disability continued past the age of eighteen years, or the death or cessation of dependency of a parent, before the sum of the monthly payments made shall equal the sum of the amounts provided in the next preceding paragraphs (1) and (2), then an amount equal to the difference between said sums shall be paid in one amount, to the surviving children of the deceased member, share and share alike and, if none, to the member's estate.

(b) Upon the death of a member who, after ten years of service, has discontinued service and elected to allow his or her accumulated contributions to remain in the Retirement Fund, the Retirement System shall be liable, in the event the member dies four or more months after the discontinuance of service, for a death benefit consisting of the member's accumulated contributions only. Such benefits shall be paid to such person as the member has nominated or shall nominate by written designation duly executed and filed with the Retirement Board and, if none, to the member's estate.

(c) A member, or a beneficiary after the death of a member, may elect, by written designation duly executed and filed with the Retirement Board, to have the death benefit provided in this section paid in monthly or annual installments instead of in one lump sum, subject to such rules and regulations as the Board may adopt.

(d) A person, while a member or after retirement, shall have the right to revoke the nomination of a beneficiary made by him or her under the Retirement System, and to nominate a beneficiary in lieu thereof, of all by written designation duly executed and filed with the Retirement Board, provided that this right shall not extend to beneficiaries nominated under Options 2A, 2B, 3A, and 3B, Section 3-341 (Optional Modification of Allowances at Retirement).

(e) With respect to members retiring on or before the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the member prior to the date of the sustaining of the injury or the onset of the

illness which resulted in the member's death or, if such date was more than one year prior to his or her death, only if the spouse was married to the member at least one year prior to the member's death. With respect to members retiring after the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the member prior to the member's date of retirement or to a surviving domestic partner only if the domestic partner had established a domestic partnership with the member prior to the member's date of retirement.

(f) If any benefits paid under this section are paid as a survivor annuity to the surviving spouse (or former spouse) or child(ren) of a member who qualifies as a public safety officer within the meaning of Section 101(h) of the Internal Revenue Code, and such member was killed in the line of duty, then such monthly death allowance shall be nontaxable to the extent allowed by Section 101(h) of the Internal Revenue Code. However, if the member or the member's death does not qualify under Section 101(h) of the Internal Revenue Code, then, if the Board determines that the member's death was service-connected, the amount of the monthly death allowance which equals fifty percent (50%) of the member's average compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(Added Ord. 5313, 1958, based on former Sec. 2-723; Am. Ord. 5667, 1959; Am. Ord. 6894, 1966; Am. ord. 7629, § 1, eff. 5-2-76; Am. Ord. 76-45, § 1, 6-27-76; Am. Ord. 84-47, § 1, eff. 5-11-84; Am. Ord. 2000-4, § 2, eff. 2-10-00; Am. Ord. 2001-16, § 1, eff. 3-26-01; Am. Ord. 2001-72, § 2, eff. 11-10-01; Am. Ord. 2006-15, § 3, eff. 3-10-06; Am. Ord. 2021-012, § 1, eff. 5-17-21).

SEC. 3-332. SERVICE RETIREMENT.

Retirement of a member for service shall be made by the Retirement Board as follows:

(1) Every member who attains age sixty, who shall have completed ten years of service after qualifying for service retirement, shall not be required to make further contributions to the retirement fund. If such member shall not have completed ten years of service after qualification for service retirement, then the member shall be required to contribute to the retirement fund only until such ten years of service are completed;

(2) Any member may retire upon written application to the Retirement Board, stating what time the member desires to be retired, provided that said member shall be entitled to be credited, at the time so specified for the member's retirement, with at least ten years of service in the aggregate, and shall have attained the age of fifty years.

(Am. Ord. 2000-28, § 1, eff. 4-24-00; Am. Ord. 2013-36, § 1, eff. 1-20-14).

SEC. 3-333. ALLOWANCE AT SERVICE RETIREMENT.

A member, upon retirement for service as provided in Section 3-332, shall receive a retirement allowance, which shall consist of the sum of subsections (1) and (2):

(1) The member's service annuity, which is an annuity actuarially equivalent to the accumulated contributions of the member at the time of the member's retirement;

(2) The member's service pension, which is a pension derived from the contributions of the city, sufficient, when added to the service annuity set forth in subsection (1), to equal the benefit set forth in subsection (3).

(3) Subsections (1) and (2) shall equal:

(i) upon service retirement at the later of age 50 or the date 20 years of service was completed, a member shall be entitled to a retirement allowance equal to fifty-five percent (55%) of average compensation;

(ii) upon service retirement at a date after the later of age 50 or the date 20 years of service was completed, a member shall be entitled to a retirement allowance equal to (i) fifty-five percent (55%) of average compensation plus (ii) two percent (2%) of average compensation for each year of service in excess of 20 years completed after age 50;

(iii) upon service retirement at or after age 50 but with less then 20 years of service, a member shall be entitled to a retirement allowance which equals fifty-five percent (55%) of average compensation, multiplied by the ratio of the member's years of service to twenty;

(iv) upon retirement of a member subject to Section 3-328 (Deferred Benefits After Separation), a member shall be entitled to a retirement allowance which equals fifty-five (55%) of average compensation, multiplied by the ratio of (i) the member's years of service to (ii) the years of service the member would have completed if the member had remained in City service to the later of age 50 or the date the member would have completed twenty years of service;

(v) in no event shall a member's retirement allowance exceed seventy-five percent (75%) of average compensation;

(vi) subsection 3(i)—(v) of this Section shall not be applied retroactively and shall only be applied to members, retired members, and beneficiaries with respect to retirement allowances issued after July 1, 1998.

(Added Ord. 5313, 1958, based on former Sec. 2-726; Am. Ord. 5667, 1959; Am. Ord. 98-35, § 12, eff. 6-27-98).

SEC. 3-334. RE-EMPLOYMENT OF PERSONS RETIRED FOR SERVICE.

(a) A person who has been retired under this System for service may be reinstated from retirement by the Board as provided in this section, and thereafter may be employed by the city in accordance with the laws governing such employment, in the same manner as a person who has not been so retired. Such reinstatement shall be based upon:

(1) The retired member's application to the Board for reinstatement.

(b) When any such person is reinstated from retirement under this section, the member's retirement allowance shall be canceled forthwith, and the member shall become a member of this System as of the date of reinstatement. The member's individual account shall be credited with an amount which is the actuarial equivalent of the member's annuity at the

date of reinstatement, not to exceed the amount of the member's accumulated contributions as it was at the date of the member's retirement. The member's future rate of contribution shall be determined in the same manner as if the member were re-entering the System and redepositing accumulated contributions. The member's allowance at subsequent service retirement shall be determined in accordance with the provisions of this article, including the use of the same percentages of the member's average compensation, for each year of service, which would have been used if the member had not been retired previously or with the provisions of article 4 for a member who commenced service on or after August 27, 1990. (Added Ord. 5313, 1958, based on former Sec. 2-728; Am. Ord. 5567, 1959; Am. Ord. 98-35, § 13, eff. 6-27-98; Am. Ord. 2012-5, § 1, eff. 3-15-12; Am. Ord. 2013-36, § 2, eff. 1-20-14).

SEC. 3-335. DISABILITY RETIREMENT.

(a) Retirement of a member for disability shall be made by the Retirement Board upon medical examination as follows: Any member while in service, or within four months after the discontinuance of service, or while physically or mentally incapacitated for the performance of his duty, if such incapacity has been continuous from discontinuance of service, shall be examined by one or more physicians or surgeons selected by the Board, upon the Board's own motion, upon the application of the head of the office or department in which said member is employed, or upon the application of said member or of a person authorized to act in his behalf, stating that said member is physically or mentally incapacitated for the performance of duty and ought to be retired, provided, if his disability is not industrial, he shall be credited with ten or more years of service.

(b) If such medical examination and other available evidence show, to the satisfaction of the Board, that the said member is physically or mentally incapacitated for the performance of duty, and that such incapacity is of permanent or extended duration, and that he ought to be retired, the Board shall retire the said member for disability forthwith.

(c) The Board shall secure such medical service and advice as may be necessary to carry out the purpose of this section and of Section 3-337, and shall pay for such medical service and advice such compensation as the Board shall deem reasonable.
(Added Ord. 5313, 1958, based on former Sec. 2-729).

SEC. 3-336. ALLOWANCE AT DISABILITY RETIREMENT.

Upon retirement for disability as provided in Section 3-335, a member:

(a) If the member's disability, in the opinion of the Board, is service-connected, shall receive

(1) A disability annuity which shall be the actuarial equivalent of the member's accumulated contributions at the time of the member's retirement; and

(2) A disability pension purchased by contribution of the city, which together with the annuity provided by the member's accumulated contributions, shall make the member's total retirement allowance equal to fifty-five percent of the member's average compensation, or if the member is qualified for service

retirement, such pension shall be an amount which together with the annuity provided by the member's accumulated normal contributions, shall equal the retirement allowance the member would receive if retired for service, but not less than fifty-five percent of the member's average compensation.

(3) The benefits provided by this subsection are in the nature of workmen's compensation and shall be excluded from income to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(b) If the member's disability, in the opinion of the Board, is not service-connected, shall receive:

(1) A disability annuity which shall be the actuarial equivalent of the member's accumulated contributions at the time of the member's retirement; and

(2) A disability pension purchased by the contributions of the city, which, together with the annuity provided by the member's accumulated contributions, shall make the retirement allowance equal to the greatest of:

(i) thirty-six and sixty-seven hundredths (36.67) percent of the member's average compensation; or

(ii) one and sixty-five hundredths (1.65) percent of the member's average compensation multiplied by the number of years of service credited to the member; or

(iii) the amount of the member's service retirement allowance, provided that the member is eligible to retire for service.

(Added Ord. 5313, 1958, based on former Sec. 2-730; Am. Ord. 98-35, § 14, eff. 6-27-98; Am. Ord. 2001-72, § 4, eff. 11-10-01; Am. Ord. 2021-012, § 2, eff. 5-17-21).

SEC. 3-337. SAFEGUARDS.

(a) The board at its pleasure or upon request by a beneficiary may require the beneficiary who has been retired for disability and who has not attained the age of fifty years to undergo medical examination, such examination to be made by a physician or surgeon appointed by the Board at the place of residence of said beneficiary or other place mutually agreed upon. Upon the basis of such examination, the Board shall determine whether said disability beneficiary is still incapacitated, physically or mentally, for service in the office or department of the city where he was employed and in the position held by him when retired for disability. If the Board shall determine that said beneficiary is not so incapacitated, his retirement allowance shall be cancelled forthwith, and he shall be reinstated to the position of the same class as that held by him when retired for disability.

(b) (1) Should a beneficiary after retirement for disability reenter the service and be eligible for membership in the Retirement System in accordance with Section 3-303, his retirement allowance shall be cancelled and he shall immediately become a member of the Retirement System, his rate of contribution for future years being that established subject to Section 3-321. His individual account shall be credited

with an amount which shall be the actuarial equivalent, at the time of such re-entry, based on a disabled life, of his annuity, but such amount shall not exceed the amount of his accumulated contributions as it was at the time of his retirement.

(2) An amount actuarially equivalent to his disability pension, shall again be held for the benefit of said member and shall no longer be included in the amounts available to meet the obligation of the city on account of benefits that have been granted. Such member shall receive credit for service in the same manner as if he had never been retired for disability.

(c) Should any person retired for disability or service engage in a gainful occupation, prior to attaining age fifty, the Board shall reduce the amount of his monthly pension as defined herein to an amount which, when added to the compensation earned monthly by him in such occupation, shall not exceed the amount of the compensation attached to the rank which he held at the time of his retirement. Should the earning capacity of such beneficiary be further altered, the Board may further alter his said pension to an amount which shall not exceed the full amount to which he would be entitled under this article in the absence of engagement in such occupation, but which, subject to such limitation, shall equal, when added to the compensation earned by him, the amount of the compensation attached to said rank. When said beneficiary reaches age fifty, his retirement allowance shall be made equal to the full amount to which he would be entitled under this article in the absence of engagement in such occupation, and shall not again be modified because of earnings other than under employment of the city.

(d) Should any beneficiary retired for disability refuse under age fifty to submit to medical examination, his pension may be discontinued until his withdrawal of such refusal, and should such refusal continue for one year, his retirement allowance may be cancelled. (Added Ord. 5313, 1958; based on former Sec. 2-731; Am. Ord. 95-41, § 5, eff. 6-23-95).

SEC. 3-338. CONTINUATION OF RETIREMENT ALLOWANCES AFTER DEATH.

(a) Upon the death of a member, due to other than service-connected cause, after qualification for service retirement at or over age fifty, with credit for at least ten years of service and on account of whose death the benefit provided for in Section 3-330(a)(1) and (2) is otherwise payable, or after retirement, regardless of cause, two-thirds of the retirement allowance to which the member would have been entitled if the member had retired for service at the time of death, or two-thirds of the member's retirement allowance as it was at death, including a service-connected disability retirement allowance in accordance with section 3-336(a), as the case may be, and both before modification under an option, shall be continued, throughout life, to the surviving spouse or to the surviving domestic partner.

(b) Upon the death of a member, due to other than service-connected cause, prior to the member's attainment of age fifty, with credit for at least ten years of service and on account of whose death the benefit provided for in Section 3-330(a)(1) and (2) is otherwise payable, two-thirds of the retirement allowance, before modification under an option, earned by the member's service as of the date of death, or if the member was receiving a service-connected

disability retirement in accordance with Section 3-336(a) at the time of the member's death, shall be continued, throughout life to the surviving spouse or to the surviving domestic partner.

(c) If there be no surviving spouse or surviving domestic partner entitled to an allowance under this section, or if the surviving spouse or surviving domestic partner so entitled dies before every child of such deceased member attains the age of eighteen years, then the allowance which such surviving spouse or surviving domestic partner would have received had the spouse or domestic partner lived shall be paid to the member's child or children under said age, collectively, to continue until every such child dies or attains said age, provided that no child shall receive any allowance after marrying or establishing a domestic partnership and no non-disabled child shall receive any allowance after attaining the age of eighteen years. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen years but leave a child or children who, pursuant to terms and conditions adopted by the Retirement Board, is or are determined by the Board to have been disabled prior to age eighteen and whose disability continues past age eighteen, the child or children while so disabled shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner would have received. Should the member leave no surviving spouse or surviving domestic partner so entitled, no children under the age of eighteen years, and no disabled children whose disability continued past the age of eighteen years, but leave a parent or parents dependent upon the member for support, the parents so dependent shall collectively receive a monthly allowance equal to that which such surviving spouse or surviving domestic partner otherwise would have received during such dependency. If payment of the allowance payable under this section because of death before retirement is stopped because of death of the surviving spouse or surviving domestic partner or attainment of the age of eighteen years or establishment of a domestic partnership by, or the death or marriage of, a child, or the death or marriage or establishment of a domestic partnership or cessation of disability in a child whose disability continued past the age of eighteen years, or the death or cessation of dependency of a parent, before the sum of the monthly payments made shall equal the sum of the amounts, which except for this section, would have been payable under Section 3-330(a), (1) and (2), then an amount equal to the difference between said sums shall be paid in one amount, to the surviving children of the deceased member, share and share alike.

(d) The allowance provided in subsection (b) of this section shall be in lieu of the death benefit otherwise payable as provided in Section 3-330(a), (1) and (2), but, notwithstanding any other provision of this article, a person qualifying for the allowance or such person's guardian may elect, before the first payment on account of it, to receive such death benefit in lieu of the allowance.

(e) With respect to members whose death occurs on or before the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section to a surviving spouse, in the case of death before retirement, only if the spouse was married to the member prior to the date of the sustaining of the injury or the onset of the illness which resulted in death, or, in the case of death after retirement, only if the spouse was married to the member at least

one year prior to retirement. With respect to members whose death occurs after the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section (1) to a surviving spouse, in the case of death before retirement, only if the spouse was married to the member prior to the date of death, or, in the case of death after retirement, only if the spouse was married to the member as of the date of retirement or (2) or to a surviving domestic partner, in the case of death before retirement, only if the domestic partner had established a domestic partnership with the member prior to the date of death, or, in the case of death after retirement, only if the domestic partner had established a domestic partnership with the member as of the date of retirement.

(f) If the member was receiving a service-connected disability retirement in accordance with Section 3-336(a) or Section 3-353(e)(3) at the time of the member's death, the allowance provided either in subsection (a) or subsection (b) of this Section shall constitute a continuation of the member's service-connected disability retirement and shall be non-taxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.
(Added Ord. 5313, 1958, based on former Sec. 2-732; Am. Ord. 5667, 1959; Am. Ord. 6894, 1966; Am. Ord. 76-45, § 2, eff. 6-27-76; Am. Ord. 84-47, § 2, eff. 5-11-84; Am. Ord. 2000-4, § 3, eff. 2-10-00; Am. Ord. 2001-16, § 2, eff. 3-26-01; Am. Ord. 2001-72, § 5, eff. 11-10-01; Am. Ord. 2006-15, § 5, eff. 3-10-06; Am. Ord. 2021-012, § 3, eff. 5-17-21).

SEC. 3-339. DETERMINATION OF SURVIVORS' BENEFITS.

(a) If a member whose death after retirement or while qualified for service retirement qualifies his surviving wife, children or parents for the continuation of an allowance under Section 3-338 was employed in the Fire or Police Department prior to September 22, 1928, the allowance continued to such wife, children or parents shall be two hundred dollars ($200) per month plus one-half of the difference between two hundred dollars ($200) and the allowance which the member was receiving at the time of death, or for which he was qualified, as the case may be, instead of two-thirds of such allowance, as provided in said section. Any allowance being received on December 1, 1957, by a surviving wife under Section 3-338, shall be changed, effective on such date, to an amount determined under this section, provided her husband was so employed.

(b) The provisions of Section 3-339(a) shall not apply to any such member who was so employed prior to September 22, 1928, or to a surviving wife of such a member, until and unless such member, if living on December 1, 1957, or otherwise his qualifying surviving wife then living, elects on a form provided by said system, not later than ninety days after the date upon which notice of the right to so elect is mailed by said system to such person's or surviving wife's latest address on file in the office of said system, to be subject to such provisions, and to waive any rights he or she has or may have under Ordinances numbered 1021 and 1415.
(Added Ord. 5313, 1958; based on former Sec. 2-732.1).

SEC. 3-340. LIMITATION.

In the event the surviving spouse or surviving domestic partner of a deceased member becomes eligible for one or more allowances as the surviving spouse or surviving domestic

partner of one or more other members, the surviving spouse or surviving domestic partner shall receive the greater of any survivorship allowances for which he or she is eligible and shall not receive any other survivorship allowance, with this exclusion not applicable to any amounts payable for life to the surviving spouse or surviving domestic partner pursuant to Option 2B or Option 3B of sections 3-341 and 3-417.
(Added Ord. 76-45, § 3, eff. 6-27-76; Am. Ord. 2006-15, § 6, eff. 3-10-06; Am. Ord. 2012-23, § 1, eff. 12-1-13).

SEC. 3-341. OPTIONAL MODIFICATION OF ALLOWANCES AT RETIREMENT.

(a) For purposes of determining actuarial equivalence under this Section, the following terms will be used:

(1) "Basic retirement allowance" shall mean the sum of a member's service annuity and service pension as determined under Section 3-333, payable as a single life annuity, or the sum of the member's disability annuity and disability pension as determined under Section 3-336, payable as a single life annuity.

(2) "Basic retirement allowance plus continuance" shall mean a member's basic retirement allowance plus any two-thirds continuation payments that would be payable under Section 3-338 as determined at the effective date of the member's retirement.

(3) "Net accumulated contributions" shall mean accumulated contributions as defined in Section 3-301(a)(1) minus any refund paid to a member under Section 3-319 representing a refund of accumulated contributions resulting from the dependent portion of the normal rate.

(4) "Adjusted accumulated contributions" shall be calculated as follows:

(i) The amount of the member's accumulated contributions at the effective date of retirement will be converted to an actuarially equivalent monthly annuity payable for the life of the member with a two-thirds continuance of that monthly annuity for the life of the member's beneficiary.

(ii) The difference between the member's monthly annuity and the beneficiary's monthly continuance shall be determined.

(iii) The amount determined in subsection (ii) will be converted to an actuarially equivalent lump sum present value, which amount is defined to be the member' "adjusted accumulated contributions."

(5) "Monthly uncontinued annuity payments" shall mean the difference calculated in subsection 4(ii).

(6) All actuarial calculations shall be done using the actuarial factors in effect on a member's effective date of retirement, and shall not take into account any future cost of living increases. Actuarial calculations shall also not take into account the possibility that the marriage of a member could be dissolved.

(b) If at the effective date of retirement the member has no spouse, children or dependent parents who would qualify for the two-third's continuation under Section 3-338, then, instead of receiving a retirement allowance only over the member's lifetime, the member may elect any of the following options:

(1) Option 1A. The member may elect a lower service or disability annuity for the member's life, which also provides that if the member dies before receiving in such lower service or disability annuity payments the amount of the member's net accumulated contributions, then the balance of such net accumulated contributions shall be paid upon the member's death in a lump sum to a beneficiary designated by the member, as provided

in subsection (d). This optional form shall be the actuarial equivalent of the member's service or disability annuity for the member's lifetime at the effective date of retirement. Under this option, no elections may be made with respect to the pension portion of the member's service or disability retirement allowance.

(2) Option 2A, 100% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime and that after the member's death the same lower benefit will be continued for life to a beneficiary designated by the member as provided in subsection (d). This option shall be actuarially equivalent to the member's basic retirement allowance at the effective date of retirement.

(3) Option 3A, 50% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime and that after the member's death one-half of the lower benefit will be continued for life to a beneficiary designated by the member as provided in subsection (d). This option will be actuarially equivalent to the member's basic retirement allowance at the effective date of retirement.

(c) If at the effective date of retirement the member has a spouse, children or dependent parents who would qualify for a two-third's continuance under Section 3-338, then, instead of receiving a retirement allowance only over the member's lifetime, with a continuance after the member's death to certain beneficiaries, the member may elect any of the following options:

(1) Option 1B. The member may elect a lower service or disability annuity for the member's life, which also provides that if the member dies before receiving in monthly uncontinued annuity payments (as defined in Section 3-341(a)(5)) the amount of the member's adjusted accumulated contributions (as defined in Section 3-341(a)(4)), then the balance of such adjusted accumulated contributions shall be paid upon the member's death in a lump sum to a beneficiary designated by the member as provided in subsection (d). Under this option, no elections may be made with respect to the pension portion of the member's service or disability allowance.

(2) Option 2B, 100% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime with an optional continuance payable for a beneficiary's lifetime after the member's death in such an amount that the sum of the optional continuance plus the two-thirds continuance under Section 3-338 will be equal to the lower retirement allowance payable for the member's lifetime. This option shall be actuarially equivalent to the member's basic retirement allowance plus continuance as defined in subsection (a)(2) above at the effective date of retirement.

(3) Option 3B, 50% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime with an optional continuance payable for life to a beneficiary designated by the member as provided in subsection (d) in such amount that the optional continuance shall equal one-half of the difference between the lower retirement allowance payable for the member's lifetime and the two-thirds continuance under Section 3-338. This option shall be actuarially equivalent to the member's basic retirement allowance plus continuance as defined in subsection (a)(2) above at the effective date of retirement.

(d) The beneficiaries under any of the options shall be determined as follows:

(1) Under all options, either the lump sum or optional continuances, if any, shall be payable only to such beneficiary as the member shall nominate by written designation duly executed and filed with the Retirement Board. Lifetime benefits are payable to beneficiaries only if they survive the member, and in the case of spouses, only if they were married to the member on the date of the member's death. For purposes of this Section, a member's beneficiary shall be limited to the following classes of individuals:

(i) spouse;

(ii) domestic partner;

(iii) children;

(iv) grandchildren;

(v) parents;

(vi) any person who depends on the member wholly or in part for education or support; or

(vii) a trust, provided that (I) the beneficiaries of the trust comes within categories (i)—(vi) and are identifiable, (II) the trust is valid under state law, (III) the trust is irrevocable no later than upon the death of the member, and (IV) a copy of the trust agreement is provided to the retirement office.

(2) With respect to Options 1A and 1B,

(i) The individual or entity designated as beneficiary of the lump sum amount may be changed by the member at any time, but only if the change is received by the Retirement Board prior to the member's death;

(ii) In addition to the classes of individuals or entities listed in section 3-341(d)(1), a member may select as a beneficiary under Options 1A and 1B any of the following: a corporation, unincorporated association, or governmental unit; and

(iii) If the member has not designated a beneficiary, or if an individual is designated and is not living at the time of payment or if an entity is designated and is not in existence at the time of payment (including through merger with another entity), the unpaid balance of accumulated contributions shall be payable in a lump sum to the member's estate.

(3) With respect to Options 2A, 2B, 3A, and 3B, a member's lifetime beneficiary must be designated not later than the effective date of retirement and cannot be changed thereafter, unless the designation of a new spouse as beneficiary is permitted under Section 3-342 upon the member's marriage after retirement.

(4) With respect to all Options in which the member names his or her spouse as contingent lifetime beneficiary to receive benefits after the member's death, upon the death of the spouse or dissolution of marriage of the member and spouse before the member's

death, the designation of the former spouse as contingent lifetime beneficiary is automatically revoked and such former spouse shall receive no survivor benefits after the member's death.

(e) Any election under this Section shall be made prior to the making of the first payment on account of any retirement allowance. However, if at the effective date of retirement (1) a member has a spouse who is designated beneficiary under any lifetime option, and (2) the member dies within 30 days after the member's effective date of retirement, then the member's surviving spouse shall have the option to either elect benefits under this Section or elect the benefits provided to a surviving spouse for a member who dies before retirement. (Added Ord. 2004-97, §§ 1, 2, eff. 11-15-04; Am. Ord. 2006-15, § 7, eff. 3-10-06; Am. Ord. 2006-138, § 1, eff. 10-27-06).

SEC. 3-342. OPTIONAL MODIFICATION OF BENEFICIARY AFTER RETIREMENT.

(a) Members who become married or establish a domestic partnership after retirement may elect an optional modification provided herein by filing a written election with the Retirement Board within the time limits specified in this Section. If an optional modification is elected by the retired member under this Section, all prior elections are revoked, and no previously designated beneficiary shall have any rights to benefits under the System other than as provided in this Section. In addition, no continuation benefits will be payable under Section 3-338.

(b) A retired member is eligible to make this election if he or she is described within any of the following subsections:

(1) A retired member who was not married or not a member of a domestic partnership at the time of his or her retirement may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary in accordance with the procedures of this Section.

(2) A retired member who was married or a member of a domestic partnership at the time of his or her retirement and whose spouse or domestic partner predeceased the retired member may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary in accordance with the procedures of this Section.

(3) A retired member who was married or a member of a domestic partnership at the time of his or her retirement and whose marriage ended in dissolution or whose domestic partnership was terminated may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) with respect to that portion specifically allocated to the retired member in the dissolution or termination proceeding, if

the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary of the portion of the retired member's allowance specifically allocated to the retired member in the dissolution or termination proceeding in accordance with the procedures of this Section.

(4) A retired member who makes an election under subsections (1), (2) or (3) and whose new marriage is subsequently dissolved or new domestic partnership terminated for any reason, may again make an election under this Section upon the retired member's subsequent marriage or establishment of a domestic partnership but only with respect to the allowance then payable to the retired member for the retired member's remaining lifetime.

(c) A retired member eligible to name his or her new spouse or domestic partner as beneficiary shall have the option to name such spouse or domestic partner as the survivor annuitant of a joint and survivor annuity form of payment and shall have his or her retirement allowance adjusted to make the allowance as adjusted together with the survivor annuity actuarially equivalent to the retired member's retirement allowance immediately prior to the election under this section. Depending on the retired member's option election at retirement, the survivor annuity shall be a percentage of the retired member's adjusted retirement allowance as determined from the following table:

Form Elected	*Survivor Percentage*
Unmodified	66⅔
Option 1A or 1B	66⅔
Option 2A or 2B	100
Option 3A or 3B	50

(d) Any election shall provide that after its effective date an adjusted retirement allowance will be paid over the retired member's lifetime and that after the retired member's death the applicable survivor annuity will be continued for life to the retired member's surviving spouse or surviving domestic partner as defined in subsection (f) below, recognizing that such surviving spouse or surviving domestic partner will not be entitled to a continuance under Section 3-338.

(e) Any election under this section shall be actuarially equivalent to the benefits otherwise payable to the retired member and his or her beneficiary after the effective date. In determining such actuarial equivalence, the System's provision for cost of living increases shall be taken into account, but the possibility that the marriage of the retired member could be dissolved or that the domestic partnership of the retired member could be terminated will not be taken into account. After the effective date of the election, the previously named beneficiary shall have no survivor benefits, other than benefits payable to a former spouse pursuant to a judgment of dissolution or to a former domestic partner pursuant to a judgment of termination.

(f) The surviving spouse or surviving domestic partner benefit will be paid only to the person who was married to the retired member or was a member of a domestic partnership with the retired member at the time of the retired member's election, at the effective date of the election, and at the time of the retired member's death. If the spouse or domestic partner named in the election either dies or his or her marriage with the retired member is dissolved or his or her domestic partnership with the retired member is terminated before the death of the retired member, no adjustment will be made to the retired member's benefit and neither the former spouse or former domestic partner or his or her estate shall be entitled to any survivor benefit.

(g) The optional modifications provided in this Section must be made in writing on such form or forms as the Retirement Board may designate, and must include such documentation as the Retirement Board may require. The election under this Section shall be deemed to be made on the date a properly executed form is received by the Retirement Board.

(h) The election for an optional modification after retirement must be filed with the Retirement Board within the time frames specified below:

(1) If the retired member retired before the effective date of Ordinance No. 2004-98, married after retiring but before that effective date, and would otherwise be eligible to elect one of the optional modifications after retirement, then the retired member must make the election no later than six months after the effective date of Ordinance No. 2004-98.

(2) In all other cases, the election must be made within six months after the date of marriage or the date of the establishment of the domestic partnership.

(3) Elections received by the Retirement Board after the six month time period shall be null and void.

(i) Any optional modification elected by the retired member under this section shall be effective as of the first day of the month following the one year anniversary of the retired member's election. The optional payments to the retired member shall begin in the adjusted amount on the effective date. If the spouse dies or the marriage is dissolved or if the domestic partner dies or the domestic partnership is terminated before the effective date specified in this subsection (i), the election is automatically revoked and no adjustment will be made in the retired member's allowance. If the retired member dies before the effective date, no benefits are payable to the spouse or domestic partner under this Section.

(j) In no event will any elections be permitted under this Section if they would violate the minimum distribution rules of Internal Revenue Code section 401(a)(9).
(Added Ord. 2004-97, § 3, eff. 11-15-04; Am. Ord. 2006-15, § 8, eff. 3-10-06).

SEC. 3-343. RETIREMENT ALLOWANCES PAYABLE.

A pension, an annuity or retirement allowance granted under the provisions of this article shall be payable in equal monthly installments or in smaller pro rata amounts when the pension, annuity or retirement allowance begins after the first day of the month or ends before the last day of the month.
(Added Ord. 5313, 1958, based on former Sec. 2-735).

SEC. 3-344. NON-FORFEITURE OF RIGHT TO RETIREMENT ALLOWANCE.

Subject to compliance with this article, nothing shall deprive a member of the right to a retirement allowance as determined under it, after he has qualified as to service and disability for retirement for disability, or as to normal retirement age, which is age fifty (50), and the completion of ten (10) years of service for retirement for service. A member shall be 100% vested in his or her accumulated contributions at all times.
(Added Ord. 5313, 1958, based on former Sec. 2-735; Am. Ord. 2011-1, § 8, eff. 3-7-11).

SEC. 3-345. APPOINTIVE SERVICE AFTER RETIREMENT.

(a) A person who is retired for service or disability or who is receiving or is entitled to receive a retirement allowance under this System shall not be appointed to or serve in any appointive office or position in the city service, including membership on boards and commissions, after the effective date of the person's retirement, unless the person has first been reinstated from retirement pursuant to this article or to article 4 or unless such service, without reinstatement, is authorized by this section.

(b) Such a retired person may serve in the following appointed offices or positions without reinstatement from retirement or loss or interruption of benefits provided under this System:

(1) As a member of any board, commission, or advisory committee of the city except the Civil Service Board or the Board of this System;

(2) As an elections officer or juror;

(3) A retired person may be employed on a temporary basis not to exceed the time period specified in Charter Section 1000(a)(2), but only if a showing is made by the appointing authority that such person possesses special skills or experience necessary to perform the duties of that temporary position.

(c) A retired person who serves in any office or employment of the city without reinstatement, whether by permission of this section or other law, shall acquire thereby no service credit or retirement rights under this article or under article 4, and no contributions to the System shall be deducted from any compensation the person may receive for such service.
(Added Ord. 5313, based on former Sec. 2-736; Am. Ord. 74-10, § 1, Eff. 2-17-74; Am. Ord. 85-167, § 2, 11-29-85; Am. Ord. 88-53, § 1, eff. 5-13-88; Am. Ord. 98-35, § 15, eff. 6-27-98).

SEC. 3-346. INTERNAL REVENUE CODE SECTION 415 ELECTION.

(a) Notwithstanding any other provision of this Code, the retirement rights conferred upon any member of the First Tier and Second Tier of the City of Fresno Fire and Police Retirement System shall be subject to, and such a person shall not have any retirement right or benefit which exceeds, and no retirement right or benefit shall accrue to or vest in such a person which exceeds, the limitations upon public retirement systems contained in Section 415 of the Internal Revenue Code to the extent necessary to preserve the tax-qualified status of the system. Amendments to this Section 3-346 by Ordinance No. 2011-1 shall be effective for retirements on or after January 1, 2008.

(b) Notwithstanding subsection (a), the city, pursuant to Internal Revenue Code Section-415(b)(10)(C), hereby makes the election set forth in that section.

(c) Participation in Other Qualified Plans: Aggregation of Limits. The 415(b) limit with respect to any member who at any time has been a member in any other defined benefit plan as defined in Section 414(j) of the Internal Revenue Code maintained by the member's employer in this plan shall apply as if the total benefits payable under all such defined benefit plans in which the member has been a member were payable from one (1) plan.

(d) Basic 415(b) Limitation.

(1) Before January 1, 1995, a member may not receive an annual benefit that exceeds the limits specified in Section 415(b) of the Internal Revenue Code, subject to the applicable adjustments in that section. On and after January 1, 1995, a member may not receive an annual benefit that exceeds the dollar amount specified in Section 415(b)(1)(A) of the Internal Revenue Code, subject to the applicable adjustments in Section 415(b) of the Internal Revenue Code and subject to any additional limits that may be specified in the retirement system. In no event shall a member's benefit payable under the plan in any limitation year be greater than the limit applicable at the annuity starting date, as increased in subsequent years pursuant to Section 415(d) of the Internal Revenue Code and the regulations thereunder.

(2) For purposes of Section 415(b) of the Internal Revenue Code, the "annual benefit" means a benefit payable annually in the form of a straight life annuity (with no ancillary benefits) without regard to the benefit attributable to after-tax employee contributions (except pursuant to Section 415(n) of the Internal Revenue Code) and to rollover contributions (as defined in Section 415(b)(2)(A) of the Internal Revenue Code). The "benefit attributable" shall be determined in accordance with Treasury Regulations.

(e) Adjustments to Basic 415(b) Limitation for Form of Benefit. If the benefit under the plan is other than the form specified in subsection (e)(2), then the benefit shall be adjusted so that it is the equivalent of the annual benefit, using factors prescribed in Treasury Regulations.

(1) If the form of benefit without regard to the automatic benefit increase feature is not a straight life annuity or a qualified joint and survivor annuity, then the preceding sentence is applied by either reducing the Section 415(b) of the Internal Revenue Code

limit applicable at the annuity starting date under (4) or adjusting the form of benefit to an actuarially equivalent amount (determined using the assumptions specified in Treasury Regulation Section 1.415(b)-1(c)(2)(ii)) that takes into account the additional benefits under the form of benefit under (2) and (3) as follows:

(2) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code does not apply (a monthly benefit), the actuarially equivalent straight life annuity benefit that is the greater of:

(A) The annual amount of the straight life annuity (if any) payable to the member under the plan commencing at the same annuity starting date as the form of benefit to the member, or

(B) The annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the form of benefit payable to the member, computed using a 5% interest assumption (or the applicable statutory interest assumption) and (i) for limitation years prior to January 1, 2009, the applicable mortality tables described in Treasury Regulation Section 1.417(e)-1(d)(2) (Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Rulings 2001-62), and (ii) for limitation years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(3) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code applies (a lump sum benefit), the actuarially equivalent straight life annuity benefit that is the greatest of:

(A) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using the interest rate and mortality table, or tabular factor, specified in the plan for actuarial experience;

(B) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using a 5.5 percent interest assumption (or the applicable statutory interest assumption) and (i) for limitation years prior to January 1, 2009, the applicable mortality table for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for limitation years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(C) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable (computed using the applicable interest rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(3) (the 30-year Treasury rate (using the rate in effect for the month immediately prior to the first day of the plan year with a one-year stabilization period)) and (i) for limitation years prior to January 1, 2009, the applicable mortality rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001 62), and (ii) for limitation years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code), divided by 1.05.

(4) The actuary may adjust the 415(b) limit at the annuity starting date in accordance with the above.

(f) Benefits For Which No Adjustment of 415(b) Limit is Required. For purposes of this Section, the following benefits shall not be taken into account in adjusting these limits:

(1) Any ancillary benefit which is not directly related to retirement income benefits;

(2) That portion of any joint and survivor annuity that constitutes a qualified joint and survivor annuity;

(3) Any other benefit not required under Section 415(b)(2) of the Internal Revenue Code and Treasury Regulations thereunder to be taken into account for purposes of the limitation of Section 415(b)(1) of the Internal Revenue Code.

(g) Other Adjustments in 415(b) Limitation.

(1) In the event the member's retirement benefits become payable before age sixty-two (62), the limit prescribed by this Section shall be reduced in accordance with Treasury Regulations pursuant to the provisions of Section 415(b) of the Internal Revenue Code, so that such limit (as so reduced) equals an annual straight life benefit (when such retirement income benefit begins) which is equivalent to a one hundred sixty thousand dollar ($160,000) (as adjusted) annual benefit beginning at age sixty-two (62).

(2) In the event the member's benefit is based on at least fifteen (15) years of service as a full-time employee of any police or fire department or on fifteen (15) years of military service, the adjustments provided for in (1) above shall not apply.

(3) The reductions provided for in (1) above shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(h) Less than Ten (10) Years of Service Adjustment for 415(b) Limitations. The maximum retirement benefits payable to any member who has completed less than ten (10) years of Service or City Service (as defined in Article 5) in all plans of the City shall be the amount

determined under subsection (d) multiplied by a fraction, the numerator of which is the number of the member's years of service and the denominator of which is ten (10). The reduction provided by this subsection cannot reduce the maximum benefit below 10%. The reduction provided for in this subsection shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(i) Ten Thousand Dollar ($10,000) Limit. Notwithstanding the foregoing, the retirement benefit payable with respect to a member shall be deemed not to exceed the 415 limit if the benefits payable, with respect to such member under this plan and under all other qualified defined benefit pension plans to which the member's employer contributes, do not exceed ten thousand dollars ($10,000) for the applicable limitation year and for any prior limitation year and the employer has not any time maintained a qualified defined contribution plan in which the member participated.

(j) Effect of COLA on 415(b) Testing. Effective on and after January 1, 2008, for purposes of applying the limits under Section 415(b) of the Internal Revenue Code (the "Limit") to a member, the following shall apply:

(1) a member's applicable Limit shall be applied to the member's annual benefit in the member's first limitation year without regard to any cost of living adjustments under Section 3-553;

(2) to the extent that the member's annual benefit equals or exceeds the Limit, the member shall no longer be eligible for cost of living increases until such time as the benefit plus the accumulated increases are less than the Limit; and

(3) thereafter, in any subsequent limitation year, a member's annual benefit, including any cost of living increases under this Article and Article 4, shall be tested under the then applicable benefit Limit including any adjustment to the Section 415(b)(1)(A) of the Internal Revenue Code dollar limit under Section 415(d) of the Internal Revenue Code, and the regulations thereunder.

(k) Section 415(c) limitations on contributions and other additions. After-tax member contributions or other annual additions with respect to a member may not exceed the lesser of $40,000 (as adjusted pursuant to Section 415(d) of the Internal Revenue Code) or 100% of the member's compensation. Annual additions are defined to mean the sum (for any year) of employer contributions to a defined contribution plan, member contributions (determined without regard to picked-up employee contributions that are paid to a defined benefit plan), and forfeitures credited to a member's individual account. "Compensation" for purposes of this Section, subject to annual limits under Section 401(a)(17) of the Internal Revenue Code, shall be as defined under Treasury Regulation Section 1.415(c)-2(d)(4) and shall exclude member contributions that are picked up by the employer under Internal Revenue Code Section 414(h). Amounts described in Treasury Regulation Section 1.415(c)-2(e)(3)(iii) are included in compensation if paid within the limitations prescribed under Treasury Regulation Section 1.415(c)-2(e)(3)(i)(A) and (B).

(l) Redeposit of Withdrawn Contributions. Any redeposit of withdrawn contributions (including interest thereon) to the retirement system with respect to an amount previously refunded upon a forfeiture of service credit under the retirement system or another governmental plan maintained by the retirement system shall not be taken into account for purposes of Section 415 of the Internal Revenue Code, in accordance with applicable Treasury Regulations.

(m) Reduction of Benefits Priority. Reduction of benefits and/or contributions to all plans, where required, shall be accomplished by first reducing the member's benefit under any defined benefit plans in which the member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be determined by the plan and the plan administrator of such other plans, and next, by reducing or allocating excess forfeitures for defined contribution plans in which the member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be established by the plan and the plan administrator for such other plans provided, however, that necessary reductions may be made in a different manner and priority pursuant to the agreement of the plan and the plan administrator of all other plans covering such member.
(Added Ord. 91-58, § 1, eff. 6-29-91; Am. Ord. 2011-1, § 9, eff. 3-7-11).

SEC. 3-347. EFFECT OF MARITAL DISSOLUTION OR LEGAL SEPARATION OR TERMINATION OF DOMESTIC PARTNERSHIP.

(a) **Purpose.**

(1) It is the intent of this section and Sections 3-348 and 3-349 to insure that a member and the alternate payee each receives his or her appropriate community property share of any applicable retirement allowance and benefits (including statutorily provided monthly installments payable after a member's death to his or her surviving spouse, surviving domestic partner, children or parents), but only insofar as the division of any community property interest does not increase the actuarial present value (as defined in Section 3-301(a)(5)) of allowances and other benefits which would otherwise have been provided by the Retirement System.

(2) It is the further intent of this section to allow court orders to provide retirement allowances and benefits (including statutorily provided monthly installments payable after a member's death to surviving spouses, surviving domestic partners, children or parents) to alternate payees to the extent:

(i) Of at least the alternate payee's community property interest in the retirement allowance and other benefits earned during the marriage or the domestic partnership;

(ii) That a final judgment of dissolution of marriage or legal separation or termination of domestic partnership or the order incident thereto dividing the community property interest allocates a portion of that community property interest to the alternate payee; and

(iii) That the Board is joined as a party in the dissolution, separation, or termination proceeding and has been served with a file-endorsed copy of the judgment of final dissolution or legal separation or termination or the order incident thereto dividing the community property interest in the retirement allowance and other benefits earned during the marriage or the domestic partnership.

(3) It is the intent of this section not to provide retirement allowances to any persons other than alternate payees and not to allow alternate payees to be treated as surviving spouses under this Article 3.

(b) **Provisions Permitted in Court Orders.** A final judgment of dissolution, legal separation, or termination or court order incident thereto dividing the community property interest of a member and the member's alternate payee in a retirement allowance or other benefit, may provide for any of the following:

(1) That, prior to the retirement of the member, the community property interest of the member and the alternate payee be split into separate accounts for the member and the alternate payee as hereafter provided in Section 3-348; or

(2) That the community property interest of a member and the alternate payee be paid after the member's retirement as the court may order, provided that:

(i) No retirement allowances are payable to the alternate payee before the member dies or retires;

(ii) No form of payment is required other than a form being permitted under the Retirement System at the time payments start;

(iii) No survivor allowance is payable to an alternate payee under Section 3-338 or any other section of this Article 3, except that an alternate payee may receive a community property share of a survivor benefit payable to someone else as a result of the member's death;

(iv) The actuarial present value of the portion of the member's allowance payable to the member and the alternate payee, plus the actuarial present value of any survivor benefits payable under Sections 3-330 and 3-338, shall not exceed the actuarial present value of the member's allowance and such survivor benefits as would have been payable had the member never been married to or had never established a domestic partnership with the alternate payee; and

(v) No retirement allowances or other benefits are payable to the parents of an alternate payee or to the children of an alternate payee who were stepchildren of the member, except as permitted under the combined account option upon the death of the alternate payee.

(3) That permitted beneficiaries are limited to the following classes of individuals:

(i) spouse;

(ii) domestic partner;

(iii) children;

(iv) grandchildren;

(v) parents; or

(vi) Any person who depends on the member wholly or in part for education or support.

(c) **Provisions Prohibited in Court Orders.** A final judgment of dissolution, legal separation, or termination or other court order dividing the community property interest of a member and the alternate payee in a retirement allowance or other benefit must conform to the following rules:

(1) Retirement allowances or other benefits may not be paid to any individual who is not a permitted beneficiary of the member or of the alternate payee;

(2) Payments may not be made in a form not provided in this Article 3;

(3) An alternate payee is not a surviving spouse of the member under this Article 3 for any purpose;

(4) The surviving spouse or surviving domestic partner of an alternate payee is not to be deemed to be a surviving spouse or surviving domestic partnerunder this Article 3 for any purpose;

(5) An alternate payee or the surviving spouse or surviving domestic partner of an alternate payee is not eligible to receive any form of disability retirement allowance under this Article 3 with respect to any disabling condition the alternate payee or the surviving spouse or surviving domestic partner of an alternate payee might sustain.

(d) **Member's Rights.** Any credited service or any accumulated contributions which are not explicitly awarded by court order to an alternate payee shall be the sole and separate property of the member.

(e) If benefits are payable pursuant to an order that satisfies the requirements of this Section, Section 3-348, and/or Section 3-349 that meets the requirements of a "domestic relations order" as defined in Section 414(p) of the Internal Revenue Code, then the applicable requirements of Section 414(p) of the Internal Revenue Code shall be followed by the retirement system.

(Added Ord. 94-27, § 3, eff. 5-27-94; Am. Ord. 94-36, § 1, eff. 6-24-94; Am. Ord. 2002-11, § 1, eff. 3-19-02; Am. Ord. 2004-100, § 1, eff. 11-15-04; Am. Ord. 2006-15, § 9, eff. 3-10-06; Am. Ord. 2011-1, § 10, eff. 3-7-11).

SEC. 3-348. DISSOLUTION OR LEGAL SEPARATION OR TERMINATION PRIOR TO A MEMBER'S RETIREMENT.

(a) **Separate account option.**

(1) **Purpose.** The purpose of the separate account option is to permit a member and an alternate payee to divide the member's retirement allowance and benefits (including statutorily provided monthly installments payable after a member's death to his or her surviving spouse, surviving domestic partner, children or parents) prior to retirement

into separate and distinct accounts for the member and for the alternate payee, as set forth in a court order which meets the requirements of Section 3-347 and this Section 3-348.

(2) **Court Order.** In the event of a legal separation or dissolution or termination, the Board shall comply with a court order incident thereto which contains the following provisions:

(i) The division of the accumulated member contributions and credited service applicable to periods of service during the marriage into two separate and distinct accounts in the name of the member and the alternate payee;

(ii) The right of the alternate payee to elect an option under Section 3-341 and designate a beneficiary with respect to the alternate payee's separate account;

(iii) The right of the alternate payee to a refund of accumulated contributions in the alternate payee's separate account;

(iv) For purposes of determining the amount of any retirement allowance payable to the alternate payee, the average compensation in Section 3-301(a)(9) shall be determined solely by reference to the rank or ranks held by the member during the period of marriage or domestic partnership;

(v) For purposes of applying the benefit formula of Section 3-333 for determining the amount of any retirement allowance payable to the alternate payee the age of the alternate payee shall be used.

(3) **Refund of Contributions to an Alternate Payee.**

(i) An alternate payee who has been awarded a separate account shall possess the right to a refund of accumulated member contributions in that separate account at any time after the court order has been filed with the Retirement System.

(ii) The alternate payee shall file a written application with the Retirement System on a form provided by the System to obtain the refund.

(iii) Upon filing the application for a refund with the Retirement System, the alternate payee shall from that point on be deemed to have permanently waived any and all rights the alternate payee may have possessed in the Retirement System based on the member's employment, including any and all rights to any benefit or retirement allowance or any survivor benefits.

(iv) If, as of the date of separation of the member and his or her spouse or the equivalent date for a domestic partnership as determined in the court proceedings, the member did not possess sufficient credited service to retire for service, then the alternate payee's only form of payment under this separate account option will be a refund of the accumulated member contributions allocated to his or her separate account.

(v) If an alternate payee has withdrawn his or her portion of the accumulated member contributions, the alternate payee shall not be allowed to redeposit those contributions with the Retirement System.

(4) **Retirement of Alternate Payee.** An alternate payee shall be deemed to be retired only if:

(i) The alternate payee files a written application with the Retirement System on a form provided by the System;

(ii) The member and the alternate payee have both attained the minimum age required for a service retirement; and

(iii) On the date of separation of the member and the alternate payee or the equivalent date for a domestic partnership as determined in the court proceedings, the member possessed sufficient credited service to retire for service. A member who possessed sufficient credited service to retire before the division shall be deemed to continue to do so after the division, and so shall the alternate payee.

(5) **Calculation of the Alternate Payee's Retirement Allowance.**

(i) The alternate payee's retirement allowance shall consist of an annuity based upon the alternate payee's accumulated contributions and a pension based upon the alternate payee's credited service. The alternate payee shall have the same right as the member to select the pay formula upon which the retirement allowance is to be based. In applying the selected pay formula, only the rank or final average compensation earned by the member during the period of marriage or domestic partnership and prior to the date of separation shall be used.

(ii) The alternate payee's retirement allowance shall be eligible for such cost-of-living increases under this Article 3 as are consistent with the pay formula selected by the alternate payee to determine the alternate payee's retirement allowance.

(iii) No survivor or death benefits will be payable upon the death of the alternate payee, and such alternate payee upon remarriage or reestablishment of domestic partnership shall not be entitled to elect any of the optional forms of benefit.

(6) **Death of an Alternate Payee Prior to Retirement of Alternate Payee.** If the alternate payee dies prior to retirement, then the accumulated contributions in the alternate payee's separate account shall be paid to the alternate payee's beneficiary as designated to the Retirement System on a form provided by the System. If a beneficiary has not been designated at the time of death or if the designated beneficiary is not living at the time of death, the accumulated contributions shall be paid to the alternate payee's estate. No other death benefits will be payable as a result of the death of the alternate payee.

(b) **Combined Account Option.** The Retirement System will comply with a court order incident to a legal separation or dissolution or termination which divides the community property interests of a member and the alternate payee, provided that:

(1) The alternate payee's interest is not to be paid before the member retires or dies, and

(2) The court order complies with the provisions set forth in Section 3-347, including the provision that the alternate payee will not be considered to be a surviving spouse or surviving domestic partner under Section 3-338 or any other Section of this Article 3.

(3) The court order may provide that the alternate payee's interest in the member's retirement allowance be paid over the lifetime of the member under the optional form of payment allowed by the System and selected by the member.

(i) With respect to the alternate payee's interest in the member's retirement allowance, the alternate payee may on a form provided by the System designate a permitted beneficiary as set forth in Section 3-347(b)(3). If the alternate payee predeceases the member, the person so designated shall receive until the member's death the benefit previously paid to the alternate payee.

(ii) If a benefit is payable under Section 3-330 or 3-338 upon the member's death, as long as payments are payable under those provisions, one-half of the community property share thereof may be payable to the alternate payee or a permitted beneficiary as set forth in Section 3-347(b)(3) of the alternate payee.

(iii) If the member predeceases the alternate payee and the member has chosen option 2 or 3, the alternate payee or the permitted beneficiary as set forth in Section 3-347(b)(3) of the alternate payee may receive, as long as payments are payable under the selected option, one-half of the community property share of that portion of the allowance which would be continued after the member's death, regardless of dependents.

(4) In lieu of the payment method specified in subsection (3) above, the court order may provide that the alternate payee's interest in the member's retirement allowance be paid under any optional form of payment allowed by the Retirement System over the lifetime of the alternate payee (instead of over the lifetime of the member), provided that,

(i) The sum of the actuarial present values of the member's and alternate payee's allowances and survivor benefits shall not exceed the actuarial present value of the member's allowance and survivor benefits had they been payable to the member, assuming the member had never been married to the the alternate payee or had never established a domestic partnership with the alternate payee; and

(ii) No survivor benefits under Section 3-338 or any other Section of this Article 3 are payable to the surviving spouse of the alternate payee.

(5) In the absence of a qualifying surviving spouse, qualifying domestic partner, unmarried children under the age of eighteen or children under the age of eighteen not members of a domestic partnership, disabled child qualified under section 3-338(c), or dependent parents, the court order may provide for the division of the community property interest in the death benefit under Section 3-330.

(Added Ord. 94-27, § 4, eff. 5-27-94; Am. Ord. 94-36, § 2, eff. 6-24-94; Am. Ord. 95-41, § 8, eff. 6-23-95; Am. Ord. 2002-11, § 2, eff. 3-19-02; Am. Ord. 2004-100, § 2, eff. 11-15-04; Am. Ord. 2006-15, § 10, eff. 3-10-06).

SEC. 3-349. DISSOLUTION OR LEGAL SEPARATION OR TERMINATION AFTER A MEMBER'S RETIREMENT.

(a) **Purpose.** The purpose of this section is to allow a court order to provide for an equitable distribution of retirement allowances and survivor benefits between a retired member and the alternate payee, without requiring the retirement system to pay increased benefits.

(b) **Form of Payment to Remain Unchanged.** If a retired member's marriage to the individual to whom the retired member was married at the time the retired member's retirement allowance commences is dissolved after retirement benefits commence or if they are legally separated or if a retired member's domestic partnership to the individual with whom the retired member had established a domestic partnership at the time the retired member's retirement allowance commences is terminated after retirement benefits commence, then the final judgment of dissolution or legal separation or termination or court order incident thereto may not in any way change the form or forms of payment under Section 3-341 selected by the member at retirement, except that any life annuity payable only for the member's life may be modified as set forth in Section 3-349(c) to provide that a portion thereof be payable for the alternate payee's lifetime.

(c) **Unmodified Allowance or Option 1.** If a member prior to retirement either did not select an option under Section 3-341 or selected Option 1 under that Section, the Retirement System will comply with a court order that divides the total actuarial present value of the allowances payable to the retired member according to the separate and community property interests of the retired member and the alternate payee. The court order may further provide that the divided value allocated to the retired member shall continue to be paid to the retired member in the same form as before the court order, and that the divided value allocated to the alternate payee shall be converted into the same form of payment, but payable for the life of the alternate payee instead of for the life of the retired member. The sum of the actuarial present values of the divided values for the retired member and the alternate payee shall not exceed the actuarial present value of the benefit otherwise payable immediately before the division to the retired member alone, excluding the value of any survivor benefits under Section 3-338 or under any other Section of this Article 3.

(d) **Survivor Benefits.** The court order may provide that any survivor benefits payable as a result of a retired member's death shall be payable to the beneficiary entitled thereto under this Article 3, provided that the alternate payee's one-half community property share therein can be paid directly to such alternate payee. No benefits shall be payable to the alternate payee after all beneficiaries entitled to the retired member's survivor benefits are no longer entitled thereto.

(e) **Option 2 or 3.** If a member at retirement selected either Option 2 or 3 under Section 3-341 for any portion of his or her retirement allowance, which options provide for retirement continuances to a person having an insurable interest in the member's life, the amount and the form of payment of the benefits payable pursuant to these options by the Retirement System cannot be changed, but the Retirement System will comply with a court order requiring that a portion of those payments be paid directly to the alternate payee (or to the beneficiaries

named by the alternate payee if he or she predeceases the retired member) rather than to the retired member or the retired member's beneficiary. In no event, however, shall the alternate payee's life replace the life of another previously named beneficiary under either Option 2 or 3.

(f) **Post-retirement Elections.** If a retired member made an election under Section 3-342 to name a new spouse or domestic partner as beneficiary and that marriage is dissolved or the parties become legally separated or the domestic partnership is terminated, no surviving spouse or surviving domestic partner benefits will be paid to the alternate payee, but the Retirement System will comply with a court order that divides the present value of the allowance payable for the retired member's life between the retired member and the alternate payee. The court order may further provide that the divided value allocated to the retired member shall continue to be paid to the retired member for life, and the divided value allocated to the alternate payee shall be converted into monthly payments for the life of the alternate payee, instead of for the life of the retired member.
(Added Ord. 94-27, § 3, eff. 5-27-94; Am. Ord. 94-36, § 1, eff. 6-24-94; Am. Ord. 2002-11, § 3, eff. 3-19-02; Am. Ord. 2004-97, § 4, eff. 11-15-04; Am. Ord. 2004-100, § 3, eff. 11-15-04; Am. Ord. 2006-15, § 11, eff. 3-10-06).

SEC. 3-350. JUDICIAL REVIEW OF CERTAIN BOARD DECISIONS.

The provisions of Section 1094.6 of the California Code of Civil procedure shall be applicable to decisions of the Board denying an application for a retirement benefit or allowance or entitlement.
(Added Ord. 95-41, § 9, eff. 6-23-95).

SEC. 3-351. DIRECT TRANSFERS OF ELIGIBLE ROLLOVER DISTRIBUTIONS.

(a) If, under the provisions of this article or article 4, a distributee becomes entitled to an eligible rollover distribution, the distributee may elect to have the distribution or any portion thereof paid directly to an eligible retirement plan specified by the distributee.

(b) The election made pursuant to this Section shall be in accordance with the terms and conditions established by the Board.

(c) Upon the exercise of the election by a distributee pursuant to this Section, the distribution from the retirement fund of the amount designated by the distributee shall be made in the form of a direct transfer to the eligible retirement plan so specified.

(d) For purposes of this Section, "distributee" means a member, a surviving spouse, or a former spouse under a domestic relations order which is treated as a qualified domestic relations order to the extent provided in Internal Revenue Code Section 414(p)(11), and such other persons as come within the meaning of the term as used in Section 401(a)(31)(A) of the Internal Revenue Code. Effective for plan years on or after January 1, 2010, a distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by Section 401(a)(9)(E) of the Internal Revenue Code. However, a nonspouse beneficiary may only make

a direct rollover to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity shall be treated as an "inherited" individual retirement account or annuity.

(e) For purposes of this Section, "eligible rollover distribution" means a distribution from the Retirement Fund which constitutes an eligible rollover distribution within the meaning of Section 401(a)(31)(C) of the Internal Revenue Code, i.e., any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include:

(1) Any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made (i) for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary or (ii) for a specified period of ten years or more;

(2) Any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code;

(3) The portion of any distribution that is not includable in gross income; or

(4) Any distribution that is reasonably expected to total less than $200 during the year.

Effective January 1, 2002, a portion of a distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only (i) to an individual retirement account or annuity described in Section 408(a) or (b) of the Internal Revenue Code or to a qualified defined contribution plan described in Section 401(a) of the Internal Revenue Code; (ii) on or after January 1, 2007, to a qualified defined benefit plan described in Section 401(a) of the Internal Revenue Code or to an annuity contract described in Section 403(b) of the Internal Revenue Code, that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or (iii) on or after January 1, 2008, to a Roth IRA described in Section 408A of the Internal Revenue Code.

(f) For purposes of this Section, "eligible retirement plan" means a plan which constitutes an eligible retirement plan within the meaning of Section 401(a)(31)(D) of the Internal Revenue Code, the terms of which permit the acceptance of rollover distributions and is limited to the following:

(1) an individual retirement account described in Section 408(a) of the Internal Revenue Code,

(2) an individual retirement annuity described in Section 408(b) of the Internal Revenue Code,

(3) an annuity plan described in Section 403(a) of the Internal Revenue Code,

(4) a qualified trust described in Section 401(a) of the Internal Revenue Code.

(5) effective January 1, 2002, an annuity contract described in Section 403(b) of the Internal Revenue Code.

(6) effective January 1, 2002, a plan eligible under Section 457(b) of the Internal Revenue Code that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or a political subdivision of a state that agrees to separately account for amounts transferred into that plan from the retirement system, or

(7) effective January 1, 2008, a Roth IRA described in Section 408A of the Internal Revenue Code.

(g) This section applies to distributions made on or after January 1, 1993.

(h) If this Article in Section 3-327 (Refund of Contributions) or Section 3-328 (Deferred Benefits After Separation) provides for a mandatory refund of contributions which constitutes an eligible rollover distribution under this Section and if an individual while a member does not elect to have such refund paid either directly to the individual or to an eligible retirement plan in a direct rollover, the amount to be refunded shall be credited to the City of Fresno Fire and Police Retirement Fund, with the individual as a former member being entitled thereafter to claim the amount so credited but without interest.
(Added Ord. 95-41, § 10, eff. 6-23-95; Am. Ord. 98-35, § 16, eff. 6-27-98; Am. Ord. 2011-1, § 11, eff. 3-7-11).

SEC. 3-352. MINIMUM REQUIRED DISTRIBUTIONS.

The City of Fresno Fire and Police Retirement System shall pay all benefits in accordance with a good faith interpretation of the requirements of Section 401(a)(9) of the Internal Revenue Code and the regulations in effect under that section, as applicable to a governmental plan within the meaning of Section 414(d) of the Internal Revenue Code. The City of Fresno Fire and Police Retirement System shall be subject to the following provisions:

(a) Notwithstanding any other provision of this article or article 4, payment of a member's retirement allowance shall commence no later than the required beginning date which is the later of the following:

(i) The April 1 following the end of the calendar year in which the member attains age seventy and one-half (70 1/2); or

(ii) The April 1 following the end of the calendar year in which the member retires.

(b) The member's entire interest must be distributed over the member's life or the lives of the member and a designated beneficiary, or over a period not extending beyond the life expectancy of the member or of the member and a designated beneficiary.

(c) If a member dies after the required distribution of benefits has begun, the remaining portion of the member's interest must be distributed at least as rapidly as under the method of distribution before the member's death.

(d) If a member dies before required distribution of the member's benefits has begun, the member's entire interest must be distributed within five (5) years of his death, unless it is to be distributed in accordance with the following rules:

(1) If the member's surviving spouse is the sole designated beneficiary, the member's remaining interest in the plan is distributed or begins to be distributed by December 31 of the calendar year immediately following the calendar year in which the member died or by December 31 of the calendar year in which the participant would have attained age 70 1/2, if later, and if the surviving spouse dies before the distribution to the surviving spouse begins, this Section shall be applied as if the surviving spouse were the plan member; or

(2) If the member's surviving spouse is not the sole designated beneficiary, the member's remaining interest is to be distributed over the life of the designated beneficiary or over a period not extending beyond the life expectancy of the designated beneficiary; and such distribution begins no later than December 31 of the calendar year immediately following the calendar year of the member's death.

(e) The death and disability benefits provided by the retirement system are limited by the incidental benefit rule set forth in Section 401(a)(9)(G) of the Internal Revenue Code and Treasury Regulation Section 1.401-1(b)(1)(i) or any successor regulation thereto. As a result, the total death or disability benefits payable may not exceed 25% of the cost for all of the members' benefits received from the retirement system.

(f) Notwithstanding any other provision of this article or article 4, if a member has elected an option under section 3-341 or section 3-417 and his or her surviving spouse is not the designated beneficiary, the periodic amounts payable to the member and any other designated beneficiary shall be adjusted only to the extent necessary to ensure that the minimum distribution incidental benefit requirement of Internal Revenue Code section 401(a)(9) is satisfied.

(Added Ord. 97-21, § 1, eff. 6-21-97; Am. Ord. 98-35, § 17, eff. 6-27-98; Am. Ord. 2011-1, § 12, eff. 3-7-11).

SEC. 3-353. DEFERRED RETIREMENT OPTION PROGRAM ("DROP").

(a) **Purpose of DROP.**

(1) It is the intent of this section to create a voluntary deferred retirement option program ("DROP") for members.

(2) DROP is designed to be an alternate method of receiving retirement benefits.

(3) DROP is intended to be cost neutral to the System.

(4) DROP is intended to provide additional flexibility to the System by providing members with an additional method of receiving their retirement benefits.

(5) It is the intent of DROP not to jeopardize in any way the tax-qualified status of the System under the Internal Revenue Code. The provisions of this section may at any time be modified, with such modifications being given retroactive effect, if necessary to maintain the System's tax-qualified status.

(b) **Eligibility and Election to Participate in DROP.**

(1) Any member who has attained age 50 and who possesses sufficient credited service to be eligible for a service retirement shall be eligible to participate in DROP.

(2) The election to participate in DROP shall be voluntary and irrevocable. The election shall:

(i) Be made on a form provided by the System;

(ii) Designate a period of participation not to exceed one hundred and twenty (120) months;

(iii) Affirm that the member, on the date the member commences participation in DROP, shall cease accruing service credits;

(iv) Affirm that the member agrees to terminate City employment no later than completion of the designated DROP participation period;

(v) Constitute an application for service retirement no later than the end of the designated DROP participation period; and

(vi) Include the member's irrevocable election among the options in Section 3-341 (Optional Modification of Allowances).

(3) A member making the election shall execute such waivers with respect to state and federal employment discrimination and related laws, such releases, and such covenants as are required by the City or the System.

(4) By electing to participate in DROP:

(i) A member becomes subject to all of the provisions of this section;

(ii) For a member whose retirement allowance is determined under Section 3-301(a) (Definitions), average compensation shall be determined solely by reference to the rank or ranks held by the member prior to the date the member commences participation in DROP;

1. If a member is entitled to convert a sick or holiday or other leave balance into a lump sum cash payment upon retirement, the dollar value of the member's leave balance as of the effective date of DROP participation shall be divided by the member's years of service, and the resulting quotient shall be included in the compensation of each rank held by the member for purposes of determining average compensation under Section 3-301(a) (Definitions);

2. The employee contributions due with respect to the leave balance shall be charged against the member's DROP account;

(iii) For a member whose retirement allowance is determined under Section 3-302 (Alternate Definition of Average Compensation), average compensation shall be determined solely by the average monthly compensation earnable by a member during the three years of employment occurring immediately prior to the date the member commences participation in DROP;

1. If a member is entitled to convert a sick or holiday or other leave balance into a lump sum cash payment upon retirement, the dollar value of the member's leave balance as of the effective date of DROP participation shall be divided by thirty-six, and the resulting quotient shall be added to the average monthly compensation earnable by a member during the three years of employment immediately prior to commencing participation in DROP used for purposes of determining average compensation under Section 3-302 (Alternate Definition of Average Compensation);

2. The employee contributions due with respect to the leave balance shall be charged against the member's DROP account;

(iv) Any changes in leave balances occurring after the member commences participation in DROP shall not affect in any manner the amounts credited to the member's DROP account or the member's retirement allowance, whether for service or disability, payable to the member; and

(v) A member shall have DROP benefits credited to a DROP account pursuant to subsection (c) of this section.

(c) **DROP Accounts and DROP Benefits.**

(1) A DROP account is a nominal, bookkeeping account established within the System for each DROP participant. No System assets shall be separately segregated for any DROP account; a DROP participant shall not have a claim on any specific assets of the System.

(2) Amounts credited to a member's DROP account shall be vested, except to the extent deemed necessary by the Board in its sole discretion to maintain the System's tax-qualified status under the Internal Revenue Code.

(3) A member's DROP account shall be credited monthly with an amount which represents the service retirement allowance which the member would have received if the member had retired on the date the member commenced DROP participation.

(4) The monthly amount credited to a member's DROP account shall reflect any cost-of-living adjustments otherwise applicable to retired members.

(5) A member's DROP account shall be credited monthly with interest pursuant to subsection (d) of this section.

(d) **Interest Crediting to DROP Accounts.**

(1) Each DROP account shall be credited monthly with interest at the nominal monthly interest rate equivalent to the annual effective DROP interest rate adopted by the

Board. The nominal monthly interest rate shall apply to the balance in each DROP account as of the beginning of each month and shall be applied before the monthly amount described in Section 3-353(c)(3) for that month has been credited to the account.

(2) The Board shall set an annual effective DROP interest rate, which shall apply to each DROP account during the retirement system's fiscal year in which the Board set the rate.

(3) In setting the annual effective DROP interest rate, the Board shall review and consider the most current actuarial report from the Board's actuary evaluating the cost neutrality of DROP.

(4) The Board shall review the net rate of return earned by the System's entire investment portfolio for each of the five prior fiscal years, including realized and unrealized gains and losses and as reduced by all investment expenses. These net rates of return shall be certified by the System's Retirement Administrator. The sum of the five net rates of return shall be divided by five to provide an average net rate of return that will be credited to the DROP accounts during the fiscal year.

(5) The Board shall set the annual effective drop interest rate at a level it deems in its sole discretion necessary to maintain the cost neutrality of the DROP program. The Board shall not set the annual effective DROP interest rate lower than 3 percent below the average net rate of return as determined in Section 3-353(d)(4) nor higher than that average net rate of return.

(6) If the average net rate of return determined in Section 3-353(d)(4) is negative, the Board shall set a negative annual effective DROP interest rate, i.e., each DROP account balance shall be reduced accordingly.

(e) **Additional DROP Provisions.**

(1) The effective date of DROP participation for a member shall be the first of the month following the date the Board approves the member's fully completed DROP application.

(2) For a member whose effective date in DROP is prior to the effective date of Ordinance No. 2011-1 and notwithstanding Section 3-319 (Normal Contributions of Members), the member shall cease making contributions to the System. For a member whose effective date of participation in DROP is on or after the effective date of Ordinance No 2011-the member shall continue to make contributions which shall be deposited into the member's DROP account.

(3) If a member becomes disabled while participating in DROP, the member shall be eligible to apply for disability retirement and shall be subject to the same disability eligibility requirements under Section 3-335 as if the member were not in DROP. Notwithstanding Section 3-336 (Allowance at Disability Retirement), if the Board grants the application, whether for a service-connected or non-service-connected disability, the amount of the disability retirement allowance shall be the same as the

amount then being credited monthly to the member's DROP account. However, if the Board determines that the disability is service-connected, the amount of the aggregate disability retirement allowance which equals (or is less than) fifty-five percent of the member's average compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(4) If a member dies due to non service-connected causes while participating in DROP, the member shall be deemed to have died after retirement.

(5) If a member dies on or after June 1, 2008 while participating in DROP and the Board determines that the causes are service-connected, the member shall be deemed to have suffered a service-connected death, with the survivorship benefit to be comprised solely of two-thirds of the monthly amount currently being credited into the member's DROP account, adjusted for any optional modification elected by the member, and the balance in the DROP account paid pursuant to Sections 3-353(f) and 3-353(g)(2). If any benefits paid under this section are paid as a survivor annuity to the surviving spouse (or former spouse) or child(ren) of a member who qualifies as a public safety officer within the meaning of Section 101(h) of the Internal Revenue Code, and such member is killed in the line of duty, such monthly death allowance shall be nontaxable to the extent allowed by Section 101(h) of the Internal Revenue Code. However, if the member or the member's death does not qualify under Section 101(h) of the Internal Revenue Code, then, if the Board determines that the member's death was service-connected, the amount of the monthly death allowance which equals (or is less than) fifty percent (50%) of the member's average compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(6) If a member marries while participating in DROP, the marriage shall be deemed to have occurred prior to the member's retirement only for purposes of satisfying any applicable benefit eligibility requirement.

(f) **Designation of DROP Beneficiary.**

(1) A member electing to participate in DROP shall designate a beneficiary of the member's DROP account.

(2) If a member dies while participating in DROP,

(i) A designated DROP account beneficiary who is either a surviving spouse or surviving domestic partner of the member or a child under the age of 18 of the member or a dependent parent of the member shall be entitled to select a form of distribution under Section 3-353(g)(2); or

(ii) A designated DROP beneficiary who is not listed in Section 3-353(f)(2)(i) shall receive a DROP account distribution in the form of a lump sum; or

(iii) If the designated DROP beneficiary is not then living, the balance in the DROP account in the form of a lump sum shall be distributed to the estate of the DROP participant.

(3) No DROP beneficiary designation shall modify a member's community property obligations under California law.

(g) **Distribution of DROP Account.**

(1) Upon termination of DROP participation and upon retirement from the City, a member shall:

(i) Receive the amounts credited to the member's DROP account, including interest; and

(ii) Begin receiving a monthly retirement allowance in the amount being credited to the member's DROP account.

(2) A member upon the completion of the designated DROP participation period shall select one of the following as the form of distribution of the member's DROP account:

(i) A lump sum; or

(ii) An amount payable monthly in equal monthly installments in accord with applicable provisions of the Internal Revenue Code;

1. The member shall be entitled to select an installment pay-out period not to exceed the lesser of ten years or the joint life expectancies of the member and the member's spouse;

2. The balance in the member's DROP account during the installment pay-out period shall be credited with simple interest monthly at the actuarially assumed interest rate;

3. No cost-of-living adjustment shall be made to the monthly amount;

4. Payments of the monthly amount shall terminate when the balance in the DROP account is reduced to zero;

5. If the retired member dies prior to receipt of the member's entire DROP account, then:

(a) A designated DROP beneficiary who is listed in Section 3-353(f)(2)(i) shall be entitled to select a form of distribution under Section 3-353(g)(2); or

(b) A designated DROP beneficiary who is not listed in Section 3-353(f)(2)(i) shall receive a DROP account distribution in the form of a lump sum; or

(c) If the designated DROP beneficiary is not then living, the balance in the DROP account in the form of a lump sum shall be distributed to the estate of the DROP participant.

6. The retired member may at any time request immediate payment of the entire balance remaining in the member's DROP account; or

(iii) Such other form of distribution, as is adopted by the Board and in accord with applicable provisions of the Internal Revenue Code.

(3) No distribution shall be made from a member's DROP account until the member terminates DROP participation.

(4) If a member dies while participating in DROP, the member's DROP account shall be paid pursuant to Sections 3-353(f) and 3-353(g)(2).

(h) **Termination of DROP Participation.** A member's participation in DROP shall automatically terminate upon the earliest occurrence of any of the following events:

(1) Completion of the member's designated DROP participation period; or

(2) Death of the member; or

(3) Approval by the Board of the member's application for a disability retirement; or

(4) Voluntary termination of a member's employment; or

(5) Involuntary termination of a member's employment, whether or not for cause, including layoffs or reductions in force and including the conclusion of any administrative or judicial appeals process.

(i) **General DROP Provisions.**

(1) The right is reserved at any time and from time to time, and retroactively if deemed necessary or appropriate, to amend in whole or in part any or all of the provisions relating to DROP. But no amendment shall be enacted which has the effect of decreasing the amount credited to a member's DROP account.

(2) The Board shall enact such rules and procedures as are necessary or appropriate to administer DROP.

(3) The Board shall issue annually to each DROP participant a statement of that member's DROP account balance.

(4) The refund of the dependent portion of a member's normal contribution rate under Section 3-319 (Normal Contributions of Members) shall not be made until the member terminates DROP participation and retires.

(j) **Compliance with Applicable Provisions of the Internal Revenue Code and other Federal Laws.**

(1) It is intended that DROP shall not jeopardize the tax-qualified status of the System under the Internal Revenue Code. Full rights are reserved to modify this section to the extent necessary or appropriate to insure that DROP complies with applicable federal laws, regulations, and administrative rulings.

(2) Notwithstanding any other provision in this section, the DROP program shall be subject to the sections of the Internal Revenue Code applicable to governmental plans, as amended, and the regulations and rulings under those sections.

(k) **Employment Status During DROP Participation.** The employment status of a member electing to participate in DROP shall not be affected by that election.
(Added Ord. 97-65, § 1, eff. 12-18-97; Am. Ord. 2000-72, § 1, eff. 12-11-00; Am. Ord. 2001-72, § 6, eff. 11-10-01; Am. Ord. 2006-15, § 12, eff. 3-10-06; Am. Ord. 2011-1, § 13, eff. 3-7-11; Am. Ord. 2012-4, § 1, eff. 3-15-12; Am. Ord. 2021-012, § 4, eff. 5-17-21).

SEC. 3-354. POST-RETIREMENT SUPPLEMENTAL BENEFIT.

(a) **Purpose of the Post-Retirement Supplemental Benefit.**

(1) It is the intent of this section to create a post-retirement supplemental benefit applicable to this article and to article 4 to provide assistance to retirees to pay for various post-retirement expenses.

(2) It is the intent of this section that the post-retirement supplemental benefit is to be distributed if and only if distributable actuarial surplus, as defined in this section, is available to provide such benefit.

(3) It is the intent of this section that the post-retirement supplemental benefit not jeopardize in any manner the tax-qualified status of the System under the Internal Revenue Code. The provisions of this section may at any time be modified, with such modifications being given retroactive effect, if necessary, to maintain the System's tax-qualified status.

(4) It is generally the intent of this section to distribute only a single post-retirement supplemental benefit to any given individual, except as provided in subsection (g)(3) of this section.

(5) It is generally the intent of this section that, if an individual is eligible to receive a post-retirement supplemental benefit from this System and from the Employees Retirement System, the individual is to receive only the higher of the two benefits, except as provided in subsection (g)(3) of this section.

(b) **Definitions.** The following words as used in this section, unless a different meaning is plainly required by the context, shall have the following meanings:

(1) "Actuarial accrued liabilities" shall mean that portion, as determined under the actuarial funding method adopted by the Retirement Board, of the actuarial present value of retirement benefits and System expenses which is not provided for by future normal costs.

(2) "Actuarial value of assets" shall mean the value of cash, investments and other property of the System, as used by the System's actuary for the purpose of an actuarial valuation.

(3) "Actuarial surplus" shall mean the amount by which the actuarial value of the System's assets exceeds one hundred and ten percent (110%) of the System's actuarial accrued liabilities.

(4) "Actuarial deficit" shall mean the amount by which one hundred and ten percent (110%) of the value of the System's actuarial accrued liabilities exceeds the actuarial value of the System's assets.

(5) "Distributable actuarial surplus" shall mean the actuarial surplus as amortized over such period as is determined by the Board.

(c) **Eligibility for a Post-Retirement Supplemental Benefit.**

(1) A member or former member, other than a member or former member retired or retiring under section 3-335 (Disability Retirement) or 3-412 (Disability Retirement), shall be eligible for a post-retirement supplemental benefit only if the member or former member has completed at least five full years of service with the City of Fresno.

(2) The following are eligible post-retirement supplemental benefit recipients:

(i) Former members receiving a service retirement allowance under section 3-328 (Deferred Benefits After Separation) or section 3-406 (Deferred Benefits After Separation) or section 3-333 (Allowance At Service Retirement) or section 3-411 (Allowance At Service Retirement) or a disability retirement allowance under section 3-336 (Allowance At Disability Retirement) or section 3-413 (Allowance At Disability Retirement); and

(ii) Members, but only while participating in the Deferred Retirement Option Program under section 3-353 or section 3-424, and with the post-retirement supplemental benefit only being credited to the member's DROP account; and

(iii) Beneficiaries receiving a monthly allowance under section 3-330 (Death Benefits) or 3-408 (Death Benefits) or under section 3-338 (Continuation Of Retirement Allowances After Death) or section 3-415 (Continuation of Retirement Allowances) or under section 3-341 (Optional Modification Of Allowance) or section 3-417 (Optional Modification Of Allowance).

1. In situations where a monthly allowance is divided among more than one beneficiary, such as where there is more than one child under age eighteen receiving an allowance under section 3-330 or 3-408 or where the allowance under section 3-338 or 3-415 is distributed to a qualifying surviving spouse or qualifying domestic partner but where the allowance under section 3-341 (Option 2) or section 3-417 (Option 2) is distributed to a different individual, only a single post-retirement supplemental benefit shall be paid, with that benefit being divided among the applicable beneficiaries based upon the ratio that each allowance being paid bears to the total of all allowances being paid with respect to the former member.

(3) Members, retired members and beneficiaries become eligible for the post-retirement supplemental benefit at the earlier of the date they first commence receiving monthly retirement allowance or upon commencing participation in the Deferred Retirement Option Program, but in no event prior to January 1, 1999.

(4) Ineligible to receive a Post-Retirement Supplemental Benefit are

(i) Former members who withdrew their contributions from the System; and

(ii) Notwithstanding any other provision in this section to the contrary, members and former members, other than members or former members retired or retiring under

section 3-335 (Disability Retirement) or 3-412 (Disability Retirement), who have completed less than five full years of service with the City of Fresno, with service with any other employer specifically excluded.

(d) **Determination of Amortization Period of Actuarial Surplus.**

(1) The Retirement Board shall consult with the System's actuary and thereafter adopt a period over which the actuarial surplus is to be amortized.

(2) The Retirement Board after consultation with the System's actuary may modify the amortization period.

(e) **Determination of Distributable Actuarial Surplus.**

(1) The Retirement Board shall at the meeting at which it receives and approves the periodic actuarial valuation report review and declare the amount of actuarial surplus as determined by the System's actuary.

(2) The Retirement Board shall then declare by resolution the amount of distributable actuarial surplus, available for distribution.

(f) **Allocation and Distribution of Distributable Actuarial Surplus.**

(1) The Retirement Board shall divide the distributable actuarial surplus into two components, one component composed of two-thirds of the distributable actuarial surplus and a second component composed of one-third of the distributable actuarial surplus.

(2) The two-thirds component of the distributable actuarial surplus shall be used to reduce or eliminate city contributions.

(i) In the event a portion of the two-thirds component remains after reducing or eliminating city contributions, the remainder shall be allocated to a City Surplus Reserve Account.

1. The City Surplus Reserve Account shall accrue interest at the average gross rate of return earned by the System's entire investment portfolio for each of the three prior fiscal years, including realized and unrealized gains and losses and as reduced by all investment related expenses.

2. The City Surplus Reserve Account shall be drawn upon in subsequent years if needed to reduce or eliminate the city's contributions.

(3) The one-third component of surplus shall be distributed among eligible post-retirement supplemental benefit recipients as follows:

(i) The Retirement Administrator shall determine the number of eligible post-retirement supplemental benefit recipients under this article and article 4 as of the date of the most recent actuarial valuation.

(ii) Seventy-five percent (75%) of the distributable actuarial surplus (or such higher percentage as is determined by the Retirement Board) shall be divided by the number in subsection f(3)(i), with this amount then divided by twelve and distributed on a

monthly basis to each eligible post-retirement supplemental benefit recipient commencing in January of the calendar year following the declaration of distributable actuarial surplus.

(iii) Any distributable actuarial surplus that is not distributed pursuant to subsection f(3)(ii) shall be allocated to a Post-Retirement Supplemental Benefit Reserve Account ("PRSB Reserve Account").

1. The PRSB Reserve Account shall accrue interest at the average gross rate of return earned by the System's entire investment portfolio for each of the three prior fiscal years, including realized and unrealized gains and losses and as reduced by all investment related expenses.

2. The PRSB Reserve Account shall be drawn upon in subsequent years to the extent necessary to increase the amount otherwise available to pay a monthly post-retirement supplemental benefit equivalent to a monthly health insurance premium as determined by the Retirement Board.

3. In the event of an actuarial deficit, amounts in the PRSB Reserve Account may be used to pay a post-retirement supplemental benefit in an amount as determined by the Board; in the absence of a positive balance in the PRSB Reserve Account, a post-retirement supplemental benefit shall not be paid.

(g) **General Post-Retirement Supplemental Benefit Provisions.**

(1) The right is reserved at any time and from time to time, and retroactively if deemed by the Board to be necessary or appropriate, to amend in whole or in part any or all of the provisions relating to the post-retirement supplemental benefit.

(2) The Board shall enact such rules and procedures as are necessary or appropriate to administer the post-retirement supplemental benefit.

(3) An individual who is a retired member of this System and also a surviving spouse or surviving domestic partner or beneficiary of a member of this System or of the Employees Retirement System shall be eligible to receive two post-retirement supplemental benefits, one as a retired member and one as a surviving spouse or beneficiary.

(4) Except as provided in subsection (g)(3) of this section,

(i) an individual is entitled to receive only a single post-retirement supplemental benefit from the System, and

(ii) if an individual is eligible to receive a post-retirement supplemental benefit from the System and also from the Employees Retirement System, the individual shall be entitled to receive only the larger of the two benefits.

(h) **Compliance with Applicable Provisions of the Internal Revenue Code and other Federal Laws.**

(1) It is intended that the post-retirement supplemental benefit not jeopardize the tax-qualified status of the System under the Internal Revenue Code. Full rights are

reserved to modify this section to the extent necessary or appropriate to insure that the post-retirement supplemental benefit complies with applicable federal laws, regulations, and administrative rulings.

(2) Notwithstanding any other provision in this section, the post-retirement supplemental benefit shall be subject to the sections of the Internal Revenue Code applicable to governmental plans, as amended, and the regulations and rulings under those sections.

(i) **Effective Date.** The first actuarial valuation to which this section will apply is June 30, 1998. The PRSB benefit shall not be distributed earlier than January 1, 1999 and shall not be attributable to any period prior to January 1, 1999. (Added Ord. 98-35, § 18, eff. 6-27-98; Am. Ord. 2000-2, § 1, eff. 2-10-00; Am. Ord. 2002-6, § 1, eff. 2-18-02; Am. Ord. 2002-10, § 1, eff. 3-19-02; Am. Ord. 2006-15, § 13, eff. 3-10-06).

SEC. 3-355. RIGHTS OF DOMESTIC PARTNERS.

Full rights are reserved, at any time and from time to time and retroactively if deemed necessary or appropriate, to amend in whole or in part any and all provisions of this Article 3 relating to domestic partners. It is specifically intended that, if through the initiative process or otherwise, California law expands or reduces, rescinds or terminates the status and rights of domestic partners, whether current, surviving, or former, or the status and rights of domestic partnerships, then conforming expansions, reductions, rescission, or termination shall be deemed to be incorporated into this article, including retroactively. It is further intended that the domestic partner provisions of this Article not jeopardize the tax-qualified status of the System under the Internal Revenue Code; full rights are reserved to modify or rescind those provisions to insure compliance with applicable federal laws, regulations, and administrative rulings. (Added Ord. 2006-15, § 14, eff. 3-10-06)

SEC. 3-356. QUALIFIED EXCESS GOVERNMENTAL BENEFIT ARRANGEMENT.

(a) **Establishment of Plan and Trust.**

(1) **Establishment of Plan and Trust.** The "City of Fresno Fire and Police Retirement System Excess Benefit Plan and Trust" ("Plan") is hereby established, pursuant to U.S. Internal Revenue Code ("IRC") Section 415.

(2) **Purpose.** The purpose of this Plan is solely to provide the part of a Participant's Retirement Benefit that would otherwise have been payable under the City of Fresno Fire and Police Retirement System ("Retirement System"), except for the limitations of IRC Section 415(b). This Plan is intended to be a "qualified governmental excess benefit arrangement" or "QEBA" within the meaning of IRC Section 415(m)(3) and must be interpreted and construed consistently with that intent. This Plan is deemed a portion of the Retirement System solely to the extent required under, and within the meaning of, IRC Section 415(m)(3).

This Plan is an "exempt governmental deferred compensation plan" described in IRC Section 3121(v)(3). IRC Sections 83, 402(b), 457(a) and 457(f)(1) do not apply to this

Plan. With respect to IRC Section 457(a), the maximum amount that may be deferred under this Plan on behalf of any Participant for the taxable year may exceed both the amount in IRC Section 457(b)(2) (as adjusted for cost of living increases) and the percent of the Participant's includable compensation referred to in that IRC Section. The City will not hold any assets or income under this Plan in trust for the exclusive benefit of Participants or their Beneficiaries.

(b) **Definitions and Constructions.**

(1) **Definitions.** When the initial letter of a word or phrase is capitalized herein, it has the same meaning as defined below:

(i) "Administrator" means the City Manager or any entity or employee designated by the City Manager.

(ii) "Beneficiary" means an individual receiving a pension, an annuity, a retirement allowance, or other benefit provided under the Retirement System.

(iii) "Board" means the Fire and Police Retirement Board acting as trustee of the Retirement System.

(iv) "City" means the City of Fresno.

(v) "Employer" means the City. Provided, however, that "Employer" as defined here is limited to entities which are the State, a political subdivision of the State, or an agency or instrumentality of the State. No employer which is not permitted to participate in a qualified governmental pension plan as defined in IRC Sections 401(a) and 414(d) shall be permitted to participate in the Plan.

(vi) "Excess Benefit" means the benefit determined in accordance with Section 4.01 of this Plan.

(vii) "IRC" means the Internal Revenue Code of 1986, as amended, or corresponding provisions of any subsequent federal income tax law, as applicable to a governmental plan.

(viii) "Member" means any person included in the membership of the Retirement System, pursuant to Sections 3-301 (e) and (m) and Section 3-303 of the City of Fresno Municipal Code.

(ix) "Participant" means a Member, Retiree, or Beneficiary who is entitled to benefits in accordance with Section (c) of this Plan.

(x) "Plan" means the "City of Fresno Fire and Police Retirement System Excess Benefit Plan and Trust" established by this Ordinance pursuant to IRC Section 415.

(xi) "Plan Year" means the calendar year for purposes of the Plan.

(xii) "QEBA" means a Qualified Governmental Excess Benefit Arrangement within the meaning of IRC Section 415(m).

(xiii) "Retiree" means a former Member who is receiving a Retirement Benefit from the City under the Retirement System.

(xiv) "Retirement Benefit" means the amount of retirement income payable to a Retiree of an Employer, or the benefit payable to a Beneficiary, without regard to any limitations on that retirement income or benefit under IRC Section 415(b).

(xv) "Retirement Fund" means the fund of the Retirement System established under Section 3-313 of the City of Fresno Municipal Code.

(xvi) "Retirement System" means the City of Fresno Fire and Police Retirement System, a defined benefit retirement plan administered by the Board.

(xvii) "State" means the State of California.

(xviii) "Trust Fund" means the separate trust fund established pursuant to Section (f) of this Plan, which fund constitutes a valid trust under the law of the State.

(xix) "Trustees" mean the members of the Board.

(2) **Construction.**

(i) Words used in this Plan in the masculine gender include the feminine gender where appropriate, and words used in this Plan in the singular or plural include the plural or singular where appropriate.

(ii) Whenever any actuarial present value or actuarial equivalency is to be determined under the Plan to establish a benefit, it will be based on reasonable actuarial assumptions approved by the Administrator in its sole discretion, and will be determined in a uniform manner for all similarly situated Participants.

(c) **Participation.** All Members, Retirees, and Beneficiaries who were Members in the Retirement System on or before June 28, 1991 are eligible to and shall participate in this Plan if their Retirement Benefits from the Retirement System for a Plan Year would exceed the limitation imposed by IRC Section 415(b). The Administrator determines for each Plan Year which Members, Retirees, and Beneficiaries are eligible to participate in the Plan. Participation in the Plan begins each Plan Year once a Member, Retiree, or Beneficiary has an Excess Benefit in that Plan Year. Participation in the Plan ends for any Plan Year in which the Retirement Benefit of a Member, Retiree, or Beneficiary is not limited by IRC Section 415(b) or when all benefit obligations under the Plan to the Member, Retiree, or Beneficiary have been satisfied.

(d) **Payment of Benefits.**

(1) **Benefit Amount.** A Participant in the Plan will receive a benefit equal to the amount of retirement income that would have been payable to, or with respect to, a Participant by the City that could not be paid because of the application of the limitations on his or her retirement income under IRC Section 415(b). An Excess Benefit under the Plan will be paid only if and to the extent the Participant is receiving Retirement Benefits from the Retirement System.

(2) **Time for Payment; Form of Benefit.** The Administrator will compute and pay the Excess Benefit in the same form, at the same time, and to the same persons as such benefits would have otherwise been paid as a monthly pension under the Retirement System, except for the IRC Section 415 limitations. No election is provided at any time to the Participant, directly or indirectly, to defer compensation under this Plan.

(e) **Contributions and Funding.**

(1) **Funding.** The Plan is, and will remain, unfunded and the rights, if any, of any person to any benefits under the Plan are limited to those specified in the Plan. The Plan constitutes a mere unsecured promise by the Employer to make benefit payments in the future.

(2) **Contributions.**

(i) Based upon information provided by the Board or the Retirement System, the Administrator will determine the amount necessary to pay the Excess Benefit under the Plan for each Plan Year. The required contribution will be the aggregate of the Excess Benefits payable to all Participants for the Plan Year and an amount determined by the Administrator to be a necessary and reasonable expense of administering the Plan. Contributions will not be calculated in a manner designed to pay future Excess Benefits. Under no circumstances will Employer contributions to fund the Excess Benefits be credited to or commingled with contributions paid into and accumulated in the Retirement Fund. Any contributions not used to pay the Excess Benefit for a current Plan Year, together with any income accruing to the Trust Fund, will be used, as determined by the Administrator, to pay the administrative expenses of the Plan for the Plan Year. Any contributions not used to pay the Excess Benefit for the current Plan Year that remain after paying administrative expenses of the Plan for the Plan Year will be used to fund administrative expenses or benefits of Participants in future Plan Years.

(ii) The Administrator will account separately for the amounts necessary to provide the Excess Benefit under the Plan for each Participant. But, this separate accounting will not be deemed to set aside these amounts for the benefit of a Participant. Benefits under this Plan will be paid from the Trust Fund.

(iii) The consultants, independent auditors, attorneys, and actuaries performing services for the Administrator may also perform services for this Plan; but, any fees attributable to services performed with respect to this Plan will be payable solely by the Employer or from the Trust Fund.

(iv) As set forth in Section (f)(1) of this Plan, the assets of the Trust Fund shall not be comingled with the assets of the Retirement Fund. Notwithstanding, and to the extent otherwise permitted by applicable law, the Retirement System shall apply a credit toward or otherwise adjust the Employer's contributions to the Retirement Fund each year to reflect benefits are paid from this Plan rather than the Retirement System due to limits imposed by IRC Section 415(b). The

amount of the credit or adjustment will be determined by a methodology acceptable to the Retirement System's actuary and such credit or adjustment will be implemented in compliance with applicable law.

(f) **Trust Fund.**

(1) **Establishment of Trust Fund.** The Trust Fund is established as a valid trust under the laws of the State, separate from the Retirement Fund, to hold contributions of the Employer. Contributions to this Trust Fund will be held separate and apart from the funds comprising the Retirement Fund and will not be commingled with assets of the Retirement Fund, and must be accounted for separately.

(2) **Trust Fund Purpose.** The Trust Fund is maintained solely to provide benefits under a qualified governmental excess benefit arrangement within the meaning of IRC Section 415(m), and pay administrative expenses of this arrangement.

(3) **Trust Fund Assets.** All assets held by the Trust Fund to assist in meeting the Employer's obligations under the Plan, including all amounts of Employer contributions made under the Plan, all property and rights acquired or purchased with these amounts and all income attributable to these amounts, will be held separate and apart from other funds of the Employer and will be used exclusively for the uses and purposes of Participants and general creditors as set forth in this Plan. Participants have no preferred claim on, or any beneficial interest in, any assets of the Trust Fund. Any rights created under the Plan are unsecured contractual rights of Participants against the Employer. Any assets held by the Trust Fund are subject to the claims of the Employer's general creditors under federal and state law in the event of insolvency.

(4) **Grantor Trust.** The Trust Fund is intended to be a grantor trust, of which the Employer is the grantor, within the meaning of subpart E, part I, subchapter J, chapter 1, subtitle A of the Code, and will be construed accordingly. This provision will not be construed to create an irrevocable trust of any kind.

(5) **Trust Fund Income.** Income accruing to the Trust Fund under the Plan constitutes income derived from the exercise of an essential governmental function upon which the Trust is exempt from tax under IRC Section 115, as well as IRC Section 415(m)(1).

(g) **ADMINISTRATION.**

(1) **Administrative Authority.** The City has the exclusive authority to control and manage the operation and administration of this Plan.

(i) The City has the power and authority (including discretion with respect to the exercise of that power and authority) necessary, advisable, desirable or convenient to enable it:

to establish procedures to administer the Plan not inconsistent with the Plan and the Code, and to amend or rescind these procedures; to

determine, consistent with the Plan, applicable law, rules or regulations, all questions of law or fact that may arise as to eligibility for participation in the Plan and eligibility for distribution of benefits from the Plan, and the status of any person claiming benefits under the Plan;

to make payments from the Trust Fund to Participants pursuant to Section (d) of this Plan;

to contract with a third party to perform designated administrative services under this Plan; and

to construe and interpret the Plan as to administrative issues and to correct any defect, supply any omission or reconcile any inconsistency in this Plan with respect to same, subject to and consistent with the IRC.

(ii) Any action by the City that is not found to be an abuse of discretion will be final, conclusive and binding on all individuals affected thereby. The City may take any such action in such manner and to such extent as the City in its sole discretion may deem expedient, and the City will be the sole and final judge of such expediency.

(iii) The City will seek appropriate rulings from the Internal Revenue Service with regard to the status of the Plan under the IRC.

(2) **Advice.** The City may employ one or more persons to render advice with regard to its responsibilities under the Plan.

(3) **Payment of Benefits.** If in doubt concerning the correctness of its action in making a payment of a benefit, the City may suspend payment until satisfied as to the correctness of the payment or the person to receive the payment.

(4) **Delegation by Administrator.** The Administrator will handle the day-to-day operation of the Plan and may delegate certain functions to a third party.

(h) **Plan Amendments.** The City from time to time may amend, suspend, or terminate any or all of the provisions of this Plan as may be necessary to comply with IRC Section 415(m) and to maintain the Plan's or the Retirement System's qualified status under the IRC.

(i) **Nonassignability and Exemption from Taxation and Execution.** The interests of Participants under this Plan are exempt from any state, county, municipal or local tax, and are not subject to execution, garnishment, attachment, or any other process of law whatsoever, and are unassignable and nontransferable, except as otherwise provided by Section (f) or otherwise as in the same manner as a Retirement Benefit under the Retirement System.

(j) **Miscellaneous.**

(1) **Federal and State Taxes.** The Employer, the Administrator, Board Trustees and the Retirement System, if any, do not guarantee that any particular Federal or State income, payroll, or other tax consequence will occur because of participation in this Plan.

(2) **Investment.** The Administrator may hold a portion of the assets of the Plan uninvested as it deems advisable for making distributions under the Plan, or may invest assets of the Plan pending the Excess Benefit payments in short-term investment grade instruments as otherwise permitted by law.

(3) **Conflicts.** In resolving any conflict between provisions of the Plan, and in resolving any other uncertainty as to the meaning or intention of any provision of the Plan, the prevailing interpretation will be the one that (i) causes the Plan to constitute a qualified governmental excess benefit arrangement under the provisions of IRC Section 415(m) and the Trust Fund to be exempt from tax under IRC Sections 115 and 415(m), (ii) causes the Plan and the Administrator to comply with all applicable requirements of the IRC, (iii) causes the Plan and the Administrator to comply with all applicable State laws, and (iv) causes the Trust Fund to constitute a grantor trust under the IRC.

(4) **Limitation on Rights.** Neither the establishment or maintenance of the Plan, nor any amendment to the Plan, nor any act or omission under the Plan (or resulting from the operation of the Plan) may be construed:

(i) as conferring upon any Participant or any other person a right or claim against the Employer, Administrator, Board, Trustees or the Retirement System, if any, except to the extent that the right or claim is specifically expressed and provided in the Plan;

(ii) as creating any responsibility or liability of the Employer for the validity or effect of the Plan;

(iii) as a contract between the Employer and any Participant or other person;

(iv) as being consideration for, or an inducement or condition of, employment of any Participant or other person, or as affecting or restricting in any manner or to any extent whatsoever the rights or obligations of the Employer or any Participant or other person to continue or terminate the employment relationship at any time; or

(v) as giving any Participant the right to be retained in the Employer's service or to interfere with the Employer's right to discharge any Participant or other person at any time.

(5) **Erroneous Payments.** Any benefit payment that should not have been made, according to the terms of the Plan and the benefits provided hereunder, may be recovered as provided by law.

(6) **Release.** Any payment to any Participant will, to the extent thereof, be in full satisfaction of the Participant's claim being paid thereby, and the Administrator may condition the payment on the delivery by the Participant of the duly executed receipt and release in a form determined by the Administrator.

(7) **Liability.** The City, or Administrator, if any, will not incur any liability in acting upon any paper or document or electronic transmission believed by the City or Administrator to be genuine or to be executed or sent by an authorized person.

(8) **Governing Laws.** The City of Fresno Municipal Code and the laws of the State apply in determining the construction and validity of this Plan.

(9) **Necessary Parties to Disputes.** The only party necessary to any accounting, litigation or other proceedings relating to the Plan is the Administrator. The settlement or judgment in any case in which the Administrator is duly served will be binding upon all affected Participants in the Plan, their beneficiaries, estates and upon all persons claiming by, through or under them.

(10) **QEBA Funds Unsecured.** Nothing in this Ordinance shall be construed as providing for assets to be held in trust or escrow or any form of asset segregation from members, retired members, or beneficiaries except as specifically set forth in this Ordinance. To the extent any person acquires the right to receive benefits under this Plan, the right shall be no greater than the right of any unsecured general creditor of the City of Fresno, State of California.

(11) **Severability.** If any provision of the Plan is held by a court of competent jurisdiction to be invalid or unenforceable, the remaining provisions of the Plan will continue to be fully effective.

(Added Ord. 2015-22, § 1, eff. 9-10-15)

ARTICLE 4 SECOND TIER OF THE FIRE AND POLICE RETIREMENT SYSTEM

Sec. 3-401. Definitions.
Sec. 3-402. Creation of the Second Tier of the Fire and Police Retirement System.
Sec. 3-403. Persons Excluded.
Sec. 3-404. Amendments.
Sec. 3-405. Normal Contributions of Members.
Sec. 3-406. Deferred Benefits After Separation.
Sec. 3-407. Deferred Benefits After Entering Excluded Classification.
Sec. 3-408. Death Benefits.
Sec. 3-409. Benefits at Retirement.
Sec. 3-410. Service Retirement.
Sec. 3-411. Allowance at Service Retirement.
Sec. 3-412. Disability Retirement.
Sec. 3-413. Allowance at Disability Retirement.
Sec. 3-414. Safeguards.
Sec. 3-415. Continuation of Retirement Allowances After Death.
Sec. 3-416. Limitation.
Sec. 3-417. Optional Modification of Allowances.
Sec. 3-418. Optional Modification of Beneficiary After Retirement.
Sec. 3-419. Retirement Allowances Payable.
Sec. 3-420. Retirement Allowance Nonforfeiture.
Sec. 3-421. Effect of Marital Dissolution or Legal Separation or Termination of Domestic Partnership.
Sec. 3-422. Dissolution or Legal Separation or Termination Prior to a Member's Retirement.
Sec. 3-423. Dissolution or Legal Separation or Termination to a Member's Retirement.
Sec. 3-424. Deferred Retirement Option Program ("DROP")
Sec. 3-425. Reciprocity Between the Fire and Police Retirement System and the California Public Employees Retirement System.
Sec. 3-426. Rights of Domestic Partners.
Sec. 3-427. Refund of Contributions.

SEC. 3-401. DEFINITIONS.

The following words and phrases as used in this article, unless a different meaning is plainly required by the context, shall have the following meanings. Words and phrases defined in section 3-301 that are not defined differently in this section shall have the same meaning in this article as in article 3.

(a) (1) "Accumulated contributions" shall mean accumulated normal contributions.

(2) "Average Compensation." Each member's Benefits at Retirement shall be computed on the basis of the highest average monthly compensation earnable by a member during any 36-consecutive-month period of Service (or, if the period of Service is less than 36 months, for the member's total period of Service).

(3) "Alternate payee" shall mean the spouse, domestic partner, former spouse, or former domestic partner of a member of this System who, as a result of petitioning a court of competent jurisdiction for the division of community property, has been awarded an interest

in the benefits payable to a member. A spouse, domestic partner, former spouse, or former domestic partner who is awarded an interest in such benefits shall not be or become a member of this System by reason of such award or payment of such benefits.

(b) Reserved.

(c) (1) "Compensation," as distinguished from benefits under Division 4 of the Labor Code of the State of California, shall be limited to mean the base compensation payable by the city, in amounts fixed for members of the Fire Department, Police Department and Airport Public Safety Division, and also including payments made to members of the Fire Department by way of Paramedic Premium Pay and Holiday Payoff, and, to members of the Police Department and of the Airport Public Safety Division by way of the Educational Incentive Program, Assignment Pay and Holiday Payoff. Any form of compensation not specifically mentioned above shall not be included unless modified by the Council. Any such modification of the definition of Compensation by the Council must contain an express statement by the Council, in clear and concise language, that said definition is being modified. For individuals who first became members in the System before July 1, 1996, there shall be no limit on the compensation taken into account in determining his or her benefits. For individuals who first became members in the System on or after July 1, 1996, the annual compensation of each member taken into account under the System for any year shall not exceed the maximum amount provided in Internal Revenue Code Section 401(a)(17). In applying this rule for individuals who first became members on or after July 1, 1996, the following special rules shall apply:

(i) Effective with respect to the plan years commencing on or after July 1, 1996, and before July 1, 2002, the maximum amount is $150,000 as adjusted for cost of living increases by the Secretary of the Treasury. Each subsequent year that maximum is subject to further adjustments for cost of living increases in accordance with regulations issued by the Secretary of the Treasury. Any such increases shall be automatically incorporated into this Code without the need for specifically amending this Code each time the maximum is adjusted.

(ii) Effective only for the 1996 plan year, if any individual is part of the family of a highly compensated employee in the group consisting of the ten most highly compensated employees paid the greatest compensation by the city during the plan year, then such individual shall not be considered a separate employee. Compensation paid to such individual by the city shall be treated as if it were paid to the highly compensated employee. In applying this rule, the term "family" shall include only the spouse of the highly compensated employee and any lineal descendants of the highly compensated employee who have not attained age nineteen before the end of the plan year and the term "highly compensated employee" shall refer to those employees defined in Internal Revenue Code Section 414(q).

(iii) If the provisions of subsection (ii) above are applied to any member and his or her family in the aggregate, the compensation counted for each aggregated employee shall be reduced pro rata to stay within the limit of subsection (i), except that if any family member is not participating in any qualified retirement plan sponsored by the city, then the compensation counted for that family member shall be reduced to zero before any other reductions are made under this subsection.

(iv) Effective with respect to plan years beginning on and after July 1, 2002, the annual compensation of a plan member which exceeds $200,000 (as adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Internal Revenue Code) may not be taken into account in determining benefits or contributions due for any plan year. Annual compensation means compensation during the plan year or such other consecutive 12-month period over which compensation is otherwise determined under the plan (the determination period). The cost-of-living adjustment in effect for a calendar year applies to annual compensation for the determination period that begins with or within such calendar year. If the determination period consists of fewer than 12 months, the annual compensation limit is an amount equal to the otherwise applicable annual compensation limit multiplied by a fraction, the numerator of which is the number of months in the short determination period, and the denominator of which is 12. If the compensation for any prior determination period is taken into account in determining a plan member's contributions or benefits for the current plan year, the compensation for such prior determination period is subject to the applicable annual compensation limit in effect for that prior period.

(v) As used in this Section, the term "eligible member" means a person who first became a member of the City of Fresno Fire and Police Retirement System prior to the plan year beginning after December 31, 1995. Pursuant to Section 13212(d)(3)(A) of OBRA '93, and the regulations issued under that section, eligible members are not subject to the limits of Section 401(a)(17) of the Internal Revenue Code.

(2) "Contributions" shall mean normal contributions.

(d) The following definitions apply to domestic partnerships and to domestic partners:

(1) "Domestic partnership" shall mean (1) a registered domestic partnership that has been established by filing a Declaration of Domestic Partnership with the Secretary of State pursuant to Division 2.5 of the California Family Code; or (2) a legal union of two persons of the same sex, other than a marriage, that was validly formed in a jurisdiction other than California if such union is recognized as a domestic partnership pursuant to California Family Code Section 299.2.

(2) "Domestic partner" shall mean a person who has entered into a domestic partnership.

(3) "Former domestic partner" shall mean the person who had established a domestic partnership with a member, where that partnership has since been terminated pursuant to California law or other applicable law.

(4) "Surviving domestic partner" shall mean the person with whom a deceased member, at the time of death, had established a domestic partnership and who survives the member's death.

(e) Reserved.

(f) "Firefighter," shall mean employees of the Fire Department employed in the following classes: Fire Chief, Assistant Fire Chief, Fire Bureau Chief, Fire Battalion Chief, Fire Captain, Firefighter Specialist, Firefighter, and Firefighter Trainee or, in the event class titles are changed or added within the class series, also in such classes.

(g) "Fire or Police Department or Airport Public Safety Division" shall mean the Fire Department or the Police Department or the Airport Public Safety Division and specifically excludes every other city department or division regardless of the functions performed by employees of that department or division.

(h) Reserved.

(i) Reserved.

(j) Reserved.

(k) Reserved.

(l) Reserved.

(m) Reserved.

(n) "Member" shall mean any person included in membership of the Retirement System.

(o) "Normal Contributions" shall mean contributions at the rates provided for in Section 3-405, without interest.

(p) "Overtime leave," for the purposes of this article, is any absence from duty with compensation allowed or allowable on account of overtime, which is the aggregate service performed by an employee as a member in excess of the hours of work considered normal for employees on full-time basis.

(q) (1) "Police Officer" shall mean employees of the Police Department employed in the following classes: Police Chief, Deputy Police Chief, Police Captain, Police Lieutenant, Police Sergeant, Police Specialist, Police Officer, and Police Officer Recruit or, in the event class titles are changed or added within the class series, also in such classes.

(2) "Public safety officer/supervisor" shall mean employees in the class of public safety officer or public safety supervisor in the Airport Public Safety Division or, in the event class titles are added within the class series or are changed, also in such classes.

(r) Reserved.

(s) Reserved.

(t) "Service" shall mean service rendered as a firefighter in the Fire Department or police officer in the Police Department or as a public safety officer/supervisor in the Airport Public Safety Division for compensation, and for the purpose of the Retirement System as a member shall be considered as being in the "service" only while he/she is receiving compensation from the city for such service. When service is a factor in the computation of allowances and other benefits hereunder, fractional years of service shall be added to make complete years, and any remaining fractional year shall be included in the computation, unless only completed years are required by the context.

(u) "Plan year" shall mean the consecutive 12-month period beginning on July 1 and ending on June 30 of the following calendar year.

(v) "Limitation year" shall mean the calendar year.

(Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 94-28, §§ 1, 2, eff. 5-27-94; Am. Ord. 95-42, §§ 1—4, eff. 6-23-95; Am. Ord. 96-41, § 2, eff. 6-28-96; Am. Ord. 96-54, § 24, eff. 9-20-96; Am. Ord. 98-36, § 3, eff. 6-27-98; Am. Ord. 98-99, §§ 1—4, eff. 1-9-99; Am. Ord. 2006-16, § 1, eff. 3-10-06; Am. Ord. 2011-1, §§ 14, 15, eff. 3-7-11).

SEC. 3-402. CREATION OF THE SECOND TIER OF THE FIRE AND POLICE RETIREMENT SYSTEM.

(a) There is hereby created a second tier of the Fire and Police Retirement System. Any person who commenced city service as a firefighter, police officer, or airport public safety officer/supervisor on or after August 27, 1990 shall be subject to the provisions of this article.

(b) This article is intended to add a second, separate, and distinct tier to the Fire and Police Retirement System in terms of employee contributions, benefits, vesting, the definition of compensation, and other matters.

(c) All persons who were members of the Retirement System under Section 3-301 prior to August 27, 1990, terminate service, resume service, and redeposit contributions after August 26, 1990, shall be members of the Retirement System established under Section 3-301, subject to the provisions thereof.

(d) All persons who first become members of the Retirement System after August 26, 1990, terminate service, and resume service shall be, subject to the provisions of this article.

(e) The second tier of the Fire and Police Retirement System is a component of the Retirement System and is accordingly to be administered, controlled, and managed by the Retirement Board created under section 3-305.

(f) Since this article is a second tier of the Retirement System, (i) such administrative provisions of article 3 as sections 3-305, 3-306, 3-308, 3-309, 3-310, 3-311, 3-312, 3-313, 3-314, 3-315, 3-316, 3-317, 3-322, 3-323, 3-324, 3-325, 3-326, 3-334, 3-345, 3-346, 3-350, 3-351, and 3-352, and (ii) Section 3-354 are applicable to members who commenced service on or after August 27, 1990.

(g) In the event of a conflict between the provisions of article 3 and this article, the provisions of this article shall apply to members who commenced service on or after August 27, 1990.
(Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 98-36, §§ 4, 5, eff. 6-27-98; Am. Ord. 98-99, § 5, 1-9-99; Am. Ord. 2011-1, § 16, eff. 3-7-11; Am. Ord. 2017-15, § 2, eff. 4-24-17.)

SEC. 3-403. PERSONS EXCLUDED.

The following employees shall not be subject to the provisions of this article: Employees in the position of Police Chief or Fire Chief who commenced service on or after August 27, 1990 and for whom retirement benefits different from those contained in this article have been established separately for them by resolution of the Council of the City of Fresno.
(Added Ord. 95-39, § 1, eff. 6-23-95; Am. Ord. 98-36, § 6, eff. 6-27-98).

SEC. 3-404. AMENDMENTS.

No amendments or other modification of this article, as now existing and as hereinafter amended, shall be made by the Council, unless said amendment or other modification shall be previously submitted to the Board for its consideration. The definition of Compensation in Sections 3-401(a)(7) and (c)(3) may not be amended without an express statement by the Council, in clear and concise language, that said definition is being modified.
(Added Ord. 90-73, § 1, eff. 8-27-90).

SEC. 3-405. NORMAL CONTRIBUTIONS OF MEMBERS.

Each member's normal rate of contribution shall be 9% of his/her compensation.
(Added Ord. 90-73, § 1, eff. 8-27-90).

SEC. 3-406. DEFERRED BENEFITS AFTER SEPARATION.

Any other provision in this article to the contrary notwithstanding, if the service of a member is discontinued by reason of resignation or discharge or by reason of lay-off or leave of absence deemed by the Board to have resulted in permanent discontinuance (and in such case, as of the date of the determination by the Board of such permanence), or if the disability retirement of a member is followed by cessation of the disability and by cancellation of the disability allowance, but the member does not re-enter service, and he/she is entitled to credit for five years of service, he/she shall have the right to elect, within ninety days after the date upon which notice of said right is mailed by the System to the member's latest address on file in its office, whether to allow his/her accumulated contributions to remain in the Retirement Fund. Failure to make such election shall be deemed an

irrevocable election to withdraw his/her accumulated contributions. A member having made such election may, at any time before the effective date of any deferred retirement allowance for which he/she has qualified under this section, rescind his/her election in writing and upon such rescission he/she shall be paid forthwith his/her accumulated contributions. A member whose membership continues under this Section is subject to the same age and disability requirements as apply to other members for service or for disability retirement, but he/she is not subject to a minimum service requirement. After the qualification of such member for retirement by reason of age or disability, he/she shall receive a retirement allowance based upon the amount of his/her accumulated contributions and service standing to his/her credit at the time of retirement and on the city contributions held for him, and calculated in the same manner as for other members, except that the provisions in this article for minimum retirement allowances do not apply to him, unless he/she meets such minimum service requirements. No death benefits shall be payable if the death of the member occurs on or after such election is made and before re-entry into service, except as provided in Subsection (b) of Section 3-408.
(Added Ord. 5313, 1958, based on former Sec. 2-722; Am. Ord. 6735, 1965; Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 95-42, § 10, eff. 6-23-95).

SEC. 3-407. DEFERRED BENEFITS AFTER ENTERING EXCLUDED CLASSIFICATION.

(a) Other code provisions to the contrary notwithstanding, the accumulated contributions of a member who has entered or enters a classification that is requisite for membership in the City of Fresno Employees Retirement System remain in the Retirement Fund. A member whose membership continues under this section is subject to the same age and disability requirements, except as provided in subsection (c) of this section, as apply to other members for service or for disability retirement and he/she is subject to a minimum service requirement of five years credited under this article and the Employees Retirement System. After such member qualifies for retirement by reason of service and age or disability, he/she shall be entitled to receive a retirement allowance based upon the amount of his/her accumulated contributions, service standing to his/her credit at the time of retirement, and his/her Average Compensation, and calculated in the same manner as for other members, except that the provisions in this article for minimum retirement allowance do not apply to him/her unless he/she meets such minimum service requirements.

(b) Upon a member's death while employed in such classification, a death benefit as described in Section 3-408 shall be payable, but computed upon the basis of compensation earnable by him/her during the six months preceding his/her entry into such classification. The portion of such death benefit derived from city contributions shall be reduced by an amount equal to the portion so derived, of any death benefit to which such member may be entitled, from such Employees Retirement System.

(c) A member with accumulated contributions remaining in the Employees Retirement Fund pursuant to Section 3-536 of Article 5 and who retires for service or disability under the Employees Retirement System, shall be retired under this System, for service or disability as

the case may be, regardless of his/her age or service credited thereunder, but subject to the requirement in subsection (a) of at least five years under both systems. Such allowances shall be calculated as provided in this Article 4, except for the greater discount of the Service Retirement Allowance, and except that the disability retirement allowances under the two Systems shall be combined for application of the provisions in Sections 3-413 and 3-547 relating to minimum allowances, and only one such minimum allowance shall be calculated on the basis of the combined credited service and the higher of the average compensation or final compensation. The minimum allowance so determined shall be prorated between the two Systems according to the credited service under such Systems.

(d) This section shall be applied retroactively to include persons who would have been subject to its provisions if it had been in effect when they entered such classification. (Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 95-42, § 11, 6-23-95; Am. Ord. 98-36, § 26, eff. 6-27-98; Am. Ord. 2001-14, § 1, eff. 3-26-01).

SEC. 3-408. DEATH BENEFITS.

(a) Upon a member's death before retirement, the Retirement System shall be liable for a death benefit which, if an amount be due under paragraph (3) of this subsection or an allowance be payable under Section 3-416, and if there be a surviving spouse or surviving domestic partner or surviving children or parents, shall be paid in monthly installments and to the surviving spouse or surviving domestic partner and children and parents as prescribed therein; otherwise such death benefit shall be paid to such person having an insurable interest in the member's life as the member shall nominate by written designation duly executed and filed with the Retirement Board or, if the member has not designated such person or if the person so designated is not living at the time of payment, to the member's estate. Such death benefit shall consist of:

(1) The member's accumulated contributions, and in addition thereto;

(2) An amount equal to one-sixth of the member's compensation earnable during the six months immediately preceding the member's death multiplied by the member's completed years of service as a member of the system not to exceed six, and if such death is service-connected, in the opinion of the Retirement Board, in addition thereto;

(3) An amount sufficient, when added to the amounts provided in the next preceding paragraphs (1) and (2) to provide, when applied according to mortality tables and interest rate adopted by the Board, a monthly death allowance, equal to the service retirement allowance which the member would have received if the member had retired for service on the day of the member's death, provided the member was at least fifty years of age, and was entitled to be credited with at least twenty years of service, but such allowance shall not be less than one half of the member's average compensation; otherwise, equal to one-half of the member's average compensation, to be paid to the surviving spouse or surviving domestic partner, to continue as long as the spouse or domestic partner shall live; or if there be no qualifying surviving

spouse or qualifying surviving domestic partner, or if the spouse or domestic partner shall die, to the unmarried child or children of such member who are unmarried or not in a domestic partnership, collectively, under the age of eighteen years, to continue until every such child dies or marries or attains age eighteen; provided that no child shall receive any allowance after marrying or attaining age eighteen. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen but leave a child or children who, pursuant to terms and conditions adopted by the Retirement Board, is or are determined by the Board to have been disabled prior to age eighteen and whose disability continues past age eighteen, the child or children while so disabled shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner otherwise would have received. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen years, and no disabled child whose disability continued past the age of eighteen years, but leave a parent or parents dependent upon the member for support, the parents so dependent shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner otherwise would have received during such dependency. If payment of the allowance be stopped because of death of the surviving spouse or death of the surviving domestic partner or attainment of the age of eighteen years by, or the death or marriage of, a child, or cessation of disability in a child whose disability continued past the age of eighteen years, or the death or cessation of dependency of a parent, before the sum of the monthly payments made shall equal the sum of the amounts provided in the next preceding paragraphs (1) and (2), then an amount equal to the difference between said sums shall be paid in one amount, to the surviving children of the deceased member, share and share alike and, if none, to the member's estate.

(b) Upon the death of a member who, after five years of service, has discontinued service and elected to allow his or her accumulated contributions to remain in the Retirement Fund, the Retirement System shall be liable, in the event the member dies four or more months after discontinuance of service, for a death benefit consisting of the member's accumulated contributions only. Such benefit shall be paid to such person as the member has nominated or shall nominate by written designation duly executed and filed with the Retirement Board and, if none, to the member's estate.

(c) A member, or a beneficiary after the death of a member, may elect, by written designation duly executed and filed with the Retirement Board, to have the death benefit provided in this section paid in monthly or annual installments instead of in one lump sum, subject to such rules and regulations as the said Board may adopt.

(d) A person, while a member or after retirement, shall have the right to revoke the nomination of a beneficiary he or she made under the Retirement System, and to nominate another beneficiary, all by written designation duly executed and filed with the Retirement Board, provided that this right shall not extend to beneficiaries nominated under Options 2A, 2B, 3A, and 3B, Section 3-417 (Optional Modification of Allowances at Retirement).

(e) With respect to members retiring on or before the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the member prior to the date of the sustaining of the injury or the onset of the illness which resulted in the member's death or, if such date was more than one year prior to his or her death, only if the spouse was married to the member at least one year prior to the member's death. With respect to members retiring after the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the member prior to member's date of retirement or to a surviving domestic partner only if the domestic partner had established a domestic partnership with the member prior to the member's date of retirement.

(f) If any benefits paid under this section are paid as a survivor annuity to the surviving spouse (or former spouse) or child(ren) of a member who qualifies as a public safety officer within the meaning of Section 101(h) of the Internal Revenue Code, and such member was killed in the line of duty, then such monthly death allowance shall be nontaxable to the extent allowed by Section 101(h) of the Internal Revenue Code. However, if the member or the member's death does not qualify under Section 101(h) of the Internal Revenue Code, then, if the Board determines that the member's death was service-connected the amount of the monthly death allowance which equals fifty percent (50%) of the member's average compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.
(Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 95-42, § 12, eff. 6-23-95; Am. Ord. 2000-4, § 4, eff. 2-10-00; Am. Ord. 2001-17, § 1, eff. 3-26-01; Am. Ord. 2001-72, § 7, eff. 11-10-01; Am. Ord. 2006-16, § 2, eff. 3-10-06; Am. Ord. 2021-014, § 1, eff. 5-17-21).

SEC. 3-409. BENEFITS AT RETIREMENT.

Upon retirement for service or disability a person shall be entitled to the retirement allowances specified in Sections 3-411 and 3-412 inclusive.
(Added Ord. 90-73, § 1, eff. 8-27-90).

SEC. 3-410. SERVICE RETIREMENT.

Retirement of a member for service shall be made by the Retirement Board as follows:

(1) Every member who attains age sixty, who shall have completed five years of service after qualifying for service retirement, shall not be required to make further contributions to the Retirement Fund. If such member shall not have completed five years of service after qualification for service retirement, then the member shall be required to contribute to the Retirement Fund only until those five years of service are completed;

(2) Any member may retire upon written application to the Retirement Board, stating what time the member desires to be retired, provided that said member shall be

entitled to be credited, at the time so specified for the member's retirement, with at least five years of service in the aggregate, and shall have attained the age of fifty years.

(Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 2000-28, § 2, eff. 4-24-00; Am. Ord. 2013-36, § 3, eff. 1-20-14).

SEC. 3-411. ALLOWANCE AT SERVICE RETIREMENT.

A member, upon retirement for service as provided in Section 3-410, shall receive a retirement allowance which shall be a pension derived from the contributions of the City sufficient when added to the service annuity that is derived from the accumulated contributions of the member at the date of his/her retirement to equal the percentage of his/her Average Compensation set forth opposite his/her age in the following table multiplied by the number of his/her years of service at the time of his/her retirement.

If retirement occurs at age:	*The percentage for each year of credited service is:*
50	2.000
50¼	2.035
50½	2.070
50¾	2.105
51	2.140
51¼	2.175
51½	2.210
51¾	2.245
52	2.280
52¼	2.315
52½	2.350
52¾	2.385
53	2.420
53¼	2.455
53½	2.490
53¾	2.525
54	2.560
54¼	2.595
54½	2.630
54¾	2.665
55 and over	2.700

In no event shall the retirement allowance exceed an amount equal to 75% of such member's Average Compensation.

On or before April 1 of each year the Retirement System shall determine the percentage of annual increase or decrease in the cost of living by reference to the Consumer Price Index (United States City Average for urban wage earners and clerical workers—all items), as published by the Bureau of Labor Statistics of the United States Department of Labor, for

each of the two immediately preceding calendar years. The percentage by which such index for the more recent full calendar year shall have increased or decreased over or below such index for the full calendar year immediately prior shall be the percentage of the annual increase or decrease in the cost of living effective January 1 of each year from January 1 of the preceding year.

Beginning as of January 1 of the year in which said Retirement Board shall so determine the percentage of increase or decrease in the cost of living, the amounts of certain members' retirement allowances as identified here shall be increased or decreased by reason of such determined percentage of increase or decrease in the cost of living but not to exceed 3% in any given year. Such determined percentage of increase or decrease in the cost of living shall be applied to the amounts of such allowances payable for the preceding month of December, including any previous percentage of increase or decrease in the cost of living. In no event, however, will the amount of allowance of any member be so increased or decreased for cost of living until the January 1 of the second calendar year following such member's service retirement.

The amount of any retirement allowance referred to in this section shall never be reduced, by reason of the cost of living adjustment, to an amount less than the amount the member was originally granted at his/her service retirement.

If the percentage of adjustment in the cost of living in any year were to exceed 3% for that year, the percentage of increase or decrease in the cost of living exceeding 3% shall be carried over and added to or subtracted from the percentage of increase or decrease in the cost of living in succeeding years, and such procedure shall be followed from year to year.
(Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 98-36, § 27, eff. 6-27-98; Am. Ord. 2009-25, § 1, eff. 8-16-09).

Editor's note—The amendments adopted Ord. 2009-25 expired June 30, 2010.

SEC. 3-412. DISABILITY RETIREMENT.

(a) Retirement of a member for disability shall be made by the Retirement Board upon medical examination as follows: Any member while in service, or within four months after the discontinuance of service, or while physically or mentally incapacitated for the performance of his/her duty, if such incapacity has been continuous from discontinuance of service, shall be examined by one or more physicians or surgeons selected by the Board, upon the Board's own motion, upon the application of the head of the office or department in which said member is employed, or upon the application of said member or of a person authorized to act in his/her behalf, stating that said member is physically or mentally incapacitated for the performance of duty and ought to be retired, provided, if his/her disability is not industrial, he/she shall be credited with ten or more years of service.

(b) If such medical examination and other available evidence show, to the satisfaction of the Board, that the said member is physically or mentally incapacitated for the performance of duty, and that such incapacity is of permanent or extended duration, and that he/she ought to be retired, the Board shall retire the said member for disability forthwith.

(c) The Board shall secure such medical service and advice as may be necessary to carry out the purpose of this section and of Section 3-414, and shall pay for such medical service and advice such compensation as the Board shall deem reasonable.
(Added Ord. 5313, 1958, based on former Sec. 2-729; Added Ord. 90-73, § 1, eff. 8-27-90).

SEC. 3-413. ALLOWANCE AT DISABILITY RETIREMENT.

Upon retirement for disability as provided in Section 3-412, a member,

(a) If his/her disability, in the opinion of the Board, is service-connected, shall receive

(1) A disability annuity which shall be the actuarial equivalent of his/her accumulated contributions at the time of his/her retirement; and

(2) A disability pension purchased by contribution of the city, which together with the annuity provided by his/her accumulated contributions, shall make his/her total retirement allowance equal to one-half of his/her average compensation, or if he/she be qualified for service retirement, such pension shall be an amount which together with the annuity provided by his/her accumulated normal contributions, shall equal the retirement allowance he/she would receive if retired for service, but not less than one-half of his/her average compensation.

(3) The benefits provided by this subsection are in the nature of workmen's compensation and shall be excluded from income to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(b) If his/her disability, in the opinion of the Board, is not service-connected, shall receive

(1) A disability annuity which shall be the actuarial equivalent of his/her accumulated contributions at the time of his/her retirement; and

(2) A disability pension purchased by the contributions of the city, which, together with the annuity provided by his/her accumulated contributions, shall make the retirement allowance equal to the greatest of:

(i) thirty-three (33.00) percent of the member's average compensation; or

(ii) one and one-half (1.50) percent of the member's average compensation multiplied by the number of years of service credited to the member; or

(iii) the amount of the member's service retirement allowance, provided that the member is eligible to retire for service.

(Added Ord. 5313, 1958, based on former Sec. 2-730; Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 2001-72, § 9, eff. 11-10-01; Am. Ord. 2021-014, § 2, eff. 5-17-21).

SEC. 3-414. SAFEGUARDS.

(a) The Board at its pleasure or upon request of a beneficiary may require the beneficiary who has been retired for disability and who has not attained the age of fifty years to undergo medical examination, such examination to be made by a physician or surgeon, appointed by the Board at the place of residence of said beneficiary or other place mutually agreed upon.

Upon the basis of such examination, the Board shall determine whether said disability beneficiary is still incapacitated, physically or mentally, for service in the office or department of the city where he/she was employed and in the position held by him/her when retired for disability. If the Board shall determine that said beneficiary is not so incapacitated, his/her retirement allowance shall be cancelled forthwith, and he/she shall be reinstated to the position of the same class as that held by him/her when retired for disability.

(b) (1) Should a beneficiary after retirement for disability re-enter the service and be eligible for membership in the Retirement System in accordance with Section 3-402, his/her retirement allowance shall be cancelled and he/she shall immediately become a member of the Retirement System, his/her rate of contribution for future years being that established subject to Section 2-1716A. His/her individual account shall be credited with an amount which shall be the actuarial equivalent, at the time of such re-entry, based on a disabled life, of his/her annuity, but such amount shall not exceed the amount of his/her accumulated contributions as it was at the time of his/her retirement.

(2) An amount actuarially equivalent to his/her disability pension, shall again be held for the benefit of said member and shall no longer be included in the amounts available to meet the obligation of the city on account of benefits that have been granted. Such member shall receive credit for service in the same manner as if he/she had never been retired for disability.

(c) Should any person retired for disability or service engage in a gainful occupation, prior to attaining age fifty, the Board shall reduce the amount of his/her monthly pension as defined herein to an amount which, when added to the compensation earned monthly by him/her in such occupation, shall not exceed the amount of the compensation attached to the rank which he/she held at the time of his/her retirement. Should the earning capacity of such beneficiary be further altered, the Board may further alter his/her said pension to an amount which shall not exceed the full amount to which he/she would be entitled under this article in the absence of engagement in such occupation, but which, subject to such limitation, shall equal, when added to the compensation earned by him, the amount of the compensation attached to said rank. When said beneficiary reaches age fifty, his/her retirement allowance shall be made equal to the full amount to which he/she would be entitled under this article in the absence of engagement in such occupation, and shall not again be modified because of earnings other than under employment by the city.

(d) Should any beneficiary retired for disability refuse under age fifty to submit to medical examination, his/her pension may be discontinued until his/her withdrawal of such refusal, and should such refusal continue for one year, his/her retirement allowance may be cancelled.

(Added Ord. 5313, 1958; based on former Sec. 2-731; Added. Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 95-42, §§ 14, 15, eff. 6-23-95).

SEC. 3-415. CONTINUATION OF RETIREMENT ALLOWANCES AFTER DEATH.

(a) Upon a member's death, due to other than service-connected cause, after qualification for service retirement at or over age fifty, with credit for at least five years of service and on account of whose death the benefit provided for in Section 3-408(a)1 and 2 is otherwise payable, or after retirement, regardless of cause, two-thirds of the retirement allowance to which the member would have been entitled if the member had retired for service at the time of death, or two-thirds of the member's retirement allowance as it was at death, including a service-connected disability retirement allowance in accordance with section 3-413(a) as the case may be, and both before modification under an option, shall be continued, throughout life, to the surviving spouse or to the surviving domestic partner.

(b) Upon the death of a member, due to other than service-connected cause, prior to the member's attainment of age fifty, with credit for at least five years of service and on account of whose death the benefit provided for in Section 3-408(a), (1) and (2) is otherwise payable, two-thirds of the retirement allowance, before modification under an option, earned by the member's service as of the date of death, or, if the member was receiving a service-connected disability retirement in accordance with Section 3-413(a) at the time of the member's death, two-thirds of such service-connected disability retirement, shall be continued, throughout life to the surviving spouse or to the surviving domestic partner.

(c) If there be no surviving spouse or surviving domestic partner entitled to an allowance under this section, or if the surviving spouse or surviving domestic partner so entitled dies before every child of such deceased member attains the age of eighteen years, then the allowance that such surviving spouse or surviving domestic partner would have received had the spouse or domestic partner lived shall be paid to the member's child or children under said age, collectively, to continue until every such child dies or attains said age, provided that no child shall receive any allowance after marrying or establishing a domestic partnership and no non-disabled child shall receive any allowance after attaining the age of eighteen years. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen years but leave a child or children who, pursuant to terms and conditions adopted by the Retirement Board, is or are determined by the Board to have been disabled prior to age eighteen and whose disability continues past age eighteen, the child or children while so disabled shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner would have received. Should the member leave no surviving spouse or surviving domestic partner so entitled, no children under the age of eighteen years, and no disabled children whose disability continued past the age of eighteen years, but leave a parent or parents dependent upon the member for support, the parents so dependent shall collectively receive a monthly allowance equal to that which such surviving spouse or surviving domestic partner otherwise would have received during such dependency. If payment of the allowance payable under this section because of death before retirement is stopped because of death of the surviving spouse or of the surviving domestic partner or attainment of eighteen years by, or the death or marriage or establishment of a domestic partnership of, a child, or the death or marriage or establishment of a domestic partnership or cessation of disability in a child whose disability continued

past the age of eighteen years, or the death or cessation of dependency of a parent, before the sum of the monthly payments made shall equal the sum of the amounts which, except for this section, would have been payable under Section 3-408(a) 1 and 2, then an amount equal to the difference between said sums shall be paid in one amount to the surviving children of the deceased member, share and share alike.

(d) The allowance provided in subsection (b) of this section shall be in lieu of the death benefit otherwise payable as provided in Section 3-408(a)1 and 2, but, notwithstanding any other provision of this article, a person qualifying for the allowance or such person's guardian may elect, before the first payment on account of it, to receive such death benefit instead of the allowance.

(e) With respect to members whose death occurs on or before the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section to a surviving spouse, in the case of death before retirement, only if the spouse was married to the member prior to the date of the sustaining of the injury or the onset of the illness which resulted in death, or, in the case of death after retirement, only if the spouse was married to the member at least one year prior to retirement. With respect to members whose death occurs after the effective date of Ordinance No. 2000-4, an allowance shall be paid under this section (1) to a surviving spouse, in the case of death before retirement, only if the spouse was married to the member prior to the date of death, or, in the case of death after retirement, only if the spouse was married to the member as of the date of retirement or (2) to a surviving domestic partnership, in the case of death before retirement, only if the domestic partner had established a domestic partnership with the member prior to the date of death, or, in the case of death after retirement, only if the domestic partner had established a domestic partnership with the member as of the date of retirement.

(f) if the member was receiving a service-connected disability retirement in accordance with Sec. 3-413(a) or Sec. 3-424(e)(3) at the time of the member's death, the allowance provided either in subsection (a) or subsection (b) of this Section shall constitute a continuation of the member's service-connected disability retirement and shall be non-taxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.
(Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 2000-4, § 5, 2-10-2000; Am. Ord. 2001-17, § 2, eff. 3-26-01; Am. Ord. 2001-72, § 10, eff. 11-10-01; Am. Ord. 2006-16, § 3, eff. 3-10-06; Am. Ord. 2021-014, § 3, eff. 5-17-21).

SEC. 3-416. LIMITATION.

In the event the surviving spouse or surviving domestic partner of a deceased member becomes eligible for one or more allowances as the surviving spouse or surviving domestic partner of one or more other members, the surviving spouse or surviving domestic partner shall receive the greater of any survivorship allowances for which he or she is eligible and shall not receive any other survivorship allowance, with this exclusion not applicable to any amounts payable for life to the surviving spouse or surviving domestic partner pursuant to Option 2B or Option 3B of sections 3-341 and 3-417.
(Added Ord. 76-45, § 3, eff. 6-27-76; Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 2006-16, § 4, eff. 3-10-06; Am. Ord. 2012-23, § 2, eff. 12-1-13).

SEC. 3-417. OPTIONAL MODIFICATION OF ALLOWANCES.

(a) For purposes of determining actuarial equivalence under this Section, the following terms will be used:

(1) Basic retirement allowance" shall mean the sum of a member's service annuity and service pension as determined under Section 3-411, payable as a single life annuity, or the sum of the member's disability annuity and disability pension as determined under Section 3-413, payable as a single life annuity.

(2) "Basic retirement allowance plus continuance" shall mean a member's basic retirement allowance plus any two-thirds continuation payments that would be payable under Section 3-415 as determined at the effective date of the member's retirement.

(3) "Accumulated contributions" shall mean accumulated contributions as defined in Section 3-401(a)(1).

(4) "Adjusted accumulated contributions" shall be calculated as follows:

(i) The amount of the member's accumulated contributions at the effective date of retirement will be converted to an actuarially equivalent monthly annuity payable for the life of the member with a two-thirds continuance of that monthly annuity for the life of the member's beneficiary.

(ii) The difference between the member's monthly annuity and the beneficiary's monthly continuance shall be determined.

(iii) The amount determined in subsection (ii) will be converted to an actuarially equivalent lump sum present value, which amount is defined to be the member's "adjusted accumulated contributions".

(5) "Monthly uncontinued annuity payments" shall mean the difference calculated in subsection 4(ii).

(6) All actuarial calculations shall be done using the actuarial factors in effect on a member's effective date of retirement, and shall not take into account any future cost of living increases. Actuarial calculations shall also not take into account the possibility that the marriage of a member could be dissolved.

(b) If at the effective date of retirement the member has no spouse, children or dependent parents who would qualify for the two-third's continuation under Section 3-415, then, instead of receiving a retirement allowance only over the member's lifetime, the member may elect any of the following options:

(1) Option 1A. The member may elect a lower service or disability annuity for the member's life, which also provides that if the member dies before receiving in such lower service or disability annuity payments the amount of the member's accumulated contributions, then the balance of such accumulated contributions shall be paid upon

the member's death in a lump sum to a beneficiary designated by the member, as provided in subsection (d). This optional form shall be the actuarial equivalent of the member's service or disability

annuity for the member's lifetime at the effective date of retirement. Under this option, no elections may be made with respect to the pension portion of the member's service or disability retirement allowance.

(2) Option 2A, 100% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime and that after the member's death the same lower benefit will be continued for life to a beneficiary designated by the member as provided in subsection(d). This option shall be actuarially equivalent to the member's basic retirement allowance at the effective date of retirement.

(3) Option 3A, 50% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime and that after the member's death one-half of the lower benefit will be continued for life to a beneficiary designated by the member as provided in subsection (d). This option will be actuarially equivalent to the member's basic retirement allowance at the effective date of retirement.

(c) If at the effective date of retirement the member has a spouse, children or dependent parents who would qualify for a two-third's continuance under Section 3-415, then, instead of receiving a retirement allowance only over the member's lifetime, with a continuance after the member's death to certain beneficiaries, the member may elect any of the following options:

(1) Option 1B. The member may elect a lower service or disability annuity for the member's life, which also provides that if the member dies before receiving in monthly uncontinued annuity payments (as defined in Section 3-417(a)(5)) the amount of the member's adjusted accumulated contributions (as defined in Section 3-417(a)(4)), then the balance of such adjusted accumulated contributions shall be paid upon the member's death in a lump sum to a beneficiary designated by the member as provided in subsection (d). Under this option, no elections may be made with respect to the pension portion of the member's service or disability allowance.

(2) Option 2B, 100% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime with an optional continuance payable for a beneficiary's lifetime after the member's death in such an amount that the sum of the optional continuance plus the two-thirds continuance under Section 3-415 will be equal to the lower retirement allowance payable for the member's lifetime. This option shall be actuarially equivalent to the member's basic retirement allowance plus continuance as defined in subsection (a)(2) above at the effective date of retirement.

(3) Option 3B, 50% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime with an optional continuance payable for life to a beneficiary designated by the member as provided in subsection (d) in such amount that the optional continuance shall equal one-half of the difference between the lower retirement allowance payable for the member's lifetime and the two-thirds continuance under Section 3-415. This option shall be actuarially equivalent to the member's basic retirement allowance plus continuance as defined in subsection (a)(2) above at the effective date of retirement.

(d) The beneficiaries under any of the options shall be determined as follows:

(1) Under all options, either the lump sum or optional continuances, if any, shall be payable only to such beneficiary as the member shall nominate by written designation duly executed and filed with the Retirement Board. Lifetime benefits are payable to beneficiaries only if they survive the member, and in the case of spouses, only if they were married to the member on the date of the member's death. For purposes of this Section, a member's beneficiary shall be limited to the following classes of individuals:

(i) spouse;

(ii) domestic partner;

(iii) children;

(iv) grandchildren;

(v) parents;

(vi) any person who depends on the member wholly or in part for education or support; or

(vii) a trust, provided that (I) the beneficiaries of the trust comes within categories (i)—(vi) and are identifiable, (II) the trust is valid under state law, (III) the trust is irrevocable no later than upon the death of the member, and (IV) a copy of the trust agreement is provided to the retirement office.

(2) With respect to Options 1A and 1B,

(i) The individual or entity designated as beneficiary of the lump sum amount may be changed by the member at any time, but only if the change is received by the Retirement Board prior to the member's death;

(ii) In addition to the classes of individuals or entities listed in section 3-417(d)(1), a member may select as a beneficiary under Options 1A and 1B any of the following: a corporation, unincorporated association, or governmental unit; and

(iii) If the member has not designated a beneficiary, or if an individual is designated and is not living at the time of payment or if an entity is designated and is not in existence at the time of payment (including through merger with another entity), the unpaid balance of accumulated contributions shall be payable in a lump sum to the member's estate.

(3) With respect to Options 2A, 2B, 3A, and 3B, a member's lifetime beneficiary must be designated not later than the effective date of retirement and cannot be changed thereafter, unless the designation of a new spouse as beneficiary is permitted under Section 3-418 upon the member's marriage after retirement.

(4) With respect to all Options in which the member names his or her spouse as contingent lifetime beneficiary to receive benefits after the member's death, upon the death of the spouse or dissolution of marriage of the member and spouse before the member's

death, the designation of the former spouse as contingent lifetime beneficiary is automatically revoked and such former spouse shall receive no survivor benefits after the member's death.

(e) Any election under this Section shall be made prior to the making of the first payment on account of any retirement allowance. However, if at the effective date of retirement (1) a member has a spouse who is designated beneficiary under any lifetime option, and (2) the member dies within 30 days after the member's effective date of retirement, then the member's surviving spouse shall have the option to either elect benefits under this Section or elect the benefits provided to a surviving spouse for a member who dies before retirement. (Added 2004-98, §§ 1, 2, eff. 11-15-04; Am. Ord. 2006-16, § 5, eff. 3-10-06; Am. Ord. 2006-139, § 1, eff. 10-27-06).

SEC. 3-418. OPTIONAL MODIFICATION OF BENEFICIARY AFTER RETIREMENT.

(a) Members who become married or establish a domestic partnership after retirement may elect an optional modification provided herein by filing a written election with the Retirement Board within the time limits specified in this Section. If an optional modification is elected by the retired member under this Section, all prior elections are revoked, and no previously designated beneficiary shall have any rights to benefits under the System other than as provided in this Section. In addition, no continuation benefits will be payable under Section 3-415.

(b) A retired member is eligible to make this election if he or she is described within any of the following subsections:

(1) A retired member who was not married or not a member of a domestic partnership at the time of his or her retirement may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary in accordance with the procedures of this Section.

(2) A retired member who was married or a member of a domestic partnership at the time of his or her retirement and whose spouse or domestic partner predeceased the retired member may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary in accordance with the procedures of this Section.

(3) A retired member who was married or a member of a domestic partnership at the time of his or her retirement and whose marriage ended in dissolution or whose domestic partnership was terminated may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) with respect to that portion specifically allocated to the retired member in the dissolution or termination proceeding, if

the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary of the portion of the retired member's allowance specifically allocated to the retired member in the dissolution or termination proceeding in accordance with the procedures of this Section.

(4) A retired member who makes an election under subsections (1), (2) or (3) and whose new marriage is subsequently dissolved or new domestic partnership terminated for any reason, may again make an election under this Section upon the retired member's subsequent marriage or establishment of a domestic partnership but only with respect to the allowance then payable to the retired member for the retired member's remaining lifetime.

(c) A retired member eligible to name his or her new spouse or domestic partner as beneficiary shall have the option to name such spouse or domestic partner as the survivor annuitant of a joint and survivor annuity form of payment and shall have his or her retirement allowance adjusted to make the allowance as adjusted together with the survivor annuity actuarially equivalent to the retired member's retirement allowance immediately prior to the election under this section. Depending on the retired member's option election at retirement, the survivor annuity shall be a percentage of the retired member's adjusted retirement allowance as determined from the following table:

Form Elected	*Survivor Percentage*
Unmodified	66⅔
Option 1A or 1B	66⅔
Option 2A or 2B	100
Option 3A or 3B	50

(d) Any election shall provide that after its effective date an adjusted retirement allowance will be paid over the retired member's lifetime and that after the retired member's death the applicable survivor annuity will be continued for life to the retired member's surviving spouse or surviving domestic partner as defined in subsection (f) below, recognizing that such surviving spouse or surviving domestic partner will not be entitled to a continuance under Section 3-415.

(e) Any election under this section shall be actuarially equivalent to the benefits otherwise payable to the retired member and his or her beneficiary after the effective date. In determining such actuarial equivalence the System's provision for cost of living increases shall be taken into account, but the possibility that the marriage of the retired member could be dissolved or that the domestic partnership of the retired member could be terminated will not be taken into account. After the effective date of the election, the previously named beneficiary shall have no survivor benefits, other than benefits payable to a former spouse pursuant to a judgment of dissolution or to a former domestic partner pursuant to a judgment of termination.

(f) The surviving spouse benefit or surviving domestic partner benefit will be paid only to the person who was married to the retired member or was a member of a domestic partnership

with the retired member at the time of the retired member's election, at the effective date of the election, and at the time of the retired member's death. If the spouse or domestic partner named in the election either dies or his or her marriage with the retired member is dissolved or his or her domestic partnership with the retired member is terminated before the death of the retired member, no adjustment will be made to the retired member's benefit and neither the former spouse or former domestic partner or his or her estate shall be entitled to any survivor benefit.

(g) The optional modifications provided in this Section must be made in writing on such form or forms as the Retirement Board may designate, and must include such documentation as the Retirement Board may require. The election under this Section shall be deemed to be made on the date a properly executed form is received by the Retirement Board.

(h) The election for an optional modification after retirement must be filed with the Retirement Board within the time frames specified below:

(1) If the retired member retired before the effective date of Ordinance No. 2004-98, married after retiring but before that effective date, and would otherwise be eligible to elect one of the optional modifications after retirement, then the retired member must make the election no later than six months after the effective date of Ordinance No. 2004-98.

(2) In all other cases, the election must be made within six months after the date of marriage or the date of the establishment of the domestic partnership.

(3) Elections received by the Retirement Board after the six month time period shall be null and void.

(i) Any optional modification elected by the retired member under this section shall be effective as of the first day of the month following the one year anniversary of the retired member's election. The optional payments to the retired member shall begin in the adjusted amount on the effective date. If the spouse dies or the marriage is dissolved or if the domestic partner dies or the domestic partnership is terminated before the effective date specified in this subsection (i), the election is automatically revoked and no adjustment will be made in the retired member's allowance. If the retired member dies before the effective date, no benefits are payable to the spouse or domestic partner under this Section.

(j) In no event will any elections be permitted under this Section if they would violate the minimum distribution rules of Internal Revenue Code section 401(a)(9).
(Added Ord. 2004-98, § 3, eff. 11-15-04; Am. Ord. 2006-16, § 6, eff. 3-10-06).

SEC. 3-419. RETIREMENT ALLOWANCES PAYABLE.

A pension, an annuity or retirement allowance granted under the provisions of this article shall be payable in equal monthly installments or in smaller pro rata amounts when the pension, annuity or retirement allowance begins after the first day of the month or ends before the last day of the month.
(Added Ord. 5313, 1958, based on former Sec. 2-735; Added Ord. 90-73, § 1, eff. 8-27-90).

SEC. 3-420. RETIREMENT ALLOWANCE NONFORFEITURE.

Subject to compliance with this article, nothing shall deprive a member of the right to a retirement allowance as determined under it, after he/she has qualified as to service and disability for retirement for disability, or as to normal retirement age, which is age fifty-five (55), and the completion of five (5) years of service for retirement for service. A member shall be 100% vested in his or her accumulated contributions at all times.
(Added Ord. 5313, 1958, based on former Sec. 2-735; Added Ord. 90-73, § 1, eff. 8-27-90; Am. Ord. 2011-1, § 17, eff. 3-7-11).

SEC. 3-421. EFFECT OF MARITAL DISSOLUTION OR LEGAL SEPARATION OR TERMINATION OF DOMESTIC PARTNERSHIP.

(a) **Purpose.**

(1) It is the intent of this Section and Sections 3-422 and 3-423 to insure that a member and the alternate payee each receives his or her appropriate community property share of any applicable retirement allowance and benefits (including statutorily provided monthly installments payable after a member's death to his or her surviving spouse, surviving domestic partner, children or parents), but only insofar as the division of any community property interest does not increase the actuarial present value (as defined in Section 3-301(a)(5)) of allowances and other benefits which would otherwise have been provided by the Retirement System.

(2) It is the further intent of this section to allow court orders to provide retirement allowances and benefits (including statutorily provided monthly installments payable after a member's death to surviving spouses, surviving domestic partners, children or parents) to alternate payees of members to the extent:

(i) Of at least the alternate payee's community property interest in the retirement allowance and other benefits earned during the marriage or domestic partnership;

(ii) That a final judgment of dissolution of marriage or legal separation or termination of domestic partnership or the order incident thereto dividing the community property interest allocates a portion of that community property interest to the alternate payee; and

(iii) That the Board is joined as a party in the dissolution, separation, or termination proceeding and has been served with a file-endorsed copy of the judgment of final dissolution or legal separation or termination or the order incident thereto dividing the community property interest in the retirement allowance and other benefits earned during the marriage or the domestic partnership.

(3) It is the intent of this section not to provide retirement allowances to any persons other than alternate payees and not to allow alternate payees to be treated as surviving spouses or surviving domestic partners under this Article 4.

(b) **Provisions Permitted in Court Orders.** A final judgment of dissolution, legal separation, or termination or court order incident thereto dividing the community property interest of a member and the member's alternate payee in a retirement allowance or other benefit, may provide for any of the following:

(1) That, prior to the retirement of the member, the community property interest of the member and the alternate payee be split into separate accounts for the member and the alternate payee as hereafter provided in Section 3-422; or

(2) That the community property interest of a member and the alternate payee be paid after the member's retirement as the court may order, provided that:

(i) No retirement allowances are payable to the alternate payee before the member dies or retires;

(ii) No form of payment is required other than a form being permitted under the Retirement System at the time payments start;

(iii) No survivor allowance is payable to an alternate payee under Section 3-415 or any other section of this Article 4, except that an alternate payee may receive a community property share of a survivor benefit payable to someone else as a result of the member's death;

(iv) The actuarial present value of the portion of the member's allowance payable to the member and the alternate payee, plus the actuarial present value of any survivor benefits payable under Section 3-408 and 3-415, shall not exceed the actuarial present value of the member's allowance and such survivor benefits as would have been payable had the member never been married to or had never established a domestic partnership with the alternate payee; and

(v) No retirement allowances or other benefits are payable to the parents of an alternate payee or to the children of an alternate payee who were stepchildren of the member, except as permitted under the combined account option upon the death of the alternate payee.

(3) That permitted beneficiaries are limited to the following classes of individuals:

(i) spouse;

(ii) domestic partner;

(iii) children;

(iv) grandchildren;

(v) parents; or

(vi) any person who depends on the member wholly or in part for education or support.

(c) **Provisions Prohibited in Court Orders.** A final judgment of dissolution, legal separation, or termination or other court order dividing the community property interest of a member and the alternate payee in a retirement allowance or other benefit must conform to the following rules:

(1) Retirement allowances or other benefits may not be paid to any individual who is not a permitted beneficiary of the member or of the alternate payee;

(2) Payments may not be made in a form not provided in this Article 4;

(3) An alternate payee is not a surviving spouse of the member under this Article 4 for any purpose;

(4) The surviving spouse or surviving domestic partner of an alternate payee is not to be deemed to be a surviving spouse or surviving domestic partner under this Article 4 for any purpose;

(5) An alternate payee or the surviving spouse or surviving domestic partner of an alternate payee is not eligible to receive any form of disability retirement allowance under this Article 4 with respect to any disabling condition the alternate payee or the surviving spouse or surviving domestic partner of an alternate payee might sustain.

(d) **Member's Rights.** Any credited service or any accumulated contributions which are not explicitly awarded by court order to an alternate payee shall be the sole and separate property of the member.

(e) If benefits are payable pursuant to an order that satisfies the requirements of this Section, Section 3-422, and/or Section 3-423 that meets the requirements of a "domestic relations order" as defined in Section 414(p) of the Internal Revenue Code, then the applicable requirements of Section 414(p) of the Internal Revenue Code shall be followed by the retirement system.
(Added Ord. 94-28, § 3, eff. 5-27-94; Am. Ord. 94-37, § 1, eff. 6-24-94; Am. Ord. 2002-11, § 4, eff. 3-19-02; Ord. 2004-101, § 1, eff. 11-15-04; Am. Ord. 2006-16, § 7, eff. 3-10-06; Am. Ord. 2011-1, § 18, eff. 3-7-11).

SEC. 3-422. DISSOLUTION OR LEGAL SEPARATION OR TERMINATION PRIOR TO A MEMBER'S RETIREMENT.

(a) **Separate account option.**

(1) **Purpose.** The purpose of the separate account option is to permit a member and an alternate payee to divide the member's retirement allowance and benefits (including statutorily provided monthly installments payable after a member's death to his or her surviving spouse, surviving domestic partner, children or parents) prior to retirement into separate and distinct accounts for the member and for the alternate payee, as set forth in a court order which meets the requirements of Section 3-421 and this Section 3-422.

(2) **Court Order.** In the event of a legal separation or dissolution or termination, the Board shall comply with a court order incident thereto which contains the following provisions:

(i) The division of the accumulated member contributions and credited service applicable to periods of service during the marriage or domestic partnership into two separate and distinct accounts in the name of the member and the alternate payee;

(ii) The right of the alternate payee to elect an option under Section 3-417 and designate a beneficiary with respect to the alternate payee's separate account;

(iii) The right of the alternate payee to a refund of accumulated contributions in the alternate payee's separate account;

(iv) For purposes of determining the amount of any retirement allowance payable to the alternate payee, the average compensation (as defined in Section 2-401(a)(2) shall be determined solely by the compensation earnable (as defined in Section 3-301(b)(4) by the member during the period of marriage or domestic partnership;

(v) For purposes of applying the benefit formula of Section 3-411 for determining the amount of any retirement allowance payable to the alternate payee, the age of the alternate payee shall be used.

(3) **Refund of Contributions to an Alternate Payee.**

(i) An alternate payee who has been awarded a separate account shall possess the right to a refund of accumulated member contributions in that separate account at any time after the court order has been filed with the Retirement System.

(ii) The alternate payee shall file a written application with the Retirement System on a form provided by the System to obtain the refund.

(iii) Upon filing the application for a refund with the Retirement System, the alternate payee shall from that point on be deemed to have permanently waived any and all rights the alternate payee may have possessed in the Retirement System based on the member's employment, including any and all rights to any benefit or retirement allowance or any survivor benefits.

(iv) If, as of the date of separation of the member and his or her spouse or the equivalent date for a domestic partnership as determined in the court proceedings, the member did not possess sufficient credited service to retire for service, then the alternate payee's only form of payment under this separate account option will be a refund of the accumulated member contributions allocated to his or her separate account.

(v) If an alternate payee has withdrawn his or her portion of the accumulated member contributions, the alternate payee shall not be allowed to redeposit those contributions with the Retirement System.

(4) **Retirement of Alternate Payee.** An alternate payee shall be deemed to be retired only if:

(i) The alternate payee files a written application with the Retirement System on a form provided by the System;

(ii) The member and the alternate payee have both attained the minimum age required for a service retirement; and

(iii) On the date of separation of the member and the alternate payee or the equivalent date for a domestic partnership as determined in the court proceedings, the member possessed sufficient credited service to retire for service. A member who possessed sufficient credited service to retire before the division shall be deemed to continue to do so after the division, and so shall the alternate payee.

(5) **Calculation of the Alternate Payee's Retirement Allowance.**

(i) The alternate payee's retirement allowance shall consist of an annuity based upon the alternate payee's accumulated contributions and a pension based upon the alternate payee's service. Only the compensation earnable by the member during the period of marriage or domestic partnership and prior to the date of separation shall be used to determine average compensation.

(ii) The alternate payee's retirement allowance shall be eligible for cost-of-living increases under this Article 4.

(iii) No survivor or death benefits will be payable upon the death of the alternate payee, and such alternate payee upon remarriage or reestablishment of domestic partnership shall not be entitled to elect any of the optional forms of benefit.

(6) **Death of Alternate Payee Prior to Retirement of Alternate Payee.** If the alternate payee dies prior to retirement, then the accumulated contributions in the alternate payee's separate account shall be paid to the alternate payee's beneficiary as designated to the Retirement System on a form provided by the System. If a beneficiary has not been designated at the time of death or if the designated beneficiary is not living at the time of death, the accumulated contributions shall be paid to the alternate payee's estate. No other death benefits will be payable as a result of the death of the alternate payee.

(b) **Combined Account Option.** The Retirement System will comply with a court order incident to a legal separation or dissolution or termination which divides the community property interests of a member and the alternate payee, provided that:

(1) The alternate payee's interest is not to be paid before the member retires or dies, and

(2) The court order complies with the provisions set forth in Section 3-421, including the provision that the alternate payee will not be considered to be a surviving spouse or surviving domestic partner under Section 3-415 or any other Section of this Article 4.

(3) The court order may provide that the alternate payee's interest in the member's retirement allowance be paid over the lifetime of the member under the optional form of payment allowed by the System and selected by the member.

(i) With respect to the alternate payee's interest in the member's retirement allowance, the alternate payee may on a form provided by the System designate a permitted beneficiary as set forth in Section 3-421. If the alternate payee predeceases the member, the person so designated shall receive until the member's death the benefit previously paid to the alternate payee.

(ii) If a benefit is payable under Section 3-408 or 3-415 upon the member's death, as long as payments are payable under those provisions, one-half of the community property share thereof may be payable to the alternate payee or a permitted beneficiary as set forth in Section 3-421(b)(3) of the alternate payee.

(iii) If the member predeceases the alternate payee and the member has chosen option 2 or 3, the alternate payee or the permitted beneficiary as set forth in Section 3-421(b)(3) of the alternate payee may receive, as long as payments are payable under the selected option, one-half of the community property share of that portion of the allowance which would be continued after the member's death, regardless of dependents.

(4) In lieu of the payment method specified in subsection (3) above, the court order may provide that the alternate payee's interest in the member's retirement allowance be paid under any optional form of payment allowed by the Retirement System over the lifetime of the alternate payee (instead of over the lifetime of the member), provided that,

(i) The sum of the actuarial present values of the member's and his or her alternate payee's allowances payable as single life annuities shall not exceed the actuarial

present value of the member's allowance had they been payable to the member, assuming the member had never been married to the the alternate payee or had never established a domestic partnership with the alternate payee; and

(ii) No survivor benefits under Section 3-415 or any other Section of this Article 4 are payable to the surviving spouse of the alternate payee.

(5) In the absence of a qualifying surviving spouse, qualifying domestic partner, unmarried children under the age of eighteen or children under the age of eighteen not members of domestic partnerships, disabled child qualified under Section 3-415(c), or dependent parents, the court order may provide for the division of the community property interest in the death benefit under Section 3-408. (Added Ord. 94-28, § 4, eff. 5-27-94; Am. Ord. 94-37, § 1, eff. 6-24-94; Am. Ord. 95-42, §§ 18, 19, eff. 6-23-95; Am. Ord. 2002-11, § 5, eff. 3-19-02; Am. Ord. 2004-101, § 2, eff. 11-15-04; Am. Ord. 2006-16, § 8, eff. 3-10-06).

SEC. 3-423. DISSOLUTION OR LEGAL SEPARATION OR TERMINATION AFTER A MEMBER'S RETIREMENT.

(a) **Purpose.** The purpose of this section is to allow a court order to provide for an equitable distribution of retirement allowances and survivor benefits between a retired member and the alternate payee, without requiring the retirement system to pay increased benefits.

(b) **Form of Payment to Remain Unchanged.** If a member's marriage to the individual to whom the retired member was married at the time the retired member's retirement allowance commences is dissolved after retirement benefits commence or if they are legally separated or, if a retired member's domestic partnership to the individual with whom the retired member had established a domestic partnership at the time the retired member's retirement allowance commences is terminated after retirement benefits commence, then the final judgment of dissolution or legal separation or termination or court order incident thereto may not in any way change the form or forms of payment under Section 3-417 selected by the member at retirement, except that any life annuity payable only for the retired member's life may be modified as set forth in Section 3-423(c) to provide that a portion thereof be payable for the alternate payee's lifetime.

(c) **Unmodified Allowance or Option 1.** If a member prior to retirement either did not select an option under Section 3-417 or selected Option 1 under that Section, the Retirement System will comply with a court order that divides the total actuarial present value of the allowances payable to the retired member according to the separate and community property interests of the retired member and the alternate payee. The court order may further provide that the divided value allocated to the retired member shall continue to be paid to the retired member in the same form as before the court order, and that the divided value allocated to the alternate payee shall be converted into the same form of payment, but payable for the life of the alternate payee instead of for the life of the retired member. The sum of the actuarial present values of the divided values for the retired member and his or her alternate payee

shall not exceed the actuarial present value of the benefit otherwise payable immediately before the division to the retired member alone, excluding the value of any survivor benefits under Section 3-415 or under any other Section of this Article 4.

(d) **Survivor Benefits.** The court order may provide that any survivor benefits payable as a result of a retired member's death shall be payable to the beneficiary entitled thereto under this Article 4, provided that the alternate payee's one-half community property share therein can be paid directly to such alternate payee. No benefits shall be payable to the alternate payee after all beneficiaries entitled to the retired member's survivor benefits are no longer entitled thereto.

(e) **Option 2 or 3.** If a member at retirement selected either Option 2 or 3 under Section 3-417 for any portion of his or her retirement allowance, which options provide for retirement continuances to a person having an insurable interest in the member's life, the amount and the form of payment of the benefits payable pursuant to these options by the Retirement System cannot be changed, but the Retirement System will comply with a court order requiring that a portion of those payments be paid directly to the alternate payee (or to the beneficiaries named by the alternate payee if he or she predeceases the retired member) rather than to the retired member or the retired member's beneficiary. In no event, however, shall the alternate payee's life replace the life of another previously named beneficiary under either Option 2 or 3.

(f) **Post-retirement Elections.** If a retired member made an election under Section 3-418 to name a new spouse or domestic partner as beneficiary and that marriage is dissolved or the parties become legally separated or the domestic partnership is terminated, no surviving spouse or surviving domestic partner benefits will be paid to the alternate payee, but the Retirement System will comply with a court order that divides the present value of the allowance payable for the retired member's life between the retired member and the retired member's alternate payee. The court order may further provide that the divided value allocated to the retired member shall continue to be paid to the retired member for life, and the divided value allocated to the alternate payee shall be converted into monthly payments for the life of the alternate payee, instead of for the life of the retired member. (Added Ord. 94-28, § 5, eff. 5-27-94; Am. Ord. 94-37, § 1, eff. 6- 24-94; Am. Ord. 2002-11, § 6, eff. 3-19-02; Am. Ord. 2004-98, § 4, eff. 11-15-04; Am. Ord. 2004-101, § 3, eff. 11-15-04; Am. Ord. 2006-16, § 9, eff. 3-10-06).

SEC. 3-424. DEFERRED RETIREMENT OPTION PROGRAM ("DROP").

(a) **Purpose of DROP.**

(1) It is the intent of this section to create a voluntary deferred retirement option program ("DROP") for members.

(2) DROP is designed to be an alternate method of receiving retirement benefits.

(3) DROP is intended to be cost neutral to the System.

(4) DROP is intended to provide additional flexibility to the System by providing members with an additional method of receiving their retirement benefits.

(5) It is the intent of DROP not to jeopardize in any way the tax-qualified status of the System under the Internal Revenue Code. The provisions of this section may at any time be modified, with such modifications being given retroactive effect, if necessary to maintain the System's tax-qualified status.

(b) **Eligibility and Election to Participate in DROP.**

(1) Any member who has attained age 50 and who possesses sufficient credited service to be eligible for a service retirement shall be eligible to participate in DROP.

(2) The election to participate in DROP shall be voluntary and irrevocable. The election shall:

(i) Be made on a form provided by the System;

(ii) Designate a period of participation not to exceed one hundred and twenty (120) months;

(iii) Affirm that the member, on the date the member commences participation in DROP, shall cease accruing service credits;

(iv) Affirm that the member agrees to terminate City employment no later than completion of the designated DROP participation period;

(v) Constitute an application for service retirement no later than the end of the designated DROP participation period; and

(vi) Include the member's irrevocable election among the options in Section 3-417 (Optional Modification of Allowances).

(3) A member making the election shall execute such waivers with respect to state and federal employment discrimination and related laws, such releases, and such covenants as are required by the City or the System.

(4) By electing to participate in DROP:

(i) A member becomes subject to all of the provisions of this section;

(ii) For a member whose retirement allowance is determined under Section 3-401 (Definitions), average compensation shall be determined solely by reference to the rank or ranks held by the member prior to the date the member commences participation in DROP;

(iii) If a member is entitled to convert a sick or holiday or other leave balance into a lump sum cash payment upon retirement, the dollar value of the member's leave balance as of the effective date of DROP participation shall be divided by thirty-six, and the resulting quotient shall be added to the highest average monthly compensa-

tion earnable by a member during any thirty-six consecutive months of service prior to commencing participation in DROP used for purposes of determining average compensation under Section 3-401 (Definition);

1. The employee contributions due with respect to the leave balance shall be charged against the member's DROP account;

2. Any changes in leave balances occurring after the member commences participation in DROP shall not affect in any manner the amounts credited to the member's DROP account or the member's retirement allowance, whether for service or disability, payable to the member; and

(iv) A member shall have DROP benefits credited to a DROP account pursuant to subsection (c) of this section.

(c) **DROP Accounts and DROP Benefits.**

(1) A DROP account is a nominal, bookkeeping account established within the System for each DROP participant. No System assets shall be separately segregated for any DROP account; a DROP participant shall not have a claim on any specific assets of the System.

(2) Amounts credited to a member's DROP account shall be vested, except to the extent deemed necessary by the Board in its sole discretion to maintain the System's tax-qualified status under the Internal Revenue Code.

(3) A member's DROP account shall be credited monthly with an amount which represents the service retirement allowance which the member would have received if the member had retired on the date the member commenced DROP participation.

(4) The monthly amount credited to a member's DROP account shall reflect any cost-of-living adjustments otherwise applicable to retired members.

(5) A member's DROP account shall be credited monthly with interest pursuant to subsection (d) of this section.

(d) **Interest Crediting to DROP Accounts.**

(1) Each DROP account shall be credited monthly with interest at the nominal monthly interest rate equivalent to the annual effective DROP interest rate adopted by the Board. The nominal monthly interest rate shall apply to the balance in each DROP account as of the beginning of each month and shall be applied before the monthly amount described in Section 3-424(c)(3) for that month has been credited to the account.

(2) The Board shall set an annual effective DROP interest rate, which shall apply to each DROP account during the retirement system's fiscal year in which the Board set the rate.

(3) In setting the annual effective DROP interest rate, the Board shall review and consider the most current actuarial report from the Board's actuary evaluating the cost neutrality of DROP.

(4) The Board shall review the net rate of return earned by the System's entire investment portfolio for each of the five prior fiscal years, including realized and unrealized

gains and losses and as reduced by all investment expenses. These net rates of return shall be certified by the System's Retirement Administrator. The sum of the five net rates of return shall be divided by five to provide an average net rate of return.

(5) The Board shall set the annual effective drop interest rate at a level it deems in its sole discretion necessary to maintain the cost neutrality of the DROP program. The Board shall not set the annual effective DROP interest rate lower than 3 percent below the average net rate of return as determined in Section 3-424(d)(4) nor higher than that average net rate of return.

(6) If the average net rate of return determined in Section 3-424(d)(4) is negative, the Board shall set a negative annual effective DROP interest rate, i.e., each DROP account balance shall be reduced accordingly.

(e) **Additional DROP Provisions.**

(1) The effective date of DROP participation for a member shall be the first of the month following the date the Board approves the member's fully completed DROP application.

(2) For a member whose effective date in DROP is prior to the effective date of Ordinance No. 2011-1 and notwithstanding Section 3-405 (Normal Contributions of Members), the member shall cease making contributions to the System. For a member whose effective date of participation in DROP is on or after the effective date of Ordinance No. , the member shall continue to make contributions which shall be deposited into the member's DROP account.

(3) If a member becomes disabled while participating in DROP, the member shall be eligible to apply for disability retirement and shall be subject to the same disability eligibility requirements under Section 3-412 as if the member were not in DROP. Notwithstanding Section 3-413 (Allowance at Disability Retirement), if the Board grants the application, whether for a service-connected or non-service-connected disability, the amount of the disability retirement allowance shall be the same as the amount then being credited monthly to the member's DROP account. However, if the Board determines that the disability is service-connected, the amount of the aggregate disability retirement allowance which equals (or is less than) fifty percent (50%) of the member's average compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(4) If a member dies due to non service-connected causes while participating in DROP, the member shall be deemed to have died after retirement.

(5) If a member dies on or after June 1, 2008 while participating in DROP and the Board determines that the causes are service-connected, the member shall be deemed to have suffered a service-connected death, with the survivorship benefit to be comprised solely of two-thirds the monthly amount currently being credited into the

member's DROP account, adjusted for any optional modification elected by the member, and the balance in the DROP account paid pursuant to Sections 3-424(f) and 3-424(g)(2). If any benefits paid under this section are paid as a survivor annuity to the surviving spouse (or former spouse) or child(ren) of a member who qualifies as a public safety officer within the meaning of Section 101(h) of the Internal Revenue Code, and such member is killed in the line of duty, such monthly death allowance shall be nontaxable to the extent allowed by Section 101(h) of the Internal Revenue Code. However, if the member or the member's death does not qualify under Section 101(h) of the Internal Revenue Code, then, if the Board determines that the member's death was service-connected, the amount of the monthly death allowance which equals (or is less than) fifty percent (50%) of the member's average compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(6) If a member marries while participating in DROP, the marriage shall be deemed to have occurred prior to the member's retirement only for purposes of satisfying any applicable benefit eligibility requirement.

(f) **Designation of DROP Beneficiary.**

(1) A member electing to participate in DROP shall designate a beneficiary of the member's DROP account.

(2) If a member dies while participating in DROP,

(i) A designated DROP account beneficiary who is either a surviving spouse or surviving domestic partner of the member or a child under the age of 18 of the member or a dependent parent of the member shall be entitled to select a form of distribution under Section 3-424(g)(2); or

(ii) A designated DROP beneficiary who is not listed in Section 3-424(f)(2)(i) shall receive a DROP account distribution in the form of a lump sum; or

(iii) If the designated DROP beneficiary is not then living, the balance in the DROP account in the form of a lump sum shall be distributed to the estate of the DROP participant.

(3) No DROP beneficiary designation shall modify a member's community property obligations under California law.

(g) **Distribution of DROP Account.**

(1) Upon termination of DROP participation and upon retirement from the City, a member shall:

(i) Receive the amounts credited to the member's DROP account, including interest; and

(ii) Begin receiving a monthly retirement allowance in the amount being credited to the member's DROP account.

(2) A member upon the completion of the designated DROP participation period shall select one of the following as the form of distribution of the member's DROP account:

(i) A lump sum; or

(ii) An amount payable monthly in equal monthly installments in accord with applicable provisions of the Internal Revenue Code;

1. The member shall be entitled to select an installment pay-out period not to exceed the lesser of ten years or the joint life expectancies of the member and the member's spouse;

2. The balance in the member's DROP account during the installment pay-out period shall be credited with simple interest monthly at the actuarially assumed interest rate;

3. No cost-of-living adjustment shall be made to the monthly amount;

4. Payments of the monthly amount shall terminate when the balance in the DROP account is reduced to zero;

5. If the retired member dies prior to receipt of the member's entire DROP account, then:

(a) A designated DROP beneficiary who is listed in Section 3-424(f)(2)(i) shall be entitled to select a form of distribution under Section 3-424(g)(2); or

(b) A designated DROP beneficiary who is not listed in Section 3-424(f)(2)(i) shall receive a DROP account distribution in the form of a lump sum; or

(c) If the designated DROP beneficiary is not then living, the balance in the DROP account in the form of a lump sum shall be distributed to the estate of the DROP participant.

6. The retired member may at any time request immediate payment of the entire balance remaining in the member's DROP account; or

(iii) Such other form of distribution, as is adopted by the Board and in accord with applicable provisions of the Internal Revenue Code.

(3) No distribution shall be made from a member's DROP account until the member terminates DROP participation.

(4) If a member dies while participating in DROP, the member's DROP account shall be paid pursuant to Sections 3-424(f) and 3-424(g)(2).

(h) **Termination of DROP Participation.** A member's participation in DROP shall automatically terminate upon the earliest occurrence of any of the following events:

(1) Completion of the member's designated DROP participation period; or

(2) Death of the member; or

(3) Approval by the Board of the member's application for a disability retirement; or

(4) Voluntary termination of a member's employment; or

(5) Involuntary termination of a member's employment, whether or not for cause, including layoffs or reductions in force and including the conclusion of any administrative or judicial appeals process.

(i) **General DROP Provisions.**

(1) The right is reserved at any time and from time to time, and retroactively if deemed necessary or appropriate, to amend in whole or in part any or all of the provisions relating to DROP. But no amendment shall be enacted which has the effect of decreasing the amount credited to a member's DROP account.

(2) The Board shall enact such rules and procedures as are necessary or appropriate to administer DROP.

(3) The Board shall issue annually to each DROP participant a statement of that member's DROP account balance.

(j) **Compliance with Applicable Provisions of the Internal Revenue Code and other Federal Laws.**

(1) It is intended that DROP shall not jeopardize the tax-qualified status of the System under the Internal Revenue Code. Full rights are reserved to modify this section to the extent necessary or appropriate to insure that DROP complies with applicable federal laws, regulations, and administrative rulings.

(2) Notwithstanding any other provision in this section, the DROP program shall be subject to the sections of the Internal Revenue Code applicable to governmental plans, as amended, and the regulations and rulings under those sections.

(k) **Employment Status During DROP Participation.** The employment status of a member electing to participate in DROP shall not be affected by that election.
(Added Ord. 97-66, § 1, eff. 12-18-97; Am. Ord. 2000-73, § 1, eff. 12-11-00; Am. Ord. 2001-72, § 11, eff. 11-10-01; Am. Ord. 2006-16, § 10, eff. 3-10-06; Am. Ord. 2011-1, § 19, eff. 3-7-11; Am. Ord. 2012-4, § 2, eff. 3-15-12; Am. Ord. 2021-014, § 4, eff. 5-17-21).

SEC. 3-425. RECIPROCITY BETWEEN THE FIRE AND POLICE RETIREMENT SYSTEM AND THE CALIFORNIA PUBLIC EMPLOYEES RETIREMENT SYSTEM.

(a) **Purpose.** The purpose of this section is to extend to the members of other public agency retirement systems which adopt similar reciprocal provisions into their retirement ordinances or plans pursuant to Sections 20351, 20353, 31840.2, or 45310.5 of the California Government Code or pursuant to the charter of a City or a City and county or pursuant to the authority vested in any other public agency of the state of California (hereinafter "reciprocal systems"), and which have entered into an agreement to establish a reciprocal retirement system with the California Public Employees' Retirement System, the rights in this Retirement System set forth in this section.

(b) **Limitations On Application Of This Section.**

(1) Subject to subsection (f), the provisions of this section shall only apply to a person who satisfies either of the following requirements:

(i) The person is a member of this Retirement System, terminates his or her employment with the City, and becomes a member of a reciprocal system within six months of such termination of employment; or

(ii) The person is a member of a reciprocal system, terminates his or her employment pursuant to which he or she was a member of such reciprocal system, and becomes a member of this Retirement System within six months of such termination of employment.

(2) Except as provided in subsection (c) below, the provisions of this section shall apply only to a member whose termination and entry into employment resulting in a change in membership from this Retirement System to a reciprocal system, or from a reciprocal system to this Retirement System, as provided in subsection (b)(1) above,

occurred after the effective date of February 18, 2002, specified in the agreement for reciprocal benefits between the Board of Administration of the Public Employees Retirement System and the Council of the City of Fresno.

(3) The provisions of this section relating to computation of average compensation shall apply to a member if such provisions would have applied had the member's termination and entry into employment occurred after the effective date of the agreement for reciprocal benefits.

(4) Persons entering the System from a reciprocal system shall be subject to the provisions applicable to the second tier of this Retirement System.

(c) **Benefits.** The following provisions shall apply to a member who meets the requirement of subsection (b):

(1) Notwithstanding any provision of this plan or a reciprocal system in the matter of vesting, the member shall have the right to elect to leave his or her accumulated contributions on deposit in the Retirement System irrespective of the amount of such contributions or the length of service credited to the member under this Retirement System. Such election shall be irrevocable while membership in the reciprocal system continues.

(2) For the purpose of the calculation of contribution rates of the City and the members, the age of entry for a person entering this Retirement System from a reciprocal system shall be such person's age at entry into the reciprocal system.

(3) The average monthly salary during any period of service as a member of a reciprocal system shall be considered compensation to a member of this Retirement System for the purpose of computing average compensation for such member if all of the following conditions are satisfied:

(i) The member has attained the age of fifty years; and

(ii) The member retires concurrently under both this Retirement System and the reciprocal system; and

(iii) At the time of retirement, the member is credited with such period of service under the reciprocal system.

(4) Solely for the purpose of meeting the minimum service requirements for qualification for benefits and retirement allowances under this Retirement System, service shall also include service as an officer or employee of a reciprocal system, if all of the following conditions are satisfied:

(i) The member has attained the age of fifty years; and

(ii) The member retires concurrently under both this Retirement System and the reciprocal system; and

(iii) The salary for service in the reciprocal system constitutes compensation of a member of this Retirement System for purposes of calculating average compensation.

(5) A member shall be retired for disability and receive a retirement allowance based on the service credited to the member at the time of retirement during any period in which the member receives a disability retirement allowance under a reciprocal system, subject to the following limitations:

(i) Such allowance shall not exceed an amount which when added to the allowance paid under the reciprocal system equals the allowance which would be paid for a nonservice-connected (nonindustrial) disability if all the member's service had been credited under the reciprocal system; and

(ii) Such allowance shall in no event be less than an annuity which is the actuarial equivalent of the member's contributions, whether or not the disability is for service-connected (industrial) reasons.

(6) The death benefits for a member who dies from nonservice-connected (nonindustrial) causes as a member of a reciprocal system shall not exceed an amount which when added to the death benefits paid for such member under the reciprocal system equals the maximum death benefit payable under that system, subject to the following limitations:

(i) Such death benefits shall be at least the amount of the member's accumulated contributions; and

(ii) If death is cause by service-connected (industrial) injury or disease in the reciprocal system, the death benefits shall be the amount of the member's accumulated contributions.

(d) **Information And Data.** On the request of a reciprocal system, the Board shall supply information and data necessary for administration of the reciprocal system as it is affected by membership in the service credited under this Retirement System.

(e) **Interpretation Of This Section.** Interpretations of the provisions of this section shall be made with reference to interpretations that have been made relative to the California Public Employees' Retirement System — 1937 Act County Employees' Retirement reciprocal provisions upon which these provisions are based.

(f) **Modification Of Rights.** All rights under this section are subject to modification as may be necessary to conform to amendments to the Public Employees' Retirement Law or the County Employees' Retirement Law of 1937 as provided in California Government Code Section 20353.
(Added Ord. 2002-4, § 1, eff. 2-18-02)

SEC. 3-426. RIGHTS OF DOMESTIC PARTNERS.

Full rights are reserved, at any time and from time to time and retroactively if deemed necessary or appropriate, to amend in whole or in part any and all provisions of this Article 4 relating to domestic partners. It is specifically intended that, if through the initiative process or otherwise, California law expands or reduces, rescinds or terminates the status and rights of domestic partners, whether current, surviving, or former, or the status and

rights of domestic partnerships, then conforming expansions, reductions, rescission, or termination shall be deemed to be incorporated into this article, including retroactively. It is further intended that the domestic partner provisions of this Article not jeopardize the tax-qualified status of the System under the Internal Revenue Code; full rights are reserved to modify or rescind those provisions to insure compliance with applicable federal laws, regulations, and administrative rulings.
(Added Ord. 2006-16, § 11, eff. 3-10-06).

SEC. 3-427. REFUND OF CONTRIBUTIONS.

(a) Should the service of a member in a status requisite for membership in the System be discontinued, except by death or retirement, the member shall be paid no less than six months after the date of discontinuance, and upon the member's demand, the member's accumulated contributions; provided that, if in the opinion of the Retirement Board, said member is permanently separated from service by reason of such discontinuance, the member shall be paid forthwith all of the member's accumulated contributions. In intervals between meetings of the Retirement Board, the Retirement Administrator shall act under this section, for and in lieu of the Board, by making payment of accumulated contributions in the same manner and with the same effect as if the conditions prescribed herein for the Board were prescribed instead for the Retirement Administrator. Such payments shall be reported to the Board at its next meeting.

(b) Any member upon re-entry to the Retirement System may within thirty days of re-entry elect to redeposit in the Retirement Fund, in one lump sum or in equal bi-weekly payments spread over a time period not to exceed five years, an amount equal to that which the member withdrew from the Retirement Fund at the member's last termination of membership, including the amount of additional interest, which would have been credited to the member's account had such contributions not been withdrawn. If a member elects to make repayments in equal bi-weekly payments but fails to complete the repayment schedule, the member shall only receive credit for the amount of service which is the actuarial equivalent to the amount of repayment actually made by the member. In the case of members electing to make repayment other than in one lump sum, interest shall be paid on the unpaid balance of the amount payable to the System under such an election, beginning on the effective date of such election at the rate of interest currently being used under the System. If a member does not make such a redeposit upon re-entry to the Retirement System the member shall re-enter as a new member without credit for any service. Notwithstanding the foregoing redeposit limitation there is an open one hundred twenty-day period beginning March 1, 2017, for the purpose of allowing any member who has re-entered service and has not elected to redeposit, to make or not make an election to redeposit in the Retirement Fund in accord with this subsection. The Retirement Board may also create an open thirty-day period for allowing an individual member to elect to redeposit in accordance with this subsection upon a finding that an employee has been inequitably denied an opportunity to redeposit due to financial hardship or other circumstances beyond the control of the employee.
(Added Ord. 2017-15, § 2, eff. 4-24-17)

ARTICLE 5 EMPLOYEES' RETIREMENT SYSTEM

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SEC. 3-501. DEFINITIONS.

The following words and phrases as used herein, unless a different meaning is plainly required by the context, shall have the following meanings:

(a) "Actuarial equivalent" shall mean a benefit of equal value when computed upon the basis of such mortality tables as shall be adopted by the Retirement Board, and regular interest.

(b) "Actuarial present value" shall mean the lump sum amount which is the actuarial equivalent of a future series of payments. The actuarial assumptions used in the determination of an actuarial present value shall be the interest rate and mortality tables last adopted by the Board prior to the time the actuarial present value is being determined.

(c) "Alternate payee" shall mean the spouse, domestic partner, former spouse, or former domestic partner of a member of this System who, as a result of petitioning a court of competent jurisdiction for the division of community property, has been awarded an interest in the benefits payable to a member. A spouse, domestic partner, former spouse, or former domestic partner who is awarded an interest in such benefits shall not be or become a member of this System by reason of such award or payment of such benefits.

(d) "Annual leave" referred to in this article, shall mean leave with pay under an annual leave program, which is accrued in lieu of sick leave and vacation leave.

(e) "Annuity" shall mean equal monthly payments for life derived from contributions made by a member.

(f) "Beneficiary" shall mean any person in receipt of a retirement allowance, a death benefit, or any other benefit from the Retirement System.

(g) "Board" shall mean "Retirement Board" as created in Section 3-505 of this article.

(h) "City service" shall mean service rendered as an employee of the city, other than as a fireman or policeman, for compensation, and for the purpose of the Retirement System a member shall be considered as being in the "city service" only while he is receiving compensation from the city for such service. When city service is a factor in the computation of allowances and other benefits hereunder, fractional years of such service shall be added to make complete years, and any remaining fractional year shall be included in the computation, unless only completed years are required by the context.

(i) The various types of compensation are as follows:

(1) "Compensation", as distinguished from benefits under Division 4 of the Labor Code of the State of California, shall mean the remuneration payable in cash by the city, plus the monetary value, as determined by the Council, or if the Council shall not have so determined, then by the Retirement Board, of board, lodging, fuel, laundry and other advantages allowed as remuneration by the city. For individuals who first became members in the System before July 1, 1996, there shall be no limit on the compensation taken into account in determining his or her benefits. For individuals who first became members in the System on or after July 1, 1996, the annual compensation of each member taken into account under the System for any year shall not exceed the maximum amount provided in Internal Revenue Code Section 401(a)(17). In applying this rule for individuals who first became members on or after July 1, 1996, the following special rules shall apply:

(i) Effective with respect to the plan years commencing on or after July 1, 1996, and before July 1, 2002, the maximum amount is $150,000 as adjusted for cost of living increases by the Secretary of the Treasury. Each subsequent year that maximum is subject to further adjustments for cost of living increases in accordance with regulations issued by the Secretary of the Treasury. Any such increases shall be automatically incorporated into this Code without the need for specifically amending this Code each time the maximum is adjusted.

(ii) Effective only for the 1996 plan, if any individual is part of the family of a highly compensated employee in the group consisting of the ten most highly compensated employees paid the greatest compensation by the city during the plan year, then such individual shall not be considered a separate employee. Compensation paid to such individual by the city shall be treated as if it were paid to the highly compensated employee. In applying this rule, the term "family" shall include only

the spouse of the highly compensated employee and any lineal descendants of the highly compensated employee who have not attained age nineteen before the end of the plan year and the term "highly compensated employee" shall refer to those employees defined in Internal Revenue Code Section 414(q).

(iii) If the provisions of subsection (ii) above are applied to any member and his or her family in the aggregate, the compensation counted for each aggregated employee shall be reduced pro rata to stay within the limit of subsection (i), except that if any family member is not participating in any qualified retirement plan sponsored by the city, then the compensation counted for that family member shall be reduced to zero before any other reductions are made under this subsection.

(iv) Effective with respect to plan years beginning on and after July 1, 2002, the annual compensation of a plan member which exceeds $200,000 (as adjusted for cost-of-living increases in accordance with Section 401(a)(17)(B) of the Internal Revenue Code) may not be taken into account in determining benefits or contributions due for any plan year. Annual compensation means compensation during the plan year or such other consecutive 12-month period over which compensation is otherwise determined under the plan (the determination period). The cost-of-living adjustment in effect for a calendar year applies to annual compensation for the determination period that begins with or within such calendar year. If the determination period consists of fewer than 12 months, the annual compensation limit is an amount equal to the otherwise applicable annual compensation limit multiplied by a fraction, the numerator of which is the number of months in the short determination period, and the denominator of which is 12. If the compensation for any prior determination period is taken into account in determining a plan member's contributions or benefits for the current plan year, the compensation for such prior determination period is subject to the applicable annual compensation limit in effect for that prior period.

(v) As used in this Section, the term "eligible member" means a person who first became a member of the retirement system prior to July 1, 1996. Pursuant to Section 13212(d)(3)(A) of OBRA '93, and the regulations issued under that Section, eligible members are not subject to the limits of Section 401(a)(17) of the Internal Revenue Code.

(2) "Compensation earnable" by a member shall mean the compensation as determined by the Retirement Board, which would have been earned by the member had he worked, throughout the period under consideration, the average number of days ordinarily worked by persons in the same grade or class of positions as the positions held by him during such period, and at the rates of pay attached to such positions. The compensation for any absence shall be based on the compensation earnable by him at the beginning of the absence, and that for such time prior to his first entering city service, as may be necessary to complete the three consecutive years required in the calculation of "final compensation," shall be based on the compensation earnable by him in the position first held by him in such service.

(3) "Final compensation" shall mean the highest average monthly compensation earnable by a member during any period of three consecutive years during his membership in the System, using the rate of pay in effect at the time of retirement (including, as to any member retiring on or after July 1, 1976, and prior to August 1, 1976, and as to any member retiring on or after July 1 and prior to August 1 of any fiscal year thereafter, any adjustment of such rate of pay made pursuant to a memorandum of understanding with a formally recognized employee organization approved by the Council prior to January 1 of that fiscal year) and calculated as follows: The compensation attached, as of the date of retirement, including such adjustment thereto as specified above, to the lowest position held during the three highest consecutive years plus one-thirty-sixth of the difference between it and the compensation attached to any higher position held during that period for each month and fraction thereof the higher position was held. For the purposes of this Code, periods of service separated by breaks in service may be aggregated to constitute a period of three consecutive years, if the periods of service are consecutive except for such breaks. If a break in service did not exceed six months in duration, time included in the break and compensation earnable during such time shall be included in computation of final compensation, but time included in the break which is in excess of six months and the compensation earnable during such excess time shall be excluded in computation of final compensation.

(4) When the compensation of a member is a factor in any computation to be made under this article, there shall be excluded from such computation any compensation based on overtime such as, but not limited to, differentials for holidays, any compensation payable, upon separation from city service, for unused accumulated vacation, for unused accumulated annual leave, and any bonus or award payable solely for achievement of proficiency in any skill and not based on any additional or higher duties performed or to be performed by the recipient thereof. "Overtime," for the purposes of this article, is the aggregate city service performed by an employee as a member in excess of the hours of work considered normal for employees on a full-time basis.

(5) When the compensation of a member is a factor in any computation under this article, there shall be included in such compensation:

(i) "Holiday Pay", defined to mean pay received by a member over and above the member's regular base pay, i.e., pay received in a typical paycheck for the member, due to working on a holiday in the payroll period to which the paycheck applies. Holiday Pay does not include holiday pay paid at an overtime rate;

(ii) "Administrative Leave Allowance" or "Pay in Lieu of Administrative Leave", defined to mean pay received by employees in lieu of base administrative leave. The term does not include pay received by employees in lieu of merit administrative leave;

(iii) "Miscellaneous Pay", defined to mean those items of miscellaneous pay included in pensionable compensation as of August 31, 2007, and, in addition, bilingual pay, court appearance standby pay, uniform allowance, educational incentive pay, certificate pay, and no other pay; and

(iv) "Vehicle Allowance", defined to mean payments to members for a vehicle allowance in the form of a flat monthly stipend. The term does not include vehicle allowance paid on the basis of cents per mile.

(6) When the compensation of a member is a factor in any computation to be made under this article, there shall be excluded from such computation:

(i) Premiums paid for employee medical, dental, prescription drug, vision, life, long-term disability insurance, or for professional dues or memberships or license renewal fees, which shall not be included as compensation for any retirement purpose, including but not limited to calculating service or disability retirement allowances or survivor continuances.

(ii) Cash-outs at retirement of accumulated leave balances shall not be included as compensation for any retirement purpose, including but not limited to, calculating service or disability retirement allowances or survivor continuances. Accumulated leave balances at the time an active employee enters DROP shall not be included as compensation for any retirement purpose, including but not limited to, calculating service or disability retirement allowances or survivor continuances.

(7) When Holiday Leave of a member is a factor in any computation to be made under this article, the Holiday Leave shall be determined pursuant to the settlement stipulation in *FORCE, et al v. City of Fresno Employees Retirement Board,* Fresno Superior Court Case No. 03 CECG 02595 HAC, effective August 31, 2007.

(j) "Continuous service" shall mean uninterrupted city service, except that discontinuance of city service from any cause whatever followed by re-entry into city service shall not be considered as a break in the continuity of service but the period of absence shall not count as city service, and except that any absence from city service while on military service shall not be considered as a break in city service and the period of such absence shall count as city service as provided in this article; but time during which a period otherwise has been or shall be absent, for any reason, from city service shall not be included in calculating any benefit under the Retirement System or in determining whether a member qualifies for retirement.

(k) The various types of contributions are as follows:

(1) "Accumulated contributions" shall mean accumulated normal contributions.

(2) "Accumulated normal contributions" shall mean the sum of all the normal contributions, deducted from the compensation of a member, standing to the credit of his individual account, together with regular interest thereon.

(3) "Normal contributions" shall mean contributions at the rates provided for in Section 3-523, without interest.

(4) "Contributions" shall mean normal contributions.

(l) The following definitions apply to domestic partnerships and to domestic partners:

(1) "Domestic partnership" shall mean (1) a registered domestic partnership that has been established by filing a Declaration of Domestic Partnership with the Secretary of State pursuant to Division 2.5 of the California Family Code; or (2) a legal union of two persons of the same sex, other than a marriage, that was validly formed in a jurisdiction other than California if such union is recognized as a domestic partnership pursuant to California Family Code Section 299.2.

(2) "Domestic partner" shall mean a person who has entered into a domestic partnership.

(3) "Former domestic partner" shall mean the person who had established a domestic partnership with a member, where that partnership has since been terminated pursuant to California law or other applicable law.

(4) "Surviving domestic partner" shall mean the person with whom a deceased member, at the time of death, had established a domestic partnership and who survives the member's death.

(m) "Disability," as a basis for retirement, shall mean permanent disability or disability of extended and uncertain duration, as determined by the Board upon the basis of competent medical and other information.

(n) "Employee" shall mean any person who occupied a position created by or which is under the jurisdiction of the city, whose compensation is paid by the city, and who is under the control of the city as to employment, direction, and discharge.

(o) "Service-connected" in reference to the disability of any member of this System shall mean disability which results from injury or disease arising out of and in the course of the member's employment with the city, and such employment contributes substantially to such disability.

(p) "Member" shall mean any person included in the membership of the Retirement System as provided in Section 3-515.

(q) "Pension" shall mean equal monthly payments for life derived from contributions made by the city as provided herein.

(r) "Prior service" shall mean city service rendered prior to June 1, 1939.

(s) "Regular interest" shall mean interest at the authorized rate as adopted by the Board and compounded, computed, and credited in the manner prescribed in Section 3-505, including such additional interest as the Board may declare from year to year as authorized under this article.

(t) "Plan year" shall mean the consecutive 12-month period beginning on July 1 and ending on June 30 of the following calendar year.

(u) "Limitation year" shall mean the calendar year.

(Rep. and Added Ord. 5313, 1958, based on former Section 2-801; Am Ord. 5666, 1959; Am. Ord. 6045, 1962; Am. Ord. 6062, 1962; Am. Ord. 6166, 1962; Am. Ord. 6395, 1964; Am. Ord.

6621, 1965; Am. Ord. 68-125, 1968; Am. Ord. 72-116, 1972; Am. Ord. 72-124, eff. 8-10-72; Am. Ord. 73-121, § 1, eff. 8-10-73; Am. Ord. 77-25, § 1, eff. 4-3-77; Am. Ord. 94-29, §§ 1, 2, eff. 5-27-94; Am. Ord. 96-41, § 3, eff. 6-28-96; Am. Ord. 2000-25, § 1, 4-24-00; Am. Ord. 2001-73, § 1, eff. 11-10-01; Am. Ord. 2006-17, § 1, eff. 3-10-06; Am. Ord. 2011-2, §§ 1, 2, eff. 3-7-11; Am. Ord. 2011-3, § 1, eff. 3-11-11; Am. Ord. 2012-22, § 2, eff. 1-21-13).

SEC. 3-502. EFFECT OF REDEFINITION OF FINAL COMPENSATION.

The definition of "final compensation," contained in Section 3-501(g)(3) as amended by Ordinance No. 72-116, adopted July 20, 1972, shall not be applied to increase or decrease any retirement allowance payable to or on account of any person who died or was retired as a member of the System prior to July 1, 1972.
(Added Ord. 72-124, 1972; Am. Ord. 95-40, § 1, eff. 6-23-95).

SEC. 3-503. GROUPS OF EMPLOYEES.

The various groups of employees shall be as follows, and the Retirement Board shall classify each employee who is eligible for membership in the Retirement System, in one of such groups:

(1) "Manual worker" shall mean any employee engaged upon duties requiring principally physical exertion, including among others, such positions as laborer, caretaker, janitor, mechanic, gardener.

(2) "Clerical or Supervisory worker" shall mean any employee engaged upon duties requiring principally mental exertion, including among others, such positions as clerk, deputy, inspector, foreman, etc.

(Rep. and Added Ord. 5313, 1958; based on former Section 2-801.1).

SEC. 3-504. CREATION OF RETIREMENT SYSTEM.

(a) The City of Fresno Employees Retirement System was created by Ordinance No. 2502, effective June 1, 1939, and said retirement system is continued in effect by this article. Retirement allowances being paid at the close of the day next preceding the effective date hereof, to persons whose retirements were effective prior thereto, shall be continued and paid in the same respective amounts to such persons, but such persons shall otherwise be subject to the provisions of this article. The mortality, service and other tables and the rates of contribution for members as recommended from time to time by the actuary and the valuations determined by him from time to time and approved by the Retirement Board in accordance herewith shall be final and conclusive, and the Retirement System shall be based thereon. The total amount, as determined by the actuary and approved by the Retirement System in accordance with this article, shall be paid into the Retirement Fund, hereinafter created, by the city during such year.

(b) The purpose of the System is to secure contributions from the City and from employees, and to distribute System assets only to members, retired members and their beneficiaries, pursuant to the System's plan of benefits and to pay reasonable expenses of administration.

(c) No part of the System's assets or income may be used for, or diverted to, purposes other than for the exclusive benefit of members, retirees, or their beneficiaries and no part of the System's assets or income may revert to the City.

(d) Forfeitures arising from termination of employment, death, or for any other reason, will not be applied to increase the benefits any member, retired member, or beneficiary would otherwise have received from the System at any time prior to the termination of the System, although the effect of forfeitures may be anticipated in determining the System's costs.

(e) Upon termination of the System or upon the complete discontinuance of contributions to the System, the rights of each employee to benefits accrued to the date of such termination or discontinuance are non-forfeitable.

(f) The City of Fresno Employees Retirement System is established as a qualified governmental defined benefit plan under the Internal Revenue Code of 1986, as amended from time to time (hereinafter referenced as "Internal Revenue Code" for purposes of this Article), pursuant to Sections 401(a) and 414(d) of the Internal Revenue Code or such other provision of the Internal Revenue Code as applicable and applicable Treasury regulations and other guidance.
(Rep. and Added Ord. 5313, 1958, based on former Sec. 2-802; Am. Ord. 6062, 1962; Am. Ord. 96-54, § 42, eff. 9-20-96; Am. Ord. 2001-15, § 1, eff. 3-26-01; Am. Ord. 2011-2, § 3, eff. 3-7-11).

SEC. 3-505. RETIREMENT BOARD CREATED. POWERS AND DUTIES. RETIREMENT ADMINISTRATOR TO BE SECRETARY. POWERS AND DUTIES OF RETIREMENT ADMINISTRATOR.

(a) The management and control of this System shall be vested in the Board which is hereby created. The Board shall be the successor to, and have the powers and duties of, the Pension Board created by Ordinance No. 3116, as amended, in addition to the powers and duties conferred by this article. The Board shall consist of the following five members:

(1) Two members who are city management employees appointed by the Mayor and approved by the Council;

(2) A member who is a manual worker, elected by members who are manual workers in an election conducted by the Board;

(3) A member who is a clerical or supervisory worker, elected by members who are clerical or supervisory workers in an election conducted by the Board;

(4) A qualified elector of the County of Fresno, not connected with the government of the City of Fresno, elected by the previously designated four members. If such person has been retired for service or disability, and is receiving or is entitled to receive a retirement allowance under the Fresno Fire and Police Retirement System, such person shall be elected by a unanimous vote of the previously designated four members. A person receiving or entitled to receive a retirement allowance under the Employees Retirement System shall not be eligible to serve on the Board.

(5) The four employee Board members shall serve without compensation. The four employee Board members shall determine whether, in what amount, and under what conditions a stipend for attending Board meetings and for participating in other activities directly related to the performance of Board duties is payable from the Retirement Fund to the Board member they elect.

(b) The Board, in conjunction with the Fire and Police Retirement Board, shall appoint and direct a retirement administrator who shall be a member of the City of Fresno unclassified service; shall serve at the Boards' pleasure; shall report to the Boards; shall administer the retirement office and its financial affairs; shall appoint, suspend, and remove subordinate employees subject to the Civil Service System provisions of the City of Fresno Charter and the Municipal Code; and shall perform such other administrative duties as the Boards require. The Retirement Administrator shall serve as the Secretary of the Board without additional compensation.

(c) The Board shall, when necessary, employ a consulting actuary, who shall be a person skilled by training and experience, in both the technical and administrative features of retirement systems. The Board may employ or contract for professional or consulting services, including legal services, to carry out and effect the functions of the Board.

(d) The Board shall have the sole power and authority to hear and determine all facts pertaining to applications for and awards of any benefits under the System, or any matters pertaining to the administration thereof.

(e) As of June 30, 1956, and thereafter at intervals of not to exceed three years, the Board shall make an actuarial investigation into the mortality, service, and compensation experience of the members and beneficiaries, and further, shall make an actuarial valuation of the assets and liabilities of the System. From time to time the Board shall determine the rate of interest being earned on the Retirement Fund. Upon the basis of all or any of such investigation, valuation and determination, the Board shall:

(1) Adopt for the System such interest rate and mortality, service and other tables, or any of such items, and any other actuarial assumptions, as shall be deemed necessary; and shall set forth the actuarial assumptions as adopted in its rules.

(2) Make such revision in the city's and member's rate of contribution under the System as shall be deemed necessary to comply with this article, provided that before such revised rates of contributions are adopted by the Board, a public hearing on the question of the proposed revision shall be held by the Board, and,

(3) Transfer to or from, as the case may be, either or both of (i) the accumulated investment income in excess of interest credited to contributions, and (ii) the accumulated contributions of the city held for the benefit of members on account of current and prior service, amounts necessary to bring amounts available, in the accounts required herein to be kept, to meet the obligation of the System on account of

benefits that have been granted, including the annuity portion of such benefits, to or on account of persons who have retired or died, on the basis of the mortality tables and interest rate adopted by the Board.

(f) The Board shall determine the city service rendered by members, and shall fix and may modify allowances for service and disability and fix other benefits. One year and proportionate parts thereof shall be credited on the basis of not more than two hundred fifty nor less than two hundred twenty days of city service rendered by per diem employees, and on the basis of ten months or more of city service rendered by monthly employees, but not more than one year shall be credited for all service in any fiscal year. Time during which a member was or shall be absent from city service without pay shall not be allowed in computing service except as provided in this article. Time during which a member is absent with compensation shall be credited as service in the same proportion that such compensation bears to the compensation earnable by the member in full-time city service.

(g) The Retirement Administrator shall credit contributions of members, of beneficiaries and of the city with interest, at the rate adopted by the Board from time to time in the manner provided in this section, compounded on June 30 of each year, and computed and credited as the Board shall prescribe. The Board, however, at the end of each fiscal year, may credit to all contributions held in the Retirement Fund at the end of such fiscal year such additional interest as it may deem proper in the light of the earnings on the Retirement Fund during such fiscal year; provided, that the total interest credited to contributions during any fiscal year shall not exceed the earnings on the Retirement Fund during that year; and provided further, that interest at the rate adopted by the Board pursuant to this section, compounded annually, shall be used in the calculation of benefits under any mortality table adopted by the Board, regardless of any additional interest allowed on contributions under this subsection (g).

(h) The Retirement Administrator shall keep in convenient form such data as shall be necessary for the actuarial valuation of the System, and, in addition to such other records and accounts as the Board may require, shall keep such records and accounts as shall be necessary to show at any time:

(1) The total accumulated contributions of members;

(2) The total accumulated contributions of retired members less the annuity payments made to such members;

(3) The accumulated contributions of the city held for the benefit of members on account of service credited to members;

(4) All other accumulated contributions of the city, which shall include the amounts available to meet the obligation of the city on account of benefits that have been granted and on account of prior service of members.

(i) Credit for prior service shall be granted to each member who has rendered such service as defined herein and who entered the Retirement System on or before June 1, 1939, or who enters thereafter, provided that prior service rendered prior to a discontinuance of city service followed by re-entrance into city service after the elapse of more than one year shall not be

credited. However, prior service so credited shall be for the basis for a retirement allowance or benefit as provided herein only if membership continues unbroken until retirement on a retirement allowance or until granting of such other benefit, provided that a termination of membership by the withdrawal of contributions followed by the re-deposit of such contributions upon re-entrance into city service shall not constitute a break in membership. (Orig. Ord. 4789; Rep. and Added Ord. 5313, 1958; Am. Ord. 5666, 1959; Am. Ord. 6030, 1961; Am. Ord. 68-125, 1968; Am. Ord. 73-91, § 2, eff. 7-8-73; Am. Ord. 76-50, § 1, eff. 7-4-76; Am. Ord. 84-43, § 1, eff. 5-4-84; Am. Ord. 85-167, § 3, eff. 11-239-85; Rep. and Added Ord. 90-54, §§ 1, 2, eff. 7-13-90; Am. Ord. 95-40, § 2, eff. 6-23-95; Am. Ord. 96-54, §§ 43—47, eff. 9-20-96; Am. Ord. 2001-15, § 2, eff. 3-26-01; Am. Ord. 2001-49, § 1, eff. 7-3-01; Am. Ord. 2005-85, § 1, eff. 9-25-05).

SEC. 3-506. ABSENCES ON MILITARY SERVICE.

(a) It is the intent of this section to comply with the reemployment of members from military service as set forth in section 1101 of the Charter of the City of Fresno; in the Uniformed Services Employment and Reemployment Rights Act (USERRA), codified as Chapter 43 of Title 38 of the United States Code; and in section 414(u) of the Internal Revenue Code. Notwithstanding any provision of this article to the contrary, contributions, benefits, and credit for service with respect to military service shall be provided in accordance with section 414(u) of the Internal Revenue Code.

(b) Any member absent on military service, who returns to city service not later than one hundred eighty days after the member's honorable discharge from such service (unless that period is extended by USERRA), shall receive credit for the time of the absence as service in the same manner as if the member had not been absent. Such member shall not be required to contribute to the Retirement System for the time of such absence (unless that period is extended by USERRA), and the member's rate of compensation during such absence, for purposes of the System, shall be the same as the member's rate immediately prior to the beginning of such absence. This section shall be applied retroactively to members in city service who were absent on military service prior to the effective date of this ordinance.

(c) Military service means the performance of duty on a voluntary or involuntary basis, including active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, and attending a fitness-for-duty examination, in the Armed Forces, the Army or Air National Guard, the commissioned corps of the Public Health Service, or any other category of persons designated by the President of the United States in time of war or emergency.

(d) The city's liability under the System for benefits based on service so credited, shall be included in the liabilities which are used as the basis for the city's current service rate of contribution or its prior service annual installment, as the case may be, at their periodical determination as required by this article.

(e) Effective with respect to deaths occurring on or after January 1, 2007, while a member is performing qualified military service (as defined in chapter 43 of title 38, United States Code), to the extent required by Section 401(a)(37) of the Internal Revenue Code, survivors of

a member, are entitled to any additional benefits that this Code would provide if the member had resumed employment and then died, such as accelerated vesting or survivor benefits that are contingent on the member's death while employed. In any event, a deceased member's period of qualified military service must be counted for vesting purposes.

(f) Beginning January 1, 2009, to the extent required by Section 414(u)(12) of the Internal Revenue Code, an individual receiving differential wage payments as defined under Section 3401(h)(2) of the Internal Revenue Code from an employer shall be treated as an employee of the employer making the payment, and the differential wage payment shall be treated as compensation for purposes of applying the limits on annual additions under Section 415(c) of the Internal Revenue Code. This provision shall be applied to all similarly situated individuals in a reasonably equivalent manner.
(Added Ord. 5313, 1958, Based on former Sec. 2-804; Am. Ord. 5666, 1959; Am. Ord. 2002-37, § 1, eff. 8-22-02; Am. Ord. 2011-2, § 4, eff. 3-7-11).

SEC. 3-507. PROPOSED AMENDMENTS TO BE SUBMITTED TO RETIREMENT BOARD.

No amendment or other modification of the Fresno City Employees Retirement System ordinance, as now existing and as hereafter amended, shall be made by the Council, unless such amendment or other modification shall be previously submitted to the Retirement Board for its consideration. (Added Ord. 5313, 1958, Based on former Sec. 2-805; Am. Ord. 96-54, § 48, eff. 9-20-96).

SEC. 3-508. ESTIMATES OF AGE AND SERVICE.

If it shall be impracticable for the Retirement Board to determine from the records the length of service, the compensation or the age of any member, the said Board may estimate, for the purposes hereof, such length of service, compensation or age. (Added Ord. 5313, 1958, Based on former Sec. 2-806).

SEC. 3-509. BENEFITS EXEMPT FROM EXECUTION.

The right of a person to a pension, an annuity, a retirement allowance, or the return of contributions, the pension, annuity, or retirement allowance itself, any optional benefit, or any other right or benefit accrued or accruing to any person under the provisions hereof and the moneys in the fund created herein, shall not be subject to execution, garnishment, attachment, or any other process whatsoever, and shall be unassignable; provided, however, that the right of any member to the return of contributions upon his permanent separation from the city service may be assigned by such member to any credit union in which eligibility for membership is limited to persons employed or formerly employed by the city, as collateral for any loan made by such credit union directly to such member; and provided further, that no such assignment by a member to a credit union shall be deemed a waiver by such member of his right, under any provision of this article, to allow his accumulated contributions to remain in the Retirement Fund. Assignments permitted hereunder shall be deemed acknowledged by the Board upon the filing thereof with the Retirement Administrator, but neither the city, its

officers and employees nor the Board, its members and employees shall be liable to any credit union for any loss or damage on account of failure for any reason to give effect to any such assignment. (Added Ord. 5313, 1958, Based on former Sec. 2-807; Am. Ord. 6396, 1964; Am. Ord. 96-54, § 49, eff. 9-20-96).

SEC. 3-510. TIME TO APPLY FOR BENEFITS.

Proceedings before the Retirement Board for the collection of benefits provided under the Retirement System, upon the death of a member or beneficiary, must be commenced within one year from the date of death, or from the date of appointment of a guardian or trustee of the person to whom the said benefits would be payable, if such person is incompetent or under twenty-one years of age. (Added Ord. 5313, 1958, based on former Sec. 2-808).

SEC. 3-511. APPLICATION FOR REHEARING.

Any applicant, or in the event of the death or incompetency of the applicant, any person legally qualified to act for said applicant, may file an application for rehearing of any application, whether for a benefit hereunder or retirement, within thirty days after written notice of the determination by the Retirement Board has been sent by mail to the applicant or his attorney of record, upon any of the following grounds:

(1) That the Retirement Board acted without and in excess of its powers;

(2) That the order, decision, or award was procured by fraud;

(3) That the evidence does not justify the determination of said Retirement Board;

(4) That the applicant has discovered new evidence material to him which he could not, with reasonable diligence, have discovered or procured at the hearing. (Added Ord. 5313, 1958, based on former Sec. 2-809; Am. Ord. 5666, 1959).

SEC. 3-512. DETERMINATION OF APPLICATION FOR REHEARING.

The determination of the Retirement Board on any application for rehearing shall be made within sixty days after the filing thereof, or said application shall be deemed denied and such determination shall be final and conclusive and it shall have no jurisdiction to entertain any subsequent application regarding the same matter. (Added Ord. 5313, 1958; based on former Sec. 2-810).

SEC. 3-513. CREATION AND CONTROL OF RETIREMENT FUND.

(a) A trust fund is hereby created, to be known as the Fresno City Employees Retirement Fund and to consist of all the moneys paid into it as herein provided, whether such moneys shall take the form of cash, securities or other assets. The Retirement Board shall have exclusive control of the administration and investment of the said fund.

(b) Reserved.

(c) Reserved.

(d) Reserved.

(e) Except as provided in this article, no member or employee of the Retirement Board shall have any interest, direct or indirect in the making of any investment, or in the gains or profits accruing therefrom. No member of the Retirement System and no member or employee of the said Board, directly or indirectly, for himself or as an agent or partner of others, shall borrow any of its funds or in any manner use the same except to make such current and necessary payments as are authorized by said Board; nor shall any member or employee of the Board become an indorser or surety or become in any manner an obligor for moneys invested by the Board. Effective as of July 1, 1989, a member or employee of the Retirement Board shall not engage in a transaction prohibited by Section 503(b) of the Internal Revenue Code.

(f) In the exercise of its control of the administration and investment of the Retirement Fund, the Retirement Board may by resolution specify certain classes or kinds of securities in which the moneys in the Retirement Fund may be invested and may authorize the Retirement Administrator to:

(1) Invest moneys in the Retirement Fund, from time to time as such moneys become available, in securities of any of the classes or kinds so specified, and

(2) Surrender matured securities in the Retirement Fund upon their maturity and reinvest the proceeds in securities of any such specified classes or kinds.

(g) The Retirement Fund may participate under Section 401(a)(24) of the Internal Revenue Code in a qualified group trust that meets the requirements of Section 401(a) of the Internal Revenue Code in accordance with Revenue Ruling 81-100, as amended by Revenue Ruling 2004-67.

(Added Ord. 5313, 1958, based on former Sec. 2-811; Am. Ord. 6395, 1964; Am. Ord. 96-54, §§ 50—55, eff. 9-20-96; Am. Ord. 2011-2, §§ 5, 6, eff. 3-7-11).

SEC. 3-514. INVESTMENTS.

(a) The Board is authorized to acquire every kind of property, real, personal or mixed, and every kind of investment, specifically including, but not by way of limitation, corporate obligations of every kind and stocks, preferred or common, which persons of prudence, discretion and intelligence acquire for their own account.

(b) In investing, reinvesting, purchasing, acquiring, exchanging, selling and managing the assets of the Retirement Fund, the Board shall exercise the judgement and care, under the circumstances then prevailing, which persons of prudence, discretion and intelligence, acting in a like capacity and familiar with such matters, would use in the conduct of an enterprise of like character and with like aims. In addition, the Board shall diversify the investments of the Retirement Fund in order to minimize the risk of large losses, unless under the circumstances it is clearly prudent not to diversify.

(c) The Board may by resolution adopt rules and regulations to carry out the provisions of this section and to govern procedures of the Board in the management of the assets of the Retirement Fund.

(d) Should an investment manager or investment advisor be retained under contract to provide investment management or investment advisory services with respect to the purchase, sale or exchange of stocks, shares and securities to be purchased or purchased with moneys in the Retirement Fund, the Board may by contract authorize such investment manager or investment advisor to purchase, sell or exchange stocks, shares and securities without prior approval by the Board of any such transaction; provided, however, that any such contract shall provide that the investment manager or investment advisory shall comply with investment guidelines adopted by the Board by resolution. (Added Ord. 69-23, 1969; Am. Ord. 74-13, § 1, eff. 3-3-74; Am. Ord. 77-42, § 2, eff. 5-27-77; Am. Ord. 82-52, § 1, eff. 6-18-82; Am. Ord. 85-119, § 2, eff. 9-13-85; Am. Ord. 90-11, § 1, eff. 3-2-90; Am. Ord. 92-27, § 3, eff. 5-22-92; Am. Ord. 93-64, § 3, eff. 11-12-93; Am. Ord. 96-54, §§ 56—58, eff. 9-20-96).

SEC. 3-515. PERSONS INCLUDED.

With the exception of those employees who are excluded from membership as provided in Section 3-518, all employees shall continue to be or shall become members of the Retirement System as follows:

(1) Every member of the Retirement System who became a member on or before July 1, 1952 shall continue to be such a member.

(2) Every employee who enters city service after July 1, 1952 and prior to May 31, 1965, shall become a member of the Retirement System upon such entry provided such employee is certified from a Civil Service list for permanent employment; otherwise such employee shall become a member of the Retirement System upon completion of six months of city service uninterrupted by a break of more than one month.

(3) Every employee who enters city service on and after June 1, 1965, shall become a member of the System upon such entry. (Added Ord. 5313, 1958, based on former Sec. 2-812; Am. Ord. 6621, 1965; Am. Ord. 2001-32, § 1, eff. 5-10-01).

SEC. 3-516. CITY EMPLOYEES FORMERLY EMPLOYED BY FRESNO REDEVELOPMENT AGENCY; CREDIT FOR SERVICE.

Any other provision of this article to the contrary notwithstanding, any person who, on May 2, 1976, was employed by the Fresno Redevelopment Agency ("Agency") and who thereafter entered the city service as a consequence of the consolidation of that Agency and the city, shall be given credit for his total continuous service with both the Agency and the city for the purpose of satisfying any minimum service requirement set forth in this article; provided, however, that the retirement allowance or other benefit payable to or on behalf of such person under this article shall be computed based upon actual years of city service only, and not upon any combination of Agency and city service. (Added Ord. 76-71, § 1, eff. 8-29-76).

SEC. 3-517. CITY EMPLOYEES FORMERLY EMPLOYED BY COUNTY WATER WORKS DISTRICTS; CREDIT FOR SERVICE.

Any other provision of this article to the contrary notwithstanding, any person who, on October 1, 1988, was employed by the County Water Works Districts ("Districts") and who

thereafter entered the city service as a consequence of the consolidation of the Districts and the city, shall be given credit for his/her total continuous service with both the Districts and the city for the purpose of satisfying any minimum service requirement set forth in this article; provided, that the retirement allowance or other benefit payable to or on behalf of such person under this article shall be computed based upon actual years of city service only, and not upon any combination of District and city service. (Added Ord. 89-2, § 1, eff. 2-3-89).

SEC. 3-518. PERSONS EXCLUDED.

The following employees shall not be members of the Retirement System:

(1) Elective officers and non-employee members of Boards and Commissions;

(2) Any persons not otherwise members who are appointed to limited positions or interim positions, appointed on a provisional basis, or appointed to intermittent or part-time positions (as these items are defined in Article 16 of Chapter 2 of this Code, in its present form or as it may be amended in the future);

(3) The City Manager, City Attorney, City Clerk, Council Assistant or Department Head otherwise eligible for membership but not already a member because retirement benefits differ from those contained in this Article have been established for them separately by resolution of the Council of the City of Fresno; and

(4) Employees of the Fire or Police Departments or the Airport Public Safety Division, who are firefighters or police officers or public safety officers/supervisors as defined in Article 3 or Article 4 of this Chapter.

The exclusion heretofore of persons from membership, in accordance with this section, is hereby validated and confirmed. (Added Ord. 5313, 1958, based on former Sec. 2-183; Am. Ord. 5474, 1959; Am. Ord. 5666, 1959; Am. Ord. 95-39, § 3, 6-23-95; Am. Ord. 2001-32, § 2, eff. 5-10-01).

SEC. 3-519. UNCLASSIFIED EMPLOYEES.

Any person while employed by the city, who was considered to be excluded by ordinance from membership in the Retirement System, because the person was in a full-time position in the unclassified service, as defined by the city's Civil Service rules or in a full-time position listed in section 3-518(2), shall receive credit for service rendered by the person while in such unclassified service or position and was so considered, with the same effect as if the person had never been considered not to be a member, provided that the person becomes a member of the Retirement System without a break in service. Each such employee, prior to receiving credit for such service, shall pay to the System, at times and in a manner fixed by the Retirement Board, but in any event prior to retirement, (1) contributions equal to the contributions the employee would have been made if the employee had never been so considered not to be a member, plus (2) interest at the rate fixed by the board hereafter, compounded monthly, on contributions so payable, which remain unpaid, from time to time. (Added Ord. 5313, 1958, based on former Sec. 2-813.1; Am. Ord. 5666, 1959; Am. Ord. 2001-32, § 3, eff. 5-10-01).

SEC. 3-520. DUTY OF DEPARTMENT HEAD.

It shall be the duty of the head of each office or department to give immediate notice in writing to the Retirement Administrator of the change in status of any member in his office or department resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal, death, or other cause. The head of each office or department shall furnish such other information concerning any member as the Retirement Administrator may require. (Added Ord. 5313, 1958, based on former Sec. 2-814; Am. Ord. 96-54, § 59, eff. 9-20-96).

SEC. 3-521. DUTY OF MEMBER OR BENEFICIARY.

Each member and beneficiary shall be subject to all the provisions hereof and to all the rules and regulations adopted by the Retirement Board, and shall furnish to the Board such information affecting his status as a member or beneficiary of the system as the Board may require. (Added Ord. 5313, 1958, based on former Sec. 2-815).

SEC. 3-522. MEMBERSHIP CEASES—WHEN.

Should any member die or retire, or should he be paid more than one-quarter of his accumulated normal contributions, he shall thereupon cease to be a member. (Added Ord. 5313, 1958, based on former Sec. 2-816; Am. Ord. 5666, 1959).

SEC. 3-523. NORMAL CONTRIBUTIONS OF MEMBERS.

The normal rates of contribution of all members shall be those adopted by the Retirement Board and shall be based on nearest age at time of entry into the Retirement System. Such normal rate for each member shall be such as will provide, on the basis of experience as interpreted by the actuary, an average annuity at age fifty-five equal to one-third (1/3) of (1) one-fiftieth (1/50) of such member's final compensation, for each of the first twenty-five years of service as a member, plus (2) one one-hundredth (1/100) of such final compensation, for each year of service in excess of the first twenty-five years of such service, not including automatic continuance to dependents. The actual amount of annuity receivable, however, by a member upon retirement for service shall be the actuarial equivalent of the member's accumulated contributions as provided in Section 3-541 hereof. The rates so adopted shall remain in full force and effect until revised or changed by the Retirement Board in the manner provided in Section 3-504. (Added Ord. 5313, 1958, based on former Sec. 2-817; Am. Ord. 6809, 1966; Am. Ord. 6809, 1966; Am. Ord. 69-60, 1969; Am. Ord.79-71, § 1, eff. 2-23-79)

SEC. 3-524. PAYMENT OF CONTRIBUTIONS OF MEMBERS BY CITY, APPLICATION OF COLLECTIVE BARGAINING LAWS.

Notwithstanding any other provision of law, the city shall pay all of the contributions required to be paid by all members. Such payments shall be reported as employer-paidl", "picked-up" contributions under Section 414(h)(2) of the Internal Revenue Code, although designated as normal contributions under this Code, and shall be credited to the members' accounts. Such payments shall be made in lieu of a like amount of salary otherwise payable to

all members, so that the member's compensation shall in no way be affected by such payments. Notwithstanding any provision to the contrary, a member shall not be permitted to opt out of this Section or to receive the contributed amounts directly instead of having them paid by the city to the City of Fresno Employees Retirement System.

Nothing in this section shall be construed to limit the authority of the city to periodically increase, reduce, or eliminate the payment by the city of all or a portion of the contributions required to be paid by the members.

The provisions of this section shall be subject to any applicable collective-bargaining laws. (Added Ord. 86-39, § 2, eff. 4-18-86; Am. Ord. 2011-2, § 7, eff. 3-7-11).

SEC. 3-525. RATES FOR CERTAIN AGES.

The normal rate of contribution established for age fifty-four shall be the rate for any members who have attained a greater age before entrance into the Retirement System. In like manner, the normal rate of contribution established for age twenty shall be the rate for any member who enters the Retirement System at a lesser age. (Added Ord. 5313, 1958, based on former Sec. 2-818; Am. Ord. 69-60, 1969).

SEC. 3-526. NORMAL CONTRIBUTIONS OF MEMBER UPON RE-ENTRY.

Upon a member's re-entry into city service from service or disability retirement, or following his election to allow his accumulated contributions to remain in the Retirement System, his normal rate of contribution shall be based upon an age determined by adding the number of completed years of his absence from city service to the age upon which his normal rate of contribution as it was prior to said retirement or election, as the case may be, was based. (Added Ord. 5313, 1958, based on former Sec. 2-819; Am. Ord. 5666, 1959).

SEC. 3-527. COLLECTION OF MEMBER'S CONTRIBUTIONS.

The Retirement Board shall certify to the head of the proper office or department and the Controller the normal rate of contribution for each member provided for in Section 3-523. The head of such office or department or the Controller shall apply such rate of contribution to the compensation of the member to be contributed by each member, and shall furnish immediately to the Retirement Board a copy of each and every such payroll; and each of said amounts shall be deducted by the Controller and shall be deposited together with regular interest, to the individual account of the member for whom the contribution was made. The Controller, however, may accept cash payments by any member of amounts necessary to correct or adjust the contribution account of such member, the amount so accepted to be deposited and credited in the same manner as if deducted on a payroll. Every member shall be deemed to consent and agree to the contribution made and provided for herein, and shall receipt in full for his salary or compensation, and payment less said contribution shall be a full and complete discharge and acquittance of all claims and demands whatsoever, for the services rendered by such

person during the period covered by such payment, except his claims to the benefits to which he may be entitled under the provisions hereof. (Added Ord. 5313, 1958, based on former Sec. 2-1820).

SEC. 3-528. CORRECTION OF ERRORS.

If more or less than the correct amount of contributions required by members, or the city, is paid, proper adjustment shall be made in connection with subsequent payments, or such adjustments may be made by direct cash payments between the members, or the city, and the Board. Adjustments to correct any other errors in payments to or by the Board, including adjustments of contributions, with interest, which are found to be erroneous as the result of corrections of dates of birth, may be made in the same manner. Adjustments to correct overpayment of a retirement allowance may also be made by adjusting the allowance so that the retired person or the retired person and his beneficiary, as the case may be, will receive the actuarial equivalent of the allowance to which the member is entitled. Underpayments or delayed payments or corrected payments or similar adjustments to a member or person shall include interest, where appropriate, at the interest rate adopted by the Board. (Added Ord. 5666, 1959; Am. Ord. 95-40, § 3, eff. 6-23-95).

SEC. 3-529. CITY CONTRIBUTIONS FOR CURRENT SERVICE.

(a) There shall be paid into the Retirement Fund, by contributions of the City, amounts necessary to pay all pensions, other benefits allowable under the Retirement System to members on account of current services and not provided by members' accumulated contributions derived from the normal rates of contribution provided for in Section 3-523, and all administrative costs as set forth in Section 3-532. The Board shall annually apply the city's current service rate of contributions as determined by the actuary and approved by the Board, to the aggregate amount of members' compensation earned, or (with respect to members absent in military service and either themselves contributing or having contributions made for them by the city) members' compensation earnable during said month and shall certify the result of such application to the Controller segregated according to compensation paid or payable from:

(1) Funds of operating public utilities;

(2) Bond funds not included under preceding item (1);

(3) Other special funds;

(4) All other sources.

(b) There shall be paid to the Retirement Fund from each of the funds listed above, an amount equal to the amount certified by the Board as required by this section. The Controller shall transfer the amount certified with respect to all other sources as set forth in item (4) above, to the Retirement System from the budget appropriations of the Retirement Fund for the then fiscal year. Nothing in this section, however, shall prevent the determination of the amount of city's contributions required to be transferred from any particular fund, as being the

amount which bears the same ratio to the total city's contributions to be transferred, as the compensation paid to Retirement System members under such fund for the period in question, bears to total compensation paid to Retirement System members from all funds for said period.

(c) Any other provisions of this article to the contrary notwithstanding, the Board may provide for the funding over a period of thirty years of any deficit which may result to the Retirement System because of amendments of this article effected by Ordinance No. 69-60.
(Added Ord. 5313, 1958; Am. Ord. 69-60, 1969; Am. Ord. 91-49, § 1, eff. 6-7-91; Am. Ord. 96-54, § 60, eff. 9-20-96).

SEC. 3-530. CITY CONTRIBUTION FOR PRIOR SERVICE.

There shall be paid into the Retirement Fund, by contributions of the city, the amounts necessary to pay all pensions and all other benefits allowable under the Retirement System to members on account of prior service. The City shall contribute annually to the Retirement Fund for prior service at a rate determined by the System's actuary pursuant to the Board's actuarial funding policy, as it may be amended from time to time, that is in accord with Article 16, Section 17 of the California Constitution. The Controller shall transfer during each fiscal year to the Retirement Fund, from the budget appropriation for the then fiscal year, an amount equal to such annual contribution; provided, however, that any portion of such annual contribution which was payable on account of prior service of members rendered as employees of municipally-owned public utilities shall be paid from the funds of such public utility from which such prior service was rendered.
(Added Ord. 5313, 1958, based on former Sec. 2-822; Am. Ord. 6697, 1965; Am. Ord. 2013-11, § 1, eff. 5-31-13).

SEC. 3-531. CITY CURRENT SERVICE RATE OF CONTRIBUTION AND PRIOR SERVICE CONTRIBUTION.

Until revised by the Board on the basis of experience under the System, as determined in accordance with Section 3-505, the city's current service rate of contribution expressed in percentage of compensation paid to members shall be 11.18 per cent, and the annual installment required of the city to liquidate the present value of all amounts thereafter payable from the Retirement Fund on account of prior service shall be fifty-nine thousand one hundred and seventy dollars ($59,170). The rate of contribution and annual installment set forth in this section are based on the rates and tables used under the Fresno City Employees Retirement System on July 1957, and shall be adjusted by the Board in accordance with such tables and rates as the Board may adopt in accordance with Section 3-505.
(Added Ord. 5313, 1958, based on former Sec. 2-823; Am. Ord. 5666, 1959; Am. Ord. 96-54, § 61, eff. 9-20-96).

SEC. 3-532. ADMINISTRATIVE COSTS.

Costs related to the provision of administrative, professional, or consulting services performed by employees of the city for the benefit of the Retirement System, including but not limited to, clerical and other staff support and employee representation on the Retirement

Board, and the costs incurred whenever the Board employs or contracts for services pursuant to the provisions of Section 3-505(c), the cost of such services shall be considered a charge against the assets of the Retirement System.
(Added Ord. 5313, 1958, based on former Sec. 2-824; Am. Ord. 78-164, § 1, eff. 12-1-78; Am. Ord. 84-43, § 2, eff. 5-4-84; Am. Ord. 91-49, § 2, eff. 6-7-91).

SEC. 3-533. GUARANTY.

The payments of the city into the Fresno City Employees Retirement Fund, as provided in Sections 3-529 to 3-532 hereof, are hereby made obligations of the city. There shall be appropriated, in the budget for each fiscal year, such amounts as are necessary to make such payments, less the portions to be paid from the several funds set forth in the said sections, and the amounts so appropriated shall be provided for in the tax levy. Provisions shall be made for the payment from said several funds of such amounts as shall be necessary to meet the obligations of the city under the Retirement System on account of employees whose compensation is or has been paid from such funds.
(Added Ord. 5313, 1958, based on former Sec. 2-825; Am. Ord. 96-54, § 62, eff. 9-20-96).

SEC. 3-534. REFUND OF CONTRIBUTIONS.

(a) Should the city service of a member in a status requisite for membership in the System be discontinued, except by death or retirement, the member shall be paid no less than six months after the date of discontinuance, such part of the member's accumulated contributions as the member shall demand; provided that, if in the opinion of the Retirement Board, said member is permanently separated from city service by reason of such discontinuance, the member shall be paid forthwith all of the member's accumulated contributions, and provided also that the Retirement Board may in its discretion withhold for not more than one year after a member last rendered city service, all or part of the member's accumulated normal contribution if after a previous discontinuance of city service the member withdrew all or part of the member's accumulated normal contributions and failed to redeposit such withdrawn amount in the Retirement Fund as provided in this section. In intervals between meetings of the Retirement Board, the Retirement Administrator shall act under this section, for and in lieu of the Board, by making payment of accumulated contributions in the same manner and with the same effect as if the conditions prescribed herein for the Board were prescribed instead for the Retirement Administrator. Such payments shall be reported to the Board at its next meeting.

(b) Any member upon re-entry to the Retirement System may within thirty days of re-entry elect to redeposit in the Retirement Fund, in one lump sum or in equal bi-weekly payments spread over a time period not to exceed five years, an amount equal to that which the member withdrew from the Retirement Fund at the member's last termination of membership, including the amount of additional interest which would have been credited to the member's account had such contributions not been withdrawn. If a member elects to make repayments in equal monthly payments but fails to complete the repayment schedule, the member shall only receive credit for the amount of service which is the actuarial equivalent to the amount

of repayment actually made by the member. In the case of members electing to make repayment other than in one lump sum, interest shall be paid on the unpaid balance of the amount payable to the System under such an election, beginning on the effective date of such election at the rate of interest currently being used under the System. If a member shall not make such a redeposit upon re-entry to the Retirement System the member shall re-enter as a new member without credit for any service. The rate of the member's contribution for future

years shall be the normal rate provided for in Section 3-523 at the member's age of re-entry. If the member does make such redeposit, the member's rate of contribution for future years shall be based on an age determined by adding the number of completed years of the member's absence from membership in the System, to the age upon which the member's normal rate of contribution was based prior to such termination. In such event, the member's membership shall be the same as if unbroken by such last termination. Notwithstanding the foregoing redeposit limitation there is an open sixty-day period beginning June 1, 1987 for the purpose of allowing any member who has re-entered city service and has not elected to redeposit, to make an election to redeposit in the Retirement Fund in accord with this subsection. The Retirement Board may also create an open thirty-day period for allowing an individual member to elect to redeposit in accordance with this subsection upon a finding that an employee has been inequitably denied an opportunity to redeposit due to financial hardship or other circumstances beyond the control of the employee. (Added Ord. 5313, 1958; Am. Ord. 566, 1959; Am. Ord. 73-121, § 2, eff. 8-10-73; Am. Ord. 87-45, § 1, eff. 5-15-87; Am. Ord. 96-54, § 63, eff. 9-20-96; Am. Ord. 2006-8, § 1, 3-13-06).

SEC. 3-535. DEFERRED BENEFITS AFTER SEPARATION.

Any other provision in this Code to the contrary notwithstanding, if the city service of a member is discontinued by reason of resignation or discharge or by reason of lay-off or leave of absence deemed by the Board to have resulted in permanent discontinuance (and in such case, as of the date of the determination by the Board of such permanence), or if the disability retirement of a member is followed by cessation of the disability and by cancellation of the disability allowance, but the member does not re-enter city service, and the member is entitled to credit for five years of city service, the member shall have the right to elect within ninety days after the date upon which notice of said right is mailed by the System to the member's latest address on file in its office, whether to allow the member's accumulated contributions to remain in the Retirement Fund. Failure to make such election shall be deemed an irrevocable election to withdraw the member's accumulated contributions. A member having made such election may, at any time before the effective date of any deferred retirement allowance for which the member has qualified under this section, rescind the member's election in writing, and upon such rescission the member shall be paid forthwith the member's accumulated contributions. A member whose membership continues under this section is subject to the same age and disability requirements as apply to other members for service or for disability retirement, but the member is not subject to a minimum service requirement. After the qualification of such member by reason of age or disability the member shall receive a retirement allowance based upon the amount of the member's accumulated contributions and service standing to the member's credit at the time of retirement and on the city contributions held for the member, and calculated in the same manner as for other members, except that the provisions in this article for minimum retirement allowances do not apply to the member, unless the member meets such minimum service requirements. No death benefit shall be payable if the death of the member occurs on or after such election is made and before any

re-entry into city service, except as provided in Subsection (b) of Section 3-537. (Added Ord. 5313, 1958, based on former Sec. 2-827; Am. Ord. 5666, 1959; Am. Ord. 6621, 1965; Am. Ord. 98-60, § 1, eff. 9-19-98).

SEC. 3-536. DEFERRED BENEFITS AFTER ENTERING EXCLUDED CLASSIFICATION.

(a) Other provision in this Code to the contrary notwithstanding, the accumulated contributions of a member who has entered or enters a classification which is requisite for membership in the City of Fresno Fire and Police Retirement System shall remain in the Retirement Fund. A member whose membership continues under this section is subject to the same age and disability requirements except as provided in subsection (c) of this section, as apply to other members for service or for disability retirement, and the member is subject to a minimum service requirement of five years credited under this system and the Fresno Fire and Police Retirement System. After the qualification of such member for retirement by reason of service and age or disability, the member shall be entitled to receive a retirement allowance based upon the amount of the member's accumulated contributions and service standing to the member's credit at the time of retirement and on the city contributions held for the member, and calculated in the same manner as for other members, except that the provisions in this article for minimum retirement allowance do not apply to the member unless the member meets such minimum service requirements.

(b) Upon the death of such a member, while employed in such classification, a death benefit as described in Section 3-537 shall be payable, but computed upon the basis of compensation earnable by the member during the six months preceding the member's entry into such classification. The portion of such death benefit which is derived from contributions of the city, shall be reduced by an amount equal to the portion so derived, of any death benefit to which such member may be entitled, from the Fire and Police Retirement System.

(c) A member with accumulated contributions remaining in the Fire and Police Retirement Fund pursuant to Section 3-329 or 3-407, as applicable, of Article 3 and who retires for service or disability under the Fresno Fire and Police Retirement System, shall be retired under this System, for service or disability as the case may be, regardless of the member's age or service credited hereunder, but subject to the requirement in subsection (a) of at least five years of service under both Systems. If, however, the member is retired for service before attaining age fifty-five, the member's allowance shall be discounted from age fifty-five in the same manner that allowances of members retiring below age fifty-five are discounted according to Section 3-541. Such allowances shall be calculated as provided in this Article 5, except for the greater discount of the Service Retirement allowance, and except that the disability retirement allowances under the two Systems shall be combined for application of the provisions in Sections 3-413 and 3-547 relating to minimum allowances, and only one such minimum allowance shall be calculated on the basis of the combined credited service and the higher of the average compensation or final compensation. The minimum allowance so determined shall be prorated between the two Systems according to the credited service under such Systems.

(d) This section shall be applied retroactively to include persons who would have been subject to its provision if it had been in effect when they entered such classification.
(Added Ord. 5313, based on former Sec. 2-828; Am. Ord. 5666, 1959; Am. Ord. 69-60, 1969; Am. Ord. 95-40, § 4, eff. 6-23-95; Am. Ord. 98-60, § 2, eff. 9-19-98; Am. Ord. 2001-15, § 3, eff. 3-26-01).

SEC. 3-537. DEATH BENEFITS.

(a) Upon the death before retirement of a member while in city service, or within four months after the discontinuance of city service in a status requisite for membership in the System, or while physically or mentally incapacitated for performance of his duty, if such incapacity has been continuous from discontinuance of city service, the Retirement System shall be liable for a death benefit, which shall be paid to such person as the member has nominated or shall nominate by written designation duly executed and filed with the Retirement Board or, if the member has not designated such person or if the person so designated is not living at the time of payment, to the member's estate, and such death benefit shall consist of:

(1) His accumulated contributions, and in addition thereto,

(2) An amount derived from contributions of the city, equal to one-sixth of the compensation earnable by him during the six months immediately preceding his death, or the six months immediately preceding the last contribution made to the Retirement Fund, whichever is greater, multiplied by the number of completed years of service, not to exceed six, as a member of the System.

(b) Upon the death of a member who has discontinued city service in a status requisite for membership in the System, the Retirement System shall be liable, in the event the death does not qualify for the death benefit under subsection (a) of this section, for a limited death benefit consisting of his accumulated contributions only. Such benefit shall be paid to the member or to such person as the member has nominated or shall nominate by written designation duly executed and filed with the Retirement Board or, if the member has not designated such a person or if the person so designated is not living at the time of payment, to the member's estate.

(c) A member, or a beneficiary after the death of a member, may elect, by written designation duly executed and filed with the Retirement Board, to have the death benefit provided in this section paid in monthly or annual installments instead of in one lump sum, subject to such rules and regulations as the Board may adopt.

(d) A person, while a member or after retirement, shall have the right to revoke the nomination of a beneficiary made by him under the Retirement System, and to nominate a beneficiary in lieu thereof, all by written designation duly executed and filed with the Retirement Board, provided that his right shall not extend to beneficiaries nominated under Options 2 and 3, Section 3-554 hereof.
(Added Ord. 5313, 1958, based on former Section 2-829; Am. Ord. 5666, 1958; Am. Ord. 76-29, § 2, eff. 5-2-76).

SEC. 3-538. BENEFITS AT RETIREMENT.

(a) Upon retirement for service or disability a person shall be entitled to the retirement allowances specified in Sections 3-541 to 3-546 inclusive.

(b) No benefits shall be paid to any person, including the former spouse or former domestic partner of a member, prior to the retirement of the member. No reimbursement shall be made to a member who has not retired from city service and who is making payments, whether voluntarily or pursuant to court order, to a former spouse or former domestic partner which represent that former spouse's or former domestic partner's share of the member's retirement benefits, even though the retirement system would have paid the benefits due to the former spouse or former domestic partner if the member had at the time of the payments been retired. (Added Ord. 5313, 1958, based on former Section 2-830; Added Ord. 90-113, § 1, eff. 1-16-90; Am. Ord. 2006-17, § 2, eff. 3-10-06).

SEC. 3-539. EFFECT OF COMPENSATION BENEFITS ON OTHER BENEFITS.

The benefits payable under this System shall not be modified on account of any amounts paid to a beneficiary, as defined in this chapter, under Division 4 of the Labor Code of the State of California.
(Added Ord. 5313, 1958, based on former Section 2-831).

SEC. 3-540. SERVICE RETIREMENT.

Retirement of a member for service shall be made by the Retirement Board as follows:

(a) Any member may retire upon written application to the Retirement Board, stating what time the member desires to be retired; provided, that said member shall be credited, at the time so specified for the member's retirement, with five years of continuous service, and shall have attained the age of fifty-five years.

(b) Any member may retire upon written application to the Retirement Board provided that all the following conditions exist:

(1) The member is credited with five years of continuous service and has attained the age of fifty years; and

(2) The member consents in writing to the early retirement reduction provisions set forth in 3-541(4).

(c) The effective date of any retirement granted under this subsection shall be the day following the date of discontinuance of the member's city service.

(d) A member shall be 100% vested in his or her service retirement benefit upon the completion of five years of continuous service and shall be entitled to receive his or her unreduced service retirement benefit after the attainment of normal retirement age, which is age 55. A member shall be 100% vested in his or her accumulated contributions at all times. (Added Ord. 5313, 1958, based on former Section 2-832; Am. Ord. 5666, 1959; Am. Ord. 6045, 1962; Am. Ord. 67-133, 1968; Am. Ord. 69-60, 1969; Am. Ord. 79-37, § 1, eff. 3-30-79; Am. Ord. 95-40, §§ 6, 7, eff. 6-23-95; Am. Ord. 98-60, § 3, eff. 9-19-98; Am. Ord. 2007-105, § 1, eff. 1-28-08; Am. Ord. 2011-2, § 8, eff. 3-7-11).

SEC. 3-541. ALLOWANCE AT SERVICE RETIREMENT.

A member, upon retirement for service as provided in Section 3-540, shall receive a retirement allowance, which shall consist of the sum of the three following elements:

(1) The member's service retirement annuity, which is an annuity actuarially equivalent to the accumulated normal contributions of the member at the time of the member's retirement.

(2) The member's current service pension, which is a pension derived from the contributions of the City, sufficient, when added to the service retirement annuity that is derived from the accumulated normal contributions of the member at the date of retirement, and when also added to the prior pension of the member, to equal:

Two percent of the member's final compensation for each of the first twenty-five years of service (including both prior service and current service) for which the member is entitled to credit at the time of retirement, plus one percent of the member's final compensation for each year of the member's service (including both prior service and current service) in excess of twenty-five years, multiplied by the retirement age factor in the second column of the following Retirement Age Factor Table opposite the member's age at time of retirement, taken to the preceding completed quarter year:

RETIREMENT AGE FACTOR TABLE

Age of Retirement	Retirement Factor
55	1.000
55¼	1.005
55½	1.010
55¾	1.015
56	1.020
56¼	1.025
56½	1.030
56¾	1.035
57	1.040
57¼	1.045
57½	1.050
57¾	1.055
58	1.060
58¼	1.065
58½	1.070
58¾	1.075
59	1.080

Age of Retirement	Retirement Factor
59¼	1.085
59½	1.090
59¾	1.095
60	1.100
60-¼	1.110
60-½	1.120
60-¾	1.130
61	1.140
61-¼	1.150
61-½	1.160
61-¾	1.170
62	1.180
62-¼	1.190
62-½	1.200
62-¾	1.210
63	1.220
63-¼	1.230
63-½	1.240
63-¾	1.250
64	1.260
64-¼	1.270
64-½	1.280
64-¾	1.290
65	1.300

For retirement ages in excess of age 65, there shall be added 0.01 to the retirement age factor base of 1.300 for each completed quarter year in excess of age 65.

(3) The member's prior service pension, which is a pension derived from the contributions of the City, equal to:

Two percent of the member's final compensation for each of the first twenty-five years of "prior service" for which the member is entitled to credit at the time of retirement, plus one percent of the member's final compensation for each year of the member's "prior service" in excess of the first twenty-five years of such service, multiplied by the retirement age factor specified opposite the member's age at time of retirement, taken to the preceding quarter year, in the second column of the Retirement Age Factor Table which is set forth above.

(4) A member electing prior to January 1, 2008 an early retirement pursuant to section 3-540(b) shall have his or her retirement allowance calculated pursuant to sections 3-541(1), 3-541(2) and 3-541(3), and that allowance shall then be reduced by the applicable early retirement adjustment factor set forth below:

EARLY RETIREMENT ADJUSTMENT FACTORS

Age 54.75	.985
Age 54.50	.970
Age 54.25	.956
Age 54.00	.942
Age 53.75	.928
Age 53.50	.914
Age 53.25	.901
Age 53.00	.888
Age 52.75	.875
Age 52.50	.862
Age 52.25	.850
Age 52.00	.838
Age 51.75	.826
Age 51.50	.814
Age 51.25	.803
Age 51.00	.792
Age 50.75	.780
Age 50.50	.770
Age 50.25	.759
Age 50.00	.749

(5) With respect to elections for early retirement that are made on or after January 1, 2008, the Board, in conjunction with the Board's actuary, shall modify the early retirement adjustment factors so as to maintain the actuarial equivalence of a retirement allowance under this section 3-541(4) to a service retirement allowance under section 3-541(1)—(3).
(Added Ord. 5313, 1958, based on former Sec. 2-833; Am. Ord. 69-60, 1969; Am. Ord. 97-52, eff. 9-26-97; Am. Ord. 98-60, § 4, eff. 9-19-98; Am. Ord. 2007-105, § 1, eff. 1-28-08).

SEC. 3-542. RESERVED.

Editor's note—Ord. 2007-105, § 3, effective January 28, 2008, amended the Code by repealing former § 3-542. Former § 3-542 pertained to allowance at service retirement under age fifty-five, and derived from Ord. 67-133, 1968; Ord. 69-60, 1969; Ord. 98-60, effective September 19, 1998.

SEC. 3-543. RE-EMPLOYMENT OF RETIRED PERSONS.

(a) A person who has been retired under this system for service may be reinstated from retirement by the Board as provided in this section, and thereafter may be employed by the city in accordance with the laws governing such employment, in the same manner as a person who has not been so retired. Such reinstatement shall be based upon the retired member's application to the Board for reinstatement.

(b) When any such person is reinstated from retirement under this section, the person's retirement allowance shall be cancelled forthwith, and the person shall become a member of this System as of the date of reinstatement. The person's individual account shall be credited with an amount which is the actuarial equivalent of the person's annuity at the date of reinstatement, not to exceed the amount of the person's accumulated contributions as it was at the date of his retirement. The person's future rate of contributions and the person's retirement allowance on subsequent retirement shall be determined in accordance with the provisions of this article.
(Added Ord. 5313, 1958, based on former Sec. 2-834; Am. Ord. 2002-40, § 1, eff. 9-3-02; Am. Ord. 2012-5, § 2, eff. 3-15-12).

SEC. 3-544. CURRENT SERVICE PENSION OF REINSTATED MEMBER.

(a) The current service pension of any member reinstated from service retirement, upon his subsequent service retirement, shall be the sum of (1) a current service pension calculated on the basis of service rendered after such reinstatement and in accordance with Section 3-541, plus (2) his current service pension as it was prior to his reinstatement adjusted according to any change in the provisions governing the calculation of such pensions, made after such reinstatement and applicable to pensions being paid at the date of the change; provided, that such subsequent retirement occurs before he renders after his reinstatement at least one year of city service credited under this System; otherwise, in lieu of (2), a current service pension based on current service rendered prior to such reinstatement, but calculated under Section 3-541, (i) on the basis of an age, taken to the preceding completed quarter year but not less than fifty years, and determined by deducting from his age at his subsequent retirement, the aggregate time during which he was under retirement, and (ii) on the basis of his final compensation as it was at the date of his preceding retirement. If however, the member renders at least three years of service after his reinstatement, the final compensation which is used in calculating the pension based on service rendered after reinstatement shall be used also in calculating the pension based on current service rendered prior thereto.

(b) For such a member reinstated from disability retirement, the current service pension upon his service retirement after attaining age fifty-five, and subsequent to such reinstatement, shall be calculated in the manner described in the preceding subsection.
(Added Ord. 5313, 1958, based on former Section 2-835; Am. Ord. 5666, 1959; Am. Ord. 67-133, 1968; Am. Ord. 69-60, 1969).

SEC. 3-545. PRIOR SERVICE PENSION OF RE-INSTATED MEMBER.

(a) The prior service pension of any member reinstated from service retirement, upon his subsequent service retirement, shall be in the same amount as his prior service pension prior to his reinstatement, adjusted according to any change in the provisions governing the calculation of such pensions made after such reinstatement and applicable to pensions being paid at the date of the change; provided, that such subsequent retirement occurs before he renders after his reinstatement at least one year of city service credited under this System; otherwise, a prior service pension calculated (1) on the basis of an age, taken to the preceding completed quarter year but not less than fifty years, and determined by deducting from his age at his subsequent retirement, the aggregate time during which he was under retirement, and (2) on the basis of his final compensation as it was at the date of his preceding retirement. If however, the member renders at least three years of service after his reinstatement, the final compensation which is used in calculating the pension based on service rendered after reinstatement, shall be used also in calculating the pension based on prior service.

(b) For such a member reinstated from disability retirement, the prior service pension upon his service retirement after attaining age fifty-four, or upon his disability retirement after attaining age fifty-five, and subsequent to such reinstatement, shall be calculated in the manner described in the preceding subsection.
(Added Ord. 5313, 1958, based on former Section 2-836; Am. Ord. 5666, 1959; Am. Ord. 67-133, 1968; Am. Ord. 69-60, 1969).

SEC. 3-546. DISABILITY RETIREMENT.

(a) Retirement of a member for disability shall be made by the Retirement Board upon medical examination as follows: Any member while in the city-service, or within four months after the discontinuance of city-service, or while physically or mentally incapacitated for the performance of his duty, if such incapacity has been continuous from discontinuance of city-service, shall be examined by one or more physicians or surgeons selected by the Retirement Board, upon the Board's own motion, upon the application of the head of the office or department in which said member is employed, or upon the application of said member or of a person acting in his behalf, stating that said member is physically or mentally incapacitated for the performance of duty and ought to be retired provided he shall be credited with ten or more years of continuous city-service.

(b) If such medical examination and other available evidence show, to the satisfaction of the Retirement Board, that the said member is physically or mentally incapacitated for the performance of duty and ought to be retired, the Retirement Board shall retire the said member for disability forthwith.

(c) The Retirement Board shall secure such medical service and advice as may be necessary to carry out the purpose of this section and of Section 3-548, and shall pay for such medical service and advice such compensation as the Board shall deem reasonable. (Added Ord. 5313, 1958, based on former Section 2-837; Am. Ord. 5666, 1959).

SEC. 3-547. ALLOWANCE AT DISABILITY RETIREMENT.

On or after the effective date of retirement for disability under Section 3-546, a member,

(a) if the member's disability, in the opinion of the Board, is service-connected, shall receive a retirement allowance which shall consist of:

(1) An annuity which shall be the actuarial equivalent of the member's accumulated contributions at the time of such retirement, and

(2) A pension derived from the contributions of the city which, together with the annuity provided by the member's accumulated contributions, shall make the retirement allowance equal to the greater of:

(i) One and eight-tenths per cent of the member's final compensation multiplied by the number of years of city service credited to the member; or,

(ii) One-third of the member's final compensation; or,

(iii) if such member has qualified for retirement for service under this article, the amount of the member's service retirement allowance.

(3) The benefits provided by this subsection are in the nature of workmen's compensation and shall be excluded from income to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(b) if the member's disability, in the opinion of the Board, is not service-connected, shall receive a retirement allowance which shall consist of:

(1) An annuity which shall be the actuarial equivalent of the member's accumulated contributions at the time of such retirement, and

(2) A pension derived from the contributions of the city which, together with the annuity provided by the member's accumulated contributions, shall make the retirement allowance equal to the greater of:

(i) One and eight-tenths per cent of the member's final compensation multiplied by the number of years of city service credited to the member or,

(ii) One-third of the member's final compensation; or,

(iii) if such member has qualified for retirement for service under this article, the amount of the member's service retirement allowance.

(c) In computing a retirement allowance pursuant to this section, the allowance of a member whose satisfaction of minimum service requirements is determinable in accordance with Section 3-516 shall be ten per cent of the amount otherwise payable hereunder for each year of permanent city service creditable pursuant to Section

3-505(f), to a maximum of one hundred per cent of such amount. Service with the Redevelopment Agency shall be disregarded for purposes of computation of such allowance.

(Added Ord. 5313, 1958, based on former Sec. 2-838; Am. Ord. 5666, 1959; Am. Ord. 6804, 1966; Am. Ord. 69-60, 1960; Am. Ord. 76-71, § 2, eff. 8-29-76; Am. Ord. 2001-73, § 2, eff. 11-10-01; Am. Ord. 2021-013, § 1, eff. 5-17-21).

SEC. 3-548. SAFEGUARDS.

(a) The Retirement Board may, at its pleasure, require any beneficiary who has been retired for disability and who has not attained the age of fifty-five years to undergo medical examination, such examination to be made by a physician or surgeon, appointed by the Retirement Board, at the place of residence of said beneficiary or other place mutually agreed upon. Upon the basis of such examination, the Board shall determine whether said disability beneficiary is still incapacitated, physically or mentally, for service in the office or department of the city where the beneficiary was employed and in the position held by the beneficiary when retired for disability. If the Retirement Board shall determine that said beneficiary is not so incapacitated, the beneficiary's retirement allowance shall be canceled forthwith, and the beneficiary shall be reinstated to the position of the same class as that held by the beneficiary when retired for disability.

(b) (1) Should a beneficiary after retirement for disability re-enter the city-service and be eligible for membership in the Retirement System in accordance with Section 3-515, the beneficiary's retirement allowance shall be canceled and the beneficiary shall immediately become a member of the Retirement System, the beneficiary's rate of contribution for future years being that established for the beneficiary's age at the time of such re-entry, subject to Section 3-523. The beneficiary's individual account shall be credited with an amount which shall be the actuarial equivalent, at the time of such re-entry, based on a disabled life, of the beneficiary's annuity, but such amount shall not exceed the amount of the beneficiary's accumulated contributions as it was at the time of the beneficiary's retirement.

(2) An amount equal to such actuarial equivalent shall again be held for the benefit of said member and shall no longer be included in the amounts available to meet the obligation of the city on account of benefits that have been granted and on account of prior service of members. Such member shall receive credit for prior service in the same manner as if the member had never been retired for disability.

(c) Should any person retired for disability engage in a gainful occupation prior to attaining age fifty-five, the Retirement Board shall reduce the amount of the person's monthly pension as defined herein, to an amount which, when added to the compensation earned monthly by the person in such occupation, shall not exceed the maximum current compensation attached to the position which the person held at the time of the person's retirement, or if that position has been abolished, the maximum current compensation attached to such position immediately prior to its abolition. Should the earnings of such

beneficiary be further altered, the board shall further alter the beneficiary's said pension to an amount which shall not exceed its amount which it would be if not reduced under this section, but which, subject to such limitation, shall equal, when added to the compensation earned by the beneficiary, the amount of such maximum current compensation. When said beneficiary reaches age fifty-five, the beneficiary's retirement allowance shall be made equal to the amount it would be if not reduced under this section, and shall not again be modified under this section.

(d) Should any beneficiary retired for disability refuse under age sixty to submit to medical examination, the beneficiary's pension may be discontinued until the beneficiary's withdrawal of such refusal, and should such refusal continue for one year, the beneficiary's retirement allowance may be cancelled.
(Added Ord. 5313; Am. Ord. 5782, 1960; Am. Ord. 70-50, 1970; Am. Ord. 2002-40, § 2, eff. 9-3-02).

SEC. 3-549. INCREASED ALLOWANCES APPLICABLE TO PERSONS ALREADY RETIRED.

(a) Every retirement allowance payable by the Fresno City Employees Retirement System, for the time commencing on the first day of December, 1952, to or on account of any person who was retired prior to July 1, 1952, as a member of said System, is hereby increased to the amount it would be if the other provisions of this article had been in effect on the date of the actual retirement of the member. This section does not give any member retired prior to July 1, 1952, or his successors in interest, any claim against the city for any increase in any retirement allowance paid or payable for time prior to said effective date. If a member elected at retirement to have his retirement allowance modified under Options 2 or 3, and if his beneficiary is living on said effective date, the increase in his allowance shall be modified under the option elected at retirement, and on the basis of current ages, mortality tables and interest rate. If the beneficiary of such a person who elected at retirement to have his allowance modified under one of said options is not living on said effective date, or if the retired member is not living on said effective date and the beneficiary is receiving the modified retirement allowance, then the allowance shall be increased as provided herein for persons who did not elect an option.

(b) The increase in the retirement allowance shall be apportioned between service rendered prior to the entry of the member into the Retirement System and service rendered as a member, in the manner which would have applied if said ordinance had been in effect at the time of retirement. Contributions to the Retirement System necessary for the payment of the increases in the retirement allowances provided in this section, shall be provided from the reserves held by the Retirement System on account of active members, the necessary amount being transferred upon said effective date, from said reserves to the reserves held by the Retirement System to meet the obligations on account of benefits that have been granted.
(Added Ord. 5313, 1958; Am. Ord. 96-54, § 64, eff. 9-20-96).

SEC. 3-550. CONTINUATION OF RETIREMENT ALLOWANCES AFTER DEATH.

(a) Upon the death of a retired member after retirement, including retired members receiving allowances, including a service-connected disability retirement allowance in accordance with Section 3-547(a), on the effective date of this section, one-half of the retirement allowance as it was at death, before modification under an option, shall be continued throughout life to the retired member's surviving spouse or surviving domestic partner. If there be no surviving spouse or surviving domestic partner entitled to an allowance hereunder, or if the surviving spouse or surviving domestic partner so entitled dies before every child of such deceased member attains the age of eighteen years, then the allowance which the surviving spouse or surviving domestic partner would have received had the spouse or domestic partner lived shall be paid to the retired member's child or children under said age, collectively, to continue until every such child dies or attains said age, provided that no child shall receive any allowance after marrying or establishing a domestic partnership and no non-disabled child shall receive any allowance after attaining the age of eighteen years. Should the member leave no surviving spouse or surviving domestic partner and no children under the age of eighteen years but leave a child or children who, pursuant to terms and conditions adopted by the Retirement Board, is or are determined by the Board to have been disabled prior to age eighteen and whose disability continues past age eighteen, the child or children while so disabled shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner would have received. Should said retired member leave no surviving spouse or surviving domestic partner so entitled, no children under the age of eighteen years, and no disabled child whose disability continued past the age of eighteen years, but leave a parent or parents dependent upon the retired member for support, the parents so dependent shall collectively receive a monthly allowance equal to that which a surviving spouse or surviving domestic partner otherwise would have received, during such dependency. Contributions necessary for the payment of the continuance of one-half of allowances of retired members who are receiving allowances on the operative date of this section, shall be provided from the reserve held by the Retirement System on account of active members, the necessary amount being transferred upon said effective date from said reserves to the reserves held by the Retirement System to meet obligations on account of benefits that have been granted.

(b) With respect to members retiring on or before the effective date of Ordinance No. 2000-5, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the retired member at least one year prior to retirement. With respect to members retiring after the effective date of Ordinance No. 2000-5, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the retired member as of the date of retirement or to a surviving domestic partner only if the domestic partnership had been established on or before the date of retirement.

(c) If the member was receiving a service-connected disability retirement in accordance with Section 3-547(a) or Section 3-566(e)(3) at the time of the member's death, the allowance provided in subsection (a) of this Section shall constitute a continuation of the member's service-connected disability retirement and shall be non-taxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.
(Added Ord. 5313, 1958; Am. Ord. 5666, 1959; Am. Ord. 2000-5, § 1, 2-10-00; Am. Ord. 2001-18, § 1, eff. 3-26-01; Am. Ord. 2006-17, § 3, eff. 3-10-06; Am. Ord. 2021-013, § 2, eff. 5-17-21).

SEC. 3-551. INCREASE OF ALLOWANCES APPLICABLE TO PERSONS ALREADY RETIRED.

(a) Every monthly allowance payable under the Fresno City Employees Retirement System, for time commencing on July 1, 1961, to or on account of any member who was retired prior to July 1, 1960, is hereby increased by the percentage set forth in the following table opposite the period during which the member's retirement became effective, or death occurred:

Period during which retirement became effective or death occurred	*Percentage of increase in monthly allowance*
Prior to July 1, 1951	24.73%
12 months ended June 30, 1952	22.09%
12 months ended June 30, 1953	17.61%
12 months ended June 30, 1954	14.66%
12 months ended June 30, 1955	14.36%
12 months ended June 30, 1956	11.67%
12 months ended June 30, 1957	8.71%
12 months ended June 30, 1958	4.12%
12 months ended June 30, 1959	2.58%
12 months ended June 30, 1960	0.00%

(b) Every monthly allowance payable under the System on and after July 1, 1965, to, or on account of, any member who was retired prior to July 1, 1963, hereby is increased by the percentage set forth in the following table opposite the period during which the member's retirement became effective, or death occurred:

Period during which retirement became effective or death occurred	*Percentage of increase in monthly allowance*
Prior to July 1, 1961	7.50%
12 months ended June 30, 1962	5.00%
12 months ended June 30, 1963	2.50%

(c) The increase in each allowance provided by this section shall be apportioned between the credited service rendered prior to entry of the member into the Retirement System, and credited service rendered as a member in the same proportions that the portion of the allowance which was not provided by the members accumulated contributions, was so

apportioned at the time of retirement or death. Contributions to the Retirement System necessary for the payment of the increases in the retirement allowance provided in this section shall be provided, with respect to the portion of the increases based on service rendered after May 31, 1939, from the reserves held by the Retirement System on account of service rendered after that date, the necessary amount being transferred upon such effective date from such reserves to the reserves held by the Retirement System to meet the obligations on account of allowances that have been granted. The contribution being required of the city currently, as a percentage of the compensation of members, shall be increased by a percentage determined by the actuary as necessary to replace the reserves so transferred. Contributions to the Retirement System necessary for the payment of such increases with respect to the portion of the increases based on service rendered prior to June 1, 1939, shall be similarly transferred from and to the pertinent reserve accounts, and the reserves so transferred shall be replaced in the pertinent reserve by payment to the System by the city, annual amounts determined by the actuary as necessary, and shall be as an addition to the prior service contribution currently being made by the city.

(d) This section does not give any retired member, or his successors in interest, or his beneficiary, or any payee for any allowance in respect to a deceased member, any claim against the city for any increase in any allowance paid or payable for time prior to its effective date.
(Added Ord. 5941, 1961, Am. Ord. 6621, 1965; Am. Ord. 96-54, § 65, eff. 9-20-96).

SEC. 3-552. ALLOWANCE AFTER DEATH BEFORE SERVICE RETIREMENT.

(a) Upon the death before retirement of a member who has credit for five or more years of continuous city service, and on account of whose death the benefit provided for in accordance with Section 3-537(a) is otherwise payable, a monthly allowance shall be paid as hereinafter provided in this section.

(b) If the member is qualified at death for service retirement, the monthly allowance shall be equal to one-half of the monthly retirement allowance, prior to modification under options provided for in accordance with Section 3-554, which the member would have been entitled to receive if the member had retired for service on the day next following the date of his death. If the member at death is under age fifty-five, the monthly allowance shall be equal to one-half the monthly service retirement allowance, prior to modification under any such options, which the member had earned to the date of death, based on the member's city service to and including the date of death, but assuming for the purpose of computing such retirement allowance that the member was age fifty-five at death.

(c) The monthly allowance shall be payable:

(1) To the member's surviving spouse qualifying under subsection (f) of this section who was married to such member or to the member's surviving domestic partner qualifying under subsection (f) of this section with whom the member had established a domestic partnership; or

(2) If there is no qualifying surviving spouse or qualifying surviving domestic partner, or if such spouse or such domestic partner dies, to unmarried children, including stepchildren, of the member collectively, who are under eighteen years of age; or

(3) Should the member leave no qualifying surviving spouse or qualifying surviving domestic partner and no children under eighteen years of age but leave a child or children who, pursuant to terms and conditions adopted by the Retirement Board, is determined to have been disabled prior to age eighteen and whose disability continues past age eighteen, to such disabled child or children during the period of disability; or

(4) Should the member leave no qualifying spouse or qualifying surviving domestic partner or no child under eighteen or no disabled child whose disability continued past age eighteen, but leave a parent or parents dependent upon the member for support, to such parent, or parents collectively, during such dependency.

(d) The monthly allowance shall be in lieu of the death benefit otherwise payable as provided for in accordance with Section 3-537(a). If, upon the death of the member, there is any person qualifying for the allowance, then any designation made by the member, pursuant to Section 3-537, of a beneficiary to be paid the death benefit shall be of no force or effect, but a person qualifying for the allowance or such person's guardian may elect, before the first payment on account of it, to receive such death benefit in lieu of the allowance. The accumulated contributions of the member shall be applied toward providing the allowance, and the balance not so provided shall be payable from contributions of the city.

(e) The monthly allowance shall begin to accrue on the day next following the date of death of the member, and payments to the surviving spouse or surviving domestic partner shall continue until death, and to or on account of children with respect to each non-disabled child until the attainment of age eighteen, death or prior marriage or domestic partnership and with respect to each disabled child whose disability continues past age eighteen until death, marriage, establishment of a domestic partnership, or cessation of the disability. If payment of the allowance provided by this section is stopped because of death of the surviving spouse or surviving domestic partner, or the attainment of the age eighteen years by, or the death or marriage or establishment of a domestic partnership of, a non-disabled child, or the death or marriage or establishment of a domestic partnership or cessation of disability of a disabled child whose disability continued past the age of eighteen, or the death or cessation of dependency of a parent, before the sum of the monthly payments made equals the death benefit provided for in accordance with Section 3-537(a), a lump sum equal to the difference shall be paid, to the surviving children of the member, share and share alike and, if none, to the member's estate.

(f) With respect to members whose death occurs on or before the effective date of Ordinance No. 2000-5, an allowance shall be paid under this section to a surviving spouse only if the spouse was married to the member prior to the occurrence of the injury or onset of the illness which resulted in the member's death. With respect to members whose death occurs after the effective date of Ordinance No. 2000-5, an allowance shall be paid under this

section to a surviving spouse only if the spouse was married to the member prior to the date of the member's death or to a surviving domestic partner only if the domestic partner had established a domestic partnership with the member prior to the date of the member's death.

(g) If the Board determines that a member's death was service- connected, the amount of the survivor benefit paid under this Section which equals one-third of the member's final compensation, shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code. However, if any benefits paid under this Section are paid as a survivor annuity to the surviving spouse (or former spouse) or child(ren) of a member who qualifies as a public safety officer within the meaning of Section 101(h) of the Internal Revenue Code, and such member was killed in the line of duty, then the monthly death allowance shall be nontaxable to the extent allowed by Section 101(h) of the Internal Revenue Code.
(Added Ord. 5942, 1961; Am. Ord. 6893, 1966; Am. Ord. 98-60, § 6, eff. 9-19-98; Am. Ord. 2000-5, § 3, 2-10-00; Am. Ord. 2001-18, § 2, eff. 3-26-01; Am. Ord. 2006-17, § 4, eff. 3-10-06; Am. Ord. 2021-013, § 3, eff. 5-17-21).

SEC. 3-553. COST OF LIVING ADJUSTMENT.

(a) Notwithstanding any other provision of this article, and subject to the provisions of this section, as of July 1 of each year, commencing with the year 1978, every monthly allowance payable to or on account of any person who has retired or died or who shall retire or die as a member of the Retirement System and whose retirement or death occurred on or before June 30, of the preceding fiscal year, shall be increased or decreased by a percentage of the total allowance then being received which shall approximate, to the nearest one-tenth of one percent, the percentage of annual increase or decrease in the cost of living during the preceding calendar year, as determined by the Retirement Board in the manner provided in this section; provided, that such increase or decrease shall not exceed five percent of any allowance in any year, regardless of the percentage of change in such cost of living.

(b) Determination of the percentage of annual increase or decrease in the cost of living shall be made by the Retirement Board on or before April 1 of each year by reference to the Consumer Price Index (United States City average for urban wage earners and clerical workers—all items), as published by the Bureau of Labor Statistics of the United States Department of Labor, for each of the two immediately preceding calendar years. The percentage by which such index for the more recent full calendar year shall have increased or decreased over or below such index for the full calendar year immediately prior thereto shall be the percentage used to calculate adjustments in retirement allowances pursuant to subsection (a) of this section.

(c) The amount of any cost of living increase or decrease in any year which is in excess of the maximum annual allowable adjustment of five percent provided in subsection (a) of this section shall be accumulated from year to year and included in the computation of increases or decreases in succeeding years. The provisions of this subsection shall be applied to the allowances of individual beneficiaries by classes based upon the fiscal year in which the

member retired or died, so that each allowance shall have applied to it only such increase or decrease as shall have accumulated during or after the fiscal year in which the member retired or died.

(d) No allowance shall be reduced by operation of this section below the amount payable on the effective date of entitlement thereto or July 1, 1966.

(e) Such increases in allowances as shall be payable pursuant to this section shall be funded insofar as possible from moneys in the contingency reserve of the Retirement Fund which are in excess of one per cent of the total assets of the Retirement System on July 1, 1966, and by such moneys from such contingency reserve as shall be determined by the Retirement Board as of June 30 of each year thereafter. Any additional moneys required for such increases shall be provided by additional contributions to the Retirement Fund, at rates fixed by the Retirement Board as it shall determine to be necessary, to be shared equally between the City and the contributing members, and to be designated "cost of living contributions." The individual members' contributions shall be graded in proportion to the member's normal contributions.

(f) Cost of living contributions of members shall be credited with regular interest and the accumulation of such contributions and interest shall be deemed a part of their accumulated contributions for the purposes of refund and of re-entry into the Retirement System under Section 3-534 and for the purpose of computing the death benefit under Section 3-537. Cost of living contributions of members shall not be refunded after retirement, whether or not any cost of living increases are paid hereunder.

(g) The rates of cost of living contributions of members shall not be combined with the normal rates of contribution, but shall be separately stated. A separate accounting shall be maintained of the accumulations of such contributions and the interest thereon, and such accumulations shall not be included in the accumulated contributions of the member in the computation of any retirement allowance.

(h) There shall be paid to the Retirement Fund, during each fiscal year, cost of living contributions of the City in a total amount equal to the total of the cost of living contributions of members contributed to the Retirement Fund during that fiscal year. The Controller shall transfer to the Retirement Fund, during each fiscal year, from the budget appropriation therefor, the amount of the City's annual cost of living contribution for that year; provided, however, that any portion of such annual contribution which is payable on account of any member while employed in the operation of any municipally-owned public utility shall be paid from the funds of such public utility.

(i) The payments of the City provided for in this section are hereby made obligations of the City, the funds necessary therefor to be appropriated and provided in the manner specified in Section 3-533 for appropriating and providing other City contributions to the Retirement Fund.

(j) The definition of the term "contributions," contained in Section 3-501(8)(iv) shall not apply to this section.

(Added Ord. 6703, 1965; Am. Ord. 6896, 1966; Am. Ord. 70-35, 1970; Am. Ord. 72-116, 1972; Am. Ord. 78-165, § 1, eff. 12-1-78; Am. Ord. 2009-26, § 1, eff. 8-16-09).

Editor's note—The amendments adopted Ord. 2009-26 expired June 30, 2010.

SEC. 3-554. OPTIONAL MODIFICATION OF ALLOWANCES AT RETIREMENT.

(a) For purposes of determining actuarial equivalence under this Section, the following terms will be used:

(1) "Basic retirement allowance" shall mean the sum of a member's service retirement annuity and service pension as determined under Section 3-541, payable as a single life annuity, or the sum of the member's disability annuity and disability pension as determined under Section 3-547, payable as a single life annuity.

(2) "Basic retirement allowance plus continuance" shall mean a member's basic retirement allowance plus any one-half continuation payments that would be payable under Section 3-550 as determined at the effective date of the member's retirement.

(3) "Accumulated contributions" shall mean accumulated contributions as defined in Section 3-501(k)(i).

(4) "Adjusted accumulated contributions" shall be calculated as follows:

(i) The amount of the member's accumulated contributions at the effective date of retirement will be converted to an actuarially equivalent monthly annuity payable for the life of the member with a one half continuance of that monthly annuity for the life of the member's beneficiary.

(ii) The difference between the member's monthly annuity and the beneficiary's monthly continuance shall be determined.

(iii) The amount determined in subsection (ii) will be converted to an actuarially equivalent lump sum present value, which amount is defined to be the member's "adjusted accumulated contributions".

(5) "Monthly uncontinued annuity payments" shall mean the difference calculated in subsection 4(ii).

(6) All actuarial calculations shall be done using the actuarial factors in effect on a member's effective date of retirement, and shall not take into account any future cost of living increases. Actuarial calculations shall also not take into account the possibility that the marriage of a member could be dissolved.

(b) If at the effective date of retirement the member has no spouse, children or dependent parents who would qualify for the one-half's continuation under Section 3-550, then, instead of receiving a retirement allowance only over the member's lifetime, the member may elect any of the following options:

(1) Option 1A. The member may elect a lower service or disability annuity for the member's life, which also provides that if the member dies before receiving in such lower service or disability annuity payments the amount of the member's accumulated contributions, then the balance of such accumulated contributions shall be paid upon the member's death in a lump sum to a beneficiary designated by the member, as provided in subsection (d). This optional form shall be the actuarial equivalent of the member's service or disability annuity for the member's lifetime at the effective date of retirement. Under this option, no elections may be made with respect to the pension portion of the member's service or disability retirement allowance.

(2) Option 2A, 100% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime and that after the member's death the same lower benefit will be continued for life to a beneficiary designated by the member as provided in subsection (d). This option shall be actuarially equivalent to the member's basic retirement allowance at the effective date of retirement.

(3) Option 3A, 50% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime and that after the member's death

one-half of the lower benefit will be continued for life to a beneficiary designated by the member as provided in subsection (d). This option will be actuarially equivalent to the member's basic retirement allowance at the effective date of retirement.

(c) If at the effective date of retirement the member has a spouse, children or dependent parents who would qualify for a one-half's continuance under Section 3-550, then, instead of receiving a retirement allowance only over the member's lifetime, with a continuance after the member's death to certain beneficiaries, the member may elect any of the following options:

(1) Option 1B. The member may elect a lower service or disability annuity for the member's life, which also provides that if the member dies before receiving in monthly uncontinued annuity payments (as defined in Section 3-554(a)(5)) the amount of the member's adjusted accumulated contributions (as defined in Section 3-554(a)(4)), then the balance of such adjusted accumulated contributions shall be paid upon the member's death in a lump sum to a beneficiary designated by the member as provided in subsection (d). Under this option, no elections may be made with respect to the pension portion of the member's service or disability allowance.

(2) Option 2B, 100% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime with an optional continuance payable for a beneficiary's lifetime after the member's death in such an amount that the sum of the optional continuance plus the one-half continuance under Section 3-550 will be equal to the lower retirement allowance payable for the member's lifetime. This option shall be actuarially equivalent to the member's basic retirement allowance plus continuance as defined in subsection (a)(2) above at the effective date of retirement.

(3) Option 3B, 50% Optional Continuance. The member may elect that a lower retirement allowance will be paid over the member's lifetime with an optional continuance payable for life to a beneficiary designated by the member as provided in subsection (d) in such amount that the optional continuance shall equal one-half of the difference between the lower retirement allowance payable for the member's lifetime and the one-half continuance under Section 3-550. This option shall be actuarially equivalent to the member's basic retirement allowance plus continuance as defined in subsection (a)(2) above at the effective date of retirement.

(d) The beneficiaries under any of the options shall be determined as follows:

(1) Under all options, either the lump sum or optional continuances, if any, shall be payable only to such beneficiary as the member shall nominate by written designation duly executed and filed with the Retirement Board. Lifetime benefits are payable to beneficiaries only if they survive the member, and in the case of spouses, only if they were married to the member on the date of the member's death, and in the case of domestic partners, only if the domestic partnership with the member had been established on or before the date of the member's death. For purposes of this Section, a member's beneficiary shall be limited to the following classes of individuals:

(i) spouse;

(ii) domestic partner;

(iii) children;

(iv) grandchildren;

(v) parents;

(vi) any person who depends on the member wholly or in part for education or support; or

(vii) a trust, provided that (I) the beneficiaries of the trust comes within categories (i)—(vi) and are identifiable, (II) the trust is valid under state law, (III) the trust is irrevocable no later than upon the death of the member, and (IV) a copy of the trust agreement is provided to the retirement office.

(2) With respect to Options 1A and 1B,

(i) The individual or entity designated as beneficiary of the lump sum amount may be changed by the member at any time, but only if the change is received by the Retirement Board prior to the member's death;

(ii) In addition to the classes of individuals or entities listed in section 3-554(d)(1), a member may select as a beneficiary under Options 1A and 1B any of the following: a corporation, unincorporated association, or governmental unit; and

(iii) If the member has not designated a beneficiary, or if an individual is designated and is not living at the time of payment or if an entity is designated and is not in existence at the time of payment (including through merger with another entity), the unpaid balance of accumulated contributions shall be payable in a lump sum to the member's estate.

(3) With respect to Options 2A, 3A, 2B and 3B, a member's lifetime beneficiary must be designated not later than the effective date of retirement and cannot be changed thereafter, unless the designation of a new spouse or domestic partner as beneficiary is permitted under Section 3-555 upon the member's marriage or establishment of a domestic partnership after retirement.

(4) With respect to all Options in which the member names his or her spouse or domestic partner as contingent lifetime beneficiary to receive benefits after the member's death, upon the death of the spouse or domestic partner or dissolution of marriage of the member and spouse or termination of the domestic partnership of the member and the domestic partner before the member's death, the designation of the former spouse or former domestic partner as contingent lifetime beneficiary is automatically revoked and such former spouse or former domestic partner shall receive no survivor benefits after the member's death.

(e) Any election under this Section shall be made prior to the making of the first payment on account of any retirement allowance. However, if at the effective date of retirement (1) a member has a spouse or domestic partner who is a designated beneficiary under any lifetime option, and (2) the member dies within 30 days after the member's effective date of retirement, then the member's surviving spouse or surviving domestic partner shall have the option to

either elect benefits under this Section or elect the benefits provided to a surviving spouse or surviving domestic partner for a member who dies before retirement. (Added Ord. 5313, 1958, based on former Sec. 2-841; Am. Ord. 95-40, § 8, eff. 6-23-95; Am. Ord. 2004-99, §§ 1, 2, eff. 11-15-04; Am. Ord. 2006-17, § 5, eff. 3-10-06; Am. Ord. 2006-140, § 1, eff. 10-27-06).

SEC. 3-555. OPTIONAL MODIFICATION OF BENEFICIARY AFTER RETIREMENT.

(a) Members who become married or establish a domestic partnership after retirement may elect an optional modification provided herein by filing a written election with the Retirement Board within the time limits specified in this Section. If an optional modification is elected by the retired member under this Section, all prior elections are revoked, and no previously designated beneficiary shall have any rights to benefits under the System other than as provided in this Section. In addition, no continuation benefits will be payable under Section 3-550.

(b) A retired member is eligible to make this election if he or she is described within any of the following subsections:

(1) A retired member who was not married or not a member of a domestic partnership at the time of his or her retirement may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or surviving domestic partner beneficiary in accordance with the procedures of this Section.

(2) A retired member who was married or a member of a domestic partnership at the time of his or her retirement and whose spouse or domestic partner predeceased the retired member may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or a surviving domestic partner beneficiary in accordance with the procedures of this Section.

(3) A retired member who was married or a member of a domestic partnership at the time of his or her retirement and whose marriage ended in dissolution or whose domestic partnership was terminated may revoke any prior elections with respect to the form of his or her retirement allowance (including the unmodified form) with respect to that portion specifically allocated to the retired member in the dissolution or termination proceeding, if the retired member becomes married or establishes a domestic partnership after retirement and names his or her new spouse or domestic partner as a surviving spouse beneficiary or a surviving domestic partner beneficiary of the portion of the retired member's allowance specifically allocated to the retired member in the dissolution proceeding in accordance with the procedures of this Section.

(4) A retired member who makes an election under subsections (1), (2) or (3) and whose new marriage or domestic partnership is subsequently dissolved or terminated for any

reason, may again make an election under this Section upon the retired member's subsequent marriage or establishment of a domestic partnership but only with respect to the allowance then payable to the retired member for the retired member's remaining lifetime.

(c) A retired member eligible to name his or her new spouse or domestic partner as beneficiary shall have the option to name such spouse or domestic partner as the survivor annuitant of a joint and survivor annuity form of payment and shall have his or her retirement allowance adjusted to make the allowance as adjusted together with the survivor annuity actuarially equivalent to the retired member's retirement allowance immediately prior to the election under this section. Depending on the retired member's option election at retirement, the survivor annuity shall be a percentage of the retired member's adjusted retirement allowance as determined from the following table:

Form Elected	*Survivor Percentage*
Unmodified	50
Option 1A or 1B	50
Option 2A or 2B	100
Option 3A or 3B	50

(d) Any election shall provide that after its effective date an adjusted retirement allowance will be paid over the retired member's lifetime and that after the retired member's death the applicable survivor annuity will be continued for life to the retired member's surviving spouse or surviving domestic partner as defined in subsection (f) below, recognizing that such surviving spouse or surviving domestic partner will not be entitled to a continuance under Section 3-550.

(e) Any election under this section shall be actuarially equivalent to the benefits otherwise payable to the retired member and his or her beneficiary after the effective date. In determining such actuarial equivalence, the System's provision for cost of living increases shall be taken into account, but the possibility that the marriage of the retired member could be dissolved or that the domestic partnership of the retired member could be terminated will not be taken into account. After the effective date of the election, the previously named beneficiary shall have no survivor benefits, other than benefits payable to a former spouse pursuant to a judgment of dissolution or to a former domestic partner pursuant to a judgment of termination.

(f) The surviving spouse or surviving domestic partner benefit will be paid only to the person who was married to the retired member or was a member of a domestic partnership with the retired member at the time of the retired member's election, at the effective date of the election, and at the time of the retired member's death. If the spouse or domestic partner named in the election either dies or his or her marriage with the retired member is dissolved or his or her domestic partnership with the retired member is terminated before the death of the retired member, no adjustment will be made to the retired member's benefit and neither the former spouse or former domestic partner or his or her estate shall be entitled to any survivor benefit.

(g) The optional modifications provided in this Section must be made in writing on such form or forms as the Retirement Board may designate, and must include such documentation as the Retirement Board may require. The election under this Section shall be deemed to be made on the date a properly executed form is received by the Retirement Board.

(h) The election for an optional modification after retirement must be filed with the Retirement Board within the time frames specified below:

(1) If the retired member retired before the effective date of Ordinance No. 2004-99, married after retiring but before that effective date, and would otherwise be eligible to elect one of the optional modifications after retirement, then the retired member must make the election no later than six months after the effective date of Ordinance No. 2004-99.

(2) In all other cases, the election must be made within six months after the date of marriage or the date of the establishment of the domestic partnership.

(3) Elections received by the Retirement Board after the six month time period shall be null and void.

(i) Any optional modification elected by the retired member under this section shall be effective as of the first day of the month following the one year anniversary of the retired member's election. The optional payments to the retired member shall begin in the adjusted amount on the effective date. If the spouse dies or the marriage is dissolved or if the domestic partner dies or the domestic partnership is terminated before the effective date specified in this subsection(i), the election is automatically revoked and no adjustment will be made in the retired member's allowance. If the retired member dies before the effective date, no benefits are payable to the spouse or domestic partner under this Section.

(j) In no event will any elections be permitted under this Section if they would violate the minimum distribution rules of Internal Revenue Code section 401(a)(9). (Added Ord. 2004-99, § 3, eff. 11-15-04; Am. Ord. 2006-17, § 6, eff. 3-10-06).

SEC. 3-556. RETIREMENT ALLOWANCES PAYABLE.

A pension, an annuity or retirement allowance granted under the provisions hereof shall be payable in equal monthly installments or in smaller pro rata amounts when the pension, annuity or retirement allowance begins after the first day of the month or ends before the last day of the month. (Added Ord. 5313, 1958, based on former Sec. 2-842).

SEC. 3-557. APPOINTIVE SERVICE AFTER RETIREMENT.

(a) A person who is retired for service or disability or who is receiving or is entitled to receive a retirement allowance under this System shall not be appointed to or serve in any appointive office or position in the city service, including membership on boards and commissions, after the effective date of his retirement, unless he had first been reinstated from retirement pursuant to this article or unless such service, without reinstatement, is authorized by this section.

(b) Such a retired person may serve in the following appointed offices or positions without reinstatement from retirement or loss or interruption of benefits provided under this System;

(1) As a member of any board, commission, or advisory committee of the city except the Civil Service Board or the Board of this System;

(2) As an elections officer or juror;

(3) A retired person may be employed on a temporary basis not to exceed the time period specified in Charter Section 1000(a)(2), but only if a showing is made by the appointing authority that such person possesses special skills or experience necessary to perform the duties of that temporary position.

(c) A retired person who serves in any office or is employed by the city without reinstatement, whether by permission of this section or other law, shall acquire thereby no service credit or retirement rights under this article, and no contributions to the System shall be deducted from any compensation he may receive for such services. (Added Ord. 5313, 1958, based on former Sec. 2-843; Am. Ord. 74-10, § 2, eff. 2-17-74; Am. Ord. 85-167, § 4, eff. 11-29-85; Am. Ord. 87-82, § 1, eff. 7-24-87).

SEC. 3-558. EFFECT OF CERTAIN AMENDMENTS.

Certain amendments of this article have been effected by Ordinance No. 69-60. Any of such amendments to the contrary notwithstanding, every person having membership status in the System on the day preceding the effective date of such ordinance shall receive, upon his subsequent retirement for service or disability, a retirement allowance which shall be not less in amount than that to which he would have been entitled under this article as it read immediately prior to the effective date of such ordinance. The amendments of this article effected by such ordinance shall not operate to increase any pension or allowance in effect prior to the effective date of such ordinance. (Added Ord. 69-60, 1969).

SEC. 3-559. INTERNAL REVENUE CODE SECTION 415 ELECTION.

(a) Notwithstanding any other provision of this Code, the retirement rights conferred upon any member of the City of Fresno Employees Retirement System shall be subject to, and such a person shall not have any retirement right or benefit which exceeds, and no retirement right or benefit shall accrue to or vest in such a person which exceeds, the limitations upon public retirement systems contained in Section 415 of the Internal Revenue Code to the extent necessary to preserve the tax-qualified status of the system. Amendments to this Section 3-559 by Ordinance 2011-2 shall be effective for retirements on or after January 1,2008.

(b) Notwithstanding subsection (a), the city, pursuant to Internal Revenue Code Section 415(b)(10)(C), hereby makes the election set forth in that section.

(c) Participation in Other Qualified Plans: Aggregation of Limits. The 415(b) limit with respect to any member who at any time has been a member in any other defined benefit plan as defined in Section 414(i) of the Internal Revenue Code maintained by the member's employer in this plan shall apply as if the total benefits payable under all such defined benefit plans in which the member has been a member were payable from one (1) plan.

(d) Basic 415(b) Limitation.

(1) Before January 1. 1995, a member may not receive an annual benefit that exceeds the limits specified in Section 415(b) of the Internal Revenue Code, subject to the applicable adjustments in that section. On and after January 1, 1995, a member may not receive an annual benefit that exceeds the dollar amount specified in Section 415(b)(1)(A) of the Internal Revenue Code, subject to the applicable adjustments in Section 415(b) of the Internal Revenue Code and subject to any additional limits that may be specified in the retirement system. In no event shall a member's benefit payable under the plan in any limitation year be greater than the limit applicable at the annuity starting date, as increased in subsequent years pursuant to Section 415(d) of the Internal Revenue Code and the regulations thereunder.

(2) For purposes of Section 415(b) of the Internal Revenue Code, the "annual benefit" means a benefit payable annually in the form of a straight life annuity (with no ancillary benefits) without regard to the benefit attributable to after-tax employee contributions (except pursuant to Section 415(n) of the Internal Revenue Code) and to rollover contributions (as defined in Section 415(b)(2)(A) of the Internal Revenue Code). The "benefit attributable" shall be determined in accordance with Treasury Regulations.

(e) Adjustments to Basic 415(b) Limitation for Form of Benefit. If the benefit under the plan is other than the form specified in subsection (e)(2), then the benefit shall be adjusted so that it is the equivalent of the annual benefit, using factors prescribed in Treasury Regulations.

(1) If the form of benefit without regard to the automatic benefit increase feature is not a straight life annuity or a qualified joint and survivor annuity, then the preceding sentence is applied by either reducing the Section 415(b) of the Internal Revenue Code limit applicable at the annuity starting date under (4) or adjusting the form of benefit to an actuarially equivalent amount (determined using the assumptions specified in Treasury Regulation Section 1.415(b)-l(c)(2)(ii)) that takes into account the additional benefits under the form of benefit under (2) and (3) as follows:

(2) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code does not apply (a monthly benefit), the actuarially equivalent straight life annuity benefit that is the greater of:

(A) The annual amount of the straight life annuity (if any) payable to the member under the plan commencing at the same annuity starting date as the form of benefit to the member, or

(B) The annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the form of benefit payable to the member, computed using a 5% interest assumption (or the applicable statutory interest assumption) and (i) for limitation years prior to January 1, 2009, the applicable mortality tables described in Treasury Regulation Section 1.417(e)-1(d)(2) (Revenue Ruling 2001-62 or any subsequent Revenue

Ruling modifying the applicable provisions of Revenue Rulings 2001-62), and (ii) for limitation years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(3) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code applies (a lump sum benefit), the actuarially equivalent straight life annuity benefit that is the greatest of:

(A) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using the interest rate and mortality table, or tabular factor, specified in the plan for actuarial experience:

(B) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using a 5.5 percent interest assumption (or the applicable statutory interest assumption) and (i) for limitation years prior to January 1, 2009, the applicable mortality table for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for limitation years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(C) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable (computed using the applicable interest rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(3) (the 30-year Treasury rate using the rate in effect for the month immediately prior to the first day of the plan year with a one-year stabilization period)) and (i) for limitation years prior to January 1, 2009, the applicable mortality rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for limitation years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code), divided by 1.05.

(4) The actuary may adjust the 415(b) limit at the annuity starting date in accordance with the above.

(f) Benefits For Which No Adjustment of 415(b) Limit is Required. For purposes of this Section, the following benefits shall not be taken into account in adjusting these limits:

(1) Any ancillary benefit which is not directly related to retirement income benefits;

(2) That portion of any joint and survivor annuity that constitutes a qualified joint and survivor annuity;

(3) Any other benefit not required under Section 415(b)(2) of the Internal Revenue Code and Treasury Regulations thereunder to be taken into account for purposes of the limitation of Section 415(b)(1) of the Internal Revenue Code.

(g) Other Adjustments in 415(b) Limitation.

(1) In the event the member's retirement benefits become payable before age sixty-two (62), the limit prescribed by this Section shall be reduced in accordance with Treasury Regulations pursuant to the provisions of Section 415(b) of the Internal Revenue Code, so that such limit (as so reduced) equals an annual straight life benefit (when such retirement income benefit begins) which is equivalent to a one hundred sixty thousand dollar ($160,000) (as adjusted) annual benefit beginning at age sixty-two (62).

(2) In the event the member's benefit is based on at least fifteen (15) years of service as a full-time employee of any police or fire department or on fifteen (15) years of military service, the adjustments provided for in (1) above shall not apply.

(3) The reductions provided for in (1) above shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(4) Only in the event the member's retirement benefit becomes payable after age sixty-five (65) under Section 3-541, for purposes of determining whether this benefit meets the limitation set forth in subsection (d), such benefit shall be adjusted so that it is actuarially equivalent to the benefit beginning at age sixty-five (65). This adjustment shall be made using an assumed interest rate of five (5) percent and shall be made in accordance with regulations promulgated by the Secretary of the Treasury or his delegate.

(h) Less than Ten (10) Years of City Service Adjustment for 415(b) Limitations. The maximum retirement benefits payable to any member who has completed less than ten (10) years of City Service or Service (as defined in Article 3 or 4) in all plans of the City shall be the amount determined under subsection (d) multiplied by a fraction, the numerator of which is the number of the member's years of service and the denominator of which is ten (10). The reduction provided by this subsection cannot reduce the maximum benefit below 10%. The reduction provided for in this subsection shall not be applicable to preretirement disability benefits or pre-retirement death benefits.

(i) Ten Thousand Dollar ($10.000) Limit. Notwithstanding the foregoing, the retirement benefit payable with respect to a member shall be deemed not to exceed the 415 limit if the benefits payable, with respect to such member under this plan and under all other qualified defined benefit pension plans to which the member's employer contributes, do not exceed ten

thousand dollars ($10,000) for the applicable limitation year and for any prior limitation year and the employer has not any time maintained a qualified defined contribution plan in which the member participated.

(j) Effect of COLA on 415(b) Testing. Effective on and after January 1, 2008, for purposes of applying the limits under Section 415(b) of the Internal Revenue Code (the "Limit") to a member, the following shall apply:

(1) a member's applicable Limit shall be applied to the member's annual benefit in the member's first limitation year without regard to any cost of living adjustments under Section 3-553:

(2) to the extent that the member's annual benefit equals or exceeds the Limit, the member shall no longer be eligible for cost of living increases until such time as the benefit plus the accumulated increases are less than the Limit: and

(3) thereafter, in any subsequent limitation year, a member's annual benefit, including any cost of living increases under Section 3-553, shall be tested under the then applicable benefit Limit including any adjustment to the Section 415(b)(1)(A) of the Internal Revenue Code dollar limit under Section 415(d) of the Internal Revenue Code, and the regulations thereunder.

(k) Section 415(c) limitations on contributions and other additions. After-tax member contributions or other annual additions with respect to a member may not exceed the lesser of $40,000 (as adjusted pursuant to Section 415(d) of the Internal Revenue Code) or 100% of the member's compensation. Annual additions are defined to mean the sum (for any year) of employer contributions to a defined contribution plan, member contributions (determined without regard to picked-up employee contributions that are paid to a defined benefit plan), and forfeitures credited to a member's individual account. "Compensation" for purposes of this Section, subject to annual limits under Section 401(a)(17) of the Internal Revenue Code, shall be as defined under Treasury Regulation Section 1.415(c)-2(d)(4) and shall exclude member contributions that are picked up by the employer under Internal Revenue Code Section 414(h). Amounts described in Treasury Regulation Section 1.415(c)-2(e)(3)(iii) are included in compensation if paid within the limitations prescribed under Treasury Regulation Section 1.415(c)-2(e)(3)(i)(A) and (B).

(l) Redeposit of Withdrawn Contributions Any redeposit of withdrawn contributions (including interest thereon) to the retirement system with respect to an amount previously refunded upon a forfeiture of service credit under the retirement system or another governmental plan maintained by the retirement system shall not be taken into account for purposes of Section 415 of the Internal Revenue Code, in accordance with applicable Treasury Regulations.

(m) Reduction of Benefits Priority. Reduction of benefits and/or contributions to all plans, where required, shall be accomplished by first reducing the member's benefit under any defined benefit plans in which the member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such

priority as shall be determined by the plan and the plan administrator of such other plans, and next, by reducing or allocating excess forfeitures for defined contribution plans in which the member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be established by the plan and the plan administrator for such other plans provided, however, that necessary reductions may be made in a different manner and priority pursuant to the agreement of the plan and the plan administrator of all other plans covering such member.
(Added Ord. 91-56, § 1, eff. 6-29-91; Am. Ord. 96-54, § 66, eff. 9-20-96; Am. Ord. 2011-2, § 9, eff. 3-7-11).

SEC. 3-560. EFFECT OF MARITAL DISSOLUTION OR LEGAL SEPARATION OR TERMINATION OF DOMESTIC PARTNERSHIP.

(a) **Purpose.**

(1) It is the intent of this Section and Sections 3-561 and 3-562 to insure that a member and the alternate payee each receives his or her appropriate community property share of any applicable retirement allowance and benefits (including statutorily provided monthly installments payable after a member's death to his or her surviving spouse, surviving domestic partner, children or parents), but only insofar as the division of any community property interest does not increase the actuarial present value (as defined in Section 3-501(b)) of allowances and other benefits which would otherwise have been provided by the Retirement System.

(2) It is the further intent of this section to allow court orders to provide retirement allowances and benefits (including statutorily provided monthly installments payable after a member's death to surviving spouses, surviving domestic partners, children or parents) to alternate payees to the extent:

(i) Of at least the alternate payee's community property interest in the retirement allowance and other benefits earned during the marriage or the domestic partnership;

(ii) That a final judgment of dissolution of marriage or legal separation or of termination of domestic partnership or the order incident thereto dividing the community property interest allocates a portion of that community property interest to the alternate payee; and

(iii) That the Board is joined as a party in the dissolution, separation, or termination proceeding and has been served with a file-endorsed copy of the judgment of final dissolution or legal separation or termination or the order incident thereto dividing the community property interest in the retirement allowance and other benefits earned during the marriage or the domestic partnership.

(3) It is the intent of this section not to provide retirement allowances to any persons other than alternate payees and not to allow alternate payees to be treated as surviving spouses or surviving domestic partners under this Article 5.

(b) **Provisions Permitted in Court Orders.** A final judgment of dissolution, legal separation, or termination or court order incident thereto dividing the community property interest of a member and the member's alternate payee in a retirement allowance or other benefit, may provide for any of the following:

(1) That, prior to the retirement of the member, the community property interest of the member and the alternate payee be split into separate accounts for the member and the alternate payee as hereafter provided in Section 3-561; or

(2) That the community property interest of a member and the alternate payee be paid after the member's retirement as the court may order, provided that:

(i) No retirement allowances are payable to the the alternate payee before the member dies or retires;

(ii) No form of payment is required other than a form being permitted under the Retirement System at the time payments start;

(iii) No survivor allowance is payable to an alternate payee under Section 3-550 or any other section of this Article 5, except that an alternate payee may receive a community property share of a survivor benefit payable to someone else as a result of the member's death;

(iv) The actuarial present value of the portion of the member's allowance payable to the member and the alternate payee, plus the actuarial present value of any survivor benefits payable under Sections 3-550 and 3-552, shall not exceed the actuarial present value of the member's allowance and such survivor benefits as would have been payable had the member never been married or had never established a domestic partnership with the alternate payee; and

(v) No retirement allowances or other benefits are payable to the parents of an alternate payee or to the children of an alternate payee who were stepchildren of the member, except as permitted under the combined account option upon the death of the alternate payee.

(3) That permitted beneficiaries are limited to the following classes of individuals:

(i) spouse,

(ii) domestic partner,

(iii) children,

(iv) grandchildren,

(v) parents, or

(vi) any person who depends on the member wholly or in part for education or support.

(c) **Provisions Prohibited in Court Orders.** A final judgment of dissolution, legal separation, or termination or other court order dividing the community property interest of a member and the alternate payee in a retirement allowance or other benefit must conform to the following rules:

(1) Retirement allowances or other benefits may not be paid to any individual who is not a permitted beneficiary of the member or of the alternate payee;

(2) Payments may not be made in a form not provided in this Article 5;

(3) An alternate payee is not a surviving spouse of the member under this Article 5 for any purpose;

(4) The surviving spouse or surviving domestic partner of an alternate payee is not to be deemed to be a surviving spouse under this Article 5 for any purpose;

(5) An alternate payee or the surviving spouse or surviving domestic partner of an alternate payee is not eligible to receive any form of disability retirement allowance under this Article 5 with respect to any disabling condition the alternate payee or the surviving spouse or surviving domestic partner of an alternate payee might sustain.

(d) **Member's Rights.** Any credited service or any accumulated contributions which are not explicitly awarded by court order to an alternate payee shall be the sole and separate property of the member.

(e) If benefits are payable pursuant to an order that satisfies the requirements of this Section, Section 3-561. and/or Section 3-562 that meets the requirements of a "domestic relations order" as defined in Section 414(p) of the Internal Revenue Code, then the applicable requirements of Section 414(p) of the Internal Revenue Code shall be followed by the retirement system.
(Added Ord. 94-29, § 3, eff. 5-27-94; Am. Ord. 94-38, § 1, eff. 6-24-94; Am. Ord. 2002-12, § 1, eff. 3-19-02; Am. Ord. 2004-102, § 1, eff. 11-15-04; Am. Ord. 2006-17, § 7, eff. 3-10-06; Am. Ord. 2011-2, § 10, eff. 3-7-11).

SEC. 3-561. DISSOLUTION OR LEGAL SEPARATION PRIOR TO A MEMBER'S RETIREMENT.

(a) **Separate account option.**

(1) **Purpose.** The purpose of the separate account option is to permit a member and an alternate payee to divide the member's retirement allowance and benefits (including statutorily provided monthly installments payable after a member's death to his or her surviving spouse, surviving domestic partner, children or parents) prior to retirement into separate and distinct accounts for the member and for the alternate payee, as set forth in a court order which meets the requirements of Section 3-560 and this Section 3-561.

(2) **Court Order.** In the event of a legal separation or dissolution or termination, the Board shall comply with a court order incident thereto which contains the following provisions:

(i) The division of the accumulated member contributions and credited service applicable to periods of service during the marriage or domestic partnership into two separate and distinct accounts in the name of the member and the alternate payee;

(ii) The right of the alternate payee to elect an option under Section 3-554 and designate a beneficiary with respect to the alternate payee's separate account;

(iii) The right of the alternate payee to a refund of accumulated contributions in the alternate payee's separate account;

(iv) For purposes of determining the amount of any retirement allowance payable to the alternate payee, final compensation (as defined in Section 3-501(i)(3)) shall be determined solely by the compensation earnable (as defined in Section 3-501(i)(2)) by the member during the period of marriage or domestic partnership;

(v) For purposes of applying the benefit formula of Section 3-541 for determining the amount of any retirement allowance payable to the alternate payee, the age of the alternate payee shall be used.

(3) **Refund of Contributions to an Alternate Payee.**

(i) An alternate payee who has been awarded a separate account shall possess the right to a refund of accumulated member contributions in that separate account at any time after the court order has been filed with the Retirement System.

(ii) The alternate payee shall file a written application with the Retirement System on a form provided by the System to obtain the refund.

(iii) Upon filing the application for a refund with the Retirement System, the alternate payee shall from that point on be deemed to have permanently waived any and all rights the alternate payee may have possessed in the Retirement System based on the member's employment, including any and all rights to any benefit or retirement allowance or any survivor benefits.

(iv) If, as of the date of separation of the member and his or her spouse or equivalent date for a domestic partnership as determined in the court proceedings, the member did not possess sufficient credited service to retire for service, then the alternate payee's only form of payment under this separate account option will be a refund of the accumulated member contributions allocated to his or her separate account.

(v) If an alternate payee has withdrawn his or her portion of the accumulated member contributions, the alternate payee shall not be allowed to redeposit those contributions with the Retirement System.

(4) **Retirement of Alternate Payee.** An alternate payee shall be deemed to be retired only if:

(i) The alternate payee files a written application with the Retirement System on a form provided by the System;

(ii) The member and the alternate payee have both attained the minimum age required for a service retirement; and

(iii) On the date of separation of the member and the alternate payee or the equivalent date for a domestic partner as determined in the court proceedings, the member possessed sufficient credited service to retire for service. A member who possessed sufficient credited service to retire before the division shall be deemed to continue to do so after the division, and so shall the alternate payee.

(5) **Calculation of the Alternate Payee's Retirement Allowance.**

(i) The alternate payee's retirement allowance shall consist of an annuity based upon the alternate payee's accumulated contributions and a pension based upon the alternate payee's credited service. Only the compensation earnable by the member during the period of marriage or domestic partnership and prior to the date of separation shall be used to determine final compensation.

(ii) The alternate payee's retirement allowance shall be eligible for cost-of-living increases under this Article 5.

(iii) No survivor or death benefits will be payable upon the death of the alternate payee, and such alternate payee upon remarriage or reestablishment of domestic partnership shall not be entitled to elect any of the optional forms of benefit.

(6) **Death of Alternate Payee Prior to Retirement of Alternate Payee.** If the alternate payee dies prior to retirement, then the accumulated contributions in the alternate payee's separate account shall be paid to the alternate payee's beneficiary as designated to the Retirement System on a form provided by the System. If a beneficiary has not been designated at the time of death or if the designated beneficiary is not living at the time of death, the accumulated contributions shall be paid to the alternate payee's estate. No other death benefits will be payable as a result of the death of the alternate payee.

(b) **Combined Account Option.** The Retirement System will comply with a court order incident to a legal separation or dissolution or termination which divides the community property interests of a member and the alternate payee, provided that:

(1) The alternate payee's interest is not to be paid before the member retires or dies, and

(2) The court order complies with the provisions set forth in Section 3-560, including the provision that the alternate payee will not be considered to be a surviving spouse or surviving domestic partner under Section 3-550 or any other Section of this Article 5.

(3) The court order may provide that the alternate payee's interest in the member's retirement allowance be paid over the lifetime of the member under the optional form of payment allowed by the System and selected by the member.

(i) With respect to the alternate payee's interest in the member's retirement allowance, the alternate payee may on a form provided by the System designate a permitted beneficiary as set forth in Section 3-560(b)(3). If the alternate payee predeceases the member, the person so designated shall receive until the member's death the benefit previously paid to the f alternate payee.

(ii) If a benefit is payable under Section 3-550 or 3-552 upon the member's death, as long as payments are payable under those provisions, one-half of the community property share thereof may be payable to the alternate payee or a permitted beneficiary as set forth in Section 3-560(b)(3) of the alternate payee.

(iii) If the member predeceases the alternate payee and the member has chosen option 2 or 3, the alternate payee or the permitted beneficiary as set forth in Section 3-560(b)(3) of the alternate payee may receive, as long as payments are payable under the selected option, one-half of the community property share of that portion of the allowance which would be continued after the member's death, regardless of dependents.

(4) In lieu of the payment method specified in subsection (3) above, the court order may provide that the alternate payee's interest in the member's retirement allowance be paid under any optional form of payment allowed by the Retirement System over the lifetime of the alternate payee (instead of over the lifetime of the member), provided that,

(i) The sum of the actuarial present values of the member's and the alternate payee's allowances and survivor benefits shall not exceed the actuarial present value of the member's allowance and survivor benefits had they been payable to the member, assuming the member had never been married to or had never established a domestic partnership with the alternate payee; and

(ii) No survivor benefits under Section 3-550 or any other Section of this Article 5 are payable to any surviving spouse of the alternate payee.

(5) The court order may provide for the division of the community property interest in the death benefit under Section 3-537.

(Added Ord. 94-29, § 4, eff. 5-27-94; Am. Ord. 94-38, § 1, eff. 6-24-94; Am. Ord. 95-40, § 10, eff. 6-23-95; Am. Ord. 2002-12, § 2, eff. 3-19-02; Am. Ord. 2004-102, § 2, eff. 11-15-04; Am. Ord. 2006-17, § 8, eff. 3-10-06).

SEC. 3-562. DISSOLUTION OR LEGAL SEPARATION OR TERMINATION AFTER A MEMBER'S RETIREMENT.

(a) **Purpose.** The purpose of this section is to allow a court order to provide for an equitable distribution of retirement allowances and survivor benefits between a retired member and the alternate payee, without requiring the retirement system to pay increased benefits.

(b) **Form of Payment to Remain Unchanged.** If a retired member's marriage to the individual to whom the retired member was married at the time the retired member's retirement allowance commences is dissolved after retirement benefits commence or if they are legally separated or if a retired member's domestic partnership to the individual with whom the retired member had established a domestic partnership at the time the retired member's retirement allowance commences is terminated after retirement benefits commence, then the final judgment of dissolution or legal separation or termination or court order incident thereto may not in any way change the form or forms of payment under Section 3-554 selected by the member at retirement, except that any life annuity payable only for the member's life may be modified as set forth in Section 3-562(c) to provide that a portion thereof be payable for the alternate payee's lifetime.

(c) **Unmodified Allowance or Option 1.** If a member prior to retirement either did not select an option under Section 3-554 or selected Option 1 under that Section, the Retirement System will comply with a court order that divides the total actuarial present value of the allowances payable to the retired member according to the separate and community property interests of the retired member and the alternate payee. The court order may further provide that the divided value allocated to the retired member shall continue to be paid to the retired member in the same form as before the court order, and that the divided value allocated to the alternate payee shall be converted into the same form of payment, but payable for the life of the alternate payee instead of for the life of the retired member. The sum of the actuarial present values of the divided values for the retired member and the alternate payee shall not exceed the actuarial present value of the benefit otherwise payable immediately before the division to the retired member alone, excluding the value of any survivor benefits under Section 3-550 or under any other Section of this Article 5.

(d) **Survivor Benefits.** The court order may provide that any survivor benefits payable as a result of a retired member's death shall be payable to the beneficiary entitled thereto under this Article 5, provided that the alternate payee's one-half community property share therein can be paid directly to such alternate payee. No benefits shall be payable to the alternate payee after all beneficiaries entitled to the retired member's survivor benefits are no longer entitled thereto.

(e) **Option 2 or 3.** If a member at retirement selected either Option 2 or 3 under Section 3-554 for any portion of his or her retirement allowance, which options provide for retirement continuances to a person having an insurable interest in the member's life, the amount and the form of payment of the benefits payable pursuant to these options by the Retirement System cannot be changed, but the Retirement System will comply with a court order requiring that a portion of those payments be paid directly to the alternate payee (or to the beneficiaries named by the alternate payeeif he or she predeceases the retired member) rather than to the retired member or the retired member's beneficiary. In no event, however, shall the alternate payee's life replace the life of another previously named beneficiary under either Option 2 or 3.

(f) **Post-retirement Elections.** If a retired member made an election under Section 3-555 to name a new spouse or domestic partner as beneficiary and that marriage is dissolved or the parties become legally separated or the domestic partnership is terminated, no surviving spouse or surviving domestic partnership benefits will be paid to the alternate payee, but the Retirement System will comply with a court order that divides the present value of the allowance payable for the retired member's life between the retired member and the alternate payee. The court order may further provide that the divided value allocated to the retired member shall continue to be paid to the retired member for life, and the divided value allocated to the alternate payee shall be converted into monthly payments for the life of the alternate payee instead of for the life of the retired member.
(Added Ord. 94-29, § 5, eff. 5-27-94; Am. Ord. 94-38, § 1, eff. 6-24-94; Am. Ord. 2002-12, § 3, eff. 3-19-02; Am. Ord. 2004-99, § 4, eff. 11-15-04; Am. Ord. 2004-102, § 3, eff. 11-15-04; Am. Ord. 2006-17, § 9, eff. 3-10-06).

SEC. 3-563. JUDICIAL REVIEW OF CERTAIN BOARD DECISIONS.

The provisions of Section 1094.6 of the California Code of Civil Procedure shall be applicable to decisions of the Board denying an application for a retirement benefit or allowance or entitlement.
(Added Ord. 95-40, § 11, eff. 6-23-95).

SEC. 3-564. DIRECT TRANSFERS OF ELIGIBLE ROLLOVER DISTRIBUTIONS.

(a) If, under the provisions of this Article, a distributee becomes entitled to an eligible rollover distribution, the distributee may elect to have the distribution or any portion thereof paid directly to an eligible retirement plan specified by the distributee.

(b) The election made pursuant to this Section shall be in accordance with the terms and conditions established by the Board.

(c) Upon the exercise of the election by a distributee pursuant to this Section, the distribution from the retirement fund of the amount designated by the distributee shall be made in the form of a direct transfer to the eligible retirement plan so specified.

(d) For purposes of this Section, "distributee" means a member, a surviving spouse, or a former spouse under a domestic relations order which is treated as a qualified domestic relations order to the extent provided in Internal Revenue Code Section 414(p)(11), and such other persons as come within the meaning of the term as used in Section 401(a)(31)(A) of the Internal Revenue Code. Effective for plan years on or after January 1, 2010, a distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by Section 401(a)(9)(E) of the Internal Revenue Code. However, a nonspouse beneficiary may only make a direct rollover to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity shall be treated as an "inherited" individual retirement account or annuity.

(e) For purposes of this Section, "eligible rollover distribution" means a distribution from the retirement fund which constitutes an eligible rollover distribution within the meaning of Section 401(a)(31)(C) of the Internal Revenue Code, i.e., any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include:

(1) Any distribution that is one of a series of substantially equal periodic payments (not less than frequently than annually) made (i) for the life (or expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary or (ii) for a specified period of ten years or more;

(2) Any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code;

(3) The portion of any distribution that is not includable in gross income; or

(4) Any distribution that is reasonably expected to total less than $200 during the year. Effective January 1, 2002, a portion of a distribution shall not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only (i) to an individual retirement account or annuity described in Section 408(a) or (b) of the Internal Revenue Code or to a qualified defined contribution plan described in Section 401(a) of the Internal Revenue Code; (ii) on or after January 1, 2007, to a qualified defined benefit plan described in Section 401(a) of the Internal Revenue Code or to an annuity contract described in Section 403(b) of the Internal Revenue Code, that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or (iii) on or after January 1, 2008, to a Roth IRA described in Section 408A of the Internal Revenue Code.

(f) For purposes of this Section, "eligible retirement plan" means a plan which constitutes an eligible retirement plan within the meaning of Section 401(a)(31)(D) of the Internal Revenue Code, the terms of which permit the acceptance of rollover distributions and is limited to the following:

(1) an individual retirement account described in Section 408(a) of the Internal Revenue Code,

(2) an individual retirement annuity described in Section 408(b) of the Internal Revenue Code,

(3) an annuity plan described in Section 403(a) of the Internal Revenue Code, er

(4) a qualified trust described in Section 401(a) of the Internal Revenue Code.

(5) effective January 1, 2002, an annuity contract described in Section 403(b) of the Internal Revenue Code,

(6) effective January 1, 2002, a plan eligible under Section 457(b) of the Internal Revenue Code that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or a political subdivision of a state that agrees to separately account for amounts transferred into that plan from the retirement system, or

(7) effective January 1, 2008, a Roth IRA described in Section 408A of the Internal Revenue Code.

(g) This Section applies to distributions made on or after January 1, 1993.

(h) If this Article in Section 3-534 (Refund of Contributions) or Section 3-535 (Deferred Benefits After Separation) provides for a mandatory refund of contributions which constitutes an eligible rollover distribution under this Section and if an individual while a member does not elect to have such refund paid either directly to the individual or to an eligible retirement plan in a direct rollover, the amount to be refunded shall be credited to the Retirement Fund, with the individual as a former member being entitled thereafter to claim the amount so credited but without interest.
(Added Ord. 95-40, § 12, eff. 6-23-95; Am. Ord. 2011-2, § 11, eff. 3-7-11).

SEC. 3-565. MINIMUM REQUIRED DISTRIBUTIONS.

The City of Fresno Employees Retirement System shall pay all benefits in accordance with a reasonable good faith interpretation of the requirements of section 401(a)(9) of the Internal Revenue Code and the regulations in effect under that section, as applicable to a governmental plan within the meaning of Section 414(d) of the Internal Revenue Code. The City of Fresno Employees Retirement System shall be subject to the following provisions:

(a) Notwithstanding any other provision of this article, payment of a member's retirement allowance shall commence no later than the required beginning date which is the later of the following:

(i) The April 1 following the end of the calendar year in which the member attains age seventy and one-half (70½); or

(ii) The April 1 following the end of the calendar year in which the member retires.

(b) The member's entire interest must be distributed over the member's life or the lives of the member and a designated beneficiary, or over a period not extending beyond the life expectancy of the member or of the member and a designated beneficiary.

(c) If a member dies after the required distribution of benefits has begun, the remaining portion of the member's interest must be distributed at least as rapidly as under the method of distribution before the member's death.

(d) If a member dies before required distribution of the member's benefits has begun, the member's entire interest must be distributed within five (5) years of his death, unless it is to be distributed in accordance with the following rules:

(1) If the member's surviving spouse is the sole designated beneficiary, the member's remaining interest in the plan is distributed or begins to be distributed by

December 31 of the calendar year immediately following the calendar year in which the member died or by December 31 of the calendar year in which the participant would have attained age 70½, if later, and if the surviving spouse dies before the distribution to the surviving spouse begins, this Section shall be applied as if the surviving spouse were the plan member; or

(2) If the member's surviving spouse is not the sole designated beneficiary, the member's remaining interest is to be distributed over the life of the designated beneficiary or over a period not extending beyond the life expectancy of the designated beneficiary; and such distribution begins no later than December 31 of the calendar year immediately following the calendar year of the member's death.

(e) The death and disability benefits provided by the retirement system are limited by the incidental benefit rule set forth in section 401(a)(9)(G) of the Internal Revenue Code and Treasury Regulation Section 1.401-l(b)(l)(i) or any successor regulation thereto. As a result, the total death or disability benefits payable may not exceed 25% of the cost for all of the members' benefits received from the retirement system.

(f) Notwithstanding any other provision of this article, if a member has elected an option under section 3-554 and his or her surviving spouse is not the designated beneficiary, the periodic amounts payable to the member and any other designated beneficiary shall be adjusted only to the extent necessary to ensure that the minimum distribution incidental benefit requirement of Internal Revenue Code Section 401(a)(9) is satisfied.

(Added Ord. 97-23, § 1, eff. 6-21-97; Am. Ord. 2011-2, § 12, eff. 3-7-11).

SEC. 3-566. DEFERRED RETIREMENT OPTION PROGRAM ("DROP").

(a) **Purpose of DROP.**

(1) It is the intent of this section to create a voluntary deferred retirement option program ("DROP") for members.

(2) DROP is designed to be an alternate method of receiving retirement benefits.

(3) DROP is intended to be cost neutral to the System.

(4) DROP is intended to provide additional flexibility to the System by providing members with an additional method of receiving their retirement benefits.

(5) It is the intent of DROP not to jeopardize in any way the tax-qualified status of the System under the Internal Revenue Code. The provisions of this section may at any time be modified, with such modifications being given retroactive effect, if necessary to maintain the System's tax-qualified status.

(b) **Eligibility and Election to Participate in DROP.**

(1) Any member who has attained age 55 and who possesses sufficient credited service to be eligible for a service retirement shall be eligible to participate in DROP. The

eligibility age of fifty-five may be reduced to an age not less than age fifty, provided the member consents in writing to the early retirement reduction provisions set forth in section 3-541(4).

(2) The election to participate in DROP shall be voluntary and irrevocable. The election shall:

(i) Be made on a form provided by the System;

(ii) Designate a period of participation not to exceed one hundred and twenty (120) months;

(iii) Affirm that the member, on the date the member commences participation in DROP, shall cease accruing service credits;

(iv) Affirm that the member agrees to terminate City employment no later than completion of the designated DROP participation period;

(v) Constitute an application for service retirement no later than the end of the designated DROP participation period; and

(vi) Include the member's irrevocable election among the options in Section 3-554 (Optional Modification of Allowances).

(3) A member making the election shall execute such waivers with respect to state and federal employment discrimination and related laws, such releases, and such covenants as are required by the City or the System.

(4) By electing to participate in DROP:

(i) A member becomes subject to all of the provisions of this section;

(ii) For a member whose retirement allowance is determined under Section 3-501 (Definitions), average final compensation shall be determined solely by reference to the position or positions held by the member prior to the date the member commences participation in DROP; and

(iii) A member shall have DROP benefits credited to a DROP account pursuant to subsection (c) of this section.

(c) **DROP Accounts and DROP Benefits.**

(1) A DROP account is a nominal, bookkeeping account established within the System for each DROP participant. No System assets shall be separately segregated for any DROP account; a DROP participant shall not have a claim on any specific assets of the System.

(2) Amounts credited to a member's DROP account shall be vested, except to the extent deemed necessary by the Board in its sole discretion to maintain the System's tax-qualified status under the Internal Revenue Code.

(3) A member's DROP account shall be credited monthly with an amount which represents the service retirement allowance which the member would have received if the member had retired on the date the member commenced DROP participation.

(4) The monthly amount credited to a member's DROP account shall reflect any cost-of-living adjustments otherwise applicable to retired members.

(5) A member's DROP account shall be credited monthly with interest pursuant to subsection (d) of this section.

(d) **Interest Crediting to DROP Accounts.**

(1) Each DROP account shall be credited monthly with interest at the nominal monthly interest rate equivalent to the annual effective DROP interest rate adopted by the Board. The nominal monthly interest rate shall apply to the balance in each DROP account as of the beginning of each month and shall be applied before the monthly amount described in Section 3-566(c)(3) for that month has been credited to the account.

(2) The Board shall set an annual effective DROP interest rate, which shall apply to each DROP account during the retirement system's fiscal year in which the Board set the rate.

(3) In setting the annual effective DROP interest rate, the Board shall review and consider the most current actuarial report from the Board's actuary evaluating the cost neutrality of DROP.

(4) The Board shall review the net rate of return earned by the System's entire investment portfolio for each of the five prior fiscal years, including realized and unrealized gains and losses and as reduced by all investment expenses. These net rates of return shall be certified by the System's Retirement Administrator. The sum of the five net rates of return shall be divided by five to provide an average net rate of return.

(5) The Board shall set the annual effective DROP interest rate at a level it deems in its sole discretion necessary to maintain the cost neutrality of the DROP program. The Board shall not set the annual effective DROP interest rate lower than 3 percent below the average net rate of return as determined in Section 3-566(d)(4) nor higher than that average net rate of return.

(6) If the average net rate of return determined in Section 3-566(d)(4) is negative, the Board shall set a negative annual effective DROP interest rate, i.e., each DROP account balance shall be reduced accordingly.

(e) **Additional DROP Provisions.**

(1) The effective date of DROP participation for a member shall be the first of the month following the date the Board approves the member's fully completed DROP application.

(2) For a member whose effective date of a participation in DROP is prior to the effective date of Ordinance No. 2011-2 and notwithstanding Section 3-523 (Normal Contributions of Members) and Section 3-553(e) (Cost of Living Adjustment), the member shall cease making contributions to the System. For a member whose effective date

of participation in DROP is on or after the effective date of Ordinance No. 2011-2, the member shall continue to make contributions which shall be deposited into the member's DROP account.

(3) If a member becomes disabled while participating in DROP, the member shall be eligible to apply for disability retirement and shall be subject to the same disability eligibility requirements under Section 3-546 as if the member were not in DROP. Notwithstanding Section 3-547 (Allowance at Disability Retirement), if the Board grants the application, whether for a service-connected or non service-connected disability, the amount of the disability retirement allowance shall be the same as the amount then being credited monthly to the member's DROP account. However, if the Board determines that the disability is service-connected, the amount of the aggregate disability retirement allowance which equals (or is less than) one-third of the member's final compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(4) If a member dies due to non service-connected causes while participating in DROP, the member shall be deemed to have died after retirement.

(5) If a member dies on or after June 1, 2008 while participating in DROP and the Board determines that the causes are service-connected, the member shall be deemed to have suffered a service-connected death, with the survivorship benefit to be comprised solely of one-half the monthly amount currently being credited into the member's DROP account, adjusted for any optional modification elected by the member, and the balance in the DROP account paid pursuant to Sections 3-566(f) and 3-566(g)(2). If the Board determines that the member's death was service-connected, the amount of the survivorship benefit which equals (or is less than) one-third of the member's final compensation shall be in the nature of workmen's compensation and shall be nontaxable to the extent allowed by Section 104(a)(1) of the Internal Revenue Code.

(6) If a member marries while participating in DROP, the marriage shall be deemed to have occurred prior to the member's retirement only for purposes of satisfying any applicable benefit eligibility requirement.

(f) **Designation of DROP Beneficiary.**

(1) A member electing to participate in DROP shall designate a beneficiary of the member's DROP account.

(2) If a member dies while participating in DROP,

(i) A designated DROP account beneficiary who is either a surviving spouse or surviving domestic partner of the member or a child under the age of 18 of the member or a dependent parent of the member shall be entitled to select a form of distribution under Section 3-566(g)(2); or

(ii) A designated DROP beneficiary who is not listed in Section 3-566(f)(2)(i) shall receive a DROP account distribution in the form of a lump sum; or

(iii) If the designated DROP beneficiary is not then living, the balance in the DROP account in the form of a lump sum shall be distributed to the estate of the DROP participant.

(3) No DROP beneficiary designation shall modify a member's community property obligations under California law.

(g) **Distribution of DROP Account.**

(1) Upon termination of DROP participation and upon retirement from the City, a member shall:

(i) Receive the amounts credited to the member's DROP account, including interest; and

(ii) Begin receiving a monthly retirement allowance in the amount being credited to the member's DROP account.

(2) A member upon the completion of the designated DROP participation period shall select one of the following as the form of distribution of the member's DROP account:

(i) A lump sum; or

(ii) An amount payable monthly in equal monthly installments in accord with applicable provisions of the Internal Revenue Code;

1. The member shall be entitled to select an installment pay-out period not to exceed the lesser of ten years or the joint life expectancies of the member and the member's spouse;

2. The balance in the member's DROP account during the installment pay-out period shall be credited with simple interest monthly at the actuarially assumed interest rate;

3. No cost-of-living adjustment shall be made to the monthly amount;

4. Payments of the monthly amount shall terminate when the balance in the DROP account is reduced to zero;

5. If the retired member dies prior to receipt of the member's entire DROP account, then:

(a) A designated DROP beneficiary who is listed in Section 3-566(f)(2)(i) shall be entitled to select a form of distribution under Section 3-566(g)(2); or

(b) A designated DROP beneficiary who is not listed in Section 3-566(f)(2)(i) shall receive a DROP account distribution in the form of a lump sum; or

(c) If the designated DROP beneficiary is not then living, the balance in the DROP account in the form of a lump sum shall be distributed to the estate of the DROP participant.

6. The retired member may at any time request immediate payment of the entire balance remaining in the member's DROP account; or

(iii) Such other form of distribution, as is adopted by the Board and in accord with applicable provisions of the Internal Revenue Code.

(3) No distribution shall be made from a member's DROP account until the member terminates DROP participation.

(4) If a member dies while participating in DROP, the member's DROP account shall be paid pursuant to Sections 3-566(f) and 3-566(g)(2).

(h) **Termination of DROP Participation.** A member's participation in DROP shall automatically terminate upon the earliest occurrence of any of the following events:

(1) Completion of the member's designated DROP participation period; or

(2) Death of the member; or

(3) Approval by the Board of the member's application for a disability retirement; or

(4) Voluntary termination of a member's employment; or

(5) Involuntary termination of a member's employment, whether or not for cause, including layoffs or reductions in force and including the conclusion of any administrative or judicial appeals process.

(i) **General DROP Provisions.**

(1) The right is reserved at any time and from time to time, and retroactively if deemed necessary or appropriate, to amend in whole or in part any or all of the provisions relating to DROP. But no amendment shall be enacted which has the effect of decreasing the amount credited to a member's DROP account.

(2) The Board shall enact such rules and procedures as are necessary or appropriate to administer DROP.

(3) The Board shall issue annually to each DROP participant a statement of that member's DROP account balance.

(j) **Compliance with Applicable Provisions of the Internal Revenue Code and other Federal Laws.**

(1) It is intended that DROP shall not jeopardize the tax-qualified status of the System under the Internal Revenue Code. Full rights are reserved to modify this section to the extent necessary or appropriate to insure that DROP complies with applicable federal laws, regulations, and administrative rulings.

(2) Notwithstanding any other provision in this section, the DROP program shall be subject to the sections of the Internal Revenue Code applicable to governmental plans, as amended, and the regulations and rulings under those sections.

(k) **Employment Status During DROP Participation.** The employment status of a member electing to participate in DROP shall not be affected by that election.
(Added Ord. 97-67, § 1, eff. 12-18-97; Am. Ord. 2000-74, § 1, eff. 12-11-00; Am. Ord. 2006-17, § 10, eff. 3-10-06; Am. Ord. 2007-105, § 4, 1-28-08; Am. Ord. 2011-2, § 13, eff. 3-7-11; Am. Ord. 2011-3, § 2, eff. 3-11-11; Am. Ord. 2012-4, § 3, eff. 3-15-12; Am. Ord. 2021-013, § 4, eff. 5-17-21).

SEC. 3-567. POST-RETIREMENT SUPPLEMENTAL BENEFIT.

(a) **Purpose of the Post-Retirement Supplemental Benefit.**

(1) It is the intent of this section to create a post-retirement supplemental benefit to provide assistance to retirees to pay for various post-retirement expenses.

(2) It is the intent of this section that the post-retirement supplemental benefit is to be distributed if and only if distributable actuarial surplus, as defined in this section, is available to provide such benefit.

(3) It is the intent of this section that the post-retirement supplemental benefit not jeopardize in any manner the tax-qualified status of the System under the Internal Revenue Code. The provisions of this section may at any time be modified, with such modifications being given retroactive effect, if necessary, to maintain the System's tax-qualified status.

(4) It is generally the intent of this section to distribute only a single post retirement supplemental benefit to any given individual, except as provided in subsection (g)(3) of this section.

(5) It is generally the intent of this section that, if an individual is eligible to receive a post-retirement supplemental benefit from this System and from the Fire and Police Retirement System, the individual is to receive only the higher of the two benefits, except as provided in subsection (g)(3) of this section.

(b) **Definitions.** The following words as used in this section, unless a different meaning is plainly required by the context, shall have the following meanings:

(1) "Actuarial accrued liabilities" shall mean that portion, as determined under the actuarial funding method adopted by the Retirement Board, of the actuarial present value of retirement benefits and System expenses which are not provided for by future normal costs.

(2) "Actuarial value of assets" shall mean the value of cash, investments and other property of the System, as used by the System's actuary for the purpose of an actuarial valuation.

(3) "Actuarial surplus" shall mean the amount by which the actuarial value of the System's assets exceeds one hundred and ten percent (110%) of the System's actuarial accrued liabilities.

(4) "Actuarial deficit" shall mean the amount by which one hundred and ten percent (110%) of the value of the System's actuarial accrued liabilities exceeds the actuarial value of the System's assets.

(5) "Distributable actuarial surplus" shall mean the actuarial surplus as amortized over such period as is determined by the Board.

(c) **Eligibility for a Post-Retirement Supplemental Benefit.**

(1) A member or former member shall be eligible for a post-retirement supplemental benefit only if the member or former member has completed at least five full years of service with the City of Fresno.

(2) The following are eligible post-retirement supplemental benefit recipients:

(i) Former members receiving a service retirement allowance under section 3-535 (Deferred Benefits After Separation) or section 3-541 (Allowance At Service Retirement) or a disability retirement allowance under section 3-547 (Allowance At Disability Retirement); and

(ii) Beneficiaries receiving a monthly allowance under section 3-550 (Continuation Of Retirement Allowances After Death) or under section 3-552 (Allowance after Death Before Service Retirement) or under section 3-554 (Optional Modification Of Allowance).

1. In situations where a monthly allowance is divided among more than one beneficiary, such as where there is more than one child under age eighteen receiving an allowance under section 3-552 or where the allowance under section 3-550 is distributed to a qualifying surviving spouse or qualifying surviving domestic partner but where the allowance under section 3-554 (Option 2) is distributed to a different individual, only a single post-retirement supplemental benefit shall be paid, with that benefit being divided among the applicable beneficiaries based upon the ratio that each allowance being paid bears to the total of all allowances being paid with respect to the former member.

(3) Retired members and beneficiaries become eligible for the post-retirement supplemental benefit at the date they first commence receiving their monthly retirement allowance, but in no event prior to January 1, 1999.

(4) Ineligible to receive a Post-Retirement Supplemental Benefit are:

(i) Former members who withdrew their contributions from the System; and

(ii) Notwithstanding any other provision in this section to the contrary, members and former members who have completed less than five full years of service with the City of Fresno, with service with any other employer specifically excluded.

(d) **Determination of Amortization Period of Actuarial Surplus.**

(1) The Retirement Board shall consult with the System's actuary and thereafter adopt a period over which the actuarial surplus is to be amortized.

(2) The Retirement Board after consultation with the System's actuary may modify the amortization period.

(e) **Determination of Distributable Actuarial Surplus.**

(1) The Retirement Board shall at the meeting at which it receives and approves the periodic actuarial valuation report review and declare the amount of actuarial surplus as determined by the System's actuary.

(2) The Retirement Board shall then declare by resolution the amount of distributable actuarial surplus.

(f) **Allocation and Distribution of Distributable Actuarial Surplus.**

(1) The Distributable Actuarial Surplus shall first be used to reduce City and member contributions for cost of living increases pursuant to Sections 3-553(e) and (h).

(2) The Retirement Board shall divide the remaining distributable actuarial surplus into two components, one component composed of two-thirds of the distributable actuarial surplus and a second component composed of one-third of the distributable actuarial surplus.

(3) The two-thirds component of the distributable actuarial surplus shall be used to reduce or eliminate city contributions.

(i) In the event a portion of the two-thirds component remains after reducing or eliminating city contributions, the remainder shall be allocated to a City Surplus Reserve Account.

1. The City Surplus Reserve Account shall accrue interest at the average gross rate of return earned by the System's entire investment portfolio for each of the three prior fiscal years, including realized and unrealized gains and losses and as reduced by all investment related expenses.

2. The City Surplus Reserve Account shall be drawn upon in subsequent years if needed to reduce or eliminate the city's contributions.

(4) The one-third component of surplus shall be distributed among eligible post-retirement supplemental benefit recipients as follows:

(i) The Retirement Administrator shall determine the number of eligible post-retirement supplemental benefit recipients as of the date of the most recent actuarial valuation.

(ii) The following amount shall be distributed monthly to each eligible post-retirement supplemental benefit recipient commencing in January of the calendar year following the declaration of distributable actuarial surplus:

1. An amount which is the lesser of:

a. ninety-five percent (95%) of the sum of the distributable actuarial surplus, plus the balance in the PRSB Reserve Account as defined in subsection f(4)(iii) of the section as of June 30th of the most current actuarial valuation date, divided by the number in subsection f(4)(i) and then divided by twelve: or

b. the monthly health insurance premium being paid with respect to an active employee to the Fresno City Health and Welfare Trust or such other health insurance or health plan as is determined by the Board.

(iii) The portion of the distributable actuarial surplus that is not distributed shall be allocated to a Post-Retirement Supplemental Benefit Reserve Account ("PRSB Reserve Account").

1. The PRSB Reserve Account shall accrue interest at the average gross rate of return earned by the System's entire investment portfolio for each of the three prior fiscal years, including realized and unrealized gains and losses and as reduced by all investment related expenses.

2. The PRSB Reserve Account shall be drawn upon in subsequent years only to the extent necessary to increase the amount otherwise available to pay a monthly post-retirement supplemental benefit equivalent to a monthly health insurance premium as determined by the Retirement Board.

3. In the event of an actuarial deficit, amounts in the PRSB Reserve Account may be used to pay a post-retirement supplemental benefit in an amount as determined by the Board; in the absence of a positive balance in the PRSB Reserve Account, a post-retirement supplemental benefit shall not be paid.

(g) **General Post-Retirement Supplemental Benefit Provisions.**

(1) The right is reserved at any time and from time to time, and retroactively if deemed by the Board to be necessary or appropriate, to amend in whole or in part any or all of the provisions relating to the post-retirement supplemental benefit.

(2) The Board shall enact such rules and procedures as are necessary or appropriate to administer the post-retirement supplemental benefit.

(3) An individual who is a retired member of this System and also a surviving spouse or surviving domestic partner or beneficiary of a member of this System or of the Fire and Police Retirement System shall be eligible to receive two post-retirement supplemental benefits, one as a retired member and one as a surviving spouse or beneficiary.

(4) Except as provided in subsection g(3) of this section,

(i) an individual is entitled to receive only a single post-retirement supplemental benefit from the System, and

(ii) if an individual is eligible to receive a post-retirement supplemental benefit from the System and also from the Fire and Police Retirement System, the individual shall be entitled to receive only the larger of the two benefits.

(h) **Compliance with Applicable Provisions of the Internal Revenue Code and other Federal Laws.**

(1) It is intended that the post-retirement supplemental benefit not jeopardize the tax-qualified status of the System under the Internal Revenue Code. Full rights are reserved to modify this section to the extent necessary or appropriate to insure that the post-retirement supplemental benefit complies with applicable federal laws, regulations, and administrative rulings.

(2) Notwithstanding any other provision in this section, the post-retirement supplemental benefit shall be subject to the sections of the Internal Revenue Code applicable to governmental plans, as amended, and the regulations and rulings under those sections.

(i) **Effective Date.** The first actuarial valuation to which this section will apply is June 30, 1998. The PRSB benefit shall not be distributed earlier than January 1, 1999 and shall not be attributable to any period prior to January 1, 1999. (Added Ord. 98-53, § 1, eff. 8-27-98; Am. Ord. 2000-3, § 1, 2-10-00; Am. Ord. 2002-7, § 1, eff. 2-18-02; Am. Ord. 2002-9, § 1, eff. 3-19-02; Am. Ord. 2006-17, § 11, eff. 3-10-06).

SEC. 3-568. RECIPROCITY BETWEEN THE EMPLOYEES RETIREMENT SYSTEM AND THE CALIFORNIA PUBLIC EMPLOYEES RETIREMENT SYSTEM.

(a) **Purpose.** The purpose of this section is to extend to the members of other public agency retirement systems which adopt similar reciprocal provisions into their retirement ordinances or plans pursuant to Sections 20351, 20353, 31840.2, or 45310.5 of the California Government Code or pursuant to the charter of a City or a City and county or pursuant to the authority vested in any other public agency of the state of California (hereinafter "reciprocal systems"), and which have entered into an agreement to establish a reciprocal retirement system with the California Public Employees' Retirement System, the rights in this Retirement System set forth in this section.

(b) **Limitations On Application Of This Section.**

(1) Subject to subsection (f), the provisions of this section shall only apply to a person who satisfies either of the following requirements:

(i) The person is a member of this Retirement System, terminates his or her employment with the City, and becomes a member of a reciprocal system within six months of such termination of employment; or

(ii) The person is a member of a reciprocal system, terminates his or her employment pursuant to which he or she was a member of such reciprocal system, and becomes a member of this Retirement System within six months of such termination of employment.

(2) Except as provided in subsection (c) below, the provisions of this section shall apply only to a member whose termination and entry into employment resulting in a change in membership from this Retirement System to a reciprocal system, or from a reciprocal system to this Retirement System, as provided in subsection (b)(1) above, occurred after the effective date of February 18, 2002, specified in the agreement for reciprocal benefits between the Board of Administration of the Public Employees Retirement System and the Council of the City of Fresno.

(3) The provisions of this section relating to computation of final compensation shall apply to a member if such provisions would have applied had the member's termination and entry into employment occurred after the effective date of the agreement for reciprocal benefits.

(c) **Benefits.** The following provisions shall apply to a member who meets the requirement of subsection (b):

(1) Notwithstanding any provision of this plan or a reciprocal system plan in the matter of vesting, the member shall have the right to elect to leave his or her accumulated contributions on deposit in the Retirement System irrespective of the amount of such contributions or the length of service credited to the member under this Retirement System. Such election shall be irrevocable while membership in the reciprocal system continues.

(2) For the purpose of the calculation of contribution rates of the City and the members, the age of entry for a person entering this Retirement System from a reciprocal system shall be such person's age at entry into the reciprocal system.

(3) The average monthly salary during any period of service as a member of a reciprocal system shall be considered compensation to a member of this Retirement System for the purpose of computing final compensation for such member if all of the following conditions are satisfied:

(i) The member has attained the age of fifty years; and

(ii) The member retires concurrently under both this Retirement System and the reciprocal system; and

(iii) At the time of retirement, the member is credited with such period of service under the reciprocal system.

(4) Solely for the purpose of meeting the minimum service requirements for qualification for benefits and retirement allowances under this Retirement System, service shall also include service as an officer or employee of a reciprocal system, if all of the following conditions are satisfied:

(i) The member has attained the age of fifty years; and

(ii) The member retires concurrently under both this Retirement System and the reciprocal system; and

(iii) The salary for service in the reciprocal system constitutes compensation of a member of this Retirement System for purposes of calculating final compensation.

(5) A member shall be retired for disability and receive a retirement allowance based on the service credited to the member at the time of retirement during any period in which the member receives a disability retirement allowance under a reciprocal system, subject to the following limitations:

(i) Such allowance shall not exceed an amount which when added to the allowance paid under the reciprocal system equals the allowance which would be paid for a nonservice-connected (nonindustrial) disability if all the member's service had been credited under the reciprocal system; and

(ii) Such allowance shall in no event be less than an annuity which is the actuarial equivalent of the member's contributions, whether or not the disability is for service-connected (industrial) reasons.

(6) The death benefits for a member who dies from nonservice-connected (nonindustrial) causes as a member of a reciprocal system shall not exceed an amount which when added to the death benefits paid for such member under the reciprocal system equals the maximum death benefit payable under that system, subject to the following limitations:

(i) Such death benefits shall be at least the amount of the member's accumulated contributions; and

(ii) If death is cause by service-connected (industrial) injury or disease in the reciprocal system, the death benefits shall be the amount of the member's accumulated contributions.

(d) **Information And Data.** On the request of a reciprocal system, the Board shall supply information and data necessary for administration of the reciprocal system as it is affected by membership in the service credited under this Retirement System.

(e) **Interpretation Of This Section.** Interpretations of the provisions of this section shall be made with reference to interpretations that have been made relative to the California Public Employees' Retirement System—1937 Act County Employees' Retirement reciprocal provisions upon which these provisions are based.

(f) **Modification Of Rights.** All rights under this section are subject to modification as may be necessary to conform to amendments to the Public Employees' Retirement Law or the County Employees' Retirement Law of 1937 as provided in California Government Code Section 20353.
(Added Ord. 2002-5, § 1, 2-18-02; Am. Ord. 2007-105, § 5, eff. 1-28-08).

SEC. 3-569. RIGHTS OF DOMESTIC PARTNERS.

Full rights are reserved, at any time and from time to time and retroactively if deemed necessary or appropriate, to amend in whole or in part any and all provisions of this Article 5 relating to domestic partners. It is specifically intended that, if through the initiative process or otherwise, California law expands or reduces, rescinds or terminates the status and rights of domestic partners, whether current, surviving, or former, or the status and rights of domestic partnerships, then conforming expansions, reductions, rescission, or termination shall be deemed to be incorporated into this article, including retroactively. It is further intended that the domestic partner provisions of this Article not jeopardize the tax-qualified status of the System under the Internal Revenue Code; full rights are reserved to modify or rescind those provisions to insure compliance with applicable federal laws, regulations, and administrative rulings.
(Am. Ord. 2006-17, § 12, eff. 3-10-06).

SEC. 3-570. QUALIFIED EXCESS GOVERNMENTAL BENEFIT ARRANGEMENT.

(a) **Establishment of Plan and Trust.**

(1) **Establishment Of Plan and Trust.** The "City of Fresno Employees Retirement System Excess Benefit Plan and Trust" ("Plan") is hereby established, pursuant to Internal Revenue Code ("IRC") Section 415.

(2) **Purpose.** The purpose of this Plan is solely to provide the part of a Participant's Retirement Benefit that would otherwise have been payable under the City of Fresno Employees Retirement System ("Retirement System"), except for the limitations of IRC Section 415(b). This Plan is intended to be a "qualified governmental excess benefit arrangement" or "QEBA" within the meaning of IRC Section 415(m)(3) and must be interpreted and construed consistently with that intent.

This Plan is deemed a portion of the Retirement System solely to the extent required under, and within the meaning of, IRC Section 415(m)(3). This Plan is an "exempt governmental deferred compensation plan" described in IRC Section 3121(v)(3). IRC Sections 83, 402(b), 457(a) and 457(f)(1) do not apply to this Plan. With respect to IRC Section 457(a), the maximum amount that may be deferred under this Plan on behalf of any Participant for the taxable year may exceed both the amount in IRC Section 457(b)(2) (as adjusted for cost of living increases) and the percent of the Participant's includable compensation referred to in that IRC Section. The City will not hold any assets or income under this Plan in trust for the exclusive benefit of Participants or their Beneficiaries.

(b) **Definitions and Constructions.**

(1) **Definitions.** When the initial letter of a word or phrase is capitalized herein, it has the same meaning as defined below:

(i) "Administrator" means the City Manager or any entity or employee designated by the City Manager.

(ii) "Beneficiary" means an individual receiving a pension, an annuity, a retirement allowance, or other benefit provided under the Retirement System.

(iii) "Board" means the Employees Retirement Board acting as trustee of the Retirement System.

(iv) "City" means the City of Fresno.

(v) "Employer" means the City. Provided, however, that "Employer" as defined here is limited to entities which are the State, a political subdivision of the State, or an agency or instrumentality of the State. No employer which is not permitted to participate in a qualified governmental pension plan as defined in IRC Sections 401(a) and 414(d) shall be permitted to participate in the Plan.

(vi) "Excess Benefit" means the benefit determined in accordance with Section 4.01 of this Plan.

(vii) "IRC" means the Internal Revenue Code of 1986, as amended, or corresponding provisions of any subsequent federal income tax law, as applicable to a governmental plan.

(vii) "Member" means any person included in the membership of the Retirement System pursuant to Section 3-501 (n) and Section 3-515 of the City of Fresno Municipal Code.

(ix) "Participant" means a Member, Retiree, or Beneficiary who is entitled to benefits in accordance with Section 4 of this Plan.

(x) "Plan" means the "City of Fresno Employees Retirement System Excess Benefit Plan and Trust" established by this Ordinance pursuant to IRC Section 415.

(xi) "Plan Year" means the calendar year for purposes of the Plan.

(xii) "QEBA" means a Qualified Governmental Excess Benefit Arrangement within the meaning of IRC Section 415(m).

(xiii) "Retiree" means a former Member who is receiving a Retirement Benefit from the City under the Retirement System.

(xiv) "Retirement Benefit" means the amount of retirement income payable to a Retiree of an Employer, or the benefit payable to a Beneficiary, without regard to any limitations on that retirement income or benefit under IRC Section 415(b).

(xv) "Retirement Fund" means the fund of the Retirement System established under Section 3-513 of the City of Fresno Municipal Code.

(xvi) "Retirement System" means the City of Fresno Employees Retirement System, a defined benefit retirement plan administered by the Board.

(xvii) "State" means the State of California.

(xviii) "Trust Fund" means the separate trust fund established pursuant to Section 7 of this Plan, which fund constitutes a valid trust under the law of the State.

(xix) "Trustees" mean the members of the Board.

(2) **Construction.**

(i) Words used in this Plan in the masculine gender include the feminine gender where appropriate, and words used in this Plan in the singular or plural include the plural or singular where appropriate.

(ii) Whenever any actuarial present value or actuarial equivalency is to be determined under the Plan to establish a benefit, it will be based on reasonable actuarial assumptions approved by the Administrator in its sole discretion, and will be determined in a uniform manner for all similarly situated Participants.

(c) **PARTICIPATION.** All Members, Retirees, and Beneficiaries who were Members in the Retirement System on or before June 28, 1991, are eligible to and shall participate in this Plan if their Retirement Benefits from the Retirement System for a Plan Year would exceed the limitation imposed by IRC Section 415(b). The Administrator determines for each Plan Year which Members, Retirees, and Beneficiaries are eligible to participate in the Plan. Participation in the Plan begins each Plan Year once a Member, Retiree, or Beneficiary has an Excess Benefit in that Plan Year. Participation in the Plan ends for any Plan Year in which the Retirement Benefit of a Member, Retiree, or Beneficiary is not limited by IRC Section 415(b) or when all benefit obligations under the Plan to the Member, Retiree, or Beneficiary have been satisfied.

(d) **Payment of Benefits.**

(1) **Benefit Amount.** A Participant in the Plan will receive a benefit equal to the amount of retirement income that would have been payable to, or with respect to, a Participant by the City that could not be paid because of the application of the limitations on his or her retirement income under IRC Section 415(b). An Excess Benefit under the Plan will be paid only if and to the extent the Participant is receiving Retirement Benefits from the Retirement System.

(2) **Time for Payment; Form of Benefit.** The Administrator will compute and pay the Excess Benefit in the same form, at the same time, and to the same persons as such benefits would have otherwise been paid as a monthly pension under the Retirement System, except for the IRC Section 415 limitations. No election is provided at any time to the Participant, directly or indirectly, to defer compensation under this Plan.

(e) **Contributions and Funding.**

(1) **Funding.** The Plan is, and will remain, unfunded and the rights, if any, of any person to any benefits under the Plan are limited to those specified in the Plan. The Plan constitutes a mere unsecured promise by the Employer to make benefit payments in the future.

(2) **Contributions.**

(i) Based upon information provided by the Board or the Retirement System, the Administrator will determine the amount necessary to pay the Excess Benefit

under the Plan for each Plan Year. The required contribution will be the aggregate of the Excess Benefits payable to all Participants for the Plan Year and an amount determined by the Administrator to be a necessary and reasonable expense of administering the Plan. Contributions will not be calculated in a manner designed to pay future Excess Benefits. Under no circumstances will Employer contributions to fund the Excess Benefits be credited to or commingled with contributions paid into and accumulated in the Retirement Fund. Any contributions not used to pay the Excess Benefit for a current Plan Year, together with any income accruing to the Trust Fund, will be used, as determined by the Administrator, to pay the administrative expenses of the Plan for the Plan Year. Any contributions not used to pay the Excess Benefit for the current Plan Year that remain after paying administrative expenses of the Plan for the Plan Year will be used to fund administrative expenses or benefits of Participants in future Plan Years.

(ii) The Administrator will account separately for the amounts necessary to provide the Excess Benefit under the Plan for each Participant. But, this separate accounting will not be deemed to set aside these amounts for the benefit of a Participant. Benefits under this Plan will be paid from the Trust Fund.

(iii) The consultants, independent auditors, attorneys, and actuaries performing services for the Administrator may also perform services for this Plan; but, any fees attributable to services performed with respect to this Plan will be payable solely by the Employer or from the Trust Fund.

(iv) As set forth in Section (f)(1) of this Plan, the assets of the Trust Fund shall not be comingled with the assets of the Retirement Fund. Notwithstanding, and to the extent otherwise permitted by applicable law, the Retirement System shall apply a credit toward or otherwise adjust the Employer's contributions to the Retirement Fund each year to reflect benefits that are paid from this Plan rather than the Retirement System due to limits imposed by IRC Section 415(b). The amount of the credit or adjustment will be determined by a methodology acceptable to the Retirement System's actuary and such credit or adjustment will be implemented in compliance with applicable law.

(f) **Trust Fund.**

(1) **Establishment of Trust Fund.** The Trust Fund is established as a valid trust under the laws of the State, separate from the Retirement Fund, to hold contributions of the Employer. Contributions to this Trust Fund will be held separate and apart from the funds comprising the Retirement Fund and will not be commingled with assets of the Retirement Fund, and must be accounted for separately.

(2) **Trust Fund Purpose.** The Trust Fund is maintained solely to provide benefits under a qualified governmental excess benefit arrangement within the meaning of IRC Section 415(m), and pay administrative expenses of this arrangement.

(3) **Trust Fund Assets.** All assets held by the Trust Fund to assist in meeting the Employer's obligations under the Plan, including all amounts of Employer contributions made under the Plan, all property and rights acquired or purchased with these amounts and all income attributable to these amounts, will be held separate and apart from other funds of the Employer and will be used exclusively for the uses and purposes of Participants and general creditors as set forth in this Plan. Participants have no preferred claim on, or any beneficial interest in, any assets of the Trust Fund. Any rights created under the Plan are unsecured contractual rights of Participants against the Employer. Any assets held by the Trust Fund are subject to the claims of the Employer's general creditors under federal and state law in the event of insolvency.

(4) **Grantor Trust.** The Trust Fund is intended to be a grantor trust, of which the Employer is the grantor, within the meaning of subpart E, part I, subchapter J, chapter 1, subtitle A of the Code, and will be construed accordingly. This provision will not be construed to create an irrevocable trust of any kind.

(5) **Trust Fund Income.** Income accruing to the Trust Fund under the Plan constitutes income derived from the exercise of an essential governmental function upon which the Trust is exempt from tax under IRC Section 115, as well as IRC Section 415(m)(1).

(g) **Administration.**

(1) **Administrative Authority.** The City has the exclusive authority to control and manage the operation and administration of this Plan.

(i) The City has the power and authority (including discretion with respect to the exercise of that power and authority) necessary, advisable, desirable or convenient to enable it:

to establish procedures to administer the Plan not inconsistent with the Plan and the Code, and to amend or rescind these procedures;

to determine, consistent with the Plan, applicable law, rules or regulations, all questions of law or fact that may arise as to eligibility for participation in the Plan and eligibility for distribution of benefits from the Plan, and the status of any person claiming benefits under the Plan;

to make payments from the Trust Fund to Participants pursuant to Section 5 of this Plan;

to contract with a third party to perform designated administrative services under this Plan; and

to construe and interpret the Plan as to administrative issues and to correct any defect,

supply any omission or reconcile any inconsistency in this Plan with respect to same, subject to and consistent with the IRC.

(ii) Any action by the City that is not found to be an abuse of discretion will be final, conclusive and binding on all individuals affected thereby. The City may take any such action in such manner and to such extent as the City in its sole discretion may deem expedient, and the City will be the sole and final judge of such expediency.

(iii) The City will seek appropriate rulings from the Internal Revenue Service with regard to the status of the Plan under the IRC.

(2) **Advice.** The City may employ one or more persons to render advice with regard to its responsibilities under the Plan.

(3) **Payment of Benefits.** If in doubt concerning the correctness of its action in making a payment of a benefit, the City may suspend payment until satisfied as to the correctness of the payment or the person to receive the payment.

(4) **Delegation by Administrator.** The Administrator will handle the day-to-day operation of the Plan and may delegate certain functions to a third party.

(h) **Plan Amendments.** The City from time to time may amend, suspend, or terminate any or all of the provisions of this Plan as may be necessary to comply with IRC Section 415(m) and to maintain the Plan's or the Retirement System's qualified status under the IRC.

(i) **Nonassignability and Exemption from Taxation and Execution.** The interests of Participants under this Plan are exempt from any state, county, municipal or local tax, and are not subject to execution, garnishment, attachment, or any other process of law whatsoever, and are unassignable and nontransferable, except as otherwise provided by Section (f) or otherwise as in the same manner as a Retirement Benefit under the Retirement System.

(j) **Miscellaneous.**

(1) **Federal and State Taxes.** The Employer, Administrator, Board, Trustees and the Retirement System, do not guarantee that any particular Federal or State income, payroll, or other tax consequence will occur because of participation in this Plan.

(2) **Investment.** The Administrator may hold a portion of the assets of the Plan uninvested as it deems advisable for making distributions under the Plan, or may invest assets of the Plan pending the Excess Benefit payments in short-term investment grade instruments as otherwise permitted by law.

(3) **Conflicts.** In resolving any conflict between provisions of the Plan, and in resolving any other uncertainty as to the meaning or intention of any provision of the Plan, the prevailing interpretation will be the one that (i) causes the Plan to constitute a qualified governmental excess benefit arrangement under the provisions of IRC Section 415(m) and the Trust Fund to be exempt from tax under IRC Sections 115 and 415(m), (ii) causes the Plan and the Administrator to comply with all applicable

requirements of the IRC, (iii) causes the Plan and the Administrator to comply with all applicable State laws, and (iv) causes the Trust Fund to constitute a grantor trust under the IRC.

(4) **Limitation on Rights.** Neither the establishment or maintenance of the Plan, nor any amendment to the Plan, nor any act or omission under the Plan (or resulting from the operation of the Plan) may be construed:

(i) as conferring upon any Participant or any other person a right or claim against the Employer, Administrator, Board, Trustees or the Retirement System, if any, except to the extent that the right or claim is specifically expressed and provided in the Plan;

(ii) as creating any responsibility or liability of the Employer for the validity or effect of the Plan;

(iii) as a contract between the Employer and any Participant or other person;

(iv) as being consideration for, or an inducement or condition of, employment of any Participant or other person, or as affecting or restricting in any manner or to any extent whatsoever the rights or obligations of the Employer or any Participant or other person to continue or terminate the employment relationship at any time; or

(v) as giving any Participant the right to be retained in the Employer's service or to interfere with the Employer's right to discharge any Participant or other person at any time.

(5) **Erroneous Payments.** Any benefit payment that should not have been made, according to the terms of the Plan and the benefits provided hereunder, may be recovered as provided by law.

(6) **Release.** Any payment to any Participant will, to the extent thereof, be in full satisfaction of the Participant's claim being paid thereby, and the Administrator may condition the payment on the delivery by the Participant of the duly executed receipt and release in a form determined by the Administrator.

(7) **Liability.** The City or Administrator, if any, will not incur any liability in acting upon any paper or document or electronic transmission believed by the City or Administrator to be genuine or to be executed or sent by an authorized person.

(8) **Governing Laws.** The City of Fresno Municipal Code and the laws of the State apply in determining the construction and validity of this Plan.

(9) **Necessary Parties to Disputes.** The only party necessary to any accounting, litigation or other proceedings relating to the Plan is the Administrator. The settlement or judgment in any case in which the Administrator is duly served will be binding upon all affected Participants in the Plan, their beneficiaries, estates and upon all persons claiming by, through or under them.

(10) **QEBA Funds Unsecured.** Nothing in this Ordinance shall be construed as providing for assets to be held in trust or escrow or any form of asset segregation from members, retired members, or beneficiaries except as specifically set forth in this Ordinance. To the extent any person acquires the right to receive benefits under this Plan, the right shall be no greater than the right of any unsecured general creditor of the City of Fresno, State of California.

(11) **Severability.** If any provision of the Plan is held by a court of competent jurisdiction to be invalid or unenforceable, the remaining provisions of the Plan will continue to be fully effective.

(Added Ord. 2015-23, § 1, eff. 9-10-15)

ARTICLE 6 EMPLOYER-EMPLOYEE RELATIONS

Sec. 3-601. Title of Article.
Sec. 3-602. Statement of Purpose.
Sec. 3-603. Definitions.
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Sec. 3-605. City Rights.
Sec. 3-606. Meet and Confer in Good Faith. Scope.
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Sec. 3-611. Elections. Formal Recognition.
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Sec. 3-613. Modification of Established Appropriate Unit Generally.
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Sec. 3-626. Rules and Regulations.

SEC. 3-601. TITLE OF ARTICLE.

This article shall be known as the Employer-Employee Relations Ordinance of the City of Fresno.
(Added Ord. 72-1, 1972).

SEC. 3-602. STATEMENT OF PURPOSE.

(a) The purpose of this article is to implement Chapter 10, Division 4, Title 1 of the Government Code of the State of California (Sections 3500, et seq.) by providing orderly procedures for the administration of employer-employee relations between the city and its employee organizations and for resolving disputes regarding wages, hours, and other terms and conditions of employment.

(b) Nothing contained herein shall be deemed to supersede other provisions of the Fresno Municipal Code. This article is intended, instead, to strengthen the civil service system by providing a method of administering employer-employee relations through the establishment of uniform and orderly methods of communication between organized city employees and the city.
(Added Ord. 72-1, 1972).

SEC. 3-603. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1, of this Code shall also govern the construction, meaning, and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Appropriate unit" means a group of classes of positions in the city service designated as a unit to be represented by a recognized employee organization in meeting and conferring on matters within the scope of representation.

(c) "City" means the City of Fresno, a municipal corporation, and where appropriate herein, "City" refers to the Council or any duly authorized executive management employee as herein defined.

(d) "Confidential employee" means an employee who is privy to decisions of city management affecting employer-employee relations.

(e) "Consult" or "consultation in good faith" means to communicate orally or in writing for the purpose of presenting and obtaining views and advising of intended actions.

(f) "Director" means the Chief Administrative Officer of the city or such other person in the city service as he shall designate in writing to act on his behalf in the exercise of any power or the performance of any duty of the Director under this article.

(g) "Employee" means any person holding a permanent position, as defined in Section 3-201.

(h) "Employer-employee relations" means the relationship between the city and its employees and their employee organization.

(i) "Employee-organization" means any organization or joint council of two or more organizations, or its duly authorized representative, which includes employees of the city and, as one of its primary purposes, represents such employees in their employment relations with the city.

(j) "Executive management employee" means any employee having significant responsibilities in the formulating or administering of city policies and programs, including, but not limited to, the Chief Administrative Officer, the City Attorney, the City Clerk, and all department heads, together with their deputies and such other of their principal subordinates as are so designated by the Director based upon recommendation of the Chief Administrative Officer, the City Attorney, the City Clerk, or the department head concerned.

(k) "Fact finding" means the identification of the major issues in a particular dispute, a review of the position of the parties, and the making of findings of fact on the issues in dispute, without recommendation (other than the finding of mitigating facts under subsection (d) of Section 3-616), unless requested, in writing by all parties to the dispute, to make recommendations. A fact finder is an impartial person or a three-member panel skilled in matters of employer-employee relations, selected by mutual agreement of the affected parties.

(l) "Formal recognition" means the right of a formally recognized employee organization or a joint council, which has shown, pursuant to Sections 3-610 and 3-611, that it represents a majority of employees in an appropriate unit, to meet and confer in good faith as the formally recognized representative of employees in an appropriate unit.

(m) "Impasse" means:

(1) a deadlock in the annual meet and confer process between a formally recognized representative and the city over any matters concerning which they are required to meet and confer in good faith, or over the scope of such subject matter; or

(2) any unresolved complaint by an affected employee organization, advanced in good faith, concerning a decision of the Director made pursuant to Section 3-610, or 3-611.

(n) "Joint Council" means two or more employee organizations which have joined together for the purpose of seeking or exercising representation rights for an appropriate unit.

(o) "A majority" or "the majority" means "at least fifty percent plus one."

(p) "Management employee" means an executive management employee or a supervisory management employee.

(q) "Mediation" or "conciliation" means the efforts of an impartial third person or persons, functioning in the capacity of intermediary, to assist the parties in reaching a voluntary resolution of an impasse, through interpretation, suggestion, and advice. "Mediation" and "conciliation" are interchangeable terms.

(r) "Meet and confer in good faith" (sometimes referred to herein as "meet and confer" or "meeting and conferring") means the performance, by the Director or his duly authorized representative, and by the duly authorized representative of a formally recognized employee organization of their mutual obligation to meet at reasonable times and to confer in good faith regarding matters within the scope of representation in an effort to

(1) reach agreement on those matters within the authority of such representatives, and

(2) reach agreement on what will be recommended to the Council on those matters within the decision-making authority of the Council.

"Meet and confer in good faith" does not require either party to agree to a proposal or to make a concession.

(s) "Peace officer" means a peace officer as defined in Section 830 of the California Penal Code, except that, for the purposes of this article only, "peace officer" does not mean a member

of the Fire Department, whether or not such member is serving as a member of an arson investigating unit, as a deputy or assistant state fire marshal, or in any capacity wherein the member would have the status of peace officer for purposes other than that of this article.

(t) "Professional employee" means employees engaged in work requiring specialized knowledge and skills attained through completion of a recognized course of instruction, including, but not limited to, attorneys, physicians, registered nurses, engineers, architects, teachers, and various types of physical, chemical, and biological scientists.

(u) "Public safety service" means every employee who is a "fireman" or "policeman" as defined in Section 3-301(22) and (23).

(v) "Recognized employee organization" means an employee organization which has been granted formal recognition by the Director pursuant to Section 3-610 and 3-611 or its duly authorized representative.

(w) "Scope of representation" means all matters relating to employer-employee relations, including, but not limited to, wages, hours, and other terms and conditions of employment. Employee rights as set forth in Section 3-604, and city rights as set forth in Section 3-605(a), are excluded from the scope of representation.

(x) "Supervisory management employee" means any employee having authority to effectively recommend the transfer, suspension, lay-off, recall, promotion, discharge, assignment, adjustment of grievances, or discipline of other employees, or having the responsibility to direct them if, in connection with the foregoing, the exercise of such authority is not of a merely routine or clerical nature, but requires the use of independent judgment. In order to differentiate leadmen from supervisory management employees, the allocation of classes to supervisory management categories for the purpose of assignment to supervisory management employee representation units shall be contingent on meeting both of the following minimum criteria:

(1) Employees in the class should perform a variety of the supervisory tasks listed above, but these tasks must include.

(i) assigning work to subordinate employees.

(ii) reviewing the work of subordinate employees.

(iii) evaluating the performance of subordinates, when required under any program of employee performance evaluation, and

(iv) the authority to effectively recommend the adjustment of grievances.

(2) No class shall be allocated to a supervisory management category unless the job duties of a majority of the positions therein

(i) require the incumbent to spend a minimum of twenty percent of his time engaged in performing the supervisory duties listed in (1),

(ii) include the supervision regularly of at least three subordinate employees, and

(iii) are such that the incumbent does not engage in work similar to that of his subordinates more than forty percent of his time. (Added Ord. 72-1, 1972; Am. Ord. 73-89, §§ 1, 2, eff. 6-31-73; Am. Ord. 74-51, § 1, eff. 6-24-74).

SEC. 3-604. EMPLOYEE RIGHTS.

Employees shall have the right to form, join, and participate in the activities of employee organizations of their own choosing for the purpose of representation on all matters of employer-employee relations including, but not limited to, wages, hours, and other terms and conditions of employment. Employees shall have the right to refuse to join or participate in the activities of employee organizations and shall have the right to represent themselves individually in their employment relations with the city. No employees shall be interfered with, intimidated, restrained, coerced, or discriminated against by the city or by an employee or an employee organization because of his exercise of any of these rights. No management employee or confidential employee shall act as a representative of any employee organization which represents employees other than management employees or confidential employees. (Added Ord. 72-1, 1972).

SEC. 3-605. CITY RIGHTS.

(a) The exclusive rights of the city include, but are not limited to, the right to

(1) determine the mission of its constituent departments, divisions, commissions, and boards;

(2) set standards of service and municipal fees and charges;

(3) determine the procedures and standards of selection for employment, assignment, transfer, and promotion;

(4) direct its employees;

(5) take disciplinary action;

(6) relieve its employees from duty because of lack of work or for other legitimate reasons;

(7) maintain the efficiency of governmental operations;

(8) determine the methods, means, and personnel by which government operations are to be conducted;

(9) determine the content of job classifications;

(10) take all necessary actions to carry out its mission in emergencies;

(11) exercise complete control and discretion over its organization and the technology of performing its work.

(b) All rights formerly or presently claimed by or vested in the city on the effective date of this article and not mentioned in subsection (a) are retained by the city unless explicitly waived by the city by resolution of the Council or by Council-approved memorandum of understanding. (Added Ord. 72-1, 1972).

SEC. 3-606. MEET AND CONFER IN GOOD FAITH. SCOPE.

(a) The city, through the Director, shall meet and confer in good faith with representatives of employee organizations and joint councils, having formal recognition, regarding matters within the scope of representation within the appropriate unit.

(b) The city shall not be required to meet and confer in good faith on any subject preempted by federal or state law or by the Charter, nor on employee rights or city rights as described in Section 3-604 or subsection (a) of Section 3-605. Proposed amendments to this article are excluded from the requirement to meet and confer. (Added Ord. 72-1, 1972).

SEC. 3-607. CONSULTATION IN GOOD FAITH. SCOPE.

All matters affecting employer-employee relations, including those that are not subject to meeting and conferring, are subject to consultation. The city, through the Director, shall consult in good faith with any employee or his representative on employer-employee relations matters which affect the employee. (Added Ord. 72-1, 1972).

SEC. 3-608. ADVANCE NOTICE.

(a) Except as provided in subsection (b) of this section, advance written notice shall be given by the Director to each recognized employee organization affected by any ordinance, rule, resolution, or regulation directly relating to matters within the scope of representation and proposed to be adopted by the Director, by the Council, or by any board or commission of the city, and each such organization shall be given the opportunity to consult with the Director prior to such adoption.

(b) In cases of emergency when the Director or the Council or any board or commission of the city adopts immediately an ordinance, rule, resolution, or regulation directly relating to matters within the scope of representation without prior notice or consultation with a recognized employee organization, the Director shall provide such notice and opportunity to consult at an early practicable time following the adoption of such ordinance, rule, resolution, or regulation. (Added Ord. 72-1, 1972).

SEC. 3-609. APPROPRIATE UNIT.

(a) The Director may, and after review of a petition filed by an employee organization seeking recognition pursuant to Section 3-610 shall, determine the appropriate unit or units. Prior to making such determination he shall consult with any employee organization which has filed such a petition relevant to the determination and any affected or interested employee or employee organization. The consultation shall be for the purpose of the obtaining of employee and organization views on any proposed determination, including effect and

operation of criteria stated in this section. The consultation time and place shall be set by the Director; consultation shall be informal and occur after reasonable notice has been given to such employees and organizations.

(b) The principal criterion in determining the appropriate unit shall be that the broadest feasible unit, based upon the internal and occupational community of interest among the employees therein, shall be established. The following factors, among others, are to be considered in making such determination:

(1) which unit will assure employees the fullest freedom in the exercise of rights set forth under this article;

(2) the history of employee relations

(i) in the proposed unit,

(ii) among other employees of the city, and

(iii) in similar public employment;

(3) the effect of the unit on the efficient operation of the city and sound employer-employee relations; and

(4) the extent to which employees have common skills, working conditions, job duties, or educational requirements.

(c) In the determination of the appropriate unit, the Director shall apply the following rules:

(1) Except in the case of confidential employees, a single class of employees shall not be divided among two or more appropriate units;

(2) no unit shall be deemed appropriate solely on the basis of the extent to which employees in the proposed unit have organized;

(3) professional employees shall not be denied the right to be represented separately from nonprofessional employees;

(4) confidential employees shall not be included in the same unit as nonconfidential employees; and

(5) management employees shall not be included in the same unit with nonmanagement employees; provided, however, that an employee classified as a Fire Captain or Police Sergeant may by secret ballot election, pursuant to Section 3-611, elect to be included in the same unit as nonsupervisory public safety services employees.

(d) Peace officers may form, join, participate in, and be represented by employee organizations of their own choosing for the purpose of representation on all matters of employer-employee relations as provided by this article, provided such employee organizations

(1) are composed solely of such peace officers;

(2) concern themselves solely and exclusively with wages, hours, working conditions, welfare programs, and advancement of academic and vocational training in furtherance of the police profession; and

(3) are not subordinate to any other organization which does not conform to (1) and (2). (Added Ord. 72-1, 1972).

SEC. 3-610. PETITION FOR FORMAL RECOGNITION.

(a) An employee organization or joint council that seeks formal recognition shall file a petition with the Director, in such form as the Director may prescribe, containing the following information and documentation;

(1) Name and address of the employee organization.

(2) Titles of its officers and names of incumbents therein.

(3) Names and titles of authorized employee organization representatives.

(4) A statement that the employee organization, as one of its primary purposes, represents employees in their employment relations with the city.

(5) Whether the employee organization is a chapter or local of, or affiliated directly or indirectly in any manner with, a regional, state, national or international organization, and, if so, the name and address of each such regional, state, or international organization.

(6) Copies of the employee organization's constitution or articles of incorporation and bylaws, including all amendments thereof, certified as true copies by an officer of the organization.

(7) A designation of the person, and his address, to whom notice will be deemed sufficient notice on the employee organization for any purpose.

(8) A statement that the employee organization recognizes, and has explained to its members, the applicability of Section 3-624 of this article, and the inapplicability of Section 923 of the California Labor Code, to city employees.

(9) A statement that the employee organization does not and will not impose any restriction on membership based on race, color, creed, sex, age, or national origin.

(10) A list of all the classes and the number of employees in each class in the unit claimed to be the appropriate unit.

(11) Written proof, as described in subsection (c), each dated by the signer within three months of the date upon which the petition is filed, to establish that a minimum of thirty percent of the employees eligible to vote in the unit claimed to be the appropriate unit have designated the employee organization to represent them in their employment relations with the city. Such written proof shall be furnished by submission with the petition of employee designations in the form required by subsection (c).

(12) A request that the Director grant formal recognition to the employee organization by recognizing it as the representative of the employees in the unit claimed in the petition to be the appropriate unit.

(b) The petition, including all accompanying documents, shall be verified under penalty of perjury by the Executive Officer or Secretary of the employee organization. If the petitioner is a joint council, information required by this section shall be supplied for each employee organization participating in the joint council. The Director may require additional specific information of any matter required to be included in the petition, and may require the periodic updating of all or any portion of the information.

(c) Written proof of the designation of the employee organization to represent any employee shall be made, utilizing substantially the following language and form:

EMPLOYEE'S DESIGNATION OF EMPLOYEE

ORGANIZATION TO REPRESENT THE EMPLOYEE

IN THE EMPLOYEE'S RELATION WITH THE

CITY OF FRESNO

The undersigned, being an employee of the City of Fresno,
hereby designates_____
(Name of Organization)

to represent the undersigned in all matters relating to employment conditions and employer-employee relations.

I understand the above organization will present this to the Director in order to become recognized by the city as my representative; that I am not required to sign this document, and I do so of my own free choice; and that until this designation is revoked by me in writing, I cannot have another organization represent me.

I acknowledge that the above organization has explained to me the applicability of Fresno Municipal Code Section 3-624 and the inapplicability of California Labor Code Section 923, to City employees.

Employee's Name_____

Class/Job Title_____

Department or Division_____

Dated this _____ day of _____, 19____, at Fresno, California.

/s/ _____
Signature of Employee

(d) No employee shall be represented by more than one recognized employee organization. (Added Ord. 72-1, 1972; Am. Ord. 76-90, § 2, 10-24-76).

SEC. 3-611. ELECTIONS. FORMAL RECOGNITION.

(a) After the appropriate unit has been determined pursuant to Section 3-609, and after the Director has received a petition filed pursuant to Section 3-610 with written proof that the petition represents a minimum of thirty percent of the employees eligible to vote in such appropriate unit, the Director shall arrange for a secret ballot election to determine the recognized employee organization for such appropriate unit. The election may be conducted by the State Conciliation Service or by any other independent organization providing election services when such other organization is selected by mutual agreement of the Director and any employee organizations having qualified for the ballot prior to the time arrangement for the election is made.

(b) Not less than thirty days before the date fixed for the closing of the ballot for any election, the Director shall give notice of the election. Such notice shall be headed "Notice of Election to Determine Employee Representative," and shall contain

(1) a description of the appropriate unit or units for which the election will be held;

(2) the date of the election;

(3) the hours during which the polls will be open for voting, provided that the polls shall be open for not less than six hours between 6 a.m. and 7 p.m.;

(4) the date and hour of the closing of the ballot for inclusion of names of employee organizations;

(5) the date and hour on or before which petitions pursuant to Section 3-610 must be filed with the Director in order to be considered for inclusion of the name of the filing employee organization on the ballot;

(6) the name of each employee organization which, as of the date of notice, has qualified for inclusion on the ballot;

(7) such other information relating to the election as the Director shall deem appropriate.

The notice shall be mailed to each employee organization which has filed with the Director a written request for notice of elections to be held under this section, and shall be posted on such bulletin boards on city premises and given such other publicity as in the judgment of the Director will be most likely to inform the affected employees and employee organizations. The applicability of all or any part of this subsection to any election conducted by the State Conciliation Service or other organization shall be as determined by that agency.

(c) Any employee organization shall be entitled to be included on the ballot for any election, provided it shall have:

(1) on or before the time specified in the notice of the election for the last filing of petitions, filed a petition pursuant to Section 3-610 with written proof that such organization represents ten per cent of the employees eligible to vote in the appropriate unit within which the election is to be held; and

(2) on or before the time specified in the notice of the election for the closing of the ballot, deposited with the Controller its pro rata share of the Director's estimate of the total cost of the election, together with its written agreement to pay its pro rata share of the actual cost of the election.

The choice of "no organization" shall also be included on the ballot.

(d) All employees shall be eligible to vote who were employed in positions within the appropriate unit on the last day of the pay period immediately prior to the date which is fifteen days before the election, and who are employed by the city in the same appropriate unit on the date of the election. An employee organization shall be granted formal recognition following announcement of the results of an election:

(1) if the employee organization received the votes of a majority of all the employees eligible to vote in the appropriate unit in which the election is held, or

(2) if at least sixty per cent of the total number of employees in the appropriate unit eligible to vote voted in the election, and the employee organization received a majority of all votes cast in the election.

The employee organization so granted formal recognition shall be the only employee organization entitled to meet and confer in good faith as the representative of employees in such appropriate unit on matters within the scope of representation.

(e) When an election involving three or more choices results in none of the choices having received a majority of the votes cast, and at least sixty per cent of the total number of employees in the unit eligible to vote voted in the election, a run-off election shall be conducted promptly thereafter between the two choices receiving the largest number of votes cast. The rules governing an initial election shall also apply to a run-off election. There shall be no more than one initial and one run-off election in a twelve-month period within the same unit. The twelve-month period shall commence on the date of the initial election, or, if there is a run-off election, the date of the run-off election.

(f) The cost of the election shall be paid by the employee organizations appearing on the ballot. The cost of the election will be shared on a prorated basis as follows: The votes cast for each employee organization appearing on the ballot will be totaled and equated to one hundred percent of the cost of the election. Each employee organization appearing on the ballot shall pay an amount equal to its percentage of the total votes cast in the election.

(g) The recognition rights of a recognized employee organization designated in accordance with this section shall not be subject to challenge by election for a period of at least twelve months following the date of such recognition. (Added Ord. 72-1, 1972).

SEC. 3-612. REVOCATION OF REPRESENTATION.

(a) A petition for revocation alleging that an employee organization granted formal recognition is no longer the representative of a majority of the employees in an appropriate unit may be filed with the Director only during the last two months of any calendar year following the year in which formal recognition was granted. The petition for revocation may be filed by an employee, a group of employees or their representative, or an employee organization. The petition, including all accompanying documents, shall be verified under penalty of perjury by the person signing it that its contents are true. The petition for revocation shall be filed with the Director and shall contain the following:

(1) The name, address, and telephone number of the petitioner and a designated representative authorized to receive notices or requests for further information;

(2) The name of the formally recognized employee organization whose recognition is sought to be revoked;

(3) An allegation that the formally recognized employee organization no longer represents a majority of the employees in the appropriate unit; and

(4) The signatures of at least thirty percent of the employees in the unit dated by the signers within three months of the date upon which the petition is filed.

(b) If the Director finds that the petition complies with subsection (a) above he shall, upon receipt of the deposit required by subsection (d), arrange for a secret ballot election which may be conducted by the State Conciliation Service to determine if the formally recognized employee organization shall retain its recognition rights. Formal recognition of such employee organization shall be revoked by the Director if a majority of those voting in such election vote for revocation.

(c) The Director shall fix a date for the election for revocation which shall not be less than thirty nor more than sixty days after the filing of the petition. The Director may consolidate any election for revocation with an election on a petition for formal recognition as majority representative of the same unit, provided the petition for formal recognition is filed at the same time as or within thirty days after the filing of the petition for revocation.

(d) Petitioner shall deposit with the Controller an amount equal to the Director's estimate of the cost of the election, and the total cost of the election shall be paid by the petitioner; provided, however, if the revocation election is consolidated with an election for formal recognition pursuant to subsection (c), the costs of election shall be shared, and deposits made, in accordance with Section 3-611, subsections (b) and (e).

(e) There shall be no more than one revocation election in the same unit in any twelve-month period.

(f) Notwithstanding any other provision of this Article, employees in the Police Supervisory Management Unit may, prior to June 15, 1977, file a written request with the Director that an election be held to determine if the Fresno Police Officers' Association shall retain its recognition rights with respect to such Unit. Such written request shall contain the following:

(1) The names, classes and signatures of not less than seventy-five per cent of the employees in the Unit;

(2) An assertion that the request is submitted voluntarily by the employees signing such request and an assertion that neither individually nor collectively have such employees been coerced in the exercise of their rights as employees, nor have such employees been promised any benefit as inducement to submit such request;

(3) An assertion that a majority of the employees in the Police Supervisory Management Unit prefer and opt for the status of and treatment as unrepresented management employees.

Such written request shall be dated not more than ninety days prior to its filing with the Director. Should such request be filed as herein provided, the Director shall fix a date for a secret ballot election for revocation which date may be within five working days of the effective date of this ordinance and shall be not later than June 30, 1977. Such election shall be conducted by the Director or his designee. Notice of the date of such election shall be posted in the Fresno Police Administration Building not less than three days prior thereto. Formal recognition of the Fresno Police Officers' Association as representative of the Police Supervisory Management Unit shall be revoked by the Director and such Unit shall be deemed dissolved if a majority of those voting in such election vote for revocation. (Added Ord. 72-1, 1972; Am. Ord. 77-41, § 1, eff. 5-27-77).

SEC. 3-613. MODIFICATION OF ESTABLISHED APPROPRIATE UNIT GENERALLY.

A petition for modification of an established appropriate unit may be filed by an employee organization with the Director during the annual two-month period for filing a petition for revocation. The petition for modification shall contain all of the information set forth in subsection (b) of Section 3-610, together with a statement of all relevant facts in support of the proposed modified unit. The provisions of Section 3-610, subsection (b) (11) to the contrary notwithstanding, the petition shall be accompanied by written proof that a majority of the employees within the proposed modified unit have designated the employee organization to represent them in their employment relations with the city. The Director, in accordance with Section 3-609, shall determine whether the existing appropriate unit shall be modified as proposed in the petition. If the Director determines that the proposed modified unit is a more appropriate unit, then he shall follow the procedures set forth in Section 3-611 for determining formal recognition rights in such unit. (Added Ord. 72-1, 1972).

SEC. 3-614. ADDITIONAL PROVISIONS RELATIVE TO MODIFICATION OF ESTABLISHED APPROPRIATE UNITS.

(a) Notwithstanding the provisions of Section 3-613, the existence of any of the following facts or circumstances, as determined by the Director, shall constitute grounds for modification of an established appropriate unit at any time:

(1) The creation of a new class in the city services;

(2) The deletion of a class from the city service;

(3) A change in the title of an existing class in the city service;

(4) A change in any of the factors originally utilized by the Director pursuant to Section 3-609 in establishing the appropriate unit in question;

(5) The discovery of a new factor which was not known to the Director at the time he originally allocated a class to an appropriate unit and which either contradicts one of the factors upon which his original decision was based or which would have compelled a different result at the time such allocation was made;

(6) Discovery of an error in the determination of any fact which was utilized in the allocation of any class to an appropriate unit, which error would have compelled a different result if known at the time such allocation was made.

(b) The Director may add a class to or delete a class from an appropriate unit at any time he finds one of the aforementioned grounds to exist, provided the employee organization representing each appropriate unit which would be modified by such action concurs therein. In the event such concurrence cannot be obtained, the matter shall be submitted in writing to an impartial third party selected in accordance with procedures established by the State Conciliation Service, for resolution. Such party may decide the matter on the writings submitted or may conduct a hearing in his discretion. The decision of such third party shall be binding upon all parties. Any fees and expenses for the service of the impartial third party shall be paid as follows:

(1) If the proposal of the Director is upheld, the fees and expenses shall be divided equally among any and all employee organizations which refused to concur therein.

(2) If the proposal of any nonconcurring employee organization is upheld the fees and expenses shall be borne by the city.

(3) In all other cases, the fees and expenses shall be apportioned among such parties as the third party, in his discretion, deems just.

(c) Notwithstanding (a) and (b) above, whenever the Director determines in accordance with the criteria specified in Section 3-603 that a position or class consists of management or confidential employees, he may, after ten days' written notice to all employees within such position or class or their representatives and the granting of an informal hearing thereon, remove any such position or class from the appropriate unit to which it had previously been

allocated and add such position or class to an appropriate unit consisting of management or confidential employees. Nothing in this subsection, however, shall have any effect on the outcome of an election conducted pursuant to subsection 2-1909(c)(5).
(Added Ord. 74-81, § 1, eff. 9-22-74).

SEC. 3-615. DESIGNATION OF CITY REPRESENTATIVE.

The Director is designated as the city's representative in all matters subject to the meet and confer process with authority to consult and meet and confer in good faith on all matters within the scope of representation.
(Added Ord. 72-1, 1972; Am. Ord. 74-51, § 2, eff. 6-24-74).

SEC. 3-616. UNFAIR EMPLOYEE RELATIONS PRACTICES.

(a) It is an unfair employee relations practice for an employee, employee organization, or an employee representative

(1) to interfere with, restrain, or coerce any employee in the exercise of his rights granted in this article; or

(2) to violate any provision of Sections 3-621 or 3-622; or

(3) to discriminate against any employee because of race, creed, sex, age, color, or national origin, caste or indigeneity with regard to the terms and conditions of membership in an employee organization; or

(4) repealed and reserved;

(5) to fail, or refuse, to cooperate in impasse procedures invoked pursuant to Section 3-617; or

(6) For a formally recognized employee organization to fail, or refuse, to meet and confer in good faith with the Director at reasonable times, places, and frequencies on matters within the scope of representation.

(b) It is an unfair employee relations practice for an elective officer or a member of a board or commission of the city, or an executive management employee

(1) to interfere with, restrain, or coerce any employee in the exercise of his rights granted in this article; or

(2) to attempt to dominate or control any employee organization; or

(3) to fail, or refuse, to cooperate in impasse procedures invoked pursuant to Section 3-617.

(c) It is an unfair employee relations practice for

(1) the Director to refuse to meet and confer in good faith with the representative of a formally recognized employee organization at reasonable times, places, and frequencies, or to consult within a reasonable time after request; or

(2) repealed and reserved;

(d) A charge of an unfair employee relations practice may be filed with the Director by an employee, employee organization representative, an elected official, or a management employee. Such charges shall be processed by the Director who shall with reasonable promptness initiate a fact-finding procedure. The fees and expenses of fact finders incurred pursuant to this section shall be payable as follows: If the unfair employee relations practice charge is found to be true, the party charged shall bear the costs of fact finding. If the charge is found to be not true, the charging party shall bear the costs of fact finding. If the fact finder finds facts mitigating the charged party's conduct, the fact finder shall prorate the costs accordingly. The fact finder's report shall be filed with the City Clerk and shall be a public record.
(Added Ord. 72-1, 1972; Amd. Ord. 2014-24, § 1, eff. 6-13-14; Amd. Ord. 2023-031, § 1, eff. 11-3-23).

SEC. 3-617. RESOLUTION OF IMPASSES.

(a) An impasse resulting from the meet and confer process shall be resolved through the use of the impasse resolution procedures prescribed by this section. The impasse resolution procedures may be initiated only after the exhaustion of the possibility of resolution of the impasse through the meet and confer process.

(b) Any party may initiate the impasse resolution procedures sequence.

(c) The impasse resolution procedures and the sequence in which they must be utilized shall be as follows:

(1) Impasse meeting:

(i) The party initiating the impasse resolution procedures sequence shall deliver to the other party or parties involved a written demand for an impasse meeting together with a statement of the initiating party's position on all matters at impasse.

(ii) Immediately after receipt or delivery by the Director of the written demand, the Director shall schedule an impasse meeting. The Director shall give at least 24 hours' written notice of the time and place of such meeting to all other parties involved in the impasse.

(iii) Prior to or at the commencement of such meeting, each party, who received a demand for or written notice of such meeting, shall deliver to each other party a statement of the position of such party on all matters at impasse.

(iv) The purpose of the impasse meeting is to permit a review and clarification of the position of all parties on all matters at impasse in a further effort to reach agreement, and, if agreement is not reached on all matters at impasse, to select a further impasse procedure for the matter or matters remaining at impasse.

(2) Mediation:

(i) Mediation may be initiated only by mutual agreement of the parties at impasse.

(ii) The parties may, by mutual agreement, select only the California State Conciliation Service or Federal Mediation and Conciliation Service to mediate the impasse.

(iii) The mediator shall be presented a position statement of each party on all matters at impasse.

(iv) Mediation proceedings shall be private. Neither the mediator nor party involved in the mediation shall make any public recommendations or take any public position concerning the matters at impasse.

(3) Fact finding:

(i) If agreement is not attained on all matters at impasse after ten days of mediation, any party who was a party in the mediation procedure may demand fact finding.

(ii) If agreement to mutually select the fact finder cannot be attained within five days of receipt of the demand for fact finding, the Civil Service Board shall designate the fact finder.

(iii) Neither the Civil Service Board, nor any member thereof, may be designated as the fact finder.

(iv) Fact-finding proceedings shall be private. Neither the fact finder nor any party involved in the fact finding shall make any public recommendation or take any public position concerning the matters at impasse until after the fact finder's report has been filed with the City Clerk.

(v) The fact finder's report shall contain no recommendations unless requested, in writing by all parties to the impasse, to make recommendations.

(vi) The fact finder's report shall be first delivered to the parties at impasse, within ten days after selection of the fact finder, except such period may be extended by mutual agreement of the parties.

(vii) If an impasse still exists five working days after delivery of the fact finder's report to the parties at impasse, the fact finder's report shall be filed with the City Clerk and shall be public information.

(4) Such other impasse resolution procedures as the parties may agree upon.

(d) The sequence of the impasse resolution procedures specified in subsection (c) hereof may be modified as follows:

(1) If the Director determines, from a review of the position statements of the parties at impasse, delivered pursuant to subsection (c) (1) (i) and (iii) that an impartial investigation

and determination of the facts will be likely to expedite an informed equitable resolution of the matter at impasse, the Director may require that such matter at impasse be submitted to fact finding before resort is had to any other impasse procedure.

(2) If the Director declines to agree to mediation on behalf of the city and fails to initiate fact finding under (1), any party to the impasse may require that the matter at impasse be submitted to fact finding before resort is had to any other impasse procedure.

(e) Any fees and expenses of fact finders, mediators, or of any other persons or agencies utilized pursuant to this section in furtherance of the resolution of an impasse shall be paid one-half by the city and one-half by the employee organization or organizations involved in the impasse. (Added Ord. 72-1, 1972).

SEC. 3-618. GRIEVANCES.

(a) A grievance is any dispute concerning the interpretation or application of this article, or rules or regulations governing personnel practices or working conditions. A grievance involves the claimed misapplication or misinterpretation of a rule or regulation relating to an existing right or duty; it does not relate to the establishment or abolition of a right or duty.

(b) A grievance must be initiated within fifteen days after the affected employee first knew or should have known of a grievable action or event. If the initiation of the grievance does not occur within said fifteen days, the grievance is void.

(c) Grievances shall be processed in accordance with the grievance procedure established by the Council by resolution. Such grievance procedure may be modified by consultation or meeting and conferring. (Added Ord. 72-1, 1972).

SEC. 3-619. MEMORANDUM OF UNDERSTANDING.

When a meeting and conferring process is concluded between the Director and a formally recognized employee organization, all agreed-upon matters shall be incorporated in a written memorandum or memoranda of understanding signed by the Director and the duly authorized representative. As to those matters within the authority of the Council, the memorandum of understanding signed by the Director and a duly authorized representative shall be submitted to Council for determination. (Added Ord. 72-1, 1972).

SEC. 3-620. DUES CHECK-OFF.

(a) A formally recognized employee organization only may have the regular dues of its members, within the appropriate unit for which the employee organization has been formally recognized as the representative, deducted from their paychecks, in accordance with procedures prescribed by the Controller. Dues deduction shall be for specified uniform amounts and shall be made only upon the voluntary written authorization of the members.

(b) Dues deduction authorizations shall be made upon dues authorization cards in the following form:

DUES DEDUCTION AUTHORIZATION

NEW ( ) CHANGE ( )

I, _____,
(Print full name)

employed as a _____,
(Print job title)

authorize and direct the Controller of the City of Fresno to make a payroll deduction from my earnings for my employee organization dues in the amount of _____ per month to be paid to

_____
(Name of formally recognized employee organization)

This authorization may be canceled and the payroll deduction discontinued upon written notice to the Controller during the last two months of a calendar year following the first full year of formal recognition of said organization.

The first deduction is authorized as soon as practicable after receipt of this authorization by the Controller.

I further authorize the deduction of any different amounts voted for, pursuant to the provisions of the _____ Articles or By-Laws at a general membership meeting and certified by the President of _____ and this authorization shall remain in full force and effect until rescinded by me on the proper card.

_____
Signature of Employee Date

DEPARTMENT #_____

S.S. #_____

(c) Except as otherwise provided in a Council-approved memorandum of understanding, a dues deduction authorization may be canceled by a member, and the dues check-off payroll discontinued, during the last two months of any calendar year following the first full year of formal recognition, upon voluntary written notice to the Controller, on cards furnished by the Controller in the following form:

DUES DEDUCTION REVOCATION

I, _____,
(Print full name)

employed as a _____,
(Print Classification Title)

hereby cancel all dues deduction authorization heretofore signed by me.

_____

Date

/s/ _____

Signature of Employee

(d) The employee's earnings must be sufficient after other legal and required deductions are made to cover the amount of the dues deduction authorized. When an employee is in a nonpay status for an entire pay period, no dues deduction shall be made from future earnings to cover that pay period, nor will the employee deposit with the Controller the amount which would have been deducted if the employee had been in a pay status during that period. In the case of an employee who is in a nonpay status during only a part of the pay period and the salary is not sufficient to cover other legal and required deductions, no dues deduction or deposit shall be made.

(e) A formally recognized employee organization for which dues are deducted shall pay to the city a service charge equal to the cost to the city, as determined by the Controller, of processing the dues deductions and check-off.

(f) Dues deducted by the city shall be transmitted to the officer designated in writing by the formally recognized employee organization as the person authorized to receive such funds, at the address specified.

(g) All formally recognized employee organizations who receive dues check-off shall thereby indemnify, defined [defend] and hold the city harmless against any claims made and against any suit instituted against the city on account of deduction or check-off of employee organization dues. In addition, each formally recognized employee organization shall refund to the city any amount transmitted in error, upon presentation of a claim therefor, accompanied by supporting evidence. (Added Ord. 72-1, 1972; Am. Ord. 75-98, § 1, eff. 11-2-75; Am. Ord. 76-91, § 1, eff. 10-24-76).

SEC. 3-621. MEET AND CONFER SESSIONS, EMPLOYEE PARTICIPATION.

(a) A formally recognized employee organization may select as many as two employee members of such organization from the appropriate unit represented by such organization, and one additional such employee member for each 250 employees, or fraction thereof, in excess of 200 employees in such unit, to attend, during regular duty or work hours without loss of compensation, meetings scheduled with the Director to meet and confer on matters within the scope of representation affecting such appropriate unit, and to participate in the discussions, deliberations and decisions at such meetings. The selection of such employee members, or substitutes or replacements therefor, and their attendance at meetings during their regular duty or work hours, shall be subject to the following:

(1) The organization's duly authorized representative shall inform in writing the department head or officer under whom each selected employee member is employed that such employee has been selected.

(2) No selected employee member shall leave his duty or work station or assignment without specific approval of his department head or other authorized executive management official.

(3) Substitutes or replacements for selected employee members shall not be made except with the concurrence of the Director.

(4) In scheduling meetings due consideration shall be given to the operating needs and work schedules of the department, division or section in which the employee members are employed.

(b) Such meetings may be scheduled either before, during or after the regular duty or work hours of any employee member selected pursuant to subsection (a). If such an employee member attends and participates in such a meeting held during his regular duty or work hours, he shall be deemed excused from duty, without loss of compensation, during the duty time required to attend such meeting and to go to such meeting and return therefrom to the location of his employment. In no event shall attendance at or travel to and from such meeting be deemed a part of the duties of such member's employment with the city so as to entitle him to overtime or any other extra compensation therefor whatsoever. (Added Ord. 72-1, 1972; Am. Ord. 75-46, § 1, eff. 6-16-75).

SEC. 3-622. ACCESS TO WORK LOCATIONS.

Reasonable access to employee work locations shall be granted officers of recognized employee organizations and their officially designated representatives, for the purpose of processing grievances or contacting members of their respective organizations concerning business within the scope of representation. Such officers or representatives shall not enter or be present at any work location without the consent of the Director. Consent of the Director may be given whenever the Director determines such access or presence will not interfere with the normal operations of the department or with established safety or security requirements. Solicitation of membership and activities concerned with the internal management of an employee organization, such as collecting dues, holding membership meetings, campaigning for office, conducting elections and distributing literature, shall not be conducted during working hours. (Added Ord. 72-1, 1972).

SEC. 3-623. AVAILABILITY OF DATA.

(a) The city will make available to employee organizations such nonconfidential information pertaining to employment relations as is contained in the public records of the city, subject to the limitations and conditions set forth in this article and Government Code Sections 6250—6260. Such information shall be made available during regular office hours in accordance with the city's rules and procedures for making public records available and after payment of any established charges therefor. Information which shall be made available to employee organizations includes regularly published data covering subjects under discussion. Data collected on a promise to keep its source confidential may be made available in statistical summaries, but shall not be made available in such form as to disclose the source.

(b) Nothing in this section shall be construed as requiring the city to do research for an inquirer or to do programming or assemble data in a manner other than usually done by the city. (Added Ord. 72-1, 1972).

SEC. 3-624. PROTECTED AND UNPROTECTED STRIKES AND WORK STOPPAGES.

(a) Nothing contained in this section is intended to waive or infringe upon any rights guaranteed to any party or entity under the Meyers Milias Brown Act (MMBA), Government Code §§ 3500, et seq., or any other applicable State or Federal law.

(b) Participation by an employee in an unlawful strike or work stoppage shall subject the employee to disciplinary action, up to and including removal from City service. Participation by an employee in a lawful strike or work stoppage is protected activity and will not subject the employee to disciplinary action. (Added Ord. 72-1, 1972; Am. Ord. 74-59, § 1, eff. 7-11-74; Am. Ord. 2003-45A, §§ 1, 2, eff. 7-18-03).

SEC. 3-625. CONSTRUCTION OF ARTICLE.

(a) Nothing in this article shall be construed to deny any person or employee the rights granted by City Charter provisions.

(b) The rights, powers, and authority of the Council in all matters, including the right to maintain any legal action, shall not be modified or restricted by this article.

(c) No act or acts of the Council, the city or any city officer, employee, or agent occurring before the effective date of this article, or occurring after said date, and not in conformity to this article shall constitute either formal or informal recognition of an employee organization, but the procedures for recognition appearing in this article are exclusive.

(d) Violation of this article shall not be a misdemeanor. (Added Ord. 72-1, 1972).

SEC. 3-626. RULES AND REGULATIONS.

The Director may adopt such rules and regulations necessary or convenient to implement the provisions of this article and Chapter 10, Division 4, Title 1 of the Government Code of the State (Sections 3500, et seq.). (Added Ord. 72-1, 1972).

Chapter 4

CITY PURCHASING, CONTRACTS AND SALES*

Art. 1. Purchases of Personal Property and Contracts for Services and Work.
Art. 2. Sale or Mortgage of Property.
Art. 3. Lost or Unclaimed Property.
Art. 4. Prevailing Wages for Public Works.
Art. 5. Design-Build Contracts.
Art. 6. Regulated Communications with Elected Officials in City Procurement Process.

***Editor's note—**Ord. 2007-96, §§ 1 and 3, effective January 19, 2008, amended the Code by repealing former ch. 4, §§ 4-101—4-119, 4-201, 4-202, 4-301—4-308, 4-401—4-404, 4-501—4-508, 4-601—4-608, and adding a new ch. 4. Original history information has been retained with the appropriate section, where possible.

ARTICLE 1 PURCHASES OF PERSONAL PROPERTY AND CONTRACTS FOR SERVICES AND WORK

Sec. 4-101. Duties of Purchasing Manager.
Sec. 4-102. Contracts Requiring Competitive Bidding.
Sec. 4-103. Public Policy and Use of Alternates and Alternative Bid Forms in Advertised Competitive Bidding.
Sec. 4-104. Debarment.
Sec. 4-105. Requisitions.
Sec. 4-106. Purchase Orders.
Sec. 4-107. Contracts Not Requiring Competitive Bidding.
Sec. 4-108. Local Preference in Contracts Requiring Competitive Bidding.
Sec. 4-109. Local Preference in Contracts for Consultant Services and Other Contracts.
Sec. 4-110. Processing of Invoices.
Sec. 4-111. Project Labor Agreements.
Sec. 4-112. Ineligibility to Compete.
Sec. 4-113. Utilization of Apprentices.
Sec. 4-114. Applicability of California Public Contract Code.
Sec. 4-115. Public Work of Improvement: Definition.
Sec. 4-116. Installation of Solar Energy Systems in Construction of New City-Owned Buildings.
Sec. 4-117. National Targeted Hiring in Contracts for Public Works Construction.

SEC. 4-101. DUTIES OF PURCHASING MANAGER.

(a) The Purchasing Manager, under the supervision and direction of the City Manager shall be the officer in charge of the purchasing function and shall have general charge of purchases of materials, supplies, equipment, services, and/or public works construction for the use of all departments and branches of the city government, except where otherwise provided by state law or this Code.

(b) The Purchasing Manager shall be authorized to develop, customize, and utilize forms and procedures for competitive bidding, Requests for Proposals, and other procurement methods.

(c) Upon receipt of a requisition filed pursuant to Section 4-105 and provided competitive bidding is not required, and the officer filing such requisition is authorized to purchase such materials, supplies, equipment, services, and/or public works construction, and an appropriation has been made therefor which has not been exhausted, it shall be the duty of the Purchasing Manager to purchase the materials, supplies, equipment, services, and/or public works construction of the same or comparable kind and quality as described in such requisition.

(d) Except for professional consulting services as provided in Section 4-109, it shall be the duty of the Purchasing Manager, in purchasing for the use of the city, to use his or her best efforts to secure the lowest price for materials, supplies, equipment, services and/or public

works construction, by calling for bids from providers, either verbally, by telephone or in writing, or may give notice to providers generally by one publication in a newspaper published in the city.
(Rep. and Added Ord. 5649, 1959; Am. Ord. 71-56, 1971; Am. Ord. 96-71, § 1, eff. 12-13-96; Am. Ord. 2002-25, § 1, eff. 6-16-02; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-102. CONTRACTS REQUIRING COMPETITIVE BIDDING.

(a) Every contract involving an expenditure of City moneys of more than the amount set forth in Section 1208(a) of the Charter for materials, supplies, equipment or for any public work of improvement shall meet the competitive bidding requirements set forth in said Charter Section.

(b) The term "competitive bidding" as used in this Chapter is the term used in the title of Section 1208 of the Charter. Whenever the term "advertised bidding" is used in this Chapter it shall mean the same as competitive bidding.

(c) Every person to whom a contract is awarded involving an expenditure in an amount subject to competitive bidding for the improvement, erection, or construction of any building, road, bridge, or other structure, excavating, or any mechanical work for the city, shall, before entering upon the performance of the work, file with the City Clerk a good and sufficient corporate surety bond for labor and materials in accordance with the provisions of the general law set forth in Civil Code Sections 3247 to 3252, as amended. Every such person shall also file a good and sufficient corporate surety bond in a similar amount conditioned upon faithful performance of the contract, prior to entering upon performance of the work. Nothing herein contained shall be deemed to preclude the requiring of such bonds on any contract involving a lesser expenditure or other work.
(Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-103. PUBLIC POLICY AND USE OF ALTERNATES AND ALTERNATIVE BID FORMS IN ADVERTISED COMPETITIVE BIDDING.

(a) Council Findings. The Council finds and declares that it is the intent of the Council in enacting this section to achieve the following objectives when awarding contracts for which competitive bidding is required by the Charter:

(1) To guard against actual (rather than the appearance of) favoritism, improvidence, extravagance, fraud and corruption.

(2) To prevent the waste of public funds.

(3) To obtain the best economic result for the public, securing the best public work of improvement, equipment, materials and supplies at the lowest price practicable.

(4) To stimulate advantageous market place competition.

(5) To administer competitive bidding so as to accomplish these objectives fairly and reasonably with sole reference to the public interest, because competitive bidding is for the benefit of property holders and taxpayers of the city, and not for the benefit or enrichment of the bidders.

(6) To administer competitive bidding so the process does not impede the usual and regular progress of the public business, or deprive the public, even temporarily, of those things necessary and indispensable to protect the public interest.

(b) Need for Budgetary Flexibility. The Council finds and declares that because the dollar amount of the lowest bid is not known until the bids are received and opened on the bid opening day, and because the amount of money available is limited, the city needs the budgetary flexibility afforded by:

(1) Allowing it to list items on which bidders must provide bid prices, but which may or may not be added to or deleted from the contract, depending upon the availability of funds; and

(2) Allowing it to utilize alternative bid forms in the same bid specifications on which bidders provide bid prices, but any such form may or may not be selected upon which to award the contract, depending upon the availability of funds.

(c) Alternates. The City Manager may include in the bid specifications a requirement that a bid for a city contract include prices for items that may be added to, or deducted from, the scope of work or description of the equipment, materials or supplies to be supplied in the contract for which the bid is being submitted. Whenever additive or deductive items are included in a bid, the respective bid specifications shall specify which one of the methods expressly set forth herein will be used to determine the lowest bid. In the absence of such a specification, only the method provided by Subdivision (1) will be used.

(1) Base Bid Method. The lowest bid shall be the lowest bid price on the base contract without consideration of the prices on the additive or deductive items.

(2) Specified Combination Method. The lowest bid shall be the lowest total of the bid price on the base contract and the price on any additive and deductive item that was specifically identified in the respective bid specifications as being used for the purpose of determining the lowest bid.

(3) Specified Priority Based on Available Funds Method. Any additive or deductive items shall be listed in the respective bid specifications in priority order. The lowest bid shall be the lowest total of the bid price on the base contract and the price on any additive and deductive item selected in the order of its specified priority as within the amount of available funds identified in the bid invitation.

(4) Council Findings Method. After consideration of the amount of the bids received and the combination of work to be performed, the lowest bid shall be the lowest total of any combination of bid price on the base contract and the price on any additive or deductive item identified in the respective bid specifications and selected by the Council when the Council finds an award to the responsive and responsible bidder of

the lowest bid either to be in the best interests of the city or obtains for the public the best economic result, and the purchase is authorized by resolution of the Council containing a declaration of the facts constituting the finding.

(d) Alternative Bid Forms. The City Manager may include in the bid specifications a requirement that a bid for a city contract include prices for items on one or more alternative bid forms. Whenever alternative bid forms are included in a bid, the respective bid specifications shall specify which one of the methods expressly set forth herein will be used to determine the lowest bid. In the absence of such a specification, only the method provided by Subdivision (1) will be used.

(1) Lowest Bid on Alternative Bid Forms Method. After applying to each alternative bid form the applicable method in subsection (c) for any additive or deductive items, the lowest bid shall be the lowest bid price of the alternative bid forms.

(2) Specified Priority Based on Available Funds Method. The alternative bid forms shall be listed in the respective bid specifications in priority order. After applying to each alternative bid form the applicable method in subsection (c) for any additive or deductive items, the lowest bid shall be the bid price of the alternative bid form selected in the order of its specified priority as within the amount of available funds identified in the bid invitation.

(3) Council Findings Method. After applying to each alternative bid form the applicable method in subsection (c) for any additive or deductive items, the lowest bid shall be the bid price of the alternative bid form selected by the Council after consideration of the amount of the bids received and the combination of work to be performed when the Council finds an award to the responsive and responsible bidder either to be in the best interests of the city or obtains for the public the best economic result, and the purchase is authorized by resolution of the Council containing a declaration of the facts constituting the finding.

(e) Award of Contract. Subject to the Council's right to reject any and all bids, a responsive and responsible bidder who submitted the lowest bid as determined by subsections (c) and (d) shall be awarded the contract. Except for a contract awarded pursuant to subdivision (c)(4), this section does not preclude the city from adding to, or deducting from, the contract any of the additive or deductive items after the lowest responsive and responsible bidder has been determined.
(Added Ord. 2003-11, § 6, eff. 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-104. DEBARMENT.

(a) **Findings.**

(1) The Council finds that contracting with the City of Fresno is an important municipal affair, and that the award of contracts to contractors who fail to deal with the city in good faith compromise the integrity of the contracting process and results in the improper expenditure of public funds. The Council recognizes the city must afford

contractors due process in any determination that precludes any individual or business entity from participating in the contracting process. This Section does not apply to a determination of nonresponsibility or a single contract or identifiable group of contracts, but for the broader determination of irresponsibility of a contractor for the general purpose of contracting with the city for a specified period. The Council therefore adopts this ordinance to prescribe standard procedures for the prosecution, determination, and implementation of administrative debarments.

(b) **Purpose and Intent.**

(1) In order to promote integrity in the city's contracting processes and to protect the public interest, the city shall only do business with responsible bidders and contractors.

(2) This Section sets forth the grounds for debarment and suspension.

(c) **Definitions.**

(1) "Adequate Evidence" means information sufficient to support the reasonable belief that a particular act or omission has occurred.

(2) "Affiliate" means

(i) the assignee, successor, subsidiary of, or parent company, of another person; or

(ii) a Controlling Stockholder of a person; or

(iii) a person who has the same or similar management of the debarred corporate or other legal entity; or

(iv) a person who directly or indirectly controls, or has the power to control, another person, or is directly or indirectly controlled by another person. Indicia of control include interlocking Management or ownership, identity of interests among Relatives, shared facilities and equipment, and common use of employees; or

(v) a business entity organized following the debarment, suspension, or proposed debarment of a person which has the same or similar Management, ownership or principal employees as the bidder or contractor that was debarred, suspended or proposed for debarment, or the debarred person or the business entity created after the debarment, suspension, or proposed debarment operates in a manner designed to evade the application of this Section or to defeat the purpose of this Section.

(3) "Bidder" means a person who submits a bid, proposal, or other document to the city seeking award of a contract. The term Bidder does not include a subcontractor.

(4) "Contract" means any written agreement between the city and a person for public works, goods, services, franchise, or consultant services.

(5) "Contractor" means a person who has contracted with the city to provide public works, goods, services, franchise, or consultant services for or on behalf of the city.

The term Contractor includes a subcontractor, vendor, franchisee, consultant, or any of their respective officers, directors, shareholders, partners, managers, employees, or other individuals associated with the Contractor, subcontractor, consultant, or vendor.

(6) "Controlling Stockholder" means a stockholder who:

(i) owns more than 25% of the voting stock of a corporation; or

(ii) notwithstanding the number of shares that the stockholder owns, has the power to direct or control the direction of the Management or policies of a corporation.

(7) "Debar", "Debarred", or "Debarment" means an action taken by the city which results in a Bidder or Contractor being prohibited from any of the following: bidding or proposing on a Contract, being awarded a Contract, or performing work on a Contract for a defined period of time. A Bidder or Contractor subject to such prohibition is debarred.

(8) "Debarment Hearing Board" means a board established by the City Manager to hold hearings, to take evidence, and to make Debarment determinations for the city.

(9) "Department" means a city Department acting through the Department director or designee.

(10) "Final Performance Evaluation" means a city-issued final evaluation of a Contractor's overall performance which is generally issued subsequent to completion of performance on the Contract.

(11) "Management" means the officers, partners, owners, foremen, or other individuals responsible for a corporate or other legal entity's financial and operational policies and practices,

(12) "Person" has the same meaning as that in Fresno Municipal Code Section 1-204(g). In addition, if a Person is a corporate or other legal entity, it includes individuals who constitute the Person's Management. It also includes any individual or other legal entity that:

(i) Directly or indirectly (e.g. through an Affiliate), submits offers for or is awarded, or reasonably may be expected to submit offers for or be awarded, a Contract, or a subcontract under a Contract; or

(ii) conducts business, or reasonably may be expected to conduct business, with the city as an agent or representative of another Person.

(13) "Preponderance of the evidence" means proof by information that, compared with that opposing it, leads to the conclusion that the fact at issue is more probably true than not.

(14) "Prime Contractor" means a Person who enters a Contract directly with the city.

(15) "Relative" means:

(i) an individual related by consanguinity within the second degree as determined by the common law; or

(ii) a spouse; or

(iii) an individual related to a spouse within the second degree as determined by the common law; or

(iv) an individual in an adoptive relationship within the second degree as determined by the common law; or

(v) any individual considered to be "family" in commonly understood terms of the word.

(16) "Subcontractor" means:

(i) a Person who Contracts directly with a Prime Contractor but not directly with the city; or

(ii) any Person under Contract with a Prime Contractor or another subcontractor to provide any service, materials, labor or otherwise perform on a Contract.

(17) "Suspend" or "Suspension" means the Debarment of a Bidder or Contractor for a temporary period of time pending the completion of an investigation and any proceedings before a Debarment Hearing Board or independent hearing officer and any appeals therefrom.

(d) **Scope of Section.**

(1) This Section establishes procedures for determining whether a Bidder or Contractor is to be Debarred, Suspended, or both.

(2) This Section sets forth the grounds for Debarment and Suspension.

(3) This Section provides that a list of Debarred and Suspended Persons is to be created and maintained by the City Manager. It further spells out the consequences of a Person's Debarment and Suspension.

(4) The City Manager shall adopt procedures and regulations to implement this Section, including procedures for the conduct of Debarment hearings, Suspension meetings, and appeals of Final Performance Evaluations.

(e) **Debarment Hearing Board.**

(1) Upon a recommendation from a Department for Debarment other than Debarments set forth in subsections (i)(1)(i) and (i)(1)(ii), the City Manager shall appoint a Debarment Hearing Board to hear and determine whether a Bidder or Contractor should be Debarred.

(2) The City Manager appoints the voting board members from the Capital Project Oversight Board to serve on the Debarment Hearing Board. The Debarment Hearing Board shall consist of no fewer than three Capital Project Oversight Board members.

The individuals on the Debarment Hearing Board must not have participated in the decision to recommend debarment or work in the Department recommending Debarment.

(f) **Suspension While Debarment Proceedings are Pending.**

(1) The City Manager may Suspend a Bidder or Contractor pending a Debarment decision if the City Manager determines that Adequate Evidence of one of the grounds for Debarment listed in subsection (h) exists.

(2) The City Manager shall, upon 72 hours' notice, provide a Suspended Bidder or Contractor with an opportunity to appeal the Suspension at an informal meeting.

(3) The City Manager shall notify the Bidder or Contractor of the Suspension in accordance with subsection (g).

(4) The Suspension is effective until the Debarment Hearing Board makes a final decision on the proposed Debarment, until there has been a final ruling by an independent hearing officer in accordance with subsection (j), or until a Bidder or Contractor is Debarred under subsection (l){5).

(g) **Notices Required Under This Section.**

(1) Notice shall be by any of the following methods:

(i) Personal delivery with service effective on the date of delivery; or

(ii) Certified mail, postage prepaid, return-receipt requested. Simultaneously, the same notice may be sent by regular mail. If a notice that is sent by certified mail is returned unsigned, then service shall be deemed effective five calendar days after mailing by regular mail, provided the notice that was sent by regular mail is not returned; or

(iii) Regular mail, if not returned, with service effective five calendar days after mailing; or

(iv) Publication. Service shall be deemed effective on the first date of publication.

(2) Proof of delivery of notice shall be made by the certificate of any officer or employee of the city or by declaration under penalty of perjury of any Person over the age of eighteen years. The proof of delivery shall show that delivery was done in conformity with this Section.

(3) The failure of any Person to receive any notice served in accordance with this Section shall not affect the validity of any Debarment proceedings.

(h) **Grounds for Debarment.**

(1) **Grounds for Permanent Debarment.**

(i) A judgment, settlement, stipulation, plea agreement, final conviction, including a plea of nolo contendere, or final unappealable civil judgment, of any of the grounds listed below, constitutes grounds for permanent Debarment of the

Bidder or Contractor who is subject to, or the Affiliate of, the Bidder or Contractor who is subject to the judgment, settlement, stipulation, plea agreement, final conviction, or final unappealable civil judgment:

1. under any local, state, or federal law or regulation for embezzlement, theft, bid rigging, perjury, forgery, bribery, falsification or destruction of records, conspiracy, collusion, or receiving stolen property; or
2. any offense, action, or inaction indicating a lack of business integrity or business honesty; or
3. for commission of a criminal offense arising out of obtaining or attempting to obtain a public or private Contract or subcontract, or in the performance of such Contract or subcontract.

(ii) The Bidder or Contractor has engaged in any corrupt practice in bidding, award, administration, or performance of a Contract, including but not limited to a Fair Political Practices Commission enforcement order against a Bidder or Contractor, either following a hearing or by stipulation, imposing a penalty for a violation of California Government Code sections 84300(c) or 84301, or a City of Fresno enforcement order against a Bidder or Contractor, either following a hearing or by stipulation, imposing a penalty for a violation of Fresno Municipal Code sections 2-901 et seq.

(iii) The Bidder or Contractor operates in a manner designed to evade the application of this Section or to defeat the purpose of this Section,

(iv) The city has issued the Bidder or Contractor four or more final performance evaluations with a rating of unsatisfactory in any four year period.

(v) The Person has committed an act or omission so serious or compelling in nature that it affects the present responsibility of the Bidder or Contractor to be awarded a Contract or to participate as a subcontractor.

(2) **Grounds for Debarment of Three Years or More.**

(i) The Bidder or Contractor willfully breaches a material term of a Contract.

(ii) Violation of a local, state, or federal law or regulation applicable to a Contract other than those identified in subsection (h)(1).

(iii) Three or more occurrences of substandard performance by the Bidder or Contractor on any Contract, including, but not limited to, (1) a material breach of the Contract; (2) a failure to complete work required under the Contract on time and/or within budget when such failure is attributable to the Bidder's or Contractor's negligent or wrongful actions or inactions; (3) substandard quality of work; or (4) failure to complete work and the City calls upon the performance bond holder to complete the work; (5) the amount of time required to complete the work exceeds the greater of 10% of the project schedule or two calendar weeks beyond the required contract completion date, as contained in the Contract, and liquidated damages were assessed; (6) Contractor's inability to

provide the necessary insurance coverage during the contract term; (7) Contractor's inability to acquire the necessary insurance coverage within thirty days of awarding the Contract; or (8) any negligent or wrongful failure to cooperate with the city such that timely, satisfactory completion of the work was jeopardized. The occurrences of substandard performance described herein may occur on the same Contract or on different Contracts.

(iv) The Bidder or Contractor used substandard materials, or has failed to furnish or install materials in accordance with Contract requirements, even if the discovery of the defect is subsequent to acceptance of the work and expiration of the warranty, if such defect is because of intentionally deficient or grossly negligent performance of the Contract.

(v) The Bidder or Contractor submits materially false information to the city pertaining to:

1. the city's evaluation of the Bidder or Contractor as a Disadvantaged Business Enterprise; or

2. the city's prequalification or eligibility process; or

(vi) The Bidder or Contractor has engaged in unlawful discrimination in employment.

(vii) The Bidder or Contractor has received three or more Final Performance Evaluations with a rating of unsatisfactory in any three year period.

(viii) The Bidder or Contractor fails to pay prevailing wages, when required by law.

(ix) The Bidder or Contractor violates a material provision of any settlement of a Debarment action.

(3) **Grounds for Debarment of Two Years.**

(i) A Bidder or Contractor may be Debarred for two years if a Bidder or Contractor has received two or more final performance evaluations with a rating of unsatisfactory in any two-year period.

(ii) Two or more occurrences of substandard performance by such Person on any city Contract, including, but not limited to, (1) a material breach of the Contract; (2) a failure to complete work required under the contract on time and/or within budget when such failure is attributable to such Person's negligent or wrongful actions or inactions; (3) substandard quality of work; or (4) failure to complete work and the City calls upon the performance bond holder to complete the work; (5) the amount of time required to complete the work exceeds the greater of 10% of the project schedule or two calendar weeks beyond the required contract completion date, as contained in the Contract, and liquidated damages were assessed; (6) Contractor's inability to provide the necessary insurance coverage during the contract term; (7) Contractor's inability to acquire the necessary insurance coverage within thirty days of awarding the Contract, or (8) any negligent or wrongful failure to cooperate with the city such

that timely, satisfactory completion of the work was jeopardized. The occurrences of substandard performance described herein may occur on the same Contract or on different Contracts.

(iii) One or more occurrences of substandard performance as provided in subsection (h)(3)(ii), within the first year after a Debarment pursuant to this Section.

(4) **Grounds for Debarment of One Year.**

(i) One or more occurrence(s) of substandard performance by such Person on any Contract, including, but not limited to, (1) a material breach of the Contract; (2) a failure to complete work required under the contract on time and/or within budget when such failure is attributable to such Person's negligent or wrongful actions or inactions; (3) substandard quality of work; or (4) failure to complete work and the City calls upon the performance bond holder to complete the work; (5) the amount of time required to complete the work exceeds the greater of 10% of the project schedule or two calendar weeks beyond the required contract completion date, as contained in the Contract, and liquidated damages were assessed; (6) Contractor's inability to acquire the necessary insurance coverage within thirty days of awarding the Contract; or (7) any negligent or wrongful failure to cooperate with the city such that timely, satisfactory completion of the work was jeopardized. The occurrences of substandard performance described herein may occur on the same Contract or on different Contracts.

(ii) The Bidder or Contractor made two or more claims of computational or other error in a bid to the city within a two-year period.

(iii) The Bidder or Contractor failed to timely submit bond, Contract, insurance documents, or any other documentation required as a condition of award or performance of a Contract.

(iv) The Bidder or Contractor has been found to have submitted claims with materially false information through a contractual and/or legal process, or has been found to have violated the False Claims Act (Cal. Gov. Code §§ 15650 et seq.).

(i) **Debarment Proceedings before a Debarment Hearing Board.**

(1) The Debarment Hearing Board shall hear all recommendations for Debarment other than:

(i) permanent Debarment, which are heard in accordance with subsection (j); and

(ii) Debarment based on unsatisfactory final performance evaluations, which are heard in accordance with subsection (I).

(2) The Debarment Hearing Board shall determine by a Preponderance of the evidence whether a Bidder or Contractor is to be Debarred and for what length of time in accordance with this Section. The Debarment Hearing Board may increase, decrease,

or accept the Department's recommendation of the length of Debarment. The Debarment Hearing Board may not impose less than the length of Debarment specified in subsections (h)(2), (h)(3), and (h)(4).

(3) The Debarment Hearing Board's decision on Debarment must be in writing and is final. The Debarment decision shall be issued to the Bidder or Contractor in writing.

(4) The failure of a Person recommended for Debarment to appear at a debarment hearing after notice under subsection (g) constitutes a waiver of that Person's right to contest the Debarment recommendation, and the Department's recommendation shall become final.

(j) **Debarment Proceedings before an Independent Hearing Officer.**

(1) The City Manager shall appoint an independent hearing officer as required by Section 1-405.

(2) An independent hearing officer shall hear all recommendations that include one or more grounds for permanent Debarment, except for Debarments based on unsatisfactory final performance evaluations, which are heard in accordance with subsection (l).

(3) The independent hearing officer shall determine by a preponderance of the evidence whether a Person is to be Debarred and for what length of time, in accordance with this Section. The independent hearing officer may increase, decrease, or accept the Department's recommendation of the length of Debarment. The independent hearing officer may not reduce the length of a permanent Debarment if the hearing officer determines a violation identified in subsection (h)(1) occurred, or impose less than the length of Debarment specified in subsection (h)(2) and (h)(4).

(4) The independent hearing officer's decision on Debarment must be in writing and is final. The Debarment decision shall be issued to the Bidder or Contractor in writing.

(5) The failure of a Person recommended for Debarment to appear at a Debarment hearing after notice under subsection (g) constitutes a waiver of that Person's right to contest the Debarment recommendation, and the Department's recommendation shall become final,

(k) **Imputation of Knowledge and Conduct.**

(1) The fraudulent, criminal, or other serious misconduct of any officer, director, shareholder, partner, employee, or other individuals associated with a Bidder or Contractor may be imputed to the Bidder or Contractor when the conduct occurred in connection with the individual's performance of duties for, or on behalf of, the Bidder or Contractor, or with the Bidder's or Contractor's knowledge, approval, or acquiescence. Acceptance of the benefits derived from the conduct shall be evidence of such knowledge, approval, or acquiescence.

(2) The fraudulent, criminal, or other serious misconduct of a Bidder or Contractor may be imputed to any officer, director, shareholder, partner, employee, or other individual associated with the Bidder or Contractor who participated in, knew of, or had reason to know of the Bidder's or Contractor's conduct.

(3) The fraudulent, criminal, or other serious misconduct of one Bidder or Contractor participating in a joint venture or similar arrangement may be imputed to other participating Bidders or Contractors if the conduct occurred for, on approval of, or acquiescence of these Bidders or Contractors. Acceptance of the benefits derived from the conduct shall be evidence of such knowledge, approval, or acquiescence.

(l) **Appeal of Final Performance Evaluations.**

(1) A Bidder or Contractor may appeal a final performance evaluation with a rating of unsatisfactory on a public works Contract or an architectural or engineering consultant Contract to the Public Works Director.

(2) A Bidder or Contractor may appeal a final performance evaluation with a rating of unsatisfactory on a goods, services, or non-engineering, non-architectural consultant Contract to the Purchasing Manager.

(3) A Bidder or Contractor must submit an appeal in writing to the Public Works Director or Purchasing Manager within sixty days after notice of the final performance evaluation pursuant to subsection (g). Evaluations may not be appealed after sixty days from the date of such notice.

(4) The decision of the Public Works Director and the Purchasing Manager to uphold an unsatisfactory performance evaluation shall be issued to the Bidder or Contractor in writing and is final.

(5) The City Manager may, upon recommendation of the Public Works Director or Purchasing Manager, Debar a Bidder or Contractor who has received an unsatisfactory final performance evaluation. This determination shall be in writing and is final.

(m) **Judicial Review.** California Code of Civil Procedure section 1094.6 governs judicial review of a final Debarment decision.

(n) **Creation of List of Debarred and Suspended Persons.**

(1) The City Manager shall create, maintain, and make publicly available a list of the names, addresses, and applicable Debarment or suspension commencement and expiration dates of all Debarred or Suspended Bidders and Contractors.

(2) The City Manager shall establish procedures to provide for the effective use of the list to ensure that the city does not do business with Bidders or Contractors who have been Debarred or Suspended.

(o) **Effect of Debarment or Suspension.**

(1) Bidders and Contractors who have been Debarred or Suspended are excluded from submitting bids, submitting responses to requests for proposal or qualifications, receiving contract awards, executing Contracts, participating as a subcontractor, employee, agent, or representative of another Person contracting with the city.

(2) The city shall not accept, evaluate for award, or include any proposals, quotations, bids, or offers from any Debarred or Suspended Bidders and Contractors.

(3) The city shall not award or approve the award of a Contract or execute a Contract under which a Debarred or Suspended Bidder or Contractor is intended to participate as a subcontractor or material supplier.

(4) A Prime Contractor shall not employ, subcontract with, or purchase materials, or services from, a Debarred or Suspended Bidder or Contractor.

(5) The City Manager shall report Debarments under this Section to the appropriate local, state, and federal agencies and authorities.

(p) **Effect of Debarment or Suspension on an Affiliate.**

(1) Affiliates are Debarred or Suspended to the same extent as the Debarred or Suspended Bidder or Contractor.

(2) A Bidder or Contractor may appeal the city's determination that the Bidder or Contractor is an Affiliate in writing to the City Manager within sixty days after notice of the Affiliate's Debarment pursuant to subsection (g).

(3) An Affiliate may not appeal the Debarment of any other Bidder or Contractor underlying the Affiliate's Debarment.

(4) The decision of the City Manager shall be issued to the Bidder or Contractor who is an Affiliate in writing and is final.

(q) **Effect of Debarment by Another Governmental Agency.** The City Manager may Debar a Bidder or Contractor who has been Debarred by another governmental agency until the term of the Debarment by the other governmental agency expires. The City Manager's decision under this section is final, and not subject to a hearing before the Debarment Hearing Board or an independent hearing officer.

(r) **Liability for Increased Costs.** Any Bidder or Contractor who enters into a Contract, either directly as a Prime Contractor or indirectly as a subcontractor, during a period of suspension or Debarment imposed upon that Bidder or Contractor, shall be liable to the city for increased costs incurred as a result of replacing the Debarred or Suspended Bidder or Contractor.

(s) **Effect of Debarment or Suspension on Existing Contracts.**

(1) The city may continue or terminate Contracts or subcontracts it has with a Debarred or Suspended Bidder or Contractor that are in existence at the time the Bidder or Contractor is Debarred or Suspended.

(2) The city shall not renew or otherwise extend the duration of current Contracts, or consent to subcontracts, with Debarred or Suspended Bidders or Contractors, unless the City Manager certifies in writing compelling reasons for such renewal or extension.

(3) The city may Contract with another Person to perform public works, goods, services, or consultant services that a Debarred Contractor had been hired to perform.

(t) **Agreement Not to Bid or Submit Proposals in Lieu of Debarment or Suspension.**

(1) The city may offer a Bidder or Contractor the opportunity to execute a written agreement not to bid or submit proposals or perform any work on Contracts in lieu of the city's pursuing Debarment or Suspension.

(2) This agreement not to bid or submit proposals for Contracts in lieu of the city's pursuing Debarment or Suspension does not constitute a Debarment.

(Added Ord. 2003-11, § 7, eff. 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2018-29, §§ 1, 2, eff. 6-23-18).

SEC. 4-105. REQUISITIONS.

Whenever any officer requires any materials, supplies, equipment, services, and/or public works construction for his or her office or department, he or she shall file with the Purchasing Manager a requisition on forms provided by the Purchasing Manager. Such requisition shall bear the approving signature or electronic equivalent of the officer or deputy who has jurisdiction of the department in which it originated. Such requisition shall specifically describe the article or articles and the kind and quantity desired. It may also specify the brand or make desired.

(Rep. and Added Ord. 5649, 1959; Am. Ord. 96-71, § 1, eff. 12-13-96; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-106. PURCHASE ORDERS.

(a) When the Purchasing Manager makes a purchase, he or she shall issue a purchase order. It shall be addressed to the seller, dated and numbered, and shall specify the articles or supplies to be purchased and the price, and shall state the place or to whom delivery of the article or articles so purchased shall be made.

(b) The original copy of the purchase order shall be delivered to the dealer or seller and the receiving copy or electronic equivalent thereof shall be delivered to the officer making the requisition. Upon receipt of the article or articles specified, the receiving copy shall be approved by a person designated by the City Manager or Department Director and returned promptly to the Finance Department.

(c) Any officer or employee who issues any requisition shall have personal knowledge of the receipt of such goods or the rendition of such services or work, shall have obtained such knowledge by individually checking such goods or observing the rendering of said services, and shall not accept goods, services or work which do not meet the specifications.
(Rep. and Added Ord. 5649, 1959; Am. Ord. 96-71, § 1, eff. 12-13-96; Am. Ord. 2007-96, § 3, eff. 1-19-08)

SEC. 4-107. CONTRACTS NOT REQUIRING COMPETITIVE BIDDING.

(a) Except for contracts for which competitive bidding is required by the Charter and contracts for any public work of improvement obtained pursuant to Chapter 4, Article 5 of this Code, the Purchasing Manager is authorized to contract for all equipment, materials, supplies and any public work of improvement required by the city for which an appropriation has been made.

(b) Except for contracts for legal services, the City Manager is authorized to enter into contracts for which an appropriation has been made or is unnecessary; provided the contract involves an expenditure of city moneys, receipts of funds from another party, or liability exposure of less than or equal to one hundred thousand dollars ($100,000.00). Council approval of any contract or any amendment to the contract for services under this subsection is required if the total proposed expenditure of city moneys under the contract and any amendments thereto exceeds the respective amount for which the City Manager is authorized to contract.

(c) The City Attorney is authorized to contract for all legal services required by the city for which an appropriation has been made.

(d) Council may authorize by resolution some other official or employee to contract for services, equipment, materials, supplies or public works construction for which competitive bidding is not required by the Charter.

(e) Splitting or separating into smaller work orders, projects, purchase orders or contracts for the purpose of evading the provisions of this section is prohibited. Splitting or separating shall mean and include reducing the amount of any service to be furnished to the city under circumstances where there is reasonable knowledge that the same service will be additionally required, there are funds available for that project or purchase and the sole purpose is to knowingly avoid the requirements herein. In instances where it is deemed to be to the benefit of the city to split or separate a transaction, the proposed splitting or separation shall be referred to the Council for its findings and determination in accordance with this subsection.

(f) Any contract to be valid hereunder shall be in writing and approved as to form by the City Attorney.

(g) Except for legal services, the City Manager shall establish an Administrative Order setting forth criteria and procedures for the selection of consultants to provide professional consulting services (including, but not limited to, auditors, certified public accountants,

engineers, architects, landscape architects, management consultants, planners, surveyors, and construction project managers) to the city. Procedures shall include an objective process as a means of protecting the public from misuse of public funds, to provide qualified proposers with a fair opportunity to enter the process, and to prevent favoritism, fraud and corruption in the awarding of public contracts. The City Manager may make non-material changes to the Administrative Order at any time, subject to approval as to form by the City Attorney. Material changes to the Administrative Order shall be submitted to the Council for review and approval.

(h) The objective selection process established pursuant to subsection (g) above shall be used unless the City Manager determines in writing that emergency or exigent circumstances exist, or the consultant is uniquely qualified. Before approving a consulting services contract, or an amendment to a consulting services contract, requiring the approval of the Council under subsection (b) above, Council must uphold the City Manager's written determination that emergency or exigent circumstances exist, or the consultant is uniquely qualified, sufficient to bypass the established objective selection process, as determined by a separate affirmative vote of a Council majority.
(Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2011-10, § 1, eff. 4-25-11; Am. Ord. 2018-3, § 1, eff. 2-19-18; Am. Ord. 2024-020, § 1, eff. 7-29-24).

SEC. 4-108. LOCAL PREFERENCE IN CONTRACTS REQUIRING COMPETITIVE BIDDING.

Except for those contracts funded by the federal or state government when such funding would be jeopardized because of this preference, the Council authorizes the Purchasing Manager to extend a preference to a local business as expressly set forth herein.

(a) For purposes of this subsection, "local business" shall mean a business with a fixed primary or branch office either (i) within a twenty-five mile radius of Fresno City Hall, located at 2600 Fresno Street in the City of Fresno, or (ii) within the County of Fresno; and which fixed primary or branch office was established prior to the city inviting bids for the respective purchase. Whenever the bid amount of the lowest responsive and responsible bid exceeds five hundred thousand dollars ($500.000.00), the Purchasing Manager, in the evaluation of any and all competitive bids for the purchase of materials, supplies, and/or equipment pursuant to Charter Section 1208, shall extend a five percent (5%) preference consistent with subsection (c) below.

(b) For purposes of this subsection, "local business" shall mean a business (i) having a total of one hundred or fewer employees, an average annual gross receipts of twelve million dollars ($12.000.000.00) or less over the three calendar years immediately prior to the year in which city is inviting bids for the respective purchase, and having a valid small business certification issued by the State of California; (ii) with a fixed primary or branch office either within a twenty-five mile radius of Fresno City Hall, located at 2600 Fresno Street in the City of Fresno, or within the County of Fresno; and (iii) which fixed primary or branch office was established prior to the city

inviting bids for the respective purchase. Whenever the bid amount of the lowest responsive and responsible bid is less than or equal to five hundred thousand dollars ($500.000.00), the Purchasing Manager, in the evaluation of any and all competitive bids for the purchase of materials, supplies, and/or equipment pursuant to Charter Section 1208, shall extend a five percent (5%) preference consistent with subsection (c) below.

(c) The preference in (a) and (b) above shall be extended consistent with each of the following:

(1) The amount of the preference shall be equal to the amount of five percent (5%) applied to the lowest responsive and responsible bid; provided, however, in no event shall the amount of the preference exceed the sum of seventy-five thousand dollars ($75,000.00).

(2) If the bidder submitting the lowest responsive and responsible bid is not a local business, and if a local business has also submitted a responsive and responsible bid, and, with the benefit of the preference, the local business's bid is equal to or less than the original lowest responsive and responsible bid, the city shall award the contract to the local business at its submitted bid price.

(3) The bidder shall certify, under penalty of perjury, that the bidder qualifies as a local business. The preference is waived if the certification does not appear on the bid.

(d) For purposes of this subsection, "local business" shall mean a business with a fixed primary or branch office either (i) within a twenty-five mile radius of Fresno City Hall, located at 2600 Fresno Street in the City of Fresno, or (ii) within the County of Fresno; and which fixed primary or branch office was established prior to the city inviting bids for the respective purchase. The Purchasing Manager, in the evaluation of any and all competitive bids for any public work of improvement pursuant to Charter Section 1208, shall extend five percent (5%) preference for a local business consistent with subsection (e)(1) below. Local preference will be demonstrated by the total number of individuals a business employs within Fresno County. In order to obtain the five percent (5%) differential, the bidder shall submit at time of bid a certification to self-perform a minimum of thirty percent (30%) of the contract amount with individuals employed within Fresno County. The bidder shall also submit a certification that a minimum of fifty percent (50%) of the total value of the contract would be performed by either the bidder or subcontractors meeting the local preference criteria.

(e) The preference in (d) above shall be extended consistent with each of the following:

(1) The amount of the preference shall be equal to the amount of five percent (5%) applied to the lowest responsive and responsible bid; provided however, in no event shall the amount of the preference exceed the sum of seventy-five thousand dollars ($75,000.00).

(2) If the bidder submitting the lowest responsive and responsible bid is not a local business, and if a local business has also submitted a responsive and responsible bid, and, with the benefit of the preference, the local business's bid is equal to or less than the original lowest responsive and responsible bid, the city shall award the contract to the local business at its submitted bid price.

(3) The bidder shall certify, under penalty of perjury, that the bidder qualifies as a local business. The preference is waived if the certification does not appear on the bid.

(Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2008-12, § 1, eff. 4-14-08; Ord. No. 2009-16, § 1, eff. 5-10-09; Am. Ord. 2014-29, § 1, eff. 8-9-14; Am. Ord. 2017-2, §§ 1—3, eff. 2-17-17).

SEC. 4-109. LOCAL PREFERENCE IN CONTRACTS FOR CONSULTANT SERVICES AND OTHER CONTRACTS.

(a) Findings. The Council finds and declares all of the following:

(1) The City is experiencing historical high rates of unemployment.

(2) The severe negative impact is compounded in the city economy with the employment reduction in the local development and utility industries.

(3) The United States Supreme Court has declared a job policy for residents to be a legitimate policy.

(4) Funds spent locally, with local firms, recirculate through the local economy approximately four times, generating jobs, taxes and consumer spending.

(5) The provisions that the Council seeks to enact in this section as the city's restrictions on the use of its own funds as a participant in the marketplace are simply a self-imposed limitation on the city's power to contract.

(6) The provisions that the Council seeks to enact in this section have a rational relationship to the legitimate governmental purpose in that a local preference for services will stimulate the local economy and reduce unemployment.

(b) Contracts for Consulting Services. The following shall apply for services contracted for pursuant to Section 4-107 of this Code, except for those projects funded by the federal or state government when such funding would be jeopardized because of this preference:

(1) For purposes of this section, "local firm" shall mean a firm with a fixed primary or branch offices within a twenty-five mile radius of Fresno City Hall, located at 2600 Fresno Street in the City of Fresno, and a majority of the work on the project will be performed by employees who are permanently assigned to such office prior to the city requesting proposals for the project and whose regular duties would include local work on other than city projects.

(2) Subject to subdivision (3) below, the City shall contract for professional consulting services (including, but not limited to, engineers, architects, attorneys, landscape architects, planners, surveyors, and construction project managers) by giving a primary preference to local firms, when such firms have the necessary qualifications, experience and expertise to complete the project(s) being proposed for work, as determined by the city. A secondary preference shall be similarly given to non-local firms which form an association for pecuniary profit with local firms for the projects being proposed wherein the benefit to the local firm(s) is an amount greater than fifteen percent of the total contract price for the project(s).

(3) Notwithstanding subdivision (2) above, the preference given for local firms, or non-local firms which associate with local firms, shall not be applicable whenever, to the best knowledge of the city, the number of local firms providing the specific consulting service within the area of expertise for the subject matter of the work is less than three.

(4) The City shall, in contracting for professional services, other than consulting services, extend a five per cent preference for a local firm in evaluating proposals for award. The amount of the preference shall be equal to the amount of the percentage applied to the lowest proposal price from a firm other than a local firm, if the proposer submitting the lowest proposal price is not a local firm. The proposer shall certify, under penalty of perjury, that the proposer qualifies as a local firm. The preference is waived if the certification does not appear on the proposal.

(c) Other Contracts. The Purchasing Agent, in his or her discretion, may extend a preference to a local business in the purchase of materials, supplies, equipment and/or public works construction for which competitive bidding is not required by Charter Section 1208(a) provided that such preference is applied in the same manner as described in Section 4-108 above and/or as otherwise provided by resolution of the Council.
(Added Ord. 94-39, § 1, eff. 6-24-94; Am. Ord. 96-71, § 1, eff. 12-13-96; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2011-34, § 1, eff. 12-24-11).

SEC. 4-110. PROCESSING OF INVOICES.

The person furnishing materials, supplies, equipment, services, and/or public works construction to the city shall deliver all invoices therefor to the Controller who shall either approve or disapprove said invoices. All approved invoices shall be paid by the Controller.
(Rep. and Added Ord. 5649, 1959; Am. Ord. 96-71, § 1, eff. 12-13-96; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-111. PROJECT LABOR AGREEMENTS.

(a) "Project Labor Agreement" shall have the definition set forth in California Public Contract Code section 2500.

(b) The Council may require a Project Labor Agreement for any contract for construction projects for the city, as provided in California Public Contract Code sections 2500 through 2503.
(Added Ord. 2000-18, § 1, 3-12-00; Am. Ord. 2007-96, § 3, eff. 1-19-08; Ord. No. 2014-50, § 2, eff. 1-2-15)

SEC. 4-112. INELIGIBILITY TO COMPETE.

Any architectural firm, engineering firm, specialty consultant or individual retained by the city to assist in the development of criteria or preparation of the preliminary design or respective request for proposals or bid invitation for a public work of improvement shall not be eligible to participate in the competition with any Design-Build Entity or other bidder or proposer for, or as a subcontractor, perform any work required of the Design-Build Entity or other contractor pursuant to, any Design-Build or other public work of improvement contract awarded, or to be awarded, by the city pursuant to this chapter.
(Added Ord. 2003-11, § 9, eff. 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-113. UTILIZATION OF APPRENTICES.

(a) It is the express policy of the city to encourage and monitor the utilization of apprentices by contractors on city public work of improvement projects.

(b) Unless such a requirement would conflict with a state or federal law or regulation applicable to the particular contract for a public work of improvement, the city shall insert all of the following requirements in each of its contracts with the prime contractor for any public work of improvement with an estimated value of five hundred thousand dollars ($500,000.00) or more:

(1) Contractor shall utilize apprentices for work under the contract in accordance with, and shall comply and be responsible for complying with, the requirements of California Labor Code Section 1777.5, as it may be amended from time to time, and Article 10, Subchapter 1, Chapter 2, Title 8 of the California Code of Regulations for all apprenticeable occupations applicable to the work as defined in such laws and regulations.

(2) Contractor shall provide under the contract documentation demonstrating compliance with the above requirement by providing copies of each of the following:

(i) All contract award information (e.g., completed form DAS 140) sent by contractor to the State Division of Apprenticeship Standards and each applicable apprenticeship program in accordance with California Labor Code Section 1777.5, as may be amended from time to time, including identification of addressee.

(ii) All requests by contractor for approval, and all responses and certificates from any applicable apprenticeship program disapproving or approving contractor, to train apprentices; if any.

(iii) All requests by contractor for dispatch of apprentices from any applicable apprenticeship program (e.g., completed form DAS 142); and all responses thereto, if any.

(iv) All certifications, if any, of contractor as an individual employer apprenticeship program by the State Division of Apprenticeship Standards or the California Apprenticeship Council.

(v) All apprenticeship agreements of apprentices employed by contractor and performing work under the contract.

(vi) A verified statement by the contractor, within sixty days after concluding the work, of the respective journeyperson and apprentice hours performed on the contract.

(vii) All certificates of any exemption by the State Division of Apprenticeship Standards, California Apprenticeship Council or any apprenticeship program of contractor from any requirements of California Labor Code Section 1777.5, as may be amended from time to time.

(viii) Other documentation as may be requested by city as a party to the contract.

(3) Contractor shall include in its subcontracts the obligation for subcontractors performing work under the contract to comply with this and the foregoing requirements under Subdivisions (1) and (2) above, and contractor shall be responsible for providing the required documentation from subcontractors to the city.

(Added Ord. 2005-4, § 1, eff. 2-22-05; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-114. APPLICABILITY OF CALIFORNIA PUBLIC CONTRACT CODE.

The provisions of California Public Contract Code shall not be applicable to city, in whole or in part, except as expressly provided by ordinance or incorporated in city's bid specifications or contracts.

(Added Ord. 2001-87, § 1, eff. 1-8-02; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-115. PUBLIC WORK OF IMPROVEMENT: DEFINITION.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this chapter. The definition of each word and phrase shall constitute, to the extent applicable, the definition of each word which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Facility" shall mean any plant, structure, ground facility, utility system, streets and highways, or other improvement of real property.

(b) "Lot or tract of land" shall mean a lot or tract of land that is or is to be owned by the city, or that may be owned by the city pursuant to the exercise of a purchase option.

(c) "Maintenance work" shall mean routine, recurring, and usual work for the preservation or protection of any facility for its intended purposes; minor repainting; resurfacing of streets and highways at less than one inch; and landscape maintenance, including mowing, watering, trimming, pruning, planting, replacement of plants, and servicing of irrigation and sprinkler systems.

(d) "Paid for in whole or in part with city funds or with financing to be retired with city funds" shall mean the payment of money or the equivalent of money by the city, including the transfer of an asset of value for less than fair market price; fees, costs, rents, loans, interest rates or other obligations that would normally be required in the execution of the contract, which are paid, reduced, charged at less than fair market value, waived or forgiven; money to be repaid on a contingent basis; or credits applied against repayment obligations. Notwithstanding the foregoing, "paid for in whole or in part with city funds or with financing to be retired with city funds" shall not mean or include financing resulting from the formation of a community facility district pursuant to the Mello-Roos Community Facilities Act of 1982 set forth in Sections 53311 of the Government Code.

(e) "Project" shall mean, when used in the generic sense, the acquisition and/or improvement undertaken in a single proceeding.

(f) "Public work of improvement" shall mean that portion of a work of improvement contracted for by the city, paid for in whole or in part with city funds or with financing to be retired with city funds, and that is or is to be owned by the city or that may be owned by the city subject to its exercise of a purchase option; provided that, for any capital lease or contract subject to a purchase option, if such lease or contract were fully performed by the city, and the option exercised in the case of the contract, the net present value of the respective lease or contract would total an amount greater than two million dollars ($2,000,000). For purposes of this subsection, "fully performed" shall mean that the option is exercised at the end of the option period, but prior to its expiration. Notwithstanding the foregoing, "public work of improvement" shall not mean or include any of the following:

(1) A work of improvement constructed by persons or entities other than the city as a condition of regulatory or permit approval of an otherwise private development project.

(2) Pursuant to a lease or license of property or facilities owned by the city, a work of improvement constructed thereon by a licensed contractor hired and paid for directly by the tenant or licensee, notwithstanding any provision for rent credits or waiver, in part or in whole, of any fees or costs; provided the work of improvement is required by the respective tenant or licensee for his/her use of the property or facilities.

(3) A work of improvement in a redevelopment project area constructed by persons or entities other than the city as a condition of entering into an agreement with the Redevelopment Agency of the City of Fresno for significant redevelopment, in addition to the work of improvement, in a redevelopment project area.

(g) "Public works construction" shall mean public work of improvement.

(h) "Work of improvement" shall mean the construction, reconstruction, erection, improvement, installation, alteration, renovation, addition to, restoration, repair, painting or repainting, laying of carpet, demolition or removal, in whole or in part, of any building, road, curb, gutter, sidewalk, fence, railroad, bridge, drain, ditch, canal, dam, tunnel, sanitary sewer, storm sewer, water system, well, traffic signs, traffic signals, street lighting system, parking lot, park, playground, and all other facilities. It also means the seeding, sodding, or planting of any lot or tract of land for landscaping purposes, and the excavation, filling, leveling, or grading of any lot or tract of land. Notwithstanding the foregoing, "work of improvement" shall not mean or include any of the following:

(1) Maintenance work.

(2) Work performed during the design and preconstruction phases of construction including, but not limited to, inspection and land surveying work.

(Added Ord. 2003-11, § 10, eff. 4-4-03; Am. Ord. 2006-160, § 1, eff. 12-31-06; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-116. INSTALLATION OF SOLAR ENERGY SYSTEMS IN CONSTRUCTION OF NEW CITY-OWNED BUILDINGS.

(a) The design of any new city-owned building containing at least 7500 square feet shall include an alternative design for installation of a solar energy system.

(b) The city shall incorporate solar energy systems into the planning (including the siting of the building), design, and into each of its contracts for construction of any new city-owned building containing at least 7500 square feet. The city shall use its best efforts in the design, construction and calibration so that the installed solar energy system will operate as intended; and shall provide for the ongoing accountability and optimization of the installed solar energy system performance over time.

(c) The report to Council for each award of a contract for a new city-owned building shall include information related to compliance with this section. Thereafter, reports shall be provided Council every other year, giving an accounting of the operations of all solar energy systems installed in connection with the construction of the city-owned building(s).

(d) [Reserved.]

(e) Exemptions. Each of the following is exempt from application of this section whenever Council, by resolution, makes findings of fact supporting non-inclusion of a solar energy system in a new city-owned building, but city shall implement the requirements of this section to the maximum extent practical:

(1) A building for which the design is 30% or more complete on or before the effective date of this section.

(2) A building for which another renewable energy source(s) is available which Council finds is an alternative system of comparable cost, efficiency and energy conservation benefits.

(3) An award of state or federal funding would be jeopardized.

(4) There is a lack of available funding.

(5) Any building specified by Council as exempt from the application of this section.

(f) For purposes of this section, certain words and terms used are defined as follows:

(1) "Building" means any structure used for support or shelter of any use or occupancy, as defined in the California Building Standards Code.

(2) "Solar energy system" means either of the following:

(i) Any solar collector or other energy device whose primary purpose is to provide for the collection, storage and distribution of solar energy for space heating, space cooling, elect generation or water heating.

(ii) Any structural design feature for a building, whose primary purpose is to provide for the collection, storage and distribution of solar energy for electric generation, space heating or cooling, or for water heating.

(Added Ord. 2008-23, § 1, eff. 5-4-08).

SEC. 4-117. NATIONAL TARGETED HIRING IN CONTRACTS FOR PUBLIC WORKS CONSTRUCTION.

(a) **Definitions.**

(1) "Apprentice" is any worker who is registered and approved by the State of California, Division of Apprenticeship Standards, or who is indentured in a "Viable Apprenticeship Program" as defined in subsection (a)(11).

(2) "City Manager" refers to the City Manager of the City of Fresno, or designee.

(3) "City Referral List" is the list compiled and maintained by the Program Coordinator, listing qualified Journeyman and Apprentice National Targeted Workers residing in the City of Fresno. City shall verify any designated Journeyman worker from the City Referral List meets the definition of Journeyman as defined by California Code of Regulations, Title 8 Section 205, as it may be amended from time to time.

(4) "Contract" means a construction contract for any Public Work of Improvement, as defined in this article.

(5) "Contractor" is defined as any individual firm, partnership, or corporation, or combination thereof, including joint ventures and any subcontractor of any tier, which is an independent business enterprise and which has entered into Contract with respect to the construction of any part of a Public Work of Improvement.

(6) "Division of Apprenticeship Standards Forms" are the forms in which every Contractor will request any and all apprentices from each trade in order to establish compliance with this section, as provided more specifically in the implementing Administrative Order.

(7) "Program Coordinator" means the City employee, or designee, responsible for monitoring Contractors' compliance with federal Disadvantaged Business Enterprise requirements and the requirements of this section.

(8) "Journeyman" shall be defined as set forth in the California Code of Regulations, Title 8 Section 205, as it may be amended from time to time.

(9) "National Economically Disadvantaged Area" is:

i. A zip code outside of the City of Fresno that includes a census tract, or portion thereof, in which the median annual household income is less than $55,000 per year, as measured and reported by the U.S. Census Bureau in the most recent U.S. Census; or

ii. A zip code, or any portion of, which falls inside the City of Fresno, which the average median income of is less than $55,000 per year, as measured and reported by the U.S. Census Bureau in the most recent U.S. Census. The amount shall be adjusted annually to the nearest $1,000 on July 2, based on changes in the Consumer Price Index.

(10) "National Targeted Worker" is an individual who resides in a National Economically Disadvantaged Area.

(11) "Pre-Apprenticeship Program" means a program that works with Viable Apprenticeship Programs and teaches basic technical and job-readiness skills for a designated apprenticeable occupation or occupation sector, to prepare participates for apprenticeship training.

(12) "Viable Apprenticeship Program" means an apprenticeship program that is approved to train in the applicable craft or trade by the California Department of Apprenticeship Standards or U.S. Department of Labor, and which has a graduation rate of no less than fifty percent (50%), or has graduated at least one apprentice annually in each of the five (5) years immediately preceding the date of the award of Contract by City. Any apprenticeship program that has been approved for less than ten (10) years shall be deemed a Viable Apprenticeship Program provided that, following the fifth anniversary of its approval by the California Department of Apprenticeship Standards or U.S. Department of Labor, it graduates at least one apprentice each subsequent year.

(b) **Policy.** The City shall require all Contracts for any Public Work of Improvement in excess of $200,000, adjusted annually on the first of July to the nearest $1,000 in response to changes in the National Consumer Price Index to include provisions that obligate

Contractor to follow targeted hiring procedures, including an obligation to make reasonable good faith efforts, as defined in the implementing Administrative Order, to meet specific hiring requirements for Nationally Targeted Workers, as defined in subsection (c).

(c) **National Targeted Hiring Requirements.**

(1) For each Contract, the following requirements shall apply to each Contractor with regard to project work actually performed by the Contractor, as well as work included under any subcontract;

(2) The initial mandatory participation level is 15% of all project work hours within each trade performed by Nationally Targeted Workers. Project work hours shall not include hours worked by non-California residents. The Council shall review this ordinance one year from its effective date. Subject to the periodic review process set forth in this subsection below, the mandatory participation level for project work hours shall increase annually up to a mandatory participation level of 40% of project work hours within each trade performed by Nationally Targeted Workers, as follows:

Year After Effective Date That Contract Is Advertised for Bids	*Mandatory Participation Level For National Targeted Worker Project Work Hours*
0—1	15%
1—2	20%
2—3	25%
3—4	Periodic Review
4—5	30%
5—6	35%
6—7	Periodic Review
7—8	40%

(3) A Contractor employing Apprentices, pursuant to this section, shall employ Apprentice National Targeted Workers in a ratio of not less than one hour of Apprentice National Targeted Worker labor work for every five hours of Journeyman work. The provisions in this section shall in no way adversely affect the apprentice employment ratios prescribed California Labor Code Section 1777.5 and in Section 4-113 of this code. All Apprentices shall work under the direct supervision of a Journeyman from the trade in which the Apprentice is indentured.

(4) Unless such a provision would conflict with a state or federal law applicable to a Contract for a Public Work of Improvement, all City Contracts shall contain provisions requiring each Contractor to make a reasonable good faith effort to employ Apprentice National Targeted Workers who are enrolled in and participating in a Viable Apprenticeship Program or Pre-Apprenticeship Program. This apprenticeship requirement shall apply for each apprenticeable craft or trade in which the Contractor employs workers to perform any of the work under the Contract.

(5) Periodic Review. Every three years from the effective date of this Policy, the City Manager shall evaluate the impact of existing mandatory participation levels.

(6) For any Contractor that has satisfied the criteria for reasonable good faith efforts established by the City Manager pursuant to authority granted in subsection (d):

i. If, in response to a Contractor's written request to the Program Coordinator, made at least seventy-two hours (excluding Saturdays, Sundays, and holidays) before the date on which one or more Apprentice National Targeted Workers are required, a participating Viable Apprenticeship Program or Pre-Apprenticeship Program does not dispatch any Apprentice National Targeted Workers, or dispatches fewer Apprentice National Targeted Workers than requested to such Contractor, that Contractor shall be considered in compliance with the Apprentice National Targeted Worker employment requirement for that trade or craft for the duration of the project from the request date, provided the Contractor employs all Apprentice National Targeted Workers who are dispatched.

ii. A Contractor which is not a participant in, or an affiliate of, an apprenticeship program, and that receives fewer Apprentice National Targeted Workers dispatched than requested, shall not be considered in compliance with the Apprentice National Targeted Worker employment requirement unless the Contractor has made a written request for the dispatch of Apprentice National Targeted Workers from other Viable Apprenticeship Programs or Pre-Apprenticeship Program.

iii. In the event that the City Referral List does not include sufficient numbers of Journeyman to fill, or to fill completely, the requisition of such Contractor for Journeyman within seventy-two hours (excluding Saturdays, Sundays, and holidays), that Contractor shall be free to obtain Journeyman National Targeted Workers from any source.

(7) In the event that no Viable Apprenticeship Program or Pre-Apprenticeship Program exists for a particular craft or trade, the Contractor shall be exempt from the Apprentice National Targeted Worker employment provisions of this section with regard to that craft or trade.

(8) The Contractor shall retain the authority to make individual hiring decisions. This section does not prevent a Contractor from filling job vacancies or newly created positions by transfer or promotion of its existing staff.

(d) **Authority.** The City Manager shall have authority to implement this section and shall enter into Contracts and promulgate policies to implement the provisions of this section, including, but not limited to, responsibilities identified in this section, and the implementing Administrative Order.

(e) **Required Documentation.**

(1) Contractors will use only Division of Apprenticeship Standards Forms to request any and all apprentices with a concurrent transmittal of such request to the Program Coordinator, including workers qualified as National Targeted Workers and/or general dispatch.

(2) On standardized forms acceptable to the City, Contractor shall keep, and shall provide to the City concurrent with each claim for payment, an accurate record showing the name, place of residence, hours employed, trade, and classification, and per diem wages, and benefits of each person employed by the Contractor pursuant to a Contract, including full-time, part-time, permanent, and temporary employees. Such submittal shall incorporate a statement verified under penalty of perjury evidencing each Journeyman worker's qualification as a Journeyman, as well as the respective National Targeted Worker Journeyman and National Targeted Worker Apprentice hours performed on the Contract for the period for which the Contractor is claiming payment.

(3) On standardized forms acceptable to the City, Contractor shall keep, and shall provide to the City concurrent with each claim for payment, an accurate record documenting the Contractor's reasonable good faith efforts to comply with the National Targeted Worker employment provisions of this section. Said records shall include: a listing by name and address of all recruitment sources contacted by the Contractor; the date of the recruitment contact, and the identity of the person contacted; the trade and classification, and number of employment referrals requested; the number of National Targeted Workers employed as a result of the contact; and the identity and address of the National Targeted Worker(s) employed pursuant to the contact. Contractors and the Program Coordinator shall maintain copies of all Division of Apprenticeship Standards Forms used on the project, submitted or received, including transmission verification reports that are date/time imprinted, until the project employing such workers is completed, all Contract payments are made, and any issues related to penalties and/or liquidated damages are resolved. All Division of Apprenticeship Standards Forms and transmission verification reports shall be available for inspection and copies provided, upon request by City.

(f) **Compliance Procedures.**

(1) Contractor shall diligently carry out and adhere to the National Targeted Worker requirements as set forth in this section and in its Contract. The failure of Contractor to comply with the requirements of this section shall be deemed a material breach of Contract.

(2) Consequences of Noncompliance. In addition to any other corrective action allowed by law or Contract, the City Manager has the authority to seek, from any Contractor which fails to comply with this section, any lawful corrective action, which may include but need not be limited to:

i. Withholding of all or any portion of payments due to the Contractor until the non-compliance is cured;

ii. Any other remedy for breach available under the Contract;

iii. Liquidated damages pursuant to subsection (3), below;

iv. Termination of any or all of the Contractor's Contracts with the City; and

v. Suspension, debarment from City contracting within the meaning of Section 4-104 of this Code, or determination of non-responsibility.

(3) Liquidated Damages for Violations. Upon a final determination by the City Manager, or designee, that a Contractor has materially violated the National Targeted Worker terms of the Contract, and after due notice of this determination is given to the Contractor, liquidated damages, on account of non-compliance with the National Targeted Worker requirements, may be withheld by the City from progress payments, or the final payment, due to the Contractor for work performed under the Contract. Depending upon the seriousness or willfulness of the violation, the amount of liquidated damages shall be not less than 25%, and not more than 100%, of the full dollar amount of the National Targeted Worker subcontract involved in the violation as determined by the Program Coordinator.

(g) **Application.** Except as otherwise provided and subject to all local, state, and federal laws affecting the City's procurement of goods and services, or use of funds, this section shall apply to any Public Work of Improvement of the City, including all departments, agencies, corporations, and attached and unattached boards and commissions, that cumulatively or alternatively utilize any public spending, public funding, or public incentives.

(h) **Non-Applicability of Section.** The provisions of this section shall not apply to any of the following:

The City Manager shall develop rules and regulations for the application of these exemptions:

(1) Work done by the City with its own personnel and/or equipment.

(2) Any Public Work of Improvement obtained from or through any government entity.

(3) Contracts where the provisions of this section would conflict with federal or state grant funded contracts or conflict with the terms of the grant or subvention.

(4) When the Contract is deemed by Council to be of urgent necessity for the preservation of life, health, or property and such Contract is authorized by resolution passed by at least five affirmative votes of the Council and containing a declaration of the facts constituting the urgency.

(5) Any Public Work of Improvement covered by a project labor agreement which includes hiring preferences.

(i) **Geographic Preferences.** This section shall be interpreted to prohibit in-state or local geographic preferences in the hiring of National Targeted Workers for City's contracts for Public Work of Improvement utilizing federal or state funding.

(j) **Local Funds.** Provided no federal or state funding is jeopardized, a Public Work of Improvement funded solely by local funds shall impose a requirement on Contractors that National Targeted Workers must reside in a National Economically Disadvantaged Area located within the City of Fresno and as defined by subsection (b), paragraph (9), of this Ordinance.

(k) **Indemnity.** A Contractor under this section shall, to the furthest extent allowed by law, agree to indemnify, hold harmless, and defend the City and each of its officers, officials, employees, agents, and volunteers in a form approved by the City Risk Manager.

(l) **Severability.** If this section or any sentence, clause, or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this section. The Council hereby declares that it would have passed this Ordinance and adopted this and each section, sentence, clause, or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, or phrases be declared invalid or unconstitutional.

(Added Ord. 2016-12, § 1, eff. 6-2-16; Am. Ord. 2023-025, § 1, eff. 9-15-23).

ARTICLE 2 SALE OR MORTGAGE OF PROPERTY

Sec. 4-201. Regulations as to Property.
Sec. 4-202. Sale or Other Disposition of Surplus Personal Property.
Sec. 4-203. Surplus Real Property.
Sec. 4-204. Disposition of Real Property.

SEC. 4-201. REGULATIONS AS TO PROPERTY.

The property of the city may not be mortgaged or hypothecated, except that the property of public utilities or quasi-public utilities may be mortgaged or hypothecated as security for bond issues relating to the utility, the property of which is mortgaged or hypothecated, but this section shall not be construed to prevent the issuance of bonds and the making of temporary loans as otherwise provided for in the Charter.
(Rep. and Added Ord. 5314, 1958, based on former Sec. 3-301; Am. Ord. 5418, 1958; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-202. SALE OR OTHER DISPOSITION OF SURPLUS PERSONAL PROPERTY.

(a) The City Manager and/or the Purchasing Manager may declare as surplus to the city's needs any item of personal property owned by the city free of liens and encumbrances whenever he or she finds that such item has an estimated value equal to or less than the amount for which advertised bidding is required by Section 1208(a) of the Charter, and that such item is no longer needed for use by any department or office of the city or has become unfit or unsuitable for further use by any such department or office because of age, wear, damage, or obsolescence.

(b) The Purchasing Manager may sell any property declared surplus pursuant to subsection (a), at public or private sale with or without notice or bids, for the highest price the Purchasing Manager can obtain, and may contract, in the name of and on behalf of the city, with a licensed auctioneer for the purpose of effecting any such sale. However, prior to disposal of surplus vehicles to the public, the Purchasing Manager, upon request and in accordance with the policies and procedures established by the Purchasing Manager, may offer surplus vehicles to tax exempt charitable nonprofit corporations for sale at fair market value, less any savings realized by direct sale.

(c) As an alternative means of disposition of any property declared surplus pursuant to subsection (a), the Purchasing Manager may transfer any of such property to another governmental agency or to a quasi-public agency by negotiated sale, exchange, loan, or gift; provided, that gifts hereunder to any agency shall not exceed a total of one hundred dollars in estimated value during any twelve-month period. "Quasi-public agency," as used in this subsection, means and is limited to a tax exempt nonprofit corporation which is currently engaged in a public project financed in whole or in part by public funds pursuant to contract or grant agreement with a governmental agency, and the assets of which corporation upon dissolution will not be distributable to or for any private person or purpose.

(d) The proceeds of any sales of property pursuant to this section shall be deposited in the general fund of the city, except where established accounting procedures require deposit of such proceeds in some special fund of the city, and except as provided in subsection (e).

(e) The proceeds of any sales of surplus personal property acquired at any time by the city for the Meux Home shall be paid to the Meux Home Corporation. The Purchasing Manager's sale or other disposition of such items shall be subject to the prior review and approval of the Parks and Recreation Director.

(f) Council finds that retired police dogs of the Police Department's K-9 unit have no value to the City of Fresno and are a financial liability and detriment. Accordingly, said police dogs may be returned to the original supplier, the animal's handler or former handler without compensation. This subsection constitutes an exception to this Section.

(g) The Purchasing Manager may direct the destruction of any property declared surplus pursuant to subsection (a) whenever he or she further finds that the item has no value, is not usable by any other governmental agency or quasi-public agency, is not appropriate for public or private sale, and, if the item is a retired police dog of the Police Department's K-9 unit, that the alternative dispositions in subsection (f) are unavailable.
(Rep. and added Ord. 5314, 1958, based on former Sec. 3-302; Am. Ord. 69-18, 1969; Am. Ord. 79-99, § 2, eff. 7-6-79; Am. Ord. 80-57, § 2, eff. 5-9-80; Am. Ord. 95-75, § 1, eff. 11-10-95; Am. Ord. 2000-12, §§ 1, 3, eff. 3-3-00; Am. Ord. 2002-65, §§ 1, 2, eff. 1-14-03; Am. Ord. 2004-1, § 1, eff. 2-8-04; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-203. SURPLUS REAL PROPERTY.

(a) "Surplus land" shall mean real property owned by the City that is determined to be no longer necessary for the City's use, except property being held for the purpose of exchange. Property is not surplus if the City has some purpose in mind for its use.

(b) Prior to disposing of real property, Council shall make a determination whether such property is surplus land pursuant to Government Code sections 54220 et seq. (the "Surplus Land Act"). In the case of property valued at $50,000 or less, City Manager shall determine whether property is surplus land.

(c) Prior to disposing of surplus land, City shall comply with the requirements of the Surplus Land Act, as well as 4-204.
(Added Ord. 2019-023, § 1, eff. 9-28-19; Am. Ord. 2021-022, § 1, eff. 7-8-21).

SEC. 4-204. DISPOSITION OF REAL PROPERTY.

(a) Real property may be sold, encumbered by an option, or leased for period exceeding five years only after an open and competitive request for proposals (RFP) process initiated by Council action and in compliance with state law concerning disposition of surplus land;

exclusive negotiating agreements shall not be permitted. No negotiations to sell, lease, or option City real estate shall occur prior to and without full compliance with FMC sections 4-203 and 4-204.

(1) An evaluation committee, to be selected prior to publication of the RFP, shall interview proposers, review and rank all proposals based on a predetermined set of criteria as set forth in the RFP, and make recommendations for selection to present to Council for approval. The committee at a minimum shall consist of two employees from the affected department as well as at least two employees and/or members of the public. The composition of the committee shall be at the discretion of the City Manager. Information provided to and prepared by the committee shall not be deemed a public record until such time as a contract shall be placed on the agenda for Council consideration.

(2) Once an RFP has been finalized, the affected department shall advertise the Notice Inviting Proposals in a local newspaper of general circulation and on the city website. Property owners within 1,000 feet of the subject property shall be provided specific notice of the RFP.

(3) Contracts for the sale or lease of real property are determined on a "best value" basis, not solely price. In determining best value, the factors to be considered may include, without limitation: price; community benefits; record of business with the City and others; credit record; local employment; experience; qualifications; local tax contribution; and any other legal factor the Council expressly finds is applicable to sale of the property.

(4) After proposals are tendered, the full text of all proposals shall be made available to the committee. The committee shall convene, when applicable, and interview no fewer than the top three ranked proposers, request a proposer's "Last, Best and Final" offer based on information and/or clarification provided during the interview, which will be used to support a recommendation to the Council as to which proposer should be selected to purchase or lease the property, or to reject all proposals, including rankings of the top three proposers, along with a written explanation for the rankings, and/or rejection of the proposals.

(5) All documents, ranking criteria, and scores provided to or produced by the committee shall be made available to all Councilmembers no later than the time the contract is placed on the agenda for Council consideration.

(6) Any potential purchaser who does not submit a response to the RFP shall be ineligible to purchase or lease the property for one year following the close of the RFP, except pursuant to a subsequent RFP process.

(b) The competitive process set forth in Subsection (a) shall not be required for the following:

(1) Sale of property to an adjacent property owner who is assembling property for a project;

(2) Sale, lease, or options of property less than 20,000 square feet in size;

(3) Leases of airports facilities in the normal course of airports' business;

(4) Renewal or extensions of commercial leases existing as of the effective date of this section;

(5) However, the competitive process shall apply to all sale, lease, or options of parking facilities, except as provided in the Master Fee Schedule.

(c) The City shall not approve any option to purchase or option to lease, or any similar agreement, except upon the following terms and conditions:

(1) The term of the agreement shall not exceed 12 months from the date of Council approval;

(2) The agreement shall not be extended, except upon a showing of extraordinary good cause, compliance with all terms of the agreement, due diligence, and meeting all performance standards and target dates in the agreement; all extensions must be approved by Council, at the discretion of Council, in open session, and any extension may not exceed 180 days from the date of Council approval. Any agreement that lapses without a Council approved extension prior to expiration may not be extended.

(d) The City shall not approve any purchase and sale agreement, disposition and development agreement, or any other agreement that would cause or allow City owned real property to be conveyed, except upon the following terms and conditions:

(1) The agreement shall require closing of escrow no later than 12 months from Council approval.

(2) The agreement shall not be extended, except upon a showing of extraordinary good cause, compliance with all terms of the agreement, due diligence, and meeting all performance standards and target dates in the agreement; all extensions must be approved by Council, at the discretion of Council, in open session. and any extension may not exceed 180 days from the date of Council approval. No agreement shall be extended more than once. Any agreement that lapses without a Council approved extension prior to expiration may not be extended.

(3) To be effective, the agreement shall require a deposit paid to the City in the amount of at least 10 percent of the purchase price, which shall not be refundable, unless the City is in breach of the agreement; the failure of the City to approve an extension of the agreement shall not be deemed cause to refund a deposit.

(4) Purchase prices shall be at fair market appraised value, unless the Council makes findings there are substantial community benefits resulting from the sales agreement that justify a price less than market value.

(5) The agreement shall contain a standard reverter clause, approved by the City Attorney's Office, if the sale involves property to be utilized for a specified purpose and/or is sold with the city provided any type of subsidy for the project; the

agreement shall require a reverter to the city if the project for which the property is sold is not completed within 36 months of the transfer of title, unless the Council makes findings at the time of approving the agreement that the project will require a longer period for completion; in such a case, the longer time for completion may be approved. The Council may approve one or more extensions to complete not exceeding 12 months each upon a finding of good cause.

(e) The Council may not vary from the provisions of this Section, except upon making findings of good cause and clear and convincing benefits to the public, and by a supermajority approval of at least five votes.

(f) This ordinance shall be subject to any applicable federal or state laws, regulations, policies, guidance, or grant terms, and to the extent inconsistent, the latter shall apply. (Added Ord. 2019-023, § 2, eff. 9-28-19; Am. Ord. 2021-022, § 1, eff. 7-8-21).

ARTICLE 3 LOST OR UNCLAIMED PROPERTY

Sec. 4-301. Custody of Lost or Unclaimed Property.
Sec. 4-302. Record to be Kept.
Sec. 4-303. Waiting Period.
Sec. 4-304. Disposition of Certain Articles.
Sec. 4-305. Disposition of Unclaimed Property.
Sec. 4-306. Sale and Disposition of Unclaimed Property.
Sec. 4-307. Return of Property to Finder.

SEC. 4-301. CUSTODY OF LOST OR UNCLAIMED PROPERTY.

(a) This Article serves as the City's ordinance for the care, restitution, sale or disposition of unclaimed property which comes into the possession of the Police Department. It is enacted in accordance with California Civil Code Section 2080.4, as amended.

(b) The Police Department shall receive and process all lost or unclaimed property which is turned over to or comes into the possession of the city, and shall retain the possession thereof, subject to the provisions of this article. All employees and officers of the city shall turn over to the Police Department any lost or unclaimed property which is turned over to or comes into their possession while on duty or as a result of their employment. This article shall not apply to vehicles, the abandonment of which is covered by the provisions of the California Vehicle Code.
(Added Ord. 5314, 1958; Rep. and Added Ord. 6913, 1966; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-302. RECORD TO BE KEPT.

The Police Department shall keep a record of all such property, together with the date, description and name, if any, of the person from whom it was received and the place and circumstances under which it was taken, found or recovered, plus the name and address of the finder or claimed owner, if known.
(Added Ord. 5314, 1958; Rep. and Added Ord. 6913, 1966; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-303. WAITING PERIOD.

If no owner appears within three months, or in the case of bicycles and toys within sixty days, after such property comes into the possession of the Police Department and offers reasonable proof, satisfactory to the Chief of Police, of his ownership and compensates the city for the expenses, if any, incurred in the removal, maintenance, preservation and keeping of said property, as the Chief of Police shall determine, then the title to such property shall thereupon vest in the city; provided, however, that the Police Department shall exercise due diligence to ascertain the owner and notify that person of its possession of such property and provided further, that the title to clothing, bedding, wearing apparel and other similar property, which comes into the possession of the Police Department, shall vest in the city after

the expiration of thirty days unless the owner reclaims same and all such property may, in the discretion of the Chief of Police, be delivered over gratuitously to any public or private charitable organization after said thirty-day period.
(Added Ord. 5314, 1958; Rep. and Added Ord. 6913, 1966; Am. Ord. 87-7, § 1, eff. 2-13-87; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-304. DISPOSITION OF CERTAIN ARTICLES.

The Chief of Police shall have power in his or her discretion to summarily destroy all liquor, burglar tools, knives, firearms, deadly weapons, explosive or other dangerous or noxious articles or materials coming into the possession of the city, or deliver them for use by other governmental agencies, provided that any weapon or device declared by Sections 12028, 12029, or any other section, of the Penal Code to be a nuisance or therein ordered to be destroyed, shall be destroyed as therein provided.
(Added Ord. 5314, 1958; Rep. and Added Ord. 6913, 1966; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-305. DISPOSITION OF UNCLAIMED PROPERTY.

Any property held by the Police Department for at least three months hereunder and not returned to the owner or finder or disposed of under Sections 4-303 and 4-304, or for which the claimant refuses to pay the charges, shall be deemed unclaimed property.
(Added Ord. 5314, 1958; Rep. and Added Ord. 6913, 1966; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-306. SALE AND DISPOSITION OF UNCLAIMED PROPERTY.

(a) Unclaimed property under Section 4-305 may be sold at public auction to the highest bidder by the Police Chief or Purchasing Manager. Provided, however, that the right shall be reserved to reject any and all bids. The property may also be sold to the highest bidder under a sealed bid procedure. The proceeds from such sales shall be paid over to the Controller and deposited in the general fund of the city.

(b) Unclaimed money under Section 4-305 shall be deposited in the general fund.

(c) Notice of any such sale shall be given at least ten days before the date of the intended sale by publication in a newspaper of general publication in a newspaper of general publication in the County of Fresno and by any other means determined by City.

(d) All property remaining unsold after public auction may be used or disposed of as other city property.

(e) Unclaimed bicycles or toys under Section 4-305 may, instead of being sold at public auction, be turned over to the Probation Office, to the welfare department of the county, or to any charitable or non-profit organization which is authorized under its articles of incorpora-

tion to participate in a program or activity designated to prevent juvenile delinquency and which is exempt from income taxation under federal or state law, or both, for use in any program or activity designed to prevent juvenile delinquency.
(Added Ord. 5314, 1958; Rep. and Added Ord. 6913, 1966; Am. Ord. 87-7, § 3, eff. 2-13-87; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-307. RETURN OF PROPERTY TO FINDER.

Notwithstanding any other provision of this article, if the true owner does not appear during the three-month period and claim the property, it may be delivered back to the person who delivered it to the Police Department if at the time of delivery or prior to disposition of the property such person has indicated in writing that he or she wishes to assert a claim to the property as a finder, provided that no property delivered to the Police Department by an employee or an officer of the city shall be returned to said officer or employee. If the finder does not collect the property within ten days of notification of the end of the holding period, the property shall be treated as other property under this article. This section shall not affect the disposition of the articles mentioned in Section 4-304 of this article.
(Rep. and Added Ord. 6913, 1966, based on former Sec. 3-308; Am. Ord. 87-7, § 1, eff. 2-13-87; Am. Ord. 2007-96, § 3, eff. 1-19-08).

ARTICLE 4 PREVAILING WAGES FOR PUBLIC WORKS

Sec. 4-401. Applicability of State Law.
Sec. 4-402—4-404. Reserved.

SEC. 4-401. APPLICABILITY OF STATE LAW.

Pursuant to Labor Code section 1782 (Senate Bill 7 (2013)) the construction by the city of its public works, being a municipal affair, shall be governed by the provisions of Labor Code Section 1770, et seq.

(Added Ord. 5632, 1959; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. No. 2014-51, § 1, eff. 12-31-14).

SECS. 4-402—4-404. RESERVED.

Editor's note—Ord. No. 2014-51, §§ 2—4, effective December 31, 2014, amended the Code by repealing former §§ 4-402—4-404 in their entirety. Former § 4-402 pertained to determination of prevailing wages, and derived from Ord. 5632 of 1959; Ord. 82-67, effective July 30, 1982; and Ord. 2007-96, effective January 19, 2008. Former § 4-403 pertained to reference to prevailing wages in notice of contract, and derived from Ord. 5632 of 1959; and Ord. 2007-96, effective January 19, 2008. Former § 4-404 pertained to exemption from payment of prevailing wages, and derived from Ord. 93-2, effective December 28, 1992; Ord. 97-73, effective January 22, 1998; and Ord. 2007-96, effective January 19, 2008.

ARTICLE 5 DESIGN-BUILD CONTRACTS

Sec. 4-501. Purpose and definitions.
Sec. 4-502. Method of procurement.
Sec. 4-503. Non-applicability of article.
Sec. 4-504. Request for proposals, bid invitation and performance specifications.
Sec. 4-505. Establishment of pre-qualification and selection process.
Sec. 4-506. Consideration of submitted pre-qualification documentation.
Sec. 4-507. Pre-qualification of bidders/proposers.
Sec. 4-508. Subcontractor listing.

SEC. 4-501. PURPOSE AND DEFINITIONS.

The purpose of this article is to provide definitions and guidelines for the award, use and evaluation of design-build contracts. Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this chapter. The definition of each word and phrase shall constitute, to the extent applicable, the definition of each word which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Design-build" shall mean a procurement method for a public work of improvement contract in which both the design and the construction of a public work of improvement are procured from a single entity.

(b) "Design-Build Entity" shall mean a partnership, corporation, or other legal entity that is able to provide appropriately licensed contracting, architectural and engineering services as needed.

(c) "Design-Build Entity Member" shall mean any person who provides licensed contracting, architectural or engineering services on behalf of the Design-Build Entity.

(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-502. METHOD OF PROCUREMENT.

The City Manager shall select one of the methods expressly set forth herein as the process to be recommended for the selection of the Design-Build Entity by the Council. No design build process or Design-Build Entity selection shall be initiated without Council approval.

(a) Performance Specifications Method. A design-build competition based on performance specifications and criteria set forth by the city in the request for proposals.

(1) Criteria used in this form of evaluation of proposals may include, but not be limited to, items such as proposed design approach, initial and/or life-cycle costs, project features, financing, quality, capacity, schedule, and operational and functional performance of the facility. However, any criteria and methods used to evaluate proposals shall be limited to those contained in the request for design-build proposals.

(2) Subject to the right to reject any and all proposals, award by Council shall be on the basis of the criteria specified, including initial and/or life-cycle costs, and made to the Design-Build Entity whose proposal is judged as providing the best value in meeting the interest of the city and the objectives of the design-build project.

(b) Program and Preliminary Design Method. A design-build competition based on program requirements, performance specifications, and a preliminary design or combination thereof set forth by the city in the request for proposals. Limited drawings and specifications detailing the requirements of the design-build project may accompany the request for proposals.

(1) The City Manager shall establish technical criteria and methodology, including price, to evaluate proposals and shall describe the criteria and methodology of evaluation and selection in the request for design-build proposals.

(2) Subject to the right to reject any and all proposals, award by Council shall be on the basis of the technical criteria and methodology, including price, and made to the Design-Build Entity whose proposal is judged as providing the best value in meeting the interest of the city and the objectives of the design-build project.

(c) Bid Invitation Method. A design-build competition based on program requirements and a detailed scope of work, including any preliminary design drawings and specifications set forth by the city in the bid invitation. Subject to the right to reject any and all bids, award by Council shall be made to the lowest responsive and responsible bidder.

(d) Qualifications Method. A design-build competition based on qualifications to meet program and performance requirements as set forth by the city in the request for qualifications. Limited drawings and specifications detailing the requirements of the design-build project may accompany the request for qualifications.

(1) The City Manager shall establish technical criteria and methodology to evaluate proposals and shall describe the criteria and methodology of evaluation and selection in the request for design-build proposals.

(2) Subject to the right to reject any and all proposals. award by Council shall be on the basis of technical criteria and methodology and may include, but not limited to a guaranteed maximum price for the design-build project and made to the Design-Build Entity whose proposal is judged as providing the best value in meeting the interests of the city and objectives of the design-build project.

(3) The City Manager shall have the discretion to determine whether a design-build contract is one or two phases, and may include additional terms, as set forth in the request for proposals.

(e) A Design-build competition based on a Design-build procurement process included or referenced in the statute or regulation of the design-build project funding source. Such funding sources shall include, but are not limited to the Federal Transit Administration, the Federal Aviation Administration, and the Federal Highway Administration.
(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2019-015, § 1, eff. 7-28-19).

SEC. 4-503. NON-APPLICABILITY OF ARTICLE.

The provisions of this article shall not apply to any of the following:

(a) Work done by the city with its own personnel and/or equipment.

(b) Any public work of improvement obtained from or through any governmental agency.

(c) When Council determines that the work to be done can only be provided by one source, and the purchase is authorized by resolution of the Council containing a declaration of the facts constituting the sole source.

(d) When the purchase is deemed by Council to be of urgent necessity for the preservation of life, health or property, and such purchase is authorized by resolution passed by at least five affirmative votes of the Council and containing a declaration of the facts constituting the urgency.
(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-504. REQUEST FOR PROPOSALS, BID INVITATION AND PERFORMANCE SPECIFICATIONS.

For purposes of this article only, prior to procuring a design-build contract, the city shall prepare the appropriate request for proposals or bid invitation setting forth the scope of the project that may include, but is not limited to, the size, type, and desired design character of the facilities and site, and performance specifications. The performance specifications shall describe the quality of construction materials, assemblies, and other information deemed necessary to adequately describe the city's needs. The performance specifications shall be prepared by a design professional.
(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-505. ESTABLISHMENT OF PRE-QUALIFICATION AND SELECTION PROCESS.

The City Manager may establish a competitive pre-qualification and selection process for Design-Build Entities that specifies the pre-qualification criteria, as well as recommends the manner in which the winning Design-Build Entity will be selected. The pre-qualification criteria for the purchase of the public work of improvement shall include whether the Design-Build Entity or any Design-Build Entity Member is a local business. For purposes of this article, "local business" shall mean a business with a fixed primary or branch office

within a twenty-five mile radius of Fresno City Hall, located at 2600 Fresno Street in the City of Fresno, and which fixed primary or branch office was established prior to the city requesting proposals or inviting bids for the respective purchase.
(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-506. CONSIDERATION OF SUBMITTED PRE-QUALIFICATION DOCUMENTATION.

All declarations submitted pursuant to this section shall be signed under penalty of perjury and state that reasonable diligence has been used in its preparation and that it is true and complete to the best of the signer's knowledge. Pre-qualification may be limited to consideration of all or any of the following documentation or evidence submitted by a Design-Build Entity at the request of the city:

(a) Proof of possession of all required licenses, registration and credentials in good standing that are required to design and construct the project.

(b) Documentation establishing that the Design-Build Entity Members have completed, or demonstrated the capability to complete, a project of similar size, scope, building type or complexity, and that proposed key personnel have sufficient experience and training to competently manage and complete the design and construction of the project.

(c) A proposed project management plan establishing that the Design-Build Entity has the experience, competence and capacity needed to effectively complete the project.

(d) Evidence establishing that the Design-Build Entity has the capacity to obtain all required payment and performance bonding, liability insurance, and errors and omissions insurance, as well as a financial statement assuring the city that the Design-Build Entity has the capacity to complete the project.

(e) A declaration wherein the applying Design-Build Entity Members declare that they have not had a surety company finish work on any project within the past five years.

(f) A declaration stating that the Design-Build Entity will comply with all laws and regulations applicable to the project.

(g) A declaration stating that if awarded the contract, the Design-Build Entity and its Design-Build Members are in compliance with all laws and regulations regarding conflicts of interest.

(h) A declaration for each Design-Build Entity and Design-Build Entity Member stating that each is or is not a local business.

(i) A declaration providing all relevant information for the past five years concerning all of the following:

(1) Any civil, criminal or administrative liability imposed, or action filed, against the Design-Build Entity or any Design-Build Entity Member for violation of the Occupational Safety and Health Act.

(2) Any civil, criminal or administrative liability imposed, or action filed, against the Design-Build Entity or any Design-Build Entity Member for violation of the Contractors' State License Law.

(3) Any civil, criminal or administrative liability imposed, or action filed, against the Design-Build Entity or any Design-Build Entity Member for submitting a false or fraudulent claim to a governmental agency.

(4) Any civil, criminal or administrative liability imposed, or action filed, against the Design-Build Entity or any Design-Build Entity Member for violation of federal or state law governing the payment of wages, benefits or personal income tax withholding, or of Federal Insurance Contributions Act (FICA) withholding requirements, state disability insurance withholding or unemployment insurance payment requirements. For purposes of this subdivision, only violations by a Design-Build Entity/Design-Build Entity Member as an employer shall be deemed applicable, unless it is shown that the Design-Build Entity/Design-Build Entity Member, in its capacity as an employer, has knowledge of a subcontractor's violations or failed to comply with the conditions set forth in Section 1775(b) of the Labor Code, as amended.

(5) Any civil, criminal or administrative liability imposed, or action filed, against the Design-Build Entity or any Design-Build Entity Member for violation of any federal or state law governing equal opportunity employment, contracting or subcontracting.

(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-507. PRE-QUALIFICATION OF BIDDERS/PROPOSERS.

If the City Manager determines that pre-qualification of prospective bidders/proposers is required for a particular project pursuant to Section 4-505, the City Manager shall determine which bidders/proposers are qualified to bid/propose on that project based upon the process established pursuant to such section. If the City Manager determines any bidder/proposer is

not qualified to bid/propose on a project pursuant to the established pre-qualification process for the project, the Purchasing Manager on behalf of the City Manager shall provide written notice to the bidder/proposer which includes the bases for the determination, an identification of any supporting evidence therefor, and an opportunity for the bidder/proposer to appeal the determination. Any person aggrieved by a determination made by the City Manager pursuant to this section may appeal the determination only by complying with the requirements set forth in accordance with a resolution adopted by Council establishing procedures and requirements for appealing pre-qualification determinations hereunder. Unless otherwise provided by such resolution, the appeal shall be heard by the Administrative Hearing Officer pursuant to, and in accordance with the procedures set forth in, Chapter 1, Article 4 of this Code.

(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-508. SUBCONTRACTOR LISTING.

The city recognizes that the Design-Build Entity is charged with performing both design and construction. Because a design-build contract may be awarded prior to the completion of the design, it is often impracticable for the Design-Build Entity to list all subcontractors at the time of the award. It is the intent of the city to establish a clear process for the selection and award of subcontracts entered into pursuant to this article in a manner that affords protection for subcontractors while enabling design-build projects to be administered in an efficient fashion. All of the requirements expressly set forth herein shall apply to subcontractors, licensed by the state, that are employed on design-build projects undertaken pursuant to this article.

(a) The Design-Build Entity in each design-build proposal shall specify the construction trades or types of subcontractors that may be named as Design-Build Entity Members of the Design-Build Entity at the time of award. In selecting the trades that may be identified as Design-Build Entity Members of the Design-Build Entity, the Design-Build Entity shall identify the trades deemed essential in the design considerations of the design-build project.

(b) Subcontracts not listed at time of award shall be performed or awarded by the Design-Build Entity in accordance with a bidding process set forth in the respective request for proposals or bid invitation. The Design-Build Entity shall furnish to the city documentation to verify that all subcontracts not listed at the time of award were subsequently awarded in accordance with the respective request for proposals or bid invitation. All subcontractors that are listed at the time of award, or subsequently in accordance with the respective request for proposals or bid invitation, shall be afforded the protection of Section 4107 of the Public Contract Code, as amended.

(Added Ord. 2003-11, § 11, 4-4-03; Am. Ord. 2007-96, § 3, eff. 1-19-08).

ARTICLE 6 REGULATED COMMUNICATIONS WITH ELECTED OFFICIALS IN CITY PROCUREMENT PROCESS

Sec. 4-601. Regulated Communications in City Procurement Process.
Sec. 4-602. Declaration of Legislative Intent.
Sec. 4-603. Definitions.
Sec. 4-604. Applicability.
Sec. 4-605. Regulation of Communications During Competitive Procurement; Notice of Regulation.
Sec. 4-606. Disclosure of Regulated Communications.
Sec. 4-607. Sanctions.
Sec. 4-608. Evaluation of Disclosed Communications; Criteria for Imposition of Sanctions; Appeals.

SEC. 4-601. REGULATED COMMUNICATIONS IN CITY PROCUREMENT PROCESS.

This article shall be known as the Regulated Communications in City Procurement Process Ordinance.
(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-602. DECLARATION OF LEGISLATIVE INTENT.

In enacting this article, the Council hereby declares and finds as follows:

(a) All communications by and between Proposers, the Mayor and Councilmembers in competitive procurement should be open and public.

(b) All elected officials should be provided the same information for decision-making involved in competitive procurement.

(c) The provisions of this article are necessary and appropriate in order to instill greater public confidence in the integrity of the City's procurement processes by eliminating the appearance of impropriety and special consideration.

(d) The provisions of this article will lessen the chance of miscommunication or misunderstanding during competitive procurement.

(e) The provisions of this article will foster a greater sense of equity and fair play in competitive procurement.

(f) The provisions of this article ensure that the Mayor and all Councilmembers are afforded equal access to information during the procurement process.

(g) The provisions of this article are intended to provide Councilmembers and the Mayor more useful information with which to render a fair and just decision.

(h) This article furthers the Charter purpose of having professional staff research, evaluate, and make recommendations concerning the award of public contracts.

(i) Nothing in this article is intended to chill First Amendment Free Speech rights, such as the public's right to petition government, or the elected official's right of Free Debate.

(j) This article provides Proposers with defined channels to communicate information to Councilmembers and the Mayor, consistent with the overall purposes of this article.

(k) The award of a contract and the acts leading up to it are legislative in nature.

(l) In enacting this article, it is not the intent of the Council to change the legislative nature of its procurement process.

(m) This article generally, and Section 4-608 in particular, relate to an internal procedure dealing with the subject of competitive procurement. Nothing in this article shall confer upon, or create rights in, any person that the person would not have absent this article.

(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-603. DEFINITIONS.

The following definitions shall apply for purposes of this article:

(a) "Bidder" shall mean a person or entity responding to a competitive bid process, including a Bid Invitation as defined in this article.

(b) "Bid Invitation" shall mean a notice in writing to potential bidders to submit bids to the City, when any award is to be made to the lowest responsive and responsible bidder, subject to the City's right to reject any and all bids.

(c) "Communication" means communication in any form, directly or indirectly, by or between a Proposer, on the one hand, and Councilmember or the Mayor, on the other hand, during the pendency of a competitive procurement regardless of whether or not the Proposer at the time of the communication had yet to put forward, present, or sponsor a request, proposal, bid, or quote for consideration of a contract, if the Proposer eventually does so.

(d) "Competitive bidding" shall mean the offering procedure involving sealed bids to the City for materials, supplies, equipment or any public work of improvement, as described in Charter Section 1208 and referred to as "advertised bidding" in Chapter 4, Article 1 of this Code.

(e) "Competitive procurement" shall mean and include the processes for competitive bidding, notice of funding availability, request for expression of interest, request for proposals, and request for qualifications, as defined in this article.

(f) "Continue" shall mean to persist in, remain in, carry on, recommence or resume a communication.

(g) "Disclosure" shall mean the writing, or oral statement entered in Council proceedings, containing the information required by Section 4-606 necessary to disclose a regulated communication.

(h) "Elected official" shall mean the Mayor or any Councilmember.

(i) "Initiate" shall mean to cause a communication to begin; to send, transmit, or convey information.

(j) "Initiation of competitive procurement" shall mean the issuance, publication or announcement by the City of a procurement, including but not limited to: Notice of Funding Availability (NOFA), Request for Expression of Interest (RFEI), request for proposals (RFP), request for qualifications (RFQ), or Bid Invitation. The competitive procurement remains pending until it is completed upon either the award of a contract, or official City notice of cancellation of the process, or a determination by the Council not to award a contract, provided the determination is final in accordance with Sections 605 and 609 of the Charter and Council does not direct the re-initiation of the competitive procurement at the time it determines not to make an award.

(k) "Proposer" shall mean a person, other than a City division or department, who puts forward, presents, or sponsors an expression of interest, statement of qualification, request, proposal, bid, or quote for consideration of a contract, including a bidder. For purposes of this article, a Proposer is also any agent or representative, or officer of a Proposer, and any person holding an ownership, beneficial, equitable or security interest in a Proposer. However, a commercial lending institution is not a Proposer if it merely holds a security interest as a result of a loan or loans which are made in the lender's regular course of business on terms available to members of the public without regard to official status.

(l) "Record" shall mean the oral and written information conveyed to the Mayor and Council through writings and statements made available to the public in connection with a competitive procurement, and upon which the Council could rely in considering whether to award a contract. "Record" shall include oral communication during a regular or special meeting of the Council.

(m) "Regulated communication" shall mean any communication prohibited under Section 4-605 of this article.

(n) "Request for Expression of Interest" (RFEI) means a solicitation to prospective proposers on a procurement opportunity. An RFEI may be issued in advance of an RFP to assist in the development of a more definitive set of terms and conditions, scope of work or service and the selection of qualified proposers. An RFEI does not contain all of the information a prospective proposer needs to provide a full bid or proposal response, and should not to be construed as an RFP or notice inviting bids. The RFEI enables potential proposers to determine whether they have a serious interest in preparing a proposal or bid in response. The RFEI may be used simultaneously with a RFQ when the proposed procurement is well defined and the City has clear expectations for the procurement.

(o) "Request for proposal" (RFP) shall mean an invitation for providers of services or work to solicit the right to supply services or work to the City, when any award is to be made to a Proposer providing the best value in meeting the interest of the City and the objectives of the project, based on criteria, such as benefit to the City, qualifications, experience, and demonstrated ability, subject to the City's right to reject any and all proposals.

(p) "Request for qualification" (RFQ) shall mean a City request for the submission of a statement of qualifications from interested potential Proposers as a pre-requisite to a bid or proposal for the right to supply materials, supplies, equipment, services or work.

(q) "Subject Proposer," as used in Section 4-608 of this article, shall mean the Proposer who is the subject of a disclosure and consideration of potential sanctions.

(r) "Writing" shall mean a writing as defined in Evidence Code Section 250.

(s) "NOFA" shall mean a City-issued solicitation inviting eligible entities to apply for funding to provide services, programs, or activities consistent with City priorities or regulatory obligations. A NOFA includes criteria for eligibility, scope of work, available funding, evaluation factors, and application procedures, and may lead to the award of a contract, subrecipient agreement, or grant agreement.

(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2025-037, § 1, eff. 10-23-25).

SEC. 4-604. APPLICABILITY.

Except as otherwise provided and subject to all state and federal laws affecting the City's procurement procedures, this article applies to competitive procurement which may result in the award of a contract by the Council, including competitive bidding, notice of funding availability, request for proposals, request for expression of interest, and request for qualifications. It applies whether the procurement process is classified as legislative or otherwise. The requirements of this article apply upon the initiation of competitive procurement until the procurement process is completed, whether or not a contract is awarded. Any communication (even if unintended or inadvertent) covered by this article must be disclosed, as provided by this article or any other applicable local, state, or federal law or regulation.

(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2025-037, § 2, eff. 10-23-25).

SEC. 4-605. REGULATION OF COMMUNICATIONS DURING COMPETITIVE PROCUREMENT; NOTICE OF REGULATED COMMUNICATION RULE.

(a) No Proposer shall initiate, engage in, or continue any communication to or with any elected official, and no elected official shall initiate, engage in, or continue any communication to or with any Proposer, concerning or touching upon any matter which is the subject of a competitive procurement within the scope of this article except as permitted in this Section 4-605.

(b) Only communications meeting the following requirements are allowed under this ordinance: a communication that is

(1) Made on the record in a regular or special meeting of the Council; or

(2) Between or among elected officials outside of a regular or special Council meeting, provided that none of the communicants is an agent or representative of a Proposer, or acting in concert with or at the behest of a Proposer, and provided further the communication is not prohibited under the Ralph M. Brown Act (Government Code §§ 54950, et seq.); or

(3) Part of the record presented to the Council as a result of being communicated to City staff involved in, and in the ordinary course of, the competitive procurement; or

(4) An identical writing that is delivered simultaneously and by identical means to all elected officials, the City's Purchasing Manager, and the City Manager, at their respective official City offices. Except to the City's Purchasing Manager, hand deliveries must be made by someone other than a Proposer; or

(5) Made as a result of participation in a formal selection committee that may be established by the City Manager, or designee, to evaluate a proposal(s). Elected officials participating in a selection committee may receive documents that are not provided to all elected officials.

(6) Concerning an item after it is posted on the City Council Agenda by the City Clerk.

(c) An elected official's staff is not prohibited from communicating with Proposer(s), however staff is prohibited from sharing with the elected official information received as a result of such communication unless that communication is permissible under subsection (b).

(d) The regulated communication rule established by this section and a reference to this article shall be set forth in each Bid Invitation, NOFA, RFEI, RFP and RFQ, or in the respective specifications or other documents referred to therein.
(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2014-49, § 1, eff. 12-18-14; Am. Ord. 2025-037, §§ 3, 4, eff. 10-23-25).

SEC. 4-606. DISCLOSURE OF REGULATED COMMUNICATIONS.

(a) Any elected official and any Proposer who has initiated, engaged in, continued in, or received any regulated communication shall disclose that regulated communication, as provided in this section.

(b) A regulated communication should be disclosed at the earliest feasible time, but in any event, it shall be disclosed no later than 24 hours or the next business day following such communication, whichever is earlier.

(c) Disclosures shall be in writing unless the regulated communication occurs on the date the Council is to consider award of the contract, in which case it may be orally disclosed on the record during the Council proceedings concerning the subject procurement. Written disclosures shall be directed to the City's Purchasing Manager, and a copy filed with the City Clerk.

(d) The disclosure shall contain all the information necessary to fully and fairly convey the substance of the communication. At minimum, disclosures shall include the following information:

(1) Person making the disclosure.

(2) Date, time and place of the regulated communication.

(3) Identity of each person who initiated, engaged in, continued or received the regulated communication.

(4) Copies of all written regulated communications.

(5) Summary of all oral regulated communications.

(6) Identity of all persons present during the regulated communication.

(7) Identification of subject competitive procurement and subject Proposer.

(e) The City Clerk shall promptly distribute to all Councilmembers and the Mayor every disclosure filed pursuant to this section 4-606.
(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08).

SEC. 4-607. SANCTIONS.

(a) In accordance with the applicable procedures for the respective competitive procurement as referenced or set forth in the specifications of the respective Bid Invitation, NOFA, RFEI, RFP or RFQ, a Proposer or applicant violating this article may be sanctioned as follows:

(1) Disqualification from the competitive procurement; and/or

(2) A finding of non-responsibility under the procurement; and/or

(3) Setting aside by Council of any award of contract prior to its execution by both parties.

(b) These sanctions may be imposed in addition to any remedies provided by any other law or regulation.
(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2025-037, § 5, eff. 10-23-25).

SEC. 4-608. EVALUATION OF DISCLOSED COMMUNICATIONS; CRITERIA FOR IMPOSITION OF SANCTIONS; APPEALS.

(a) The City's Purchasing Manager shall ensure that the information which is the subject of a disclosure is reviewed, evaluated, and processed in accordance with applicable laws and regulations, this article, and the specifications, criteria and requirements of the applicable competitive procurement.

(b) The City's Purchasing Manager shall report the disclosure in the record of the competitive procurement, summarize the results of the evaluation of the disclosure, and make a recommendation on whether or not to impose sanctions concerning the regulated communication.

(c) Before sanctions may be imposed, it shall first be established that the subject Proposer did initiate, engage in or continue a regulated communication, and, if so, whether any of the following extenuating circumstances exist:

(1) The regulated communication was inadvertent and did not affect the integrity or outcome of the procurement process.

(2) The regulated communication was initiated by the Mayor or a Councilmember, the subject Proposer advised the Mayor or Councilmember of the regulated communication rule, and the subject Proposer did not continue or engage in the regulated communication.

(3) The regulated communication was made under bona fide mistake of fact or law, other than a mistake or ignorance of the provisions of this article, and the regulated communication was not material to the procurement. A regulated communication may be deemed material if it relates to any provision of a Bid Invitation, NOFA, RFEI, RFP, RFQ, or specifications or other documents referenced therein, including documents responsive to a Bid Invitation, NOFA, RFEI, RFP or RFQ, unless the regulated communication is so obviously insignificant and unimportant that it could be objectively found that no reasonable person would have been influenced by it, or attached any importance to it.

(d) In the absence of extenuating circumstances, the subject Proposer may be sanctioned under this article if doing so is deemed consistent with the objectives of this article and in the best interest of the City.

(e) The subject Proposer may appeal the determination of the City's Purchasing Manager that forms the basis of his or her recommendation for imposition of a sanction in accordance with the appeal procedures specifically applicable to the subject Bid Invitation, NOFA, RFEI, RFP, or RFQ. In the absence of such a specifically applicable appeal procedure, the subject Proposer may take an appeal in accordance with Chapter 1, Article 4 of this Code.

(f) If a disclosure is made subsequent to the posting of the Council agenda which includes notice of the consideration of the subject contract, the Council shall refer the matter back to the Purchasing Manager for his or her evaluation, and report and recommendations, in accordance with this section.

(Added Ord. 2004-41, § 1, eff. 5-7-04; Am. Ord. 2007-96, § 3, eff. 1-19-08; Am. Ord. 2025-037, § 6, eff. 10-23-25).

CHAPTER 5

CITY FACILITIES*

Art. 1. Naming Public Facilities.
Art. 2. Fresno City-County Community and Convention Center Manager and Management.
Art. 3. Transit Regulations.
Art. 4. Airport Regulations.
Art. 5. Parks and Playground Regulations.
Art. 6. Police Department Military Equipment Regulations.

***Editor's note—**Ord. 2007-96, §§ 2 and 4, effective January 19, 2008, amended the Code by repealing former ch. 5, §§ 5-101, 5-201—5-223, 5-301—5-315, 5-401—5-405, and 5-501—5-515, and adding a new ch. 5. Original history information has been retained with the appropriate section, where possible.

ARTICLE 1 NAMING AND RENAMING CITY FACILITIES

Sec. 5-101. Naming Public Facilities.

SEC. 5-101. NAMING PUBLIC FACILITIES.

The Council shall have the power to name and rename public facilities following a public hearing noticed and held in accordance with rules and regulations promulgated by the City Manager.

(Added Ord. 78-191, § 1, eff. 1-19-79; Am. Ord. 80-19, § 1, eff. 3-21-80; Am. Ord. 2007-96, § 4, eff. 1-19-08).

ARTICLE 2 FRESNO CITY-COUNTY COMMUNITY AND CONVENTION CENTER MANAGER AND MANAGEMENT

Sec. 5-201. Definitions.
Sec. 5-202. Supervision and Management.
Sec. 5-203. Prohibited Activities.
Sec. 5-204. Concession Contracts.
Sec. 5-205. Leases, Licenses and Permits.
Sec. 5-206. Concession, License and Permit Fees; Lease Rent.
Sec. 5-207. Extra Charges.
Sec. 5-208. Deposits and Refunds.
Sec. 5-209. Accounts and Audits.
Sec. 5-210. Bond May Be Required.
Sec. 5-211. Insurance Liability.
Sec. 5-212. General Terms and Conditions.
Sec. 5-213. Issuance of License to State or Federal Governments.
Sec. 5-214. Special Requirements.
Sec. 5-215. Public Regulation.
Sec. 5-216. Enforcement.
Sec. 5-217. Pedestrians.
Sec. 5-218. Parking.
Sec. 5-219. Penalty for Violation.
Sec. 5-220. Conduct.
Sec. 5-221. Use of Roads and Walks.
Sec. 5-222. Animals.

SEC. 5-201. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article.

(a) "Arena" means the Center Sports Arena, and all halls, rooms, and facilities thereof.

(b) "Catering Kitchen" means the catering kitchens and pantries located in the Exhibit Hall and all of the equipment, utensils, and other implements therein used or designed to be used for the purpose of preparing and serving food in the Center.

(c) "Center" means any portion or facility of the Fresno City-County Community and Convention Center complex, including the Theater, Exhibit Hall, Sports Arena, Conference Center, and all halls, rooms, malls, and related facilities, and parking; unless the phrase "entire Center complex" is used, in which event it shall mean all of the Fresno City-County Community and Convention Center complex.

(d) "Concession Contract" means an agreement between the city and a concessionaire (other than a Lease, Temporary Use Permit, Permit, License, Special Use License or Supplemental License Agreement), on a term basis, whereunder the concessionaire is granted the right to use the Center and the adjoining public rights-of-way for the purpose of providing services or selling items to a licensee or its patrons, or to the general public in connection with the use of the Center by the licensee.

(e) "Conference Center" means the structure between and exclusive of the parking garage and hotel on "M" Street between Inyo and Ventura Streets in the city, which contains a ballroom, meeting facility and common areas.

(f) "Exhibit Hall" means the Center Exhibit Halls, and all halls, rooms, and facilities thereof.

(g) "Gross Receipts" means the entire receipts and revenue, including, but not limited to, the revenue from the sale of radio and television rights, received or receivable by any concessionaire, lessee, licensee or permittee, and by any subcontractor thereof: and derived or generated from or in connection with its use of the Center, without deduction for any expenditure, cost of operation, or other expense or cost, but excluding therefrom receipts for federal, state, county, or city excise, sales, or other taxes.

(h) "Lease" means an agreement between the city and a lessee (other than a Concession Contract, Temporary Use Permit, Permit, License, Special Use License or Supplemental License Agreement) whereby the city leases to lessee the Center for a non-event use, such as for storage or office space, on a term basis not exceeding twelve months; subject to termination by city upon reasonable notice to lessee, as may be provided in the Lease, that the space is needed for another use; setting forth terms and conditions consistent with this article.

(i) "License" means the written permission of the city (other than a Concession Contract, Lease, Temporary Use Permit, Permit, Special Use License or Supplemental License Agreement), issued to a licensee on an event basis, whereunder the licensee is granted the right to use the Center for any of its principal uses, such as shows, sporting events, meetings, exhibitions, dinners, dances, and similar events.

(j) "Manager" means the Center Director.

(k) "Permit" means the written permission of the city (other than a Concession Contract, Lease, Temporary Use Permit, License, Special Use License or Supplemental License Agreement), issued to a permittee on an event basis, whereunder the permittee is granted the right to use the Center for the purpose of providing services or selling items to licensee or its patrons, or to the general public in connection with the use of the Center by the licensee.

(l) "Special Use License" means a license (other than a Concession Contract, Lease, Temporary Use Permit, Permit, License or Supplemental License Agreement), whereby the special use licensee is granted the right to use the Center for a special use and other than as a principal use, such as advertising on or off-site services or products. A Special Use License may be exclusive or non-exclusive, and shall be issued for a term not exceeding twelve months, or for an event or series of events or activities taking place within a twelve month period.

(m) "Supplemental License Agreement" means an exclusive or nonexclusive agreement (other than a Concession Contract, Lease, Temporary Use Permit, Permit, License or

Special Use License) between the city and a licensee, on a multi-event and term basis not exceeding five years, setting forth terms and conditions consistent with this article and to be supplemental to, and incorporated within, city's License.

(n) "Temporary Use Permit" means the written permission, revocable at will, of the city (other than a Concession Contract, Lease, Permit, License, Special Use License or Supplemental License Agreement) issued to a permittee on a term basis not exceeding twelve months, whereunder the permittee is granted the right to use the Center for non-event purposes, such as for storage or office space, on terms and conditions consistent with this article.

(o) "Theater" means the Center Theater, and all halls, rooms, and facilities thereof.

(Added Ord. 6783, 1966; Am. Ord. 83-153, §§ 1, 2, eff. 12-2-83; Am. Ord. 98-74, §§ 1, 2, eff. 10-24-98; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 1, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-202. SUPERVISION AND MANAGEMENT.

(a) Subject at all times to the administrative and policy determinations and directions of the Council and the City Manager, the Manager shall generally supervise, oversee, and manage the maintenance and operation of the entire Center complex, and shall have full authority over all operating personnel, including lessees, permittees, licensees, concessionaires, public address system operators, stagehands, ushers, police, and other employees of said lessees, permittees, licensees, concessionaires, while they are anywhere on the premises of the entire Center complex.

(b) The Manager shall keep a complete and accurate record of all space reserved, services rendered and monies collected, and shall deposit the monies collected with the Controller of the city at such times and at such a place as the Controller may designate. The Manager shall file with the Controller copies of such receipts, invoices and other financial documents as the Controller may require.

(c) City Manager may designate any person to exercise or perform any of the powers or duties of the Manager.

(Added Ord. 6783, 1966; Am. Ord. 72-12, 1972; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 2, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-203. PROHIBITED ACTIVITIES.

No person shall use the Center for any purpose without there first having been executed and delivered by the city an appropriate Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit specifically permitting such use.

(Added Ord. 6783, 1966; Am. Ord. 98-74, § 3, eff. 10-24-98; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 3, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-204. CONCESSION CONTRACTS.

Concession Contracts may be authorized only by the Council.
(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-205. LEASES, LICENSES AND PERMITS.

Leases, Licenses, Permits, Special Use Licenses, Supplemental License Agreements and Temporary Use Permits may be negotiated, executed and delivered by the Manager on behalf of the city on forms which have first been approved as to form in writing by the City Attorney. The Manager may terminate, revoke, cancel or rescind, and consent to the assignment of, any Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit on behalf of the city.
(Added Ord. 6783, 1966; Am. Ord. 72-12, 1972; Am. Ord. 98-74, § 4, eff. 10-24-98; Am. Ord. 2002-22, § 4, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-206. CONCESSION, LICENSE AND PERMIT FEES; LEASE RENT.

(a) As a condition to the issuance of a Concession Contract, License, Permit, Special Use License or Supplemental License Agreement, a concessionaire, licensee or permittee shall agree to pay, and shall pay, to the city the concession, license or permit fees and charges set forth therein, provided that such total fees and charges shall not in any event be less than a sum determined in accordance with the provisions of this subsection, together with such extra charges as are determined in accordance with Section 5-207.

(1) Rates. The rates for any use of the Center by a concessionaire, licensee or permittee shall be as provided in the Master Fee Resolution, subject to subdivisions (2), (3) and (4) of this subsection.

(2) Manager's Discretion. The Manager shall have the authority to negotiate concession, license or permit fees in his or her discretion to serve the best interests of the Center and the city, provided that in no event shall any concession, license or permit fee be less than the fee determined by applying the base rate provided in the Master Fee Resolution.

(3) Exhibition Rates. The rate for space for exhibit purposes shall be as designated in the Master Fee Resolution.

(4) Rehearsals. Subject to the availability of facilities, and subject to cancellation upon 24 hours' notice by Manager or licensee, rehearsals, practices and drills may be permitted in such portions of the Center, and at such times, as the Manager may designate, at such charges as may be prescribed in the Schedule of Extra Charges or as otherwise agreed to by Manager. In the event that licensee cancels a scheduled rehearsal, practice or drill and fails to provide Manager at least 24 hours notice of such cancellation, the prescribed or agreed upon charge shall be assessed by Manager for such scheduled rehearsal, practice or drill.

(b) As a condition to the issuance of a Lease or Temporary Use Permit, a lessee or permittee thereunder shall agree to pay, and shall pay, to the city the proportionate cost of all utilities and the rent or permit fees and charges set forth therein, provided that such total fees and charges shall not in any event be less than a sum determined in accordance with the provisions of this subsection, together with such extra charges as are determined in accordance with Section 5-207. The Manager shall have the authority to negotiate rent or permit fees in his or her discretion to serve the best interests of the Center and the city, provided that in no event shall any rent or permit fee be less than the minimum rates as provided in the Master Fee Resolution.

(Added Ord. 6783, 1966; Am. Ord. 70-44, 1970; Am. Ord. 79-147, § 1, eff. 10-5-79; Am. Ord. 80-115, §§ 13—16, eff. 8-8-80; Am. Ord. 90-18, § 1, eff. 3-23-90; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 5, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-207. EXTRA CHARGES.

Each lessee, concessionaire, licensee and permittee shall pay to the city, in addition to any otherwise applicable rent, concession, license or permit fee, a fee for extra services or special facilities provided by the city at the request of such concessionaire, lessee, licensee or permittee, or necessitated by the use of the Center by such concessionaire, lessee, licensee or permittee, in accordance with the Schedule of Extra Charges prescribed by the Master Fee Resolution. Such extra services and special facilities shall include, but not be limited to: city's public address system; outside amplification which is interconnected with any regular interior usage of the Center; any supervision, installation or equipment provided by city to facilitate or enable the playing of any recording or the broadcast of any program (including radio and television) over any amplification system; special seating arrangements; use of city's fork lift and operator; change in seating arrangements; special mechanical or electrical connections, equipment, or services; janitor work beyond the usual and customary hours; erection of platform and stands other than those usually and customarily furnished; admission attendants, ticket sellers, ticket takers, ushers, guards and police protection.

(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 6, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-208. DEPOSITS AND REFUNDS.

In advance of, or contemporaneously with, the issuance of a Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, the Manager may, in his or her discretion, require an advance, non-interest earning deposit of rent, fees and/or charges to secure the payment of such rent, fees and/or charges, and/or to secure reservation of dates for the use of the Center. Such deposit shall be retained by the city and credited against any rent, fees and charges due and owing, and shall be refunded by city only in the following cases:

(a) The Manager receives written notice of cancellation of the scheduled use from the concessionaire, licensee or permittee at least thirty days prior to the start date of the

scheduled use, and the Manager determines, in his/her reasonable discretion, that the city will not be materially prejudiced, or incur any detriment, as a result of such cancellation; or

(b) The scheduled use is cancelled at any time prior thereto by the Manager under the terms of the rules and regulations governing the management of the Center and a refund is thereby permitted.

(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 7, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-209. ACCOUNTS AND AUDITS.

Whenever the fee and charges payable for any use of the Center may be dependent upon the Gross Receipts of a concessionaire, lessee, licensee or permittee, the Manager shall have the right to direct the form of tickets, accounts, records, and reports, and the methods of sales, controls, and accounting, to be used by the concessionaire, lessee, licensee or permittee, and the Manager, or his or her designated representative, shall have the right at any time to inspect, copy, and audit any and all of the books, records, and papers of the concessionaire, lessee, licensee or permittee pertaining in any way to the use of the Center. Unless the Manager otherwise permits, all admission and other tickets shall be secured from a bonded printing company approved by the Manager and such company shall transmit the ticket manifest directly to the Manager, and the form and number of all passes shall be approved by the Manager, and all passes in excess of the number approved shall be accounted for as paid admissions. In the event the concessionaire, lessee, licensee or permittee fails to comply with such directions or maintain such records and reports, refuses to permit such inspection, copying, or auditing, or otherwise fails to comply with the provisions of this section, the Manager may estimate the Gross Receipts, and such estimate, as it may be modified by the Manager, shall be binding upon the concessionaire, lessee, licensee or permittee for the purpose of determining the fees and charges payable.

(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 8, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-210. BOND MAY BE REQUIRED.

The Manager may require any person applying for a Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit to furnish a bond satisfactory to Manager, in cash or issued by a corporate surety, guaranteeing that applicant, if granted a Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, will well and faithfully perform each and every term and condition thereof and will abide by and observe all applicable federal, state and local laws, rules and regulations including, without limitation, the rules and regulations governing the management of the Center as established by the Manager. Every such bond issued by a corporate surety shall be subject to the approval of the City Attorney as to form.

(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 9, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-211. INSURANCE LIABILITY.

Each concessionaire, lessee, licensee or permittee shall take out and keep in force during the period of use covered by any Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, or any extension thereof, the following policies of insurance issued by an insurance company or companies either admitted by the California Insurance Commissioner to do business in the State of California and rated not less than "A-VII" in Best's Insurance Rating Guide, or acceptable to the city's Risk Manager:

(a) Commercial General Liability insurance which shall include contractual, products and completed operations coverages, bodily injury and property damage liability insurance with combined single limits of not less than $1,000,000 per occurrence, except for a lessee who, for the period of use covered by any Lease, shall take out and keep in force Commercial General Liability insurance which shall include contractual, products and completed operations coverages, owner, landlord and tenants liability, fire legal liability, bodily injury and property damage liability insurance with combined single limits of not less than $1,000,000 per occurrence; and,

(b) Workers' Compensation insurance as required under the California Labor Code; and,

(c) If liquor is to be sold, the seller shall have liquor legal liability insurance of not less than two million dollars ($2,000,000.00).

In the policy or policies providing such insurance the city, its officials, officers, employees, volunteers and agents, shall be named as additional insureds with primary coverage, whether or not such insured shall have other insurance against any loss covered by said insurance. Said policy shall contain a standard cross-liability endorsement and shall provide that the policy shall not be cancelled, changed or renewed prior to the termination of the Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, or until thirty days following the date the Manager shall have received written notice of such cancellation change or renewal, whichever shall first occur. A copy of said policy of insurance including a certificate of insurance and additional insured endorsement shall be delivered to city on or before the date on which said concessionaire, lessee, licensee or permittee takes possession of the use and occupancy of the Center, showing the policy or policies to be in full force and effect. Additionally, the certificate of insurance must include the specific dates of coverage and the following statement "All operations or activities conducted on the Center are summarily covered at all times during any period of occupancy."
(Added Ord. 6783, 1966; Am. Ord. 87-138, § 1, eff. 11-13-87; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 10, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-212. GENERAL TERMS AND CONDITIONS.

(a) Each concessionaire, lessee, licensee or permittee and their agents, officers, and employees, shall take possession of use and occupancy of the Center "as is", and shall comply with all applicable federal, state and local laws, rules and regulations, as adopted or established from time to time by the Manager or by any governmental entity, agency or

department including, without limitation, the Rehabilitation Act of 1973 and the Americans with Disabilities Act of 1990, including enabling laws, regulations, rules and guidelines, as to accessibility (including assembly areas, accessible routes, and auxiliary aids), and non-discrimination. Any violation thereof by a concessionaire, lessee, licensee, permittee or any of their agents, officers, or employees shall, at the discretion of the Manager, and without limitation of rights and remedies otherwise available under law, equity or contract, subject any such violator to immediate expulsion from the Center and the forfeiture of all fees, charges, deposits and bond obligations theretofore paid or provided, without releasing in any manner any obligations for the payment of fees and charges, required to be paid under any Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, for the full term thereof.

(b) No oral agreements for the use of the Center shall be binding on the Manager or the city. The Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit issued by the city and signed by all parties thereto, shall constitute the contract between the city and the respective concessionaire, lessee, licensee or permittee.

(c) Upon written notice to the concessionaire, lessee, licensee or permittee, the city or the Manager may cancel or revoke any Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit when the respective concessionaire, lessee, licensee or permittee is, in the reasonable discretion of the city or the Manager, determined to be acting contrary to the public interest, health, safety and/or welfare as specifically set forth in said notice.

(d) Except as otherwise acceptable to city's Risk Manager, by its signing of a Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit as hereinabove provided, a concessionaire, lessee, licensee or permittee, at its sole cost and expense, shall covenant and agree to relieve and discharge the city, its officials, officers, agents, volunteers and employees, from any and all loss, liability, fines, penalties, forfeitures, costs and damages (whether in contract, tort or strict liability, including but not limited to personal injury, death at any time and property damage), and for loss, injury, claim, demand, action in law or equity, (including attorney's fees and litigation expenses) or damage to any person, persons, or property that may be sustained directly or indirectly by reason of the possession, occupancy or use of the Center, and to save them free and harmless and defend and indemnify them therefrom; and every concessionaire, lessee, licensee and permittee shall further agree to pay for any and all damage to the Center and damage to or loss of any of the property and equipment of the Center, and any other property of the city or third parties, resulting, either directly or indirectly, from such possession, occupancy or use of the Center, or by or through the negligence or other acts of said concessionaire, lessee, licensee, permittee, or any of their agents, employees or invitees in connection with or during said use or occupancy. The city's Risk Manager may require concessionaire, lessee, licensee or permittee to covenant and agree that the obligations under the preceding sentence shall apply regardless of whether the city or any of its officers, officials, employees, agents or volunteers

are actively or passively negligent, but shall not apply to any loss, liability, fines, penalties, forfeitures, costs or damages caused solely by the active negligence or by the willful misconduct of the city or any of its officers, officials, employees, agents or volunteers.

(e) No Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, or any interest therein, shall be assigned by any such concessionaire, lessee, licensee or permittee without the prior written consent of city.

(f) Every concessionaire, lessee, licensee and permittee shall furnish or pay for police or security protection as may be required by the Manager during the use of the Center, and if such concessionaire, lessee, licensee or permittee fails or refuses to furnish police or security protection satisfactory to the Manager, the Manager may furnish the same and charge the cost thereof to the concessionaire, lessee, licensee or permittee.

(g) The Manager and other duly authorized representatives of the city shall have the right to enter the entire Center complex, and all parts thereof, for any purpose and at all times during all uses thereof by concessionaire, lessee, licensee or permittee.

(h) No copyrighted works including musical compositions, whether held by a member of the American Society of Composers, Authors and Publishers ("ASCAP") or other copyright holder(s), shall be presented, played or sung in connection with any use of the Center, either amplified, televised, or otherwise, and either in the form of a mechanical recording or personal rendition, unless the concessionaire, lessee, licensee or permittee sponsoring the program shall have first paid any license fee, royalty or other fee required by ASCAP or other copyright holder, and upon the request of Manager shall have provided evidence of such payment.

(i) Any Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit issued pursuant hereto shall provide that the concessionaire, lessee, licensee or permittee shall quit the facilities at the expiration of the time provided in such Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit and that the concessionaire, lessee, licensee or permittee shall leave the Center including the facilities, furnishings and equipment thereof in the same condition as existed prior to the onset of concessionaire's, lessee's, licensee's or permittee's possession, use or occupancy, whichever is earlier, except for ordinary wear and tear.
(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 11, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-213. ISSUANCE OF LICENSE TO STATE OR FEDERAL GOVERNMENTS.

Notwithstanding anything in this article to the contrary, whenever a state or federal government or any department or agency thereof applies for the use of the Center or portion thereof under a Concession Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit, and the laws or regulations under which such applicant acts will not permit the insurance and/or indemnity obligations imposed under Article 2 upon applicants, or if such governmental applicant is self-insured, a Concession

Contract, Lease, License, Permit, Special Use License, Supplemental License Agreement or Temporary Use Permit may be issued without the city's standard insurance and/or indemnity obligations otherwise imposed upon applicants under this Article 2, provided that any variation from such city standard imposed under this article shall be subject to the approval of the Manager and the City Attorney.
(Added Ord. 71-50, 1971; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2002-22, § 12, eff. 5-30-02; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-214. SPECIAL REQUIREMENTS.

Permits involving catering or food services shall be issued only to a duly licensed caterer or food service provider, however, no Permit shall be issued if the Manager, in his or her reasonable discretion, determines that the applicant for said Permit does not possess the professional ability, skill, personnel or assets necessary to provide quality catering or food services. The determination of the Manager shall be final for all purposes.
(Added Ord. 6783, 1966; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-215. PUBLIC REGULATION.

All persons on any part of the property comprising the entire Center complex and the public rights-of-way adjoining the Center shall be governed by the provisions of this article and by orders and instructions of the Manager acting for and on behalf of the city relative to the use or occupancy of any part of the property comprising the entire Center complex or the public rights-of-way adjoining the Center.
(Added Ord. 68-56, 1968; Am. Ord. 98-74, § 5, eff. 10-24-98; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-216. ENFORCEMENT.

Each member of the staff of the Manager, if directed by the Manager, is empowered, as a representative of the Manager, to require compliance with the provisions of this article.
(Added Ord. 68-56, 1968; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-217. PEDESTRIANS.

Pedestrians in marked pedestrian lanes on the Center shall at all times have the right of way over vehicular traffic.
(Added Ord. 68-56, 1968; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-218. PARKING.

No person shall park a motor vehicle on the Center other than in an area specifically established for parking and in the manner prescribed by the Manager. No person shall

abandon any motor vehicle on the Center area, nor shall any person park a motor vehicle on the Center area for a period in excess of twenty-four hours unless express approval for such parking is obtained from the Manager. No person shall park a motor vehicle in any space marked off for the parking of vehicles in such a manner as to occupy part of another marked space. No person shall park any motor vehicle in excess of the time limit prescribed for the particular parking area, nor shall any person park any motor vehicle in any restricted area. No person shall park a motor vehicle in an area requiring payment for parking thereon without paying the required parking fee, as designated in the Master Fee Resolution.
(Added Ord. 68-56, 1968; Am. Ord. 80-115, § 17, eff. 8-8-80; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-219. PENALTY FOR VIOLATION.

Violation of Section 5-218 is an infraction.
(Added Ord. 76-64, § 3, eff. 7-1-76; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-220. CONDUCT.

(a) No person shall be disorderly, obnoxious, indecent, or commit any act of nuisance on the Center.

(b) No person shall engage in, or operate, gambling in any form on the Center.

(c) No person shall dispose of garbage, papers, or refuse, or other material on the Center, except in receptacles provided for that purpose.

(d) No person shall use a comfort station other than in a clean and sanitary manner.

(e) No person shall expectorate on the floors, walls, or other surfaces of any Center building.

(f) No person shall destroy, injure, deface, or disturb any building, sign, equipment, marker, or other structure, tree, flower, lawn, or other property on the Center.

(g) No person shall alter, make additions to, or erect, any building or sign, or make any excavations on the Center without the permission of the Manager.

(h) No person shall willfully abandon any personal property on the Center.

(i) No person shall enter any restricted areas posted as being closed to the public, except as provided in this article.

(j) No person shall take into any Center building any alcoholic beverage, illegal or hazardous substance, bottle, can, vacuum bottle, canteen, or other beverage container, unless such person is otherwise authorized by the Manager to display or otherwise make use of such beverage in said building.
(Added Ord. 68-56, 1968; Am. Ord. 72-12, 1972; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-221. USE OF ROADS AND WALKS.

(a) No person shall travel on the Center other than on roads, walks, or places provided for the particular class of traffic.

(b) No person shall occupy the roads or walks in such a manner as to hinder or obstruct their proper use.

(c) No person shall walk in a picket line as a picket or take part in any labor or other public demonstrations on any part of the entire Center complex, except in places which would only affect the operation picketed and which are specifically designated for such a use by the Manager.
(Added Ord. 68-56, 1968; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-222. ANIMALS.

No person shall enter any building in the entire Center complex with a dog or other animal, except that service animals may be permitted and animals may enter with animal shows and stage acts.
(Added Ord. 68-56, 1968; Am. Ord. 2000-83, §§ 1, 2, eff. 2-2-01; Am. Ord. 2007-96, § 4, eff. 1-19-08).

ARTICLE 3 TRANSIT REGULATIONS

Sec. 5-301. Rules and Regulations.
Sec. 5-302. Enforcement Authority.
Sec. 5-303. Fees, Fares, Rates, Penalties and Charges.
Sec. 5-304. Special Transportation Service.
Sec. 5-305. Passenger Restrictions and Conduct.
Sec. 5-306. Business or Commercial Activity.
Sec. 5-307. Lost or Unclaimed Property.
Sec. 5-308. Conduct on or about Transit Property.
Sec. 5-309. Penalty for Fare Evasion.
Sec. 5-310. Severability.

SEC. 5-301. RULES AND REGULATIONS.

(a) The Director of Transportation ("Director") may make such rules and regulations, as are not inconsistent with the provisions of this article, and as may be necessary or desirable to aid in transit operations and in the administration or enforcement of the provisions of this article.

(b) All persons when upon any transit bus or on any portion of Department of Transportation property shall be governed by applicable laws, this article, and by rules and regulations of the Director.
(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-302. ENFORCEMENT AUTHORITY.

(a) Each employee of the Department of Transportation is empowered, as a representative of the Director, to require compliance with the provisions of this article, in accordance with the written scope of his or her assigned duties.

(b) The Director shall have the responsibility to administer and enforce the provisions of this article. The Director shall have the authority to designate employees as enforcement officers in conformance with this article to assist in the enforcement responsibilities, including the issuance of administrative citations pursuant to Section 1-308 of this Code.
(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 2007-96, § 4, eff. 1-19-08; Am. Ord. 2018-10, § 1, eff. 3-19-18).

SEC. 5-303. FEES, FARES, RATES, PENALTIES AND CHARGES.

The Council shall designate, in the Master Fee Resolution, the fees, fares, rates, penalties, and charges for services provided by the Department of Transportation.
(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 80-115, § 12, eff. 8-8-80; Am. Ord. 2007-96, § 4, eff. 1-19-08; Am. Ord. 2018-10, § 2, eff. 3-19-18).

SEC. 5-304. SPECIAL TRANSPORTATION SERVICE.

The Director, when required by law, shall, and otherwise may, establish and provide special transportation service in the community to meet the needs of any individual who, because of illness, injury, age, congenital malfunction, or other permanent or temporary incapacity or disability, cannot use other forms of public transportation.
(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 2007-96, § 4, eff. 1-19-08; Am. Ord. 2018-10, § 3, eff. 3-19-18).

SEC. 5-305. PASSENGER RESTRICTIONS AND CONDUCT.

In addition to other penalties provided by law, all persons shall abide by the following restrictions while on a transit bus and may be denied admittance thereto or removed therefrom, unless the following restrictions and conduct are initially and continuously met:

(a) No person shall smoke any cigarette, cigar, pipe, or other smoke emitting device or substance;

(b) No person shall transport any animals or pets, unless in a container, with the exception of service animals accompanying;

(c) No person shall play any portable radios, tape decks, noise makers or other noise producing or musical instruments;

(d) No person shall be disorderly, obnoxious, indecent, or commit any act of nuisance. The phrase "commit any act of nuisance" as used in this section shall include the intentional evacuation of the bowels or bladder at a place not provided for that purpose;

(e) No person shall engage in gambling or operate a gambling device in any form;

(f) No person shall dispose of garbage, papers, or refuse or other material, except in receptacles provided for that purpose;

(g) No person shall expectorate on the floors, walls, or other surfaces;

(h) No person except peace officers, duly authorized personnel of the United States Post Office, military security personnel, or members of the Armed Forces of the United States on official duty, shall carry any weapon, explosive, or inflammable material on any transit bus or transit property; except that cigars, cigarettes, pipe lighters, or other similar flame ignition devices or matches which are not operated or lit may be carried on any such transit bus or upon transit property. Upon completion of appropriate training and certification as required by the City, transit employees shall be allowed to carry Oleoresin Capsicum (commonly known as "pepper spray"), while operating a transit bus or while on transit property. For purposes of this subsection, Oleoresin Capsicum is considered a weapon;

(i) No person shall be admitted on a bus unless wearing shoes and a shirt; and

(j) No person shall evade the payment of a fare of any transit vehicle or system, which shall include:

(1) Entering an enclosed area of a transit facility beyond posted signs prohibiting entrance without obtaining valid fare;

(2) Entering a transit vehicle without valid fare;

(3) Misuse of a transfer, pass, ticket, or token with the intent to evade the payment of a fare;

(4) Unauthorized use of a discount ticket; and

(5) Failure to present, upon request by a designated transit representative, or within 72 hours thereafter, acceptable proof of identification or eligibility to use a discount ticket.

(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 81-106, § 4, eff. 9-25-81; Am. Ord. 2007-96, § 4, eff. 1-19-08; Am. Ord. 2011-6, § 4, eff. 4-10-11; Am. Ord. 2018-10, § 4, eff. 3-19-18).

SEC. 5-306. BUSINESS OR COMMERCIAL ACTIVITY.

(a) No person shall engage in any business or commercial activity of any nature whatsoever on transit property, except with the approval of, and under such terms and conditions as may be prescribed by, the Council.

(b) No person shall post, distribute, or display signs, advertisements, circulars, or any other printed or written matter on transit property except with the approval of the Director and in such manner as he or she may prescribe unless permitted by contract which has been approved by the Council.

(c) No political advertising matter or sign shall be displayed upon any bus or on transit property.

(d) No person shall take still, motion or sound pictures on public areas of transit property for commercial purposes without permission of the Director, except that duly authorized newspaper or television news media personnel may take pictures of newsworthy events for newspaper or television display only.

(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-307. LOST OR UNCLAIMED PROPERTY.

Lost or unclaimed property on transit buses or property shall be received, kept, sold, and disposed of as required in Chapter 4, Article 3 of this Code.

(Added Ord. 78-173, § 1, eff. 12-22-78; Am. Ord. 81-106, § 5, eff. 9-25-81; Am. Ord. 2007-96, § 4, eff. 1-19-08; Am. Ord. 2018-10, § 5, eff. 3-19-18).

SEC. 5-308. CONDUCT ON OR ABOUT TRANSIT PROPERTY.

(a) No person shall destroy, injure, deface, or disturb any part of a transit bus, building, sign, equipment, structure, shelter, bus bench, or other transit property;

(b) No person shall loiter on any transit bus, bus bench, shelter, or on transit property;

(c) No person shall knowingly or willfully make any false statement or report to the Director, Transit Manager, or any Supervisor or employee of transit;

(d) No person shall knowingly or willfully provide false identification to a peace officer, or other designated representative of the Director, when engaged in the enforcement of this article;

(e) No person shall enter any restricted transit areas posted as being closed to the general public, except as may be authorized by the Transit Manager;

(f) No person shall interfere or tamper with any transit bus, or put in motion such bus, or use any transit bus, part, instrument, or toll without the permission of the Transit Manager.
(Added Ord. 2008-36, § 1, eff. 7-20-08; Am. Ord. 2018-10, § 6, eff. 3-19-18; Am. Ord. 2018-10, § 6, eff. 3-19-18)

SEC. 5-309. PENALTY FOR FARE EVASION.

(a) Violation of subsection (j) of 5-305 of this article is punishable as follows:

(1) For a first violation. a civil penalty of $50 and/or eight hours of community service.

(2) For a second violation within a twelve month period, a civil penalty of $100 and/or sixteen hours of community service.

(3) For a third violation within a twelve month period, a civil penalty of $250 and/or forty hours of community service.

(4) A fourth or subsequent violation within a twelve month period, or failure to pay a fine or serve community service within sixty days of imposition of the penalty, may be prosecuted as a misdemeanor.

(b) Appeals. Any person receiving a citation for violation of subsection (j) of Section 5-305 shall have the right to appeal pursuant to Article 4, Chapter 1 of this code. Notwithstanding Section 1-408, the peace officer or designated representative of the Director who issued the administrative citation shall not be required to participate in the administrative hearing. In addition, the city shall not be required to produce any evidence other than the administrative citation. The administrative citation, in proper form, shall be prima facie evidence of the violation.
(Added Ord. 2018-10, § 7, eff. 3-19-18)

SEC. 5-310. SEVERABILITY.

If any portion of this article is held to be invalid by any court of competent jurisdiction. such decision shall not affect the validity or effectiveness of the remaining portions of this article. The Council hereby declares it would have passed each remaining portion irrespective of the fact that any one or more portions are declared invalid.
(Added Ord. 2018-10, § 7, eff. 3-19-18)

ARTICLE 4 AIRPORT REGULATIONS

Sec. 5-401. Rules and Regulations.
Sec. 5-402. Airport.
Sec. 5-403. Fees, Fares, Rates and Charges.
Sec. 5-404. Restrictions and Conduct At Airport.
Sec. 5-405. Lost or Unclaimed Property.
Sec. 5-406. Aircraft Operations.
Sec. 5-407. Traffic Regulations Within Airport.
Sec. 5-408. Parking Regulations.
Sec. 5-409. Enforcement Authority.

SEC. 5-401. RULES AND REGULATIONS.

(a) The Director of Aviation ("Director") may make such rules and regulations as are not inconsistent with the provisions of this article, and as may be necessary or desirable to aid in the administration or enforcement of this article and Airport operations.

(b) All persons on Airport property shall be governed by applicable laws, this article, and rules and regulations of the Director.
(Added Ord. 81-67, § 1, eff. 7-17-81; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-402. AIRPORT

"Airport" as used in this article shall mean: (1) Fresno Yosemite International Airport which is identified as "FAT" by the Federal Aviation Administration and/or (2) Fresno Chandler Executive Airport which is identified as "FCH" by the Federal Aviation Administration.
(Added Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-403. FEES, FARES, RATES AND CHARGES.

The Council shall designate in the Master Fee Resolution, the fees, fares, rates, and charges for services provided by Airport.
(Added Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-404. RESTRICTIONS AND CONDUCT AT AIRPORT.

(a) These rules and regulations are not intended to amend, modify or supersede any provisions of federal, state or local law.

(b) Any permission granted by the city or Director, either directly or indirectly, expressly or by implication, to any person to enter upon or use the Airport shall constitute an agreement by the person to comply with any and all city, state or federal rules, regulations or laws, including but not limited to compliance with Federal Aviation Administration and Transportation Security Administration rules, regulations and plans.

(c) No person shall engage in any business or commercial activity on the Airport except with the approval of, and under such terms and conditions as may be prescribed by the Director.

(d) No person shall post, distribute or display signs, advertisements, circulars or printed material without first obtaining the approval of the Director.

(e) No person shall take still, motion or sound pictures at the Airport for commercial purposes without first obtaining a license or permit from the Director, except duly authorized newspaper or television news media personnel may take pictures of newsworthy events for newspaper or television display only.

(f) The Director may promulgate reasonable rules and regulations to regulate the time, place and manner of charitable solicitations and the distribution of religious, political or commercial literature, including newspapers, parading, demonstrating and assembling. Such rules and regulations shall be precisely drawn to protect constitutional rights and promote legitimate governmental interests, including but not limited to preventing unreasonable interference with pedestrian and vehicular traffic, preventing fraud, preventing undue harassment of passersby, and preventing undue interference with the business operations of the airport. Such rules and regulations may include the establishment of a permit system.

(g) Any person damaging Airport property shall report such damage to the Director and may be responsible to the city for any expense required to repair such damage.

(h) No person shall bring any animal upon the Airport unless such animal is on a leash or caged. No person shall bring any animal into any Airport public building except service animals or an animal properly confined for shipment by air.

(i) No person shall travel on any portion of the Airport except on roads, walks or places provided for the particular class of traffic nor occupy the roads or walks in such a manner as to hinder or obstruct their proper use.

(j) No person shall enter any restricted area posted as limited to "Authorized Persons Only," or similar wording without proper identification and authorization.

(k) No person shall enter any air operations area of the Airport without authorization of the Director.

(l) No person shall drink any intoxicating liquors nor have in his possession any open containers of intoxicating liquors upon any portion of the Airport open to the public except in such restaurant or other place as shall be properly designated and licensed for on-sale liquor dispensing.

(m) Except as authorized by law, no person shall carry any firearms, destructive device or explosive on the Airport.

(n) No person shall dispose of garbage, paper, waste, refuse or other material in the Airport public areas except in receptacles provided for that purpose.
(Added Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-405. LOST OR UNCLAIMED PROPERTY.

Lost or unclaimed property on Airport shall be received, kept, sold, and disposed of as required in Chapter 4, Article 3 of this Code unless governed by superseding federal laws or regulations.
(Added Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-406. AIRCRAFT OPERATIONS

(a) No person shall navigate any aircraft upon, fly aircraft from, or conduct any aircraft operations on or from the Airport otherwise than in conformance with the current Federal Aviation Administration and United State Department of Transportation Rules, and other federal laws, State law, this Code, and the rules and regulations of the Airport.

(b) The pilot or person in charge of any aircraft involved in an accident shall immediately remove such aircraft and any wreckage or debris caused by such accident to a place designated by the Director unless such person is required by federal law or regulation to leave the same in place for investigation.

(c) The Director may order the removal and/or impoundment of aircraft at the owner's expense upon a delinquency of and pending payment of fees under the Master Fee Resolution. If the aircraft is impounded, no owner, operator, lienholder, receiver or other trustee of such aircraft shall thereafter remove such aircraft without first paying all delinquent fees, the expenses of aircraft removal and impoundment incurred hereby, and any other applicable charges.
(Added Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-407. TRAFFIC REGULATIONS WITHIN AIRPORT.

(a) Pursuant to the authority of Section 21113(c) of the Vehicle Code all provisions of the Vehicle Code relating to traffic upon the highways shall be applicable at the Airport. The Council designates the following as subject to the Vehicle Code:

(1) Roadways as entrances to or exits from Airport;

(2) Points where vehicles must come to a stop before proceeding;

(3) Places for crosswalks;

(4) Roadways as service roadways, roadways open to the public or private roadways;

(5) Places where roadways shall be divided into lanes;

(6) The direction and manner in which vehicles shall proceed.

(b) The Director is authorized to erect signs, make markings and erect or place official traffic control devices and official traffic signals giving notice thereof, which signs, markings, devices and signals shall conform to the provisions of Section 21401 of the Vehicle Code.
(Added Ord. 81-67, § 1, eff. 7-17-81; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-408. PARKING REGULATIONS.

(a) The Director is authorized to designate:

(1) Places where vehicles may or may not be parked;

(2) The period of time for which vehicles may be parked at any place; and shall make appropriate markings giving notice thereof which markings shall conform to the provisions of Section 21401 of the Vehicle Code.

(b) Except as otherwise provided herein, persons shall park vehicles only in those areas designated by signs as public parking areas. It is further provided that:

(1) No person shall park any vehicle in any public parking area except between the painted lines indicating where vehicles shall be parked;

(2) No person shall so park any vehicle in any public parking areas so as to use or occupy more than one marked parking space.

(c) No person shall park or stop any vehicle at the Airport:

(1) In any restricted parking, stopping or standing zone for a time longer than provided for by the display of appropriate signs or curb marking, or in violation of any other limitation or restriction set forth in any sign or curb marking.

(2) In any zone where the display of appropriate signs and/or curb markings indicate that parking, stopping or standing at such location is not permitted.

(d) All drivers of vehicles entering upon any public parking area shall follow and comply with any directional markers or signs therein.

(e) No person shall park any vehicle for hire in any place other than a place provided therefor and appropriately marked as such.

(f) No person shall park any vehicle other than a vehicle for hire in any place set aside for the parking of vehicles for hire.

(g) The Director is authorized to remove any vehicle parked on any roadway, parking area or other posted property on Airport in violation of this Code, and to impound the same at owner's expense.
(Added Ord. 81-67, § 1, eff. 7-17-81; Am. Ord. 2004-132, § 1, eff. 1-18-05; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-409. ENFORCEMENT AUTHORITY.

Enforcement of these rules and regulations at airport shall be the responsibility of those persons employed by city as airport peace officers and airport parking enforcement officers. Airport peace officers may enforce any provision of this article. Airport parking enforcement officers may enforce any provision of Sections 5-407 and 5-408 of this Code. Airport parking enforcement officers are public officers within the meaning of California Penal Code Section 836.5 and not peace officers. In addition, traffic regulations may be enforced by any duly

authorized peace officer, including, but not limited to, the Fresno Police Department and the California Highway Patrol which are by this reference specifically authorized to enter upon the roadways within Airport for the purpose of enforcement of Vehicle Code provisions.
(Added Ord. 81-67, § 1, eff. 7-17-81; Am. Ord. 2007-96, § 4, eff. 1-19-08).

ARTICLE 5 PARKS AND PLAYGROUND REGULATIONS

Sec. 5-501. Definitions.
Sec. 5-502. Prohibited Acts in Parks.
Sec. 5-503. Dogs on Leash in Parks.
Sec. 5-504. Skateboard Park Regulations.
Sec. 5-505. Obstructing Pathways in Parks.
Sec. 5-506. Itinerant Vendors Near Approaches to Parks.
Sec. 5-507. Consumption of Alcoholic Beverages in City Parks.
Sec. 5-508. Drug Free Zones.
Sec. 5-509. Permission to Use Designated Park Areas and Conduct Group Activities.
Sec. 5-510. Fresno Youth Commission.

SEC. 5-501. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article.

(a) "Park" shall mean city owned or maintained parks and recreation centers, city and school playgrounds, or any park owned, operated or maintained by a special district.

(b) "Director" shall mean the Director of Parks After School, Recreation Community Services Department also be referred to as PARCS Director.

(Added Ord. 67-138, 1968; Am. Ord. 78-181, § 1, eff. 12-29-78; Added Ord. 2003-20, § 4, eff. 4-1-03; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-502. PROHIBITED ACTS IN PARKS.

Within the limits of any park, no person shall:

(a) Sell any tickets for a performance or activity or seek contributions for a performance or activity, whether conducted in the park or elsewhere, except with the prior written permission of the Director.

(b) Cut, break, injure, deface, or disturb any tree, shrub, plant, rock, building, cage, pen, monument, fence, bench, or other structure, apparatus, or property; or pluck, pull up, cut, take or remove any shrub, bush, plant, or flower, or mark or write upon any building, monument, fence, bench or other structure, or carry any flowers, shrubs, or branches into or through any park.

(c) Cut or remove any wood, turf, grass, soil, rock, sand, or gravel.

(d) Distribute any commercial handbills, or circulars, or post, place, or erect an advertising device of any kind.

(e) Swim, bathe, wade in, or pollute the water of any fountain, pond, lake, or stream, except that wading and swimming shall be permitted in pools provided for these purposes.

(f) Make or kindle a fire for any purpose, except at places provided for such purpose, unless prior special permission has been obtained from the Director.

(g) Camp or lodge at any place not set apart for that purpose without prior written permission of the Director.

(h) Ride, drive, or propel any vehicle elsewhere than on the paths, roads, or drives provided for such purpose with the exception of wheelchairs or other power-driven mobility devices used by persons with mobility disabilities, if those devices can be safely operated pursuant to City policy and consistent with the Americans with Disabilities Act.

(i) Indulge in riotous, threatening, indecent or immoral conduct, or abusive, threatening language or throw stones or missiles.

(j) Sell, or offer for sale, any merchandise, article or thing, whatsoever, without prior written permission of the Director.

(k) Fish in any park except in lakes provided for that purpose and at the times designated by the Park Superintendent.

(l) Play or practice golf or archery, or fly motor driven model aircraft in any park except in areas specifically designated and posted for such purpose.

(m) Play or bet at or against any game which is played, conducted, dealt or carried on with cards, dice, or other device, for money, chips, shell, credit, or other representative of value, or maintain or exhibit any gambling table or other instrument of gambling or gaming, or play any game prohibited by any provision of this Code.

(n) Practice, carry on, conduct, or solicit for any trade, occupation, business, or profession, without the written permission of the Director.

(o) Row, or sail on any pond, lake or waters in any boat or raft, excepting one provided for that purpose by the city or holder of boating privileges, without first obtaining the written permission of the Director.

(p) Enter, remain, stay, loiter, park or leave standing any vehicle between the hours of midnight and five a.m. of the following day, without the written permission of the Director.

(q) Take into, exhibit or use in any park any firearm, air gun, sling shot, firecrackers, torpedoes, rockets, or other fireworks, or other articles of like character.

(r) Go upon any lawn or grass plot, where prohibited by the Director, and which prohibition is indicated by legible signs.

(s) Open, expose, or interfere with any water or gas pipe, hydrant, stopcock, sewer, basin, or other construction, in any park.

(t) Use a sound amplification system which violates the City's Noise Ordinance as set forth in Chapter 10 of this Code.

(u) Possess a lighted or burning tobacco or tobacco-related product, including but not limited to cigars, cigarettes and pipes; use or chew tobacco or tobacco-related products; or dispose of any lighted or unlighted tobacco or tobacco-related product in any place other than a designated waste disposal container.

(v) Throw or place any paper, bottle, trash, or refuse matter of any kind whatsoever, or any other article or thing, upon the grounds in any public park or pedestrian mall, or in any of the fountains, lakes, ponds, or streams therein.

(w) Hunt, pursue, annoy, throw stones or missiles at, or molest or disturb in any way, any animal, bird or reptile.

(x) Remain in, or place anything in, any public place or way in a park so as to obstruct, or unreasonably hinder the use for which such place was designed.

(y) Possess one or more shopping carts while in a park, without first obtaining the written permission of the Director.

(Orig. Ord. 1076, 3244, and 3356; Am. Ord. 5311, 1958; Am. Ord. 6007, 1961; Am. Ord. 6915, 1966; Am. Ord. 67-138, 1968; Am. Ord. 72-41, 1972; Am. Ord. 2004-138, § 1, eff. 1-25-05; Am. Ord. 2006-10, § 1, eff. 3-13-06; Am. Ord. 2007-96, § 4, eff. 1-19-08; Am. Ord. 2011-6, § 5, eff. 4-10-11; Am. Ord. 2014-19, § 1, eff. 4-25-14).

SEC. 5-503. DOGS ON LEASH IN PARKS.

(a) Except in parks designated by the City to be "dog parks" no person having the control or care of any dog shall suffer or permit such dog to enter or remain in a park unless it be led by a leash of suitable strength not more than six feet in length.

(b) The owner of the dog and/or the person in control or care of the dog shall be responsible for, and to make good, any damage caused in any event, by such dog, whether or not leashed. The provisions of this subsection do not relieve the owner and/or person in control or care of said dog from liability to the City for violation of this Section.

(Orig. Ord. 1076; Am. Ord. 98-34, § 1, eff. 6-27-98; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-504. SKATEBOARD PARK REGULATIONS.

This section is intended to comply with Section 115800 of the Health and Safety Code and to adopt supplemental regulations for the safe use of city-owned and/or operated skateboard parks, facilities, or structures. The following requirements shall apply to all parks, facilities, and structures owned, operated, maintained, and/or provided by the city for the use of skateboarders and inline skaters:

(a) Safety Equipment. No person shall use a city skateboard park, facility or structure without wearing elbow pads, knee pads, wrist pads and a helmet that meets the standards of either the American Society for Testing and Materials (ASTM) or the United States Consumer Product Safety Commission (CPSC) or standards established by these entities subsequent to the adoption of this section.

(b) Skateboards and Inline Skates. No person shall be in or on the skateboard park, facility, or structure except those who are using skateboards or inline skates to practice skateboarding or inline skating.

(c) Food and Beverages. No person shall cause any food or beverage or food or beverage container to enter or be on a skateboard park, facility, or structure.

(d) Hours of Operation. No person shall use, enter, or be on a skateboard park, facility, or structure outside of the hours of operation posted on the skateboard park, facility, or structure.

(e) Occupancy. No person shall use, enter, be on or remain on a skateboard park, facility, or structure after the Director has notified them that they need to leave the skateboard park, facility or structure on the basis of an unsafe occupancy of the skateboard park, facility or structure.

(f) Ingress and Egress. No person shall enter or exit a skateboard park, facility, or structure by any means other than by walking through a gate, turnstile, door, or other means provided and intended by the city for ingress or egress into the skateboard park or facility.

(g) Rules and Regulations. No person at, in or on any skateboard park, facility or structure shall violate any rule or regulation developed and adopted by the Director and posted on signs at the skateboard park or facility or any other applicable regulation provided in this article.

(h) Fines and Penalties. Notwithstanding any contrary provisions in this article, any person violating subsections (a) through (f) is subject to an administrative fine of fifty dollars ($50) for the first violation, one-hundred dollars ($100) for the second violation, and two-hundred dollars ($200) for the third and all subsequent violations. Alternatively, violations of this section may be prosecuted by the City Attorney's Office as an infraction, with a maximum penalty of fifty dollars ($50) for the first violation, one-hundred dollars ($100) for the second violation, and two-hundred ($200) dollars for the third and all subsequent violations. In addition to an administrative fine of two-hundred dollars ($200) for a third or subsequent violation, the Director may determine that a violator has forfeited to the city his or her skateboard, inline skates, bicycle, and/or scooter and the Director may permanently bar the violator from using any or all of the city's skateboard parks, facilities, or structures.

(i) Parent and Guardian Responsibility. The parent or legal guardian having control or custody of an un-emancipated minor whose conduct violates this section shall be jointly and severally liable with the minor for the amount of an administrative fine imposed pursuant to this section.

(j) Appeals. Fines and penalties issued under this section shall be appealable to the City Administrative Hearing Officer under Chapter 1, Article 4 of this Code. Fines issued under this section are collectible under the procedures found in Chapter 1, Article 5 for collection of penalties, notwithstanding contrary provisions found therein.

(k) Seizure of Equipment. For purposes of administering this section, the Director may seize and hold a violators skateboard, inline skates, bicycle, or scooter at the time of issuing an administrative citation until an administrative hearing is held in front of the City Administrative Hearing Officer. Any time a violator's property is seized pursuant to this subsection, the Director shall provide the violator with a receipt and notice of a time and location for an automatic hearing in front of the City Administrative Hearing Officer no later than ten days from seizing the violator's property.

(l) Forfeited Equipment. After a hearing wherein the City Administrative Hearing Officer confirms the forfeiture, the Director shall deliver any skateboards, bicycles, inline skates, scooters forfeited to a non-profit charitable organization that serves youths or provides youth-activity programs.

(m) Postings. The city shall post signs at all skateboard parks, facilities and structures providing reasonable notice of the provisions of this section and the penalty for violations.

(Added Ord. 2003-20, § 3, eff. 4-1-03; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-505. OBSTRUCTING PATHWAYS IN PARKS.

No person or persons shall assemble, collect or gather together in any walk, driveway, passageway or pathway in any park or in any other place set apart for the travel of persons or vehicles in or through any park in such a manner that the free passage or use thereof by persons or vehicles passing along the same shall be obstructed.

(Orig. Ord. 1076; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-506. ITINERANT VENDORS NEAR APPROACHES TO PARKS.

No itinerant vendor shall sell, expose for sale, or offer to sell, in or along any street adjoining or approaching any park, within two hundred feet of any entrance to said park, any goods, wares or merchandise of any kind whatsoever.

(Orig. Ord. 1076; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-507. CONSUMPTION OF ALCOHOLIC BEVERAGES IN CITY PARKS.

No person shall consume or possess in any park any alcoholic beverage, except that the Director may authorize the possession and consumption of alcoholic beverages during special events held on City owned or controlled property which is under his or her jurisdiction including but not limited to Rotary Playland within Roeding Park, the downtown malls, Eaton Plaza, and the Rotary Amphitheater and Japanese Garden in Woodward Park for the benefit of the city, and except that the Council may authorize, in the city's lease agreements, the possession and consumption of alcoholic beverages during an event held on the leased premises and conducted by the organization leasing the premises from the city, when the event is for the benefit of that organization or the city. "Alcoholic beverage" includes alcohol, spirits, liquor, wine, beer and any liquid or solid containing one half of one percent or more of alcohol by volume and which is fit for beverage purposes either alone or when diluted, mixed or combined with other substances.

(Added Ord. 69-77, 1969; Am. Ord. 79-177, § 1, eff. 12-7-79; Am. Ord. 82-94, § 1, eff. 10-1-82; Am. Ord. 83-94, § 1, eff. 7-22-83; Am. Ord. 87-159, § 3, eff. 12-18-87; Am. Ord. 96-45, § 1, eff. 7-19-96; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-508. DRUG FREE ZONES.

All public parks within the City of Fresno are designated "drug free zones" pursuant to state law. This section applies and is enforceable only if notice of this section is posted at the park.
(Added Ord. 99-41, § 1, eff. 7-30-99; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-509. PERMISSION TO USE DESIGNATED PARK AREAS AND CONDUCT GROUP ACTIVITIES.

(a) Designated Park Areas. For purposes of this section, the term "Designated Park Areas" shall refer to Registration Areas and Special Activity Areas as described hereunder.

(b) Use Of Registration Areas. The Director shall designate those areas of any park the usage of which is heavy, and shall restrict the use thereof to persons or groups registering in advance for such use. Such assignment shall be upon a "first come first served" basis, except in cases of periodic usage by groups such as state picnics, annual picnics of employee groups, folk dance groups and similar groups. In such cases, the Director in the exercise of his or her discretion shall prioritize the usage of such periodic user groups without regard to who first applied, provided a suitable alternative area is available for the use of the earlier in time registrant group(s).

(c) Use Of Special Activity Areas and Group Activities.

(1) The Director shall designate those areas of any park which are designed or desirable for special or limited activities. Without limitation, Lisenby Bandstand in Roeding Park and the outdoor theatre in Ralph W. Woodward Park and bird refuge are hereby declared to be such areas. The use of such areas shall be subject to prior permission as specified herein.

(2) No group of more than twenty-five persons shall utilize for any purpose any area in any park, without prior permission as specified herein.

(d) Any person or group desiring to use an area or conduct an activity described in subsections (c)(1) and (c)(2) shall first submit a written application as the Director may prescribe. The application shall be made at least fifteen days before the use or activity is to commence, provided that the Director may, in his or her discretion, waive the filing of a written application and/or the time limit.

(e) The Director is hereby granted the following additional powers and assigned the following additional duties:

(1) The Director shall assess and evaluate the public health, safety and welfare problems arising from the occurrence of such activity or the use of the requested area of the park, and considering the age of the participants, the hour of the conducting of the activity, the type of the activity proposed, the extent and type of advertising thereof, the condition of the premises, including access thereto, the current status of the level of delinquency in the community at large and the locale of the activity in

particular and other similar and pertinent factors and he/she shall designate the minimum number and type of persons who shall be required to be present to enforce laws and regulations and maintain decorum and pedestrian and vehicular traffic control at or about the premises of the activity.

(2) The Director shall assess and evaluate such activity or the use of the requested area of the park and considering the nature of the activity or use, shall determine whether or not it will create unusual wear and tear of park property and/or accumulation of trash. Upon making such determination the Director shall impose conditions on the activity or use reasonably calculated to decrease or eliminate the problem(s).

(3) The Director in his/her discretion and based upon a consideration of the activity and/or the use shall limit the hours of use of any facility or area.

(4) The Director's decision(s) under this section shall be based upon the exercise of his or her discretion and in light of the above factors and shall be rendered to promote and protect the health, safety, and welfare of the participants in the activity and the spectators who may be drawn thereto, and property including the property involved, and the community at large.

(f) The Director shall issue a permit for the use or activity described in subsection (c). The permit shall be deemed issued when entered upon the park records except that any special conditions shall be in writing. The permittee shall comply with any special conditions imposed under subsection (e).

(g) Any interested person may appeal any decision of the Director made under this Section and relating to an application for a permit for the use of a special activity area or group activity to the City Manager who shall immediately hear and consider the matter and grant, grant with conditions, or deny the permit.

(h) Any person or group obtaining a permit from the Director pursuant to this section shall not be required to obtain a special event permit under Chapter 14 of this Code.

(i) No person or group shall interfere with the use or activity of any area assigned to any other person or group by registration or permit issued under this section.
(Orig. Ord. 1076; Am. Ord. 67-138, 1968; Am. Ord. 72-41, 1972; Am. Ord. 87-159, § 2, eff. 12-18-87; Am. Ord. 99-71, § 1, eff. 12-25-99; Am. Ord. 2007-96, § 4, eff. 1-19-08).

SEC. 5-510. FRESNO YOUTH COMMISSION.

(a) There is hereby created a commission which shall be known as the Fresno Youth Commission, or for purposes of this Section, the "Commission." The purpose of the Commission is to advise the Council and Mayor on issues relating to youth. The Commission is empowered to and shall perform such advisory functions as are delegated to it by the provisions of this section or other action of the Council.

(b) The Commission shall consist of eight (8) voting members and eight (8) alternates.

(1) Each member of the City Council shall appoint two members to the Commission from their district; the Mayor shall appoint two members from the city-at-large. One appointment will be the voting member and the second appointment will be an alternate member.

(2) Immediate family members of City Councilmembers and Mayor shall not be eligible for appointment.

(3) City Councilmembers and Mayor shall make an effort to involve local youth-serving organizations in the selection and appointment process when appropriate and convenient.

(c) Qualifications for Commission members include:

(1) Each appointed member and alternate must reside or attend school within the Fresno city limits and shall be youth between fifteen and twenty-one years of age, at the time of appointment.

(2) Members and alternates may serve up to age twenty-three.

(3) Membership is restricted to youth who have an understanding of the needs of young people, experience with youth programs or youth-serving organizations, or involvement with school or community activities, and who are able and prepared to participate in the Commission activities and make the required commitment of time and energy.

(4) Members of the Commission shall serve for a two-year term. No person appointed to Commission shall be eligible to serve more than two consecutive terms (a total of four years).

(5) The Commission shall select a Chair and Vice Chair from among its members to serve for a one year term; no member shall serve more than two consecutive terms in either position.

(d) The Commission shall establish its rules and regulations for the conduct of its business. Such rules and regulations shall be consistent with this section and all other applicable laws and regulations, and shall enable the Commission to carry out the purpose of this section.

(1) All meetings of the Commission shall be subject to the Ralph M. Brown Act (Chapter 9 of part 1 of division 2 of title 5, commencing with Section 54950, of the California Government Code).

(2) The Commission shall schedule at least one meeting per month at a designated time and place. No more than four excused absences per year and one unexcused absence per year shall be allowed. Commissioners must notify the Youth Coordinator or Chair of the Commission of any anticipated absence 72 hours prior to the meeting at which the Commissioner will be absent, unless an emergency arises. Excused

absences may be due to, but not limited to, personal, school, or medical circumstances. Excused absences shall be granted at the mutual discretion of the Youth Coordinator and the Chair of the Commission. A Commissioner exceeding the absence limit shall be automatically removed from their position. This attendance policy may be amended in the Commission's bylaws by vote of 2/3 of the Commission.

(3) A simple majority of members shall constitute a quorum at any regular or special meeting of the Commission.

(e) The youth-serving organization designated by the City Council will work with the City Clerk and city staff together to provide guidance to the Commission.

(1) Agendas and minutes of the Commission shall be prepared by the City Clerk, or their designee, filed with the Office of the City Clerk, and shall be a public record.

(2) The youth-serving organization designated by City Council will provide staff in an adult supervisory role to support all the Commission activities.

(3) The City of Fresno will secure funding for the business of the Commission, provide website hosting, and any other technical support.

(4) The council staff will serve as liaisons to the Fresno City Council and provide support as needed.

(f) The Commission shall have the following powers and duties:

(1) Identify the concerns and needs of the youth of Fresno through community outreach and engagement; and hold public forums in which children, youth and families are encouraged to participate.

(2) Examine existing social, economic, educational, and recreational programs for youth; develop and propose plans that support or improve such programs; and make recommendations thereon to the City Council and Mayor.

(3) Develop and maintain a yearly strategic plan outlining the areas of focus for the Commission within the purview and jurisdiction of the City of Fresno.

(4) Submit recommendations to the City Council and Mayor about juvenile crime prevention, job opportunities for youth, recreational activities for teenagers, opportunities for effective participation by youth in the governmental process, and changes in city regulations that are necessary to improve the social, economic, educational, recreational advantages, health and well-being of youth.

(5) Work with the public and private sectors to bring forth the concerns of youth as well as evaluate programming that will enhance the development of young people.

(6) Develop a communication network to disseminate information about services for youth and serve as a forum for young people.

(7) Report to the City Council the activities, goals and accomplishments of the commission by June 30 of each calendar year, effective January 1, 2016.

(8) Submit quarterly reports or as requested to the City Council and Mayor.

(9) Commissioners shall meet with their appointing Councilmember or Mayor at least twice a year.

(Added Ord. 2015-17, § 1, eff. 7-20-15; Am. Ord. 2021-032, § 1, eff. 7-29-21).

ARTICLE 6 POLICE DEPARTMENT MILITARY EQUIPMENT REGULATIONS

Sec. 5-601. Findings.
Sec. 5-602. Policy.

SEC. 5-601. FINDINGS.

Based on facts and information provided to the City Council at a public hearing at a regularly scheduled Council meeting, the City Council approves and adopts the Military Equipment Policy, Fresno Police Department Policy No. 706, based on the following findings:

(a) The military equipment identified as defined by California Government Code section 7070, subdivision (c) is necessary because there are no reasonable alternatives that can achieve the same objectives of officer and civilian safety.

(b) The proposed Military Equipment Funding, Acquisition and Use Policy No. 706 will safeguard the public's welfare, safety, civil rights, and civil liberties.

(c) The military equipment identified in Military Equipment Funding, Acquisition and Use Policy No. 706 is reasonably cost effective compared to available alternatives that can achieve the same objective of officer and civilian safety.

(d) All prior military equipment use complied with the City's policies that were in effect at the time.

(Added Ord. 2022-010, § 2, eff. 6-20-22)

SEC. 5-602. POLICY.

(a) Fresno Police Department Policy No. 706, Military Equipment Funding, Acquisition and Use Policy is approved and adopted, and Council authorizes the use, acquisition, and seeking of funds for all military equipment as defined by California Government Code section 7070, subdivision (c) and Policy No. 706 Military Equipment Funding, Acquisition and Use Policy.

(b) Fresno Police Department Policy No. 706 shall be published on the Police Department's website and made publicly available at all times military equipment is available for use, in compliance with state law.

(Added Ord. 2022-010, § 2, eff. 6-20-22)

CHAPTER 6

MUNICIPAL SERVICES AND UTILITIES

Art. 1. Billing and Collection Procedures for Municipal Utility Services.
Art. 2. Solid Waste, Recyclable and Green Waste Collection and Disposal.
Art. 3. Sewage and Water Disposal.
Art. 4. Wells.
Art. 5. Water Regulations.
Art. 6. Heat Transfer Systems Utilizing Water.
Art. 7. Urban Storm Water Quality Management and Discharge Control.
Art. 8. Cross-Connection Control.
Art. 9. Recycled Water Ordinance.

ARTICLE 1 BILLING AND COLLECTION PROCEDURES FOR MUNICIPAL UTILITY SERVICES

Sec. 6-101. Definitions.
Sec. 6-102. Rules and Regulations.
Sec. 6-103. Application for Municipal Utility Services.
Sec. 6-104. Charges, Bills, and Payment for Municipal Utility Services.
Sec. 6-105. Establishment of Credit for Municipal Utility Services.
Sec. 6-106. Late Payment of Municipal Service Bills.
Sec. 6-107. Municipal Utility Service Payment Agreements.
Sec. 6-108. Vacancies.
Sec. 6-109. Discontinuance of Utility Services.
Sec. 6-110. Temporary Discontinuance of Service.
Sec. 6-111. Restoration or Discontinuance of Water Service During Off-Hours.

SEC. 6-101. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this chapter, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Bill" shall mean an invoice or statement of account for utility service charges, rentals, or fees or other municipal charges or fees.

(c) "Bimonthly" shall mean every two months.

(d) "Charges" shall mean charges, rentals, fees, and other debts incurred by reason of the rendering of a utility or other municipal service or privilege.

(e) "Consumer" shall mean a person using or receiving the benefit of utility services.

(f) "Customer" shall mean a person who has been designated on an application for service as responsible for payment of charges.

(g) "Premises" shall mean a tract of real estate, including adjoining lots or parcels under the same ownership or control and the improvements thereon, which is determined by the Controller to be a single unit for purposes of receiving, using, and paying for service.

(h) "Property" shall have the same meaning as "premises."

(i) "Quarterly" shall mean every three months.

(j) "Residential Water Service" shall mean water service to a residential connection that includes single-family residences. multifamily residences. mobile homes, including but not limited to. mobile homes in mobile home parks, or farmworker housing.

(k) "Utility Service" or "Utility Services" shall mean water service, or waste disposal service, or sewer service, or any combination thereof, or privileges connected with water, waste, or sewer service.

(l) "Day" shall mean a calendar day.
(Added Ord. 70-3, 1970; Am. Ord. 2021-048, § 1, eff. 1-17-22).

SEC. 6-102. RULES AND REGULATIONS.

The Controller may make such rules and regulations as are not inconsistent with the provisions of this article as may be necessary or desirable to aid in the administration or enforcement of the provisions of this article.
(Added Ord. 70-3, 1970).

SEC. 6-103. APPLICATION FOR MUNICIPAL UTILITY SERVICES.

(a) Applications for municipal utilities service may be made by telephone, in writing, or online by the property owner, or the property owner's agent or tenant. A deposit equal to twice the average monthly cycle bill may be added to the account.

(b) **Form of Application.** The form of the application shall be designated by the Controller. It shall set forth the location of the premises to be served, the date service is to commence, the name, address and telephone number of the customer. Such service is to be under and subject to the rules and regulations of the city in respect thereto as from time to time may be in force, and such other information concerning the applicant's identity, financial status, or right to service, as may be required by the Controller.

(c) **Conditions Precedent to Final Acceptance of Application.**

(1) No application for municipal utility service shall be finally accepted from any customer who is delinquent on any bill with respect to any premises, unless an agreement for payment has been entered into under the provisions of Section 6-107.

(2) No application shall be finally accepted from any previous customer, or any present customer who has had three or more incidences of delinquencies within a one-year period, unless the customer pays with the application the applicable utility service charges or service deposit, or establishes credit in accordance with Section 6-105. The charges applicable to customers applying to restore residential water service will be subject to the City of Fresno's Discontinuation of Residential Water Service for Nonpayment Policy and shall be set forth in the Master Fee Schedule.

(3) The Controller may receive an application for utility service and provide commencement of conditional service(s) applied for, all subject to a check of the applicant's utility service record to determine whether he or she will finally accept the application. If it is determined that the application cannot be accepted, notice of this fact shall be given to the applicant with not less than ten days to correct the defect.

If the defect is not corrected, service shall be discontinued. For residential water service customers, discontinuation of service will be subject to the City of Fresno's Discontinuation of Residential Water Service for Nonpayment Policy.

(d) **Tenant or Occupant Applications for Residential Water Service.** The City will accept applications for residential water service from occupants or tenants if there is a landlord-tenant relationship between the residential occupants and the owner, manager, or operator of a dwelling, the occupant agrees to the terms and conditions for service, and the occupant meets the City's requirements and rules. New occupant customers will not be required to pay any delinquent amounts associated with the premises for which they request residential water service.
(Added Ord. 70-3, 1970, based on former Sec. 14-102; Am. Ord. 73-120, § 1, eff. 8-16-73; Am. Ord. 80-10, § 1, eff. 2-15-80; Am. Ord. 92-6, § 1, eff. 2-21-92; Am. Ord. 96-59, §§ 1, 2, eff. 9-27-96; Am. Ord. 97-20, §§ 1—3, eff. 6-6-97; Am. Ord. 2021-048, § 2, eff. 1-17-22).

SEC. 6-104. CHARGES, BILLS, AND PAYMENT FOR MUNICIPAL UTILITY SERVICES.

(a) **Charges.** Charges for municipal utility services, fiscal service charges, and minimum charges shall be in the amounts designated in the Master Fee Resolution.

(b) **Purchaser's Responsibility.** An owner or purchaser of premises maintaining water or sewer connections or furnished solid waste disposal service, shall assume responsibility for financial obligations of such service effective the date possession of the property is taken.

(c) **Due and Delinquency Dates.**

(1) Bills for flat rate utility services shall normally be due and payable on the due date specified in the bill or upon presentation to the customer in cases of a retroactive assessment.

(2) Bills for metered service will be rendered as soon as practicable after the reading of the meter.

(3) Bills for municipal utility services shall become overdue and delinquent when payment is not made by the date specified thereon.

(d) **Municipal Service Bills.** The Controller shall have the power to combine bills for utility services rendered to any one customer or bill separately therefor, as in his discretion he may deem to be in the best interests of the city. The Controller shall have the power to bill for regular service or special services rendered to regular service customers or consumers, upon a monthly, bimonthly, quarterly, or other basis, as in his discretion he may deem to be in the best interests of the city. For billing periods other than monthly, the charge for flat rate service will be computed by multiplying the monthly charge by the number of months in the billing period.

(e) **Payments.**

(1) **Place of Payment.** Bills are payable at the office of the utility cashier in the Department of Finance at Fresno City Hall, or to an authorized city collector or city collection agent.

(2) **Credit to Account.** Payments shall be credited to a customer's account only when actually received by an employee of the Department of Finance or such collector or collection agent. Payments shall be received "on account" of the customer and shall not apply to charges for any particular period.

(3) **Checks, Electronic Funds Transfer, or Credit/Debit Card.** If a remittance tendered in payment of any account fails to clear through the banks and is returned, the account shall be considered unpaid, any receipts issued therefor shall be void, and the indebtedness shall be restored to the account. Section 6-106 shall apply where applicable.

(4) **Service Charge for Returned Payments.** The service charge designated in the Master Fee Resolution for returned checks shall be assessed under the conditions specified in Section 7-911. This charge shall be made against the account originally credited, shall be added to the amount of the bill, and shall become a part thereof. This charge is in addition to any collection, restoration or reconnection charges which may otherwise become due and payable. Assessment of this service charge shall not relieve the maker of any criminal or civil liability provided by law.

(f) **Proration of Bills.** The charges applicable to opening periods and closing bills rendered for periods less than the regular billing cycle will be computed as follows:

(1) **Metered Service.** The amount of the minimum charge (and the quantity allowed therefor) or the readiness to serve charge (Water Meter Service Charge) and the quantity in each of the several quantity rate blocks will be prorated on the basis of the ratio of the number of days in the period to the number of days in the established billing period. The measured quantity of usage will be applied to such prorated amounts and quantities. In general, meters shall be read on a monthly, bimonthly, quarterly, or other basis. The period between reading dates may vary and still be considered as one or more whole months for billing purposes.

(2) **Flat Rate Service.** The billing period charge will be prorated on the basis of the ratio of the number of days in the period to the number of days in the established billing period.

(3) **Established Billing Period.** The number of days in billing periods will be considered as thirty days for those accounts on a monthly cycle, and as sixty days for those accounts on a bimonthly cycle. In the case of utility rates adopted with an effective date other than the first day of a billing cycle, or opening or closing period bills, the billing period charge will be prorated on the basis of the ratio of the actual number of days service will be provided, to the actual number of days in the billing period.

(4) **Rounding Off.** Any flat rate charge may be rounded off to the nearest multiple of five cents. Charges based on volume may be rounded off only to the nearest multiple of one cent. Parcel size may be rounded off to the nearest one hundred square feet.

(g) **Disputed Bills.** Should the amount of any bill for service be questioned, the customer should promptly request an explanation. If the explanation is not satisfactory or is not understood, the customer must pay the bill under protest in order to avoid discontinuance of service. Protests will be addressed to the Controller, must be in writing, and must state the reasons why the charges are believed to be incorrect. The Controller will analyze the facts of the case and is authorized to make such adjustments in the charges as may be necessary to effect an equitable settlement.

For all accounts other than residential water service accounts, the failure of a customer to pay under protest after initial explanation is offered will warrant discontinuance of service without further notice if bill is not paid by delinquency date. Discontinuation of residential water service accounts will be subject to the City of Fresno's Discontinuation of Residential Water Service for Nonpayment Policy.

(h) **Failure to Receive Bills.** Municipal service bills shall be mailed to the premises served or other address known to the city. The applicant, property owner, or his authorized agent may list a mailing address with the city for use in mailing bills. Failure to request such listing or to receive any bill, invoice, or notice shall not relieve responsibility for timely payment as required.

(i) **Computation When Meter Cannot be Read.** Whenever for any reason a meter is inaccessible and cannot be read or fails to register, water consumption at the metered premises for the purpose of calculating charges based thereon shall be estimated by one or more of the following methods as the Controller may deem to be the best indicators of actual water consumed or actual charges due:

(1) Previous actual consumption at said premises as shown by previous meter readings.

(2) Previous average actual consumption for corresponding billing periods in previous years during which the meter is known to have registered correctly.

(3) Consumption as registered by a later substituted meter.

(4) Consumption based upon the nature of use, volume of business, seasonal demand, and similar factors that may indicate consumption.

Where a meter cannot be read without undue difficulty because of an obstruction, the customer's bill will be estimated until an actual meter reading can be obtained. The city has the right to discontinue the service if the condition is not corrected. Where service is turned off for such cause, the city may require payment of a turn-on charge as provided for in this article.

(Added Ord. 70-3, 1970, based on former Secs. 14-104 and 14-136; Am. Ord. 78-82, § 1, eff. 6-9-78; Am. Ord. 80-10, §§ 2, 3, eff. 2-15-80; Am. Ord. 80-115, §§ 4, 5, eff. 8-8-80; Am. Ord. 92-7, § 1, eff. 3-6-92; Am. Ord. 96-59, § 3, 9-27-96; Am. Ord. 97-20, § 4, eff. 6-6-97; Am. Ord. 2021-048, § 3, eff. 1-17-22).

SEC. 6-105. ESTABLISHMENT OF CREDIT FOR MUNICIPAL UTILITY SERVICES.

(a) **Commercial or Industrial Accounts.** An applicant for any utility service for a commercial or industrial establishment or for any measured or metered water service shall establish his credit to the satisfaction of the Controller. An applicant's credit will be deemed to be established if the applicant:

(1) makes a cash deposit with the city or makes an assignment to the city of a savings and loan investment certificate or passbook, or a commercial bank savings or time deposit certificate, to secure the payment of charges for municipal utility services;

(2) is, or is an agency of, the federal, state, or other government;

(3) furnishes evidence acceptable to the Controller of a favorable credit rating by a nationally recognized credit rating firm;

(4) has previously been a utility service customer of the city within one year of the application for service and has paid all bills promptly for the last twelve-month period prior to the date of discontinuance of service.

(b) **Occupants or Tenants Receiving Residential Water Service.** A tenant or occupant may also establish credit by presenting proof of prompt payment of rent or other credit obligation, acceptable to the Controller, for the past year, when, in the judgment of the Controller, such is required in order to ensure payment of charges for residential water service.

(c) **Amount of Security.** Service deposits or other security, when furnished by a customer to guarantee payment of utility service bills, shall be made in an amount equal to the estimated charges for twice the established billing period as determined by the Controller, but not less than fifteen dollars ($15). When actual records of previous consumption or charges at the service location are not available, or where the use of the property or the nature or extent of services rendered will change, the estimate shall be based on charges to customers whose installations are similar in size and similarly operated; provided, however, that a deposit required for flat rate residential service shall be equal to the charges for the established billing period, rounded to the next full dollar amount.

(d) **Return of Security and Prepaid Charges.** If a customer's account has not been delinquent in twelve consecutive months, any service deposit or other security for said account shall be returned to the depositor upon application for refund of said security. Upon the closing of any account, the balance of the security or prepaid charges, remaining after the closing bill for service has been paid, and less any city offsets, shall be returned to the customer upon application for refund, provided such application is made within one year after discontinuance of service. No interest shall be paid by the city on any such balance. In the event no such application is received in one year, said balance shall be forfeited.

(e) **Failure to Pay Bills Promptly.** If a customer who has established his credit, or whose deposit has been returned as provided herein, later fails to pay his bills promptly as required by this article, or if a customer fails to establish his credit or deposit security as

herein provided, the Controller may demand as a condition precedent to further service and as security for the payment of bills thereafter to be incurred, further security as described in subsection (a)(1) hereof in the amount specified in subsection (c) above, provided that service will not be discontinued or disconnected for failure to make such deposit until at least fifteen days after notice of intention to do so has been given to the customer and to the consumer, if different.

(Added Ord. 70-3, 1970, based on former Secs. 14-103, 14-105, 14-106; Am. Ord. 2021-048, § 4, eff. 1-17-22).

SEC. 6-106. LATE PAYMENT OF MUNICIPAL SERVICE BILLS.

(a) **Service Charge.** Whenever a payment of any bill for municipal utility services is not received by the specified delinquent date, the delinquency service charge designated in the Master Fee Resolution shall be, without notice, added to the amount of such bill and become part thereof. This subsection shall not apply to payments due from any government or governmental agency.

(b) **Delinquency Notice.** A delinquent bill notice or reminder, stating the amount past due and remaining unpaid and the service charge due and payable, shall be mailed to the customer. For residential water service accounts, delinquency notices shall conform to the requirements set forth in the City's Discontinuation of Residential Water Service for Nonpayment Policy.

(c) **Collection or Restoration Charge.** Subject to the City's Discontinuation of Residential Water Service for Nonpayment Policy, upon any of the following listed occurrences, the Controller may send a representative to collect the bill or discontinue the utility service, and the service charge designated in the Master Fee Resolution shall be charged for this collection follow-up and/or any restoration or reconnection of service during normal working hours. This amount shall be in addition to the service charge imposed under subsection (a) of this section,

(1) When a delinquent bill, bill notice or reminder, or dishonored payment remains unpaid more than seven days after a mailing of a notice or reminder thereof;

(2) When final acceptance of the application (and continuance of service) cannot be made and the defect is not corrected as provided in subsection (d) of Section 6-103;

(3) When service has been discontinued for violations of other sections of this Code, or of lawful rules and regulations issued as authorized in this Code.

(d) **Discontinuance for Nonpayment.** For all accounts other than residential water service accounts, the Controller may discontinue, upon ten days' written notice, any or all utility services being rendered, at any or all premises for which the customer is responsible for payment of charges, and may require payment in full of all amounts due including service charges and cost of discontinuance and restoration of the service, before any service is restored.

(e) **Discontinuance of Residential Water Service for Nonpayment.**

(1) The City Council is authorized to adopt a policy establishing guidelines for the discontinuation of residential water service for nonpayment of a delinquent account, including how account holders and/or occupants are notified of the policy, how they may obtain a payment arrangement or alternative payment schedule, how they may contest or appeal water charges, and how they may restore service after it has been discontinued for nonpayment.

The Policy shall comply with the Water Shutoff Protection Act (Cal. Health & Safety Code section 116900 et. seq.). Such policy may be amended from time to time to ensure ongoing compliance with applicable law.

(2) The City's Discontinuation of Residential Water Service for Nonpayment Policy shall be available on the City's website.

(f) **Notice of Lien.** When services to any property with the owner as the City's customer have been discontinued for non-payment for a period of not less than one month, the City may, subject to Health and Safety Code 5471 et seq., elect to have delinquent charges collected on the tax roll in the same manner, by the same persons, and at the same time as, together with and not separately from, its general taxes.
(Added Ord. 70-3, 1970, based on former Secs. 14-103, 14-105, 14-106; Am. Ord. 86-150, § 1, eff. 10-17-86; Am. Ord. 96-59, § 4, eff. 9-27-96; Am. Ord. 97-20, § 5, eff. 6-6-97; Am. Ord. 2002-51, § 12, eff. 10-31-02; Am. Ord. 2021-048, § 5, eff. 1-17-22).

SEC. 6-107. MUNICIPAL UTILITY SERVICE PAYMENT AGREEMENTS.

Whenever a delinquent current or former customer desires continuance of a municipal utility service discontinued under this article or new utility service for which an application cannot be finally accepted under this article, service may be extended to the customer on a temporary basis until such delinquency is cured, providing that the customer enters into an agreement with the city for the payment of the delinquency. The agreement may be made by the Controller and shall provide for the regular repayment of the delinquent amount. The terms of the agreement shall be determined by the Controller with the approval of the City Attorney, may include simple interest charges established by the Controller, and shall be reasonably calculated to ensure payment and collection of the delinquent amount. For all accounts other than residential water service accounts, failure to make a scheduled payment shall result in discontinuance of service without further notice. Discontinuation of service for residential water accounts for failure to make a scheduled payment will be subject to the City of Fresno's Discontinuation of Residential Water Service for Nonpayment Policy.
(Added Ord. 70-3, 1970; Am. Ord. 2021-048, § 6, eff. 1-17-22).

SEC. 6-108. VACANCIES.

No allowance reducing a utility service charge shall be made for vacancies in either single or multiple dwelling units in the computation of charges for utility services thereto unless the water service to the property is turned off by the city, except as provided in Section 6-313 when premises are physically disconnected from the sanitary sewer system.
(Added Ord. 70-3, 1970).

SEC. 6-109. DISCONTINUANCE OF UTILITY SERVICES.

Charges for utility services shall continue to accrue and be in full force and effect until the customer or consumer shall have given the city at least twenty-four hours' notice that such service is no longer desired, provided that the Controller may declare the account closed and that charges have ceased to accrue if he finds from a written notation in the city records that discontinuance of service has been requested, that another customer has properly requested service, or that the customer has moved from the premises. When advance notice of desired discontinuance is not given, the customer will be required to pay for service until such time as the Utilities Accounting Division has knowledge that the customer has vacated the premises or otherwise has discontinued use of service.
(Am. Ord. 70-3, 1970, based on former Sec. 14-136, based on former Sec. 14-123; Am. Ord. 2021-048, § 7, eff. 1-17-22).

SEC. 6-110. TEMPORARY DISCONTINUANCE OF SERVICE.

(a) **Disposal Service.** When residential disposal service is not required for more than 30 days, a customer may complete a Solid Waste Exemption form to temporarily suspend charges. Customers must adhere to the requirements for exemption approval.

(b) **Water Service.** When water service is discontinued with the intent of stopping charges and is then resumed by the same customer at the same premises within thirty days, the special service charge designated in the Master Fee Resolution shall be made. This is in addition to any service charge required to be made under subsection (a) hereof, unless both water and disposal are discontinued and resumed at the same time.
(Added Ord. 70-3, 1970; Am. Ord. 80-10, § 4, eff. 2-15-80; Am. Ord. 80-115, § 8, eff. 8-8-80; Am. Ord. 2021-048, § 8, eff. 1-17-22).

SEC. 6-111. RESTORATION OR DISCONTINUANCE OF WATER SERVICE DURING OFF-HOURS.

Whenever water service is requested to be turned off for other than repairs, or on at any time, other than during normal city working hours, a special service charge shall be paid by the water customer or consumer. This charge shall be established by the Controller at an amount to reimburse the city for the direct and indirect costs of providing this special service, subject to the City of Fresno's Discontinuation of Residential Water Service for Nonpayment Policy.
(Added Ord. 70-3, 1970; Am. Ord. 2021-048, § 9, eff. 1-17-22).

ARTICLE 2 WASTE COLLECTION AND DISPOSAL*

Sec. 6-201. Title.
Sec. 6-202. Definitions.
Sec. 6-203. Intent.
Sec. 6-204. Collection Containers, Provision and Use.
Sec. 6-205. Collection and Disposal Regulations.
Sec. 6-206. Mandatory Service.
Sec. 6-207. Service Charges.
Sec. 6-208. Rules and Regulations.
Sec. 6-209. Collection Franchise and Processing Facility Requirements.
Sec. 6-210. Unauthorized Disposal of Material Prohibited.
Sec. 6-211. Financial Procedures.
Sec. 6-212. Burying Material Prohibited.
Sec. 6-213. Ownership of Materials.
Sec. 6-214. Unauthorized Removal of Material Unlawful.
Sec. 6-215. Inspections and Enforcement Authority.
Sec. 6-216. Penalties.
Sec. 6-217. Other Remedies not Precluded.
Sec. 6-218. Other Means of Disposal or Recycling of Segregated Recyclable Materials.
Sec. 6-219. Non-Liability of City.
Sec. 6-220. Severability.
Sec. 6-221. Appeals.
Sec. 6-222. Non-Exclusive Roll-Off Collection Franchise.
Sec. 6-223. Special Requirements for Commercial Edible Food Generators.
Sec. 6-224. Special Requirements for Food Recovery Organizations and Services.
Sec. 6-225. Compliance with CALGreen Recycling Requirements.

SEC. 6-201. TITLE.

The title of this article shall be the "Waste Collection and Disposal Ordinance." (Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-202. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article and resolutions adopted pursuant thereto, and, except to the extent that a particular word or phrase is otherwise defined in this section, the definitions and provisions contained in Article 2, commencing with section 1-201 of Chapter 1 of this Code, shall also govern the construction, meaning and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Authorized Cart/Bin Collection Agency or Agency" shall mean the city or the entity authorized by contract, franchise or permit to collect solid waste, recyclable and/or organic material in carts and bins from residential and commercial customers.

***Editor's note—**Ord. No. 2011-25, §§ 1, 2 effective September 1, 2011, amended the Code by repealing former art. 2, §§ 6-201—6-221, and adding a new art. 2. Former art. 2 pertained to solid waste, recyclable and green waste collection and disposal; and derived from Ord. 2005-101, effective October 29, 2005.

(b) "Authorized Processing Agent or Agency" shall mean the city or the entity authorized by contract, franchise or permit to process solid waste, recyclable and/or organic material.

(c) "Authorized Roll-Off Collector" shall mean the entity(ies) authorized by the city through a non-exclusive franchise to use roll-off containers to collect solid waste, recyclable materials, organic materials, and/or construction and demolition debris in the city.

(d) "Automated Collection Service" shall mean service to customers using automated collection containers with the aid of automated lifting and emptying equipment.

(e) "Automated Collection Service Area" shall mean a clearly defined geographical area within which automated collection containers are provided.

(f) "Automated Container" shall mean any material container owned and maintained by the city or its authorized cart/bin collection agent, designed to be emptied mechanically.

(g) "Back-haul" means generating and transporting recyclable materials (including organic materials) to a destination owned and operated by the customer using the customer's own employees and equipment, or as otherwise defined in 14 CCR Section 18982(a)(66)(A).

(h) "Bin" means a container with capacity of approximately one to eight cubic yards, with a hinged lid, and with wheels, that is typically serviced by a front end-loading Collection vehicle.

(i) "Blue Container" has the same meaning as in 14 CCR Section 18982.2(a)(5) and shall be used for the purpose of storage and collection of segregated recyclable materials.

(j) "Cart" means a plastic container with a hinged lid and wheels that is typically serviced by an automated or semi-automated Collection vehicle. A Cart has capacity of 20, 35, 64, or 96 gallons (or similar volumes).

(k) "Certified Recycling Facility" means a recycling, composting, materials recovery or re-use facility that is fully licensed, certified and eligible under federal, state and local laws and regulations. The Director shall maintain a listing of Certified Recycling Facilities.

(l) "City Manager" shall mean the City Manager of the city or an authorized representative of the City Manager.

(m) "Collection Day" shall mean that day determined by the Director for the collection of any material at a specific location.

(n) "Collection Location" shall mean the location as determined by the Director for the placement of any material by customers to be collected by the authorized cart/bin collection agent on the material collection day. This location is generally curbside.

(o) "Collection Route" shall mean an orderly travel network along which exists one or more service locations.

(p) "Commercial Edible Food Generator" includes a tier one or a tier two commercial edible food generator, as defined in this section or as otherwise defined in 14 CCCF Section 192(a)(73) and (a)(74). For the purposes of this Article, food recovery organizations and food recovery services are not commercial edible food generators pursuant to 14 CCR Section 18982(a)(7).

(q) "Commercial Service Location" shall mean any service location not defined as a "residential service location."

(r) "Community Composting" means any activity that composts green material, agricultural material, food material, and vegetative food material, alone or in combination, and the total amount of feedstock and compost on-site at any one time does not exceed one hundred (100) cubic yards and seven hundred fifty (750) square feet, as specified in 14 CCR Section 17855(a)(4); or, as otherwise defined by 14 CCR Section 18982(a)(8).

(s) "Compactor" means a mechanical apparatus that compresses materials into a container, which container may be detachable.

(t) "Construction" means the building of any facility or structure or any portion thereof including any tenant improvements to an existing facility or structure.

(u) "Construction and Demolition Debris" (C&D Debris) means materials resulting from construction, remodeling, repair, cleanup, or demolition operations that are not hazardous as defined in California Code of Regulations. Title 22 Section 66261.3 et seq. This term includes, but is not limited to, asphalt, concrete, cement concrete, brick, lumber, gypsum wallboard, concrete board, cardboard, and other associated packaging, roofing material, ceramic tile, carpeting, plastic pipe and steel, as well as vegetative matter resulting from land clearing and landscaping including but not limited to rock, soil, tree stumps.

(v) "Customer" shall mean a person or entity that is responsible for the initial creation of waste material, or as otherwise defined in 14 CCR Section 18982(a)(48).

(w) "Customer of Record" shall mean any party with a utility billing account issued in their name for a specific service location.

(x) "Demolition" means the decimating, razing, ruining, tearing down or wrecking of any facility, structure, pavement or building, whether in whole or in part, whether interior or exterior.

(y) "Director" shall mean the Public Utilities Director of the city or an authorized representative of the Public Utilities Director.

(z) "Drop Box" means an open-top container with capacities from six (6) to fifty (50) cubic yards that is used for collection of permitted materials and that is serviced by

roll-off collection trucks. Drop boxes with capacities of less than ten (10) cubic yards shall only be used for the purposes of collecting C&D debris on a temporary basis. A drop box is also known as a roll-off box and/or debris box.

(aa) "Edible Food" means food intended for human consumption, or as otherwise defined in 14 CCR Section 18982(a)(18). For the purposes of this article or as otherwise defined in 14 CCR Section 18982(a)(18), "edible food" is not solid waste if it is recovered and not discarded. Nothing in this ordinance or in 14 CCR, Division 7, Chapter 12 requires or authorizes the recovery of edible food that does not meet the food safety requirements of the California Retail Food Code.

(bb) "Excluded Waste" means hazardous waste, infectious waste, volatile, corrosive, medical waste, infectious, regulated radioactive waste, and toxic substances or material that facility operator(s), which receive materials from the city and its customers, reasonably believe(s) would, as a result of or upon acceptance, transfer, processing, or disposal, be a violation of local, State, or Federal law, regulation, or ordinance, including: land use restrictions or conditions, waste that cannot be disposed of in Class III landfills or accepted at the facility by permit conditions, waste that in city's reasonable opinion would present a significant risk to human health or the environment, cause a nuisance or otherwise create or expose city to potential liability; but not including de minimis volumes or concentrations of waste of a type and amount normally found in residential waste after implementation of programs for the safe collection, processing, recycling, treatment, and disposal of batteries and paint in compliance with Sections 41500 and 41802 of the California Public Resources Code.

(cc) "Food Distributor" means a company that distributes food to entities including, but not limited to, supermarkets and grocery stores, or as otherwise defined in 14 CCR Section 18982(a)(22).

(dd) "Food Facility" has the same meaning as in Section 113789 of the Health and Safety Code.

(ee) "Food Recovery" means actions to collect and distribute food for human consumption that otherwise would be disposed, or as otherwise defined in 14 CCR Section 18982(a)(24).

(ff) "Food Recovery Organization" means an entity that engages in the collection or receipt of edible food from commercial edible food generators and distributes that edible food to the public for food recovery either directly or through other entities or as otherwise defined in 14 CCR Section 18982(a)(25), including, but not limited to:

(1) Food bank as defined in Section 113783 of the Health and Safety Code;

(2) Nonprofit charitable organization as defined in Section 113841 of the Health and Safety Code; and,

(3) Nonprofit charitable temporary food facility as defined in Section 113842 of the Health and Safety Code.

A food recovery organization is not a commercial edible food generator for the purposes of this ordinance and implementation of 14 CCR, Division 7, Chapter 12 pursuant to 14 CCR Section 18982(a)(7). If the definition in 14 CCR Section 18982(a)(25) for food recovery organization differs from this definition, the definition in 14 CCR Section 18982(a)(25) shall apply to this ordinance.

(gg) "Food Recovery Service" means a person or entity that collects and transports edible food from a commercial edible food generator to a food recovery organization or other entities for food recovery, or as otherwise defined in 14 CCR Section 18982(a)(26). A food recovery service is not a commercial edible food generator for the purposes of this ordinance and implementation of 14 CCR, Division 7, Chapter 12 pursuant to 14 CCR Section 18982(a)(7).

(hh) "Food Scraps" means those discarded materials that will decompose and/or putrefy including (i) all kitchen and table food waste, (ii) animal or vegetable waste that is generated during or results from the storage, preparation, cooking or handling of food stuffs, (iii) discarded paper that is contaminated with food scraps; (iv) fruit waste, grain waste, dairy waste, meat and fish waste; and, (v) non-recyclable paper or contaminated paper. Food scraps are a subset of organic materials.

(ii) "Food Service Provider" means an entity primarily engaged in providing food services to institutional, governmental, commercial, or industrial locations of others based on contractual arrangements with these types of organizations, or as otherwise defined in 14 CCR Section 18982(a)(27).

(jj) "Gray Container" has the same meaning as in 14 CCR Section 18982.2(a)(28) and shall be used for the purpose of storage and collection of solid waste.

(kk) "Green Container" has the same meaning as in 14 CCR Section 18982.2(a)(29) and shall be used for the purpose of storage and collection of source separated organic materials.

(ll) "Green Waste Material" shall mean any materials generated from the maintenance or alteration of public, commercial, or residential landscapes that will decompose and/or putrefy including, but not limited to, yard clippings, grass, leaves, shrub/tree trimmings or prunings (less than 4" in diameter), brush, flowers, weeds, dead plants, small pieces of unpainted and untreated wood, and other types of organic waste. Green waste material is a subset of organic materials.

(mm) "Grocery Store" means a store primarily engaged in the retail sale of canned food; dry goods; fresh fruits and vegetables; fresh meats, fish, and poultry; and any area that is not separately owned within the store where the food is prepared and served, including a bakery, deli, and meat and seafood departments, or as otherwise defined in 14 CCR Section 1B982(a)(30).

(nn) "Hazardous Waste" includes any waste material or mixture of wastes which is toxic, corrosive, flammable, an irritant, a strong sensitizer, which generates pressure through decomposition, heat or other means, if such a waste or mixture of wastes

may cause substantial personal injury, serious illness or harm to humans, domestic animals, or wildlife, during, or as an approximate result of any disposal of such wastes or mixtures of waste as defined in Article 2, Chapter 6.5, Section 25116 of the Health and Safety Code. The terms "toxic," "corrosive," "flammable," "irritant," and "strong sensitizer" shall be given the same meaning as in the California Hazardous Substances Act (Chapter 13 commencing with Section 28740 of Division 21 of the Health and Safety Code) and under various federal, state, local, or municipal laws, rules, orders, regulations, statutes, ordinances, codes, decrees, or requirements of any government authority regulating, relating to, or imposing liability or standards of conduct concerning any hazardous substance, together with any amendments of or regulations promulgated under such laws, and any other federal, state, or local law, statute, ordinance, or regulation in effect prior to the time of adoption of this chapter or later enacted that pertains to occupational health or industrial hygiene, or the regulation or protection of the environment, including ambient air, soil, soil vapor, groundwater, surface water, or land use.

(oo) "Inspection" means a site visit where city, or its agent, reviews records, containers, and an entity's collection, handling, recycling, or landfill disposal of recyclable materials (including organic materials) or edible food handling to determine if the entity is complying with requirements set forth in this ordinance, or as otherwise defined in 14 CCR Section 18982(a)(35).

(pp) "Large Event" means an event, including, but not limited to, a sporting event or a flea market, that charges an admission price, or is operated by a local agency, and serves an average of more than two thousand (2,000) individuals per day of operation of the event, at a location that includes, but is not limited to, a public, nonprofit, or privately owned park, parking lot, golf course, street system, or other open space when being used for an event. If the definition in 14 CCR Section 18982(a)(38) differs from this definition, the definition in 14 CCR Section 18982(a)(38) shall apply to this ordinance.

(qq) "Large Venue" means a permanent venue facility that annually seats or serves an average of more than two thousand (2,000) individuals within the grounds of the facility per day of operation of the venue facility. For purposes of this article and implementation of 14 CCR, Division 7, Chapter 12, a venue facility includes, but is not limited to, a public, nonprofit, or privately owned or operated stadium, amphitheater, arena, hall, amusement park, conference or civic center, zoo, aquarium, airport, racetrack, horse track, performing arts center, fairground, museum, theater, or other public attraction facility. For purposes of this article and implementation of 14 CCR, Division 7, Chapter 12, a site under common ownership or control that includes more than one large venue that is contiguous with other large venues in the site, is a single large venue. If the definition in 14 CCR Section 18982(a)(39) differs from this definition, the definition in 14 CCR Section 18982(a)(39) shall apply to this ordinance.

(rr) "Local Education Agency" means a school district, charter school, or county office of education that is not subject to the control of city or county regulations related to discarded material, or as otherwise defined in 14 CCR Section 18982(a)(40).

(ss) "Material" shall mean solid waste, segregated recyclables and organic material, including without limitation construction and demolition debris.

(tt) "Medical Waste" includes (i) equipment, instruments, utensils, and other fomites of a disposable nature from the rooms of patients who are suspected to have or have been diagnosed as having a communicable disease and must, therefore, be isolated as required by public health agencies; (ii) laboratory wastes, including pathological specimens (i.e., all tissues, specimens of blood elements, excreta and secretions obtained from patients or laboratory animals) and disposable fomites (any substance that may harbor or transmit pathogenic organisms) attendant thereto; (iii) surgical operating room pathological specimens including recognizable anatomical parts, human tissue, anatomical human remains and disposable materials from hospitals, clinics, outpatient areas and emergency rooms, as is also defined in Section 314(d) of the California Administrative Code, Title 17; and (iv) substances or matter which is defined as "infectious waste" under the California Code of Regulations.

(uu) "Non-Exclusive Roll-Off Collection Franchise" means and includes a franchise to provide roll-off container collection services in the city, provided pursuant to Section 6-222.

(vv) "Notice of Violation" shall mean a non-appealable warning with direction to correct violation issued and served on responsible party in the manner provided in Section 805.1 of Chapter 9 of this Code.

(ww) "Organic Materials" means those discarded materials that will decompose and/or putrefy including green waste material and food scraps such as, but are not limited to, green trimmings, grass, weeds, leaves, prunings, branches, dead plants, brush, tree trimmings, dead trees, small wood pieces, other types of organic yard waste, vegetable waste, fruit waste, grain waste, dairy waste, meat waste, fish waste, paper contaminated with food scrap, pieces of unpainted and untreated wood, and pieces of unpainted and untreated wallboard. No discarded material shall be considered to be organic materials, however, unless such material is source separated from solid waste, recyclable material, C&D debris, or other materials.

(xx) "Public Nuisance" shall mean and the City Council by adoption of this ordinance declares that any violation of this article is unlawful and shall constitute a public nuisance.

(yy) "Prohibited Container Contaminants" means the following: (i) discarded materials placed in the blue container that are not identified as acceptable segregated recyclable materials for the appropriate agency's blue container; (ii) discarded materials placed in the green container that are not identified as acceptable source separated organic materials for the appropriate agency's green container; (iii)

discarded materials placed in the gray container that are acceptable segregated recyclable materials and/or source separated organic materials to be placed in appropriate agency's green container and/or blue container; and, (iv) excluded waste placed in any container.

(zz) "Recyclable Material" shall mean material for re-use, conversion to energy, recycling, composting, land application or alternative daily cover, but not for transformation.

(aaa) "Recycling" means the process of collecting, sorting, cleansing, treating, and reconstituting materials for the purpose of using the altered form in the manufacture of a new product. Recycling does not include burning, incinerating, or thermally destroying solid waste.

(bbb) "Residential Basic Service" shall mean 96 gallons of solid waste, 96 gallons of mixed recyclables and 96 gallons of organic material, per collection period.

(ccc) "Residential Reduced Service" shall mean service for containers with a capacity of less than 96 gallons of solid waste, 96 gallons of mixed recyclables and 96 gallons of organic material, per collection period.

(ddd) "Residential Service Location" shall mean a service location from which material is collected from four or less dwelling units, but including structures containing any number of residential condominiums billed as single family residences.

(eee) "Responsible Party" shall mean any individual or entity that owns a service location, is a customer of record of a service location, or occupies/is in charge of/controls a service location, jointly and severally.

(fff) "Roll-Off Containers" means a drop box or compactor used for collection of permitted materials and serviced by a roll-off collection truck. Roll-off containers with capacities of less than ten (10) cubic yards shall only be used for the purposes of collecting C&D debris on a temporary basis.

(ggg) "Roll-off Collection Truck" means a collection vehicle with a mechanical device such as a winch that pulls or loads a roll-off container onto the truck bed or attached trailer and separately transports each roll-off container to a disposal site or processing site.

(hhh) "Route Review" means a visual inspection of containers along a collection route for the purpose of identifying whether prohibited container contaminants are present and may include mechanical inspection methods such as the use of cameras. or as otherwise defined in 14 CCR Section 18982(a)(65).

(iii) "Source Separated" means the segregation, by the generator, of materials designated for separate Collection for some form of Recycling, Processing, recovery, or reuse.

(jjj) "Segregated Recyclable Material" shall mean recyclable material such as including but not limited to beverage containers, glass, aluminum, tin, steel, newspaper, paper products, plastics, metals and cardboard which have been source separated by the customer and placed in a designated recyclable materials container to be collected by

the authorized collection agent. No discarded material shall be considered segregated recyclable material unless such material is source separated from solid waste, organic material, C&D debris, or other materials.

(kkk) "Service Location" shall mean a specific point from which material can be economically collected from one or more containers which can be lifted after moving the collection vehicle less than one truck length in alternate forward and reverse directions per container following the initial stop.

(lll) "Solid Waste" shall mean waste material of all kinds other excluded waste, and includes, but is not limited to, garbage, rubbish, waste, waste products, animal excrement and refuse. Solid waste does not include source separated organic materials or segregated recyclable materials.

(mmm) "Supermarket" means a full-line, self-service retail store with gross annual sales of two million dollars ($2,000,000), or more, and which sells a line of dry grocery, canned goods, or nonfood items and some perishable items, or as otherwise defined in 14 CCR Section 18982(a)(71).

(nnn) "Tier One Commercial Edible Food Generator" means a commercial edible food generator that is one of the following:

(1) Supermarket.

(2) Grocery store with a total facility size equal to or greater than ten thousand (10,000) square feet.

(3) Food service provider.

(4) Food distributor.

(5) Wholesale food vendor.

If the definition in 14 CCR Section 18982(a)(73) of tier one commercial edible food generator differs from this definition, the definition in 14 CCR Section 18982(a)(73) shall apply to this ordinance.

(ooo) "Tier Two Commercial Edible Food Generator" means a commercial edible food generator that is one of the following:

(1) Restaurant with two hundred fifty (250 or more seats, or a total facility size equal to or greater than five thousand (5,000) square feet.

(2) Hotel with an on-site food facility and two hundred (200) or more rooms.

(3) Health facility with an on-site food facility and one hundred (100) or more beds.

(4) Large Venue.

(5) Large Event.

(6) A State agency with a cafeteria with two hundred fifty (250) or more seats or total cafeteria facility size equal to or greater than five thousand (5,000) square feet.

(7) A local education agency facility with an on-site food facility .

If the definition in 14 CCR Section 18982(a)(74) of Tier Two Commercial Edible Food Generator differs from this definition. the definition in 14 CCR Section 18982(a)(74) shall apply to this ordinance.

(ppp) "Wholesale Food Vendor" means a business or establishment engaged in the merchant wholesale distribution of food, where food (including fruits and vegetables) is received, shipped, stored, prepared for distribution to a retailer, warehouse, distributor, or other destination, or as otherwise defined in 14 CCR Section 189852(a)(76).

(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 1, eff. 4-16-22).

SEC. 6-203. INTENT.

This ordinance is adopted with the intent:

(a) To comply with the California Integrated Waste Management Act of 1989, Assembly Bill 939 (AB 939), including its requirement that each local jurisdiction in the state divert 50% of discarded materials from landfills or face penalties; and

(b) To implement the City's AB 939 Plan including the Source Reduction and Recycling Element (SRRE) for Fresno adopted by the City Council.

(c) To encourage and provide for the diversion of commercial materials and construction and demolition debris from landfill disposal in order to reduce waste and comply with AB 939.

(d) To support the City goals of achieving 75% diversion by 2012 and Zero Waste status by 2025 which were adopted by City Council on June 26, 2007 and presented in its Zero Waste Strategic Action Plan approved on February 11, 2009.

(e) To comply with Assembly Bill 341 of 2011 (AB 341), which places requirements on businesses and multi-family property owners that generate a specified threshold amount of solid waste to arrange for recycling services and requires cities to implement a mandatory commercial recycling program.

(f) To comply with Assembly Bill 1826 of 2014 (AB 1826), which requires businesses and multi-family property owners that generate a specified threshold amount of solid waste and recyclable materials (including organic materials) per week to arrange for recycling services for that waste, requires cities to implement a recycling program to divert organic waste from businesses subject to the law, and requires cities to implement a mandatory commercial organics recycling program.

(g) To comply with Senate Bill 1383 of 2016 (SB 1383), which places requirements on multiple entities including local government, residential households, commercial businesses and business owners, commercial edible food generators, haulers, self-haulers, food recovery organizations, and food recovery services to support achieve-

ment of Statewide organic waste disposal reduction targets. SB 1383 also requires cities to adopt and enforce an ordinance to implement relevant provisions of SB 1383 Regulations.

(h) To help ensure the maintenance, restoration, enhancement, and protection of the environment including natural resources.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 2, eff. 4-16-22).

SEC. 6-204. COLLECTION CONTAINERS, PROVISION AND USE.

(a) All automated containers and roll-off containers used shall be issued by the authorized cart/bin collection agent or authorized roll-off collector to a responsible party unless otherwise approved by the Director and subject to such rules and regulations regarding size, markings use and storage as the Director may promulgate. Without limitation, responsible party shall be responsible for ensuring compliance with the provisions of this article as to each container issued with the exception that each authorized roll-off collector shall be responsible for compliance with provisions of Section 6-204(e).

(b) Only objects or materials which will drop freely through the container opening and permit the lid to be fully closed, or which do not exceed the height of the drop-box walls, may be placed in the container for collection. Objects too large to be placed in and processed by the hopper of the collection vehicle and its related mechanisms will be tagged by the collector and left for the customer to remove from the container.

(c) The Director is specifically authorized to promulgate rules and regulations regarding any and all material containers including as related to the materials to be placed therein, the placement and maximum weight of high-density materials for collection/disposal and the proper use of containers.

(d) The provisions of this subsection shall apply to solid waste, recyclable materials, organic materials, and construction and demolition debris containers. Such containers shall only be used for the storage of material designated by the Director, to be collected by the authorized cart/bin collection agent or authorized roll-off collector.

(e) All containers provided by an authorized roll-off collector shall be labeled in such a manner that prominently displays the collection agent's or roll-off collector's name, local telephone number, a unique container identification number, and a list of acceptable materials. As appropriate, containers shall be labeled for: solid waste, recyclable materials, organic materials or construction and demolition debris. Such labeling may be temporary labeling in the form of magnetic or detachable signs.

(f) The City shall have the right to remove containers that do not comply with the labeling requirements set forth in Section 6-204(e). In such case, the City shall tag the container to be removed with a notice of its intent to remove the container and dispose of or process the materials; and, City shall provide written notice to the owner of the container (if the party can be identified) and the responsible party stating that the container has been tagged for removal. Within fourteen (14) calendar days of such notice, the City or its agent may remove

the container and dispose of or process the materials. If the City can identify the owner of the container, the City may charge the owner of the container for the City's costs incurred removing the container, transporting, processing, and disposing of its contents, and/or the cost of storing the container. Upon receipt of invoice, the container owner shall reimburse the City for such costs within fourteen (14) calendar days of the date of the City's invoice for such costs and remove the container from the City storage location or its agent storage location. If the owner does not pay the invoice amount within fourteen (14) days and remove the container, the City shall become the container owner. In the event the City cannot identify the owner of the container, the City shall become the owner of the container upon removal of the container from the responsible party's premises following proper noticing procedures.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 3, eff. 4-16-22).

SEC. 6-205. COLLECTION AND DISPOSAL REGULATIONS.

(a) **All Persons Subject.** No person shall dispose of any material to be collected by the authorized cart/bin collection agent or authorized roll-off collector or shall keep any material other than as indicated in this section.

(b) **Removal of Solid Waste, Recyclables, Organic Materials, and C&D Debris.** Except as provided herein, every responsible person of any service location where there is any accumulation of material shall place the material at the service location in the appropriate container for collection at least once each week or otherwise lawfully dispose of such material; or as otherwise determined by the Director pursuant to the authority granted to the Director in section 6-208. No collection shall be performed by a person other than an authorized cart/bin collection agent or authorized roll-off collector.

(c) **Collection and Disposal Rules for Residential Service Locations.**

(1) All material shall be loosely placed for collection in covered collection containers conforming to requirements of this article.

(2) No container shall be loaded beyond the capacity as specified by the city in section 6-204 of this chapter 6.

(3) All material shall be stored in containers conforming to the requirements of this article, and as follows:

(i) Material from each residential customer must be placed for collection on a weekly basis in the appropriate container furnished by an authorized collection agency or in a roll-off container furnished by an authorized roll-off collector for temporary service of C&O debris, green waste material, or solid waste.

(ii) Customers shall place organic materials, including food waste, in the green container; segregated recyclable materials in the blue container; and

remaining solid waste in the gray container. Customers shall not place materials designated for the gray container into the green container or blue container.

(4) No material from any service location shall be deposited in a container of, or set out for collection at, any other service location except that this provision shall not apply to material deposited or set out for collection by any customers lawfully sharing a container; and, except that temporary service locations may be established by the Director in instances where the Director has been notified of construction, demolition, or other temporary obstacles which prevent the use of or access to permanent service locations and has agreed to deviations.

(5) Each service location shall be provided with sufficient containers to adequately store for collection the normal periodic accumulation of material. In cases where an abnormal accumulation cannot be stored until the next regular collection in a manner conforming to this article, the customer shall order a special haul and pay for that service at the rates established in the Master Fee Schedule pursuant to section 6-207 of this article, or shall transport the material to a lawful disposal site, in compliance with all applicable laws and regulations mandated by all federal, state or local agencies.

(6) No material or containers shall be kept or handled in such a manner as to become a nuisance. No material shall be allowed to become odoriferous or a producer of vermin. Lids on containers shall remain closed at all times while stored or placed for collection. Residential composting operations shall be exempt from this subsection; provided, that only vegetation grown on the premises is being composted and that the Director determines that the operation is sufficiently capable of being aerated to preclude noxious or offensive odors being perceived from adjacent properties.

(7) No live or hot coals, ashes, or other things, which can cause a fire in a collection container or vehicle shall be placed in or with any material set out for collection. Cold ashes and coals placed for collection shall be contained in such a manner as to retard their blowing and flying on being emptied into the collection vehicle.

(8) Except as provide herein, no human or animal excrement shall be placed for collection. Solid animal excrement may be placed for collection within the solid waste container provided said excrement is placed properly containerized in a plastic or paper bag, to secure contents.

(9) Automated-containers shall be placed within two feet of the curb, unless otherwise specified by Director, in a manner such as to be in front of any fence or other barrier or enclosure and readily accessible from the street or alley on which the collectors conduct their route. Automated containers shall be placed at least three feet from any obstruction, including another automated-container. In the event material collection is made by driving the collection vehicle on to the premises, residential material shall be placed at the service location. Further, in the event a responsible person produces credible assurance that he/she is physically unable to comply with

this provision, such as (but not limited to) a medical doctor's statement, valid state-issued disability parking placard or a state-issued proof of disability, together with such responsible person's affidavit certifying that no person residing on his premises is capable of compliance with this provision, the Director shall arrange with the responsible person for special service at no additional expense.

(10) Container in view requirements: No material container shall be stored in the front yard or side yard on a street as said yards are described in Chapter 12, Articles 2 and 3 of this Code, unless the container is screened from view from the street in accordance with that article of the Code, provided that upon written request the Director in his/her discretion may grant relief from screening requirement based upon facts and circumstances showing undue hardship and provided that roll-off containers supplied by an authorized roll-off collector for use on a temporary basis not to exceed thirty (30) days may be exempt from the view screening requirements. At his/her discretion, the Director may extend the thirty (30) day exemption period for roll-off containers on a case-by-case basis. Containers shall be placed for collection as described in (11) of this subsection (c). No material or container shall be stored or placed for collection within a public walkway, roadway, or any other traveled way in a manner which impedes traffic or drainage or in any manner which creates a hazard.

(11) Placement for collection shall conform to the following: Automated containers shall be placed for collection before 5:30 a.m. of the collection day, but not before 6:00 p.m. of the preceding day. The containers shall be moved back to their normal storage location by not later than 8:00 p.m. of the collection day unless authorized by the Director. Roll-off containers are exempt from the requirements of this subsection.

(12) Except as expressly authorized by city, no more than 288 gallons or three 96-gallon containers will be collected from each separately owned residential service location.

(13) It shall be the customer's responsibility to keep their containers used for the storage and collection of material generated on their premises in a clean and sanitary condition.

(d) **Collection and Disposal Rules For Commercial Service Locations.**

(1) Material may be stored in such rooms or places as are approved by the Director and by the Fire Marshal for the safe and sanitary keeping of such material.

(2) All material shall be stored in containers conforming to the requirements of this article, and as follows:

(i) Material from each commercial customer must be placed for collection in the appropriate solid waste. organic materials, and segregated recyclables container(s) furnished by an authorized collection agency or authorized roll-off collector having a combined capacity at least equal to the estimated normal generation of material by the customer.

(ii) Customers shall place organic materials, including food waste, in the green container; segregated recyclable materials in the blue container; and remaining solid waste in the gray container. Customers shall not place materials designated for the gray container into the green container or blue container.

(iii) It shall be the customer's responsibility to keep their containers used for the storage and collection of material generated on their premises in a clean and sanitary condition.

(3) Service locations served from alleys shall be placed for collection at the alley. Containers used at all such places not served from alleys shall be placed for collection of material at service locations approved by the Director, but shall not be stored in public roadways, walkways, or other traveled ways.

(4) Automatic locking containers in the Downtown Property and Business Improvement District 2010-1 and any amendments to the District as directed by the District's Owners Association from time to time shall be secured by a lock at all times at all commercial service locations, except when customers are placing material into the containers. It shall be the customer's responsibility to keep such containers at their premises locked. The results of the enforcement of this added subsection shall be reviewed by Council within one (1) year of the effective date of the Ordinance adding this subsection.

(5) Commercial service locations, including residential service locations with five (5) or more units , shall supply and allow access to adequate number size and location of collection containers with sufficient labels or colors (conforming with Sections d(6)(i) and d(6)(ii) below) for employees, contractors, tenants, and customers, consistent with the agency's blue container, green container, and gray container collection service or, if back-hauling, per the commercial service location's instructions to support its compliance with its back-haul program, in accordance with Section 6-206(b).

(6) Commercial service locations, excluding multi-family residential dwellings of any unit count, shall provide containers for the collection of source separated organic materials and segregated recyclable materials in all indoor and outdoor areas where disposal containers are provided for patrons, for materials generated by that business. Such containers do not need to be provided in restrooms. If a commercial service location does not generate any of the materials that would be collected in one type of container, then the business does not have to provide that particular container in all areas where disposal containers are provided for patrons. Pursuant to 14 CCR Section 18984.9(b), the containers provided by the business shall have either:

(i) A body or lid that conforms with the container colors provided through the appropriate agency's collection service, with either lids conforming to the color requirements or bodies conforming to the color requirements or both lids and bodies conforming to color requirements. A commercial customer is not required

to replace functional containers, including containers purchased prior to January 1, 2022, that do not comply with the requirements of this subsection prior to the end of the useful life of those containers, or prior to January 1, 2036, whichever comes first.

(ii) Container labels that include language or graphic images, or both, indicating the primary material accepted and the primary materials prohibited in that container, or containers with imprinted text or graphic images that indicate the primary materials accepted and primary materials prohibited in the container. Pursuant 14 CCR Section 18984.8, the container labeling requirements are required on new containers commencing January 1, 2022.

(7) Commercial service locations, excluding multi-family residential dwellings of any unit count, shall, to the extent practical through education, training, inspection, and/or other measures, prohibit employees from placing materials in a container not designated for those materials per the appropriate agency's blue container, green container, and gray container collection service or, if back-hauling, per the commercial service location's instructions to support its compliance with its back-haul program, in accordance with Section 6-206(b).

(8) Commercial service locations, excluding multi-family residential dwellings of any unit count, shall periodically inspect blue containers, green containers, and gray containers for contamination and inform employees if containers are contaminated and of the requirements to keep contaminants out of those containers pursuant to 14 CCR Section 18984.9(b)(3).

(9) Commercial service locations shall annually provide information to employees, contractors, tenants, and patrons about recyclable materials (including organic materials) recovery requirements and about proper sorting of recyclable materials (including organic materials).

(10) Commercial service locations shall provide education information before or within fourteen (14) days of occupation of the premises to new tenants that describes requirements to keep source separated organic materials and segregated recyclable materials separate from solid waste (when applicable) and the location of containers and the rules governing their use at each property.

(11) Commercial service locations shall provide or arrange access for the city or its agent to their properties during all inspections conducted in accordance with Section 6-215 to confirm compliance with the requirements of this article.

(12) Commercial service locations that are tier one or tier two commercial edible food generators shall comply with food recovery requirements, pursuant to Section 6-223.

(e) **Days of Collection.** The capacity and number of material containers, days of collection, and number of collections exceeding the number required pursuant to this section, and requested by any customer shall be subject to the approval of the Director giving full consideration to the nature and needs of the customer, and to the capabilities and efficient

operation of the city. Material will be collected on Sundays only at those premises where collection is deemed necessary by the County Health Department or by the Director with the exception that authorized roll-off collectors may collect roll-off boxes any day of the week without requesting approval of the Director.

(f) **Construction and Demolition Debris Diversion.** Construction and demolition debris generated under a city issued building, relocation or demolition permit and equal to or exceeding 8 cubic yards of material by volume must either be (i) segregated and recycled by the person holding the building, relocation, or demolition permit using a certified recycling facility, (ii) collected by an authorized cart/bin collection agent or authorized roll-off collector for recycling and disposal to a certified recycling facility: or (iii) transported from the premises by a contractor performing construction or demolition work at the premises, whose removal of the construction and demolition debris is incidental to the service being performed, and such contractor removes materials at no additional or separate fee using contractor's employees and contractor's equipment. For the purposes of this subsection, C&D removal service shall be considered "incidental" when the estimated cost of the removal, which includes transportation and disposal or processing of the materials, is less than thirty percent (30%) of the contractor's total cost of services being performed for the responsible party. The city council may from time to time set forth by resolution a construction and demolition material diversion fee to be upon such building, relocation or demolition permit to be issued by city. Said diversion fees shall be deposited into the solid waste operating fund to be used for diversion program implementation including administration and education. Persons applying for a permit from the city for construction or other related activities must also comply with the provisions of Section 6-225.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. No. 2011-23, § 1, eff. 9-1-11; Am. Ord. 2022-003, § 4, eff. 4-16-22).

SEC. 6-206. MANDATORY SERVICE.

(a) **Mandatory Service.** Every person owning or occupying a residence or commercial establishment shall subscribe to solid waste, segregated recyclable materials, and organic materials collection service from an authorized cart/bin collection agent or authorized roll-off collector, and each person generating construction and demolition debris/material under a city issued building, relocation or demolition permit shall subscribe to C&D debris collection service from an authorized collection agency or an authorized roll-off collector. The city shall have the right to review the number and size of a customer's containers to evaluate adequacy of capacity provided for each type of collection service for proper separation of materials and containment of materials; and, customers shall adjust their service level for collection services as requested by the city. Customers may additionally manage their waste by preventing or reducing their generation of waste materials, and/or using a community composting site pursuant to 14 CCR Section 18984.9(c).

(b) **Exception for Back-Haul.** In addition to the requirements of Section 6-206(a), commercial customers may supplement waste collection services by back-hauling, as defined in 14 CCR Section 18982(a)(66)(A).

(1) Back-haulers shall source separate all recyclable materials and organic materials generated on-site from solid waste in a manner consistent with 14 CCR Sections 18984.1 and 18984.2.

(2) Back-haulers shall haul their segregated recyclable materials and source separated organic materials to a facility, operation, activity, or property that processes, recycles, and/or recovers those materials.

(3) Back-haulers that are commercial businesses shall keep a record of the amount of recyclable material (including organic material) delivered to each facility , operation, activity, or property that processes, recycles, or recovers those materials; this record shall be subject to inspection by the city, and shall be provided to the city upon request. The records shall include the following information:

(i) Delivery receipts and weight tickets from the entity accepting the material.

(ii) The amount of material in cubic yards or tons transported by the generator to each entity.

(iii) If the material is transported to an entity that does not have scales on-site or employs scales incapab le of weighing the back-ha uler's vehicle in a manner that allows it to determine the weight of materials recei ved, t he back-hauler is not required to record the weight of material but shall keep a record of the entities that received the material.

(c) **Other Exceptions.** In its sole discretion, the city may grant the following waivers to individual customers:

(1) De Minimis Waivers. The city may waive a commercial service location's obligation to comply with some or all of the requirements of Section 6-205(d)(2) and Sections 6-205(d)(5) through (12) of this article if the commercial service location provides documentation that the business generates below a certain amount of recyclable material (including organic material) as described in Section 6-206(c)(1)(ii) below. A commercial service location requesting a de minimis waiver shall:

(i) Submit an application specifying the services that they are requesting a waiver from and provide documentation as noted in Section 6-206(c)(1)(ii) below.

(ii) Provide documentation that either:

(a) The commercial service location's total discarded material collection service is two (2) cubic yards or more per week and recyclable materials (including organic materials) subject to collection in a blue container or green container comprises less than twenty (20) gallons per week per applicable container of the business' total waste; or,

(b) The commercial service location's total discarded material collection service is less than two (2) cubic yards per week and recyclable materials (including organic materials) subject to collection in a blue container or green container comprises less than ten (10) gallons per week per applicable container of the business' total waste.

(iii) Notify the city if circumstances change such that the commercial service location's recyclable materials (including organic materials) exceeds the threshold required for the waiver, in which case the waiver will be rescinded.

(iv) Provide written verification of eligibility for de minimis waiver every 5 years if the city has approved de minimis waiver.

(2) Physical Space Waivers. The city may waive a commercial service location's obligations to comply with some or all of the requirements of Section 6-205(d)(2) and Sections 6-205(d)(5) through (12) of this article if the city has evidence from its own staff, an authorized cart/bin collection agency, licensed architect, or licensed engineer demonstrating that the premises lacks adequate space for the collection containers required for compliance with Section 6-205(d)(2) and Sections 6-205(d)(5) through (12) of this article. A commercial service location requesting a physical space waiver shall:

(i) Submit an application form specifying the type(s) of collection services for which they are requesting a compliance waiver.

(ii) Provide documentation that the premises lacks adequate space for blue containers and/or green containers including documentation from its authorized cart/bin collection agency, licensed architect, or licensed engineer.

(iii) Provide written verification to the city that it is still eligible for a physical space waiver every five (5) years if the city has approved a prior application for a physical space waiver.

(3) Collection Frequency Waivers. The city, at its discretion and in accordance with 14 CCR Section 18984.11(a)(3), may allow residential service location or commercial service location to arrange for the collection of their blue container, gray container, or both once every fourteen days, rather than once per week.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 5, eff. 4-16-22).

SEC. 6-207. SERVICE CHARGES.

(a) The Council shall designate in the Master Fee Resolution, and from time to time may modify, the charges to be paid for solid waste, recycling and organic material services rendered by the city, and may promulgate rules and regulations related thereto.

(b) The city may enter into contracts with public agencies and/or other authorized cart/bin collection agencies for the collection of materials at rates which vary from those established pursuant to subsection (a) of this section, but which are not less than the total actual cost of providing the service.

(c) The city may enter into contracts with authorized roll-off collectors for the collection of materials in roll-off containers and the rates for such roll-off collection services shall be determined by each authorized roll-off collector and its customers.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-208. RULES AND REGULATIONS.

The Director may make rules and regulations which are not inconsistent with the provisions of this article and which may be necessary or desirable to aid in the administra-

tion or enforcement of the provisions of this article, including all necessary policies and procedures for the issuance of franchises, administration of this article, collection of fees and bonds and/or indemnities, or proof(s) of insurance.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-209. COLLECTION FRANCHISE AND PROCESSING FACILITY REQUIREMENTS.

(a) **Oversight Authority.** In order to ensure that the public is provided materials collection service and uniformly protected against safety and health hazards, the Director shall invoke all applicable provisions of this article.

(b) **Collection Franchise Required.** Except as provided by this section, no person shall privately collect materials of another without first having obtained a franchise to engage in such activity from the City.

(1) Exclusive franchises may be granted by the City for collection of materials from residential and/or commercial customers using carts and bins. Any person holding an exclusive residential and/or commercial franchise agreement is considered an authorized cart/bin collection agent.

(2) Non-exclusive roll-off collection franchises may be granted by the City as described in Section 6-222 for collection of materials in roll-off containers with the exception that those materials defined in Section 6-222(a) shall be excluded from the scope of such franchises. Any person holding a non-exclusive roll-off collection franchise is considered an authorized roll-off collector.

(c) **Exceptions.** Without limitation the requirements of this section shall not apply to the following:

(1) Private collection by any person or company that transports waste and/or recyclables through use of its own transportation, such as a truck and/or trailer without compensation for such transportation; or

(2) Private removal of green waste materials resulting from landscaping or gardening service performed by the person collecting such materials.

(d) **Requirements for Exclusive and Non-Exclusive Franchisees.**

(1) Waste haulers providing residentiaL commercial, or roll-off material collection services to customers within the city's boundaries shall meet the followi ng requirements and standards as a condition of approval of a franchise with the city:

(i) Through written notice to the city , annually identify the facilities to which they will trans materials, including facilities for segregated recyclable materials, and source separated organic materials.

(ii) Transport segregated recyclable materials, and source separated organic materials to a facility, operation, activity, or property that recovers recyclable materials (including "organic waste" as defined in 14 CCR, Division 7, Chapter 12, Article 2).

(2) Authorized cart/bin collection agents and authorized roll-off collectors shall comply with education, equipment, signage, container labeling, container color, contamination monitoring, reporting, and other requirements contained within their exclusive or non-exclusive franchise agreement(s) entered into with the city.

(e) **Requirements for Facility Operators and Community Composting Operations.**

(1) Owners of facilities, operations, and activities that recover recyclable materials (including organic materials), including, but not limited to, compost facilities, in-vessel digestion facilities, and publicly-owned treatment works shall, upon city request, provide information regarding available and potential new or expanded capacity at their facilities, operations, and activities, including information about throughput and permitted capacity necessary for planning purposes. Entities contacted by the city shall respond within sixty (60) days.

(2) Community composting operators, upon city request, shall provide information to the city to support organic materials capacity planning, including, but not limited to, an estimate of the amount of organic materials anticipated to be handled at the community composting operation. Entities contacted by the city shall respond within sixty (60) days.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 6, eff. 4-16-22).

SEC. 6-210. UNAUTHORIZED DISPOSAL OF MATERIAL PROHIBITED.

(a) No person shall throw or deposit, or cause to be thrown or deposited, any material in or upon any vacant lot, street, alley, gutter, highway, park or other public place or keep any material, except in the manner prescribed by this article.

(b) No person shall deposit material in the container of another customer, or set out material for collection at another customer's service location, except that this provision shall not apply to material deposited or set out for collection by any person lawfully sharing a container; or when temporary service locations may be approved by the Director, following notice to the Director of temporary obstacles which prevent the use of or access to permanent service locations.

(c) No customer shall permit or consent to another person depositing material in the customer's container or setting out material for collection at the customer's service location except that this provision shall not apply to material deposited or set out for collection by any person lawfully sharing a container or when temporary service locations may be approved by the Director following notice to the Director of temporary obstacles which prevent the use of or access to permanent service locations.

(d) No person shall burn garbage or material not intended for burning in a fireplace or wood burning heater; all burning shall be consistent with this article and legal/regulatory requirements including any/all permits issued thereunder.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-211. FINANCIAL PROCEDURES.

All billing for and collection of charges, fees and penalties under this article shall be handled as provided in this article and in Article 11 of Chapter 2 of this Code.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-212. BURYING MATERIAL PROHIBITED.

Except as may be expressly authorized by law including this article, no person shall bury or cause to be buried any material, table scraps, food scraps, food containers or wrappers, or animal's bodies/parts.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 7, eff. 4-16-22).

SEC. 6-213. OWNERSHIP OF MATERIALS.

All material placed at curbside or other designated collection location, in a container owned by the city, an authorized cart/bin collection agent, or authorized roll-off collector shall be and become the property of the city, authorized cart/bin collection agent, or authorized roll-off container, whichever owns the container.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-214. UNAUTHORIZED REMOVAL OF MATERIAL UNLAWFUL.

No person, other than the city, an authorized cart/bin collection agent or authorized roll-off collector, shall remove material once it has been placed at curbside or other designated collection location in a designated collection container. Each such removal of material from a separated designated collection location or collection container is a separate and distinct violation punishable as provided in this Code.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-215. INSPECTIONS AND ENFORCEMENT AUTHORITY.

(a) The Director and designees shall have the authority to enforce the provisions of this article and, when vested with criminal citation authority, to arrest any person without a warrant for a violation of this article when committed in his/her presence, and to issue a notice to appear pursuant to Penal Code Section 836.5. This authority shall be in addition to the authority granted to police officers under this Code.

(b) City representatives and/or its designees are authorized to conduct inspections and investigations, at random or otherwise, of any collection container, collection vehicle loads, or transfer, processing, or disposal facility for materials collected from customers, or source separated materials to confirm compliance with this article by customers, property owners,

Commercial Edible Food Generators, haulers, Food Recovery Services, and Food Recovery Organizations, subject to applicable laws. This Section does not allow the city to enter the interior of a private residential property for inspection.

(c) Customers shall provide or arrange for access during all inspections (with the exception of residential property interiors) and shall cooperate with the city's employee or its designee during such inspections and investigations. Such inspections and investigations may include confirmation of proper placement of materials in containers, Edible Food Recovery activities, records, or any other requirement of this article described herein. Failure to provide or arrange for: (i) access to a customer's premises: or (ii) access to records for any inspection or investigation is a violation of this article and may result in penalties described.

(d) The City shall receive written complaints from persons regarding an entity or customer that may be potentially non-compliant with SB 1383 Regulations, including receipt of anonymous complaints.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 9, eff. 4-16-22).

Editor's note—Am. Ord. 2022-003, § 9, effective April 16, 2022, amended the Code by renumbering former § 6-216 as a new § 6-215.

SEC. 6-216. PENALTIES.

(a) Violation of any provision of this article shall constitute grounds for issuance of a notice of violation and assessment of a fine by a city enforcement official or designee. Enforcement actions under this ordinance are issuance of an administrative citation and assessment of a fine. The city's procedures on imposition of administrative fines are hereby incorporated in their entirety, as modified from time to time, and shall govern the imposition, enforcement, collection, and review of administrative citations issued to enforce this ordinance and any rule or regulation adopted pursuant to this ordinance, except as otherwise indicated in this ordinance.

(b) **Responsible Entity for Enforcement.**

(1) Enforcement pursuant to this article may be undertaken by the city enforcement official, which may be the city manager or their designated entity, legal counsel, or combination thereof.

(2) Enforcement may also be undertaken by a regional or county enforcement official, designated by the city.

(i) City enforcement official(s) will interpret this article; determine the applicability of waivers, if violation(s) have occurred; implement enforcement actions; and, determine if compliance standards are met.

(ii) City enforcement official(s) may issue notices of violation(s).

(c) **Process for Enforcement.**

(1) City enforcement officials or their designee will monitor compliance with the ordinance randomly and through compliance reviews, route reviews, investigation of complaints, and an inspection program. Section 6-215 establishes city's right to conduct inspections and investigations.

(2) City may issue an official notification to notify regulated entities of its obligations under the ordinance.

(3) For incidences of Prohibited Container Contaminants found in containers, city will issue a notice of violation to any customer found to have prohibited container contaminants in a container. Such notice will be provided via a cart tag or other communication immediately upon identification of the prohibited container contaminants or within two (2) days after determining that a violation has occurred. If the city observes prohibited container contaminants in a customer's containers on more than three (3) consecutive occasion(s), the city may assess contamination processing fees or contamination penalties on the customer.

(4) With the exception of violations of customer contamination of container contents addressed under Section 6-216(e)(3), city shall issue a notice of violation requiring compliance within sixty (60) days of issuance of the notice.

(5) Absent compliance by the respondent within the deadline set forth in the notice of violation, city shall commence an action to impose penalties, via an administrative citation and fine, pursuant to the city's Master Fee Resolution.

(6) Notices of violation shall be sent to the responsible party for any service location.

(d) **Penalty Amounts for Types of Violations.** The penalty levels are as follows:

(1) For a first violation, the amount of the base penalty shall be $50 to $100 per violation.

(2) For a second violation, the amount of the base penalty shall be $100 to $200 per violation.

(3) For a third or subsequent violation, the amount of the base penalty shall be $250 to $500 per violation.

(e) **Factors Considered in Determining Penalty Amount.** The following factors shall be used to determine the amount of the penalty for each violation within the appropriate penalty amount range:

(1) The nature, circumstances, and severity of the violation(s).

(2) The violator's ability to pay.

(3) The willfulness of the violator's misconduct.

(4) Whether the violator took measures to avoid or mitigate violations of this article.

(5) Evidence of any economic benefit resulting from the violation(s).

(6) The deterrent effect of the penalty on the violator.

(7) Whether the violation(s) were due to conditions outside the control of the violator.

(f) **Compliance Deadline Extension Considerations.** The city may extend the compliance deadlines set forth in a notice of violation issued in accordance with Section 6-216 if it finds that there are extenuating circumstances beyond the control of the respondent that make compliance within the deadlines impracticable, including the following:

(1) Acts of God such as earthquakes, wildfires, flooding, and other emergencies or natural disasters;

(2) Delays in obtaining discretionarv permits or other government agency approvals: or,

(3) Deficiencies in recyclable materials (include organic materials) processing or recycling infrastructure or edible food recovery capacity and the city is under a corrective action plan with CalRecycle pursuant to 14 CCR Section 18996.2 due to those deficiencies.

(g) **Education Period for Non-Compliance.** Beginning January 1, 2022 and through December 31, 2023, the city, or its designee, will conduct inspections, route reviews or waste evaluations, and compliance reviews, depending upon the type of regulated entity, to determine compliance, and if city determines that customer, hauler, commercial edible food generator, food recovery organization, food recovery service, or other entity is not in compliance, it shall provide educational materials to the entity describing its obligations under this ordinance and a notice that compliance is required by January 1, 2022, and that violations may be subject to administrative civil penalties starting on January 1, 2024.

(h) **Civil Penalties for Non-Compliance.** Beginning January 1, 2024, if the city determines that customer, hauler, commercial edible food generator, food recovery organization, food recovery service, or other entity is not in compliance with this ordinance, it shall document the noncompliance or violation, issue a notice of violation, and take enforcement action pursuant to Section 6-216, as needed.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11; Am. Ord. 2022-003, § 8, eff. 4-16-22).

Editor's note—Am. Ord. 2022-003, § 8, effective April 16, 2022, amended the Code by renumbering former § 6-215 as a new § 6-216.

SEC. 6-217. OTHER REMEDIES NOT PRECLUDED.

Any remedy provided under this article is cumulative to any other remedy provided in equity or at law. Nothing in this article shall be deemed to limit the right of the city or its authorized cart/bin collection agent(s) to bring a civil action; nor shall a conviction for such violation exempt any person from a civil action brought by the city or its authorized cart/bin collection agent(s). The fees and penalties imposed under this article shall constitute a civil debt and liability owing to the city from the persons, firms or corporations using or chargeable for such services and shall be collectible in the manner provided by law.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-218. OTHER MEANS OF DISPOSAL OR RECYCLING OF SEGREGATED RECYCLABLE MATERIALS.

Nothing in this chapter shall be deemed to limit the right of the individual person to donate and/or sell and/or otherwise lawfully dispose of or recycle his/her recyclable materials.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-219. NON-LIABILITY OF CITY.

Nothing in this article shall be deemed to impose any liability upon the city or upon any of its officers or employees including without limitation under the Comprehensive Environmental Response. Compensation and Liability Act of 1980 (CERCLA).
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-220. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-221. APPEALS.

Unless otherwise expressly provided by this Code, any person adversely and directly affected by any determination made or action taken by the Director pursuant to the provisions of this article may file an administrative appeal pursuant to chapter 1, article 4 of this Code. If no appeal is filed within the time prescribed, the determination or action of the Director shall be final.
(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-222. NON-EXCLUSIVE ROLL-OFF COLLECTION FRANCHISE.

(a) **Requirement.** Effective September 1, 2011, no person shall provide roll-off collection services to residents and businesses of the city unless authorized to do so pursuant to this Section 6-222. The collection of solid waste, recyclable materials, organic materials, and C&D debris with roll-off containers in the city shall be performed only by persons that first receive a franchise to engage in such activity from the city or persons otherwise allowed to transport materials pursuant to Section 6-205(f). The City shall retain the right to provide roll-off collection service for materials collected from City facilities and parks, and from special events and venues sponsored by the City, provided that such collection shall be performed by the City's municipal collection operation or City crews.

(b) **Non-Exclusive Rights.** Roll-off container collection services in the city are considered non-exclusive, as such service may be provided by any person granted a non-exclusive roll-off collection franchise with the city or other enterprise that is eligible to provide roll-off collection services under this Chapter.

(c) **Eligibility.** A nonexclusive franchise to provide roll-off container collection services for solid waste, recyclable materials, organic materials, and C&D debris within the city may be granted by the Council to any person who offers to furnish and provide such roll-off collection service pursuant to the terms and provisions of this article. No provision of this article may be deemed or construed to require the granting of a franchise when in the opinion of the Council it is in the public interest to restrict the number of franchisees or operate such service as a municipal service.

(d) **Application for Non-Exclusive Franchise.** All applications to provide roll-off container collection service in this city shall be filed with the City Clerk, and each such application shall set forth, contain, or be accompanied by information specified in the application instructions provided by the Director, which shall include, at a minimum, the following:

(1) **Applicant Information.** Provide a cover letter that includes, at a minimum, the following applicant information. The cover letter shall be signed by an officer or agent of the company submitting the application, who is duly authorized to bind the company to the application.

(i) Company name

(ii) Form of business organization (sole proprietorship, partnerships (includes limited, general, and limited liability partnerships), corporation (includes limited liability companies), etc.)

(iii) Contact name, title, phone, fax, and e-mail address

(iv) Business mailing address

(v) Names of Persons Doing Business under Fictitious Name (if applicable)

(vi) Names of Members of Partnership, Ventures, and LLCs (if applicable)

(vii) Names of Officers of Corporation or Association (if applicable)

(viii) Date the applicant desires the non-exclusive roll-off collection franchise to become effective

(2) **Qualifications Information.**

(i) Description of Applicant. A detailed statement of the corporate or other business entity organization of the applicant.

(ii) Municipal References

(iii) Customer References

(iv) Proof of Insurance

(v) History of Litigation, Regulatory Actions, and Liquidated Damages

(vi) Criminal History

(3) **Operations Information.**

(i) Diversion Plan - A plan describing how applicant will divert at least 50% of the C&D collected and/or 90% of all commercial recyclable materials collected, as applicable.

(ii) Estimated Number of Vehicles

(iii) Estimated Number of Roll-Off Containers.

(iv) Permitted Materials to be Collected - Description the types of permitted materials (e.g., solid waste, recyclable materials, organic materials and/or C&D) to be collected and services to be performed pursuant to grant of a non-exclusive roll-off collection franchise agreement.

(v) Processing and Disposal Facilities

(vi) Hazardous Waste Procedures

(vii) Location and Hours of Customer Service Center

(viii) Billing Procedures.

(4) **Signed Non-Exclusive Franchise Agreement.** Attach to the application two executed copies of the form of non-exclusive franchise agreement approved by the Director pursuant to paragraph (h) of this Section 6-222.

(5) **Application Fee.** An application fee, the amount of which shall be provided in the Master Fee Schedule which shall be in the form of cash, certified or cashier's check, or money order, to pay the costs of studying, investigating, and otherwise processing such application, and which shall be in consideration thereof and not returnable or refundable in whole or in part; provided, that any applicant who shall deliver to the City Clerk a written withdrawal of or cancellation of any application hereunder, not later than the seventh day following the day such application is received by the City Clerk, shall be entitled to have returned and refunded ninety percent (90%) of the application fee.

(6) **Other Information as Requested by Director.** Include any other details, statements, information or references pertinent to the subject matter of such application which shall be required or requested by the Director.

(e) **Application Submittal.** Director shall accept applications from collectors annually from March 1 through April 30.

(f) **Application Review by City.** Director shall evaluate any and all applications for non-exclusive roll-off collection franchises and provide a written recommendation to the City Manager as to the qualifications and capabilities of the applicant.

(g) **Waive Irregularities.** The City Council may, in its discretion, waive any minor irregularities contained in an application.

(h) **Franchise Procedure.** The procedures set forth in Article XIII of the Charter of the city and this article shall govern the procedure for granting or denying the non-exclusive roll-off collection franchises. The Council may adopt by resolution such additional procedures not inconsistent with the Charter or this article.

(i) **Non-Exclusive Franchise Agreements, Required Terms.** The Director shall cause to be prepared a standard form of non-exclusive roll-off collection franchise agreement. City Council shall approve each non-exclusive franchise agreement to be executed by the City. Each such franchise agreement shall include the following terms, which are the basic terms on which the city is willing to enter into a non-exclusive roll-off collection franchise agreement under this Chapter:

(1) **Grant and Acceptance of Franchise.** Each franchise agreement shall contain provisions that set forth the offer a non-exclusive franchise for roll-off container collection services for solid waste, recyclable materials, organic materials, and C&D debris, and the acceptance thereof by the grantee.

(2) **Term.** The duration of each franchise agreement shall be stated and shall not to exceed an initial term of five years.

(3) **Scope of Agreement.** Each franchise agreement shall identify the scope of the services to be provided by the grantee, including the materials covered by such roll-off services (i.e., solid waste, recyclable materials, organic materials, and C&D debris), the processing and disposal locations to be used by grantee, and other similar matters relating to the collection, transportation, recycling, processing, and disposal services to be provided by the grantee.

(4) **Public Education.** At a minimum, each franchise agreement shall provide for the grantee to prepare and distributed information to its customers describing how to prepare material covered by the franchise for collection, materials that are excluded from collection, and related matters.

(5) **Performance Standards.** Each franchise agreement shall specify the hours of collection, the manner in which roll-off containers will be serviced, grantee responsibility for vehicle appearance, leaks, and related matters, and hazardous waste inspection and handling.

(6) **Record Keeping and Reporting.** Each franchise agreement shall require the grantee to maintain accurate accounting, statistical, and other records relating to services provided under the franchise, report submittal requirements, and related matters.

(7) **Franchise Fees and Administrative Charges.** Each franchise agreement shall state the amount of the franchise fee and other charges to be paid by the grantee as consideration for the contractual right to provide the services covered by the franchise agreement in the city.

(8) **Indemnity and Insurance Requirements.** Each franchise agreement shall contain appropriate indemnity and defense provisions, and insurance requirements.

(9) **Default.** Each franchise agreement shall identify the events that constitute a default thereunder, as well as the remedies available to the non-defaulting party.

(Added Ord. No. 2011-25, § 2, eff. 9-1-11).

SEC. 6-223. SPECIAL REQUIREMENTS FOR COMMERCIAL EDIBLE FOOD GENERATORS.

(a) Tier one commercial edible food generators must comply with the requirements of this Section 6-223 commencing January 1, 2022, and tier two commercial edible food generators must comply commencing January 1, 2024, pursuant to 14 CCR Section 18991.3.

(b) Large venue or large event operators not providing food services, but allowing for food to be provided by others, shall require food facilities operating at the large venue or large event to comply with the requirements of this Section, commencing January 1, 2024.

(c) Commercial edible food generators shall comply with the following requirements:

(1) Arrange to recover the maximum amount of edible food that would otherwise be disposed.

(2) Contract with or enter into a written agreement with food recovery organizations or food recovery services for: (i) the collection of edible food for food recovery; or, (ii) acceptance of the edible food that the commercial edible food generator self-hauls to the food recovery organization for food recovery.

(3) Shall not intentionally spoil edible food that is capable of being recovered by a food recovery organization or a food recovery service.

(4) Allow the city or its designee to access the premises and review records pursuant to 14 CCR Section 18991.4.

(5) Keep records that include the following information, or as otherwise specified in 14 CCR Section 18991.4:

(i) A list of each food recovery service or organization that collects or receives its edible food pursuant to a contract or written agreement established under 4 CCR Section 18991.3(b).

(ii) A copy of all contracts or written agreements established under 14 CCR Section 18991.3(b).

(iii) A record of the following information for each of those food recovery services or food recovery organizations:

(a) The name, address and contact information of the food recovery service or food recovery organization.

(b) The types of food that will be collected by or self-hauled to the food recovery service or food recovery organization.

(c) The established frequency that food will be collected or self-hauled.

(d) The quantity of food, measured in pounds recovered per month, collected or self-hauled to a food recovery service or food recovery organization for food recovery.

(d) Nothing in this ordinance shall be construed to limit or conflict with the protections provided by the California Good Samaritan Food Donation Act of 2017, the Federal Good Samaritan Act, or share table and school food donation guidance pursuant to Senate Bill 557 of 2017.
(Added Ord. 2022-003, § 10, eff. 4-16-22; Am. Ord. 2022-011, § 1, eff. 7-1-22).

SEC. 6-224. SPECIAL REQUIREMENTS FOR FOOD RECOVERY ORGANIZATIONS AND SERVICES.

(a) Food recovery services collecting or receiving edible food directly from commercial edible food generators. via a contract or written agreement established under 14 CCR Section 18991.3(b), shall maintain the following records, or as otherwise specified by 14 CCR Section 18991.5(a)(1):

(1) The name, address, and contact information for each commercial edible food generator from which the service collects edible food.

(2) The quantity in pounds of edible food collected from each commercial edible food generator per month.

(3) The quantity in pounds of edible food transported to each food recovery organization per month.

(4) The name, address, and contact information for each food recovery organization that the food recovery service transports edible food to for food recovery.

(b) Food recovery organizations collecting or receiving edible food directly from commercial edible food generators, via a contract or written agreement established under 14 CCR Section 18991.3(b), shall maintain the following records, or as otherwise specified by 14 CCR Section 18991.5(a)(2):

(1) The name, address. and contact information for each commercial edible food generator from which the organization receives edible food.

(2) The quantity in pounds of edible food received from each commercial edible food generator per month.

(3) The name, address, and contact information for each food recovery service that the organization receives edible food from for food recovery.

(c) Food recovery organizations and food recovery services that have their primary address physically located in the city and conlract with or have written agreements with one or more commercial edible food generators pursuant to 14 CCR Section 18991.3(b) shall report to the city the total pounds of edible food recovered in the previous calendar year from the tier one and tier two commercial edible food generators they have established a contract or written agreement with pursuant to 14 CCR Section 18991.3(b).

(d) In order to support edible food recovery capacity planning assessments or other studies conducted by the county, or city or their designees, food recovery services and food recovery organizations operating in the city shall provide information and consultation to the city, upon request, regarding existing, or proposed new or expanded, food recovery capacity that could be accessed by the city and its commercial edible food generators. A food recovery service or food recovery organization contacted by the city shall respond to such request for information within sixty (60) days unless a shorter timeframe is otherwise specified by the city.
(Am. Ord. 2022-003, § 11, eff. 4-16-22).

SEC. 6-225. COMPLIANCE WITH CALGREEN RECYCLING REQUIREMENTS.

(a) Persons applying for a permit from the city for new construction and building additions and alterations shall comply with the requirements of this Section and all required components of the California Green Building Standards Code, 24 CCR, Part 11, known as CALGreen, as amended, if its project is covered by the scope of CALGreen or more stringent requirements of the city. If the requirements of CALGreen are more stringent then the requirements of this Section, the CALGreen requirements shall apply.

Project applicants shall refer to the city's building and/or planning code for complete building requirements.

(b) For projects covered by CALGreen or more stringent requirements of the city, the applicants must, as a condition of the city's permit approval, comply with the following:

(1) Where five (5) or more multi-family dwelling units are constructed on a building site, provide readily accessible areas that serve occupants of all buildings on the site and are identified for the storage and collection of blue container and green container materials, consistent with the collection program offered by the appropriate authorized cart/bin collection agency, or comply with provision of adequate space for recycling for multi-family and commercial premises pursuant to Sections 4.408.1, 4.410.2, 5.408.1, and 5.410.1 of the California Green Building Standards Code, 24 CCR, Part 11 as amended provided amended requirements are more stringent than the CALGreen requirements for adequate recycling space effective January 1, 2020.

(2) New commercial construction or additions resulting in more than thirty percent (30%) of the floor area shall provide readily accessible areas identified for the storage and collection of blue container and green container materials, consistent with collection program offered by the appropriate authorized cart/bin collection agency, or shall comply with provision of adequate space for recycling for multi-family and commercial premises pursuant to Sections 4.408.1, 4.410.2, 5.408.1, and 5.410.1 of the California Green Building Standards Code, 24 CCR, Part 11 as amended provided amended requirements are more stringent than the CALGreen requirements for adequate recycling space effective January 1, 2020.

(3) Comply with CALGreen requirements and applicable law related to management of C&D, including diversion of recyclable materials (including organic materials) in

C&D from disposal. Comply with the provisions of this article, and all written and published city policies and/or administrative guidelines regarding the collection, recycling, diversion, tracking, and/or reporting of C&D.

(Am. Ord. 2022-003, § 12, eff. 4-16-22).

ARTICLE 3 SEWAGE AND WATER DISPOSAL

Sec. 6-301. General Provisions; Purpose and Policy.
Sec. 6-302. Definitions.
Sec. 6-303. Sewer Connection Required.
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Sec. 6-318. Hauled Wastewater.
Sec. 6-319. Problem Discharges.
Sec. 6-320. Emergency Slug Control and Response Plan.
Sec. 6-321. Confidential Information.
Sec. 6-321.1. Fats, Oils, & Grease (FOG) Control Program.
Sec. 6-322. Rights of Inspection and Sampling.
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Sec. 6-324. Emergency Suspensions.
Sec. 6-325. Termination of Discharge.
Sec. 6-326. Publication of Users in Significant Noncompliance.
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Sec. 6-328. State Requirements and Limitations.
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Sec. 6-330. Dilution.
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Sec. 6-334. Sewer Connections; Premises Outside City.
Sec. 6-335. Wastewater Discharge Permits.
Sec. 6-336. Reporting Requirements for Industrial Users.
Sec. 6-337. Sewer Service Funds.
Sec. 6-338. Rules and Regulations.
Sec. 6-339. Special Districts.
Sec. 6-340. Priority of Bond Resolution.
Sec. 6-341. Severability.

SEC. 6-301. GENERAL PROVISIONS; PURPOSE AND POLICY.

(a) This article sets forth uniform requirements for direct and indirect contributions into the City of Fresno POTW, and enables the city to comply with all applicable State and federal laws required by the Clean Water Act of 1977, the General Pretreatment Regulations (40

C.F.R., Part 403) and the Construction Grants Regulations (40 C.F.R., Part 35), as they are now constituted, or as they may hereafter be amended or recodified. The objectives of this article are:

(1) To prevent the introduction of pollutants into the POTW, which would interfere with the operation of the system or contaminate the resulting sludge;

(2) To prevent the introduction of pollutants into the POTW, which would pass through the system inadequately treated or be incompatible with the system;

(3) To improve the opportunity to recycle and reclaim wastewater and sludge from the system; and

(4) To provide for equitable distribution of the cost of the POTW.

(b) This article provides for the regulation of direct and indirect contributors to the POTW through the issuance of permits to certain non- domestic users and through enforcement of general requirements for the other users, authorizes monitoring and enforcement activities, requires user reporting, provides for the setting of fees for the equitable distribution of costs resulting from the program established herein, and assumes that sewer capacity will remain with the parcel at which the customer has operated while paying for the sewer capacity, unless the customer is authorized to transfer sewer capacity to a receiving property as set forth in subsection (c) below.

(c) The City Manager or designee may, by entering into a sewer capacity transfer agreement with the customer, approve transfer of sewer capacity from a donating property to a receiving property, provided:

(1) the receiving property is located within the City of Fresno;

(2) absent such approval, the receiving property lacks or has insufficient sewer capacity to accommodate the relocated customer's needs; and

(3) an agreed-upon capacity is left at the donating property.

(d) Customers utilizing greater sewer capacity than is allocated to a property shall incur charges as set forth in the Master Fee Resolution.

(e) This article shall apply to the City of Fresno and to persons outside the city who are, by contract, permit, or agreement with the city, users of the city's POTW.
(Am. Ord. 83-41, § 1, eff. 7-1-83; Am. Ord. 98-97, §§ 1, 2, 1-9-99; Am. Ord. 2016-42, §§ 1, 2, eff. 11-26-16)

SEC. 6-302. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 3 of Chapter 1 of this Code shall also govern the construction, meaning,

and application of words and phrases used in this article, unless the particular provision or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derived from it, or from which it is a derivative, as the case may be.

(a) (1) The following Abbreviations shall have the designated meanings:

CWA	Clean Water Act as Amended (33 U.S.C. §§ 1251 et seq.)
C.F.R. or CFR	Code of Federal Regulations
EPA	Environmental Protection Agency
L	Liter
mg	Milligrams
mg/L	Milligrams per liter
POTW	Publicly Owned Treatment Works
SIC	Standard Industrial Classification
SWDA	Solid Waste Disposal Act (42 U.S.C. §§ 6901 et seq.)
U.S.C. or USC	United States Code

(2) "Act" or "the Act" means the Federal Water Pollution Control Act, also known as the Clean Water Act of 1977, as amended (33 U.S.C. §§ 1251 et seq.).

(3) "Approval Authority" means the California Regional Water Quality Control Board, Central Valley Region.

(4) "Authorized Representative of Industrial User" means:

(i) A responsible corporate officer, if the industrial user is a corporation. A responsible corporate officer means:

1. a president, secretary, treasurer, or vice president of the corporation in charge of a principal business function or any other person who performs similar policy-making or decision-making functions for the corporation; or,

2. the manager of one or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(ii) a general partner or proprietor, if the industrial user is a partnership or sole proprietorship, respectively;

(iii) a duly authorized representative of the individual designated in Subsection (a)(4)(i) or (a)(4)(ii), provided:

1. the authorization is made in writing by the individual designated in Subsection (a)(4)(i). or (a)(4)(ii);
2. the authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the indirect discharge originates, or having overall responsibility for environmental matters for the company; and
3. the written authorization is submitted to the Control Authority.

(iv) If an authorization under Subsection (a)(4)(iii) is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of Subsection (a)(4)(iii) must be submitted to the Control Authority prior to or together with any reports to be signed by an authorized representative.

(b) (1) "Best Management Practices" or "BMPs" means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the general prohibitions, specific prohibitions, and local limits listed in this Code. BMPs also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

(2) "Biochemical Oxygen Demand" or "BOD" means the quantity of oxygen utilized in the biochemical oxidation of organic matter under Standard Laboratory Procedure in five days at twenty degrees Centigrade, expressed in milligrams per liter (mg/L).

(3) "Biosolids" or "sludge" means a primarily organic solid product produced by wastewater treatment processes that can be beneficially recycled.

(4) "Building" means any structure used or intended for supporting or sheltering any use or occupancy as determined by the Director.

(5) "Business" means all commercial uses, including but not limited to offices, merchandising and industrial uses, and residential uses on premises where there are four or more living units or where unrelated persons are housed in the same structure, such as boarding or, fraternity houses, assisted care facilities, motels or hotels, or as determined by the Director.

(c) (1) "Capital Component" refers to a component of the user charge used to recover the cost to construct treatment facilities, pump, or lift stations, and trunk sewer mains. In all cases, 100 percent of the capital component is due from each connection served by the regional wastewater system regardless of primary service provider. The City of Clovis is excepted.

(2) "Categorical Pretreatment Standard" or "Categorical Standard" means any regulation containing pollutant discharge limits promulgated by EPA in

accordance with Sections 307(b) and (c) of the Act (33 U.S.C. § 1317) which apply to a specific category of users and which appear in 40 C.F.R. Chapter I, Subchapter N, Parts 401—471.

(3) "City" means the City of Fresno.

(4) "City Effluent Limitations" means the technically-based limits, expressed either as concentration or as mass, of those pollutants found in Section 6-327 of this article.

(5) "City Sewer System" means all facilities for collecting and transporting domestic or industrial wastes of any nature, including all such facilities both inside and outside the city limits which are owned, operated and controlled by the city.

(6) "Commercial User" means all retail stores, restaurants, office buildings, laundries, and other private business and service establishments, including churches and lodges. These users are distinguished from industrial users for billing purposes only.

(7) "Completion" means acceptance, in writing, by the Director for maintenance of an addition to the city sewer system.

(8) "Compliance Schedule" means a detailed time schedule of specific actions which a user is required to take in order to prevent or correct a violation of any prohibitions or limitations prescribed herein or any of the city's effluent limitations or pretreatment standards promulgated in accordance herewith.

(9) "Connected" means a physical joinder of any plumbing or drainage system or fixture contained in any structure to the regional sewer system.

(10) "Control Authority" means the City of Fresno Department of Public Utilities and Wastewater Management Division and its representatives or designees.

(11) "Cooling Water" means the water discharged from any use such as air conditioning, cooling or refrigeration, or to which the only pollutant added is heat.

(12) "Customer" means a person who is, or who has agreed to be, responsible for the payment of water or sewer service charges. "Customer" is also synonymous with "account," against which charges are assessed and billed.

(d) (1) "Director," unless otherwise specified, means the Director of the Department of Public Utilities and/or his/her authorized representative.

(2) "Dwelling Unit" means the same as living unit.

(e) (1) "Enforcement Response Plan" or "ERP" means the mechanism for addressing applicable local, State, or federal violations. The ERP includes a written description of each type of enforcement, when to administer it, and how the

monitoring schedule is affected. In conjunction with the written description, there may be an Enforcement Response Plan flow chart which maps out the path through the various levels of enforcement.

(2) "Environmental Protection Agency" or "EPA" means the United States Environmental Protection Agency. Where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of said agency.

(3) "Extra Depth Sewer'" means an oversize sewer main which is constructed at a depth greater than eight feet. Eight feet shall mean the average of depths, measured at adjacent manholes, from the natural grade or street subgrade, whichever is less, to the sewer flow line.

(f) (1) "FOG" shall mean fats, oils and grease.

(2) "FOG Control Program" or "FOG Ordinance" means the section of this Code under the City of Fresno's Pretreatment Program to reduce Sanitary Sewer Overflows and blockages of the sanitary sewer system caused by fats, oils and grease. The FOG Ordinance is in Section 6-321.1 of this Code, listing definitions, specific discharge prohibitions and Best Management Practices for the handling of FOG.

(g) (1) "Grab Sample" means a sample which is taken from a waste stream on a one-time basis, with no regard to the flow in the waste stream, and without consideration of time.

(h) (1) "Holding Tank Waste" means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum-pump tank trucks.

(2) "House Branch Sewer Charge" means a fee charged against property for the right to connect to a house branch sewer line, when the property has not participated in the cost of constructing said house branch.

(i) (1) "Improvement" means that which is built or constructed, an edifice of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner. For the purpose of this article, this definition shall not include "building" as defined above and temporary on-site storm basins, but shall include the playing area of any non-enclosed sport facility or restricted sport field.

(2) "Indirect Discharge" or "Discharge" means the discharge or the introduction of pollutants into a POTW from any nondomestic source regulated under Section 307(b), (c) or (d) of the Act (33 U.S.C. §§ 1317(b), (c), or (d)).

(3) "Industrial User" or "User" means a source of indirect discharge.

(4) "Industrial Wastes" means the liquid wastes from industrial processes as distinct from sanitary sewage.

(5) "Interference" means a discharge which, alone or in conjunction with a discharge or discharges from other sources:

(i) Inhibits or disrupts the POTW, its treatment processes or operations, or sludge processes, use or disposal; or

(ii) Is a cause of a violation of any requirement of the POTW's Waste Discharge Requirements (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent State or local regulations): Section 405 of the Clean Water Act (33 U.S.C. § 1345); the Solid Waste Disposal Act (SWDA), including Title II, more commonly referred to as the Resource Conservation and Recovery Act (RCRA), and including State regulations contained in any State sludge management plan prepared pursuant to Subtitle D of the SWDA; the Clean Air Act; the Toxic Substances Control Act, and the Marine Protection, Research and Sanctuaries Act.

(j) Reserved.

(k) Reserved.

(l) (1) "Lateral Sewer Charge" means a fee charged against property for the right to connect to the public sewer line city sewer system where the property has not participated in the cost of constructing said line sewer mains.

(2) "Living Unit" means a room or suite of rooms which is occupied by one family for living and sleeping purposes, including a single-family residence, mobile home unit, apartment, town house, flat or condominium.

(3) "Living Unit Equivalent" means the equivalence of five (5) living units to one net acre of nonresidential development to compute the availability of the regional sewer system to a premises for the purpose of required connection to the regional sewer system.

(4) "Lot" means any premises, piece or parcel of land or property as bounded, defined or shown upon the latest map, plat or deed recorded in the office of the Recorder of Fresno County, provided, however, that in the event any building or improvements appurtenant to said building cover more area than a "lot," as herein defined, the term "lot" shall be deemed to be and include all such pieces or parcels of land upon which said buildings or improvements are wholly or partly located.

(m) Reserved.

(n) (1) "Net Area," for the purpose of calculating the Lateral Sewer Charge and the Oversize Sewer Charge, shall be that area of a lot up to a maximum depth of 100 feet from adjacent dedicated right-of-way in which a regional sewer system sewer main is either constructed or planned to be constructed. Net area shall

exclude areas dedicated or condemned for public street and alley purposes. Where such main is not located in an existing dedicated right-of-way, or for lots within cul-de-sacs unified or planned developments, or other unusual lot configurations, the Director shall determine the net areas consistent with the above.

(2) "New Source" means any building, structure, facility or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated, and in accordance with that section, provided that:

(i) The building, structure, facility, or installation is constructed at a site at which no other source is located; or

(ii) The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(iii) The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(o) (1) "Off-site Sewer" means a public sewer constructed or to be constructed outside the extended boundaries of a subdivision or outside the extended edges of a lot.

(2) "Open Recreation and Sport Use" means, but is not limited to, golf courses, baseball diamonds, soccer and football fields, non-enclosed sport stadia, and any other restricted sports field. For the purpose of this article, the open recreation and sport use facilities must:

(i) Be accessible to the general public on a free or standard fee basis;

(ii) Comprise at least seventy-five percent (75%) of the net land area of the development as determined by the Director;

(iii) Be situated on a separate parcel or parcels which do not include facilities unrelated or incompatible with such use, as determined by the Director; and,

(iv) Be substantially improved and maintained with turf or surface conditions consistent with such use.

(3) "Operations and Maintenance Component" or "O&M" refers to a component of the user charge used to recover costs associated with the maintenance of the POTW.

(4) "Oversize Sewer Charge" means a fee for the right to connect to the city sewer system, said fee to be used to pay the additional cost of constructing or reconstructing city sewers larger than eight inches in diameter.

(p) (1) "Pass Through" is a discharge which exits the POTW in quantities or concentrations, which alone or in conjunction with a discharge or discharges from other sources, is a cause of violation of any requirement of the POTW's waste discharge requirements (including an increase in the magnitude or duration of a violation) or threatens, or is a potential threat, to pollute or degrade groundwater.

(2) "Person" means any individual, partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity or their legal representatives or agents. The masculine gender shall include the feminine and the singular shall include the plural where indicated by the context.

(3) "pH" means the negative logarithm (base 10) of the hydrogen ions concentration expressed in moles per liter of solution of hydrogen ions.

(4) "Pollutant" means any dredge soil, solid waste, incinerator residue, sewerage, garbage, sewage sludge, biosolids, munitions, wood products and wastes, chemicals, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, and industrial, commercial, municipal, and agricultural waste discharged into water.

(5) "Pollution" means the man-made or man-induced alteration of the chemical, physical, biological and radiological integrity of water.

(6) "Premises" means all contiguous property under one ownership, any part of which is developed to be used for occupancy, business, public gathering or meeting place purposes.

(7) "Pretreatment" and "Treatment" means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes, or process changes by other means, except as prohibited by 40 C.F.R. § 403.6(d). Appropriate pretreatment technology includes control equipment, such as equalization tanks or facilities, for protection against surges or slug loadings that might interfere with or otherwise be incompatible with the POTW. However, where wastewater from a regulated process is mixed in an equalization facility with unregulated wastewater or with wastewater from another regulated process, the effluent from the equalization facility must meet an adjusted pretreatment limit calculated in accordance with 40 C.F.R. § 403.6(e).

(8) "Pretreatment Requirement" means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard, imposed on an industrial user.

(9) "Pretreatment Standards" or "Standards" means prohibited discharge standards, categorical pretreatment standards, and local limits.

(10) "Prohibited Discharge Standards" or "Prohibited Discharges" means absolute prohibitions against the discharge of certain substances; these prohibitions appear in 40 C.F.R. § 403.5 and in Section 6-327 of this Article.

(11) "Publicly Owned Treatment Works" or "POTW" means a treatment works as defined by Section 212 of the Act (33 U.S.C. §§ 1292 (2)(A)), which is owned by the municipality (as defined by Section 502(4) of the Act). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes and other conveyances (also referred to as the city sewer system) only if they convey wastewater to a POTW treatment plant. The term also means the municipality, as defined in Section 502(4) of the Act (33 U.S.C. §§ 1362(4)), which has jurisdiction over the indirect discharges to and the discharges from such a treatment works.

(12) "POTW Treatment Plant" or "Treatment Plant" means that portion of the POTW designed to provide treatment (including recycling and reclamation) of municipal sewage and industrial waste.

(q) Reserved.

(r) (1) "Regional Sewer System" means all facilities for collecting and transporting domestic or industrial wastes of any nature, including all such facilities both inside and outside the city limits regardless of whether they are owned, operated or controlled by the city, but not including those facilities owned and operated by the City of Clovis.

(2) "Remodel" shall mean any construction or other activity to make over a building, interior or exterior, in style or structure that costs fifty thousand dollars ($50,000) or more in total costs.

(s) (1) "Sanitary Sewer Overflow" or "SSO" means an overflow from the sanitary sewer system of domestic wastewater, as well as industrial and commercial wastewater.

(2) "Sewer Connection Charges" means and includes the "oversize sewer charge," "lateral sewer charge," "house branch sewer charge," which may be applicable to any lot, "wastewater facilities charge," which may be applicable to any residential lot, and "trunk sewer charge," which is applicable to any residential lot within a designated trunk sewer service area.

(3) "Sewer Facility Charges" means a user charge that includes the "wastewater facilities charge," which may be applicable to any business, and the "trunk sewer charge," which may be applicable to any business within a designated trunk sewer service area.

(4) "Sewer Flow" means the average daily flow introduced into the regional sewer system from a business during a billing period.

(5) "Sewer Loading" means the amount of total suspended solids and biochemical oxygen demand in a wastewater sample.

(6) "Sewer Service Charges" means a user charge which is comprised of a capital component, and an operational and maintenance component and, a pretreatment surcharge as designated in the Master Fee Schedule.

(7) "Shall" is mandatory, and "may" is permissive.

(8) "Significant Industrial User"

(i) Except as provided in Subdivision (s)(8)(iii) the term "Significant Industrial User" means:

1. all industrial users subject to categorical pretreatment standards under 40 C.F.R. § 403.6, also referred to as categorical industrial users (CIUs);

2. any other industrial user that discharges an average of 25,000 gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blowdown wastewater);

3. any industrial user that contributes a process wastestream which makes up 5 percent or more of the average dry weather hydraulic or organic capacity of the POTW;

4. any industrial user designated as such by the Control Authority on the basis that the industrial user has reasonable potential of adversely affecting the POTW operation or for violating any pretreatment standard or requirement.

(ii) The Control Authority may determine that an industrial user subject to categorical pretreatment standards under 40 C.F.R. § 403.6 and 40 C.F.R. chapter I, subchapter N is a non-significant categorical industrial user (NSCIU) rather than a Significant Industrial User on a finding that the industrial user never discharges more than 100 gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blowdown wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

1. the industrial user, prior to Control Authority's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

2. the industrial user annually submits the certification statement required in 40 C.F.R. § 403.12(q) together with any additional information necessary to support the certification statement; and

3. the industrial user never discharges any untreated concentrated wastewater.

(iii) Upon finding that an industrial user meeting the criteria of Subparts (8)(i)2-4 has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the Control Authority may at any time determine that such industrial user is not a Significant Industrial User.

(9) "Significant Noncompliance" means a compliance status in which an industrial user has a violation which meets one or more of the following criteria:

(i) Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent (66%) or more of all of the measurements taken for the same pollutant parameter during a 6-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits;

(ii) Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of all of the measurements taken for the same pollutant parameter during a 6-month period equal or exceed the product of the numeric pretreatment standard or requirement including instantaneous limits multiplied by the applicable TRC (TRC=1.4 for BOD, TSS, FOG, and 1.2 for all other pollutants except pH;

(iii) Any other violation of a pretreatment standard or requirement (daily maximum, long-term average, instantaneous limit, or narrative standard) that the Control Authority determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);

(iv) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under 40 C.F.R. § 403.8(f)(1)(vi)(b) or Section 6-324 of the this Code to halt or prevent such a discharge;

(v) Failure to meet, within ninety (90) days after the scheduled date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;

(vi) Failure to provide, within forty-five (45) days after the due date, required reports such as baseline monitoring reports, ninety (90) day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules.

(vii) Failure to accurately report non-compliance;

(viii) Any other violation or group of violations, which may include a violation of Best Management Practices, which the Control Authority determines will adversely affect the operation or implementation of the local pretreatment program.

(10) "Slug" or "Slug Load" means any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge.

(11) "Standard Industrial Classification" or "SIC" means a classification pursuant to the latest published edition of the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget.

(12) "Standard Methods" or "Standard Laboratory Procedure" means the EPA approved procedure outlined in the latest edition approved by the EPA of the book, "Standard Methods for the Examination of Water and Wastewater," published jointly by the American Public Health Association, the American Water Works Association, and the Water Environment Federation.

(13) "State" means the State of California.

(14) "Storm Water" means any flow occurring during or following any form of natural precipitation and resulting therefrom.

(t) (1) "Total Suspended Solids" or "TSS" means the total suspended matter that floats on the surface of, or is suspended in, wastewater and which is removable by laboratory filtering as prescribed by Standard Methods.

(2) "Toxic Pollutant" means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the EPA under the provision of Section 307(a) of the Act (33 U.S.C. § 1317(a)), or other acts.

(3) "Trunk Sewer Charge" means a sewer flow-based capacity charge for the right to connect to the city sewer system. The charge shall be used for the purpose of constructing or recovering such cost for construction of new sewer pipelines thirty inches in diameter or larger. Trunk Sewer Charges shall be collected from all residential development pursuant to Subsection 6-304(a)(5), and for all businesses pursuant to Section 6-310.

(4) "Trunk Sewer Main" means a public sewer main thirty inches in diameter or larger constructed to collect and transport domestic or industrial wastes of any nature to the POTW treatment plant or to another trunk sewer main transporting such wastes to the treatment plant.

(5) "Trunk Sewer Service Areas" means those areas established by resolution of the Council served by a trunk sewer main and subject to trunk sewer charges.

(u) (1) "Unit" means a living unit as defined herein for residential uses, or living unit equivalent for other than residential uses.

(2) "Upset" means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards or city effluent limitations because of factors beyond the reasonable control of an industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventative maintenance, or careless or improper operation.

(v) Reserved.

(w) (1) "Wastewater Discharge Permit" or "Control Mechanism" means the mechanism by which new or increased contributions of pollutants, or changes in the nature of pollutants, to the regional sewer system by industrial users, may be controlled to ensure compliance with applicable pretreatment standards, pretreatment requirements, or city effluent limitations.

(2) "Wastewater Facilities Charge" means a sewer flow and sewer loading based charge for the right to connect to the regional sewer system. The charge shall be used for the purpose of recovering the cost of constructing or construction of facilities at the POTW treatment plant.

(x) Reserved.

(y) Reserved.

(z) Reserved.

(Orig. Ord. 4279; Am. Ord. 5777, 1960; Am. Ord. 6466, 1964; Am. Ord. 69-41, 1969; Am. Ord. 71-105, 1972; Am. Ord. 72-170, 1972; Am. Ord. 73-64, § 1, eff. 5-20-73; Am. Ord. 75-69, §§ 2, 3, eff. 7-27-75; Am. Ord. 80-59, §§ 1—4, eff. 5-9-80; Am. Ord. 80-164, §§ 1—3, eff. 12-5-80; Am. Ord. 82-22, § 1, eff. 3-19-82; Am. Ord. 83-41, § 2, eff. 7-1-83; based on former Sec. 9-501; Am. Ord. 87-29, § 1, eff. 3-17-87; Am. Ord. 89-10, § 1, eff. 2-17-89; Added and Am. Ord. 90-84, §§ 1—4, eff. 8-31-90; Am. Ord. 91-14, §§ 1—5, eff. 3-15-91; Am. Ord. 92-69, §§ 1—5, eff. 9-25-92; Am. Ord. 94-10, §§ 1, 2, eff. 3-11-94; Ord. No. 96-62, §§ 1, 2, eff. 10-25-96; Am. Ord. 98-91, §§ 1, 2, 1-1-99; Am. Ord. 98-97, §§ 2.5, 3, 1-9-99; Am. Ord. 2002-73, § 1, eff. 1-23-02; Am. Ord. 2003-75, § 1, eff. 10-5-03; Am. Ord. 2008-33, §§ 1, 11, eff. 6-22-08; Am. Ord. 2019-021, § 1, eff. 9-28-19).

SEC. 6-303. SEWER CONNECTION REQUIRED.

(a) Every building or structure in which plumbing fixtures are installed, and every premises having piping thereon, which conveys sewage or other liquid wastes to an approved point of disposal, shall be connected to the regional sewer system if it is available, except that:

(i) In the R-A, AE-5, and AE-20 zone districts, on a lot at least two net acres in size, and provided the lot, if not served by a community water system, contains one dwelling unit or septic system per 2.0 acres, such connection may be deferred until the use of the land changes either through district amendment or special permit.

(b) The regional sewer system is available, for the purposes of this section, if a sewer main has been constructed and is available for use in any public street, alley or right-of-way within 100 feet for the first unit plus 50 feet for each additional unit, to be measured along such public street, alley or right-of-way from the nearest property line to the sewer main. For the purpose of this section, the number of units computed shall include all units developed on contiguous property held under one ownership.

(c) Notwithstanding any provision to the contrary, buildings or structures, connected to a septic tank or cesspool at the time the regional sewer system becomes available, shall be connected to the regional sewer system within three years after the regional sewer system becomes available or, if the property has previously been subject to an earlier connection date by reason of requirements of a jurisdiction other than the city, then said connection shall be made on or before said earlier date, provided that if the Director determines the continued use of the septic tank or cesspool will create an immediate health menace, the property shall be connected within the time specified by the Director. Buildings or structures not connected as required by this section are public nuisances.

(d) No person shall cause, suffer or permit the disposal of sewage, or other liquid wastes into any drainage system on any lot which is not connected the regional sewer system when such connection is required by this section except for one- or two-family dwellings that have graywater connected to a graywater system in accordance with the requirements set forth in the current edition of the California Plumbing Code as amended and adopted by the City of Fresno.

(e) Cemeteries will not be subject to the requirements of Section 6-303, except that any facilities used for other than cemetery purposes and separate major maintenance facilities fronting a public street shall be required to connect to the city sewer system subject to the availability of sewers as provided in Section 9-502.
(Orig. Ord. 4726; Am. Ord. 5415, 1958; Am. Ord. 5777, 1960; Am. Ord. 6466, 1964; Am. Ord. 6882, 1966; Am. Ord. 6889, 1966; Am. Ord. 82-100, § 1, eff. 10-15-82; Am. Ord. 85-22, § 1, eff. 3-22-85; Am. Ord. 98-97, §§ 4, 5, 1-9-99; Am. Ord. 2010-10, § 1, eff. 5-16-10)

SEC. 6-304. PERMIT REQUIRED AND PAYMENT OF SEWER CONNECTION CHARGES.

(a) No person shall connect any lot to the city sewer system without a permit from the Director of Development. No permit shall be issued by the Director of Development unless the following sewer connection charges, when applicable, have been paid:

(1) **Lateral Sewer Charge.** A Lateral Sewer Charge shall be required for each lot sought to be connected to the city sewer system based on the net area of such lot, in the amount per square foot as designated in the Master Fee Resolution.

Notwithstanding the above:

(i) Property, which has not previously had city sewer service, shall pay a Lateral Sewer Charge only to the extent that such Lateral Sewer Charge or the cost of the main serving the premises has not heretofore been paid by the applicant or his predecessor in interest.

(ii) Where the applicant is required to extend a sewer main across his property frontage as a condition precedent to receiving service, no such charge shall be collected for that portion of the frontage adjacent to the main which the applicant is required to extend.

(iii) When only a portion of a lot is developed and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, the Director may require the payment of the Lateral Sewer Charge applicable only to that portion of the lot developed or to be developed. When the balance of the lot is developed, the Lateral Sewer Charge on that portion shall be paid regardless of whether additional sewer service is required. The Director shall fix the portion of the lot that is to be considered as developed.

(iv) Properties, on behalf of which no contribution has been made to the cost of the sewer mains and which receive service from sewer main extensions made in other than dedicated and surfaced streets, shall pay to the city the same Lateral Sewer Charge as would be payable if the sewer main were located in a dedicated street adjacent to the property to be served.

(v) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least two net acres in size, when a portion not fewer than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence or the existing residence is to be connected to the city sewer system, the Director may require the payment of the Lateral Sewer Charge applicable only to the portion of such lot to be improved or occupied by the existing residence to be connected to the city sewer system. When the land use on the balance of the lot changes either through district amendment or special permit, the Lateral Sewer Charge shall be paid regardless of whether or not additional sewer service is required. The Director shall fix the portion of such lot which is to be considered as improved or occupied.

(vi) For separate maintenance facilities within cemeteries and on facilities used for other than cemetery purposes, the Director shall fix the area of the lot for Lateral Sewer Charges based on dimensions of the property actually used for such purposes.

(2) **Oversize Sewer Charge.** An Oversize Sewer Charge shall be required for each lot sought to be connected to the regional sewer system based on the net area of such lot, in the amount per square foot designated in the Master Fee Resolution. Parcels of land proposed for subdivision shall be assessed based on the parcels' net area prior to subdivision.

Property which has wholly or proportionately paid the cost of sewer mains, when such fact has been or can be established to the satisfaction of the Director, need pay only the Oversize Sewer Charge applicable to the portion of the property for which the charge has not been paid. Notwithstanding the above:

(i) When only a portion of a lot is developed, and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, or for public recreation uses not enclosed in a building, the Director may require the payment of the Oversize Sewer Charge applicable only to that portion of the lot developed or to be developed, provided that the parcel for which such fees are charged shall have an area of not fewer than twelve thousand five hundred square feet. When the balance of the lot is developed, the Oversize Sewer Charge shall be paid regardless of whether or not additional sewer service is required. The Director shall fix the portion of the lot which is to be considered as developed.

(ii) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least two net acres in size, when a portion not fewer than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence or the existing residence is to be connected to the regional sewer system, the Director may require the payment of the Oversize Sewer Charge applicable only to the portion of such lot to be improved or occupied by the existing residence to be connected to the regional sewer system. When the land use on the balance of the lot changes either through district amendment or special permit, the Oversize Sewer Charge shall be paid regardless of whether or not additional sewer service is required. The Director shall fix the portion of such Lot which is to be considered as improved or occupied.

(iii) Oversize Sewer Charges shall be paid upon connection with the regional sewer system, except that in the UGM area, a subdivider may receive oversize sewer and extra depth sewer fee credits in the amount of reimbursements due at the reimbursement rate in effect at the time of construction, in accordance with subdivision (c) of Section 6-306, for property owned by such subdivider who has previously constructed oversize sewers in the Oversize Sewer Service Area which totally includes such property. This provision shall apply to all tract maps approved after July 1, 1983.

(iv) On separate maintenance facilities within cemeteries and on facilities used for other than cemetery purposes, the Director shall fix the area for Oversize Sewer Charges based on the dimensions of the property actually used for such purposes.

(3) **House Branch Sewer Charge.**

(i) For each lot, which requires a new or revised house branch for which the installation or revision of the house branch is arranged by the city, the applicant shall pay to the city a House Branch Sewer Charge for the cost of the installation or revision. The cost of installation or revision shall be equal to the contract price paid by the city, plus such amounts as are designated in the Master Fee Resolution for administration, engineering, and inspection.

(ii) Each lot or premises shall be served with a separate sewer house branch, unless approved by the Director and a recorded covenant, approved by the City Attorney's Office, is executed between the affected property owners.

(iii) Where a lot is sought to be connected to an existing house branch, for which the cost has not previously been paid on behalf of the lot, the House Branch Sewer Charge shall be the same as if the house branch were a new house branch. If such connection is sought more than one year after the installation of such branch, simple interest shall be added at the rate of seven per cent (7%) per annum to the cost of installation as defined above, except that no interest shall accrue beyond five years from the date of installation.

(4) **Trunk Sewer Charge.** A Trunk Sewer Charge shall be required for all residential lots, within an established Trunk Sewer Service Area, sought to be connected to the regional sewer system in the amount designated in the Master Fee Resolution. The purpose of this subdivision is to ensure the provision of an adequate trunk sewer system to convey domestic and industrial wastes to the POTW treatment plant and to provide a means for levying and collecting charges to be used solely for the purpose of designing and constructing trunk sewer mains to serve designated Trunk Sewer Service Areas.

(i) The Council shall by resolution establish a Trunk Sewer Service Area, which is an area served by a trunk sewer main. The resolution may establish benefit to multiple Trunk Sewer Service Areas served from a common trunk sewer main, in which event, funds collected in the individual Trunk Sewer Service Areas may be used to finance the construction of the trunk sewer main. The service areas may be amended by the Council from time to time to reflect unusual sewer service capabilities or to reflect modifications in urban land use boundaries. The Director may make minor modifications to the Trunk Sewer Service Map, as sewer mains are extended at the fringes of the Trunk Sewer Service Areas, to reflect actual sewer service capabilities. Minor modifications are those changes to the Trunk Sewer Service Area boundary that when aggregated do not add or subtract more than forty acres to or from the Trunk Sewer Service Area. The Director shall maintain an official Trunk Sewer Service Map designating all established Trunk Sewer Service Areas.

(ii) The Council shall designate in the Master Fee Resolution a schedule of charges for each Trunk Sewer Service Area. The total amount of charges to be generated shall be based on the cost of the trunk sewer main to serve Trunk Service Area(s) or the cost to enhance the capacity of an existing trunk sewer main in a Trunk Sewer Service Area. The cost of a trunk sewer main shall include all of the direct and incidental costs of constructing the new trunk sewer main or the capacity enhancement for an existing trunk sewer main including, but not limited to, land acquisition, design and engineering, construction, financing costs, inspection and contract administration.

(iii) A Trunk Sewer Charge shall be required for every lot within a Trunk Sewer Service Area to be connected to the regional sewer system unless the Council, by resolution, waives the payment in that Trunk Sewer Service Area for existing

developed lots without public sewer service. The total amount of charges to be generated in each Trunk Sewer Service Area shall be based on a reasonable allocation made by the Council considering the estimated or actual cost of design and construction of the trunk sewer main facilities and may include the cost to finance construction.

(iv) The Council may review and amend the Trunk Sewer Charges by amending the Master Fee Resolution from time to time to reflect inflation or any change in the factors affecting the cost of constructing such trunk sewer main facilities or the estimated number of units to be served by the facilities.

(v) All Trunk Sewer Charges collected from development within a Trunk Sewer Service Area shall be deposited in the Trunk Sewer Service Area account for that area. The Trunk Sewer Service Area account, including any accumulated interest, shall be used solely for the purposes of designing and construction, including costs of financing trunk sewer main facilities in that Trunk Sewer Service Area, and for administration, inspection, and engineering costs of the city directly related thereto, except that monies accumulated in that account may be loaned to another Trunk Sewer Service Area as provided in this subdivision. In the event trunk sewer main facilities are designed or constructed by a developer, the Trunk Sewer Charges collected for such design and/or construction, less costs incurred by the city, shall be paid to the developer responsible for the design and/or construction, subject to Council approval.

(vi) The Council may authorize the use of funds accumulated in one Trunk Sewer Service Area account for construction of or making bonded debt payments for trunk sewer mains in another such area, provided the Council finds that the existing sewer service level in the Trunk Sewer Service Area with excess funds is adequate to provide service to all existing and approved development, and that the funds remaining on hand after the loan in that service area account are adequate to make the current bonded debt payments. The resolution authorizing a loan of funds to another Trunk Sewer Service Area shall establish the terms of the transaction and shall include provisions that the funds borrowed from a Trunk Sewer Service Area, including interest at a rate determined by the Controller to be the average annual rate received by the city on its investments, shall be repaid from Trunk Sewer Charges collected from subsequent development in the Trunk Sewer Service Area in which the trunk sewer was constructed. Loans from other Trunk Sewer Service Areas including interest shall be repaid in the order in which the Council approved such loans.

(5) **Wastewater Facilities Charge.** A Wastewater Facilities Charge shall be required for all residential sought to be connected to the regional sewer system in the amount designated in the Master Fee Resolution. The purpose of this subdivision is to ensure the provision of adequate POTW treatment plant and appurtenant facilities, and to provide a means for levying and collecting charges to be used solely for the purpose of designing and constructing a POTW treatment plant and appurtenant facilities.

(i) A Wastewater Facilities Charge in the amount designated in the Master Fee Resolution shall be required for every lot sought to be connected to the regional sewer system,

(ii) The Wastewater Facilities Charge shall be based on the cost of wastewater treatment facilities to be constructed to provide additional treatment capacity per unit for every lot sought to be connected to the regional sewer system for which sewerage treatment is provided by the subject facilities. The cost of the facilities providing expanded treatment capacity shall include all direct and incidental costs for constructing wastewater treatment plant facilities, including but not limited to, land acquisition, design, financing costs, inspection and contract administration.

(iii) All Wastewater Facilities Charges and interest thereon shall be deposited in the sewer service fund and shall be used solely for the purposes of design and construction, including costs of financing, and for administration, inspection and engineering costs of the city directly related to the enhancement of treatment capacity at the POTW treatment plant and appurtenant facilities.

(iv) The Council may review and amend the Wastewater Facilities Charge by amending the Master Fee Resolution from time to time to reflect inflation or any change in the factors affecting the cost of constructing such wastewater treatment facilities or the estimated number of units to be served by the facilities. The Council shall eliminate the charge at such time as revenues are no longer needed to enhance capacity at the POTW treatment plant or to pay the debt service related to capacity enhancement.

(b) When land is subdivided prior to the time the Final Map or Parcel Map is approved, the owner shall pay or cause to be paid all applicable sewer connection charges, except that the Wastewater Facilities Charge applicable to residential subdivisions shall be paid at the time of the issuance of a building permit for any structure to be constructed on such property.

(c) Payment of charges and issuance of permits pursuant to this section do not authorize the permittee to perform or cause to be performed work specified in this article to be performed by the city.

(d) Whenever the Council, the Board of Supervisors of the county, or the Board of a special district, whichever is applicable, has adopted a resolution of intention to construct regional sewer system improvements, no permit for additions to or connection to the regional sewer system to serve any lot included in the district subject to such resolution shall be issued until the hearing of protest has been finally determined in favor of the protestants or the proposed work has been consummated sufficiently to allow the lot to be served by such regional sewer system improvements.

(e) Payment of Lateral Sewer Charges pursuant to subdivision 6-304(a)(1), Oversize Sewer Charges pursuant to subdivision 6-304(a)(2), and House Branch Sewer Charges pursuant to subdivision 6-304(a)(4) may be deferred until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604.

(f) Payment of Trunk Sewer Charges pursuant to subdivision 6-304(a)(5), and Wastewater Facilities Charges pursuant to subdivision 6-304(a)(6) related to a business shall be deferred until issuance of a certificate of occupancy and collected pursuant to the requirements of Section 6-310.

(Orig. Ord. 4726; Am. Ord. 5777, 1960; Am. Ord. 5834, 1960; Am. Ord. 6261, 1963; Am. Ord. 6466, 1964; Am. Ord. 6821, 1966; Am. Ord. 6882, 1966; Am. Ord. 67-48, 1967; Am. Ord. 67-49, 1967; Am. Ord. 69-41, 1969; Am. Ord. 72-140, 1972; Added Ord. 72-170, 1072; Am. Ord. 73-84, § 2, eff. 5-20-73; Am. Ord. 74-18, § 1, eff. 3-10-74; Am. Ord. 75-11, § 1, eff. 4-1-75; Am. Ord. 75-69, § 4, eff. 7-27-75; Am. Ord. 75-96, § 1, eff. 10-19-75; Am. Ord. 80-59, § 5, eff. 5-9-80; Am. Ord. 80-115, § 99, eff. 8-8-80; Am. Ord. 80-164, § 4, eff. 12-5-80; Am. Ord. 82-82, § 1, eff. 9-17-82; Am. Ord. 82-100, § 2, eff. 10-15-82; Am. Ord. 83-122, § 1, eff. 9-30-83; Am. Ord. 85-9, § 1, eff. 2-15-85; Am. Ord. 85-22, § 2, eff. 3-22-85; Am. Ord. 90-84, § 6, eff. 8-31-90; Am. Ord. 90-123, § 1, eff. 12-7-90; Am. Ord. 91-32, § 1, eff. 5-10-91; Am. Ord. 92-69, §§ 6, 7, eff. 9-25-92; Am. Ord. 95-38, § 1, eff. 6-9-95; Am. Ord. 96-62, § 1, eff. 10-25-96; Am. Ord. 98-97, §§ 6, 7, 1-9-99)

SEC. 6-305. PAYMENT OF SEWER CHARGES AND LOANS.

(a) The amount of any sewer connection charges or sewer facility charges prescribed under the provisions of this article shall be deemed a debt owing to the city which, until paid, shall be a continuing obligation of the owner of such property for connection to the regional sewer system. Any person who makes a connection to the regional sewer system without having paid such charges in full or having accomplished the execution, acceptance and recording of an agreement to pay therefor as herein provided, shall be liable in an action in the name of the city in any court of competent jurisdiction for the amount of such charge. The conviction or punishment of any person for connecting to the regional sewer system without obtaining a permit shall not relieve such person from paying the charges due and unpaid at the time of such conviction.

(b) This section shall neither apply to the construction or payment for sewers which have been provided for under procedures regulating the division of land or the connection of sewers to property owned by a government or governmental agency, nor whenever the Council or Board of Supervisors of the county, whichever is applicable, has adopted a resolution of intention to construct improvements by special assessments within a district which includes said lot.

(c) Payment of sewer connection charges or sewer facility charges together with interest on the unpaid balance, payable because of connection of existing single-family residences anywhere in the City's service area, and commercial or industrial development in the Enterprise Zone, may be deferred by an agreement between the property owner and the city, to pay such charges together with interest on the unpaid balance, over a period of not more than fifteen years, in accordance with the following provisions:

(1) The agreement shall provide for substantially equal monthly installments amortized over a period of not more than fifteen years, at a rate of interest as periodically established by the Controller and adopted by the Council in the Master Fee Resolution.

(2) The sewer connection charges which may be deferred, and limitations, if any, on the amounts that may be deferred, shall be as established in the Master Fee Resolution.

(3) The agreement shall be of a form and content prescribed by the Controller and approved by the City Attorney.

(4) The agreement shall be signed by all persons having a record title interest in the real property being served by the city sewer system, to which connection is requested, and shall include the legal description of the property.

(5) The agreement shall provide that the whole, or any part of the balance of charges due at any time under the agreement may be accelerated and paid at any time, at the option of the payer.

(d) The agreement provided for in subdivision (c) above shall be in the form of a covenant running with the land, and shall establish a lien against the property in favor of the city in the amount of all deferred charges, and shall be recorded in the office of the Fresno County Recorder.

(e) The agreement and lien shall be enforceable by the city in any manner available at law or in equity, including but not limited to private foreclosure and sale of the property in the manner provided by Section 2924 of the California Civil Code.

(f) Notwithstanding subsections (a) through (e) of this section and in addition thereto, Council may establish by resolution a program, policies and procedures loaning annually allocated and available funds, not to exceed specified dollar caps, for the cost to abandon existing single family residential septic tanks and cesspools, and install and connect a privately owned sewer line/house branch from the single family residence to the City sewer. (Orig. Ord. 4726; Am. Ord. 5777, 1960; Am. Ord. 5834, 1960; Am. Ord. 6261, 1963; Am. Ord. 6466, 1964; Am. Ord. 6821, 1966; Am. Ord. 6882, 1966; Added Ord. 67-48, 1967; Am. Ord. 67—49, 1967; Am. Ord. 72-140, 1972; Am. Ord. 75-69, § 5, eff. 7-27-75; Am. Ord. 80-115, § 100, Eff. 8-8-80; Am. Ord. 82-22, § 2, eff. 3-19-82; Am. Ord. 90-61, § 1, eff. 7-27-90; Am. Ord. 91-51, § 1, eff. 6-14-91; Am. Ord. 98-87, §§ 8, 9, 1-9-99; Am. Ord. 2003-35, § 1, eff. 5-30-03; Am. Ord. 2003-75, § 1, eff. 10-5-03; Am. Ord. 2011-14, § 1, eff. 6-11-11; Am. Ord. 2016-52, § 1, eff. 1-16-17).

SEC. 6-306. REIMBURSEMENTS.

(a) **Oversize Sewer Mains (Non-UGM).** Reimbursements for Oversize Sewer Charges paid pursuant to subdivision 6-304(a)(2), as the result of development in areas other than an UGM sewer service area, shall be made as follows:

(1) When a city sewer main installed by a person is required by the Director to be constructed to a size larger than eight inches in diameter, the city shall reimburse such person in an amount designated in the Master Fee Resolution. The amount to be reimbursed shall be credited against the Oversize Sewer Charge to be paid on behalf of all property contributing to the cost thereof, in proportion to the amount of

such contribution. If the credit for any such property exceeds the Oversize Sewer Charge, then a sum equal to the difference shall be paid from the sewer connection account upon city acceptance of the main.

(2) When a city oversize sewer main installed by a person is required by the Director to be constructed at a depth greater than eight feet, the city shall reimburse such person in an amount designated in the Master Fee Resolution. The amount to be reimbursed shall be credited against the Oversize Sewer Charge to be paid on behalf of all property contributing to the cost thereof in proportion to the amount of such contribution. If the credit for any such property exceeds the Oversize Sewer Charge, then a sum equal to the difference shall be paid from the sewer connection account upon city acceptance of the main.

(b) **City Sewer Mains.**

(1) This subdivision shall be applicable to city sewer mains installed after July 1, 1975, except when constructed by special assessments,

(2) Any person installing a city sewer main shall, prior to construction of the city sewer main, file with the Director a legal description of the properties on behalf of which contributions have been made to the cost of the construction, and a statement of the proportions of the cost borne by each property. Within ninety days following city acceptance of the city sewer main, such person shall file with the Director a project accounting, in a form as specified by the Director, stating the cost (excluding any city reimbursement) of the construction of the main. In the event a project accounting has not been filed with the Director within such period, then a reimbursement under subdivision (b)(3), below, shall not be made in the event additional property is connected to the sewer main constructed. If an ownership statement is not filed prior to construction, only the property served by the city sewer main and owned by the person who installed the city sewer main on the date of commencement of installation will be deemed to have paid for the installation; provided, that if within seven years after the date of commencement of installation such person acquires in fee property served by the city sewer main which would otherwise be subject to payment of Lateral Sewer Charges, such person shall also be deemed to have paid the Lateral Sewer Charges for such property.

(3) For the initial reimbursement period, or, if applicable, the extended reimbursement period, as such terms are defined in Section 12-4.501.5-F of this Code, after city acceptance of a city sewer main referred to in subdivision (b)(1) above, the person or persons bearing the cost of such city sewer main construction may be reimbursed pursuant to this subdivision (b). The Lateral Sewer Charges collected by the city pursuant to this article for connection to such city sewer main shall be paid by the city proportionately to the owner or owners of property on behalf of which contributions were made to the cost of construction of such city sewer main. When a

person is entitled to an UGM fee reimbursement under this subsection, the city shall make semiannual payments, in amounts determined by the Director, in the manner and for

the period prescribed by Section 12-4.504-C of this Code. However, neither shall reimbursement exceed the sum of (1) one hundred percent of the cost of constructing city sewer mains which do not front on any contributing property, and (2) fifty per cent of the cost of constructing city sewer mains fronting on properties on behalf of which such contributions were made; nor shall the total reimbursement exceed the total amount of the Lateral Sewer Charges which would have been payable by property on behalf of which no contribution was made to the cost of installation as of the date of city acceptance of the city sewer main. Such reimbursements shall be paid from the applicable sewer connection account.

(4) If the total amount of the Lateral Sewer Charges (based on fees in effect on the date of city acceptance of the city sewer main) which would be collectible from property on behalf of which no contribution has been made to the cost of installation is less than one thousand dollars, the Director may elect to proportionately reimburse from the applicable sewer connection account, after completion of the city sewer main, to the person or persons contributing to the cost of constructing the city sewer main, the amount of said Lateral Sewer Charges which would be collectible from non-contributing property. If the Director elects to reimburse in this manner, such person or persons will be eligible neither for the exemption provided in subdivision (b)(2) above nor for further reimbursement provided in subdivision (b)(3) above.

(5) For purposes of reimbursements, where a property has more than one frontage, the actual Lateral Sewer Charge paid shall be apportioned between the frontages on which the calculation of charges was based in the ratio of the total length of each frontage.

(c) **UGM Oversize Sewer Mains.** Oversize Sewer Service Areas shall be established for all land located within the Urban Growth Management Area, the boundaries of which areas shall reflect that territory which the Director determines will receive primary service from existing or projected oversized facilities or other trunk sewer mains identified by the Director.

(1) The maximum reimbursement for oversize sewer cost, which may be paid from the sewer connection account upon city acceptance of an oversize sewer main, shall be an amount designated in the Master Fee Resolution.

(2) All subsequent reimbursements, in amounts designated in the Master Fee Resolution, shall be determined semiannually on or about each April first and October first following city acceptance of the city sewer main, and shall occur only to the extent Oversize Sewer Charges are paid on behalf of non-contributing properties located within the service area of the oversize sewer main for the duration of the appropriate reimbursement period, as defined in Section 12-4.501-F of this Code. The order of reimbursements shall be based on the dates of submittal of project accountings to the Director. Reimbursements shall not be initiated for an oversize sewer main until reimbursements are complete for oversize sewer mains covered by previously submitted project accountings. Project accountings must be filed with the Director within ninety days of city acceptance of the oversize sewer main. Reimbursements shall not be made if project accountings are not so filed within such period.

(3) In the event all construction which would be subject to payment of the Oversize Sewer Charge which would be used for reimbursement purposes within an UGM service area is effectively barred or prohibited by any governmental agency having superior jurisdiction to the city, or by any legal action initiated by or on behalf of any such agency, the applicable reimbursement period as defined in Section 12-4.501.5-F of this Code, shall be extended on a day-to-day basis for the duration of any such moratorium, but not exceeding the appropriate cumulative reimbursement period.

(4) Reimbursements in excess of the maximum reimbursement amount may be paid only after such amount has been repaid through the collection of Oversize Sewer Charges within the service area of the subject oversize sewer main. A credit shall be given against the Oversize Sewer Charge on those properties required to construct an oversize sewer main whenever the estimated cost of construction exceeds the fee obligation.

(d) When reimbursements are made pursuant to subdivision (b) or (c) of this Section 6-306, the city shall retain an administrative charge pursuant to Section 12-4.504-C. Reimbursement of the fees shall be made in the manner and for the period prescribed by Section 12-4.504-C of this Code.

(e) **Trunk Sewer Mains Reimbursement Provisions.**

(1) Where a developer installs a trunk sewer main or portion thereof, he shall file with the Director, within ninety days following city acceptance of the trunk sewer main, a project accounting stating the cost of construction of the trunk sewer main. The project accounting shall include a legal description of all properties on behalf of which contributions have been made to such costs, and a statement of the proportion of the costs borne by each property.

(2) Following the receipt of the project accounting, the Director shall make semiannual determinations on or about each April first and October first, in the manner prescribed in Section 12-4.504-C of this Code, of the amounts to be reimbursed to the persons who constructed the trunk sewer main as shown in the project accounting, subject to the following:

(i) Each determination shall calculate the Trunk Sewer Charges which have been collected during the preceding six months for land developed within the Trunk Sewer Service Area in which the trunk sewer main is located.

(ii) No reimbursements shall be made if the project accounting was not filed within the time specified in subdivision (1) of this subsection.

(iii) In no event shall reimbursement payments be made which total in excess of the cost of the trunk sewer main as shown on the project accounting.

(3) The Trunk Sewer Charge on the property contributing to the cost of the trunk sewer main shall be either increased or decreased by an amount equal to the difference between the actual cost of construction and the fee obligation established at the time of the granting of the entitlement.

(4) Reimbursement payments shall be made neither after the end of the appropriate reimbursement period, as defined in Section 12-4.501-F of this Code, nor shall reimbursement be made which would reduce the balance in the Trunk Sewer Service Area account to an amount less than the bond debt payments due during the next twelve months.

(5) The priority of reimbursements shall be according to dates the project accounting statements are accepted by the Director.

(6) Reimbursements shall not be made until reimbursements are complete for the trunk sewer main, which is covered by previously submitted project accounting statements.

(Added Ord. 75-69, § 6, eff. 7-27-75; Am. Ord. 76-8, § 1, eff. 2-22-76; Am. Ord. 80-115, § 101, eff. 8-8-80; Am. Ord. 80-164, § 7, eff. 12-5-80; Am. Ord. 83-163, § 1, eff. 1-20-84; Am. Ord. 89-85, §§ 1, 2, eff. 7-28-89; Added Ord. 90-84, § 7, eff. 8-31-90; Am. Ord. 98-97, §§ 10, 11, 1-9-99)

SEC. 6-307. HOUSE BRANCHES.

(a) The charge for replacement of an existing house branch by one of a larger size shall be the same as for a new house branch of the size requested, except that when sewer mains and house branches are being replaced under a city sewer replacement program, the charge for increasing the size of a house branch will be the difference in cost between the size requested by the property owner and the size which would normally be installed by the city under its replacement program.

(b) Where it is necessary to relocate a house branch for the convenience of a property owner, or where relocation is required because the construction by or on behalf of the property owner will interfere with the operation or maintenance of the house branch, the charge for such relocation shall be the cost for labor (including overhead), equipment and material.

(c) The minimum size of the house branch installed for any property shall be as the Director may designate.

(d) When a property owner requests the abandonment of one or more house branches and the installation of one or more new house branches, the cost of abandonment and the cost of the new branches shall be paid for by the customer as specified in subdivision 6-304(a)(4).

(e) Where a house branch sewer must be constructed under a major street which was surfaced within the previous five years with permanent concrete or asphalt concrete surfacing, the house branch shall be installed by jacking or boring under the surface.

(Added Ord. 75-69, § 7, eff. 7-22-75; Am. Ord. 98-97, §§ 12, 13, 1-9-99)

SEC. 6-308. SEWER SYSTEM CONSTRUCTION.

(a) Any person desiring to make an addition to the city sewer system to serve property shall make a request in writing to the Director for preliminary investigation into the feasibility of such addition. If the addition as requested is found to be feasible by the Director, such addition may be made to the city sewer system in accordance with the provisions of this chapter. The Director shall cause the installation to be inspected, and shall allow the final connection to

such system only if it is found that such additions conform in all respects with the standard specifications for sewer facilities of the city, with applicable health laws, and with the lines and grades designated by the Director.

(b) If a right-of-way is needed for an addition to the city sewer system, the person constructing the addition shall obtain such right-of-way for the city, or pay the cost to the city of acquiring such right-of-way.

(c) If the Director determines that a pump station is necessary to serve the property of the person installing the city sewer main, such person shall install a pump station meeting specifications approved by the Director and shall pay the full cost of such installation.

(d) When new, enlarged or additional sewer service is required to serve a property, city sewer mains shall be installed across the full frontages of the property unless the Director determines that city sewer mains are not required at that time across the full frontage to serve other properties or because an undeveloped portion of the subject property does not require sewer service. Where a property has more than one frontage on which city sewer main installation would be required by this subsection, the Director may require payment of Lateral Sewer Charges in lieu of city sewer main installation along such additional frontages. Lateral Sewer Charges collected pursuant to this subsection shall be deemed as reimbursable pursuant to subsection 6-306(b)(3).

(e) Specifications and plans for the installation of additions to the city sewer system shall be prepared by a registered civil engineer and shall be approved by the Director before a permit for doing the work may be issued.

(f) When a city sewer main has been installed in public streets or easements pursuant to the regulations of the city and has been accepted by the Director, then the sewer main shall become the property of the city and a part of the city sewer system. House branch sewers, including their connection to city sewer mains, shall not be considered as city property or become a part of the city sewer system, and their maintenance and repair shall not be provided by the city.

(g) In the designated area of the city that requires the installation of house sewer traps, they shall be installed as follows:

(1) Each house branch sewer shall have a trap as required under Chapter 11, Article 1 of this Code. The trap shall be in the parkway or as near as possible to the property line.

(2) A fresh air inlet, not fewer than four inches in diameter, shall be installed on the house side of each such trap. Each such inlet shall be fitted with an approved cap, which will prevent the depositing of any foreign matter to the inlet.

(3) All fresh air inlets on public right of way shall be installed flush with adjacent ground. Ground adjacent to all fresh air inlets shall be graded so that surface water will not enter the inlet. The fresh air inlet shall be located between the curb and the sidewalk, unless approved otherwise by the Director of Development.

(4) Where there is no definite drainage pattern to the yard area, any fresh air inlet on private property shall extend a minimum of six inches above the adjacent ground. Where practical, the fresh air inlet shall terminate below the floor level of the building being serviced. Where it is not practical to do so, an approved backwater valve shall be installed. This device shall be installed as required under Chapter 11, Article I of this Code, except when a backwater valve is installed in a building sewer, the main house branch trap may be omitted and a combination wye and ⅛ bend or a two-way clean-out fitting shall be installed on the building side of the backwater device. A full size vent shall be installed into the fitting and shall extend to the surface of the ground and terminate with a vent cap which meets the requirements.

(5) Notwithstanding the provisions of Section 6-323 in this article, the enforcement of this subsection shall be the responsibility of the Director of Development.

(h) The person constructing an addition to the city sewer system shall reimburse the city for its cost of labor (including overhead), equipment and materials for the following:

(1) Construction or revision of house branches where the Director determines that the site conditions are such that there is a significant hazard to the public convenience, safety and health or to private property in the area, and that such hazard may be mitigated if the city makes arrangements for construction or revision.

(2) All connections to pressure sewers after completion of such sewers.

(3) Review and approval of specifications and plans submitted by the applicant for the proposed additions to the city sewer system.

(4) Preliminary investigation of the feasibility of additions to the city sewer system.

(5) Any design, surveying, inspection or testing performed by the city in connection with an addition to the city sewer system. Such reimbursements may be made at standard rates to cover costs as may be designated by the Council from time to time in the Master Fee Resolution.

(i) Although it is the intent of this article that arrangements necessary to install city sewer mains required to serve property shall be the responsibility of the person desiring such service, an exception is necessary to facilitate minor additions to the city sewer system. The city may, upon written request of the applicant, take all steps necessary to complete the total installation subject to the following conditions:

(1) Total of front footage for which Lateral Sewer Charges would be payable if city sewer mains existed plus off-site sewer required is three hundred feet or less.

(2) Applicant pays the Oversize Sewer Charge, the Lateral Sewer Charge, the Wastewater Facilities Charge, and the Trunk Sewer Charge if applicable for the property as though city sewer mains already existed on the property frontage.

(3) Applicant reimburses the city in accordance with this article for the house branch and preliminary investigation.

(4) Applicant pays to the city the fee designated in the Master Fee Resolution for each foot of city sewer main installed to cover the cost of design, surveying, inspection, and testing.

(j) Connections to city sewer mains in other than dedicated and surfaced streets or alleys shall not be permitted where service can be rendered from dedicated and surfaced streets or alleys by extension or otherwise.

(Orig. Ord. 4726; 5309, 1958; 5311, 1958; Am. Ord. 5777, 1960; Am. Ord. 6261, 1963; Am. Ord. 6667, 1965; Am. Ord. 6882, 1966; Am. Ord. 69-41, 1969; Am. Ord. 72-136, 1972; Am. Ord. 75-11, §§ 2, 3, eff. 4-1-75; Am. Ord. 75-69, § 8, eff. 7-27-75; Am. Ord. 75-96, § 2, 10-19-75; Am. Ord. 80-115, §§ 102, 103, eff. 8-8-80; Am. Ord. 98-97, §§ 14, 15, 1-9-99)

SEC. 6-309. SEWER SERVICE CHARGES.

City of Clovis and member agencies of the city's POTW shall adopt, by ordinance, regulation or both, a sewer service charge system in accordance with Section 204(b)(1)(A) of the Act (33 U.S.C. § 1284(b)(1)(A)), 40 C.F.R. §§ 35.929 through 35.939-3, Section 307(b) and (c) of the Act (33 US.C. § 1317(b) and (c)) and 40 C.F.R. § 403.9.

(a) **Monthly Sewer Service Charge.** The monthly sewer service charge comprised of a capital component and an operations and maintenance component, for use of the wastewater collection system and treatment facilities shall be designated in the Master Fee Resolution. In case of fee sharing agreements such as those existing with the Pinedale County Water District and the Pinedale Public Utility District only the operations and maintenance fee component shall be used.

(b) **Additional Requirements.** Industrial users, as defined in Section 6-302, shall comply with the following: (1) Industrial high strength users are industrial users that have an effluent volume greater than 25,000 gallons per day or, for those industrial users with no totalizing effluent meter, a potable water volume of greater than 27,500 gallons per day, or who are otherwise determined by the Director. For industrial high strength users, the Director shall determine the strength for billing purposes by utilizing one of the following methods:

(i) By taking the average of the analyses made by the city for a given billing period. Where an industry operates on a seasonal basis, charges will be based upon analyses made during the periods of operation. If a minimum number of measurements cannot be taken in a billing period, all analyses taken during the previous six months shall be averaged and that value will be used for billing purposes.

(ii) When requested in writing, the Director may authorize an additional two tests per billing period if the Director finds that the additional testing will give a more representative average. All costs, including overhead associated with the sampling and testing of the additional two samples, will be charged directly to the industrial user.

(c) **Determination of Charges.** The following provisions shall be applied when appropriate in determining charges for sewer service and responsibility therefor:

(1) Any person charged for sewer service may, upon request to the Director, have his sewer service charges calculated pursuant to and subject to the conditions set forth in Subdivision (2) hereof.

(2) The quantities of wastewater produced shall be determined in one of the following ways:

(i) By use of an effluent wastewater meter which has flow-totalizing capability, installed and maintained at the expense of the owner or occupant of the premises and approved by the Director.

(ii) If no effluent wastewater meter is available, by the use of a potable water meter which meters all sources of incoming potable water, including private wells.

(iii) If (i) or (ii) are not applicable, then as determined by guidelines established by the Director which shall be conclusive. Such determinations of the Director shall be effective for not more than one year. Where the volume of wastewater produced by any premises is determined by the Director, instead of by installation of an effluent wastewater meter, the owner or occupant of such premises shall pay to the city the cost of making the original and each subsequent annual estimate, subject to a minimum charge designated in the Master Fee Resolution.

(iv) In lieu of the above, public and parochial schools may be charged for sewer service on the basis of average daily attendance as designated in the Master Fee Resolution, provided the premises so charged for sewer service are used exclusively for school purposes with no residential uses thereon. Such charges shall be calculated on an annual basis, based on the previous years attendance divided by twelve to determine the monthly rate.

(3) Where two or more users are located on the same premises and each has a separately metered water service, the sewer service charge shall be calculated and billed in the same manner as if each user were located on a separate premises.

(4) Where several users are served on a single metered water service and the sewer service charge for one or more of such users is based upon the volume of potable water delivered to such user, then a single service charge shall be made, based upon the total volume of water delivered through such meter, which charge shall be the responsibility of the water service customer.

(5) Where a single business occupies contiguous premises served by more than one metered water service, and the sewer service charge for such use is based upon the volume of potable water delivered to such user, then a separate sewer service charge shall be made for the water used through each meter.

(6) Where two or more commercial users are served with a single metered water service and the sewer service charge for one or more of such users is based upon the volume of potable water delivered to such user, then a single service charge shall be made based upon the total volume of water delivered through such meter. The sewer service charge shall be determined by the Director based on the activity of the user and/or analyses of the effluent and shall be the responsibility of the water service customer.

(7) Where there are mixed commercial and residential uses on the same premises, and the commercial use has separate sewer facilities to serve employees or customers, the sewer service charge shall be specified in this subsection for the residential use, plus the monthly sewer charge referred to in Subsection (a) hereof and designated in the Master Fee Resolution, for the commercial use.

(8) Where there are mixed commercial and residential uses on the same premises and the commercial use does not have separate sewer facilities to serve employees and customers, the sewer service charge shall be calculated based upon the highest economic use.

(9) Upon annexation to the city of property which has been connected to the sewer without payment, either directly or indirectly, of the cost of constructing the lateral sewer to which the property is connected, or without payment of the lateral sewer charge, oversize sewer charge, and house branch sewer charge required by this article, then the lateral sewer charge, oversize sewer charge, and house branch sewer charge imposed by this article shall be due and payable to the city.

(10) Whenever any premises are not served with city water and not billed for sewer service by a special district, and no responsible tenant or lessee agrees to and does pay the sewer service charges, the controller shall bill the owner of the premises who shall be responsible to pay said charges.

(11) Notwithstanding the foregoing, the western wineries on the separate winery waste system, industries connected to city-owned pretreatment facilities at 650 West Church Avenue, and special districts providing sewer service and/or billing service shall pay sewer service charges in accordance with agreements approved by the Council.

(d) **Special Disposal Site, Contract Disposal, Charges.** Whenever special disposal sites are constructed therefore, the Director may allow the disposal therein of the contents of trucks designed and used for the pumping out and removal of approved waste from industrial processes, grease traps, grease interceptors, septic tanks and chemical toilets. The Director is authorized to enter into agreements with liquid waste disposal companies regulating such disposal, and providing for charges to recover the cost of the sites and other city expensive including wastewater treatments at the rates designated in the Master Fee Resolution.

(e) **Failure to Pay Sewer Service Charges.** Failure to pay sewer service charges shall be deemed a violation of this article and subject to the provisions of Section 6-323(d) of this Code. (Orig. Ord. 4389; Am. Ord. 5309, 1958; Am. Ord. 5917, 1961; Am. Ord. 6161, 1962; Am. Ord. 6173, 1962; Am. Ord. 6174, 1962; Am. Ord. 6385, 1963; Am. Ord. 6388, 1964; Am. Ord. 6465, 1964; Am. Ord. 6576, 1965; Am. Ord. 6650, 1965; Am. Ord. 6882, 1966; Am. Ord. 67-47, 1967; Am. Ord. 67-50, 1967; Am. Ord. 68-56, 1968; Am. Ord. 68-96, 1968; Am. Ord. 69-41, 1969; Am. Ord. 71-44, 1971; Am. Ord. 71-105, 1972; Am. Ord. 72-140, 1972; Am. Ord. 73-103, § 1, eff. 7-5-73; Am. Ord. 74-57, § 1, eff. 7-1-74; Am. Ord. 76-33, § 1, eff. 5-9-76; Am. Ord. 80-115, § 104, eff. 8-8-80; Am. Ord. 83-41, § 3, eff. 7-1-83; Am. Ord. 87-29, § 2, eff. 3-17-87; Am. Ord. 94-10, § 3, 3-11-94; Am. Ord. 98-91, §§ 1, 2, 1-1-99; Am. Ord. 2002-73, § 2, eff. 1-23-02; Am. Ord. 2013-16, § 1, eff. 7-18-13).

SEC. 6-310. SEWER FACILITY CHARGES.

(a) Sewer Facility Charges, when applicable for a business as defined in Section 6-302, shall be based upon the estimated actual use of the regional sewer system by the premises or the user in an amount designated in the Master Fee Resolution. Sewer Facility Charges include the following:

(1) Wastewater Facilities Charge, which consists of a charge per gallon of sewer flow, plus a charge per pound of BOD, plus a charge per pound of TSS. The Wastewater Facilities Charge is determined using the following formula:

Flow Charge = {sewer flow(gal.)} × {MFR fee rate}

BOD Charge = {sewer flow(mgd)} × 8.345 × BOD(mg/L/day) × {MFR fee rate}

TSS Charge = {sewer flow(mgd)} × 8.345 × TSS(mg/L/day) × {MFR fee rate}

(2) Trunk Sewer Charge, which consists of a charge per gallon of sewer flow only. The Trunk Sewer Charge is determined using the following formula:

Flow Charge = {sewer flow(gal.)} × {MFR fee rate}

(b) **Determination of Charges.** After connection, the customer shall allow the city to monitor sewer flow and sewer loading of the business upon which Sewer Facility Charges shall be determined. Sewer flow and sewer loading shall be determined pursuant to Section 6-309(b). Following each two-month billing period, should the customer's computed sewer flow for the period be greater than the total accumulated sewer flow purchased to date, the customer shall be billed for one-eighteenth of the computed sewer flow minus the total accumulated sewer flow purchased to date. For the purpose of this section, "total accumulated sewer flow purchased" is the quantity of sewer flow purchased when all incremental and previously purchased sewer flow charges are summed.

(c) **Applicability to Businesses.** This section shall apply to any new development entitlement as defined in Section 12-603(C) for a business, or any business where there is a change in the use or the operation of a development for which a special permit is required. Notwithstanding the above:

(1) Property which has previously paid a Wastewater Facility Charge or Trunk Sewer Charge, when such payment can be determined to the satisfaction of the Director, shall only be responsible for payment of additional Sewer Facility Charges when the business' regional sewer system usage exceeds the equivalent flow units previously paid for or the billing period with the highest average daily flow over the prior twelve months, whichever is the greater.

(2) Where a development entitlement is for residential use, sewer connection charges shall be collected pursuant to Section 9-503.1.

(d) **Violation.** Failure to pay Sewer Facility Charges shall be deemed a violation of this article, and subject to the provisions of subsection 9-510(d) of this Code.
(Add. Ord. 98-97, § 16, 1-9-99)

SEC. 6-311. EMPLOYMENT DEVELOPMENT CREDIT.

(a) For the purpose of encouraging employment development, the owner or proprietor of a business subject to payment of Wastewater Facility Charges pursuant to Section 6-310 may apply for an employment development credit. Employment development credit shall be subtracted from the total calculated Sewer Facilities Charges due each billing period up to the total amount of said charges in that billing period. Employment development credit given shall be based on the total number of equivalent full-time positions employed at such business. For the purposes of determining the employment development credit, an "equivalent full-time position" is defined as one or more persons to which wages were paid over a calendar month totaling 170 hours. The total amount of employment development credit received each billing period shall be determined as follows:

$$\text{Employment development credit for a billing period} = (Y) \times (150 \text{ gal.}) \times (Z) \div 18$$

Where:

Y = (Total employee hours in a billing period ÷ 2) ÷ 170 hrs.

Z = Flow charge per gallon for the Wastewater Facility Charge as designated in the Master Fee Resolution, "Total employee hours in a billing period" is defined as those paid employee hours which occurred in the last full calendar month of the billing period plus the previous full calendar month.

(b) **Certification of Employees.** To qualify for the receipt of an employment development credit, the owner or proprietor of a business must submit a certification form as provided by the city, which provides the employer's name, employer ID number, business name, business address, billing account number, the names of all persons who were paid wages during the month, the total hours each person worked, the total wages paid to each person or other

relevant information as determined by the Director. Based on the information submitted, the Director shall determine the total employment development credit the business may receive as provided in the section above, which shall be conclusive. In order to receive an employment development credit over the bimonthly billing period, the business must submit the certification form which includes such employment information for the billing period in which the credit is requested, and the form must be received by the city no later than (15) fifteen days after the end of each billing period. Certifications received later than (15) fifteen days after the end of each billing period will not receive an employment development credit in that billing period for which the certification is late.

(c) **Duration of Employment Development Credit.** The Council may elect to discontinue the provisions of this section for new businesses or development at some future time, except that, any business which has been given an employment development credit under this section shall continue to receive such credit, as long as the business' billing account remains active and certifications are received in a timely manner as provided above. In the event the billing account is closed, such credit will cease. Employment development credits may not be transferred from one business location to another.
(Add. Ord. 98-97, § 17, 1-9-99)

SEC. 6-312. FINANCIAL PROCEDURES.

All billing for and collection of sewer service charges shall be handled as provided in this article and in Article 1 of Chapter 6 of this Code.
(Rep. and Added Ord. 70-3, 1970).

SEC. 6-313. VACANCIES.

While any premises connected to the city sewer system are vacant, the regular minimum sewer service charge shall be payable for such premises by the owner thereof, whether or not sewer service is used, if water is connected to or available for use on the premises, unless such premises are physically disconnected from the city sewer system. Applications for determination by the Director that the premises have been physically disconnected from the city sewer system shall be made to the Director accompanied by the disconnection inspection fee designated in the Master Fee Resolution. Premises so disconnected shall not be reconnected to the city sewer system by any person except with permission of the Director. If approval for reconnection to the city sewer system is desired, an application for reconnection shall be filed with the Director, accompanied by the reconnection inspection fee designated in the Master Fee Resolution.
(Orig. Ord. 4279; Am. Ord. 6161, 1962; Am. Ord. 80-115, § 105, eff. 8-8-80; Am. Ord. 98-91, § 5, 1-1-99)

SEC. 6-314. CONDITIONS OF SEWER SERVICE.

All persons using the regional sewer system shall pay for such service and for the privilege of connecting to the sewer system at the rates, at the time, and under the conditions set forth in this article, and shall comply with all regulations set forth in this article relating to the use

of such regional sewer system and all applicable State and federal laws required by the Clean Water Act of 1977, the General Pretreatment Regulations (40 C. F.R., Part 403), and all other applicable parts of the Code of Federal Regulations as they are now constituted, or as they may hereafter be amended or recodified. (Orig. Ord. 4341; Am. Ord. 5777, 1960; Am. Ord. 98-91, § 6, 1-1-99; Am. Ord. 2002-73, § 3, eff. 1-23-02).

SEC. 6-315. MONITORING FACILITIES.

(a) **Required to Install.** The Control Authority shall require the user to install sampling and/or monitoring equipment, including manholes, as necessary. The user's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the user at the user's own expense. All devices used to determine wastewater flow and quality shall be calibrated, at a frequency to be determined by the Control Authority, to ensure their accuracy. The sampling and monitoring facilities shall be provided in accordance with the city's requirements and all applicable construction standards and specifications. Construction shall be completed within ninety (90) days following written notification by the Control Authority unless a time extension is granted by the Control Authority.

(b) **Location of Equipment.** The sampling and monitoring equipment shall be situated on the user's premises, but the Control Authority may, when such a location would be impractical or cause undue hardship on the user, allow the facility to be constructed in the public right-of way and located so that it will not be obstructed by landscaping or parked vehicles.

(c) **Access to Equipment.** If the monitoring facility is inside the user's fence, there shall be accommodations to allow access for city personnel, such as a gate secured with a city lock. There shall be ample room in or near such sampling manhole to allow accurate sampling and compositing of samples for analysis.

(d) **Effluent Meter and Composite Sampler.** New industrial users or existing users planning a remodel of existing process facilities and/or pretreatment system which contribute high strength wastewater to the POTW shall install a nonresetable totalizing effluent meter and a flow proportioned composite sampler which is controlled by a flow meter.

(e) **Provisions for Existing Users.** Existing industrial users shall be subject to the provisions of Section 6-315(a), (b), (c), and (d) at the discretion of the Control Authority.

(f) **Plan Review.** Detailed plans showing the operation and proposed installation of all monitoring and/or sampling equipment shall be submitted to the Control Authority for review and shall be acceptable to the Control Authority before installation of the equipment. Any subsequent changes to any sampling and/or monitoring equipment shall be reported to and be acceptable to the Control Authority. (Added Ord. 2002-73, § 4, eff. 1-23-02).

SEC. 6-316. PRETREATMENT.

(a) **Pretreatment Required.** Users shall provide necessary wastewater treatment as required to comply with this article and shall achieve compliance with all federal categorical pretreatment standards and/or city effluent limitations within the time limitations specified by federal pretreatment regulations or the Control Authority, whichever is more stringent.

(b) **Pretreatment Equipment Maintenance.** Any equipment required to pretreat wastewater to a level acceptable to the Control Authority shall be provided, operated, and maintained at the user's expense.

(c) **Pretreatment Equipment Plan Review.** Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the Control Authority before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this article. Any subsequent changes in the pretreatment facilities or operating procedures shall be reported to and be acceptable to the Control Authority prior to the user's initiation of the changes.

(d) **Pretreatment Records.** All records relating to compliance with pretreatment standards shall be made available to the Control Authority upon request.
(Added Ord. 2002-73, § 5, eff. 1-23-02).

SEC. 6-317. ADDITIONAL PRETREATMENT MEASURES.

(a) **Right to Restrict Flows.** Whenever deemed necessary, the Control Authority may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this ordinance.

(b) **Flow Equalization Required.** The Control Authority may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

(c) **Combustible Gas Detection Meter Required.** Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.
(Added Ord. 2002-73, § 6, eff. 1-23-02).

SEC. 6-318. HAULED WASTEWATER.

(a) **Permit Required.** Liquid waste haulers shall be required to obtain a wastewater discharge permit. In addition, liquid waste haulers vehicles are required to meet all local and State permit requirements for the hauling of liquid waste.

(b) **Accepted Discharge Location.** Approved residential or non-residential liquid waste may be introduced into the POTW only at locations designated by the Control Authority, and at such times as are established by the Control Authority. Such waste shall not violate Section 6-327 of this ordinance or any other requirements established by the city.

(c) **Accepted Types of Waste.** Liquid waste haulers of residential or domestic type of waste (e.g. septic tanks or chemical toilets) shall transport waste originating in Fresno County only, unless specifically permitted by the Control Authority. Liquid waste haulers of non-residential waste (e.g. grease traps, grease interceptors or approved industrial waste) may transport these wastes originating within and outside of Fresno County.

(d) **Manifest Required.** Liquid waste haulers shall provide a manifest for every load and any other information as specified in the manifest. In the case where a liquid hauler services multiple generators in one event, the manifest should list each generator. The manifest shall be of a form approved by the Control Authority and shall include, at a minimum:

(1) The name and address of the source of the waste;

(2) The volume of waste generated; and

(3) The truck identification.

(Added Ord. 2002-73, § 7, eff. 1-23-02; Am. Ord. 2013-16, § 2, 7-18-13).

SEC. 6-319. PROBLEM DISCHARGES.

(a) **Protection Required.** Each user shall provide protection from accidental discharges, slug loads, or discharges that are otherwise determined to be non-routine or unusual in nature, that may cause potential problems for the POTW.

(b) **Protection Equipment Maintenance.** Equipment to protect from the problem discharges listed in subsection (a) above shall be provided and maintained at the user's expense.

(c) **Protection Equipment Plan Review.** Detailed plans showing facilities and operating procedures to provide this protection shall be submitted to the Control Authority for review, and shall be acceptable to the Control Authority before construction of the facility. All existing users shall complete such a plan as required by the Control Authority. Review and approval of such plans and operating procedures shall not relieve the industrial user from the responsibility of modifying the facility as necessary to provide the protection necessary to meet the requirements of this article.

(d) **Emergency Notification Procedure for Employees.** Employers shall ensure that all employees who may cause or suffer to occur a discharge as described in subsection (a) above are advised of the emergency notification procedure.

(Added Ord. 2002-73, § 8, eff. 1-23-02).

SEC. 6-320. EMERGENCY SLUG CONTROL AND RESPONSE PLAN.

(a) **Evaluation.** The Control Authority shall evaluate whether each Significant Industrial User needs a plan or other action to control slug discharges. For industrial users identified as significant prior to November 14, 2005, this evaluation must have been conducted at least once by October 14, 2006; additional Significant Industrial Users must be evaluated within

one (1) year of being designated a Significant Industrial User. The Control Authority may require any user to develop, submit for approval, and implement such a plan. Alternatively, the Control Authority may develop such a plan for any user.

(b) **Information Required.** An Emergency Slug Control and Response Plan shall address, at a minimum, the following:

(1) Description of all discharge practices;

(2) Description of stored chemicals;

(3) Procedures for immediately notifying the Control Authority of slug discharges, including any discharge that would violate a prohibition under 40 C.F.R. 403.5(b), with procedures for follow-up written notification within five (5) days;

(4) If necessary, procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants (including solvents), and/or measures and equipment for emergency response.

(Added Ord. 2002-73, § 9, eff. 1-23-02; Am. Ord. 2019-021, § 2, eff. 9-28-19).

SEC. 6-321. CONFIDENTIAL INFORMATION.

(a) **Public Access.** All information and data concerning a user obtained from reports, questionnaires, wastewater discharge permit applications, wastewater discharge permits, monitoring programs, and inspections shall be available to the public without restriction unless the user specifically requests otherwise, and is able to demonstrate to the satisfaction of the Control Authority that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data.

(b) **Access to Governmental Agencies.** When requested by the person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public but shall be made available immediately to governmental agencies for uses related to the Pretreatment Program, and in enforcement proceedings involving the person providing the report.

(c) **Effluent Data Unrestricted.** Wastewater constituents and characteristics and other "effluent data" as defined by 40 C.F.R. 2.302 will not be recognized as confidential information and will be available to the public without restriction.

(Added Ord. 2002-73, § 10, eff. 1-23-02).

SEC. 6-321.1. FATS, OILS, & GREASE (FOG) CONTROL PROGRAM.

(a) **Title.** This section shall be referred to as the "City of Fresno FOG Control Program Ordinance" or "FOG Ordinance."

(b) **Purpose.** The purpose of the FOG Ordinance is to reduce Sanitary Sewer Overflows and blockages, and to protect public health and the environment by minimizing public exposure to unsanitary conditions. By controlling the discharge of fats, oils and grease to the wastewater collection system, excessive buildup in sewer lines can be lessened, thereby increasing the system's operating efficiency and reducing the number of sewer line blockages and overflows.

(c) **Definitions.** For purposes of this section,

(1) "Food Service Establishment" or "FSE" means any facility defined in California Uniform Retail Food Service Establishments Law (CURFFL) Section 113785, and any commercial entity discharging into the city sewer system and is consequently regulated by the Control Authority, either directly or indirectly through a Joint Powers Agreement, operating in a permanently constructed structure such as a room. building, or place, or portion thereof, maintained, used, or operated for the purpose of storing, preparing, serving, or manufacturing, packaging, or otherwise handling food for sale to other entities, or for consumption by the public, its members or employees, and which has any process or device that uses or produces FOG, or grease vapors, steam, fumes, smoke or odors that are required to be removed by a mechanical exhaust ventilation system, as required in CURFFL Section 114296. A limited food preparation establishment is not considered a Food Service Establishment when engaged only in reheating, hot holding or assembly of ready to eat food products and as a result, there is no wastewater discharge containing a significant amount of FOG. A limited food preparation establishment does not include any operation that changes the form, flavor, or consistency of food.

(2) "Food Service Establishment, Existing" or "Existing FSE" means any Food Service Establishment that has been in continuous operation since before the effective date of this ordinance under the same ownership.

(3) "Grease Interceptor" means a plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept nonpetroleum fats, oils, and grease (FOG) from a wastewater discharge. Grease interceptor is a general term used to include gravity grease interceptors, grease removal devices and hydro-mechanical grease interceptors.

(i) "Gravity Grease Interceptor" means a plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept nonpetroleum fats, oils, and grease (FOG) from a wastewater discharge and is identified by volume, 30 minute retention time, baffle(s), not less than two compartments, a total volume of not less than 300 gallons (1135 L), and gravity separation. Gravity grease interceptors are generally installed outside the facility.

(ii) "Grease Removal Device" means a hydromechanical grease interceptor that automatically, mechanically removes nonpetroleum fats, oils and grease (FOG) from the interceptor, the control of which is either automatic or manually initiated.

(iii) "Hydro-mechanical Grease Interceptor" means a plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept nonpetroleum fats, oils, and grease (FOG) from a wastewater discharge and is identified by flow rate, and separation and retention efficiency. The design incorporates air entrainment, hydromechanical separation, interior baffling, or barriers in combination or separately, and one of the following:

a. External flow control, with air intake (vent), directly connected;

b. External flow control, without air intake (vent) directly connected;

c. Without external flow control, directly connected;

d. Without external flow control, indirectly connected.

Hydro-mechanical grease interceptors are generally installed inside the facility.

(4) "Hot spots" means areas in sewer lines that have experienced Sanitary Sewer Overflows or that must be cleaned or maintained frequently to avoid blockages of the sewer system.

(d) **General FOG Discharge Prohibitions.** No Food Service Establishment shall discharge or cause to be discharged into the sewer system FOG that may accumulate and/or cause or contribute to blockages in the sewer system or at the sewer lateral which connects the Food Service Establishment to the sewer system.

(e) **Specific FOG Prohibitions.** The following specific prohibitions shall apply to all Food Service Establishments:

(1) Discharge of any FOG-containing wastewater that is not connected to a grease interceptor is prohibited, unless a waiver has been granted in accordance with Subsection (m).

(2) Non-grease laden sources such as, but not limited to, hand-wash sinks, toilets, urinals, and stormwater, shall not be connected to a grease interceptor.

(3) No dishwasher shall be connected to a hydro-mechanical grease interceptor.

(4) Discharge of wastewater with temperatures in excess of 140° F (60° C) into any hydro-mechanical grease interceptor is prohibited.

(5) Garbage disposals (food grinders) shall be prohibited at all New Food Service Establishments. Existing Food Service Establishments shall remove all garbage disposals when they remodel or within one hundred eighty (180) days from receiving a notice from the Director to remove its garbage disposal(s) based on the Director's finding that the FSE at any time caused or contributed to an SSO.

(6) Direct disposal of any waste cooking oil into any drain or cleanout that is connected to the sewer system is prohibited.

(7) Introduction of any additive into a grease interceptor or directly into the sewer system for the purpose of emulsifying FOG, biologically/chemically treating FOG for grease remediation, or as a supplement to any grease interceptor maintenance is prohibited, unless specifically authorized in writing by the Director.

(8) Discharge of any waste which has been removed from a grease interceptor into the sewer system is prohibited.

(f) **FOG Wastewater Discharge Permit Required.** All Food Service Establishments shall obtain a FOG Wastewater Discharge Permit. Nothing in the permit is intended to relieve the Food Service Establishment of any local, state, or federal regulation. Any denial of a permit may be appealed following the procedure set forth in Chapter 1, Article 4 of this Code.

(g) **Permit Application.** New Food Service Establishments may be required to complete a wastewater discharge permit application. FOG Wastewater Discharge Permit Applications shall include the following information:

(1) Name, address, telephone number, description of the Food Service Establishment and service activities.

(2) Name of any and all principals/owners of the Food Service Establishment.

(3) Name and address of property owner or lessor and the property manager where the Food Service Establishment is located.

(4) Floor, site and plumbing plans showing detailed sewer connections and grease interceptors.

(5) Specifications of all grease interceptors.

(6) Operational statement of the Food Service Establishment.

(7) Any other information as may be specified in the application form.

(h) **FOG Wastewater Discharge Permit Conditions.**

(1) FOG Wastewater Discharge Permits must contain the following:

(i) A statement that indicates the wastewater discharge permit duration.

(ii) A statement that the wastewater discharge permit is nontransferable.

(iii) A statement of applicable civil and criminal penalties for violation of permit and FOG ordinance.

(2) FOG Wastewater Discharge Permits may contain the following conditions or limits if found necessary to meet the intent of this Ordinance by the Director:

(i) Limits on discharge of FOG and other pollutants.

(ii) Requirements to install, operate, and maintain adequate pretreatment devices including grease interceptors.

(iii) Requirements for proper operation and maintenance of all pretreatment devices.

(iv) Grease interceptor maintenance frequency and schedule.

(v) Requirements for implementing, maintaining, and reporting on the status of Best Management Practices.

(vi) Requirements for maintaining and submitting logs and records, including waste hauling records and manifests and to have such records available for inspection.

(vii) Requirements to self-monitor.

(viii) Additional requirements as may be determined to be reasonably appropriate by the Director or as specified by other Regulatory Agencies to protect the collection system.

(ix) Other terms and conditions, which may be reasonably applicable to ensure compliance with the FOG Control Program.

(i) **FOG Wastewater Discharge Permit Modifications.** FOG Wastewater Discharge Permit modifications are subject to Section 6-335 (h) of this Article consistent with the terms, requirements and policies in this section.

(j) **Best Management Practices.** All Food Service Establishments shall implement Best Management Practices (BMPs) in an effort to minimize the discharge of FOG to the sewer system, including, but not limited to, the following, as applicable:

(1) Installation of Drain Screens. Drain screens shall be installed on all drainage pipes in food preparation areas.

(2) Segregation and Collection of Waste Cooking Oil. All waste cooking oil shall be collected and stored properly in recycling receptacles such as barrels or drums. Such recycling receptacles shall be maintained properly to insure that they do not leak. Licensed waste haulers or an approved recycling facility must be used to dispose of waste cooking oil.

(3) Disposal of Food Waste. All food waste should be disposed of directly into the trash or garbage and not into sinks and shall be disposed of in a manner that will ensure against leakage in the trash container or anywhere else.

(4) Employee Training. Employees of the Food Service Establishment shall be trained by ownership/management periodically as specified in the FOG wastewater discharge permit on the following subjects:

(i) Dry-wiping pots, pans, dish ware and work areas before washing to remove grease.

(ii) Properly disposing food waste and solids in plastic bags prior to disposal in trash bins or containers to prevent leaking and odors.

(iii) The location and use of absorption products to clean under fryer baskets and other locations where grease may be spilled or dripped.

(iv) Properly disposing grease or oils from cooking equipment into a proper grease receptacle without spilling.

(5) Maintenance of Mechanical Exhaust Ventilation Filters. Filters shall be cleaned as frequently as necessary to be maintained in good operating condition. The wastewater generated from cleaning exhaust filters shall be disposed of properly.

(6) Kitchen Signage. Best management and waste minimization practices shall be posted conspicuously in the food preparation and dishwashing areas at all times.

(k) **FOG Pretreatment Required for New and Existing Food Service Establishments.** Food Service Establishments are required to install, operate and maintain an approved type and adequately sized gravity grease interceptor necessary to maintain compliance with the objectives of this section, subject only to the variance and waiver provisions and other exceptions of this section. The gravity grease interceptor shall be adequate to separate and remove FOG contained in wastewater discharges from Food Service Establishments prior to discharge to the sewer system. Fixtures, equipment, and drain lines located in the food preparation and cleanup areas of Food Service Establishments that are sources of FOG discharges shall be connected to the gravity grease interceptor.

(1) New Food Service Establishments shall include and install gravity grease interceptors prior to commencing discharges of wastewater to the sewer system.

(2) Existing Food Service Establishments shall install gravity grease interceptors in any of the following circumstances:

(i) When the FSE changes ownership;

(ii) When any change in operation results in or has the potential to result in the increase of the amount of FOG generated and/or discharged by the FSE in an amount that alone or collectively causes or creates a potential SSO to occur;

(iii) When it is determined by the Director that the FSE caused or contributed to grease-related blockages in the sewer system, has sewer laterals connected to hot spots, or has been determined to contribute significant FOG to the sewer system, based on inspection and sampling;

(iv) During a remodel;

(v) Any other time the Director reasonably determines that installation of a grease interceptor is necessary to avoid an adverse impact to the sewer system.

(3) Any Existing FSE that receives a notice from the Director to install a gravity grease interceptor must install the interceptor within 180 days unless otherwise required by the Director.

(l) **Variance of Gravity Grease Interceptor Requirement.** Notwithstanding any other provision in this section, an FSE may obtain a variance, at the Director's discretion, from the gravity grease interceptor requirement to allow alternative pretreatment technology that is equally effective in controlling the FOG discharge in lieu of a gravity grease interceptor.

The variance may be rescinded if subsequent monitoring shows accumulation of FOG in the sewer lateral or the collection system downstream of the Food Service Establishment's connection or if the Food Service Establishment caused or contributed to a Sanitary Sewer Overflow. A gravity grease interceptor must be installed within 180 days of the rescission of a variance. Denial or revocation of a variance may be appealed pursuant to Chapter 1, Article 4 of this Code.

(m) **Waiver from Grease Interceptor Requirement.** When granting a variance is not possible because the installation of a grease interceptor is not feasible and no equivalent alternative pretreatment can be implemented, an FSE may apply for and be granted a conditional waiver with the imposition of line maintenance cost recovery charges as established in the Master Fee Schedule. An FSE requesting a waiver must demonstrate that it has negligible FOG discharge and insignificant impact to the sewer system. Although a waiver may be granted, the Director may impose additional requirements including, but not limited to, the requirement to provide space and plumbing segregation for future installation of a grease interceptor. Denial or revocation of a waiver may be appealed pursuant to Chapter 1, Article 4.

(n) **Cost Recovery.** All costs incurred for cleaning the sewer line to remove FOG buildup caused or contributed to by an FSE shall be reimbursed to the city by the FSE. Factors for determining responsible parties for cost recovery charges include the FSEs that are discharging into the affected sewer line, the presence of interceptors or alternative pretreatment in the FSE, proper maintenance of grease interceptors by the FSE, implementation of BMPs, and any waivers or variances granted.

(o) **Drawing Submittal Requirements.** At the time of obtaining a FOG Wastewater Discharge Permit or upon request by the Director:

(1) FSEs may be required to submit copies of design and as-built facility site plans, mechanical and plumbing plans and details to show all sewer locations and connections. The documents shall be in a form acceptable to the Director for review of existing grease interceptors, monitoring facilities, metering facilities and operating procedures. The review of plans and procedures shall in no way relieve the FSE of the responsibility to modify the facilities or procedures in the future, as necessary to produce an acceptable discharge and to meet the requirements of this FOG Control Program.

(2) FSEs may be required to submit a schematic drawing of the grease interceptor or alternative pretreatment, piping and instrumentation diagram, and wastewater characterization report.

(3) At the Director's discretion, all drawings and/or reports may be required to be prepared by a California Registered Civil, Chemical, or Electrical Engineer.

(p) **Gravity Grease Interceptor Requirements.** Any FSE that is required to provide FOG pretreatment shall install operate and maintain an approved type and properly sized gravity grease interceptor, or other grease interceptor authorized under an approved variance, necessary to maintain compliance with the purpose of the FOG Control Program.

(1) Approved gravity grease interceptor sizing and installation shall conform to the latest approved edition of the California Uniform Plumbing Code.

(2) Gravity grease interceptors shall be constructed in accordance with the design approved by the Director and shall have a minimum of two compartments with fittings designed for grease retention.

(3) Gravity grease interceptors shall be installed at a location where it shall be at all times easily accessible for inspection, cleaning and removal of accumulated grease.

(i) Gravity grease interceptors may not be installed in any part of the building where food is handled.

(ii) If a location is not available on the property of the FSE, a street encroachment permit may be requested to authorize installation of a gravity grease interceptor in a public access area such as the street or sidewalk area.

(iii) There will be no obstruction from landscaping or parked vehicles, with the exception of parked vehicles in a public access area as granted through a street encroachment permit.

(4) Access structures, with a minimum diameter of twenty-four (24) inches, shall be provided over each gravity grease interceptor chamber and sanitary tee. The access structures shall also have readily removable covers to facilitate inspection, grease removal and wastewater sampling activities.

(5) The original design of the gravity grease interceptor shall not be modified unless the manufacturer recommends the modification in writing.

(i) Any modification will be at the Food Service Establishment's expense.

(ii) The city is not liable for any non-compliance as a result of any modification.

(q) **Gravity grease Interceptor Maintenance Requirements.** Gravity grease interceptors shall be maintained in efficient operating condition by periodic complete removal of all contents of the devices including wastewater, accumulated FOG, floating materials, sludge and solids.

(1) No FOG that has accumulated in a grease interceptor shall be allowed to pass into any sewer lateral, sewer system, storm drain, or public right of way during maintenance activities.

(2) Food Service Establishments that are located in an area that is considered to be a hot spot will be required to submit data and information necessary to establish a maintenance frequency for their gravity grease interceptor.

(3) The maintenance frequency for all Food Service Establishments with a gravity grease interceptor shall be determined in one of the following methods:

(i) Gravity grease interceptors shall be fully pumped out and cleaned at a frequency such that the combined FOG and solids accumulation does not cause or have the potential to cause a sanitary sewer overflow. Regardless, the interval between cleaning shall not exceed six (6) months.

(ii) The owner/operator of a Food Service Establishment may submit a request to the Director asking for a change in the maintenance frequency at any time. The Food Service Establishment has the burden of responsibility to prove that the change reflects actual operating conditions based on the average FOG accumulation over time. The Food Service Establishment must also show that it is in full compliance with the conditions of its FOG Wastewater Discharge Permit and this section. Upon approval by the Director, the FOG Wastewater Discharge Permit will be modified accordingly to reflect the change in maintenance frequency.

(iii) If the gravity grease interceptor contains, at any time, FOG and solids accumulation that causes a sanitary sewer overflow, the Food Service Establishment shall be required to have the gravity grease interceptor serviced immediately so that all FOG, sludge and other materials are completely removed from the interceptor. If necessary, the Food Service Establishment may be required to increase the maintenance frequency of the gravity grease interceptor from its current frequency.

(4) Wastewater, accumulated FOG, floating materials, sludge, solids, and other materials removed from the gravity grease interceptor shall be disposed offsite properly by licensed waste haulers in accordance with federal, state, and/or local regulations.

(r) **Hydro-mechanical Grease Interceptor Requirements.** Hydro-mechanical grease interceptors may be authorized by the Director through a variance under Subsection (k) with the following conditions:

(1) Hydro-mechanical grease interceptors shall be installed in waste lines leading from drains, sinks and other fixtures or equipment where grease may be introduced into the sewer system in quantities that can cause blockage.

(2) Hydro-mechanical grease interceptors shall be properly sized and installed in accordance with the latest approved edition of the California Uniform Plumbing Code.

(3) The original design of the hydro-mechanical grease interceptor shall not be modified unless the manufacturer recommends the modification in writing.

(i) Any modification will be at the FSE's expense.

(ii) The city is not liable for any non-compliance as a result of any modification.

(4) Hydro-mechanical grease interceptors shall be maintained in efficient operating conditions by removing accumulated grease. The interval between cleaning will be established by the Director. Baffles shall be removed and cleaned during the maintenance process, when applicable.

(5) Hydro-mechanical grease interceptors shall be kept free of all food residues and any FOG waste removed during the cleaning and scraping process.

(6) Hydro-mechanical grease interceptors shall be inspected periodically to check for leaking seams and pipes and for effective operation of the baffles and flow regulating devices.

(7) Hydro-mechanical grease interceptors and their baffles shall be maintained free of all caked on FOG and waste.

(8) Dishwashers and food waste disposal units shall not be connected to or discharged into any hydro-mechanical grease interceptor.

(9) The temperature of any water entering a hydro-mechanical grease interceptor shall not exceed 140° F (60° C).

(s) **Monitoring Requirements.**

(1) The Director may require, through the FOG Wastewater Discharge Permit or at any time, an FSE to construct and maintain in proper operating condition, at the FSE's sole expense, flow monitoring, constituent monitoring, and/or sampling devices.

(2) The location of monitoring or metering devices shall be subject to approval by the Director.

(3) At all times, FSEs shall provide immediate, clear, safe and uninterrupted access to authorized representatives of the city to all monitoring and metering devices.

(4) FSEs may be required by the Director to submit waste analysis plans, contingency plans, and meet other necessary requirements to ensure proper operation and maintenance of any grease interceptor and compliance with this section, (s) Record Keeping Requirements. FSEs shall keep all records, including manifests, receipts and invoices of all cleaning and maintenance of grease interceptors. All records shall be made available to authorized representatives of the city upon request. In addition to the above mentioned documents, records include logbooks of maintenance activity, BMPs and employee training, sampling data, spill reports, line cleaning reports, and any other information deemed appropriate by the Director to ensure compliance with the FOG Control Program and this section.

(Added Ord. 2008-33, § 12, eff. 6-22-08; Am. Ord. 2019-021, § 3, eff. 9-28-19).

SEC. 6-322. RIGHTS OF INSPECTION AND SAMPLING.

(a) **Rights of Entry.** The Control Authority shall have the right to enter premises of any user to determine whether the user is complying with all requirements of this ordinance and any wastewater discharge permit or order issued hereunder. Owners or occupants of premises where wastewater is created or discharged shall allow the EPA, the State, the city or the city's representative ready access at all reasonable times to all parts of the premises for the purpose of inspection, sampling or record examination, or in performance of any of their duties.

(b) **Rights to Monitor.** The Control Authority shall have the right to set up on the user's property such devices as are necessary to conduct sampling inspections, compliance monitoring and/or metering operations. The Control Authority shall also have the right to conduct unbeknown surveillance monitoring of the user's wastewater discharge offsite of the facility premises, taking into consideration all potential contributors to the same wastestream, and enforcing all applicable provisions of this article as necessary. Nothing provided herein is intended to limit the rights of the city in any way in regards to its use and control of the city's facilities.

(c) **Access to Facilities.** Where a user has security measures in force which would require proper identification and clearance before entry onto the premises, the user shall make necessary arrangements with his security guards so that, upon presentation of suitable identification, personnel from the Control Authority will be permitted to enter without delay for purposes of performing their specific responsibilities.

(d) **Obstructions to Access.** Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled or monitored shall be promptly removed by the user at the written or verbal request of the Control Authority and shall not be replaced. The costs of clearing such access shall be born by the user.

(e) **Access Delayed or Refused.** Unreasonable delays in allowing the Control Authority access to a user's premises or refusing access to the Control Authority to a user's premises shall be a violation of this ordinance.

(f) **Administrative Inspection Warrant.** If an owner, occupant or agent refuses permission to enter, or inspect, the Control Authority may seek an Administrative Inspection Warrant pursuant to the procedures provided in Code of Civil Procedure Sections 1822.50 through 1822.59 as amended, to perform the duties imposed upon the Control Authority pursuant to this article.
(Orig. Ord. 4279; Am. Ord. 98-91, § 7, 1-1-99; Am. Ord. 2002-73, § 11, eff. 1-23-02; Am. Ord. 2008-33, § 3, eff. 6-22-08).

SEC. 6-323. ENFORCEMENT.

(a) **Control Authority.** The Control Authority shall be responsible for the enforcement of this article. The Control Authority is responsible for preparing, adopting, administering and enforcing the Enforcement Response Plan.

(b) **Violations.** A person is in violation of this article whenever the person violates or causes a violation of any of the terms of this article, any condition or provision of a permit issued pursuant to this article, any rule adopted by the city to administer or enforce this article, and any notice, order, demand issued by Control Authority pursuant to an Enforcement Response Plan. Any violation of this article shall be a public nuisance.

(c) **Available Remedies for Violations.** Notwithstanding any other remedies available in this Code or in state or federal law, the Control Authority may do any of the following to address a violation of this article:

(1) Take action pursuant to an Enforcement Response Plan.

(2) Issue a notice of compliance.

(3) Issue an administration citation to the user and/or the person or entity that caused the violation.

(4) Modify or revoke the user's permit.

(5) Cease city utility service pursuant to a show cause hearing.

(6) Request City Attorney's Office to pursue civil and/or criminal action pursuant to local, state or federal law, including, but not limited to California Government Code Section 54740. The Control Authority shall have the authority to seek or assess civil or criminal penalties in at least the amount of $1,000 a day for each violation of pretreatment standards and requirements by industrial users.

(d) **Enforcement Response Plan.** The Control Authority, in his or her discretion, may take action pursuant to an Enforcement Response Plan as appropriate to the situation. Any action taken pursuant to an Enforcement Response Plan shall be pursuant to the provisions of the Enforcement Response Plan, except that to the extent the Control Authority issues an administrative citation or issues any order that requires the user to cease discharging all waste to the City's sewer system, the user may appeal the citation or the order pursuant to the procedures in Chapter 1, Article 4. Filing an appeal under Chapter 1, Article 4 does not stay enforcement of the citation or order pursuant to Subsection 1-408(f). If a user has an appeal right pursuant to this subsection, the Control Authority shall notice the user of his/her/its appeal right at the time the administrative citation and/or order ceasing use is issued.

(e) **Administrative Citation.** The Control Authority may issue an administrative citation with a fine of up to twenty-five thousand dollars ($25,000) per violation per day or as provided in the Master Fee Schedule. The Master Fee Schedule may provide for a scheme of penalties for types and/or reoccurrence of violations. Administrative citations shall be issued pursuant to Section 1-308. In addition to any other means of collection, the penalty may be collected through the user's city issued utility bill pursuant to Article 1 of Chapter 6 (including discontinuance of service upon non-payment).

(f) **Modify or Revoke Permit.** The Control Authority may modify or revoke a user's discharge permit pursuant to Section 6-335.

(g) **Show Cause Hearing.** Terminating Utility Service. If a violation is not corrected by timely compliance of an order, notice or demand pursuant to Enforcement Response Plan or pursuant to Subsection (c)(2), above, the Control Authority may order any user to show cause before the Director why the user's water and sewer services should not be terminated, in accordance with the following:

(1) **Notice of Show Cause Hearing.** A notice shall be served on the user, specifying the time and place of a hearing to be held by the Director regarding the violation, and

directing the offending party to show cause before the Director why an order should not be made directing the termination of water and/or sewer service. The notice of the hearing shall be served personally or by certified mail, return receipt requested, at least ten days before the hearing. Service may be made on an authorized representative of the user, or the occupant(s) and/or owner(s) of record of the property.

(2) **Hearing.** The Director, or his/her designee, shall conduct the hearing and take the evidence of the user and city staff and shall provide the user a reasonable period of time to present his/her/its position.

(3) **Director Action.** After the hearing, the Director may do any of the following based upon substantial evidence that the action is necessary to protect the public health, safety and welfare and/or the city's sewer system:

(i) An order to the user and city staff, directing that the water service be discontinued and/or the sewer connection severed;

(ii) An order to the user and city staff, that following a specified time period, the water service be discontinued and/or the sewer connection severed unless adequate treatment facilities, devices or other related appurtenances shall have been installed or existing treatment facilities, devices or other related appurtenances are properly operated, and such further orders and directives as are necessary and appropriate to ensure compliance with this article.

(iii) Any other action within the authority of the Control Authority.

(4) **Subject to Appeal.** Any order under subparts (3)(ii) or (3)(iii), above, is subject to appeal pursuant to Article 4 of Chapter 1. Users shall be notified of their appeal at the time the Director issues the order.

(5) **Failure to Appear.** The Director may direct staff to immediately disconnect the water and/or sewer service if the user fails to appear for the hearing or otherwise respond to the notice of the show cause hearing and if the Director finds it is necessary to protect the public health, safety and welfare and/or the city's sewer system.

(6) **Process for Disconnection from Water or Sewer.** The procedures for water service disconnection shall be in accordance with the provisions of Chapter 6, Article 1, of this Code, and severance of sewer connection shall be in accordance with guidelines established by the Director.

(7) **Reinstate Utility Service.** The Control Authority shall reinstate water service and approve reconnection to the regional sewer system upon proof of the elimination of the non-complying discharge. Reinstatement of water service shall be in accordance with Chapter 6, Article 1, of this Code, and reconnection to the regional sewer system shall be in accordance with guidelines established by the Director.

(h) **Fraud or False Statements.** Pursuant to the provisions of 18 U.S.C. §§ 1001, relating to fraud and false statements, and the provisions of Section 309(c)(2) of the Act governing false statements, representations or certification in reports required under the Act, any person who knowingly makes any false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained for this article or a Wastewater Discharge Permit, or who falsifies, tampers with or knowingly renders inaccurate any monitoring device or method required under this article, shall, upon conviction, be punished by a fine of not more than ten thousand dollars ($10,000) or by imprisonment for not more than six (6) months, or by both.

(i) **Cost Reimbursement.** All costs incurred by the city by any means, whether direct or indirect, as a result of a user failing to comply with any provision of this article shall be reimbursed to the city by that user. Costs shall be collected pursuant to Article 5 of Chapter 1, except that in addition to the means of collection provided in the Cost and Penalty Recovery Ordinance, the city may also seek collection through the user's city issued utility bill pursuant to Article 1 of Chapter 6 (including discontinuance of service upon non-payment).

(j) **Remedies Nonexclusive.** The remedies provided for in this section are not exclusive or mutually exclusive. The Control Authority may take any, all, or any combination of the remedies provided in this section, this code and/or State or Federal law against a noncompliant user. While enforcement will generally be in accordance with the Enforcement Response Plan, the Control Authority, in his or her discretion, is not limited by the Enforcement Response Plan from taking other actions to enforce the provisions of this article.

(k) **Member Agency Responsibility.** Pursuant to agreements with the city, Clovis and other member agencies of the city's POTW shall incorporate into their ordinances, regulations or both, and shall perform, the same enforcement duties defined in this article, and shall enforce the same prohibitions on discharge, reporting requirements, and wastewater discharge permit requirements as are contained in this article.

(Orig. Ord. 4279; Am. Ord. 76-33, § 2, eff. 5-9-76; Am. Ord. 83-41, § 4, eff. 7-1-83; Am. Ord. 89-10, § 2, eff. 2-17-89; Am. Ord. 92-5, §§ 1—10, 2-21-92; Am. Ord. 98-91, §§ 8—14, 1-1-99; Am. Ord. 2002-73, § 12, eff. 1-23-02; Am. Ord. 2008-33, §§ 2, 13, eff. 6-22-08; Am. Ord. 2019-021, § 4, eff. 9-28-19).

SEC. 6-324. EMERGENCY SUSPENSIONS.

The Control Authority may immediately suspend a user's discharge, after informal notice to the user, whenever such suspension is necessary to stop an actual or threatened discharge which reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons. The Control Authority may also immediately suspend a user's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents, or may present, an endangerment to the environment.

(a) **Immediate Cessation upon Notification.** Any user notified of a suspension of its discharge shall immediately stop or eliminate its contribution to the sewer system. In the

event of a user's failure to immediately comply voluntarily with the suspension order, the Control Authority may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The Control Authority may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the Control Authority that the period of endangerment has passed, unless the termination proceedings are initiated against the user.

(b) **Statement of Cause and Preventative Measures.** A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence, to the Control Authority prior to the date of any show cause or termination hearing.

(c) **Prior Hearing Not Required.** Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section. (Added Ord. 2002-73, § 13, eff. 1-23-02).

SEC. 6-325. TERMINATION OF DISCHARGE.

In addition to the provisions in Section 6-335(k), any user who violates the following conditions is subject to discharge termination:

(a) Violation of Wastewater Discharge Permit conditions;

(b) Failure to accurately report the wastewater constituents and characteristics of its discharge;

(c) Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

(d) Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling;

(e) Failure to report an accidental or slug discharge as required in Section 6-336(k) of this article; or

(f) Violation of any pretreatment standard or requirement, or any terms of the Wastewater Discharge Permit, or this ordinance. (Added Ord. 2002-73, § 15, eff. 1-23-02).

SEC. 6-326. PUBLICATION OF USERS IN SIGNIFICANT NONCOMPLIANCE.

The Control Authority shall publish at least annually, in a newspaper of general circulation in the Fresno area, a list of all users which, at any time during the previous twelve months were in significant noncompliance with applicable pretreatment requirements, as defined in 40 C.F.R. § 403.8(f)(2)(vii). The notification shall include the parameter violated, the enforcement actions taken by the Control Authority, and the corrective actions taken by the user(s). (Added Ord. 2002-73, § 15, eff. 1-23-02).

SEC. 6-327. DISCHARGE PROHIBITIONS.

(a) **General Prohibitions.** No user shall introduce or cause to be introduced, directly or indirectly, to the POTW any pollutant or wastewater which will cause Pass Through or Interference. These general prohibitions apply to all users of the POTW whether or not the users are subject to categorical pretreatment standards or any other national, state or local pretreatment standards or requirements.

(b) **Specific Prohibitions.** No user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:

(1) Any liquids, solids or gases which by reason of their nature or quantity are, or may be, sufficient either alone or by interaction with other substances to cause fire or explosion or be injurious in any other way to the POTW or to the operation of the POTW, including, but not limited to, wastestreams with a closed-cup flashpoint of less than 140° F or 60° C.

(2) Any wastewater with a pH less than 6 or greater than 12.4, or having any corrosive or detrimental characteristic that may cause injury to wastewater treatment or maintenance personnel, or may cause damage to structures, equipment or other physical facilities of the regional sewer system.

(i) Where an industrial user continuously measures the pH of wastewater, the industrial user shall maintain the pH of such wastewater within the range set forth above, except excursions from the range are permitted subject to the following limitations:

a. The total time during which the pH values are outside the required range of pH values shall not exceed 7 hours and 26 minutes in any calendar month; and

b. No individual excursion from the range of pH values shall exceed 60 minutes.

(ii) For purposes of this subsection, an excursion is an unintentional and temporary incident in which the pH value of discharge wastewater exceeds the range set forth above.

(3) Solid or viscous substances which may cause obstruction to the flow in the POTW resulting in Interference.

(4) Any pollutants, including oxygen-demanding pollutants (e.g., BOD) released in a Discharge at a flow rate and/or pollutant concentration which will cause Interference to the POTW.

(5) Any wastewater containing heat in amounts which will inhibit biological activity in the POTW resulting Interference, but in no case heat in such quantities that will cause the temperature at the treatment plant to exceed 104°F (40°C) unless the Approval Authority, upon request of the POTW, approves alternate temperature limits.

(6) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause Interference or Pass Through.

(7) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems.

(8) Any trucked or hauled pollutants except at discharge points designated by the POTW.

(9) Any other industrial wastes, unless such wastes have first been passed through screens having openings not exceeding one-half inch in dimension; provided, however, that the Control Authority, by written permit, may authorize the discharge into the regional sewer system of such wastes if they are first passed through screens having larger openings, if the Control Authority is satisfied that such larger openings will provide screening efficiency and effectiveness equal to or better than that provided by the smaller openings.

(10) Any wastewater containing toxic pollutants in sufficient quantity, either singly or by interaction with other pollutants, to injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving waters of the POTW, or exceed the limitation set forth in a categorical pretreatment standard. A toxic pollutant shall include, but not be limited to, any pollutant identified pursuant to Section 307(a) of the Act.

(11) Any noxious or malodorous liquids, gases, or solids which either singly or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

(12) Any substance which may cause the POTW's effluent or any other product of the POTW, such as residues, sludges or scums, to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or disposal criteria, guidelines or regulations developed under Section 405 of the Act, any criteria, guidelines or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act or the Toxic Substances Control Act, or state criteria applicable to the sludge management method being used.

(13) Any substance which will cause the POTW to violate the Waste Discharge Requirements mandated by the state.

(14) Any wastewater with objectionable color not removed in the treatment process.

(15) Any wastewater containing radioactive material in sufficient quantity to interfere with any treatment process or constitute a hazard to humans or animals.

(16) Any wastewater containing substances that may precipitate, solidify or become viscous at temperatures between 40°F (4.4°C) and 100°F (37.7°C)

(17) Any recognizable portions of the human anatomy.

(18) Any storm water, surface water, groundwater, roof runoff, or subsurface drainage which is acceptable to be discharged to other facilities where such facilities are available.

(19) Any cooling water which is sufficiently clean to be discharged to some other suitable facility, such as a storm drain, where such facilities are available.

(20) Any pool water, spa water, or pond water which is acceptable to be discharged to other facilities where such facilities are available.

(21) Any malodorous substance such as hydrogen sulfide or any other substance which will cause offensive odors in the sewer system or at the treatment plant.

(22) Any substance which is not amenable to treatment by the processes employed at the treatment plant.

(23) Any substance which will cause corrosive structural damage to the POTW.

(24) Any slug loading without immediate notification to the POTW.

(25) Any wastewater that comes into contact with any process utilizing tetrachloroethene.

(26) Wastewater causing two successive readings on an explosion hazard meter at the point of discharge into the POTW, or at any point in the POTW, of more than five per cent (5%), or any single reading over ten per cent (10%) of the Lower Explosive Limit of the meter.

(c) Compliance by existing sources with the Federal Categorical Pretreatment Standards shall be within three (3) years of the date the standard is promulgated unless a shorter compliance time is specified in the appropriate subpart of 40 C.F.R., Chapter 1, Subchapter N. Upon the promulgation of the Federal Categorical Pretreatment Standards for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this article for sources in that subcategory, shall immediately supersede the limitations imposed under this article. The Director shall notify all affected users of the applicable reporting requirements under 40 C.F.R. § 403.12.

(d) **Local Limits.** The following pollutant limits are established to protect against pass through and interference. No person shall discharge wastewater containing in excess of the following:

Parameter	*Limit Daily Maximum*	*Unit*
Arsenic	0.32	mg/L
Cadmium	0.12	mg/L
Chromium	6.7	mg/L
Copper	2.5	mg/L
Cyanide, Total	0.77	mg/L
Lead	1.2	mg/L

Parameter	*Limit Daily Maximum*	*Unit*
Mercury	0.05	mg/L
Nickel	1.3	mg/L
Silver	1.1	mg/L
Zinc	2.1	mg/L
Phenolic Compounds[1]	300	mg/L
Trichloroethene	0.12	mg/L
Tetrachloroethene	0.77	mg/L
BETX[2]	20	mg/L
Oil and Grease	700	mg/L

[1] 4-Chloro-3-methylphenol, 2-Chlorophenol, 2,4-Dichlorophenol, 2,4-Dimethylphenol, 2,4-Dinitrophenol, 2-Methyl-4,6-dinitrophenol, 2-Nitrophenol, 4-Nitrophenol, Pentachlorophenol, Phenol, 2,4,6-Trichlorophenol as a single constituent or as a cumulative total.

[2]Benzene, ethylbenzene, toluene, and xylene as a single constituent or as a cumulative total.

(e) **Application of Limits.** The limits in Section 6-327(d) apply at the point where the wastewater is discharged to the POTW (also called "end of pipe"). All concentrations for metallic substances are for "total" metals unless indicated otherwise.

(1) Where the process effluent is collected prior to mixing with other wastewaters for proper application of the limits in Section 6-327(d), fixed alternative discharge limits may be derived by the Control Authority. These alternative limits shall be applied to the unmixed effluent. When deriving alternative local limits, the Control Authority shall calculate an alternative daily maximum value using the daily maximum value(s) specified in the appropriate local limit. The industrial user shall comply with the alternative daily maximum limits fixed by the Control Authority until the Control Authority modifies the limits. Modification is authorized whenever there is a material or significant change in the values used in the calculation to fix alternative limits for the regulated pollutant. Upon notification of any such material or significant change, the Control Authority shall calculate new local limits.

(2) The alternative limit for a specified pollutant will be derived by use of the following formula:

$$C_T = \left[\frac{\sum_{i=1}^{n} C_i F_i}{\sum_{i=1}^{n} F_i}\right]\left[\frac{F_T}{F_T - F_D}\right]$$

Where

C_T = the alternative concentration limit for the uncombined wastestream

C_i = the local concentration limit for a pollutant

F_i = the average daily flow (at least a 30-day average) of stream *i*, where the sample was collected

F_D = the average daily flow (at least a 30-day average) from other streams contributing to end of pipe after stream *i*

F_T = the average daily flow (at least a 30-day average) for the industrial user (includes F_i and F_D)

(f) **Equivalent Mass Limits.** The Control Authority may impose mass limitations in addition to, or in place of, the concentration-based limitations listed in Section 6-327(d).

(g) **Contributions Causing Pass Through or Interference.** When the Control Authority determines that a user is contributing to the POTW any of the specific prohibitions listed in Section 6-327(b) in such amounts as to cause pass through or interference, the Control Authority shall:

(1) Advise the user(s) of the impact of the contribution on the POTW, and

(2) Develop effluent limitation(s) for such user(s) to correct the interference with the POTW.

(h) **Best Management Practices.** The Control Authority may develop Best Management Practices (BMPs) to implement the general prohibitions, specific prohibitions, and local limits listed in this section.
(Orig. Ord. 3642 and 4279; Am. Ord. 6940, 1967; Am. Ord. 71-105, 1972; Am. Ord. 76-33, § 3, eff. 5-9-76; Am. Ord. 83-41, § 5, eff. 7-1-83; Am. Ord. 91-14, §§ 6, 7, eff. 3-15-91; Am. Ord. 92-5, §§ 11, 12, eff. 2-21-92; Am. Ord. 98-91, §§ 15—17, 1-1-99; Am. Ord. 2002-73, § 16, eff. 1-23-02; Am. Ord. 2008-33, §§ 4, 14, eff. 6-22-08; Am. Ord. 2019-021, § 5, eff. 9-28-19).

SEC. 6-328. STATE REQUIREMENTS AND LIMITATIONS.

State requirements and limitations on discharge shall apply in any case where they are more stringent than federal requirements and limitations or those in this article.
(Added Ord. 83-41, § 6, eff. 7-1-83; Ord. No. 91-14, §§ 8—11, eff. 3-15-91; Am. Ord. 98-91, §§ 18, 19, 1-1-99; Am. Ord. 2002-73, § 17, eff. 1-23-02).

SEC. 6-329. RIGHT OF REVISION.

The city reserves the right to establish by ordinance or in wastewater discharge permits, more stringent standards, limitations, or requirements on discharges to the POTW if deemed necessary to comply with the objectives presented in Section 6-301.
(Added Ord. 2002-73, § 18, eff. 1-23-02).

SEC. 6-330. DILUTION.

No user shall increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance

with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The Control Authority may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.
(Added Ord. 2002-73, § 19, eff. 1-23-02).

SEC. 6-331. BYPASS.

(a) **Definition.** For the purposes of this section,

(1) "Bypass" means the intentional diversion of wastestreams from any portion of an industrial user's treatment facility.

(2) "Severe property damage" means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

(3) "Monitoring and/or sampling equipment" shall not be considered part of a user's treatment facility.

(b) **Prohibition of Bypass.**

(1) Bypass is prohibited, and the Control Authority may take enforcement action against an industrial user for a bypass, unless:

(i) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(ii) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

(iii) The industrial user submitted notices as required under Subsection (d) of this section.

(2) The Control Authority may approve an anticipated bypass, after considering its adverse effects, if the Control Authority determines that it will meet the three conditions listed in Subsection (b)(1) of this section.

(c) **Bypass Not Violating Applicable Pretreatment Standards or Requirements.** An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of Subsections (b) and (d) of this section.

(d) **Notice.**

(1) If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the Control Authority at least ten (10) days before the date of the bypass, if possible.

(2) An industrial user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the Control Authority within twenty-four (24) hours from the time the industrial user becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The Control Authority may waive the written report on a case-by-case basis if the oral report has been received within twenty-four (24) hours. (Added Ord. 2002-73, § 20, eff. 1-23-02).

SEC. 6-332. VIOLATIONS OF DISCHARGE PROHIBITIONS.

Any user who intentionally or negligently violates all or part of Sections 6-327, 6-330, or 6-331 shall be in violation of this article and subject to the provisions of Section 6-323. (Added Ord. 2002-73, § 21, eff. 1-23-02).

SEC. 6-333. PENALTY ASSESSMENT.

If a user violates any of the provisions of Sections 6-327, 6-330,or 6-331 the penalty designated in the Master Fee Resolution shall be added to the user's sewer service charge. (Added Ord. 2002-73, § 22, eff. 1-23-02).

SEC. 6-334. SEWER CONNECTIONS; PREMISES OUTSIDE CITY.

(a) Persons owning or operating premises outside the city limits of the city may be granted permission to connect their property with the city sewer system.

(b) Permission to connect to the sewer system will be granted by the Director if all provisions of this article are complied with.

(c) Every permit granted for service outside the city limits of the city shall be subject to the following conditions:

(1) That payment of the applicable sewer connection charge, established by this article, shall be made before connection of the premises to the sewer.

(2) That all regulations of the city will be followed with respect to use of the city sewer system.

(3) That drainage from roofs, courts or other areas shall not be allowed to pass into the city sewer system. (Orig. Ord. 2819; Am. Ord. 75-69, § 9, eff. 7-27-75).

SEC. 6-335. WASTEWATER DISCHARGE PERMITS.

(a) **Wastewater Discharge Permit Required.** At the discretion of the Control Authority, all users proposing to connect to or contribute to the POTW shall obtain a Wastewater Discharge Permit before connecting to or contributing to the POTW.

(1) All existing users connected to or contributing to the POTW on the effective date of this section must obtain a Wastewater Discharge Permit within ninety (90) days of such date.

(2) Any user proposing a new connection to the POTW shall obtain a Wastewater Discharge Permit prior to beginning discharge.

(3) Liquid Waste Haulers shall obtain a Wastewater Discharge Permit prior to transporting liquid waste to a discharge point designated by the Control Authority.

(b) **Authorization to Discharge.** The Wastewater Discharge Permit expressly authorizes a user to discharge wastewater to the POTW and is issued for that purpose. If, for any reason, a Wastewater Discharge Permit is revoked, suspended, or otherwise held invalid, authorization to discharge is terminated.

(c) **Wastewater Discharge Permit Enforceability.** Wastewater Discharge Permits shall be expressly subject to all provisions of this Code and all other applicable regulations, user charges and fees established by the city. Any violation of the terms and conditions of a Wastewater Discharge Permit shall be deemed a violation of this ordinance. Obtaining a Wastewater Discharge Permit does not relieve a permittee of its obligation to comply with all federal and state pretreatment standards or with any other requirements of federal, state, and local law.

(d) **Authority to Deny New or Increased Contributions.** The Control Authority shall have the authority to deny or condition new or increased contributions of pollutants or changes in the nature of pollutants to the POTW by permitted and non-permitted users where such contributions do not meet applicable pretreatment standards or requirements or where such contributions would cause the POTW to violate its Waste Discharge Requirements.

(e) **Wastewater Discharge Permit Application.** All users may be required to file with the Control Authority a Wastewater Discharge Permit application in a form prescribed by the Control Authority prior to obtaining a Wastewater Discharge Permit.

(1) Users proposing a new connection to the regional sewer system shall submit a completed Wastewater Discharge Permit application at least ninety (90) days prior to connecting to or contributing to the POTW.

(2) Existing users shall apply for a permit reissuance a minimum of ninety (90) days prior to the expiration of their existing Wastewater Discharge Permit.

(3) New or existing users failing to submit a completed discharge permit application will be assessed a penalty charge as designated in the Master Fee Resolution.

(f) **Wastewater Discharge Permit Application Contents.** In support of the application, the user shall submit, in units and terms appropriate for evaluation, the following information:

(1) Name, address, and location (if different from the address);

(2) Standard Industrial Classification (SIC) number;

(3) Description of activities, facilities and plant processes on the premises including all materials which are or could be discharged;

(4) Number and type of employees and hours of operation of plant and proposed or actual hours of operation;

(5) Each product produced by type, amount, process or processes, and rate of production;

(6) Average daily wastewater flow rates, including daily, monthly and seasonal variations;

(7) Type and amount of raw materials processed (average and maximum per day);

(8) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, sewer connections, and appurtenances by their size, location and elevation;

(9) Time and duration of discharge;

(10) Wastewater constituents and characteristics including, but not limited to, those mentioned in Section 6-327(d) of this article, as determined by a state-certified laboratory. Sampling and analyses shall be performed in accordance with the techniques described in Section 6-336(l) and Section 6-336(m);

(11) Where known, the nature and concentration of any pollutants in the discharge which are limited by any city, state or federal pretreatment standards, and a statement regarding whether or not the pretreatment standards are being met on a consistent basis and if not, whether additional operation and maintenance and/or additional pretreatment is required for the user to meet applicable pretreatment standards or city effluent limitations;

(12) If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standards or city effluent limitations, the schedule and conditions of scheduling shall be in accordance with those described in Section 6-336(g);

(13) Any other information as may be deemed by the Control Authority to be necessary to evaluate the permit application. The Control Authority will evaluate the data furnished by the user and may require additional information. After evaluation and acceptance of the data furnished, the Control Authority shall issue a Wastewater Discharge Permit, subject to the terms and conditions provided herein.

(g) **Permit Conditions.** Wastewater Discharge Permits shall include such conditions as are deemed reasonably necessary by the Control Authority to prevent pass through or interference, protect the quality of the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

(1) Wastewater Discharge Permits must contain:

(i) A statement that indicates wastewater discharge permit duration in accordance with Section 6-335(i) of this Code;

(ii) A statement that the wastewater discharge permit is nontransferable in accordance with Section 6-335(j) of this Code;

(iii) Effluent limits, including Best Management Practices, based on applicable pretreatment standards;

(iv) Self-monitoring, sampling, reporting, notification, and record-keeping requirements, when applicable. These requirements shall include an identification of pollutants to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law; and

(v) A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law.

(vi) Requirements to control slug discharges, if determined by the Control Authority to be necessary.

(2) Wastewater Discharge Permits may contain, but need not be limited to, the following conditions:

(i) The unit charge or schedule of user charges and fees for the wastewater to be discharged to the regional sewer system;

(ii) Limits on the average and maximum wastewater constituents and characteristics;

(iii) Limits on the average and minimum rate and time of discharge or requirements for flow regulations and equalization;

(iv) Requirements for installation and maintenance of inspection and sampling facilities;

(v) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types, and standards for tests and reporting schedule;

(vi) Compliance schedules;

(vii) Requirements for submission of technical reports (See Section 6-336);

(viii) Requirements for maintaining and retaining plant records relating to wastewater discharge as specified by the Control Authority, and affording the Control Authority access thereto;

(ix) Requirements for notifying the Control Authority prior to and obtaining approval of any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the regional sewer system;

(x) Requirements for notifying the Control Authority of slug discharges;

(xi) Other conditions as deemed appropriate by the Control Authority to ensure compliance with this article.

(h) **Permit Modifications.** The Control Authority may modify a Wastewater Discharge Permit for good cause, including, but not limited to, the following reasons:

(1) To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

(2) To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of wastewater discharge permit issuance;

(3) A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(4) Information indicating that the permitted discharge poses a threat to the POTW or city personnel;

(5) Violation of any terms or conditions of the Wastewater Discharge Permit;

(6) Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting; or

(7) To correct typographical or other errors in the Wastewater Discharge Permit.

(i) **Duration of Permit.** Wastewater Discharge Permits shall be issued for a specified time period, not to exceed five (5) years. A permit may be issued for a period less than five years at the discretion of the Control Authority. Each Wastewater Discharge Permit will indicate a specific date upon which it will expire.

(j) **Transfer of Permit.** Wastewater Discharge Permits are issued to a specific user for a specific operation. A Wastewater Discharge Permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, a new or changed operation, or remodel of an existing facility which is retained by the current owner.

(k) **Revocation of Permit.** The Control Authority may revoke a Wastewater Discharge Permit for good cause, including, but not limited to, the following reasons:

(1) Failure of a user to factually report the sewage constituents and characteristics of his discharge;

(2) Failure of a user to report and get approval of significant changes in operations, site plans, floor plans, mechanical and plumbing plans or sewage constituents and characteristics prior to the commencement of any change;

(3) Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

(4) Falsifying self-monitoring reports;

(5) Tampering with monitoring equipment;

(6) Refusal of reasonable access to a user's premises and/or records;

(7) Failure to meet effluent limitation;

(8) Failure to pay fines or penalties;

(9) Failure to pay sewer charges;

(10) Failure to meet compliance schedules;

(11) Failure to complete a wastewater discharge permit application;

(12) Failure of a user to report an accidental or slug discharge as required in Section 6-336(k) of this article.

(13) Violation of any pretreatment standard or requirement, or any terms of the Wastewater Discharge Permit, or this ordinance.

(l) **Discharge Reports.** Reporting requirements shall be in accordance with Section 6-336.

(Added Ord. 76-33, § 4, eff. 5-9-76; Am. Ord. 80-115, § 106, eff. 8-8-80; Am. Ord. 83-41, § 7, eff. 7-1-83; Am. Ord. 87-29, § 3, eff. 3-17-87; Am. Ord. 89-10; § 3, eff. 2-17-89; Am. Ord. 91-14, §§ 12—15, eff. 3-15-91; Am. Ord. 98-91, §§ 20, 21, 1-1-99; Am. Ord. 2002-73, § 23, eff. 1-23-02; Am. Ord. 2019-021, § 6, eff. 9-28-19).

SEC. 6-336. REPORTING REQUIREMENTS FOR INDUSTRIAL USERS.

(a) **Baseline Monitoring Report.** Within one hundred eighty (180) days after the promulgation of a categorical pretreatment standard under Section 307(b) or (c) of the Act (33 U.S.C. § 1317(b) or (c)), or one hundred eighty (180) days after the effective date of 40 C.F.R., Part 403, existing industrial users subject to such categorical pretreatment standards and currently discharging into or scheduled to discharge into a POTW shall be required to submit to the Control Authority a report which contains the information listed in Subdivisions (1) through (8) of this subsection. At least ninety (90) days prior to commencement of discharge, new sources, and sources that become industrial users subsequent to the promulgation of an applicable categorical standard, shall be required to submit to the Control Authority a report which contains the information listed in Subdivisions (1) through (5) of this subsection. New sources shall also be required to include in this report information on the method of pretreatment the source intends to use to meet applicable pretreatment standards. New sources shall give estimates of the information requested in Subdivisions (4) and (5):

(1) The name and address of the industrial user including the name of the operator(s) and owner(s).

(2) A list of any environmental control permits held by or for the facility.

(3) The nature, average rate of production, and standard industrial classification of the operation(s) carried out by such industrial user.

(4) The measured average daily and maximum daily flow in gallons per day or, where approved by the Control Authority due to cost or feasibility considerations, a verifiable estimate of average daily and maximum daily flow to the POTW from each of the following:

(i) Regulated process streams; and

(ii) Other streams as necessary to allow use of the combined wastestream formula of 40 C.F.R. § 403.6.

(5) A report signed and certified by a duly authorized representative of the industrial user of the nature and concentration of pollutants in the discharge from each regulated process, and identification of the applicable pretreatment standards. In cases where the standard requires compliance with a Best Management Practice or pollution prevention alternative, the user shall submit documentation as required by the Control Authority or the applicable standards to determine compliance with the standard.

(6) A statement, signed by an authorized representative of the industrial user, and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance and/or additional pretreatment is required for the industrial user to meet the pretreatment standards and requirements.

(7) If additional pretreatment and/or operation and maintenance will be required to meet the pretreatment standard, the shortest schedule by which the industrial user will provide such additional pretreatment. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standards.

(8) Where process effluent is mixed prior to treatment with wastewaters other than those generated by the regulated process, an equivalent concentration limit will be derived using the method outlined in 40 C.F.R. § 403.6.

(b) **Ninety-day Compliance Report.** Within ninety (90) days following the date of final compliance with applicable pretreatment standards or in the case of a new source following commencement of the introduction of wastewater into the POTW, any industrial user subject to pretreatment standards and requirements shall submit to the Control Authority a report indicating the nature and concentration of all pollutants in the discharge from the regulated process which are limited by such pretreatment standards or requirements. The report shall state whether the applicable pretreatment standards or requirements are being met on a consistent basis and, if not, what additional operation and maintenance and/or pretreatment

is necessary to bring the industrial user into compliance with the applicable pretreatment standards or requirements. This statement shall be signed by an authorized representative of the industrial user, and certified by a qualified professional.

(c) **Periodic Compliance Report.** Any industrial user subject to categorical pretreatment standards (except a non-significant categorical user), after the compliance date of such pretreatment standard, or, in the case of a new source, after commencement of the discharge into the POTW, shall submit to the Control Authority during the months of June and December, unless required more frequently in the pretreatment standard or the city's Wastewater Discharge Permit, a report indicating the nature and concentration of pollutants in the effluent which are limited by such pretreatment standards. In addition, this report shall include a record of measured or estimated average and maximum daily flows for the reporting period for the discharge reported in Section 6-336(a)(4), except that the Control Authority may require more detailed reporting of flows. In cases where the pretreatment standard requires compliance with a Best Management Practice (or pollution prevention alternative), the user shall submit documentation required by the Control Authority or the pretreatment standard necessary to determine the compliance status of the user. At the discretion of the Control Authority and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the Control Authority may modify the months during which the above reports are to be submitted.

(1) The Control Authority may authorize the industrial user subject to a categorical pretreatment standard to forego sampling of a pollutant regulated by a categorical pretreatment standard if the industrial user has demonstrated through sampling and other technical factors that the pollutant is neither present nor expected to be present in the discharge, or is present only at background levels from intake water and without any increase in the pollutant due to activities of the industrial user. This authorization is subject to the following conditions:

(i) The Control Authority may authorize a waiver where a pollutant is determined to be present solely due to sanitary wastewater discharged from the facility provided that the sanitary wastewater is not regulated by an applicable categorical standard and otherwise includes no process wastewater.

(ii) The monitoring waiver is valid only for the duration of the effective period of the permit or other equivalent individual control mechanism, but in no case longer than five (5) years. The user must submit a new request for the waiver before the waiver can be granted for each subsequent control mechanism.

(iii) In making a demonstration that a pollutant is not present, the industrial user must provide data from at least one sampling of the facility's process wastewater prior to any treatment present at the facility that is representative of all wastewater from all processes. The request for a monitoring waiver must be signed by an authorized representative and include the certification statement in Section 6-336(n). Non-detectable sample results may only be used as a

demonstration that a pollutant is not present if the EPA approved method from 40 C.F.R. Part 136 with the lowest minimum detection level for that pollutant was used in the analysis.

(iv) Any grant of the monitoring waiver by the Control Authority must be included as a condition in the user's control mechanism. The reasons supporting the waiver and any information submitted by the User in its request for the waiver must be maintained by the Control Authority for 3 years after expiration of the waiver.

(v) Upon approval of the monitoring waiver and revision of the user's control mechanism by the Control Authority, the industrial user must certify on each report with the statement below, that there has been no increase in the pollutant in its wastestream due to activities of the Industrial User:

"Based on my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for 40 C.F.R. specify applicable National Pretreatment Standard part(s), I certify that, to the best of my knowledge and belief, there has been no increase in the level of list pollutant(s) in the wastewaters due to the activities at the facility since filing of the last periodic report under 40 C.F.R. § 403.12(e)(1)."

(vi) In the event that a waived pollutant is found to be present or is expected to be present based on changes that occur in the user's operations, the user must immediately: Comply with the monitoring requirements of this section or other more frequent monitoring requirements imposed by the Control Authority, and notify the Control Authority.

(vii) This provision does not supersede certification processes and requirements established in categorical pretreatment standards, except as otherwise specified in the categorical pretreatment standard.

(2) The Control Authority may reduce the requirement in this section to a requirement to report no less frequently than once a year, unless required more frequently in the pretreatment standard or by the Approval Authority, where the industrial user meets all of the following conditions:

(i) The industrial user's total categorical wastewater flow does not exceed any of the following:

1. 0.01 percent of the design dry weather hydraulic capacity of the POTW, or 5,000 gallons per day, whichever is smaller, as measured by a continuous effluent flow monitoring device unless the industrial user discharges in batches:

2. 0.01 percent of the design dry weather organic treatment capacity of the POTW; and

3. 0.01 percent of the maximum allowable headworks loading for any pollutant regulated by the applicable categorical pretreatment standard for which approved local limits were developed by the Control Authority:

(ii) The industrial user has not been in significant noncompliance, as defined in 40 C.F.R. § 403.8(f)(2)(viii) and Section 6-302(s)(9) of this Code, for any time in the past two years;

(iii) The industrial user does not have daily flow rates, production levels, or pollutant levels that vary so significantly that decreasing the reporting requirement for this industrial user would result in data that are not representative of conditions occurring during the reporting period;

(iv) The industrial user must notify the Control Authority immediately of any changes at its facility causing it to no longer meet conditions of paragraphs (c)(2)(i) or (ii) of this section. Upon notification, the industrial user must immediately begin complying with the minimum reporting in this section; and

(v) The Control Authority must retain documentation to support the Control Authority's determination that a specific industrial user qualifies for reduced reporting requirements under paragraph (c)(2) of this section for a period of 3 years after the expiration of the term of the control mechanism.

(d) **Flow Monitoring Report.** Significant industrial users that are not subject to categorical pretreatment standards but are subject to city effluent limitations shall submit to the Control Authority at least once every six months (on dates specified by the Control Authority) a description of the nature, concentration, and flow of the pollutants required to be reported by the Control Authority. In cases where a local limit requires compliance with a Best Management Practice or pollution prevention alternative, the user must submit documentation required by the Control Authority to determine the compliance status of the user. These reports shall be based on sampling and analysis performed in the period covered by the report.

(e) **Self-monitoring Report.** When required by the Control Authority, an industrial user shall submit a report indicating the concentration of specific pollutants discharged in the effluent. The determination of said pollutants by the Control Authority shall be based on what is reasonably expected to be found at the site and the frequency of monitoring shall be based on the compliance status of the industrial user.

(f) **Detected Violation and Repeat Sampling.** If sampling performed by an industrial user indicates a violation, the industrial user must notify the Control Authority within twenty-four (24) hours of becoming aware of the violation. The industrial user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the Control Authority within thirty (30) days after becoming aware of the violation. Where the Control Authority has performed the sampling and analysis in lieu of the industrial user, the Control Authority must perform the repeat sampling and analysis unless it notifies the user of the violation and requires the user to perform the repeat analysis. Resampling is not required if

the Control Authority performs sampling at the industrial user's facility at least once a month, or if the Control Authority performs sampling at the industrial user's facility between the time when the initial sampling was conducted and the time when the industrial user or the Control Authority receives the results of this sampling.

(g) **Compliance Schedule.** The following conditions shall apply to the schedule required by Section 6-323(b) and Section 6-336(a)(7) and elsewhere as a result of a violation of this article:

(1) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events including the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards or city effluent limitations.

(2) No increment referred to in Subdivision (g)(1) shall exceed nine (9) months.

(3) Not later than fourteen (14) days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the Control Authority including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine (9) months elapse between such progress reports to the Control Authority.

(h) **Reporting Mass Limits.** The Control Authority may impose mass limitations on industrial users which are using dilution to meet applicable pretreatment standards or city effluent limitations or requirements, or in other cases where the imposition of mass limitations is appropriate. In such cases, the reports required in Section 6-336(c) and 6-336(d) shall indicate the mass of pollutants regulated by pretreatment standards or city effluent limitations in the effluent of the industrial user.

(i) **Notification of the Discharge of Hazardous Waste.** Any industrial user discharging into the POTW a substance which, if otherwise disposed of, would be a hazardous waste under 40 C.F.R., Part 261 shall notify, in writing, the Control Authority, the EPA Regional Waste Management Division Director, and state hazardous waste authorities. Such notification shall follow the precepts found in 40 C.F.R. § 403.12.

(j) **Reports of Changed Conditions.** Each user subject to an equivalent mass limit must notify the Control Authority of any planned significant changes to the user's operations or pretreatment system which might alter the nature, quality, or volume of its wastewater at least thirty (30) days before the change.

(1) The Control Authority may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application.

(2) The Control Authority may issue a Wastewater Discharge Permit or modify an existing Wastewater Discharge Permit in response to changed conditions or anticipated changed conditions.

(3) For purposes of this requirement, significant changes include, but are not limited to, flow increases or decreases of twenty percent (20%) or greater, and the discharge of any previously unreported pollutants.

(k) **Reports of Potential Problems.** In the case of any discharge, including, but not limited to, accidental discharges, slug loads, or discharges that are otherwise determined to be non-routine or unusual in nature, that may cause potential problems for the POTW, the industrial user shall immediately notify the Control Authority of the incident. Additionally, a written report must be provided within five (5) days. This report shall include the following information:

(1) The date and time of the event.

(2) A description of the cause of the event.

(3) The duration of the event or, if still in progress, the expected time for the event to cease.

(4) The steps to be taken to prevent recurrence of the event.

(l) **Sampling and Analytical Requirements.** All pollutant analyses, including sampling techniques, to be submitted as part of any report required pursuant to this article shall be performed in accordance with the procedures established by the EPA pursuant to Section 304(h) of the Act (33 U.S.C. § 1314(h)) and contained in 40 C.F.R. Part 136, and amendments thereto, or with any other test procedures approved by the EPA, unless specifically required otherwise by the Control Authority. Where 40 C.F.R. Part 136 does not include a sampling or analytical technique for the pollutant in question, or where the Regional EPA Administrator determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analysis shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the Control Authority or other parties, approved by the Regional EPA Administrator.

(1) Where feasible, samples shall be collected through flow proportional composite sampling techniques. In the event flow proportional composite sampling is not feasible, the Control Authority may authorize the use of time proportional sampling or multiple grab samples collected over the course of a process day where the user demonstrates that this will provide a representative sample of the effluent being discharged. In addition, grab samples may be required to show compliance with instantaneous discharge limits.

(i) Grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. Using protocols (including appropriate preservation) specified in 40 C.F.R. Part 136 and appropriate EPA guidance, multiple grab samples collected over the course of a process day may be

composited prior to the analysis as follows: For cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil & grease the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the Control Authority, as appropriate.

(ii) For sampling required in support of Baseline Monitoring Reports and 90-Day Compliance Reports, a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the Control Authority shall require the number of grab samples necessary to assess and assure compliance by industrial users with applicable pretreatment standards and requirements.

(2) Reports shall contain results of sampling and analysis identifying the nature and concentration (or mass, where required by the Control Authority) of regulated pollutants in the discharge from each regulated process. Both daily maximum and average concentration (or mass, where required) shall be reported. Sampling shall be representative of daily operations.

(3) Samples for categorical standards shall be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists.

(i) If other wastewaters are mixed with the regulated wastewater prior to pretreatment, the user shall measure the flows and concentrations necessary to allow use of the combined wastestream formula of 40 C.F.R. § 403.6(e) in order to evaluate compliance with the pretreatment standard.

(ii) Where an alternate concentration or mass limit has been calculated in accordance with 40 C.F.R. § 403.6(e), this adjusted limit, along with supporting data, shall be submitted to the Control Authority.

(4) Samples for city effluent limitations shall be taken at a point representative of the entire discharge emanating from an industrial user. When this is not feasible, Section 6-327(e) shall apply.

(m) **Report Submittal Requirements.** If an industrial user subject to reporting requirements of this article monitors any regulated pollutant at the appropriate sampling location more frequently than required by the Control Authority, using procedures prescribed in 40 C.F.R. Part 136, the results of this monitoring shall be included in the report.

(n) **Sample Information.** Reports, signed and certified by a duly authorized representative of the industrial user as set forth in 40 C.F.R. § 403.6(a)(2)(ii) and 40 C.F.R. § 403.12(l) shall certify that such sampling and analysis are representative of normal work cycles and expected pollutant discharges to the POTW and shall contain the following information:

(1) The date, exact place, method, and the time of sampling and the names of the person or persons taking the samples;

(2) The dates analyses were performed;

(3) Who performed the analyses;

(4) The analytical techniques/methods used; and

(5) The results of such analyses.

(o) **Authorized Signature.** All wastewater discharge permit applications and user reports required by this article as well as any other report that may be required by a Wastewater Discharge Permit shall be signed and certified by an authorized representative of the industrial user and contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(p) **Fraud and False Statements.** The reports required by this article as well as any other report that may be required by a Wastewater Discharge Permit shall be subject to the provisions of 18 U.S.C. § 1001, relating to fraud and false statements, and the provisions of Section 309(c)(4) of the Act (33 U.S.C. § 1319(c)(4)), governing false statements, representations or certifications in reports required under the Act and to the provision set forth in 40 C.F.R. § 403.6(a)(2)(ii) and 40 C.F.R. § 403.12(l).

(q) **Record Keeping.** Any industrial user subject to the reporting requirements established in this article or wastewater discharge permit (including documentation associated with Best Management Practices) shall be required to retain for a minimum of three (3) years any records of monitoring activities and results, and shall make such records available for inspection and copying by the Control Authority. This period of retention shall be extended during the course of any unresolved litigation regarding the industrial user.

(r) **Upset.** An upset shall constitute an affirmative action defense to an action brought for noncompliance with categorical pretreatment standards or city effluent limitations if the requirements of Subdivision (1) are met.

(1) An industrial user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that:

(i) An upset occurred and that the industrial user can identify the specific cause(s) of the upset.

(ii) The facility was, at the time, being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures.

(iii) The industrial user had submitted the following information to the Control Authority within twenty-four (24) hours of becoming aware of the upset. Additionally, a written report must be provided within five (5) days in accordance with Section 6-336(k).

(2) In any enforcement proceeding, the industrial user seeking to establish the occurrence of an upset shall have the burden of proof.

(3) In the usual exercise of prosecutional discretion, the city's enforcement personnel will ordinarily review any claims that noncompliance was caused by an upset. No determination made in the course of the review shall constitute final city action subject to judicial review. Industrial users will have the opportunity for judicial determination on any claim of upset only in an enforcement action brought for noncompliance with categorical pretreatment standards or city effluent limitations.

(4) The industrial user shall control production and all discharges upon reduction, loss or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies to the situation, among others, where the primary source of power of the treatment facility is reduced, lost or fails.

(s) **Annual Certification by Non-Significant Categorical Industrial Users.** A facility determined to be a non-significant categorical industrial user pursuant to 40 C.F.R. § 403.3(v)(2) and Section 6-302(s)(8) must annually submit the following certification statement, signed in accordance with the signatory requirements in Section 6-336(n). This certification must accompany an alternative report required by the Control Authority:

"Based on my inquiry of the person or persons directly responsible for managing compliance with the categorical Pretreatment Standards under 40 C.F.R. _____, I certify that, to the best of my knowledge and belief that during the period from _____, _____ to _____, _____ months, days, year:

(a) The facility described as facility name met the definition of a non-significant categorical Industrial User as described in 40 C.F.R. § 403.3(v)(2);

(b) the facility compiled with all applicable Pretreatment Standards and requirements during this reporting period; and

(c) the facility never discharged more than one hundred (100) gallons of total categorical wastewater on any given day during this reporting period. This compliance certification is based upon the following information:

_____

_____

(t) **Electronic Submittal of Documents.** With the publication of 40 C.F.R Part 3 (Cross-Media Electronic Reporting Rule), the EPA has made available, as an option, electronic submittal of documents through the use of an electronic document receiving system meeting the requirements of 40 C.F.R. Part 3 and approved by the EPA. At the time

that the Control Authority meets the requirements of 40 C.F.R. Part 3, an industrial user wanting to submit any document required under this article in electronic (digital) format may do so by registering with the electronic document receiving system selected by the Control Authority.
(Added Ord. 2002-73, § 24, eff. 1-23-02; Am. Ord. 2008-33, §§ 5—10, 15, eff. 6-22-08; Am. Ord. 2019-021, § 7, eff. 9-28-19).

SEC. 6-337. SEWER SERVICE FUNDS.

(a) A sewer service fund is hereby established. It shall consist of revenue from sewer service charges, revenue from sewer connection charges, and sewer facility charges as herein defined.

(b) All revenue obtained from sewer service charges shall be deposited into said fund, shall be accounted for separately, and shall be expended for the acquisition, construction, reconstruction, maintenance, and operation of wastewater facilities, including payment of interest and principal on bonds issued for such purposes, and for the implementation of the city's pretreatment program. Such funds shall not be expended for new sewers fewer than ten inches in diameter.

(c) All revenue obtained from sewer connection charges shall be deposited into said fund, shall be accounted for separately and shall be expended for the acquisition, construction and reconstruction of the POTW, including payment of interest and principal on bonds issued for such purposes. Said fund may also provide a capital reserve for depreciation and enlargement of the POTW.

(d) All revenue obtained from sewer facility charges pursuant to section 6-310 shall be deposited into said fund, shall be accounted for separately and shall be expended as provided below:

(i) Wastewater Facilities Charges, shall be imposed, accounted for and expended consistent with section 6-304(a)(5), provided however that Wastewater Facilities Charges collected pursuant to section 6-310 shall only be used for costs which are allocable to businesses.

(ii) Trunk Sewer Charges, shall be imposed, accounted for and expended consistent with section 6-304(a)(4), provided however that Trunk Sewer Charges collected pursuant to section 6-310 shall only be used for costs which are allocable to businesses.

(e) The terms "Sewer Service Charges," "Sewer Connection Charges," and "Sewer Facility Charges" as used herein shall apply only to those funds collected for the use of the POTW and shall not be construed to affect revenues derived from the plumbing permit fees; provided, however, that nothing contained in this section shall be construed to restrict or prohibit the making of transfers from said sewer service fund for the purpose of making

temporary loans to one or more of the various departments of the city; and provided further that all such temporary loans shall be restored annually to the sewer service fund on or before the last day of each fiscal year.
(Added Ord. 5727, 1960; Am. Ord. 5777, 1960; Am. Ord. 5834, 1960; Am. Ord. 5841, 1960; Am. Ord. 6161, 1962; Am. Ord. 72-140, 1972; Am. Ord. 83-41, § 8, eff. 7-1-83; Am. Ord. 98-97, §§ 18, 19, 1-9-99)

SEC. 6-338. RULES AND REGULATIONS.

The Director may make such rules and regulations as are not inconsistent with the provisions of this article as may be necessary or desirable to aid in the administration or enforcement of the provisions of this article.
(Added Ord. 6173, 1962; Am. Ord. 98-91, § 22, 1-1-99).

SEC. 6-339. SPECIAL DISTRICTS.

When a County waterworks, water, sewer, or other special district constructs sewer facilities within the district to city standards and commences receiving city sewer services as a unit, the lines installed by the district may remain the property of the district, in which event the city only shall service and maintain the lines, and the district may elect to bill the user in the name of the district and collect the sewer charges and remit the same to the city, in which event the user shall be charged the same as any other user outside of the city, in accordance with the rate schedule prescribed in Section 6-309(b). Where such district does not connect to the city system as a unit, or the district does not elect to bill and collect as aforesaid, the district shall dedicate and convey to the city all sewer lines owned or constructed by it. Nothing contained herein shall affect the right of the city to acquire any portion of any such system located in territory annexed to the city.
(Added Ord. 69-41, 1969).

SEC. 6-340. PRIORITY OF BOND RESOLUTION.

(a) The following shall prevail over any other provisions of this article from September 1, 1974, and continuing so long as there are outstanding and unpaid any City of Fresno 1974 Sewer Revenue Bonds of Series A authorized by Council Resolution No. 74-265:

(1) All sewer connection fees and sewer service charges, together with any interest thereon, shall be deposited in the Revenue Fund.

(2) All sewer connection fees and sewer service charges, and any interest earned thereon, shall be disbursed only as provided in Section 5.04 of Resolution No. 74-265.

(b) Any money transferred from the Surplus Revenue Fund for the benefit of any municipal function other than the Project shall be repaid to the Revenue Fund together with an amount which is not less than the amount of interest that would have been earned on such money in the Surplus Revenue Fund.

(c) In construing the provisions of this section, the following terms shall have the meaning indicated:

(1) "Project" means the Project defined in Section 1.01 of Resolution No. 74-265.

(2) "Revenue Fund" means the Revenue Fund created by Section 5.03 of Resolution No. 74-265.

(3) "Sewer Connection Fees" includes "sewer connection charges."

(4) "Sewer Service Charges" includes "sewer service fees."

(5) "Surplus Revenue Fund" means the Surplus Revenue Fund created by Section 5.04 of Resolution No. 74-265.

(Added Ord. 74-96, § 1, eff. 11-4-74).

SEC. 6-341. SEVERABILITY.

If any provision, paragraph, word or section of this article is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, and sections shall not be affected and shall continue in full force and effect.

(Added Ord. 83-41, § 9, eff. 7-1-83).

ARTICLE 4 WELLS

Sec. 6-401. Definitions.
Sec. 6-402. Well Drilling Prohibition.
Sec. 6-403. Permit Required.
Sec. 6-404. Supervision of Health Officer.
Sec. 6-405. Use of Sewer and Gutter Prohibited.
Sec. 6-406. Drainage Well Use.
Sec. 6-407. Proximity to Public Water Supply System.
Sec. 6-408. Bacteriological Reports.
Sec. 6-409. Compliance with State and Interstate Laws.
Sec. 6-410. Approval of Refrigerants.
Sec. 6-411. Sealing Against Surface or Drainage Water.

SEC. 6-401. DEFINITIONS.

(a) For the purpose of this article, the words "supply well" shall mean a well by means of which water is removed to the surface from its natural position in the ground below.

(b) The words "drainage well" shall mean a well whereby water is returned from the surface to the underground water reservoir.

(c) The words "monitoring well" shall mean any well or other excavation for the purpose of monitoring the quality of underground waters or the concentration of contaminants in underground waters. (Orig. Ord. 4187; Added Ord. No. 90-127, § 1, eff. 12-14-90).

SEC. 6-402. WELL DRILLING PROHIBITION.

(a) The drilling or digging of wells within the city, except by the City of Fresno, for any other purpose than for furnishing water in whole or in part for refrigeration, air conditioning, or for the purpose of furnishing water to any refrigeration or air-cooling system or unit, or for a drainage well in connection therewith, or for irrigation, or use as a monitoring well, is hereby prohibited; provided that the Public Works Director may issue a permit for the drilling and completion of a well pursuant to the following requirements.

(b) The Director may issue a permit for the drilling of a supply well for domestic, commercial or industrial purposes for temporary use only, under the following conditions:

(1) City water mains are not in place adjacent to the property involved.

(2) The Director has determined that it is not economically feasible or desirable to extend the city's water mains to serve the property at the time the request for service is made by the owner or lessee.

(3) The owner or lessee of the property has executed an agreement for the discontinuance of the use of the well and the capping of the same upon notice by the Director. Such notice shall be given immediately following installation of water mains adjacent to the property on which the well has been drilled.

(c) The Director may issue a permit for the drilling of a supply well to replace an existing well or to deepen an existing well supplying water for industrial food or beverage processing,

or for irrigation of cemeteries providing that cemeteries are in compliance with the other provisions of this Code, when in the determination of the Director, the existing well which heretofore has served such purposes has become impaired and unusable, providing such well shall be permanently capped and closed.

(d) The Director may issue a permit for drilling of a new supply well for industrial food or beverage processing purposes, when in the determination of the Director the use of such well would significantly lessen the amount of the energy that would otherwise be consumed by the food or beverage processing operation.

(e) Issuance of a permit pursuant to subsections (b), (c) or (d) of this section shall in no way nullify or affect any provisions of Articles 5, 6, 7 and 8 of this Chapter or amendments thereto, which provide for the installation of water mains and the payment therefor.

(f) Any permit issued for the digging of a well for irrigation or food or beverage processing purposes shall be conditioned upon the installation of a water meter on such well at the permittee's expense and the payment by the user at the rate specified in Section 6-505 of this Code for all water drawn therefrom.

(g) The Director may issue a permit for the drilling of a monitoring well within a public right-of-way following satisfaction of the following requirements:

(1) Completion of an Environmental Assessment.

(2) Issuance of a Street Work Permit, in accordance with Sections 13-202, 13-203 and 13-204.

(3) Execution of an agreement providing indemnification for the city, protection of the public right-of-way, discontinuance of the use of the well and abandonment of the well upon notice by the Director. Such notice may be given for any reason at the Director's sole discretion. The Director is authorized to execute the required agreement on behalf of the City. (Orig. Ord. 4553; Am. Ord. 5309, 1964; Am. Ord. 73-120, § 7, eff. 8-16-73; Am. Ord. 80-115, § 107, eff. 8-8-80; Am. Ord. 81-83, § 1, eff. 8-7-81; Am. Ord. 86-22, § 3, eff. 3-22-85; Am. Ord. 90-127, §§ 2, 3, eff. 12-14-80).

SEC. 6-403. PERMITS REQUIRED.

No well shall be drilled within the City of Fresno by any person without first securing a permit therefor from the Director of Public Works. Before the drilling of any well is begun, the person desiring to drill such well shall pay to the Department of Public Works the amount designated in the Master Fee Resolution, and file a verified statement setting forth the location of the well, the purpose for which the water from such well will be used, and a detailed sketch of the proposed installation. The Director of Public Works shall thereupon investigate the proposed drilling of said well to determine whether the proposed drilling will pollute or imperil the public water supply of the city, and will conform to the requirements of this Code. If the Director of Public Works finds that the drilling of said well as proposed will not pollute or imperil the water supply of the city, and that the location of the proposed well meets the requirements set forth in Section 6-407, he shall issue a permit to drill the well, but otherwise

he shall withhold the permit. The fee so paid shall cover the cost of such investigation, and shall not be returned to the applicant whether the permit is granted or refused. Where application for permit is made at the same time for two wells, one a supply well and one a drainage well, both of which are to be located on the same premises, the fee provided herein shall cover both wells. The permit fee is waived for governmental agencies including the county, school districts, and other special districts. (Orig. Ord. 4187; Am. Ord. 5805, 1960; Am. Ord. 6436, 1964; Am. Ord. 80-115, § 108, eff. 8-8-80).

SEC. 6-404. SUPERVISION OF HEALTH OFFICER.

In the event the head of the public works department issues a permit as provided in Section 6-403, he shall immediately notify the Health Officer of the applicant's name and the location of the proposed well, and said well shall be drilled under the supervision of the Health Officer of the City of Fresno and shall conform to all regulations made by the Health Officer to prevent the pollution or imperiling of the public water supply of the City of Fresno, and to the standards contained in Bulletin No. 74 entitled "Water Well Standards" published by the State of California Department of Water Resources. (Orig. Ord. 4187; Am. Ord. 73-112, § 1, eff. 8-26-73).

SEC. 6-405. USE OF SEWER AND GUTTER PROHIBITED.

No well shall be drilled in the City of Fresno for the purposes of furnishing in whole or in part water for refrigeration or air-conditioning purposes or for the purpose of furnishing water to cool any refrigeration or air-conditioning system or unit where the water or any portion thereof from such well is returned to the sewer system of the City of Fresno or to the gutter of any street thereof. (Orig. Ord. 4187).

SEC. 6-406. DRAINAGE WELL USE.

No drainage well shall be drilled in the City of Fresno for any use or purpose except for the return to the earth of water from a refrigeration or air-conditioning system or unit. (Orig. Ord. 4187).

SEC. 6-407. PROXIMITY TO PUBLIC WATER SUPPLY SYSTEM.

No supply well or drainage well hereafter drilled in the City of Fresno shall be drilled closer than three hundred feet to the nearest well of the public water supply system of the City of Fresno and no drainage well shall hereafter be drilled closer than three hundred feet to any well used to furnish water for human consumption. Such drainage well may be installed in connection with the refrigeration or air conditioning unit or system in accordance with subsections (a)(1) and (a)(3) of Section 6-603. Such water shall be carried through the refrigeration or air conditioning system to the drainage well through a closed system of pipes. Drainage wells shall be of sufficient size and construction to provide for the efficient disposal of the water discharged therein. Drainage wells constructed to comply with the alternative

allowed by subsection (a)(3) of Section 6-603 must receive approval of the Director of Public Works and be constructed according to plans approved by him at least forty-eight hours prior to drilling of the well. (Orig. Ord. 4724; Am. Ord. 6436, 1964).

SEC. 6-408. BACTERIOLOGICAL REPORTS.

(a) In the event the head of the public works department issues a permit for a drainage well, any person obtaining such permit shall submit to the Health Officer every ninety days a report of a bacteriologist acceptable to the Health Officer on a sample of water entering such drainage well. The samples shall be taken by said bacteriologist, or under his direction. In the event any such reports submitted show that the water contains bacteria or chemical, mineral or oily contamination or pollution of such nature that, in the opinion of the Health Officer, the water supply of the City of Fresno or any private water supply used for human consumption might be polluted or contaminated by the continued use of such well, then the head of the public works department shall have the right to order the discontinuance of the use thereof until such time as the Health Officer shall determine that the water of such well has been purified and approves the use thereof.

(b) The Health Officer shall file a written report quarterly with the head of the public works department covering all drainage wells for which a permit has been issued under this article and such other drainage wells hereto before installed.

(c) Monitoring well test results shall be reported to the Director and to other responsible regulatory authorities as required. (Orig. Ord. 4187; Am. Ord. 5309, 1958; Added Ord. 90-127, § 4, eff. 12-14-90).

SEC. 6-409. COMPLIANCE WITH STATE AND INTERSTATE LAWS.

Any person using water for refrigeration or airconditioning purposes as herein provided for shall also comply with all provisions of any state law or interstate commerce regulation relating to wells and drainage wells. (Orig. Ord. 4187).

SEC. 6-410. APPROVAL OF REFRIGERANTS.

No refrigerant, unless first approved by the Health Officer, shall be used in any refrigeration or airconditioning system in the City of Fresno which is cooled by means of water from any public or private water supply which is also used for human consumption or which water is returned to the ground through a drainage well. (Orig. Ord. 4187).

SEC. 6-411. SEALING AGAINST SURFACE OR DRAINAGE WATER.

All drainage wells for water used in any airconditioning or refrigeration system, all wells used for the supplying of water to refrigeration or cooling system in the City of Fresno and all monitoring wells shall be sealed against surface water or other drainage water seeping or filtering into said drainage, supply or monitoring wells. (Orig. Ord. 4187; Am. Ord. 90-127, § 5, eff. 12-14-90).

ARTICLE 5 WATER REGULATIONS

Sec. 6-501. Definitions.
Sec. 6-502. Financial Procedures.
Sec. 6-503. Rules and Regulations.
Sec. 6-504. Type of Service.
Sec. 6-505. Rates.
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Sec. 6-511. Repealed.
Sec. 6-512. Repealed.
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Sec. 6-526. Meters, Appliances, Etc., Property of City.
Sec. 6-527. Consumer's Responsibility.
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Sec. 6-534. Use of Fire Hydrants Regulated.
Sec. 6-535. Deposit and Installation Charges for Temporary Service.
Sec. 6-536. Assuring Adequate Capacity in Designated Areas of Uncertain Water Capacity.

SEC. 6-501. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 3 of Chapter 1 of this Code shall also govern the construction, meaning

and application of words and phrases used in this article. The definition of each word or phrase, shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Air Conditioning system" or "refrigeration system" means any combination of equipment, whether compressor or other type, by which heat is removed from the air and from which the accumulated heat is wholly or partially removed by the use of water.

(c) Repealed.

(d) "Approved check valve" means a check valve that seats rapidly and completely, which valve has been approved by the Underwriters' Laboratories or by the Foundation for Cross-Connection Control Research at the University of Southern California. It must be carefully machined to have free moving parts and assured water tightness. The face of the closure element and valve seat must be bronze composition, or other non-corrodible material which will seat tightly under all prevailing conditions of field use. Pins and bushings shall be of bronze or other non-corrodible, non-sticking material, machined for easy, dependable operation. The closure element (e.g., clapper) shall be internally weighted or otherwise internally equipped to promote rapid and positive closure in all size where this feature is obtainable.

(e) Repealed.

(f) Repealed.

(g) Repealed.

(h) Repealed.

(i) "Completion" means acceptance, in writing, by the Director for maintenance of an addition to the city water system.

(j) "Commercial" and "business" uses shall include, but not be limited to, offices, merchandising and industrial uses, and residential uses on premises where there are two or more dwelling units.

(k) "Connected" means the physical joinder to the city water system of any plumbing, water supply, or fire protection system on any parcel.

(l) Repealed.

(m) "Director" means the Director of Public Utilities.

(n) "Dry-well" means a drainage installation for an air-conditioning, refrigeration, or precooling system. Such wells shall be of sufficient diameter and depth so as to provide adequate volume for the efficient disposal of the discharged water from said system in a safe and sanitary manner. "Dry-well," as defined and used in this article, shall not be construed to be in conflict with "drainage wells" as defined and used in Chapter 9, Article 6, of this Code.

(o) "Dwelling Unit" or "living unit" means a room or suite of rooms which is occupied by one family for living and sleeping purposes, including a single-family residence, mobile home unit, apartment, town house, flat or condominium.

(p) "Corner Lot" (for the purpose of computing Frontage Charges) means a lot which fronts on two streets in which there are existing mains or planned future mains from which service could be rendered, and for which no contribution on behalf of the lot has been made to the cost of construction of the mains.

(q) Repealed.

(r) Repealed.

(s) Repealed.

(t) "Parcel" or "lot" means each separate parcel shown on the latest equalized assessment roll of the county.

(u) "Precooling system" means an installation where water is used through a heat exchanger to add heat to air, or remove heat from air.

(v) "Premises" or "property" means a tract of real property, including adjoining lots or parcels under the same ownership or control and the improvements thereon, which is determined by the Controller to be a single unit for purposes of receiving, using, and paying for water services.

(w) "Private swimming pools" means any pool or other outside body of water eighteen or more inches in depth at any point, the volume of which is not less than one hundred cubic feet, and is designed for swimming, wading, or bathing purposes.

(x) "Refrigeration system" means an installation for maintenance, by heat removal, of temperatures which are less than sixty degrees Fahrenheit.

(y) Repealed.

(z) "System" means any combination of apparatus, including individual units, or a group or collection of units, supplied with water from any source.

(aa) "Customer" means a person who is, or who has agreed to be, responsible for the payment of water service charges or fees. The term is synonymous with "account" against which such charges and fees are assessed and billed.

(bb) "Developed" means improved by the construction of a building, structure or facility which is connected to the city water system or any driveway or structure accessory thereto.

(cc) "Irrigated" means used for the growing of any form of vegetation or plant life during any part of the calendar year.

(dd) "Water Rate Review Committee" means a committee composed of the Mayor, Chief Administrative Officer, and City Attorney of the City.

(ee) "Transmission grid main" means a portion of a network of large (14 inch diameter or larger) water mains lying generally at one-half mile intervals, which in the judgment of the Director serves primarily to transmit water from supply wells and surface water treatment facilities to the distribution system of mains which supply water to individual properties, or which serves to interconnect the supply wells. Service connections may be made to transmission grid mains but all water mains fourteen inches in diameter or larger are not necessarily transmission grid mains. The Director shall maintain in his office a map of the transmission grid main network, which shall be revised from time to time to show necessary additions to and deletions from the network.

(ff)—(hh) Reserved.

(ii) "Domestic" means any water use other than that defined in subsection (cc).

(jj) "Service" or "Service Connection" means that condition of any premises whereby it is connected to or receiving water from the city water system.

(kk) "Unit" means any of the following:

(1) "Dwelling Unit" or "living unit" for residential uses.

(2) "Living unit equivalent" for office, commercial, industrial, institutional, or other similar uses as determined by the Director.

(ll)—(oo) Reserved.

(pp) All connection to the water system shall be metered, and "living unit equivalent" means each metered connection to the city water system shall be converted to an equivalent number of one-inch water meters for the purposes of computing water capacity fees. The conversion factors for equivalent one-inch meters shall be as defined by the American Water Works Association, Manual of Water Supply Practices M6.

(qq) "Demand per unit" means a projected water demand of 2.12 gallons per minute per unit, and 1.51 gallons per minute per unit, for single-family residential projects and multi-family residential projects, respectively. The per unit water demand factors shall be used for the purposes of calculating peak hour water demands for single-family and multi-family residential development projects.

(rr) "Water Supply Facility" means a groundwater well; facilities to collect, treat, and distribute surface water; storage facilities to collect and store groundwater or treated surface water: transmission grid mains to distribute groundwater or surface water; other infrastructure related to production and distribution of water supply; or recharge facilities used to restore the groundwater aquifer.

(ss) "Frontage Charge" or "Frontage Fee" means a fee charged against the property for the right to connect to a public water main where the property has not participated in the cost of constructing said line.

(tt) "Water Capacity Fee" means a fee for the right to connect to the City water system, said fee to be used to cover the costs of water facilities that are of proportional benefit to new growth, including the redevelopment of properties with existing service connections.

(uu) "Service Connection Charge" or "Service Connection Fee" means a fee to install a new or replacement service connection, equal to the cost of labor (including overhead), equipment and materials, including the meter where applicable.

(vv) "Excessive Water Use" means, for customers in single-family residences or multi-unit housing in which each unit is individually metered or sub-metered, using potable water in excess of the maximum gallons per hour, depending on the City's current Water Shortage Contingency Plan stage, during days or hours when outdoor irrigation is prohibited, more than one day during the monthly billing period, as recorded by the City. The maximum gallons per hour are: Stage 1 - 400 gallons per hour recommended, Stage 2 - 400 gallons per hour, Stage 3 - 350 gallons per hour, Stage 4 - 300 gallons per hour.

Editor's note—Am. Ord. 2017-56, § 1, effective November 19, 2017, amended the Code by adding a new subsection 6-501(tt). In order to prevent duplication of section numbers, the new subsection was relettered as 6-501(vv) at the discretion of the editor.

(ww) "Outdoor Water Use Schedule" means the schedule setting forth what times and days irrigation or sprinkling of any yard, ground, premise, or vegetation or otherwise applying water outdoors on a property is permissible, as set forth in the City's adopted Water Shortage Contingency Plan.

(Orig. Ord. 4614; Am. Ord. 4891, 1956; Ord. 5262, 1958; Am. Ord. 5311, 1958; Ord. 5686, 1960; Ord. 5722, 1960; Am. Ord. 6516, 1964; Am. Ord. 6827, 1966; Am. Ord. 6882, 1966; Am. Ord. 70-3, 1970; Am. Ord. 70-13, 1970; Am. Ord. 72-2, 1972; Ord. 73-120, § 2, eff. 8-16-73; Am. Ord. 73-154, § 1, eff. 10-18-73; Am. Ord. 75-47, §§ 1, 2, eff. 7-3-75; Am. Ord. 75-73, § 1, eff. 7-3-75; Am. Ord. 78-108, § 1, eff. 7-28-78; Am. Ord. 82-22, § 3, eff. 3-19-82; Am. Ord. 85-38, § 3, eff. 4-12-85; Am. Ord. 89-75, §§ 1, 2, eff. 6-7-89; Am. Ord. 90-2, §§ 2—6, eff. 1-8-90; Am. Ord. 91-52, § 1, eff. 6-14-91; Rep. and Added Ord. 91-62, § 1, 2, eff. 6-29-91; Am. Ord. 92-103, §§ 1—3, eff. 1-15-93; Am. Ord. 93-20, § 1, eff. 4-30-93; Am. Ord. 94-86, § 2, eff. 10-21-94; Am. Ord. 94-108, § 2, eff. 12-30-94; Am. Ord. 95-4, §§ 11—17, eff. 3-19-95; Am. Ord. 95-38, § 13, eff. 6-9-95; Am. Ord. 2002-3, §§ 1—6, 2-11-02; Am. Ord. 2017-19, § 8, eff. 6-18-17; Am. Ord. 2017-56, § 1, eff. 11-19-17; Am. Ord. 2019-011, §§ 1, 2, eff. 5-31-19; Am. Ord. 2023-019, § 2, eff. 7-15-23).

SEC. 6-502. FINANCIAL PROCEDURES.

All billing for and collection of water service charges shall be handled as provided in this article and Article 11 of Chapter 6 of this Code.

(Rep. and Added Ord. 70-3, 1970; Am. Ord. 2017-56, § 2, eff. 11-19-17).

SEC. 6-503. RULES AND REGULATIONS.

The Director may make such rules and regulations, consistent with the provisions of this article, as may be necessary or desirable to aid in the administration or enforcement of the provisions hereof.
(Added Ord. 73-120, § 3, eff. 8-16-73).

SEC. 6-504. TYPE OF SERVICE.

(a) All service connections shall be metered except those used exclusively for fire protection service.

(b) All services other than those designated in (a) above shall be provided flat [rate] service unless the owner thereof elects to be metered.

(c) Water drawn from a flat rate fire hydrant for purposes other than fighting fires shall be metered whenever the Water Division determines it is practical to do so. When metering is deemed impractical, the Water Division shall estimate the amount of water used and such estimate shall be conclusive. In either event, such water shall be billed and paid for at the metered rates specified in the Master Fee Resolution by authority of Section 6-505(c). Water utilized for the miscellaneous purposes specified in Section 6-505(b), however, may be billed and paid for at the rates specified therein at the option of the customer.
(Added Ord. 73-120, § 3, eff. 8-16-73; Am. Ord. 80-115, § 141, eff. 8-8-80; Am. Ord. 83-57, § 1, eff. 6-17-83; Am. Ord. 85-22, § 4, eff. 3-22-85; Am. Ord. 88-139, § 1, eff. 12-9-88; Am. Ord. 89-3, § 1, eff. 2-3-89; Am. Ord. 89-74, §§ 1, 2, eff. 6-7-89).

SEC. 6-505. RATES.

(a) **Residential Flat Rates.** The rates applicable to water service furnished on a flat rate basis for residential use shall be designated in the Master Fee Resolution. Where only a portion of any premises is developed or irrigated, there shall be no charge for that area in excess of 9,000 square feet which is neither developed nor irrigated.

(1) It shall be conclusively presumed that each premises is fully developed or irrigated unless the customer establishes, by affidavit filed with the Controller on a form furnished by him, that a given portion of such property is neither developed nor irrigated.

(2) The Controller may compute the charge to be paid for that area in excess of 9,000 square feet upon the basis of an affidavit filed by the customer, or upon the basis of any information within his possession derived from any other source. The Controller or his representative shall have the right of ingress to and egress from the customer's premises at all reasonable times for the purpose of making such computation, and shall make no deduction for any customer who refuses same.

(3) Any person aggrieved by any decision of the Controller fixing a charge for premises in excess of 9,000 square feet may appeal said decision to the Water Rate Review Committee, which is hereby created, within ten days of the date such decision is mailed or otherwise delivered to him.

(i) The committee shall select from its members a chairman who shall serve at its pleasure.

(ii) Any member of the committee may deputize in writing, filed with the committee, any member of his office or, in the case of the Mayor, a member of the Council, to serve in his place on such committee for such period as he may desire.

(iii) A majority of the committee shall constitute a quorum.

(iv) The committee shall be deemed to be in the office of the Chief Administrative Officer and shall meet and keep its files in his office. All appeals to the committee shall be filed in such office.

(v) The committee shall prescribe such forms, rules or regulations relating to appeals or appeal hearings as it deems necessary, and may receive such evidence or make such investigations as it deems proper.

(vi) The committee may affirm, modify or reverse any decision of the Controller pertaining to any charge for premises in excess of 9,000 square feet. The decision of the committee shall be final.

(b) **Miscellaneous Flat Rates.** The rate applicable to miscellaneous water service furnished on a flat rate basis for other than residential use shall be designated in the Master Fee Resolution.

(c) **Meter Rates.** The rate applicable to metered water service shall be composed of a readiness-to-serve or standby charge, plus a charge for the quantity of water actually used, and any additional charges designated in the Master Fee Resolution.

(d) **Private Wells.** Private wells used for irrigation purposes, when required to be metered, shall be billed at the rate designated in the Master Fee Resolution per hundred cubic feet of water drawn therefrom.

(e) **Wells in Cemeteries.** Wells used for cemetery purposes shall be exempt from water usage charges for a period of five (5) years after annexation; provided, however, that during such period the cemeteries shall pay to the city the amount of any Fresno Irrigation District (FID) fees or assessments attributable to the cemetery property and paid by the city.

After the fifth anniversary of annexation, the cemeteries shall pay for only that component of their normal water usage fee which is directly attributable to and normally charged for the cost of water managements and recharge of underground water supplies.

(Added Ord. 73-120, § 3, eff. 8-16-73; Am. Ord. 73-154, § 2, eff. 10-18-73; Am. Ord. 74-97, § 1, eff. 11-4-74; Am. Ord. 78-174, § 1, eff. 12-22-78; Am. Ord. 80-115, § 142, eff. 8-8-80; Am. Ord. 85-22, § 5, eff. 3-22-85).

SEC. 6-506. SERVICE TO SEPARATE PREMISES AND MULTIPLE UNITS.

(a) Separate parcels will be supplied through separate individual services except as specified below.

(b) Separate houses, buildings, or uses on the same parcel, or on adjoining parcels under a single ownership, control or management, may receive water service at the option of the applicant by either of the following methods:

(1) Through separate service pipes to each or any unit provided the piping system from each service is independent of the others and is not interconnected, and provided that all service are metered.

(2) Through a single service pipe to supply the entire premises, in which case only one minimum or readiness-to-serve charge will be applied.

(c) Not more than one flat rate water service shall be allowed on adjoining parcels or lots which have been determined to constitute a single unit or premises as defined in this article; nor shall a flat rate water service be allowed on adjoining premises under the same ownership, either of which has, or is required to have, metered water service.

(Added Ord. 73-120, § 3, eff. 8-16-73).

SEC. 6-507. PERMIT TO CONNECT WATER REQUIRED: PAYMENT OF CHARGES.

(a) No person shall connect any lot, property, parcel or premise to the city water system without a permit from the Director of the Development and Resource Management Department unless the applicable charges designated in the Master Fee Resolution have been paid.

(1) Repealed.

(2) **Frontage Charge.** A frontage charge shall be required for each lot, parcel, property, or premise sought to be connected to the city water system, in the amount designated in the Master Fee Resolution per front foot. The front footage shall be calculated as follows:

(i) On a corner lot, parcel, property, or premise by adding both street frontages, excluding up to the first one hundred fifty feet on one of the street frontages to be selected by the Director.

(ii) On a lot abutting streets on three sides, by dividing the lot into two equal corner lots, calculating the front footage for each as provided by paragraph (i) above, and adding the two calculations.

(iii) On a lot with the side property lines nonparallel, the calculation for frontage shall be the distance measured between the side property lines midpoint between the frontage and the rear property lines of the lot.

(iv) Portions of the lot utilized as a public street or alley shall be excluded from the above calculations.

(v) On an irregularly shaped lot, the Director shall determine the front footage consistently with the foregoing principles of calculation.

(vi) Property which has not previously had city water service (except for water service solely for fire protection) shall pay a front footage charge only to the extent that such front footage charge or the cost of the main serving the premises has not heretofore been paid by the applicant or his predecessor in interest, provided that no such charge shall be collected for that portion of the frontage where the applicant is required to extend a main across his property frontage as a condition precedent to receiving service.

(vii) When only a portion of a lot, parcel, property, or premise is developed and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, the Director may require the payment of the front footage charge applicable only to that portion of the lot developed or to be developed, provided that the parcel for which such fees are charged shall have an area of not less than twelve thousand five hundred square feet. When the balance of the lot is developed, the front footage on that portion shall be paid regardless of whether or not additional water service is required. The Director shall fix the portion of the lot which is to be considered as developed.

(viii) Where a property fronts on a street in which there is an existing main from which service could be rendered, but the applicant elects to install water mains to serve all or portions of said property in streets or other rights-of-way which he dedicates within his property, he shall pay frontage charges for the portions of his property served from the additional mains in an amount equal to one-half of the frontage charges calculated on the basis of the frontage of said portions prior to said dedications, provided that this subsection shall not apply to the frontage of his property where it is necessary to extend the existing main as required under Subsection 6-514(c).

(ix) Properties on behalf of which no contribution has been made to the cost of the water mains, and which receive service from extensions made in other than dedicated and surfaced streets, shall pay to the city the same front footage charge as would be payable if the line were located in a dedicated street adjacent to the property to be served.

(x) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least two net acres in size, when a portion of not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence or the existing residence is to be connected to the city water system, the Director may require the payment of the frontage charge applicable only to the portion of such lot to be improved or occupied by the existing residence to be connected to the City water system. When the land use on the balance of the lot changes either through district amendment or special permit, the frontage charge shall be paid regardless of whether or not additional water service is required. The Director shall fix the portion of such lot which is to be considered as improved or occupied.

(xi) On separate major maintenance facilities within cemeteries and on facilities used for other than cemetery purposes, the Director shall fix the front footage for charges based on the dimensions of the property used for such purposes.

(xii) In areas designated by the Council, where a city water system is to be constructed to reduce public health hazard related to contaminated groundwater and where service connections to the water system are limited to serving only the existing residential dwelling and an auxiliary water supply is to continue to be utilized for irrigation of other portions of the lot, the Director shall require payment of the frontage charge applicable only to a portion of such lot occupied by the existing residence to be connected to and served by the city water system, provided that the fee to be charged shall be for a minimum of one hundred lineal feet or the actual front footage of the lot whichever is the lesser. When the land use on the balance of the lot changes either through land division, district amendment or special permit, city water is used for nondomestic purposes, or the auxiliary water supply serving the parcel is abandoned, the remaining

balance of the frontage charge shall be paid regardless of whether or not additional water service is required. The Director shall fix the portion of the lot which is to be considered as improved, occupied, or irrigated with city water.

(3) **Service Connection Charges.** For each lot which requires a new service connection, or revised service connection, to a main determined by the Director to be in active service, the applicant shall pay to the city a cost-of-service charge to install the new or replacement service connection. The cost-of-service charge shall equal the cost of labor (including overhead), equipment and materials, including the meter where applicable. For services two inches in diameter or smaller, such charges may be fixed uniformly by the Council and designated in the Master Fee Resolution.

(4) Repealed.

(5) Repealed.

(6) Repealed.

(7) Repealed.

(8) Repealed.

(9) **Water Capacity Fee.** A water capacity fee shall be required for all water service connections to the City water system, except for connections solely for fire protection. The amount of the fee for each water service shall be determined by meter size as designated in the Master Fee Resolution.

If the use of a property, lot, parcel, or premise changes, and a larger service connection and meter are required to serve the new uses on the property, the water capacity fee obligation shall be based upon the incremental difference in cost between the water capacity fee charge for the larger meter size and the water capacity fee charge for the existing meter size, or the existing meter size may be estimated based upon the 10-year historical average water use on the property, whichever is less. No water capacity fee credit will be owed by the City when the new meter size is smaller than the prior meter size or the estimated meter size.

(b) Payment of fees and issuance of permits pursuant to this section does not authorize the permittee to perform or cause to be performed work specified in this article to be performed by the city.

(c) Whenever the Council, the Board of Supervisors, or the Board, of a special district, whichever is applicable, has adopted a resolution of intention to construct water system improvements, no permit for additions to or connection to the city water system to serve any lot included in the district subject to said resolution shall be issued until the hearing or protest has been finally determined in favor of the protestants or the proposed work has been consummated sufficiently to allow the lot to be served by said water system improvements.

(d) Payment of water connection charges, private water service line installation, and well destruction charges for existing single-family residences, and existing commercial or industrial development in the Enterprise Zone, may be deferred by entering into an

agreement with the city to pay such charges together with interest on the unpaid balance, over a period of not more than twenty years, in accordance with the procedures established in Section 6-305 of this Code for the deferment of sewer connection charges.

(e) Payment of frontage charges pursuant to subsection 6-507(a)(2), and service connection charges pursuant to subsection 6-507(a)(3), may be deferred until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of section 12-4.604.

(f) Repealed.

(Added Ord. 75-47, § 3, eff. 7-3-75; Am. Ord. 75-73, § 1, eff. 7-3-75; Am. Ord. 75-55, § 1, eff. 7-6-75; Am. Ord. 76-9, § 1, 22-22-76; Am. Ord. 78-108, § 2, eff. 7-28-78; Am. Ord. 80-115, § 143, eff. 8-8-80; Am. Ord. 81-89, § 1, eff. 8-28-81; Am. Ord. 82-22, § 4, eff. 3-19-82; Am. Ord. 82-82, § 7, eff. 9-17-82; Am. Ord. 82-100, § 3, eff. 10-15-82; Am. Ord. 84-38, § 1, eff. 4-27-84; Am. Ord. 85-9, § 1, eff. 2-15-85; Am. Ord. 85-22, § 6, eff. 3-22-85; Am. Ord. 85-38, § 4, eff. 4-12-85; Am. Ord. 89-51, §§ 1, 2, eff. 5-26-89; Am. Ord. 90-2, § 7, eff. 1-8-90; Am. Ord. 91-32, § 4, eff. 5-10-91; Am. Ord. 91-51, § 2, eff. 6-14-91; Am. Ord. 92-103, § 4, 1-15-93; Am. Ord. 95-4, §§ 18—23, eff. 3-19-95; Am. Ord. 95-38, § 14, eff. 6-9-95; Am. Ord. 97-33, § 1, eff. 8-16-97; Am. Ord. 2003-96, §§ 1, 2, 12-4-03; Am. Ord. 2016-53, § 1, eff. 1-15-17; Am. Ord. 2017-19, § 8, eff. 6-18-17).

SEC. 6-508. REFUNDS AND REIMBURSEMENTS.

(a) Repealed.

(b) Repealed.

(c) **Water Mains.**

(1) This subsection shall be applicable to water mains installed after July 1, 1975, except when constructed by special assessments.

(2) Any person installing a water main shall, prior to construction of the main, file with the Director a legal description of the properties on behalf of which contributions have been made to the cost of the construction, and a statement of the proportions of the cost borne by each property, and within ninety days following city acceptance of the main shall file with the Director a project accounting stating the cost (excluding any city reimbursement) of the construction of the main. In the event a project accounting has not been filed with the Director within such period, then reimbursement under subsection (c)(3), below, shall not be made in the event additional property is connected to the main constructed. If an ownership statement is not filed prior to construction, only the property served by the main, owned by the person who installed the main on the date of commencement of installation will be deemed to have paid for the installation; provided, that if within seven years after the date of commencement of installation such person acquires in fee property served by the main which would otherwise be subject to payment of frontage charges, such person shall also be deemed to have paid the frontage charges for such property.

(3) During the initial reimbursement period or, if applicable the extended reimbursement period, as such terms are defined in Section 12-4.501.5 of this Code, following city acceptance of a water main referred to in subsection (c)(1) above, the person or persons bearing the cost of such water main construction may be reimbursed pursuant to this subsection (c). The frontage charges collected by the city pursuant to this article for connection to such water main shall be paid by the city proportionately to the owner or owners of property on behalf of which contributions were made to the cost of construction of such water main. However, neither shall the total reimbursement exceed the sum of (1) one hundred per cent of the cost of constructing water mains which do not front on any contributing property, and (2) fifty per cent of the cost of constructing water mains fronting on properties on behalf of which such contributions were made; nor shall the total reimbursement exceed the total amount of the frontage charges which would have been payable by property on behalf of which no contribution was made to the cost of installation as of the date of city acceptance of the main. Such reimbursements shall be paid from the applicable water connection charge fund.

(4) If the total amount of the frontage charges (based on fees in effect on the date of city acceptance of the main) which would be collectible from property on behalf of which no contribution has been made to the cost of installation is less than one thousand dollars, the Director may elect to proportionately reimburse from the applicable water connection charge fund, after city acceptance of the main, to the person or persons contributing to the cost of constructing the main said frontage charges which would be collectible from noncontributing property. If the Director elects to reimburse in that manner, such person or persons will neither be eligible for the exemption provided in subsection (c)(2) above nor for further refunds provided in subsection (c)(3) above.

(5) For purposes of reimbursements, where a property has more than one frontage, the actual front footage charge paid shall be apportioned between the frontages on which the calculation of charges was based, in the ratio of the total length of each frontage.

(d) Repealed.

(e) Repealed.

(Added Ord. 75-47, § 4, eff. 7-3-75; Am. Ord. 75-73, § 1, eff. 7-3-75; Am. Ord. 76-9, § 2, eff. 2-22-76; Am. Ord. 78-108, §§ 3, 4, eff. 7-28-78; Am. Ord. 80-115, §§ 144—146, eff. 8-8-80; Am. Ord. 83-163, §§ 8—10, eff. 1-20-84; Am. Ord. 85-38, § 5, eff. 4-12-85; Am. Ord. 86-155, § 1, eff. 10-24-86; Am. Ord. 89-85, §§ 9, 10, eff. 7-28-89; Am. Ord. 2003-96, § 3, eff. 12-4-03; Am. Ord. 2017-19, § 8, eff. 6-18-17).

SEC. 6-509. SERVICE CONNECTIONS.

(a) The charge for replacement of an existing water service connection or meter by one of a large size shall be the same as for a new service or meter of the size requested, except that when mains and services are being replaced under a city water main replacement program,

the charge for increasing the size of service will be the difference in cost between the size requested by the property owner and the size which would normally be installed by the city under its replacement program.

(b) Where it is necessary to relocate a water service for the convenience of a property owner, or where relocation is required because the construction by or on behalf of the property owner will interfere with the operation or maintenance of the service connection, the charge for such relocation shall be the cost for labor (including overhead), equipment, and material.

(c) The minimum size of the tap and the service connection (including meter) installed for any property shall be as the Director may designate.

(d) The first installation of meters on an existing service connection of two inches or smaller shall be made without additional charge. Meters on existing services larger than two inches shall be paid for as specified in subsection 6-507(a)(3).

(e) When a property owner requests the abandonment of one or more services and the installation of one or more new services, the cost of abandonment and the cost of the new service shall be paid for by the customer as specified in subsection 6-507(a)(3).
(Orig. Ord. 4481; Am. Ord. 6497, 1964; Am. Ord. 70-13, 1970; Am. Ord. 73-120, § 4, eff. 8-16-73; Am. Ord. 75-47, § 5, eff. 7-3-75; Am. Ord. 75-73, § 1, eff. 7-3-75).

SEC. 6-510. REPEALED.

Editor's note—Ord. 2017-19, § 8, effective June 18, 2017, amended the Code by repealing former § 6-510 in its entirety. Former § 6-510 pertained to well head treatment, and derived from Ord. 90-2, effective January 8, 1990; Ord. 95-4, effective March 19, 1995; Ord. 95-38, effective June 9, 1995; and Ord. 95-74, effective October 27, 1995.

SEC. 6-511. REPEALED.

Editor's note—Ord. 2017-19, § 8, effective June 18, 2017, amended the Code by repealing former § 6-511 in its entirety. Former § 6-511 pertained to recharge areas, and derived from Ord. 95-4, effective March 19, 1995; and Ord. 95-38, effective June 9, 1995.

SEC. 6-512. REPEALED.

Editor's note—Ord. 2017-19, § 8, effective June 18, 2017, amended the Code by repealing former § 6-512 in its entirety. Former § 6-512 pertained to bond debt service fee, and derived from Ord. 95-4, effective March 19, 1995; and Ord. 95-38, effective June 9, 1995.

SEC. 6-513. WATER CAPACITY FEE.

(a) **Purpose.** The purpose of this section is to ensure water supply availability, reliability and drought resiliency for new and expanded connections to the City water system, and to provide a means for levying and collecting fees to finance the planning, permitting, designing, acquiring of and constructing of water facilities required to serve new and expanded connections to the City water system.

(b) **Water capacity fee amount.**

(1) The Council shall designate in the Master Fee Resolution a schedule of Water Capacity Fees by meter size.

(2) The Water Capacity Fee shall be determined based on a Water Capacity Fee Study. The Water Capacity Fee Study shall establish a nexus between the Water Capacity Fee and the estimated reasonable cost of providing water capacity service to new or expanded connections to the water system.

(c) **Fees payable upon grant of development entitlement.** The Water Capacity Fee for any new or expanded service connection shall be payable prior to the issuance of a building permit at the fee level in effect on the date such permit is issued.

Payment of Water Capacity Fees may be deferred by entering into a development agreement with the city to pay such charges after issuance of the building permit, but not later than prior to issuance of the certificate of occupancy.

(d) **Water capacity fund.**

(1) A Water Capacity Fund is hereby established.

(2) All Water Capacity Fees collected by the city shall be deposited in a Water Capacity Fund for the purpose of funding public facilities reasonably necessary to provide water capacity service to new or expanded connections to the city water system.

(3) The revenue from the Water Capacity Fees collected shall be allocated on an annual basis as follows:

a. Fifty percent of the Water Capacity Fees shall be allocated to repay loans or other debt financing instruments used by the City to plan, permit, design, and construct water facilities to serve new or expanded connections to the City's water system. The priority for applying this fifty percent Water Capacity Fee allocation to existing loans or debt financing instruments shall be based on the date Council approved the loan or debt financing instrument. The highest priority shall be assigned to the oldest loans and debt financing instruments.

b. Fifty percent of the Water Capacity Fees shall be allocated to reimburse developers, or their heirs and successors, who as a condition precedent to approval of development, were required to construct water facilities. Developer reimbursements from the Water Capacity Fund shall be completed in accordance with 6-513(f).

c. In the event no payments are required for loans or debt instruments, and no reimbursements are due to developers who constructed water facilities as a condition precedent to approval of development, then all Water Capacity Fees paid shall be deposited in the Water Capacity Fund and designated for planning, permitting, designing, acquiring and constructing water facilities, or purchasing water supply sources, to accommodate new or expanded connections to the city water system.

(4) The City shall annually review and report on the fund for the Water Capacity Fees as set forth by Government Code section 66013(d).

(e) **Water supply facility construction.** The City shall be responsible for constructing water supply facilities in a manner which will supply water to all properties developed in an orderly sequence as defined in the City's then-current General Plan.

(1) The Council may require, as a condition precedent to approval of development, a developer to construct water supply facilities in accordance with City standards, if the City Manager or his or her designee determines one or more of the following conditions exist:

a. The water demands for the development can be served with a dedicated water supply facility that only serves that development:

b. The proposed development is not consistent with the orderly sequence of development as defined in the City's then-current General Plan;

c. It is in the best interest of the city water system for the developer to construct the required water supply facility, and to request reimbursement in accordance with 6-513(f).

(2) The Council may require as a condition precedent to approval of development, the dedication or acquisition of property for a water supply facility if the Director of Public Utilities determines a water supply facility is needed either within or in close proximity to the proposed development.

a. The developer shall be issued a fee credit against the Water Capacity Fee equal to the fair market value of the dedicated property, and the fair market value shall be based on the properties surrounding the water supply facility, or as determined by the Director of Public Utilities.

b. In the event a prospective developer dedicates or acquires a water supply facility at the request of the City in advance of approval of development, the developer shall be eligible for reimbursement or issued a fee credit in a manner as described above.

(3) In the event a developer is required to assume the responsibility for the construction of a water supply facility, construction shall be in accordance with city standards and specifications, or as determined by the Director of Public Utilities. The developer shall be reimbursed based on the full, audited and approved cost of the water supply facility less the Water Capacity Fees due for the development. Reimbursements shall be processed in accordance with 6-513(f). Reimbursements shall be issued from Water Capacity Fee revenues in accordance with the fee allocation methodology described in Section 6-513(d).

(f) **Reimbursements from the water capacity fee fund.** When, as a condition precedent to approval of development, a person, whose project is subject to the Water Capacity Fees, has been required to construct a water supply facility which has been

accepted by the City, the person shall file with the Director of Public Works, within ninety days following acceptance of the water supply facility, a project accounting stating the total cost of construction of the water supply facility.

(1) The project accounting shall include the costs for the water supply facility, including site acquisition, design, construction, inspection, permitting, and commissioning.

(2) The terms, conditions, and expiration date for reimbursement shall be specified in a reimbursement agreement executed between the developer and the City.

(3) Annual reimbursements shall be based on funds available in the Water Capacity Fund for developer reimbursements. On or about April 1st of each year, the Director of Public Works shall determine the amount of funding available from the Water Capacity Fund to reimburse those persons who have:

a. Constructed a water supply facility that has been accepted by the City; and

b. A valid reimbursement agreement.

(4) Following the annual determination of Water Capacity Fees available for developer reimbursement, there shall be paid from the Water Capacity Fund, to persons that constructed water supply facilities as a condition precedent to approval of development, a sum equal to the proportionate share of the Water Capacity Fees available for developer reimbursement. The proportionate share shall be calculated based on the current value of the unreimbursed portion of the water supply facility to the total value of all water supply facilities accepted by the City and approved for reimbursement, provided, that payments may not be made to such persons in excess of the cost of the water supply facility as shown on the project accounting

(5) If the project accounting is not timely filed as required above, the City will not enter into a reimbursement agreement or make any reimbursement payments to the person that constructed the water facilities.

(g) **Effect on urban growth management water fees and fund balances.** As of the effective date of the Ordinance adopting this Section, fund balances remain in existing water-related Urban Growth (UGM) accounts created for water-related fee revenues. The existing fund balances shall remain in separately designated water-related UGM accounts to be used for the purposes for which they were collected in accordance with the UGM water-related fee regulations, as set forth in Ordinance 95-38 and amended by Ordinance 95-74, under which they were imposed ("UGM Regulations").

(1) The existing balances in the UGM water-related fee accounts shall remain available for (i) reimbursing developers that were required to construct water supply facilities as a condition precedent to approval of the development project, and (ii) use by the City for the designated purposes defined for the UGM account. Reimbursements from existing UGM water-related fee accounts shall be completed in accordance with the UGM Regulations.

(2) When there are no valid reimbursement agreements relating to a UGM water-related fee account and no pending projects in a UGM area that could potentially qualify for reimbursement under the UGM Regulations, any funds remaining in the existing UGM water-related fee accounts shall be deposited into the Water Capacity Fund, and the City may use those funds in accordance with the priorities described in 6-513(d).

(3) Notwithstanding any other provision of this section, in order to honor valid reimbursement agreements issued under the UGM Regulations, the City shall make available revenue from the Water Capacity Fee Fund to the UGM water-related fee accounts for reimbursements pursuant to the UGM Regulations. Funds made available to each UGM water-related fee account for reimbursements pursuant to the UGM Regulations shall be limited to the amount of revenue that would have been collected for each UGM water-related account, from persons within the corresponding water-related UGM area, under the UGM Regulations. In no event will any person with a reimbursement agreement issued under the UGM Regulations receive a greater right to reimbursement than he or she would have had under the UGM Regulations.

(Added Ord. 2017-19, § 8, eff. 6-18-17).

Editor's note—Ord. 2017-19, § 8, effective June 18, 2017, amended the Code by repealing former § 6-513 in its entirety, and adding a new § 6-513. Former § 6-513 pertained to the UGM water supply, and derived from Ord. 95-38, effective June 9, 1995; and Ord. 95-74, effective October 27, 1995.

SEC. 6-514. WATER SYSTEM CONSTRUCTION.

(a) Any person desiring to make an addition to the water system of the city to serve property shall make a request in writing of the Director for preliminary investigation into the feasibility of such addition. If the addition as requested is found to be feasible by the Director, such addition may be made to the water system of the city in accordance with the provisions of this chapter. The director shall cause the installation to be inspected, and shall allow the final connection to the city system only if it is found that such additions conform in all respects with the standard specifications for water facilities of the city, with applicable health laws, and with the lines and grades designated by the Director.

(b) If a right-of-way is needed for an addition to the water system, the person constructing the addition shall obtain such right-of-way for the city, or pay the cost to the city of acquiring such right-of-way.

(c) When a new, enlarged, or additional water service is required to serve a property, mains shall be installed across the full frontages of the property unless the Director determines that mains are not required at that time across the full frontage to serve other properties or because an undeveloped portion of the subject property does not require water or fire service. Where the provisions of this section would require a main extension past a planned valve location, the Director may require the payment of frontage charges in lieu of main construction. Where a property has more than one frontage on which main installation

would be required by this subsection, the Director may require payment of frontage charges in lieu of main installation along such additional frontages unless said mains are required for fire service to the property. Frontage charges collected pursuant to this subsection shall be deemed as reimbursable pursuant to subsection 6-508(c)(3).

(d) Specifications and plans for the installation of additions to the city water system shall be prepared by a registered civil engineer and shall be approved by the Director before a permit for doing the work may be issued.

(e) When a water main, fire hydrant, or water service, except for back flow prevention devices, has been installed in a public street or easement pursuant to the requirements of the city and has been accepted by the Director, then the main, hydrant, or service shall become the property of the city and a part of the water system of the city.

(f) The person constructing an addition to the city water system shall reimburse the city for its cost of labor (including overhead), equipment, and materials for the following:

(1) Connections between additions to the city water system and existing portions of the system which are determined by the Director to be in active service.

(2) Review and approval of specifications and plans submitted by the applicant for proposed additions to the water system.

(3) Preliminary investigation of the feasibility of additions to the water system.

(4) Any design, surveying, inspection or testing performed by the city in connection with an addition to the water system.

Such reimbursements may be made at standard rates to cover costs as designated in the Master Fee Resolution.

(g) Repealed.

(h) Although it is the intent of this article that arrangements necessary to install water mains required to serve property shall be the responsibility of the person desiring such service, an exception is necessary to facilitate minor additions to the system. The city may, upon written request of the applicant, take all steps necessary to complete the total installation, subject to the following conditions:

(1) Total of front footage for which frontage charges would be payable if mains existed, plus off-site main required is three hundred feet or less.

(2) Applicant pays the frontage charge for the applicant's property as though water mains already existed on the property frontage.

(3) Applicant reimburses the city in accordance with this article for the water service connection (including meter if applicable), connections to mains in service, and preliminary investigation.

(4) Applicant pays to the city the fee designated in the Master Fee Resolution to cover the cost of design, surveying, inspection, and testing.

(i) Connections to mains in other than dedicated and surfaced streets or alleys shall not be permitted where service can be rendered from dedicated and surfaced streets or alleys by extension or otherwise.
(Added Ord. 75-47, § 6, eff. 7-3-75; Am. Ord. 75-73, § 1, 7-3-75; Am. Ord. 76-9, § 3, eff. 2-22-76; Am. Ord. 80-115, §§ 147, 148, eff. 8-8-80; Am. Ord. 2003-96, § 4, eff. 12-4-03; Am. Ord. 2017-19, § 8, eff. 6-18-17).

SEC. 6-515. WATER CONNECTION CHARGE FUND.

(a) A water connection charge fund is hereby established.

(b) All revenue obtained from frontage charges, and service connection charges as required under Section 6-507 shall be deposited into said Water Connection Charge Fund, and shall be accounted for separately, and shall be expended for acquisition, construction and reconstruction of the city water system including payment of interest and principal on bonds issued for that purpose. Said fund may also provide a capital reserve for depreciation and enlargement of the city water system.

(c) The terms frontage charge, and service connection charge herein referred to shall apply only to those funds collected for use of the city water system and shall not be construed to affect revenues derived from plumbing permit fees.

(d) Nothing contained in this section shall be construed to restrict or prohibit the making of transfers from said Water Connection Charge Fund for the purpose of making temporary loans to one or more of the various departments of the government of the city; and provided further that all such temporary loans shall bear interest at not less than the current rate earned by other city trust funds and shall be restored annually to the water connection charge fund on or before the last day of each fiscal year.
(Added Ord. 75-47, § 7, eff. 7-3-75; Am. Ord. 75-73, § 1, 7-3-75; Am. Ord. 76-9, § 4, eff. 2-22-76; Am. Ord. 85-38, § 6, eff. 4-12-85; Am. Ord. 2003-96, § 5, 12-4-03; Am. Ord. 2017-19, § 8, eff. 6-18-17).

SEC. 6-516. REPEALED.

Editor's note—Ord. 2023-019, § 3, adopted June 8, 2023 and effective July 15, 2023, repealed § 6-516, which pertained to transmission grid main reimbursements and derived from Ord. 75-48, § 1, effective July 1, 1975; Ord. 2017-19, § 8, effective June 18, 2017.

SEC. 6-517. RESERVATION TO THE CITY TO NEGOTIATE AGREEMENTS WITH PRIVATELY- OR PUBLICLY-OWNED WATER SYSTEMS.

The city reserves the right to negotiate by agreement for the acquisition, operation, and maintenance of privately- or publicly-owned water systems, and for the settlement of damage caused to such water systems when the city extends its water system into the service area of any such system. Any other provision of this article to the contrary notwithstanding,

the city may include, in any such negotiated agreement, a waiver of the water main extension charge, front footage charge, or service connection charge otherwise payable by the consumers of any such system upon connection with the city's water system.
(Orig. Ord. 4481; Am. Ord. 6737, 1965).

SEC. 6-518. CONDITIONS PRECEDENT TO NEW SERVICE OUTSIDE CITY.

(a) No new water service shall be furnished to property located outside the city limits except pursuant to the terms and conditions set forth in this section.

(b) No new fire sprinkler connections or fire hydrants for properties outside the city limits shall be served from the Fresno city water system unless the full water supply (excluding agricultural irrigation) for the said property shall also be taken from the Fresno city water system; provided, however, where said property already has its own well and desires city service, such city water service may be provided upon authorization of the City Council on condition that said water supply shall not be increased or such well be deepened or the pumping equipment be replaced with any of larger capacity. For properties already having an alternate source of water supply and receiving city water service on the effective date of this subsection, expansion of such alternate water supply shall result in a discontinuance of all city water to said property.
(Added Ord. 73-120, § 5, eff. 8-16-73; Am. Ord. 75-41, § 1, eff. 6-2-75; Am. Ord. 75-84, § 1, eff. 9-7-75; Am. Ord. 89-51, §§ 3, 4, eff. 5-26-89).

SEC. 6-519. WATER CONSERVATION DEVICE REQUIRED.

(a) No person shall install or replace any system, including portable systems, on any premises unless such system is equipped with a water conservation device, and such device is properly maintained at all times, except as follows:

(1) In a multi-story building, unconserved water-cooled refrigeration units used only for the commercial preservation of food may be installed, replaced or maintained provided that such unit has a capacity of less than one ton and that all such units on any one premises do not exceed a cumulative total capacity of two tons and do not consume more than 1.5 gallons of water per minute per ton of capacity per unit.

(2) Evaporative coolers may be installed, replaced, or maintained provided that no evaporative cooler or coolers on any premises shall have a cumulative total capacity of more than eighteen hundred cubic feet of air per minute.

(3) A system may be installed, replaced or maintained provided it is not connected to city water, and a source of water supply is developed on the same premises for the exclusive use of such system, and a drainage well, drilled pursuant to and in conformance with Article 4 (commencing with Section 6-401), Chapter 6, of this Code, is used as the sole means of disposing of water discharged from such system.

(b) When a system is installed or maintained on any premises contrary to the provisions of this article, no city water service shall be granted to serve said premises, whether located in or out of the city limits.

(c) No person shall sell or deliver any evaporative cooler which he knows or has reason to know is intended to use city water unless such cooler is, when sold and delivered, equipped with a water conservation device.
(Added Ord. 73-120, § 5, eff. 8-16-73).

SEC. 6-520. WATER CONSERVATION.

(a) In the use of potable water supplied by the city, no customer shall do or permit any of the following:

(1) Use potable water to irrigate or water outdoor landscaping in a manner that causes runoff such that water flows onto adjacent property, non-irrigated areas, private and public walkways, roadways, parking lots or structures,

(2) Keep, maintain, operate, or use any water connection, hose, faucet, hydrant, pipe, outlet, or plumbing fixture which is not tight and free from leakage,

(3) Willfully or negligently waste water,

(4) Flood any part of the premises of another,

(5) Sprinkle the premises of another so as to prevent the normal use thereof or unreasonably wet objects thereon which should not be subjected to a spray of water except as naturally caused by the elements or by action of the owner of the object,

(6) Sprinkle or irrigate any yard, ground, premise, or vegetation except as set forth in the City's Outdoor Water Use Schedule,

(i) Annual Exemptions. The following properties may submit an application for a one-year exemption to the Outdoor Water Use Schedule in effect at the time of the application:

a. Properties with multiple addresses, and

b. School and park facilities, and

c. Properties without street addresses.

The owners of such properties shall submit a proposed modified Outdoor Water Use Schedule in writing to the Director or designee for approval or modification. The Director may approve a modified Outdoor Water Use Schedule for with more frequent watering or different watering days than allowed by the Outdoor Water Use Schedule in effect at the time the application for an exemption is submitted for consideration. If the Director determines the proposed exemption will adversely impact system water pressures in the service area, the proposed exemption will be denied. All Annual Exemptions approved by the Director shall automatically expire on December 31 of each year, and the property owners must re-apply for an exemption to the Outdoor Water Use Schedule.

(ii) Short-term Exemptions. The following properties may submit an application for an exemption from the Outdoor Water Use Schedule for a specific time period not to exceed one month.

a. Properties with new lawns not yet established.

b. Properties seeking to use water for a bona fide use, such as solar panel cleaning or other use necessary for health or preservation of property.

The owners of such properties shall submit a proposed modified Outdoor Water Use Schedule in writing to the Director or designee for approval or modification no less than 48 hours before the proposed non-compliant water usage. The Director may approve a modified Outdoor Water Use Schedule that may provide for more frequent outdoor water use or different outdoor water use days than allowed by the Outdoor Water Use Schedule in effect at the time the application for an exemption is submitted for consideration. If the Director determines the proposed exemption will adversely impact system water pressures in the service area, the proposed exemption will be denied. All Short-term Exemptions approved by the Director shall automatically expire on the date set forth on the Short-Term Exemption permit.

(7) Sprinkle or irrigate any yard, ground, premise, or vegetation unless the watering device used is controlled by an automatic shut-off device, or a person is in immediate attendance of the hose or watering device,

(8) Wash any privately owned motor vehicle, trailer, or boat except from a bucket or in a commercial car wash, provided a hose equipped with a shut-off nozzle may be used for a quick rinse without causing water to flow onto adjacent property, non-irrigated areas, private and public walkways, roadways, parking lots, or structures,

(9) Wash or rinse with a hose or watering device any sidewalk, driveway, parking area, tennis court, patio, or any other exterior paved area, except for public health and safety reasons at public gathering places, or

(10) Use potable water in a fountain or other decorative water feature, except where the water is part of a recirculating system.

(11) Irrigate ornamental turf on public street medians with potable water, except where:

(i) The turf serves a community or neighborhood function, including but not limited to, recreational uses and civic or community events;

(ii) The turf is irrigated incidentally by an irrigation system primarily intended to irrigate trees;

(iii) The turf is irrigated with recycled water.

This prohibition does not include trees and shrubs on public medians, which may be irrigated.

(12) Irrigate outdoor landscapes with potable water during and within 48 hours after measurable rainfall.

(13) Serve drinking water other than upon request in eating or drinking establishments, including but not limited to, restaurants, hotels, cafes, cafeterias, bars, or other public places where food or drink are served or purchased.

(14) Irrigate landscapes outside of newly constructed homes and buildings in a manner inconsistent with regulations or other requirements established by the California Building Standards Commission and the Department of Housing and Community Development.

(15) Automatically change towels and linens in hotels and motels daily. Operators of hotels and motels shall provide guests the option of choosing not to have towels and linens laundered daily. The hotel or motel shall prominently display notice of this option in each guestroom using clear and easily understood language.

(16) Drain swimming pools more than once every three years, except as necessary to complete structural repairs or to comply with public health standards, as determined by the County Health Officer. Residents with private swimming pools shall file a written application for a permit with the City of Fresno Water Division at least 48 hours prior to draining the pool. Any customer whose swimming pool is drained by order of the Department of Health for failure to maintain it properly will also be issued a notice of violation of the City of Fresno Municipal Code. The draining of pools for reasons of health and safety hazards as determined by the City of Fresno Water Division and/or the Department of Health is permitted. The application shall include the results of a pool water test conducted by an independent testing organization which shows a cyanuric acid level above 100 parts per million, total dissolved solids over 2,500 parts per million, or calcium over 450 parts per million, or stating the nature and duration of repairs to be made and the date on which the pool will be drained.

(17) Fill newly constructed or refurbished swimming pools without a pool fill permit from the City of Fresno Water Division.

(18) Refill (top off) established swimming pools except during times when outdoor water use is allowed at the property address pursuant to the Outdoor Water Use Schedule.

(19) Use potable water to irrigate or water outdoor landscaping in a manner that is prohibited by or inconsistent with any Federal or State regulations or other requirements not specifically identified in this section.

(b) Notwithstanding the foregoing, drip irrigation of community and residential fruit and vegetable gardens and fruit trees is permitted any day of the week; for this subsection, "drip irrigation system" means a non-spray, low-pressure, and low volume irrigation system in good working order utilizing emission devices with a flow rate of less than four gallons per hour, designed to slowly apply small volumes of water at or near the root zone of plants, when used primarily for irrigation of fruit and vegetable gardens and fruit trees; should any city water customer be cited for excessive water use, the customer may contact the Water Division and request an exemption from the Outdoor Water Use Schedule for a home or

community garden that is irrigated with a drip irrigation system. Upon being contacted, the Water Division will schedule a visit to the subject property to inspect the garden and the drip irrigation system used to irrigate the garden. The Water Division shall grant an exemption for home or community garden with the following conditions:

(1) The property must limit water use to an amount equal to, or less than, the average monthly water use for the single-family residential customer class. The monthly average water use for the single-family residential customer class is printed on monthly utility bills issued by the City.

(2) The drip irrigation system must be in good working order with no leaks, line breaks, or other deficiencies that will contribute to water waste. Exemptions shall be withheld until corrective action is taken to address system deficiencies.

(3) The drip irrigation system must be used primarily for the home or community garden, and not for other landscape on the property- Exemptions shall be withheld until the drip irrigation system for the home or community garden can be isolated from other landscape on the property.

(4) No flood irrigation will be allowed with the drip irrigation system, and water must remain on the subject property with no runoff to sidewalks, driveways, pavements, or adjacent properties.

(5) The home and community garden exemption is provided exclusively for drip irrigation systems only, and will not be allowed for other types of irrigation systems.

(6) This exemption shall only apply to properties ¼ acre or smaller. For properties greater than ¼ acre, the property owner may apply to the Director or designee for an exemption.

(c) Lawn sprinkling systems shall be properly designed, installed, maintained, and operated to prevent waste of water.

(d) Repealed.

(e) The provisions of this section are conditions of service.

(1) Each incident of Excessive Use as defined in section 6-501, or use of water inconsistent with the provisions of this section, is an incident of water waste.

(2) If a customer has one or more incidents of water waste during a month, as observed by City staff or as recorded by the City's water meter reading system, the customer shall be issued a Notice of Water Waste and, if applicable, charged a fine as set forth in the Master Fee Schedule. Such fines shall be added to the customer's monthly utility bill and shall be due and payable with that utility bill and subject to the FMC 6-106, Late Payment of Municipal Service Bills.

(3) Incident counts for water waste shall be monitored, recorded, documented and enforced on a monthly basis during the calendar year for individual customers, and the incident counts shall be reset January 1 of each year.

(4) If a customer performs or permits incidents of water waste more than six consecutive months, the water service to the customer may be terminated unless in the opinion of the Director such termination would result in an unreasonable risk to the health and safety of persons. If water service is terminated for successive incident of water waste, the water service may only be restored upon execution of an agreement with the customer to adhere to the conditions of service described in this section.

(5) If a customer objects to a fine imposed for an incident of water waste pursuant to this section, the following appeal process may be used.

Step 1.

(a) Within thirty days of issuance of the utility bill including the fine, the customer may contact the Water Conservation Program to appeal an incident of water waste resulting in a fine with the staff person who initiated the enforcement measure. The staff person shall gather the facts about the incident.

(b) The customer may provide staff with evidence there was no incident of water waste, or of a bona fide reason for the incident of water waste, including evidence of a water leak, or another reasonable justification for the water use, within ten business days of the customer's first communication with the Water Conservation Program regarding the alleged incident of water waste.

(c) Within ten business days of the initiation of an appeal, staff shall provide the customer with documentation demonstrating the incident of water waste, if applicable.

(d) The staff will provide the facts and evidence related to the appeal to the Water Conservation Program Supervisor, who will determine whether to rescind the enforcement measure. The Water Conservation Program Supervisor will provide a written decision to the customer within fifteen business days of the customer's appeal, or receiving any applicable evidence from the customer, whichever comes later.

Step 2. If the customer is not satisfied with the decision of the Water Conservation Program Supervisor, they may appeal to the Director or designee within ten business days of the date of the Water Conservation Program Supervisor's decision. The Director or designee shall review the appeal and any evidence the customer previously submitted, and provide a written decision within thirty days of receiving the appeal.

Step 3. If the customer is not satisfied with the decision of the Director of Public Utilities, the customer may appeal to the City's Administrative Hearing Officer in the manner provided in Chapter 1, Article 4 of this code. Such decision shall be final.

(Orig. Ord. 4481; Am. Ord. 6486, 1964; Am. Ord. 73-120, § 6, eff. 8-16-73; Am. Ord. 77-99, § 1, eff. 9-23-77; Am. Ord. 78-74, §§ 1, 2, eff. 5-26-78; Am. Ord. 80-115, § 149, eff. 8-8-80; Am. Ord. 89-48, §§ 1, 2, eff. 4-18-89; Am. Ord. 89-77, § 1, eff. 6-7-89; Am. Ord. 89-102, § 1, eff. 9-22-89; Am. Ord. 90-72, § 1, eff. 8-24-90; Am. Ord. 90-97, § 1, eff. 10-12-90; Am. Ord. 91-104, § 1, eff. 10-18-91; Am. Ord. 91-112, § 1, eff. 11-22-91; Am. Ord. 93-14, § 1, eff.

2-23-93; Am. Ord. 93-20, § 2, eff. 4-30-93; Am. Ord. 2015-13, § 1, eff. 5-21-15; Am. Ord. 2015-29, § 1, eff. 8-27-15; Am. Ord. 2017-56, § 3, eff. 11-19-17; Am. Ord. 2018-45, § 1, eff. 8-10-18; Am. Ord. 2019-011, § 3, eff. 5-31-19; Am. Ord. 2022-026, § 1, eff. 10-8-22).

Editor's note—The provisions in subsection 6-520(e) regarding the enforcement program for incidents of water waste are effective January 1, 2018.

SEC. 6-521. VIOLATION OF AFFIDAVIT.

Any customer who develops or irrigates any portion of any premises for which a reduced water charge has been computed pursuant to Section 6-505(a)(3), and who fails to notify the controller of such development or irrigation within 30 days of the date same is commenced, shall be presumed to have used or irrigated such area for a period of twelve months prior to the date such use or irrigation first came to the Controller's attention, and shall pay the total fee prescribed for the use or irrigation of such area for said twelve-month period, together with interest and penalties thereon calculated pursuant to Section 6-106 as if such usage had been billed in the customer's regular billing cycle but had not been paid for by him, unless he establishes to the satisfaction of the Controller that such use or irrigation was maintained for a shorter period of time.
(Added Ord. 73-154, § 3, eff. 10-18-73).

SEC. 6-522. WATER EFFICIENT LANDSCAPE STANDARDS.

(a) Water used for irrigation shall be minimized to the amount needed to maintain adequate plant health and growth with a minimum of waste or over spray on adjoining areas.

(b) Operation of Efficient Irrigation Systems. All persons who have installed completely new replacement irrigation systems on existing residential units are required to file irrigation plans pursuant to the Code Section 12-306-N.23 and 24, and shall use the City of Fresno Monthly Lawn Watering Chart to determine lawn water times. Longer watering times are permitted provided it can be shown necessary by calculations based on the evapotranspiration rate and sprinkler precipitation rates. For persons who use the City of Fresno Monthly Lawn Watering Chart, each area of the lawn shall receive no more than the maximum number of minutes per week for any one area of lawn.

(c) Irrigation system operation shall comply with Code Section 6-520.

(d) The "water customer" shall modify watering duration and frequency schedules so that the sprinkler's application does not exceed the irrigated area's absorption rate and generate surface runoff.

(e) Maintenance. It is the owner's responsibility to maintain the irrigation system by checking, adjusting sprinklers, repairing or replacing defective equipment and modifying the watering times to ensure efficient use of water. The customer is responsible for any wastage of water which originates on the customer's property.

(f) Existing Irrigation Systems (Manual/Automatic). On resale of existing property, the new owner shall certify in writing prior to obtaining water service from the City of Fresno that:

(1) The irrigation system has been checked and that all broken or defective irrigation equipment has been repaired or replaced.

(2) That all the system's components are functioning properly.

(3) No leaks exist.

(g) Enforcement. If a person violates any of the provisions of this section the city may implement any or all of the following measures:

(1) Require a customer to get a landscape evaluation, lawn water audit, and water budget, as appropriate, in order to learn efficient water use. This work shall be completed at customer expense by Landscape Irrigation Auditors certified by the Irrigation Association.

(2) Require a customer to repair any defects in the watering system of such person within fourteen days of notice by the city to repair.

(3) Installation by the city of flow restrictors or termination of water service for exterior use.

(4) Termination of all water service to a customer unless in the opinion of the Director of Public Utilities such termination would result in an unreasonable risk to the health and safety of persons.

(5) Require that restoration of water service after termination be contingent on an agreement by the customer to adhere to the provisions of this section.

A. If a water customer objects to the previously mentioned enforcement measures the following appeal process may be used.

Step 1. The customer may call the Water Conservation Program in order to discuss the incident with the staff person who initiated the enforcement measures.

The staff person has no authority to rescind the enforcement measures. However, upon being contacted by the customer, the staff person shall gather the facts about the incident and explain them to the Water Conservation Program Supervisor, who may decide whether or not to rescind the enforcement measure.

Step 2. If the customer is not satisfied with the decision of the Water Conservation Program Supervisor, he/she may appeal to the Water Systems Manager who shall review such appeal and render a written decision within thirty days after such appeal.

Step 3. If the customer is not satisfied with the decision of the Water Systems Manager he/she may appeal to the Director of Public Utilities who shall review such appeal and render a written decision within thirty days after receiving such appeal.

Step 4. The customer may make a final appeal directly to the City Council if still not satisfied.

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The appeal listed in step 2 above shall be filed in writing within thirty days of the date of the notice outlining the enforcement measure. Each subsequent appeal shall be filed in writing within 30 days from the date of the written decision being appealed. (Added Ord. 94-86, § 3, eff. 10-21-94).

SEC. 6-523. DEFINITIONS FOR WATER EFFICIENT LANDSCAPE STANDARDS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 3 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Absorption rate" or "infiltration rate" means the rate of water entry into the soil expressed as a depth of water per unit of time (inches per hour).

(c) "Air Inlet Valve" means a port open to the atmosphere which permits air to enter a backflow assembly under a no water flow condition. These air inlets are utilized in atmospheric and pressure type vacuum breakers.

(d) "Application rate" means the depth of water applied to a given area, usually measured in inches per hour.

(e) "Atmospheric vacuum breaker" means an assembly containing a float-check seat and an air inlet port. The flow of water into the body causes the float to close the air inlet port. When the flow of water stops the float falls and forms a check valve against backsiphonage and at the same time opens the air inlet port to allow air to enter and satisfy the vacuum.

(f) "Automatic controller" means a mechanical or solid state timer, capable of operating valve stations to set the days, hours and length of time of water application.

(g) "Backflow prevention device" means a safety device used to prevent pollution or contamination of the water supply due to the reverse flow of water from the irrigation system.

(h) "Check valve" means a valve located under a sprinkler head to hold water in the system so it minimizes drainage from the lower elevation sprinkler heads.

(i) "Chemical injection" means the act of automatically or manually adding chemicals (usually fertilizer) to the irrigation system where it mixes with water and is subsequently applied to the landscape.

(j) "City of Fresno Monthly Lawn Watering Chart" means the chart of approximate lawn watering time (in minutes per week) published by the City of Fresno.

(k) "Cool season turf" means Annual bluegrass, Perennial rye grass, Red fescue, Tall fescue and other turf that is not dormant in winter.

(l) "Cross connection control" means any unprotected actual or potential physical connection or arrangement of piping or fixtures between two otherwise separate piping systems one of which contains potable water and the other non-potable water. This would include any temporary connections, such as swing connections, removable sections, four way plug valves, spools, dummy section of pipe, swivel or change-over devices or sliding multiport tube.

(m) "Downstream" means in the direction of the flow of a stream.

(n) "Emitter" means drip irrigation fittings that deliver water slowly from the system to the soil.

(o) "Evapotranspiration rate" means the inches of water per day.

(p) "Evaporation rate" means the inches of water per day.

(q) "Flex riser" means flexible material that allows a sprinkler head to bend if struck and come back into alignment.

(r) "Infiltration rate" means the rate at which water is absorbed into the rail expressed as a depth of water in inches.

(s) "Irrigation system" means the water delivery pipelines that supply water from the water source to the valve or outlet and to the emitters or sprinklers from the valve. An automatic controller is part of all new irrigation systems. See Section 6-501(z).

(t) "Irrigation valve circuit" means a system composed of piping, valves, pumps, controllers and outlets to distribute water to lawns, trees, shrubs, plants and other landscape facilities.

(u) "Landscaped area" means the parcel area, including the right-of-way area and any easements, less building pad(s), driveway(s) and parking areas. This includes planted areas, water bodies, and natural areas.

(v) "Landscape modification" means any change to a landscape on site or on the landscape plan.

(w) "Landscape plan" means a plan to scale of not less than one inch equals 40 feet which shall show the location, size and variety of all plantings, water supply, contours and similar designations as the Director may require for sufficient clarity to indicate the nature and extent of the work proposed.

(x) "Micro irrigation" means sprinkler heads that put out less than 16 gallons of water per hour used.

(y) "Mulch" means any material such as leaves, bark, straw or other materials left loose and applied to the solid surface to reduce evaporation.

(z) "New development" means any development for which a Development Plan is filed upon or after the effective date of this ordinance.

(aa) "Overspray" means water which is delivered beyond the landscaped area, wetting pavements, walks, structures, or other non-landscaped areas.

(bb) "Pedestrian parkway" mean those median islands or pathways which are greater than eight feet wide and used as pedestrian pathways.

(cc) "Plumbing permits" means a form obtained at the public counter of the Development Department which allows for a fee, certain plumbing related modifications or installations to occur on a structure or to landscaping.

(dd) "Pop-up spray heads" means a water pressure activated head which pops up and sprays water through a nozzle.

(ee) "Precipitation rate" means the rate at which water is applied to the plants.

(ff) "Pressure vacuum breaker" means an assembly containing an independently operating loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve. The assembly is to be equipped with properly located resilient seating test cocks and tightly closing resilient seating shut-off valves located at each end of the assembly. The entire assembly shall meet the design and performance specifications as determined by a laboratory and field evaluation program resulting in an approval by a recognized testing agency for backflow prevention assemblies. To be approved, these assemblies must be readily accessible for in-line testing and maintenance. The assembly must be installed a minimum of 12 inches above the highest water outlet, i.e. sprinkler head or tank fill.

(gg) "Rain gauge" means a system which automatically shuts off the irrigation system when it rains.

(hh) "Reduced pressure backflow preventer" means an assembly of two independently acting approved check valves together with a hydraulically operating mechanically independent pressure relief valve located between the check valves and at the same time below the first check valve. The unit shall include properly located resilient seating test cocks and tightly closing resilient seating shut-off valves at each end of the assembly. The entire assembly shall meet the design and performance specifications as determined by a laboratory and a field evaluation program resulting in an approval by a recognized testing agency for backflow prevention assemblies. The assembly shall operate to prevention assemblies. The assembly shall operate to maintain the pressure in the zone between the two check valves at an acceptable level less than the pressure on the public water supply side of the assembly. At cessation of a normal flow the pressure between the two check valves shall be less than the pressure on the public water supply side of the device. In case of leakage either of the check valves, the differential relief valve shall operate to maintain the reduced pressure in the zone between the check valves by discharging to the atmosphere. To be approved, these assemblies must be readily accessible for in-line testing and maintenance and be installed in a location where no part of the assembly will be submerged.

(ii) "Separately metered automatic irrigation system" means a system composed of pipes, valves, pumps, controllers and outlets to distribute water for landscape purposes. This system is not connected to the domestic water supply, but has a separate, metered, connection to the public water supply system.

(jj) "Shut off device" means a mechanical or electrically operated device used to terminate the flow of liquids in a piping system. These devices could be gate valves, ball valves, electrical solenoid valves, butterfly valves or globe valves.

(kk) "Slope irrigation" means applying water to vegetation on a slope.

(ll) "Soil moisture sensors" means a device which activate and deactivate irrigation valves watering shrubs and lawns.

(mm) "Sprinkler head" means a device which sprays water through a nozzle.

(nn) "Sprinkler precipitation rate" means the depth of water applied to a given area by an irrigation sprinkler, usually measured in inches per hour.

(oo) "Subsurface emitters" means a buried drip irrigation fittings that deliver water slowly from the system to the soil.

(pp) "Swing joint" means a series of elbows and nipples that allow the sprinkler to move and turn in any direction while maintaining grade.

(qq) "Turf" means a surface layer of earth containing grass with its roots.

(rr) "Turf allowance" means the amount or percentage of turn area permitted in relation to the entire landscaped area.

(ss) "Turf area" means the amount of turf included within a set of lines, specifically, the number of unit squares of turf equal in measure to the surface.

(tt) "Valve" means a device used to control the flow of water in the irrigation system.

(uu) "Warm season turf" means Bermuda grass, Hybrid Bermuda, Kikuyu grass, Seashore paspalum, St. Augustine grass, Zoysia grass and Buffalo grass and other turf that is dormant in winter.

(vv) "Water area" means that part of a landscape composed of water features such as pools, fountains and ponds.

(ww) "Water efficient practice" means the application of a method of landscaping which conserves the water.

(xx) "Watering zones" means a portion of the landscaped area having plants with similar water needs that are served by a valve or set of valves with the same schedule. A watering zone may be irrigated or non-irrigated. For example, a naturalized area planted with native vegetation that will not need supplemental irrigation once established is a non-irrigated watering zone. (Added Ord. 94-108, § 3, eff. 12-30-94).

SEC. 6-524. TRANSFER OF APPLICATION AND DISPOSITION OF WATER FOR USE ELSEWHERE.

No consumer shall have the right, except with the written consent of the city, to assign any application made by such consumer or any right of such consumer thereunder, nor to use or

permit any other person to use the water delivered to such consumer at any other place than the premises designated in such application, or for any purpose or purposes other than the purposes specified in such application. (Orig. Ord. 4481).

SEC. 6-525. METERS—INSTALLATION—READING—TESTING.

(a) All meters will be furnished and installed by the city, at its own expense, without additional charge, except in cases where special metering facilities are desired by the consumer. The point at which the meters shall be installed shall be subject to the city's approval, for the purpose of determining the amount of water delivered, the readings of each meter installed shall be deemed conclusive as to the quantity of water delivered through it, unless upon being tested such meter shall be found to be registering inaccurately and its inaccuracy shall exceed two per cent. In every case where the inaccuracy of any meter is more than two per cent, but nevertheless, can be approximately determined, the readings of such meter shall be corrected, but in all other cases where the inaccuracy of any installed meter shall, during any period of time, for any reason whatsoever, exceed two per cent, the amount of the water delivered through such meter during such period shall be estimated by the city according to all available information, but no correction for inaccuracy of meter measurement shall be made in any bill rendered by the city, unless the party complaining of such inaccuracy shall request such correction within thirty days after the rendition of such bill.

(b) All meters will be tested at the time of their installation, and no meter will be placed in service or allowed to remain in service which has an error of registration in excess of two per cent under the conditions of normal operation. Upon giving the city at least five days' notice, the consumer shall have the right to require the city to test his service meter in his presence, or in the presence of an expert or other representative appointed by him; provided, however, that if special tests are required by the consumer oftener than once in five years, a reasonable charge, based upon the cost to the city, shall be made for each additional test; provided, however, that if the results of any such test shows that the meter is registering a deviation in excess of two per cent under the conditions of normal operation, then no charge shall be made for such test. (Orig. Ord. 4481; Am. Ord. 70-13, 1970).

SEC. 6-526. METERS, APPLIANCES, ETC., PROPERTY OF CITY.

Meters (including meters required on private wells), appliances, apparatus, and fixtures of every description installed by the city, or requested by the city and installed by others, upon the consumer's premises for the purpose of delivering water to the consumer, shall continue to be the property of the city, and may be repaired, replaced or removed by it at any time. No rent or other charge whatsoever shall be made by the consumer against the city for placing or maintaining said meters, appliances, apparatus or fixtures upon the consumer's premises. The consumer shall exercise reasonable care to prevent the meter, appliances, apparatus and fixtures of the city upon said premises from being injured or destroyed and shall refrain from interfering with the same, and in case any defect thereof shall be discovered, shall immediately notify the city thereof. (Orig. Ord. 4481; Am. Ord. 85-22, § 7, eff. 3-22-85).

SEC. 6-527. CONSUMER'S RESPONSIBILITY.

(a) The consumer shall, at his own risk and expense, furnish, install and keep in good and safe condition all water pipes, machinery, and apparatus which may be required for receiving water from the city at the point of delivery and for applying and utilizing such water; and the city shall not be responsible for any loss or damage occasioned or caused by negligence or want of care on the part of the consumer in installing, maintaining, using, or operating such water pipes, apparatus, appliances, or fixtures.

(b) No alterations, addition, or disconnection in or about any water pipes or apparatus of the city water system shall be made without written permission granted by the Water Division.

(c) No consumer shall make, or allow any other person to make, any connection to or extension of such consumer's piping for the purpose of supplying any other consumer with water service, except by the express prior written consent of the city. The Director of Public Works, or his authorized representative, is hereby authorized to act for and on behalf of the city for the purpose of this section. In addition to prosecution for violation of this section, violators shall be subject to discontinuance of water service until such connection has been disconnected, and the fee designated in the Master Fee Resolution for inspection and reconnection shall be charged for restoration of service. (Orig. Ord. 4481; Am. Ord. 70-13, 1970; Am. Ord. 80-115, § 151, eff. 8-8-80).

SEC. 6-528. RATE REGULATIONS.

(a) Complete schedules of all rates legally in effect as designated in the Master Fee Resolution, shall be kept at all times in the City Clerk's office where they will be available for public inspection. The rates and minimum charges set forth in the effective rate schedules are based upon the city's supply through one meter, except that where the city shall, for operating convenience, install in place of one meter, two or more meters, then the readings of such two or more meters shall be combined for the purpose of making charges. Where submeters or secondary meters are desired by the consumer, such meters will be charged for separately on the monthly rental basis.

(b) The unmetered service rates and minimum charges set forth in the Master Fee Resolution are based upon the delivery of service to each separate premises, provided that if water service is used from the same service connection in small houses located on the same lot as and in the rear of the house paying the irrigation charge for such lot, no additional irrigation minimum charge shall be made in connection with such small houses. (Orig. Ord. 4481; Am. Ord. 80-115, § 152, eff. 8-8-80).

SEC. 6-529. OPTIONAL RATES FOR SERVICE.

(a) Should any consumer who is receiving unmetered service desire to be furnished with metered service, then upon receipt by the city from the consumer of a written application to the city therefor, on a form furnished by the city for that purpose, said application being made to the city at its offices in Fresno at least thirty days prior to the date on which such metered service is desired, the city shall install a meter as outlined in the rules and regulations and

furnish such metered service, provided that whenever any consumer changes from unmetered service to metered service, as aforesaid, such metered service shall continue until changed as hereinafter provided.

(b) Should any consumer who is receiving metered service desire to be furnished with unmetered service, then upon receipt by the city from the consumer of a written application to the city therefor, on a form furnished by the city for that purpose, said application being made to the city at its office in Fresno at least ten days prior to the date on which such unmetered service is desired, the city may, at its option, grant or deny such application.

(c) The city may, by giving the consumer ten days written notice of its intention so to do, change the delivery of its service to said consumer from unmetered service to that of metered service.

(d) The city may, with the consent of the consumer, change the delivery of its service from metered service to that of unmetered service. (Orig. Ord. 4481).

SEC. 6-530. TEMPORARY SERVICE.

The city will, if in its opinion the furnishing of such service will not work an undue hardship upon its then existing consumers, furnish temporary service under the following conditions and as set forth in the rate schedules herein contained:

(1) The applicant for such temporary service will be required to pay to the city, in advance or otherwise as the city may elect, the cost of installing and removing any facilities necessary in connection with the furnishing of such service by the city.

(2) Each applicant for temporary service will be required to deposit with the city a sum of money equal to the estimated amount of the city's bill for such service or to otherwise secure, in a manner satisfactory to the city, the payment of any bills which may accrue by reason of such service so furnished or supplied.

(3) Nothing in this rule shall be construed as limiting or in any way affecting the right of the city to collect from the consumer any other or additional sum of money which may become due and payable to the city from the consumer by reason of the temporary service furnished or to be furnished hereunder. (Orig. Ord. 4481).

SEC. 6-531. DISCONTINUANCE OF SERVICE TO UNSAFE APPARATUS.

If any part of the consumer's installation shall at any time in the opinion of the city be inadequate or unsafe, the city shall have the right, to be exercised at its option, to cease delivering water until the consumer shall put such installation in adequate and safe condition. The city does not assume the duty of inspecting the consumer's apparatus, appliances, or equipment, or any part thereof, except as specified in Article 8 for cross-connection control devices, and assumes no liability therefor. In the event the water service apparatus to the consumer is defective, the consumer shall immediately notify the city of the fact. (Added Ord. 72-2, 1972; Am. Ord. 2002-3, § 10, eff. 2-11-02).

SEC. 6-532. CITY'S RIGHT OF INGRESS TO AND EGRESS FROM CONSUMER'S PREMISES.

The Water Division representatives shall, at all times, have the right of ingress to and egress from the consumer's premises at all reasonable hours for any and all purposes reasonably connected with the furnishing of water, including access to premises wherein meters are required on private wells, and to exercise any and all rights secured to the city by law or these rules and regulations. (Orig. Ord. 4481; Am. Ord. 85-22, § 8, eff. 3-22-85).

SEC. 6-533. CONNECTION OF SERVICE BY UNAUTHORIZED PERSON PROHIBITED. USE OF WATER AFTER DISCONTINUANCE OF SERVICE.

(a) No person other than a duly authorized employee of the city shall connect any consumer's water pipes and apparatus with the city's mains. No person other than a duly authorized employee of the city shall open or turn on any city water valve regulating the flow of water from the city water mains to any consumer's premises after such valve shall have been turned off by the city for non-payment of charges for water or at the request of the present consumer or a previous consumer, or for any other reason.

(b) No owner, lessee, tenant or other person in possession of or having charge and control of any premises connected to the city water system shall use or permit to be used any water from such system through the consumer's water pipes connected with such system, unless prior to such use, water service to such premises shall have been granted by the city pursuant to application made by such person or the person under whom he holds such possession or charge and control, and such water service has not been discontinued in any manner set forth in subsection (a) of this section.

(c) A special charge in the amount designated in the Master Fee Resolution shall be assessed against any person or persons violating any provision of subsections (a) or (b). This special charge shall cover the expense to the city of checking such water main or connection and turning it off again after it has been turned on in violation of subsection (a) or (b). This charge shall be in addition to any other remedy, civil or penal, which may be available to the city to enforce the provisions hereof, and all such remedies shall be cumulative at the election of the city.

(d) Any repair to or replacement of city property necessitated by a violation of this section, and the installation of any device necessary to prevent further violations of this section, shall be made at the expense of the consumer, at the rate designated in the Master Fee Resolution. (Orig. Ord. 4481; Am. Ord. 5743, 1960; Am. Ord. 80-115, § 155, eff. 8-8-80; Am. Ord. 80-132, § 16, eff. 10-3-80).

SEC. 6-534. USE OF FIRE HYDRANTS REGULATED.

(a) When it is necessary to use water temporarily in connection with any type of construction or other operation at a place where the supply is inadequate for such purposes, application may be made to the Water Division for a permit to use water from a fire hydrant.

(b) No person other than a duly authorized employee of the city shall use water from, or connect any apparatus to, a fire hydrant without first obtaining a permit from the Water Division and securely attaching such permit to the fire hydrant at a conspicuous place near the point of connection.

(c) Each permit shall specify the fire hydrant or hydrants authorized to be used and no person shall attach such permit to any other hydrant, nor shall any person remove, obliterate, deface, or obscure any permit.

(d) No person other than a duly authorized employee of the city shall attach to the operating stem or cap of a fire hydrant any wrench or tool that is not approved by the Water Division for use on fire hydrants.

(e) Any permit, wrench, connecting apparatus, valve, hose, or other apparatus attached to a fire hydrant in violation of this section shall be subject to removal and confiscation by the city.

(f) The applicable water rate, determined as specified in Section 6-504, shall be doubled for water used in violation of this section, subject to the minimum charge designated in the Master Fee Resolution. No permit or additional permit shall be issued to any person who is in violation of this section until all such charges have been paid.
(Added Ord. 70-13, 1970; Am. Ord. 80-115, § 156, eff. 8-8-80).

SEC. 6-535. DEPOSIT AND INSTALLATION CHARGES FOR TEMPORARY SERVICE.

(a) Deposits for the use of equipment and charges for the installation thereof shall be designated in the Master Fee Resolution.

(b) The deposits required by this section shall be refunded to the customer upon the return of all equipment, provided that deductions shall be made for water service charges due, and for the cost of repair or replacement of damaged equipment. Failure to return all equipment no later than five days after termination of use or the expiration of the water permit may result in a forfeiture of all deposits.

(c) Contractors using water in connection with city construction contracts shall not be required to make any deposit for the use of equipment.
(Added Ord. 70-13, 1970; Am. Ord. 80-115, § 157, eff. 8-8-80).

SEC. 6-536. ASSURING ADEQUATE CAPACITY IN DESIGNATED AREAS OF UNCERTAIN WATER CAPACITY.

(a) Notwithstanding any other provision of this Code, this section shall apply to development in any area of the city designated by the Council (by ordinance, resolution, official plan or policy) for which the Council has determined adequate water capacity is uncertain, due to ground water contamination, pollution, condition of drought, or emergency within the meaning of Public Resources Code Section 21060.3 resulting in a condition which is dangerous to the health or safety or both of the residents of the area.

(b) The Council may require all development not yet constructed in any area of the city, as provided in Subdivision (a) where water capacity is uncertain, including approved tentative subdivision and tentative parcel maps and all other development subject to a special permit for which building permits have not yet been issued, to be subjected to the water findings procedure of the Woodward Park Community Plan, adopted by the Council on December 5, 1989, for determining if an adequate supply of water is available. In such situations the Council may impose conditions of approval deemed necessary by the Public Works Director or the Fire Chief which will ensure that an adequate supply of water is available at the time of occupancy of the development. These conditions of approval may include but are not limited to construction of facilities to enhance the supply or delivery of water to the development.

(c) All development for which building permits have not yet been issued in any area of the city, as provided in Subdivision (a) where water capacity is uncertain, shall be subject to all fees established by the Council for water system enhancements, including but not limited to the water capacity fee in accordance with the provisions of Section 6-507 and the Master Fee Resolution.

(Added Ord. 90-2, § 9, eff. 1-8-90; Am. Ord. 2017-19, § 8, eff. 6-18-17).

ARTICLE 6 HEAT TRANSFER SYSTEMS UTILIZING WATER

Sec. 6-601. Definitions.
Sec. 6-602. Permit Required.
Sec. 6-603. Water Conservation Device Required.
Sec. 6-604. Conformance to Other Code Provisions.
Sec. 6-605. Discontinuance of Water Service for Violations.

SEC. 6-601. DEFINITIONS.

The following words and phrases as used in this article, unless a different meaning is clearly required by the context, shall have the following meanings:

(1) "System" shall mean any equipment, apparatus, contrivance, or device, or any combination thereof, whereby water is used wholly or in part to add heat to or remove heat from a gas, a liquid, a product, or a machine, and shall include air conditioning and refrigeration systems.

(2) "Drainage well" shall have the meaning designated by Section 6-401 of this Code.

(3) "Evaporative cooler" shall mean any device whereby air is directly cooled by the evaporation of water.

(4) "Premises" shall mean a tract of real estate, including adjoining lots or parcels under the same ownership or control and the improvements thereon, which is determined by the Controller to be a single unit for purposes of receiving, using, and paying for service.

(5) "Water conservation device" shall mean an evaporative condenser, water cooling tower, or similar apparatus by which any fluid or gas, used in any system for heat transfer, is cooled by recirculated water, and which does not consume water in an amount in excess of 0.15 gallons per minute per ton of capacity, and as to an evaporative cooler, it shall mean a water recirculating device.

(6) "Ton of capacity" shall mean cooling capacity for the computation of which the following relationships shall be deemed correct: one ton per hour which equals one horsepower which equals 12,000 B. T. U.'s per hour.

(7) "Water Division" shall mean the Water Division of the Department of Public Works of the city.

(8) "City water" shall mean water furnished by the Water Division.

(9) "Director" shall mean the Director of Public Works of the city. (Added Ord. 4890, 1956; Rep. and Added Ord. 6436, 1964; Am. Ord. 70-3, 1970).

SEC. 6-602. PERMIT REQUIRED.

No person shall install or replace any system which requires a supply of city water without having first obtained a permit from the Department of Planning and Inspection of the city. (Added Ord. 4890, 1964; Rep. and Added Ord. 6436, 1964).

SEC. 6-603. WATER CONSERVATION DEVICE REQUIRED.

(a) No person shall install or replace any system including portable systems on any premises, unless such system is equipped with a water conservation device, and such device is properly maintained at all times, except as follows:

(1) In a multi-story building, unconserved water-cooled refrigeration units used only for the commercial preservation of food may be installed, replaced or maintained provided that such unit has a capacity of less than one ton and that all such units on any one premises do not exceed a cumulative total capacity of two tons and do not consume more than 1.5 gallons of water per minute per ton of capacity per unit.

(2) Evaporative coolers may be installed, replaced, or maintained provided that no evaporative cooler or coolers on any premises shall have a cumulative total capacity of more than eighteen hundred cubic feet of air per minute.

(3) A system may be installed, replaced or maintained provided it is not connected to city water, and a source of water supply is developed on the same premises for the exclusive use of such system, and a drainage well, drilled pursuant to and in conformance with Article 4 (commencing with Section 6-401), Chapter 6, of this Code, is used as the sole means of disposing of water discharged from such system.

(b) When a system is installed or maintained on any premises contrary to the provisions of this article, no city water service shall be granted to serve said premises, whether located in or out of the city limits.

(c) No person shall sell or deliver any evaporative cooler designed to deliver more than eighteen hundred cubic feet of air per minute which he knows or has reason to know is intended to use city water unless such cooler is, when sold and delivered, equipped with a water conservation device. (Added Ord. 4890, 1956; Am. Ord. 5309, 1958; Rep. and Added Ord. 6436, 1964).

SEC. 6-604. CONFORMANCE TO OTHER CODE PROVISIONS.

Any system using city water shall conform to all other applicable sections of this Code. (Added Ord. 4890, 1956; Rep. and Added Ord. 6436, 1964; based on former Sec. 14-205).

SEC. 6-605. DISCONTINUANCE OF WATER SERVICE FOR VIOLATIONS.

(a) Whenever the Director shall find that because of illegal or improper installation, alteration, improper operations, or lack of maintenance, any system connected to city water will, when operated, cause use of city water in excess of 0.15 gallons per minute per ton of capacity for systems with conservation devices, or 1.5 gallons per minute per ton of capacity for systems described in subsection (a) (1) of Section 6-603, or will cause waste water therefrom to be discharged in violation of any provision of this Code, the Director shall give notice in writing to correct the deficiency. The notice shall identify the system and specify the correction or corrections required, and shall contain a statement that if the deficiency is not corrected or the system disconnected from city water within fifteen days from the date of service of such

notice, the Director will order that city water service to the premises on which such system is located be discontinued forthwith. The notice shall be directed to and served upon the person in whose name water service to the premises is then being furnished, as shown by the accounting records of the city, or, if such service is in the names of more than one person, to either or any of such persons. A copy of such notice shall also be served upon each person having possession as tenant or otherwise, of all or any part of the premises and who receives city water service by the same service connection which supplies the system described in the notice.

(b) If, upon the expiration of fifteen days from the date of service of the notice, the system has not been corrected as specified in the notice or disconnected from city water, the Director shall order the city water service to the premises on which such system is maintained to be discontinued; provided, that the Director may for good cause extend the time for making any required correction for not to exceed an additional thirty days.

(c) No premises which have been disconnected from city water service by order of the Director pursuant to subsection (b) hereof shall be reconnected until the system has been corrected as specified in the notice or disconnected from city water, and until all reconnection charges required by this chapter have been paid. (Added Ord. 4890, 1956; Rep. and Added Ord. 6436, 1964; Based on former Sec. 14-208).

ARTICLE 7 URBAN STORM WATER QUALITY MANAGEMENT AND DISCHARGE CONTROL

Sec. 6-701. Title.
Sec. 6-702. Purpose and Intent.
Sec. 6-703. Definitions.
Sec. 6-704. Applicability.
Sec. 6-705. Administration.
Sec. 6-706. Severability.
Sec. 6-707. Regulatory Consistency.
Sec. 6-708. Ultimate Responsibility of Discharger.
Sec. 6-709. Prohibition of Illicit Discharges.
Sec. 6-710. Prohibition of Illicit Connections.
Sec. 6-711. Waste Disposal Prohibitions.
Sec. 6-712. Discharges in Violation of Municipal NPDES Storm Water Discharge Permit.
Sec. 6-713. Discharges in Violation of Industrial NPDES Storm Water Discharge Permit.
Sec. 6-714. Requirement to Prevent, Control, and Reduce Storm Water Pollutants.
Sec. 6-715. Requirement to Eliminate Illicit Discharges.
Sec. 6-716. Requirement to Eliminate or Secure Approval for Illicit Connections.
Sec. 6-717. Requirement to Remediate.
Sec. 6-7l8. Requirement to Monitor and Analyze.
Sec. 6-719. Notification of Spills.
Sec. 6-720. Authority to Inspect.
Sec. 6-721. Authority to Sample, Establish Sampling Devices, and Test.
Sec. 6-722. Notice of Violation.

SEC. 6-701. TITLE.

This article shall be known as the "Urban Storm Water Quality Management and Discharge Control Ordinance of the City of Fresno and may be so cited. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-702. PURPOSE AND INTENT.

The purpose and intent of this article is to ensure the health, safety, and general welfare of citizens, and protect the water quality of watercourses and water bodies in a manner pursuant to and consistent with the Federal Clean Water Act (33 U.S.C. §§ 1251 *et sequentes*) by reducing pollutants in urban storm water discharges to the maximum extent practicable and by effectively prohibiting non-storm water discharges to the storm drain system. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-703. DEFINITIONS.

The terms used in this article shall have the following meanings:

(a) "Agricultural Lands" is defined as a parcel of land under a single ownership and of five or more acres used primarily for agricultural pursuits consisting of raising tree, vine, field, forage, or other plant life, crops of all kinds, or the maintenance, breeding, and raising of animals.

(b) "Authorized Enforcement Agent" is the City Manager of the City of Fresno and any individual designated in writing by the City Manager as an Authorized Enforcement Agent.

(c) "Best Management Practices" means activities, practices, and procedures to prevent or reduce the discharge of pollutants directly or indirectly to the municipal storm drain system and waters of the United States. Best Management Practices include but are not limited to: Treatment facilities to remove pollutants from storm water; operating and maintenance procedures; facility management practices to control runoff, spillage or leaks of non-storm water, waste disposal, and drainage from materials storage; and the prohibition of specific activities, practices, and procedures.

(d) "Clean Water Act" is the Federal Water Pollution Control Act enacted by Public Law 92-500 as amended by Public Laws 95-217, 95-576, 96-483, and 97-117 (33 U.S.C. § 1251 et seq.), and any regulations adopted pursuant thereto.

(e) "District" means the Fresno Metropolitan Flood Control District.

(f) "Hazardous Materials" is defined as any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

(g) "Illicit Connections" are defined as either of the following:

(1) Any drain, conveyance, or condition of property whether on the surface or subsurface, which allows an illicit discharge to enter the storm drain system, including but not limited to any conveyances which allow sewage, process wastewater and wash water to enter the storm drain system and any connections to the storm drain system from indoor drains and sinks, regardless of whether said drain or connection had been previously allowed, permitted, or approved by a government agency; or

(2) Any drain or conveyance connected from a commercial or industrial land use to the storm drain system which has not been documented in plans, maps, or equivalent records and approved by the District.

(h) "Illicit Discharge" is defined as any direct or indirect non-storm water discharge to the storm drain system, except as exempted in Section 6-709 of this article.

(i) "Industrial National Pollutant Discharge Elimination System (NPDES) Storm Water Discharge Permits" are general, group, and individual storm water discharge permits which regulate facilities defined in federal NPDES regulations as engaging in industrial activity pursuant to the Clean Water Act. The California Regional Water Quality Control Board, Central Valley Region (hereinafter, Regional Board) and the State Water Resources Control Board have adopted general storm water discharge permits, including but not limited to the General Construction Activity and General Industrial Activity permits.

(j) "Municipal NPDES Storm Water Discharge Permit" is the area-wide NPDES storm water discharge permit issued pursuant to the Clean Water Act by the Regional Board to the

District, City of Fresno, City of Clovis, County of Fresno, Caltrans, and California State University Fresno to regulate discharges from the municipal separate storm drain system to waters of the U.S. (Order No. 94-244, NPDES Permit No. CA0083500, and any amendments, revisions, or reissuance thereof.)

(k) "Non-Storm Water Discharge" is any discharge to the storm drain system that is not composed entirely of storm water.

(l) "Permit Area" is the area subject to the terms and conditions of the municipal NPDES storm water discharge permit; said area being the planned urban local drainage areas specified within the District's adopted Storm Drainage and Flood Control Master Plan, as it may be amended from time to time.

(m) "Person" shall be taken to mean, for purposes of this article, any person, firm, association, club, organization, corporation, partnership, business trust, company, government agency, or other entity which is recognized by law as the subject of rights or duties.

(n) "Pollutant" is defined as anything which causes or contributes to pollution. Pollutants may include, but are not limited to: Paints, varnishes, and solvents; oil and other automotive fluids; non-hazardous solid wastes and yard wastes; pesticides, herbicides, and fertilizers; hazardous substances and wastes; sewage, fecal coliform and pathogens; dissolved and particulate metals; animal wastes; wastes and residues that result from constructing a building or structure (including but not limited to sediments, slurries, and concrete rinsates); and noxious or offensive matter of any kind.

(o) "Pollution" is defined as the human-made or human-induced alteration of the quality of waters by waste to a degree which unreasonably affects, or has the potential to unreasonably affect, either the waters for beneficial uses or the facilities which serve these beneficial uses.

(p) "Porter-Cologne Act" means the California Porter-Cologne Water Quality Control Act, and as it may be amended from time to time (California Water Code §§ 13000 *et sequentes*).

(q) "Premises" shall be taken to mean any building, lot, parcel of land, or portion of land whether improved or unimproved, including adjacent sidewalks and parking strips.

(r) "Storm Drain System" shall mean publicly-owned facilities operated by the District or City of Fresno and privately-owned facilities, by which storm water is collected and/or conveyed, including but not limited to any roads with drainage systems, municipal streets, gutters, curbs, inlets, piped storm drains, pumping facilities, retention and detention basins, natural and man-made or altered drainage channels, reservoirs, and other drainage structures which are within the Permit Area and are not part of a publicly owned treatment works as defined at 40 CFR Section 122.2.

(s) "Storm Water" is any surface flow, runoff, and drainage associated with rain storm events and snow melt.

(t) "Water of the United States (U.S.)" means surface watercourses and water bodies as defined at 40 CFR § 122.2. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-704. APPLICABILITY.

This article shall apply to all storm water generated on any developed and undeveloped urban lands lying within the City of Fresno and within the Permit Area including any amendments or revisions thereto. This article shall not apply to storm water generated on agricultural lands. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-705. ADMINISTRATION.

The City Manager shall administer, implement, and enforce the provisions of this article. Any powers granted or duties imposed upon the City Manager may be delegated in writing by the City Manager to persons or entities acting in the beneficial interest of or in the employ of the City of Fresno. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-706. SEVERABILITY.

The provisions of this article are hereby declared to be severable. If any provision, clause, sentence, or paragraph of this article or the application thereof to any person, establishment, or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of this article. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-707. REGULATORY CONSISTENCY.

This article shall be construed to assure consistency with the requirements of the Federal Clean Water Act and California Porter-Cologne Act and acts amendatory thereof or supplementary thereto, applicable implementing regulations, and NPDES permit No. CA0083500 and any amendments, revisions, or reissuance thereof. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-708. ULTIMATE RESPONSIBILITY OF DISCHARGER.

The standards set forth herein and promulgated pursuant to this article are minimum standards; therefore, this article does not intend nor imply that compliance by any person will ensure that there will be no contamination, pollution, or unauthorized discharge of pollutants into waters of the U.S. caused by said person. This article shall not create liability on the part of the City of Fresno, or any agent or employee thereof, for any damages, claims, or liabilities that result from any discharger's reliance on this article or any administrative decision lawfully made hereunder. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-709. PROHIBITION OF ILLICIT DISCHARGES.

The commencement, conduct or continuance of any illicit discharge to the storm drain system is prohibited except as described below.

(a) Discharges from the following activities will not be considered a source of pollutants to the storm drain system and to waters of the U.S. when properly managed to ensure that potential pollutants are not present, and therefore they shall not be considered illicit discharges subject to this prohibition, unless specifically determined to cause a violation of the provisions of the Porter-Cologne Act, Clean Water Act, or this ordinance; water line

flushing; uncontaminated pumped ground water and other discharges from potable water sources; landscape irrigation and lawn watering; irrigation water, storm water runoff, and return flows from agricultural lands; diverted stream flows; rising ground water; uncontaminated ground water infiltration to the storm drain system; foundation and footing drainage; water from crawl space pumps; air conditioning condensate; springs; individual residential and occasional non-commercial car washing; flows from riparian habitats and wetlands; de-chlorinated swimming pool discharge; municipal and construction-related street was waters; and waters from fire fighting.

(b) The prohibition shall not apply to any non-storm water discharge permitted or approved under an NPDES permit, waiver, or waste discharge order issued to the dischrrger and administered by the State of California under the authority of the federal Environmental Protection Agency, provided that the discharger is in full compliance with all requirements of the permit, waiver, or order and other applicable laws and regulations and provided that written approval has been granted by the District for any discharge to the storm drain system.

(c) With written concurrence of the Regional Board, the District may exempt in writing other non-storm water discharges which are not a source of pollutants to the storm drain system or waters of the U.S. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-710. PROHIBITION OF ILLICIT CONNECTIONS.

(a) The construction, use, maintenance or continued existence, beyond the commencement of this ordinance, of illicit connections to the storm drain system are prohibited.

(b) This prohibition expressly includes, without limitation, illicit connections made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-711. WASTE DISPOSAL PROHIBITIONS.

No person shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, left, or maintained, in or upon any public or private property, driveway, parking area, street, alley, sidewalk, component of the storm drain system, or water of the U.S., any refuse, rubbish, garbage, litter, or other discarded or abandoned objects, articles, and accumulations, so that the same may cause or contribute to pollution. Wastes deposited in streets immediately prior to and for the purposes of collection are exempted from this prohibition.

SEC. 6-712. DISCHARGES IN VIOLATION OF MUNICIPAL NPDU STORM WATER DISCHARGE PERMIT.

Any discharge that could result in or contribute to a violation of the municipal NPDES storm water discharge permit or any amendment or revision thereto or reissuance thereof, is a violation of this article and is prohibited. Person(s) causing or responsible for the discharge

are liable therefor, and shall defend, indemnify, and hold harmless the City of Fresno in any administrative or judicial enforcement action relating to such discharge. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-713. DISCHARGES IN VIOLATION OF INDUSTRIAL NPDES STORM WATER DISCHARGE PERMIT.

Any person subject to any industrial NPDES storm water discharge permit shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to the City Manager prior to or as a condition of a subdivision map, site plan, building permit, or development or improvement plan; upon inspection of the facility; during any enforcement proceeding or action; or for any other reasonable cause. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-714. REQUIREMENT TO PREVENT, CONTROL, AND REDUCE STORM WATER POLLUTANTS.

(a) Authorization to Adopt and Impose Best Management Practices. The City of Fresno may adopt requirements identifying appropriate Best Management Practices for any activity, operation, or facility which may cause or contribute to pollution or contamination of storm water, the storm drain system, or waters of the U.S. Where Best Management Practices requirements are promulgated by the City of Fresno or any federal, State of California, regional agency, for any activity, operation, or facility which would otherwise cause the discharge of pollutants to the storm drain system or water of the U.S., every person undertaking such activity or operation, or owning or operating such facility shall comply with such requirements.

(b) New Development and Redevelopment. The District may adopt requirements identifying appropriate Best Management Practices to control the volume, rate, and to reduce or eliminate the potential pollutant load of storm water runoff from new development and redevelopment projects as may be appropriate to minimize the generation, transport and discharge of pollutants. The City of Fresno may incorporate such requirements in any land use entitlement and construction or building-related permit to be issued relative to such development or redevelopment.

(c) Responsibility to Implement Best Management Practices. Notwithstanding the presence or absence of requirements promulgated pursuant to subsections a. and b., any person engaged in activities or operations, or owning facilities or property, which will or may result in pollutants entering storm water, the storm drain system, or waters of the U.S. shall implement Best Management Practices to the extent they are technologically and economically achievable to prevent and reduce such pollutants. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-715. REQUIREMENT TO ELIMINATE ILLICIT DISCHARGES.

The Authorized Enforcement Agent may require by written notice that a person responsible for an illicit discharge immediately, or by a specified date, discontinue the discharge and, if necessary, take measures to eliminate the source of the discharge to prevent the occurrence of future illicit discharges. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-716. REQUIREMENT TO ELIMINATE OR SECURE APPROVAL FOR ILLICIT CONNECTIONS.

(a) The Authorized Enforcement Agent may require by written notice that a person responsible for an illicit connection to the storm drain system comply with the requirements of this article to eliminate or secure approval for the connection by a specified date, regardless of whether or not the connection or discharges to it had been established or approved prior to the effective date of this article.

(b) If, subsequent to eliminating a connection found to be in violation of this article, the responsible person can demonstrate that an illicit discharge will no longer occur, said person may request City of Fresno approval to reconnect. The reconnection or reinstallation of the connection shall be at the City of Fresno's discretion and shall be at the responsible person's expense. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-717. REQUIREMENT TO REMEDIATE.

Whenever an Authorized Enforcement Agent finds that a discharge of pollutants is taking place or has occurred which may result in or has resulted in pollution of storm water, the storm drain system, or water of the U.S., the agent may require by written notice to the responsible person that the pollution cease, be remediated, and the affected property restored within a specified time. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-718. REQUIREMENT TO MONITOR AND ANALYZE.

The Authorized Reinforcement Agent may require by written notice of requirement that any person engaged in any activity and/or owning or operating any facility which may cause or contribute to storm water pollution, illicit discharges, and/or non-storm water discharges to the storm drain system or waters of the U.S., to undertake at said person's expense such monitoring and analyses and furnish such reports to the District as the agent deems necessary to determine compliance with this article. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-719. NOTIFICATION OF SPILLS.

Notwithstanding other requirements of law, as soon as any person responsible for a facility or operation, or responsible for emergency response for a facility or operation has information of any known or suspected release of hazardous materials which are resulting or may result in illicit discharges or pollutants discharging into storm water, the storm drain system, or water of the U.S., said person shall take all necessary steps to ensure the discovery, containment, and cleanup of such release. In the event of such a release of a hazardous material, said person shall immediately notify emergency response officials of the occurrence via emergency dispatch services (911). In the event of a release of non-hazardous materials, said person shall notify the District in person or by phone or facsimile no later than 5:00 p.m. of the next business day. Notifications in person or by phone shall be confirmed by written notice from said person, addressed and mailed to the District within three business days of the phone notice. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-720. AUTHORITY TO INSPECT.

Whenever necessary to make an inspection to enforce any provision of this article, or whenever the Authorized Enforcement Agent has cause to believe that there exists, or potentially exists, in or upon any premises any condition which constitutes a violation of this article, the agent may enter such premises at all reasonable times to inspect the same and to inspect and copy records related to storm water compliance. In the event the owner or occupant refuses entry after a request to enter and inspect has been made, the agent is hereby empowered to seek assistance from any other governmental agency and/or any court of competent jurisdiction in obtaining such entry. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-721. AUTHORITY TO SAMPLE, ESTABLISH SAMPLING DEVICES, AND TEST.

During any inspection as provided herein, the Authorized Enforcement Agent may take any samples deemed necessary to aid in the pursuit of the inquiry or to record site activities. Subject to the access provisions of Section 6-720, the agent may establish on any property such devices as are necessary to conduct sampling or metering and may perform smoke or dye tests to determine the source of a discharge or pipe. (Added Ord. 97-16, § 1, eff. 5-9-97).

SEC. 6-722. NOTICE OF VIOLATION.

(a) The Authorized Enforcement Agent may enforce the provisions of this article in the same manner as any other City of Fresno ordinance is enforced.

(b) As a precursor to any other enforcement action the Authorized Enforcement Agent may order compliance with this article by written notice of violation to any person in non-compliance with this article. Such notice may require without limitation:

(1) The performance of monitoring, analysis, and reporting;

(2) The elimination of illicit connections or discharge;

(3) That violating discharges, practices, or operations shall cease and desist;

(4) The abatement or remediation of storm water pollution or contamination hazards and the restoration of any affected property; and

(5) The implementation of source control or treatment pursuant to Best Management Practices. (Added Ord. 97-16, § 1, eff. 5-9-97).

ARTICLE 8 CROSS-CONNECTION CONTROL

Sec. 6-801. Authority
Sec. 6-802. Definition
Sec. 6-803. General Provisions
Sec. 6-804. Requirements

SEC. 6-801. AUTHORITY.

This ordinance is adopted pursuant to the State of California Administrative Code, Title 17 Public Health entitled "Regulations Relating to Cross-Connections." (Add. Ord. 2002-3, § 11, eff. 2-11-02).

SEC. 6-802. DEFINITIONS.

Unless a particular provision or context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 4 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Approved" means accepted by the Water Systems Manager.

(b) "Auxiliary Water Supply" means any water supply on or available to the premises other than the city water supply.

(c) "Backflow" means the reversal of the normal flow of water caused by either backpressure or backsiphonage.

(d) "Backflow Prevention Tester Certified" means a person who has proved his/her competency to the satisfaction of the Water Systems Manager related to repair and testing of backflow assemblies.

(e) "Backpressure" means the flow of water or other liquids, mixtures or substances under pressure into the city water supply.

(f) "Backsiphonage" means the flow of water or other liquids mixtures or substances into the city water supply caused by the reduction of pressure in the city water supply system.

(g) "Backflow Prevention Assembly" means an approved assembly or means designed to prevent backflow.

(1) "Air gap" means a physical separation between the free flowing discharge end of a water supply pipeline and an open or non-pressure receiving vessel. The gap shall be at least double the diameter of the supply pipe measured vertically above the overflow rim of the vessel, but in no case less shall be less than one inch.

(2) "Reduced Pressure Principle Assembly" means an assembly of two independently acting approved check valves together with a hydraulically operating, mechanically independent differential pressure relief valve located between the check valves and at the same time below the first check valve. The unit shall include properly located resilient seating test cocks and tightly closing resilient seating shut-off valves at each end of the assembly. To be approved, this assembly must be readily accessible for in-line testing and maintenance and be installed in a location where no part of the assembly will be submerged.

(3) "Double Check Valve Assembly" means an assembly of two independently operating approved check valves with tightly closing resilient seating shut-off valves on each end of the check valves, plus properly located resilient seating, test cocks for the testing of each check valve. To be approved, this assembly must be readily accessible for in-line testing and maintenance and be installed in a location where no part of the assembly will be submerged.

(4) "Pressure Vacuum Breaker Assembly" means an assembly containing an independently operating loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve. The assembly is to be equipped with properly located resilient seating test cocks and tightly closing resilient seating shut-off valve located at each end of the assembly. To be approved, these assemblies must be readily accessible for in-line testing and maintenance. The assembly must be installed a minimum of twelve (12) inches above the highest water outlet, i.e. sprinkler head or tank fill. To be approved, this assembly must be readily accessible for in-line testing and maintenance and be installed in a location where no part of the assembly will be submerged.

(h) "Consumer" means a property owner or the operator of a water system which is supplied water from the city water system.

(i) "Contamination" means a degradation of the quality of water which creates an actual hazard to the public health through poisoning or through the spread of disease.

(j) "Cross-Connection" means any unprotected actual or potential connection or structural arrangement between a water system and any other source or system through which it is possible to introduce into any part of the city water system contamination or pollution.

(k) "Cross-Connection Controlled" means a connection between the city water system and a used water system with an approved backflow prevention assembly properly installed and maintained so that it will continuously afford the protection commensurate with the degree of hazard.

(l) "Cross-Connection Control by Containment" means the installation of an approved backflow prevention assembly at the point of water service connection to any consumer's premises.

(m) "Degree of Hazard" means the degree of potential risk to public health and the adverse effect of the hazard upon the city water supply.

(1) "Health Hazard" means any condition, device or practice which could create, or in the judgement of the Water Systems Manager, may create a danger to the health and well-being of the water consumer.

(2) "Pollutional Hazard" means an actual or potential threat to the physical properties of the city water system.

(n) "Manual of Cross Connection Control Policies" means a written guideline that includes policies, procedures, drawings and technical data. This information will be updated on a regular basis as practices and conditions warrant by the Water Systems Manager, in concurrence with the Director of Public Utilities.

(o) "Pollution" means the presence of any foreign substance (organic, inorganic, or biological) in water, which tends to degrade its quality so as to constitute a hazard or impair the usefulness or quality of the water to a degree, which does not create an actual hazard to the public health, but, which does adversely and unreasonably affect such waters for domestic use.

(p) "Service Connection" shall mean that part of the city system including all necessary piping and equipment from the water main to and including the curb stop or water meter. The city system shall terminate at the curb stop or outlet of the meter.

(q) "Used Water" means any water supplied by the City of Fresno from the city water system that is no longer under the control of the City of Fresno Water Division.

(r) "Water System Manager" means the Water System Manager in charge of the Water Division of the City of Fresno. (Add. Ord. 2002-3, § 11, eff. 2-11-02).

SEC. 6-803. GENERAL PROVISIONS.

This section sets forth uniform requirements for the protection of the City of Fresno Water System.

(a) **Purpose.**

(1) To protect the City of Fresno Water System from the possibility of contamination or pollution which could backflow into the public water systems.

(2) To eliminate or control existing cross-connections, actual or potential, between the consumer's water system and the water supply of the City of Fresno.

(3) To provide for the maintenance of a continuing program of Cross-Connection Control which will systematically and effectively prevent the contamination or pollution of all City of Fresno Public Water Systems.

(b) **Responsibility.** The Water Systems Manager shall be responsible for the protection of the public water system from contamination or pollution due to the backflow of contaminants or pollutants through any water service connection. If, in the judgment of the Water Systems

Manager, an approved backflow prevention assembly is required at a water service connection for the protection of the water system, the Water Systems Manager, or his/her representative shall give notice in writing to the consumer, and the notice shall direct the consumer to install an approved backflow prevention assembly of the same at specific locations on his/her premises. Locations shall comply with the specifications as designated by the Department of Public Utilities Standard. Specification Drawings. A Health Hazard shall be corrected by the installation of an approved backflow prevention assembly within three (3) days of receipt of written notification from the Water Systems Manager, or his/her representative. A Pollution Hazard shall be corrected by the installation of an approved backflow prevention assembly within thirty (30) calendar days of receipt of a written notification from the Water Systems Manager or his/her representative. The consumer shall install such approved assembly at his/her expense. Failure, refusal or inability on the part of the customer to install the assembly, shall constitute grounds for discontinuing water service to the premises until such requirements have been met. (Add. Ord. 2002-3, § 11, eff. 2-11-02).

SEC. 6-804. REQUIREMENTS.

(a) **Water System.** The water system shall be considered as made up of two entities: The City of Fresno System and the Consumer System.

(1) The City Water System shall consist of source facilities and the distribution system; and shall include all those facilities of the water system under the complete control of the City of Fresno, up to the point where the consumer's system begins.

(2) The Consumer's System shall include those parts of the facilities beyond the termination of the City Water System which are utilized to convey City of Fresno water to points of use.

(b) **Policy.**

(1) No water service connection to any premises shall be installed or maintained by the City of Fresno Water Division unless the water supply is protected as required in this Ordinance. Service of water to any premises shall be discontinued by the City of Fresno if a backflow prevention assembly required by this Ordinance is not installed, tested and maintained, or if it is found that a backflow prevention assembly has been removed, by passed, or if any cross connection exists on the premises. Service will not be restored until such conditions or defects are corrected. Unsafe conditions or defects requiring immediate discontinuance of service include, but are not limited to direct or indirect connection between the city water system and a system or equipment containing toxic chemicals or sewage.

(2) The Consumer's System shall be open for inspection at all reasonable times to authorized representatives of the Water Division to determine whether cross-connections or other structural or sanitary hazards, including violations of these regulations exist. The Water Systems Manager shall deny or immediately discontinue service to the premises by providing for a physical break in the service line until the

consumer has corrected the condition in conformance with the regulations adopted pursuant thereto. Unsafe conditions or defects shall be corrected in the time specified in Section 6-803(b).

(3) An approved backflow prevention assembly shall be installed on each service line to a Consumer's System wherever the following conditions exists:

(i) In the case of premises having an auxiliary water supply.

(ii) In the case of premises containing any actual or potential hazard to the city water systems.

(iii) In the case of premises having intricate plumbing and piping arrangements or where entry to all portions of the premises is not readily accessible for inspection purposes.

(4) Where multiple public water services supply a property and one of the water services requires the installation of an approved backflow prevention assembly, all services supplying the property must have an approved backflow prevention assembly installed to protect the public supply from potential cross-connections of on-site plumbing.

(5) Type of protective assembly required:

(i) In the case of any premises where the public water system is used to supplement a reclaimed water supply, the city water system shall be protected by an approved air gap.

(ii) In the case of any premises where there are wastewater pumping and/or treatment plants and there is no interconnection with the potable water system, an approved reduced pressure principle backflow prevention assembly may be provided in lieu of an air gap if approved by the city. This does not include a single-family residence that has a sewage lift pump.

(iii) In the case of any premises where reclaimed water is used and there is no interconnection with the potable water system, an approved reduced pressure principle backflow prevention assembly may be provided in lieu of an air gap if approved by the city.

(iv) In the case of any premises where hazardous substances are handled in a manner in which the substances may enter a potable water system, an approved reduced pressure principle backflow prevention assembly may be provided in lieu of an air gap if approved by the city. This does not include a single-family residence that has a sewage lift pump.

(v) In the case of any premises where there are irrigation systems into which fertilizers, herbicides, or pesticides are, or can be, injected shall be protected by an approved reduced pressure principle backflow prevention assembly.

(vi) In the case of any premises where there is an unapproved auxiliary water supply which is interconnected with the public system, an approved reduced pressure principle backflow prevention assembly or an approved double check valve assembly may be provided in lieu of an air gap if approved by the city.

(vii) In the case of any premises where there is an unapproved auxiliary water supply and there are no interconnections with the public water system, an approve double check valve backflow prevention assembly may be approved in lieu of a approved reduced pressure principle backflow prevention assembly if approved by the city.

(viii) In the case of any premises where the fire system is directly supplied from the public water system and there is an unapproved auxiliary water supply on or to the premises (not interconnected). The city system shall be protected by a double check backflow prevention assembly.

(ix) In the case of any premises where the fire system is supplied from the public water system and interconnected with an unapproved auxiliary water supply, an approved reduced pressure principle backflow prevention assembly may be provided in lieu of an air gap if approved by the city.

(x) In the case of any premises where the fire system is supplied from the public water system and where either elevated storage tanks or fire pumps which take suction from the private reservoirs or tanks are used, an approved reduced pressure principle backflow prevention assembly may be provided in lieu of an air gap if approved by the city.

(xi) Temporary water use from fire hydrants requires the installation of a reduced pressure principle backflow assembly or air gap on any portable water transportation equipment.

(xii) Premises where the fire system is supplied from the public water system and where recycled water is used in a separate system within the same building, an approved double check valve backflow prevention assembly may be provided.

(xiii) In the case of any premises where pier hydrants are used for supplying water to vessels for any purpose, the city system shall be protected by an approved reduced pressure principle backflow prevention assembly.

(xiv) In the case of any premises where there are marine facilities, the city system shall be protected by an approved reduced pressure principle backflow prevention assembly.

(xv) In the case of any premises where entry is restricted such that inspections for cross-connections cannot be made with short notice to assure that cross connections do not exist, the city system shall be protected by an approved reduced pressure principle assembly.

(xvi) In the case of any premises where there is a repeated history of cross-connections being established or re-established, the city system shall be protected by an approved reduced pressure principle backflow prevention assembly.

(xvii) In the case of any premises where two or more services supplying water from different street mains to the same building, structure, or premises through which an interstreet main flow may occur, shall have at least a standard check valve on each water service to be located adjacent to and on the property side of the respective meters. Such check valve shall not be considered adequate if backflow protection is deemed necessary to protect the city's mains from pollution or contamination; in such cases the installation of approved backflow prevention assemblies at such service connections shall be required.

(xviii) In the case of any premises where there is water or a substance that would be objectionable but not hazardous to health, if introduced into the city water system, the city water system shall be protected by an approved double check valve backflow prevention assembly.

(xix) In the case of any premises where toxic or objectionable chemicals are or may be transmitted, stored or used in a manner which may endanger the water system, an approved air gap separation or an approved reduced pressure principle backflow prevention assembly shall be installed.

(xx) In the case of any premises where there are "controlled" or "uncontrolled" cross-connections, either actual or potential, the city water system shall be protected by an approved air gap separation or an approved reduced pressure principle backflow prevention assembly at the service connection.

(xxi) In the case of any premises where, it is impossible or impractical to make a complete in-plant cross-connection survey, the city water system shall be protected against backflow from the premises by either an approved air gap separation or an approved reduced pressure principle backflow prevention assembly on each service to the premises.

(6) Any backflow prevention assembly required herein shall be of a model and size approved by the Water Systems Manager or his designee. The Water Division shall maintain and provide a list of Approved Backflow Prevention Assemblies acceptable for installation on city water services.

(7) Internal protection in lieu of service protection. The city reserves the right to require backflow protection at the consumer's connection or within the consumer's premises or both.

(8) Location of backflow prevention assemblies.

(i) Air gap separation. An air gap separation shall be located as close as practical to the consumer's connection and all piping between the consumer's connection and the receiving tank shall be entirely visible unless otherwise approved in writing by the city.

(ii) Double check valve assembly. A double check valve assembly shall be located as close as practical to the consumer's connection and shall be installed above grade, if possible, and in a manner where it is readily accessible for testing and maintenance.

(iii) Reduced pressure principle backflow prevention assembly. A reduced pressure principle backflow prevention assembly shall be located as close as practical to the consumer's connection and shall be installed a minimum of twelve inches (12") above grade and not more than thirty inches (30") above grade measured for the bottom of the device and with minimum of twelve inches (12") side clearance.

(9) Backflow prevention assemblies shall be tested immediately after they are installed, relocated or repaired and not placed in service unless they are functioning as required. In those instances where the Water Systems Manager deems the hazard to be great enough, he/she may require certified inspections at more frequent intervals. It shall be the duty of the Water Systems Manager to require that these tests are completed in a timely manner. The Water Systems Manager or his/her representative shall notify the consumer in advance when the tests are to be undertaken or required. The Water Systems Manager shall require backflow prevention assemblies be tested and maintained either by Water Division personnel or by certified backflow assembly testing companies as follows:

(i) Unless otherwise directed by the Water Systems Manager. it shall be the responsibility of the consumer at any premises where backflow prevention assemblies are installed to have certified inspections and operational tests at least once annually or more frequently as may be required by the Water Systems Manager. Backflow prevention assemblies shall be tested and repaired or replaced by Water Division personnel certified as competent to perform tests and maintenance by the Water Systems Manager. The consumer shall be responsible for any costs of testing, repairs or replacement of the backflow prevention assembly. Fees for tests and repairs or replacement shall be paid by the consumer as designated in the Master Fee Schedule. Records of such tests, repairs and replacement shall be submitted and retained in the office of the Water Systems Manager.

(ii) If directed by the Water Systems Manager, it shall be the responsibility of the consumer at any premises where backflow prevention assemblies are installed to obtain certified inspections and operational tests at least once annually or as may be required by the Water Systems Manager, Certified inspection and operation tests must be conducted using a portable differential pressure test gauge tested for accuracy at least once annually. Testing must be performed by a backflow prevention assembly tester, certified by either the American Backflow Prevention Association or the American Water Works Association, operating under a valid business license from the City of Fresno. The Water Systems Manager may make available a non-exhaustive list of certified backflow prevention assembly testing companies to the consumer. The consumer shall be responsible for any costs of

testing, repairs or replacement of the backflow prevention assembly. The consumer shall be responsible for submitting all test records and results to the office of the Water Systems Manager. Fees for maintenance of records of the testing history of the backflow assemblies shall be as designated in the Master Fee Schedule.

(10) All presently installed backflow prevention assemblies not meeting the requirements of this section but were approved devices for the purposes described herein at the time of installation and that have been properly maintained, shall be excluded from these requirements of these rules so long as the Water Systems Manager is assured that they will satisfactorily protect the city water system. Whenever the existing device is moved from the present location, requires more than minimum maintenance or when replacement parts are no longer available, or when the Water Systems Manager finds that the maintenance constitutes a hazard to health, the unit shall be replaced with an approved backflow prevention assembly at the customer's expense.

(Add. Ord. 2002-3, § 11, eff. 2-11-02; Am. Ord. 2012-11, § 1, 7-30-12)

ARTICLE 9 RECYCLED WATER ORDINANCE

Sections:

Sec. 6-901. Title.
Sec. 6-902. Purpose and Intent.
Sec. 6-903. Definitions.
Sec. 6-904. Administration.
Sec. 6-905. User Agreement.
Sec. 6-906. Recycled Water Site Supervisor.
Sec. 6-907. Application Process for User Agreement.
Sec. 6-908. Recycled Water Price.
Sec. 6-909. Recycled Water User Incentives.
Sec. 6-910. Recycled Water Service Eligibility.
Sec. 6-911. Requirement to Plan for the Use of Recycled Water.
Sec. 6-912. Voluntary Use Outside of the Recycled Water Project Area.
Sec. 6-913. Existing Potable Water Service: Voluntary Retrofits.
Sec. 6-914. Construction and Dust Control Activities.
Sec. 6-915. Recycled Water Rules and Regulations.
Sec. 6-916. Sanctions.
Sec. 6-917. Enforcement.
Sec. 6-918. Conflicting Provisions.
Sec. 6-919. Severability.

SEC. 6-901. TITLE.

This section shall be known as the "Recycled Water Ordinance" of the City of Fresno and may be so cited.
(Added Ord. 2014-32, § 1, eff. 8-29-14).

SEC. 6-902. PURPOSE AND INTENT.

The purpose and intent is to provide recycled water to all service areas in the City identified in the Recycled Water Master Plan (RW Master Plan) and subsequent additions, revisions or updates of the RW Master Plan. It is the intent of the City that existing owners of property and future development, identified in the RW Master Plan as being potential users within areas designated for recycled water use, qualify for a recycled water use agreement from the City in accordance with this Recycled Water Ordinance.

It is also the intent of the City that such recycled water be used in a manner and for types of uses that are in compliance with any and all applicable Federal, State and local statues, ordinances, regulations and other requirements.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 1, eff. 7-22-21).

SEC. 6-903. DEFINITIONS.

(a) "Approved use" means the uses defined by State law as being approved for use of tertiary treated recycled water.

(b) "Cross-connection" means any unapproved and/or unprotected connection between a potable water system and a non-potable system. No cross connections are allowed between recycled water and potable water systems.

(c) "Customer", "Consumer", or "User" means a person or entity having a connection to the recycled water system or potable water system owned and operated by the City.

(d) "Dual plumbed system" means a system that utilizes separate piping systems for recycled water and potable water within a facility and where the recycled water is used for either of the following:

a. To serve plumbing outlets (excluding fire suppression systems) within a building, or

b. Outdoor landscaping irrigation at individual residences.

(e) "On-site recycled water system" means facilities under the control of the owner, normally downstream of the recycled water meter.

(f) "Potable water" means water which conforms to the Federal, State and local standards for human consumption.

(g) "Recycled water" means non-potable tertiary treated water which, as a result of treatment of wastewater, is suitable for a direct beneficial use or a controlled use that would not otherwise occur and is therefore considered a valuable resource.

(h) "Recycled water distribution system" means recycled water pipelines, transmission mains, pump stations, storage reservoirs, and appurtenances acquired or constructed and owned by the City, and used for the conveyance of recycled water between the wastewater treatment plant and the recycled water service connections.

(i) "Recycled water project area" means those geographical areas identified in the Fresno RW Master Plan and designated by the City to which the City will provide recycled water service where it is expected to be available. Customers within the Recycled Water Project Area are eligible for recycled water service for approved uses when it becomes available.

(j) "Recycled water service connection" means the point of connection (POC) of the user/customer's recycled water line with the recycled water service line of the City, which shall normally be the downstream end of the recycled water meter tailpiece.

(k) "Rules and regulations" means the Rules and Regulations for Recycled Water Use and Distribution within the City of Fresno, as may be amended from time to time.

(l) "Use area" means an area of recycled water use with defined boundaries. A use area may contain one or more facilities.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 2, eff. 7-22-21).

SEC. 6-904. ADMINISTRATION.

The Director of the Department of Public Utilities (Director) shall administer, implement, and enforce the provisions of this section. Any powers granted to or duties imposed upon the Director may be delegated by the Director to persons in the employ of the City.

The Director will develop and enforce rules and regulations necessary to the administration of this section. The Director may amend such rules and regulations from time to time as conditions require. These rules and regulations shall be consistent with the general policy established herein by the City.
(Added Ord. 2014-32, § 1, eff. 8-29-14).

SEC. 6-905. USER AGREEMENT.

Recycled water shall not be delivered, used, or discharged upon any property or use area, including those owned and controlled by the City, unless a user agreement has been executed.

The City will issue to each recycled water customer a user agreement for each site or combination of sites, which grants permission to use recycled water and requires the customer to use recycled water in accordance with the rules, regulations and standards of the City's Recycled Water Rules and Regulations and all applicable State and local rules and regulations, including Titles 17 and 22 of the California Code of Regulations (CCR) and General Order WQ 2016-0068-DDW Recycled Water Use, as may be amended from time to time.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 3, eff. 7-22-21).

SEC. 6-906. RECYCLED WATER SITE SUPERVISOR.

Users shall designate a Recycled Water Site Supervisor in accordance with the rules, regulations, and standards set forth in the City's Recycled Water Rules and Regulations and all applicable State and local rules and regulations, as may be amended from time to time. The Recycled Water Site Supervisor shall be responsible for the On-Site Recycled Water System at each use area under their control.
(Added Ord. 2021-026, § 4, eff. 7-22-21).

Editor's note—Ord. 2021-026, §§ 4 and 5, effective July 22, 2021, amended the Code by adding a new § 6-906, and renumbering former § 6-906 as a new § 6-907.

SEC. 6-907. APPLICATION PROCESS FOR USER AGREEMENT.

Applicants wishing to use recycled water shall file applications for recycled water use with the Department of Public Utilities. The application shall contain such information as required by the Department of Public Utilities. The application shall be reviewed for conformance with the requirements in this section, the RW Master Plan and all other applicable statutes. Upon determination that a property can be served with recycled water, and approval of the application, the owner of the property may become a user by entering into a user agreement that complies with the regulations and such other requirements deemed necessary by the Department of Public Utilities.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 5, eff. 7-22-21).

Note—Former § 6-906. See editor's note, § 6-906.

SEC. 6-908. RECYCLED WATER PRICE.

The price applicable to recycled water service shall be set forth in the user agreement.
(Added Ord. 2021-026, § 6, eff. 7-22-21).

Editor's note—Ord. 2021-026, §§ 6 and 7, effective July 22, 2021, amended the Code by adding new §§ 6-908 and 6-909; §§ 8—17 of said ordinance renumbered former §§ 6-907—6-916 as new §§ 6-910—6-919.

SEC. 6-909. RECYCLED WATER USER INCENTIVES.

The Director of Public Utilities may develop and authorize incentives to encourage the use of recycled water.
(Added Ord. 2021-026, § 7, eff. 7-22-21).

Note—See editor's note, § 6-908.

SEC. 6-910. RECYCLED WATER SERVICE ELIGIBILITY.

All areas served by potable water service within the Recycled Water Project Area are eligible for recycled water service connections for approved uses when recycled water becomes available. Except for those properties identified in Section 6-911, construction of recycled water infrastructure for connection to the recycled water system is voluntary.

However, the Director, or designee, may determine that currently, connection to the recycled water system and/or provisioning of recycled water is not economically or operationally feasible because of distance from an available recycled water source or other such condition as the Director, or designee, deems appropriate. This determination can change as the system is expanded or revised in the future and will be considered at that time.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 8, eff. 7-22-21).

Note—Former § 6-907. See editor's note, § 6-908.

SEC. 6-911. REQUIREMENT TO PLAN FOR THE USE OF RECYCLED WATER.

Upon application by a developer, owner or water customer for a development project involving a new or expanded water connection, for which a discretionary approval is required, including but not limited to a tentative map, tentative parcel map, conditional use permit, development permit, planned development permit, or variance, the Director shall review the RW Master Plan and make a preliminary determination whether the proposed use of the subject property would be best served by facilities designed to accommodate the use of recycled water either currently or in the future, due to its location within an existing or proposed Recycled Water Project Area. Based upon such determination, construction of the facilities necessary to provide recycled water service may be required as a condition of approval of any such application, in addition to any other conditions of approval or service.

a. **Requirement for Commercial, Industrial, Institutional and Governmental Development Projects in Recycled Water Project Area.** Commercial, industrial, and institutional or governmental development projects involving a new or expanded water connection, for which a discretionary approval is required, including but not limited to, a tentative map, tentative parcel map, conditional use permit, develop-

ment permit, planned development permit, or variance located within the existing or proposed Recycled Water Project Area, may be conditioned to be dual plumbed to provide for the potential internal use of recycled water and to provide for the potential use of recycled water for landscape irrigation. The point of connection to the recycled water distribution system shall be coordinated between the customer and the City. The Director will determine requirements for recycled water plumbing. These requirements will become conditions of approval.

b. **Requirement for Residential Uses in the Recycled Water Project Area.**

Apartments and Condominiums: Apartment and Condominium projects involving a new or expanded water connection, for which a discretionary approval is required, including but not limited to, a tentative map, tentative parcel map, conditional use permit, development permit, planned development permit, or variance and are located within the existing or proposed Recycled Water Project Area, may be required to be dual plumbed to provide for the potential internal use of recycled water or to provide for the potential use of recycled water for landscape irrigation in common areas. The point of connection to the recycled water distribution system shall be coordinated between the customer and the City. The Director will determine requirements for recycled water plumbing. These requirements will become conditions of approval.

New Single Family Residential Developments: Single family residential home projects involving new residential developments for which a discretionary approval is required, including but not limited to, subdivisions of land for which a tentative map or tentative parcel map is required and are located within the existing or proposed Recycled Water Project Area, may be required to provide for the potential use of recycled water for landscape irrigation in common areas served by Community Facilities Districts or Lighting and Landscape Maintenance Districts. The point of connection to the recycled water distribution system shall be coordinated between the customer and the City. These requirements will become conditions of approval.

(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 9, eff. 7-22-21).

Note—Former § 6-908. See editor's note, § 6-908.

SEC. 6-912. VOLUNTARY USE OUTSIDE OF THE RECYCLED WATER PROJECT AREA.

Existing commercial or industrial areas and new commercial, industrial, or residential development common areas located outside of the Recycled Water Project Area may be eligible for voluntary use of recycled water in accordance with the City and State rules and regulations upon Director approval. Based upon such determination, an agreement for such use may be required as a condition of approval of any such application, in addition to any other conditions of approval or service.

(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 10, eff. 7-22-21).

Note—Former § 6-909. See editor's note, § 6-908.

SEC. 6-913. EXISTING POTABLE WATER SERVICE: VOLUNTARY RETROFITS.

Existing potable water customers in the Recycled Water Project Area may be provided with the opportunity by the City to retrofit their system to accept recycled water.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 11, eff. 7-22-21).

Note—Former § 6-910. See editor's note, § 6-908.

SEC. 6-914. CONSTRUCTION AND DUST CONTROL ACTIVITIES.

Any person applying for a construction permit for a project that includes dust control activities is required to use recycled water for those activities within the Recycled Water Project Area, if feasible based on the project's proximity to a recycled water fill station.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 12, eff. 7-22-21).

Note—Former § 6-911. See editor's note, § 6-908.

SEC. 6-915. RECYCLED WATER RULES AND REGULATIONS.

The City will at all times have Recycled Water Rules and Regulations which will be prepared, maintained and updated by the Director, or designee. The purpose of the Recycled Water Rules and Regulations is to detail the requirements of the City's recycled water system, namely: this section; the California Code of Regulations Titles 17 and 22; and other State and local rules and regulations related to the use of recycled water as they may be adopted or changed from time to time.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 13, eff. 7-22-21).

Note—Former § 6-912. See editor's note, § 6-908.

SEC. 6-916. SANCTIONS.

Any owner and or operator who violates this Recycled Water Ordinance may, for each day of violation, or portion thereof, be subject to penalties in accordance with Chapter 1, Article 3 of the City Municipal Code.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 14, eff. 7-22-21).

Note—Former § 6-913. See editor's note, § 6-908.

SEC. 6-917. ENFORCEMENT.

Any person, firm, corporation, association, or agency found to be violating any provisions of this section or the terms and conditions of the user agreement, permit or any applicable Federal, State, County, or City statute, regulation, resolution, ordinance or other requirement may be subject to termination of the recycled water service without notice.
(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 15, eff. 7-22-21).

Note—Former § 6-914. See editor's note, § 6-908.

SEC. 6-918. CONFLICTING PROVISIONS.

In the event of any conflict, between the provisions of the most current version of the Uniform Plumbing Code, and the provisions of this Section, the provisions of this Section shall apply.

(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 16, eff. 7-22-21).

Note—Former § 6-915. See editor's note, § 6-908.

SEC. 6-919. SEVERABILITY.

If any section, subsection, provision or part of this Recycled Water Ordinance, or its application to any person or circumstance, is held to be unconstitutional or otherwise invalid, the remainder of this Recycled Water Ordinance, and the application of such provision to other person or circumstances, shall not be affected thereby and shall remain in full force and effect and, to that end, the provisions of this Recycled Water Ordinance are severable.

(Added Ord. 2014-32, § 1, eff. 8-29-14; Am. Ord. 2021-026, § 17, eff. 7-22-21).

Note—Former § 6-916. See editor's note, § 6-908.

CHAPTER 7

CITY FINANCES, REVENUE, AND TAXATION

Art. 1. General.
Art. 2. Assessment, Equalization, Levy and Collection of Taxes.
Art. 3. Sales Tax.
Art. 4. Use Tax.
Art. 5. Uniform Local Sales and Use Tax.
Art. 6. Transient Room Tax.
Art. 7. Payments by Municipal Utilities in Lieu of Taxes.
Art. 8. Real Property Transfer Tax.
Art. 9. Fiscal Administration.
Art. 10. Business Licenses—General Provisions.
Art. 11. Business Licenses—Exemptions.
Art. 12. Business Licenses—License Fees.
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Art. 14. Cannabis Business License Tax
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ARTICLE 1 GENERAL

Sec. 7-101. Collection and Custody of City Moneys.
Sec. 7-102. Fees to be Paid into Department of Finance.
Sec. 7-103. Accounts and Records.
Sec. 7-104. Investment Policy.
Sec. 7-105. Receipt and Recording of Personal Property.

SEC. 7-101. COLLECTION AND CUSTODY OF CITY MONEYS.

All moneys accruing to the city shall be collected by officers and ex officio officers of the Department of Finance. All moneys received by any officer or employee of the city for or in connection with the business of the city shall be paid promptly into the treasury, and, subject to the requirements of the Constitution and laws of the United States and the state of California, shall be deposited with one or more such responsible banking institutions or savings and loan associations as furnish security and the banking services providing the greatest benefit to the city at the least cost, as the Controller may determine, and the Council may approve. The Council shall provide by ordinance for the prompt and regular payment and deposit of all city moneys as required by this section. (Added Ord. 5350, 1958; Am. Ord. 5638, 1959; Am. Ord. 77-95, § 1, eff. 9-16-77; Ord. No. 2002-47, § 1, eff. 10-28-02).

SEC. 7-102. FEES TO BE PAID INTO DEPARTMENT OF FINANCE.

No department, board, officer or employee of the city shall be allowed to retain for his own use any fees collected by such department, board, officer or employee, but all such fees shall be paid into the Department of Finance at least once each week or as often as may be required by ordinance. (Added Ord. 5350, 1958).

SEC. 7-103. ACCOUNTS AND RECORDS.

Accounts shall be kept by the Controller showing the financial transactions for all departments of the city. Forms for all such accounts shall be prescribed by the Controller and shall be adequate to record all cash receipts and disbursements, all revenue accrued and labilities incurred, and all transactions affecting the acquisition, custody and disposition of values, and to make such reports of the financial transactions and conditions of the city as may be required by law or ordinance. Financial reports shall be prepared for each month and each fiscal year, which shall commence on July 1 and terminate on June 30, and for such other periods as may be required by the Council. All annual financial reports shall be printed and the copies shall be available at the office of the Controller. (Added Ord. 5358, 1958).

SEC. 7-104. INVESTMENT POLICY.

(a) The Controller shall prepare and submit an investment policy on an annual basis to the Council. Said investment policy shall include a policy statement, policy scope, policy objectives, and various other investment provisions addressing authorized investments, portfolio diver-

sification, internal controls, and other requirements as deemed appropriate by the controller and approved by the council. (Added Ord. 6863, 1966; Am. Ord. 78-1, § 1, eff. 2-3-78; Am. Ord. 97-45, § 1, eff. 8-29-97).

SEC. 7-105. RECEIPT AND RECORDING OF PERSONAL PROPERTY.

The City Manager or his/her designee is authorized to accept or decline any gift, bequest or devise to the city of personal property of a market value not exceeding twenty-five thousand dollars ($25,000), which is received by the city through any department thereof, for the benefit of the designated department; provided that such gift, bequest or devise and any terms prescribed by the donor for its use, are for a legal and public purpose. All such property shall be acquired and held in the name of the city.

(a) All cash gifts, bequests or devises when received and accepted shall be deposited in the respective department accounts designated by the Controller. All disbursements from such accounts shall be for the respective purposes, if any, prescribed by the donor.

(b) Each department receiving any gift, bequest or devise authorized hereunder, shall annually furnish to the Controller within the first four weeks of July, a report showing such gifts, bequests or devises received within the preceding fiscal year of the city; the nature and market value of each gift, bequest and devise; the disposition of same; and the date of receipt, date of any deposit and date of such disposition. The Controller shall maintain such reports as part of the accounts and records kept in Section 7-103. (Added Ord. 2004-73, § 1, eff. 9-4-04).

ARTICLE 2 ASSESSMENT, EQUALIZATION, LEVY AND COLLECTION OF TAXES

Sec. 7-201. Joint City and County Offices for Taxation.

SEC. 7-201. JOINT CITY AND COUNTY OFFICES FOR TAXATION.

Except in the contingencies hereinafter in this section provided for, so long as there exists any State law under which the county assessor, tax collector, treasurer and county board of supervisors may act for the city in the assessment, collection, safekeeping, disbursement and equalization of city taxes, such officers of the county shall be regarded as ex officio officers of the City of Fresno for such purposes, and the duties of the city assessors, tax collector, treasurer and board of equalization with respect to the assessment of property in the city for city taxes to the equalization and correction of such assessment, to the collection, payment and enforcement of such taxes, including delinquent taxes, and to the redemption of such property from sale or other penalty for nonpayment of municipal taxes shall be performed by the county assessor, county tax collector, county treasurer and county board of supervisors; the duties of said officers and of said board of supervisors in so acting for the city being as provided by the laws of the State of California, and so long as there exist alternative systems under the State laws for the performance by such county officers of the duties of such city officers in connection with the assessment, collection, safekeeping, disbursement and equalization of city taxes, the Council shall by ordinance elect the system to be used by the City of Fresno, and the Council shall by ordinance provide for the effective carrying out of the provisions of this section and for the compliance with the terms of the state law in order that the city may avail itself of the privilege of having its taxes assessed, collected, safely kept, disbursed and equalized by such county officers. Said county officers when so acting for the city shall be ex officio members of the Department of Finance, and the Controller shall keep in touch with the work of said officers of the city and report to the Council from time to time in his discretion as to the work of said officers and the practical operation of such system. If said state laws are repealed by the legislature, or annulled by the courts the Council is hereby authorized to create by ordinance the offices of city assessor, city tax collector, and city treasurer, and shall itself act as a board of equalization, and by such ordinance shall prescribe the powers, duties and compensation of such officers and its duties as a board of equalization; provided, however, that the system of assessing, collecting and equalizing city taxes shall conform as nearly as may be practicable to the system for assessing, collecting and equalizing county taxes. And, after such repeal or annulment of such laws by the legislature, should a new system be created for the assessment, collection, safekeeping, disbursement and equalization of city taxes by county officers, the Council may abolish the offices of city assessor, city tax collector and city treasurer and may cease to act as a board of equalization and again provide for the assessment, collection, and safekeeping, disbursement and equalization of city taxes by county officers in the manner provided by such new state law. (Added Ord. 5350, 1958).

ARTICLE 3 SALES TAX

Sec. 7-301. Imposition and Rate of Tax.
Sec. 7-302. Tax Levied in Same Manner as State Tax.
Sec. 7-303. Adoption of State Sales Tax Law By Reference; Exceptions.
Sec. 7-304. Sale.
Sec. 7-305. Exemptions.
Sec. 7-306. Adoption of Rules and Regulations by Reference.
Sec. 7-307. Application for Permit.
Sec. 7-308. Issuance and Display of Permit.
Sec. 7-309. Revocation of Permit.
Sec. 7-310. Renewal of Permit.
Sec. 7-311. Unlawful Acts.
Sec. 7-312. Due Date.
Sec. 7-313. Reimbursement.
Sec. 7-314. Unlawful Advertising.
Sec. 7-315. Suit for Tax.
Sec. 7-316. Resale Certificate.
Sec. 7-317. Disposition of Proceeds.
Sec. 7-318. Divulging of Information Forbidden.
Sec. 7-319. Penalties.
Sec. 7-320. Books and Audits.
Sec. 7-321. Complete Record of All Business Transactions.

SEC. 7-301. IMPOSITION AND RATE OF TAX.

For the privilege of selling tangible personal property at retail a tax is hereby imposed upon all retailers at the rate of one percent of the gross receipts of any retailer from the sale of all tangible personal property sold at retail in the city. The tax imposed by the provisions of this article is in addition to any and all other taxes imposed by any other provisions of this Code. For the purpose of the proper administration of this article and to prevent evasion of the sales tax, it shall be presumed that all gross receipts are subject to the tax until the contrary is established by the seller.

SEC. 7-302. TAX LEVIED IN SAME MANNER AS STATE TAX.

The tax hereby levied, except as otherwise herein provided, is levied in the same manner, to the same extent and under the same conditions as sales taxes are levied pursuant to Part 1 of Division 2 of the California Revenue and Taxation Code, known as the "Sales and Use Tax Law", as amended and in force and effect on September 9, 1953.

SEC. 7-303. ADOPTION OF STATE SALES TAX LAW BY REFERENCE; EXCEPTIONS.

(a) All of the provisions of the "Sales and Use Tax Law", as amended and in force and effect on September 9, 1953, except the provisions thereof pertaining solely to the "Use Tax" and except Sections 6006, 6051, 6052, 6053, 6066, 6067, 6068, 6069, 6070, 6071, 6451, 6459, 6591, 7052, 7056, 7057, 7101, 7102, 7151, 7152 and 7153 of the Revenue and Taxation Code, applicable to sales of property at retail, are hereby adopted and made a part of this article as

though fully set forth herein, and all provisions of any other articles in conflict therewith are inapplicable to this article and the tax hereby imposed; provided, however, the term "gross receipts", as used herein, does not include the amount of any tax imposed by the State of California upon or with respect to retail sales whether imposed upon the retailer or upon the consumer.

(b) All of the provisions of the "Sales and Use Tax Law" hereby adopted, providing for the adoption of rules and regulations and for hearings on the part of the State Board of Equalization, shall be performed by the Council. All other provisions of the "Sales and Use Tax Law" hereby adopted, providing for the performance of official action on the part of the State Board of Equalization, shall be performed by the Controller.

(c) The City of Fresno shall be deemed substituted for the State of California whenever the State is referred to in said "Sales and Use Tax Law".

(d) The City Attorney shall be deemed substituted for the Attorney General whenever the Attorney General is referred to in said "Sales and Use Tax Law".

(e) The Controller shall be deemed substituted for the State Controller and State Board of Control whenever the State Controller or Board of Control are referred to in said "Sales and Use Tax Law".

(f) The County of Fresno shall be deemed substituted for the County of Sacramento whenever the County of Sacramento is referred to in said "Sales and Use Tax Law". (Orig. Ord. 4310; Am. Ord. 5308, 1958; Am. Ord. 5311, 1958).

SEC. 7-304. SALE.

The word "sale" means and includes:

(1) Any transfer of title or possession, exchange, barter, lease or rental, conditional or otherwise in any manner or by any means whatsoever, of tangible personal property for a consideration. "Transfer of possession", "lease", or "rental" includes only transactions found by the Controller to be in lieu of a transfer of title, exchange or barter.

(2) Any withdrawal of tangible personal property from a point within the city, except a withdrawal pursuant to a transaction in foreign or interstate commerce which is immune from local taxation by reason of the provisions of the United States Constitution, for delivery to any place within or without the city, for the purpose of the transfer of title or possession, exchange, barter, lease or rental, conditional or otherwise, in any manner or by any means whatsoever, of the property for a consideration.

(3) The producing, fabricating, processing, printing, or imprinting of tangible personal property for a consideration for consumers who furnish either directly or indirectly the materials used in the producing, fabricating, processing, printing, or imprinting.

(4) The furnishing and distributing of tangible personal property for a consideration by social clubs and fraternal organizations to their members or others.

(5) The furnishing, preparing, or serving for a consideration of food, meals or drinks.

(6) A transaction whereby the possession of property is transferred but the seller retains the title as security for the payment of the price.

(7) A transfer of the title or possession of tangible personal property which has been produced, fabricated, or printed to the special order of the customer, or of any publication. (Orig. Ord. 3773; Am. Ord. 5308, 1958).

SEC. 7-305. EXEMPTIONS.

(a) No tax shall be due hereunder if a sales tax imposed by any other city of the State of California has been paid on the same transaction.

(b) The city sales tax shall not apply to sales of meals, food and drinks sold or served on common carriers operating into, through or out of the city from or to points outside the city.

(c) The city sales tax shall not apply to sales of tangible personal property sold to purchasers for use in a county subject to a state administered local use tax, provided the retailer holds in his possession one of the following documents:

(i) A copy of an invoice signed by the purchaser stating that such property is for use in a county subject to a state administered local use tax, or

(ii) A copy of a freight bill or bill of lading showing shipment of such property by a common carrier or delivery service into a county subject to a state administered local use tax.

(1) The amount of such exemption shall be included in line No. 6 of the city sales and use tax return and shall also be shown in the schedule on the reverse side of said return. (Orig. Ord. 3834; Am. Ord. 5278, 1958; Rep. and Added Ord. 5176, 1957).

SEC. 7-306. ADOPTION OF RULES AND REGULATIONS BY REFERENCE.

(a) The rules and regulations of the State Board of Equalization as amended and in force and effect September 9, 1953, pertaining to the interpretation, administration and enforcement of the "Sales and Use Tax Law", insofar as applicable, shall apply in the interpretation of this article until specifically abandoned by the rules or regulations adopted by the Council pursuant to this article.

(b) The inclusion of any clause, portion or part of the "State Sales and Use Tax Law", Part 1, Division 2, of the Revenue and Taxation Code of the State of California verbatim in this article shall not in or of itself be deemed to exclude any of the remaining provisions of said "Sales and Use Tax Law" that are made a part hereof by reference only. (Orig. Ord. 4310; Am. Ord. 5311, 1958).

SEC. 7-307. APPLICATION FOR PERMIT.

Every person desiring to engage in or conduct business as a seller within the city shall file with the Controller an application for a permit for each place of business. Every application for

a permit shall be made upon a form prescribed by the Controller and shall set forth the name under which the applicant transacts or intends to transact business, the location of his place or places of business, and such other information as the Controller may require. The application shall be signed by the owner, if a natural person; in the case of an association, or partnership by a member or partner; in the case of a corporation, by an executive officer or some person specifically authorized by the corporation to sign the application, to which shall be attached the written evidence of his authority. (Orig. Ord. 3373; Am. Ord. 5308, 1958).

SEC. 7-308. ISSUANCE AND DISPLAY OF PERMIT.

After compliance with Section 7-307 by the applicant, the Controller shall grant and issue to each applicant a separate permit for each place of business. A permit is not assignable and is valid only for the person in whose name it is issued and for the transaction of business at the place designated therein; provided, however, a change of location may be endorsed upon the permit by the Controller. The permit shall at all times be conspicuously displayed at the place for which issued. No fee shall be charged for the issuance of, or the endorsement of a change of location of a permit. (Orig. Ord. 3373; Am. Ord. 5308, 1958).

SEC. 7-309. REVOCATION OF PERMIT.

Whenever any person fails to comply with any provisions of this article or any rule or regulation adopted pursuant hereto, the Council, upon hearing, after giving the person ten days' notice in writing specifying the time and place of hearing and requiring him to show cause why his permit or permits should not be revoked, may revoke or suspend any one or more of the permits held by the person. The notice may be served personally or by mail in the manner prescribed for the service of notice of a deficiency determination under the "Sales and Use Tax Law". The Controller shall not issue a new permit after the revocation of a permit unless the Council is satisfied that the former holder of a permit will comply with the provisions of this article and the rules and regulations adopted pursuant hereto and directs the Controller to issue such permit. (Orig. Ord. 3373; Am. Ord. 5308, 1958; Am. Ord. 5311, 1958).

SEC. 7-310. RENEWAL OF PERMIT.

A seller whose permit has been previously suspended or revoked shall pay the Controller a fee of one dollar ($1) for the renewal or issuance of a permit. (Orig. Ord. 3373; Am. Ord. 5308, 1958).

SEC. 7-311. UNLAWFUL ACTS.

No person shall engage in business as a seller in the city without a permit or permits or after a permit has been suspended or revoked and before the renewal or issuance of a permit. (Orig. Ord. 3373).

SEC. 7-312. DUE DATE.

(a) The taxes imposed by this article are due and payable to the Controller quarterly on or before the last day of the month next succeeding each quarterly period, said quarterly periods being from January 1 to March 31; April 1 to June 30; July 1 to September 30; and October 1 to December 31 of each year.

(b) The Controller for good cause may extend for not more than thirty days the time for making any return or paying any sum required to be paid hereunder. The extension may be granted at any time, provided a written request therefor is filed with the Controller prior to the delinquency date.

(c) Whenever any tax required to be paid by this article, except amounts of audit determinations made on and after August 15, 1953, by the Controller, is not paid on or before the last day of the month next succeeding the period for which the tax is due, the same shall be deemed delinquent and a penalty of ten per cent of the amount of the tax due shall be imposed. An additional penalty of fifteen per cent of the original tax due shall be imposed, (making a total penalty of twenty-five per cent), if payment is not made on or before the last day of the second month next succeeding the period for which the tax is due. (Orig. Ord. 4312; Am. Ord. 5308, 1958).

SEC. 7-313. REIMBURSEMENT.

The tax hereby imposed shall be collected by the retailer from the consumer insofar as it can be done. (Orig. Ord. 3373).

SEC. 7-314. UNLAWFUL ADVERTISING.

No retailer shall advertise or hold out or state to the public or to any customer, directly or indirectly, that the tax or any part thereof will be assumed or absorbed by the retailer or that it will not be added to the selling price of the property sold or that, if added, it or any part thereof will be refunded. (Orig. Ord. 3373).

SEC. 7-315. SUIT FOR TAX.

All taxes hereby levied shall be payable to the Controller and any civil suit for the collection thereof may be filed in any court of competent jurisdiction in the State of California, and the City Attorney shall prosecute the action. (Orig. Ord. 3373; Am. Ord. 5308, 1958).

SEC. 7-316. RESALE CERTIFICATE.

The Controller may at his option accept a State of California Resale Certificate as evidence that any sale is not a sale at retail, or he may in his discretion require an affidavit from the seller setting forth such information respecting such sale as he deems necessary to determine the nature of such sale. (Orig. Ord. 3373).

SEC. 7-317. DISPOSITION OF PROCEEDS.

All moneys collected under and pursuant to the provisions of this article shall be deposited and paid into the general fund of the city. (Orig. Ord. 3373).

SEC. 7-318. DIVULGING OF INFORMATION FORBIDDEN.

No officer or employee of the city having an administrative duty under this article shall make known in any manner whatever the business affairs, operations, or information obtained by an investigation of records and equipment of any retailer or any other person visited or examined in the discharge of official duty, or the amount or source of income, profits, losses, expenditures, or any particular thereof, set forth or disclosed in any return, or to permit any return or copy thereof or any book containing any abstract or particulars thereof to be seen or examined by any person. However, the Council may, by resolution, authorize examination of the returns by Federal or State officers or employees or by the tax officers of this or any other city if a reciprocal arrangement exists. Successors, receivers, trustees, executors, administrators, assignees, and guarantors, if directly interested, may be given information as to the items included in the measure and amounts of any unpaid tax or amounts of tax required to be collected, interest and penalties. (Orig. Ord. 3373; Am. Ord. 5309, 1958).

SEC. 7-319. PENALTIES.

No person required to make, render, sign or verify any report under the provisions of this article shall make any false or fraudulent return, with intent to defeat or evade the determination of an amount due and required to be paid hereunder. The penalties provided by this Code shall be in addition to the penalties and interest contained in Sections 6482, 6484, 6485, 6565 of the Revenue and Taxation Code of the State of California, which sections are incorporated by reference under Sections 4-302 and 4-303 of this Code. (Orig. Ord. 4310).

SEC. 7-320. BOOKS AND AUDITS.

The Controller and his authorized representative or representatives are hereby authorized and empowered to make such inspections and audits of the books and records of any retailer which they may deem necessary in the administration of any of the provisions of this article, and the Controller is also hereby authorized and empowered to issue a subpoena requiring any retailer to produce for inspection, examination and audit any books and records required by the Controller, when such books and records are not available on request. (Orig. Ord. 3761; Am. Ord. 5308, 1958).

SEC. 7-321. COMPLETE RECORD OF ALL BUSINESS TRANSACTIONS.

All sellers, consumers and holders of City of Fresno business licenses shall keep complete records of all business transactions, including sales, receipts, purchases and other expenditures, and shall retain all such records for examination by the Department of Finance of the City of Fresno. Such records shall be maintained for a period of at least three years. (Added Ord. 5081, 1957).

ARTICLE 4 USE TAX

Sec. 7-401. "Use" Defined.
Sec. 7-402. Imposition and Rate of Tax.
Sec. 7-403. Use Tax Levied in Same Manner as State Tax.
Sec. 7-404. Adoption of State Use Tax Law by Reference; Exceptions.
Sec. 7-405. Adoption of Rules and Regulations by Reference.
Sec. 7-406. Interpretation.
Sec. 7-407. Authority to Collect Tax.
Sec. 7-408. Persons Liable to Tax.
Sec. 7-409. Collection of Tax by Seller.
Sec. 7-410. Separate Display of Tax from List or Other Price.
Sec. 7-411. Personal Property to Which Tax Applies.
Sec. 7-412. Exemptions.
Sec. 7-413. Registration of Sellers.
Sec. 7-414. Due Date.
Sec. 7-415. Delinquency.
Sec. 7-416. Returns.
Sec. 7-417. Schedules for Payment of Tax.
Sec. 7-418. Suit for Tax.
Sec. 7-419. Resale Certificate.
Sec. 7-420. Disposition of Proceeds.
Sec. 7-421. Divulging of Information Forbidden.
Sec. 7-422. False and Fraudulent Returns.
Sec. 7-423. Failure to Make Return or Furnish Data.
Sec. 7-424. Adequate Records of Business Transactions.

SEC. 7-401. "USE" DEFINED.

"Use" includes the exercise of any right or power over tangible personal property incident to the ownership of that property, subject, however, to the following exemption:

(1) It does not include the sale of property in the regular course of business for resale. (Orig. Ord. 3669; Am. Ord. 5246, 1958).

SEC. 7-402. IMPOSITION AND RATE OF TAX.

An excise tax is hereby imposed on the use or other consumption in the city of tangible personal property purchased from any seller on or after the effective date of this article for use or other consumption in said city at the rate of one per cent of the sales price of the property. The word "seller" as used in this article shall be construed to include both retailers and wholesalers.

SEC. 7-403. USE TAX LEVIED IN SAME MANNER AS STATE TAX.

The tax hereby levied, except as otherwise herein provided, is levied in the same manner, to the same extent and under the same conditions as use taxes are levied pursuant to Part 1 of Division 2 of the California Revenue and Taxation Code, known as the "Sales and Use Tax Law" as amended, and in force and effect on September 9, 1953.

SEC. 7-404. ADOPTION OF STATE USE TAX LAW BY REFERENCE; EXCEPTIONS.

(a) All of the provisions of the "Sales and Use Tax Law" as amended, and in force and effect on September 9, 1953, except the provisions thereof pertaining solely to the "Sales Tax" and Sections 6008, 6201 to 6204 inclusive, 6207, 6226 and 6241 to 6246 inclusive, 6403, 6453, 7052, 7056, 7057, 7101, 7102, 7151, 7152 and 7153 are hereby adopted and made a part of this article as though fully set forth herein, and all provisions of any other article in conflict therewith are inapplicable to this article and the tax hereby imposed; provided that the term "sales price" shall not include the amount of any California State Sales tax or use tax, and that the word "storage" shall, for the purposes of this article, be deemed deleted from those provisions of the California Revenue and Taxation Code adopted by reference, it being the intent of the Council that the tax imposed by this article shall not apply to the storage of tangible personal property.

(b) All of the provisions of the "Sales and Use Tax Law" hereby adopted providing for the adoption of rules and regulations and for hearings on the part of the State Board of Equalization shall be performed by the Council. All other provisions of the State "Sales and Use Tax Law" hereby adopted providing for the performance of official action on the part of the State Board of Equalization shall be performed by the Controller.

(c) The City of Fresno shall be deemed substituted for the State of California whenever the state is referred to in said "Sales and Use Tax Law".

(d) The City Attorney shall be deemed substituted for the Attorney General whenever the Attorney General is referred to in said "Sales and Use Tax Law".

(e) The Controller shall be deemed substituted for the State Controller and State Board of Control whenever the State Controller or State Board of Control are referred to in said "Sales and Use Tax Law".

(f) The County of Fresno shall be deemed substituted for the County of Sacramento whenever the County of Sacramento is referred to in said "Sales and Use Tax Law". (Orig. Ord. 4311; Am. Ord. 5308, 1958; Am. Ord. 5311, 1958).

SEC. 7-405. ADOPTION OF RULES AND REGULATIONS BY REFERENCE.

The rules and regulations of the State Board of Equalization pertaining to the interpretation, administration and enforcement of the "Sales and Use Tax Law", insofar as applicable, shall apply to the interpretation of this article until specifically abandoned by the rules and regulations adopted by the Council pursuant to this article. (Orig. Ord. 3669; Am. Ord. 5311, 1958).

SEC. 7-406. INTERPRETATION.

The inclusion of any clause, portion or part of the "Sales and Use Tax Law", Part 1, Division 2 of the Revenue and Taxation Code of the State of California, verbatim in this article shall not in or of itself be deemed to exclude any of the remaining provisions of said "Sales and Use Tax Law", that are made a part hereof by reference only. (Orig. Ord. 3669).

SEC. 7-407. AUTHORITY TO COLLECT TAX.

Every seller who sells to the consumer or user and who maintains a place of business in this city shall apply to the Controller for authorization to collect the tax imposed by this article. Any seller not maintaining a place of business in this city may apply to the Controller for authorization to collect the tax hereby imposed. Upon receipt of any application in such form as required by him, the Controller in the case of a seller maintaining a place of business in the city, shall authorize, and in the case of a seller not maintaining a place of business in the city, may authorize the applicant to make such collections and to forward the same to the Controller. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-408. PERSONS LIABLE TO TAX.

Every person using or otherwise consuming in this city tangible personal property purchased from a seller, is liable for the tax; provided, however, no tax shall be due hereunder if the tax imposed by Article 3 of Chapter 7 of this Code, as now enacted or as hereafter amended, has been paid on the sale of such property. His liability is not extinguished until the tax has been paid to the city, except that a receipt from a seller authorized pursuant to Section 7-407 to collect the tax, given to the purchaser pursuant to Section 7-409, is sufficient to relieve the purchaser from further liability for the tax to which the receipt refers. (Orig. Ord. 4260).

SEC. 7-409. COLLECTION OF TAX BY SELLER.

Every seller who is authorized by the Controller to collect the tax imposed by this article and who makes sales of tangible personal property for use or other consumption in this city, not exempted under the provisions of this article, shall collect the tax from the purchaser at the time of making the sale. Upon collecting the tax, the seller, on demand, shall give to the purchaser a receipt therefor in the manner and form prescribed by the Controller. The tax so collected by the seller shall be held in trust by him for the city and shall be paid to the city by the seller in the manner and at the times elsewhere provided in this article. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-410. SEPARATE DISPLAY OF TAX FROM LIST OR OTHER PRICE.

The tax so collected by the seller from the purchaser shall be displayed separately from the list price, the price advertised in the premises, the marked price or other price on the sales check or other proof of sale. (Orig. Ord. 3669).

SEC. 7-411. PERSONAL PROPERTY TO WHICH TAX APPLIES.

Except as otherwise specifically exempted, the tax hereby imposed applies to all tangible personal property used or consumed in this city; provided, however, that if the seller in good faith, takes from the purchaser a certificate that the property was purchased prior to April 1, 1950, or was not purchased for use or consumption in this city and has not been nor will be so used or consumed, he shall be relieved of liability to collect and pay the tax. The certificate shall be signed by and bear the name of the purchaser, shall indicate the address of the

purchaser and the place where such tangible personal property will be used or consumed, the date of purchase, and shall be substantially in such form as the Controller may prescribe. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-412. EXEMPTIONS.

In addition to those exemptions contained in Part 1 of Division 2 of the California Revenue and Taxation Code which are incorporated into this article by reference, there shall be excluded from the computation of the tax the sales price of:

(1) Purchases of property upon which a sales tax, purchase tax, use tax, purchase and use tax, or any of them, has been legally imposed by and paid on the same transaction to any city of the State of California;

(2) Purchases of materials and/or fixtures withdrawn from local stock for use in a county where such materials and/or fixtures are subject to a state administered local use tax, provided records are maintained by the user showing the job location, the quantity and the cost of such materials and/or fixtures so withdrawn. (Orig. Ord. 3669; Am. Ord. 5278, 1958; Rep. and Added Ord. 5176, 1957).

SEC. 7-413. REGISTRATION OF SELLERS.

Every seller selling tangible personal property for use or other consumption in the City of Fresno to which the use tax is applicable under the provisions of this article, and who maintains a place of business in said city or acts through agents located in said city, shall register with the Controller and give the name and address of such agent or agents, if any, and office or other place of business in the city. (Orig. Ord. 3609; Am. Ord. 5308, 1958).

SEC. 7-414. DUE DATE.

(a) The taxes imposed by this article are due and payable to the Controller quarterly on or before the last day of the month next succeeding each quarterly period, said quarterly periods being from January 1 to March 31; April 1 to June 30; July 1 to September 30; and October 1 to December 31 of each year.

(b) The Controller for good cause may extend for not more than thirty days the time for making any return or paying any sum required to be paid hereunder. The extension may be granted at any time, provided a written request therefor is filed with the Controller prior to the delinquency date. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-415. DELINQUENCY.

All taxes payable under this article, except amounts of audit determinations made on and after August 15, 1953, by the Controller, shall be deemed delinquent and a penalty of ten per cent of the amount of the tax due shall be imposed, if not paid on or before the last day of the month next succeeding the period for which the tax is due. An additional penalty of fifteen per

cent of the original tax due shall be imposed, (making a total penalty of twenty-five per cent), if payment is not made on or before the last day of the second month next succeeding the period for which the tax is due. (Orig. Ord. 4311; Am. Ord. 5308, 1958).

SEC. 7-416. RETURNS.

Each return filed by a seller shall show the total sales of property sold by him during the reporting period in respect of which he collected the tax hereby imposed. Each return filed by a purchaser shall show the total purchase price of the property purchased by him during the reporting period, in respect of which a tax is due under this article. All returns shall also show the amount of the taxes for the period covered by the return and such other information as the Controller deems necessary to the proper administration of this article. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-417. SCHEDULES FOR PAYMENT OF TAX.

The Council, by resolution, may adopt rules prescribing methods and schedules for the collection and payment of the tax. Such schedules shall be so determined as to facilitate collection of this tax at the same time that the seller collects the tax imposed under the California Sales and Use Tax Law and so as to produce an average tax return of one per cent on all purchases subject to the use tax. (Orig. Ord. 4260; Am. Ord. 5311, 1958).

SEC. 7-418. SUIT FOR TAX.

All taxes hereby levied shall be payable to the Controller and any civil suit for the collection thereof may be filed in any court of competent jurisdiction in the State of California, and the City Attorney shall prosecute the action. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-419. RESALE CERTIFICATE.

The Controller may at his option accept a State of California Resale Certificate as evidence that any sale is not a sale for use or consumption in the city, or he may in his discretion require an affidavit from the seller setting forth such information respecting such sale as he deems necessary to determine the nature of such sale. (Orig. Ord. 3669; Am. Ord. 5308, 1958).

SEC. 7-420. DISPOSITION OF PROCEEDS.

All moneys collected under and pursuant to the provisions of this article shall be deposited and paid into the general fund of the city. (Orig. Ord. 3669).

SEC. 7-421. DIVULGING OF INFORMATION FORBIDDEN.

No officer or employee of the city having an administrative duty under this article shall make known in any manner whatever the business affairs, operations, or information obtained by an investigation of records and equipment of any seller or any other person visited or examined in the discharge of official duty, or the amount or source of income profits, losses, expenditures, or any particular thereof, set forth or disclosed in any return, or permit any

return or copy thereof or any book containing any abstract or particulars thereof to be seen or examined by any person. However, the Council may, by resolution, authorize examination of the returns by federal or state officers or employees or by the tax officers of this or any other city if a reciprocal arrangement exists. Successors, receivers, trustees, executors, administrators, assignees, and guarantors, if directly interested, may be given information as to the items included in the measure and amounts of any unpaid tax or amounts of tax required to be collected, interest and penalties. (Orig. Ord. 3669; Am. Ord. 5311, 1958).

SEC. 7-422. FALSE AND FRAUDULENT RETURNS.

No person required to make, render, sign or verify any report under the provisions of this article, shall make any false or fraudulent return, with intent to defeat or evade the determination of an amount due and required to be paid hereunder. The penalties provided by this Code shall be in addition to the penalties and interest contained in Section 6482, 6484, 6485 and 6565 of the Revenue and Taxation Code of the State of California, which sections are incorporated by reference under Sections 7-402 and 7-403 of this Code. (Orig. Ord. 3669 and 4311).

SEC. 7-423. FAILURE TO MAKE RETURN OR FURNISH DATA.

No seller or other person shall fail or refuse to furnish any return required to be made, or fail or refuse to furnish a supplemental return or other data required by the Controller. (Orig. Ord. 4669; Am. Ord. 5308, 1958).

SEC. 7-424. ADEQUATE RECORDS OF BUSINESS TRANSACTIONS.

All sellers, consumers and holders of City of Fresno business licenses shall keep complete records of all business transactions, including sales, receipts, purchases and other expenditures, and shall retain all such records for examination by the Department of Finance of the City of Fresno. Such records shall be maintained for a period of at least three years. (Added Ord. 5081, 1957).

ARTICLE 5 UNIFORM LOCAL SALES AND USE TAX

Sec. 7-501. Short Title.
Sec. 7-502. Purpose.
Sec. 7-503. Operative Date; Contract with State.
Sec. 7-504. Sales Tax.
Sec. 7-505. Use Tax.
Sec. 7-506. Amendments.
Sec. 7-507. Application of Provisions Relating to Exclusions and Exemptions.
Sec. 7-508. Enjoining Collection Forbidden.
Sec. 7-509. Existing Sales and Use Tax Ordinance Suspended.
Sec. 7-510. Violation and Penalty Therefor.
Sec. 7-511. Severability.

SEC. 7-501. SHORT TITLE.

This article shall be known as the Uniform Local Sales and Use Tax Ordinance of the City of Fresno. (Added Ord. 5576, 1959).

SEC. 7-502. PURPOSE.

The Council hereby declares that this article is adopted to achieve the following, among other purposes, and directs that the provisions hereof be interpreted in order to accomplish those purposes:

(a) To adopt a sales and use tax ordinance which complies with the requirements and limitations contained in part 1.5 of division 2 of the Revenue and Taxation Code of the state;

(b) To adopt a sales and use tax ordinance which incorporates provisions identical to those of the sales and use tax law of the state insofar as those provisions are not inconsistent with the requirements and limitations contained in part 1.5 of division 2 of the Revenue and Taxation Code;

(c) To adopt a sales and use tax ordinance which imposes such tax and provides a measure therefor that can be administered and collected by the state board of equalization in a manner that adapts itself as fully as practical to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the state board of equalization in administering and collecting the California state sales and use taxes;

(d) To adopt a sales and use tax ordinance which can be administered in a manner that will be, to the degree possible, consistent with the provisions of part 1.5 of division 2 of the Revenue and Taxation Code, minimize the cost of collecting city sales and use taxes and at the same time minimize the burden of record keeping upon persons subject to taxation under the provisions of this article. (Added Ord. 5576, 1959; Am. Ord. 6011, 1962).

SEC. 7-503. OPERATIVE DATE; CONTRACT WITH STATE.

This article shall become operative on July 1, 1959, and prior thereto this city shall contract with the state board of equalization to perform all functions incident to the administration and operation of this sales and use tax article; provided, that if this city shall not have contracted

with the state board of equalization to perform all functions incident to the administration and operation of this sales and use tax article; provided, that if this city shall not have contracted with the state board of equalization, as above set forth, prior to July 1, 1959, this article shall not be operative until the first day of the first calendar quarter following the execution of such a contract by the city and by the state board of equalization; and provided further, that this article shall not be operative prior to the operative date of the uniform local sales and use tax ordinance of the County of Fresno.
(Added Ord. 5576, 1959).

SEC. 7-504. SALES TAX.

(a) (1) Effective July 1, 2025, for the privilege of selling tangible personal property at retail a tax is hereby imposed on all retailers in the City at the rate of 0.9500 percent of the gross receipts of the retailer from the sale of all tangible personal property sold at retail in the City.

(2) For the purposes of this ordinance, all retail sales are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer of his agent to an out-of-state designation or to a common carrier for delivery to an out-of-state designation. The gross receipts from such sales shall include delivery charges, when such charges are subject to the state sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the state or has more than one place of business, the place or places at which the retail sales are consummated shall be determined under rules and regulations to be prescribed and adopted by the Board of Equalization.

(b) (1) Except as hereinafter provided, and except insofar as they are inconsistent with the provisions of part 1.5 of division 2 of the Revenue and Taxation Code of the state, all of the provisions of part 1 of division 2 of such Code, as amended and in force and effect on July 1, 1959, applicable to sales taxes are hereby adopted and made a part of this section as though fully set forth herein.

(2) Wherever, and to the extent that, in part 1 of division 2 of the state Revenue and Taxation Code, the state is named or referred to as the taxing agency, the City of Fresno shall be substituted therefor. Nothing in this subdivision shall be deemed to require the substitution of the name of the City of Fresno for the word "state" when that word is used as part of the title of the State Controller, the State Treasurer, the State Board of Control, the State Board of Equalization, or the name of the State Treasury, or of the Constitution of the State of California; nor shall the name of the city be substituted for that of the state in any section when the result of that substitution would require action to be taken by or against the city or any agency thereof, rather than by or against the State Board of Equalization, in performing the functions incident to the administration or operation of this article; and neither shall the substitution be deemed to have been made in those sections, including, but not necessarily limited to, sections referring to the exterior boundaries of the state, where the result of the substitution would be to provide an exemption from this tax

with respect to certain gross receipts which would not otherwise be exempt from this tax while those gross receipts remain subject to tax by the state under the provisions of part 1 of division 2 of the Revenue and Taxation Code; nor to impose this tax with respect to certain gross receipts which would not be subject to tax by the state under such provisions of that Code; and, in addition, the name of the city shall not be substituted for that of the state in sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 and 6828 of the Revenue and Taxation Code as adopted.

(3) If a seller's permit has been issued to a retailer under section 6067 of the Revenue and Taxation Code, an additional seller's permit shall not be required by reason of this section.

(4) There shall be excluded from the gross receipts by which the tax is measured:

(i) The amount of any sales or use tax imposed by the State of California upon a retailer or consumer.

(ii) The gross receipts from the sale of tangible personal property to operators of waterborne vessels to be used or consumed principally outside the city in which the sale is made and directly and exclusively in the carriage of persons or property in such vessels for commercial purposes.

(iii) The gross receipts from the sale of tangible personal property to operators of aircraft to be used or consumed principally outside the city in which the sale is made and directly and exclusively in the use of such aircraft as common carriers of persons or property under the authority of the laws of this state, the United States, or any foreign government.

(5) During the term of the "Memorandum of Understanding between the County of Fresno, City of Fresno and the Fresno Redevelopment Agency" dated February 26, 1991, on file with the City Clerk (the "MOU"), there shall be a credit to a taxpayer against the payment of sales taxes due to city in an amount equal to the sales tax then due to the County of Fresno by that taxpayer pursuant to the terms of the MOU.

(Added Ord. 5576, 1959; Am. Ord. 5852, 1961; Am. Ord. 5902, 1961; Am. Ord. 6011, 1962; Am. Ord. 73-167, §§ 1, 2, eff. 1-1-74; Am. Ord. 76-78, § 1, eff. 12-1-76; Am. Ord. 77-26, § 1, eff. 3-3-77; Am. Ord. 84-28, §§ 1, 3, eff. 3-13-84; Am. Ord. 91-19, § 1, eff. 3-5-91; Am. Ord. 92-22, § 1, 4-7-92; Am. Ord. 93-9, § 1, eff. 2-2-93; Am. Ord. 93-21, § 1, eff. 4-6-93; Am. Ord. 94-23, § 1, eff. 4-12-94; Am. Ord. 95-22, § 1, eff. 3-14-95; Am. Ord. 96-31, § 1, 4-16-96; Am. Ord. 99-20, § 1, 4-16-99; Am. Ord. 2000-33, § 1, eff. 4-26-00; Am. Ord. 2001-37, § 1, eff. 4-16-01; Am. Ord. 2001-43, § 1, eff. 5-10-01; Am. Ord. 2004-42, § 1, eff. 4-21-04; Am. Ord. 2005-47, § 1, eff. 5-21-05; Am. Ord. 2006-80, § 1, eff. 6-22-06; Am. Ord. 2008-35, § 1, eff. 6-11-08; Am. Ord. 2010-17, § 1, eff. 6-15-10; Am. Ord. 2011-16, § 1, eff. 6-7-11; Am. Ord. 2013-13, § 1, eff. 5-23-13; Am. Ord. 2014-26, § 1, eff. 5-23-14; Am. Ord. 2015-10, § 1, eff. 5-19-15; Am. Ord. 2017-30, § 1, eff. 6-12-17; Am. Ord. 2025-005, § 1, eff. 3-19-25).

SEC. 7-505. USE TAX.

(a) An excise tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on or after the operative date of this article for storage, use or other consumption in the City at the rate of 0.9500 percent of the sales price of the property from and after July 1, 2025. The sales price shall include delivery charges when such charges are subject to State sales or use tax, regardless of the place to which delivery is made.

(b) (1) Except as hereinafter provided, and except insofar as they are inconsistent with the provisions of part 1.5 of division 2 of the Revenue and Taxation Code of the state, all of the provisions of part 1 of division 2 of such code, as amended and in force and effect on July 1, 1959, applicable to use taxes are hereby adopted and made a part of this section as though fully set forth herein.

(2) Wherever, and to the extent that, in part 1 of division 2 of the said Revenue and Taxation Code the State of California is named or referred to as the taxing agency, the name of this city shall be substituted therefor. Nothing in this subdivision shall be deemed to require the substitution of the name of this city for the word "state" when that word is used as part of the title of the State Controller, the State Treasurer, the State Board of Control, the State Board of Equalization, or the name of the State Treasury, or of the Constitution of the State of California; nor shall the name of the city be substituted for that of the state in any section when the result of that substitution would require action to be taken by or against the city or any agency thereof rather than by or against the State Board of Equalization, in performing the functions incident to the administration or operation of this ordinance; and neither shall the substitution be deemed to have been made in those sections, including but not necessarily limited to, sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to provide an exemption from this tax with respect to certain storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such storage, use or other consumption remains subject to tax by the State under the provisions of part 1 of division 2 of the said Revenue and Taxation Code, or to impose this tax with respect to certain storage, use or other consumption of tangible personal property which would not be subject to tax by the state under the said provisions of that Code; and in addition, the name of the city shall not be substituted for that of the state in Sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797 and 6828 of the said Revenue and Taxation Code as adopted, and the name of the city shall not be substituted for the word "state" in the phrase "retailer engaged in business in this state" in Section 6203 nor in the definition of that phrase in Section 6203.

(3) There shall be exempt from the tax due under this section:

(i) The amount of any sales or use tax imposed by the State of California upon a retailer or consumer.

(ii) The storage, use or other consumption of tangible personal property, the gross receipts from the sale of which has been subject to sales tax under a sales and use tax ordinance enacted in accordance with Part 1.5 of Division 2 of the Revenue and Taxation Code by any city and county, county, or city in this state.

(iii) The storage, use or other consumption of tangible personal property purchased by operators of waterborne vessels and used or consumed by such operators directly and exclusively in the carriage of persons or property in such vessels for commercial purposes.

(iv) In addition to the exemptions provided in Sections 6366 and 6366.1 of the Revenue and Taxation Code, the storage, use, or other consumption of tangible personal property purchased by operators of aircraft and used or consumed by such operators directly and exclusively in the use of such aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this state, the United States, or any foreign government.

(4) During the term of the "Memorandum of Understanding between the County of Fresno, the City of Fresno and the Fresno Redevelopment Agency" dated February 26, 1991, on file with the City Clerk (the "MOU"), there shall be a credit to a taxpayer against the payment of use taxes due to city in an amount equal to the use tax then due to the County of Fresno by that taxpayer pursuant to the terms of the MOU.

(Added Ord. 5576, 1959; Am. Ord. 5852, 1960; Am. Ord. 5902, 1961; Am. Ord. 6011, 1962; Am. Ord. 73-163, § 3, eff. 1-1-74; Am. Ord. 76-78, § 2, eff. 12-1-76; Am. Ord. 77-26, § 2, eff. 3-3-77; Am. Ord. 84-28, §§ 2, 4, eff. 3-13-84; Am. Ord. 91-19, § 2, eff. 3-5-91; Am. Ord. 92-22, § 2, eff. 4-7-92; Am. Ord. 93-9, § 2, eff. 2-2-93; Am. Ord. 93-21, § 2, eff. 4-6-93; Am. Ord. 94-23, § 2, eff. 4-12-94; Am. Ord. 95-22, § 2, eff. 3-14-95; Am. Ord. 99-20, § 2, eff. 4-16-99; Am. Ord. 2000-33, § 1, eff. 4-26-00; Am. Ord. 2001-37, § 2, eff. 4-16-01; Am. Ord. 2001-43, § 2, eff. 5-10-01; Am. Ord. 2004-42, § 2, eff. 4-21-04; Am. Ord. 2005-47, § 2, eff. 5-21-05; Am. Ord. 2006-80, § 2, eff. 6-22-06; Am. Ord. 2008-35, § 2, eff. 6-11-08; Am. Ord. 2010-17, § 2, eff. 6-15-10; Am. Ord. 2011-16, § 2, eff. 6-7-11; Am. Ord. 2013-13, § 2, 5-23-13; Am. Ord. 2014-26, § 2, eff. 5-23-14; Am. Ord. 2015-10, § 2, eff. 5-19-15; Am. Ord. 2017-30, § 2, eff. 6-12-17; Am. Ord. 2025-005, § 2, eff. 3-19-25).

SEC. 7-506. AMENDMENTS.

All amendments of the Revenue and Taxation Code enacted subsequent to the effective date of this article, including amendments adopted and effective to and including July 1, 1959, which relate to the sales and use tax and which are not inconsistent with Part 1.5 of Division 2 of the Revenue and Taxation Code shall automatically become a part of this article.

(Added Ord. 5576, 1959).

SEC. 7-507. APPLICATION OF PROVISIONS RELATING TO EXCLUSIONS AND EXEMPTIONS.

(a) Subsections 7-504(b)(4.5) and 7-505(b)(3.5) of this article shall become operative on January first of the year following the year in which the State Board of Equalization adopts an assessment ratio for State-assessed property which is identical to the ratio which is required for local assessments by Section 401 of the Revenue and Taxation Code, at which time subsections 7-504(b)(4) and 7-505(b)(3) of this article shall become inoperative.

(b) In the event that subsections 7-504(b)(4.5) and 7-505(b)(3.5) of this article shall become operative and the State Board of Equalization subsequently adopts as assessment ratio for State-assessed property which is higher than the ratio which is required for local assessments by Section 401 of the Revenue and Taxation Code, subsections 7-504(b)(4) and 7-505(b)(3) of this article shall become operative on the first day of the month following the month in which such higher ratio is adopted, at which time subsections 7-504(b)(4.5) and 7-505(b)(3.5) of this article shall become inoperative until the first day of the month following the month in which the Board again adopts an assessment ratio for State-assessed property which is identical to the ratio required for local assessments by Section 401 of the Revenue and Taxation Code, at

which time subsections 7-504(b)(4.5) and 7-505(b)(3.5) of this article shall again become operative and subsections 7-504(b)(4) and 7-505(b)(3) of this article shall become inoperative. (Added Ord. 73-163, § 4, eff. 1-1-74).

SEC. 7-508. ENJOINING COLLECTION FORBIDDEN.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the state or this city, or against any official of the state or of this city, to prevent or enjoin the collection under this article or part 1.5 of division 2 of the Revenue and Taxation Code of any tax or any amount of tax required to be collected. (Added Ord. 5576, 1959).

SEC. 7-509. EXISTING SALES AND USE TAX ORDINANCE SUSPENDED.

At the time this article goes into operation, the provisions of Article 3 and 4 of this chapter the existing sales and use tax ordinance of the city shall be suspended and shall not again be of any force or effect until and unless for any reason the state board of equalization ceases to perform the functions incident to the administration and operation of the sales and use tax hereby imposed; provided, however, that if for any reason it is determined that the city is without power to adopt this article, or that the state board of equalization is without power to perform the functions incident to the administration and operation of the taxes imposed by this article, the provisions of Article 3 and 4 of this chapter shall not be deemed to have been suspended, but shall be deemed to have been in full force and effect at the rate of one per cent continuously from and after July 1, 1959. Upon the ceasing of the state board of equalization to perform the functions incident to the administration and operation of the taxes imposed by this article, the provisions of Article 3 and 4 of this chapter shall again be in full force and effect at the rate of one per cent. Nothing in this article shall be construed as relieving any person of the obligation to pay to the city any sales or use tax accrued and owing by reason of the provisions of Article 3 and 4 of this chapter in force and effect prior to and including June 30, 1959. (Added Ord. 5576, 1959).

SEC. 7-510. VIOLATION AND PENALTY THEREFOR.

Any retailer or other person who fails or refuses to furnish any return required to be made or who fails or refuses to furnish a supplemental return or other data required by the state board of equalization or who renders a false or fraudulent return, and any person required to make, render, sign or verify any report who makes any false or fraudulent return with intent to defeat or evade the determination of amount due required by law to be made is guilty of a misdemeanor, and upon conviction thereof shall be punishable by a fine of not more than five hundred dollars ($500) or by imprisonment for a period of not more than six months in the county jail or by both such fine and imprisonment. (Added Ord. 5576, 1959).

SEC. 7-511. SEVERABILITY.

If any section, subsection, sentence, clause, phrase or portion of this article, including but not limited to any exemption, is for any reason held to be invalid or unconstitutional by the

decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this article. The council hereby declares that it would have adopted this article and each section, subsection, sentence, clause, phrase or portion thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases or portions be declared invalid or unconstitutional. (Added Ord. 5576, 1959).

ARTICLE 6 TRANSIENT ROOM TAX

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SEC. 7-601. TITLE.

This article shall be known as the Transient Room Tax Ordinance of the City of Fresno. (Rep. and Added Ord. 6457, 1964).

SEC. 7-602. DEFINITIONS.

Except where the context otherwise requires, the definitions given in this section govern the construction of this ordinance.

(a) "Hotel" means any structure, or any portion of any structure which is occupied or intended or designed for occupancy by transients for dwelling, lodging, or sleeping purposes, and includes any hotel, inn, tourist home or house, motel, studio hotel, bachelor hotel, lodging house, rooming house, apartment house, dormitory, public or private club, mobilehome or house trailer at a fixed location, or other similar structure or portion thereof.

(b) "Legislative body" means the City Council of the City of Fresno.

(c) "Occupancy" means the use or possession, or the right to the use or possession of any room or rooms or portions thereof, in any hotel for dwelling, lodging, or sleeping purposes.

(d) "Operator" means the person who is proprietor of the hotel, whether in the capacity of owner, lessee, sublessee, mortgagee in possession, licensee, or any other capacity, and includes an officer or employee of a corporation, or a member or employee of a partnership, who as such officer, employee, or member is under a duty to collect or

remit the tax imposed by this article on behalf of such corporation or partnership. Where the Operator performs its functions through a managing agent of any type or character other than an employee, the managing agent shall also be deemed an Operator for the purposes of this article. Compliance with the provisions of this article by either the principal or the managing agent shall, however, be considered to be compliance by both.

(e) "Person" means any individual, firm, partnership, joint venture, association, social club, fraternal organization, joint stock company, corporation, estate, trust, business trust, receiver, trustee, syndicate, or any other group or combination acting as a unit.

(f) "Rent" means the consideration charged, whether or not received, for the occupancy of space in a hotel valued in money, whether to be received in money, goods, labor, or otherwise, including all receipts, cash, credits, and property and services of any kind or nature, without any deduction therefrom whatsoever.

(g) "Tax Administrator" means the Controller and Director of Finance of the City of Fresno. "Tax Administrator" as used herein, shall, where applicable, also include the person(s) authorized to collect assessments on behalf of the Tourism Business Improvement District, to the extent authority is delegated by ordinance, resolution, or agreement with the city.

(h) "Transient" means any person who exercises occupancy or is entitled to occupancy in a hotel by reason of a lease, concession, permit, right of access, license or other agreement for a period of thirty consecutive calendar days or less, counting portions of calendar days as full days. Any such person so occupying space in a hotel shall be deemed to be a transient until the period of thirty days has expired unless there is an agreement in writing between the operator and the occupant providing for a longer period of occupancy. In determining whether a person is a transient, uninterrupted periods of time extending both prior and subsequent to the effective date of this ordinance may be considered.

(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-601; Am. Ord. 69-48, 1969; Am. Ord. 88-8, § 4, eff. 2-12-88; Am. Ord. 2012-17, § 1, eff. 10-5-12; Am. Ord. 2023-12, § 1, eff. 6-8-23).

SEC. 7-603. TAX IMPOSED.

(a) **Transient Occupancy Tax.** For the privilege of occupancy in any hotel, each transient is subject to and shall pay a tax to be known as the "Transient Occupancy Tax" ("TOT") in the amount designated in the Master Fee Resolution. Said tax constitutes a debt owed by the transient to the city which is extinguished only by payment to the operator or to the city. The transient shall pay the tax to the operator of the hotel at the time the rent is paid. If the rent is paid in installments, a proportionate share of the tax shall be paid with each installment. Any unpaid tax shall be due upon the transient's ceasing to occupy space in the hotel. If for any reason the tax due is not paid to the operator of the hotel, the Tax Administrator may require that such tax shall be paid directly to him.

(b) **Tourism Business Improvement District.** The provisions of this ordinance, as applicable, shall also apply to the collection of a duly authorized "Tourism Business Improvement District" ("TBID") assessment. All references to "tax" in this ordinance shall apply also to collection of the TBID assessment.

(Rep. and Added Ord. 6457, 1964, based on former Secs. 4-602, 4-603; Am. Ord. 67-42, 1967; Am. Ord. 73-74, § 1, eff. 7-1-73; Am. Ord. 82-127, § 1, eff. 12-24-82; Am. Ord. 2012-17, § 1, eff. 10-5-12).

SEC. 7-604. COLLECTION OF TAX BY OPERATOR; RULES FOR COLLECTION SCHEDULES.

Every operator maintaining a place of business and renting rooms in this city, the occupancy of which is not exempted under the terms of this ordinance, shall collect the tax from the occupant. The tax, when collected by the operator, shall immediately be deemed city funds held in trust by the operator for the sole benefit of the city, to be transferred to the city as provided in this ordinance. The tax required to be collected by the operator also constitutes a debt owing by the operator to the city. In all cases of transactions upon credit or deferred payment, the payment of tax to the operator may be deferred in accordance therewith, and the operator shall be liable therefore at the time and to the extent that such credits are paid or deferred payments are made in accordance with the rate of tax owing on the amount thereof.

The Tax Administrator shall enforce the provisions of this ordinance and shall have the power to adopt rules and regulations not inconsistent herewith as may be necessary or desirable to aid in the enforcement hereof. He shall provide schedules for payment of the tax and such schedules shall eliminate fractions of one cent.
(Added Ord. 6194, 1963; Am. Ord. 6224, 1963; Rep. and Added Ord. 6457, 1964; Am. Ord. 2012-17, § 1, eff. 10-5-12).

SEC. 7-605. OPERATOR'S DUTIES.

Each operator shall collect the tax imposed by this ordinance to the same extent and at the same time as the rent is collected from every transient. The amount of tax shall be separately stated from the amount of the rent charged, and each transient shall receive a receipt for payment from the operator. No operator of a hotel shall advertise or state in any manner, whether directly or indirectly, that the tax or any part thereof will be assumed or absorbed by the operator, or that it will not be added to the rent, or that, if added, any part will be refunded except in the manner hereinafter provided.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-604 and 4-605).

SEC. 7-606. EXEMPTIONS.

No tax imposed under this article shall be imposed upon:

(a) Any person as to who, or any occupancy as to which, it is beyond the power of the city to impose the tax herein provided;

(b) Any officer or employee of a foreign government who is exempt by reason of express provision of federal law or international treaty or any federal or California city, county or state government officer or employee when on official business;

(c) Any occupant for more than thirty successive calendar days;

(d) Any occupant whose rent is of a value less than two dollars ($2.) a day;

(e) Any person who rents a private home, vacation cabin, or like facility from any owner who is not regularly engaged in the business of renting such facilities but does so only occasionally and incidentally to his own use thereof;

(f) Any occupant whose rent is paid for a hospital room or to a medical clinic, convalescent home or home for aged people;

(g) Any person who, while attending a convention or similar gathering in the city, rents a facility which is ordinarily used for occupancies not taxable under this article;

No exemption shall be granted under subsections (a) or (b) of this section except upon a claim therefor made at the time rent is collected and under penalty of perjury upon a form prescribed by the Tax Administrator.
(Added Ord. 6194, 1963; Rep. and Added Ord. 6457, 1964; Am. Ord. 6689, 1965; Am. Ord. 68-56, 1968; Am. Ord. 88-143, § 1, eff. 12-16-88).

SEC. 7-607. REGISTRATION OF OPERATOR; FORM AND CONTENTS; EXECUTION; CERTIFICATION OF AUTHORITY.

Every person engaging or about to engage in business as an operator of a hotel in this city shall register with the Tax Administrator on a form provided by him. Persons engaged in such business must so register not later than July 15, 1964, or within fifteen days after commencing business whichever is later, but such privilege of registration after the date of imposition of such tax shall not relieve any person from the obligation of payment or collection of tax on and after the date of imposition thereof, regardless of registration. Such registration shall set forth the name under which such person transacts or intends to transact business, the location of his place or places of business and such other information to facilitate the collection of the tax as the Tax Administrator may require. The registration shall be signed by authorized representatives on behalf of both the owner of the property and the operator, if different; in case of an association or partnership, by a member or partner; in the case of a corporation, by an executive officer or some person specifically authorized by the corporation to sign the registration. The registration shall contain an express acknowledgement and consent to all terms contained in this ordinance, including but not limited to remedies for non-payment of the tax. The Tax Administrator shall within ten days after such registration issue without charge a certificate of authority to each registrant to collect the tax from the occupant, together with a duplicate thereof for each additional place of business of such registrant. Such certificates shall be non-assignable and non-transferable and shall be surrendered immediately to the Tax Administrator upon the cessation of business at the location named, upon its sale or transfer, or as provided in this ordinance. Each certificate and duplicate shall state the place of business to which it is applicable and shall be prominently displayed therein so as to be seen and come to the notice readily of all occupants and persons seeking occupancy. No person or entity shall operate a hotel in this city without a current and valid certificate of authority.

Said certificate shall, among other things, state the following:

(1) The name of the operator;

(2) The address of the hotel;

(3) The date upon which the certificate was issued;

(4) This Transient Occupancy Registration Certificate signifies that the person named on the face hereof has fulfilled the requirements of the transient room tax ordinance of the City of Fresno by registration with the Tax Administrator for the purpose of collecting from transients the room tax imposed by said city and remitting said tax to the Tax Administrator. This certificate does not authorize any person to conduct any unlawful business or to conduct any lawful business in an unlawful manner, or to operate a hotel without strictly complying with all local applicable laws, including but not limited to those requiring a permit from any board, commission, department, or office of said city. This certificate does not constitute a permit.

If the Tax Administrator deems it necessary in order to facilitate initial registration hereunder of persons engaged in business on or prior to the date of imposition of tax as set forth in this ordinance, he may prescribe provisions therefor other than those provided in this section. Such provisions shall be made to effect the purposes hereof. For such purposes, such provisions shall be in lieu of or in addition to those herein provided. Such registration and certificate thereof shall have the same effect as that provided herein.
(Added Ord. 6194, 1964; Rep. and Added Ord. 6457, 1964; Am. Ord. 2012-17, § 1, eff. 10-5-12).

SEC. 7-608. PENALTIES AND INTEREST.

(a) **Original Delinquency.** Any operator who fails to remit any tax imposed by this ordinance within the time required shall pay a penalty of ten per cent of the amount of the tax in addition to the amount of the tax.

(b) **Continued Delinquency.** Any operator who fails to remit any delinquent remittance on or before a period of thirty days following the date on which the remittance first became delinquent shall pay a second delinquency penalty of ten per cent of the amount of the tax in addition to the amount of the tax and the ten per cent penalty first imposed.

(c) **Fraud.** If the Tax Administrator determines that the non-payment of any remittance due under this ordinance is due to fraud or intent to evade the provisions thereof, a penalty of twenty-five per cent of the amount of the tax shall be added thereto in addition to the penalties stated in paragraphs (a) and (b) of this section.

(d) **Interest.** In addition to the penalties imposed, any operator who fails to remit any tax imposed by this ordinance shall pay interest at the rate of one per cent per month or fraction thereof on the amount of the tax, exclusive of penalties, from the date on which the remittance first became delinquent until paid.

(e) **Penalties Merged With Tax.** Every penalty imposed and such interest as accrues under the provisions of this section shall be merged with and become a part of the tax herein required to be paid.

(f) **Liens and Collection.** A real property lien shall attach to the location of the hotel effective immediately when a tax becomes delinquent. If any tax is not paid when due, the Tax Administrator may record in the office of county recorder of such counties as the Tax Administrator may determine, a certificate which specifies the amount of tax due and the

name and address of the owner and/or operator owing the tax. The certificate shall include a statement that the Tax Administrator has complied with all legal requirements in the determination of the tax owed and a legal description of the real property of the owner. Upon recording of the certificate, the tax, as well as all amounts becoming due thereafter unless paid, constitutes a lien upon all real property owned or thereafter acquired by the owner and/or operator. The lien has the force, effect and priority of a judgment lien.

(g) **Warrant for Collection of Tax.** At any time after the recording of a certificate of lien, the Tax Administrator may issue a warrant directed to any sheriff or marshal for the enforcement of the lien and the collection of such tax. The warrant shall have the same effect as a writ of execution, and be executed in the same manner and with the same effect as a levy and sale pursuant to writ of execution. The Tax Administrator shall, upon request, pay or advance to the sheriff or marshal such fees, commissions and expenses for services as are provided by law.

(h) **Seizure and Sale.** In lieu of issuing a warrant, after an assessment is issued or a certificate of lien is recorded, the Tax Administrator may collect the delinquent amount by seizing or causing to be seized any property, real or personal, of the owner and/or operator and selling non-cash or nonnegotiable property at public auction to pay the tax due together with any costs of the seizure and sale. Any seizure made shall only be of property not exempt from execution under the provisions of the Code of Civil Procedure.

(i) **Combining Actions.** In the discretion of the Controller or Director of Finance and with consent of the TBID administrator, the city may combine in one action efforts to collect both TOT and TBID assessments due from an operator.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-613; Am. Ord. 2012-17, § 1, eff. 10-5-12).

SEC. 7-609. DUE DATE; RETURNS AND PAYMENTS.

(a) The tax imposed by this ordinance shall become due and payable from the occupant at the time of occupancy. All amounts of such taxes collectible or collected by any operator are due and payable to the Tax Administrator quarterly on the first day of the months of April, July, October, and January next succeeding each respective quarterly period and are delinquent after the last day of such months.

(b) On or before the last day of the month following each quarterly period of three months, a return for the preceding quarterly period shall be filed with the Tax Administrator. The return shall be filed in such form as the Tax Administrator may prescribe, by every operator and by every person liable to payment of tax hereunder during such quarterly period who has not paid such tax, and who has not made return in regard to the related occupancy which is the subject of tax.

(c) Returns shall show the amount of tax collected or otherwise due for the related period and such other information as is required by the Tax Administrator. The Tax Administrator may require returns to show the total rentals upon which tax was collected or otherwise due, the gross receipts of a registered returnee for such period and the explanation in detail of any discrepancy between such amounts.

(d) The person required to file the return shall deliver the return, together with the remittance of the amount of the tax due, to the Tax Administrator at his office.

(e) For good cause the Tax Administrator may extend for not to exceed one month the time for making any return or payment of tax. No further extension shall be granted, except by the Transient Occupancy Review Committee. Any person to whom an extension is granted who makes return and pays the tax within the period of such extension shall pay, in addition to the tax, interest on the amount thereof at the rate of one-half of one per cent per month, or fraction thereof, on the unpaid balance for the period of such extension to the time of return and payment, which interest shall become a part of the tax.

(f) The Tax Administrator, if he deems it necessary in order to insure payment or facilitate collection by the city of the amount of taxes may require returns and payment of the amount of taxes for other than quarterly periods.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-608; Am. Ord. 67-93, 1967).

SEC. 7-610. DEFICIENCY DETERMINATIONS.

(a) If the Tax Administrator is not satisfied with the return or returns of the tax or the amount of the tax required to be paid to the city by any person, he may compute and determine the amount required to be paid upon the basis of the facts contained in the return or returns or upon the basis of any information within his possession or that may come into his possession. One or more deficiency determinations may be made of the amount due for one or more than one period. The determination of the Tax Administrator shall constitute a legal presumption of the amount due.

(b) In making a determination the Administrator may offset overpayments, if any, which may have been previously made for a period or periods together with interest on the overpayments, against any underpayment for a subsequent period or periods, or against penalties, and interest, on the underpayments. The interest on underpayments and overpayments shall be computed in the manner set forth in Section 7-608.

(c) The Tax Administrator shall give to the operator or occupant written notice of his determination. The notice may be served personally or by mail; if by mail, the notice shall be enclosed in a sealed envelope postage prepaid and addressed to the operator at his address as it appears in the records of the Administrator. In case of service by mail of any notice required by this ordinance the service is complete at the time of deposit in the United States Post Office.

(d) Except in the case of fraud, intent to evade this ordinance or authorized rules and regulations, or failure to make a timely return, every deficiency determination shall be made and notice thereof mailed within three years after the last day of the month following the close of the quarterly period for which the amount is proposed to be determined or within three years after the return is filed, whichever period expires the later.

(e) If any operator shall fail or refuse to collect said tax or to make, within the time provided in this ordinance, any report and remittance of said tax or any portion thereof required by this ordinance or makes a fraudulent return or otherwise willfully attempts to evade this

ordinance, the Tax Administrator shall proceed in such manner as he may deem best to obtain facts and information on which to base his estimate of the tax due. As soon as the Tax Administrator shall procure such facts and information as he is able to obtain upon which to base the assessment of any tax imposed by this ordinance and payable by any operator who has failed or refused to collect the same and to make such report and remittance, he shall proceed to determine and assess against such operator the tax, interest, and penalties, provided for by this ordinance. In case such determination is made, the Tax Administrator shall give a notice in the manner aforesaid of the amount so assessed. Such determination and notice shall be made and mailed within three years after discovery by the Tax Administrator of any fraud, intent to evade or failure to file return. Any determination shall become final within thirty days after giving notice thereof as herein provided.

(f) If the Tax Administrator believes that the collection of any tax or any amount of tax required to be collected and paid to the City will be jeopardized by delay, or if any determination will be jeopardized by delay, he shall thereupon make a determination of the tax or amount of tax required to be collected, noting that fact upon the determination. The amount determined is immediately due and payable. If the amount specified in the determination is not paid within ten days after service of notice thereof upon the person against whom the determination is made, the amount becomes final at the expiration of the ten days, unless a petition for redetermination is filed within the ten days and the delinquency penalty and the interest provided in Section 7-608 shall attach to the amount of the tax or the amount of the tax required to be collected.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-609, 4-610 and 4-611; Am. Ord. 6498, 1964; Am. Ord. 2012-17, § 1, eff. 10-5-12).

SEC. 7-611. REDETERMINATIONS.

(a) Any person against whom a determination is made under Section 7-610 or any person directly interested may petition for a redetermination within thirty days after service upon the person of notice thereof. If a petition for redetermination is not filed within the thirty-day period, the determination becomes final at the expiration of the period. Provided, however, a petition for redetermination under subsection (f) of Section 7-610 shall be filed within ten days after notice.

(b) If a petition for redetermination is filed within the allowable period, the Tax Administrator shall reconsider the determination, and, if the person has so requested in his petition, shall grant the person an oral hearing and shall give him ten days' notice of the time and place of the hearing. The Tax Administrator may continue the hearing from time to time as may be necessary.

(c) The Tax Administrator may decrease or increase the amount of the determination before it becomes final but the amount may be increased only if a claim for the increase is asserted by the Tax Administrator at or before the hearing.

(d) The order or decision of the Tax Administrator upon a petition for redetermination becomes final fifteen days after service upon the petitioner of notice thereof, unless appeal of such order or decision is filed with the Transient Occupancy Tax Review Committee within fifteen days after service of such notice.

(e) No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the city or an officer thereof, to prevent or enjoin the collection of taxes sought to be collected pursuant to this chapter, and payment of all tax, interest and penalties shall be required as a condition precedent to seeking judicial review, redetermination or appeal of any tax liability.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-612; Am. Ord. 6498, 1964; Am. Ord. 2009-40, § 1, eff. 1-23-10).

SEC. 7-612. SECURITY FOR COLLECTION OF TAX.

(a) The Tax Administrator, whenever he deems it necessary to insure compliance with this ordinance, may require any person subject thereto to deposit with him such security in the form of cash, bond, or other security as the Tax Administrator may determine. The amount of the security shall be fixed by the Tax Administrator but shall not be greater than twice the person's estimated average liability for the period for which he files returns, determined in such manner as the Tax Administrator deems proper, or ten thousand dollars ($10,000), whichever amount is the lesser. The amount of the security may be increased or decreased by the Tax Administrator subject to the limitations herein provided.

(b) If any person is delinquent in the payment of the amount required to be paid by him or in the event a determination has been made against him which remains unpaid, the Tax Administrator may, not later than three years after the payment became delinquent, give notice thereof by registered mail to all persons in the county having in their possession or under their control any credits or other personal property belonging to the delinquent, or owing any debts to the delinquent. After receiving the notice the persons so notified shall neither transfer nor make any other disposition of the credits, other personal property, or debts in their possession or under their control at the time they receive the notice until the Tax Administrator consents to a transfer or disposition or until twenty days elapse after the receipt of the notice. All persons so notified shall within five days after the receipt of the notice advise the Tax Administrator of all such credits, other personal property, or debts in their possession, under their control, or owing by them.

(c) At any time within three years after any tax or any amount of tax required to be collected becomes due and payable or at any time within three years after any determination becomes final, the Tax Administrator may bring an action in the courts of this State, or any other state, or of the United States in the name of the city to collect the amount delinquent together with penalties and interest.

(d) If any operator liable for any amount under this ordinance sells out his business or quits the business, his successors or assigns shall withhold sufficient of the purchase price to cover such amount until the former owner produces a receipt from the Tax Administrator showing

that he has been paid or a certificate stating that no amount is due. If the purchaser of a business fails to withhold the tax from the purchase price as required, he becomes personally liable for the payment of the amount required to be withheld by him to the extent of the purchase price, valued in money. Within thirty days after receiving a written request from the purchaser for a certificate, the Tax Administrator shall either issue the certificate or mail notice to the purchaser at his address as it appears on the records of the Tax Administrator of the amount that must be paid as a condition of issuing the certificate. Failure of the Administrator to mail the notice will release the purchaser from any further obligation to withhold the purchase price as above provided. The time within which the obligation of a successor may be enforced shall start to run at the time the operator sells out his business or at the time that the determination against the operator becomes final, whichever event occurs the later.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-614).

SEC. 7-613. REFUNDS.

Whenever the amount of any tax, penalty, or interest has been paid more than once or has been erroneously or illegally collected or received by the Tax Administrator under this ordinance, it may be refunded provided a verified claim in writing therefor, stating the specific ground upon which the claim is founded, is filed with the Tax Administrator within three years from the date of payment. The claim shall be made on forms provided by the Tax Administrator. If the claim is approved by the Tax Administrator the excess amount collected or paid may be refunded or may be credited on any amounts then due and payable from the person from whom it was collected or by whom paid and the balance may be refunded to such person, his administrators or executors.
(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-614(f)).

SEC. 7-614. ADMINISTRATION.

(a) The Tax Administrator shall deposit into a special fund, referred to as the "Convention Center Fund," all transient room tax collections pledged pursuant to Section 20 of the Joint Exercise of Powers Agreement, Fresno City-County Community and Convention Center Authority, entered into on February 24, 1964, as amended.

(b) **Records Required from Operators, etc.; Form.** Every operator renting guest rooms in this city shall keep such records, receipts, invoices, and other pertinent papers in such form as the Tax Administrator may require. All records shall be retained by the operator for a period of three years and six months after they come into being.

(c) **Examination of Records; Investigations.** The Tax Administrator or any person authorized in writing by him may examine the books, papers, records and equipment of any person liable for the tax and may investigate the character of the business of the person in order to verify the accuracy of any return made, or if no return is made by the person, to ascertain and determine the amount required to be paid.

(d) **Authority to Require Reports; Contents.** In administration of the tax the Tax Administrator may require the filing of reports by any person or class of persons having in his or their possession or custody information relating to rentals of guest rooms which are subject to the tax. The reports shall be filed when the Tax Administrator requires and shall set forth the rental charged for each occupancy, the date or dates of occupancy, and such other information as the Tax Administrator may require.

(e) **Confidential Character of Information Obtained; Disclosure Unlawful.** It shall be unlawful for the Tax Administrator or any person having an administrative duty under the provisions of this ordinance to make known in any manner whatever the business affairs, operations, or information obtained by an investigation of records and equipment of any person required to obtain a Transient Occupancy Registration Certificate, or pay a transient occupancy tax, or any other person visited or examined in the discharge of official duty, or the amount or source of income profits, losses, expenditures, or any particular thereof, set forth in any statement or application, or to permit any statement or application, or copy of either, or any book containing any abstract or particulars thereof to be seen or examined by any person. Provided that nothing in this subsection shall be construed to prevent:

(1) The disclosure to, or the examination of records and equipment by another city official, employee, TBID administrator or agent for collection of taxes or assessments for the sole purpose of administering or enforcing any provisions of this ordinance; or collecting taxes or assessments imposed hereunder;

(2) The disclosure of information to, or the examination of records by, federal, or state officials, or the tax officials of another city, or county, or city and county, if a reciprocal arrangement exists; or to a grand jury or court of law, upon subpoena;

(3) The disclosure of information and results of examination of records of particular taxpayers, or relating to particular taxpayers, to a court of law in a proceeding brought to determine the existence or amount of any business tax liability of the particular taxpayers to the city;

(4) The disclosure after the filing of a written request to that effect, to the taxpayer himself, or to his successors, receivers, trustees, executors, administrators, assignees, and guarantors, if directly interested, of information as to the items included in the measure of any paid tax, any unpaid tax or amounts of tax required to be collected, interest, and penalties; further provided, however, that the City Attorney approves each such disclosure and that the Tax Administrator may refuse to make any disclosure referred to in this paragraph when in his opinion the public interest would suffer thereby;

(5) The disclosure of the names and addresses of persons to whom Transient Occupancy Registration Certificates have been issued, the names and addresses of officers of corporations and members of partnerships to whom such certificates have been issued, and the general type or nature of their business;

(6) The disclosure to the legislative body by way of public meeting or otherwise of such information as may be necessary in order to permit it to be fully advised as to the facts when a taxpayer files a claim for refund of business taxes, or submits an offer of compromise with regard to a claim asserted against him by the city for business taxes, or when acting upon any other matter;

(7) The disclosure of general statistics regarding taxes collected or business done in the city.

(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-615; Am. Ord. 6529, 1964; Am. Ord. 82-127, § 2, eff. 12-24-82; Am. Ord. 2012-17, § 1, eff. 10-5-12).

SEC. 7-615. APPEAL.

Any person aggrieved by any decision of the Tax Administrator may file an appeal under Chapter 1, Article 4. Whenever an appeal is available under this article and no appeal is filed within the time prescribed, the action of the Tax Administrator shall be final.

(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-615; Am. Ord. 88-8, § 5, eff. 2-12-88; Am. Ord. 98-65, § 1, eff. 10-1-98; Am. Ord. 2005-14, § 22, eff. 4-9-05).

SEC. 7-616. SAVING CLAUSE.

If any section, subsection, paragraph, sentence, clause, or phrase of this ordinance, or any part thereof, is for any reason held to be unconstitutional (or otherwise invalid), such decision shall not affect the validity of the remaining portions of this ordinance or any part thereof. The legislative body hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause, or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses, or paragraphs be declared unconstitutional (or otherwise invalid).

(Rep. and Added Ord. 6457, 1964, based on former Sec. 4-616).

SEC. 7-617. VIOLATIONS.

It is unlawful for any operator or other person so required to, to fail or refuse to register as required herein, or to furnish any return required to be made, or fail or refuse to furnish a supplemental return or other data required by the Tax Administrator or to render a false or fraudulent return. No person required to make, render, sign, or verify any report shall make any false or fraudulent report, with intent to defeat or evade the determination of an amount due required by this ordinance to be made.

(Added Ord. 6457, 1964, based on former Sec. 4-617).

SEC. 7-618. MISDEMEANOR.

Any person willfully violating any of the provisions of this ordinance shall be guilty of a misdemeanor and shall be punishable therefor by a fine of not more than five hundred dollars ($500.00) or by imprisonment in the county jail for a period of not more than six months or by both such fine and imprisonment.

(Added Ord. 6457, 1964).

SEC. 7-619. CONVENTION CENTER FUND.

(a) The Convention Center Fund shall be used solely for the following purposes:

(1) Administration of the provisions of this article.

(2) Acquisition, construction, completion, operation, repair and maintenance of public assembly and convention halls, including convention center, auditorium, and little theater buildings with facilities for convention meetings and public assemblies (including dramatic and musical performances); public off-street parking facilities and other site improvements related thereto; lands, easements, and rights-of-way; and other works, property or structures, necessary or convenient for public assembly and convention halls.

(3) Expense in connection with proposals or proceedings for acquisition of the facilities referred to in subdivision (2) hereof.

(4) Interest and principal payments on bonds issued to acquire any of the facilities referred to in subdivision (2) hereof.

(5) Lease payments for lease of any of the facilities referred to in subdivision (2) hereof.

(6) Promotion, solicitation, advertisement and staging of conventions, special events, trade shows, and other gatherings to be held at the Fresno City-County Community and Convention Center and at other public or private facilities in the city; provided, that the Council may, by contract, allocate that portion of the annual contributions to the fund from the revenues produced by the city's Transient Room Tax which may be used for this purpose.

(b) This fund was previously created by former Code Section 7-615, which was adopted by Ordinance No. 6194. The fund and pertinent provisions of that section are continued as reprinted herein.

(Added Ord. 6457, 1964, based on former Sec. 4-15; Am. Ord. 74-73, § 1, eff. 9-1-74; Am. Ord. 78-124, § 1, eff. 9-22-78).

ARTICLE 7 PAYMENTS BY MUNICIPAL UTILITIES IN LIEU OF TAXES

Sec. 7-701. Definitions.
Sec. 7-702. Municipal Utilities Designated.
Sec. 7-703. Payments by Municipal Utilities in Lieu of Taxes.

SEC. 7-701. DEFINITIONS.

(a) "Assessed value of fixed assets," as used in this article, shall be that amount determined by the Controller as the same amount as the County Assessor would assess such assets if such assets were not owned by a municipal utility.

(b) "Municipal utility" means a municipally owned utility designed in Section 7-702 of this Code.

(c) "Tax rate," as used in this article, means the average rate of the property tax levied upon real and personal property in the city in any fiscal year by all taxing jurisdictions. "Average rate," as used in this subsection, means the weighted average of the total rates levied in all tax areas, as established by the County Assessor within the city, having a total assessed value of one million dollars or more. (Added Ord. 67-40, 1967; Am. Ord. 75-53, § 1, eff. 7-1-75; Am. Ord. 82-135, § 1, eff. 1-21-83).

SEC. 7-702. MUNICIPAL UTILITIES DESIGNATED.

The municipal utilities of the city are:

(1) The Water Division, an operating division of the Public Works Department.

(2) The Solid Waste Management Division, an operating division of the Public Works Department.

(3) The Parking Division (exclusive of core area parking), an operating division of the Public Works Department. "Core area parking" means the parking facilities, including on-street metered parking places, within Parking Maintenance District No. 1.

(4) The Golf Courses Division, an operating division of the Parks and Recreation Department.

(5) The Sewer Maintenance Division, an operating division of the Public Works Department.

(6) The Waste Water Management Division, an operating division of the Public Works Department.

(7) The Transit Department.

(8) The Airports Department. (Added Ord. 67-40, 1967; Am. Ord. 75-53, § 1, eff. 7-1-75; Am. Ord. 82-135, § 2, eff. 1-21-83).

SEC. 7-703. PAYMENTS BY MUNICIPAL UTILITIES IN LIEU OF TAXES.

During each fiscal year each municipal utility shall pay to the City, in lieu of property and other taxes normally placed upon private business, an amount designated by Council in the Master Fee Resolution. Such amount shall not exceed the amount of such taxes and may include, but shall not be limited to, a sum equal to the product of the assessed value of fixed assets of each municipal utility for the preceding fiscal year multiplied by the tax rate for the preceding fiscal year. (Added Ord. 67-40, 1967; Am. Ord. 75-53, § 1, eff. 7-1-75; Am. Ord. 82-135, § 3, eff. 1-21-83).

ARTICLE 8 REAL PROPERTY TRANSFER TAX

Sec. 7-801. Title.
Sec. 7-802. Definitions.
Sec. 7-803. Tax Imposed.
Sec. 7-804. Person Liable.
Sec. 7-805. Exception.
Sec. 7-806. Exemption for Public Agencies.
Sec. 7-807. Inapplicability to Bankruptcy Proceedings.
Sec. 7-808. Inapplicability to S. E. C. Orders.
Sec. 7-809. Inapplicability to Intra-Partnership Transfers.
Sec. 7-810. County Recorder to Administer Tax.
Sec. 7-811. Claims for Refund.

SEC. 7-801. TITLE.

This article shall be known as the "Real Property Transfer Tax Ordinance of the City of Fresno." It is adopted pursuant to the authority contained in Part 6.7 (commencing with Section 11901) of Division 2 of the Revenue and Taxation Code of the State of California. (Added Ord. 67-141, 1967).

SEC. 7-802. DEFINITIONS.

(Reserved). (Added Ord. 67-141, 1967).

SEC. 7-803. TAX IMPOSED.

There is hereby imposed on each deed, instrument, or writing by which any lands, tenements, or other realty sold within the city shall be granted, assigned, transferred or otherwise conveyed to, or vested in, the purchaser or purchasers, or any other person or persons, by his or their direction, when the consideration or value of the interest or property conveyed (exclusive of the value of any lien or encumbrances remaining thereon at the time of sale) exceeds one hundred dollars, a tax at the rate of twenty-seven and one-half cents for each five hundred dollars or fractional part thereof. (Added Ord. 67-141, 1967).

SEC. 7-804. PERSON LIABLE.

Any tax imposed by this article shall be paid by any person who makes, signs, or issues any document or instrument subject to the tax, or for whose use or benefit the same is made, signed, or issued. (Added Ord. 67-141, 1967).

SEC. 7-805. EXCEPTION.

Any tax imposed by this article shall not apply to any instrument in writing given to secure a debt. (Added Ord. 67-141, 1967).

SEC. 7-806. EXEMPTION FOR PUBLIC AGENCIES.

The United States, or any agency or instrumentality thereof, any state or territory, or political subdivision thereof, or the District of Columbia shall not be liable for any tax imposed by this article with respect to any deed, instrument, or writing to which it is a party, but the tax may be collected by assessment from any other party liable therefor. (Added Ord. 67-141, 1967).

SEC. 7-807. INAPPLICABILITY TO BANKRUPTCY PROCEEDINGS.

Any tax imposed by this article shall not apply to the making, delivering, or filing of conveyances to make effective any plan of reorganization or adjustment:

(a) Confirmed under the Federal Bankruptcy Act, as amended;

(b) Approved in an equity receivership proceeding in a court involving a railroad corporation, as defined in subdivision (m) of Section 205 of Title 11 of the United States Code, as amended;

(c) Approved in an equity receivership proceeding in a court involving a corporation, as defined in subdivision (3) of Section 506 of Title 11 of the United States Code, as amended; or

(d) Whereby a mere change in identity, form, or place of organization is effected.

Subsection (a) to (d), inclusive, of this section shall only apply if the making, delivery, or filing of instruments of transfer or conveyances occurs within five years from the date of such confirmation, approval, or change. (Added Ord. 67-141, 1967).

SEC. 7-808. INAPPLICABILITY TO S. E. C. ORDERS.

Any tax imposed by this article shall not apply to the making or delivery of conveyances to make effective any order of the Securities and Exchange Commission, as defined in subsection (a) of Section 1083 of the Internal Revenue Code of 1954; but only if—

(a) The order of the Securities and Exchange Commission in obedience to which such conveyance is made recites that such conveyance is necessary or appropriate to effectuate the provisions of Section 79k of Title 15 of the United States Code, relating to the Public Utility Holding Company Act of 1935;

(b) Such order specifies the property which is ordered to be conveyed;

(c) Such conveyance is made in obedience to such order. (Added Ord. 67-141, 1967).

SEC. 7-809. INAPPLICABILITY TO INTRA-PARTNERSHIP TRANSFERS.

(a) In the case of any realty held by a partnership, no levy shall be imposed pursuant to this article by reason of any transfer of an interest in a partnership or otherwise, if—

(1) Such partnership (or another partnership) is considered a continuing partnership within the meaning of Section 708 of the Internal Revenue Code of 1954; and

(2) Such continuing partnership continues to hold the realty concerned.

(b) If there is a termination of any partnership within the meaning of Section 708 of the Internal Revenue Code of 1954, for purposes of this ordinance, such partnership shall be treated as having executed an instrument whereby there was conveyed, for fair market value (exclusive of the value of any lien or encumbrance remaining thereon), all realty held by such partnership at the time of such termination.

(c) Not more than one tax shall be imposed pursuant to this article by reason of a termination described in subsection (b), and any transfer pursuant thereto, with respect to the realty held by such partnership at the time of such termination. (Added Ord. 67-141, 1967).

SEC. 7-810. COUNTY RECORDER TO ADMINISTER TAX.

The County Recorder shall administer this ordinance in conformity with the provisions of Part 6.7 of Division 2 of the Revenue and Taxation Code and the provisions of any county ordinance adopted pursuant thereto. (Added Ord. 67-141, 1967).

SEC. 7-811. CLAIMS FOR REFUND.

Claims for refund of taxes imposed by this article shall be governed by the provisions of Chapter 5 (commencing with Section 5096) of Part 9 of Division 1 of the Revenue and Taxation Code of the State of California. (Added Ord. 67-141, 1967).

ARTICLE 9 FISCAL ADMINISTRATION

Sec. 7-901. Treasurer.
Sec. 7-902. Rules and Regulations.
Sec. 7-903. Processing of Claims Against the City.
Sec. 7-904. Petty Cash Fund.
Sec. 7-905. Refunds.
Sec. 7-906. Types of Refunds. Manner of Presentation of Demand for Refund. Payment.
Sec. 7-907. Refunds by City.
Sec. 7-908. Refunds Received by City.
Sec. 7-909. Mistakes.
Sec. 7-910. Procedure for Collection, Compromise, and Write-Off of Claims of the City Against Others.
Sec. 7-911. Returned Checks.
Sec. 7-912. Qualification of Applicants for City Financing.

SEC. 7-901. TREASURER.

On and after July 1, 1958, the Treasurer of the city shall receive on behalf of the city all moneys collected by the city and retain the same in his custody to the order of said city. The Controller shall be ex-officio treasurer of the city. (Rep. and Added Ord. 6262, 1963, based on former Sec. 2-1224).

SEC. 7-902. RULES AND REGULATIONS.

The Controller may make such rules and regulations as are not inconsistent with the provisions of this article as may be necessary or desirable to aid in the administration or enforcement of the provisions of this article. (Rep. and Added Ord. 6262, 1963, based on former Sec. 2-1225; Am. Ord. 70-3, 1970).

SEC. 7-903. PROCESSING OF CLAIMS AGAINST THE CITY.

(a) Claims against the city shall be in writing, verified by the claimant or his or her guardian, conservator, executor or administrator and filed with the Risk/Safety Manager of the city. All claims shall be filed within one year after the accrual of the cause of action, unless a shorter period is provided by applicable law. The Risk/Safety Manager, in consultation with the City Attorney, shall evaluate the sufficiency and form of all such claims and give notices relative to any deficiency thereof to the claimant. No claim may be filed on behalf of a class of persons unless verified by every class member. All claims shall contain the information required by California Government Code section 910. The Risk/Safety Manager shall have all such claims investigated, and shall prepare an investigative report and a recommendation relating to each such claim, in consultation and cooperation with the City Attorney. Claims against the city for money or damages which are excepted by Section 905 from Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of the Government Code, and which are not governed by any other statutes or regulations expressly relating thereto, shall be governed by the claims procedure prescribed in this Article. All claims against the city, including claims under the Revenue and Taxation Code or their statute prescribing procedures for the refund, rebate, exemption, cancellation, amendment, modifica-

tion or adjustment of a tax, assessment, fee or charge or any portion thereof, or any penalties, costs or charges related thereto; and claims by the State or by a State Department or agency or by another public entity shall be presented and acted upon in accordance with this Article as a prerequisite to suit thereon.

(b) All claims excepted by Government Code Section 905 shall be presented within the time, and in the manner prescribed by Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of the Government Code for the claims to which that part applies, as those provisions now exist or are amended and as provided by this Article.

(c) The Risk/Safety Manager may deny any claim including a claim in litigation amounting to fifty thousand dollars ($50,000.00) or less, or may, with the concurrence of the Controller or his designee, approve for payment any claim or pending litigation amounting to twenty-five thousand dollars ($25,000.00) or less, or compromise for twenty-five thousand dollars ($25,000.00) or less any claim. "Pending litigation," for purposes of this section 7-903, shall mean any action, proceeding, or cause pending in any court of record or before anybody, official, or agency, including (without limitation), any administrative proceeding or special proceeding, provided that pending litigation shall not include a criminal proceeding.

(d) The Risk/Safety Manager shall forward any claim not disposed of pursuant to subsection (c) of this section to the Chief Administrative Officer, and shall include therewith an investigative report and recommendation. The Chief Administrative Officer may, with the concurrence of the City Attorney, deny any claim amounting to five hundred thousand dollars ($500,000.00) or less, approve for payment any claim or payment of pending litigation amounting to fifty thousand dollars ($50,000.00) or less, or compromise any claim or settlement of pending litigation amounting to fifty thousand dollars ($50,000.00) or less. Claims for benefits under the Workers' Compensation statutes are "claims" for purposes of settlement under this subsection. The Chief Administrative Officer or his/her designee, with the concurrence of the City Attorney, shall have authority to settle Workers' Compensation claims where the amount in dispute does not exceed a claimed difference of one hundred thousand dollars ($100,000) between the parties, and where the total amount or value of the settlement does not exceed two hundred fifty thousand dollars ($250,000). The Chief Administrative Officer shall return any claim which has been approved, or compromised or denied by him, together with his and the City Attorney's decisions relative thereto, to the Risk/Safety Manager who shall be responsible for immediately notifying the claimant of such decision and expediting the payment of any claim which has been approved or compromised.

(e) For all claims not disposed of pursuant to subsection (c) or (d) of this section, the City Attorney shall prepare and submit, as soon as possible, a report to the Council either in open session or in closed session, at the City Attorney's election, together with a recommendation that such claim be approved, compromised, or denied. The City Attorney shall, following the decision of Council, return the claim file to the Risk/Safety Manager attaching thereto a memorandum indicating the Council's decision in the matter. The Risk/Safety Manager shall thereupon notify the claimant, in writing, of the decision and expedite payment of any claim which has been approved or compromised.

(f) Notwithstanding the above, the Risk/Safety Manager shall notify and send copies of all claims which are determined to be covered by insurance to the insurance carrier which provides coverage to the city, and shall be the city's liaison with such carriers for the purpose of any claim involvement.

(g) The Chief Administrative Officer and Controller may delegate their respective responsibilities set forth in Section 7-903 and Section 7-910 to any staff member of their respective offices or to the Risk/Safety Manager. The City Attorney may delegate the responsibilities set forth in this article to an attorney in the City Attorney's Office.

(h) The procedure prescribed and the regulations and rules established by or under this Article do not require a shorter time for the presentation of any claim than the time provided in Government Code Section 911.2. The procedure prescribed under this Article or any rules promulgated thereunder do not require a longer time for the taking of action upon any claim than the time provided in Government Code Section 912.4.

(i) It is the intent of the Council in adopting this ordinance to extend as broadly as possible under the law the requirement that a claim be presented to the city as a pre-requisite to the bringing of any action against the city, including, but not limited to, actions arising out of or relating to contracts. As authorized under California Government Code Section 935, it is the intent of the Council that all claims for money or damages which are otherwise excepted by Section 905 of the California Government Code be filed with the city's Risk/Safety Manager prior to the bringing of any suit.

(j) The Chief Administrative Officer may adopt any and all regulations (and prescribe the form of any required claims and notices, to the extent allowed by the Government Claims Act) necessary or desirable to implement the provisions of this section.

(k) The procedures called for by this section or any enabling regulations shall apply retroactively to previously accrued claims.
(Rep. and Added Ord. 6262, 1963, based on former Sec. 2-1515.1; Am. Ord. 70-95, 1971; Am. Ord. 72-36, 1972; Am. Ord. 75-94, § 1, eff. 10-5-75; Am. Ord. 77-106, § 1, eff. 10-14-77; Am. Ord. 89-121, § 1, eff. 11-10-89; Am. Ord. 92-8, §§ 1, 2, eff. 3-6-92; Am. Ord. 2000-13, § 1, eff. 3-3-00; Am. Ord. 2004-137, § 1, eff. 1-25-05; Am. Ord. 2014-9, §§ 1, 2, eff. 3-22-14).

SEC. 7-904. PETTY CASH FUND.

(a) There is hereby created a revolving fund for the city to be known as the Petty Cash Fund.

(b) From the moneys appropriated to this fund, the Controller shall distribute such amounts as he deems necessary or convenient to various departments within the city to be used for the following purposes, and no other: making petty cash expenditures, making change, making properly authorized refunds, redeeming returned checks, and advancing travel and subsistence costs.

(c) All expenditures from this fund shall be repaid from regularly budgeted accounts in accordance with established procedures.
(Rep. and Added Ord. 6262, 1963, based on former Sec. 2-1210.1; Am. Ord. 6329, 1963).

SEC. 7-905. REFUNDS.

Whenever any money is received by the city and no provision is made by any resolution, ordinance, or statute for the claiming or allowing of any refund thereof, such money may be refunded in whole or in part as provided in this article and not otherwise.
(Added Ord. 6566, 1965).

SEC. 7-906. TYPES OF REFUNDS, MANNER OF PRESENTATION OF DEMAND FOR REFUND, AND PAYMENT OF REFUNDS.

Refunds may be allowed according to the following conditions:

(a) **Security Deposits.** Deposits and money paid to the city to secure a promise of the payor may be returned directly to the payor, or his agent, upon proof of the fulfillment of the purpose of the deposit or the promise secured. A receipt explaining the transaction, on a form approved by the City Attorney, shall be obtained from and signed by the payor or his agent.

(b) **Mistake of Law.** When the money was either paid by the demandant or received by the city through mistake as to the legal necessity for making the payment, refund thereof may be made upon a demand for refund, on a form prescribed by the Controller, made within one year from the date of receipt by the city of the money to be refunded. The demand shall be promptly transmitted to the head of the department involved for his recommendation and his statement of the facts upon which the recommendation is based. The demand and recommendation shall be presented to the City Attorney for his decision thereon.

(c) **Mistake of Fact.** When the money was either paid by the demandant or received by the city because of a mistake of fact when such payment or receipt would not have been made if such mistake had not been made, then refund thereof may be made upon a demand for refund, on a form prescribed by the Controller, made within one year from the date of receipt by the city of the money to be refunded, provided that if the mistake was wholly or partly the city's and the mistake was induced by an act or statement of the demandant, or if the mistake was wholly the demandant's and the city has made an investigation, inspection or examination, or done any similar work or rendered services, the head of the department, division or bureau may ascertain the value or cost of such and order it deducted from the amount to be refunded. His determination shall be final when approved by the Controller but there shall be added thereto the amount designated for handling charges in the Master Fee Resolution.

(d) **Failure to Exercise Permit, No City Services.** When the applicant for any license, permit or service has not commenced or engaged in the business or occupation, performed any act for which the license or permit was required, or received any of such service, and where, in the case of any such license or permit,

(1) The city has not made any investigation, inspection or examination, or done any similar work, whether or not required or contemplated by law, on account of the filing of the application, and

(2) The license or permit, except a building, electrical or plumbing permit, has not expired prior to the date on which the demand for refund is made, and in the case of a building, electrical or plumbing permit, one year has not passed since the date of issuance, and any issued license or permit is submitted when the demand for refund is made or, in lieu thereof, there is attached to the demand for refund the declaration of the license or permit holder, under penalty of perjury, that the license or permit has been lost or destroyed, then the money, less the amount designated for handling charges in the Master Fee Resolution, may be refunded upon demand therefor on a form prescribed by the Controller and upon which is entered the approval of the head of the department which was to administer the license, permit or service.

(e) **Failure to Exercise Permit, City Services Rendered.** When money has been paid under the circumstances described in subsection (d) above but when the city has made an investigation, inspection or examination, or done any similar work or rendered services, the head of the department, division or bureau must ascertain the value or cost of such, and order it deducted from the amount to be refunded. His determination shall be final when approved by the Controller but there shall be added thereto the amount designated for handling charges in the Master Fee Resolution.

(f) **Approval of Controller; No Application to Taxes.** The calculations of amounts to be refunded or deducted from refunds under this section shall be subject to the approval of the Controller. This section shall not apply to any business tax or other tax imposed by the city.

(Added Ord. 6566, 1965; Am. Ord. 80-115, § 9, eff. 8-8-80).

SEC. 7-907. REFUNDS BY CITY.

Whenever revenue received by the city is credited to an account, and it is to be repaid to the payor under applicable refund procedures the Controller shall debit such account by issuing a warrant to such payor for such refund.

(Added Ord. 67-32, 1967).

SEC. 7-908. REFUNDS RECEIVED BY CITY.

Whenever a warrant has been issued, based upon a budget appropriation, and a refund of all or any portion thereof is received by the city within the fiscal year of such appropriation, the amount of such refund may be credited by the Controller to the appropriation upon which the warrant was drawn.
(Added Ord. 67-32, 1967).

SEC. 7-909. MISTAKES.

Whenever revenue is received by the city, or an encumbrance is made upon appropriation, and by mistake the wrong account is either credited or debited, the Controller shall correct such mistake by such debits or credits as are necessary to properly reflect the transaction.
(Added Ord. 67-32, 1967).

SEC. 7-910. PROCEDURE FOR COLLECTION, COMPROMISE AND WRITE-OFF OF CLAIMS OF THE CITY AGAINST OTHERS.

Claims of the city against others shall be handled according to the following procedures.

(a) **Procedure by Controller.**

(1) The Controller is authorized to pursue collection of any claims of the city against others.

(2) The Controller may, in furtherance of such claims collection:

(i) Accept a promissory note to repay the claim over a period of time;

(ii) File a Small Claims Court action to secure a judgment, when the amount of the claim does not exceed the Small Claims Court jurisdictional limit; or

(iii) Assign the claim, promissory note, or judgment to a collection agency.

(3) When the Controller determines it is in the best interest of the city to do so, considering the cost of collection and the merits of the claim, he may:

(i) Accept a compromise settlement and write off the balance of the claim as uncollectible, where the amount of the write-off does not exceed the Small Claims Court jurisdictional limit;

(ii) File an action in Small Claims Court and write off any amount in excess of such court's jurisdiction, where the amount of the write-off does not exceed the Small Claims Court jurisdictional limit; or

(iii) Write off the claim in full where the amount of the write-off does not exceed the Small Claims Court jurisdictional limit.

(4) Any claim which cannot be collected in full or disposed of in accordance with this subsection (a) shall be sent to the city attorney's office for collection.

(b) **Procedure by City Attorney.**

(1) The City Attorney shall pursue collection and may, in furtherance of such collection:

(i) Accept a promissory note to repay the claim over a period of time;

(ii) File an action in the appropriate court to secure a judgment; or

(iii) Assign the claim, promissory note, or judgment to a collection agency.

(2) When the City Attorney determines it is in the best interest of the city to do so, considering the cost of collection and the merits of the claim, he or she may:

(i) Authorize the Controller to accept a compromise settlement and write off the balance of the claim as uncollectible, where the amount of the write-off does not exceed fifteen thousand dollars ($15,000.00);

(ii) Authorize the Controller to file an action in Small Claims Court and write off any amount in excess of such court's jurisdiction, where the amount of the write-off does not exceed fifteen thousand dollars ($15,000.00); or

(iii) Authorize the Controller to write off the claim in full where the amount of the write-off does not exceed fifteen thousand dollars ($15,000.00).

(3) For claims in excess of fifteen thousand dollars ($15,000), when the City Attorney determines it is in the best interest of the City to accept a compromise settlement of the claim and write off the balance as uncollectible, or to write off the claim in full as uncollectible, he or she shall:

(i) Submit the matter to the Chief Administrative Officer for approval where the amount of the write-off is up to fifty thousand dollars ($50,000);

(ii) In the case of code enforcement fines, penalties, abatement costs, attorney fees, interest, and liens, in exchange for obtaining a compliance agreement, the City Attorney shall have the authority to write-off up to one hundred thousand dollars ($100,000);

(iii) In the case of third-party subrogation cases relating to workers' compensation claims and/or property reimbursements, submit the matter to the Chief Administrative Officer for approval where the amount of write-off of workers' compensation costs and property damage is up to one hundred fifty thousand dollars ($150.000).

(iv) Submit the matter to the Council for approval where the amount of the write-off, other than as provided in subsections (ii) and (iii) above, exceeds fifty thousand dollars ($50,000.00).

(4) In any instance in which a write-off is authorized under this Section, the authority shall also include entering into Agreements compromising the claim or obligation on terms that are deemed to be in the best interests of the City.

(Added Ord. 67-99, 1967; Am. Ord. 79-66, § 1, eff. 5-25-79; Am. Ord. 92-8, § 3, eff. 3-6-92; Am. Ord. 2014-9, § 3, eff. 3-22-14; Am. Ord. 2017-66, § 1, eff. 1-18-18; Am. Ord. 2019-019, § 3, eff. 9-19-19).

SEC. 7-911. RETURNED CHECKS.

If payment of an amount due the city is tendered by a check or other commercial paper which fails to clear through the banks and is returned to the Finance Department, the service charge designated in the Master Fee Resolution shall be assessed. In addition, the Controller may refuse to receive personal checks from any payor who has previously made payment by a check which was returned because of insufficient funds.
(Added Ord. 70-3, 1970; Am. Ord. 78-83, § 1, eff. 6-9-78; Am. Ord. 80-115, § 10, eff. 8-8-80).

SEC. 7-912. QUALIFICATIONS OF APPLICANTS FOR CITY FINANCING.

(a) The City Manager or his designee shall ascertain and make available to the Council information with respect to the qualifications and financial status of all applicants seeking city financial assistance or funding for private projects pursuant to the city's economic development program, whether such assistance consists of loans, grants, bond issuance, or otherwise. In order to comply with this requirement, and to safeguard city funds and protect the city's bond rating, the City Manager or his designee shall cause an investigation to be made of the facts stated in each application for city financing. Conviction (including pleas of guilty and nolo contendere) of any felony or misdemeanor involving moral turpitude shall constitute prima facie grounds for denying financial assistance to an applicant, except that such conviction may be disregarded if it is determined that mitigating circumstances exist. For purposes of this section, the term "applicant" includes but is not limited to an individual in a sole proprietorship, all general partners in a partnership, any person holding 10% or more of the voting stock in a corporation, and in cases where the partner or stockholder is other than an individual, the individuals who are the beneficial owners of the stock or partnership interest.

(b) In order to further the objectives set forth in subsection (a) and as authorized by California Penal Code Sections 11105(b) and 13300(b)(10), the City Manager or his designee is hereby authorized to have access to and utilize summary criminal history information on file with the State of California Department of Justice and/or local law enforcement agencies when it is necessary for such records to be utilized to fulfill the certification duties required in this section.

(c) Notwithstanding subsection (a) and (b) of this section and in addition thereto, Council may establish by resolution policies and procedures to implement this section and/or to provide for due diligence and oversight regarding private projects which seek public financing or other public assistance.
(Added Ord. 85-89, § 1, eff. 7-12-85; Am. Ord. 2009-22, § 1, eff. 7-12-09).

ARTICLE 10 BUSINESS LICENSES—GENERAL PROVISIONS

Sec. 7-1001. Nature of License.
Sec. 7-1002. License Procurement and Compliance with Regulation.
Sec. 7-1003. License Fee as Debt.
Sec. 7-1004. Issuance of Licenses.
Sec. 7-1005. Payment of License Fees.
Sec. 7-1006. Posting and Exhibition of Licenses.
Sec. 7-1007. License Inspectors.
Sec. 7-1008. Information in License Application.
Sec. 7-1009. Confidential Character of Information Obtained; Disclosure Unlawful.
Sec. 7-1010. Calculation of License Fees.
Sec. 7-1011. Penalties and Interest.
Sec. 7-1012. Deposit of License Moneys Collected.
Sec. 7-1013. Deficiency Determinations.
Sec. 7-1014. Redeterminations.
Sec. 7-1015. Records for Examination by Department of Finance.
Sec. 7-1016. Rules and Regulations.
Sec. 7-1017. Refunds.

SEC. 7-1001. NATURE OF LICENSE.

The term license as used in this chapter shall not be construed to mean a permit. The fees prescribed by this chapter constitute a tax for revenue purposes, and are not regulatory permit fees. The payment of a license tax required by the provisions of this chapter and its acceptance by the city, and the issuance of such license to any person, shall not entitle the holder thereof to carry on any business unless he has complied with all of the requirements of this chapter and all other applicable provisions of this Code, or to carry on any business in any building or on any premises designated in such license in the event that such building or premises are situated in a zone or locality in which the conduct of such business is in violation of this Code.
(Orig. Ord. 4603).

SEC. 7-1002. LICENSE PROCUREMENT AND COMPLIANCE WITH REGULATION.

Except as otherwise expressly provided in this chapter, no person, whether as principal or agent, clerk or employee either for himself or for any other person or for any body corporate, or as an officer of any corporation, or otherwise, shall commence or carry on any trade, calling, profession or occupation in the city, in this chapter specified, without first having procured a license so to do, and without complying with any and all regulations of such trade, calling, profession or occupation contained in this chapter.
(Orig. Ord. 4603; Am. Ord. 2008-13, § 1, eff. 3-14-08).

SEC. 7-1003. LICENSE FEE AS DEBT.

(a) Any person carrying on any trade, calling, profession or occupation without having a license to do so shall be liable for the amount of the license fee imposed by this chapter on such trade, calling, profession or occupation. The amount of such license fee, including any penalty or interest thereon, shall be a debt owed to the city.

(b) The City Attorney may file suit in the name of the city, in any court of competent jurisdiction, for any unpaid license fee imposed by this chapter, within three years from the delinquency date thereof.

(c) The conviction and punishment of any person for transacting any trade, calling, profession or occupation without a license shall not excuse or exempt such person from the payment of any license fee due and unpaid at the time of such violation of the provisions of this chapter. (Orig. Ord. 4603; Am. Ord. 80-72, § 1, eff. 6-6-80).

SEC. 7-1004. ISSUANCE OF LICENSES.

(a) Each applicant for a license shall properly fill in an application in such form as the Controller may prescribe.

(b) A license, in such form as the Controller may prescribe, shall be issued on payment of the fee prescribed in this chapter and shall be in full force and effect until:

(1) Licensee fails to make payments as required by this Code;

(2) Revoked by the Controller;

(3) Business changes address;

(4) Business is discontinued;

(5) Business ownership changes.

(c) A licensee with no permanent business address, such as a peddler, shall be issued a license each license period, with such license showing the expiration date.

(d) No license granted or issued under any provision of this chapter shall be in any manner transferred or assigned, or shall authorize any person, other than is thereon mentioned or named, to do business without the express consent of the Controller.

(e) In no case shall any mistake made by the Controller in stating the amount of the license fee prevent or prejudice the collection of what shall be actually due from anyone carrying on any trade, calling, profession or occupation subject to a license under this chapter.

(f) No license shall be issued to any holder of a delinquent license until both the license fee and penalty shall have been paid. (Orig. Ord. 4603; Am. Ord. 5308, 1958).

SEC. 7-1005. PAYMENT OF LICENSE FEES.

(a) All license fees shall be paid in advance at the office of the Controller. Where a licensee conducts several branches or places of business of the same class, a separate license shall be secured covering each branch of such business.

(b) The monthly license fees in this chapter provided shall be due and payable on the first day of each month, in advance, from all persons who have for the previous month been licensed to carry on the same trade, calling, profession or occupation, and from all persons who have not

been licensed for the previous month for the same trade, calling, profession or occupation, the license fee shall be due and payable, and must be procured by such persons before commencing to carry on such trade, calling, profession or occupation.

(c) The quarterly license fees in this chapter provided shall be due and payable, in advance, on the first days of July, October, January and April of each year, and all such licenses shall expire with the last days of June, September, December and March of each year.

(d) The weekly license fees in this chapter provided shall be due and payable on Monday of each week in advance.

(e) The daily license fees in this chapter provided shall be due and payable each day in advance.

(f) The semi-annual license fees in this chapter provided shall be due and payable on the first day of July and the first day of January of each year.

(g) The annual license fees in this chapter provided shall be due and payable on the first day of July of each year.

(h) No greater or less amount of money shall be charged or received for any license than is provided in this chapter.

(i) The Controller, if he deems it necessary in order to ensure payment or facilitate collection of business license fees, may require returns and payment of such fees for other than the time periods specified in this chapter. (Orig. Ord. 4603; Am. Ord. 5308, 1958; Am. Ord. 80-72, § 2, eff. 6-6-80).

SEC. 7-1006. POSTING AND EXHIBITION OF LICENSES.

Every person having a license under the provisions of this chapter, and carrying on a trade, calling, profession or occupation at a fixed place of business, shall keep such license posted and exhibited while in force in some conspicuous place where such business is being conducted. Every person having such a license, and not having a fixed place of business, shall carry such license with him at all times while carrying on the trade, calling, profession or occupation for which the same was granted. Every person having a license under the provisions of this chapter shall produce and exhibit the same whenever requested to do so by any police officer, or by any person authorized to issue, or inspect licenses for the city, or to collect license fees for the city. (Orig. Ord. 4603).

SEC. 7-1007. LICENSE INSPECTORS.

License inspectors may enter free of charge, at any time, any place of business for which a license is required by this chapter and demand the exhibition of any such license by any person engaged or employed in the transaction of such business. License inspectors shall also have the power to collect and receive money in payment of license fees. (Orig. Ord. 4603).

SEC. 7-1008. INFORMATION IN LICENSE APPLICATION.

(a) No license shall be issued except on the filing of the application herein provided for; and in the event it shall appear that incorrect information is contained in such application and that the license fee collected was not in the correct amount, the city shall be entitled to collect any unpaid balance of such license fee or if any licensee has overpaid, to refund the excess amount collected.

(b) (Repealed).

(c) No statements in the application shall be conclusive upon the city, or upon any officer thereof, as to the matters therein set forth, and the same shall not prejudice the right of the city to examine or audit the books or accounts of any person subject to license or to recover any amount that may be ascertained to be due, in case such statement should be found to be incorrect. If any person hereby required to make any such statement shall fail to do so, such person shall be required to pay the license fee at such rate as the Controller may, after investigation, fix as the proper rate to be paid by such person, and shall also be deemed guilty of a violation of this Code. (Orig. Ord. 4603; Am. Ord. 5308, 1958; Am. Ord. 6353, 1963).

SEC. 7-1009. CONFIDENTIAL CHARACTER OF INFORMATION OBTAINED — DISCLOSURE UNLAWFUL.

It shall be unlawful for the Controller or any person having an administrative duty under the provisions of this article to make known in any manner whatever the business affairs, operations, or information obtained by an investigation of records and equipment of any person required to obtain a business tax certificate, or pay a business tax, or any other person visited or examined in the discharge of official duty, or the amount or source of income, profits, losses, expenditures, or any particular thereof, set forth in any statement or application, or to permit any statement or application, or copy of either, or any book containing any abstract or particulars thereof to be seen or examined by any person. Provided that nothing in this subsection shall be construed to prevent:

(1) The disclosure to, or the examination of records and equipment by another city official, employee, or agent for collection of taxes for the sole purpose of administering or enforcing any provisions of this article; or collecting taxes imposed hereunder,

(2) The disclosure of information to, or the examination of records by, federal, or state officials, or the tax officials of another city, or county, or city and county, if a reciprocal arrangement exists; or to a grand jury or court of law, upon subpoena;

(3) The disclosure of information and results of examination of records of particular taxpayers, or relating to particular taxpayers, to a court of law in a proceeding brought to determine the existence or amount of any business tax liability of the particular taxpayers to the city;

(4) The disclosure after the filing of a written request to that effect, to the taxpayer himself, or to his successors, receivers, trustees, executors, administrators, assignees, and guarantors, if directly interested, of information as to the items included in the measure of any paid tax,

any unpaid tax or amounts of tax required to be collected, interest, and penalties; further provided, however, that the City Attorney approves each such disclosure and that the Controller may refuse to make any disclosure referred to in this paragraph when in his opinion the public interest would suffer thereby;

(5) The disclosure of the names and addresses of persons to whom registration certificates have been issued, the names and addresses of officers of corporations and members of partnerships to whom registration certificates have been issued, and the general type or nature of their business;

(6) The disclosure to the Council by way of public meeting or otherwise of such information as may be necessary in order to permit it to be fully advised as to the facts when a taxpayer files a claim for refund of business taxes, or submits an offer of compromise with regard to a claim asserted against him by the city for business taxes, or when acting upon any other matter;

(7) The disclosure of general statistics regarding taxes collected or business done in the city. (Added Ord. 6353, 1963).

SEC. 7-1010. CALCULATION OF LICENSE FEES.

(a) When the license fee based on gross receipts is payable quarterly, the license fee for the final quarter during which a business is in operation shall be ascertained in the following manner:

(1) If the licensee submits written notification prior to payment of the license fee for the quarter in which business operation is terminated, stating the final date the business will be in operation, the final amount due shall be based on the fee schedule for the gross receipts of the previous quarter reduced by one-third (⅓) for each full month of the final quarter that the licensee will not operate the business.

(2) If the full fee has been paid for a quarter in which business operation is terminated, a refund will be made as follows if a written demand from the licensee, stating the date business operation was terminated, is made within three years from the date of receipt by the City of the money to be refunded. One-third (⅓) of the total fee paid for the quarter shall be refunded for each full month of the final quarter that the licensee did not operate the business.

(b) No provision of this section shall affect the application and collection of any penalty or penalties due because of late payment of license fees. (Orig. Ord. 4603; Am. Ord. 80-83, § 1, eff. 6-27-80; Am. Ord. 99-64, § 1, eff. 12-9-99).

SEC. 7-1011. PENALTIES AND INTEREST.

(a) **Penalties on Deficiency Determinations Made Because of Underpayment.**

(1) The Controller shall add the penalty designated in the Master Fee Resolution, computed as a percentage of the amount of the additional assessment, to any additional

assessment imposed as a result of a deficiency determination made because of underpayment if any part of the deficiency is due to negligent or intentional disregard of any provision of this chapter.

(2) The Controller shall add the penalty designated in the Master Fee Resolution, computed as a percentage of the amount of the additional assessment, to any additional assessment imposed as a result of a deficiency determination made because of underpayment if any part of the deficiency is due to fraud.

(b) **Penalties on Deficiency Determinations Made Because of Failure to File.**

(1) The Controller shall add the penalty designated in the Master Fee Resolution, computed as a percentage of the amount of the unpaid license fees, to a deficiency determination made because of failure to file a return if such failure to file is due to negligent disregard of any provision of this chapter.

(2) The Controller shall add the penalty designated in the Master Fee Resolution, computed as a percentage of the amount of the unpaid license fees, to a deficiency determination made because of failure to file a return if the person against whom the deficiency determination is made has previously held a business license in the City of Fresno, or if such failure is due to intentional disregard of any provision of this chapter.

(3) The Controller shall add the penalty designated in the Master Fee Resolution, computed as a percentage of the amount of the unpaid license fees, to a deficiency determination made because of failure to file a return if such failure is due to fraud.

(c) **Penalties for Delinquent Payment of Business License Fees and Deficiency Determinations.**

(1) The Controller shall, immediately after one calendar month from the date that license fees, including deficiency determinations, are payable, add to all license fees remaining unpaid the delinquency penalty designated in the Master Fee Resolution, computed as a percentage of the amount of such delinquent license fees, excluding penalties and interest.

(2) The Controller shall, immediately after two calendar months from the date that license fees, including deficiency determinations, are payable, add to all license fees still remaining unpaid the additional delinquency penalty designated in the Master Fee Resolution, computed as a percentage of the amount of such delinquent license fees, excluding penalties and interest.

(d) **Interest on Deficiency Determinations.** In addition to the penalty or penalties imposed, interest at the rate of three-quarters of one per cent per month, or fraction thereof, shall be paid on the amount of the license fees, exclusive of penalties, from the last day of the first month of the license period or periods for which a deficiency determination is imposed until the date of payment.

(e) **Extensions of Time to Make Payment.** Prior to the due date, the Controller may extend, for good cause, for a period not to exceed one calendar month, the time to make any

return or payment of fees. No further extension shall be granted. Any person to whom an extension is granted who makes a return and pays the fees within the period of extension shall not pay any penalty on the amount of the fees, but shall pay, in addition to the fees, interest at the rate of three-quarters of one per cent per month, or fraction thereof, on the unpaid balance for the period of such extension to the time of return and payment.

(f) **Holidays.** In the event the last day of the calendar month falls on a Saturday, Sunday or legal holiday, license fees may be paid without penalty on the first succeeding business day. Thereafter, the penalty, penalties or interest provided in this section shall be added. (Orig. Ord. 4603; Am. Ord. 5308, 1958; Am. Ord. 80-72, § 3, eff. 6-6-80).

SEC. 7-1012. DEPOSIT OF LICENSE MONEYS COLLECTED.

The Controller shall deposit daily with the City Treasurer all moneys collected by him for license fees paid, and shall, on or before the fifteenth day of each month, report the amount thereof to the Council. (Orig. Ord. 4603; Am. Ord. 5308, 1958; Am. Ord. 5311, 1958; Am. Ord. 80-115, §§ 20—22, eff. 8-8-80).

SEC. 7-1013. DEFICIENCY DETERMINATIONS.

(a) If the Controller is not satisfied with the return or returns of business license fees, or the amount of the fees paid to the city by any person, he may compute and determine the amount required to be paid upon the basis of the facts contained in the return or returns or upon the basis of any information within his possession or that may come into his possession. One or more deficiency determinations may be made of the amount due for one or more than one period. The amount of each deficiency determination is immediately due and payable. Each determination shall become final and delinquent one calendar month after notice thereof as herein provided.

(b) In making a determination, the Controller shall offset overpayments previously made, if any, together with interest on the overpayments, against any underpayment for a subsequent period or periods, or against penalties and interest on the underpayments. The interest on underpayments and overpayments shall be computed in the manner set forth in Section 7-1011 and Section 7-1017.

(c) The Controller shall give written notice of a deficiency determination to each person against whom a determination is made. The notice may be served personally or by mail. In case of service by mail of any notice required by this chapter, the service is complete at the time of deposit in the United States Post Office.

(d) Except in the case of fraud, intent to evade this chapter or authorized rules and regulations, or failure to make a return, every deficiency determination shall be made and notice thereof mailed within three years after the last day of the month following the close of the license period for which the amount is determined or within three years after the return is filed, whichever period expires the later.

(e) If any person fails or refuses to make, within the time provided in this chapter, any return and payment of said fees or any portion thereof required by this chapter or makes a fraudulent return or otherwise wilfully attempts to evade this chapter, the Controller shall proceed in such manner as he may deem best to obtain facts and information on which to base his estimate of the fees due. As soon as the Controller procures facts and information upon which to base the assessment of any fee imposed by this chapter, he shall determine and assess against such person the fees, interest and penalties provided for by this chapter. When such a determination is made, the Controller shall give written notice of the amount so assessed. Such determination and notice shall be made and mailed within three years after discovery by the Controller of any fraud, intent to evade or failure to file return. The amount of each deficiency determination is immediately due and payable. Any determination shall become final and delinquent one calendar month after notice thereof as herein provided.

(f) If the Controller believes that the collection of any license fees will be jeopardized by delay, or if any determination will be jeopardized by delay, he shall thereupon make a determination of the fees due. The amount determined is immediately due and payable. If the amount specified in the determination is not paid within ten days after service of notice thereof upon the person against whom the determination is made, the amount becomes final and delinquent, and the delinquency penalty or penalties and the interest provided in Section 7-1011 shall attach to the amount of the fees, unless a petition for redetermination is filed within the ten days. (Orig. Ord. 4603; Am. Ord. 5247, 1958; Am. Ord. 80-72, § 4, eff. 6-6-80).

SEC. 7-1014. REDETERMINATIONS.

(a) Any person against whom a determination is made under Section 7-1013 or any person directly interested may petition for a redetermination within one calendar month after service of notice thereof; provided, however, that a petition for redetermination of a determination made under subsection (f) of Section 7-1013 shall be filed within ten days after service of notice thereof. If a petition for redetermination is not filed within the applicable period, the determination becomes final and delinquent at the expiration of the period.

(b) If a petition for redetermination is filed within the applicable period, the Controller shall reconsider the determination, and, if the person has so requested in his petition, shall grant the person an oral hearing and shall give him ten days' notice of the time and place of the hearing. The Controller may continue the hearing from time to time as may be necessary.

(c) The Controller may decrease or increase the amount of the determination before it becomes final but the amount may be increased only if a claim for the increase is asserted by the Controller at or before the hearing.

(d) The decision of the Controller upon a petition for redetermination becomes final and delinquent fifteen days after service upon the petitioner of notice thereof.

(e) No petition for redetermination shall be effective for any purpose unless at or before the filing thereof the amount found due in the original determination is paid, or a bond or other security satisfactory to the Controller is filed with him guaranteeing payment of any amount finally determined to be due. (Orig. Ord. 4603; Am. Ord. 80-72, § 5, eff. 6-6-80).

SEC. 7-1015. RECORDS FOR EXAMINATION BY DEPARTMENT OF FINANCE.

All sellers, consumers and holders of City of Fresno business licenses shall keep complete records of all business transactions, including sales, receipts, purchases and other expenditures, and shall retain all such records for examination by the Department of Finance of the City of Fresno. Such records shall be maintained for a period of at least three years. (Added Ord. 5081, 1957).

SEC. 7-1016. RULES AND REGULATIONS.

The Director may make such rules and regulations as are not inconsistent with the provisions of this article, as may be necessary or desirable to aid in the administration or enforcement of the provisions of this article. (Added Ord. 68-56, 1968).

SEC. 7-1017. REFUNDS.

(a) Whenever a business license fee has been paid to the city under a mistake of law or a mistake of fact as described in subsections (2) and (3) of Section 7-906, the fee shall be refunded when a demand for refund has been made on a form prescribed by the Controller. No refund shall be approved after three years from the date of receipt by the city of the money to be refunded.

(b) Interest shall be paid on the amount of any overpayment of license fees at the rate of three-quarters of one per cent per month, or fraction thereof, from the date of receipt by the city of the money to be refunded, but no refund or credit shall be made of any interest imposed upon the person making the overpayment with respect to the amount being refunded or credited. The interest shall be paid:

(1) In the case of a refund, to the last day of the calendar month following the date upon which the person making the overpayment, if he has not already filed a claim, is notified by the Controller that a claim may be filed or the date upon which the claim is approved by the Controller, whichever date is the earlier.

(2) In the case of a credit, to the same date as that to which interest is computed on the license fee or amount against which the credit is applied.

(c) If the Controller determines that any overpayment has been made intentionally or by reason of carelessness, he shall not allow any interest thereon. (Added Ord. 69-117, 1969; Am. Ord. 80-72, § 6, eff. 6-6-80).

ARTICLE 11 BUSINESS LICENSES—EXEMPTIONS

Sec. 7-1101. Exemptions for Disabled Veterans, Honorably Discharged or Honorably Relieved Veterans.
Sec. 7-1102. Exempt Business.
Sec. 7-1103. Organizations with Charitable Purposes.
Sec. 7-1104. Credit Union Corporations.
Sec. 7-1105. Garage Sales.
Sec. 7-1106. Sales by Growers or Producers of Ranch Products.
Sec. 7-1107. First Year of Operation.

SEC. 7-1101. EXEMPTIONS FOR DISABLED VETERANS, HONORABLY DISCHARGED OR HONORABLY RELIEVED VETERANS.

(a) Any honorably discharged or released soldier, sailor, marine, airmen or guardian of the United States or of the American Merchant Marine or of the Military Sea Transport Service, who served or shall serve in any war in which the United States has been or may be engaged; who is physically unable to obtain a livelihood by manual labor, and who is a qualified voter of this state, upon producing discharge documents and proof of disability, and is a qualified voter of this state, may distribute circulars and hawk, peddle, and vend any goods, wares or merchandise owned by said person, within the City of Fresno, except spirituous, malt, vinous or other intoxicating liquor, without payment of any license tax or fee whatsoever, and the Department of Finance shall issue to such soldier, sailor or marine of the United States or of the American Merchant Marine or of the Military Sea Transport Service, without cost, a license therefor for a period of thirty days with renewal privileges.

(b) A person who is honorably discharged or honorably relieved from the Armed Forces of the United States, and is a resident of the State of California, may distribute circulars, and hawk, peddle and vend any goods, wares, or merchandise owned by that person, except spiritous, malt, or vinous, or other intoxicating liquor, without payment of any business license fee, the City shall issue to that person, without cost, a license.

(c) A person who is honorably discharged or honorably relieved from the Armed Forces of the United States and is a resident of the State of California shall not be required to pay any business license fee for a business selling or providing service if the veteran is the sole proprietor of the business.

(d) A person who is honorably discharged or honorably relieved from the Armed Forces of the United States and is a resident of the State of California may have any business license fee or tax waived for the operation of a new business for the first one year of operation, and such waiver shall not be an amount exceeding one thousand dollars ($1000.00), if the veteran is the sole proprietor of the business; except for those businesses that sell alcohol, cannabis, or tobacco products shall be ineligible to receive any license tax fee waiver. This waiver shall be limited to a one time use per veteran for the duration of the veteran's lifetime.
(Orig. Ord. 4603; Am. Ord. 2025-021, § 1, eff. 7-18-25).

Editor's note—Ord. 2025-021, § 1, effective July 18, 2025, amended the title of § 7-1101 to read as herein set out. The former § 7-1101 title pertained to disabled veterans.

SEC. 7-1102. EXEMPT BUSINESS.

(a) Nothing in this chapter shall be construed as applying to any person conducting any business or occupation exempt from taxation or license by virtue of Sec. 14 of Art. XIII of the Constitution of the State of California, or the Constitution of the United States, nor shall it be construed to authorize any act prohibited by any law of California or by the provisions of this Code, or to authorize the conduct of any business for which a permit from the Council is required, until such permit is obtained.

(b) The provisions of this chapter shall not apply to commercial travelers or selling agents selling their goods to dealers for future deliveries.

(c) The provisions of this chapter shall not apply to the renting, letting or subletting of property by an individual to himself or to an entity wholly owned by him. (Orig. Ord. 4603; Am. Ord. 4962, 1956; Am. Ord. 5311, 1958; Am. Ord. 83-93, § 1, eff. 7-22-83).

SEC. 7-1103. ORGANIZATIONS WITH CHARITABLE PURPOSES.

The provisions of this chapter shall not be deemed or construed to require the payment of a license to conduct, manage or carry on any business, occupation or activity, or require the payment of any license fee from any institution or organization, which is conducted, managed or carried on wholly for the benefit of charitable purposes, or from which profit is not derived either directly or indirectly by any person; nor shall any license be required for the conducting of any entertainment, concert, exhibition or lecture on scientific, historical, literary, religious

or moral subjects, whenever the receipts of any such entertainment, concert, exhibition or lecture are to be appropriated to any church or school, or to any charitable, religious or benevolent purpose within the city; nor shall any license be required for the conducting of any entertainment, dance, concert, exhibition or lecture by any religious, charitable, fraternal, educational, military, state, county or municipal organization or association whenever the receipts of any such entertainment, dance, concert, exhibition or lecture are to be appropriated for the purposes and objects for which such association or organizations was formed, and from which profit is not derived, either directly or indirectly, by any person; provided, however, that nothing in this section contained shall be deemed to exempt any such institution or organization from complying with the provisions of this Code requiring such institution or organization to obtain a permit from the proper board or officer to conduct, manage or carry on any profession, trade, calling or occupation.
(Orig. Ord. 4603; Am. Ord. 5315, 1958).

SEC. 7-1104. CREDIT UNION CORPORATIONS.

The provisions of this chapter shall not apply to credit union corporations.
(Added Ord. 6220, 1963).

SEC. 7-1105. GARAGE SALES.

The provisions of this chapter shall not apply to garage sales conducted pursuant to Section 12-320 of this Code.
(Am. Ord. 79-184, § 2, eff. 12-14-79).

SEC. 7-1106. SALES BY GROWERS OR PRODUCERS OF RANCH PRODUCTS.

Any grower or producer of any articles of ranch products who grows or produces said products in the city shall be entitled to a license without fee unless the grower or producer sells said products from a produce stand on property located within the city. Any grower or producer qualified by the terms of this ordinance to claim a license fee exemption provided herein shall first file with the Controller an affidavit setting forth his name and address, the amount and variety of produce he proposes to sell, the place where said produce was grown or produced, and that such produce was grown or produced by him.
(Added Ord. 85-125, § 1, eff. 9-27-85).

SEC. 7-1107. FIRST YEAR OF OPERATION.

The license fee provisions of this chapter, excluding application processing fees, shall not apply to the first full year of operations of a newly established business beginning operation in the city of Fresno after January 1, 2000, provided that the business has complied with all filing requirements provided for by other sections of this chapter. A newly established business shall not be construed to mean the relocation, name change, or ownership change

of an existing business. This exemption does not apply to itinerant or transient businesses of any kind, including any temporary event, or to businesses whose premises are not otherwise permanently located within the city of Fresno.
(Added Ord. 99-64, § 1, eff. 12-9-99).

ARTICLE 12 BUSINESS LICENSES—LICENSE FEES

Sec. 7-1201. Establishment of License Fees.
Sec. 7-1202. License Fees Based Upon Sales.
Sec. 7-1203. Definition of Gross Receipts.
Sec. 7-1204. Rooming Houses.
Sec. 7-1205. Apartments, Flats and Courts.
Sec. 7-1206. Contractors.
Sec. 7-1207. Specific Businesses and Professions.
Sec. 7-1208. Alternate Fee.
Sec. 7-1209. Two or More Businesses.
Sec. 7-1210. Out-of-city Real Estate Brokers.
Sec. 7-1211. Other Specifically Licensed Occupations.
Sec. 7-1212. Brokers in Securities and Commodities.
Sec. 7-1213. Manager of Public Markets.
Sec. 7-1214. Transient Photographers.
Sec. 7-1215. Manager of Auction Sales.
Sec. 7-1216. Directory Salesman.
Sec. 7-1217. Manager of a Public Entertainment.
Sec. 7-1218. Circus Manager.
Sec. 7-1219. Agricultural Fairs.
Sec. 7-1220. Carnival Manager.
Sec. 7-1221. Reserved.
Sec. 7-1222. Reserved.
Sec. 7-1223. Pawnbrokers.
Sec. 7-1224. Supplier of Financing.
Sec. 7-1225. Manager of a Shooting Gallery.
Sec. 7-1226. Billboard Advertiser.
Sec. 7-1227. Handbill Advertiser.
Sec. 7-1228. General Advertiser.
Sec. 7-1229. House Mover.
Sec. 7-1230. Merchandise Peddlers.
Sec. 7-1231. Stock and Bond Peddlers.
Sec. 7-1232. General Solicitor.
Sec. 7-1233. Bootblacks.
Sec. 7-1234. Dance Manager.
Sec. 7-1235. Peddling in Connection with State Conventions.
Sec. 7-1236. Junk Dealers.
Sec. 7-1237. Reserved.
Sec. 7-1238. Reserved.
Sec. 7-1239. Itinerant Dealers Not Otherwise Provided For.
Sec. 7-1240. Transporting Passengers for Hire.
Sec. 7-1241. Paid Promoters for Charitable Activities Charging Admission.
Sec. 7-1242. Maintaining Regular Delivery Routes.
Sec. 7-1243. Stock and Produce Exchanges.
Sec. 7-1244. Water Suppliers.
Sec. 7-1245. Two or More Businesses—Same Location and Management.
Sec. 7-1246. Two or More Businesses—Same Location—Different Management.
Sec. 7-1247. Commercial Promoters.

Sec. 7-1248. Evidence of Doing Business.
Sec. 7-1249. Short-Term Rentals.

SEC. 7-1201. ESTABLISHMENT OF LICENSE FEES.

Business license fees shall be paid by every person conducting, carrying on or managing any business or profession within the City of Fresno. (Orig. Ord. 4603; Am. Ord. 80-115, § 23, eff. 8-8-80).

SEC. 7-1202. LICENSE FEES BASED UPON SALES.

(a) Every person conducting, carrying on or managing any business or profession, not otherwise specifically licensed by or exempted by other sections of this chapter, shall pay a quarterly license fee based on the applicable gross receipts schedule(s) designated in the Master Fee Resolution, whether retail, wholesale or both. License fees shall be based upon the total [gross] sales and service from business transactions within the city as recorded on the records of the business.

(b) The maximum retail and wholesale license fees shall escalate on November 1, 1990; and thereafter shall escalate annually, on July 1 of each year commencing on July 1, 1991, automatically without further action by this Council, by the percentage increase in the Consumer Price Index (Los Angeles-Anaheim-Riverside City Average for urban wage earners and clerical workers—all items, as published by the Bureau of Labor Statistics of the United States of America) between March of said year and March of the preceding year, whichever is greater, unless the Council shall determine prior to July 1 of any year that all or part of the increase shall be deferred.
(Orig. Ord. 4603; Am. Ord. 5247, 1958; Am. Ord. 5284, 1958; Am. Ord. 5358, 1958; Am. Ord. 5868, 1961; Am. Ord. 6645, 1965; Am. Ord. 68-110, 1968; Am. Ord. 69-58, 1969; Am. Ord. 75-80, § 1, eff. 8-31-75; Am. Ord. 80-115, § 24, eff. 8-8-80; Am. Ord. 90-119, § 1, eff. 10-30-90; Am. Ord. 2008-13, § 2, eff. 3-14-08).

SEC. 7-1203. DEFINITION OF GROSS RECEIPTS.

"Gross receipts" shall include the total of amounts actually received from sales and the total of amounts actually received for the performance of any act or service, of whatever nature it may be, for which a charge is made or credit allowed, whether or not such act or service is done as a part of or in connection with the sale of materials, goods, wares, or merchandise. Included in "gross receipts" shall be all receipts, cash, credits and property of any kind or nature, without any deduction therefrom on account of the cost of the property sold, the cost of the materials used, labor or service costs, interest paid or payable, or losses, or other expense whatsoever. Excluded from "gross receipts" shall be the following:

(a) Cash discounts allowed and taken on sales.

(b) Any tax collected from the consumer or purchaser and which is separately stated at time of sale.

(c) Such part of the sale price of property returned by purchasers upon rescission of the contract of sale as is refunded either in cash or by credit.

(d) Amounts collected for others where the business is acting as an agent or trustee to the extent that such amounts are paid to those for whom collected, provided the agent or trustee has furnished the Director with the names and addresses of the others and the amounts paid to them.

(e) Receipts of refundable deposits, except that refundable deposits forfeited and taken into income of the business shall not be excluded.

(f) As to a retail gasoline dealer, a portion of his receipts from the sale of motor vehicle fuels equal to the motor vehicle fuel license tax imposed by and previously paid under the provisions of Part 2 of Division 2 of the Revenue and Taxation Code of the State of California.

(g) As to a retail gasoline dealer, the special motor fuel tax imposed by Section 4041 of Title 26 of the United States Code if paid by the dealer or collected by him from the consumer or purchaser. (Added Ord. 68-110, 1968; Am. Ord. 80-71, § 1, eff. 6-6-80).

SEC. 7-1204. ROOMING HOUSES.

(a) For every person conducting, carrying on or managing the business of a lodging or rooming house consisting of four or more rooms available for rent, the license fee shall be determined by the retail gross receipts schedule designated in the Master Fee Resolution.

(b) If any person conducting, carrying on or managing a lodging or rooming house shall use or permit to be used such lodging or rooming house for the purpose of lewdness, assignation or prostitution, and shall be convicted for such offenses or any of them in any court of the State of California, then and in either event the license, as provided herein, for such lodging or rooming house shall be revoked and shall not hereafter be renewed for a period of one year from and after the date of the final judgment of such conviction. (Orig. Ord. 4603; Am. Ord. 80-115, § 25, eff. 8-8-80).

SEC. 7-1205. APARTMENTS, FLATS AND COURTS.

(a) For every person conducting, carrying on or managing the business of apartments, flats or courts consisting of four or more individual living units available for rent or lease at one location, the license fee shall be determined by the retail gross receipts schedule designated in the Master Fee Resolution.

(b) For the purpose of this section, "one location" is defined to mean one or more lots that are contiguous. (Orig. Ord. 4674; Am. Ord. 80-115, § 26, eff. 8-8-80).

SEC. 7-1206. CONTRACTORS.

(a) For the purpose of this section, the term "contractor" shall include contractor, subcontractor, specialty contractor and builder, and the term "sales and service" shall include only receipts from jobs or projects located within the city.

(b) Every person who is required to have a state contractor's license and who is conducting, carrying on or managing the business of a contractor in the city shall be required to have a city contractor's business license.

(c) The contractor's license fee shall be paid annually. At the beginning of each license period, the applicant shall pay the minimum amount designated in the Master Fee Resolution. At the expiration of each license period, before obtaining a license from any subsequent license period, the licensee shall file a statement setting forth the particulars required by the application referred to in Section 7-1008. At such time, the licensee shall pay any additional sums found to be due based on gross sales and service during the license period then expiring, according to the contractor's business license schedule designated in the Master Fee Resolution.

(d) For the purpose of this section, that portion of the receipts of a general contractor which represents payments to other state licensed contractors shall be excluded from his gross sales and service, provided that the other state licensed contractor has or is required to have a contractor's business tax certificate and the contractor has furnished the Director with an acceptable listing of the names and addresses of the other contractor(s), the contractor number of each and the total amount(s) paid to each. An acceptable listing is defined as one which is typed, complete and which contains only exclusions allowed by this subsection.

(e) The maximum contractor's license fee shall escalate on November 1, 1990; and thereafter shall escalate annually, on July 1 of each year commencing on July 1, 1991, automatically without further action by this Council, by the percentage increase in the Consumer Price Index (Los Angles-Anahaim-Riverside City Average for urban wage earners and clerical workers—all items, as published by the Bureau of Labor Statistics of the United States of America) between March of said year and March of the preceding year, whichever is greater, unless the Council shall determine prior to July 1 of any year that all or part of the increase shall be deferred. (Orig. Ord. 4603; Am. Ord. 4921, 1956; Am. Ord. 69-58; Am. Ord. 80-71, § 2, eff. 6-6-80; Am. Ord. 80-83, §§ 2, 3, eff. 6-27-80; Am. Ord. 80-115, § 27, eff. 8-8-80; Am. Ord. 80-132, § 2, eff. 10-3-80; Am. Ord. 85-88, § 1, eff. 7-12-85; Am. Ord. 88-25, § 1, eff. 3-18-88; Am. Ord. 90-118, § 1, eff. 10-30-90).

SEC. 7-1207. SPECIFIC BUSINESSES AND PROFESSIONS.

(a) Every person primarily conducting, carrying on or engaged in a profession in the private sector shall pay the annual license fee designated in the Master Fee Resolution, except that where the professional is an employee in an employment relationship then the employer shall pay the employee's designated annual license fee unless the employer pays a license fee under Section 7-1202 or Section 7-1208. For purposes of this subsection the term "employee" means an employee whose wages are reported by the employer on a Form W-2 Wage and Tax Statement.

(b) The term "profession" is defined to mean a calling requiring specialized knowledge, training or academic preparation, and certification or licensing, and shall include, but shall not be limited to, the following: accountant, actuary, analyst, archaeologist, attorney at law,

audiologist, bacteriologist, certified shorthand reporter, chiropractor, consultant, counselor, dentist, dental hygienist, insurance adjuster, insurance broker, landscape architect, mortician, metallurgist, nurse, oculist, optometrist, osteopath, osteopathist, pharmacist, physical therapist, physician, podiatrist, psychologist, psychiatrist, real estate licensee, speech pathologist, surgeon, surveyor, veterinarian, X-ray technician, or other professions determined by the Director to be similar thereto.

(c) Said license fee shall be established as $328 per individual professional per year and the maximum annual fee per firm shall be $5,260 on November 1, 1990; and thereafter annually, on July 1 of each year commencing on July 1, 1991, said fees shall escalate automatically without further action by this Council, by the percentage increase in the Consumer Price Index (Los Angeles-Anaheim-Riverside City Average for urban wage earners and clerical workers—all items, as published by the Bureau of Labor Statistics of the United States of America) between March of said year and March of the preceding year, whichever is greater, unless the Council shall determine prior to July 1 of any year that all or part of the increase shall be deferred.

(d) The term "private sector" as used in subsection (a) is defined to mean (i) anyone who is not an employee of a public entity as defined in Government Code Section 811.2 receiving a salary and benefits directly from said agency, or (ii) anyone not working exclusively for a public entity.

(e) If any sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this section. The City Council hereby declares that it would have passed this ordinance and adopted this section and each sentence, clause or phrase thereof, irrespective of the fact that any one or more subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Orig. Ord. 4674; Am. Ord. 5480, 1959; Am. Ord. 68-95, 1968; Am. Ord. 78-52, § 1, eff. 4-28-78; Am. Ord. 79-33, § 1, eff. 3-16-79; Am. Ord. 80-115, § 28, eff. 8-8-80; Am. Ord. 83-88, § 1, eff. 7-15-83; Am. Ord. 83-104, § 1, eff. 8-12-3; Am. Ord. 83-136, § 1, eff. 11-11-83; Am. Ord. 85-118, § 1, eff. 9-13-85; Am. Ord. 90-117, § 1, eff. 10-30-90; Am. Ord. 2008-13, §§ 3, 4, eff. 3-14-08).

SEC. 7-1208. ALTERNATE FEE.

(a) In any fiscal year, any person required to pay a license fee under Section 7-1207 may elect instead to pay a quarterly license fee measured by the gross receipts from business done in the city, according to the tax rate, minimum fee, and change of information fee designated in the Master Fee Resolution. An election may be made only once within any fiscal year. A person established in business shall make the election before July first of the fiscal year, and persons entering business shall make the election within ninety days of the date of commencement of business. The Director may allow such an election at any other time if the election is in the public interest. No such election shall change any due date, tax period, or other period or date provided for.

(b) In lieu of the license fees prescribed under Section 7-1207, any corporation, partnership or other association of professionals may elect instead to pay the quarterly license fee under subsection (a), except that the minimum fee specified shall also apply to each person required to pay a license fee under Section 7-1207.
(Added Ord. 83-136, § 2, eff. 11-11-83).

SEC. 7-1209. TWO OR MORE BUSINESSES.

Any person conducting two or more such businesses, occupations, or professions mentioned in Section 7-1207 at the same location shall be required to procure but one license, provided that the highest license fee applicable to any of the included businesses shall apply. The license shall specify the several businesses, professions, or occupations for which the license is issued.
(Added Ord. 68-111, 1968).

SEC. 7-1210. OUT-OF-CITY REAL ESTATE BROKERS.

For every real estate broker who does not maintain an office or place of business within the city but who engages in the activities of acting as a real estate broker in the sale or lease of any property within the city, the license fee shall be as provided by Section 7-1207 of this Code. (Orig. Ord. 4674; Am. Ord. 68-112, 1968).

SEC. 7-1211. OTHER SPECIFICALLY LICENSED OCCUPATIONS.

Business license fees to be paid by any person conducting, carrying on or managing the occupations included in the following definitional sections of this article shall be designated in the Master Fee Resolution. (Added Ord. 80-115, § 30, eff. 8-8-80).

SEC. 7-1212. BROKERS IN SECURITIES AND COMMODITIES.

A broker in securities and commodities is defined as any person operating independently as a broker dealing in stocks, bonds, notes, securities or other commodities, including farm or ranch products, except that this section shall not apply to real estate brokers. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 31, eff. 8-8-80).

SEC. 7-1213. MANAGER OF PUBLIC MARKETS.

A manager of a public market is defined as any person conducting, carrying on or managing a public market with a minimum of five stalls, booths or spaces leased or rented to peddlers. (Added Ord. 69-59, 1969, based on former Secs. 6-401, 6-402, 6-403; Am. Ord. 80-115, § 32, eff. 8-8-80).

SEC. 7-1214. TRANSIENT PHOTOGRAPHERS.

(a) For the purpose of this section, a transient photographer is defined as a photographer who has no lease on a studio or place of business in the County of Fresno, and who takes photographs on a house-to-house basis, or in a studio or building, or in or upon any street, alley or other public place, whether unenclosed or upon a vacant lot or parcel of land within the city, regardless of whether the actual sale of photographs is made upon such premises or elsewhere, or whether sittings are taken.

(b) Prior to engaging in business in the city, a transient photographer shall procure and file with the Controller a surety bond in the sum of one thousand dollars ($1,000.00), to be approved by the City Attorney, as security for compliance with each and all of the terms of this Code applicable to such business.

(c) Each and all of the provisions of this section shall be applicable to any person who establishes a temporary business with an established merchant doing business in the city.

(d) Whenever a transient photographer presents to the Department of Finance a bona fide lease for a studio or place of business in the city for a period of more than three months, then

the license fee for such photographer shall be governed by the provisions of Section 7-1202 and not this section. (Orig. Ord. 4603; Am. Ord. 5308, 1958; Am. Ord. 5308, 1958; Am. Ord. 69-58, 1969; Am. Ord. 72-152, 1972; Am. Ord. 80-115, § 33, eff. 8-8-80).

SEC. 7-1215. MANAGER OF AUCTION SALES.

(a) A manager of an auction sale is defined as any person conducting, carrying on or managing the business of an auctioneer.

(b) If the person by or for whom the auctioneering is done is an itinerant merchant or itinerant vendor of goods, wares or merchandise, the license fee shall be higher, as designated in the Master Fee Resolution. For the purpose of this section, an itinerant merchant or itinerant vendor of goods is defined as a person, whether as principal or agent, who engages in a temporary or transient business in the city, selling goods, wares or merchandise, and who for such purpose leases or occupies a room, store building, structure or place in the city for the exhibition or sale of such goods, wares or merchandise. Such person shall not escape the payment of the higher license fee by temporarily associating himself with any local dealer, tradesman, merchant or auctioneer, or by conducting such temporary or transient business in connection with, or as part of, or in the name of, any local dealer, tradesman, merchant or auctioneer.

(c) Any person who has received a license as auctioneer shall not permit another person to conduct an auction under his license. (Orig. Ord. 4603; Am. Ord. 68-30, 1968; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 34, eff. 8-8-80).

SEC. 7-1216. DIRECTORY SALESMAN.

A directory salesman is defined as every person conducting, carrying on or managing the business of soliciting for or selling directories, such as a city or business directory. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 35, eff. 8-8-80).

SEC. 7-1217. MANAGER OF A PUBLIC ENTERTAINMENT.

A manager of a public entertainment is defined as any person conducting, carrying on or managing any theater, moving picture show, opera, concert, minstrel show, band concert, musical performance or exhibition, lecture, or other public exhibition or entertainment, where a charge is made for admission, seats or standing room. If the entertainment lasts longer than one month, the license fee shall be determined by the retail gross receipts schedule designated in the Master Fee Resolution. This section shall not apply to dances, circuses, fairs or carnivals. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-12, § 1, eff. 2-29-80; Am. Ord. 80-115, § 36, eff. 8-8-80).

SEC. 7-1218. CIRCUS MANAGER.

(a) A circus manager is defined as every person conducting, carrying on or managing a circus or other similar exhibition.

(b) Any person conducting, carrying on or managing any circus, circus parade, or side show, after show or concert to a circus shall pay the license fee designated in the Master Fee Resolution.

(c) For the purpose of this article, a circus is defined as an exhibition or entertainment at which feats of horsemanship, acrobatic feats, or trained or wild animals are exhibited or displayed. This section shall not apply to fairs. (Orig. Ord. 4603; Am. Ord. 68-146, 1968; Am. Ord. 69-58, 1969; Am. Ord. 80-12, § 2, eff. 2-29-80; Am. Ord. 80-115, § 37, eff. 8-8-80).

SEC. 7-1219. AGRICULTURAL FAIRS.

(a) For the purpose of this article, an agricultural fair is defined as a competitive exhibition of farm products with accompanying entertainment and amusements similar to those found at carnivals and other commercial booths and exhibits.

(b) The license fee for each concessionaire who operates the entertainment and amusements similar to those found at carnivals shall be as prescribed in Section 7-1220.

(c) The license fee for each other concessionaire at the fair shall be as designated in the Master Fee Resolution.

(d) For the purpose of this article, a commercial booth or exhibit is defined as each separate stall, stand or unenclosed location used for the sale of, or taking orders for, goods or services.

(e) No concessionaire who possesses a valid city business license shall be subject to separate licensing pursuant to this section.

(f) As an alternative to the above individual licensing provisions, the person or organization conducting, promoting or organizing an agricultural fair may pay the flat license fee designated in the Master Fee Resolution.

(g) Whenever the license prescribed by subsection (f) of this section is obtained and the fee paid therefor, no concessionaire operating a commercial booth or exhibit at the fair shall be subject to licensing or the payment of license fees for the fair. (Added Ord. 80-12, § 3, eff. 2-29-80; Am. Ord. 80-115, §§ 38, 39, eff. 8-8-80).

SEC. 7-1220. CARNIVAL MANAGER.

(a) A carnival manager is defined as every person conducting, carrying on or managing a street carnival.

(b) For the purpose of this article, a carnival is defined as a group of two or more shows, entertainments, games, devices, amusements, vaudeville, dramatic or minstrel performance, or games, tricks, devices or wheels, the result of the operation of which is dependent upon chance or skill, and as a result of the operation of which things or representatives of value are given or paid, which are conducted in tents or temporary structures upon the public streets, parks or upon vacant lots. This section shall not apply to circuses or fairs.

(c) Nothing in this section shall be construed to license or authorize the conduct of any game or device prohibited by the laws of California or by the provisions of this Code. (Orig. Ord. 4603; Am. Ord. 69-81, 1969; Am. Ord. 80-12, § 4, eff. 2-29-80; Am. Ord. 80-115, § 40, eff. 8-8-80).

SEC. 7-1221. RESERVED.

Editor's note—Ord. 2024-017, § 1, effective July 27, 2024, repealed § 7-1221, which pertained to exhibitor of feats of chance or skill and derived from Ord. 4603; Ord. 69-58, effective 1969; Ord. 80-12, § 5, effective February 29, 1980; Ord. 80-115, § 41, effective August 8, 1980.

SEC. 7-1222. RESERVED.

Editor's note—Ord. 2024-017, § 1, effective July 27, 2024, repealed § 7-1222, which pertained to manager of merry-go-rounds and similar amusement devices and derived from Ord. 4603; Ord. 69-58, effective 1969; Ord. 80-12, § 5, effective February 2, 1980; Ord. 80-115, § 41, effective August 8, 1980.

SEC. 7-1223. PAWNBROKERS.

A pawnbroker is defined as any person conducting, carrying on or managing a pawnshop, or acting as a pawnbroker. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 43, eff. 8-8-80).

SEC. 7-1224. SUPPLIER OF FINANCING.

A supplier of financing is defined as every person loaning money, advancing credit, or loaning credit, whether security of any kind is taken for such loan or advance or not, or purchasing or discounting of any obligation of money due or to become due, or any evidence of any obligation of money due or to become due, whether such obligation is secured or guaranteed, or not. Nothing in this section shall be deemed or construed to apply to any person conducting a banking business or financial corporation exempt under the laws of California, or to the holder of a pawnbroker's license. (Added Ord. 4809, 1956; Am. Ord. 69-58, 1969; Am. Ord. 80-35, § 1, eff. 4-11-80; Am. Ord. 80-115, § 44, eff. 8-8-80).

SEC. 7-1225. MANAGER OF A SHOOTING GALLERY.

A manager of a shooting gallery is defined as any person conducting, carrying on or managing a range equipped with targets for practice with firearms. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 45, eff. 8-8-80).

SEC. 7-1226. BILLBOARD ADVERTISER.

A billboard advertiser is defined as every person conducting, carrying on or managing the business of bill posting or sign advertising, by means of billboards or advertising signboards, fences, posts, buildings or other structures, or advertising by means of posting, hanging or otherwise affixing or displaying bills, signs or other advertisements in or upon buses. This

section shall not apply to bulletin boards of newspapers, nor to signs posted on any building by the person conducting business therein, advertising his own business, or to owners of real estate or their agents, advertising their property for sale or lease, when posted upon the property advertised for sale or lease. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 46, eff. 8-8-80).

SEC. 7-1227. HANDBILL ADVERTISER.

(a) A handbill advertiser is defined as any person conducting, carrying on or managing the business of advertising by means of distributing dodgers, handbills, circulars, printed advertisements, cards, tickets, or advertising samples of merchandise.

(b) For the purpose of this section, the words "conducting, carrying on or managing the business" are defined to be and shall be construed to mean the doing of any act or series of acts of distributing or advertising by means specified in this section, but are not to be construed to include any merchant or employee of the merchant distributing advertisements which advertise his own wares. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 47, eff. 8-8-80).

SEC. 7-1228. GENERAL ADVERTISER.

A general advertiser is defined as every person conducting, carrying on or managing the business of writing, placing, designing or soliciting advertisements for others, if not included in Sections 7-1226 and 7-1227. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 48, eff. 8-8-80).

SEC. 7-1229. HOUSE MOVER.

A house mover is defined as every person conducting, carrying on or managing the business of housemoving along or over the public streets of the city. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 49, eff. 8-8-80).

SEC. 7-1230. MERCHANDISE PEDDLERS.

A merchandise peddler is defined as every person conducting, carrying on or managing the business of traveling from place to place, and selling or offering for sale any food, goods, wares, merchandise or articles of personal property in his possession, if the offer for sale occurs in or upon any public street, alley or other public place, whether the actual sale of such commodities is made upon such premises or elsewhere. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 72-117, 1972; Am. Ord. 75-91, § 1, eff. 10-5-75; Am. Ord. 80-115, § 50, eff. 8-8-80).

SEC. 7-1231. STOCK AND BOND PEDDLERS.

A stock and bond peddler is defined as every person conducting, carrying on or managing the business of peddling, soliciting, or taking orders for or selling stocks, bonds or securities, who does not maintain a fixed place of business in the city. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 51, eff. 8-8-80).

SEC. 7-1232. GENERAL SOLICITOR.

For the purpose of this section, the word "solicitor" shall include, but not be limited to, every person conducting, carrying on or managing the business of going from house to house, place to place, or in or along the streets, within the city, taking orders for or offering to take orders for goods, wares, merchandise or other things of value for future delivery, or for services to be performed in the future. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 52, eff. 8-8-80).

SEC. 7-1233. BOOTBLACKS.

A shoeshiner is defined as every person conducting, carrying on or managing the business of shining boots or shoes. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 53, eff. 8-8-80; Am. Ord. 2024-017, § 5, eff. 7-27-24).

SEC. 7-1234. DANCE MANAGER.

A dance manager is defined as every person conducting, carrying on or managing the business of giving dances, where a charge is made for admission, seats or the privilege of dancing. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 54, eff. 8-8-80).

SEC. 7-1235. PEDDLING IN CONNECTION WITH STATE CONVENTIONS.

Any fraternal, social or charitable organization having a state convention in the city shall be given, upon payment to the Controller of the designated license fee, the exclusive right to hawk, vend or peddle upon the streets of the city during the period of such state convention, and for a period of two days prior thereto. (Orig. Ord. 4603; Am. Ord. 5308, 1958; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 55, eff. 8-8-80).

SEC. 7-1236. JUNK DEALERS.

A junk dealer is defined as every person conducting, carrying on or managing the business of buying or collecting junk, furniture, bedding, carpets, clothing, books, rags, iron, copper, brass, papers or other secondhand goods. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 56, eff. 8-8-80).

SEC. 7-1237. RESERVED.

Editor's note—Ord. 2024-017, § 1, effective July 27, 2024, repealed § 7-1237, which pertained to manager of boxing and wrestling matches and derived from Ord. 4603; Ord. 5311, effective 1958; Ord. 69-58, effective 1969; Ord. 80-115, § 57, effective August 8, 1980.

SEC. 7-1238. RESERVED.

Editor's note—Ord. 2024-017, § 1, effective July 27, 2024, repealed § 7-1238, which pertained to museum manager and derived from Ord. 4603; Ord. 69-58, effective 1969; Ord. 80-115, § 58, effective August 8, 1980.

SEC. 7-1239. ITINERANT DEALERS NOT OTHERWISE PROVIDED FOR.

For the purpose of this section, an itinerant dealer is defined as every person, whether as principal or agent, who engages in a temporary business in the city, buying, selling or otherwise dealing in goods, wares or merchandise, with the intention of continuing said business for a period of not more than ninety days, and who for the purpose of carrying on such business, hires, leases or occupies any room, building, structure or other location for the purchase, exhibition or sale of such goods, wares or merchandise. The person so engaged shall not be relieved from the provisions of this section by reason of associating temporarily with any local dealer, tradesman, merchant or auctioneer, or by conducting such temporary business in connection with, or as a part of, or in the name of, any local dealer, tradesman, merchant or auctioneer. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 59, eff. 8-8-80; Am. Ord. 81-2, § 1, eff. 2-20-81).

SEC. 7-1240. TRANSPORTING PASSENGERS FOR HIRE.

A person transporting passengers for hire is defined as:

(a) Every person conducting, carrying on or managing the business of the transportation of passengers from a point within the city to a point without the city, where a charge is made, or

(b) Every person conducting, carrying on or managing the business of running or operating any automobile or motor-propelled vehicle for the transportation of passengers or freight for hire, over a defined route from a terminus or termini in the city to a terminus outside the city, and which does not receive or discharge passengers or freight along said route within the city, and which vehicle does not do local business as a jitney bus. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 60, eff. 8-8-80).

SEC. 7-1241. PAID PROMOTERS FOR CHARITABLE ACTIVITIES CHARGING ADMISSION.

A paid promoter is defined as every person, and each agent or representative of such person, conducting, carrying on or managing, for any compensation whatsoever, the business of selling tickets for, or promoting by advertising or otherwise, any charitable, political, social or benevolent activity within the city for which a paid admission is charged or collected. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 61, eff. 8-8-80).

SEC. 7-1242. MAINTAINING REGULAR DELIVERY ROUTES.

A person maintaining regular delivery routes is defined as every person who, without having a fixed place of business within the city, and not being herein otherwise licensed or classified, maintains a distribution system for the delivery of any goods, wares or merchandise, and who makes three or more deliveries a quarter in the city. The provisions of this section shall not apply to producers of foodstuffs who offer their own products. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 62, eff. 8-8-80).

SEC. 7-1243. STOCK AND PRODUCE EXCHANGES.

A stock or produce exchange is defined as a stock exchange or other company engaged in buying or selling any stocks, bonds, notes, securities or other commodities, including farm or ranch products. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 63, eff. 8-8-80).

SEC. 7-1244. WATER SUPPLIERS.

A water supplier is defined as every person conducting, carrying on or managing the business of supplying the city or any of its inhabitants with water. (Orig. Ord. 4603; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 64, eff. 8-8-80).

SEC. 7-1245. TWO OR MORE BUSINESSES—SAME LOCATION AND MANAGEMENTS.

If any person is conducting, carrying on or managing two or more businesses licensed by this chapter at the same location and under the same management, the license fee to be paid as provided in Section 7-1202 shall be determined by and be based upon the gross sales and service received or derived from only such businesses as are not otherwise specifically licensed by any other section or sections of this chapter. (Orig. Ord. 4603; Am. Ord. 80-115, § 65, eff. 8-8-80).

SEC. 7-1246. TWO OR MORE BUSINESSES—SAME LOCATION—DIFFERENT MANAGEMENT.

If two or more businesses which would be subject to separate provisions of this chapter are conducted, carried on or managed at the same location, but under different management and control, the Controller may elect to avoid the multiplicity of licensing each and every individual business by entering into a written agreement with the owner of the property upon which such businesses are located, or with one or more of the persons operating any one or more of such businesses, whereby such owner or other person or persons shall be responsible

for the collection and payment of the business license fees applicable to all such businesses, in an amount to be determined by the Controller pursuant to this chapter and the Master Fee Resolution.
(Added Ord. 77-104, § 1, eff. 8-30-77; Am. Ord. 80-115, § 66, eff. 8-8-80).

SEC. 7-1247. COMMERCIAL PROMOTERS.

A commercial promoter is defined as a person or organization conducting, promoting or organizing a commercial trade show or similar exhibition. Shows and exhibitions conducted in connection with an international, national, state or regional convention session which is a convention of record with the International Association of Convention Bureaus or the Fresno Convention Bureau, and to which the general public is not admitted shall not be considered trade shows or exhibitions, and neither the promoter thereof nor any exhibitor therein shall be subject to licensing or the payment of license fees under this article. Whenever the license prescribed by this section is obtained and the fee paid therefor, neither the promoter nor any exhibitor shall be deemed to be an itinerant merchant under this article.
(Added Ord. 67-105, 1967; Am. Ord. 69-58, 1969; Am. Ord. 80-115, § 67, eff. 8-8-80).

SEC. 7-1248. EVIDENCE OF DOING BUSINESS.

When any person shall by use of signs, circulars, cards, telephone books, or newspapers advertise, hold out, or represent that he is in business in the city, or when any person holds an active license or permit issued by a governmental agency indicating that he is in business in the city, and such person fails to deny by a sworn statement given to the Director that he is not conducting a business in the city, after being requested to do so by the Director, then these facts shall be considered prima facie evidence that he is conducting a business in the city.
(Added Ord. 68-110, 1968).

SEC. 7-1249. SHORT-TERM RENTALS.

(a) **Purpose.** This chapter is adopted for the purpose of requiring the owner or owners of a residential dwelling unit that is used as a short-term rental, as defined herein, to apply for and secure a permit authorizing such use in the manner provided for by this chapter.

(b) **Definitions.**

(1) "Owner of a short-term rental" means the person or persons holding fee title to a dwelling unit operated and used as a short-term rental, or a person or persons holding the lease estate to a dwelling unit and operating and using the leased dwelling unit as short-term rental, or the agents of any such persons.

(2) "Short-term rental" means a dwelling unit, rented in whole or in part, to any persons(s) for transient use of 30 consecutive days or less. A dwelling unit within a hotel, motel, or bed and breakfast shall not be considered a short-term rental.

(3) "Hosting platform" means a person who participates in the short-term rental business by collecting or receiving a fee, directly or indirectly through an agent or intermediary, for conducting a booking transaction using any medium of facilitation.

(c) **Permit required.** No owner or owners of a short-term rental shall rent, offer to rent, or advertise for rent the short-term rental to another person without a permit approved and issued in the manner provided for by this chapter.

(d) **Permit application.** Permit applicants will be provided a provisional status to operate a short-term rental once they have filed a permit application with the City, and that status shall expire upon the City's issuance or denial of the application. The short-term rental permit application shall be as concise as possible and shall be authorized within the City, provided the owner of a short-term rental complies with each of the following requirements:

(1) Collects and timely remits Transient Occupancy Tax ("TOT"), in coordination with any hosting platform if utilized, to the City and complies with all City TOT requirements as set forth in Article 6 of Chapter 7 of this Code. All TOT collected, pursuant to this Chapter, will be designated for code enforcement matters related to short-term rentals.

(2) Provides current contact information, including but not limited to, the phone number(s) for all owner(s) of the short-term rental and/or property manager who can be reached at all times.

(3) Takes responsibility for and actively prevents any nuisance activities that may take place as a result of short-term rental activities. The owner shall keep accurate records for a minimum of 3 years regarding all short-term rentals, including but not limited to, the name of the individual(s) who reserved the rental, duration of the stay, and amount paid for the rental.

(4) Shall include in all offers or advertisements for the short-term rental the City-issued permit number. The permit number shall be printed in the same size type as the largest type used in the main body of the offer or advertisement.

(5) Shall only advertise on a hosting platform that was listed on the owner's short-term rental permit application form, unless the owner has submitted a written request and received written approval from the Finance Department to list another housing platform.

(6) Complies with all applicable laws, including the Noise Ordinance of the City of Fresno, all health, safety, building, and fire protection laws.

(7) Consents to receive all City notices and citations regarding their short-term rental permit by U.S. Mail and electronic mail.

(e) **Prohibitions.**

(1) No owner of a short-term rental shall offer, advertise, book, facilitate, or engage any short-term rental that does not comply with Section 7-1249 of this Code.

(2) No owner of a short-term rental shall offer, advertise, book, facilitate, or engage in a short-term rental for a non-residential approved building, including but not limited to, a vehicle parked on the property, a storage shed, trailer, or any temporary structure, including but not limited to, a tent.

(f) **Expiration and Renewal.** A short-term rental permit is valid for one year from the date of issuance. The permit may not be transferred or assigned and is valid only for the address named in the short-term rental permit application. A short-term rental permit may be renewed annually if the owner:

(1) Pays the renewal fee;

(2) Has complied with the provisions of Section 7-1249 of this Code and all permit conditions for the past year; and

(3) Provides information concerning any changes to the previous application for, or renewal of, the short-term rental activity, including but not limited to, the current contact information for the owner of the short-term rental or property manager who can be reached at all times.

A renewal may be denied if a short-term rental permit issued to the applicant or for the property has been suspended or revoked in the prior 12 months at that location.

(g) **Violation.** In the event that a short-term rental permit holder violates this Chapter, a written warning shall be provided to the permit holder for the first nuisance violation. For all subsequent violations, the short-term rental permit holder may be subject to revocation as set forth in Section (h) below.

(h) **Revocation.** A short-term rental permit issued pursuant to this chapter may be suspended, modified, or revoked for violations of this Chapter, for violation of any other law on the premises of the short-term vacation rental, or for the maintenance of such other conditions as may be shown to be injurious to the public health and safety. Any revocation of a short-term rental permit shall be only as to the location that has committed a violation of this Chapter, and will have no effect on additional locations that are permitted by the same owner. Revocation proceedings may be initiated by the City Attorney and shall be conducted pursuant to the procedures set forth in Chapter 1, Article 4 of this Code and a violation may result in a suspension of up to 12 months. A permit that is suspended or revoked is eligible to submit a renewal application for that location after the required time period has expired.

(i) **Enforcements; Penalties.** Notwithstanding the City's ability to suspend or revoke a permit, if an owner of a short-term rental violates its obligations under this Section 7-1249 or the owner's permit, the City may pursue all remedies available under law. Any violation of this Section 7-1249 or a permit, by an owner of a short-term rental, shall be subject to administrative citations as set forth in the Master Fee Schedule. In any action or proceeding brought by the City to enforce this Chapter, the City shall be entitled to recover its attorney's fees and costs as a prevailing party.

(j) **Appeal.** An appeal of a citation issued under this Chapter may be made to the Administrative Hearing Officer in the manner provided in Chapter 1, Article 4 of this code.

(k) **Misdemeanor.** Alternatively, the City Attorney may, in his or her discretion, prosecute violations of this Chapter as a misdemeanor.
(Added Ord. 2019-032, § 1, eff. 10-31-19).

ARTICLE 13 BUSINESS LICENSES—BUSINESS IMPROVEMENT AREAS

Sec. 7-1301. Title.
Sec. 7-1302. Definitions.
Sec. 7-1303. Purpose. Establishment of Business Improvement Areas.
Sec. 7-1304. Special Business License Tax.
Sec. 7-1305. Area Fund. Purposes. Committee.
Sec. 7-1306. Appeal.
Sec. 7-1307. Business Improvement Tax Review Committee. Appeal. Rules. Procedure.

SEC. 7-1301. TITLE.

The title of this article shall be the Business Improvement Areas Ordinance of the City of Fresno.
(Added Ord. 71-123, 1972).

SEC. 7-1302. DEFINITIONS.

(a) **In General.** Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words or phrases shall govern the construction, meaning, and applications of words and phrases is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) **Specific.** (Reserved)
(Added Ord. 71-123, 1972).

SEC. 7-1303. PURPOSE. ESTABLISHMENT OF BUSINESS IMPROVEMENT AREAS.

(a) **urpose.** The purpose of this article is to implement and place into effect the Parking and Business Improvement Law of 1965 (Streets and Highways Code Sec. 36000, et seq.), hereinafter called "the Act."

(b) **Ordinance.** The Council may establish a Business Improvement Area by adoption of an ordinance pursuant to Chapter 2 of the Act and this article.
(Added Ord. 71-123, 1972).

SEC. 7-1304. SPECIAL BUSINESS LICENSE TAX.

(a) **Imposition.** There is hereby imposed on all businesses within a Business Improvement Area a special business license tax in addition to the business license tax imposed by Article 12 of Chapter 7 of this Code and in addition to any and all other taxes imposed by any other ordinances of the city.

(b) **Computation.** Taxes imposed by this chapter shall be computed as provided in the ordinance which establishes the Business Improvement Area and shall be paid, and returns made, in the same manner and the same time as business license fees under Chapter 7 of this

Code. Whenever a business is susceptible to more than one business classification under Chapter 7 of this Code, or under any classification established by an ordinance establishing a Business Improvement Area, the applicable rate and classification shall be used to produce the greatest additional tax. Definitions and classifications of businesses shall be as determined under the provisions of Chapter 7 of this Code.

(c) **Refusal to Pay.** No person shall fail or refuse to pay any tax imposed by this article, and all civil and criminal penalties and interest and delayed payment penalties provided for in Chapter 7 of this Code shall apply to the taxes imposed by this article, including revocation or suspension of a business license.

(d) **Voluntary Contribution.** Any business which is exempt from the payment of this tax by reason of the provisions of the Constitution of the United States or the State of California, or an ordinance of the city, or whose place of business is outside of the particular Business Improvement Area may make a voluntary contribution to the city for the fund for said area for the purposes provided herein. (Added Ord. 71-123, 1972).

SEC. 7-1305. AREA FUND. PURPOSES. COMMITTEE.

(a) **Purposes.** The purposes for which the taxes imposed and collected pursuant to this article shall be used are as established by the ordinance establishing a particular Business Improvement Area and are limited to any one or more of the following:

(1) Decoration of any public place in the particular Area;

(2) Promotion of public events which are to take place in the Area.

(3) The general promotion of retail trade activities in the Area.

(b) **Fund.** There is hereby established, for each of such Business Improvement Areas, a special fund designated as "Business Improvement Area No. _____ Fund" into which shall be placed all revenues derived from taxes and contributions under this article for the benefit of the particular Business Improvement Area, and such fund shall be used only for the purposes specified above, in the manner provided in the budget approved therefor by the Council.

(c) **Budget.** The Council shall annually approve a budget to include an estimate of expenditures to be made from the particular Business Improvement Area fund to carry out the purposes hereinabove enumerated.

(d) **Who May Operate.** The Council shall designate, in the resolution or ordinance approving said budget, that the city, in whole or in part, or any private person or private organization, in whole or in part, may receive and expend the funds as provided in said budget, provided there is a proper accounting for such expenditures, conducted to the satisfaction of the Controller.

(e) **Committee.** For the purpose of drafting a proposed budget and consulting with and advising the Council thereon and making recommendations on the operation and extent of the Business Improvement Area and the methods and ways in which the area funds might be used

within the scope of the purposes set forth above, and for performing such other powers and duties as the Council may determine, a "Business Improvement Area Number _____ Advisory Committee" is hereby established for each Business Improvement Area, the composition of the committee to be established in the ordinance of the Council establishing the particular Business Improvement Area. The members of the committee may be designated in said ordinance, in a resolution, or by Council order, as may be from time to time necessary to fill vacancies. (Added Ord. 71-123, 1972; Am. Ord. 77-28, § 1, eff. 4-17-77).

SEC. 7-1306. APPEAL.

Any person aggrieved by any decision of the Controller may appeal to the Business Improvement Tax Review Committee by filing a notice of appeal with the Controller within fifteen days of the serving or mailing of the notice of the decision. The Controller shall fix a time and place for hearing such appeal as prescribed by the Business Improvement Tax Review Committee and its rules and regulations and shall give the appellant ten days' notice of the time and place of hearing. (Added Ord. 72-110, 1972).

SEC. 7-1307. BUSINESS IMPROVEMENT TAX REVIEW COMMITTEE. APPEAL. RULES. PROCEDURE.

A Business Improvement Tax Review Committee is hereby created. It shall be composed of the Mayor, the Chief Administrative Officer, and the City Attorney and an authorized representative of the Business Improvement Area Advisory Committee who shall serve as a non-voting member. The committee shall select from its members a chairman who shall serve at its pleasure. Any member of the committee may deputize in writing filed with the committee any member of his office or, in the case of the Mayor, a member of the Council, to serve in his place on such committee for such period or in such hearing as he may desire. A majority of the members of the committee shall constitute a quorum. The committee shall keep a record of its transactions. The committee shall be deemed to be in the office of the Chief Administrative Officer, shall meet and keep its files in his office and all filing with the committee relating to appeals, or otherwise, shall be made at such office. Neither the members of the committee, nor the persons deputized to serve in their places, shall receive any compensation as such members or acting members for their services on the committee.

The committee shall have power and it shall be its duty:

(1) To hear and determine appeals of orders or decisions of the Controller made upon his determination of tax. The committee may affirm, modify, or reverse such orders or decisions or dismiss the appeals therefrom, as may be just, and shall prescribe such forms, rules, and regulations relating to appeals as it may deem necessary. In the review of the decision or order, the committee may take such evidence and make such investigation as it may deem necessary. It shall give notice of its determinations and shall file a copy of each such determination with the Controller with certification thereon of the date of service thereof. Such determination shall become final ten days thereafter and shall thereupon become due and payable, subject to interest and penalties, and enforceable by the Controller in like manner as an order or decision of the Controller;

(2) To approve, modify, or disapprove all forms, rules, and regulations prescribed by the Controller in the administration and enforcement of this ordinance and such forms, rules, and regulations shall be subject to, and become effective only on, such approval;

(3) To hear and determine in such manner as shall be just, any protest which may be made by any person who may be interested, to any form, rule, or regulation approved or prescribed by the committee;

(4) To grant for good cause, applications for extensions of time in excess of one month, for making any return or payment of tax, and to prescribe rules therefor;

(5) To make such investigations as it deems advisable regarding the imposition and administration of the special business license tax and report its findings to the Council; to act in an advisory capacity to the Council on matters pertaining to the special business license tax and enforcement problems and recommend to the Council the adoption, amendment, or repeal of legislation pertaining thereto.

(Added Ord. 72-110, 1972).

ARTICLE 14 CANNABIS BUSINESS LICENSE TAX

Sec. 7-1401. Title.
Sec. 7-1402. Authority and Purpose.
Sec. 7-1403. Limitations on Use of Tax Revenues.
Sec. 7-1404. Intent.
Sec. 7-1405. Definitions.
Sec. 7-1406. Administration of the Tax.
Sec. 7-1407. Tax Imposed.
Sec. 7-1408. Personal Cultivation Not Taxed.
Sec. 7-1409. Reporting and Remittance of Tax.
Sec. 7-1410. Payments and Communications—Timely Remittance.
Sec. 7-1411. Payment—When Taxes Deemed Delinquent.
Sec. 7-1412. Notice Not Required by the City.
Sec. 7-1413. Penalties and Interest.
Sec. 7-1414. Refunds and Procedures.
Sec. 7-1415. Deficiency Determinations.
Sec. 7-1416. Redeterminations.
Sec. 7-1417. Enforcement—Action to Collect.
Sec. 7-1418. Apportionment.
Sec. 7-1419. Constitutionality and Legality.
Sec. 7-1420. Audit and Examination of Premises and Records.
Sec. 7-1421. Other Licenses, Permits, Taxes, Fees or Charges.
Sec. 7-1422. Payment of Tax Does Not Authorize Unlawful Business.
Sec. 7-1423. Failure to Report, Nonpayment, Fraud.
Sec. 7-1424. Tax Assessment—Notice Requirements.
Sec. 7-1425. Relief from Taxes—Disaster Relief.
Sec. 7-1426. Conviction for Violation—Taxes Not Waived.
Sec. 7-1427. Violation Deemed Misdemeanor.
Sec. 7-1428. Severability.
Sec. 7-1429. Remedies Cumulative.
Sec. 7-1430. Amendment or Repeal.
Sec. 7-1431. Annual Report.

SEC. 7-1401. TITLE.

This ordinance shall be known as the Cannabis Business License Tax Ordinance.
(Added Res. No. 2018-134, § 2, eff. 6-19-18).

SEC. 7-1402. AUTHORITY AND PURPOSE.

The purpose of this Ordinance is to adopt a Cannabis Business License Tax, for revenue purposes, pursuant to Sections 37101 and 37100.5 of the California Government Code, upon Cannabis Businesses that engage in business in the City. The Cannabis Business License Tax is levied based upon business gross receipts and square footage of plant canopy. It is not a sales and use tax, a tax upon income, or a tax upon real property.
(Added Res. No. 2018-134, § 2, eff. 6-19-18).

SEC. 7-1403. LIMITATIONS ON USE OF TAX REVENUES.

This ordinance enacts a Cannabis Business License Tax at the maximum rates set forth in Section 7-1408. The revenues from the Cannabis Business License Tax shall be deposited and used as follows: (1) ninety percent (90%) shall be deposited in the City's General Fund and may be spent for unrestricted general revenue purposes; and (2) ten percent (10%) shall be deposited into a Community Benefit Fund and shall be used to meet the goals of said Community Benefit Fund, which shall be established by Council through a resolution. The aforementioned is intended as a specific and legally binding and enforceable limitation on how the proceeds of the business license tax imposed by this ordinance may be spent. The revenues collected as result of this tax shall not be used for any purpose not specifically identified in this ordinance.
(Added Res. No. 2018-134, § 2, eff. 6-19-18).

SEC. 7-1404. INTENT.

The intent of this Ordinance is to levy a cannabis business license tax on all Cannabis Businesses that operate in the City, regardless of whether such business would have been legal at the time this Ordinance was adopted. Nothing in this Ordinance shall be interpreted to authorize or permit any business activity that would not otherwise be legal or permissible under laws applicable to the activity at the time the activity is undertaken.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 1, effective August 1, 2025, repealed § 7-1404, which pertained to Community Benefit Commission and derived from Res. No. 2018-134, § 2, effective June 19, 2018. Subsequently, Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former §§ 7-1405—7-1432 as §§ 7-1404—7-1431. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1405. DEFINITIONS.

The following words and phrases shall have the meanings set forth below when used in this Article:

(a) "Business" shall include all activities engaged in or caused to be engaged in within the City, including any commercial or industrial enterprise, trade, profession, occupation, vocation, or livelihood, whether or not carried on for gain or profit, but shall not include the services rendered by an employee to his or her employer.

(b) "Cannabis" means all parts of the Cannabis sativa Linnaeus, Cannabis indica, or Cannabis ruderalis, whether growing or not; the seeds thereof; the resin, whether crude or purified, extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or resin. It also means the separated resin, whether crude or purified, obtained from cannabis. It does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks (except

the resin extracted therefrom), fiber, oil, or cake, the sterilized seed of the plant which is incapable of germination, or "industrial hemp" as defined by Section 11018.5 of the Health and Safety Code.

(c) "Cannabis product" means raw cannabis that has been transformed into a concentrate, an edible product, or a topical product. It also means marijuana products as defined by Section 11018.1 of the California Health and Safety Code and is not limited to medical cannabis products.

(d) "Canopy" means all areas occupied by any portion of a cannabis plant whether contiguous or noncontiguous on any one site. When plants occupy multiple horizontal planes (as when plants are placed on shelving above other plants) each plane shall be counted as a separate canopy area.

(e) "Cannabis Business" means any business activity involving cannabis, including but not limited to cultivating, transporting, distributing, manufacturing, compounding, converting, processing, preparing, storing, packaging, delivering, testing, dispensing, retailing and wholesaling of cannabis, of cannabis products or of ancillary products and accessories, whether or not carried on for gain or profit.

(f) "Cannabis Business License Tax" means the tax due pursuant to this Article for engaging in Cannabis Business in the City.

(g) "Commercial cannabis cultivation" means cultivation in the course of conducting a Cannabis Business.

(h) "City permit" means a commercial cannabis business permit issued by the City to a person to authorize that person to operate or engage in a commercial cannabis activity pursuant to Chapter 9, Article 33, as may be amended.

(i) "Cultivation" means any activity involving the planting, growing, harvesting, drying, curing, grading, or trimming of cannabis and includes, but is not limited to, the operation of a nursery.

(j) "Employee" means each and every person engaged in the operation or conduct of any business, whether as owner, member of the owner's family, partner, associate, agent, manager or solicitor, and each and every other person employed or working in such business for a wage, salary, commission, barter or any other form of compensation.

(k) "Engaged in business as a Cannabis Business" means the commencing, conducting, operating, managing or carrying on of a Cannabis Business, whether done as owner, or by means of an officer, agent, manager, employee, or otherwise, whether operating from a fixed location in the City or coming into the City from an outside location to engage in such activities. A person shall be deemed engaged in business within the City if:

1. Such person or person's employee maintains a fixed place of business within the City for the benefit or partial benefit of such person;

2. Such person or person's employee owns or leases real property within the City for business purposes;

3. Such person or person's employee regularly maintains a stock of tangible personal property in the City for sale in the ordinary course of business;

4. Such person or person's employee regularly conducts solicitation of business within the City; or

5. Such person or person's employee performs work or renders services in the City.

The foregoing specified activities shall not be a limitation on the meaning of "engaged in business."

(l) "Gross receipts" shall include the total of amounts actually received from sales and the total of amounts actually received for the performance of any act or service, of whatever nature it may be, for which a charge is made or credit allowed, whether or not such act or service is done as a part of or in connection with the sale of materials, goods, wares, or merchandise. Included in "gross receipts" shall be all receipts, cash, credits and property of any kind or nature, without any deduction therefrom on account of the cost of the property sold, the cost of the materials used, labor or service costs, interest paid or payable, or losses, or other expense whatsoever. Excluded from "gross receipts" shall be the following:

1. Cash discounts allowed and taken on sales.

2. Any tax collected from the consumer or purchaser and which is separately stated at time of sale.

3. Such part of the sale price of property returned by purchasers upon rescission of the contract of sale as is refunded either in cash or by credit.

4. Amounts collected for others where the business is acting as an agent or trustee to the extent that such amounts are paid to those for whom collected, provided the agent or trustee has furnished the Director with the names and addresses of the others and the amounts paid to them.

5. Receipts of refundable deposits, except that refundable deposits forfeited and taken into income of the business shall not be excluded.

6. Retail sales of t-shirts, sweaters, hats, stickers, key chains, bags, books, posters or other personal tangible property which the Controller has excluded in writing by issuing an administrative ruling per Section 7-1407 shall not be subject to the cannabis business license tax under this Article. However, any retail sales not subject to this Article as a result of the administrative ruling shall be subject to the appropriate business tax or fee under Chapter 7, Article 12 or any other law as determined by the Controller.

(m) "Lighting" means a source of light that is primarily used for promoting the biological process of plant growth. Lighting does not include sources of light that primarily

exist for the safety or convenience of staff or visitors to the facility, such as emergency lighting, walkway lighting, or light admitted via skylights, windows or ventilation openings.

(n) "Nursery" means a facility or part of a facility that is used only for producing clones, immature plants, seeds, and other agricultural products used specifically for the planting, propagation, and cultivation of cannabis.

(o) "Person" means an individual, firm, partnership, joint venture, association, corporation, limited liability company, estate, trust, business trust, receiver, syndicate, or any other group or combination acting as a unit, whether organized as a nonprofit or for-profit entity, and includes the plural as well as the singular number.

(p) "Sale" means and includes any sale, exchange, or barter.

(q) "State" means the State of California.

(r) "State license," "license," or "registration" means a state license issued pursuant to California Business & Professions Code Sections 26000, *et seq*. or other applicable state law.

(s) "Controller" means the Controller of the City of Fresno or his or her designee.

(t) "Testing Laboratory" means a cannabis business that (i) offers or performs tests of cannabis or cannabis products, (ii) offers no service other than such tests, (iii) sells no products, excepting only testing supplies and materials, (iv) is accredited by an accrediting body that is independent from all other persons involved in the cannabis industry in the state and (v) is registered with the State Department of Public Health.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1406 as § 7-1405. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1406. ADMINISTRATION OF THE TAX.

(a) It shall be the duty of the Controller to collect the taxes, penalties, interest, and fees provided for herein, and perform the duties required by this Article. For purposes of administration and enforcement of this Article generally, the Controller may from time to time promulgate such administrative interpretations, rules, and procedures consistent with the purpose, intent, and express terms of this Article as he or she deems necessary to implement or clarify such provisions or aid in enforcement.

(b) Each applicant for a license shall properly fill in an application in such form as the Controller may prescribe.

(c) A cannabis business license tax certificate, in such form as the Controller may prescribe, shall be issued on payment of the tax prescribed in this Article and shall be in full force and effect until:

(1) Licensee fails to make payments as required by this Code;

(2) Revoked by the Controller;

(3) Business changes address;

(4) Business is discontinued;

(5) Business ownership changes.

(d) The Controller may take such administrative actions as needed to administer the tax, including but not limited to:

(1) Provide to all Cannabis Business License Taxpayers forms for the reporting of the tax;

(2) Provide information to any taxpayer concerning the provisions of this Article;

(3) Receive and record all taxes remitted to the City as provided in this Article;

(4) Maintain records of taxpayer reports and taxes collected pursuant to this Article;

(5) Assess penalties and interest to taxpayers pursuant to this Article;

(6) Determine amounts owed and enforce collection pursuant to this Article.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1407 as § 7-1406. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1407. TAX IMPOSED.

(a) Beginning January 1, 2019, there is imposed upon each person who is engaged in business as a Cannabis Business a Cannabis Business License Tax regardless of if the business has been issued a permit to operate lawfully in the City or is operating unlawfully.

(b) The maximum rate shall be as follows:

(1) **Cultivation.** For every person who is engaged in commercial cannabis cultivation in the City, twelve dollars ($12.00) annually per square foot of canopy space.

For purposes of this Article, the square feet of canopy space for a business is presumed to be the maximum square footage of canopy allowed by the business's City permit for commercial cannabis cultivation, or, in the absence of a City permit, the square footage shall be the maximum square footage of canopy for commercial cannabis cultivation allowed by the State license type. Should a City permit be issued to a business which cultivates only for certain months of the year, the City shall prorate the tax as to sufficiently reflect the period in which cultivation is occurring at the business. In no case shall canopy square footage which is authorized by the City commercial cannabis permit but not utilized for cultivation be deducted

for the purpose of determining the tax for cultivation, unless the Controller is informed in writing and authorizes such reduction for the purpose of relief from the tax prior to the period for which the space will not be used, that such space will not be used.

All cultivation rates shall be subject to an escalator at follows: On July 1, 2021 and on each July 1 thereafter, the maximum annual tax rate per square foot of each type of canopy space shall increase by the percentage change between July of the calendar year prior to such increase and July of the calendar year of the increase in the Consumer Price Index ("CPI") for all urban consumers in the Fresno County area as published by the United States Government Bureau of Labor Statistics. However, no CPI adjustment resulting in a decrease of any tax imposed by this subsection shall be made.

(2) **Retailer, Testing Laboratory, Distribution, and Manufacturing.** For every person who engages in the operation of the retail sales of cannabis as a retailer, the operation of a cannabis testing laboratory, a cannabis distribution business, or cannabis manufacturing, the maximum tax rate shall not exceed ten percent (10%) of gross receipts.

(c) The City Council may, by resolution or ordinance, set and adjust the rate of the Cannabis Business License Tax. However, in no event may the City Council set any rate that exceeds the maximum rate calculated pursuant to subsection (b) of this Section for the date on which the adjusted rate will commence.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1408 as § 7-1407. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1408. PERSONAL CULTIVATION NOT TAXED.

The provisions of this Article shall not apply to personal cannabis cultivation as defined in the Medicinal and Adult Use Cannabis Regulation and Safety Act. This Article shall not apply to personal use of cannabis that is specifically exempted from state licensing requirements, that meets the definition of personal use or equivalent terminology under state law, and for which the individual receives no compensation whatsoever related to that personal use.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1409 as § 7-1408. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1409. REPORTING AND REMITTANCE OF TAX.

All sellers, consumers and holders of City of Fresno Cannabis Business Licenses shall keep complete records of all business transactions, including sales, receipts, purchases and other expenditures, and shall retain all such records for examination by the City of Fresno's Finance Department. Such records shall be maintained for a period of at least five years.

(a) The Cannabis Business License Tax imposed by this Article shall be reported and payable on a monthly basis, and subject to arrears.

(1) For commercial cannabis cultivation, the tax due for each calendar month shall be based on the square footage of the business's canopy space during the month and the rate shall be 1/12th (one-twelfth) of the applicable annual rate.

(2) For all other Cannabis Business activities, the tax due for each calendar month shall be based on the gross receipts for the month reported and payable on a monthly basis.

(b) Each person owing Cannabis Business License Tax for a calendar month shall, no later than the last day of the month following the close of the calendar month, file with the Controller a statement of the tax owed for that calendar month and the basis for calculating that tax. The Controller may require that the statement be submitted on a form prescribed by the Controller. The tax for each calendar month shall be due and payable on that same date as the statement for the calendar month is due.

(c) Upon cessation of a Cannabis Business, tax statements and payments shall be immediately due for all calendar month up to the calendar month during which cessation occurred.

(d) The Controller may, at his or her discretion, establish shorter report and payment periods for any taxpayer as the Controller deems necessary to ensure collection of the tax. The Controller may also require that a deposit, to be applied against the taxes for a calendar month, be made by a taxpayer at the beginning of that calendar month. In no event shall the deposit required by the Controller exceed the tax amount he or she projects will be owed by the taxpayer for the calendar month. The Controller may require that a taxpayer make payments via a cashier's check, money order, wire transfer, or similar instrument.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1410 as § 7-1409. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1410. PAYMENTS AND COMMUNICATIONS—TIMELY REMITTANCE.

Whenever any payment, statement, report, request or other communication is due, it must be received by the Controller on or before the final due date. A postmark will not be accepted as timely remittance. If the due date would fall on a Saturday, Sunday or a holiday, the due date shall be the next regular business day on which the City is open to the public.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1411 as § 7-1410. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1411. PAYMENT—WHEN TAXES DEEMED DELINQUENT.

Unless otherwise specifically provided under other provisions of this Article, the taxes required to be paid pursuant to this Article shall be deemed delinquent if not received by the Controller on or before the due date as specified in Sections 7-1410 and 7-1411.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1412 as § 7-1411. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1412. NOTICE NOT REQUIRED BY THE CITY.

The City may as a courtesy send a tax notice to the Cannabis Business. However, the Controller is not required to send a delinquency or other notice or bill to any person subject to the provisions of this Article. Failure to send such notice or bill shall not affect the validity of any tax or penalty due under the provisions of this Article.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1413 as § 7-1412. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1413. PENALTIES AND INTEREST.

(a) Any person who fails or refuses to pay any Cannabis Business License Tax required to be paid pursuant to this Article on or before the due date shall pay penalties and interest as follows:

(1) A penalty equal to ten percent (10%) of the amount of the tax, in addition to the amount of the tax, plus interest on the unpaid tax calculated from the due date of the tax at the rate of one percent (1%) per month.

(2) If the tax remains unpaid for a period exceeding one calendar month beyond the due date, an additional penalty equal to twenty-five percent (25%) of the amount of the tax, plus interest at the rate of one percent (1%) per month on the unpaid tax and on the unpaid penalties.

(3) Interest shall be applied at the rate of one percent (1%) per month on the first day of the month for the full month and will continue to accrue monthly on the tax and penalty until the balance is paid in full.

(b) Whenever a check or electronic payment is submitted in payment of a Cannabis Business License Tax and the payment is subsequently returned unpaid by the bank for any reason, the taxpayer will be liable for the tax amount due plus any fees, penalties and interest as provided for in this Section, and any other amount allowed under state law.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1414 as § 7-1413. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1414. REFUNDS AND PROCEDURES.

(a) No refund shall be made of any tax collected pursuant to this Article, except as provided in Section 7-1415.

(b) No refund of any tax collected pursuant to this Article shall be made because of the discontinuation, dissolution, or other termination of a business.

(1) Whenever a Cannabis Business License Tax has been paid to the City under a mistake of law or a mistake of fact as described in subsections (b) and (c) of Section 7-906, the tax shall be refunded when a demand for refund has been made on a form prescribed by the Controller. No refund shall be approved after three years from the date of receipt by the City of the money to be refunded.

(2) Interest shall be paid on the amount of any overpayment of taxes at the rate of three-quarters of one per cent (0.75%) per month, or fraction thereof, from the date of receipt by the City of the money to be refunded, but no refund or credit shall be made of any interest imposed upon the person making the overpayment with respect to the amount being refunded or credited. The interest shall be paid:

(a) In the case of a refund, to the last day of the calendar month following the date upon which the person making the overpayment, if he has not already filed a claim, is notified by the Controller that a claim may be filed or the date upon which the claim is approved by the Controller, whichever date is the earlier.

(b) In the case of a credit, to the same date as that to which interest is computed on the license fee or amount against which the credit is applied.

(3) If the Controller determines that any overpayment has been made intentionally or by reason of carelessness, he shall not allow any interest thereon.

(c) The Controller, his or her designee, or any other City officer charged with the administration of this Article shall have the right to examine and audit all the books and business records of the claimant in order to determine the eligibility of the claimant to the

claimed refund. No claim for refund shall be allowed if the claimant refuses to allow such examination of claimant's books and business records after request by the Controller to do so.

(d) In the event that the Cannabis Business License Tax was erroneously paid, and the error is attributable to the City, the City shall refund the amount of tax erroneously paid up to one (1) year from when the error was identified.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1415 as § 7-1414. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1415. DEFICIENCY DETERMINATIONS.

(a) If the Controller is not satisfied with the return or returns of Cannabis Business License Taxes, or the amount of the taxes paid to the city by any person, he may compute and determine the amount required to be paid upon the basis of the facts contained in the return or returns or upon the basis of any information within his possession or that may come into his possession. One or more deficiency determinations may be made of the amount due for one or more than one period. The amount of each deficiency determination is immediately due and payable. Each determination shall become final and delinquent one calendar month after notice thereof as herein provided.

(b) In making a determination, the Controller shall offset overpayments previously made, if any, together with interest on the overpayments, against any underpayment for a subsequent period or periods, or against penalties and interest on the underpayments. The interest on underpayments and overpayments shall be computed in the manner set forth in Section 7-1414 and Section 7-1415.

(c) The Controller shall give written notice of a deficiency determination to each person against whom a determination is made. The notice may be served personally, electronically, or by mail. In case of service by mail of any notice required by this chapter, the service is complete at the time of deposit in the United States Post Office.

(d) Except in the case of fraud, intent to evade this chapter or authorized rules and regulations, or failure to make a return, every deficiency determination shall be made and notice thereof served within three years after the last day of the month following the close of the cannabis business license tax period for which the amount is determined or within three (3) years after the return is filed, whichever period expires the later.

(e) If any person fails or refuses to make, within the time provided in this Article, any return and payment of said tax or any portion thereof required by this Article or makes a fraudulent return or otherwise willfully attempts to evade this Article, the Controller shall proceed in such manner as he may deem best to obtain facts and information on which to base his estimate of the taxes due. As soon as the Controller procures facts and information upon which to base the assessment of any tax imposed by this chapter, he shall determine and assess against such person the taxes, interest and penalties provided for by this chapter.

When such a determination is made, the Controller shall give written notice of the amount so assessed. Such determination and notice shall be made and mailed within three years after discovery by the Controller of any fraud, intent to evade or failure to file return. The amount of each deficiency determination is immediately due and payable. Any determination shall become final and delinquent one calendar month after notice thereof as herein provided.

(f) If the Controller believes that the collection of any cannabis business license taxes will be jeopardized by delay, or if any determination will be jeopardized by delay, he shall thereupon make a determination of the taxes due. The amount determined is immediately due and payable. If the amount specified in the determination is not paid within ten days after service of notice thereof upon the person against whom the determination is made, the amount becomes final and delinquent, and the delinquency penalty or penalties and the interest provided in Section 7-1011 shall attach to the amount of the taxes, unless a petition for redetermination is filed within the ten days.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1416 as § 7-1415. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1416. REDETERMINATIONS.

(a) Any person directly interested may request a redetermination within one calendar month after service of notice thereof. If a request for redetermination is not filed within the applicable period, the determination becomes final and delinquent at the expiration of the period.

(b) If a request for redetermination is made within the applicable period, the Controller shall reconsider the determination, and, if the person has so requested in his petition, shall grant the person an oral hearing and shall give him ten days' notice of the time and place of the hearing. The Controller may continue the hearing from time to time as may be necessary.

(c) The Controller may decrease or increase the amount of the determination before it becomes final but the amount may be increased only if a claim for the increase is asserted by the Controller at or before the hearing.

(d) The decision of the Controller upon a petition for redetermination becomes final and delinquent fifteen days after service upon the petitioner of notice thereof.

(e) No request for redetermination shall be effective for any purpose unless at or before the time of request thereof the amount found due in the original determination is paid, or a bond or other security satisfactory to the Controller is filed with him guaranteeing payment of any amount finally determined to be due.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1417 as § 7-1416. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1417. ENFORCEMENT—ACTION TO COLLECT.

Any taxes, penalties and/or fees required to be paid under the provisions of this Article shall be deemed a debt owed to the City. Any person owing money to the City under the provisions of this Article shall be liable in an action brought in the name of the City for the recovery of such debt. The provisions of this Section shall not be deemed a limitation upon the right of the City to bring any other action including criminal, civil and equitable actions, based upon the failure to pay the tax, penalties and/or fees imposed by this Article or the failure to comply with any of the provisions of this Article.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1418 as § 7-1417. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1418. APPORTIONMENT.

If a business subject to the tax is operating both within and outside the City, it is the intent of the City to apply the Cannabis Business License Tax so that the measure of the tax fairly reflects the proportion of the taxed activity actually carried on in the City. To the extent federal or state law requires that any tax due from any taxpayer be apportioned, the taxpayer may indicate said apportionment on his or her tax return. The Controller may promulgate administrative procedures for apportionment as he or she finds useful or necessary.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1419 as § 7-1418. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1419. CONSTITUTIONALITY AND LEGALITY.

This tax is intended to be applied in a manner consistent with the United States and California Constitutions and state law. None of the tax provided for by this Article shall be applied in a manner that causes an undue burden upon interstate commerce, a violation of the equal protection or due process clauses of the Constitutions of the United States or the State of California or a violation of any other provision of the California Constitution or state law. If a person believes that the tax, as applied to him or her, is impermissible under applicable law, he or she may request that the Controller release him or her from the obligation to pay the impermissible portion of the tax.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1420 as § 7-1419. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1420. AUDIT AND EXAMINATION OF PREMISES AND RECORDS.

(a) For the purpose of ascertaining the amount of Cannabis Business License Tax owed or verifying any representations made by any taxpayer to the City in support of his or her tax calculation, the Controller shall have the power to inspect any location where commercial

cannabis cultivation occurs and to audit and examine all books and records (including, but not limited to bookkeeping records, state and federal income tax returns, and other records relating to the gross receipts of the business) of persons engaged in cannabis businesses. In conducting such investigation, the Controller shall have the power to inspect any equipment, such as computers or point of sale machines that may contain such records.

(b) It shall be the duty of every person liable for the collection and payment to the City of any tax imposed by this Article to keep and preserve, for a period of at least five (5) years, all records as may be necessary to determine the amount of such tax as he or she may have been liable for the collection of and payment to the City, which records the Controller or his/her designee shall have the right to inspect at all reasonable times.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1421 as § 7-1420. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1421. OTHER LICENSES, PERMITS, TAXES, FEES OR CHARGES.

(a) Nothing contained in this Article shall be deemed to repeal, amend, be in lieu of, replace or in any way affect any requirements for any permit or license required by, under or by virtue of any provision of any other Article of this code or any other ordinance or resolution of the City, nor be deemed to repeal, amend, be in lieu of, replace or in any way affect any tax, fee or other charge imposed, assessed or required by, under or by virtue of any other Article of this code or any other ordinance or resolution of the City. Any references made or contained in any other Article of this code to any licenses, license taxes, fees, or charges, or to any schedule of license fees, shall be deemed to refer to the licenses, license taxes, fees or charges, or schedule of license fees, provided for in other Article of this Code.

(b) Notwithstanding subsection (a) of this Section a Cannabis Business shall not be required to pay the license fee required by Article 12 of Chapter 7 of this Code so long as all of the business's activities within the City that would require payment of a license fee are activities subject to the Cannabis Business License Tax.

(c) The Controller may revoke or refuse to renew the license required by Article 12 of Chapter 7 of this Code for any business that is delinquent in the payment of any tax due pursuant to this Article or that fails to make a deposit required by the Controller pursuant to Section 7-1410.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1422 as § 7-1421. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1422. PAYMENT OF TAX DOES NOT AUTHORIZE UNLAWFUL BUSINESS.

(a) The payment of a cannabis business license tax required by this Article, and its acceptance by the City, shall not entitle any person to carry on any cannabis business unless the person has complied with all of the requirements of this Code and all other applicable state laws.

(b) No tax paid under the provisions of this Article shall be construed as authorizing the conduct or continuance of any illegal or unlawful business, or any business in violation of any local or state law.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1423 as § 7-1422. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1423. FAILURE TO REPORT, NONPAYMENT, FRAUD.

(a) Under any of the following circumstances, the Controller may make and give notice of an assessment of the amount of tax owed by a person under this Article at any time:

(1) If the person has not filed a complete statement required under the provisions of this Article;

(2) If the person has not paid the tax due under the provisions of this Article;

(3) If the person has not, after demand by the Controller, filed a corrected statement, or furnished to the Controller adequate substantiation of the information contained in a statement already filed, or paid any additional amount of tax due under the provisions of this Article; or

(4) If the Controller determines that the nonpayment of any Cannabis Business License Tax due under this Article is due to fraud, a penalty of twenty-five percent (25%) of the amount of the tax shall be added thereto in addition to penalties and interest otherwise stated in this Article and any other penalties allowed by law.

(b) The notice of assessment shall separately set forth the amount of any tax known by the Controller to be due or estimated by the Controller, after consideration of all information within the Controller's knowledge concerning the business and activities of the person assessed, to be due under each applicable section of this Article, and shall include the amount of any penalties or interest accrued on each amount to the date of the notice of assessment.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1424 as § 7-1423. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1424. TAX ASSESSMENT—NOTICE REQUIREMENTS.

The notice of assessment shall be served upon the person either by personal delivery, or by a deposit of the notice in the United States mail, postage prepaid thereon, addressed to the person at the address of the location of the business or to such other address as he or she shall register with the Controller for the purpose of receiving notices provided under this

Article; or, should the person have no address registered with the Controller for such purpose, then to such person's last known address. For the purposes of this Section, a service by mail is complete at the time of deposit in the United States mail.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1425 as § 7-1424. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1425. RELIEF FROM TAXES—DISASTER RELIEF.

(a) If a business is unable to comply with any tax requirement due to a disaster, the business may notify the Controller of this inability to comply and request relief from the tax requirement;

(b) The Controller, in his or her sole discretion, may provide relief from the cannabis business license tax requirement for businesses whose operations have been impacted by a disaster of such tax liability does not exceed five thousand ($5,000) dollars. If such tax liability is five thousand dollars and one cent ($5,000.01) dollars or more, then such relief shall only be approved by the City Manager;

(c) Temporary relief from the Cannabis Business License Tax may be relieved for a reasonable amount of time as determined by the Controller or City Manager in order to allow the Cannabis Business time to recover from the disaster;

(d) The Controller or City Manager may require that certain conditions be followed in order for a Cannabis Business to receive temporary relief from the Cannabis Business License Tax requirement;

(e) A Cannabis Business shall not be subject to an enforcement action for a violation of a Cannabis Business requirement in which the licensee has received temporary relief from the Controller or City Manager;

(f) For purposes of this section, "disaster" means fire, flood, storm, tidal wave, earthquake, or similar public calamity, whether or not resulting from natural causes.

(1) The Cannabis Business must notify the Controller in writing a request for temporary relief from imposition of the tax requirement pursuant to subsection (a) of this Section of such disaster clearly indicates why relief is requested from, the time period for which the relief is requested, and the reasons relief is needed for the specified amount of time;

(2) The Cannabis Business agrees to grant the Controller access to the location where the Cannabis Business has been impacted due to a disaster.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1426 as § 7-1425. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1426. CONVICTION FOR VIOLATION—TAXES NOT WAIVED.

The conviction and punishment of any person for failure to pay the required tax shall not excuse or exempt such person from any civil action for the tax debt unpaid at the time of such conviction. No civil action shall prevent a criminal prosecution for any violation of the provisions of this Article or of any state law requiring the payment of all taxes.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1427 as § 7-1426. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1427. VIOLATION DEEMED MISDEMEANOR.

Any person violating any of the provisions of this Article shall be guilty of a misdemeanor.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1428 as § 7-1427. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1428. SEVERABILITY.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be invalid, such decision shall not affect the validity of the remaining portions of this ordinance. The City Council hereby declares that it would have passed this ordinance and each section, subsection, sentence, clause and phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, or phrases be declared invalid.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1429 as § 7-1428. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1429. REMEDIES CUMULATIVE.

All remedies and penalties prescribed by this Article or which are available under any other provision of the Fresno Municipal Code and any other provision of law or equity are cumulative. The use of one or more remedies by the City shall not bar the use of any other remedy for the purpose of enforcing the provisions of this Article.
(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1430 as § 7-1429. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1430. AMENDMENT OR REPEAL.

This Article may be repealed or amended by the City Council without a vote of the people to the extent allowed by law. However, as required by Article XIII C of the California

Constitution, voter approval is required for any amendment that would increase the rate of any tax levied pursuant to this Article. The people of the City of Fresno affirm that the following actions shall not constitute an increase of the rate of a tax:

(a) The restoration of the rate of the tax to a rate that is no higher than that set by this Article, if the City Council has acted to reduce the rate of the tax;

(b) An action that interprets or clarifies the methodology of the tax, or any definition applicable to the tax, so long as interpretation or clarification (even if contrary to some prior interpretation or clarification) is not inconsistent with the language of this Article; or

(c) The collection of the tax imposed by this Article even if the City had, for some period of time, failed to collect the tax.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1431 as § 7-1430. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 7-1431. ANNUAL REPORT.

The Controller shall file a report with the City Council no later than July 1, 2019, and at least once a year thereafter. The annual report shall contain both of the following:

(a) The amount of funds collected and expended.

(b) The status of any project required or authorized to be funded as identified in Sections 7-1402 and 7-1403.

(Added Res. No. 2018-134, § 2, eff. 6-19-18; Am. Ord. 2025-026, § 2, eff. 8-1-25).

Editor's note—Ord. 2025-026, § 2, effective August 1, 2025, renumbered the former § 7-1432 as § 7-1431. The historical notation has been retained with the amended provisions for reference purposes.

ARTICLE 15 FRESNO CLEAN AND SAFE NEIGHBORHOOD PARKS TRANSACTIONS AND USE TAX

Sec. 7-1501. Title.
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Sec. 7-1519. Enjoining collection forbidden.

SEC. 7-1501. TITLE.

This ordinance shall be known as the Fresno Clean and Safe Neighborhood Parks Tax Ordinance.
(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1502. OPERATIVE DATE.

"Operative date" means the first day of the first calendar quarter commencing more than 110 days after the adoption of this ordinance, the date of such adoption being certification by the City Clerk that this measure has received approval by a majority of those voting in the election. The Operative date is expected to be July 1, 2021.
(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, § 2, eff. 4-22-21).

SEC. 7-1503. PURPOSE.

This ordinance is adopted to achieve the following and directs that the provisions hereof be interpreted in order to achieve those purposes:

(a) To adopt a retail transactions and use tax ordinance within the City in the amount of three-eighths of a cent per dollar (a rate of 0.375%) as provided herein for the specific purpose of generating funds to be deposited into the Clean and Safe Neighborhood Parks Account that may only be used for the purposes specified herein including, but not limited to, clean and safe parks; new parks and recreation

facilities; youth and senior recreation and after-school facilities and job training; improved walking and biking trails; the San Joaquin River Parkway; beautification of streets; and expanded access to arts and culture.

(b) To impose a retail transactions and use tax in accordance with the provisions of Part 1.6 (commencing with section 7251) of Division 2 of the Revenue and Taxation Code and section 7285.91 of Part 1.7 of Division 2 of the Revenue and Taxation Code which authorizes the City to adopt this tax ordinance provided that a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose.

(c) To adopt a retail transactions and use tax ordinance that incorporates provisions identical to those of the Sales and Use Tax Law of the State of California insofar as those provisions are not inconsistent with the requirements and limitations contained in Part 1.6 of Division 2 of the Revenue and Taxation Code.

(d) To adopt a retail transactions and use tax ordinance that imposes a tax and provides a measure that can be administered and collected by the California Department of Tax and Fee Administration in a manner that adapts itself as fully as practicable to, and requires the least possible deviation from, the existing statutory and administrative procedures followed by the California Department of Tax and Fee Administration in administering and collecting the California State Sales and Use Taxes.

(e) To adopt a retail transactions and use tax ordinance that can be administered in a manner that will be, to the greatest degree possible, consistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, minimize the cost of collecting the transactions and use taxes, and at the same time, minimize the burden of record keeping upon persons subject to taxation under the provisions of this ordinance.

(f) It is the intent of the voters in adopting this ordinance that the expenditures made pursuant to this ordinance shall supplement the levels of spending made by the City of Fresno in Fiscal Year 2017-18 in the areas funded by this ordinance and that the additional expenditures shall not supplant the 2017-18 spending levels.

(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, § 3, eff. 4-22-21).

SEC. 7-1504. IMPOSITION OF TAX, DEPOSIT INTO SPECIAL ACCOUNT AND ANNUAL ACCOUNTING.

The following provisions shall govern the imposition of the transactions and use tax and the deposit and use of revenues generated by this ordinance.

(a) For the privilege of selling tangible personal property at retail, a transactions tax is hereby imposed upon all retailers in the City at the rate of three-eighths of a cent per dollar of the gross receipts of any retailer (a rate of 0.375%) from the sales of all

tangible personal property sold at retail in the City on or after the operative date of this ordinance for a period of 30 years beginning on and after the operative date of this ordinance.

(b) A use tax is hereby imposed on the storage, use or other consumption in the City of tangible personal property purchased from any retailer on or after the operative date of this ordinance for storage, use or other consumption in said city at the rate of three-eighths of a cent per dollar of the sale price of the property (a rate of 0.375%) for a period of 30 years beginning on and after the operative date of this ordinance. The sales price shall include delivery charges when such charges are subject to the State sales or use tax regardless of the place to which delivery is made.

(c) The City Controller shall establish a Clean and Safe Neighborhood Parks Account and all retail transactions and use tax proceeds generated by this ordinance shall be deposited by the City Controller into the Clean and Safe Neighborhood Parks Account. Such proceeds shall only be used for the specific purposes identified in Section 7-1506.

(d) For so long as any proceeds of the retail transactions and use tax remain unexpended, the City Controller shall cause a report to be prepared by an independent auditor and filed with the City Council no later than December 31st of each year, stating: (i) the amount of retail transactions and use tax proceeds collected and expended in the prior fiscal year; and (ii) the status of any projects or description of any programs or services funded from proceeds of the retail transactions and use tax.

(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1505. SEPARATE SECTION WITH TRUE AND IMPARTIAL STATEMENT OF FACTS IDENTIFYING THE TAX AND SPECIFIC LIMITATIONS ON HOW THE REVENUE CAN BE SPENT.

This ordinance enacts a transactions and use tax in the City at the rate of three-eighths of a cent per dollar to be used only for the purposes in Section 7-1506 including, but not limited to, clean and safe parks; new parks and recreation facilities; youth and senior recreation and after-school facilities and job training; improved walking and biking trails; the San Joaquin River Parkway; beautification of streets; and expanded access to arts and culture. The Expenditure Plan in Section 7-1506 is intended as a specific and legally binding and enforceable limitation on how the proceeds of the transactions and use tax imposed by this ordinance may be spent. The revenues collected as a result of this tax may not be used for any purpose not specifically identified in this ordinance.

(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1506. EXPENDITURE PLAN.

The revenues generated by the retail transactions and use tax imposed by this ordinance shall be allocated by the City of Fresno on an annual basis with additional independent oversight provided by the Commission to ensure expenditures are consistent with this Section.

(a) Funds shall be allocated for programs and projects that do one of the following:

(1) Provide clean, safe neighborhoods parks for all Fresno residents;

(2) Reduce crime and homelessness in parks;

(3) Update and maintain park bathrooms and playgrounds;

(4) Reduce graffiti and vandalism in parks;

(5) Maintain and improve after-school, youth, and senior recreational programs;

(6) Provide job training for at-risk youth and veterans;

(7) Beautify landscaping and remove weeds and litter along major roads and highways;

(8) Create parks in neighborhoods that don't have good park access, including soccer and sports fields;

(9) Improve walking and biking access to parks and trails, including the San Joaquin River Parkway; and

(10) Expand access to local arts and cultural programs.

(b) The funds deposited in to the Clean and Safe Neighborhood Parks Account pursuant to Section 7-1504 shall be expended according to the following schedule:

(1) **Improving and Maintaining Safe, Clean Neighborhood Parks and Playgrounds.**

(A) Forty-six percent (46%) percent of funds made available from Section 7-1504 shall be dedicated as described in this paragraph.

(B) Funds in this paragraph shall be made available for the improvement, restoration, rehabilitation, operations, and maintenance of projects and programs including, but not limited to, the following:

i. Park rehabilitation and other capital improvements in existing parks, including lighting;

ii. Facility upgrades to improve efficiency and safety;

iii. Playgrounds and picnic areas;

iv. New restrooms and restroom improvements;

v. Park access for individuals with disabilities;

vi. Improved maintenance and operations of existing parks;

vii. A park ranger program to improve safety in and around park facilities;

viii. Publicly owned sport facilities and swimming pools;

ix. City-owned arts, cultural, and recreational facilities located in parks, including Storyland/Playland and the Veterans Memorial Auditorium;

x. Other projects consistent with the Parks Master Plan, and subsequent updates;

xi. The planning, designing, engineering, and permitting activities associated with the above improvements.

(C) Of the funds available pursuant to this paragraph, no less than fifty percent (50%) shall be made available for highest-need neighborhoods as defined in Section 7-1508.

(D) Except for projects funded pursuant to subparagraph (C), projects that leverage state, federal, or philanthropic funding shall receive funding priority.

(E) Of the funds available pursuant to this paragraph, no less than five million dollars ($5,000,000) annually shall be designated for improving operations and maintenance of existing parks and facilities.

(F) Projects funded pursuant to this paragraph shall attempt to provide multiple benefits, including water conservation, air quality improvements, climate pollution reductions, habitat protection, and public health improvements.

(2) **New Neighborhood Parks; Senior and Youth Recreation Facilities.**

(A) Twenty-one point five (21.5%) of the funds made available from Section 7-1504 shall be made available on an annual basis to improve the park system by investing in new park development and recreational facilities consistent with the Plan.

(B) Funds in this paragraph shall be made available for acquisition, development, operations, maintenance and improvement projects including, but not limited to, the following:

i. New neighborhood parks, pocket parks, and community gardens;

ii. Public restrooms in new parks;

iii. New senior and community centers associated with the park system;

iv. New regional parks located in the City of Fresno;

v. Playgrounds and picnic areas in new parks;

vi. New public sport facilities and swimming pools;

vii. The planning, designing, engineering, and permitting activities associated with the above improvements.

(C) Of the funds available pursuant to this paragraph, no less than fifty percent (50%) shall be made available for highest-need neighborhoods as defined in Section 7-1508.

(D) Except for projects funded pursuant to subparagraph (C), projects that leverage state, federal or private funding shall receive funding priority.

(E) Projects funded pursuant to this paragraph shall attempt to provide multiple benefits, including water conservation, air quality improvements, climate pollution reductions, habitat protection, and community health improvements that result in reduced health burdens.

(3) **Youth and Senior Recreation Programs; After School Programs; and Job Training for Youth and Veterans.**

(A) Eight point five percent (8.5%) of the funds made available from Section 7-1504 shall be dedicated as described in this paragraph.

(B) Funds in this paragraph shall be available for the planning and delivery of projects and programs including, but not limited to, the following:

i. Physical activity programming that promotes recreation and accessibility to recreational facilities;

ii. Sports, arts and active programs;

iii. Community and senior recreation center programs;

iv. Swimming and water-oriented recreation programs;

v. Junior lifeguard, science and education, summer day camps, and other youth-oriented programs;

vi. After-school programs for youth;

vii. Job-training and employment opportunities for youth, young adults, and veterans.

(C) Of the funds made available from this paragraph, not less than fifty percent (50%) shall be made available on an annual basis for programs that provide job training, career development, or both, to youth, young adults and veterans, including education and/or certification for jobs within the conservation, science, arts, green technology, and parks and recreation fields.

(D) Programs funded pursuant to this paragraph shall prioritize service for at-risk youth and seniors as defined by the PARCS Department, in conjunction with the Commission.

(4) **Expanded Access to Arts and Culture.**

(A) Twelve percent (12%) percent of the funds made available from Section 7-1504 shall be made available on an annual basis to invest in competitive grants for nonprofit organizations that support and expand access to arts and cultural programming.

(B) Grants funded pursuant to this paragraph shall be implemented by the Commission in partnership with the Fresno Arts Council, or its successor local arts agency, using multiple solicitations that allow for a diverse set of programs, with different program sizes and reach, including core operat-

ing and project-support grants, to be funded. The Commission shall ensure that grant applications are reviewed in a transparent, competitive process.

(C) Prior to the implementation of subparagraph (B), the Commission shall work in partnership with the Fresno Arts Council, and local arts and cultural stakeholders, to develop a Cultural Arts Plan for the City of Fresno that would identify needs in the arts and cultural community; prioritize outcomes and investments; and develop a vision and goals for the future of Fresno arts and cultural programs that are reflective of the cultural, demographic, and geographic diversity of Fresno. This process shall include a robust community engagement process, including multiple public meetings. The Cultural Arts Plan shall be updated every five years by the Commission.

(D) Funding for operating support distributed pursuant to this paragraph shall support organizational stability for arts and cultural organizations that reflect the cultural, geographic and demographic diversity of the City of Fresno; and reflect the proportion of each grantee's overall operations that serves residents within, or visitors to, the City of Fresno sphere of influence.

(E) Grants funded pursuant to subparagraph (B) shall prioritize organizations and programs that support and expand diverse public or youth engagement and equity.

(5) **Safe Walking and Biking Trails; Street Beautification and Litter Removal; and the San Joaquin River Parkway.**

(A) Eleven point twenty-five percent (11.25%) of the funds made available from Section 7-1504 shall be dedicated as described in this paragraph.

(B) Of the funds made available pursuant to this paragraph, forty-seven percent (47%) shall be made available for acquisition, development, improvement, restoration, operations, maintenance, or rehabilitation projects including:

i. Trail development, including bike, pedestrian and equestrian trials, as identified in the Active Transportation Plan, including trails that support safe routes to schools;

ii. Urban greening and tree planting along designated trails in the Active Transportation Plan;

iii. The planning, designing, engineering, and permitting activities associated with the above improvements.

(C) Of the funds made available pursuant to subparagraph (B), no more than twenty percent (20%) of the funds shall be made available for operations and maintenance of trails.

(D) Of the funds made available pursuant to subparagraph (B), no less than twenty-five percent (25%) of the funds shall be prioritized for Class I and Class IV pedestrian and bicycle pathways along the "Priority Network" as identified in the Active Transportation Plan.

(E) Of the funds made available pursuant to this paragraph, eighteen percent (18%) shall be made available for operations and projects consistent with the San Joaquin River Parkway Master Plan, in coordination with the San Joaquin River Conservancy and the San Joaquin River Parkway Trust.

(F) Of the funds made available pursuant to this paragraph, thirty-five percent (35%) shall be made available for development, improvement, restoration, maintenance, or rehabilitation of projects including, but not limited to, the following:

i. Litter and debris removal along major roads and streets within the City of Fresno, and along highways within the City of Fresno and its county islands;

ii. Landscape beautification and restoration projects along major roads and streets within the City of Fresno, and along highways within the City of Fresno and its county islands;

iii. The planning, designing, engineering, and permitting of activities associated with the above improvements.

(G) Of the funds made available pursuant to subparagraph (F), prioritization shall be given to projects that

i. Reduce overall water usage or include drought-tolerant plantings in landscaping;

ii. Leverage local, state, federal and private funding.

(H) Where appropriate, projects funded pursuant to subparagraph (F) shall be coordinated with Caltrans.

(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1507. DEFINITIONS.

The following definitions shall apply to this Measure:

(a) "Active Transportation Plan" means the City of Fresno's currently adopted Active Transportation Plan, or any subsequent update.

(b) "City" means the City of Fresno.

(c) "Department" means the City of Fresno Parks, After School, Recreation, and Community Services Department.

(d) "Commission" means the Parks, Arts and Recreation Commission established in Section 7-1509.

(e) "Council" means the City of Fresno's City Council.

(f) "Cultural Facility" means a building owned and/or operated by the City of Fresno which shall be used for the programming, production, presentation, and/or exhibition of natural history and any of the arts and/or cultural disciplines. These disciplines include music, dance, theatre, creative writing, literature, architecture, painting, sculpture, folk arts, photography, crafts, media arts, and visual arts.

(g) "Highest-need neighborhoods" means those communities as defined pursuant to Section 7-1508.

(h) "Interpretation" means, a visitor serving amenity that enhances the ability to understand and appreciate the significance and value of natural, historical, cultural and recreational resources that may utilize educational materials in multiple languages, digital information, and the expertise of a naturalist or other skilled specialist.

(i) "Forest or Forestry" means the cultivation and management of trees in an urban area for their present and potential contribution to the economic, physiological, sociological, and ecological well-being of urban society.

(j) "The Fresno Arts Council" means the current partnering organization of the City and County of Fresno that is tasked to promote the arts industry, or its successor.

(k) "Plan" means the Fresno City Master Parks Plan as adopted in 2018 or any subsequently adopted amendments or updates.

(l) "Joint-use" means shared management of facilities, land, utilities, programs, or other common elements between two or more parties, especially schools and flood control facilities.

(m) "Multi-benefit project" means a project that maximizes or enhances recreation opportunities and one or more of the following: protection or enhancement of the natural environment, stormwater capture, water and air quality improvements, greenhouse gas emission reductions, carbon sequestration, heat-island reductions; habitat protection and biodiversity, community health improvements that reduce health burdens, or any combination thereof.

(n) "Nonprofit Organization" means any charitable organization described in Section 501(c)(3) of the Internal Revenue Code of 1986, as amended, which has among its purposes the provision of park, recreation or community services or facilities; art appreciation; trail development or management; gang prevention, intervention, and services for at-risk youth; conservation corps; environmental education and interpretation; or tree-planting.

(o) "Park" means those facilities described in the Plan or subsequently added to the City's public park system.

(p) "State" means the State of California, except as otherwise provided herein.

(q) "Veterans" means any person who served in the United States armed forces as defined by Title 38 of the Code of Federal Regulations.

(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1508. PROGRAM IMPLEMENTATION AND FISCAL CONTROLS.

(a) Authority to expend funds, issue grants, or enter into contracts or memoranda of understanding relating to the revenues deposited into the Clean and Safe Neighborhood Parks Account pursuant to Section 7-1504 is delegated to the City of Fresno, provided that no expenditures may be made from the Account except as provided in this ordinance.

(b) In an effort to provide efficient administration and implementation of the program and project funding pursuant to this ordinance, the City may enter into interagency agreements with city departments, local agencies, county and/or state agencies, and provide grants to nonprofit organizations.

(c) Of the funds made available pursuant to this ordinance, the City may periodically dedicate a portion of funds to competitive grant solicitations for local education agencies, public agencies, and nonprofit organizations to develop and implement projects and programs.

(d) Of the funds made available pursuant to this ordinance, the City shall promote the use of the local conservation corps and other local youth and veteran training programs in the implementation of programs and projects funded.

(e) Identification of highest-needs neighborhoods:

(1) Up to and including December 31, 2021, the City, in conjunction with the Commission, shall define the highest-need neighborhoods as those areas that are located within census tracts that rank within the top twenty-five percent (25%) of Fresno census tracts as identified in the State's CalEnviroScreen 3.0; and whose nearest park is identified as being in poor condition, according to the Plan, or is located within a priority zone for new parks, as defined by the Plan.

(2) No later than January 1, 2022, the City, in conjunction with the Commission, shall adopt a new definition of highest-needs neighborhoods, after conducting a public process, to be updated every three years and included in subsequent updates to the Plan. The City and Commission shall create a weighted index incorporating the following data in developing the definition:

(A) Existing conditions of parks and facilities based on needs assessment data in the Plan;

(B) The proportion of the population that lives within walking distance (1/2 mile) to a park;

(C) Park acreage per 1,000 residents;

(D) Population density;

(E) Neighborhood youth and senior population;

(F) Neighborhood safety;

(G) Neighborhoods of concentrated poverty;

(H) Pollution burden, as defined by CalEnviroScreens 3.0, or subsequent updates;

(I) Pre-term birth rates;

(J) Years of potential life lost;

(K) Neighborhood composite mortality rate.

(3) In making the expenditures provided in Section 7-1506, the City shall be permitted to use no more than two percent (2%) of the funds allocated pursuant to each paragraph of that Section on an annual basis for administrative costs associated with the delivery of programs and projects pursuant to each paragraph.

(4) Starting with the 2029-30 fiscal year, the City may adjust the percentage funding allocations within each paragraph of Section 7-1506(b) by up to two percentage points each year, and between paragraphs of Section 7-1506(b) by up to one-half percentage point each year.

(5) Up to zero point seventy-five percent (0.75%) of the total funds made available pursuant to this Measure shall be made available on an annual basis to invest in program implementation, planning and plan updates, program and project innovation, and audit and oversight support to ensure the investments made by the citizens of Fresno create a world class set of facilities and programs and that funds are spent in accordance with the voters' will, including, but not limited to the following:

(A) Technology, community outreach, and technical assistance for program implementation;

(B) Interpretation and special language needs;

(C) Strategic planning and updates to the Parks Master Plan and Cultural Arts Plan;

(D) Costs associated with program oversight and accountability, including audits.

(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, §§ 4, 5, eff. 4-22-21).

SEC. 7-1509. FISCAL OVERSIGHT AND BUDGET ACCOUNTABILITY.

(a) A new Parks, Recreation and Arts Commission consisting of nine (9) members is hereby created, to be appointed by the Mayor with approval by the City Council in accordance with Article IX of the Fresno City Charter.

(b) The Mayor and City Council shall appoint all members of the Commission no later than June 30, 2021.

(c) The membership of the Commission shall reflect the cultural, demographic, and geographic diversity of the City of Fresno, with at least one-third of the Commissioners residing in highest-need neighborhoods, as defined in Section 7-1508.

(d) The Commission shall include members with the following areas of demonstrated expertise:

(1) Community parks and open space management;

(2) Youth development or recreation programs;

(3) Trails and San Joaquin River Parkway development and programming;

(4) Arts and culture programming;

(e) The Commission shall have primary authority on behalf of the City to:

(1) Conduct hearings and receive public input on allocations related to this ordinance, updates to the Parks Master Plan and Cultural Arts Plan, and annual PARCS Department Budget and Capital Improvement Plans; make recommendations to the City Council;

(2) Review City staff recommendations for budget allocations related to this ordinance to ensure consistency with the ordinance and Expenditure Plan; make recommendations to the City Council for adoption of expenditures in connection with annual budget process and any amendments thereto;

(3) Review and recommend for City adoption guidelines for competitive grant programs established with funds from this Measure;

(4) Oversee development and recommend City Council adoption of the Cultural Arts Plan and subsequent updates;

(5) Review and make recommendations to the Mayor and City Council on fees related to parks, trails, and open space;

(6) Review the Controller's annual independent audit of the Clean and Safe Neighborhood Parks Account; ensure that a complete accounting of all expenditures each year is published and posted on a publicly accessible website;

(7) Every five years, submit an evaluation of the program to the public and the City of Fresno;

(8) Provide input on an annual report prepared by City staff that includes:

(A) Update on the percentage of Fresnans that live within ½ mile of a park;

(B) Update on the number and percentage of Fresnans accessing PARCS programs;

(C) Update on the implementation of the Parks Master Plan;

(D) Update on the implementation of the Active Transportation Plan;

(E) Update on the implementation of deferred maintenance and improvements to existing parks and recreational facilities in the City.

(f) The City Council shall have the authority to further define the role and powers of the Commission by adopting implementing ordinances and revising them over time.

(g) In consultation with the City Attorney, City Clerk, and appropriate City staff, the Commission shall have authority to determine operating procedures consistent with the City Charter and the Municipal Code, including the other provisions of this ordinance.

(h) The Commission shall hold public meetings and operate pursuant to California Government Code section 54950.

(i) The Commission members shall be governed by and comply with State conflict of interest laws (e.g., Government Code section 87000 et seq. and section 1090 et seq.) and the City's conflict of interest policies.
(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, § 6, eff. 4-22-21).

SEC. 7-1510. MISCELLANEOUS PROVISIONS.

(a) Parks or other public facilities acquired, developed, rehabilitated or maintained with funds from this Measure shall be open, accessible, and affordable to the public without discrimination as to race, color, sex, sexual orientation, age, religious belief, national origin, caste, indigeneity, marital status, physical or medical handicap, medical condition or place of residence.

(b) The department shall not sell bonds secured by any revenues made available by this ordinance.

(c) The City shall not use funds generated from this resolution to develop facilities on existing or former landfills or waste refuse facilities.

(d) No provision of this ordinance shall be construed as authorizing the condemnation of privately-owned lands. Acquisition of property through eminent domain shall be strictly prohibited with the funds generated by this ordinance.

(e) Reasonable public access to lands acquired in fee simple with funds made available pursuant to this ordinance shall be provided except where that access may interfere with resource protection or to ensure public safety. For purposes of this ordinance, reasonable public access shall include parking and public restrooms.

(f) All real property acquired pursuant to this ordinance shall be acquired in compliance with Chapter 16 (commencing with Section 7260) of Division 7 of Title 1 of the California Government Code. Public Agencies and Nonprofit Organizations receiving funds pursuant to this resolution shall certify compliance to the City. Funds disbursed to a Public Agency in accordance with this ordinance may be expended by that agency pursuant to an agreement, or by an entity, authorized or established pursuant to Article 1 (commencing with Section 6500) of Chapter 5 of Division 7 of Title 1 of the Government Code.
(Added Ord. 2021-005, § 1, eff. 2-18-21; Amd. Ord. 2023-031, § 2, eff. 11-3-23).

SEC. 7-1511. CONTRACT WITH THE STATE.

Prior to the operative date, the City shall contract with the California Department of Tax and Fee Administration to perform all functions incident to the administration and operation of this retail transactions and use tax ordinance; provided, that if the city shall not

have contracted with the California Department of Tax and Fee Administration prior to the operative date, it shall nevertheless so contract and in such case the operative date shall be the first day of the first calendar quarter following the execution of such a contract.
(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, § 7, eff. 4-22-21).

SEC. 7-1512. PLACE OF SALE.

For the purpose of this ordinance, all retail transactions are consummated at the place of business of the retailer unless the tangible personal property sold is delivered by the retailer or his agent to an out-of-state destination or to a common carrier for delivery to an out-of-state destination. The gross receipts from such sales shall include delivery charges, when such charges are subject to the State sales and use tax, regardless of the place to which delivery is made. In the event a retailer has no permanent place of business in the State or has more than one place of business, the place or places at which the retail sales are consummated, for the purposes of this ordinance, shall be determined under rules and regulations to be prescribed and adopted by the California Department of Tax and Fee Administration.
(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, § 8, eff. 4-22-21).

SEC. 7-1513. ADOPTION OF PROVISIONS OF STATE LAW.

Except as otherwise provided in this ordinance and except insofar as they are inconsistent with the provisions of Part 1.6 of Division 2 of the Revenue and Taxation Code, all of the provisions of Part 1 (commencing with section 6001) of Division 2 of the Revenue and Taxation Code are hereby adopted and made a part of this ordinance as though fully set forth herein.
(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1514. LIMITATIONS ON ADOPTION OF STATE LAW AND COLLECTION OF TAXES.

In adopting the provisions of Part 1 of Division 2 of the Revenue and Taxation Code:

(a) Wherever the State of California is named or referred to as the taxing agency, the name of this City shall be substituted therefor. However, the substitution shall not be made:

(1) When the word "State" is used as part of the title of the State Controller, State Treasurer, California Department of Tax and Fee Administration, State Treasury, or the Constitution of the State of California.

(2) Where the result of that substitution would require action to be taken by or against this City or any agency, officer or employee thereof rather than by or against the California Department of Tax and Fee Administration, in performing the functions incident to the administration or operation of this ordinance.

(3) In those sections, including, but not necessarily limited to sections referring to the exterior boundaries of the State of California, where the result of the substitution would be to:

(A) Provide an exemption from this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not otherwise be exempt from this tax while such sales, storage, use or other consumption remain subject to tax by the State under the provisions of Part 1 of Division 2 of the Revenue and Taxation Code, or;

(B) Impose this tax with respect to certain sales, storage, use or other consumption of tangible personal property which would not be subject to tax by the State under the said provision of that code.

(4) In sections 6701, 6702 (except in the last sentence thereof), 6711, 6715, 6737, 6797, or 6828 of the Revenue and Taxation Code.

(b) The word "City" shall be substituted for the word "State" in the phrase "retailer engaged in business in this State" in section 6203 of the Revenue and Taxation Code, and in the definition of that phrase in section 6203.

(1) "A retailer engaged in business in the City" shall also include any retailer that, in the preceding calendar year or the current calendar year, has total combined sales of tangible personal property in this state or for delivery in the State by the retailer and all persons related to the retailer that exceeds five hundred thousand dollars ($500,000). For the purposes of this section, a person is related to another person if both persons are related to each other pursuant to Section 267(b) of Title 26 of the United States Code and regulations thereunder.

(Added Ord. 2021-005, § 1, eff. 2-18-21; Am. Ord. 2021-010, §§ 9—11, eff. 4-22-21).

SEC. 7-1515. PERMIT NOT REQUIRED.

If a seller's permit has been issued to a retailer under section 6067 of the Revenue and Taxation Code, an additional transactor's permit shall not be required by this ordinance. (Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1516. EXEMPTIONS AND EXCLUSIONS.

(a) There shall be excluded from the measure of the transactions tax and the use tax the amount of any sales tax or use tax imposed by the State of California or by any city, city and county, or county pursuant to the Bradley-Burns Uniform Local Sales and Use Tax Law or the amount of any state-administered transactions or use tax.

(b) There are exempted from the computation of the amount of transactions tax the gross receipts from:

(1) Sales of tangible personal property, other than fuel or petroleum products, to operators of aircraft to be used or consumed principally outside the county in which

the sale is made and directly and exclusively in the use of aircraft as common carriers of persons or property under the authority of the laws of this State, the United States, or any foreign government.

(2) Sales of property to be used outside the City which are shipped to a point outside the City, pursuant to the contract of sale, by delivery to that point by the retailer or his or her agent, or by delivery by the retailer to a carrier for shipment to a consignee at such point. For the purposes of this paragraph, delivery to a point outside the City shall be satisfied:

(A) With respect to vehicles (other than commercial vehicles) subject to registration pursuant to Chapter 1 (commencing with section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with section 21411 of the Public Utilities Code, and undocumented vessels registered under Division 3.5 (commencing with section 9840) of the Vehicle Code by registration to an out-of-City address and by a declaration under penalty of perjury, signed by the buyer, stating that the address is, in fact, his or her principal place of residence; and

(B) With respect to commercial vehicles, by registration to a place of business out-of-City and a declaration under penalty of perjury signed by the buyer, that the vehicle will be operated from that address.

(3) The sale of tangible personal property if the seller is obligated to furnish the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

(4) A lease of tangible personal property which is a continuing sale of that property, for any period of time for which the lessor is obligated to lease the property for an amount fixed by the lease prior to the operative date of this ordinance.

(5) For purposes of subparagraphs (3) and (4) of this section, the sale or lease of tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not that right is exercised.

(c) There are exempted from the use tax imposed by this ordinance, the storage, use or other consumption in this City of tangible personal property:

(1) The gross receipts from the sale of which have been subject to a transactions tax under any state-administered transactions and use tax ordinance.

(2) Other than fuel or petroleum products purchased by operators of aircraft and used or consumed by the operators directly and exclusively in the use of the aircraft as common carriers of persons or property for hire or compensation under a certificate of public convenience and necessity issued pursuant to the laws of this State, the United States, or any foreign government. This exemption is in addition to the exemptions provided in sections 6366 and 6366.1 of the Revenue and Taxation Code.

(3) If the purchaser is obligated to purchase the property for a fixed price pursuant to a contract entered into prior to the operative date of this ordinance.

(4) If the possession of, or the exercise of any right or power over, the tangible personal property arises under a lease which is a continuing purchase of the property for any period of time for which the lessee is obligated to lease the property for an amount fixed by a lease entered into prior to the operative date of this ordinance.

(5) For the purposes of subparagraphs (3) and (4) of this section, the storage, use or other consumption, or possession of, or exercise of any right or power over, tangible personal property shall be deemed not to be obligated pursuant to a contract or lease for any period of time for which any party to the contract or lease has the unconditional right to terminate the contract or lease upon notice, whether or not the right is exercised.

(6) Except as provided in paragraph (7), a retailer engaged in business in the City shall not be required to collect use tax from the purchaser of tangible personal property, unless the retailer ships or delivers the property into the City or participates within the City in making the sale of the property, including, but not limited to, soliciting or receiving the order, either directly or indirectly, at a place of business of the retailer in the City or through any representative, agent, canvasser, solicitor, subsidiary, or person in the City under the authority of the retailer.

(7) "A retailer engaged in business in the City" shall also include any retailer of any of the following: vehicles subject to registration pursuant to Chapter 1 (commencing with section 4000) of Division 3 of the Vehicle Code, aircraft licensed in compliance with section 21411 of the Public Utilities Code, or undocumented vessels registered under Division 3.5 (commencing with section 9840) of the Vehicle Code. That retailer shall be required to collect use tax from any purchaser who registers or licenses the vehicle, vessel, or aircraft at an address in the City.

(d) Any person subject to use tax under this ordinance shall be entitled to credit against that tax or any transactions tax or reimbursement for transactions tax, paid to the city or retailer in the city liable for a transactions tax pursuant to Part 1.6 of Division 2 of the Revenue and Taxation Code.
(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1517. STATE LAW AMENDMENTS.

All amendments subsequent to the effective date of this ordinance to part 1 of Division 2 of the Revenue and Taxation Code relating to sales and use taxes and which are not inconsistent with Part 1.6 and Part 1.7 of Division 2 of the Revenue and Taxation Code, and all amendments to Part 1.6 and 1.7 of Division 2 of the Revenue and Taxation Code, shall automatically become part of this ordinance, provided however, that no such amendment shall operate so as to affect the rate of tax imposed by this ordinance.
(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1518. AMENDMENT OF ORDINANCE.

Except for amendments that would increase the tax rate, impose the tax on transactions and uses not previously subject to the tax (unless the amendment occurs pursuant to Section 7-1517), extend the tax, allow expenditures other than those provided in Section 7-1506, or be inconsistent with the purposes of this ordinance, the City Council may amend this ordinance without submitting the amendment to the voters for approval.
(Added Ord. 2021-005, § 1, eff. 2-18-21).

SEC. 7-1519. ENJOINING COLLECTION FORBIDDEN.

No injunction or writ of mandate or other legal or equitable process shall issue in any suit, action or proceeding in any court against the State or the City, or against any officer of the State or the City, to prevent or enjoin the collection under this ordinance, or Part 1.6 of Division 2 of the Revenue and Taxation Code, of any tax or any amount of tax required to be collected.
(Added Ord. 2021-005, § 1, eff. 2-18-21).

CHAPTER 8

ASSESSMENT DISTRICTS AND BOND PROCEDURES*

Div. 1. Local Improvement Procedures
- Art. 1. Outdated Procedures
- Art. 2. Landscape and Lighting District Procedures
- Art. 3. Special Tax Districts - Procedures

Div. 2. Revenue Bonds
- Art. 1. Revenue Bonds - General Provisions
- Art. 2. Revenue Bonds - Financing Industrial and Commercial Facilities
- Art. 3. Revenue Bonds - Historic Rehabilitation Financing
- Art. 4. Revenue Bonds - Health Facilities Financing Law
- Art. 5. Revenue Bonds - Multifamily Housing Revenue Bond Law
- Art. 6. Revenue Bonds - Industrial Development Authority
- Art. 7. Revenue Bonds - Municipal Improvements Revenue Bond Law

Div. 3. Judgment Obligation Law
- Art. 1. Judgment Obligation Law - General Provisions and Definitions
- Art. 2. Judgment Obligation Law - Issuance of Bonds To Finance Judgments
- Art. 3. Judgment Obligation Law - Miscellaneous Provisions

Div. 4. Pension Obligation Law
- Art. 1. Pension Obligation Law—General Provisions and Definitions
- Art. 2. Pension Obligation Law—Issuance of Bonds to Finance the Program
- Art. 3. Pension Obligation Law—Miscellaneous Provisions

***Editor's note—**Ord. 2007-97, §§ 1 and 2, effective January 19, 2008, amended the Code by repealing former Ch. 8, §§ 8-101—8-110, 8-201—8-218, 8-301, 8-302, 8-401, 8-402, 8-501—8-508, 8-601—8-604, 8-701—8-708, 8-801—8-805, 8-901, 8-902, 8-1001, 8-1002, 8-1101—8-1104, 8-1201—8-1203, 8-1301—8-1306, 8-1401—8-1404, 8-1501—8-1513, 8-1601—8-1605, 8-1701—8-1709, 8-1801—8-1810, 8-1901—8-1906, 8-2001—8-2012, 8-2101—8-2112, 8-2201—8-2223, 8-2301—8-2314, 8-2401—8-2403, 8-2501—8-2505, 8-2601—8-2606, 8-2701—8-2722, 8-2801—8-2803, 8-2901—8-2914, 8-3001—8-3024, 8-3101—8-3103, 8-3201—8-3220, 8-3301, 8-3302, 8-3401—8-3417, 8-3501—8-3504, 8-3601—8-3603, 8-3701—8-3707, 8-3801, 8-3901—8-3903, 8-4001—8-4021, 8-4101—8-4108, 8-4201—8-4208, 8-4301—8-4307, 8-4401—8-4413, 8-4501—8-4503, 8-4601—8-4603, 8-4701—8-4703, 8-4801—8-4810, 8-4901—8-4905, 8-5001—8-5003, 8-5101—8-5110, 8-5201—8-5205, 8-5301—8-5307, 8-5401—8-5412, and adding a new Ch. 8. Former Ch. 8 pertained to similar subject matter. For information regarding the derivation of the former sections of Ch. 8, please see the Code Comparative Table. Original history information has been retained with the appropriate section, where possible.

DIVISION 1. LOCAL IMPROVEMENT PROCEDURES

Article 1. Outdated Procedures
Article 2. Landscape and Lighting District Procedures
Article 3. Special Tax Districts - Procedures

ARTICLE 1 OUTDATED PROCEDURES

Sec. 8-1-101. Former Ordinances.
Sec. 8-1-102. Uncodified Ordinances.

SEC. 8-1-101. FORMER ORDINANCES.

(a) On October 26, 2007, the Council adopted Ordinance No. 2007-54, known as the Code Reorganization Ordinance.

(b) As part of Ordinance No. 2007-54, various chapters, articles, and sections of the Fresno Municipal Code were repealed and reorganized as a reorganized Fresno Municipal Code. This included Chapter 8 Assessment Districts and Bond Procedures, Articles 1 to 54, hereafter "Reorganized Chapter 8."

(c) At the time Ordinance No. 2007-54 was adopted, it was understood that further streamlining and updating of specific Chapters of the Fresno Municipal Code would be undertaken.

(d) Reorganized Chapter 8 required significant updating and streamlining. As part of the updating and streamlining process, the Council finds that Reorganized Chapter 8, Articles 1 to 20 and 23 to 30 relating to various local improvement procedures and articles 31 to 39 relating to Parking Maintenance Districts should be repealed based on their antiquated provisions, many of them legally unsound.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-102. UNCODIFIED ORDINANCES.

In the event assessment proceedings similar to those referenced in Section 8-1-101 become necessary, new ordinances will be considered for enactment. For purposes of historical reference, because bonds relating to the 1913 and 1915 Improvement Acts identified in said articles are outstanding, the Council adopted an uncodified ordinance numbered 2007-98 regarding the aforesaid repealed articles which will be maintained in the City Clerk's office.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 2 LANDSCAPE AND LIGHTING DISTRICT PROCEDURES

Sec. 8-1-201. Purpose and Intent.
Sec. 8-1-202. Compliance with Article.
Sec. 8-1-203. Necessary or Convenient Procedure Authorized.
Sec. 8-1-204. Nonexclusiveness of Remedies.
Sec. 8-1-205. Abandonment of Proceedings.
Sec. 8-1-206. Effect on Other Law.
Sec. 8-1-207. Construction.
Sec. 8-1-208. Incorporation of the Landscaping and Lighting Act of 1972.
Sec. 8-1-209. Alteration of District.
Sec. 8-1-210. Landscaping and Lighting Act of 1972 Definitions.
Sec. 8-1-211. Installment Levy and Collection of Assessments.
Sec. 8-1-212. Limitation of Actions.

SEC. 8-1-201. PURPOSE AND INTENT.

The purpose and intent of this article is to establish a method whereby streets, bike paths, trails, medians, soundwalls, street signs, parks, park administration facilities, neighborhood or community centers, open space, drainage facilities, landscaping, statuary, fountains or other ornamental structures and appurtenant facilities or public lighting systems and appurtenant facilities may be constructed, installed and/or maintained, and whereby the costs thereof may be assessed to property which is adjacent to or in the vicinity of such systems or facilities and is receiving special benefit therefrom; and to establish a procedure whereby such assessments may be collected.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-202. COMPLIANCE WITH ARTICLE.

Any proceedings taken or assessment levied pursuant to this article shall not be held invalid for failure to comply with the provisions of this article, provided such failure is not a constitutional defect.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-203. NECESSARY OR CONVENIENT PROCEDURES AUTHORIZED.

Any procedure not expressly set forth in this article but deemed necessary or convenient to carry out any of its purposes is authorized.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-204. NONEXCLUSIVENESS OF REMEDIES.

The remedies provided in this article for enforcement of any assessment levied pursuant to this article are not exclusive, and additional remedies may be provided at any time.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-205. ABANDONMENT OF PROCEEDINGS.

Proceedings under this article may be abandoned at any time prior to the confirmation of the assessments.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-206. EFFECT UPON OTHER LAW.

This article does not affect other law relating to the same or any similar subject, but provides an alternative authority and procedure for the subject to which it relates. When proceeding under this article, its provisions only need be followed.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-207. CONSTRUCTION.

This article is to be liberally construed.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-208. INCORPORATION OF THE LANDSCAPING AND LIGHTING ACT OF 1972.

The Landscaping and Lighting Act of 1972 commencing with Section 22500 of the Streets and Highways Code, as amended, is incorporated in and made a part of this article. Except as otherwise provided by this article or chapter, the mode and manner for making improvements and for levying and collecting assessments shall be as prescribed in the Landscaping and Lighting Act of 1972.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-209. ALTERATION OF DISTRICT.

The boundaries of any district created pursuant to this article may be altered from time to time in the manner provided in the Landscaping and Lighting Act of 1972 or as otherwise may be provided by the Council in the resolution initiating proceedings for any such alteration.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-210. LANDSCAPING AND LIGHTING ACT DEFINITIONS.

(a) For all purposes under this article, the term "improvement" shall include all items listed in Street and Highway Code Section 22525 of the Landscaping and Lighting Act of 1972 and also installation, construction, maintenance or servicing of any 1) public street, highway, road, alley, lane, boulevard, pedestrian mall, parkway, bike path, trail, or other way dedicated to or used for public use and all appurtenances including but not limited to medians, soundwalls and street signs; 2) park or recreation administrative or neighborhood community center facilities; and 3) drains, tunnels, sewers, conduits, culverts, and channels for drainage purposes; with necessary outlets, manholes, catch basins, flush tanks, septic tanks, disposal plants, connecting sewers, ditches, drains, conduits, channels, and appurtenances.

(b) For all purposes under this article, the term "incidental expenses" shall include all items listed in Streets and Highway Code Section 22526 of the Landscaping and Lighting Act of 1972 and also all costs and expenses incurred in connection with the administration of a district created pursuant to this article or with the enforcement of the duty of a property owner pursuant to this Code to maintain or repair any improvement, including but not limited to compensation of any attorney employed to render services in connection with such district or such enforcement proceedings.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-211. INSTALLMENT LEVY AND COLLECTION OF ASSESSMENTS.

The city may, by resolution, determine that the estimated cost of any of the improvements authorized pursuant to this article is greater than can be conveniently raised from a single assessment and order that the estimated cost shall be raised by an assessment levied and collected in installments over such period of time as may be set forth in that resolution.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-212. LIMITATION OF ACTIONS.

The validity of any initial assessment levied under this article shall not be contested in any action or proceeding, unless the action or proceeding is commenced within 30 days after the assessment is levied. The validity of any assessment levied after the initial assessment may be contested only for the accuracy of computation of the component elements of the assessment formula or any change in the assessment formula. Any appeal from a final judgment in the action or proceeding shall be perfected within 30 days after the entry of judgment.
(Added Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 3 SPECIAL TAX DISTRICTS—PROCEDURES

Sec. 8-1-301. Authority.
Sec. 8-1-302. Title.
Sec. 8-1-303. Definitions.
Sec. 8-1-304. Nonexclusivity.
Sec. 8-1-305. Conflict of Law.
Sec. 8-1-306. Nature of Districts.
Sec. 8-1-307. Construction.
Sec. 8-1-308. Incorporation of the Mello-Roos Act.
Sec. 8-1-309. Adopting Goals and Policies.
Sec. 8-1-310. Authorized Services.
Sec. 8-1-311. Hearing, Continuances.
Sec. 8-1-312. Refunding Bonds, Use of Savings.
Sec. 8-1-313. Extraterritorial Jurisdiction.
Sec. 8-1-314. Lease of Facilities.
Sec. 8-1-315. Compliance with Division.
Sec. 8-1-316. Services Existing Before District Formation.
Sec. 8-1-317. Public Agency as Qualified Elector.
Sec. 8-1-318. Special Tax Levy Election.
Sec. 8-1-319. Joint Community Facilities Agreement or Joint Exercise of Powers Agreement.

SEC. 8-1-301. AUTHORITY.

The city is a municipal corporation, organized and existing under its Charter and the State constitution, with the power to make and enforce all laws and regulations respecting municipal affairs, subject only to any restrictions and limitations provided in the Charter and in the State constitution. The Council finds and declares that providing for special tax districts, to finance certain facilities and services, is necessary, essential, a public purpose, and a municipal affair of the city.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-302. TITLE.

This article may be cited as the City of Fresno Special Tax Financing Law.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-303. DEFINITIONS.

Unless the context otherwise requires, the following definitions shall govern the construction of this article.

(a) "District" means any special tax district formed pursuant to this article.

(b) "Facilities" means any or all facilities that a district may finance, purchase, construct, expand, improve, or rehabilitate pursuant to Government Code Section 53313.5, as amended.

(c) "Mello-Roos Act" means the Mello-Roos Community Facilities Act of 1982 commencing with Section 53311 of the Government Code, as amended. Government Code Sections referenced in this article shall mean those sections as amended from time to time.

(d) "Private residential purposes," when considering property use, shall not include property used primarily for hotel or residential hotel purposes. Such property shall be deemed used for commercial and nonresidential use.

(e) "Services" means any or all of the following:

(1) Maintaining, servicing, or replacing (i) any street, highway, road, alley, lane, boulevard, pedestrian mall, parkway, bike path, trail, easement, or other way dedicated to public use or used by the public; and (ii) all appurtenances and improvements therein including, but not limited to, medians, street signs, other signage, street lights, traffic signals, hydrants, soundwalls, drains, tunnels, sewers, curbs, gutters, sidewalks, conduits, culverts, and channels for drainage purposes, with necessary outlets, cesspools, manholes, catch basins, flush tanks, septic tanks, disposal plants, connection sewers, ditches, drains, conduits, channels, landscaping, and hardscaping.

(2) Maintaining or servicing any lakes, streams, rivers, creeks, channels or other bodies of water and the streambeds, riverbeds, creekbeds, channelbeds or lakebeds, or replacing infrastructure necessary to maintaining or servicing any of the foregoing.

(3) Maintaining, servicing, or replacing any landscaping, hardscaping, lighting or signage next to any right-of-way or other way dedicated to public use or used by the public and described in (1), above, or next to any canal, basin, or ditch.

(4) Establishing and maintaining a reasonable reserve for replacement relating to (1) through (3) above. The reserve for replacement shall be a service cost or expense and shall not be deemed payment for public facilities under Government Code Section 53321(d) when the property subject to the special tax is used for private residential purposes.

(5) Maintaining health and safety services including, without limitation, police, fire, traffic signal control, and recreational services.

(6) Maintaining, caring for, or preserving any facilities defined in this article.

(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-304. NONEXCLUSIVITY.

The procedures provided in this article are not exclusive, but are alternative to any other procedures provided in this Code or under State law.

(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-305. CONFLICT OF LAW.

This article is to be read and construed with the incorporated Mello-Roos Act. In any conflict between this division and the provisions of the Mello-Roos Act, this article shall govern.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-306. NATURE OF DISTRICTS.

Districts created pursuant to this article shall be deemed financing districts and not separate governmental agencies distinct from the city.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-307. CONSTRUCTION.

This article shall be liberally construed.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-308. INCORPORATION OF THE MELLO-ROOS ACT.

The Mello-Roos Act is incorporated in and made a part of this article. Except as otherwise provided by this article, the mode and manner for financing facilities, for levying and collecting special taxes, and for issuing bonds shall be as prescribed in the Mello-Roos Act.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-309. ADOPTING GOALS AND POLICIES.

The city may initiate proceedings to establish a district or to annex territory to a district pursuant to this article without first considering and adopting goals and policies. Establishing goals and policies as provided in Government Code Section 53312.7, concerning the adoption of local goals and policies, shall be permissive and not mandatory to initiating proceedings pursuant to this article.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-310. AUTHORIZED SERVICES.

A district special tax, whether approved by vote of landowners or registered voters, may finance services specified in the Mello-Roos Act or services as defined in this article. Services financed may supplant services already available in the territory when the district is created or when the territory is annexed to a district.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-311. HEARING, CONTINUANCES.

The hearing on the proposed formation of a district as required by subdivision (e) of Government Code Section 53321, and the hearing on a proposed annexation to an existing district as required by subdivision (f) of Government Code Section 53339.3, shall be held not less than 10 or more than 60 days after the date that the Council adopts the resolution of

intention to establish the district, or to annex territory, and may be continued from time to time without further notice, but shall be completed within one year of the original hearing date.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-312. REFUNDING BONDS, USE OF SAVINGS.

The city may use any savings, from issuing refunding bonds, within the district in any manner that Council determines to be in the interests of the district and consistent with the purposes for imposing the special tax.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-313. EXTRATERRITORIAL JURISDICTION.

Any district may be created pursuant to this article within the territorial jurisdiction of the city or, upon compliance with the procedures set forth in Streets and Highways Code Sections 5115 through 5118, may extend beyond the territorial limits of the city.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-314. LEASE OF FACILITIES.

Notwithstanding Government Code Section 53313.5, the city may lease out facilities financed pursuant to this article if the Council determines that it is in the best interest of the city to do so.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-315. COMPLIANCE WITH DIVISION.

Any proceedings taken, special tax levied, or bonds issued pursuant to this article shall not be held invalid for failure to comply with the provisions of this division provided such failure is not a constitutional defect.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-316. SERVICES EXISTING BEFORE DISTRICT FORMATION.

Notwithstanding Government Code Section 53313, a special tax imposed pursuant to this article may finance any facilities or services authorized in this article, which were being provided in the territory of the district before the district was created or the territory annexed. The special tax imposed may finance facilities or services that are in addition to existing facilities or services, or that supplant existing facilities or services.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-317. PUBLIC AGENCY AS QUALIFIED ELECTOR.

A public agency shall be a qualified elector and entitled to vote in any election in which landowners are the electors.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-318. SPECIAL TAX LEVY ELECTION.

The Council shall submit the levy of any special taxes to the qualified electors of the proposed district or to the qualified electors of the territory to be annexed to the district in the next general election or in a special election to be held, notwithstanding any other requirement, including any requirement that elections be held on specified dates, contained in the Elections Code, at least thirty days, but no more than one hundred eighty days following the adoption of the resolution calling the election.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-1-319. JOINT COMMUNITY FACILITIES AGREEMENT OR JOINT EXERCISE OF POWERS AGREEMENT.

Notwithstanding Government Code Section 53316.2 (b), the city, at any time, may enter a joint community facilities agreement with any local agency or public agency, or a joint exercise of powers agreement with any local agency.
(Added Ord. 2004-103, § 1, eff. 11-15-04; Am. Ord. 2007-97, § 2, eff. 1-19-08).

DIVISION 2. REVENUE BONDS

Article 1. Revenue Bonds - General Provisions
Article 2. Revenue Bonds - Financing Industrial and Commercial Facilities
Article 3. Revenue Bonds - Historic Rehabilitation Financing
Article 4. Revenue Bonds - Health Facilities Financing Law
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ARTICLE 1 REVENUE BONDS—GENERAL PROVISIONS

Sec. 8-2-101. Definitions.
Sec. 8-2-102. No Limitation on Appropriations.
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SEC. 8-2-101. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this division.

(b) "Acquire" and its variants means acquire, construct, improve, furnish, equip, remodel, repair, reconstruct or rehabilitate.

(c) "Application" means an application submitted by a company pursuant to this division to obtain financing for a project under a project agreement.

(d) "Administrative Expenses" means reasonable and necessary expenses incurred by the city in the administration of the provisions of this division, including, without limitation, fees and costs of paying agents, indenture trustees, attorneys, consultants and others.

(e) "Bonds" means any bonds, notes, certificates, debentures or other obligations issued or entered into by the city pursuant to this division.

(f) "Bondholder" or "Holder of Bonds" or any other similar term means: (i) any person who shall be the holder of any outstanding bond payable to bearer, or (ii) the registered owner or his or her attorney, trustee, representative or assigns of any outstanding bond which shall at the time be registered so as to be payable other than to bearer.

(g) "Bond Proceeds" means all amounts received by the city upon sale or other disposition of any bonds.

(h) "Charter" means the "Charter of the City of Fresno, State of California," as amended from time to time.

(i) "Company" means a person, partnership, corporation, whether for profit or not, trust or other private enterprise or entity of whatever legal form, for which a project is undertaken or proposed to be undertaken pursuant to this division, and may include more than a single enterprise.

(j) Unless otherwise specified by this division, "cost" as applied to any project, may include, without limitation, any or all of the following:

(1) The cost of construction, improvement, remodeling, rehabilitation, repair and reconstruction.

(2) The cost of acquisition, including rights in land and other property, both real and personal and improved and unimproved, and franchises and disposal rights.

(3) The cost of demolishing, removing or relocating any building or structures on lands so acquired, including the cost of acquiring any lands to which such buildings or structures may be moved or relocated.

(4) The cost of machinery, equipment and furnishings, and of engineering and architectural surveys, plans and specifications.

(5) The cost of consultant services, including, without limitation, legal, financial, engineering, accounting and auditing, necessary or incident to a project and of the determination as to the feasibility or practicability of undertaking such project.

(6) The cost of financing, including, without limitation, interest to be paid on the bonds prior to, during and for, a reasonable period after completion of project, underwriter's discount, loan fees and reserves for securing principal and interest payments and for extensions, enlargements, additions, repairs, replacements, renovations and improvements.

(7) The cost of acquiring or refinancing existing obligations, incurred in connection with a project.

(8) The reimbursement to any governmental entity or agency, or any company, of expenditures made by or on behalf of such entity, agency or company that are costs of

such project hereunder, without regard to whether or not such expenditures may have been made before or after the undertaking of a project by the city or delivery of bonds, all to the extent that such costs may be legally paid from bond proceeds.

(9) The cost of making relocation assistance payments by the company and/or the city, as the case may be, all as provided by state law.

(10) Cost of complying with state and federal environmental laws.

(11) Premiums for bond insurance, mortgage insurance or other insurance required in connection with the financing.

(12) Any other items necessary or convenient for the project, whether or not included within the above categories.

(k) "Facilities" or "facility" means property suitable for any one or more of the activities or uses described in this division for which bonds can be issued, and includes incidental facilities and appurtenances and appurtenant work.

(l) "Governmental Department" means any commission, department or agency of the State or the United States of America with which, under any other act, the offer, issuance or sale of the bonds is subject to authorization, qualification or registration.

(m) "Proceedings" means the actions taken by the city in undertaking, carrying out and completing a project, including, without limitation, the project agreements, indenture, bonds and resolutions.

(n) "Project" means the acquisition, financing or refinancing of Facilities as authorized by this division, which may be located on one or more sites.

(o) "Project Agreements" means the agreements between the city and a company respecting a project, and may include, without limitation, leases, subleases, options to and installment or other contracts of purchase, loan and guarantee agreements, notes, mortgages, deeds of trust, and security agreements.

(p) Unless otherwise provided by this division, "property" means any land, leasehold interest, easements, right-of-way, air rights, water rights, disposal rights and any other rights, hereditaments or profits of whatever kind and nature, improvements, buildings or other structures, and any personal property, and includes, but is not limited to, machinery and equipment, whether or not in existence or under construction, and interests in any of the foregoing necessary, incidental or convenient in connection with the project.

(q) "Resolution of Issuance" means a resolution or an indenture duly approved by the Council authorizing the issuance of bonds of the city constituting its indenture as further provided in this division.

(r) "Revenues" means amounts received by the city as payments of principal, interest and all other charges with respect to a loan under this division, as payments under a lease, sublease or sale agreement with respect to a facility, as proceeds from mortgage, hazard or other insurance on or with respect to such a loan, lease, sublease or sale agreement, all other

rents, charges, fees, income and receipts derived by the city from the financing or refinancing of a facility under this division, any amounts received by the city as investment earnings on moneys deposited in any fund or account securing bonds, and such other legally available moneys as the Council may, in its discretion, lawfully designate as revenues in the resolution of issuance.

(s) "State" means the State of California.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-102. NO LIMITATION ON APPROPRIATIONS.

Revenues, as defined by this article, and the expenditures of such revenues shall not be taken into account in any manner in determining the city's compliance with Article XIIIB of the California Constitution.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-103. CONTRACT RESTRICTIONS.

(a) No attorney or firm of attorneys employed as counsel by a company may serve as legal counsel, including bond counsel, to the city in connection with any project or proposed project for such company. No attorney or firm of attorneys employed as counsel by an Underwriter may serve as legal counsel, including bond counsel, to the city in connection with any project or proposed project for the company involved.

(b) No person or firm employed as financial consultant, advisor or underwriter by a company may serve as financial advisor to the city in connection with any proposed project for such company, and no financial advisor to the city for a particular issue of bonds may purchase or agree to purchase bonds from the city unless such bonds are offered by the city at a public sale upon publication of a notice inviting bids.

(c) The contract restrictions set forth in this section may be waived by the written consent of the city unless otherwise precluded by applicable law.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-104. POWERS.

(a) The city is recognized to have and shall exercise all powers pursuant to and as may be limited by the Charter and the laws of the State of California which are necessary or appropriate for carrying out the purposes of this division, including, without limitation, the following powers, together with all powers incidental thereto:

(1) To acquire property by purchase, exchange, gift, lease, contract or otherwise, including eminent domain;

(2) To maintain property;

(3) To dispose of property by lease, sale, exchange, donation, release, relinquishment or otherwise;

(4) With respect to property, to:

(i) Charge and collect rent under any lease;

(ii) Sell at public or private sale, with or without public notice;

(iii) Sell at a premium or discount above or below appraised value or for a nominal consideration;

(iv) Sell on an installment payment or a conditional sales basis;

(v) Convey, or provide for the transfer of, property without further act of the city, upon exercise of an option; and

(vi) Sell at a fixed or formula price, and receive for any such sale the note or notes of a company and mortgages, deeds of trust, or other security agreements respecting such property; provided, however, this subsection shall be operable only to the extent permitted by the Charter;

(5) To encumber property, including funds, whether then owned or thereafter acquired;

(6) To advance funds secured by loan agreements and charge and collect interest on such funds;

(7) To exercise all rights and to perform all obligations of the city under the project agreements and resolution of issuance, including the right, upon any event of default by, or the failure to comply with any of the obligations thereof by, the lessee, purchaser or other company thereunder, to dispose of all or part of the property to the extent authorized by the project agreements or resolution of issuance;

(8) To borrow money and issue its bonds for the purpose of paying all or any part of the costs of a project, as provided in this division;

(9) To pledge the revenues or any portion thereof, and all other rights, as security for the payment of any bonds so issued and for performance of obligations under a resolution of issuance;

(10) To contract and pay compensation for professional, legal, financial and other services;

(11) To refund outstanding bonds when there is a finding that such refunding will be of benefit to the city or a company or holders of such bonds, subject to the provisions of the proceedings for the issuance thereof to the extent permitted by law;

(12) To invest and reinvest funds, including bond proceeds, pending application thereof to the purposes for which such bonds shall have been issued, subject to the provisions of the proceedings for the issuance thereof;

(13) To acquire and hold obligations of any kind and pledge or assign the same as further security;

(14) To fund administrative expenses (1) by the establishment and collection of application processing and other fees in such amounts as may be established by the Council from time to time in the Master Fee Resolution as defined in Section 1-107; (2) by the

acceptance of funds and other aid from governmental sources authorized to provide such funds or aid; (3) by the acceptance of contributions from business, trade, labor, community and other associations; and (4) by other legal means;

(15) To make a construction and/or permanent loan and/or loans to a company or to a lender under a contract obligating the lender to make such loan or loans to a company pursuant to a resolution of issuance and a project agreement, and such loan or loans may be secured by a mortgage or such other security interests as deemed advisable by the city, may contain the unconditional promise of the company to so make payments or may be guaranteed by such other means as approved by the city;

(16) To lease facilities and/or property to a company with an option for the company to purchase such facilities and/or property at the end of the lease term at such price as may be determined by the city;

(17) To enter into lease-leaseback financings with companies on such terms as may be provided in the resolution of issuance and the project agreements; and

(18) To enter into installment sale agreements with a company for facilities constructed by the city, with title to pass from the city to such company upon entering into such agreement or upon payment in full of the principal and interest on bonds.

(b) To exercise the city's right of eminent domain in implementing the intent of the city by adopting this division, to the extent possible and in the manner required in the Charter and applicable State laws.

(c) The city may obtain, or aid in obtaining, from any department or agency of the United States or of the State of California or of any private company, any insurance or guarantee as to, or of, or for the payment or repayment of, interest, principal, rents, fees or other charges, or any part thereof, on any loan, lease, sublease or sale agreement or any instrument evidencing or securing the same, made or entered into pursuant to the provisions of this division; and may accept payment in such manner and form as provided therein in the event of default by a company, and may assign any such insurance or guarantee as security for bonds.

(d) The city may hold deeds of trust, mortgages or security interests in personal property as security for loans and other obligations of companies under this division and may pledge or assign the same as security for repayment of bonds. Such deeds of trust, mortgages and security interests may be assigned to, and held on behalf of the city by any bank or trust company appointed to act as trustee by the city in any resolution of issuance.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-105. RULES, REGULATIONS AND FORMS.

The Council shall provide, by ordinance or resolution, rules and regulations setting forth the details of the procedures for the implementation of this division, including but not limited to

the procedures for processing applications and the deposits, fees and charges to be made hereunder and the uses of same, or any fund or funds derived therefrom. The Council shall establish the deposits, fees and charges as it may designate in the Master Fee Resolution.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-106. APPLICATIONS.

A company may apply for financing pursuant to this division by filing an application with the city on such forms and with the city as specified pursuant to Section 8-2-105 above and shall include without limitation, all information necessary to evaluate the financial reliability and stability of the company, and to support the determination of the city that it will receive a substantial benefit. The City Manager is hereby directed to develop an application package in a manner that will effectuate the purposes of this division.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-107. PROCESSING OF APPLICATIONS.

(a) Applications and any applicable deposits, fees or charges, for bonds authorized by this division shall be submitted to the City Manager who shall be responsible for the proper processing of applications for such bonds.

(b) Applications for projects by companies not reasonably in accordance with the requirements of this division need not be accepted and further processed.

(c) Receipt of any application in no way obligates the city to preliminarily undertake the project proposed.

(d) Upon receipt of any application, the city shall review each application and shall determine compliance with the purposes of this division and with the criteria established pursuant hereto, and such review shall include the making of the appropriate determinations, including, without limitation, the determination that it is likely that the undertaking of the project by the city will be a substantial factor in the accrual of each of the public benefits from the use of the facilities as proposed in the application.

(e) Upon an affirmative determination under subsection (d) of this section, a copy of the application, as then amended or supplemented, so certified by the City Clerk, shall be entered into the records of the city, and a notice of the acceptance of the application shall be sent to the company.

(f) Upon such approval, and certification thereof by the City Clerk, all proceedings necessary to comply with the California Environmental Quality Act of 1970, as amended ("CEQA"), any zoning, building code or other requirements of law shall be taken or completed, as the case may be, at the expense of the company.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-108. PRELIMINARY UNDERTAKINGS.

(a) A project shall be deemed to have been preliminarily undertaken by the city when the Application has been reviewed, processed as above set forth, the affirmative determinations above required have been made, and the approval of the city has been obtained.

(b) Preliminarily undertaking a project in no way obligates the city to undertake a project by entry into project agreements.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-109. UNDERTAKINGS.

The city shall undertake projects by entering into project agreements. Said agreements may contain the following:

(a) The company shall comply with all legal requirements relating to the project and the operation, repair and maintenance of the facility, including:

(1) Obtaining any rezonings or variances, building, development, environmental and other permits and approvals, and licenses and other entitlements for use, without regard to any exemption for public projects;

(2) Securing the issuance of any certificates of need, convenience, and necessity or other certificates or franchises required by the State;

(3) Qualifying and/or registering any nonexempt issue, offer or sale of any bonds or other security proposed to be issued by the company or others (including the city) in connection with the project; and

(4) Providing satisfactory evidence of compliance with this section.

(b) The company shall provide, or cause to be provided by others, all amounts required for the project and all property of the project which are not to be provided as or by expenditure of bond proceeds, and in the case of any such amounts and property which the company proposes to cause to be provided by others, as by contract, grant, subsidy, loan or other form of assistance, shall provide satisfactory evidence that such amounts and property will be provided when required.

(c) Expenditure of bond proceeds shall be supervised to assure proper application to the project.

(d) The company shall, at its own expense, ensure, repair and maintain the facility, pay such taxes with respect to its interests in the property of the project as is then required by law, and pay any assessments and other public charges secured by liens, upon such interests as constitute the tax base for property taxation (regardless of any exemption which may be provided from property taxes), on the same basis as other property of similar character.

(e) The amounts payable by a company to, or for, the benefit of the city shall, in the aggregate, not be less than amounts sufficient:

(1) To pay any bonds that shall be issued by the city to pay the costs of the project, and

(2) To pay those administrative expenses which relate to the administration of the project agreements, the resolution of issuance and the bonds.

(f) The term of the project agreements shall extend at least until the date on which all such bonds and all other obligations incurred by the city in connection with a project shall have been paid in full or adequate funds for such payment shall have been otherwise provided.

(g) Such additional provisions as in the determination of the city are necessary or appropriate to effectuate the purposes of this division, including, without limitation, provisions:

(1) For payments by a company which include amounts for administrative expenses, in addition to the amounts which the agreement is required to obligate the company to pay, which are incurred by the city related to the preliminary undertaking of the project by the city;

(2) For payment before a facility exists or becomes functional, or after a facility has ceased to exist or be functional to any extent and from any cause;

(3) For payment regardless as to whether or not the company is in possession or is entitled to be in possession of the facility;

(4) Relating to the carrying out and completion of the project, including the allocation of responsibility between the city and the company regarding the acquisition of property, the making of other purchases, and the contracting for construction of the project, with or without competitive bidding, and the payment therefor;

(5) That some or all of the obligations of a company shall be unconditional and shall be binding and enforceable in all circumstances whatsoever, notwithstanding any other provision of law;

(6) Relating to the use, maintenance, repair, insurance and replacement of property of the project, such as the city and the company deem necessary for the protection of themselves or others, including but not limited to liability insurance, indemnification, and events of default;

(7) That the company shall indemnify and hold the city harmless against the claims and demands of all persons arising in any manner from the project, the project agreements, the facilities, the property, its operation, maintenance, repair and the like, including, without limitation, alleged violations of any State or Federal law relating thereto or relating to this division or any acts taken under this division; and

(8) For the payment of fees, charges or deposits for the purpose of establishing and maintaining such common reserve fund or funds as may be deemed necessary or desirable to secure the city's bonds issued hereunder, pursuant to rules and regulations governing the derivation, operation and use of such common reserve fund or funds. One or more common reserve funds may be established by the city for any or all of its bonds. The liability of any such common reserve fund with respect to any single issue of bonds of the city may not exceed the sum of the unpaid principal, interest and premium, if any, of the outstanding bonds of such issue. Each common reserve fund established pursuant to this section shall be established by the Finance Director. All interest or other increment earned by investment or deposit of moneys in such Fund shall be credited to and deposited in such Fund.

(h) The company shall provide for the payment of any relocation assistance required by law and shall reimburse the city, as the case may be, for relocation assistance services.

(i) Notwithstanding any other provision of this division, projects developed pursuant to this division shall be consistent with the requirements of the General Plan of the city and any applicable redevelopment plan.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-110. NONAGENCY.

No company shall, by reason of any project agreement, be deemed the agent of the city in the carrying out of such Agreement.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-111. RESOLUTION OF ISSUANCE.

The issuance of bonds shall be authorized by the Council by a resolution of issuance. The resolution of issuance may contain such terms and conditions of the bonds as the Council deems advisable and in accordance with the provisions of this division, including but not limited to the following:

(a) The type, denominations, terms and maturities of the bonds as the city may deem appropriate;

(b) The bonds to be in either registered or bearer form either as to principal or interest or both and carry such conversion and reconversion privileges as the city may deem appropriate;

(c) The bonds to be payable as serial or term bonds in such installments as may be set forth therein;

(d) The bonds to be payable in such mediums and at such place or places within or without the State as the city may deem appropriate;

(e) The bonds to bear interest at such rate or rates (or variable rates, as the case may be) per annum not to exceed those specified in the proceedings, payable at such time or times and at such place or places within or without the State and evidenced in such manner as the city may deem appropriate;

(f) The bonds to be exchangeable for, or issuable in lieu of, such bonds;

(g) The manner in which bonds shall be executed;

(h) If deemed advisable by the city, there may be retained in the proceedings an option to redeem prior to maturity all or any part of any bonds as may be specified in such proceedings, at such price or prices and after such notice or notices and on such terms and conditions as may be set forth in such proceedings and as may be briefly recited in the bond. Nothing in this division shall be construed to confer on the city any right or option to redeem any bonds, except as may be provided in the proceedings under which they shall have been issued;

(i) The fixing and collection of revenues;

(j) The creation and maintenance of special funds from such revenues, including reserve and sinking funds;

(k) The limitations on expenditures of bond proceeds and the pledge or assignment of such proceeds to secure the payment of such bonds;

(l) The procedure by which any contract represented by bonds may be amended or abrogated;

(m) The acts and omissions which shall constitute, and the rights and remedies available, in an event of default. In such an event of default, the obligations of the city may be enforced by mandamus, by the appointment of a receiver, by foreclosure of or sale under any resolution of issuance, by injunction, by specific performance, by equitable relief, or by any one or more of such remedies, or any other appropriate remedy authorized by law;

(n) The limitations on the issuance of additional bonds, the terms upon which additional bonds may be issued and secured, and the refunding of outstanding bonds;

(o) The procedure, if any, by which the terms of any contract with bondholders may be amended or abrogated, the amount of bonds the holders of which must consent thereto, and the manner in which such consent may be given;

(p) The payment of administrative expenses or other expenses of the city;

(q) Specification of the acts or omissions to act which shall constitute a default in the duties of the city to holders of the bonds, and providing the rights and remedies of such holders in the event of default;

(r) Issuing bonds in temporary form pending preparation of bonds in definitive form, at which time such temporary bonds shall be exchanged for definitive bonds in bearer or fully registered form;

(s) For any additional matters authorized to be included in the indenture provisions of a resolution of issuance or which relate to the security, protection or remedies of bondholders, or which tend to make the bonds more marketable;

(t) The bonds to contain such provisions not inconsistent with this division as the city may deem appropriate which are for the protection of the city or the bondholders; and

(u) The pledge or assignment of all or any part of the revenues and of any other moneys or assets legally available therefor (including loans, deeds of trust, mortgages, leases, subleases, sales agreements and other contracts and security interests) and the use and disposition of such revenues, moneys and assets, subject to such agreements with the holders of bonds as may then be outstanding.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-112. INDENTURE PROVISIONS IN RESOLUTION OF ISSUANCE.

(a) In the discretion of the city, any bonds issued under the provisions of this division may be secured by indenture provisions in the resolution of issuance by and between the city and one or more banks or trust companies within or outside the state having the necessary trust powers as trustee, custodian, or trustee and custodian for the benefit of the bondholders, paying agent, or bond registrar, and being subject to service of process within the state. The resolution of issuance may contain such provisions which are customarily found in indentures, including, without limitation, the provisions hereinafter set forth. Such resolution of issuance may vest in bondholders the right to remove and appoint a new trustee or trustees. The trustee or trustees may, at any time, own all or any part of the bonds, unless otherwise provided in the resolution of issuance. Such resolution of issuance may vest in such trustee or trustees, in trust or agents, as provided therein and as consistent with other provisions of this section, property, rights, powers and duties, and may provide that the revenues and any other rights be pledged as security for repayment of the bonds, subject to such agreements with bondholders as may then exist.

(b) Such resolution of issuance may contain covenants of the city as to the acquisition of property, the disposition of any property, or part thereof, the subjecting of additional property to the lien thereof, the issuance of additional bonds, the custody, investment and application of all moneys, the creation and maintenance of reserves, the disposition of insurance or condemnation proceeds, and the use of surplus bond proceeds. Any such resolution of issuance may define events of default thereunder, which may include events of default by a company under the project agreements, may specify the action to be taken by the city upon an event of default, may set forth the rights and remedies of the bondholders and of the trustee or trustees, and may restrict the individual right of action by bondholders. In addition, any such resolution of issuance may contain such other provisions as the city may deem reasonable and proper and which relate in any way to the security or protection of bondholders. All expenses incurred in carrying out the provisions of such resolution of issuance shall be treated as an administrative expense. Any interest in property established by any resolution of issuance shall be valid and binding from the date thereof, and any revenues or amounts to cover administrative expenses

received by or on behalf of the city thereunder shall immediately be subject to the lien thereof without any further act, which lien shall be valid and binding as against all persons, irrespective of notice, without any filing or recording except a filing in the records of the city. All revenues, excepting (unless otherwise provided) bond proceeds, shall further be deemed to be trust funds and all revenues shall be held and applied solely as provided in such resolution of issuance, but no bondholder shall, as such, be in any manner obligated to see to the proper application thereof.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-113. PLEDGE OF REVENUES, MONEY OR PROPERTY; LIEN.

Any pledge of revenues or other moneys or assets pursuant to the provisions of this division shall be valid and binding from the time such pledge is made. revenues, moneys and assets so pledged and thereafter received by the city shall immediately be subject to the lien of such pledge without any physical delivery thereof or further act, and the lien of any such pledge shall be valid and binding as against all parties having claims of any kind in tort, contract or otherwise against the city, irrespective of whether such parties have notice thereof. Neither the resolution of issuance nor any indenture by which a pledge is created need be filed or recorded except in the records of the city.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-114. BOND ANTICIPATION NOTES.

In anticipation of the sale of bonds, the city may issue bond anticipation notes and may renew the same from time to time. Such notes shall be payable from any revenues or other moneys authorized by this division to be pledged to secure payment of bonds which are not otherwise pledged, or from the proceeds of sale of the bonds in anticipation of which they were issued. Such notes shall be issued in the same manner as bonds. Such notes and the resolution of issuance providing for their issuance may contain any provisions, conditions or limitations which a bond, or a resolution of issuance providing for the issuance thereof, may contain.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-115. FURTHER PROVISIONS RE BONDS.

(a) All bonds issued by the city for a project shall be special obligations only of the city, payable solely from the revenues or from the other sources specified in the proceedings. In addition and without limitation to the other provisions of this division:

(1) The bonds may be executed and delivered by the city at any time and from time to time;

(2) The issuance by the city of one or more issues of bonds for one or more purposes shall not preclude it from issuing other bonds in connection with the same project or any other project, subject to such agreements with bondholders as may then exist;

(3) Any bonds of the city issued hereunder at any time outstanding may, at any time, and from time to time, be refunded by the city by the issuance of its refunding bonds in such amount as the city may deem necessary or appropriate. Bonds may be issued as one

issue for refunding and other authorized purposes. Any refunding may be effected whether the bonds to be refunded shall have then matured or shall thereafter mature, either by sale of the refunding bonds and the application of the bond proceeds to the purchase or redemption of the bonds to be refunded thereby, or by the exchange of the refunding bonds for the bonds to be refunded thereby with the consent of the holders of the bonds so to be refunded and with such cash adjustments as may be agreed, and regardless of whether or not the bonds proposed to be refunded shall be payable at the same date or different dates or shall be due serially or otherwise, and, notwithstanding any other provision of the law, the proceedings for the issuance of such refunding bonds may provide for the payment into an escrow fund such moneys, together with the interest to be earned thereon, which will be sufficient to pay the principal of and interest and premium, if any, on the bonds so refunded to the earliest or subsequent date of redemption, purchase or maturity of such refunded bonds; and

(4) Each bond shall be deemed to be an investment security under the Uniform Commercial Code as adopted by the state and a negotiable instrument, subject only to any provisions thereof for registration or other provisions restricting transfer, and shall be deemed to have been issued for an authorized purpose of the city in the exercise of the powers pursuant to this division, provided that the city so determines in the proceedings and such determination is recited in the bond.

(b) Bonds may be issued under a contract obligating the purchaser to advance funds as required by the city or may be issued for a consideration other than cash.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-116. SALE OF BONDS.

Bonds may be sold at such prices and in such manner as the Council may direct, at public or private sale and may be sold at, above or below the par or face value thereof.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-117. NO CITY DEBT.

(a) None of the bonds issued by the city pursuant to this division shall be deemed to constitute a debt or liability of the city, or a pledge of the faith and credit of the city, but shall be payable solely from the revenues and other funds, if any, provided therefor in the proceedings.

(b) The issuance of bonds shall not directly or indirectly or contingently obligate the city to levy or to pledge any form of taxation whatsoever therefor or to make any appropriation for their payment.

(c) All bonds shall contain on the face thereof a statement to the following effect:

"Neither the faith and credit nor the taxing power of the City of Fresno is pledged to the payment of the principal of, premium, if any, or interest on this bond, nor is the City of Fresno in any manner obligated to make any appropriation for payment."

(d) Neither the Council nor the officers and employees of the city nor any persons executing the bonds shall, in any event, be subject to any personal liability for the bonds or any personal liability or accountability by reason of the issuance of such bonds.

(e) The bonds shall be a special obligation of the city, and the city shall, under no circumstances, be obligated to pay bonds or project costs (other than administrative expenses), except from revenues and other funds received under the project agreements for such purposes, nor to pay administrative expenses except from funds received under project agreements for such purposes, or from funds which are made available as otherwise authorized by law. All bonds shall contain on the face thereof a statement of their special obligation nature.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-118. NET EARNINGS.

Any net earnings realized by the city pursuant to this division shall inure solely to the benefit of the city and not to the benefit of any company or other private person.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-119. MISCELLANEOUS.

(a) This division, being necessary for the welfare of the city and its inhabitants, shall be liberally construed to effect its purposes.

(b) The city pledges and agrees with the holders of any bonds issued, and with those companies which may enter into project agreements pursuant to the provisions of this division relating to such bonds, that the city will not amend this division so as to adversely affect vested rights of the holders of such bonds or the Companies executing project agreements relating thereto until the obligations evidenced by such bonds are fully met or discharged and such project agreements are fully performed or discharged on the part of the city; provided, however, that nothing herein contained shall preclude such alteration or change:

(1) If there will be no impairment of the contracts represented by such bonds, based upon a finding made by the Council and the receipt of appropriate opinions and evidence relating thereto;

(2) If, and when, adequate provision shall have been made for the protection from impairment of the contracts represented by such bonds and project agreements; or

(3) To amend this division so as to make it more efficient, cure ambiguities, defects, inconsistent provisions, clarify matters or questions arising under this division, take advantage of new legal or conceptual developments or otherwise improve this division and the application thereof to the benefit of the city and its citizens; and such right to so alter or change is hereby reserved.

(c) A validation action may be brought pursuant to the Code of Civil Procedure commencing with Section 860, or under any other applicable law or legal procedure, to determine the validity of bonds, proceedings, project agreements or indentures, including, without limiting

the generality of the foregoing, the legality of all proceedings theretofore taken, or proposed to be taken in such proceedings pursuant to this division and all of such matters respecting which an action may be brought pursuant to said Code of Civil Procedure proceedings or any other applicable law or legal procedure shall be subject to the provisions thereof regarding validity, limitation of actions and incontestability.

(d) This division provides a complete and alternative method for the doing of the things authorized hereby, but the authorizations shall be regarded as supplemental and additional to powers conferred by other laws; provided, however, that in the exercise of any of the powers conferred, including powers relating to the offer, issuance and sale of bonds, under the provisions of this division, the city need not comply with the provisions of any law applicable to the exercise of similar powers except as referred to in this division.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-120. OTHER ORDINANCES.

The city presently has no ordinances or parts of ordinances that are in conflict with this division.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-121. STATEMENT OF POLICY, SEVERABILITY.

The Council hereby declares that this division is an exercise of the power granted to the city by the Constitution and laws of the State of California and is an exercise by the city of its powers as to municipal affairs, and this division shall be liberally construed to be valid under the Constitution of the State of California and the Constitution of the United States of America. If any article, section, paragraph, subdivision, sentence, clause or phrase of this division shall for any reason be adjudged by any court of competent jurisdiction to be unconstitutional, unenforceable or invalid, such judgment shall not affect the validity of the remaining portion of this division. The Council hereby declares it would have adopted this division and each and every other article, section, paragraph, subdivision, sentence, clause or phrase hereof irrespective of the fact that any one or more article, sections, paragraphs, subdivisions, sentences, clauses or phrases of this division may be held to be unconstitutional, unenforceable or invalid.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 2 REVENUE BONDS—FINANCING INDUSTRIAL AND COMMERCIAL FACILITIES

Sec. 8-2-201. Title.
Sec. 8-2-202. Purpose.
Sec. 8-2-203. Nonoperation.
Sec. 8-2-204. Applications.
Sec. 8-2-205. Request for Applications, Publication, Advertisements.
Sec. 8-2-206. Criteria for Determining Public Benefit.
Sec. 8-2-207. Issuance of Bonds.

SEC. 8-2-201. TITLE.

This article may be cited as the City of Fresno Industrial Development Bond Law. (Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-202. PURPOSE.

The Council hereby finds and declares that it is necessary and essential to the well-being of the city that it provide financial assistance to promote the economic development of the city. Such economic development will serve the following public purposes and municipal affairs of the city:

(a) The full and gainful employment of residents of the city;

(b) The full and efficient utilization and modernization of existing industrial, commercial and business facilities;

(c) The development of new industrial, commercial and business facilities;

(d) The growth of the city's tax base through increased property values and consumer purchasing;

(e) The reduction of the need for and costs of welfare and other remedial programs;

(f) The reduction of urban ills, such as crime, attributable in part to inadequate economic opportunities;

(g) The stability and diversification of the city's economy;

(h) The environmentally optimum disposition of waste materials of the city; and

(i) The enhancement of the general economic prosperity, health, safety and welfare of the residents of the city.

The availability of the financial assistance authorized by this article will serve those purposes and the general plan of the city by providing private enterprises with new methods of financing capital outlays in the city and by ensuring that economic development within the city will reflect the local community's needs and objectives and will be environmentally optimum with respect to both the physical and social environment of the city. The city shall

promote such public interests pursuant to this article without adversely affecting areas outside the city and without conflicting with efforts by the State of California to solve problems of statewide concern.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-203. NONOPERATION.

The city shall not have the power to operate any facilities as a business.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-204. APPLICATIONS.

Notwithstanding the requirements in Article 1 of this division, the application shall include the following:

(a) An estimate of the maximum amount of bonds proposed to be issued, of the sources of amounts otherwise required for the project, and an itemization of the estimated costs and any other expenses;

(b) The application shall be supplemented with a commitment by the company to comply, and/or to assist the city in complying, with all state and federal laws in the issuance of the bonds, including, without limitation, the making of any required application to a governmental department, for authorization, qualification or registration of the offer, issuance or sale of the bonds, and any amendments thereto, and any permit or other authorization of such governmental department, prior to the delivery by the city of such bonds;

(c) The application shall be supplemented with a commitment by the company to cause and/or to assist the city in causing to be printed any prospectus or other written or printed communication proposed to be published in connection with the issuance, offer or sale of bonds, prior to the delivery by the city of such bonds, and, if deemed necessary by the city, following the delivery of such bonds;

(d) All commitments by the company shall specifically provide for the company to pay all expenses in connection with the issuance, offer or sale of the bonds, whether or not they are finally issued, to hold the city harmless from any and all expenses and liabilities related thereto and to pay items on an ongoing basis so that neither the city, nor its advisors, attorneys, employees and the like will accumulate any claims against the city; and

(e) All additional information, agreements and undertakings as the city may require which are submitted to the city by a company shall be reproduced in written, printed or other tangible form, shall be supplied in as many copies as the city prescribes and shall be deemed supplements or amendments to the application.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-205. REQUEST FOR APPLICATIONS, PUBLICATION, AND ADVERTISEMENTS.

Upon this article becoming effective, the City Clerk shall publish in a newspaper of general circulation within the city, a notice setting forth substantially the following:

(a) that the city has duly adopted and approved this article seeking to promote industrial growth within the city so as to encourage increasing long-term employment for the residents thereof;

(b) that on and after the effective date of this article, the city will accept applications on forms approved by the city from companies interested in entering into project agreements for the financing of facilities hereunder; and

(c) that the city will review such applications and determine the feasibility of each project so submitted, and will undertake to commence the financing thereof as soon as practicable.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-206. CRITERIA FOR DETERMINING PUBLIC BENEFIT.

(a) If the Council determines that the public benefit of the project outweighs the public detriment of the project, it may make an affirmative determination that the project will accrue a public benefit.

(b) In determining public benefit of the project, the Council shall consider whether it is likely that the undertaking of the project by the city will be a substantial factor in the accrual of broadened employment opportunities for residents of the city. The Council may also consider whether it is likely that the undertaking of the project by the city will accrue any of the following public purposes:

(1) Broadening the tax and revenue base of the city;

(2) Reducing the number of people receiving public assistance in its various forms;

(3) Reducing crime and juvenile delinquency;

(4) Promoting urban renewal;

(5) Promoting greater balance in the economy by increasing the manufacturing and industrial base of the city;

(6) Training unemployable persons for employment and upgrading the skills of the unemployed; and

(7) Such other factors as the Council deems appropriate.

(c) In determining the public detriment of the project, the Council shall consider whether it is likely that the undertaking of the project by the city will accrue any of the following public detriment:

(1) Increasing the cost of furnishing municipal services, including without limitation, transportation, police and fire services;

(2) Increasing the demands upon the city's sewer and water facilities beyond the design capacity sufficient to accommodate the project; and

(3) Such other factors that the Council deems appropriate.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-207. ISSUANCE OF BONDS.

The city may, from time to time, issue bonds pursuant to the procedures set forth in Article 1 of this division for any projects which satisfy the following criteria:

(a) Are issued as part of an issue, all or a major portion of the proceeds of which are to be used directly or indirectly in any trade or business carried on by any person who is not an exempt person within the meaning of the Internal Revenue Code of 1954, as amended; and

(b) The payment of the principal or interest on which (under the terms of such obligation or any underlying arrangement) is, in whole or in major part:

(1) Secured by any interest in property used, or to be used, in a trade or business or in payments in respect of such property; or

(2) To be derived from payments in respect of property, or borrowed money, used or to be used in a trade or business; and

(c) Are issued as part of an issue substantially all of the proceeds of which are to be used, with respect to any one or more of such facilities (none of which shall be deemed to be restricted in scope because of the provisions of any other state law) to provide:

(1) For the acquisition or development of land as the site for an industrial park; or

(2) For any facilities meeting the criteria set forth in subsection (b) above which the city can finance hereunder under the exemptions in the Internal Revenue Code of 1954, as amended, commonly known as the "small issue exemptions;"

(3) Residential property as provided in the Mortgage Subsidy bond Tax Act of 1980;

(4) Sports facilities;

(5) Convention or trade show facilities;

(6) Airports, docks, wharves, mass commuting facilities, parking facilities, or storage or training facilities directly related to any of the foregoing;

(7) Sewage or solid waste disposal facilities or facilities for the local furnishing of electric energy or gas;

(8) Air or water pollution control facilities;

(9) Facilities for the furnishing of water for any purpose if:

(i) The water is or will be made available to members of the general public (including electric utility, industrial, agricultural, or commercial users); and

(ii) Either the facilities are operated by a governmental unit or the rates for the furnishing or sale of the water have been established or approved by the State or political subdivision thereof, by an agency or instrumentality of the United States, or by a public service or public utility commission or other similar body of the State or political subdivision thereof; or

(10) For any other facilities which the city can finance hereunder without violating the applicable federal laws and regulations promulgated thereunder pertaining to industrial development bonds. For purposes of this article, the definitions of the words "bonds" and "bond" as used in this division, shall be construed to include all of the types of industrial development bond facilities that can be financed on a tax-exempt basis under the applicable federal laws and the regulations promulgated thereunder, the details thereof, although also incorporated in such laws and regulations, being omitted herein for the sake of brevity; and, it is intended that the definition in this article will be amended to correspond with any changes in said federal laws (but not in the regulations or in the details of such laws). It is not intended, by including any of the above definitions, to contravene any provisions of the Charter and such definitions shall not be so construed. Furthermore, some of the above items are furnished by privately owned public utilities or private concerns, and it is not intended to, nor shall any proceedings be conducted under those provisions, without the consent of the privately owned public utility or other private concern involved, as the case may be; or

(d) Are issued as part of an issue substantially all of the proceeds of which are to be used, with respect to any one or more of such facilities (none of which shall be deemed to be restricted in scope because of the provisions of any other state law) to provide facilities (for example, hospitals) which are to be used directly or indirectly in any trade or business carried on by any person who is an exempt person within the meaning of the Internal Revenue Code of 1954, as amended; and any company who so qualifies as an exempt person may submit an application for financing hereunder; and any company who does not so qualify as an exempt person may submit an Application for financing of facilities for operation by such an exempt person, it being the intent of this article to encourage all enterprises, either within or without the city, which broaden the employment opportunities for residents of the city and which serve the residents of the city and so make it a more attractive place for industrial and commercial ventures. While bonds issued to provide facilities described in this subsection (d) do not fall within the definition of "industrial development bonds" as set forth in the Internal Revenue Code of 1954, as amended, and the regulations promulgated thereunder, such

bonds shall be treated as industrial development bonds for purposes of this article and may be issued substantially in the manner set forth herein pursuant to appropriate proceedings being taken therefor.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 3 REVENUE BONDS—HISTORICAL REHABILITATION FINANCING PROGRAM

Sec. 8-2-301. Title.
Sec. 8-2-302. Purpose.
Sec. 8-2-303. Definitions.
Sec. 8-2-304. Loans for Historical Rehabilitation.
Sec. 8-2-305. Refinancing Loans for Historical Rehabilitation.
Sec. 8-2-306. Procedures for Selection and Financing of Rehabilitation Projects.
Sec. 8-2-307. Prior Inducement.
Sec. 8-2-308. Issuance of Bonds.

SEC. 8-2-301. TITLE.

This article may be cited as the City of Fresno Historical Rehabilitation Financing Program.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-302. PURPOSE.

The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the city to be authorized to provide financing for the rehabilitation of properties of historic, cultural or architectural significance. Unless the city provides loans for the rehabilitation of such properties, many of them will continue to deteriorate at an accelerated rate because loans from private sources are either not sufficiently available or at appropriate interest rates for their rehabilitation. It is the policy of the city to encourage the preservation, protection, restoration and rehabilitation of the historic, cultural, and architectural resources of the areas of the city duly identified as historical rehabilitation areas through the use of rehabilitation loans.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-303. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Chapter 1, Article 2, and Chapter 8, Division 2, Article 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Financing" means the lending of money for the purpose of rehabilitation of historical properties and includes refinancing of outstanding indebtedness of the participating party with respect to property which is subject to historical rehabilitation or the purchase of historical properties rehabilitated by the Redevelopment Agency of the city.

(c) "Historical property" means property designated as an historic structure pursuant to Chapter 12 of this Code or property listed in the National Register of Historic Places. Historical property is a facility within the meaning of Article 1 of this division.

(d) "Historical rehabilitation" means the reconstruction, restoration, renovation or repair of the interiors or exteriors of historical properties or their relocation for the purposes of restoring or preserving their historical or architectural authenticity, preventing their deterioration or destruction, continuing their use, providing for their feasible reuse, or providing for the safety of the occupants or passersby. "Historical rehabilitation" includes but is not limited to the repairing of architectural facades or ornamentation; removal of inappropriate additions or materials; replacement of facades, ornamentation or architectural elements previously removed, repairing of roofs, foundations and other essential structural elements; or any work done on a historical property in order to comply with rehabilitation standards. "Historical rehabilitation" does not include the purchase, installation or restoration of furnishings.

(e) "Participating party" means a person who, pursuant to the provisions of this article, undertakes the financing of the rehabilitation of historical property within the city. Participating party is a company within the meaning of Article 1 of this division.

(f) "Rehabilitation standards" means the applicable local or state standards for the rehabilitation of historical properties, including any higher standards adopted by the city as part of the program, including standards established pursuant to Health and Safety Code Sections 18950 to 18961, as amended.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-304. LOANS FOR HISTORICAL REHABILITATION.

The city may make, purchase or otherwise contract for the making of a mortgage or other secured or unsecured loan upon such terms and conditions as the city shall deem proper to any participating party for the financing of the cost of historic rehabilitation of historical property.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-305. REFINANCING LOANS FOR HISTORICAL REHABILITATION.

The city may make, purchase or otherwise contract for the making of a mortgage or other secured or unsecured loan, upon such terms and conditions as the city shall deem proper, to any participating party to refund or refinance outstanding obligations of such participating party incurred to finance the costs of historical rehabilitation or to finance the purchase of the property to be rehabilitated, including expenses incident to paying or otherwise discharging the obligations to be refunded or refinanced, whether such obligations were incurred prior to or after the enactment of this article, if the city finds that such refunding or refinancing is in the public interest and either alleviates a financial or operating hardship of such participating party or is necessary or appropriate in connection with other financing by the city for such participating party.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-306. PROCEDURES FOR SELECTION AND FINANCING OF REHABILITATION PROJECTS.

Any historical property may be selected for financing pursuant to this article as follows:

(a) The Council shall by resolution describe such property, find and determine that such property meets one or more of the criteria set forth herein; the funds loaned for the financing of such property shall be used for the purpose of financing historical rehabilitation, and the financing of such property is economically feasible.

(b) Loans made to any participating party to provide financing for the purpose of historical rehabilitation may include all costs and expenses customarily included in a real property financing transaction, including, without limitation, direct construction costs including contractor's overhead and profit allowance, architectural and engineering fees and expenses, site surveys, legal and accounting fees, insurance premiums, real estate commissions, leasing commissions, development fees, construction period interest reserve, construction period repairs, maintenance and taxes, construction loan origination fee, permanent loan origination fee, market fees, feasibility costs, financial consultant's fees, construction loan commitment fees, permanent loan commitment fees, revenue bond issuance and underwriting expenses charged to the borrower, historical consultant fees, appraisal fees, interior design, organization expenses and marketing, advertising and promotional expenses.

(c) The historical rehabilitation of such property shall be constructed or completed subject to the rules and regulations of the city, as required by this chapter or contained in the project agreement and all applicable rehabilitation standards.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-307. PRIOR INDUCEMENT.

The city hereby determines and declares that this article is adopted to provide a procedural means of facilitating the financing of historical rehabilitation, including facilities heretofore determined to be eligible for such financing and as to which inducement resolutions have heretofore been adopted.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-308. ISSUANCE OF BONDS.

The city may, from time to time, issue bonds pursuant to the procedures set forth in Article 1 of this division for any of the purposes specified in Sections 8-2-304 and 8-2-305.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 4 REVENUE BONDS—HEALTH FACILITIES FINANCING LAW

Sec. 8-2-401. Title.
Sec. 8-2-402. Purpose.
Sec. 8-2-403. Definitions.
Sec. 8-2-404. Loans for Health Facilities.
Sec. 8-2-405. Refinancing Loans for Health Facilities.
Sec. 8-2-406. Acquisition, Construction, Leasing and Selling of Health Facilities.
Sec. 8-2-407. Issuance of Bonds.

SEC. 8-2-401. TITLE.

This article may be cited as the City of Fresno Health Facilities Financing Law.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-402. PURPOSE.

The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the city to be authorized to provide financing to health institutions within the city that provide essential services to residents of the city in order to aid such health institutions in containing costs and thereby to enable such health institutions to establish lower rates and charges than would otherwise prevail and to provide better service at such rates and charges. Unless the city intervenes to provide such financing, such rates and charges may increase at an ever accelerated pace because such health institutions cannot obtain financing at equivalent cost from private sources.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-403. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Chapter 1, Article 2 and Chapter 8, Division 2, Article 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Health facility" means any facility, place or building within the city which is maintained and operated for the diagnosis, care, prevention and treatment of human illness, physical or mental, including convalescence, rehabilitation and care during and after pregnancy or for any one or more of these services, and which provided and will continue providing to residents of the city essential health care services as specified in a project agreement between the city and the participating health institution providing or operating such facility, place or building. Health facility is a Facility within the meaning of Article 1 of this division.

Health facility includes a portion of one of the above types of facilities and includes, without limitation, the following facilities if operated in conjunction with one of the above types of facilities: Laboratory, laundry, nurses' or interns' residence, housing facility for patients, staff or employees and the families of any of them, administration building, office, research, maintenance, storage, utility or parking facility and all real and personal property, land, buildings, structures, facilities, machinery, equipment, fixtures and furnishings related to any of the foregoing or required or useful or the operation of a health facility.

Health facility shall not include any facility, place or building used or to be used primarily for sectarian instruction or study or as a place for devotional activities or religious worship.

(c) "Participating health institution" means a private nonprofit corporation or association authorized by the laws of the State to provide or operate a health facility as defined in this article and which, pursuant to the provisions of this article, undertakes the financing of the acquisition, construction, rehabilitation or improvement of a health facility or undertakes a refunding or refinancing of obligations incurred to finance such acquisition, construction, rehabilitation or improvement. Participating health institution is a company within the meaning of Article 1 of this division.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-404. LOANS FOR HEALTH FACILITIES.

The city may make, purchase or otherwise contract for the making of a mortgage or other secured or unsecured loan, upon such terms and conditions as the city shall deem proper, to any participating health institution for the costs of a health facility.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-405. REFINANCING LOANS FOR HEALTH FACILITIES.

The city may make, purchase or otherwise contract for the making of a mortgage or other secured or unsecured loan, upon such terms and conditions as the city shall deem proper, to any participating health institution to refund or refinance outstanding obligations of such participating health institution incurred to finance the costs of a health facility, including expenses incident to paying or otherwise discharging the obligations to be refunded or refinanced, whether such obligations were incurred prior to or after the enactment of this article, if the city finds that such refunding or refinancing is in the public interest and either alleviates a financial or operating hardship of such participating health institution, or is necessary or appropriate in connection with other financing by the city for such participating health institution, or may be expected to result in lower costs of health care than would otherwise prevail and a saving to third parties, including government, and to others who must pay for care, or any combination thereof.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-406. ACQUISITION, CONSTRUCTION, LEASING AND SELLING OF HEALTH FACILITIES.

The city may acquire, construct, enlarge, remodel, renovate, alter, improve, furnish, equip, own and lease as lessee a health facility for the purpose of selling or leasing such health facility

to a participating health institution, and may contract with such participating health institution to undertake on behalf of the city to construct, enlarge, remodel, renovate, alter, improve, furnish and equip such health facility.

The city may sell or lease, upon such terms and conditions as the city shall deem proper, to a participating health institution any health facility owned by the city under this article, including a health facility conveyed to the city in connection with a financing under this article but not being financed or refinanced hereunder.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-407. ISSUANCE OF BONDS.

The city may, from time to time, issue bonds pursuant to the procedures set forth in Article 1 of this division for any of the purposes specified in this article.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 5 REVENUE BONDS—MULTIFAMILY HOUSING REVENUE BOND LAW

Sec. 8-2-501. Title.
Sec. 8-2-502. Purpose.
Sec. 8-2-503. Definitions.
Sec. 8-2-504. Program Loans.
Sec. 8-2-505. Fees.
Sec. 8-2-506. Terms and Conditions.
Sec. 8-2-507. Servicing.
Sec. 8-2-508. Security for Loans.
Sec. 8-2-509. Acquisition and Disposition of Real Property.
Sec. 8-2-510. Additional Powers.
Sec. 8-2-511. Rehabilitation Areas.
Sec. 8-2-512. Issuance of Bonds.
Sec. 8-2-513. Indemnification.

SEC. 8-2-501. TITLE.

This article may be cited as the City of Fresno Multifamily Housing Revenue Bond Law.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-502. PURPOSE.

(a) The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the city to be authorized to finance residential rehabilitation in depressed residential areas within the city in order to encourage the upgrading of property in such areas. Unless the city intervenes to provide some form of assistance to finance residential rehabilitation, many such depressed residential areas will deteriorate at an ever accelerated pace because property owners cannot obtain rehabilitation loans from private sources.

(b) The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the city to finance residential construction to encourage the development of adequate multifamily housing for persons and families of low or moderate income, and to develop viable communities by providing decent housing, enhanced living environments, and increased economic opportunities for persons and families of low or moderate income.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-503. DEFINITIONS.

The definitions and provisions contained in Chapter 8, Division 2, Article 1 of this Code shall govern the construction, meaning, and application of this article unless the particular provisions or the context otherwise required.

(a) "Area median income" means the median household income within the city, as adjusted for family size, as determined by the city. Nothing in this definition shall prevent the city from adopting federal or state estimates of area median income for the city or for the standard metropolitan statistical area which includes the city, or federal or state formulas for the adjustment of area median income for family size.

(b) "Participating party" means any person, company, corporation, partnership, firm, local agency, political subdivision of the state or other entity or group of entities eligible to receive a loan pursuant to the terms of this division. No elective officer of the city shall be eligible to be a participating party. A participating party is a company within the meaning of Article 1 of this division.

(c) "Persons and families of low income" means persons and families whose income does not exceed 80 per cent of area median income.

(d) "Persons and families of low or moderate income" means persons and families whose income does not exceed 120 per cent of area median income, or any higher percentage of area median income upon a determination by the Council that such amount of income is too low to qualify a substantial number of persons and families who can afford the rental or purchase of residences financed pursuant to this division.

(e) "Program loan" means any loan made pursuant to this article for any purpose specified in Section 18-504.

(f) "Qualified mortgage lender" means any mortgage lender authorized by the city to aid the city pursuant to this article. A qualified mortgage lender may be a state or national bank, federal- or state-chartered savings and loan association, trust company, mortgage banker or other financial institution.

(g) "Rehabilitation" means the reconstruction, renovation, replacement, extension, repair, betterment, equipping, developing, embellishing or otherwise improving of existing residences consistent with standards of strength, effectiveness, fire-resistance, durability and safety so that such structures are satisfactory and safe to occupy for residential purposes and are not conducive to ill health, transmission of disease, infant mortality, juvenile delinquency and crime because of any one or more of the following factors:

(1) Defective design and character of physical construction;

(2) Faulty interior arrangement and exterior spacing;

(3) Inadequate provision for ventilation, lighting and sanitation; or

(4) Obsolescence, deterioration and dilapidation.

(h) "Rehabilitation area" means any area so designated by the city pursuant to Section 8-2-511 or any area designated by the city as a residential rehabilitation area pursuant to a comprehensive residential rehabilitation financing program adopted pursuant to the provisions of the Marks-Foran Residential Rehabilitation Act of 1973 as set forth in the Health and Safety Code 37910 to 37964, as amended.

(i) "Rehabilitation standards" means the applicable local or state standards for the rehabilitation of residences located in residential rehabilitation areas, including any higher standards adopted by the city.

(j) "Residence" means real property improved with a multifamily rental housing development, which development may contain commercial space to the extent consistent with the purposes of this article. Residence is a Facility within the meaning of Article 1 of this division.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-504. PROGRAM LOANS.

The city may make, purchase from qualified mortgage lenders, or otherwise contract with qualified mortgage lenders for the making of loans, upon such terms and conditions as the city shall deem proper, to any participating parties for any of the following purposes:

(a) To finance the rehabilitation of residences, or the acquisition of newly rehabilitated residences, located within a rehabilitation area, subject to the following limitations:

(1) No more than 40 per cent of any such loan may be used for rehabilitation which is not required under the rehabilitation standards.

(2) Loans may not be made for the purpose of refinancing outstanding indebtedness with respect to a residence which has been or will be subject to rehabilitation, or for the purpose of financing the cost of acquisition of a residence which has been or will be subject to rehabilitation, unless the cost, including in such costs any amounts previously expended for rehabilitation of such residence within a rehabilitation area established at the time of such expenditure, of meeting the rehabilitation standards is at least 20 per cent of the principal amount of the loan.

(b) To finance the acquisition, construction or rehabilitation by any participating party of a residence, the occupancy of at least 30 per cent of the dwelling units in which will be limited to persons and families of low or moderate income, or the occupancy of at least 15 per cent of the dwelling units in which will be limited to persons of low income.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-505. FEES.

The city may fix fees, charges and interest rates for program loans in the Master Fee Resolution and may from time to time as appropriate revise such fees, charges and interest rates to reflect changes in interest rates on the city's bonds, losses due to defaults, changes in program loan servicing charges or changes in other expenses related to the program loans, including city administrative expenses.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-506. TERMS AND CONDITIONS.

The city may fix the character, terms and conditions upon which program loans may be made. Program loans made to participating parties by qualified mortgage lenders shall be of such character and on such terms and conditions as previously established by the city.

(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-507. SERVICING.

The city may fix fees for servicing of program loans, or may itself undertake, or may contract to pay any person, partnership, association, corporation or public agency for such servicing.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-508. SECURITY FOR LOANS.

The city may hold deeds of trust or mortgages as security for program loans and may pledge or assign the same as security for repayment of bonds. Such deeds of trust or mortgages may be assigned to, and held on behalf of the city by, any bank or trust company appointed to act as trustee by the city in any resolution of issuance providing for issuance of bonds.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-509. ACQUISITION AND DISPOSITION OF REAL PROPERTY.

The city may acquire by deed, purchase, lease, contract, gift, devise or otherwise any real or personal property, structures, rights, rights-of-way, franchises, easements and other interest in lands necessary or convenient for the purposes of this article, upon such terms and conditions as it deems advisable, and may lease, sell or dispose of the same in such manner as may be necessary or desirable to carry out the purposes of this article, upon such terms and conditions as may be established by the city.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-510. ADDITIONAL POWERS.

In addition to all other powers specifically granted by this article, the city may do all things necessary or convenient to carry out the purposes of this article.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-511. REHABILITATION AREAS.

The Council may by resolution designate an area within the city as a rehabilitation area upon making the following findings:

(a) There are a substantial number of deteriorating structures in the area which do not conform to community standards for decent, safe and sanitary housing.

(b) Financial assistance from the city for rehabilitation is necessary to arrest the deterioration of the area, and

(c) Financing of residential rehabilitation in the area is economically feasible.

Concurrently with any such designation, the city shall adopt a plan for such public improvements as are necessary to successful rehabilitation of such rehabilitation area.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-512. ISSUANCE OF BONDS.

The city may, from time to time, issue bonds pursuant to the procedures set forth in Article 1 of this division for any of the purposes specified in Section 8-2-504.
(Added Ord. 81-61, § 1, eff. 6-26-81; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-513. INDEMNIFICATION.

Developers, owners or participating parties of multifamily housing projects, the acquisition, construction, rehabilitation or development of which was financed from the proceeds of revenue bonds issued by the city and subsequently refinanced from the proceeds of revenue refunding bonds issued by the city shall indemnify, hold harmless and defend the city, its officers, officials, agents, employees, advisors and counsel for all loss, liability, costs and damages arising for any reason out of the issuance of any such refunding bonds. Such indemnification shall include all litigation expense, costs and attorneys' fees incurred by the city, its agents and employees.
(Added Ord. 94-5, § 1, eff. 2-11-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 6 REVENUE BONDS—INDUSTRIAL DEVELOPMENT AUTHORITY

Sec. 8-2-601. Title.
Sec. 8-2-602. Purpose.
Sec. 8-2-603. Board of Directors.

SEC. 8-2-601. TITLE.

This article may be cited as the Fresno Industrial Development Authority Law.
(Added Ord. 83-12, § 1, eff. 2-18-83; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-602. PURPOSE.

It is hereby found and declared, pursuant to Government Code Section 91520 of the California Industrial Development Act (hereinafter, the "Act"), that there is a need for the Industrial Development Authority of the City of Fresno created by said Section 91520; that such Authority shall function in the city, and said Authority is hereby authorized to transact business and to exercise all powers permitted by law. The Authority established in the city by the Act and authorized to transact business and exercise its powers thereunder by this article shall be known as the "Industrial Development Authority of the City of Fresno."
(Added Ord. 83-12, § 1, eff. 2-18-83; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-603. BOARD OF DIRECTORS.

The Council hereby declares itself to be the Board of Directors of such Industrial Development Authority, and all the rights, powers, privileges, duties, liabilities, disabilities, and immunities vested in such a board under the Act shall be vested in the Council as such a board.
(Added Ord. 83-12, § 1, eff. 2-18-83; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 7 REVENUE BONDS—MUNICIPAL IMPROVEMENTS REVENUE BOND LAW

Sec. 8-2-701. Title.
Sec. 8-2-702. Powers.
Sec. 8-2-703. Modifications to Revenue Bond Law of 1941.

SEC. 8-2-701. TITLE.

The Revenue Bond Law of 1941 commencing with Section 54300 of the Government Code (the "Revenue Bond Law of 1941") as enacted and as hereafter amended, is hereby adopted by the city as the Municipal Improvements Revenue bond Law, and all provisions of the Revenue Bond Law of 1941 shall be included in the Municipal Improvements Revenue Bond Law, except as provided below.
(Added Ord. 84-83, § 1, eff. 7-13-84; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-702. POWERS.

The city is recognized to have and shall exercise all powers pursuant to and as may be limited by the charter and the laws of the State of California which are necessary or appropriate for carrying out the purposes of this article, including, without limitation, the power to issue bonds for the purposes specified in the Revenue bond Law of 1941.
(Added Ord. 84-83, § 1, eff. 7-13-84; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-2-703. MODIFICATIONS TO REVENUE BOND LAW OF 1941.

(a) Government Code Section 54342 is amended to read, for purposes of inclusion in the Municipal Improvements Revenue bond Law: "A local agency may operate, maintain, repair or manage all or any part of any enterprise, including the leasing of any enterprise for commercial purposes."

(b) The Municipal Improvements Revenue bond Law shall not include Government Code Sections 54380 through 54388, 54403 or 54418.

(c) Government Code Section 54416 is amended to read, for purposes of inclusion in the Municipal Improvements Revenue bond Law: "The legislative body may issue and sell the bonds in the manner it determines, at public or private sale, at or below par, and at the interest rate fixed by the purchaser and approved by the legislative body."
(Added Ord. 84-83, § 1, eff. 7-13-84; Am. Ord. 2007-97, § 2, eff. 1-19-08).

DIVISION 3. JUDGMENT OBLIGATION LAW

Article 1. Judgment Obligation Law - General Provisions and Definitions
Article 2. Judgment Obligation Law - Issuance of Bonds To Finance Judgments
Article 3. Judgment Obligation Law - Miscellaneous Provisions

ARTICLE 1 JUDGMENT OBLIGATION LAW—GENERAL PROVISIONS AND DEFINITIONS

Sec. 8-3-101. Title.
Sec. 8-3-102. Purpose.
Sec. 8-3-103. Definitions.

SEC. 8-3-101. TITLE.

This division may be cited as the City of Fresno Judgment Obligation bond Law.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-102. PURPOSE.

The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the city to be authorized to pay and discharge money judgments and other legal monetary obligations of the city in the interests of the public health, safety and welfare.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-103. DEFINITIONS.

Unless the context otherwise requires, the following definitions shall govern the construction of this division:

(a) "Bonds" means any bonds, notes, interim certificates, debentures or other obligations issued by the city pursuant to this division, which are payable from any available funds of the city.

(b) "Council" means the Council of the City.

(c) "Judgment" means the decree of a court of law or equity, or a court approved settlement, for a sum of money or the payment of a sum of money, creating a legal and enforceable obligation of the city.

(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 2 JUDGMENT OBLIGATION LAW—ISSUANCE OF BONDS TO FINANCE JUDGMENTS

Sec. 8-3-201. General Powers.
Sec. 8-3-202. Authorization Of Bonds.
Sec. 8-3-203. Proceedings Authorizing Issuance; Public Or Private Sales.
Sec. 8-3-204. Application Of Proceeds Of Bonds.
Sec. 8-3-205. Trust Agreement.
Sec. 8-3-206. Insurance Or Credit Enhancement.
Sec. 8-3-207. Bonds And Investments; Contracts To Place On Interest Rate, Cash Flow, Or Other Basis.
Sec. 8-3-208. Personal Liability.
Sec. 8-3-209. Refunding Bonds.
Sec. 8-3-210. Repayment of Bonds.

SEC. 8-3-201. GENERAL POWERS.

The city is authorized and empowered:

(a) To issue bonds for the purpose of paying and discharging any judgment authorized by this division and for the purpose of refunding bonds.

(b) To employ or contract for such legal, consultant, underwriting, economic feasibility, or other services in connection with the bonds, as may be necessary in the judgment of the Council for the successful financing of the issuance and sale of bonds.

(c) In addition to all other powers specifically granted in this division, to do all things necessary or convenient to carry out the purposes of this division.

(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-202. AUTHORIZATION OF BONDS.

The city may issue its bonds for the purpose of financing the payment of judgments as authorized by this division. Every issue of bonds shall be payable from any available funds of the city.

(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-203. PROCEEDINGS AUTHORIZING ISSUANCE; PUBLIC OR PRIVATE SALES.

(a) The proceedings of the city authorizing the issuance of the bonds may provide all of the following for the bonds:

(1) The form of the bonds, which may be issued as serial bonds, term bonds, or installment bonds, or any combination thereof.

(2) The date or dates to be borne by the bonds.

(3) The time or times of maturity of the bonds.

(4) The interest, fixed or variable, to be borne by the bonds.

(5) The time or times that the bonds shall be payable.

(6) The denominations, form, and the registration privileges of the bonds.

(7) The manner of execution of the bonds.

(8) The place or places the bonds are payable.

(9) The terms of redemption of the bonds.

(10) Any other terms and conditions deemed necessary by the city.

(b) The bonds may be sold at either a public or private sale and for such prices as the Council shall determine.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-204. APPLICATION OF PROCEEDS OF BONDS.

The proceeds of the bonds may be applied to pay and discharge any Judgment, together with all costs of issuing the bonds, including any bond reserve funds which the city determines to be reasonably required, and the costs of any insurance or other credit enhancement authorized by Section 8-3-206.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-205. TRUST AGREEMENT.

In the discretion of the Council, any bonds issued under the provisions of this division may be secured by a trust agreement or indenture by and between the city and a corporate trustee or trustees, which may be any trust company or bank having the powers of a trust company within or without the state. Such trust agreement or indenture may contain such provisions for protecting and enforcing the rights and remedies of the bond owners as may be reasonable and proper and not in violation of law. Any such trust agreement or indenture may set forth the rights and remedies of the bond owners and of the trustee or trustees, and may restrict the individual right of action by bond owners. In addition to the foregoing, any such trust agreement or indenture may contain such other provisions as the Council may deem reasonable and proper for the security of the bond owners.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-206. INSURANCE OR CREDIT ENHANCEMENT.

The city may obtain insurance or other credit enhancement of the bonds and may enter into any credit, reimbursement agreement or other agreement with any person or entity. The agreement shall contain the terms of the credit, reimbursement, interest rate, security, and any other terms the city deems necessary or appropriate.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-207. BONDS AND INVESTMENTS; CONTRACTS TO PLACE ON INTEREST RATE, CASH FLOW, OR OTHER BASIS.

In connection with, or incidental to, the issuance or carrying of the bonds, the city may enter into any contracts which the city determines to be necessary or appropriate to place the obligation, as represented by the bonds, in whole or in part, on the interest rate, cash flow, or other basis desired by the city, including, without limitation, contracts commonly known as interest swap agreements, forward payment conversion agreements, futures, or contracts providing for payments based on levels of, or changes in, interest rates, stock or other indices, or contracts to exchange cash flows or a series of payments, or contracts, including, without limitation, interest rate floors or caps, options, puts or calls to hedge payment, rate, spread, or similar exposure. These contracts and arrangements shall be entered into with the parties, selected by the means, and contain the payment, security, default, remedy, and other terms and conditions, determined by the city, after giving due consideration for the creditworthiness of the counterparties, where applicable, including any rating by a nationally recognized rating agency or any other criteria as may be appropriate.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-208. PERSONAL LIABILITY.

Neither the members of the Council nor any person executing the bonds shall be liable personally on the bonds or be subject to any personal liability or accountability by reason of the issuance thereof.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-209. REFUNDING BONDS.

The Council may provide for the issuance of bonds any portion of which is to be used for the purpose of refunding outstanding bonds, including the payment of the principal thereof and interest and redemption premiums, if any, thereon. The proceeds of bonds issued to refund any outstanding bonds may, in the discretion of the Council, be applied to the retirement of such outstanding bonds at maturity, or the redemption (on any redemption date) or purchase of such outstanding bonds prior to maturity, upon such terms and subject to such conditions as the Council shall deem advisable.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-210. REPAYMENT OF BONDS.

The principal and any premium of, and interest on, the bonds shall be payable from any available funds of the city. The issuance of bonds shall not directly, indirectly or contingently obligate the Council to levy or pledge any form of taxation.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 3 JUDGMENT OBLIGATION LAW—MISCELLANEOUS PROVISIONS

Sec. 8-3-301. Liberal Construction.
Sec. 8-3-302. Provisions Of This Chapter Are Complete, Additional And Alternative.
Sec. 8-3-303. Actions To Determine Validity Of Bonds And Proceedings.
Sec. 8-3-304. Division Controlling.
Sec. 8-3-305. Partial Invalidity.

SEC. 8-3-301. LIBERAL CONSTRUCTION.

This division, being necessary for the health, welfare and safety of the city and its residents, shall be liberally construed to effect its purposes. Furthermore, the Council hereby declares that this division is an exercise of the power granted to the city by the Charter and the California Constitution; is an exercise by the city of its powers as to municipal affairs and its police powers; and this division shall be liberally construed to uphold its validity under the laws of the State.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-302. PROVISIONS OF THIS DIVISION ARE COMPLETE, ADDITIONAL AND ALTERNATIVE.

This division shall be deemed to provide a complete, additional and alternative method for doing the things authorized hereby, and shall be regarded as supplemental and additional to the powers conferred by other laws. The issuance of bonds and the entering into of any credit, reimbursement or other agreement under the provisions of this division need not comply with the requirements of any other law applicable to the issuance of bonds. The purposes authorized hereby may be effectuated and bonds are authorized to be issued for any such purposes under this division notwithstanding that any other law may provide for such purposes or for the issuance of bonds for like purposes and without regard to the requirements, restrictions, limitations or other provisions contained in any other law.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-303. ACTIONS TO DETERMINE VALIDITY OF BONDS AND PROCEEDINGS.

Review An action may be brought pursuant to Chapter 9 (commencing with Section 860) of Title 10 of Part 2 of the Code of Civil Procedure to determine the validity of bonds and the legality and validity of all proceedings previously taken and proposed to be taken for the authorization, issuance, sale, and delivery of the bonds, for entering into any credit, reimbursement or other agreement in connection therewith, for the use of the proceeds of the bonds, and for the payment of the principal thereof and interest thereon.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-304. DIVISION CONTROLLING.

To the extent that the provisions of this division are inconsistent with the provisions of any general statute or special act or parts thereof, the provisions of this division shall be deemed controlling.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-3-305. PARTIAL INVALIDITY.

If any section, paragraph, sentence, clause or phrase of this division shall for any reason be held illegal or unenforceable, such holding shall not affect the validity of the remaining portions of this division. The Council hereby declares that it would have adopted this division and each and every other section, paragraph, sentence, clause or phrase hereof and authorized the proceedings authorized to be taken pursuant thereto irrespective of the fact that any one or more articles, paragraphs, sentences, clauses, or phrases of this division may be held illegal, invalid or unenforceable.
(Added Ord. 94-3, § 1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

DIVISION 4. PENSION OBLIGATION LAW

Article 1. Pension Obligation Law—General Provisions and Definitions
Article 2. Pension Obligation Law—Issuance of Bonds to Finance the Program
Article 3. Pension Obligation Law—Miscellaneous Provisions

ARTICLE 1 PENSION OBLIGATION LAW—GENERAL PROVISIONS AND DEFINITIONS

Sec. 8-4-101. Title.
Sec. 8-4-102. Purpose.
Sec. 8-4-103. Definitions.

SEC. 8-4-101. TITLE.

This article may be cited as the City of Fresno Pension Obligation Bond Law.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-102. PURPOSE.

The Council hereby finds and declares that it is necessary, essential, a public purpose and a municipal affair for the city to be authorized to refund the pension obligations of the city in the interests of the public health, safety and welfare.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-103. DEFINITIONS.

Unless the context otherwise requires, the following definitions shall govern the construction of this division:

(a) "Bonds" means any bonds, notes, interim certificates, debentures or other obligations issued by the city pursuant to this division, which are payable from any available funds of the city.

(b) "Debentures" means the pension obligation debentures issued by the city in favor of the Systems, which evidence the indebtedness of the city imposed by the Retirement Law.

(c)—(f) Reserved.

(g) "Program" means the program of the city under which the city will issue bonds for the purpose of refunding the debentures.

(h) "Retirement Law" means Section 1100 of the City Charter and Ordinance No. 5313 (current Articles 3, 4 and 5 of Chapter 3 of the Fresno Municipal Code), as such may be amended from time to time.

(i) "State" means the State of California.

(j) "Systems" means the City of Fresno Fire and Police Retirement System, Second Tier of the Fire and Police Retirement System and the City of Fresno Employees' Retirement System.

(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 2 PENSION OBLIGATION LAW—ISSUANCE OF BONDS TO FINANCE THE PROGRAM

Sec. 8-4-201. General Powers.
Sec. 8-4-202. Authorization Of bonds.
Sec. 8-4-203. Proceedings Authorizing Issuance; Public Or Private Sales.
Sec. 8-4-204. Application Of Proceeds Of Bonds.
Sec. 8-4-205. Trust Agreement.
Sec. 8-4-206. Insurance Or Credit Enhancement.
Sec. 8-4-207. Bonds And Investments; Contracts To Place On Interest Rate, Cash Flow, Or Other Basis.
Sec. 8-4-208. Personal Liability.
Sec. 8-4-209. Refunding Bonds.
Sec. 8-4-210. Repayment Of Bonds.

SEC. 8-4-201. GENERAL POWERS.

The city is authorized and empowered:

(a) To issue bonds for the purpose of refunding the debentures or otherwise assisting the Program authorized by this division and for the purpose of refunding bonds.

(b) To establish the terms and conditions for the Program undertaken pursuant to this division.

(c) To employ or contract for such legal, consultant, underwriting, economic feasibility, or other services in connection with the program, as may be necessary in the judgment of the Council for the successful financing of the program and the issuance and sale of bonds.

(d) In addition to all other powers specifically granted in this division, to do all things necessary or convenient to carry out the purposes of this division.

(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-202. AUTHORIZATION OF BONDS.

The city may issue its bonds for the purpose of financing the program as authorized by this division. Every issue of bonds shall be payable from any available funds of the city.

(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-203. PROCEEDINGS AUTHORIZING ISSUANCE; PUBLIC OR PRIVATE SALES.

(a) The proceedings of the city authorizing the issuance of the bonds may provide all of the following for the bonds:

(1) The form of the bonds, which may be issued as serial bonds, term bonds, or installment bonds, or any combination thereof.

(2) The date or dates to be borne by the bonds.

(3) The time or times of maturity of the bonds.

(4) The interest, fixed or variable, to be borne by the bonds.

(5) The time or times that the bonds shall be payable.

(6) The denominations, form, and the registration privileges of the bonds.

(7) The manner of execution of the bonds.

(8) The place or places the bonds are payable.

(9) The terms of redemption of the bonds.

(10) Any other terms and conditions deemed necessary by the city.

(b) The bonds may be sold at either a public or private sale and for such prices as the Council shall determine.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-204. APPLICATION OF PROCEEDS OF BONDS.

The proceeds of the bonds may be applied to the repayment of the debentures, together with all costs of issuing the bonds and of the debentures, including any bond reserve funds which the city determines to be reasonably required, and the costs of any insurance or other credit enhancement authorized by Section 8-4-206.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-205. TRUST AGREEMENT.

In the discretion of the Council, any bonds issued under the provisions of this division may be secured by a trust agreement or indenture by and between the city and a corporate trustee or trustees, which may be any trust company or bank having the powers of a trust company within or without the State. Such trust agreement or indenture may contain such provisions for protecting and enforcing the rights and remedies of the bond owners as may be reasonable and proper and not in violation of law. Any such trust agreement or indenture may set forth the rights and remedies of the bond owners and of the trustee or trustees, and may restrict the individual right of action by bond owners. In addition to the foregoing, any such trust agreement or indenture may contain such other provisions as the Council may deem reasonable and proper for the security of the bond owners.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-206. INSURANCE OR CREDIT ENHANCEMENT.

The city may obtain insurance or other credit enhancement of the bonds and may enter into any credit, reimbursement agreement or other agreement with any person or entity. The agreement shall contain the terms of the credit, reimbursement, security, and any other terms the city deems necessary or appropriate.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-207. BONDS AND INVESTMENTS; CONTRACTS TO PLACE ON INTEREST RATE, CASH FLOW, OR OTHER BASIS.

In connection with, or incidental to, the issuance or carrying of the bonds, the city may enter into any contracts which the city determines to be necessary or appropriate to place the obligation, as represented by the bonds, in whole or in part, on the interest rate, cash flow, or other basis desired by the city, including, without limitation, contracts commonly known as interest rate swap agreements, forward payment conversion agreements, futures, or contracts providing for payments based on levels of, or changes in, interest rates, stock or other indices, or contracts to exchange cash flows or a series of payments, or contracts, including, without limitation, interest rate floors or caps, options, puts or calls to hedge payment, rate, spread, or similar exposure. These contracts and arrangements shall be entered into with the parties, selected by the means, and contain the payment, security, default, remedy, and other terms and conditions, determined by the city, after giving due consideration for the creditworthiness of the counterparties, where applicable, including any rating by a nationally recognized rating agency or any other criteria as may be appropriate.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-208. PERSONAL LIABILITY.

Neither the members of the Council nor any person executing the bonds shall be liable personally on the bonds or be subject to any personal liability or accountability by reason of the issuance thereof.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-209. REFUNDING BONDS.

The Council may provide for the issuance of bonds any portion of which is to be used for the purpose of refunding outstanding bonds, including the payment of the principal thereof and interest and redemption premiums, if any, thereon. The proceeds of bonds issued to refund any outstanding bonds may, in the discretion of the Council, be applied to the retirement of such outstanding bonds at maturity, or the redemption (on any redemption date) or purchase of such outstanding bonds prior to maturity, upon such terms and subject to such conditions as the Council shall deem advisable.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-210. REPAYMENT OF BONDS.

The principal and any premium of, and interest on, the bonds shall, be payable from any available funds of the city. The issuance of bonds shall not directly, indirectly or contingently obligate the Council to levy or pledge any form of taxation.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

ARTICLE 3 PENSION OBLIGATION LAW—MISCELLANEOUS PROVISIONS

Sec. 8-4-301. Liberal Construction.
Sec. 8-4-302. Provisions Of This Division Are Complete, Additional And Alternative.
Sec. 8-4-303. Actions To Determine Validity Of Bonds And Proceedings.
Sec. 8-4-304. Division Controlling.
Sec. 8-4-305. Partial Invalidity.

SEC. 8-4-301. LIBERAL CONSTRUCTION.

This division, being necessary for the health, welfare and safety of the city and its residents, shall be liberally construed to effect its purposes. Furthermore, the Council hereby declares that this division is an exercise of the power granted to the city by the Charter and the California Constitution; is an exercise by the city of its powers as to municipal affairs and its police powers; and this division shall be liberally construed to uphold its validity under the laws of the State.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-302. PROVISIONS OF THIS DIVISION ARE COMPLETE, ADDITIONAL AND ALTERNATIVE.

This division shall be deemed to provide a complete, additional and alternative method for doing the things authorized hereby, and shall be regarded as supplemental and additional to the powers conferred by other laws. The issuance of bonds and the entering into of any credit, reimbursement or other agreement under the provisions of this division need not comply with the requirements of any other law applicable to the issuance of bonds. The purposes authorized hereby may be effectuated and bonds are authorized to be issued for any such purposes under this division notwithstanding that any other law may provide for such purposes or for the issuance of bonds for like purposes and without regard to the requirements, restrictions, limitations or other provisions contained in any other law.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-303. ACTIONS TO DETERMINE VALIDITY OF BONDS AND PROCEEDINGS.

A validation action may be brought pursuant to the Code of Civil Procedure commencing with Section 860 to determine the validity of bonds and the legality and validity of all proceedings previously taken and proposed to be taken for the authorization, issuance, sale, and delivery of the bonds, for entering into any credit, reimbursement or other agreement in connection therewith, for the use of the proceeds of the bonds, and for the payment of the principal thereof and interest thereon.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-304. DIVISION CONTROLLING.

To the extent that the provisions of this division are inconsistent with the provisions of any general statute or special act or parts thereof, the provisions of this division shall be deemed controlling.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

SEC. 8-4-305. PARTIAL INVALIDITY.

If any article, paragraph, sentence, clause or phrase of this division shall for any reason be held illegal or unenforceable, such holding shall not affect the validity of the remaining portions of this division. The Council hereby declares that it would have adopted this division and each and every other section, paragraph, sentence, clause or phrase hereof and authorized the proceedings authorized to be taken pursuant thereto irrespective of the fact that any one or more articles, paragraphs, sentences, clauses, or phrases of this division may be held illegal, invalid or unenforceable.
(Added Ord. 93-77, § 1, eff. 1-14-93; Ord. 94-1, eff. 2-4-94; Am. Ord. 2007-97, § 2, eff. 1-19-08).

CHAPTER 9

REGULATIONS REGARDING BUSINESSES AND PERSONAL CONDUCT

Art. 1. General Provisions.
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ARTICLE 1 GENERAL PROVISIONS

Sec. 9-101. Permits Required.
Sec. 9-102. Weights and Measures.
Sec. 9-103. Public Scales.
Sec. 9-104. Sales in Memorial Auditorium.
Sec. 9-105. Hotel Registration.
Sec. 9-106. Permit Suspension or Revocation.
Sec. 9-107. Appeal of Denial of Permit; Temporary Permit.
Sec. 9-108. Access to Criminal History Information.
Sec. 9-109. Conviction of a Crime Involving Moral Turpitude.
Sec. 9-110. Operation of Clinical or Medical Laboratories.

SEC. 9-101. PERMITS REQUIRED.

All persons who carry on, or attempt to carry on any business, occupation or profession, shall procure a permit therefor, if required by this Code, and no person shall aid, assist or abet such persons in doing so without a permit.
(Orig. Ord. 1076).

SEC. 9-102. WEIGHTS AND MEASURES.

No person who sells ice or other foodstuffs, and stuffs intended to be used or prepared to be used for human consumption, or to be used as medicine for human beings, by weight or measure, shall fail to weigh on accurate scales, if sale is by weight, or measure by an accurate measure, if sale is by measure, the commodity sold, at the time and place of sale, or by weighing or measuring such commodity, shall fail upon request of purchaser to furnish a written memorandum, signed by him showing date of sale and weight or measure of commodity sold; provided, however, that this section shall not apply to such commodities when sold in containers on which the net contents is marked thereon, in accordance with an act of the legislature of the State of California, known as the "Net Container Act"; provided further, that such person shall not be required to weigh any such commodity so sold where the amount of the purchase is in excess of ninety-nine pounds unless requested to do so by the purchaser.
(Orig. Ord. 1076).

SEC. 9-103. PUBLIC SCALES.

(a) No person shall erect any public scales in any public street, lane or alley after January 1, 1959.

(b) Scales erected prior to January 1, 1959, shall be maintained in a safe condition to the satisfaction of the Director of Public Works. The platform of each such scale shall be covered with material of like quality and appearance as the top of adjoining pavement.

(c) No person shall maintain a scale erected prior to January 1, 1959, in any public street, lane, alley or avenue unless such person shall:

(1) Agree to hold the city, its officers, agents and employees harmless from any and all liability arising out of the placing or maintenance of said scale or scales in the public streets, lanes, alleys or avenues, and

(2) Maintain a policy of insurance with limits of not less than one hundred thousand dollars ($100,000) for injuries to or death of any one person, subject to a limit of three hundred thousand dollars ($300,000) for each accident, and not less than one hundred thousand dollars ($100,000) for property damage; and that said policy cover the contractual liability as set forth in this subsection. Said policy of insurance shall be renewed or a new policy furnished on the first day of July of each and every year thereafter during which the scale is maintained as above set forth.

(Orig. Ords. 709 and 2454; Am. Ord. 5473, 1959).

SEC. 9-104. SALES IN MEMORIAL AUDITORIUM.

No person shall sell any goods, wares or merchandise within the Fresno Memorial Auditorium, or upon the premises where such auditorium is situated, except programs in connection with an entertainment therein, without first procuring a contract therefor from the auditorium manager.

(Orig. Ord. 1076; Am. Ord. 5317, 1958).

SEC. 9-105. HOTEL REGISTRATION.

(a) **Definition.** For purposes of this article, hotel means any public or private space or structure, including but not limited to, any inn, hostelry, tourist home, motel, lodging house, or motel rooming house offering space for sleeping or overnight accommodations in exchange for rent and for a period of less than thirty days. Hotel includes the parking lot and other common areas of the hotel. Hotel does not include living accommodations provided at any governmental or nonprofit institution in connection with the functions of that institution, or short-term rentals regulated by Section 7-1249 of this Code.

(b) The operator of any hotel, where such establishment is located within the city, shall at all times keep and maintain therein a book or register in which shall be inscribed, either electronically or in ink, in legible English language, written documentation of information about a guest, which includes at a minimum the following information:

(1) As provided by the guest in response to an inquiry or by other means:

(i) The name, date of birth, and address of each guest, or person who exercises occupancy or is entitled to occupancy in a hotel by reason of concession, permit, right of access, license, or other agreement;

(ii) The total number of guests;

(iii) The make, type, and license number of the guest's vehicle if the vehicle will be parked on hotel premises that are under the control of the operator or hotel management;

(iv) Identification information as required by subsection (d)(1) of this section, as provided on a document containing the name, date of birth, description and picture of a person, issued by the federal government, the State of California, another state, a county or municipal government, including but not limited to: a motor vehicle's operator's license, an identification card, an identification card issued to a member of the Armed Forces, or a passport issued by a foreign government to any of its citizens and nationals which has been approved by the city as valid identification.

(2) The day, month, year, and time of arrival of each guest;

(3) The number, symbol, or location of the room rented or assigned to each guest;

(4) The date each guest is scheduled to depart;

(5) The rate charged and amount collected for rental of the room assigned to each guest;

(6) The method of payment for the room; and

(7) The full name of the person (hotel employee) checking in the guest.

(i) For a guest checking in via electronic registration kiosk at the hotel, instead of the information as provided in subsection (b)(1)-(6), the hotel shall record the name, reservation information, and credit card information provided by the guest, as well as the identifying symbol of the kiosk where the guest checked in and the room number assigned to the guest.

(c) **Maintenance of Hotel Record.** Every person who owns or operates any hotel as defined in this section is subject to this section and shall keep a register of persons who board or lodge in such establishment. Such register shall be kept for a minimum of one year after the date of its most recent entry. Every operator of a hotel as defined in this section shall comply with the following requirements for maintaining the hotel record. The record is a written documentation of information about a guest that may be maintained electronically, in a book, or on cards.

(1) The records shall be kept on the premises in the guest reception or guest check-in area or in an office adjacent to that area.

(2) No person shall alter, deface, or erase a record so as to make the information recorded in it illegible or unintelligible, or hinder, obstruct or interfere with any inspection of the record under this section.

(3) Any record maintained in the form of a book shall be permanently bound, each page shall be sequentially numbered and the book shall be the minimum size of eight inches by ten inches. No page shall be removed from the book. Any record maintained in the form of cards shall be on cards that are a minimum size of two and one-half inches by four inches and numbered consecutively and used in sequence.

Any card numbered within the sequence of utilized cards shall be preserved as part of the record even if it not used for a room rental. The numbers shall be printed or otherwise indelibly affixed to the cards. If maintained electronically, the record shall be printable.

(4) Nothing in this section prevents the operator from maintaining the record for longer than one year in order to comply with any other provision of law, including the obligation to maintain and produce records for the purpose of paying a transient occupancy tax.

(5) Information obtained from a guest pursuant to this section shall be used only for the purposes mentioned in this section. Reasonable technical and organizational confidential and security measures shall be implemented to protect against accidental or unlawful alteration or loss, or from unauthorized use, disclosure or access of information provided by a guest and maintained as a hotel record pursuant to this section. At the end of the retention period required by this section, records required by this section and containing personal information shall be subject to disposal in such a manner that the record cannot be used or accessed and cannot be read or deciphered by any means.

(d) **Renting of Hotel Rooms.** The operator of a hotel shall not rent a room except in compliance with the following conditions:

(1) The operator shall require the guest who is registering to verify his or her identification through production of a driver's license, passport, government issued identification card or other acceptable proof of identification as described in subsection (b)(1)(iv). The hotel registrar shall record that identification was verified in accordance with this requirement and note the type of documentation which was provided by the guest to verify the guest's identification. Allowing a guest to register without verifying the guest's identification as required by this subsection is unlawful and a violation of this section.

(2) The number and expiration date of the identification document obtained under subsection (d)(1) shall be recorded and maintained by the operator in the record for at least one year. Nothing in this section prevents the operator from maintaining the record for longer than one year in order to comply with any other provision of law, including the obligation to maintain and produce records for the purpose of paying a transient occupancy tax.

(e) **Training of employees.** The owner or proprietor of a hotel business shall take all reasonable steps, including but not limited to, providing training regarding this section to ensure the person who checks a person into the hotel complies with the provisions of this section. A person who has not been trained shall not be assigned to check persons into the hotel.

(f) **Register Subject to Inspection.** Such hotel register shall, upon demand, be open for inspection or investigation by any member of the Police Department or other peace officer of the city, immediately upon demand having been made by such peace officer. Should the owner, manager, or other person having management or control not agree to voluntarily produce the hotel registry upon receipt of such request, he or she shall do so upon presentation of a duly executed search warrant authorizing the Police Department's review, inspection, reproduction, and/or impoundment of the hotel registry. An owner, manager or other person in management or control shall not be in violation of this chapter for failure to voluntarily produce the guest registry but shall be in violation for failure to do so immediately upon presentation of a duly executed search warrant requiring the production. An owner, manager, or other person in management or control may be required to secure the register in the presence of the Police Department and in a manner specified by the Police Department to ensure the register is not tampered with until such time a warrant has been issued or denied.

(g) **Fictitious Names.** It shall be unlawful for any person to register at any hotel in the city under the name of any other person or a fictitious person, or to give or sign or cause to be signed, upon the register of any hotel any assumed, false, or fictitious name, or any name other than the true and correct name of the person so registering or so giving or signing or causing his name to be signed.

(h) **Hourly Room Rentals Prohibited.** No person conducting or owning any hotel and no person in charge, management, or control of such an establishment shall let or cause to be let any room or area of the establishment for a period of fewer than twelve hours, nor shall any such person let or cause to be rented any room or area of the establishment more than twice in any 24-hour period commencing at 12:01 a.m.

(i) **Use for Immoral or Unlawful Purposes Prohibited.** It shall be unlawful for any person, whether owner, manager, agent, or resident, to knowingly rent, lease, sublet, hire, or agree to rent, lease, sublet, or hire, any room in a hotel to any person who offers to engage in immoral or unlawful activity, including but not limited to human trafficking; offering, engaging, or agreeing to engage in sexual conduct for a fee; soliciting another in a public place to engage with any person in sexual conduct for hire; receiving money pursuant to an agreement to participate in the proceeds of prostitution; solicitation of another to engage in sexual conduct with another person for compensation; or any person who owns, invests in, finances, controls, supervises, or manages a prostitution enterprise that uses two or more prostitutes.

(j) **Penalty for Violation.** Any person violating or failing to comply with any of the provisions of this article shall be guilty of a misdemeanor. Every person who violates any provision of this article may also be subject to administrative citations as provided in this code.

(Orig. Ord. 1076; Am. Ord. 2019-039, § 1, eff. 12-13-19).

SEC. 9-106. PERMIT SUSPENSION OR REVOCATION.

The following procedures shall be used for the suspension or revocation of any permit issued under this chapter except to the extent that if any of the provisions in this section conflict with any provisions found in any other section or article in this chapter, the provisions found in the other section or article shall control:

(a) **Findings.** Any permit issued under this chapter may be suspended or revoked for good cause, including, but not limited to the following:

(1) **False Statement in Application.** If it is determined that the permit holder made any false statement of material fact in the application for the permit, or other document for which the permit approval was based.

(2) **Grounds for Denial of Permit.** If it is determined that any facts exist that would have been grounds for denial of the permit.

(3) **Violation of Condition of Permit.** If it is determined that the permit holder violated a condition placed on his or her permit.

(4) **Violation of the Code.** If it is determined that the permit holder violated any requirement of this Code in connection with the exercise of their permit, including, but not limited to, violating the regulations of this chapter or the business tax requirements under Chapter 5.

(5) **Conducting Business in an Illegal or Disorderly Manner; Endangering Public.** If it is determined that the permit holder conducts his or her business in an illegal or disorderly manner or in any manner which endangers the public's health, safety or welfare.

(6) **Conviction or Determination Involving Fraud or Deceit or Drug Offense.** If it is found that the permit holder within the last five years has been found guilty of a crime involving fraud, deceit or dishonesty or has been determined in a final decision in any civil matter or administrative proceeding to have practiced or committed fraud, deceit or dishonesty. If it is found that the permit holder has within the last five years been convicted of a crime or other offense involving moral turpitude, or a conviction of use, possession or sale of a controlled substance.

(7) **Insolvency.** If it is determined that the permit holder is bankrupt, financially insolvent or unstable and that, in the exercise of reasonable judgment, it appears likely that because of their financial condition, the permit holder will provide inadequate service under his permit.

(8) **Disservice to the Public.** If it is determined that the permit holder's service to the public is so inadequate or inefficient that, in the exercise of reasonable judgment, it appears that it amounts to a disservice to the public.

(b) **Notification of Suspension or Revocation.** Notice of suspension or revocation of any permit shall be in writing from the City Manager, or his or her designee, and

shall state the reasons for the suspension or revocation, shall state the effective date of revocation or suspension, and shall provide notice of the right to appeal. The City Manager, or his or her designee, may make the effective date immediate upon notification, if the City Manager, or his or her designee, determines that immediate cessation of activities under the permit is necessary to protect the public's health, safety or welfare. Notification of suspension or revocation shall either be served upon the permittee personally, or mailed by certified mail, return receipt requested, addressed to the permittee at the address appearing on the permit. Notice shall be deemed to be received immediately upon personal service or within three days of service by mail. If required upon revocation, the permit holder shall turn over his or her permit to the City Manager, or his or her designee.

(c) **Notice to Correct.** Where the cause for revocation or suspension is found to be a correctable violation of the Code or where the Code does not otherwise mandate revocation or suspension, the City Manager, or his or her designee, may as an alternative to subsection (b), issue a Notice to Correct allowing the permit holder an opportunity to come into compliance within a reasonable period of time subject to threat of suspension or revocation. A Notice to Correct shall set forth a description of the violation and shall specify what the permit holder must do to correct the matter within the period provided. A Notice to Correct shall not be appealable and shall be served under the procedures in subsection (b).

(d) **Appeal to the City Manager.** Any decision to suspend or revoke a permit may be appealed in writing by the permit holder to the City Manager, or his or her designee, within fifteen days from service by mail of the notice of revocation or suspension. If no appeal is filed within the fifteen day period, the decision to suspend or revoke shall be final and conclusive. The City Manager, or his or her designee, shall reject or uphold the appeal and provide written notice of his or her decision within thirty days of service of the written appeal. The City Manager, or his or her designee, in his or her discretion, or if required by the Code, may make the decision to revoke or suspend a permit directly appealable to the City Hearing Officer and not offer the appeal provided in this subsection.

(e) **Appeal to the City Hearing Officer.** Any decision by the City Manager, or his or her designee, to deny an appeal of a suspension or revocation may be appealed to the City Hearing Officer under the procedures in Chapter 1, Article 5. If no appeal is filed in the time prescribed, the decision of the City Manager, or his or her designee, shall be final.

(f) **Appeal on Automatic or Summary Suspension.** If a permit is automatically suspended under procedures in this chapter, or suspended or revoked with an immediate effective date from notification, the permit holder shall have the right to an appeal within four business days and shall be given, unless waived by the permit holder, at least twenty-four hours written notice of the date, time and place of the hearing.

(g) **Stay Pending Appeal.** The filing of an appeal to the City Manager or to the City Hearing Officer shall stay the effective date of the suspension or revocation until such time as the appeal is finally decided. Notwithstanding the above and Section 1-406, a suspension or revocation shall not be stayed during the appeal process if it is determined by the City Manager, or his or her designee, that immediate cessation of the permit holder's business activities under his or her permit is necessary to protect the public's health, safety or welfare. If the effective date is not or will not be stayed, the permit holder shall be notified of the notice of revocation or suspension.

(h) **New Application After Revocation.** If the permit of any person is revoked, no permit shall be granted to such person to conduct or carry on any such business within twelve months after such revocation.

(i) **Cumulative Remedy.** Any decision to revoke or suspend a permit based upon a Code violation shall be a cumulative remedy to any other remedy provided by this Code, policies adopted under this Code, or by law.

(j) **Monies Owed Payable Upon Revocation.** In the event a permit is revoked, all sums owed the city shall immediately become due and payable, and no fees and charges shall be refundable or apportioned by the city.

(Added Ord. 2003-67, § 25, eff. 8-31-03).

SEC. 9-107. APPEAL OF DENIAL OF PERMIT; TEMPORARY PERMIT.

Notwithstanding any provision of this Code, including Section 1-406, the filing of an appeal under this chapter on a denial of an application or denial of a renewal for a permit does not provide the applicant any authority to exercise the rights that would be provided under the permit, unless the City Manager, or his or her designee, has issued the applicant a temporary permit. Notwithstanding any provision of this Code, temporary permits are revocable at the discretion of the City Manager, or his or her designee. There is no right to appeal from the decision to revoke a temporary permit. Holders of temporary permits must comply with all regulations that would apply to the permit, subject to the penalties for violation of the Code and/or the permit. (Added Ord. 2003-67, § 26, eff. 8-31-03).

SEC. 9-108. ACCESS TO CRIMINAL HISTORY INFORMATION.

In order to implement the Controller's permit investigation functions under the provisions of this Code, he is authorized to obtain state summary criminal history information pursuant to Section 11105 and 13300 of the Penal Code of the State of California. (Added Ord. 80-171, § 6, eff. 12-26-80).

SEC. 9-109. CONVICTION OF A CRIME INVOLVING MORAL TURPITUDE.

A permit subject to denial, suspension or revocation by the Controller or the Police Chief on the ground that the applicant or permittee has been convicted of a crime involving moral turpitude may only be denied, suspended or revoked on that ground if moral turpitude is inherent in the crime itself, or if the circumstances of the conviction demonstrate unfitness

to conduct the business regulated by the permit in question because the crime is substantially related to the qualifications, functions, and duties of such business. (Added Ord. 81-114, § 1, eff. 10-9-81; Am. Ord. 82-35, § 1, eff. 4-16-82).

SEC. 9-110. OPERATION OF CLINICAL OR MEDICAL LABORATORIES.

(a) This Section shall be known as the Infectious Disease Lab Accountability and Transparency Ordinance.

(b) No person or entity shall operate an infectious disease laboratory within the City of Fresno without first obtaining all proper local, state, and federal licensing.

(c) For the purpose of this ordinance, any laboratory as defined in the Clinical Laboratory Improvement Amendments of 1988 (CLIA, 42 CFR Part 493) that operates with a CLIA certification, or a California State laboratory license, is not considered an infectious disease laboratory pursuant to this ordinance and is exempt from the remainder of this ordinance if the proposed laboratory or its representatives provide the City verification through the codified City permitting process of said certification.

(d) For the purpose of this ordinance, "Infectious Diseases" are defined as those diseases identified in Title 17, California Code of Regulations (CCR) Section 2505 and include other experimental diseases not listed or identified by the United States Centers for Disease Control.

(e) For the purpose of this ordinance, "Infectious Disease Laboratory" is defined as a facility for the biological, microbiological, serological, chemical, immunohematological, hematological, biophysical, cytological, pathological, or other examination, or storage of materials that are suggestive of diseases of public health importance as specified in Title 17, CCR Section 2505.

(f) Any person or entity intending to operate an infectious disease laboratory within the City of Fresno without CLIA certification, as described above, shall notify the City of such intent through its Planning Director by letter titled "Notice of Intent to Operate Infectious Disease Laboratory" prior to applying for any entitlement or permit to operate.

(g) Within 30 days of receiving a Notice of Intention and prior to approval of any related conditional use permit or zone clearance, the Planning Director shall notify the City Council in writing of said notice and attach a copy of the same.

(h) No later than 15 days prior to the Planning Director approving any conditional use permit or zone clearance for an infectious disease laboratory, residents and businesses within 1,000 feet shall be notified by the City.

(i) Any person or entity willfully and intentionally violating the provisions of this section or willfully and intentionally making misrepresentations under the CLIA certification requirements shall be guilty of a misdemeanor punishable up to one year in a county jail and

a $1,000 fine. The City Attorney is also authorized to refer felony violations of the law to either the Fresno County District Attorney's Office or The California Department of Justice. (Added Ord. 2023-032, § 1, eff. 11-11-23).

ARTICLE 2 CABLE COMMUNICATION SYSTEMS

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Sec. 9-235. Implementation of the Digital Infrastructure and Video Competition Act of 2006 for State Franchise Holders Providing Video Service Throughout the City.

SEC. 9-201. TITLE.

This article shall be known as the Cable Communication Systems Ordinance of the City of Fresno. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-202. FINDINGS AND OBJECTIVES.

(a) The city has the authority to regulate the use of streets, public rights-of-way, and other city property, and to grant access thereto upon certain terms and conditions.

(b) The right to place privately-owned facilities and fixtures in such rights-of-way for the business of providing cable, open video and related services for hire is a valuable economic

right to use a unique public resource that has been acquired and is maintained at great expense to the city and its taxpayers, the economic benefit of which should be shared with the taxpayers of the city.

(c) The city wishes to promote the availability of high-quality and diverse cable and open video services to residents, businesses, and public institutions and entities within the city's service area; and to promote the availability of diverse information resources to the community, including through the development of advanced systems that can support public, educational, and governmental programming, networking and high-speed access to the Internet.

(d) The city wishes to provide opportunities to the public to obtain access to communications facilities for the purpose of disseminating and receiving information; to promote competitive cable rates and services; to take advantage of opportunities presented by cable and open video systems to provide for more open government; to enhance educational opportunities throughout the community and provide opportunities for building a stronger community; and to allow flexibility to respond to changes in technology, subscriber interests, and competitive factors that will affect the health, welfare, and well-being of the community.

(e) The city has reviewed its authority under state and federal law and reviewed and considered how it may exercise its authority to best protect the public health, safety, and welfare; effect responsible management of the public rights-of-way; meet the obligations of the city to manage and maintain the public rights-of-way; minimize disruption and inconvenience to the use of the public rights-of-way for transportation purposes; and ensure reasonable nondiscriminatory access to the public rights-of-way by secondary users.

(f) The city has reviewed its authority under state and federal law and reviewed and considered how it may exercise its authority to best protect the public health, safety, and welfare; effect responsible management of the public rights-of-way; meet the obligations of the city to manage and maintain the public rights-of-way; minimize disruption and inconvenience to the use of the public rights-of-way for transportation purposes; and ensure reasonable nondiscriminatory access to the public rights-of-way by secondary users.

(g) The city finds that it is in the interest of the public to franchise and to establish standards for franchising such operators in a manner that promotes these objectives and otherwise protects the public interest.

(h) In pursuit of the foregoing the city finds that it is necessary to enact the following requirements and further finds it appropriate to apply the provisions hereof to existing cable and open video franchisees, permittees, and licensees as far as is possible and to apply it to those with pending or new applications to place facilities in public rights-of-way for cable, open video and other related services. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-203. PURPOSES.

The purposes of this article include, but are not limited to, the promotion of the general welfare of the citizens of the Fresno community by:

(a) Establishing a regulatory framework for the administration of franchises in order to ensure that the potential recreational, educational, social, economic and other advantages of cable communication services will in fact inure to the benefit of the Fresno community and the citizens thereof;

(b) Regulating the operations of franchisees for the purpose of protecting and promoting the public health, peace, safety and welfare;

(c) Establishing a local policy concerning the franchising of cable systems, open video systems, and private communication systems that use the public rights-of-way;

(d) Promoting the availability of diverse, multimedia information resources to the community;

(e) Providing for enhanced educational opportunities throughout the community and building a stronger community;

(f) Encouraging the provision of advanced and competitive cable or open video system services on the widest possible basis to the businesses, institutions and residents of the city;

(g) Encouraging economic development while preserving aesthetic and other community values and preventing proliferation of above-ground facilities;

(h) Universal access to video programming services is encouraged for all residents and businesses.

The provisions of this section shall not be deemed to confer any right upon a franchisee which is not otherwise conferred by another express provision of this chapter. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-204. DEFINITIONS.

(a) Unless the particular provision or the context requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, provided that to the extent a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in article 2 (commencing with Section 1-201) of chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article, and further provided that a particular word or phrase that is not specifically defined in this section and article 2 (commencing with Section 1-201) of chapter 1 of this Code shall have the same meaning as in Title VI of Title 47 of the United States Code, or if not defined therein, their common and ordinary meaning. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be. When not inconsistent with the context, words used in the present tense include the future tense; words in the plural number include the singular number; and words in the singular number include the plural number; and the masculine gender includes the feminine gender. The words "shall" and "will" are mandatory, and "may" is permissive. References to governmental entities (whether persons or entities) refer to those entities or their successors in authority. If specific provisions of law referred to herein are renumbered, then the reference shall be read to refer to the renumbered provision. References to laws, ordinances or regulations shall be interpreted broadly to cover government actions, however nominated, and include laws, ordinances and regulations now in force or hereinafter enacted or amended

(b) "Access," "PEG Access," or "PEG Use" refers to the availability of a cable system or open video system for public, education or government use (including institutional network use) by various agencies, institutions, organizations, groups, and individuals, including the city and its designated access providers, to acquire, create, and distribute programming, not under a franchisee's editorial control, and advertising to the extent authorized by law, including without limitation channel capacity designated for public, educational, or governmental use, and facilities and equipment for the use of such channel capacity.

(c) "Affiliate" means a person that (directly or indirectly) owns or controls, is owned or controlled by, or is under common ownership or control with, another person.

(d) "Application" means any application, proposal submission, or request filed pursuant to the requirements of this article to obtain, modify, transfer, extend or renew a franchise, including any and all documents and materials included therein and/or required by the Federal Communications Commission.

(e) "Application Fee" means a charge to recover, to the maximum extent allowable by law, the city's actual costs of processing applications hereunder.

(f) "Basic Service" means any service tier regularly provided to all subscribers that includes the retransmission of local television broadcast signals.

(g) "CAO" means the Chief Administrative Officer of the City of Fresno.

(h) "Cable Act" means the Cable Communications Policy Act of 1984, 47 U.S.C. §§ 521 et seq., as amended by the Cable Television Consumer Protection and Competition Act of 1992, as further amended by the Telecommunications Act of 1996, as further amended from time to time.

(i) "Cable Communications System" refers to open video systems (OVS), and/or cable systems.

(j) "Cable Service" means: the one-way transmission to subscribers of:

(i) video programming, or

(ii) other programming service, and subscriber interaction, if any, which is required for the selection or use of such video programming or other programming service, or

(iii) any other programming or service which may lawfully be characterized as a cable service.

(k) "Cable System" means a facility, consisting of a set of closed transmission paths and associated signal generation, reception, and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within a community, but such term does not include:

(A) a facility that serves only to retransmit the television signals of one or more television broadcast stations;

(B) a facility that serves subscribers without using, or connecting to a facility that uses, any public right-of-way within the city of Fresno;

(C) a facility of a common carrier which is subject, in whole or in part, to the provisions of Title II (Common Carriers) of the Communications Act of 1934, as amended, except that such facility shall be considered a cable system to the extent such facility is used in the transmission of video programming directly to subscribers, unless the extent of such use is solely to provide interactive on-demand services;

(D) any facilities of any electric utility used solely for operating its electric utility systems;

(E) an OVS that is certified by the FCC.

Any reference to a cable system includes the cable system as a whole, or any part thereof, including all facilities, pedestals, equipment cabinets, electronic equipment and devices appurtenant to the system.

(l) "Channel" means a portion of the electromagnetic frequency spectrum which is used in a cable system or OVS and which is capable of delivering a television signal whether in an analog or digital format. The definition does not restrict the use of any channel to the transmission of analog television signals or one-way transmission.

(m) "City" means the City of Fresno and all departments, divisions, and agencies thereof.

(n) "Construction, Operation or Repair" and similar formulations of that term means the named actions interpreted broadly, encompassing, among other things, installation, extension, maintenance, replacement of components, relocation, undergrounding, grading, site preparation, adjusting, testing, make-ready, and excavation.

(o) "Council" means the City Council of the City of Fresno.

(p) "Downstream Channel" means a channel designed and activated to carry a transmission from the headend to other points on a cable communications system, including interconnections.

(q) "Education Access" or "Education Use" means access where accredited educational institutions are the primary or designated programmers or users having editorial control over their communications.

(r) "Facilities" includes any physical element used in connection with, or designed to be used in connection with, the provision of cable services, whether or not located in the public rights-of-way, including, without limitation, pedestals, cabinets, ducts and conduits (whether empty or occupied), transformers, equipment, drains, handholds, lines, line extensions, service drops, manholes, poles, power supplies and generators, splice boxes, surface location markers, vaults, tunnels, amplifiers, power guards, nodes, cables, and fiber optics (whether active or dark.)

(s) "FCC" means the Federal Communications Commission.

(t) "Franchise" refers to an authorization granted by the city to the operator of a cable communications system giving the operator the non-exclusive right to occupy the space, or use facilities upon, across, beneath, or over public rights-of-way and portions thereof in the city, to provide specified services within a franchise area.

(u) "Franchise Area" means the area or portion of the city that a franchisee is authorized to serve by the terms of its franchise or by operation of law.

(v) "Franchise Documents" with respect to a franchise for a cable communication system issued pursuant to the provisions of this article, mean the provisions of this article, the map defining any imposed service area for the franchise as adopted by resolution, the provisions of any request for proposals issued pursuant to the provisions of this article in connection with that franchise, the provisions of the application for the franchise submitted by the franchisee, the provisions of the resolution offering the franchise, the provisions of the certificate of acceptance by the franchisee of the franchise and all necessary documents and instruments approved by city . Any amended and restated resolution regarding a franchise issued to any franchisee, adopted subsequent to the issuance of such franchise, shall be considered one of the franchise documents in lieu of the resolution offering the franchise to that franchisee, consistent with applicable law.

(w) "Franchisee or Grantee" refers to a person holding a cable communications system franchise granted by the City of Fresno.

(x) "Franchise Fee" means the fee payable to the city as provided in this article and the franchise in consideration of the grant and exercise of a franchise to construct, install, operate, or provide services using, facilities in the public rights-of-way, expressed as a percentage of gross revenues or some other measure.

(y) "Government Access" or "Government Use" means access where government institutions or their designees are the primary or designated programmers or users having editorial control over their communications.

(z) "Gross Revenues" means all cash, credits, property, or other consideration of any kind or nature, and any contributing grant or subsidy, received directly or indirectly by a grantee and its affiliates, from any source whatsoever arising from, attributable to, or in any way derived from a grantee's operation of a cable communication system within the franchise area, including but not limited to, fees charged to subscribers for basic service; fees charged to subscribers for any optional, premium, per-channel, or per-program service; monthly fees charged to subscribers for any tier of service other than basic service; installation, disconnection, re-connection, and change-in-service fees; leased channel fees; fees, payments, or other payment received as consideration from programmers for carriage of programming on the cable system; converter rentals or sales; studio rental, production equipment, and personnel fees; advertising revenues, including a per capita share of advertising revenues for advertising carried on more than one cable system; revenues from home shopping channels; sales of programming guides; and such other revenue sources as may now exist or hereafter develop. The definition shall be interpreted and applied in a manner that permits the city to collect the

maximum franchise fee permitted by law, irrespective of the source of revenue. Gross Revenues, however, shall not include any bad debt (defined as unpaid subscriber or advertiser accounts), any taxes on services furnished to a grantee and imposed directly upon any subscriber or user by the state, city, or other governmental unit and collected by a grantee on behalf of said governmental unit. The amount paid as a franchise fee shall not be deducted from gross revenues unless required to be deducted under federal law.

(aa) "License" refers to the non-franchise, revocable, legal authorization to use a particular, discrete, and limited portion of the public rights-of-way to construct, operate, or repair a cable communications facility, applied for and issued in the form, manner and upon terms and conditions provided by the city, subject to the city's fee schedule and the license.

(bb) "Operator" when used with reference to a system, refers to a person or group of persons (a) who directly or through one or more affiliates provides service over a cable communications system and directly or through one or more affiliates owns a significant interest in such system; or (b) who otherwise controls or is responsible for, through any arrangement, the management and operation of such a system.

(cc) "OVS" means an open video system certified by the FCC prior to commencement of service. A reference to an OVS includes pedestals, equipment enclosures (such as equipment cabinets), amplifiers, power guards, nodes, cables, fiber optics and other equipment necessary to operate the OVS, or installed in conjunction with the OVS.

(dd) "Person" includes any individual, corporation, partnership, association, joint stock company, trust, or any other legal entity, but not the City of Fresno.

(ee) "Public Access" or "Public Use" means access where organizations, groups, or individual members of the general public, on a non-discriminatory basis, are the primary or designated programmers or users having editorial control over their communications.

(ff) "Public Rights-of-Way" means the surface of and the space above and below any street, road, highway, freeway, bridge, lane, path, alley, court, sidewalk, parkway, drive, utility right of way, right-of-way easement or any other easement primarily granted or dedicated to travel, public or quasi-public services, now or hereafter existing within the city which may be properly used for the purpose of installing, maintaining, and operating a cable communications system; and any other property that a franchisee is entitled by state or federal law to use by virtue of the grant of a franchise.

(gg) "Public Property" means any property that is owned or under the control of the city that is not a public right-of-way, including, for purposes of this article, but not limited to, buildings, parks, poles, structures in the public rights-of-way such as utility poles and light poles, or similar facilities or property owned by or leased to the city.

(hh) "Revocation" means the city's affirmative act of terminating a franchise.

(ii) "School" means any accredited primary school, secondary school, college, and university.

(jj) "Subscriber" means the city or any person who is lawfully receiving, for any purpose or reason, any cable service via a cable communications system, whether or not a fee is paid for such service.

(kk) "Termination" means the conclusion of a franchise by any means, including, but not limited to, by expiration of its term, abandonment, or revocation.

(ll) "Transfer" means any transaction in which: (1) all or a portion of any facilities or any rights to use or operate facilities located in the public rights-of-way are sold, conveyed, transferred, assigned, encumbered (except the term does not include sale of portions of the cable system that are removed from service) or leased, in whole or in part, directly or indirectly, by one or more transactions to another person, whether voluntarily or by operation of law or otherwise; or (2) there is any change, acquisition, or transfer of control of the franchisee or its direct or indirect parents, or transfer in the identity of the person in control of the grantee, or any person that controls grantee, including, without limitation, forced or voluntary sale, merger, consolidation, or receivership; or (3) the rights or obligations under the franchise are sold, conveyed, transferred, assigned, encumbered (except as set forth herein) or leased, in whole or in part, directly or indirectly, by one or more transactions to another person, whether voluntarily or by operation of law or otherwise. It will be presumed, for purposes of clause (2) above, that any transfer or cumulative transfer of a voting interest by a person or group of persons acting in concert of ten percent (10%) or more of grantee, or of a person that controls grantee, or of any change in the managing general partners of a grantee is a change of control. "Transfer" does not include: (1) a lease to a UVPP pursuant to 47 U.S.C. Sections 532 or 573; (2) the transmission of a commodity or electronic signal using facilities on a common carrier basis; (3) a lease or other right to use facilities mandated pursuant to 47 U.S.C. Section 224, or (4) a pledge in trust, mortgage or other encumbrance against the facilities, or any portion thereof, given to a bona fide institutional lender in connection with a loan or other financing required to secure the construction, operation, or repair of the facilities ("Loan") provided that such Loan is subject to the rights and powers of the city pursuant to the franchise and applicable law, including, without limitation, the right of the city to approve any transfer upon assignment or foreclosure. "Transferring" and "Transferee" shall have correlative meanings.

(mm) "Unaffiliated Video Programming Provider" or "UVPP" means any person who uses capacity on a franchised cable communication system to deliver cable service or other communications service (as that term is used in 47 U.S.C. Section 542(h)) to subscribers and who is not an affiliate of the grantee.

(nn) "UVPP Fees" means fees payable by a UVPP that provides services using a cable system for which charges are assessed to subscribers, but are not received by the cable system grantee, payable to city in lieu of a franchise fee on such service pursuant to the franchise fee calculation contained in the cable communication system franchise.

(oo) "Upstream Channel" means a channel designed and activated to carry transmissions from a point on the cable system, other than the headend, to the headend or another point on the cable system.

(pp) "User" means a person or the city utilizing a channel, capacity or equipment and facilities for purposes other than in the capacity of a subscriber. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-205. FRANCHISE REQUIRED.

No person may construct or operate a cable communications system in the city including any portion thereof without first obtaining a city franchise. No provision of this article may be deemed or construed to require the granting of a franchise when in the opinion of the Council it is in the public interest to restrict the number of grantees to one or more. When and in the event that the grantee of any franchise granted hereunder uses in its cable communication system distribution channels furnished to the grantee by a telephone company pursuant to tariff or contract on file with a regulatory body having jurisdiction and said grantee makes no use of the streets independent of such telephone company-furnished facilities, said grantee shall be required to comply with all of the provisions hereof as a "licensee" in addition to its obligations under this article and in such event whenever the term "grantee" is used herein it shall be deemed to mean and include "licensee." (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-206. EXCEPTIONS TO FRANCHISE REQUIREMENTS.

The following shall not be required to obtain a franchise under this article:

(a) The City of Fresno;

(b) An UVPP that is only delivering cable service or other communications service (as that term is used in 47 U.S.C. Section 542(h)) to subscribers. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-207. FRANCHISE AS CONTRACT.

All terms, conditions and provisions of the contract shall be deemed to be embodied in the franchise documents, and conflicts in terms, conditions or provisions of the documents shall be resolved as follows:

(a) The express terms of this article shall prevail over conflicting or inconsistent provisions in any other franchise document;

(b) The express terms of any amended and restated resolution regarding a franchise issued to any franchisee shall prevail over conflicting or inconsistent provisions in any other franchise document, (including any prior amended and restated resolution), except the express terms of this article;

(c) The express terms of the resolution offering the franchise shall prevail over conflicting or inconsistent provisions in any other franchise document, except the express terms of this article and any subsequently adopted, amended and restated resolution regarding the franchise;

(d) The express terms of the request for proposals shall prevail over conflicting or inconsistent provisions in either the application for the franchise or the certificate of acceptance of the franchise; and

(e) The express terms of the application for the franchise shall prevail over inconsistent or conflicting provisions in the certificate of acceptance of the franchise.

(f) Nothing in this section is intended to unlawfully impair vested rights of franchisee with respect to enforcement of the terms and conditions of the franchise. There shall be preserved to franchisee all legal right to challenge any provision of a subsequent ordinance or resolution as an unlawful impairment of franchisee's vested rights. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-208. FAILURE TO OBTAIN A FRANCHISE.

Consistent with law including the Cable Act, the franchise documents and the requirements of due process, a person's failure to obtain and maintain a franchise as required by this article may, in the city's discretion, result in:

(a) Forfeiture, by operation of law, of the person's facilities located in the public rights-of-way that are not authorized by an existing franchise; and/or

(b) A requirement that the facilities be removed and sites restored, and that costs, penalties and damages be paid. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-209. EXISTING FRANCHISE.

Grantees of franchises existing as of the effective date of this article shall, in addition to all the obligations and duties prescribed by the terms of their existing franchises, be subject to the requirements of this article, except as prohibited by applicable law and/or this article, in which event such requirements shall be regarded as statements of city policy. Nothing herein is intended to invalidate a lawful, existing franchise or to waive any obligations imposed by such a franchise. Notwithstanding the foregoing, provisions of this article that expressly refer to a "franchise granted pursuant to this article" shall not apply to franchises initially granted prior to the effective date of this article. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-210. FORM OF FRANCHISE.

Any franchise shall be issued in the form of an ordinance, and must be accepted by the franchisee to become effective. Such acceptance shall be and operate as an acceptance of each and every term and condition and limitation contained in this article, in such franchise, or otherwise specified as herein provided. Such written acceptance certificate shall be so filed by grantee not later than 12:01 p.m. of the thirtieth calendar day next following the effective date of the ordinance granting such franchise; and in default of the filing of such written acceptance as herein required, grantee shall be deemed to have rejected and repudiated the same; and thereafter, the acceptance of any such grantee shall not be received nor filed by the City Clerk, and such grantee shall have no rights, remedies, or redress in the premises, unless and until the Council shall, by resolution, determine that such acceptance be received or filed, and then

upon such terms and conditions as the Council may impose; provided, that in any case and in any instance, all rights, remedies, and redress in these premises which may or shall be available to the city, shall at all times be so available to the city, and shall be preserved and maintained and shall continuously exist in and to the city, and shall not be in any manner or means modified, abridged, altered, restricted, or impaired by reason of any of these premises, or otherwise. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-211. NATURE OF FRANCHISE.

(a) A franchise granted pursuant to this article shall authorize and permit a franchisee to construct, operate, maintain and repair a cable system, or an OVS (as applicable) to provide cable service in the city, and for that purpose to erect, install, construct, repair, replace, reconstruct, maintain facilities appurtenant to such system in, on, over, under, upon, across, and along those public rights-of-way that the city may authorize a franchisee to use.

(b) A franchise shall not convey rights other than as specified in this ordinance, or in a franchise agreement; no rights shall pass by implication.

(c) A franchise shall not include, or be a substitute for:

(1) Complying with requirements for the privilege of transacting and carrying on a business within the city, including but not limited to complying with the conditions the city may establish before constructing facilities for, or providing, non-cable services;

(2) Any permit, license, agreement or authorization required in connection with operations on or in public rights-of-way or public property; including by way of example and not limitation, encroachment and/or street works permits;

(3) Any permits or agreements for occupying any other property of the city or private entities to which access is not specifically granted by the franchise.

(d) A franchise does not relieve a franchisee of its duty to comply with all governmental and regulatory requirements including the Charter and all city ordinances and regulations, and every franchisee must comply with the same. Likewise, the rights granted under a franchise are subject to the exercise of legislative, police and other powers city now has or may later obtain, including but not limited to the power of eminent domain. Any conflict between the provisions of this article and any other present or future lawful exercise of the city's police powers shall be resolved in favor of the latter, except that any such exercise that is not of general application in the jurisdiction or applies exclusively to any cable communication system franchise which contains provisions inconsistent with this chapter shall prevail only if upon such exercise the city finds an emergency exists constituting a danger to health, safety, property or general welfare or such exercise is mandated by law.

(e) A franchise does not convey title, equitable or legal, in the public rights-of-way. Rights granted may not be subdivided or subleased.

(f) No franchise shall be exclusive, or prevent the city from issuing other franchises or authorizations, or prevent the city from itself constructing, operating, or repairing its own cable communications system, with or without a franchise.

(g) Every franchise shall be for a term of years, which term shall be eight (8) years, unless a franchise specifies otherwise.

(h) Unless otherwise specifically stated in a franchise or required by law, all acts which a franchisee is required to perform under the franchise or applicable law must be performed at the franchisee's expense.

(i) If a cable communications system operator fails to perform or cause to be performed work required to be performed within the time provided for performance including any required notice and cure period, the city may perform the work and bill the operator therefor. The operator shall pay the amounts billed within 30 days.

(j) The grant of any privilege by any franchise hereunder shall be subordinate to any prior lawful occupancy of any street or public property or to the grant of any privilege under any other franchise of prior date, whether hereunder or otherwise, insofar as there shall be any conflict respecting such privilege rendering the same unable to be exercised by all of any number of grantees.

(k) In the event any new territory shall become annexed to the city which shall be contiguous to any franchise area in the city, or if there be at the time of the annexation of such new territory only one franchise area in the city, such new territory shall become, by operation of law, a part of said franchise area(s) immediately upon the date such annexation becomes final, and said franchise area(s) shall thereafter be deemed enlarged to include the addition of such new territory, unless the Council shall direct grantee(s) of a franchise hereunder and any interested parties to submit applications for such new territory. In the event any new territory shall become annexed to the city which shall not be contiguous to any franchise area and there be more than one franchise area in the city, then the Council shall direct grantees of a franchise hereunder and any interested parties to submit applications for such new territory. Such applications shall be reviewed and acted upon as provided in this article and such new territory shall become a part of the franchise area of the applicant(s) determined by the Council to be best suited to provide service to such territory. The appropriate grantee(s) shall diligently and promptly make cable communication services available to any new territory after the annexation thereof becomes final.

(l) For each franchise issued pursuant to the provisions of this article, one or more environmental analysis shall be undertaken as required by the provisions of the California Environmental Quality Act commencing at Section 21000 of the Public Resources Code. The franchise documents shall be subject to amendment for the purpose of implementing any changes dictated by the environmental analysis. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-212. ADMINISTRATION OF FRANCHISE; ADOPTION OF REGULATIONS.

(a) The city shall exercise regulatory authority under and administer this ordinance and any franchise granted thereunder, and may from time to time modify this ordinance, as authorized by applicable law. If the cable communication system operated by franchisee also serves other contiguous or neighboring communities, city may, at its sole option, participate in a joint regulatory agency, with delegated responsibility in the area of cable and related communications.

(b) The CAO is hereby authorized to administer the provisions of this ordinance and any franchise issued pursuant thereto, and to provide any notices (including noncompliance notices) and to take any action on the city's behalf that may be required hereunder or under applicable law, consistent therewith.

(c) The CAO may from time to time adopt regulations to implement the provisions of this ordinance. This ordinance, and any regulations adopted pursuant to this ordinance are not contracts with any franchisee, and may be amended at any time.

(d) The failure of the city, upon one or more occasions, to exercise a right or to require compliance or performance under a franchise or any other applicable law shall not be deemed to constitute a waiver of such right or a waiver of compliance or performance, unless such right has been specifically waived in writing.

(e) The city may designate one or more entities, including itself, to control and manage the use of public, educational and government access channels, facilities and equipment. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-213. APPLICATION REQUIREMENTS AND FEES.

(a) Any person seeking to obtain, modify (to expand services offered), transfer, extend, or renew a franchise shall submit a signed original of its application and six (6) copies to the City Clerk. The city shall make applications available for public inspection consistent with applicable law. The application must conform to all of the requirements of law, this article and any implicated franchise. Requests for other types of franchise modifications may be processed by city without an application, and submitted for approval. However, nothing herein shall prevent the city from requiring an application in the event the city determines, based on the nature of the requested modification, that the public interest would best be served by the submission of an application pursuant to this article.

(b) An applicant, to the maximum extent allowable by law, shall pay all reasonable costs incurred by the city related to the processing of any application. Processing costs shall include, but not be limited to, the costs of services rendered by any city employee, agent or representative, including consultants and attorneys. The initial franchise application fee deposit shall be $5,000.00, provided the city may increase this initial deposit amount from time to time, which deposit shall be submitted with the application. The city may, as costs are incurred, draw upon the deposit to recover its administrative costs allowed by law, including, but not limited to, the reasonable cost of outside consultants retained by the city related to the city's consideration and processing of an application. The CAO, at any time, may require the

applicant to deposit additional sums if it appears that the initial deposit or subsequent deposits will be exhausted prior to the final action by the city. The applicant will not be entitled to further consideration by city of its requested action until such time as the additional deposit required by the CAO has been deposited with the city. In the event the amount of the deposit of an applicant is in excess of the amount of the administrative expenses of the city related to the action requested, then the applicant shall be entitled to a return of any such excess amount. In addition, an applicant that is awarded a franchise shall reimburse the city for for all publication expenses allowed by law incurred by city in connection with the granting of a franchise. Such payment shall be made to the city within 30 days after the city furnishes the franchisee with a statement of such expenses. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-214. CABLE COMMUNICATION SYSTEM FRANCHISE.

(a) Except as specifically provided in this article, an application must be filed to obtain, modify (to expand services offered), transfer, extend, or renew a cable communication system franchise. All applications shall include the names and addresses of persons authorized to act on behalf of the applicant with respect to the application. A request for renewal filed under 47 U.S.C. § 546(h) need not contain the information required below.

(b) Application Contents.

(1) The CAO may specify the information that must be provided in connection with an application, and the form in which the information is to be provided. At a minimum each application must identify the applicant, show that the applicant is financially, technically and legally qualified to construct, maintain and operate the cable communication system, contain a pro forma showing capital expenditures and expected income and expenses for the first five (5) years the applicant is to hold the franchise, and show that the applicant is willing to comply unconditionally with its franchise obligations.

(2) Any application for an initial or renewal franchise or rebuild of the system and/or facilities, must describe in detail the cable communication system that the applicant proposes to build, show where it will be located, set out the system construction schedule, and show that the applicant will provide adequate channels/capacity, facilities and other support for public, educational and government use (including institutional network use) of the cable system. A detailed description of the physical facilities proposed, which shall include at least the following:

(i) A description of the channel capacity, technical design, performance characteristics, headend, access (and institutional network) facilities and equipment;

(ii) The location of proposed facility and facility design, including a description of the miles of plant to be installed, and a description of the size of equipment cabinets, shielding and electronics that will be installed along the plant route, the power sources that will be used and a description of the noise, exhaust and pollutants, if any, that will be generated by the operation of the same; provided, however, that, if some of the descriptive data is not available at the time of application, the city may grant the franchise subject to conditions that the data be filed and approved by the city before

construction begins and that the franchise will be deemed to be forfeited if the data is not supplied and approved; provided, further, that the foregoing proviso does not authorize the grant of a franchise where there is not sufficient information to appraise the impact of the applicant's proposal;

(iii) A map of the general route the facility will follow; a designation of the portions of the system that will be placed above ground and the portions that will be placed underground, and the construction techniques that the operator proposes to use in installing the system above ground and underground; a schedule for construction of the facility, describing when and where construction will begin, how it will proceed, benchmarks indicating the schedule competition of portions of the system and when construction will be completed; and the expected effect on right-of-way usage, including information on the ability of the public rights-of-way to accommodate the proposed system, including, as appropriate given the system proposed, an estimate of the availability of space in conduits and an estimate of the cost of any necessary rearrangement of existing facilities.

(3) The application must include a description, where appropriate, of how services will be converted from existing facilities to new facilities, and what will be done with existing facilities.

(4) A applicant must demonstrate how it will reasonably meet the future cable-related needs and interests of the community, including descriptions of the capacity, facilities and support for public, educational, and governmental use of the system (including institutional networks) applicant proposes to provide and why applicant believes that the proposal is adequate to meet the future cable-related needs and interests of the community.

(5) The applicant must demonstrate financial qualifications, including at least the following: (i) the proposed rate structure, including projected charges for each service tier, installation, converters, and all other proposed equipment or services; (ii) a statement regarding the applicant's financial ability to complete the construction to meet the time frame proposed and to operate the cable communication system proposed certified by the applicant's chief financial officer.

(6) The applicant must demonstrate its technical ability to construct and/or operate the proposed cable communication system.

(7) The applicant must demonstrate it is legally qualified, which proof must include a demonstration that the applicant:

(i) Has received, or is in a position to receive, necessary authorizations from State and Federal authorities;

(ii) Has not engaged in conduct (fraud, racketeering, violation of antitrust laws, consumer protection laws, or similar laws) that allows the city to conclude the applicant cannot be relied upon to comply with requirements of a franchise, or provisions of this title;

(iii) Is willing to enter into a franchise, to pay required compensation and to abide by the provisions of applicable law, including those relating to the construction, operation or repair of its facilities; and has not entered into any agreement that would prevent it from doing so; and

(iv) The applicant must not have submitted an application for an initial or renewal franchise to the city, which was denied on the ground that the applicant failed to propose a cable communication system meeting the cable-related needs and interests of the community, or as to which any challenges to such franchising decision were finally resolved (including any appeals) adversely to the applicant, within three years preceding the submission of the application.

(8) An applicant may show that it would be inappropriate to deny it a franchise by virtue of: the particular circumstances surrounding the acts or omissions at issue; the steps taken by the applicant to cure all harms flowing there from and to prevent their recurrence; and the lack of involvement of the applicant's principals, or the remoteness of the acts or omissions from the operation of cable communications systems.

(9) The extent that the applicant is in any respect relying on the financial or technical resources of another person, including another affiliate, proofs should be provided for that person.

(10) A description of the applicant's prior experience in cable communication system ownership, construction, and operation, and identification of cities and counties in California in which the applicant or any of its principals have a cable franchise or any interest therein, provided that an applicant that holds a franchise for the city and is seeking renewal of that franchise need only provide this information for other cities and counties in California where its franchise is scheduled to expire during the 12-month period prior to the date its application is submitted to the city and for other cities and counties in California where its franchise had been scheduled to expire during the 12-month period after the date its application is submitted to the city. If an applicant has no other franchise in California, it shall provide the information for its operations in other states.

(11) An affidavit or declaration of the applicant or authorized officer thereof certifying the truth and accuracy of the information in the application, and certifying that the application meets all requirements of applicable law.

(c) An applicant (and the transferor and transferee, in the case of a transfer) shall respond to any lawful request for information from city, by the time specified by the city. An application may be rejected if it is incomplete, or if the response to requests for information is not timely and complete. For purposes of this section the term applicant includes any affiliate of applicant.

(d) A franchisee may not require a subscriber or a building owner or manager to enter into an exclusive contract as a condition of providing or continuing service. However, nothing

herein prevents a franchisee from entering into an otherwise lawful, mutually desired exclusive arrangement with a building owner or manager of a multiple dwelling unit or commercial subscriber.

(e) In addition to satisfying such additional or stricter conditions as the city finds necessary based on its investigations, the following elements shall be required in every franchise:

(1) Each franchisee shall provide a cable system, which uses at least 750MHz equipment of high quality and reliability. Each franchisee shall install and activate the return portion of the cable system in the sub-low frequency spectrum of 5 MHz to 30 MHz.

(2) Public, educational and government use of the system.

(i) A franchisee shall provide as a minimum the greater of 3 channels or 18 MHz of bandwidth for PEG access to each subscriber.

(ii) Each franchisee shall install, maintain, and replace as necessary, a dedicated, bi-directional fiber optic link (or link with equivalent or superior functionality, capacity and reliability) between its headend and a location designated by the city as the primary access center.

(iii) Each franchisee shall install, maintain, and replace activated two-way cable plant and all headend, cable plant, and node equipment required to make it operable so that the city, schools, and all designated PEG access centers and access facilities located within the franchise area will be able to send and receive signals (video, audio, and data) using the activated two-way cable plant.

(iv) Each franchisee shall ensure that technically adequate signal quality, routing systems, and switching and/or processing equipment are initially and continuously provided for all access interconnections both within franchisee's cable communication system and with other cable communication systems throughout the duration of its franchise.

(v) In the event a franchisee makes any change in the cable communication system and related equipment and facilities or in the franchisee's signal delivery technology which directly or indirectly substantially affects the signal quality or transmission of access programming, the franchisee shall at its expense take necessary steps or provide necessary technical assistance, including the acquisition of all necessary equipment, to ensure that the capabilities of access programmers are not diminished or adversely affected by such change.

(vi) A franchisee shall maintain all access channels (both upstream channels and downstream channels) and all interconnections of access channels at the same level of technical quality and reliability as the best commercial channels carried on the franchisee's system.

(f) It is the policy of the city to ensure that every cable communication system provides service in its franchise area upon request to any person or any government building. Each franchisee shall extend service upon request within its franchise area, provided that, a franchise may permit a franchisee to require a potential subscriber to contribute a fair share

of the capital costs of installation or extension as a condition of extension or installation in cases where such extension or installation may be unduly expensive. Service must be provided within time limits specified in Section immediately below.

(g) Except as a franchise otherwise provides, service must be extended upon request to any person or to any government building in a franchisee's franchise area (i) within seven (7) days of the request, where service can be provided by activating or installing a drop; (ii) within ninety (90) days of the request where an extension of one-half mile or less is required; or (iii) within six (6) months where an extension of one-half mile or more is required.

(h) A cable communication system within the City of Fresno shall meet or exceed the technical standards set forth in 47 U.S.C. § 544 (e); 47 C.F.R. § 76.601 and any other applicable technical standards.

(i) Each cable operator shall perform at its expense such tests as may be necessary to show whether or not the franchisee is in compliance with its obligations under applicable FCC standards, this article or a franchise.

(j) Upon request of the city, every cable communication system shall be required to interconnect with every other cable communication system in the city, or adjacent to the city, on fair and reasonable terms for purposes of providing PEG and I-Net services.

(k) Each franchisee shall, during the term of the franchise, ensure that subscribers are able to receive continuous service. In the event the franchise is revoked or terminated, the franchisee may be required to continue to provide service for a reasonable period to assure an orderly transition of service from the franchisee to another entity. A franchise may establish more particular requirements under which these obligations will be satisfied.

(l) The city may regulate any of the cable operator's rates and charges, except to the extent it is prohibited from doing so by law. The city will regulate rates in accordance with FCC rules and regulations, where applicable. Except to the extent FCC rules provide otherwise, all rates and charges that are subject to regulation, and changes in those rates or charges must be approved in advance. The CAO may take any required steps to file complaints, toll rates, issue accounting orders or take any other steps required to comply with FCC regulations. The Council shall be responsible for issuing rate orders that establish rates or order refunds.

(m) Except to the extent the city may not legally enforce such a requirement, a cable operator is prohibited from discriminating in its rates or charges or from granting undue preferences to any subscriber, potential subscriber, or group of subscribers or potential subscribers; provided, however, that a franchisee may offer temporary, bona fide promotional discounts in order to attract or maintain subscribers, so long as such discounts are offered on a non-discriminatory basis to similar classes of subscribers throughout the franchise area; and a franchisee may offer discounts for the elderly, the disabled, or the economically disadvantaged; and such other discounts as it is expressly entitled to provide under federal law, if such discounts are applied in a uniform and consistent manner.

(n) A cable operator shall not deny access or charge different rates to any group of subscribers or potential subscribers because of the income of the residents of the local area in which such group resides.

(o) Each cable operator must satisfy all applicable FCC, state and the city's cable customer service standards or consumer protection standards, including 47 CFR 76.309. The city may establish from time to time by resolution cable customer service standards that exceed or are additional to federal and state requirements and that are not specifically preempted. In the case of a conflict among standards, the stricter standard shall apply.

(1) As subscribers are connected or reconnected to the cable communication system, and at least once annually thereafter, the franchisee shall provide each subscriber with written information concerning the procedures for making inquiries or complaints, including the name, address and local telephone number of the employee or employees or agent to whom such inquiries or complaints are to be addressed, and also furnish information concerning the city office responsible for administration of the franchise with the name and telephone number of the office. The notice shall also indicate franchisee's business hours and procedures for responding to inquiries after normal business hours. The franchisee shall provide all subscribers and the city written notice no less than thirty (30) days prior to any proposed change in these policies. Under normal circumstances, the franchisee shall provide all subscribers and the city with at least thirty (30) days written notice prior to the implementation of any change in rates or programming services. Copies of all notices provided to subscriber shall be filed concurrently with the city.

(2) For violation of cable customer service standards, penalties will be imposed as follows:

(i) Two hundred dollars ($200) for each day of each material breach, not to exceed six hundred dollars ($600) for each occurrence of material breach;

(ii) If there is a subsequent material breach of the same provision within twelve (12) months, four hundred ($400) for each day of each material breach, not to exceed twelve hundred ($1200) for each occurrence of the material breach;

(iii) If there is a third or additional material breach of the same provision within twelve (12) months of the first, one thousand dollars ($1000) for each day of each material breach, not to exceed three thousand dollars ($3000) for each occurrence of the material breach;

(iv) Any penalty assessed under this section will be reduced dollar for dollar to the extent any other penalty or liquidated damage provision of a franchise imposes a monetary obligation on a franchisee for the same customer service failures, and no other monetary damages may be assessed. The city will provide notice, and impose penalties, under this section consistent with the procedures established by California Government Code § 53088.2(r). (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-215. INITIAL GRANT AND INFORMAL RENEWAL OF CABLE COMMUNICATION SYSTEM FRANCHISE.

(a) This section establishes additional provisions that apply to an application for an initial franchise, or a renewal franchise application that is not governed by 47 U.S.C. §546(a)-(g).

(b) Any person may apply for an initial or renewal franchise by submitting an application therefor on that person's own initiative, or in response to a request for proposals issued by the city, without limiting the foregoing a franchisee may apply for a renewal of an existing franchise in accordance with and in the manner provided by law including the Cable Act and section 626 thereof. If the city receives an unsolicited application, it may choose to issue a request for additional proposals, and require the applicant to amend its proposal to respond thereto. The city shall promptly conduct such investigations as are necessary to act on an application.

(c) In determining whether to grant the application the city may consider:

(1) The extent to which an applicant for renewal has substantially complied with the applicable law and the material terms of any existing cable franchise;

(2) Whether an applicant for renewal's quality of service under its existing Franchise, including signal quality, response to customer complaints, billing practices, and the like has been reasonable in light of the needs of the community;

(3) Where the applicant has not previously held a cable communication system franchise in the city, whether the applicant's record in other communities indicates that it can be relied upon to provide high-quality service throughout any franchise term;

(4) Whether the applicant has the financial, legal, and technical ability to provide the services, facilities, and equipment set forth in an application, and to satisfy any minimum requirements established by the city;

(5) Whether the applicant's application is reasonable to meet the future cable-related needs and interests of the city, taking into account the cost of meeting such needs and interests;

(6) Whether issuance of a franchise is warranted in the public interest considering the immediate and future effect on streets, public property, and private property that will be used by the applicant's cable communication system;

(7) Whether issuance of the franchise would reduce competition in the provision of cable service in the city;

(8) Such other matters as the city is authorized or required to consider.

(d) The Council shall receive such report and recommendations of the CAO, shall consider the same together with such application, and shall make its determination either that such application should be accepted upon such terms and conditions as the Council shall determine, and as herein provided, or that such application should be rejected. In making any determination hereunder as to any application, the Council shall give due consideration to the quality

of the service proposed, rates to subscribers, income to the city, experience, character background, and financial responsibility of the applicant and its management and owners, the technical and performance quality of the equipment to be used, the willingness and ability of the applicant to meet construction and physical requirements, policy conditions, franchise limitations, and requirements imposed by this article or pursuant hereto, and any other considerations deemed pertinent by the Council for safeguarding the interest of the city and the public. The Council may determine that the award of any franchise shall be made on the basis of such considerations with or without competitive bidding, or otherwise, in its discretion.

(e) If the Council shall determine that such application should be rejected, such determination shall be final and conclusive, and the same shall be deemed rejected. If the Council shall determine such application should be accepted, the following shall be done and caused to be done:

(1) The Council shall decide and specify the terms and conditions of any franchise to be granted hereunder and as herein provided;

(2) The Council shall pass its resolution of intention to grant such franchise, stating the name of the proposed grantee, the character of the franchise, the terms and conditions upon which such franchise is proposed to be granted, fixing and setting forth a day, hour, and place certain when and where any persons having any interest therein or objection to the granting thereof may appear before the Council and be heard, and directing the City Clerk to publish said resolution at least once, within fifteen days of the passage thereof;

(3) Within fifteen days after the passage of said resolution, the City Clerk shall cause the same to be published in a newspaper of general circulation within the city, and the same shall be published at least ten days prior to the date specified for hearing thereon. Copies of such resolution shall be mailed to any person requesting same in writing.

(f) At the time set for such hearing, or at any adjournment thereof, the Council shall proceed to hear and pass upon all protests, and its decision thereon shall be final and conclusive. Thereafter, the Council shall make one of the following determinations:

(1) That such franchise be denied; or

(2) That such franchise be granted upon the terms and conditions as specified in the resolution of intention to grant the same; or

(3) That such franchise be granted, but upon the terms and conditions different from those specified in the resolution of intention to grant the same.

(g) If the Council shall determine that such franchise be denied, such determination shall be by resolution and shall be final and conclusive. If the Council shall determine that such franchise be granted, such determination shall be by ordinance, granting such franchise upon such terms and conditions as specified therein.

(h) If the city determines that issuance or informal renewal of a franchise would be in the public interest considering the factors described above, following public hearing and adoption

of any required resolution of intention and the public notice and comment period thereunder, it may proffer a franchise agreement to the applicant. No franchise shall become effective until the applicant unconditionally accepts the franchise, and the franchise agreement is signed. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-216. FORMAL RENEWAL OF CABLE COMMUNICATION SYSTEM FRANCHISE.

(a) This section establishes additional provisions that apply to applications for renewal governed by 47 U.S.C. § 546(a)-(g).

(b) A franchisee that intends to exercise rights under 47 U.S.C. § 546(a)-(g) shall submit a notice in writing to the city in a timely manner clearly stating that it is activating the procedures set forth in those sections. The city shall thereafter commence any proceedings that may be required under federal law, and upon completion of those proceedings, the city may issue a request for proposals and an application may be submitted for renewal. The city may preliminarily deny the application by resolution, and if the application is preliminarily denied, the city may conduct such proceedings and by resolution establish such procedures and appoint such individuals as may be necessary to conduct any proceedings to review the application. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-217. TRANSFER OF CABLE COMMUNICATION SYSTEM FRANCHISE.

(a) This section establishes additional provisions that apply to applications for transfer approval.

(b) No transfer shall occur without prior written notice to and approval of the city.

(c) An application for transfer must contain all the information required by the CAO, by this article and all information required by any FCC transfer form. At a minimum, an application must: describe the entities involved in the transaction and the entity that will hold the franchise; describe the chain of ownership before and after the proposed transaction; show that the entity that will hold the franchise will be legally, financially, and technically qualified to do so; attach complete information on the proposed transaction, including the contracts or other documents that relate to the proposed transaction, and all documents, schedules, exhibits, or the like referred to therein; and attach any shareholder reports or filings with the Securities and Exchange Commission ("SEC") that discuss the transaction.

(d) In determining whether a transfer application should be granted, denied, or granted subject to conditions, the city may consider the legal, financial, and technical qualifications of the transferee to operate the cable communication system; any potential impact of the transfer on subscriber rates or services; whether the incumbent cable operator is in compliance with its franchise; whether the transferee owns or controls any other cable system in the city, whether operation by the transferee may eliminate or reduce competition in the delivery of cable service in the city; and whether operation by the transferee or approval of the transfer would otherwise adversely affect subscribers, the public, or the city's interest under this article, the

franchise, or other applicable law. The proposed transferee shall pay all reasonable costs incurred by the city in reviewing and evaluating the applications to the maximum extent allowable by law.

(1) The applicant must be willing to comply with the provisions of this article and applicable laws; and to comply with such requirements of a franchise as the city may lawfully require;

(2) The applicant must not have had any cable system or OVS franchise validly revoked, (including any appeals) by the city within three (3) years preceding the submission of the application;

(3) The applicant may not have had an application to the city for an initial or renewal cable system franchise denied on the ground that the applicant failed to propose a cable system meeting the cable-related needs and interests of the community, or as to which any challenges to such franchising decision were finally resolved (including any appeals) adversely to the applicant, within three (3) years preceding the submission of the application; and may not have had an application for an initial or renewal franchise denied on any ground within three (3) years of the application;

(4) The applicant shall not be issued a franchise if, at any time during the ten (10) years preceding the submission of the application, applicant was convicted of fraud, racketeering, anticompetitive actions, unfair trade practices or other conduct of such character that the applicant cannot be relied upon to deal truthfully with city and the subscribers, or to substantially comply with its obligations;

(5) Applicant must have the necessary authority under California and federal law to operate a cable communication system, or show that it is in a position to obtain that authority;

(6) The applicant shall not be issued a franchise if it files materially misleading information in its application or intentionally withholds information that the applicant lawfully is required to provide.

(e) In order to obtain approval of a transfer, an applicant must show, at a minimum that: the transferee is qualified; the transfer will not adversely affect the interests of subscribers, the public, or the city; and that non-compliance issues have been resolved. No application shall be granted unless the transferee agrees in writing that it will abide by and accept all terms of this title and the franchise, and that it will assume the obligations, liabilities, and responsibility for all acts and omissions, known and unknown, of the previous franchisee for all purposes.

(f) Every franchise shall be deemed to be held in trust, and to be personal to the franchisee. Any transfer that is made without the prior approval of the city shall be deemed to impair that trust.

(g) Notwithstanding any other provision of this article, pledges in trust or mortgages of the assets of a cable communications system to secure the construction, operation, or repair of the

system may be made without application and without the city's prior consent. However, no such arrangement may be made if it would in any respect under any condition: (A) prevent the cable communications system operator or any successor from complying with the franchise or applicable law; or (B) permit a third party to succeed to the interest of the operator, or to own or control the system, without the prior consent of the city. Any mortgage, pledge or lease shall be subject to and subordinate to the rights of the city under any franchise, this article, or other applicable law. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-218. CABLE SYSTEMS FRANCHISE FEE.

(a) A cable system operator shall pay to the City of Fresno a franchise fee in an amount equal to 5 percent of gross revenues, or such other amount as may be specified in the franchise documents; provided, however, that the amount shall be subject to increase should federal limits on fee payments be eliminated or changed and other cable operators are subject to a higher fee.

(1) For purposes of calculating the franchise fee, gross revenues shall include a fair proportion of all revenues attributable to franchised cable services which are delivered by the franchisee, regardless of method. If a franchisee bundles, ties or combines the sale of some or all of its services, whether or not authorized by this franchise, and assesses its subscribers only one charge, the combined revenue therefrom shall be allocated to gross revenues to the full extent which would have been charged by franchisee if the subscriber had received only franchised cable services. In no event shall the amount allocated to franchised cable services under the foregoing calculation exceed the lesser of (1) the total amount of combined revenue actually received by a franchisee for unbundled services, or (2) the net revenue derived when mandatory tariff rates (if any) imposed by a governmental authority for components of the bundled, tied or combined services are deducted from the combined revenue. A franchisee may not alter or change any payments or amounts of compensation to the city which may be dictated by another franchise, ordinance, agreement or by applicable law and which are related to use of the public rights-of-way in the provision of non-franchised cable services in the city.

(2) In the event that a franchisee bundles services that are included in the definition of gross revenue with other services not included, the unbundled amount of gross revenue will be based on the published rate for any service provided for in a cable communications system franchise. Exception can be made with a clear showing by the franchisee that services offered pursuant to a franchise were discounted along with an accounting of the amount of said discount.

(3) If a franchisee offers its subscribers any kind of discount for receipt of both franchised cable and non-cable services (which are not included in the definition of gross revenues), the discount may be applied proportionately to franchised cable services and non-cable services upon notification to the city of such discount methodology. Such notification shall include the amount of the discount being applied to each service and documentation demonstrating the promotion and billing of such discount.

(4) The definition of gross revenue is to be as inclusive as possible consistent with existing applicable law. If a change in federal law occurs subsequent to the effective date of this ordinance, such change shall not impact the gross revenues definition in such a way to reduce gross revenues - unless the change specifically preempts the affected portion of the definition above. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-219. ADDITIONAL OPEN VIDEO SYSTEM FRANCHISE REQUIREMENTS.

(a) In addition to the other requirements of this article, the application must contain the following information:

(1) Identity of the applicant; the persons who exercise working control over the applicant; and the persons who control those persons, to the ultimate parent.

(2) Evidence satisfactory to the city that the applicant is legally qualified, which proof must include a demonstration that the applicant:

(i) Has received, or is in a position to receive, necessary authorizations from state and federal authorities;

(ii) Has not engaged in conduct (fraud, racketeering, violation of antitrust laws, consumer protection laws, or similar laws) that allows city to conclude the applicant cannot be relied upon to comply with requirements of franchise, or provisions of this title;

(iii) Is willing to enter into a franchise, to pay required compensation and to abide by the provisions of applicable law, including those relating to the construction, operation or maintenance of its facilities, and has not entered into any agreement that would prevent it from doing so.

(3) An affidavit or declaration of the applicant or authorized officer thereof certifying the truth and accuracy of the information in the application, and certifying that the application meets all requirements of applicable law.

(4) To the extent that the applicant is in any respect relying on the financial or technical resources of another person, including another Affiliate, the proofs should be provided for that person. An applicant will be presumed to have the requisite financial, or technical or legal qualifications to the extent such qualifications have been reviewed and approved by a state agency of competent jurisdiction; or if applicant is a holder of a franchise in the city for a cable system or open video system, and conduct under such other franchise provides no basis for additional investigation.

(5) An applicant shall respond to requests for information completely, and within the time directed by the city, and must strictly comply with procedures, instructions, and requirements the city may establish.

(6) An application may be rejected if it is incomplete or the applicant fails to follow procedures or respond fully to information requests.

(b) In addition to the other requirements of this article, in evaluating a franchise application, the city may consider the following:

(1) The extent to which the applicant has substantially complied with the applicable law and the material terms of any existing city OVS franchise;

(2) Whether the applicant has the financial, technical, and legal qualifications to hold an OVS franchise including:

(i) The applicant must be willing to comply with the provisions of this article and applicable laws, and to comply with such requirements of an OVS agreement as the city may lawfully require;

(ii) The applicant must not hold a cable system franchise, or have pending an application for a cable system franchise;

(iii) The applicant must not have had any cable system or OVS franchise validly revoked, (including any appeals) by the city within three (3) years preceding the submission of the application;

(iv) The applicant may not have had an application for an initial or renewal cable system franchise to the city denied on the ground that the applicant failed to propose a cable system meeting the cable-related needs and interests of the community, or as to which any challenges to such franchising decision were finally resolved (including any appeals) adversely to the applicant, within three (3) years preceding the submission of the application; and

(v) The applicant may not have had an application for an initial or renewal OVS franchise denied on any grounds within three (3) years of the applications.

(3) Whether the application satisfies any minimum requirements established by the city for, or will otherwise provide adequate public, educational, and governmental use channels/capacity, facilities, or financial support (including with respect to institutional networks);

(4) Whether issuance of a franchise would require replacement of property or involve disruption of property, public services, or use of the public rights-of-way;

(5) Whether the approval of the application may eliminate or reduce competition in the delivery of cable communication service in the city;

(6) Whether the applicant has the necessary authority under California and federal law to operate an OVS, and is certified by the FCC under Section 653 of the Cable Act.

(c) The Applicant shall not be issued a franchise if it files materially misleading information in its application or intentionally withholds information that the applicant lawfully is required to provide.

(d) An applicant shall be provided a reasonable opportunity to show that, a franchise should issue even if the requirements of this section are not satisfied, by virtue of the

circumstances surrounding the matter and the steps taken by the applicant to cure all harms flowing therefrom and prevent their recurrence, the lack of involvement of the applicant's principals, or the remoteness of the matter from the operation of a cable system.

(e) An applicant may show that it would be inappropriate to deny it a franchise by virtue of: the particular circumstances surrounding the acts or omissions at issue; the steps taken by the applicant to cure all harms flowing therefrom and to prevent their recurrence; and the lack of involvement of the applicant's principals, or the remoteness of the acts or omissions from the operation of open video system facilities.

(f) The applicant shall not be issued a franchise if, at any time during the ten (10) years preceding the submission of the application, applicant was convicted of fraud, racketeering, anticompetitive actions, unfair trade practices or other conduct of such character that the applicant cannot be relied upon to deal truthfully with the city and the subscribers, or to substantially comply with its obligations.

(g) Minimum conditions for grant of OVS franchise.

(1) No OVS operator shall be issued a franchise, or may commence construction of an OVS system, until (A) it agrees to match in all respects the highest PEG obligations borne by any cable operator in the city; or (B) it agrees to PEG obligations acceptable to the city.

(2) An OVS franchisee may not require a subscriber or a building owner or manager to enter into an exclusive contract as a condition of providing or continuing service, nor may a franchisee enter into any arrangement that would effectively prevent other persons from using the OVS to compete in the delivery of cable services with a franchisee or its affiliates.

(3) Any OVS operator that constructs an I-Net must match in all respects the highest I-Net obligations borne by any cable operator in the city, unless it agrees to alternative I-Net obligations acceptable to the city

(4) Every OVS franchise shall specify the construction schedule that will apply to any required construction, upgrade, or rebuild of the OVS. The schedule shall provide for prompt completion of the project, considering the amount and type of construction required.

(5) Each OVS operator shall perform at its expense such tests as may be necessary to show whether or not the franchisee is in compliance with its obligations under this article or a franchise.

(6) Every franchisee must satisfy customer service consumer protection requirements established from time to time under state, local law or resolution and the franchise and applicable to OVS.

(h) For purposes of this section the term applicant includes any affiliate of applicant. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-220. SPECIAL TERMINATION RULES FOR OPEN VIDEO SYSTEM FRANCHISE.

If a franchisee's FCC certification is revoked or otherwise terminates as a result of the passage of time or as a matter of law, the city of Fresno may revoke the OVS franchise after a public hearing. The OVS franchise may also be revoked if federal regulations or statutory provisions governing OVS are declared invalid or unenforceable, or are repealed. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-221. RATE REGULATION FOR OPEN VIDEO SYSTEM FRANCHISE.

The city of Fresno may regulate a franchisee's rates and charges except as prohibited by law, and may do so by amendment to this article, separate ordinance, by amendment to an OVS Agreement, or in any other lawful manner. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-222. OPEN VIDEO SYSTEM FEE IN LIEU OF CABLE SYSTEM FRANCHISE FEE.

(a) Fee in lieu of franchise fee.

(1) In lieu of the franchise fee required by section 9-218 of this article, an OVS operator shall pay a fee of five percent (5%) of the gross revenues of the franchisee, its affiliates or any OVS operator of the OVS.

(2) Persons leasing OVS capacity.

(i) A person leasing capacity from an OVS operator, other than a person whose revenues are included in the payment made by an OVS operator under subsection (1) above, shall pay the city a fee in lieu of the franchise fee required by section 9-218 of this article of five percent (5%) of the gross revenues of such person. The city may require the OVS operator to collect this fee and remit it so city.

(ii) Notwithstanding the foregoing, where franchisee charges a person, other than an affiliate, to use its OVS (the "use payments"); and that person recovers those use payments through charges to its subscribers that are included in that person's gross revenues; and that person fully recovers the use payments through the charges to its subscribers and pays a fee on those charges pursuant to this subsection (2); then franchisee may deduct from its gross revenues the use payments it receives from that person (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-223. PROCEDURES FOR PAYING FRANCHISE FEES AND FEES IN LIEU OF FRANCHISE FEES.

(a) The franchise fee paid pursuant to section 9-218 of this article, or fee in lieu of franchise fee paid pursuant to section 9-222 shall be paid quarterly unless otherwise specified in a franchise. Payment for each quarter shall be made to the city not later than forty-five (45) days after the end of each calendar quarter.

(b) Unless a franchise provides otherwise, a franchisee or other entity subject to a fee under sections 9-218 and/or 9-222 of this article shall file with the city within forty-five (45) days of the end of each calendar quarter a statement showing gross revenues during the preceding quarter and the number of subscribers served.

(c) No acceptance by the city of any payment shall be construed as an accord that the amount paid is in fact the correct amount, nor shall such acceptance of such payment be construed as a release of any claim the city may have for additional sums payable.

(d) Neither the franchise fee under section 9-218 of this article nor the fee paid in lieu of the franchise fee under section 9-222 of this article, is a payment in lieu of any tax, fee or other assessment of general applicability (including any such tax, fee or assessment imposed on both utilities and cable operators or their services, but not including a tax, fee, or assessment which is unduly discriminatory against cable operators or cable subscribers).

(e) In the event that a fee payment is not received by the city on or before the due date set forth in this Section or in a franchise, or the fee owed is not fully paid, the person subject to the fee will be charged interest on fee overdue from the due date at the lesser of the maximum rate then allowable by law or three percent (3%) above the rate for three-month Federal Treasury Bills at the most recent United States Treasury Department sale of such Treasury Bills occurring prior to the due date of the franchise fee payment.

(f) Within ninety (90) days of the date a franchisee ceases operations under a franchise (whether because of franchise termination, transfer, bankruptcy or for any other reason), the franchisee shall file a final statement of gross revenues covering the period from the beginning of the calendar year in which the operations ceased to the date operations ceased. The statement shall contain the information and be certified as required by this ordinance. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-224. GENERAL CONDITIONS UPON CONSTRUCTION, OPERATION AND REPAIR.

(a) The construction, operation, and repair of cable communications systems shall be performed in compliance with all laws, ordinances, departmental rules, regulations, and practices affecting such system. By way of example, and not limitation, this includes zoning and safety codes, construction standards, regulations for providing notice to persons that may be affected by system construction, and directives governing the time, place and manner in which facilities may be installed in the rights-of-way. Persons engaged in the construction, operation, or repair of communications facilities shall exercise reasonable care in the performance of all their activities and shall use commonly accepted methods and devices for preventing failures and accidents that are likely to cause damage, injury, or nuisance to the public or to property.

(b) A franchise is required before a permit may be issued for work associated with the construction of a cable communications system. Any permit issued for such work to a person

that does not hold a franchise shall vest no rights in the permittee; the permit may be revoked at will, and the permittee at its sole cost shall remove all facilities installed under the permit upon the city's demand.

(c) Construction, operation, or repair of a cable communications system shall not commence until all required permits have been obtained from the proper city officials and all required fees have been paid. All work performed will be performed in strict accordance with the conditions of the permit. Upon order of the city, any work and/or construction undertaken that is not completed in compliance with the city's requirements, or which is installed without obtaining necessary permits and approvals shall be removed at permittee's sole cost.

(d) Interference with the use of the public rights-of-way by others, including others that may be installing cable communications systems, must be minimized. The CAO may require a person using the rights-of-way to cooperate with others through joint trenching and other arrangements to minimize adverse impacts on the rights-of-way.

(e) Work shall be publicized as CAO may direct from time to time. The publication of work may be used to notify the public and operators of other communications systems of the impending work, in order to minimize inconvenience and disruption to the public.

(1) Each franchisee shall provide city a plan for any initial system construction, or for any substantial rebuild, upgrade or extension of its facility, which shall show its timetable for construction of each phase of the project, and the areas of the city that will be affected.

(2) The CAO may from time to time, when the city receives application for a permit to use a particular route, or upon the city's own initiative, designate by published order a route or proposed route for installation of communications facilities and may (i) require all persons who wish to emplace underground facilities along that route or any part thereof to install them during a specified period and (ii) otherwise prohibit emplacement of such facilities along the route or any part thereof for 24 months or after such other, longer period as is necessary to protect the public.

(f) Failure on the part of the grantee to commence and diligently pursue and complete construction within the timeframe(s) provided in the franchise shall be grounds for termination of such franchise. By acceptance of the franchise granted hereunder, grantee agrees that failure to comply with any time requirements referred to in subsections (a), (b) and (c) of this section will result in damage to the city and that it is and will be impracticable to determine the actual amount of such damage in the event of delay; and grantee therefore agrees that, in addition to any other damage suffered by city, he will pay to city liquidated damages specified in the franchise documents for each and every day's delay beyond the time prescribed, plus authorized extensions thereof, for completion of any of the acts required to be done by this section.

(g) To the extent possible, operators of cable communications systems shall use existing poles and conduit. Additional poles may not be installed in the right-of-way, nor may pole capacity be increased by vertical or horizontal extenders, without the permission of the CAO.

(1) To minimize disruption of public passage or infrastructure, to forestall or relieve exhaustion of rights-of-way capacity, or to protect environmentally sensitive areas, the city may require as a condition of issuing any rights-of-way permit for erection of new poles or construction of underground conduit, the installation of which requires excavation of or along any traveled way that the franchisee, licensee, or holder of the rights-of-way permit emplace pole space or empty conduits in excess of its own present and reasonably foreseeable requirements for the purpose of accommodating the city and/or other franchisees and licensees.

(h) Undergrounding.

(1) In those areas and portions of the city where existing utilities are underground or hereafter may be placed underground, or are to be placed underground by a builder, developer or subdivider as part of a development or subdivision, then the grantee shall likewise construct, operate and maintain all of its cable communication system facilities unless the CAO in his/her sole discretion determines that doing such would impair functionality of the cable communication system.

(2) Whenever the owner of a pole locates or relocates underground within an area of the city, every cable communications system operator in the same area shall concurrently relocate its facilities underground.

(3) In new developments or subdivisions, the grantee shall be responsible for the performance of all necessary trenching and backfilling of main line and service trenches, including furnishing of any imported backfill material required or participate in joint trench construction with other utilities. The grantee will be responsible for the conduct of the engineering and labor to put the cable conduit in the trench. The grantee will be responsible for pulling in the cable, and providing the plant electronics and drops to individual homes, after occupancy.

(4) In those areas and portions of the city heretofore designated by the city as local improvement districts and where utility service facilities are currently located underground, the grantee shall be responsible for the undergrounding of cable facilities including the performance of all necessary trenching and backfilling of main line and service trenches, and the furnishing of any imported back-fill material required.

(5) Subject to approval by the CAO, incidental appurtenances such as amplifier boxes and pedestal mounted terminal boxes may be placed above ground, but shall be of such size and design and shall be so located as not to be unsightly or hazardous to the public.

(6) The CAO may, for good cause shown, exempt a particular system or facility or group of facilities from the obligation to locate or relocate facilities underground, where relocation is impractical, or where the city and the subscriber's interest can be protected in another manner. Nothing herein prevents the city from ordering communications facilities to be located or relocated underground under other provisions of the city's Municipal Code.

(i) The cable communication system operator, at its sole cost shall promptly repair any and all public rights-of-way, other public property, or private property that is disturbed or damaged

during the construction, operation, maintenance or repair of a cable communications system. Public property and public rights-of-way must be restored to the satisfaction of city or to a condition as good or better than before the disturbance or damage occurred.

(j) Movement of facilities for government.

(1) A cable communications system operator shall, at its sole cost and by a time specified by the city, protect, support, temporarily disconnect, relocate, or remove any of its property when required by the city by reason of traffic conditions; public safety; public right-of-way construction and repair (including regrading, resurfacing or widening); public right-of-way vacation; construction, installation or repair of sewers, drains, water pipes, power lines, signal lines, tracks, or any other type of government-owned system or utility, public work, public facility, or improvement; or for any other purpose where the CAO in his/her sole discretion determines that the work involved necessitates the removal or relocation of the cable communications system. Collectively, such matters are referred to below as the "public work."

(2) Except in the case of emergency, the city shall provide written notice describing where the public work is to be performed at least one week prior to the deadline by which a cable communications system operator must protect, support, temporarily disconnect, relocate or remove its facilities. Provided that, in an emergency, or where a cable communications system creates or is contributing to an imminent danger to health, safety, or property, the city may protect, support, temporarily disconnect, remove, or relocate any or all parts of the cable communications system without prior notice, and charge the cable communications system operator for costs incurred.

(k) Movement for others.

(1) To accommodate the construction, operation, or repair of the facilities of another person authorized to use the streets or public property, a cable communication system operator shall, at its sole cost unless otherwise mutually agreed between the cable communication system operator and the authorized person requesting movement, and by a time specified by such person, protect, support, temporarily disconnect, relocate or remove its facilities. The cable communications system operator must be given written notice describing where the construction, operation or repair is to be performed at least fifteen (15) days prior to the time by which its work must be completed. The city may resolve disputes as to responsibility for costs associated with removal, relaying, or relocation of facilities among entities authorized to install facilities in the streets or on public property if such entities are unable to do so themselves.

(2) A cable communications system operator shall, on the request of any person holding a valid permit issued by a governmental authority, temporarily raise or lower its wires by a time specified to permit the moving of buildings or other objects. A cable communications system operator shall be given not less than seven (7) days advance notice to arrange for such temporary wire changes. The expense of such temporary removal or raising or lowering of wires shall be paid by the person requesting the same.

(l) Abandonment in place.

(1) A cable communications system operator may abandon any property in place in the public rights-of-way upon written notice to the city. However, if, within 90 days of the receipt of written notice of abandonment, the city determines, that the safety, appearance, functioning or use of the public right-of-way and facilities in the public right-of-way will be adversely affected, the property must be removed by a date specified by the city.

(2) A cable communications system operator that abandons its property must, upon request, transfer ownership of the properties to the city at no cost, and execute necessary quitclaim deeds and indemnify the city against future costs associated with mitigating or eliminating any environmental hazard associated with the abandoned property.

(m) Every cable communications system and facility shall be subject to inspection and testing by the city. Each operator must respond to requests for information regarding its system and plans for the system as the city may from time to time issue, including requests for information regarding its plans for construction, operation and repair and the purposes for which the plant is being constructed, operated, or repaired.

(n) Each operator of a cable communications system that places facilities underground shall be a member of the regional notification center for subsurface installations (Underground Services Alert) and shall field mark the locations of its underground communications facilities upon request. The operator shall locate its facilities for the city at no charge.

(o) Every franchise shall specify for the city a construction schedule that will apply to any required construction, upgrade, or rebuild of the cable communications system. The schedule shall provide for the prompt completion of the project, shall show its timetable for construction of each phase of the project, with benchmarks for deliverables and the areas of the city that will be affected. The city may impose penalties on the operator for a failure to meet the accepted timetable and benchmarks where allowed by the franchise and applicable law.

(p) The city shall have the right to install and maintain, free of charge upon any poles or in any conduit owned by a franchisee any wire and pole fixtures that do not unreasonably interfere with the cable service operations of the franchisee. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-225. INDEMNITY AND INSURANCE.

(a) No franchise shall be valid or effective until and unless the city obtains an adequate indemnity from the franchisee in a form acceptable to the City Attorney and the City's Risk Manager. Without limitation the indemnity must:

(1) Release the city from and against any and all liability and responsibility in or arising out of the construction, operation or maintenance of the cable communications system. Each cable communications system operator must further agree not to sue or seek any money or damages from the city in connection with the above-mentioned matters.

(2) To the furthest extent allowed by law, hold city completely harmless and indemnify, protect and defend city and city's officials, members, employees, volunteers and agents and each of its officers, officials, employees, agents and volunteers against any and all claims, judgments, fines, penalties, forfeitures, damages, demands, liabilities, suits, notices, costs and expenses (including all reasonable costs and expenses for investigation and defense thereof [including, but not limited to attorney fees, court costs and expert fees]), or any one, more or all of these, of any nature whatsoever, arising or allegedly arising, directly or indirectly, out of, as a result of, or incident to, or in any way connected with the construction, operation or maintenance of the cable communications system, franchisee's exercise of any one, more or all of the rights and privileges herein granted, any breach or default in the performance of any obligation on franchisee's part to be performed hereunder, and/or any act(s) or omission(s) on the part of franchisee and/or any officer(s), agent(s), employee(s), contractor(s), sub-contractor(s), servant(s), or representative(s) of franchisee, except for any claims, judgments, fines, penalties, forfeitures, damages, demands, liabilities, suits, notices, costs and expenses, or any of these, caused solely by the active negligence or by the willful misconduct of city or any of its officials, officers, or employees acting within the scope of their duties for city.

(3) Provide that franchisee shall conduct all defense at its sole cost and expense. City shall be reimbursed for all costs and attorney's fees incurred by city in enforcing this obligation. This indemnity shall apply to all claims and liability regardless of whether any insurance policies are applicable. The policy limits do not act as a limitation upon the amount of indemnification to be provided. Approval or purchase of any insurance contracts or policies shall in no way relieve from liability nor limit the liability of franchisee and its officials, officers, employees, agents and volunteers.

(4) Provide that the covenant and representations relating to the indemnification provision shall survive the term of the franchise or other authorization and continue in full force and effect as to the party's responsibility to indemnify.

(b) A franchisee (or those acting on its behalf) shall not commence construction or operation of the system without obtaining insurance in amounts and of a type satisfactory to the city and approved by the city's Risk Manager. The required insurance must be obtained and maintained for the entire period the franchisee has facilities in the public right-of-way and for any additional period required by this ordinance and the franchise. If the franchisee, its contractors, or subcontractors do not obtain and maintain the required insurance, city may order such entities to stop operations until the insurance is obtained and approved.

(1) Certificates of insurance, endorsement and declarations reflecting the required insurance and naming the city as an additional insured, and other proofs as the city may find necessary, shall be filed with the city. For persons issued franchises after the effective date of this ordinance, certificates and other required proofs shall be filed within 30 days of the issuance of a franchise, prior to the commencement of construction, once a year thereafter as to insurance certificates, and whenever there is any change in coverage. For entities that have facilities in the public right-of-way as of the effective date of this

ordinance, certificates and other required proofs shall be filed within 60 days of the effective date of this ordinance, annually thereafter, and whenever there is any change in coverage, unless a pre-existing franchise provides for filing of certificates in a different manner. In the event that the insurance certificates and other required proofs provided indicate that the insurance shall terminate or lapse during the term of the franchise, then in that event, the communications system operator shall furnish, at least 30 days prior to the expiration of the date of such insurance, a renewal certificate of insurance as proof that equal and like coverage has been or will be obtained prior to any such lapse or termination during the balance of the franchise under which the cable communications system operates.

(2) Policies shall be issued by an insurance company (ies) either:

(i) admitted by the California Insurance Commissioner to do business in the State of California and rated not less than "A-Vll" in Best's Insurance Rating Guide; or

(ii) authorized by the City Risk Manager.

(3) A cable communications system operator (and those acting on its behalf to construct or operate the system) shall purchase and maintain the following minimum insurance. The following policies of insurance are required:

(i) COMMERCIAL GENERAL LIABILITY insurance which shall be at least as broad as Insurance Services Office (ISO) General Liability Coverage Form CG 00 01 and shall include coverage for Premises and Operations (including the use of owned and non-owned equipment), Products and Completed Operations, Personal Injury and Advertising Liability, Explosion, Collapse, and Underground Hazards and Blanket Contractual Liability with limits of liability of not less than $1,000,000 per occurrence and 2,000,000 general aggregate for bodily injury and property damage; $1,000,000 for personal and advertising injury; and $2,000,000 aggregate for products and completed operations.

(ii) COMMERCIAL AUTOMOBILE LIABILITY insurance, which shall be at least as broad as Insurance Services Office (ISO) Business Auto Coverage Form CA 00 01 and endorsed for "any auto" with combined single limits of liability of not less than $1,000,000 per accident for bodily injury and property damage.

(iii) WORKERS' COMPENSATION insurance as required under the California Labor Code; and in the case any work is sublet, each cable communications system operator shall require the subcontractors similarly to provide workers' compensation insurance for all the latter's employees unless such employees are covered by the protection afforded by each cable communications system operator.

(iv) EMPLOYERS' LIABILITY insurance with minimum limits of $1,000,000 each accident, $1,000,000 disease policy limit and $1,000,000 disease each employee of franchisee and its contractors and subcontractors.

(4) Additional Insurance Coverage Requirements.

(i) Defense costs shall be provided as an additional benefit and not included within the above limits of liability. Franchisee shall be responsible for payment of any

deductibles contained in any insurance policies required hereunder. completed operations and products liability shall be maintained for two years after the termination of the franchise (in the case of the cable communications system owner or operator) or completion of the work for the cable communications system owner or operator (in the case of a contractor or subcontractor).

(ii) The above described policies of insurance shall be endorsed to provide an unrestricted 30-day written notice in favor of city, of policy cancellation, change or reduction of coverage, except for the workers' compensation policy which shall provide a 10-day written notice of such cancellation, change or reduction of coverage.

(iii) Upon issuance by the insurer, broker, or agent of a notice of cancellation, change or reduction in coverage, franchisee shall file with city a certified copy of the new or renewal policy and certificates for such policy.

(iv) The general liability and automobile liability insurance policies shall be written on an occurrence form and shall name the city, its officers, agent and employees as an additional insured. Such policy(s) of insurance shall be endorsed so franchisee's insurance shall be primary and no contribution shall be required of city. Any workers' compensation insurance policy shall contain a waiver of subrogation as to city, its officers, officials, agents, employees and volunteers.

(v) Franchisee shall furnish city with copies of the actual policies upon the request of City's Risk Manager at any time during the life of the franchisee, and this requirement shall survive termination or expiration of the franchise.

(vi) Any failure to maintain the required insurance shall be sufficient cause for city to terminate the franchise.

(vii) In every franchise agreement the city shall reserve the right to require any other insurance coverage it deems necessary depending upon exposures. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-226. PERFORMANCE AND PAYMENT BONDS AND ADDITIONAL SECURITY.

(a) Every operator of a cable communications system shall obtain and maintain performance (as to the franchise) and payment (as to the work of the communication system facilities) bonds to ensure the faithful performance of its responsibilities under this ordinance and any franchise. The amount of the bonds shall be set by the CAO or may be set in a franchise ordinance in light of the nature of the work to be performed, but shall be at least the greater of the amount required by law or 10 per cent of the estimated cost of constructing or (in the case of existing systems) upgrading the system, and including a sufficient amount to cover the removal of facilities and/or restoration of city facilities within the right-of-way. The bonds are not in lieu of any additional bonds that may be required through the permitting process unless the city expressly agrees in writing. The bond shall be in a form acceptable to

the City Attorney and the City Risk Manager. Bonds must be obtained prior to the effective date of any franchise, transfer or franchise renewal, unless a franchise specifically provides otherwise.

(b) Every cable communications system operator shall establish and maintain a cash security fund or provide the city an irrevocable letter of credit benefiting the city in the amount of $500,000 to secure the payment of fees owed, to secure any other performance promised in a franchise, and to pay any taxes, fees or liens owed to the city. The letter of credit shall be in a form and with an institution acceptable to the City Controller and the City Attorney. Should the city draw upon the cash security fund or letter of credit, the cable communications system operator shall, within 14 days, restore the fund or the letter of credit to the full-required amount. This security fund/letter of credit may be waived or reduced by the CAO where it determines in its discretion that a particular franchisee's operations are sufficiently limited that a security fund/letter of credit is not necessary to secure the required performance. The city may from time to time require a franchisee to change the amount of the required security fund/letter of credit to reflect changed risks to the city and to the public, including delinquencies in taxes or other payments to the city. The cash security fund or letter of credit must be obtained prior to the effective date of any franchise, transfer or franchise renewal, unless a franchise specifically provides otherwise. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-227. ENFORCEMENT AND REMEDIES.

(a) In addition to remedies available under law, franchise and this article including penalties and liquidated damages imposed administratively, the Council may revoke a franchise or reduce the term of a franchise if it finds, after a hearing, that a cable communications system operator has violated this article or its franchise; has defrauded or attempted to defraud the city or subscribers; or has attempted to evade the requirements of this article or its franchise. Except as to violations that are impossible to cure, and as provided hereinafter, the franchise may only be revoked or shortened if the franchisee (i) was given notice of the default; and (ii) 30 days to cure the default; and (iii) the franchisee failed to cure the default, or to propose a schedule for curing the default acceptable to the city where it is impossible to cure the default in 30 days. The CAO may cause to be placed upon the agenda of a regular session of the Council his request for termination or reduction and in such case, the CAO shall cause to be served upon such grantee, at least five days prior to the date of such session of the Council, a written notice of his intent to request such termination or reduction at the time and place of such session. At such session of the Council, or at any adjournment thereof, the Council shall consider the request of the CAO, and shall hear any persons interested therein, and shall determine whether or not any such failure, refusal or neglect by grantee was with just cause. If the Council shall determine such failure, refusal or neglect by grantee was with just cause, it shall direct grantee to comply within such time and manner and upon such terms and conditions as the Council shall determine to be reasonable. If the Council shall determine such failure, refusal or neglect by grantee was without just cause, then the Council may pass its resolution declaring that the franchise of such grantee shall be terminated and forfeited, or reduced unless there be compliance by grantee within ten days,

and such resolution shall operate to declare such franchise terminated and forfeited or reduced on the tenth day next following the passage thereof, and without further notice to grantee, unless grantee shall so comply within such ten day period, such termination and forfeiture, or term reduction to become effective for all purposes one hundred eighty days thereafter. At any time after the effective date of such termination and forfeiture, and by operation of law, the city shall have the right, upon a finding by resolution of the Council that service is not being satisfactorily rendered to subscribers and without further notice or process, to enter and take possession of all properties, facilities, records and files of grantee, and to exercise all of the rights, privileges, powers, authorities and immunities of grantee, which are a part of the system of grantee, and to operate the system, and to provide the services thereof, in the same manner, and to the same extent, in all respects, as existed in grantee, and grantee shall not cause or permit any avoidance, hindrance, interference, or delay, in the exercise of such right by city. Within one hundred eighty days after such declaration of termination and forfeiture, and regardless of the exercise of any right of city hereunder, grantee may sell, remove, or (by means divesting grantee of all right, title, and interest) transfer the entire system of grantee, subject to the provisions of this article, and upon any such sale or transfer in addition to any other rights hereunder or otherwise, city shall have a lien (next in order of preference to any liens or encumbrances existing of record on the date of such termination and forfeiture) against any and all proceeds thereof, and against the system of grantee, in the full amount of any loss, cost, expense or other financial detriment incurred by city in the exercise of any right hereunder, or by reason of such termination and forfeiture. In the event grantee shall fail or refuse to sell, remove or transfer the entire system of grantee, as hereinabove provided, and regardless of the exercise of any other right of city hereunder, then by operation of law, all of the properties, facilities, records, files, rights, privileges, powers, authorities, and immunities of grantee, which are part of the system of grantee, shall become the property of the city, subject to any and all valid liens or encumbrances of record, and the system shall belong to the city; and grantee shall cause to be executed, acknowledged, and delivered to the city, upon demand therefor, such instruments as the City Attorney shall prescribe and approve, evidencing or affecting the ownership or control of any of the same in the city. In the event the system of grantee shall become the property of the city, as herein provided, then city may solicit and call for offers to purchase such system, by bid process; provided, that city may, in the manner provided in this article, solicit and call for offers and applications for franchise, and may specify, as a term and condition thereof, that any such offer and application shall include the purchase of such system from city. Nothing herein shall be construed to obligate or require city to exercise any right of city hereunder, and city shall at no time be obligated or required to undertake or assume the ownership or operation of any cable communication system, or to provide any cable communication service.

(b) No opportunity to cure is required for repeated violations, and fraud and attempted fraud shall be deemed incurable. Further, the city may declare a franchise forfeited without opportunity to cure where a franchisee (i) voluntarily stops providing service it is required to provide; (ii) transfers the franchise without the prior consent of the city.

(c) A franchise will terminate automatically by force of law 120 calendar days after an assignment for the benefit of creditors or the appointment of a receiver or trustee to take over

the business of the franchisee, whether in a receivership, reorganization, liquidation, bankruptcy assignment for the benefit of creditors, or other action or proceeding. However, the franchise may be reinstated by the city within that 120 day period, if: (i) such assignment, receivership or trusteeship has been vacated; or (ii) such assignee, receiver or trustee has fully complied with the terms and conditions of this article and the franchise, and has executed an agreement, approved by any court having jurisdiction, assuming and agreeing to be bound by the terms and conditions of this title and the franchise.

(d) In the event of foreclosure or other public or judicial sale of any of the facilities, equipment or property of a franchisee, the city may revoke the franchise following a public hearing before the Council by serving notice upon the franchisee and (if applicable) the successful bidder at the sale, in which event the franchise and all rights and privileges thereunder will be revoked and will terminate 30 calendar days after serving such notice, unless: (i) the city has approved the transfer of the franchise to the successful bidder in a manner consistent with this article; and (ii) the successful bidder has covenanted and agreed with the city to assume and be bound by the terms and conditions of the franchise and this article.

(e) Upon termination or forfeiture of a franchise, whether by action of the city as provided above, or by passage of time, the franchisee must stop using the cable communications system for the purposes authorized by the franchise. The city may take possession of some or all of franchisee's facilities, or require the franchisee or its bonding company to remove some or all of the franchisee's facilities from the city, and restore affected property to its same or better, condition. This provision does not permit the city to remove facilities that are used to provide another service for which the franchisee holds a valid franchise issued by the city.

(f) Remedies provided for under this article, or under a franchise shall be cumulative. Recovery by the city of any amounts under insurance, the performance bond, the security fund or letter of credit, does not limit a franchisee's duty to indemnify the city; or relieve a franchisee of its franchise obligations or limit the amounts owed to the city.

(g) A franchise granted pursuant to this article shall require the payment of administrative penalties and liquidated damages, in amounts and payable in the manner required by law, the city's master fee schedule and as specified in the franchise, for specified breaches of the franchise including but not limited to, failure to commence construction, failure to meet construction plan benchmarks, failure to comply with rebuild plan benchmarks, failure to commence service, and material breach of franchise obligation(s). Administrative penalties and liquidated damages shall be assessed only following a minimum 30 days written notice thereof, and subject to city's administrative appeal process. In no event shall administrative penalties exceed in the aggregate $5000 per day. The franchise shall also provide that the city may claim and/or setoff such penalties and liquidated damages owed from the franchisee's performance bond and security deposit. Penalties and liquidated damages shall commence on that date that performance was due and/or failed, and continue until the grantee demonstrates to the satisfaction of the city that the grantee has fully performed its obligations giving rise to the payment of penalties and liquidated damages. Franchisee's obligation to pay penalties and

liquidated damages does not in any way affect its obligation to pay franchise fees or perform other obligations in the franchise. Penalties and liquidated damages do not constitute franchise fees and are not subject to any limitations on franchise fees contained in 47 U.S.C. § 542(b). Penalties and liquidated damages paid by grantee are not costs of satisfying franchise requirements as provided in 47 C.F.R § 76.925. Grantee will not pass the cost of any penalties and liquidated damages to subscribers through subscriber rates or itemize or otherwise identify on subscriber bills any obligation grantee may have to pay penalties and liquidated damages.

(h) In fixing franchise administrative penalties the city shall be guided by the following principles:

(1) Penalties shall exceed the financial benefits to a franchisee delaying or failing to comply with the applicable requirement;

(2) Even where such benefits are not easily discernible, the penalties shall be high enough to have a significant deterrent effect on a Franchisee; and

(3) Penalties shall be sufficient to protect against loss of revenues resulting from violations. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-228. BOOKS AND RECORDS.

(a) Each cable communications system operator shall provide the city access to books and records related in whole or in part to the construction, operation, or repair of the cable communications system, or a group of systems of which the system is a part, so that the city may inspect and copy these books and records. The records include, but are not limited to revenue records, and other records related to compliance with any provision of this article or a franchise. A cable communications system operator is responsible for obtaining or maintaining the necessary possession or control of all such books and records, so that it can produce the documents upon request. Books and records must be maintained for a period of five years, except that a franchise may specify a shorter period for certain categories of voluminous books and records where the information contained therein can be derived simply from other materials. The phrase "books and records" shall be read expansively to include information in whatever format stored.

(b) Books and records requested shall be produced to the city by a time and at a location in the city designated by the CAO. However, if the requested books and records are too voluminous, or for security reasons cannot be copied and moved, then the franchisee may request that the inspection take place at some other location mutually agreed to by the city and the franchisee, provided that (i) the franchisee must make necessary arrangements for copying documents selected by the city after its review; and (ii) the franchisee must pay all travel and additional copying expenses incurred by the city (above those that would have been incurred had the documents been produced in the city) in inspecting those documents or having those documents inspected by its designee. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-229. REPORTS.

(a) The CAO may from time to time direct a franchisee to prepare reports and to submit those reports by a date certain, in a format prescribed by the Manager, in addition to those required by this article.

(b) Unless an exemption is granted by the CAO, within 45 days of the end of each calendar quarter, a franchisee shall submit a report to the city containing the following information:

(1) The number of service calls (calls requiring a truck roll) received during the prior quarter and the percentage of service calls compared to the subscriber base; and

(2) The total estimated hours of known outages as a percentage of total hours of operation. An outage is a loss of sound or video on any signal, or a significant deterioration of any signal affecting two or more subscribers.

(c) Unless an exemption is granted by the CAO, no later than ninety (90) days after the end of its fiscal year, a franchisee shall submit the following information:

(1) A fully audited or certified revenue report from the previous calendar year for the cable communications system, and a certified statement setting forth the computation of gross revenues used to calculate the franchise fee for the preceding year and a detailed explanation of the method of computation showing (i) gross revenues by category (e.g., basic, pay, pay-per-view, advertising, installation, equipment, late charges, miscellaneous, other); and (ii) what, if any, deductions were made from gross revenues in calculating the franchise fee (e.g., bad debt, credits and refunds), and the amount of each deduction.

(2) A report showing, for each applicable customer service standard, the franchisee's performance with respect to that standard for each quarter of the preceding year. In each case where franchisee concludes it did not comply fully, the franchisee will describe the corrective actions it is taking to assure future compliance. In addition, the report should identify the number and nature of all the customer service complaints received and an explanation of their dispositions.

(3) An ownership report, indicating all persons who at the time of filing control or own an interest in the franchisee of ten percent (10%) or more.

(d) Within 10 days of their receipt or (in the case of documents created by the operator or its affiliate) filing, a franchisee shall provide the city:

(1) Notices of deficiency or forfeiture related to the cable communication system; and

(2) Any voluntary or involuntary petition for protection under bankruptcy laws, or any order, judgment or discharge related to a bankruptcy proceeding involving the franchisee or by any person, partnership or corporation that owns or controls the franchisee directly or indirectly.

(e) The franchisee may be required to submit to the city copies of all pleadings, applications, notifications, communications and documents of any kind, submitted by the franchisee to, as well as copies of all decisions, correspondence and actions by, any federal, state and local

courts, regulatory agencies and other government bodies relating to its cable communication system operations within the franchise area. Franchisee shall submit such documents to the city no later than thirty (30) days after receipt of a city request. The franchisee hereby waives any right to claim confidential, privileged or proprietary rights to such documents unless such confidential rights have been "determined" to be confidential by a court or by the practices or decision of federal and state agencies. Such confidential data exempt from public disclosure shall be retained in confidence by the city and its authorized agents and shall not be made available for public inspection, to the extent allowed by law.

(f) The willful refusal or failure of the franchisee to file any of the reports reasonably required, or such other reports as the city reasonably may request, may be deemed a material breach of the franchise, and may subject the franchisee to all remedies, legal or equitable, which are available to the city under the franchise or otherwise. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-230. MAPS REQUIRED.

Each franchisee shall maintain accurate maps and improvement plans which show the location, size, and a general description of all facilities installed in the public rights-of-way and any power supply sources (including voltages and connections). Maps shall be based upon post-construction inspection to verify location. Each franchisee shall provide a map to the city showing the location of its facilities, in such detail and scale as may be directed by the city and update the map at least annually, and whenever the facility expands or is relocated. Copies of maps shall be provided in hard copy and on disk, in a commercially available electronic format specified by the City Engineer. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-231. OTHER RECORDS REQUIRED.

(a) Unless the CAO waives the requirement, a franchisee shall at all times maintain:

(1) Records of all complaints received their nature and resolution. The term "complaints" refers to complaints about any aspect of the franchisee's operations.

(2) Records of outages known to the Franchisee, their cause and duration.

(3) Records of service calls for repair and maintenance indicating the date and time service was requested, the date of acknowledgment and date and time service was scheduled (if it was scheduled), and the date and time service was provided, and (if different) the date and time the problem was solved.

(4) Records of installation/reconnection and requests for service extension, indicating date of request, date of acknowledgment, and the date and time service was extended.

(5) Records sufficient to show whether the franchisee has complied with each customer service standard that applies to it.

(b) The CAO may temporarily exempt any franchisee from the requirements of subsection (a) of this Section if the CAO determines that the requirement would be unduly burdensome or unnecessary, and that city and subscriber interests may be adequately protected in some other manner. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-232. PRIVACY.

A franchisee shall take all reasonable steps required so that it is able to provide reports, books and records to the city, including by providing appropriate subscriber privacy notices. Each franchisee shall be responsible for redacting data that applicable law prevents it from providing to the city. Nothing in this section shall be read to require a franchisee to violate state or federal subscriber privacy laws. (Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-233. SPECIAL REQUIREMENTS REGARDING SUBSCRIBER'S PRIVACY.

Except as required by federal or state law:

(a) The monitoring of any subscriber terminal without specific written authorization of the subscriber is prohibited. Franchisee shall be responsible for the protection of subscriber privacy, prohibiting the tapping and/or monitoring of cable, line, signal input device, or subscriber outlet or receiver for any purpose whatsoever, except franchisee may conduct tests of the functioning of the system where necessary in order to ensure proper maintenance of the system and to collect performance data for agencies regulating the quality of signal. Where critical information requires private communication, electronic signal scrambling techniques must be used.

(b) Listings of subscribers' names and addresses may not be sold or otherwise released for any purpose, nor any list which identifies, by name, subscriber viewing habits, to any person, agency, entity, for any purpose whatsoever, without specific written authorization of the individual subscriber.

(c) The grantee and the city shall maintain constant vigilance with regard to possible abuses of the right or privacy of any subscriber, resulting from any device or signal associated with the cable communications system. The grantee shall not place in any private residence any equipment capable of two-way communications without the written consent of the residents, and will not utilize the two-way communications capability of the system for subscriber surveillance of any kind without the written consent of the subscriber.

(d) No cable, line, wire, amplifier, converter, or other piece of equipment owned by the franchisee shall be attached to any residence or other property by the grantee without first securing the written permission of the owner or responsible occupant of any property involved. If such permission is later revoked whether by the original or a subsequent owner or responsible occupant, the grantee shall remove forthwith all of its equipment and promptly restore the property to as near to its original condition as possible.

(e) No polls or other two-way responses of subscribers shall be conducted unless the program of which the poll is a part shall contain an explicit disclosure of the nature, purpose and prospective use of the results of the poll. No commercial or other use of information of

subscriber viewing habits or patterns may be made and no release of such information shall be permitted without prior consent of the council or pursuant to rules and regulations duly adopted by the city.

(Added Ord. 2004-105, § 2, eff. 11-30-04).

SEC. 9-234. MISCELLANEOUS.

(a) The captions to sections throughout this article are intended solely to facilitate reading and reference to the sections and provisions of this article. Such captions shall not affect the meaning or interpretation of this article.

(b) Unless otherwise indicated, when the performance or doing of any act, duty, matter, or payment is required under this article or any franchise, and a period of time or duration for the fulfillment of doing thereof is prescribed and is fixed herein, the time shall be computed so as to exclude the first and include the last day of the prescribed or fixed period of time.

(c) If any term, condition, or provision of this article shall, to any extent, be held to be invalid or unenforceable by a valid order of any court or regulatory agency, the remainder hereof shall be valid in all other respects and continue to be effective. In the event of a subsequent change in applicable law so that the provision that had been held invalid is no longer invalid, said provision shall thereupon return to full force and effect without further action by the city and shall thereafter be binding on the franchisee and the city.

(d) Connections to cable system; use of antennae.

(1) To the extent consistent with federal law, subscribers shall have the right to attach VCR's, receivers, and other terminal equipment to a franchisee's cable system. Subscribers also shall have the right to use their own remote control devices and converters, and other similar equipment.

(2) A franchisee shall not, as a condition of providing service, require a subscriber or potential subscriber to remove any existing antenna, or disconnect an antenna except at the express direction of the subscriber or potential subscriber, or prohibit installation of a new antenna, provided that such antenna is connected with an appropriate device and complies with applicable law.

(e) Discrimination prohibited.

(1) A cable communications system operator shall not discriminate among persons or the city or take any retaliatory action against a person or the city because of that entity's exercise of any right it may have under federal, state, or local law, nor may the operator require a person the city to waive such rights as a condition of taking service.

(2) A cable communications system operator shall not refuse to employ, discharge from employment, or discriminate against any person in compensation or in terms, conditions, or privileges of employment because of race, color, creed, national origin, caste, indigeneity, sex, sexual orientation, age, disability, religion, ethnic background, or marital status.

A cable system operator shall comply with all federal, state, and local laws and regulations governing equal employment opportunities, and hiring practices, as the same may be amended from time to time.

(f) It shall be unlawful for any person, firm or corporation to make or use any unauthorized connection, whether physically, electrically, acoustically, inductively or otherwise, with any part of a franchised cable communication system within this city for the purpose of enabling himself or others to receive or use any television signal, radio signal, picture, program or sound, or other information or intelligence, without payment to the owner of said system or its lessee. It shall be unlawful for any person, without the consent of the owner, to willfully tamper with, remove or injure any cables, wires or equipment used for distribution of television signals, radio signals, pictures, programs or sound, or information or intelligence.

(g) Transitional provisions.

(1) The operator of any facility installed as of the effective date of this article, for which a franchise is required under this article, shall have three months from the effective date of this article to file one or more applications for a franchise. Any operator timely filing such an application under this section shall not be subject to a penalty for failure to have such a franchise so long as said application remains pending; provided, however, nothing herein shall relieve any cable communications system operator of any liability for its failure to obtain any permit or other authorization required under other provisions of Fresno Municipal Code, and nothing herein shall prevent the city from requiring removal of any facilities installed in violation of the Code.

(2) Any person holding an existing franchise for a cable communications system may continue to operate under the existing franchise to the conclusion of its present term and any additional period required by the Cable Act including section 626 thereof, with respect to those activities expressly authorized by the franchise; and provided further that, such Person shall be subject to the other provisions of this article to the extent permitted by law.

(3) Pending applications shall be subject to this article. A person with a pending application shall have 30 days from the effective date of this Title to submit additional information to comply with the requirements of this article governing applications.

(h) Extended Operation.

(1) Unless otherwise expressly provided in the franchise documents, upon the expiration, non-renewal, or revocation of a franchise, the city may require the franchisee to continue to operate the cable communication system for a defined period of time not to exceed twenty-four (24) months from the date of such expiration, non-renewal, or revocation. The franchisee shall, as trustee for its successor-in-interest, continue to operate the cable communication system under the terms and conditions of this article

and the franchise documents and to provide the regular cable service and any of the other services that may be provided at that time. The city shall be permitted to seek legal and equitable relief to enforce the provisions of this section.

(i) Every field representative of the franchisee shall be clearly identified on sight to the public as a representative of the franchisee. Every vehicle of the franchisee shall be similarly identified.

(j) The city may, with the permission of the relevant court or administrative tribunal, intervene in any suit or proceeding involving the cable communication system franchise to which the franchisee is party.

(k) Franchisee shall maintain throughout the term of the franchise, a local address for service of notices by mail.

(l) Within one hundred eighty days from and after the effective date of the ordinance awarding the franchise or franchise renewal, or within such extended period of time as the council in its discretion may authorize, the franchisee shall file with the city clerk copies of all contracts which it may have with all public utility companies, including but not limited to the SBC Communications Inc. and the Pacific Gas & Electric, whereby grantee is granted any right to use any of the property, equipment or facilities of such utility or utilities in the conduct of any operations pursuant to the franchise or franchise renewal awarded to said franchisee.

(m) The franchisee shall not, and shall prohibit any officer, agent, employee, contractor or subcontractor which it retains from, removing or trimming any tree or portion thereof (either above, at or below ground level), which is located within a public right-of-way without the prior written approval of the City Director of Public Works, consistent with the Fresno Municipal Code. Such consent may be given or withheld upon such terms and conditions as the Director of Public Works deems appropriate. Each franchisee shall be responsible for, shall indemnify, defend and hold harmless the city, and its officers, agents and employees from and against any and all damages arising out of or resulting from the removal, trimming, mutilation of or any injury to any tree or trees proximately caused by the franchisee or its officers, agents, employees, contractors or subcontractors.
(Added Ord. 2004-105, § 2, eff. 11-30-04; Amd. Ord. 2023-031, § 3, eff. 11-3-23).

SEC. 9-235. IMPLEMENTATION OF THE DIGITAL INFRASTRUCTURE AND VIDEO COMPETITION ACT OF 2006 FOR STATE FRANCHISE HOLDERS PROVIDING VIDEO SERVICE THROUGHOUT THE CITY.

(a) Findings.

(1) Any ordinance declared by the Council to be necessary as an emergency measure for preserving the public peace, health or safety, and containing a statement of the reasons for its urgency, may be introduced, adopted, and become effective at one and the same meeting if passed by at least five affirmative votes.

(2) The Council finds that continuity of cable communication and video franchise services impact, further and are necessary to ensure the public's health and safety including as to Emergency Alert Broadcasting of public safety information and public, educational and governmental broadcasting and fees in support thereof, and therefore require the adoption of this ordinance based upon the following findings: the city must enact this ordinance prior to January 2, 2008 in order to preserve and fully exercise rights preserved to the city under the Digital Infrastructure and Video Competition Act of 2006 ("DIVCA"); in the absence of a DIVCA implementing ordinance effective as of January 2, 2008, the city will be unable to fully exercise rights preserved to the city under DIVCA as against a state franchisee as of said date; enactment of this ordinance as an urgency measure is necessary to ensure its effect from and after January 2, 2008.

(b) General Provisions.

(1) This section 9-235 is intended to be applicable to state franchise holders who have been awarded a state video franchise under the California Public Utilities Code section 5800 et seq., as amended from time to time (the Digital Infrastructure and Video Competition Act of 2006 ["DIVCA"]), to serve any location(s) within the incorporated boundaries of the City. It is the purpose of this section to implement within the incorporated boundaries of the City the provisions of DIVCA and the rules of the California Public Utilities Commission promulgated there under that are applicable to a "local franchising entity" or a "local entity" as defined in DIVCA.

(2) The rights reserved to the City under this section 9-235 are in addition to all other rights of the City, whether reserved by section 9-235 or authorized by law, and no action, proceeding or exercise of a right shall affect any other rights which may be held by the City.

(3) Except as otherwise expressly provided by DIVCA, a state franchise shall not include, or be a substitute for:

(i) compliance with generally applicable requirements for the privilege of transacting and carrying on a business within the City, including, but not limited to, compliance with the conditions that the City may establish before facilities may be constructed for, or providing, non-video services;

(ii) any permit or authorization required in connection with construction, repair, maintenance and/or operations on or in public rights-of-way or public property, including, but not limited to, encroachment permits, street work permits, pole attachment permits and street cut permits; and

(iii) any permit, agreement or authorization for occupying any other property of the City or any private person to which access is not specifically granted by the state franchise.

(4) Except as otherwise provided in DIVCA, a state franchise shall not relieve a state franchisee of its duty to comply with all laws, including the ordinances, resolutions, rules, regulations, and other laws of the City, and every state franchisee shall comply with the same.

(5) Nothing contained in this section 9-235 shall ever be construed so as to exempt a state franchise holder from compliance with all ordinances, rules or regulations of the City now in effect or which may be hereafter adopted which are consistent with the DIVCA.

(c) Definitions.

(1) For purposes of this section 9-235, the following terms, phrases, words, and their derivations shall have the meaning given in this section. Unless otherwise expressly stated, words not defined in this section 9-235 shall be given the meaning set forth in Section 9-204 of the Fresno Municipal Code as may be amended from time to time, unless the context indicates otherwise. Words not defined in this subsection (b) or Section 9-204 of the Fresno Municipal Code shall have the same meaning as established in (1) DIVCA, and if not defined therein, (2) Commission rules implementing DIVCA, and if not defined therein, (3) Title VI of Title 47 of the Communications Act of 1934, as amended, 47 USC § 521 et. seq., and if not defined therein (4) their common and ordinary meaning. When not inconsistent with the context, words used in the present tense include the future, words in the plural number include the singular number, words in the singular number include the plural number, and "including" and "include" are not limiting. The word "shall" and "will" are always mandatory. References to governmental entities (whether persons or entities) refer to those entities or their successors in authority. If specific provisions of law referred to herein are renumbered, then the reference shall be read to refer to the renumbered provision. References to laws, ordinances or regulations shall be interpreted broadly to cover government actions, however nominated, and include laws, ordinances and regulations now in force or hereinafter enacted or amended.

(i) "Access," "PEG access," "PEG use," or "PEG" means the availability of a cable or state franchise holder's system for public, educational, or governmental use by various agencies, institutions, organizations, groups, and individuals, including the City and its designated access providers, to acquire, create, and distribute programming not under a state franchise holder's editorial control.

(ii) "Director" means the Director of the Public Works Department of the City, acting either directly or through authorized agents.

(iii) "Gross revenues" means all revenues actually received by the holder of a state franchise that are derived from the operation of the holder's network to provide cable service or video service within the incorporated areas of the City, subject to the specifications of California Public Utilities Code section 5860.

(iv) "State franchise holder" or "State Franchisee" means a cable operator or video service provider that has been issued a franchise by the California Public Utilities Commission to provide cable service or video service, as those terms are defined in California Public Utilities Code section 5830, within any portion of the incorporated limits of the City.

(d) Franchise Fees.

(1) Any state franchise holder operating within the incorporated areas of the City shall pay to the City a state franchise fee equal to five percent (5%) of gross revenues.

(2) The state franchise fee required pursuant to this subsection (c) shall each be paid quarterly, in a manner consistent with California Public Utilities Code section 5860. The state franchise holder shall deliver to the City, by check or other means, which shall be agreed to by the City, a separate payment for the state franchise fee not later than forty-five (45) days after the end of each calendar quarter. Each payment made shall be accompanied by a report, detailing how the payment was calculated, and shall include such additional information on the appropriate form as designated by the City.

(3) The City may audit the business records of the holder of a state franchise not more than once annually, in a manner consistent with California Public Utilities Code section 5860(i).

(4) In the event a state franchise holder fails to make payments required by this section on or before the due dates specified in this section, the City shall impose a late charge at the rate per year equal to the highest prime lending rate during the period of delinquency, plus one percent (1%).

(5) In the event a state franchise holder leases or licenses access to a network owned by the City, the City may set a franchise or other fee for access to the City-owned network separate and apart from the franchise fee charged to state franchise holders pursuant to this subsection (c), which fee shall otherwise be payable in accordance with the procedures established by this section.

(e) Customer Service.

(1) A state franchise holder shall comply with Sections 53055, 53055.1, 53055.2 and 53088.2 of the California Government Code; the FCC customer service and notice standards set forth in Sections 76.309, 76.1602, 76.1603, and 76.1619 of Title 47 of the Code of Federal Regulations; Section 637.5 of the California Penal Code; the privacy standards of Section 551 of Title 47 of the United States Code; and all other applicable state and federal customer service and consumer protection standards pertaining to the provision of cable service or video service, including any such standards hereafter adopted. In case of a conflict, the stricter standard shall apply. All customer service and consumer protection standards under this paragraph shall be interpreted and applied to accommodate newer or different technologies while meeting or exceeding the goals of the standards.

(2) The City shall enforce the compliance of state franchisees with respect to the state and federal customer service and consumer protection standards set forth in paragraph (1). The City will provide a state franchisee with a written notice of any material breaches of applicable customer service or consumer protection standards, and will allow the state franchisee 30 days from the receipt of the notice to remedy the specified material breach. Material breaches not remedied within the 30-day time period will be subject to the following penalties to be imposed by the City:

(i) For the first occurrence of a material breach, a fine of $500 may be imposed for each day the violation remains in effect, not to exceed $1,500 for each violation.

(ii) For a second material breach of the same nature within 12 months, a fine of $1,000 may be imposed for each day the violation remains in effect, not to exceed $3,000 for each violation.

(iii) For a third material breach of the same nature within 12 months, a fine of $2,500 may be imposed for each day the violation remains in effect, not to exceed $7,500 for each violation.

(3) Any penalties imposed by the City shall be imposed in a manner consistent with California Public Utilities Code section 5900.

(f) Permits And Construction.

(1) Except as expressly provided in this Section 9-235, the provisions of sections 9-224, 9-225 and 9-226 shall apply to all work performed by or on behalf of a state franchise holder on any City public rights-of-way, public property, or City easement as those terms are defined in Chapter 9 of the Fresno Municipal Code.

(2) Prior to commencing any work for which a permit is required by this subsection (e), a state franchise holder shall apply for and obtain a permit in accordance with the provisions referred to in paragraph (1) of this subsection (e) and shall comply with all other applicable laws and regulations, including but not limited to all applicable requirements of Division 13 of the California Public Resources Code, section 21000, *et seq*. (the California Environmental Quality Act).

(3) The Director shall either approve or deny a state franchise holder's application for any permit required under paragraph (1) of this subsection (e) within sixty (60) days of receiving a completed permit application from the state franchise holder.

(4) If the Director denies a state franchise holder's application for a permit, the Director shall, at the time of notifying the applicant of denial, furnish to the applicant a detailed explanation of the reason or reasons for the denial.

(5) A state franchise holder that has been denied a permit by final decision of the Director may appeal the denial to the City Council pursuant to the provisions of Section 13-216 of this Code.

(6) The Council may affirm, modify, or reverse the determination or dismiss the appeal there from, as may be just. The hearing before the Council shall be conducted informally, may be continued. The decision of the Council shall be final.

(7) Prior to any construction, rebuild, or upgrade of a cable communication or video system, a state franchise holder shall establish procedures to notify City residents within 300 feet of the impacted area of construction schedules and activities, or as otherwise provided by the Director. Such notices must be provided in the predominant languages spoken by those persons who work and/or reside in the impacted area. The notices shall be provided to the Director for review and acceptance no later than twenty (20) days before commencement of construction, rebuild, or upgrade activities.

(8) At a minimum, the notice required in paragraph (7) of this subsection (e) shall be provided by the state franchise holder not less than forty-eight (48) hours prior to the planned construction. The state franchise holder shall provide additional notice to the persons described in paragraph (7) of this subsection (e) on the day of construction. The notice may be in the form of door hangers that indicate, at a minimum, the dates and times of construction and the name and telephone number of a state franchise holder contact.

(9) The state franchise holder shall provide notice at least twenty (20) days prior to entering private property or public ways or public easements adjacent to or on such private property, public ways, or public easements, and provide a second notice three (3) days prior to entering such property.

(i) Should there be above ground or underground installations (excluding aerial cable lines utilizing existing poles and cable paths) which will affect the private property, such notice shall be in writing and shall contain specific information regarding any above ground or underground installations (excluding aerial cable lines utilizing existing poles and existing cable paths) which shall affect the private property.

(ii) To the extent practicable, aboveground or underground equipment placed on private property shall be placed at the location requested by the property owner. A state franchise holder shall provide the private property owner with at least twenty (20) days advance written notice of its plans to install such equipment, and shall obtain express written consent, in the form of a recorded easement agreement, from the private property owner before installing its appurtenances. The state franchise holder shall notify the property owner, in writing, that the property owner is not obligated to agree to the placement on their property or to enter into an easement agreement with the state franchise holder. Should property owner notify the state franchise holder of objection to placement of any such above-ground or underground installations (excluding aerial cable lines utilizing existing poles and existing cable paths), the state franchise holder shall confer with the Director regarding appropriate location and placement of such appurtenances.

(10) In addition to any other notice of proposed entry required under this subsection (e), a state franchise holder's personnel shall make a reasonable attempt to give personal notice to residents immediately preceding entry on private property or public ways or public easements adjacent to or on such private property.

(11) A state franchise holder, its employees, agents, contractors, and subcontractors shall be properly identified as agents of the state franchise holder prior to and during entry on private and public property. Identification shall include the name and telephone number of the state franchise holder on all trucks and vehicles used by installation personnel.

(12) After performance of work, the state franchise holder shall restore such private and public property to a condition equal to or better than its condition prior to

construction. Any disturbance of landscaping, fencing, or other improvements upon private or public property shall, at the sole expense of the state franchise holder, be promptly repaired or restored (including replacement of such valuables as shrubbery and fencing) to the reasonable satisfaction of the property owner, in addition to the furnishing of camouflage plants on public property.

(13) Each state franchise holder, within 60 days after the expiration of each calendar year, shall file a report with the Director, which shall contain a street and highway map or maps of any convenient scale on which shall be plotted the location of the entire transmission and distribution system or systems covered by the report as of the last day of the calendar year, with the system or systems located in City highways indicated by distinctive coloration or symbols.

(g) Emergency Alert.

(1) Each state franchise holder shall comply with the emergency alert system requirements of the Federal Communications Commission in order that emergency messages may be distributed over the state franchise holder's network.

(2) To the extent consistent with California Public Utilities Code section 5880, each state franchisee shall provide the system capability to transmit an emergency alert signal to all participating subscribers, in the form of an emergency override capability to permit the City to interrupt and cablecast an audio message on all channels simultaneously in the event of a disaster or public emergency.

(h) Public, Educational and Government Access Channel Capacity, Interconnection, and Signal Carriage

(1) PEG Channel Capacity.

(i) A state franchisee that has been authorized by the California Public Utilities Commission to provide video service in the City shall designate and activate three PEG channels within three months from the date that the City requests that the state franchisee designate and activate these PEG channels. However, this three-month period shall be tolled for such a period, and only for such a period, during which the state franchisee's ability to designate or provide such PEG capacity is technically infeasible, as set forth in Sections 5870(a), 5870(c) and 5870(h) of the California Public Utilities Code.

(ii) A state franchisee shall provide an additional PEG channel when the standards set forth in Section 5870(d) of the California Public Utilities Code are satisfied by the City or any entity designated by the City to manage one or more of the PEG channels.

(2) PEG Support.

(i) Any state franchise holder operating within the City shall pay to the City, or if directed by the City, pay to the City's designated PEG provider a PEG fee equal to one percent (1%) of gross revenues.

(ii) The PEG support fee shall be used for PEG purposes that are consistent with state and federal law.

(iii) A state franchisee shall remit the PEG support fee to the City or to the City's designated PEG provider quarterly, within forty-five days after the end of each calendar quarter. Each payment made shall be accompanied by a report, detailing how the PEG support fee was calculated.

(iv) If a state franchisee fails to pay the PEG support fee when due, or underpays the proper amount due, the state franchisee shall pay a late payment charge at the rate per year equal to the highest prime lending rate during the period of delinquency, plus one percent (1%).

(3) PEG Carriage and Interconnection.

(i) As set forth in Sections 5870(b) and 5870(g)(3) of the California Public Utilities Code, state franchisees shall ensure that all PEG channels are receivable by all subscribers, whether they receive digital or analog service, or a combination thereof, without the need for any equipment other than that needed to receive the lowest cost tier of service. PEG access capacity provided by a state franchisee shall be of similar quality and functionality to that offered by commercial channels, shall be capable of carrying a National Television System Committee (NTSC) quality television signal, and shall be carried on the state franchisee's lowest cost tier of service. To the extent feasible, the PEG channels shall not be separated numerically from other channels carried on the lowest cost tier of service and the channel numbers for the PEG channels shall be the same channel numbers used by any incumbent cable operator, unless prohibited by federal law. After the initial designation of the PEG channel numbers, the channel numbers shall not be changed without the agreement of the City unless federal law requires the change.

(ii) As set forth in Section 5870(h) of the California Public Utilities Code, the holder of a state franchise and an incumbent cable operator shall negotiate in good faith to interconnect their networks for the purpose of providing PEG programming. If a state franchisee and an incumbent cable operator cannot reach a mutually acceptable interconnection agreement for PEG carriage, the City shall require the incumbent cable operator to allow the state franchisee to interconnect its network with the incumbent cable operator's network at a technically feasible point on the state franchisee's network as identified by the state franchisee. If no technically feasible point of interconnection is available, the state franchisee shall make interconnection available to each PEG channel originator programming a channel in the City and shall provide the facilities necessary for the interconnection. The cost of any interconnection shall be borne by the state franchisee requesting the interconnection unless otherwise agreed to by the parties.

(i) Notices.

(1) Each state franchise holder or applicant for a state franchise shall concurrently file with the City a complete copy of all applications, amendments to applications and notices

that the state franchise holder or applicant is required to file with the California Public Utilities Commission. Within 30 days of receipt, the CAO shall provide any appropriate comments to the Commission regarding an application or amendment to an application for a state franchise.

(2) Unless otherwise specified in this section, all notices or other documentation that a state franchise holder is required to provide to the City under this Section or the California Public Utilities Code shall be provided to both the City Manager and the City staff person in charge of cable and telecommunications, or their successors or designees.

(j) Existing Franchise(s).

(1) The City will retain authority, without change, over the City's current cable franchisee until such time as it no longer holds a City franchise, or is no longer operating under a current or expired City franchise.

(k) Severability.

(1) If any sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this section. The City Council hereby declares that it would have passed this ordinance and adopted this section and each sentence, clause or phrase thereof, irrespective of the fact that any one or more subsections, sentences, clauses or phrases be declared invalid or unconstitutional.

(l) No Vested Rights.

(1) Nothing in the Section 9-235 shall be deemed as creating a vested right in the state franchise holder or its affiliates,

(m) Conflict of Law.

(1) In the event of any conflict between this terms and conditions of this Section 9-235 and the terms and conditions of DIVCA, the terms and conditions of DIVCA shall control and take precedence.

(Add. Ord. 2007-94, § 1, eff. 12-4-07)

ARTICLE 3 AUTOMOBILE PARKING

Sec. 9-301. Definition.
Sec. 9-302. Parking Upon Public Places.
Sec. 9-303. Penalty for Violation.
Sec. 9-304. Closing Signs.
Sec. 9-305. Reports.

SEC. 9-301. DEFINITION.

For the purpose of this article, the term "public automobile parking lots" shall mean and include any lot, parcel of land or premises where motor vehicles are stored, kept, or parked for the public in the open air, whether a charge be made for such parking or not.
(Orig. Ord. 3220).

SEC. 9-302. PARKING UPON PUBLIC PLACES.

No person operating, managing, conducting or maintaining any public automobile parking lot or a public garage, or any person employed as an attendant at or in any public automobile parking lot or public garage, shall park, stand, or store any motor vehicle parked or stored therein, on, upon or across any public street, public sidewalk, public alley, or other public place.
(Orig. Ord. 3220).

SEC. 9-303. PENALTY FOR VIOLATION.

Violation of Section 9-302 is an infraction.
(Added Ord. 76-64, § 6, eff. 7-1-76).

SEC. 9-304. CLOSING SIGNS.

At each entrance and exit to a public automobile parking lot there shall be installed and maintained signs plainly visible from both sides, with letters not less than six inches high stating the time that such public automobile parking lot closes.
(Orig. Ord. 3220).

SEC. 9-305. REPORTS.

(a) Whenever any motor vehicle has been stored on a public automobile parking lot for a continuous period of more than forty-eight hours, said keeper shall thereupon report the presence of such motor vehicle to the Fresno Police Department giving a brief description of the vehicle, including the name or make, the motor or other number of the vehicle, and the license number shown by the license plates or registration card if either of the latter is attached to the vehicle.

(b) Any person owning, conducting, managing or operating any building, place or premises other than a private garage, wherein any motor vehicle is parked or stored by or for

the public, shall make a written report to the Chief of Police of each motor vehicle which is not the property of such person and which shall have been parked or stored in such building, place or

premises for a period of seventy-two hours continuously. Such written report shall be filed with the police department, within twenty-four hours from and after the expiration of said seventy-two hour period, and shall contain:

(1) The name of the person making such report;

(2) The address of the building, place or premises where such motor vehicle shall have been parked or stored for such seventy-two hour period;

(3) The name and address of the registered owner of such motor vehicle as shown on the certificate of registration issued by the Division of Motor Vehicles of the State of California, or if there be no such certificate or registration in or on such motor vehicle, such fact shall be stated;

(4) A brief description of such motor vehicle, including the name and make, the motor number and license number thereof as shown by the number plates thereon, together with the name of the state issuing such license plates. (Orig. Ord. 3220 and 4566).

ARTICLE 4 FRANCHISE ORDINANCE

Sec. 9-401. Title.
Sec. 9-402. Definitions.
Sec. 9-403. Franchise to Install and Operate Utility.
Sec. 9-404. Application for Franchise.
Sec. 9-405. Franchise Procedure.
Sec. 9-406. Acceptance of Franchise.
Sec. 9-407. Default.
Sec. 9-408. Validity.
Sec. 9-409. Violations.

SEC. 9-401. TITLE.

This article shall be known as the Franchise Ordinance of the city. (Added Ord. 79-174, § 1, eff. 11-30-79)

SEC. 9-402. DEFINITIONS.

(a) Unless the particular provision or the context requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "CAO" means the Chief Administrative Officer of the city or his designee.

(c) "Franchise" means and includes any authorization granted hereunder in terms of a franchise, privilege, permit, license or otherwise to construct, operate and maintain a utility within all or a specified area in the city.

(d) "Service Area" means the territory within the city throughout which grantee shall be authorized hereunder to construct, maintain, and operate its system and shall include any enlargements thereof and additions thereto.

(e) "Grantee" means any person, firm, or corporation receiving the grant of any franchise hereunder and shall include any lawful successor to the interest of such person, firm, or corporation.

(f) "Subscriber" or "User" means any person or entity receiving for any purpose any service of the grantee's system.

(g) "Utility" means transportation, communication, terminal facilities, water, light, heat, electricity, gas, power, refrigeration, storage or any other public utility or service, or using the

public streets, ways, alleys or places for operation of plants, works or equipment for the furnishing thereof, or traversing any portion of the city for the transmitting or conveying of any service thereof, except utilities otherwise franchised by this Code.

(h) "Person" means any individual, partnership, corporation or other entity including special districts providing utility services. (Added Ord. 79-174, § 1, eff. 11-30-79; Am. Ord. 84-8, §§ 3, 4, eff. 1-17-84).

SEC. 9-403. FRANCHISE TO INSTALL AND OPERATE UTILITY.

A nonexclusive franchise to install, construct, operate, and maintain a new utility or to enlarge the service area of an existing utility within all or a specific portion of the city may be granted by the Council to any person, whether operating under an existing franchise, or not, who offers to furnish and provide such utility service pursuant to the terms and provisions of this article. No provision of this article may be deemed or construed to require the granting of a franchise when in the opinion of the Council it is in the public interest to restrict the number of grantees or operate such service as a municipal utility. No person shall establish, operate, or maintain a utility supplying or servicing the inhabitants of the city of Fresno without the consent of the city. (Added Ord. 79-174, § 1, eff. 11-30-79; Am. Ord. 84-8, § 1, eff. 1-17-84).

SEC. 9-404. APPLICATION FOR FRANCHISE.

All applications to construct, operate, or maintain any utility in this city shall be filed with the City Clerk, and each such application shall set forth, contain, or be accompanied by the following:

(a) The name, address, and telephone number of the applicant.

(b) A detailed statement of the corporate or other business entity organization of the applicant, including, but not limited to, the following:

(1) The names, residence addresses and business addresses of all officers, directors, and associates of the applicant.

(2) The names, residence addresses and business addresses of all persons and entities having, controlling, or being entitled to have or control five per cent or more of the ownership of the applicant and the respective ownership share of each such person or entity.

(3) The names and addresses of any parent or subsidiary of the applicant and of any other business entity owning or controlling in whole or in part or owned or controlled in whole or in part by the applicant, and a statement describing the nature of any such parent or subsidiary business entity, including, but not limited to, all similar systems owned or controlled by the applicant, its parent or subsidiary and the areas served thereby.

(4) A detailed description of all previous experience of the applicant in providing the same service or related or similar services.

(5) A detailed and complete financial statement of the applicant, prepared by a certified public accountant, for the fiscal year next preceding the date of the application hereunder,

or a letter or other acceptable evidence in writing from a recognized lending institution or funding source, addressed to both the applicant and the Council, setting forth the basis for a study performed by such lending institution or funding source, and a clear statement of its intent as a lending institution or funding source to provide whatever capital shall be required by the applicant to construct and operate the proposed system in the city, or a statement from a certified public accountant, certifying that the applicant has available sufficient free, net and uncommitted cash resources to construct and operate the proposed system or enlargement thereof in this city.

(6) A statement identifying, by place and date, any other franchise(s) awarded to the applicant, its parent or subsidiary; the status of said franchise(s) with respect to completion thereof; the total cost of completion of such system(s); and the amount of applicant's and its parent's or subsidiary's resources committed to the completion thereof.

(c) A detailed description of the proposed plan of operation of the applicant, which shall include, but not be limited to, the following:

(1) A detailed map indicating all areas proposed to be served, and a proposed time schedule for the installation of all equipment necessary to become operational throughout the entire area to be served.

(2) A statement or schedule setting forth all proposed classifications of rates and charges to be made against subscribers and all rates and charges as to each of any said classifications, including installation charges, service charges, and special, extraordinary, or other charges. The purchase price, terms and nature of any optional or required equipment, device, or other thing to be offered for sale to any subscriber shall be described and explained in detail.

(3) A detailed, informative, and referenced statement describing the actual equipment and operational standards proposed by the applicant. In no event shall said operational and performance standards be less than those contained in any city standard specifications as the same may be amended from time to time.

(d) A copy of the form of any agreement, undertaking, or other instrument proposed to be entered into between the applicant and any subscriber.

(e) A copy of any agreement covering the service area, if existing between the applicant and any public utility subject to regulation by the California Public Utilities Commission, providing for the use of any facilities of the public utility, including, but not limited to, poles, lines, or conduits.

(f) Any other details, statements, information or references pertinent to the subject matter of such application which shall be required or requested by the CAO.

(g) An application fee in the sum of one hundred dollars ($100.00), which shall be in the form of cash, certified or cashier's check, or money order, to pay the costs of studying, investigating, and otherwise processing such application, and which shall be in consideration thereof and not returnable or refundable in whole or in part; provided, that any applicant who

shall deliver to the City Clerk a written withdrawal of or cancellation of any application hereunder, not later than the seventh day next following the day such application is received by the City Clerk, shall be entitled to have returned and refunded the sum of fifty dollars ($50.00). (Added Ord. 79-174, § 1, eff. 11-30-79).

SEC. 9-405. FRANCHISE PROCEDURE.

The procedures set forth in Article XIII of the Charter of the city and this article shall govern the procedure for granting or denying franchises. The Council may adopt by resolution such additional procedures not inconsistent with the Charter or this article. (Added Ord. 79-174, § 1, eff. 11-30-79).

SEC. 9-406. ACCEPTANCE OF FRANCHISE.

(a) No franchise hereunder shall become effective for any purpose unless and until written acceptance thereof shall have been filed with the City Clerk; and such written acceptance shall be in form and substance as shall be prescribed and approved by the City Attorney and shall be and operate as an acceptance of each and every term and condition and limitation contained in this article, in such franchise, or otherwise specified as herein provided.

(b) Such written acceptance shall be so filed by grantee not later than 12:01 p.m. of the fifth day next following the effective date of the ordinance granting such franchise; and in default of the filing of such written acceptance as herein required, grantee shall be deemed to have rejected and repudiated the same; and thereafter, the acceptance of any such grantee shall not be received nor filed by the City Clerk, and such grantee shall have no rights, remedies, or redress in the premises, unless and until the Council shall, by resolution, determine that such acceptance by received or filed, and then upon such terms and conditions as the Council may impose; provided, that in any case and in any instance, all rights, remedies, and redress in these premises which may or shall be available to the city, shall at all times be so available to the city, and shall be preserved and maintained and shall continuously exist in and to the city, and shall not be in any manner or means modified, abridged, altered, restricted, or impaired by reason of any of these premises, or otherwise. (Added Ord. 79-174, § 1, eff. 11-30-79).

SEC. 9-407. DEFAULT.

Willful failure, refusal, or neglect by grantee to do or comply with any requirement or limitation herein, or any term or condition of any franchise issued hereunder, shall be sufficient cause for termination of any franchise by the city, as follows:

(a) Upon the continuing of any such failure, refusal, or neglect for a period of ten days next following written demand by the AEO that the grantee do or comply with any such requirement, limitation, term or condition, the CAO may cause to be placed upon the agenda of a regular session of the Council his request for termination of such franchise, and in such case, the CAO shall cause to be served upon such grantee, at least five days prior to the date of such session of the Council, a written notice of his intent to request such termination at the time and place of such session.

(b) At such session of the Council, or at any adjournment thereof, the Council shall consider the request of the CAO, and shall hear any persons interested therein, and shall determine whether or not any such failure, refusal or neglect by grantee was with just cause.

(c) If the Council shall determine such failure, refusal or neglect by grantee was with just cause, it shall direct grantee to comply within such time and manner and upon such terms and conditions as the Council shall determine to be reasonable.

(d) If the Council shall determine such failure, refusal or neglect by grantee was without just cause, then the Council may pass its resolution declaring that the franchise of such grantee shall be terminated and forfeited unless there be compliance by grantee within ten days, and such resolution shall operate to declare such franchise terminated and forfeited on the tenth day next following the passage thereof, and without further notice to grantee, unless grantee shall so comply within such ten-day period, such termination and forfeiture to become effective for all purposes one hundred eighty days thereafter.

(e) At any time after the effective date of such termination and forfeiture, and by operation of law, the city shall have the right, upon a finding by resolution of the Council that service is not being satisfactorily rendered to subscribers and without further notice or process, to enter and take possession of all properties, facilities, records and files of grantee, and to exercise all of the rights, privileges, powers, authorities and immunities of grantee, which are a part of the system of grantee, and to operate the system, and to provide the services thereof, in the same manner, and to the same extent, in all respects, as existed in grantee, and grantee shall not cause or permit any avoidance, hindrance, interference, or delay, in the exercise of such right by city.

(f) Within one hundred eighty days after such declaration of termination and forfeiture, and regardless of the exercise of any right of city hereunder, grantee may sell, remove, or (by means divesting grantee of all right, title, and interest) transfer the entire system of grantee. Upon any such sale or transfer in addition to any other rights hereunder or otherwise, city shall have a lien (next in order of preference to any liens or encumbrances existing of record on the date of such termination and forfeiture) against any and all proceeds thereof, and against the system of grantee, in the full amount of any loss, cost, expense or other financial detriment incurred by city in the exercise of any right hereunder, or by reason of such termination and forfeiture.

(g) In the event grantee shall fail or refuse to sell, remove or transfer the entire system of grantee, as hereinabove provided, and regardless of the exercise of any other right of city hereunder, then by operation of law, all of the properties, facilities, records, files, rights, privileges, powers, authorities, and immunities of grantee, which are part of the system of grantee, shall become the property of the city, subject to any and all valid liens or encumbrances of record, and the system shall belong to the city, upon demand therefor, such instruments as the City Attorney shall prescribe and approve, evidencing or affecting the ownership or control of any of the same in the city.

(h) In the event the system of grantee shall become the property of the city, as herein provided, then city may solicit and call for offers to purchase such system by bid process.

(i) Nothing herein shall be construed to obligate or require city to exercise any right of city hereunder, and city shall at no time be obligated or required to undertake or assume the ownership or operation of any system or to provide any service. (Added Ord. 79-174, § 1, eff. 11-30-79).

SEC. 9-408. VALIDITY.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be invalid, such holding or holdings shall not affect the validity of the remaining portions of this ordinance. The Council declares that it would have passed this ordinance and each section, subsection, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid. (Added Ord. 79-174, § 1, eff. 11-30-79).

SEC. 9-409. VIOLATIONS.

From and after the effective date of this article, absent written agreement with the city to the contrary, it shall be unlawful for any person to install, construct, operate or maintain any new utility or utility service or to enlarge or expand the service or the service area of an existing utility within all or a specific portion of the city or therein to alter or change the identity of the utility service provider, without the consent of the city and unless a franchise authorizing same has first been obtained pursuant to the provisions of this article, and unless such franchise is in full force and effect. (Added Ord. 79-174, § 1, eff. 11-30-79; Am. Ord. 84-8, § 2, eff. 1-17-84).

ARTICLE 5 AMUSEMENT DEVICES

Sec. 9-501. Definitions.
Sec. 9-502. Amusement Device Permit Required.
Sec. 9-503. Exemptions.
Sec. 9-504. Application.
Sec. 9-505. Application, Issuance, Denial.
Sec. 9-506. Contents of Permit.
Sec. 9-507. Duration and Renewal.
Sec. 9-508. Permit Fees.
Sec. 9-509. Amusement Devices Near Specified Facilities Prohibited.
Sec. 9-510. Permit not Transferable.
Sec. 9-511. Posting of Permit.

SEC. 9-501. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provision or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Amusement device" shall mean any device, machine, apparatus or other instrument operated electrically, mechanically or manually, for amusement purposes only, for the use of which there is required to be deposited in such device, machine, apparatus or instrument, a coin, token or other thing of value. Tables used to play "billiards" as defined in Section 9-1801(a) of this Code, shall not be classified as amusement devices even if their use requires the deposit of a coin, token or other thing of value.

(c) "Operator" shall mean the person who owns, controls, offers for rent, has charge of, keeps or maintains any amusement device.

(d) "Approved location" shall mean any location approved by the Controller and Police Chief for placement of an amusement device. (Am. Ord. 80-171, § 8, eff. 12-26-80; Am. Ord. 95-27, § 1, eff. 5-5-95)

SEC. 9-502. AMUSEMENT DEVICE PERMIT REQUIRED.

No person shall maintain an amusement device for operation or play at other than an approved location and pursuant to a valid permit issued under this article. (Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-503. EXEMPTIONS.

No permit is required, or shall be issued, under this article for the following amusement devices:

(a) Amusement devices held in transit or storage and not available to be operated or played;

(b) Electrical musical devices;

(c) Amusement devices the maintenance or possession of which is prohibited by any law; and

(d) Amusement devices designated to be ridden or occupied and used by children. (Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-504. APPLICATION.

An application to the Controller for a permit to maintain amusement devices at any location may be made by the owner of the location. The application shall be in a form approved by the Controller, shall be signed by the applicant, and shall include the following:

(a) The applicant's and the operator's name, home address, local business address, and telephone numbers, including information as to persons doing business under fictitious names, members of partnerships, and officers of corporations or associations;

(b) The fingerprints of the applicant and the operator;

(c) A statement as to whether or not the applicant or the operator has ever been convicted of any crime and if so, the details of such conviction(s), specifying the particular crime involved and the dates and places of such conviction(s), excluding parking violations;

(d) The location at which the amusement devices are proposed to be permitted;

(e) The number of amusement devices desired to be permitted at such location;

(f) The date upon which the applicant desires the permit to be issued; and

(g) Such other and further information as the Controller may require. (Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-505. APPLICATION, ISSUANCE, DENIAL.

(a) The Controller shall make an investigation of the facts stated in the application and shall within forty-five days determine the following:

(1) Whether any statement made in the application is false;

(2) Whether the applicant or operator has had an amusement device permit revoked within the last six months;

(3) Whether the applicant and the operator have been fingerprinted;

(4) Whether the applicant or the operator has been convicted within the last five years of a crime involving moral turpitude; and

(5) Whether the proposed location is prohibited by Section 9-510.

(b) If the Controller makes a finding unfavorable to the applicant pursuant to subsection (a), he shall deny issuance of the permit and shall give the applicant prompt written notice of such finding and decision, including a statement of the specific reasons for denial. Otherwise, the Controller, with the approval of the Police Chief, shall issue the permit.

(c) Any person aggrieved by the action of the Controller in denying an amusement device permit may appeal to the City Hearing Officer in accordance with the provisions of Chapter 1, Article 4, of this Code. If no appeal is filed within the time prescribed, the action of the Controller shall be final. (Am. Ord. 80-171, § 8, eff. 12-26-80; Am. Ord. 2003-67, § 13, eff. 8-31-03).

SEC. 9-506. CONTENTS OF PERMIT.

The permit issued by the Controller shall contain the following:

(a) The name of the permittee and operator;

(b) The approved location for the amusement devices;

(c) The number of amusement devices permitted;

(d) The period for which the permit is valid; and

(e) A statement that the permit is not transferable. (Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-507. DURATION AND RENEWAL.

(a) A permit issued pursuant to Section 9-505 shall be effective for the remainder of the calendar year in which it is issued, unless earlier revoked.

(b) A permittee may renew his amusement device permit for the next calendar year, according to the same standards under which it was issued, by filing a statement with the Controller while the present permit is in effect, and no later than the fifteenth day of November. The statement shall include any modification of the information contained in the previous application and such other and further information as the Controller may require, and shall be signed under penalty of perjury.

(c) A permittee failing to renew the amusement device permit pursuant to subsection (b) of this section shall apply for a new permit. The Controller may waive the requirement of any new investigation which would otherwise be required.

(d) Upon payment of the renewal fee, the Controller shall issue the permittee a stamp indicating the effective period of the renewed permit. The permittee shall affix the stamp to the original permit. (Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-508. PERMIT FEES.

(a) A person applying for or renewing an amusement device permit shall pay the fee designated in the Master Fee Resolution.

(b) The permittee is not entitled to any refund for nonexercise of any permit issued or renewed pursuant to this article.
(Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-509. AMUSEMENT DEVICES NEAR SPECIFIED FACILITIES PROHIBITED.

No permittee or operator of an amusement device shall cause, permit or allow the device to be operated between the hours of 7:00 a.m. and 4:00 p.m. within five hundred feet of the nearest street entrance to or exit from any public or private school ground of elementary or high school grades, on any day during which classes are held at said school for any of such grades, said five hundred foot distance to be measured from the entrance to the location of said device in the most direct line to the nearest entrance or exit of the school. This subsection shall not apply when the amusement device is placed in premises in which minors are prohibited from entering and remaining by the Alcoholic Beverage Control Act of the State of California.
(Am. Ord. 80-171, § 8, eff. 12-26-80; Am. Ord. 83-43, § 1, eff. 5-20-83).

SEC. 9-510. PERMIT NOT TRANSFERABLE.

Any permit issued or renewed pursuant to this article is not transferable to any person other than the listed permittee and operator, or to any location other than the approved location listed on the permit.
(Am. Ord. 80-171, § 8, eff. 12-26-80).

SEC. 9-511. POSTING OF PERMIT.

Each amusement device permit shall be posted in a conspicuous place at the approved location during the period for which it is valid.
(Am. Ord. 80-171, § 8, eff. 12-26-80).

ARTICLE 6 PAWNBROKERS AND SECONDHAND DEALERS

Sec. 9-601. Definitions.
Sec. 9-602. Reports to Chief of Police.
Sec. 9-603. Copies of Reports at Place of Business.
Sec. 9-604. Reports to be Made Concurrent With Transactions.
Sec. 9-605. Filing and Exhibition of Reports.
Sec. 9-606. Fifteen Day Holding Period.
Sec. 9-607. Permit Required.
Sec. 9-608. Mandatory Revocation.
Sec. 9-609. Business Hours.
Sec. 9-610. Incidental Secondhand Dealers' Reports.
Sec. 9-611. Allowing Violations by Others.
Sec. 9-612. Permit Required.
Sec. 9-613. Exceptions.

SEC. 9-601. DEFINITIONS.

(a) "Pawnbroker" is defined as a person engaged in, conducting, managing or carrying on the business of pawnbroking, or the business of loaning money, for himself or for any other person, upon personal property, or the business of purchasing articles of personal property, and reselling or agreeing to resell such articles to the vendors, or their assigns, at prices agreed upon at or before the time of such purchase.

(b) A "pawnshop" is defined to be any room, store or place in which any such business is engaged in, carried on or conducted.

(c) A "secondhand dealer" is defined as a person engaged in, conducting, managing or carrying on the business of buying, selling or otherwise dealing in secondhand goods, wares and merchandise, including radios for use in or upon automobiles, except secondhand household furniture and furnishings, as herein defined. This definition does not include secondhand or thrift stores as defined in Chapter 15.

(d) "Household furniture and furnishings" shall mean and include beds, bedding, tables, desks, chairs, stoves, ice boxes, electric refrigerators, floor coverings, crockery, glassware and kitchen and cooking utensils.
(Orig. Ord. 2600; Am. Ord. 2015-39, § 6, eff. 1-9-16).

SEC. 9-602. REPORTS TO CHIEF OF POLICE.

(a) Every pawnbroker and every secondhand dealer shall, on each day, except Sundays and legal holidays, before the hour of ten o'clock in the morning, make and deliver to the Chief of Police, in writing, a full, true, and complete report in chronological order, of all dealings in secondhand goods, wares and merchandise, including radios for use in or upon automobiles, by such pawnbroker or secondhand dealer during the twenty-four hours next preceding said report, together with the time of day when purchased or received, a complete description of each article purchased or received, and a description of the person or persons from whom purchased or received, or with whom dealt, and the license number and description of any vehicle which the person or persons from whom purchased or received was

or were riding in or upon, or driving, and also the true name of such person or persons as nearly as the same is known to or can be ascertained by the person making such report. If any such article

purchased or received shall have engraved thereon any number, word or initial, or shall contain any setting of any kind, the description of such article shall contain such number, word or initial, and shall show the kind of setting or settings and the number of each kind.

(b) The report required herein shall be made upon a form to be furnished, upon request, free of charge by the Chief of Police. The Chief of Police shall cause blank forms to be printed, which said blank forms shall be so printed and subdivided that they shall have space for writing in the following manner, to-wit: Description of article purchased or received; amount paid for or loaned upon said property; name and residence of person or persons from whom purchased or received, showing the true name as nearly as known; age; sex; complexion; color of hair; style of dress and height of the person or persons from whom purchased or received; time of day goods purchased or received; license number, make, type and color of automobile or other vehicle driven or occupied by such person or persons; date and time of making said report; name and place of business of pawnbroker or secondhand dealer making such report.

(c) The Chief of Police, upon receipt of said report, shall file the same in his office, and said report shall be open to inspection only to members of the Police Department, or by others upon an order of a Court of competent jurisdiction made for that purpose. (Orig. Ord. 2600).

SEC. 9-603. COPIES OF REPORTS AT PLACE OF BUSINESS.

Every pawnbroker and every secondhand dealer shall keep at his place of business a copy of every report required by Section 9-602 hereof, and such copies shall be open at all times during business hours to the inspection of the Chief of Police, or any member of the Police Department, or any officer authorized by law. Said report shall be in book form, and each transaction shall be kept in chronological order. (Orig. Ord. 2600).

SEC. 9-604. REPORTS TO BE MADE CONCURRENT WITH TRANSACTIONS.

Every report and record required by the provisions of this article to be filed, kept or made, shall be written or printed entirely in the English language in a clear and legible manner, and shall be made out at the time the transaction is made. (Orig. Ord. 2600).

SEC. 9-605. FILING AND EXHIBITION OF REPORTS.

No pawnbroker or secondhand dealer, or any agent or employee of such pawnbroker or secondhand dealer, shall fail, refuse or neglect to file a report, as required herein, in the manner, form, at the time and in all respects in accordance with the requirements of this article or shall fail, refuse or neglect to exhibit to the Chief of Police, or to any member of the Police Department, or to any officer authorized by law, immediately upon demand, any such record or report, or any goods, wares and merchandise, including radios for use in or upon automobiles, so purchased or received by such pawnbroker or secondhand dealer, or by any agent or employee of such pawnbroker or secondhand dealer. (Orig. Ord. 2600).

SEC. 9-606. FIFTEEN DAY HOLDING PERIOD.

All goods, wares and merchandise, including radios for use in or upon automobiles, purchased or received by any pawnbroker or secondhand dealer shall be held for a period of at least fifteen days after purchase or receipt before the same shall be sold or otherwise disposed of, excepting, however, all goods, wares and merchandise, including radios for use in or upon automobiles, upon which any duly licensed pawnbroker has issued a pawn ticket in accordance with the laws of the State of California, and during said fifteen-day period all such property shall be kept separate and apart from all other goods, wares and merchandise, including radios for use in or upon automobiles, upon the premises in the possession of such pawnbroker or secondhand dealer, and all such property shall, during said fifteen-day period, be kept and exposed for police inspection during business hours. (Orig. Ord. 2600).

SEC. 9-607. PERMIT REQUIRED.

No person shall engage in, conduct, manage or carry on the business of pawnbroker or secondhand dealer without having a valid, existing and unrevoked permit therefor. Such permit shall be issued by the Police Chief upon application therefor. (Orig. Ord. 2600; Am. Ord. 5308, 1958; Am. Ord. 80-171, § 92, eff. 12-26-80).

SEC. 9-608. MANDATORY REVOCATION.

If any permit holder under this article, or any agent or employee of any such person, violates or causes or permits to be violated any of the provisions of this article, the Police Chief shall, in addition to the other penalties provided by law, revoke such permit. If the permit of any person is revoked, no permit shall be granted to such person to conduct or carry on any such business within six months after such revocation. The procedures for revocation shall be those in Section 6-107, except that the only appeal shall be to the City Hearing Officer under Chapter 1, Article 4. (Orig. Ord. 2600; Am. Ord. 5311, 1958; Am. Ord. 80-171, § 93, eff. 12-26-80; Am. Ord. 81-157, § 10, eff. 12-11-81; Am. Ord. 98-65, § 3, eff. 10-1-98; Am. Ord. 2003-67, § 14, eff. 8-31-03).

SEC. 9-609. BUSINESS HOURS.

No person shall engage in, conduct, manage or carry on the business of pawnbroker or secondhand dealer on Sundays and legal holidays, and between the hours of seven o'clock p.m. on each day and eight o'clock a.m. of the following morning, except that on Fridays, Saturdays and days before legal holidays and during the twenty-four days next preceding Christmas day, each such person may engage in, conduct, manage or carry on such business until the hour of nine o'clock p.m. (Orig. Ord. 2600; Rep. Ord. 6144, 1962; Added Ord. 6195, 1962).

SEC. 9-610. INCIDENTAL SECONDHAND DEALERS' REPORTS.

Every person except pawnbrokers and secondhand dealers, as herein defined, having an established place of business within the city, and the servants, agents and employees of such person, who, incidentally to the principal business conducted at such established place of

business, buys, sells or otherwise deals in secondhand goods, wares and merchandise, including radios for use in or upon automobiles, or in anywise participates as agent, broker or otherwise in the buying, selling or otherwise dealing in secondhand goods, wares and merchandise, including radios for use in or upon automobiles, shall, within twenty-four hours after buying, purchasing or otherwise receiving such goods, wares and merchandise, including radios for use in or upon automobiles make out and deliver to the Chief of Police, upon forms to be furnished by the Police Department, a written report of such purchase and receipt, which said report shall include the following information: Date and hour purchased or received; description of the person or persons from whom purchased or received; the true name and address as nearly as the same is known to or can be ascertained by the person or persons receiving or purchasing said property; circumstances under which purchased or received; license number and description of the vehicle driven or occupied by the person or persons from whom said goods were purchased or received; purchase price paid, if any, and a full and complete description of the goods, wares and merchandise, including radios for use in or upon automobiles, or other articles of personal property purchased or received.
(Orig. Ord. 2600).

SEC. 9-611. ALLOWING VIOLATIONS BY OTHERS.

No person, except pawnbrokers and secondhand dealers, as herein defined, having an established place of business within the city, and the servants, agents and employees of such person, shall allow, permit or encourage any person who is not licensed hereunder as a pawnbroker or secondhand dealer to buy, sell or otherwise deal in secondhand goods, wares and merchandise, including radios for use in or upon automobiles, in or about such established place of business.
(Orig. Ord. 2600).

SEC. 9-612. PERMIT REQUIRED.

(a) No pawnbroker or secondhand dealer of the city, as defined herein, shall engage in the business of a pawnbroker or secondhand dealer within the city, without first obtaining a permit therefor from the Chief of Police in compliance with the provisions of this section.

(b) Every such pawnbroker and secondhand dealer shall file an application for a permit signed by the applicant with the Chief of Police showing the following:

(1) Permanent home address and full local address of the applicant;

(2) A brief description of the nature of the business and the goods to be sold;

(3) A photograph of the applicant, taken within sixty days immediately prior to the date of the filing of the application, which picture shall be two inches by two inches, showing the head and shoulders of the applicant in a clear and distinguishing manner;

(4) The fingerprints of the applicant;

(5) A statement as to whether or not the applicant has ever been convicted of any crime or misdemeanor, and if so, the details in general of such convictions, and specifying the particular crimes or misdemeanors involved and the dates and places of such convictions.

(c) The provisions of this section shall be applicable to all pawnbrokers and secondhand dealers who shall be engaged in business in the City of Fresno on and after July 1, 1956.

(d) Any person aggrieved by the action of the Police Chief in denying a pawnbroker or secondhand dealer's permit may appeal to the Chief Administrative Officer in accordance with the provisions of Chapter 1, Article 4, of this Code. If no appeal is filed within the time prescribed, the action of the Police Chief shall be final.
(Added Ord. 4854, 1956; Am. Ord. 2003-67, § 27, eff. 8-31-03).

SEC. 9-613. EXCEPTIONS.

(a) The provisions of this article shall not apply to any person who sells or deals in secondhand goods, wares or merchandise which have been donated to said person or the organization which he represents. A donation occurs, for the purpose of this article, when a gift is made to the person or his organization for which gift no money, property or other thing or service of value is exchanged or to be received in the future.

(b) The provisions of this article shall not apply to electronic resale, general retail, and large-format retail businesses.
(Added Ord. 6144, 1962; Am. Ord. 2022-033, § 1, eff. 11-26-2022)

ARTICLE 7 SOLICITATION OF CONTRIBUTIONS

Sec. 9-701. Definitions.
Sec. 9-702. Registration of Promoter.

SEC. 9-701. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provision or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Charitable" shall mean and include the words patriotic, philanthropic, social service, welfare, benevolent, educational, civic or fraternal, either actual or purported.

(c) "Contributions" shall mean and include the words alms, food, clothing, money, subscription, property, or donations under the guise of a loan of money or property.

(d) "Controller" shall mean the Controller and Director of Finance of the city.

(e) "Organization" shall mean any firm, individual proprietorship, partnership, joint venture, association, corporation, church, religious denomination, religious sect, society or league, and includes any trustee, receiver, assignee, agent, employee or similar representative thereof.

(f) "Promoter" shall mean a person or organization, employed or engaged by any other person or organization, on a salary, commission or percentage basis, to conduct a solicitation for any charitable or religious purpose for or on behalf of such other person or organization. No person who holds a permanent salaried office or position with any charitable or religious entity or organization shall be deemed a promoter.

(g) "Religious" shall be given its commonly accepted definition.

(h) "Solicit" and "solicitation" shall mean the request, made directly or indirectly, for money, credit, property, financial assistance, or other thing of value on the plea or representation that such money, credit, property, financial assistance or other thing of value, or any portion thereof, will be used for a charitable or religious purpose. These words shall also mean and include the following methods of securing money, credit, property, financial assistance, or other thing of value on the plea or representation that it, or any portion thereof, will be used for a charitable or religious purpose:

(1) Any oral or written request;

(2) The distribution, circulation, mailing, posting, or publishing of any handbill, written advertisement, or publication;

(3) The making of an announcement in any newspaper, by radio or television, or by telephone or telegraph, concerning an appeal, assemblage, athletic or sports event, bazaar, benefit, campaign, contest, dance, drive, entertainment, exhibition, exposition, party, performance, picnic, sale or social gathering which the public is requested to patronize, or to which the public is requested to make a contribution for any charitable or religious purpose connected therewith;

(4) The sale of, or offer or attempt to sell, any advertisement, advertising space, book, card, coupon, device, magazine, merchandise, subscription, ticket or other thing in connection with which any appeal is made for any charitable or religious purpose, or in connection with which the name of any charitable or religious organization is used or referred to as an inducement or reason for making the purchase, or in connection with which any statement is made that the whole or any part of the proceeds from any such sale will go or be donated to any charitable or religious purpose, or in connection with which any request or suggestion is made that the purchaser donate for charitable purposes all or any part of the thing purchased; and

(5) The placing, in any place open or accessible to the public, of any receptacle for the reception of money or property, in connection with which any appeal is made for a charitable purpose. (Rep. and Added Ord. 83-77, § 2, eff. 7-15-83).

SEC. 9-702. REGISTRATION OF PROMOTER.

(a) No promoter, or agent, representative, or employee of any promoter, shall conduct or manage any solicitation for contributions for a charitable or religious purpose unless such promoter shall have first registered with the Controller. To register, a promoter shall submit the following information to the Controller on a registration form provided by the city:

(1) The promoter's name, address, and telephone number, which address and telephone number shall include both the principal office of the promoter and the local headquarters, if any, from which the solicitation will be conducted;

(2) The name, address and telephone number of the person or organization for whom the solicitation will be conducted or managed;

(3) The terms and conditions, including the basis for the promoter's compensation, under which the promoter will conduct or manage the solicitation for such person or organization;

(4) The period of time during which the solicitation will be conducted or managed, showing beginning and ending dates;

(5) A copy of the printed disclosure information required to be furnished by California Business and Professions Code, Section 17510, et seq.;

(6) If the solicitation is for an organization, the signatures of two individuals who are principals, staff members, or officers of the organization for which the solicitation will be conducted or managed, certifying that the promoter is authorized to conduct the described solicitation for such organization.

(b) A promoter shall submit the above information prior to the time any solicitation is conducted, and shall pay the registration fee designated in the Master Fee Resolution for each new solicitation.

(c) Immediately following receipt of the completed registration form and the registration fee, the Controller shall issue a registration statement to the promoter, evidencing such receipt and stating that the information submitted by the promoter is on file with the Controller and is open to public inspection. The promoter, and each of his agents, representatives or employees, shall be required to exhibit a copy of such registration statement upon request by a representative of the city, or a member of the general public.

(d) In addition to the registration fee herein provided, every promoter, and every agent or representative of a promoter, who engages in soliciting contributions under the provisions of this article shall pay to the city the business license fees prescribed in accordance with Chapter 7 of this Code. (Rep. and Added Ord. 83-87, § 2, eff. 7-15-83).

ARTICLE 8 AUCTIONS

Sec. 9-801. Public Auction Sales.
Sec. 9-802. Public Auction Permit.
Sec. 9-803. Misrepresentations Prohibited.
Sec. 9-804. False Bids Prohibited.
Sec. 9-805. Designation of Each Bidder Required.
Sec. 9-806. Invoices Required.
Sec. 9-807. Mandatory Revocation of Public Auction or Jewelry Auction Permit.
Sec. 9-808. Exempt Auctions.
Sec. 9-809. Jewelry Auction Permit.
Sec. 9-810. Definition of Auctioneer.
Sec. 9-811. Regulations for Auctioneers.
Sec. 9-812. Duration, Renewal and Appeal.

SEC. 9-801. PUBLIC AUCTION SALES.

No person shall advertise or conduct a public auction sale, or cause or permit to be advertised or conducted a public auction sale of any goods, wares or merchandise, whether the same is his own property or the property of someone else, without first obtaining a public auction permit. Without limiting the generality of the term "public auction sale," such sale shall include a sale in which, instead of the bidders making increasingly higher bids for an article or articles of merchandise, the seller or auctioneer announces a price at which he will sell one or more articles of merchandise and then, if no sale occurs, increasingly adds additional articles of merchandise to those originally offered, with or without varying the previously announced price, until a buyer is finally induced to buy the accumulated articles at the price fixed. (Orig. Ord. 3938; Am. Ord. 5875, 1961; Am. Ord. 80-171, § 16, eff. 12-26-80).

SEC. 9-802. PUBLIC AUCTION PERMIT.

Any person desiring to conduct a public auction sale shall file an application with the Controller stating his full name, home address, local business address, and telephone numbers, and whether he has previously conducted auction sales. If so, the places where he has previously conducted such auction sales shall be designated, as well as such other information as the Controller shall deem reasonable and necessary to establish the truth of each and all of such statements. An affidavit shall be attached to the application stating that all of the statements therein contained are true and correct. If the applicant is a corporation, the affidavit may be made by the president, general manager, secretary or treasurer. If the Controller finds the statements in the application are true, he shall issue an auction permit for a length of time not to exceed one year. (Orig. Ord. 1191; Am. Ord. 5308, 1958; Am. Ord. 80-171, § 17, eff. 12-26-80).

SEC. 9-803. MISREPRESENTATIONS PROHIBITED.

(a) No person acting as auctioneer shall make any statements which are false in any particular or which have tendency to mislead any person present, or to make any misrepre-

sentation whatsoever or at all, as to the quality, quantity, character, present condition, value, cost, general selling price, or as to whether property is new or secondhand, or partly so, of any property offered for disposal by auction sale.

(b) No person shall sell or attempt to sell by auction, or advertise for sale by auction, any goods, wares or merchandise, falsely representing or pretending that such goods, wares and merchandise are in whole or in part a bankrupt or insolvent stock, or damaged goods, or goods saved from a fire, or make any false statement as to the previous history, ownership, quality or character of such goods, wares and merchandise.

(c) No person shall offer for sale at auction any article and induce its purchase by any bidder, and afterwards substitute any article in lieu of that offered to and purchased by the bidder, except with the bidder's knowledge and consent. (Orig. Ords. 1191 and 1282).

SEC. 9-804. FALSE BIDS PROHIBITED.

No person shall act, or cause or induce anyone else to act, as by-bidder or what is commonly known as a "capper" or "booster" or "shiller" at any such auction or place where any such auction shall take place, or to offer to make any false bid or to offer any false bid to buy or pretend to buy, any such article sold or offered for sale at any such auction. (Orig. Ord. 1191).

SEC. 9-805. DESIGNATION OF EACH BIDDER REQUIRED.

It shall be the duty of the auctioneer to make some description of the person making a bid every time a bid is announced and also to point to or designate the position on the premises of the bidder. (Orig. Ord. 1191).

SEC. 9-806. INVOICES REQUIRED.

It shall be the duty of the person whose merchandise is thus being sold at public auction to give each and every purchaser of an article, the selling price of which amounts to or exceeds the sum of two dollars and fifty cents ($2.50) an invoice containing a full description of the article, the selling price thereof together with a statement giving each and every warranty under which the article was sold. Duplicate copies of each invoice shall be kept. (Orig. Ord. 1911).

SEC. 9-807. MANDATORY REVOCATION OF PUBLIC AUCTION OR JEWELRY AUCTION PERMIT.

The Controller shall revoke the applicant's auction permit upon violation of this article, and it shall thereafter be unlawful for any such person to conduct any auction sale unless he applies for and procures a new auction permit. (Orig. Ord. 1191; Am. Ord. 5308, 1958; Am. Ord. 80-171, § 19, eff. 12-26-80; Am. Ord. 2003-67, § 15, eff. 8-31-03).

SEC. 9-808. EXEMPT AUCTIONS.

The provisions of this article shall not apply to any auction:

(a) Held or conducted by any public officer under the provisions of any law of the United States or State of California or any provisions of this Code, or

(b) Held for charitable or benevolent purposes, or for any church, fair, festival or bazaar. (Orig. Ord. 1191; Am. Ord. 80-171, § 20, eff. 12-26-80).

SEC. 9-809. JEWELRY AUCTION PERMIT.

(a) No person shall sell, dispose of, or offer for sale at public auction, or cause or permit to be sold, disposed of, or offered for sale at public auction, any platinum, gold, silver, or plated ware, precious stones or semiprecious stones, watches or other jewelry, whether the same is his own property or whether he shall sell the same as agent or employee of another, unless a permit for such sale is first obtained as provided in this section.

(b) Every public auction sale of the stock on hand of such merchant or merchants shall be held on successive days, Sundays and legal holidays excepted, shall not continue for more than thirty days in all from the commencement of such sale, and shall be permitted only where such merchant is bona fide disposing of his stock for the purpose of retiring from business.

(c) Not less than thirty days nor more than sixty days prior to the commencement of any jewelry stock auction sale, such merchant or merchants shall file an application for a permit with the Controller. Such application shall contain the following information:

(1) The place of the proposed jewelry auction;

(2) The date or dates on which the applicant desires to hold a jewelry auction;

(3) The name of the auctioneer who will conduct the auction;

(4) A detailed inventory, in duplicate, of the goods, wares and merchandise to be sold, the wholesale value, or cost to the applicant, of each item, and the quality and grade thereof. Each item of merchandise shall be numbered separately in the inventory, and the number in the inventory shall correspond to the number physically attached to such item. Such inventory shall be accompanied by a statement, sworn to by the applicant, that all of the merchandise described in the inventory is a bona fide part of the applicant's stock in trade and is not secured, purchased or brought into his place of business for, or in anticipation of the sale, that no other merchandise will be brought into the place of business after the date of filing of the application, that no merchandise will be sold or offered for sale that is not set forth in the inventory, and that each of the statements in the inventory is true and correct to his own personal knowledge.

(d) The application shall be accompanied by a cash deposit with the Controller in the amount designated in the Master Fee Resolution, which amount shall be retained as a penalty in the event of a violation by the applicant of any of the provisions of this article. Any such penalty shall be in addition to the penalty otherwise provided herein for a violation of any of the provisions of this Code.

(e) Upon receipt of an application for a jewelry auction permit, the Controller shall refer the application to the Police Chief, who shall investigate and report to the Controller his findings as to any criminal history information concerning the applicant and his auctioneer. The Controller shall check each item of the inventory submitted with the actual item in the applicant's place of business, shall make an investigation to ascertain the truthfulness of the application, shall determine whether the merchandise described in the inventory is a bona fide part of the applicant's stock in trade and not secured, purchased or brought into such place of business for or in anticipation of such sale, and shall determine whether the applicant is bona fide disposing of his stock for the purpose of retiring from business. The applicant shall pay the city the amount designated in the Master Fee Resolution for each day or fraction thereof that the representative of the Controller is engaged in the foregoing investigation. Said sum shall be deducted from the deposit made by the applicant, and the amount of said deposit, after deduction of aforesaid fees, shall be repaid to the applicant upon the written order of the Controller after the conclusion of the auction.

(f) All permits granted under the provisions of this section shall expire within sixty days from the date of issuance, except that if the applicant has not been able to dispose of his stock, as shown on the inventory filed with his application, within the thirty days allowed by the original permit, and if he files a request with the Controller for an extension of said permit for a period of not more than thirty additional calendar days, the Controller, with the approval of the Police Chief, may grant such request. No sale at public auction shall be held during the month of December of any year, and any extension described above shall not include any portion of the month of December of any year. (Orig. Ords. 1191, 3743, 3923, 3930 and 4650; Am. Ord. 5308, 1958; Am. Ord. 5311, 1958; Am. Ord. 80-115, §§ 71, 72, eff. 8-8-80; Am. Ord. 80-171, § 21, eff. 12-26-80).

SEC. 9-810. DEFINITION OF AUCTIONEER.

Every person who shall offer for sale in the city at public auction, either as principal or agent, to the highest bidder on the spot, any article of merchandise or property shall be deemed an auctioneer. (Orig. Ord. 3937).

SEC. 9-811. REGULATIONS FOR AUCTIONEERS.

(a) No person shall engage in the calling of auctioneer unless an auctioneer's permit is first obtained from the Controller. The application for an auctioneer's permit shall be in a form approved by the Controller, shall be signed by the applicant, and shall include the following:

(1) The applicant's name, home address, local business address, and telephone numbers, including information as to persons doing business under fictitious names, members of partnerships, and officers of corporations or associations;

(2) The fingerprints of the applicant;

(3) A statement as to whether or not the applicant has ever been convicted of any crime and if so, the details of such conviction(s), specifying the particular crime involved and the dates and places of such conviction(s), excluding parking violations; and

(4) Such other and further information as the Controller may require.

(b) The Controller shall make an investigation of the facts stated in the application and shall within forty-five days determine the following:

(1) Whether any statement made in the application is false;

(2) Whether the applicant has been fingerprinted; and

(3) Whether the applicant has been convicted within the last five years of a crime involving moral turpitude.

(c) If the Controller makes a finding unfavorable to the applicant pursuant to subsection (b), he shall deny issuance of the permit and shall give the applicant prompt written notice of such finding and decision, including a statement of the specific reasons for denial. Otherwise, the Controller, with the approval of the Police Chief, shall issue the auctioneer's permit.

(d) The auctioneer shall file a bond with the Controller in the sum designated in the Master Fee Resolution, payable to the city, executed by a surety company authorized to transact a surety business in California, and approved by the City Attorney. Such bond shall inure to the benefit of the city and any person or persons aggrieved or damaged by any act of the auctioneer.

(e) For every violation of this article, or of his duty as auctioneer, in addition to any other penalty provided by this Code, such auctioneer shall forfeit to the city an amount designated in the Master Fee Resolution, which shall be recoverable upon said bond.

(f) Any auctioneer may employ a crier at any sale and he shall be responsible for the acts of any person substituting for him, or any employee or crier, upon his bond.

(g) The permit granted to an auctioneer shall not be transferable, and it shall not be loaned or used by any other person except as in this section set forth.

(h) The person to whom the auctioneer's permit is granted shall pay the city the amount designated in the Master Fee Resolution for each day or fraction thereof that the representative of the Controller attends such sale.

(i) Each auctioneer shall keep a record book in which he must enter all sales, the amount paid, and the date of each sale, which book must be open at all times for the inspection of the Police Department of the city, and of any person interested therein.

(j) It shall be the duty of the person whose merchandise is thus being sold at public auction to give each and every purchaser of an article, the selling price of which amounts to or exceeds the sum of two dollars and fifty cents ($2.50), an invoice containing a full description of the article, and the selling price thereof, together with a statement giving each and every warranty under which the article was sold. Duplicate copies of said invoices shall be kept.

(k) No person, other than a licensed auctioneer who shall have complied with the terms of this section, shall hold, conduct, carry on or maintain any auction room or place for holding public auction sales, or advertise or hold himself out to the public as an auctioneer, or conduct, carry on, or maintain any sale of goods by public auction, bona fide or otherwise.

(l) Any person or persons, aggrieved or damaged by any act of an auctioneer in the city in violation of, or contrary to the provisions of this Code, may have an action against such auctioneer and his bondsmen upon his official bond therefor.

(m) Any fines paid by any person under the provisions of this section for any violation thereof shall be paid into the Treasury of the City of Fresno, for the use of the general fund of the city.

(n) In addition to the other penalties in this article provided, for any violation of any of the provisions of this section by any auctioneer or by any other person or persons with an auctioneer's knowledge and consent or connivance, the license of such auctioneer shall be revoked.
(Orig. Ords. 1282 and 3743; Am. Ord. 5320, 1958; Am. Ord. 80-115, §§ 73—75, eff. 8-8-80; Am. Ord. 80-171, §§ 22—26, eff. 12-26-80).

SEC. 9-812. DURATION, RENEWAL AND APPEAL.

(a) A permit issued pursuant to Section 9-811 shall be effective for the remainder of the calendar year in which it is issued, unless earlier revoked.

(b) A permittee may renew his auctioneer's permit for the next calendar year, according to the same standards under which it was issued, by filing a statement with the Controller while the present permit is in effect, and no later than the fifteenth day of November. The statement shall include any modification of the information contained in the previous application and such other and further information as the Controller may require, and shall be signed under penalty of perjury.

(c) A permittee failing to renew the auctioneer's permit pursuant to subsection (b) of this section shall apply for a new permit. The Controller may waive the requirement of any new investigation which would otherwise be required.

(d) Any person aggrieved by the action of the Controller in denying or revoking an auctioneer's permit may file an appeal under Chapter 1, Article 4. If no appeal is filed within the time prescribed, the action of the Controller shall be final.
(Orig. Ord. 1282; Am. Ord. 80-171, § 27, eff. 12-26-80; Am. Ord. 81-157, § 16, eff. 12-11-81; Am. Ord. 98-65, § 4, eff. 10-1-98; Am. Ord. 2003-67, § 16, eff. 8-31-03; Am. Ord. 2005-14, § 24, eff. 4-9-05).

ARTICLE 9 TAXICAB REGULATIONS

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SEC. 9-901. TITLE.

The title of this article shall be the "Taxicab Ordinance."
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-902. FINDINGS AND DETERMATIONS.

(a) The Council finds that licensing and regulating the operation of taxis/taxi-stands is necessary in order to control traffic flow, ensure passenger safety and protect the public health, safety and welfare, and therefore requires the adoption of this ordinance.

(b) If any sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this section. Council hereby declares that it

would have adopted this section and each sentence, clause or phrase thereof, irrespective of the fact that any one or more subsections, sentences, clauses or phrases be declared invalid or unconstitutional.

(c) The Council declares that any use of such words as "shall" and "must" in this article does not intend self-imposition of liability. (Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-903. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article and resolutions adopted pursuant thereto, and, except to the extent that a particular word or phrase is otherwise defined in this section, the definitions and provisions contained in Article 2, commencing with section 1-201 of Chapter 1 of this Code, shall also govern the construction, meaning and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Airport Taxicab Vehicle Operations Permit" shall mean a taxicab permit issued pursuant to and incorporating this article, that provides for the privilege of operation of a taxicab at city airports subject to any/all additional rules and regulations applicable to the airports and/or promulgated by the city's director of aviation. Whenever a taxicab permit is suspended or revoked, any related airport taxicab operations permit privileges shall be automatically suspended or revoked.

(b) "Approved Automotive Repair Facility" means a repair facility certified by the state of California to perform safety inspections and repairs and included on a list maintained by the city manager.

(c) "Certificate of Safety" means a document from an approved automotive repair facility certifying that a particular vehicle meets all vehicle safety standards set forth in this chapter and in regulations adopted pursuant to this chapter.

(d) "Chief of Police" means the Chief of Police of the City of Fresno, as a designee of the city manager.

(e) "City Manager" shall mean the City Manager of the city and/or his/her designee(s) and each of them.

(f) "Controller" shall mean the Controller of the City of Fresno, as a designee of the city manager.

(g) "Director of Aviation" shall mean the Director of Aviation of the City of Fresno, as a designee of the city manager.

(h) "Director of Transportation" shall mean the Director of Transportation of the City of Fresno, as a designee of the city manager.

(i) "Drop Charge" shall mean the initial charge made on the taximeter when the ride begins.

(j) "Handicapped Person" or "Disabled Person" means any person who, by reason of illness, injury, age, congenital malfunction, or other permanent or temporary incapacity or disability, is unable without special facilities or special planning or design to use mass transportation facilities and services as efficiently as persons who are not so affected, and shall include ambulatory persons whose capacities are hindered by sensory disabilities such as blindness or deafness, such mental disabilities as mental retardation or emotional illness, and physical disabilities that still permit the person to walk comfortably, or a combination of these disabilities, and shall also includes a semi-ambulatory person who requires such special aids to travel as canes, crutches, walkers, respirators, or human assistance, and a nonambulatory person who must use wheelchairs or wheelchair-like equipment to travel.

(k) "Knowingly Permit" means 1) to know of an action or condition that violates this article or any regulation or rule promulgated pursuant to this article, and 2) to fail to take reasonable steps to cure the violation and to prevent future violations. There is a rebuttable presumption that a person knows a fact, action or condition of which a reasonable person in the same position would have knowledge.

(l) "Model Year" as used in this article means the year model designated at the time of manufacture of first assembly as a completed vehicle (e.g. If a vehicle is produced in 1997, but is designated for sale as a 1998 model, then the vehicle is considered a 1998 "Model Year".)

(m) "Motor Vehicle" means every motorized vehicle by or upon which any person may be transported or carried upon a public street, highway or alley; provided, that vehicles used exclusively upon stationary rail tracks or propelled by use of overhead electric wires are not considered motor vehicles for purposes of this chapter.

(n) "O.E.M." as used in this article means any equipment installed on the vehicle when it was initially produced.

(o) "Operating in the City of Fresno" means owning, leasing, advertising, driving, occupying and/or otherwise using a taxicab that at any time transports any passenger or item for compensation from a point within the geographical confines of the City of Fresno. The vehicle is considered to be operating during the administering of inspections at the city's inspection facility. The term does not include being in control of a vehicle that is physically inoperable. A taxicab association is "operating in the City of Fresno" if it represents or includes any taxicab that at any time transports any passenger or item for compensation from a point within the geographical confines of the City of Fresno.

(p) "Owner" means the person whose lawful right of possession of a taxicab has most recently been recorded with the state Department of Motor Vehicles.

(q) "Permittee" means any person or entity issued a permit under this chapter.

(r) "Risk Manager" means the risk manager for the City of Fresno, as a designee of the city manager.

(s) "Senior Citizen" means any person over the age of 62 with a valid identification confirming that person's age.

(t) "Taxicab" shall mean any motor vehicle designed and used for carrying passengers, operated in the streets of the city other than over a defined or fixed route, and irrespective of whether the operations extend beyond the boundary limits of the city, between such points and over such route for the transportation of persons for hire at the direction of the passengers, of a distinctive color or colors or insignia or of public appearance such as is in common usage in this nation for taxicabs. Taxicab shall not include a charter-party carrier of passengers or a transportation network company within the meaning of the Passenger Charter-party Carriers' Act, Chapter 8 (commencing with Section 5351) of Division 2 of the Public Utilities Code.

(u) "Taxicab Driver's Permit" shall mean a permit issued pursuant to and incorporating this article, to a person for the privilege of operating a taxicab.

(v) "Taxicab Vehicle Permit" shall mean a taxicab permit issued pursuant to and incorporating this article, including any related airport taxicab operations permit privileges.

(w) "Taximeter" shall mean any instrument or device attached to a taxicab, and designed or intended to measure mechanically or electronically the distance traveled by such taxicab, or to record the time said taxicab is in waiting, and to indicate, by figures or designs, the fare to be charged in dollars and cents.

(x) "Taxi Stand" shall mean taxicab stand, taxi zone, or taxicab zone as defined or designated by Chapter 14 of this Code.

(y) "Ultra Low Emissions Vehicle" (ULEV) means Vehicles that meet the Air Resources Board ultra-low emission standards.

(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2016-47, § 1, eff. 1-9-17).

SEC. 9-904. TAXICAB VEHICLE AND DRIVER'S PERMITS REQUIRED.

It shall be unlawful to operate or cause to be operated any taxicab, regardless of whether such operation extends beyond the boundary limits of the city, without a valid taxicab permit first having been obtained authorizing such operation, and a valid driver's permit having been obtained for the driver, provided that no taxicab or driver's permit shall be required for a taxicab which is lawfully transporting a passenger from a point outside this city to a destination within this city, or which is en route from a point outside this city to a destination outside this city; provided that no driver of a taxicab without such taxicab permit and driver's permit shall solicit or accept a passenger or passengers from within this city for transportation to any destination whatsoever.

(a) The act or omission of any permittee's and/or owner's officer, agent, employee or independent contractor, or of any driver whose services are engaged by any of the above, is for all purposes the act or omission of the respective permittee and/or owner operating the transportation services regulated by this chapter.

(b) The city may levy service charges, fees, or assessments in an amount sufficient to pay for the costs of carrying out an ordinance or resolution adopted in regard to taxicab transportation services pursuant to this section.

(c) Nothing in this section prohibits the city from adopting additional requirements for a taxicab to operate in its jurisdiction.

(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-905. MEDICAL TRANSPORTATION EXEMPTED.

This article shall not apply to the transportation of the handicapped persons or disabled persons in specially equipped vehicles, which vehicles cannot ordinarily be used for the transportation of taxicab patrons. Persons operating a service claiming such an exemption shall transport only handicapped persons and their attendants.

(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-906. APPLICATION FOR TAXICAB VEHICLE PERMIT AND AIRPORT TAXICAB VEHICLE OPERATIONS PERMIT.

Any person desiring to secure a taxicab permit with or without airport taxicab operations permit privileges shall submit an application therefor to the city manager. The application shall be in a form approved by the city manager and shall include the following:

(a) Ownership and form of business organization:

(1) If the owner is an individual, the owner's full name, home address, home and business telephone number and date of birth (which shall be at least eighteen years prior to the date of application), or

(2) If the owner is a corporation, partnership or other legal entity, the names, home addresses, telephone numbers and date of birth (which must be at least eighteen years before the date of application) for the corporation's or entity's officers, directors, general, managing or operating partners, registered agents, and each person vested with authority to manage or direct the affairs of the legal entity or to bind the legal entity in dealings with third parties; the corporation's, partnership's or entity's true legal name, fictitious business statement(s) (if any), state of incorporation, articles of organization, or partnership registration (if any), business address and telephone and facsimile numbers and City of Fresno's business license number, and any other information that the city manager may reasonably require. The city manager may request copies of the entity's governing documents.

(3) For each person with a ten (10) percent or greater financial interest in the business which operates the taxicab, fingerprinting by the police department and/or Department of Justice personnel, submission of three recent dated portrait photographs, one to be attached to the application and two for the use of the special investigations section of the police department, and a list, signed under penalty of perjury, of each conviction of such person and whether such

conviction was by verdict, plea of guilty, or plea of nolo contendere. The list shall, for each such conviction, set forth the date of arrest, the offense charged, and the offense of which the person was convicted. A person who acquires a ten (10) percent or greater financial interest in the business which operates the taxicab during the life of the permit issued pursuant to this chapter shall immediately so notify the city manager and comply with this subsection. Any holder of a valid taxicab driver permit issued pursuant to this article shall be exempt from the requirements of this subsection;

(b) The number of permits desired and a list of vehicles to be used as taxicabs, including a full description of each vehicle, the taxicab vehicle number assigned by any regulatory agency, the make, model, model year, vehicle identification number, California State vehicle license plate number, and any other vehicle information required by rule or regulation promulgated under this chapter; provided, that the full description of new vehicles may be submitted within thirty days of the date of issuance of a permit hereunder;

(c) A full description of the location and operation of the applicant's place of business, including any required two-way communications system;

(d) The date upon which the applicant desires the permit to be issued;

(e) Whether or not the applicant is applying for airport taxicab operations permit privileges;

(f) Proof of liability insurance policy as required by this article;

(g) A rate schedule setting forth all rates for taxi service and the methodology for computing these rates, consistent with city's then prevailing Master Fee Schedule. A written amended schedule of rates to be charged for the hire of the taxicab may be filed with the city manager; provided, however, that a rate schedule may be amended no more frequently than once every three months;

(h) A declaration that all vehicles are mechanically sound and contain properly operating taxi meters;

(i) Such other and further information as the city manager may require;

(j) An annual nonprorateable, nonrefundable permit fee including any applicable vehicle inspection or re-inspection fee, as established by resolution of the city council;

(k) The application shall be under penalty of perjury, and shall not be accepted unless it is clearly filled out in full with all required information and is accompanied by the application fees designated in the Master Fee Resolution for each permit requested.

(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2016-47, § 2, eff. 1-9-17).

SEC. 9-907. ISSUANCE/RENEWAL OF TAXICAB VEHICLE PERMIT AND AIRPORT TAXICAB VEHICLE OPERATIONS PERMIT.

(a) The city manager, with the assistance of the police chief, shall cause an investigation to be made of the facts stated in the taxicab permit application, and shall, within sixty days determine the following:

(1) Whether the applicant has had a taxicab permit revoked for any cause within the last twenty-four months;

(2) Whether the application fee has been paid;

(3) Whether any fact exists that would be cause for revocation of a taxicab permit because of a violation of any of the terms of this article or rules promulgated pursuant thereto;

(4) Whether any statement made in the application is false;

(5) Whether issuance is in furtherance of the public convenience and necessity;

(6) Whether the applicant, including all persons doing business under fictitious names as members of partnerships, or as officers of corporations or associations, has been convicted of a crime or other offense involving moral turpitude including whether subject to any sex offender registration requirement, or a conviction of use, possession or sale of a controlled substance. However, no person shall be denied a permit solely on the basis that he or she has been convicted of a felony if he or she has obtained a certificate of rehabilitation under State Penal Code Section 4852.01, et seq., or that he or she has been convicted of a misdemeanor if he or she has met all applicable requirements of the criteria of rehabilitation developed to evaluate the rehabilitation of a person when considering the denial of a license under State Penal Code Section 4852.01(a);

(7) Whether each vehicle and related equipment proposed for use/used as a taxicab has been inspected and approved by an approved automotive repair facility in accordance with federal and state requirements, this article and all rules and regulations adopted from time to time by city manager. Such inspection shall include without limitation the mileage, engine, gears, transmission, brake system, lighting system, seat belts, tires and wheels, and along with any other items specified by the city manager.

(b) If the city manager makes a finding unfavorable to the applicant, with respect to any of the above factors, the city manager shall deny issuance of the permit and shall give the applicant prompt written notice of such finding and decision. The notice shall include a statement of the specific reasons for denial, including any complaints received against any applicant presently holding a permit. An applicant denied issuance of a taxicab driver's permit under this section may appeal the city manager's decision pursuant to section 9-930 of this article.

(c) Should the city manager's report conclude that the applicant meets the requirements of this article, the city manager shall issue such permit or permits. Each permit shall be numbered and shall state the name and address of the permittee and the date of issuance. One permit shall be issued for each taxicab. Any fees deposited by unsuccessful applicants shall be refunded, less any amount designated in the Master Fee Resolution to be retained to defray the cost of application and investigation processing.

(d) The city manager may impose such terms, conditions or restrictions on the taxicab permit as he/she deems necessary to provide adequate and dependable service to the public and to protect the use of public streets and facilities.

(e) Upon any change in ownership of a taxicab company, the new owner shall submit an application for and be issued a taxicab permit in the manner provided in this article.

(f) Where the city manager has grounds pursuant to this article, and where the city manager documents that, for a period of at least sixty (60) consecutive days a permitted taxicab is not legally operated as a taxicab, the permit(s) issued for such taxicab shall be subject to suspension and revocation in the manner provided by this article.

(g) Upon permit issuance and in addition to the inspections otherwise specified in this article, the city manager in his/her sole discretion, shall have the authority to require additional permit inspections including of taximeters, lamps, brakes, and emission control, and if it is found that the permittee is operating in violation of this article and/or the State Vehicle Code, the city manager shall, in addition to rights/remedies available hereunder and in accordance with the provisions of the Vehicle Code Section 24004, suspend the taxicab permit and prohibit the use of such taxicab until such time as it has been brought into compliance with the State Vehicle Code.

(h) All vehicles and operation thereof which are subject to The Americans with Disabilities Act, (ADA), shall comply with the applicable provisions of said Act.
(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2016-47, § 3, eff. 1-9-17).

SEC. 9-908. POSTING REQUIREMENTS.

(a) There shall be displayed in the taxicab passenger compartment in full view of any passenger:

(1) A copy of a valid permit issued pursuant to this chapter;

(2) A rate schedule that is consistent with the requirements of this article; and

(3) The register display of the taximeter;

(4) Complaint hotline phone number(s).

(b) There shall be displayed on each exterior side of the taxicab in full view of prospective passengers:

(1) In letters not less than two inches in height, the business name and telephone number of the taxicab vehicular permittee; and

(2) A rate schedule in the following format:

FIRST MILE: (fee) *

ADDITIONAL MILES: (fee/miles) *

* subject to time clock

(c) All letters and numbers in the first two lines of the above format shall be not less than one and one-half inches in height. The third line of the above format shall be in letters not less than three-quarters of an inch in height. The rate schedule shall be consistent with the requirements of this article.

(d) In letters not less than one and one-half inches in height and adjacent to the schedule required by subsection (b) above, any additional types of fees to be charged and the amount of such fees, as indicated on the rate schedule filed/amended pursuant to this article.

(e) Nothing in this section shall preclude the display on the taxicab exterior fees calculated on a different basis than required above; provided, however, that such display must be located below the information required by this section.

(f) There shall be displayed in the left lower rear window of each taxicab a City issued current and valid taxicab registration sticker, which shall be plainly visible from the rear of the vehicle. The sticker shall be applied to the window in such a manner that it may not be easily transferred to another vehicle. Failure to properly display the registration sticker shall constitute prima fascia evidence of the failure of the taxicab to have a valid taxicab permit. Any violation of this section shall be an infraction, with a fine not to exceed fifty dollars ($50.00). Taxicab operators shall have ninety (90) days from the effective date of this amended section to obtain and display the registration sticker as required in this section.
(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2013-7, § 1, 4-11-13).

SEC. 9-909. RADIO DISPATCH.

Every taxicab shall be equipped with any required two-way communications system.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-910. ILLUMINATED TOP LIGHT.

A top light containing light or lights shall be affixed to the roof of every taxicab and shall be illuminated in non-daylight hours when the taxicab is available for hire. The word "taxicab," "taxi," "cab" or the business name of the taxicab owner or other words identifying the vehicle as a taxicab shall be visible on the top light.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-911. APPLICATION FOR TAXICAB DRIVER'S PERMIT.

Any person desiring to secure a taxicab driver's permit shall submit an application therefor to the city manager. The application shall be in a form approved by the city manager and shall include the following:

(a) The applicant's name, home address, business address, and telephone numbers;

(b) The applicant's age and place of birth;

(c) The date upon which the applicant wishes the permit to be issued;

(d) Identification, including the number, of any previous driver's permit issued to the applicant;

(e) A statement that the applicant has been fingerprinted by the police department and/or Department of Justice Personnel;

(f) Submission of four recent dated portrait photographs, two to be attached to the application, one to be attached to the driver permit if issued, and one for the use of the special investigation section of the police department;

(g) A report of a physical examination meeting Department of Transportation standards completed within the last twelve (12) months, by a doctor of medicine, showing the applicant to be in a proper physical condition to operate a taxicab safely;

(h) A statement of the applicant's criminal convictions including any related sex offender registration requirements, whether such conviction was by verdict, plea of guilty, or plea of nolo contendere, for each such conviction, set forth the date of arrest, the offense charged, and the offense of which applicant was convicted, excluding parking violations;

(i) Type, number, and description of California driver's licenses held by the applicant and date(s) of expiration;

(j) A declaration that the applicant possesses proficient knowledge of traffic laws of the City of Fresno and of the State of California; proficient knowledge of the streets of the City of Fresno and ability to properly and safely operate a taxicab; and ability to communicate sufficiently in basic English with the general population;

(k) A declaration signed by a taxicab employer that the applicant is employed by or has an offer of employment by that employer to operate a taxicab, or a declaration that the applicant is a self-employed independent driver;

(l) A declaration by a taxicab employer for an applicant who is employed by or has an offer of employment with the employer, or by applicant if applicant is a self-employed independent driver, that applicant has been tested for controlled substances (and alcohol for permit renewal) in accordance with Government Code Section 53075.5 and the results thereof are negative;

(m) All applicants shall take and pass with negative results a controlled substance and/or alcohol test in accordance with Government Code Section 53075.5 as it may be amended or renumbered. Such test shall be taken no more than thirty (30) days preceding the date the application is filed for a new permit or renewal of an expired permit. In the event that an applicant or permittee takes a controlled substance and/or alcohol test with positive results, the employing taxicab operator shall report

such results to the city. In the event that a self-employed independent driver takes a controlled substance and/or alcohol test with positive results, the city shall report such results to any taxicab leasing/licensing entity;

(n) If applicant is a self-employed independent driver, test results from the controlled substance (and alcohol for permit renewal) test shall be reported to the city and are to be made a part of the application;

(o) The name of the taxicab business which does or will employ the applicant, or if applicant is a self-employed independent, the name of the taxicab business under which the applicant will operate;

(p) A statement of whether the applicant's state driver license has ever been revoked or suspended and, if so, the reason(s) for such revocation or suspension;

(q) Such other information as may be required by the city manager to further the purpose of this chapter;

(r) An annual nonprorateable, nonrefundable permit fee, as established by resolution of the city council;

(s) The application shall be under penalty of perjury, and shall not be accepted unless it is clearly filled out in full with all required information and is accompanied by the nonrefundable permit fee designated in the Master Fee Resolution.

(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2016-47, § 4, eff. 1-9-17).

SEC. 9-912. ISSUANCE/RENEWAL OF TAXICAB DRIVER'S PERMIT.

(a) The city manager, with the assistance of the police chief, shall cause an investigation to be made of the facts stated in the application and shall, within thirty days, determine the following:

(1) Whether the applicant has had a taxicab driver's permit revoked for any cause within the last twenty-four months, has ever had a taxicab driver's permit revoked for a cause involving reckless driving or drunkenness, or has had an application for a taxicab driver's permit denied within the last six months;

(2) Whether any statement made in the application is false;

(3) Whether the taxicab driver's permit has not been paid;

(4) Whether the applicant has been convicted of a crime involving moral turpitude including any sex offender registration requirements, or a conviction of use, possession or sale of a controlled substance, however, no person shall be denied a permit solely on the basis that he or she has been convicted of a felony if he or she has obtained a certificate of rehabilitation under State Penal Code Section 4852.01, et seq., or that he or she has been convicted of a misdemeanor if he or she has met all applicable requirements of the criteria of rehabilitation developed to evaluate the rehabilitation of a person when considering the denial of a license under State Penal Code Section 4852.01(a);

(5) Whether any fact exists that would be cause for suspension or revocation of a taxicab driver's permit because of a violation of any of the terms of this article or rules promulgated pursuant thereto;

(6) Whether the applicant possesses a California driver's license valid to allow operation of a public taxicab;

(7) Whether the applicant has been fingerprinted by the police department and/or Department of Justice Personnel, and has submitted four recent dated portrait photographs, two to be attached to the application, one to be attached to the driver permit if issued, and one for the use of the special investigation section of the police department;

(8) Whether the applicant has presented proof of a physical examination within the last twelve (12) months showing the applicant to be in a proper physical condition to operate a taxicab;

(9) Whether the applicant has tested negative for controlled substances, or for renewal, controlled substances and alcohol, in accordance with Government Code Section 53075.5;

(10) Whether any ground for permit denial or revocation, as specified in this article exists.

(b) The city manager may deny issuance/renewal of a permit in the event he makes a finding adverse to the applicant with respect to any of the above factors including the following grounds:

(1) Failure to submit a complete application;

(2) Failure to submit fingerprinting and photographs;

(3) The applicant knowingly made a false statement of fact required to be revealed in the permit application;

(4) The applicant (i) has been convicted of a crime, and the time for appeal has elapsed, or when an order granting parole or probation is made suspending the imposition of sentence, irrespective of the entry of a subsequent order under Penal Code Section 1203.4, or (ii) has done any act involving dishonesty, fraud or deceit with intent to substantially benefit himself or herself, or another, or substantially injure another, or (iii) has a physical or mental disability or incapacity, or takes medication, uses alcohol or any controlled substance as defined in the State Health and Safety Code; Provided, however, that the permit shall be denied upon any of the grounds specified in this subsection 4 of this section only if, in the opinion of the city manager, the crime, act, disability, incapacity or impairment from a substance consumed is substantially related to the qualifications, functions or duties of a taxicab driver. However, no person shall be denied a permit solely on the basis that he or she has been convicted of a felony if he or she has obtained a certificate of rehabilitation under State Penal Code Section 4852.01, et seq., or that he or she has been convicted

of a misdemeanor if he or she has met all applicable requirements of the criteria of rehabilitation developed to evaluate the rehabilitation of a person when considering the denial of a license under State Penal Code Section 4852.01(a);

(5) If applicant refuses or fails to submit to a controlled substance and/or alcohol test required by Government Code Section 53075.5;

(6) If applicant tests positive for any controlled substance or alcohol when tested for controlled substances and/or alcohol in accordance with Government Code Section 53075.5;

(7) Public convenience and necessity do not require the proposed service;

(8) Failure to pay application, permit and related fees; or

(9) Failure to submit proof of current DOT physical examination.

(c) If a permit is denied, the city manager shall give the applicant prompt written notice of such decision. The notice shall include a statement of the specific reasons for denial including any complaints received against any applicant currently holding a permit. An applicant denied issuance of a taxicab driver's permit under this section may appeal the city manager's decision pursuant to section 6-930 of this article.

(d) If the city manager concludes that the applicant meets the requirements of this article, the city manager shall issue the taxicab driver's permit. Any taxicab driver's permit issued/renewed shall be subject to such terms, conditions or restrictions on the taxicab driver permit as the city manager deems necessary to provide adequate and dependable service to the public and to protect the use of public streets and facilities, including without limitation the following conditions and requirements:

(1) The city manager may, upon reasonable cause, require any taxicab driver permittee to take a controlled substance and/or alcohol test in accordance with Government Code Section 53075.5. Such test shall be taken by driver within five days (5) after city manager gives notice of the requirement. Notice shall be given to permittee, and to permittee's employer if permittee is not self-employed. Notice shall be deemed effective upon depositing said notice in the U.S. mail first class postage prepaid addressed to the permittee and permittee's employer, if applicable, at the last address on record with the city manager. Failure to take the test within the time specified shall result in automatic suspension of the permittee's taxicab driver permit and shall be grounds for revocation of the permit.

(2) The applicant's photograph shall be permanently attached to the taxicab driver's permit. The taxicab driver's permit shall be posted in a place conspicuous from the passenger's compartment of the taxicab.

(3) All employers shall maintain, and all drivers shall comply with a mandatory controlled substance and alcohol testing certification program. The program shall include, but need not be limited to, all of the following requirements:

A. Drivers shall test negative for each of the controlled substances specified in Part 40 (commencing with Section 40.1) of Title 49 of the Code of Federal

Regulations. Drivers shall test negative for these controlled substances and for alcohol as a condition of permit issuance/renewal and at such other times as the city manager shall designate. As used in this section, a negative test for alcohol means an alcohol screening test showing a breath alcohol concentration of less than 0.02 percent.

B. Procedures shall be substantially as in Part 40 (commencing with Section 40.1) of Title 49 of the Code of Federal Regulations, except that the driver shall show a valid California driver's license at the time and place of testing, and except as provided otherwise in this section. Requirements for rehabilitation and for return-to-duty and follow up testing and other requirements, except as provided otherwise in this section, shall be substantially as in Part 382 (commencing with Section 382.101) of Title 49 of the Code of Federal Regulations.

C. A test in one jurisdiction shall be accepted as meeting the same requirement in any other jurisdiction. Any negative test result shall be accepted for one year as meeting a requirement for periodic permit renewal testing or any other periodic testing in that jurisdiction or any other jurisdiction, if the driver has not tested positive subsequent to a negative result. However, an earlier negative result shall not be accepted as meeting the pre-employment testing requirement for any subsequent employment, or any testing requirements under the program other than periodic testing.

D. In the case of a self-employed independent driver, the test results shall be reported directly to the city, which shall notify the taxicab leasing company of record, if any, of positive results. In all other cases, the results shall be reported directly to the employing transportation operator, who shall be required to notify the city of positive results.

E. All test results are confidential and shall not be released without the consent of the driver, except as authorized or required by law.

F. Self-employed independent drivers shall be responsible for compliance with, and shall pay all costs of, this program with regard to themselves. Employing transportation operators shall be responsible for compliance with, and shall pay all costs of, this program with respect to their employees and potential employees, except that an operator may require employees who test positive to pay the costs of rehabilitation and of return-to-duty and follow up testing.

(4) Upon the request of a driver applying for a permit, the city shall give the driver a list of the consortia certified pursuant to Part 382 (commencing with Section 382.101) of Title 49 of the Code of Federal Regulations that the city knows offer tests in or near the jurisdiction.

(5) No evidence derived from a positive test result pursuant to the program shall be admissible in a criminal prosecution concerning unlawful possession, sale or distribution of controlled substances.

(e) For purposes of this section, "employment" includes self-employment as an independent driver.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-913. UNLAWFUL ACTIVITIES.

(a) It is unlawful for any person to operate a taxicab for compensation with knowledge that the taxicab, driver, or taximeter is not authorized by a valid permit or that grounds for revocation or suspension of said permit pursuant to this article exist.

(b) It is unlawful for any taxicab driver or person in the business of operating a taxicab for compensation to do any of the following:

(1) Charge an additional type of fee or higher fee other than those fees posted, as required by this article, provided it is lawful to charge a fee less than those fees posted;

(2) Transport a greater number of passengers than the rated seat capacity of the taxicab;

(3) Fail to answer all calls received in the order of receipt;

(4) Leave a taxicab unattended in a taxicab zone;

(5) Refuse, upon request, to give a passenger a written receipt showing the fare due, and the miles and minutes employed;

(6) For the primary purpose of obtaining higher fees, drive passengers via indirect or circuitous routes;

(7) Refuse to provide service on the basis of the short length of the prospective ride;

(8) Fail to display a valid permit, issued pursuant to this article, in the taxicab interior in full view of any passenger;

(9) Pick up additional passengers without prior consent of the passenger(s) already in the taxicab;

(10) Solicit or carry passengers for compensation in a taxicab not posted in compliance with this article, or not equipped with an operable accurate taximeter;

(11) Knowingly fail to report to the taxicab vehicle permittee or authorized agent thereof all property of value left by a passenger in the taxicab within twenty-four (24) hours of discovery of such property;

(12) Operate the taxicab for hire without engaging the taxicab meter in the manner prescribed by state law;

(13) Refuse to drive to a destination different from that originally stated;

(14) Refuse, upon request, to allow a passenger to disembark at a location different from the originally stated destination;

(15) Operate a taxicab for which insurance coverage as required by section 916 of this article 9 of this chapter 6 is not in effect; or

(16) Operate a taxicab with an invalid, suspended or revoked state driver's license.

(c) Except where credit is extended, any person who shall willfully or fraudulently fail or refuse to pay, at the end of the trip, or the termination or discharge of service, the legal fare for a taxicab that he has hired, shall be guilty of a misdemeanor.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-914. TAXICAB DRIVER TRAINING, TESTING, AND INSPECTIONS.

(a) The city manager may from time to time and by rule/regulation promulgated and enforceable hereunder, require driver training and testing through the city or authorized by the city.

(b) The city, by and through its Utility Billing and Collection Department, may perform random inspections on taxicabs and drivers to determine compliance with this article and with any rules and regulations promulgated by the city manager pursuant to the authority granted in this article. Inspections may be performed in the field, or by sending mailed notice to a permit holder. There shall be no fee for the inspection, however, fines or penalties may be assessed for any violation of this ordinance, any state law, or of any other rule or regulation.
(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2016-47, § 5, eff. 1-9-17).

SEC. 9-915. RATES OF FARE.

(a) The rates of fare to be charged within the City of Fresno to the public for use of taxicabs shall be the same for all taxicabs operated by the permittee, shall be consistent with city Master Fee Schedule requirements, and shall be based upon time and distance traveled.

(b) The Council, by resolution, may establish rates for mileage, drop charges, and waiting time applicable to all taxicabs. This rate shall increase due to changes in the Consumer Price Index.

(c) Consumers shall be notified of the drop charge and mileage rate in effect at the time the services is contracted and before the initiation of the trip.

(d) Rates may not be based on the geographic location or neighborhood of the drop off or pick up site, or a consumer's race, sex, religion, age, national origin, caste, indigeneity, or disability.

(e) Permittees may voluntarily offer or negotiate a rate lower than the posted rate.
(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2016-47, § 6, eff. 1-9-17; Amd. Ord. 2023-031, § 4, eff. 11-3-23).

SEC. 9-916. LIABILITY INSURANCE.

(a) No taxicab shall be driven or operated in the city unless the permittee thereof obtains and maintains, at no cost to the city, a motor vehicle liability insurance policy, with coverage limits not less than as prescribed in subsection (b) below, with an insurance company either (i) admitted by the California Insurance Commissioner to do business in the State of California and rated not less than "A- VII" in Best's Insurance Rating Guide, or (ii) authorized by the risk manager.

(b) Such policy shall insure permittee, owner and driver against liability for injury to or death of any person, or damage to property, arising or alleged to have arisen directly or indirectly out of the ownership, maintenance or use of the permitted taxicab. The minimum limits of insurance required hereunder are $100,000.00 for injury to or death of any one person in any one accident, $300,000.00 for injury to or death of more than one person in any one accident, and $100,000.00 for property damage in any one accident.

(c) Such policy shall be endorsed to provide that the coverage shall not be cancelled, non-renewed, reduced in coverage or in limits except after thirty (30) calendar day written notice by certified mail, return receipt requested, has been given to city. Upon issuance by the insurer, broker, or agent of a notice of cancellation, non-renewal, or reduction in coverage or in limits, permittee shall furnish city with a new certificate and applicable endorsements for such policy. In the event the policy is due to expire during the permit period, the permittee shall provide a new certificate, and applicable endorsements, evidencing renewal of such policy not less than fifteen (15) calendar days prior to the expiration date of the expiring policy.

(d) Such policy shall be endorsed to provide that the city, its officers, officials, employees, agents and volunteers are named as additional insureds and that permittee's insurance shall be primary and no contribution shall be required of city, its officers, officials, employees, agents and volunteers.

(e) Permittee shall furnish city with the certificate of insurance and applicable endorsements for all required insurance prior to issuance of the permit.

(f) Permittee shall furnish city with copies of the actual policy upon the request of risk manager at any time during the life of the permit or any extension, and this requirement shall survive revocation, suspension or expiration of the permit.

(g) Failure to maintain the required insurance for any period of time is a violation of this chapter and shall be sufficient grounds for suspension, revocation of non-renewal of a permit. Upon any such suspension and upon direction of the city manager, said permittee shall pay in advance a full year's liability insurance coverage required by this section for all permitted vehicles.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-917. GENERAL PROVISIONS REGARDING TAXICAB VEHICLE AND DRIVER PERMITS.

(a) The permit is the property of the city.

(b) No vested right or property interest of any type is acquired by any permittee under this article.

(c) All permits issued under this article are enforceable and subject to suspension and revocation in accordance with the provisions of this article, and are to be exercised only in conformance with any and all rules and regulations promulgated and enforceable hereunder.

(d) All permits issued under this article are personal to the permittee. A permittee shall not permit any right or privileges thereunder to be exercised by another, nor shall any permit or any interest therein or any right or privilege there under be sold, transferred, leased, assigned or otherwise disposed of except as may be provided in this article. A transfer in violation of this subsection shall be ineffective and shall constitute permittee's violation of this article.

(e) Upon the death of any taxicab permittee, the permit may be exercised by the executor or administrator of the deceased permittee's estate during the period of estate administration. The period shall not exceed one year from the permittee's death.

(1) A deceased permittee's surviving heir(s) who inherits the permittee's entire taxicab company may apply for the taxicab permit(s) held by decedent permittee.

(2) A permittee may sell his taxicab company, or one or more taxicabs, to another current permittee, who may then apply for the taxicab permits held by the selling company.

(f) A permit issued under this article is an annual permit which expires on the following thirtieth day of June, provided, that whenever a taxicab vehicle or driver's permit has been applied for and issued within a period of sixty (60) days before June thirtieth, it shall be valid when issued and may be issued for the next ensuing year. Application for renewal must be received by the city manager before expiration of the permit and will require permittee attest to that all information on file remains current and correct and submission of current insurance certificates and other required certifications and declarations, as applicable.

(g) The renewal fee shall be the annual amount designated in the Master Fee Resolution and shall be paid at such times designated in the Master Fee Resolution. If any permit is not exercised or is suspended or rescinded, the fee shall not be refunded. The fee required is a permit fee and shall not be deemed to be in lieu of a business tax as required by the provisions of this Code. Prior to the payment of the annual permit renewal fee for a taxicab permit the permittee must submit a valid State of California vehicle registration card.

(h) Late penalty on renewal shall be charged on all applications for renewal received later than ten (10) working days after the expiration date. The amount of such late penalty shall be fixed annually in the Master Fee Resolution.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-918. CONSUMER COMPLAINTS.

(a) The city manager, with the assistance of the controller and the directors of transportation and aviation, from time to time and by rule/regulation promulgated and enforceable hereunder may establish a consumer complaint hotline telephone number and complaint process.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-919. RULES AND REGULATIONS.

(a) The city manager, with the assistance of the controller and the directors of transportation and aviation, may make rules and regulations enforceable hereunder, which are not inconsistent with the provisions of this article and which may be necessary or desirable to aid in the administration or enforcement of the provisions of this article, including all necessary policies and procedures for the issuance of the permits, administration and enforcement of this article, collection of fees and bonds and/or indemnities, or proof(s) of insurance. A copy of the rules and regulations then in effect shall be provided to an applicant upon issuance of a permit or renewal of a permit.

(b) The rules and regulations authorized under subsection (a) shall not require any taxicab to be removed from service or refused a permit or permit renewal solely for the reason the taxicab is any model year of age less than ten (10).
(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2013-7, § 2, eff. 4-11-13; Am. Ord. 2016-47, § 7, eff. 1-9-17).

SEC. 9-920. ENFORCEMENT AUTHORITY.

The city manager shall have the authority to enforce the provisions of this article and, when vested with criminal citation authority, to arrest any person without a warrant for a violation of this article when committed in his/her presence, to impound any taxicab vehicle(s), and to issue a notice to appear pursuant to Penal Code Section 836.5. This authority shall be in addition to the authority granted to police officers under this Code.

(a) Each day on which a taxicab vehicle is operated in violation of any provision of this chapter shall constitute a separate violation.

(b) Each day on which a taxicab driver operates a taxicab in violation of any provision of this chapter shall constitute a separate violation.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-921. PENALTIES, SUSPENSION AND REVOCATION.

(a) For any violation of this article including rules and regulations promulgated and enforceable hereunder code enforcement proceedings under Section 301 et seq. of Chapter 1 of this code shall apply, including penalties approved by resolution of the city council, as modified from time to time.

(b) In addition to the penalties above, subject to emergency suspension procedures in section 9-922 below and variously through rules and regulations promulgated hereunder, the city manager may suspend or revoke a permit issued under this article upon written notice to affected permittee(s) specifying any of the following grounds for the proposed action and a date and place for city manager's hearing thereon:

(1) Any of the conditions thereof are being violated;

(2) Suspension or revocation is warranted pursuant to any points system promulgated by rule or regulation hereunder;

(3) The permit is being exercised in violation of this Code, an ordinance, statute, regulation, permit or license issued by a regulatory agency other than the city;

(4) The fact(s) which supported the determination of the city manager that grounds existed for the issuance of said permit no longer exists;

(5) The permit is being used for a purpose detrimental to public morals, peace, or order, or is being used for a purpose contrary to that for which the permit was issued;

(6) The application contained falsehoods;

(7) Any fact or condition exists which, if it had been known to exist at the time of the original application for such permit, reasonably would have warranted the city manager in refusing originally to issue the permit;

(8) The licensee fails to pay a monetary penalty imposed under this chapter within thirty (30) days after an unappealed notice of violation or final decision or order imposing such monetary penalty is issued;

(9) The taxicab or its equipment is in such condition that its operation violates the State Vehicle Code;

(10) Transfer or sale of the permit to a vehicle or taximeter other than that identified in the permit application;

(11) Failure of the permittee to notify the city of cancellation, expiration, or change of insurance coverage as required by this article;

(12) Operation of a taxicab for which the insurance coverage required by this article is not in effect;

(13) Submitting a false controlled substance and/or alcohol test declaration or employment declaration. Such suspension or revocation may apply to all taxicab permits in the name of the person, persons or business in whose behalf the declaration is submitted;

(14) Allowing an employee without a valid taxicab driver permit to operate a taxicab vehicle for compensation. Such suspension or revocation may apply to all permits in the name of the person, persons or business who allow an employee without a valid taxicab driver permit to operate a taxicab vehicle for compensation;

(15) If permittee or permittee's employer submits a false controlled substance and/or alcohol test declaration or employment declaration; or

(16) Operation of a taxicab in an unsafe manner or any conduct which places any passenger, motorist or pedestrian at unreasonable or unnecessary risk.

(c) Upon written notice by an insurer or verification of cancellation, expiration or change in insurance coverage resulting in noncompliance with this article, a permit issued pursuant to this article shall be automatically suspended effective upon the effective date of the cancellation, expiration, or change in coverage. The suspension shall continue until the

earlier of the required insurance coverage being reinstated and the city receives written notice from the insurer indicating compliance with the requirements of this article, or permit expiration.

(d) Any taxicab driver permit suspended or revoked for positive results of a controlled substance and/or alcohol test, shall not be reinstated, nor shall a new permit be issued, until the requirements for rehabilitation and return-to-duty in accordance with Government Code Section 53075.5 are satisfied.

(e) Except in the case of a section 9-922 regarding emergency suspension, permit suspension or revocation shall become effective only following city manager's hearing/opportunity therefor. The hearing shall be informal and shall provide permittee(s) noticed pursuant to this section with the opportunity to present and examine witnesses and documentary evidence and to be represented by counsel. At the hearing any issuance of a written notice of cancellation, expiration or change in coverage by an insurance company shall be conclusive proof at the hearing of the change in the policy so indicated. Any unexcused failure by Permittee(s) to appear for hearing shall be deemed acquiescence in the proposed action. The city manager, within fifteen (15) days following the hearing shall mail or otherwise furnish to persons noticed pursuant to this section a written decision stating the grounds for the decision. The decision of the city manager may be appealed pursuant to section 9-930 of this article 9 of this chapter 9, provided such an appeal shall not stay the effectiveness of the city manager's decision.

(f) Any permit suspension shall continue in effect until the earlier of (i) satisfaction of the requirements specified to the end the suspension period, or (ii) expiration of any period of suspension as may be specified therein. The permit holder may not exercise the permit at any time during the suspension period unless expressly allowed under this Code.

(g) A suspended or revoked permit may not be renewed.

(h) No person may allow a vehicle to provide taxicab services as defined in this article without a valid permit. Any violation of this section shall be an infraction, with a fine not to exceed one hundred dollars ($100.00). In addition to all other penalties and remedies listed in this article, more than one violation of this article may subject the vehicle to be immediately towed and impounded by order of a police officer.
(Added Ord. 2006-50, § 2, eff. 6-8-06; Am. Ord. 2013-7, § 3, eff. 4-11-13).

SEC. 9-922. EMERGENCY SUSPENSION.

(a) Notwithstanding section 9-921 of this article 9 of this chapter 9 and in addition thereto the city manager may issue an order for emergency suspension of a taxicab permit and/or a taxicab driver's permit for a period not exceeding fifteen (15) days without having conducted a hearing therefor, upon a determination that the continued use of the permit will cause immediate hazard to the public safety, health or welfare. Such an order shall also contain a notice of the hearing setting forth the date, time and place of the hearing.

(1) Within fifteen (15) days of the effective date of the order, the city manager shall hold a hearing for the affected permittee(s) to show cause why the license or permit should not be suspended or revoked. The city manager, within fifteen (15) days following the hearing shall mail or otherwise furnish to persons noticed pursuant to this section a written decision, stating the grounds for the decision.

(2) Any permit suspension by the city manager following hearing shall continue in effect until the earlier of (i) satisfaction of the requirements specified to the end the suspension period, or (ii) expiration of any period of suspension as may be specified therein.

(3) The decision of the city manager may be appealed pursuant to section 9-930 of this article 9 of this chapter 9, provided such an appeal shall not stay the effectiveness of the decision of the city manager. The permit holder may not exercise the permit at any time during the suspension period unless expressly allowed under this Code.

(b) A permit suspended on an emergency basis may not be renewed.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-923. BREACH OF DUTY NOT A WAIVER.

By permitting or overlooking any obligation of a taxicab permittee or driver, the city does not waive or bar its right to require prompt performance, when due, of all other such obligations.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-924. CITY HELD HARMLESS.

A permittee under this article shall, and by acceptance of his permit does, agree to indemnify, defend and hold the city, its officers, employees and agents free and harmless from any and all claims, costs, liability, damages or expenses, including costs of suit and fees, including attorneys' fees, arising out of or related to the permittee's acts, omissions and/or operations thereunder, except for that liability caused by the sole negligence of the city. The foregoing is not intended to and shall not be construed to limit any responsibility or liability to which the permittee may be subjected under other laws.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-925. CONTROL THROUGH CITY OFFICERS.

Subject to the continuing general control and discretion of the city manager, the administration and regulation of permits and permittees hereunder shall be jointly and severally within the power and duties of the city controller, the director of aviation, the director of transportation, the risk manager and the chief of police.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-926. PRESENT PERMITS CONTINUED.

This article shall not invalidate any taxicab permit extant upon the date of its effectiveness, and all such permits shall remain in full force and effect until expiration unless revoked or suspended.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-927. OTHER REMEDIES NOT PRECLUDED.

Any remedy provided under this article is cumulative to any other remedy provided in equity or at law. Nothing in this Code shall be deemed to limit the right of the city to bring a civil or criminal action against any person who violates this article; nor shall any conviction for such violation exempt any person from a civil action brought by the city or its authorized

collection agent(s). Any fees and penalties imposed under this article shall constitute a civil debt and liability owing to the city from the persons, firms or corporations using or chargeable for such services and shall be collectible in any manner provided by law.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-928. NON-LIABILITY OF CITY.

Nothing in this article shall be deemed to impose any liability upon the city or upon any of its officers or employees.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-929. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

SEC. 9-930. APPEALS.

Unless otherwise expressly provided by this Code, any person adversely and directly affected by any determination made or action taken by the city manager pursuant to the provisions of this article may file an administrative appeal pursuant to chapter 1, article 4 of this Code. If no appeal is filed within the time prescribed, the determination or action of the city manager shall be final.
(Added Ord. 2006-50, § 2, eff. 6-8-06).

ARTICLE 10 RENTAL CAR COMPANIES

Sec. 9-1001. Definitions.
Sec. 9-1002. Findings.
Sec. 9-1003. Non-Tenant Rental Car Business Permit.
Sec. 9-1004. Permitted Activities.
Sec. 9-1005. Prohibited Activities.
Sec. 9-1006. Denial of Permit.

SEC. 9-1001. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Airport" shall mean Fresno Air Terminal, a public airport operated by the city.

(c) "Airport Customer" shall mean any person who rents a vehicle from Permittee after being transported from the Airport in Permittee's courtesy vehicle, or who rents a designated rental vehicle from Permittee.

(d) "Applicable gross receipts" shall mean that portion of Permittee's income which is derived from the time and mileage charges paid by Permittee's Airport Customers for the rental of vehicles, whether by cash or credit, after any discounts, regardless of where the vehicle is delivered or returned.

(e) "Courtesy vehicle" shall mean any car, van or other motor vehicle driven by an employee of Permittee to transport Permittee's customers from or to the Airport, such vehicle to display Permittee's business signage.

(f) "Designated rental vehicle" shall mean a rental vehicle which is being delivered to Airport in order to fill a reservation for such rental vehicle, regardless of how far in advance such reservation was made.

(g) "Director" shall mean either the Transportation Director or the Airports Director of the city, or their respective designees.

(h) "Non-tenant rental car business" shall mean any business that rents vehicles to the public and does not have a rental car concession contract or lease with the city for the privilege of having offices on the Airport from which to conduct the rental car business.
(Added Ord. 91-69, § 2, eff. 7-26-91).

SEC. 9-1002. FINDINGS.

The Council finds:

(a) In order to retire city debts incurred for the construction of Airport facilities, pay for Airport equipment, protect the public, preserve order, provide for the public health, safety and welfare, enhance the welfare of the city, and govern the Airport, it is necessary to fix charges, fees and regulations for those persons and corporations who do not have leases or concession contracts with the city, including non-tenant rental car businesses, but who want the privilege of picking up and delivering passengers and supplying services at the Airport; and

(b) In establishing and fixing these charges, fees and regulations, the city has given due regard to the property and improvements used and to the expenses of operation to the city, and finds further that the charges and fees established and fixed herein are reasonable compensation from the users to the city for the use of Airport facilities; and

(c) Rental car businesses constitute a specific class of business operations on Airport property. (Added Ord. 91-69, § 2, eff. 7-26-91).

SEC. 9-1003. NON-TENANT RENTAL CAR BUSINESS PERMIT.

(a) Any non-tenant rental car business desiring access to the Airport for the purpose of conducting rental car business operations, either directly or indirectly, shall first obtain from the city a Non-tenant Rental Car Business Permit prior to conducting such business on Airport property and shall pay the fees for such permit as set forth in the Master Fee Resolution.

(b) Non-tenant Rental Car Business Permits shall be issued within sixty days after the application has been submitted to the city, provided the application is approved.

(c) The city may issue a Non-tenant Rental Car Business Permit only upon prepayment of the application fee set forth in the Master Fee Resolution and upon receipt of a signed and verified application from the non-tenant rental car business owner containing the following information, agreements and proof:

(1) The names, addresses and social security numbers or employer identification numbers of every person or corporation having an ownership interest in the business;

(2) For corporate owners, the number of shares of stock in the corporation, whether the shares are traded publicly or privately, the date and place of incorporation, whether the corporation is authorized to do business in California, and the names, titles, addresses, social security numbers, and number of shares held by each officer, director, and any person or entity holding ten percent or more of the outstanding stock of the corporation;

(3) Proof of comprehensive public liability and automobile insurance coverage in an amount not less than one million dollars ($1,000,000) for personal injury or death of any person or persons in any one accident or occurrence and for damages to property in any one accident or occurrence. In the policy providing such insurance coverage, the city, its officers,

employees and agents shall be named as additional insureds, and such policies shall contain a standard cross-liability endorsement, and a thirty-day written notice of cancellation endorsement in favor of the city;

(4) Proof of financial responsibility in the form of a cash bond, a corporate surety bond, or a letter of credit issued by a financial institution acceptable to the city, in an amount equal to the reasonably estimated annual fees due to the city, but not less than five thousand dollars ($5,000) assuring the faithful performance of all obligations under the Non-tenant Rental Car Business Permit and permit application; such estimate of annual fees shall initially be made by Permittee in the application for the Non-tenant Rental Car Business Permit;

(5) A written agreement to increase the amount of the cash bond, corporate surety bond, or letter of credit required under subdivision (4) of subsection (c) of this section, when reasonably required to do so by Director based on actual fees due to the city, which are in turn based on applicable gross receipts as required to be reported in subdivisions (10) and (11) of subsection (c) of this section;

(6) A written agreement to pay to the city for the duration of the Non-tenant Rental Car Business Permit the fees for such permit as set forth in the Master Fee Resolution;

(7) The names and job titles of local management personnel;

(8) A written agreement covenanting to obey and follow all applicable laws, standards and regulations promulgated by the Director or the city;

(9) Proof of possession of all valid business and motor vehicle permits required by local, state and federal laws and regulations;

(10) A written agreement to submit written proof to the city of all applicable gross receipts at the time payment is due, accompanied by a statement certified by an officer of the company attesting to the truth and accuracy of payments due the city;

(11) A written agreement to submit annual statements of all applicable gross receipts, said annual statements to be certified by a certified public accountant as being a complete, true, and accurate accounting of all applicable gross receipts for the annual period covered by the statement;

(12) A written agreement authorizing the city, its agents and employees, to audit all of the applicant's business records and accounts and to make said records and accounts available in the city when deemed necessary by the Director, upon reasonable notice;

(13) A written agreement that courtesy vehicles will stop or wait on Airport property only while in the process of waiting for, loading or unloading customers; drivers of vehicles, or company personnel who may accompany the driver, shall be prohibited from solicitation of business in any manner whatsoever upon the Airport; the operation of vehicles shall be strictly limited to the picking up or delivery of Airport Customers, or the delivery or picking up of designated rental vehicles;

(14) A written agreement to park only in the parking and pickup area designated for non-tenant rental car business vehicles;

(15) A written agreement to indemnify, defend and hold harmless the city, its officers, employees and agents from any and all claims whatsoever and proof of insurance for such contractual liability.

(d) No vested right or property interest of any type is acquired by a permit issued to any person under this article. (Added Ord. 91-69, § 2, eff. 7-26-91).

SEC. 9-1004. PERMITTED ACTIVITIES.

A Non-tenant Rental Car Business Permit shall authorize the business issued such permit to:

(a) Pick up and deliver Airport Customers at or to the Airport in a courtesy vehicle. No non-tenant rental car business shall operate more than two courtesy vehicles on Airport property at the same time provided both vehicles are needed to pick up or deliver Airport Customers at or to the Airport. Such businesses may have more than two vehicles on Airport property at the same time if a special need therefore is demonstrated to the Director and the Director grants written permission therefor to such business.

(b) Pick up and deliver designated rental vehicles at or to Fixed Base Operator or Corporate Aviation locations at Airport.

(c) Purchase, at commercial rates, advertising space and direct telephone access unit connection at the Airport from the Airport's designated advertising concessionaire. (Added Ord. 91-69, § 2, eff. 7-26-91).

SEC. 9-1005. PROHIBITED ACTIVITIES.

A Non-tenant Rental Car Business Permit shall not authorize the business issued such permit to rent motor vehicles on Airport property (other than as provided in subsection (b) of Section 9-1004), to have an office or station on Airport property, to park or operate rental cars on Airport property (other than as provided in subsection (b) of Section 9-1004) or to solicit business either directly or indirectly on Airport property (other than as provided in subsection (c) of Section 9-1004) and all these actions and activities are expressly prohibited. (Added Ord. 91-69, § 2, eff. 7-26-91).

SEC. 9-1006. DENIAL OF PERMIT.

(a) A Non-tenant Rental Car Business Permit may be denied or revoked by the Director for cause. "Cause" includes, but is not limited to, a breach of any of the provisions of this article, including a failure to make timely payments, violation of Airport or city ordinances, standards or regulations, violation of the laws of the federal government or the laws of any state, and any act or omission of the permittee which adversely affects Airport business operations or poses a danger to the public health, safety or welfare. "Cause" shall also include financial insolvency or instability, conviction of a crime or other offense involving moral turpitude, or a conviction

of use, possession or sale of a controlled substance. In addition, a Non-tenant Rental Car Business Permit may be denied or revoked when such action is necessary to protect the public health, safety or welfare, or to preserve the financial welfare of the city.

(b) An applicant for a permit whose application is denied shall be given written notice of the reasons for denial and shall have the right to a hearing before the Director or his designee and may thereafter appeal the Director's decision according to the procedure set forth in Chapter 1, Article 4 of this Code.

(c) The causes for revocation in this section shall be in addition to any provided in Section 9-107. The procedures to revoke shall be those in Section 9-107. (Added Ord. 91-69, § 2, eff. 7-26-91; Am. Ord. 98-65, §§ 5—7, eff. 10-1-98; Am. Ord. 2003-67, § 21, eff. 8-31-03).

ARTICLE 11 MOBILE VENDOR ORDINANCE

Sec. 9-1101. Reserved.
Sec. 9-1102. Definitions.
Sec. 9-1103. Prohibition.
Sec. 9-1104. Mobile Vendor Permit.
Sec. 9-1105. Issuance or Denial of Permit.
Sec. 9-1106. Rules and Regulations.
Sec. 9-1107. Requirements.
Sec. 9-1108. Ice Cream Truck Regulations.
Sec. 9-1109. Penalty.
Sec. 9-1110. Reserved.

SEC. 9-1101. RESERVED.

Editor's note—Ord. 2015-39, § 7, effective January 9, 2016, amended the Code by repealing § 9-1101 in its entirety. Former § 9-1101 was the title section of article 11, and derived from Ord. 2003-67, effective August 31, 2003.

SEC. 9-1102. DEFINITIONS.

"Mobile Vendor" shall mean any person that sells, or causes or allows another, whether as an employee or as an independent contractor leasing or renting equipment, to sell any food, drinks, or merchandise by means of a vehicle subject to licensing by the DMV, such as a trailer or food truck. Where one person employs another person to sell food, drinks or merchandise or one person leases or rents equipment or a vehicle to another person to allow them to sell food, drinks or merchandise, both individuals shall be considered Mobile Vendors. Mobile Vendor shall not mean any person operating under a concession agreement or other agreement with the city as a party to the agreement.
(Added Ord. 2003-67, § 29, eff. 8-31-03; Am. Ord. 2015-39, § 7, eff. 1-9-16; Am. Ord. 2018-24, § 1, eff. 6-11-18).

SEC. 9-1103. PROHIBITION.

No person shall operate as a mobile vendor in the city without holding a valid and subsisting mobile vendor permit and without complying with all provisions of this article and chapter and the Code, including obtaining any and/or all necessary business license(s) under Chapter 5. No person shall hire or allow others to use his or her equipment or vehicles, or products, for mobile vending in the city, unless that other person, whether as an employee, licensee, or independent contractor, holds a valid and subsisting mobile vendor permit and complies with all provisions of this article and chapter and the Code.
(Added Ord. 2003-67, § 29, eff. 8-31-03).

SEC. 9-1104. MOBILE VENDOR PERMIT.

Any person that wishes to operate as a mobile vendor within the city shall obtain a mobile vendor permit issued by the City Manager or his or her designee, comply with the provisions of Section 15-2741 of this code, sign an indemnification and hold harmless agreement as

approved by the City's Risk Manager and City Attorney, and pay the mobile vendor permit fee established in the Master Fee Schedule. No mobile vendor that intends to sell food or beverages in the city may be issued a mobile vendor permit without showing proof of obtaining all necessary County Health permits or certificates.
(Added Ord. 2003-67, § 29, eff. 8-31-03; Am. Ord. 2018-24, § 1, eff. 6-11-18).

SEC. 9-1105. ISSUANCE OR DENIAL OF PERMIT.

Upon providing a complete application which includes proof of zone clearance, County Health permit or certificate, signed indemnification and hold harmless agreement, and payment of business license tax, the City Manager, or his or her designee, shall issue a permit to the applicant or provide a written statement of denial, within five business days. Applications shall be processed in order of receipt. A decision to deny a permit shall be issued in writing with the basis for the denial. An applicant may appeal the decision to deny him or her a permit to the City Hearing Officer under Chapter 1, Article 4. If no appeal is filed in a timely manner, the decision of the City Manager shall be final.
(Added Ord. 2003-67, § 29, eff. 8-31-03; Am. Ord. 2018-24, § 1, eff. 6-11-18).

SEC. 9-1106. RULES AND REGULATIONS.

The City Manager may make rules and regulations which are not inconsistent with the provisions of this article and which may be necessary or desirable to aid in the administration or enforcement of the provisions of this article, including all necessary policies and procedures for the issuance of the mobile vendor permits, collection of the mobile vendor permit fees, or proof(s) of insurance.
(Added Ord. 2003-67, § 29, eff. 8-31-03; Am. Ord. 2018-24, § 1, eff. 6-11-18).

SEC. 9-1107. REQUIREMENTS.

See Chapter 15-2741 for requirements.
(Added Ord. 2003-67, § 29, eff. 8-31-03; Am. Ord. 2007-95, § 1, eff. 1-20-08; Am. Ord. 2015-39, § 7, eff. 1-9-16; Am. Ord. 2018-24, § 1, eff. 6-11-18).

SEC. 9-1108. ICE CREAM TRUCK REGULATIONS.

For purpose of this article, the term "ice cream truck" means a motor vehicle engaged in the curbside vending or sale of prepackaged frozen or refrigerated desserts, confections, or novelties commonly known as ice cream, or prepackaged candies, prepackaged snack foods, or soft drinks, primarily intended for the sale to children under twelve years of age. In addition to the other rules and conditions set forth in this Article, applications for a mobile vendor permit for an ice cream truck shall be subject to the following:

(a) Compliance with Vehicle Code Section 22456.

(b) Completion of an application for a background check, including but not limited to, a criminal background check, including submission of fingerprints for a state and federal criminal background check. A permit shall not be issued if the City Manager,

or his or her designee, finds that an applicant has been convicted of or pleaded nolo contendere or guilty within five years prior to the application to a misdemeanor or felony crime of moral turpitude or drug-related misdemeanor or felony crime.

(Added Ord. 2018-24, § 2, eff. 6-11-18).

Editor's note—Ord. 2018-24, § 2, effective June 11, 2018, amended the Code by repealing former § 9-1108 and adding a new § 9-1108. Former § 9-1108 pertained to vehicle impoundment, and derived from Ord. 2003-67, effective August 31, 2003.

SEC. 9-1109. PENALTY.

(a) The city may issue an administrative citation for any violation of this article pursuant to Section 1-308 of this code. The penalty for violation shall be set forth in the Master Fee Schedule.

(b) In addition, the City Attorney may institute a civil action to ensure compliance with this article, including an action for injunctive relief and/or to recover damages and attorney's fees incurred as a result of any violation.

(Added Ord. 2018-24, § 2, eff. 6-11-18).

Editor's note—Ord. 2018-24, § 3, effective June 11, 2018, amended the Code by repealing former § 9-1109 and adding a new § 9-1109. Former § 9-1109 pertained to impound procedures, and derived from Ord. 2003-67, effective August 31, 2003.

SEC. 9-1110. RESERVED.

Editor's note—Ord. 2018-24, § 4, effective June 11, 2018, amended the Code by repealing former § 9-1110. Former § 9-1110 pertained to disposition of vehicles, and derived from Ord. 2003-67, effective August 31, 2003.

ARTICLE 12 PRIVATE PATROLS

Sec. 9-1201. Title.
Sec. 9-1202. Definitions.
Sec. 9-1203. Registration Required.
Sec. 9-1204. Prohibited Employment.
Sec. 9-1205. Regulations of Permittee.
Sec. 9-1206. Severability.

SEC. 9-1201. TITLE.

This article shall be known as the Private Patrol Ordinance of the City of Fresno.
(Rep. and Added Ord. 71-13, 1971).

SEC. 9-1202. DEFINITIONS.

For the purposes of this article, the following definitions shall apply:

(a) "Chief of Police" shall mean the Chief of the Fresno Police Department or designee.]

(b) "Private patrol operator" means any person, other than an armored contract carrier, who, for any consideration whatsoever, agrees to furnish, or furnishes, a watchman, guard, patrolperson, or other person to protect persons or property or to prevent the theft, unlawful taking, loss, embezzlement, misappropriation, or concealment of any goods, wares, merchandise, money, bonds, stocks, notes, documents, papers, or property of any kind, or performs the service of a watchman, guard, patrolperson, or other person for any of these purposes.

(c) "Private Security Services Act" means Chapter 11.5 of the Business and Professions Code, as amended.

(d) "Registration card" means a registration card issued pursuant to Business and Professions Code Section 7583.17, and a temporary registration card issued pursuant to Business and Professions Code Section 7583.11.

(Rep. and Added Ord. 71-13, based on former Sec. 6-1201; Am. Ord. 2004-117, § 5, eff. 12-21-04).

SEC. 9-1203. REGISTRATION REQUIRED.

Every private patrol operator located or operating within the City shall register their name and the names of their employees and file a copy of their registration card with the Police Department.
(Rep. and Added Ord. 71-13, 1971, based on former Sec. 6-1202; Am. Ord. 73-110, § 1, eff. 8-19-73; Am. Ord. 2004-117, § 6, eff. 12-21-04).

SEC. 9-1204. PROHIBITED EMPLOYMENT.

No private patrol operator shall employ any person as a uniformed employee which person is unable to furnish evidence of a current registration card.
(Added Ord. 73-110, § 3, eff. 8-19-73; Am. Ord. 2004-117, § 7, eff. 12-21-04).

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SEC. 9-1205. REGULATIONS OF PERMITEE.

Any private patrol operator located or operating within the City shall comply with the following regulations:

(a) Comply with all terms, conditions and requirements of the Private Security Services Act.

(b) Comply with all lawful orders and decisions of the California Bureau of Security and Investigative Services.

(c) All uniforms and insignias worn by any private patrol operator or employee thereof shall not resemble and shall be readily distinguishable from any uniform or insignia worn by any law enforcement agency of the City or County of Fresno. The Chief of Police shall inspect and approve of all such uniforms and insignias to ensure compliance with these requirements.

(d) Any motor vehicle or motorcycle used by a private patrol operator or employee thereof for purposes of security patrol activity shall bear in distinct lettering the name of the private patrol operator. Such vehicles shall not resemble but shall be readily identifiable from distinctively marked motor vehicles used by any law enforcement agency of the City or County of Fresno. The Chief of Police shall inspect and approve of all such vehicles to ensure compliance with these requirements.

(e) The decision of the Chief of Police regarding those matters addressed in Subsections (c) and (d) of this Section may be appealed pursuant to Chapter 1, Article 4 of this Code. (Added Ord. 71-13, 1971; Am. Ord. 71-118, 1972; Am. Ord. 73-110, § 5, eff. 8-19-73; Am. Ord. 2004-117, § 8, eff. 12-21-04).

SEC. 9-1206. SEVERABILITY.

If any subsection, sentence, clause or phrase of this article is for any reason held by a court of competent jurisdiction to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this article. The Council of the City of Fresno hereby declares that it would have passed this article and each section, subsection, sentence, clause and phrase thereof, irrespective of the fact that one or more of the subsections, sentences, clauses or phrases may be held invalid or unconstitutional. (Added Ord. 2004-117, § 9, eff. 12-21-04).

ARTICLE 13 LIQUIDATION SALES

Sec. 9-1301. Special License Required.
Sec. 9-1302. Application and Inventory.
Sec. 9-1303. Special License Fee.
Sec. 9-1304. Inspection of Applications Restricted.
Sec. 9-1305. False Statements Prohibited.
Sec. 9-1306. Scope of License.
Sec. 9-1307. Change in Ownership.
Sec. 9-1308. Advertising of Sales.
Sec. 9-1309. Sales of Regular Stock in Trade.
Sec. 9-1310. Fictitious Fire Sales Prohibited.
Sec. 9-1311. Judicial and Pawnbrokers' Sales.

SEC. 9-1301. SPECIAL LICENSE REQUIRED.

(a) No person in the City of Fresno shall advertise, notice or hold out by advertising in newspapers, magazines, periodicals or otherwise, or by window-signs, billboards, radio or in any other manner whatsoever that any sale of goods, wares or merchandise is an insurance, bankrupt, sellout, bankruptcy, bankrupt stock, mortgage, mortgagee's, insolvent, assignee's, executor's, administrator's, receiver's, trustee's, pledgee's, lease-expiring, removal, retiring, quitting, liquidating, liquidizing, closing-out sale or other designation, or a sale of goods, wares or merchandise damaged by fire, smoke or water, whether the sale is so designated or is held under a similar name or other designation in the City of Fresno, unless and until he shall have first obtained a special license to conduct such sale from the Controller of the City of Fresno as herein provided.

(b) The provisions of this section shall apply to all such sales whether conducted by the owner, his agent, a consignee or otherwise.

(c) The provisions of this section pertaining to the sale of undamaged goods, wares or merchandise shall apply only to sales held in conjunction with the closing, quitting, relocation or removal of a business enterprise or a department or segment thereof, and not to a sale of discontinued or outdated stock in trade by an ongoing business entity. (Ord. [Orig.] Ord. 4298; Am. Ord. 5308, 1958; Am. Ord. 78-187, § 1, eff. 1-12-79).

SEC. 9-1302. APPLICATION AND INVENTORY.

At least ten days prior to the commencement of any sale set forth in Section 9-1401, the person intending to hold said sale shall submit to the Controller an application in writing stating the reasons for such sale, an inventory of all goods, wares or merchandise on all the premises where said sale is to take place, showing actual purchase price and any other details required by the Controller as necessary to fully identify the goods, wares or merchandise to be sold at said sale. (Orig. Ord. 4298; Am. Ord. 5308, 1958).

SEC. 9-1303. SPECIAL LICENSE FEE.

(a) The license fee for sales covered by this article shall be as designated in the Master Fee Resolution. Said license shall be in addition to any other license fee then being paid by said

person to the city. For the purpose of ascertaining the special license fee required for such sale, the inventory shall be computed from the total cost (purchase price) of such goods, wares or merchandise, or sixty per cent of the advertised value of such goods, wares or merchandise, whichever is the larger amount. No additional goods, wares or merchandise may be brought in or added to the submitted inventory to be offered to the public at such sale.

(b) Such application shall specify the period of time during which the sale shall continue. This time shall in no case exceed thirty days. A new application and special license shall be procured for each thirty day sale period or portion thereof.

(c) **Exemption for Redevelopment.** The license fee for sales covered by this article shall not be imposed upon a seller who is located within a redevelopment project area and whose sale is necessitated because redevelopment projects, plans or procedures require that the seller's business be relocated. This exemption shall not apply for a sale or sales of more than a total of ninety days. All other provisions of this article shall apply. (Orig. Ord. 4298, Am. Ord. 6538, 1964; Am. Ord. 80-115, § 82, eff. 8-8-80).

SEC. 9-1304. INSPECTION OF APPLICATIONS RESTRICTED.

The Controller shall file such applications and shall endorse on each application the date the special license is granted, which said application shall be open to inspection only by the employees of the office of the Controller and the Police Department. (Orig. Ord. 4298, Am. Ord. 5308, 1964).

SEC. 9-1305. FALSE STATEMENTS PROHIBITED.

No person shall make any false statement in any application required by this article or in any advertisement or notice of any sales of goods, wares or merchandise covered by Section 6-1401. (Orig. Ord. 4298).

SEC. 9-1306. SCOPE OF LICENSE.

The licenses issued under the provisions of this article shall be valid only for the inventoried goods, wares or merchandise as provided in Section 9-1302 and 9-1303. Additions to such inventory shall cause the goods, wares and merchandise so inventoried to lose their identity, and any such license issued shall cease to apply to the sale of such goods, wares or merchandise. (Orig. Ord. 4298).

SEC. 9-1307. CHANGE IN OWNERSHIP.

If there shall be any change in ownership of the goods, wares or merchandise so inventoried, advertised or noticed for sale, notice thereof shall immediately be given in writing to the Controller, and a new license obtained, as provided in Sections 6-1402, 6-1403 and 6-1404. (Orig. Ord. 4298, Am. Ord. 5308, 1958).

SEC. 9-1308. ADVERTISING OF SALES.

A sale shall only be advertised or carried on as an insurance sale by the insurance carrier, a bankruptcy sale by a trustee in bankruptcy, a mortgage sale by a mortgagee, an insolvent sale by a trustee in insolvency, an assignee's sale by an assignee for creditors, an executor's sale by an executor, an administrator's sale by an administrator, a receiver's sale by a receiver and a trustee's sale by a trustee; provided, however, that one purchasing directly from an insurance carrier, trustee in bankruptcy, mortgagee, trustee in insolvency, assignee for creditors, executor, administrator, receiver or trustee, may advertise notice and represent that he has so purchased such goods, wares and merchandise. (Orig. Ord. 4298).

SEC. 9-1309. SALES OF REGULAR STOCK IN TRADE.

Nothing contained in this article shall prevent a merchant from selling his regular stock in trade at any sale mentioned in Section 9-1401, the inventory of which would not cover his regular stock in trade, provided that such regular stock in trade is segregated separately and designated as such by appropriate signs clearly visible to prospective customers and so advertised. The lettering for such advertisement shall be not less than two inches in height. (Orig. Ord. 4298).

SEC. 9-1310. FICTITIOUS FIRE SALES PROHIBITED.

A sale of goods, wares or merchandise shall not be advertised, noticed, represented or conducted as a fire sale unless all of such goods, wares or merchandise to be sold shall have been actually damaged by fire or smoke or water used in extinguishing a fire. (Orig. Ord. 4298).

SEC. 9-1311. JUDICIAL AND PAWNBROKERS' SALES.

This article shall not apply to public or court officers or to any person acting under the direction of state or federal courts in the course of their official duties, or to licensed pawnbrokers selling unredeemed pledges in accordance with law. (Orig. Ord. 4298).

ARTICLE 14 PAINTERS OF HOUSE NUMBERS ON CURBS

Sec. 9-1401. Painting Numbers on Curb Permitted.
Sec. 9-1402. Work to be Performed Before Payment.
Sec. 9-1403. Permission of Owner or Occupant Required.
Sec. 9-1404. Business of Painting House Numbers; Definition.
Sec. 9-1405. Specifications and Standards.
Sec. 9-1406. License and Bond Required.

SEC. 9-1401. PAINTING NUMBERS ON CURB PERMITTED.

Owners and occupants of property in the city may paint or employ persons to paint their address numbers on the curb in front of the property owned or occupied by them. (Orig. Ord. 4484).

SEC. 9-1402. WORK TO BE PERFORMED BEFORE PAYMENT.

No person who engages in the business of painting house numbers on curbs shall accept any remuneration for such work until the work has been performed. (Orig. Ord. 4484).

SEC. 9-1403. PERMISSION OF OWNER OR OCCUPANT REQUIRED.

No person shall paint house numbers on curbs without first obtaining permission from the owner or occupant of the premises to which the house number applies. (Orig. Ord. 4484).

SEC. 9-1404. BUSINESS OF PAINTING HOUSE NUMBERS; DEFINITION.

For the purpose of this article, any person who, for a pecuniary or other remuneration, paints house numbers at two or more locations in the city in any one calendar year shall be deemed to be engaged in the business of painting house numbers. (Orig. Ord. 4484).

SEC. 9-1405. SPECIFICATIONS AND STANDARDS.

(a) The numbers shall be painted on curbs at approximately the center of the property in accordance with the following specifications, to wit: black numerals not less than two and one-half inches high, which such black numerals shall be painted on a white background, which such white background shall be five and one-half inches high, and shall extend one and one-half inches in length beyond the ends of the numerals, but in no case shall such white background be longer than fourteen inches. The surface of the curb to be painted shall be dry and cleaned of all dust, dirt, oil and grease. The field or base coat on which the lettering is to be placed shall be applied in a neat and workmanlike manner with edges plumb and level and shall be applied of either of the following materials:

Aluminum Field.—Two coats General Paint Company's Quick Drying Aluminum Paint No. C-003.

White Field.—Two coats General Paint Company's Quick Drying Traffic Paint No. 3-221.

Lettering.—General Paint Company's Black "Flex".

(b) The manufacturer and trade names of the several products as hereinbefore specified are intended to establish a standard of type and quality, and shall not confine the selection of materials to any one manufacturer's products. Materials of equal quality manufactured by other recognized manufacturers proposed to be substituted for those specified, shall be submitted to the head of the Public Works Department for approval. (Orig. Ord. 4484; Am. Ord. 5309, 1958).

SEC. 9-1406. LICENSE AND BOND REQUIRED.

(a) No person shall engage in the business of painting house numbers on curbs in the city without first obtaining a city business license and furnishing a bond in favor of the city in the amount designated in the Master Fee Resolution, to be approved as to form by the City Attorney, and to be filed in the office of the City Clerk.

(b) Such bond may be given by a surety company or it may be executed by two or more persons who are residents of the city.

(c) The condition of such bond shall be that in the event the principal named in said bond shall faithfully perform his or its duty in the painting of house numbers on curbs in compliance with the provisions of this article, then said obligation shall be void. Otherwise, it shall remain in full force and effect. In the event the principal on such bond shall fail to comply with any of the provisions of this article in the painting of house numbers on curbs, or shall improperly paint house numbers on curbs, or shall refuse or neglect to correct or remove said numbers and painting from curbs after notice from the Public Works Director, then the Director may direct said work to be removed or corrected, and the cost and expense of such removal or correction, not exceeding the amount of the bond, shall be collectible from said principal and the surety or sureties on such bond.

(d) Each bond shall run for a period of time which shall expire on the thirtieth day of June of each year. (Orig. Ord. 4484; Am. Ord. 5327, 1958; Am. Ord. 80-132, §§ 6, 7, eff. 10-3-80).

ARTICLE 15 AMBULANCE ORDINANCE

Sec. 9-1501. Title.
Sec. 9-1502. Definitions.
Sec. 9-1503. Dispatching of Ambulances.
Sec. 9-1504. Application for Registration.
Sec. 9-1505. Application Investigation.
Sec. 9-1506. Ambulance Regulations.
Sec. 9-1507. Grounds for Denying Renewal.
Sec. 9-1508. Appeal.
Sec. 9-1509. Dispatch of Ambulances.

SEC. 9-1501. TITLE.

This article shall be known as the ambulance ordinance of the City of Fresno. (Added Ord. 70-45, 1970).

SEC. 9-1502. DEFINITIONS.

(a) Unless the particular provision of the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 and in Section 7-602 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Ambulance" means any vehicle equipped or intended to be used for transporting the wounded, injured, sick, dead, or a medical patient and designed to be used as an emergency vehicle for such purpose. (Added Ord. 70-45, 1970).

SEC. 9-1503. DISPATCHING OF AMBULANCES.

Whenever the Chief of Police or other employee of the Fresno Police Department receives a request for the dispatching of an ambulance to any place in aid of any person, such dispatch shall be made in compliance with this article. Only ambulances from services which have been registered and remain in compliance with the provisions of this article shall be so dispatched. The inadvertent failure to follow this article or a decision made under emergency conditions to ignore this article shall not be cause for discipline of any employee or give rise to a cause of action by any person. (Added Ord. 70-45, 1970).

SEC. 9-1504. APPLICATION FOR REGISTRATION.

(a) Any person conducting an ambulance service and desiring to be registered or desiring to renew his registration hereunder for the calling of ambulances from his service shall submit an application therefor to the Chief of Police. The application shall be in a form approved by the Chief of Police and shall include the following:

(1) The applicant's name, home address, business address, and telephone numbers. This includes information as to persons doing business under fictitious names, members of partnerships, and officers of corporations or associations.

(2) A list of vehicles which will be used as ambulances, including a full description of each vehicle and its license number. Proof of compliance of each vehicle with the requirements of subsections (d) and (e) of Section 9-1506 shall be submitted with the application.

(3) The names of the persons who will drive such vehicles and who will act as medical, paramedical or first-aid personnel in the use of the vehicle. This information shall include the certification, training, and skills possessed by each of such persons.

(4) The full description of the location and operation of the applicant's place of business, including radio operation.

(5) Such other and further information as the Chief of Police may require.

(b) The application shall be under penalty of perjury and shall not be accepted unless it is clearly filled out in full with all required information and is accompanied by the application fee designated in the Master Fee Resolution. (Added Ord. 70-45, 1970; Am. Ord. 75-102, § 1, eff. 10-9-75; Am. Ord. 80-115, § 83, eff. 8-8-80).

SEC. 9-1505. APPLICATION INVESTIGATION.

The Chief of Police shall cause an investigation to be made of the facts stated in the application, and shall within thirty days register the applicant as a registered ambulance service if he makes the following findings:

(1) That the applicant and ambulance personnel are of good moral character;

(2) That applicant has not had an ambulance permit revoked for good and sufficient cause within the last twenty-four months or has never had an ambulance permit revoked for cause involving gross negligence or moral turpitude;

(3) That the statements made in the application are probably true;

(4) That the application fee has been paid;

(5) That no fact (of which he has knowledge) exists which would be cause for revocation of the ambulance registration.

In the event that the Chief of Police makes a finding unfavorable to the applicant, this finding shall be reported in writing to the applicant, with a copy to the Chief Administrative Officer, within ten days of the finding; otherwise the applicant shall be registered. (Added Ord. 70-45, 1970).

SEC. 9-1506. AMBULANCE REGULATIONS.

(a) All ambulance services shall be subject to the regulations contained in this article, and shall agree in writing to comply therewith, on a form approved by the Chief of Police and the City Attorney.

(b) Emergency ambulance service shall be made available during the twenty-four hours of the day.

(c) Requests for ambulance emergency service will at all times be answered as expeditiously and safely as possible and in accordance with the laws of the State of California and the city. The receiver of the police call shall inform the caller whether or not an ambulance is available for service and its estimated time of arrival at the scene to service the call.

(d) Ambulances and the equipment of all ambulances used in the emergency service shall comply with the requirements of the Department of California Highway Patrol, the California Vehicle Code, and the California Administrative Code (Title 13, subchapter 5).

(e) All ambulances utilized in said ambulance service shall be two-way radio equipped and shall also be equipped and designed to meet the requirements of the Medical Requirements for Ambulance Design and Equipment of the Committee on Emergency Medical Services, Division of Medical Sciences, National Academy of Sciences, National Research Council, published September, 1968, which are therein designated and which are indicated as follows:

General Vehicular Design, page 9:

General Safety Standards

Identification of ambulances

Speed and acceleration

Riding characteristics (Exception: While puncture-proof tires are recommended, first-grade tires in good condition must be provided. Recapped or retreaded tires are prohibited.)

The floor

Driver Area, page 10:

Separation

Access

Lighting

Environmental control

Patient Area, pages 11, 12, and 13:

Crash-stable fasteners

Equipment

Doors

Steps

Communication

Illumination

Environmental control

Interior surfaces

Restraints

Power outlets

Three copies of said Medical Requirements for Ambulance Design and Equipment shall be kept in the office of the City Clerk.

The Chief of Police, in his discretion, may impose such additional design and equipment requirements for all ambulances as may reasonably be required to provide adequate emergency ambulance service to ill or injured persons, provided that any such additional requirements shall be contained in the following sections of the Medical Requirements for Ambulance Design and Equipment:

Security and Rescue Equipment; Emergency Care Equipment and Supplies; Airway Care; Artificial Ventilation, and Oxygenation; External Cardiac Compression; Immobilization of Fractures; Wound Dressings; Prevention and Treatment of Shock; Emergency Childbirth; Transportation of Newborn Infants; Acute Poisoning; Miscellaneous Equipment; Special Equipment for Use by Physicians or Others Trained in Its Use; Communication and Documentation.

Any additional design and equipment requirements shall apply to all ambulances and all ambulance registrants. The additional requirements shall be in writing with reasonable notice thereof to all ambulance registrants.

The provisions of this subsection which directly impose requirements from the above-mentioned publication shall not apply to an ambulance owned and operated in the city by an ambulance service on or before July 1, 1970. Requirements, other than for portable equipment, which may be later imposed by the Chief of Police, shall not apply to an ambulance owned or operated in the city by an ambulance service on the date notice of such requirement is given by the Chief of Police. Except when an ambulance service is wholly purchased by one purchaser, ambulances so exempted from said provisions and later requirements may not be transferred and registered to be given calls under this chapter.

(f) All ambulance owners and operators, attendants and drivers of ambulances shall be properly qualified, licensed, and certificated in accordance with the requirements of the Department of California Highway Patrol, the California Vehicle Code, and the California

Administrative Code (Title 13, subchapter 5), and possess valid advanced Red Cross first aid course certificates. Attendants and drivers of ambulances shall also demonstrate proficiency in emergency care for injuries and illnesses involving vital signs and their significance, and for injuries, burns, environmental emergencies (such as exposure, electrical shock, etc.), poisoning, childbirth, management of the emotionally disturbed and unruly, common medical emergencies (such as fainting, stroke, heart attack, convulsions, acute alcoholism, vomiting, etc.), and in the use of equipment and supplies of ambulances. This will include proficiency in life-threatening emergencies such as airway stoppage, cardiac arrest, bleeding, and shock. The Chief of Police may appoint two or more doctors of medicine or surgery to examine drivers and attendants to determine whether they can demonstrate the proficiency required by this subsection, and report thereon to the Chief of Police. No future change in the proficiency standards shall be made and applied without written notice to all ambulance registrants and a reasonable time afforded for compliance therewith. The Chief of Police shall place no calls for an ambulance having a driver or attendant who does not meet the requisites of this subsection.

(g) The ambulance service shall furnish a certificate of liability insurance coverage naming the City of Fresno as an insured, insuring it in the amount of $100,000/$300,000 public liability and $100,000 property damage, against any liability which it may incur in connection with its request or requests for ambulance service and in connection with the furnishing of any such service by the person or persons dispatched on the call. The ambulance service shall agree to save and hold the city harmless from any and all claims, actions, or causes of action, of whatever nature, arising out of or in any way connected with the requesting of ambulance service by the city, or the furnishing of the same by the ambulance service, except those arising out of acts or omissions of the city or its employees and not involving an act or omission of the ambulance service.

(h) All added or substituted ambulances shall be reported to the Chief of Police, together with a ten dollar fee for each ambulance. All changes in personnel shall also be reported. All information required by Section 9-1704 shall be supplied.

(i) The Council shall, from time to time, but not less frequently than every two years, by resolution, fix the maximum fees to be charged by ambulance services for any services provided by such ambulance service within the city limits. A change in such maximum fee schedule may be considered, provided, that a request for such change is submitted, in writing, by an approved registrant in good standing, to the Chief Administrative Officer who shall conduct a hearing on such request and shall submit his findings and recommendations to the Council.

(j) When an ambulance from more than one ambulance service, whether or not the service is registered under this article, arrives at the scene of an accident or injury, any police officer at the scene may in his discretion decide which ambulance shall serve the call; and no cause of action shall arise in any person because of his choice of ambulance.

(k) All registrations issued in accordance with this article shall be valid for a period of twelve months from the date of issuance.

(l) Any duties imposed by this article upon the Chief of Police may be delegated by him, upon approval by the Chief Administrative Officer, to the Fire Chief or, as to the duty to dispatch ambulance service only, to any county official having the responsibility for the dispatching of ambulances. (Added Ord. 70-45, 1970; Am. Ord. 75-102, §§ 2—4, eff. 10-9-75).

SEC. 9-1507. GROUNDS FOR DENYING RENEWAL.

Any ambulance service renewal may be denied when any grounds exist which would have been a ground for refusal to issue the registration, or when there has been a violation of any of the terms of this article or rules promulgated pursuant thereto, or when the registrant's service to the public is so inadequate or inefficient that, in the exercise of reasonable judgment, it appears that it amounts to a disservice to the public, or when in the case of an ambulance service, the service is bankrupt or so insolvent that, in the exercise of reasonable judgment, it appears likely that registrant will provide inadequate ambulance service. (Added Ord. 2003-67, §§ 7, 30, eff. 8-31-03).

SEC. 9-1508. APPEAL.

Any person denied registration or renewal of registration upon application therefor, may appeal the decision of the Chief of Police under Chapter 1, Article 4. Whenever an appeal is available under this article and no appeal is filed within the time prescribed, the action of the Chief of Police shall be final. (Added Ord. 70-45, 1970; Am. Ord. 75-102, § 6, eff. 10-9-75; Am. Ord. 88-8, § 7, eff. 2-12-88; Am. Ord. 98-65, § 10, eff. 10-1-98; Am. Ord. 2003-67, § 22, eff. 8-31-03; Am. Ord. 2005-14, § 27, eff. 4-9-05).

SEC. 9-1509. DISPATCH OF AMBULANCES.

(a) Whenever the Police Department receives a request for the dispatch of an ambulance it shall dispatch the ambulances in conformance with this section.

(b) Registrants shall be called upon a formula or formulas based upon the number of ambulances available for service by the registrant's service. An ambulance available for service is one which has a crew of at least two persons with the ambulance and which is ready at that time to be dispatched. The formula or formulas shall be devised to alternate, as much as possible considering the number of vehicles of each applicant, between the various registrants, i.e., the call shall alternate between services but an applicant with three ambulances will be called three times while a registrant with five ambulances will be called five times, etc.

(c) Notwithstanding the above, should the Police Department receive information that a particular ambulance or ambulance service is not available on any particular call, or the estimated time of arrival at the scene is excessive, the next ambulance on the rotation list may be called. (Added Ord. 70-45, 1970; Am. Ord. 73-155, eff. 2-15-74; Am. Ord. 74-21, eff. 2-15-74).

ARTICLE 16 MASSAGE BUSINESS*

Sec. 9-1601. Title.
Sec. 9-1602. Definitions.
Sec. 9-1603. Permit Required.
Sec. 9-1604. Massage Business Registration.
Sec. 9-1605. Operating Requirements.
Sec. 9-1606. Inspection by Officials.
Sec. 9-1607. Notifications.
Sec. 9-1608. Exemptions.
Sec. 9-1609. Suspension and Revocation of City Registration Certificate.
Sec. 9-1610. Violation and Penalty.
Sec. 9-1611. Administrative Citation and Penalty.
Sec. 9-1612. Appeals.
Sec. 9-1613. Public Nuisance.
Sec. 9-1614. Severability.
Sec. 9-1615. Application to Existing Businesses.

SEC. 9-1601. TITLE.

This Article shall be known as the City of Fresno Massage Business Ordinance. (Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1602. DEFINITIONS.

For purposes of this chapter, unless the particular provision or the context otherwise clearly requires, the definitions in this section shall govern the construction, meaning and application of words and phrases used in this chapter:

(a) "CAMTC" means the California Massage Therapy Council, the organization formed pursuant to California Business and Professions Code Section 4600.5.

(b) "Certified Massage Practitioner" means any individual certified by the CAMTC as a massage therapist or massage practitioner pursuant to California Business and Professions Code Section 4600 et seq.

(c) "City Registration Certificate" means a registration certificate issued by the city upon submission of satisfactory evidence that a Massage Business employs or uses only Certified Massage Practitioners.

(d) "Chief of Police" means the Chief of Police or his or her designee.

(e) "Client" means a customer or patron who pays for or receives Massage Services.

***Editor's note—**Ord. No. 2013-35, §§ 1, 2, effective January 17, 2014, repealed former Art. 16, §§ 9-1601—9-1627, and added a new Art. 16. Former Art. 16 pertained to similar subject matter, and derived from Ord. 73-155, effective February 15, 1974; Ord. 74-21, effective February 15-74; Ord. 80-115, effective August 8, 1980; Ord. 80-132, effective October 3, 1980; Ord. 80-171, effective December 26, 1980; Ord. 83-144, effective November 18, 1983; Ord. 84-29, effective April 13, 1984; Ord. 87-160, effective December 18, 1987; Ord. 2003-67, effective August 31, 2003; and Ord. 2006-119, effective October 6, 2006.

(f) "Employee" means any person who may render any service to a Massage Business, and who receives any form of compensation from the business.

(g) "Massage" or "Massage Services" shall mean any method of treating the external parts of the body for remedial, health, or hygienic purposes for any form of compensation by means of pressure on or friction against, or stroking, kneading, rubbing, tapping, pounding, or stimulating, the external parts of the body, with or without the aid of any mechanical or electrical apparatus or appliances, or with or without supplementary aids, such as rubbing alcohol, liniments, antiseptics, oils, powders, creams, lotions, ointments, or other similar preparations commonly used in this practice; or by baths, including but not limited to, Turkish, Russian, Swedish, Japanese, vapor, shower, electric tub, sponge, mineral, fomentation, or any other type of bath.

(h) "Massage Business" means any business that offers Massage in exchange for compensation, whether at a fixed place of business or at a location designated by the Client through Outcall Massage services. Any business that offers any combination of Massage and bath facilities, including but not limited to, showers, baths, wet and dry heat rooms, pools and hot tubs, shall be deemed a Massage Business under this chapter. The term "Massage Business" includes a Certified Massage Practitioner who is the sole Owner, Operator and Employee of a Massage Business operating as a sole proprietorship.

(i) "Operator" means a person, whether an Owner or non-Owner, who manages or operates a Massage Business.

(j) "Outcall Massage" means the engaging in or carrying on of Massage for compensation at a location other than the business operations address set forth in the Massage Business's City Registration Certificate.

(k) "Owner" means any of the following persons:

(1) Any person who is a general partner of a general or limited partnership that owns a Massage Business.

(2) Any person who has a five percent or greater ownership interest in a corporation that owns a Massage Business.

(3) Any person who is a member of a limited liability company that owns a Massage Business.

(4) Any person who has a five percent or greater ownership interest in any other type of business association that owns a Massage Business.

(l) "Registration" means the registration required by this chapter to operate a Massage Business.

(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1603. PERMIT REQUIRED.

(a) **Individuals.** It is unlawful for any individual to practice Massage for compensation as a sole proprietorship or Employee of a Massage Business or in any other capacity within the city unless that individual is a Certified Massage Practitioner.

(b) **Business.** It is unlawful for any Massage Business to operate within the city unless all individuals employed to perform Massage, whether as an Employee, independent contractor, or sole proprietorship, are Certified Massage Practitioners and the business has obtained a valid City Registration Certificate as provided in this chapter.

(c) **Landlord.** It is unlawful for any landlord to allow a Massage Business to operate on the premises without proof of a valid City Registration Certificate.
(Added Ord. 2013-35, § 2, eff. 1-17-14; Am. Ord. 2019-038, § 1, eff. 12-13-19).

SEC. 9-1604. MASSAGE BUSINESS REGISTRATION.

(a) **Application.** The application for a City Registration Certificate shall be submitted to the City Manager or his or her designee and shall include all of the following:

(1) Legal name of the Massage Business.

(2) Address and telephone number of the Massage Business. If the location is leased, a copy of a valid lease and the name, address, and telephone number of the landlord or property owner. For a lease to be valid, it must include the terms of the lease including start and end dates, any renewal options and terms, and the name(s) of the individual(s) who are financially responsible for paying the lease.

(3) Legal names of all Owners and Operators of the Massage Business.

(4) A list of all the Massage Business's Employees and independent contractors who are performing Massage and their CAMTC certifications.

(5) Residence address and telephone number of all Owners of the Massage Business.

(6) Business address and telephone number of all Owners of the Massage Business.

(7) The form of business under which the Massage Business will be operating (i.e., corporation, general or limited partnership, limited liability company, or other form).

(8) Each Owner and Operator of the Massage Business who is not a Certified Massage Practitioner shall submit an application for a background check, including but not limited to, a criminal background check, including requiring submission of fingerprints for a state and federal criminal background check, the applicant's business, occupation and employment history for the ten years preceding the date of application, the inclusive dates of same, and the name and address of any Massage Business or other like establishment owned or operated by any person who is subject to the background check requirement of this section. If a noncertified Owner's or

Operator's background check results in a finding that the city determines is relevant to owning or operating a Massage Business, then the city may regulate the establishment in any manner it deems proper that is in accordance with the law.

(9) For all Owners, a valid and current driver's license and/or identification issued by a state or federal governmental agency or other photographic identification bearing a bona fide seal by a foreign government.

(10) For all Owners, a signed statement that all of the information contained in the application is true and correct; that all Owners shall be responsible for the conduct of the Massage Business's Employees or independent contractors providing Massage Services; and acknowledging that failure to comply with the California Business and Professions Code Section 4600 et seq., any other applicable local, state, or federal laws, or the provisions of this chapter may result in revocation of the City Registration Certificate.

(11) Proof of a current City of Fresno Business Tax Certificate or approved application.

(12) The applicant shall certify under penalty of perjury that within five years preceding submission of the application, no Owner or Operator listed in the application has:

(i) Had a City Registration Certificate, massage professional certification, or other similar permit or license related to the practice or business of massage, denied, suspended, or revoked by the city, or any other state or local agency;

(ii) Engaged in conduct or operated a Massage Business in a manner that would be grounds for denial, suspension, or revocation of a permit under this chapter; or

(iii) Owned or managed a Massage Business where persons required to be licensed were allowed to work without the required license or permit.

(b) **Issuance.** Upon provision by the Massage Business of the foregoing documentation, and approval by the City Manager or his or her designee, the city shall issue the Massage Business a City Registration Certificate, which shall be valid for one year from the date of issuance. If the application is complete and accurate and all of a Massage Business's Owners, Operators, and Employees are Certified Massage Practitioners, approval shall be ministerial. If an application is denied, the City Manager or his or her designee shall specify in writing the reason for the denial and the applicant shall have the right to appeal the denial to the Administrative Hearing Officer in accordance with Article 4, Chapter 1 of the Fresno Municipal Code.

(c) **Amendment.** A Massage Business shall apply to the city to amend its City Registration Certificate within thirty days after any change in the Registration information, including, but not limited to, the hiring or termination of Certified Massage Practitioners, or change of address.

(d) **Renewal.** A Massage Business shall apply to the city to renew its City Registration Certificate at least thirty days prior to expiration. If an application for renewal of a City Registration Certificate and all required information are not timely received and the certificate expires, no right or privilege to provide Massage shall exist.

(e) **Fees.** Each application for a City Registration Certificate shall be accompanied by a nonrefundable fee as set forth in the Master Fee Schedule. The fee shall be to defray in part the cost of the investigation and report required by this chapter. A copy for the receipt for the nonrefundable fee shall accompany the application.

(f) **Transfer.** A City Registration Certificate shall not be transferred or assigned except with the prior written approval of the City Manager or his or her designee. A written request for transfer shall contain the same information for the new ownership as is required for applications for a City Registration Certificate pursuant to this section. In the event of denial, notification of the denial and reasons therefor shall be provided in writing and shall be provided to the applicant by personal delivery or by registered certified mail.

(g) **Overconcentration.** To avoid an overconcentration of Massage Businesses in the city and to protect the public health, safety, and welfare, in those zones where Massage Businesses are permitted, no Massage Business shall be permitted to locate within 500 feet of an existing Massage Business.
(Added Ord. 2013-35, § 2, eff. 1-17-14; Am. Ord. 2019-038, § 2, eff. 12-13-19).

SEC. 9-1605. OPERATING REQUIREMENTS.

As of the effective date of this chapter, no person shall engage in, conduct, carry on, or permit any Massage within the city unless all of the requirements set forth below are met:

(a) It shall be unlawful for any Certified Massage Practitioner to be present on the premises of a Massage Business or perform Massage on a Client without having prominently displayed his or her CAMTC certification card issued by CAMTC. The identification card shall be in good and readable condition, and displayed on the outermost garment at approximately chest height.

(b) A list of the services available and the cost of such services shall be posted in the reception area within the Massage Business, and shall be described in readily understandable language. Outcall Massage providers shall provide a service list to Clients in advance of performing any service. No Owner, Operator, or responsible managing Employee shall permit, and no Certified Massage Practitioner shall offer to perform, any services other than those posted or listed as required herein, nor shall an Owner, Operator, or Certified Massage Practitioner request or charge a fee for service other than that on the list of services.

(c) A copy of the CAMTC certificate of each Certified Massage Practitioner employed by the Massage Business shall be displayed in the reception area or similar open public space on the premises.

(d) For each Massage Service provided, every Massage Business shall keep a complete and legible written record of the following information: the date and hour that the service was provided; the service received; the name or initials of the Employee entering the information; and the name of the Certified Massage Practitioner administering the service. Such records shall be open to inspection and copying by city officials and staff charged with enforcement of this chapter. These records may not be used by any Certified Massage Practitioner, Owner or Operator for any purpose other than as records of service provided and may not be provided to other parties by the Certified Massage Practitioner, Owner, or Operator unless otherwise required by law. Such records shall be retained on the premises of the Massage Business for a period of at least two years.

(e) Massage Businesses shall at all times be equipped with an adequate supply of clean sanitary towels, coverings, and linens. Clean towels, coverings and linens shall be stored in enclosed cabinets. Towels and linens shall not be used on more than one Client, unless they have first been laundered and disinfected. Disposable towels and coverings shall not be used on more than one Client. Soiled linens and paper towels shall be deposited in separate receptacles.

(f) Wet and dry heat rooms, steam or vapor rooms or cabinets, toilet rooms, shower and bath rooms, tanning booths, or whirlpool baths and pools shall be thoroughly cleaned and disinfected as needed, and at least once each day the Massage Business is open, with disinfectant. Bathtubs shall be thoroughly cleaned after each use with disinfectant. All walls, ceilings, floors, and other physical facilities for the Massage Business must be in good repair, and maintained in a clean and sanitary condition.

(g) Instruments utilized in performing Massage shall not be used on more than one Client unless they have been sterilized using approved sterilization methods.

(h) All Massage Business Operators and their Employees, including Certified Massage Practitioners, shall wear clean, nontransparent outer garments. Garments shall not expose their genitals, pubic areas, buttocks, or chest.

(i) No person shall enter, be or remain in any part of a Massage Business while in possession of an open container of alcohol, or consuming or using any alcoholic beverages or controlled drugs except pursuant to a prescription for such drugs. The Owner, Operator, or responsible managing Employee, shall not permit any such person, or any person who is clearly intoxicated, to enter or remain upon the premises. Except as may be expressly permitted by Business and Professions Code Section 23399.5, no alcoholic beverage or drug, other than a prescription medication in the possession of the person for whom the prescription was written, shall be stored or kept on the premises of a Massage Business.

(j) No Massage Business shall operate a school of Massage, or use the same facilities as that of a school of Massage.

(k) No Massage Business shall place, publish or distribute, or cause to be placed, published or distributed, any advertising material that depicts any portion of the human body that would reasonably suggest to prospective Clients that any service is available other than those services listed as an available service, nor shall any Massage Business employ language in the text of advertising that would reasonably suggest to a prospective Client that any service is available other than those services as described in compliance with the provisions of this chapter.

(l) No Massage shall be given unless the Client's genitals are, at all times, fully covered. A Certified Massage Practitioner shall not, in the course of administering any Massage, make physical contact with the genitals of any other person, nor shall a Certified Massage Practitioner expose to a Client or allow physical contract with his or her genitals. No sexual aids, including but not limited to condoms, may be kept on site.

(m) Where the Massage Business has staff available to assure security for Clients and staff behind closed doors, the entry to the reception area of the Massage Business shall remain unlocked during business hours, when open for business, or when Clients are present.

(n) No Massage Business located in a building or structure with exterior windows fronting a public street, highway, walkway, or parking area shall block visibility into the interior reception and waiting area through the use of curtains, closed blinds, tints, or any other material that obstructs, blurs, or unreasonably darkens the view into the premises.

(o) All signs shall be in conformance with the current ordinances of the city.

(p) Minimum lighting consisting of at least one artificial light of not less than forty watts shall be provided and shall be operating in each room or enclosure where Massage Services are being performed on Clients, and in all areas where Clients are present.

(q) Ventilation shall be provided in accordance with applicable building codes and regulations.

(r) Adequate dressing, locker and toilet facilities shall be provided for Clients.

(s) Hot and cold running water shall be provided at all times.

(t) A minimum of one wash basin for Employees shall be provided at all times. The basin shall be located within or as close as practicable to the area devoted to performing of Massage Services. Sanitary towels shall also be provided at each basin.

(u) Pads used on Massage tables shall be covered with fabric or paper, and shall be changed after each Client.

(v) All Massage Businesses shall comply with all state and federal laws and regulations for disabled access.

(w) A Certified Massage Practitioner shall operate only under the name specified in his or her CAMTC certificate.

(x) A Massage Business shall operate only under the name specified in its City Registration Certificate.

(y) Clients of a Massage Business shall be limited to adults 18 years of age and older and minors when accompanied by a parent or legal guardian.

(z) Massage shall be provided or given only between the hours of 7:00 a.m. and 10:00 p.m. No Massage Business shall be open and no Client shall be in the establishment between 10:00 p.m. and 7:00 a.m.

(aa) Upon request, proof of bona fide employment must be shown by written payroll documentation evidencing the employer's compliance with California Employment Development Department (EDD) requirements for the withholding of income tax, unemployment insurance contributions, and disability contributions from the employee and written payroll documentation of the employer's compliance with Internal Revenue Service (IRS) requirements for the withholding of Federal income taxes, Social Security (FICA) and Medicare contributions from the employee. Such written documentation can include, but is not limited to, W-2 wage and tax statements.

(bb) **Living Quarters Prohibited.** No person or persons shall be allowed to reside, dwell, occupy or live inside a Massage Business at any time. Beds and floor mattresses shall not be permitted on the premises.

(cc) **Responsibility of the Owner.** It shall be the responsibility of the Owner who employs or allows any person to provide Massage Services, to ensure such person complies with the requirements of this Article and all laws. The Owner shall be held responsible for the conduct of all Employees and all persons on the premises who engage in providing Massage Services. Any act or omission of any person providing Massage Services shall be deemed the act or omission of the Owner for the purpose of determining whether the City Registration Certificate may be revoked, suspended, or denied. Proof of knowledge of any violation of this section shall not be required for purposes of suspension, revocation, or denial of a City Registration Certificate.

(Added Ord. 2013-35, § 2, eff. 1-17-14; Am. Ord. 2019-038, § 3, eff. 12-13-19).

SEC. 9-1606. INSPECTION BY OFFICIALS.

The investigating and enforcing officials of the city, including but not limited to, the Chief of Police and code enforcement officers, shall have the right to enter the premises from time to time during regular business hours for the purpose of making reasonable inspections to observe and enforce compliance with building, fire, electrical, plumbing or health regulations, and to enforce compliance with applicable regulations, laws, and statutes, and with the provisions of this chapter.

(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1607. NOTIFICATIONS.

(a) A Massage Business shall immediately notify the Chief of Police of any changes in Registration status.

(b) A registrant shall immediately report to the Police Department any of the following:

(1) Arrests of any Employees, Owners, or Operators of the registrant's Massage Business;

(2) Resignations, terminations, or transfers of Certified Massage Practitioners employed by the registrant's Massage Business;

(3) The occurrence of any event involving the registrant's Massage Business or the Certified Massage Practitioners employed therein that constitutes a violation of this chapter or state or federal law.

(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1608. EXEMPTIONS.

The provisions of this chapter shall not apply to the following classes of individuals or businesses while engaged in the performance of their duties:

(a) Physicians, surgeons, chiropractors, osteopaths, nurses or any physical therapists who are duly licensed to practice their respective professions in the state of California and persons working directly under the supervision of or at the direction of such licensed persons, working at the same location as the licensed person, and administering Massage Services subject to review or oversight by the licensed person.

(b) Barbers and beauticians who are duly licensed under the laws of the state of California while engaging in practice within the scope of their licenses, except that this provision shall apply solely to the massaging of the neck, face and/or scalp, hands or feet of the Clients.

(c) Hospitals, nursing homes, mental health facilities, or any other health facilities duly licensed by the state of California, and employees of these licensed institutions, while acting within the scope of their employment.

(d) Accredited high schools, junior colleges, or colleges or universities whose coaches and trainers are acting within the scope of their employment.

(e) Trainers of amateur, semi-professional, or professional athletes or athletic teams while engaging in their training responsibilities for and with the athletes; and trainers working in conjunction with a specific athletic event.

(f) Individuals administering Massages or health treatment involving Massages to persons participating in single-occurrence athletic, recreational or festival events, such as health fairs, road races, track meets, triathlons and other similar events provided that all of the following conditions are satisfied:

(1) The Massage Services are made equally available to all participants in the event;

(2) The event is open to participation by the general public or a significant segment of the public such as employees of sponsoring or participating organizations;

(3) The Massage Services are provided at the site of the event and either during, immediately preceding or immediately following the event;

(4) The sponsors of the event have been advised of and have approved the provision of Massage Services;

(5) The persons providing the Massage Services are not the primary sponsors of the event.

(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1609. SUSPENSION AND REVOCATION OF CITY REGISTRATION CERTIFICATE.

(a) **Reasons.** The City Registration Certificate may be suspended or revoked upon any of the following grounds:

(1) A Certified Massage Practitioner is no longer in possession of a current and valid CAMTC certification. This subsection shall apply to a sole proprietor or a person employed or used by a Massage Business to provide Massage.

(2) An Owner or sole proprietor: is required to register under the provisions of the California Penal Code section 290 (sex offender registration); is convicted of California Penal Code Section 266i (pandering), 315 (keeping or residing in a house of ill fame), 316 (keeping disorderly house), 318 (prevailing upon person to visit a place for prostitution), 647(b) (engaging in or soliciting prostitution), 653.22 (loitering with intent to commit prostitution), or 653.23 (supervision of prostitute); has a business permit or license denied, revoked, restricted, or suspended by any agency, board, city, county, territory, or state; is subject to an injunction for nuisance pursuant to California Penal Code Sections 11225 through 11235 (red light abatement); is convicted of a felony offense involving the sale of a controlled substance; is convicted of any crime involving dishonesty, fraud, deceit, violence, or moral turpitude; or is convicted in any other state of an offense which, if committed in this state, would have been punishable as one or more referenced offenses in this subsection.

(3) The city determines that a material misrepresentation was included on the application for a City Registration Certificate or renewal.

(4) Violations of any of the following occurred on the premises of a Massage Business or were committed by a Certified Massage Practitioner: California Business and Professions Code Section 4600 et seq.; any local, state, or federal law; or the provisions of this article.

(b) **Procedures.** Written notice of the suspension or revocation with the legal violation and supporting facts shall be served on the sole proprietor or Owner(s) by either (i) personal delivery, or (ii) certified and regular mail. The notice shall contain an advisement of the right to request an appeal.

(c) **Time Period of Suspension of Permit.** The City Manager or his or her designee, Chief of Police or Finance Director may suspend a Registration for a period between five days and the remainder of the certification term, at his or her discretion.

(d) **Effective Date of Suspension or Revocation.** Suspension or revocation will be effective ten days from the date the notice was personally delivered, or ten days from the date the notice was mailed, unless a timely appeal is filed in accordance with this section.

(e) **Appeal.** An appeal can be made to the City Manager or his or her designee. An appeal must be received within five days from the date the notice was personally delivered, or ten days from the date the notice was mailed. The party requesting the appeal shall submit its notice of appeal along with a written brief outlining the reasons it believes the suspension or revocation to be in error. The appeal will be decided based solely on the written submission of the appealing party, with no oral argument. The City Manager or his or her designee shall render a written decision within ten days of the request for appeal being received by the City Manager or his or her designee. If the suspension or revocation is upheld, the Massage Business shall immediately close. If the appellant is not satisfied with the decision of the City Manager or his or her designee, the appellant may appeal to the Administrative Hearing Officer pursuant to Article 4, Chapter 1 of this code. The Massage Business, however, shall remain closed until the decision of the Administrative Hearing Officer is final.

(f) **Reapplication.** No reapplication will be accepted within five years after a City Registration Certificate is revoked.

(g) An individual identified as an Owner or Operator of a Massage Business that has had a City Registration Certificate revoked may not serve as an Owner, Operator, or Employee of a Massage Business in the city, nor be on the premises of any Massage Business, for five years after the City Registration Certificate is revoked.

(h) It shall be unlawful for any Owner or Operator of a Massage Business to knowingly allow any Owner or Operator who has had a City Registration Certificate revoked within the last five years to be present on the premises of their Massage Business.

(i) If a City Registration Certificate has been revoked and that revocation has become final pursuant to this article, no subsequent Massage Business shall be issued a City Registration Certificate at the address or fixed location of the revoked City Registration Certificate for a period of two years from the date the revocation became final.

(j) If a City Registration Certificate is subsequently revoked for the address of the same fixed location within three years of a prior revocation, and that subsequent revocation has become final, no City Registration Certificate shall be issued for any address on the same parcel for a period of three years from the date the subsequent revocation became final.
(Added Ord. 2013-35, § 2, eff. 1-17-14; 2019-038, § 4, eff. 12-13-19; Am. Ord. 2021-036, § 1, eff. 9-2-21).

SEC. 9-1610. VIOLATION AND PENALTY.

Any violation of this Article is a misdemeanor, punishable upon conviction by imprisonment in the county jail for a term not to exceed six months, or by a fine not to exceed one thousand dollars ($1,000) or by both fine and imprisonment.
(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1611. ADMINISTRATIVE CITATION AND PENALTY.

(a) **Administrative Citation.** In the alternative, the city may, at its discretion, issue an administrative citation for any violation of this Article.

(b) **Penalty.** The administrative penalty to be assessed for each violation of this Article shall be as follows:

(i) First violation, one thousand dollars ($1000.00);

(ii) Second occurrence of the same violation within a year of the first violation, twelve hundred fifty dollars ($1250.00);

(iii) Third or subsequent occurrence of the same violation within a year of the first violation, two thousand dollars ($2000.00).

(c) **Injunctive Relief.** In addition, at the request of the Chief of Police, the City Attorney may institute a civil action to ensure compliance with this Article, including an action for injunctive relief and or to recover damages incurred as a result of any violation.
(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1612. APPEALS.

Any Person receiving an administrative citation for violation of this Article shall have the right to appeal pursuant to Article 4, Chapter 1 of the Fresno Municipal Code.
(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1613. PUBLIC NUISANCE.

Any violation of this Article shall be considered a public nuisance as provided under Fresno Municipal Code Section 10-605.
(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1614. SEVERABILITY.

If any portion of this Article is held to be invalid by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this Article. The Council hereby declares it would have passed each remaining portion irrespective of the fact that any one or more portions are declared invalid.
(Added Ord. 2013-35, § 2, eff. 1-17-14).

SEC. 9-1615. APPLICATION TO EXISTING BUSINESSES.

(a) Any individual holding a valid permit or license issued by the city to perform or engage in Massage for compensation within the city may continue to provide Massage Services under that permit or license until that permit or license expires, but shall otherwise comply with the requirements of this chapter upon this chapter's effective date. Upon expiration of the permit or license issued by the city, any person who desires to continue to provide Massage Services for compensation within the city shall first obtain a CAMTC certificate.

(b) Any Massage Business legally in business prior to the effective date of this chapter may continue to operate as a Massage Business until its permit or license expires, provided that all of the Massage Business's Employees, agents, independent contractors, or other persons providing Massage Services, possess either a valid city-issued permit or license to practice Massage or a valid CAMTC certificate. Upon expiration of the Massage Business's permit or license, any Massage Business that desires to continue to operate shall comply with the requirements of this chapter.

(c) All Massage Businesses, including its Owners, Operators, and Employees, and all persons engaged in the practice of Massage for compensation within the city, shall comply with all health and safety requirements set forth in this chapter once this chapter becomes effective.
(Added Ord. 2013-35, § 2, eff. 1-17-14).

ARTICLE 17 TOW TRUCKS*

Sec. 9-1701. Title.
Sec. 9-1702. Definitions.
Sec. 9-1703. Intent.
Sec. 9-1704. Dispatching of Tow Trucks.
Sec. 9-1705. Exceptions.
Sec. 9-1706. Application for Placement on Rotation List.
Sec. 9-1707. Investigation.
Sec. 9-1708. Nontransferability and Change Of Control.
Sec. 9-1709. Regulations.
Sec. 9-1710. Suspension.
Sec. 9-1711. Removal from Rotation List.
Sec. 9-1712. Appeal.
Sec. 9-1713. Authority of Police Chief.

SEC. 9-1701. TITLE.

This article shall be known as the Tow Truck Ordinance of the City of Fresno.
(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2014-45, § 1, eff. 12-4-14).

SEC. 9-1702. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. Whenever any words or phrases used herein are not defined, but are defined in the Vehicle Code of the State of California, and amendments thereto, such definitions shall apply. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Police Impound" means a written direction from the police officer on the scene to store the vehicle to be towed in a secured area until released by Police Department Personnel. It is the discretion of the police officer to store the vehicle in either an inside or outside storage facility.

(b) "Rotation list" means a list of persons engaged in the business of providing Tow Truck service, which list shall be maintained by the Police Chief or his or her designee for the purpose of rotating police dispatch of Tow Trucks in accordance with the provisions of this article, a Tow Agreement and other applicable law.

***Editor's note—**Ord. 2014-45, § 1, effective December 4, 2014, amended the title of Art. 17.

(c) "Tow Agreement" means a Non-Professional agreement entered into between the City and an owner of a Tow Truck that defines the obligations, procedures and terms of the Tow Truck Company being placed on the Rotation List, and is approved by the City Attorney's Office.

(d) "Tow Truck" means a motor vehicle which has been altered or designed and equipped for and primarily used in the business of towing vehicles by means of a crane, hoist, tow bar, tow line or dolly, or is otherwise primarily used to render assistance to other vehicles. A "roll-back carrier" designed to carry up to two vehicles, and a trailer for hire that is being used to transport a vehicle shall also be considered a Tow Truck under this Article. An automobile dismantler's tow vehicle or a repossession's tow vehicle shall not be considered a Tow Truck for purposes of this Article.

(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2004-67, § 1, eff. 8-10-04; Am. Ord. 2005-89, § 1, eff. 9-25-05; Am. Ord. 2007-53, §§ 1—3, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1703. INTENT.

It is the intent of this article to regulate the operation of Tow Truck services dispatched by the Police Department of the city pursuant to the authority conferred by the Vehicle Code.
(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2004-67, § 2, eff. 8-10-04; Am. Ord. 2005-89, § 2, eff. 9-25-05; Am. Ord. 2014-45, § 1, eff. 12-4-14).

SEC. 9-1704. DISPATCHING OF TOW TRUCKS.

Except as otherwise provided in Section 9-1705, the Police Chief or his or her designee shall dispatch Tow Trucks to perform Tow Truck services on a rotation basis from a rotation list established and maintained in accordance with the provisions of this article, and the Non-Professional Tow Agreement for the Fresno Police Department.
(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2004-67, § 3, eff. 8-10-04; Am. Ord. 2005-89, § 3, eff. 9-25-05; Am. Ord. 2007-53, § 4, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1705. EXCEPTIONS.

This article shall not apply to the following:

(a) Tow Truck services performed by automobile clubs, automobile associations or garages specified by the owner or driver of the towed vehicle;

(b) Tow Truck services performed for the abatement and removal of abandoned, wrecked, dismantled or inoperable vehicles or parts thereof pursuant to Section 22660, et seq., of the Vehicle Code; or

(c) Tow Truck services performed on an emergency basis to eliminate a dangerous or hazardous condition as determined by the police department, when the dispatcher determines that another Tow Truck can provide the most expeditious response; or

(d) Tow Truck services performed for the removal and storage of evidence vehicles.
(Am. Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2020-027, § 1, eff. 9-1-20).

SEC. 9-1706. APPLICATION FOR PLACEMENT ON ROTATION LIST.

Any person engaged in the business of providing Tow Truck service and desiring to be placed on the rotation list shall submit a signed application for a Non-Professional Tow List placement to the Police Chief or his or her designee. The application shall be in a form approved by the Police Chief or his or her designee and shall include the following:

(a) The applicant's name, home address, business address, and telephone numbers, including the names of persons doing business under fictitious names, members of partnerships, and officers of corporations or associations;

(b) A list of vehicles which will be used as Tow Trucks including a full description of each vehicle and its license number;

(c) The location of the applicant's place of business and storage facility; and

(d) Such other and further information as the Police Chief or his or her designee may require.

(e) No Tow Truck company shall accrue any vested rights as a result of being a party to a Non-Professional Tow Agreement, nor will any Tow Truck company be guaranteed placement on subsequent Non-Professional Tow Agreements for the Fresno Police Department. All applicants for any subsequent Non-Professional Tow Agreement will be reviewed and considered for inclusion at the time of the issuance of the subsequent Non-Professional Tow Agreement. Tow Truck company owners may be subject to an interview process and an inspection prior to approval. Tow truck companies currently on the Police Department rotation list who are in good standing, will receive priority reinstatement status on subsequent Non-Professional Tow Agreements for the Fresno Police Department.

(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2004-67, § 4, eff. 8-10-04; Am. Ord. 2005-89, § 4, eff. 9-25-05; Am. Ord. 2007-53, §§ 5, 6, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1707. INVESTIGATION.

The Police Chief or his or her designee shall cause an investigation to be made of the facts stated in the application, and shall within thirty days after completion of the investigation place the applicant on the rotation list unless any one of the following exists:

(a) The applicant has previously been removed from the rotation list for violations of the Non-Professional Tow Agreement for the Fresno Police Department;

(b) A material statement made in the application is untrue;

(c) A fact exists of which the Police Chief or his or her designee has knowledge which would be cause for removal or suspension of the applicant from the rotation list;

(d) The applicant's business or storage facility is not located within the geographical boundaries as set forth in the Non-Professional Tow Agreement for the Fresno Police Department.

(e) The applicant has a felony conviction; or

(f) The rotation list already consists of 20 or more tow companies. This does not preclude the Chief of Police or Designee at any time the ability to add a Tow Operator(s), if it is determined there is a need to better serve the community.

(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 98-71, § 1, eff. 10-23-98; Am. Ord. 2004-67, § 5, eff. 8-10-04; Am. Ord. 2005-89, § 5, eff. 9-25-05; Am. Ord. 2007-53, § 7, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2018-23, § 1, eff. 5-25-18; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1708. NONTRANSFERABILITY AND CHANGE OF CONTROL.

No person shall assign or subcontract their Non-Exclusive Tow Agreement for the Fresno Police Department under this article to another person.

Tow Operator agrees that if there is a change or transfer in ownership or control, other than transfers to "immediate family" as defined in Fresno Municipal Code Section 3-101(e), of the Tow Operator's business prior to completion of this Agreement, such change or transfer will terminate the Non-Professional Tow Agreement. This includes but is not limited to: changes in Corporate Board Members, Managers, Directors, Treasurer, Trustees, or ownership interests. All transfers of ownership or control to "immediate family" shall be approved prior to the execution of any transfer. "Immediate family" transfers will be subject to the final approval of the Chief of Police or his/her designee. "Immediate family" members will be required to pass background reviews, livescan fingerprint screening and will be required to possess the proper licensing certificates and insurance to perform tow operations for the City of Fresno Police Department. The "immediate family" transferee will also be required to execute a new Non-Professional Tow Agreement with the Police Department.

(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2004-67, § 6, eff. 8-10-04; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1709. REGULATIONS.

All persons on the rotation list shall:

(a) Comply with all laws of the state pertaining to Tow Trucks and Tow Truck service and all provisions of the Non-Professional Tow Agreement for the Fresno Police Department, and all City of Fresno zoning requirements;

(b) Charge reasonable towing fees not in excess of those charges that would have been charged for that towing or storage under the Tow Agreement or if the private

property is not located within the city, then the law enforcement agency that exercises primary jurisdiction in the county in which the private property is located;

(c) Comply with such other rules and regulations promulgated by the Police Chief or his or her designee.

(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2004-67, § 7, eff. 8-10-04; Am. Ord. 2005-89, § 6, eff. 9-25-05; Am. Ord. 2007-53, § 8, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1710. SUSPENSION.

Any Tow Truck company placed on the rotation list may be suspended by the Police Chief or his or her designee from such list if the Tow Truck company fails to comply with any of the conditions, regulations or requirements of this article. Upon learning of grounds for suspension, the Police Chief or his or her designee shall immediately, by written notice, inform the owner of the Tow Truck company of his action of suspension. The Police Chief or his or her designee may reinstate the Tow Truck company to the rotation list upon satisfactory proof that the Tow Truck company is in compliance with the conditions, regulations, and requirements of this article and has completed its suspension.

(Added Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 2005-89, § 7, eff. 9-25-05; Am. Ord. 2007-53, § 9, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14).

SEC. 9-1711. REMOVAL FROM ROTATION LIST.

Any Tow Truck company placed on the rotation list may be removed from such list in accordance with the provisions of the Non-Professional Tow Agreement for the Fresno Police Department.

Upon learning of grounds for removal, the Police Chief or his or her designee shall immediately, by written notice, inform the owner of the Tow Truck company of his or her action of removal.

(Am. Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 98-71, § 2, eff. 10-23-98; Am. Ord. 2007-53, § 10, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1712. APPEAL.

Any Tow Truck company suspended in excess of 30 days or removed from the rotation list for violation of the Tow Service Agreement, or fails to comply with any of the conditions, regulations or requirements of this article, shall have the right to appeal such order under Chapter 1, Article 4. If no appeal is filed within the time prescribed, the action of the Police Chief shall be final. Notwithstanding any other provision of this Code including Chapter 1, Article 4, in the event that any appeal is filed, the appellant shall not be allowed to participate in any tows or be placed on the Rotation List until such time as the Chief Administrative Officer finds that the appellant is entitled to be reinstated on the Rotation

List. Applicants for a position on the rotation list have no vested interest in the City of Fresno Non-Professional Tow Agreement for the Fresno Police Department and therefore have no right of appeal.

A Tow Truck Owner or Company does not have the right to appeal the City's decision to terminate The Non-Professional Tow Service Agreement when given a written 30-day notice. (Am. Ord. 79-168, § 1, eff. 11-16-79; Am. Ord. 80-171, § 37, eff. 12-26-80; Am. Ord. 81-157, § 20, eff. 12-11-81; Am. Ord. 98-65, § 13, eff. 10-1-98; Am. Ord. 2005-14, § 28, eff. 4-9-05; Am. Ord. 2005-89, § 8, eff. 9-25-05; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

SEC. 9-1713. AUTHORITY OF POLICE CHIEF.

The Police Chief for the City of Fresno is authorized to promulgate administrative rules and procedures in the form of the City of Fresno Non-Professional Tow Agreement for the Fresno Police Department, Administrative Order, or any other document necessary for the successful and effective implementation of this Article including establishing, amending, updating, restating and entering into towing agreements subject to approval of the City Attorney. Said administrative rules and procedures shall be in writing.
(Add Ord. 98-71, § 3, eff. 10-23-98; Am. Ord. 2004-67, § 8, eff. 8-10-04; Am. Ord. 2007-53, § 11, eff. 8-6-07; Am. Ord. 2014-45, § 1, eff. 12-4-14; Am. Ord. 2023-030, § 1, eff. 10-19-23).

ARTICLE 18 BILLIARD ROOMS

Sec. 9-1801. Definition.
Sec. 9-1802. Copy of Article to be Posted.
Sec. 9-1803. Hours of Operation.
Sec. 9-1804. Restrictions on Attendance of Minors.
Sec. 9-1805. Minors Allowed: Family Billiard Rooms.
Sec. 9-1806. Games of Chance Prohibited.
Sec. 9-1807. Construction and Sanitary Requirements.
Sec. 9-1808. Authority of Controller to Prescribe Additional Regulations.
Sec. 9-1809. Exemption from Article.
Sec. 9-1810. Permit Required.
Sec. 9-1811. Permit to be Conspicuously Posted on Premises.
Sec. 9-1812. Application; Application Fee.
Sec. 9-1813. Permit Issuance or Denial; Term.
Sec. 9-1814. Renewal; Change of Location; Fees.
Sec. 9-1815. Suspension and Revocation. Appeal.
Sec. 9-1816. Renewability of Revoked Permits.
Sec. 9-1817. Transferability and Assignability.

SEC. 9-1801. DEFINITIONS.

(a) "Billiards," as used in this article, means any of the several games played on a table surrounded by an elastic ledge or cushions, with balls which are impelled by cues and shall include all forms of a game known as pool.

(b) "Billiard room" means any public place wherein the game of billiards is permitted to be played and shall include any place where a fee is charged, which is directly or indirectly conditioned upon or related to the playing of the game of billiards. (Rep. and Added. Ord. 6057, 1962).

SEC. 9-1802. COPY OF ARTICLE TO BE POSTED.

A copy of this article shall be posted and maintained in a conspicuous place on the premises where the billiard room is conducted. (Rep. and Added Ord. 6057, 1962, based on former Sec. 7-203).

SEC. 9-1803. HOURS OF OPERATION.

No person shall operate a billiard room between the hours of 2:00 a.m. and 6:00 a.m., or permit or allow any person to remain in any billiard room between the hours of 2:00 a.m. and 6:00 a.m. This section, however, shall not be construed to prevent regular employees from performing necessary work within the premises. (Rep. and Added Ord. 6057, 1962, based on former Sec. 7-201).

SEC. 9-1804. RESTRICTIONS ON ATTENDANCE OF MINORS.

(a) No person under the age of eighteen years shall be in, remain in, enter or visit any billiard room, unless accompanied by his parent or guardian.

(b) No person having charge or control of any billiard room shall permit or allow any such person under the age of eighteen to be in, remain in, enter or visit any such billiard room, unless such minor person is accompanied by his parent or guardian.

(c) No person shall represent himself to have reached the age of eighteen years in order to obtain admission to such billiard room or to be permitted to remain therein when such person in fact is under eighteen years of age. (Rep. and Added Ord. 6057, 1962, based on former Sec. 7-202).

SEC. 9-1805. MINORS ALLOWED: FAMILY BILLIARD ROOMS.

The provisions of Section 9-1804 shall not apply to a family billiard room, subject to each and all of the following conditions:

(a) The applicant for a permit, or a permittee, shall apply in writing to the Controller for permission to allow minors in such billiard room, and agree to comply with the following additional rules and regulations applicable to such billiard room:

(1) No alcoholic beverages of any kind shall be sold, consumed or possessed by any person on the premises of the billiard room or on any other premises having access (other than by means of a public street) to the premises of the billiard room.

(2) No gambling, betting or wagering of any kind shall be suffered, allowed or permitted on the premises of the billiard room.

(3) No profanity of any kind shall be used, suffered, allowed or permitted on the premises of the billiard room.

(4) The curfew hours for minors shall be strictly observed and enforced on the premises of the billiard room.

(5) The owners, managers and operators, and each of them, of the billiard room shall be strictly responsible for the enforcement of all rules and regulations, and shall not permit any person violating any rule or regulation to remain in such billiard room, and shall not permit any habitual violator to enter such billiard room.

(6) At least four signs shall be posted and maintained at conspicuous places in and about the billiard room, printed in bold one-inch-high letters placed on a contrasting background, and setting forth the substance of the rules and regulations in this section.

(b) The Controller, with the approval of the Police Chief, after investigation, and after determining that the premises of the billiard room are suitable for minors, may endorse the permit issued under this article as follows: "Minors allowed, subject to Fresno Municipal Code Section 9-1805"; and thereafter, the provisions of Section 9-1804 shall not apply to the billiard room described in such permit.

(c) Whenever a permit has been endorsed as provided in subsection (b), the permit may be suspended or revoked for the violation of the rules and regulations set forth in subsection (a) in accordance with Section 9-1815. (Added Ord. 6382, 1964; Am. Ord. 80-171, § 38, eff. 12-26-80).

SEC. 9-1806. GAMES OF CHANCE PROHIBITED.

No owner, proprietor, manager or employee of any billiard room shall permit the use of a pea-ball or dice, or the playing of games of chance in such billiard room, or give any checks or tokens which can be redeemed for merchandise or cash. (Added Ord. 6057, 1962).

SEC. 9-1807. CONSTRUCTION AND SANITARY REQUIREMENTS.

A billiard room operating under the provisions of this article shall be so constructed and maintained that a clear and unobstructed view of the entire interior thereof may at all times be had from any entrance to such room. No partitions forming rooms, stalls, or other enclosures where the public congregates shall be permitted. This provision, however, shall not be construed to include the maintenance of washrooms, toilet rooms for proper purposes or the maintenance of closets for storing purposes exclusively. All billiard rooms shall be kept at all times in a clean, healthful and sanitary condition. (Added Ord. 6057, 1962).

SEC. 9-1808. AUTHORITY OF CONTROLLER TO PRESCRIBE ADDITIONAL REGULATIONS.

The Controller shall prescribe such additional regulations not inconsistent with the provisions of this article as are deemed necessary by him in the public interest to prevent the operation of billiard rooms from adversely affecting the public peace, health, safety or morals. Such regulations before becoming effective shall be approved by the Council. A copy of such regulations shall be furnished to every person holding a permit to conduct a billiard room. (Added Ord. 6057, 1962; Am. Ord. 80-171, § 39, eff. 12-26-80).

SEC. 9-1809. EXEMPTIONS FROM ARTICLE.

The provisions of this article shall not apply to any institution or organization which is conducted, managed or carried on wholly for the benefit of charitable purposes or from which profit is not derived, either directly or indirectly, by any individual, firm or corporation. (Added Ord. 6057, 1962).

SEC. 9-1810. PERMIT REQUIRED.

No person shall conduct, manage, operate or maintain a billiard room in the city without having first obtained a permit from the city so to do in the manner provided in this article. (Added Ord. 6057, 1962, based on former Sec. 7-204).

SEC. 9-1811. PERMIT TO BE CONSPICUOUSLY POSTED ON PREMISES.

The permit required in the preceding section shall be posted and maintained in a conspicuous place on the premises where such billiard room is located. (Added Ord. 6057, 1962).

SEC. 9-1812. APPLICATION, APPLICATION FEE.

(a) Any person desiring to obtain the permit required by Section 9-1810 of this Code shall file a verified application therefor with the Police Chief. Such application shall set forth the following information:

(1) Name, age and residence address of the applicant, if a natural person; or,

(2) If a corporation, its name, date and place of incorporation, address of its principal place of business and the names of all its officers, together with their respective addresses; or,

(3) If a partnership, association or unincorporated company, the names of partners or persons comprising the association, together with their respective addresses;

(4) Name, age and residence address of the person who is to manage the billiard room, if other than applicant;

(5) The address at which the billiard room is to be conducted; and

(6) A statement as to whether or not an application for a similar permit has been refused or cancelled by this or any other municipality in the state and, if so, a full statement of the reasons therefor.

(b) At the time of filing such an application, the applicant or person making application upon behalf of any firm or corporation, and the person who is to manage the billiard room, if other than applicant, shall be photographed and fingerprinted, and such photographs and fingerprints shall be made a part of the application provided for herein.

(c) The original application shall be accompanied by the fee designated in the Master Fee Resolution to defray the expense of acting upon such application. Such fee shall be in addition to any permit or license fee which is now or may hereafter be required to be paid. (Added Ord. 6057, 1962, based on former Sec. 7-204; Am. Ord. 80-115, § 85, eff. 8-8-80).

SEC. 9-1813. PERMIT ISSUANCE OR DENIAL; TERM.

(a) The Controller shall make an investigation of the facts stated in the application. After investigation, the Controller, with the approval of the Police Chief, shall issue a permit, which shall be effective for a period of one year from date of issuance, unless he shall find that the applicant is not a fit and proper person to conduct a billiard room or that the conduct of such billiard room at the location specified in the application would be detrimental to the public peace, morals, health or safety, in which event he shall deny the application.

(b) Any person aggrieved by the action of the Controller may file an appeal under Chapter 1, Article 4. If no appeal is filed within the time prescribed, the action of the Controller shall be final.

(c) No permit shall be issued until the permit fee provided in Section 9-1814 of this Code has been paid to the Controller. (Added Ord. 6057, 1962, based on former Sec. 7-204; Am. Ord. 80-171, § 40, eff. 12-26-80; Am. Ord. 81-157, § 21, eff. 12-11-81; Am. Ord. 98-65, § 14, eff. 10-1-98; Am. Ord. 2005-14, § 29, eff. 4-9-05).

SEC. 9-1814. RENEWAL; CHANGE OF LOCATION; FEES.

Any permit issued under the provisions of this article may be renewed from year to year upon application. Such application shall be made in the same manner as for an original application, and shall be made within thirty days after the date of expiration of such permit or the last renewal thereof; and if not so made, the permit shall be null and void and not renewable. The fee designated in the Master Fee Resolution shall be charged for any application for a yearly renewal of any permit issued under the provisions of this article. In addition to the original application fee, or any renewal application fee, an annual permit fee in the amount designated in the Master Fee Resolution shall be paid before any permit is issued under the provisions of this article. The fee designated in the Master Fee Resolution shall be charged for any application for a change of location of the billiard room for which a permit has been granted. (Added Ord. 6057, 1962, based on former Sec. 7-204; Am. Ord. 80-115, § 86, eff. 8-8-80).

SEC. 9-1815. SUSPENSION AND REVOCATION. APPEAL.

(a) Any permit granted under the provisions of this article may be suspended or revoked by the Controller when it appears that the billiard room for which the permit was granted is conducted in a disorderly or improper manner or in violation of any statute of the state, ordinance of the city, or regulation adopted pursuant to Section 9-1808 of this Code, or that the person conducting the billiard room is of an unfit character to conduct the same, or the billiard room for which the permit has been issued is being used to the detriment of the public or for a purpose wholly foreign to that for which the permit was issued.

(b) A permit granted under the provisions of this article shall not, by virtue of this section, be revoked, cancelled or suspended until a hearing is held by the Controller. Written notice of the time and place of such hearing shall be served upon the permittee at least five days prior to the date set for such hearing. Such notice shall also contain a brief statement of the grounds to be relied upon for revoking, cancelling or suspending such permit. Notice may be given either by personal delivery thereof to the person to be notified or by deposit in the United States mail in a sealed envelope, postage prepaid, addressed to such person to be notified at the business address appearing upon the application for such permit.

(c) Any person aggrieved by the action of the Controller may file an appeal under Chapter 1, Article 5. If no appeal is filed within the time prescribed, the action of the Controller shall be final. (Added Ord. 6057, 1962; Am. Ord. 80-171, § 41, eff. 12-26-80; Am. Ord. 98-65, § 15, eff. 10-1-98; Am. Ord. 2005-14, § 30, eff. 4-9-05).

SEC. 9-1816. RENEWABILITY OF REVOKED PERMITS.

Whenever a permit is revoked under the terms of Section 9-1815 of this Code, no application by the person whose permit has been revoked shall be considered by the Controller for a period of one year. (Added Ord. 6057, 1962; Am. Ord. 80-171, § 42, eff. 12-26-80).

SEC. 9-1817. TRANSFERABILITY AND ASSIGNABILITY.

No permit granted or issued under the provisions of this article shall be in any manner transferred or assigned, nor shall it authorize any person, other than is therein mentioned or named, to carry on the billiard room for which the permit was granted. (Added Ord. 6057, 1962).

ARTICLE 19 RESERVED*

*__Editor's note—__Ord. No. 2009-38, § 2, effective November 30, 2009, amended the Code by repealing former Article 19, §§ 9-1901—9-1908. Former Art. 19 pertained to dancing and entertainment, and derived from Ord. 1076; Ord. 2043; Ord. 3614; Ord. 3948; Ord. 5330 of 1958; Ord. 6115 of 1962; Ord. 6246 of 1963; Ord. 6568 of 1965; Ord. 70-21 of 1970; Ord. 70-31 of 1970; Ord. 79-116, effective July 27, 1979; Ord. 80-115, effective August 8, 1980; Ord. 80-171, effective December 26, 1980; Ord. 81-157, effective December 11, 1981; Ord. 82-51, effective June 11, 1982; Ord. 98-65, effective October 1, 1998; and Ord. 2005-14, effective April 9, 2005.

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ARTICLE 20 PICTURE AND LIVE ARCADES

Sec. 9-2001. Definition.
Sec. 9-2002. Visibility of Interior.
Sec. 9-2003. Application.

SEC. 9-2001. DEFINITION.

(a) As used in this article, a picture arcade shall mean any place, building or portion of a building which is a public place or to which the public or a segment thereof is admitted, whether or not an admission fee is charged or whether or not attendance is conditioned upon presentation of a membership card or token or other membership identification, where one or more coin operated, slug operated, electrically, electronically or mechanically controlled still or motion picture machines, projectors or video display devices are maintained to show still or motion pictures or other video display materials to five or fewer persons per machine or projector at any one time.

(b) As used in this article, a live arcade shall mean any place, building or portion of a building which is a public place or to which the public or a segment thereof is admitted, whether or not an admission fee is charged or whether or not attendance is conditioned upon presentation of a membership card or token or other membership identification where one or more actors, performers, contortionists, or dancers perform(s) in the presence of and is visible to five or fewer persons per booth through an opening or window or mirror in the booth which is a barrier between the occupant or occupants of each booth in the live arcade. (Added Ord. 85-174, § 1, eff. 12-13-85; Am. Ord. 86-183, § 1, eff. 12-26-86).

SEC. 9-2002. VISIBILITY OF INTERIOR.

(a) No picture arcade shall be maintained or operated unless the complete interior of the picture arcade and each booth therein is visible from a single designated location that shall be manned at all times during business hours to ensure that all activity and every patron at a booth or in an aisle that is used to access a booth is visible without obstructure from the single designated location. That single designated location may be, but is not limited to, the center of any and each building, if the entire building is used as a picture arcade, or of each portion of the building which is used as a picture arcade, or to the entrance to any place not within a building or portion thereof which is used as a picture arcade.

(b) No picture arcade shall be maintained or operated wherein the entrance or opening to any booth used for the viewing of still or motion picture or other video displayed or presented materials is fully or partially closed by a door, curtain or any other item or object, or by any architectural design which prevents an unobstructed view at the entrance or opening to each booth of the conduct of each occupant.

(c) No live arcade shall be maintained or operated unless the complete interior of the live arcade and each booth therein is visible from a single designated location that shall be manned at all times during business hours to ensure that all activity and every patron at a booth or in an aisle that is used to access a booth is visible without obstruction from the single designated

location. That single designated location may be, but is not limited to, the center of any and each building, if the entire building is used as a live arcade, or to the entrance to any place not within a building or portion thereof which is used as a live arcade.

(d) No live arcade shall be maintained or operated wherein the entrance or opening to any booth used for the viewing of one or more actors, performers, contortionists or dancers is fully or partially closed by a door, curtain or any other item or object, or by an architectural design which prevents an unobstructed view at the entrance or opening to each booth of the conduct of each occupant.

(e) Every picture arcade and every live arcade shall be equipped with overhead lighting of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than one footcandle as measured at floor level at all times during business hours. (Added Ord. 85-174, § 1, eff. 12-13-85; Am. Ord. 86-183, § 1, eff. 12-26-86; Am. Ord. 94-45, § 1, eff. 7-22-94; Am. Ord. 94-60, § 1, eff. 9-16-94).

SEC. 9-2003. APPLICATION. Any picture arcade and any live arcade lawfully in existence prior to the adoption of this article, made illegal hereby, shall conform to the provisions of this article within three months of the effective date of this article and as to any amendments hereto, within three months of the effective date of any amendments hereto. (Added Ord. 85-174, § 1, eff. 12-13-85; Ord. No. 86-183, § 1, eff. 12-26-86; Am. Ord. 94-45, § 2, eff. 7-22-94; Am. Ord. 94-60, § 2, eff. 9-16-94).

ARTICLE 21 CARD ROOM PERMIT REGULATIONS

Sec. 9-2101. Title.
Sec. 9-2102. Findings.
Sec. 9-2103. Definitions.
Sec. 9-2104. Conformance with State Law.
Sec. 9-2105. Existing Card Rooms Permits Continued.
Sec. 9-2106. No Vested Right.
Sec. 9-2107. Confidential Disclosure Unlawful.
Sec. 9-2108. Other Permits Required.
Sec. 9-2109. Exempt Organizations.
Sec. 9-2110. Card Room Permit Application.
Sec. 9-2111. Pointholder and Key Management Employee Permit Application.
Sec. 9-2112. Card Room Operations Certificate Application.
Sec. 9-2113. Application Fees.
Sec. 9-2114. Application Review and Approval Procedures.
Sec. 9-2115. Card Room Permit and Pointholder Permit Approval Process.
Sec. 9-2116. Card Room Operations Certificate Approval Process.
Sec. 9-2117. Issuance of Permits.
Sec. 9-2118. Expiration of Permits.
Sec. 9-2119. Administrative Renewal of Card Room Permits.
Sec. 9-2120. Renewal of Card Room Permit Ministerial.
Sec. 9-2121. Name Change.
Sec. 9-2122. Employee Work Permits.
Sec. 9-2123. Grounds for Denial, Revocation or Suspension of Registration.
Sec. 9-2124. Denial, Suspension and Revocation of Registration of Work Permit.
Sec. 9-2125. Transfer of Interest of Pointholder in Card Room—Permission Required.
Sec. 9-2126. Investigation. Updating.
Sec. 9-2127. Revocation, Suspension and Other Penalties.
Sec. 9-2128. Notice of Decision to Revoke or Suspend.
Sec. 9-2129. Specific Hearing Rules.
Sec. 9-2130. New Application Upon Revocation.
Sec. 9-2131. Annual Permit Fees.
Sec. 9-2132. Gross Revenue Permit Fees.
Sec. 9-2133. Records, Reports, and Supplemental Information.
Sec. 9-2134. Access to Records and Facilities.
Sec. 9-2135. Rules and Regulations.
Sec. 9-2136. Changes in Rules and Regulations.
Sec. 9-2137. Emergencies.
Sec. 9-2138. Penalties.
Sec. 9-2139. Severability.

SEC. 9-2101. TITLE.

This article shall be known as the City of Fresno Card Room Ordinance.
(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2102. FINDINGS.

The Council finds and determines as follows:

(a) That the city's current card room ordinance as set forth in Sections 8-101 through 8-106.5 of the Fresno Municipal Code* needs to be replaced by an ordinance that expands permitted games, authorizes an increase in the number of card tables permitted at any one address, limits the number of card rooms, contains strict regulations in time, place, and manner for operation of card rooms, and allows the city to receive revenues from the operation of such card rooms.

(b) That an ordinance closely regulating card room operations within the City of Fresno is necessary to protect the interest of the citizens of Fresno.

(c) That any card room, if permitted, shall be confined to certain zoning districts as identified in Chapter 15, the Citywide Development Code.

(d) That the city's continued limitations on the number and location of card room operations will minimize any detrimental effect from the physical presence of card rooms in the city.

(e) That due to social problems inherent in legal gaming activities, based on the foregoing findings and for the welfare of the community, said ordinance shall permit not more than 51 card tables within the City. No card room shall have less than ten card tables per card room or more than 51 card tables per card room. No temporary gaming tables will be permitted in a cardroom for any purpose including, but not limited to, instruction, special events or tournaments.

(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 98-39, § 1, eff. 7-20-98; Am. Ord. 2003-51, § 1, eff. 7-28-03; Am. Ord. 2012-16, § 1, eff. 9-2-12; Am. Ord. 2021-004, § 1, eff. 3-7-21).

SEC. 9-2103. DEFINITIONS.

(a) "Applicant" shall mean every "person", as defined under this Code in Chapter 1, Article 2, filing an application with the city seeking a card room permit or any other permit required under this article.

(b) "Beneficial Interest" shall mean that interest in a card room held by the beneficiaries of a trust which, as part of the corpus thereof, holds a financial interest in such card room.

(c) "Card Playing Area" means one or more rooms within a Card Room where any gaming occurs.

(d) "Card Room" shall mean any building or structure, or portion thereof, for which a card room permit is obtained and in which legal gambling or gaming is conducted. The term

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***Editor's note—**This reference was made under the 1955 Code to a nonexistent code provision.

shall include any restaurant, bar, assembly room, meeting room or office which is a part of or appurtenant to the room or rooms in which legal gambling or gaming is conducted. The term shall also include the business of operating the card room and those business enterprises which are a part thereof.

(e) "Card Table" shall mean any table or any other surface upon which any game is played.

(f) "Commence" shall mean and include the terms "commence", "begin", "initiate", "start", "open" and "establish".

(g) "Conduct" shall mean and include the terms "conduct", "transact", "maintain", "prosecute", "practice", "manage", "operate", "permit", "allow", "suffer" and "carry on".

(h) "Conviction" or "Convicted" shall mean a plea of guilty, a final verdict of guilty or a conviction following a plea of nolo contendere.

(i) "Council" shall mean the Council of the City of Fresno.

(j) "Day" shall mean "calendar day" unless otherwise expressly stated.

(k) "Employee" means every person, who acts either as agent or employee of the permittee or under the direction of the permittee of any card room. A management corporation is an employee for purposes of this article.

(l) "Filing and Processing Fees" shall mean the imposition, pursuant to this article and/or any resolution of the Council, of fees and/or deposits to be used for the purpose of reimbursing the city for its costs of administering the provisions of this chapter.

(m) "Financial Interest" means any direct or indirect financial interest in the management, operation, ownership, profits or revenue (gross or net) of a card room. A direct financial interest means a monetary investment in a card room. An indirect financial interest means owning one percent (1%) or more of any entity, i.e., any business, corporation, joint venture partnership or trust that in turn has a direct financial interest in a card room.

(n) "Game" shall mean legal gambling or gaming as defined below.

(o) "Gross Revenue" means and includes seat rental fees, membership fees, table revenues, rental fees and charges, and any and all other gaming revenues derived from activities conducted on or within the card room premises.

(p) "Key Management Employee" shall mean (1) any person, whether or not such person is a named officer or director of the permittee, with the power to (i) direct operations and (ii) direct and supervise several employees of a card room; (2) any person with the actual or apparent authority to direct the counting of revenue generated by the card room, and (3) any person employed or engaged by the permittee to manage the card room.

(q) "Legal Gambling" or "Gaming" shall mean any card game played for currency, check, or any other thing of value which is not prohibited and made unlawful by Chapter 9 (commencing with Section 319) or Chapter 10 (commencing with Section 330) of Title 9 of Part 1 of the Penal Code or by this article.

(r) "Lease" means any formal or informal, written or oral contract or understanding or arrangement whereby any person operating a card room obtains the use or possession of any property, real or personal, to be used, occupied, or possessed in connection with the conduct of games at any card room. The term "lease" includes without limitation, payments to an affiliated person under a real property lease, a personal property lease, an unsecured note, a deed of trust, a mortgage, or a trust indenture.

(s) "Lessor" means any person who leases any property, real or personal, to a person operating a card room for use in connection with the conduct of games or related activities.

(t) "Manager" shall mean any agent or employee of a permittee whose duties include but may not be limited to the following: The making or changing of policy, hiring or firing employees, and/or generally exercising independent judgment in the operation of the card room. A manager need not have a financial interest in the permittee.

(u) "Permit" shall mean a permit issued pursuant to this article allowing the operation of a card room.

(v) "Permittee" shall mean the person or entity to whom (which) a permit is issued.

(w) "Permit Fees" shall mean all fees levied upon each permittee pursuant to this article.

(x) "Physically Separated" means any room or area completely separated from the card playing area of a card room by walls which are at least six feet in height, except doors and entryways, provided each door and entryway is staffed with a uniformed security employee pursuant to Section 9-435(c) of this article. The room or area shall contain no card tables.

(y) "Playing Cards" or "Card Games" shall mean the participation in legal gambling or gaming at a card room.

(z) "Pointholder" shall mean any person having a financial interest or beneficial interest in the permittee as well as all stockholders of any entity having a financial interest or beneficial interest in the permittee.

(aa) "Premises" shall mean land together with all buildings, improvements, and personal property located thereon and related to card room use.

(bb) "Security Deposit" shall mean any security or deposit required by this article to ensure the prompt and full payment of any permit fees imposed by the city pursuant to this article.

(cc) "Satellite Wagering Facility" shall mean any area of a Card Room in which satellite wagering or parimutuel wagering is conducted pursuant to Section 9-2135(f) of this Code.

(dd) "Work Permit" shall mean a permit issued pursuant to this article authorizing a person to be an employee of a card room.

(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 98-72, § 1, eff. 10-23-98; Am. Ord. 2009-12, § 10, eff. 5-1-09).

SEC. 9-2104. CONFORMANCE WITH STATE LAW.

(a) It is the stated purpose of this article to regulate card rooms in the City of Fresno concurrently with the State of California, and to impose local controls and regulations upon card rooms as permitted in the "Gambling Control Act" as codified in Division 8, Chapter 5 of the California Business and Professions Code (commencing with Section 19800). All such references to the Gambling Control Act are to Division 8, Chapter 5 of the California Business and Professions Code, as may be amended.

(b) In conformance with State law, the playing of percentage games is impermissible. Any fees paid by patrons of card rooms shall not be tied to the amount of a player's bet, the size of the pot, winnings that may be collected or money that changes hands among the players at the table. (Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 2004-32, § 1, eff. 4-24-04).

SEC. 9-2105. EXISTING CARD ROOM PERMITS CONTINUED.

(a) Each valid card room permit in effect on January 1, 1994 shall be permitted to continue operation so long as the card playing area, the number of tables, the games played, the location, the permittee, are not amended in any way.

(b) In the event a card room permittee described in subsection (a) of this section elects to play games that are played at card rooms permitted under Sections 9-2115 through 9-2117 of this article in addition to or in lieu of the games played at the card room prior to January 1, 1994, the card room shall in such event be subject to the provisions of Sections 9-2118 through 9-2139 of this article. (Added Ord. 94-50, § 2, eff. 8-19-95; Am. Ord. 95-96, § 1, eff. 12-29-95)

SEC. 9-2106. NO VESTED RIGHT.

This article does not create any vested or other property right of any kind in any permittee, pointholder, key management employee, or other person. The city reserves the right to, at any time, amend, modify or repeal the provisions of this article and to otherwise regulate or prohibit any privilege exercised thereunder. This reservation includes but is not limited to the right of the city to amend, from time to time, a permit issued pursuant to the terms of this article by resolution of the Council. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2107. CONFIDENTIAL DISCLOSURE UNLAWFUL.

It shall be unlawful for any individual to disclose to any unauthorized person any data or information required under the provisions of this article or other laws to be kept and maintained confidential. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2108. OTHER PERMITS REQUIRED.

It is the declared policy of the city that pointholders, key management employees, managers and employees apply for and be issued permits after an individual personal background investigation, and that the involvement of such persons be controlled so as to better protect the public health, safety, good order and public welfare.

(a) It shall be unlawful for any person or other entity to commence or conduct or purport to commence or conduct, within the city any business, activity, enterprise, undertaking, or place where tables or other items or units of furniture are used directly or indirectly for playing cards or card games and for the use of which a fee, commission, or compensation is directly or indirectly charged, accepted, or received from players or participants in any such playing of card games until such person shall have first obtained a card room permit and until such permittee has secured a card room operations certificate for the operation of such card games at specific premises.

(b) An applicant for a card room permit or other permit required under this article is seeking the granting of a privilege. Therefore, the burden of proving that all qualifications have been met to receive any such permit is at all times on the applicant. An applicant must accept all risks of adverse public notice, publicity, embarrassment, criticism, financial loss, or all other actions and consequences which may result from activities with respect to reviewing, processing, approving or disapproving any application, and, a waiver of any claims for damages against the city or its agents resulting therefrom shall be acknowledged upon the filing of an application.

(c) An applicant for a permit or permit pursuant to this article may claim any privilege afforded by the Constitution of the United States in refusing to answer questions by the city. However, a claim of privilege with respect to any testimony, evidence, or requested information pertaining to an application may constitute sufficient grounds for denial of any such permit or permit. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2109. EXEMPT ORGANIZATIONS.

(a) Exempt organizations may provide card tables and card games for the exclusive use of their members and shall be exempted from obtaining a card room permit pursuant to this article as long as the exempt organization complies with the Gambling Control Act, all other state federal and local laws, and provided that such exempt organization complies with this section. All such card tables shall be for the exclusive use of members of the exempt organizations or nonpaying guests, and no charge is made for the use of the card tables.

(b) An authorized representative of the exempt organization shall file a Declaration of Exemption executed under penalty of perjury with the Controller that sets forth the name and address of the exempt organization, the number of tables to be operated, and a declaration that the exempt organization and its members qualify for exemption from the Gambling Control Act and from permitting hereunder; the Declaration of Exemption shall be accompanied by proof of the valid and unrevoked tax exempt status of the exempt organization granted by the Franchise Tax Board and/or the Internal Revenue Service. No registration fee shall be required.

(c) No exempt organization shall operate, conduct, or carry on legal gaming within any building, structure, lot, or premises within any calendar week, if any other exempt organiza-

tion has conducted, carried on, or operated legal gaming within such building, structure, lot or premises during the same calendar week. (Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 96-44, § 1, eff. 7-19-96; Am. Ord. 2004-32, § 2, eff. 4-24-04).

SEC. 9-2110. CARD ROOM PERMIT APPLICATION.

(a) Any person desiring or proposing to commence or conduct any business, activity, enterprise or undertaking pertaining to or involving a card room, shall file an application with the City Clerk using such forms as are provided by the city. Each application shall contain and each applicant shall execute a statement as follows: "The undersigned applicant(s) declares under penalty of perjury that the foregoing is true and correct."

(b) The card room permit, if granted, will be issued only in the name of an individual, a sole-proprietorship, a partnership, or a corporation (such entity to be referred to as permit applicant), and, the permit shall require that, concurrent with the granting of the card room permit, each pointholder and key management employee of the permit applicant be issued permits allowing such individuals or entities to be involved in the activities, profits and direction of the card room operation (such individuals and entities to be referred to as pointholder permit applicants and key management employee permit applicants respectively). Pointholder permits shall be issued only in the name of an individual. City officials, city employees, and relatives of Council Members, Department Directors and Management and Confidential employees shall not be eligible to apply for card room permits, pointholder permits or any form of employee permit or registration card. For purposes of this section "relatives" means any person who is related within the third degree to City Council Members, Department Directors, and Management and Confidential employees of the city by blood or marriage, and includes a spouse, child, step-child, parent, grandparent, grandchild, mother, sister, half-brother, half-sister, aunt, uncle, niece, nephew, parent-in-law, brother-in-law, and sister-in-law or another individual living in the same household.

(c) In addition to other information as may be required by said application forms for a card room permit, the applicant shall complete and provide the following information in as great detail as is available or as the City Manager or his or her designee may require:

(1) The date of the application;

(2) The true name of the applicant;

(3) The status of the applicant as being an individual, a sole proprietorship, a partnership or a corporation;

(4) If the applicant is an individual, the residence and business address and personal history record of such applicant;

(5) If the applicant is other than an individual, the name, residence, and business address of each of the partners or stockholders who qualify as pointholders and the name, residence, and business address of each of the officers and directors of the entity. For

purpose of this ordinance such officers and directors shall be deemed "managers" as defined in this article above and shall be subject to all terms and conditions that managers are subject to.

(6) An application for a pointholder's permit, including a personal history record, for every pointholder who has, or is proposed to have, a financial interest, direct or remote, in the proposed card room operation;

(7) An application for a key management employee's permit, including a personal history record, for each individual who is or is proposed to be a key management employee of the proposed card room;

(8) An application for a manager's permit, including a personal history record, for each individual who is or is proposed to be a manager of the proposed card room.

(9) A description of the premises to be used in relation to card room activity including but not limited to card playing area, restaurants and parking;

(10) A development concept including floor plans, site plan, schematics and renderings;

(11) A statement of the games proposed to be played including any specific rules thereto;

(12) The number of card tables to be placed, employed or used;

(13) A description of any other business conducted or proposed to be conducted on the premises;

(14) A financial plan and source of funding for the development including projected development cost;

(15) A statement of the applicant's experience in the operation and management of card rooms and/or other lawful gambling and/or other related activities;

(16) A three-year cash flow projection, which shall be a confidential document and not open to public inspection or disclosure;

(17) A statement that such premises will conform to all the laws of the state and the city for occupancies of the nature proposed;

(18) A complete description and layout of all security measures proposed in as great a detail as available, which shall be a confidential document and not open to public inspection or disclosure;

(19) If the City Manager or his or her designee determines that a landlord whose lease rental payments are based upon a percentage of the revenues or profits of the card room or financier, by reason of the extent of his holdings or his inherent financial control, cannot, in fact, be separated from the card room, and, that as a practical matter, a single entity exists regardless of the apparent form of the organization, he or she may require that all such individuals be designated pointholders and subject to all investigatory, financial and background reporting procedures established by this article for card room pointholders. Any such determination shall not, however, be deemed to make any such lessor an owner or operator of the card room for purposes of this ordinance or applicable state law.

(20) Each application for a card room permit, a pointholder's permit, a manager's permit, or a key management employee's permit shall include the following:

(i) A statement that the applicant understands that the application shall be considered only after a full background investigation and report has been made by such members of city staff as are designated by the City Manager;

(ii) A statement that the applicant understands and agrees that any business or activity conducted or operated under any permit or permit issued under such application shall be operated in full conformity with all the laws of the state and the laws and regulations of the city applicable thereto, and that any violation of any such laws or regulations in such place of business, or in connection therewith, may render any permit or permit therefor subject to immediate suspension or revocation;

(iii) A statement that the applicant has read the provisions of this article and particularly the provisions of this section and understands the same and agrees to abide by all rules and regulations contained in this article;

(iv) A complete statement of financial position for each applicant. The financial statements required by this subsection shall be confidential documents and shall not be open to public inspection. Documents shall be available only to those officers and employees having direct jurisdiction involving the provisions of this article and to any court of competent jurisdiction where any matter relating thereto may be actually pending.

(21) Concurrently with the filing of their applications, the card room permit applicant and the pointholder and key management employee permit applicants shall be fingerprinted and photographed by the Fresno Police Department. Applicants shall authorize the city to obtain any available criminal offender record information relating to applicant and shall further authorize the updating of that information on an annual basis if a permit is granted;

(22) If an applicant for a card room permit is a publicly-traded corporation, each person having a beneficial interest of at least 5% in the applicant corporation shall be identified and may be required to meet all the requirements for applicants and permittees. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2111. POINTHOLDER AND KEY MANAGEMENT EMPLOYEE PERMIT APPLICATION.

As set forth in Section 9-2110, the applications for all pointholder and key management employees shall be submitted as part of the application for a card room permit.

Each permit applicant shall be responsible for providing complete and accurate information and for signing the permit application. However, it shall be the responsibility of the card room permit applicant (or permittee for subsequent applications) to submit the completed applications and pay any application fees.

Failure to submit complete applications for each proposed pointholder and key management employee may be grounds for denial or revocation of a card room permit. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2112. CARD ROOM OPERATIONS CERTIFICATE APPLICATION.

A card room operations certificate shall be issued only to a card room permittee. This certificate must be applied for concurrently with the card room permit.

The card room operations certificate application shall be filed with the City Clerk. In addition to other required information as may be set forth on site plan application forms provided by the city, the application shall include the following:

(a) Detailed floor plans of the interior of the proposed card room facility specifying at a minimum:

(1) The location of all card playing areas;

(2) The manner in which the card playing areas shall be separated from other areas;

(3) The location of any and all other proposed businesses and facilities within the card room premises.

(b) Detailed plans of the parking facilities including a lighting and security plan.

(c) A detailed statement of all proposed security measures, both physical and operational, including an acknowledgment by the permittee of liability for the security and safety of the patrons, or a statement acknowledging limitations on the liability of the permittee for the security and safety of the patrons and that the cardroom has been posted to provide adequate notice to the patrons of said limitations.

(d) A detailed statement and description of all plans, both physical and operational, for the handling of money, including but not limited to provisions, if applicable, for the following:

(1) Purchase of chips and protection against counterfeit chips;

(2) Check-cashing or ATM card-cashing procedure;

(3) Procedures for bringing money to or removing money from the premises.

(4) Procedures for determining and depositing daily gross receipts.

(e) An evaluation of the internal accounting and administrative control system proposed to be used by applicant, performed by a certified public accountant.

(f) Evidence of compliance with any prerequisites for compliance with the State Gambling Control Act including but not limited to valid registration from the Attorney General of the State of California.

All information provided regarding security measures, internal controls, or provisions relating to the handling of cash, chips, and cards shall be deemed confidential and shall not be available for public inspection unless required by law. (Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 98-39, § 2, eff. 7-20-98; Am. Ord. 2004-32, § 3, eff. 4-24-04).

SEC. 9-2113. APPLICATION FEES.

For purposes of clarification, the fees set forth in this article are for both regulation and revenue purposes and are levied pursuant to the authority of Article XI, Section 5 of the Constitution of the State of California. Each application for any permit or permit shall be subject to fees and deposits, payable to the city as follows:

(a) A card room permit application fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time which shall be retained by the city for the payment of the costs of investigation.

(b) A pointholders and key management employees permit application fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time which shall be retained by the city for the payment of the costs of investigation.

(c) An employee work permit application fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time which shall be retained by the city for the payment of the costs of investigation.

(d) A card room permit fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time which shall be retained by the city for the payment of the costs of investigation which shall be paid to the city prior to the issuance of the card room permit.

(e) No additional fee shall be required for the card room site plan certificate.

(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2114. APPLICATION REVIEW AND APPROVAL PROCEDURES.

Whenever a card room permit application pursuant to this article has been filed and all application and permit fees are deposited with the City Clerk, the City Clerk shall immediately refer such application, or a true copy thereof, to the City Manager and the Police Chief. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2115. CARD ROOM PERMIT AND POINTHOLDER PERMIT APPROVAL PROCESS.

(a) **Investigation and Report.** Upon receipt of a card room permit application, the City Manager or his or her designee shall cause an investigation to be made covering all matters relevant to the proposed activity of the applicant, individual pointholders, and managers. Such matters may include but are not limited to the following:

(1) Identity, character and background of the permit applicant, all individual pointholders, and all managers;

(2) Interior floor plan of buildings and site plan as to parking, traffic movement and aesthetics;

(3) Compliance with city's general plan, zoning, environmental requirements, ordinances and other laws;

(4) Type of tables to be used and their proposed locations, area where food and beverages are proposed to be served and means for excluding persons under 21 years of age from card playing areas;

(5) Type and degree of security personnel and facilities to be provided;

(6) The financial stability of the pointholders involved in the application and the financial ability of the applicant to comply with the conditions and requirements of the city and other governmental and legal requirements and conditions in the event the application is approved.

Following the investigation, the completed report of the investigation together with the City Manager's findings and recommendations shall be forwarded to the Council. The Council shall not consider any application for a card room permit or individual permits until the City Manager's findings and recommendations have been forwarded for review.

(b) **Notice.** At such time as the City Manager forwards the findings and recommendations to Council, the City Clerk shall give at least ten days' written notice of the time and place of the Council's hearing on the card room permit application to the applicant, to every person whose name and address appears on the last equalized County Assessment Roll as the owner of any property within three hundred feet of the exterior boundaries of the premises of the proposed card room, and to every person filing with the City Clerk a written request for notice of any hearings relating to proposed card rooms.

(c) **City Council Hearing and Determination.** In the event a full and complete application for a card room permit is presented to the Council, and the payments required by this article in connection therewith have been duly made to the city, and the investigations and reports required under the provisions of this article have been duly completed, the Council shall have jurisdiction to consider such application.

At the time and place set for hearing of an application for a card room permit, the Council shall consider the application, the City Manager's findings and recommendations, including the report of the investigation, written testimony and public testimony. Within a reasonable time after the close of the hearing, the Council shall make a determination on the application.

The Council by resolution shall either grant, conditionally grant, or deny the card room permit application. If the Council rules that an application be denied, the order will be accompanied by written reasons upon which the order is based. All such orders will be made public. It shall be possible for the Council to approve tentatively the application of a permit applicant, but, disapprove the application for a permit of one or more of the pointholders. In such cases the Council can grant the permit applied for subject to the condition that any pointholder, or manager disapproved of be removed as an individual having any interest or control in the card room. Compliance with the removal condition shall be monitored, reviewed and approved of by the City Manager, prior to final issuance of the card room permit.

Chapter 15, the Citywide Development Code, limits the location of Small-Scale Entertainment and Recreation, which includes cardrooms in its definition in 15-6704, to certain specified zone districts. In the event that more than one complete application is filed with the city within a thirty-day period, all such applications will be reviewed and considered by the city. The city shall not accept for filing, review, or consider any additional applications until the complete applications filed during the thirty-day period have been reviewed and considered by the city and final action on them has been taken by the Council. The Council shall determine, in its judgment, which, if any, of the various applicants who wish to open a card room within such area will receive a card room permit. In determining whether to grant a permit, the Council shall be guided by the policy that permits shall be issued only to those persons who will operate such permitted card rooms so as to best protect the public health, safety, morals, good order and welfare of the residents of the city. If multiple applicants meet all the requirements for issuance of a permit, the card room permit shall be granted to the qualified applicant whom the Council, in its sole discretion, determines best meets the following criteria:

(1) Least disruptive location;

(2) Best program for policing the operation;

(3) Greatest revenues potential for the City of Fresno;

(4) Greatest experience and financial ability of applicant;

(5) Best potential for quality operation;

(6) Any other considerations that will protect the public health, safety, order, and welfare of the residents of the City of Fresno.

The action of the Council in accordance with this article shall be final.

(d) **Requirements for Issuance.** The Council may grant a card room permit only if it determines that:

(1) The proposed card room use will not result in the substantial aggravation of crime problems or make law enforcement unduly difficult.

(2) The proposed card room use is not detrimental to the public peace, health, safety and welfare.

(3) The proposed card room use is in compliance with all laws, including but not limited to the city's zoning, fire, building or other ordinance; and

(4) The proposed card room use would be consistent with the purposes and provisions of this article and is not contrary to public interest.

(e) **Grounds for Denial.** The Council may, in its discretion, deny or condition a permit or permit application for any of the following reasons, without being limited thereto, or for any other reason consistent with the general policy for this article:

(1) Conviction of any crime punishable as a felony or of any crime of violence, any crime involving fraud, gambling, bookmaking, thievery, bunco, moral turpitude, or any

crime involving evasion of taxes, or any other crime of moral turpitude indicating a lack of business integrity or business honesty, whether committed in the State of California or elsewhere, whether denominated as a felony or as a misdemeanor and notwithstanding the passage of time since the conviction.

(2) Failure of the applicant to have a valid registration from the Attorney General of the State of California issued pursuant to the Gambling Control Act.

(3) Failure of the proposed business or activity to be operated in compliance with federal, state or city laws or regulations.

(4) Identification by any law enforcement agency, legislative body or crime commission as a member of, or an associate of, organized criminal elements.

(5) Knowingly making any false statement in the application or as to any other information presented as part of the application process.

(6) Failure to satisfy the Council as to the source of funds to be invested in the proposed venture.

(7) Prior unsuitable operation as a card or gaming permittee in another jurisdiction without regard to whether disciplinary action was taken at that time or whether the acts were sufficient to justify revocation of a permit.

(8) Applicant does not have the financial capability or business experience to operate a card room in a manner which would adequately protect the patrons of the card room and the citizens of the City of Fresno.

(9) Applicant is presently under indictment or the subject of a criminal complaint for any of the crimes described in subsection (e)(1) above.

(10) Making or causing to be made any statement in an application or document provided to the city or orally to a city officer, employee, or agent in connection with an application, which statement was at the time and in the light of the circumstances under which it was made, knowingly false or misleading.

(11) Lack of evidence that there is adequate financing available to pay potential and/or current obligations and, in addition, to provide adequate working capital to finance opening of the card room proposed.

(12) Failure of any person named in the application when summoned by the Council to appear and testify before it or its agents at such time and place as it may designate.

(13) Inadequate security.

(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 2004-32, § 4, eff. 4-24-04; Amd. Ord. 2009-12, §§ 5—7, eff. 5-1-09; Am. Ord. 2021-004, § 1, eff. 3-7-21).

SEC. 9-2116. CARD ROOM OPERATIONS CERTIFICATE APPROVAL PROCESS.

(a) **City Manager Authorized to Grant.** The application for a card room operations certificate and all related materials including detailed site plans, and detailed statements of security and operations procedures shall be reviewed by the City Manager and such staff as he or she may designate. The plans and specifications required by this section shall be in sufficient detail to obtain building permits.

The City Manager shall have the authority to grant, conditionally grant or deny issuance of a card room operations certificate in accordance with the criteria set forth in this article.

The City Manager shall approve or disapprove any plans, specifications or proposed procedures within 40 days of receipt thereof. Any disapproval shall be in writing and shall include reasons for the disapproval. The applicant, upon receipt of a disapproval, shall revise those plans, specifications or procedures which are disapproved and resubmit to the City Manager.

(b) **Criteria for Issuance of a Card Room Operations Certificate.** A card room operations certificate is required before a card room permittee may commence operations. The certificate shall be issued when all of the following have been complied with:

(1) The applicant has a valid card room permit;

(2) The card room site has been fully developed in accordance with all site plans and specifications submitted to and approved by city and the premises have been inspected to verify compliance with all such plans and specifications.

(3) The applicant has taken all steps necessary to insure that the card room will be operated in the manner set forth in this article and as approved by the Council and has documented such to the satisfaction of the City Manager;

(4) All zoning, environmental, building and any other local or state requirements for the design, construction or operation of the card room have been complied with.

(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2117. ISSUANCE OF PERMITS.

If the action of the Council, or the City Manager as appropriate, on any application is to grant the same, the Controller may thereupon issue the necessary permits and renewals thereof upon payment of fees as required by this article, until such time as such permit is either suspended, revoked, or expires.

(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2118. EXPIRATION OF PERMITS.

Permits issued under the provisions of this article shall be and remain valid until either surrendered in writing or allowed to expire by the permittee or suspended or revoked by the city as provided in this article. Except as herein provided, card room permits shall, unless renewed, expire annually on the anniversary date of their issuance. The card room operations certificate shall be and remain valid as long as a card room permit is valid and no physical, procedural changes, or operational changes are made with respect to the card room.

In the event of surrender, suspension, revocation, or expiration, no permit fee or any portion thereof shall be refunded.

(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2119. ADMINISTRATIVE RENEWAL OF CARD ROOM PERMITS.

(a) The holder of an unsurrendered, unexpired, unsuspended, unrevoked, and valid card room permit issued pursuant to the provisions of this article shall be entitled to up to four administrative annual renewals, in accordance with the following procedure:

(1) An application for renewal of any such permit shall be filed with the office of the Controller not later than 30 days before the expiration date of the permit for which renewal is sought.

(2) If such application for renewal is not filed within the time specified by subsection (1), such permittee may thereafter, but not later than the expiration date of the permit, file a written application for renewal of any such permit, but in such event, such permittee shall pay a penalty fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time, for each day of delinquency.

(3) The application for renewal shall be accompanied by the full amount of the required renewal permit fee and other permit fees in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time.

(4) The card room permittee shall file with the Controller an affidavit made subject to the penalties of perjury on a form approved by the City Attorney containing a full and complete statement including the following information:

(i) All individuals with whom the permittee has any operating agreements pertaining to the permitted operation;

(ii) All pointholders, key management employees and managers including their full, true and correct names and addresses;

(iii) The full, true, and correct names and addresses of each and every new key management employee.

(b) Failure to make full payment of fees, or failure to file any affidavit and/or certification and attestation or the filing of any false statement in any affidavit, and/or certification and attestation, as is required by this section may be deemed grounds for the revocation of such card room permit pursuant to the procedures set forth in this article.

(c) After expiration of the fourth administrative renewal period, no further administrative renewals shall be permitted, and the permit shall be deemed expired. The permit holder may reapply for a new permit, which shall be heard by the Council, in accordance with the terms of this article.
(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 2021-041, § 1, eff. 10-25-21).

SEC. 9-2120. RENEWAL OF CARD ROOM PERMIT MINISTERIAL.

For the administrative renewals allowed under Section 9-2119, upon compliance by a card room permittee with the requirements of Section 9-2119, and if no material changes have

occurred that have not already been acted upon, the card room permit shall be deemed renewed for another one-year period and the Controller shall issue such renewal provided that permittee is in compliance with all other terms and conditions of this article and of the card room permit.

(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 2021-041, § 2, eff. 10-25-21).

SEC. 9-2121. NAME CHANGE.

(a) The permittee shall register any proposed change in the name of the permitted card room or of the corporate permittee with the Controller thirty days before the new name can be advertised or otherwise made known to the public.

(b) The fee for a name change as set forth in the Master Fee Schedule established by resolution of Council shall accompany the application to register the proposed name.

(c) The Controller shall issue a new permit under the new name within ten days after the permittee has registered the name with the Controller.
(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2122. EMPLOYEE WORK PERMITS.

(a) It shall be unlawful for any permittee to employ any person to work in a card room without such person having been first registered with the Police Chief.

(b) Each Key Management Employee and card room employee shall present himself or herself at the Police Department during normal business hours, prior to commencement of any such employment, and be registered.

(c) Each employee shall:

(1) Complete an application;

(2) Be fingerprinted;

(3) Be photographed;

(4) Provide any other information that the Police Chief or his or her designee may require; and

(5) Certify the contents of the application under penalty of perjury.

(d) The Police Chief is hereby authorized to obtain criminal history information for each employee seeking registration.

(e) A fee as set forth in the Master Fee Schedule established by resolution of Council shall be paid together with the registration or renewal application.

(f) Within thirty days after receipt of the application containing the above information and the required fees, the Police Chief or his or her designee shall mail a written decision to the applicant either granting or denying registration and explaining the reasons for denial.

(g) If the background investigation is not complete within the thirty-day period, the Police Chief or his or her designee may grant a temporary registration pending a final decision based upon the outcome of the background investigation. The temporary registration shall include issuance of a temporary badge or identification to the agent or employee, not to exceed forty-five days.

(h) The Police Chief or his or her designee shall provide each registered employee with a permanent identification card to be known as a "work permit" which shall be displayed in accordance with the requirements of this article.

(i) Each registered employee may renew his or her registration with the Police Chief at least thirty days prior to the anniversary of the date of his or her initial registration and every anniversary thereafter. New cards will be issued as the city deems appropriate.

(j) The card room permittee shall inform the Police Chief of any change in employment status of a registered employee in a timely manner. A change in employment shall include termination of employment, leave of absence in excess of sixty days or any promotion or other change in position, job title, or duties.

(k) The California Department of Justice, Division of Gambling Control is hereby authorized to review all employee work permit applications and submit objections to the Chief of Police to the issuance of a work permit to that employee.
(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 98-39, § 3, eff. 7-20-98; Ord. No. 2009-12, §§ 1, 2, 8, eff. 5-1-09).

SEC. 9-2123. GROUNDS FOR DENIAL, REVOCATION OR SUSPENSION OF REGISTRATION.

The Police Chief may revoke or suspend the registration of or deny registration to a card room employee or potential employee on any of the following grounds:

(a) The employee or applicant has engaged in or has been convicted of a crime involving lotteries, gambling, bookmaking, larceny, perjury, bribery, extortion, fraud, theft, or embezzlement, or a crime involving moral turpitude, or has been convicted of being under the influence of, possession of, the sale or possession for sale of a controlled substance, prostitution, pimping, or pandering, or has been convicted of any crime substantially related to service or entertainment business;

(b) The employee has committed any act involving dishonesty, fraud or deceit with the intent to substantially benefit the employee or benefit another, or substantially injure another;

(c) The employee has been refused, or has had revoked, any gambling, gaming or entertainment permit or permit by an agency or government within five years of the date of the registration application;

(d) The employee has violated any provisions of this article;

(e) The employee has knowingly made a false statement in his or her application or to any city officer, employees, or agent;

(f) The employee has violated any law or ordinance relating to the operation of a card room.

(g) Objection by the California Department of Justice, Division of Gambling Control to the issuance of the work permit. (Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 98-39, § 4, eff. 7-20-98; Am. Ord. 2006-81, § 1, eff. 8-3-06).

SEC. 9-2124. DENIAL, SUSPENSION AND REVOCATION OF REGISTRATION OF WORK PERMIT.

(a) If it appears at any time that good cause may exist for the Police Chief to deny registration of an employee, or to suspend or revoke an existing registration, the Police Chief shall provide the employee and the permittee with the opportunity for a hearing before the Police Chief to show cause why registration should not be denied, suspended or revoked.

(b) In the case of denial, suspension or revocation, the employee shall be given ten days from the date of mailing of the notice of denial, suspension or revocation to request a show cause hearing before the Police Chief. The employee shall be deemed to have waived the right to a show cause hearing if the Police Chief does not receive the employee's request for a hearing within ten days of the date of mailing of the notice.

(c) The Police Chief shall schedule the hearing within fifteen days after receipt of the request for a show cause hearing. The Police Chief shall mail notice of the time, place and date of the hearing to the applicant or employee and the employer within five days after receipt of the request for hearing.

(d) Technical rules of evidence shall not apply to the show cause hearing.

(e) If the Police Chief, on the basis of substantial evidence presented at the show cause hearing, finds good cause therefor, the Police Chief may deny registration to the employee, or suspend or revoke the registration.

(f) In those extraordinary circumstances, wherein the Police Chief determines immediate suspension or revocation necessary as a result of accusations involving conduct resulting in great or irreparable harm or injury to the city or accusations involving conduct in need of immediate restraint to prevent great or irreparable harm or injury to the city, the Police Chief may issue a Notice of Revocation or a Notice of Suspension which shall be deemed effective immediately upon issuance.

The employee shall have ten days from the date of such issuance of a Notice of Revocation or Notice of Suspension to request a hearing. The Police Chief shall schedule such a hearing within five days after receipt of the request for hearing under this subsection (f). Technical rules of evidence shall not apply for such hearing. If the Police Chief, on the basis of substantial evidence presented at such hearing, finds good cause therefor, the Police Chief may uphold the Order of Suspension or the Order of Termination. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2125. TRANSFER OF INTEREST OF POINTHOLDER IN CARD ROOM—PERMISSION REQUIRED.

(a) **Council Consent.** It shall be unlawful for any pointholder, having any interest whatever, or at all, in the ownership of a card room, whether legal or equitable, or as trustor or trustee, or of whatever kind or character, to transfer or sell any points and/or interest in a card room to any person who is or by reason of such transaction would become a pointholder without the prior consent and permission of the Council.

(b) **Compliance with Regulations.** No permittee or pointholder shall knowingly permit any individual, partnership, or other entity to make any investment whatever in, or in any manner whatever participate in the profits of any permitted card room or any portion thereof, except in accordance with these regulations; provided, however, that the purchase or other acquisition of stock in a publicly-traded corporation shall not be deemed to be such an investment or participation unless by a pointholder. Except as otherwise provided in subsection (e), a permittee which is a publicly-traded corporation shall not have responsibility with respect to any transfers, sales or assignments of shares of its common stock or other securities.

(c) **Disclosure of Investment.** No permittee or pointholder shall knowingly permit any investment in any permitted card room operation or any portion thereof nor participation in the profits thereof by any person acting as agent, trustee, or in any other representative capacity whatsoever for or on behalf of another person without first having fully disclosed all facts pertaining to such representation to the Council. Except as otherwise provided in subsection (e), a permittee which is a publicly-traded corporation shall not have responsibility with respect to any transfers, sales or assignments of shares of its common stock or other securities. No person acting in any such representative capacity shall hold or acquire any such interest or participate without first having fully disclosed all facts pertaining to such representation to the Council and obtained written permission of the Council to so act.

(d) **Application for Transfer of Interest and Escrow Required.** No transfer, sale or hypothecation of a point, or new investment in an existing permitted card room shall be permitted until the Council has received, reviewed, and approved an application for transfer of interest, and until each new pointholder has been granted a pointholder's permit authorizing the holding of such interest in a point; provided, however, that no such approval shall be required for sales of stock of a publicly-traded corporation other than to a pointholder. No money or other thing of value constituting any part of the consideration for the transfer or acquisition of any interest in a permitted card room operation shall be paid over, received or used prior to complete compliance with all prerequisites set forth in the law and these regulations. Notwithstanding the foregoing, such funds may be placed in escrow pending completion of the transaction. Any loan, pledge or other transaction in an attempt to evade the requirements of this regulation may be deemed a violation and, as such, would constitute grounds for disapproval of the point transfer.

(e) **Assignment.** Any party desiring to buy, sell, accept transfer, assign or otherwise hypothecate any interest of a pointholder (other than stock of a publicly-traded corporation to

a person other than pointholder) in a permitted card room shall file with the City Clerk, on forms approved by the City Attorney, and furnished by the City Clerk, a written application for permission to allow transfer of such interest. Each such application shall contain and clearly and truthfully set forth, under oath and/or affirmation, in addition to such other information as the City Manager may require, the following:

(1) The date of the application;

(2) The true name of the applicant and personal history;

(3) The status of the applicant as being an individual, partnership, corporation or other entity;

(4) The residence and business address of the applicant;

(5) If the applicant is other than an individual, the name, residence and business address of each co-partner, co-partnership, shareholder or other interest holders;

(6) The name of the permitted card room and the names of the existing pointholders from which a transfer of interest or points is sought;

(7) The number of points and/or nature of interest sought to be sold, transferred, assigned or otherwise hypothecated;

(8) The source of funds to be used by the applicant in acquiring such points or interest;

(9) A statement that the applicant(s) understands that the application will be considered by the Council only after a full investigation and report have been made and the report of investigation forwarded to the Council;

(10) A balance sheet and income statement prepared in accordance with generally accepted accounting principles and submitted under penalty of perjury (but which need not be audited);

(11) The statements required by this subsection shall be confidential, and the documents containing such information shall be deemed to be confidential documents, and shall not be open to public inspection, but shall be available only to those city officials having direct jurisdiction where any matter relating thereto may be actually pending, except that the names and cities and states of residence and business of such pointholders shall be open to public inspection.

(f) **Investigations Required.** Whenever an application pursuant to the provisions of this section has been filed with the City Clerk pursuant to the provisions of this section, the City Clerk shall immediately refer such application, or a true copy thereof, to the City Manager, who shall promptly and diligently cause an investigation to be made as follows:

(1) A full and complete investigation of the applicant and each pointholder whose names and addresses are shown upon the application;

(2) Concurrently with the filing of an application, each applicant shall be fingerprinted and photographed by the Fresno Police Department and shall authorize the city to obtain

any available criminal offender record information relating to applicant and shall further authorize the updating of that information at any time reasonably necessary, if the application is approved.

(3) It shall be the responsibility and duty of the City Manager to supervise and direct the Police Chief to establish the necessary procedures to administer the provisions of this subsection; and

(4) The information received by the Police Chief pursuant to the provisions herein shall be treated as confidential.

(g) **Application and assignment fees.** For the purposes of clarification, the application and assignment fees set forth in this section are for regulation, revenue purposes and reimbursement to the city for the costs of investigating and processing the applications, as provided for in this Section, pursuant to the authority set forth in Article XI, Section 5 of the Constitution of the State. Each such application for transfer of interest of a pointholder to an applicant permittee shall be accompanied by a fee, payable to the city as follows:

(1) An application fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time, for each pointholder permit applicant, which fee shall be retained by the city for the payment of the costs of the investigation of the applicant. This fee shall be the property of, and be retained by, the city, whether the permit and permission to transfer interest in the permit is granted or denied.

(2) An assignment fee in the amount of five percent of the gross sales price of the interest assigned, sold or transferred. In the event that multiple interests are assigned, sold or transferred, the allocation of the gross sales price, for the purposes of this section, shall be agreed upon by the city and the permittee prior to completion of the transaction. A statement of gross income from the assignment, sale, or transfer shall be audited by a Certified Public Accountant, and presented to the city along with the assignment fee.

(h) **Granting or Denial of Applications.**

(1) Whenever an application for a permit as required under the provisions of this section is presented to the Council, and provided that the fees required by this section in connection therewith have been paid to the city, the Council may consider such application on the basis of the following, without being limited thereto:

(i) The financial stability of the applicant;

(ii) Conviction of criminal offenses as denoted in Section 9-2115; and

(iii) Any other information deemed by the Council to be matters of necessary inquiry.

(2) The Council may, in its discretion, either grant, conditionally grant or deny the pointholders permit applied for under subsection (d) of this section. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2126. INVESTIGATIONS. UPDATING.

All pointholders, key management employees, and employees of card rooms shall have their background and criminal history investigations updated annually or as the city may require upon showing of reasonable justification.
(Added Ord. 94-50, § 2, eff. 8-19-94; Ord. No. 2009-12, § 3, eff. 5-1-09).

SEC. 9-2127. REVOCATION, SUSPENSION AND OTHER PENALTIES.

(a) All permits issued under the provisions of this article shall be subject to revocation, suspension, or other appropriate penalties upon the occurrence of any of the following conditions:

(1) The permittee, has violated any provision of this article or failed to pay timely any fees due under this article; or

(2) The permittee, has violated any term or condition upon which such permit was issued; or

(3) The permittee, pointholder, key management employee, or an employee has violated any statute or ordinance, which violation relates to the establishment, maintenance or operation of the card room authorized by such permit; or

(4) The permittee has transferred any stock without approval of the city; or

(5) A permittee fails to make and file any statements as required by this article or the permit within the time required, or pay timely any sums due under the provisions of this article, or refuses to do either or both upon reasonable request; or

(6) The permittee has knowingly made false statements on any filing, registration or statement required under this article; or

(7) The operation of the card room violates the city's zoning, fire, building or other ordinances or regulations, or other applicable local, state, or federal laws or regulations; or

(8) The operation of the card room substantially aggravates the crime problems in the area, makes law enforcement unduly difficult, or is otherwise detrimental to crime prevention or to the public peace, health or safety in the area.

(b) In making the determination of whether to revoke or suspend a permit or to apply other appropriate penalties, the city may consider, but is not limited to the following factors:

(1) Any criminal convictions of the permittee, pointholders, key management employees, or employees, involving lotteries, gambling, bookmaking, larceny, perjury, bribery, extortion, fraud, theft, embezzlement, or crimes involving moral turpitude, or convictions of the sale, possession for sale, or possession of a controlled substance, prostitution, pimping, or pandering, or convictions of any crime substantially related to service or entertainment business;

(2) The commission of any act by the card room permittee, pointholders, key management employees or employees involving dishonesty, fraud or deceit with the intent to substantially benefit himself or herself or another, or substantially injure another;

(3) Whether the card room permittee, pointholders, key management employees, or employees have previously operated in this or another state under a gambling, gaming or similar permit or permit that has been revoked or suspended, the reasons therefore, and the actions of such person thereafter;

(4) Whether the card room permittee, pointholders, managers, key management employees, or employees in this or another state has been denied a gambling, gaming or similar permit or permit the reasons therefore, and the actions of the person thereafter.

(5) The business and credit history of the card room permittee and owners;

(6) The nature of the conduct involved in the violations upheld;

(7) The duration of the conduct giving rise to the violations;

(8) The number of instances of violations involved, and whether or not the violations are part of a pattern of violations;

(9) Whether the violations were deliberate or inadvertent;

(10) The degree, financial or physical, of injury to any victim, or which was proximately caused by the violation;

(11) The motivation of the person(s) who committed the violations;

(12) Restitution provided to any victim; and

(13) Restitution provided to the city for the costs of enforcement or prosecution of any violations or injuries.

(c) Where appropriate, in addition to or in lieu of a suspension or revocation penalty, the city may impose other appropriate penalties, including but not limited to monetary penalties, restitution to victims, including the city, and modifications and limitations on the terms and conditions of the permit.
(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2128. NOTICE OF DECISION TO REVOKE OR SUSPEND.

(a) Upon determination of the existence of any of the conditions stated in Section 9-2127 or which warrant action, the City Manager shall issue a "Notice of Decision to Revoke or Suspend Card Room Permit" to the permittee.

(b) The Notice of Decision to Revoke or Suspend shall state all grounds and reasons upon which the suspension or revocation is based and shall notice the permittee of the right to appeal under Chapter 1, Article 4.

(c) The Notice of Decision shall be served by mail or in person to the permittee at the address stated on the permit. Service shall be deemed made on the day of personal service or three days after the posted date if mailed.

(d) The Notice of Decision to Revoke or Suspend shall be appealable under Chapter 1, Article 4.

(e) In those extraordinary circumstances, wherein the City Manager determines immediate suspension or revocation is necessary as a result of accusations involving conduct resulting in great or irreparable harm or injury to the city or accusations involving conduct in need of immediate restraint to prevent great or irreparable harm or injury to the city, the notice issued under this subsection shall be deemed effective immediately upon service. A notice issued under this subsection shall state that it is effective upon service and shall state the basis for the City Manager's determination made under this subsection. (Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 2005-14, § 34, eff. 4-9-05).

SEC. 9-2129. SPECIFIC HEARING RULES.

Notwithstanding contrary provisions in Chapter 1, Article 4, the following rules apply to hearings on appeals from Notice of Decisions to Revoke or Suspend under Section 9-2128:

(a) **Timing of Appeal.** Where a Notice of Appeal has been filed, an Appeal Hearing shall be conducted as soon as reasonably possible.

(b) **Evidence.** Oral evidence shall be taken only on oath or affirmation.

(c) **Review.** Review of the decision by the hearing officer shall be de novo and shall be based on the factors set forth in Section 9-2126.

(d) **Decision.** The decision shall be made in writing with written findings of fact and shall be issued within thirty working days of the close of the hearing.

(e) **Presumption on Criminal Convictions.** In cases where the decision of the City Manager to revoke or suspend is based upon a criminal conviction, the facts underlying a criminal conviction shall be deemed to have been proven and shall not be subject to dispute at the Appeal Hearing.

(f) **Failure to Appear.** Failure to appear by the permittee or the permittee's representative at the hearing shall be deemed a withdrawal of the appeal and the City Manager's decision to suspend or revoke shall be final and take effect immediately. If the permittee files a request for relief from the decision within ten days from the day of the hearing, the hearing officer may reinstate the appeal and set a new date for the hearing upon a finding that there is good cause for failure to appear after consideration of any rebuttal offered by the city.

(g) **Cost of Appeal Hearing.** The cost of the appeal, including but not limited to, the charge for the cost of the service of the hearing officer, the cost of creating the record and the cost of any subpoena service called by the permittee shall paid by the permittee. A deposit of the estimated cost, as determined by the City Attorney, shall be required from the permittee prior to the Appeal Hearing. Failure to provide the deposit shall be deemed a waiver of the appeal. After the hearing, the permittee shall be presented with a bill itemizing the costs to be paid and any part of the deposit not expended shall be returned within thirty days of the decision. The fee for the hearing shall be considered to be a civil

debt of the permittee which is due and payable at the time of presentation of the bill to the permittee after the hearing. (Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 2005-14, § 35, eff. 4-9-05).

SEC. 9-2130. NEW APPLICATION UPON REVOCATION.

In the event of revocation, such permittee shall not be entitled to apply for a new permit. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2131. ANNUAL PERMIT FEES.

The Council hereby determines that an annual fee is payable with respect to all permits issued pursuant to the provisions of this article which fee shall be payable annually on the anniversary date of card room permit. Issuance fees are hereby fixed. An annual permit fee in the amount specified in the Master Fee Schedule designated in the Master Fee Resolution, as amended by the Council from time to time, shall be payable in advance of the beginning of each card room permit year in which card room operations are to be conducted. All annual permit fees shall become the absolute property of the city and shall not be refunded due to the cessation of, or failure to begin such businesses, whether voluntary or involuntary. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2132. GROSS REVENUE PERMIT FEES.

(a) **Amount.** In addition to the permit fees previously prescribed each permittee permitted pursuant to the provisions of this article shall pay to the city a monthly fee equal to a percentage of the gross revenue of the permittee received from the card room operation. The percentage shall be established by resolution of the City Council. Such payment shall be made to the city not later than fifteen (15) days after the end of each month during which such gross revenues on which it was computed were received by the permittee.

(b) **Statement of Revenue.** Each permittee shall file with the Controller before the 15th day following the end of each month a statement, under oath, showing the true and correct amount of gross revenue derived from the card game business permitted by the permit issued to or held by such permittee for the preceding month. Such statement shall be accompanied by the payment of the correct amount of permit fee due and owing in accordance with the provisions of Subsection (a) of this section, and such sums correctly reflecting the monthly fees payable for the preceding month shall be accepted by the city, subject, however, to the right of the city to audit the matters reported in the statement to determine the accuracy of the figures contained therein and whether or not the correct amount payable to the city has been paid.

In addition, a signed declaration certification shall be attached to the statement, or included therein. which declaration shall be substantially in the following form:

"I hereby declare under penalty of perjury that the foregoing is true and correct.

_____

Permittee, managing partner, or owner,"
(Strike out the titles which are not applicable.)

(c) **Annual Statement of Revenue.** On or before August 31 of each year, the permittee shall provide the city with a statement of revenue for the period from July 1, of the previous year through June 30 of the then current year. This statement shall be audited by a Certified Public Accountant who will provide an opinion as to the accuracy and correctness of the statement provided.

In the event that the amount of gross revenue reported in the permittee's annual statement is less than the total gross revenue reported in the monthly statements previously received by the city, the gross revenue fee shall be applied to the difference, and shall accompany the annual statement. In addition to the gross revenue permit fee, if the difference exceeds one percent (1%) of the annual gross revenues, a penalty of 25% of the additional fee due shall also be due and payable upon submission of the annual statement of gross revenues.

(d) **Audits of Reports.** The books, records, and accounts of any card room may be audited by the city. Such an audit shall be performed by a person designated by the Controller. Any information obtained pursuant to the provisions of this section or any statement filed by the permittee shall be deemed confidential and shall not be subject to public inspection. Such shall be available only to those city officials having jurisdiction over the provisions of this article and to any court of competent jurisdiction where any matter relating thereto may be actively pending.

(e) **Refusal to Display Records.** Any failure or refusal by any such permittee to make and file any statement as required within the time required, or to pay such sums by way of application fees or permit fees when the fees are due and payable in accordance with the provisions of this article, or to permit an inspection of such books, records, and accounts of such permittee shall be and constitute full and sufficient grounds for the suspension and revocation of the permit of any such permittee. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2133. RECORDS, REPORTS AND SUPPLEMENTAL INFORMATION.

(a) Each permittee shall make and maintain complete, accurate and legible records of all transactions pertaining to revenue. Such records shall include but not be limited to a general ledger maintained in accordance with generally accepted accounting principles, together with appropriate supporting records such as cash receipts and disbursements logs and journals, payroll journals, canceled checks, and original paid invoices. General Ledgers and all other records shall be maintained in a fashion suitable for producing financial statements in accordance with generally accepted accounting principles. Theses ledgers and records shall be maintained for at least three years from the commencement of operations of the card room and shall be maintained on the premises of the permitted card room and made available for examination and copying by the city or its designee upon request.

(b) In the event information requested of a permittee can be furnished only by someone other than the permittee (such as a landlord, supplier or an accountant), the permittee shall make every bona fide effort to obtain such information as requested and furnish the same or have it furnished directly by the person who has the information available.

(c) In addition to such other information and data required by this regulation, each permittee shall maintain the following if a partnership or corporation:

(i) A schedule showing the dates of capital contributions, loans or advances, the names and addresses of the contributors and percentage of ownership interest held of record by each.

(ii) A record of the withdrawals or distributions of funds or assets, to partners or stockholders.

(iii) A record of salaries paid to each partner, stockholder and key management employees.

(iv) A copy of the partnership or corporate agreement, certificate of limited partnership and accurate corporate stock transfer book, if applicable.

(v) Copies of any and all public filings required by the Securities Exchange Commission.

(d) In addition to such other information and data required by the regulation, each card room permittee shall maintain the following if a sole proprietorship:

(i) A schedule showing the name and address of the proprietor and the amount and date of his or her original investment.

(ii) A record of subsequent additions thereto and withdrawals therefrom.

(e) The records required to be kept by this regulation shall be in ink or other permanent form of recordation. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2134. ACCESS TO RECORDS AND FACILITIES.

(a) Notwithstanding the audit requirements specified in this article, the permittee shall allow the City Manager or his designee unrestricted access to all books, records and facilities pertaining to the card room, including but not limited to cash counting rooms. Any information obtained pursuant to this section or any statement filed by the card room permittee or other permittees shall be deemed confidential and shall not be subject to public inspection except in connection with the enforcement of the provisions of this article. It shall be the duty of the City Manager to preserve and keep such statements so that the contents thereof shall not become known except to the persons charged by law with the administration of the provisions of this article or pursuant to the order of any court of competent jurisdiction.

(b) Any failure or refusal of any permittee to make and file any statement as required within the time required, or to permit inspection of such books, records, accounts and reports, of such permittee in accordance with the provisions of this article shall be and constitute full and sufficient grounds for the revocation or suspension of the permits of any such or permittee. (Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2135. RULES AND REGULATIONS.

(a) **Games to be Conducted in Compliance With City and State Laws.** Each and all of the games conducted or operated in the city pursuant to the provisions of this article shall be conducted and operated in full conformity with, and subject to, all the provisions of Federal, State and local laws.

(b) **Collection.** Fees may only be collected for the playing of permissible games either through a time rental fee for occupancy at a card table or a predetermined fixed fee assessed of all players at a card table and collected prior to or during the playing of a hand.

(c) **Permitting Minors on Premises Prohibited.**

(1) No person under the age of 21 years shall be permitted to enter upon the premises of a licensed Card Room, or any part thereof, except the following:

(i) An area, physically separated from any Card Playing Area or Satellite Wagering Facility, for the exclusive purpose of dining and only when accompanied by a parent or legal guardian unless such person entering is 18 years of age or older. For purposes of this subdivision, any place wherein food or beverages are dispensed primarily by vending machines shall not constitute a place for dining.

(ii) Restrooms.

(iii) A supervised room, as defined by regulation of the State of California, Department of Justice, Division of Gambling Control, that is physically separated from any Card Playing Area or Satellite Wagering Facility and used primarily for the purpose of entertainment or recreation and only when accompanied by a parent or legal guardian unless such person entering is 18 years of age or older.

(2) Any area of a Card Room to which a person under the age of 21 years may have access under this subdivision shall have an entrance that shall not require the entrants to enter upon or pass through the Card Playing Area or satellite Wagering Facility. All persons under the age of 21 years shall be restricted to the separate entrance required under this subdivision.

(3) Any Card Room to which a person under the age of 21 years may have access under this subdivision shall have at least one uniformed security employee stationed at each entrance to the Card Playing Area or Satellite Wagering Area at all times such entrance remains open.

(d) **Subletting To Persons Without Permits Prohibited.**

(1) No card room permittee, owner or employee shall permit the farming out, assigning, leasing, renting, or subletting of any games or card tables on premises lawfully permitted pursuant to the provisions of this Article.

(2) This section shall not preclude any profit sharing with employees or preclude use of a management company.

(e) **Games To Be Played in Card Playing Area Approved in Permit.** The playing of all games permitted under this article shall be confined to the approved card playing area of each permitted card room as set forth in the permit and no playing of any games shall be permitted in any other area or location.

(f) **Permissible Games.**

(1) A list of "permissible games" including any specific rules thereto shall be adopted by Resolution of the Council. Any card games permitted by the Department of Justice, Bureau of Gambling Control, shall automatically be added to the list of "Permissible Games".

(2) No game shall be played at any card room unless it is listed as a permissible game.

(3) All permissible games shall be played in strict conformity to California Penal Code Section 330, and all other state gambling laws.

(4) The permittee shall file with the Police Chief for the Police Chief's approval, the rules on how each game and variation thereof is to be played. The permittee shall allow the playing of permissible games only in strict conformity with the rules approved by the Police Chief.

(5) Nothing in this section is intended to prohibit the operation of a Satellite Wagering Facility established pursuant to California Business and Professions Code § 19605 et seq. within a card room under the following conditions:

a. That the facility is located in an area of the card room which is separated and isolated from the approved card playing area.

b. No person under twenty-one years of age shall be permitted to be present within the Satellite Wagering Facility at any time while the Satellite Wagering Facility is open for business or horse racing is being broadcast or shown upon any monitors or screens within the card room premises.

c. A schedule of the dates and times of all horse races being broadcast at the Satellite Wagering Facility or the facility being open to accept any wagers on any race shall be provided to the Chief of Police of the Fresno Police Department or his designee at a minimum of forty-eight hours prior to any such activity taking place.

d. All federal, state and local laws, rules and regulations shall be strictly followed at all times.

e. Any violations of any provision of this subdivision, or of federal, state of local laws related to the operation of a Satellite Wagering Facility shall be grounds for the immediate revocation of the permittee's card room permit.

(6) All other games of chance are hereby prohibited.

(g) **Game Rules.**

(1) The rules describing how each game conducted on the premises is to be played shall be posted on the premises of the card room in a conspicuous place. Printed copies of the rules shall also be easily available to the public.

(2) The rules which are posted and made available to the public shall be identical to the rules provided to the Police Chief pursuant to the requirements of this article.

(3) The rules shall be made available in English, Spanish, Vietnamese, Hmong, Lao and Cambodian.

(h) **Permitting Intoxicated Persons To Play in Games Prohibited.** No card room permittee, owner or employee shall permit any person to play in any game at any time while such person is obviously under the influence of intoxicating beverage, narcotic or drug.

(i) **Exclusion of Persons from Card Rooms.**

(1) A card room permittee shall not allow entry and shall exclude or eject from the premises any person who has been engaged in or been convicted of bookmaking, loan sharking, the sale of controlled substances, illegal gambling activities, prostitution, pimping, pandering or whose presence in or about such card room would be inimical to the interests of legitimate gaming.

(2) No card room permittee, owner or employee shall permit any person to enter a card room while such person appears to be obviously under the influence of intoxicating beverage, narcotic or drug.

(3) Any person refused entry, excluded, or ejected by a card room may file an appeal under Chapter 1, Article 4 as to whether the conditions for exclusion or ejection as set forth in subsection (1) of this section are applicable. At the hearing, both the person excluded and the licensee may present evidence. The decision of the hearing officer shall be final. The card room permittee and appellant shall reimburse the city for the cost of holding such hearing.

(j) **Complimentary Alcoholic Drinks Prohibited.** Complimentary or reduced priced alcoholic drinks shall be prohibited in the card room premises.

(k) **Patron Complaints.** A notice setting forth the procedure for making and/or filing complaints by patrons of the card room shall be prominently posted on the premises. Such complaint procedure shall at a minimum include provisions for logging in the verbal and written complaints, the name, address, and telephone number of complainant, and a mechanism for transmitting such log to the Police department on a daily basis.

(l) **Bets or Wagers Prohibited.**

(1) No card room permittee, owner or employee shall allow any persons playing in any game to make any single bet or wager in excess of one thousand dollars ($1,000.00) or

at any time during any game to permit an ante in excess of one thousand dollars ($1,000.00) total sum anted by players participating in the game. Notwithstanding the foregoing, the maximum wager allowed in any approved poker game is unlimited.

(2) Municipal, house or table betting limits shall be clearly posted on the premises to provide patrons with adequate notice of the rules related to wagering.

(m) **Identification Card Display.**

(1) It shall be unlawful for any card room owner or employee to be working at any time upon said premises without having prominently displayed his or her own personal identification card issued by the Police Chief pursuant to this article identifying such person as an owner or employee of the card room.

(2) The identification card shall be prominently displayed on the outermost garment at approximately chest height. Such identification card shall at all times be in good and readable condition.

(n) **Employment of Persons To Stimulate Play Prohibited.**

(1) It shall be unlawful for any card room permittee, owner, pointholder, manager, key management employee, or employee to engage in or persuade any person to play cards for the purpose of stimulating play where such person is to receive any compensation or reward, whether financial or otherwise, present or promised; or where such reward or revenue is to be diverted to the card room permittee or owner except as allowed under subsection (2) of this section.

(2) The permittee may utilize proposition players. A proposition player must wear a badge at all times identifying the player as an employee of the permittee. Other than compensation for the time spent in acting in such activities as an employee of the permittee, no gifts, rewards or any other thing of value shall be given to the proposition player by the card room permittee owner, pointholder, manager, key management employee or employee.

(o) **Lending Money or Tokens of Value Prohibited.** It is unlawful for any card room permittee, owner or employee to engage in the lending of money, chips, tokens or anything of value, either real or promised, to any person for the purpose of allowing that person to eat, drink or engage in any game or gambling on the premises.

(p) **Use of Blank Personal Checks Prohibited.** It is unlawful for the card room permittee, owner or employee to cash any personal check which does not state the amount on the face of the check.

(q) **Operation of House Deposit or Credit System Prohibited.**

(1) It shall be unlawful for any card room permittee, owner or employee to operate, maintain or purport to maintain any house, player or employee deposit or credit system or any system similar thereto, whereby a person may deposit, draw or maintain any account or credit of money, checks or any other item or representation of value, except as authorized pursuant to subsection (2) and (3) of this section.

(2) The permittee shall be allowed to provide chips or other representations of value paid for in advance by the patron in cash or by personal check.

(3) The permittee shall be allowed to accept a patron's chips or other winnings and provide the patron with a check drawn on the permittee's account for the amount of the patron's chips or other winnings.

(4) The dollar equivalent of any such chips or other representations shall be posted in the same manner as the game rules pursuant to this article. In the alternative the dollar equivalent may be placed prominently upon the face of each chip or other representation of value.

(r) Subsection (r) intentionally left blank.

(s) **Gamblers Anonymous Literature.** All card room permittees shall make literature published by Gamblers Anonymous easily available in a visible location in the card room. If literature published by Gamblers Anonymous is available in English, Spanish, Vietnamese, Hmong, Lao, Cambodian, and any other language requested by a patron, the card room permittee shall be required to make such literature easily available.

(t) **Inspection of Premises.**

(1) All card rooms shall be open for inspection during normal business hours to the Police Chief, the City Controller, the City Auditor or their duly authorized representatives, without search warrant.

(2) All card room records, including but not limited to papers, books of account, ledgers, audits, reports, personnel records, information stored in computers and on computer tape or disks, video tape, microfilm or microfiche, shall be available for inspection and copying during normal business hours to the Police Chief, the Controller or their duly authorized representatives without search warrant.

(u) **Entry To Secure Areas Prohibited.** It shall be unlawful for any individual player or other unauthorized person to enter any secure areas within the premises or for any operator, agent or employee of any duly permitted card room to permit any player or unauthorized person to enter any secure areas within the card room premises.

(v) **Rules on Possession of Cards.** It shall be unlawful for any patron or any other person not a permittee or permittee to bring cards into a card room. It shall be unlawful for any person other than a permittee, authorized employee or a patron then playing cards to have playing cards in his or her possession while in a card room. It shall be unlawful for any person in a card room other than on-duty employees with valid registration cards to have playing cards in his or her possession outside of a designated card playing area.

(w) **Cooperation Against Unlawful Practices.** It shall be the responsibility of the permittee, management and their employees to fully cooperate with card game surveillance and protection personnel in the detection, apprehension and identification of those individuals involved in cheating, fraudulent practices, or other unlawful practices. Management shall retain and deliver to the Police Department as evidence in arrests or detention all playing

cards and implements suspected of involvement in cheating. Management shall cooperate with card club surveillance personnel whether provided by a governmental policing agency, a city-contracted service, city-administered or permittee-assigned.

(x) Cardrooms are permitted to operate on a twenty-four (24) hour a day basis. Those establishments who choose to limit the hours of operation shall clearly post on the premises the hours during which the establishment shall be open for business.

(y) Permittees are liable for the security and safety of the patrons of the cardroom, unless limitations on said liability are clearly posted on the cardroom premises to provide adequate notice to patrons of said limitations.
(Added Ord. 94-50, § 2, eff. 8-19-94; Am. Ord. 96-44, §§ 2—5, eff. 7-19-96; Am. Ord. 98-39, §§ 6, 7, eff. 7-20-98; Am. Ord. 98-72, § 2, eff. 10-23-98; Am. Ord. 2005-14, § 36, eff. 4-9-05; Am. Ord. 2007-57, § 1, eff. 9-21-07; Am. Ord. 2009-12, §§ 4, 9, 11, eff. 5-1-09; Am. Ord. 2010-2, §§ 2, 3, eff. 2-25-10).

Editor's note—Ord. 2007-57, effective September 21, 2007, specifically amended § 7-546 of the Code. However, because of the reorganizing of the Code stipulated by Ord. 2007-54, the amendments have been made to § 9-2135.

SEC. 9-2136. CHANGES IN RULES AND REGULATIONS.

The Council reserves the right to add to, amend or repeal any of the rules and regulations set forth in this article, and to adopt additional rules and regulations.
(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2137. EMERGENCIES.

The Council further reserves the right to adopt by resolution additional emergency rules and regulations which shall become effective immediately upon adoption. Violation of any such emergency rules and regulations may constitute grounds for the suspension and revocation of the permits and permits issued pursuant to the provisions of this Article.
(Added Ord. 94-50, § 2, eff. 8-19-94).

SEC. 9-2138. PENALTIES.

Any individual violating any of the provisions of this article or any of the rules and regulations set forth, established or promulgated in this article shall be guilty of a misdemeanor.
(Added Ord. 94.50, § 2, eff. 8-19-94).

SEC. 9-2139. SEVERABILITY.

It is hereby declared to be the intention of the Council that the sections, paragraphs, sentences, clauses and phrases of this article are severable, and if any phrase, clause,

sentence, paragraph, section, or subsection of this article shall be declared invalid by the valid judgment or decree of a court of competent jurisdiction, such invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this article.
(Added Ord. 94-50, § 2, eff. 8-19-94).

ARTICLE 22 BINGO

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SEC. 9-2201. INTENT AND PURPOSE.

It is the purpose and intent of this article to authorize the playing of the game of chance generally known as "bingo" subject to and pursuant to the restrictions contained in Article IV, Section 19c of the Constitution of the State of California and Section 326.5 of the Penal Code of the State of California. Definitions, conditions and restrictions set forth in this article are intended to comply with and implement the Constitutional and Penal Code provisions. To the extent that any provision of this article is substantially the same as that contained in Section 326.5 of the Penal Code and Violation thereof be deemed a violation of the Penal Code and punishable thereunder, such provisions of this article shall be deemed explanatory only. (Added Ord. 78-18, § 1, eff. 3-17-78).

SEC. 9-2202. DEFINITIONS.

(a) "Bingo" means a game of chance in which prizes are awarded on the basis of designated numbers or symbols on a card which conform to numbers or symbols selected at random, and shall include cards having numbers or symbols which are concealed and preprinted in a manner providing for distribution of prizes.

(b) Repealed.

(c) "Controller," "Police Chief," "Director of the Development Department," or "Fire Chief" means the Controller, Police Chief, Director of the Development Department or Fire Chief of the City of Fresno, or their respective authorized agents.

(d) "Nonprofit Organization" means any tax-exempt organization or senior citizens' organization as such terms are defined in this section.

(e) "Senior Citizen" means any person of age 60 or older or any person age 50 or older who no longer engages in full-time employment.

(f) "Senior Citizens' Organization" means any organization meeting the following criteria:

(1) **Purpose.** The purpose of the organization is to improve the social, recreational, economic, medical and/or housing conditions of senior citizens.

(2) **Membership.** The membership in the organization shall be limited to senior citizens and their spouses.

(3) **Formal Organization.** The organization shall have a duly adopted constitution or bylaws stating the purpose of the organization and the qualifications of membership and providing for the election of officers.

(g) "Tax-exempt Organizations" means any organization exempted from payment of bank or corporation taxes by Sections 23701b (fraternal beneficiary societies, orders for organizations), Section 23701d (religious, charitable, scientific, testing for public safety, literary, educational, certain humanitarian corporations and organizations to foster national or international amateur sports competition), Section 23701f (civic leagues, social welfare and employees' organizations), or Section 23701l (domestic fraternal societies, orders or associations) of the California Revenue and Taxation Code, and any labor organization exempted from the payment of bank or corporation taxes by Section 23701a of the California Revenue and Taxation Code.

(h) "Special Fund or Account" means a separate fund or account of a financial institution identified on the permittee's application, and which shall be used exclusively in the manner allowed by Section 9-2210, except that if a permittee's gross receipts do not exceed two thousand dollars ($2,000.00) in any month, the special fund account may consist of a separate general ledger account. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-38, § 1, eff. 4-18-80; Am. Ord. 80-171, §§ 78, 79, eff. 12-26-80; Am. Ord. 81-157, § 30, eff. 12-11-81; Am. Ord. 82-112, § 1, eff. 11-5-82; Am. Ord. 83-15, §§ 1—3, eff. 2-25-83; Am. Ord. 88-134, § 1, eff. 12-2-88; Am. Ord. 92-28, § 1, eff. 5-22-92; Am. Ord. 94-15, § 1, eff. 4-22-94).

SEC. 9-2203. BINGO PERMITTED.

A nonprofit organization having in effect a permit therefor from the Controller pursuant to the provisions of this article may conduct a bingo game for charitable purposes subject to all conditions and restrictions contained in Section 326.5 of the California Penal Code and this article. A nonprofit organization having in effect a bingo permit from another jurisdiction

allowing bingo games to be conducted from an address subsequently annexed to the city may continue to conduct bingo games from that address, in compliance with the provisions of this article, for a period not to exceed ninety calendar days, provided that during such time the organization applies for and is issued a bingo permit from the Controller. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 83-15, § 4, eff. 2-25-83).

SEC. 9-2204. PERMIT APPLICATION.

A nonprofit organization may apply to the Controller for a permit to conduct a bingo game. The application shall be upon a form provided therefor by the Controller and shall be accompanied by the fee designated in the Master Fee Resolution. If the applicant is a tax-exempt organization, it shall accompany the application with a certificate or letter from the State Franchise Tax Board stating that the applicant is exempt from the payment of bank or corporation taxes. If the applicant is a senior citizens' organization, it shall provide proof to the satisfaction of the Controller that it satisfied the criteria for a "senior citizens' organization" as set forth in Section 9-2202(f). (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-38, § 2, eff. 4-18-80; Am. Ord. 80-115, § 90, eff. 8-8-80).

SEC. 9-2205. CONTENT OF APPLICATION.

(a) The application for a permit for conducting bingo games shall contain the following:

(1) The name and address of the organization proposing to conduct such games;

(2) The names, titles, signatures and addresses of all the officers, trustees and directors of the organization;

(3) The address of the premises where the bingo games are proposed to be conducted, the purposes for which the premises are used by the organization, and the length of time for which the premises have been so used;

(4) The names of the owner(s) and, if any, lessee(s) of the premises where the bingo games are proposed to be conducted;

(5) The name and address, phone number, title, and a photograph of the person responsible for the operation of the bingo game;

(6) The name and address, and phone number of those persons assisting in the operation of the bingo game;

(7) The days and hours of proposed operation of bingo games;

(8) The name and address of the financial institution at which a special fund or account is maintained, together with the account number and authorized signatories of the account; and

(9) A statement as to the section under which the applicant qualifies for tax exemption under the California Revenue and Taxation Code. Applicant shall submit from the Department of Corporations of the State of California proof of which Revenue and Taxation section they are exempt under.

(10) Such further information as may be required by the Controller.

(b) Said application shall be signed by two current officers of the applicant certifying that the conduct of all bingo games will be in strict accordance with the provisions of Section 326.5 of the California Penal Code.

(c) All information submitted with the application required by this section shall be included as a part of, and considered to be contained in, the application. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 78-22, § 1, eff. 3-24-78; Am. Ord. 83-15, § 5, eff. 2-25-83; Am. Ord. 92-28, § 2, eff. 5-22-92).

SEC. 9-2206. CONSENT TO INVESTIGATION.

The filing of an application for a permit shall be deemed a consent by the applicant for the Controller to make an investigation to determine if all the statements on the application are true, to investigate the principal officers of the applicant and the person who will be responsible for the operation of the bingo games as to any criminal record which they may have, and to disclose such information to the Chief Administrative Officer upon appeal. The application shall also be deemed consent for the Fire Chief and the Director of the Development Department to inspect said premises and report thereon. In addition, all required lists of persons assisting in any manner in the conduct of a bingo game operation shall be deemed a consent by the permittee and the listed persons for the Controller to make an investigation to determine if such persons are members of the permittee organization, and to investigate such persons as to any criminal record which they may have. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 80, eff. 12-26-80; Am. Ord. 83-15, § 6, eff. 2-25-83).

SEC. 9-2207. REFERENCE OF APPLICATION.

Immediately upon receipt of a proper application, the Controller shall furnish copies thereof to the Director of the Development Department and the Fire Chief, each of whom shall make an investigation as specified in this article and report back to the Controller within forty-five calendar days after the receipt by the Controller of such application with a recommendation thereon. Failure of the Director of the Development Department or the Fire Chief to report back to the Controller within the forty-five day period shall be treated by the Controller as a recommendation to issue the permit. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 81, eff. 12-26-80; Am. Ord. 83-15, § 7, eff. 2-25-83).

SEC. 9-2208. INVESTIGATION BY CONTROLLER.

The Controller shall determine if all the statements on the application are true, and may obtain the criminal record, if any, of the principal officers of the organization, and each person who will be responsible for the operation of the bingo games. If he finds any of the statements on the application or other required report, statement or record to be false, he may deny the permit; and if he finds any officer of the organization, any person who will be responsible for the operation of the bingo games, or any person assisting therein to have been convicted within

the last five years of crimes involving lotteries, gambling, larceny, perjury, bribery, extortion or fraud, he shall deny the permit. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 82, eff. 12-26-80; Am. Ord. 83-15, § 8, eff. 2-25-83).

SEC. 9-2209. INVESTIGATION BY THE DIRECTOR OF THE DEVELOPMENT DEPARTMENT.

The Director of the Development Department shall investigate the premises and surroundings for the safety of the structure, adequacy of parking facilities and any other condition which, in the opinion of the Director, might endanger the public health, safety or well-being or constitute a nuisance. Should he find that such a potential danger or nuisance exists, the Director may at his discretion recommend denial of the permit or the attachment thereto of such conditions as will in his opinion adequately protect the public health, safety and well-being and preclude the existence of a nuisance; otherwise, he shall recommend its issuance. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 83-15, § 9, eff. 2-25-83).

SEC. 9-2210. INVESTIGATION BY FIRE CHIEF.

The Fire Chief shall investigate the premises as to the safety of the structure and for fire hazards and shall determine the maximum number of persons who may be present in the premises during the conducting of bingo games. In the event he finds any condition to exist which might endanger the public health, safety or well-being from the standpoint of structural safety or fire danger, he may recommend against the issuance of the permit or recommend the attachment thereto of such conditions as will in his opinion adequately safeguard the public health, safety and well-being; otherwise, he shall recommend its issuance. (Added Ord. 78-18, § 1, eff. 3-17-78).

SEC. 9-2211. DENIAL OF PERMIT.

In the event the Director of the Development Department or the Fire Chief recommends against the issuance of the permit, the Controller shall deny such permit, and one-half of any permit fee paid shall be refunded to the organization that filed the application. If a permit is denied, the organization that filed the application shall not be eligible to reapply for a permit for a period of six months from the date of denial. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 83, eff. 12-26-80; Am. Ord. 83-15, § 10, eff. 2-25-83).

SEC. 9-2212. APPEAL.

Any applicant or permittee may file an appeal from any order or action of the Controller respecting the issuance, denial, modification, suspension or revocation of any permit under Chapter 1, Article 4. Whenever an appeal is available under this article, and no appeal is filed within the time prescribed, the action of the Controller shall be final. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 84, eff. 12-26-80; Am. Ord. 81-157, § 31, eff. 12-11-81; Am. Ord. 98-65, § 20, eff. 10-1-98; Am. Ord. 2005-14, § 38, eff. 4-9-05).

SEC. 9-2213. ISSUANCE OF PERMIT.

(a) Subject to the results of his investigation, and if he does not receive a recommendation against the issuance of the permit, the Controller shall issue the permit for a period of one year.

(b) The permit shall contain the following information:

(1) The name and nature of the organization to whom the permit is issued;

(2) The address where the bingo games are authorized to be conducted;

(3) The maximum occupancy of the room in which the bingo games are to be conducted;

(4) The date of the commencement of the permit;

(5) The date of the expiration of the permit;

(6) The days and hours during which bingo may be conducted; and

(7) Such conditions as may have been recommended by the Controller, Planning and Inspection Director, or Fire Chief. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 85, eff. 12-26-80).

SEC. 9-2214. POSTING OF PERMIT.

A permittee shall keep the permit posted in a conspicuous place within the room in which bingo is being played during the conduct of any such game. The permittee shall produce and exhibit the same whenever requested to do so by the Controller, Police Chief, Director of the Development Department, or Fire Chief. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 86, eff. 12-26-80; Am. Ord. 83-15, § 11, eff. 2-25-83).

SEC. 9-2215. PERMIT NONTRANSFERABLE.

Any permit granted under this article shall not be transferrable either as to the permittee or the location. Any use of the permit other than by the named permittee or other than at the address where the bingo games are authorized to be conducted shall render the permit invalid. (Added Ord. 78-18, § 1, eff. 3-17-87).

SEC. 9-2216. CONDITIONS OF OPERATION.

It is unlawful for any bingo game to be operated in violation of any of the following conditions:

(a) No minors shall be allowed to participate in any bingo game;

(b) All bingo games shall be open to the public, not just to members of the nonprofit organization;

(c) No person shall be allowed to participate in a bingo game, unless the person is physically present at the time and place in which the bingo game is being conducted;

(d) The total value of prizes awarded during the conduct of any bingo game shall not exceed two hundred and fifty dollars ($250.00) in cash or kind, or both, for each separate game which is held;

(e) Attendance at any bingo game shall be limited to the occupancy capacity of the room as set forth in the permit;

(f) No permittee shall issue chips or money to a patron on credit or a loan, including but not limited to IOU's and checks to be held, nor shall patrons be allowed to play on credit;

(g) No person who is obviously intoxicated shall be allowed to participate in a bingo game;

(h) No permittee shall conduct any bingo game except between the hours of twelve noon and twelve midnight, nor shall any permittee conduct bingo games for more than four (4) hours during any 24-hour period, nor shall any permittee conduct bingo games more than two (2) days in any seven-day period; except at locations within a target area from Highway 41 to Tuolomne Street between Broadway/H and Q Street, wherein bingo games may be conducted any day of the week; and further, no location, including a single building or a series of contiguous rooms or buildings, shall be utilized to conduct bingo games more than eight (8) hours during any twenty-four-hour period;

(i) No person shall violate any condition attached to the permit;

(j) The permittee shall post and keep posted in a conspicuous place within the room in which bingo is being played the rules and regulations of said games;

(k) No person shall conduct any bingo game after the permit therefor has expired or during any period in which it is suspended;

(l) The permittee shall conduct a bingo game only on property owned or leased by it, or property whose use is donated to the organization, and which property is used by such organization for an office or for performance of purposes for which the organization is organized. Nothing in this subsection shall be construed to require that the property owned or leased by or whose use is donated to the organization be used or leased exclusively by or donated exclusively to such organization;

(m) The permittee shall keep for three (3) years a written record of the name, address, and date of birth or driver's license number of each person receiving a prize of a cash value or market value exceeding ten dollars ($10.00), which records shall be made available to the Police Chief or his designee upon request;

(n) For each bingo session, the permittee shall obtain the signature, and shall record on a list the name, address, and date of birth or driver's license number, of all persons assisting in any manner in the conduct of a bingo game operation. Such list shall be signed by a principal officer of the permittee certifying that all persons assisting in the conduct of the bingo game operation are members of the organization. The list shall be made available for inspection at any time by the Police Chief, the Controller, or their designees;

(o) No person operating or assisting in the operation of a bingo game shall participate in any game played during that bingo session. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 78-22, § 2, eff. 3-24-78; Am. Ord. 83-15, §§ 12—18, eff. 2-25-83; Am. Ord. 83-20, § 1, eff. 3-4-83; Am. Ord. 83-21, § 1, eff. 3-4-83; Am. Ord. 92-28, § 3, eff. 5-22-92; Am. Ord. 94-18, § 2, eff. 4-29-94; Am. Ord. 98-76, § 1, eff. 11-12-98).

SEC. 9-2217. OPERATORS.

Any bingo game shall be operated and staffed only by members of the permittee. Such members shall not receive a profit, wage, or salary from any bingo game. Only the permittee shall operate such game or participate in the promotion, advertising, supervision, or other phase of the game, and no wage, salary or other payment may be made on account thereof from funds received from such games. This section does not preclude the employment of security personnel who are not members of the authorized organization at such bingo game by the organization conducting the game. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 83-15, § 19, eff. 2-25-83).

SEC. 9-2218. OWNERSHIP OF EQUIPMENT.

All equipment used by the permittee in conducting the bingo game shall be owned by the permittee. (Added Ord. 78-18, § 1, eff. 3-17-78).

SEC. 9-2219. FINANCIAL INTEREST.

No individual, corporation, partnership or other legal entity except the permittee authorized to conduct the bingo game shall have or hold a financial interest in the conduct of such bingo game or the proceeds therefrom. (Added Ord. 78-18, § 1, eff. 3-17-78).

SEC. 9-2220. SPECIAL FUND REQUIRED.

(a) With respect to organizations exempt from payment of bank or corporation taxes by Section 23701d of the California Revenue and Taxation Code, all profits derived from a bingo game shall be kept in a special fund or account and shall not be commingled with any other fund or account. Such profits shall be used only for charitable purposes. With respect to other organizations authorized to conduct bingo games pursuant to this article, all proceeds derived from a bingo game shall be kept in a special fund or account and shall not be commingled with any other fund or account. Such proceeds shall be used only for charitable purposes, except as follows:

(1) Such proceeds may be used for prizes.

(2) A portion of such proceeds, not to exceed twenty per cent of the proceeds before the deduction for prizes, or two thousand dollars ($2,000.00) per month, whichever is less, may be used for rental of property, overhead, including the purchase of bingo equipment, administrative expenses, security equipment and security personnel.

(3) Such proceeds may be used to pay permit fees.

(b) All bingo profits or proceeds to be kept in a special fund or account of a financial institution shall be deposited in such fund or account on the next banking day following the bingo game.

(c) A transfer of bingo profits or proceeds to another fund or account of the permittee, or to another fund or account of any other organization or entity associated or affiliated therewith, for purposes of implementing charitable expenditures of such funds, may occur, provided:

(1) No funds from any source other than bingo profits or proceeds are placed in such fund;

(2) The purpose of such fund is clearly designated as a part of the title or subtitle of the fund;

(3) Expenditures from such fund for such purpose are permitted under the provisions of Section 326.5 of the California Penal Code; and

(4) Disbursements from such fund are by consecutively numbered checks upon each of which is written the nature of the expenditure.

(d) All disbursements from a special fund or account of a financial institution shall be by consecutively numbered checks upon each of which is written the nature of the expenditure. No check shall be drawn to "cash" other than for the purpose of depositing cash in a petty cash fund established and maintained for the payment of incidental bingo expenses. Such checks shall be marked "for deposit to the petty cash fund," and shall not be drawn for more than forty dollars ($40.00). No funds shall be designated or held as petty cash except if drawn by check against the special fund or account in the manner specified above. At no time shall a petty cash fund contain more than forty dollars ($40.00). A receipt shall be obtained for each disbursement from any cash fund consisting of bingo profits or proceeds, indicating the amount of cash disbursed, the name of the individual or organization receiving the cash disbursement, and the purpose for which the disbursement is made.

(e) Any funds not disbursed from a required special fund or account prior to the time a permittee ceases to hold a bingo permit shall be subject to annual reporting requirements to be specified by the Controller, including at a minimum, a statement of the location and amount of any special fund balance of bingo profits or proceeds. Disbursement of the entire amount for charitable purposes, and notification to the Controller within thirty days thereof, shall satisfy the reporting requirements, except that if the disbursement is made to another fund or account from which disbursement of the entire amount of charitable purposes has not yet been made, reports shall be required until such disbursement is made and reported. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-38, § 4, eff. 4-18-80; Am. Ord. 83-15, § 20, eff. 2-25-83).

SEC. 9-2221. RECORDS.

Each permittee conducting a bingo game shall maintain detailed records of all bingo gross receipts, prizes, expenses and proceeds. Such records shall be retained for a period of three years and as long thereafter as may be required by any state or federal law. Such records, including related bank accounts, shall be open for inspection at any time by the Police Chief,

the Controller, their designees, or any state or federal official in the performance of his duties. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 87, eff. 12-26-80; Am. Ord. 83-15, § 21, eff. 2-25-83; Am. Ord. 94-15, § 2, eff. 4-22-94).

SEC. 9-2222. QUARTERLY REPORTS. BINGO GAMES REPORTS.

(a) Within fifteen days after March 31, June 30, September 30 and December 31 during the permit period, the permittee shall file a report under the penalty of perjury with the Controller containing the following information:

(1) Any changes in or additions to the information required in the application;

(2) The total amount received from the operation of bingo games and all interest earned on deposits during the previous quarter;

(3) The total amount paid out in prizes;

(4) The total amount of disbursements made from bingo receipts for the cost of operation of bingo games;

(5) All disbursements from the required special fund or account; and

(6) The total amount on deposit in the required special fund or account, together with a photocopy of the latest financial statement of such account.

(b) If a monthly permit fee is required by Section 9-2227, the permittee shall file a Bingo Games Report with the monthly fee. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 83-15, § 22, eff. 2-25-83).

SEC. 9-2223. CHANGES IN CONDITIONS DURING PERMIT PERIOD.

Any change during the permit period in the organization of the permittee, its principal officers, the staff operating or assisting in the operation of the bingo game, or the condition of the premises shall be immediately reported to the Controller who shall refer such changes to the appropriate official who shall make an investigation thereof and, if he deems appropriate, recommend the suspension and revocation of the permit or the imposition of additional conditions thereto, which suspension, revocation, or additional conditions shall be appealable to the Chief Administrative Officer. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 81-157, § 32, eff. 12-11-81).

SEC. 9-2224. RESTRICTIONS ON TIME FOR CONDUCTING BINGO GAMES.

Any permit issued under this article may be modified to further restrict the time for conducting bingo games as set forth in subsection (h) of Section 9-2216 by the Controller upon his own recommendation or upon the recommendation of the Director of the Development Department or the Fire Chief, which recommendation must be based upon good cause. The modified permit shall have the same force and effect as a new permit. Such modification shall take effect and shall result in the automatic revocation of the prior permit fifteen days after notice thereof unless the permittee appeals the modification to the Chief Administrative

Officer. The original permit shall remain in effect pending decision by the Chief Administrative Officer. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 88, eff. 12-26-80; Am. Ord. 81-157, § 33, eff. 12-11-81; Am. Ord. 83-15, § 23, eff. 2-25-83).

SEC. 9-2225. SUSPENSION OR REVOCATION.

Any permit issued under this article shall be immediately suspended by the Controller upon his own recommendation or upon the recommendation of the Director of the Development Department or the Fire Chief, based upon either a violation of this article by the permittee or its agent, or the discovery of some condition which would have been grounds for denial of the permit application. Such suspension shall result in the automatic revocation of the permit fifteen days after notice thereof unless the permittee appeals the suspension and revocation to the Chief Administrative Officer. The suspension shall remain in effect pending decision by the Chief Administrative Officer. If a permit is revoked, the former permittee shall not be eligible to reapply for a permit for a period of six months from the date of revocation. (Added Ord. 78-18, § 1, eff. 3-17-78; Am. Ord. 80-171, § 89, eff. 12-26-80; Am. Ord. 81-157, § 34, eff. 12-11-81; Am. Ord. 83-15, § 24, eff. 2-25-83).

SEC. 9-2226. RENEWAL.

A permittee desiring to continue conducting a bingo game shall, at least forty-five calendar days before the expiration of the permit, make application to the Controller for a renewal. The application for renewal shall be accompanied by the same fee and proofs and shall be processed in all respects as an original application. (Added Ord. 78-18, § 1, eff. 3-17-78).

SEC. 9-2227. PERMIT FEES.

In addition to the annual permit fee designated in the Master Fee Resolution, an additional fee (specified in the Master Fee Resolution as a percentage of the monthly gross receipts over five thousand dollars ($5,000.00) derived from bingo games) shall be paid to the Controller monthly by each permittee to which it applies. (Added Ord. 83-15, § 25, eff. 2-25-83).

SEC. 9-2228. EXCEPTION TO PAYMENT OF FEE AND BACKGROUND INVESTIGATION.

(a) A nonprofit organization, as defined in Section 23701d of the Revenue and Taxation Code, which is organized and operated exclusively for educational purposes and which conducts no more than one bingo game during any calendar year, is exempt from payment of the fee required by Section 9-2204. The organization shall comply with all other provisions of this article and with California Penal Code Section 326.5.

(b) The Controller need not make the investigation required by Section 9-2208 unless, in the Controller's discretion, an investigation appears warranted. (Added Ord. 88-134, § 2, eff. 12-2-88).

ARTICLE 23 CHILDREN'S PLAYLANDS AND AMUSEMENT CENTERS

Sec. 9-2301. Precautions Required.
Sec. 9-2302. Rules and Regulations.
Sec. 9-2303. Separate Offenses.

SEC. 9-2301. PRECAUTIONS REQUIRED.

Every owner and operator of any privately owned and privately operated playland and amusement center for hire for children within the city shall maintain and operate his mechanical devices for the amusement and enjoyment of children in such a manner as not to constitute a hazard, and shall take every precaution to prevent injury to any child on his premises while in, on or about such amusement devices. (Orig. Ord. 4749).

SEC. 9-2302. RULES AND REGULATIONS.

Every such owner and operator shall comply with the following rules and regulations covering the operation of his mechanical devices:

(1) All seat and floor surfaces shall be in good repair. They shall have no unnecessary obstructions and shall not be unduly slippery.

(2) There shall be a way provided that a rider of any of the mechanical devices cannot fall or be thrown from any such mechanical device.

(3) Whenever the mechanical devices are in motion, provision shall be made to prevent children from contacting such moving rides.

(4) All driving mechanisms where there is any opportunity of contact shall be guarded by enclosure.

(5) All electric lines that could be contacted by children are to be in conduit, and all machinery must be grounded.

(6) There shall be an attendant in sight of all devices and reasonably close by in order to immediately shut down any ride or mechanical device if an emergency arises.

(7) Any roofs over such mechanical devices that can be contacted by riders must be clear of any projection that would cause injury to the body.

(8) All moving equipment shall be of proper engineering design and constructed in a workmanlike manner.

(9) All electrical facilities, wiring, appliances, motors, control devices, and other electrical appurtenances shall comply with the provisions of this Code concerning electrical requirements. California State Safety orders, and Rules and Regulations of any regulatory bodies having jurisdiction.

(10) Artificial lighting shall be provided at all times.

(11) In the event any owner or operator of such playland and amusement center shall fail, refuse or neglect to remedy, repair or correct any defective or unsafe condition at such

playland and amusement center, including the mechanical devices thereon, when notified in writing so to do by the Building Inspection Department, within the time and manner specified by the said department, then and in that event the Council, by appropriate resolution, may require such owner and operator to vacate such playland and amusement center and remove all of his equipment and devices therefrom. (Orig. Ord. 4749, Sec. 1; Am. Ord. 5311, 1958).

SEC. 9-2303. SEPARATE OFFENSES.

Any person shall be deemed guilty of a separate offense for each day during any portion of which any violation of this article is committed, continued or permitted by such person. (Orig. Ord. 4749).

ARTICLE 24 USED AND WASTE TIRES

Sec. 9-2401. Definitions.
Sec. 9-2402. Permit Required.
Sec. 9-2403. Display of Name and Permit Sticker.
Sec. 9-2404. Uses of Permitted Waste Tire Hauler Required.
Sec. 9-2405. Waste Tire Manifest.
Sec. 9-2406. Use of Authorized Facilities.
Sec. 9-2407. Penalty.

SEC. 9-2401. DEFINITIONS.

The following words and terms used in this Article shall have the meaning ascribed to them in this section as follows:

(a) The word "tire" shall mean any pneumatic tire or solid tire manufactured for use on any type of motor vehicle or aircraft.

(b) The term "tire dealer" shall mean any person who engages in the business of selling, trading, installing or dealing in new or used tires for profit including auto dismantlers and wrecking yards.

(c) The term "Tire Processing/Transformation Facility" shall mean any facility that processes or transforms used or waste tires into products or commodities other than tires (crumb rubber, fuel, consumer products, etc.)

(d) The term "used tires" shall mean any pneumatic tire or solid tire manufactured for use on any type of motor vehicle or aircraft that could be resold or used for retreading.

The term "waste tire" shall mean a tire that is no longer suitable for its original intended purpose due to wear, damage or defect.

(f) The term "waste tire hauler" shall mean any person who engages in the business of collection and/or transportation of used or waste tires. (Added Ord. 92-63, § 1, 9-25-92).

SEC. 9-2402. PERMIT REQUIRED.

Any person engaging in the business of a waste tire hauler within the City of Fresno shall have a valid waste tire hauler permit issued by the County of Fresno, Department of Health. Permitted refuse collectors hauling tires to a disposal facility in loads mixed with other solid waste, government agencies, and vehicles carrying five (5) tires or less are exempt from the provisions of this Artilce. (Added Ord. 92-63, § 1 eff. 9-25-92).

SEC. 9-2403. DISPLAY OF NAME AND PERMIT STICKER.

It shall be unlawful for any permit holder to use, or allow to be used, any vehicle to collect and/or transport used or waste tires within the City of Fresno unless such vehicle displays the name of the permit holder in printing a minimum of two (2) inches high on both sides of the

vehicle. A current permit sticker shall be placed on the vehicle as directed by the Fresno County, Department of Health. Common carriers hired by a permitted waste tire hauler are exempt from this section. (Added Ord. 92-63, § 1 eff. 9-25-92).

SEC. 9-2404. USES OF PERMITTED WASTE TIRE HAULER REQUIRED.

It shall be unlawful for any tire dealer in the City of Fresno to contract with, or otherwise permit, any person to collect and/or transport used or waste tires unless that person holds a valid waste tire hauler permit or is exempted from the provisions of this Article, as per Section 9-2401. (Added Ord. 92-63, § 1 eff. 9-25-92).

SEC. 9-2405. WASTE TIRE MANIFEST.

(a) Tire dealers and waste tire haulers shall complete the applicable section of a Waste Tire Manifest (provided by the Fresno County Health Department) whenever used or waste tire are:

(1) collected from a tire dealer by a waste tire hauler;

(2) transported to a facility that receives used or waste tires for storage, processing, transformation or disposal;

(b) A copy of the applicable section of the Waste Tire Manifest shall be submitted by all tire dealers and waste tire haulers to the Fresno County Health Department within thirty (30) days of the date tires are transported.

(c) A copy of the Waste Tire Manifest shall accompany each shipment of used or waste tires being transported.

(d) Any fees for processing the Waste Tire Manifest shall be paid by the waste tire hauler. (Added Ord. 92-63, § 1 eff. 9-25-92).

SEC. 9-2406. USE OF AUTHORIZED FACILITIES.

It shall be unlawful to transport used and waste tires to facilities which are not legally authorized by State or local regulations to accept tires for resale, recapping, recycling, processing, transformation, or disposal. Tire dealers and waste tire haulers shall retain copies of manifests and receipts or other appropriate documentation to verify that used or waste tires were transported to authorized facilities. (Added Ord. 92-63, § 1 eff. 9-25-92).

SEC. 9-2407. PENALTY.

Any person, firm, or corporation violating any provision of this Article shall be guilty of a misdemeanor. (Added Ord. 92-63, § 1 eff. 9-25-92).

ARTICLE 25 CRIMES AGAINST PUBLIC DECENCY AND GOOD MORALS

Sec. 9-2501. Loitering for the Purpose of Soliciting Acts of Prostitution.
Sec. 9-2502. Loitering for Drug Activities.
Sec. 9-2503. Drinking on Street or Playground.
Sec. 9-2504. Gambling on or about School Property.
Sec. 9-2505. Gambling.
Sec. 9-2506. Sale of Gasoline to Intoxicated Person.
Sec. 9-2507. Exposure of Minors to Tobacco Products.
Sec. 9-2508. Curfew for Minors.
Sec. 9-2509. Administrative Recovery of Costs for Curfew Violators.
Sec. 9-2510. Parents' Responsibility.
Sec. 9-2511. Loitering about Places of Public Entertainment.
Sec. 9-2512. Committing Nuisance.
Sec. 9-2513. Sale, Furnishing, Purchase or Possession of Aerosol Paint Container; Persons Under the Age of 18 Years; Possession of Graffiti Implements.
Sec. 9-2514. Graffiti Abatement.
Sec. 9-2515. Display of Aerosol Spray Paint Containers and Marker Pens.
Sec. 9-2516. Juvenile Accountability.
Sec. 9-2517. Dignity for Funerals Act.

SEC. 9-2501. LOITERING FOR THE PURPOSE OF SOLICITING ACTS OF PROSTITUTION.

It is unlawful for any person to loiter in, or about any public place or place open to public view in a manner and under circumstances manifesting a purpose of engaging in soliciting acts of prostitution.

(a) **Definitions.** For purpose of this section, the following definitions shall apply:

(1) "Public place" means any area generally visible to the public, including without limitation streets, sidewalks, alleys, parks, driveways, parking lots, and buildings open to the public, including those which serve food or drink or provide entertainment, and including the driveways and entrances to such buildings.

(2) "Place open to public view" means any area generally visible to the public, including all public property as well as private property, whether generally open to the public or not, which is generally visible from any area which is open to the public, including but not limited to vacant lots, front yards and driveways of private property and motor vehicles (whether in motion or not).

(3) "Act of prostitution" means to engage in sexual relations or any lewd act between persons for hire or monetary reward.

(4) "Known prostitute, pimp or panderer" means a person who, within two years prior to the date of his or her arrest for violation of this section, has been convicted, within the knowledge of the arresting officer, of any offense relating to the crime of prostitution, pimping or pandering.

(5) "Beckoning" means stopping or attempting to stop passersby or motor vehicles by an act of calling out, signalling, waving the arms or other bodily gestures.

(6) "Lewd act" means conduct where the genitals, buttocks, or female breast of either the prostitute or the customer come in contact with some part of the body of the other person for purpose of sexual arousal or gratification of either the prostitute or the customer. For purposes of this section contact with the genitals, buttocks or female breast includes contact through the clothing of either or both parties' as well as skin to skin contact.

(7) "Solicit" means to ask with earnestness, to excite to action, to appeal to, or to invite.

(b) **Circumstances to be considered.** Among the circumstances that may be considered in determining whether a person has violated this Section based upon the knowledge and personal observations of the arresting officer, are the following:

(1) The person is a known prostitute, pimp or panderer.

(2) The person engages in the act of beckoning or behaves in a manner as to raise reasonable suspicion that he or she is seeking to engage in, is about to engage in, or is engaged in soliciting an act of prostitution. The wearing of distinctive clothing is one of the factors which can be considered in determining that there is reasonable suspicion of the intent to engage in solicitation of an act of prostitution.

(3) The person is in the company of, or inside or near a vehicle registered to, a known prostitute, pimp, or panderer or a person known to the arresting officer to have been convicted within the last two years of soliciting an act of prostitution.

(4) The person is currently subject to an order of a court or probation officer prohibiting the person from being in an area of high prostitution activity, or prohibiting the person from being in the company of known prostitutes, pimps, or panderers.

(5) The person attempts to evade officers or to conceal himself or herself from the observation of the arresting officer.

(c) **Punishment.** A violation of this Section is a misdemeanor, punishable upon conviction by imprisonment in the county jail for a term not to exceed six months, or by a fine not to exceed one thousand dollars ($1,000) or by both such fine and imprisonment.

(d) Reserved.

(e) **Severability.** If any subsection, sentence, clause or phrase of this section is for any reason held by a court of competent jurisdiction to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this section. The City Council of the City of Fresno hereby declares that it would have passed this section and each subsection, sentence, clause and phrase thereof, irrespective of the fact that one or more of the subsections, sentences, clauses or phrases may be held invalid or unconstitutional.

(f) The Council finds and determines that:

(1) Violent crime in this community is and continues to escalate at an alarming rate. The citizens of this community are violently victimized and intimidated by individuals who have embraced a criminal life-style which has no place in a civilized society.

(2) The presence of illegal activity, and in particular, prostitution fosters an environment that attracts crime, degrades the quality of life in neighborhoods by creating visual blight, health hazards to our youth and others in the presence of used contraceptives and other trash and rubbish, and impacts the business community by turning away potential customers from the places of business within the area where prostitutes congregate to sell their services.

(3) It is a legitimate need of the City of Fresno to address problems inimical to the health, safety and welfare of the community and loitering with the intent to commit illegal acts is such a problem.

(4) The Council desires to enhance the ability of law enforcement to curtail the environment which is conducive to criminal activity from the streets of this community with an additional enforcement tool to abate the public nuisance created by the individuals who engage in the illegal activities described in this section. (Added Ord. 81-133, § 1, eff. 11-6-81; Am. Ord. 93-65, §§ 1, 2, 11-12-93; Am. Ord. 95-2, §§ 1, 2, eff. 1-3-95; Am. Ord. 96-60, §§ 1, 2, eff. 9-27-96).

SEC. 9-2502. [LOITERING FOR DRUG ACTIVITIES.]

It is unlawful for any person to loiter in, on or near any thoroughfare or place open to the public or place open to public view in a manner and under circumstances manifesting a purpose of engaging in unlawful drug activity.

(a) **Definitions.** As used in this ordinance the following terms shall have the meanings respectively ascribed to them in this Section;

(1) "Unlawful drug activity" means any act or conduct declared to be unlawful under the provisions of Chapters 6 and 6.5 of Division 10 of the California Health and Safety Code, consisting of Sections 11350 through 11400 of said Code, and such amendments thereto as may hereafter be adopted.

(2) "Known unlawful drug user, possessor, or seller," means a person who has, within the knowledge of the arresting officer, been convicted in any court within the State of California of any unlawful drug activity, or convicted of any substantially similar activity under the laws of any other state, or a person who displays physical characteristics of drug intoxication or usage including but not limited thereto such things as "needle tracks", or persons arrested within the past two years while in the possession of illegal controlled substances or drug paraphernalia.

(b) **Circumstances.** Among the circumstances that may be considered in determining whether a person has violated this ordinance based upon the knowledge and personal observations of the arresting officer, are the following:

(1) The person is a known unlawful drug user, possessor, or seller.

(2) The person is in the company of, or inside or near a vehicle registered to, a known unlawful drug user, possessor, or seller, or a person for whom there is an outstanding warrant for unlawful drug activity.

(3) The person is currently subject to an order prohibiting his or her presence in a drug area, or prohibiting the person from being in the company of a known unlawful drug user, possessor, or seller.

(4) The person behaves in a manner as to raise reasonable suspicion that he or she is seeking to engage in, or is about to engage in, or is then engaged in any unlawful drug activity, including, by way of example only, acting as a "lookout," making gestures or statements to motorists or pedestrians known to represent invitations to purchase or sell drugs, or exchanging small objects or packages with another person in a furtive manner.

(5) The person is identified as a member of a criminal street gang, as defined in Section 186.22(f) of the Penal Code, or a group which has, among its members, known unlawful drug users, possessors, or sellers. The method of identification may include, but is not limited to, the wearing of distinctive clothing or insignias.

(6) The person attempts to conceal himself or herself from the observation of the arresting officer or conceals or disposes of any object which reasonably could be involved in the conduct of any unlawful drug activity.

(c) **Severability.** If any subsection, sentence, clause or phrase of this section is for any reason held by a court of competent jurisdiction to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this section. The Council of the City of Fresno hereby declares that it would have passed this section and each subsection, sentence, clause and phrase thereof, irrespective of the fact that one or more of the subsections, sentences, clauses or phrases may be held invalid or unconstitutional.

(d) The Council finds and determines that:

(1) Violent crime in this community is and continues to escalate at an alarming rate. The citizens of this community are violently victimized and intimidated by individuals who have embraced a criminal life-style which has no place in a civilized society.

(2) The presence of illegal activity, and in particular, unlawful drug activity, fosters an environment that attracts crime, degrades the quality of life in neighborhoods by creating visual blight, health hazards to our youth and others in the presence of used hypodermic syringes, discarded dangerous drugs, and other trash and rubbish, and impacts the business community by turning away potential customers from the places of business within the area where drug dealers, drug users and purchasers congregate to sell, consume and purchase drugs.

(3) It is a legitimate need of the City of Fresno to address problems inimical to the health, safety and welfare of the community and loitering with the intent to commit certain illegal acts is such a problem.

(4) The Council desires to enhance the ability of law enforcement to curtail the environment which is conducive to criminal activity from the streets of this

community with an additional enforcement tool to abate the public nuisance created by the individuals who engage in the illegal activities described in this section.

(Added Ord. 93-66, § 1, eff. 11-12-93; Am. Ord. 93-76, § 1, eff. 1-7-94; Am. Ord. 95-2, §§ 3, 4, 1-3-95).

SEC. 9-2503. DRINKING ON STREET OR PLAYGROUND.

(a) No person shall drink any beer, wine or other intoxicating beverage on any street, sidewalk, pedestrian mall, alley, highway, playground, parking lot open to the general public or other lot open to the general public.

(b) Subsection (a) of this section shall not be deemed to make punishable an act or acts which are prohibited by any statute of the State of California.

(c) Subsection (a) of this section shall not apply to any person in an encroachment area posted pursuant to subsection (d) of this section during business hours of the permittee restaurant.

(d) The operator of any restaurant which serves any beer, wine, or other intoxicating beverage for consumption in an area operated for restaurant purposes on any street, sidewalk, or pedestrian mall pursuant to an encroachment permit shall post and maintain signs in or adjacent to the encroachment area reasonably calculated to give notice of the limits of the area and the exception contained in subsection (c) of this section. The number, content, physical features, and locations of such signs shall be only as approved by the Police Chief. The external boundaries of any encroachment area in which intoxicating beverages may be consumed shall be clearly delineated consistent with the limits of the area depicted in the signs.

(e) Subsection (a) of this section shall only apply to a parking lot or other lot open to the general public if:

(1) Pursuant to the property owner's written request, the Police Chief has determined that the lot is open to the general public, and

(2) The owner or operator has posted in a conspicuous place at each entrance to the lot a notice, approved by the Police Chief, to the effect that the lot is subject to the provisions of this section.

(f) Notwithstanding subsection (a) of this section, the Parks and Recreation Director, in consultation with the Police Chief, may authorize the consumption of alcoholic beverages during an event of limited duration held in a mall area as defined in Section 14-1801(f) of this Code.

(Orig. Ord. 4028; Am. Ord. 6146, 1962; Am. Ord. 72-109, 1972; Am. Ord. 82-10, §§ 1, 2, eff. 2-19-82; Am. Ord. 84-82, § 1, eff. 7-13-84; Am. Ord. 2014-17, § 5, eff. 4-18-14).

SEC. 9-2504. GAMBLING ON OR ABOUT SCHOOL PROPERTY.

No person shall play, participate in, or bet for or against any game not mentioned in Section 330 or 330a of the Penal Code of the State of California, in any public place or in any place exposed to the public view located within three hundred feet of any school if said game is played, conducted, dealt, or carried on with cards, dice, or other device, for money, checks, chips, credits, or any other thing which has or represents value.
(Added Ord. 72-30, 1972).

SEC. 9-2505. GAMBLING.

No person shall play, participate in, or bet for or against any game not mentioned in Section 330 or 330a of the Penal Code of the State of California, on any street, sidewalk, pedestrian mall, alley, highway or parking lot open to the general public, if said game is played, conducted, dealt or carried on with cards, dice or other device, for money, checks, chips, credits or any other thing which has or represents value.
(Added Ord. 81-132, § 1, eff. 11-6-81).

SEC. 9-2506. SALE OF GASOLINE TO INTOXICATED PERSON.

No person shall sell, loan, give or deliver gasoline to any person under the influence of intoxicating liquor.
(Orig. Ord. 2202).

SEC. 9-2507. EXPOSURE OF MINORS TO TOBACCO PRODUCTS.

(a) **Declaration:**

The Council of the City of Fresno finds and declares that reducing and eventually eliminating the illegal purchase and consumption of tobacco products by minors is critical to ensuring the long-term health of the citizens of this city. The Council further finds and declares selfservice tobacco displays may contribute to youth use of tobacco by promoting shoplifting and illegal sales. More than 188 cities in Arizona, California, Colorado, Kansas, Maine, Massachusetts, Michigan, Minnesota, New Jersey, New York, North Dakota, Oregon, Pennsylvania, Texas, Utah and Wisconsin have successfully adopted ordinances banning selfservice tobacco displays. It is believed that such ordinances have successfully reduced shoplifting of tobacco by minors and sales of tobacco to minors. In order to protect the health, safety and welfare of minors from the health risks of tobacco use, to minimize the exposure by minors to tobacco products and to prevent minors from breaking existing laws by purchasing, stealing or possessing tobacco products, the Council of the City of Fresno adopts this ordinance.

(b) **Definitions:**

(1) "Employee" means any person in the service of another under any contract of hire, express or implied, oral or written, where the employer has the power or right to

control and direct the employee in the material details of how the work is to be performed. Employee also includes any person volunteering his or her time or service.

(2) "Minor" means any person under 21 years of age.

(3) "Tobacco Product" means any tobacco, cigarette, cigar, pipe tobacco, smokeless tobacco, snuff or any other form of tobacco, which may be utilized for smoking, chewing, inhaling, snuffing or other manner of ingestion or absorption in the human body.

(4) "Tobacco Shops" means a business establishment in which fifty percent (50%) or more of any one or more of the following is devoted to or attributable to the sale of pipe tobacco or cigars:

(i) Wall Space or any other display area such as tables, racks or display structures; or

(ii) Gross revenues.

(c) **Use of Tobacco By Minor.** No minor shall, in the streets, or in any public place, smoke a cigar, pipe, cigarette or shall use tobacco in any form.

(d) **Display of Tobacco Products.** It shall be unlawful for any person, firm, corporation, business, partnership or other entity doing business within the City of Fresno to store, stock, keep or display for sale or transfer any tobacco product in an area other than a place that is locked and secured or is otherwise made unavailable to the public and which is accessible only to the employees of the business. This prohibition shall not apply to "Tobacco Shops."

(e) **Violations.** A violation of this section is punishable pursuant to Article 3 of Chapter 1 of the Fresno Municipal Code.
(Orig. Ord. 1076; Am. Ord. 99-11, § 1, eff. 6-16-99; Am. Ord. 2025-057, § 1, eff. 1-30-26).

SEC. 9-2508. CURFEW FOR MINORS.

No person under the age of eighteen years shall loiter, idle, wander, stroll or play in or upon the public streets, highways, roads, alleys, parks, playgrounds or other public grounds, public places and public buildings, places of amusement and eating places, vacant lots or any unsupervised place between the hours of 10:00 p.m. and 5:00 a.m. of the following day. The provisions of this section do not apply when the minor is accompanied by his or her parent, guardian or other adult person having the care and custody of the minor, or when the minor is upon an emergency errand directed by his or her parent, guardian or other adult person having the care and custody of the minor, or when the minor is returning directly home from a meeting, entertainment, recreational activity or dance. (Orig. Ord. 2960; Am. Ord. 81-90, § 1, eff. 8-28-81).

SEC. 9-2509. ADMINISTRATIVE RECOVERY OF COSTS FOR CURFEW VIOLATORS.

For a violation of Section 9-2507, the City of Fresno may recover its administrative costs for processing violators of said Code section as follows:

(a) A law enforcement officer is authorized to temporarily detain any minor upon a reasonable suspicion based on articulable facts that the minor is in violation of Section 9-2507 and to transport that minor to his or her permanent or temporary residence within the State whether the place of residence is located within or without the City of Fresno, or to the custody of his or her parents or legal guardian. A law enforcement officer may decide not to temporarily detain and transport a minor if he or she determines that the minor has a legitimate reason based on extenuating circumstances for violating the ordinance.

(b) Upon the first violation of Section 9-2507, the law enforcement officer shall issue to the minor a warning citation regarding the consequences of a second violation of said section. A designated representative of the city shall mail to the parents or legal guardian of the minor a notification that states that upon a second violation and every violation thereafter, the parents or legal guardian may be held liable for actual administrative and transportation costs, and that requires the parents or legal guardian to sign and return the notification. This

notification shall include a space for the explanation of any circumstances relevant to an applicable exemption from the fee as provided in subsection (d) below. This explanation shall be reviewed by a designated representative of the city. If the explanation is found to be insufficient, the representative may request a consultation with the parents or legal guardian for the purpose of discussing the circumstances claimed to be relevant to an applicable exemption.

(c) A fee for the actual costs of administrative and transportation services for the return of the minor to his or her place of residence, or to the custody of his or her parents or legal guardian may be charged jointly or severally to the minor, his or her parents, legal guardian, in an amount not to exceed those actual costs.

(d) Upon petition of the person required to pay the fee, the city shall conduct a hearing as to the validity of the fees charged, and may waive payment of the fee by the minor, his or her parents or legal guardian, upon a finding of good cause. If authorized by the Council of the City of Fresno, the city may charge this fee, in which case the city may:

(1) Provide for a waiver of the payment of the fee by the parents or legal guardian upon a determination that the person has made reasonable efforts to exercise supervision and control over the minor.

(2) Provide for a determination of the ability to pay the fee and provide that the fee may be waived if neither the minor or parents or legal guardian has the ability to pay the fee.

(3) Provide for the performance of community service in lieu of imposition of the fee, and

(4) Provide for waiver of payment of the fee by the parents or legal guardian upon the determination that the parents or legal guardian has limited physical or legal custody and control of the minor.

(e) The fees set forth herein shall be established annually by the Council in the Master Fee Schedule designated in the Master Fee Resolution. Said fees shall be based on the costs reasonably borne as set forth herein. All other procedures including the establishment of a hearing officer and procedures for the hearings and other administrative steps herein shall be established by resolution of the Council of the City of Fresno.

(f) The remedy in this Section 9-2508 is cumulative and does not preclude other remedies under the Fresno Municipal Code or other State, federal and local laws. Nothing herein shall preclude the city from seeking other legal or equitable remedies available to it by law.

(g) The provisions of this section shall be considered cumulative to all other laws, rules and regulations regulating curfew violations and other similar offenses. (Added Ord. 94-105, § 1, eff. 12-2-94).

SEC. 9-2510. PARENTS' RESPONSIBILITY.

No parent, guardian or any adult person having the control, custody or charge of any person under the age of eighteen years, shall permit, allow or let said person loiter upon the streets

or in places of amusement or entertainment or in other public places between the hours of 10:00 p.m. and 5:00 a.m. of any day, unless said minor is lawfully upon said streets or public places or places of amusement as permitted by Section 8-128. (Orig. Ord. 2960).

SEC. 9-2511. LOITERING ABOUT PLACES OF PUBLIC ENTERTAINMENT.

No person shall loiter between the hours of 10:00 p.m. and 5:00 a.m., about the premises where any public entertainment is held when such person is not actively participating in the entertainment or is not an invited spectator thereof. (Added Ord. 6568, 1965).

SEC. 9-2512. COMMITTING NUISANCE.

No person shall commit a nuisance in any public place, or upon any private property, or in any place where there are other persons to be offended or annoyed thereby. The phrase "commit a nuisance" as used in this section shall mean evacuate the bowels or bladder at a place not provided for that purpose. (Orig. Ord. 1076).

SEC. 9-2513. SALE, FURNISHING, PURCHASE OR POSSESSION OF AEROSOL PAINT CONTAINER; PERSONS UNDER THE AGE OF 18 YEARS; POSSESSION OF GRAFFITI IMPLEMENTS.

(a) It shall be unlawful for any person, firm, or corporation, except a parent or legal guardian, to sell, give away, or in any way furnish to another person, who is in fact under the age of 18 years, any aerosol container of paint weighing six ounces or less (net weight of contents) that is capable of defacing property without first obtaining bona fide evidence of majority and identity.

For the purposes of this subdivision, "bona fide evidence of majority and identity" is any document evidencing the age and identity of an individual which has been issued by a federal, state, or local government entity, and includes, but is not limited to, a driver's license, a registration certificate issued under the federal Selective Service Act, or an identification card issued to a member of the armed forces.

(b) It shall be unlawful for any person under the age of 18 years to purchase an aerosol container of paint weighing six ounces or less (net weight of contents) that is capable of defacing property.

(c) It is unlawful for any person regardless of age, to possess, with the intent to deface any property, any aerosol container of paint, or felt tip marker pen or other indelible ink marker, any pressurized container designed to propel liquid, any spray activator capable of being attached to an aerosol paint container, or any etching tool as defined by California Penal Code Section 594.2(a) or any other device capable of scarring glass, metal, concrete or wood, while on a public highway, street, alley, or way, or any other public place, regardless of whether that such person is or is not in any automobile, vehicle, or other conveyance. (Added Ord. 89-53, § 1, eff. 6-2-89; Am. Ord. 94-99, §§ 1, 2, eff. 10-18-94).

SEC. 9-2514. GRAFFITI ABATEMENT.

(a) Intent and Purpose. The Council of the City of Fresno finds and determines as follows:

(1) Graffiti on public or private, real or personal property reduces the value of such property, promoting blight and deterioration of surrounding property, resulting in loss of pride in affected neighborhoods, loss of business to neighboring commercial enterprises, and loss of enjoyment of life for persons using adjacent and surrounding properties.

(2) Graffiti that remains on property for a 48 hour period is a public nuisance and its prolonged presence on property promotes additional graffiti and crime in the area marked with graffiti.

(3) The presence of graffiti is inconsistent with the City's goals of maintaining property, preventing crime, and preserving aesthetic standards.

(b) Definitions. For purposes of Section 9-2514:

(1) "City Manager" means the Chief Administrative Officer of the City of Fresno, or his/her authorized representative.

(2) "Graffiti" or "inscribed material" includes but is not limited to any form of unauthorized inscription, word(s), figure(s), mark(s), design(s) whether written, marked, etched, scratched, drawn, painted or otherwise affixed, attached, or placed by means of a sticker or decal on any real or personal, public or private property.

(3) "Expense of abatement" includes, but is not limited to, court costs, attorney's fees, costs of removal of the graffiti or other inscribed material, costs of repair and replacement of defaced property, costs of administering and monitoring the participation of a responsible person and his/her parent(s)/guardian(s) in a graffiti abatement program, and the law enforcement costs incurred by the City of Fresno in identifying and apprehending the responsible person(s) or otherwise the cause of contributing or aiding and abetting in the placement of graffiti or other inscribed material.

(4) "Minor" means any person under 18 years of age who has confessed to, admitted to, or pled guilty or nolo contendere to a violation of Section 594, 594.3, 604.5, 640.6 or 640.7 of the Penal Code, or a minor convicted by final judgment of a violation of Section 594, 594.3, 640.5, 640.6, or 640.7 of the Penal Code, or a minor declared a ward of the Juvenile Court pursuant to Section 602 of the Welfare and Institutions Code by reason of the commission of an act prohibited by Section 594, 594.3, 640.5, 640.6, or 640.7 of the Penal Code.

(5) "Responsible Person" means any person violating this article or any person who has confessed to, admitted to or pled nolo contendere to a violation of Section 594, 594.3, 604.5, 640.6 or 640.7 of the Penal Code, or a person convicted by final judgment of a violation of Section 594, 594.3, 604.5 or 640.7 of the Penal Code, or a minor declared

a ward of the Juvenile Court pursuant to Section 602 of the Welfare and Institutions Code by reason of the commission of an act prohibited by Section 594, 594.3, 640.5, 640.6 or 640.7 of the Penal Code.

(6) "Unauthorized" means either without the prior consent of the property owner or in violation of any law or regulation.

(7) "Director" shall include any person authorized to issue citations pursuant to Fresno Municipal Code Section 1-406(k).

(c) Graffiti prohibited. It is unlawful for any person, regardless of age, to paint or chalk, or otherwise apply graffiti, as defined in Section 9-2514(b), upon public or private, real or personal property of any kind within the City of Fresno.

(d) Aiding or abetting graffiti prohibited. It shall be unlawful for any person, regardless of age, to aid, abet or encourage another to paint, etch or in any other manner apply graffiti upon public or private, real or personal property of any kind within the City of Fresno.

(e) Violation. Any violation of Section 9-2514 shall be a misdemeanor and shall be prosecuted to the fullest extent possible under the California Penal Code Section 594 and other applicable state statutes. Fines may range from ten thousand dollars ($10,000) to fifty thousand dollars ($50,000) and may be imposed pursuant to Sections 1-306 and 10-2304 of this Code.

(f) Public property. Whenever a person violates Section 9-2514 with respect to real property, vehicles, signs, fixtures, or furnishings belonging to the City of Fresno, or any other public entity as defined in Section 811.2 of the Government Code, or the federal government, it shall be a permissive inference that the person neither owned the property nor had the permission of the owner to deface, damage, or destroy the property.

(g) Parent/guardian liability. If a person under 18 years of age is personally unable to pay an administrative fine for acts prohibited by Section 9-2514, or any restitution ordered by the court after the minor is declared a ward of the Juvenile Court pursuant to Section 602 of the Welfare and Institutions Code, the parent(s) or guardian in custody or control of said person shall be liable for the payment of the fine. The City Manager may waive payment of the fine or any part thereof by the parent/guardian upon a finding of good cause.

(h) Use of City Funds to Abate Graffiti. The City of Fresno is authorized to use City funds to remove graffiti or other inscribed material from publicly or privately owned real or personal property located within the City and to replace or repair public or privately owned property within the City that has been defaced with graffiti or other inscribed material that cannot be removed cost effectively. Only the graffiti or inscribed material itself shall be removed unless the graffiti or inscribed material cannot be removed cost effectively, then repair or replacement of the portion of the property that was defaced is permissible. The removal, repair or replacement may be performed in the case of publicly owned real or personal property, only after securing the consent of the public entity having jurisdiction over the property, and in the case of privately owned real or personal property, only after securing the consent of the owner or possessor.

(i) Liability for Expense of Abatement.

(1) Each responsible person shall be responsible to the City for the expense of abatement. The City may seek recovery of the expense of abatement by any means authorized by law.

(2) Pursuant to Government Code Section 38772, a minor and the parent(s) or guardian(s) having custody and control of said minor are jointly and severally liable to the City for the expense of abatement. The expense of abatement may become a special assessment or a lien against the property of the minor and/or the property of the parent(s) or guardian(s) having custody and control of the minor. The procedures set forth in Section 1-513 shall be followed for the imposition of a special assessment or a lien.

(3) Alternatively, the City may seek recovery of damages, including the expense of abatement, pursuant to Civil Code Section 1714(b), jointly and severally against the parent(s) or guardian having custody and control of person under 18 years of age whose act of willful misconduct resulted in the defacement of property of another with paint or similar substance.

(4) Any restitution amount received for the City's abatement of graffiti may be used to support the City's graffiti abatement expenses.

(j) Preservation of Evidence. The Police Department may promulgate procedures for the pre-removal preservation of sufficient evidence of the graffiti or other inscribed material for criminal prosecution or proceedings. Said procedures shall be followed by the City prior to or during removal of the graffiti or other inscribed material.

(k) Graffiti as a public nuisance. The presence of graffiti or other defacing words, letters, or drawings on any building or structure, any motor vehicle, boat, trailer, or other property for a 48 hour period is a public nuisance. It is the responsibility of the property owner or occupant to remove graffiti within 48 hours unless consent is given for abatement by the City.

(1) Enforcement. Failure to remove graffiti within 48 hours or to consent to abatement by the city will result in enforcement pursuant to the procedures set forth in Chapter 10, Article 6 or Chapter 10, Article 7 of this Code.

(2) Appeals. Appeal of any Notice and Order or Administrative Citation issued for failure to comply with the provisions of this section shall be made pursuant to the procedures in Chapter 1, Article 4 of this Code.

(3) Administrative Abatement. The City may proceed with administrative abatement pursuant to Section 10-616 of this Code if the property owner or occupant has failed to timely comply with the final order after any Notice and Order issued for failure to comply with the provisions of this section has become a final order, either by decision of the hearing officer affirming or modifying the same, or by failure to file an appeal within the time prescribed in Chapter 1, Article 4,

(4) Cost Recovery. The City may seek recovery of costs associated with abatement of graffiti from the property owner or occupant pursuant to Chapter 1, Article 5 of this Code.

(Added Ord. 92-30, § 1, eff. 6-19-92; Am Ord. 99-21, § 1, eff. 5-17-99; Am. Ord. 2002-51, § 13, eff. 10-31-02; Am. Ord. 2008-37, § 1, eff. 7-25-08; Am. Ord. 2024-006, § 1, eff. 4-12-24).

SEC. 9-2515. DISPLAY OF AEROSOL SPRAY PAINT CONTAINERS AND MARKER PENS.

It shall be unlawful for any person, firm, or corporation doing business within the City of Fresno to store, stock, keep or display for sale or transfer any aerosol spray paint container, or any indelible ink marker pen with a tip exceeding four millimeters in width, in an area other than a place that is locked and secure or is otherwise made unavailable to the public and which is accessible only to employees of such businesses.

(Added Ord. 93-13, § 1, 3-26-93).

SEC. 9-2516. JUVENILE ACCOUNTABILITY.

(a) Findings. The Council of the City of Fresno finds and determines that:

(1) Minors between the ages of twelve and seventeen years inclusive have an increased opportunity to be involved in, or to become victims of, criminal activity on days when the minors are required by law to be in school, but are not in school. Such criminal activities include but are not limited to, crimes involving participation in gangs and gang violence, crimes against property such as graffiti and other vandalism, burglary and theft, and involvement with illegal drugs and alcohol. In addition others become victims of criminal activity during these hours.

(2) Council further finds that similar ordinances have been highly effective in other communities in reducing daytime criminal activity both by and against minors.

(3) It is the intent of the Council in adopting this ordinance to provide law enforcement with an additional enforcement tool to protect the health, safety and welfare of minors under the age of eighteen and of the general public.

(b) It is unlawful for any minor between the ages of twelve and seventeen years inclusive, who is subject to compulsory education or to compulsory continuation education, to be in or upon any public street, highway, road, alley, park, playground, public place, public building, place of amusement, eating establishment, business open to the public, or vacant lots on days and at times when said minor's school is in session. This section does not apply:

(1) When the minor is accompanied by his or her parent, guardian, or other adult person designated by the minor's parent or guardian to have the care or custody of the minor; or

(2) When the minor is on an emergency errand directed by his or her parent or guardian or other adult person designated by the minor's parent or guardian to have the care or custody of the minor; or

(3) When the minor is engaged in gainful employment or going or coming directly to or from his or her place of gainful employment, or going or coming directly to or from a medical appointment; or

(4) To any minor who has permission to leave school campus for lunch, a school related activity or other authorized activity to be off campus and has in his or her possession a valid, school-issued off campus permit; or

(5) When the minor is authorized to be absent from his or her school pursuant to the provisions of California Education Code Section 48205, and any amendment thereof, or any other applicable state or federal law; or

(6) When the minor is legally home-schooled. If a minor claims to be home-schooled, the officer shall make a reasonable attempt to determine the home-schooled status of the minor prior to taking any enforcement action.

(c) It is unlawful for any parent or guardian of a minor knowingly to permit, or by insufficient control to allow, the minor to be absent from school in violation of this section.

(d) Before taking any enforcement action under this section, a peace officer shall ask the apparent offender's age and reason for being absent from school. The officer shall not take action under this section unless the officer reasonably believes that an offense has occurred and that, no exception under subdivisions (1) through (6) of subsection (b) exists.

(e) A minor detained for a first violation of this section shall receive a warning notification advising the minor that a subsequent violation of this section within the same school year for which the violation notification has been issued may result in punishment as provided for in subsection (f) below and the procedures as provided for in subsections (g) and (h) of this section.

(f) Sanctions. A violation of this Section is a misdemeanor punishable on second and subsequent offense by one or more of the following: formal or informal probation pursuant to Welfare and Institutions Code Section 601, 20-40 hours of community service, a fine of one hundred dollars ($100.00). On the first offense which comes before the Juvenile Hearing

Officer, the Hearing Officer may suspend the criminal proceeding and order the minor to attend a City approved diversion program which is designed to correct the minor's behavior problems. The criminal proceeding will be dismissed upon successful completion of the diversion program.

(g) Parental Obligation to Attend Hearing. A minor cited for a violation of this section shall be cited to attend a hearing before a Juvenile Hearing Officer. The notice of the hearing shall include notice of subsection (h) below wherein the penalty may be set aside for a second violation. The minor must attend the hearing on the violation and must be accompanied by his or her parent or guardian. If the minor's parent or guardian fails to attend the hearing with the minor, unless the interests of justice would be served, the hearing shall be continued and the court may issue a citation to said parent or guardian directing said person to appear at the continued hearing with the minor. Failure of said parent or guardian to appear at the continued hearing with the minor shall constitute a misdemeanor.

(h) Fine May be Set Aside. A fine imposed for any violation of this section, or any portion thereof may be set aside, if the fine is based upon the minor's second violation under this section and provided that the minor produce proof satisfactory to the court that the following has occurred by or before the court hearing:

(1) The minor has had no unexcused absences from school since the issuance of the citation; and

(2) The minor has performed community service as ordered by the Juvenile Hearing Officer during times other than said minor's hours of school attendance; and in appropriate circumstances; and

(3) The minor's parent, or legal guardian has attended a parenting class or a series of parenting classes approved by the court. (Added Ord. 2001-89, § 1, eff. 12-29-01; Am. Ord. 2004-57, § 1, eff. 7-26-04).

SEC. 9-2517. DIGNITY FOR FUNERALS ACT.

(a) Title. This ordinance shall be known as the "Dignity for Funerals Act."

(b) Findings. The Council of the City of Fresno hereby finds and declares the following:

(1) It is generally recognized that families have a substantial interest in organizing and attending funerals for deceased relatives;

(2) It is also recognized that family and close relatives many times suffer significant emotional distress while attending funerals for their relatives;

(3) The interests of families in privately and peacefully mourning the loss of deceased relatives are violated when funerals are disrupted by picketing;

(4) Picketing of funerals causes additional emotional disturbance and distress to grieving families who participate in funerals; and

(5) Full opportunity exists for the exercise of freedom of speech and other constitutional rights at times other than within one hour prior to or during the funeral and one hour following the conclusion of the funeral.

(c) Purpose. The purpose of this ordinance is to protect the privacy of grieving families and to preserve the peaceful character of cemeteries, mortuaries, and churches during the time one hour before and one hour after a funeral.

(d) Definitions.

(1) "Funeral" means the ceremony, procession, or memorial service held in connection with the burial or cremation of a deceased person.

(2) "Picketing" means protest activities engaged in by any person within 300 feet of a cemetery, mortuary, or church.

(3) "Protest activities" include oration, speech, or similar conduct before an assembled group of people that is not part of the funeral or ceremony; the display of placards, banners, posters, flags, or similar devices that are not part of the funeral; and the distribution of any handbill, pamphlet, leaflet, or other written material that is not part of the funeral.

(e) Prohibition. It shall be unlawful for any person to engage in picketing at the funeral during the time period beginning one hour prior to the funeral and ending one hour after the conclusion of the funeral.

(f) Penalty. Any violation of this ordinance shall be a misdemeanor punishable by a fine not to exceed one thousand dollars ($1,000.00) or by imprisonment not to exceed one year, or both such fine and imprisonment.

(g) Severability. If any provision of this ordinance or its application to any person or circumstances is held invalid, that invalidity shall not affect other provisions or applications that can be given effect without the invalid provision or application.
(Added Ord. 2007-1, § 1, eff. 2-18-07).

ARTICLE 26 CRIMES AGAINST PUBLIC HEALTH AND SAFETY

Sec. 9-2601. Use and Possession of Weapons.
Sec. 9-2602. Public Nudity Prohibited.
Sec. 9-2603. Burning Waste or Coal.
Sec. 9-2604. Unauthorized Wearing of Badge.
Sec. 9-2605. Wearing Uniform Similar to That of Police.
Sec. 9-2606. Simulating City Establishment.
Sec. 9-2607. Driving Motor Vehicle Similar to That of Police.
Sec. 9-2608. Aggressive and Abusive Solicitations; Solicitations in Prohibited Places.
Sec. 9-2609. Display of Products Containing Pseudoephedrine and Ephedrine.
Sec. 9-2610. Sideshows, Street Races, and Reckless Driving Exhibitions.

SEC. 9-2601. USE AND POSSESSION OF WEAPONS.

(a) No person shall discharge a firearm into or within the city.

(b) No person shall propel a missile by, or possess a sling shot, slung shot, bow or other instrument commonly used or which is designed for the throwing of any shot, bullet, rock, stone, arrow, or other missile.

(c) No person shall hunt wildlife with any weapon described in this section.

(d) No person under the age of eighteen years shall have in his or her possession any firearm within the city limits unless he or she, at all times during the possession, (1) has on his or her person the written consent of his or her parent or legal guardian, or (2) is accompanied by his or her parent or legal guardian, or (3) is participating in and going to and from an organized, lawful recreational or competitive shooting activity or lawful hunting activity. As used in this subdivision (d), "firearm" means any firearm except (1) any pistol, revolver or firearm capable of being concealed upon the person as described in California Penal Code Section 12001, or (2) a B-B gun, pellet gun or spot-marking gun as described in California Penal Code Section 12001.1, or (3) any other firearm the possession of which by minors is regulated by State law.

(e) This section shall not be deemed to make punishable the act of carrying or discharging a weapon in the lawful discharge of his or her duties by a public officer, or private person duly licensed therefor.

(f) This section shall not apply to the keeping of weapons at a place of business or residence by a person eighteen years of age or older lawfully in possession of the property.

(g) This section shall not apply to the keeping or use of weapons on the premises of any shooting gallery, practice range, skeet field, archery range, or similar place conducted at a fixed location and with regard to which adequate safeguards have been provided to protect persons and property from injury.

(h) This section shall not apply to an organized hunt for the purpose of ridding premises larger than one acre of vermin, when the setting of traps or poison is impractical and the Chief of Police has approved the time, place, and method of the hunt.

(i) No parent, guardian, or any adult person having the control, custody, or charge of any person under the age of eighteen years, shall knowingly permit, allow, or let said person to use or possess a weapon in violation of this section.

(j) Notwithstanding California Penal Code Section 171b(a)(1), (b)(3), no person shall bring into or possess a weapon, including a concealed weapon as defined in PC Section 171b, in City Hall or any city owned or leased building, as may be posted at the entrance(s) of such building, except as follows:

(1) Sworn law enforcement personnel on duty;

(2) Sworn law enforcement off duty, upon showing law enforcement identification upon entry;

(3) Armed security under contract with the city;

(4) Retired City of Fresno police department officers authorized to carry weapons pursuant to 18 U.S.C. 926C, upon showing proper identification upon entry; and

(5) The Fresno Police Independent Reviewer, if authorized to carry weapons pursuant to 18 U.S.C. 926C.

(k) The city shall establish one or more points of entry to City Hall with a security checkpoint, including metal detector, to identify the presence of weapons or other prohibited items; all persons shall submit to screening of their person and possessions upon entry to City Hall as a condition of entry to City Hall, except as follows:

(1) Those identified as exceptions to subsection (j) above; and

(2) City of Fresno charter officials, and anyone accompanying the Charter official into the building.

(l) City of Fresno charter officials shall have electronic key card access to areas of City Hall as provided in a Council resolution.

(m) In furtherance of City Hall security, that area of the City Hall parking lot providing for parking for charter officials shall be fenced and gated, and admission to that area shall be limited to charter officials and their vehicles. along with anyone accompanying the charter official.

(n) A person otherwise lawfully in possession of a concealed weapon in violation of subsection (j) of this section, upon entering City Hall and being advised at a security checkpoint, shall be given the opportunity to immediately remove the weapon from the building rather than being cited under this section.

(o) This ordinance shall not prohibit city officials and employees from carrying pepper spray at work and in city buildings, subject to approval of and conditions imposed by their appointing authority, and provisions of any applicable labor agreement.

(p) The Council, by resolution, may provide for and publish further security regulations and/or exceptions to implement this section.

(q) The Chief of Police is authorized to seize and impound any weapon which is kept, possessed or used in violation of this section, or the missile thereof, and to hold the same for a period of thirty days and until thereafter claimed by its owner. Such articles may not be returned to any person under the age of eighteen years but may be returned to his or her guardian or parent.

(r) This section shall not be deemed to make punishable an act or acts which are allowed or prohibited by any law of the State.
(Orig. Ord. 4737; Am. Ord. 4934, 1956; Am. Ord. 5026, 1956; Rep. and Added Ord. 68-56, 1968; Am. Ord. 90-130, § 1, eff. 12-14-90; Am. Ord. 2020-004, § 1, eff. 3-26-20).

SEC. 9-2602. PUBLIC NUDITY PROHIBITED.

(a) **Findings.** The Council finds and determines that:

(1) Public nudity is degrading to the moral fiber of the City of Fresno and to our minor youth.

(2) Public nudity fosters an environment that attracts crime, degrades the quality of life in neighborhoods by creating visual blight and health hazards by attracting prostitutes and drug dealers to areas where public nudity occurs.

(3) It is necessary for this Code to address the issue of minors who would be permitted to frequent strip clubs and other establishments who restrict nude dancing to less than twenty-five percent (25%) of a given dance performance.

(4) Citizens of the City of Fresno including minors may be involuntarily subjected to nudity on public streets and in other public places.

(b) **Definitions.** Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this section, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this section. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(1) "Nudity" means the showing, with less than a fully opaque covering, of any of the following: the human male or female genitals, pubic hair, pubic area, any portion of the anal cleft or cleavage of the buttocks, and the portion of the human female breast directly and laterally below a point immediately above the top of the areola except as necessary to breast-feed an infant under five years of age. The covering of the female breast shall include the entire lower portion of the breast, but shall not include any portion of the cleavage of the breast, exhibited by a dress, blouse, shirt, leotard, bathing suit, or other clothing, provided the areola is not exposed.

(2) "Public Place" means any location frequented by the public, or where the public is present or likely to be present, or where a person may reasonably be expected to be observed by members of the public. Public places include, but are not limited to, streets, sidewalks, parks, business and commercial establishments (whether for profit or not for profit, whether open to the public at large, or whether entrance is limited by a cover charge or membership requirements).

(3) "Place Provided or Set Aside for Nudity" means (i) single sex public restrooms, unisex bathrooms which are only to be occupied by members of one sex at a time, single sex public showers, single sex locker rooms, and single sex dressing room facilities, none of which allow visual observation of persons in a state of undress from outside the facility; (ii) enclosed motel rooms and hotel rooms designed and intended for sleeping accommodations, medical offices, hospitals and similar places in which nudity or exposure is necessarily and customarily expected outside of the home and its sphere of privacy; and (iii) areas of a private residence where people have a reasonable expectancy of privacy.

(4) The term "Place Provided or Set Aside for Nudity" shall not be deemed to include places where a person's conduct of being nude is used for his or her profit or the profit of third parties.

(5) "Theater, concert hall or auditorium devoted to theatrical performances" means a building, playhouse, room, hall or other place having fixed seats so arranged that a body of spectators can have an unobstructed view of a stage upon which constitutionally protected theatrical performances or similar form of artistic expression are presented.

(c) It is unlawful for any person to knowingly or intentionally appear nude in a public place or in any other place that is readily visible to the public, except a place provided or set aside for nudity. It shall also be unlawful for any person or entity maintaining, owning, or operating any public place to knowingly, or with reason to know, permit or allow any person to appear nude in such public place, except a place provided or set aside for nudity. This subsection shall not apply to children under of thirteen years of age.

(d) In the event that subsection (c) is determined by a court of competent jurisdiction to be invalid, preempted, or unconstitutional, persons under the age of eighteen years shall be prohibited from attending or being present during any live performances where any person appears nude during any part of the performance unless the minor is accompanied by a parent or legal guardian.

(e) This section shall not apply to existing businesses which have previously been granted a conditional use permit which allows live nude entertainment in accordance with this Code's requirements for adult use businesses. This section shall also not apply to new adult oriented uses that are regulated and in compliance with Chapter 15-2705.

(f) This section shall not apply to constitutionally protected theatrical performances or similar forms of artistic expression performed in theaters, concert halls, or auditoriums devoted to theatrical performances.

(g) This section shall not apply to any act prohibited by state or federal law, or the prohibition of which is preempted by state or federal law.

(h) A violation of this section shall be enforced as set forth in Section 1-304 of this Code.

(i) **Severability.** If any subsection, sentence, clause, phrase, or term of this section is for any reason held by a court of competent jurisdiction to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this section. The City Council of the City of Fresno hereby declares that it would have passed this section and each subsection, sentence, clause and phrase thereof, irrespective of the fact that one or more of the subsections, sentences, clauses or phrases may be held invalid or unconstitutional.
(Added Ord. 2000-62, § 1, eff. 8-29-00; Am. Ord. 2001-31, § 1, eff. 5-2-01; Am. Ord. 2015-39, § 8, eff. 1-9-16).

SEC. 9-2603. BURNING WASTE OR COAL.

(a) No person shall burn treated wood, plastics, garbage, rubbish, or other solid waste in a home heating furnace, fireplace, or wood stove, excepting that non-plasticized waste paper may be used for kindling of fires in wood burning appliances.

(b) No person shall burn coal or any derivatives of coal in any space heating or cooking appliance or boiler.
(Added Ord. 90-74, § 4, eff. 8-24-90).

SEC. 9-2604. UNAUTHORIZED WEARING OF BADGE.

No person shall wear a fireman's or policeman's badge, or the badge of any public officer or inspector of the city, when not authorized to wear such badge.
(Orig. Ord. 1076).

SEC. 9-2605. WEARING UNIFORM SIMILAR TO THAT OF POLICE.

No person shall wear any uniform, badge or insignia which is of such appearance as to be readily mistaken for the official uniform, badge or insignia of a police officer.
(Orig. Ord. 3390).

SEC. 9-2606. SIMULATING CITY ESTABLISHMENT.

No person shall construct, paint, install, or maintain any sign, symbol, fixture, or structure which has the appearance of being, or has the effect of making an object, area or place appear to be official property of the City of Fresno, when in fact such object, area, or

place is not official property, including, but not limited to, such designations as "Police," "P.D.," "Fresno P.D.," "Fire Department," "F.D.," "Fresno F.D.," "Water Department" or "City of Fresno."
(Added Ord. 6494, 1964).

SEC. 9-2607. DRIVING MOTOR VEHICLE SIMILAR TO THAT OF POLICE.

No person shall drive or operate any motor vehicle which carries any insignia, wording or design as to be readily mistaken for any official police car.
(Orig. Ord. 3390).

SEC. 9-2608. AGGRESSIVE AND ABUSIVE SOLICITATIONS; SOLICITATIONS IN PROHIBITED PLACES.

(a) **Findings.** The Council finds and determines as follows:

(1) The maintenance and improvement of the quality of life and economic vitality of the City of Fresno are significant government interests.

(2) The protection of the Citizens of the City of Fresno from the danger of assault, battery, theft, and disturbances of the peace, as well as other crimes, is also a significant government interest.

(3) Aggressive and abusive solicitations threaten these significant government interests by diminishing access to and enjoyment of public places, threatening the commercial well being of local businesses, and creating an environment of fear, intimidation, and confrontation.

(4) Solicitations in certain sensitive places also threaten these significant government interests. Such solicitations also diminish access to and enjoyment of public places, threaten the commercial well being of local businesses, and create an environment of fear, intimidation, and confrontation.

(5) Citizens of the City of Fresno are involuntarily subjected to aggressive and abusive solicitations for monetary or other donations, causing them to feel threatened, intimidated, and coerced. Such conduct usually includes approaching and following persons, repeated requests for donations, unwanted physical contact, abusive language and threats, and obstruction of pedestrian and vehicular traffic.

(6) Citizens of the City of Fresno are involuntarily subjected to coercion, intimidation and fear in certain places, including public parking lots, ATM's, lines of people, outdoor dining areas, and other areas where they are a "captive audience" and thus feel less able to decline a solicitor's request.

(7) Aggressive and abusive solicitations increase the risk of assault, battery, theft, disturbing the peace, and other crimes. Such solicitations can provoke confrontations due to the threatening and offensive nature of the conduct of the solicitor. These situations put not only the solicited person, but also the solicitor, at risk of being the victim of assaultive and criminal conduct.

(8) Solicitations in certain sensitive places also increase the risk of assault, battery, theft, disturbing the peace, and other crimes. Such solicitations can lead to confrontations due to the heightened sense of susceptibility of the person solicited. These situations put the solicited person and the solicitor at risk of being the victim of assaultive and criminal conduct.

(9) The content-neutral time, place and manner restrictions on aggressive and abusive solicitations as narrowly tailored in this article serve these significant government interests. Such restrictions will lessen feelings of coercion, intimidation, fear, and confrontation by prohibiting that conduct most likely to create such feelings.

(10) Restricting all solicitations in certain sensitive areas will enhance the feeling of security and peace of mind of persons in those areas. The restrictions in this article leave open ample alternative avenues of communication and these restrictions are not intended to diminish the freedom or liberty of speech guaranteed under the United States and California Constitutions.

(11) It is not the intent or purpose of the Council in enacting this article to eradicate or displace any individual or group of homeless or indigent persons, but rather to protect the public from those persons, indigent or otherwise, who engage in aggressive and abusive solicitations, and/or who solicit in certain narrowly-defined areas of heightened sensitivity.

(b) **Definitions.** For the purposes of this section, the following definitions shall apply:

(1) "Solicitation" means any request, by words or physical gesture, made in person seeking an immediate donation or contribution of money or other item of value. Purchase of an item for an amount far exceeding its value, under circumstances where a reasonable person would understand that the purchase is in substance a donation or contribution, is a donation or contribution for the purposes of this section. A person is not soliciting, for the purposes of this section, when he or she passively displays a sign or gives any other indication he or she is seeking donations or contributions, and when he or she does not address the solicitation to any specific person other than in response to an inquiry by that person.

(2) "Solicitation in an aggressive or abusive manner" means solicitation via any of the following acts or conduct:

(i) Intentionally coming within three feet of a solicited person unless and until that person has indicated, by word or conduct, he or she wishes to make a donation;

(ii) Intentionally blocking the path or impeding the passage of a solicited person;

(iii) Intentionally following behind, beside or in front of a solicited person after that person has indicated, by word or conduct, he or she does not wish to make a donation;

(iv) Continuing to request a donation from a solicited person after that person has indicated, by word or conduct, he or she does not wish to make a donation;

(v) Approaching a solicited person when that person is entering or exiting a motor vehicle or assisting another in doing so;

(vi) Rendering any service to a motor vehicle, including but not limited to any cleaning, washing, protecting, guarding or repairing of said vehicle or any portion thereof, without the consent of the owner, operator or occupant of such vehicle, and thereafter requesting payment for the performance of such service, regardless of whether such vehicle is stopped, standing or parked;

(vii) Threatening a solicited person, by word or conduct, with physical harm or violence;

(viii) Using profane or abusive language towards a solicited person;

(ix) Intentionally touching or attempting to touch a solicited person without that person's consent;

(x) Any other words or conduct that would cause a reasonable person, in the position of the solicited person, to fear for his or her safety, the safety of his or her property or the safety of another person accompanying the solicited person.

(3) "Public place" means any place open to the general public and includes, but is not limited to, any sidewalk; alley; street; highway; bridge; driveway; parking lot; parking structure; playground; park; plaza; mall; structure; building; doorway, entrance, lobby or hallway to or in a building; the grounds around or enclosed by a building; school; or place of amusement. Such a place is a "public place" regardless of whether it is publically or privately owned.

(4) "Prohibited place" means any:

(i) Bus stop;

(ii) Public transportation vehicle or facility;

(iii) Public parking lot or structure;

(iv) An area within fifty (50) feet of an automated teller machine (ATM);

(v) A queue or line of two or more persons waiting to be admitted to a commercial establishment or waiting to purchase an item or ticket;

(vi) An outside dining area or motor vehicle drive-through lane of a restaurant or other dining establishment serving food for immediate consumption.

(c) It is unlawful for any person to engage in solicitation in an aggressive or abusive manner in any public place.

(d) It is unlawful for any person to engage in solicitation while the solicited person is in a prohibited place.

(e) Punishment. A violation of this section is a misdemeanor, punishable upon conviction by imprisonment in the county jail for a term not to exceed six (6) months, or by a fine not to exceed one thousand dollars ($1,000) or by both such fine and imprisonment.

(f) Severability. If any subsection, sentence, clause or phrase of this section is for any reason held by a court of competent jurisdiction to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this section. The Council of the City of Fresno hereby declares that it would have passed this section and each subsection, sentence, clause and phrase thereof, irrespective of the fact that one or more of the subsections, sentences, clauses or phrases may be held invalid or unconstitutional. (Added Ord. 2002-49, § 1, eff. 10-28-02).

SEC. 9-2609. DISPLAY OF PRODUCTS CONTAINING PSEUDOEPHEDRINE AND EPHEDRINE.

(a) The Council of the City of Fresno finds that the locally increasing illegal production and use of methamphetamine threatens the health, safety, and welfare of the citizens of the City of Fresno. The Council of the City of Fresno further finds that the easy over-the-counter accessibility to the public of products containing pseudoephedrine and ephedrine, key components in the production of methamphetamine, continues to facilitate the illegal production and use of methamphetamine despite the efforts of the State of California to regulate the sale of these products. This ordinance seeks to add additional safeguards that would prevent the easy theft and illegal purchase of products containing these controlled substances by requiring that such products be kept, stored, stocked and displayed in the course of retail distribution, in an area that is locked and secure, or is otherwise made unavailable to the public and is accessible to the public only through an employee of the business.

(b) It shall be unlawful for any person, firm, corporation, business, partnership, or other entity doing business within the City of Fresno to store, stock, keep or display for sale or transfer, any product containing pseudoephedrine or ephedrine in an area other than a place that is locked and secure or otherwise made unavailable to the public and which is accessible to the public only through an employee of the business. Violation of this section shall be enforced in accordance with Section 1-404 of this code. (Added Ord. 2005-121, § 1, eff. 12-4-05).

SEC. 9-2610. SIDESHOWS, STREET RACES, AND RECKLESS DRIVING EXHIBITIONS.

(a) Definitions. For the purposes of this section, the following definitions shall apply:

(1) "Off-street Parking Facility" is defined in subdivision (c) of California Vehicle Code Section 12500, as may be amended.

(2) "Participant" means any individual driving a vehicle which is found to have engaged in a Reckless Driving Exhibition, as referred to in California Vehicle Code Section 23103.

(3) "Passenger" means any individual riding in a vehicle which is found to have engaged in a Reckless Driving Exhibition or Sideshow, as referred to in California Vehicle Code Section 23103.

(4) "Preparations" for any Sideshow, Street Race or Reckless Driving Exhibition include, but are not limited to, any of the following acts done for the purpose of a Side Show, Street Race or Reckless Driving Exhibition.

(i) One or more motor vehicles and persons have arrived at a location on a public street or highway or in an Off-street Parking Facility for the purpose of participating in or observing a Sideshow, Street Race or Reckless Driving Exhibition; and

(ii) One or more persons have gathered on, or adjacent to, a public street or highway for the purpose of participating in or observing a Sideshow, Street Race or Reckless Driving Exhibition; and

(iii) One or more persons have gathered in an Off-street Parking Facility for the purpose of participating in or observing a Sideshow, Street Race or Reckless Driving Exhibition; and

(iv) One or more persons have impeded the free public use of a public street, highway, or Off-street Parking Facility by acts, words or physical barriers for the purpose of participating in or observing a Sideshow, Street Race or Reckless Driving Exhibition; and

(v) One or more motor vehicles have lined up on a public street, highway, or Off-street Parking Facility with motors running for the purpose of participating in or observing a Sideshow, Street Race or Reckless Driving Exhibition; and

(vi) One or more drivers are revving a motor vehicle's engine or causing the motor vehicle's tires to spin; or

(vii) A person is standing or sitting in a location to act as a race starter.

(5) "Present" means a Spectator is within two hundred feet of the location of the Sideshow, Street Race or Reckless Driving Exhibition, or within two hundred feet of the site of the Preparations for either of these activities.

(6) "Reckless Driving Exhibition" shall mean any exhibition of reckless driving referred to in California Vehicle Code Section 23103, as may be amended.

(7) "Scene" shall mean the location of the Sideshow, Street Race or Reckless Driving Expedition or the location of the Preparations for the Sideshow, Street Race or Reckless Driving Expedition.

(8) "Sideshow" shall mean any exhibition of reckless driving referred to in California Vehicle Code Section 23103, as may be amended.

(9) "Spectator" shall mean any person who is present at a Sideshow, Street Race or Reckless Driving Exhibition, or the site of the Preparations for any of these activities, for the purpose of viewing, observing, watching, or witnessing the event as it progresses. A "Spectator" includes any person at the location of the event without regard to the means by which the person arrived.

(10) "Street Race" means any motor vehicle speed contest or motor vehicle exhibition of speed referred to in subdivisions (a) and (c) of California Vehicle Code Section 23109, as may be amended.

(b) Prohibition on Participation. It shall be unlawful for any person to:

(1) Intentionally participating as a driver at a Sideshow, Street Race or Reckless Driving Exhibition conducted on a public street or highway; or in an Off-street Parking Facility including parking garages.

(2) Intentionally being present as a Passenger at a Sideshow, Street Race or Reckless Driving Exhibition conducted on a public street or highway or in an Off-street Parking Facility including parking garages.

(3) Intentionally being present as a Spectator at a Sideshow, Street Race or Reckless Driving Exhibition conducted on a public street or highway or in an Off-street Parking Facility including parking garages.

(4) Intentionally being present as a Spectator where Preparations are being made for a Sideshow, Street Race or Reckless Driving Exhibition conducted on a public street, highway, or in an Off-street Parking Facility including parking garages.

(5) Nothing in this Chapter prohibits peace officers, medical professionals, firefighters or their agents who are acting in the course of their official duties from being Spectators at a Sideshow, Street Race or Reckless Driving Exhibition or Spectators at the location of Preparations for any of these activities.

(6) Nothing in this Chapter prohibits uninvolved innocent bystanders from reporting these activities.

(7) Uninvolved innocent bystanders are not in violation of this ordinance even if they are within two hundred feet of these activities if they do not possess the requisite intent to Spectate, Street Race, participate in a Sideshow, or engage in Reckless Driving Exhibition.

(c) Considerations relevant to a violation. In establishing a violation of subsection (b), the following may be considered to the extent permissible by applicable law:

(1) Evidence of Prior Acts:

(i) That the person charged has previously participated in or been a Spectator at a Sideshow, Street Race or Reckless Driving Exhibition;

(ii) That the person charged has previously aided and abetted a Sideshow, Street Race, or Reckless Driving Exhibition;

(iii) That the person charged has previously attended a Sideshow, Street Race, or Reckless Driving Exhibition; or

(iv) That the person charged was previously present at a location where Preparations were being made for a Sideshow, Street Race or Reckless Driving Exhibition, or where a Sideshow, Street Race or Reckless Driving Exhibition was in progress.

(v) Evidence of these prior acts may be admissible, to the fullest extent permissible by law, to show the opportunity, intent, plan, knowledge, identity or the absence of mistake or accident, or propensity of the defendant to be present at or attend a Sideshow, Street Race, or Reckless Driving Exhibition if the prior act or acts occurred within three years of the presently charged offense. These prior acts may always be admissible to show knowledge on the part of the defendant that a Sideshow, Street Race or Reckless Driving Exhibition was taking place.

(2) The time of day;

(3) The nature and description of the Scene, including the number and configuration of traffic lanes;

(4) The number of people at the Scene;

(5) The location of the person charged in relation to any person or group of persons present at the Scene;

(6) The number and descriptions of motor vehicles at the Scene;

(7) That the motor vehicles at the Scene have been modified or altered to increase power, handling, or visual appeal;

(8) That the person charged drove or was transported to the Scene.

(d) Prohibition on Promotion.

(1) It shall be unlawful for any person to knowingly encourage, promote, instigate, assist, facilitate, aide, or abet the gathering of persons as Spectators at a Sideshow, Street Race or Reckless Driving Exhibition conducted on a public street or highway; or conducted on a public street or highway, or Off-street Parking facility including parking garages.

(2) It shall be unlawful for any person to knowingly encourage, promote, instigate, assist, facilitate, aide, or abet the gathering of persons as Spectators where Preparations are being made for a Sideshow, Street Race or Reckless Driving Exhibition conducted on a public street or highway, or in an Off-street Parking Facility including parking garages.

(e) Violations.

(1) Any person who violates this Section is guilty of a misdemeanor subject to a maximum of six months in jail and a fine of $1,000.00, unless at the discretion of the City Attorney, the violation is reduced to an infraction.

(2) Any person who violates this Section or who aids in the violation of this Section is liable for the actual damages caused by said violation, in such amount as may be determined by a jury or a court sitting without a jury.

(Added Ord. 2023-013, § 1, eff. 6-22-23)

ARTICLE 27 CRIMES AGAINST PRIVATE PROPERTY

Sec. 9-2701. Keeping of Dogs.
Sec. 9-2702. Premises, Duty to Maintain.
Sec. 9-2703. Unlawful Possession of Detached Catalytic Converter.

SEC. 9-2701. KEEPING OF DOGS.

(a) No person shall keep or maintain, or cause or permit to be kept or maintained, upon any premises, any dog which by habitual and continual barking, howling or whining shall disturb the peace and comfort of any neighborhood or interfere with the reasonable and comfortable enjoyment of life or property by any person.

(b) No person shall keep or maintain, or cause or permit to be kept or maintained, any dog owned by him or in his possession or under his control which habitually commits a nuisance upon the property of any other person.

(c) No person shall keep or maintain, or cause to be kept or maintained, any unconfined dog which habitually attacks, or barks at passing pedestrians, vehicles or other users of the public sidewalks, streets and highways.

(d) Violation of this section is an infraction. (Orig. Ord. 4329 and 4413; Am. Ord. 75-44, § 2, eff. 6-2-75).

SEC. 9-2702. PREMISES, DUTY TO MAINTAIN.

No person owning, leasing, occupying or having charge of, any premises shall keep or maintain such premises in a manner so at variance with the maintenance standards of properties in the neighborhood in which such premises are located as to cause substantial diminution in the enjoyment, use or property value of such properties. (Added Ord. 6649, 1965).

SEC. 9-2703. UNLAWFUL POSSESSION OF DETACHED CATALYTIC CONVERTER.

(a) It is unlawful for any person, other than a Core Recycler as defined in California Business and Professions Code section 21610, to possess any catalytic converter that is not attached to a vehicle unless the person has valid proof of ownership of the catalytic converter.

(b) This section does not apply to a detached catalytic converter that has been tested, certified, and labeled or otherwise approved for reuse, and being bought or sold for purposes of reuse in accordance with the federal Clean Air Act (42 U.S.C. §§ 7401 et seq.) and regulations under the Clean Air Act, as they may, from time to time, be amended.

(c) For purposes of this section, "valid proof of ownership" means written document(s) that clearly identify the vehicle from which the catalytic converter originated based on the totality of the circumstances, and includes, but is not limited to, the following types of documents:

1. Bill of sale from the original owner with photographs or similar visual representation.

2. Documentation from an auto-body shop proving that the owner relinquished the catalytic converter to the auto-body shop.

3. Verifiable electronic communication from the previous owner to the possessor relinquishing ownership of the catalytic converter.

4. Photographs or similar visual representation of the vehicle from which the catalytic converter originated.

(d) It is unlawful for any person to knowingly falsify or cause to be falsified any information in a record intended to show valid proof of ownership.

(e) Each violation of this section constitutes a separate violation, including but not limited to: possession of multiple catalytic converters during a single contact by law enforcement, or the locating of catalytic converter(s) at other locations discovered as a result of the initial contact by law enforcement, or any other circumstance connecting the potential violator to the unlawful possession of catalytic converter(s), and is subject to all remedies and enforcement measures authorized by the Fresno Municipal Code.

(f) Any person who violates any provision of this section shall be guilty of a misdemeanor punishable by a fine not to exceed $1,000, imprisonment in the county jail for a term not to exceed 12 months, or both.

(g) If any section, subsection, subdivision, sentence, clause, phrase, or portion of this Ordinance is for any reason held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The City Council hereby declares that it would have adopted this Ordinance and each section, subsection, subdivision, sentence, clause, phrase, or portion thereof irrespective of the fact that any one or more sections, subsections, subdivisions, sentences, clauses, phrases or portions thereof be declared invalid or unconstitutional.

(h) Compliance with Business & Professions Code § 21610 and Vehicle Code § 10852.5 is legally required.

(i) A core recycler, as defined in Business and Professions Code § 21610, operating under a permit granted by the City of Fresno who is found to be in violation of any applicable law shall have revocation proceedings initiated in accordance with Section 15-5016, Revocation of Permits.

(Added Ord. 2023-003, § 1, eff. 3-31-23)

ARTICLE 28 MALICIOUS MISCHIEF

Sec. 9-2801. False Fire Alarms.
Sec. 9-2802. False Reports.
Sec. 9-2803. False Statements.

SEC. 9-2801. FALSE FIRE ALARMS.

No person shall make or cause to be made any false alarm of fire by means of the fire alarm telegraph system, by telephone, telegraph, or by any other means. (Orig. Ord. 2194).

SEC. 9-2802. FALSE REPORTS.

No person shall make or cause to be made any report, statement, or representation to any peace officer, to the City Attorney, or any of his assistants or deputies, or to any officer or employee of the Fire Department that any crime has been committed, or concerning any crime which has been committed or purportedly committed, or concerning any emergency, purported emergency, or other situation which normally results in or requires any action to be taken by any of the aforementioned persons with respect thereto, when in fact such report, statement, or representation is false and known to be false by such person. (Orig. Ord. 4566; Am. Ord. 6448, 1964).

SEC. 9-2803. FALSE STATEMENTS.

No person required by any provision of this Code or ordinance of this City to furnish a report or to make a statement shall furnish therein any false, untrue, or misleading information or statement relating to any information required by any provision of this code or ordinance of this City to be made or furnished when such person knows the same to be false, untrue, or misleading. (Added Ord. 6448, 1964).

ARTICLE 29 RESERVED*

*__Editor's note—__Ord. No. 2011-36, § 1, effective January 12, 2012, amended the Code by repealing former art. 29, §§ 9-2901—9-2910, in its entirety. Former art. 29 pertained to citizens concealed weapons licenses, and derived from Ord. 95-7, effective February 24, 1995; and Ord. 2002-52, effective October 31, 2002.

ARTICLE 30 SOCIAL HOST ORDINANCE CONCERNING CONSUMPTION OF ALCOHOLIC BEVERAGES BY UNDERAGE PERSON(S)

Sec. 9-3001. Short Title.
Sec. 9-3002. Findings and Intent.
Sec. 9-3003. Purpose.
Sec. 9-3004. Definitions.
Sec. 9-3005. Consumption of Alcohol by Underage Person(s).
Sec. 9-3006. Prima Facie Evidence.
Sec. 9-3007. Separate Violation for Each Incident.
Sec. 9-3008. Penalties for Violation and Enforcement Remedies.
Sec. 9-3009. Reservation of Legal Options.

SEC. 9-3001. SHORT TITLE.

This Article shall be known and cited as the "Social Host Ordinance." When used in this article, "this article" means the Social Host Ordinance.
(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3002. FINDINGS AND INTENT.

The Council finds and determines as follows:

(a) The occurrence of parties on private property where alcohol is served to or consumed by underage person(s) is harmful to the underage person(s) and a threat to public health, safety, quiet enjoyment of property, and the general welfare, of the communities where such parties are held.

(b) Underage person(s) often obtain alcoholic beverages at parties held at private residences or at rented residential and commercial premises that are under the control of a person who knows or should know of the underage service and/or consumption. Person(s) responsible for the occurrence of parties on private property over which they have possession or control have failed to ensure that alcoholic beverages are neither served to nor consumed by underage person(s) at these parties.

(c) Control of parties on private property where underage person(s) are being served or consuming alcohol is necessary because such activity poses a threat to the peace, health, safety, or general welfare of the public. Police ability to abate gatherings where alcohol is served to or consumed by underage person(s) on private property will result in a decrease in abuse of alcohol by underage person(s), physical altercations and injuries, neighborhood vandalism, and excessive noise disturbance thereby improving public safety.

(d) Problems associated with such parties at which alcoholic beverages are served to or consumed by underage person(s) are difficult to prevent and deter unless law enforcement has the legal authority to direct the host to disperse the party.

(e) Law enforcement, fire and other emergency response services personnel have and are required to respond, sometimes on multiple occasions, to parties on private property at

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which alcoholic beverages are served to or consumed by underage person(s). Responses to such parties result in a disproportionate expenditure of public safety resources and cause a drain of staff, leaving other areas of the City with inadequate protection.

(f) Person(s) held responsible for abetting or tolerating parties will be more likely to properly supervise and stop such conduct at parties held on private property under their possession and control. The prohibitions found in this chapter are reasonable and expected to deter the consumption of alcoholic beverages by underage person(s) by holding person(s) who knowingly allow service to or consumption by underage person(s) responsible.

(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3003. PURPOSE.

The Council finds and declares that the purpose of this ordinance is:

(a) to protect public health, safety and general welfare;

(b) to enforce laws prohibiting the service to and consumption of alcohol by underage person(s); and

(c) to reduce the costs of providing law enforcement, fire and other emergency response services to parties by imposing a civil fee against social hosts and landowners (including landlords) and for the recovery of costs associated with providing law enforcement, fire and other emergency response services to parties where alcoholic beverages are served to or consumed by underage person(s).

(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3004. DEFINITIONS.

The following terms as used in this article shall have the meaning ascribed to them in this section as follows:

(a) "Alcohol" means ethyl alcohol, hydrated oxide of ethyl, or spirits of wine, from whatever source or by whatever process produced.

(b) "Alcoholic beverage" includes alcohol, spirits, liquor, wine, beer, and every liquid or solid containing alcohol, spirits, wine, or beer, and which contains one-half of one percent or more of alcohol by volume and which is fit for beverage purposes either alone or when diluted, mixed, or combined with other substances.

(c) The term "underage person(s)" means any person under twenty-one (21) years of age.

(d) The term "juvenile" means any person under eighteen (18) years of age.

(e) The term "party or parties," means an assembly of two (2) or more individuals for any purpose, unless all of the individuals attending the assembly are members of the same household or immediate family.

(f) The term "private property" shall mean a hotel or motel room or bed and breakfast unit, home, yard, apartment, condominium, mobile home, cottage, cabin, trailer, tent

or other dwelling unit, abandoned or vacant warehouse or other building or a hall or meeting room, whether occupied on a temporary or permanent basis, whether occupied as a dwelling or for a party or other social function, and whether owned, leased, rented, or used with or without compensation.

(g) The term "responsible person" means a person or persons with a right of possession in the residence or other private property on which a party is conducted, including, but is not limited to:

1. An owner of the private property;

2. A tenant or lessee of the private property;

3. The person(s) in charge of the private property; and

4. The person(s) who organizes, supervises, officiates, conducts or controls the party or any other person(s) accepting responsibility for such party.

(h) The term "person(s)" includes, but is not limited to, any business, corporation or other organization.

(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3005. CONSUMPTION OF ALCOHOL BY UNDERAGE PERSON(S).

Except as permitted by Article I, Section 4, of the California Constitution, it is unlawful for any person to:

(a) Knowingly permit, allow, or host a party on his or her private property or premises under his or her control where underage person(s) are present and alcoholic beverages are being served to or consumed by any underage person(s).

(b) This section shall not apply to conduct involving the service to or consumption of alcoholic beverages, which occurs exclusively between an underage person(s) and his or her parent or legal guardian or during the course of a religious ceremony conducted by an ordained minister.

(c) This section shall not apply to any location or place regulated by the California Department of Alcohol and Beverage Control.

(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3006. PRIMA FACIE EVIDENCE.

Whenever a responsible person is present at a private property at the time an underage person(s) is being served or consumes any alcoholic beverage thereon, it shall be prima facie evidence that such person(s) had the knowledge or should have had the knowledge specified in Section 9-3005.

(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3007. SEPARATE VIOLATION FOR EACH INCIDENT.

Each incident in violation of Section 9-3005 shall constitute a separate offense. An "incident" refers to each time law enforcement, fire, or other emergency personnel respond to a party, i.e., if a response is required multiple times to the same party on the same date, each response shall be a separate offense.
(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3008. PENALTIES FOR VIOLATION AND ENFORCEMENT REMEDIES.

(a) A violation of this section shall constitute a misdemeanor punishable by a fine of $1,000.00 or by imprisonment for a period not to exceed six (6) months, or by both fine and imprisonment.
(Added Ord. 2007-16, § 1, eff. 4-19-07).

SEC. 9-3009. RESERVATION OF LEGAL OPTIONS.

(a) The City of Fresno does not waive its right to seek other legal remedies or procedures. This section in no way limits the authority of peace officers or private citizens to make arrests for any criminal offense arising out of conduct currently regulated, nor do they limit in any way the prosecution's ability to initiate and prosecute a criminal prosecution for any violation of a criminal offense arising out of the same circumstances.

(b) If any section, subsection, sentence, clause or phrase or word of this ordinance is for any reason held to be unconstitutional by a court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordnances. The Fresno City Council hereby declares that it would have passed and adopted this ordinance and each and all provisions thereof irrespective of the fact that any one or more of said provisions be declared unconstitutional.
(Added Ord. 2007-16, § 1, eff. 4-19-07).

ARTICLE 31 ABANDONED SHOPPING CARTS*

Sec. 9-3101. Title.
Sec. 9-3102. Findings and Purpose.
Sec. 9-3103. Definitions.
Sec. 9-3104. Unlawful Possession and Abandonment of Carts.
Sec. 9-3105. Cart Owner Requirements.
Sec. 9-3106. City Retrieval of Carts.
Sec. 9-3107. Immediate Impound by City of Identified Carts.
Sec. 9-3108. Possession of Carts by Recycling Centers.
Sec. 9-3109. Enforcement and Remedies.
Sec. 9-3110. Severability Clause.
Sec. 9-3111. Cumulative Remedy.

SEC. 9-3101. TITLE.

This article shall be known as the "Abandoned Shopping Cart Ordinance."
(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3102. FINDINGS AND PURPOSE.

The Council of the City of Fresno finds that Abandoned Shopping Carts in the city create potential hazard to the health and safety of the public, and interfere with pedestrian and vehicular traffic and create a public nuisance. The accumulation of Abandoned Carts, sometimes wrecked and/or dismantled on public and private property tends to create conditions that reduce property values, and promote blight and deterioration and result in a public nuisance. This article is intended to insure that measures are taken by the owners of Shopping Carts to prevent the removal of the Shopping Carts from the Cart Owner's Business Premises, to make removal of the Cart a violation of the Code, and to facilitate the retrieval of Abandoned Shopping Carts in a manner consistent with State law and to use an administrative citation program to establish appropriate fines intended to act as a reasonable deterrent in preventing violations.
(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3103. DEFINITIONS.

The definitions set forth in this section shall govern the application and interpretation of this article.

(a) "Abandoned Cart" or "Abandoned Shopping Cart" shall mean any Cart that has been removed, without the written consent of the Cart Owner, from the Business Premises or Parking Area of the retail establishment of which the Cart Owner's Business

*__Editor's note—__Ord. No. 2014-18, § 1, effective April 25, 2014, in effect amended the Code by repealing former Art. 31, §§ 9-3101—9-3110, and adding a new Art. 31. Former Art. 31 pertained to similar subject matter, and derived from Ord. 2006-143, effective October 27, 2006.

Premises are located and is located on either public or private property. The Cart Owner's Business Premises may include a multi-store shopping center with shared areas of parking and public access.

(b) "Abandoned Cart Prevention Plan" shall mean a document submitted in writing by a Cart Owner pursuant to Section 9-3105(c) of this article that provides a plan for the prevention of Cart removal and for the recovery of Off-site Carts.

(c) "Business Premises" means the interior of a Cart Owner's commercial establishment, adjacent walkways, any loading area, and the Parking Area, as defined herein. The Cart Owner's Business Premises may include a multi-store shopping center with shared areas of parking and public access.

(d) "Cart" or "Shopping Cart" means a basket which is mounted on wheels or a similar device generally used in a retail or commercial establishment by a customer for the purpose of transporting goods of any kind, including a basket used in a laundromat or similar business. A Cart sold by a commercial establishment to a retail customer for that customer's personal use is not a Shopping Cart for the purposes of this article.

(e) "Cart Identification Sign" means a sign or engraved surface which is permanently affixed to a Shopping Cart containing all of the information specified in Section 9-3105(a).

(f) "Cart Owner" means the owner or operator of a commercial establishment which provides Carts for use by its customers for the purpose of transporting goods of any kind.

(g) "Cart Removal Warning" means a placard, sign or painted text which meets the requirements specified in Section 9-3105(c)(4).

(h) "Cart Retrieval Company" or "Cart Retrieval Service" means a third party commercial service in the business of retrieving and returning Shopping Carts to the Cart Owner.

(i) "Director" means the Director of the Development and Resource Management Department or his/her designee or such other person designated by the City Manager to administer this article.

(j) "Off-site" means not within the Business Premises.

(k) "On-site Cart Containment Program" means one or more of the following measures:

(1) Disabling devices on all Shopping Carts which prevent them from being removed from the Business Premises by locking the wheels or otherwise preventing the movement of the Carts.

(2) An on-site security guard to deter customers who attempt to remove Carts from the Business Premises.

(3) Posts and chains around the Business Premises to prevent Cart removal, if permitted by the applicable zoning and the site plan, and if approved by the fire marshal.

(4) Obtaining a security deposit from customers for the on-site use of Shopping Carts.

(5) The rental or sale of Carts that can be temporarily or permanently used for the transport of goods.

(6) Any other measure approved by the Director as a means to contain Carts on the Business Premises.

(l) "Parking Area" means a parking lot or other property provided by a commercial establishment for use by a customer for parking an automobile or other vehicle. In a multi-store complex or shopping center, "Parking Area" includes the entire Parking Area used by or controlled by the complex or center.

(m) "Physical Containment System" means one of the following, as approved by the Director:

(1) Disabling devices on all Shopping Carts which prevent them from being removed from the Business Premises by locking the wheels or otherwise preventing the movement of the Carts.

(2) Any other system of equipment approved by the Director which physically contains Shopping Carts on the Business Premises.

(n) "Recycling Center" means any facility that is used in the process of collecting, sorting, cleansing, treating, processing, reconstituting, or storing materials that would otherwise become solid waste and returning them to the economic mainstream in the form of raw material for new, reused, or reconstituted products which meet the quality standards necessary to be used in the marketplace.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3104. UNLAWFUL POSSESSION AND ABANDONMENT OF CARTS.

Any person who violates any prohibition of this section is guilty of a misdemeanor as provided in California Business and Professions Code Section 22435.3. This section shall not apply to Carts removed as authorized by the Cart Owner, pursuant to Business and Professions Code Section 22435.4, including for the purposes of maintenance, repair or disposal.

The Cart should have a permanently affixed sign providing the following information: (i) identify the owner or retailer, (ii) notify the public of the procedure for authorized removal of the cart from the premises, (iii) warn that unauthorized removal or possession is a violation of state law, and (iv) provide a valid telephone number or address for returning the cart as provided in Business and Professions Code Section 22435.1.

It is unlawful to do any of the following acts, if a Cart has a permanently affixed sign provided in Business and Professions Code Section 22435.1:

(a) To remove a Cart from the Business Premises of a retail or commercial establishment with the intent to temporarily or permanently deprive the Cart Owner of possession of the Cart.

(b) To be in possession of any Cart that has been removed from the Business Premises of a retail or commercial establishment with the intent to temporarily or permanently deprive the Cart Owner of possession of the Cart.

(c) To be in possession of any Cart with serial numbers removed, obliterated, or altered, with the intent to temporarily or permanently deprive the Cart Owner of possession of the Cart.

(d) To leave or abandon a Cart at a location other than the Business Premises of the retail or commercial establishment with the intent to temporarily or permanently deprive the Cart Owner of possession of the Cart.

(e) To alter, convert, or tamper with a Cart or to remove any part or portion thereof or to remove, obliterate or alter serial numbers on a Cart, with the intent to temporarily or permanently deprive the Cart Owner or retailer of the possession of the Cart.

(f) To be in possession of any Cart while that Cart is not located on the Business Premises of the retail or commercial establishment which owns the Cart, with the intent to temporarily or permanently deprive the Cart Owner or retailer of possession of the Cart.

(Added Ord. 2014-18, § 1, eff. 4-25-14; Am. Ord. 2025-056, § 1, eff. 1-30-26).

SEC. 9-3105. CART OWNER REQUIREMENTS.

All owners of Carts shall comply with the requirements of this section.

(a) **Cart Identification Required.** All Carts must have a permanently affixed sign identifying the owner of the Cart and notifying the public of the procedure utilized for authorized removal of the Cart from the Business Premises and that unauthorized removal or possession of the Cart is a violation of state and local law. The sign shall contain a valid telephone number or address for returning a Cart to its owner. All owners of Carts, including but not limited to commercial Cart Owners, shall be responsible for complying with this section and continuously maintaining, or causing to be maintained, the Cart Identification Sign so that all information is accurate and clearly legible.

(b) **Daily Cart Retrieval.** All Cart Owners, regardless of the number of Carts owned, shall retrieve all Carts daily to ensure the Carts are secured from public access after close of business hours.

(c) **Abandoned Cart Prevention Plan.** Every Cart Owner of more than twenty-five (25) Carts shall develop, implement and comply with the terms and conditions of an

Abandoned Cart Prevention Plan to prevent the unauthorized removal of Carts from the Business Premises and, if removed, to retrieve the Cart within three (3) business days of the removal or notice of the removal. The Abandoned Cart Prevention Plan shall be submitted to the Director in writing on a renewable annual basis and shall include the following elements:

(1) **Name of Business/Owner.** The name of the owner and the business, the physical address where the business is conducted, and the name, address and telephone number where all notices and/or citations are to be sent.

(2) **Inventory of Carts.** The number of Carts owned.

(3) **Community Outreach.** A description of a community outreach process under which the Cart Owner shall cause notice to be provided to customers that the removal of Carts from the Business Premises is prohibited and a violation of state and local law. This notice may include, but is not limited to, flyers distributed at the premises, warnings on shopping bags, direct mail, announcements using intercom systems at the Business Premises, a web site or other means demonstrated to be effective to the reasonable satisfaction of the Director.

(4) **Signs.** Multi-lingual signs shall be placed prominently and conspicuously at all entrances and exits to the Cart Owner's Business Premises, including the Parking Areas, that provide a notice containing the following information: "REMOVAL OF SHOPPING CARTS FROM THESE PREMISES IS PROHIBITED BY STATE LAW (B & P § 22435.2) AND WILL SUBJECT THE VIOLATOR TO A MAXIMUM FINE OF $1000.00 AND/OR ONE YEAR IN JAIL."

(5) **Physical Containment System.** Every Cart Owner shall provide a description of the specific measures the Cart Owner shall implement to prevent Cart removal from the Business Premises which meets the requirements specified in Section 9-3103(m). These measures may include, but are not limited to, an electronic or other disabling device on a Cart so it cannot be removed from the Business Premises, rental or sale of utility carts that can be temporarily or permanently used to transport purchases, security personnel to prevent removal, security deposit for use of a Cart, or other demonstrable measures acceptable to the Director that are likely to prevent Cart removal from the Business Premises.

(6) **Employee Training.** A description of an ongoing employee training program that shall be implemented and designed to educate new and existing employees on the Abandoned Cart Prevention Plan and conditions contained therein no less frequently than annually.

(7) **Multiple Businesses.** A Cart Owner who has two (2) or more businesses may submit a single Abandoned Cart Prevention Plan.

(d) **Administration of the Abandoned Cart Prevention Plan.** The Abandoned Cart Prevention Plan shall be administered under the provisions of this subsection.

(1) At the time the Cart Owner submits the Abandoned Cart Prevention Plan, the Cart Owner shall pay a fee for the review and administration of the plan as set forth in the Master Fee Schedule.

(2) The Director must approve or deny the Abandoned Cart Prevention Plan within forty-five (45) days of its submission. The plan may be denied on the grounds that it fails to include the elements required under this article or the plan is inadequate or insufficient to fulfill the required elements. If the plan is denied, the Director shall do so in writing and provide an explanation for the basis of his or her decision. The Cart Owner has twenty (20) days, subject to an extension by

the Director, to submit a new plan or appeal the Director's decision to the Administrative Hearing Officer pursuant to the Administrative Hearing Ordinance in Article 5 of Chapter 1.

(3) Once a plan is approved, the Cart Owner has thirty (30) days to begin implementation. If, at any time after the plan has been approved, the Director determines the plan is inadequate to fulfill the required elements of this article, the Director may, in writing, require the Cart Owner to modify or submit a new plan. Such a modification may include, but is not limited to, requiring the Cart Owner to identify a new person to retrieve Carts or changing the physical loss prevention measure. If the Director requires the Cart Owner to modify or submit a new plan, the Cart Owner shall be given a reasonable time to comply and shall be provided an appeal to the Administrative Hearing Officer pursuant to Chapter 1, Article 5. A new plan or modified plan is subject to a fee for its review as provided in the Master Fee Schedule.

(e) **On-Site Cart Containment System Program Required.** Every Cart Owner shall operate and maintain an On-Site Cart Containment Program as defined in Section 9-3103(k). A Cart Owner may be exempted from this requirement if he or she provides proof of contracting with a qualified Cart Retrieval Service and submits information to the Director which demonstrates to the satisfaction of the Director that the qualified Cart Retrieval Service will: (i) actively locate Shopping Carts within a five-mile radius of the Cart Owner's Business Premises; and (ii) respond to complaints from the public in a manner which results in the retrieval of Shopping Carts within twenty-four (24) hours after receiving complaints. Whoever is identified by the Cart Owner as the party responsible for retrieval of the Carts shall be made available for Cart retrieval six (6) days a week, eight (8) hours a day or during the Cart Owner's business hours, whichever is shorter.

(f) **Violations.** Violation of any provision of this section, including, but not limited to, failure to submit a plan or comply with a plan submitted, is a violation of this article and the city may pursue any available remedy provided under the Code for a code violation, including the issuance of an administrative citation under Section 1-406.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3106. CITY RETRIEVAL OF CARTS.

The city may retrieve an Abandoned Cart from public property (or private property with the consent of the property owner) in the following circumstances:

(a) Where the location of the Shopping Cart will impede emergency services.

(b) When the Abandoned Cart does not identify the Cart Owner as required in Section 9-3105.

(c) When the city has contacted the Cart Owner and notified him or her of the Abandoned Cart and the Cart has not been reclaimed within three (3) business days.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3107. IMMEDIATE IMPOUND BY CITY OF IDENTIFIED CARTS.

Notwithstanding any other section of this article, the city may immediately impound a Cart without complying with the three (3) day advance notice requirement provided the city actually notifies the Cart Owner within twenty-four (24) hours that the city has impounded the cart and provides information to the Cart Owner where and how the Cart may be reclaimed. The City shall hold the Cart at a location that is reasonably convenient to the Cart Owner and open for business at least six (6) hours of each business day. Any Cart reclaimed by the Cart Owner within three (3) business days following the date of actual notice shall be released and surrendered to the Cart Owner at no charge, including a waiver of any impound and storage fees or fines. Any Cart reclaimed within three (3) business days shall not be deemed an occurrence for purposes of Section 9-3109(a). If the Cart is not reclaimed by the Cart Owner within three (3) business days, the city may collect its actual costs, impose a fine, and dispose of the Cart consistent with the provisions of Section 9-3109.
(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3108. POSSESSION OF CARTS BY RECYCLING CENTERS.

Any Recycling Center that comes into possession of a Cart shall not sell or use the Cart for any purpose and shall comply with the requirements of this section as follows:

(a) **Carts with Identification Signs.** Any Recycling Center that possesses a Cart with Cart Identification Signs shall notify the Cart Owner of the Cart's location. After notifying the Cart Owner, the Recycling Center shall hold the Cart on its premises for three (3) business days to ensure that the Cart will not be sold or otherwise recirculated to the public. If the Cart is not reclaimed by the Cart Owner within three (3) business days after receiving notice, the Recycling Center shall notify the City's Police Department and arrange for the City to retrieve the Cart.

(b) **Carts without Identification Signs.** Any Recycling Center that possesses a Cart without a Cart Identification Sign shall notify the City's Police Department and arrange for the City to retrieve the Cart. The Recycling Center shall hold the Cart on its premises to ensure that the Cart will not be sold or otherwise recirculated to the public.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3109. ENFORCEMENT AND REMEDIES.

The City may exercise the following remedies:

(a) Pursuant to Business and Professions Code Section 22435.7, any Cart Owner that fails to retrieve its Abandoned Cart(s) within three (3) business days after receiving notice from the City, shall pay the City's administrative costs for retrieving the Cart(s) and providing the notification to the Cart Owner. Any Cart Owner who fails to retrieve Abandoned Carts in accordance with this Chapter in excess of three times during a

specified six-month period shall be subject to a fifty dollar ($50) fine for each occurrence. An occurrence includes all Carts owned by the Cart Owner that are impounded by the City for a one-day period.

(b) If a Cart is not retrieved by its owner within thirty (30) days after the Cart Owner has received notice of the Cart being impounded, including a failure to pay costs and fines, or if the Cart Owner cannot be determined, the Cart will be sold, destroyed or otherwise disposed of as the City sees fit.

(c) Following the city having retrieve[d] more than ten (10) Carts in any thirty (30) day period or the issuance of more than ten (10) administrative citations in any twelve (12) month period, the Director may require the Cart Owner to install a Physical Containment System.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3110. SEVERABILITY CLAUSE.

If any provision, paragraph, word or section of this article is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, and sections shall not be affected and shall continue in full force and effect.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

SEC. 9-3111. CUMULATIVE REMEDY.

Nothing herein is intended to limit the city from pursuing any other remedy available at law or in equity against any person or entity maintaining, committing, or causing a public nuisance or any other violation of the Code or State or Federal law.

(Added Ord. 2014-18, § 1, eff. 4-25-14).

ARTICLE 32 PEDICAB ORDINANCE

Sec. 9-3200. Title.
Sec. 9-3201. Purpose.
Sec. 9-3202. Definitions.
Sec. 9-3203. Pedicab Owner Permit.
Sec. 9-3204. Pedicab Vehicle Permit.
Sec. 9-3205. Indemnification and Insurance Requirements.
Sec. 9-3206. Drivers License Requirement to Drive or Operate Pedicab.
Sec. 9-3207. Other Laws Applicable to Pedicab Owners and Operators.
Sec. 9-3208. Pedicab Parking.
Sec. 9-3209. Prohibitions on Where Pedicabs May Operate.
Sec. 9-3210. Denial of Pedicab Permits.
Sec. 9-3211. Suspension, Modification, or Revocation of Permits.
Sec. 9-3212. Enforcement Authority.
Sec. 9-3213. Enforcement Remedies.
Sec. 9-3214. Strict Liability Offenses.

SEC. 9-3200. TITLE.

This section shall be known as the "Pedicab Ordinance" of the City of Fresno ("city") and may be so cited.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3201. PURPOSE.

The Council finds that regulations governing pedicabs that allow alcohol to be consumed onboard, and the owners and drivers of those pedicabs, are necessary to protect the general safety and welfare of passengers using pedicabs for hire, pedestrians, and motorists within the city. This ordinance is not intended to regulate pedicabs which do not allow alcohol to be consumed onboard.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3202. DEFINITIONS.

(a) *"Darkness"* means any time from one-half hour after sunset to one-half hour before sunrise and any time when visibility is not sufficient to render clearly discernible any person or vehicle on the highway at a distance of 1000 feet.

(b) *"Operator"* means any person who pedals, steers, uses the brakes, or otherwise controls a pedicab within the city.

(c) *"Onboard Safety Monitor"* means any person who is onboard while alcohol is being consumed to monitor the passengers pursuant to SB530.

(d) *"Owner"* means any person who owns a pedicab.

(e) *"Pedicab"* means a device where alcohol is allowed to be consumed onboard and meets any of the following:

(1) A bicycle that has three or more wheels, that transports, or is capable of transporting, passengers on seats attached to the bicycle, that is operated by a person, and that is being used for transporting passengers for hire.

(2) A bicycle that pulls a trailer, sidecar, or similar device, that transports, or is capable of transporting, passengers on seats attached to the trailer, sidecar, or similar device, that is operated by a person, and that is being used for transporting passengers for hire.

(3) A four-wheeled device that is primarily or exclusively pedal-powered, has a seating capacity for eight or more passengers, cannot travel in excess of 15 miles per hour, and is being used for transporting passengers for hire. A pedicab defined under this subdivision is subject to the requirements of Article 4.5 (commencing with Section 21215) of Chapter 1 of Division 11 of the California Vehicle Code, as may be amended.

(f) *"Pedicab owner permit* means the permit issued by the city to a pedicab owner to indicate that the pedicab is permitted to drive and operate within the city.

(g) *"Pedicab vehicle permit"* means the numbered decal issued by the city to a pedicab owner for display on the pedicab to indicate that the pedicab is permitted to operate within the city.

(h) *"Pedicab Parking Zone"* means a parking area designated for the specific purpose of pedicabs waiting for, dropping off, or picking up passengers.

(i) *"Seatbelt"* means the safety strap or harness designed to hold a person securely in a seat.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3203. PEDICAB OWNER PERMIT.

(a) It is unlawful for a pedicab owner to drive or operate a pedicab, or allow a pedicab to be driven or operated, within the city unless the owner has a valid pedicab owner permit. Pedicab owner permits are the property of the city and are not transferable to any other person.

(b) The pedicab owner permit application shall be in a form prescribed by the City Manager.

(c) Each applicant for a pedicab owner permit shall provide the following information in the application:

(1) The applicant's full name;

(2) The applicant's business and residence addresses and phone numbers;

(3) The name(s) under which the applicant will be conducting business as a pedicab owner;

(4) The applicant's date of birth, and proof that the applicant is eighteen years of age or older;

(5) Identification in the form of a valid motor vehicle driver's license or identification card issued by any state or territory of the United States, or a valid passport;

(6) Proof of a valid city business operations tax certificate;

(7) Proof of insurance as set forth in this chapter;

(8) A complete set of fingerprints of the applicant;

(9) Authorization for the city to conduct a comprehensive background check of the applicant; and

(10) Such other material as the City Manager may require to evaluate the fitness of the applicant to be granted a pedicab owner permit.

(d) Each applicant must sign the application which shall contain a warning that the application may be denied or the permit suspended, modified, or revoked if the applicant misrepresents facts relevant to the fitness of the applicant to be granted a pedicab owner permit.

(e) The City Manager shall investigate the facts stated in an application for a pedicab owner permit and other relevant data.

(f) The city shall charge an annual nonrefundable fee, as set forth in the Master Fee Schedule, to recover the cost of activities associated with the administration, regulation and issuance of pedicab owner permits, as may, from time to time, be determined by the City Council.

(g) A pedicab owner permit shall be valid for a period of one year from the date of issuance.

(h) A pedicab owner permit shall be renewable annually upon the filing and approval of an application and payment of the annual pedicab owner permit fee.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3204. PEDICAB VEHICLE PERMIT.

(a) It is unlawful for any pedicab owner to lease, rent, or allow a pedicab to be driven or operated for hire within the city without first having obtained a pedicab vehicle permit. The pedicab vehicle permit shall be permanently affixed in a conspicuous and visible location within the pedicab.

(b) Pedicab vehicle permits are the property of the city and are not transferable to any other pedicab.

(c) The pedicab vehicle permit application form shall be in a form prescribed by the City Manager.

(d) The applicant shall provide the following information in the application:

(1) The full name and address of the business and the name, residence address, and phone number of the applicant;

(2) The name and address of all legal and registered owners of the pedicab;

(3) A description of the pedicab, including trade name, if any, serial number, or owner identification number, body style, and color scheme;

(4) Seating capacity of the pedicab;

(5) Proof of insurance in accordance with this chapter.

(e) Pedicab vehicle permits shall be issued only after the pedicab has been inspected by the city. Pedicabs must meet all of the following requirements:

(1) A headlight capable of projecting a beam of white light for a distance of three hundred (300) feet shall be permanently affixed to the pedicab. Such light may be battery-operated, removable, and rechargeable;

(2) Taillights shall be permanently affixed on the right and the left at the same level on the rear exterior of the passenger compartment. Taillights shall be red in color and plainly visible from all distances within five hundred (500) feet to the rear of the pedicab. Such light may be battery-operated, removable, and rechargeable;

(3) Signal bells and turn signal indicators;

(4) Seatbelts for each available passenger;

(5) Seat backs;

(6) Brakes;

(7) Reflectors;

(8) Grab rails; and

(9) Those requirements related to bicycles as set forth in California Vehicle Code Section 21201, as may be amended.

(f) The city shall charge an annual nonrefundable fee, as set forth in the Master Fee Schedule, to recover the cost of activities associated with the administration, regulation, and issuance of pedicab vehicle permits, as may be determined by the City Council.

(g) Pedicab vehicle permits shall be valid for a period of one year from date of issuance.

(h) Pedicab vehicle permits shall be renewable annually upon filing of an application, inspection of the pedicab, and payment of the annual pedicab vehicle permit fee.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3205. INDEMNIFICATION AND INSURANCE REQUIREMENTS.

(a) Prior to the issuance of a pedicab owner permit, the permit applicant and authorized officer of the sponsoring organization (if any), must sign an agreement to reimburse the city for any costs incurred by it in repairing damage to city property occurring in connection with the operation of permitee's pedicabs proximately caused by the actions of the permittee, its officers, employees, agents, customers, or any person who was under the permittee's control insofar as permitted by law. The agreement shall also provide that the permittee shall hold harmless, indemnify, and defend the city, its officials, members, agents, and employees against any claims, costs, damages, demands, liability and notices, or any of these, arising or resulting from any damage or injury proximately caused by actions of the permittee in connection with the operation of permittee's pedicabs, regardless of whether the city is actively negligent or passively negligent, except for those claims, costs, damages, demands, liability and notices, or any of these, caused solely by the negligence or willful misconduct of the city.

(b) During the term of a pedicab owner permit, the pedicab owner shall maintain in full force and effect, at no cost to the city, insurance as required and determined by the City of Fresno Risk Manager, or designee, at the time of application.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3206. DRIVERS LICENSE REQUIREMENT TO DRIVE OR OPERATE PEDICAB.

The Operator and the Onboard Safety Monitor of the pedicab shall be at least twenty-one years of age. It is unlawful for any individual to drive or operate a pedicab unless he or she is currently and validly licensed by the state of California to drive a motor vehicle. A pedicab driver shall have his or her current valid motor vehicle driver's license issued by the state of California on his or her person at all times while driving or operating a pedicab.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3207. OTHER LAWS APPLICABLE TO PEDICAB OWNERS AND OPERATORS.

Operators, Onboard Safety Monitors, and owners are subject to all applicable laws, rules, and regulations of the Fresno Municipal Code and the California Vehicle Code pertaining to the operation of bicycles upon streets. Operators, Onboard Safety Monitors, and owners must also comply with the following:

(a) Seatbelts are required to be worn by all passengers and Operators while the pedicab is being operated.

(b) Headlights must be used when the pedicab is being operated in darkness.

(c) The consumption of alcoholic beverages onboard a pedicab is authorized if in compliance with Section 21215.2 of the California Vehicle Code, as may be amended.

(d) An Onboard Safety Monitor who is 21 years of age or older shall be present whenever alcohol is being consumed by passengers during the operation of the pedicab. The Onboard Safety Monitor shall not be under the influence of any alcoholic beverage and shall be considered as driving the pedicab for purposes of Article 2 (commencing with section 23152) of Chapter 12 of Division 11 of the California Vehicle Code during the operation of the pedicab.

(e) Both the Operator and the Onboard Safety Monitor shall have completed either the Licensee Education on Alcohol and Drugs (LEAD) program implemented by the Department of Alcoholic Beverage Control or a training course utilizing the curriculum components recommended by the Responsible Beverage Service Advisory Board established by the Director of Alcoholic Beverage Control. Operators and Onboard Safety Monitors must carry proof of completion of a LEAD or LEAD equivalent certification.

(f) Alcoholic beverages shall not be provided by the Operator or Onboard Safety Monitor of the pedicab or any employee or agent of the owner, Operator or Onboard Safety Monitor. Alcoholic beverages may only be supplied by the passengers of the pedicab. All alcoholic beverages supplied by passengers of the pedicab shall be in enclosed, sealed, and unopened containers prior to their consumption on board the four-wheeled pedicab.

(g) Alcoholic beverages may be consumed by a passenger of the pedicab only while he or she is physically on board and within the pedicab.

(h) The pedicab shall not load or unload passengers on roadways.

(i) Pedicabs shall be operated as close as practicable to the right-hand curb or edge of the roadway, except when necessary to overtake another vehicle, to avoid a stationary object, or when preparing to make a left turn.

(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3208. PEDICAB PARKING.

(a) Every Owner and every Operator is subject to all applicable parking provisions of the California Vehicle Code and the Fresno Municipal Code. Owners and Operators are subject to the same rights and responsibilities as a driver of a motor vehicle as it relates to parking violations.

(b) To provide drop off and pick up areas for pedicabs, the City Manager may designate Pedicab Parking Zones.

(c) Pedicab parking violations will be issued to the owner. Pedicab parking violation fees will correspond with parking fees established for motor vehicles in the Fresno Municipal Code.

(d) It is unlawful for an Operator to leave his or her pedicab unattended in a Pedicab Parking Zone.

(e) It is unlawful to park a pedicab in a metered parking space.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3209. PROHIBITIONS ON WHERE PEDICABS MAY OPERATE.

(a) It is unlawful to operate a pedicab on a city street with a posted speed limit in excess of 30 miles per hour.

(b) It is unlawful to operate a pedicab on any overcrossing,

(c) It is unlawful to operate a pedicab upon a sidewalk except as may be necessary to enter or leave adjacent property.

(d) It is unlawful to operate a pedicab upon a Class I bicycle facility.

(e) It is unlawful to operate a pedicab on any residential street after 10 pm.

(f) It is unlawful to operate a pedicab within the city after midnight.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3210. DENIAL OF PEDICAB PERMITS.

The City Manager may deny issuance of a pedicab owner permit, or pedicab vehicle permit if an applicant for such permit:

(a) Fails to comply with the requirements of this chapter;

(b) Misrepresents facts relevant to the fitness of the applicant;

(c) Has been convicted of a crime involving moral turpitude or narcotics, or is required to register pursuant to California Health and Safety Code Section 11590(a); or

(d) Has been convicted for hit and run, driving a vehicle recklessly, or while under the influence of intoxicating alcohol or drugs within the seven years immediately preceding application for a pedicab owner permit or pedicab vehicle permit.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3211. SUSPENSION, MODIFICATION, OR REVOCATION OF PERMITS.

(a) The City Manager may suspend, modify, or revoke a pedicab owner permit, pedicab driver permit, or pedicab vehicle permit if the holder of the permit:

(1) Misrepresents facts relevant to the fitness of the pedicab owner or pedicab driver if such misrepresentation becomes known after a permit has been issued;

(2) Violates the traffic laws of the city, county, or state;

(3) Is convicted of misdemeanor reckless driving;

(4) Fails to maintain one or more pedicabs in good order and repair;

(5) Drives or operates a pedicab, or allows a pedicab to be driven or operated, when it is known to the owner or driver not to be in good order and repair;

(6) Knowingly falsifies material and relevant facts on an application for a pedicab owner permit or pedicab vehicle permit,

(7) Fails to maintain insurance as required in this chapter;

(8) Fails to notify the City Manager thirty days prior to the effective date of insurance cancellation or change of insurer;

(9) Fails to pay any fines, penalties, fees, or damages lawfully assessed upon the owner or driver of a pedicab;

(10) Is convicted of a violation of any law involving alcohol or moral turpitude;

(11) Operates any vehicle in a manner which constitutes a misdemeanor under the laws of the state of California; or

(12) Fails to comply with any of the applicable provisions of this chapter or the rules and regulations prescribed by the City Manager.

(b) In addition, the City Manager may immediately suspend or revoke a pedicab owner permit or pedicab vehicle permit upon the receipt of information reasonably sufficient and reliable to establish that the permit holder has committed a violation of law involving:

(1) A felony;

(2) A sex offense;

(3) Soliciting for prostitution;

(4) A narcotics offense; or

(5) Has had a license to drive issued by a state or territory of the United States suspended or revoked.

(c) Upon suspension or revocation, the pedicab owner or pedicab driver shall immediately surrender the pedicab owner permit or pedicab vehicle permit to the City Manager. In the event of suspension, the City Manager shall return any suspended permit to the holder of such permit immediately after termination of the suspension period. After any such permit has been revoked, the holder of that permit may not reapply for such permit until one year has elapsed since the date that the revocation became a final adjudication.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3212. ENFORCEMENT AUTHORITY.

The City Manager is authorized to administer and enforce the provisions of this chapter. The City Manager may exercise any enforcement powers as provided in this code.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3213. ENFORCEMENT REMEDIES.

Any person violating the provisions of this chapter shall be guilty of an infraction. The city may also impose administrative penalties pursuant to Section 1-308 of this Code for violations of this chapter. Additionally, the City Attorney may seek injunctive relief and civil

penalties for violations of the provisions of this chapter. The remedies provided for in this chapter shall be cumulative and not exclusive to any other remedies available under any other federal, state, or local laws.
(Added Ord. 2017-58, eff. 11-30-17).

SEC. 9-3214. STRICT LIABILITY OFFENSES.

Violations of this chapter shall be treated as strict liability offenses.
(Added Ord. 2017-58, eff. 11-30-17).

ARTICLE 33 CANNABIS RETAIL BUSINESS AND COMMERCIAL CANNABIS BUSINESS

Sec. 9-3301. Purpose and Intent.
Sec. 9-3302. Commercial Cannabis Activity Prohibited Unless Specifically Authorized by This Article.
Sec. 9-3303. Compliance With Laws.
Sec. 9-3304. Definitions.
Sec. 9-3305. Commercial Cannabis Business Permit Required to Engage in Commercial Cannabis Activity.
Sec. 9-3306. Maximum Number of Authorized Cannabis Retail Businesses and Commercial Cannabis Businesses Permitted.
Sec. 9-3307. Location and Design of Retail Cannabis Businesses.
Sec. 9-3308. Location and Design of Commercial Cannabis Businesses.
Sec. 9-3309. Operating Requirements for All Commercial Cannabis Activity.
Sec. 9-3310. Operating Requirements for a Cannabis Retail Business.
Sec. 9-3311. Operating Requirements for a Distributor.
Sec. 9-3312. Operating Requirements for a Cultivator.
Sec. 9-3313. Operating Requirements for a Testing Laboratory.
Sec. 9-3314. Operating Requirements for a Manufacturer.
Sec. 9-3315. Other Operational Requirements.
Sec. 9-3316. Initial Application Procedure.
Sec. 9-3317. Permittee Selection Process.
Sec. 9-3318. Persons Prohibited from Holding a Commercial Cannabis Business Permit.
Sec. 9-3319. Employee Requirements.
Sec. 9-3320. Expiration of Commercial Cannabis Business Permits.
Sec. 9-3321. Revocation of Permits.
Sec. 9-3322. Renewal Applications.
Sec. 9-3323. Appeals.
Sec. 9-3324. Effect of State License Suspension, Revocation, or Termination.
Sec. 9-3325. Change in Location or Ownership Requires Reapplication.
Sec. 9-3326. City Business License.
Sec. 9-3327. Building Permits and Inspection.
Sec. 9-3328. Cannabis Conditional Use Permit.
Sec. 9-3329. Right to Occupy and to Use Property.
Sec. 9-3330. Promulgation of Regulations, Standards and Other Legal Duties.
Sec. 9-3331. Records and Recordkeeping.
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Sec. 9-3335. Inspection and Enforcement.
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Sec. 9-3337. Each Violation a Separate Offense.
Sec. 9-3338. Criminal Penalties.
Sec. 9-3339. Remedies Cumulative and Not Exclusive.
Sec. 9-3340. Severability.
Sec. 9-3341. No Vested Rights.
Sec. 9-3342. Yearly Review.

SEC. 9-3301. PURPOSE AND INTENT.

It is the purpose arid intent of this Article to implement the provisions of the Medicinal and Adult Use Cannabis Regulation and Safety Act ("MAUCRSA") to accommodate the

needs of medically-ill persons in need of and provide access to cannabis for medicinal purposes as recommended by their health care provider(s), as well as provide access to adult use cannabis, while imposing sensible regulations on the use of land to protect the city's residents, neighborhoods, and businesses from disproportionately negative impacts. As such, it is the purpose and intent of this Article to regulate the cultivation, processing, manufacturing, testing, sale, delivery, distribution, and transportation of cannabis, cannabis products, medicinal cannabis, and medicinal cannabis products in a responsible manner to protect the health, safety, and welfare of the residents of the city and to enforce rules and regulations consistent with state law. The provisions of this Article are in addition to any other permits, licenses, and approvals which may be required to conduct business in the city, and are in addition to any permits, licenses, and approvals required under state, city, or other law.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3302. COMMERCIAL CANNABIS ACTIVITY PROHIBITED UNLESS SPECIFICALLY AUTHORIZED BY THIS ARTICLE.

Except as specifically authorized in this Article, the commercial cultivation, manufacture, processing, storing, laboratory testing, labeling, sale, delivery, distribution or transportation (other than as provided under Bus. & Prof. Code section 26090(e)), of cannabis or cannabis product and medicinal cannabis or medicinal cannabis product is expressly prohibited in the city.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3303. COMPLIANCE WITH LAWS.

This Article is intended to implement state law. Every cannabis retail business and commercial cannabis business must comply with all applicable state and local laws.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3304. DEFINITIONS.

When used in this Article, the following words shall have the meanings ascribed to them as set forth herein. Any reference to California statutes includes any regulations promulgated thereunder and is deemed to include any successor or amended version of the referenced statute or regulatory provision.

(a) "Applicant" means an owner applying for a state license pursuant to this division.

(b) "Bureau" means the Bureau of Cannabis Control within the Department of Consumer Affairs, formerly named the Bureau of Marijuana Control, the Bureau of Medical Cannabis Regulation, and the Bureau of Medical Marijuana Regulation.

(c) "Cannabis" means all parts of the Cannabis sativa Linnaeus, Cannabis indica, or Cannabis ruderalis, whether growing or not; the seeds thereof; the resin, whether crude or purified, extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds, or resin. It also means the separated resin, whether crude or purified, obtained from cannabis. It includes medicinal cannabis, intended to be sold for use pursuant to the Compassionate Use Act of 1996 (Proposition 215), found at Section 11362.5 of the Health and Safety Code, by a medicinal cannabis patient in California who possesses a physician's recommendation. It does not include the mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture, or preparation of the mature stalks (except the resin extracted therefrom), fiber, oil, or cake, the sterilized seed of the plant which is incapable of germination, or "industrial hemp" as defined by Section 11018.5 of the Health and Safety Code.

(d) "Cannabis Innovation Hub" is defined as an area of land which has many cannabis related businesses grouped together which must be no less than three (3) contiguous acres and no more than one hundred (100) contiguous acres. No more than four (4) are permitted within the city. Each individual business would be clearly defined, with a unique entrance and immovable physical barriers between every premises.

(e) "Cannabis Innovation Zone" is the area bounded by State Route 41, Golden State Blvd., Church Ave., East Ave., and Parallel Ave.

(f) "Cannabis products" has the same meaning as in Section 11018.1 of the Health and Safety Code.

(g) "Cannabis retail business" means a business where cannabis, cannabis products, or devices for the use of cannabis or cannabis products are offered, either individually or in any combination, for retail sale, including an establishment (whether fixed or mobile) that delivers, pursuant to express authorization, cannabis and cannabis products as part of a retail sale, and where the operator holds a valid commercial cannabis business permit from the city authorizing the operation of a retailer, and a valid state A-license or M-License as required by state law to operate a retailer.

(h) "Canopy" means the designated area(s) at a licensed premise, except nurseries, that will contain mature plants at any point in time. (1) Canopy shall be calculated in square feet and measured using clearly identifiable boundaries of all areas(s) that will contain mature plants at any point in time, including all of the space(s) within the boundaries; (2) Canopy may be noncontiguous but each unique area included in the total canopy calculation shall be separated by an identifiable boundary which include, but are not limited to: interior walls, shelves, greenhouse walls, hoop house walls, garden benches, hedgerows, fencing, garden beds or garden plots; and if mature plants are being cultivated using a shelving system, the surface area of each level shall be included in the total canopy calculation.

(i) "Caregiver" or "primary caregiver" has the same meaning as that term is defined in Section 11362.7 of the California Health and Safety Code.

(j) "Commercial cannabis activity" includes the cultivation, possession, manufacture, distribution, processing, storing, laboratory testing, packaging, labeling, transportation, delivery or sale of cannabis or cannabis products by an operator who has a license issued by the state.

(k) "Commercial cannabis business" means any business or operation which engages in commercial cannabis activity, except for delivery or sales of cannabis, with a license issued by the state. It does not include a cannabis retail business or medicinal cannabis retail business.

(l) "Commercial cannabis business permit" means a regulatory permit issued by the city pursuant to this Article to a commercial cannabis business or cannabis retail business, and is required before any commercial cannabis activity may be conducted in the city. The initial permit and annual renewal of a commercial cannabis business permit is made expressly contingent upon the business' ongoing compliance with all of the requirements of this Article and any regulations adopted by the city governing the commercial cannabis activity at issue.

(m) "Cultivation" means any activity involving the planting, growing, harvesting, drying, curing, grading, or trimming of cannabis.

(n) "Cultivation site" means a location where cannabis is planted, grown, harvested, dried, cured, graded, or trimmed, or a location where any combination of those activities occurs.

(o) "Cultivator" means a person holding a valid commercial cannabis business permit for cultivation issued by the city, and, a valid state license for cultivation.

(p) "Customer" means a natural person 21 year of age or over or a natural person 18 year of age or older who possesses a physician's recommendation.

(q) "Day care center" has the same meaning as in Section 1596.76 of the Health and Safety Code.

(r) "Delivery" means the commercial transfer of cannabis or cannabis products to a customer. It also includes the use by a retailer of any technology platform owned and controlled by the retailer. Delivery must be part of a store-front retailer.

(s) "Dispensing" means any activity involving the retail sale of cannabis or cannabis products from a retailer.

(t) "Distribution" means the procurement, sale, and transport of cannabis and cannabis products between licensees.

(u) "Distributor" means a person holding a valid commercial cannabis business permit for distribution issued by the city, and, a valid state license for distribution, required

by state law to engage in the business of purchasing cannabis from a licensed cultivator, or cannabis products from a licensed manufacturer, for sale to a licensed retailer.

(v) "Dried flower" means all dead cannabis that has been harvested, dried, cured, or otherwise processed, excluding leaves and stems.

(w) "Greenhouse" means a fully enclosed permanent structure that is clad in transparent material with climate control, such as heating and ventilation capabilities and supplemental artificial lighting, and that uses a combination of natural and supplemental lighting for cultivation.

(x) "Harvest batch" means a specifically identified quantity of dried flower or trim, leaves, and other cannabis plant matter that is uniform in strain, harvested at the same time, and, if applicable, cultivated using the same pesticides and other agricultural chemicals and harvested at the same time.

(y) "Labeling" means any label or other written, printed, or graphic matter upon a cannabis product, upon its container.

(z) "License" means a license issued by the state to engage in commercial cannabis activity, and includes both an A-license and an M-license, as well as a testing laboratory license.

(aa) "Licensee" means any person holding a state license, regardless of whether the license held is an A-license or an M-license, and includes the holder of a testing laboratory license.

(bb) "Limited-access area" means an area in which cannabis is stored or held and is only accessible to some licensee and authorized personnel.

(cc) "Live plants" means living cannabis flowers and plants, including seeds, immature plants, and vegetative stage plants.

(dd) "M-license" means a state license issued under this division for commercial cannabis activity involving medicinal cannabis.

(ee) "Manufacture" means to compound, blend, extract, infuse, or otherwise make or prepare a cannabis product.

(ff) "Manufacturer" means a licensee with a valid commercial cannabis business permit that conducts the production, preparation, propagation, or compounding of cannabis or cannabis products either directly or indirectly or by extraction methods, or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis at a fixed location that packages or repackages cannabis or cannabis products or labels or container.

(gg) "Nonvolatile solvent" means any solvent used in the extraction process that is not a volatile solvent. For purposes of this division, a nonvolatile solvent includes carbon dioxide (CO_2) used for extraction and ethanol used for extraction or post-extraction processing.

(hh) "Microbusiness" means the cultivation of cannabis on an area less than 10,000 square feet, by an entity authorized to act as a licensed distributor and Level 1 manufacturer under state law, provided such licensee can demonstrate compliance with all requirements imposed by state law on licensed cultivators, distributors, and Level 1 manufacturers to the extent the licensee engages in such activities. Microbusiness licenses that authorize cultivation of cannabis shall include the license conditions described in subdivision (b) of Section 26060.1 of the Business and Professions Code. A microbusiness shall be considered a commercial cannabis business that engages in commercial cannabis activity.

(ii) "Operation" means any act for which licensure is required under the provisions of this division or any commercial transfer of cannabis or cannabis products.

(jj) "Owner" means any of the following:

(1) A person with an aggregate ownership interest of 20 percent or more in the person applying for a license or a licensee, unless the interest is solely a security, lien, or encumbrance.

(2) The Manager of a nonprofit or other entity.

(3) A member of the board of directors of a nonprofit.

(4) An individual who will be participating in the direction, control, or management of the person applying for a license or who has a financial interest in the business other than a fixed lease of real property.

(kk) "Patient" or "qualified patient" shall have the same definition as California Health and Safety Code Section 11362.7 et seq., as it may be amended, and which means a person who is entitled to the protections of California Health & Safety Code Section 11362.5.

(ll) "Person" includes any individual, firm, partnership, joint venture, association, corporation, limited liability company, estate, trust, business, business trust, receiver, syndicate, or any other group or combination acting as a unit, and the plural as well as the singular.

(mm) "Physician's recommendation" means a recommendation by a physician and surgeon that a patient use cannabis provided in accordance with the Compassionate Use Act of 1996 (Proposition 215), found at Section 11362.5 of the Health and Safety Code.

(nn) "Premises" means the designated structure or structures and land specified in the application that is owned, leased, or otherwise held under the control of the applicant or licensee where the commercial cannabis activity will be or is conducted. The premises shall be a contiguous area and shall only be occupied by one licensee unless the operator is granted an M-License and an A-License for the same type of activity and such operation is lawful under state and local laws, rules and regulations.

(oo) "Sell," "sale," and "to sell" include any transaction whereby, for any consideration, title to cannabis or cannabis products are transferred from one person to another, and includes the delivery of cannabis or cannabis products pursuant to an order placed for the purchase of the same and soliciting or receiving an order for the same, but does not include the return of cannabis or cannabis products by a licensee to the licensee from whom the cannabis or cannabis product was purchased.

(pp) "Testing laboratory" means a laboratory, facility, or entity with a commercial cannabis business permit that offers or performs tests of cannabis or cannabis products and that is both of the following:

(1) Accredited by an accrediting body that is independent from all other persons involved in commercial cannabis activity in the state.

(2) Licensed by the bureau.

(qq) "Transport" means the transfer of cannabis products from the permitted business location of one licensee to the permitted business location of another licensee, for the purposes of conducting commercial cannabis activity authorized by MAUCRSA which may be amended or repealed by any subsequent State of California legislation regarding the same.

(rr) "Youth center" means any public or private facility that is primarily used to host recreation or social activities for minors, including, but not limited to, private youth membership organizations or clubs, social service teenage club facilities, video arcades where 10 or more video games or game machines or devices are operated, and where minors are legally permitted to conduct business, or similar amusement park facilities. It shall also include a park, playground or recreational area specifically designed to be used by children which may have play equipment installed, including public grounds designed for athletic activities such as baseball, softball, soccer, or basketball or any similar facility located on a public or private school grounds, or on city, county or state parks. This definition shall not include any private martial arts, yoga, ballet, music or similar studio of this nature nor shall it include any private athletic training facility, pizza parlor, dentist office or doctor's office primarily serving children.

(ss) "Volatile solvent" means any solvent that is or produces a flammable gas or vapor that, when present in the air in sufficient quantities, will create explosive or ignitable mixtures. Examples of volatile solvents include, but are not limited to, butane, hexane, and propane.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Amd. Ord. 2020-041, § 1, eff. 10-25-20).

SEC. 9-3305. COMMERCIAL CANNABIS BUSINESS PERMIT REQUIRED TO ENGAGE IN COMMERCIAL CANNABIS ACTIVITY.

No person may engage in any commercial cannabis activity within the city unless the person (1) has a valid commercial cannabis business permit from the city; (2) has a valid

state license; (3) has a valid Cannabis Conditional Use Permit; (4) is currently in compliance with all applicable state and local laws; and (5) has a Cannabis Business License Tax certificate.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3306. MAXIMUM NUMBER OF AUTHORIZED CANNABIS RETAIL BUSINESSES AND COMMERCIAL CANNABIS BUSINESSES PERMITTED.

(a) The City Council approved the Cannabis Retail Business and Commercial Cannabis Business Ordinance to provide a permitting framework and regulatory requirements for Adult Use and Medicinal Use Cannabis businesses in December 2018.

(b) The number of cannabis retail businesses shall not exceed a total of fourteen (14) within the city. Up to seven (7) more cannabis retail businesses may be authorized by Council Resolution.

(c) Up to a total of sixteen (16) cultivators, distributors, manufacturers, or microbusinesses may be issued a commercial cannabis business permit. No specific number of each type of business is required so long as the total number of commercial cannabis business permits issued for all three business types does not exceed a total of sixteen (16).

(d) There is no limit on the number of testing laboratories which may be issued a commercial cannabis business permit.

(e) The City Manager has discretion to limit the number of commercial cannabis permits to less than what is allowed in this Article. Nothing in this Article creates a mandate that the City Manager must issue any or all of the commercial cannabis business permits.

(f) Each year following the City Manager's initial award of permits, if any, or at any time in the City Manager's discretion, the City Manager may reassess the number of commercial cannabis business permits which are authorized for issuance.

(g) A microbusiness shall only be permitted if it is found to be exempt from the California Environmental Quality Act (CEQA).
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 1, eff. 3-2-20; Amd. Ord. 2020-041, § 2, eff. 10-25-20).

SEC. 9-3307. LOCATION AND DESIGN OF RETAIL CANNABIS BUSINESSES.

(a) All cannabis retail businesses must be located on property zoned DTN (Downtown Neighborhood), DTG (Downtown General), CMS (Commercial Main Street), CC (Commercial Community), CR (Commercial Regional), CG (Commercial General), CH (Commercial Highway), NMX (Neighborhood Mixed-Use), CMX (Corridor/Center Mixed Use), or RMX (Regional Mixed-Use), and must meet all of the requirements for development in these zones.

(b) Cannabis retail businesses shall be dispersed evenly by Council District. If changes to Council District boundaries create an un-even distribution, existing cannabis retail businesses shall be allowed to remain and subsequent cannabis retail businesses approved by the City Manager shall create even distribution by Council District.

(c) All buildings in which a cannabis retail business is located shall be no closer than eight hundred (800) feet from any property boundary containing any of the following:

(1) A cannabis retail business.

(2) A school providing instruction for any grades pre-school through 12 (whether public, private, or charter, including pre-school, transitional kindergarten, and K-12).

(3) A day care center licensed by the state Department of Social Services that is in existence at the time a complete commercial cannabis business permit application is submitted.

(4) A youth center that is in existence at the time a complete commercial cannabis business permit application is submitted.

(d) Each proposed cannabis retail business shall:

(1) Be within a fully enclosed building and cannabis must not be visible from the public right-of-way.

(2) Conform with the General Plan, any applicable specific plans, master plans, and design requirements.

(3) Comply with all applicable zoning and related development standards.

(4) Be constructed in a manner that prevents odors to surrounding uses, and promotes quality design and construction, and consistency with the surrounding properties. Odors from the cannabis retail business shall not be detectable from outside the premises. Best available odor control technology shall be utilized.

(5) Be adequate in size and shape to accommodate the yards, walls, fences, parking and loading facilities, landscaping and all items required for the development.

(6) Be served by highways adequate in width and improved as necessary to carry the kind and quantity of traffic such use will generate.

(7) Be provided with adequate electricity, sewerage, disposal, water, fire protection and storm drainage facilities for the intended purpose.

(8) Each applicant shall provide a neighborhood responsibility plan so the review authority may find that the proposed use and its operating characteristics are not detrimental to the public health, safety, convenience, or welfare of persons residing, working, visiting, or recreating in the surrounding neighborhood and will not result in the creation of a nuisance.

(e) Each proposed cannabis retail business shall meet the following design guidelines:

(1) Demonstrate compatibility with the surrounding character of the neighborhood and blend in with existing buildings. The establishment should look like any other similarly situated building.

(2) Comply with all applicable zoning and related development standards, including, but not limited to, parking, lighting, building materials, and colors.

(3) Signage, as described below, shall be limited to that needed for identification only and shall not contain any logos or information that identifies, advertises, or lists the services or the products offered.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, §§ 2, 3, eff. 3-2-20; Am. Ord. 2022-007, § 1, eff. 6-6-22).

SEC. 9-3308. LOCATION AND DESIGN OF COMMERCIAL CANNABIS BUSINESSES.

(a) Laboratory testing may take place in a Commercial, Employment, or Downtown District.

(b) There shall be permitted eight (8) cultivators, distributors, manufacturers, or microbusinesses located within the Cannabis Innovation Zone.

(c) There shall be permitted eight (8) cultivators, distributors, manufacturers, or microbusinesses located inside a Cannabis Innovation Hub or within one-half (1/2) mile of State Route 99 between Shaw Ave. and Clinton Ave., one (1) mile of State Route 99 north of Shaw Ave. or south of Clinton Ave., or within one (1) mile of State Route 180 west of State Route 99, and must be zoned either IL (Light Industrial) or IH (Heavy Industrial), and must meet all of the requirements for development in these zones. All buildings in which a cultivator, distributor, or manufacturer is located shall be no closer than one thousand (1,000) feet from any property boundary containing any of the following:

(1) Any residentially zoned parcel in the city, including any legal non-conforming residential uses as of the date a complete commercial cannabis business permit application is submitted.

(2) A school providing instruction for any grades pre-school through 12 (whether public, private, or charter, including pre-school, transitional kindergarten, and K-12).

(3) A day care center licensed by the state Department of Social Services that is in existence at the time a complete commercial cannabis business permit application is submitted.

(4) A youth center that is in existence at the time a complete commercial cannabis business permit application is submitted.

(d) All Cannabis Innovation Hubs must be located within one-half (1/2) mile of State Route 99 between Shaw Ave. and Clinton Ave., one (1) mile of State Route 99 north of Shaw Ave. or south of Clinton Ave., or within one (1) mile of State Route 180 west of State Route 99, and must be zoned either IL (Light Industrial) or IH (Heavy Industrial), and must meet

all of the requirements for development in these zones. All Cannabis Innovation Hubs buildings shall be located no closer than one thousand (1,000) feet from any property boundary containing any of the following:

(1) Any residentially zoned parcel in the city, including any legal non-conforming residential uses as of the date a complete commercial cannabis business permit application is submitted.

(2) A school providing instruction for any grades pre-school through 12 (whether public, private, or charter, including pre-school, transitional kindergarten, and K-12).

(3) A day care center licensed by the state Department of Social Services that is in existence at the time a complete commercial cannabis business permit application is submitted.

(4) A youth center that is in existence at the time a complete commercial cannabis business permit application is submitted.

(e) Each proposed commercial cannabis business shall:

(1) Be within a fully enclosed building and must not be visible from the public right-of-way.

(2) Conform to the General Plan, any applicable specific plans, master plans, and design requirements.

(3) Comply with all applicable zoning and related development standards.

(4) Be constructed in a manner that prevents odors to surrounding uses, and promotes quality design and construction, and consistency with the surrounding properties. Odors from the commercial cannabis business shall not be detectable from outside the premises. Best available odor control technology shall be utilized.

(5) Be adequate in size and shape to accommodate the yards, walls, fences, parking and loading facilities, landscaping and all items required for the development.

(6) Be served by highways adequate in width and improved as necessary to carry the kind and quantity of traffic such use will generate.

(7) Be provided with adequate electricity, sewerage, disposal, water, fire protection and storm drainage facilities for the intended purpose.

(8) Each applicant shall provide a neighborhood responsibility plan so the review authority may find that the proposed use and its operating characteristics are not detrimental to the public health, safety, convenience, or welfare of persons residing, working, visiting, or recreating in the surrounding neighborhood and will not result in the creation of a nuisance.

(f) Each proposed commercial cannabis business shall meet the following design guidelines:

(1) Demonstrate compatibility with the surrounding character of the neighborhood and blend in with existing buildings. The establishment should look like any other similarly situated building.

(2) Comply with all applicable zoning and related development standards including, but not limited to, parking, lighting, materials, and colors.

(3) Signage, as described below, shall be limited to that needed for identification only and shall not contain any logos or information that identifies, advertises, or lists the services or the products offered.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, §§ 4, 5, eff. 3-2-20; Amd. Ord. 2020-041, § 3, eff. 10-25-20).

SEC. 9-3309. OPERATING REQUIREMENTS FOR ALL COMMERCIAL CANNABIS ACTIVITY.

(a) Cannabis shall not be consumed by any person on the premises of any cannabis retail business or commercial cannabis business.

(b) No person shall cause or permit the sale, dispensing, or consumption of alcoholic beverages on or about the premises of the commercial cannabis business or cannabis retail business.

(c) No person shall cause or permit the sale of tobacco products on or about the premises of the commercial cannabis business or cannabis retail business.

(d) No cannabis or cannabis products or graphics depicting cannabis or cannabis products shall be visible from the exterior of any property issued a commercial cannabis business permit, or on any of the vehicles owned or used as part of the commercial cannabis business or cannabis retail business. No outdoor storage of cannabis or cannabis products is permitted at any time.

(e) Cannabis retail businesses and commercial cannabis businesses shall have in place a point-of-sale or management inventory tracking system to track and report on all aspects of the business including, but not limited to, such matters as cannabis tracking, inventory data, gross sales (by weight and by sale) and other information which may be deemed necessary by the city. Cannabis retail businesses and commercial cannabis businesses shall ensure that such information is compatible with the city's record-keeping systems. In addition, the system must have the capability to produce historical transactional data for review. Furthermore, any system selected must be approved and authorized by the City Manager or his/her designee(s) prior to being used by the permittee.

(f) All cannabis and cannabis products sold, distributed, or manufactured shall be cultivated, manufactured, and transported by licensed facilities that maintain operations in full conformance with state and local laws.

(g) Emergency Contact. Cannabis retail businesses and commercial cannabis businesses shall provide the City Manager or his/her designee(s) with the name, telephone number (both land line and mobile, if available) of an on-site employee or owner to whom emergency notice can be provided at any hour of the day.

(h) Signage and Notices.

(1) Business identification signage shall conform to the requirements of Chapter 15, Article 26 of this Code, including, but not limited to, seeking the issuance of a city sign permit.

(2) No signs placed on the premises of a cannabis retail business or a commercial cannabis business shall obstruct any entrance or exit to the building or any window.

(3) Each entrance shall be visibly posted with a clear and legible notice indicating that smoking, ingesting, or otherwise consuming cannabis or cannabis products on the premises or in the areas adjacent to the business is prohibited.

(4) Business identification signage shall be limited to that needed for identification only and shall not contain any logos or information that identifies, advertises, or lists the services or the products offered. Advertising shall not be visible from the exterior of the establishment and shall be prohibited on the exterior of the establishment. No cannabis retail business or commercial cannabis business may advertise by having a person holding a sign and advertising the business to passersby, whether such person is on the premises or elsewhere including, but not limited to, the public right-of-way.

(5) Signage shall not be directly illuminated, internally or externally. No banners, flags, billboards or other prohibited signs may be used at any time.

(6) In accordance with state law and regulations, holders of a commercial cannabis business permit shall agree that, as an express and ongoing condition of permit issuance and subsequent renewal, the holder of the permit shall be prohibited from advertising any commercial cannabis business or cannabis retail business located in the city utilizing a billboard (fixed or mobile), bus shelter, placard, aircraft, or other similar forms of advertising, anywhere in the state. This paragraph is not intended to place limitations on the ability of a commercial cannabis business or cannabis retail business to advertise in other legally authorized forms, including on the internet, in magazines, or in other similar ways. In addition, any cannabis advertising, including such advertising that is not connected to a cannabis business operating in the city, using any means described above, is strictly prohibited within the city limits.

(i) Minors.

(1) Except as provided below, persons under the age of twenty-one (21) years shall not be allowed on the premises of a cannabis retail business or a commercial cannabis business and shall not be allowed to serve as a driver for a delivery service. It shall be unlawful and a violation of this Article for any person to employ any person who is not at least twenty-one (21) years of age.

(2) The entrance to a commercial cannabis business shall be clearly and legibly posted with a notice that no person under the age of twenty-one (21) years of age is permitted to enter upon the premises of the commercial cannabis business.

(3) Persons at least eighteen (18) years old shall be allowed on the premises of a medicinal cannabis retail business to purchase medicinal cannabis or medicinal

cannabis products. The entrance to a medicinal cannabis retail business shall be clearly and legibly posted with a notice that no person under the age of eighteen (18) is permitted to enter upon the premises of the medicinal cannabis retail business.

(4) It shall be a violation of this Article to sell medicinal cannabis or medicinal cannabis products to any person under the age of eighteen (18) or to sell cannabis or cannabis products to any person under the age of twenty-one (21).

(j) Best available odor control technology and devices shall be incorporated in a cannabis retail business and a commercial cannabis business to ensure that odors from cannabis are not detectable off-site. A sufficient odor absorbing ventilation and exhaust system shall be provided so that odor generated inside the premises that is distinctive to its operation is not detected outside of the facility, anywhere on adjacent property or public rights-of-way, on or about the exterior or interior common area walkways, hallways, breezeways, foyers, lobby areas, or any other areas available for use by common tenants or the visiting public, or within any other unit located inside the same building as the cannabis retail business or commercial cannabis business. The following equipment, or any other equipment which the Planning and Development Director or his/her designee(s) determine is a more effective method or technology, must be installed and maintained:

(1) An exhaust air filtration system with odor control that prevents internal odors and pollen from being emitted externally;

(2) An air system that creates negative air pressure between the premises' interior and exterior, so that the odors generated inside the premises are not detectable outside the premises.

(k) The original copy of the commercial cannabis business permit issued by the city pursuant to this Article and the city issued business license shall be posted inside the cannabis retail business or a commercial cannabis business in a location readily visible to the public.

(l) The owner and/or operator of a cannabis retail business or a commercial cannabis business shall prohibit loitering by persons outside the facility both on the premises and within fifty (50) feet of the premises.

(m) Community Relations.

(1) Each commercial cannabis business or cannabis retail business shall provide the name, telephone number, and email address of a community relations contact to whom notice of problems associated with the business can be provided. Each commercial cannabis business or cannabis retail business shall also provide the above information to all businesses and residences located within one hundred (100) feet of the commercial cannabis business.

(2) During the first year of operation pursuant to this Article, the owner, manager, and community relations representative from commercial cannabis business or cannabis retail business shall attend meetings with the City Manager or his/her designee(s),

and other interested parties as deemed appropriate by the City Manager or his/her designee(s), to discuss costs, benefits, and other community issues arising as a result of implementation of this Article. After the first year of operation, the owner, manager, and community relations representative from each commercial cannabis business or cannabis retail business shall meet with the City Manager or his/her designee(s) when and as requested by the City Manager or his/her designee(s).

(3) Each commercial cannabis business or cannabis retail business shall develop a city approved public outreach and educational program for youth organizations and educational institutions that outlines the risks of youth use of cannabis, and that identifies resources available to youth related to drugs and drug addiction.

(n) The cannabis retail business or commercial cannabis business shall continually maintain the premises and its infrastructure so that it is visually attractive and not dangerous to the health, safety and general welfare of employees, patrons, surrounding properties, and the general public. The premises shall not be maintained in a manner that causes a public or private nuisance. Litter must be removed daily from the premises, including adjacent public sidewalks and all parking lots under the control of the cannabis retail business or commercial cannabis business; these areas must be swept or cleaned, either mechanically or manually, on a weekly basis to control debris; upkeep and operating characteristics must be compatible with abutting properties and the surrounding neighborhood.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, §§ 6—8, eff. 3-2-20).

SEC. 9-3310. OPERATING REQUIREMENTS FOR A CANNABIS RETAIL BUSINESS.

(a) **General.**

(1) Cannabis retail businesses, including delivery of cannabis, may operate between the hours of 6 am and 10 pm. Other non-sales related activities germane to the business may take place on premises after hours.

(2) There shall not be a physician located on the premises at any time for the purpose of evaluating patients for the issuance of a cannabis recommendation or card where applicable.

(3) Prior to dispensing cannabis or cannabis products to any person, the cannabis retail business shall verify the age of each customer.

(4) Entrances shall be locked at all times with entry strictly controlled. A "buzz-in" electronic/mechanical entry system shall be utilized to limit access to and entry to the retailer to separate it from the reception/lobby area. Individuals must show their identification in order to gain access into the retailer.

(5) A cannabis retail business may have only that quantity of cannabis and cannabis products readily available to meet the daily demand for sale on-site in the retail sales area of the premises.

(6) All restroom facilities shall remain locked and under the control of management.

(7) Delivery vehicles shall be unmarked vehicles with no indication that the vehicles are transporting cannabis or cannabis products.

(b) **Security Measures.**

(1) A permitted cannabis retail business shall implement sufficient security measures to deter and prevent the unauthorized entrance into areas containing cannabis or cannabis products, and to deter and prevent the theft of cannabis or cannabis products at the cannabis retail business. Except as may otherwise be determined by the City Manager or his/her designee(s), these security measures shall include, but shall not be limited to, all of the following:

(i) Premises contain a secured lobby/trap room, where a customer first enters and awaits verification by the cannabis retail business that the customer is a qualified to purchase cannabis.

(ii) Premises contain only one entrance which members of the public enter and exit.

(iii) Premises shall have a professionally installed, maintained, and monitored real-time alarm system by a security company licensed by the State of California Bureau of Security and Investigative Services.

(iv) Premises shall have perimeter security and lighting, including motion sensors, as approved by the Chief of Police.

(v) Prevent individuals from remaining on the premises and nearby vicinity if they are not engaging in an activity directly related to the permitted operations of the cannabis retail business.

(vi) Establish limited access areas accessible only to authorized cannabis retail business personnel.

(vii) All cannabis and cannabis products shall be stored in a secured and locked vault or vault equivalent. All safes and vaults shall be compliant with Underwriter Laboratories burglary-resistant and fire-resistant standards. All cannabis and cannabis products shall be kept in a manner as to prevent diversion, theft, and loss.

(viii) The applicant must install a fully functional color digital video camera system ("System") that meets the following requirements:

1. The System must continuously record, store, be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The System must be maintained in a secured location inside of the business.

2. The System shall have the correct date and time stamped onto the image at all times.

3. The camera storage capacity should be for at least ninety days. Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.
4. Digital video recorder must be capable of storing at least ninety days of real-time activities.
5. The System shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department immediately, upon request for a criminal investigation and/or purposes of compliance only.
6. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area. There should be at least one camera focused on the entrance and the camera view should clearly show an image of the color coded height tape installed on the inside of the door jamb.
7. There shall be exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.
8. All interior cameras shall record in color.
9. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.
10. An inoperable System may be good cause for seeking revocation of the Permit.

(ix) Sensors shall be installed to detect entry and exit from all secure areas, and shall be monitored in real time by a security company licensed by the State of California Bureau of Security and Investigative Services.

(x) Panic buttons shall be installed with direct notification to a licensed security company dispatch, and shall be configured to immediately alert dispatch for that licensed security company.

(xi) Any bars installed on the windows or the doors shall be installed only on the interior of the building.

(xii) Armed security personnel shall be on-site during operating hours. If armed security personnel are not on-site when the cannabis retail business is closed, a verified response security patrol shall be utilized. Security personnel must be licensed by the State of California Bureau of Security and Investigative Services personnel and shall be subject to the prior review and approval of the

City Manager or his/her designee(s), with such approval not to be unreasonably withheld. Firearms shall be carried by security personnel at all times that they are on duty, except as otherwise authorized by the Chief of Police.

(xiii) Premises shall have the capability to remain secure during a power outage and shall ensure that all access doors are not solely controlled by an electronic access panel to ensure that locks are not released during a power outage.

(xiv) Entrance areas are to be locked at all times and under the control of a designated responsible party that is either; (a) an employee of the cannabis retail business; or (b) a licensed security professional.

(xv) The interior must have at least one camera placed to focus on each transaction, to include the clerk as well as the customer waiting area. At least one camera should be focused on the entrance, and the camera view should clearly show an image of a color-coded height tape installed on the inside of the door jamb.

(xvi) An accounting software system in place to provide point of sale data as well as audit trails of both product and cash, where applicable.

(xvii) Demonstrate to the Chief of Police, City Manager or their designees, compliance with the state's track and trace system for cannabis and cannabis products and all Cannabis regulations stated in the California Code of Regulations.

(xviii) State of the art network security protocols in place to protect computer information and all digital data.

(xix) Exterior vegetation shall be planted, altered, and maintained in a fashion that precludes its use as a hiding place for persons on the premises.

(2) Each cannabis retail business shall identify a designated security representative/liaison to the city, who shall be reasonably available to meet with the City Manager or his/her designee(s) regarding any security related measures or and operational issues. The designated security representative/liaison shall, on behalf of the cannabis retail business, annually prepare and submit to the District Commander of the Fresno Police Department a security plan for approval and maintain a copy of the current security plan on the premises, to present to a peace officer immediately upon request that meets the following requirements:

(i) Confirms that a designated Manager will be on duty during business hours and will be responsible for monitoring the behavior of patrons.

(ii) Identifies all Managers of the cannabis retail business and their contact phone numbers.

(iii) Confirms that first aid supplies and operational fire extinguishers are located in the service areas and the Manager's office.

(iv) Confirms that burglar, fire, and panic alarms are operational and monitored by a licensed security company 24 hours a day, seven days a week, and provides contact information for each licensed security company.

(v) Identify a sufficient number of licensed, interior and exterior security personnel who will monitor individuals inside and outside the premises, the parking lot, and any adjacent property under the business' control.

(vi) Confirm that the licensed security personnel shall regularly monitor the parking lot and any adjacent property to ensure that these areas are: (a) free of individuals loitering or causing a disturbance; (b) are cleared of patrons and their vehicles one-half hour after closing.

(3) Provide a storage and transportation plan, which describes in detail the procedures for safely and securely storing and transporting all cannabis, cannabis products, and any currency. For delivery, include provisions relating to vehicle security and the protection of employees and product during loading and in transit.

(4) Cooperate with the city whenever the City Manager or his/her designee(s) makes a request, without prior notice, to inspect or audit the effectiveness of any security plan or of any other requirement of this Article.

(5) Notify the City Manager or his/her designee(s) within twenty-four (24) hours after discovering any of the following:

(i) Significant discrepancies identified during inventory. The level of significance shall be determined by the regulations promulgated by the City Manager or his/her designee(s).

(ii) Diversion, theft, loss, or any criminal activity involving the cannabis retail business or any agent or employee of the cannabis retail business.

(iii) The loss or unauthorized alteration of records related to cannabis, registering qualifying patients, primary caregivers, or employees or agents of the cannabis retail business.

(iv) Any other breach of security.

(6) Compliance with the foregoing requirements shall be verified by the Chief of Police prior to commencing business operations. The Chief of Police may supplement these security requirements once operations begin, subject to review by the City Manager if requested by the business owner.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 9, eff. 3-2-20).

SEC. 9-3311. OPERATING REQUIREMENTS FOR A DISTRIBUTOR.

(a) **General.**

(1) Distributor may operate 24 hours a day. Operations shall be subject to the provisions of the Noise Ordinance, Article 1 of Chapter 10 of this Code, as may be amended.

(2) Distributor vehicles shall be unmarked vehicles with no indication that the vehicles are transporting cannabis or cannabis products.

(3) Distributor shall comply with all applicable state standards and laws, including but not limited to, Section 26001 (r) of the Business and Professions Code, as may be amended.

(b) **Security Measures.**

(1) A permitted distributor shall implement sufficient security measures to deter and prevent the unauthorized entrance into areas containing cannabis or cannabis products, and to deter and prevent the theft of cannabis or cannabis products. Except as may otherwise be determined by the City Manager or his/her designee(s), these security measures shall include, but shall not be limited to, all of the following:

(i) Premises shall have a professionally installed, maintained, and monitored real-time alarm system by a security company licensed by the State of California Bureau of Security and Investigative Services.

(ii) Premises shall have perimeter security and lighting, including motion sensors, as approved by the Chief of Police.

(iii) Prevent individuals from remaining on the premises if they are not engaging in an activity directly related to the permitted operations of the distributor.

(iv) Establish limited access areas accessible only to authorized personnel.

(v) All cannabis and cannabis products shall be stored in a secured and locked vault or vault equivalent. All safes and vaults shall be compliant with Underwriter Laboratories burglary-resistant and fire-resistant standards. All cannabis or cannabis products shall be kept in a manner as to prevent diversion, theft, and loss.

(vi) The applicant must install a fully functional color digital video camera system ("System") that meets the following requirements:

1. The System must continuously record, store, be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The System must be maintained in a secured location inside of the business.

2. The System shall have the correct date and time stamped onto the image at all times.

3. The camera storage capacity should be for at least ninety days. Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.

4. Digital video recorder must be capable of storing at least ninety days of real-time activities.

5. The System shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department immediately, upon request for a criminal investigation and/or purposes of compliance only.

6. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area. There should be at least one camera focused on the entrance and the camera view should clearly show an image of the color coded height tape installed on the inside of the door jamb.

7. There shall be exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.

8. All interior cameras shall record in color.

9. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.

10. An inoperable System may be good cause for seeking revocation of the Permit.

(vii) Sensors shall be installed to detect entry and exit from all secure areas, and shall be monitored in real time by a security company licensed by the State of California Bureau of Security and Investigative Services.

(viii) Panic buttons shall be installed with direct notification to a licensed security company dispatch, and shall be configured to immediately alert dispatch for that licensed security company.

(ix) Any bars installed on the windows or the doors of the premises shall be installed only on the interior of the building.

(x) Armed security personnel shall be on-site during all hours of operation or alternative security as authorized by the City Manager or his/her designee(s). Security personnel must be licensed by the State of California Bureau of Security and Investigative Services personnel and shall be subject to the prior review and approval of the City Manager or his/her designee(s), with such approval not to be unreasonably withheld. Firearms shall be carried by security personnel at all times that they are on duty, except as otherwise authorized by the Chief of Police.

(xi) Premises shall have the capability to remain secure during a power outage and shall ensure that all access doors are not solely controlled by an electronic access panel to ensure that locks are not released during a power outage.

(xii) Entrance areas are to be locked at all times and under the control of a designated responsible party that is either; (a) an employee of the distributor; or (b) a licensed security professional.

(xiii) The interior must have at least one camera placed to focus on each transaction. At least one camera should be focused on the entrance, and the camera view should clearly show an image of a color-coded height tape installed on the inside of the door jamb.

(xiv) An accounting software system in place to provide point of sale data as well as audit trails or both product and cash, where applicable.

(xv) Demonstrate to the Chief of Police, City Manager or their designees, compliance with the state's track and trace system for cannabis and cannabis products and all Cannabis regulations stated in the California Code of Regulations.

(xvi) Have state of the art network security protocols in place to protect computer information and all digital data.

(xvii) Exterior vegetation shall be planted, altered, and maintained in a fashion that precludes its use as a hiding place for persons on the premises.

(xviii) Identify a designated security representative/liaison to the city, who shall be reasonably available to meet with the City Manager or his/her designee(s) regarding any security related measures or and operational issues. The designated security representative/liaison shall, on behalf of the distributor, annually prepare and submit to the District Commander of the Fresno Police Department a security plan for approval and maintain a copy of the current security plan on the premises of the business, to present to a peace officer immediately upon request that meets the following requirements:

1. Confirms that a designated Manager will be on duty during business hours and will be responsible for monitoring the behavior of patrons.
2. Identifies all Managers and their contact phone numbers.
3. Confirms that first aid supplies and operational fire extinguishers are located in the service areas and the Manager's office.
4. Confirms that burglar, fire, and panic alarms are operational and monitored by a licensed security company 24 hours a day, seven days a week, and provides contact information for each licensed security company.
5. Identify a sufficient number of licensed, interior and exterior security personnel who will monitor individuals inside and outside the commercial cannabis business, the parking lot, and any adjacent property under the business' control.
6. Confirm that the licensed security personnel shall regularly monitor the parking lot and any adjacent property to ensure that these areas are: (a) free of individuals loitering or causing a disturbance; (b) are cleared of patrons and their vehicles one-half hour after closing.

(2) As part of the application and permitting process each distributor shall have a storage and transportation plan, which describes in detail the procedures for safely

and securely storing and transporting all cannabis, cannabis products, and any currency. The distributor shall stagger transportation times, vary routes from the premises, and take other security measures as requested by the Chief of Police.

(3) The distributor shall cooperate with the city whenever the City Manager or his/her designee(s) makes a request, without prior notice, to inspect or audit the effectiveness of any security plan or of any other requirement of this Article.

(4) Notify the City Manager or his/her designee(s) within twenty-four (24) hours after discovering any of the following:

(i) Significant discrepancies identified during inventory. The level of significance shall be determined by the regulations promulgated by the City Manager or his/her designee(s).

(ii) Diversion, theft, loss, or any criminal activity involving the distributor or any agent or employee of the distributor.

(iii) The loss or unauthorized alteration of records related to cannabis, or employees or agents of the commercial cannabis business.

(iv) Any other breach of security.

(5) Compliance with the foregoing requirements shall be verified by the Chief of Police prior to commencing business operations. The Chief of Police may supplement these security requirements once operations begin, subject to review by the City Manager if requested by the business owner.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 10, eff. 3-2-20).

SEC. 9-3312. OPERATING REQUIREMENTS FOR A CULTIVATOR.

(a) **General.**

(1) Cultivator may operate 24 hours a day. Operations shall be subject to the provisions of the Noise Ordinance, Article 1 of Chapter 10 of this Code, as may be amended.

(2) Outdoor Cultivation Prohibited. The cultivation of all cannabis must occur indoors. All outdoor cultivation, including outdoor greenhouse cultivation, is prohibited.

(3) Cannabis plants shall not be visible from a public or private road, sidewalk, park, or any common public viewing area.

(4) Cultivator shall only be allowed to cultivate the square feet of canopy space permitted by state law. Research and development area shall be limited to ten percent (10%) of the total permitted canopy square footage.

(5) Cannabis cultivation shall be conducted in accordance with state and local laws related to land conversion, grading, electricity, water usage, water quality, woodland and riparian habitat protection, agricultural discharges, and similar matters.

(6) Pesticides and fertilizers shall be properly labeled and stored to avoid contamination through erosion, leakage or inadvertent damage from pests, rodents or other wildlife.

(7) The cultivation of cannabis shall at all times be operated in such a way as to ensure the health, safety, and welfare of the public, the employees working at the cultivation site, visitors to the area, neighboring properties, and the end users of the cannabis being cultivated, to protect the environment from harm to streams, fish, and wildlife; to ensure the security of the cannabis being cultivated; and to safeguard against the diversion of cannabis.

(8) All applicants for a cultivation permit shall submit the following in addition to the information generally otherwise required for a commercial cannabis business permit:

(i) A cultivation and operations plan that meets or exceeds minimum legal standards for water usage, conservation and use; drainage, runoff, and erosion control; watershed and habitat protection; and proper storage of fertilizers, pesticides, and other regulated products to be used on the parcel, and a description of the cultivation activities (indoor, mixed-light) and schedule of activities during each month of growing and harvesting, or explanation of growth cycles and anticipated harvesting schedules for all-season harvesting (indoor, mixed-light).

(ii) A description of a legal water source, irrigation plan, and projected water use.

(iii) Identification of the source of electrical power and plan for compliance with applicable Building Codes and related codes.

(iv) Plan for addressing public nuisances that may derive from the cultivation site.

(b) **Security Measures.**

(1) A permitted cultivator shall implement sufficient security measures to deter and prevent the unauthorized entrance into areas containing cannabis or cannabis products and to deter and prevent the theft of cannabis and cannabis products at the commercial cannabis business. Except as may otherwise be determined by the City Manager or his/her designee(s), these security measures shall include, but shall not be limited to, all of the following:

(i) Premises shall have a professionally installed, maintained, and monitored real-time alarm system by a security company licensed by the State of California Bureau of Security and Investigative Services.

(ii) Premises shall have perimeter security and lighting, including motion sensors, as approved by the Chief of Police.

(iii) Prevent individuals from remaining on the premises and nearby vicinity if they are not engaging in an activity directly related to the permitted operations of the cultivator.

(iv) Establish limited access areas accessible only to authorized personnel.

(v) Except for live growing plants which are being cultivated at a cultivation facility, all cannabis and cannabis products shall be stored in a secured and

locked vault or vault equivalent. All safes and vaults shall be compliant with Underwriter Laboratories burglary-resistant and fire-resistant standards. All cannabis and cannabis products, including live plants that are being cultivated, shall be kept in a manner as to prevent diversion, theft, and loss.

(vi) The applicant must install a fully functional color digital video camera system ("System") that meets the following requirements:

1. The System must continuously record, store, be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The System must be maintained in a secured location inside of the business.

2. The System shall have the correct date and time stamped onto the image at all times.

3. The camera storage capacity should be for at least ninety days. Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.

4. Digital video recorder must be capable of storing at least ninety days of real-time activities.

5. The System shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department immediately, upon request for a criminal investigation and/or for purposes of compliance only.

6. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area. There should be at least one camera focused on the entrance and the camera view should clearly show an image of the color coded height tape installed on the inside of the door jamb.

7. There shall be exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.

8. All interior cameras shall record in color.

9. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.

10. An inoperable System may be good cause for seeking revocation of the Permit.

(vii) Sensors shall be installed to detect entry and exit from all secure areas, and shall be monitored in real time by a security company licensed by the State of California Bureau of Security and Investigative Services.

(viii) Panic buttons shall be installed with direct notification to a licensed security company dispatch, and shall be configured to immediately alert dispatch for that licensed security company.

(ix) Any bars installed on the windows or the doors shall be installed only on the interior of the building.

(x) Armed security personnel shall be on-site during all hours of operation. Security personnel must be licensed by the State of California Bureau of Security and Investigative Services personnel and shall be subject to the prior review and approval of the City Manager or his/her designee(s), with such approval not to be unreasonably withheld. Firearms shall be carried by security personnel at all times that they are on duty, except as otherwise authorized by the Chief of Police.

(xi) Premises shall have the capability to remain secure during a power outage and shall ensure that all access doors are not solely controlled by an electronic access panel to ensure that locks are not released during a power outage.

(xii) Entrance areas are to be locked at all times and under the control of a designated responsible party that is either; (a) an employee of the cultivator; or (b) a licensed security professional.

(xiii) The interior must have at least one camera placed to focus on each transaction. At least one camera should be focused on the entrance, and the camera view should clearly show an image of a color-coded height tape installed on the inside of the door jamb.

(xiv) An accounting software system in place to provide point of sale data as well as audit trails of both product and cash, where applicable.

(xv) Demonstrate to the Chief of Police, City Manager or their designees, compliance with the state's track and trace system for cannabis and cannabis products and all Cannabis regulations stated in the California Code of Regulations.

(xvi) State of the art network security protocols in place to protect computer information and all digital data.

(xvii) Exterior vegetation shall be planted, altered and maintained in a fashion that precludes its use as a hiding place for persons on the premises.

(xviii) Each cultivator shall identify a designated security representative/liaison to the city, who shall be reasonably available to meet with the City Manager or his/her designee(s) regarding any security related measures or and operational issues. The designated security representative/liaison shall, on behalf of the cultivator, annually prepare and submit to the District Commander of the

Fresno Police Department a security plan for approval and maintain a copy of the current security plan on the premises, to present to a peace officer immediately upon request that meets the following requirements:

1. Confirms that a designated Manager will be on duty during business hours.
2. Identifies all Managers and their contact phone numbers.
3. Confirms that first aid supplies and operational fire extinguishers are located in the service areas and the Manager's office.
4. Confirms that burglar, fire, and panic alarms are operational and monitored by a licensed security company 24 hours a day, seven days a week, and provides contact information for each licensed security company.
5. Identify a sufficient number of licensed, interior and exterior security personnel who will monitor individuals inside and outside the premises, the parking lot, and any adjacent property under the business' control.
6. Confirm that the licensed security personnel shall regularly monitor the parking lot and any adjacent property to ensure that these areas are: (a) free of individuals loitering or causing a disturbance; (b) are cleared of patrons and their vehicles one-half hour after closing.

(2) As part of the application and permitting process each cultivator shall have a storage and transportation plan, which describes in detail the procedures for safely and securely storing and transporting all cannabis, cannabis products, and any currency.

(3) Cooperate with the city whenever the City Manager or his/her designee(s) makes a request, without prior notice, to inspect or audit the effectiveness of any security plan or of any other requirement of this Article.

(4) Notify the City Manager or his/her designee(s) within twenty-four (24) hours after discovering any of the following:

(i) Significant discrepancies identified during inventory. The level of significance shall be determined by the regulations promulgated by the City Manager or his/her designee(s).

(ii) Diversion, theft, loss, or any criminal activity involving the cultivator or any agent or employee of the cultivator.

(iii) The loss or unauthorized alteration of records related to cannabis, or employees or agents of the commercial cannabis business.

(iv) Any other breach of security.

(5) Compliance with the foregoing requirements shall be verified by the Chief of Police prior to commencing business operations. The Chief of Police may supplement these security requirements once operations begin, subject to review by the City Manager if requested by the business owner.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 11, eff. 3-2-20).

SEC. 9-3313. OPERATING REQUIREMENTS FOR A TESTING LABORATORY.

(a) **General.**

(1) Testing laboratories may operate 24 hours a day. Operations shall be subject to the provisions of the Noise Ordinance, Article 1 of Chapter 10 of this Code, as may be amended.

(2) Testing Laboratories shall comply with all applicable state standards and laws. Standard Operating Procedures, as recommended by the Bureau, must be followed.

(3) Testing laboratories shall be required to conduct all testing in a manner pursuant to Business and Professions Code 26100 and shall be subject to any additional or subsequent state and local law.

(b) **Security Measures.**

(1) A permitted testing laboratory shall implement sufficient security measures to deter and prevent the unauthorized entrance into areas containing cannabis or cannabis products, and to deter and prevent the theft of cannabis and cannabis products. Except as may otherwise be determined by the City Manager or his/her designee(s), these security measures shall include, but shall not be limited to, all of the following:

(i) Premises shall have a professionally installed, maintained, and monitored real-time alarm system by a security company licensed by the State of California Bureau of Security and Investigative Services.

(ii) Premises shall have perimeter security and lighting, including motion sensors, as approved by the Chief of Police.

(iii) Prevent individuals from remaining on the premises if they are not engaging in an activity directly related to the permitted operations of the testing laboratory.

(iv) Establish limited access areas accessible only to authorized personnel.

(v) All cannabis and cannabis products shall be stored in a secured and locked vault or vault equivalent. All safes and vaults shall be compliant with Underwriter Laboratories burglary-resistant and fire-resistant standards. All cannabis and cannabis products shall be kept in a manner as to prevent diversion, theft, and loss.

(vi) The applicant must install a fully functional color digital video camera system ("System") that meets the following requirements:

1. The System must continuously record, store, be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The System must be maintained in a secured location inside of the business.

2. The System shall have the correct date and time stamped onto the image at all times.

3. The camera storage capacity should be for at least ninety days. Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.
4. Digital video recorder must be capable of storing at least ninety days of real-time activities.
5. The System shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department immediately, upon request for a criminal investigation and/or for purposes of compliance only.
6. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area. There should be at least one camera focused on the entrance and the camera view should clearly show an image of the color coded height tape installed on the inside of the door jamb.
7. There shall be exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.
8. All interior cameras shall record in color.
9. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.
10. An inoperable System may be good cause for seeking revocation of the Permit.

(vii) Sensors shall be installed to detect entry and exit from all secure areas, and shall be monitored in real time by a security company licensed by the State of California Bureau of Security and Investigative Services.

(viii) Panic buttons shall be installed with direct notification to a licensed security company dispatch, and shall be configured to immediately alert dispatch for that licensed security company.

(ix) Any bars installed on the windows or the doors of the premises shall be installed only on the interior of the building.

(x) Security personnel shall be on-site during all hours of operation or alternative security as authorized by the City Manager or his/her designee(s). Security personnel must be licensed by the State of California Bureau of Security and Investigative Services personnel and shall be subject to the prior review and approval of the City Manager or his/her designee(s), with such approval not to be unreasonably withheld.

(xi) Premises shall have the capability to remain secure during a power outage and shall ensure that all access doors are not solely controlled by an electronic access panel to ensure that locks are not released during a power outage.

(xii) Entrance areas are to be locked at all times and under the control of a designated responsible party that is either; (a) an employee of the testing laboratory; or (b) a licensed security professional.

(xiii) The interior must have at least one camera placed to focus on each transaction. At least one camera should be focused on the entrance, and the camera view should clearly show an image of a color-coded height tape installed on the inside of the door jamb.

(xiv) An accounting software system in place to provide point of sale data as well as audit trails or both product and cash, where applicable.

(xv) Demonstrate to the Chief of Police, City Manager or their designees, compliance with the state's track and trace system for cannabis and cannabis products and all Cannabis regulations stated in the California Code of Regulations.

(xvi) Have state of the art network security protocols in place to protect computer information and all digital data.

(xvii) Exterior vegetation shall be planted, altered, and maintained in a fashion that precludes its use as a hiding place for persons on the premises.

(xviii) Identify a designated security representative/liaison to the city, who shall be reasonably available to meet with the City Manager or his/her designee(s) regarding any security related measures or and operational issues. The designated security representative/liaison shall, on behalf of the testing laboratory, annually prepare and submit to the District Commander of the Fresno Police Department a security plan for approval and maintain a copy of the current security plan on the premises of the business, to present to a peace officer immediately upon request that meets the following requirements:

1. Confirms that a designated Manager will be on duty during business hours and will be responsible for monitoring the behavior of patrons.
2. Identifies all Managers and their contact phone numbers.
3. Confirms that first aid supplies and operational fire extinguishers are located in the service areas and the Manager's office.
4. Confirms that burglar, fire, and panic alarms are operational and monitored by a licensed security company 24 hours a day, seven days a week, and provides contact information for each licensed security company.
5. Identify a sufficient number of licensed, interior and exterior security personnel who will monitor individuals inside and outside the testing laboratory, the parking lot, and any adjacent property under the business' control.

6. Confirm that the licensed security personnel shall regularly monitor the parking lot and any adjacent property to ensure that these areas are: (a) free of individuals loitering or causing a disturbance; (b) are cleared of patrons and their vehicles one-half hour after closing.

(2) As part of the application and permitting process each testing laboratory shall have a storage and transportation plan, which describes in detail the procedures for safely and securely storing and transporting all cannabis, cannabis products, and any currency.

(3) The testing laboratory shall cooperate with the city whenever the City Manager or his/her designee(s) makes a request, without prior notice, to inspect or audit the effectiveness of any security plan or of any other requirement of this Article.

(4) Notify the City Manager or his/her designee(s) within twenty-four (24) hours after discovering any of the following:

(i) Significant discrepancies identified during inventory. The level of significance shall be determined by the regulations promulgated by the City Manager or his/her designee(s).

(ii) Diversion, theft, loss, or any criminal activity involving the testing laboratory or any agent or employee of the testing laboratory.

(iii) The loss or unauthorized alteration of records related to cannabis, or employees or agents of the commercial cannabis business.

(iv) Any other breach of security.

(5) Compliance with the foregoing requirements shall be verified by the Chief of Police prior to commencing business operations. The Chief of Police may supplement these security requirements once operations begin, subject to review by the City Manager if requested by the business owner.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 12, eff. 3-2-20).

SEC. 9-3314. OPERATING REQUIREMENTS FOR A MANUFACTURER.

(a) **General.**

(1) Manufacturers may operate 24 hours a day. Operations shall be subject to the provisions of the Noise Ordinance, Article 1 of Chapter 10 of this Code, as may be amended.

(2) Manufacturers must comply with the California Fire Code, California Building Code, and edible product manufacturing must comply with California Department of Public Health Food and Drug Branch regulations.

(3) The manufacture of cannabis products shall be conducted in a manner to ensure the operation does not pose a threat to the health, safety, and welfare of the public or to neighboring properties.

(4) Any compressed gases used in the manufacturing process shall not be stored on any property within the city in containers that exceeds the amount which is approved by the Fresno Fire Department and authorized by the commercial cannabis business permit. Each site or parcel subject to a commercial cannabis business permit shall be limited to a total number of tanks as authorized by the Fresno Fire Department on the property at any time.

(5) Manufacturers may use food grade glycerin, ethanol, and propylene glycol solvents to create or refine extracts. Ethanol should be removed from the extract in a manner to recapture the solvent and ensure that it is not vented into the atmosphere.

(6) Manufacturers creating cannabis extracts must develop standard operating procedures, good manufacturing practices, and a training plan prior to producing extracts for the marketplace. The extraction operation shall be approved by the Fresno Fire Department and shall be operated in accordance with all relevant state and local requirements.

(7) Manufacturers must disclose to the city the nature of the product being manufactured (i.e. baked goods, ointments, products derived from butane extraction, etc.).

(8) Manufacturers must comply with all applicable state standards and laws, including but not limited to, Section 19353 of the Business and Professions Code, and Sections 11362.775 and 11362.9 of the Health and Safety Code. Manufacturers must also comply with Federal FDA practices and Standard Operating Procedures.

(9) Any Manufacturer that changes the medium of extraction or solvent used in manufacturing from the type previously approved shall submit a report for approval by the Fresno Fire Department prior to the use of the equipment with said new medium or solvent. The technical report shall be revised at the cost of the Manufacturer.

(10) Manufacturer shall employ quality control personnel and establish standard operating procedures that comply with current good manufacturing practices, as outlined by the State Department of Public Health and the U.S. Food and Drug Administration.

(11) All Manufacturers have a continuous obligation to identify and/or evaluate known or reasonably foreseeable hazards and implement written preventive controls to significantly minimize or prevent manufactured cannabis products from becoming adulterated or misbranded.

(12) Vacuum ovens shall not be used to process volatile solvents or flammable/combustible liquids contained in cannabis concentrate unless said vacuum oven is rated to process the vapors of volatile solvents or flammable/combustible liquids, such as a vacuum oven that is rated with an explosion-proof classification.

(i) Manufacturers conducting extractions with a vacuum oven shall take adequate precautions to ensure that any cannabis concentrate introduced into said oven does not contain volatile solvents or flammable/combustible liquids.

(ii) All vacuum ovens used in the manufacture of cannabis products shall be listed by a Nationally Recognized Testing Laboratory (NRTL).

(13) Doors to any room where Manufacturers use volatile solvents, hazardous materials, or flammable/combustible liquids in the manufacture of cannabis shall swing in the direction of egress, be self-closing and/or self-latching, and be provided with panic hardware.

(14) Volatile solvents, hazardous chemicals, and flammable/combustible liquids, including volatile solvents, hazardous chemicals, and flammable/combustible liquids contained in concentrated cannabis or cannabis goods, shall be stored in a refrigerator, refrigerated storage, or a freezer rated to store flammable liquids.

(i) Manufacturers shall store and process all volatile solvents or flammable/combustible liquids, including concentrated cannabis and manufactured cannabis that contains volatile solvents or flammable/combustible liquids, in refrigerators, refrigerated storage, or freezers rated to store flammable liquids which are, at a minimum, rated "Lab-Safe" or "Flammable Safe."

(15) Closed loop system required.

(i) Chemical extractions using carbon dioxide or a volatile solvent shall be conducted in a professional and commercially manufactured closed loop extraction system that has been certified by a California-licensed engineer.

(ii) No closed loop systems shall be utilized without prior inspection and approval of the Fresno Fire Department. It shall meet any required fire, safety, and building code requirements, including but not limited to, National Fire Protection Association (NFPA) standards, International Building Code (IBC), and International Fire Code (IFC).

(iii) Certification requirements.

1. Certifications from a California-licensed engineer of any closed loop system used by a Manufacturer shall be provided to certify that the system was commercially manufactured, is safe for its intended use, and was built to codes of recognized and generally accepted good engineering practices, including but not limited to:

a. The American Society of Mechanical Engineers (ASME);

b. American National Standards Institute (ANSI);

c. Underwriters Laboratories (UL); or

d. The American Society for Testing and Materials (ASTM).

2. The certification document required pursuant this subsection shall contain the signature and stamp of the professional engineer and serial number of the extraction unit being certified.

(iv) Closed loop systems for compressed gas extraction systems must be commercially manufactured and bear a permanently affixed and visible serial number. The carbon dioxide must be of at least ninety-nine percent purity.

(v) Any person using solvents or gases in a closed looped system to create cannabis extracts must be fully trained on how to use the system, have direct access to applicable material safety data sheets and handle and store the solvents and gases safely.

(vi) Manufacturers shall control all sources of ignition where a flammable atmosphere is or may be present.

(16) Manufacturers may only use volatile solvents or gases approved by the Fresno Fire Department and state law for extractions. Manufacturers may use nonvolatile solvents or mechanical processes to create or refine extracts, if approved by the Fresno Fire Department.

(17) Manufacturers that use and generate hazardous materials or hazardous waste shall comply with all applicable hazardous material regulations for hazardous waste generators and hazardous material handling requirements.

(18) Edible cannabis products.

(i) The manufacture, distribution, and transportation of edible cannabis products shall be conducted in a manner that complies with all applicable food safety laws for the protection of humans consuming cannabis.

(ii) Cannabis facility requirements and limitations.

1. All products, storage facilities, utensils, equipment, and materials used for the manufacture of edible cannabis products shall be approved, used, managed, and handled in accordance to the provisions of all State and local laws regarding the preparation, distribution, labeling, and sale of food.

2. Any manufacturing site that proposes to prepare, store, dispense, and distribute edible cannabis products shall comply with the relevant provisions of all State and local laws regarding the preparation, distribution, labeling, and sale of food.

3. No food production shall be allowed in a facility where edible cannabis products are manufactured to avoid the unintentional contamination of non-cannabis foods with cannabis.

4. Facilities where edible cannabis products are manufactured shall be constructed, permitted, operated, and inspected in accordance with the applicable building code and applicable food safety requirements.

(iii) All owners, employees, volunteers, or other individuals that participate in the production of edible cannabis products shall be State certified food handlers.

The valid certificate number of each such owner, employee, volunteer, or other individual shall be on record at the permitted premises where said individual participates in the production of edible cannabis products.

(19) Accurate weights and measures.

(i) Manufacturers shall maintain all weighing devices in good working order, approved, tested, sealed, and registered in compliance with Division 5 ("Weights and Measures") of the California Business and Professions Code, any regulations implemented by the Manufactured Cannabis Safety Branch, and all other applicable local, state, and Federal laws.

(ii) Manufacturers are prohibited from using scales, weights, or measures that do not accurately conform to the standard of weights and measures of the State and county.

(b) **Security Measures.**

(1) A permitted manufacturer shall implement sufficient security measures to deter and prevent the unauthorized entrance into areas containing cannabis or cannabis products, and to deter and prevent the theft of cannabis and cannabis products. Except as may otherwise be determined by the City Manager or his/her designee(s), these security measures shall include, but shall not be limited to, all of the following:

(i) Premises shall have a professionally installed, maintained, and monitored real-time alarm system by a security company licensed by the State of California Bureau of Security and Investigative Services.

(ii) Premises shall have perimeter security and lighting, including motion sensors, as approved by the Chief of Police.

(iii) Prevent individuals from remaining on the premises if they are not engaging in an activity directly related to the permitted operations of the manufacturer.

(iv) Establish limited access areas accessible only to authorized personnel.

(v) All cannabis and cannabis products shall be stored in a secured and locked vault or vault equivalent. All safes and vaults shall be compliant with Underwriter Laboratories burglary-resistant and fire-resistant standards. All cannabis and cannabis products shall be kept in a manner as to prevent diversion, theft, and loss.

(vi) The applicant must install a fully functional color digital video camera system ("System") that meets the following requirements:

1. The System must continuously record, store, be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The System must be maintained in a secured location inside of the business.

2. The System shall have the correct date and time stamped onto the image at all times.

3. The camera storage capacity should be for at least ninety days. Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.

4. Digital video recorder must be capable of storing at least ninety days of real-time activities.

5. The System shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department immediately, upon request for a criminal investigation and/or for purposes of compliance only.

6. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area. There should be at least one camera focused on the entrance and the camera view should clearly show an image of the color coded height tape installed on the inside of the door jamb.

7. There shall be exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.

8. All interior cameras shall record in color.

9. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.

10. An inoperable System may be good cause for seeking revocation of the Permit.

(vii) Sensors shall be installed to detect entry and exit from all secure areas, and shall be monitored in real time by a security company licensed by the State of California Bureau of Security and Investigative Services.

(viii) Panic buttons shall be installed with direct notification to a licensed security company dispatch, and shall be configured to immediately alert dispatch for that licensed security company.

(ix) Any bars installed on the windows or the doors of the premises shall be installed only on the interior of the building.

(x) Armed security personnel shall be on-site during all hours of operation or alternative security as authorized by the City Manager or his/her designee(s). Security personnel must be licensed by the State of California Bureau of Security and Investigative Services personnel and shall be subject to the prior review and approval of the City Manager or his/her designee(s), with such

approval not to be unreasonably withheld. Firearms shall be carried by security personnel at all times that they are on duty, except as otherwise authorized by the Chief of Police.

(xi) Premises shall have the capability to remain secure during a power outage and shall ensure that all access doors are not solely controlled by an electronic access panel to ensure that locks are not released during a power outage.

(xii) Entrance areas are to be locked at all times and under the control of a designated responsible party that is either; (a) an employee of the testing laboratory; or (b) a licensed security professional.

(xiii) The interior must have at least one camera placed to focus on each transaction. At least one camera should be focused on the entrance, and the camera view should clearly show an image of a color-coded height tape installed on the inside of the door jamb.

(xiv) An accounting software system in place to provide point of sale data as well as audit trails or both product and cash, where applicable.

(xv) Demonstrate to the Chief of Police, City Manager or their designees, compliance with the state's track and trace system for cannabis and cannabis products and all Cannabis regulations stated in the California Code of Regulations.

(xvi) Have state of the art network security protocols in place to protect computer information and all digital data.

(xvii) Exterior vegetation shall be planted, altered, and maintained in a fashion that precludes its use as a hiding place for persons on the premises.

(xviii) Identify a designated security representative/liaison to the city, who shall be reasonably available to meet with the City Manager or his/her designee(s) regarding any security related measures or and operational issues. The designated security representative/liaison shall, on behalf of the manufacturer, annually prepare and submit to the District Commander of the Fresno Police Department a security plan for approval and maintain a copy of the current security plan on the premises of the business, to present to a peace officer immediately upon request that meets the following requirements:

1. Confirms that a designated Manager will be on duty during business hours and will be responsible for monitoring the behavior of patrons.
2. Identifies all Managers and their contact phone numbers.
3. Confirms that first aid supplies and operational fire extinguishers are located in the service areas and the Manager's office.
4. Confirms that burglar, fire, and panic alarms are operational and monitored by a licensed security company 24 hours a day, seven days a week, and provides contact information for each licensed security company.

5. Identify a sufficient number of licensed, interior and exterior security personnel who will monitor individuals inside and outside the premises, the parking lot, and any adjacent property under the business' control.

6. Confirm that the licensed security personnel shall regularly monitor the parking lot and any adjacent property to ensure that these areas are: (a) free of individuals loitering or causing a disturbance; (b) are cleared of patrons and their vehicles one-half hour after closing.

(2) As part of the application and permitting process each manufacturer shall have a storage and transportation plan, which describes in detail the procedures for safely and securely storing and transporting all cannabis, cannabis products, and any currency.

(3) The manufacturer shall cooperate with the city whenever the City Manager or his/her designee(s) makes a request, without prior notice, to inspect or audit the effectiveness of any security plan or of any other requirement of this Article.

(4) Notify the City Manager or his/her designee(s) within twenty-four (24) hours after discovering any of the following:

(i) Significant discrepancies identified during inventory. The level of significance shall be determined by the regulations promulgated by the City Manager or his/her designee(s).

(ii) Diversion, theft, loss, or any criminal activity involving the manufacturer or any agent or employee of the manufacturer.

(iii) The loss or unauthorized alteration of records related to cannabis, or employees or agents of the commercial cannabis business.

(iv) Any other breach of security.

(5) Compliance with the foregoing requirements shall be verified by the Chief of Police prior to commencing business operations. The Chief of Police may supplement these security requirements once operations begin, subject to review by the City Manager if requested by the business owner.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 13, eff. 3-2-20).

SEC. 9-3315. OTHER OPERATIONAL REQUIREMENTS.

The City Manager or his/her designee may develop other commercial cannabis activity operational requirements or regulations as are determined to be necessary to protect the public health, safety and welfare.

(a) A microbusiness must comply with all of the operational requirements applicable to each business type the microbusiness is comprised of.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Amd. Ord. 2020-041, § 4, eff. 10-25-20).

SEC. 9-3316. INITIAL APPLICATION PROCEDURE.

(a) The City Manager shall adopt the procedures to issue commercial cannabis business permits, which shall include or require the City Manager to provide detailed objective review criteria to be evaluated on a point system or equivalent quantitative evaluation scale tied to

each set of review criteria. The City Manager or designee(s) shall be authorized to prepare the necessary forms, adopt any necessary rules to the application, regulations and processes, solicit applications, and conduct initial evaluations of the applicants.

(b) SOCIAL POLICY.

(1) Employment. Each applicant shall be required to hire individuals for a minimum of one-third (1/3) of the total annual work hours performed at the business who meets one of the following:

(i) Annual family income below 80% AMI;

(ii) Convicted for a cannabis related crime that could have been prosecuted as a misdemeanor or citation under current State law;

(iii) Lived in a low to moderate income census tract in the city for a minimum of three (3) years;

(iv) Veteran; or

(v) Former foster home youth who was in foster care as a minor.

(vi) Unemployed; or

(vii) Receiving public assistance.

If selected to receive a commercial cannabis business permit, a condition of approval shall be to provide the city with ongoing proof of compliance of this requirement.

(2) Labor Peace Agreements. A commercial cannabis business or cannabis retail business with five (5) or more employees shall sign a labor peace agreement allowing employees to join or form a union without interference. At the time of application filing, or within thirty (30) days of its fifth (5th) hire, the commercial cannabis business or cannabis retail business shall sign such labor peace agreement and provide a copy of the executed agreement to the City Manager or designee(s). If such agreement is not received, the application shall be denied or the commercial cannabis business permit shall be revoked in accordance with Section 9-3321 of this Article.

(i) Union shall mean a bona fide labor organization that is the recognized or certified exclusive bargaining representative of the employees of an employer. A labor organization is bona fide under this regulation if:

1. It actually represents employees in California as to wages, hours and working conditions;

2. Its officers have been elected by secret ballot or otherwise in a manner consistent with federal law; and

3. It is free of domination or interference by any employer and has received no improper assistance or support from any employer.

(3) Workforce Plan. All applicants shall submit a workforce plan that includes at least the following provisions:

(i) Commitment for 30% of employees to be local hires; this local hires requirement is satisfied when a business shows that it has either hired or made a good faith effort to hire bona fide residents of Fresno who have not established residency after application for employment with the permittee;

(ii) Commitment to offer apprenticeships and/or compensation for continuing education in the field; and

(iii) Commitment to pay a living wage to its employees.

(4) Collective Bargaining Agreement. If applicable, the applicant shall submit a current collective bargaining agreement with a bona fide labor organization that currently represents cannabis workers in the United States; the applicant shall provide a copy of the agreement to the City Manager or designee(s).

(5) Social Responsibility. At the time of filing, each applicant shall include a social responsibility element as part of the application. The contents of the social responsibility element are at the discretion of the applicant. The weight of the social responsibility portion of the application will be considered in the overall scoring of the application. Options for the social responsibility element may include, but are not limited to:

(i) Providing funding for or hosting expungement clinics or outreach services.

(ii) Incorporating an environmentally sustainable business model including energy efficient buildings and vehicles.

(iii) Providing a statement that the applicant will enter into, or demonstrate that it has already entered into, and abide by the terms of a labor peace agreement.

(iv) Utilizing vacant buildings, brownfields land, or blighted areas of the city for the business.

(6) Social Equity Applicant.

(i) A minimum of one (1) out of every seven (7) commercial cannabis business permits for cannabis retail businesses shall be awarded to an equity applicant. A maximum of two (2) out of every seven (7) commercial cannabis business permits for cannabis retail businesses may be awarded to an equity applicant.

(ii) A minimum of one (1) out of every eight (8) commercial cannabis business permits for commercial cannabis businesses shall be awarded to an equity applicant. A maximum of two (2) out of every eight (8) commercial cannabis business permits for commercial cannabis businesses may be awarded to an equity applicant.

(iii) To be considered an equity applicant, the majority ownership interest in the company applying must qualify under at least one of the following criteria:

1. Low income household and either:
   a. A past conviction for a cannabis crime, or
   b. Immediate family member with a past conviction for a cannabis crime.
2. Low income household in a zip code identified as at least 60% according to the CalEnviroScreen for five (5) consecutive year period and either:
   a. A past conviction for a cannabis crime, or
   b. Immediate family member with a past conviction for a cannabis crime.
3. Low income household and either:
   a. Five (5) years cumulative residency in a zip code identified as at least 70% according to the CalEnviroScreen, or
   b. Ten (10) years cumulative residency in a zip code identified by CalEnviroScreen.
4. Business with no less than fifty-one percent (51%) ownership by individuals who meet Criteria 1 and 2 above.
5. Cannabis social enterprise with no less than fifty-one percent (51%) ownership by individuals who meet Criteria 1 and 2 above.
   a. Cannabis social enterprise shall mean a cannabis business in the city that incubates and/or employs individuals meeting Criteria 1 or 2 above and uses commercial strategies to maximize improvements in financial, social, and environmental well-being of the disadvantaged community the organization sits in. This may include maximizing social impact alongside profits for external shareholders. It can be structured as a for-profit or non-profit organization and may take the form of a cooperative, mutual organization, a disregarded entity, a social business, a benefit corporation, a community interest company, a company limited by guarantee, or a charity organization. They can also take more conventional structures. Social enterprises have both business goals and social goals. As a result, their social goals are embedded in their objective, which differentiates them from other organizations and corporations.
6. An individual with a membership interest in a cannabis business formed as a cooperative.

(iv) The City Manager shall determine if an applicant meets the above criteria and qualifies as an equity applicant.

(v) If determined to not qualify as an equity applicant, the decision may be appealed in accordance with Section 9-3323 of this Article.

(vi) If qualified as an equity applicant, the equity applicant's fees shall be waived and commercial cannabis business permit application assistance and compliance assistance shall be given. An equity applicant shall also be provided any other assistance as required by state law, as may be amended.

(vii) An Equity Assistance Program shall be established by the City Manager once funding becomes available. The program shall be contingent upon Council approval, and shall include, but not be limited to, the following elements:

1. Assistance in paying state regulatory and licensing fees;
2. Assistance securing business locations prior to or during the application process;
3. Assistance securing capital investments (excluding loans and grants from the city);
4. Assistance in recruiting, training, and retention of a qualified/diverse workforce; and
5. Business loans and/or grants to equity applicants.

(c) At the time of filing an initial or renewal application, and in accordance with Section 26051.5(11)(A) of the Business and Professions Code, as may be amended, each applicant shall provide a statement that the applicant employs, or will employ within one year of receiving or renewing a commercial cannabis business permit, one supervisor and one employee who have successfully completed a Cal-OSHA 30-hour general industry outreach course offered by a training provider that is authorized by an OSHA Training Institute Education Center to provide the course. This paragraph shall not be construed to alter or amend existing requirements for employers to provide occupational safety and health training to employees.

(d) At the time of filing, each applicant shall sign a statement, under penalty of perjury, that all information submitted is true and correct. If it is later discovered that any false information was provided by the applicant, the application shall be denied, and if a commercial cannabis business permit was granted, it shall be revoked with no opportunity for an appeal.

(e) At the time of filing, each applicant shall pay an application fee established by resolution of the City Council, to cover all costs incurred by the city in the application process.

(f) All applications must be submitted in a Portable Document Format (PDF), or comparable alternative as approved by the City Manager, and will be posted online on the city's website after the interview process is complete for all applications in that particular application process. Posting will occur upon completion of the review and redaction process and will include supporting documents. Names and addresses of applicants will be posted when an application period closes. All applications submitted are considered public documents for Public Records Act request purposes. Any application forms created by the city shall include this disclaimer.

(g) At the time of filing, no Applicant or Owner shall initiate, engage in, or continue any communication to or with any elected official or Planning Commissioner, and no elected official or Planning Commissioner shall initiate, engage in, or continue any communication to or with any Applicant or Owner, concerning or touching upon any matter which is the subject of this Article. The application shall be rejected if prohibited communications take place.

(h) At the time of filing a complete application, the City Manager shall notify the Councilmember of the district in which the applicant seeks to be located through electronic mail and confirming that it was received.

(i) After the initial application review and preliminary elimination of applications, the City Manager shall provide notice by First Class mail delivery to all properties and property owners of record within a minimum 1,000-foot radius of the subject property as shown on the latest available assessment role. The City Manager shall also provide notice to the Councilmember whose district the business would be located in.

(j) After the final review, ranking, and scoring of applications, the City Manager or his/her designee(s) shall make a determination in accordance with this Article.

(k) THE CITY'S RESERVATION OF RIGHTS: The city reserves the right to reject any or all applications. Prior to permit issuance, the city may also modify, postpone, or cancel any request for applications, or the entire program under this Article, at any time without liability, obligation, or commitment to any party, firm, or organization, to the extent permitted under California state law. Persons submitting applications assume the risk that all or any part of the program, or any particular category of permit potentially authorized under this Article, may be cancelled at any time prior to permit issuance. The city further reserves the right to request and obtain additional information from any candidate submitting an application. In addition to any other justification provided a failure to comply with other requirements in this Article, an application RISKS BEING REJECTED for any of the following reasons:

(1) Proposal received after designated time and date.

(2) Proposal not containing the required elements, exhibits, nor organized in the required format.

(3) Proposal considered not fully responsive to this request for permit application.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, §§ 14—18, eff. 3-2-20; Am. Ord. 2020-022, § 1, eff. 6-30-20; Am. Ord. 2021-021, § 1, eff. 7-8-21).

SEC. 9-3317. PERMITTEE SELECTION PROCESS.

(a) The City Manager shall adopt a procedure guideline and Review Criteria by which the top applicants in each category of each commercial cannabis activity shall be evaluated with a final determination made by the City Manager, which may be appealed to the City Council by the Councilmember whose district the business would be located in. Local preference shall be included in the Review Criteria.

(b) Within ten (10) days of the City Manager making a determination to issue a commercial cannabis business permit, notice of the determination shall be sent to all properties and property owners of record within a minimum 1,000-foot radius of the business location as shown on the latest available assessment role, as well as the Councilmember whose district the business will be located in.

(c) Any decision of the City Manager regarding approval of a commercial cannabis business permit may be appealed to the City Council by: the applicant, the Mayor or the Councilmember whose district the business would be located in. Appeals must be initiated by filing a letter with the City Manager. Such action shall require a statement of reasons for the appeal. All appeals shall be filed with the City Manager in writing within 15 days of the date of the decision to issue a commercial cannabis business permit. A City Council hearing shall be set within twenty (20) days of the City Manager receiving an appeal. Ten (10) days prior to the scheduled City Council hearing, a notice of the hearing shall be sent to all properties and property owners of record within a minimum 1,000-foot radius of the business location as shown on the latest available assessment role, as well as the Councilmember who filed the appeal and the applicant.

(d) Official issuance of the commercial cannabis business permit(s), is conditioned upon the prevailing candidate(s) obtaining all required land use approvals and a Cannabis Business License Tax certificate. Following the City Manager's selection, the prevailing candidate(s) shall apply to the city's Planning and Development Department to obtain all required land use approvals or entitlements for the permittee's location. Land use applications shall be reviewed by all active Council District Project Review Committees. Land use approvals shall include compliance with all applicable provisions of CEQA. The City Manager or his/her designee(s) shall formally issue the commercial cannabis business permit(s) once the Planning and Development Director or his/her designee(s) affirms that all of the required land use approvals have been obtained and the City Controller affirms that a Cannabis Business License Tax certificate has been obtained.

(e) Issuance of a commercial cannabis business permit does not create a land use entitlement. The commercial cannabis business permit shall only be for a term of twelve (12) months, beginning the day the commercial cannabis business permit is physically issued by the City Manager once the required land use entitlement is obtained, and shall expire at the end of the twelve (12) month period unless it is renewed as provided herein. Furthermore, no permittee may begin operations, notwithstanding the issuance of a permit, unless all of the state and local laws and regulations, including but not limited to the requirements of this Article and of the permit, have been complied with.

(f) Notwithstanding anything in this Article to the contrary, the City Manager reserves the right to reject any or all applications if he/she determines it would be in the best interest of the city, taking into account any health, safety and welfare impacts on the community. Applicants shall have no right to a commercial cannabis business permit. Each applicant assumes the risk that, at any time prior to the issuance of a permit, the City Manager may terminate or delay the program created under this Article.

(g) If an application is denied, a new application may not be filed for one (1) year from the date of the denial.

(h) Each person granted a commercial cannabis business permit shall be required to pay the permit fee established by resolution of the City Council, to cover the costs of administering the commercial cannabis business permit program created in this Article. (Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 19, eff. 3-2-20).

SEC. 9-3318. PERSONS PROHIBITED FROM HOLDING A COMMERCIAL CANNABIS BUSINESS PERMIT.

(a) Any person, including but not limited to any individual, firm, partnership, joint venture, association, corporation, limited liability company, estate, trust, business trust, receiver, syndicate, or any other group or combination acting as a unit, and the plural as well as the singular in which any of the following actions or notices have been issued in non-compliance, shall be prohibited from holding a commercial cannabis business permit in the city. In addition, the following shall be grounds for denial of a commercial cannabis business permit:

(1) The applicant has had a cannabis license or permit suspended or revoked by any city, county, city and county, or any other state cannabis licensing authority within five years of the date of the application;

(2) Evidence that the applicant was in non-compliance of properly paying federal, state, or local taxes and/or fees when notified by the appropriate agencies;

(3) As of the date of application submittal, applicant was conducting commercial cannabis activity in the city in violation of local and state law.

(4) The applicant was convicted of illegal use, possession, transportation, distribution or similar activities related to controlled substances, as defined in the Federal Controlled Substances Act, except for cannabis related offenses for which the conviction occurred after the passage of the Compassionate Use Act of 1996.

(5) The applicant has been convicted of a violent felony, a crime involving moral turpitude, a crime involving lotteries, gambling, bookmaking, larceny, perjury, bribery, extortion, fraud, theft, or embezzlement, or has been convicted of prostitution, pimping, human trafficking, or pandering, or has been convicted of any crime substantially related to service or entertainment business;

(6) The applicant has been convicted of a crime involving dishonesty, fraud, or deceit with the intent to substantially benefit the applicant or benefit another, or substantially injure another;

(7) The applicant has violated any provisions of this Article;

(8) The applicant has knowingly made a false statement in his or her application or to any city officer, employee, or agent;

(9) The applicant has been noticed, charged, cited, or convicted of violating any law or ordinance relating to the operation of a commercial cannabis activity.

(b) No person shall be issued a commercial cannabis business permit to operate who enters into an agreement to lease, sublease or any other agreement, regardless of whether it is verbally or in writing to any terms of use of the premises from a property owner, commercial broker or any third party, unless that property is leased at fair market value and such lease, sublease, or agreement does not have any terms or conditions for the cannabis permit licensee to pay the property owner, commercial broker, or any third party a percentage of gross receipts, royalties, equity, or other unreasonable compensation as determined by the city. In addition, all leases, subleases, or other agreements must be based a monthly rate.

(c) At the time of submission of an application for a commercial cannabis business permit, all operators, owners, investors, and managers of a commercial cannabis business or cannabis retail business shall submit information for a background check, which shall include, but not be limited to, the following information:

(1) Name, address, and phone number of the applicant;

(2) A copy of a birth certificate, driver's license, government issued identification card, passport or other proof that the applicant is at least twenty-one (21) years of age must be submitted with the application;

(3) The application shall be accompanied by fingerprints and a recent photograph of the applicant in a form and manner as required by the City Manager or his/her designee(s).

(4) A signed statement under penalty of perjury that the information provided is true and correct.

(5) A fee paid in an amount set by resolution of the City Council in an amount necessary to cover the costs of administering the background check. The fee is non-refundable and shall not be returned in the event the permit is denied or revoked.

(d) The City Manager or his/her designee(s) shall review the application for completeness, shall conduct a background check, and shall not issue a permit if any grounds for denial of a permit listed above are found.
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 20, eff. 3-2-20).

SEC. 9-3319. EMPLOYEE REQUIREMENTS.

(a) Any person who is an employee or who otherwise works or volunteers within a commercial cannabis business or cannabis retail business must be legally authorized to do so under applicable state law.
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 21, eff. 3-2-20).

SEC. 9-3320. EXPIRATION OF COMMERCIAL CANNABIS BUSINESS PERMITS.

Each commercial cannabis business permit issued pursuant to this Article shall expire twelve (12) months after the date of its issuance. Commercial cannabis permits may be renewed as provided in Section 9-3322.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3321. REVOCATION OF PERMITS.

Commercial cannabis business permits may be revoked for any violation of any law, rule, regulation and/or standard adopted or if an application contained false information. The revocation of a commercial cannabis business permit may be appealed in accordance with Section 9-3323.
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 22, eff. 3-2-20).

SEC. 9-3322. RENEWAL APPLICATIONS.

(a) An application for renewal of a commercial cannabis business permit shall be filed at least sixty (60) calendar days prior to the expiration date of the current permit.

(b) The renewal application shall contain all the information required for new applications.

(c) The applicant shall pay a fee in an amount to be set by the City Council to cover the costs of processing the renewal permit application, together with any costs incurred by the city to administer the program created under this Article.

(d) An application for renewal of a commercial cannabis business permit shall be rejected if any of the following exists:

(1) The application is filed less than sixty (60) days before its expiration.

(2) The commercial cannabis business permit is suspended or revoked at the time of the application.

(3) The commercial cannabis business or cannabis retail business has not been in regular and continuous operation in the four (4) months prior to the renewal application.

(4) The commercial cannabis business or cannabis retail business has failed to conform to the requirements of this Article, or of any regulations adopted pursuant to this Article.

(5) The commercial cannabis business or cannabis retail business fails or is unable to renew its state license.

(6) If the city or state has determined, based on substantial evidence, that the commercial cannabis business or cannabis retail business is in violation of the requirements of this Article, of any city Ordinance, or of state rules and regulations, and the city has determined that the violation is grounds for termination or revocation of the commercial cannabis business permit.

(e) The City Manager or his/her designee(s) is authorized to make all decisions concerning the issuance of a renewal permit. In making the decision, the City Manager or his/her designee(s) is authorized to impose additional conditions to a renewal permit, if it is determined to be necessary to ensure compliance with state or local laws and regulations or to preserve the public health, safety or welfare. Appeals from the decision of the City Manager or his/her designee(s) shall be handled pursuant to Section 9-3323.

(f) If a renewal application is rejected, a person may file a new application pursuant to this Article no sooner than one (1) year from the date of the rejection.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3323. APPEALS.

Whenever an appeal is provided for in this Article from a decision of the City Manager or his/her designee(s), the appeal shall be conducted as prescribed in Chapter 1, Article 4 of this Code.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3324. EFFECT OF STATE LICENSE SUSPENSION, REVOCATION, OR TERMINATION.

Suspension of a license issued by the state shall immediately suspend the ability of a commercial cannabis business or cannabis retail business to operate within the city, until the state reinstates or reissues the license. Should the state revoke or terminate the license of a commercial cannabis business or cannabis retail business, such revocation or termination shall also revoke or terminate the ability of the commercial cannabis business or cannabis retail business to operate within the city.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3325. CHANGE IN LOCATION OR OWNERSHIP REQUIRES REAPPLICATION.

(a) Any time a commercial cannabis business or a cannabis retail business has a change in location or business ownership, the applicant shall reapply with the City Manager or his/her designee(s). The process and the fees shall be the same as the process and fees set for an initial application as set forth in Section 9-3316.

(1) **Change in Business Ownership:** A change in ownership for the replacement of any operator, owner, investor or manager, of a commercial cannabis business or a commercial retail business, shall only be considered at the same time as a renewal application and with the filing requirements as stated in Section 9-3322.

(2) **Social Equity Permits:** A change in ownership for the replacement of any operator, owner, investor or manager, of a commercial cannabis business or a commercial retail business that was approved for a Social Equity permit by the City Manager will

require that the next available commercial business or commercial retail business permit be awarded to a Social Equity Applicant to maintain the minimum number of Social Equity permits outlined in Section 9-3326(b)(4).

(b) Within fifteen (15) calendar days of any other change in the information provided in the registration form or any change in status of compliance with the provisions of this Article, the applicant shall file an updated registration form with the City Manager or his/her designee(s) for review along with a registration amendment fee.
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 23, eff. 3-2-20; Am. Ord. 2021-021, § 2, 7-8-21).

SEC. 9-3326. CITY BUSINESS LICENSE.

Prior to commencing operations, a commercial cannabis business or cannabis retail business shall obtain a city business license.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3327. BUILDING PERMITS AND INSPECTION.

Prior to commencing operations, a commercial cannabis business or cannabis retail business shall be subject to a mandatory building inspection and must obtain all required permits and approvals which would otherwise be required for any business of the same size and intensity operating in that zone. This includes but is not limited to obtaining any required building permit(s), the Fire Department approvals, Health Department approvals and other zoning and land use permit(s) and approvals.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3328. CANNABIS CONDITIONAL USE PERMIT.

Prior to commencing operations, a commercial cannabis business or cannabis retail business must obtain the appropriate land use entitlement from the Planning and Development Department.
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 24, eff. 3-2-20).

SEC. 9-3329. RIGHT TO OCCUPY AND TO USE PROPERTY.

As a condition precedent to the city's issuance of a commercial cannabis business permit pursuant to this Article, any person intending to operate a commercial cannabis business or cannabis retail business shall provide a signed and notarized statement, prepared by the City Attorney, demonstrating the legal right to occupy and to use the proposed location for commercial cannabis activity.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3330. PROMULGATION OF REGULATIONS, STANDARDS AND OTHER LEGAL DUTIES.

(a) In addition to any regulations adopted by the City Council, the City Manager or his/her designee is authorized to establish any additional rules, regulations and standards governing the issuance, denial or renewal of commercial cannabis business permits, the ongoing operation of commercial cannabis businesses and the city s oversight, or concerning any other subject determined to be necessary to carry out the purposes of this Article.

(b) Regulations shall be published on the city's website.

(c) Regulations promulgated by the City Manager shall become effective upon date of publication.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3331. RECORDS AND RECORDKEEPING.

(a) Each owner and operator of a commercial cannabis business or cannabis retail business shall maintain accurate books and records in an electronic format, detailing all of the revenues and expenses of the business, and all of its assets and liabilities. On no less than an annual basis (at or before the time of the renewal of a commercial cannabis business permit issued pursuant to this Article), or at any time upon reasonable request of the city, each commercial cannabis business or cannabis retail business shall file a sworn statement detailing the number of sales by the commercial cannabis business or cannabis retail business during the previous twelve-month period (or shorter period based upon the timing of the request), provided on a per-month basis. The statement shall also include gross sales for each month, and all applicable taxes paid or due to be paid. On an annual basis, each owner and operator shall submit to the city a financial audit of the business's operations conducted by an independent certified public accountant. Each permittee shall be subject to a regulatory compliance review and financial audit as determined by the City Manager or his/her designee(s).

(b) Each owner and operator of a commercial cannabis business or cannabis retail business shall maintain a current register of the names and the contact information (including the name, address, and telephone number) of anyone owning or holding an interest in the commercial cannabis business or cannabis retail business, and separately of all the officers, managers, employees, agents and volunteers currently employed or otherwise engaged by the commercial cannabis business or cannabis retail business. The register required by this paragraph shall be provided to the City Manager or his/her designee(s) upon a reasonable request.

(c) All commercial cannabis businesses and cannabis retail businesses shall maintain an inventory control and reporting system that accurately documents the present location, amounts, and descriptions of all cannabis and cannabis products for all stages of the growing and production or manufacturing, laboratory testing, and distribution processes until purchase as set forth MAUCRSA.

(d) Subject to any restrictions under the Health Insurance Portability and Accountability Act (HIPAA) regulations, each commercial cannabis business or cannabis retail business shall allow the city to have access to the business's books, records, accounts, together with any other data or documents relevant to its permitted commercial cannabis activities, for the purpose of conducting an audit or examination. Books, records, accounts, and any and all relevant data or documents will be produced no later than twenty-four (24) hours after

receipt of the city's request, unless otherwise stipulated by the city. The city may require the materials to be submitted in an electronic format that is compatible with the city's software and hardware.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3332. FEES AND CHARGES.

(a) No person may commence or continue any commercial cannabis activity in the city, without timely paying in full all fees and charges required for the operation of a commercial cannabis business or cannabis retail business. Fees and charges associated with the operation of a commercial cannabis activity shall be established by resolution of the City Council which may be amended from time to time.

(b) All commercial cannabis businesses or cannabis retail businesses authorized to operate under this Article shall pay all sales, use, business, and other applicable taxes, and all license, registration, and other fees required under federal, state, and local law. Each commercial cannabis business or cannabis retail business shall cooperate with the city with respect to any reasonable request to audit the business' books and records for the purpose of verifying compliance with this section, including but not limited to a verification of the amount of taxes required to be paid during any period.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3333. LIMITATIONS ON CITY'S LIABILITY.

To the fullest extent permitted by law, the city shall not assume any liability whatsoever with respect to having issued a commercial cannabis business permit pursuant to this Article or otherwise approving the operation of any commercial cannabis business or cannabis retail business. As a condition to the approval of any commercial cannabis business permit, the applicant shall be required to meet all of the following conditions before they can receive the commercial cannabis business permit:

(a) They must execute an agreement, in a form approved by the City Attorney, agreeing to indemnify, defend (at applicant's sole cost and expense), and hold the city, and its officers, officials, employees, representatives, and agents, harmless, from any and all claims, losses, damages, injuries, liabilities or losses which arise out of, or which are in any way related to, the city's issuance of the commercial cannabis business permit or the alleged violation of any federal, state or local laws by the commercial cannabis business or cannabis retail business or any of its officers, employees or agents.

(b) Maintain insurance at coverage limits and with conditions thereon determined necessary and appropriate from time to time by the City Manager.

(c) Reimburse the city for all costs and expenses, including but not limited to legal fees and costs and court costs, which the city may be required to pay as a result of any legal challenge related to the city's approval of the applicant's commercial cannabis

business permit. The city may, at its sole discretion, participate at its own expense in the defense of any such action, but such participation shall not relieve any of the obligations imposed hereunder.

(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3334. PERMIT HOLDER RESPONSIBLE FOR VIOLATIONS.

The person to whom a commercial cannabis business permit is issued pursuant to this Article shall be responsible for violations of any laws, whether committed by the permittee or any employee or agent of the permittee, which occur in or about the premises of the commercial cannabis business or cannabis retail business.

(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3335. INSPECTION AND ENFORCEMENT.

(a) The City Manager, or his/her designee(s) charged with enforcing the provisions of this Code, as well as the City Attorney, or his/her designee(s) and the Chief of Police, or his/her designee(s), may enter the location of a commercial cannabis business or cannabis retail business at any time, without notice, and inspect the premises as well as any recordings and records required to be maintained pursuant to this Article or under applicable provisions of state law.

(b) It is unlawful for any person to impede, obstruct, interfere with, or otherwise not to allow, the city to conduct an inspection, review or copy records, recordings or other documents required to be maintained by a commercial cannabis business or cannabis retail business under this Article or under state or local law. It is also unlawful for a person to conceal, destroy, deface, damage, or falsify any records, recordings or other documents required to be maintained by a commercial cannabis business or cannabis retail business under this Article or under state or local law.

(c) The City Manager, or his/her designee(s) charged with enforcing the provisions of this Article, as well as the City Attorney, or his/her designee(s) and the Chief of Police, or his/her designee(s), may enter the premises of a commercial cannabis business or cannabis retail business at any time during the hours of operation and without notice to obtain samples of the cannabis to test for public safety purposes. Any samples obtained by the city shall be logged, recorded, and maintained in accordance with established procedures by the City Manager.

(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 25, eff. 3-2-20).

SEC. 9-3336. VIOLATIONS DECLARED A PUBLIC NUISANCE.

Each and every violation of the provisions of this Article is hereby deemed unlawful and a public nuisance.

(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3337. EACH VIOLATION A SEPARATE OFFENSE.

Each and every violation of this Article shall constitute a separate violation and shall be subject to all remedies and enforcement measures authorized by the city. Additionally, as a nuisance per se, any violation of this Article shall be subject to injunctive relief, any permit issued pursuant to this Article being deemed null and void, disgorgement and payment to the city for any monies unlawfully obtained, costs of abatement, costs of investigation, attorney fees, and any other relief or remedy available at law or in equity. The city may also pursue any and all remedies and actions available and applicable under state and local laws for any violations committed by the commercial cannabis business or cannabis retail business or persons related to, or associated with, the commercial cannabis activity. Additionally, when there is a violation of this Article, the City Manager, or his/her designee(s), may take immediate action to temporarily suspend a commercial cannabis business permit issued by the city.
(Added Ord. 2018-68, § 1, eff. 1-24-19; Am. Ord. 2020-002, § 26, eff. 3-2-20).

KSEC. 9-3338. CRIMINAL PENALTIES.

Each and every violation of the provisions of this Article may in the discretion of the District Attorney or City Attorney be prosecuted as a misdemeanor and upon conviction be subject to a fine not to exceed one thousand dollars ($1,000) or imprisonment in the County jail for a period of not more than twelve (12) months, or by both such fine and imprisonment. Each day a violation is committed or permitted to continue shall constitute a separate offense.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3339. REMEDIES CUMULATIVE AND NOT EXCLUSIVE.

The remedies provided herein are not to be construed as exclusive remedies. The city is authorized to pursue any proceedings or remedies provided by law.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3340. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. The Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3341. NO VESTED RIGHTS.

Neither this article, nor any other provision of this Code or action, failure to act, statement, representation, certificate, approval, or permit issued by the city or its

departments, or their respective representatives, agents, employees, attorneys, or assigns, shall create, confer, or convey any vested or nonconforming right or benefit regarding any commercial cannabis activity. Any benefit conferred by this ordinance shall expire permanently and in full on the effective date of the City Council's enactment of new cannabis legislation or upon repeal of this ordinance. Should the city repeal or amend this article, no claim for loss of property rights or due process of any kind shall be maintained against the city.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

SEC. 9-3342. YEARLY REVIEW.

The City Manager shall review the operation of this Article within twelve months of its effective date and report his/her findings and recommendations to Council. After the initial twelve month review, City Council shall annually review this Article and its effects on the community.
(Added Ord. 2018-68, § 1, eff. 1-24-19).

ARTICLE 34. SHARED MOBILITY DEVICES

Sec. 9-3401. Title.
Sec. 9-3402. Purpose.
Sec. 9-3403. Definitions.
Sec. 9-3404. Granting of Permits and Franchises.
Sec. 9-3405. Application for Permit and Franchise.
Sec. 9-3406. Impoundment of Devices.
Sec. 9-3407. Enforcement.
Sec. 9-3408. Exigency.
Sec. 9-3409. Revocation of Permit.
Sec. 9-3410. Pilot Program.

SEC. 9-3401. TITLE.

This Article shall be known as the "Shared Mobility Device Ordinance."
(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3402. PURPOSE.

Consistent with the City's goals of enhancing mobility and access, easing traffic congestion, and promoting sustainability, this Article creates a program to facilitate the use of shared mobility devices while ensuring the protection of public health and safety, including the safety of the public traveling by foot, bicycle, or vehicle on public sidewalks, streets, and other public right-of-way.
(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3403. DEFINITIONS.

(a) "Code" shall mean Fresno Municipal Code.

(b) "Electric Bicycle" has the same meaning as in California Vehicle Code 312.5.

(c) "Fleet" shall mean all Shared Mobility Devices owned a by specific operator.

(d) "Geofencing" shall mean the creation of a virtual geographic boundary, defined by the Global Positioning System (GPS), radio-frequency identification (RFID), or other technology that enables the operator to regulate speed, issue notifications, and take other actions when a Shared Mobility Device in its fleet enters or leaves a defined area.

(e) "Motorized Scooter" has the same meaning as in California Vehicle Code 407.5(a)(b).

(f) "Operator" shall mean any person or business entity granted a permit and franchise by the City to operate Shared Mobility Devices.

(g) "Public Area" shall mean any outdoor area that is open to the public for public use, whether owned or operated by the City or a private party.

(h) "Public Right-of-Way" shall mean any public alley, parkway, public transportation path, roadway, sidewalk, or street that is owned, granted by easement, operated, or controlled by the City.

(i) "Shared Mobility Device" shall mean any bicycle, tricycle, motorized scooter, hoverboard, skateboard, pedal car, or other similar device, whether powered or non-powered, that is displayed, offered, or placed for rent in any public area or public right-of-way. A shared mobility device does not include automobiles registered by the California Department of Motor Vehicles, nor assistive mobility devices used by persons with disabilities.

(j) "Users" means a person who rents and uses a shared mobility device from an operator. (Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3404. GRANTING OF PERMITS AND FRANCHISES.

Any person, firm, or corporation desiring to make available for rent within the City of Fresno any shared mobility device shall first obtain a permit and franchise therefor. (Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3405. APPLICATION FOR PERMIT AND FRANCHISE.

(a) Any person or entity seeking to obtain a shared mobility device operator permit and franchise shall submit a written permit application, signed under penalty of perjury, using the form designated by the City Manager for that purpose.

(b) The permit and franchise agreement shall establish permit and franchise fees, which shall:

(1) Defray the City's costs in administering and enforcing the provisions of this Article; and

(2) Reflect charges associated with use of public property pursuant to this Article.

(c) The City Manager may specify the information that must be provided in connection with an application and the form in which the information is to be provided. The application shall contain, at a minimum, the following:

(1) The name and business address of each person or entity that: (i) has more than a ten percent equity, participation, or revenue interest in the applicant; or (ii) is a trustee, director, partner, or officer of that entity or of another entity that owns or controls the applicant, excepting persons serving in those capacities as volunteers, without compensation, for organizations exempt from income taxes under Section 501(c)(3), (4), or (6) of the Internal Revenue Code;

(2) The name and business address of any parent or subsidiary of the applicant, namely, any other business entity owning or controlling the applicant in whole or in part, or owned or controlled in whole or in part by the applicant, and a statement describing the nature of any such parent or subsidiary business entity;

(3) Information sufficient to show that the applicant is financially, technically, and legally qualified to operate and maintain a shared mobility device system;

(4) A description of the proposed plan of operation, including, at a minimum, a detailed description of:

(i) A summary of the applicant's current operations in similar jurisdictions, including confirming the applicant has a permit to operate where required for such jurisdictions,

(ii) The applicant's proposed operations in the City including the maximum number of shared mobility devices anticipated, the plan for deployment of shared mobility devices within the City, the plan for shared mobility device maintenance, levels of staff for operations and administration, and the plan for customer service,

(iii) The applicant's regulatory compliance program,

(iv) The applicant's history of, intent to, and ability to comply with, State and local law,

(v) The applicant's plans to implement safety programs, including, for example, a program by which the applicant will receive information about and notify users of inappropriate use,

(vi) The applicant's plans to educate users of shared mobility devices about applicable California Vehicle Code provisions, local laws, and other applicable laws, regulations, and guidelines,

(vii) The applicant's plans to comply with applicable Federal, State, and local data privacy laws and otherwise to protect the privacy of personal information provided by USERS,

(viii) Plans for sharing of anonymized trip data with the City through an application program interface (API), General Bikeshare Feed Specifications (GBFS), Mobility Data Specifications (MDS), or similar technology,

(ix) Proof of insurance naming the City of Fresno as an additional insured in for and amounts established by the City Manager,

(x) Any other requirements set forth by the City Manager.

(d) A completed shared mobility device permit and franchise agreement shall include, at a minimum, the following:

(1) The types of shared mobility devices the operator is authorized to deploy,

(2) The maximum number of each type of shared mobility devices permitted in the operator's fleet,

(3) Locations identified where an operator shall use geofencing or similar technology to reduce the speed of the operator's shared mobility devices,

(4) Locations identified where an operator shall use geofencing or similar technology to prevent users from ending a ride, including, without limitation, Fashion Fair Mall and the California State University, Fresno campus, without express written permission from the property owner to the operator.

(5) Specific labelling of each shared mobility device in letters at least 1" tall that reads "RIDING ON SIDEWALKS IS PROHIBITED BY STATE LAW."

(6) The non-refundable shared mobility device franchise fee.

(7) Provision for the shared mobility device operator to accept cash payment for ride credits.

(8) Provision to create a discount program for qualified low income individuals.

(e) The City Manager shall issue a permit and franchise agreement upon the operator's payment of fees required and the City Manager's determination the operator's permit application is complete.

(f) Permits shall be effective upon signature by the operator and valid for six months.

(g) The City Manager shall adopt a process to renew permit and franchise agreements.
(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3406. IMPOUNDMENT OF DEVICES.

(a) A shared mobility device displayed, offered, or made available for rent, or left, in the public right-of-way or a public area in violation of this Article or Chapter 14, Article 3, shall be subject to impoundment by the City.

(b) A shared mobility device displayed, offered, or made available for rent absent a permit and franchise is subject to immediate removal.

(c) Within two hours of notice from the City, an operator shall retrieve its shared mobility device that has been marked as inoperable or parked in violation of this code, California Vehicle Code, or the permit and franchise agreement.

(d) If a shared mobility device is materially blocking the public right-of-way or ADA path of travel, the device may be removed immediately by City staff.
(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3407. ENFORCEMENT.

Any person who violates any provision of this Article or Chapter 14, Article 3, shall be guilty of an infraction.
(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3408. EXIGENCY.

The City Manager may require operators, through geofencing or similar technology to temporarily disable shared mobility devices in a specific area during an emergency or within the perimeter of a permitted special event as defined in Article 24 of this code.
(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3409. REVOCATION OF PERMIT.

The City Manager may revoke an operator's permit if the operator materially violates any provision of this code or the terms of their permit and franchise agreement. If the City revokes an operator's permit, the operator may be required to wait at least six months from the date the permit was revoked before applying for a new permit.

(a) Within ten calendar days of the termination or expiration of an operator's permit, the operator shall remove its fleet from operation with the City and shall retrieve any shared mobility devices impounded by the City. If the operator fails to comply, the City may remove and dispose of shared mobility devices at the operator's cost.

(Added Ord. 2019-034, § 1, eff. 11-11-19).

SEC. 9-3410. PILOT PROGRAM.

The City Manager shall conduct a pilot program of a duration not to exceed six months or June 30, 2020, whichever is lesser. During the pilot program, only one permit and franchise shall be issued. At the end of the Pilot Program, this Article is hereby repealed.
(Added Ord. 2019-034, § 1, eff. 11-11-19).

ARTICLE 35. NALOXONE

Sec. 9-3501. Title.
Sec. 9-3502. Purpose.
Sec. 9-3503. Definitions.
Sec. 9-3504. Requirements to Maintain Naloxone.
Sec. 9-3505. Employee Training.
Sec. 9-3506. Maintenance.
Sec. 9-3507. Protection From Liability.
Sec. 9-3508. Penalty.

SEC. 9-3501. TITLE.

This Article shall be known as the "Naloxone Ordinance."
(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3502. PURPOSE.

It is the purpose of this Article to promote public health, safety, and welfare by enhancing access to naloxone hydrochloride nasal spray at Alcoholic Beverage Control Conditional Use Permit establishments.
(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3503. DEFINITIONS.

For the purpose of this Article, the following definitions apply unless the context indicates or requires a different meaning.

(a) **Included Business.** A business licensed by the California Department of Alcoholic and Beverage Control that sells and serves alcoholic beverages as defined in Business and Professions Code Sections 23004 through 23037 for onsite consumption including, but not limited to: restaurants with alcohol sales, bars, nightclubs, breweries, and lounges for standards; convention center, exhibit hall, auditorium, or businesses identified in Business and Professions Code Sections 23038, 23038.1, 23038.2, and 23038.3. Businesses that only incidentally serve alcohol for sampling purposes or wine stores that host occasional wine tastings are excluded from this ordinance.

(b) **Manager.** Any designated person in an Included Business responsible for the licensed premises during the hours in which the business is permitted, under its license, to sell or serve liquor.

(c) **Over the Counter (OTC) Naloxone.** OTC Naloxone is a life-saving medication used to reverse an opioid overdose, including heroin, fentanyl, and prescription opioid medications.
(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3504. REQUIREMENTS TO MAINTAIN NALOXONE.

Included Businesses must at all times maintain at least one dose of OTC Naloxone in each first aid kit on their premises, which dose may be administered to an individual to reverse the effects of an opioid overdose.
(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3505. EMPLOYEE TRAINING.

All Managers of an Included Business must be trained in the proper administration of OTC Naloxone.
(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3506. MAINTENANCE.

Included Businesses must:

(a) Ensure that any OTC Naloxone required to be maintained on the premises is stored in accordance with the guidelines set forth by the manufacturer;

(b) Replace any doses of OTC Naloxone that are past their expiration date, as determined by the manufacturer.

(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3507. PROTECTION FROM LIABILITY.

Anyone who provides or administers OTC Naloxone pursuant to this article is subject to protection from liability of California's Health and Safety Code sections 1714.22 and 1799.102 and all other applicable laws.
(Added Ord. 2024-012, § 1, eff. 8-21-24).

SEC. 9-3508. PENALTY.

Any Included Business violating this Article is subject to a fine of not more than two hundred dollars ($200.00). Nothing in this Article may be interpreted to preclude the California Alcoholic Beverage Control from enforcing its own rules.
(Added Ord. 2024-012, § 1, eff. 8-21-24).

ARTICLE 36. COMMERCIAL SCRAP METAL

Sec. 9-3601. Definitions.
Sec. 9-3602. Receipt, Possession, and Transportation of Commercial Quantities of Copper or Aluminum Components Prohibited Without a License.
Sec. 9-3603. Receipt, Possession, and Transportation of Stripped Commercial Grade Wire or Cable Prohibited Without a License.
Sec. 9-3604. Stripping of Commercial Grade Copper Wire Prohibited.
Sec. 9-3605. Violation and Penalty.
Sec. 9-3606. Public Nuisance.
Sec. 9-3607. Non-Exclusive Remedy.
Sec. 9-3608. Severability.

SEC. 9-3601. DEFINITIONS.

1. "Commercial grade" means copper or aluminum wire or cable with a diameter of .15 inches or greater, exclusive of any sheathing or coating, or telecommunications cable with 50 or more pairs of conductors in a single cable.

2. "Sheathing" means the coating, typically made of plastic, rubber or a similar substance, which insulates and protects commercial grade wire or cable, and often bears markings which identify the lawful owner, purpose, or source of the wire or cable.

3. "Scrap" means material derived from manufactured components, such as transmission or telecommunications lines, which are no longer useful for their intended purpose and primarily valuable for recycling.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3602. RECEIPT, POSSESSION, AND TRANSPORTATION OF COMMERCIAL QUANTITIES OF COPPER OR ALUMINUM COMPONENTS PROHIBITED WITHOUT A LICENSE.

No person shall receive, possess, or transport scrap commercial grade copper or aluminum wire, cable, transformer coils, transformer bands, power conducting components, or control system components of the type commonly found in electrical switch gear, or any combination thereof, with a total aggregate weight of 10 pounds or more. This section does not apply to a junk dealer or recycler within the meaning of California Business and Professions Code section 21601, or to a person with a current and valid business license from the County City of Fresno to operate as a junk dealer, secondhand dealer, itinerant dealer, used goods dealer, or flea market operator as set forth in Chapter 6.24 of the Fresno County Ordinance Code, or to the agents or employees of those entities. This section does not apply to any licensed general contractor, subcontractor, or business engaged in the construction, repair, or demolition of buildings, to commercial agricultural businesses, or to the agents or employees of those entities.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3603. RECEIPT, POSSESSION, AND TRANSPORTATION OF STRIPPED COMMERCIAL GRADE WIRE OR CABLE PROHIBITED WITHOUT A LICENSE.

No person shall receive, possess, or transport scrap commercial grade copper or aluminum wire or cable which has had its sheathing stripped, burned off, or otherwise removed. This section does not apply to a junk dealer or recycler within the meaning of California Business and Professions Code section 21601, or to a person with a current and valid business license from the County of Fresno to operate as a junk dealer, secondhand dealer, itinerant dealer, used goods dealer, or flea market operator as set forth in Chapter 6.24 of the Fresno County Ordinance Code, or to the agents or employees of those entities. This section does not apply to any licensed general contractor, subcontractor, or business engaged in the construction, repair, or demolition of buildings, to commercial agricultural businesses, or to the agents or employees of those entities.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3604. STRIPPING OF COMMERCIAL GRADE COPPER WIRE PROHIBITED.

No person shall strip, burn, or otherwise remove the sheathing from commercial grade copper or aluminum wire or cable. This section does not apply to a junk dealer or recycler within the meaning of California Business and Professions Code section 21601, or to a person with a current and valid business license from any county or county equivalent, related to construction, repair, demolition, junk dealing, or flea market operation, or the agents or employees of those entities. This section does not apply to any licensed general contractor, subcontractor, or business engaged in the construction, repair, or demolition of buildings, to commercial agricultural businesses, or to the agents or employees of those entities.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3605. VIOLATION AND PENALTY.

(a) A criminal citation for violation of this article may be issued as provided under Section 1-304 and Section 1-305. The City Attorney is also authorized to refer felony violations of the law to either the Fresno County District Attorney's Office or the California Department of Justice.

(b) An administrative citation for violation of this article may be issued as provided under Section 1-308.

(c) Any violation of this article is a misdemeanor, punishable by up to one year in a county jail and a fine of up to one thousand dollars ($1,000), plus an additional fine equal to the reasonable cost of repairing or replacing the pillaged property. Except as prohibited Penal Code section 654, or by other state law, each subdivision of this section is a separate and complete offense.

(d) The administrative citation penalty for each and every violation of this article shall be one thousand dollars ($1,000) per 20 feet of aluminum or copper components.

(e) Any property upon which a violation of this article is found shall be subject to immediate abatement by the city.

(f) In addition to any administrative penalty assessed for violation of this article, any person found in violation of this article will be charged abatement, actual, administrative and enforcement costs as defined in Section 1-503, calculated to recover the total costs incurred by the City in enforcing this article, pursuant to Article 5.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3606. PUBLIC NUISANCE.

A violation of this section is hereby declared to be a public nuisance.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3607. NON-EXCLUSIVE REMEDY.

This section supplements and is in addition to other regulatory codes, statutes, and ordinances heretofore or hereafter enacted by the City, state or any legal entity or agency having jurisdiction.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

SEC. 9-3608. SEVERABILITY.

If any portion of this section is held to be invalid by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this section. The Council hereby declares it would have passed each remaining portion irrespective of the fact that any one or more portions are declared invalid.
(Added Ord. 2025-010, § 1, eff. 6-5-25).

ARTICLE 37 TOBACCO RETAILER ORDINANCE

Sec. 9-3701. Title.
Sec. 9-3702. Purpose.
Sec. 9-3703. Scope.
Sec. 9-3704. Definitions.
Sec. 9-3705. Required Licensing.
Sec. 9-3706. Regulations.
Sec. 9-3707. Compliance Monitoring.
Sec. 9-3708. Administrative Violations and Penalties.
Sec. 9-3709. Appeals.
Sec. 9-3710. Youth Decoys.
Sec. 9-3711. Severability.

SEC. 9-3701. TITLE.

This Article shall be known as the "Tobacco Retailer Ordinance."
(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3702. PURPOSE.

The purpose of this Article is to promote health and safety through enforcement of Federal, State, and local laws regulating the sale and marketing of tobacco products.
(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3703. SCOPE.

This Article shall apply to all Tobacco Retailers.
(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3704. DEFINITIONS.

For purposes of this Article, the following words and phrases shall have the following meanings:

(a) "Flavored Tobacco Product" shall have the same meaning as provided in 104559.5 of the Health and Safety Code, including any amendments or successor statutes thereto.

(b) "Package" means an individual packet, box, wrapping, or container of any kind in which a tobacco product or tobacco product flavor enhancer is sold or intended to be sold at retail. Package does not include containers such as cartons, cases, or boxes within which smaller individual packets, boxes, wrappings, or containers are stored.

(c) "Sale," "Sell," or "Sells" means any transaction where, for any consideration, ownership of a tobacco product is transferred from one person to another, including but not limited to, any transfer of title or possession for consideration, exchange, or barter in any manner or by any means.

(d) "Tobacco Paraphernalia" means cigarette papers or blunt wrappers, pipes, holders of smoking materials of all types, cigarette rolling machines, and any other item designed, marketed, or used for the smoking, consumption, use, preparation, or ingestion of tobacco products.

(e) "Tobacco Product" shall have the same meaning as provided in 104559.5 of the Health and Safety Code, including any amendments or successor statutes thereto. Tobacco Product does not include a product that has been approved by the United States Food and Drug Administration for sale as a tobacco cessation product or for other therapeutic purposes where the product is marketed and sold solely for such an approved purpose.

(f) "Tobacco Product Flavor Enhancer" shall have the same meaning as provided in 104559.5 of the Health and Safety Code, including any amendments or successor statutes thereto.

(g) "Tobacco Retailer" means any person or entity that sells, distributes, offers for sale or distribution, exchanges, or offers to exchange for any form of consideration, tobacco, tobacco products, or tobacco paraphernalia without regard to the quantity sold, distributed, offered for sale or distribution, exchanged, or offered for exchange.

(h) "Tobacco Retailing" means selling, distributing, offering for sale or distribution, exchanging, or offering to exchange for any form of consideration, tobacco, tobacco products, or tobacco paraphernalia without regard to the quantity sold, distributed, offered for sale or distribution, exchanged, or offered for exchange.

(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3705. REQUIRED LICENSING.

(a) No Tobacco Retailer shall operate in the City without first obtaining all of the following:

(1) A Business License pursuant to Chapter 7, Article 10 of the Fresno Municipal Code for each fixed location.

(2) A license from the California Department of Tax and Fee Administration (CDTFA) for each fixed location.

(3) Such other permits or licenses as may be required by State or local law.

(b) All required licenses must be kept valid and current.

(c) All required licenses must be displayed in a manner visible to the public at the fixed licensed location.

(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3706. REGULATIONS.

(a) Compliance with Laws. Tobacco Retailers must remain in compliance with all local, State, and Federal laws, regulations, and orders, as well as all conditions of approval imposed on the use. This includes compliance with annual City business license fees.

(b) Signage.

(1) Tobacco Retailers shall be subject to all applicable provisions of Fresno Municipal Code Chapter 15, Article 26.

(2) Any establishment located within 500 feet of a park, school (private or public), day care, or other youth-sensitive place (e.g., boys and girls club, youth activity centers) may not advertise smoking sales (such as for tobacco, vapor, or similar projects) or related paraphernalia in a manner visible from the outside of the establishment, such as from a public thoroughfare, sidewalk, or parking lot.

(3) Every business that sells tobacco must post the required STAKE Act age-of-sale warning signs at each point of sale (including cash registers).

(4) In addition to any other State or Federal requirements, the following is required to be prominently posted in a readily visible manner on an interior wall or fixture and not on windows:

(i) "California State Law Prohibits the Sale of Tobacco Products to Persons Under 21 Years of Age."

(ii) "No Loitering is Allowed On or In Front of These Premises."

(iii) "No Smoking or Vaping is Allowed on These Premises."

(c) Prohibited Products. A Tobacco Retailer, or any agents or employees of a Tobacco Retailer, shall not sell, offer for sale, or possess with the intent to sell or offer for sale, a Flavored Tobacco Product, Tobacco Product Flavor Enhancer, or other products prohibited by law.

(1) There is a rebuttable presumption that a Tobacco Product is a Flavored Tobacco Product if a manufacturer or any of the manufacturer's agents or employees, in the course of their agency or employment, has made a statement or claim directed to consumers or to the public that the Tobacco Product has or produces a characterizing flavor, including, but not limited to, text, color, images, or all, on the product's labeling or packaging that are used to explicitly or implicitly communicate that the Tobacco Product has a characterizing flavor.

(d) Vending. No Tobacco Products or Tobacco Paraphernalia shall be sold via vending machine or automatic sales dispenser.

(e) Age Requirements.

(1) No person engaged in Tobacco Retailing shall sell or transfer a Tobacco Product or Tobacco Paraphernalia to another person who appears to be under the age of thirty

(30) years without first examining the identification of the recipient to confirm that the recipient is at least the minimum age under State law to purchase and possess the Tobacco Product or Tobacco Paraphernalia.

(2) No person under 21 years of age shall engage in Tobacco Retailing.

(f) On-Site Sales. All sales of Tobacco Products shall be conducted in person inside the licensed location. It shall be a violation of this Article for any Tobacco Retailer or any of the Tobacco Retailer's agents or employees to engage in the delivery sale of Tobacco Products or to knowingly or recklessly sell or provide Tobacco Products to any person that intends to engage in the delivery sale of the Tobacco Products in the City of Fresno.
(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3707. COMPLIANCE MONITORING.

(a) Compliance with this Article shall be monitored by Code Enforcement. In addition, any peace officer may also enforce this Article. All licensed premises must be open to inspection by Code Enforcement or the Police Department during regular business hours.

(b) Inspection and enforcement of this Article may include undercover and/or decoy operations.

(c) Code Enforcement and/or the Police Department may request and utilize assistance from other City departments or other agencies as needed for the enforcement of this Article.

(d) Should Flavored Tobacco Products, Tobacco Product Flavor Enhancers, or other products prohibited by law be found during inspection, the Police Department or Code Enforcement may seize and destroy said products.

(e) Nothing in this section shall create a right of action against the City or its agents.
(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3708. ADMINISTRATIVE VIOLATIONS AND PENALTIES.

(a) Committing, causing, permitting, aiding, abetting, or concealing a violation of any provision of this Article shall constitute a violation.

(b) A violation of this Article may result in modification or revocation of a City issued business license or other City issued permits.

(c) A violation of this Article constitutes a public nuisance and may be abated.

(d) The remedies provided by this Article are cumulative and in addition to any other remedies available at law or in equity.

(e) The City may seek recovery of its costs of enforcement and abatement pursuant to Article 5 (Cost and Penalty Recovery) of Chapter 1 (General Provisions) of this Code. Both the property owner and the Tobacco Retailer shall be liable to the City for recovery of costs as specified under Section 1-504.

(f) Violations of this Article may, in the discretion of the City Attorney, be prosecuted as infractions or misdemeanors.

(g) In any action or proceeding brought by the City to enforce this Article, the City shall be entitled to recover its attorney's fees and costs when it is the prevailing party.

(h) Whenever evidence of a violation of this Article is obtained in part through the participation of a person under the age of 18 years, such person shall not be required to appear or give testimony in any civil or administrative process brought to enforce this Article and the alleged violation shall be adjudicated based upon the sufficiency and persuasiveness of the evidence presented.

(i) All Tobacco Retailers are responsible for the actions of their employees relating to the Sale, offer to Sell, and furnishing of Tobacco Products at the retail location. The Sale of any Tobacco Product by an employee shall be considered an act of the Tobacco Retailer.

(j) A violation of this Article may result in the imposition of fines upon the person, entity, business owner, Tobacco Retailer, and/or property owner pertaining to the location of the violation.

(1) Fines may be imposed in accordance with Sections 1-305 and 1-308 of the Fresno Municipal Code and State law.

(2) Fines pursuant to Section 1-308 shall be imposed in accordance with the Master Fee Schedule.

(3) For a violation of Section 9-3706(c) Prohibited Products, a fine may be imposed per Package as set forth in the Master Fee Schedule.

(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3709. APPEALS.

Administrative fines may be appealed pursuant to Chapter 1, Article 4, of the Fresno Municipal Code.

(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3710. YOUTH DECOYS.

The City shall not enforce any law establishing a minimum age for tobacco purchases or possession against a person who otherwise might be in violation of such law because of the person's age (hereinafter "Youth Decoy") if the potential violation occurs when:

(a) The Youth Decoy is participating in a compliance check supervised by a peace officer or a code enforcement officer of the City; or

(b) The Youth Decoy is participating in a compliance check funded in part, either directly or indirectly, through subcontracting by the Fresno County Department of Public Health or California Department of Health Services.

(Added Ord. 2025-048, § 1, eff. 12-18-25)

SEC. 9-3711. SEVERABILITY.

If any provision, clause, sentence or paragraph of this Article is for any reason held to be invalid or unenforceable, such invalidity or unenforceability shall not affect other provisions of this Article which can be given effect without the invalid provisions or application, and to this end the provisions of this Article are declared to be severable.
(Added Ord. 2025-048, § 1, eff. 12-18-25)

ARTICLE 38 UNAUTHORIZED POSSESSION AND USE OF A CITY CART, AN AUTHORIZED CART/BIN COLLECTION AGENT, OR AUTHORIZED ROLL-OFF COLLECTOR OWNED TRASH CONTAINERS*

Sec. 9-3801. Purpose and Findings.
Sec. 9-3802. Definitions.
Sec. 9-3803. Unlawful Possession.
Sec. 9-3804. Public Nuisance.
Sec. 9-3805. Penalties.

SEC. 9-3801. PURPOSE AND FINDINGS.

The purpose of this article is to protect public health, safety and welfare by regulating the unauthorized removal, theft, or possession of a City cart, an authorized cart/bin collection agent, or authorized roll-off collector owned trash bin.
(Added Ord. 2025-059, § 1, eff. 1-30-26)

SEC. 9-3802. DEFINITIONS.

(a) "Owner" means the City of Fresno, an authorized cart/bin collection agent or authorized roll-off collector whose name, logo or identification is permanently affixed to the trash bin.

(b) "Trash Bin" means any refuse, recycling or organic waste container, cart, bin or receptacle issued by the City or its authorized waste collection contractor to collect, store and transport solid waste, recycling or organics from a residential or commercial property.
(Added Ord. 2025-059, § 1, eff. 1-30-26)

SEC. 9-3803. UNLAWFUL POSSESSION.

It shall be unlawful for any person to:

(a) Remove any Trash Bin from commercial property, residential property or curbside, without the consent of the property resident or Owner.

(b) To be in possession of any Trash Bin that has been removed from a commercial property, residential property or curbside, without the consent of the property resident or Owner.

(c) Deface, destroy or otherwise tamper with any Trash Bin issued for public or residential waste collection.
(Added Ord. 2025-059, § 1, eff. 1-30-26)

***Editor's note—**Ord. 2025-059, § 1, effective January 30, 2026, set out provisions intended for use as Art. 37, §§ 9-3701—9-3705. Inasmuch as there were already provisions so designated, said sections have been codified herein as Art. 38, §§ 9-3801—9-3805 at the discretion of the editor.

SEC. 9-3804. PUBLIC NUISANCE.

Any violation of this article constitutes a public nuisance, subject to abatement by the City in accordance with Chapter 10, Article 6.
(Added Ord. 2025-059, § 1, eff. 1-30-26)

SEC. 9-3805. PENALTIES.

(a) A violation of this Section is a misdemeanor, and upon conviction punishable by a fine not exceeding one thousand dollars ($1,000.00) or by imprisonment in the Fresno County Jail for a period of not more than six months or by both such fine and imprisonment, unless at the discretion of the City Attorney, the violation is reduced to an infraction.

(b) Each Trash bin unlawfully possessed or abandoned shall constitute a separate violation.
(Added Ord. 2025-059, § 1, eff. 1-30-26)

ARTICLE 39 CRIMINAL PROSECUTION OF WAGE THEFT*

Sec. 9-3901. Criminal Prosecution of Wage Theft.

SEC. 9-3901. CRIMINAL PROSECUTION OF WAGE THEFT.

(a) Purpose. This article is adopted for the purpose protecting workers against wage theft and misclassification by enhancing the enforcement available to the City for violations of the California Labor Code relating to wage and hour laws and employee classification.

(b) Definitions.

(1) "Employee" means any person in the service of an "Employer" under any appointment or contract of hire or apprenticeship, express or implied, oral or written, whether lawfully or unlawfully employed.

(2) "Employer" means any person or persons, as defined in California Labor Code Section 18, who exercises control over the wages, hours, or working conditions of any Employee, or suffers or permits the Employee to work.

(3) "Independent Contractor" shall be defined in accordance with the definition provided in California Labor Code 2750.3.

(4) "Labor" shall be defined as any labor, work, or service whether rendered or performed under contract, subcontract, partnership, station plan, or other agreement if the labor to be paid for is performed personally by the person demanding payment.

(5) "Theft of Wages" means the intentional deprivation of compensation by an employer owed to an employee under the law. Such deprivation may include:

(i) Wages, as defined in Section 200 of the California Labor Code;

(ii) Gratuities, as defined in Section 350 of the California Labor Code; or

(iii) Benefits owed under the law or contractual agreements, including the right not to be misclassified as an independent contractor.

(c) Regulations. It is unlawful for any employer to engage in any of the following activities:

(1) The theft of wages lawfully owed to an employee or independent contractor for their labor.

(2) Willful misclassification of an individual as an independent contractor.

(3) Charging an individual who has been willfully misclassified as an independent contractor a fee, or making any deductions from compensation, for any purpose, including for goods, materials, space rental, services, government licenses, repairs,

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***Editor's note—**Ord. 2025-060, § 1, effective January 30, 2026, set out provisions intended for use as Art. 38, § 9-3801. Inasmuch as there were already provisions so designated, said section has been codified herein as Art. 38, § 9-3901 at the discretion of the editor.

equipment maintenance, or fines arising from the individual's employment where any of the acts described in this paragraph would have violated the law if the individual had not been misclassified.

(d) Enforcement Authority. The City Attorney is authorized to commence and prosecute, independently, a civil or criminal action for violations of the California Labor Code concerning wage and hour laws or employee classification provisions that occur within the jurisdiction of the City.

(e) Allocation of Recovered Funds.

(1) Any moneys recovered by the City Attorney under this article shall first be used to pay wages, damages, penalties, or other amounts found due to affected employees.

(2) All civil penalties recovered, to the extent not allocated to the workers shall be paid to the General Fund of the State, unless otherwise specified by the Labor Code or by judicial order.

(f) Violations. A violation of this article is a misdemeanor and is punishable by a fine not exceeding one thousand dollars ($1,000), or by imprisonment in the Fresno County jail for a period of not more than one year, or by both such fine and imprisonment. In addition to the penalties set forth in this subsection, a court shall order restitution in accordance with the California Penal Code Section 1202.4(f).

(g) Civil Penalties and Remedies.

(1) Employers found in violation of this article shall be subject to a civil proceeding for wage theft (including unpaid wages, overtime violations, illegal deductions, or misclassification as independent contractors) are required to pay all wages unlawfully withheld plus interest at the statutory interest rate.

(2) Employers found in violation of subsection (c)(2) or (c)(3) will be liable for payment of statutory penalties and liquated damages, including not less than $5,000 and not more than $15,000 per misclassification violation, in addition to any other penalties or fines permitted by law.

(3) Employers found to have engaged in or is engaging in a pattern or practice of violating subsection (c)(2) or (c)(3), shall be subject to a civil penalty of not less than $10,000 and not more than $25,000 for each violation, in addition to any other penalties or fines permitted by law.

(4) In any action or proceeding brought by the City to enforce this article, the City shall be entitled to recover its attorney's fees and costs when it is the prevailing party.

(5) In addition, the City Attorney shall also have the power to seek injunctive relief for any violation of this Article.

(6) The City may also impose administrative penalties pursuant to Section 1-308 of this Code for violations of this chapter.

(h) Severability. If any section, subsection, clause or phrase of this article or the application thereof is for any reason held invalid, the validity of the remainder of the article shall not be affected.
(Added Ord. 2025-060, § 1, eff. 1-30-26)

CHAPTER 10

REGULATIONS REGARDING PUBLIC NUISANCES AND REAL PROPERTY CONDUCT AND USE

Art. 1. Noise Regulations.
Art. 2. Animals.
Art. 3. Animal Shelter.
Art. 4. Solid Waste and Recycling Facilities Ordinance.
Art. 5. Fire Prevention.
Art. 6. Public Nuisance Abatement.
Art. 7. Management of Real Property Ordinance.
Art. 8. Public Safety Alarm Systems.
Art. 9. Canals and Ponding Basins.
Art. 10. Public Swimming Pools.
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Art. 14. Hazardous Spills Expense Recovery.
Art. 15. San Joaquin River and Bluff Protection Initiative.
Art. 16. Rental Housing Improvement Act.
Art. 17. Unlawful Camping.
Art. 18. Non-Transient Motel Inspection Program.
Art. 19. Mobilehome Parks Act.
Art. 20. Prohibition on Smoking in and Around Multiunit Rental Properties.
Art. 21. Public Welfare.
Art. 22. Public Hazards.
Art. 23. Graffiti.
Art. 24. Removing Squatters from Short-Term Rentals and Hotels.
Art. 25. Trespassing on Business Property.
Art. 26. Sidewalk Vending.
Art. 27. Prohibition of Government-Sponsored Transport of Homeless Persons.
Art. 28. Manufacturing, Sale, Distribution, and Possession of Federal Schedule I Drugs, Novel Synthetic Drugs, and Novel Psychoactive Drugs.

ARTICLE 1 NOISE REGULATIONS

Sec. 10-101. Title.
Sec. 10-102. Definitions.
Sec. 10-103. Decibel Measurement Criteria.
Sec. 10-104. Monitoring Procedures.
Sec. 10-105. Excessive Noise Prohibited.
Sec. 10-106. Prima Facie Violation.
Sec. 10-107. Schools, Hospitals, and Churches.
Sec. 10-108. Public Address Systems.
Sec. 10-109. Exceptions.
Sec. 10-110. Permits.
Sec. 10-111. Injunction.

SEC. 10-101. TITLE.

This article shall be known as the "Noise Ordinance of the City of Fresno." (Orig. Ord. 1076; Rep. and Added Ord. 72-163, 1972).

SEC. 10-102. DEFINITIONS.

(a) Unless the particular provision or the context requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) **Ambient Noise.** "Ambient noise" is the all-encompassing noise associated with a given environment, being usually a composite of sounds from many sources near and far. For the purpose of this ordinance, ambient noise level is the level obtained when the noise level is averaged over a period of fifteen minutes, without inclusion of the offending noise, at the location and time of day at which a comparison with the offending noise is to be made. Where the ambient noise level is less than that designated in this section, however, the noise level specified herein shall be deemed to be the ambient noise level for that location.

DISTRICT	*TIME*	*SOUND LEVEL DECIBELS*
Residential	10 pm to 7 am	50
Residential	7 pm to 10 pm	55
Residential	7 am to 7 pm	60
Commercial	10 pm to 7 am	60
Commercial	7 am to 10 pm	65
Industrial	anytime	70

(c) **Decibel.** "Decibel" means a unit of sound level when the base of the logarithm is the tenth root of ten and the quantities concerned are proportional to power.

(d) **Emergency Work.** "Emergency work" means work necessary to restore property to a safe condition following a public calamity, work required to repair structures or otherwise protect persons or property from an imminent exposure to danger or damage, or work by private or public utilities when restoring or repairing utility service.

(e) **Frequency.** "Frequency" of a function periodic in time means the reciprocal of the primitive period. The unit is the hertz and shall be specified.

(f) **Hertz.** "Hertz" shall mean the complete sequence of values of a periodic quantity which occurs during a period.

(g) **Microbar.** "Microbar" means a unit of pressure commonly used in acoustics and is equal to one dyne per square centimeter.

(h) **Period.** "Period" of a periodic quantity means the smallest increment of time for which the function repeats itself.

(i) **Periodic Quantity.** "Periodic quantity" means oscillating quantity, the values of which recur for equal increments of time.

(j) **Sound Level.** "Sound level" (noise level), in decibels (dB) is the sound pressure level as measured with the "A" weighting and slow response by a sound level meter.

(k) **Sound Level Meter.** "Sound level meter" means an instrument including a microphone, an amplifier, an output meter, and frequency weighting networks for the measurement of sound levels which satisfies the pertinent specifications published by the American National Standards Institute, New York, New York, in "American Standard Sound Level Meters for Measurement of Noise and Other Sounds," S1.4-1971, or the most recent revision thereof.

(l) **Motor Vehicles.** "Motor vehicles" includes, but is not limited to, minibikes and go-carts.

(m) **Sound Amplifying Equipment.** "Sound amplifying equipment" means any machine or device for the amplification of the human voice, music, or any other sound. "Sound amplifying equipment" shall not include standard automobile radios or tape players when used and heard only by the occupants of the vehicle in which the automobile radio is installed. "Sound amplifying equipment," as used in this article, shall not include warning devices on authorized emergency vehicles, or horns or other warning devices on any vehicle, which are used only for traffic safety purposes.

(n) **Sound Truck.** "Sound Truck" means any motor vehicle, or any other vehicle regardless of motive power, whether in motion or stationary, having mounted thereon, or attached thereto, any sound amplifying equipment. (Orig. Ord. 1076; Rep. and Added Ord. 72-163, 1973).

SEC. 10-103. DECIBEL MEASUREMENT CRITERIA.

Decibel measurement made pursuant to the provisions of this article shall be based on a reference sound pressure of 0.0002 microbars as measured with a sound level meter using the "A" weighted network.
(Orig. Ord. 1076; Rep. and Added Ord. 72-163, 1972).

SEC. 10-104. MONITORING PROCEDURES.

The following procedures shall be employed for monitoring and evaluating noise in the community unless otherwise specified in this Article:

(a) The evaluation shall be conducted any time of the day or night when the offending noise source is being operated.

(b) For outside measurements, the location selected for monitoring shall be at a point at least ten feet from any building, wall, or obstruction (trees, bushes, etc.) whenever possible. In cases where no point on the property line satisfies this criteria, readings will be taken as far as possible from the nearest obstruction and such distance will be noted. For inside measurements, the monitoring location shall be at least three feet from any wall.

(c) The sound level meter shall be equipped with an omnidirectional microphone.

(d) No individual other than the operator shall be within ten feet of the sound level meter during the sample period.

(e) The ambient noise level shall be determined with the offending noise source not in operation, in the following manner:

(1) Calibrate the sound level meter in accordance with the manufacturer's instructions.

(2) Set the sound level meter on the "A" weighted network at slow response.

(3) Without the offending noise source in operation, set the microphone in a vertical position on the complaining party's property with the microphone head approximately four feet above the ground or floor. The operator shall face the noise source and record the meter's instantaneous response (reading) observed at fifteen second intervals for a period of fifteen minutes. The arithmetical average (mean) reading is interpreted as the ambient noise level of that sampling point.

(f) With the offending noise source in operation, the operator shall again record the instantaneous response at the same location at fifteen second intervals for a fifteen minute period, or, for a noise source of less than fifteen minutes, the operator shall record the instantaneous response at fifteen second intervals for the time the offending noise source is in operation. The arithmetical average (mean) response level recorded while the offending noise source is in operation is interpreted as the offending noise level.

(Orig. Ord. 1076; Am. Ord. 5331, 1958; Rep. Ord. 5376, 1958; Added Ord. 72-163, 1972).

SEC. 10-105. EXCESSIVE NOISE PROHIBITED.

No person shall make, cause, or suffer or permit to be made or caused upon any premises or upon any public street, alley, or place within the city, any sound or noise which causes discomfort or annoyance to any reasonable person of normal sensitiveness residing or working in the area, unless such noise or sound is specifically authorized by or in accordance with this article. The provisions of this section shall apply to, but shall not be limited to, the control, use, and operation of the following noise sources:

(a) Radios, musical instruments, phonographs, television sets, or other machines or devices used for the amplification, production, or reproduction of sound or the human voice.

(b) Animals or fowl creating, generating, or emitting any cry or behavioral sound.

(c) Machinery or equipment, such as fans, pumps, air conditioning units, engines, turbines, compressors, generators, motors or similar devices, equipment, or apparatus.

(d) Construction equipment or work, including the operation, use or employment of pile drivers, hammers, saws, drills, derricks, hoists, or similar construction equipment or tools.

(Orig. Ord. 1076; Rep. and Added Ord. 72-163, 1972; Am. Ord. 2001-41, § 1, 5-20-01; Am. Ord. 2014-16, § 2, eff. 4-18-14).

SEC. 10-106. PRIMA FACIE VIOLATION.

Any noise or sound exceeding the ambient noise level at the property line of any person offended thereby, or, if a condominium or apartment house, within any adjoining living unit, by more than five decibels shall be deemed to be prima facie evidence of a violation of Section 8-305.

(Orig. Ord. 1678; Rep. and Added Ord. 72-163, 1972).

SEC. 10-107. SCHOOLS, HOSPITALS, AND CHURCHES.

No person shall create any noise on any street, sidewalk, or public place adjacent to any school, institution of learning, or church while the same is in use, or adjacent to any hospital, which noise unreasonably interferes with the workings of such institution or which disturbs or unduly annoys patients in the hospital, provided conspicuous signs are displayed in such street, sidewalk, or public place indicating the presence of a school, church, or hospital.

(Orig. Ord. 3667; Rep. and Added Ord. 72-163, 1972).

SEC. 10-108. PUBLIC ADDRESS SYSTEMS.

No person, other than personnel of law enforcement or governmental agencies, shall install, use or operate within the city a loudspeaker or sound amplifying equipment in a fixed or movable position or mounted upon any sound truck for the purposes of giving instructions,

directions, talks, addresses, lectures or transmitting music to any person or assemblages of persons in or upon any street, alley, sidewalk, park or other public property without first filing a registration statement and obtaining approval thereof as set forth in this section.

(a) **Registration Statements: Filing.** Every user of such sound amplifying equipment shall file a registration statement with the Controller five days prior to the date on which the sound amplifying equipment is intended to be used, which statement shall contain the following information:

(1) The name, address, and telephone number of both the owner and user of the sound amplifying equipment;

(2) The maximum sound producing power of the sound amplifying equipment which shall include the wattage to be used, the volume in decibels of sound which will be produced, and the approximate distance for which sound will be audible from the sound amplifying equipment;

(3) The license and motor number if a sound truck is to be used;

(4) A general description of the sound amplifying equipment which is to be used; and

(5) The dates and times such equipment is intended to be used.

(b) **Registration Statements: Approval.** The Controller shall return to the applicant within five working days an approved copy of the registration statement unless he finds that:

(1) Use of the equipment would constitute a detriment to traffic or pedestrian safety; or

(2) The registration statement required reveals that the applicant would violate any provisions of this Code.

(c) **Disapproval.** In the event the registration statement is disapproved, the Controller shall endorse upon the statement his reasons for disapproval and return it forthwith to applicant.

(d) **Revocation of Suspension.** Any registration statement approved hereunder shall be revocable and may be revoked by the Controller when a fact is found to exist which would have been a ground for refusal to approve same or when there has been a violation of any of the terms of this article. Said statement may be reinstated by the Controller upon terms or conditions reasonably calculated to alleviate the dereliction.

(e) **Appeal.** Any person aggrieved by any action of the Controller regarding a registration statement may appeal such decision under the procedures in Chapter 1, Article 4. If no appeal is filed within the time prescribed, the action of the Controller shall be final.

(f) **Regulations.** The commercial and noncommercial use of such sound amplifying equipment shall be subject to the following regulations:

(1) The only sound permitted shall be either music or human speech, or both.

(2) The operation of such sound amplifying equipment shall only occur between the hours of 7:00 a.m. and 10:00 p.m. each day.

(3) No sound emanating from such sound amplifying equipment shall exceed fifteen decibels above the ambient noise as measured at any property line.

(4) Notwithstanding the provisions of subdivision (3) of this subsection, such sound amplifying equipment shall not be operated within two hundred feet of churches, schools or hospitals.

(5) In any event, the volume of sound shall be so controlled that it will not be unreasonably loud, raucous, jarring, disturbing, or cause annoyance or discomfort to reasonable persons of normal sensitiveness within the area of audibility.

(g) **Duration of Registration Statement.** Registration statements approved pursuant to this section shall be valid for the period specified thereon by the Controller, which period shall not exceed one year. Statements approved hereunder for a full year shall be automatically renewed from year to year without further application or filing, provided that the Controller may fix an earlier termination date for any such statement at any time following the initial renewal thereof, whenever he deems it in the public interest to do so, by mailing, at least five days prior to the date so fixed, a written notice of such fact to the applicant at the address shown in his application.

(h) Any registration statement requesting approval for the use of a loudspeaker or sound amplifying equipment on any mall street, as defined in Section 14-1801 of this Code, shall be filed with and approved by the Director of Parks and Recreation, rather than the Controller. In all other respects, the procedure set forth in this section shall be followed. The Director of Parks and Recreation shall notify the Controller of each such registration statement he approves. (Orig. Ord. 3667; Rep. and Added Ord. 72-163, 1972; Am. Ord. 75-136, § 2, eff. 1-30-76; Am. Ord. 80-109, § 1, eff. 8-8-80; Am. Ord. 80-171, § 73, eff. 12-26-80; Am. Ord. 98-65, § 19, eff. 10-1-98; Am. Ord. 2005-14, § 37, eff. 4-9-05).

SEC. 10-109. EXCEPTIONS.

The provisions of this article shall not apply to:

(a) Construction, repair or remodeling work accomplished pursuant to a building, electrical, plumbing, mechanical, or other construction permit issued by the city or other governmental agency, or to site preparation and grading, provided such work takes place between the hours of 7:00 a.m. and 10:00 p.m. on any day except Sunday.

(b) Emergency work.

(c) Any act or acts which are prohibited by any law of the State of California or the United States. (Added Ord. 72-163, 1972; Am. Ord. 80-171, § 74, eff. 12-26-80).

SEC. 10-110. PERMITS.

A permit may be issued authorizing noises prohibited by this article whenever it is found that the public interest will be served thereby or that extreme hardship will result from the strict enforcement hereof, as follows:

(a) **Application for permit.** Application for permits shall be in writing and shall contain the following information:

(1) The name, address, and telephone number of the applicant.

(2) A general description of the equipment, apparatus, or other sound source to be utilized, and the area in which it will be utilized.

(3) An estimate of the maximum sound level which will be generated by the equipment, apparatus, or sound source to be utilized and the basis for such estimate.

(4) The inclusive dates between which the sound will be generated.

(5) Facts showing that the public interest will be served by the issuance of such permit or that extreme hardship will accrue to the applicant if such permit does not issue.

(b) **Criteria.** Applications shall be filed with the Chief Administrative Officer of the City, who shall approve or disapprove same within five working days. The criteria which shall be considered by the Chief Administrative Officer in determining whether the requested permit shall issue will include, but not be limited to, the following:

(1) The level of the noise for which a permit is sought.

(2) The ambient noise level in the vicinity where the sound source will be utilized.

(3) The proximity of the noise to residential sleeping facilities.

(4) The nature and zoning of the area within which the noise will emanate.

(5) The density of the inhabitation of the area within which the noise will emanate.

(6) The time of the day or night the noise will occur.

(7) The duration of the noise.

(8) Whether the noise will be recurrent, intermittent, or constant.

(c) **Issuance of Permit.** The Chief Administrative Officer shall issue the requested permit unless he finds, considering the aforementioned criteria, that the public interest will suffer thereby and that such public detriment exceeds the hardship to be suffered by the applicant if the permit is not issued. In the event the Chief Administrative Officer disapproves the application, he shall return same to the applicant with a statement of the reasons for such action. In approving a permit hereunder, the Chief Administrative Officer may impose such conditions as he deems necessary to protect the public interest.

(d) **Revocation or Suspension.** Any permit issued hereunder shall be revocable and may be revoked by the Chief Administrative Officer when a fact is found to exist which would have been a ground for refusal to approve same or when there has been a violation of any of the terms or conditions thereof.

(e) **Repealed.**

(f) **Repealed.** (Added Ord. 72-163, 1972; Am. Ord. 80-171, §§ 75, 76, eff. 12-26-80; Am. Ord. 81-157, § 28, eff. 12-11-81).

SEC. 10-111. INJUNCTION.

In addition to other remedies provided by law, the operation or maintenance of any device, instrument, vehicle or machinery in violation of any provision of this article, which operation or maintenance causes discomfort or annoyance to reasonable persons or normal sensitiveness or which endangers the comfort, repose, health or peace of residents in the area, shall be deemed, and is declared to be, a public nuisance and may be subject to abatement summarily by a restraining order or injunction issued by a court of competent jurisdiction. (Added Ord. 72-163, 1972).

ARTICLE 2 ANIMALS

Sec. 10-201. Definitions.
Sec. 10-202. Reserved.
Sec. 10-203. Animal Enclosures.
Sec. 10-204. Inspections; Health Officer.
Sec. 10-205. Feeding and Enclosures; Requirements.
Sec. 10-206. Sale of Slaughtered Poultry or Rabbits.

SEC. 10-201. DEFINITIONS.

The following terms as used in this article shall have the meaning ascribed to them in this section as follows:

(1) The term "rabbit" shall include hares and the unprocessed meat of all such animals.

(2) The term "poultry" shall include chickens, turkeys, geese, ducks, pigeons, squabs, guineas, peafowls and game birds of every kind whether wild or domesticated and the unprocessed meat thereof.

(3) The word "sell" shall include display for sale, keep for sale, offer for sale, or transport for the purposes of sale, to the general public or to any wholesaler or retailer.

(4) The term "health officer" shall mean the Health Officer of the City of Fresno and his authorized assistants.

(5) The term "certificate of sanitation" shall mean such certificate as may be prepared by the health officer in the form prescribed by him certifying to the sanitation and suitability of any premises or facilities used for the slaughter, storage and transportation of rabbits or poultry.

(6) The word "permit" shall mean a permit issued by the health officer authorizing the bringing into the City of Fresno slaughtered rabbits or poultry for purposes of sale within the city.

(Orig. Ord. 3602).

SEC. 10-202. RESERVED.

Editor's note—Ord. 2015-39, § 9, effective January 9, 2016, amended the Code by repealing former § 10-202 in its entirety. Former § 10-202 pertained to keeping wild animals and bees, and derived from Ord. 3755; Ord. 5005 of 1957; Ord. 5780 of 1960; and Ord. 6769 of 1966.

SEC. 10-203. ANIMAL ENCLOSURES.

All enclosures or premises wherein any animals or fowl are kept shall be maintained in a clean and sanitary condition, free from obnoxious smells and substances. No person shall maintain any enclosure or other place for the housing or keeping of fowl or animals (except dogs) within thirty-five feet of any building used for human habitation, unless such building is occupied by the owner or keeper of the fowl or animals.

(Orig. Ord. 2898; Am. Ord. 6769, 1966).

SEC. 10-204. INSPECTIONS; HEALTH OFFICER.

All places and premises upon which any animals or fowl are kept or maintained shall be open at all times for inspection by the Health Officer of the city or his deputy. If upon such inspection any person is found to be violating any of the provisions of this article, he shall be given a written notice of such violation or violations, said notice to specify the particular violations charged and require such person to remedy such conditions within ten days from receipt of such notice. No person receiving such a notice shall fail to comply with its requirements.
(Orig. Ord. 2898; Am. Ord. 6769, 1966).

SEC. 10-205. FEEDING AND ENCLOSURES; REQUIREMENTS.

All animals and fowl described in Section 10-201 of this article shall be kept and fed in enclosures complying with the following requirements:

(1) The said enclosure shall be entirely surrounded by a fence or wall sufficient to confine such animals or fowl within such enclosure.

(2) The said fowl and animals shall be confined to said enclosures at all times, excepting that homing pigeons banded by the American Racing Pigeon Union official band may be liberated for exercise and official races sanctioned by the American Racing Pigeon Union.

(Orig. Ord. 2898; Am. Ord. 5426, 1958; Am. Ord. 6769, 1966).

SEC. 10-206. SALE OF SLAUGHTERED POULTRY OR RABBITS.

(a) No person shall sell within the City of Fresno any slaughtered rabbit or poultry of any kind which has been slaughtered, stored or transported within the City of Fresno other than upon premises and by facilities for which there existed at the time of such slaughter, storage and transportation a valid, unrevoked certificate of sanitation issued by said Health Officer.

(b) The Health Officer shall issue without charge and upon the application of any person therefor, a certificate of sanitation for any premises and facilities for the slaughter, storage and transportation of rabbits or poultry within the City of Fresno upon the showing by applicant that said premises and facilities are such and that sanitary practices, as required by the Health Officer are such as in the opinion of the Health Officer will insure such rabbits and poultry reaching the market in a clean, sanitary and undeteriorated condition.

(c) Every person who brings slaughtered rabbits or poultry of any kind into the City of Fresno for the purposes of sale within said city shall have first acquired from the health officer a permit to do so, which permit shall be issued by the said health officer upon a showing that said person is equipped to properly kill, store and transport such rabbits or poultry and that such sanitary practices are being observed as in the opinion of the health officer will insure such products reaching the market in a clean, sanitary and undeteriorated condition.

(d) The health officer may summarily revoke any certificate of sanitation or permit where he finds that the condition under which it was originally issued no longer exists or that such sanitary practices as he prescribes are not being observed.

(e) Every person selling slaughtered rabbits or poultry to the general public within the City of Fresno shall at all times have in his possession and display the same to the Health Officer upon demand a true copy of the certificate of sanitation or permit as the case may be which may have been issued by the Health Officer for the slaughter or transportation of such rabbits or poultry which such person then has on hand.

(f) No person shall sell any slaughtered rabbits or poultry of any kind within the City of Fresno, the carcass or meat of which has been immersed in water other than for a period of not to exceed one-half hour immediately after slaughter.
(Orig. Ord. 3602).

ARTICLE 3 ANIMAL SHELTER

Sec. 10-301. Definitions.
Sec. 10-302. Duties of Poundmaster.
Sec. 10-303. Licensing of Dogs.
Sec. 10-304. Infraction.
Sec. 10-305. Vaccination Required.
Sec. 10-306. Licensing of Dog Kennels.
Sec. 10-307. Lost or Stolen Dog License Tags.
Sec. 10-308. Animals at Large.
Sec. 10-309. Infraction.
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SEC. 10-301. DEFINITIONS.

The following terms as used in this article shall have the meaning ascribed to them in this section as follows:

(a) The term "owner" when referring to an animal shall mean the owner or custodian of any animal of either sex or of any age.

(b) The term "at large" shall mean an animal in or upon any public street, public alley or other public place or in or upon an unenclosed lot or premises, unless the animal is securely confined to the lot or premises by a suitably strong leash or is securely and continuously held by the owner or custodian of such animal by a strong leash suitable for maintaining control of the animal, or the animal is confined within an automobile.

(c) The term "habitually at large" shall mean an animal, other than a cat, that the Hearing Officer, after an administrative hearing is held pursuant to Section 1-401 et seq., finds has been at large three times or more during any twelve month period.

(d) The term "dangerous animal" shall mean any animal that has bitten, injured or aggressively pursued any human being or other animal who the Poundmaster, after

conducting an investigation pursuant to subsection 10-327(a), or Hearing Officer, after an appeal hearing is held pursuant to Section 10-327(f) and Chapter 1, Article 4, finds that because of its behavior, temperament and physical characteristics combined with the manner in which it is maintained will probably cause great bodily harm to a human being or other animal in the future. No animal shall be found to be a dangerous animal if any of the circumstances set forth in subsection 10-327(h) apply.

(e) The term "potentially dangerous animal" shall mean any animal that has bitten, injured or aggressively pursued any human being or other animal who the Poundmaster, after conducting an investigation pursuant to subsection 10-327(a), or Hearing Officer, after an appeal hearing is held pursuant to Section 10-327(f) and Chapter 1, Article 4, finds that because of its behavior, temperament and physical characteristics combined with the manner in which it is maintained there is a substantial possibility that it will cause injury or great bodily harm to a human being or other animal in the future. No animal shall be found to be a potentially dangerous animal if any of the circumstances set forth in subsection 10-327(h) apply.

(f) The term "kennel" shall mean any lot, building, structure, enclosure, or premises where any animal is boarded, trained, or kept for the purpose of sale or breeding whether in special buildings or runways or not.

(g) The term "unlicensed dog" shall mean any dog for which the license for the current year has not been paid.

(h) The term "vaccination" or "vaccination against rabies" shall mean the inoculation of a dog with a rabies vaccine approved by the health officer of the city or the United States Public Health Service for use in the prevention of rabies in dogs.

(i) The term "poundmaster" shall mean the employee of the city responsible for the performance of pound services. When the city has contracted for the performance of such services, "poundmaster" shall mean the party with whom the city has so contracted. The poundmaster shall have the authority to delegate any of its responsibilities set forth in Chapter 10, Article 3 to persons the poundmaster has determined are qualified to perform said responsibilities.

(k) The term "animal shelter" shall mean the animal shelter operated by the poundmaster.

(l) The term "guide" dog shall mean any dog trained to lead a blind person.

(m) The term "signal" dog shall mean any dog trained to lead or assist a deaf person. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 6341, 1963; Am. Ord. 6345, 1963; Am. Ord. 69-68, 1969; Am. Ord. 71-97, 1971; Am. Ord. 74-9, § 2, eff. 2-17-74; Am. Ord. 88-41, § 1, eff. 4-8-88; Am. Ord. 88-61, §§ 1, 2, eff. 5-27-88; Am. Ord. 91-35, § 1, eff. 5-24-91; Am. Ord. 99-40, § 1, eff. 7-30-99; Am. Ord. 2001-39, § 1, eff. 5-28-01; Am. Ord. 2006-33, § 1, eff. 5-18-06; Am. Ord. 2006-34, § 1, eff. 5-18-06).

SEC. 10-302. DUTIES OF POUNDMASTER.

The poundmaster shall operate the city animal shelter and shall pick up and impound animals as provided in this article. The poundmaster shall also enforce the dog licensing provisions of this article and other sections of this Code relating to animals. The poundmaster shall designate one or more employees of the poundmaster to be charged with the duties of enforcement provided in this section, and such employee or employees, when approved in writing by the Controller, shall be deemed officers of the City for the purpose of enforcing the provisions of this article and any other section of this Code relating to animals. Such approval by the Controller may be revoked at any time by written notice to the poundmaster. (Orig. Ord. 4789; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 6341, 1963; Am. Ord. 6447, 1964).

SEC. 10-303. LICENSING OF DOGS.

(a) The owner or custodian of any dog over the age of four months shall procure a city dog license and pay therefor the license fee designated in the Master Fee Resolution. The license fee shall be due and payable on or before the expiration of the vaccination against rabies. Any person failing to procure and pay for such license prior to the expiration of the vaccination shall pay the penalty for such delinquency as designated in the Master Fee Resolution. With respect to dogs first brought into the city, no penalty shall be payable if the owner or custodian procures a license within thirty days after the dog is brought into the city, or within thirty days after the dog reaches the age of four months, as the case may be.

(1) Every person owning a guide, signal or service dog shall be exempt from the license fee payment requirement of this section. Upon application to the Controller and presentation of a vaccination certificate as prescribed by the provisions of subsection (c) of this section, every owner of a guide dog shall receive, at no charge, a dog license.

(2) Before a city dog license may be issued for the lower license fee for a dog which has been spayed or neutered, the owner or custodian of such dog shall provide evidence that the dog has been spayed or neutered. Such evidence shall be a certificate signed by a doctor of veterinary medicine, on his or her letterhead stationery or on a form provided by the city for such purpose, or by the sworn statement of the owner or custodian on a form provided by the city. Any such form or certificate shall state the name of the doctor of veterinary medicine who performed the operation or the name of the clinic where such operation was performed, the street address of such doctor of veterinary medicine or clinic, the telephone number thereof if available, the precise or approximate date when the operation was performed, and a sufficient description of the dog.

(3) The Council finds that persons over age 62 have special needs for dogs to provide warning of or protection from forcible or surreptitious entry into their homes; and that it is therefore in the public interest to encourage dog ownership for warning and protection purposes among this class of city residents by reduced dog license rates. To qualify for the

reduced rates authorized by this subsection the owner or custodian over age 62 of any dog shall execute, prior to issuance of a dog license at such reduced rate, a declaration under penalty of perjury on a form provided by the Controller, containing the following:

(i) The name, place of residence, and age of the applicant;

(ii) A statement that the dog for which reduced-rate licensing is sought is permanently housed at applicant's place of residence, and that the applicant is the owner or permanent custodian of the dog (if custodian only, the name of the owner shall be given);

(iii) A statement that the applicant or the applicant's spouse owns, rents, or otherwise has the exclusive right to possession of such premises or such place of residence; and

(iv) A statement that no adult person under age 62, other than the applicant's spouse, housekeeper, or nurse, who may be under age 62, regularly resides with the applicant at such place of residence.

(b) All dog licenses shall be issued for a period terminating on or before the expiration of the rabies vaccination. The Controller, in order to ensure payment or facilitate collection of dog license fees, may require the renewal of a license for other than the time periods specified herein.

(c) The amount of such license fee shall be paid to the Controller, and upon the payment thereof, there shall be issued to the person making such payment a dog tag in a form as prescribed by the Controller; provided that the owner or custodian of the dog shall have the dog vaccinated and shall present, and the Controller shall issue a dog license only after presentation of, a vaccination certificate signed by a licensed veterinarian. The vaccination certificate need not be presented whenever the dog has a condition or illness which renders it unfit to be vaccinated, and this is proved to the satisfaction of the Controller, who must require written proof thereof to be made by a licensed veterinarian upon a form approved by the Controller.

(d) The Controller shall honor a dog license issued by authority of another government and shall issue a City of Fresno dog license for the nominal fee designated in the Master Fee Resolution, when the following facts exist:

(1) The dog license to be honored is current and effective and this fact is established by proof of a dog license tag, certificate or receipt of the other government which shows the period for which the license is issued.

(2) The dog has been vaccinated against rabies and this fact is established by the presentation of a vaccination certificate signed by a doctor of veterinary medicine or a dog license tag, receipt or certificate which on its face establishes the date and type of vaccination.

(3) The request to so honor the license is made within thirty days after the dog is brought into the city.

(4) The dog owner or custodian pays the license fee designated in the Master Fee Resolution for the issuance of a City of Fresno dog license under these conditions.

(e) It shall be the duty of the Controller to enter in a register kept by him for that purpose the name and address of the owners or custodians of all dogs licensed, and the description of such dogs, the number of the tag, and the date of its issuance. A similar register for all operators of kennels shall also be kept by the Controller.

(f) The dog license tag issued to any person upon the payment of the license fee herein provided for shall be securely attached to a collar or harness on such dog. The poundmaster shall impound any dog not bearing a Fresno city dog license tag. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Am. Ord. 5308, 1958; Rep. and Added Ord. 5757, 1960; Am. Ord. 6443, 1964; Am. Ord. 6593, 1965; Am. Ord. 6888, 1966; Am. Ord. 68-94, 1968; Am. Ord. 71-87, 1971; Am. Ord. 71-97, 1971; Am. Ord. 74-50, § 1, eff. 7-1-74; Am. Ord. 78-64, § 1, eff. 7-1-78; Am. Ord. 80-115, §§ 91, 92, eff. 8-8-80; Am. Ord. 88-61, § 3, eff. 5-27-88; Am. Ord. 99-40, § 2, eff. 7-30-99).

SEC. 10-304. INFRACTION.

Violation of Section 10-303 is an infraction. (Added Ord. 75-105, § 1, eff. 11-9-75).

SEC. 10-305. VACCINATION REQUIRED.

(a) Every person who keeps or harbors any dog over the age of four months shall have such dog vaccinated against rabies by a duly licensed veterinarian. Such vaccination shall be at intervals of at least twelve months.

(b) Every person bringing any dog into the city which has not been vaccinated prior to importation shall cause such dog to be vaccinated within thirty days after its arrival in the city.

(c) On demand of the poundmaster, every person keeping or harboring any dog over four months of age shall exhibit to the poundmaster a certificate of a duly licensed veterinarian certifying that said dog has been vaccinated, the date of the vaccination, and the type of vaccine used.

(d) The poundmaster shall impound any dog which has not been vaccinated as required by this section.

(e) Every person practicing veterinary medicine in the city who vaccinates a dog with rabies vaccine shall issue to the owner of the dog a duplicate original of a certificate signed by said veterinarian which states:

(1) The name and address of the owner or harborer of the vaccinated dog;

(2) The kind of vaccine used, the name of the manufacturer and the manufacturer's serial or lot number, and the date of the vaccination;

(3) The breed, age, color and sex of the vaccinated dog;

(4) The license tag number, if any. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Am. Ord. 5308, 1958; Ord. 5585, 1959; Ord. 5630, 1959; Ord. 5630, 1959; Rep. and Added Ord. 5757, 1960; Am. Ord. 5982, 1961; Am. Ord. 99-40, § 3, eff. 7-30-99).

SEC. 10-306. LICENSING OF DOG KENNELS.

(a) Every person owning or operating a kennel shall pay the annual license fee designated in the Master Fee Resolution which shall be the license fee for all dogs regularly kept therein. Such license fee shall be due and payable on and after the first day of July of each year, and said license shall be for the period of one year commencing on the first day of July.

(b) Any owner or operator of a kennel failing to procure and pay for such kennel license until after the twentieth day of September of any year shall pay the penalty designated in the Master Fee Resolution for such delinquency, provided that if the twentieth falls on a Saturday, a Sunday or a legal holiday, the license fee may be paid without penalty on the first succeeding business day. The penalty provided for in this section shall not apply in any case if the owner or operator of such kennel applies for and obtains a kennel license not later than thirty days after the beginning of the operation of such kennel.

(c) All kennels shall be so constructed as to prevent dogs confined therein from running at large off the premises where said kennels are maintained. All kennels shall be operated and constructed in a sanitary and proper manner so that the same will not become a nuisance to the neighborhood thereof.

(d) No kennel license shall be issued until the health officer shall have first issued a certificate that the same is constructed and operated in accordance with the provisions of this article. Such certificate shall be presented to the Controller with an application for a kennel license. Any kennel constructed after December 1, 1956, may not be issued a certificate by the health officer unless said kennel shall have been constructed under a valid building permit of the City of Fresno. The operation of all kennels shall at all times be subject to the general supervision of the health officer. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Am. Ord. 5308, 1958; Rep. and Added Ord. 5757, 1960; Am. Ord. 5982, 1961; Am. Ord. 80-115, §§ 93, 94, eff. 8-8-80).

SEC. 10-307. LOST OR STOLEN DOG LICENSE TAGS.

If a license tag is lost or stolen from the body of any dog for which the tag was issued, the owner shall, within thirty days thereafter, procure a new license tag for such dog which he shall pay the fee designated in the Master Fee Resolution. As often as any license tag is lost or stolen within the same license year, the same shall be replaced in the manner provided by this section. No person, other than the owner, shall remove or destroy a collar or license tag from a dog. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 6443, 1964; Am. Ord. 80-115, § 95, eff. 8-8-80).

SEC. 10-308. ANIMALS AT LARGE.

(a) No person owning, or having possession, charge, custody or control of, any animal, except a cat, shall cause, permit, or allow, such animal to be at large.

(b) If within the twelve month period after the date the poundmaster has issued a written warning or citation for violation of subsection (a) to the person who owns or has possession, charge, custody or control of the offending animal, that offending animal is found at large on two additional separate occasions, the poundmaster may request an administrative hearing before the Hearing Officer, pursuant to Section 1-401 et seq., to seek a finding that the animal is habitually at large.

(c) If after hearing the evidence and argument presented at the administrative hearing held pursuant to Chapter 1, Article 4, the Hearing Officer finds that the animal is habitually at large, the Hearing Officer may order any of the following:

(1) the animal be permanently altered to prevent reproduction;

(2) the animal be secured in an enclosure approved by the poundmaster at all times specified by the Hearing Officer;

(3) the animal be tethered with a rope or cable approved by poundmaster at all times specified by the Hearing Officer;

(4) the person owning or having possession, charge, custody or control of the animal repair or replace any structure or fence used to secure the animal to the satisfaction of the poundmaster;

(5) the animal be permanently forfeited to another person who the Hearing Officer has determined would be a responsible owner of the forfeited animal;

(6) the animal be permanently removed from the City;

(7) the animal be forfeited to the poundmaster.

The Poundmaster shall place any animal forfeited pursuant to this subdivision up for adoption if the poundmaster determines the forfeited animal's temperament and physical condition make the animal an appropriate candidate for adoption. If the poundmaster determines that the forfeited animal is not an appropriate candidate for adoption, the poundmaster shall humanely destroy the forfeited animal.

(d) The Council finds that permitting an animal, other than a cat, to be at large or maintaining one's property in a condition that permits an animal, other than a cat, to become at large is a public nuisance because of the potential threats to the public's health, safety and welfare resulting from at large animals and the potential for uncontrolled breeding that results in animal overpopulation. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 6341, 1963; Am. Ord. 2006-33, § 2, eff. 5-18-06; Am. Ord. 2006-34, § 2, eff. 5-18-06).

SEC. 10-309. INFRACTION.

Violation of Section 10-308 is an infraction. (Added Ord. 75-44, § 3, eff. 6-2-75; Am. Ord. 88-41, § 3, eff. 4-8-88; Am. Ord. 2006-33, § 3, eff. 5-18-06; Am. Ord. 2006-34, § 3, eff. 5-18-06).

SEC. 10-310. IMPOUNDING ANIMALS AT LARGE.

The poundmaster shall not seize or impound an animal for a violation of Section 10-308 or issue citations for the violation of Section 10-308 when the dog has not strayed from and is upon private property owned by the dog owner or the person who has a right to control the dog, or upon private property to which the dog owner or person who has a right to control the dog has a right of possession.

A dog that has strayed from but then returned to the private property of his owner or the person who has a right to control the dog shall not be seized or impounded, but in such a case a citation may be issued; provided, however, that if in such a situation the owner or person who has a right to control the dog is not home, the dog may be impounded, but the officer or employee of any animal control agency shall post a notice of such impounding on the front door of the living unit of the owner or person who has a right to control the dog. Such notice shall state the following: that the dog has been impounded, the location where the dog is being held, the name, address, and telephone number of the agency or person to be contacted regarding release of the dog, and an indication of the ultimate disposition of the dog if no action to regain it is taken within a specified period of time by its owner or by the person who has a right to control the dog.

This section shall not otherwise affect existing authority to seize or impound a dog or issue citations, as a result of a dog's being on property other than that owned by its owner or the person who has a right to control the dog, or impounding a dog pursuant to any other provision of this article providing for the impounding of and [an] animal.

This section shall not be construed as prohibiting any person from killing a dog in the situations authorized by Sections 31102, 31104, and 31152 of the Food and Agricultural Code. (Added Ord. 2001-39, § 2, eff. 5-28-01).

SEC. 10-311. REDEEMING IMPOUNDED ANIMALS.

(a) The owner or person entitled to the possession of any impounded animal other than those impounded pursuant to section 10-326 may at any time before the sale or disposition thereof redeem the same. Upon proof satisfactory to the poundmaster that said person is the owner of said animal, upon payment of the redemption fee and maintenance charges, upon proof of payment of any outstanding citations relating to the impounded animal or proof of the timely filing of an appeal of said citations with the City Hearing Officer, and in the case of a dog, upon compliance with Section 10-312, said animal shall be turned over and delivered to said owner, together with a receipt for all fees so paid, which receipt shall contain a description of the animal redeemed, the date of redemption, the name and address of the redemptioner and a statement that such animal has been redeemed.

(b) Redemption fees and maintenance charges for impounded animals shall be as designated in the Master Fee Resolution.

(c) The State Brand Inspector of the Bureau of Livestock Identification of the State of California shall be notified when any horses or cattle are impounded within twenty-four hours after such impounding.

(d) The poundmaster is authorized in the exercise of sound discretion to hold for a period of ten days any impounded female dog in heat prior to redemption or sale. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 5982, 1961; Am. Ord. 69-68, 1969; Am. Ord. 74-19, § 1, eff. 2-7-74; Am. Ord. 80-58, § 1, eff. 5-9-80; Am. Ord. 80-69, § 1, eff. 5-30-80; Am. Ord. 80-115, § 96, eff. 8-8-80; Am. Ord. 88-41, § 4, eff. 4-8-88; Am. Ord. 2006-33, § 4, eff. 5-18-06; Am. Ord. 2006-34, § 4, eff. 5-18-06).

SEC. 10-312. RELEASE OF IMPOUNDED DOGS; LICENSE AND VACCINATION.

(a) An impounded dog, other than one impounded pursuant to section 10-326, that has been vaccinated against rabies may be released to the owner or other person desiring to possess the dog only upon payment of the current city license fee for the dog if such owner or person resides within the city. The dog license shall be issued by the poundmaster in accordance with procedures prescribed by the Controller.

(b) An impounded dog, other than one impounded pursuant to section 10-326, that has not been vaccinated against rabies may be released by the poundmaster to an owner or purchaser who resides within the city only on condition that such owner or purchaser:

(1) Pays the dog license fee required by this article if one is payable;

(2) Furnishes to the poundmaster at the time of the release a signed statement that he will have the dog vaccinated within ten days;

(3) Has the dog vaccinated within ten days; and

(4) Exhibits a certificate of vaccination to the poundmaster within ten days, at which time the poundmaster shall issue the license in those instances when the license has been withheld.

(c) No person who has obtained release from the pound of an unvaccinated dog, as provided in subsection (b), shall fail to have the dog vaccinated within the specified ten-day period. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 88-41, § 5, eff. 4-8-88).

SEC. 10-313. UNREDEEMED UNLICENSED DOGS.

If any unlicensed dog, or any dog bearing no license tag, is taken up and impounded under the provisions of this article, other than section 10-326, and is not redeemed within a period of three days, the poundmaster may, in his discretion, at any time thereafter, humanely destroy such dog or sell the same for cash at private sale without notice. (Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 88-41, § 6, eff. 4-8-88).

SEC. 10-314. UNREDEEMED LICENSED DOGS.

If any licensed dog, bearing a license tag, taken up and impounded under the provisions of this article other than section 10-326, is not redeemed within a period of six days, the poundmaster may, in his discretion, at any time thereafter, humanely destroy such dog or sell the same for cash at private sale without notice; provided, that the poundmaster shall mail a notice of such impounding of such dog within three days after such dog is impounded, in a sealed envelope directed to the licensee at the address shown by the application therefor on file in the Finance Department.
(Orig. Ord. 3755; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 88-41, § 7, eff. 4-8-88).

SEC. 10-315. SALE OF UNREDEEMED DOGS.

When any dog is sold by the poundmaster as hereinbefore provided, it shall be his duty to deliver to the purchaser of such dog a certificate of sale. No impounded dog shall be sold to any person residing within the City of Fresno unless the purchaser complies with Section 10-312.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960).

SEC. 10-316. TITLE TO DOGS SOLD.

All sale of dogs made under the provisions of this article shall convey a good and valid title to the purchaser, and the owner of the dog so sold shall thereafter be barred from all right to recover the same.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960).

SEC. 10-317. AUTHORITY OF POUNDMASTER.

Whenever the poundmaster is authorized to take up and impound any animal under the provisions of this article, he shall have the authority, in the exercise of a sound discretion, to shoot any such animal which attacks him while he is in the act of seizing it for impounding, and to shoot any dog at large which has no known owner or home and which cannot be safely caught.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 6341, 1963).

SEC. 10-318. PROHIBITED ACTS.

(a) No unauthorized person shall remove any current, valid license tag from any dog.

(b) No person shall attach to or keep upon any dog any license tag provided for in this article, except a tag issued for such dog under the provisions of this article.

(c) No person shall attach to or keep upon any dog or make or have in his possession any counterfeit or imitation of any license tag provided for in this article.

(d) No person shall harbor or keep any dog which is not licensed in accordance with the requirements of this article.

(e) No person shall interfere with, oppose, or resist any poundmaster who is taking up or impounding dogs while such poundmaster is engaged in the performance of any act authorized by this article.

(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 5982, 1961).

SEC. 10-319. INFRACTION.

Violation of subsections (a), (b), (c) and (d) of Section 10-318 is an infraction.
(Added Ord. 75-105, § 2, eff. 11-9-75).

SEC. 10-320. ANIMALS TO BE IMPOUNDED.

The poundmaster shall have the authority to take up and impound any animal at large, except a cat.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 5982, 1961; Am. Ord. 6341, 1963; Am. Ord. 88-41, § 8, eff. 4-8-88).

SEC. 10-321. ANIMALS TRESPASSING UPON PRIVATE PROPERTY.

The owner of private property, or his representative, may take up and detain any animal found trespassing upon such private property. Any person taking up and detaining any animal pursuant to this section shall immediately notify the poundmaster of the address where the animal is detained and shall turn over the animal to the poundmaster upon demand for impounding. Upon the written complaint of the owner of private property setting forth the violation, the poundmaster shall take up and impound any animal found trespassing upon such private property.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960; Am. Ord. 5982, 1961; Am. Ord. 6341, 1963).

SEC. 10-322. REPORTING DOG BITES.

(a) It shall be the responsibility of the owner or custodian of a dog that has bitten a person to report the act to the health officer, and to confine or retrain [restrain] such dog in such a manner that it cannot come in contact with any person other than the one responsible for its care, for a period of fifteen days and until notified by the health officer to release it.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960).

SEC. 10-323. RECORDS TO BE KEPT BY POUNDMASTER.

The poundmaster shall keep a daily record of the number, and a description, of all animals taken into his custody, with the date of their impounding.
(Orig. Ord. 3756; Am. Ord. 5005, 1957; Rep. and Added Ord. 5757, 1960).

SEC. 10-324. RESERVED.

Editor's note—Ord. 2015-39, § 10, effective January 9, 2016, amended the Code by repealing former § 10-324 in its entirety. Former § 10-324 pertained to number of animals permitted, and derived from Ord. 5757 of 1960; Ord. 72-147 of 1973; and Ord. 91-35, effective May 24, 1991.

SEC. 10-325. ANIMALS AT LARGE; BITING OR ATTACKING.

A person who owns or is in charge of or controls or who possesses a dog or other animal, other than a dog used in law enforcement or a guide, signal, or service dog, who permits, allows or causes the dog or other animal to be at large is guilty of a misdemeanor if said dog or other animal bites, attacks or causes injury to any human being or other animal. The minimum fine imposed for such misdemeanor shall be one hundred dollars. Any person convicted under this section shall not own, possess, control or be in charge of any animal of the species which caused the bite, attack or injury for a period of three years from the date of conviction. The Controller shall not issue or renew any license or permit for said species of animal, except that upon the written request of the person so convicted, the Controller, in his discretion, may authorize the issuance of a dog license.
(Added Ord. 88-41, § 9, eff. 4-8-88; Am. Ord. 88-61, § 4, 5-27-88).

SEC. 10-326. IMPOUNDMENT; BITING OR ATTACKING ANIMAL.

(a) The poundmaster shall have the power to summarily and immediately impound a dog or other animal where there is evidence it has attacked, bitten or injured any human being or other animal pending any court or dog license or animal permit revocation proceeding arising from the attack, bite or injury. The poundmaster or his duly authorized representative may enter and inspect private property to enforce the provisions of this section.

Failure to surrender to the poundmaster upon demand a dog or other animal which is subject to being impounded pursuant to this section is a misdemeanor.

A dog or other animal, impounded pursuant to the authority of this section, shall be returned to the owner or custodian as provided by section 10-327 or when it is no longer required as evidence, or if a notice of an investigation to determine if an animal is dangerous or potentially dangerous pursuant to section 10-327 has not been served on the owner or custodian within seven days after the impoundment.

(b) In lieu of impoundment pursuant to this section, the poundmaster may permit the dog or other animal to be confined at the owner's or custodian's expense in a dog kennel by the poundmaster or veterinary facility within the city or at the owner's or custodian's residence in an enclosure described in subsection (d) provided that the owner or custodian:

(1) shall not remove the dog or other animal from the kennel, veterinary facility or residence without the prior written approval of the poundmaster or his authorized representative; and

(2) shall make the dog or other animal available for observation and inspection by the poundmaster and members of law enforcement or their authorized representatives;

(3) shall verify to the poundmaster that the dog or other animal will be confined in such a way as to prevent its coming into contact with members of the public other than the immediate family of the owner or custodian.

(c) The poundmaster or his designated representative may have a dog or other animal, impounded or confined as provided in subsections (a) or (b), identified by means of permanent marking prior to release from impound or confinement.

(d) For purposes of this section, "enclosure" shall mean a fence or structure of at least six feet in height, forming a confined area sufficient to prevent the entry of young children, and effective in containing the dog or other animal. Such enclosure shall be securely enclosed and locked and equipped with secure sides, top and bottom, and shall be designed to prevent the dog or other animal from escaping from the enclosure.
(Added Ord. 88-41, § 10, eff. 4-8-88; Am. Ord. 2006-33, § 5, eff. 5-18-06; Am. Ord. 2006-34, § 5, eff. 5-18-06).

SEC. 10-327. DANGEROUS ANIMAL; PROCEDURES.

(a) **Investigation and Declaration.** The poundmaster shall conduct an investigation to determine whether or not a dog or other animal confined or impounded pursuant to section 10-326 is a dangerous or potentially dangerous animal. Within seven days of the date of impounding the dog or other animal pursuant to section 10-326 the poundmaster shall serve upon the owner or custodian of the dog or other animal by regular and certified mail a notice of investigation to determine if the animal is dangerous or potentially dangerous. This notice shall describe the purpose of the investigation, how the investigation will be conducted, the factors the poundmaster will consider in making a finding and a deadline for completing the investigation. The investigation may include interviewing the owner(s) of the dog or other animal, witnesses, reviewing records of citations and reports of previous incidents involving the dog or other animal and evaluating the temperament of the dog or other animal through behavioral testing. In making a finding regarding whether the dog or other animal is dangerous or potentially dangerous, the poundmaster shall consider the factors set forth in subsection (c). If after completing the investigation the poundmaster finds that the dog or other animal is dangerous or potentially dangerous, the poundmaster shall serve by regular mail and certified mail a notice of declaration as described in subsection (b). If after completing the investigation the poundmaster determines that the dog or other animal is not dangerous or potentially dangerous, the poundmaster shall inform the owner of the dog or other animal of this finding and release the dog or other animal to the owner. The investigation shall be completed and any declaration served within twenty-one calendar days of the date the dog or other animal was impounded pursuant to section 10-326.

(b) **Dangerous or Potentially Dangerous Animal; Notice of Declaration.** The notice of declaration finding that a dog or other animal is dangerous or potentially dangerous shall contain:

(1) a physical description of the animal, including the breed, if known, and the animal's license number, if any;

(2) a statement informing the owner of the animal that the poundmaster has declared the animal a dangerous animal or a potentially dangerous animal, including a brief and concise description of the facts that form the basis for the declaration of the animal as a dangerous animal or a potentially dangerous animal;

(3) a statement informing the owner of the animal of the possible consequences should a declaration of dangerous animal or potentially dangerous animal become final;

(4) a statement informing that the owner or custodian of the animal may appeal the declaration provided that the appeal is made in writing as provided in subsection 10-327(f).

(5) a statement that the appeal request must be in writing and filed with the City Manager's Office within five calendar days of service of the notice of declaration;

(6) if the animal is declared dangerous, an order that the animal be humanely destroyed as provided for in subsection (d);

(7) if the animal is declared potentially dangerous, an order setting forth any or all of the conditions set forth in subsection (e);

(8) a statement that failure to appeal the notice of declaration will constitute a waiver of all rights to an administrative hearing and will be a final determination of the matter, and if after ten days from the date of the issuance of the notice of declaration finding the animal potentially dangerous, the owner or custodian has failed to inform the poundmaster of an intent to comply with the conditions set forth in the notice of declaration, the animal will be deemed abandoned and may be humanely destroyed or otherwise disposed of;

(9) a statement that failure to comply with all of the conditions set forth in the notice of declaration will result in the poundmaster proceeding with impounding and destroying or otherwise disposing of the animal.

(c) **Determination of Dangerous or Potentially Dangerous Animal; Evidence.** In making a determination that a dog or other animal is or is not dangerous, evidence of the following shall be considered:

(1) any previous history of the dog or other animal attacking, biting or causing injury to a human or other animal;

(2) the nature and extent of injuries inflicted and the number of victims involved;

(3) the place where the bite, attack or injury occurred;

(4) the presence or absence of any provocation for the bite, attack or injury;

(5) the extent to which property has been damaged or destroyed;

(6) whether the dog or other animal exhibits any characteristics of being trained for fighting or attack or other evidence to show such training or fighting;

(7) whether the dog or other animal exhibits characteristics of aggressive or unpredictable temperament or behavior in the presence of human beings or dogs or other animals;

(8) whether the dog or other animal can be effectively trained or retrained to change its temperament or behavior;

(9) the manner in which the dog or other animal had been maintained by its owner or custodian;

(10) any other relevant evidence concerning the maintenance of the dog or other animal;

(11) any other relevant evidence regarding the ability of the owner or custodian, or the poundmaster, to protect the public safety in the future if the dog or other animal is permitted to remain in the city.

(d) **Disposition of Dangerous Animal.**

(1) It shall be unlawful for any person to own, possess, harbor or keep any dog or other animal declared by the hearing officer, after a hearing, to be dangerous.

(2) Any dog or other animal declared to be dangerous, if not already impounded by the poundmaster, shall be immediately surrendered to the poundmaster, and it is the duty of the poundmaster to take up and impound any such dog or other animal.

(3) Any dog or other animal declared to be a dangerous animal shall be humanely destroyed.

(e) **Dog or Other Animal Found Potentially Dangerous; Procedure.** If the notice of declaration states that the dog or other animal is potentially dangerous, in the notice of declaration the poundmaster may set forth any or all of the following as conditions to owning, possessing, controlling or being in charge of the animal declared to be potentially dangerous:

(1) the animal shall be confined on the owner's premises in an enclosure approved by the poundmaster;

(2) the animal shall be kept securely muzzled, leashed and under the control of a person eighteen (18) years of age or older, and who is physically capable of restraining the animal when the animal is off the owner's property;

(3) the animal shall be photographed, microchipped or permanently marked by the poundmaster for purposes of identification;

(4) the animal shall be altered to prevent reproduction;

(5) the owner of the animal shall notify in writing any public or corporate entity, including but not limited to, the City of Fresno, County of Fresno, the postmaster, utility companies, or any other organization that sends out employees to the residence, that a potentially dangerous animal resides at that property. The poundmaster may also set a time period by which such notices must be given, and when copies of such notices must be provided to the poundmaster;

(6) The owner shall post signs on the premises where the animal is being kept that are clearly visible from points of entry to the property which state that an animal which has been declared to be potentially dangerous is on the property. Such signs shall be provided by the poundmaster, but the costs of the sign(s) shall be the responsibility of the animal

owner. The language of such signs shall be determined by the poundmaster and may be required to be in a language other than English. The poundmaster may require that such signs are posted before an impounded animal is returned to its owner or within ten days from the date the animal was declared to be a potentially dangerous animal;

(7) An animal which has been declared potentially dangerous may not be transferred to reside either temporarily or permanently at another location within the City of Fresno without prior written authorization of the poundmaster. Said authorization shall not be issued unless every term set forth in the notice of declaration can be met at the proposed new location;

(8) the owner shall allow inspections of the animal and its enclosure by the poundmaster or any law enforcement agency and produce upon demand proof of compliance with all conditions set forth in the final notice of declaration;

(9) In the event of the animal's death, the owner shall notify the poundmaster no later than forty-eight hours thereafter and, upon request, produce evidence of the animal's death to the satisfaction of the poundmaster;

(10) In the event that the animal escapes, the owner shall immediately notify the poundmaster. In addition, the owner and poundmaster shall make every reasonable effort to recapture the animal;

(11) the animal shall be permanently removed from the City of Fresno and the owner shall provide proof of said removal to the satisfaction of the poundmaster; and,

(12) the owner shall pay all impound and shelter fees incurred by the poundmaster to impound the animal during the investigation to determine whether the animal is dangerous or potentially dangerous.

If the owner fails to comply with all of the conditions ordered by the poundmaster or the hearing officer through the appeal process described in this chapter, the poundmaster shall proceed to impound and destroy or otherwise dispose of the animal.

(f) **Appeal of Notice of Declaration.**

(1) The owner of the animal may appeal the notice of declaration by filing a written appeal with the City Hearing Officer within five days from the date of service of such notice. The written appeal shall contain all of the following:

(i) a brief statement setting forth the legal interest of each of the appellants regarding the animal involved in the notice of declaration;

(ii) a brief statement in ordinary and concise language of the relief sought, and the reasons why it is claimed the protested notice of declaration should be reversed, modified, or otherwise set aside;

(iii) The signatures of all parties named as appellants and their official mailing addresses, with statement from each appellant that each agrees to accept service of the written notice of the time and place of the appeal hearing and the decision of the City Hearing Officer at such address;

(iv) the declaration under penalty of perjury of at least one appellant as to the truth of the matters stated in the appeal.

If the owner fails to file an appeal of the notice of declaration within five days of service of the notice of declaration, the notice of declaration shall become final and fully enforceable.

(2) An owner appealing a notice of declaration finding an animal dangerous or potentially dangerous shall be required to pay the office of the City Hearing Officer, at the time the written notice of appeal is filed, an appeal fee set forth in the Master Fee Schedule. Such fee shall be refunded to the appellant if the Hearing Officer determines that imposition of the fee is not warranted or is not in the interest of justice. No notice of appeal is valid unless accompanied by the appeal fee.

(3) Upon receipt of any appeal the office of the City Hearing Officer shall calendar it for hearing and notify the appellants and the poundmaster in writing of the date, time and location for the hearing.

(4) The appeal hearing shall be noticed and conducted under this section and Chapter 1, Article 5, except that the deadline for filing an appeal and the requirements for the contents of the appeal set forth in subsection 1-406(b) shall not apply.

(g) Any person whose dog or other animal has been declared dangerous or potentially dangerous shall not own, possess, control or be in charge of another animal of the species declared to be dangerous or potentially dangerous for a period of three years from the date of the final notice of declaration of order after appeal. The Controller shall not issue or renew any license or permit for said species of animal, except that upon the written request of the person whose dog or other animal has been declared dangerous or potentially dangerous, the poundmaster may in his discretion authorize the issuance of a dog license.

(h) No dog or other animal may be declared dangerous that inflicts injury or damage on a person committing a willful trespass or other tort upon premises occupied by the owner of the dog or other animal, or teasing, tormenting, abusing or assaulting the dog or other animal, or committing or attempting to commit a crime.

No dog or other animal may be declared dangerous if it inflicts injury or damage on a domestic animal that was teasing, tormenting, abusing or assaulting the dog or other animal.

No dog or other animal may be declared dangerous for taking any action to defend or protect a human being within the immediate vicinity of the dog or other animal from an unjustified attack or assault.

(i) The Council finds that dangerous animals and potentially dangerous animals are a public nuisance because of the potential threats to the public's health, safety and welfare resulting from these animals attacking, biting, injuring or killing other persons or animals. (Added Ord. 88-41, § 11, eff. 4-8-88; Am. Ord. 88-61, §§ 5, 6, eff. 5-27-88; Am. Ord. 98-65, § 21, eff. 10-1-98; Am. Ord. 2005-14, § 39, eff. 4-9-05; Am. Ord. 2006-33, § 6, eff. 5-18-06; Am. Ord. 2006-34, § 6, eff. 5-18-06).

SEC. 10-328. BREEDING, TRANSFER AND SALE OF DOGS AND CATS.

The Council of the City of Fresno finds and declares that there exists a serious pet overpopulation problem within the City of Fresno that has resulted in a threat to public safety and health, inhumane treatment of animals, has resulted in euthanization of animals at the local animal shelter and escalating costs for animal care and control for animal care and control. The Council finds that uncontrolled breeding is a cause and, without further action aimed at the source, this problem and its serious consequences will remain unabated and will increase in severity.

The Council finds that part of the solution is for all dogs and cats over the age of four months to be spayed or neutered, unless their owners purchase the appropriate licenses for the privilege of maintaining the animal intact and/or a breeder permit to allow it to breed. Further, the Council finds that regulation of the transfer of dogs and cats will help alleviate the City's pet overpopulation crisis by allowing increased City control over enforcement of the dog licensing provisions and limiting the means of obtaining a dog or cat.

(a) The Unaltered Dog [or Cat] License shall contain the following terms and conditions:

(1) The Owner of an unaltered female dog or cat shall not allow the dog or cat to breed without first obtaining a breeder's permit.

(2) No offspring may be sold, adopted, bartered or otherwise transferred, whether for compensation or otherwise, until such offspring has reached the age of at least eight (8) weeks.

(3) The Owner must prominently display their Unaltered Dog [or Cat] License number in any advertisement to the public for the sale, adoption or transfer (whether for compensation or otherwise) of the offspring. The Owner must provide the Unaltered Dog [or Cat] License number to any person who purchases, adopts or receives the offspring and include the Unaltered Dog [or Cat] License number on any receipt of sale or transfer document.

(4) The Owner shall provide to all persons who receive any offspring, whether for compensation or otherwise, an application for a City dog license, as well as written information regarding the City's dog license requirements. The Owner shall obtain these documents from the City Manager or designee.

(b) Breeder Permit Requirements:

(1) No person shall cause or allow any dog or cat owned, harbored or kept within the City to breed without first obtaining a breeding permit, as described below.

(2) Applications for a breeder permit pursuant to this chapter shall be filed with the Animal Center Department on a form prescribed by the City Manager or designee. Fees charged for these permits shall be set in the Master Fee Schedule.

(3) Applications for a breeder permit will require the animal to possess an unaltered dog license and a business tax license certificate from the City's Finance Department; and to maintain the certificate while in operation.

(4) The term breeding permit shall mean a written authorization, issued annually by the City Manager or designee, giving its lawful holder permission to breed a dog or cat.

(5) Each breeding permit shall be valid for one year from the date of issuance, and may be renewed annually before its expiration date.

(6) Each applicant for such a permit shall pay an annual fee as specified in the Master Fee Schedule.

(7) A separate permit must be obtained for each owned dog or cat which is allowed to breed.

(8) The City's Animal Center Department shall administer an animal breeding permit program to allow the breeding of unaltered dogs and cats consistent with criteria and according to procedures established by the City Manager or designee. Under no circumstances shall such a permit be issued to a person who has been convicted of animal cruelty or neglect.

(9) In addition to the criteria and procedures established by the City Manager pursuant to paragraph 8 of this subsection, all breeding permits shall contain the following terms and conditions:

(i) The Owner of an unaltered female dog or cat shall not allow the whelping of more than one litter in any household within the permit year. Notwithstanding this provision, the City Manager is hereby authorized, upon application of a permittee, to allow on a one time basis the whelping of up to two dog or cat litters per breeding animal within any domestic household within a permit year, if the permittee establishes, according to regulations promulgated by the City Manager, that such breeding is required to protect the health of the animal or avert a substantial economic loss to the permittee. In the event that a permittee is forced to euthanize a litter of dogs or cats, the City Manager may authorize the whelping of one additional litter of dogs or cats within the same permit year by the permittee.

(c) Sale and Other Transfer of Dogs and Cats.

(1) Any person who offers or provides, whether for compensation or otherwise, any dog or cat for sale or other type of transfer, shall disclose to the transferee information regarding the license and permit requirements of the City applicable to the transferred animal.

(2) No person shall present any dog or cat for sale, barter, exchange, or adoption, whether for compensation or otherwise, in any public place, without first obtaining a breeding permit from the City. The term public place shall include,

but not [be] limited to streets, highways, sidewalks, businesses, shopping malls, flea markets, swap meets, and areas in front of commercial establishments. This prohibition shall not apply to:

(i) Government agencies, nonprofit animal rescue organizations exempt from taxation under Internal Revenue Code section 501(c)(3); or humane societies or societies for the prevention of cruelty to animals if such societies are incorporated under the provisions of the California Corporations Code Section 10400 and the Nonprofit Public Benefit Corporation Law in Part 2 of the California Corporations Code, beginning at Section 5110.

(ii) Permitted dog or cat shows.

(iii) Permitted pet stores which sell or otherwise transfer dogs or cats, whether for compensation or otherwise, within the store.

(3) No person shall give away any dog or cat as a prize or as an inducement to enter into any contest, lottery, drawing, game or competition.

(4) No person shall give away any dog or cat as an inducement to enter a place of business.

(5) No person shall sell or give away any dog or cat in any public place or in front of any business not owned by him/her or at any swap meet.

(6) No person shall sell, barter, exchange or offer for adoption, whether for compensation or otherwise, any dog or cat to any minor under the age of eighteen years, without the written permission of one of the minor's parents or legal guardians.

(7) Failure to display the breeding permit number or include it in any advertisement for sale, adoption or other transfer of dogs and cats is an infraction punishable in accordance with Subsection (d)(4) below.

(8) Possession of a valid permit under this section of the Code does not entitle the permit holder to engage in activity which is otherwise prohibited by law.

(d) Enforcement of Dog License Provisions and Penalties.

(1) Any cat or dog owner found by the City to be in violation of the breeding permit provisions of this section may correct the violations(s) by providing conclusive proof to the City that the dog(s) or cat(s) have been spayed, or by obtaining the necessary permit(s) mentioned in this section, no later than thirty (30) days from the date when the City first notified the owner of the violation. Should the owner fail to correct the violation(s) in the manner described above, the City shall impose a $1,000 civil penalty per animal on the dog or cat owner. This penalty shall not be waived by the City upon the transfer or abandonment of the dog or cat by the non-compliant owner. This penalty shall be in addition to any other applicable civil or criminal penalties.

(2) If the civil penalty mentioned above is not paid and the owner does not spay/neuter his/her dog(s) or cat(s) or obtains a breeding permit(s) required under Subsection (b)(2), above within fifteen (15) days from the date the City first notified the owner of the imposition of the civil penalty mentioned in Section (d)(1), the continuing violation of the permit requirement of this section becomes a misdemeanor and may be prosecuted as such.

(3) The City may revoke any permit issued pursuant to this section upon a finding that the permit holder has violated its terms and conditions. Such a finding shall be made after an administrative hearing pursuant to Section 1-401 et seq.

(4) Except as specifically mentioned in Subsection d(1), (2) and (3), above failure to comply with any of the requirements mentioned in Subsections (a), (b) and (c) of Section 10-328 of this Code shall be an infraction.

(Added Ord. 2006-34, § 7, eff. 5-18-06; Am. Ord. 2024-026, § 1, eff. 10-5-24).

SEC. 10-329. PET RESPONSIBILITY ACT.

The Council of the City of Fresno finds and declares that a contributing cause of the serious dog overpopulation problem within the City of Fresno is the number of unaltered dogs found at large. The Council wishes to promote responsible pet ownership as a means for promoting the public health, safety, and welfare of humans and pets in the City of Fresno. The Council finds and declares that mandatory spaying or neutering of dogs is appropriate when dog owners fail to act responsibly to prevent their animals from being at large.

(a) **Title.** This Section shall be known as the "Pet Responsibility Act."

(b) **Applicability.** This Section shall apply to all persons whose dogs are found to be at large in violation of Section 10-308(a) of this Code and any requirements imposed by this Section shall be cumulative to any requirements or penalties otherwise imposed by this Code.

(c) **Definitions.** The following terms used in this section shall be defined as follows:

(1) "At large" shall mean an animal in or upon any public street, public alley or other public place or in or upon an unenclosed lot or premises, unless the animal is securely confined to the lot or premises by a suitably strong leash or is securely and continuously held by the owner or custodian of such animal by a strong leash suitable for maintaining control of the animal, or the animal is confined within an automobile.

(2) "Owner" shall mean the owner or custodian of any animal.

(d) **Enforcement.** This Section shall be enforced as follows:

(1) Upon a first violation of Section 10-308(a), the owner shall be issued a written warning prior to the issuance of a citation or initiation of further enforcement action.

(2) Upon a second violation of Section 10-308(a) an owner shall be issued an administrative citation with a penalty in the amount of $100.00;

(3) Upon a third or subsequent violation of Section 10-308(a) an owner shall be issued an administrative citation in the amount of $200.00.

(4) Upon a third or subsequent violation of Section 10-308(a) an owner shall be issued an order to comply with one or both of the following requirements:

(A) Spay or neuter all dogs possessed by that person and provide proof of compliance to the poundmaster within sixty (60) days;

(B) Implant a microchip identification device in all dogs possessed by that person.

(e) **Responsibility for Enforcement.** The poundmaster shall be responsible for enforcement and administration of this section.

(f) **Cost Recovery.** The City may collect abatement, actual, administrative and enforcement costs, as well as penalties and administrative expenses pursuant to the provisions of Chapter 1, Article 5 of this Code.

(g) **Appeals.** Any person receiving an administrative citation, order to spay/neuter an animal, or order to microchip an animal may appeal the issuance of the administrative citation or order pursuant to Chapter 1, Article 4 of this Code.

(Added Ord. 2010-15, § 1, eff. 6-24-10).

ARTICLE 4 SOLID WASTE AND RECYCLING FACILITIES ORDINANCE

Sec. 10-401. Title.
Sec. 10-402. Definitions.
Sec. 10-403. Findings.
Sec. 10-404. Intent.
Sec. 10-405. Severability.
Sec. 10-406. Rules and regulations.
Sec. 10-407. Solid waste and recycling facilities permit.
Sec. 10-408. Issuance or denial of a permit.
Sec. 10-409. Environmental violations.
Sec. 10-410. Operational plan and site plan.
Sec. 10-411. Permit fee.
Sec. 10-412. Zoning and fire code requirements.
Sec. 10-413. Property owner; recording the permit.
Sec. 10-414. Permit suspension or revocation; grounds.
Sec. 10-415. Permit suspension or revocation; procedures.
Sec. 10-416. Regulations.
Sec. 10-417. Monitoring and reporting requirements.
Sec. 10-418. Enforcement.
Sec. 10-419. Remedies.
Sec. 10-420. Cost and penalty recovery.
Sec. 10-421. Cumulative remedies.

SEC. 10-401. TITLE.

This article shall be known as the "City of Fresno Solid Waste and Recycling Facilities Ordinance." (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-402. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article, unless the particular provision or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derived from it, or from which it is a derivative, as the case may be.

(a) "City inspectors" shall mean any person whether employed or contracted by the city to conduct inspections for purposes of determining compliance with the Code and/or to enforce provisions of the Code.

(b) "Director" shall mean the director of any department of the city, and any of his or her agents or representatives, who has been delegated to enforce and/or administer the provisions of this article by the City Manager.

(c) "Operations" shall mean all business activities that may be defined in this section as a recycling facility or solid waste facility that are conducted by applicants and or permit holders under this article.

(d) "Permit" shall mean a recycling facility permit issued under the authority and procedures of this article.

(e) "Recycling Facility" shall mean any facility that is used in the process of collecting, sorting, cleansing, treating, processing, reconstituting, or storing materials that would otherwise become solid waste, as defined in this section, and returning them to the economic mainstream in the form of raw material for new, reused, or reconstituted products which meet the quality standards necessary to be used in the marketplace.

(f) "Solid Waste" shall be defined as found at California Public Resources Code section 40191, as amended.

(g) "Solid Waste Facility" shall be defined as found in California Public Resources Code section 40194, as amended. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-403. FINDINGS.

The Council finds that recycling and solid waste facilities are especially prone to present a risk to the public's health and safety and therefore require the adoption of this ordinance based upon the following findings:

(a) In January 2003, a fire occurred at a recycling facility in the city that was operating under, although not in conformance with, a conditional use permit. The fire lasted for more than a month and required the services of Federal, State and private fire fighting agencies and more than two and a half million dollars to suppress. The fire had a serious health impact to the residents of the surrounding community and the city and resulted in Council declaring a local state of emergency.

(b) After the fire was suppressed, the Mayor formed the "Southwest Fire Process Improvement Task Force" (hereinafter "Task Force"). The Task Force was charged with answering two questions: (1) how the city could prevent this type of fire or similar emergency from recurring in the city, and (2) how to respond to future similar emergencies in an effective, adequate and timely manner.

(c) In April of 2003 after finishing its investigation, the Task Force issued a report concluding that the city's current ordinances, codes, and policies relating to conditional use permits and enforcement activities were inadequate. The Task Force found that the above local ordinances and policies were in need of improvement, from the initial approval and issuance of conditional use permits to the monitoring, code enforcement/on-site inspections, and legal action to be taken against violators of conditional use permits.

(d) The Task Force report included twenty-four recommendations to address the identified areas of concern.

(e) The fourth recommendation to the Task Force Report provided that: "The City shall adopt an Ordinance apart from the Zoning Ordinance, in the Health and Safety Chapter, that addresses specifically recyclable material operators within the City of Fresno. Such Ordinance shall include remedies and punishments, including criminal and financial penalties for violations."

(f) The seventh recommendation to the Task Force Report provided that: "The City shall amend appropriate sections of the FMC and related Zoning Ordinances to require a monitoring, on-site inspection/reporting system for all land uses related to waste/recyclable facilities. The amendments shall include requirements on CUP's for on-site inspections by either appropriate City staff or contracted inspectors. It is also recommended that the costs of these inspections be borne by the business operators."

(g) On April 29, 2003, Council voted to implement the results of the Task Force report.

(h) In the past three years, the city has experienced at least twelve fires at recycling facilities within the City of Fresno at six different recycling and/or solid waste facilities in the City of Fresno.

(i) In May of 2002, Council directed the City Manager to form an internal task force to make a recommendation for a proactive CUP enforcement program.

(j) In studying the issues regarding the formation of an internal task force for proactive enforcement, staff identified waste storage and recycling facilities as one of four sensitive land uses and businesses that most directly affect public health, safety and welfare. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-404. INTENT.

This ordinance is adopted with the intent:

(a) To implement the fourth and seventh recommendations to the Task Force Report; and

(b) To be consistent with the purpose of the California Integrated Waste Management Act (Public Resources Code § 40052) to reduce, recycle, and reuse solid waste generated in the city to the maximum extent feasible, and to ensure that solid waste landfills and solid waste management facilities are environmentally safe; and

(c) To provide reasonable land use conditions and restrictions on solid waste management facilities in order to prevent or mitigate potential nuisances and health and safety problems; and

(d) To be consistent with, and impose restrictions in addition to, the California Integrated Waste Management Act (Public Resources Code §§ 40000, et seq.). (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-405. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not

affect the validity of the remaining portion of this article. Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-406. RULES AND REGULATIONS.

The Director may make rules and regulations which are not inconsistent with the provisions of this article and which may be necessary or desirable to aid in the administration or enforcement of the provisions of this article, including all necessary policies and procedures for the issuance of the permits, administration of this article, collection of fees and bonds and/or indemnities, or proof(s) of insurance. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-407. SOLID WASTE AND RECYCLING FACILITIES PERMIT.

No person or business may operate a solid waste or recycling facility, as defined in this article, unless they hold a Solid Waste and Recycling Facilities Permit. The Solid Waste and Recycling Facilities Permit shall include conditions on the permit holder's operations as provided in this article for the permit holder's type of operation. The permit shall not be transferrable. The permit shall be valid for one year. The city may provide a program to renew permits for permit holders on an annual basis upon the payment of a fee to defray the city's costs. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-408. ISSUANCE OR DENIAL OF A PERMIT.

The Director shall cause an investigation to be made of the facts stated in an application for a recycling facility permit, and shall within forty-five days, subject to the completion of the necessary background checks by local, state and federal agencies and completion of the review of the operational plan and site plan by the city, issue a permit to the applicant if the Director finds that the applicant has not had a permit revoked for good and sufficient cause within the last twelve months and has never had a permit revoked for cause involving gross negligence or moral turpitude; that the applicant has not been convicted of a crime involving fraud, or moral turpitude within the last five years; that the statements made in the application are probably true; that the permit fee has been paid as provided in the Master Fee Schedule; and that no fact exists which would be cause for revocation of the permit under Section 10-414. Applications shall be processed in order of receipt. A decision to deny a permit shall be issued in writing with the basis for the denial, and if feasible, shall propose measures to cure any defects in the application. An applicant may appeal the decision to deny a permit under the procedures in Chapter 1, Article 4 of this Code. If no appeal is filed in a timely manner, the decision of the Director shall be final. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-409. ENVIRONMENTAL VIOLATIONS.

Applicants and permit holders shall be required to provide a notice of all criminal, civil and administrative convictions, judgments or penalties imposed on them for violations of Federal,

State or local laws related to unlawful storing or dumping of hazardous or non-hazardous wastes or transporting, handling, generating or storing of hazardous materials. The Director may reject an application or suspend or revoke a permit, if the Director finds that on the basis of the number, seriousness or recentness of the convictions, judgments or penalties, there is reason to believe that the applicant or permit holder cannot be trusted to comply with this article and/or the Code or the applicant or permit holder poses a threat to the public health, safety or welfare. Failure by an applicant or a permit holder to report any convictions, judgments or penalties shall be grounds for suspension and/or revocation of the permit. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-410. OPERATIONAL PLAN AND SITE PLAN.

No permit shall be issued without the applicant submitting an operational plan and a site plan for the applicant's proposed operations that have been approved to meet the requirements of this article, any other provision of the Code, any zoning condition placed on the property in a development entitlement, and that are not in conflict with Federal and State laws for operation of a solid waste and/or recycling facility. At the request of the applicant, if an operational plan and/or site plan has already been submitted to the city for a permit other than a Solid Waste and Recycling Facilities Permit, the city may consider the operational plan and/or site plan on file with the city to determine if it is sufficient to meet the requirements of this section. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-411. PERMIT FEE.

All applicants for a permit are required to pay a fee to cover all of the city's costs to implement, enforce and administer the provisions of this article, including but not limited to, administrative costs to review applications and issue permits, inspection costs, monitoring costs, and or enforcement costs. This fee will be provided in the Master Fee Schedule. If the city establishes a permit renewal system as allowed under Section 10-407, the permit holder shall be required to pay a fee upon renewal of their permit as provided in the Master Fee Schedule. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-412. ZONING AND FIRE CODE REQUIREMENTS.

No permit shall be issued unless the applicant can establish compliance with the Zoning Ordinance of the City of Fresno and the Fresno Fire Code. All permits shall include a condition requiring the permit holder to comply with the Zoning Ordinance of the City of Fresno and the Fresno Fire Code. A violation of the Zoning Ordinance of the City of Fresno or the Fresno Fire Code is sufficient basis for suspension or revocation of the permit. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-413. PROPERTY OWNER; RECORDING THE PERMIT.

In the event the applicant does not hold record title interest in the property upon which the solid waste facility or recycling facility is intended to be operated, no permit shall be issued until the record title owner(s) sign a copy of the application for the permit and acknowledges

that he, she or they understand the applicant's intended use of the property, that the city may record the permit with the County Recorder's Office, and the property owner will be responsible for any public nuisance created or maintained on the property, including a violation of this article, as authorized in the City of Fresno Public Nuisance Abatement Ordinance. Upon approval, a copy of the permit may be recorded in the County Recorder's Office. Upon application by the property owner or other interested party, the city shall release the recording of the permit when the permit holder establishes to the satisfaction of the Director that a solid waste or recycling facility is no longer operating on the property. The applicant shall be charged the cost associated with recording the permit and the release of the permit. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-414. PERMIT SUSPENSION OR REVOCATION; GROUNDS.

Any permit issued under this chapter may be suspended or revoked for good cause, including, but not limited to the following:

(a) **False Statement in Application.** If it is determined that the permit holder made any false statement of material fact in the application for the permit, or other document for which the permit approval was based.

(b) **Grounds for Denial of Permit.** If it is determined that any facts exist that would have been grounds for denial of the permit.

(c) **Violation of Condition of Permit.** If it is determined that the permit holder violated a condition placed on the permit or failed to comply with an order issued under Section 10-419.

(d) **Violation of the Code.** If it is determined that the permit holder violated any requirement of this Code in connection with the exercise of the permit, including, but not limited to, violation of this article, the City of Fresno Public Nuisance Abatement Ordinance, and/or the Zoning Ordinance of the City of Fresno.

(e) **Conducting Business in an Illegal or Disorderly Manner; Endangering Public.** If it is determined that the permit holder conducts his or her business in an illegal or disorderly manner or in any manner which endangers the public health, safety or welfare.

(f) **Conviction or Determination Involving Fraud or Deceit.** If it is found that the permit holder within the last five years has been found guilty of a crime involving fraud, deceit or dishonesty or has been determined in a final decision in any civil matter or administrative proceeding to have practiced or committed fraud, deceit or dishonesty. If it is found that the permit holder has within the last five years been convicted of a crime or other offense involving moral turpitude.

(g) **Insolvency.** If it is determined that the permit holder is bankrupt, financially insolvent or unstable and that, in the exercise of reasonable judgment, it appears likely that because of their financial condition, the permit holder will provide inadequate service under his permit.

(h) **Disservice to the Public.** If it is determined that the permit holder's service to the public is so inadequate or inefficient that, in the exercise of reasonable judgment, it appears that it amounts to a disservice to the public. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-415. PERMIT SUSPENSION OR REVOCATION; PROCEDURES.

The following procedures shall be used to revoke or suspend a Solid Waste and Recycling Facilities Permit:

(a) **Notification of Suspension or Revocation.** Notice of suspension or revocation of any permit shall be in writing from the Director and shall state the reasons for the suspension or revocation, shall state the effective date of revocation or suspension, and shall provide notice of the right to appeal. If the Director determines that immediate cessation of activities under the permit is necessary to protect the public's health, safety or welfare, the effective date shall be immediate upon notification. Notification of suspension or revocation shall either be served upon the permittee personally, or mailed by certified mail, return receipt requested, addressed to the permittee at the address appearing on the permit. Notice shall be deemed to be received immediately upon personal service or within three days of service by mail. If required upon revocation, the permit holder shall turn over his or her permit to the city.

(b) **Compliance Order.** Where the cause for revocation or suspension is found to be a correctable violation of the permit, this article, or the Code or where the permit, this article, or the Code does not otherwise mandate revocation or suspension, the director may, as an alternative to revocation or suspension, issue a compliance order allowing the permit holder an opportunity to come into compliance within a reasonable period of time subject to threat of suspension or revocation. A compliance order shall set forth a description of each violation and specify the action(s) necessary to correct each violation by the date specified. A compliance order shall not be appealable and shall be served under the procedures in subsection (a).

(c) **Appeal to the City Hearing Officer.** Any decision by the Director to suspend or revoke a permit may be appealed to under the procedures in Chapter 1, Article 4 of this Code. If no appeal is filed in the time prescribed, the decision of the Director shall be final.

(d) **Appeal on Automatic or Summary Suspension.** If a permit is automatically suspended under procedures in this article, or suspended or revoked with an immediate effective date from notification, the permit holder shall have the right to an appeal within four business days and shall be given, unless waived by the permit holder, at least twenty-four hours written notice of the date, time and place of the hearing.

(e) **Stay Pending Appeal.** The filing of an appeal to the City Hearing Officer shall stay the effective date of the suspension or revocation until such time as the appeal is finally decided. Notwithstanding the above and Section 1-406, a suspension or revocation shall not be stayed during the appeal process if it is determined by the Director that immediate cessation of the permit holder's business activities under his or her permit is necessary to

protect the public's health, safety or welfare. If the effective date is not or will not be stayed pending the outcome of an appeal, the permit holder shall be notified in the notice of revocation or suspension.

(f) **New Application After Revocation.** If the permit of any person is revoked, no permit shall be granted to such person to conduct or carry on any such business within twelve months after such revocation.

(g) **Cumulative Remedy.** Any decision to revoke or suspend a permit based upon a Code violation shall be a cumulative remedy to any other remedy provided by this Code, policies adopted under this Code, or by law.

(h) **Monies Owed Payable Upon Revocation.** In the event a permit is revoked, all sums owed the city shall immediately become due and payable, and no fees and charges shall be refundable or apportioned by the city. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-416. REGULATIONS.

In addition to any specific regulations provided in this section, general requirement in this article, or regulations adopted under section 10-406, all permits are subject to, at minimum, one annual inspection by city inspectors from both the fire department and the code enforcement division, and are conditioned on compliance with all applicable federal, state and local laws (including, the code and this article).

(a) Wood Product Recyclers. (Reserved).

(b) Scrap Metal Recyclers. (Reserved).

(c) Construction and Demolition Recyclers. (Reserved).

(d) Household Product Recyclers/Redemption Centers. (Reserved).

(e) Tire Recyclers. (Reserved).

(f) Hazardous Material Recyclers. (Reserved).

(g) Solid Waste Facilities (Reserved).

(h) Auto Wrecking and/or Dismantling Facilities. (Reserved).

(i) Automobile Parts and Materials Recyclers. (Reserved).

(j) Transit Stations. (Reserved). (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-417. MONITORING AND REPORTING REQUIREMENTS.

(a) **Monitoring.** The permit holder shall establish a program to monitor its operations to ensure compliance with the Code and this article. The monitoring program shall be described in the operational plan submitted under Section 10-410.

(b) **Self-Certifications.** All permit holders shall on a quarterly basis, on the last day of March, June, September, and December, file with the city a self-certification that they have inspected their operations and operational plans and that they are in compliance with all

provisions of this article. Failure to file a self-certification and/or the filing of a self-certification with inaccurate information is a violation of this article and the Code subject to all remedies provided in this article and the Code for violations of the Code and/or this article.

(c) **Reporting.** All permit holders shall report violations of the conditions of their permits, this article or the Code, related to their operations, to the city within five calendar days, or within twenty-four hours if the violation presents an imminent threat to the public's health and safety, specifically including, but not limited to, fires or hazardous spills. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-418. ENFORCEMENT.

(a) **Inspections.**

(1) **Random inspections.** As a condition of the permit, all permit holders under this article shall allow any city inspector or enforcement officer on to their premises to conduct inspections at any time during the permit holder's normal business hours. Permit holders are required to make documents related to their operations and their permit available for inspections.

(2) **Regular inspections.** All permit holders under this article shall allow city inspectors to conduct regular inspections of their operations as a condition of the permit as provided in Section 10-416 or policies adopted under Section 10-406. If required under Section 10-416 or under policies adopted pursuant to Section 10-406, permit holders shall also make documents related to their operations available during inspections.

(b) **Notice of Non-Compliance.** If, after an inspection, the city inspector or officer finds that the permit holder has violated the conditions of their permit or other requirements under this article or the Code, and it is determined to be a correctable violation, the city may issue a notice of non-compliance advising the permit holder of the violation and how it may be remedied with a deadline for correction. The notice of non-compliance shall be served by regular mail to the address provided in the permit holder's application. A notice of non-compliance is not an enforceable order and is not appealable, but may be used to provide proof of notice for purposes of enforcement under this article or the Code.

(c) **Compliance Orders.** If, after an inspection, the city inspector or officer finds that the permit holder has violated the conditions of their permit or other requirements under this article or the Code, and the violation is determined to be correctable, the city may issue an order of compliance pursuant to Section 10-414.

(d) **Suspension or Revocation.** If, after an inspection, the city inspector or officer finds that the permit holder has violated the conditions of their permit or other requirements under this article or the Code, the city may suspend or revoke the permit pursuant to Section 10-414.

(e) **Penalties.** If, after issuing an order of compliance, the permit holder has failed to meet the schedule for achieving compliance and or the conditions provided in the order of compliance, and the permit holder is in violation of the conditions of their permit or other

requirements under this article or the Code, the city may impose administrative civil penalties upon the permit holder of up to twenty-five hundred dollars ($2500) per day per violation until the permit holder complies with the conditions in the permit and or the requirements of this article or the Code.

(f) **Automatic Suspension.** (Reserved).

(g) **Automatic Revocation.** (Reserved). (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-419. REMEDIES.

In addition to the enforcement tools provided in Section 10-418, any violation of this article shall be a public nuisance and may be enforced or abated under the Public Nuisance Abatement Ordinance (Chapter 10, Article 6). Any contrary provisions of the above or the Code notwithstanding, the following remedies are available for violations of the conditions of a permit or this article:

(a) **Abatement.** The city may abate violations of an order of compliance, conditions of a permit and/or this article. Absent an imminent threat to the public's health and safety, the city must serve the permit holder and the property owner with an order of abatement prior to abating the violation. An order of abatement must be served by certified mail at least eighteen days before the city abates. An order of abatement may be appealed to the City Hearing Officer under Article 4 of Chapter 1. An abatement order, if reasonably necessary, may order the cessation and/or suspension of continued operations, may limit operations, or may suspend limit occupancy of the operational facilities and/or property.

(b) **Civil.** The City Attorney may file a civil lawsuit to enforce this article.

(c) **Criminal.** Any violation of this article is a misdemeanor and the violator may be cited under Section 1-304. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-420. COST AND PENALTY RECOVERY.

Any and all unrecovered costs incurred by the city or unrecovered civil penalties imposed by the city under this article may be recovered under the Cost and Penalty Recovery Ordinance (Chapter 1, Article 5). In addition to any other costs that may be collected under the Cost and Penalty Recovery Ordinance and notwithstanding any provisions of the Cost and Penalty Recovery Ordinance to the contrary, the city may recover any and all costs incurred to suppress a fire at a recycling and/or solid waste facility covered by this article when the fire involves the recycling or solid waste materials or product. Fire suppression costs may be recovered in the above circumstances regardless of whether or not: the facility is permitted, the facility is in violation of this Code, or the facility operator created, caused, committed or maintained the fire. The facility operator will not be liable for fire suppression costs as provided above if he or she can prove by a preponderance of the evidence that the cause of the fire was outside of his or her control. (Added Ord. 2003-100, § 2, eff. 1-18-04).

SEC. 10-421. CUMULATIVE REMEDIES.

Any remedy provided under this article is cumulative to any other remedy provided in equity or at law.
(Added Ord. 2003-100, § 2, eff. 1-18-04).

ARTICLE 5 FIRE PREVENTION*

Sec. 10-50100. Adoption of the California Fire Code.
Sec. 10-50101.1. Title.
Sec. 10-50101.1.1. Fire Zones.
Sec. 10-50101.6. Limits Established by Law.
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Sec. 10-50103.4. Responsibility for Enforcement.
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Sec. 10-50304.4. Recycling and Waste Handling Facilities.
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Sec. 10-50503.7. Electrified Security Fences.
Sec. 10-50505.1. Premises Identification.

***Editor's note—**Ord. 2022-037, §§ 2, 3, effective November 29, 2022, repealed the former Art. 5, §§ 10-50100—1058103, and enacted a new Art. 5 as set out herein. The former Art. 5 pertained to similar subject matter and derived from Ord. 2019-044, adopted December 11, 2019; and Ord. 2022-009, adopted June 20, 2022. Subsequently, Ord. 2025-039, §§ 2, 3, adopted September 25, 2025, and effective October 31, 2025, repealed the former Art. 5, §§ 10-50100—1058103, and enacted a new Art. 5 as set out herein. The former Art. 5 pertained to similar subject matter and derived from Ord. 2022-037, § 3, adopted November 29, 2022; Ord. 2024-018, §§ 1, 2, effective July 27, 2024.

Sec. 10-50506.1. Where Required.
Sec. 10-50510.1. Emergency Responder Communications Enhancement Systems.
Sec. 10-50807.5.1.3. Wood Use in Places of Religious Worship.
Sec. 10-50901.4.5. Additional Fire Protection Systems.
Sec. 10-50903.1.2. Determination of Building Area.
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Sec. 10-50903.3.1. Installation Requirements.
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Sec. 10-50903.3.9. Floor Control Valves.
Sec. 10-50903.6. Where Required in Existing Buildings and Structures.
Sec. 10-50907.1.2. Fire Alarm Shop Drawings.
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Sec. 10-50912.4.4. Address Identification.
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Sec. 10-50917.2. Group E Occupancies.
Sec. 10-51025.6. Maintenance of Luminous Egress Path Markings.
Sec. 10-51104.1.1. Door Swing.
Sec. 10-51104.1.2. Door Hardware.
Sec. 10-511205.1. Solar Photovoltaic Power Systems.
Sec. 10-502205.1.1. Dust Hazard Analysis.
Sec. 10-52306.2.3. Above-Ground Tanks Located Outdoors, Above Grade.
Sec. 10-52401.4. Location.
Sec. 10-52811.1. Scope.
Sec. 10-52811.2. Storage Site.
Sec. 10-52811.3. Size of Piles.
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Sec. 10-52811.6. Pile Separation.
Sec. 10-52811.7. Pile Fire Protection.
Sec. 10-52811.8. Fire Extinguishers.
Sec. 10-52811.9. Exterior Storage of Recycled Materials and Industrial Waste.
Sec. 10-55602.2. Fireworks Ordinance.
Sec. 10-55602.4. General Prohibition Against Possession, Sale, Use and/or Display of Fireworks.
Sec. 10-55601.3. Prohibition of Explosives.
Sec. 10-55704.2.9.6.1. Locations Where Above-Ground Tanks are Prohibited.
Sec. 10-55704.3.5.1. Basement Storage.
Sec. 10-55706.2.4. Permanent and Temporary Tanks.
Sec. 10-56101.3. Construction Documents.
Sec. 10-50B103.4. Additional Modifications.
Sec. 10-50C103.4. Additional Modifications.
Sec. 10-50D105.1. Where Required.
Sec. 10-5R309. Automatic Fire Sprinkler Systems.
Sec. 10-5R329. Solar Energy Systems.
Sec. 10-58-103. Historic Buildings.

ADMINISTRATION

SEC. 10-50100. ADOPTION OF THE CALIFORNIA FIRE CODE.

100. Adoption of the California Fire Code. The 2025 California Fire Code, as promulgated by the California Building Standards Commission, which incorporates the adoption of the 2024 edition of the International Fire Code as amended with necessary California amendments, and the 2024 International Fire Code, including Appendix Chapters E and F, are hereby adopted and amended by the City of Fresno for the purpose of prescribing regulations governing conditions hazardous to life and property, protection from fire, hazardous materials, or explosions, except such portions as fully as if set out at length herein. The Council does hereby find it is reasonably necessary to make certain changes and modifications to the requirements contained in the rules and regulations adopted pursuant to Sections 17922 et seq., and 18935 et seq., of the California Health and Safety Code; such change or modifications are herein more particularly set forth.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50101.1. TITLE.

101.1. Title. This code shall be known as the Fresno Fire Code, may be cited as such, and shall be referred to herein as "this Code." When used here, "CFC" means the 2025 California Fire Code, with such amendments as adopted by the State of California and the 2024 International Fire Code, including appendix Chapters E and F, as adopted and amended in this article.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50101.1.1. FIRE ZONES.

101.1.1. Fire Zones. For the purpose of this Code, the entire city shall be divided into three fire zones classified and known as Fire Zone No. 1, Fire Zone No. 2, and Fire Zone No. 3. The boundaries and limits of each such Fire Zone are shown upon a map designated City of Fresno Official General Plan Land Use and Circulation Map, Fresno, California, dated March 4, 2025, consisting of one sheet on file in the office of the fire code official, which with any amendments thereto, is hereby adopted and made a part of this chapter as though fully set forth herein.

Whenever in this Code reference is made to any Fire Zone, such reference shall be construed to mean one of the Fire Zones designated on said map and amendments thereto.

Fire Zone No. 1 shall consist of the area generally identified as the "Downtown Neighborhood, Downtown General, Downtown Core," bounded by the eastern edge of State Highway 99, the southern edge of State Highway 180 and the western edge of State Highway 41 where each of the noted highways intersect one another.

Fire Zone No. 2 shall consist of the remaining area generally identified as the western edge of Van Ness Ave where it intersects with State Highway 180 off ramp, the southern edge of Belmont Ave where it intersects with Van Ness Ave and Pacific Ave, the eastern edge of

Pacific Ave, the Eastern Edge of Teilman Ave, the northern edge of Whitesbridge Ave, the western edge of Fruit Ave, terminating where Fruit Ave intersects with Dunn Ave. Fire Zone No. 2 shall also consist of the area bounded by the western edge of H St. where it intersects with Monterey St., the northern edge of Los Angeles St., the northern edge of Butler Ave, to where Butler Ave intersects with O St. The western edge of O St. to where it intersects with San Benito St., the southern edge of San Benito St. to where it intersects with H St. on the map not included in Fire Zone No. 1.

Fire Zone No. 3 shall consist of the remaining areas not included in Fire Zone No. 1 or Fire Zone No. 2.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50101.6. LIMITS ESTABLISHED BY LAW.

101.6. Limits established by law. The limit(s) referred to in Chapter 56 and Sections 5704 (et al.) and 6104 (et al.) of the California Fire Code shall mean those locations noted by Fire Department Policy and the California Fire Code, whichever is the most restrictive.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50102.3. CHANGE OF OCCUPANCY.

102.3. Change of use or occupancy. A change of use or occupancy shall not be made unless the use or occupancy is made to comply with the requirements of this code, the Fresno Fire Code, and the California Existing Building Code as applicable. Where approved by both the fire code official and the building code official, a change of occupancy shall be permitted without complying with the requirements of this code and the California Existing Building Code, provided that the new or proposed use or occupancy is less hazardous, based on life and fire risk, than the existing use or occupancy.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50102.6. HISTORIC BUILDINGS.

102.6. Historic buildings. The provisions of this Code relating to the construction, alteration, repair, enlargement, restoration, relocation, or moving of buildings or structures shall not be mandatory for existing historic buildings or structures identified and classified by the state or local jurisdiction as historic buildings where such buildings or structures do not constitute a distinct hazard to life or property. Fire protection in designated historic buildings shall be provided in accordance with Section 1103.1.1 and Part 8 of Title 24 of the 2025 California Historic Building Code, as amended by this ordinance.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50103.1. CREATION OF AGENCY.

103.1. Creation of agency. The City of Fresno Fire Department - Fire Prevention Division is hereby created and the sworn official in charge thereof shall be known as the fire code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Whenever the terms "department of fire prevention," "fire prevention bureau," "fire prevention division," "community risk reduction unit," or "prevention, support, and technical services division," are used in this Code or the Fresno Municipal Code, the terms shall mean those sworn personnel assigned to, and engaged in, the prevention or investigation of fire on behalf of the City of Fresno Fire Department.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50103.4. RESPONSIBILITY FOR ENFORCEMENT.

103.4. Responsibility for enforcement. Enforcement of building standards and other fire protection and life safety requirements adopted by the State Fire Marshal and published in the California Building Standards Code relating to fire, life, and panic safety, and other regulations of the State Fire Marshal, shall be the responsibility of the fire code official. This responsibility includes all new and existing buildings, and R-3 occupancies, including one- and two-family dwellings.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.5. REQUIRED OPERATIONAL PERMITS.

105.5. Required Operational Permits. The fire code official is authorized to issue operational permits for the operations set forth in Section 105.5.1 through Section 105.5.60. Required permits will only be issued for those operations where a permit fee has been established by Master Fee Schedule resolution.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.5.15. EXHIBITS, TRADE SHOWS AND SPECIAL EVENTS.

105.5.15. Exhibits, Trade Shows, and Special Events. An operational permit is required to operate exhibits, trade shows, and special events.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.5.17. FIRE HYDRANTS AND VALVES.

105.5.17. Fire Hydrants and valves. An operational permit is required to use or operate fire hydrants or valves intended for fire suppression purposes that are installed on water systems and provided with ready access from a fire apparatus access road that is open to or generally used by the public, accessible to public roadways, alleys, or public utility easements on private property. Such permit shall be obtained from the Water Division of the Department of Public Utilities of the City, or person responsible for the provision of water to such fire hydrants or water systems within a waterworks district. See also Section 901.8.

Exception: A permit is not required for authorized employees of the water company that supplies the system or fire department personnel to use or operate fire hydrants or valves.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.5.33. MISCELLANEOUS COMBUSTIBLE STORAGE.

105.5.33 Miscellaneous combustible storage. An operational permit is required to store in any building or on any premises in excess of 2,500 cubic feet (71 m3) gross volume of combustible empty packing cases, boxes, barrels or similar containers, combustible pallets, rubber tires, rubber, cork or similar combustible material.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.5.36. OPEN BURNING.

105.5.36. Open Burning. An operational permit is required for any open burning, including for the kindling or maintaining of an open fire or a fire on any public street, alley, road, or other public or private ground, including recreational fires. Instructions and stipulations of the permit shall be adhered to and complied with.

An operational permit may only be issued by the fire code official after the appropriate permit has been issued to the applicant from the San Joaquin Valley Air Pollution Control District.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.5.60. EXTERIOR STORAGE.

105.5.60. Exterior Storage. An operational permit is required for the exterior storage of more than 4,999 square feet of combustible empty packing cases, bin boxes, boxes, barrels or similar containers, pallets, rubber tires, rubber, cork or similar combustible material, wood or plastic products, other combustible finished materials, wood chips, hogged material, fines, compost, recycled materials, industrial waste, or similar products.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.6. REQUIRED CONSTRUCTION PERMITS.

105.6. Required Construction Permits. The fire code official is authorized to issue construction permits for work as set forth in Section 105.6.1 through Section 105.6.25. Required permits will only be issued by the fire code official for work where a permit fee has been established by Master Fee Schedule resolution.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.6.1. AUTOMATIC FIRE-EXTINGUISHING SYSTEMS.

105.6.1. Automatic fire-extinguishing systems. A construction permit is required for installation of, alteration of, or modification to an automatic fire-extinguishing system, other than an automatic sprinkler system. Maintenance performed in accordance with this code is not considered to be a modification and does not require a permit.

105.6.2. Automatic sprinkler systems. A construction permit is required for installation of, alteration of, or modification to an automatic sprinkler system. Maintenance performed in accordance with this code is not considered to be a modification and does not require a permit.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50105.6.15. LP-GAS.

105.6.16. LP-gas. A construction permit is required for the installation of or any modification to any LP-gas system or tank with a capacity (single or in aggregate) in excess of 124 gallons. Maintenance performed in accordance with this code is not considered to be a modification and does not require a permit.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50106.1.2. STAMPS.

106.1.2. Stamps. The fire code official may require fire protection system construction documents to be stamped by an approved, State of California registered, Fire Protection Engineer, or other fire code official approved Technical Specialist. This requirement shall be applied at the sole discretion of the fire code official.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50106.1.3. APPROVALS.

106.1.3. Approvals. The process described in section 106.1.2 shall only be permitted after the fire code official has approved the engineer or specialist, and the engineer or specialist has demonstrated that they possess the technical ability to evaluate fire protection system designs and have the proper background and experience.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50108.4. WORK COMMENCING BEFORE PERMIT ISSUANCE.

A person who commences any work, activity or operation regulated by this code before obtaining the necessary permits shall be subject to a penalty or fee as established by the applicable governing authority, which shall be in addition to the required permit fees.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50108.7. FEES FOR FIRE INSPECTIONS.

108.7. Fees for fire inspections. The fire code official shall be authorized to charge a fee for any fire inspections of any existing building, facility, site, structures, or property within the City of Fresno. Fees for such services shall be in accordance with the adopted Master Fee Schedule.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50109.1.1. INSPECTION FREQUENCY.

109.1.1. Inspection Frequency. The fire code official is authorized to establish a minimum inspection frequency for all occupancy groups where not already determined by the State of California Health and Safety Code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50111.2. SERVICE UTILITIES.

111.2. Authority to require connection to service utilities. The fire code official shall have the authority to require connection of utility services from any building, structure or system to a recognized service utility provider in order to ensure the health and safety of occupants and the preservation of the structure. Utility services may include, but are not limited to, water service, electrical service, gas service, or any other utility service. The fire code official may refuse to issue any permits until the owner of the property, building, structure or system provides proof of connection to the utility service.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50112. MEANS OF APPEALS.

112.1. Board of appeals established. In order to hear and decide appeals of orders, decisions, or determinations made by the fire code official relative to the application and interpretation of the Fresno Fire Code, there shall be and is hereby created a board of appeals (hereafter referred to as the "Building Standards Appeals Board") consisting of members who are qualified by experience and training to pass on matters pertaining to building construction and hazards of fire, explosions, hazardous conditions, or fire protection systems, who are not employees of the City of Fresno.

The Building Standards Appeals Board shall perform the following appeal duties:

a) Determine the suitability of alternate materials, engineering designs, methods of construction, and equipment.

b) Provide reasonable interpretations of the provisions of the Fresno Fire Code and other relevant codes.

Exception: Appeals of administrative citations, fees, penalties, or charges that may be levied by the fire department such as emergency response, fire suppression costs, mitigation costs, clean-up costs, inspection or re-inspection charges, false alarm charges, or failure to comply with written citations or notices, shall comply with Fresno Municipal Code, Chapter 1, Article 4.

The building official shall serve as an ex officio member of and shall act as secretary to said board but shall have no vote on any matter before the board. The Building Standards Appeals Board shall be appointed by the Mayor and shall hold office at the pleasure of the Mayor.

The Building Standards Appeals Board shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with a duplicate copy to the fire code official.

112.2. Limitations on authority. The Building Standards Appeals Board shall have no authority to interpret the administrative provisions of this code. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or an equivalent or better form of construction is proposed. An economic condition shall not be considered as a valid basis for an appeal of the provisions of this Code. The board shall not have authority to waive requirements of this code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50113.3.1. SERVICE.

113.3.1. Service. A notice of violation issued pursuant to this code shall be served on the owner, the owner's authorized agent, operator, occupant or other person responsible for the condition or violation, either by personal service, mail or by delivering the same to, and leaving it with, some person of responsibility on the premises. For unattended or abandoned locations, a copy of such notice of violation shall be posted on the premises in a conspicuous place at or near the entrance to such premises and the notice of violation shall be mailed by certified mail with return receipt requested or a certificate of mailing, to the last known address of the owner, the owner's authorized agent, or occupant. The fire code official is authorized to issue an administrative citation for abatement of violations of this code in accordance with Fresno Municipal Code, Chapter 1, Article 3 and Fire Department Policy.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50113.4. VIOLATION PENALTIES.

113.4. Violation penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair, or do work in violation of the approved construction documents or directive of the fire code official, or of a permit or certificate issued or used under provisions of this code shall be guilty of a misdemeanor. Upon failure to comply with a written notice of violation, the fire code official is authorized to impose penalties and or seek legal action in accordance with Fresno Municipal Code, Chapter 1, Article 3. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

113.4.1. Abatement of Violation. In addition to the imposition of the penalties herein described, the fire code official is authorized to institute appropriate action to prevent unlawful construction or to restrain, correct or abate a violation; or to prevent illegal occupancy of a structure or premises; or to stop an illegal act, conduct of business or occupancy of a structure on or about any premises. Such action is subject to the cost recovery provisions of Section 112.5, et al.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50113.5. COST RECOVERY.

113.5. Cost Recovery. The fire code official (or designee) is authorized to recover any direct or indirect costs for fire prevention activities, fire suppression, hazardous material incident response, and protection of the public from fire and life safety hazards.

113.5.1. Fire prevention cost recovery. Any person who fails to, or refuses to, correct, within the time allotted for correction, any fire hazard prohibited by code, regulation, ordinance or law, for which a public agency has issued a notice of violation or correction respecting the hazard, or failure to comply with a written notice of violation is liable for the fire prevention costs, and any other costs, incurred in furtherance of the abatement of the fire hazard, and those costs shall be a charge against that person.

113.5.2. Fire suppression cost recovery. Any person who causes a fire, sets a fire, allows a fire to be set, or allows a fire kindled or attended by him or her to escape onto any public or private property, is liable for the fire suppression costs, rescue or emergency medical services costs, and any other costs incurred as a result of fighting the fire.

113.5.3. Hazardous materials release cost recovery. Any person who releases a hazardous material, allows a hazardous material to be released, causes, or allows a hazardous material attended by him or her to escape onto any public or private property, is liable for the hazardous material incident response, rescue or emergency medical services costs, and any other costs incurred as a result of responding to the hazardous material release.

113.5.4. Protection of the public cost recovery. Any person who creates a fire or life safety hazard to the public, allows a fire or life safety hazard to the public, causes, or allows a fire or life safety hazard to the public to escape onto any public or private property, is liable for the life or fire safety hazard incident response, rescue or emergency medical services costs, and any other costs incurred as a result of responding to the life or fire safety hazard to the public.

113.5.5. Action and administration. Cost recovery actions and administration pursuant to this section shall be as set forth in Fresno Municipal Code, Chapter 1, Article 5, and the Master Fee Schedule.

113.5.6. Hearings. Cost recovery hearings shall be conducted as set forth in Fresno Municipal Code, Chapter 1, Article 4.

113.5.7. Other laws. The provisions of this section shall not be deemed to nullify or prevent the application, either cumulatively, concurrently, or separately, of the provisions of the California Health and Safety Code or any other law related to liability, cost recovery, civil, criminal or administrative action.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50114.4. FAILURE TO COMPLY.

114.4. Failure to Comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be subject to an administrative citation, and/or other judicial or administrative action in accordance with Section 112.4 et al.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50115.1. GENERAL.

115.1. General. If during the inspection of a premises, a building or structure, or any building system, in whole or in part, constitutes a clear and inimical threat to human life, safety or health, the fire code official shall issue such notice or orders to remove or remedy the conditions as shall be deemed necessary in accordance with this section, and shall refer the building to the building official for any repairs, alterations, remodeling, removing, removal, or demolition as may be required by Fresno Municipal Code, Chapter 11, Article 4, Dangerous Building Regulations.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

DEFINITIONS

SEC.10-50202. GENERAL DEFINITIONS.

FIRE CODE OFFICIAL. The chief fire officer charged with the administration and enforcement of the code, or a duly authorized representative.

FIRE DEPARTMENT BYPASS KEY. An approved key used by authorized emergency services personnel to bypass secured access locations.

FIRE MARSHAL. A chief fire officer of the fire department or a duly authorized representative, who is charged with either the prevention or investigation of fires.

RECYCLING AND INDUSTRIAL WASTE. Any material which has been recycled, including post-consumer or industrial waste, wood by-products or other similar products.

RECYCLING AND INDUSTRIAL WASTE HANDLING FACILITY. Any site, building or facility that stores, manufactures, processes, or handles wood by-products, recycled materials, including post-consumer waste, industrial waste, or other similar materials.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

COMBUSTIBLE WASTE MATERIAL

SEC. 10-50304.4. RECYCLING AND WASTE HANDLING FACILITIES.

304.4. Recycling and waste handling facilities. See Chapter 28 of the Fresno Municipal Code for specific requirements related to recycling and industrial waste handling facilities. Recycling and industrial waste handling facilities shall also be in accordance with all applicable fire department policies.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50304.5. DUMPING OF COMBUSTIBLE WASTE MATERIAL.

304.5. Dumping of combustible waste material. No owner or occupant of any lot, site or premises shall maintain thereon any rubbish or waste material likely to become easily ignited, and, provided further, no person shall place, deposit, or leave any, metallic cans containing combustible materials, combustible waste, or rubbish on any property not owned or controlled by such person or persons.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50304.6. REMOVAL OF DEBRIS.

304.6. Removal of debris. Any person having in their possession or under their control, upon any premises, any kind of materials, which have been rendered useless or unmerchandisable by reasons of any fire on the premises, or any other debris resulting from such fire, must commence to remove the same from the premises within 24-hours after notice to do so from the fire code official, and must thereupon proceed with and diligently carry on the work of such removal until the same has been completed.

304.7. Failure to comply. Any person who shall discontinue the removal of debris after having been served with a notice or order to remove said debris, shall be subject to an administrative citation, or other judicial or administrative action in accordance with Section 112.4 et al.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50307.1.1. PROHIBITED OPEN BURNING.

307.1.1. Prohibited open burning. Notwithstanding other provisions in Section 307, open burning is prohibited as follows:

1. Open burning that is offensive or objectionable because of smoke emissions or when atmospheric conditions or local circumstances make such fires hazardous shall be prohibited.
2. Open burning in violation of the rules or regulations promulgated by the San Joaquin Valley Air Pollution Control District.

The fire code official (or designee) is authorized to order, or effect, the immediate extinguishment of any open burning when in the opinion of the fire code official (or designee), it is reasonably necessary for safety or the protection of life and health and may issue administrative citations and seek to recover costs in accordance with Sections 113.5 et al. of this Code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50311.1.1. ABANDONED PREMISES.

311.1.1. Abandoned premises. Buildings, structures and premises for which an owner cannot be identified or located by dispatch of a certificate of mailing to the last known or registered address, which persistently or repeatedly become unprotected or unsecured,

which have been occupied by unauthorized persons or for illegal purposes, or which present a danger of structural collapse or fire spread to adjacent properties shall be considered to be abandoned, declared unsafe and abated by demolition or rehabilitation in accordance with the International Property Maintenance Code, the California Building Code and the Fresno Municipal Code, Chapter 11, Article 4 (Dangerous Building Ordinance).
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50312.1. GENERAL.

312.1. General. Vehicle impact protection required by this code shall be provided by posts that comply with Section 312.2 or by other approved physical barriers that comply with 312.3.

Exception: Fire hydrants may be protected in accordance with City of Fresno Public Works Standard W-23 (Fire hydrant installation with protector posts).
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50315.4.3. ADDITIONAL REQUIREMENTS FOR OUTSIDE STORAGE.

315.4.3. Additional requirements for outside storage. Outside storage shall be in compliance with the operational permit requirements of Section 105 as applicable. Exterior storage of tires shall be in accordance with Chapter 34. Outside storage of recycled materials, industrial waste, plastic or wooden finished products, baled material or other similar products shall be in accordance with Chapter 28 and fire department policy. Outdoor storage at sites that store, manufacture, process or handle wood by-products, recycled materials, industrial waste, and other similar materials shall be in accordance with Chapter 28. Outside storage shall be provided with an approved water supply for firefighting purposes in accordance with Section 507.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

EMERGENCY PLANNING AND PREPAREDNESS

SEC. 10-50403.1. GENERAL.

403.1 General. In addition to the requirements of Section 401, occupancies, uses and outdoor locations shall comply with the emergency preparedness requirements set forth in Sections 403.2 through 403.10.6. Where a fire safety and evacuation plan is required by Sections 403.2 through 403.10.6, evacuation drills shall be in accordance with Section 405 and employee training shall be in accordance with Section 405. Evacuation plans, diagrams, and signage required by this section shall be prepared using the symbology in the currently adopted edition of NFPA 170. The edition of NFPA 170 used shall be noted on the construction documents.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

FIRE SERVICE FEATURES

SEC. 10-50503.7. ELECTRIFIED SECURITY FENCES.

503.7. Electrified security fences. Electrified security fences shall be approved prior to installation and shall be installed in accordance with requirements noted in the California Civil Code and fire department policy.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50505.1. PREMISES IDENTIFICATION.

505.1 Address identification. New and existing buildings shall be provided with approved address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property. Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Each character shall be not less than 4 inches (102 mm) high with a minimum stroke width of 1/2 inch (12.7 mm) unless larger characters are specified by Planning and Development Policy 02-111 and/or Policy G-002. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. The requirements of Fresno Municipal Code Section 12-1300 et seq. shall be followed. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50506.1. WHERE REQUIRED.

506.1. Where required. Where access to or within a structure or an area is restricted because of secured openings or where immediate access is necessary for lifesaving or fire-fighting purposes, the fire code official is authorized to require a key box to be installed in an approved location. The key box shall be of an approved type listed in accordance with UL 1037 and shall contain keys to gain necessary access as required by the fire code official. Installation requirements and key box contents shall be in accordance with fire department policy.

506.1.1 Locks. An approved lock or remote opening device shall be installed on gates or similar barriers where required by the fire code official in accordance with fire department policy.

506.1.1.1 Unlawful possession of fire department bypass key. It shall be unlawful for any person other than those authorized by the fire code official to possess a fire department bypass key.

506.1.1.2 Unlawful duplication of fire department bypass key. No person shall duplicate a fire department bypass key unless approved by the fire code official.

506.1.1.3 Penalties. Any person who shall violate either section 506.1.1.1 or 506.1.1.2 shall be guilty of a misdemeanor. Prosecution of such violations shall be in accordance with the California Penal Code.

506.2. Key box maintenance. The owner or operator of the building or premises shall immediately notify the fire code official and provide the new key where a lock is changed or rekeyed. The key to such lock shall be secured in the key box.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50510.1. EMERGENCY RESPONDER COMMUNICATIONS ENHANCEMENT SYSTEMS.

510.1 Emergency responder communications enhancement systems in new buildings. Approved in-building emergency responder communications enhancement system (ERCES) for emergency responders shall be provided in all new buildings. In-building ERCES within the building shall be based on the existing coverage levels of the public safety communications systems utilized by the jurisdiction, measured at the exterior of the building. The ERCES, where required, shall be of a type determined by the fire code official and the frequency license holder(s). This section shall not require improvement of the existing public safety communications systems.

Exceptions:

1. Where approved by the [deletion of BO] fire code official, a wired communications system in accordance with Section 907.2.13.2 shall be permitted to be installed or maintained instead of an approved communications coverage system.
2. Where it is determined by the fire code official that the communications coverage system is not needed.
3. In facilities where emergency responder communications coverage is required and such systems, components or equipment required could have a negative impact on the normal operations of that facility, the fire code official shall have the authority to accept an automatically activated emergency responder communications coverage system.
4. One- and two-family dwelling units as defined in the California Residential Code.
5. Buildings of any construction type permitted by the California Building Code that are 50,000 square feet or less, and are less than 30' feet in height, with no storage or parking below the lowest level of fire apparatus access.
6. Buildings where an approved pre-construction emergency communications study, and a final field emergency communications study, both validate and provide confirmation that the required City of Fresno radio strengths are available. The pre-construction emergency communications study and the final field emergency communications study shall be provided where required by the fire code official.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

DECORATIVE MATERIALS OTHER THAN DECORATIVE VEGETATION IN NEW AND EXISTING BUILDINGS

SEC. 10-50807.5.1.3. WOOD USE IN PLACES OF RELIGIOUS WORSHIP.

807.5.1.3. Wood use in places of religious worship. In new and existing places of religious worship, wood used for ornamental purposes, trusses, paneling or chancel furnishing shall be allowed where such material meets the flame spread requirements found in Table 803.3. (Added Ord. 2025-039, § 3, eff. 10-31-25).

FIRE PROTECTION SYSTEMS

SEC. 10-50901.4.5. ADDITIONAL FIRE PROTECTION SYSTEMS.

901.4.5. Additional fire protection systems. In occupancies of a hazardous nature, or where any special hazards exist in addition to the normal hazards of the occupancy, or where the fire code official determines that access for fire apparatus is unduly difficult, the fire code official shall have the authority to require additional safeguards and fire protection systems. Fire protection and life safety systems required under this section shall be installed in accordance with this code and the applicable, adopted referenced standards. Fire protection equipment or systems required under this section shall be installed in accordance with this code and the applicable, adopted referenced standards and shall be considered a required system as noted in section 901.4.1.

901.4.6.1 Removal of prohibited equipment. Any device that is prohibited by section 901.4.6 shall be immediately removed upon written order of the fire code official.

901.4.6.2 Prohibited fire protection system equipment. The fire code official shall have the authority to prohibit the installation, use, etc., of any piece of fire protection system equipment, regardless of the listing or approval of the equipment. Prohibited equipment shall not be installed in any fire protection system.

901.4.7.5 Additional requirements. In addition to the requirements found in 901.4.7, all fire pump rooms shall comply with fire department policy.

901.6.3.1 Records reporting. All inspection, testing and maintenance reports required by any code, regulation, or adopted referenced standard shall be forwarded to the fire code official using approved electronic media to an approved, designated third party. The fire code official is hereby authorized to approve and designate a third party to receive these reports. Paper (hard copy) reports are not permitted. Records shall be provided in such form and detail as required by the fire code official where not otherwise designated by the California State Fire Marshal.

901.9.1 Termination of water service. For water supply service to any piece of fire protection system equipment required by this code, notice shall be made to the fire code official whenever water service is terminated. Notice shall be made in writing by the provider of the water service being terminated.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.1.2. DETERMINATION OF BUILDING AREA.

903.1.2. Determination of building area. For purposes of determining building area for automatic sprinkler system requirements, the following criteria shall be used:

1. Fire walls, fire barriers, fire partitions, or horizontal fire assemblies as defined in this Code shall not be considered to create separate buildings or fire areas for determining automatic sprinkler requirements.

   Exceptions:

   (a) Party walls located on a lot line between two buildings in accordance with California Building Code, Section 706 with no openings between the buildings.

   (b) Fire walls installed in accordance with California Building Code, Section 706 with no openings, and with specific fire wall requirements in Section 903 of this Code based on occupancy.

2. Determination of building area for combustible construction shall be measured to the building perimeter roof dripline, including any architectural features. Architectural features include, but are not limited to, mansards, towers, porte cocheres, etc., with the exception of 44" maximum depth roof eaves.

3. For non-combustible construction, building area shall include all perimeter roof areas exceeding 44" that are required by the currently adopted edition of the California Building Code or NFPA 13 to have fire sprinkler protection under the projection. The area of open shafts or courts need not be included in calculating floor area. When multiple buildings are considered as one building per California Building Code Section 705.3, the combined floor areas shall be used to determine the automatic sprinkler system requirements.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.2. WHERE REQUIRED.

903.2 Where required. Approved automatic sprinkler systems in new buildings and structures shall be provided in the locations described in Sections 903.2.1 through 903.2.12 and Sections 903.2.14 through 903.2.21. Additionally, an approved automatic sprinkler system shall be installed in all new buildings or structures when the fire area is 4,999 square feet or larger in any occupancy group, including Group R occupancies. Where required to be sprinklered at a lower square footage, or based on occupancy group, use, etc. the most restrictive requirements shall apply.

Exceptions:

1. Group F-2 and S-2 occupancy buildings constructed of entirely of non-combustible construction throughout and with contents that are stored, used or manufactured that are classified as non-combustible.

2. Accessory uses in any building that, in total, do not exceed 10% of the gross building area and any single accessory use area does not exceed 2,499 square feet do not

require installation of a new automatic fire sprinkler system. As a condition of approval for use of this exception, an operational statement shall be submitted to the Planning and Development Department with the building plan permit application and the owner shall execute a covenant running with the property agreeing to the installation of the required automatic fire sprinkler system, or other approved extinguishing system, if the occupancy, use or building construction changes from the approved non-combustible limitations.

3. Detached group S-2 occupancy carports of non-combustible construction, without exterior walls, used exclusively for the parking of motor vehicles that meet the separation requirements to real and assumed property lines per Table 705.5 of the California Building Code. Installation of solar panels on the roof of such carports is permissible when using this exception.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.2.8.4. NEW MANUFACTURED HOMES.

903.2.8.4 New manufactured homes. An automatic sprinkler system shall be installed in new manufactured homes (HS Sections 18007 and 18009), and new multifamily manufactured homes with two dwelling units (HS 18008.7) in accordance with Title 25 of the California Code of Regulations.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.2.8.5. GROUP R ATTIC, OVERHEAD, AND ABOVE CEILING STORAGE ROOMS.

903.2.8.5 Group R attic, overhead and above ceiling storage rooms. When an automatic sprinkler system is, or has been, required by other provisions of this code, or the California Residential Code, for a Group R occupancy, and the building is constructed of Type V construction, the automatic sprinkler system shall be extended into all attic, overhead, or above ceiling storage rooms.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.2.8.6. GROUP R GARAGE STORAGE ROOMS.

903.2.8.6 Group R garage storage rooms. When an automatic sprinkler system is, or has been, required by other provisions of this code, or the California Residential Code, for a Group R occupancy, and the building is constructed of Type V construction, the automatic sprinkler system shall be extended into all garage storage rooms.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.3.1. INSTALLATION REQUIREMENTS.

903.3.1. Standards. Automatic sprinkler systems shall be designed and installed in accordance with Sections 903.3.1.1, unless otherwise permitted by Sections 903.3.1.2,

903.3.1.3, other chapters of this code, and the requirements of the Fresno Municipal Code, as applicable. Automatic fire sprinklers or fire sprinkler systems not required by the California Building Standards Code may be of any type approved by the fire code official.

903.3.1.1. NFPA 13 sprinkler systems. Where the provisions of this code require that a building or portion thereof be equipped throughout with an automatic sprinkler system in accordance with this section, sprinklers shall be installed throughout in accordance with NFPA 13 as amended in Chapter 80 and the Fresno Municipal Code, except as provided for in sections 903.3.1.1.1 through 903.3.1.1.3.

903.3.1.1.1: Exempt locations. Automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an approved automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from a room merely because it is damp, of fire-resistance-rated construction or contains electrical equipment.

1. A room or space where sprinklers constitute a serious life or fire hazard because of the nature of the contents, as determined by the authority having jurisdiction.
2. Machine rooms, machinery spaces, control rooms, control spaces and hoistways associated with fire service access elevators in accordance with Section 3007.
3. Machine rooms, machinery spaces, control rooms and control spaces and hoistways associated with occupant evacuation elevators designed in accordance with Section 3008 of the California Building Code.
4. Spaces or areas in telecommunications buildings used exclusively for telecommunications equipment, and associated electrical power distribution equipment, provided those spaces or areas are equipped throughout with an automatic smoke detection system in accordance with Section 907.2 and are separated from the remainder of the building by not less than 1-hour fire barriers constructed in accordance with Section 707 of the California Building Code or not less than 2-hour horizontal assemblies constructed in accordance with Section 712 of the California Building Code, or both.

903.3.1.1.2. Bathrooms. In Group R occupancies, sprinklers installed per NFPA 13, shall not be required in bathrooms that do not exceed 55 square feet (5 m2) in area and are located within individual dwelling units or sleeping units, provided that walls and ceilings, including the walls and ceilings behind a shower enclosure or tub, are of noncombustible or limited-combustible materials with a 15-minute thermal barrier rating.

Exception:

1. Group R occupancies where automatic fire sprinklers are, or were, used as a substitution for any other California Building Code requirements.

903.3.1.1.2.1. Closets. In Group R occupancies, sprinklers installed per NFPA 13, shall not be required in closets that do not exceed 12 square feet (5 m2) in area and are located within individual dwelling units or sleeping units, provided that walls and ceilings are of noncombustible or limited-combustible materials with a 15-minute thermal barrier rating.

Exception:

1. Group R occupancies where fire sprinklers are, or were, used as a substitution for any other California Building Code requirements.

903.3.1.1.5. Group R Mixed Occupancy Buildings. Mixed occupancy buildings containing Group R occupancies shall be provided with automatic sprinkler systems in accordance with Section 903.3.1.1 (NFPA 13) including the sprinkler requirements for bathrooms and closets. The Group R residential portion of a mixed occupancy building shall be provided with fire sprinkler piping and control valves arranged so that the automatic sprinkler system will remain in service independent of any non-residential occupancies.

Exceptions:

1. Mixed occupancy buildings where a vertical fire barrier with no openings is provided in accordance with California Building Code, Section 707 separating the R occupancy from other uses may have automatic sprinkler systems installed in the residential portion in accordance with Sections 903.3.1.2 or 903.3.1.3 as applicable. Separate control valves shall be installed as indicated above unless otherwise approved by the fire code official.
2. Group R-1 or R-2 occupancies with accessory occupancy groups that do not require installation of fire sprinklers by Section 903.2.

903.3.1.1.6. Joint Live Work Units Quarters. Where joint live/work residential dwelling units are constructed in accordance with Fresno Municipal Code, Chapter 11, Article 7, automatic fire sprinkler systems shall be designed in accordance with Section 903.3.1.1 (NFPA 13) including the requirements for bathrooms and closets.

903.3.1.2 NFPA 13R sprinkler systems. Automatic sprinkler systems in Group R occupancies shall be permitted to be installed throughout in accordance with NFPA 13R as amended in Chapter 80 and by the Fresno Municipal Code, except where prohibited in Sections 903.3.1.1.5 and 903.3.1.1.6, and as noted below:

1. Three stories or less above grade plane.
2. The floor level of the highest story is 30 feet (9144 mm) or less above the lowest level of fire department vehicle access.
3. The floor level of the lowest story is 30 feet (9144 mm) or less below the lowest level of fire department vehicle access.

The number of stories of Group R occupancies constructed in accordance with Sections 510.2 and 510.4 of the California Building Code shall be measured from grade plane.

903.3.1.2.1. Balconies, Decks, Entryways, and Patios. Sprinkler protection shall be provided for exterior balconies, decks, ground floor patios, and entryways (enclosed on two or more sides) of dwellings, dwelling units, and sleeping units where either of the following conditions exists:

1. The building is of Type V construction, provided that there is a roof or deck above.

2. Exterior balconies, decks and ground floor patios of dwellings, dwelling units, and sleeping units are constructed in accordance with Section 705.2.3.1, Exception 3 of the California Building Code.

Sidewall sprinklers that are used to protect such areas shall be permitted to be located such that their deflectors are within 1 inch (25 mm) to 6 inches (152 mm) below the structural members and a maximum distance of 14 inches (356 mm) below the deck of the exterior balconies, decks, and entryways that are constructed of open wood joist construction.

903.3.1.2.3. Attics. Attic protection shall be provided as follows:

1. Attics that are used or intended for living purposes or storage shall be protected by an automatic sprinkler system.
2. Where fuel-fired equipment is installed in an unsprinklered attic, not fewer than one quick-response intermediate temperature sprinkler shall be installed above the equipment.
3. Where located in a building of Type III, Type IV, or Type V construction designed in accordance with Section 510.2 or 510.4 of the California Building Code, attics not required by Item 1 to have sprinklers shall comply with one of the following if the roof assembly is located more than 30 feet above the lowest level of required fire department vehicle access:
    3.1. Provide automatic sprinkler system protection.
    3.2. Construct the attic using entirely noncombustible materials.
    3.3. Construct the attic using fire retardant-treated wood complying with Section 2303.2 of the California Building Code.
    3.4. Fill the entire attic with noncombustible insulation.

The height of the roof assembly shall be determined by measuring the distance from the lowest required fire vehicle access road surface adjacent to the building to the eave of the highest pitched roof, the intersection of the highest roof to the exterior wall, or the top of the highest parapet, whichever yields the greatest distance. For the purpose of this measurement, required fire vehicle access roads shall include only those roads that are necessary for compliance with Section 503.

4. Group R-4, Condition 2 occupancy attics not required by Item 1 to have sprinklers shall comply with one of the following:
    4.1. Provide automatic sprinkler system protection.
    4.2. Provide a heat detection system throughout the attic that is arranged to activate the building fire alarm system.
    4.3. Construct the attic using noncombustible materials.
    4.4. Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the California Building Code.
    4.5. Fill the attic with noncombustible insulation.

903.3.1.2.3.1 Bathrooms. In Group R occupancies, sprinklers installed per NFPA 13R, shall not be required in bathrooms that do not exceed 55 square feet (5 m2) in area and are located within individual dwelling units or sleeping units, provided that walls and ceilings, including the walls and ceilings behind a shower enclosure or tub, are of noncombustible or limited-combustible materials with a 15-minute thermal barrier rating.

Exception:

Group R occupancies where automatic fire sprinklers are, or were, used as a substitution for any other California Building Code requirements.

903.3.1.2.3.1.2 Closets. In Group R occupancies, other than Group R-4 occupancies, sprinklers installed per NFPA 13R, shall not be required in closets that do not exceed 12 square feet (5 m2) in area and are located within individual dwelling units or sleeping units, provided that walls and ceilings are of noncombustible or limited-combustible materials with a 15-minute thermal barrier rating.

Exception:

Group R occupancies where fire sprinklers are, or were, used as a substitution for any other California Building Code requirements.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.3.5.2. RESIDENTIAL COMBINATION SERVICES.

903.3.5.2. Residential combination services. Residential combination water supplies are prohibited.

Exceptions:

1. Automatic sprinkler systems installed as noted in Section 903.3.1.3 (NFPA 13D).

2. Where approved by the fire code official.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.3.9. FLOOR CONTROL VALVES.

903.3.10 Floor control valves. Approved, supervised, indicating floor control valves and waterflow detection assemblies shall be installed at the point of connection to the riser on each floor where any of the following occur:

1. Buildings where the floor level of the highest story is located more than 30 feet above the lowest level of fire department vehicle access.

2. Buildings that are three or more stories in height.

3. Buildings that are two or more stories below the highest level of fire department vehicle access.

The building fire alarm system, dedicated function fire alarm system, and/or remote annunciator panel shall be provided at an approved location, readily accessible to the fire department and shall indicate the floor of activation of all floor control valves and waterflow detection assemblies.

Exception:

Waterflow detection and floor control valve assemblies shall not be required [in] Group R-3 and R-3.1 occupancies.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50903.6. WHERE REQUIRED IN EXISTING BUILDINGS AND STRUCTURES.

903.6 Where required in existing buildings and structures. An approved automatic sprinkler system or other approved automatic fire extinguishing system shall be provided in existing buildings and structures, including R-3 occupancies and one- and two-family dwellings, in those circumstances described in this Section and where required in Chapter 11. Installation requirements shall be as set forth for new buildings by Sections 903.2 through 903.2.21, and where applicable, the California Residential Code.

1. Building additions. When a building addition to any existing building is 1,750 square feet or more and the total proposed building area is 5,000 square feet or larger, an approved automatic sprinkler system shall be installed throughout the building. The 1,750 square foot threshold for automatic fire sprinkler installation shall be cumulative over the life of the building.

Exception: Building additions of entirely non-combustible construction and non-combustible uses such as covered pedestrian walkways.

2. One- and two-family dwelling relocations. When any existing Group R-3 building, or any one or two family dwelling is relocated, an approved automatic sprinkler system shall be installed throughout the building in accordance with 903.3.1.3 (NFPA 13D). This requirement shall supersede any exceptions found in the California Building Standards Code, including California Residential Code.

3. Change of occupancy or use. In any existing building 5,000 square feet or larger, when a change of occupancy or use in accordance with the California Building Code or the California Existing Building Code is made and the proposed new occupancy or use is more hazardous to life and safety than the existing occupancy or use, an approved automatic fire extinguishing system shall be installed throughout the building. The determination of a more hazardous use or occupancy shall be made in accordance with the California Existing Building Code and Fire Department Policy, whichever is the most restrictive.

Exceptions:

(a) If the area in which the change of occupancy or use occurs is less than 1,750 square feet of the actual floor area of the existing building and the area of the

new occupancy is 2,499 square feet or less, and an automatic sprinkler or fire extinguishing system is not required based on occupancy by Section 903, an automatic sprinkler or automatic fire extinguishing system is not required for any portion of the building. The 1,750 square foot limit is cumulative over the life of the building.

(b) If the area in which the change of occupancy or use occurs exceeds 1,750 square feet but is less than 50% of the gross floor area of the existing building, only that portion of the building changing occupancy is required to have an approved automatic sprinkler or automatic fire extinguishing system installed. An approved fire separation shall be required between portions of the building equipped with an automatic fire sprinkler or automatic fire extinguishing system and those portions without.

(c) If an individual or cumulative changes of occupancy or use exceed 50% of the gross floor area of the existing building, then the entire building shall have an approved automatic sprinkler or automatic fire extinguishing system installed throughout the building.

4. Fire Damage Repairs. An approved automatic sprinkler system shall be installed as a condition of a fire damage repair building permit as follows:

(a) When a fire occurs in any existing building or occupancy, including R-3 occupancies and one- and two-family dwelling units, and the building permit repair costs exceed 25% of the current building valuation, an automatic sprinkler system shall be installed throughout the building as required for a new building in Section 903 or R309, regardless of the building square footage.

(b) When a fire occurs in any R occupancy, including one- and two-family dwelling units, and building permit fire repair costs in the kitchen area of the dwelling unit(s) exceeds $999, a single fire sprinkler head or other approved automatic extinguishing system shall be installed in the kitchen per Fire Department Policy, regardless of the building square footage.

(c) Fire damage repair costs and building valuation shall be determined using the latest ICC Building Valuation Tables in use by the Planning and Development Department at the time of the issuance of the fire damage repair permit.

5. R-2 condominium conversions. Existing group R-1 or R-2 buildings proposed for conversion to condominiums shall have an approved automatic sprinkler system installed throughout the entire building as a condition of approval, regardless of the building square footage.

6. R-1 to R-2 conversions. Existing group R-1 buildings proposed for conversion to R-2 shall have an approved automatic sprinkler system installed throughout the entire building as a condition of approval, regardless of the building square footage.

7. A-1 and A-2 occupancies. In existing group A-1 and group A-2 occupancies an approved automatic sprinkler system shall be installed throughout the entire building as a condition of any building permit where the permit cost is nine hundred ninety-nine dollars ($999) or more, regardless of the building square footage.

Exception: Building permits issued exclusively for mechanical systems, plumbing systems, electrical systems and re-roofing only.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50907.1.2. FIRE ALARM SHOP DRAWINGS.

907.1.2. Fire alarm shop drawings. Shop drawings for fire alarm systems shall be prepared in accordance with NFPA 72 and submitted for review and approval prior to system installation. All plans and shop drawings shall use the symbols identified in the currently adopted edition of NFPA 170, Standard for Fire Safety and Emergency Symbols.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50908.5. EMERGENCY ALARM SYSTEM INTERCONNECTION.

908.5 Emergency alarm system interconnection. Where an emergency alarm system is required by this Code and a building fire alarm is installed, the emergency alarm system shall be interconnected with, and supervised by, the building fire alarm system.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50912.4.4. ADDRESS IDENTIFICATION.

912.4.4. Address identification. For new and existing buildings, the fire code official is authorized to require additional approved address signage or building area identification signage to readily determine the building or area of a building served by fire department connections.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50913.1. GENERAL.

913.1 General. Where provided, fire pumps for fire protection systems shall be installed in accordance with this section, NFPA 20, and Fire Department Policy. Exception: Pumps for automatic sprinkler systems installed in accordance with Section 903.3.1.3, or Section P2904 of the California Residential Code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50916.11.4. GAS DETECTION SYSTEMS.

916.10 Fire alarm system connections. Where a gas sensor or gas detection system is required and a building fire alarm is installed, gas sensors and gas detection systems shall be interconnected with, and supervised by, the building fire alarm system. The interconnection shall be in accordance with the fire alarm equipment manufacturer's instructions.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-50917.2. GROUP E OCCUPANCIES.

917.2 Group E occupancies. Prior to construction of a new building, or a change of occupancy to an existing building, that will contain a Group E occupancy requiring a fire alarm system and having an occupant load of 500 or more, a mass notification risk analysis shall be conducted in accordance with NFPA 72. Where the risk analysis determines a need for mass notification, an approved mass notification system shall be provided in accordance with the findings of the risk analysis.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

MEANS OF EGRESS

SEC. 10-51025.6. MAINTENANCE OF LUMINOUS EGRESS PATH MARKINGS.

1025.6. Maintenance of luminous egress path markings. Where luminous egress path markings are required in this code, or in previous editions of the Fresno Fire Code, they shall be maintained in accordance with Sections 1025.1 through 1025.5 and Fire Department Policy as applicable.

1025.7. Removal of existing luminous egress path markings. The fire code official is authorized to permit the removal of existing luminous egress path markings where both of the following conditions are met:

1. A permit for removal from the fire code official must be obtained, prior to removal of the markings.

2. The exit system will remain in compliance with current California Fire Code requirements for luminous egress path markings.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

CONSTRUCTION REQUIREMENTS FOR EXISTING BUILDINGS.

SEC. 10-51104.1.1. DOOR SWING.

1104.1.1. Door Swing. When, in the opinion of the fire code official, it is essential for public safety in any existing building or occupancy, because of the number of persons served, or the nature of the operation, an owner, agent or lessee shall install doors that swing in the direction of egress travel, as required and approved when such places are open to the public, or when such operation is being conducted.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-51104.1.2. DOOR HARDWARE.

1104.1.1.2 Door Hardware. When, in the opinion of the fire code official, it is essential for public safety in any existing building or occupancy, because of the number of persons served,

or the nature of the operation, an owner, agent or lessee shall provide and maintain panic or fire exit hardware, as required and approved when such places are open to the public, or when such operation is being conducted.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

ENERGY SYSTEMS

SEC. 10-511205.1. SOLAR PHOTOVOLTAIC POWER SYSTEMS.

1205.1 General. Solar photovoltaic (PV) systems shall be installed in accordance with the California Building Code or California Residential Code, and the Fresno Municipal Code, including for Group R-3 and one- and two-family dwellings. The electrical portion of solar PV systems shall be installed in accordance with the California Electrical Code. Rooftop-mounted solar photovoltaic systems shall be installed in accordance with Sections 1205.2 through 1205.4.3. Ground-mounted solar photovoltaic systems shall comply with Section 1205.5

1205.2.1. Section deleted and reserved.

1205.2.1.1 Pathways to ridge. Not fewer than two 36-inch-wide (914 mm) pathways on separate roof planes, from lowest roof edge to ridge, shall be provided on all buildings. Not fewer than one pathway shall be provided on the street or driveway side of the roof. For each roof plane with a photovoltaic array, not fewer than one 36-inch-wide (914 mm) pathway from lowest roof edge to ridge shall be provided on the same roof plane as the photovoltaic array, on an adjacent roof plane.

1205.2.1.2 Setbacks at ridge. All photovoltaic arrays shall have a minimum 36 in. (914 mm) wide setback on both sides of a horizontal ridge.

1205.2.1.3 Section deleted and Reserved.

1205.2.3 Building-integrated photovoltaic (BIPV) systems. Where building-integrated photovoltaic (BIPV) systems are installed in a manner that creates areas with electrical hazards to be hidden from view, approved markings shall be provided to identify the hazardous areas to avoid for ladder placement. The markings shall be reflective and be visible from grade as required by the fire code official.

Exception: BIPV systems listed in accordance with UL 3741, where the removal or cutting away of portions of the BIPV system during fire-fighting operations have been determined to not expose a firefighter to electrical shock hazards.

1205.4.1.3 Disconnecting Equipment. All photovoltaic solar power system disconnecting means, including rapid shutdown equipment, shall be indicating, of an approved size and type, and shall be placed in an approved position that is plainly visible to approaching fire department personnel.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

COMBUSTIBLE DUST-PRODUCING OPERATIONS

SEC. 10-502205.1.1. DUST HAZARD ANALYSIS.

2205.1.1 Dust hazard analysis. A dust hazard analysis (DHA) is required for all new and existing buildings, facilities and operations which process, use, handle, generate or store combustible dusts, or operate combustible dust producing equipment. The dust hazard analysis shall be in accordance with NFPA 652. The DHA for existing facilities shall be in accordance with Section 7.1.1 of NFPA 652.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

MOTOR FUEL-DISPENSING FACILITIES AND REPAIR GARAGES

SEC. 10-52306.2.3. ABOVE-GROUND TANKS LOCATED OUTDOORS, ABOVE GRADE.

2306.2.3 Above-ground tanks located outdoors, above grade. Above-ground tanks shall not be used for the storage of Class I, II or III liquid motor fuels, except as provided by this section.

1. Above-ground tanks used for outdoor, above-grade storage of Class I and II liquids shall be listed and labeled as protected above-ground tanks in accordance with UL 2085 and shall be in accordance with Chapter 57. Such tanks shall be located in accordance with Table 2306.2.3.

2. Above-ground tanks used for outdoor, above-grade storage of Class IIIA liquids shall be listed and labeled as protected above-ground tanks in accordance with UL 2085 and shall be installed in accordance with Chapter 57. Tank locations shall be in accordance with Table 2306.2.3.

Exception: Other above-ground tanks that comply with Chapter 57 where approved by the fire code official.

3. Tanks containing fuels shall not exceed 12,000 gallons (45 420 L) in individual capacity or 48,000 gallons (181 680 L) in aggregate capacity. Installations with the maximum allowable aggregate capacity shall be separated from other such installations by not less than 100 feet (30 480 mm).

4. Tanks located at farms, construction projects, or rural areas shall comply with Section 5706.2 (et al.).

5. Above-ground tanks used for outdoor, above-grade storage of Class IIIB liquid motor fuel shall be listed and labeled in accordance with UL 142 or listed and labeled as protected above-ground tanks in accordance with UL 2085 and shall be installed in accordance with Chapter 57. Tank locations shall be in accordance with Table 2306.2.3.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

FLAMMABLE FINISHES

SEC. 10-52401.4. LOCATION.

2401.4. Location. Locations or areas used for any of the operations noted in 2401.1 shall be located in accordance with Chapter 11 and Chapter 12 of the Fresno Municipal Code, and the associated policies of the respective regulatory agencies or departments.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

STORAGE AND PROCESSING OF WOOD CHIPS, HOGGED MATERIALS, FINES, COMPOST, SOLID BIOMASS FEEDSTOCK AND RAW PRODUCT ASSOCIATED WITH YARD WASTE AND AGRO-INDUSTRIAL FACILITIES

2808.1 General. The storage and processing of wood chips, hogged materials, fines, compost, solid biomass feedstock and raw product produced from yard waste, debris and agro-industrial facilities shall comply with Sections 2808.2 through 2808.10.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

RECYCLING AND WASTE HANDLING FACILITIES

SEC. 10-52811.1. SCOPE.

2811.1. Scope. The storage, manufacturing, processing or handling of wood by-products, recycled materials, industrial waste, and other similar materials not otherwise regulated by this code shall be in accordance with this section and fire department policy. The title of this Section shall be "RECYCLING AND WASTE HANDLING FACILITIES."
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.2. STORAGE SITE.

2811.2. Storage site. Storage, manufacturing, processing or handling sites shall be level and on solid ground, elevated soil lifts or other approved all-weather surface. Sites shall be thoroughly cleaned before transferring regulated products to the site.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.3. SIZE OF PILES.

2811.3. Size of piles. Piles shall not exceed 20 feet (6.1 m) in height, 50 feet (15.2 m) in width and 250 feet (76.2 m) in length. Piles shall be separated from adjacent piles or other exposures (including, but not limited to, property lines, other storage, and buildings) by means of fire department access roadways. A 120 foot (36.6 m) by 90 foot (27.5 m) area shall be maintained available for use by the fire department for interim storage of pile breakdown material during fire suppression activities.

Exception:

The fire code official is authorized to allow the pile size to be increased where a fire protection plan has been approved and additional fire protection is provided in accordance with Chapter 9. The increase shall be based on the capabilities of the system installed and the features of the system.

The fire protection plan shall include, but is not limited to, the following:

1. Storage yard areas and materials-handling equipment selection, design and arrangement shall be based upon sound fire prevention and protection principles.
2. Factors that lead to spontaneous heating shall be identified in the plan, and control of the various factors shall be identified and implemented, including provisions for monitoring the internal condition of the pile.
3. The plan shall include means for early fire detection and reporting to the public fire department; and facilities needed by the fire department for fire extinguishment including a water supply and fire hydrants.
4. Fire apparatus access roads around the piles and access roads to the top of the piles shall be established, identified and maintained.
5. Regular yard inspections by trained personnel shall be included as part of an effective fire prevention maintenance program.

Additional fire protection called for in the plan shall be provided and shall be installed in accordance with this code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.4. PILE FIRE PROTECTION WATER SUPPLY.

2811.4. Pile fire protection water supply. An approved water supply for firefighting purposes shall be provided in accordance with Section 507.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52810.5. SECURITY.

2811.5. Security. Site pile areas shall be surrounded with an approved fence. Fences shall be not less than 6 feet (1829 mm) in height.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.6. PILE SEPARATION.

2811.6. Pile separation. Piles shall be separated from adjacent piles or other exposures (including but not limited to, property lines, other storage, and buildings) by means of fire department access roads.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.7. PILE FIRE PROTECTION.

2811.7. Pile fire protection. Automatic sprinkler protection shall be provided in conveyor tunnels and combustible enclosures that pass under a pile. Combustible or enclosed conveyor systems shall be protected by automatic sprinkler protection.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.8. FIRE EXTINGUISHERS.

2811.8. Fire extinguishers. Portable fire extinguishers complying with Section 906 and with a minimum rating of 4-A:60-B:C shall be provided on all vehicles and equipment operating on piles and at all processing equipment.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-52811.9. EXTERIOR STORAGE OF RECYCLED MATERIALS AND INDUSTRIAL WASTE.

2811.9. Exterior storage of recycled materials and industrial waste. Exterior storage of recycled material and industrial waste shall be in accordance with the operational permit requirements of Section 105.6.55, Section 10-50315.4.3 and fire department policy.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

FIREWORKS AND EXPLOSIVES

SEC. 10-55602.2. FIREWORKS ORDINANCE.

5602.2. Short Title. This Section shall be known and cited as the "Fireworks Ordinance." When used, "this Section" means the Fireworks Ordinance.

5602.2. Findings and Intent.

(a) This Section governs the imposition, enforcement, collection and administrative review of all administrative fines related to: the possession, use, storage, sale and/or display of those fireworks classified as dangerous fireworks in California Health and Safety Code, Section 12505 et seq. or the possession, use, storage, sale and/or display of Safe and Sane fireworks on or at dates, times, and/or locations other than those permitted by this Section. The administrative fines are imposed under authority of Government Code, Section 53069.4; Health and Safety Code, Section 12557; and, the police power of the City of Fresno.

(b) The issuance of an administrative citation to any person constitutes but one remedy of the City to redress violations of this Section. By adopting this Section, the City does not intend to limit its authority to employ any other remedy, civil or criminal, to redress any violation of this Section which the City may otherwise pursue.

(c) The imposition of administrative fines under this Section shall be limited to persons who possess, use, sell, display, and/or permit the use of, or the seizure of 25 pounds

or less of dangerous fireworks or persons who possess, use, sell, display, and/or permit the use of, Safe and Sane fireworks on or at the dates, times, and/ or locations other than those permitted by this Section.

(d) Administrative fines collected pursuant to this Section shall not be subject to Health and Safety Code, Section 12706. The administrative fines collected shall be allocated in compliance with Health and Safety Code, Section 12557, which requires the City to provide cost reimbursement to the California State Fire Marshal for reimbursement of costs, including, but not limited to transportation, and disposal. Regulations are to be adopted by the California State Fire Marshal setting forth this allocation. Unless and until such regulations have been adopted by the State of California, the City shall hold in trust a $250.00 fee in addition to any fine collected to cover the reimbursement to the California State Fire Marshal for the cost of transportation and disposal of the dangerous fireworks. This fee is non-refundable.

(e) Due to the serious threat of fire or injury posed by the use of dangerous fireworks or Safe and Sane fireworks on or at dates, times, and/or locations other than those permitted by this Section, this Section imposes strict civil liability upon the owners of residential real property for all violations of this Section existing on that property. Each contiguous use, display, and/or possession shall constitute a separate violation and shall be subject to a separate administrative fine.

(f) The fire code official (or designee) may seek cost recovery for any costs imposed on the Fire Department due to negligence, an intentional wrongful act, carelessness, or malice as set forth in Fresno Municipal Code, Chapter 1, Article 5, Section 10-50109.5 of this Code, and the Master Fee Schedule.

(g) This section shall not apply to the public display of fireworks in accordance with Section 5608.

(h) This section shall not apply to the storage and handling of Safe and Sane fireworks in accordance with the California Building Code for Class 1.4G fireworks.

5602.3. Definitions.

(a) "Dangerous fireworks" shall include any items or materials listed as such in California Health and Safety Code, Section 12505.

(b) "Eligible organizations" means an organization or corporation, which has met all of the following criteria continuously for a minimum of one year preceding the filing of the application for a permit to display for sale or sell Safe and Sane fireworks.

(i) The organization and/or corporation must be a duly organized non-profit and tax-exempt charitable, religious, civic, patriotic, or community service organization or corporation with a current and valid 26 U.S.C. Section 501(c)(3)(19) tax exemption from the Internal Revenue Service.

(ii) The organization must be headquartered within and clearly affiliated or identified with the City of Fresno.

(iii) The organization must be one which provides direct and regular community services and benefits to the citizens of the City of Fresno.

(iv) The organization must hold its regularly scheduled meetings within the City of Fresno.

(c) "Exempt fireworks" means any special item containing pyrotechnic compositions which the California State Fire Marshal, with the advice of the State Fire Advisory Board, has investigated and determined to be limited to industrial, commercial, and agricultural use, or religious ceremonies when authorized by a permit granted by the authority having jurisdiction.

(d) "Fireworks" means any device containing chemical elements and chemical compounds capable of burning independently of the oxygen of the atmosphere and producing audible, visual, mechanical, or thermal effects which are useful as pyrotechnic devices or for entertainment. These items include, but are not limited to:

(i) Devices designated by the manufacturer as fireworks.

(ii) Torpedoes, skyrockets, roman candles, rockets, Daygo bombs, sparklers, party poppers, paper caps, chasers, fountains, smoke sparks, aerial bombs, and fireworks kits.

(e) "Host" means any person who either:

(i) Owns, leases, rents, or is otherwise in lawful possession of private property within the City of Fresno; or

(ii) Organizes, supervises, officiates, conducts, controls, or is otherwise in charge of the activity on the property.

(f) "Ineligible organizations" means an organization or corporation, which holds a permit to display for sale or sell Safe and Sane fireworks in the North Central Fire Protection District, Fig Garden Fire Protection District or County of Fresno area which is serviced by the City of Fresno Fire Department. It shall be the duty of the permit applicant to inform the Fresno Fire Department of any other permits held by the organization in any of the areas noted above.

(g) "Safe and Sane fireworks" means any fireworks which do not come within the definition of "dangerous fireworks" or "exempt fireworks." All Safe and Sane fireworks shall be labeled with the Safe and Sane fireworks seal as authorized by the California State Fire Marshal.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-55602.4. GENERAL PROHIBITION AGAINST POSSESSION, SALE, USE AND/OR DISPLAY OF FIREWORKS.

5602.4. General Prohibition Against Possession, Sale, Use and/or Display of Fireworks.

(a) Except as otherwise provided in this Article, no person shall possess, sell, use, display, explode or discharge any fireworks within the City of Fresno.

(b) Except as otherwise provided in this Article, no Host shall permit the possession, sale, use, display, explosion or discharge of any fireworks on the Host's property, in a public right-of-way adjacent to the Host's property, or in a road, street, or highway adjacent to the Host's property, within the City of Fresno.

(1) Whenever a Host is present at the private property while another person violates a provision of this chapter, there shall be a rebuttable presumption that the Host knew or should have known of the violation.

(2) This provision shall not apply to a Host who initiates contact with law enforcement or fire officials to assist in removing any person from the property or terminating the activity in order to comply with this chapter, if the request for assistance is made before any other person contacts law enforcement or fire officials to complain about the violation of this chapter.

(c) Any person violating any of the provisions of this Section shall be guilty of a misdemeanor.

5602.5. Safe and Sane Fireworks: Exceptions.

(a) The sale and/or display of Safe and Sane Fireworks shall be permitted only during that period beginning at noon on June 28 and ending at noon on July 6 of the same year.

(b) Safe and Sane fireworks shall not be sold to any person under the age of sixteen (16).

(c) The use and discharge of Safe and Sane fireworks within the City of Fresno is permitted 365 days a year, between the hours of 7:00 a.m. and 10:00 p.m., except for the period of June 28 to July 6 when use and discharge will be allowed between the hours of 7:00 a.m. and 12:00 a.m.

5602.6. Safe and Sane Fireworks Permits: Permits Required.

(a) It is unlawful for any person to sell Safe and Sane fireworks within the City of Fresno without a permit issued by the fire code official (or designee).

(b) The fire code official is authorized to promulgate administrative rules and procedures necessary for the successful and effective implementation of this Section including rules and procedures governing the submission of applications for permits to sell Safe and Sane fireworks, inspections of fireworks stands, operation of fireworks stands, and such regulations relating to the sale of Safe and Sane fireworks as may be necessary for the protection of life and property.

(c) The fire code official (or designee) shall be responsible for reviewing applications for permits to sell Safe and Sane fireworks.

5602.7. Safe and Sane Fireworks: Applications.

(a) All organizations or corporations interested in obtaining a permit to sell Safe and Sane fireworks shall submit an application to the fire department on forms provided by the fire department. There is a non-refundable application fee established by

resolution of the City Council and set forth in the Master Fee Schedule. This application fee shall be in addition to any fee or tax imposed by any other chapter or article of the Fresno Municipal Code.

(b) The fire code official (or designee) shall designate the time period when applications will be accepted.

(c) No organization shall submit more than one application. Submittal of more than one application shall be grounds for denial of all applications submitted by that organization.

(d) There shall be allowed a maximum of one fireworks stand for every five thousand (5,000) population in the City. A maximum of fifty new stands will be issued permits on an alternating two-year cycle.

(e) Participants are selected by lottery, which shall take place at a time and location determined by the fire code official (or designee).

(f) The newly selected participants, as well as the previous year's participants, shall submit additional information as required by the fire department which shall be reviewed prior to issuance of any permits to sell Safe and Sane fireworks for the upcoming fireworks season.

5602.8. Safe and Sane Fireworks: Issuance of Permits.

(a) No permit to sell Safe and Sane fireworks shall be issued to any organization except non-profit and tax-exempt organizations or corporations organized primarily for charitable, religious, civic, patriotic, or community service as defined in Section 10-55602.3(b).

(b) Upon notification that the organization has been selected by lottery to participate in the upcoming fireworks season, each organization shall provide additional information as required by the fire department including, but not limited to:

(i) A non-refundable fee established by resolution of the City Council and set forth in the Master Fee Schedule. This fee shall be in addition to any fee or tax imposed by any other chapter or article of the Fresno Municipal Code.

(ii) An executed Indemnification and Hold Harmless Agreement as required by the City's Risk Manager or the Risk Manager's designee.

(iii) Throughout the life of the permit, the applicant shall pay for and maintain in full force and effect policies of insurance as required by the City's Risk Manager or Risk Manager's designee. The policies of insurance shall name the City, its officers, officials, agents, employees and authorized volunteers as additional insured. The applicant shall submit proof of insurance in a manner authorized by the City's Risk Manager or Risk Manager's designee.

(iv) Other information as may be required by the fire department pursuant to administrative rules and procedures promulgated by the fire code official pursuant to Section 10-5502.6(b).

(c) Permits shall be issued upon review of all information submitted by the organization and inspection and approval of the organization's temporary fireworks stand.

(d) No permit shall be issued to an ineligible organization. In the event that a permit is issued to an ineligible organization, the permit shall be revoked immediately and shall be considered invalid. The ineligible organization shall cease the display and sales of Safe and Sane fireworks immediately.

5602.9. Safe and Sane Fireworks: Operator Safety Seminar. Each year, one or more representatives from each organization that is granted a permit to sell or display fireworks shall attend a stand operator safety seminar conducted by the City of Fresno Fire Department or the fireworks industry. Failure of an organization to have a responsible individual attend the seminar shall result in the revocation of the permit.

5602.10. Revocation of Permits. The fire code official (or designee) may revoke the permit of any organization that violates the provisions of this Section or any rules or regulations promulgated pursuant to Section 10-53302.6(b). Notice of revocation shall be made in writing by the fire department to the organization. The fire code official (or designee) may reinstate a permit upon proof that the permit holder is in compliance with all provisions and rules pertaining to this Section.

5602.11. Administrative Fines. In addition to any other remedy available at law, any person or entity who possesses, uses, stores, sells and/or displays dangerous fireworks or any person or entity who possesses, uses, sells and/or displays Safe and Sane fireworks on or at dates, times, or locations other than those permitted by this Section, or any Host who permits any of the aforementioned upon the Host's property, in a public right-of-way adjacent to the Host's property, or in a road, street, or highway adjacent to the Host's property, are subject to an administrative fine as follows:

(a) For the first violation, Two Thousand Dollars ($2,000):

(b) For the second violation of this article within a rolling 12-month period, Three Thousand Dollars ($3,000);

(c) For the third or subsequent violation of this article within a rolling 12-month period, Five Thousand Dollars ($5,000).

5602.12. Seizure of Fireworks. The fire code official (or designee) shall seize, take, remove or cause to be removed, at the expense of the owner, all stocks of fireworks offered or exposed for sale, stored or held in violation of this Section. Such seizure shall be subject to cost recovery in accordance with Section 109.5.

5602.13. Appeals.

(a) A citation issued for failure to comply with the provisions of this Section shall be appealed pursuant to Fresno Municipal Code, Chapter 1, Article 4.

(b) The denial of an application for a fireworks permit shall be appealed pursuant to Fresno Municipal Code, Chapter 1, Article 4. If no appeal is filed within the time prescribed, the action of the fire code official (or designee) shall be final.

(c) A minor and the parent(s) or guardian(s) having custody and control of said minor, are jointly and severally liable to the City for any administrative citation and/or penalty issued for failure to comply with the provisions of this Section.

(d) The administrative citation penalty may become a special assessment or a lien against the property of any person who is issued a citation for violation of the provisions of this Section. This shall include the property of a minor who is issued a citation and/or the property of the parent(s) or guardian(s) having custody and control of the minor or private property owner that allows the illegal use or storage on their property. The procedures set forth in Section 1-506 shall be followed for the imposition of a special assessment or lien.

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-55601.3. PROHIBITION OF EXPLOSIVES.

5601.3 Prohibition of Explosives. The possession, storage, use and handling of explosives are prohibited within the limits established by law.

Exception:

1. Storage and sale of small arms ammunition, small arms primers, smokeless powder and black sporting powder in accordance with Title 19, Chapter 10, Article 12 of the California Code of Regulations and Section 307 of the California Building Code.

2. Where permitted by the fire code official

(Added Ord. 2025-039, § 3, eff. 10-31-25).

FLAMMABLE AND COMBUSTIBLE LIQUIDS

SEC. 10-55704.2.9.6.1. LOCATIONS WHERE ABOVE-GROUND TANKS ARE PROHIBITED.

5704.2.9.6.1. Locations where above-ground tanks are prohibited. Storage of Class I and II liquids in above-ground tanks outside of buildings shall be in accordance with the protected above-ground tank provisions of Section 2306.2.3.

Exceptions:

1. Bulk plants and terminals.

2. Refineries.

3. Standby generators with integral base tanks for Class II liquids when installed per Fire Department Policy and approved by the fire code official.

4. For above-ground tanks at farms and construction sites, see FMC 10-55706.2.4

(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-55704.3.5.1. BASEMENT STORAGE.

5704.3.5.1. Basement Storage. Class I liquids shall not be stored in basements. Class II and IIIA liquids shall be allowed to be stored in basements, provided that automatic sprinkler system and other fire protection systems and features are provided in accordance with Chapter 9.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-55706.2.4. PERMANENT AND TEMPORARY TANKS.

5706.2.4. Permanent and Temporary Tanks. The aggregate capacity of permanent and temporary above-ground tanks containing Class I and II liquids shall not exceed 1,100 gallons (4163.9L). Tanks shall be constructed in accordance with Section 5704.2 (et al.).

Exception: Protected above-ground tanks meeting the requirements of Section 2306.2.3.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

LIQUIFIED PETROLEUM GASES

SEC. 10-56101.3. CONSTRUCTION DOCUMENTS.

6101.3. Construction Documents. Where a single LP-gas container or the aggregate of LP-gas containers is more than 125 gallons in water capacity, the installer shall submit construction documents to the fire code official for such installation.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

APPENDIX B

FIRE-FLOW REQUIREMENTS FOR BUILDINGS

SEC. 10-50B103.4. ADDITIONAL MODIFICATIONS.

B103.4 Additional Modifications. The fire code official is authorized to make additional modifications to fire-flow requirements for any building, or group of buildings, provided the modifications meet the intent of this code and are supported by the water system capability of the water purveyor. This section does not permit, and shall not be used for, waiving provisions of this code for required fire flow.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

APPENDIX C

FIRE HYDRANT LOCATIONS AND DISTRIBUTION

SEC. 10-50C103.4. ADDITIONAL MODIFICATIONS.

C103.4. Additional Modifications. The fire code official is authorized to make additional modifications to the number of fire hydrants, fire hydrant spacing and fire hydrant location requirements, provided the modifications meet the intent of this code and are supported by

the water distribution system. This section does not permit, and shall not be used for, waiving provisions of this code related to the number of fire hydrants, or fire hydrant spacing and location requirements.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

APPENDIX D

AERIAL FIRE APPARATUS ACCESS ROADS

SEC. 10-50D105.1. WHERE REQUIRED.

D105.1 Where required. Where the vertical distance between the grade plane and the highest roof surface exceeds 30 feet (9144 mm), approved aerial fire apparatus access roads shall be provided. For purposes of this section, the highest roof surface shall be determined by measurement to the eave of a pitched roof, the intersection of the roof to the exterior wall, or the top of parapet walls, whichever is greater.

Exception: Where approved by the fire code official, buildings of Type IA, Type IB or Type IIA construction equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 as amended and having fire fighter access through an enclosed stairway with an unencroached width of 44" and with a Class I standpipe from the lowest level of fire department vehicle access to all roof surfaces.

D105.2 Width. Aerial fire apparatus access roads shall have a minimum unobstructed width of 26 feet (7925 mm), exclusive of shoulders, in the immediate vicinity of the building or portion thereof and as approved by the fire code official.

D105.3 Proximity to building. One or more of the required access routes meeting this condition shall be located not less than 15 feet (4572 mm) and not greater than 30 feet (9144 mm) from the building, and shall be positioned parallel to one entire side of the building. The side of the building on which the aerial fire apparatus access road is positioned shall be approved by the fire code official.

D105.4 Obstructions. Overhead utility and power lines shall not be located over the aerial fire apparatus access road or between the aerial fire apparatus road and the building. Other obstructions shall be permitted to be placed only after approval of the fire code official.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

(PART 2.5 2025 California Residential Code)

SEC. 10-5R309. AUTOMATIC FIRE SPRINKLER SYSTEMS.

R309.0 Additional requirements. The additional requirements found in Section 10-50903 et al. in the Fresno Municipal Code, and as applicable to Group R buildings, including one- and two-family dwellings, and including existing buildings and structures, shall be considered part of this Code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

SEC. 10-5R329. SOLAR ENERGY SYSTEMS.

R329.4 Rooftop-mounted photovoltaic systems. Rooftop-mounted photovoltaic panel systems installed on or above the roof covering shall be designed and installed in accordance with this section, the California Electrical Code, and Fresno Municipal Code Section 10-501205.1, et al.

R329.5 Building-integrated photovoltaic systems. Building-integrated photovoltaic systems that serve as roof coverings shall be designed and installed in accordance with this section, Section R905, the California Electrical Code, and Fresno Municipal Code Section 10-501205.1, et al.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

(PART 8 2025 California Historical Building Code)

SEC. 10-58-103. HISTORIC BUILDINGS.

8-103.3. Liability. Prevailing law regarding immunity of building and fire officials is unaffected by the use and enforcement of the CHBC.

8-104.4. Local agency fees. The City and any local agencies, when involved in the appeal, may also charge affected persons reasonable fees not to exceed the cost of obtaining reviews and appeals from the Board.

8-302.1. Existing use. The specific use or character of occupancy of a qualified historical building or property, or portion thereof, may be permitted to continue in use regardless of any period of time in which it may have remained unoccupied or in other uses, provided such building or property otherwise conforms to all applicable requirements of the CHBC.

8-302.2. Change in occupancy. The use or character of the occupancy of a qualified historical building or property may be changed from or returned to its historical use or character, provided the qualified historical building or property conforms to the requirements applicable to the new use or character of occupancy as set forth in the CHBC and Fresno Municipal Code sections 10-50903.1 through 10-50903.6. Such change in occupancy shall not mandate conformance with new construction requirements as set forth in regular code.
(Added Ord. 2025-039, § 3, eff. 10-31-25).

ARTICLE 6 PUBLIC NUISANCE ABATEMENT

Sec. 10-601. Title.
Sec. 10-602. Purpose.
Sec. 10-603. Definitions.
Sec. 10-604. Responsibility for Enforcement.
Sec. 10-605. Public Nuisance.
Sec. 10-606. Proceedings For Enforcement.
Sec. 10-607. Notice of Violation.
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Sec. 10-610. Administrative Citation.
Sec. 10-611. Unlawful Dumping and Illegal Use of Land.
Sec. 10-612. Appeal.
Sec. 10-613. Inoperative, Wrecked, Dismantled or Abandoned Vehicles.
Sec. 10-614. Extension of Time to Perform Work.
Sec. 10-615. Failure to Comply With Final Order.
Sec. 10-616. Administrative Abatement.
Sec. 10-617. Blighted Vacant Building Ordinance.
Sec. 10-618. Remedies of Private Parties.
Sec. 10-619. Severability.
Sec. 10-620. Reserved.

SEC. 10-601. TITLE.

This article shall be known as the City of Fresno Public Nuisance Abatement Ordinance. (Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-602. PURPOSE.

The City Council of the City of Fresno finds and determines as follows:

(a) That the city has a history and reputation for well kept properties and that the property values and the general welfare of the community are founded, in part, upon the appearance and maintenance of private properties;

(b) That there is a need for further emphasis on property maintenance and sanitation in that certain conditions, as described in this article, have been found from place to place throughout the city;

(c) That the existence of such conditions as described in this article, is injurious and inimical to the public health, safety and welfare of the residents of the city and contributes substantially and increasingly to the deterioration of neighborhoods;

(d) That unless correct measures are undertaken to alleviate such existing conditions, and assure the avoidance of future problems in this regard, the public health, safety and general welfare and specifically the social and economic standards of the community will be depreciated;

(e) That the abatement of such conditions will improve the general welfare and image of the city; and

(f) That the abatement procedures set forth in this article are reasonable and afford due process to all affected persons.

(g) The purposes of this article are to safeguard, remedy and prevent the decay and deterioration of our community by elimination of public nuisances. The procedures established in this article are cumulative and in addition to any other remedy established by law.

(Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-603. DEFINITIONS.

(a) "Abandoned Vehicle" means a vehicle which is left on a highway, public or private property in such inoperable or neglected condition that the owner's intention to relinquish all further rights or interests in it may be reasonably concluded.

(1) In reaching a reasonable conclusion, one must consider the amount of time the vehicle has been there without being moved, its condition, statements from the owner and witnesses, etc.

(2) In reference to highway or public rights of way, "abandonment" is presumed to have occurred if a vehicle is parked, resting, or otherwise immobilized on any highway or public right of way; and lacks an engine, transmission, wheels, tires, doors, windshield, or other part of equipment necessary to operate safely on the highway in this city. Such vehicles are presumed to be a hazard to public health, safety, welfare and considered an attractive nuisance and may be removed immediately upon discovery.

(b) "Attractive Nuisance" shall mean any condition, instrumentality or machine which is or may be unsafe or dangerous to children by reason of their inability to appreciate the peril therein, and which may reasonably be expected to attract children to the premises and risk injury by playing with, in, or on it, whether in a building or on the premises.

(c) "Blight" means the condition of a specific property or group of properties which would be offensive in the eves of the public as compared to the standard of maintenance of the property pursuant to Article 6, Section 10; where the conditions are visible from public streets or right of ways and substantially detract from the aesthetics and economic value of the neighboring properties including health and safety hazards, public nuisance, crime, neglect and deterioration of property.

(d) "Blighted Building" means a vacant residential, commercial, or industrial building and all yards surrounding the building that is in violation of one or more provisions of the Fresno Municipal Code or California state law, and therefore reduces the aesthetic appearance of its neighborhood, area or district, is offensive to the senses, or is detrimental to nearby properties uses or property values. A blighted building includes a vacant building and the yards surrounding the building that are not being actively maintained, or actively monitored, or actively secured.

(e) "Decorative Landscaping" means decorative non-live materials used to cover dirt in a garden or yard, such as rocks, gravel, bark, or synthetic lawn, and does not include pavement with asphalt, cement or any other impervious surface.

(f) "Director" shall include any person authorized to issue citations pursuant to Fresno Municipal Code Section 1-308(k).

(g) "Dismantled Vehicle" means any vehicle that is partially or wholly dismantled.

(h) "Inoperative Vehicle" means any motor vehicle that cannot be moved under its own power.

(i) "Landscaping" means at least fifty percent (50%) of the non-paved portions of the exterior yards (those that are visible to the general public) shall be covered with live trees, shrubs, lawns, or other live or synthetic lawn materials, and the remaining portion of the non-paved portions of the exterior yards shall be covered with live trees, shrubs, lawns, or other live plant materials or shall have decorative landscaping installed, so long as weed block is used where decorative landscaping is installed. Notwithstanding the above, all unpaved areas of a park strip may be landscaped with decorative landscaping, so long as weed block is used. The requirements of this subsection to maintain live plant material shall not be effective if and during the time the city has implemented Stage 2, 3, or 4 water shortage contingency rationing under its Water Use Reduction Plan.

(j) "Overgrown" means grass, lawn blades, or weeds that are:

1. Over twelve (12) inches long or any ground covering plant material that extends over twelve (12) inches onto a public street, curb, gutter, or sidewalk or;

2. Over six (6) inches long or any ground covering plant material that extends over six (6) inches on to the public street, curb, gutter or sidewalk when the condition exists in combination with one or more other violations under this Article.

(k) "Park Strip" shall mean that portion of a street right of way that lies between the sidewalk and the outside edge of a street, gutter, or gutter lip, including a driveway approach. Where no curb exists, "park strip" shall mean the area of property from the sidewalk to the edge of the street pavement.

(l) "Property" shall mean any lot or parcel of land. For purposes of this definition, "lot or parcel of land" shall include any alley, sidewalk, park strip or unimproved public easement abutting such lot or parcel of land. Further, for the purpose of this definition, "unimproved public easement" shall not include an exposed irrigation canal.

(m) "Record Owner" shall mean the person to whom land is assessed as shown on the last equalized assessment roll of the county or current title owner of record, if different.

(n) "Structure" means anything constructed or built, any edifice or building of any kind, or any piece of work artificially built up or composed of parts joined together in some definite manner, which requires location on the ground or is attached to something else attached to the ground.

(o) "Vacant building" means real property with one or more structures, whether residential, commercial, or industrial, that is/are unoccupied or occupied by unauthorized persons. In the case of a multi-unit structure or complex, vacant shall mean fifty percent (50%) or more of the units are unoccupied or occupied by unauthorized persons.

(p) "Vehicle" means a device by which any person or property may be propelled, moved, or drawn upon a highway, excepting a device moved by human power or used exclusively upon stationary rails or tracks.

(q) "Weed Block" means material that is installed over a dirt surface in order to prevent the growth of weeds and that does not prevent the infiltration or passage of water into the dirt surface.

(r) "Wrecked Vehicle" means any vehicle that is damaged to such an extent that it cannot be operated upon the highway.
(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 2001-40, § 1, eff. 5-28-01; Am. Ord. 2003-17, § 1, eff. 4-22-03; Am. Ord. 2006-9, § 1, 3-13-06; Am. Ord. 2008-37, § 2, eff. 7-25-08; Am. Ord. 2015-11, § 2, eff. 6-19-15).

SEC. 10-604. RESPONSIBILITY FOR ENFORCEMENT.

(a) **Authority:** The Director shall be responsible for the administration and enforcement of this article. For such purposes, the Director shall have the powers of a law enforcement officer. For purposes of declaring and abating fire hazards pursuant to the provisions of this article, the Director is also authorized to perform the duties imposed on the Fire Chief and Fire Marshal pursuant to the provisions of Chapter 10, Article 5 of this Code. The Director shall have the power to render interpretations of this article and to adopt and enforce rules and supplemental regulations in order to clarify the application of its provisions. Such interpretations, rules and regulations shall be in conformity with the intent and purpose of this article.

(b) **Right of Entry:** Whenever necessary to make an inspection to enforce any provision of this article, or whenever the director has reasonable cause to believe that there exists in any

building or upon any premises, any condition which makes such building or premises a public nuisance as defined in Section 10-605 of this article, the director may enter such building or premises at all reasonable times to inspect the same or to perform any duty imposed upon the director by this article, including the abatement of any public nuisance, provided all inspections, entries, and abatements shall be done in a reasonable manner and with the consent of owner, agent or occupant. If an owner, occupant or agent refuses permission to enter, or inspect, or abate, the director may seek an administrative warrant pursuant to the procedures provided for in Code of Civil Procedure Sections 1822.50 through 1822.59, as amended, to perform the duties imposed upon the director.

(c) **Responsibilities Defined:** Owners remain liable for violations of duties imposed by this article even though an obligation is also imposed on the occupants of the building. Buildings, structures, premises and parts thereof shall be maintained in a nuisance free condition. The owner or the owner's designated agent shall be responsible for such maintenance. To determine compliance with this subsection, the building or premises may be reinspected. (Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-605. PUBLIC NUISANCE.

It is unlawful for any person, corporation or other entity owning, leasing, occupying, directly controlling or having charge of any property in this city to keep, maintain or deposit on said property any public nuisances.

The City Council, by adoption of this ordinance declares, the keeping, maintaining or depositing of any of the following to be a public nuisance:

(a) Rubbish or junk, including but not limited to refuse, garbage, scrap metal or lumber, concrete, asphalt, tin cans, tires and piles of earth.

(b) Any violation of the Uniform Fire Code, and such amendments as adopted by the State of California, as adopted by the city pursuant to Article 5 of Chapter 10 of this Code.

(c) The presence of an abandoned, wrecked, dismantled or inoperative vehicle, or parts thereof, on private or public property, except as expressly hereinafter permitted. Except as expressly permitted by law, it shall be unlawful, and an infraction, for any person to keep, store, or maintain upon any premises under his control any abandoned, wrecked, dismantled or inoperative vehicle, or parts thereof. Criminal prosecution pursuant to this section shall not preclude, nor be precluded by, abatement of such vehicles or parts thereof pursuant to the provisions of this chapter.

(d) The following weeds:

(1) Weeds which bear seeds of a downy or wingy nature.

(2) Sagebrush, chaparral, and any other brush or weeds which attain such large growth as to become, when dry, a menace to adjacent property.

(3) Weeds which are otherwise noxious or dangerous.

(4) Puncture vines and tumbleweed.

(5) Poison oak and poison ivy when the conditions of growth are such as to constitute a menace to the public health.

(6) Dry grass and grass likely to become dry, stubble, brush, litter or other flammable material which endangers the public safety creating a fire hazard, as defined in the Uniform Fire Code as adopted by the city pursuant to Article 5 of Chapter 10 of this Code.

(e) Dead, decayed or hazardous trees, residue from a fire or demolition such as concrete or brick foundations and flatwork, and which constitute an unsightly appearance, a fire hazard, or are dangerous to public health and welfare.

(f) Any attractive nuisance.

(g) Except as expressly permitted or required by law, exhibition, storage or repair of merchandise, signs (temporary, portable, or permanent or other forms of advertisement), bicycle racks, vending machines, or other obstructions upon any public sidewalk, median island, street, alley or public easement;

(h) Except as expressly authorized by law, park or store any vehicle upon an unpaved surface. It shall be presumed that the owner of the property and/or the person or entity occupying the property authorized the parking of the vehicle. It shall also be presumed that the registered owner of the vehicle parked the vehicle on the unpaved surface. The property owner, occupant and registered owner of the vehicle may all be held responsible for a violation of this subsection.

(i) Yard landscaping that has become so overgrown or uncontrolled as to create a fire hazard, obstruction to traffic or otherwise a blight to the neighborhood.

(j) Violation of zoning ordinance.

(k) Any pay telephone installed and maintained outside of a building (building does not include a phone booth) constitutes a public nuisance if:

(1) It is repeatedly tagged with graffiti and not cleaned within 48 hours of notice to the owner of the pay telephone; or,

(2) It is neglected or damaged to such an extent as to present a visual blight: or,

(3) It is habitually used by known gang members as designated by the Fresno Police Department's MAGEC Unit and in the reasonable opinion of the MAGEC Unit is used in or facilitates gang activity; or,

(4) The pay telephone has been abandoned or has otherwise remained inoperative for a period of thirty (30) days as of the effective date of this article; or

(5) The Director determines the pay telephone otherwise constitutes a public nuisance consistent with California Civil Code Sections 3479 and 3480.

The city shall not remove or cause to be removed a pay telephone when that telephone constitutes a public nuisance under this article, unless the Director has issued a notice

and order (pursuant to Section 10-607) ordering the telephone owner to do, within at least thirty (30) days, one or more of the following to eliminate the public nuisance or otherwise voluntarily remove the pay telephone:

(1) Block incoming calls:

(2) Remove the ringer on the phone;

(3) Shut off the key pad after the initial number is dialed to eliminate "beeper" use;

(4) Make the telephone inoperative for designated time periods;

(5) Add lighting;

(6) Change the type of enclosure of the telephone;

(7) Limit calls to emergency 911 calls;

(8) Contract with a service that provides weekly maintenance of the pay telephone;

(9) Any other means the Director determines appropriate for the elimination of the nuisance.

This provision does not preclude City from taking any other legal action including instituting legal action or issuing administrative citations to abate the nuisance.

(l) Any violation of the Fresno Municipal Code wherein said violation has been declared a public nuisance.

(m) Blighted building.

(n) Any public nuisance known at common law or in equity jurisprudence or as defined pursuant to Part 3 (Commencing with Section 3479) of Division 4 of the California Civil Code. (Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 99-8, § 1, eff. 3-19-99; Am. Ord. 2001-12, § 1, eff. 3-18-01; Am. Ord. 2001-40, § 2, 5-28-01; Am. Ord. 2003-102, § 1, eff. 1-18-04; Am. Ord. 2004-134, § 1, 1-18-05).

SEC. 10-606. PROCEEDINGS FOR ENFORCEMENT.

Notwithstanding any other remedies available by law and except as otherwise provided in Section 10-613 relating to the removal of inoperative, wrecked, dismantled or abandoned vehicles, whenever the Director has inspected or caused to be inspected any property and has determined that there exists a public nuisance upon said property, the Director may commence any of the following proceedings, to cause the abatement of the public nuisance:

(1) Issue a notice of violation; and/or,

(2) Issue a notice and order; and/or,

(3) Summarily abate; and/or,

(4) Issue an administrative citation; and/or,

(5) Request the City Attorney to institute legal action. (Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 2001-40, § 3, 5-28-01).

SEC. 10-607. NOTICE OF VIOLATION.

(a) The Director, in his or her discretion, may issue a notice of violation to the record owner and/or occupant of the property upon which a public nuisance exists. This issuance of a notice of violation is not a prerequisite to any other action, including issuance of a notice and order or administrative citation. The notice of violation is a nonappealable warning with direction to correct the violation. The notice of violation shall include all of the following:

(1) Name of the property's record owner;

(2) Street address of the property in violation;

(3) The code sections in violation;

(4) A description of the property's condition which violates the applicable codes;

(5) A deadline or specific date to correct the violations listed in the notice of violation;

(6) Reference to the potential consequences should the property remain in violation after the expiration of the compliance deadline, including but not limited to: administrative remedies; criminal prosecution; civil action; administrative abatement; civil penalties; revocation of permits; recordation of notice of violation.

(b) Service of a notice of violation may be served upon the record owner by regular first class mail or personal service. Service is effective on the date of mailing, or personal service. (Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-608. NOTICE AND ORDER.

(a) **Issuance:** Whenever the Director has inspected or caused to be inspected any property and has found and determined that conditions constituting a public nuisance exists thereon, the Director may serve a notice and order. The notice and order shall contain:

(1) The street address and/or assessor's parcel number, sufficient for identification of such property.

(2) Reference to all code sections violated together with a brief description of the condition which constitutes the public nuisance.

(3) Establish a reasonable time to secure any required permits, commence and complete required work to permanently eliminate the public nuisance identified in the notice and order.

(4) A statement that materials involved in public nuisances shall be disposed of in a legal manner.

(5) A statement that if the abatement is not commenced and completed within the time specified, the Director will proceed with further action, including administrative abatement at the expense of the responsible party, and/or administrative citation, and/or legal action.

(6) A statement that any person having any interest in the property or in the materials located thereon may appeal from the notice and order provided the appeal is made in accordance with the provisions of Chapter 1, Article 4.

(7) That a "notice of pending administrative action" may be immediately filed against the property in the Office of the County Recorder of the County of Fresno. If the notice and order becomes final, as described in this article, the notice and order may be recorded against the property in the Office of the County Recorder.

(b) **Service:**

(1) The notice and order, or any amended notice and order, shall be served upon the following parties:

(i) The record owner of the property; and,

(ii) Any person, entity or corporation occupying or in apparent control of the property.

(2) Service shall be completed in the following manner:

(i) Personal service; or

(ii) Posting the notice conspicuously on or in front of the property; or,

(iii) By regular mail.

(3) Proof of service of the notice and order shall be documented at the time of service by a declaration under penalty of perjury executed by the person effecting service, declaring the time and manner in which the service was made.

(c) **Recording:** At the time the notice and order is served, the Director may file in the Office of the County Recorder, a notice of pending administrative action. If the notice and order becomes final pursuant to Section 10-615, the Director shall file in the Office of the County Recorder a certificate legally describing the property and certifying that a public nuisance exists on the property and the owner has been so notified. Whenever the corrections ordered shall have been completed so that there no longer exists a public nuisance and the property described in the certificate; or the notice and order is rescinded by the hearing officer upon appeal; or whenever the city abates the nuisance and the abatement costs have been paid, the Director shall file a new certificate with the County Recorder that the nuisance has been abated.
(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 2005-14, § 41, eff. 4-9-05).

SEC. 10-609. SUMMARY ABATEMENT.

(a) Whenever the Director determines that a public nuisance is imminently dangerous to life, health, safety or adjacent property such that it requires immediate correction or elimination, the Director may remove or otherwise abate the public nuisance without prior

notice to the responsible person. The Director shall pursue only the minimum level of correction or abatement as necessary to eliminate the immediacy of the nuisance, including but not limited to:

(1) Suspend any special permit issued by the City, including but not limited to development entitlements; and/or

(2) Remove tall weeds and grass or other material creating the imminent threat to life, health, safety or adjacent property; and/or

(3) Physically remove or eliminate a condition or conditions creating the imminent threat to life, health, safety or adjacent property; and/or

(4) Suspend a particular use of property creating the imminent threat to life, health, safety or adjacent property; and/or

(5) Post the premises as unsafe or dangerous with an order against occupancy and/or use; and/or

(6) Take any other action appropriate under the circumstances.

(b) Upon completion of the summary abatement, the Director shall notify the record owner of the property and the occupant if any, of the following:

(1) The property location;

(2) The condition of the property;

(3) The violation;

(4) Any action by the Director taken to summarily abate the immediate threat to life, health, safety or adjacent property and the costs incurred therein;

(5) The right to appeal the action taken by the Director, in accordance with the provisions of Chapter 1, Article 4 of this Code. If no appeal is filed within the time prescribed, the action of the Director shall be final.

(c) The costs incurred by the city summarily abating the violation may be recovered by the city pursuant to Chapter 1, Article 5 of this Code.
(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 2002-51, § 14, eff. 10-31-02; Am. Ord. 2003-102, § 2, 1-18-04).

SEC. 10-610. ADMINISTRATIVE CITATION.

The Director may issue an administrative citation pursuant to Sections 1-308, et seq. of the code. Appeal of an administrative citation may be made pursuant to Sections 1-308 et seq.
(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 2001-40, § 4, 5-28-01).

SEC. 10-611. UNLAWFUL DUMPING AND ILLEGAL USE OF LAND.

Unauthorized dumping, under Section 6-210, is unlawful and a public nuisance and may be abated under Sections 10-609 or 10-616. In addition, the illegal use of land for occupancy

and/or storage of junk, rubbish, and/or vehicles, whether the property has a structure or not, is unlawful and a public nuisance and may be abated under Section 10-609 or 10-616. The Director may collect all of the city's costs against violators under Article 5 of Chapter 1. The Director may issue a Notice and Order, consistent with the procedures found in Section 10-608, to any violator, including the property owner, to order an abatement of the violation, except that a violator may be required to clean up the violation within ten days of issuance of a Notice and Order pursuant to Section 10-608. A violator's vehicle used in the commission of unlawful dumping and determined to be a nuisance vehicle may be impounded.

(a) Illegal dumping Citations. violators may be issued administrative citations for penalties in the following amounts:

(1) for the first violation, one thousand dollars ($1,000), plus one times the city's costs to abate the violation if the city is required to abate the public nuisance;

(2) for the second violation, one thousand five hundred dollars ($1,500.00), plus two times the city's costs to abate the violation if the city is required to abate the public nuisance; and

(3) for the third violation and all others thereafter, three thousand dollars ($3,000.00) plus three times the city's costs to abate the violation if the city is required to abate the violation.

(d) Illegal dumping citations may be issued without any prior notice. Penalties may be issued in two citations in cases where the city is required to abate, with the second citation issued after the city determines its costs. For purposes of the additional penalty assessments, the city will be "required to abate" when a violator fails to properly comply with a Notice and Order or when summary abatement is necessary because the location or condition of the nuisance poses an imminent threat to the public's health, safety or welfare or to nearby property, such as it being located in a public right of way. Citations issued under this section shall be issued under the procedures found in Section 1-308, except to the extent that any provision in this section conflicts with those found in Section 1-308, this section controls.

(b) Property Owners of Illegally Used Land. The Property Owner of land used for unlawful occupancy and/or storage of junk, rubbish, and/or vehicles shall be subject to the following citations for continued violations after the notice period had expired:

(1) for the first violation, two hundred and fifty dollars ($250), plus one times the city's costs to abate the violation if the city is required to abate the public nuisance;

(2) for the second violation, one thousand dollars ($1,000.00), plus the city's costs to abate the violation if the city is required to abate the public nuisance; and

(3) for the third violation and all others thereafter, three thousand dollars ($3,000.00) plus the city's costs to abate the violation if the city is required to abate the violation.

(c) Citations or Notice and Orders issued under this section may be appealed under Article 4 of Chapter 1, except that the time period to appeal the Notice and Order shall be ten days from the issuance of the Notice and Order, and the Notice and Order shall not be automatically stayed upon an appeal being filed. The Notice and Order shall be a final Notice and Order pursuant to Section 10-615 ten days from the issuance of the Notice and Order. Citations issued under this section may be collected under Article 5 of Chapter 1. Nothing in this section is intended to affect the responsibilities, liability, or rights of any person or entity, including the city, under any Federal or State law or regulation related to hazardous waste cleanup. The actions and remedies provided under this section are cumulative to any others provided by law.

(d) Enforcement Authority. The Director, or designee, shall have the authority to enforce the provisions of this article.

(e) Other Remedies Not Precluded. Nothing in this Code shall be deemed to limit the right of the city to bring civil or criminal action against a person who violates Section 6-210 or allows property to be used for illegal occupancy and/or storage of junk, rubbish, and/or vehicles, including but not limited to misdemeanor prosecution.

(Added Ord. 2001-40, § 5, 5-28-01; Am. Ord. 2003-40, §§ 1, 2, eff. 6-17-03; Am. Ord. 2005-14, § 42, eff. 4-9-05; Am. Ord. 2017-72, § 1, eff. 1-18-18; Am. Ord. 2022-001, § 1, eff. 3-4-22).

SEC. 10-612. APPEAL.

Any person entitled to service under subsection (b) of Section 10-607 may appeal from any notice and order of the Director pursuant to Chapter 1, Article 4 of this code. If no appeal is filed within the time prescribed, the action of the Director shall be final.

(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 98-79, § 1, eff. 12-3-98)

SEC. 10-613. INOPERATIVE, WRECKED, DISMANTLED OR ABANDONED VEHICLES.

The following provisions shall apply only to the removal of inoperative, wrecked, dismantled or abandoned vehicles, or any part thereof.

(a) If, after inspection, it is determined that there exists an inoperative, wrecked, dismantled or abandoned vehicle in violation of this article, the Director may issue a notice and order to remove the vehicle or part as a public nuisance. The notice and order shall contain the following:

(1) Identification of the property upon which the vehicle(s) is/are located, along with a description of the vehicle(s) or part thereof.

(2) A statement advising the property owner and the registered and legal owner of the vehicle of the right to request a hearing within fifteen (15) days of the mailing of the notice and order. If a request for hearing is not made within the time provided, the city shall have authority to remove the vehicle(s) or part. The property owner may appear in person or submit a sworn statement denying

responsibility for the presence of the violation or part, and explain the reasons for such denial. If the property owner submits that statement within fifteen (15) days of the mailing of the notice and order, the statement shall be construed as an appeal which does not require the presence of such property owner.

(3) Service of the notice and order shall be mailed registered or certified mail to the owner of the land as shown on the last equalized assessment rule and to the last registered and legal owner of record unless the vehicle is in such condition that identification numbers are not available to determine ownership.

(4) A notice and order need not be served if both the owner of the property and the owner of the vehicle or part sign a release authorizing the removal of the vehicle or part and waiving further interest in the vehicle or part.

(b) Once a vehicle is removed, it shall not be reconstructed or made operable unless it is a vehicle that qualifies either for horseless carriage license plates or historical vehicle license plates, pursuant to Vehicle Code Section 5004 in which case the vehicle may be reconstructed or made operable.

(c) If a hearing is held and it is determined that the vehicle was placed on the land without the consent of the landowner and that he or she has not subsequently acquiesced to its presence, then the city shall not assess costs of administration or removal of the vehicle against the property upon which the vehicle is located or otherwise attempt to collect those costs from the owner.

(d) Administration of this ordinance shall be by regularly salaried full-time employees of the city, except that the removal of vehicles or parts thereof from the property may be by any other duly authorized person.

(e) Any person authorized by this article to enforce this article may enter upon private property in accordance with Section 10-604(b), for the purposes specified in this article to examine a vehicle or part thereof, obtain information as to the identity of a vehicle, and remove or cause the removal of a vehicle or part thereof declared to be a public nuisance pursuant to this article. The city or its authorized representatives shall not be liable for damage caused to a vehicle or part thereof by removal pursuant to this article.

(f) Within five (5) days of the removal of such inoperative or abandoned vehicle or part, the city shall notify the Department of Motor Vehicles of the State of California identifying the vehicle or part thereof and any evidence of registration available, including, but not limited to, the registration card, certificates of ownership, or license plates.

(g) This article is not the exclusive regulation of abandoned, wrecked, dismantled or inoperative vehicles with the City of Fresno. It shall supplement and be an addition to the other regulatory codes, statutes and ordinances enacted by the City of Fresno, State of California, or any other legal entity or agency having jurisdiction.

(h) A vehicle is deemed "inoperative" if the vehicle is (1) mechanically incapable of being driven; or (2) prohibited from being operated on a public street or highway pursuant to Vehicle Code Sections 4000, 5002, 24002, or 40001, concerning license plates, registration, equipment, safety and related matters.

(Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-614. EXTENSION OF THE TIME TO PERFORM WORK.

Upon receipt of a written request from any person required to conform to the notice order or final order, the Director, in his/her discretion, may grant an extension of time within which to complete said abatement, if the Director determines that such an extension of time will not create or perpetuate a situation imminently dangerous to life or property. The Director shall have the authority to place reasonable conditions on any extensions he may grant pursuant to this section.

(Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-615. FAILURE TO COMPLY WITH FINAL ORDER.

(a) After any notice and order of the Director made pursuant to this article shall have become a final order, either by decision of the hearing officer affirming or modifying the same, or by failure to file an appeal within the time prescribed herein, no person or entity shall fail, neglect, or refuse to obey any such order. Any such person or entity who fails to comply with any such order is guilty of a misdemeanor.

(b) If, after the notice and order of the Director made pursuant to this article has become a final order, as described in subsection (a) above, and the responsible party has failed to timely comply with the final order, the Director may:

(1) Issue administrative citations pursuant to Section 1-308 et seq.; and/or,

(2) Request the City Attorney to exercise his/her discretion in the alternative, or cumulatively, to institute court action; and/or,

(3) Proceed with administrative abatement as provided in subsection (c).

(c) (1) Except where abatement will require the demolition or removal of a structure, the Director may proceed with administrative abatement by removing the public nuisance at the expense of the responsible party.

(2) Where abatement will require the demolition or removal of a structure, city or its agent shall not abate said nuisance without first obtaining an order from the City Hearing Officer. An order approving abatement in such circumstances may be obtained either (a) after an appeal of the notice and order, if the notice and order is appealed to the City Hearing Officer and the Hearing Officer so grants; or, (b) by the city scheduling and noticing a nuisance abatement hearing before the City Hearing Officer.

(3) Notice of a nuisance abatement hearing shall be served in the same manner as the notice and order. The notice shall state the time, place and location for hearing, how

the city intends to abate the nuisance, the estimated cost of abatement, including administrative time, and that said abatement will be done at the expense of the owner. The hearing shall be set no earlier than 10 calendar days from the date of service. At the time and place set for hearing, city shall establish the existence of the condition constituting a public nuisance as defined in this ordinance, that a notice and order was properly served on the person(s) responsible, that said person(s) have failed to timely abate the nuisance, and that notice of the abatement hearing was properly served on the person(s) responsible. The Hearing Officer shall make findings regarding the existence of the nuisance, the proper service of the notice and order and the notice of the abatement hearing and shall confirm or deny the request to abate.

(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 2001-40, §§ 6, 7, 5-28-01).

SEC. 10-616. ADMINISTRATIVE ABATEMENT.

(a) Abatement of the nuisance may in the discretion of the Director be performed by city forces or by a contractor retained pursuant to the provisions of this Code.

(b) The Director may enter upon private property to abate the nuisance pursuant to the provisions of this article. No person shall obstruct, impede or interfere with any officer, employee, contractor or authorized representative of the city whenever such person is engaged in the work of abatement, pursuant to the provisions of this article, or in performing any necessary act preliminary to or incidental to such work or authorized or directed pursuant to this article.

(c) No officer, agent, or employee of the city shall be personally liable for any damage incurred or alleged to be incurred as a result of any act required, permitted or authorized to be done or performed in the discharge of his duties pursuant to this article.

(d) The Director may charge an hourly fee, as established in the Master Fee Schedule, for the enforcement of this ordinance.

(e) Upon completion of the abatement, the costs of abatement may be collected under the provisions of Chapter 1, Article 5 of this Code.

(Added Ord. 97-77, § 2, eff. 1-29-98; Am. Ord. 98-65, § 3, eff. 10-1-98; Am. Ord. 98-79, § 2, 12-3-98; Am. Ord. 2001-40, §§ 8, 9, 5-28-01; Am. Ord. 2002-51, § 15, eff. 10-31-02; Ord. No. 2022-002, § 1, eff. 3-31-22; Am. Ord. 2022-017, § 1, eff. 8-5-22).

SEC. 10-617. BLIGHTED VACANT BUILDING ORDINANCE.

(a) All vacant buildings shall be maintained in a non-blighted, safe, and secure condition, consistent with the requirements of this section. A vacant building maintained as a fire hazard, attractive nuisance, or in a blighted condition shall be deemed a public nuisance. If the City finds the building is being maintained as a fire hazard or in a blighted condition, the City may issue a Notice and Order to the property owner and the property owner may be subject to fines and penalties as set forth in this section.

(b) All vacant buildings shall be actively maintained, monitored and secured in compliance with all of the following standards:

(1) Maintain all yards visible from any public right of way, including interior yards visible from adjacent properties to be maintained in a safe and sanitary condition, including keeping all plant materials controlled to avoid Overgrowth as defined in this Article; including park strips, with Landscaping as defined in this Article, installed and maintained in a trimmed, live and healthy condition; the requirements of this subsection to maintain live plant material shall not be effective if and during the time the city has implemented Stage 2, 3, or 4 water shortage contingency rationing under its Water Use Reduction Plan.

(2) Maintain the exterior of the building, including but not limited to, paint, finishes, roofing materials, siding, stucco, masonry, railings, steps, gutters, and structural elements in good condition.

(3) Remove all trash and debris from exterior of the property within seventy-two (72) hours of notification.

(4) Comply with all applicable state and local codes and regulations, and any applicable city issued permits and site plans in the replacement and repair of all elements of the exterior of the building.

(5) Take all reasonable steps necessary to prevent criminal activity, including, but not limited to, the use and sale of controlled substances, prostitution, and criminal street gang activity, on the premises. Examples of reasonable steps include actively monitored security alarm systems and adequate physical inspections.

(6) Secure and maintain the property, both structure and grounds, against trespassers, including maintaining all windows and doors with locks, replacing all broken doors or windows, and securing any other openings into the structure that are readily accessible to trespassers as defined under Chapter 11 of this code or such other means as may be accepted by the Director. Securing windows that are visible from any public right of way shall be done only with rigid transparent material such as clear Lexan type material with a minimum of ⅜ inch thickness to ½ inch thickness. No opaque (typically plywood) boarding materials shall be used where visible from a public right of way.

(7) Remove all graffiti on the property within forty-eight (48) hours of placement on the property in compliance with Section 9-2514.

(8) Maintain the property free of all fire hazards.

(9) Maintain the property free of any Attractive Nuisance, as defined in this Article.

(10) All buildings that have been or are expected to be vacant for longer than thirty (30) days shall be registered, at no cost, with the city as may be provided on a city website or web application. The registration shall include the identity of all record owners, the street address of the vacant building, and a local contact, and shall be

maintained only for internal use by the city. All applicable properties are required to be registered and updated within 72 hours of a change of ownership or contact information. Upon request, provide a Vacant Building Plan stating the owner's plans for the building, timeline for completion of those plans, and the measures in place to ensure that the building and property will be brought into compliance, will be kept secure until the building and property are brought into compliance, and will continue to be maintained in compliance with applicable city codes.

(11) Vacant buildings should be posted with approved no trespassing signage to permit police enforcement action.

(12) Fire damaged residential buildings that are not safe and legal to occupy shall be either demolished or fully repaired within 90 days of the occurrence of the fire; the Director may grant a continuance if documentation is provided to the satisfaction of the Director showing any delay is of no fault of the property owner and the property owner has made good faith efforts to demolish or fully repair within 90 days; until demolition or repairs are completed, the property owner shall secure the building to prevent unauthorized access.

(c) In addition to the requirements set forth above, vacant Commercial Buildings shall comply with the following additional standards:

(1) Install and maintain in good working order a fire protection system in accordance with all applicable codes and ordinances. Fire protection systems shall be kept in operating condition in accordance with applicable codes and ordinances.

(2) Install and maintain in good working order a security system such that breaches of any doors or windows, or the presence of intruders, alert the property owner, a property manager, and/or a security company, so that intruders may be removed.

(3) Maintain clear of combustible materials, flammable or combustible waste or rubbish, waste, or hazardous materials. Doors, windows and other openings shall be locked or otherwise secured to prevent entry by unauthorized persons in accordance with all applicable codes.

(4) Remove heating facilities or heating equipment pursuant to a valid permit or maintain in accordance with applicable codes and ordinances. If heating equipment is removed, any fuel supply shall be removed or terminated in accordance with applicable permits, codes and ordinances.

(5) Maintain in a manner in which all emergency access areas, egress points, stairways, roof-access ladders and exit signage are in functioning condition and free from deterioration.

(6) Post a sign no smaller than 18 by 24 inches on the front of the exterior building or structure so it is legible from the public-right-of-way, with the following information: (i) name and twenty-four hour contact telephone number and address of the owner, responsible party, or property management company; and (ii) the statement that "THIS PROPERTY IS MANAGED BY" with the appropriate name inserted and "TO REPORT PROBLEMS OR CONCERNS CALL" with the twenty-four hour telephone number listed. The sign shall be constructed and printed with weather resistant materials.

(7) Post a minimum of one "No Trespassing" sign in accordance with the Fresno Police Department sign and size requirements must be displayed along property frontage and visible to the public. The sign must be no smaller than 17 by 22 inches in size, with lettering no smaller than 1 inch in height.

(8) Conduct sufficient inspections so that the presence of intruders or illegal and/or dangerous activities (for example, starting fires or manufacturing illegal drugs) in the building may be discovered, so that appropriate remedial action can be taken to terminate the illegal and/or dangerous activities.

(d) **Non-compliance.** Failure by the property owner to comply with each of the standards set forth within eighteen (18) days of notification under this section is a separate violation of this code and subject to the following penalties:

(1) Use of any abatement procedure provided in this Article, with costs recoverable pursuant to Chapter 1, Article 5 of the Code;

(2) Issuance of a criminal citation under Section 1-305, should the owner of a vacant building be found responsible for three or more violations of this Article on three or more separate buildings within a thirty (30) day period;

(3) Issuance of an administrative citation of up to $2,500 under Section 1-308. A second citation of up to $5,000 may issue for the following 30 day period. A third citation of up to $10,000 may issue for the following 30 day period, and each 30 day period thereafter until compliance with the Notice and Order is achieved. There shall be a presumption that a violation continued from day to day between the initial inspection date at which it was observed by the city and a subsequent inspection date at which it continued to exist; and/or

(3)(a) Vacant properties that are not registered on the City's vacant property registry shall be subject to an administrative citation of $250 per month; and/or

(4) Institution of legal action to pursue any available legal remedy, including receivership or injunction, by the City Attorney upon request by the Director.

(e) **Occupancy.** The city reserves the right to require an interior inspection of the property to ensure the property meets local and state law requirements for habitability. If a vacant building has been found to be in violation of this Article, the building shall not be occupied until all fines and abatement costs are paid, or acceptable arrangements with the city for payment have been made, and the property meets all health and safety code standards that are required for occupancy.

(f) **Grace period.** Owners of newly acquired blighted vacant buildings shall have sixty (60) days from the date of legal possession of the building to be in compliance with this ordinance. The Director may grant a continuance if documentation is provided to the satisfaction of the Director showing any delay is of no fault of the property owner.
(Added Ord. 2003-17, § 3, 4-22-03; Am. Ord. 2004-111, § 1, eff. 12-05-04; Am. Ord. 2006-9, § 2, 3-13-06; Am. Ord. 2008-68, §§ 1—4, eff. 1-15-09; Am. Ord. 2015-11, § 1, eff. 6-19-15; Am. Ord. 2018-6, § 1, 3-1-18; Am. Ord. 2021-027, § 1, eff. 7-22-21).

SEC. 10-618. REMEDIES OF PRIVATE PARTIES.

The provisions of this article shall in no way adversely affect the right of the owner, lessee or occupant of any such lot to recover all costs and expenses required by this article from any person causing such nuisance.
(Added Ord. 97-77, § 2, eff. 1-29-98).

SEC. 10-619. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. The Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 99-8, § 1, eff. 3-19-99).

SEC. 10-620. RESERVED.

Editor's note—Ord. 2015-11, § 3, effective June 19, 2015, amended the Code by repealing former § 10-620 in its entirety. Former § 10-620 pertained to registration of vacant foreclosed properties, and derived from Ord. 2008-67, effective January 15, 2009.

ARTICLE 7 MANAGEMENT OF REAL PROPERTY ORDINANCE

Sec. 10-701. Title.
Sec. 10-702. Findings.
Sec. 10-703. Purpose.
Sec. 10-704. Definitions.
Sec. 10-705. Scope.
Sec. 10-706. Joint Responsibility.
Sec. 10-707. Authority.
Sec. 10-708. Unlawful Nuisances.
Sec. 10-709. Notice to Responsible Parties.
Sec. 10-710. Violation.
Sec. 10-711. Procedures for Issuance of Administrative Citations and Penalties.
Sec. 10-712. Administrative Expenses Incurred.
Sec. 10-713. Collection of Fines and Penalties.
Sec. 10-714. Use of Fees, Fines and Penalties.
Sec. 10-715. Relocation Costs.
Sec. 10-716. Severability.

SEC. 10-701. TITLE.

This article shall be known as the "Management of Real Property Ordinance."
(Added Ord. 98-73, § 1, eff. 10-24-98).

SEC. 10-702. FINDINGS.

(a) Just as the physical conditions of structures and properties within the City can constitute public nuisances, so can too the behavior of persons on properties within the City constitute public nuisances. The abatement of behavioral nuisances is as important to the City in its fight against blight, decay, deterioration and crime as is the abatement of other nuisances created by physical conditions.

(b) The owners of real properties within the City are primarily responsible for monitoring their properties and for taking appropriate action if a nuisance exists thereon, whether that nuisance be created by existing physical conditions or by nuisance creating behaviors, or the combination of conditions. Many nuisances can be avoided with active property management. Lack of proper management of real property can create an environment which is conducive to behaviors which become a nuisance with repetition and lack of abatement and corrective measures. If a property owner does not fulfill the owner's responsibilities, it is necessary for the safety, health and welfare of the neighborhoods, and the City as a whole, that the City be able to undertake abatement action.

(c) Because of the profound impact and effect behavioral nuisances have on the community, individuals and crime, the Council, in adopting this ordinance finds the civil penalties imposed for a violation of this ordinance are justified and necessary to protect the health, property, and integrity of this community.

(d) Nothing in this ordinance exempts property owners from compliance with state or federal laws, including, but not limited to, laws on housing, eviction, retaliatory conduct, discriminatory conduct, or invasion of privacy, nor with City laws relating to housing or relocation.
(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-703. PURPOSE.

(a) The purpose of this article is:

(1) To set forth and enforce minimum standards relating to the management of activities conducted or conditions on real property to protect the public health, safety and welfare; and

(2) To put in place remedies which will permit the City to take effective, efficient administrative or other legal action against property owners and other responsible parties who cause, permit or suffer nuisance creating behaviors or conditions to occur on their properties on a continuing basis, in order to compel such parties to abate the nuisance creating behaviors or conditions and control the environment, both physical and behavioral, on such real properties.

(b) The provisions of this article are complementary, cumulative, supplementary, and additional to any other legal remedies available, whether found in this code, state or federal laws, regulations, or case law.

(c) It is not the intent nor purpose of this article to subject owners or property managers to any legal liability resulting from an occupant's actions away from an occupant's residence, unless it can be shown that the problem occupant is also creating a nuisance or committing a crime at the occupant's residence.
(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-704. DEFINITIONS.

(a) "Administrative expenses" shall include, but not be limited to:

(1) The cost of any hearings before the Hearing Officer;

(2) Personnel costs, both direct and indirect, including attorney's fees;

(3) The costs incurred in documenting the nuisance, including the actual expenses and costs of the City in conducting inspections and in the preparation of notices, administrative citations and orders.

(b) "Director" shall mean the Police Chief and/or the City Attorney, and any of their designees.

(c) "Enforcement officer" means any person authorized by the Director pursuant to Section 10-707 to enforce violations of this article. Although this ordinance assumes code enforcement and police officers will continue to cooperate in protecting Fresno residents' quality of life, this ordinance does not authorize code enforcement officers to enforce criminal laws.

(d) "Habitual" shall mean patterns or occurrences evidenced by frequent repetition or regularity, or that evidence a mode of practice or usage.

(e) "Hearing officer" shall mean any person designated under the provisions of the code to preside over the administrative hearings in accordance with the provisions of Chapter 1, Article 4, of the Fresno Municipal Code.

(f) "Appellant Representative" may be a representative selected by a recipient of an administrative citation, including but not limited to a representative from any one of the following organizations: California Apartment Association-Greater Fresno Division; Institute of Real Estate Management, the Fresno Chamber of Commerce, Centro La Familia; Centro Binacional Para el Desarrollo Indigena Oaxaqueño; Fresno Center for New Americans; Central California Legal Services.

(g) "Occupant" shall mean any person or entity in actual possession of or inhabiting real property.

(h) "Owner" and "property owner" shall mean the owner or owners of record of the subject real property as shown on the latest equalized assessment role of Fresno County or as otherwise actually known to the Director. Property Owner shall mean a person or entity with an ownership interest in a property, and shall include all entities in which that person or entity has an ownership interest.

(i) "Property manager" shall mean a third party hired or retained by an owner or occupant to engage in the operation, control, or oversight of real property.

(j) "Real property" shall mean any lot or parcel of land for which the owner has legal ownership or exercises custody or control thereof.

(k) "Responsible parties" under this section shall include owners; occupants; property managers; and home owners' associations, in the case of condominium developments.
(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2004-31, § 1, 4-24-04; Am. Ord. 2016-16, § 1, eff. 7-1-16; Am. Ord. 2019-019, § 4, eff. 9-19-19; Am. Ord. 2022-013, § 1, eff. 7-22-22).

SEC. 10-705. SCOPE.

This article shall apply generally to all real property throughout the City of Fresno wherein any of the nuisances hereinafter specified are found to exist.
(Added Ord. 98-73, § 1, eff. 10-24-98).

SEC. 10-706. JOINT RESPONSIBILITY.

(a) Every responsible party owning, possessing, or having charge or control of real property within the City is required to manage that property and control the environment thereon in a manner so as not to violate the provisions of this article, and every responsible party shall, in the discretion of the hearing officer, be jointly and severally liable for violations thereof regardless of any contract or agreement among them or with any third party regarding the property.

(b) Every responsible party is required:

(1) To comply with all laws applicable to the property.

(2) To supervise anyone utilizing, using, or occupying the property, with or without the consent of the owner, consistent with this article.

(3) To maintain the property in a manner so as not to violate the provisions of this article. Nothing in this ordinance is intended to replace or supersede the routine interior inspection program by which the City enforces state and local standards of habitability for rental housing.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-707. AUTHORITY.

The Director shall have the responsibility to administer and enforce the provisions of this article. The Director shall have the authority to designate employees as enforcement officers in conformance with this article to assist in the enforcement responsibilities, including the issuance of administrative citations pursuant to Section 1-308 et seq. of this article.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-708. UNLAWFUL NUISANCES.

It is hereby declared a public nuisance and a violation of this article for a responsible party owning, possessing, or having charge or control of any real property in the City to permit, with actual knowledge or upon notice pursuant to this article, any of the following activities to habitually occur on the real property of the owner. This list is inclusive, and subsequent violations of any of the following subsections may lead to a subsequent citation:

(a) The illegal sale, use, cultivation or possession of controlled substances or other illegal drugs and substances.

(b) The gathering, or coming and going, of people who engage in any criminal activity on the premises including, but not limited to, the purchase or use of controlled substances.

(c) The occurrence of prostitution.

(d) Unlawful activities of one or more validated gang members. "Validated gang member" as used in this subsection means a person who is known to law

enforcement, using Fresno Police Department's "10 Criteria for Gang Validation," to be a member of a "criminal street gang" as that term is defined in California Penal Code section 186.22, subdivision (f).

(e) The making or continuing, or causing to be made and continued, of any loud, unnecessary or unusual noise which disturbs the peace and quiet of the neighborhood, or which causes discomfort or annoyance to any reasonable person of normal sensitiveness residing on the property or in the area. The standards set forth in Fresno Municipal Code Chapter 10, Article 1 shall be utilized in determining whether a violation of this subsection exists.

(f) The unlawful discharging of a firearm or brandishing of a weapon by any person.

(g) Frequent response and/or Calls For Service by the Fresno Police Department to the real property or the adjacent area including public property or common areas of an apartment complex or condominium development (but not the real property of another) as a result of any person or persons causing any combination of the following calls as indicated in the City of Fresno Police Department Incident Code Identifier:

(1) Animal disturbances, including but not limited to competitive fighting between animals.

(2) Violent or non-violent criminal acts, charged or not, including, but not limited to rapes, assaults, battery, homicides, shootings, identity theft, fraud, possession of stolen property, burglary, and theft.

(3) Illegal consumption of intoxicants in public view.

(4) Gaming activities.

(5) Juvenile or domestic disturbances, excluding domestic violence calls for service.

"Frequent" as used in this subsection means such response is occurring more than 1.50 times than the average number of such responses for property of a similar size and character in the same "policing district" established by the Police Chief.

"Calls for Service" as used in this subsection means dispatched calls made through a call to 911, FPD's non-emergency line, or the detective assigned to the area, but they do not require an officer to respond to the property. Calls for Service are a level of police activity in a defined area during a specific time frame.

(h) The presence of graffiti or other defacing words, letters, or drawings, trash and debris on the property for a 48 hour period. Unless the specific individuals responsible for the graffiti, trash or debris can be identified, violation of this subsection is citable to the property owner and/or property manager and/or home owner's association only.

(i) The presence of abandoned vehicles or improperly stored inoperative, wrecked, or dismantled vehicles on the property, except as permitted in Article 6, Chapter 10.

Unless the specific individuals responsible for the abandoned, wrecked or dismantled vehicles can be identified, violation of this subsection is citable to the property owner and/or property manager and/or home owner's association only.

(j) Frequent verified complaints of violations of Article 3, Chapter 11 (Housing Regulations), Article 4, Chapter 11 (Dangerous Building Ordinance), Article 5, Chapter 10 (Fire Prevention Ordinance) or Article 6, Chapter 10 (Public Nuisance Abatement Ordinance) of the Fresno Municipal Code, occurring on any one or more properties of the same owner within the City of Fresno.

"Verified complaints" as used in this subsection means complaints verified by code enforcement staff after a complaint has made. In order to be considered verified, code enforcement staff would send a notice to the property owner regarding the violation.

"Frequent" as used in this subsection means five or more verified complaints at the same property or five or more verified complaints at different properties owned by the same owner within a rolling one year period.

(k) The illegal sale, use, or possession of firearms.

(l) The harboring, boarding, or concealing of a person for which there exists an outstanding warrant for arrest.

(m) The illegal subletting and/or subdividing of dwelling units in violation of building codes and occupancy standards.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16; Am. Ord. 2022-013, § 1, eff. 7-22-22).

SEC. 10-709. NOTICE TO RESPONSIBLE PARTIES.

The Director shall, within a reasonable period of time from the date of occurrence of any activity listed in Section 10-708, notify the known responsible parties of the unlawful activity. Said notice shall include the location of the property, the name of the person(s) conducting the unlawful activity (if known and appropriate), a description of the illegal activity, suggested remedies and a warning of the enforcement of this article if the activity described is not abated within the time prescribed in the notice. The notice shall be served on the owner of the property, via regular mail, at the address listed on the latest tax assessment roll and known address(es) of additional responsible parties. Within five (5) days of the date of mailing the notice under this subsection, the owner shall provide a copy of the notice to all other responsible parties.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-710. VIOLATION.

Any violation of this article may be enforced by any of the following procedures:

(a) Institution of legal action by the City Attorney.

(b) By issuance of administrative citations with civil penalties in lieu of criminal prosecution (but not prohibiting civil injunctive action) as follows:

(1) First violation, One Thousand Dollars ($1,000), plus any abatement, actual, administrative and enforcement costs and administrative expenses incurred;

(2) On a second violation of this article within a rolling 12 month period, Ten Thousand Dollars ($10,000), plus any abatement, actual, administrative and enforcement costs and administrative expenses incurred;

(3) On a third or subsequent violation of this article within a rolling 12 month period, between Ten Thousand Dollars ($10,000) and Fifty Thousand Dollars ($50,000), plus any abatement, actual, administrative and enforcement costs and administrative expenses incurred.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2004-31, § 2, 4-24-04; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-711. PROCEDURES FOR THE ISSUANCE OF ADMINISTRATIVE CITATIONS.

(a) Administrative citations shall be issued consistent with the procedures set forth in Section 1-308 of the Fresno Municipal Code.

(b) If an appeal is filed pursuant to Section 1-308(f), in addition to the procedures for hearing set forth in Chapter 1, Article 4, of the Fresno Municipal Code, an "Appellant Representative" selected by the appellant, shall have the opportunity to serve as an advisor to the hearing officer. The hearing officer shall consider the information provided by such advisor regarding any relevant issue, including but not limited to industry standards of practice, as well as the reasonableness of any remedy. The hearing officer shall allocate responsibility for payment of fines and fees proportionally, based on evidence of relative fault for the nuisance condition and for accrual of abatement, actual, administrative and enforcement costs.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-712. COSTS AND EXPENSES INCURRED.

In addition to any administrative penalty assessed for a violation of this article, any responsible party found in violation of this article will be charged abatement, actual, administrative and enforcement costs as defined in Section 1-503, as well as administrative expenses as defined in Section 10-704, calculated to recover the total costs incurred by the City in enforcing this article.

(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2004-31, § 3, 4-24-04; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-713. COLLECTION OF PENALTIES.

The City may collect abatement, actual, administrative and enforcement costs, as well as penalties and administrative expenses under the provisions of Chapter 1, Article 5 of this Code.
(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2002-51, § 16, eff. 10-31-02; Am. Ord. 2004-31, § 4, 4-24-04).

SEC. 10-714. USE OF FEES, FINES AND PENALTIES.

All costs and penalties received by the City pursuant to this article shall be used exclusively for administration and enforcement of this article and Articles 3 and 4 of Chapter 11 of the Fresno Municipal Code.
(Added Ord. 98-73, § 1, eff. 10-24-98).

SEC. 10-715. RELOCATION COSTS.

The owner shall be required to reimburse the City for any costs or expenses associated or incurred with the relocation of occupants resulting from the enforcement of this Article.
(Added Ord. 98-73, § 1, eff. 10-24-98; Am. Ord. 2016-16, § 1, eff. 7-1-16).

SEC. 10-716. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. The Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 98-73, § 1, eff. 10-24-98).

ARTICLE 8 PUBLIC SAFETY ALARM SYSTEMS

Sec. 10-801. Title.
Sec. 10-802. Purpose.
Sec. 10-803. Definitions.
Sec. 10-804. Alarm System Standards.
Sec. 10-805. Alarm System Registration.
Sec. 10-806. Silencing Alarm Systems.
Sec. 10-807. Prohibited Alarm Systems.
Sec. 10-808. Alarm Businesses and Agents.
Sec. 10-809. Notice of Change.
Sec. 10-810. Maintenance.
Sec. 10-811. Reimbursement for False Alarm.
Sec. 10-812. Reserved.
Sec. 10-813. Appeal.
Sec. 10-814. Exempt Alarms.
Sec. 10-815. Enforcement.
Sec. 10-816. Limitation of Liability.

SEC. 10-801. TITLE.

This article shall be referred to as the Public Safety Alarm System Ordinance. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-802. PURPOSE.

The purpose of this article is to set forth regulations governing burglary, robbery, fire and medical alarm systems within the city; to reduce false alarms; to require registration certificates therefor; and to provide the authority to establish fees. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-803. DEFINITIONS.

(a) **General.** Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall govern the construction, meaning and application of words and phrases used in this article. The definitions of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) **Alarm agent.** The term "alarm agent" means any person who is registered as an alarm agent with the Bureau of Collection and Investigative Services, pursuant to the provisions of Division 3, Chapter 11.6 of the Business and Professions Code and doing business as such within the corporate limits of the City of Fresno.

(c) **Alarm company operator.** The term "alarm company operator" means any person licensed as an alarm company operator by the Bureau of Collection and Investigative Services, pursuant to the provisions of Division 3, Chapter 11.6 of the Business and Professions Code and doing business as such within the corporate limits of the City of Fresno.

(d) **Alarm Officer.** The term "Alarm Officer" means, with regard to burglary or robbery alarm systems, the Chief of Police of the City of Fresno, and with regard to fire or medical assistance alarms, the Fire Chief of the City of Fresno.

(e) **Alarm system.** The term "alarm system" means any mechanical or electrical device which is designed or used for the detection of burglary, robbery, fire, or need for medical assistance within a building, structure or facility, or for alerting others to the commission of an unlawful act or hazard within a building, structure or facility, or both; which emits a sound or transmits a signal or message when actuated; and which is designed to elicit a response from the Police Department or Fire Department. Alarm systems include, but are not limited to, direct-dial telephone devices, audible alarms and proprietor alarms. Devices which are not designed or used to register alarms that are audible, visible or perceptible outside of the protected building, structure or facility are not included within this definition. An alarm system includes all of the necessary equipment designed and installed for the detection of burglary, robbery, fire, need for medical assistance, or other hazard in a single building, structure or facility, or for alerting others of the commission of an unlawful act within a building, structure or facility, or both.

(f) **Automatic Dialing Device.** The term "automatic dialing device" means an alarm system which automatically sends over regular telephone lines, by direct connection or otherwise, a prerecorded voice message or coded signal indicating the existence of an emergency situation that the alarm system is designed to detect.

(g) **Controller.** The term "Controller" means the Controller and Finance Director of the City of Fresno.

(h) **False Alarm.** The term "false alarm" shall mean the activation of an alarm system through mechanical failure, malfunction, improper installation or negligence of the subscriber or of his employees or agents. The term "false alarm" shall not include alarms caused by hurricanes, tornadoes, earthquakes or other conditions that are clearly beyond the control of the alarm user.

(i) **Subscriber.** The term "subscriber" means any person who purchases, leases, contracts for, or otherwise obtains an alarm system or contracts for the servicing or maintenance of an alarm system.
(Added Ord. 82-96, § 1, eff. 10-1-82; Am. Ord. 82-101, §§ 1, 2, eff. 10-15-82).

SEC. 10-804. ALARM SYSTEMS STANDARDS.

All alarm systems shall conform with the provisions of Division 5, Article 1, Chapter 11 of this Code, if applicable. (Added Ord. 82-96, § 1, eff. 10-1-82; Am. Ord. 82-101, § 3, eff. 10-15-82).

SEC. 10-805. ALARM SYSTEM REGISTRATION.

(a) **Registration required upon occurrence of False Alarm.** Each subscriber whose alarm system sounds a "false alarm," as that term is defined in Subsection 10-803(h), shall file an alarm system registration with the Controller within ten days of such false alarm, and in accordance with the provisions of this section.

(b) **Applications.** An alarm system registration shall be filed with the Controller on forms provided by the Controller. The application shall be signed and verified by the subscriber and shall contain such information as may be deemed necessary by the Controller.

(c) **Alarm requirement.** The subscriber shall supply on his application for registration certificate the names, addresses and phone numbers of at least three persons to notify in the event of an alarm activation. If the subscriber has arranged for a service contract with a service company which operates on a twenty-four (24) hour basis, emergency telephone numbers of the service company shall be deemed to satisfy this requirement. (Added Ord. 82-96, § 1, eff. 10-1-82; Am. Ord. 82-101, § 4, eff. 10-15-82; Am. Ord. 84-16, § 1, eff. 3-9-84).

SEC. 10-806. SILENCING ALARM SYSTEMS.

Upon notification by the Alarm Officer that an alarm system is activated, the subscriber, his representative, or his alarm agent, shall immediately proceed to silence the alarm, and the silencing shall be completed within thirty minutes of such notification. Alternately, the alarm system may be equipped with an automatic shutoff device which shall silence the alarm within thirty minutes, thus eliminating the need for personal responses otherwise required by this section. Should an alarm fail to be silenced by any means described in this section within the time limits prescribed by this section, the Police Department shall have the authority to hire an alarm agent or alarm company operator to silence the alarm. All costs and expenses incurred by the Police Department in hiring an alarm agent or alarm company operator to silence the alarm shall be borne by the subscriber. (Added Ord. 82-96, § 1, eff. 10-1-82; Am. Ord. 85-148, § 1, eff. 11-1-85).

SEC. 10-807. PROHIBITED ALARM SYSTEMS.

(a) **Audible Alarms Similar to Sirens.** It is unlawful to install or maintain on the exterior or interior of a building an intrusion detection device or burglar alarm system which upon actuation emits a sound which is similar to sirens in use on emergency vehicles or in vehicles used for civil defense purposes.

(b) **Direct Transmissions.** No person shall use, install, or maintain an automatic dialing device that initiates transmission to any telephone assigned to any office or department of the City. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-808. ALARM BUSINESSES AND AGENTS.

All alarm company operators and alarm agents shall register their name and file a copy of their state identification card or registration certificate with the Controller. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-809. NOTICE OF CHANGE.

Whenever any change occurs relating to any information required by this article, the person required to provide such information shall give written notice thereof to the Controller within ten days after such change. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-810. MAINTENANCE.

Each subscriber shall maintain each alarm system in good working order, providing the necessary service to prevent false alarms, to prevent malfunctions endangering persons or property, and to prevent other malfunctions. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-811. REIMBURSEMENT FOR FALSE ALARM.

A subscriber shall reimburse the city for the cost of the police or fire department manpower and equipment response to each false alarm in an amount as designated in the Master Fee Resolution. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-812. RESERVED.

Editor's note—Ord. 2026-001, § 1, effective February 20, 2026, repealed § 10-812, which pertained to conditions on police response and derived from Added Ord. 88-8, § 8, effective February 12, 1988; Am. Ord. 88-155, § 1, effective January 20, 1989.

SEC. 10-813. APPEAL.

Any subscriber who wishes to appeal the reimbursement of costs required pursuant to Section 10-811 of this article may do so in accordance with the provisions of Chapter 1, Article 4 of this Code. If no appeal is filed within the time prescribed, the action of the Controller shall be final. (Am. Ord. 88-155, § 2, eff. 1-20-89, based on former Sec. 9-1011.1; Am. Ord. 98-65, § 26, eff. 10-1-98).

SEC. 10-814. EXEMPT ALARMS.

(a) **Automobile Alarms.** The provisions of this article shall not apply to audible alarms affixed to automobiles.

(b) **Alarm Officer.** The provisions of this article shall not apply to any alarm system installed or maintained by the Alarm Officer. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-815. ENFORCEMENT.

The conviction of punishment of any person for violation of the provisions of this article shall not release such person from paying the license fee or reimbursement for false alarms due and unpaid at the time of such conviction, nor shall payment of any fee or reimbursement for false alarms prevent criminal prosecution for violation of any of the provisions of this article. All remedies shall be cumulative and the use of one or more remedies by the city shall not bar the use of any other remedy. (Added Ord. 82-96, § 1, eff. 10-1-82).

SEC. 10-816. LIMITATION OF LIABILITY.

The city shall be under no duty or obligation to a subscriber or to any other person by reason of any provision of this article or the exercise of privileges of a subscriber hereunder, including but not limited to any defects in an alarm system or any delays in transmission or response to any alarm. (Added Ord. 82-96, § 1, eff. 10-1-82).

ARTICLE 9 CANALS AND PONDING BASINS

Sec. 10-901. Definitions.
Sec. 10-902. Swimming in Canals and Ponding Basins Prohibited.
Sec. 10-903. Authority to Post.
Sec. 10-904. Penalty.
Sec. 10-905. Canal Pipes and Trash Racks.

SEC. 10-901. DEFINITIONS.

(a) "Canal" shall mean a waterway artificially improved for the purpose of draining or irrigating land.

(b) "Ponding basin" shall mean an artificial flood control work constructed pursuant to section 24 of the Fresno Metropolitan Flood Control Act, or which is owned, operated or controlled by the Fresno Irrigation District.

(c) "Posted canal" or "Posted ponding basin" means that portion of any canal or ponding basin, or the bank or shoreline thereof, within, upon or adjacent to which a sign or signs have been posted as provided herein. Said sign or signs shall be no less than one square foot in area, upon which shall appear in letters not less than two inches in height, the words, "DANGER. NO SWIMMING. NO UNATTENDED CHILDREN." Said sign or signs shall be placed in a conspicuous place or places, shall be clearly visible within the area in which swimming and unattended children are forbidden and shall be placed in such location or locations as to give reasonable warning of the dangers involved in the posted area.

(d) "Shoreline" or "bank" shall mean that portion of the real property immediately adjoining a canal or ponding basin and within twenty feet of the water's edge which is used by the public agency in maintaining and operating said canal or ponding basin.

(e) "Trash racks" shall mean a grate erected at headwalls or pipe inlets the purpose of which is to prevent entry or exit of trash, debris, large animals, or persons into a canal pipeline. (Added Ord. 84-2, § 1, eff. 2-10-84; Am. Ord. 86-119, § 1, eff. 8-18-86).

SEC. 10-902. SWIMMING IN CANALS AND PONDING BASINS PROHIBITED.

(a) It shall be unlawful for any person to swim, wade, or enter into the waters of any posted canal or ponding basin which is operated by a public agency within the city, without the express consent of the public agency which owns, operates or maintains the canal or ponding basin.

(b) It is unlawful for any parent, guardian or other person having care or control of any child under the age of ten years to knowingly permit such child to enter upon or play upon the bank or shoreline of any posted canal or ponding basin to which this article is applicable, except in the immediate presence of an adult person who has assumed responsibility for the safety of such child.

(c) It is unlawful for any child under the age of ten years to enter upon or play upon the bank or shoreline of any posted canal or ponding basin to which this article is applicable, except in the immediate presence of an adult person who has assumed responsibility for the safety of such child. (Added Ord. 84-2, § 1, eff. 2-10-84).

SEC. 10-903. AUTHORITY TO POST.

(a) The owner of the land, or the public agency operating, maintaining or having jurisdiction over the canal or ponding basin to which this article is applicable shall have authority to post the property as herein provided.

(b) The city may post such property when authorized to do so by the public entity which owns, operates, or maintains the canal, it being the intent of this provision to invoke for the city the immunity set forth in Government Code section 831.8. (Added Ord. 84-2, § 1, eff. 2-10-84).

SEC. 10-904. PENALTY.

Any person who violates any of the provisions of this article shall be guilty of an infraction punishable by a fine of not to exceed two hundred fifty dollars ($250.00). (Added Ord. 84-2, § 1, eff. 2-10-84).

SEC. 10-905. CANAL PIPES AND TRASH RACKS.

(a) Arrangements for immediate or subsequent piping of certain irrigation and drainage canals shall be made as part of the development entitlement processes and shall be conditions of approval of any development entitlement approval.

(b) All irrigation or drainage canals of a capacity which can be accommodated by a pipeline having an inside diameter of fifty-four inches or less will be required to be piped, as a condition of land divisions where new parcels are being created, or as a condition to the granting of a special permit for new development, and for building permits which are subject to requirements for street improvements even where development already exists. (Added Ord. 86-119, § 2, eff. 8-18-86).

ARTICLE 10 PUBLIC SWIMMING POOLS

Sec. 10-1001. Definitions.
Sec. 10-1002. Lifeguard Regulations.

SEC. 10-1001. DEFINITIONS.

(a) For the purposes of this article, a qualified lifeguard is a person who is at least eighteen years of age, who is in good physical condition, and who has and can demonstrate the following abilities: Swim two hundred yards; the approved tows, breaks, and carries used in standard life saving practices; the currently approved methods of artificial respiration; and basic first aid. One means by which a person shall be considered to satisfactorily meet the foregoing requirements is when he is the possessor of a valid current Red Cross or Y.M.C.A. Senior Life Saving certificate, or Red Cross or Y.M.C.A. Water Safety Instructor certificate.

(b) For the purposes of this article, a bather is any person in bathing attire. (Orig. Ord. 4697).

SEC. 10-1002. LIFEGUARD REGULATIONS.

(a) At least one qualified lifeguard properly identified shall be on lifeguard duty at each swimming pool whenever such swimming pool is open for public use and bathers occupy the pool or deck adjacent thereto. When the number of bathers on the premises on which a swimming pool is located exceeds one hundred fifty, there shall be on lifeguard duty at such pool at least two qualified lifeguards. When the number of bathers permitted to be on such premises exceeds three hundred, there shall be on lifeguard duty at such pool at least three qualified lifeguards. When the number of bathers permitted to be on such premises exceeds five hundred, there shall be on lifeguard duty at such pool at least four qualified lifeguards.

(b) Every lifeguard on duty shall wear bathing attire, headgear or other apparel, bearing insignia clearly identifying him as a lifeguard.

(c) In order to be considered on lifeguard duty, a lifeguard shall devote his full time and attention to the observation and regulation of the bathers in and immediately adjacent to the pool, to enforce reasonable sanitation and safety measures and prevent rough or boisterous activities among the bathers. A lifeguard shall be considered to be on lifeguard duty only when he is on the deck or paved portion immediately surrounding the pool, or on a lifeguard stand immediately adjacent to the pool or deck, or on a liferaft or lifeguard stand located in the pool, and has in view the bathers in, and adjacent to, the pool at all times, except when required to enter the pool to assist a bather or regulate the activities of the bathers. He shall have no other assignment nor perform other duties while bathers are in the pool.

(d) A relief lifeguard shall be provided whenever a lifeguard is required for any reason to leave the area of duty prescribed in subsection (c) hereof. (Orig. Ord. 4697).

ARTICLE 11 SMOKING POLLUTION CONTROL ORDINANCE

Sec. 10-1101. Title.
Sec. 10-1102. Findings and Purpose.
Sec. 10-1103. Definitions.
Sec. 10-1104. Application of Article to City-Owned Facilities.
Sec. 10-1105. Prohibition of Smoking in Public Places.
Sec. 10-1106. Smoking Optional Areas.
Sec. 10-1107. Areas Not Regulated.
Sec. 10-1108. Regulation of Smoking in Bowling Centers.
Sec. 10-1109. Regulation of Smoking in Places of Employment.
Sec. 10-1110. Power to Adopt More Restrictive Smoking Policies.
Sec. 10-1111. Posting of Signs and Prohibition of Ashtrays.
Sec. 10-1112. Enforcement.
Sec. 10-1113. Nonretaliation.
Sec. 10-1114. Public Education.
Sec. 10-1115. Governmental Agency Exclusion and Cooperation.
Sec. 10-1116. Other Applicable Laws.
Sec. 10-1117. Severability.
Sec. 10-1118. Review.

SEC. 10-1101. TITLE.

This article shall be known as the Smoking Pollution Control Ordinance. (Added Ord. 87-152, § 2, eff. 12-4-87).

SEC. 10-1102. FINDINGS AND PURPOSE.

(a) The Council finds that:

(1) Numerous studies have found that tobacco smoke is a major contributor to indoor air pollution; and

(2) Reliable studies have shown that breathing second-hand smoke is a significant health hazard for certain population groups, including elderly people, individuals with cardiovascular disease, and individuals with impaired respiratory function, including asthmatics and those with obstructive airway disease; and

(3) Medical studies have shown that health hazards induced by breathing second-hand smoke include lung cancer, respiratory infection, decreased exercise tolerance, decreased respiratory function, bronchoconstriction, and bronchospasm; and

(4) Studies have shown that non-smokers who suffer allergies, respiratory diseases and other ill effects of breathing second-hand smoke may experience a loss of job productivity or may be forced to take periodic sick leave because of such adverse reactions; and

(5) Studies have shown that a majority of both non-smokers and smokers desire to have restrictions on smoking in public places and places of employment; and

(6) Smoking is a documented cause of fires, and cigarette and cigar burns and ash stains on merchandise and fixtures causing economic losses to businesses.

(b) Based on the findings in subsection (a), the Council declares that the purposes of this ordinance are:

(1) To protect the public health and welfare by prohibiting smoking in public places except in designated smoking areas, and by regulating smoking in places of employment; and

(2) To strike a reasonable balance between the needs of smokers and the needs of non-smokers to breathe smoke-free air, and to recognize that, where these needs conflict, the need to breathe smoke-free air shall have priority.

(Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 1, eff. 2-19-88).

SEC. 10-1103. DEFINITIONS.

The following words and phrases, whenever used in this article, shall be construed as defined in this section:

(a) "Bar" means an area or a room utilized primarily for the sale of alcoholic beverages for consumption by patrons on the premises and in which the serving of food is incidental to the consumption of such beverages. If a restaurant operates a bar adjacent to a dining area, the term "bar" shall not include the dining area.

(b) "Dining area" or "dining room" means any enclosed area containing a counter or tables upon which meals are served.

(c) "Employee" means any individual who is employed by any employer for the consideration of direct or indirect monetary wages or profit and any individual who volunteers his or her services for a nonprofit entity.

(d) "Employer" means any person who or which employs the service of five or more persons, and includes the city.

(e) "Enclosed area" means an area closed in by a roof and four or more connected walls with appropriate openings for ingress and egress.

(f) "Place of employment" means any enclosed area under the control of an employer which employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges and restrooms, conference and classrooms, cafeterias and hallways. "Place of employment" shall not include any business establishment where four or fewer persons are employed.

(g) "Public Place" is an enclosed area to which the public is invited or has general access, including retail stores, theaters, lobbies, reception areas, waiting rooms, and entertainment centers.

(h) "Restaurant" means any coffee shop, cafeteria, tavern, sandwich stand, soda fountain, private or public cafeteria, and any other eating establishment, organization, club, boarding house, food mall or guest house, which offers food for sale to the public, guests, patrons or employees.

(i) "Retail tobacco store" means a retail store, or separate room within a retail store, utilized primarily for the sale of tobacco products and tobacco accessories and in which the sale of other products is merely incidental.

(j) "Semi-private room" means a room in a public or private health care facility containing two or more beds for patients of the facility.

(k) "Service line" means any line or gathering in a public place of one or more persons lined up or gathered to wait for and receive, in the order of the line or the gathering, service or assistance of any kind.

(l) "Smoking" means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, or pipe, or any other lighted or heated tobacco or plant product intended for inhalation, whether natural or synthetic, in any manner or in any form. "Smoking" includes the use of an electronic smoking device that creates an aerosol or vapor, in any manner or in any form, or the use of any oral smoking device for the purpose of circumventing the prohibition of smoking.

(m) (1) "Tobacco product" means any of the following:

(a) A product containing, made, or derived from tobacco or nicotine that is intended for human consumption, whether smoked, heated, chewed, absorbed, dissolved, inhaled, snorted, sniffed, or ingested by any other means, including, but not limited to, cigarettes, cigars, little cigars, chewing tobacco, pipe tobacco, or snuff;

(b) An electronic device that delivers nicotine or other vaporized liquids to the person inhaling from the device, including, but not limited to, an electronic cigarette, cigar, pipe, or hookah; or

(c) Any component, part, or accessory of a tobacco product, whether or not sold separately.

(2) "Tobacco product" does not include a product that has been approved by the United States Food and Drug Administration for sale as a tobacco cessation product or for other therapeutic purposes where the product is marketed and sold solely for such an approved purpose.

(Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 2, eff. 2-19-88; Am. Ord. 89-26, § 1, eff. 3-17-89; Am. Ord. 2016-50, § 1, eff. 1-16-17).

SEC. 10-1104. APPLICATION OF ARTICLE TO CITY-OWNED FACILITIES.

All enclosed areas owned, operated or leased by the city shall be subject to the provisions of this article.

(Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 3, eff. 2-19-88).

SEC. 10-1105. PROHIBITION OF SMOKING IN PUBLIC PLACES.

Except where specifically permitted pursuant to Sections 10-1106 and 10-1108, or specifically not regulated pursuant to Section 10-1107, smoking is prohibited in all public places, including but not limited to the following:

(a) Places of business where five or more persons are employed and where goods are sold, including retail stores, grocery stores and supermarkets, and department stores;

(b) Restaurants;

(c) Places of business where five or more persons are employed and where services are sold, including legal, medical, dental, accounting, engineering, or architectural services;

(d) Health care facilities;

(e) Hotels, motels, boarding houses and guest houses;

(f) Libraries, museums, aquariums, zoos;

(g) Theaters, including theaters for the showing of moving pictures, stage productions, operas, ballet and musical performances;

(h) Sports arenas, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice skating rinks, bowling alleys and arcades;

(i) Convention halls;

(j) Elevators;

(k) Restrooms, lounges, lobbies, waiting areas and ticket areas;

(l) Polling places.

(m) Regardless of whether enclosed or not, the following areas of Fresno Yosemite International Airport (FAT) and Fresno Chandler Executive Airport (FCH) are "public places" for the purposes of this Article: all airline terminal roadway pedestrian cross walks, terminal frontage sidewalks, loading and unloading curb area, and areas surrounding all building entrances and exits, as well as all areas within the restricted access airside area. Other areas of FAT and FCH may be designated non-smoking in the interest of protecting health and property, at the Director of Aviation's discretion.

(Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 4, eff. 2-19-88; Am. Ord. 2016-50, § 1, eff. 1-16-17).

SEC. 10-1106. SMOKING OPTIONAL AREAS.

(a) Notwithstanding the provisions of Section 9-1605, the operator of a public place may permit smoking in bars, retail tobacco stores, and in convention facilities, conference, meeting or assembly rooms of restaurants, hotels, motels and convention halls when used for private functions.

(b) Smoking may be permitted in a semi-private room of a health care facility if all patients within the room are smokers and request in writing to be placed in a room where smoking is permitted.

(c) Smoking may be permitted in an area which would otherwise be defined as a public place if such area is separated from the remaining public area, adequately ventilated to assure that smoke will not migrate into areas designated as "no smoking" and no goods or services are available for sale other than those provided through automated machines not requiring the ongoing attention or assistance of a person. Such an area where smoking is permitted must be so designated at all entrances and exits to such area.

(d) An operator of a public place, which operator is also a charitable organization, may request an exemption from certain provisions of this ordinance by making application therefor on a form available from the Chief Administrative Officer. Such application shall include the provision(s) from which exemption is sought, the reason for the request for exemption and such other information as is deemed appropriate by the Chief Administrative Officer. In order to qualify for an exemption, the reason for the request must include an overriding public purpose which is separate from, and in addition to, the impact of this ordinance on revenue raised or any other aspect of operations. The operator shall post a copy of the application in a conspicuous area of the public place for which exemption is sought and shall certify in the application the date upon which posting was made. Not sooner than ten days after such posting the Chief Administrative Officer, or his/her designee shall conduct a hearing thereon and shall render a decision within ten days after the hearing. The applicant or other interested party may appeal the decision of the Chief Administrative Officer to the City Council within fifteen days of the Chief Administrative Officers's decision. If no appeal is made within such period, the decision of the Chief Administrative Officer shall be final. (Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 89-26, §§ 2, 3, eff. 3-17-89; Am. Ord. 93-25, § 1, eff. 6-28-94).

SEC. 10-1107. AREAS NOT REGULATED.

Nothing in this article shall be deemed to regulate smoking:

(a) In a private residence except where used as a licensed business which is open to the public or which constitutes place of employment; or

(b) In hotel, motel or other boarding house rooms rented to guests; or

(c) In a billiard room as defined in section 9-1801(b) of this Code; or

(d) By a performer of a stage production when smoking is a part of such production (Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 5, eff. 2-19-88).

SEC. 10-1108. REGULATION OF SMOKING IN BOWLING CENTERS.

Recognizing the diverse nature of the facilities and functions provided by a bowling center, the following provisions shall apply:

(a) The bowlers' area including the approach area, participants' seating area, and scorekeepers' table) shall be designated as a nonsmoking area.

(b) The spectators' area and entryways may be designated as smoking areas.

(c) Other areas of the facility shall comply with the appropriate designations as provided elsewhere in this article. (Added Ord. 87-152, § 2, eff. 12-4-87).

SEC. 10-1109. REGULATION OF SMOKING IN PLACES OF EMPLOYMENT.

(a) Employers shall provide smoke-free areas for non-smoking employees within places of employment to the maximum extent possible, but employers are not required to incur any expense to make structural or other physical modifications in providing these areas.

(b) Within one hundred twenty days of the effective date of this ordinance, each employer shall adopt, implement, make known and maintain a written smoking policy, which shall contain at a minimum the following requirements:

(1) Any employee in a place of employment shall be given the right to designate his or her immediate work area as a non-smoking area. The smoking policy adopted by the employer shall include a reasonable definition of the term "immediate work area";

(2) Prohibition of smoking in enclosed areas of general passage, including hallways and elevators;

(3) Maintenance of a separate and contiguous non-smoking area of not less than sixty percent of the seating capacity and floor space in cafeterias;

(4) A mechanism for resolving disputes between employees in which the health concerns of non-smokers shall take precedence.

(c) The smoking policy shall be communicated to all employees within three weeks of its adoption and at least annually thereafter.

(d) Smoking in employee lounges and areas of general assembly including conference rooms and classrooms may be permitted, provided that an employer may, upon request by one or more employees, designate one or more employee lounges as "smoking permitted" only if "no smoking" lounges, conference rooms, or classrooms, of substantially equal size, number, accessibility and amenities (including but not limited to, seating, vending machines and drink dispensers, tables, audio and video equipment) are also provided. (Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 89-26, §§ 4, 5, eff. 3-17-89).

SEC. 10-1110. POWER TO ADOPT MORE RESTRICTIVE SMOKING POLICIES.

Notwithstanding any other provisions of this article, any owner or operator of a public place or an employer who controls any place of employment regulated by this article, may adopt policies relating to smoking which are more restrictive than those provided herein. (Added Ord. 87-152, § 2, eff. 12-4-87).

SEC. 10-1111. POSTING OF SIGNS.

(a) "Smoking" or "No Smoking" signs, whichever are appropriate, with letters of not less than one inch in height or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it) shall be clearly and conspicuously posted in every public place and every place of general assembly by employees in a place of employment, where smoking is regulated by this article, and in sufficient number and location to assure visibility in such places, by the owner, operator, manager or other person having control of such place. For purposes of this article, the Chief Administrative Officer or his designee shall be responsible for the posting of signs in regulated facilities of the city.

(b) Every theater or auditorium owner, manager or operator shall conspicuously post signs in the lobby stating that smoking is prohibited within the theater or auditorium, including the lobby, and in the case of motion picture theaters, such information shall be shown upon the screen for at least five seconds prior to the showing of each feature motion picture.

(c) Every restaurant shall inform its patrons, verbally or by posting at every entrance a conspicuous sign, with letters of not less than one inch in height, that a non-smoking section is available. Every patron shall be asked as to his or her preference whenever a host or hostess is available to make an inquiry. The terms "host" and "hostess" shall include persons taking reservations by telephone.

(d) Whenever any city department conducts an authorized building, fire and/or safety inspection of premises which are required to post signs pursuant to this section, such city department shall also inspect to see that the signing requirements of this section have been complied with and shall issue a certificate of compliance if compliance is found.

(e) Ashtrays shall not be permitted in any public place or place of employment in an area where smoking is prohibited. (Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 6, eff. 2-19-88; Am. Ord. 89-26, § 6, eff. 3-17-89).

SEC. 10-1112. ENFORCEMENT.

(a) Enforcement of this article shall be implemented by the Chief Administrative Officer or his designee and shall be undertaken solely at the discretion of the Chief Administrative Officer. Any citizen who desires to register a complaint under this article may initiate enforcement with the Chief Administrative Officer or his designees.

(b) Any person violating the provisions of this article shall reimburse the city for the cost of the police or other enforcement agent of the city responding to the complaint and/or the

violation pursuant to fees set forth in the Master Fee Resolution. A conviction or punishment of any person for violation of the provisions of this article shall not release such person from the obligation to make such reimbursement.

(c) Any violation of the provisions of this article shall be punishable as an infraction.

During the first twelve months following the effective date of this article, persons committing first and second violations of any provision or provisions of this article shall be issued warnings. Each subsequent violation during this initial twelve month period, shall be subject to a fine of up to one hundred dollars.

Following the initial twelve-month period from the effective date of this article, a first violation shall be subject to a penalty of up to one hundred dollars. An additional penalty of up to two hundred dollars may be imposed for a second violation if such second violation is committed within twelve months of the first violation and whether or not such second violation is identical to the first violation.

(d) In addition to the penalties described in subsection (c), the penalties set forth in section 1-106 of this Code shall be imposed for "subsequent violations" as that term is used in subsection (c), if such subsequent violations are committed within twelve months of the third violation and whether or not such subsequent violations are identical to the previous violations.

(e) If any business subject to the provisions of this article has complied with such provisions but persons on the business premises smoke in violation of the provisions of this article, the penalties set forth in this section shall be incurred by the persons smoking and not the business.

(f) In undertaking the enforcement of this article, the city is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.

(g) When the provisions of this article are not remedied by city officials, civil action against the city is denied and the city is absolved of any responsibility to enforce and/or any liability for failure to enforce. (Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 7, eff. 2-19-88; Am. Ord. 89-26, § 7, eff. 3-17-89).

SEC. 10-1113. NONRETALIATION.

No person shall discharge, refuse to hire, or in any manner retaliate against any employee or applicant for employment because such employee or applicant exercises any rights afforded by this article. (Added Ord. 87-152, § 2, eff. 12-4-87).

SEC. 10-1114. PUBLIC EDUCATION.

The Chief Administrative Officer shall engage in a continuing program to explain and clarify the purposes of this article to citizens affected by it, and to guide operators and employees in their compliance with it. (Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 8, eff. 2-19-88).

SEC. 10-1115. GOVERNMENTAL AGENCY EXCLUSION AND COOPERATION.

The terms and effect of this ordinance shall not apply to any other governmental entity. The Chief Administrative Officer shall annually request other governmental and educational agencies having facilities within the city to establish local operating procedures in cooperation and compliance with this article. The Chief Administrative Officer shall urge Federal, State, County, and special school district agencies to enforce their existing no smoking regulations and to comply voluntarily with this article.
(Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 9, eff. 2-19-88).

SEC. 10-1116. OTHER APPLICABLE LAWS.

This article shall not be interpreted or construed to permit smoking where it is otherwise restricted by other applicable laws.
(Added Ord. 87-152, § 2, eff. 12-4-87).

SEC. 10-1117. SEVERABILITY.

If any provision, clause, sentence or paragraph of this article or the application thereof to any person or circumstance shall be held invalid, such invalidity shall not affect the other provisions of this article which can be given effect without the invalid provision or application, and to this end the provisions of this article are declared to be severable.
(Added Ord. 87-152, § 2, eff. 12-4-87).

SEC. 10-1118. REVIEW.

The Chief Administrative Officer shall review the operation of this article within twelve months of its effective date and report his/her findings and recommendations to Council.
(Added Ord. 87-152, § 2, eff. 12-4-87; Am. Ord. 88-12, § 10, eff. 2-19-88).

ARTICLE 12 RESERVED*

*__Editor's note—__Ord. 2015-39, § 3, effective January 9, 2016, amended the Code by repealing former Art. 12, §§ 10-1201—10-1206. Former Art. 12 pertained to vehicle sales, and derived from Ord. 2003-39, effective June 9, 2003.

ARTICLE 13 HEALTHY AIR AND SMOG PREVENTION

Sec. 10-1301. Findings and Purpose.
Sec. 10-1302. Definitions.
Sec. 10-1303. Clean Air Program Establishment, Duties and Funding.
Sec. 10-1304. Fresno Clean Air Advisory Committee Establishment and Composition.
Sec. 10-1305. Alternative Fuel and Electric Vehicle Charging Infrastructure.
Sec. 10-1306. Procurement of Vehicles by City Departments.
Sec. 10-1307. Operation of Bi-Fuel Vehicle.
Sec. 10-1308. Fresno Area Express Buses.
Sec. 10-1309. Regional Public Sector and Private Sector Fleets.

SEC. 10-1301. FINDINGS AND PURPOSE.

The City Council finds that:

A. Stationary emissions from industries and residents, along with emissions from on-road and off-road mobile sources, combined with natural sources all contribute to a significant air pollution problem in the San Joaquin Valley. Although new regulations have resulted in lower vehicle emission levels, the number of vehicles and the vehicle miles traveled (VMT) have increased. As such, air pollution in the San Joaquin Valley has substantially increased, and is among the highest in California, resulting in several standards being increased in unprecedented numbers.

B. Air pollution is a major public health concern in the United States. The American Lung Association estimates the nationwide health costs of air pollution to be in the billions of dollars. According to the United States Public Health Service, high levels of air pollution can cause or aggravate lung illnesses such as acute respiratory infections, asthma, chronic bronchitis, emphysema, and lung cancer. Coughing, wheezing, chest pain, eye irritation, and headaches are common reactions to air pollution. Children, the elderly, athletes, and people with compromised immune systems suffer the worst health problems caused by poor air quality. In these sensitive groups, poor air quality causes more significant health impacts such as breathing difficulties, weakening of the body's ability to resist disease, and hindering the development of lung capacity among children.

C. The Clean Air Act mandates the United States Environmental Protection Agency (EPA) to establish national air quality standards that would ensure the same basic health and environmental protection for all Americans. The San Joaquin Valley Air Pollution Control District (SJVAPCD) uses the Pollutant Standard Index (PSI) to report air pollution information to the public, as well as to monitor compliance with the Clean Air Act. The EPA sets the National Ambient Air Quality Standard (NAAQS) to represent the concentration of a pollutant above which adverse health effects have been observed.

D. From 1999 to 2003, the San Joaquin Valley has exceeded the NAAQS for ozone 158 times. As a result, the EPA has reclassified the San Joaquin Valley as an extreme non-attainment area for the federal one-hour ozone standard. The loss of ozone

attainment status will force the SJVAPCD to adopt stricter regulations from a list of measures in the state implementation plan (SIP), a requirement under the Clean Air Act. New regulations could

[The next page is CD10:103]

adversely affect San Joaquin Valley businesses and possibly automobile owners. Stricter air quality regulations translate to higher costs for everyone and may cause fewer businesses to be created and retained in the San Joaquin Valley. The EPA has implemented a new ozone monitoring standard which will likely further jeopardize the future attainment status of the San Joaquin Valley and lead to adoption of even stricter standards by SJVAPCD.

E. Over ninety percent (90%) of Californians live in regions adversely affected by air quality problems, largely as a result of motor vehicle exhaust. A program to control automobile emission in California began in 1961, far in advance of federal controls. The State of California conducts its own vehicle emissions control program that is stricter than federal standards. In 1988, the California Legislature enacted the California Clean Air Act, which requires each air district not meeting state air quality standards to prepare a Clean Air Plan that would achieve the standards. The Clean Air Plan contains regulations that effect both San Joaquin Valley businesses and residents.

In 1990, the California Air Resources Board adopted the Low-Emission Vehicle regulation, which requires auto manufacturers to produce vehicles that meet increasingly stringent air quality standards. In addition, the California Air resources Board has also implemented new regulations that have and will continue to reduce emission levels from light duty, medium duty, and heavy duty trucks and buses.

F. In 2002, the state added section 25722.5 to the California Public Resources Code establishing timeframes, procedures and reporting requirements implementing the state's policy goal of developing and adopting low emission procurement specifications and standards.

G. Under this Chapter, the City of Fresno wishes to exercise its power to create strategies which are made in a manner consistent with the policy of improving the air quality in the state, city and in the San Joaquin Valley through the development and adoption of fuel efficiency specifications for the purchase and use of Low Emission Vehicles and technologies, in the most practical and cost-effective manner.

H. Under this Chapter, the City of Fresno wishes to foster, promote, and encourage the use of other modes of transportation other than the personal automobile, as well as the use of Low Emission Vehicles and technologies by developing infrastructures to support the use of these vehicles.

I. Under this Chapter, The Fresno Clean Air Advisory Committee is established to recommend strategies which encourage the use of other modes of transportation other than the personal automobile, as well as aid the City of Fresno in identifying funding sources for the purchase of Low Emission Vehicles and technologies, to research and provide recommendations which will assist the City in the procurement of Low Emission Vehicles and technologies and the development of alternative fuel infrastructures, and to educate and promote the use of Low Emission Vehicles and technologies in the private and public sectors. (Added Ord. 2000-20, § 1, eff. 3-27-00; Am. Ord. 2004-92, § 1, eff. 11-9-04).

SEC. 10-1302. DEFINITIONS.

(a) "Advanced Technology Partial Zero Emission Vehicle" means a vehicle that meets SULEV tailpipe emission standard, has a 15 year / 150,000 mile warranty, has zero evaporative emissions and includes advanced technology components. For example, a plug-in hybrid or a compressed natural gas vehicle would qualify in this category.

(b) "Alternative Fuel" means any fuel other than gasoline, diesel, and other substantially petroleum-based fuels that is less polluting than gasoline or diesel fuel, as determined by the California Air Resource Board. Alternative Fuel shall include, but is not limited to, natural gas and electricity.

(c) "Bi-Fuel Vehicle" means any motor vehicle designed to operate on two (2) fuels, one of which is an alternative fuel, but not on a mixture of fuels.

(d) "Bus" means any passenger vehicle with a seating capacity of greater than fifteen (15) persons.

(e) "Car-Sharing Program" means a program in which automobile providers are established to make motor vehicles available to people on a per-use basis.

(f) "City Department" means any department of the City of Fresno.

(g) "Electric Vehicle" means a zero emission vehicle that derives its motive power from one (1) or more electric motors.

(h) "Fast-Fueling" means a fueling process that refuels an alternative fuel vehicle in the same or less time than traditional refueling methods.

(i) "Heavy Duty Vehicle" means any motor vehicle, licensed for use on roadways, having a manufacturer's gross vehicle weight rating greater than 14,000 pounds.

(j) "Highly Polluting Motor Vehicles" means a vehicle with excess hydrocarbon, carbon monoxide, or oxides of nitrogen emissions.

(k) "Hybrid Electric Bus or Vehicle" means a vehicle having an on-board internal combustion engine attached to an electric generator.

(l) "Light Duty Truck" means any motor vehicle, with a manufacturer's gross vehicle weight rating of 6,000 pounds or less, which is designed primarily for purposes of transportation of property or is a derivative of such a vehicle, or is available with special features enabling off-street or off-highway operation and use.

(m) "Low Emission" is any technology or combination of technologies that are used to reduce emission from either mobile or stationary sources to below those standards in which the equipment was originally certified to.

(n) "Low Emission Vehicle" means any medium or heavy duty motor vehicle that meets or exceeds the standards set forth in 13 California Code of Regulations §1956.8.

(o) "Low Sulfur Diesel" is diesel fuel with a sulfur content of thirty parts per million or less.

(p) "Medium Duty Vehicle" means any 1995 and subsequent-model year vehicle having a manufacturer's gross vehicle weight rating of 14,000 pounds or less and which is not a Passenger Vehicle or light-duty truck.

(q) "Motor Vehicle" means a self-propelled vehicle.

(r) "Motorized Equipment" means any implement powered by an internal combustion engine. Motorized Equipment shall not include equipment regulated pursuant to Section 21.18-6 of this code.

(s) "Natural Gas Fueling Station" means any fueling station that provides fueling services for motor vehicles fueled by natural gas.

(t) "NO x " means oxides of nitrogen.

(u) "Partial Zero Emission Vehicle" is defined as a vehicle that meets SULEV tailpipe emission standards, has a 15 year / 150,000 mile warranty and zero evaporative emissions.

(v) "Particulate Matter (PM)" means solid or liquid particles of soot, dust, smoke, fumes, aerosols or other airborne material.

(w) "PM 10" means particulate matter less than ten (10) microns in diameter.

(x) "PM 2.5" means particulate matter less than two and five-tenths (2.5) microns in diameter.

(y) "Passenger Vehicle" means any motor vehicle designed primarily for transportation of persons and having a design capacity of twelve (12) persons or less.

(z) "Portable Motorized Equipment" means Motorized Equipment that is capable of being carried or moved from one location to another. Indicia of portability or transportability include, but are not limited to, wheels, skids, carrying handles, a dolly, a trailer, or a platform.

(aa) "Sport Utility Vehicle" means a multipurpose passenger vehicle as defined in 49 CFR 571.3 with motive power, except a low-speed vehicle or trailer, designed to carry 10 persons or less which is constructed either on a truck chassis or with special features for occasional off-road operation." In order to meet the definition of multipurpose passenger vehicle, a vehicle must be constructed either (1) on a truck chassis, or (2) with special features for occasional off-road operation.

(bb) "Stationary Motorized Equipment" means Motorized Equipment that remains or will remain at a single site at a building, structure, facility, or installation for more than twelve (12) consecutive months.

(cc) "Super Ultra Low Emission Vehicle" means any motor vehicle that meets or exceeds the standards set forth in 13 California Code of Regulations § 1961 for Super Ultra-Low Emission Vehicles.

(dd) "Ultra-Low Emission Vehicle" means any motor vehicle that meets or exceeds the standards set forth in 13 California Code of Regulations § 1960.1 for Ultra-Low Emission Vehicles.

(ee) "Zero-Emission Vehicle" means (i) any motor vehicle that produces zero exhaust emissions of all criteria pollutants, as defined by 17 California Code of Regulations §90701(b), (or precursors thereof) under any and all possible operational modes and conditions or (ii) any vehicle that has been certified by the California Air Resources Board as a Zero-Emission Vehicle. (Added Ord. 2000-20, § 1, eff. 3-27-00; Am Ord. 2004-92, § 2, eff. 11-9-04).

SEC. 10-1303. CLEAN AIR PROGRAM ESTABLISHMENT, DUTIES AND FUNDING.

(a) The Fresno Clean Air Advisory Committee shall oversee the implementation of the provisions of this Chapter, including developing strategies and assisting with the research, evaluation of and expansion of the alternative fueling network in the City of Fresno, assisting with City Departments financing of Low, or Zero Emission vehicles and performing outreach to residents and private sector fleet operators to encourage the purchase of Low and Zero Emission vehicles and technologies, promoting automobile trip reduction by City employees, developing educational programs to train City employees in the use of Low Emission, Ultra-Low and Zero Emission Vehicles and technologies and in techniques that reduce fuel consumption, encouraging the development of car-sharing programs, as well as other transportation control measures. (Added Ord. 2000-20, § 1, eff. 3-27-00).

SEC. 10-1304. FRESNO CLEAN AIR ADVISORY COMMITTEE ESTABLISHMENT AND COMPOSITION.

(a) There is hereby established a committee to be known as the Fresno Clean Air Advisory Committee (hereinafter "Advisory Committee") of the City of Fresno.

(b) The Advisory Committee should consist of seven (7) voting members. The members shall consist of one representative from each of the following:

Council of Fresno County Governments, Board Member

County Board of Supervisor Air District Representative, Board Member

Building Industry Association

California State University at Fresno

Cal Trans

Public Member Appointed by the Council President

Public Member Appointed by the Mayor

(c) The term of office for the appointed public members shall be one (1) year. In the event of a vacancy occurring during the unexpired term of office of the public members, a successor shall be appointed in a manner similar to that for the initial member to complete the unexpired term of the office vacated.

(d) The City Manager shall appoint one (1) representative from the Fleet Management Division and one (1) from Fresno Area Express who may serve as a non-voting ex officio member of the Advisory Committee.

(e) At the initial meeting and annually thereafter the Advisory Committee members shall elect such officers as deemed necessary by the Advisory Committee.

(f) The Advisory Committee shall establish rules and regulations for its own organization and procedure and shall meet when necessary as determined by the Advisory Committee. Except as provided by general law, all meetings shall be open to the public.

(g) The Advisory Committee shall have the power and duty to:

(1) Set up subcommittees as necessary;

(2) Advise the Mayor and the City Council on all matters relating to their duties as specified herein. (Added Ord. 2000-20, § 1, eff. 3-27-00).

SEC. 10-1305. ALTERNATIVE FUEL AND ELECTRIC VEHICLE CHARGING INFRASTRUCTURE.

(a) **Natural Gas Fueling and Electric Vehicle Charging Stations—Assessment and Recommendations.** Not later than twelve (12) months from the effective date of this Chapter, the Advisory Committee in consultation with the Fresno County Council of Governments, shall assess the need for a competitive network of public access natural gas Fast-Fueling and Electric Vehicle charging stations in the City of Fresno and shall provide a report to the City Council. Such report shall include the following:

(1) Strategies to determine the market demand assessment for Natural Gas Refueling Stations and electric charging infrastructure needs within the City of Fresno and projected sales within the San Joaquin Valley;

(2) Strategies and recommendations to evaluate and pursue public and private funding options available for installation of Natural Gas Refueling stations and electric charging bays in all City-owned parking garages;

(3) Examine and pursue strategies to develop tax-based or other incentive programs to encourage the installation of Natural Gas Refueling stations and electric charging bays in privately owned parking facilities and residences located in the City of Fresno. (Added Ord. 2000-20, § 1, eff. 3-27-00).

SEC. 10-1306. PROCUREMENT OF VEHICLES BY CITY DEPARTMENTS.

(a) **Research, Development and Adoption of Low Emission Specifications.** The Director of General Services of the city, in consultation with the Advisory Committee, the California Air Resources Board, the San Joaquin Valley Air Pollution Control District and interested city departments, shall develop and adopt fuel-efficiency specifications governing the purchase of motor vehicles that will reduce petroleum consumption and subsequent emissions from the city's vehicle fleet consistent with state low emission policy goals and this chapter. Research and development shall include analysis of the following: (1) Use of alternative fuels; (2) Use of fuel-efficient vehicles; (3) Use of hybrid vehicles; and (4) Use of new technologies (e.g. hydrogen fuel cell vehicles.)

(b) **Passenger Vehicles and Light-Duty Trucks.** Specifications for the purchase or lease of Passenger Vehicles and Light Duty Trucks shall meet or exceed the most stringent of California's Ultra-Low Emission Vehicle standards, California's Ultra-Low Emission Vehicle II (ULEV II) standards set forth in 13 California Code of Regulations § 1961, California's Zero Emission Vehicle standards, and California's Super Ultra-Low Emission Vehicle standards, as applicable. These specifications shall apply not later than January 1, 2006 for Passenger Vehicles and not later than January 1, 2010 for Light Duty Trucks.

(c) **Medium Duty Vehicles.** The Advisory Committee will provide recommendations and strategies to City Departments regarding the purchase or lease, of Medium Duty Vehicles with engines having exhaust emissions levels rated as Low, or Ultra-Low emission pursuant to Section 1956.8(h) of Title 13 of the California Code of Regulations or Medium Duty Vehicles that are rated as Low Emission, Ultra-Low emission or super Ultra-Low emission pursuant to Section 1960.1(h)(2) of Title 13 of the California Code of Regulations.

(d) **Heavy Duty Vehicles.** The Advisory Committee will provide recommendations and strategies to City Departments when purchasing or leasing Heavy Duty Vehicles whose engines are certified under the optional standards for their exhaust emissions pursuant to Section 1956.8 of Title 13 of the California Code of Regulations.

(e) **Exemption for Emergency Vehicles.** Authorized emergency vehicles, as defined in the California Vehicle Code, § 165, that are equipped with emergency lamps or lights described in the California Vehicle Code, § 25252 are exempt from the requirements of this section.

(f) **Justification for Sport Utility Vehicles.** To discourage unnecessary purchase or leasing of Sport Utility Vehicles, each department must demonstrate to the Director of General Services that such vehicle is required to perform an essential function of the procuring city department.

(g) **Alternative Fuel Use in Bi-Fuel Vehicles.** To the maximum extent possible, each city department that has Bi-Fuel natural gas and Bi-Fuel propane vehicles in its vehicle fleet shall use the respective Alternative Fuel in those vehicles.

(h) **Low Emission Technologies and Low Sulfur Diesel Fuel Requirement.** The Advisory Committee will provide recommendations and strategies to Fleet Management Division and Fresno Area Express regarding the operation of low emission equipment using diesel fuel whose sulfur content will allow effective after treatment. The Advisory Committee will also provide its recommendations relating to Low Sulfur Diesel fuel utilized by the City's fleet, and an emission reduction program for all medium and heavy duty trucks and urban transit buses that will include the rebuilding and/or retrofitting of existing diesel engines with new Low emission technologies such as a soot catalyst. The replacement and/or retrofitting of all engines must use technologies that have been certified by the California Air Resources Board and/or the Environmental Protection Agency.

(i) **Other Requirements.** All Motor Vehicles and Motorized Equipment purchased or leased pursuant to this section shall meet all applicable safety standards and other requirements for the intended use of the vehicle or equipment.

(j) **Funding.** It shall be the policy of the City to: (1) use monies that are not part of a City Department's regular appropriation, including, but not limited to, regional, state, or federal grants, to fund the entire purchase or lease price of Ultra-Low or Zero Emission vehicles or motorized Alternative Fuel equipment that is used in a pilot program or demonstration project; and (2) in all other cases, use such monies only to fund the difference in purchase or lease price between the Ultra-Low, super Ultra-Low, hybrid, or Zero Emission vehicle or motorized equipment and the gasoline or diesel-fueled motor vehicle or Motorized Equipment that would otherwise be purchased or leased. City Departments may consult with the Clean Air Advisory Committee regarding funding opportunities for the purchase of Low Emission Vehicles or technologies.

(k) **Annual Report.** The Director of General Services shall maintain information on vehicles owned or leased by the city, including but not limited to all of the following: (1) the number of Passenger Vehicles purchased or leased during the year, and the total number owned or leased; (2) the number of Alternatively Fueled vehicles and Hybrid Vehicles purchased or leased during the year, and the total number owned or leased; (3) the justification provided for all Sport Utility Vehicles purchased or leased during the year and the procuring city department; and (4) the number of Sport Utility Vehicles disposed of during the year and the city department making the disposition. Not later than January 1 of each calendar year, the Director of General Services shall submit to the Clean Air Advisory Committee a report which includes a summary of Low Emission Motor Vehicles, Motorized Equipment, Low Emission technologies purchased or leased by city departments including the information referenced in this subsection.

(l) **Phase Out of Highly Polluting Vehicles and Equipment.** Each city department shall cooperate with and assist the Director of General Services in phasing out older and Highly Polluting Motor Vehicles and Motorized Equipment that have been in service for twelve (12) or more years. The Director of General Services shall consult with the Advisory Committee in this regard as necessary or desirable. (Added Ord. 2000-20, § 1, eff. 3-27-00; Am. Ord. 2004-92, § 3, eff. 11-9-04).

SEC. 10-1307. OPERATION OF BI-FUEL VEHICLE.

No Bi-Fuel Vehicle owned by the City may be powered by gasoline, diesel, or other petroleum-based fuel while operating within the City of Fresno. Bi-Fuel Vehicles owned by the City shall bear a notice stating the requirements of this subsection, posted in one or more locations that are plainly visible to the vehicle operator. This section shall not apply to (1) the operation of Bi-Fuel Vehicles in emergency situations or (2) the operation of buses by the Fresno Area Express. (Added Ord. 2000-20, § 1, eff. 3-27-00).

SEC. 10-1308. FRESNO AREA EXPRESS BUSES.

(a) **Pilot Program.** The Transit General Manager, in conjunction with recommendations made by the Advisory Committee, shall implement a pilot program to evaluate the efficacy of

using Alternative Fuel and/or Hybrid Electric Buses to reduce air pollution while maintaining current level of service and safety. This program shall include testing of either dedicated natural gas and Hybrid Electric Buses.

(b) **Phase-Out of Older Diesel Buses.** Not later than eighteen (18) months from the effective date of this Chapter, the Transit General Manager, in conjunction with recommendations from the Advisory Committee, shall develop strategies to phase out the use of diesel buses that have been in service for a time period greater than the time period set forth by any applicable State and federal guidelines. (Added Ord. 2000-20, § 1, eff. 3-27-00).

SEC. 10-1309. REGIONAL PUBLIC SECTOR AND PRIVATE SECTOR FLEETS.

(a) **Regional Public Transportation Authorities.** Not later than twelve (12) months from the effective date of this Chapter, the Advisory Committee shall develop strategies including funding opportunities to encourage the regional public sector transit agencies to use buses that are classified Low Emission Vehicles on bus lines that originate or terminate in Fresno.

(b) **Private Sector Fleets.** Not later than twelve (12) months from the effective date of this Chapter, the Advisory Committee, shall develop strategies including funding opportunities to educate and encourage private sector fleets that operate a significant number of Motor Vehicles within the City of Fresno to convert their fleets to Lower emission Vehicles or Motor Vehicles that comply with the requirements herein.

(c) **Residential Vehicles.** Not later than twelve (12) months from the effective date of this Chapter, the Advisory Committee shall develop strategies to educate and encourage residents of the City of Fresno to purchase Zero-Emission Vehicles or Motor Vehicles that comply with the requirements herein.

(d) **Car-Sharing Program.** The Advisory Committee shall develop strategies, in conjunction with other Federal and State agencies, in the development of Transportation Control Measures such as car-sharing programs, employer subsidized transit passes, and alternative work schedules. (Added Ord. 2000-20, § 1, eff. 3-27-00).

ARTICLE 14 HAZARDOUS SPILLS EXPENSE RECOVERY

Sec. 10-1401. Intent.
Sec. 10-1402. Definitions.
Sec. 10-1403. Notice and response.
Sec. 10-1404. Liability of costs.
Sec. 10-1405. Recovery of costs.
Sec. 10-1406. Civil suit.
Sec. 10-1407. Conflict with state or federal law.
Sec. 10-1408. Nonexclusive remedy.

SEC. 10-1401. INTENT.

Surface waters, groundwater, soils, vegetation, and atmosphere inside the City of Fresno are susceptible to damage from the handling, storage, use, processing and disposal of hazardous material and the expense incurred by the taxpayers as a result of the City of Fresno or its Designee having to respond in an emergency to protect life, property and the environment when there has been a release of hazardous materials should be recovered from the person responsible for the emergency. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1402. DEFINITIONS.

As used in this section, the following terms shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

(a) "CFR" shall mean the Code of Federal Regulations.

(b) "Compressed Gas" shall mean any material regulated as a compressed gas by the United States Department of Transportation by regulations found in 49 CFR § 173.115.

(c) "Designee" shall mean the Fresno City Fire Department Hazmat Response Team or such other public or private agency authorized in writing by the City of Fresno to respond to hazardous materials incidents within the City of Fresno.

(d) "Emergency Action" shall mean all of the activities conducted in order to prevent or mitigate injury to human health or to the environment inside the City of Fresno from a release or threatened release of any material into or upon the environment.

(e) "Explosive" shall mean any material regulated as a Division 1.1, 1.2 or 1.3 explosive by the United States Department of Transportation by regulations found in 49 CFR § 173.50 and 173.53.

(f) "Flammable Liquid" shall mean any material regulated as a flammable liquid by the United States Department of Transportation by regulations found in 49 CFR § 173.120.

(g) "Flammable Solid" shall mean any material regulated as a flammable solid by the United States Department of Transportation by regulations found in 49 CFR § 173.124.

(h) "Hazardous Material" shall mean any of the following:

(1) Any material listed in the list of toxic pollutants found in 40 CFR § 401.15, as amended.

(2) Any material designated as hazardous material by applicable state law.

(3) Any compressed gas, explosive, flammable liquid, flammable solid, oxidizer, poison or radioactive material.

(i) "Oxidizer" shall mean any material regulated as an oxidizer by the United States Department of Transportation by regulations found in 49 CFR § 173.127.

(j) "Person" shall include any individual, corporation, association, partnership, firm, trustee, or legal representative.

(k) "Poison" shall mean any material that is life threatening when mixed with air in small amounts, and shall also include all those materials regulated as Class 6 poison, by the United States Department of Transportation by regulations found in 49 CFR § 173.132.

(l) "Radioactive Material" shall mean any material required by the United States Department of Transportation to have type A packaging or other special protection or closed transport vehicles, under regulations found in 49 CFR § 173.403.

(m) "Release" shall mean any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injection, escaping, leaching, dumping or disposing into or upon the environment, which causes danger or harm to the public health or to the environment, including, but not limited to, the release of any material classified as hazardous material by any federal legislation or regulation, by any state legislation or regulation, or by any City of Fresno ordinance.

(n) "Threatened Release" shall mean any imminent or impending event potentially causing but not resulting in a release, but causing the City of Fresno to undertake an emergency action. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1403. NOTICE AND RESPONSE.

(a) Any person who has caused the Release, discharge or deposit of hazardous material on the surface waters, groundwater, soils or atmosphere by the handling or storage of hazardous materials, or who have violated any local, state or federal environmental laws with respect to hazardous materials, are required to immediately notify the City of Fresno.

(b) The requirements of this article shall not be construed to forbid or forgive any person from using all diligence necessary to control a hazardous material release prior or subsequent to the notification of the City of Fresno, especially if such efforts may result in the containment of the release or the abatement of extreme hazard to the employees or the general public. Nothing in this article shall be construed to exempt or release any person from any other notification or reporting required by any state or federal agency.

(c) The City of Fresno, the Division Chief, the on duty Battalion Chief or the Designee of either Chief is authorized to direct an emergency action and the clean up and abatement of any release, or threatened release within the City of Fresno. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1404. LIABILITY OF COSTS.

(a) Any person causing a release or threatened release which results in an emergency action shall be liable to the City of Fresno for the recoverable costs resulting from the emergency action. Recoverable costs shall be listed and defined within the Master Fee Schedule.

(b) The following described persons shall be jointly and severally liable to the City of Fresno for the payment of all costs incurred by the City of Fresno as a result of such clean up or abatement activity:

(1) Any person whose negligent or willful act or omission proximately caused such release, discharge or deposit;

(2) The person who owned or had custody or control of the hazardous material or the material at the time of such release, discharge, or deposit, without regard to fault or proximate cause; and

(3) The person who owned or had custody or control of the container which held such hazardous material at the time of or immediately prior to such release, discharge or deposit, without regard to fault or proximate cause. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1405. RECOVERY OF COSTS.

(a) The City of Fresno or its Designee shall keep an itemized record of recoverable costs resulting from an emergency action.

(b) The City of Fresno or its Designee shall submit a written itemized claim to the responsible person for the total costs incurred by the City of Fresno or its Designee for the emergency action and a written notice that unless the amounts are paid in full within thirty days after the date of the mailing of the claim and notice, a civil action will be commenced seeking recovery for the stated amount plus any amounts occasioned by such suit.

(c) For the purposes of this article, costs of the City of Fresno or its Designee shall mean all direct and indirect costs and shall include, but are not limited to, the following:

(1) Actual labor cost of personnel, including workers compensation benefits and fringe benefits;

(2) Administrative overhead;

(3) Costs of equipment operation;

(4) Costs of materials;

(5) Laboratory costs of analyzing samples taken during the emergency action;

(6) Medical expenses incurred as a result of responsive activities;

(7) Costs of any contract labor;

(8) Costs to supervise or verify the adequacy of the cleanup or abatement by others; and

(9) Legal expenses that may be incurred as a result of the emergency action, including actions for recoverable expenses pursuant to this article. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1406. CIVIL SUIT.

The City of Fresno or its Designee may bring a civil action for payment of the recoverable expenses against any and all persons liable under this article. All costs of such suit, including actual attorney fees, shall also be a recoverable cost within the same civil action. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1407. CONFLICT WITH STATE OR FEDERAL LAW.

Nothing in this article shall be construed to conflict with state or federal laws requiring persons causing or responsible for release or threatened releases from engaging in remediation activities or paying the cost thereof, or both. (Added Ord. 2003-65, § 1, eff. 8-23-03).

SEC. 10-1408. NONEXCLUSIVE REMEDY.

The remedies provided by this article shall be in addition to any other remedies available in equity or at law and such penalties as provided by law or ordinance. (Added Ord. 2003-65, § 1, eff. 8-23-03).

ARTICLE 15 SAN JOAQUIN RIVER AND BLUFF PROTECTION INITIATIVE

Sec. 10-1501. Title.
Sec. 10-1502. Purpose.
Sec. 10-1503. Construction with Other Laws.
Sec. 10-1504. Application.
Sec. 10-1505. Definitions.
Sec. 10-1506. Vehicular Access.
Sec. 10-1507. Prohibited Acts.
Sec. 10-1508. Penalties and Enforcement.
Sec. 10-1509. Posting.
Sec. 10-1510. Defensible Space Requirements.
Sec. 10-1511. Progress Review.

SEC. 10-1501. TITLE.

This ordinance shall be known as the "San Joaquin River and Bluff Protection Initiative." (Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1502. PURPOSE.

The Council finds and declares that the San Joaquin River and southerly San Joaquin River Bluffs are a unique natural resource that must be protected and preserved for the enjoyment of, and appreciation by, present and future generations in the City of Fresno. The Council further finds and declares that the integrity of the natural landscape is threatened by pollution and damage caused by vehicular and pedestrian traffic and activities that are not consistent with conservation of these precious natural resources.

The Council further finds and declares that vegetation fires along the San Joaquin River and to the southerly San Joaquin River Bluffs are particularly difficult to contain due to the ample flammable vegetation and difficult terrain and pose a threat to occupied structures in the area.

The ordinance enacted below is deemed necessary for the protection of the general health, safety, and welfare of people and property on the southerly San Joaquin River Bluffs.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1503. CONSTRUCTION WITH OTHER LAWS.

No provision of this article is intended to supersede or be in conflict with any federal regulation or any statute; rule or regulation of the state relating to the San Joaquin River or southerly San Joaquin River Bluffs, and in the event of any conflict between the provisions of this article and any such federal or state regulation, the provisions of this article so conflicting shall be deemed superseded by such statute, rule or regulation, and of no force or effect. Provided further, that other provisions of this article not so in conflict shall not be affected thereby and shall remain in full force and effect.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1504. APPLICATION.

The prohibitions of Sections 10-1506 and 10-1507 shall apply to the territory of the City of Fresno located between the midpoint of the San Joaquin River and the southerly bluff edge as defined below and between Highway 99 and Highway 41.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1505. DEFINITIONS.

(a) "Bluff" means the soil surface, substratum and area between the "Bluff Toe" and the "Bluff Edge" as defined in Section 12-105.B.9 of this Code.

(b) "Bluff Edge" means the first or southernmost point of tangency, within three hundred feet of the "Bluff Toe," or a ten per cent (10:1) slope line and the convex soil surface (or the break between slopes less than ten per cent and those greater than ten per cent) as defined in Section 12-105.B.10 of this Code.

(c) "Bluff Face" means that area between the "Bluff Edge" and "Bluff Toe" as defined in Section 12-105.B.11 of this Code.

(d) "Bluff Preservation Overlay District" is an overlying zoning district intended to provide special land development standards that will preserve the integrity of the natural landscape of the southerly San Joaquin River Bluffs, adjacent properties, and adjacent open spaces as areas of special quality by reason of the topography, geologic substratum, and environment of the area as defined in Section 12-243 of this Code.

(e) Reserved.

(f) "Bluff Toe" means the point of tangency of a twenty per cent (5:1) slope line and the concave soil surface (or the break between slopes less than twenty per cent and those greater than twenty per cent) as defined in Section 12-105.B.13 of this Code.

(g) "Fireworks" shall have the same meaning as defined in Section 10-5602.3(d) of this Code.
(Added Ord. 2010-11, § 1, eff. 10-12-10; Am. Ord. 2018-19, § 1, eff. 5-25-18).

SEC. 10-1506. VEHICULAR ACCESS.

(a) No person on public lands shall operate any motor vehicle, motorcycle, motor-driven cycle, minibike, or other vehicle by which any person or property may be propelled, moved, or drawn, excepting a vehicle or device moved by human power, below the bluff edge except upon roads designated for vehicular use.

(b) Exceptions.

(1) This section shall not apply to employees of a public agency engaged in the discharge of their duties;

(2) This section shall not apply to employees or agents of organizations engaged in land or resource management or conservation engaged in the discharge of their duties;

(3) This section shall not apply to a self-propelled wheelchair, motorized tricycle, or motorized quadricycle, if operated by a person who, by reason of physical disability, is otherwise unable to move about as a pedestrian.

(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1507. PROHIBITED ACTS.

The following acts are prohibited below the bluff edge:

(a) Overnight camping except with appropriate permits and approvals and in designated areas;

(b) Depositing, placing, throwing or in any manner disposing of any rubbish, trash, garbage, can, bottle, glass, wood, paper or any decaying or putrid matter of any kind whatsoever except in containers provided for such purpose;

(c) Lighting of any fires or open flames, including but not limited to cooking fires and barbecues, except in designated areas. This prohibition shall not apply to cooking fires, barbecues, or outdoor fireplaces upon any private property which is subject to the provisions of this Article;

(d) Possession or use of fireworks, notwithstanding the provisions of Section 10-5602.5(b);

(e) Entering, remaining or loitering between the following hours: 10:00 p.m. to sunrise from March through October; 6:00 p.m. to sunrise from November through February. This shall not apply to individuals whose private property is located below the bluff edge; individuals with appropriate permission or authorization to be on, or be in route to or from, private property located below the bluff edge; campers with appropriate permits and authorization; employees of a public agency in the discharge of their duties; or employees or agents of organizations engaged in land or resource management or conservation engaged in the discharge of their duties.

(f) Discharging of firearms, bows, pellet guns, or paintball guns except in areas or facilities specifically designated for such activities.

(g) Removal of vegetation or excavation of any rock or stone except when part of an authorized management program, such as creation of defensible space pursuant to Section 10-1510, or with appropriate permits and approvals;

(h) Removal or disturbance of archaeological or cultural artifacts unless with appropriate permits and approvals;

(i) Removing, defacing, damaging or destroying any sign, gate, garbage can, or structure or facility which has been posted in accordance with the provisions of Section 10-1509.

(Added Ord. 2010-11, § 1, eff. 10-12-10; Am. Ord. 2018-19, § 2, eff. 5-25-18).

SEC. 10-1508. PENALTIES AND ENFORCEMENT.

Failure to comply with the provisions of sections 10-1506 or 10-1507 shall be punishable as a misdemeanor.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1509. POSTING.

The Chief Administrative Officer or his or her designee, as well as those having jurisdictional authority, shall have the authority to post and maintain appropriate signs at such locations as in the opinion of the Chief Administrative Officer or designee will give reasonable notice to the public of the provisions of this article.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1510. DEFENSIBLE SPACE REQUIREMENTS.

(a) **Definitions.** For the purposes of this section, the following definitions shall apply:

(1) "Aerial Fuel" means all live and dead vegetation in the forest canopy or above surface fuels, including tree branches, twigs, cones, snags, moss and high brush. Examples of aerial fuel include trees and large bushes.

(2) "Defensible space" is the area within the perimeter of a parcel where basic wildfire protection practices are implemented, providing the key point of defense from an approaching wildfire or escaping structure fire. Defensible space can be created by removing dead vegetation, separating fuels, and pruning lower limbs.

(3) "Firebreak" means an area of land within thirty (30) feet of an occupied dwelling and structure in which dangerous accumulation of flammable vegetation or other combustible growth has been removed and cleared away. The creation of a firebreak shall not require the removal of single specimens of trees or other vegetation that is well pruned and maintained so as to effectively manage fuels and not form a means of rapidly transmitting fire from other nearby vegetation to any dwelling or structure.

(4) "Flammable and combustible vegetation" means any fuel.

(5) "Fuel" means live or dead vegetative material which is combustible during normal summer weather. This does not include fences, decks, woodpiles, or trash.

(6) "Horizontal Clearance" means the distance between aerial fuels, such as the outside edge of tree crowns or high brush. Horizontal clearance helps stop the spread of fire from one fuel to the next.

(7) "Surface Fuel" means loose surface litter on the soil surface, normally consisting of fallen leaves or needles, twigs, bark, cones and small branches that have not yet decayed enough to lost their identity; also grasses, forbs, low and medium shrubs, tree seedlings, heavier branches and downed logs.

(8) Reserved.

(9) "Vertical Clearance" means the distance between lower limbs of aerial fuels and the nearest surface fuels and grass or weeds. Vertical clearance helps prevent fire from moving from shorter fuels to taller fuels.

(b) **Application.** The requirements of this section shall apply to the following parcels:

(1) Parcels located in the territory of the City of Fresno between the midpoint of the San Joaquin River and the southerly bluff edge between Highway 99 and Highway 41;

(2) Parcels located within the Bluff Preservation Overlay District which abut the bluff edge.

(c) **Defensible Space Requirement.** Any person, corporation or other entity owning, leasing, occupying or directly controlling or having charge of any property subject to this article shall comply with the following standards for maintaining defensible space with respect to the area surrounding any inhabited dwellings and structures from April 15 through September 30 of each year as follows:

(1) Maintain a firebreak by removing and clearing away dangerous accumulation of flammable vegetation and other combustible growth within thirty (30) feet of each inhabited dwelling and structure. This requirement does not apply to endangered, rare, or threatened plant species that are found within thirty (30) feet of an inhabited dwelling and structure. Single specimens of trees or other vegetation may be retained provided they are well spaced, well pruned, maintained in a live condition and create a condition that avoids the spread of fire to other vegetation or to a building or structure. Grass four (4) inches or shorter in height may be retained where necessary to prevent erosion or when isolated from other fuels.

(d) **Failure to Maintain Defensible Space.** It is unlawful and a public nuisance for any person, corporation or other entity owning, leasing, occupying, directly controlling or having charge of any property subject to this article to maintain the following conditions on said property which endanger the public safety by creating a fire hazard:

(1) A dangerous accumulation of flammable vegetation or combustible growth located within thirty (30) feet of an occupied dwelling and structure which prevents the creation of a firebreak and endangers public safety by creating a fire hazard; or

(2) Brush or other flammable material within ten feet of a propane tank.

(3) A dangerous accumulation of dry grass, dead or decayed trees, weeds, brush or leaves, needles, or other dead vegetative growth located adjacent to any occupied dwelling or structure such that it endangers public safety by creating a fire hazard.

(e) No person shall be required to maintain any clearing on any land if that person does not have the legal right to maintain the clearing, nor is any person required to enter upon, remove vegetation or damage property that is owned by another person without the consent of that person.

(f) The provisions of Section 10-1510(c) and (d) shall not apply to land or water area that are acquired or managed for one or more of the following purposes or uses:

(1) Habitat for endangered or threatened species, or any species that is a candidate for listing as an endangered or threatened species by the state or federal government;

(2) Lands kept in a predominantly natural state as habitat for wildlife, plant, or animal communities;

(3) Open space lands that are environmentally sensitive parklands;

(4) Other lands having scenic values, as declared by the local agency or by state or federal law;

(5) Cultivated agricultural land or land used for animal grazing.

(g) **Enforcement.** This section shall be enforced pursuant to the provisions of Chapter 10, Article 6 relating to abatement of public nuisances.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

SEC. 10-1511. PROGRESS REVIEW.

A review of the effectiveness of this ordinance shall be conducted after one (1) year, or at any time deemed necessary by the City Council. The City Council may direct staff to provide any information necessary for evaluating the effectiveness of this ordinance.
(Added Ord. 2010-11, § 1, eff. 10-12-10).

ARTICLE 16 RENTAL HOUSING IMPROVEMENT ACT

Sec. 10-1601. Purpose and Intent.
Sec. 10-1602. Definitions.
Sec. 10-1603. Scope.
Sec. 10-1604. Inspections; Compliance with Applicable Codes and Standards.
Sec. 10-1605. Registration and Payment Of Fees.
Sec. 10-1606. Exemptions.
Sec. 10-1607. Self-Certification Program.
Sec. 10-1608. Correction Notices.
Sec. 10-1609. Rules and Regulations.
Sec. 10-1610. Enforcement; Penalties.
Sec. 10-1611. Appeal.
Sec. 10-1612. Delinquent Fees; Late Fee Penalties.
Sec. 10-1613. Performance Metrics.
Sec. 10-1614. Tenant Education.
Sec. 10-1615. Annual Review.

SEC. 10-1601. PURPOSE AND INTENT.

This article shall be known as the "Rental Housing Improvement Act." The intent of this article is to safeguard and preserve the housing stock of decent, safe and sanitary residential rental units within the city and to protect persons residing in them by providing for a regular and comprehensive system of inspection and, through such inspections, identify and require the correction of substandard conditions. Additionally, the Council finds the safety of rental housing properties is increased through the participation of owners, tenants, the city and the community. The purpose of this article is to identify substandard housing violations through an effective pro-active and re-active inspection program to ensure rental housing units in the city meet minimum health and safety standards required by the State of California and are safe to occupy, and provide: (1) adequate resources to effectively and timely remedy violations; and (2) to greatly reduce substandard housing in the city.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1602. DEFINITIONS.

For purposes of this article, unless the particular provision or the context otherwise clearly requires, the definitions in this section shall govern the construction, meaning and application of words and phrases used in this article:

(a) "Director" shall mean the City Attorney, or his or her designee.

(b) "City" shall mean the City of Fresno and/or any agent hired to implement this article.

(c) "Health and Safety Standards" shall mean the standards set forth in California Civil Code 1941.1.

(d) "Owner" means the person or entity identified and listed as having title by the latest property tax assessment roll, maintained by the Fresno County Assessor.

(e) "Property" or "Residential Rental Property" means any lot or parcel of land containing Residential Rental Units, and all improvements thereon, including common areas.

(f) "Residential Rental Unit" means any structure or part of a structure that is used or may be used by one or more persons as a home, residence, dwelling, or sleeping place for longer than thirty days, including single family dwellings, duplexes, triplexes, or multi-family (four units or more) residential buildings, which is not an owner occupied unit, including rooming houses, boarding houses, apartment units, condominium units, non-transient hotel and motel units, and single room occupancies, but excluding: (1) mobile home parks; (2) any dwelling unit in a building that is registered as "vacant property" under Section 10-617 of this Code; (3) hotels, motels, and bed and breakfasts used only for transient lodging; (4) any rental units in a state licensed hospital, hospice, community care facility, intermediate care facility, or nursing home; and (5) rental housing units owned, managed or operated by an educational, religious, or medical institution, or by a third party for an educational, religious, or medical institution, when units are used for the sole purpose of housing employees, students, clergy, patients, or others directly related to the institution.

(g) "Tenant's Affirmative Obligations" shall mean the standards set forth in California Civil Code 1941.2. An Inspector's determination that a tenant is or is not in substantial violation of Tenant's Affirmative Obligations, or the cause of the existence of a dilapidation or violation, or interferes substantially with the Owner's obligation to effect necessary maintenance or repairs is not intended as evidentiary proof of the condition of the unit, and shall be used only for purposes of implementing and enforcing this article.

(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2019-019, § 5, eff. 9-19-19; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1603. SCOPE.

(a) The provisions of this article shall apply to all Residential Rental Units located within the city.

(b) Provisions of this article shall be supplementary and complementary to all of the provisions of this Code, and any local, state or federal law. Nothing herein shall be construed or interpreted to limit any existing right or power of the city to abate and prosecute any and all nuisances or to enforce any other conditions in violation of state or local laws, including but not limited to any building, housing, property maintenance and public nuisance laws.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1604. INSPECTIONS; COMPLIANCE WITH APPLICABLE CODES AND STANDARDS.

(a) **Inspections.** The Director, or his or her designee, hereinafter referred to as the Inspector, is authorized to inspect all Residential Rental Units to determine whether such Residential Rental Units meet minimum Health and Safety Standards. A reasonable fee may be charged for inspections, as set forth in the Master Fee Schedule.

(b) **Baseline Inspection.** All Residential Rental Properties in the city shall be subject to this program. A percentage of units at each Property to be inspected shall be randomly selected and inspected. However, if the units inspected at random reveal numerous or pervasive violations, whether corrected or not, the city may inspect a greater number or all of the units at a Property, as well as any other Properties under the same ownership or management. In addition, Properties with numerous or pervasive violations will be referred to the Anti-Slum Enforcement Team or Reactive Rental Housing Unit for review. The city shall have the right to select those Properties it has identified as frequent health and safety code violators, and/or to select all Residential Rental Properties within a given census tract or precinct, using statistical and case information and other data sources, and inspect those Properties first when implementing the program. The city shall prioritize for inspection those Properties that have been the subject of complaints, excessive police or fire calls for service, or based on any other available relevant information, including age, neighborhood condition, and likelihood of finding substandard conditions.

(c) **Compliance with Codes and Standards.** Residential Rental Units shall be required to be in conformance and maintained in accordance with the code standard that was in effect at the time the Residential Rental Unit was constructed, substantially altered, or remodeled, erected, or converted, except for any additional requirements mandated by this Code or state law.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1605. REGISTRATION AND PAYMENT OF FEES.

(a) All Residential Rental Properties are required to be registered and updated whenever there is a change of ownership or contact information.

(b) A Residential Rental Property is registered with the city when the Owner submits the following to the city:

(1) A completed registration form, made available by the city that contains all of the following information:

(i) Description of the Residential Rental Property, including but not limited to, the street address and APN;

(ii) Number and description, including identifying number, of all Residential Rental Units on the Property;

(iii) Name and current contact information of the Owner;

(iv) Name and current contact information for a local contact representative with full authority to act on behalf of the Owner for all purposes under this article, including the acceptance of service of all notices from the City.

(v) Date of first occupancy.

(vi) The registry will only include the information specified in subparagraphs (i) through (v) of this section.

(vii) To the extent legally permissible, the contact information shall remain confidential and for internal city use only, and not available to any member of the public.

(2) Payment of any outstanding fees, business taxes, or other monies owed to the city related to the Property.

(c) It is unlawful for any person to knowingly make a false statement or knowingly omit any information that is required to register a Residential Rental Unit pursuant to this section.

(d) Registration shall remain valid unless or until one of the following circumstances occurs:

(1) The Owner fails to notify the Director of any change in the information submitted pursuant to this section within thirty days of such change; or

(2) The Owner fails to pay any fees established in this article when payment is due.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1606. EXEMPTIONS.

(a) The following shall be subject to registration under this article, but shall be exempt from routine and baseline inspection:

(1) Newly Constructed Buildings. Newly constructed buildings shall be exempt from this article for a period often years. The ten year period begins to run on the date of issuance of the certificate of occupancy. Such exemption shall continue for additional five year periods, up to twenty years, if the City receives no complaints about the Property.

(2) Government Regulated, Subsidized Residential Rental Units or those with Government-Sponsored Financing. Those Properties that are subject to routine inspections by another government or quasi-governmental agency (i.e., Housing Authority) or government-sponsored enterprises (i.e., Fannie Mae, Freddie Mac, etc.).

(b) An Owner is required to provide an affidavit signed under penalty of perjury certifying the Property is exempt.

(c) A Residential Rental Unit that is determined to be exempt shall become subject to the requirements of this article if a notice and order relating to the Property is issued pursuant to the provisions of this code. A Property that loses its exemption pursuant to this subsection may reinstate its exemption if:

(1) After the last inspection conducted pursuant to this article, the Inspector determines that no violations exist; and

(2) The Owner is not delinquent on any payment to the city of fees, penalties, business taxes or other monies related to the Property.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1607. SELF-CERTIFICATION PROGRAM.

(a) The city shall develop a self-certification program. A Property may be placed in the self-certification program if the Property is inspected at least once every twelve months (plus a thirty day grace period), and re-inspected upon change of tenancy, by a professional property management company licensed by the State of California, or the Owner can provide adequate documentation that such annual and routine inspections take place and the substance of such inspections. Such documentation shall be on forms provided by the city, or forms that the Director determines to be substantially equivalent to those forms.

(b) Self-certification forms shall be signed under penalty of perjury. It shall be unlawful to knowingly falsify any material information on a self-certification form, and any such falsification may be prosecuted as a misdemeanor.

(c) 10% of Residential Rental Properties in the self-certification program, and a sampling of the units thereon, will be inspected by the city on a random basis each year. A Property that is selected for random inspection and passes will be exempt from further random inspections for five years. A Property in which any unit contains violations posing imminent danger of death or serious injury to occupants shall immediately be removed from the self-certification program.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1608. CORRECTION NOTICES.

(a) **Correction Notices.**

(1) **Content.** Whenever it is determined by the Inspector that a violation of Health and Safety Standards exists, the Inspector shall issue a written correction notice. The notice shall contain a description of the violation, the specific action required to correct the violation, and a demand the violations be corrected within the specified time period listed in the notice. The notice shall state a compliance re-inspection will be scheduled, describe the self-certification program pursuant to Section 10-1607 of this article, and shall otherwise comply with any pertinent Regulations promulgated pursuant to Section 10-1609 of this article.

(2) **Time for Correction.** The notice shall provide a reasonable time for correction. The time shall depend on the time it would take a reasonably diligent person to complete the required action; the potential harm to the public welfare, health and safety; the harm to the tenant or nearby properties; and the extent of the corrections required. Certain imminently dangerous life-safety violations in occupied units shall require immediate correction.

(3) **Compliance Re-inspections.** Compliance re-inspections shall be conducted to verify the violations identified on the correction notice have been abated. Violations

that were not noted on the initial correction notice but are discovered during any re-inspection due to subsequent activities, damage or deterioration, shall be subject to correction.

(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1609. RULES AND REGULATIONS.

The Director may make rules and regulations enforceable hereunder, which are not inconsistent with the provisions of this article and which may be necessary or desirable to aid in the administration or enforcement of the provisions of this article.

(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2019-019, § 6, eff. 9-19-19; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1610. ENFORCEMENT; PENALTIES.

If, after a correction notice has been issued, the Owner fails to abate the violations, the City may proceed with all remedies available under law to compel compliance, including but not limited to issuing administrative citations, abatement proceedings, civil injunction, and/or criminal prosecution, or any combination of remedies, so long as violations are not caused by tenant's breach of Tenant's Affirmative Obligations. In any action or proceeding brought by the City to enforce this article, the City shall be entitled to recover its attorney's fees when it is the prevailing party. The City Attorney may, at his or her discretion, charge any violation of this ordinance as either an infraction or a misdemeanor.

(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1611. APPEAL.

The Owner of a Residential Rental Unit or a party with a legal property interest in the unit may appeal to the City's Administrative Hearing Officer in the manner provided in Chapter 1, Article 4 of this code.

(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1612. DELINQUENT FEES; LATE FEE PENALTIES.

(a) **Penalty for failure to timely make corrections.**

(1) Properties failing to comply with corrections after first re-inspection will be allowed fifteen days to make corrections. If Owner continues to fail to abate the violations, the case will be referred to the Reactive Rental Housing Unit, and all remedies available under the law to compel compliance will be available, including administrative citations, abatements, and other legal action.

(b) **Penalty for failure to register, or late registration.**

(1) The City shall mail notice to Owners with an application for registration. Owners shall have thirty days from receipt of the notice to submit registration information either by mail or online. Any incomplete registration shall be mailed or emailed back

to the Owner for correction and the Owner shall have thirty days to make necessary corrections without penalty. Failure to submit registry information within thirty days from receipt of notice from the City shall result in the following penalties:

(i) A fine of $100 per unregistered Residential Rental Unit for up to 30 days late.

(ii) A fine of $200 per unregistered Residential Rental Unit for 31 to 60 days late.

(iii) A fine of $500 per unregistered Residential Rental Unit for 61 to 120 days late; and

(iv) A fine of $1,000 per unregistered Residential Rental Unit for over 120 days late.

(2) All penalties subject to interest charges at 10% per annum.

(c) **Penalties for failure to provide complete and updated registration information.**

(1) The Owner shall ensure all information required by section 10-1605 of this article is provided, including current contact information for the Owner. Failure to provide complete information in the registry shall result in a fine of $100 per Residential Rental Unit.

(2) The Owner shall ensure all required information in the registry is current and timely updated, including changes in ownership and changes in property management. Failure to update registry information within 30 days of a change in information shall result in a fine of $100 per Residential Rental Unit.

(d) **Penalties for making false statements regarding affidavit of exempt status.** Knowingly making a false statement regarding the affidavit of exempt property status will be a $100 per unit fine for the first offense, and $250 per unit for any subsequent offenses by the same Owner for the same Property.

(e) **Penalties for making false statements on self-inspection report.** Knowingly making a false statement on a self-inspection of any individual unit or number of residential units shall be fined at $100 per unit for the first offense and $250 per unit for any subsequent offenses by the same Owner for the same Property.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1613. PERFORMANCE METRICS.

The city shall develop performance metrics to measure the success of this program. The City Manager shall provide a report annually to the Council that includes detailed statistics showing the progress in reducing substandard rental housing units in the city. That report will be posted on the website after it is presented to the Council.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1614. TENANT EDUCATION.

A tenant education plan shall be developed and implemented partnering with the government agencies, nonprofit organizations, and one or more local apartment associations. This shall be a voluntary program for tenants interested in learning their rights as tenants as well as their responsibilities as tenants.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

SEC. 10-1615. ANNUAL REVIEW.

This article shall require an annual review for the first three years following implementation, then every five years thereafter. The city shall review all elements of this article to determine how effective provisions have been to improve substandard housing in the city and make appropriate adjustments to improve its efficiency.
(Added Ord. 2017-5, § 1, eff. 3-13-17; Am. Ord. 2021-023, § 1, eff. 7-8-21).

ARTICLE 17 UNLAWFUL CAMPING

Sec. 10-1700. Purpose.
Sec. 10-1701. Definitions.
Sec. 10-1702. Prohibited Acts.
Sec. 10-1703. Violation.
Sec. 10-1704. Permit for Special Events Required.
Sec. 10-1705. Posting Copy of Permit.
Sec. 10-1706. Power of the City Manager to Make Rules and Regulations.
Sec. 10-1707. Reserved.

SEC. 10-1700. PURPOSE.

The streets and public areas within the city should be readily accessible and available to residents and the public at large. The use of these areas for camping purposes or storage of personal property interferes with the rights of others to use the areas for which they were intended. Such activity can constitute a public health and safety hazard which adversely impacts neighborhoods and commercial areas. Camping on private property without the consent of the owner, proper sanitary measures and for other than a minimal duration adversely affects private property rights as well as public health, safety, and welfare of the city. The purpose of this article is to maintain streets, parks and other public and private areas within the city in a clean, sanitary and accessible condition and to adequately protect the health, safety and public welfare of the community, while recognizing that, subject to reasonable conditions, camping and camp facilities associated with special events can be beneficial to the cultural and educational climate in the city. Nothing in this article is intended to interfere with otherwise lawful and ordinary uses of public or private property. (Added Ord. 2017-40, § 1, eff. 9-29-17)

SEC. 10-1701. DEFINITIONS.

Unless the particular provisions or the context otherwise requires, the definitions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article.

(a) "Camp" means to utilize camp facilities and/or paraphernalia, including but not limited to laying down of bedding for the purpose of temporarily or permanently sleeping or living at that location. An activity shall constitute camping when it reasonably appears, in light of all the circumstances, the participants in conducting these activities are in fact using the area as a sleeping or living accommodation regardless of the intent of the participants or the nature of any other activities in which they may also be engaging;

(b) "Camp facilities" include, but are not limited to, tents, huts, lean to's, tarps, cardboard boxes or structures, vehicles, vehicle camping outfits, or temporary shelter.

(c) "Camp paraphernalia" includes, but is not limited to, materials intended to be used as beds or bedding, blankets, bedrolls, tarpaulins, cots, beds, sleeping bags, hammocks or cooking facilities and similar equipment.

(d) "City Manager" means the City Manager or designee.

(e) "Establish" means setting up or moving equipment, supplies or materials on to public or private property to camp or operate camp facilities.

(f) "Maintain" means keeping or permitting equipment, supplies or materials to remain on public or private property in order to camp or operate camp facilities.

(g) "Operate" means participating or assisting in establishing or maintaining a camp or camp facility.

(h) "Private property" means all private property including, but not limited to, streets, sidewalk, alleys, and improved or unimproved land.

(i) "Public property" means all public property including, but not limited to, streets, sidewalks, alleys, improved or unimproved land and parks.

(Added Ord. 2017-40, § 1, eff. 9-29-17)

SEC. 10-1702. PROHIBITED ACTS.

(a) It is unlawful and a public nuisance for any person to camp, occupy camp facilities, or use camp paraphernalia in the following areas:

(1) Any public property; or

(2) Any private property.

(i) It is not intended by this section to prohibit overnight camping on private residential property by friends or family of the property owner, so long as the owner consents and the overnight camping is limited to not more than one consecutive night.

(ii) Nothing in this article is intended to prohibit or make unlawful, activities of an owner of private property or other lawful user of private property that are normally associated with and incidental to the lawful and authorized use of private property for residential or other purposes; and provided further, nothing is intended to prohibit or make unlawful, activities of a property owner or other lawful user if such activities are expressly authorized by this Code or other laws and regulations.

(iii) Nothing in this article is intended to prohibit or make unlawful the mere possession of or transportation of camp facilities or camp paraphernalia on public or private property, except as provided in this article.

(iv) The City Manager may, as provided in section 10-1704 of this article, issue a temporary permit to allow camping on public or private property in connection with a special event.

(b) It is unlawful and a public nuisance for any person to wash one's body or belongings in a fountain.

(c) It is unlawful and a public nuisance to urinate or defecate in public, as per section 9-2512 of this code.
(Added Ord. 2017-40, § 1, eff. 9-29-17)

SEC. 10-1703. VIOLATION.

(a) A violation of this article is a misdemeanor, and upon conviction, confinement of up to one year in jail and/or fines up to one thousand dollars ($1,000.00) per violation, or as set forth in the Master Fee Schedule, plus payment for the actual costs of transporting and storing property of the violator. In addition to the remedies set forth in Penal Code section 370, et seq., the City Attorney may institute civil actions to abate a public nuisance under this article.

(b) An individual charged with violation of this article, in lieu of being taken to jail may, at the election of the citing police officer and with the consent of the individual, be taken to a facility providing social services related to mental health, housing, and/or substance abuse treatment.

(c) As an alternative to a fine or jail sentence, the City would encourage the Court to grant diversion or probation with a condition the offender complete a rehabilitation program.
(Added Ord. 2017-40, § 1, eff. 9-29-17; Am. Ord. 2024-025, § 1, eff. 9-23-24).

SEC. 10-1704. PERMIT FOR SPECIAL EVENTS REQUIRED.

The City Manager may, in his or her discretion, issue a permit to establish, maintain and operate a camp or a camp facility in connection with a special event. A special event is intended to include, but not be limited to, programs operated by the departments of the city, youth or school events, marathons or other sporting events and scouting activities. The City Manager may consult with various city departments, the health officer and the public prior to issuing any temporary permit. Each department or person consulted may provide comments regarding any health, safety or public welfare concerns and provide recommendations pertaining to the issuance, denial or conditioning of the permit. The City may establish a reasonable fee, to be paid in advance by the applicant. The fee shall be returned if the application is denied. In exercising his or her discretion to issue a temporary permit, the City Manager may consider any facts or evidence bearing on the sanitary, health, safety and welfare conditions on or surrounding the area or tract of land upon which the proposed temporary camp or camp facility is to be located.

Any person who establishes, maintains or operates a camp or camp facility without a permit is guilty of a misdemeanor and constitutes a public nuisance. In addition to remedies provided in Penal Code section 370 et seq., the City Attorney may institute civil actions to abate a public nuisance under this article.
(Added Ord. 2017-40, § 1, eff. 9-29-17)

SEC. 10-1705. POSTING COPY OF PERMIT.

It is unlawful for any person to establish, maintain, conduct or carry on any camp or camp facility unless there shall be at all times posted in a conspicuous place upon the area or tract of land upon which the camp or camp facility is located a permit obtained from the City Manager in accordance with the provisions of section 10-1704 of this article.
(Added Ord. 2017-40, § 1, eff. 9-29-17)

SEC. 10-1706. POWER OF THE CITY MANAGER TO MAKE RULES AND REGULATIONS.

The City Manager is further empowered to ascertain that the operation or maintenance of any camp or camp facilities to which a temporary permit shall apply will in no way jeopardize the public health, safety or welfare and for this purpose may make additional rules and regulations pertaining to their establishment, operation or conduct. The City Manager may also impose conditions on the establishment, maintenance and operation of the camp or camp facility, including, but not limited to, security, sanitation facilities, the number of occupants, posting of bonds or deposits, insurance, quiet hours, duration of the permit, and permitted activities on the premises. When the City Manager shall issue any permit under the terms of section 10-1704 of this article, the same may be revoked at any time thereafter by the City Manager if the City Manager becomes satisfied that the maintenance or continuing operation of the camp or camp facilities is adverse to the public health, safety and welfare.
(Added Ord. 2017-40, § 1, eff. 9-29-17)

SEC. 10-1707. RESERVED.

Editor's note—Ord. 2024-025, § 2, effective September 23, 2024, repealed § 10-1707, which pertained to restriction on enforcement and derived from Ord. 2018-55, § 1, effective October 29, 2018.

ARTICLE 18 NON-TRANSIENT MOTEL INSPECTION PROGRAM

Sec. 10-1801. Purpose and Intent.
Sec. 10-1802. Definitions.
Sec. 10-1803. Scope.
Sec. 10-1804. Inspections; Compliance with Applicable Codes and Standards.
Sec. 10-1805. Authority to Enter and Inspect.
Sec. 10-1806. Correction Notices.
Sec. 10-1807. Rules and Regulations.
Sec. 10-1808. Enforcement; Penalties.
Sec. 10-1809. Appeal.

SEC. 10-1801. PURPOSE AND INTENT.

(a) This article shall be known as the "Non-transient Motel Inspection Program."

(b) Non-transient Lodging rental properties that were built as motels have historically provided affordable rental options of last resort for low-income persons. This ordinance proactively identifies blighted and deteriorated Non-transient Facilities and encourages rehabilitation of units that do not meet minimum health and safety standards so as to provide safe, habitable Rental Units for low-income persons to occupy, and further, to preserve and enhance the quality of life for residents of the city.

(c) It is important that the city not only enforce on a complaint-initiated basis, but also conduct routine inspections to better address and reduce substandard housing within structures that were built as transient motels in the city. It is important to conduct routine inspections of Non-transient Facilities due to the inherent problems associated with properties that are essentially converted from Transient to Non-transient Lodging.
(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1802. DEFINITIONS.

(a) "Director" shall mean the Director of the Development and Resource Management Department, or his or her designee. "Director," as used in this article, may also mean any other city department director or charter official authorized to enforce violations of the municipal code.

(b) "Health and Safety Standards" shall mean the standards set forth in California Civil Code 1941.1, as well as any additional standards specific to Non-transient Facilities that may be set forth in state or local law.

(c) "Non-transient Lodging" or "Non-transient Facility" shall mean any building containing six or more guestrooms or efficiency units intended or designed to be used, or which are used, rented, or hired out, to be occupied, or which are occupied, for habitation and sleeping by guests, which is also the primary residence of those guests, but does not mean any building containing six or more guestrooms or efficiency units, which is primarily used by transient guests who do not occupy that building as their primary residence.

(d) "Operator" shall mean the person who is proprietor of the Non-transient Facility, whether in the capacity of owner, property manager, lessee, sublessee, mortgagee in possession, licensee, or any other capacity.

(e) "Rental Unit" shall mean any room or group of rooms located within a Non-transient Facility and forming a single unit with the facilities that are used, or intended to be used, for living, sleeping, cooking, and/or eating.

(f) "Transient Lodging" shall mean a building or unit occupied or intended to be occupied, for compensation, as the temporary residence for transient guests, primarily by persons who have residence elsewhere, and for which occupancy by a particular guest does not exceed 30 days continuously or 30 days total in a 90 day period. The burden of establishing the housing or facility is transient lodging shall be on the property owner or licensee.
(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1803. SCOPE.

The provisions of this article shall apply to all existing Non-transient Lodging Rental Units, properties, buildings, or portions thereof used, or designed or intended to be used, for human habitation. This article shall supplement, and be in addition to any, regulatory ordinances and state or federal law existing or hereafter enacted by the city, state, or federal government or any other legal entity that may have jurisdiction. This article shall not apply to rental properties used entirely for Transient Lodging purposes.
(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1804. INSPECTIONS; COMPLIANCE WITH APPLICABLE CODES AND STANDARDS.

(a) For all Non-transient Facilities within the city, the Director, or his or her designee, hereinafter referred to as the Inspector, is authorized to inspect all, or a sampling of, Rental Units, at his or her discretion, to determine whether such Rental Units meet minimum Health and Safety Standards. Rental Units shall be required to be in conformance and maintained in accordance with the code standard that was in effect at the time the Rental Unit was constructed, substantially altered, or remodeled, erected, or converted, except for any additional requirements mandated by this Code or state law.

(b) It shall be unlawful for any Operator, or agent thereof, to rent to or otherwise allow a person to occupy a vacant Non-transient Rental Unit that is the subject of a pending enforcement action under this article, until such Rental Unit has been inspected by the city for code compliance, and has passed inspection.

(c) The Director shall prioritize inspection of Non-transient Facilities that:

(1) Have frequent calls for police or fire service. "Frequent" means such response is occurring more than 1.50 times than the average number of such responses for property of similar size and character in the same policing district established by the Police Chief;

(2) Have a history of complaints or Code violations; or

(3) Are over forty years old.

(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1805. AUTHORITY TO ENTER AND INSPECT.

(a) The Inspector is authorized to enter upon the premises and directed to make inspections of property, buildings, and premises and complete investigations to determine compliance with this Code. No inspection warrant shall be required for these regulatory inspections.

(b) The Inspector may expand the scope of any inspections to include other Code violations noted during the inspection.

(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1806. CORRECTION NOTICES.

(a) Content. Whenever it is determined by the Inspector that a violation of Health and Safety Standards exists, the Inspector shall issue a written correction notice. The notice shall contain a description of the violation, the specific action required to correct the violation, and a demand the violations be corrected within the specified time period listed in the notice. The notice shall contain the scheduled re-inspection date and time.

(b) Time for Correction. The notice shall provide a reasonable time for correction. The time shall depend on the time it would take a reasonably diligent person to complete the required action; the potential harm to the public welfare, health and safety; the harm to the tenant or nearby properties; and the extent of the corrections required. Certain imminently dangerous life-safety violations in occupied units shall require immediate correction.

(c) Compliance Re-inspections. Compliance re-inspections shall be conducted to verify the violations identified on the correction notice have been abated. Violations that were not noted on the initial correction notice but are discovered during any re-inspection due to subsequent activities, damage or deterioration, shall be subject to correction.

(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1807. RULES AND REGULATIONS.

The City Manager, with the assistance of the Director, may make rules and regulations enforceable hereunder, which are not inconsistent with the provisions of this article and which may be necessary or desirable to aid in the administration or enforcement of the provisions of this article.

(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1808. ENFORCEMENT; PENALTIES.

If, after a correction notice has been issued, the Operator fails to abate the violations, the city may proceed with all remedies available under law to compel compliance, including but

not limited to issuing administrative citations, abatement proceedings, civil injunction, petition for receivership, and/or criminal prosecution, or any combination of remedies. In any action or proceeding brought by the city to enforce this article, the city shall be entitled to recover its attorney's fees and costs when it is the prevailing party. The City Attorney may, at his or her discretion, charge any violation of this ordinance as either an infraction or a misdemeanor.
(Added Ord. 2019-014, § 1, eff. 7-21-19).

SEC. 10-1809. APPEAL.

The Operator of a Rental Unit or a party with a legal property interest in the unit may appeal to the Administrative Hearing Officer in the manner provided in Chapter 1, Article 4 of this code.
(Added Ord. 2019-014, § 1, eff. 7-21-19).

ARTICLE 19 MOBILEHOME PARKS ACT

Sec. 10-1901. Assumption of responsibilities.
Sec. 10-1902. Delegation of authority and assignment of personnel.
Sec. 10-1903. Schedule of fees.
Sec. 10-1904. Statement of program and objectives.
Sec. 10-1905. Description of existing mobilehome parks.
Sec. 10-1906. Effective date of assumption.
Sec. 10-1907. Method of enforcement.
Sec. 10-1908. Use of state forms.
Sec. 10-1909. Permits to operate and state fees.
Sec. 10-1910. Transmittal of ordinance.

SEC. 10-1901. ASSUMPTION OF RESPONSIBILITIES.

Pursuant to Section 18300 of the Health and Safety Code, and upon authorization from the Department of Housing and Community Development of the State of California (HCD) and subject to the acceptance of reasonable conditions of approval, if any, the City of Fresno (city) hereby assumes responsibility for the enforcement of Division 13, Part 2.1,commencing with section 18200 (Mobilehome Parks Act) and Part 2.3 commencing with section 18860 (Special Occupancy Parks Act), of the California Health and Safety Code and their implementing regulations set forth in Title 25, California Code of Regulations Division 1, Chapters 2 and 2.2, the building standards published in the California State Building Standards Code relating to mobilehome parks, special occupancy parks, travel trailer parks, recreational trailer parks, temporary trailer parks, incident camping areas and tent camps and the related administrative regulations (collectively referred to as "the Acts.")
(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1902. DELEGATION OF AUTHORITY AND ASSIGNMENT OF PERSONNEL.

Pursuant to HCD approval, the city shall be the enforcement agency as defined by section 18207 of the Health and Safety Code and will assign the responsibility for the enforcement of the Acts to the city's Code Enforcement Division (Division). The Division shall provide qualified personnel for the actual enforcement of the Acts. Code Enforcement will assign four code enforcement inspectors to carry out the duties and responsibilities of the Acts.
(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1903. SCHEDULE OF FEES.

The city hereby adopts the fee schedules as contained in the Acts at Division 13 Part 2.1, 2.3 and implementing regulations.
(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1904. STATEMENT OF PROGRAM AND OBJECTIVES.

The city hereby adopts the program and statement of objectives contained in the Acts. The city's specific local objectives, include but are not limited to, the providing of timely and

reliable enforcement of the Acts, reduction of threat of fire, and protecting public health, safety, and welfare inside of Mobilehome and Special Occupancy Parks. The City intends to enforce and implement the program to include all parks now under HCD jurisdiction and any new parks.
(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1905. DESCRIPTION OF EXISTING MOBILEHOME PARKS.

According to statistics provided by HCD, there are currently 26 mobilehome parks in the city, which includes 3,528 spaces. Immediately upon assumption of enforcement responsibilities the City will initiate inspection pursuant to the requirements of the Acts. The occupancy and condition of mobilehome parks shall be substantiated upon approval by the HCD to assume responsibility for enforcing the Acts.
(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1906. EFFECTIVE DATE OF ASSUMPTION.

The effective date of assumption of enforcement responsibilities shall be within thirty (30) days following HCD approval.
(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1907. METHOD OF ENFORCEMENT.

Not later than thirty (30) days from the effective date of assumption of enforcement as defined in section 10-1906, the city shall commence and thereafter diligently enforce the Acts as follows:

(a) Review and maintain relevant files provided by HCD and compare same with records on file with city.

(b) Review pertinent building standards of the state relevant to mobilehomes and manufactured homes and special occupancy parks.

(c) Ascertain the status of all permits-to-operate and construction permits and enforce relevant requirements.

(d) Investigate and resolve complaints received from occupants, neighbors, other agencies, and all other sources of complaints.

(e) Perform annual mobilehome park maintenance inspections consistent with the Acts as set forth in Health and Safety code section 18400.1 and its implementing regulations.

(f) Take all other actions as are deemed appropriate in furtherance of state laws and regulations.

(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1908. USE OF STATE FORMS.

When enforcing the Acts, the city shall utilize the following forms:

(a) HCD 500A, Application for Permit to Operate;

(b) HCD 503B, Annual Permit to Operate;

(c) HCD 513B, Manufactured Home or Mobilehome Installation Acceptance;

(d) HCD 513C, Certificate of Occupancy;

(e) HCD 538, Plot Plan.

(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1909. PERMITS TO OPERATE AND STATE FEES.

The City agrees to send a copy of all permits to operate and state fees to Administrative Office of the Division of Codes and Standards no later than thirty (30) days after the city's issuance of such permits and receipt of such funds.

(Added Ord. 2021-028, § 1, 7-11-21).

SEC. 10-1910. TRANSMITTAL OF ORDINANCE.

The city clerk is hereby instructed to transmit two certified copies of adopting ordinance to the director of HCD and to the Administrative Office of the Division of Codes and Standards to PO Box 278180 Sacramento, CA 95827-8180, within ten (10) days of the date of adoption which, in any event, shall not be less than thirty (30) days before the effective date of assumption of enforcement responsibilities.

(Added Ord. 2021-028, § 1, 7-11-21).

ARTICLE 20 PROHIBITION ON SMOKING IN AND AROUND MULTIUNIT RENTAL PROPERTIES

Sec. 10-2001. Definitions.
Sec. 10-2002. Smoking Restrictions.
Sec. 10-2003. Required and Implied Lease Terms for All New and Existing Units in Multiunit Rental Properties
Sec. 10-2004. Requirements for Rental Properties.
Sec. 10-2005. Nuisance.
Sec. 10-2007. Penalties and Enforcement.
Sec. 10-2007. Construction, Severability.

SEC. 10-2001. DEFINITIONS.

(a) "Common Area" means every area of a multiunit rental property that residents of more than one unit are entitled to enter or use, including, but not limited to, halls, pathways, lobbies, courtyards, elevators, stairs, community rooms, playgrounds, gym facilities, swimming pools, parking garages, parking lots, grassy or landscaped areas, restrooms, laundry rooms, cooking areas, and eating areas.

(b) "Electronic smoking device" means any device that may be used to deliver any aerosolized or vaporized substance to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, vape pen, or e-hookah.

(c) "Enclosed area" means all space between a floor and a ceiling that is bounded by walls, doorways, or windows, whether open or closed, covering more than 50% of the combined surface area of the vertical planes constituting the perimeter of the area. A wall includes any retractable divider, garage door, or other physical barrier, whether temporary or permanent.

(d) "Exclusive Use Outdoor Area" means an area accessible only by the occupant of a unit, such as a private balcony, deck, porch, or patio.

(e) "Landlord" means any person or agent of a person who owns, manages, or is otherwise legally responsible for a unit in a multiunit rental property that is leased to a residential tenant. For purposes of this ordinance, a tenant who sublets their unit is not a landlord.

(f) "Multiunit rental property" means residential property containing two or more rental units where the majority of the units, whether rental or not, share at least one common wall with an adjacent unit.

(g) "Nonsmoking Area" means any area in which smoking is prohibited by:

(1) This Ordinance or other law; and

(2) binding agreement relating to ownership, occupancy, or use of rental property; or

(3) a person with legal control over the area.

(h) "Person" means any natural person, partnership, cooperative association, corporation, personal representative, receiver, trustee, assignee, or any other legal entity, including government agencies.

(i) "Smoking" means:

(1) Inhaling, exhaling, or burning, any tobacco, nicotine, cannabis, or plant product, whether natural or synthetic; and

(2) carrying any lighted, heated, or activated tobacco, nicotine, or marijuana, or plant product, whether natural or synthetic, intended for inhalation; or

(3) using an "electronic smoking device."

(j) "Unit" means a residential rental unit in a multiunit rental property, excluding any associated exclusive use outdoor area.
(Added Ord. 2021-045, § 1, eff. 11-28-21)

SEC. 10-2002. SMOKING RESTRICTIONS.

(a) Effective January 1,2022, smoking is prohibited anywhere on the premises of a multiunit rental property, including units, common areas, and other outdoor areas.

(b) Notwithstanding subsection (a), smoking is permitted in designated smoking areas if they meet the following conditions:

(1) It is an exclusive use outdoor area; or

(2) It is an unenclosed enclosed area at least 20 feet from any:

(i) Outdoor recreation area such as a tennis court, swimming pool, or picnic area; or

(ii) Outdoor area primarily used by children such as a playground; or

(iii) Doorway, entryway into a unit or common area, ventilation system, window, or air conditioner unit.

(3) Designated smoking areas other than exclusive use outdoor areas must have a clearly marked perimeter, and be identified by conspicuous signs.

(c) No person with legal control over any nonsmoking area of a multiunit rental property shall permit smoking in the nonsmoking area, except as provided in subsection (b).

(d) No person with legal control over a common area in which smoking is prohibited by this Ordinance or other law shall permit the presence of ashtrays, ashcans, or other receptacles designed for or primarily used for disposal of smoking waste within the area.
(Added Ord. 2021-045, § 1, eff. 11-28-21)

SEC. 10-2003. REQUIRED AND IMPLIED LEASE TERMS FOR ALL NEW AND EXISTING UNITS IN MULTIUNIT RENTAL PROPERTIES

(a) After the effective date of this Ordinance, every lease or other rental agreement for the occupancy of a unit in a multiunit rental property entered into, renewed, or continued month to month shall prohibit smoking as required by this Ordinance. The City shall provide a form to be attached to the lease and incorporated therein containing a copy of this Ordinance and setting forth the following conditions:

(1) A clause providing that as of January 1, 2022, it is a material breach of the agreement to smoke or allow smoking:

(i) In the unit, excluding exclusive use outdoor areas; and

(ii) In any common area of the multiunit rental property other than a designated smoking area.

(2) A clause providing that it is a material breach of the agreement for tenant to violate any law regulating smoking while anywhere on the property, or to allow any other person subject to the control of the tenant to engage in such behavior.

(3) A clause expressly conveying third-party beneficiary status to all occupants of the multiunit rental property as to the smoking provisions of the lease or other rental agreement.

(b) Whether or not a landlord complies with subsection (a) above, the clauses require by those subsections shall be implied and incorporated by law into every agreement to which subsection (a) applies, as well as to existing leases in effect, as of January 1, 2022.

(c) A tenant who breaches or allows any other person subject to control of the tenant to breach, a smoking provision of a lease or other rental agreement for the occupancy of a unit in a multiunit rental property shall be liable for the breach to (1) the landlord; and (2) any occupant of the multiunit rental property who is exposed to smoke or who suffers damage as a result of the breach. This Ordinance does not create a private right of action for a tenant against a landlord for any damages the tenant may suffer due to another tenant's breach of any smoking provision in a lease or other rental agreement, so long as the landlord has fully complied with the terms of this Ordinance.

(d) Failure to enforce any smoking provision required by this Ordinance shall not affect the right to enforce such provision in the future, nor shall a waiver of any breach constitute a waiver of any subsequent breach or a waiver of the provision itself.
(Added Ord. 2021-045, § 1, eff. 11-28-21)

SEC. 10-2004. REQUIREMENTS FOR RENTAL PROPERTIES.

The following requirements apply to multiunit rental properties other than units in a common interest development that are not being rented:

(a) On or before January 1, 2022, every landlord shall deliver to each unit a copy of this Ordinance and a written notice clearly stating:

(1) All units are designated nonsmoking units and smoking is prohibited in a unit, excluding any exclusive use outdoor areas, as of January 1, 2022; and

(2) Smoking in all common areas or outdoor areas, except for specifically designated smoking areas, is a violation of this Ordinance as of January 1, 2022.

(b) As of the effective date, every landlord shall provide prospective tenants with written notice clearly stating that:

(1) Smoking is prohibited in units, excluding any exclusive use outdoor area, as of January 1, 2022; and

(2) Smoking is prohibited in all common areas and outdoor areas, except for specifically designated smoking areas, as of January 1, 2022.

(c) The city shall prepare a form which landlords may use to comply with sections (a) and (b) above.

(d) As of January 1, 2022, the person, or persons with legal control over common areas shall post and maintain clear and unambiguous "No Smoking" signs at entrances and exits, in common areas, and in conspicuous places adjoining the property grounds. In addition, as of January 1,2022, the person, or persons with legal control over the multiunit rental property shall post and maintain sings in sufficient numbers and locations in the multiunit rental property to indicate that smoking is prohibited in all units. The absence of signs shall not be a defense to a violation of any provision of this Ordinance. "No Smoking" signs are not required inside or on doorways of units. This subsection (c) shall not apply to multiunit rental properties with three or fewer units.

(e) Landlords with knowledge of violations shall take reasonable steps to investigate and enforce the regulations, including a written notice to the resident of the landlord's knowledge of the violation, a request to cease the violation, and the course of action to be taken if the violation is not corrected.

(Added Ord. 2021-045, § 1, eff. 11-28-21)

SEC. 10-2005. NUISANCE.

(a) The provisions of this Ordinance shall be liberally construed to protect the public health to the maximum effect possible. Except as otherwise stated herein, nothing in this Ordinance shall be interpreted to limit any person's legal rights in nuisance, trespass, property damage, and personal injury or other legal or equitable principles.

(b) Any violation of this Ordinance is hereby declared to be a public nuisance.

(c) Nonconsensual exposure to smoke from smoking occurring or drifting into residential property is a nuisance.

(Added Ord. 2021-045, § 1, eff. 11-28-21)

SEC. 10-2007. PENALTIES AND ENFORCEMENT.

(a) The remedies provided by this Ordinance are cumulative and in addition to any other remedies available at law or in equity.

(b) Every responsible party owning, occupying, renting, possessing, or having charge or control over a multifamily unit is required to manage and control that unit in a manner so as not to violate the provisions of this Ordinance, and to supervise anyone using or occupying the property, with or without consent of the owner, consistent with this Ordinance. Every responsible party shall be jointly and severally liable for violations thereof regardless of any contract or agreement among them or with any third party regarding the property.

(c) Any person violating the provisions of this Ordinance may be guilty of an infraction. The city may, at its discretion, issue an administrative citation for any violation of this ordinance. In the alternative, the city may, at its discretion, issue community service as an alternative to a fine. The penalty to be assessed for each violation shall be as follows:

(1) First violation, $250.

(2) Second violation within one year of the first violation, $500

(3) Third and each subsequent violation within a year of the first violation, $1,000.

Any person receiving an administrative citation for violation of this article shall have the right to appeal pursuant to Article 4, chapter 1 of this code. In addition, the City Attorney may institute a civil action to ensure compliance with this Ordinance, including an action for injunctive relief and/or to recover damages and attorney fees and costs incurred as a result of any violation.

(d) No person shall intimidate, harass, or otherwise retaliate against any person who seeks compliance with this Ordinance. Residents of the multiunit rental property in violation of this subsection may be subject to community service as an alternative to a civil fine.

(e) Any person may bring a civil action to enforce this Ordinance to prevent future violations and may sue to recover actual or statutory damages, including court costs, and attorney's fees. However, this Ordinance does not create a private right of action for a tenant against a landlord for any damages the tenant may suffer due to another tenant's breach of any smoking provision in a lease or other rental agreement, so long as the landlord has fully complied with the terms of this Ordinance.

(f) Violations of this ordinance may be reported to the city via the city's internet or app based reporting platform such as FresGo, or via telephone to the city's Code Enforcement Department. The city shall ensure these resources are available for reporting as of January 1, 2022.
(Added Ord. 2021-045, § 1, eff. 11-28-21)

SEC. 10-2007. CONSTRUCTION, SEVERABILITY.

It is the intent of the city to supplement applicable state and federal law and not to duplicate or contradict such law and this ordinance shall be construed consistently with that

intention. If any provision of this article is held to be unconstitutional or otherwise invalid by a court of competent jurisdiction, such invalidity shall not affect any other provisions of this ordinance.
(Added Ord. 2021-045, § 1, eff. 11-28-21)

ARTICLE 21 PUBLIC WELFARE

Sec. 10-2101. Sitting, Lying, Sleeping or Camping on a Public Place Including but not Limited to Sidewalks, Streets, Alleys, Sensitive Areas or Within Doorways Prohibited.

SEC. 10-2101. SITTING, LYING, SLEEPING OR CAMPING ON A PUBLIC PLACE INCLUDING BUT NOT LIMITED TO SIDEWALKS, STREETS, ALLEYS, SENSITIVE AREAS OR WITHIN DOORWAYS PROHIBITED.

(a) No person may camp on a public place at any time. "Camp" shall be defined to include but not be limited to: sitting, lying, sleeping, and/or storing or placing a tent and/or other material intended, or which may be used for shelter or bedding on a public place. "Public Place" shall be defined to include, but not be limited to, sidewalks, streets, alleyways, locations where the City has an easement, or other public space.

(b) No person may sit, lie, sleep or camp in any pedestrian or vehicular entrance to public or private property abutting a public sidewalk.

(c) No person may camp on a property designated as a sensitive use. For a property to be designated as a "sensitive use," the property must be a School, Childcare Facilities, Public Park, Public Library, City Facility, Governmental Facility located in the City of Fresno, Warming and Cooling Centers, and City-Permitted Shelters for the Unhoused.

(d) No person shall loiter or stand in or upon any public highway, alley, sidewalk or crosswalk or sensitive use or other public way or any entrance to a public place open for pedestrian travel or otherwise occupy any portion thereof in such a manner as to obstruct or interfere with the free passage of pedestrians.

(e) In addition to any other remedy provided by law, any person found in violation of this section may be immediately removed from the Public Place.

(f) A violation of this article is a misdemeanor, and upon conviction punishable by a fine of not exceeding one thousand dollars ($1,000.00) or by imprisonment in the Fresno County Jail for a period of not more than one year or by both such fine and imprisonment. In addition to any other remedy provided by law, the City Attorney may institute a civil action to abate the public nuisance or enjoin a person who has been previously convicted or cited for violating this article.

Any individual charged with violation of this article, in lieu of being taken to jail may, at the election of the citing police officer and with the consent of the individual, be taken to a facility providing social services related to mental health, housing, and/or substance abuse treatment.

As an alternative to a fine or jail sentence, the City may encourage the Court to grant diversion or probation with a condition the offender complete a rehabilitation program.

(g) The City Attorney is authorized to enforce any order or injunction issued by a court that is intended to protect the public health and safety, enforce City codes, or safeguard the rights of residents.

(1) Any person who willfully violates a court-issued order or injunction is guilty of a misdemeanor. Upon conviction, such person shall be punishable by:

(i) A fine not exceeding $1,000; or

(ii) Imprisonment in the County jail for a term not exceeding six (6) months; or

(iii) Both such fine and imprisonment.

(iv) Each day that a violation continues shall constitute a separate and distinct offense.

(2) Prosecution under this Article shall be independent of and may be pursued in addition to any remedies available under state law, including but not limited to the California Penal Code Section 166.

(h) The City shall adhere to State law and local ordinances as it pertains to mobile and sidewalk vendors.

(Added Ord. 2023-020, § 1, eff. 7-15-23; Am. Ord. 2024-025, § 3, eff. 9-23-24; Am. Ord. 2025-058, § 1, eff. 1-30-26).

Editor's note—Ord. 2024-025, § 3, adopted September 23, 2024, amended the title of § 10-2101 to read as herein set out. The former § 10-2101 title pertained to sitting, lying, or sleeping or storing, using maintaining or placing personal property in the public right-of-way.

ARTICLE 22 PUBLIC HAZARDS

Sec. 10-2201. Storage of Personal Property.
Sec. 10-2202. Definitions.
Sec. 10-2203. Regulation and Impoundment of Stored Personal Property; Discard of Certain Store Personal Property.
Sec. 10-2204. Notice.
Sec. 10-2205. Storage and Disposal.
Sec. 10-2206. Repossession.
Sec. 10-2207. Power of the City Manager to Make Rules and Regulations.

SEC. 10-2201. STORAGE OF PERSONAL PROPERTY.

The City enacts this section to balance the needs of the residents and public at large to access clean and sanitary public areas consistent with the intended uses for the public areas with the needs of the individuals, who have no other alternatives for the storage of personal property, to retain access to a limited amount of personal property in public areas. This section attempts to balance the needs of all of the City's residents.
(Added. Ord. 2023-020, § 2, eff. 7-15-23).

SEC. 10-2202. DEFINITIONS.

The definitions contained in this subsection shall govern the construction, meaning, and application of words and phrases used in this article.

(a) "Alley" means any Highway having a Roadway not exceeding 25 feet in width which is primarily for access to the rear or side entrances of abutting property.

(b) "Bikeway" means all facilities that provide primarily for, and promote, bicycle travel.

(c) "City Employee" means any full or part-time employee of the City of Fresno, or a contractor retained by the City for the purpose of implementing this Section.

(d) "Essential Personal Property" means any and all Personal Property that cumulatively is less than two cubic feet in volume, which, by way of example, is the amount of property capable of being carried within a backpack.

(e) "Excess Personal Property" means any and all Personal Property that cumulatively exceeds the amount of property that could fit in a 60-gallon container with the lid closed.

(f) "Highway" means a way or place of whatever nature, publicly maintained and open to the use of the public for purposes of vehicular travel.

(g) "Parkway" means the area of the Street between the back of the curb and the Sidewalk that typically is planted and landscaped.

(h) "Person" means any individual.

(i) "Personal Property" means any tangible property, and includes, but is not limited to, goods, materials, merchandise, Tents, tarpaulins, bedding, sleeping bags, hammocks,

sheds, structures, mattresses, couches, chairs, other furniture, appliances, and personal items such as household items, luggage, backpacks, clothing, documents, and medication.

(j) "Public Area" or "Public Areas" means all property that is owned, managed or maintained by the City, and shall include, but not be limited to, any Street, medial strip, space, ground, building or structure.

(k) "Roadway" means that portion of a Highway improved, designed or ordinarily used for vehicular travel.

(l) "Sidewalk" means that portion of a Highway, other than the Roadway, set apart by curbs, barriers, markings or other delineation, for pedestrian travel.

(m) "Storage Facility" means any facility, whether operated by a public, non-profit or private provider, which allows and has capacity for voluntary storage, free of charge, for a homeless person to store Personal Property up to the equivalent of the amount of property that would fit into a single 60-gallon container with the lid closed.

(n) "Store", "Stored", "Storing" or "Storage" means to put Personal Property aside or accumulate for use when needed, to put for safekeeping, and/or to place or leave in a Public Area. Moving Personal Property to another location in a Public Area or returning Personal Property to the same block on a daily or regular basis shall be considered Storing and shall not be considered to be removing the Personal Property from a Public Area. This definition shall not include any Personal Property that, pursuant to statute, ordinance, permit, regulation or other authorization by the City or state, is Stored with the permission of the City or state on real property that is owned or controlled by the City.

(o) "Street" includes every Highway, avenue, lane, Alley, court, place, square, Sidewalk, Parkway, curbs, Bikeway or other public way in this City which has been or may hereafter be dedicated and open to public use, or such other public property so designated in any law of this state.

(p) "Tent" means a collapsible shelter made of fabric such as nylon or canvas or a tarp stretched and sustained by supports, which is not open on all sides, and which hinders an unobstructed view behind or into the area surrounded by the fabric. In order to qualify as a Tent for purposes of this subsection, a Tent, when deconstructed, must be able to fit within a 60-gallon container with the lid closed.

(q) "Unattended" means no Person is present with the Personal Property who asserts or claims ownership over the Personal Property. Conversely, property is considered "Attended" if a Person is present with the Personal Property and the Person claims ownership over the Personal Property.

(Added. Ord. 2023-020, § 2, eff. 7-15-23).

SEC. 10-2203. REGULATION AND IMPOUNDMENT OF STORED PERSONAL PROPERTY; DISCARD OF CERTAIN STORE PERSONAL PROPERTY.

(a) No person shall Store any Unattended Personal Property in a Public Area. With pre-removal notice as specified in Section 10-2204(a), the City may impound any unattended Personal Property in a Public Area, regardless of volume. Post-removal notice shall be provided as set forth in Section 10-2204(b), below.

(b) No Person shall Store any Attended Excess Personal Property in a Public Area. With pre-removal notice as specified in Section 10-2204(a), the City may impound any Attended Excess Personal Property Stored in a Public Area. Post-removal notice shall be provided as set forth in Subsection 10-2204(b).

(c) No Person shall Store any Personal Property in a Public Area in such a manner as to obstruct City operations, including a Street or Sidewalk maintenance or cleaning. Without prior notice, the City may temporarily move Personal Property, whether Attended or Unattended, which is obstructing City operations in a Public Area, including a Street or Sidewalk maintenance or cleaning, during the time necessary to conduct the City operations. The City may also impound Personal Property that is obstructing City operations in a Public Area, pursuant to Sections 10-2203(a) or 10-2203(b).

(d) No Person shall Store any Personal Property in a Public Area in such a manner that it does not allow for passage as provided by the Americans with Disabilities Act of 1990, Pub. L. No. 101-336, 104 Stat. 328 (1990), as amended from time to time. Without prior notice, the City may move and may immediately impound any Personal Property, whether Attended or Unattended, Stored in a Public Area in such manger that it does not allow for the passage as required by the ADA. Post-removal notice shall be provided as set forth in Section 10-2204(b). A violation of this section is governed by Section 10-2101(f) of this Code.

(e) No Person shall Store any Personal Property, whether Attended or Unattended, within:

(1) 10 feet of any operational or utilizable driveway or loading dock;

(2) 5 feet of any operational or utilizable building entrance or exit; or

(3) 2 feet of any fire hydrant, fire plug, or other fire department connection.

Without prior notice, the City may move or may immediately impound any Personal Property, whether Attended or Unattended, Store in a Public Area in violation of this section. Post-removal notice shall be provided as set forth in Section 10-2101(f) of this Code.

(f) No Person shall Store any Personal Property in a Public Area that has a clearly posted closure time any Personal Property after the posted closure time. Without prior notice, the City may remove and impound Personal Property, whether Attended or Unattended, Stored in a Public Area that has a clearly posted closure time, provided the Personal Property is removed and impounded after the posted closure time. Post-removal notice shall be provided as set forth in Section 10-2204(b).

(g) No Person shall Store any Personal Property in a Public Area if the Personal Property, whether Attended or Unattended constitutes an immediate threat to the health or safety of the public. Without prior notice, the City may remove and may discard any Personal Property Stored in a Public Area if the Personal Property poses an immediate threat to the health or safety of the public.

(h) No Person shall Store any Personal Property in a Public Area if the Personal Property, whether Attended or Unattended, constitutes evidence of a crime or contraband. Without prior notice, the City may remove and discard any Personal Property that constitutes evidence of a crime or contraband, as permissible by law.

(i) No Person shall Store any Personal Property, whether Attended or Unattended, in such a manner that obstructs or interferes with any activity in a Public Area for which the City has issued a permit. Without prior notice, the City may move any Personal Property Stored in a Public Area in violation of this section. With pre-removal notice as specified in Section 10-2204(a), the City may impound any Personal Property Stored in violation of this section. Post-removal notice shall be provided as set forth in Section 10-2204(b). A violation of this section is governed by Section 10-2101(f) of this Code.

(j) No Person shall Store any Personal Property, whether Attended or Unattended, in such a manner as to obstruct any portion of a street or other public right-of-way open to use by motor vehicles, a designated bike lane or bike path, or other public right-of-way open exclusively to use by bicycles. Without prior notice, the City may move and may immediately impound any Personal Property, whether Attended or Unattended, in violation of this section. Post-removal notice shall be provided as set forth in Section 10-2204(b). A violation of this section is governed by Section 10-2101(f) of this Code.

(k) No Personal shall Store any Personal Property, whether Attended or Unattended, in violation of Section 10-2101(c) of this Code. The City may move and may immediately impound any Personal Property, whether Attended or Unattended, in violation of this section. Pre-removal notice and post-removal will be provided by erecting signage providing notice that Storage of Personal is a violation of 10-2100, which may result in removal or impoundment of the Personal Property. The signage must also provide information on retrieval of the Personal Property and provide notice that the Personal Property may be discarded, if not claimed within 90 days. A violation of this section is governed by Section 10-2101(f) of this Code.

(l) No Person shall Store any Personal Property, whether Attended or Unattended, in violation of Section 10-2101(e) of this Code. With pre-removal notice as specified in Section 10-2204(a) or posted signage, the City may impound any Personal Property, whether Attended or Unattended, in violation of this section. If the City has not posed signage, a post-removal notice shall be provided as set forth in Section 10-2204(b). A violation of this section is governed by Section 10-2101(f) of this Code.
(Added. Ord. 2023-020, § 2, eff. 7-15-23).

SEC. 10-2204. NOTICE.

(a) Pre-Removal Notice. Pre-removal notice shall be deemed provided if a written notice is provided to the Person who is Storing or claims ownership of the Personal Property or is posted conspicuously on or near the Personal Property and the actual removal commences at least 24 hours after the pre-removal notice had been posted. The written notice shall contain the following:

(1) A general description of the Personal Property to be removed.

(2) The location from which the Personal Property will be removed.

(3) The date and time the notice was posted.

(4) A statement that the Personal Property has been stored in violation of Section 10-2203.

(5) A statement that the Personal Property may be impounded if not removed from Public Areas within 24 hours.

(6) A statement that moving Personal Property to another location in a Public Area shall not be considered removal of Personal Property from a Public Area.

(7) The address where the removed Public Property will be located, including a telephone number and the internet website of the City through which a Person may receive information as to impounded Personal Property as well as information as to voluntary storage location(s).

(8) A statement that impounded Personal Property may be discarded if not claimed within 60 days after impoundment.

(b) Post-Removal Notice. Upon removal of Stored Personal Property, written notice shall be conspicuously posted in the area from which the Personal Property was removed. The written notice shall contain the following:

(1) A general description of the Personal Property removed.

(2) The date and approximate time the Personal Property was removed.

(3) A statement that the Personal Property has been stored in violation of Section 10-2203.

(4) The address where the removed Personal Property will be located including a telephone number and internet website of the City through which a Person may receive information as to impounded Personal Property.

(5) A statement that impounded Personal Property may be discarded if not claimed within 60 days after impoundment.

(c) Personal Property shall be defined as set forth in Section 10-2202(i) of the Fresno Municipal Code.

(Added Ord. 2023-020, § 2, eff. 7-15-23; Am. Ord. 2024-025, § 4, eff. 9-23-24; Am. Ord. 2025-002, § 1, eff. 3-21-25).

SEC. 10-2205. STORAGE AND DISPOSAL.

(a) Except as specified herein, the City shall move Personal Property to a place of storage.

(b) Except as specified herein, the City shall store impounded Personal Property for 60 days, after which time, if not claimed, may be discarded. The City shall not be required to undertake any search for, or return, any impounded Personal Property store for longer than 60 days.

(c) The City shall maintain a record of the date any impounded Personal Property was discarded.
(Added. Ord. 2023-020, § 2, eff. 7-15-23; Am. Ord. 2024-025, § 5, eff. 9-23-24).

SEC. 10-2206. REPOSSESSION.

The owner of impounded Personal Property may repossess the Personal Property prior to its disposal upon submitting satisfactory proof of ownership. A person may establish proof of ownership by, among other methods, describing the location from and date when the Personal Property was impounded from a Public Area, and providing a reasonably specific and detailed description of the Personal Property. Valid, governmental-issued identification is not required to claim impounded Personal Property.
(Added. Ord. 2023-020, § 2, eff. 7-15-23).

SEC. 10-2207. POWER OF THE CITY MANAGER TO MAKE RULES AND REGULATIONS.

The City Manager is hereby charged with serving as the Designated Administrative Agency for the purpose of this ordinance. The Designated Administrative Agency shall promulgate rules, protocols, and procedures for the implementation and enforcement of this ordinance, consistent with the provisions herein.
(Added. Ord. 2023-020, § 2, eff. 7-15-23).

ARTICLE 23 GRAFFITI

Sec. 10-2301. Purpose and Intent.
Sec. 10-2302. Graffiti as a Public Nuisance.
Sec. 10-2303. Unlawful to Apply Graffiti.
Sec. 10-2304. Violation, Penalties and Civil Liability of Parents.

SEC. 10-2301. PURPOSE AND INTENT.

(a) The Council of the City of Fresno finds and determines as follows:

(1) Graffiti on public or private property is a blighting element which leads to depreciation of the value of property which has been targeted by such vandalism and depreciates the value of the adjacent and surrounding properties to the extent that graffiti creates a negative impact upon the entire city.

(2) Graffiti shall be defined as set forth in Fresno Municipal Code Section 9-215(b)(2).

(3) The Council of the City of Fresno (the City) finds and determines that graffiti is obnoxious and a public nuisance, and must be eliminated by means of prevention education, and abatement to avoid the detrimental impact of such graffiti on the city and its residents to prevent the further spread of graffiti.

(b) The purpose of this ordinance is to adopt state statutes permitting cities to provide additional remedies and penalties against persons committing acts of graffiti.

(c) It is the purpose and intent of the City Council, through the adoption of this article, to provide additional enforcement tools to protect public and private property from acts of vandalism and defacement, including the application of graffiti on privately and publicly owned walls and structures. Such acts obstruct and are destructive of the rights and values of private property owners as well as the total community. It is the further intent of the City Council, through the adoption of this article, to provide notice to all of those who disregard the property rights of others that the law enforcement agencies of the City, the police department and the district attorney's office will strictly enforce the law and vigorously prosecute those persons engaging in the defacement of public and private properties.

(d) For purposes of this ordinance, graffiti does not refer to a style of art. This ordinance is intended to address the application of graffiti that does not have the prior consent of the property owner and is a form of vandalism. It is not intended to address the content or the artistic merit of the graffiti or other art or messaging on property. Through other policies and programs and as a graffiti deterrent, the City Council may wish to encourage permissive murals or art work on properties as a means of discouraging or abating unconsented to graffiti.
(Added Ord. 2024-006, § 2, eff. 4-12-24).

SEC. 10-2302. GRAFFITI AS A PUBLIC NUISANCE.

The City Council hereby declares and finds that graffiti is a public nuisance subject to abatement according to the provisions and procedures contained in the Fresno Municipal Code.
(Added Ord. 2024-006, § 2, eff. 4-12-24).

SEC. 10-2303. UNLAWFUL TO APPLY GRAFFITI.

It is unlawful and a violation of the Fresno Municipal Code and this Chapter for any person to write, paint, spray, chalk, etch, or otherwise apply Graffiti on public or privately owned buildings, signs, walls, permanent or temporary structures, places, or other surfaces located on public or privately owned property within the City.
(Added Ord. 2024-006, § 2, eff. 4-12-24).

SEC. 10-2304. VIOLATION, PENALTIES AND CIVIL LIABILITY OF PARENTS.

(a) Every person who maliciously defaces with graffiti or other inscribed material, with respect to any real or personal property not his or her own, in cases other than those specified by state law, is guilty of vandalism.

(b) Criminal Penalties. Any violation of this chapter shall be prosecuted to the fullest extent possible under California Penal Code Section 594 and other applicable state statutes, which may include fines ranging from ten thousand dollars ($10,000) to fifty thousand dollars ($50,000). If the amount of defacement, damage or destruction is four hundred dollars ($400) or more, vandalism is punishable by imprisonment pursuant to this chapter in a county jail not to exceed one year, or by a fine of not more than ten thousand dollars ($10,000), or if the amount of defacement, damage, or destruction is ten thousand dollars ($10,000) or more, by a fine of not more than fifty thousand dollars ($50,000), or by both fine and imprisonment.

(c) Additional Penalties Available. The following additional penalties may be imposed against a person who violates any provision of this chapter:

(1) Litter or graffiti cleanup pursuant to California Vehicle Code Section 42001.71 upon conviction of violation of California Vehicle Code Section 23111, 23112 or 23113(a);

(2) Suspension or delay of issuance of a driver's license pursuant to California Vehicle Code Section 13202.6 upon a graffiti-vandalism conviction;

(3) Performance of community service, including graffiti removal service by a minor determined to be a ward of the court as a result of committing a vandalism-related offense in the city of Fresno, as provided in California Welfare and Institutions Code Section 727.5;

(4) Misdemeanor and Felony Prosecution. All acts of graffiti-vandalism occurring within the city shall be prosecuted by the City Attorney's Office as misdemeanors pursuant to this chapter, except for acts of graffiti-vandalism punishable as felonies under state law, shall be in the jurisdiction of the Fresno County District Attorney's Office;

(5) Civil Liability of Parents. In addition to pursuing criminal charges for violations of this chapter, the City Attorney may file civil complaints against the parents or legal guardians of minors who deface public property and seek recovery for the property damage, cost of graffiti removal, police investigative costs, as well as the City Attorney's fees and costs, up to twenty-five thousand dollars ($25,000) for each tort of the minor. Pursuant to Civil Code Section 1714.1, any act of willful misconduct of a minor which results in the defacement of property of another with paint or a similar substance is imputed to the parent or guardian having custody and control of the minor for all purposes of civil damages, including court costs, and attorney's fees, and the parent or guardian having custody and control is jointly and severally liable with the minor for any damages resulting from the willful misconduct of the minor, not to exceed twenty-five thousand dollars ($25,000) for each tort of the minor;

(6) Violation. A violation of any of the provisions of this chapter shall constitute a nuisance as defined in Fresno Municipal Code Section 10-605 and may be abated by the City through the process and procedure set forth in Section 9-2514 or through civil process by means of restraining order, preliminary or permanent injunction, or in any other manner provided by law or this code for the abatement of such nuisances;

(7) Civil Penalties. Any person, firm or corporation who violates any provision or fails to comply with any requirement or provision of this chapter shall be liable for a civil penalty not to exceed one thousand dollars ($1,000) for each violation. Each application of graffiti on the same property, but at different times is considered a separate act subject to citation. Each act of graffiti on a separate piece of real or personal property is a separate act subject to citation even if occurring on the same general time and day. Each person who participates in an act of graffiti is subject to a separate administrative citation or civil penalty. In determining the amount of the civil penalty, the court shall consider all relevant circumstances, including, but not limited to, the extent of the harm caused by the conduct constituting a violation, the nature and persistence of such conduct, the length of time over which the conduct occurred, the assets, liabilities and net worth of the person, whether corporate or individual, and any corrective action taken by the defendant. The civil penalty prescribed by this subsection shall be assessed and recovered and a civil action brought by the City Attorney or by any member of the public in any court of competent jurisdiction. The civil penalty prescribed by this subsection may be sought in addition to, and not in lieu of, any other remedy, including, but not limited to, criminal remedies, injunctive relief, specific performance or any other remedy. In the event any such action is brought by a member of the public, any civil penalty awarded shall be awarded to and on behalf of the City or other person whose property is damaged.

(Added Ord. 2024-006, § 2, eff. 4-12-24).

ARTICLE 24 REMOVING SQUATTERS FROM SHORT-TERM RENTALS AND HOTELS

Sec. 10-2401. Alternative Remedy to Remove Squatters from Short-Term Rentals, and Hotels.

SEC. 10-2401. ALTERNATIVE REMEDY TO REMOVE SQUATTERS FROM SHORT-TERM RENTALS, AND HOTELS.

(a) Purpose. This chapter is adopted for the purpose of assisting owners of short-term residential rentals or hotels, for the immediate removal of unauthorized occupants from short-term rentals or hotels, under certain conditions. This ordinance shall only apply to transient use of 30 consecutive days or less.

(b) Definitions.

(1) "Guest" means and is specifically limited to an occupant of a short-term rental or hotel whose occupancy is exempt pursuant to subdivision (b) of Section 1940 of the California Civil Code.

(2) "Hotel" means any hotel, motel, bed and breakfast inn, or other similar transient lodging establishment, but it shall not include any residential hotel as defined in Section 50519 of the Health and Safety Code.

(3) "Property Owner" means the person or persons holding fee title to a dwelling unit operated and used as a short-term rental, hotel or motel; or a person or persons holding the lease estate to a dwelling unit and operating and using the leased dwelling as short-term rental, or the agents of any such persons.

(4) "Short-Term Rental" means a dwelling unit, rented in whole or in part, to any persons(s) for transient use of 30 consecutive days or less.

(c) Removal of Unauthorized Guest(s). A Property Owner or authorized agent may request from the Fresno Police Department (Fresno PD) the immediate removal of a Guest who is unlawfully occupying a Short-Term Rental or Hotel pursuant to this section if all of the following conditions are met:

(1) The requesting person is the Property Owner or an authorized agent of the Property Owner.

(2) The real property that is being occupied was subject to the Transient Occupancy Tax; and the transient use was for 30 consecutive days or less.

(3) The Guest(s) have been unlawfully remaining or continuing to reside on the Property Owner's property.

(4) The Property Owner or their authorized agent has directed the unauthorized Guest(s) to leave the property.

(5) The unauthorized Guest or Guests are not current or former tenants pursuant to a written or oral rental agreement authorized by the Property Owner.

(6) There is no pending litigation related to the real property between the Property Owner or any known unauthorized Guest(s).

(d) Request for the Removal of Unauthorized Guest(s). To request the immediate removal of an unlawful Guest, the Property Owner, authorized agent must submit a complaint by presenting a completed and signed Complaint to Remove Guests Unlawfully Occupying Residential Property to Fresno PD. The submitted complaint must be substantially the following form:

COMPLAINT TO REMOVE PERSONS UNLAWFULLY OCCUPYING REAL PROPERTY

I, the owner or authorized agent of the owner of the real property located at ....., declare under the penalty of perjury that (initial each box):

1. I am the owner of the real property or the authorized agent of the owner of the real property.

2. The real property is subject to the Transient Occupancy Tax.

3. An unauthorized person or persons have lawfully continued to remain or reside unlawfully on the real property.

4. I have directed the unauthorized person or persons to leave the real property, but they have not done so.

5. The person or persons are not current or former tenants pursuant to any valid lease authorized by the property owner, and any rental agreement or lease that may be produced by an occupant is fraudulent.

6. The unauthorized person or persons sought to be removed are not an owner or co-owner of the property and have not been listed on the title to the property unless the person or persons have engaged in fraud.

7. I am unaware of any litigation related to the real property pending between the property owner and any person sought to be removed.

8. I understand that a person or persons removed from the property pursuant to this procedure may bring a cause of action against me for any false statements made in this complaint, or for wrongfully using this procedure, and that as a result of such action, I may be held liable for actual damages, penalties, costs and reasonable attorney fees.

9. I am requesting the Fresno Police Department to immediately remove the unauthorized person or persons from the residential property.

10. A copy of my valid government-issued identification is attached, or I am an agent of the property owner, and documents evidencing my authority to act on the property owner's behalf are attached.

I HAVE READ EVERY STATEMENT MADE IN THIS PETITION AND EACH STATEMENT IS TRUE AND CORRECT. I UNDERSTAND THAT THE STATEMENTS MADE IN THIS PETITION ARE BEING MADE UNDER PENALTY OF PERJURY.

(SIGNATURE of Property Owner or Agent of Owner)

(e) Removal by Fresno Police Department. Upon receipt of the complaint, Fresno Police Department will verify that the person submitting the complaint is the Property Owner or the authorized agent of the Property Owner and appears otherwise entitled to relief under this chapter. If verified, Fresno Police Department will contact the unauthorized Guest to vacate the property.

(f) Violation. California Penal Code 602(o) and 602(s) makes it a misdemeanor criminal trespass for a Guest to refuse to leave a Property Owner's real property when the Guest fails to fully depart at the time agreed.

(g) Enforcement. Unauthorized Guest may be subject to arrest.

(h) Criminal Penalties. The violation of any provision of this Charter shall be deemed a misdemeanor and be punishable upon conviction by a fine of not exceeding one thousand dollars ($1,000) or by imprisonment for a term of not exceeding one year, or by both such fine and imprisonment.
(Added Ord. 2024-027, § 1, eff. 10-5-24).

ARTICLE 25 TRESPASSING ON BUSINESS PROPERTY

Sec. 10-2501. Remaining on Business Property After a Request to Leave.
Sec. 10-2502. Exceptions.
Sec. 10-2503. Penalty.

SEC. 10-2501. REMAINING ON BUSINESS PROPERTY AFTER A REQUEST TO LEAVE.

(a) No person shall willfully remain upon any business premises, whether indoors or outdoors, after being notified by the owner, lessee, or other person in charge thereof to leave.

(b) No person, without permission, express or implied, of the owner, lessee, or other person in charge of business premises, shall enter upon such premises after having been notified by the owner, lessee, or other person in charge thereof to keep off or to keep away from the business premises.

(c) The notification referred to in subsection (a) and (b) of this section may be given orally or in the form of a written notice, posted in any conspicuous place, in either case, the notice shall identify the prohibited area and the time period, if limited, during which such prohibited remains in effect.
(Added Ord. 2024-028, § 1, eff. 10-13-24).

SEC. 10-2502. EXCEPTIONS.

This article shall not apply to any of the following instances:

(a) When its application results in, or is coupled with, any act prohibited by the Unruh Civil Rights Act, or any other provision of law relating to prohibited discrimination against any person.

(b) When its application results in, or is coupled with, an act prohibited by section 365 of the California Penal Code, or any other provision of law relating to the duties of innkeepers.

(c) When public officers or employees are acting within the course and scope of their employment or in the performance of their official duties.

(d) When the application would result in an interference with or an inhibition of any exercise of a constitutionally protected right of freedom of speech or assembly.
(Added Ord. 2024-028, § 1, eff. 10-13-24).

SEC. 10-2503. PENALTY.

A violation of this article is a misdemeanor, and upon conviction punishable by a fine of not exceeding one thousand dollars ($1,000.00) or by imprisonment for a term of not exceeding one year, or by both such fine and imprisonment.
(Added Ord. 2024-028, § 1, eff. 10-13-24).

ARTICLE 26 SIDEWALK VENDING

Sec. 10-2601. Title.
Sec. 10-2602. Purpose.
Sec. 10-2603. Definitions.
Sec. 10-2604. Regulations.
Sec. 10-2605. Inspection and Enforcement.
Sec. 10-2606. Violations.

SEC. 10-2601. TITLE.

This article shall be known as the "Sidewalk Vending Ordinance."
(Added Ord. 2024-042, § 1, eff. 1-1-25).

SEC. 10-2602. PURPOSE.

The purpose of this Ordinance is to establish sidewalk vending procedures in the City consistent with Government Code sections 51036 through 51039 while also protecting the health, safety, and welfare of the public. The reasonable time, place, and manner regulations set forth in this Ordinance are necessary to protect the public health, safety and welfare by, among other things, ensuring unobstructed pedestrian travel on City sidewalks and minimizing potential conflicts between motor vehicles and pedestrians and vendors in the public right-of-way. Furthermore, procedures are necessary to prevent unsanitary conditions, and to ensure trash and debris in the areas vending is taking place are removed by vendors.
(Added Ord. 2024-042, § 1, eff. 1-1-25).

SEC. 10-2603. DEFINITIONS.

For purposes of this article, the following words and phrases shall have the following meanings:

(a) "Certified Farmer's Market" means a location operated in accordance with Chapter 10.5 (commencing with Section 47000) of Division 17 of the Food and Agricultural Code and any regulations adopted pursuant to that chapter.

(b) "Food" means any type of edible substance or beverage intended primarily for consumption by human beings.

(c) "Immediate vicinity" means within two hundred (200) feet.

(d) "Median" means roadway medians and parkway islands.

(e) "Merchandise" means items of tangible personal property or other things of value, including small and easily carried or worn items that are not food or drinks, including but not limited to, souvenirs, toys, articles of clothing, flowers, cellular telephones, etc.

(f) "Private Property" means any property owned by a private property owner or by a non-City of Fresno entity.

(g) "Public right-of-way" means the area dedicated to public use for street or pedestrian purposes, including privately owned and maintained roads within the city that are generally held open to the public for purposes of vehicular and pedestrian traffic and includes alleys, driveways, highways, medians, parkways, planter strips, roads, sidewalks, and streets.

(h) "Roaming sidewalk vendor" means a sidewalk vendor who moves from place to place with stops to complete a transaction.

(i) "Sidewalk" means that portion of the public right-of-way provided for the primary use of pedestrians along or adjacent to the street, including a public pathway provided for the primary use of pedestrians.

(j) "Sidewalk vendor" means a person who sells or offers to give away food, drinks, merchandise, other items of tangible personal property, or other things of value, from a pushcart, stand, display, pedal-driven cart, wagon, showcase, rack, or other nonmotorized conveyance, or from one's person, upon a sidewalk, other pedestrian path, or upon private property accessible to the public. "Sidewalk vendor" includes "roaming sidewalk vendor" and "stationary sidewalk vendor."

(k) "Stationary sidewalk vendor" means a sidewalk vendor who vends from a fixed location.

(l) "Stationary sidewalk vendor preparing food" means a stationary sidewalk vendor who prepares the food on site with a heated cooking surface, such as a barbeque or flat top grill, and uses some type of fuel, such as propane or charcoal."

(m) "Temporary special permit" means a permit issued by the City for the temporary use of, or encroachment on, the sidewalk or other public area, including, but not limited to, an encroachment permit, special event permit, or temporary event permit, for purposes including, but not limited to, filming, parades, athletic events, public assemblies, carnivals, festivals, and outdoor concerts.

(n) "Vend, vends, vended or vending" means to sell, offer for sale, expose or display for sale, solicit offers to purchase, give away, offer to give away, or to barter food or merchandise, or services, or to require someone to negotiate, establish, or pay a fee before providing food or merchandise, even if characterized as a donation.

(Added Ord. 2024-042, § 1, eff. 1-1-25; Am. Ord. 2025-046, § 1, eff. 1-10-26).

SEC. 10-2604. REGULATIONS.

(a) No sidewalk vendor shall sell food or drinks in the City without first obtaining all the following:

1. A Business License pursuant to Chapter 7, Article 10 of the Fresno Municipal Code.

2. A Permit to Operate from the County of Fresno Department of Environment Health.

3. Such other permits as may be required by State or local law.

4. This subsection shall not apply to vendors operating from a compact mobile food operation with 25 square feet or less of display area from which only prepackaged non-potentially hazardous food and whole uncooked produce are sold, pursuant to Health and Safety Code section 114368.1(a). Those vendors must comply with subsection 2.3(3).

(b) No sidewalk vendor shall sell merchandise in the City without first obtaining all of the following:

1. A Business License pursuant to Chapter 7, Article 10 of the Fresno Municipal Code.

2. Such other permits as may be required by State or local law.

(c) At all times, a sidewalk vendor shall be in possession of a valid government issued identification, business license, and Health Department permit, if applicable. The City-issued business license or other emblem or sticker issued by the City shall be prominently displayed in a publicly visible location at all times while vending. Acceptable government issued identification includes any identification issued by any state or foreign government, including a matricula. If a stationary sidewalk vendor is vending on Private Property, the stationary sidewalk vendor shall also carry an authorization to vend from the Private Property owner.

(d) A sidewalk vendor shall maintain a clean and trash-free 10-foot radius around his or her pushcart, stand, display, pedal-driven cart, wagon, showcase, rack, or other nonmotorized conveyance at all times when it is located on public property. A sidewalk vendor shall immediately clean up any food, grease, or other fluid or item related to sidewalk vending activities which fall onto the sidewalk or other public property. When departing a location used for vending, the sidewalk vendor shall remove all trash and debris from the location. No trash or refuse generated by sidewalk vending activities shall be disposed of in public or private trash receptacles; sidewalk vendors must take the trash generated by their activities with them and dispose of it appropriately.

(e) Within the City, for public safety reasons, including pedestrian, vehicular, public and vendor safety, a sidewalk vendor shall not operate within the number of feet designated below from the nearest portion of the corresponding location:

1. Within 200 feet from any freeway on-ramp or off-ramp, except if the vending occurs on private property with owner's permission.

2. Within 10 feet of another sidewalk vendor, except with the written consent of each vendor to partner with one another.

3. For stationary sidewalk vendors, within 100 feet of a residence with the following exceptions:

    i. This provision shall not apply to Microenterprise Home Kitchen Operations (MEHKOs) that are fully licensed and approved by the County of Fresno Department of Public Health.

ii. This provision shall not apply to vendors selling only fresh produce or non-prepared hot food items such as fruit cups, corn, or snow cones, or prepared items such as bread or tamales.

4. For stationary sidewalk vendors, within 50 feet of the entrance or exit from any place of business that has an operational kitchen. If a business closes its kitchen, this restriction shall not apply. This restriction shall only apply to businesses located on the same side of the street the sidewalk vendor is operating on. If a business consents to the vendor's presence, this restriction shall not apply.

5. For stationary sidewalk vendors preparing food, within three feet of a building.

6. For stationary sidewalk vendors preparing food, underneath an awning attached to a building.

(f) Within the City, for public safety reasons, including pedestrian, public, and vendor safety, a sidewalk vendor shall not operate in such a manner that the vendor, the vendor's cart, the vendor's display, the vendor's goods, or any combination thereof:

1. Impedes public use of the sidewalk or right-of-way as required by the Americans with Disabilities Act; or

2. Impedes access to or the use of abutting property, including, but not limited to, residences and places of business; or

3. Impedes emergency access for the Police, Fire Department, or medical personnel to any abutting property; or

4. Is located within 18 inches from the edge of the curb face.

(g) In the event of a traffic accident, medical emergency, gas leak, natural disaster, fire, on-site construction or related work on a capital improvement project, or an emergency situation, the City may temporarily require sidewalk vendors to relocate to another location if doing so is necessary to protect the public's health and safety.

(h) The sale of alcohol, marijuana, adult-oriented material, tobacco products, electronic cigarettes or products that contain nicotine, or any product used to smoke/vape nicotine or marijuana, is prohibited.

(i) Vendors shall be present at all times while any food, drink or merchandise is on display on a sidewalk. Unsupervised vending is prohibited.

(j) Vendors shall comply with all applicable noise ordinances, including but not limited to, Chapter 10, Article 1, of the Fresno Municipal Code.

(k) Vendors shall comply with all applicable odor ordinances, including but not limited to Fresno Municipal Code section 15-2510.

(l) Vendors shall comply with Resolution 2024-024 for vending in parks in the City.

(m) Vendors are prohibited from placing canopies, chairs, or tables for customers in public right-of-way or in a roadway, except for the purpose of their own shade, not for the use of their customers. This provision shall not apply to Microenterprise Home Kitchen Operations (MEHKOs) that are fully licensed and approved by the County of Fresno Department of Public Health and the City of Fresno.

(n) In the Tower District defined as south of McKinley Avenue, west of Blackstone Avenue, north of Belmont Avenue, and east of Palm Avenue, there shall be no vending Thursday through Sunday, 12:30 a.m. to 8:00 a.m. Additionally, vendors shall serve their last patron by 12:00 a.m. and leave the area by 12:30 a.m.

(o) During a certified Farmer's Market, sidewalk vendors not associated with the Farmer's Market shall not operate within 200 feet of the certified Farmer's Market.

(p) During an event that has been issued a Temporary Special Permit, sidewalk vendors not associated with the Temporary Special Permit shall not operate within 200 feet of the event.

(q) When allowing vending on a private property, the property owner shall be responsible for ensuring vendors are complying with the regulations contained within this Resolution. The property owners are ultimately responsible for public nuisance violations on the property pursuant to the Fresno Municipal Code.
(Added Ord. 2024-042, § 1, eff. 1-1-25).

SEC. 10-2605. INSPECTION AND ENFORCEMENT.

Representatives of the Fire Department and Code Enforcement shall be permitted, at any time a sidewalk vendor is operating in the City, to inspect a sidewalk vendor's operation, its required permits, and its vended food and goods for compliance with local or state laws and regulations. If necessary, Code Enforcement may request assistance from other City departments.
(Added Ord. 2024-042, § 1, eff. 1-1-25).

SEC. 10-2606. VIOLATIONS.

(a) From effective date through June 30, 2025, no monetary citations shall be issued, except in the Tower District, defined as south of McKinley Avenue, west of Blackstone Avenue, north of Belmont Avenue, and east of Palm Avenue. Vendors in the Tower District shall be subject to monetary citations upon the effective date. Except in the Tower District, all violations will receive education and written warnings. After July 1, 2025, the citations below will be in full force and effect throughout the rest of the City.

(b) In accordance with State Law, Stationary Sidewalk Vendors Preparing Food found in violation of this Article shall be subject to the following, and except as provided in subsection (f) of this section, these provisions shall be the exclusive penalties applicable to violations of this Ordinance:

1. Violations:

   (a) A written warning for a first violation.

(b) An administrative fine not exceeding one-hundred dollars ($100) for a second violation within one year of the first violation.

(c) An administrative fine not exceeding two-hundred ($200) for a third violation within one year of the first violation.

(d) An administrative fine not exceeding five-hundred dollars ($500) for each additional violation within one year of the first violation.

(c) In accordance with State Law, a person found in violation of this Article, except Stationary Sidewalk Vendors Preparing Food, as discussed in subsection b above shall be subject to the following, and except as provided in subsection (f) of this section, these provisions shall be the exclusive penalties applicable to violations of this Ordinance:

1. Violations:

   (a) A written warning for a first violation.

   (b) An administrative fine not exceeding twenty-five dollars ($25) for a second violation within one year of the first violation.

   (c) An administrative fine not exceeding fifty dollars ($50) for a third violation within one year of the first violation.

   (d) An administrative fine not exceeding one hundred dollars ($100) for each additional violation within one year of the first violation.

2. For egregious repeat offenders with more than three administrative fines are subject to the maximum allowable fine under state law.

(d) A sidewalk vendor may appeal an administrative fine pursuant to Chapter 1, Article 4, of the Fresno Municipal Code.

(e) A sidewalk vendor who has been issued an administrative fine pursuant to this Resolution may request a determination of his or her ability to pay the administrative fine pursuant to the provisions of Government Code section 51039(f). If the sidewalk vendor shows proof to the satisfaction of the hearing officer (if the request is made at the time of an administrative appeal hearing), or the City Manager or his or her designee (if the request is made at any other time), that he or she meets the criteria set forth in Government Code section 68632, subsections (a) or (b), the fine amount shall be reduced to 20 percent of the original fine amount.

(f) Violations of the Fresno Municipal Code not specifically subject to the limitations set forth in Section 51039 of the Government Code shall be subject to enforcement pursuant to the Fresno Municipal Code, as the same may be amended from time to time, in addition to any other applicable penalties or remedies prescribed by law at the time of the violation.
(Added Ord. 2024-042, § 1, eff. 1-1-25; Am. Ord. 2025-008, § 1, eff. 5-2-25; Am. Ord. 2025-046, § 1, eff. 1-10-26).

ARTICLE 27 PROHIBITION OF GOVERNMENT-SPONSORED TRANSPORT OF HOMELESS PERSONS

Sec. 10-2701. Purpose and Intent.
Sec. 10-2702. Prohibition of Government-Sponsored Unsanctioned Transport of Homeless Persons.
Sec. 10-2703. Penalty.

SEC. 10-2701. PURPOSE AND INTENT.

The purpose of this Article is to help preserve the City's limited homelessness-related resources for the benefit of individuals residing in the City of Fresno, and to encourage the appropriate government agencies to provide shelter, care and outreach and other homelessness-related resources to the person experiencing homelessness within their jurisdictions, rather than transporting individuals to the City of Fresno.
(Added Ord. 2025-003, § 1, eff. 3-21-25).

SEC. 10-2702. PROHIBITION OF GOVERNMENT-SPONSORED UNSANCTIONED TRANSPORT OF HOMELESS PERSONS.

(a) No law enforcement officer, agent or employee of a county, city, or any other governmental entity, when acting in their official capacity or using government property, shall transport and drop-off an individual on public property, or private property that is accessible to the public, within the City of Fresno, when the person being transported and dropped-off lacks a fixed, regular or adequate residence.

(b) A person "lacks a fixed, regular or adequate residence" [in accordance with] the meaning of subdivision (a) above when that person:

(1) Has a primary residence that is a public or private place not meant for habitation; or

(2) Lives in a publicly or privately operated shelter designated to provide temporary living arrangements (including congregate shelters, transitional housing, hotels, and motels paid for by charitable organizations or by federal, state or local government programs); or

(3) Is exiting an institution where they have resided for 90 days or less and who resided in an emergency shelter or place not meant for human habitation immediately before entering that institution.

(c) The prohibition contained in subdivision (a) above shall not be interpreted to prohibit the following authorized activities:

(1) Transporting a person to be booked into a County Jail or admitted to a County-designated custody alternative facility; or

(2) Transporting a person to be treated at a hospital or other medical facility; or

(3) Transporting a person to reside at a shelter, temporary housing, or permanent housing, when the officer, agent or employee has independently verified that the individual being transported has already been accepted to reside at the facility; or

(4) Transporting a person to attend a verified appointment with a governmental or non-profit social service provider; or

(5) Transporting a person to attend a verified hearing at a federal or state court; or

(6) Any transportation or drop-off activities undertaken by the City of Fresno within the City of Fresno; or

(7) The operations of a governmental provider of public transportation, such as the Fresno Transit System.

(Added Ord. 2025-003, § 1, eff. 3-21-25).

SEC. 10-2703. PENALTY.

A violation of Section 10-2702 (a) is a misdemeanor and upon conviction punishable by a fine of not exceeding one thousand dollars ($1,000) or by imprisonment for a term not exceeding six months, or by both fine and imprisonment.

(Added Ord. 2025-003, § 1, eff. 3-21-25).

ARTICLE 28 MANUFACTURING, SALE, DISTRIBUTION, AND POSSESSION OF FEDERAL SCHEDULE I DRUGS, NOVEL SYNTHETIC DRUGS, AND NOVEL PSYCHOACTIVE DRUGS

Sec. 10-2801. Title.
Sec. 10-2802. Purpose.
Sec. 10-2803. Definitions.
Sec. 10-2804. Prohibition on the Manufacturing, Sale, Distribution or Possession of Synthetic Drugs.
Sec. 10-2805. Public Nuisance.
Sec. 10-2806. Property Owner and Responsible Person Liability.
Sec. 10-2807. Seizure of Evidence.
Sec. 10-2808. Suspension/Revocation of Business License.
Sec. 10-2809. Exceptions to Prohibition.
Sec. 10-2810. Violations and Penalties.

SEC. 10-2801. TITLE.

This article shall be known as the "Controlled Substances Prohibition Ordinance."
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2802. PURPOSE.

The purpose of this article is to protect the public health and safety by regulating access to Federal Schedule I Drugs, Novel Synthetic Drugs and Novel Psychoactive Drugs commonly known as synthetic drugs, thereby reducing potential risks to public health and safety.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2803. DEFINITIONS.

For the purpose of this article, the following definitions apply unless the context indicates or requires a different meaning.

(a) "Distribute, distributing or distribution" means to furnish, give away, exchange, transfer, deliver or supply, whether or not for monetary gain.

(b) "Federal Schedule I Drug(s)" means any drug scheduled in Schedule I, as listed in 21 C.F.R. section 1308.11, as may be amended from time to time, and any chemical variant or analog of these drugs, that is not regulated or prohibited by state law.

(c) "Manufacture and manufacturing" means the production, preparation, propagation, compounding, or processing of a drug or other substance, either directly or indirectly or by extraction from substances of natural origin, or independently by means of chemical synthesis or by a combination of extraction and chemical synthesis, and includes any packaging or repackaging of such substance or labeling or relabeling of its container; except that such term does not include the preparation, compounding, packaging, or labeling of a drug or other substance in conformity with applicable

State or local law by a practitioner as an incident to his administration or dispensing of such drug or substance in the course of his professional practice. The term "manufacturer" means a person who manufactures a drug or other substance.

(d) "Novel Psychoactive Drugs" means any compound, mixture, preparation or substance, or its chemical variant or analog (including salts, isomers, esters, ethers, and salts of isomer), containing substances which have a psychedelic, psychotropic, hallucinogenic or other effect on the central nervous system or brain similar to the effect of any Federal Schedule I Drug or Federal Schedule II Drug, as listed in 21 C.F.R. sections 1308.11-1308.12, not otherwise regulated or prohibited by state law. For example, Mitragynine, 7-Hydroxymitragynine (7-OH) or other Alkaloids (such as speciociliatine, paynantheine, corynantheidine, and others); excluding kratom productions containing more than 1% of 7-OH in the alkaloid fraction.

(e) "Novel Synthetic Drugs" means any synthetically created substance intended to replicate or mimic the pharmacological effects of a Schedule I or II controlled substance but not yet scheduled under federal or state law.

(f) "Person" means any natural person, proprietor, business, firm, company, corporation, public corporation, club, trust, partnership, association or similar organization.

(g) "Possess, possessing or possession" means to have physical custody or control of a substance, whether actual or constructive.

(h) "Provide, providing, or provision" means to distribute, give away, or sell a synthetic drug to any person.

(i) "Sell, selling or sale" means to furnish, exchange, transfer, deliver, or supply for monetary gain.

(j) "Synthetic drug" means any synthetic cathinone, synthetic cannibanoid, novel psychoactive substance, and any other substance containing intoxicating, psychoactive or psychotropic compounds or chemicals, whether in crystalline, powder, granular, organic or liquid form, and which causes psychoactive or psychotropic stimulant or euphoric effects on the central nervous system and brain. The term "synthetic drug" shall not include any product, substance, material, compound, mixture, or preparation that is specifically excepted by the California UCSA (Health and Safety Code §§ 11000 et seq.), listed in one of the California UCSA's schedules of controlled substances (Health and Safety Code §§ 11053-11058), regulated by one of the California UCSA's synthetic drug laws (Health and Safety Code §§ 11357.5, 11375.5 and 11401), regulated by the CSA (21 USC §§ 81 et seq.) or approved by the FDA.

(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2804. PROHIBITION ON THE MANUFACTURING, SALE, DISTRIBUTION OR POSSESSION OF SYNTHETIC DRUGS.

(a) Except as otherwise authorized by law, it is unlawful to sell, offer, provide, or distribute any Federal Schedule I Drug, Novel Synthetic Drug or Novel Psychoactive Drug to a person under 21 years of age.

(b) It is unlawful to manufacture, sell, offer to sell, offer for sale, distribute, or possess for sale any Federal Schedule I Drug, Novel Synthetic Drug or Novel Psychoactive Drug.

(c) It is unlawful to possess any Federal Schedule I Drug, Novel Synthetic Drug or Novel Psychoactive Drug. This article does not apply to kratom productions containing more than 1% of 7-OH in the alkaloid fraction that are sold to a person over 21 years of age or to the use of kava and kava-containing foods/dietary supplements.

(d) Evidence that a given product is a synthetic drug may be found from its intended use, which can be determined from its price, packaging, marketing, and the location and manner in which a given synthetic drug is displayed or delivered for use as a synthetic drug must be evaluated on its specific facts, the City finds that, to determine if a Person is selling, offering to sell, distributing, displaying, or delivering a synthetic drug, the enforcing officer shall consider the following evidentiary factors:

(1) Marketing: The product is not suitable for its marketed use (such as a crystalline or powder product being marked as "glass cleaner");

(2) Sales Location: The business providing, displaying for sale, distributing or selling the product does not typically provide, distribute, or sell products that are used for that product's marked use (such as a liquor store selling "plant food" or "potpourri");

(3) Warning Labels: The product contains a warning label that is not typically presented on products that are used for that product's marked use (such as "not for human consumption" or "does not contain chemicals banned by the Federal Controlled Substances Act, Cal. Health & Safety Code sections 11357.5 or 11375.5");

(4) Price: The product is significantly more expensive than products that are used for the product's marketed use (such as half of a gram marketed "glass cleaner" costing fifty dollars ($50));

(5) Similarity to Illicit Street Drugs: The product resembles an illicit street drug (such as cocaine, methamphetamine or marijuana);

(6) Brand Names Targeting Youth: The product's name or packaging uses images or slang targeted at you or referencing an illicit street drugs (such as Eight Ballz, Green Buddha, Black Mamba, Fruit Punch, Joker, K-2, Next Generation, OMG, Puff, Purple Diesel, Scooby Snax Potpourri, Spice, Strawberry Smacked or Tropical Punch Smacked);

(7) Effect: Aspects of the packaging or labeling suggesting the user will achieve a "high" euphoria, relation, mood enhancement, or that the product has other psychoactive or psychotropic effects on the brain or body;

(8) Distribution: The methods by which the substance is distributed, including any methods similar to unlawful distribution of illicit street drugs;

(9) Display: The product is not displayed in a business such as lawful products are displayed but is hidden away or can only be purchased through secretive means;

(10) Age Restrictions: The product label contains a restriction that it is not for sale to minors or anyone under the age of twenty-one (21) when the product's marked use would not contain such restrictions;

(11) Verbal or Written Communication: Verbal or written representations regarding the purpose, methods, use or effect of the product.

(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2805. PUBLIC NUISANCE.

The manufacturing, sale, offering to sell, distribution, or possession for sale of a Federal Schedule I Drug, a Novel Synthetic Drug, or a Novel Psychoactive Drug is a public nuisance.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2806. PROPERTY OWNER AND RESPONSIBLE PERSON LIABILITY.

It is unlawful for a property owner or other responsible person, after receiving written notice by the City of a violation of this article, to fail to abate the Public Nuisance within thirty (30) calendar days from the date of the notice.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2807. SEIZURE OF EVIDENCE.

(a) Any Schedule I Controlled Substance, Novel Synthetic Drug, Novel Psychoactive Substance, or related devices contrivances, instruments, or paraphernalia, possessed, provided, distributed, sold or found in violation of any provision of this article shall be subject to seizure by any peace officer or authorized enforcing official.

(b) Any person convicted of any section of this article shall be deemed to have maintained or conducted a drug-related nuisance. The building, premises, furnishing, fixtures, equipment, money and any other real or personal property used in or to facilitate the offense(s) that constituted the drug-related nuisance are subject to seizure, closure, and/or sale pursuant to Health and Safety Code sections 11570, 11581-11582.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2808. SUSPENSION/REVOCATION OF BUSINESS LICENSE.

(a) No person holding a City of Fresno business license and owning or operating a business in the city may use that business to display, provide, distribute, possess, or sell any synthetic drug, any substance claimed or represented to be a synthetic drug, or any mislabeled/misbranded product.

(b) Any business that continues to operate in violation of this article shall not operate during the pendency of any business license suspension or revocation process and/or appeal pursuant to Chapter 1, Article 4 of the Fresno Municipal Code.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2809. EXCEPTIONS TO PROHIBITION.

(a) This article shall not apply to drugs or substances lawfully prescribed or to intoxicating chemical compounds that have been approved by the federal Food and Drug Administration, or which are specifically permitted by California law, including without limitation intoxicating chemical compounds that are specifically excepted by the California UCSA (Health and Safety Code section 1100) or the CSA (21 USC section 801).

(b) This article shall not apply to drugs or substances that are prohibited by state or federal law, including without limitation, California Health and Safe Code sections 11357.5, 11375.5, 11401 and the Federal Controlled Substance Act.

(c) This article shall not apply to food products, drugs, dietary supplements, cosmetics or other substances regulated by the Food and Drug Administration and that are in compliance with the agency's requirements.

(d) This article shall not be deemed to prescribe any act that is positively permitted, prohibited or preempted by any state or federal law or regulation.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

SEC. 10-2810. VIOLATIONS AND PENALTIES.

Any Person who violates this article is guilty of a misdemeanor offense and upon conviction, may be fined up to $1,000 and sentenced up to six (6) months in the county jail. Additionally, any person who violates this article is subject to administrative citation in accordance with Chapter 1, Article 3 of the Fresno Municipal Code. All other violations shall be enforceable only as infractions pursuant to sections 1-308, et seq. Appeal of an administrative citation may be made pursuant to sections 1-308, et seq. This section shall not serve to limit any other legal remedies or actions that the City may have to address violations of this article.
(Added Ord. 2025-054, § 1, eff. 1-10-26)

CHAPTER 11

BUILDING PERMITS AND REGULATIONS

Art. 1. California Building, Residential, Electrical, Mechanical, Plumbing, and Energy Code.
Art. 2. Building Moving and Demolition.
Art. 3. Housing Regulations.
Art. 4. Dangerous Building Regulations.
Art. 5. Appeals.
Art. 6. Fresno Flood Plain Ordinance
Art. 7. Alternative Building Standards for Joint Living and Work Quarters

ARTICLE 1 CALIFORNIA BUILDING, RESIDENTIAL, ELECTRICAL, MECHANICAL, PLUMBING, AND ENERGY CODE*

Sec. 11-101. California Building Code.
Sec. 11-102. Amendments to the California Building Code.
Sec. 11-103. California Residential Code.
Sec. 11-104. California Electrical Code.
Sec. 11-105. California Mechanical Code.
Sec. 11-106. Amendments to the California Mechanical Code.
Sec. 11-107. California Plumbing Code.
Sec. 11-107A. Amendments to California Plumbing Code.
Sec. 11-108. California Energy Code.
Sec. 11-109. California Green Building Standards.
Sec. 11-110. Universal Design Standard.
Sec. 11-111. Small Residential Rooftop Solar Energy System Review Process.
Sec. 11-112. Model Water Efficient Landscape Ordinance.
Sec. 11-113. Electric Vehicle Charging Stations Review Process.

SEC. 11-101. CALIFORNIA BUILDING CODE.

The California Building Code, 2025 Edition, which may be referred to in this Code as the CBC, as promulgated by the California Building Standards Commission, which incorporates the adoption of the 2024 edition of the of the International Building Code as amended with necessary California amendments and the 2024 International Building Code of the International Code Council, with the exception of Appendix B, are adopted and incorporated by reference into the Municipal Code and shall be referred to, along with the City's amendments to the CBC provided in section 11-102, as the Fresno Building Code. One copy of the CBC is on file and available for use by the public in [the] Planning and Development Department, Building and Safety Services Division.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-102. AMENDMENTS TO THE CALIFORNIA BUILDING CODE.

Pursuant to Health and Safety Code sections 17958.7 and 18941.5, and section 1.1.8 of the CBC, the following provisions shall constitute local agency amendments to the CBC. The

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***Editor's note—**Ord. 2010-49, §§ 2 and 3, effective January 16, 2011, amended the Code by repealing former Art. 1, §§ 11-101—11-109, and adding a new Art. 1. Former Art. 1 pertained to building, mechanical, plumbing, electrical and energy regulations, and derived from Ord. 2007-92, effective January 17, 2008; and Ord. 2008-53, adopted October 9, 2008. Subsequently, Ord. 2025-040, §§ 3, 4, adopted September 25, 2025, and effective October 31, 2025, repealed the former Art. 1, §§ 11-101—11-109, and enacted a new Art. 1, §§ 11-101—11-109 as set out herein. Art. 1, §§ 11-110—11-113 were unaffected by Ord. 2025-040. The former Art. 1, §§ 11-101—11-109 pertained to similar subject matter and derived from Added Ord. 2010-49, § 3, adopted January 16, 2011; Am. Ord. 2014-1, § 3, adopted February 24, 2014; Added Ord. 2016-25, § 2, adopted September 26, 2016; Am. Ord. 2016-44, § 4, adopted December 29, 2016; Am. Ord. 2018-58, § 3, adopted December 16, 2018; Am. Ord. 2019-042, §§ 3, 4, adopted December 21, 2019; Am. Ord. 2020-018, § 3, adopted July 16, 2020; Am. Ord. 2022-034, §§ 3, 4, effective December 10, 2022.

following provisions shall be inserted into the CBC based upon the chapter headings, appendices (if applicable) and section numbers indicated. If the section number is the same number as a number used in the CBC, the provision provided below is intended to replace the same numbered provision in the CBC.

CBC Chapter 1

103.1 Creation of the Enforcement Agency. Planning and Development Department of the City of Fresno is hereby established in the City of Fresno as the appropriate code enforcement agency that shall be under the administrative and operational control of the Department Director.

104.1 General. The Director of Planning and Development Department or designee shall act on behalf of the City of Fresno as "Building Official." The Building Official is hereby authorized and directed to enforce all provisions of this code. The Building Official shall have the power to render interpretations of this code and to adopt and enforce rules and supplemental regulations in order to clarify the application of the code provisions.

109.2 Schedule of Fees. All fees assessed in accordance with the provisions of the Fresno Building Code shall be set forth in the City of Fresno Master Fee Resolution.

109.5 Related Fees. Where plans are of such complexity, incomplete, or are changed so as to require plan review time beyond what was contemplated by the fees set forth herein, an additional fee shall be charged in accordance with the special services request provision under the Master Fee Resolution with the following exception:

a) For commercial plans with multiple buildings of identical building footprints and floor plans, the plan review fee shall be as determined by the Building Official. The fee shall be based upon circumstances pertaining to the specific application and shall be designed to recover reasonable costs of the Planning and Development Department.

110.3.8 Other Inspections. The Building Official may, at their discretion, require inspections of differing trades to be combined in proper chronological order consistent with construction practices to facilitate the use of combination inspection assignments.

112.1 Connection of Service Utilities. Utility connections shall not be permitted until compliance with the provisions of the Fresno Municipal Code as set herein. Electrical Meter: Electrical meters shall be required to be in place and operational prior to final electrical inspection to facilitate testing and acceptance of the entire system. Installation of devices, fixtures, and wiring shall be completed and in working order for testing purposes.

112.2.1 Construction Utilities. The Building Official may permit use of utilities for the purpose of construction provided no potential hazards to life or property are created and compliance with Article 590, CEC (Electrical) or section 1208.0 CPC (Gas) is satisfied.

112.2 Temporary Power. The Building Official may permit use of utilities for temporary occupancy of a building or structure when circumstances exist to justify the issuance of a Temporary Certificate under Chapter 1 section 111.3 of the CBC, and the owner enters into

a security agreement with the City of Fresno, in a form approved by the Building Official, to ensure completion of the required improvements. In addition, a deposit to secure such performance shall be made with the City of Fresno in an amount determined by the Building Official. The Building Official may, in its sole discretion, waive the requirement of a deposit.

Section 113 Board of Appeals Note. Note: For additional requirements refer to Article 5 - APPEALS.

113.1. General. In order to hear and decide appeals of orders, decisions or determinations by the Building Official relative to the application and interpretation of the Fresno Building Code, there shall be and is hereby created a board of appeals (hereafter referred to as the "Building Standards Appeals Board") consisting of members who are qualified by experience and training to pass on matters pertaining to building construction and who are not employees of the City of Fresno. The Building Standards Appeals Board shall perform the following appeal duties:

a) Determine the suitability of alternate materials, engineering designs, methods of construction and equipment.

b) Provide reasonable interpretations of the provisions of the Fresno Building Code and other relevant codes.

c) Hear and decide appeals from the orders of the Building Officials directing the vacation, repair, rehabilitation or demolition of dangerous buildings under the provisions of Chapter 11, Article 3 of the Fresno Municipal Code as applicable to compliance with the provisions set forth in the Fresno Building Code and other relevant codes.

d) Hear and decide appeals pursuant to the provisions of section 10-50111 of the Fresno Municipal Code.

e) Hear and decide appeals from orders of the Building Official directing the vacation, repair, rehabilitation or demolition of substandard buildings under the provisions of Chapter 11, Article 4 of the Fresno Municipal Code as applicable to compliance to the provisions set forth in the Fresno Building Code and other relevant codes.

The Building Official shall serve as an ex officio member of and shall act as secretary to said Board but shall have no vote on any matter before the Board. The Building Standards Appeals Board members shall be appointed by the Mayor and shall hold office at the pleasure of the Mayor.

The Building Standards Appeals Board shall adopt rules of procedure for conducting its business, and shall render all decisions and findings in writing to the appellant with a duplicate copy to the Building Official.

113.2.1 Limitations of Authority. The Building Standards Appeals Board shall have no authority relative to interpretation of the administrative provisions of this code nor shall the board be empowered to waive requirements of this code.

114.4.1 Violations. The person, firm, or corporation violating any of the provisions of this code shall be deemed guilty of a misdemeanor.

CBC Chapter 9 Fire Protection Systems Note.

Note: For additional requirements refer to Fresno Fire Code as established by the City of Fresno Fire Department.

CBC Chapter 10

Section 1024 Luminous Egress Path Markings Note.

Note: For additional requirements refer to section 10-51025.6 of the Fresno Fire Code as established by the City of Fresno Fire Department.

CBC Chapter 12

[1208.4] Efficiency dwelling units shall comply with the following:

1. The unit shall have a living room of not less than 150 square feet (13.9m^2) of floor area. An additional 100 square feet (9.3m^2) of floor area shall be provided for each occupant of such unit in excess of two.
2. The unit shall be provided with a separate closet.
3. The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a clear working space of not less than 30 inches (762 mm) in front. Light and ventilation conforming to this code shall be provided.
4. The unit shall be provided with a separate bathroom containing a water closet, lavatory and bathtub or shower.

(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-103. CALIFORNIA RESIDENTIAL CODE.

The California Residential Code, 2025 Edition, which may be referred to in this Code as the CRC, as promulgated by the California Building Standards Commission, which incorporates the adoption of the 2024 edition of the of the International Residential Code as amended with necessary California amendments and the 2024 International Residential Code of the International Code Council, is adopted and incorporated by reference into the Fresno Building Code, except that in addition to Chapter 1 of the CRC, Chapter 1 of the Fresno Building Code shall apply to the administration of the CRC. The CRC, incorporated into the Code, shall be referred to as the Fresno Residential Code. For purposes of administering the Fresno Residential Code, all references in Chapter 1 of the Fresno Building Code to the "building code" or "code" shall mean and include the Fresno Residential Code. Where provisions of Chapter 1 of the Fresno Building Code overlap with provisions of Chapter 1 of the Fresno Residential Code, the Fresno Building Code controls. One copy of the CRC is on file and available for use by the public in Planning and Development Department, Building and Safety Services Division.

(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-104. CALIFORNIA ELECTRICAL CODE.

The California Electrical Code, 2025 Edition, which may be referred to in the Code as the CEC, as promulgated by the California Building Standards Commission, which incorporates the adoption of the 2023 Edition of the National Electrical Code as amended with necessary California amendments and the 2023 National Electrical Code of the National Fire Protection Association, is hereby adopted by the City of Fresno and incorporated by reference into the Fresno Building Code, except that Chapter 1 of the Fresno Building Code in addition to Article 89 of the California Electrical Code shall apply to the administration of the CEC. The CEC, incorporated into the Fresno Building Code, shall be referred to as the Fresno Electrical Code. For purposes of administering the Fresno Electrical Code, all references in Chapter 1 of the Fresno Building Code to the "building code" or "code" shall mean and include the Fresno Electrical Code. Where provisions of Chapter 1 of the Fresno Building Code overlap with provisions of Article 89 of the Fresno Electrical Code, the Fresno Building Code shall control. One copy of the CEC is on file and available for use by the public in the Planning and Development Department, Building and Safety Services Division.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-105. CALIFORNIA MECHANICAL CODE.

The California Mechanical Code, 2025 Edition, which may be referred to in the Code as the CMC, as promulgated by the California Building Standards Commission, which incorporates the adoption of the 2024 edition of the Uniform Mechanical Code as amended with necessary California amendments and the 2024 Uniform Mechanical Code of the International Association of Plumbing and Mechanical Officials, is hereby adopted by the City of Fresno and incorporated by reference into the Fresno Building Code, except that in addition to Chapter 1 of the CMC, Chapter 1 of the Fresno Building Code shall apply to the administration of the CMC. The CMC, incorporated into the Code, along with amendments to the CMC adopted in section 11-106, shall be referred to as the Fresno Mechanical Code. For purposes of administering the Fresno Mechanical Code, all references in Chapter 1 of the Fresno Building Code to the "building code" or "code" shall mean and include the Fresno Mechanical Code. Where provisions of Chapter 1 of the Fresno Building Code overlap with provisions of Chapter 1 of the Fresno Mechanical Code, the Fresno Building Code controls. One copy of the CMC is on file and available for use by the public in Planning and Development Department, Building and Safety Services Division.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-106. AMENDMENTS TO THE CALIFORNIA MECHANICAL CODE.

Pursuant to Health and Safety Code sections 17958.7 and 18941.5 and section 1.1.8 of the CMC, the following provisions shall constitute local agency amendments to the CMC. The following provisions shall be inserted into the CMC based upon the section numbers indicated. If the section number used is the same as a number used in the CMC, the provision provided below is intended to replace the same numbered provision in the CMC.

CMC Chapter 9

936.0 Wood-Burning Appliances

936.1 Definitions. Whenever the following terms are used in section 933, they shall have the following meanings:

a) EPA shall mean the United States Environmental Protection Agency.

b) EPA CERTIFIED WOOD HEATER shall mean any wood heater that meets or exceeds combustion emissions standards set forth in the Code of Federal Regulations, Title 40, Part 60, 26 February 1988.

c) FIREPLACE shall mean any masonry or factory-built device to burn wood, composition fire logs, or other solid fuel, with or without a gas log or log lighter, which may have a firebox in excess of 20 cubic feet, which may weigh in excess of 800 kilograms, and which is not a pellet-fueled wood stove.

d) FIREPLACE INSERT shall mean a type of wood heater which is designed to be installed in the opening of a wood-burning fireplace and is connected to the chimney.

e) NEW CONSTRUCTION shall mean any construction or reconstruction or remodeling of any structure requiring the issuance of a building permit by the City of Fresno.

f) PELLET-FUELED WOOD STOVE shall mean any commercially manufactured enclosed combustion appliance that is designed to operate on automatically fed pelletized wood fuel and has a usable firebox volume of less than 20 cubic feet.

g) MANUFACTURED FIREPLACE shall mean any fireplace that is of unitary commercial manufacture and is not synthesized on-site of masonry construction components.

h) "State Environmental Quality Standards" shall mean the performance and emission standards established by the California Air Resources Board (CARB), the California Environmental Protection Agency (CalEPA), and the California Code of Regulations, including but not limited to Title 17 and Title 22, as applicable.

i) WOOD-BURNING APPLIANCE shall mean any device that is designed or used to burn wood, composition wood pellets, or composition fire logs for aesthetic, space heating, cooking, and/or water heating purposes within a structure: to include fireplaces, pellet-fueled wood stoves, and wood heaters.

j) WOOD HEATER shall mean a commercially-manufactured, enclosed wood-burning appliance that meets all the following criteria:

   1) A usable firebox volume of less than 20 cubic feet; and

   2) A maximum weight less than 800 kilograms, exclusive or chimney and other accessory devices that are not an integral part of the appliance; and

   3) A combustion air-to-fuel consumption ratio which averages less than 35-to-1, as determined by EPA certification test procedures set forth in Code of Federal Regulations, Title 40, Part 60, 26 February 1988; and

4) A minimum burn rate with less than five kilograms per hour fuel consumption, as determined by EPA certification test procedures set forth in Code of Federal Regulations, Title 40, Part 60, 26 February 1988.

936.1.1 All Wood-Burning Appliances Prohibited in New Construction. Notwithstanding any other provision in the Fresno Municipal Code, no wood-burning appliance, as defined herein, shall be installed in any new construction. This section shall not apply to any residential structure or dwelling unit having a lawfully installed wood-burning appliance in place as of the effective date of this ordinance.

936.2 Installation of Wood-Burning Appliances not permitted in Higher Density Residential Developments. Permits shall not be issued for wood-burning appliances to be installed in dwelling units of residential projects that have densities of more than 10.37 dwelling units per gross acre. However, one wood-burning appliance may be constructed or installed in each common-use recreation facility in these developments.

936.3 Wood-Burning Appliances Require Air Pollution Emissions Certification. Permits shall be issued only for replacement of existing wood burning appliances lawfully installed prior to the effective date of this ordinance and be issued only for those wood-burning appliances certified by the U.S. Environmental Protection Agency (EPA) as meeting the EPA Phase I or Phase II emissions standards: or meeting equivalent State of Oregon Department of Environmental Quality Standards. Effective March 1, 1991, all wood-burning appliances to be installed must be EPA-certified as at least meeting Phase II emissions standards. A permit shall only be issued for installation of a wood-burning appliance when adequate EPA-approved documentation is provided to demonstrate that the wood-burning appliance or fireplace stove model being installed has the appropriate emissions certification.

EXCEPTION: Those pellet-fueled wood stoves not affected by EPA's testing program under Code of Federal Regulations Title 40, Part 60, Subpart AAA may be approved if independent, approved, nationally-recognized testing laboratory documentation demonstrates that the stove emits less than 4.1 grams per hour of particulate matter.

936.4. Coal-Burning Appliances Prohibited. No permit shall be issued to install any fireplace or domestic heating or cooking appliance that is designed and intended to use coal as combustion fuel.

936.5. Installation of Wood-Burning Appliances Without Permits. Wood-burning appliances found to be installed on or after November 30, 1990, without required permit(s) shall be cause for an inspection/investigation fee to be charged to the property owner, pursuant to the Master Fee Resolution, and the issuance of a notice to abate (required permits secured, all work completed, and permit final inspection done) within 60 days of owner's receipt of the notice, 75% of the inspection/investigation fee shall be rebated.

If permit(s) were secured to abate the illegal installation prior to discovery of the illegal installation by the City, no notice shall be issued nor inspection/investigation fee incurred provided that the permit(s) are finalized within 90 days of the permit issuance date.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-107. CALIFORNIA PLUMBING CODE.

The California Plumbing Code, 2025 Edition, which may be referred to in the Code as the CPC, as promulgated by the California Building Standards Commission, which incorporates the adoption of the 2024 edition of the Uniform Plumbing Code as amended with necessary California amendments and the 2024 Uniform Plumbing Code of the International Association of Plumbing and Mechanical Officials, is hereby adopted by the City of Fresno and incorporated by reference into the Fresno Building Code, except that in addition to Chapter 1 of the CPC, Chapter 1 of the Fresno Building Code shall apply to the administration of the CPC. The CPC, incorporated into the Code, shall be referred to as the Fresno Plumbing Code. For purposes of administering the Fresno Plumbing Code, all references in Chapter 1 of the Fresno Building Code to the "building code" or "code" shall mean and include the Fresno Plumbing Code. Where provisions of Chapter 1 of the Fresno Building Code overlap with provisions of Chapter 1 of the Fresno Plumbing Code, the Fresno Building Code controls. One copy of the CPC is on file and available for use by the public in Planning and Development Department, Building and Safety Services Division.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-107A. AMENDMENTS TO CALIFORNIA PLUMBING CODE.

Pursuant to Health and Safety Code sections 17958.7 and 18941.5, and section 1.1.8 of the CPC, the following provisions shall constitute local agency amendments to the CPC. The following provisions shall be inserted into the CPC based upon the section numbers indicated. If the section number used is the same as a number used in the CPC, the provision provided below is intended to replace the same numbered provision in the CPC.

CPC Chapter 6

604.0 Materials

604.1 Pipe, Tube, and Fittings. The third paragraph of section 604.1 of the California Plumbing Code is hereby deleted in its entirety and amended to read:

Materials for building water piping and building supply piping shall be in accordance with the applicable standards referenced in Table 604.1. Galvanized malleable iron, galvanized wrought iron or galvanized steel are prohibited materials for use both underground and in buildings.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-108. CALIFORNIA ENERGY CODE.

The California Energy Code, 2025 Edition as promulgated by the California Building Standards Commission is hereby adopted by the City of Fresno and incorporated into the Fresno Building Code and shall be referred to as the Fresno Energy Code. One copy of the California Energy Code is on file and available for use by the public in Planning and Development Department, Building and Safety Services Division.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-109. CALIFORNIA GREEN BUILDING STANDARDS.

The California Green Building Standards Code, 2025 Edition, which may be referred to in the Code as CALGreen, as promulgated by the California Building Standards Commission, is hereby adopted by the City of Fresno and incorporated into the Fresno Building Code and shall be referred to as the Fresno CALGreen Code. One copy of the California Green Building Standards Code is on file and available for use by the public in Planning and Development Department, Building and Safety Services Division.
(Added Ord. 2025-040, § 4, eff. 10-31-25).

SEC. 11-110. UNIVERSAL DESIGN STANDARD.

(a) **Purpose and Intent.** The purpose of this section is to provide affordable, accessible housing by incorporating universal design features in any City or Agency funded Affordable Housing Projects. Universal design recognizes the changing diversity of needs important to all people regardless of various ages, abilities or conditions experienced during an entire lifetime. In order to increase the availability of affordable, accessible housing, the City and Agency require that all City and Agency funded Affordable Housing Projects include the standards of universal design contained in this section.

(b) **Findings.**

(1) The City finds that the Building Official has determined that the provisions of this article related to the five features of universal design are consistent with the California Building Code and the provisions of the Fresno Municipal Code adopting the California Building Code.

(2) This ordinance shall not apply to any residential dwelling unit subject to and in compliance with Chapter 11A or 1 IB of the California Building Code.

(3) The City finds that the regulations imposed by this section are reasonably necessary in this jurisdiction because:

(i) According to the 2000 Census data, 85,048 or 20% of City residents are classified as disabled. The 2000 Census also indicates 39,547 or 9% of City's residents are 65 years and older. These statistics do not take into consideration the returning veteran population or people who become temporarily disabled. These statistics also do not take into account people who become temporarily disabled due to injuries or illness.

(ii) According to the State of California Architect, universal design is a broader, more comprehensive "design for all" approach to the development of products, architecture and environments around human diversity. Universal design recognizes the changing diversity of needs important to all people regardless of their age, ability or conditions experienced during an entire lifetime. Anyone can benefit from a barrier-free design, user friendly architecture and a comfortable environment.

(c) **Definitions.** For the purpose of this section, the following terms will have the following definitions:

(1) "Accessible:" Standards for features, fixtures, designs or other improvements which are equal to or exceed the minimum requirements of Chapter 11A or 1 IB of the California Building Code.

(2) "Affordable:" Any residential dwelling unit that has an Affordable Housing Cost or Affordable Rent.

(3) "Affordable Housing Cost:" Shall have the meaning ascribed to that term in Section 50052.5 of the California Health and Safety Code, or any successor section thereto.

(4) "Affordable Housing Project:" An affordable residential dwelling development activity receiving City or Agency funds, including funding made available for pre-development, development, construction and permanent financing and not including rehabilitation, funding for social services, and direct mortgage assistance to homebuyers of existing units.

(5) "Affordable Rent:" Shall have the meaning ascribed to that term in Section 50053(a) of the California Health and Safely Code, or any successor section thereto.

(6) "Agency:" The City of Fresno Redevelopment Agency.

(7) "ANSI Standard:" "American National Standard for Buildings and Facilities Providing Accessibility and Usability for Physically Handicapped People," also known as "ANSI Al 17.1," published by the American Standards Institute, Inc.

(8) "Bathroom:" A room containing a toilet (water closet), lavatory (sink), and either a shower, bathtub, combination bathtub and shower, or both a shower and bathtub. It includes a compartmental bathroom in which the fixtures are distributed among interconnected rooms.

(9) "Building Department:" As defined by the California Building Code.

(10) "Building Official:" As defined by the California Building Code.

(11) "CBC, Chapter 11 A:" Chapter 11A of the California Building Code (located in Part 2, Title 24, California Code of Regulations) or its successor provisions.

(12) "CBC, Chapter 11 B:" Chapter 11 B of the California Building Code (located in Part 2, Title 24, California Code of Regulations).

(13) "City:" The City of Fresno.

(14) "City Agency Funded or Financial Assistance:" Any City or Agency financial assistance, provided to an affordable housing project that includes redevelopment agency funds, affordable housing special reserve funds, HOME funds or Community Development Block Grant Funds.

(15) "Condominium:" As defined by California Civil Code Section 951 (f) a development where undivided interest in common in a portion of real property is coupled with a separate interest in space called a unit, the boundaries of which are described on a recorded, final map or parcel map. There are within the boundaries may be filled with air, earth, or water, or any combination thereof, and need not be physically attached to any land except by easements for access and, if necessary, support.

(16) "Dwelling Units:" As defined by the California Building Code.

(17) "New Construction:" All new, residential construction for which a building permit is required per local ordinance. New construction does not include additions, alteration, or remodels to existing residential buildings.

(18) "Owner-occupied:" Any dwelling unit not intended at the time of application for the building permit to be occupied as a rental dwelling unit.

(19) "Powder Room:" A room containing a toilet (water closet) and lavatory (sink), but no bathtub or shower. It includes a compartmental powder room in which fixtures are distributed among interconnected rooms.

(20) "Primary Entry:" The principal entrance through which most people enter a building or dwelling unit as designated by the Building Official.

(21) "Rental:" Any dwelling unit not intended at the time of the application for a building permit to be occupied by the owner.

(22) "Residential Dwelling:" Shall mean the same as the term Residence as defined in the Fresno Municipal Code.

(23) "Universal Design:" Universal Design is a broader, more comprehensive "design for all" approach to the development of products, architecture, and environments around

human diversity. Universal Design is a broad comprehensive house design that makes a home safe and comfortable for everyone, young or old, whether they have a disability or not. The basic features of Universal Design are set forth in subsection (e), of this section.

(24) "Visitability:" Enhancement of the ability of a residential dwelling unit to meet the basic needs of all residents and guests to enter and use critical portions the home, to the greatest extent possible, through specific design choices decisions.

(d) **Scope and Application.**

(1) Unit Coverage. All new construction of affordable residential dwelling units that receive any City/Agency Funding as defined above shall incorporate the live basic features of Universal Design unless exempted within this section.

(2) Unit Types. New construction of all affordable residential dwelling units that are part of a tract, duplex or triplex, condominium, townhouse or other residential dwellings that receive City or Agency funding shall be subject to this section unless exempted within this section.

(3) An exemption may be granted in the event of either of the following:

(i) The applicant for the building permit can demonstrate undue hardship due to topographical conditions, reconstruction and substantial rehabilitation due to natural disasters.

(ii) Multi-dwelling second story and above units where elevator does not exist.

(4) The Building Official of the City of Fresno, may consider alternate means and methods as provided under the Building Codes of the State of California in order to provide conformance where needed on a case by case basis.

(e) **Standards.**

(1) An affordable residential dwelling unit shall have one entry that shall comply with each of the following:

(i) Must be a "no step" entry going into the residence. For purposes of this subsection, "no step" shall mean the floor or landing shall be no more than ½ inch lower than the top of the threshold of the door way.

(ii) The door going into the no step entry must be thirty-six (36) inches.

(2) The interior routes of an affordable residential dwelling unit shall comply with each of the following:

(i) At least one accessible route through the hallways and passageways shall be provided from the accessible entrance of the dwelling unit to the primary floor bathroom, bedroom and kitchen;

(ii) All doorways shall be at least thirty-two inches wide;

(iii) All hallways shall be at least forty-two inches wide.

(3) An affordable residential dwelling unit shall contain a kitchen with six square feet of kitchen counter space.

(4) An affordable residential dwelling unit with a ground floor of 750 square feet or more, excluding the garage floor space, shall contain ground floor facilities that comply with each of the following:

(i) One downstairs "flex room" which can be used as a bedroom.

(ii) At least one downstairs bathroom that consists of a toilet, lavatory, and bathtub or shower, or both.

(iii) The downstairs bathroom in the preceding paragraph shall have an unobstructed clear space measuring at least forty-eight inches by sixty inches inside the bathroom and outside the swing of the door.

(iv) Grab bar reinforcements consistent with CBC Chapter 11A for the toilet, and any shower or bath.

(Added Ord. 2010-49, § 3, eff. 1-16-11).

SEC. 11-111. SMALL RESIDENTIAL ROOFTOP SOLAR ENERGY SYSTEM REVIEW PROCESS.

(a) **Definitions.** The following words and phrases as used in this section are defined as follows:

(1) "Electronic Submittal" means the utilization of one or more of the following:

(i) Fax;

(ii) E-mail;

(iii) Internet.

(2) "Small Residential Rooftop Solar Energy System" means:

(i) A solar energy system that is no larger than 10 kilowatts alternating current nameplate rating or 30 kilowatts thermal.

(ii) A solar energy system that conforms to all applicable state fire, structural, electrical, and other building codes as adopted or amended by the City and paragraph (iii) of subdivision (c) of Section 714 of the Civil Code, as such section or subdivision may be amended, renumbered, or redesignated from time to time.

(iii) A solar energy system that is installed on a single or duplex family dwelling.

(iv) A solar panel or module array that does not exceed the maximum legal building height as defined by the authority having jurisdiction.

(3) "Expedited Solar Permitting Process" shall mean an application for a permit with a processing timeline not to exceed 3 days.

(b) **Permit Application Process.** Section 65850.5 of the California Government Code provides that, on or before September 30, 2015, every city, county, or city and county shall adopt an ordinance that creates an expedited, streamlined permitting process for Small Residential Rooftop Solar Energy Systems.

The following procedures outline the application process for Small Residential Rooftop Solar Energy Systems:

(1) Permit applications shall be submitted at the building permit counter. With respect to Electronic Submittals, applications may be filed by the defined methods that are available at the time as provided by the City permitting system.

(2) An Eligibility Checklist for Expedited Solar Photovoltaic Permitting shall be completed by the applicant to determine if the proposed project qualifies for the expedited process.

(3) Processing times shall be dependent on the number of applications provided at the time of submittal. Reasonable time to process large volumes of permit applications from an individual applicant shall be allowed.

(c) **Inspections.** For a Small Residential Rooftop Solar Energy System eligible for expedited review, only one inspection shall be required and may include a consolidated inspection. If a Small Residential Rooftop Solar Energy System fails the inspection, a subsequent inspection(s) is authorized, however the subsequent inspection(s) need not conform to the requirement of this subdivision.
(Added Ord. 2015-26, § 1, eff. 9-28-15)

SEC. 11-112. MODEL WATER EFFICIENT LANDSCAPE ORDINANCE.

The updated Model Water Efficient Landscape Ordinance, Sections 490-495, Chapter 2.7, Division 2, Title 23 in the California Code of Regulations, which may be referred to in this Code as the MWELO, as promulgated by the California Department of Water Resources, as may be amended, is hereby adopted and incorporated by reference into the Code. One copy of the MWELO is on file and available for use by the public in the Development and Resource Management Department, Building and Safety Services Division.
(Added Ord. 2015-37, § 2, eff. 1-2-16)

SEC. 11-113. ELECTRIC VEHICLE CHARGING STATIONS REVIEW PROCESS.

(a) DEFINITIONS. The following words and phrases as used in this section are defined as follows:

(1) "Electronic submittal" means the utilization of the City's online portal or the Internet.

(2) "Electric vehicle charging station" or "charging station" means any level of electric vehicle supply equipment station that is designed and built in compliance with

Article 625 of the California Electric Code, as it reads on January 1, 2016, and delivers electricity from a source outside an electric vehicle into a plug-in electric vehicle.

(3) "Specific, adverse impact" means a significant, quantifiable, direct, or unavoidable impact, based on objective, identified, and written public health or safety standards, policies, or conditions as they existed on the date the application was deemed complete.

(b) PERMIT APPLICATION PROCESS. Section 65850.7 of the California Government Code provides that every city, county, or city and county shall adopt an ordinance that creates an expedited, streamlined permitting process for Electric Vehicle Charging Stations.

(1) This section applies to the permitting of all electric vehicle charging stations in the City.

(2) All electric vehicle charging stations legally established or permitted prior to the effective date of this ordinance shall not require a permit issued under this section unless physical modifications or alterations are undertaken that materially change the size, type, or components of an electric vehicle charging station. Routine operations and maintenance or like-kind replacements of the components of an electric vehicle charging state shall not be considered a material change.

(c) REQUIREMENTS.

(1) All electric vehicle charging stations shall meet all applicable health and safety standards and requirements, including but not limited to any requirements imposed by the state and the City, local fire department and utility director, the California Building Code, Fresno Municipal Code, and Federal laws including the Americans with Disabilities Act.

(2) Electric vehicle charging stations shall meet all applicable safety and performance standards established by the California Electric Code, the Society of Automotive Engineers, the National Electrical Manufacturers Association, and the accredited testing laboratories such as Underwriters Laboratories and, where applicable, rules of the Public Utilities Commission regarding safety and reliability.

(d) APPLICATIONS.

(1) All documents required for submission of an electric vehicle charging station application shall be made available on the City's website.

(2) An applicant's electronic signature shall be accepted on all forms, applications, and other documents in lieu of a wet signature.

(3) The Building and Safety Services Division shall adopt a checklist of all requirements with which electric vehicle charging stations shall comply to be eligible for expedited review.

(4) The Building and Safety Services Division may refer to the recommendations contained in the most current version of the Plug-In Electric Vehicle Infrastructure Permitting Checklist of the Zero-Emission Vehicles in California: Community Readiness Guidebook published by the Governor's Office of Planning and Research, when adopting the electric vehicle charging station permit process and checklist. The checklist will be made available on the City's website.

(e) REVIEW.

(1) The Building Official shall implement an administrative review process to expedite approval of electric vehicle charging stations. Review of a complete permit application shall be limited to the Building Official's review of whether it meets all health and safety requirements of local, state and federal law. Local law requirements shall be limited to those standards and regulations necessary to ensure there is no specific, adverse impact on public health or safety by the proposed installation. For direct current fast chargers (DCFC), the review of a complete permit application will be a fifteen business day timeline.

(2) A permit application that satisfies the information requirements in the checklist, as adopted by the City, shall be deemed complete.

(3) A complete permit application and proposed installation that meets the required standards and approved checklist that does not have a specific, adverse impact on public health or safety shall be not be denied.

(4) An applicant that provides an incomplete permit application shall be provided with a written correction notice detailing all deficiencies in the application and any information required to be eligible for expedited permit issuance.

(5) The Building Official may require an applicant to apply for a conditional use permit if the official makes a written finding, based on substantial evidence, that the proposed electric vehicle charging station could have a specific, adverse impact upon the public health or safety and conditions are necessary. The decision of the Building Official may be appealed to the City Planning Commission in accordance with the procedures of Section 15-5017.

(6) The Director may not deny an application for a conditional use permit unless it makes written findings based upon substantial evidence in the record that the proposed installation would have a specific, adverse impact upon the public health or safety, and there is no feasible method to satisfactorily mitigate or avoid the specific, adverse impact. The Director's written findings shall include the basis for the rejection of potential feasible alternatives or conditions for preventing the adverse impact. The decision of the Director may be appealed to the City Planning Commission in accordance with the procedures of Section 15-5017.

(7) Any conditions imposed on an application shall be designed to mitigate the specific, adverse impact upon the public health or safety at the lowest cost possible.

Government Code Section 65850.7 requires that the Building Official shall not condition the approval for any conditional use permit on the approval of such a system by an association, as that term is defined by Civil Code 4080.

(8) A feasible method to satisfactorily mitigate or avoid the specific, adverse impact includes, but is not limited to, any cost-effective method, condition, or mitigation imposed by the City on another similarly situated application in a prior successful application for a permit.

(Added Ord. 2019-016, § 1, eff. 8-7-19).

[The next page is CD11:57]

ARTICLE 2 BUILDING MOVING AND DEMOLITION

Sec. 11-201. Compliance Required.
Sec. 11-202. Application for Permit, Fee.
Sec. 11-203. Action Upon Application.
Sec. 11-204. Bond Required.
Sec. 11-205. Conditions to be Met Before Permit is Issued.
Sec. 11-206. Interference With Other Property.
Sec. 11-207. Moving Across Railway Tracks or Highways.
Sec. 11-208. Notice to Fire Department.
Sec. 11-209. No Personal Liability.
Sec. 11-210. Time of Moving.
Sec. 11-211. Routes of Moving.
Sec. 11-212. Moved Buildings.
Sec. 11-213. Relocation Permit.
Sec. 11-214. Application For Relocation Permit.
Sec. 11-215. Application Fee; Moving of Buildings.
Sec. 11-216. Appeals.
Sec. 11-217. Limitations Upon Issuance of Permits.
Sec. 11-218. Debris and Excavations.
Sec. 11-219. Denial of Permit.
Sec. 11-220. Relocation Bond Required.
Sec. 11-221. Relocation Bond—Conditions.
Sec. 11-222. Relocation Bond—Default in Performance of Conditions.
Sec. 11-223. Relocation Bond—Termination—Refund of Surplus.

SEC. 11-201. COMPLIANCE REQUIRED.

No person shall move or cause to be moved any building or structure into, upon, across, along, or over the public streets, alleys or highways in the city, or otherwise obstruct the free passage and use of said streets, alleys or highways without complying with the provisions of this article. (Orig. Ord. 4111).

SEC. 11-202. APPLICATION FOR PERMIT, FEE.

Any person desiring to move or cause to be moved any building or structure into, upon, across, along or over said streets, alleys or highways shall file an application therefor in writing with the Public Works Department setting forth and specifically describing the size; loaded height, width and length when supported or loaded on dollies, rollers or other transportation facilities; type of construction and location of the building or structure to be moved; and the time when said building or structure is to be moved. The application shall be clearly filled out in full with all required information and be accompanied by a permit fee in the amount designated in the Master Fee Resolution. If a permit is not issued, or an issued permit is not exercised, any fee paid pursuant to this section shall not be refunded. (Orig. Ord. 4111; Am. Ord. 5309, 1958; Am. Ord. 70-68, 1970; Am. Ord. 80-115, § 139, eff. 8-8-80).

SEC. 11-203. ACTION UPON APPLICATION.

Upon the filing of any such application it shall be the duty of the head of the public works department to determine if the building or structure can be moved along the route proposed

with safety and without serious inconvenience to the public and in conformity with the provisions of this article and the laws of the State of California applicable thereto. Moving over arterials or streets of a business or other congested district is convenient only during early morning hours prior to 6:00 a.m. In the event it shall appear that said building or structure can be moved along the route proposed with safety and without serious inconvenience to the public and in conformity with the provisions of this article and the laws of the State of California applicable thereto, it shall be the duty of said head of the public works department to notify the person desiring to move said building or structure that a permit therefor will be issued upon compliance by said person with the provisions of Sections 11-204 and 11-205. In the event it shall appear that the moving along the route proposed of said building or structure cannot be accomplished with safety or without serious inconvenience to the public and in conformity with the provisions of this article and the laws of the State of California applicable thereto, then and in that event it shall be the duty of the head of the public works department to notify said person of his decision and the reasons therefor. (Orig. Ord. 4111; Am. Ord. 5309, 1972).

SEC. 11-204. BOND REQUIRED.

(a) No permit shall be granted by the head of the public works department for the moving of any building or structure until the applicant has filed a bond executed to the city in the sum designated in the Master Fee Resolution. Said bond shall be for the benefit of the owners of any and all property, either public or private, which is lawfully maintained on any street, alley or highway within the city, and shall be signed by two good and sufficient sureties who shall justify for the amount of the bond over and above all their just debts and liabilities and over and above all property owned by such sureties which is exempt from execution; or in lieu thereof, said bond may be executed by a surety company authorized to transact business in the State of California. Said bond shall be filed with the head of the public works department for his approval.

(b) The condition of said bond shall be that if the moving of any building or structure into, upon, across, along or over any street, alley or highway shall fully comply with the provisions of this article and that if the principal on said bond shall pay any and all damages to said streets, alleys or highways and to any and all property, either public or private lawfully thereon which may result by reason of the moving of any building or structure in the city by said principal, or by the employees, agents, contractors or servants of said principal, then said obligation shall be void, but in the event said principal shall fail to faithfully comply with any provision of this article or shall refuse to comply with said provision after notice from the head of the public works department or his authorized representative, then the head of the public works department may cause the streets, alleys or highways into, upon, across, along or over which said building or structure was moved to be cleaned of all debris and all damage to said streets, alleys, highways and public or private property, including fireplugs, hydrants, sewers, manholes, culverts and the like, and the wires, apparatus and appurtenances of any police, fire alarm and public utility system and any other wires, apparatus, appurtenances and public or private property lawfully thereon to be repaired or replaced and the actual cost and expense of such work shall be collectible from said principal and surety or sureties on said bond.

(c) All bonds as required in this section must be renewed on the first day of July of each year.

(d) The filing of the bond herein provided for by any person desiring to move any building or structure into, upon, across, along or over the public streets, alleys, or highways in the city and the approval of said bond by the said head of the public works department shall not relieve such person from responsibility for damages in excess of the amount of such bond to said streets, alleys or highways and to any and all property, either public or private, lawfully thereon. (Orig. Ord. 4111; Am. Ord. 5309, 1958; Am. Ord. 80-132, § 14, eff. 10-3-80).

SEC. 11-205. CONDITIONS TO BE MET BEFORE PERMIT IS ISSUED.

(a) The head of the public works department may require, as a condition of issuing a permit, the written approval from the Pacific Telephone and Telegraph Company, the Pacific Gas and Electric Company's Engineering Department, the City Parks and Recreation Department, the Fresno Police Department, the City Traffic Engineer, the City Electrician Foreman (Fire Alarm System) and the City Electrician Foreman (Street Lighting and Traffic Signals). Should either or both of the city electrician foremen be unavailable, then approval shall be obtained from the City Electrical Engineer or his authorized representative.

(b) When a building is to be moved from a site within the city limits, there must be on file with the Department of Public Works a permit authorizing a licensed plumber to cap the existing sewer at that site. The applicant for a permit to move such building shall also have made application to the City Water Division for water shut-off, and to the Pacific Gas and Electric Company for gas shut-off and for removal of service wires and meter at said site.

(c) When a building is to be moved into the city limits to a site within the city, the applicant for a permit to move such building shall have obtained the approval of a building inspector of the Department of Public Works and the approval of the Planning Department of the city.

(d) The head of the public works department may require, as a condition of issuing a permit, a cash security deposit, in a sum which, in the opinion of the head of the public works department, will be sufficient to pay for the cost of displacement, cutting, or removal of property of the city, and the repair or replacement thereof, including wages of persons employed therefor. Such deposit shall not relieve the applicant from responsibility for such costs in excess of the amount of the security deposit.

(e) Should the applicant have failed to pay, in full, for the cost of displacement, cutting, or removal of property of the city, and the repair or replacement thereof, including wages of persons employed therefor, as provided in Section 11-206, as a result of any such prior permit issued, then the head of the public works department may refuse to issue the permit until such time as it is established that said costs are paid in full. (Orig. Ord. 4338, Am. Ord. 5344, 1958; Am. Ord. 68-15, 1968).

SEC. 11-206. INTERFERENCE WITH OTHER PROPERTY.

(a) No holder of any permit authorizing the moving of any building or structure or no employee, agent, contractor or servant of any holder of such permit shall displace, cut, remove or otherwise injure or disturb any part of any property, either public or private, which is maintained on any street, alley or highway within the city, or move said building or structure over any route other than that specified in the permit.

(b) Whenever the moving of a building or structure requires the temporary displacement, cutting or removal of any such property, it shall be the duty of the person owning, operating or controlling such property to displace, cut or remove the same, so far as may be necessary to effect the removal of said building to the point to which the removal thereof shall be authorized.

(c) At least seventy-two hours in advance of reaching such property the holder of the permit under which the proposed moving is to be done shall notify the person owning, operating or controlling such property to displace, cut or remove the same to permit the moving of said building or structure and shall at the same time exhibit to such person the properly issued permit authorizing the moving of such building or structure and it shall thereupon be the duty of said person promptly to displace, cut or remove said property sufficiently to allow the passage of said building or structure along the street, alley or highway, provided that the holder of said permit shall have first made arrangements satisfactory to the person owning, operating or controlling said property to guarantee payment of the cost of such displacement, cutting or removal of said property, and the replacement thereof, including the wages of persons employed therefor.

(d) In every case in which the wires, trees, or other property of the city are involved the seventy-two hour advance notice hereinbefore required shall be served upon the head of the public works department. (Orig. Ord. 4111, Am. Ord. 5309, 1958).

SEC. 11-207. MOVING ACROSS RAILWAY TRACKS OR HIGHWAYS.

(a) No building or other structure shall be moved across any railway tracks, except between the hours of 2:00 A.M. and 5:00 A.M. unless the written consent of the person controlling such tracks is first obtained.

(b) No building or other structure shall be moved into or across any state highway unless the written consent of the local District Engineer of the State Highway Department is first obtained. (Orig. Ord. 4111).

SEC. 11-208. NOTICE TO FIRE DEPARTMENT.

Notice of intention to begin the moving of a building or structure shall be given by the holder of a permit to the Chief Engineer of the Fresno Fire Department immediately prior to the beginning of such movement. (Orig. Ord. 4338).

SEC. 11-209. NO PERSONAL LIABILITY.

Nothing contained in this article shall be construed as rendering the City of Fresno, head of the public works department, or any officer or employee of the city, personally liable for any damage arising out of a violation of this article. (Orig. Ord. 4111; Am. Ord. 5309, 1958).

SEC. 11-210. TIME OF MOVING.

No person shall move any building or structure into, upon, across, along, or over any street between 6:30 A.M. and 9:30 A.M. and between 4:00 P.M. and 6:30 P.M. of any day; or on arterial highways or in the central business district between 6:30 A.M. and 1:30 A.M. of the following day. (Added Ord. 5658, 1959).

SEC. 11-211. ROUTES OF MOVING.

Buildings or structures shall be moved only along such routes as will least interfere with or endanger other users of the streets. (Added Ord. 5658, 1959).

SEC. 11-212. MOVED BUILDINGS.

Buildings or structures moved into or within the city shall comply with all of the provisions of the Fresno Building Code. No such building or structure shall be moved until the required permits so to do shall have been obtained. (Added Ord. 5658, 1959).

SEC. 11-213. RELOCATION PERMIT.

No permit for the moving of any buildings or structure shall be issued until the Director of Planning and Inspection has first issued to the owners of the premises onto which the building is to be moved a permit to relocate the particular building upon those premises; provided that no such relocation permit shall be required for the following buildings or structures:

(1) Those used as temporary construction sheds, temporary real estate sales offices and other permitted temporary minor structures;

(2) Those being moved outside the City of Fresno;

(3) Those accessory structures less than six hundred square feet in area being relocated on the same lot;

(4) Other small and unimportant structures when approved by the Director of Planning and Inspection. (Added Ord. 5658, 1959).

SEC. 11-214. APPLICATION FOR RELOCATION PERMIT.

Every application for a relocation permit shall be in writing upon a form furnished by the Director of Planning and Inspection and shall set forth such information as may reasonably be required in order to carry out the purposes of this Section. Such information may include:

(1) That information required by Section 301(d) of the Fresno Building Code;

(2) Photographs of the building or structure to be moved and photographs of the buildings on the properties contiguous with the premises onto which the building or structure is to be moved;

(3) A report from a licensed structural pest control contractor stating the condition of the building or structure as to decay and pest infestation. (Added Ord. 5658, 1959).

SEC. 11-215. APPLICATION FEE; MOVING OF BUILDINGS.

(a) Before any application for a relocation permit is accepted, an application fee shall be paid by the applicant to the Director of Planning and Inspection to cover the cost of investigation and inspection, as designated in the Master Fee Resolution. This application fee shall be in addition to all other fees required by the Fresno Municipal Code.

(b) Upon acceptance of any application for a relocation permit, the Director of Planning and Inspection shall cause to be inspected the building or structure proposed to be moved, the district into which the building is to be moved, and the premises onto which the building is to be moved. (Added Ord. 5658, 1959; Am. Ord. 6622, 1965; Am. Ord. 79-197, § 6, eff. 1-18-80; Am. Ord. 80-115, § 140, eff. 8-8-80).

SEC. 11-216. APPEALS.

(a) The Director of Planning and Inspection shall cause to be posted on the premises onto which the building is to be moved a notice stating that such application for relocation permit has been received and that a decision is to be made on such application by the Director of Planning and Inspection within five days of the posting of such notice. Such notice shall describe the then present location of the building to be moved.

(b) When the Director of Planning and Inspection shall have rendered his decision on said application, he shall cause the premises on to which the building is to be moved to be posted with a notice setting forth the results of his decision. If the building to be relocated is a dwelling, apartment house, or a building accessory thereto, the notice shall state that any interested party aggrieved by such decision may file an appeal from such decision to the Housing Advisory Finance and Appeals Board, within ten days of posting of said notice, provided the appeal is in writing as provided in this section. If the building to be relocated is other than a dwelling, apartment house, or a building accessory thereto, the notice shall state that any interested person aggrieved by such decision may file an appeal from such decision to the Board of Appeals of the city within ten days of posting of the notice, provided the appeal is in writing as provided in this section.

(c) The appeal shall be a written dated appeal, in duplicate, containing:

(1) A heading in the words: "Before the Housing Advisory Finance and Appeals Board of the City of Fresno," when the building to be moved is a dwelling, apartment house, or a building accessory thereto; otherwise the heading shall be in the words: "Before the Board of Appeals of the City of Fresno";

(2) A caption reading: "Appeal of _____," giving the names of all appellants participating in the appeal;

(3) A brief statement setting forth the legal interest of each of the appellants in the building involved, if any;

(4) A brief statement in ordinary and concise language of the specific order or action protested, together with any material facts supporting the contentions of the appellants;

(5) A statement of the relief sought, and the reasons why it is claimed the protested order or action should be reversed, modified, or set aside;

(6) The signatures of all parties named as appellants and their official mailing addresses;

(7) The verification of at least one appellant as to the truth of the matter stated in the appeal.

(d) When the appeal is before the Housing Advisory Finance and Appeals Board, the appeal shall be heard in the manner prescribed in Article 3, Chapter 11 of this Code. When the appeal is before the Board of Appeals, the appeal shall be heard in the manner prescribed in Article 4, Chapter 11 of this Code. (Added Ord. 6622, 1965; Am. Ord. 71-39, 1971).

SEC. 11-217. LIMITATIONS UPON ISSUANCE OF PERMITS.

(a) No permit shall be issued to relocate any building or structure which is so constructed or in such condition as to be dangerous; or which is unsanitary; or which, if it be a dwelling or habitation, is unfit for human habitation; or which is so dilapidated, defective, unsightly or in such a condition of deterioration or disrepair that its relocation at the proposed site would cause appreciable harm to or be materially detrimental to the property or improvements in the district into which the building is to be relocated; or if the proposed use is prohibited by any provision of the Municipal Code or by any other law or ordinance; provided, however, that if the conditions of the building or structure in the judgment of the Director of Planning and Inspection admits of practicable and effective repair, the permit may be issued on such terms and conditions as the Director of Planning and Inspection may deem reasonable and proper including but not limited to the requirement of changes, alterations, additions or repairs to be made to or upon the building or structure, to the end that the relocation thereof will not be materially detrimental or injurious to public safety or to public welfare or to the property and improvements, or either, in the district into which it is to be moved.

(b) The terms and conditions upon which each permit is granted shall be written upon the permit or appended in writing thereto. Said terms and conditions and the relocation bond shall provide for the removal of all concrete, lumber, and other debris and the filling of basements, cellars, or other excavations remaining from the removal of the building or structure from the premises from which it is moved when such premises are within the city. (Added Ord. 56-58, 1959).

SEC. 11-218. DEBRIS AND EXCAVATIONS.

It shall be the duty of any person to whom any permit is issued for the demolition or for the removal of any building, or any section or portion of any building pursuant to the provisions of this article, and of any person leasing, owning, or occupying or controlling any lot or parcel of ground from which a building is removed or demolished to remove all weeds, concrete or stone foundations, flat concrete, concrete patios, masonry walls, garage floors, driveways, and similar structures and all loose, miscellaneous, and useless material from such lot or parcel of ground, and to properly cap the sanitary sewer house connection, and to properly fill or otherwise protect all basements, cellars, septic tanks, wells, and other excavations, and said lot or parcel shall be left level and in a condition to be disked for control of weeds. (Added Ord. 56-58, 1959; Am. Ord. 6682, 1965; Am. Ord. 73-151, § 1, eff. 11-11-73).

SEC. 11-219. DENIAL OF PERMIT.

If the unlawful, dangerous or defective condition of the building or structure proposed to be relocated is such that remedy or correction cannot practicably and effectively be made, the relocation permit shall be denied. (Added Ord. 5658, 1969).

SEC. 11-220. RELOCATION BOND REQUIRED.

No relocation permit required by this section shall be issued by the Director of Planning and Inspection unless the applicant therefor shall first post with him a bond executed by the owner of the premises where the building or structure is to be located, as principal, and a surety company authorized to do business in the state, as surety. The bond shall be in form joint and several, shall name the city as obligee and shall be in an amount equal to the cost plus ten per cent of the work required to be done in order to comply with all of the conditions of such relocation permit as such cost is estimated by the Director of Planning and Inspection. In lieu of a surety bond the applicant may post a bond executed by the owner, as principal, and which is secured by a deposit in cash in the amount named above and conditioned as required in the case of a surety bond; such a bond as so secured is hereafter called a "cash bond" for the purposes of this section. No bond, however, need be posted in any case where the Director of Planning and Inspection shall determine that the only relocation involved is that of moving a building temporarily to the regularly occupied business premises of a house mover. (Added Ord. 5658, 1959).

SEC. 11-221. RELOCATION BOND—CONDITIONS.

Every bond posted pursuant to this section shall be conditioned as follows:

(1) That each and all of the terms and conditions of the Relocation Permit shall be complied with to the satisfaction of the Director of Planning and Inspection;

(2) That all of the work required to be done pursuant to the conditions of the Relocation Permit shall be fully performed and completed within the time limit specified in the Relocation Permit; or, if no time limit is specified, within ninety days after the date said building is moved to its new location. The time limit herein specified, or the time limit

specified in any permit, may be extended for good and sufficient cause by the Director of Planning and Inspection. No such extension of time shall be valid unless written and no such extension shall release any surety upon any bond. (Added Ord. 5658, 1959).

SEC. 11-222. RELOCATION BOND - DEFAULT IN PERFORMANCE OF CONDITIONS.

(a) Whenever the Director of Planning and Inspection shall find that a default has occurred in the performance of any term or condition of any permit required by this Section, written notice thereof shall be given to the principal and to the surety of the bond. Such notice shall state the work to be done, the estimated cost thereof and the period of time deemed by the Director of Planning and Inspection to be reasonably necessary for the completion of such work. After receipt of such notice, the surety must, within the time therein specified, either cause the required work to be performed or, failing therein, must pay over to the Director of Planning and Inspection the estimated cost of doing the work as set forth in the notice, plus an additional sum equal to ten per cent of the estimated cost. Upon the receipt of such moneys, the Director of Planning and Inspection shall proceed by such mode as he deems convenient to cause the required work to be performed and completed, but no liability shall be incurred therein other than for the expenditure of the sum in hand therefor. The balance, if any, of such moneys shall, upon completion of the work, be returned to the depositor, or to his successors or assigns, after deducting the cost incurred in obtaining the completion of the work.

(b) If a cash bond has been posted, notice of default as provided above shall be given to the principal and if compliance is not had within the time specified, the Director of Planning and Inspection shall proceed without delay and without further notice or proceedings whatever to use the cash deposited, or any portion of such deposit, to cause the required work to be done by contract or otherwise in the discretion of the Director of Planning and Inspection.

(c) When any default has occurred on the part of the principal under the preceding provisions, the surety shall have the option in lieu of completing the work required to demolish the building or structure and to clear, clean and restore the site. If the surety defaults, the Director of Planning and Inspection shall have the same option.

(d) In the event of any default in the performance of any term or condition of the Relocation Permit, the surety, or any person employed or engaged on its behalf, or the Director of Planning and Inspection or any person employed or engaged on his behalf, shall have the right to go upon the premises to complete the required work or to remove or to demolish the building or structure.

(e) No person shall interfere with or obstruct the ingress or egress to or from any such premises by any authorized representative or agent of any surety or of the city engaged in the work of completing, demolishing or removing a building or structure for which a relocation permit has been issued after a default has occurred in the performance of the terms or conditions thereof. (Added Ord. 5658, 1959).

SEC. 11-223. RELOCATION BOND—TERMINATION—REFUND OF SURPLUS.

The term of each bond posted pursuant to this section shall begin upon the date of the posting thereof, and shall end upon completion to the satisfaction of the Director of Planning and Inspection of the performance of all the terms and conditions of the relocation permit required by this section. Such completion shall be evidenced by a statement thereof signed by the Director of Planning and Inspection, a copy of which will be sent to any surety or principal upon request. When a cash bond has been posted the cash shall be returned to the depositor or to his successors or assigns upon the termination of the bond, except any portion thereof that may have been used or deducted as elsewhere in this article provided. (Added Ord. 5658, 1959; Am. Ord. 72-136, eff. 10-8-72).

ARTICLE 3 HOUSING REGULATIONS

Sec. 11-301. Short Title.
Sec. 11-302. Purpose.
Sec. 11-303. Scope.
Sec. 11-304. Definitions.
Sec. 11-305. General.
Sec. 11-306. Abatement of Substandard Buildings.
Sec. 11-307. Violations.
Sec. 11-308. General.
Sec. 11-309. Permit Required; Fees.
Sec. 11-310. Inspection.
Sec. 11-311. Location on Property.
Sec. 11-312. Yards and Courts.
Sec. 11-313. Room Dimensions.
Sec. 11-314. Light and Ventilation.
Sec. 11-315. Sanitation.
Sec. 11-316. Structural Requirements.
Sec. 11-317. General.
Sec. 11-318. Mechanical Requirements.
Sec. 11-319. Heating and Ventilation.
Sec. 11-320. Exits.
Sec. 11-321. General
Sec. 11-322. Fire Protection.
Sec. 11-323. General
Sec. 11-324. Substandard Buildings.
Sec. 11-325. Proceedings for Enforcement.
Sec. 11-326. Notice of Violation.
Sec. 11-327. Notice and Order.
Sec. 11-328. Summary Abatement.
Sec. 11-329. Administrative Citation.
Sec. 11-330. Appeal.
Sec. 11-331. Correction/Abatement of Violations.
Sec. 11-332. Vacation of Imminently Dangerous Buildings.
Sec. 11-333. Failure to Comply with a Final Order.
Sec. 11-334. Extensions of Time.
Sec. 11-335. Reserved.
Sec. 11-336. Continuous Authority to Board and Secure.
Sec. 11-337. Repair and Demolition Fund.
Sec. 11-338. Tenant Relocation Benefits Following City Order to Vacate Due to Immediate Health and Safety Risk.

SEC. 11-301. SHORT TITLE.

This article shall be known and cited as the "Fresno Housing Regulations." When used in this article "this article" means the Fresno Housing Regulations.
(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-302. PURPOSE.

The Council finds that substandard buildings or structures, as defined in this article, are a public nuisance by virtue of their conditions or defects to the extent that the life, health,

property or safety of the public or their occupants are endangered. The Council further finds that immediate abatement of substandard buildings or structures by repair, rehabilitation, demolition or removal is necessary to protect and preserve the safety of citizens and communities where such structures are found.

The purposes of this article are to safeguard, remedy and prevent the decay and deterioration of residential buildings and property as defined herein, and to eliminate slums and blighted neighborhoods by providing minimum housing and property maintenance standards for the protection of life, health, welfare, safety, environment, and property of the general public and of the owners and occupants of such buildings.

The procedures established in this article are cumulative and in addition to any other remedy established by law and that these procedures are substantially similar to those procedures set forth in Title 25 California Code of Regulations Article 6 § 48 et seq.
(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-303. SCOPE.

(a) The provisions of this article shall apply to the construction, alteration, moving, demolition, repair and use of any building or structure or buildings or portions thereof used, or designed or intended to be used, for human habitation.

(b) Where any building or portion thereof is used or intended to be used as a combination apartment house-hotel, the provisions of this article shall apply to the separate portions as if they were separate buildings.

(c) Rooming houses, congregate residences or lodging houses shall comply with all the requirements of this article for dwellings.
(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-304. DEFINITIONS.

For the purposes of this article, certain terms, phrases, words and their derivatives shall be construed as specified in either this article or as specified in the Fresno Building Code. Where terms are not defined, they shall have their ordinary accepted meanings within the context with which they are used. Webster's Third New International Dictionary of The English Language, Unabridged, copyright 1986, shall be considered as providing ordinary accepted meanings. Words in the singular include the plural and the plural the singular. Words used in the masculine gender include the feminine and the feminine the masculine.

(a) "Fresno Building Code" shall mean Article 1 of Chapter 11, Article 5 of Chapter 10 and Article 3 of Chapter 11 of the Fresno Municipal Code.

(b) "Board-up" is the temporary and interim measure to board-up building openings and secure the structure from unauthorized public entry. It is not considered compliance with a Notice and Order or correction of any violation.

(c) "Building Official" shall include the Building Official or any of his/her designated enforcement officials or authorized representatives, or charter official authorized to enforce violations of this code.

(d) "Congregate Residence" is any building or portion thereof which contains facilities for living, sleeping and sanitation, as required by this article, and may include facilities for eating and cooking, for occupancy by other than a family. A congregate residence may be a shelter, convent, monastery, dormitory, fraternity or sorority house but does not include jails, hospitals, nursing homes, hotels or lodging houses.

(e) "Efficiency Dwelling Unit" is a dwelling unit containing only one habitable room and meeting the requirements of Section 13-1100.402(b) exception.

(f) "Imminent Life Safety Hazard" shall mean any emergency situation involving physical safety or one that is reasonably certain to place life or limb in peril.

(g) "Hot Water" is hot water supplied to the plumbing fixtures at a temperature not less than 110° F. (43.3° C).

(h) "Lodging House" is any building or portion thereof containing not more than five guest rooms where rent is paid in money, goods, labor or otherwise.

(i) "Nuisance." The following shall be defined as nuisances:

(1) Any public nuisance known at common law or in equity jurisprudence.

(2) Any nuisance defined pursuant to Part 3 (Commencing with Section 3479) or Division 4 of the Civil Code.

(3) Any attractive nuisance which may prove detrimental to children whether in a building, on the premises of a building, or on an unoccupied lot. This includes any abandoned wells, shafts, basements or excavations; abandoned refrigerators and motor vehicles; or any structurally unsound fences or structures; or any lumber, trash, fences, debris or vegetation which may prove a hazard for inquisitive minors.

(4) Whatever is dangerous to human life or is detrimental to health.

(5) Overcrowding a room with occupants.

(6) Insufficient ventilation or illumination.

(7) Inadequate or unsanitary sewage or plumbing facilities.

(8) Uncleanliness, as determined by the Building Official.

(9) Whatever renders air, food or drink unwholesome or detrimental to the health of human beings.

(j) "Owner" and "Property Owner" shall mean the owner or owners of record of the subject property as shown on the latest equalized assessment roll of Fresno County, or as otherwise actually know to the Building Official.

(Added Ord. 97-69, § 2, eff. 1-4-98; Am. Ord. 2019-019, § 7, eff. 9-19-19).

SEC. 11-305. GENERAL.

(a) **Authority.** The Building Official is hereby authorized and directed to enforce all of the provisions of this article. For such purposes, the Building Official shall have the powers of a law enforcement officer.

The Building Official shall have the power to render interpretations of this article and to adopt and enforce rules and supplemental regulations in order to clarify the application of its provisions. Such article interpretations, rules and regulations shall be in conformity with the intent and purpose of this article.

(b) **Right of Entry.** The Building Official is authorized to enter upon any property or premises to ascertain whether provisions of this article or applicable state codes, regulations or ordinances are being obeyed, and to make examination and surveys as may be necessary in the performance of their duties. These may include taking photographs, video, samples or other physical evidence. All inspections, entries, examinations and surveys shall be done in a reasonable manner and with the consent of the owner, agent or occupant. If an owner, occupant or agent refuses permission to enter or inspect, the Building Official may seek an administrative warrant pursuant to the procedures provided for in Code of Civil Procedure Sections 1822.50 through 1822.59 to perform duties imposed upon the Building Official.

(c) **Responsibilities Defined.** Owners remain liable for violations of duties imposed by this article even though an obligation is also imposed on the occupants of the building, and even though the owner has, by agreement, imposed on the occupant the duty of furnishing required equipment or of complying with this article.

Building and structures and parts thereof shall not be maintained in unsafe or unsanitary conditions as specified in this article. The owner or the owner's designated agent shall be responsible for such maintenance. To determine compliance with this subsection, the building may be reinspected.

Owners, in addition to being responsible for maintaining buildings in a sound structural condition, shall be responsible for keeping that part of the building or premises which the owner occupies or controls in a clean, sanitary and safe condition, including the shared or public areas in a building containing two or more dwelling units.

Owners shall furnish and maintain such approved sanitary facilities as required by this article, the Fresno Building Code or other applicable state statutes and regulations and shall furnish and maintain approved devices, equipment or facilities for the prevention of insect and rodent infestation, and when infestation has taken place, shall be responsible for the extermination of any insects, rodents or other pests when such extermination is not specifically made the responsibility of the occupant by law or ruling, when required by this code, or the Building Official.

Occupants of a dwelling unit, in addition to being responsible for keeping in a clean, sanitary and safe condition that part of the dwelling or dwelling unit or premises which they occupy and control, shall dispose of their rubbish, garbage and other organic waste in a manner required by this article, or the Building Official.

Occupants shall furnish and maintain approved devices, equipment or facilities necessary to keep their premises safe and sanitary, when required by this article, or the Building Official. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-306. ABATEMENT OF SUBSTANDARD BUILDINGS.

All buildings or portions thereof which are determined, after inspection, by the Building Official to be Substandard as defined in this article are hereby declared to be public nuisances, and such nuisances shall be abated by repair, rehabilitation, demolition, or removal in accordance with the procedure specified in Section 11-327 of this article. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-307. VIOLATIONS.

(a) It shall be unlawful for any person, firm or corporation or other entity to erect, construct, enlarge, alter, repair, move, improve, remove, convert or demolish, equip, use, occupy or maintain any building or structure or cause or permit the same to be done in violation of this article. Each day that any building or lot is used, occupied or maintained contrary to any provisions of this article shall be deemed a separate offense.

(b) Violations deemed a threat to health and safety as defined in this Code or pursuant to Health and Safety Code Section 17920.3 shall be penalized as set forth in the Master Fee Schedule.

(c) Serial Violator.

(1) Definitions. For purpose of this section, the following terms shall be defined as follows:

(i) Property Owner shall mean a person or entity with an ownership interest in a property, and shall include all entities in which that person or entity has an ownership interest.

(ii) Citation shall be as defined in Section 1-308, whether resulting in bringing the property into compliance, a fine, or other remedy; Citation, for the purposes of this section alone, shall not include instances in which an issued citation results in the Property Owner prevailing upon an ultimate determination that there was no violation.

(2) Any Property Owner who receives at least one Citation for each of ten or more of its properties within a twelve month period shall be deemed a Serial Violator.

(3) Following the tenth Citation, each subsequent Citation of any type at any property owned by Property Owner shall be penalized as follows:

(i) $1,000 for the first violation.

(ii) $5,000 for the second violation.

(iii) $10,000 for the third and each subsequent violation, and/or, the City Attorney may prosecute the third and each subsequent violation as a misdemeanor, with the maximum penalties as provided in the Charter and this Municipal Code.

(4) A Property Owner shall be considered a Serial Violator until the Property Owner has completed a twelve month period with no Citations at any of its properties.

(Added Ord. 97-69, § 2, eff. 1-4-98; Am. Ord. 2016-38, § 2, eff. 10-20-16; Am. Ord. 2019-035, § 2, eff. 11-11-19).

SEC. 11-308. GENERAL.

No building or structure regulated by this article shall be erected, constructed, enlarged, altered, repaired, moved, improved, removed, converted or demolished without first obtaining all required permits and a separate permit for each building or structure from the Building Official in the manner and according to the applicable conditions prescribed in his code. Time periods set forth in this article Supersede all other time allotments ordinarily permitted under the provisions of the Fresno Building Code.

(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-309. PERMIT REQUIRED; FEES.

(a) Notwithstanding the requirements for the issuance of permits as provided for in Chapter 11 of the Fresno Municipal Code, building permits may be issued to owners of single-family dwellings for work required by a Notice and Order to repair, rehabilitate or demolish, issued pursuant to this article, provided all other subsections of Chapter 11 are satisfied and all required fees are paid as specified in the code.

(b) Inspection fees for annual inspections of hotels, motels, rooming houses, and large family day care facilities shall be set forth in the master fee resolution. The purpose and intent of the inspection fees are to cover the total city cost attributed to the inspection services provided by the city. Such fees are to cover one hundred percent of the cost of these services. The controller shall certify that these funds will be and are being used only for the above purpose and intent.

(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-310. INSPECTION.

Buildings or structures within the scope of this article and all construction or work for which a permit is required shall be subject to inspection by the Building Official in accordance with and in the manner provided by the Fresno Building Code.

(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-311. LOCATION ON PROPERTY.

All buildings shall be located with respect to property lines and to other buildings on the same property as required by the Fresno Building Code.

(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-312. YARDS AND COURTS.

(a) **Scope.** This section shall apply to yards and courts having required window openings therein.

(b) **Yards.** Every yard shall not be less than 3 feet (914 mm) in width for one-story and two-story buildings. For buildings more than two stories in height, the minimum width of the yard shall be increased at the rate of 1 foot (305 mm) for each additional story. Where yards completely surround the building, the required width may be reduced by 1 foot (305 mm). For buildings exceeding 14 stories in height, the required width of yard shall be computed on the basis of 14 stories.

(c) **Courts.** Every court shall not be less than 3 feet (14 mm) in width. Courts having windows opening on opposite sides shall not be less than 6 feet (1829 mm) in width. Courts bounded on three or more sides by the walls of the building shall not be less than 10 feet (3048 mm) in length unless bounded on one end by a public way or yard. For buildings more than two stories in height, the court shall be increased 1 foot (305 mm) in width and 2 feet (610 mm) in length for each additional story. For buildings exceeding 14 stories in height, the required dimensions shall be computed on the basis of 14 stories.

Adequate access shall be provided to the bottom of all courts for cleaning purposes. Every court more than two stories in height shall be provided with a horizontal air intake at the bottom not less than 10 square feet (0.93 m^2) in area and leading to the exterior of the building unless abutting a yard or public way. The construction of the air intake shall be as required for the court walls of the building, but in no case shall be less than one-hour fire-resistive.
(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-313. ROOM DIMENSIONS.

(a) **Ceiling Heights.** Habitable space shall have a ceiling height of not less than 7 feet 6 inches (2286 mm) except as otherwise permitted in this section. Kitchens, halls, bathrooms and toilet compartments may have a ceiling height of not less than 7 feet (2134 mm) measured to the lowest projection from the ceiling. Where exposed beam ceiling members are spaced at less than 48 inches (1219 mm) on center, ceiling height shall be measured to the bottom of these members. Where exposed beam ceiling members are spaced at 48 inches (1219 mm) or more on center, ceiling height shall be measured to the bottom of the desk supported by these members, provided that the bottom of the members is not less than 7 feet (2134 mm) above the floor.

If any room in a building has a sloping ceiling, the prescribed ceiling height for the room is required in only one-half the area thereof. No portion of the room measuring less than 5 feet (1524 mm) from the finished floor to the finished ceiling shall be included in any computation of the minimum area thereof.

If any room has a furred ceiling, the prescribed ceiling height is required in two-thirds the area thereof, but in no case shall the height of the furred ceiling be less than 7 feet (2134 mm).

(b) **Floor Area.** Dwelling units and congregate residences shall have at least one room which shall have not less than 120 square feet (11.2 m^2) of floor area. Other habitable rooms, except kitchens, shall have an area of not less than 70 square feet (6.5 m^2). Where more than two persons occupy a room used for sleeping purposes, the required floor area shall be increased at the rate of 50 square feet (4.65 m^2) for each occupant in excess of two.

Exceptions: Nothing in this section shall prohibit the use of an efficiency living unit within an apartment house meeting the following requirements:

(1) The unit shall have a living room of not less than 220 square feet (20.4 m^2) of superficial floor area. An additional 100 square feet (9.3 m^2) of superficial floor area shall be provided for each occupant of such unit in excess of two.

(2) The unit shall be provided with a separate closet.

(3) The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a clear working space of not less than 30 inches (762 mm) in front. Light and ventilation conforming to this article shall be provided.

(4) The unit shall be provided with a separate bathroom containing a water closet, lavatory and bathtub or shower.

(c) **Width.** No habitable room other than a kitchen shall be less then 7 feet (762 mm) in any dimension.

Each water closet stool shall be located in a clear space not less than 30 inches (76 mm) in width and a clear space in front of the water closet stool of not less than 24 inches (610 mm) shall be provided. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-314. LIGHT AND VENTILATION.

(a) **General.** For the purposes of determining the light or ventilation required by this section, any room may be considered as a portion of an adjoining room when one half of the area of the common wall is open and unobstructed and provides an opening of not less than one tenth of the floor area of the interior room or 25 square feet (2.3 m^2), whichever is greater.

Exterior openings for natural light or ventilation required by this section shall open directly onto a public way or a yard or court located on the same lot as the building.

Exceptions:

(1) Required windows may open into a roofed porch where the porch:

(i) Abuts a public way, yard, court; and

(ii) Has a ceiling height of not less than 7 feet (2134 mm); and

(iii) Has a longer side at least 65 percent open and obstructed.

(2) Skylights.

(b) **Lights.** Guest rooms and habitable rooms within a dwelling unit or congregate residence shall be provided with natural light by means of exterior glazed openings with an area not less than one tenth of the floor area of such rooms with a minimum of 10 square feet (0.93 m^2).

(c) **Ventilation.** Guest rooms and habitable rooms within a dwelling unit or congregate residence shall be provided with natural ventilation by means of openable exterior openings with an area of not less than one twentieth of the floor area of such rooms with a minimum of 5 square feet (0.46 m^2).

In lieu of required exterior openings for natural ventilation, a mechanical ventilating system may be provided. Such system shall be capable of providing two air changes per hour in all guest rooms, dormitories, habitable rooms and in public corridors. One fifth of the air supply shall be taken from the outside.

Bathrooms, water closet compartments, laundry rooms and similar rooms shall be provided with natural ventilation by means of openable exterior openings with an area not less than one twentieth of the floor area of such rooms with a minimum of 1½ square feet (0.14 m^2).

In lieu of required exterior openings for natural ventilation in bathrooms containing a bathtub or shower or combination thereof, laundry rooms, and similar rooms, a mechanical ventilation system connected directly to the outside capable of providing five air changes per hour shall be provided. The point of discharge of exhaust air shall be at least 3 feet (914 mm) from any opening into the building. Bathrooms which contain only a water closet or lavatory or combination thereof, and similar rooms may be ventilated with an approved mechanical recirculating fan or similar device designed to remove odors from the air.

(d) **Hallways.** All public hallways, stairs and other exitways shall be adequately lighted at all times in accordance with the Fresno Building Code. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-315. SANITATION.

(a) **Dwelling Units Lodging Houses and Congregate Residences.** Dwelling units, lodging houses and congregate residences shall be provided with a bathroom equipped with facilities consisting of a water closet, lavatory, and either a bathtub or shower.

(b) **Hotels.** Hotels or subdivisions thereof where both sexes are accommodated shall contain at least two separate toilet facilities which are conspicuously identified for male or female use, each of which contains at least one water closet.

Exceptions: Hotel guest rooms may have one unidentified toilet facility.

Additional water closets shall be provided on each floor for each sex at the rate of one for every additional 10 guests, or fractional part thereof, in excess of 10.

(c) **Kitchen.** Each dwelling unit shall be provided with a kitchen. Every kitchen shall be provided with a kitchen sink. Wooden sinks or sinks of similarly absorbent material shall not be permitted.

(d) **Fixtures.** All plumbing fixtures shall be connected to a sanitary sewer or to an approved private sewage disposal system. All plumbing fixtures shall be connected to an approved system of water supply and provided with hot and cold running water necessary for its normal operation.

All plumbing fixtures shall be of an approved glazed earthenware type or of a similarly nonabsorbent material.

(e) **Water Closet Compartments.** Walls and floors of water closet compartments, except in dwellings, shall be finished in accordance with this chapter and the Fresno Building Code.

(f) **Room Separations.** Every water closet, bathtub or shower required by this chapter and the Fresno Building Code shall be installed in a room which will afford privacy to the occupant.

(g) **Installation and Maintenance.** All sanitary facilities shall be installed and maintained in a safe and sanitary condition and in accordance with applicable requirements of the Plumbing Code. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-316. STRUCTURAL REQUIREMENTS.

SEC. 11-317. GENERAL.

(a) **General.** Buildings or structures may be of a type of construction permitted by the Fresno Building Code. Roofs, floors, walls, foundations and all other structural components of buildings shall be capable of resisting any and all forces and loads to which they may be subjected. All structural elements shall be proportioned and joined in accordance with the stress limitations and design criteria as specified in appropriate sections of the Fresno Building Code. Buildings of every permitted type of construction shall comply with the applicable requirements of the Fresno Building Code.

(b) **Shelter.** Every building shall be weather protected so as to provide shelter for the occupants against the elements and to exclude dampness.

(c) **Protection of Materials.** All wood shall be protected against termite damage and decay as provided in the Fresno Building Code. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-318. MECHANICAL REQUIREMENTS.

SEC. 11-319. HEATING AND VENTILATION.

(a) **Heating.** Dwelling units, guest rooms and congregate residences shall be provided with heating facilities capable of maintaining a room temperature of 70° F (21.1° C) at a point 3 feet (914 mm) above the floor in all habitable rooms. Such facilities shall be installed and

maintained in a safe condition and in accordance with Section 3102 of the Fresno Building Code, the Mechanical Code and all other applicable laws. Unvented fuel-burning heaters are not permitted. All heating devices or appliances shall be of an approved type.

(b) **Electrical Equipment.** All electrical equipment, wiring and appliances shall be installed and maintained in a safe manner in accordance with all applicable laws. All electrical equipment shall be of an approved type.

Where there is electrical power available within 300 feet (91.4 m) of any building, such building shall be connected to such electrical power.

Every habitable room shall contain at least two electrical convenience outlets or one convenience outlet and one electric light fixture. Every water closet compartment, bathroom, laundry room, furnace room and public hallway shall contain at least one electric light fixture.

(c) **Ventilation.** Ventilation for rooms and areas and for fuel-burning appliances shall be provided as required in the Fresno Building Code. Where mechanical ventilation is provided in lieu of the natural ventilation as required by Section 11-314 of this article, such mechanical ventilating system shall be maintained in operation during the occupancy of any building or portion. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-320. EXITS.

SEC. 11-321. GENERAL.

Dwelling units or guest rooms shall have access directly to the outside to a public corridor. All buildings or portions thereof shall be provided with exits, exitways and appurtenances as required by the Fresno Building Code.

Sleeping rooms below the fourth story shall have at least one operable window or exterior door approved for emergency escape or rescue. The units shall be operable from the inside to provide a full clear opening without the use of separate tools. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-322. FIRE PROTECTION.

SEC. 11-323. GENERAL.

All buildings or portions thereof shall be provided with the degree of fire-resistive construction as required by the Fresno Building Code for the appropriate occupancy, type of construction and location on property, and shall be provided with the appropriate fire-extinguishing systems or equipment required by the Fresno Building Code. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-324. SUBSTANDARD BUILDINGS.

Health and Safety Code section 17920.3 "substandard building" is hereby adopted by the City of Fresno. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-325. PROCEEDINGS FOR ENFORCEMENT.

Notwithstanding any other remedies available by law, whenever the Building Official has inspected or caused to be inspected any building and has determined that such building is a substandard building pursuant to this article, the Building Official may commence any of the following proceedings, to cause the repair, rehabilitation, vacation or demolition of the building:

(a) Issue a notice of violation; or

(b) Issue a Notice and Order; or

(c) Summarily abate; or

(d) Issue an administrative citation; or

(e) Request the City Attorney to institute legal action. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-326. NOTICE OF VIOLATION.

(a) The Building Official, in his/her discretion, may issue a notice of violation to the record owner of the property. This issuance of a notice of violation is not a prerequisite to any other action, including issuance of a Notice and Order. The notice of violation is a non-appealable warning with direction to correct the violation. The notice of violation shall include all of the following:

(1) Name of the property's record owner;

(2) Street address of the property in violation;

(3) The code section(s) in violation;

(4) A description of the property's condition which violates the applicable codes;

(5) A deadline or specific date to correct the violations listed in the notice of violation;

(6) Reference to the potential consequences should the property remain in violation after the expiration of the compliance deadline, including, but not limited to: administrative remedies; criminal prosecution; civil action; administrative abatement; civil penalties; revocation of permits; recordation of the notice of violation.

(b) Service of a notice of violation may be served upon the record owner by regular first class mail or personal service. Service is effective on the date of mailing, or personal service. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-327. NOTICE AND ORDER.

(a) **Issuance.** The Building Official may issue a Notice and Order. The Notice and Order shall contain:

(1) The street address and an assessors parcel number of the premises on which the building or structure is located, sufficient for identification;

(2) Reference to all code sections violated with a brief and concise description of the conditions found which render the building substandard under the terms of one or more sections of this code or any applicable state law.

(3) A statement of the required action to permanently correct outstanding violations, which may include any or all of the following measures:

(i) **Repair and Rehabilitation.** If the Building Official determines that the building or structure can be reasonably repaired, the Notice and Order shall establish that all required permits be obtained and work physically commenced within a reasonable time. The Notice and Order shall also establish a reasonable time to complete all repairs.

(ii) **Repair or Demolition.** If the Building Official determines that the building or structure cannot be repaired within the guidelines established in California Health and Safety Code Section 17980, the Notice and Order shall advise that all required permits be immediately obtained and that repair or demolition shall be commenced within a reasonable time. The Notice and Order shall also establish a reasonable time to complete the repairs or demolition.

(4) A statement enumerating the action that can be taken by the City should the responsible party fail to comply with the terms and deadlines as prescribed in the Notice and Order.

(5) A statement advising that any person having any record title or interest in the building may appeal any Notice and Order served, provided the appeal is made in writing, pursuant to Article 5 of Chapter 11 of this code, within 15 days of the service of the Notice and Order. Failure to file an appeal in accordance with this article shall constitute a waiver of the right to an administrative hearing and adjudication of the Notice and Order or any portion thereof.

(6) A statement advising the owner that in accordance with Sections 17274 and 24436.5 of the Revenue and Taxation Code, a tax deduction may not be allowed for interest, taxes, depreciation or amortization paid or incurred in the taxable year.

(b) **Service.**

(1) The Notice and Order, or any amended Notice and Order, shall be served on the following parties:

(i) The record owner of the property; and,

(ii) The holder of a mortgage, deed of trust or other lien on the property, if recorded or otherwise actually known to the Building Official at the time the Notice and Order is served.

(iii) If different than (i) or (ii) above, the tenant of any building or structure pursuant to California Health and Safety Code Section 17980(c).

(2) Service shall be completed in the following manner:

(i) Posting the notice conspicuously on or in front of the property; and,

(ii) Simultaneously, the same notice shall be sent by regular mail and certified mail (return receipt requested). If a notice that is sent by certified mail is returned unsigned, then service shall be deemed effective pursuant to regular mail, provided the notice that was sent by regular mail is not returned. Service by certified or regular mail in the manner described above shall be effective on the date of mailing. Tenants need not be served with Notice and Order under this subsection as posting of the building or structure under subsection (i) above is sufficient; or

(iii) Personal service;

(iv) If the Building Official is unable to effectively serve the Notice and Order as permitted under subsection (b)(2)(i) and (ii) or (iii) above, the Building Official may publish the Notice and Order in a newspaper of general circulation (as defined in Govt. Code § 6000), published in this jurisdiction. Publication of the Notice and Order pursuant to this section shall be for ten days. The period of notice commences upon the first day of publication and terminates at the end of the tenth day, including therein the first day. Publication shall be made on each day on which the newspaper is published during the period. Service is deemed complete on the last day of publication.

(3) The failure of any person with an interest in the property to receive any notice served in accordance with this section shall not affect the validity of any proceedings taken under this article.

(4) Proof of service of the Notice and Order shall be documented at the time of service by a declaration under penalty of perjury, executed by the person effecting service, declaring the time and manner in which service was made. If service is effectuated by certified mail, the declaration, together with any receipt card returned in acknowledgment of receipt by certified mail, shall be affixed to the copy of the Notice and Order retained by the Building Official.

(c) **Recording of Notice and Order.** At the time the Notice and Order is served the Building Official may record with the County Recorder a notice of pending administrative action. When the Notice and Order becomes final pursuant to 11-333(a), the Building Official shall file in the office of the County Recorder a certificate legally describing the property and certifying that the building is a substandard building and the owner has been so notified. Whenever the corrections ordered shall have been completed, or the Notice and Order reversed, modified or set aside by the Building Commission upon appeal, so that the building no longer exists as a substandard building on the property described in the certificate, the Building Official shall file a new certificate with the County Recorder that the building has been demolished or removed or is no longer substandard. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-328. SUMMARY ABATEMENT.

(a) Whenever the Building Official determines that an imminent life safety hazard exists that requires immediate correction or elimination, the Building Official may exercise the following powers without prior notice to the responsible person:

(1) Order the immediate vacation of any tenants and prohibit occupancy until all repairs are completed; and/or

(2) Post the premises as unsafe, substandard or dangerous; and/or

(3) Board, fence or secure the building or site until the building or structure is repaired, rehabilitated or demolished; and/or

(4) Demolish and grade that portion of the building or site to prevent further collapse and remove any hazard to the general public; and/or

(5) Make any minimal emergency repairs as necessary to eliminate any imminent life safety hazard; and/or

(6) Take any other action as appropriate under the circumstances.

(b) A Building Official shall pursue only the minimum level of correction or abatement as necessary to eliminate the immediacy of the hazard.

(c) Upon completion of the summary abatement, the Building Official shall notify the record owner of the property, the holder of any mortgage, deed of trust or other lien on the property, if recorded, or otherwise actually known to the Building Official, and any tenants of the building or structure, of the following:

(1) The building location;

(2) The condition of the property;

(3) The violations;

(4) Any action by the Building Official taken to summarily abate the imminent life safety hazard and the costs incurred therein;

(5) The right to appear at the hearing and object to the determination made and the summary action taken by the Building Official.

Service of the Notice shall be given in the same manner as Section 11-327(b). The notice shall set a hearing date before the City Hearing Officer, not sooner than 15 days from service, for the Building Official to establish that said building or structure was substandard and required the immediate action taken. If the Hearing Officer finds that there was not an imminent life safety hazard, or the action taken by the Building Official was more than necessary to eliminate the life safety hazard, the Hearing Officer shall order the property restored to its original condition or a condition which eliminates the imminent life safety hazard. If the property cannot be restored, the Hearing Officer shall continue the hearing for a period of not less than 30 days to allow both parties to gather and present evidence on the reasonable value of the property loss. Within 15 days of the conclusion of the continued hearing the Hearing Officer will, based on the evidence presented, file with the City Clerk's Office and mail a copy to Appellant and the Building Official, his/her findings of fact and decision to compensate the property owner or not and the monetary amount, if any, to be compensated. The City Council, shall, at its next scheduled hearing, after the filing of such findings of fact and decision with the City Council, or on a date to which the matter may have been continued by the Council, without taking evidence or hearing argument on behalf of either Appellant or

City, consider the findings of fact and decision of the Hearing Officer and either affirm, modify, modify with conditions or revoke the order. Notice in writing of the decision of the Council shall be mailed to Appellant, and filed with the Building Official and the City Attorney.

(d) The Building Official shall keep an itemized account of the expenses incurred by the city in removing or isolating such condition or conditions. The costs incurred by the city in summarily abating the violation may be recovered by the city pursuant to Chapter 1, Article 5 of this Code. (Added Ord. 97-69, § 2, eff. 1-4-98; Am. Ord. 2002-51, § 18, eff. 10-31-02).

SEC. 11-329. ADMINISTRATIVE CITATION.

The Building Official may issue an administrative citation pursuant to Section 1-308. Appeal of an administrative citation may be made pursuant to Chapter 1, Article 4. (Added Ord. 97-69, § 2, eff. 1-4-98; Am. Ord. 2005-14, § 45, eff. 4-9-05).

SEC. 11-330. APPEAL.

Any person entitled to service under subsection (b) of Section 11-327 may appeal from any Notice and Order of the Building Official pursuant to Section 11-501 within 15 days of service of the Notice and Order. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-331. CORRECTION/ABATEMENT OF VIOLATION.

Any violation of the Fresno Building Code may be corrected or abated as follows:

(a) Repair, alterations or additions requiring permits shall be repaired, altered or added in accordance with Section 3403 of the Fresno Building Code. Maintenance repairs not requiring permits may be completed in accordance with the applicable Code at the time of original construction.

(b) Demolition of the building or structure or portion thereof in violation.

(c) If the building or structure is vacant and does not constitute an immediate danger to life, limb, property or safety, it may be temporarily boarded and secured against entry pursuant to Section 11-335 of this article. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-332. VACATION OF IMMINENTLY DANGEROUS BUILDINGS.

(a) If the building or structure is in such condition as to make it immediately dangerous to the life, limb, property or safety of the public or of the occupants, it may be ordered to be vacated and secured, pursuant to this article.

(b) In deciding whether to require vacation and demolition of the building or structure or repair as necessary, the Building Official shall comply with the guidelines of Health and Safety Code Section 17980.

(c) If the building is ordered vacated, the Building Official shall post the building at each entrance thereto a notice reading:

DO NOT ENTER
UNSAFE TO OCCUPY
BUILDING OFFICIAL OF CITY OF FRESNO

It is a misdemeanor to occupy this building or to remove or deface this notice.

Fresno Municipal Code Section 11-332.

Whenever such notice is so posted, the Building Official shall include a notification thereof in the Notice and Order issued by him/her under Section 11-327 of this section, specifying the conditions which necessitate the posting. No person shall remain in or enter any building which has posted with a notice as prescribed in this subsection, except that entry may be made to repair, demolish, or remove such building or as otherwise permitted by the Building Official. No person shall remove or deface any such notice until the required repairs, demolition or removal has been completed and a certificate of occupancy issued pursuant to the provisions of the Fresno Building Code. (Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-333. FAILURE TO COMPLY WITH A FINAL ORDER.

(a) After any Notice and Order of the Building Official made pursuant to this article shall have become a final order, either by decision of the Building Commission affirming or modifying the same, or by failure to file an appeal within the time prescribed herein, no person or entity shall fail, neglect, or refuse to obey any such order. Any such person or entity who fails to comply with any such order is guilty of a misdemeanor.

(b) If, after any Notice and Order of the Building Official made pursuant to this article has become a final order, as described in Subsection (a) above, and the responsible party has failed to timely commence the corrections or failed to timely complete the corrections, as required by the final order, the Building Official may:

(1) Cause the building to be vacated by posting pursuant to subsection (c) until the repair or rehabilitation is complete or the building or structure demolished; and/or,

(2) Issue administrative citations pursuant to Section 1.105 et seq.; and/or

(3) Request the City Attorney to exercise his/her discretion in the alternative, or cumulatively, to institute court action; and/or,

(4) Proceed with administrative abatement by scheduling an administrative enforcement hearing, pursuant to subsection (d);

(5) Secure the building or structure against entry;

(c) If the Building Official proceeds under subsection (b)(1), the Building Official may cause the substandard building to be vacated by posting at each entrance thereto a notice reading:

SUBSTANDARD BUILDING
DO NOT OCCUPY
BUILDING OFFICIAL OF THE CITY OF FRESNO

It is a misdemeanor to occupy this building or to remove or deface this notice.

Fresno Municipal Code Section 11-424.

No person shall occupy any building which has posted. No person shall enter any building which has been posted except that entry may be made to repair, demolish, or remove such building or as otherwise permitted by the Building Official.

No person shall remove or deface any such notice until the repairs, demolition, or removal ordered by the Building Official have been completed and a certificate of occupancy issued pursuant to the provisions of the Fresno Building Code.

(d) If the Building Official elects to proceed with administrative abatement of such violation pursuant to subsection (b)(4), the Building Official shall schedule and notice an administrative abatement hearing under Chapter 1, Article 4. Notice of the hearing shall be served in the same manner as the Notice and Order. The Notice shall state how the city intends to abate the nuisance, i.e., demolition and that said abatement will be done at the expense of the owner. The notice shall direct the owner to appear before the City Hearing Officer and show cause why such building should not be found to be a nuisance and said nuisance be abated by the city, in the manner proposed by the city at the cost and expense of the record owner. The hearing shall be set no earlier than 15 calendar days from the date of service. The Hearing Officer shall be limited to considering evidence respecting the condition of said building or structure, the estimated cost of repair or rehabilitation and the estimated value of the building or structure, solely for the purpose of confirming, modifying or rejecting the Building Official's abatement procedure as set forth in the Notice and Order. The Hearing Officer shall consider and the order shall include a reflection on the economic feasibility or infeasibility of repair and consider the need for housing as expressed in the current housing element. The Hearing Officer shall then confirm, modify or reject the Building Official's proposal for administrative abatement. If the Hearing Officer confirms or modifies the Building Official's proposal for administrative abatement, the Hearing Officer shall issue an order directing the Building Official to proceed with administrative abatement as confirmed or modified at the owner's expense.

(e) Reserved.

(f) Recovery of Abatement Costs. The city shall recover the costs of abatement incurred under the provisions of this article, pursuant to Chapter 1, Article 5 of the Code.
(Added Ord. 97-69, § 2, eff. 1-4-98; Am. Ord. 2002-51, § 24, eff. 10-31-02; Am. Ord. 2005-14, §§ 17, 46, eff. 4-9-05).

SEC. 11-334. EXTENSIONS OF TIME.

(a) The Building Official shall have the discretionary power, to grant extensions of time to comply with the Notice and Order upon receipt of the following: (1) an application from a person required to conform to a Notice and Order and (2) a written agreement binding such person to comply with said order. The extension of time shall be granted only in 30-day increments, not to exceed an additional one hundred twenty days within which to complete said repair or rehabilitation. Such extension may be granted if the Building Official determines that said action will not create or perpetuate a situation imminently dangerous

to life or property. The Building Official's authority to extend time is limited to the physical repair, or rehabilitation of the premises and will not in any way affect or extend the time to appeal any Notice and Order.
(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-335. RESERVED.

Editor's note—Ord. 2015-11, § 4, effective June 19, 2015, amended the Code by repealing former § 11-335 in its entirety. Former § 11-335 pertained to standards for temporarily boarding a vacant building or structure, and derived from Ord. 97-69, effective January 4, 1998; and Ord. 2002-51, effective October 31, 2002.

SEC. 11-336. CONTINUOUS AUTHORITY TO BOARD AND SECURE.

If a vacant structure previously boarded and secured by the responsible party or the Building Official, pursuant to a Notice and Order or final order, becomes unsecured or open to unauthorized entry, the Building Official may, without further prior notice proceed to resecure the property at the expense of the owner. Costs incurred in resecuring may be recovered pursuant to this code.
(Added Ord. 97-69, § 2, eff. 1-4-98).

SEC. 11-337. REPAIR AND DEMOLITION FUND.

(a) There is hereby established a special revolving fund to be designated as the Repair and Demolition Fund. Payments shall be made out of said fund upon the demand of the Building Official or his/her authorized representative to defray the costs and expenses which may be incurred by the city in causing the necessary work of repair or demolition of substandard, unsafe or dangerous buildings.

(b) The Council may at any time transfer to the Repair and Demolition Fund, out of any money in the General Fund of the city such sums as it may deem necessary in order to expedite the performance of the work of repair or demolition, and any sum so transferred shall be deemed a loan to the Repair and Demolition Fund and shall be repaid out of the proceeds of any monies recovered under Chapter 1, Article 6 of this Code. All funds collected, either upon voluntary payments, as a result of the sale of property after delinquency, or any other method, shall be paid when collected to the Controller and Director of Finance, who shall place the same in the Repair and Demolition Fund.
(Am. Ord. 2002-51, § 26, eff. 10-31-02).

SEC. 11-338. TENANT RELOCATION BENEFITS FOLLOWING CITY ORDER TO VACATE DUE TO IMMEDIATE HEALTH AND SAFETY RISK.

(a) *Definitions.* For the purposes of this Section, the following definitions apply:

(1) "Displaced". A person is displaced, within the meaning of this Section, if the tenant is ordered to move out of a Residential Unit or structure by an order to vacate.

(2) "Owner" means the person or entity identified and listed as having title by the latest property tax assessment roll, maintained by the Fresno County Assessor.

(3) "Tenant" shall mean:

(i) any renter, subtenant, lessee, sublessee, or their dependents of a Residential Unit; or

(ii) any group of renters, tenants, subtenants, lessees, sublessees or any other person entitled to the use or occupancy of a Residential Unit; or

(iii) any person or his or her dependents who has occupied any of one or more units of a facility or complex for more than 30 days within a 60-day period with Owner consent; or

(iv) any person who has entered into a written lease agreement to reside in a facility or complex for longer than 30 days in a 60-day period; or

(v) any legal successor of any of the foregoing.

(4) "Residential Unit" means any dwelling, apartment, room, or place that is being used for residential purposes where rent is charged by the owner to the tenant, whether or not the residential use is a conforming use permitted under the Fresno Municipal Code.

(5) "Order to Vacate" means the first written notice by an authorized city official to the owner and posted on the affected property declaring that the Residential Unit or structure shall be vacated, either immediately or at a future specified date.

(6) "Vacation Date" means the date by which a tenant is required to vacate a Residential Unit or structure pursuant to an order by an authorized city official.

(b) *Relocation Benefits.* Any Tenant who is Displaced or subject to Displacement from a Residential Unit as a result of an Order to Vacate by an authorized city official as a result of a violation so extensive and of such a nature that the immediate health and safety of the resident(s) is endangered, shall be entitled to receive relocation benefits from the Owner as specified in California Health and Safety Code Section 17975-17975.10. Pursuant to Health and Safety Code Section 17975 *et seq.,* the city shall determine the Tenant's eligibility for relocation benefits. An Owner or designated agent may appeal the order to pay relocation benefits in the manner set forth in Chapter 1, Article 4, of the Fresno Municipal Code.

(c) *Tenant Caused Conditions.* No relocation benefits shall be payable to any tenant who has caused or substantially contributed to the condition giving rise to the Order to Vacate.

(d) *Natural Disasters.* An Owner or designated agent shall not be liable for relocation benefits if the city determines the Residential Unit or structure became unsafe or hazardous as the result of a fire, flood, earthquake, or other event beyond the control of the Owner or the designated agent and the Owner or designated agent did not cause or contribute to the condition.

(e) *Intra-Property Relocation.* The owner of a facility or complex shall, if safe and legal, make provisions with Tenant consent to relocate Displaced Tenants from one unit to another within a facility, to avoid displacement.

(f) *City Payment of Relocation.* In the event the Owner fails, neglects, or refuses to pay a Displaced Tenant relocation benefits pursuant to this Section the city may, from available funds, make payment of such relocation benefits as the City Attorney determines is necessary to assist the Displaced Tenant to relocate, up to the amount payable by the Owner as specified in California Health and Safety Code Section 17975-17975.10.

(1) Any Displaced Tenant who has vacated his or her premises based on the City's Order to Vacate the premises due to a violation so extensive and of such a nature that the immediate health and safety of the Tenant(s) is endangered may request relocation benefits are paid to him or her by the city. To be eligible for benefits hereunder, Displaced Tenants must be entitled to relocation benefits, and the Owner has failed to pay benefits due. Displaced Tenants shall apply to the City Attorney for benefits no later than fifteen days after the Vacation Date. The City Attorney shall take into consideration the amount needed by the Tenant to secure alternative housing and the Tenant's financial circumstances.

(2) Relocation benefits may be paid to the Tenant or on behalf of the Tenant at the sole discretion of the City Attorney. The City Attorney shall have sole discretion to determine the amount, type, and duration of the relocation benefits.

(3) The city shall be entitled to recover from the Owner any amount paid to a Tenant if the Owner would be required to pay pursuant to California Health and Safety Code Section 17975-17975.10. The city shall also be entitled to recover from the Owner an additional amount equal to one-half the amount so paid, not to exceed the amount set forth in Health and Safety Code Section 17975.5(a) as a penalty for failure to make timely payment of the Displaced Tenant and city's actual costs (including direct and indirect costs) of administering the provision of benefits to the Displaced Tenant.

(4) Any amounts paid by the city and any applicable penalties and administrative costs may also be made a personal obligation of the Owner and placed as a lien against the property, and/or a special assessment.

(5) The city shall prior to instituting any action to collect from the property owner or designated agent relocation benefits paid pursuant to this Section, or to impose a lien therefor, send to the Owner or designated agent by first-class mail, postage prepaid, at the Owner's address as shown on the last equalized assessment roll, an itemized accounting of all benefits paid by the city to the Owner's Tenants, and any penalties or costs the city is seeking to recover. If the Owner or designated agent wishes to appeal the city's accounting, an Owner or designated agent may appeal the order to pay relocation benefits in the manner set forth in Chapter 1, Article 4, of the Fresno Municipal Code and California Health and Safety Code section 17975.5(c). If the Owner fails to obtain a more favorable decision than that set forth in the itemized accounting, the Owner or designated agent shall be liable to the local enforcement

agency for the costs of the administrative hearing and appeal, not to exceed five thousand dollars. The failure to receive the itemized accounting shall not relieve the Owner of any obligation to the city or county.

(6) The city shall be entitled to recover relocation costs, administrative penalties and costs in the manner set forth in Chapter 1, Article 4 of this code.

(7) At the City Attorney's sole discretion, the city may pay relocation benefits to a Displaced Tenant who is displaced pursuant to a reason described in section (d) herein. These relocation benefits shall not be recovered from the Owner.

(8) Nothing contained in this article shall be construed to require the city to pay any relocation benefits to any Tenant, or assume any obligation, requirements, or duty of the Owner pursuant to this article.

(Added Ord. 2022-019, § 1, eff. 8-5-22).

ARTICLE 4 DANGEROUS BUILDING REGULATIONS

Sec. 11-401. Short Title.
Sec. 11-402. Purpose.
Sec. 11-403. Scope.
Sec. 11-404. Definitions.
Sec. 11-405. Enforcement and Inspection Authority.
Sec. 11-406. Abatement of Dangerous Buildings.
Sec. 11-407. Violations.
Sec. 11-408. Building Permit.
Sec. 11-409. Fees.
Sec. 11-410. Inspections.
Sec. 11-411. Dangerous Building.
Sec. 11-412. Proceedings for Enforcement.
Sec. 11-413. Notice of Violation.
Sec. 11-414. Notice and Order.
Sec. 11-415. Summary Abatement.
Sec. 11-416. Administrative Citation.
Sec. 11-417. Appeal.
Sec. 11-418. Repair, Rehabilitation Or Demolition.
Sec. 11-419. Vacation of Imminently Dangerous Buildings.
Sec. 11-420. Failure to Comply with a Final Order.
Sec. 11-421. Extension of Time.
Sec. 11-422. Reserved.
Sec. 11-423. Continuous Authority to Board and Secure.
Sec. 11-424. Interference With Repair Or Demolition Work Prohibited.
Sec. 11-425. Repair and Demolition Fund.

SEC. 11-401. SHORT TITLE.

This article shall be known and cited as the "Dangerous Building Ordinance." When used in this article, "this article" means the Dangerous Building Ordinance.
(Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-402. PURPOSE.

The Council finds that dangerous buildings or structures, as defined in this article, are a public nuisance by virtue of their condition or defects to the extent that life, health, property or safety of the public or their occupants are endangered. It is the purpose of the provisions of this article to provide a just, equitable, and practicable method, to be cumulative with and in addition to any other remedy under this Code or otherwise available at law, whereby buildings or structures which are dilapidated, unsafe, dangerous, unsanitary, or are a menace to the life, limb, health, property, safety and general welfare of the people of this city, or which tend to constitute a fire or health hazard, may be required to be repaired, vacated or demolished. The procedures established by this article are in addition to any other administrative, criminal or civil remedy established by law which may be pursued to address violations of the Municipal Code.
(Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-403. SCOPE.

(a) The provisions of this article shall apply to all buildings, as herein defined, which are now in existence or which may hereafter be constructed in the city.

(b) Alterations, Additions and Repairs. All buildings which are altered, added to, or repaired shall be subject to the provisions of the Fresno Building Code. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-404. DEFINITIONS.

For the purpose of this article, certain words, phrases, and terms, and their derivatives shall be construed as specified in either this section or as specified in the Fresno Building Code. Where terms are not defined, they shall have their ordinary accepted meanings within the context with which they are used. Webster's Third New International Dictionary of the English Language, Unabridged, copyright 1986, shall be construed as providing ordinary accepted meanings. Words used in the singular include the plural and the plural the singular. Words used in the masculine gender include the feminine and the feminine the masculine.

(a) "Abandoned" is any property over which the owner has given up dominion and control with no intention of recovering it.

(b) "Board-up" is the temporary and interim measure to board-up building openings and secure the structure from unauthorized public entry. It is not considered compliance with a Notice and Order or correction of any violation.

(c) "Building" is any structure used or intended for supporting or sheltering any use or occupancy.

(d) "Fresno Building Code" shall mean Article 1 of Chapter 11, Article 5 of Chapter 10 and Article 3 of Chapter 11 of the Fresno Municipal Code.

(e) "Building Official" shall include the Building Official or any of his/her designated enforcement officials or authorized representatives.

(f) "Commission" shall mean the Building Commission of the City of Fresno.

(g) "Dangerous building" is any building or structure deemed to be dangerous under the provisions of Section 11-411.

(h) "Fire Chief" is the chief officer of the fire department serving the jurisdiction or the chief officer's authorized representative.

(i) "Imminent Life Safety Hazard" shall mean any emergency situation involving physical safety, or one that is reasonably certain to place life or limb in peril.

(j) "Occupy" shall mean to use for human habitation, for living, sleeping, cooking, or eating purposes, or any combination thereof, or for the conduct of any business, profession, occupation, or calling, including storage of merchandise or materials of any kind. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-405. ENFORCEMENT AND INSPECTION.

(a) **Authority.** The Building Official is charged with enforcement of the provisions of this article. All of the powers and duties vested in the Building Official relating to the abatement of dangerous buildings pursuant to this article shall be exercised and performed by the Building Official. However, the Fresno Fire Chief shall have all of the duties conferred on him/her by the California Code of Regulations.

(b) The Fire Chief, or the Building Official shall make or cause to be made, such inspections of properties and reports thereon as the Building Official shall require to assist him/her in enforcement of the provisions of this article.

(c) **Right of Entry.** The Building Official is authorized to enter upon any property or premises to ascertain whether provisions of this article or applicable state codes, regulations or ordinances are being obeyed, and to make examination and surveys as may be necessary in the performance of their duties. These may include taking photographs, video, samples or other physical evidence. All inspections, entries, examinations and surveys shall be done in a reasonable manner and with the consent of the owner, agent or occupant. If an owner, occupant or agent refuses permission to enter or inspect, the Building Official may seek an administrative inspection warrant pursuant to the procedures provided for in Code of Civil Procedure Sections 1822.50 through 1822.59 to perform duty imposed upon the Building Official. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-406. ABATEMENT OF DANGEROUS BUILDINGS.

All buildings or portions thereof which are determined after inspection by the Building Official or Fire Chief to be dangerous as defined in this article are hereby declared to be public nuisances and shall be abated by repair, rehabilitation, or demolition in accordance with the procedure specified in Section 11-418 of this article. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-407. VIOLATIONS.

No person, firm, corporation, or other entity, whether as owner, lessee, sublessee, or occupant, shall erect, construct, enlarge, alter, repair, move, improve, remove, convert or demolish, equip, use, occupy, or maintain any building, structure, or lot, or cause or permit the same to be done, contrary to, or in violation of any of the provisions of this article, and each day that any building or lot is used, occupied, or maintained contrary to or in violation of any provision of this article shall be deemed a separate offense. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-408. BUILDING PERMIT.

No person shall erect, construct, enlarge, alter, repair, move, improve, remove, convert, or demolish any building or structure, or cause or permit the same to be done, without first obtaining required permits and a separate building permit for each such building or structure from the Building Official in the manner and according to the conditions prescribed in this

code. Time periods set forth in this article supersede all other time allotment ordinarily permitted under the provisions of the Fresno Building Code. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-409. FEES.

(a) Whenever a building permit is required by Section 11-408 of this article, the appropriate fees shall be paid to the City of Fresno as set forth in the Master Fee Resolution of the Fresno Municipal Code.

(b) **Other Fees.** Pursuant to Health and Safety Code Section 13146.2, a city, county or district which inspects a structure pursuant to Section 11-411 may charge and collect a fee for the inspection from the owner of the structure in an amount, as determined by the city, county or district, sufficient to pay its estimated responsible cost of providing the inspection service. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-410. INSPECTIONS.

All buildings or structures or equipment within the scope of this article and all construction or work for which a permit is required shall be subject to inspection by the Building Official in accordance with and in the manner provided by this article and the Fresno Building Code. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-411. DANGEROUS BUILDING.

(a) For the purpose of this article, any building or structure which has any or all of the conditions or defects hereinafter described shall be deemed a dangerous building.

(1) Whenever any door, aisle, passageway, stairway or other means of exit is not of sufficient width or size, or is not so arranged as to provide safe and adequate means of exit, in case of fire or panic,

(2) Whenever the walking surface of any aisle, passageway, stairway or other means of exit is so warped, worn, loose, torn or otherwise unsafe as to not provide safe and adequate means of exit in case of fire or panic.

(3) Whenever the stress in any materials, member or portion thereof, due to all dead and live loads, is more than one and one-half times the working stress or stresses allowed in the Fresno Building Code for new buildings of similar structure, purpose or location;

(4) Whenever any portion thereof has been damaged by fire, earthquake, wind, flood, or by any other cause, in such a manner that the structural strength or stability thereof is appreciably less than it was before such catastrophe and is less than the minimum requirements of the Fresno Building Code for a new building of similar structure, purpose or location.

EXCEPTION: Buildings registered on the National or Local Historic Buildings register may be constructed in accordance with California Code of Regulations, Title 24 Part 9, State Historical Building Code.

(5) Whenever any portion or member or appurtenance thereof is likely to fail, or to become detached or dislodged, or to collapse and thereby injure persons or damage property;

(6) Whenever any portion of a building, or any member, appurtenance or ornamentation on the exterior thereof is not of sufficient strength or stability, or is not so anchored, attached or fastened in place so as to be capable of resisting a wind pressure of one-half that specified in the Fresno Building Code for new buildings of similar structure, purpose-or location without exceeding the working stresses permitted in the Fresno Building Code for such buildings;

(7) Whenever any portion thereof has wracked, warped, buckled or settled to such an extent that walls or other structural portions have materially less resistance to winds or earthquakes than is required in the case of new construction;

(8) Whenever the building or structure, or any portion thereof, because of:

(i) Dilapidation, deterioration, decay,

(ii) Faulty construction,

(iii) The removal, movement or instability of any portion of the ground necessary for the purpose of supporting such building or portion thereof,

(iv) The deterioration, decay or inadequacy of its foundation; or

(v) Any other cause, is likely to partially or completely collapse, or some portion of the foundation or underpinning is likely to fall or give away;

(9) Whenever, for any reason whatsoever, the building or structure, or any portion thereof, is manifestly unsafe for the purpose for which it is used;

(10) Whenever the exterior walls or other vertical structural members list, lean or buckle to such an extent that a plumb line passing through the center of gravity does not fall inside the middle third of the base;

(11) Whenever the building or structure, exclusive of the foundation, shows thirty-three percent (33%) or more of damage or deterioration to the member or members, or fifty percent (50%) of damage or deterioration of a nonsupporting enclosing or outside wall or covering;

(12) Whenever the building or structure has been so damaged by fire, wind, earthquake or flood, or has become so dilapidated or deteriorated as to;

(i) Become an attractive nuisance; or

(ii) Become a harbor for vagrants, criminals or immoral persons; or

(iii) Enable persons to resort thereto for the purpose of committing nuisance or unlawful or immoral acts;

(13) Whenever any building or structure which has been constructed, or which now exists or is maintained in violation of any specific requirement or prohibition, applicable to

such building or structure, of the Fresno Building Code as defined in this article or of any law or ordinance of the state or city relating to the condition, location or structure of buildings;

(14) Whenever any building or structure which, whether or not erected in accordance with all applicable laws and ordinances, has in any non-supporting part, member or portion, less than fifty percent (50%), or in any supporting member less than sixty-six percent (66%):

(i) Strength;

(ii) Fire-resisting qualities or characteristics;

(iii) Weather-resisting qualities or characteristics required by law or ordinance in the case of a newly constructed building of like area, height and occupancy in the same location;

(15) Whenever a building or structure, used or intended to be used for dwelling purposes, because of inadequate maintenance, dilapidation, decay, damage, or faulty construction or arrangement, inadequate light, air or sanitation facilities, or otherwise, is unsanitary or unfit for human habitation or is in a condition that is likely to cause sickness or disease, or is likely to cause injury to the health, safety or general welfare of those living within;

(16) Whenever any building or structure by reason of obsolescence, dilapidated condition, deterioration, damage, inadequate exits, lack of sufficient fire-resistive construction, faulty electric wiring, gas connections, heating apparatus, or other cause, is in such condition as to be a fire hazard and is so situated as to endanger life or other buildings or property in the vicinity or provide a ready fuel supply to augment the spread and intensity of fire arising from any cause;

(17) Whenever any building or structure is in such a condition as to constitute an attractive or public nuisance known to the common law or in equity jurisprudence;

(18) Whenever any portion of a building or structure remains on a site after the demolition or destruction of the building or structure;

(19) Whenever any building or structure is determined by the Building Official to be abandoned so as to constitute such building or portion thereof an attractive or public nuisance or hazard to the public. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-412. PROCEEDINGS FOR ENFORCEMENT.

Notwithstanding any other remedies available by law, whenever the Building Official or Fire Chief has inspected or caused to be inspected any building and has determined that such building is a dangerous building pursuant to this article or any state statute, ordinance or regulation, the Building Official may commence any of the following proceedings, to cause the repair, rehabilitation, vacation or demolition of the building:

(a) Issue a notice of violation; or

(b) Issue a Notice and Order; or

(c) Summarily abate; or

(d) Issue an administrative citation; or

(e) Request the City Attorney to institute legal action. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-413. NOTICE OF VIOLATION.

(a) The Building Official, in his/her discretion, may issue a notice of violation to the record owner of the property. The issuance of a notice of violation is not a prerequisite to any other action including issuance of a Notice and Order. The notice of violation is a non-appealable warning with direction to correct the violation. The notice of violation shall include all of the following:

(1) Name of the property's record owner;

(2) Street address of the property in violation;

(3) The code section(s) in violation;

(4) A description of the property's condition which violates the applicable codes;

(5) A deadline or specific date to correct the violations listed in the notice of violation;

(6) Reference to the potential consequences should the property remain in violation after the expiration of the compliance deadline, including, but not limited to: administrative remedies; criminal prosecution; civil action; administrative abatement; civil penalties; revocation of permits; recordation of the notice of violation.

(b) Service of a notice of violation may be served upon the record owner by regular first class mail or personal service. Service is effective on the date of mailing, or personal service. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-414. NOTICE AND ORDER.

(a) **Issuance.** The Building Official may issue a Notice and Order. The Notice and Order shall contain:

(1) The street address and assessors parcel number of the premises on which the building or structure is located, sufficient for identification;

(2) Reference to all code sections violated with a brief and concise description of the conditions found which render the building dangerous under the terms of one or more sections of this code or any applicable state law.

(3) A statement of the required action to permanently correct outstanding violations, which may include any or all of the following measures:

(i) **Repair and Rehabilitation.** If the Building Official determines that the building or structure can be reasonably repaired, the Notice and Order shall advise that all required permits be obtained and work physically commenced within a reasonable time. The Notice and Order shall also establish a reasonable time to complete all repairs.

(ii) **Repair or Demolition.** If the Building Official determines that the building or structure cannot be economically feasibly repaired, the Notice and Order shall advise that all required permits be immediately obtained and that repair or demolition shall be commenced within a reasonable time. The Notice and Order shall also establish a reasonable time to complete the repair or demolition.

(4) A statement enumerating the action that can be taken by the city should the responsible party fail to comply with the terms and deadlines as prescribed in the Notice and Order.

(5) A statement advising that any person having any record title or interest in the building may appeal any Notice and Order served, provided the appeal is made in writing, pursuant to Article 5 of Chapter 11 of this code, within 15 days of the service of the Notice and Order. Failure to file an appeal in accordance with this article shall constitute a waiver of the right to an administrative hearing and adjudication of the Notice and Order or any portion thereof.

(6) If the building is used or intended to be used for dwelling purposes, a statement advising the owner that in accordance with sections 17274 and 24436.5 of the Revenue and Taxation Code, a tax deduction may not be allowed for interest, taxes, depreciation or amortization paid or incurred in the taxable year.

(b) **Service.**

(1) The Notice and Order, or any amended Notice and Order, shall be served on the following parties:

(i) The record owner of the property; and,

(ii) The holder of a mortgage holder, deed of trust or other lien holder on the property, if recorded or otherwise actually known to the Building Official at the time the Notice and Order is served.

(iii) If different than (i) or (ii) above, the tenant of any building or structure pursuant to California Health and Safety Code Section 17980(c).

(2) Service shall be completed in the following manner:

(i) Posting the notice conspicuously on or in front of the property; and,

(ii) Simultaneously, the same notice shall be sent by regular mail and certified mail (return receipt requested). If a notice that is sent by certified mail is returned unsigned, then service shall be deemed effective pursuant to regular mail, provided the notice that was sent by regular mail is not returned. Service by certified or regular mail in the manner described above shall be effective on the date of mailing. Tenants do not need to be served with Notice and Order under this subsection, posting of the building or structure under subsection (i) above is sufficient; or

(iii) Personal service;

(iv) If the Building Official is unable to effectively serve the Notice and Order as permitted under subsection (b)(2)(i), (ii) or (iii) above, the Building Official may publish

the Notice and Order in a newspaper of general circulation (as defined in Govt. Code § 6000), published in this jurisdiction. Publication of the Notice and Order pursuant to this section shall be for ten days. The period of notice commences upon the first day of publication and terminates at the end of the tenth day, including therein the first day. Publication shall be made on each day on which the newspaper is published during the period. Service is deemed complete on the last day of publication.

(3) The failure of any person with an interest in the property to receive any notice served in accordance with this section shall not affect the validity of any proceedings taken under this article.

(4) Proof of service of the Notice and Order shall be documented at the time of service by a declaration under penalty of perjury, executed by the person effecting service, declaring the time and manner in which service was made. If service is effectuated by certified mail, the declaration, together with any receipt card returned in acknowledgment of receipt by certified mail, shall be affixed to the copy of the Notice and Order retained by the Building Official.

(c) Recording of Notice and Order. At the time the Notice and Order is served the Building Official may record with the County Recorder a notice of pending administrative action. When the Notice and Order becomes final pursuant to Section 11-420(a), the Building Official shall file in the office of the County Recorder a certificate legally describing the property and certifying that the building is a dangerous building and the owner has been so notified. Whenever the corrections ordered shall have been completed, or the Notice and Order reversed, modified or set aside by the Building Commission upon appeal, so that the building no longer exists as a dangerous building on the property described in the certificate, the Building Official shall file a new certificate with the County Recorder that the building has been demolished or removed or is no longer dangerous. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-415. SUMMARY ABATEMENT.

(a) Whenever the Building Official or Fire Chief determines that an imminent life safety hazard exists that requires immediate correction or elimination, the Building Official or Fire Chief may exercise the following powers without prior notice to the responsible person:

(1) Order the immediate vacation of any tenants and prohibit occupancy until all repairs are completed; and/or

(2) Post the premises as unsafe, substandard or dangerous; and/or

(3) Board, fence or secure the building or site until the building or structure is repaired, rehabilitated or demolished; and/or

(4) Demolish and grade that portion of the building or site to prevent further collapse and remove any hazard to the general public; and/or

(5) Make any minimal emergency repairs as necessary to eliminate any imminent life safety hazard; and/or

(6) Take any other action as appropriate under the circumstances.

(b) The Building Official or Fire Chief shall pursue only the minimum level of correction or abatement as necessary to eliminate the immediacy of the hazard.

(c) Upon completion of the summary abatement, the Building Official shall notify the record owner of the property, the holder of any mortgage, deed of trust or other lien on the property, if recorded, or otherwise actually known to the Building Official, and any tenants of the building or structure, of the following:

(1) Location of property,

(2) Condition of the property,

(3) The violations, and

(4) Any action by the Building Official or Fire Chief taken to summarily abate the imminent life safety hazard and the costs incurred therein;

(5) The right to appear at the hearing and object to the determination made and the summary action taken by the Building Official or the Fire Chief.

Service of the notice shall be given in the same manner as provided in Section 11-414. The notice shall set a hearing date before the City Hearing Officer, not sooner than 15 days from service, for the Building Official or Fire Chief to establish that said building or structure was dangerous and required the immediate action taken. If the Hearing Officer finds that there was not an imminent life safety hazard, or the action taken by the Building Official or Fire Chief was more than necessary to eliminate the life safety hazard, the Hearing Officer shall order the property restored to its original condition or a condition which eliminates the imminent life safety hazard. If the property cannot be restored, the Hearing Officer shall continue the hearing for a period of not less than 30 days to allow both parties to gather and present evidence on the reasonable value of the property loss. Within 15 days of the conclusion of the continued hearing the Hearing Officer will, based on the evidence presented, file with the City Clerk's office and mail a copy to appellant and the Building Official, his/her findings of fact and decision to compensate the property owner or not and the monetary amount, if any, to be compensated. The City Council, shall, at its next scheduled hearing, after the filing of such findings of fact and decision with the City Council, or on a date to which the matter may have been continued by the Council, without taking evidence or hearing argument on behalf of either Appellant or City, consider the findings of fact and decision of the Hearing Officer and either affirm, modify, modify with conditions or revoke the order. Notice in writing of the decision of the Council shall be mailed to Appellant, and filed with the Building Official and the City Attorney.

(d) The Building Official shall keep an itemized account of the expenses incurred by the city in removing or isolating such condition or conditions. The costs incurred by the city in summarily abating the violation may be recovered by the city pursuant to Chapter 1, Article 5 of this Code. (Added Ord. 97-70, § 2, eff. 1-4-98; Am. Ord. 2002-51, § 20, eff. 10-31-02).

SEC. 11-416. ADMINISTRATIVE CITATION.

The Building Official may issue an administrative citation pursuant to Section 1-308. Appeal of an administrative citation may be made pursuant to Chapter 1, Article 4. (Added Ord. 97-70, § 2, eff. 1-4-98; Am. Ord. 2005-14, § 47, eff. 4-9-05).

SEC. 11-417. APPEAL.

Any person entitled to service under subsection (b) of Section 11-414 may appeal from any Notice and Order of the Building Official pursuant to Section 11-501 within 15 days of service of the Notice and Order. (Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-418. REPAIR, REHABILITATION, OR DEMOLITION.

(a) The building shall be repaired in accordance with the current Fresno Building Code or other current code applicable to the type of dangerous conditions requiring repair; or

(b) The building shall be demolished at the option of the building owner; or

(c) If the building or structure is vacant and does not constitute an imminent danger to life, limb, property or safety, it shall be boarded and temporarily secured against entry pursuant to Section 11-422 of this article.

(d) The building or structure may be posted with a placard(s) by the Fire Chief for the purpose of notifying Fire Department personnel of any potential dangers posed by the building or structure or any other requirements, restrictions or limitations for safely fighting a fire involving the building or structure. (Added Ord. 97-70, § 2, eff. 1-4-98; Am. Ord. 2004-133, § 1, 1-18-05).

SEC. 11-419. VACATION OF IMMINENTLY DANGEROUS BUILDING.

(a) If the building or structure is in such condition as to make it immediately dangerous to the life, limb, property or safety of the public or of the occupants, the Building Official may order the building or structure to be vacated and secured, pursuant to Section 11-422.

(b) If the building is ordered vacated, the Building Official shall post the building at each entrance thereto a notice reading:

DO NOT ENTER
UNSAFE TO OCCUPY
BUILDING OFFICIAL OF CITY OF FRESNO

It is a misdemeanor to occupy this building or to remove or deface this notice.

Fresno Municipal Code Section 11-419.

Whenever such notice is so posted, the Building Official shall include a notification thereof in the Notice and Order issued by him/her under section 11-414 of this section, specifying the conditions which necessitate the posting. No person shall remain in or enter any building which has posted at each entrance door thereof a notice as prescribed in this subsection, except

that entry may be made to repair, demolish, or remove such building or as otherwise permitted by the Building Official. No person shall remove or deface any such notice until the required repairs, demolition or removal has been completed and a certificate of occupancy issued pursuant to the provisions of the Fresno Municipal Code.
(Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-420. FAILURE TO COMPLY WITH A FINAL ORDER.

(a) After any Notice and Order of the Building Official made pursuant to this article shall have become a final order, either by decision of the Building Commission affirming or modifying the same, or by failure to file an appeal within the time prescribed herein, no person or entity shall fail, neglect, or refuse to obey any such order. Any such person or entity who fails to comply with any such order is guilty of a misdemeanor.

(b) If, after any Notice and Order of the Building Official made pursuant to this article has become a final order, as described in subsection (a) above, and the responsible party has failed to timely commence the corrections or failed to timely complete the corrections, as required by the final order, the Building Official may:

(1) Cause the building to be vacated by posting pursuant to subsection (c) until the repair or rehabilitation is complete or the building or structure demolished; and/or,

(2) Issue administrative citations pursuant to Section 1.105 et seq.; and/or

(3) Request the City Attorney to exercise his/her discretion in the alternative, or cumulatively, to institute court action; and/or,

(4) Proceed with administrative abatement.

(i) By scheduling an administrative enforcement hearing, pursuant to subsection (d);

(5) Secure the building against entry.

(c) If the Building Official proceeds under subsection (b)(1), the Building Official may cause the dangerous building to be vacated by posting at each entrance thereto a notice reading:

DANGEROUS BUILDING
DO NOT OCCUPY
BUILDING OFFICIAL OF THE CITY OF FRESNO

It is a misdemeanor to occupy this building or to remove or deface this notice

Fresno Municipal Code Section 11-420.

No person shall occupy any building which has posted. No person shall enter any building which has been posted except that entry may be made to repair, demolish, or remove such building or as otherwise permitted by the Building Official.

No person shall remove or deface any such notice until the repairs, demolition, or removal ordered by the Building Official have been completed and a certificate of occupancy issued pursuant to the provisions of Fresno Building Code.

(d) If the Building Official elects to proceed with administrative abatement of such violation pursuant to subsection (b)(4), the Building Official shall notice an administrative enforcement hearing under Chapter 1, Article 4. Notice of the hearing shall be served in the same manner as the Notice and Order. The notice shall direct the owner to appear before the City Hearing Officer and show cause why such building should not be found to be a nuisance and said nuisance be abated by demolishing the building or structure. The hearing shall be set no earlier than 15 calendar days from the date of service. The Hearing Officer shall be limited to considering evidence respecting the condition of said building or structure, the estimated cost of repair or rehabilitation and the estimated value of the building or structure, solely for the purpose of confirming, modifying or rejecting the Building Official's abatement procedure as set forth in the Notice and Order. The Hearing Officer shall consider and the order shall include a reflection on the economic feasibility or infeasibility of repair. The Hearing Officer shall confirm, modify or reject the Building Official's proposal for administrative abatement. If the Hearing Officer confirms or modifies the Building Official's proposal for administrative abatement, the Hearing Officer shall issue an order directing the Building Official to proceed with administrative abatement as confirmed or modified, at the owner's expense.

(e) Reserved.

(f) Recovery of Abatement Costs. The city shall recover the costs of abatement incurred under the provisions of this article, pursuant to Chapter 1, Article 5 of the Code.
(Added Ord. 97-70, § 2, eff. 1-4-98; Am. Ord. 2002-51, § 26, eff. 10-31-02; Am. Ord. 2005-14, §§ 18, 48, eff. 4-9-05).

SEC. 11-421. EXTENSION OF TIME.

(a) The Building Official shall have the discretionary power, to grant an extension of time to comply with the Notice and Order upon receipt of the following: (1) an application from a person required to conform to a Notice and Order and (2) a written agreement binding such person to comply with said order. The extension of time shall be granted in 30-day increments not exceed an additional one hundred eighty (180) days within which to complete said repair or rehabilitation. Such extension may be granted if the Building Official determines that said action will not create or perpetuate a situation imminently dangerous to life or property. The Building Official's authority to extend time is limited to the physical repair, or rehabilitation of the premises and will not in any way affect or extend the time to appeal any Notice and Order.
(Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-422. RESERVED

Editor's note—Ord. 2015-11, § 5, effective June 19, 2015, amended the Code by repealing former § 11-422 in its entirety. Former § 11-422 pertained to standards for temporarily boarding a vacant building or structure, and derived from Ord. 97-70, effective January 4, 1998; and Ord. 2002-51, effective October 31, 2002.

SEC. 11-423. CONTINUOUS AUTHORITY TO BOARD AND SECURE.

If a vacant structure previously boarded and secured by the responsible party or the Building Official, pursuant to a Notice and Order or final order, becomes unsecured or open to unauthorized entry, the Building Official may, without further prior notice proceed to resecure the property at the expense of the owner. Costs incurred in resecuring may be recovered pursuant to this code.
(Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-424. INTERFERENCE WITH REPAIR OR DEMOLITION WORK PROHIBITED.

No person shall obstruct, impede or interfere with any officer, employee, contractor or authorized representative of the city, or with any person who owns or holds any estate or interest in any building which has been ordered by the Building Official to be repaired, vacated and repaired, demolished or removed, or with any person to whom such building has been lawfully sold pursuant to the provisions of this article, whenever such officer, employee, contractor or authorized representative of the city, person having an interest or estate in such building or structure, or purchaser is engaged in the work of repairing, vacating and repairing, or demolishing any such building, pursuant to the provisions of this article, or in performing any necessary act preliminary to or incidental to such work or authorized or directed pursuant to this article.
(Added Ord. 97-70, § 2, eff. 1-4-98).

SEC. 11-425. REPAIR AND DEMOLITION FUND.

(a) Payments for repair or demolition work made pursuant to this article shall be made out of the Repair and Demolition Fund, created pursuant to Section 11-337, upon the demand of the Building Official or his/her authorized representative.

(b) The Council may at any time transfer to the Repair and Demolition Fund, out of any money in the General Fund of the city such sums as it may deem necessary in order to expedite the performance of the work of repair or demolition under this Article, and any sum so transferred shall be deemed a loan to the Repair and Demolition Fund and shall be repaid out of the proceeds of any monies recovered under Chapter 1, Article 5 of this Code. All funds collected, either upon voluntary payments, as a result of the sale of property after delinquency, or any other method, shall be paid when collected to the Controller and Director of Finance, who shall place the same in the Repair and Demolition Fund.
(Added Ord. 2002-51, § 27, eff. 10-31-02).

ARTICLE 5 APPEALS

Sec. 11-501. Short Title.
Sec. 11-502. Purpose.
Sec. 11-503. Scope.
Sec. 11-504. Building Standards Appeals Board.
Sec. 11-505. Effect of Failure to Appeal.

SEC. 11-501. SHORT TITLE.

This article shall be known and cited as the "Appeals Code." When used in this article "this article" means the Appeals Code. (Added Ord. 97-71, § 1, 1-4-98).

SEC. 11-502. PURPOSE.

The purpose of this article is to establish a uniform and consistent procedure for appeals from Notice and Orders served for violations of the Fresno Housing Regulations and the Dangerous Building Ordinance. (Added Ord. 97-71, § 1, 1-4-98).

SEC. 11-503. SCOPE.

The provisions of this code shall apply to appeals from Notice and Orders served pursuant to Chapter 11, Article 3 and Chapter 11, Article 4 of the Fresno Municipal Code. (Added Ord. 97-71, § 1, 1-4-98).

SEC. 11-504. BUILDING STANDARDS APPEALS BOARD.

(a) **General.** In order to hear and decide appeals of orders, decisions or determinations made by the Building Official and/or Code Enforcement relative to the application and interpretations of the Housing Regulations (Chapter 11, Article 3) or the Dangerous Building Ordinance (Chapter 11, Article 4), there shall be and is hereby created a Building Standards Appeals Board consisting of members who are qualified by experience and training to pass upon matters pertaining to building construction and who are not employees of the jurisdiction. The Building Official shall be an ex officio member and shall act as secretary to said Board but shall have no vote upon any matter before the Board. The Building Standards Appeals Board shall be appointed by the Mayor and ratified by the governing body and shall hold office in four-year terms. Appeals to the Board shall be processed in accordance with Chapter 1, Article 4 of this Code and any Bylaws adopted by the Building Standards Appeals Board. If appointments to the Building Standards Appeals Board have not been made or the Building Standards Appeals Board is deemed to be inactive, all appeals of orders, decisions, or determinations made by the Building Official relative to the application and interpretations of the Housing Regulations (Chapter 11, Article 3) or the Dangerous Building Ordinance (Chapter 11, Article 4) shall by heard by the Hearing Officer pursuant to Chapter 1, Article 4.

(b) **Limitations of Authority.** The Building Standards Appeals Board shall have no authority relative to interpretations of the administrative provisions of this article nor shall the Building Standards Appeals Board be empowered to waive requirements of any provisions of the Fresno Municipal Code.
(Added Ord. 97-71, § 1, 1-4-98; Ord. No. 2014-27, § 1, eff. 7-19-14; Am. Ord. 2025-020, § 1, eff. 7-18-25).

Editor's note—Ord. 2025-020, § 1, effective July 18, 2025, amended the title of § 11-504 to read as herein set out. The former § 11-504 title pertained to Building Commission.

SEC. 11-505. EFFECT OF FAILURE TO APPEAL.

Failure of any person to file an appeal in accordance with the provisions of this article shall constitute a waiver of the right to an administrative hearing and adjudication of the Notice and Order or portion thereof. The provisions of this notice and order will become final.
(Added Ord. 97-71, § 1, 1-4-98; Am. Ord. 2025-020, § 1, eff. 7-18-25).

Editor's note—Am. Ord. 2025-020, § 1, effective July 18, 2025, repealed §§ 11-505—11-509, which pertained to appeals and derived from Ord. 97-71, § 1, effective January 4, 1998. Subsequently, Ord. 2025-020, § 1, effective July 18, 2025, renumbered the former § 11-510 as § 11-505. The historical notation has been retained with the amended provisions for reference purposes.

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ARTICLE 6 FRESNO FLOOD PLAIN ORDINANCE

Sec. 11-601. Statutory Authorization.
Sec. 11-602. Findings of Fact.
Sec. 11-603. Statement of Purpose.
Sec. 11-604. Methods of Reducing Flood Losses.
Sec. 11-605. Definitions.
Sec. 11-606. Lands to Which this Ordinance Applies.
Sec. 11-607. Basis for Establishing the Areas of Special Flood Hazard.
Sec. 11-608. Compliance.
Sec. 11-609. Greater Restrictions.
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Sec. 11-613. Establishment of Development Permit.
Sec. 11-614. Designation of the Flood Plain Administrator.
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Sec. 11-627. Residential Construction.
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Sec. 11-637. Nature of Variances.
Sec. 11-638. Appeals Board.
Sec. 11-639. Written Notice.
Sec. 11-640. Record of Variances.
Sec. 11-641. Conditions of Variances.

SEC. 11-601. STATUTORY AUTHORIZATION.

The Legislature of the State of California has in Government Code Sections 65302, 65560, and 65800 conferred upon local governments the authority to adopt regulations designed to promote the public health, safety, and general welfare of its citizenry. Therefore, the Council of the City of Fresno does hereby adopt the following floodplain management regulations.
(Added Ord. 2014-15, § 2, eff. 4-18-14).

Editor's note—Ord. No. 2014-15, § 1, effective April 18, 2014, amended the Code by repealing former § 11-601 and adding a new § 11-601. Former § 11-601 pertained to the title of this article, and derived from Ord. 2005-102, effective September 20, 2005; and Ord. 2007-92, effective January 17, 2008.

SEC. 11-602. FINDINGS OF FACT.

(a) The flood hazard areas of the City of Fresno are subject to periodic inundation which could result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the public health, safety and general welfare.

(b) These flood losses are caused either by encroachment of development into areas of special flood hazard or by the cumulative effect of obstructions in those areas. This in turn results in increased flood heights and velocities, and displaces flood flows onto lands not otherwise subject to special flood hazard. Such flood losses also occur when such developments are inadequately flood proofed, elevated or otherwise protected from flood damage. Inadequately anchored development can result in damage to uses in other areas.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-603. STATEMENT OF PURPOSE.

It is the purpose of this article to promote the public health, safety and general welfare, and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

(a) Protect human life and health;

(b) Minimize expenditure of public money for costly flood control projects;

(c) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

(d) Minimize prolonged business interruptions;

(e) Minimize damage to public facilities and utilities such as water and gas mains; electric, telephone and sewer lines; and street and bridges located in areas of special flood hazard;

(f) Help maintain a stable tax base by providing for the sound use and development of areas of special flood hazard so as to minimize future blighted areas caused by flood damage;

(g) Ensure that potential buyers are notified that property is in an area of flood hazard; and

(h) Ensure that those who occupy the areas of special flood hazard assume responsibility for their actions.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-604. METHODS OF REDUCING FLOOD LOSSES.

In order to accomplish its purposes, this ordinance includes methods and provisions to:

(a) Restrict or prohibit uses which are dangerous to health, safety, and property due to water or erosion hazards, or which result in damaging increases in erosion or flood heights or velocities;

(b) Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

(c) Control filling, grading, dredging, and other development which may increase flood damage;

(d) Prevent or regulate the construction of flood barriers which will unnaturally divert flood water or which may increase flood hazards in other areas; and

(e) Control the alteration of natural flood plains, stream channels, and natural protective barriers, which help accommodate or channel flood waters.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-605. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Appeal" means a request for a review of the Flood Plain Administrator's interpretation of any provision of this article.

"Area of Shallow Flooding" means a designated AO or AH Zone on the Flood Insurance Rate Map (FIRM). The base flood depths range from one to three feet; a clearly defined channel does not exist; the path of flooding is unpredictable and indeterminate; and velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

"Area of Special Flood Hazard" - See "Special flood hazard area."

(b) "Base Flood" means a flood which has a one percent chance of being equaled or exceeded in any given year (also called the "100-year flood"). Base flood is the term used throughout this article.

"Basement" means any area of the building having its floor sub grade - i.e., below ground level on all sides.

"Building" - see "Structure".

(c) (Reserved.)

(d) "Development" means any man-made change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

(e) "Encroachment" means the advance or infringement of uses, plant growth, fill, excavation, buildings, permanent structures or development into a flood plain which may impede or alter the flow capacity of a flood plain.

"Existing manufactured home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before April 15, 1983.

"Expansion to an existing manufactured home park or subdivision" means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

(f) "Flood, Flooding, or Flood Water" means:

(1) A general and temporary condition of partial or complete inundation of normally dry land areas from the overflow of inland waters; the unusual and rapid accumulation or runoff of surface waters from any source; and/or

(2) The condition resulting from flood related erosion — see "Flood related erosion".

"Flood Boundary and Floodway Map (FBFM)" means the official map on which the Federal Emergency Management Agency or Federal Insurance Administration has delineated both the areas of special flood hazards and the floodway.

"Flood Hazard Boundary Map (FHBM)" means the official map on which the Federal Emergency Management Agency or Federal Insurance Administration has delineated the areas of flood hazards.

"Flood Insurance Rate Map (FIRM)" means the official map on which the Federal Emergency Management Agency or Federal Insurance Administration has delineated both the areas of flood hazards and the risk premium zones applicable to the community.

"Flood Insurance Study (FIS)" means the official report provided by the Federal Insurance Administration that includes flood profiles, the Flood Insurance Rate Map, the Flood Boundary and Floodway Map, and the water surface elevation of the base flood.

"Flood Plain or Flood-prone Area" means any land area susceptible to being inundated by water from any source - see "Flooding".

"Flood Plain Administrator" is the Building Official for the City of Fresno.

"Flood Plain Management" means the operation of an overall program of corrective and preventive measures for reducing flood damage and preserving and enhancing, where possible, natural resources in the flood plain, including but not limited to emergency preparedness plans, flood control works, flood plain management regulations, and open space plans.

"Flood Plain Management Regulations" means federal, state or local regulations in any combination thereof which provide standards for preventing and reducing flood loss and damage, including this Ordinance and other zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as grading and erosion control) and other application of police power which control development in flood-prone areas.

"Flood Proofing" means any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures, and their contents.

"Flood-related erosion" means the collapse or subsidence of land along the shore of a lake or other body of water as a result of undermining caused by waves or currents of water exceeding anticipated cyclical levels or suddenly caused by an unusually high water level in a natural body of water, accompanied by a severe storm, or by an unanticipated force of nature, such as a flash flood or an abnormal tidal surge, or by some similarly unusual and unforeseeable event which results in flooding.

"Floodway" - See "Regulatory Floodway".

"Floodway Fringe" is that area of the flood plain on either side of the "Regulatory Floodway" where encroachment may be permitted.

"Fraud and Victimization" as related to variances under Sections 11-637 to 11-641, means that the variance granted must not cause fraud on or victimization of the public. In examining this requirement, the Council will consider the fact that every newly constructed building adds to government responsibilities and remains a part of the community for fifty to one-hundred years. Buildings that are permitted to be constructed below the base flood elevation are subject during all those years to increased risk of damage from floods, while future owners of the property and the community as a whole are subject to all the costs, inconvenience, danger, and suffering that those increased flood damages bring. In addition, future owners may purchase the property, unaware that it is subject to potential flood damage, and can be insured only at very high flood insurance rates.

"Functionally Dependent Use" means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, and does not include long-term storage or related manufacturing facilities.

(g) (Reserved.)

(h) "Hardship" as related to variances under Sections 11-637 to 11-641 means the exceptional hardship that would result from a failure to grant the requested variance. The variance must be exceptional, unusual, and peculiar to the property involved. Mere economic or financial hardship alone is not exceptional. Inconvenience, aesthetic considerations, physical handicaps, personal preferences, or the disapproval of one's neighbors likewise cannot, as a rule, qualify as an exceptional hardship. All of these problems can be resolved through other means without granting a variance, even if the alternative is more expensive, or requires the property owner to build elsewhere or put the parcel to a different use than originally intended.

"Highest Adjacent Grade" means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

"Historic Structure" means any structure that is

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Listed or determined to be eligible by the State Historical Resources Commission, for listing in the California Register of Historical Resources; or

(4) Individually listed or determined to be eligible by the Historical Preservation Commission, for listing in the Local Register of Historic Resources.

(i) (Reserved.)

(j) (Reserved.)

(k) (Reserved.)

(l) "Levee" means a man-made structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control or divert the flow of water so as to provide protection from temporary flooding.

"Levee System" means a flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accord with sound engineering practices.

"Lowest Floor" means the lowest floor of the lowest enclosed area, including basement (see "Basement" definition).

(1) An unfinished or flood resistant enclosure below the lowest floor that is usable solely for parking of vehicles, building access or storage in an area other than a basement area, is not considered a building's lowest floor provided it conforms to applicable non-elevation design requirements, including, but not limited to:

a. The wet flood proofing standard in Section 11-629.

b. The anchoring standards in Section 11-624.

c. The construction materials and methods standards in Section 11-625.

d. The standards for utilities in Section 11-631.

(2) For residential structures, all sub grade enclosed areas are prohibited as they are considered to be basements (see "Basement" definition). This prohibition includes below-grade garages and storage areas.

(m) "Manufactured home" means a structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term "manufactured home" does not include a "recreational vehicle".

"Manufactured home park or subdivision" means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

"Map Amendment" means the exclusion of an individual structure and/or a legally described parcel of land that was inadvertently included in the SFHA shown on the effective Flood Hazard Boundary Map (FHBM) or Flood Insurance Rate Map (FIRM). When the Federal Emergency Management Agency (FEMA) determines that the structure or parcel has been inadvertently included in the SFHA, FEMA issues a letter, referred to as a Letter of Map Amendment (LOMA). The LOMA excludes the structure and/or parcel of land that was inadvertently included in the SFHA and officially amends the effective FHBM or FIRM.

"Map Revision" A change to an effective Flood Hazard Boundary Map (FHBM) or Flood Insurance Rate Map (FIRM). When a map revision is warranted, the Federal Emergency Management Agency will either revise and republish the affected map panels or issue a letter, referred to as a Letter of Map Revision (LOMR) that describes the changes and officially revises the effective FHBM or FIRM.

"Mean sea level" means, for purposes of the National Flood Insurance Program (NFIP), the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on a community's Flood Insurance Rate Map are referenced.

(n) "New construction", for flood plain management purposes, means structures for which the "start of construction" commenced on or after April 15, 1983, and includes any subsequent improvements to such structures.

"New manufactured home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after April 15, 1983.

(o) "Obstruction" includes, but is not limited to, any dam, wall, wharf, embankment, levee, dike, pile, abutment, protection, excavation, channelization, bridge, conduit, culvert, building, wire, fence, rock, gravel, refuse, fill, structure, vegetation or other material in, along, across or projecting into any watercourse which may alter, impede, retard or

change the direction and/or velocity of the flow of water, or due to its location, its propensity to snare or collect debris carried by the flow of water, or its likelihood of being carried downstream.

"One-hundred-year flood" or "100-year flood" - see "Base flood."

(p) "Public safety and nuisance" as related to variances under Section 11-100.600.106 means that the granting of a variance must not result in anything which is injurious to safety or health of an entire community or neighborhood, or any considerable number of persons, or unlawfully obstructs the free passage or use, in the customary manner, of any navigable lake, or river, bay, stream, canal, or basin.

(q) (Reserved.)

(r) "Recreational Vehicle" means a vehicle which is

(1) Built on a single chassis;

(2) 400 square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light-duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary-living quarters for recreational, camping, travel, or seasonal use.

"Regulatory floodway" means the channel of a river or other watercourse and the adjacent land areas that must be preserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

"Remedy a violation" means to bring the structure or other development into compliance with flood plain management regulations, or, if this is not possible, to reduce the impacts of the noncompliance. Ways that impacts may be reduced include protecting the structure or other affected development from flood damages, implementing the enforcement provisions of this ordinance or otherwise deterring future similar violations, or reducing State or Federal financial exposure with regard to the structure or other development.

"Riverine" means relating to, formed by, or resembling a river (including tributaries), stream, brook, etc.

(s) "Sheet flow area" - see "Area of shallow flooding".

"Special flood hazard area (SFHA)" means an area having special flood hazards, and shown on an FHBM or FIRM as Zone A, AO, A1-A30, AE, A99, or AH.

"Start of construction" means the date a permit was issued to construct a new development or a substantial improvement of an existing development, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within 180 days from the date of the permit. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land

preparation, such as clearing, grading, and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

"Structure" means a walled and roofed building that is principally above ground; this includes a gas or liquid storage tank or a manufactured home.

"Substantial damage" means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

"Substantial improvement" means any reconstruction, rehabilitation, addition, or other proposed new development of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before the "start of construction" of the improvement. This term includes structures which have incurred "substantial damage", regardless of the actual repair work performed. The term does not, however, include either:

(1) Any project for improvement of a structure to correct existing violations or state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or

(2) Any alteration of a "historic structure", provided that the alteration will not preclude the structure's continued designation as a "historic structure".

(t) (Reserved.)

(u) (Reserved.)

(v) "Variance" means a grant of relief from the requirements of this article which permits construction in a manner that would otherwise be prohibited by this article.

"Violation" means the failure of a structure or other development to be fully compliant with this ordinance. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in this ordinance is presumed to be in violation until such time as that documentation is provided.

(w) "Water surface elevation" means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929, (or other datum, where specified) of floods of various magnitudes and frequencies in the flood plains of riverine areas.

"Watercourse" means a lake, river, creek, stream, wash, arroyo, channel or other topographic feature on or over which waters flow at least periodically. Watercourse includes any specifically designated areas in which substantial flood damage may occur.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-606. LANDS TO WHICH THIS ORDINANCE APPLIES.

This ordinance shall apply to all areas of special flood hazards within the jurisdiction of the city.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-607. BASIS FOR ESTABLISHING THE AREAS OF SPECIAL FLOOD HAZARD.

The areas of special flood hazard identified by the Federal Emergency Management Agency (FEMA) in the Flood Insurance Study (FIS) for Fresno County, California and incorporated areas dated February 18, 2009, with accompanying Flood Insurance Rate Maps (FIRM's) and Floodway Boundary and Floodway Maps (FBFM's) dated February 18, 2009, and all subsequent amendments and/or revisions, are hereby adopted by reference and declared part of this ordinance. The FIS and attendant mapping is the minimum area of applicability of this ordinance and may be supplemented by studies for other areas which allow implementation of this ordinance and which are recommended to the Council by the Floodplain Administrator. The study, FIRM's and FBFM's are on file in the Development and Resource Management Department.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08; Am. Ord. 2014-15, § 2, eff. 4-18-14).

SEC. 11-608. COMPLIANCE.

No structure or land shall hereafter be constructed, located, extended, converted, or altered without full compliance with the term of this article and other applicable regulations. Violation of the requirements (including violations of conditions and safeguards established in connection with conditions) shall constitute a public nuisance and a misdemeanor. Violations may be treated as a violation of the Dangerous Building Ordinance (Chapter 11, Article 4) and abated under the procedures found therein.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-609. GREATER RESTRICTIONS.

Where this article and another ordinance, easement, covenant, or deed restriction conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-610. INTERPRETATION.

In the interpretation and application of this article, all provisions shall be:

(a) Considered as minimum requirements;

(b) Liberally construed in favor of the City of Fresno; and

(c) Deemed neither to limit nor repeal any other powers granted under state statutes.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-611. WARNING AND DISCLAIMER OF LIABILITY.

The degree of flood protection required by this article is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by man-made or natural causes. This article does not imply that land outside the areas of special flood hazard, or uses permitted within such areas will be free from flooding or flood damages. This article shall not create liability on the part of the Council, any officer or employee thereof, the State of California, or the Federal Insurance Administration, Federal Emergency Management Agency, for any flood damages that may result from reliance on this article or any administrative decision lawfully made thereunder.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-612. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. The Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-613. ESTABLISHMENT OF DEVELOPMENT PERMIT.

A building permit shall be obtained before any construction or other development begins within any area of special flood hazard established in Section 11-607. Application for a building permit shall be made on forms furnished by the Flood Plain Administrator, and may include, but shall not be limited to: plans (4 sets) drawn to scale showing the nature, location, dimensions, and elevation of the area in question; existing or proposed structures, fill, storage of materials, drainage facilities; and the location of the foregoing. Specifically, the following information is required.

(a) Proposed elevation, in relation to mean sea level, of the lowest floor (including basement) of all structures; in Zone AO, the elevation of highest adjacent grade and the proposed elevation of lowest floor of all structures; or

(b) Proposed elevation, in relation to mean sea level, to which any nonresidential structure will be floodproofed, if required in section 11-628, and section 11-629; and

(c) Appropriate certifications listed in section 11-613 and 11-619; and

(d) Description of the extent to which any watercourse will be altered or relocated as a result of proposed development; and

(e) Certification by a registered professional civil engineer or architect that flood waters are not displaced or diverted as a result of proposed development, unless such certification is waived by the Flood Plain Administrator; and

(f) Certification by registered professional civil engineer or architect that the proposed development complies with Section 11-616 through 11-618 unless such certification is waived by the Flood Plain Administrator; and

(g) Hydrologic study, calculations, documentation, and supporting data certified by the registered professional civil engineer or architect which substantiate compliance with this article and application review requirements of Section 11-616.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-614. DESIGNATION OF THE FLOOD PLAIN ADMINISTRATOR.

The Building Official is hereby appointed to administer, implement, and enforce this article by granting or denying development permits in accord with its provisions.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-615. DUTIES AND RESPONSIBILITIES OF THE FLOOD PLAIN ADMINISTRATOR.

The duties and responsibilities of the Flood Plain Administrator shall include, but not be limited to the provisions in Sections 11-616 to 11-621.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-616. PERMIT APPLICATION REVIEW.

The Flood Plain Administrator shall review all development applications to determine that:

(a) The permit requirements of this article have been satisfied.

(b) All other required state and federal permits have been obtained.

(c) The site is reasonably safe from flooding.

(d) The proposed development does not adversely affect the flood-carrying capacity of areas where base flood elevations have been determined but a floodway has not been designated. For the purposes of this article, "adversely affects" shall mean that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will increase the water surface elevation of the base flood more than one foot at any point, or displace flood water into areas not otherwise subject to such special flood hazards.

(e) The flood discharge exiting the development after construction is equal to or less than the flood discharge prior to development.

(f) Any reduction in discharge prescribed in subdivision (e) above is the result of new flood water storage capacities provided by the development and not the result of the diversion of flood flows, unless approved by the Flood Plain Administrator.

(g) The volume of space occupied by the proposed fill or structure below the base flood elevation is compensated for and balanced by a hydraulically equivalent volume of excavation taken from below the base flood elevation. All such excavations shall be constructed to drain freely to the watercourse.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-617. REVIEW AND USE OF ANY OTHER BASE FLOOD DATA.

When base flood elevation data has not been provided in accordance with Section 11-607. The Flood Plain Administrator shall obtain, review, and reasonably utilize any base flood elevation and floodway data available from a federal or state agency, or other source, in order to administer Sections 11-623 to 11-636. Any such information shall be submitted to the Council for adoption.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-618. NOTIFICATION OF OTHER AGENCIES.

1. In alteration or relocation of a watercourse, the Flood Plain Administrator shall:

a) Notify adjacent communities and the California Department of Water Resources prior to alteration or relocation;

b) Submit evidence of such notification to the Federal Emergency Management Agency;

c) Assure that the flood carrying capacity within the altered or relocated portion of said watercourse is maintained; and

d) Provide notice to the Fresno Metropolitan Flood Control District of all development applications pertaining to lands in excess of one-half acre in size located within areas of special flood hazard.

2. In changes to the Base Flood Flevation due to physical alterations, the Flood Plain Administrator shall:

a) Submit or assure that permit applicants submit technical or scientific data to FEMA for a Letter of Map Revision (LOMR) within six months of the information becoming available or project completion, whichever comes first

b) Assure that all LOMOR's for flood control projects are approved prior to the issuance of building permits. Building permits must be issued based on Conditional Letters of Map Revision (CLOMR's). Approved CLOMR's allow construction of the proposed flood control project and land preparation as specified in the "start of construction" definition.

c) Such submissions are necessary so that upon confirmation ol physical changes affecting flooding conditions, risk premium rates and flood plain management requirements are based on current data.

3. In changes to the corporate boundaries of the City of Fresno, the Flood Plain Administrator shall:

a) Notify FEMA in writing whenever the corporate boundaries have been modified by annexation or other means and include a copy of a map of the community clearly delineating the new boundary limits.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08; Am. Ord. 2009-11, §§ 1, 2, eff. 5-1-09).

SEC. 11-619. DOCUMENTATION OF FLOOD PLAIN DEVELOPMENT.

The Flood Plain Administrator shall obtain and maintain for public inspection and make available as needed the following:

(a) Certification required by Section 11-627 (lowest floor elevations);

(b) Certification required by Section 11-628 (elevation or floodproofing of nonresidential structures);

(c) Certification required by Sections 11-629 (wet floodproofing standard);

(d) Certification of elevation required by Section 11-632 (subdivision standards);

(e) Certification required by Section 11-635 (floodway encroachments).

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-620. MAP DETERMINATIONS.

The Flood Plain Administrator shall make interpretations where needed, as to the exact location of the boundaries of the areas of special flood hazard. Where there appears to be a conflict between a mapped boundary and actual field conditions, the person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in Section 11-622.

EXCEPTION: Where there appears to be a conflict between a mapped boundary and actual field conditions. Wherein the subject property is located within a special flood hazard area (SFHA) on the FIRM, and the actual field conditions indicate that the property is outside the SFHA. Appeal is available through the Federal Emergency Management Agency (FEMA) as a "Map Amendment" (see Section 11-605 definition for "map amendment").

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-621. REMEDIAL ACTION.

The Flood Plain Administrator may take action to remedy violations of this article as specified in Section 11-608.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-622. APPEALS.

The Building Commission of the City of Fresno shall hear and decide appeals when it is alleged there is an error in any requirement, decision, or determination made by the Flood Plain Administrator in the enforcement or administration of this article. If appointments to the Building Commission have not been made or the Building Commission is deemed to be inactive, all appeals regarding any alleged error in any requirement, decision, or determination made by the Flood Plain Administrator in the enforcement or administration of this article shall by [be] heard by the Hearing Officer pursuant to Chapter 1, Article 4.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08; Ord. No. 2014-27, § 2, eff. 7-19-14).

SEC. 11-623. STANDARDS OF CONSTRUCTION.

In all areas of special flood hazard, the standards in Sections 11-624 to 11-630 are required.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-624. ANCHORING.

(a) All new construction and substantial improvements shall be adequately anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy.

(b) All manufactured homes shall meet the anchoring standards of Section 11-633.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-625. CONSTRUCTION MATERIALS AND METHODS.

All new construction and substantial improvements of structures, including manufactured homes, shall be constructed:

(a) With flood resistant materials, and utility equipment resistant to flood damage for areas below the base flood elevation.

(b) Using methods and practices that minimize flood damage.

(c) With electrical, heating, ventilation, plumbing and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

(d) Within Zones AH or AO, so that there are adequate drainage paths around structures on slopes to guide flood waters around and away from structures.

(e) All fill placed in the area of the building pads shall be compacted to 95 percent of the maximum density obtainable with the Standard Proctor Test method issued by the American Society for Testing and Materials (ASTM Standard D-698).

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08; Am. Ord. 2014-15, § 2, eff. 4-18-14).

SEC. 11-626. ELEVATION AND FLOOD PROOFING.

(See SECTION 11-605 definitions for "basement," "lowest floor," "new construction," "substantial damage" and "substantial improvement.")
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-627. RESIDENTIAL CONSTRUCTION.

In General, New or substantial improvement, shall be in conformance with adopted California Residential Building Code section R322.2.1.
(Added Ord. 2025-041, § 2, eff. 10-31-25).

Editor's note—Added Ord. 2025-041, §§ 1, 2, adopted September 25, 2025, and effective October 31, 2025, repealed the former § 11-627, and enacted a new § 11-627 as set out herein. The former § 11-627 pertained to similar subject matter and derived from Added Ord. 2005-102, § 2, eff. September 20, 2005; Am. Ord. 2007-92, § 3, eff. January 17, 2008.

SEC. 11-628. NONRESIDENTIAL CONSTRUCTION.

Nonresidential construction, new or substantial improvement, shall have the lowest floor, shall either elevated to conform with Section 11-627 or together with attendant utility and sanitary facilities:

(a) Be floodproofed below the elevation specified under Section 11-627 so that the structure is watertight with walls substantially impermeable to the passage of water;

(b) Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy; and

(c) Be certified by a registered professional civil engineer or architect that the standards of this section are satisfied. Such certification shall be provided to the Flood Plain Administrator.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-629. FLOOD VENTING.

All new construction and substantial improvement with fully enclosed areas below the lowest floor (excluding basements) that are usable solely for parking of vehicles, building access or storage, and which are subject to flooding, shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwater. Designs for meeting this requirement must exceed the following minimum criteria:

(a) Be certified by a registered professional engineer or architect; or

(b) Have a minimum of two openings on different sides of each enclosed areas having a total net area of not less than one square inch for every square foot of enclosed area

subject to flooding. The bottom of all openings shall be no higher than one foot above grade. Openings may be equipped with screens, louvers, valves or other coverings or devices provided that they permit the automatic entry and exit of floodwater.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-630. MANUFACTURED HOMES.

Manufactured homes shall also meet the standards in Section 11-633.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-631. STANDARDS FOR UTILITIES.

(a) All new and replacement water supply and sanitary sewage systems shall be designed to minimize or eliminate:

(1) Infiltration of flood waters into the systems, and

(2) Discharge from the systems into flood waters.

(b) On-site waste disposal systems shall be located to avoid impairment to them, or contamination from them during flooding.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-632. STANDARDS FOR SUBDIVISIONS AND OTHER PROPOSED DEVELOPMENT.

(a) All new subdivision proposals and other proposed development greater than 50 lots or 5 acres, whichever is the lesser, shall:

(1) Identify the area of Special Flood Hazard Areas (SFHA) and the Base Flood Elevations (BFE).

(2) Identify the elevations of the lowest floors of all proposed structures and pads on the final plans.

(3) If the site is filled above the base flood elevation, the lowest floor and pad elevations and the lowest adjacent grades shall be certified by a registered professional engineer or surveyor and provided as part of an application for a Letter of Map Revision based on Fill (LOMR-F) to the Floodplain Administrator.

(b) All subdivision proposals and other proposed development shall be consistent with the need to minimize flood damage.

(c) All subdivision proposals and other proposed development shall have public utilities and facilities such as sewer, gas, electrical, and water systems located and constructed to minimize flood damage.

(d) All subdivision proposals and other proposed development shall provide adequate drainage to reduce exposure to flood hazards.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08; Am. Ord. 2014-15, § 2, eff. 4-18-14).

SEC. 11-633. STANDARDS FOR MANUFACTURED HOMES.

(a) All manufactured homes that are placed or substantially improved, within Zones A1-A30, AO, AE, and AH on the community's Flood Insurance Rate Map, on sites located:

(1) Outside of a manufactured home park or subdivision,

(2) In a new manufactured home park or subdivision,

(3) In an expansion to an existing manufactured home park or subdivision, or

(4) In an existing manufactured home park or subdivision on a site upon which a manufactured home has incurred "substantial damage" as the result of a flood.

Shall be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated to the elevation specified under Section 11-627 and be securely fastened to an adequately anchored foundation system to resist flotation, collapse and lateral movement.

(b) All manufactured homes to be placed or substantially improved on sites in an existing manufactured home park or subdivision within Zones A1-A30, AE, AH, and AO on the community's Flood Insurance Rate Map that are not subject to the provisions of subdivision (1), below, will be securely fastened to an adequately anchored foundation system to resist flotation collapse, and lateral movement, and be elevated so that either the:

(1) Lowest floor of the manufactured home is at or above the elevation as specified under Section 11-627, or

(2) Manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than 36 inches in height above grade.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-634. STANDARDS FOR RECREATIONAL VEHICLES.

All recreational vehicles placed on sites within Zones A1-30, AH, AE, and AO on the community's Flood Insurance Rate Map will either:

(a) Be on the site for fewer than 180 consecutive days, and be fully licensed and ready for highway use — a recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices, and has no permanently attached additions, or

(b) Meet the permit requirements of Section 11-613 to Section 11-622 and the elevation and anchoring requirements for manufactured homes in Section 11-633(b)(1).

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-635. FLOODWAYS.

Located within areas of special flood hazard established in Section 11-607 are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of flood water which carries debris, potential projectiles, and erosion potential, the following provisions apply:

(a) Prohibit encroachments including fill, new construction, substantial improvements, and all other development unless certification by a registered professional civil engineer or architect is provided demonstrating that the encroachments shall not result in any increase in the base flood elevation during the occurrence of the base flood discharge, and further certifying that there is no risk of diversion of such flood flows.

(b) If subdivision (a), above, is satisfied, all new construction, substantial improvement, and other proposed new development shall comply with all other applicable flood hazard reduction provisions of Sections 11-623 to 11-636.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-636. STANDARDS FOR STORAGE OF MATERIALS AND EQUIPMENT.

(a) The storage or processing of materials that are in time of flooding, buoyant, flammable, explosive, or could be injurious to human, animal or plant life is prohibited.

(b) Storage of other material or equipment may be allowed if not subject to major damage by floods and firmly anchored to prevent flotation or if readily removable from the area within the time available after flood warning.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-637. NATURE OF VARIANCES.

The variance criteria set forth in Sections 11-637 to 11-641 are based on the general principle of zoning law that variances pertain to a piece of property and are not personal in nature. A variance may be granted for a parcel of property with physical characteristics so unusual that complying with the requirements of this article would create an exceptional

hardship to the applicant or the surrounding property owners. The characteristics must be unique to the property and not be shared by adjacent parcels. The unique characteristic must pertain to the land itself, not to the structure, its inhabitants, or the property owners.

The public needs to be protected from flooding. This need is so compelling and the implications of the cost of insuring a structure built below flood level are so serious that variances from the flood elevation or from other requirements in the flood ordinance must be rare. The long term goal of preventing and reducing flood loss and damage can only be met if variances are strictly limited. Therefore, the variance guidelines provided in this article are more detailed and contain multiple provisions that must be met before a variance can be properly granted. The criteria are designed to screen out those situations in which alternatives other than a variance are more appropriate.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-638. APPEALS BOARD.

In passing upon requests for variances, the Building Commission of the City of Fresno shall consider all technical evaluations, all relevant factors, standards specified in other sections of this ordinance, and:

(a) Danger that materials may be swept onto other lands to the injury of others;

(b) Danger of life and property due to flooding or erosion damage;

(c) Susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the existing individual owner and future owners of the property;

(d) Importance of the services provided by the proposed facility to the community;

(e) Necessity to the facility of a waterfront location, where applicable;

(f) Availability of alterative locations for the proposed use which are not subject to flooding or erosion damage;

(g) Compatibility of the proposed use with existing and anticipated development;

(h) Relationship of the proposed use to the comprehensive plan and flood plain management program for that area;

(i) Safety of access to the property in time of flood for ordinary and emergency vehicles;

(j) Expected heights, velocity, duration, rate of rise, and sediment transport of the flood waters expected at the site; and

(k) Costs of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water system, and streets and bridges.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-639. WRITTEN NOTICE.

Any applicant to whom a variance is granted shall be given written notice that:

(a) The issuance of a variance to construct a structure below the base flood level will result in increased premium rates for flood insurance up to amounts as high as $25 for $100 of insurance coverage, and

(b) Such construction below the base flood level increases risks to life and property. A copy of the notice shall be recorded by the Flood Plain Administrator in the Office of the Fresno County Recorder and shall be recorded in a manner so that it appears in the chain of title of the affected parcel of land.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-640. RECORD OF VARIANCES.

The Flood Plain Administrator will maintain a record of all variance actions, including justification for their issuance, and report such variances issued in its biennial report submitted to the Federal Insurance Administration, Federal Emergency Management Agency. (Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

SEC. 11-641. CONDITIONS FOR VARIANCES.

(a) Generally, variances may be issued for new construction, substantial improvement, and other proposed new development to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing that the procedures of Sections 11-613 and 11-636 have been fully considered. As the lot size increases beyond one-half acre, the technical justification required for issuing the variance increases.

(b) Variances may be issued for the repair or rehabilitation of "historic structures" (as defined in Section 11-605) upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as an historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

(c) Variances shall not be issued within any mapped regulatory floodway if any increase in flood levels during the base flood discharge would result.

(d) Variances shall only be issued upon a determination that the variance is the "minimum necessary" considering the flood hazard, to afford relief. "Minimum necessary" means to afford relief with a minimum of deviation from the requirements of this article. For example, in the case of variances to an elevation requirement, this means the Building Commission need not grant permission for the applicant to build at grade, or even to whatever elevation the applicant proposes, but only to that elevation which the Building Commission believes will both provide relief and preserve the integrity of the local ordinance.

(e) Variances shall only be issued upon a

(1) Showing of good and sufficient cause;

(2) Determination that failure to grant the variance would result in exceptional "hardship" (as defined in Section 11-605) to the applicant; and

(3) Determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, or extraordinary public expense, create a nuisance (see "Public safety and nuisance" as defined in Section 11-605), cause fraud or victimization (as defined in Section 11-605) of the public, or conflict with existing local laws or ordinances.

(f) Variances may be issued for new construction, substantial improvement, and other proposed new development necessary for the conduct of a functionally dependent use provided that the provisions of this section are satisfied and that the structure or other development is protected by methods that minimize flood damages during the base flood and does not result in additional threats to public safety and does not create a public nuisance.

(g) Upon consideration of the factors of Section 11-638 and the purposes of this article, the Building Commission may attach such conditions to the granting of variances as it deems necessary to further the purposes of this article.
(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-92, § 3, eff. 1-17-08).

ARTICLE 7 ALTERNATIVE BUILDING STANDARDS FOR JOINT LIVING AND WORK QUARTERS*

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Sec. 11-702. Application.
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Sec. 11-734. Mechanical Systems.
Sec. 11-735. Elevators.
Sec. 11-736. Historical Building Provisions.

SEC. 11-701. PURPOSE.

The purpose of this division is to provide alternative building standards for the conversion of existing buildings, or portions thereof, from commercial or industrial uses to Joint Living

*__Editor's note—__Ord. 2007-102, § 1, effective January 20, 2008, amended the Code by adding new provisions to be numbered as Ch. 11, Art. 1, Div. 5. Due to the reorganization of the Code, the editor has codified the provisions as a new Ch. 11, Art. 7 at the direction of the City.

and Work Quarters. The alternative standards are designed to provide a reasonable level of safety to the building occupants, and are in conformance with the provisions of Section 17958.11 of the California Health and Safety Code.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-702. APPLICATION.

Nothing in this division shall be construed to allow the reduction of the seismic or fire and life safety elements of an existing building, where such elements provide a greater level of protection than the minimum requirements established by this division. The alternative building standards of this division may be applied when the commercial or industrial uses in an existing building are converted (change of use or occupancy) to joint living and work quarter(s) provided:

(a) Designated Area. The building is located in the area surrounded by State Highway 99, State Highway, 180 and State Highway 41 in central Fresno.

(b) General Fire and Life Safety Requirements for All Existing Buildings. All existing buildings that are converted shall comply or be made to comply with all of the building area, height, number of stories, type of construction, occupancy, means of egress and other fire and life safety requirements of this code for a new building of the same use or occupancy, except as provided in this division.

(Added Ord. 2005-102, § 2, eff. 9-20-05; Am. Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-703. DEFINITIONS.

For the purpose of this division, certain terms are defined as follows:

(a) Guidelines for Seismic Retrofit of Existing Buildings means the July 2001 edition of the Guidelines for Seismic Retrofit of Existing Buildings, published by the International Conference of Building Officials, 5360 Workman Mill Road, Whittier, California 90601-2298.

(b) Joint Living and Work Quarters shall mean a residential occupancy of one or more rooms or floors used as a dwelling unit with adequate working space reserved for, and regularly used by, one or more persons residing therein pursuant to Health and Safety Code (H&S) Section 17958.11(a).

(c) Qualified Historical Building or Structure shall mean any building deemed a "qualified historical building or structure" pursuant to the State Historical Building Code, as it may be amended from time to time.

(d) State Historical Building Code shall mean Part 8, Title 24 of the California Code of Regulations and published as Part 8 of the Historical Building Code. The State Historical Building Code is duplicated in Division II, Chapter 34 of the California Building Code.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-704. GENERAL.

A joint living and work quarter shall not be used for public sales purposes or for instructional classes when either is inconsistent with residential use. No hazardous activities such as, but not limited to, welding, open flame, or storage of flammable liquids shall occur in the Joint Living and Work Quarter.

EXCEPTION: In buildings three stories or less in height, activities such as welding, open flame, or minimal storage of flammable liquids may be allowed provided written approval is obtained from the Building Official.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-705. ALTERNATIVE STANDARDS.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-706. USE OR OCCUPANCY.

When applying this division, dwelling units or joint living and work quarters shall be classified as Group R, Division 1 occupancy and comply with all Group R, Division 1 occupancy requirements of the Code, except as provided in this division.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-707. CEILING HEIGHT.

Existing ceiling height within a unit may be maintained, provided the ceiling height is not less than seven feet, except that the ceiling height above a mezzanine may be six feet six inches to any structural projections from the ceiling.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-708. EMERGENCY ESCAPE.

Every room below the fourth story where occupants sleep shall be provided with an emergency escape or rescue window or door, which complies with the requirements of C.B.C. Section 310.4.

EXCEPTION: The emergency escape or rescue window or door may open directly into an existing court, provided:

(1) The court is accessible to the Fire Department.

(2) The court is provided with a minimum of one direct exit to a corridor, exit stairway, exit passageway, exterior exit stairway, exterior exit balcony, or exterior exit ramp, or existing fire escape. The existing fire escape shall be structurally sound and shall not serve as an exit for an assembly use.

(3) All openings in walls surrounding the court shall be protected as required by C.B.C. Section 503.3 or be provided with a water curtain designed in accordance with NFPA #13.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-709. EXTERIOR WALL AND EXTERIOR OPENING PROTECTION.

Existing construction of the exterior walls may be maintained without complying with current exterior fire resistive wall construction. Existing unprotected exterior openings, which are not allowed or are required to be protected due to their proximity to a property line, may be maintained without complying with the requirements of C.B.C. Section 503.2, provided the openings are protected with a water curtain designed in accordance with NFPA #13. Openings in the exterior walls that are not allowed by C.B.C. Section 503.2, due to their proximity to a property line, may not be used to satisfy other code requirements, such as, light and ventilation, smoke control or emergency escape.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-710. SMOKE CONTROL SYSTEM.

Existing high-rise buildings shall provide a smoke control system in all portions of the building including basements. The smoke control system shall meet the requirements of C.B.C. Section 905 or all the requirements of this division.

EXCEPTION: The following areas are exempt:

(1) New or existing rooms less than 50 square feet in area.

(2) New or existing rooms located at or above grade level provided the room has a direct exit to the exterior of the building.

(3) Floor levels with open able windows or breakable tempered glass panels in the exterior walls. The area of the open able windows or panels shall not be less than 20 square feet per 50 linear foot interval around the building perimeter. Tempered glass panels shall have no coating or film applied which will modify its' breaking characteristics. Panels shall be identified in a manner approved by the Fire Department.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-711. CAPACITY.

Smoke-control system shall provide at least six air changes per hour for all areas within the building including basements, provide exhaust to the exterior of the building, and provide an adequate makeup air supply that is uniformly distributed.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-712. SMOKE DAMPERS.

If a smoke-control system serves more than one floor, then smoke dampers shall (i) be installed in the main exhaust air ducts and the main supply air ducts serving each floor and (ii) comply with the activation requirements of C.B.C. Section 713.10.2. The smoke dampers shall be installed in a manner that will prevent the movement of smoke from one floor to

another floor when the dampers are closed. The vertical risers of the main exhaust air duct shall be installed in metal ducts complying with the requirements for product-conveying ducts in Chapter 5 and 6 of the Mechanical Code.

In the firefighter's control panel, all smoke dampers within the same smoke-control zone shall be actuated by one On-Auto-Off switch in accordance with C.B.C. Section 905.13.2, except that an alternate actuation method may be allowed when approved by both the Fire Department and the Department.

Combination fire and smoke dampers, and smoke dampers shall be listed to conform to UL 555 and they shall be accessible for inspection, service and repair. Pneumatic tubing to operate these dampers shall be of noncombustible materials.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-713. FIREFIGHTER'S CONTROL PANEL.

The firefighter's control panel shall comply with all the requirements of C.B.C. Section 905.13, except that graphically depicted representation of the building may be omitted when accepted by the Fire Department. The firefighter's control panel shall monitor and be capable of overriding the Mechanical Test Panel. The Mechanical Test Panel is a separate control panel which provides controls and displays the status of the ventilation fans, dampers, and other smoke control devices as required by C.B.C. Section 905 and shall be located in the same room as the Firefighter's Control Panel.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-714. PERFORMANCE TEST.

Upon completion and before final approval of the installation of a smoke control system required by this code, a smoke control performance test, complying with the testing procedures of C.B.C. Section 905.15, shall be used to verify the rate of air-flow and proper operation as specified in this division. Tests shall be conducted in the presence of both the Fire Department and the Building Department. Prior to conducting the required smoke control performance test, a preliminary performance report shall be submitted to the Department by a person, holding a Certificate of Qualification as required by C.B.C. Section 905.15, verifying that the performance criteria of the Department have been met.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-715. ADDITIONAL SMOKE CONTROL REQUIREMENTS.

Existing air conditioning and ventilation systems may be used as part of the smoke-control system. Existing return air plenum and approved fiberglass air ducts may be used as part of the smoke-control system. A smoke exhaust system shall be designed in a manner that will prevent smoke from going from one room to another, except when two or more rooms are

connected together by means of a permanent unobstructed opening at least 20 square feet with a minimum three feet dimension, then the rooms shall be considered as one room for the purpose of designing the smoke-control system.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-716. FIRE-EXTINGUISHING SYSTEM.

Fire sprinkler system and standpipe system shall be provided as required for a new building of the same height, type of construction and occupancy. The fire sprinkler system, if required, shall be installed in accordance with NFPA #13.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-717. FIRE ALARM SYSTEM.

If a fire alarm system is required by C.B.C. Section 310.10 or 403.5 for a new building of the same type of construction and occupancy, or installed at the option of the owner, then the entire building shall have fire alarm systems that are in full compliance with C.B.C. Section 310.10. In a high-rise building, the fire alarm systems shall be supplied by a generator used as an emergency system in accordance with C.B.C. Section 403.8.3. For all other buildings, an alternate source of power may be used provided it is approved by both the Fire Department and the Building Department. High-rise buildings shall be provided with a central control station (fire control room) that complies with all the requirements of C.B.C. Section 403.6.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-718. FIRE PUMPS AND GENERATOR (COMBUSTION ENGINES AND GAS TURBINES) ROOMS.

In high-rise buildings, diesel or/and electric fire pumps shall be provided as required for a new building. Fire pump and generator (combustion engines and gas turbines) rooms shall be separated with a minimum one-hour occupancy separation from adjoining rooms and from each other. Combustion air and room ventilation air shall be required by the Building and Mechanical Codes, except that the room ventilation exhaust may be considered as environmental air.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-719. MEANS OF EGRESS.

The portion of the building converted to a joint living and work quarter shall be provided with means of egress as required for a new building, except that the alternative requirements of Sections 11-100.514.1 through 11-100.515.5 may be used. An existing fire escape which is in good operating condition may be used as a second means of egress.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-720. CORRIDORS AND HALLWAYS.

All public corridors and public hallways serving the occupants shall comply with all the requirements of C.B.C. Section 1007.6, except as follows:

(a) Existing nonconforming fire-resistive walls and ceiling of a corridor constructed of wood lath and plaster which are in good condition may be acceptable as equivalent to the required one-hour fire-resistive construction.

(b) Existing doors between the corridor and the living unit that are part of the historic fabric of a qualified historical building may be allowed to remain provided approved smoke gaskets and self-closing and latching devices to prevent smoke penetration are installed on the door, or the existing door shall be replaced with a door conforming to the requirements of C.B.C. Section 1004.3.4.3.2.1.

(c) Glazing elements that are part of the historic fabric of a qualified historical building and located in corridors may be allowed to remain provided the fixed transoms, glass doors and other glazed openings are provided with smoke gaskets, and one layer of 518-inch type "X" drywall on the room side or other acceptable fire rated protection.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-721. DEAD-END CORRIDORS.

An existing dead-end corridor which exceeds 20 feet in length and serves the occupants of a living quarter may remain, provided the dead-end corridor complies with all of the following:

(a) The dead-end corridor shall be constructed as described above for the full length of the dead-end corridor.

(b) The dead-end corridor shall not exceed 40 feet in length.

(c) A door with a magnetic hold-open device shall be placed across the corridor to create a vestibule located furthest from the open end of the dead-end corridor. The placement of the door shall be located not more than 20 feet from the open end of the dead-end corridor and the occupant load of the vestibule shall be less than 10 occupants.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-722. MEANS OF EGRESS ILLUMINATION AND EXIT SIGNS.

Means of egress illumination, exit signs, floor-level exit signs and exit path markings serving a Dwelling unit shall comply with C.B.C. Sections 1003.2.8, 1003.2.9 and 1007.6.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-723. EXIT STAIRWAY.

All exit stairways shall be enclosed and shall comply with all the requirements of C.B.C. Section 1005.3.3. Existing exit stairway enclosures may be allowed to pass through the first-floor elevator lobby, provided an approved fire-rated smoke-sealed door is placed in front of the elevator door on the first floor or there is another exit stairway enclosure leading directly

to the public way. A photoluminescent stairwell marking system shall be provided as a condition of the adaptive re-use building permit for buildings with more than 2 stories. Installation shall be in accordance with Fire Department installation guidelines.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-724. PRESSURIZATION OF EXIT STAIRWAY ENCLOSURE.

If pressurization of exit stairway enclosure is required, then a mechanical ventilation system shall be provided. The mechanical ventilation system shall provide a uniform air velocity of not less than 50 feet per minute while maintaining a positive pressure (not exceeding 25 pounds force on an interior door) relative to the adjacent areas and discharging this air to the outside of the building. The mechanical ventilation system shall be activated simultaneously with the fire sprinkler system or the smoke detector system. The mechanical ventilation system shall be supplied with primary and secondary sources of power. The primary power shall be provided by the power system supplied by the public utilities. The secondary power shall be from an approved standby source complying with the Electrical Code.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-725. ACCESSIBILITY (DISABLED ACCESS).

The conversion of an existing building or portion thereof to a joint living and work quarter(s) shall be considered residential occupancy for the purpose of applying accessibility (disabled access) requirements.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-726. INTERIOR ENVIRONMENT.

Habitable rooms shall be provided with natural ventilation by means of operable exterior openings with an area of not less than one thirtieth of the floor area of the room. In lieu of required operable exterior openings, a mechanical ventilation system may be provided.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-727. LIGHT.

Windows or skylights with a total area not less than one fifteenth of the floor area of the room may be used to satisfy the natural light requirements. Kitchens may be provided with artificial light.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-728. VENTILATION.

Public corridors or hallways shall be provided with an adequate ventilation system when all the habitable rooms in dwelling units on the floor do not have operable exterior openings that comply with the requirements of C.B.C. Section 1203.3. Adequate ventilation system for the

public corridors or hallways shall mean either operable exterior window or permanent exterior opening having a minimum area of five square feet, or a mechanical ventilation system which complies with the requirements of C.B.C. Section 1203.3.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-729. LIGHT AND VENTILATION COURT.

A window may open into an existing court for light and ventilation, provided, the court is has adequate access at the bottom of the court for cleaning purposes. Every court more than two stories in height shall be provided with a horizontal air intake at the bottom of the court from the court to the exterior of the building, unless the court opens to a yard or public way. The horizontal air intake shall not be less than 10 square feet in cross-sectional area and shall lead to the exterior of the building. The construction of the horizontal air intake shall be as required for the court walls of the building, but in no case shall be less than one-hour fire-resistive construction. A mechanical ventilation system complying with the Mechanical Code may vent the court in lieu of the horizontal air intake.

EXCEPTION: when approved by the building official, an existing court may be deemed adequate for the purpose of providing light and ventilation based upon the area and height of the court.

(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-730. SOUND TRANSMISSION INSULATION.

Existing construction may remain without complying with the sound transmission insulation requirements for any newly created dwelling unit or joint living and work unit. All new construction shall comply with sound transmission requirements of C.B.C. Section 1208A.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-731. ENERGY CONSERVATION.

All new HVAC and new lighting systems shall comply with the current energy conservation requirements contained in Part 6 of Title 24 of the California Code of Regulations (California Energy Code). An existing building with a dwelling unit or joint living and work quarter need not comply with the building envelope requirements of the California Energy Code, if the building envelope is not altered in anyway due to compliance with other code requirements.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-732. STRUCTURAL DESIGN REQUIREMENTS (SEISMIC PROVISION).

The conversion of any portion of an existing building to joint living and work quarter shall be considered a "substantial alteration." All existing buildings shall be analyzed for 75 percent of the design basis ground motion, as defined in C.B.C. Section 1627 and as specified in C.B.C. Section 1629.1, but in no event shall there be a reduction in the capacity of the seismic force resisting system where such system provides a greater level of protection than the minimum requirements established by this division. Performance-based engineering analysis and design

procedures may be used to evaluate the existing structure and the design of strengthening elements when approved by the building official. All new structural elements shall meet current detailing requirements of C.B.C. Section 1633.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-733. ELECTRICAL SYSTEMS.

All electrical systems and installations for joint living and work quarter and other alterations in adjoining areas shall be designed in accordance with the Electrical Code. Wiring shall be as required for a residential occupancy.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-734. MECHANICAL SYSTEMS.

All mechanical systems shall comply with the requirements of the Mechanical Code. The ventilation system for the corridor shall be designed independently of the ventilation system for the joint living and work quarter or any other adjoining rooms. When a corridor is divided by the placement of self-closing door(s), the ventilation system shall be designed for each portion of the corridor, except when the doors have magnetic hold-open devices, the adjoining corridors may be considered as one space for the purpose of designing the ventilation system. An existing heating and/or cooling system may be used in lieu of the ventilation system for the corridor, provided the heating and/or cooling system is independent from the heating and/or cooling system for the dwelling or joint living and work quarter or from any other adjoining rooms.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-735. ELEVATORS.

Existing elevators need to comply with the State Elevator Safety Order of Sub-chapter 6, of Chapter 4, Division 1 of Title 8 of the California Code of Regulations. Existing freight elevators shall not be used as passenger elevators.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

SEC. 11-736. HISTORICAL BUILDING PROVISIONS.

Qualified Historical Buildings may use the State Historical Building Code.
(Added Ord. 2007-102, § 1, eff. 1-20-08).

MUNICIPAL CODE

and

CHARTER

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info@municode.com | 800.262.2633 | www.municode.com
P.O. Box 2235 Tallahassee, FL 32316

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CHAPTER 12

IMPACT FEES, HISTORIC RESOURCES, AND OTHER MISCELLANEOUS TOPICS*

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***Editor's note—**Ord. 2015-39, § 4, effective January 9, 2016, amended the title of Chapter 12. Previously, the Chapter was entitled "Land Use Planning and Zoning."

ARTICLE 1 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 1, §§ 12-101—12-105. Former Art. 1 pertained to general provisions applicable to zoning. For derivation of former Article 1, please see the Code Comparative Table.

ARTICLE 2 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 2, §§ 12-201—12-245.4. Former Art. 2 pertained to establishment of land use districts and regulations applicable therein. For derivation of former Article 4, please see the Code Comparative Table.

ARTICLE 3 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 3, §§ 12-301—12-328. Former Art. 3 pertained to general conditions applicable to zoning. For derivation of former Article 3, please see the Code Comparative Table.

ARTICLE 4 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 4, §§ 12-401—12-411. Former Art. 4 pertained to procedures applicable to zoning. For derivation of former Article 4, please see the Code Comparative Table.

ARTICLE 4.5 URBAN GROWTH MANAGEMENT

Sec. 12-4.500. Title.
Sec. 12-4.501. Purpose.
Sec. 12-4.501.5. Definitions.
Sec. 12-4.502. Urban Growth Management Area.
Sec. 12-4.503. UGM Suffix.
Sec. 12-4.504. Process.
Sec. 12-4.505. Requirement for a Service Delivery Plan.
Sec. 12-4.506. Exemptions.
Sec. 12-4.507. Waiver of Requirement for Service Delivery Plan.
Sec. 12-4.508. UGM Fire Stations.
Sec. 12-4.509. UGM Park Fees.

SEC. 12-4.500. TITLE.

This article shall be known as the "Urban Growth Management Ordinance of the City of Fresno." (Added Ord. 76-6, § 1, eff. 2-22-76).

SEC. 12-4.501. PURPOSE.

Pursuant to the policies, procedures, and requirements made applicable to the management of growth within the Urban Growth Management Area, established herein by reference to that document entitled "Urban Growth Management Process," dated December 5, 1975, adopted and modified from time to time by Council resolution, the purpose of this article is to achieve the orderly use and development of land within such Area by providing a process under the Subdivision Ordinance Article 10, Chapter 12, or this Zoning Ordinance for the construction or modification of buildings and structures in such Area or the change of occupancy of such buildings or structures.

An integral part of Urban Growth Management is a process referred to herein as the Urban Growth Management Process. The Urban Growth Management Process is intended neither to prevent any development or growth nor to permit free or disorganized development or growth in the Urban Growth Management Area. Such process is instead intended to identify the demands on municipal facilities, improvements, or services created by any proposed residential, commercial, industrial, or other type of development and to provide the means for satisfying such demands; to identify any deleterious effects of any such development and protect the city and its residents against such effects by minimizing the costs of municipal facilities, improvements, and services; and to maintain a high quality of such facilities, improvements, and services. (Added Ord. 76-6, § 1, eff. 2-22-76; Am. Ord. 98-54, § 2, 8-27-98).

SEC. 12-4.501.5. DEFINITIONS.

A. Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions

contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

B. ACCELERATED RATE means a rate set higher than the service rate, which is designed to provide funding for a capital project on an accelerated basis.

C. EXTENDED FIRE SERVICE AREA means all territory within a three-mile running distance of a fire station and outside the primary service area of a fire station, provided that the Council may expand or contract the boundaries of such area to conform to streets, railroads, natural barriers, or similar features or conditions.

D. PARK means the site, site improvements, and appurtenances necessary to serve the recreational needs, as identified by the Council, of the inhabitants of a UGM Park Service Area.

E. PRIMARY FIRE SERVICE AREA means all territory within a two-mile running distance of a fire station, provided that the Council may expand or contract the boundaries of such area to conform to streets, railroads, natural barriers, or similar features or conditions.

F. REIMBURSEMENT PERIOD shall be defined as follows:

1. INITIAL REIMBURSEMENT PERIOD means the period of fifteen years immediately following city acceptance of the facilities, improvements, right-of-way and site, as appropriate.

2. EXTENDED REIMBURSEMENT PERIOD means the period of five years immediately following the initial reimbursement period. A contributing developer shall qualify for reimbursement during the extended reimbursement period only if he has received at least seventy-five per cent of the total amount of the reimbursement due him by the expiration of the initial reimbursement period.

G. RUNNING DISTANCE means the actual distance which must be traveled over public streets or rights-of-way from a fire station to reach the scene of a fire incident.

H. SERVICE RATE means a rate based on a proportional sharing throughout a service area of the costs of a capital project which will serve such area.

I. UGM FIRE STATION CAPITAL FUND means a trust fund established from charges collected pursuant to Section 12-4.508-C of this Code as a result of development within each UGM fire station service area.

J. UGM FIRE STATION SERVICE AREA means the combined primary and extended service areas of fire station to be constructed with fire station capital fees within the UGM area.

K. UGM PARK FUND means a trust fund established from charges collected pursuant to Section 12-4.509-A of this Code as a result of development within a park service area.

L. UGM PARK SERVICE AREA means that territory established by Council resolution for the construction of one or more neighborhood parks with UGM park fees. (Added Ord. 79-169, § 1, eff. 11-16-79; Am. Ord. 83-163, § 4, eff. 1-20-84; Am. Ord. 85-38, § 1, eff. 4-12-85; Am. Ord. 95-4, §§ 1—6, eff. 3-19-95; Am. Ord. 95-38, § 5, 6-9-95).

SEC. 12-4.502. URBAN GROWTH MANAGEMENT AREA.

A. THE ZONE MAP. The Urban Growth Management Area is that area designated as such on the Zone Map, which area is generally located in and around the city's fringe and is either relatively undeveloped or is predominantly agricultural in use and lacks most, if not all, municipal facilities, improvements, or services necessary to serve residential, commercial, industrial, or other type of development.

B. AREA BOUNDARIES.

1. The boundaries of the Urban Growth Management Area shown upon the Zone Map are hereby adopted and made a part of this article; and all the notations, references and other information shown thereon shall be as much a part of this article as if the matters and information set forth thereon were all duly described herein.

2. Where boundaries indicated for the Urban Growth Management Area are approximately street, alley, or lot lines, such lines are in fact determined to be the boundaries of such area. Otherwise, the boundaries shall be determined by the dimensions shown on the Zone Map. In the absence of a dimension, the boundary shall be determined by use of the scale shown on such map.

3. Where a street, alley, railway or railroad right-of-way, water course, drainage channel or body of water included on the Zone Map serves as a boundary, the center line of such right-of-way, water course, channel or body of water shall be considered the boundary of the Urban Growth Management Area.

4. Where uncertainties exist, the Council shall, by resolution, determine the location of the Urban Growth Management Area boundaries.

C. CHANGING THE AREA. The Urban Growth Management Area may be changed by adding areas to or removing areas from such Area pursuant to the provisions of this section.

1. **Initiation.** Proceedings to change the Urban Growth Management Area may be initiated only pursuant to the provisions of subsections 1 (Council resolution), 3 (Director action), or 4 (Application) of Section 12-401-A.

2. **Findings and Recommendation.** Within thirty days after initiation of proceedings, the Director shall make written findings and a recommendation for or against any proposed change based upon the criteria contained in Section 12-4.502-A.

3. **Action on Recommendation.** The Director's recommendation against any proposed change initiated pursuant to subsection 4 of Section 12-401-A shall be final unless

the applicant appeals such recommendation to the Council pursuant to the provisions of Section 12-401-H. All other recommendations by the Director shall be set, noticed, and heard by the Council pursuant to the provisions of Sections 12-401-B, 12-401-C, 12-401-D, and 12-401-E. The provisions of Section 12-401-C-2 and C-3 regarding the mailing and posting of the notice shall not apply when the proposed change will not impose a new or increase in UGM fees or affect the reimbursement of such fees pursuant to Section 12-4.504-C. In such instances, notwithstanding Section 12-401-C-1, the City shall provide notice of the time, place, and subject matter of the public hearing by publication in a newspaper of general circulation in the city at least three times, once every seven days, for three consecutive weeks. Publication shall be completed at least ten days prior to the date set for public hearing. At the conclusion of the hearing, Council shall approve, modify or disapprove the Director's recommendation by resolution. The Council's action shall be final.

[4]. **Finalized Changes.** When a change is final, the Director shall immediately reflect such change in the boundary of the Urban Growth Management Area as shown on the Zone Map.

(Added Ord. 76-6, § 1, eff. 2-22-76; Am. Ord. 2010-53, § 1, eff. 2-4-11).

SEC. 12-4.503. UGM SUFFIX.

The zoning district symbol of any land located in the Urban Growth Management Area shall bear the suffix "UGM", until such time as such land is removed from such Area, for the purpose of placing the general public on notice that any construction or modification of buildings or structures in such area, or the change of occupancy of such buildings or structures, or the division of land in such Area, may be subject to the Urban Growth Management Process or some similar process.

(Added Ord. 76-6, § 1, eff. 2-22-76).

SEC. 12-4.504. PROCESS.

A. GENERAL. The Urban Growth Management Process includes consideration of the contents of a Service Delivery Plan which shall be prepared at the time of processing of a tentative tract map or a special permit, in accordance with the "Urban Growth Management Process" document referred to in Section 12-4.501 and as more particularly set forth in this article.

B. ANNUAL REPORT. The Chief Administrative Officer shall submit to the Council, as early as is practicable during each fiscal year or more frequently as he chooses, a report concerning the effects of the provisions contained in the "Urban Growth Management Process" document referred to in Section 12-4.501. Such report may recommend to Council modifications of such provisions. The provisions of such document shall be modified solely by Council resolution.

C. FEES AND REIMBURSEMENTS. As UGM fees are collected, they shall be reimbursed in the manner and for the period set forth in this section. All UGM fees include an administrative charge which the Public Works Director determines quarterly based on actual costs during the previous three months for establishing the fees, maintaining records and accounts, and administering the reimbursement process. Administrative charges are those charges other than for capital improvement expenditure and not limited to labor, overhead and equipment. These charges shall be imposed and collected from the accrued interest of the UGM funds each quarter from UGM funds on deposit just prior to payment of reimbursements pursuant to this section, in an equitable cost allocation manner as determined by the Finance Director in consultation with the Public Works Director.

When a developer is entitled to be reimbursed out of UGM fees by reason of his having paid or having been credited with fees in excess of his pro-rata fee obligation, he shall be reimbursed in semiannual payments as described above. When UGM fees have been collected for the purpose of such reimbursement, the city shall make semiannual payments, provided sufficient funds for doing so are available, in amounts determined by the Public Works Director, on or about April first and October first, commencing April first or October first following city acceptance of complete financial statements for the accepted facilities, improvements, right-of-way and site, as appropriate, and for the duration of the appropriate reimbursement period, as defined in Section 12-4.501.5-F of this Code. Should city fail to pay any reimbursement within sixty days of the dates referenced above when such payments are due, and such delay is not due to any fault of the person to whom reimbursement is owed, then city shall add an amount to such payment equal to the net interest actually earned by the city on the amount to be reimbursed.
(Added Ord. 76-6, § 1, eff. 2-22-76; Am. Ord. 83-163, § 5, eff. 1-20-84; Am. Ord. 89-85, § 6, eff. 7-28-89; Am. Ord. 93-18, § 1, eff. 4-16-93; Am. Ord. 98-54, § 3, 8-27-98; Am. Ord. 2017-19, § 8, eff. 6-18-17).

SEC. 12-4.505. REQUIREMENT FOR A SERVICE DELIVERY PLAN.

Before any building permit is issued to build, construct, erect, or modify any building or structure on land within the Urban Growth Management Area, or to change the occupancy of any such building or structure, a Service Delivery Plan shall have been prepared and incorporated into the tentative tract map or special permit conditions of approval except as otherwise provided in this article.

A. PREPARATION OF A SERVICE DELIVERY PLAN. Proceedings for the preparation of the Service Delivery Plan shall be initiated upon the filing of an application for a tentative tract map or special permit with the Director, accompanied with any applicable filing fees as may be established by Council resolution and such information, designs, drawings, materials, and matters as the Director finds necessary to prepare a Service Delivery Plan.

B. COMPLIANCE. The Service Delivery Plan shall comply with the provisions of the City's Urban Growth Management Process described in Sections 12-4.501 and 12-4.504.

C. SERVICE DELIVERY PLAN REQUIREMENTS. Upon determination by the Development Director of the requirements of the Service Delivery Plan, said requirements shall be incorporated into and made a part of the Tentative Tract Map or Special Permit Conditions of Approval.

D. APPROVAL, CONDITIONAL APPROVAL OR DENIAL.

1. FOR PROJECT'S SUBJECT TO A TENTATIVE TRACT MAP:

(a) Planning Commission Action. Within fifty days after the filing of an application for a tentative map or vesting tentative map, the Planning Commission shall approve, conditionally approve, or disapprove the Service Delivery Plan related to a tentative map after having considered the recommendation of the Director and the contents of the Service Delivery Plan.

(b) Effect of Decision. The Planning Commission's action on the tentative map or vesting tentative map and related Service Delivery Plan shall be final, subject to appeal to the City Council within the period of time prescribed.

(c) Appeal. Any interested person including the applicant may appeal from any action of the Planning Commission as related to a tentative map or vesting tentative map and related Service Delivery Plan pursuant to the provisions of Section 12-1019. When a proper appeal has been filed, a public hearing upon the matter shall be set before the City Council within thirty days of the receipt of the proper appeal.

(d) Effect of City Council Action on Appeal. On appeal, the City Council shall approve, conditionally approve, or disapprove the tentative map or vesting tentative map and Service Delivery Plan pursuant to Section 12-1019. The action of the City Council shall be final. The City Council shall not act on the subject map and Service Delivery Plan application unless it has considered the following factors:

(1) The recommendation of the Director,

(2) The Planning Commission's Action and report,

(3) The contents of the Service Delivery Plan.

2. FOR PROJECTS SUBJECT TO SPECIAL PERMIT:

(a) Director Action. The Director shall give notice of the Director's decision in accordance with Section 12-401-C-2.

(b) Director's Decision. The Director's decision shall be final unless any interested person, including the applicant, appeals to the City Council pursuant to the provisions of Section 12-401-H. When a proper appeal has

been filed, the Director's decision shall be set aside and a public hearing upon the matter be set before the City Council within thirty days of the receipt of the proper appeal.

(c) Council Action. Following the hearing the City Council may approve, conditionally approve or approve the Service Delivery Plan based on the criteria specified in Section 12-405-B, above, and subject to Section 12-401-E. The action of the City Council shall be final.

E. UGM AGREEMENT PRIOR TO ISSUANCE OF BUILDING PERMITS. Prior to the issuance of any building permit for any of the purposes set forth in the first paragraph of this section, the conditions, if any, of the Service Delivery Plan shall have been satisfied. Any unsatisfied condition may be considered satisfied upon execution and delivery to the Director of a UGM Agreement along with security, provided that the form of such agreement and approved security are approved by the City Attorney's Office.

F. EXPIRATION. An approved Service Delivery Plan shall expire upon the expiration of a related tentative tract map, special permit, building permit or certificate for a change of occupancy.

(Added Ord. 76-6, § 1, eff. 2-22-76; Am. Ord. 86-131, § 1, eff. 9-12-86; Am. Ord. 88-146, § 1, 12-23-88; Am. Ord. 98-54, § 4, 8-27-98).

SEC. 12-4.506. EXEMPTIONS.

A. EXEMPTIONS. The following uses, buildings or structures or a change of occupancy to any of the following uses shall be exempt from the requirement for a Service Delivery Plan:

1. All uses permitted in the "O" Open Conservation District and R-A Residential-Agricultural District.

2. All uses permitted in the AE-5 and AE-20 Agricultural districts, except for the following uses:

a. The curing, processing, packaging, packing, shipping and selling of agricultural products.

b. The manufacturing, maintenance, repair, servicing, storage, sale or rental of agricultural machines, implements and equipment of all kinds when not carried on as a clearly secondary occupation in conjunction with a bona fide agricultural operation.

c. The manufacture, storage, or sale of farm supplies of all kinds, including but not limited to fertilizers, agricultural minerals and insecticides when not carried on as a clearly secondary occupation in conjunction with a bona fide agricultural operation.

d. The transportation of agricultural products, supplies or equipment together with the maintenance, storage, repair and servicing of the necessary trucks and equipment when not carried on as a clearly secondary occupation in conjunction with a bona fide agricultural operation.

3. The maintenance and storage of agricultural equipment designed to be used solely for the harvesting of crops, which equipment must be located by the owner thereof upon the owner's own premises when not operated as a secondary occupation in conjunction with or as a part of a bona fide agricultural operation.

4. Permanent roadside stands for sale of agricultural products.

5. Sale of agricultural products produced upon the property.

6. Community auction and sale yards for sale of farm animals, products, implements, supplies, or equipment.

7. Mushroom growing.

8. All uses permitted in the R-1-AH, R-1-A, R-1-E, R-1-EH, R-1-B, R-1-C, and R-1 districts.

9. One- or two-family dwelling on any lot.

10. Tract offices, model homes, and construction materials storage yards, of a temporary nature, within any tract being developed.

11. Any accessory building or structure, including garages which are accessory to any residential use.

12. Private greenhouses and horticulture collections, flower and vegetable gardens.

13. House trailer parking.

14. Home occupations.

15. Temporary or permanent telephone booths.

16. Newspaper stand.

17. Ice and food products dispensing machines.

18. Signs.

19. Petroleum pipelines.

20. Caretaker's residence.

21. Recreational slide.

22. Punch presses.

23. Grocery dispensary facility in T-P zone.

24. Off-street parking or off-street parking lot or accessory structures.

25. The following public facilities and public utilities:

a. All facilities which are owned or under the control of a public agency (city, county, state, federal, special district) and utilized to perform a governmental function.

b. All public utilities which perform a public service function.

c. Electrical distribution substation.

d. Flood control settling pond.

e. Public schools, parks, playgrounds, and libraries.

f. Water pump stations.

g. Microwave relay stations.

h. Post Office substations.

i. Public parking facilities.

26. Such quasi-public organizations, uses or facilities.

B. ADDITIONAL EXEMPTIONS. Additional exemptions from the requirements of this article including the application, approval and issuance of a Service Delivery Plan and the payment of UGM fees, or a deferral of such fees, may be authorized pursuant to the provisions of this section. Such exemptions and deferrals may be processed in accordance with the provisions of this zoning ordinance applicable to land located outside the Urban Growth Management Area.

1. **Initiation.** Exemption proceedings may be initiated only pursuant to the provisions of subsection 1 (Council resolution) or subsection 3 (Director action) of Section 12-401-A.

2. **Director's Decision.** Within thirty days after initiation of proceedings, the Director shall make his written decision approving or disapproving any proposed exemption or deferral. The Director shall disapprove any proposed exemption of deferral unless he makes the following findings:

a. The installation, addition, extension, expansion or upgrading of municipal facilities, improvements or services concurrently with or necessitated by a proposed development are insubstantial, and

b. The proposed exemption or deferral will be consistent with the objectives of the Urban Growth Management Process to minimize the cost of municipal facilities, improvements, and services, and to maintain a high quality of such facilities, improvements and services.

3. **Effect of Decision.** The decision of the Director disapproving a proposed exemption or deferral initiated by him shall be final. The decision of the Director approving or conditionally approving a proposed exemption or deferral shall be presented to the Council for final decision.

4. **Council Action.** All Director's decisions forwarded to the Council shall be set for public hearing before the Council pursuant to Section 12-401-B, noticed pursuant to

Section 12-401-C-1, and held pursuant to Section 12-401-D. Following the hearing the Council may approve, modify or disapprove the Director's decision, subject to Section 12-401-E, based on the criteria specified in subsections 2a and 2b of this section. The action of the Council shall be final. (Added Ord. 76-6, § 1, eff. 2-22-76; Am. Ord. 85-158, § 1, eff. 11-22-85; ; Am. Ord. 98-54, § 5, 8-27-98).

SEC. 12-4.507. WAIVER OF REQUIREMENT FOR SERVICE DELIVERY PLAN.

Pursuant to the provisions of this section, the Director may waive the requirement for a Service Delivery Plan applicable to land which is contiguous to or which crosses the inner boundary of the Urban Growth Management Area.

A. INITIATION. Proceedings to waive the requirements for a Service Delivery Plan may be initiated only pursuant to the provisions of subsection 4 (application) of Section 12-401-A.

B. DIRECTOR'S DECISION. Within thirty days after initiation of proceedings, the Director shall make a written decision approving or disapproving any proposed waiver. The Director shall disapprove any proposed waiver unless he makes the following findings:

1. The installation, addition, extension, expansion, or upgrading of municipal facilities, improvements, or services as a result of a waiver of the Service Delivery Plan requirement are insubstantial, and

2. Waiver of the Service Delivery Plan requirement will be consistent with the objectives of the Urban Growth Management Process to minimize the cost of and to maintain a high quality of municipal facilities, improvements, and services.

The Director shall give notice of his decision pursuant to the provisions of Section 12-401-F.

C. APPEAL. The Director's decision shall be final unless any interested person, including the applicant, appeals such decision to the Council pursuant to the provisions of Section 12-401-H. Following the hearing the Council may approve, modify or disapprove the Director's decision, subject to Section 12-401-E, based on the criteria specified in subsections 2a and 2b above. The action of the Council shall be final. (Added Ord. 76-6, § 1, eff. 2-22-76; Am. Ord. 98-54, § 6, 8-27-98).

SEC. 12-4.508. UGM FIRE STATIONS.

A. PURPOSE. The purpose of this section is to insure the provision of fire service within the Urban Growth Management Area and to provide a means for the levying and collecting of fees to be used to construct, equip and furnish fire stations to serve fire service areas as may be established by Council. Such fees shall be calculated upon the premise, established by extensive experience within this city, that up to 5,000 residential units, or their equivalent, can be safely protected outside the primary service area of existing fire stations, provided such units are located within the five-mile running distance of an existing fire station.

B. UGM FIRE STATION SERVICE AREAS. The Council may establish by resolution Fire Station Service Areas within the Urban Growth Management Area.

1. The Official Map for each Fire Service Area and a record of all boundary modifications thereto shall be kept on file in the office of the Public Works Director.
2. The Public Works Director may adjust the boundaries of an established Fire Service Area or may concurrently adjust the common boundaries within two or more established Fire Service Areas under either of the following circumstances:
   a. When the service area boundary crosses through a proposed development; or
   b. When it is determined by the Public Works Director that a proposed development will be served from an adjacent service area.

C. UGM FIRE; STATION CAPITAL FEE.

1. The Council shall designate in the Master Fee Resolution a schedule of UGM Fire Station Capital Fees for each UGM Fire Station Service Area, and a separate schedule of UGM Fire Station Capital Fees for those territories within the Urban Growth Management Area which are not included within a UGM Fire Station Service Area.
2. Fees set forth in the Master Fee Resolution shall be amended during the month of January of each year to reflect:
   a. Inflation in the estimated cost of a station, equipment, land and other related expenses;
   b. Any territory annexed to the service area during the preceding year which will generate additional fees;
   c. Any development which occurred during the preceding year within the service area of the subject fire station but which is exempt from the payment of fees hereunder;
   d. Changes in land use plans approved by the Council affecting the density of development within a service area; and
   e. Any other factors influencing the costs of constructing or equipping a UGM Fire Station.

D. UGM DEVELOPMENT PERMITTED.

1. Development will be permitted within the UGM area only upon payment by the developer of the appropriate UGM Fire Station Capital Fee as established pursuant to this section.
2. When only a portion of a lot is developed, and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, the Public Works Director may require the payment of the Fire Station Capital Fee applicable only to that portion of the lot developed or to be developed, provided that the parcel for which such fees are charged shall have an area of not less than twelve thousand

five hundred (12,500) square feet. When the balance of the lot is developed, the remaining Fire Station Capital Fee shall be paid. The Public Works Director shall fix the portion of the lot which is to be considered as developed.

3. The UGM Fire Station Capital Fee is payable upon the submittal for final approval of any tract map or parcel map or, in the absence of submittal of a map, at the time of issuance of a building permit. A developer may elect to defer the payment of such fee until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604.

4. Development defined by this Code to be a Planned Unit Development or a development approved pursuant to a Conditional Use Permit shall pay fees according to a rate determined by the Director to be most similar to the actual land use.

5. In the R-A, AE-5 and AE-20 zone districts on a developed lot at least four net acres in size, when a portion not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence, the Director may require the payment of the UGM Fire Station Capital Fee applicable only to the portion of such lot to be improved. The Director shall fix the portion of such lot which is to be considered as improved.

E. UGM DEVELOPMENT RESTRICTIONS. In addition to payment of UGM Fire Station Capital Fees, all development in the UGM area shall be subject to the following restrictions:

1. Residential.

   a. No more than five thousand residential units, or their equivalent, shall be permitted beyond the primary service area and within a five mile running distance of an existing city fire station.

   b. Between the three and four mile running distance of an existing and operating fire station there shall be a one hundred-foot separation between buildings, or a fifty-foot separation between buildings, consistent with planned densities, and:

      (1) All roofing materials shall be noncombustible, and

      (2) All facing surfaces between buildings shall be noncombustible.

   c. Between the four and five mile running distance there shall be a one hundred-foot separation between buildings.

   d. Between the three and five mile running distance, the one hundred-foot and fifty-foot separation requirements may be waived with the installation of automatic fire extinguishing systems, as approved by the Fire Chief, in all buildings within the project area.

   e. In no event will residential development be permitted beyond the five mile running distance of an existing and operating city fire station unless the

developer first constructs a city fire station to serve such development, in which event the developer will be reimbursed in accordance with subsection G-2 of this section.

2. Commercial.

   a. In addition to the payment of UGM Fire Station Capital Fees, commercial and industrial development will be permitted beyond the two-mile running distance of an existing and operating city fire station only upon compliance by the developer with all conditions imposed by the Fire Chief and approved by the Council for fire safety purposes, such as additional spacing between buildings, installation of fire sprinklers, or the use of noncombustible materials.

   b. In no event will commercial or industrial development be permitted beyond the three-mile running distance of an existing and operating fire station unless the developer first constructs a city fire station to serve such development, in which event the developer will be reimbursed in accordance with subsection G-2 of this section.

   c. The Director may grant a temporary waiver from the restrictions of subdivision b. when the Fire Chief finds either the physical response time is equivalent to the running distance or all of the following circumstances apply:

      (1) the development will improve the health and safety of the community.

      (2) the proposed development meets minimum fire safety standards acceptable to the Fire Chief for service times and risk of fire for the period of the waiver.

      (3) the developer has provided adequate security, in a form approved by the Director and the City Attorney, to ensure development will be completed upon the expiration of the waiver.

      The time limit on the waiver will be provided by the Fire Chief to ensure the protection of the public health and safety, but in no event shall the waiver be more than two years from the date of issuance of the first certificate of occupancy for the development. The Fire Chief shall adopt written standards to administer this waiver, including but not limited to, a list of building occupancies, water supply requirements, and building construction types appropriate for this waiver pursuant to the Fire Chief's authority and responsibilities under the Fresno Fire Code.

3. Exception. Notwithstanding the above, development will be permitted beyond the distances and densities specified herein provided the developer pays the appropriate UGM Fire Station Capital Fee and such development will be protected by another fire protection agency pursuant to a contract approved by the city.

F. CONSTRUCTION OF UGM FIRE STATION.

1. All Fire Station Capital Fees collected from development within an established UGM Fire Station Service Areas, and not committed by agreement or otherwise to some

other UGM Fire Station Service Area, shall be deposited in a UGM Fire Station Capital Fund for the area in which collected. Each such fund shall be used solely for the purposes of purchasing land, constructing buildings and improvements, and purchasing machinery, equipment, furnishings and other capital-type fire station facilities within the UGM Fire Station Area in which such fees were generated, and for administration, inspection and engineering costs of the city directly related thereto.

2. All UGM Fire Station Capital Fees collected from development outside an established UGM Fire Station Service Area shall be held in a separate fund until such service area is established, at which time all such fees, together with interest thereon, shall be transferred into a UGM Fire Station Capital Fund to be used as above.

3. At such time as fees are collected from development within any given UGM Fire Station Service Area, sufficient in amount to construct, equip and furnish a fire station, as determined by the Director, the city shall initiate proceedings to call for bids for the construction of a fire station within such area.

G. REIMBURSEMENTS WITHIN UGM FIRE STATION AREA.

1. Upon the acquisition, construction, equipping and furnishing of a fire station, all fire station capital fees thereafter charged and collected within the service area of such fire station will be charged at the service fee rate. All such fees shall be placed in a trust fund and, after any additional costs of acquisition, construction, equipping and furnishing of the fire station are paid from such trust fund, shall be paid out semiannually to those persons, or their heirs and successors, who contributed fire station capital fees at the accelerated rate, in proportion to their respective contributions thereto, in the manner and for the period prescribed in Section 12-4.504-C of this Code. Reimbursement rights shall not be assignable except upon written request and notice to, and approval by, the city.

2. Where, as a condition precedent to approval of development in the Urban Growth Management Area, a person has been required to construct a fire station which has been accepted by the city, such person shall file with the Public Works Director within ninety days following city acceptance of the fire station a project accounting stating the cost of construction of the fire station. The Public Works Director shall determine semiannually as of each April first and October first following city acceptance of the fire station those portions of the service area which have been developed and which have paid the fire station capital fee during the preceding six months, in the manner and for the period prescribed in Section 12-4.504-C of this Code.

   For each gross acre so determined to have been developed, there shall be paid from the UGM fire station capital fund to the person who constructed the fire station, reimbursements based on the cost of such fire station and the costs of site acquisition, design, construction, inspection, furnishings and equipment. The amount

to be reimbursed shall be credited against the fire station capital fee to be paid on behalf of all property contributing to the cost thereof in proportion to the amount of such contribution.

In the event that credit for such property exceeds the fire station capital fee, the difference shall be paid from the UGM fire station capital fund upon completion of the fire station, but only to the extent fire station capital fees are paid on behalf of other properties which are developed subsequent to city acceptance of the fire station, and only for the period applicable under Section 12-4.501.5-F of this Code. Payments may not be made to such person in excess of the cost of the fire station as shown on the project accounting, less his pro-rata share; provided further that neither determinations nor payments may be made at all if the project accounting is not timely filed as required above.

3. Where fire station capital fees have been paid on the basis of a multifamily zone district classification but the subject property was thereafter actually developed to a single-family residential zone district standard, the Director shall refund to the payor of such fees the difference between the amount of fees actually paid and the amount which would have been paid if the subject property had been classified as a single-family residential zone district, subject to compliance with the following criteria:

   a. The properties for which refunds are requested shall have been developed. As used herein, developed ' shall mean the issuance of building permits for the construction of a single-family residential structure on a lot or lots of record with an established fire station service area.

   b. Where the subject property is still owned by the payor of such fees, the payor shall file an application for rezoning thereof to a single-family zone district having property development standards consistent with that which has actually been developed. Such application shall include such information as required by the Director to ascertain compliance with the applicable property development standards.

   c. Where the ownership of the subject property has been transferred to a person other than the payor of such fees, the Council shall initiate the rezoning thereof to a single-family zone district with property development standards consistent with that which has actually been developed. For properties such as these, the payor shall provide the Director with the names and addresses of the property owners of record, and with the information required by the Director to ascertain compliance with the applicable property development standards.

   d. Any request for refund of fees pursuant to this subsection shall identify the subject property by street address and legal description, the owner or owners of record thereof, the amount of fee paid attributable to such property, and proof of payment.

e. The rezoning to the appropriate single-family zone classification shall have been approved by the Council and shall have become effective prior to payment of any refund of such fees.

f. Except as otherwise provided herein, any refund sought pursuant to this subsection shall be processed in the time and manner prescribed in Fresno Municipal Code Section 12-4.504(c) including the retention of the administrative charge provided therein upon establishment of appropriate fee rates which include the reapportionment of the approved land district amendments.

(Added Ord. 79-169, § 2, eff. 11-16-79; Am. Ord. 80-29, §§ 1, 2, 4-11-80; Am. Ord. 80-115, § 118, eff. 8-8-80; Am. Ord. 82-82, § 5, eff. 9-17-82; Am. Ord. 83-163, § 6, eff. 1-20-84; Am. Ord. 85-49, § 1, eff. 5-10-85; Am. Ord. 86-51, §§ 1—3, eff. 5-2-86; Am. Ord. 87-62, § 1, eff. 7-3-87; Am. Ord. 91-33, § 1, eff. 5-10-91; Am. Ord. 95-38, §§ 6, 7, eff. 6-9-95; Am. Ord. 2004-118, § 1, eff. 12-21-04; Am. Ord. 2014-31, § 1, eff. 8-29-14).

SEC. 12-4.509. UGM PARK FEES.

A. UGM PARK SERVICE AREAS.

1. The Council shall establish by resolution UGM Park Service Areas within the Urban Growth Management Area.

   a. The official map for each UGM Park Service Area shall be kept on file in the Office of the Public Works Director.

2. The Public Works Director may adjust the boundaries of an established Park Service Area or may concurrently adjust the common boundaries within two or more established Park Service Areas under either of the following circumstances.

   a. When the service area boundary crosses through a proposed development; or

   b. When it is determined by the Public Works Director that a proposed development will be serviced from an adjacent service area.

B. UGM PARK FEE.

1. The Council shall designate in the Master Fee Resolution a separate schedule of UGM Park Fees for each UGM Park Service Area.

2. Fees set forth in the Master Fee Resolution shall be amended during the month of January each year to reflect:

   a. Inflation in the estimated cost of a park, equipment and facilities, land, and other related expenses;

   b. Any territory annexed to the park service area during the preceding year which will generate additional fees;

   c. Any development which occurred during the preceding year within the service area of the subject park but which is exempt from the payment of fees hereunder;

d. Changes in land use plans approved by the Council affecting the density of development within a service area; and

e. Any other factors influencing the cost of constructing a park.

C. UGM DEVELOPMENT PERMITTED.

1. Development will be permitted within an established UGM Park Service Area only upon payment by the developer of the appropriate UGM Park Capital Fee.

2. When only a portion of a lot is developed, and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, the Public Works Director may require the payment of the Park Fee applicable only to that portion of the lot developed or to be developed, provided that the parcel for which such fees are charged shall have an area of not less than twelve thousand five hundred (12,500) square feet. When the balance of the lot is developed, the remaining Park Fee shall be paid. The Public Works Director shall fix the portion of the lot which is to be considered as developed.

3. The UGM Park Capital Fee is payable upon the submittal for final approval of any tract map or parcel map or, in the absence of submittal of a map, at the time of issuance of a building permit. A developer may elect to defer the payment of such fee until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604.

4. Development defined within the text of the code to be a planned unit development or development approved pursuant to a Conditional Use Permit shall pay fees according to a rate determined by the Director to be most similar to the actual land use.

5. In the R-A, AE-5 and AE-20 zone districts on a developed lot at least four (4.0) net acres in size, when a portion not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence, the Director may require the payment of the UGM Park Capital Fee applicable only to the portion of such lot to be improved. The Director shall fix the portion of such lot which is to be considered as improved.

D. UGM DEVELOPMENT RESTRICTIONS. The developer of land within the Urban Growth Management Area which includes territory designated on an adopted city plan as a park site shall, as a condition of approval of his development, dedicate such territory to the city for use as a park. Such developer shall thereafter be reimbursed in accordance with subsection F-2 of this section.

E. CONSTRUCTION OF UGM PARK.

1. All fees collected for development within a UGM Park Service Area shall be deposited into a separate UGM Park Capital Fund. Each such fund shall be used solely for the purposes of purchasing land, constructing buildings and improvements, and purchasing machinery, equipment, furnishings and other capital-type facilities

to provide park and recreation facilities within the UGM Park Service Area in which such fees were generated, and for administration, inspection and engineering costs of the city directly related thereto.

2. At such time as fees are collected from the development of one-half of the territory within any given park service area, as determined by the Director, the city shall initiate proceedings to call for bids for the construction of a park within such area.

F. REIMBURSEMENTS WITHIN UGM PARK AREA.

1. All UGM park capital fees collected within a UGM park service area following development of one-half of such area shall be charged at the service fee rate. All such fees shall be placed in a trust fund and, after any additional costs of acquisition and construction of the park are paid from such trust fund, shall be paid out semiannually to those persons, or their heirs and successors, who contributed park fees at the accelerated rate, in proportion to their respective contributions thereto, in the manner and for the period prescribed in Section 12-4.504-C of this Code. Reimbursement rights shall not be assignable except upon written request and notice to, and approval by, the city.

2. Where, as a condition precedent to approval of development in the Urban Growth Management Area, a person has been required to construct a park or dedicate a park site which has been accepted by the city, such person shall file with the Public Works Director within ninety days following acceptance of the park a project accounting stating the cost of construction of the park and, if a park site has been dedicated, the cost of acquisition of the park site. The Public Works Director shall determine semiannually as of each April first and October first following acceptance of the park, those portions of the service area which have been developed and which have paid the park capital fee during the preceding six months, in the manner and for the period prescribed by Section 12-4.504-C of this Code.

   For each gross acre so determined to have been developed, there shall be paid from the UGM park capital fund to the person who constructed the park or, if applicable, dedicated the park site, reimbursements based on the cost of such park and the costs of site acquisition, design, construction, inspection, furnishings, and equipment. The amount to be reimbursed shall be credited against the park capital fee to be paid on behalf of all property contributing to the cost thereof in proportion to the amount of such contribution.

   In the event that credit for such property exceeds the park capital fee, the difference shall be paid from the UGM park capital fund upon city acceptance of the park, but only to the extent park capital fees are paid on behalf of other properties which are developed subsequent to city acceptance of the park, and only in the manner and for the period prescribed under Section 12-4.504-C of this Code. Payments may only be made to such person as shown on the project accounting, less his pro-rata share; provided further that neither determinations nor payments may be made at all if the project accounting is not timely filed as required above.

3. Where UGM park capital fees have been paid on the basis of a multifamily zone district classification but the subject property was thereafter actually developed to a single-family residential zone district standard, the Director shall refund to the payor of such fees the difference between the amount of fees actually paid and the amount which would have been paid if the subject property had been classified as a single-family residential zone district, subject to compliance with the following criteria:

   a. The properties for which refunds are requested shall have been developed. As used herein, "developed" shall mean the issuance of building permits for the construction of a single-family residential structure on a lot or lots of record within an established park service area.

   b. Where the subject property is still owned by the payor of such fees, the payor shall file an application for rezoning thereof to a single-family zone district with property development standards consistent with that which has actually been developed. Such application shall include such information as required by the Director to ascertain consistency with the applicable property development standards.

   c. Where the ownership of the subject property has been transferred to a person other than the payor of such fees, the Council shall initiate the rezoning thereof to a single-family zone district with property development standards consistent with that which has actually been developed. For properties such as these, the payor shall provide the Director with the names and addresses of the property owners of record, and with the information required by the Director to ascertain compliance with the applicable property development standards.

   d. Any request for refund of fees pursuant to this subsection shall identify the subject property by street address and legal description, the owner or owners of record thereof, the amount of fee paid attributable to such property, and proof of payment.

   e. The rezoning to the appropriate single-family zone classification shall have been approved by the Council and shall have become effective prior to payment of any refund of such fees.

   f. Except as otherwise provided herein, any refund sought pursuant to this subsection shall be processed in the time and manner prescribed in Fresno Municipal Code Section 12-4.504(c) including the retention of the administrative charge provided therein upon establishment of appropriate fee rates which include the reapportionment of the approved land district amendments.

(Added Ord. 79-169, § 3, eff. 11-16-79; Am. Ord. 80-29, §§ 3, 4, eff. 4-11-80; Am. Ord. 80-115, § 119, eff. 8-8-80; Am. Ord. 82-82, § 6, eff. 9-17-82; Am. Ord. 83-163, § 7, eff. 1-20-84; Am. Ord. 85-49, § 2, eff. 5-10-85; Am. Ord. 86-51, §§ 4—6, eff. 5-2-86; Am. Ord. 89-85, § 7, eff. 7-28-89; Am. Ord. 91-33, § 2, eff. 5-10-91; Am. Ord. 95-38, §§ 8, 9, eff. 6-9-95).

ARTICLE 4.6 PAYMENT OF DEVELOPMENT FEES AND CHARGES

Sec. 12-4.601. Title.
Sec. 12-4.602. Purpose.
Sec. 12-4.603. Definitions.
Sec. 12-4.604. Deferred Payment Authorized.

SEC. 12-4.601. TITLE.

This article shall be known as the "Development Fee Deferral Ordinance of the City of Fresno." Although this article regulates the payment of fees prescribed by the Zoning Ordinance of the City of Fresno, it shall not be deemed a part thereof. (Added Ord. 95-38, § 11, eff. 6-9-95)

SEC. 12-4.602. PURPOSE.

The development of real property within the city creates demands on existing municipal facilities, improvements, and services. Various development fees and charges are imposed upon new development in order to mitigate such demands. Payment of those fees and charges is required at various stages of the development process, including the amendment of applicable land use plans, rezoning, tentative tract map, tentative parcel map, UGM permit, the issuance of special permits, building permits, certificates of occupancy, and similar entitlements. To facilitate the orderly collection and administration of such development fees and charges, this article sets forth the terms and conditions upon which the payment thereof may be deferred and paid simultaneously upon the issuance of a certificate of occupancy for the buildings or structures within such development. (Added Ord. 95-38, § 11, eff. 6-9-95)

SEC. 12-4.603. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 and in Article 1 (commencing with Section 12-101) of Chapter 12 of this Code, shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Development Entitlement" shall mean a general plan amendment, community plan amendment, specific plan amendment, zone district amendment, a UGM permit, conditional use permit, site plan, tentative tract map, tentative parcel map, building permit, or other permit or entitlement authorizing the development of real property or the construction of a structure thereon.

(c) "Development Fee" shall mean a charge or fee imposed by this code or by council resolution as a condition of the approval or issuance of a development entitlement or the right to connect property to the city water or sewer system, the proceeds of which fee or charge are to be utilized for the acquisition or construction of capital facilities. (Added Ord. 95-38, § 11, eff. 6-9-95)

SEC. 12-4.604. DEFERRED PAYMENT AUTHORIZED.

Whenever a provision of this code or council resolution authorizes the deferred payment of a development fee pursuant to this section, a developer may elect to defer the payment of such fee for any lot or parcel until the issuance by the city of a certificate of occupancy for any building or structure on that lot or parcel by entering into an agreement with the city as follows:

(a) The fee obligation deferred, including fees generated by common areas, outlots, and similar areas within a subdivision or development, shall be prorated to each lot, parcel, unit or building in the manner specified by the Director.

(b) The deferred fee shall be payable at the rate in effect at the time of payment.

(c) The fee shall be payable no later than issuance by the city of a certificate of occupancy for any structure erected on said lot or parcel.

(d) The agreement authorizing deferred payment shall be in a form approved by the city attorney.

(e) The agreement shall be signed by all persons having a record interest in the real property for which the fees are being deferred and shall include a legal description of that property.

(f) The agreement shall provide that the whole or any part of the balance of the charges due may be accelerated and paid at any time at the option of the payor.

(g) The agreement shall constitute a covenant running with the land, shall establish a lien on the property in favor of the city in the amount of the deferred charges, and shall be recorded in the office of the Fresno County Recorder.

(h) The lien for said fee shall be enforceable by the city in any manner available at law or in equity, including but not limited to private foreclosure and sale of the property in the manner provided in Section 2924 of the California Civil Code. (Added Ord. 95-38, § 11, eff. 6-9-95).

ARTICLE 4.7 PARK FACILITIES FEE

Sec. 12-4.701. Purpose.
Sec. 12-4.702. Park Facilities Fee Established.
Sec. 12-4.703. Effect on UGM Park Fees.
Sec. 12-4.704. Use of Fee Revenues.
Sec. 12-4.705. Developer Dedication or Construction of Facilities.
Sec. 12-4.706. Administrative Guidelines.

SEC. 12-4.701. PURPOSE.

In order to implement the goals and objectives of the City's general plan, and to mitigate the impacts caused by future development in the city, certain park facilities must be constructed. The City Council has determined that a park facilities fee is needed in order to finance these public facilities and to pay for each development's fair share of the construction and acquisition costs of these improvements. In establishing the fee described in the following sections, the City Council has found the fee to be consistent with its general plan, and pursuant to Government Code Section 65913.2, has considered the effects of the fee with respect to the city's housing needs as established in the housing element of the general plan. (Added Ord. 2005-113, § 1, eff. 11-7-05).

SEC. 12-4.702. PARK FACILITIES FEE ESTABLISHED.

(a) A park facilities fee ("the Fee") is established to pay for municipally owned park and recreation facilities.

(b) The City Council shall, in a Council resolution adopted after a duly noticed public hearing, set forth the amount of the Fee, describe the benefit and impact area on which the Fee is imposed, set forth the municipally owned public facilities to be financed with the revenue from the Fee, describe the estimated cost of those facilities, and describe the reasonable relationship between the Fee and the various types of future developments and set forth the time for payment of the Fee. (Added Ord. 2005-113, § 1, eff. 11-7-05).

SEC. 12-4.703. EFFECT ON UGM PARK FEES.

Following the Council's adoption of the resolution required by subdivision (b) of Section 12-4.702 and the Fee becoming effective, any project subject to the Fee shall be exempt from complying with the requirements of Section 12-4.509; provided, however, that if a court of competent jurisdiction declares the Fee to be invalid or otherwise prevents the City from collecting the Fee following the Fee becoming effective, all projects shall remain subject to the requirements of Section 12-4.509. (Added Ord. 2005-113, § 1, eff. 11-7-05).

SEC. 12-4.704. USE OF FEE REVENUES.

The revenues raised by payment of the Fee shall be accounted for in the city's capital project fund. Separate and special accounts within the fund shall be used to account for revenues, along with any interest earnings on such account. These monies shall be used for the following purposes:

(a) To pay for land acquisition for, and design, engineering, and construction of the public facilities designated in the Council resolution and reasonable costs of outside consultant studies related thereto;

(b) To reimburse the city for designated public facilities constructed by the city with funds (other than gifts or grants) from other sources together with accrued interest;

(c) To reimburse developers who have designed and constructed designated public facilities which are oversized with supplemental size, length, or capacity; and/or

(d) To pay for and/or reimburse costs of program development and ongoing administration of the park facilities fee program.

(Added Ord. 2005-113, § 1, eff. 11-7-05).

SEC. 12-4.705. DEVELOPER DEDICATION OR CONSTRUCTION OF FACILITIES.

Residential development shall be responsible for a combination of land dedication and payment of in-lieu fees as follows:

a) **Single-Family Development.**

i. **Fifty Parcels or Less.** For residential subdivisions with tentative maps containing fifty parcels or less, (inclusive of outlots) the subdivider shall pay in-lieu fees only.

ii. **More Than Fifty Parcels.** For residential subdivisions with tentative maps containing more than fifty parcels (inclusive of outlots), the subdivider shall pay in-lieu fees and dedicate 0.6 acres per 1,000 residents, or 0.001884 acres per residential unit, for a pocket park within the overall tentative map. This requirement shall apply to phased final subdivision maps which are part of a tentative map exceeding fifty parcels. An outlot being dedicated to satisfy the dedication requirement herein, shall include standard frontage improvements (including curb, gutter, sidewalk, and street lighting) as well as irrigation, landscaping, and park benches as approved by the Director of the Parks, After-School, Recreation and Community Services Department (Frontage and Landscape Improvements).

b) **Dedication Credit.**

i. **Recreational Improvements.** Per the Map Act (Section 66477(a)(9)), the value of park and recreational improvements required or approved by the City shall be a credit against the payment of fees required by this section. Park Facility Impact Fee credits or reimbursements will not be made for Frontage and Landscape Improvements.

ii. **Supplemental Park Land Dedication.** If a subdivider is required, as a condition of a discretionary approval, to dedicate park land in excess of 0.6 acres per 1,000 residents, or 0.001884 acres per residential unit, the value of the supplemental park land in excess of 0.001884 acres per residential unit shall be a credit against the payment of fees required by this section.

iii. **Neighborhood and Community Park Land.** If a subdivider is required, as a condition of a discretionary approval, to dedicate land for or construct a

neighborhood or community park of more than two acres, a credit against the fee otherwise levied by this section on the development project shall be offered by the City. The reimbursement amount shall not include the portion of the improvement needed to mitigate the burdens created by the development as determined by the City.

iv. **Reimbursement Agreement.** In the event a subdivider is entitled to credit pursuant to this section or Section 15-3701(J), City and the subdivider shall enter into a reimbursement agreement.

c) **Gated Development.** Gated subdivisions shall be subject to the combined in-lieu fee and park land dedication requirements set forth in this section, except that land dedication shall be made to the appropriate association and not the City.

d) **Multi-Family Development.** Multi-family developments shall be subject to on-site open space and in-lieu fee requirements as established in Chapter 15 (Development Code) of the Fresno Municipal Code.

(Added Ord. 2005-113, § 1, eff. 11-7-05; Am. Ord. 2016-57, § 1, eff. 1-22-17).

SEC. 12-4.706. ADMINISTRATIVE GUIDELINES.

The City Council may, by resolution, adopt administrative guidelines to provide procedures for the calculation, reimbursement, credit, or deferred payment and other administrative aspects of the fee.

(Added Ord. 2005-113, § 1, eff. 11-7-05).

ARTICLE 4.8 POLICE FACILITIES FEE

Sec. 12-4.801. Purpose.
Sec. 12-4.802. Police Facilities Fee Established.
Sec. 12-4.803. Effect on UGM Police Fees.
Sec. 12-4.804. Use of Fee Revenues.
Sec. 12-4.805. Developer Dedication or Construction of Facilities.
Sec. 12-4.806. Administrative Guidelines.

SEC. 12-4.801. PURPOSE.

In order to implement the goals and objectives of the City's general plan, and to mitigate the impacts caused by future development in the city, certain police facilities must be constructed. The City Council has determined that a Police Facilities Fee is needed in order to finance these public facilities and to pay for each development's fair share of the construction and acquisition costs of these improvements. In establishing the fee described in the following sections, the City Council has found the fee to be consistent with its general plan, and pursuant to Government Code Section 65913.2, has considered the effects of the fee with respect to the city's housing needs as established in the housing element of the general plan.
(Added Ord. 2005-114, § 1, eff. 11-7-05).

SEC. 12-4.802. POLICE FACILITIES FEE ESTABLISHED.

(a) A Police Facilities Fee ("the Fee") is established to pay for municipally owned police facilities.

(b) The City Council shall, in a Council resolution adopted after a duly noticed public hearing, set forth the amount of the Fee, describe the benefit and impact area on which the Fee is imposed, set forth the municipally owned public facilities to be financed with the revenue from the Fee, describe the estimated cost of those facilities, and describe the reasonable relationship between the Fee and the various types of future developments and set forth the time for payment of the Fee.
(Added Ord. 2005-114, § 1, eff. 11-7-05).

SEC. 12-4.803. EFFECT ON UGM POLICE FEES.

Following the Council's adoption of the resolution required by subdivision (b) of Section 12-4.802 and the Fee becoming effective, any project subject to the Fee shall be exempt from complying with the requirements of any other development impact fees contained within the Master Fee Schedule related to funding police facilities.
(Added Ord. 2005-114, § 1, eff. 11-7-05).

SEC. 12-4.804. USE OF FEE REVENUES.

The revenues raised by payment of the Fee shall be accounted for in the city's capital project fund. Separate and special accounts within the fund shall be used to account for revenues, along with any interest earnings on such account. These monies shall be used for the following purposes:

(a) To pay for land acquisition for, and design, engineering, and construction of the public facilities designated in the Council resolution and reasonable costs of outside consultant studies related thereto;

(b) To reimburse the city for designated public facilities constructed by the city with funds (other than gifts or grants) from other sources together with accrued interest;

(c) To reimburse developers who have designed and constructed designated public facilities which are oversized with supplemental size, length, or capacity; and/or

(d) To pay for and/or reimburse costs of program development and ongoing administration of the Police Facilities Fee program. (Added Ord. 2005-114, § 1, eff. 11-7-05).

SEC. 12-4.805. DEVELOPER DEDICATION OR CONSTRUCTION OF FACILITIES.

If a developer is required, as a condition of approval of a permit, to dedicate land for or construct a public facility that has been designated to be financed with police facilities fees and if the facility has supplemental size, length, or capacity over that needed for the impacts of the development, a reimbursement agreement with the developer and a credit against the fee otherwise levied by this chapter on the development project shall be offered by the city. The reimbursement amount shall not include the portion of the improvement needed to mitigate the burdens created by the development. (Added Ord. 2005-114, § 1, eff. 11-7-05).

SEC. 12-4.806. ADMINISTRATIVE GUIDELINES.

The City Council may, by resolution, adopt administrative guidelines to provide procedures for the calculation, reimbursement, credit, or deferred payment and other administrative aspects of the fee. (Added Ord. 2005-114, § 1, eff. 11-7-05).

ARTICLE 4.9 FIRE FACILITIES FEE

Sec. 12-4.901. Purpose.
Sec. 12-4.902. Fire Facilities Fee Established.
Sec. 12-4.903. Effect on UGM Fire Stations Fees.
Sec. 12-4.904. Use of Fee Revenues.
Sec. 12-4.905. Developer Dedication or Construction of Facilities.
Sec. 12-4.906. Administrative Guidelines.

SEC. 12-4.901. PURPOSE.

In order to implement the goals and objectives of the City's general plan, and to mitigate the impacts caused by future development in the city, certain fire department facilities must be constructed. The City Council has determined that a Fire Facilities Fee is needed in order to finance these public facilities and to pay for each development's fair share of the construction and acquisition costs of these improvements. In establishing the fee described in the following sections, the City Council has found the fee to be consistent with its general plan, and pursuant to Government Code Section 65913.2, has considered the effects of the fee with respect to the city's housing needs as established in the housing element of the general plan. (Added Ord. 2005-115, § 1, eff. 11-7-05).

SEC. 12-4.902. FIRE FACILITIES FEE ESTABLISHED.

(a) A Fire Facilities Fee ("the Fee") is established to pay for municipally owned fire facilities.

(b) The City Council shall, in a Council resolution adopted after a duly noticed public hearing, set forth the amount of the Fee, describe the benefit and impact area on which the Fee is imposed, set forth the municipally owned public facilities to be financed with the revenue from the Fee, describe the estimated cost of those facilities, and describe the reasonable relationship between the Fee and the various types of future developments and set forth the time for payment of the Fee. (Added Ord. 2005-115, § 1, eff. 11-7-05).

SEC. 12-4.903. EFFECT ON UGM FIRE STATIONS FEES.

Following the Council's adoption of the resolution required by subdivision (b) of Section 12-4.902 and the Fee becoming effective, any project subject to the Fee shall be exempt from complying with the requirements of Section 12-4.508; provided, however, that if a court of competent jurisdiction declares the Fee to be invalid or otherwise prevents the City from collecting the Fee following the Fee becoming effective, all projects shall remain subject to the requirements of Section 12-4.508. (Added Ord. 2005-115, § 1, eff. 11-7-05).

SEC. 12-4.904. USE OF FEE REVENUES.

The revenues raised by payment of the Fee shall be accounted for in the city's capital project fund. Separate and special accounts within the fund shall be used to account for revenues, along with any interest earnings on such account. These monies shall be used for the following purposes:

(a) To pay for land acquisition for, and design, engineering, and construction of the public facilities designated in the Council resolution and reasonable costs of outside consultant studies related thereto;

(b) To reimburse the city for designated public facilities constructed by the city with funds (other than gifts or grants) from other sources together with accrued interest;

(c) To reimburse developers who have designed and constructed designated public facilities which are oversized with supplemental size, length, or capacity; and/or

(d) To pay for and/or reimburse costs of program development and ongoing administration of the Fire Facilities Fee program. (Added Ord. 2005-115, § 1, eff. 11-7-05).

SEC. 12-4.905. DEVELOPER DEDICATION OR CONSTRUCTION OF FACILITIES.

If a developer is required, as a condition of approval of a permit, to dedicate land for or construct a public facility that has been designated to be financed with Fire Facilities Fees and if the facility has supplemental size, length, or capacity over that needed for the impacts of the development, a reimbursement agreement with the developer and a credit against the fee otherwise levied by this chapter on the development project shall be offered by the city. The reimbursement amount shall not include the portion of the improvement needed to mitigate the burdens created by the development. (Added Ord. 2005-115, § 1, eff. 11-7-05).

SEC. 12-4.906. ADMINISTRATIVE GUIDELINES.

The City Council may, by resolution, adopt administrative guidelines to provide procedures for the calculation, reimbursement, credit, or deferred payment and other administrative aspects of the fee. (Added Ord. 2005-115, § 1, eff. 11-7-05).

ARTICLE 4.10 STREET FACILITIES FEE

Sec. 12-4.1001. Purpose.
Sec. 12-4.1002. Street Facilities Fee Established.
Sec. 12-4.1003. Effect on UGM Street Fees and Street Dedication Requirements.
Sec. 12-4.1004. Use of Fee Revenues.
Sec. 12-4.1005. Developer Dedication or Construction of Facilities.
Sec. 12-4.1006. Administrative Guidelines.

SEC. 12-4.1001. PURPOSE.

In order to implement the goals and objectives of the City's general plan, and to mitigate the impacts caused by future development in the city, certain street facilities must be constructed. The City Council has determined that street facilities fees are needed in order to finance these public facilities and to pay for each development's fair share of the construction and acquisition costs of these improvements. Based on this determination, Council adopted, by resolution amending the Master Fee Schedule, a Citywide Regional Street Impact Fee ("Citywide Street Fee") and a New Growth Area Major Street Fee ("Growth Area Street Fee"). Council adopts this Article to require the imposition of these street facilities fees on new development in the city.
(Added Ord. 2007-47, § 4, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

SEC. 12-4.1002. STREET FACILITIES FEES ESTABLISHED.

(a) All new development in the city shall be responsible for paying a Citywide Street Fee consistent with the administrative guidelines adopted pursuant to Section 12-4.1006. The amount of the Citywide Street Fee shall be provided in the Master Fee Schedule.

(b) In addition to the Citywide Street Fee, all new development in the New Growth Area (as delineated on the Official New Growth Area Major Street Map which shall be kept and made available to the public in the Public Works Department and made available on the city's website), shall be responsible for paying the Growth Area Street Fee consistent with the administrative guidelines adopted pursuant to Section 12-4.1006. The amount of the Growth Area Street Fee shall be provided in the Master Fee Schedule and shall include, for purposes of simplification, a component that equals the required Citywide Street Fee required in subdivision (a) of this section.
(Added Ord. 2007-47, § 4, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

SEC. 12-4.1003. EFFECT ON UGM STREET FEES AND STREET DEDICATION REQUIREMENTS.

Following adoption of this Article and the administrative guidelines described in Section 12-4.1006, any project subject to the Citywide Street Fee and/or the Growth Area Street Fee shall be exempt from Sections 11-208, 11-208.1, 11-208.2 and 11-226. Notwithstanding the above, if a court of competent jurisdiction declares the Citywide Street Fee and/or the

Growth Area Street Fee to be invalid or otherwise prevents the City from collecting these fees following the fees becoming effective, all projects shall remain subject to all of the requirements of Sections 11-208, 11-208.1, 11-208.2 and 11-226.
(Added Ord. 2007-47, § 4, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

SEC. 12-4.1004. USE OF FEE REVENUES.

The revenues raised by payment of the Fee shall be accounted for in the city's capital project fund. Separate and special accounts within the fund shall be used to account for revenues, along with any interest earnings on such account. These monies shall be used for the following purposes:

(a) To pay for land acquisition for, and design, engineering, and construction of the public street facilities designated to be financed with the Citywide Street Fee or the Growth Area Street Fee and identified in the Major Street Capital Improvement Plan ("designated public street facilities") and reasonable costs of outside consultant studies and other administrative costs related thereto consistent with administrative guidelines adopted pursuant to Section 12-4.1006;

(b) To reimburse the city for designated public street facilities constructed by the city with funds from other sources (not including Tier 1 Measure C Tier funds, competitive state or federal grants, state or federal earmarks) consistent with administrative guidelines adopted pursuant to Section 12-4.1006;

(c) To reimburse developers who have designed and constructed designated public street facilities in excess of the amount equal to their full fee obligation (and eligibility for fee credits) consistent with administrative guidelines adopted pursuant to Section 12-4.1006;

(d) To discharge reimbursement obligations for street or bridge requirements created under subsection 11-226(f) consistent with subdivision 11-226(f)(5) and administrative guidelines adopted pursuant to Section 12-4.1006; and/or

(e) To pay for and/or reimburse the costs of program development and to pay for ongoing administration costs of the street facilities fee program administrative guidelines adopted pursuant to Section 12-4.1006.
(Added Ord. 2007-47, § 4, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

SEC. 12-4.1005. DEVELOPER DEDICATION OR CONSTRUCTION OF FACILITIES.

If a developer is required, as a condition of approval of a development entitlement, to dedicate land for or construct a public facility that has been designated to be financed with the Citywide Street Fee or the Growth Area Street Fee, the developer shall be given a credit against the amount of their Citywide Street Fee and/or Growth Area Street Fee obligation in the amount of the value of the dedication and/or construction consistent with the guidelines adopted pursuant to Section 12-4.1006. If the developer's construction and/or dedication exceeds the full value of their fee obligation (i.e., eligibility for fee credits), the developer

shall be reimbursed from the Citywide Street Fee and Growth Area Street Fee funds in the amount of the value of the dedication and/or construction exceeds the full fee obligation consistent with the guidelines adopted pursuant to Section 12-4.1006. All credits and reimbursements shall be administered pursuant to guidelines adopted pursuant to Section 12-4.1006.
(Added Ord. 2007-47, § 4, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

SEC. 12-4.1006. ADMINISTRATIVE GUIDELINES.

The Council shall, by resolution, adopt administrative guidelines, which may be amended from time to time, to provide procedures for the calculation and payment of the Citywide Street Fee and/or the Growth Area Street Fee; reimbursement, credit, or deferred payment of the Citywide Street Fee and/or the Growth Area Street Fee; requirements on when a developer shall construct facilities to be financed by the Citywide Street Fee or the Growth Area Street Fee; and any other policies, not limited by the above, related to the administration of the street facilities fee program adopted pursuant to this Article.
(Added Ord. 2007-47, § 4, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

ARTICLE 4.11 TRAFFIC SIGNAL FACILITIES FEE

Sec. 12-4.1101. Traffic Signal Charge.
Sec. 12-4.1102. Reimbursements.
Sec. 12-4.1103. Deferral of Charges.

SEC. 12-4.1101. TRAFFIC SIGNAL CHARGE.

A Traffic Signal Charge shall be required for each lot created by subdivision, each development, or building permit issued within the City limits, as designated on the Official Traffic Signal Impact Fee Boundary Map as prepared by the Public Works Director. The fee shall be based on the average daily trip(s), or fraction thereof, generated by a specific development times the per unit ADT fee designated in the Master Fee Schedule. Average Daily Trip (ADT) is the current average daily traffic that is generated by a particular development. ADTs include trips leaving or originating from a property. For example, a vehicle leaving a property or development would be counted as one ADT, a vehicle entering a property or development would also be counted as one ADT.

For residential developments the trip generation shall be identified in the Master Fee Schedule. For non-residential development the trip generation calculations shall be based on the square footage of building(s), the building use, and utilizing the Institute of Transportation Engineers, Trip Generation Manual for average daily trip generation of the various building uses.
(Added Ord. 2007-47, § 5, eff. 4-19-07; Am. Ord. 2007-50, § 4, 7-14-07).

SEC. 12-4.1102. REIMBURSEMENTS.

Whenever a person covenants in a form acceptable to the City Attorney to install master plan traffic signal improvements, the estimated cost of construction thereof shall be credited against the Traffic Signal Charge which is due upon granting of the development entitlement on the property contributing to the cost of the traffic signal improvements. The estimated cost of construction for the traffic signal improvements shall be established by the Director.

In the event the actual cost of traffic signal construction exceeds the Traffic Signal Charge, a reimbursement shall be paid from the Traffic Signal Fund upon city acceptance of the signal improvements only to the extent that Traffic Signal Charges are paid on behalf of noncontributing properties served by the traffic signal up to the duration of the appropriate reimbursement period, in the manner prescribed by Section 12-4.504-C of this Code, and subject to the following:

(a) A request for reimbursement shall be submitted to the Director within ninety days following city acceptance of the signal work and shall include final statements from the contractor detailing the work that was performed. Only items approved by the Director shall be reimbursed.

(b) Reimbursement shall be made for the actual cost of construction including engineering and plan preparation.

(c) Except in the case of safety lighting, no reimbursement payments shall be made until the Director determines that traffic warrants for a signal are achieved. Upon such determination, and upon the Director's acceptance of the project accounting statements, the person installing the signal shall be eligible for reimbursement on or about April first and October first to the extent that unobligated funds are on deposit in the Traffic Signal Fund.

(d) The priority of reimbursements shall be based on the date the Director accepts the project accounting statements or on the date the Director determines that traffic warrants for the signal are achieved, whichever occurs later.

(e) The person initiating the signal installation shall be responsible to the city for all operation and maintenance costs until such time as the Director determine that traffic warrants are achieved.

(f) When reimbursements are made pursuant to this Section, the city shall reimburse in a manner and for the period prescribed by Section 12-4.504-C of this Code.

(Added Ord. 2007-47, § 5, eff. 4-19-07; Am. Ord. 2007-50, § 5, 7-14-07).

SEC. 12-4.1103. DEFERRAL OF CHARGES.

Traffic Signal Charges may be deferred until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604.

(Added Ord. 2007-47, § 5, eff. 4-19-07; Am. Ord. 2007-50, § 5, 7-14-07).

ARTICLE 4.12 EXEMPTION OF DEVELOPMENT FEES ON CERTAIN SMALL RESIDENTIAL DEVELOPMENTS

Sec. 12-4.1201. Title.
Sec. 12-4.1202. Purpose.
Sec. 12-4.1203. Definition.
Sec. 12-4.1204. Fee Exemption Program.
Sec. 12-4.1205. Application Process and Approval.
Sec. 12-4.1206. Precedence.

SEC. 12-4.1201. TITLE.

This article shall be known as the "Best Utilization of Infill Land Development" (B.U.I.L.D.) Ordinance of the City of Fresno. Although this article regulates the payment of fees prescribed by the Zoning Ordinance of the City of Fresno, it shall not be deemed a part thereof.
(Added Ord. 2013-21, § 1, eff. 8-24-13).

SEC. 12-4.1202. PURPOSE.

The Council desires to provide incentives for development within the City. It is Council's intent to provide an exemption of the development impact fees on any replacement or reconstruction of an existing single family, duplex, triplex or fourplex unit that has been destroyed or demolished, where the use of the property will not change or be intensified. Typically, fees would have been paid when the structure was previously constructed. This exemption is with the expectation that it will encourage and promote development of vacant and underutilized lots within established neighborhoods.
(Added Ord. 2013-21, § 1, eff. 8-24-13).

SEC. 12-4.1203. DEFINITION.

"Small Residential Development" for purposes of this article, shall mean the development constructing not more than four residential units in total, consisting of single family, duplex, triplex or fourplex units, where the new construction is replacing substantially similar dwellings with the same number of units.
(Added Ord. 2013-21, § 1, eff. 8-24-13).

SEC. 12-4.1204. FEE EXEMPTION PROGRAM.

Small Residential Developments shall be eligible for exemption of development impact fees, provided the development meets the following criteria:

(a) The development is any replacement or reconstruction of an existing Small Residential Development; and

(b) The development is substantially similar to the unit being replaced or reconstructed, such as a single family, duplex, triplex or fourplex unit; and

(c) The replacement or reconstruction does not significantly expand or intensify the use of the property.

(Added Ord. 2013-21, § 1, eff. 8-24-13).

SEC. 12-4.1205. APPLICATION PROCESS AND APPROVAL.

(a) Applications for fee exemption shall be submitted to the Director of Public Works, at or before the time of building permit approval. Applications for fee exemption shall not be submitted until after approval of all discretionary planning entitlements, except that applications for fee exemption can be submitted concurrently with applications for design review.

(b) The Director of Public Works shall approve the application upon a determination of fee exemption based on the criteria in Section 12-4.1204.

(Added Ord. 2013-21, § 1, eff. 8-24-13).

SEC. 12-4.1206. PRECEDENCE.

In the event of a conflict between this article and any other provisions of this code, ordinance, resolution, or administrative guideline adopted by Council, this article shall apply on the governance of fee exemptions.

(Added Ord. 2013-21, § 1, eff. 8-24-13).

ARTICLE 4.13 TRANSFER OF DEVELOPMENT FEES FOR THE REPLACEMENT OF CONDEMNED BUSINESS PROPERTY

Sec. 12-4.1301. Purpose.
Sec. 12-4.1302. Definitions.
Sec. 12-4.1303. Fee Transfer Program.
Sec. 12-4.1304. Application Process and Approval.
Sec. 12-4.1305. Development at Condemned Location.

SEC. 12-4.1301. PURPOSE.

The Council desires to provide credit for the transfer of development impact fees, up to fifty thousand dollars ($50,000), for any business that must relocate and construct a new facility due to its previous location being completely condemned and demolished. Typically, impact fees would have been paid when the owner's original location (now condemned) was constructed, and if the requirements of this Article are met, there is no net new impact to city resources, and the fees originally paid will transfer to the new location.
(Added Ord. 2015-5, § 1, eff. 4-27-15).

SECTION 12-4.1302. DEFINITIONS.

(a) For the purpose of this Article, "Applicant" shall mean a business owner applying for development impact fee transfer credits whose business location is completely condemned by a public agency and demolished, requiring the business owner to relocate and reconstruct at a new location.

(b) For the purpose of this Article, "Infill Development" shall mean a project that complies with all of the following criteria:

(i) The proposed development is consistent with the applicable general plan designation and all applicable general plan policies, as well as with applicable zoning designation and regulations;

(ii) The proposed development occurs within city limits on a project site of no more than five (5) acres substantially surrounded by urban uses;

(iii) The project site has no value as a habitat for endangered, rare, or threatened species;

(iv) Approval of the project will not result in any significant effects relating to traffic, noise, air quality, or water quality; and

(v) The site can be adequately served by all required utilities and public services.
(Added Ord. 2015-5, § 1, eff. 4-27-15).

SEC. 12-4.1303. FEE TRANSFER PROGRAM.

An Applicant may be eligible for transferred fee credits up to fifty thousand dollars ($50,000), provided the business meets all of the following criteria:

(a) The Applicant's prior location was completely condemned by a public agency and demolished, requiring the Applicant to relocate its business and newly construct its facility;

(b) Development at the new location does not significantly change, expand, or intensify the business's prior use at the condemned location;

(c) The newly constructed facility is the same size or smaller than the facility at the condemned location;

(d) The new location is considered Infill Development; and

(e) The new location is owner-occupied.

(Added Ord. 2015-5, § 1, eff. 4-27-15).

SEC. 12-4.1304. APPLICATION PROCESS AND APPROVAL.

(a) Applications for fee transfers shall be submitted to the Public Works Director, at or before the time of building permit approval. Applications for fee transfers shall not be submitted until after approval of all discretionary planning entitlements, except that applications for fee transfers can be submitted concurrently with applications for design review.

(b) The Public Works Director shall approve the application upon a determination the Applicant meets the criteria in Section 12-4.1303.

(c) The transferred fee credits shall be capped at fifty thousand dollars ($50,000). All impact fees above that amount shall be the responsibility of the Applicant.

(Added Ord. 2015-5, § 1, eff. 4-27-15).

SEC. 12-4.1305. DEVELOPMENT AT CONDEMNED LOCATION.

Any future development by anyone at Applicant's prior condemned location will be subject to full payment of development impact fees.

(Added Ord. 2015-5, § 1, eff. 4-27-15).

ARTICLE 4.14 EXEMPTION OF DEVELOPMENT IMPACT FEES FOR CERTAIN PROJECTS IN ECONOMICALLY DISADVANTAGED NEIGHBORHOODS

Sec. 12-4.1401. Purpose and Findings.
Sec. 12-4.1402. Economically Disadvantaged Neighborhoods Defined.
Sec. 12-4.1403. Fees Subject to Exemption.
Sec. 12-4.1404. Exemption From Payment Of Fees For Certain Types Of Business.
Sec. 12-4.1405. Application Process and Approval.
Sec. 12-4.1406. Exemption Shall Not Trigger Prevailing Wage.
Sec. 12-4.1407. Annual Report.
Sec. 12-4.1408. Effectiveness.

SEC. 12-4.1401. PURPOSE AND FINDINGS.

The City wishes to provide incentives to facilitate desirable development in underserved neighborhoods. Grocery stores, professional and medical offices, banks, and mixed use developments are inconsistently distributed around the City, with economically disadvantaged neighborhoods being vastly underserved. To incentivize development of desirable businesses in these neighborhoods, Council proposes to institute this article to eliminate development impact fees when certain criteria are met.

In Economically Disadvantaged Neighborhoods, public infrastructure to support commercial uses currently exists, so the need for additional development impact fees to pay for development impacts in those areas are reduced or eliminated. The City recognizes exemption of certain projects from payment of selected impact fees will reduce the amount of funds available for use on public facilities for each fee exempted. A portion of the exempted fees may need to be offset by either reducing the public infrastructure investments that are the basis for the current fee schedule and/or identifying other legally available funding sources. Certain public facilities that were planned at the time of the adoption of the current impact fees may need to be reduced or eliminated as unnecessary, nonessential, or delayed. The City also recognizes a fee cannot be increased on future developments or other developments to make up for fees exempted pursuant to this article.

In addition, development incentivized by this ordinance would create an increase in assessed valuation, and therefore increased property tax receipts due to the City, which combined with potential sales tax revenue and other revenue streams resulting from job creation and economic activity of the development, may be used to offset the effect of the reduced fees.

Although this article regulates the payment of fees prescribed by the Zoning Ordinance, it shall not be deemed a part thereof.
(Added Ord. 2015-44, § 1, eff. 1-22-16).

SEC. 12-4.1402. ECONOMICALLY DISADVANTAGED NEIGHBORHOODS DEFINED.

Economically Disadvantaged Neighborhoods shall be defined as follows:

(a) A designated Community Development Block Grant (CDBG) targeted area.

(b) Census tracts where forty percent (40%) or more of households are considered to be of low or moderate income, as defined in California Health and Safety Code section 50093.

(c) Within one-half mile of the Blackstone Bus Rapid Transit (BRT) corridor south of Shaw Avenue.

(d) One of the following former Redevelopment Project Areas:

(1) Airport Area Revitalization Redevelopment Area;

(2) Central Business District Redevelopment Area;

(3) Central City Commercial Revitalization Redevelopment Area;

(4) Chinatown Expanded Redevelopment Area;

(5) Convention Center Redevelopment Area;

(6) Fresno Air Terminal Redevelopment Area;

(7) Fruit/Church Redevelopment Area;

(8) Fulton Redevelopment Area;

(9) Freeway 99 - Golden State Corridor Redevelopment Area;

(10) Jefferson Redevelopment Area;

(11) Mariposa Redevelopment Area;

(12) Roeding Business Park Redevelopment Area;

(13) South Van Ness Industrial Redevelopment Area;

(14) Southeast Fresno Revitalization Redevelopment Area;

(15) South Fresno Industrial Redevelopment Area;

(16) Southwest Fresno G.N.R.A. Redevelopment Area;

(17) West Fresno I Redevelopment Area;

(18) West Fresno II Redevelopment Area.

(Added Ord. 2015-44, § 1, eff. 1-22-16).

SEC. 12-4.1403. FEES SUBJECT TO EXEMPTION.

The development impact fees subject to the exemption under this article (the "Development Impact Fees") include fees for Fire Facilities, Police Facilities, Regional Streets, New Growth Streets, and Traffic Signals. Water and sewer connection charges shall not be subject to exemption.

(Added Ord. 2015-44, § 1, eff. 1-22-16).

SEC. 12-4.1404. EXEMPTION FROM PAYMENT OF FEES FOR CERTAIN TYPES OF BUSINESS.

(a) A development project located in an Economically Disadvantaged Neighborhood is exempt from payment of Development Impact Fees if all of the following criteria are met:

(1) The development project is either:

(i) A grocery store dedicating at least fifty percent of its retail space for a general line of food and non-food grocery products intended for home preparation, consumption, and use; or a grocery store dedicating at least thirty percent of its retail space for perishable goods that include dairy, fresh produce, fresh meats/poultry/fish, and frozen foods; or a grocery store dedicating at least 500 square feet of retail space to fresh produce. The exemption shall not apply to convenience stores.

(ii) Any building to be used as a professional or medical office.

(iii) Banks or credit unions. This article does not apply to Payday Lending Establishments.

(iv) Mixed use developments.

(v) Newly constructed or newly renovated hotels.

(vi) Facilities that are open to and serve the general public to provide social services and activities, including but not limited to, community workshops and events, educational activities, and/or health screenings.

(2) The development project is owner-occupied or subject to a commercial lease of three years or more.

(3) Necessary city infrastructure is already in place.

(Added Ord. 2015-44, § 1, eff. 1-22-16; Am. Ord. 2016-9, § 1, 5-12-16; Am. Ord. 2018-37, § 1, eff. 7-27-18).

SEC. 12-4.1405. APPLICATION PROCESS AND APPROVAL.

(a) Applications for fee exemption shall be submitted to the City Manager, at or before the time of building permit approval. Applications for fee exemptions shall not be submitted until after approval of all discretionary planning entitlements, except that applications for fee exemptions can be submitted concurrently with applications for design review.

(b) The City Manager shall approve the application upon a determination the Applicant meets the criteria in Section 12-4.1404.

(c) Any decision of the City Manager under this Article may be appealed de novo to the City Council by the aggrieved person (appellant), by filing a written request with the City Clerk stating the grounds for appeal and signed by appellant, within fifteen (15) days of the date of service of the decision of the City Manager. After public hearing, the Council shall have the authority to confirm, modify, or overrule the decision of the City Manager and the

decision of Council shall be final. For purposes of this article, service of the decision shall be the date said decision, if written, is mailed to the appellant. If no appeal is timely taken to the Council, the decision of the City Manager shall become final.
(Added Ord. 2015-44, § 1, eff. 1-22-16).

SEC. 12-4.1406. EXEMPTION SHALL NOT TRIGGER PREVAILING WAGE.

Because impact fees are designed to pay for public infrastructure, the reduction or exemption of fees under this article shall not cause the payment of prevailing wage to be required for the portion of the development project that is not public infrastructure.
(Added Ord. 2015-44, § 1, eff. 1-22-16).

SEC. 12-4.1407. ANNUAL REPORT.

In addition to the annual report required under the Mitigation Fee Act (Gov. Code 66000 et seq.), the City Manager shall prepare and present a report to Council by the end of each fiscal year, detailing the amount and type of Development Impact Fees eliminated for each development project, along with the running total of eliminated fees that may need to be offset by other legally permissible City funding sources, and/or capital improvement projects planned at the time of adoption of the impact fees that will be reduced or eliminated.
(Added Ord. 2015-44, § 1, eff. 1-22-16).

SEC. 12-4.1408. EFFECTIVENESS.

This article shall apply to any development projects that have not yet received a building permit as of the effective date of this article. This article shall expire December 31, 2022, unless further extended by the Council. Upon expiration, impact fees will revert back to the full rate at that time without further action by the City.
(Added Ord. 2015-44, § 1, eff. 1-22-16; Am. Ord. 2016-55, § 1, eff. 1-15-17; Am. Ord. 2018-1, § 1, eff. 12-31-17; Am. Ord. 2018-64, § 1, eff. 1-18-19; Am. Ord. 2020-051, § 1, eff. 11-30-20).

ARTICLE 4.15 EXEMPTION OF DEVELOPMENT IMPACT FEES FOR THE REPLACEMENT OR RECONSTRUCTION OF EXISTING COMMERCIAL STRUCTURES

Sec. 12-4.1501. Title.
Sec. 12-4.1502. Purpose.
Sec. 12-4.1503. Fee Exemption Program.
Sec. 12-4.1504. Application Process and Approval.
Sec. 12-4.1505. Annual Report.
Sec. 12-4.1506. Effectiveness.

SEC. 12-4.1501. TITLE.

This article shall be known as the "Commercial BUILD Act" Ordinance of the City of Fresno. Although this article regulates the payment of fees prescribed by the Zoning Ordinance of the City of Fresno, it shall not be deemed a part thereof.
(Added Ord. 2015-45, § 1, eff. 1-22-16).

SEC. 12-4.1502. PURPOSE.

The Council desires to provide incentives for development within the City. It is Council's intent that development impact fees shall not be owed for replacement or reconstruction of an existing commercial building or structure that has been destroyed or demolished, where the use of the property will not change or be intensified. Typically, fees would have been paid when the building or structure was previously constructed. This exemption is with the expectation it will encourage and promote development of vacant and underutilized lots within established neighborhoods.
(Added Ord. 2015-45, § 1, eff. 1-22-16).

SEC. 12-4.1503. FEE EXEMPTION PROGRAM.

Development of commercial reconstruction projects shall not owe police facilities, fire facilities, major streets, and traffic signal development impact fees (the "Development Fees"), provided the development meets all of the following criteria:

(a) The development is the replacement or reconstruction of an existing commercial building or structure on the site that has been destroyed or demolished. The term "site" shall be limited to the parcel or parcels on which the pre-existing structure sat;

(b) The development is substantially similar in character, and use to the building or structure being replaced or reconstructed;

(c) The replacement or reconstruction does not significantly expand or intensify the use of the property;

(d) Necessary city infrastructure is already in place; and

(e) The development is substantially similar in size to the building or structure being replaced or reconstructed.

(1) For developments up to 125% of the square footage of the original building or structure being replaced, no Development Fees shall be owed.

(2) For developments greater than 125% of the square footage of the building or structure being replaced, Development Fees shall be owed in an amount that is 50% of the Development Fees that would otherwise be owed for new construction of similar size and character at the site.

(Added Ord. 2015-45, § 1, eff. 1-22-16).

SEC. 12-4.1504. APPLICATION PROCESS AND APPROVAL.

(a) Applications for fee exemption shall be submitted to the City Manager, at or before the time of building permit approval. Applications for fee exemptions shall not be submitted until after approval of all discretionary planning entitlements, except that applications for fee exemptions can be submitted concurrently with applications for design review.

(b) The City Manager shall approve the application upon a determination the Applicant meets the criteria in Section 12-4.1503.

(c) Any decision of the City Manager under this Article may be appealed de novo to the City Council by the aggrieved person (appellant), by filing a written request with the City Clerk stating the grounds for appeal and signed by appellant, within fifteen (15) days of the date of service of the decision of the City Manager. After public hearing, the Council shall have the authority to confirm, modify, or overrule the decision of the City Manager and the decision of Council shall be final. For purposes of this article, service of the decision shall be the date said decision, if written, is mailed to the appellant. If no appeal is timely taken to the Council, the decision of the City Manager shall become final.

(Added Ord. 2015-45, § 1, eff. 1-22-16).

SEC. 12-4.1505. ANNUAL REPORT.

In addition to the annual report required under the Mitigation Fee Act (Gov. Code 66000 et seq.), the City Manager shall prepare and present a report to Council by the end of each fiscal year, detailing the amount and type of Development Impact Fees eliminated for each development project, along with the running total of eliminated fees that may need to be offset by other legally permissible City funding sources, and/or capital improvement projects planned at the time of adoption of the impact fees that will be reduced or eliminated.

(Added Ord. 2015-45, § 1, eff. 1-22-16).

SEC. 12-4.1506. EFFECTIVENESS.

This article shall expire December 31, 2022, unless further extended by the Council. Upon expiration, impact fees will be owed at the full rate in effect at that time without further

action by the City. In the event of a conflict between this article and any other provisions of this code, ordinance, resolution, or administrative guideline adopted by Council, this article shall apply on the governance of fee exemptions.

(Added Ord. 2015-45, § 1, eff. 1-22-16; Am. Ord. 2016-54, § 1, eff. 1-16-17; Am. Ord. 2018-2, § 1, eff. 12-31-17; Am. Ord. 2018-65, § 1, eff. 1-18-19; Am. Ord. 2020-052, § 1, eff. 11-30-20).

ARTICLE 4.16 FEE WAIVER PROGRAM FOR CERTAIN RESIDENTIAL INFILL PROJECTS

Sections:

Sec. 12-4.1601. Title.
Sec. 12-4.1602. Purpose.
Sec. 12-4.1603. Infill Project Defined.
Sec. 12-4.1604. Fee Waiver Program.
Sec. 12-4.1605. Reimbursement Program.
Sec. 12-4.1606. Application Process and Approval.
Sec. 12-4.1607. Precedence.

SEC. 12-4.1601. TITLE.

This article shall be known as the Residential Infill Fee Waiver Program Ordinance of the City of Fresno. Although this article regulates the payment of fees prescribed by the Zoning Ordinance of the City of Fresno, it shall not be deemed a part thereof.
(Added Ord. 2021-029, § 1, eff. 7-22-21).

SEC. 12-4.1602. PURPOSE.

The Council desires to provide incentives for development within the City. It is Council's intent to provide an exemption of certain fees on certain new residential infill projects. This exemption is with the expectation that it will encourage and promote development of residential units on unutilized lots within the City.
(Added Ord. 2021-029, § 1, eff. 7-22-21).

SEC. 12-4.1603. INFILL PROJECT DEFINED.

For purposes of this section, Infill Project shall be defined as new multifamily and/or single family residential projects on sites no greater than 6.5 net acres in size or, regardless of parcel size, new multifamily residential projects that rehabilitate and convert existing commercial or office structures, and substantially surrounded by urban uses, and located within an Infill Opportunity Zone, Bus Rapid Transit Corridor or Downtown Planning Area, as reflected in the Priority Areas for Development Incentives Map, Figure IM-1 of Chapter 12 of the Fresno General Plan, adopted December 18, 2014. For purposes of this section, for single family residential projects within a subdivision map, the "site" shall be defined as the boundary of the subdivision map. Projects within the South Industrial Priority Area are not eligible for this Program.
(Added Ord. 2021-029, § 1, eff. 7-22-21; Am. Ord. 2022-005, § 1, eff. 6-2-22; Am. Ord. 2023-10, § 1, eff. 5-26-23; Am. Ord. 2024-024, § 1, eff. 9-23-24).

SEC. 12-4.1604. FEE WAIVER PROGRAM.

Eligible residential infill developments shall be eligible for a waiver of the following fees:

(a) Park Facilities Fees;

(b) Police Facilities Fees;

(c) Fire Facilities Fees;

(d) Street Facilities Fees.

(Added Ord. 2021-029, § 1, eff. 7-22-21).

SEC. 12-4.1605. REIMBURSEMENT PROGRAM.

Eligible residential infill developments shall be eligible for up to 50% reimbursement of the cost of curb, gutter, and sidewalk improvements imposed as a Condition for Approval for the project, subject to available funding as may be appropriated by Council.

(Added Ord. 2021-029, § 1, eff. 7-22-21).

SEC. 12-4.1606. APPLICATION PROCESS AND APPROVAL.

(a) Applications for fee exemption shall be submitted to the Director of Public Works, at or before the time of building permit approval. Applications for fee waiver shall not be submitted until after approval of all discretionary planning entitlements, except that applications for fee waiver can be submitted concurrently with applications for design review.

(b) The Director of Public Works shall approve the application upon a determination of fee waiver based on the criteria in Section 12-4.1603.

(Added Ord. 2021-029, § 1, eff. 7-22-21).

SEC. 12-4.1607. PRECEDENCE.

In the event of a conflict between this article and any other provisions of this code, ordinance, resolution, or administrative guideline adopted by Council, this article shall apply on the governance of fee waiver.

(Added Ord. 2021-029, § 1, eff. 7-22-21).

ARTICLE 4.17 VEHICLE MILES TRAVELED MITIGATION FEE

Sec. 12-4.1701. Purpose.
Sec. 12-4.1702. Vehicle Miles Traveled Mitigation Fee Established.
Sec. 12-4.1703. Vehicle Miles Traveled Mitigation Fee Amount.
Sec. 12-4.1704. Vehicle Miles Traveled Mitigation Fee Payable Upon Grant of Entitlement.
Sec. 12-4.1705. Vehicle Miles Traveled Fund.
Sec. 12-4.1706. Use of Vehicle Miles Traveled Mitigation Fee Revenues.

SEC. 12-4.1701. PURPOSE.

In order to implement the goals and objectives of the City's General Plan, to mitigate the impact of Vehicle Miles Traveled (VMT) caused by future development in the city, and to implement a fundamental component of the City's adopted VMT Reduction Program, certain public facilities must be constructed, and certain public services must be implemented. The City Council has determined that a VMT Mitigation Fee is needed in order to finance public facilities and services that reduce vehicle miles traveled, thus ensuring that VMT reducing measures are implemented.
(Added Ord. 2025-043, § 1, eff. 1-17-26)

SEC. 12-4.1702. VEHICLE MILES TRAVELED MITIGATION FEE ESTABLISHED.

(a) A VMT Mitigation Fee is established to pay for VMT Reduction Program components as identified in the adopted VMT Reduction Program and Nexus Study.
(Added Ord. 2025-043, § 1, eff. 1-17-26)

SEC. 12-4.1703. VEHICLE MILES TRAVELED MITIGATION FEE AMOUNT.

(a) The Council shall designate in the Master Fee Resolution, a schedule of VMT Mitigation Fees.

(b) VMT Mitigation Fee amount shall be determined based upon the adopted VMT Reduction Program and Nexus Study which shall be prepared in compliance with California Government Code Section 66016.5, as may be amended.
(Added Ord. 2025-043, § 1, eff. 1-17-26)

SEC. 12-4.1704. VEHICLE MILES TRAVELED MITIGATION FEE PAYABLE UPON GRANT OF ENTITLEMENT.

(a) The VMT Mitigation Fee for each development project deemed subject to the fee shall be payable as follows:

(1) VMT Mitigation Fees for residential developments shall be payable on the date of final inspection, or the date the certificate of occupancy is issued, whichever occurs first, consistent with the requirements of California Government Code Section 66007, as may be amended.

(2) VMT Mitigation Fees for non-residential developments shall be payable prior to the issuance of a building permit at the fee level in effect on the date such permit is issued.

(Added Ord. 2025-043, § 1, eff. 1-17-26)

SEC. 12-4.1705. VEHICLE MILES TRAVELED FUND.

(a) A VMT Fund is hereby established.

(b) All VMT Mitigation Fees collected by the City shall be deposited in the VMT Fund for the purpose of funding public facilities reasonably necessary to contribute to the reduction of citywide VMT.

(c) For the purposes of this Article, "public facilities" shall have the same meaning as set forth in California Government Code Section 66000, as may be amended.

(d) The City shall annually review and report on the fund for the VMT Mitigation Fee as set forth by California Government Code Section 66006.

(Added Ord. 2025-043, § 1, eff. 1-17-26)

SEC. 12-4.1706. USE OF VEHICLE MILES TRAVELED MITIGATION FEE REVENUES.

The revenue from the VMT Fee shall be used for the following purposes:

(a) To contribute to Transportation Demand Management Projects, Transit Projects, and Bicycle and Pedestrian Projects that are identified in the adopted VMT Reduction Program and Nexus as recipients of VMT Mitigation Fee funding.

(b) To reimburse the city for expenditures set forth in subpart (a) above, acquired or constructed by the city with funds (other than gifts or grants) from other sources, together with accrued interest.

(Added Ord. 2025-043, § 1, eff. 1-17-26)

ARTICLE 5 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 5, §§ 12-501—12-506. Former Art. 5 pertained to environmental quality. For derivation of former Article 5, please see the Code Comparative Table.

ARTICLE 5.5 SURFACE MINING AND RECLAMATION

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SEC. 12-5.501. TITLE.

This Article shall be known as the "City of Fresno Surface Mining and Reclamation Ordinance." (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.502. LEGISLATIVE FINDINGS AND PURPOSE.

A. The Council finds as follows:

1. Certain areas within the City of Fresno and its Sphere of Influence, and in areas adjacent to the City and its Sphere of Influence, are classified by the State Geologist as containing regionally significant deposits of Portland Cement Concrete aggregate minerals. Such classified mineral resource areas are reflected in maps incorporated into the City's General and Community Plans.

2. State law declares that protection and recovery of these mineral deposits is essential to the continued economic well-being of the City and to the needs of society. Land uses which are incompatible with mining and associated activities must be planned, located, and developed so as to minimize potential conflicts. The City's General Plan Mineral Resources Element, as well as other City policies, must incorporate these principals.

3. Over time, Fresno's urbanized area has extended closer to classified mineral resource areas. This urbanization has caused land uses which are generally incompatible with surface mining and associated mineral processing activities to threaten opportunities for mineral extraction and processing.

4. Mining and associated on-site mineral processing activities, although vital to the economy, can have substantial adverse environmental impacts. Thorough analysis of mining proposals and mitigation measures are needed to prevent or lessen such impacts.

5. Proper reclamation of mined land is essential to protect the public health and safety. Inadequate reclamation plans and insufficient financial assurance for reclamation can lead to environmental damage.

6. The task confronting the City on the general issue of surface mining is to maximize recovery of mineral resources while minimizing threats to the public health and safety, potential environmental damage, and nuisance effects of mining and related mineral processing activities.

7. The subject of surface mining has been a matter of statewide concern, and any City regulation of the same is subject to the Surface Mining and Reclamation Act of 1975 (hereinafter, "SMARA," Public Resources Code Sections 2710 et seq.) and related State Mining and Geology Board regulations promulgated pursuant thereto (hereinafter, "SMARA Regulations," California Code of Regulations, Title 14, Division 2, Chapter 8, Subchapter 1, Sections 3500 et seq.). The City, as a local SMARA Lead Agency, is responsible for incorporating and adopting mineral resource planning policies into the Resources Element of its General Plan; for reviewing development projects which may affect surface mining activities; and for administering SMARA and adopted local regulations for mining and reclamation activities. Pursuant to its certified Surface Mining and Reclamation Ordinance, the City must respect the mandates of SMARA while exercising local jurisdiction.

B. The purpose of this Article is to establish comprehensive and orderly procedures and standards to regulate the extraction of mineral resources and subsequent rehabilitation of mined lands, and to protect mineral resource areas with significant deposits of mineral resources. This Surface Mining and Reclamation Ordinance shall be administered in order to ensure that production and conservation of minerals are encouraged and mined lands are reclaimed to a usable condition which is readily adaptable for appropriate uses as designated by the General Plan, while (1) preventing or minimizing mining-related hazards to the public health and safety; (2) preventing or minimizing adverse environmental effects of mining; and (3) giving consideration to planned land uses in mineral resource areas and to values relating to recreation, watershed, wildlife, agricultural uses, and aesthetic enjoyment. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.503. DEFINITIONS.

A. Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this Section shall govern the construction, meaning, and application of words and phrases used in this Article and, except to the extent that a particular word or phrase is otherwise specifically defined in this Section, the definitions and provisions contained in Article 3 (commencing with Section 1-301) of Chapter 1 and in Article 1 (commencing with Section 12-101) of Chapter 12 of this Code, shall also govern the construction, meaning, and application of words and phrases used in this Article. The

definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

B. For purposes of administering this Article, the following terms are so defined:

1. ANNEXED MINED LANDS shall mean the sites of existing or former surface mining operations which were approved pursuant to SMARA by another lead agency lying outside the City's jurisdiction, and which subsequently became annexed to the City of Fresno.

2. AREA OF REGIONAL SIGNIFICANCE shall mean an area, as designated by the SMGB pursuant to SMARA Section 2790, classified by the State Geologist as containing a deposit of minerals, the extraction of which is judged by the State Geologist to be of importance in meeting future needs for minerals in the region. These areas are classified as Mineral Resource Zone 2 (MRZ-2) on maps published by the State Geologist and reflected on maps in the Mineral Resources section of the City's General Plan Resources Element.

3. AREA OF UNKNOWN SIGNIFICANCE shall mean an area containing mineral deposits where the State Geologist cannot evaluate the significance of mineral deposits from available data. These areas are classified as Mineral Resource Zone 3 (MRZ-3) on maps published by the State Geologist.

4. AREA WHERE THERE ARE NO SIGNIFICANT MINERAL RESOURCES shall mean an area where the State Geologist has determined that no significant mineral deposits are present, or has judged that little likelihood exists for their presence. These areas are classified as Mineral Resource Zone I (MRZ-1) on maps published by the State Geologist, and reflected on maps in the Mineral Resources section of the City's General Plan Resources Element.

5. BORROW PIT shall mean a type of surface mining consisting of an excavation of rock, unconsolidated geologic deposits or soil to provide material (borrow) for use on property other than on the mined lands involved in the surface mining operation where the borrow pit is located.

6. CEQA shall mean the California Environmental Quality Act, Public Resources Code Division 13, Sections 21000 et seq., and the California Environmental Quality Act Guidelines, California Code of Regulations Title 14, Chapter 2, Sections 15000 et seq.

7. DESIGNATED FLOODWAY shall mean an area delineated as such by the State of California Board of Reclamation.

8. DOC shall mean the California Department of Conservation.

9. DOC DIRECTOR shall mean the Director of the California Department of Conservation.

10. EXPLORATION or PROSPECTING shall mean the search for minerals by geological, geochemical or other techniques, including but not limited to sampling, assaying, drilling, or any surface or underground work needed to determine the type, extent or quantity of minerals present.

11. HAUL ROAD shall mean a non-public road along which material is transported from an area of excavation on mined lands to a stockpile, processing plant, or public roadway.

12. IDLE MINING OPERATION shall mean a surface mining operation that has been curtailed for a period of one year or more to the point of producing less than 10 percent of its previous maximum annual mineral production, where the operator has an intent to resume more active surface mining operations at a future date. The operator of an idle mining operation who has an approved Interim Management Plan for the operation, and remains in conformance with it, shall not be construed as having terminated his rights to mine and reclaim property under subsection 12-405-D-2 of this Code. Idled periods shall not automatically extend the sunset date of an approved mining permit; extension of sunset dates requires an amended conditional use permit or a new conditional use permit for mining.

13. MINED LANDS shall mean a parcel or parcels of land upon or in which surface mining operations will be, are being, or have been conducted, including: surface and subsurface of the area; surface and groundwater located upon and beneath such area; private ways, roads, haul roads, and other easements and rights-of-way appurtenant to any such area; excavations, stockpiles of minerals and overburden, levees and berms, workings, and mining waste; and areas with structures, facilities, equipment, machines, tools, or other materials or property which result from, or are used in surface mining operations and any related mineral processing.

14. MINERAL shall mean any naturally occurring chemical element or compound, or groups of elements and compounds, formed from inorganic processes and organic substances, including, but not limited to, sand, gravel, and other construction aggregate materials, clay, metal ores, decorative or structural stone, coal, peat, and bituminous rock; but excluding geothermal resources, natural gas, and petroleum.

15. MINING-INCOMPATIBLE USE OF LAND shall mean a use or development that is inherently incompatible with mining, and/or a use having or requiring public or private investment in structures and land improvements, which may prevent mining because of the relatively greater economic value of the improved land and its fixtures as compared with the value of mining uses. Examples of such uses may include, but shall not be limited to, urban density residential, low or rural density residential with high unit value, industrial uses not related to mining or mineral processing, non-mining commercial uses, and public facilities not related to a mining-compatible land use.

16. MINING PERMIT shall mean a component of a conditional use permit issued by the City, or by the County prior to annexation to the City, by which surface mining operations have been reviewed and conditionally approved.

17. MINING WASTE shall mean the residual of soil, rock, mineral, liquid, vegetation, equipment, machines, tools or other materials or property directly resulting from, or displaced by, surface mining operations.

18. ONE HUNDRED YEAR (100-YEAR) FLOOD PLAIN shall mean the area delineated on maps of the National Flood Insurance Program, as designated by the Federal Emergency Management Agency (FEMA), as maps of such area shall be amended from time to time by FEMA.

19. OPERATOR shall mean any person who is engaged in surface mining operations, or who contracts with others to conduct operations on his behalf, except a person who is engaged in surface mining operations as an employee with wages as his sole compensation.

20. OVERBURDEN shall mean soil, rock, or other materials that lie above natural mineral deposits, or in between natural mineral deposits, before removal of minerals by surface mining operations.

21. RECLAMATION shall mean the combined process of land treatment that minimizes water degradation, air pollution, damage to aquatic or wildlife habitat, flooding, erosion, and other adverse effects from surface mining operations, including adverse surface effects incidental to underground mines, so that mined lands are assured of being left in a usable condition which is readily adaptable for alternate land uses consistent with applicable General Plan land use designations and policies and which will create no danger to public health or safety. The process may extend to affected lands surrounding mined lands, and may require backfilling, grading, resoiling, erosion control, revegetation, soil compaction, stabilization, or other measures.

22. RECLAMATION PLAN shall mean a component of a conditional use permit issued by the City, or by the County prior to annexation to the City, which sets forth requirements and standards for reclaiming mined lands.

23. SMGB shall mean the State Mining and Geology Board.

24. STATE GEOLOGIST shall mean the individual holding office pursuant to PRC Division 1, Chapter 2, Article 3, Section 677, or his/her designee appointed for purposes of administering SMARA and SMARA Regulations.

25. STREAM BED SKIMMING shall mean surface mining by excavation of sand and gravel from stream bed deposits above the mean summer water level or stream bottom, whichever is higher.

26. SURFACE MINING AND RECLAMATION ACT (SMARA) shall mean the California Surface Mining and Reclamation Act of 1975, as amended, set forth in PRC Division 2, Chapter 9, Section 2710 et seq. and including PRC Section 2207 relating to annual reporting requirements for mine operators.

27. SURFACE MINING AND RECLAMATION ACT (SMARA) REGULATIONS shall mean SMGB regulations for surface mining and reclamation practice, as set forth in CCR Title 14, Division 2, Chapter 8, Subchapter 1, Sections 3500 et seq.

28. SURFACE MINING OPERATION shall mean all, or any part of, the process involved in the mining and recovery of minerals by removing overburden to access mineral deposits; and/or the excavation or extraction of minerals by open pit excavation, auguring, quarrying, dredging, sluicing, hydraulic force, or other method; or surface work incident to an underground mine; excepting those activities excluded under subsection 12-5.505-E of this Code. Surface mining operations include, but are not limited to, the following activities:

a. Borrow pitting.

b. On-site loading, washing, segregating, sorting, screening, and stockpiling of minerals and recovery of same.

c. Stream bed skimming.

d. In-place distillation, retorting, or leaching;

e. The production and disposal of mining waste;

f. Exploration or prospecting activities.

Industrial or commercial mineral processing activities such as installation and use of equipment or apparatus for crushing ore or rock, formulating minerals into compounds (e.g., operation of batch plants to produce Portland Cement or asphaltic concrete), or dispensing/packaging formulated mineral products may be permitted as part of a surface mining operation pursuant to an approved conditional use permit. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.504. INCORPORATION BY REFERENCE.

The provisions of SMARA and SMARA Regulations, as the same may be amended from time to time, are made a part of this Chapter by reference with the same force and effect as if the provisions therein were specifically and fully set out herein, excepting that when the provisions of this Chapter are more restrictive than correlative State provisions, this Chapter shall prevail. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.505. SCOPE AND APPLICABILITY.

A. The provisions of this Article shall apply to all lands, publicly and privately owned, within the incorporated boundary of the City. Surface mining activities on any State or Federal land within the City of Fresno shall be jointly regulated pursuant to agreements between the City and the State or Federal agencies administering those lands.

B. When mined lands lie partly within the incorporated City of Fresno and partly outside City boundaries, the applicability of this Article and the jurisdiction of the City of Fresno as Lead Agency shall be determined by the SMGB pursuant to SMARA Section 2771.

C. Except as provided in subsection 12-5.505-E of this Code, any person who proposes to engage in surface mining operations shall, prior to the commencement of such operations, obtain pursuant to this Code either a conditional use permit that includes a Mining Permit; or shall obtain from the Development Director a determination that the proposed surface mining operations are a legal nonconforming use. Prior to the commencement or continuation of surface mining operations, all operators or proposed operators shall, pursuant to this Code, obtain a conditional use permit from the City that includes a Reclamation Plan with adequate financial security. A single conditional use permit should contain both Mining Permit and Reclamation Plan components, except in those instances when a Reclamation Plan is proposed with no further mining of a site.

D. Pursuant to SMARA Section 2770(h)(1), an operator shall submit to the Development Department a proposed Interim Management Plan within ninety (90) days of a surface mining operation becoming idle. Interim Management Plans shall be processed as an amended Reclamation Plans (amended conditional use permits), except that they are exempt from requirements of CEQA, pursuant to the abovementioned section of SMARA.

E. EXCEPTIONS. The provisions of this Article shall not apply to any of the activities covered under statutory SMARA exceptions, including, but not limited to: mineral processing not associated with, or on the same site with, a surface mining operation; on-site excavation which does not involve moving excavated materials off-site; and any earth moving or grading lawfully conducted in connection with permitted construction activities or bona fide agricultural operations. Emergency excavations shall also be excepted, provided they are authorized by the California Department of Water Resources or the California Reclamation Board. Other emergency excavations conducted by a public agency to ameliorate threats to life and property are subject to Reclamation Plan application and financial assurance requirements of this Code, and will require that a conditional use permit with a Reclamation Plan component be applied for as soon as possible by the agency which conducted the excavation(s). (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.506. VESTED RIGHTS OF LEGALLY NONCONFORMING SURFACE MINING OPERATIONS AND ANNEXED MINING OPERATIONS.

A person shall have a vested right to continue to conduct pre-existing, lawfully operating surface mining operations and reclamation, and the City shall recognize these activities as legal nonconforming mining uses, subject to the following:

A. It shall be the burden of the operator to establish by a preponderance of the evidence that the specific mining and related activities and uses proposed to be continued were lawfully commenced, have been operated continuously lawfully, are in conformance with SMARA and the conditions of the conditional use permit which authorized the operation, have not substantially changed, and have not been interrupted or idled voluntarily for a period of longer than two years, with a valid an interim management plan in place for any such operation which has been idled for more than one year. Notwithstanding unrecovered mineral resources that may remain on the mined lands, voluntary idle periods and

interruptions of mining activity beyond the control of the operator shall not extend or obviate any express sunset date approved as part of the conditions of the mining permit. A sunset date may only be extended by amending the conditional use permit for an operation, or by obtaining a new conditional use permit for the surface mining operation, with the appropriate level of CEQA review as determined by the Development Director. Notwithstanding any unrecovered minerals which remained at the time of cessation of mining, after being idled for a period greater than two years plus one day, any re-initiation of operations shall require a new or amended conditional use permit application and an appropriate level of CEQA analysis, as may determined by the Development Director.

B. In order to obtain a determination of legal nonconforming use, the operator shall file for a non-zoning inquiry determination in a form to be prescribed by the Development Director and pay any required fee therefor as prescribed in the City's Master Fee Schedule. Any determination of legal nonconforming use shall be appealable to the Planning Commission.

C. Upon annexation of property which has, or had, a surface mining operation permitted under County jurisdiction, those mined lands shall be considered annexed mined lands, and the City shall succeed the County as Lead Agency for surface mining operations and reclamation activities on those mined lands. Within thirty (30) days of the Board of Equalization filing of the approved annexation encompassing the mined lands, operators must post with the City of Fresno any financial assurance (as required by SMARA and the approved Fresno County mining permit/reclamation plan authorizing the surface mining operation) in order to be in compliance with SMARA and in order to be considered as having an approved Reclamation Plan in place. The Development Department shall process the financial security documents as a minor revised exhibit to a conditional use permit, to establish a file of record with the City regarding the mining permit and reclamation plan for the operation.

D. Deviations from an approved Mining Permit or Reclamation Plan shall not be undertaken until the appropriate application to alter the conditional use permit has been filed with the City and approved by the Planning Commission. Proposals to change approved Mining Permits and/or Reclamation Plans may be submitted as applications for amended conditional use permits or revised exhibits to conditional use permits, whichever level of application is deemed appropriate by Development Department policy or the determination of the Development Director. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.507. PROCESS FOR MINING PERMITS, RECLAMATION PLANS, AND INTERIM MANAGEMENT PLANS.

A. Applications for Mining Permits and Reclamation Plans shall be processed by the City as conditional use permit applications. Any related entitlement applications required for the proposed surface mining operation (e.g., a variance application, if required) shall be submitted and processed concurrently. Standard special permit review processes pursuant

to this Code shall apply to review of conditional use permit and related entitlement application(s) for new or amended Mining Permits and Reclamation Plans, but the following modifications to process shall apply:

1. Upon receipt of an application, it shall be routed to the following agencies for comment and initial study: DOC Office of Mine Reclamation; California Board of Reclamation; Regional Water Quality Control Board; California Department of Fish & Game; State Lands Commission; San Joaquin River Conservancy; U.S. Army Corps of Engineers; U.S. Fish & Wildlife Service; San Joaquin Valley Unified Air Pollution Control District; Fresno Metropolitan Flood Control District; Fresno County Environmental Health; the applicable mosquito and vector control district; Fresno County Public Works & Development Services Department; and, if the project is in the San Joaquin Riverbottom, Madera County Planning. The application shall also be routed to other responsible and trustee agencies as appropriate.

2. Completed applications, including any proprietary information as described in Section 12-5.512-A of this Code and the completed environmental assessment of the application, shall be routed to the DOC Director or his/her designee no later than thirty (30) days from receipt or completion. Pursuant to SMARA Section 2774(d), the DOC shall be afforded a thirty- (30-) day review period to comment on proposed Reclamation Plans and Interim Management Plans, and a forty-five (45) day review period to comment on proposed financial assurance documents.

3. If mining operations or related mineral processing are proposed within the 100-year flood plain or are within one mile upstream or downstream of any state highway bridge, the California Department of Transportation shall be routed a copy of the application(s) for review.

4. Copies of recommendations made and/or objections raised by the DOC and other responsible and trustee agencies shall be promptly forwarded to the applicant/operator.

5. After receiving copies of comments and objections, the applicant has sixty (60) days to submit revisions to the proposed Mining Permit, Reclamation Plan, and/or Interim Management Plan to address requirements noted or objections lodged pursuant to reviews of the conditional use permit application by the City, the DOC, and other responsible and trustee agencies, per SMARA Section 2770(d).

6. Pursuant to SMARA Section 2774(d)(2), the Development Department shall prepare a detailed written response to the DOC Director's comments, and shall forward a copy of this response to the applicant.

7. Within sixty (60) days of the applicant's submittal of all documents and other information required in connection with the conditional use permit application (or amended application), related entitlement application(s) and completion of the environmental assessment, a public hearing on the applications shall be set before the Planning Commission pursuant to Section 12-401-B of this Code and noticed pursuant to subsection

12-401-C-2 of this Code. The Development Department shall prepare a staff report with recommendations to the Planning Commission on the environmental assessment, conditional use permit application, and any related application(s).

8. Pursuant to SMARA Section 2774 and Section 12-401-D of this Code, the Planning Commission shall hold at least one noticed public hearing on the environmental assessment, conditional use permit application and related application(s), and shall then take one of the following actions:

a. Give final approval to the mining and reclamation plan, if financial assurance for reclamation is included in the agenda for the public hearing.

b. Give conceptual approval, pending Commission review and hearing of financial assurance for reclamation;

c. Defer conceptual approval, until financial assurance has been submitted for Commission review and hearing;

d. Require amended or augmented environmental findings or mitigation measures, changes in project conditions, changes in the Mining Permit, changes in the Reclamation Plan, and/or changes in the proposed financial assurance to be submitted for subsequent Commission review and hearing;

e. Refer all or part of the applications back to the Development Department for further processing;

f. Deny the mining permit portion of the application, pursuant to findings made under subsection 12-5.507-E of this Code, but approve/affirm, and require implementation of, a reclamation for any previously-mined portions of the site.

g. Deny the entire application, pursuant to findings made under subsection 12-5.507-E of this Code.

B. FINDINGS FOR APPROVAL OF MINING PERMITS AND RECLAMATION PLANS. In connection with approving a conditional use permit (Mining Permit, Reclamation Plan) or any amendments thereto, and any related entitlement application, the Planning Commission shall do all the following:

1. Make all findings required under this Code for the environmental assessment, conditional use permits, and related entitlements;

2. Find that the conditional use permit is consistent with this Article and with the provisions of SMARA and SMARA Regulations;

3. Find that the post-mining end use of the site as stated in the Reclamation Plan is consistent with the General Plan, community plan, and/or specific plan land use designation(s) and policies applicable to the subject property;

4. Find that the reclamation activities set forth in the Reclamation Plan will restore the mined lands to a condition usable or adaptable for use(s) consistent with the General Plan, community plan, and/or specific plan land use designation and policies;

5. Find that the mined land and/or site resources such as water bodies will be reclaimed to a condition that is compatible with, and blends in with, the surrounding natural environment, topography, and other resources; or, that on-site and/or off-site resource enhancement will compensate for any disturbance to resource values; and

6. Find that it has been reasonably determined that the amount of the proposed financial security is adequate to perform reclamation activities as set forth in the approved Reclamation Plan.

C. PLANNING COMMISSION DECISIONS IN CONFLICT WITH DEPARTMENT OF CONSERVATION POSITIONS. If the Planning Commission's approved position is in conflict with one or more positions of the DOC Director (objections stated, or recommendations made, by the DOC Director), the Commission must find that issues relating to such discrepancies were addressed by a substantive written response to the DOC Director and a copy of this response was forwarded to the applicant and any interested person.

D. The Development Department shall furnish the DOC Director with a complete copy of all approved Conditional Use Permits for mining and reclamation, including any proprietary information as described in Section 12-5.512-A of this Code.

E. FINDINGS FOR DENIAL OF MINING PERMITS AND RECLAMATION PLANS. In order to deny a Mining Permit and/or Reclamation Plan, the Planning Commission must make the following findings, pursuant to SMARA Section 2770(e):

1. The City acted on the surface mining application(s) according to due process, this Code, and SMARA and SMARA Regulations.

2. In its denial, the City has not relied on considerations other than those relating to the Applicant's satisfaction of substantive requirements for applications, Reclamation Plans, and financial assurance, as the same are set forth in the specific requirements of SMARA Sections 2772, 2773, and 2773.1, CEQA, and this Code.

3. The basis of any denial shall be stated on the record prior to the close of the hearing. In the event that the Superior Court overturns a denial, the City reserves the right to rehear the matter.

F. APPEALS. Planning Commission decisions may be reviewed by the City Council pursuant to Section 12-406-1 of this Code. The City's final decisions on Reclamation Plans are subject to appeal to the SMGB as provided in SMARA Section 2775, provided that the applicant or other appellant has first exhausted their avenues of appeal under the City's processes, including (in any case not involving a rezone or a plan amendment), a petition to the Councilmember of situs or Mayor for a hearing before the Council. If the SMGB grants the appellant a hearing, the recommendation resulting from the hearing before the SMGB shall be presented to the Planning Commission and City Council for their consideration or reconsideration. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.508. PLAN CONSISTENCY AND CITY LAND USE ACTIONS AFFECTING SURFACE MINING ACTIVITIES.

All land uses actions taken by the City on lands classified as containing significant mineral deposits protected under this Code, or on property adjacent to such classified mineral resource land, shall be supported by an express finding of consistency with plans, policies, and this ordinance.

A. Within twelve (12) months of receipt of revised mineral resource mapping information from the State Geologist or SMGB, the City shall adopt corresponding amendments to the General Plan Resources Element (Mineral Resource maps), and shall amend the applicable community plans and specific plans, to reflect revisions in the classification or designation of mineral resources within the City's Sphere of Influence.

B. Any proposed land use action which has been determined by the Development Director to be inconsistent with the Mineral Resource Element or this ordinance shall not be approved until such time as the inconsistency is resolved through reclassification of the mineral resource area, or until such time as notifications and additional findings have been made as required under Public Resources Code Sections 2762 and 2763.

C. In connection with determining consistency, the Development Director shall expressly determine both of the following:

1. Whether the proposed project site is within, or adjacent to, an area of regional significance, as defined in Section 12-5.503-B of this Code; and,

2. Whether the proposed project would directly or indirectly result in a mining-incompatible zone district or land use as defined in Section 12-5.503-B of this Code. A planning or zoning action affecting a site within, or adjacent to, an area of significance shall normally be deemed consistent where it reclassifies the site to a district which conditionally permits surface mining and associated activities. No action affecting a site within, or adjacent, to areas of significance shall be found consistent where the project will enable development of a mining-incompatible use.

D. A plan amendment application shall be required in order to change the mineral resource classification of an area of significance or area of potential significance. Such plan amendment applications shall be supported by documentation from a Registered Geologist or equivalent, and shall be submitted to the State Geologist for consideration. The Development Department shall not continue to process the plan amendment application until the State Geologist's determination on the proposed mineral resource reclassification has been received.

E. If the State Geologist does not reclassify the land, consistency may be found, and the rezoning and/or land use action may be approved, only after the following have occurred:

1. A detailed environmental analysis has been completed, including analysis of the proposed project's potential impacts upon, and from mineral resources and recovery thereof; and a Mitigated Negative Declaration (with mitigation monitoring

program) is adopted, or an EIR (with mitigation monitoring program) is certified, to mitigate significant environmental effects potentially arising from the incompatibility the rezoning and/or land use;

2. All noticing of agencies has been conducted pursuant to CEQA and Public Resources Code Section 2762;

a. All findings required by Public Resources Code Sections 2762 and 2763 have been made; and,

b. Notification is provided to all owners of the land in areas of significance and areas of potential significance lying within one mile of the boundaries of the proposed project site. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.509. APPLICATION REQUIREMENTS FOR SURFACE MINING AND RECLAMATION ACTIVITIES.

A. Each application for a conditional use permit comprised of a Mining Permit and Reclamation Plan (or a Reclamation Plan for previously mined lands) and for the environmental analysis thereof shall be made on a form provided by the Development Department, as required by Section 2772 of SMARA. The application shall not be deemed complete until submission of all elements required by this Section and all information needed to comply with the performance standards set forth in this Article, excepting that financial assurance documents may be submitted for Planning Commission review after said Commission gives conceptual approval to the conditional use permit.

B. FEES. Application filing fees shall be paid pursuant to Section 12-410 of this Code, and no application shall be deemed complete or acted upon until all required filing fees are received by the Development Department.

C. Mining Permit and amended Mining Permit components of the conditional use permit application shall include, without limitation, the following:

1. A legal description of the entire site upon which the operator seeks to engage in surface mining, related on-site mineral processing, and reclamation;

2. The names, addresses, and contact telephone numbers of the owners of all surface interests and mineral interests in the lands;

3. Proof that the applicant is the owner of said property or has authorization from the property owner (and from the proposed surface mine operator, if the proposed operator is not also the owner) to execute the application for a Mining Permit and Reclamation Plan;

4. A business location address for the operator, a mailing address for the operator, a business telephone number for the operator, and an after-hours emergency contact or message telephone number for the operator;

5. Site plans depicting the existing and proposed locations of:

a. Areas and sub-areas to be mined, with phased mining areas delineated so that no phase is over eighty (80) acres in size or encompasses more than twenty-five percent (25%) of the mined lands.

b. Elevations, ground contours and cross sections before and after mining activity;

c. Stockpiled minerals, overburden, and mine waste;

d. Mineral processing equipment and all structures;

e. Access routes to and within the site, including temporary and permanent bridges, causeways, and other overcrossings.

f. On-site parking and equipment storage areas;

g. Roads, trails, railroads, access easements, and rights-of-way on and adjacent to the site;

h. Utility facilities and utility easements, including but not limited to electrical substations, overhead and underground power transmission lines, communications cables, and pipelines;

i. Signage required for mine sites and on-site traffic control;

j. Fencing/walls, including the location of gates;

k. Areas of critical and sensitive habitat and mature riparian forest on, and adjacent to, the site;

l. The 100-year flood plain, and any changes to flood zones which would be caused by mining activity;

m. Designated Floodways of rivers or streams located on, or adjacent to, the mined lands;

n. Bodies of surface water and exposed groundwater that would be affected and/or created by mining;

o. Existing and proposed water wells;

p. Existing and proposed drainage courses and ponding basins on and adjacent to the site; and

q. Such other features, improvements, notations, and corrections deemed necessary by the Development Department, Planning Commission, and/or City Council in its review of the application;

6. Landscape plans depicting perimeter landscape screening and irrigation for such perimeter plantings;

7. An operational statement describing the following:

a. The environmental setting of the site and surrounding areas, including:

(1) Established and approved land uses on and around the site;

(2) A description of the geology in the vicinity of the mined lands and on the mined lands themselves; and

(3) An assessment of biological resources on the site and in the vicinity, including flora and fauna to be found, any critical or sensitive habitat areas, any mature forest areas; and any special-status species found or expected to be found. Whenever possible, pre-existing native vegetation shall be documented in baseline studies carried out prior to formulation of the Reclamation Plan and prior to mining activity or site clearance;

b. Details on the proposed surface mining activity and any related processing operations, including:

(1) The type of material to be mined;

(2) The estimated quantity of material to be recovered;

(3) The extent of mining excavation (area and volume);

(4) The maximum depth of excavation; and

(5) A graphic representation of, and schedule for, ordered phasing of mineral extraction on sub-areas of the site;

c. Beginning and ending dates of the entire surface mining operation, defining the life of the mining permit and establishing the ending date as the sunset date for the mining activity;

d. Days and hours of operation;

e. Numbers of employees;

f. A description and analysis of the expected vehicular traffic related to mining and any on-site processing, including all heavy truck traffic;

g. Equipment to be employed in mining and any related processing activities:

h. A description and analysis of noise which would be generated by mining and related activities, including heavy truck transport of mining and mineral products; and noise control measures to be employed;

i. A description of expected air pollutants, and air pollution control measures to be employed;

j. A listing of potentially hazardous materials which will be stored or used on the site, hazardous waste which will require disposal, and the hazard containment/abatement measures, pollution control measures, and disposal provisions needed to properly handle said hazardous materials; and

k. Such other information, notations, corrections, restrictions and measures, deemed necessary by the Development Department, Planning Commission, and/or City Council in its review of the application;

8. A listing of permitting needed from, and notifications required by, federal, state, regional, and local agencies which regulate activities incident to surface mining, related mineral processing, and other related activities on the site;

9. A description of any historic resources (including archaeological and/or paleontological materials) known to be present or expected to be present on the site, and proposed measures for research recovery of the resources, relocation of the resources, and/or protection of the resources in situ. The exact locations of archaeological and paleontological sites shall not be disclosed or depicted in the portions of the Mining Permit which are of public record;

10. Measures to address each of the standards for surface mining operations as set forth below in Section 12-5.510-B of this Code; and

11. A completed Reclamation Plan application, as set forth in this Article.

D. The Reclamation Plan/amended Reclamation Plan component of a mining-related conditional use permit application shall include, without limitation, the following:

1. Measures to address each of the Reclamation Plan standards set forth in this Article;

2. A statement of the end use(s) for the site after conclusion of surface mining operations and reclamation, including:

a. A statement of how the end use(s) is/are consistent with the applicable General Plan, community plan, and/or specific plan land use designation(s) and policies applicable to the site; and

b. An operational statement describing any activities associated with the stated end use(s) of the reclaimed mined lands;

3. Evidence that all owners of a possessory interest in the mined lands have been notified of the proposed end use and reclamation plan.

4. An explanation of the impact of reclamation and post-reclamation use(s) on public health and safety (e.g., traffic impacts, noise, air quality, disease vectors such as mosquitos);

5. An explanation of the impact of reclamation and post-reclamation use(s) on flora and fauna on the site and in the area;

6. A description of the effects that reclamation and the post-reclamation end use(s) may have on the site's remaining unmined resources and mineral resources of adjacent lands;

7. A description of the manner in which reclamation will be accomplished, including days and hours of operation for heavy equipment to be used in reclamation;

8. A description of erosion control measures to be employed on various portions of the site;

9. A definition of the type(s) and source(s) of any refill material or topsoil, including location(s) of the source(s);

10. Site plans depicting the details of the reclamation proposal, including without limitation:

a. Grading plans showing finished earth forms, including berms and piles that will remain after reclamation, and the elevations and contours of the site, including cross-sections;

b. Structures and any equipment related to the post-mining end use of the reclaimed site;

c. Water wells that will remain after mining and reclamation;

d. Ingress/egress routes and on-site parking that will remain after mining and reclamation;

e. Roads, trails, access easements, rights-of-way, and related uses and improvements on and adjacent to the site, including:

(1) Haul roads and street encroachments to remain after reclamation;

(2) Public access easements or trail routes;

(3) Parking areas to remain after reclamation;

(4) Bridges, causeways, and other overcrossings that will remain and be incorporated into a trail or road network; and

(5) Watercraft put-in or take-out areas;

f. Utilities and utility rights-of-way on and adjacent to the site;

g. Signage required for on-site traffic control;

h. Fencing/walls, including the location of gates;

i. The 100-year flood plain, and any changes to flood zones which were caused by mining activity;

j. Designated Floodways of rivers or streams located on, or adjacent to, the site;

k. Bodies of surface water and exposed groundwater that will remain on and adjacent to the site after reclamation, including on-site ponding areas, with detail as to shoreline, islands, and depth contours of such bodies of water;

l. Existing and proposed drainage courses and any culverts or other erosion control structures; and

m. Such other details and information as may be required by the Development Department or the DOC.

11. A revegetation plan shall be part of the reclamation plan, unless revegetation is not consistent with the stated end use of the property. Revegetation plans shall contain the following detail:

a. Landscape plans for the site, showing permanent plantings (including the landscape screening that was installed for mining operations) and temporary erosion control and/or stockpile stabilization plantings;

b. Irrigation systems for revegetating the site, including the source of water and any backflow protection, whether irrigation distribution lines will be permanent or temporary, and whether irrigation distribution lines will be buried or laid on the surface;

c. A listing of plant species to be used in revegetation, including species name and the source of seeds, cuttings, or root divisions;

d. Pre-planting site assessment procedures, including a survey of native plant communities on the site or in the area, testing of soil and soil amendments, and any assessment of compaction that will require ripping or discing to loosen dirt in the root zone;

e. Procedures and safeguards for adding soil amendments (including fertilizers) only as needed and beneficial, so that such soil amendments do not affect wildlife, desirable plants, surface or groundwater; and

f. Procedures for weed control, including safeguards for using herbicides in a manner that does not harm public health, safety of worker or site visitors, wildlife, or the quality of surface or groundwater;

12. When the reclamation end use involves habitat, the reclamation plan shall include a site-specific habitat improvement plan for appropriate enhancement of the mined lands to support wildlife and fisheries;

13. A description of any historic resources (including archaeological and/or paleontological materials) which will remain on the site after mining, and proposed measures for research recovery of the resources, relocation of the resources, and/or protection of the resources in situ. The exact locations of archaeological and paleontological sites shall not be disclosed or depicted in the Reclamation Plan unless the Plan includes measures for ongoing adequate site security to prevent theft or vandalism of the resources;

14. A monitoring plan with specific evaluation criteria for measuring phase-by-phase completion of, and at least five years of maintenance of, planned reclamation activities. The monitoring plan shall include target standards for revegetation that measure plant density and species diversity, weed control, and ground coverage/canopy coverage. Adequate financial assurance for reclamation and at least five years of post-reclamation maintenance for the site, meeting the requirements of subsection 12-5.510-C-13 of this Code;

15. A monitoring plan with specific evaluation criteria for determining the completion of revegetation, and for evaluating the success of revegetation for the five-year post-reclamation maintenance of reclaimed areas. The monitoring plan shall include standards for revegetation that determine success of revegetation by evaluating plant density/ground coverage, appropriateness of plant species mix observed, and effectiveness of weed control;

16. Documentation of cost estimates for financial assurance meeting the requirements of subsection 12-5.510-C-13 of this Code.

17. Provisions for periodic inspections by the City and the DOC to evaluate compliance with the Reclamation Plan; and

18. Any other information and documents required by SMARA or SMARA Regulations, or by the Development Department, Planning Commission, or City Council pursuant to review of the application. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.510. STANDARDS FOR SURFACE MINING OPERATIONS AND RECLAMATION.

Each conditional use permit issued pursuant to this Article shall require the applicant to comply with all of the following conditions, without limitation:

A. STATEMENT OF RESPONSIBILITY. Before commencement of an approved mining operation or before commencing reclamation work under an approved Reclamation Plan, a statement, prepared in the form of a Covenant to run with the land, shall be signed by the applicant and the property owner, and shall be notarized to attest that the signatories are the owners of the subject property and have owner authorization to apply for and implement the Reclamation Plan, and that the signatories and their successors in interest accept responsibility for reclaiming and maintaining the mined lands in accordance with the approved Reclamation Plan. After final approval of the Reclamation Plan, this statement shall be recorded at the Fresno County Recorder's Office, together with a copy of the applicable Planning Commission or City Council Resolution approving the Reclamation Plan and any Mining Permit for the subject property.

B. Standards for surface mining operations:

1. Extraction operations shall comply with all applicable regulations issued by the local, regional, state, and federal agencies. The operator shall file any notices, and obtain any permits, required by local, regional, state, and federal agencies which regulate activities incident to surface mining, mineral processing, and related activities on the site.

2. Surface mining operations and related mineral processing shall not be conducted less than:

a. Fifty feet (50`) from any vehicular or pedestrian right-of-way, from the San Joaquin Bluff Toe, or from the property line of any residential use, recreational use (including golf course), or land approved for public assemblage use; or

b. Twenty-five feet (25`) from the property line of any adjacent land having uses other than those listed in subparagraph (a) above.

3. Final slopes of excavated or filled areas shall not be steeper than 2:1 (two feet horizontal to one foot vertical) for areas that will not be associated with future public access to open water bodies, and shall not be steeper than 3:1 for areas that will be associated with future public access to open water bodies. The measurement of slopes shall commence at the setback specified above in subparagraph (b) and shall extend to a depth of at least five feet (5`) below the estimated average water level of

any ponds. Steeper slopes may be created in the conduct of excavation for limited periods prior to backfilling to final slope requirements, but no temporary slope shall be steeper than one foot horizontal to one foot vertical.

4. Ground or fill beneath any structures, equipment, or roadways shall have sufficient compaction to support the structures, equipment, or vehicles.

5. Critical and sensitive habitat areas shall be preserved and separated from extraction, processing, and stockpiling activities, and from haul roads, by at least one hundred feet (100`).

6. All reasonable and practical measures shall be taken to protect fish and wildlife and to preserve wildlife corridors.

7. Mature forest plant communities, as delineated in the biological assessment submitted pursuant to subsection 12-5.509-C-7.a(3) of this Code, shall be preserved. Extraction, processing, haul roads, and stockpiling activities conducted adjacent to such forest areas shall be set back twice the drip line distance from tree trunks, or a minimum of twenty-five feet (25`), whichever is greater.

8. Disturbance of vegetation and overburden in advance of mining activities shall be minimized.

9. Topsoil, as defined in Section 3501 of SMARA Regulations, shall not be sold from the site. Topsoil and other overburden shall be stockpiled, protected from erosion, and utilized to implement the site's approved Reclamation Plan.

10. Piles of overburden, stockpiled minerals, and mining waste shall be stabilized against erosion. Berms and swales of this material shall not be constructed perpendicular to the flow of a river or stream, but shall be generally parallel or angled toward the direction of downstream flow.

11. No liquid waste, putrescible or non-putrescible solid waste (such as trash, refuse, construction waste), hazardous material, or toxic material may be disposed of on mined lands, buried on mined lands, or used as fill material on mined lands, whether or not it constitutes mining waste as defined in Section 12-5.503-B of this Code. This subsection shall not prohibit the use of compost for revegetation, if such use is approved as part of the reclamation plan.

12. All mining operations shall comply with the City's flood hazard regulations.

13. Mining operations, including construction of bridges, causeways, and other access routes, shall not be allowed within Designated Floodways, unless specifically authorized by the appropriate State agencies such as the California Board of Reclamation and the State Lands Commission. Full disclosure of permit terms and restrictions related to such work shall be included in the Mining Permit.

14. Mining shall not be permitted within flowing streams. Temporary stream or watershed diversions may be allowed through permits issued by the U.S. Army Corps of Engineers and the California Department of Fish & Game. Specific mitigating

measures shall be implemented to prevent erosion and to maintain passages for fish and wildlife. Any such temporary diversions shall be restored, in a manner consistent with the Reclamation Plan as soon as practicable.

15. Mining operations conducted adjacent to any flowing stream shall be separated from the stream by closed dikes able to hold back normal seasonal flows of the stream.

16. All water utilized in mining operations and mineral processing, and all runoff from the mine site, shall be contained behind a closed dike so as not to impair water quality in any river, stream, or pond. Such retention and mine waste disposal shall conform to the requirements of local, regional, state, and federal agencies.

17. Ponds (other than those being used to dispose of mining waste) which are created by mining shall be separated from the Designated Floodway. Where feasible and advisable, such ponds may be connected to flowing water (a stream or river) in order to provide circulation and prevent eutrophication, pursuant to an approved water rights application. Pond connections to a stream or river shall not conflict with floodplain management objectives, fisheries resource management objectives, or other water management objectives as established by responsible and trustee agencies. Any fish barriers installed in pond connections shall require hydrological and biological studies to document efficacy and assure avoidance of adverse effects.

18. All reasonable and practical measures shall be employed to protect groundwater quality.

19. Roadside and perimeter vegetation and setbacks shall be maintained sufficient to obscure mining operations and stockpiled overburden and minerals from public view at grade level of the site perimeter.

20. All access to surface mining operations shall only be allowed via public streets that are rated for the truck weights associated with surface mining and related activities.

21. Access roads to and within the site shall be located in a manner that minimizes traffic impacts on surrounding streets and land uses.

22. Access roads to and within the site shall be constructed and maintained so as to control the generation of dust, pursuant to Air Pollution Control District regulations. Dust control measures include frequent watering, wet sweeping, paving, or use of a sealant approved by the Air Pollution Control District, Regional Water Quality Control Board, and the Department of Fish & Game for use at the mine site.

23. Equipment used for surface mining operations and related mineral processing activities shall, as far as practicable, be located and constructed so as to eliminate dust, noise, vibration and visual blight which would affect residential uses in the vicinity.

24. The hours of operation for mining and mineral processing activity shall be limited as necessary to conform to the City's Noise Ordinance, shall conform to subsection 12-5.510-B-30 of this Code, and may be further restricted to minimize impacts on surrounding land uses and public rights-of-way.

25. Within ninety (90) days after final approval of the Mining Permit, and continuously thereafter, the perimeter of mined lands shall be posted with signs not less than three hundred feet (300`) apart and posted at each change of direction of the perimeter line, to give notice in letters not less than four inches in height, that the site is a "SURFACE MINING AREA," and stating in letters not less than two inches in height, "WARNING: This is a DANGEROUS excavation site. Heavy equipment, unstable slopes, loose piles of earth, noise, and dust may present hazards." The operator may add "No Trespassing" language to these signs, in accordance with laws regarding trespass.

26. All night lighting shall be arranged and controlled on the property so as to not illuminate nearby vegetation, public rights-of-way or adjacent properties.

27. Security fencing shall be erected and maintained around extraction sites as necessary to minimize to the greatest extent practicable any attractive nuisance hazards. At least one main gate of mined lands shall be equipped with a lock that provides for emergency fire and police access.

28. Any traffic control or warning signs or devices required by the Department through the special permit conditions or note on approved site plans shall be installed and maintained by the operator.

29. Mining, mineral processing, and hauling operations shall conform to the City's General Plan Noise Element and Noise Ordinance, Chapter 8, Article 3 of this Code.

30. If located within five hundred feet (500`) of the property lines of land with residential uses, mineral processing equipment shall only be operated between the hours of 7:00 a.m. and 7:00 p.m., or during more restricted hours as set by the conditional use permit. Otherwise, mineral processing equipment may be operated between 5:00 a.m. and 10:00 p.m.

31. REPORTING. The Mining Permit shall include the express requirement that operators file the following reports with the DOC Director or his/her designee and a copy of the report to the City.

a. Reports shall be made on the form(s) furnished or prescribed by the SMGB.

b. Reports shall be accompanied by the applicable filing fee and a copy of the City's annual inspection report, as specified in SMARA Section 2207.

c. New mining operations shall file an initial report with the DOC Director or his/her designee within thirty (30) days of final conditional use permit approval or before commencement of operations, whichever is sooner.

d. All operators shall file an annual report on or before the date established by the DOC.

32. The conditional use permit shall include provisions for providing access to mined lands by the City and DOC personnel, for periodic and other inspections of the site.

C. Standards for Reclamation and Interim Management Plans:

1. Reclamation Plans shall comply with SMARA and SMARA Regulations.

2. End uses of reclaimed mine sites shall be consistent with adopted City of Fresno plans and policies.

a. End uses shall be consistent with the General Plan, community plan, and specific plan land use designation(s) and policies applicable to the site.

b. End uses shall not preclude approved uses of adjacent property including the extraction of minerals from such property. End uses shall reflect terms and conditions of pre-existing entitlements and applicable previously approved mitigation programs.

c. Whenever possible, reclamation should be planned to have multiple benefits, in it should support the stated end use of the property, while enhancing or complementing the natural resources of the area and/or allowing for recreational opportunities. It shall be recognized that habitat enhancement, scenic value improvement, and recreational use, should complement, not prohibit, permitted end uses of reclaimed lands.

d. End uses shall be consistent with flood control and safety regulations and objectives.

3. Reclamation activities shall be initiated at the earliest possible time on those portions of mined lands that will not be subject to further disturbance. Reclamation of mined lands or a delineated phase of mining shall not begin later than six months after the cessation of mining on those mined lands or delineated phase area.

4. Reclamation activity shall be coordinated with seasonal weather patterns in order to prevent erosion and maximize success of revegetation.

5. Final slopes of excavated or filled areas shall not be steeper than 2:1 (two feet horizontal to one foot vertical) at any point for areas that will not be associated with future public access to open water bodies, and shall not be steeper than 3:1 at any point for areas that will be associated with future public access to open water bodies. These limits on slopes shall extend to a depth of at least five feet (5`) below the estimated average water level of any ponds created by mining activity.

6. Grading, erosion control measures, and revegetation plantings shall be designed to prevent excessive erosion or subsidence, and designed to control surface runoff according to:

a. The City's drainage regulations as set forth in Section 13-120.3315 et seq. of this Code;

b. Compaction standards adequate to support any new structures or roads/access routes to be constructed as part of reclamation; and

c. Applicable best management practices for stormwater management.

7. Piles or dumps of mining waste and overburden shall be stabilized to prevent erosion, and all toxic materials shall be removed or rendered inert to prevent leaching.

8. Access roads, haul roads, and parking areas shall be removed unless the Reclamation Plan specifically authorizes their retention to implement or support the end use of the mined lands. In order to erase the roads, concrete, asphalt, wood and metal parts shall be removed and recycled; road beds shall be ripped to reverse compaction; topsoil or other suitable growing medium shall be placed on the road bed; and the area shall be revegetated.

9. Bridges, causeways, or other overcrossings may be retained for incorporation into a trail or road network as authorized by area plans, if all necessary approvals to retain such structures are obtained.

10. Bridge structures, causeways, and other overcrossing structures that are not to remain to support the approved reclamation use(s) of the property, that present a hazard to River users, or that impede flood waters, shall be removed as soon as possible after their use in mining operations has ceased. All portions of the structures shall be removed, including culvert pipes and fill.

11. Water features that are created by mining activities and will remain as part of the site's reclaimed use shall be designed with the following criteria:

a. The margins of water features shall have stepped benches with level areas of varying widths at intervals of a few feet below and above the expected water level. The slope between benches shall not exceed criteria set forth in this Article or the approved plan.

b. Shorelines shall be scalloped to form an irregular land/water interface;

c. Extended peninsulas and islands should be created whenever feasible; and

12. Ponds may be (or may remain) connected to a stream or river, provided the provisions of subsection 12-5.10-B-17 of this Code are complied with.

13. Revegetation shall be consistent with the designated end use of the mined lands and shall be designed to maximize success of the plantings.

a. Where the specified end use does not call for certain plantings, revegetation shall employ native species endemic to the vicinity.

b. For mined lands whose end use(s) involve habitat improvement, revegetation shall make the site more useful for supporting wildlife by providing cover and food.

c. Vegetative species-richness, density, and canopy/cover for areas being restored with native plants shall be similar to naturally-occurring vegetation on the site prior to mining or in surrounding undisturbed areas with similar terrain and water availability.

d. Where possible and feasible, propagules (seeds, cuttings, root divisions) of native plants to be used for revegetation should be gathered from the site or from adjacent lands. Any required permits and permissions shall be obtained for the collection of source plants. Collection efforts shall not destroy or materially injure sources of native plants.

e. In riparian areas, plantings should be generally designed to provide multiple, braided bands of cover parallel to the adjacent stream or river, with some clumps for diversity and denser cover.

f. Establishment of native vegetation for habitat on mined lands shall be planned. and designed to eventually be self-supporting and to have self-regeneration and ecological succession capability without continued dependence on irrigation or other intensive management practices.

g. Where the prospective success of a proposed revegetation plan cannot be documented by previous experience or assured by professional advice, test plots may be required by the Development Department and/or DOC. Results obtained from test plots may be employed to alter the specifications of the revegetation plan.

h. The Reclamation Plan and financial assurance shall provide for maintaining and replacing revegetation plantings throughout the establishment and post-reclamation maintenance period, until the plantings become well enough established to survive.

i. Planting periods shall relate to the species and the type of propagule being used. Flexibility will be allowed in planting schedules for suitability of precipitation and temperature, in order to provide for optimal establishment of plants; however, erosion control goals shall also be considered.

j. The revegetation plan schedule, objectives, and success benchmarks shall be consistent with the Reclamation Plan revegetation evaluation criteria as set forth in the monitoring plan required under subsection 12-5.509-D-14 of this Code.

13. FINANCIAL ASSURANCE. To ensure that reclamation will proceed in accordance with the approved Reclamation Plan, the City shall require security which will be released upon satisfactory performance and the expiration of any maintenance periods. Final approval of a Reclamation Plan and, therefore, of a Mining Permit, requires acceptance and approval of financial assurance as specified below.

a. Financial assurance will be required to ensure compliance with elements of the Reclamation Plan, including but not limited to:

(1) Grading and stabilization of slopes and piles, erosion control, and drainage improvements;

(2) Removal of equipment, structures, haul roads, access roads, bridges, causeways, and other improvements;

(3) Restoration and preservation of water bodies, including contouring;

(4) Protection of surface and ground water quality;

(5) Revegetation and landscaping, including soil amendment, installation and operation of irrigation systems, and maintenance of plantings;

(6) Restoration or improvement of aquatic or wildlife habitat;

(7) Securing of the site to prevent unauthorized entry;

(8) Two years of inspection fees for the entire site;

(9) Disposal of any hazardous materials; and

(10) Other measures and site improvements, as necessary to implement the approved Reclamation Plan.

b. The amount of the financial assurance shall be arrived at pursuant to the following guidelines:

(1) Cost estimates should be prepared by a California registered Professional Engineer, Registered Geologist, and/or other similarly licensed and/or qualified professional retained by the operator.

(2) The estimated amount of the financial assurance shall be based on an analysis of physical activities necessary to implement the approved Reclamation Plan, the unit costs for each of these activities, the number of units of each of these activities, plus actual administrative costs.

(3) Financial assurance for revegetation, restoration of water bodies, restoration of aquatic or wildlife habitat, and any other applicable element of the approved Reclamation Plan shall be based upon cost estimates that include but may not be limited to labor, equipment, mobilization of equipment, supplies and materials, disposal costs including those related to any hazardous materials, administration (including two years of City inspection fees), and reasonable profit for a licensed contractor other than the operator to do the work. In projecting the costs of financial assurance, it shall be assumed without prejudice or insinuation that the surface mining operation could be abandoned by the operator and, consequently, the City or DOC may need to contract with a third party commercial company for reclamation of the site.

(4) A contingency factor of ten percent (10%) shall be added to the cost of financial assurance.

(5) The financial assurance shall cover the cost of reclaiming existing disturbed areas, any required interim reclamation, and reclamation of those areas subject to anticipated activities for the next calendar year, excepting that the operator may not claim credit for reclamation scheduled or anticipated to be completed during the coming year.

(6) Cost estimates for reclamation of a phase of mining shall take into account the concomitant disturbance on other portions of mined lands. It shall be based upon mining, on-site processing, and reclamation activities associated with that phase of mining as delineated in the approved mining permit and Reclamation Plan, and shall include required maintenance of reclaimed areas. Cost estimates are subject to adjustment for the actual cost of reclaiming lands to be disturbed by surface mining activities in the upcoming year.

(7) The amount of financial assurance required of a surface mining operation for any one year shall be adjusted annually to account for new lands disturbed by surface mining operations, any interim reclamation activities, inflation, and reclamation already accomplished in accordance with the approved Reclamation Plan.

(8) Revisions to financial assurance shall be submitted to the Development Department each year prior to the anniversary date for approval of the financial assurance. If revisions to the financial assurance are not required, the operator shall explain, in writing, why revisions are not required.

c. Cost estimates for the financial assurance shall be submitted to the Development Department for review and approval prior to the applicant/operator preparing or securing financial assurance instruments.

d. The Development Department shall forward a copy of the cost estimates, any documentation received supporting the amount of the cost estimates, and a copy of the proposed or conceptually approved Reclamation Plan, to the DOC Director for review. If the DOC Director does not comment within forty-five (45) days of receipt of these estimates, it shall be assumed that the cost estimates are adequate, unless the City has reason to determine that additional costs may be incurred.

e. Once the cost estimates for reclamation are approved, the applicant/operator may pose security in the form of a cash deposit, certificate of deposit, trust fund, surety bond from a bonding company approved by the City, irrevocable letter of credit from an accredited financial institution, or alternate method and form as may be acceptable to the City Attorney and to the SMGB and DOC as specified in State regulations. The financial security shall be in an amount equal to the estimated cost of completing reclamation activity pursuant to the approved Reclamation Plan within a reasonable time period, as determined by the Development Department) plus the cost of post-reclamation maintenance and related administrative needs such as inspections. Financial security instruments shall be made payable to the "City of Fresno" and the "California Department of Conservation."

f. Financial assurance for each phase of reclamation shall remain in effect for the duration of the surface mining operation and any additional time, until

that phase of reclamation is completed and accepted as complete by the City and there have been at least five years of post-reclamation maintenance of that completed and accepted phase of reclamation.

g. Financial assurance shall be maintained for idle surface mining operations as though the operations were active.

14. Interim Management Plans shall have the following requirements:

a. The Interim Management Plan shall provide measures the operator will implement to maintain the site in a secure and stable condition with regard to public health and safety.

b. The Interim Management Plan shall provide measures the operator will implement to maintain the site in compliance with SMARA, SMARA Regulations, and this Article.

c. Financial assurance shall be maintained as through the surface mining operation were active.

d. The Interim Management Plan may be approved to remain in effect for a period not to exceed five years, at which time the following actions shall be taken:

(1) The Development Department shall determine, based on inspections, whether the operator has complied fully with the Interim Management Plan;

(2) Upon application by the operator, the Planning Commission may renew the Interim Management Plan for another period not to exceed five years; unless the operator does not apply for an extension, or there is evidence that the Interim Management Plan has not been implemented by the operator, in which cases the Planning Commission shall require the operator to commence reclamation in accordance with the approved Reclamation Plan for the site.

e. At the expiration of a renewed Interim Management Plan, the operator shall be required to commence reclamation pursuant to the approved Reclamation Plan.

f. Nothing in this Section shall preclude the City or the DOC from taking enforcement action against the operator and/or property owner to require reclamation of, or to reclaim, an idled mine site or abandoned mine site if inspections reveal that interim management is not protecting public health and safety, not securing the site, not stabilizing the site, or if the Operator is not complying with reporting and/or financial security requirements. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.511. REPORTING, INSPECTIONS, ENFORCEMENT ACTIONS, AND APPEALS OF ENFORCEMENT ACTIONS.

A. REPORTING. Operators shall file initial and annual reports, as may apply, with the DOC Director and shall send copies to the Development Department. Operators shall pay

filing fees to the DOC as prescribed in SMARA Section 2207 and as elsewhere required pursuant to this Code. The Development Department shall furnish to the DOC Director complete copies of all initial/annual reports, including any proprietary information as described in Section 12-5.512-A of this Code.

B. INSPECTIONS.

1. Within six months of receipt of the annual or initial report, the Development Department shall conduct an inspection of the mined lands and surface mining operation to determine whether the surface mining operation and associated reclamation is in compliance with SMARA and SMARA Regulations, its Mining Permit, and its Reclamation Plan, including financial assurance.

2. Inspections shall be conducted by a Registered Geologist, Registered Civil Engineer, Licensed Landscape Architect, Registered Forester, or other qualified specialist as designated by the Development Director. The inspector(s) shall not have been employed by the mining industry or concrete/asphalt products industry in any capacity during the twelve months prior to conducting any inspection, including as an independent contractor or consultant.

3. Inspections shall be performed as often as necessary to implement the monitoring plan element of the Reclamation Plan and to ensure that required corrections have been done pursuant to any correction notices arising out of inspections. At least one inspection shall be conducted in any calendar year, until the end of the post-reclamation monitoring period of completed and accepted reclamation activity.

4. All inspections shall be documented using a form approved by the SMGB and DOC. Additional documentation may be attached to that form, at the discretion of the Development Director.

5. Within thirty (30) days of completing each inspection, and no later than July 1 of each year, the Development Department shall forward to the DOC Director and the surface mine operator a copy of the inspection report and any notice of deficiency.

6. The operator shall be solely responsible for the reasonable costs of periodic site inspections and reinspections required to gain compliance. Within thirty (30) days of notification by the City that an inspection fee is due, the operator shall pay the appropriate fees as set forth in the City's Master Fee Schedule and the notification. Failure to pay an inspection fee is grounds for revocation of a Mining Permit, and the City may also take collection actions including, but not limited to, drawing on the financial assurance posted for reclamation of the surface mining operation, and seeking reimbursement from the owner of the mined lands.

7. Inspections of the site may be conducted in response to complaints received by the City. The operator or property owner shall not be responsible for costs of initial complaint inspections or a first reinspections needed to ascertain correction of a violation noted on a complaint inspection. The City reserves the right to require the operator and/or property owner to pay the costs of multiple reinspections if compliance is not promptly attained.

8. The operator and property owner shall permit the City, the DOC and other federal, state, regional, or local law enforcement and regulatory agencies to conduct any necessary inspections of mined lands.

C. ENFORCEMENT ACTIONS.

1. Based on results of inspections of the mined lands and surface mining operation, the Development Department shall make a determination whether an operator is conforming to SMARA, SMARA Regulations, and the terms and conditions of the approved Mining Permit and Reclamation Plan for the site.

2. If the operator does not commence reclamation as required by an approved reclamation plan, interim management plan, or SMARA, the operator shall be subject to enforcement action.

3. If the Development Department makes a finding that an operator is not in compliance with a Mining Permit and/or Reclamation Plan, the City shall follow the procedures set forth in SMARA Sections 2774.1 and 2774.2 concerning violations and penalties.

4. As deemed appropriate and necessary, and when such actions are not pre-empted by SMARA, the City may also exercise its authority to revoke a Mining Permit and/or Reclamation Plan, and to abate public safety hazards and nuisances, pursuant to subsections 12-411-A and 12-411-B of this Code.

5. Pursuant to SMARA Section 2770(i), enforcement action against an idle mining operation shall be held in abeyance pending submission of an Interim Management Plan within ninety (90) days of the site becoming idle, and, if the Interim Management Plan is submitted timely, shall be further held in abeyance pending review and approval of the Interim Management Plan.

D. APPEALS OF ENFORCEMENT ACTIONS. Any person aggrieved by an act or determination of the Development Department in its exercise of the authority granted by this Section shall have the right to appeal to the Planning Commission.

1. Any appeal must be filed within fifteen (15) calendar days after the operator receives the written rendition of a decision.

2. Upon receipt of an appeal, the matter shall be scheduled and noticed for public hearing at the next available meeting date of the Planning Commission.

3. Decisions of the Planning Commission on appealed enforcement actions may subsequently be reviewed by the City Council pursuant to subsection 12-406-1 of this Code.

4. Nothing in this Section shall preclude representatives of the City, the DOC, or other federal, state, regional, or local law enforcement or regulatory agency from exercising their respective police powers in order to enforce federal, state, regional, or local laws and regulations, and conditions of permits, under such agencies jurisdictions. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.512. PUBLIC RECORDS.

A. Permit applications and supporting studies (excepting archaeological/paleontological site investigations), Mining Permits, Reclamation Plans, environmental assessments, inspection reports, and other documents prepared pursuant to this Article are deemed to be public records in their entirety, unless it can be demonstrated to the satisfaction of the Development Director that the release of such information, or part thereof, would reveal proprietary information entitled to protection. Such proprietary information may include quantities of mineral reserves, the rate of depletion of reserves, the quantities of minerals or formulated compounds produced or sold by an operation, or driller's logs. Such information may be required by the Development Department for consideration of applications, but the operator may request that it not be placed in the public domain.

B. If an applicant seeks to protect information on the grounds that it is proprietary, the applicant must identify the pages or sections of pages containing this information and separate it in the conditional use permit application and supporting documentation and in any initial and annual reports.

C. Proprietary Information shall be made available to persons other than the DOC Director only when authorized in writing by the mine operator in accordance with SMARA Section 2778. (Added Ord. 99-37, § 7, 7-9-99).

SEC. 12-5.513. PROVISIONS FOR REVISING THIS ORDINANCE.

A. In order to ensure that the City of Fresno Surface Mining and Reclamation Ordinance remains consistent with SMARA, the Development Director shall periodically review this Ordinance and initiate text amendments as necessary. The Development Director shall also initiate text amendments to update this Ordinance as may be directed by the SMGB from time to time.

B. The SMGB shall be afforded sixty (60) days to review proposed amendments to this Ordinance. After the SMGB comments on proposed revisions to this Ordinance, the City shall have ninety (90) days to complete its environmental review, public hearings, and adoption of the Ordinance. A copy of the adopted Ordinance shall be promptly forwarded to the SMGB.

C. Adopted revisions of the City of Fresno Surface Mining and Reclamation Ordinance shall not be effective until the SMGB certifies the revised Ordinance.

D. During preparation of text amendments to revise this Ordinance, the City shall consult with Madera County and Fresno County with the goal of unifying standards for surface mining and reclamation in the San Joaquin River mineral resource areas. (Added Ord. 99-37, § 7, 7-9-99).

ARTICLE 6 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 6, §§ 12-601—12-611. Former Art. 6 pertained to local planning and procedures. For derivation of former Article 6, please see the Code Comparative Table.

ARTICLE 7 OFFICIAL PLAN LINES. STREETS AND HIGHWAYS

Sec. 12-701. Title.
Sec. 12-702. Definitions.
Sec. 12-703. Specific Plans of Official Plan Lines.
Sec. 12-704. Official Plan Line Maps.
Sec. 12-705. Annexation.
Sec. 12-706. Interim Period.
Sec. 12-707. Building Setback Line.
Sec. 12-708. Encroachments.
Sec. 12-709. Subdivisions.
Sec. 12-710. Recording.
Sec. 12-711. Variance.
Sec. 12-712. Time Limit.
Sec. 12-713. Fee.
Sec. 12-714. Compliance.

SEC. 12-701. TITLE.

The title of this article shall be the Fresno City Plan Line Ordinance.
(Orig. Ord. 3807; Am. Ord. 68-164, 1968).

SEC. 12-702. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1, and in Section 7-602 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Building setback line" means the minimum distance as prescribed by ordinance between any official plan line or property line and the closest point to the foundation of any building or structure related thereto.

(b) "Official Plan Lines" means the future right-of-way line or plan lines of any street or highway as shown on the Official Plan of Streets and Highways for street use.

(c) "Commission" means the Planning Commission of the city.

(d) "Director" means the Director of Planning and Inspection of the city. (Orig. Ord. 3807; Am. Ord. 5310, 1958; Am. Ord. 5874, 1961; Am. Ord. 68-164, 1968).

SEC. 12-703. SPECIFIC PLANS OF OFFICIAL PLAN LINES.

(a) **Official Plan of Streets.** The Official Plan of Streets and Highways as heretofore adopted and amended is hereby affirmed and continued in force as a specific plan and part of the General Plan of the city.

(b) **Specific Plans.** Official plan lines shall be shown by the adoption of specific plans of streets and highways and other traffic ways in the city by designation on either maps, aerial photos of precise areas of the streets or the other documents which show proposed width of right-of-way. The official plan line document may include the location of buildings and other improvements with respect to existing or planned rights of way, building setback lines, and the recommended development for major streets and highways and other streets and traffic ways.

(c) **Procedure.** Whenever the Council, Commission, Director, or Director of Public Works recommends the adoption of a specific plan establishing, modifying, or repealing official plan lines, the Director shall set the time and place for a public hearing thereon before the Commission. Notice of the hearing on the specific plan shall be given by publication at least once in a newspaper of general circulation in the city. Such other notice shall be given as required by the Commission. The Commission shall hear the matter not less than ten days and not more than thirty days after receipt of the recommended plan. The Commission may amend any portion of the official plan lines shown on the recommended specific plan. The Commission may recommend adoption of the specific plan as recommended or as so amended, or may recommend disapproval of the plan. The hearing or decision of the Commission may be continued from time to time, but not for more than sixty days from the date first set for a public hearing on the plan. The recommendation of adoption, amendment, or disapproval of the Commission, together with the originally proposed plan, shall be referred to the Council for a final decision thereon. The Council shall set for hearing, notice, and decide the matter as provided by this section for action by the Commission, except that official plan lines shall be adopted and amended by ordinance. (Orig. Ord. 3807; Am. Ord. 5874, 1961; Am. Ord. 68-164, 1968).

SEC. 12-704. OFFICIAL PLAN LINE MAPS.

The precise and specific maps, drawings, and plans of official plan lines consisting of:

(1) Ordinance Nos. 2369, 2406, 2484, 2628, 3315, 3316, and amended Resolution 1500 (adopted January 16, 1941) of the Council and former Commission of the city.

(2) Plan lines appearing in the Fresno County book of Precise Plans of Streets and Highways, which plan lines are in areas previously annexed to the city.

(3) The maps of plan lines appearing in the Official Plan Book, consisting of ninety-one maps are hereby adopted and made a part of this article as are official plan lines hereafter adopted. The Director shall keep a record of all ordinances and resolutions hereafter adopting specific plans of official plan lines and shall cause the maps or drawings thereof to be placed in the Department of Planning and Inspection in a place or volume designated "Official Plan Lines — City of Fresno." Whenever any plan line is hereafter amended, deleted, or moved, the Director shall cause such fact to be recorded upon the map or drawing of both the new and old plan line. The maps, drawings, and plans herein adopted and those hereafter placed in the place or volume designated as required above, as they may hereafter be amended, shall be prima facie evidence of the existence and legality of the Official Plan

Lines designated thereon. (Orig. Ord. 3807, as amended; Am. Ord. 4956, 1956; Am. Ord. 5175, 1957; Am. Ord. 5310, 1958; Am. Ord. 5355, 1958; Am. Ord. 5820, 1960; Am. Ord. 5874, 1961; Am. Ord. 6056, 1962; Am. Ord. 6110, 1962; Am. Ord. 6132, 1962; Am. Ord. 6184, 1962; Am. Ord. 6202, 1962; Am. Ord. 6211, 1962; Am. Ord. 6236, 1963; Am. Ord. 6304, 1963; Am. Ord. 6330, 1963; Am. Ord. 6412, 1964; Am. Ord. 6427, 1964; Am. Ord. 6428, 1964; Am. Ord. 6440, 1964; Am. Ord. 6484, 1964; Am. Ord. 6521, 1964; Am. Ord. 6525, 1964; Am. Ord. 6526, 1964; Am. Ord. 6609, 1965; Am. Ord. 6619, 1965; Am. Ord. 6675, 1965; Am. Ord. 6676, 1965; Am. Ord. 6678, 1965; Am. Ord. 6877, 1966; Am. Ord. 6887, 1966; Am. Ord. 6916, 1966; Am. Ord. 6935, 1967; Am. Ord. 68-71, 1968; Am. Ord. 68-116, 1968; Am. Ord. 68-117, 1968; Am. Ord. 68-136, 1968; Am. Ord. 68-164, 1968).

SEC. 12-705. ANNEXATION.

(a) All official plan lines duly adopted by the County of Fresno affecting property which is or was annexed to the City of Fresno after July 31, 1958, shall continue in effect as official plan lines of the City of Fresno until amended or rescinded by ordinance adopted by the Council of the City of Fresno, except that the official plan lines on Chestnut Avenue between East Holland Avenue and a point one hundred feet north of East Santa Ana Avenue are not so adopted and continued in effect.

(b) The plan lines adopted by the County of Fresno prior to annexation of property affected thereby to the city are hereby continued in effect as official plan lines of the city. (Orig. Ord. 3807, as amended; Am. Ord. 5311, 1958; Am. Ord. 5407, 1958; Am. Ord. 5895, 1961; Am. Ord. 6211, 1962; Am. Ord. 6236, 1963; Am. Ord. 68-164, 1968).

SEC. 12-706. INTERIM PERIOD.

In the event of the setting of a hearing before the Commission for the purpose of adopting an official plan line map as herein provided for, no permit shall be issued for any structure not complying with the official plan line map as proposed on any property fronting, facing, or located adjacent to such street as indicated on said proposed map for a period of ninety days, or until the Council has acted upon the matter whichever is earliest. (Orig. Ord. 3807; Am. Ord. 5311, 1958; Am. Ord. 68-164, 1968).

SEC. 12-707. BUILDING SETBACK LINE.

All building setback lines as designated by Chapter 12 of this Code, shall be measured from the official plan lines as set forth on maps on and after the effective date of said maps. Building setback lines as measured from the official plan lines shall be in the amount as designated for the respective zoning classifications in said Chapter 12. Building setback lines indicated on an official plan line map shall be in the amount as indicated on said maps without regard to the zoning classification of the property in question and shall pre-empt the latter. In the absence of an official plan line, the building setback line shall be measured from the property line. (Orig. Ord. 3807; Am. Ord. 68-164, 1968).

SEC. 12-708. ENCROACHMENTS.

(a) **Buildings.** No building, structure, or other improvement other than landscaping or paving, whether publicly or privately owned, shall hereafter be erected, altered in any manner, moved in or placed within the official plan lines of streets and highways as adopted pursuant to or by this article, or closer to the street lines than the building setback lines as determined by the zoning ordinance or as established by map approved by the city, and no permit or approval therefor shall be issued by any official or employee of the city, except that alterations or signs on existing structures which do not enlarge the sign or the structure by adding to, enlarging or extending said structure into the area lying between the existing street property line and the official plan line may be approved.

(b) **Minor Structures.** This section shall not apply to gardens or to other yard uses, or to yard fences or non-permanent structures otherwise permitted under this Code. (Rep. and Added Ord. 68-164, 1968).

SEC. 12-709. SUBDIVISIONS.

The street and highway design of any division of land falling under the provisions of the Subdivision Map Act or parcel map requirements of the State of California or the city shall be based upon and conform to any applicable official plan lines. (Orig. Ord. 3807; Am. Ord. 68-164, 1968).

SEC. 12-710. RECORDING.

The Director shall record in the office of the County Recorder of the County of Fresno a full, true, and correct copy, duly attested, of all maps of the official plan lines which are hereafter added to this article. (Orig. Ord. 3807; Am. Ord. 5310, 1958; Am. Ord. 68-164, 1968).

SEC. 12-711. VARIANCE.

(a) Any property owner may be granted a variance from the terms of this article by the allowance of an encroachment into the building setback area on his property.

(b) The variance shall be granted only upon the procedures, terms, and conditions in Sections 12-405 and 12-406 of this Code, to the extent applicable. (Rep. and Added Ord. 68-164, 1968).

SEC. 12-712. TIME LIMIT.

Any permission granted by a variance shall be null and void and shall automatically expire six months after its effective date, unless the use or construction permitted is actually commenced within said time. (Rep. and Added Ord. 68-164, 1968).

SEC. 12-713. FEE.

The fee designated in the Master Fee Resolution shall be paid to the city upon the filing of each application for the purpose of defraying the expenses of investigations, posting, and other costs incidental to the variance proceedings prescribed herein. (Rep. and Added Ord. 68-164, 1968; Am. Ord. 80-115, § 121, eff. 8-8-80).

SEC. 12-714. COMPLIANCE.

The provisions of this article shall be applicable to any building, structure, or property situated within the city, which is owned, leased, controlled, operated, or occupied by the United States, the State of California, the County of Fresno, the City of Fresno, Fresno City Unified School District, the Fresno Irrigation District, or by any other public or quasi-public agency, corporation, or association. (Rep. and Added Ord. 68-164, 1968).

ARTICLE 8 DEVELOPMENT IN OVERCROWDED SCHOOL AREAS

Sec. 12-801. Intent and Purpose.
Sec. 12-802. Definitions.
Sec. 12-803. Notice of Findings.
Sec. 12-804. Approval of Proposed Findings.
Sec. 12-805. Dedication and Fees.
Sec. 12-806. Payment of Fees.
Sec. 12-807. Reporting and Accounting.

SEC. 12-801. INTENT AND PURPOSE.

The Council hereby finds the protection of the health, safety, and general welfare of the residents of the city requires that adequate school facilities will be available to serve city residents. The Council further finds it necessary to provide interim relief for school districts where new dwelling construction has adversely affected the capability of providing school and classroom facilities. The purpose of this article is to promote the general welfare of the public through the provision of a program to assist school districts in reducing the detrimental impact of new development. (Added Ord. 79-143, § 1, 9-21-79).

SEC. 12-802. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1, Article 1 (commencing with Section 12-101) of Chapter 12, and Article 10 (commencing with Section 12-1001) of Chapter 12 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Attendance Area" shall mean the attendance area for an elementary or high school as defined by the governing board of the district involved.

(c) "Conditions of Overcrowding" shall mean that the total enrollment of a school, including enrollment from a proposed residential development, exceeds the rated capacity of such school as determined by the governing body of the district.

(d) "District" shall mean school district.

(e) "Governing Board" shall mean the governing board of a district which has a school attendance area within the city.

(f) "Notice of Findings" shall mean the resolution the governing board of a district submits to the Council setting forth those facts, policy statements, assumptions, and conclusions the governing board used to determine rated capacity and declare existence of conditions of overcrowding.

(g) "Proposed Development" shall mean a zone district amendment, conditional use permit, site plan, tentative subdivision map, tentative parcel map, and building permit for residential uses or purposes.

(h) "Rated Capacity" shall mean that capacity determined by the governing board of a school district to be the maximum acceptable enrollment in a school facility based on the governing board's policies and programs.

(i) "Reasonable Methods of Mitigating Conditions of Overcrowding" shall mean those methods developed by the governing board of a district which address in detail mitigation measures deemed appropriate by the governing board, including, but not limited to, agreements between a subdivider and an affected school district whereby relocatable buildings will be leased to, or lease-purchased by, the school district, or relocatable buildings owned by the school district will be used.

(j) "Residential Development" shall mean a project containing residential dwellings, including mobile homes, or one or more units or a subdivision of land for the purpose of constructing one or more residential dwelling units.

(k) "Temporary Classrooms and Facilities" shall mean those classrooms and facilities of a relocatable nature required pursuant to the provisions of this article to relieve conditions of overcrowding within an attendance area of an affected school district. For the purposes of this article "temporary classrooms and facilities" shall be limited to temporary classrooms not constructed with permanent foundations, including their utilities and furnishings, which are subject to the provisions of Article 3 (commencing with Section 39140) and Article 6 (commencing with Section 39210) of Chapter 2, Part 23, Division 3 of the California Education Code. (Added Ord. 79-143, § 1, 9-21-79).

SEC. 12-803. NOTICE OF FINDINGS.

(a) **School District.** Any governing body of a school district which operates a school which has part of its school attendance area within the city, and which has not received an apportionment pursuant to the Leroy F. Green State School Building Lease-Purchase Law of 1976 (commencing with Section 17700 of the California Education Code), may file a Notice of Findings with the Council. Such Notice of Findings shall contain all of the following:

(1) Evidence that conditions of overcrowding exist in one or more attendance areas within the district which will impair the normal functioning of educational programs or facilities;

(2) Reasons for the existence of such conditions of overcrowding;

(3) A statement that all reasonable methods of alleviating conditions of overcrowding have been evaluated and no feasible method for reducing such conditions exists; and

(4) A statement that all mitigation measures including, but not limited to, temporary buildings, bussing, double sessions, extended day program, year-round school attendance, school boundary realignments, and elimination of low priority programs have been considered by the governing board.

(b) **Council Hearing.** The City Clerk shall set and notice, pursuant to Section 12-401-C-1 of this Code, a public hearing before the Council on the submitted Notice of Findings. The Council shall concur in such findings by resolution if the documentation and evidence clearly and convincingly demonstrate to the Council the existence of conditions of overcrowding within an attendance area of the district. (Added Ord. 79-143, § 1, 9-21-79).

SEC. 12-804. APPROVAL OF PROPOSED DEVELOPMENTS.

Within an attendance area which has been found, pursuant to Section 12-803, to contain conditions of overcrowding, the approval of any proposed development shall be conditioned upon the dedication of land or the payment of fees, or both, in the discretion of the Council. In lieu of fees, the developer of a proposed development may, at the developer's option and expense, provide temporary classrooms and facilities, owned or controlled by such developer, at the place designated by the school district, and at the conclusion of the fifth year the developer shall, at the developer's expense, remove the interim facilities from such place at a date and time such removal will not disrupt normal school operations. Any of the above conditions of approval shall be waived if the affected school district and the development applicant agree upon another means of mitigating conditions of overcrowding or if the Council, after first giving the affected school district notice and a reasonable opportunity to present evidence, identifies specific overriding fiscal, economic, social, or environmental factors which would benefit the city and thereby justify the approval of the residential development. (Added Ord. 79-143, § 1, 9-21-79).

SEC. 12-805. DEDICATION AND FEES.

(a) **Dedication.** Dedications required pursuant to Section 12-804 shall only be required as a condition of approval of any final subdivision map of 50 or more residential units. Land so dedicated shall remain in school use until the conditions of overcrowding no longer exist; however, such period shall not exceed five years.

(b) **Fees.** The Council shall establish, for each affected attendance area, a schedule of fees for the sole purpose of providing temporary school classrooms and facilities.

(1) The schedule of fees shall be those amounts determined from time to time by the governing board of the affected school district and approved by the Council by resolution. Such fees shall be reasonably related and limited to the need for school facilities caused by a proposed development and shall not exceed an amount necessary to pay five annual lease payments for such facilities.

(2) Any fee recommendation of the school district, in order for such recommendation to be applicable to any particular proposed development, must be submitted to the city prior to, or within sixty days following, approval of an entitlement for such proposed development. (Added Ord. 79-143, § 1, 9-21-79).

SEC. 12-806. PAYMENT OF FEES.

Whenever the payment of fees is required pursuant to this article, such payment shall be made at the time the building permit is issued. (Added Ord. 79-143, § 1, 9-21-79).

SEC. 12-807. REPORTING AND ACCOUNTING.

(a) Within thirty days following the decision to require the dedication of land or the payment of fees, or both, the governing body of a school district shall submit to the Council for approval a schedule specifying how it will use the land or fees, or both, to solve the conditions of overcrowding. The schedule shall include the school sites to be used, the classroom facilities to be made available, and the times when such facilities will be available. In the event the governing body of the school district cannot meet the schedule, it shall submit modifications to the Council for approval and the reasons for the modifications.

(b) Any school district receiving funds pursuant to this chapter shall maintain a separate account for any fees paid and shall file a report with the Council setting forth the balance in the account at the end of the previous fiscal year and the facilities leased, purchased, or constructed during the previous fiscal year. In addition, the report shall specify those attendance areas which will continue to be overcrowded when the fall term begins and those areas where conditions of overcrowding will no longer exist. Such report shall be filed by August 1 of each year and shall be filed more frequently at the request of the Council.

(c) If Council finds that overcrowding conditions no longer exist within an attendance area, the city shall cease levying any fee or requiring the dedication of any land pursuant to this article within such area. All temporary classrooms and facilities owned or controlled by any developer, may, at the developer's option and expense, remove such facilities from a designated site after Council has made such findings and at a date and time such removal will not disrupt normal school operations. (Added Ord. 79-143, § 1, 9-21-79).

ARTICLE 9 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 9, §§ 12-901—12-913. Former Art. 9 pertained to condominium conversions. For derivation of former Article 9, please see the Code Comparative Table.

ARTICLE 10 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 10, §§ 12-1001—12-1028. Former Art. 10 pertained to subdivision of real property. For derivation of former Article 10, please see the Code Comparative Table.

ARTICLE 11 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 11, §§ 12-1101—12-1106. Former Art. 11 pertained to street name procedure. For derivation of former Article 11, please see the Code Comparative Table.

ARTICLE 12 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 12, §§ 12-1201—12-1214. Former Art. 12 pertained to parcel maps. For derivation of former Article 12, please see the Code Comparative Table.

ARTICLE 13 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 13, §§ 12-1301—12-1305. Former Art. 13 pertained to address numbering of property. For derivation of former Article 13, please see the Code Comparative Table.

ARTICLE 14 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 14, §§ 12-1401—12-1417. Former Art. 14 pertained to planned communities. For derivation of former Article 14, please see the Code Comparative Table.

ARTICLE 15 INDUSTRIAL DEVELOPMENT

Sec. 12-1501. Title.
Sec. 12-1502. Council Findings and Purpose.
Sec. 12-1503. Definitions.
Sec. 12-1504. Applicability.
Sec. 12-1505. Deferral of Industrial Development Fees.
Sec. 12-1506. Payment of Certain Industrial Development Fees.
Sec. 12-1507. Waiver of Certain Trunk Sewer Fees.
Sec. 12-1508. Postponement of Industrial Development Improvements.
Sec. 12-1509. Rules and Regulations.
Sec. 12-1510. Expiration.

SEC. 12-1501. TITLE.

This Article shall be known and may be cited as the Industrial Development Ordinance. This Article is promulgated pursuant to Article 4.6 of Chapter 12. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1502. COUNCIL FINDINGS AND PURPOSE.

The Council finds and declares that the health, safety, and welfare of the people of the City of Fresno depend upon the development, stability, and expansion of private business, industry, and commerce in and near the City.

The Council further finds and declares that there is a lack of new employment opportunities in the City due to decreased private investment.

The Council further finds and declares that this lack of private investment is caused, in part, by requiring the payment of fees and the completion of improvements early in the development process, long before the private investment generates any income for the investor, thus making it financially infeasible for many businesses to begin operations in the Fresno area.

Therefore, it is declared to be the purpose of this Article to stimulate business and industrial growth in the City by deferring the payment of fees, postponing the installation of improvements, and relaxing regulatory controls that impede private investment. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1503. DEFINITIONS.

For purposes of this Article, the following definitions apply.

(a) "Certificate of Occupancy" shall mean the certificate issued pursuant to Section 109 of the Uniform Building Code.

(b) "Director" shall mean the Director of Development.

(c) "Industrial Development" shall mean a project for a use listed in Sections 12-225.1, 12-225.3, 12-226.1, 12-226.3, 12-227.1, 12-227.3, 12-228.1, and 12-228.3 of the Fresno Municipal Code, as amended.

(d) "Industrial Development Fee" shall mean a charge or a fee imposed pursuant to Sections 6-304, 12-4.508, 12-4.509, 6-507(a) [excluding those fees specified in 6-507(a)(3)], 13-229, 13-230, 13-231, and Resolution 87-376 of this Code which is for Industrial Development.

(e) "Industrial Development Improvements" shall mean an improvement required by the Public Works Director for street work and public utilities as a condition to approval of an Industrial Entitlement for an Industrial Development.

(f) "Industrial Entitlement" shall mean a general plan amendment, community plan amendment, specific plan amendment, zone district amendment, a UGM permit, conditional use permit, site plan, parcel map, building permit, or other permit or entitlement authorizing the development of real property or the construction of a structure thereon which is an Industrial Development.

(g) "Industrial Zones" shall mean all zone districts specified in Sections 12-225, 12-226, 12-227, and 12-228 of this Code, as amended.

(h) "Property Owner"' shall mean any person or legal entity with an interest in real property proposed to be developed for industrial uses.

(i) "Trunk Sewer fee" shall mean that fee set forth at Section 6-304(a)(5) of this Code as amended and the trunk sewer portion of the fee set forth at Section 6-304(a)(3) of this Code as amended.

(j) "Trunk Sewer Service Area" shall mean the area established by resolution of the Council served by a Trunk Sewer Main and subject to Trunk Sewer Charges.

(k) "Wastewater Facilities Sewer Charge" shall mean the charge imposed at Section 6-304(a)(6) of this Code as amended. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1504. APPLICABILITY.

This article applies to new industrial development fees which fall due after its effective date in the M-1 -P, M-1, M-2, or M-3 zone districts. This article prevails over any other inconsistent provision of this Code. This article shall not be interpreted to impose additional requirements not required by other provisions of this code. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1505. DEFERRAL OF INDUSTRIAL DEVELOPMENT FEES.

(a) Industrial Development Fees may be deferred, at the option of the property owner, to the time of application for a certificate of occupancy. Such deferral requires the execution of an agreement with the City which substantially complies with the following:

(1) The fee obligation deferred, including fees generated by common areas, outlots, and similar areas within a subdivision or development shall be prorated to each lot, parcel, unit, building or outlot in the manner specified by the Director.

(2) The agreement shall set forth the itemized fees and the total of the deferred fees.

(3) The deferred fee shall be payable at the rate in effect at the time of payment.

(4) The agreement authorizing deferred payment shall be in a form approved by the City Attorney.

(5) The agreement shall constitute a covenant running with the land, shall establish a lien on the property in favor of the City in the amount of the deferred charges, and shall be recorded in the office of the Fresno County Recorder.

(6) The agreement shall provide that the whole, or any part of the balance of the charges due at any time under the agreement may be accelerated and paid at any time, at the option of the payor.

(7) The agreement shall be signed by all persons having a record title interest in the real property for which the fees are being deferred and shall include a legal description of the property.

(b) In addition to the option provided under subsection (a), payment of the Wastewater Facilities Charge may be paid at occupancy or may be financed by an agreement between the property owner and the City, to pay such charges together with interest on the unpaid balance, over a period of not more than five years, in accordance with the following provisions:

(1) The agreement shall provide for substantially equal bimonthly installments included in the utility bill amortized over a period of five years following the application for certificate of occupancy, at an interest rate established by the Controller.

(2) The agreement shall be in a form and content prescribed by the Controller and approved by the City Attorney.

(3) The agreement shall be signed by all persons having a record title interest in the real property being served by the sewer system, to which the connection is requested, and shall include the legal description of the property.

(4) The agreement shall provide that the whole, or any part of the balance of the charges due at any time under the agreement may be accelerated and paid at any time, at the option of the payor.

(5) The agreement shall constitute a covenant running with the land, shall establish a lien on the property in favor of the City in the amount of the deferred charges, and shall be recorded in the Office of the Fresno County Recorder.

(6) The agreement shall provide that in the event of sale of the property, that the remainder of the deferred fee shall be due and payable to the City. The City Manager may waive this provision for good cause.

(7) The agreement shall provide that in the event the payments due are more than ninety days in arrears, the City may accelerate the debt and demand payment of the remaining balance in full.

(8) The lien for said fee shall be enforceable by the City in any manner available at law or in equity, including but not limited to private foreclosure and sale of the property in the manner provided in Section 2924 of the California Civil Code. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1506. PAYMENT OF CERTAIN INDUSTRIAL DEVELOPMENT FEES.

The Public Utilities Director shall establish an alternative unit amount based on the best available evidence to the City Engineer for flows and usage for the fees specified in Section 6-304(a)(3), (5), (6) and Section 6-507(a)(5), (6), (7) and (8). (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1507. WAIVER OF CERTAIN TRUNK SEWER FEES.

The Public Utilities Director shall waive trunk sewer fees for industrial projects in trunk sewer service areas where the trunk sewer line exists. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1508. POSTPONEMENT OF INDUSTRIAL DEVELOPMENT IMPROVEMENTS.

The Public Works Director may allow postponement of industrial development improvements required by this Code or imposed as a condition of an industrial entitlement. Postponement of such improvement requires a finding that such improvement will not be contrary to the public health and safety and is not detrimental to the orderly development of the property subject to the entitlement or property near the subject property. Wherever this Code otherwise requires improvements, the Public Works Director may require that all postponed industrial improvement, be subject to an agreement between the City and the property owner which complies with the following:

(1) The agreement shall be in a form and content prescribed by the Public Works Director and approved by the City Attorney.

(2) The agreement shall be signed by all persons having a record title interest in the real property being served by the improvements to which the connections requested, and shall include the legal description of the property.

(3) The agreement shall constitute a covenant running with the land, establishing a lien on the property in favor of the City in the amount of the costs of such improvements.

(4) The agreement shall be recorded with the Fresno County Recorder's Office. In the case of parcel maps, the improvement requirements may be reflected in a certificate on the map.

(5) The agreement shall be enforceable by the City in any manner available at law or in equity, including but not limited to private foreclosure and sale of the property in the manner provided in Section 2924 of the California Civil Code.

(6) The Public Works Director may require security for improvement agreements. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1509. RULES AND REGULATIONS.

The Development Director may adopt rules and regulations to implement this article. (Added Ord. 97-29, § 1, eff. 7-28-97).

SEC. 12-1510. EXPIRATION.

Unless otherwise acted upon by Council, this Article will be of no further force and effect at 12:01 a.m. on the day of the third anniversary of its effective date. (Added Ord. 97-29, § 1, eff. 7-28-97).

ARTICLE 16 HISTORIC PRESERVATION ORDINANCE

Sec. 12-1601. Title.
Sec. 12-1602. Intent and Purpose.
Sec. 12-1603. Definitions.
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Sec. 12-1625. Fire and Building Codes.
Sec. 12-1626. Minimum Maintenance.
Sec. 12-1627. Status of Properties Previously Designated.
Sec. 12-1628. Civil and Criminal Penalties.
Sec. 12-1629. Severability.

SEC. 12-1601. TITLE.

This article shall be known as the "Historic Preservation Ordinance of the City of Fresno." (Added Ord. 99-50, §§ 1, 2, 9-9-99)

SEC. 12-1602. INTENT AND PURPOSE.

(a) The purpose of this article is to continue to preserve, promote and improve the historic resources and districts of the City of Fresno for educational, cultural, economic and general welfare of the public; to continue to protect and review changes to these resources and districts which have a distinctive character or a special historic, architectural, aesthetic or cultural value to this city, state and nation; to continue to safeguard the heritage of this city by preserving and regulating its historic buildings, structures, objects, sites and districts which reflect elements of the city's historic, cultural, social, economic, political and architectural history; to continue to preserve and enhance the environmental quality and safety of these landmarks and districts; to continue to establish, stabilize and improve

property values and to foster economic development. It is not the intent of this ordinance to disturb, disrupt or otherwise nullify properties previously designated as Historical Resources or Historical Districts pursuant to the city's previous Historic Preservation Ordinance.

(b) The Council finds that the City of Fresno has played an important role in the development of California and that this history is shown today through archaeological sites and through buildings, structures, objects, sites and districts representing the commercial, industrial, social, economic, political and architectural development of the city. The Council finds that the distinctive and significant character of the city can only be maintained by protecting and enhancing its historic, architectural, aesthetic and cultural heritage and by preventing unnecessary injury or destruction of its historic resources and districts which are community assets.

(c) The Council finds that this article benefits all of the residents of Fresno and all owners of property and declares as a matter of public policy that the preservation, protection and use of historic resources and districts are a public necessity because of their character and their value as visible reminders of the history and heritage of this city, state and nation. The Council declares as a matter of public policy that this article is required in the interest of the health, prosperity, safety, welfare and economic well-being of the people. The designation and preservation of historic resources and districts and the regulation of alterations, additions, repairs, signs, removal, demolition or new construction to ensure the perpetuation of their historic character is hereby designated to be a public purpose. (Added Ord. 99-50, §§ 1, 2, 9-9-99)

SEC. 12-1603. DEFINITIONS.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(a) "Alteration" shall mean any change or modification requiring a city permit, through public or private action, of any Historic Resource or any property located within an Historic District including, but not limited to: changes to designated interior architectural features; exterior changes to or modification of structural details, architectural details or visual characteristics such as doors, windows, surface materials and texture, grading or surface paving; addition of new structures; cutting or removal of trees, landscaping or other natural features; disturbance of archaeologi-

cal sites or areas; and the placement or removal of any exterior objects such as signs, plaques, light fixtures, street furniture, walls, fences, steps, plantings and landscape accessories affecting the exterior visual qualities of the resource or property.

(b) "Building" shall mean any construction created primarily to shelter any form of human activity.

(c) "California Register of Historical Resources" shall mean the authoritative guide in California to be used by state and local agencies, private groups and citizens to identify the state's historical resources and to indicate what properties are to be protected, to the extent prudent and feasible, from substantial change.

(d) "Certified Local Government Program" shall mean the established partnership between the City of Fresno, the State Historic Preservation Office and National Parks Service designed to identify, evaluate and protect historic resources within the city and to enable the city to participate in the benefits which result from that partnership.

(e) "Commission" shall mean the Historic Preservation Commission.

(f) "Conservation/District Plan" shall mean the plan adopted after the formation of an Historic District which shall govern the manner in which the preservation objectives of the District will be attained.

(g) "Contributor to a Local Historic District" shall mean an individual Historic Resource which contributes to the significance of a Local Historic District (LHD) under the criteria set forth in this article.

(h) "Contributor to a National Register Historic District" shall mean an individual Historic Resource which contributes to the significance of a National Register Historic District (NRD) under the criteria set forth in this article.

(i) "Cultural" as used in this article shall include traditional cultures including but not limited to Native American or other identifiable ethnic groups.

(j) "Demolition" shall mean the act that destroys in whole or in part a designated Historic Resource.

(k) "Design Review Committee" shall mean an entity created to enforce the Conservation/District Plan for any Local Historic District.

(l) "Exterior Architectural Feature" shall mean the architectural elements embodying style, design, general arrangement and components of all of the outside surfaces of a building, structure or object, including but not limited to the type of building materials and the type and style of all windows, doors, lights, signs and other fixtures appurtenant to such building, structure or object.

(m) "Feasible" shall mean capable of being accomplished in a successful manner within a reasonable period of time, taking into account economic, environmental, legal, social and technological factors.

(n) "Heritage Property" shall mean a resource which is worthy of preservation because of its historical, architectural or aesthetic merit but which is not proposed for and is not designated as an Historic Resource under this article.

(o) "Historic Resource" shall mean any building, structure, object or site that has been in existence more than fifty years and possesses integrity of location, design, setting, materials, workmanship, feeling and association, and: is associated with events that have made a significant contribution to the broad patterns of our history, or is associated with the lives of persons significant in our past, or embodies the distinctive characteristics of a type, period or method of construction, or represents the work of a master or possesses high artistic values; or has yielded, or may be likely to yield, important information in prehistory or history; and has been designated as such by the Council pursuant to the provisions of this article.

(p) "Interior Architectural Features" shall mean the interior architectural elements and fixtures that have special historical, architectural, cultural or aesthetic interest or values and have been designated as such by the Council pursuant to the provisions of this article.

(q) "Landscaping" shall mean natural and cultural resources including vegetation, natural features, structures, objects, roads or waterways, designed, shaped or modified by human activity. Such landscaping is either recognized as individually significant or identified within a nomination as significant in reference to the primary resource; and has been designated as such by the Council pursuant to the provisions of this article.

(r) "Local Register of Historic Resources" shall mean the inventory of buildings, structures, objects, sites and districts designated by the Council as Historic Resources or Historic Districts pursuant to the provisions of this article.

(s) "Local Historic District" (LHD) shall mean any finite group of resources related to one another in a clearly distinguishable way or any geographically definable area which possesses a significant concentration, linkage or continuity of sites, buildings, structures or objects united historically or aesthetically by plan or physical development. The Local Historic District must be significant as well as identifiable and it must meet Local Register Criteria for listing on that Register.

(t) "National Register of Historic Places" shall mean the official federal list of districts, sites, buildings, structures and objects significant in American history, architecture, engineering and culture as authorized by the National Historic Preservation Act of 1966.

(u) "National Register Historic District" (NRD) shall mean any finite group of resources related to one another in a clearly distinguishable way or any geographically definable area which possesses a significant concentration, linkage or continuity of sites, buildings, structures or objects united historically or aesthetically by plan or

physical development. The National Register Historic District must be significant as well as identifiable and it must meet National Register Criteria for listing on that Register.

(v) "Non-contributor" shall mean any building, structure, object or site that does not contribute the significance of the Historic District in which it is located.

(w) "Object" shall mean any construction that is primarily artistic in nature or is relatively small in scale and simply constructed. Although an object may be, by nature or design, movable, it is associated with a specific site or environment, such as fountain or boundary marker.

(x) "Preservation" shall mean the act or process of applying measures to sustain the existing form, integrity and material of an historic property. It may include initial stabilization work, where necessary, as well as ongoing maintenance of the historic building materials.

(y) "Reconstruction" shall mean the act or process of reproducing by new construction the exact form and detail of a vanished building, structure or object, or a part thereof, as it appeared at a specified period of time.

(z) "Regulated Permits" shall mean any permit issued for any work on an Historic Resource or within any Historic District.

(aa) "Rehabilitation" shall mean the act or process of making a compatible use for a property through repair, alterations and additions while preserving those portions or features which convey its historical, cultural or architectural values.

(bb) "Restoration" shall mean the act or process of accurately recovering the form and details of a property and its setting as it appeared at a particular period of time by means of the removal of later work or by the replacement of missing earlier work.

(cc) "Secretary" shall mean the Director of Housing and Neighborhood Revitalization or his or her designee.

(dd) "Secretary of the Interior's Standards" shall mean the Secretary of the Interior's Standards for the Treatment of Historic Properties published by the U.S. Department of the Interior.

(ee) "Site" shall mean the location of a significant event, a prehistoric or historic occupation or activity where the location itself possesses historic, cultural or archaeological value regardless of the value of any existing structure, including but not limited to a designed landscape or the ruins of a building or structure.

(ff) "Specialist" shall mean the Historic Preservation Specialist serving as staff to the Historic Preservation Commission.

(gg) "Specific Plan Design Review Committee" shall mean the entity created to enforce the Conservation/District Plan for any Local Historic District created as the result of the adoption of a Specific Plan.

(hh) "Stabilization" shall mean the act or process of applying measures designed to reestablish a weather resistant enclosure or the structural stability of an unsafe or deteriorated property while maintaining the essential form as it exists at present.

(ii) "State Historic Building Code" shall mean Title 24, Building Standards, Part 8, California Code of Regulations.

(jj) "Structure" shall mean any construction created for purposes other than creating human shelter, including but not limited to a bridge or water tower.

(kk) "Survey" shall mean historic resource surveys conducted in accordance with Certified Local Government Program and state standards and procedures.

(ll) "Unreasonable Economic Hardship" shall mean facts and circumstances which establish that there are no feasible measures that can be taken which will enable the property owner to make a reasonable beneficial use of the property or derive a reasonable economic return from the property in its current form.

(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 1, eff. 11-22-21).

SEC. 12-1604. STAFF TO THE HISTORIC PRESERVATION COMMISSION.

To assist the Commission in the performance of its duties, the following staff positions have been established.

(a) Secretary: There is hereby created the position of Secretary to the Commission which shall be filled by the City Manager or his or her designee. The Secretary shall perform those functions required under the provisions of this article or any other applicable provisions of this Code.

(b) Historic Preservation Specialist: Pursuant to the city's Programmatic Agreement with the State Office of Historic Preservation and during the pendency of such Agreement, the position of Historic Preservation Specialist shall be maintained and shall be filled by an individual meeting the Professional Qualifications Standards for Archaeology and Historic Preservation from the Secretary of the Interior's Standards and Guidelines as published in the Code of Federal Regulations, 36 CFR Part 61. The Specialist shall perform those functions required under the provisions of this article or any other applicable provisions of this Code.

(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1605. HISTORIC PRESERVATION COMMISSION.

(a) Composition: The Commission shall consist of seven persons having a demonstrated interest, competence or knowledge in historic preservation and, unless otherwise specified in this article, Charter Sections 902, 904 and 905 shall apply. At least five (5) Commission members shall be appointed from the qualified electors of the City and shall reside within the City of Freson. At least two Commission members shall be appointed from among professionals in the disciplines of architecture, history, architectural history, planning, pre-historic and historic archeology, folklore, cultural archaeology, curation, conservation,

landscape architecture or related disciplines such as urban planning, American studies, American civilization or cultural geography, to the extent that such professionals are available in the community and/or within the State of California and are willing to serve on the Commission. Commission members may also include lay persons who have demonstrated special interest, competence, experience or knowledge in historic preservation.

(b) Operation: Commissioners shall be nominated by the Mayor and confirmed by the Council. The Commissioners shall serve four (4) year terms and each shall continue to serve until his or her successor is duly appointed and qualified. Commissioners shall be appointed in such a manner that the terms of not more than four Commissioners shall expire in any year and interim appointments shall be made to fill unexpired terms in the event vacancies occur during terms. The expiration date of all terms of appointment shall be June 30th. During June of each year, the Commissioners shall elect one Commissioner as Chairperson and one Commissioner as Vice Chairperson. The Secretary and the Specialist shall serve as administrative staff to the Commission.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2009-29, § 1, eff. 9-3-09)

SEC. 12-1606. DUTIES AND POWERS OF THE COMMISSION.

(a) The primary duties of the Commission shall be:

(1) The identification, designation and preservation of Historic Resources and Historic Districts owned by the city or located within the city limits; and

(2) The regulation of exterior alterations visible from a public right-of-way including demolition, relocation and new construction, and interior alterations which would affect the significance of Historic Resources or Historic Districts.

(b) The Commission shall have the following additional duties and powers:

(1) Conduct studies and evaluations of applications requesting the designation of Historic Districts, make determinations and recommendations as appropriate for consideration of such applications in order to effectuate the purposes of this article.

(2) Adopt specific guidelines for the designation of Historic Resources, Historic Districts and Heritage Properties as it deems necessary to effectuate the purposes of this article.

(3) Maintain a current listing and description of designated Historic Resources, Historic Districts and Heritage Properties and transmit copies and update of such listings to all appropriate city agencies and departments as determined by the Secretary to the Commission.

(4) Develop and recommend the adoption of an Historic Preservation Element for the General Plan of the City of Fresno in accordance with the requirements of the Certified Local Government Program.

(5) Participate in environmental review procedures called for under this article or under the California Environmental Quality Act (CEQA) or under the National Environmental

Protection Act (NEPA) by providing review and comments on permit actions affecting designated Historic Resources, Historic Districts and Heritage Properties as the Commission deems appropriate.

(5.1) Make environmental determinations under the California Environmental Quality Act on any discretionary project applications the Commission considers for approval, including, but not limited to demolition permits for subject properties brought before the Commission.

(6) Review and comment upon the conduct of land use, housing, redevelopment, municipal improvement and other types of planning and programs undertaken by any agency or department of the city, county or state as they relate to designated Historic Resources, Historic Districts and Heritage Properties as the Commission deems appropriate.

(7) Establish criteria and conduct or cause to be conducted historical resource surveys of properties within the city limits in accordance with state survey standards and procedures; submit completed surveys to the Council for official adoption; and submit adopted surveys to the Office of Historic Preservation for integration into the Historic Property Data File for Fresno County maintained by that office.

(8) Recommend internal procedures to facilitate the use of such adopted historical resource surveys in planning and development processes by all relevant city agencies and departments in accordance with Certified Local Government Program requirements.

(9) Publicize, maintain and periodically update such historical resource surveys in accordance with state survey standards and procedures, including those surveys adopted prior to the award of Certified Local Government status and surveys of new areas annexed or incorporated by the city.

(10) Adopt procedural rules for the systematic review of such historical resource surveys to determine if designation proceedings should be initiated on appropriate sites. Provide for the removal of sites not found qualified for designation from the survey and from the Historic Property Data File for Fresno County maintained by the State Office of Historic Preservation if included therein.

(11) Review and make recommendations on nominations for inclusion in the California Register of Historical Resources and the National Register of Historic Places for local historic resources or districts to the chief elected local official for transmission to the State Office of Historic Preservation in accordance with procedures established by the Certified Local Government Program.

(12) Review and make recommendations on any proceedings under Section 106 of the National Historic Preservation Act pertaining to properties within the city limits and establish programmatic agreements with the State Office of Historic Preservation as the Commission deems appropriate.

(13) Review and make recommendations on historic preservation certification applications for federal tax incentives.

(14) Develop and recommend the adoption of historic preservation incentives including but not limited to conditional use permits allowing uses not otherwise permitted by the underlying zoning, Mills Act Contracts, and other programs utilized by other Certified Local Governments.

(15) Review and make recommendations on any applications to participate in local historic preservation incentive programs established in order to effectuate the purposes of this article.

(16) Prepare an annual report on the activities of the Commission to the State Office of Historic Preservation at the end of each calendar year in accordance with procedures established by the Certified Local Government Program.

(17) Ensure that each commissioner attends at least two informational or educational meetings, seminars, workshops or conferences per year in accordance with the requirements of the Certified Local Government Program.

(18) Perform any other functions consistent with the purposes herein or that may be directed by the Council from time to time.

(19) Adopt, promulgate, amend and rescind, from time to time, such rules, guidelines and regulations as the Commission may deem necessary to effectuate the purposes of this article.

(20) Provide for a suitable sign, plaque or other marker at public or private expense, on or near the Historic Resource or District (LHD or NRD), indicating that the Resource or District (LHD or NRD) has been so designated. The sign, plaque or other marker shall contain information and data deemed appropriate by the Commission and its placement shall be at the discretion of the owner.

(21) Meet not less than once a month at meetings held pursuant to public notice and open to the public.

(22) Keep minutes and records of all meetings and proceedings including voting records, attendance, resolutions, findings, determinations and decisions as a matter of public record.

(23) Render advice and guidance, upon the request of a property owner or tenant on the financial and physical aspects of the restoration, alteration, rehabilitation, landscaping or maintenance of any Historic Resource, any Contributor to any Historic District (LHD or NRD) or any Heritage Property.

(24) Investigate and report to the Council on the use of various federal, state, local or private funding sources and mechanisms available to promote historic resource preservation in the city.

(25) Participate in, promote and conduct public information, educational and interpretive programs pertaining to Historic Resources and provide for public participation in all aspects of the city's historic preservation programs.

(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2015-14, § 1, 7-16-15; Am. Ord. 2021-044, § 2, eff. 11-22-21).

SEC. 12-1607. DESIGNATION CRITERIA.

(a) HISTORIC RESOURCES: Any building, structure, object or site may be designated as an Historic Resource if it is found by the Commission and Council to meet the following criteria:

(1) It has been in existence more than fifty years and it possesses aspects of integrity to convey its significance based upon location, design, setting, materials, workmanship, feeling or association, and:

(i) It is associated with events that have made a significant contribution to the broad patterns of our history; or

(ii) It is associated with the lives of persons significant in our past; or

(iii) It embodies the distinctive characteristics of a type, period or method of construction, or represents the work of a master, or possesses high artistic values; or

(iv) It has yielded or may be likely to yield, information important in prehistory or history.

(2) It has been in existence less than fifty years, it meets the criteria of subdivision (1) of subsection (a) of this section and is of exceptional importance within the appropriate historical context, local, state or national.

(b) LOCAL HISTORIC DISTRICTS: Any finite group of resources (buildings, structures, objects or sites) may be designated as a Local Historic District if it meets the definition set forth in Section 12-1603(s) of this article, its designation is consented to by the majority of the property owners within the Local Historic District, at least fifty percent of the resources within the proposed Local Historic District are fifty years of age or older, and it is found by the Commission and Council to meet one or more of the following criteria:

(1) It exemplifies or reflects special elements of the city's cultural, social, economic, political, aesthetic, engineering, or architectural heritage, or

(2) It is identified with a person or group that contributed significantly to the culture and development of the city, or

(3) It embodies distinctive characteristics of a style, type, period or method of construction, or is a valuable example of the use of indigenous materials or craftsmanship, or

(4) Structures within the area exemplify a particular architectural style or way of life important to the city, or

(5) The area is related to a designated historic resource or district in such a way that its preservation is essential to the integrity of the designated resource or Local Historic District, or

(6) The area has potential for yielding information of archaeological interest.

(c) NATIONAL REGISTER HISTORIC DISTRICTS: The nomination of any finite group of resources (buildings, structures, objects or sites), including any Local Historic District, to the National Register of Historic Places as a National Register Historic District may be recommended under this article if it meets the definition set forth in Section 12-1603(u) of this article, meets the criteria set forth in subsection (a) of this section, and if the nomination is supported by more than fifty percent of the property owners within the proposed National Register Historic District.

(d) HERITAGE PROPERTIES: Any building, structure, object or site may be designated as a Heritage Property if it is found by the Commission to be worthy of preservation because of its historical, architectural or aesthetic merit.

(e) CONTRIBUTORS TO HISTORIC DISTRICTS: Any building, structure, object or site may be designated as Contributor to a Local Historic District or a proposed National Register Historic District if it contributes to the significance of the specific Historic District under the criteria set forth above in this section.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 3, eff. 11-22-21).

SEC. 12-1608. DESIGNATION PROCESS.

Buildings, structures, objects, sites and districts may be considered for designation as Historic Resources, Historic Districts or Heritage Properties under this article as set forth in sections 12-1608, 12-1609, 12-1610 and 12-1611.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1609. HISTORIC RESOURCES.

(a) Requests for Designation: Designation of an Historic Resource may be initiated by the Council, the Commission, the Secretary, the property owner, or an authorized representative of the owner. The application for designation consideration shall be filed with the Specialist, using a form approved by the Secretary and shall include the following information:

(1) The Assessor's Parcel Number for the property containing the building, structure, object or site proposed for designation along with the name and address of the current owner(s) of record and a copy of the deed granting title to the owner(s);

(2) Whether the proposed historic resource takes the form of a building, structure, object or site as same are defined in this article;

(3) A detailed description of the specific building, structure, object or site proposed for designation including but not limited to its dates of construction, significant alterations and architectural style;

(4) The manner in which the proposed building, structure, object or site meets the criteria for designation contained in Section 12-1607(a) of this article;

(5) Current photographs of all aspects of the proposed historic resource, supplemented by sketches, drawings or other descriptive materials;

(6) A description of the physical condition and appearance of the proposed historic resource;

(7) If the designation proposal is not being submitted by the owner, a statement acknowledging whether the owner has consented to submission of the proposal, is in opposition to the submission or has declined to state a position on the issue, however, this language shall not be interpreted as requiring owner consent to the designation of an individual resource under this section;

(8) Completed California Department of Parks and Recreation Primary Record and Building, Structure and Object forms for the proposed historic resource; and

(9) Any other information determined necessary by the Specialist to be required for a complete and adequate application.

(b) Procedural requirements in advance of hearing:

(1) The application and supporting information shall be reviewed by the Specialist for adequacy and completeness under the requirements of this section. A hearing on the application will be scheduled within 45 days of the date the Specialist determines that the application is adequate and complete or as soon thereafter as is practicable.

(2) Notice of the time, place and purpose of such hearing will be mailed to the owner of the property proposed for designation at the address shown on the latest assessment roll and published once in a local newspaper of general circulation not less than ten (10) days prior to the date of the hearing. The Secretary may also give such additional notices as he or she deems desirable and practicable.

(3) The property owner and/or any authorized representative shall be prohibited from undertaking any alteration, construction, grading, demolition or removal of such property, and no permit to undertake such work shall be issued by the city for 90 days from the date the Specialist mails the initial notice of hearing to determine historic resource designation to the property owner and/or any authorized representative. If no final action has been taken as to the historic resource designation within the 90 day period, said restrictions shall be removed unless the Commission, with the consent of the property owner and/or any authorized representative, elects to continue its consideration of the property for historic resource designation. If the Commission, with the consent of the owner and/or any authorized representative, makes such an election, said restrictions shall remain against the property until final action and the Specialist shall notify the appropriate city officials of said

restrictions. Nothing in this provision shall be construed as a prohibition or infringement on the legal use of a property pending consideration by the Commission.

The provisions of this section shall not apply to the construction, grading, alteration, demolition or removal of any structure or other feature, where a permit for the performance of such work was issued prior to the date of notice of hearing to consider the designation of the historic resource, and where such permit has not expired or been canceled or revoked, provided that construction is started and diligently pursued to completion in accordance with the Building Code.

Prior to the Commission's hearing on the designation of the property, upon application by the property owner and/or any authorized representative, the Specialist may approve a permit for alterations, construction or reconstruction consistent with the ordinary maintenance and repair of the property, to the extent that such work does not adversely affect the exterior architectural features of the property.

(4) The Specialist shall prepare a staff report for the Commission which shall also be mailed to the owner of the property and/or any authorized representative with the above-described notice of hearing.

(c) Commission Hearing:

(1) The Commission shall review all materials prepared and submitted and only members of the Commission who have physically visited and seen the proposed property may vote on the designation recommendation.

(2) At the conclusion of the hearing, the Commission shall recommend to the Council approval, disapproval or modification of the proposal for designation and make findings in support of that recommendation; or the Commission may continue the hearing.

(3) An affirmative roll call vote of a majority of the authorized membership of the Commission is required for a recommendation to the City Council.

(4) Within ten (10) days of the final Commission action, the Secretary shall send a copy of the recommendation, findings and all submitted materials to the City Clerk. The City Clerk shall place on the agenda of the Council the Commission's recommendation for Council consideration. The owner of the property shall thereafter be given notice of the time and place of the Council hearing at least ten days prior to the hearing date, together with a copy of the Commission's recommendation, findings and submitted materials to the Council.

(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1610. LOCAL HISTORIC DISTRICTS.

(a) Requests for Designation: Designation of a Local Historic District may be initiated by the Council, the Commission, or property owners within the proposed District and shall consist of an initial, preliminary submission and, if recommended by the Commission, a subsequent, formal submission.

(b) Initial Application: The initial application shall be filed with the Specialist using the form(s) approved by the Secretary and shall include the following information:

(1) Proposed District Boundaries.

(2) A Statement of how the proposed Local Historic District meets the Designation Criteria of Section 12-1607(b) of this article.

The initial application shall be the subject of a staff report and will be scheduled for a determination by the Commission as to whether the initial application should proceed to a formal application. If the Commission so recommends, a formal application shall be developed and submitted for Commission consideration at a future meeting. If the Commission does not so recommend, no further action shall be taken with respect to the proposed Local Historic District.

(c) Formal Application: The formal application for Local Historic District designation consideration must be consented to by a majority of the property owners within the proposed district. For purposes of determining whether a majority of property owners have consented, each property owner is entitled to one vote. Owners of more than one property within the proposed district are entitled to one vote per property and multiple owners of a single property are collectively entitled to one vote. The formal application shall be filed with the Specialist using the form(s) approved by the Secretary and shall include the following information:

(1) A clearly defined and explained boundary for the proposed district shown on an Assessor's Map or Maps.

(2) A concise description of the general physical or historical elements (buildings, structures, objects and sites) and qualities which make this area a Local Historic District with a description of building types, architectural styles and periods represented in the proposed district.

(3) A concise statement that clearly documents why the proposed district has significance (areas of significance that reflect the proposed district's historic importance), the period of time for which it is significant, why it substantially meets Local Historic District criteria for listing as set forth in section 12-1607(b) above and, if applicable, why it substantially meets National Register Historic District criteria for listing as set forth in section 12-1607(c) above.

(4) A definition of what types of buildings contribute and do not contribute to the significance of the proposed Local Historic District as well as an estimate of the percentage of buildings within the proposed district that do not contribute to its significance.

(5) A map illustrating all buildings in the proposed district with an identification of contributing and non-contributing resources.

(6) Photographs of streetscapes in the proposed district and the contributing and non-contributing resources.

(7) Completed Department of Parks and Recreation forms for each building, structure, object or site within the proposed Local Historic District which also identify the potential contributors and non-contributors to the district.

(8) Whether the application is seeking the designation of a Local Historic District (and thereafter the nomination of a National Register Historic District) or only the designation of a Local Historic District.

(9) The signed property owners' consent form which shall clearly indicate the name, district property address, district property parcel number and mailing address of each consenting property owner.

(10) A draft council resolution for Local Historic District designation.

(d) Procedural Requirements in advance of Hearing:

(1) The formal application and all supporting information shall be reviewed by the Specialist for adequacy and completeness under the requirements of this section. The Specialist shall be responsible for determining whether the formal application has been consented to by a majority of the property owners within the proposed district as required by this article. A hearing on the application will be scheduled within 45 days of the date the Specialist determines that the application is adequate and complete or as soon thereafter as is practicable.

(2) A copy of the formal application and notice of the time, place and purpose of such hearing will be mailed to the owners of all properties included within the district proposed for designation at the addresses shown on the latest assessment roll and published once in a local newspaper of general circulation not less than ten (10) days prior to the date of the hearing. The Secretary may also give such additional notices as he or she deems desirable and practicable.

(3) No permit shall be issued by the city for the undertaking of any alteration, construction, grading, demolition or removal of any property within a proposed historic district and all property owners and/or their representatives shall be prohibited from undertaking any such work for 90 days from the date the Specialist mails the initial notice of hearing to determine Local Historic District designation to the property owners and/or their authorized representatives. If no final action has been taken as to the proposed Local Historic District designation within the 90 day period, said restrictions shall be removed, unless the Commission, with the consent of the property owners and/or their authorized representatives, elects to continue its consideration of the Local Historic District designation. If the Commission, with the consent of the property owners and/or their authorized representatives, makes such an election, said restrictions shall remain against the properties in the proposed Local Historic District until final action and the Specialist shall notify appropriate city officials of said restrictions. Nothing in this provision shall be construed as a prohibition or infringement on the legal use of properties within the proposed historic district pending consideration by the Commission.

The provisions of this section shall not apply to the construction, grading, alteration, demolition or removal of any structure or other feature, where a permit for the

performance of such work was issued prior to the date of notice of hearing to consider the designation of the Local Historic District, and where such permit has not expired or been canceled or revoked, provided that construction is started and diligently pursued to completion in accordance with the Building Code.

Prior to the Commission's hearing on the designation of the Local Historic District, the provisions of this section shall not apply to permits for alterations, construction or reconstruction consistent with the ordinary maintenance and repair of a property, as defined in Attachment A to the June 1997 Programmatic Agreement among the city, the Advisory Council on Historic Preservation and the State Office of Historic Preservation. Upon application by any property owner or authorized representative, the Specialist shall approve such permits for alterations, construction or reconstruction to the extent that the proposed work is consistent with Attachment A and does not adversely affect the exterior architectural features of the property.

(4) The Specialist shall prepare a staff report for the Commission which shall also be mailed to the owners of all properties within the proposed Local Historic District with the above-described notice of hearing.

(e) Commission Hearing:

(1) The Commission shall review all materials prepared and submitted and only members of the Commission who have physically visited and seen the proposed Local Historic District may vote on the designation recommendation.

(2) Any property owner or his or her representative may make a presentation to the Commission on the issue of whether his or her property should be considered as a contributor or non-contributor to the proposed district and on the issue of whether or not the district should be formed.

(3) At the conclusion of the hearing, the Commission shall recommend to the Council approval, disapproval or modification of the proposal for Local Historic District designation; make findings in support of that recommendation; make findings on issues or concerns raised by any individual property owner; identify any property owner objecting to the inclusion of their property within the district; or the Commission may continue the hearing.

(4) An affirmative roll call vote of a majority of the authorized membership of the Commission is required for a recommendation to the Council.

(5) Within ten (10) days of the final Commission action, the Secretary shall send a copy of the recommendation, findings and all submitted materials to the City Clerk. The City Clerk shall place on the agenda of the Council the Commission's recommendation for Council consideration. The owners and/or authorized representatives of all of the properties within the proposed Local Historic District boundaries shall thereafter be given notice of the time and place of the Council hearing at least ten days prior to the hearing date, together with a copy of the Commission's recommendation, findings and submitted materials to the Council.

(f) Adoption of a Conservation/District Plan: After the declaration of any Historic District by the Council pursuant to section 12-1613 of this article, the applicant shall have 90 days to develop a Conservation/District Plan which will set forth the manner in which the preservation objectives of the Local Historic District will be met. Prior to approval of the Plan by the Commission, design review in other than Specific Plan areas shall be conducted by the Commission. The Plan must include but is not limited to:

(i) A statement of significance which includes a description of contributing resources and significant elements.

(ii) The goals and objectives of the proposed district.

(iii) The means by which conservation objectives will be enforced:

1. A proposed Design Review Committee with all conditions for formation, membership and operations specified;

2. The Historic Preservation Commission serving as the Design Review Committee for the Local Historic District; or

3. A Specific Plan Design Review Committee with all conditions for formation, membership and operations specified.

(iv) Identification of the standards and guidelines which will be applied to design review within the district.

(v) The activities regulated by the Conservation/District Plan which shall exclude activities determined exempt under this article.

(vi) The public education/outreach program to be conducted by the Conservation/District Plan.

(vii) The provision of an annual report to the Commission on compliance with and implementation of the Conservation/District Plan.

(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1611. NATIONAL REGISTER HISTORIC DISTRICTS

(a) Requests for Recommendation: Recommendation of a designated Local Historic District to the National Register of Historic Places, as a National Register Historic District, may be requested by more than fifty (50) percent of the property owners within such Historic District or the Commission or Council.

(b) Procedural Requirements in advance of Hearing:

(1) The recommendation application and all supporting information shall be reviewed by the Specialist for adequacy and completeness under the requirements of this article and the National Register of Historic Places. A hearing on the recommendation will be scheduled within 45 days of the date that the Specialist determines that the application is adequate and complete or as soon thereafter as is practicable.

(2) Notice of the time, place and purpose of such hearing will be mailed to the owners of all properties included within the designated Local Historic District proposed for

recommendation as a National Register Historic District at the addresses shown on the latest assessment roll and published once in a local newspaper of general circulation not less than ten (10) days prior to the date of the hearing. The Secretary may also give such additional notices as he or she deems desirable and practicable.

(3) The Specialist shall prepare a staff report for the Commission addressing the consequences and procedural requirements of listing the Local Historic District on the National Register of Historic Places as a National Register Historic District which shall also be mailed to the owners of all properties within the proposed National Register Historic District with the above described notice of hearing.

(c) Commission Hearing

(1) The Commission shall review all materials prepared and submitted and only members of the Commission who have physically visited and seen the proposed National Register Historic District may vote on the District recommendation.

(2) At the conclusion of the hearing, the Commission shall recommend to the chief elected local official and Council approval, disapproval or modification of the proposal for the National Register Historic District and make findings in support of that recommendation; or the Commission may continue the hearing.

(3) An affirmative roll call vote of a majority of the authorized membership of the Commission is required for a recommendation to the chief elected local official and Council.

(4) Within ten (10) days of the final Commission action, the Secretary shall send a copy of the recommendation, findings and all submitted materials to the chief elected local official and the City Clerk. The City Clerk shall place on the agenda of the Council the Commission's recommendation for Council consideration.

The owners of all properties within the proposed National Register Historic District boundaries shall thereafter be given notice of the time and place of the Council hearing at least ten days prior to the hearing date, together with a copy of the Commission's recommendation, findings and submitted materials to the Council.

(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1612. HERITAGE PROPERTIES.

(a) Requests for Designation: Designation of a Heritage Property may only be initiated by the property owner or an authorized representative of the owner. The application for Heritage Property designation consideration shall be filed with the Specialist, using a form approved by the Secretary and shall include the following information:

(1) The Assessor's parcel number for the property containing the building, structure, object or site proposed for designation along with the name and address of the current owner(s) of record;

(2) Whether the proposed resource takes the form of a building, structure, object or site as same, are defined in this article;

(3) A detailed description of the specific building, structure, object or site proposed for designation including its dates of construction and significant alterations and its architectural style;

(4) The manner in which the proposed building, structure, object or site meets the definition of a Heritage Property contained in Section 12-1602(n) of this article;

(5) Current photographs of all aspects of the proposed Heritage Property, supplemented by sketches, drawings or other descriptive materials;

(6) A description of the physical condition and appearance of the proposed Heritage Property;

(7) The applicant's objectives in seeking Heritage Property designation; and

(8) Any other information determined necessary by the Specialist to be required for a complete and adequate application.

(b) Procedural requirements in advance of hearing:

(1) The application and supporting information shall be reviewed by the Specialist for adequacy and completeness under the requirements of this section. A hearing on the application will be scheduled within 45 days of the date the Specialist determines that the application is adequate and complete or as soon thereafter as is practicable.

(2) At least 10 days prior to the date set therefore, notice of the time, place and purpose of such hearing will be mailed to the owner of the property proposed for designation at the address shown on the latest assessment roll. The Secretary may also give such additional notices as he or she deems desirable and practicable.

(3) The Specialist shall prepare a staff report for the Commission which shall also be mailed to the owner of the property with the above-described notice of the hearing.

(c) Commission Hearing:

(1) The Commission shall review all materials prepared and submitted and only members of the Commission who have physically visited and seen the proposed property may vote on the Heritage Property designation recommendation.

(2) At the conclusion of the hearing, the Commission shall approve, disapprove or modify the proposal for Heritage Property designation by an affirmative roll call vote of a majority of the Commissioners present.

(d) The designation of a resource as a Heritage Property, in and of itself, does not create any presumption the resource qualifies as a "historic resource" pursuant to the California Environmental Quality Act or its implementing CEQA Guidelines.

(e) The owner or their authorized representative may amend or rescind the designation of a Heritage Property in the same manner and procedure as was followed in the original designation.

(f) Notwithstanding subsection (e), a Councilmember may request that Council consider rescinding the designation of a Heritage Property by filing a letter with the Secretary to set a hearing before Council to consider the Councilmember's request. A public hearing on the matter shall be set before the Council so that it occurs within thirty (30) days of the date the letter is filed with the Secretary. The same noticing procedures set forth in subsections (b)(2) and (3) that set forth the noticing procedures for the Commission's consideration of the Heritage Property designation shall be followed, except that the staff report referenced in subsection (b)(3) shall be prepared for the Council. The Council shall rescind the designation of a Heritage Property only if it finds that the resource does not satisfy the requirements for a Heritage Property as set forth in section 12-1603(n) or that circumstances exist to make the Heritage Property designation no longer applicable. The Council decision shall be final and effective and subject to writ proceedings immediately upon Council action. Within 10 days of the Council decision, the Secretary shall mail a courtesy notice to the property owner setting forth the Council's decision. Any statute of limitations begins to run as of the date of the Council decision, not as of the date of the mailing of the courtesy notice to the property owner.

(Am. Ord. 82-137, § 3, eff. 1-21-83; Am. Ord. 87-80, § 1, eff. 7-24-87; Am. Ord. 91-125, §§ 55—61, eff. 12-20-91; Am. Ord. 2001-11, § 1, eff. 3-18-01; Am. Ord. 2008-59, § 2, eff. 11-10-08; Am. Ord. 2012-6, § 1, eff. 3-23-12; Am. Ord. 2021-044, § 4, eff. 11-22-21).

SEC. 12-1613. ADOPTION BY COUNCIL.

(a) The sole authority to declare Historic Resources or Historic Districts and to endorse Local Historic Districts to the National Register of Historic Places shall be vested in the Council and shall be exercised only after completion of the Commission's responsibilities under the designation process set forth above in section 12-1607.

(b) Within thirty days following receipt by the City Clerk of the Commission's recommendations or as soon thereafter as is practicable, a hearing shall be set by the Clerk and held by the Council. Following such hearing, the Council shall adopt, modify or reject the designation recommended by the Commission and, in the instance of a district designation, make findings as to which properties shall be considered contributors and non-contributors to the district. In the alternative, the Council may continue its consideration of the matter, or, in the event that new information is presented, refer the proposed designation to the Commission for further hearings, consideration or study within a period of time designated by Council. Adoption of the designation shall be made by resolution which shall contain findings of fact as specified in Section 12-1607.

(c) Within ten days of the Council's designation decision, notice thereof shall be mailed by the Secretary to the owner of record of each property proposed for designation at the address shown on the latest assessment roll and to such other persons that the Secretary may deem

appropriate, and shall be recorded with the County Recorder. Such notice shall include the basis for any historical designation, a summary of the regulations which result from such designation and a copy of project activities which are exempt from regulation under this article.

(d) No proposal for designation once considered and disapproved by the Council shall be reconsidered except upon the affirmative vote of four Council members. Any decision to reconsider shall be treated as a new proposal for designation pursuant to Sections 12-1608, 12-1609, 12-1610 or 12-1611 of this article.

(e) The Development Department shall provide the Commission and City Council annual status reports at public meetings on all facilities placed on the National, State, County, and City/Local Register in the prior year.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 5, eff. 11-22-21).

SEC. 12-1614. AMENDMENT OR RESCISSION OF DESIGNATION.

The Historic Preservation Commission may amend or rescind any designation of an Historic Resource, an Historic District, a contributor to an Historic District or a non-contributor to an Historic District in the same manner and procedure as was followed in the original designation. This action shall result from new information, the discovery of earlier misinformation or change of original circumstances, conditions or factors which justified the designation of the Resource or District.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1615. LOCAL REGISTER OF HISTORIC RESOURCES.

Resolutions adopting designations of Historic Resources and Local Historic Districts shall collectively be known as the Local Register of Historic Resources. The local register shall be kept on file with the Secretary, who shall transmit copies to the City Clerk, and to the Development Director, the Public Works Director, the Fire Chief, the Chief of Police, the Director of the Fresno City and County Historical Society, and the main branch of the Fresno County Library.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1616. DELETION OF DEMOLISHED, RELOCATED OR RESCINDED DESIGNATED HISTORIC RESOURCES.

When a designated Historic Resource has been demolished or relocated outside the city limits or when its designation has been rescinded pursuant to the provisions of this article, the Secretary, upon notice thereof, shall cause such resource to be deleted from the Local Register of Historic Resources and from the Historic Property Data File for Fresno County maintained by the State Office of Historic Preservation. The Secretary shall also cause a

Rescission of Designation to be recorded with the County Recorder. Upon such deletions and such rescission, the provisions of this article shall not be deemed to encumber or otherwise restrict the use of such property.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1617. HISTORIC RESOURCE PERMIT REVIEW PROCESS.

(a) It shall be unlawful for any person, corporation, association, partnership or other legal entity to directly or indirectly alter, remodel, demolish, grade, remove, construct, reconstruct or restore any Historic Resource without first obtaining a city permit and the written approval of the Historic Preservation Commission. An Historic Resource shall not be eligible for "at risk" development under Fresno Municipal Code Chapter 12, Article 22.

(b) Upon receipt of an application or proposal for a demolition, grading, removal or building permit for any Historic Resource, the City department or agency receiving same shall, within five calendar days, notify the Secretary and forward said permit application or proposal and accompanying documentation to the Secretary and shall not process the application or proposal without the authorization of the Specialist. Also, written notice shall be provided to all property owners within a 2,000 foot radius of the subject property, measured from property line to property line, and to the Councilmember for the applicable District, of the application at least fourteen days prior to any scheduled hearing before the Commission. The Director of the Development Department may approve, in the name of the Commission, non-substantial alterations to the Historic Resource based on the application presented.

(c) Any application or proposal which proposes the substantial alteration of an Historic Resource shall also be referred to the Director of the Development Department for environmental review. No hearing shall be held by the Commission for applications or proposals to demolish, grade, remove or substantially alter the Historic Resource until such application or proposal has undergone environmental review in accordance with the California Environmental Quality Act.

(d) Nothing in this section shall be construed to prevent the ordinary maintenance or repair of any exterior architectural feature in or on any Historic Resource covered by this article that does not involve a change in design, materials or external appearance.

(e) Nothing in this section shall be construed to prevent the Director of the Development Department from issuing a building permit if he or she determines that demolition, removal or substantial alteration of the Historic Resource is immediately necessary to protect the public health, safety or general welfare.

(f) Upon completion of any required environmental review and thirty (30) calendar days prior to a scheduled hearing, the owner or applicant shall provide whatever detailed information (plans, drawings, agreements, etc.) is required or necessary to describe the intended work. The Specialist may require additional information determined to be

necessary for the Commission to act on the matter. The Specialist shall refer the matter to the Commission with a report and recommendation which is accompanied by the final environmental document.

(g) After consideration of the final environmental document, all evidence and testimony, the Commission shall have the authority to approve, deny or approve with modifications, any application or proposal.

(h) No application or proposal shall be approved or approved with modifications unless the Commission makes the following findings:

(1) The proposed work is found to be consistent with the purposes of this article and the Secretary of the Interior's Standards, not detrimental to the special historical, architectural or aesthetic interest or value of the Historic Resource; or

(2) The action proposed is necessary to correct an unsafe or dangerous condition on the property; or

(3) Denial of the application will result in unreasonable economic hardship to the owner. In order to approve the application, the Commission must find facts and circumstances, not of the applicant's own making, which establish that there are no feasible measures that can be taken that will enable the property owner to make a reasonable economic beneficial use of the property or derive a reasonable economic return from the property in its current form; or

(4) The site is required for a public use which will directly benefit the public health, safety and welfare and will be of more benefit to the public than the Historic Resource.

(5) For applications for relocation of an Historic Resource, the Commission shall find that one or more of the above conditions exist, that relocation will not destroy the historical, architectural or aesthetic value of the Resource and that the relocation is part of a definitive series of actions which will assure the preservation of the Resource.

(i) Any finding that denial of the application or proposal will result unreasonable economic hardship to the owner, pursuant to Section 12-1617(h)(3) above, may be based upon the application of the following factors:

(1) Any economic feasibility analysis conducted pursuant to this section shall include the determination of an "after-rehabilitation" value of the property calculated on an income approach utilizing the capitalization rate determined appropriate by the Director of the Development Department. This "after-rehabilitation" value shall be determined in the following manner:

(i) The potential residential or commercial rental rate(s) which could be generated by the property after an appropriate rehabilitation shall be determined by a review of current market rates for comparable properties within comparable neighborhoods.

(ii) The potential annual net income that could be generated by the property after an appropriate rehabilitation, taking into consideration standard vacancy and expense factors, shall be determined.

(iii) The appropriate capitalization rate shall be applied to the potential annual net income to determine the "after-rehabilitation" value of the property.

(2) The fair market value of the land, exclusive of improvements and without development restrictions pursuant to this ordinance, shall be determined by a standard appraisal.

(3) The monetary cost of an appropriate rehabilitation of the resource, in accordance with the standards of this ordinance, shall be determined by professionals qualified to make such a determination.

(4) If the fair market value of the land, combined with the costs of rehabilitation, exceed the "after-rehabilitation" value of the property by more than twenty percent, the Commission shall find that denial of the application will result in an unreasonable economic hardship to the owner.

(j) If the Commission determines a permit should not be issued for the demolition, alteration, relocation or new construction, or the Council on appeal concurs, a new application affecting the same property may be submitted during the twelve (12) month period after the disapproval only if a substantial change is made in the plans for the project.

(k) The Specialist shall give written notice of the decision regarding the regulated permit to the property owner/applicant, the Director of the Development Department, the Councilmember for the applicable Council District, and the Mayor. The notice shall contain the Commission's findings in support thereof.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 6, eff. 11-22-21).

SEC. 12-1618. HISTORIC DISTRICT PERMIT REVIEW PROCESS.

(a) It shall be unlawful for any person, corporation, association, partnership or other legal entity to directly or indirectly alter, remodel, demolish, grade, remove, construct, reconstruct or restore any property within any Historic District without first obtaining a city permit, review by the appropriate Design Review Committee and the written approval of the Historic Preservation Commission.

(b) Upon receipt of an application or proposal for a demolition, grading, removal or building permit for any property within any Historic District, the city department or agency receiving same shall, within five (5) calendar days, notify the Secretary and forward said permit application or proposal and accompanying documentation to the Secretary and shall not process the permit or proposal without the authorization of the Specialist. The Specialist may approve, in the name of the Commission, non-substantial alterations to the property based on the application presented.

(c) Any application which proposes the substantial alteration of any property within any Historic District shall also be referred to the Director of the Development Department for environmental review. No hearing shall be held by the Commission for applications which propose to demolish, grade, remove or substantially alter a property within any Historic District until such proposal has undergone environmental review in accordance with the California Environmental Quality Act.

(d) Nothing in this section shall be construed to prevent the ordinary maintenance or repair of any exterior architectural feature in or on any property covered by this article that does not involve a change in design, materials or external appearance.

(e) Nothing in this section shall be construed to prevent the Director of the Development Department from issuing a building permit if he or she determines that demolition, removal or substantial alteration of a property within any Historic District is immediately necessary to protect the public health, safety or general welfare.

(f) Upon completion of any required environmental review and thirty (30) calendar days prior to a scheduled hearing, the owner or applicant shall provide whatever detailed information (plans, drawings, agreements, etc.) is required or necessary to describe the intended work. The Specialist may require additional information determined to be necessary for the Commission to act on the matter. The Specialist shall refer the matter to the Commission with a report and recommendation which is accompanied by the final environmental document.

(g) After consideration of the final environmental document, all evidence and testimony, the Commission shall have the authority to approve, deny or approve with modifications, any proposed application or permit application.

(h) No application shall be approved or approved with modifications unless the Commission makes the following findings:

(1) For a Contributor to any Historic District, the proposed work is found to be consistent with the general purposes of this article and the Secretary of the Interior's Standards, not detrimental to the special historical, architectural or aesthetic interest or value of the Contributor or the respective Historic District in general and consistent with the District's adopted design standards; or

(2) For a Non-Contributor to any Historic District, the proposed work is found not detrimental to the historical or architectural values of the respective Historic District in general and consistent with the District's adopted design standards; or

(3) For new in-fill construction within any Historic District, the proposed work is found not detrimental to the historical or architectural values of the respective Historic District in general and consistent with the District's adopted design standards; or

(4) The action proposed is necessary to correct an unsafe or dangerous condition on the property; or

(5) Denial of the application will result in unreasonable economic hardship to the owner. In order to approve the application, the Commission must find facts and circumstances, not of the applicant's own making, which establish that there are no feasible measures that can be taken that will enable the property owner to make a reasonable economic beneficial use of the property or derive a reasonable economic return from the property in its current form; or

(6) The site is required for a public use which will directly benefit the public health, safety and welfare and will be of more benefit to the public than the Contributor to the respective Historic District.

(7) For applications for relocation of a Contributor from any Historic District, the Commission shall find that one or more of the above conditions exist, that relocation will not destroy the historical, architectural or aesthetic value of the resource and that the relocation is part of a definitive series of actions which will assure the preservation of the resource.

(i) Any finding that denial of the permit application will result in unreasonable economic hardship to the owner, pursuant to Section 12-1618(h)(5) above, may be based upon the application of the following factors:

(1) Any economic feasibility analysis conducted pursuant to this section shall include the determination of an "after-rehabilitation" value of the property calculated on an income approach utilizing the capitalization rate determined appropriate by the Director of the Development Department. This "after-rehabilitation" value shall be determined in the following manner:

(i) The potential residential or commercial rental rate(s) which could be generated by the property after an appropriate rehabilitation shall be determined by a review of current market rates for comparable properties within comparable neighborhoods.

(ii) The potential annual net income that could be generated by the property after an appropriate rehabilitation, taking into consideration standard vacancy and expense factors, shall be determined.

(iii) The appropriate capitalization rate shall be applied to the potential annual net income to determine the "after-rehabilitation" value of the property.

(2) The fair market value of the land, exclusive of improvements and without development restrictions pursuant to this ordinance, shall be determined by a standard appraisal.

(3) The monetary cost of an appropriate rehabilitation of the resource, in accordance with the standards of this ordinance, shall be determined by professionals qualified to make such a determination.

(4) If the fair market value of the land, combined with the costs of rehabilitation, exceed the "after-rehabilitation" value of the property by more than twenty percent, the Commission shall find that denial of the application will result in an unreasonable economic hardship to the owner.

(j) A decision relating to the approval with modifications or disapproval of an application for any permit may be appealed pursuant to this article.

(k) If the Commission determines a permit should not be issued for the demolition, alteration, relocation or new construction, or the City Council on appeal concurs, a new application affecting the same property may be submitted during the twelve (12) month period after the disapproval only if a substantial change is made in the plans for the project.

(l) The Specialist shall give written notice of the decision regarding the regulated permit to the property owner/applicant, the Director of the Development Department, the Councilmember for the applicable Council District, and the Mayor. The notice shall contain the Commission's findings in support thereof.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 7, eff. 11-22-21).

SEC. 12-1619. HERITAGE PROPERTY PERMIT REVIEW PROCESS.

(a) It shall be unlawful for any person, corporation, association, partnership or other legal entity to directly or indirectly alter, remodel, demolish, grade, remove, construct, reconstruct or restore the Heritage Property without first obtaining a city permit and the written approval of the Historic Preservation Commission.

(b) Upon receipt of an application or proposal for a demolition, grading, removal or building permit for a Heritage Property, the city department or agency receiving same shall, within five (5) calendar days, notify the Secretary and forward said permit application or proposal and accompanying documentation to the Specialist and shall not process the permit or proposal without the authorization of the Specialist. The Specialist may approve, in the name of the Commission, non-substantial alterations to the Heritage Property based on the application presented.

(c) Nothing in this section shall be construed to prevent the ordinary maintenance or repair of any exterior architectural feature in or on any property covered by this section that does not involve a change in design, materials or external appearance.

(d) Nothing in this section shall be construed to prevent the Director of Development from issuing the appropriate permit if he or she determines that demolition, removal or substantial alteration of the Heritage Property is immediately necessary to protect the public health, safety or general welfare.

(e) The State Historical Building Code may be used, in conjunction with any other applicable codes, for any rehabilitation and/or improvements to the Heritage Property as deemed appropriate by the Director of Development.

(f) The Heritage Property may be brought before the Commission for designation as a Historic Resource in accordance with the provisions of Section 12-1608 of this article and, if so designated, the property shall thereafter be subject to all provisions pertaining to designated Historic Resources under this article.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1620. APPEAL PROCEDURE.

(a) Any decision of the Commission may be appealed to the Council by the property owner, the Councilmember for the applicable Council District, or the Mayor not later than twenty days following service by mail by the Specialist of the notice of decision and findings on the property owner and written notice to the Councilmember for the applicable Council District and Mayor. Service of the notice of decision shall be deemed complete on the date of mailing to the property owner. Such appeal shall be taken by the Councilmember for the applicable Council District or the Mayor by notifying the Director of the Development Department in writing, or by the property owner by filing a notice of appeal in duplicate, in the following format, with the Secretary who shall forthwith transmit to the City Clerk all papers and documents on file with the Secretary relating to the appeal:

(1) A caption reading "Appeal of _____" giving the name and address of the applicant;

(2) A brief description of the specific order, decision or determination being appealed;

(3) A statement of the relief sought;

(4) The reasons why such relief should be granted.

(b) The City Clerk shall cause the appeal to be set for hearing before the Council within thirty days of receipt of the notice of appeal. Not later than ten days prior to the date of the hearing on the appeal, the City Clerk shall notify the appellant(s) and all persons requesting such information in writing, of the date, time and location of the appeal.

(c) On appeal, the matter shall be considered de novo by the Council, and the failure to obtain a majority vote for approval of an application shall constitute a denial of the application. Following consideration of the appeal, the Council may approve, disapprove or approve with modifications the application, or may refer the appeal to the Commission for further consideration.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 8, eff. 11-22-21).

SEC. 12-1621. FINALITY OF DECISION.

Any decision of the Council under this article shall be final. Any decision of the Commission under this article shall become final if no appeal is taken from such order or decision within the time limits prescribed by the applicable appeal provision of this article.

No permit regulated by the provisions of this article shall issue, nor shall any rights vest therein, until the decision of the Commission is final or any appeal therefrom is disposed of in the manner prescribed by this article.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 9, eff. 11-22-21).

SEC. 12-1622. SUBSTANDARD BUILDINGS.

(a) The Director of Development or the Fire Marshal shall notify the Secretary whenever such official declares an Historic Resource or any property within an Historic District to be a substandard or unsafe building or structure pursuant to the Fresno Municipal Code, state or federal law.

(b) Upon receipt of notice from the Director of Development or the Fire Marshal, the Commission shall evaluate the historic and architectural merit of the Resource or property, and shall submit an advisory report to the Director of Development or Fire Marshal within thirty (30) days.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1623. ADVICE AND GUIDANCE TO PROPERTY OWNERS.

The Commission may render advice and guidance with respect to any proposed work not requiring a city permit on any designated Historic Resource or any property within any Historic District.

Examples of work referred to above are: Painting and repainting of exterior surfaces; fencing; landscaping; and, installation of lighting fixtures. In rendering such advice and guidance, the Commission shall be guided by the purposes and standards of this article.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1624. PROPERTY OWNED BY PUBLIC AGENCIES.

The Commission shall take appropriate steps to notify all public agencies and public utilities which own or may acquire property, including easements and public rights-of-way, in the city about the existence and character of designated Historic Resources and Historic Districts, and the Commission shall cause a current record of such Resources and Districts to be maintained with each such public agency and public utility. All such designated Resources and Districts shall be subject to the provisions of this article regardless of ownership.

In the case of publicly owned properties which are not subject to the permit review procedures of the city, including this article, but are more than fifty (50) years of age or are located within any Historic District, the agency owning the said property is encouraged to seek the advice of the Commission prior to approval or authorization of any construction, alteration, or demolition thereon, including the use and placement of street furniture, signs, lighting, and landscaping; and, the Commission shall render a report to the owner as expeditiously as possible, based on the purposes and standards in this article. If Commission

review of a public project involving construction, alteration, or demolition of any building, structure, object or site is required under any other law, the Commission may render the report referred to in this section to such public agencies without specific request therefor.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1625. FIRE AND BUILDING CODE.

Issuance of a permit in conformance with this article shall not alter conformance requirements with the other standards and requirements of this chapter. The Director of Development and the Fire Marshal shall liberally construe and apply all pertinent codes, including the State Historical Building Code and the Uniform Building Conservation Code so as to effectuate the purposes of this article.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1626. MINIMUM MAINTENANCE.

(a) All designated Historic Resources including Contributors to any Historic District shall be preserved against decay and deterioration, kept in a state of good repair and free from structural defects. The purpose of this section is to prevent an owner or other person having legal custody and control over a property from facilitating demolition of a Historic Resource by neglecting it and by permitting damage to it by weather and vandalism.

(b) Consistent with all other state and city codes requiring that buildings and structures be kept in good repair, the owner or other person having legal custody and control of a property shall repair such building or structure if it is found to have any of the following defects:

(1) Building elements so attached that they may fall and injure members of the public or property.

(2) Deteriorated or inadequate foundation.

(3) Defective or deteriorated flooring.

(4) Members of walls, partitions or other vertical supports that split, lean, list or buckle due to defective material or deterioration.

(5) Members of ceilings, roofs, ceiling or roof supports or other horizontal members which sag, split or buckle due to defective materials or deterioration.

(6) Fireplaces or chimneys which list, bulge or settle due to defective material or deterioration.

(7) Deteriorated, crumbling or loose exterior plaster.

(8) Deteriorated or ineffective waterproofing of exterior walls, roofs, foundations or floors, including broken windows or doors.

(9) Defective or lack of weather protection for exterior wall coverings, including lack of paint, or weathering due to lack of paint or other protective covering.

(10) Any fault, defect or deterioration in the building which renders it structurally unsafe or not properly watertight.

(c) If the Commission has reason to believe that a Resource is being neglected and subject to damage from weather or vandalism, the Commission shall direct staff to meet with the owner or other person having legal custody and control of the Resource and to discuss with them the ways to improve the condition of the property. If no attempt or insufficient effort is made to correct any noted conditions thereafter, the Commission may, at a noticed public hearing, make a formal request that the Development Department or other appropriate department or agency take action to require corrections of defects in the subject Resource in order that such Resource may be preserved in accordance with this article.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1627. STATUS OF PROPERTIES PREVIOUSLY DESIGNATED.

(a) All Historic Resources and Historic Districts previously designated under Article 16 of Chapter 12 of the Fresno Municipal Code shall retain such status for a period of 30 days from the date of passage of this article, at which time they will automatically be redesignated pursuant to the provisions of and subject to the terms of this article.

(b) Historic Resources and Contributors to Historic Districts which have an application for a regulated permit on file at the time this article becomes effective shall remain in the regulatory scheme established by the version of this article in effect at the time application was made for such regulated permit.
(Added Ord. 99-50, §§ 1, 2, 9-9-99).

SEC. 12-1628. CIVIL AND CRIMINAL PENALTIES.

It shall be unlawful for any person to permit or maintain violations of any of the provisions of this article by undertaking the alteration, grading, removal, demolition or partial demolition of an Historic Resource or a building, structure, object or site within a Historic District without first obtaining the written approval of the Specialist, Commission or Council as provided in this article, or to defy any order or decision rendered by the Specialist, Commission or Council. Any violations of this article may be enforced as provided in this Code, including prosecution of violations as a misdemeanor with maximum penalties as provided in the Fresno City Charter, and administrative citations issued pursuant to this Code, wherein the administrative penalty imposed shall be up to $100,000 for each violation. As part of any enforcement proceeding, violators may be required to reasonably restore the building, structure, object or site to its appearance or condition prior to the violation, under the guidance of the Development Department. Additionally, all available legal remedies may be pursued by the City Attorney.
(Added Ord. 99-50, §§ 1, 2, 9-9-99; Am. Ord. 2021-044, § 10, eff. 11-22-21).

SEC. 12-1629. SEVERABILITY.

(a) If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this article. The Council hereby

declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 99-50, §§ 1, 2, 9-9-99)

ARTICLE 17. MILLS ACT PROGRAM

Sec. 12-1701. Title.
Sec. 12-1702. Findings and Purpose.
Sec. 12-1703. Contracts to Restrict Use of Qualified Historical Property.
Sec. 12-1704. Qualified Historical Property.
Sec. 12-1705. Required Contract Provisions.
Sec. 12-1706. Application Procedure.
Sec. 12-1707. Right of Appeal.
Sec. 12-1708. Fees.
Sec. 12-1709. Extension or Non-Renewal of Contract; Recordation; and Notice of Contract.
Sec. 12-1710. Cancellation of Contract for Owner's Breach.
Sec. 12-1711. Notice and Hearing Before Cancellation of Contract.
Sec. 12-1712. Cancellation Fee.
Sec. 12-1713. Action to Enforce Contract.
Sec. 12-1714. Nullification of Contract on Acquisition of Property by Eminent Domain.
Sec. 12-1715. Consultant.
Sec. 12-1716. Implementing Rules and Regulations.

SEC. 12-1701. TITLE.

This article shall be known as the "Mills Act Program."
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1702. FINDINGS AND PURPOSE.

Pursuant to California Government Code Sections 50280-50290, the City may contract with an owner or agent of the owner of any qualified historical property provided the contract meets the requirements of Sections 50281 and 50282. Pursuant to Article 1.9 of the California Revenue and Taxation Code, historical properties that are "restricted" by the type of contracts referenced in the previous sentence shall be reassessed by the County Assessor in a manner that may result in lower real property taxes. The purpose of this article is to implement state law permitting the approval of such Historical Property Contracts by establishing a uniform procedure for the owners of qualified historic properties within the City to follow when applying for approval of Historical Property Contracts.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1703. CONTRACTS TO RESTRICT USE OF QUALIFIED HISTORICAL PROPERTY.

Upon the application of an owner or the agent of an owner of any qualified historical property, the city may contract with the owner to restrict the use of the property for its preservation, restoration, and rehabilitation as set forth in Section 12-1704 to carry out the purposes of this article and of Article 1.9 (commencing with Section 439) of Chapter 3 of Part 2 of Division 1 of the Revenue and Taxation Code. The contract shall meet the requirements of this article and Government Code Sections 50280-50290.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1704. QUALIFIED HISTORICAL PROPERTY.

(a) "Qualified historical property" for purposes of this article, means privately owned property within the City of Fresno, which is not exempt from property taxation and which meets either of the following:

(1) The property is listed in the National Register of Historic Places or located in a registered historic district, as defined in Title 26 of the Code of Federal Regulations.

(2) The property is listed in any state, city, county, or city and county official register of historical or architecturally significant sites, places, or landmarks.

(b) "Qualified historical property" for the purposes of this article, does not include "Heritage Properties" as defined by Fresno Municipal Code Section 12-1603(n).
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1705. REQUIRED CONTRACT PROVISIONS.

Any contract entered into under this article shall contain the following provisions:

(a) A minimum term of ten years;

(b) A provision obligating the owner to preserve and, when necessary, restore and rehabilitate the property to conform to the rules and regulations of the Office of Historic Preservation of the Department of Parks and Recreation, the Secretary of the Interior's Standards for the Treatment of Historic Properties, and the State Historical Building Code;

(c) A provision granting city officials permission to inspect the interior and exterior of the premises, prior to the execution of a new contract, and every five years thereafter, to determine the owner's continued compliance with the contract;

(d) A provision binding all successors in interest of the owner to the benefits and burdens of the contract;

(e) Automatic annual renewal(s) of the contract, absent timely written notice of nonrenewal by the owner or the city, as discussed in Section 12-1709, and prescribed by Government Code Section 50282(a);

(f) A provision requiring the owner furnish the city with any information the city requests in order to enable the city to determine the eligibility of the property involved; and

(g) A provision requiring the owner or agent of the owner to provide written notice of the contract to the Office of Historic Preservation within six months of entering into the contract.

The Development and Resource Management Department shall maintain a sample "Historical Property Contract" containing all required provisions specified by this article and Government Code Sections 50280-50290. Contracts submitted on the city's form shall be deemed to contain all provisions necessary for a Historical Property Contract with the city.

Additional provisions desired by the owner or the agent of the owner shall be subject to approval by the Director of the Development and Resource Management Department and the City Attorney.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1706. APPLICATION PROCEDURE.

Applications to the city shall be initially evaluated and reviewed by the Historic Preservation Commission. The Historic Preservation Commission shall hold a public hearing on every application for a Historical Property Contract. The public hearing shall be scheduled for a date not less than ten days but not more than ninety days from the date the application is filed. After the hearing, the Historic Preservation Commission shall recommend to the Director of the Development and Resource Management Department that the application be denied, granted in whole or in part, or modified subject to such conditions as it deems appropriate. The Director of the Development and Resource Management Department may, in the Director's discretion, enter into Historical Property Contracts if all of the conditions of this article are met. The Director of the Development and Resource Management Department shall be responsible for assuring performance of the Historical Preservation Contracts including contract administration, extension, cancellation, and enforcement.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1707. RIGHT OF APPEAL.

The decision of the Director of the Development and Resource Management Department may be appealed to the City Council within ten days. Hearings before the City Council shall be scheduled by the City Clerk for a date not less than ten days but not more than ninety days from the date the appeal is filed.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1708. FEES.

As a condition of entering into the Historic Preservation Contract, the City may require the property owner to pay an application and processing fee to the City of Fresno prior to processing the application. Such fee, if any, shall be limited to the reasonable cost of administrating the Mills Act Program, and shall be provided for in the Master Fee Schedule.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1709. EXTENSION OR NON-RENEWAL OF CONTRACT; RECORDATION; AND NOTICE OF CONTRACT.

(a) Each contract shall provide that on the anniversary date of the contract or such other annual date as is specified in the contract, a year shall be added automatically to the initial term of the contract unless notice of nonrenewal is given as provided in this section. If the property owner or the city desires in any year not to renew the contract, that party shall serve written notice of nonrenewal of the contract on the other party in advance of the

annual renewal date of the contract. Unless the notice is served by the owner at least ninety days prior to the renewal date or by the city at least sixty days prior to the renewal date, one year shall automatically be added to the term of the contract.

(b) Upon receipt by the owner of a notice from the city of nonrenewal, the owner may make a written protest of the notice of nonrenewal. The city may, at any time prior to the renewal date, withdraw the notice of nonrenewal.

(c) If the city or the owner serves notice of intent in any year not to renew the contract, the existing contract shall remain in effect for the balance of the period remaining since the original execution or the last renewal of the contract, as the case may be.

(d) The owner shall furnish the city with any information the city shall require in order to enable it to determine the eligibility of the property involved.

(e) No later than twenty days after the city enters into a contract with an owner pursuant to this article, the City Clerk shall record with the County Recorder a copy of the contract, which shall describe the property subject thereto. From and after the time of the recordation, this contract shall impart a notice thereof to all persons as is afforded by the recording laws of this state.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1710. CANCELLATION OF CONTRACT FOR OWNER'S BREACH.

The city may cancel a contract if it determines that the owner has breached any of the conditions of the contract provided for in this article or has allowed the property to deteriorate to the point that it no longer meets the standards for a qualified historical property. The city may also cancel a contract if it determines that the owner has failed to restore or rehabilitate the property in the manner specified in the contract.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1711. NOTICE AND HEARING BEFORE CANCELLATION OF CONTRACT.

No contract shall be canceled under Section 12-1710 until after the city has given notice of, and has held, a public hearing on the matter. Notice of the hearing shall be mailed to the last known address of each owner of property within the historic zone and shall be published pursuant to Government Code Sections 6060 and 6061.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1712. CANCELLATION FEE.

(a) If a contract is canceled under Section 12-1710, the owner shall pay a cancellation fee equal to twelve and one-half percent of the current fair market value of the property, as determined by the County Assessor as though the property were free of the contractual restriction. (Gov. Code, § 50286(a).)

(b) The cancellation fee shall be paid to the County Auditor, at the time and in the manner that the County Auditor shall prescribe, and shall be allocated by the County Auditor to each jurisdiction in the tax rate area in which the property is located in the same manner as the County Auditor allocates the annual tax increment in that tax rate area in that fiscal year.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1713. ACTION TO ENFORCE CONTRACT.

As an alternative to cancellation of the contract for breach of any condition, the city, or any landowner that is a party to the contract may bring any action in court necessary to enforce a contract, including, but not limited to, an action to enforce the contract by specific performance or injunction.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1714. NULLIFICATION OF CONTRACT ON ACQUISITION OF PROPERTY BY EMINENT DOMAIN.

In the event that property subject to contract under this article is acquired in whole or in part by eminent domain or other acquisition by any entity authorized to exercise the power of eminent domain, and the acquisition is determined by the city to frustrate the purpose of the contract, such contract shall be canceled and no fee shall be imposed under Section 12-1712. Such contract shall be deemed null and void for all purposes of determining the value of the property so acquired.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1715. CONSULTANT.

The city and owners of qualified historical properties may consult with the Historic Preservation Commission for its advice and counsel on matters relevant to historical property contracts.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

SEC. 12-1716. IMPLEMENTING RULES AND REGULATIONS.

The Director of the Development and Resource Management Department may make such rules and regulations, as are not inconsistent with the provisions of this article, and as may be necessary or desirable to aid in the implementation of the Mills Act Program and in the administration and enforcement of the provisions of this article.
(Added Ord. 2016-51, § 1, eff. 1-15-17).

ARTICLE 18 RESERVED*

*__Editor's note—__Ord. 2015-39, § 2, effective January 9, 2016, amended the Code by repealing former Art. 18, §§ 12-1801—12-1816. Former Art. 18 pertained to advertising. For derivation of former Article 18, please see the Code Comparative Table.

ARTICLE 19 DRAINAGE FEES

Sec. 12-1901. Purpose.
Sec. 12-1902. Definitions.
Sec. 12-1903. Development.
Sec. 12-1904. Director.
Sec. 12-1905. District.
Sec. 12-1906. Division.
Sec. 12-1907. Gross Acreage.
Sec. 12-1908. Local Drainage Area.
Sec. 12-1909. Local Drainage Fees.
Sec. 12-1910. Local Drainage Plan.
Sec. 12-1911. Manager.
Sec. 12-1912. Parcel of Land.
Sec. 12-1913. Planned Local Drainage Facilities.
Sec. 12-1914. Planned Local Drainage Facilities Fund.
Sec. 12-1915. Zoning Ordinance.
Sec. 12-1916. Local Drainage Fees Required; When Payable.
Sec. 12-1917. Development Without Payment of Local Drainage Fee Prohibited.
Sec. 12-1918. Fee Schedule. Computation of Fee.
Sec. 12-1919. Credits, Reimbursements for Fees and Facilities Previously Paid and Installed. Conditions.
Sec. 12-1920. Appeals.
Sec. 12-1921. District as Agency to Design and Install Facilities.
Sec. 12-1922. Transfer of Funds to District.
Sec. 12-1923. Administration and Enforcement.

SEC. 12-1901. PURPOSE.

The Council hereby declares and finds that the development of land for urban uses substantially accelerates the concentration of surface and storm waters and that it is necessary to provide for the construction of and establish and collect drainage fees to defray all or a part of the actual or the estimated cost of constructing planned local drainage facilities for the removal of surface and storm waters from local drainage areas in order to promote and protect the public safety, peace, comfort, and convenience and the general welfare, and for the accomplishment of the purposes more particularly set forth as follows:

(a) To provide for planned local drainage facilities within the city required for the removal of surface and storm waters from local drainage areas.

(b) To provide for an alternate method of financing construction of planned local drainage facilities within local drainage areas.

(c) To provide a source of information regarding development of planned local drainage facilities for present and prospective residents, developers, and investors in property within the various local drainage areas.

(d) To obviate the menace to public safety arising from inadequate provision for removal of surface and storm waters occurring as the result of development of property within local drainage areas.

(e) To prevent deterioration of property values and impairment of conditions making for desirable residential, commercial or industrial development, as the case may be, which would result from the failure to construct planned local drainage facilities.

(f) To prevent deterioration of public streets and other public facilities which would result from failure to construct planned local drainage facilities.

(g) To provide for collection of local drainage fees for construction of planned local drainage facilities within any local drainage area at the time of the division of land, as authorized by Section 66483 of the Government Code of California and the provisions of this Code, or at the time of other development thereof, except as herein excepted, such fees being, however, subject to credits as herein provided for revenues, assessments and other receipts theretofore collected with respect to any such parcel or parcels of land for construction of planned local drainage facilities within any local drainage area. (Am. Ord. 79-178, § 1, eff. 12-7-79).

SEC. 12-1902. DEFINITIONS.

Unless the particular provisions or the context otherwise requires, the definitions contained in this article shall govern the construction, meaning, and application of the words and phrases defined, and their derivatives and derivatives therefrom wherever applicable, whenever used in this article. (Am. Ord. 79-178, § 2, eff. 12-7-79).

SEC. 12-1903. DEVELOPMENT.

"Development," as used in this article, means any building, structure, or other improvement or the construction, erection, or installation thereof, in, over or upon any parcel of land. "Development" does not include any temporary building, structure or other improvement, or the construction, erection or installation thereof, which under the terms of any permit issued therefor or the provisions of this Code or pursuant to such other assurance as the Director may require, may be maintained not to exceed one year or, if erected or installed for use in the performance of the work of a construction project, until completion of such work. The term "improvement" shall include, without limitation, any development activity which, as determined by the Director, materially alters the natural surface of the land or restricts the imperviousness of the soil and includes without limitation paving (concrete, asphalt, oil or other means of soil stabilization) and landscaping. (Am. Ord. 79-178, § 3, eff. 12-7-79, formerly § 13-1302.6).

SEC. 12-1904. DIRECTOR.

"Director," as used in this article, means the Director of the Development Department of the city. (Am. Ord. 79-178, § 4, eff. 12-7-79; formerly § 13-1302.12; Am. Ord. 83-95, § 1, eff. 7-29-83).

SEC. 12-1905. DISTRICT.

"District," as used in this article, means the Fresno Metropolitan Flood Control District. (Am. Ord. 79-178, § 5, eff. 12-7-79, formerly § 13-1302.1).

SEC. 12-1906. DIVISION.

"Division," as used in this article, means the dividing of any parcel of land into one or more lots or parcels, including, but not limited to, a division as described in Section 12-1203 of this Code, or any parcel of land which has been so divided. (Am. Ord. 79-178, § 6, eff. 12-7-79, formerly § 13-1302.7).

SEC. 12-1907. GROSS ACREAGE.

"Gross acreage," as used in this article, means the area of a parcel of land, or the area of a proposed division, including those portions designated for streets and alleys and including those portions of all abutting streets and alleys measured to the center lines thereof or to a line parallel with and thirty feet from the property line, whichever shall be the lesser. In the case of a single-family residential use occupying a corner parcel, the area of the street abutting the shortest side of such parcel, or one side in the case of a square parcel, shall not be included. (Am. Ord. 79-178, § 7, eff. 12-7-79, formerly § 13-1302.10).

SEC. 12-1908. LOCAL DRAINAGE AREA.

"Local drainage area," as used in this article, means a particular drainage area for which planned local drainage facilities for the collection and removal of surface and storm waters therefrom, and the total estimated costs of constructing such facilities, are set forth in a local drainage plan. (Am. Ord. 79-178, § 8, eff. 12-7-79, formerly § 13-1302.2).

SEC. 12-1909. LOCAL DRAINAGE FEES.

"Local drainage fees," as used in this article, means fees established and levied as provided in this article to pay all or a part of the costs of planned local drainage facilities and their appurtenances. (Am. Ord. 79-178, § 9, eff. 12-7-79, formerly § 13-1302.5).

SEC. 12-1910. LOCAL DRAINAGE PLAN.

"Local drainage plan," as used in this article, means the Storm Drainage Master Plan, a component of the conservation and public facilities element to the 1974 Fresno-Clovis Metropolitan Area General Plan adopted by the Council, such plan delineating therein a plan for each local drainage area which contains an estimate of the total costs of constructing the local drainage facilities required by the plan, together with their appurtenances, and a map of the local drainage area showing generally its boundaries and the location of the planned local drainage facilities. (Am. Ord. 79-178, § 10, eff. 12-7-79, formerly § 13-1302.3).

SEC. 12-1911. MANAGER.

"Manager," as used in this article, means the person duly employed to act, and acting, as the Manager of the District. (Am. Ord. 79-178, § 11, eff. 12-7-79, formerly § 13-1302.11).

SEC. 12-1912. PARCEL OF LAND.

"Parcel of land," as used in this article, means any real property, improved or unimproved, shown on the latest equalized county assessment roll as a parcel and reflected by the assessor's parcel maps prepared by the office of the County Assessor of the County of Fresno. (Am. Ord. 79-178, § 12, eff. 12-7-79, formerly § 13-1302.9).

SEC. 12-1913. PLANNED LOCAL DRAINAGE FACILITIES.

"Planned local drainage facilities," as used in this article, means drainage facilities required for a local drainage area. The term "facilities" shall include, without limitation, real property and rights in property for use for and in connection with the installation of planned local drainage facilities, conduits, drainage channels, drainage retention and recharge basins, and things incidental thereto, all as may be required for the collection and removal of surface and storm waters from a local drainage area. (Am. Ord. 79-178, § 13, eff. 12-7-79, formerly § 13-1302.4).

SEC. 12-1914. PLANNED LOCAL DRAINAGE FACILITIES FUND.

"Planned local drainage facilities fund," as used in this article, means a separate fund established by the Controller for a local drainage area, into which all local drainage fees collected on property within such local drainage area shall be deposited, and the monies in which shall be expended solely for acquisition or construction, or reimbursement for acquisition or construction of planned local drainage facilities within the local drainage area for which such fund was established. (Am. Ord. 79-178, § 14, eff. 12-7-79, formerly § 13-1302.8).

SEC. 12-1915. ZONING ORDINANCE.

"Zoning Ordinance," as used in this article, means the Zoning Ordinance of the city (Articles 1 to 4.5, inclusive, of Chapter 12 of this Code). (Am. Ord. 79-178, § 15, eff. 12-7-79).

SEC. 12-1916. LOCAL DRAINAGE FEES REQUIRED; WHEN PAYABLE.

(a) Except as otherwise provided in this section, a local drainage fee shall be paid on each parcel of land in a local drainage area prior to the commencement of the work of any development thereon or, in the case of any division of a parcel of land, prior to the approval of the final subdivision or parcel map thereof. The applicable fee shall be that most recently established by the Council prior to approval of the final subdivision or parcel map, or development.

(b) In the case of subdivisions which at the time of approval are zoned for industrial uses, and of parcel maps, the following applies:

(1) If planned local drainage facilities are required within the limits of, or are necessitated by such division or phase thereof, the drainage fees which shall be paid prior to the approval of the final map thereof shall not exceed the cost of such planned local drainage facilities or the drainage fees for previously developed areas for which fees have not been paid, whichever is greater. The balance of the fee obligation set forth by the provisions of this article may be deferred.

(2) If planned local drainage facilities are not required within the limits of, or are not necessitated by such division, the drainage fees required by this article may be deferred for previously undeveloped areas only.

(3) Local drainage fees deferred under the provision of this subsection shall be payable in the amounts determined by the provisions of this article prior to receipt of a development entitlement for the lands subject to such division.

(c) Except in the case of single-family residential uses, the area of an addition, replacement, reconstruction or the construction of separate structures or other improvements on a previously developed parcel for which a drainage fee or assessment has not been fully paid shall be deemed a parcel of land for the purposes of this article and a local drainage fee is payable thereon when such area equals or exceeds 1,000 square feet. When the area of such addition, replacement, reconstruction or other improvement or the accumulation of such additions or other improvements made after March 15, 1969, equals twenty-five per cent or more of the development existing as of March 15, 1969, the local drainage fee shall be payable on the total area of the subject parcel as defined in Section 12-1912 and Section 12-1918, subsection (f). Credits for fees or assessments previously paid shall be granted in accordance with Section 12-1919, subsection (c) hereof.

(d) The city shall require:

(1) The design, construction, and dedication of planned local drainage facilities located within or necessitated by a development or division; or

(2) The combination of the payment of a partial drainage fee as required herein and the design, construction and dedication of planned local drainage facilities when determined by the District to be necessary in conjunction with such development or division.

(e) Exceptions. Local drainage fees are not payable for the performance of the following items of work:

(1) Except in the case of a division, any development work which consists solely of the construction, erection, or installation of:

(i) Fences, pole lines, underground conduits, or pipelines, or similar developments which, as determined by the Director do not materially alter the natural surface of a parcel of land; or

(ii) Concrete curbs, gutters, sidewalks, driveway approaches, paving or other street improvements within any street or alley.

(2) Any development consisting solely of additions or alterations to any single-family residential dwelling or its accessory structures or other additional development on a developed single-family residential parcel.

(3) Any reconstruction or replacement of a single-family residence destroyed by fire or because of condemnation, provided that this exception shall not apply in the event that:

(i) The use of the parcel or any portion thereof at the time of reconstruction or replacement is for other than single-family residential; or

(ii) Reconstruction or replacement does not occur within twelve months; or

(iii) The ownership of the parcel is changed following the occurrence which requires reconstruction or replacement thereof.

(f) Government Agency. Payment of the local drainage fee upon division of land divided by a governmental agency engaged in such activity may be deferred upon request filed with the city and district by the governmental agency to the time of development of any undeveloped lot or parcel created in said division, subject to the conditions herein specified. A governmental agency, for the purposes of this deferment, is defined as one which is created under the provisions of either federal, state or local enabling legislation and which is acting under a program in which payment of the local drainage fee would not be an eligible cost.

(1) The deferment authorized herein shall be allowed only in the event said governmental agency enters into a written agreement with the city and district which shall provide:

(i) That the fee shall otherwise be paid pursuant to the provisions of this article;

(ii) That the agreement creates a valid lien upon such parcel to the extent of the fee (such lien may be subordinated at the discretion of the Director, and the form and substance of the agreement, procedures, documents, covenants, etc., necessary to place the agreement and lien into effect shall all be determined by the Director, subject to the approval of the City Attorney);

(iii) That said agreement shall provide that the owner of each lot or parcel created as a result of said division shall agree to pay all court costs and attorney fees and waives any and all defenses, legal or equitable, other than liquidated monetary setoffs against the city, if an action at law or foreclosure suit is brought to enforce payment of the fee or recovery of the fee through the lien.

(2) Said governmental agency will pay or provide for payment of the drainage fee on any developed lot or parcel at the time of division except that in the event of ownership by said governmental agency of said developed parcel or parcels, payment of the drainage fee thereon shall be made at the time of sale of said developed lot or parcel by the governmental agency.

(3) Said governmental agency will give actual notice of the lien described above to the purchaser of any lot or parcel created as a result of such division, except that failure by said governmental agency to provide actual notice to the purchaser shall not affect the lien upon said parcel or portion thereof as sold or the liability by the owner thereof to pay any drainage fee thereon as herein provided.

(g) As to any portion of land included within a parcel map for which the fee has not been deferred under subsection (b) of this section, the fee obligation established by this article may be deferred where such divisions of land are required by court order.

(1) All owners who desire to defer fees under this subsection shall enter into an agreement with the city which shall require the payment of such deferred fee at the earliest of the following occurrences:

(i) The sale or transfer of any such parcel or portion thereof;

(ii) The filing of a final map or parcel map on any portion of such parcel;

(iii) The issuance of a building permit or special permit for any development entitlement on or for any portion of such parcel.

(2) Fees deferred under this subsection shall be paid at the rates in effect when such fees become due and payable.

(Am. Ord. 79-178, § 16, eff. 12-7-79; Am. Ord. 81-118, §§ 1, 2, eff. 10-9-81; Am. Ord. 83-95, § 2, eff. 7-29-83).

SEC. 12-1917. DEVELOPMENT WITHOUT PAYMENT OF LOCAL DRAINAGE FEE PROHIBITED.

No person shall construct, erect, or install, or cause or permit to be constructed, erected, or installed, any development on any parcel of land on which the local drainage fee required by this article has not been paid; and no building permit or other permit for any development shall be issued unless the required local drainage fee has been paid. (Am. Ord. 79-178, § 17, eff. 12-7-79).

SEC. 12-1918. FEE SCHEDULE. COMPUTATION OF FEE.

(a) The Council shall establish by resolution, for each local drainage area, a schedule of per-gross-acre fees calculated to provide the sum of money necessary to pay the estimated total costs, as set forth in the local drainage plan, of the planned local drainage facilities for such planned local drainage area. Such schedule shall be conditioned and based on the following findings by the Council:

(1) That the planned local drainage facilities for each local drainage area are in conformity with the conservation and public facilities elements of the Fresno-Clovis Metropolitan Area General Plan, the local drainage plan, and the general drainage plan of the District.

(2) That the development of property within each local drainage area will require construction or acquisition of the planned local drainage facilities described in the local

drainage plan and that the fees are fairly apportioned within each local drainage area on the basis of benefits conferred on property developed or to be developed or on the need for planned local drainage facilities created by proposed or existing development of property within the local drainage area.

(3) That drainage facilities planned with respect to each local drainage area which are in addition to any existing local drainage facilities serving such local drainage area at the time of adoption of the local drainage plan are necessary to complete the planned local drainage facilities for such local drainage area.

(b) The schedule of fees shall be those amounts established by resolution of the Council adopted prior to the effective date of this ordinance and shall remain in effect until February 28, 1980. Effective March 1, 1980, and each succeeding March 1 thereafter, said schedule of fees shall be adjusted in accordance with the following criteria:

(1) On January 1 of each year the Manager shall review the current National Engineering News Record Construction Cost Index (ENRCCI). When such index differs from said index for the preceding January 1, the factor of increase or decrease shall be applied to the schedule of fees. Such factor shall be computed by dividing the ENRCCI for the current January 1 by that pertaining to the previous January 1. The individual drainage fee rates shall be multiplied by said factor to determine the adjusted schedule of fees.

(2) The Manager shall add to the schedule of fees the drainage fee rates for new planned local drainage areas established by the Council concurrently with the amendment of the local drainage plan adding thereto such new planned local drainage areas.

(3) If in the determination of the Manager the adjustment of the schedule of fees produced by the procedure in paragraph (1) of this subsection (b) is not representative of the actual change in costs of the planned local drainage facilities, the Manager may, in lieu of the procedures set forth in said paragraph, compute a new schedule of fees for adoption by resolution of the Council.

(4) In the event of the adoption of a new schedule of fees by resolution of the Council, such new schedule shall become effective immediately upon the adoption thereof by the Council. The adjustment of such schedule provided in paragraph (1) of this subsection (b) shall begin the January 1 next occuring after adoption of the new schedule.

(c) The rates per gross acre used to compute local drainage fees levied and collected pursuant to this article for parcels of land located in any local drainage area shall be those rates set forth for such local drainage area in the schedule of per-gross-acre fees established by resolution of the Council as set forth in this section. For parcels of land located, pursuant to the Zoning Ordinance, in the respective land use districts identified in said schedule of per-gross-acre fees, the per-gross-acre fee shall be the sum identified with such land use district in such schedule.

(d) In such cases wherein the parcel of land is located in a new land use district for which a rate per gross acre has not been adopted by the Council, the Manager shall calculate and

the Director shall levy an interim fee using the cost distribution formula for the land use district within the subject local drainage area which in the Manager's opinion is the most similar to the new district, but which is not less than the lowest per-acre rate identified in the rate schedule for the drainage area in which such parcel of land is located. The Council shall, as soon as practical, thereafter amend the schedule of per-gross-acre fees identifying therein the new district and the fees per gross acre associated therewith and any deviation from the interim fees which shall have been paid shall be adjusted by a further payment to the city or refund to the owner.

(e) The local drainage fee applicable to any parcel of land or division shall be the product of the gross acreage of the parcel or division multiplied by the rate or rates per gross acre applicable to the land use district, the local drainage area and the local drainage area zone within which the parcel or division is located as specified within the fee schedule resolution adopted pursuant to this section.

(f) When a development is proposed on only a portion of any parcel of land, the Director may designate on the approved plot plan the portion of such real property on which the development is to occur as the area to be developed. The payment of the local drainage fee shall be limited to such designated area subject to the following conditions:

(1) Such designated area shall include all area to be the subject of activity which materially alters the natural surface of the land or restricts the imperviousness of the soil, including landscaping, paving and other means of soil stabilization, and grading and filling.

(2) Such designated area shall equal or exceed the minimum area established for the applicable land use district identified in the Zoning Ordinance.

(3) The area of such parcel remaining undesignated shall equal or exceed the minimum area established for the applicable land use district identified in the Zoning Ordinance.

(g) When any development subject to a special permit or a recorded development agreement would create a greater or lesser amount of change in the natural surface of the land than would be created by the normal or usual development of land in a land use district, an appropriate fee shall be calculated by using the rate or rates for the land use district within the subject local drainage area which is most similar in character to the proposed development. Payment of such fee or the construction of planned local drainage facilities, or a combination thereof, shall be a condition of any permit which is required for construction or use of such development.

(h) When the local drainage fee applicable to any parcel of land has been paid pursuant to this article, or shall have been paid through assessment in a specific assessment proceeding, and the use of such parcel of land is changed to a use which, under the then-current fee schedule, requires a higher local drainage fee, then such parcel of land shall be subject to payment of an additional fee which shall be the fee applicable to such parcel of

land in its changed use under the fee schedule in effect at the time the additional fee is payable less the total of any credits allowed under Section 13-1306. (Am. Ord. 79-178, § 18, eff. 12-7-79; Am. Ord. 84-122, § 1, eff. 9-28-84).

SEC. 12-1919. CREDITS, REIMBURSEMENTS FOR FEES AND FACILITIES PREVIOUSLY PAID AND INSTALLED. CONDITIONS.

(a) In the computation of the local drainage fee payable because of the development or division of any parcel of land, a credit shall be allowed for planned local drainage facilities installed with respect to such parcel. Such credits for the actual cash expenditures for the construction of local drainage facilities constructed and still in existence and use in any street, alley, or public easement and not constructed by special assessment proceeding shall be allowed, subject to the following conditions and limitations:

(1) Facilities considered for such credits shall have been constructed in conformance with the standards of the city or the District in effect when such facilities were constructed.

(2) The Manager shall certify that such facilities are in conformance with, or beneficial for use in connection with, the planned local drainage facilities installed or to be installed in the local drainage area.

(3) The credit allowed shall not exceed the cost of such facilities, as determined by the Manager from actual cost records or by applying estimates of construction costs prevailing at the time such facilities were constructed, provided that no credit shall be allowed because of public easements, the dedication of which may have been required by the District or city in conjunction with development or divisions as defined in this article.

(4) The facilities shall have been constructed and paid for with respect to the parcel for which credit is claimed and are located in or will serve the planned local drainage area within which is located the parcel for which credit is claimed.

(5) Proof to the satisfaction of the District's Board of Directors shall be made by the person claiming such credit hereunder of the amount of the actual cash expenditures for which credit is claimed.

(6) The city or District shall have acquired ownership of the facilities without cost.

(7) When the facilities for which credit is claimed benefit more than one parcel and only a portion of the total allowable credit is claimed, the District may, in the absence of an agreement among the owners of the subject parcels eligible for such credit, estimate the total cost of the facilities at the time of construction and apportion the total credit allowable for such facilities among the benefiting parcels in a manner that the District in its sole discretion shall deem equitable.

(8) Except in the case of public agencies, in the event the actual cash expenditures, as determined by the Manager in paragraph (3) of this subsection (a), exceed the total local

drainage fee payable because of the development or division of any parcel of land, District shall contract with the developer or divider to reimburse such excess credits. Such reimbursement shall be subject to the following conditions and limitations:

(i) Such reimbursements shall be paid to the developer or divider from local drainage fees received pursuant to subsequent development or division of other parcels of land within the local drainage area served by the planned local drainage facilities for which such reimbursement is due.

(ii) In those local drainage areas in which more than one reimbursement contract is concurrently in existence, the order of reimbursement shall be based upon the date of receipt by District of the submittals set forth in paragraph (vii) hereof. Reimbursement shall not be paid pursuant to a later reimbursement contract within a local drainage area until any previous reimbursement contract within said drainage area is fully reimbursed.

(iii) The payment of such reimbursements is to be made semi-annually, in amounts determined by the Manager.

(iv) Should there not be sufficient subsequent drainage fees available, or should the facilities required to provide the level of drainage service prescribed by the local drainage plan not be available, by a date fifteen years from the date of receipt by District of the submittals set forth in Paragraph (vii) hereof, the initial reimbursement period and any remaining obligation of the District to reimburse such excess credit shall expire; provided however, that the expiration of the District's reimbursement obligation shall be extended an additional five years in those cases in which the developer or divider has been reimbursed at least seventy-five per cent of the total excess credit during the initial reimbursement period.

(v) The total reimbursement to be paid pursuant to this subsection (a) shall not exceed ninety-five per cent of the total excess credit; the District shall retain five (5) per cent from each reimbursement as an administrative records and services charge.

(vi) Nothing herein shall preclude the more frequent payment of reimbursement or the partial payment of reimbursements when sufficient funds are determined by the Manager to be available and all other conditions of this subsection (a) have been met.

(vii) The developer or divider shall submit to District, within ninety days of acceptance by District of those facilities for which credit or excess credit is claimed, the reproducible as-built plans of said facilities, the project accounting reflecting final costs of the eligible items and any balance due of the final drainage fee determined pursuant to this chapter. Credits and reimbursement of excess credits shall not be granted pursuant to this section if the submissions required by this paragraph are not made.

(b) Credits for assessment previously levied for planned local drainage facilities by special assessment proceeding shall be allowed, subject to the following conditions and limitations:

(1) Such facilities shall have been constructed in conformance with the standards of the city or the District in effect when such facilities were constructed.

(2) The Manager shall certify that such facilities are in conformance with or beneficial for use in connection with the planned local facilities installed in the local drainage area.

(3) The credit allowed shall be equal to the amount of the assessment and any supplemental assessment levied upon the parcel of land, which was paid in cash or which became security for a bond or bonds issued in the special assessment proceedings. If one assessment was levied for drainage facilities and other improvements in the same proceeding, the Manager shall determine, from the engineer's report in the assessment proceeding, if available, otherwise on cost estimates applied by the Manager, the proportion of the assessment attributable to such facilities, and the amount so determined by him shall be the credit allowed.

(c) If a local drainage fee was paid on all or a portion of the parcel of land pursuant to this article and an additional local drainage fee is payable under any provision of this article, a credit shall be allowed equal to the amount previously paid. (Am. Ord. 79-178, § 19, eff. 12-7-79; Am. Ord. 84-122, § 2, eff. 9-28-84; Am. Ord. 85-112, § 1, eff. 9-13-85).

SEC. 12-1920. APPEALS.

(a) In the case that the amount of any local drainage fee shall be disputed, the city, or District, if designated to collect such fees, shall allow such fee to be paid under protest. Such protested fee shall be reviewed by the Director and the correct amount thereof determined according to law and the city shall be reimbursed by the District for any cost of litigation incurred by the city in connection with such dispute.

(b) The owner of land proposed for development or division, or his representative designated in writing, may appeal any requirement of the District under this article. Any such requirement may be imposed only by a written notice signed by the District's general manager or engineer. Any person appealing shall file a written notice of appeal with the secretary of the District within ten days of the action of the District from which the appeal is taken.

Upon the filing of such an appeal, the appeal board, which for purposes of this article shall be the District Board of Directors, shall set the matter for hearing. The hearing shall be held and a decision rendered by the appeal board within forty days after the date of filing the appeal.

(c) The owner or representative specified in subsection (b) of this section may appeal from the action of the appeal board to the Council. Any such appeal shall be filed in writing, on a form provided by the Director of Public Works, with the City Clerk within ten days after the action of the appeal board from which the appeal is being taken.

After the filing of such an appeal, the Council shall hold a hearing thereon within thirty days after the date of filing of the appeal. Within ten days following the conclusion of the hearing, the Council shall render its decision on the appeal. The decision of the Council shall be final. (Added Ord. 79-178, § 20, eff. 12-7-79; Am. Ord. 83-95, §§ 3, 4, eff. 7-29-83).

SEC. 12-1921. DISTRICT AS AGENCY TO DESIGN AND INSTALL FACILITIES.

The District is hereby designated as the public agency which shall design, acquire, construct, and install, in territory which is within the District, the planned local drainage facilities specified in the local drainage plan, other than street facilities. (Am. Ord. 79-178, § 21, eff. 12-7-79; formerly § 13-1307).

SEC. 12-1922. TRANSFER OF FUNDS TO DISTRICT.

The Controller of the city shall transfer to the District, on the fifteenth day of each month, all local drainage fees collected and deposited in each planned local drainage facilities fund during the preceding calendar month. Where a local drainage area lies wholly or partially outside the boundaries of the District, the city may expend from the planned local drainage facilities fund for such local drainage area such amounts as the Public Works Director of the city shall require for the design, acquisition, construction or installation of planned local drainage facilities within the portion of such local drainage area outside the District in accordance with the local drainage plan. For the purposes of this section, the Controller shall withhold from transfer to the District all or a part of the funds in the planned local drainage facilities fund of any such local drainage area provided, that upon annexation to the District of the territory comprising any such local drainage area, and after the city has been reimbursed for all such expenditures therein, the Controller shall transfer to the District under the same conditions as transfers authorized by this section, all monies remaining in such planned local drainage facilities fund. The city shall concurrently transfer to the District fee title to all facilities constructed by the city from drainage fees retained by the city pursuant to this section. (Am. Ord. 79-178, § 22, eff. 12-7-79, formerly § 13-1308).

SEC. 12-1923. ADMINISTRATION AND ENFORCEMENT.

Collection of local drainage fees under the provisions of this article shall not be commenced until the city and the district shall have entered into an agreement for administration and enforcement, which shall include, without limitation, the following provisions:

(a) That, in consideration of the levy, collection, and transfer to the District by the city of local drainage fees as provided in this article, the District accepts designation by the city as the public agency having the duty and responsibility to review all developments within planned local drainage areas for compliance with the local drainage plan and to design, acquire, construct and install the planned local drainage facilities specified in such local drainage plan.

(b) That the District shall make all computations of local drainage fees payable pursuant to this article and shall, at the request of any personnel of the city charged with the administration or enforcement of this article, promptly furnish the amount of local drainage fee payable on any parcel of land.

(c) That the city shall submit or shall require the submission to the District of duplicate copies of all subdivision maps, parcel maps, site plans, and other such forms representing development or division proposals submitted to the city for review and approval for which local drainage fees must be calculated.

(d) That the city shall collect or may designate District to collect the local drainage fees payable under this article in the respective amounts as computed by the District.

(e) The District shall establish for each local drainage area a planned local drainage facilities fund into which all funds transferred from the city's fund for such local drainage area shall be deposited, and to expend the funds therein solely for acquisition or construction of planned local drainage facilities within such local drainage area, except that surplus remaining after final completion of such planned local drainage facilities may be applied to maintenance of facilities in reduction of any annual ad valorem assessment for maintenance levied by the District on properties in such local drainage area.

(f) That the District shall keep and maintain accurate records of the local drainage fees paid on each parcel of land in the District adequate to permit expeditious determination of the amount thereof as may be required in the administration of this article.

(g) That, if the District shall order the construction of planned local drainage facilities pursuant to special assessment proceedings, the District shall apply, as a contribution to the amount of the assessment levied upon any parcel of land in the assessment district, the amount of any local drainage fee previously paid for such parcel pursuant to the provisions of this article.

(h) The District shall defend and indemnify and hold the city harmless from any dispute, claim or lawsuit arising out of any requirement for the construction of local drainage facilities or the payment of any local drainage fee or calculation of such fee which the District or city may impose as a condition of approval of any development or final subdivision or parcel map. (Added Ord. 79-178, § 23, eff. 12-7-79, formerly § 13-1309).

ARTICLE 20 MOBILEHOME PARK RENT REVIEW AND STABILIZATION

Sec. 12-2001. Title.
Sec. 12-2002. Findings and Purpose.
Sec. 12-2003. Definitions.
Sec. 12-2004. Applicability.
Sec. 12-2005. Residents' Committee.
Sec. 12-2006. Mobilehome Park Rent Review and Stabilization Commission.
Sec. 12-2007. Base Rent.
Sec. 12-2008. Rent Increase Upon Termination of Tenancy.
Sec. 12-2009. Application for Permitted Rent Increase.
Sec. 12-2010. Residents' Committee Review of and Decision of Rent Increase Application.
Sec. 12-2011. Commission Review of and Decision on Rent Increase Application.
Sec. 12-2012. Just, Fair and Reasonable Rent Increases.
Sec. 12-2013. Automatic Pass-Through of Annual Government Costs.
Sec. 12-2014. Annual Automatic Rent Increase Tied in to the Consumer Price Index for Previous Year.
Sec. 12-2015. Fees Other Than Rent, Utilities and Incidental Charges.
Sec. 12-2016. Civil Remedies.
Sec. 12-2017. Criminal Penalty.
Sec. 12-2018. Severability.

SEC. 12-2001. TITLE.

This article shall be known as the "City of Fresno Mobilehome Park Rent Review and Stabilization Ordinance." (Added Ord. 87-170, § 1, eff. 1-8-88).

SEC. 12-2002. FINDINGS AND PURPOSE.

(a) The Council of the City of Fresno finds as follows:

(1) There are presently thirty mobilehome parks in the City of Fresno. These mobilehome parks represent a unique rental housing situation, different than other rental housing in the city, in that mobilehome park residents make a substantial investment in purchasing their mobilehomes, it is difficult to relocate a mobilehome from one mobilehome park to another due to the expense of such relocation, the risk of damage to the mobilehome and the requirements relating to installation of mobilehomes in mobilehome parks, including permits, landscaping, site preparation and restrictions as to the age, type, and the appearance of the mobilehomes.

(2) Approximately two-thirds of the residents in the mobilehome parks in the city are elderly and receive a fixed income. Also, approximately two-thirds of the residents are unemployed and are in lower income categories according to the guidelines established by the United States Department of Housing and Urban Development. For these residents, there is no economically feasible housing alternative to mobilehome park living.

(3) The vacancy rate in mobilehome parks in the city is sufficiently low to make it difficult for mobilehome park residents to relocate from one mobilehome park to another.

(b) In view of the findings stated in subdivision (a), the city deems it necessary, and it is the purpose of this article, to protect mobilehome park residents from excessive rent increases while at the same time providing mobilehome park owners a level of rent sufficient to provide a just, fair and reasonable return on their investment in mobilehome park property and to cover increased costs of repairs, maintenance, rehabilitation, capital improvements, services, amenities, upkeep and insurance. The city further finds that this article is necessary to preserve public health, welfare and safety. (Added Ord. 87-170, § 1, eff. 1-8-88).

SEC. 12-2003. DEFINITIONS.

For purposes of this article, the following words and phrases shall have the following meanings:

(a) Annual Government Cost" means an amount or equivalent paid or charged to a park owner by a local, state or federal government for municipal utilities, general property taxes, governmental fees, special property assessments, or taxes, fees or charges levied in accordance with XIIIC or XIIID of the California Constitution, within a twelve month period commencing 16 months prior to the date of the submission of the rent increase application.

(b) "Commission" means the City of Fresno Mobilehome Park Rent Review and Stabilization Commission established by this article.

(c) "Capital improvement" means an addition or betterment made to a mobilehome park which consists of more than repair, replacement, or rehabilitation of an existing facility or improvement, which is required to be amortized over its useful life by the income tax laws of the United States, and which has a useful life of five years or more.

(d) "Chair" means the Residents' Committee chairperson as elected under Section 12-1905 of this ordinance.

(e) "Day," when used in the context of time limitation, means working day, excluding Saturdays, Sundays and holidays.

(f) "Director" means the Director of Housing and Neighborhood Revitalization Department of the City of Fresno.

(g) "General Property Tax" means a tax levied by a city or county government on the value of the real property the taxpayer owns on a specific date.

(h) "Governmental Fee" means a charge fixed and levied by a local, state or federal government or governmental agency for the services rendered or for use of a privilege under the control of a government or governmental agency, such as a permit or license fee.

(i) "Mobilehome" means a structure as defined by Section 798.3 of the California Civil Code and any recreational vehicle as defined in Section 799.24 of the California Civil Code that has been in place in any park for a period of nine months or more.

(j) "Mobilehome park" means any area of land in the city where mobilehome spaces or recreational vehicle spaces occupied by a recreational vehicle(s) for a period of nine months or more are rented or held out for rent.

(k) "Mobilehome space" means a site within a mobilehome park intended or used for location or accommodation of a mobilehome or recreational vehicle, the latter for a period of nine months or more, and any accessory structures, appurtenances or equipment attached thereto or used in conjunction therewith.

(l) "Municipal Utility" means any utility (water, sewer, trash/recycling collection, power) service provided to park residents by a municipality. This definition excludes gas and electric services provided by a public utility subject to Public Utilities Code Section 739.5 and utilities supplied privately by park owners.

(m) "Owner" means the owner, lessee or operator of a mobilehome park, or an agent, manager or representative authorized to act on behalf of such owner, lessee or operator in connection with operation or maintenance of the mobilehome park.

(n) "Rehabilitation" means any repair or renovation work performed in a mobilehome park in order to comply with an order or direction of a public agency having jurisdiction, or to repair any damage resulting from earthquake, fire, flooding or other casualty.

(o) "Rent" means the consideration, including without limitation money, benefits, gratuities and security deposits, demanded or received for occupancy or use of a mobilehome space and any services or amenities in connection with such use or occupancy, or for the subletting of a mobilehome space or transfer of a lease of a mobilehome space. "Rent" does not include any amount paid for use of the mobilehome itself or any amounts paid for water, gas, electricity or other utility services that are separately metered and billed directly to the individual mobilehome.

(p) "Resident" means a person entitled to occupy a mobilehome pursuant to ownership thereof, or pursuant to a rental, lease or license arrangement with the owner thereof, and who has a tenancy in the mobilehome park in which the mobilehome is located.

(q) "Special Property Assessment" means an assessment in the nature of a tax levied upon a property according to benefits conferred on that property, such as sewer, water, streets, sidewalks or other public improvements. It differs from a general tax in that it is levied for a specific purpose and in an amount proportional to the direct benefit to that property assessed.

(r) "Tenancy" means the right of a resident to use or occupy a mobilehome space pursuant to a rental, lease or license arrangement.
(Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 89-15, §§ 1—3, eff. 3-3-89; Am. Ord. 89-16, § 1, eff. 3-3-89; Am. Ord. 93-33, §§ 1, 2, eff. 6-4-93; Am. Ord. 98-96, § 1, eff. 1-9-99).

SEC. 12-2004. APPLICABILITY.

This article shall not apply to any mobilehome park which has less than three mobilehome spaces, or to any mobilehome park in which the residents have not elected a Resident's Committee as required by Section 8-1205. (Added Ord. 87-170, § 1, eff. 1-8-88).

SEC. 12-2005. RESIDENT'S COMMITTEE.

(a) As soon as practicable after January 8, 1988, the residents in each mobilehome park shall meet and elect a Residents' Committee. The formation of a Residents' Committee shall not be denied by any resident of the park. Each resident of the mobilehome park shall be given written notice of the date, time and place of the election meeting and shall be given an opportunity to nominate candidates for election to the Residents' Committee. A Residents' Committee shall have three or five members and two or three alternates, as determined by a majority of the residents of the mobilehome park actually voting at such meeting. Only residents of the particular mobilehome park may be elected to the Residents' Committee for that mobilehome park. Each occupied mobilehome space shall be entitled to one vote for each member of the Residents' Committee for that mobilehome park. The three or five nominees and alternates, as applicable, who receive the greatest number of votes shall be the members of the Residents' Committee; provided however, that at all times a majority of the members of the Residents' Committee shall be residents affected by this ordinance. Within sixty days after the resignation, death or expiration of term of the last remaining alternate of the Residents' Committee, the residents of the mobilehome park shall meet and elect a new member or alternate in the manner provided above. The nominee who receives the greatest number of votes shall be the new member or alternate. The park manager, assistant manager and any resident employee of the owner shall be ineligible to serve on the Residents' Committee or vote in any election as provided herein or in Section 12-2010 of this code.

(b) Each Residents' Committee shall notify the Director of the names and addresses of its initial members within fifteen days after their elections, and shall promptly notify the Director of any change in such information.

(c) Each Residents' Committee shall establish rules and regulations for the conduct of its business, including length of term of its members; appointment of officers; procedures for reviewing, voting on and giving decisions on rent increase applications; and the times for regular meetings, if any in addition to those meetings required by this article. Such rules and regulations shall be consistent with this article and all other applicable laws, ordinances and regulations; shall enable the Residents' Committee to carry out the purposes of this article as stated in subdivision (b) of Section 12-2002; shall include provisions that will ensure, to the greatest extent practicable, that all residents affected by a proposed rent increase will have a reasonable opportunity to participate in voting on such rent increase as provided in subdivision (b) of Section 12-2010; and shall provide that such voting on rent increases shall be by secret ballot. Each Residents' Committee shall provide the Director with a copy of its rules and regulations and all amendments thereto.

(d) A Residents' Committee shall have the following duties and powers:

(1) Review and take action on applications for rent increases as provided in Section 12-2010.

(2) Subject to Section 798.51 of the California Civil Code, review and negotiate with the owner on any matter that may directly or indirectly affect the amount of rent charged to any resident of the mobilehome park. A request by the owner or an affected resident to consider such matter or matters must be submitted in writing to the Residents' Committee. The request must identify in reasonable detail each matter to be considered and state how such matter will affect the rent. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 88-7, § 1, eff. 4-1-88; Am. Ord. 89-17, § 1, eff. 3-3-89; Am. Ord. 98-96, § 1, eff. 1-9-99).

SEC. 12-2006. MOBILEHOME PARK RENT REVIEW AND STABILIZATION COMMISSION.

(a) The City of Fresno Mobilehome Park Rent Review and Stabilization Commission is hereby established. The commission shall consist of five regular members and seven alternate members. An alternate member shall serve on the commission during the absence of a members of the Commission belonging to the same background group as the alternate. All appointments to the Commission shall be made as provided in Section 902 of the City Charter. Commission members shall be appointed as follows:

(1) One regular member and two alternate members shall be mobilehome park residents and shall be appointed by the mayor from a list of nominees submitted on behalf of mobilehome park residents. The Residents' Committee for each mobilehome park in the city shall be entitled to submit one nominee.

(2) One regular member and two alternate members shall be mobilehome park owners and shall be appointed by the mayor from a list of nominees of mobilehome park owners. Each owner of a mobilehome park in the city shall be entitled to submit one nominee.

(3) Three regular members and three alternate members shall be at-large members who are neither mobilehome park residents nor owners and shall be appointed by the mayor and approved by majority vote of the Council.

No regular member or alternate member who is a resident shall participate in any deliberations or decisions on a matter affecting the mobilehome park in which that member has a tenancy. No regular member or alternate member shall participate in any deliberations or decisions on a matter affecting a mobilehome park which that member owns or in which that member is employed or has a financial interest as defined in Section 87103 of the California Government Code.

(b) Three members of the Commission in attendance shall constitute a quorum for the purpose of conducting a hearing or meeting, provided that all three members shall be at-large members. A majority of affirmative votes by the members present and voting shall be required for any ruling or decision.

(c) The Commission shall establish rules and regulations for the conduct of its business. Such rules and regulations shall be consistent with this article and all other applicable laws and regulations, and shall enable the Commission to carry out the purposes of this article as stated in subdivision (b) of Section 12-2002. Such rules and regulations shall include a schedule for hearing rent increase applications as provided in Section 12-2011. The schedule shall specify the time when the annual rent increase application for each mobilehome park in the city shall be submitted and heard. The schedule may be modified by the Commission from time to time as the Commission deems necessary to insure efficient processing of rent increase applications.

(d) The Commission shall have the following powers and duties:

(1) To meet from time to time as specified in the Commission's rules and regulations as necessary to discharge the Commission's duties under this article. All meetings of the Commission shall be subject to the Ralph M. Brown Act (chapter 9 of part 1 of division 2 of title 5, commencing with Section 54950, of the California Government Code).

(2) To hear rent increase applications and determine whether to approve or disapprove a rent increase as provided in Section 12-2011.

(3) To make to the Council such recommendations and reports as it deems appropriate, or as the Council requests, concerning implementation and enforcement of this article. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 88-109, § 1, eff. 9-23-88; Am. Ord. 89-18, § 1, eff. 3-3-89; Am. Ord. 93-33, § 3, eff. 6-24-93; Am. Ord. 2000-63, § 1, eff. 10-12-00).

SEC. 12-2007. BASE RENT.

Except as provided in this article, no owner shall demand, accept or retain rent for a mobilehome space exceeding the rent in effect for that mobilehome space on December 1, 1987. If a mobilehome space is not rented on December 1, 1987, no owner shall demand, accept or retain rent for that mobilehome space exceeding the rent first charged for the mobilehome space after December 1, 1987. If a mobilehome space was rented as of December 1, 1987, under a lease or rental agreement having a term in excess of twelve months, and if such lease or rental agreement is not extended and a new rental agreement meeting the criteria of Section 798.17 of the Civil Code is not entered into, no owner shall demand, accept or retain rent for that mobilehome space exceeding the last rent charged under such lease or rental agreement. (Added Ord. 87-170, § 1, eff. 1-8-88).

SEC. 12-2008. RENT INCREASES UPON TERMINATION OF TENANCY.

(a) Notwithstanding section 12-2007 or any other provision of this article, if tenancy is terminated voluntarily by a resident, or in any other lawful manner, the owner may increase the rent for such mobilehome space in an amount not to exceed 10 percent of the previous rent to any amount upon re-rental or re-lease of the mobilehome space except as provided for in this ordinance.

(b) In the event of a mobilehome space vacancy, no owner shall mandate that new prospective tenants be required to enter into leases of more than 12 months as a condition of tenancy. In negotiating lease terms with such prospective tenants and/or residents, park owners shall comply with California Civil Code Section 798.18. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 93-33, § 4, eff. 6-4-93; Am. Ord. 94-129, § 1, eff. 1-20-95).

SEC. 12-2009. APPLICATION FOR PERMITTED RENT INCREASE.

(a) If an owner wishes to increase rent for any mobilehome space more than the applicable base rent specified in Section 12-2007 the owner shall submit a rent increase application to the Chair of the affected Mobilehome Park Residents' Committee. The rent increase application shall be submitted during the time specified for that particular mobilehome park in the schedule established by the Commission pursuant to subdivision (c) of Section 12-2006. The rent for a mobilehome space may not be increased more than once in any twelve-month period.

(b) A rent increase application shall be submitted on forms prescribed by the Director and shall contain at least the following information:

(1) The address of the mobilehome park;

(2) The space number of each mobilehome park space for which a rent increase is requested;

(3) The amount of the requested rent increase, for each affected mobilehome space stated in dollars and cents;

(4) The facts supporting the requested rent increase, including all supporting documentation.

The owner shall include in a single rent increase application all rent increases desired for a particular mobilehome park. The owner shall sign the rent increase application under penalty of perjury. A copy of said application shall be submitted to the Director.

(c) Within five days after receipt of a rent increase application, the Chair shall determine if the application is complete pursuant to subsection (b) above and shall notify the owner of any additional information or documents required to make the application complete. The owner shall submit such additional information within ten days after notice from the Chair.

(d) Within five days after receipt of complete rent increase application, the chair shall give written notice of the application to the residents of the mobilehome spaces specified in the application and the Resident's Committee of the affected mobilehome park. These notices shall be in addition to the ninety-day notice the owner is required to give pursuant to Section 798.30 of the California Civil Code and any other notice required by law. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 93-33, § 5, eff. 6-4-93; Am. Ord. 93-51, § 1, eff. 9-24-93; Am. Ord. 96-12, § 2, eff. 3-22-96).

SEC. 12-2010. RESIDENTS' COMMITTEE REVIEW OF AND DECISION OF RENT INCREASE APPLICATION.

(a) Upon receipt of notice of the rent increase application from the owner, the Residents' Committee and the owner shall set a mutually agreeable date to meet and attempt to negotiate a mutually acceptable rent increase. The date of such meeting shall not be later than ten days after the date of receipt of the notice from the owner. The meeting may be continued as mutually agreed by the owner and the Residents' Committee. The owner shall deliver to the Residents' Committee four days prior to such meeting any additional information requested by the Residents' Committee which is relevant to the requested rent increase.

(b) Not later than five days after the conclusion of the meeting with the owner, the Residents' Committee shall (1) meet at a reasonably convenient time and place with the residents of all mobilehome spaces identified in the rent increase application, (2) obtain the votes of such residents, by written secret ballot, to accept or reject the rent increase, and (3) notify the owner in writing of the decision of the residents. The rent increase submitted to the residents for a vote shall be in the amount agreed to by the owner and the Residents' Committee pursuant to subdivision (a) or, if the owner and the Residents' Committee were unable to agree, the amount requested by the owner in the rent increase application. The rent increase shall be deemed accepted unless it is rejected by the votes of at least fifty-one percent of the affected residents actually voting on the rent increase, provided the residents of at least thirty percent of the mobilehome spaces identified in the rent increase application participate in such voting.

(1) If the affected residents accept the rent increase, the owner shall so notify the Director and all proceedings on the rent increase application shall cease. The rent increase shall take effect on the first day of the following calendar month, provided the owner has complied with Section 798.30 of the California Civil Code.

(2) If the affected residents reject the rent increase, the owner may within 60 days of the vote notify the Director of such rejection and request proceedings before the Commission pursuant to Section 12-2011. The notice and request shall be in writing. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 88-37, § 2, eff. 4-1-88; Am. Ord. 89-20, § 1, eff. 3-3-89; Am. Ord. 93-33, § 6, eff. 6-4-93).

SEC. 12-2011. COMMISSION REVIEW OF AND DECISION ON RENT INCREASE APPLICATION.

(a) At the time the owner requests proceedings before the Commission as provided in paragraph (2) of subsection (b) of Section 12-2010, the owner shall also submit a fee in an amount specified in the Master Fee Resolution. The fee shall be used to pay all the costs of the city and the Commission incurred in conducting proceedings on the rent increase application pursuant to this section, including without limitation city staff time, noticing and postage. If the amount of the fee exceeds such costs, the balance shall be refunded to the owner within thirty days after completion of the Commission's proceedings. If the

Commission approves a rent increase that is equal to or greater than the rent increase requested by the owner in the rent increase application, the residents of the mobilehome park shall reimburse the owner the amount of the fee, less any amount refunded by the city, provided the owner has furnished to the Residents' Committee all relevant and pertinent documents requested of the owner by the Committee prior to their rent negotiations as provided in subsection (a) of Section 12-2010 of this Code. Unless the owner and the Residents' Committee agree otherwise, the reimbursement shall be paid in equal installments with the rent payments for the six-month period following completion of the Commission's proceedings and shall be divided equally among the residents of the mobilehome spaces affected by the rent increase. If the Commission approves a rent increase that is less than the rent increase requested by the owner in the rent increase application, the owner shall not be entitled to reimbursement of the fee from any and all residents of the park.

(b) Except as provided in subdivision (a), the owner and the residents shall each bear their own costs incurred in the proceedings on the rent increase application, including but not limited to attorney's fees. The cost of preparing a stereographic record shall be paid by the party or parties requesting such record.

(c) Upon receipt of the owner's request for proceedings before the Commission, and receipt of the fee specified in subdivision (a), the Director shall set a hearing on the owner's rent increase application before the Commission. The hearing shall be set for a date no later than thirty days after the receipt of the owners request and payment of the fee. At least ten days prior to the date set for the hearing, the Director shall give notice of the time, date and place of hearing, by United States mail, to the owner, the residents of each mobilehome space specified in the rent increase application, and the Residents' Committee.

(d) At the hearing, the owner and the affected residents may offer any testimony, documents, written declarations or other evidence relevant to the proposed rent increase. Any documentary evidence, defined as any written document including but not limited to a summary of oral evidence, to be offered at the Commission hearing shall be served on the Director and the opposing party not less than ten days before the date of the Commission hearing. Rules for conducting the hearing shall be prescribed in the Commission's rules and regulations. Formal rules of evidence shall not apply in the proceedings. If a party to the proceedings fails to appear, the Commission may nevertheless hear testimony, review evidence and make decisions as if such party had been present.

(e) Not later than ten days after the close of the hearing, the Commission shall make its decision on the rent increase application. The decision shall approve the amount of rent increase, if any, the Commission determines to be just, fair, and reasonable according to the factors set forth in Section 20-2012, and shall state the effective date of the rent increase. The effective date shall be subject to the owner's compliance with Section 798.30 of the California Civil Code. The Director shall give written notice of the decision, by United States mail, to the owner, the residents of each mobilehome space specified in the rent increase application, and the Residents' Committee. The decision of the Commission is final.

(f) The time within the Commission shall conduct a hearing as provided in subdivision (c) may be extended twice by the Commission for periods not to exceed thirty days each if the Commission provides an interim rent increase for the mobilehome spaces specified in the rent increase application. The interim rent increase shall be in an amount which the Commission determines to be clearly warranted under the factors set forth in Section 12-2012, based on the acts stated in the rent increase application, documents or written statements filed with the Director or the Commission by the affected residents or the owner, and any other evidence presented to the Commission. An interim rent increase shall expire on (1) the last day of the month in which the Commission makes a decision denying a rent increase, or (2) 12:00 midnight on the day prior to the effective date of the rent increase approved by the Commission's decision. If the rent increase approved in the Commission's decision exceeds the interim rent increase, any amount undercollected shall be paid to the owner as provided in the Commission's decision. If the rent increase approved in the Commission's decision is less than the interim rent increase, or if the Commission denies a rent increase, any amount overpaid shall be reimbursed to the affected residents as provided in the Commission's decision. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 89-21, § 1, eff. 3-3-89; Am. Ord. 89-22, § 1, eff. 3-3-89; Am. Ord. 93-33, § 8, eff. 6-4-93).

SEC. 12-2012. JUST, FAIR AND REASONABLE RENT INCREASES.

In determining the amount of rent increase that is just, fair and reasonable, all relevant factors shall be considered, including but not limited to the following:

(a) Percentage changes in the Consumer Price Index for Urban Wage Earners and Clerical Workers for Western Cities West, published by the United States Bureau of Labor Statistics.

(b) Any lawfully established state or federal government wage and price guidelines.

(c) Rent lawfully charged for comparable mobilehome spaces in comparable mobilehome parks.

(d) The length of time since the last rent increase for the mobilehome spaces specified in the rent increase application.

(e) The completion of any capital improvements or rehabilitation work related to or benefiting the mobilehome spaces specified in the rent increase application and the cost of such improvements or work, including but not limited to costs for materials, labor, construction interest, permit fees and other items.

(f) Changes in rent paid by the owner for lease of the land on which the mobilehome park is located.

(g) Changes in reasonable operating and maintenance expenses.

(h) The need for repairs caused by circumstances other than ordinary wear and tear.

(i) The amount and quality of services and amenities provided by the owner to the affected residents.

(j) Any existing lease lawfully entered into between the owner and an affected resident.

(k) A just and reasonable rate of return on the owner's investment in the mobilehome park. A just and reasonable rate of return shall be one high enough to encourage good management, reward efficiency, discourage flight of capital from the mobilehome park and enable the owner to maintain its credit, shall be commensurate with returns in enterprises comparable to the subject mobilehome park, but shall not be so high as to defeat the purpose of this article to protect residents against excessive rent increases. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 89-19, § 1, eff. 3-3-89; Am. Ord. 93-33, § 9, eff. 6-4-93; Am. Ord. 94-129, § 2, eff. 1-20-95).

SEC. 12-2013. AUTOMATIC PASS-THROUGH OF ANNUAL GOVERNMENT COSTS.

(a) Under this section, in addition to any other rent increase allowed by this ordinance, a property owner may increase mobilehome space rent once annually for the following annual government costs incurred by the park owner in the operation and maintenance of the park:

(1) Municipal Utilities.

(2) General Property Taxes.

(3) Other governmental fees including regulatory fees, processing fees, licenses and permits.

(4) Special Property Assessments.

(5) Any taxes, assessments, fees or charges levied in accordance with article XIIIC and article XIIID of the California Constitution.

Owners shall limit rent increases under this section to those increased costs which exceed 5 percent of the previous 12 months annual government costs. The previous 12 months government costs shall be calculated commencing 16 months prior to the date of the projected rent increase date. When calculating this increase, each Annual Government Cost specified above shall be addressed separately and not collectively when determining whether there has been a 5% or greater increase. This rent increase shall reflect changes no more than once annually. No owner may pass-through capital improvement costs, whether or not government mandated. The time for requesting and allocating such an increase under this section shall be at the same time an application for rent increase is submitted pursuant to Section 12-2009. At the time of submitting a rent increase application, the park owner shall provide all documentation supporting the annual government cost increase provided for in this section.

(b) Except as expressly provided in this section, this rent increase is not subject to the rent increase provisions of this ordinance. Neither the Resident Committee, nor residents may vote on or otherwise reject a rent increase requested pursuant to this section. Except as

expressly provided in this section, neither the Residents Committee, nor the residents may request review by the Commission of this increase. The Residents Committee may object to the increase only on the following grounds:

(1) The rent increase is not an annual government cost as defined and limited in this ordinance; or,

(2) The owner has not provided documentation supporting this rent increase; or

(3) The amount of the increase is not properly calculated. Said objection must be made in writing, to the owner, with copy to the Director, within five (5) days of receipt of the rent increase application. The Residents Committee and Property owner shall then attempt to resolve the objection if the objection cannot be resolved, either party may submit the objection to the Director within twenty-five (25) days of submission by the owner of the application for rent increase to the Residents' Committee. The Director shall have ten (10) days of receipt of the objection to rule on the objection if either party is not satisfied with the decision of the Director, the objection may be submitted to the Commission within twenty-five (25) days of the decision of the Director, for final determination. Request for proceedings before the Commission shall be made pursuant to subsection (c) of this Section.

(c) The party requesting Commission review shall notify the Director, in writing, of the request. At the time of requesting review, the requesting party shall submit a fee in the amount specified in the Master Fee Resolution. The fee shall be used to pay all the costs of the city and the Commission incurred in conducting proceedings on the rent increase objection pursuant to this section. If the amount of the fee exceeds such costs, the balance shall be refunded to the requesting party within thirty (30) days after completion of the Commission review. If the Commission finds in favor of the requesting party, the non-requesting party shall reimburse the requesting party the fee paid pursuant to this section, less any amount refunded by the city. Except as provided in this section, each Party shall bear their own costs incurred in the proceedings, including but not limited to attorney's fees. Upon receipt of the request for hearing, the Commission shall proceed according to the schedule established pursuant to Section 12-2011(c),(d),(e) and (f). The Commission shall limit its review of the annual government cost rent increase to the validity of the objection stated by the Residents Committee and, if applicable, shall state an effective date of the annual government cost rent increase. The rent increase shall be subject to the owners compliance with Civil Code Section 798.30. The Commission shall not determine the validity of the objection based on whether the annual government cost rent increase requested pursuant to this section is just, fair or reasonable. If the owner has requested a Commission hearing on any other rent increase, the hearings shall be coordinated in an effort to reduce the consumption of time and resources. In such case, the cost of the hearing shall be proportioned accordingly.

(d) The notice and review periods provided in this section shall be in addition to the ninety (90) day notice the owner is required to give pursuant to Civil Code Section 798.30 or any other notice period required by law. (Added Ord. 93-33, § 9, eff. 6-4-93; Am. Ord. 94-129, § 3, 1-20-95; Am. Ord. 98-96, § 3, eff. 1-9-99).

SEC. 12-2014. ANNUAL AUTOMATIC RENT INCREASE TIED IN TO THE CONSUMER PRICE INDEX FOR PREVIOUS YEAR.

In addition to any other rent increase allowed by this ordinance, an owner may increase mobilehome space rents once annually by a factor not to exceed seventy-five (75) percent of the previous year's Consumer Price Index for the period between November 1 and October 31. Said Consumer Price Index shall be as defined by Section 12-2012(a) of this Ordinance. Said Consumer Price Index shall be computed on a Base Rent. The Base Rent shall be established on the average rent of spaces affected by this Ordinance as of December of each year prior to the rent increase date. Owners shall provide documentation for average rent increase and Base Rents to support any rent increase under this provision of the Ordinance. (Added Ord. 94-129, § 4, eff. 1-20-95).

SEC. 12-2015. FEES OTHER THAN RENT, UTILITIES AND INCIDENTAL CHARGES.

A resident whose tenancy is not regulated by the Mobilehome Residency Law (chapter 2.5 of title II of part 2 of the California Civil Code) shall not be charged a fee for anything other than rent, utilities and incidental reasonable charges for services actually rendered. (Added Ord. 87-170, § 1, eff. 1-8-88).

SEC. 12-2016. CIVIL REMEDIES.

(a) A resident may refuse to pay any rent in excess of the maximum rent permitted by this article. The fact that the unpaid rent is in excess of such maximum rent shall be a defense in any action brought to recover possession of the mobilehome space to the extent such action is based on nonpayment of rent, or in any action brought to collect the excessive rent.

(b) Any owner who accepts, receives or retains rent in excess of the maximum rent permitted by this article shall be liable in a civil action to the resident from whom the excessive rent was accepted, received or retained for the amount such rent exceeded the maximum rent, plus reasonable attorneys' fees and court costs. Upon proof by the resident that the owner's acceptance, receipt or retention of the excessive rent was in bad faith, the owner shall be further liable to the resident in such civil action for damages equal to three times the amount by which such rent exceeded the maximum rent or $500.00, whichever is greater.

(c) The defenses, actions and remedies provided in this section are in addition to any other defenses, actions or remedies available in law or equity.

(d) The City Attorney is authorized to enforce, by judicial action or other lawful means, compliance with this article.

(e) In any action commenced pursuant to this section, the prevailing party shall be awarded court costs and reasonable attorneys' fees, in addition to any other relief granted or other costs awarded. (Added Ord. 87-170, § 1, eff. 1-8-88; Am. Ord. 91-11, § 1, eff. 3-1-91).

SEC. 12-2017. CRIMINAL PENALTY.

Any owner who willfully accepts, receives or retains rent in excess of the maximum rent permitted by this article shall be guilty of a misdemeanor and shall be punishable as provided in Section 1-105 of this Code. (Added Ord. 87-170, § 1, eff. 1-8-88).

SEC. 12-2018. SEVERABILITY.

the provisions of this article are severable. If any provision of this article is held to be unconstitutional or otherwise invalid by a court of competent jurisdiction, such invalidity shall not affect any other provisions of this article. (Added Ord. 87-170, § 1, eff. 1-8-88).

ARTICLE 21 CULTIVATION OF MARIJUANA*

Sec. 12-2101. Purpose and intent.
Sec. 12-2102. Relationship to other laws.
Sec. 12-2103. Definitions.
Sec. 12-2104. Prohibition of marijuana cultivation.
Sec. 12-2105. Violation and penalty.
Sec. 12-2106. Severability.
Sec. 12-2107. Applicability.

SEC. 12-2101. PURPOSE AND INTENT.

The purpose of this article is to prohibit the cultivation of marijuana in order to protect the public peace, health, safety and general welfare of the citizens of the city.
(Added Ord. 2014-20, § 2, eff. 5-9-14).

SEC. 12-2102. RELATIONSHIP TO OTHER LAWS.

This article is not intended to, nor shall it be construed or given effect in a manner that causes it to apply to, any activity that is regulated by federal or state law to the extent that application of this article would conflict with such law or would unduly interfere with the achievement of federal or state regulatory purposes. This article shall be interpreted to be compatible and consistent with federal, county, and state enactments and in furtherance of the public purposes which those enactments express. It is the intention that the provisions of this article will supersede any other provisions of this code found to be in conflict.
(Added Ord. 2014-20, § 2, eff. 5-9-14).

SEC. 12-2103. DEFINITIONS.

For purposes of this article, unless the particular provision or the context otherwise clearly requires, the definitions in this section shall govern the construction, meaning and application of words and phrases used in this article:

(a) "Cultivation" means the planting, growing, harvesting, drying, processing, or storage of one or more marijuana plants or any part thereof in any location.

(b) "Marijuana" means all parts of the plant Cannabis sativa L., whether growing or not, and includes medical marijuana.

(c) "Medical marijuana" means marijuana used for medical purposes in accordance with California Health and Safety Code section 11362.5.

(d) "Collective, cooperative or dispensary" means a collective, cooperative, dispensary, operator, establishment, provider, association or similar entity that cultivates,

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***Editor's note—**Ord. 2014-20, §§ 1, 2, effective May 9, 2014, amended the Code by repealing former Art. 21, §§ 12-2101—12-2104, and adding a new Art. 21. Former Art. 21 pertained to the outdoor cultivation of marijuana, and derived from Ord. 2012-13, effective August 3, 2012.

distributes, delivers or processes marijuana for medical purposes relating to a qualified patient or primary caregiver, pursuant to the Compassionate Use Act and Medical Marijuana Program Act.

(e) "Primary caregiver" means a primary caregiver as defined in Health and Safety Code section 11362.7.

(f) "Qualified patient" means a qualified patient as defined in Health and Safety Code section 11362.7.

(Added Ord. 2014-20, § 2, eff. 5-9-14).

SEC. 12-2104. PROHIBITION OF MARIJUANA CULTIVATION.

Marijuana cultivation by any person is prohibited in all zone districts within the city. Therefore, it is unlawful for any person, corporation, or other entity owning, leasing, occupying, directly controlling or having charge of any property in this city to keep, maintain or deposit on said property any marijuana cultivation, including primary caregivers and qualified patients, collectives, cooperatives or dispensaries.

This prohibition does not apply to any person that has a city commercial cannabis business permit for cultivation as described in Article 33 of Chapter 9 of this Code, as may be amended, or for up to 6 plants grown indoors, per residence, as permitted by state law.
(Added Ord. 2014-20, § 2, eff. 5-9-14; Am. Ord. 2020-039, § 1, eff. 10-25-20; Am. Ord. 2025-022, § 1, eff. 7-18-25).

SEC. 12-2105. VIOLATION AND PENALTY.

(a) A violation of this article shall be prosecuted by the City Attorney through the civil enforcement process, including injunctive relief, as set forth in Section 1-308 of this code. Each day a person is in violation of this article shall be considered a separate violation.

(b) The administrative citation penalty for each and every marijuana plant cultivated in violation of this article shall be One Thousand Dollars ($1,000) per plant, plus One Hundred Dollars ($100) per plant per day the plant remains unabated past the abatement deadline set forth in the administrative citation.

(c) Any property upon which a violation of this article is found shall be subject to immediate abatement by the city.

(d) In addition to any administrative penalty assessed for violation of this article, any person found in violation of this article will be charged abatement, actual, administrative and enforcement costs as defined in Section 1-503, calculated to recover the total costs incurred by the city in enforcing this article.
(Added Ord. 2014-20, § 2, eff. 5-9-14).

SEC. 12-2106. SEVERABILITY.

If any section, sentence, clause or phrase of this article is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall

not affect the validity of the remaining portion of this article. The Council hereby declares that it would have passed this ordinance and adopted this article and each section, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases be declared invalid or unconstitutional.
(Added Ord. 2014-20, § 2, eff. 5-9-14).

SEC. 12-2107. APPLICABILITY.

All of the provisions of this article shall be immediately enforceable as to the outdoor cultivation of marijuana. Any person legally cultivating marijuana indoors prior to the effective date of this article shall have one hundred twenty (120) days from the effective date of this article to harvest their crop of marijuana. After the one hundred twenty day (120) grace period, all the provisions of this article shall be immediately enforceable.
(Added Ord. 2014-20, § 2, eff. 5-9-14).

ARTICLE 22 AT-RISK DEVELOPMENT

Sec. 12-2201. At Risk Defined.
Sec. 12-2202. Authority to Issue At-Risk Permits.
Sec. 12-2203. Conditions of Issuance.
Sec. 12-2204. Holder to Proceed at Its Own Risk.
Sec. 12-2205. Rules and Regulations.
Sec. 12-2206. One Year Review.

SEC. 12-2201. AT RISK DEFINED.

"At-Risk" shall be defined as construction up to and including wall and roof framing.
(Added Ord. 2022-008, § 1, eff. 6-6-22).

Editor's note—Ord. 2022-008, § 1, eff. June 6, 2022, amended the Code by renumbering former §§ 12-2201—12-2205 as new §§ 12-2202—12-2206, and adding a new § 12-2201.

SEC. 12-2202. AUTHORITY TO ISSUE AT-RISK PERMITS.

For residential, commercial, and industrial projects, after receipt of "first round" comments regarding any infrastructure improvement plans (including grading plans), and a finding the infrastructure improvement plans are substantially acceptable, or submittal of a completed application for a building permit, the appropriate official, and/or building official, is authorized to issue an "at-risk" permit for grading, sewer, water, dry utilities, buildings and structures (including model and production homes) before the relevant construction documents have been finally approved, and before the final map records. For the purpose of this article, a model home shall be a home without an identified buyer constructed for marketing purposes to show the design, structure and appearance of units in a development. A production home is a home without an identified buyer built on speculation that shall not be sold, leased, financed, or offered for sale until a final map records.
(Added Ord. 2018-17, § 1, eff. 8-2-18; Am. Ord. 2022-008, § 1, eff. 6- 6-22).

Note—Former § 12-2201. See editor's note, § 12-2201.

SEC. 12-2203. CONDITIONS OF ISSUANCE.

An applicant must pay required application and inspection fees and charges, and provide evidence of required insurance and compliance with all conditions of third party agencies (including but not limited to Pacific Gas and Electric Company, Fresno Metropolitan Flood Control District, San Joaquin Valley Air Pollution Control District, and similar agencies), all as a condition precedent to issuance of an "at- risk" permit. Up to twenty-five (25) "at-risk" permits for buildings and structures (including model and production homes) may be granted per tract, provided appropriate Fire Department approval is granted. An additional twenty-five "At-Risk" permits may be granted by the Planning and Development Director provided that Fire approval is granted and the respective Final Map for the subdivision is submitted and deemed technically correct by the Public Works Department.

Upon issuance of an At-Risk Permit, applicants shall respond within 30 days to plan review comments through the submittal of revised plans until the At-Risk Permit is converted to a formal permit, or the At-Risk Permit could be revoked. Two additional 30 days extensions may be granted by the Building Official.

(Added Ord. 2018-17, § 1, eff. 8-2-18; Am. Ord. 2022-008, § 1, eff. 6- 6-22).

Note—Former § 12-2202. See editor's note, § 12-2201.

SEC. 12-2204. HOLDER TO PROCEED AT ITS OWN RISK.

The holder of such "at-risk" permit shall proceed at the holder's own risk, including all risk of liability, and without assurance that a notice of acceptance of infrastructure improvements will be recorded, or that a certificate of occupancy for a building or structure will be granted. The holder must receive all necessary inspections during the course of "at-risk" construction. Corrections or modifications in work performed may be required to meet the requirements of the technical codes and final approved plans. Occupancy will not be permitted until all plans are approved, all conditions of approval required for occupancy are met, and the final map, if required for the property, is recorded.

(Added Ord. 2018-17, § 1, eff. 8-2-18; Am. Ord. 2022-008, § 1, eff. 6- 6-22).

Note—Former § 12-2203. See editor's note, § 12-2201.

SEC. 12-2205. RULES AND REGULATIONS.

The Development and Resource Management Department may set forth additional policies and procedures for the issuance of "at-risk" permits consistent with and to carry out the intent of this article. Any additional policy or procedure issued pursuant hereto shall be approved by the Council.

(Added Ord. 2018-17, § 1, eff. 8-2-18; Am. Ord. 2022-008, § 1, eff. 6- 6-22).

Note—Former § 12-2204. See editor's note, § 12-2201.

SEC. 12-2206. ONE YEAR REVIEW.

The operation of this article shall be reviewed by the Council within one (1) year of its effective date. The City Manager shall provide a report to the Council with findings and recommendations.

(Added Ord. 2018-17, § 1, eff. 8-2-18; Am. Ord. 2022-008, § 1, eff. 6- 6-22).

Note—Former § 12-2205. See editor's note, § 12-2201.

ARTICLE 23 RESERVED*

*__Editor's note—__Ord. 2020-054, § 1, effective December 17, 2020, amended the Code by repealing former art. 23, §§ 12-2301—12-2309, in its entirety. Former art. 23 pertained to the Money Back Guarantee/Business Streamlining Act, and derived from Ord. 2019-003, effective March 22, 2019; and Ord. 2020-040, effective October 25, 2020.

CHAPTER 13

SIDEWALKS, STREETS, PARKWAYS, AND UNDERGROUND UTILITY DISTRICTS

Art. 1. General Provisions.
Art. 2. Street Work.
Art. 3. Street Trees and Parkways.
Art. 4. Street Grades.
Art. 5. Telephones in Public Places.
Art. 6. Underground Utility Districts.

ARTICLE 1 GENERAL PROVISIONS

Sec. 13-101. Discharging of Water.
Sec. 13-102. Throwing of Dirt, Filth, Etc.
Sec. 13-103. Throwing of Nails, Glass, Etc.
Sec. 13-104. Throwing Confetti, Etc., On Streets.
Sec. 13-105. Placing Lumber in Streets.
Sec. 13-106. Sidewalk Sweeping Hours.
Sec. 13-107. Railroad Crossing Protection.
Sec. 13-108. Painting Streets or Curbs Prohibited.
Sec. 13-109. Obstructing Public Passageways.
Sec. 13-110. Alley Closures.

SEC. 13-101. DISCHARGING OF WATER.

No person owning or having in his possession or under his control any water pipe or drain shall permit the water therefrom to run across any sidewalk or public street so as to injure the same or obstruct the free travel thereon. (Orig. Ord. 1076).

SEC. 13-102. THROWING OF DIRT, FILTH, ETC.

No person shall throw or deposit, or permit to be thrown or deposited any dirt, paper, filth, sweepings of any store, house, shop or office, or any ashes, shavings, filth water, offal, straw, wood, stones, earth, manure, refuse matter or rubbish of any kind whatsoever, into any street or public place. No person or persons having control of premises from which any of the aforesaid articles shall be or may have been thrown or deposited in any street, or public place shall fail to remove the same therefrom within four hours after receiving knowledge thereof. (Orig. Ord. 1076).

SEC. 13-103. THROWING OF NAILS, GLASS, ETC.

No person shall throw, deposit or place in or upon any street, any nails, tacks, crockery, scrap iron, tin, wire, bottles, glass, thorns or thorny clippings, or thorny branches of trees or bushes, or any other article or thing likely to puncture or injure the tire of any vehicle. (Orig. Ord. 1076).

SEC. 13-104. THROWING CONFETTI, ETC., ON STREETS.

No person shall throw upon any street, or upon any person on any street, any flour, lime, bran, plaster, chalk, cut up paper, paper ribbon, confetti, or other similar substance. (Orig. Ord. 1076).

SEC. 13-105. PLACING LUMBER IN STREETS.

No person shall place or maintain in a public street any lumber, wood, timber, or other article or thing likely to puncture or injure the tire of any vehicle, likely to interfere with street sweeping or cleaning operations, or which hinders or stops the flow of water on or along the street. (Added Ord. 6389, 1964).

SEC. 13-106. SIDEWALK SWEEPING HOURS.

No person shall sweep any sidewalk, stairway, or other opening leading to the street or sidewalk within the business section of the city after the hour of 8:00 o'clock A.M. (Orig. Ord. 1076, Sec. 314).

SEC. 13-107. RAILROAD CROSSING PROTECTION.

Operators of railways within the city limits shall provide and maintain crossing protection as directed by the Public Utilities Commission of the State of California. (Orig. Ord. 1076; Am. Ord. 5311, 1958; Am. Ord. 5395, 1958).

SEC. 13-108. PAINTING STREETS OR CURBS PROHIBITED.

No person shall paint or stain any street, gutter, curb, sidewalk, street furniture or street appurtenances, except, the following:

(1) Any person, properly authorized by the state as to a state highway,

(2) Authorized city personnel and,

(3) Any person authorized by virtue of a resolution of the Council or other provision of this Code; provided, that this section shall not apply to colored materials forming part of the improvement which are installed in or added to the street as a part of the repair or construction thereof and which have been approved by the Council or a duly authorized officer of the city. (Added Ord. 6811, 1966).

SEC. 13-109. OBSTRUCTING PUBLIC PASSAGEWAYS.

No person shall stand or sit in or upon any street so as in any manner to hinder or obstruct the passage therein of persons passing along the same, or so as in any manner to annoy or molest persons passing along the same, or stand in or at the entrance of any church, hall, theatre, or place of public assemblage so as in any manner to obstruct such entrance. (Added Ord. 67-138, 1968).

SEC. 13-110. ALLEY CLOSURES.

(a) The Council finds and declares all of the following:

(1) It is in the interest of the City of Fresno to restrict vehicular and pedestrian access to alleys when closure of alleys furthers the protection and preservation of the public peace, safety, health, and welfare.

(2) The City of Fresno is experiencing the illegal dumping of items such as trash, solid waste, and discarded tires in alleys.

(3) That illegal conduct in the form of prostitution, drug transactions and similar conduct is being conducted in alleys.

(4) That illegal dumping, prostitution and drug transactions are becoming routine activities within alleys.

(5) The adoption of rules and regulations that the Council seeks to enact in this Section are for the preservation and furtherance of the public peace, safety, health and welfare.

(b) The Director of Public Works, under the supervision and direction of the Chief Administrative Officer or his/her designee, shall be the officer in charge of the function of closing alleys in accordance with this Section and shall prepare rules and regulations defining the procedures and requirements for closing alleys. Whenever a request is made to the Director of Public Works to close an alley, the Director shall determine that the closure of the alley is consistent with the findings, rules and regulations defined within this Section.

(c) The Director of Public Works shall review requests made to close an alley, when at least seventy-five percent (75%) of all adjacent property owners have consented to the closure.

(d) No alley subject to this Ordinance shall be closed for vehicular or pedestrian traffic until appropriate signs giving notice of the restriction are posted at every entrance to the alley.

(e) Any alley closed pursuant to this Section shall continue to provide access to utility vehicles or pedestrian traffic in order that the utility may maintain, operate, replace, remove or renew existing and functioning utility facilities.

(f) The alley closure shall be done in a manner to allow a delivery of freight by commercial vehicles and shall not adversely affect the operation of emergency vehicles or the performance of municipal services.

(g) This Ordinance shall not authorize the restriction of access of certain members of the public to the alley, while permitting others unrestrictive access to the alley.

(h) Any restriction of vehicular or pedestrian traffic authorized pursuant to this Section shall remain in effect for such period of time as specified or determined by the Directory of Public Works.

(Added Ord. 2003-90, § 1, eff. 11-24-03; Am. Ord. 2024-037, § 1, eff. 12-5-24).

ARTICLE 2 STREET WORK

Sec. 13-201. Definitions.
Sec. 13-202. Permits to do Work in City Streets Required.
Sec. 13-203. Application and Fees.
Sec. 13-204. Issuance of Permits.
Sec. 13-205. Surveying and Engineering.
Sec. 13-206. Bonds.
Sec. 13-207. Insurance.
Sec. 13-208. Street Improvements. Dedication.
Sec. 13-209. Street Improvements Waiver. Infill Areas.
Sec. 13-210. Street Improvements Deferral. Infill Area.
Sec. 13-211. Abandonment of Driveway Approaches.
Sec. 13-212. Excavation and Backfill.
Sec. 13-213. Replacement of Surfaces.
Sec. 13-214. Safety.
Sec. 13-215. Inspection.
Sec. 13-216. Deviations.
Sec. 13-217. Duty of Property Owner to Repair Sidewalks.
Sec. 13-218. Duty of Property Owners to Maintain Alleys.
Sec. 13-219. Encroachment in a Public Right-of-Way.
Sec. 13-220. Duty of Property Owner with Respect to Downspouts, Sidewalk Elevators and Similar Installations.
Sec. 13-221. Ditches, Flumes, Conduits, etc.
Sec. 13-222. Cables, Wires, Ropes, Flags, Banners, etc.
Sec. 13-223. Obstructions; Public Nuisances.
Sec. 13-224. Public Nuisances. Penalties.
Sec. 13-225. Failure to do Work. Power of Director. Cost of Work.
Sec. 13-226. Exception from Article.
Sec. 13-227. Obstruction to Visibility at Intersections.
Sec. 13-228. Intersection Visibility, Investigation and Enforcement. Lien.
Sec. 13-229. Charges and Reimbursements.
Sec. 13-230. Grade Separation Structures and Related Facilities.
Sec. 13-231. At-Grade Railroad Crossings and Related Facilities.

SEC. 13-201. DEFINITIONS.

(a) "Asphalt concrete" shall mean a bituminous binder blended with mineral aggregate and produced at a central mixing plant;

(b) "Bituminous surface" shall mean that type of pavement consisting of a mixture of oil and native earth.

(c) "City Engineer" shall mean the City Engineer of the city acting either directly or through authorized agents.

(d) "Concrete" shall mean Portland Cement Concrete as more specifically defined in the State of California standard specifications;

(e) "Director" shall mean the Director of the Public Works Department of the city, acting either directly or through authorized agents;

(f) "Driveway approach" shall mean an area, construction or improvement between the roadway of a public street and private property intended to provide access for vehicles from the roadway of a public street to the private property line including sidewalk, apron section, and slopes and curb return;

(g) "Plant-mixed surfacing" shall mean asphalt concrete used as a pavement;

(h) "Roadway" shall mean that portion of a street right-of-way which lies between curbs or planned curb lines;

(i) "Sidewalk area" shall mean that portion of a street right-of-way which lies between the property line and the outside edge of a gutter or gutter lip, including a driveway approach;

(j) "Standard Specifications" shall mean the standard specifications of the City of Fresno, Department of Public Works, established by the Director of Public Works and adopted by the City Council;

(k) "Street Frontage" shall mean that portion of a street upon which a property abuts;

(l) "Work" shall mean all activity and things in, on, and under public property which affect the public property;

(m) "Travel Lane" shall mean that portion of the roadway consisting generally of twelve feet of permanent pavement for the passage of one lane of traffic in a single direction;

(n) "Shoulder" shall mean a portion of permanently paved roadway consisting of four (4) feet of permanent pavement installed adjacent to a travel lane;

(o) "UGM Street Fund" shall mean a fund established from charges collected pursuant to Section 13-229 of this Code through development in the Urban Growth Management Area;

(p) "Major Street Zone" shall mean a particular zone in the Urban Growth Management Area in which charges and reimbursements are established by the Council for major streets and major street bridges.

(q) "Bridge" shall mean any structure required to be constructed as part of the major street system to traverse a watercourse which would require a pipe conduit with a diameter of greater than thirty-six inches.

(r) "Local Street" shall mean any street which is not a major street.

(s) "Major Street" shall mean an arterial or collector street, an expressway or state highway, designated as such in the circulation element of the General Plan, or as shown on any other plan of streets adopted by the Council, the County or the State. (Rep. and Added Ord. 6667, 1965; Am. Ord. 78-107, § 1, eff. 7-28-78; Am. Ord. 81-55, § 1, eff. 6-12-81; Am. Ord. 82-102, §§ 1, 2, eff. 10-22-82).

SEC. 13-202. PERMITS TO DO WORK IN CITY STREETS REQUIRED.

No person shall make any excavation or dig any trench, or remove or destroy in any way any curb, gutter, sidewalk or street pavement, or alter or tear up the surface, or install any

sidewalk, curb, gutter, driveway approach, drainage well, street or alley pavement, sewer, pipeline, conduit, pole, tank or anything else in or upon any public street, alley, sidewalk or other public place in the city without first securing a permit from the Director and filing the bonds and insurance as hereinafter specified and required; provided that a permit shall not be required for work done under a contract let therefor by the Council; and provided further that a permit shall not be required for public utilities service installations or minor maintenance work in connection therewith, when such installation or work is done on any street prior to the installation of street surfacing. (Rep. and Added Ord. 6667, 1965).

SEC. 13-203. APPLICATION AND FEES.

Any person proposing to make an excavation or do any street work described in Section 13-202 which requires a permit shall file a signed application with the City of Fresno on a form specified by the City. The Council shall establish in the Master Fee Resolution a schedule of fees for filing of applications and engineering, inspection, staking, and other services to be rendered by the City in connection with work to be performed under the terms of this article. Upon the filing of an application to do street work, the applicant shall pay to the city the applicable fees. (Rep. and Added Ord. 6667, 1965; Am. Ord. 80-115, § 112, eff. 8-8-80; Am. Ord. 97-57, § 1, eff. 10-30-97; Am. Ord. 98-19, § 1, eff. 5-22-98).

SEC. 13-204. ISSUANCE OF PERMITS.

(a) A permit for any street work described in Section 13-202 which requires a permit shall be issued under the provisions of this article. Upon the filing of an application, it shall be the duty and responsibility of the Director to examine the application, and in the event the excavation proposed to be made or work proposed to be done under said application is in accordance with the provisions of this article, ordinances of the city and the laws of the State of California applicable thereto, the Director shall approve the application to make the excavation or do the proposed work. In the event it shall appear that the excavation or the work is proposed to be made or done in such a manner that it will not conform to or be in accordance with the provisions of this article, ordinances of the city or the laws of the State of California applicable thereto, then and in that event, it shall be the duty of the Director to refuse to issue a permit for the doing of the work.

(b) When an emergency arises involving an immediate hazard to persons or property, so that any work must be commenced or done before it is possible to obtain the necessary permit as required under this article, the work may be commenced or done without a permit, provided that the application and permit as required by this article be made and obtained not later than the following city working day after commencement of the work.

(c) No application or permit shall be required for the installation of a pole or poles by a public utility corporation, except where a pole is removed from or placed in existing concrete work.

(d) Whenever the Council or the Board of Supervisors, whichever is applicable, has adopted a resolution of intention to construct improvements by special assessments in the city, no

permit for any private work for the construction or installation of the improvements described in the resolution of intention shall thereafter be issued until the hearing of protest has been finally determined in favor of any protestants or the proposed work has been consummated.

(e) Permits for the construction of driveway approaches shall not be issued unless vehicles to be served or serviced can be parked as required by Chapter 12 of this code. Permits for the repair of existing approaches may be issued.

(f) Whenever any work requiring a permit under this article has been commenced without first obtaining the required permit, an inspection of the work already performed shall be conducted to ensure safety and code compliance before a permit may be issued. The Director shall impose and collect the applicable permit fee and a surcharge whether or not a permit is ever issued. The surcharge shall be specified in the Master Fee Schedule. The payment of such surcharge shall not exempt any person from complying with all the provisions of this article or from any other penalty prescribed by law.
(Rep. and Added Ord. 6667, 1965; Am. Ord. 71-24, 1971; Am. Ord. 73-96, § 1, eff. 7-22-73; Am. Ord. 86-132, § 1, eff. 9-12-86; Am. Ord. 2015-27, § 1, eff. 9-28-15).

SEC. 13-205. SURVEYING AND ENGINEERING.

(a) It shall be the duty of the City Engineer to determine and survey and set all lines and grades for all work on all public streets, alleys, easements, and public property within the city limits, excepting improvements to be constructed by the Fresno Metropolitan Flood Control District or a public utility subject to the authority of the Public Utilities Commission of the State of California. Lines and grades determined or approved by the City Engineer in the development of subdivisions, parcel map divisions or large industrial or commercial developments may be surveyed and set by licensed civil engineers or land surveyors. The civil engineer or land surveyor approved by the City Engineer to establish lines and grades shall notify the City Engineer twenty-four hours in advance of performing any field work to assure permits have been issued and an inspector assigned to the work.

(b) The City Engineer shall keep records of all such work done by him, which records shall be and remain the property of the city and shall at all times be open to public inspection. Requests for lines and grades must be given at least twenty-four hours before the work is commenced.

(c) The Public Works Department may prepare engineering plans or specifications for any work as set forth in this article.
(Rep. and Added Ord. 6667, 1965; Am. Ord. 68-121, 1968).

SEC. 13-206. BONDS.

(a) No permit shall be issued for making any excavation, or for doing any work described in Section 13-202 hereof, which requires a permit, until the applicant has filed a corporate faithful performance or license bond in the sum designated in the Master Fee Resolution, approved by the City Attorney and filed with the City of Fresno.

(b) A permit applicant shall have on file one or more bonds, which equal 100% of the estimated cost of the proposed work.

(c) The bonds shall provide that in the event the excavations or work done under street work permits issued therefor shall fully comply with the provisions of this article, then said obligation shall be void; but in the event the principal shall fail to faithfully comply with any of the provisions of this article then the City may direct the work to be done in accordance with the provisions of this article and the cost and expense of such work and, in the event of suit on the bond, attorney's fees and court costs shall be collectible from the principal and the surety or sureties on said bond.

(d) All bonds required by this section shall be for a period of not less than one year, except if a corporate faithful performance bond is filed by a public utility, it shall be effective until revoked. No bond shall be canceled except on thirty days' written notice to the Director.

(e) The Director may waive the requirements of this section providing that satisfactory evidence is produced that the applicant has filed a valid performance bond with the Fresno Metropolitan Flood Control District, which bond shall have the same conditions and shall be in the minimum amount required by this section.

(f) Whenever the excavation or work is to be done in connection with the initial installation of subdivision improvements under a subdivision agreement guaranteed by a bond or other improvement security, the bond specified by this section shall not be required. (Added Ord. 6667, 1965; Am. Ord. 80-132, § 10, eff. 10-3-80; Am. Ord. 98-19, § 2, eff. 5-22-98).

SEC. 13-207. INSURANCE.

(a) No person shall be entitled to a permit under this article unless and until he shall have filed and maintained on file with the City of Fresno a certification that such person carries public liability and property damage insurance issued by an insurance carrier licensed to do business in the State of California, insuring the applicant, the city, its officers, employees and agents as named insureds against loss by reason of injuries to, or death of, persons, or damages to property caused by the applicant, its agents or employees in performing any work under such permit, in the following amounts:

$50,000 for death of, or injury to, any one person in any one accident;

$100,000 for death of, or injuries to, more than one person in any one accident;

$25,000 for damages to property.

Said insurance is to provide for cross-liability between insureds and provide that the applicant's insurance is primary to any owned by the city.

(b) Public utilities and other public agencies shall not be required to file the certification set forth in subsection (a) of this section, provided the utility or agency agrees in writing to indemnify and defend the city, its agents and employees from liability arising from the work,

and pay all of the city's court costs and attorney's fees incurred as a result of claims being made for damages therefor, that there shall be filed and maintained with the City, certification

showing the maintenance of a satisfactory plan of self-insurance, or sufficient evidence is to be presented that the public utility or other public agency is of sufficient financial responsibility to provide the necessary indemnification. (Added Ord. 6667, 1965; Am. Ord. 98-19, § 3, eff. 5-22-98).

SEC. 13-208. STREET IMPROVEMENTS. DEDICATION.

(a) All work performed within a street shall be in accordance with standard specifications established by the Director, and adopted by the City Council. The Director shall prepare standard specifications for all of the work performed in public streets under this article.

(b) No more than sixty per cent of any street frontage shall be constructed with driveway openings. The Director may, under the provisions of Section 13-216, grant a deviation in the amount of frontage allowed in driveway openings and their widths along certain street frontages serving industries or manufacturing plants requiring mass transportation facilities.

(c) No building permit shall be issued for any building or structure to be erected, altered, expanded, or enlarged on any lot to the extent that the cost of such work exceeds fifty per cent of the estimated current replacement cost to replace the present building or structure in kind, unless the one-half of any street contiguous thereto has been dedicated and street improvements thereon have been provided for. In the event official plan lines have not been established, the Director shall determine all street widths for dedication to protect the public interest, safety and general welfare, providing, however, the applicant for said permit may appeal the determination of the Director to the City Council in the manner provided in Section 13-216 of this article.

(1) The maximum area of land required to be so dedicated shall not exceed twenty-five per cent of the area of any such lot which was of record on September 1, 1965, in the Fresno County Recorder's Office. In no event shall such dedication reduce the lot below a width of fifty feet or an area of five thousand (5,000) square feet.

(2) No such dedication shall be required with respect to those portions of such a lot occupied by a main building which was existing on July 1, 1965.

(3) No additional improvements shall be required on such a lot where complete asphalt concrete roadway, concrete curb, gutter, and sidewalk improvements exist within the present dedication contiguous thereto.

(d) The Director may require the owner of property adjacent to any arterial or collector street to construct the outer twelve-foot wide travel lane on the arterial or collector street section whenever the Director determines such construction is required. The Director shall use the standards set forth in Chapter 27 of Division 7 of the Streets and Highways Code in making his determination as if the provisions of that code expressly authorized such action concerning arterial and collector streets. The Director shall follow the procedures set forth in Chapter 27 of Division 7 of the Streets and Highways Code to accomplish the street work described above. The adjacent property owner may also dedicate such additional right-of-way as is necessary to construct the street improvements required by this subsection upon a Deed

of Easement prepared by the city. The Director shall follow the procedures set forth in Chapter 27 of Division 7 of the Streets and Highways Code to accomplish the construction and to perfect and enforce the lien.

(1) If the property owner has not dedicated such additional right-of-way within thirty days after the city's written request for the right-of-way or completion of all protest proceeding under Chapter 27 of Division 7 of the Streets and Highway Code, whichever is earlier, then the city may acquire the right-of-way with its own funds. In that event, the cost of the right-of-way shall become a lien upon the property as herein provided.

(2) When the city acquires right-of-way because owner does not dedicate it, then the cost(s) of acquisition shall be reimbursed to the city upon subsequent development of the property, as herein provided. The amount to be reimbursed shall be estimated and recorded in a notice of potential lien applicable to the adjoining property, in the manner provided by Section 13-229(f), and reimbursed to city.

It is the intent of the city, in referring to the Streets and Highway Code in this subsection (d), to merely borrow the procedures set forth therein. The City relies on the authority it possesses under this Municipal Code and its charter in establishing the foregoing requirements.

(e) Whenever street improvements are required, the Director shall require curb, gutter, driveway approaches and asphalt concrete surfacing to be placed on an approved base for the frontage improved as follows:

(1) Major Street (arterial and collector): A distance of twenty feet from face of curb; or

(2) Local street: A distance of eighteen feet from the face of curb or to the center of the street, whichever is greater.

If the adjacent portion of the street have not been constructed to the planned grade, the lot owner or improver shall pay the city the estimated cost of the work as determined by the Director in lieu of constructing the required street improvements.

(f) Whenever street improvements are required, concrete sidewalks, curbs, gutters, and driveway approaches shall be provided or repaired (except for damage caused by roots of trees located in city streets) along all street frontages in accordance with current standard specifications, with the following exceptions:

(1) Sidewalk Waivers. A deviation to omit sidewalks may be granted pursuant to Section 12-1018 of this Code relating to modification of subdivision requirements, or by the Director pursuant to the provisions of Section 13-216, in accordance with the following:

(i) Local Streets. Waivers of sidewalk requirements on local streets may be made in residential zone districts where the average lot size is twelve thousand five hundred square feet or more in area, and in the C-M, M-1-P, M-1, M-2 and M-3 zone districts. The approval of any such waiver shall be based upon the nature of development in the general area and not solely upon an individual property.

(ii) Major Streets. Waiver of sidewalk requirements on major streets may occur when associated with development entitlements in the M-2, M-3 and R-M zoning districts if the Director determines that it will be physically impractical or infeasible to install a sidewalk in the area, and that the waiver of the sidewalk requirement will not be detrimental to the public safety. In addition to the consideration of other criteria which may be established by the Director, a determination waiving sidewalk requirements shall not be made unless the Director finds as follows:

1. That the waiver will not presently or prospectively have a detrimental effect upon general pedestrian safety, school routes, and pedestrian traffic resulting from mass transit service.

2. That no other sidewalk exists along the same side of the major street on which the waiver is requested between the two intersecting major streets on either side of the waiver area.

3. The major street on which the waiver is requested is paved to a width sufficient that no travel lane is within eight feet of the curb along the frontage of the sidewalk waiver.

(iii) Appeal of Director's Decision. In the event a sidewalk waiver is approved by the Director, the owners of properties within a radius of three hundred feet of the exterior boundaries of the property the subject of the deviation shall be notified in writing of the decision. Such notices shall be by prepaid mail and the owner, for the purposes of such notices, shall be deemed to be the person or persons to whom the properties were assessed on the last assessment roll. The address to which such written notice shall be mailed shall be that shown upon such assessment roll. Such owners may appeal the Director's determination to grant a deviation under the provisions of Section 13-216.

(2) In the R-M District, street improvements shall be installed in accordance with the Standard Specifications of the City of Fresno for modified streets.

(3) When development may occur in stages, and only a portion of the property is to be improved, the Director may, in his discretion, allow sidewalks and driveway approaches to be confined to that portion of the street frontage abutting the portion of the property being developed, including areas used for parking of motor vehicles. This exception shall not apply if that portion to be improved is two-thirds or more of the total frontage or if fifty feet or less of street frontage would remain unimproved. When the balance of the property is improved, by landscaping or otherwise, sidewalks and necessary driveway approaches shall be required.

(4) In the case of city parks or playgrounds, curbs and gutters shall always be provided. Sidewalks may be omitted along all minor street frontages, except where playground usage requires fencing, and in these instances sidewalks shall also be provided.

(5) In the case of large developments requiring a Conditional Use Permit, or Site Plan review, under the provisions of Chapter 12 of this Code, the Director may, in his discretion, approve the installation of sidewalks in locations other than as required in the standards specifications providing that safety and aesthetic value are maintained.

(6) The Director of the Development Department shall deny the final approval or occupancy of any building until he has determined that required dedications have been made and street improvements required by this article are completed or have been guaranteed by a secured written agreement in such form and executed as required by the Director and approved by the City Attorney. The security for such agreement shall be in a form approved by the City Attorney and recommended by the Director, or by cash deposited with the city in an amount determined by the Director.

(g) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least four net acres in size, when a portion not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence, the Director may waive, separately or collectively, the curbs, gutters, sidewalks, driveway approach or permanent paving on the portion to be improved or on the remaining portion of such lot.

(1) If street improvements waived in accordance with this subsection (g) include a driveway approach, the Director shall require that an interim driveway approach be installed in a manner approved by the Director.

(h) The street improvement requirements of this section may be waived by the Director if the Director determines that such waiver will not be detrimental to the public safety and welfare and when the purpose for the requested building permit is the reconstruction of a building destroyed or partially destroyed due to an Act of God, and when no development or expansion other than such reconstruction is to be undertaken. (Added Ord. 6667, 1965; Am. Ord. 77-27, § 1, eff. 4-17-77; Am. Ord. 78-30, § 1, eff. 4-7-78; Am. Ord. 78-190, § 1, eff. 1-19-79; Am. Ord. 82-56, § 1, eff. 7-2-82; Am. Ord. 82-58, § 1, eff. 7-2-82; Am. Ord. 82-82, § 2, eff. 9-17-82; Am. Ord. 82-105, § 9, eff. 10-29-82; Am. Ord. 83-150, § 1, eff. 12-2-83; Am. Ord. 89-41, § 1, eff. 5-19-89; Am. Ord. 90-120, § 1, eff. 12-7-90).

SEC. 13-209. STREET IMPROVEMENTS WAIVER. INFILL AREAS.

(a) Street improvement requirements for paving adjacent to lots with frontage on existing paved streets or alleys which are not paved in accordance with the adopted standard specifications may be waived pursuant to the procedures of Section 13-216 if the Director determines as follows:

(1) The property is zoned for residential uses.

(2) The property is located in an infill area of the city where the property in the general vicinity is substantially developed.

(3) More than fifty percent of the entire width of the street or alley upon which the property is located, between the nearest intersecting streets, is paved in a manner which is not in accordance with the adopted standard specifications.

(4) The frontage of the development constitutes less than fifty percent of the adjacent street or alley frontage between two intersecting streets, or is less than six hundred feet.

(5) The granting of the waiver will not be materially detrimental to the public welfare, safety or convenience, and will not adversely affect the rights of adjacent property owners or occupants, or be injurious to property or improvements in the area of the requested waiver.

(b) In all cases in which a waiver is granted, concrete curb and gutter must be installed in accordance with subsection (e) of Section 13-208. If the curb and gutter cannot be installed to planned line and grade without removal of existing paving, transitional pavement shall be required to conform to the new concrete improvements. Whenever concrete improvements are installed, paving shall be installed from the concrete improvements to the edge of existing paving.

(c) No waivers shall be permitted on major streets and for subdivisions or parcel maps consisting of more than four parcels. (Added Ord. 80-175, § 1, eff. 1-9-81; Am. Ord. 81-22, § 1, eff. 3-3-81; Am. Ord. 87-58, § 1, eff. 6-26-87).

SEC. 13-210. STREET IMPROVEMENTS DEFERRAL. INFILL AREAS.

(a) **Sidewalk Deferrals.** Deferral of sidewalk requirements may be granted by the Director pursuant to the procedures in subsection (a) of Section 13-216 if the Director finds that all the following conditions exist:

(1) The property is zoned for single-family residential uses.

(2) The property is located in an infill area of the city where other property in the general vicinity is substantially developed.

(3) More than fifty percent of the street upon which the property is located, between the nearest intersecting streets, does not have sidewalks.

(4) The street frontage of the property constitutes twenty percent or less of the adjacent street frontage between the two nearest intersecting streets.

(5) The deferral will not presently or prospectively have a detrimental effect upon pedestrian safety, school routes, handicap facilities or pedestrian traffic resulting from mass transit service.

(b) **Concrete Improvement Deferrals.** Deferral of concrete improvement requirements, including curbs, gutters and driveway approaches, may be granted by the Director pursuant to the procedures in subsection (a) of Section 13-216 if the Director finds that all the following conditions exist:

(1) The property is zoned for single-family residential uses.

(2) The property is located in an infill area of the city where other property in the general vicinity is substantially developed.

(3) More than fifty percent of the street upon which the property is located, between the nearest intersecting streets, is not improved in accordance with the Standard Specifications.

(4) The frontage of the property constitutes twenty percent or less of the street frontage between the two nearest intersecting streets.

(5) Construction of the concrete improvements is not needed to eliminate existing drainage problems.

(6) Sidewalks do not exist in the area or are also deferred pursuant to subsection (a) of this section.

(7) The deferral will not presently or prospectively have a detrimental effect upon pedestrian safety, school routes, handicap facilities or pedestrian traffic resulting from mass transit service.

In addition to the above, the Director may also grant a deferral of concrete improvement requirements if he determines that the improvements cannot be constructed to permanent grade without major reconstruction of an adjacent street.

(c) Any request for sidewalk or concrete improvement deferral pursuant to this section shall be submitted by the property owner in writing. The request shall include a reasonably detailed statement on how the property qualifies for deferral under this section. The request shall also be accompanied by a fee in the amount designated in the Master Fee Schedule.

(d) No sidewalk or concrete improvement deferral shall be permitted on major streets or for parcel maps consisting of more than four parcels.

(e) **Deferral Agreement.** Any deferral pursuant to this section shall be conditioned on the owner entering into an agreement with the city for future construction of such sidewalks or concrete improvements at his sole cost and expense, including but not limited to cost of inspection. The agreement shall be recorded and shall be subject to and provide for the following:

(1) Construction of improvements shall commence within ninety days after the date of written demand from the Director to construct the improvements. The demand shall be based on the Director's determination that one or more of the conditions described in subdivisions (1) through (5) of subsection (a) or in subdivisions (1) through (7) of subsection (b), as applicable, have substantially changed. The demand shall state the basis for the demand and be mailed to the owner at the address specified in the agreement.

(2) Within sixty days after written demand by the Director to construct the improvements, the owner shall provide security to guarantee construction and completion of the deferred improvements. The security shall be in an amount equal to one hundred percent of the estimated cost of completing the improvements and shall be in the form of cash, a certificate of deposit assigned and payable to the city, an irrevocable straight letter of credit, or other form acceptable to the Director and the City Attorney. The security shall be maintained in full effect at all times until the improvements are completed and accepted by the City.

(3) The owner shall not protest the formation of any assessment district to finance construction or acquisition of the deferred improvements.

(4) If the owner fails to construct or complete the deferred improvements within the time required by the agreement, the city may, but shall not be obligated to, construct and complete the improvements. The owner shall be fully responsible for all costs incurred by the city in connection with completion of the improvements. A final accounting of such costs, when confirmed by the Director and recorded in the official records of the County, shall be a lien on the property. The owner shall be given written notice of the costs, by certified mail, at the most recent address on file with the Director or, if none, at the owner's address shown on the last equalized assessment roll. If the owner does not pay the costs in full within thirty days after the date of such notice, interest shall accrue on the unpaid costs at the maximum legal rate from the date the accounting of the costs was confirmed. The lien shall not be released until all such costs, including accrued interest, are paid in full, according to terms specified in the agreement. The remedy provided in this subdivision (4) shall be in addition to and without limitation on any other rights or remedies that may be available to the city, including but not limited to the right to resort to any security submitted by the owner.

(5) **Appeal.** The owner may appeal the Director's demand for construction of the deferred improvements to the Council, but only to the extent such demand is based on the Director's determination that the condition described in subdivision (5) of subsection (a) or subdivision (7) of subsection (b), as applicable, has substantially changed. The appeal must be received by the Director within fifteen days after the date of the written demand for construction from the Director. The appeal shall be in writing and state in reasonable detail why the appeal should be granted. Upon receipt of a proper appeal within the fifteen day period, the Director shall set aside the demand for construction of the deferred improvements and set the matter for hearing before the Council within thirty days after the date of filing the appeal. Notwithstanding the above, a demand for construction of deferred improvements made in conjunction with an assessment district shall not be subject to appeal. (Added Ord. 88-46, § 1, eff. 4-15-88).

SEC. 13-211. ABANDONMENT OF DRIVEWAY APPROACHES.

Before a permit of occupancy may be issued to, or a building may be occupied by, any person, the property owner shall remove any unused existing driveway approaches and reconstruct the sidewalk, curb and gutter displaced by the driveway approach to coincide with the adjacent sidewalk, curb and gutter in accordance with the provisions of this article. (Added Ord. 6667, 1965).

SEC. 13-212. EXCAVATION AND BACKFILL.

(a) All work of excavation or backfilling in a public street shall be done as quickly as possible. Not more than 600 linear feet of trench shall be open ahead of any sewer, pipe line or conduit in any street or alley, except that upon written permission of the City Engineer such trenches may be opened for a distance of not more than 1,200 linear feet where public traffic will not be seriously inconvenienced. No excavation or trench shall be opened and left open more than twenty-four hours before the installation of the sewer, pipe line or conduit which is to be placed in said excavation or trench; and the backfilling of said excavation or trench shall

be completed within twenty-four hours after the installation of the facility for which the excavation was made, excepting that portion of the trench or excavation to be used for connecting the extension of the installation, provided said portion is adequately barricaded and protected and then backfilled the following working day. Excavations or trenches for poured in place concrete pipe may remain open for a period not to exceed seven days, providing said excavations or trenches are adequately barricaded and access is provided for abutting property owners and at all street intersections.

(b) Where an excavation or trench crosses a street or alley intersection, the excavation and backfilling shall be completed within twenty-four hours, or bridging capable of supporting vehicular traffic shall be provided for access across said excavation or trench.

(c) An excavation within a street or alley for the purpose of boring or jacking pits or for the installation of structures shall be properly barricaded and protected and may be left open for a period of seven days and then must be backfilled, unless an extension of time is approved by the Engineer in writing. (Added Ord. 6667, 1965).

SEC. 13-213. REPLACEMENT OF SURFACES.

(a) When an excavation or trench is in a street or alley, it shall be repaired, backfilled and surfaced in accordance with the standard specifications established by the Director and adopted by the City Council.

(b) When a pole has been removed from any street, alley, sidewalk or other public place, the hole in the case of concrete or asphalt concrete, shall be made even by saw-cutting and then shall be refilled and compacted as specified for the back-filling of trenches in the standard specifications. The surface of the hole shall conform to the same type of surfacing as then exists in the same manner as specified for resurfacing of trenches and made to conform to the same appearance as that of the surrounding area. (Added Ord. 6667, 1965).

SEC. 13-214. SAFETY.

(a) All work described in this article shall be done in accordance with the regulations provided in the City and County of Fresno Traffic Control Manual dated 1963 as the same may be amended or revised.

(b) It shall be the duty of any person making any excavation or doing any work in any public street, alley, easement or other public place to provide and maintain such fences, barriers, signs, lights and watchmen as may be necessary to prevent avoidable accidents to the public. Such person shall also provide for the elimination of dust during the period of construction. The City reserves the right at all times to determine the adequacy and sufficiency of all safety measures, barriers and dust prevention measures, but does not hereby assume responsibility or liability therefor.

(c) The Director and any contractor or other person lawfully excavating, repairing or otherwise improving the whole or any portion of any street, alley, easement or other public place in the city may place barriers around or about the whole or any part of such street, alley,

easement or other public place being so repaired, replaced or improved, in order to keep travel and traffic off the area under work. No person, except an employee of the city, emergency vehicle driver or employee of the street work permittee, shall remove any such barrier or barriers so placed or maintained, nor drive over or upon any portion of such street, alley, easement or other public place so enclosed or protected by such barrier or barriers, nor walk upon any portion thereof in such manner as to injure or damage the improvement or repair being made thereto. Notices of intention to place such barriers shall be given by the agency or contractor engaged in excavation or other work to the Chief of the Fresno Fire Department and the Chief of Police of the Fresno Police Department not later than twenty-four hours before such barriers are placed if such barriers shall block off more than eight feet of the width of any street between curb lines.
(Added Ord. 6667, 1965).

SEC. 13-215. INSPECTION.

It shall be the responsibility of the Director to enforce the provisions of this article and to inspect all work done under the provisions hereof. The Director shall at all times have access to the work being done and shall be furnished with every reasonable facility for ascertaining full knowledge respecting the progress, workmanship and character of materials used and employed in the work.
(Added Ord. 6667, 1965).

SEC. 13-216. DEVIATIONS.

(a) The Director may grant, in writing, deviations from the requirements of this article when the granting of deviation will not be materially detrimental to the public welfare, safety or convenience, and will not adversely affect the rights of adjacent property owners or occupants or be injurious to property and improvements in the area in which the deviation is requested, and when he finds that the requirements of this article will work unnecessary hardship upon the applicant, and there are exceptional or extraordinary circumstances or conditions applicable to the applicant's property or to the intended use of the property which do not apply generally to other properties in the area. Deviations shall be requested by the property owner of property affected or by the permittee if the deviation does not affect any particular private property. The Director shall make his determination and inform the applicant of his decision and of the applicant's right to appeal, in writing within fifteen days after receipt of a deviation request. The determination of the Director may be appealed to the Council within thirty days after the appellant has been informed of the determination in writing or by notation upon and delivery of his plans or building permit. The appeal shall be in writing, filed in duplicate, and shall refer to the determination complained of, and set forth the reasons for the appellant's objections thereto and the facts upon which he bases his reasons. Upon receipt of an appeal, the City Clerk must set the matter for hearing before the Council not less than ten nor more than thirty days thereafter, and shall deliver a copy of the appeal to the Director and give written notice of the hearing date and place to the appellant and the Director. The Council may affirm, modify, or reverse the determination or dismiss

the appeal therefrom, as may be just. The hearing before the Council shall be conducted informally, may be continued, and the Council shall render its decision within fifteen days after the close thereof. The decision of the Council shall be final.

(b) The Director of Public Works may permit postponement of any or all of the improvements required by this article when plans have been formulated for a federally assisted neighborhood improvement program which will accomplish or financially aid accomplishment of the installation of said improvements, and the owner enters into a recordable written agreement in a form approved by the Director waiving the owner's right to protest the formation of an assessment district to construct said improvements and waiving his rights for time payment for the cost to construct said improvements should said program not proceed within three years and the Director of Public Works causes the improvements to be installed at the owner's expense as provided for in Chapter 27 of Part 3 of Division 7 of the Streets and Highways Code.
(Added Ord. 6667, 1965; Am. Ord. 69-94, 1969; Am. Ord. 80-171, § 91, eff. 12-26-80; Am. Ord. 80-175, § 2, eff. 1-9-81).

SEC. 13-217. DUTY OF PROPERTY OWNER TO REPAIR SIDEWALKS.

The owners of lots or portions of lots fronting on any portion of a public street or place which is improved shall have the duty to maintain and repair the sidewalk area as defined in this article in accordance with the provisions of Chapter 22, Part 3, Division 7 of the California Streets and Highways Code, provided, however, that after written notice to the Director and concurrence by him/her that the condition is hazardous, the city shall make the following repairs:

(a) Repairs to the sidewalk area which are necessitated by damage caused by trees located within the street right-of-way.

(b) Repairs to gutters, including curbs if the curb and gutter are of monolithic construction.

Notwithstanding the above, the property owner shall be responsible to repair damage caused by him/her, his/her agent, or by persons acting under the property owner's direction or control. The Director shall have the power and duty of enforcing the repair and maintenance of sidewalk areas required by this Section in accordance with the provisions of Chapter 22, Part 3, Division 7 of the California Streets and Highways Code. Whenever the repair of sidewalk areas include the repair of damage to curbs or gutters, the work shall be performed by a licensed contractor. Permit applicants shall not be required to pay permit processing or inspection fees or provide liability insurance or performance bonds, notwithstanding Sections 13-206 and 13-207 herein, for sidewalk areas required to be repaired.
(Added Ord. 6667, 1965; Am. Ord. 81-55, § 2, eff. 6-12-81; Am Ord. 97-57, § 2, eff. 10-30-97).

SEC. 13-218. DUTY OF PROPERTY OWNERS TO MAINTAIN ALLEYS.

(a) Every owner or occupant of a lot adjacent to a dedicated and improved alley shall have the duty to maintain that portion of the alley adjacent to his lot in a clean and orderly manner and to keep the alley free from those substances and obstructions identified in Sections 13-102 and 13-103 of this Code.

(b) Expressive Alleys. The Council may by resolution designate alleys within a certain geographic region to be "Expressive Alleys." These alleys shall be subject to the following regulations.

(1) Whenever physically possible, trash bins and roll-off containers shall be stored out of sight in a locked enclosure contained within their property.

(i) Owners of structures which were constructed prior to the adoption of this Section shall not be required to construct new trash enclosures.

(ii) Property owners of new construction within designated alleys may be required to construct trash enclosures.

(2) Trash bins and roll-off containers shall be placed for collection before 5:30 a.m. of the collection day, but not before 6:00 p.m. of the preceding day. The containers shall be moved back to their normal storage location by not later than 8:00 p.m. of the collection day unless authorized by the Director.

(Added Ord. 80-185, § 1, eff. 1-23-81; Am. Ord. 2018-38, § 1, eff. 7-27-18).

SEC. 13-219. ENCROACHMENT IN A PUBLIC RIGHT-OF-WAY.

(a) No person shall encroach upon any public right-of-way of the city unless and until such person first obtains and maintains in force and effect a valid encroachment permit issued by the Director. The Director may issue an encroachment permit only when the following conditions have been met:

(1) The record owners of the real property adjacent to the encroachment area have executed and recorded a covenant agreement approved by the City Attorney indemnifying the city for all liability resulting from the use or occupation of the encroachment area.

(2) An application for an encroachment permit has been completed on a form designated by the Director which describes the purpose for the encroachment and the work to be done therein.

(3) Fees relating to the issuance of the encroachment permit, as established by the Master Fee Resolution, have been paid.

(4) The Director determines that the issuance of the encroachment permit will meet a legitimate purpose of the applicant, and that such purpose cannot be feasibly accomplished by any means other than through the issuance of an encroachment permit.

(5) The Director determines that the issuance of an encroachment permit will not be detrimental to the public health, safety, and welfare.

(b) The applicant shall comply with all additional terms, conditions, and restrictions incorporated within the permit and/or covenant which the Director may impose.

(c) Issuance of an encroachment permit shall not relieve the applicant from the obligation of obtaining a street work permit pursuant to Section 13-202 for any work to be done in the public right-of-way contiguous to, or within, the area of the encroachment.

(d) The Director shall revoke any encroachment permit upon determining that the applicant has failed to comply with one or more of the terms, conditions, or restrictions incorporated in the permit or the covenant and shall order the removal of all structures from the encroachment area. This Subsection shall not apply to Subsection 12-328(F) of the Outdoor Dining Ordinance.

(e) The decision of the Director, or any term, condition, or restriction imposed, may be appealed to the Council pursuant to the provisions of Section 13-216 of this Code.
(Added Ord. 79-80, § 1, eff. 6-1-79; Am. Ord. 80-115, § 113, eff. 8-8-80; Am. Ord. 2014-17, § 2, eff. 4-18-14).

SEC. 13-220. DUTY OF PROPERTY OWNER WITH RESPECT TO DOWNSPOUTS, SIDEWALK ELEVATORS AND SIMILAR INSTALLATIONS.

The owner of lots or portions of lots abutting on any portion of a public street, alley or easement shall be responsible for the maintenance of downspouts, elevators or other

installations made in or under any part of the street, alley or easement for the benefit of such property, and for any repairs which may be necessary to the street, curb, gutter, sidewalk or utility by reason of such installation. Whenever the Director determines that repairs are necessary, he shall give notice to the property owner to make such repairs, using the procedure prescribed in Chapter 22, Part 3, Division 7 of the California Streets and Highways Code for the maintenance of sidewalks, and the procedure prescribed in such sections shall apply to such repairs and the collection of the cost of such repairs.
(Added Ord. 6667, 1965).

SEC. 13-221. DITCHES, FLUMES, CONDUITS, ETC.

No person shall have, build or maintain any canal, ditch, flume or artificial stream or conduit for water within or upon any street or public place within the city without the same being covered and enclosed in a safe, solid and substantial manner, with sound and durable material, approved by the Director. Whenever the Director shall discover any such ditch, flume or artificial stream, or conduit of water uncovered, and in such condition as to be anywhere inconvenient, dangerous or injurious or a nuisance to the public in any manner, he shall give one day's notice in writing to the person having or maintaining such canal, flume or artificial stream or conduit of water, such notice to specify what shall be done by said person to render such canal, ditch, flume or artificial stream or conduit of water safe; then such person shall within thirty days cause the same to be covered and repaired in the manner directed by the Director.
(Added Ord. 6667, 1965).

SEC. 13-222. CABLES, WIRES, ROPES, FLAGS, BANNERS, ETC.

No person shall run, or stretch or maintain, through, along or across any street any wire, cable, rope, cord, flag, banner or similar thing with less clearance than eighteen feet above the street, and all such installations shall be in compliance with and subject to the conditions of the Public Utilities Commission of the State of California, its rules for "Overhead Line Construction" — General Order No. 95, and any applicable ordinance or regulation of the city.
(Added Ord. 6667, 1965).

SEC. 13-223. OBSTRUCTIONS; PUBLIC NUISANCES.

Whenever any subsurface, surface, or above surface obstruction existing in, on, or above any public right of way within the city interferes with, obstructs, or would obstruct, any public improvement, or proposed public improvement, of such right of way, such obstruction shall constitute a public nuisance and may be summarily abated by, or at the direction of, the Director.
(Added Ord. 6667, 1965).

SEC. 13-224. PUBLIC NUISANCES. PENALTIES.

In addition to any other penalty or remedy provided by law, every person who maintains a public nuisance described in Section 13-223 shall be guilty of a misdemeanor, punishable as provided by law.
(Added Ord. 6667, 1965).

SEC. 13-225. FAILURE TO DO WORK. POWER OF DIRECTOR. COST OF WORK.

Whenever this article requires certain work, or requires that work done shall be done in a certain manner pursuant to specified rules or specifications or requires that any steps be taken to protect persons or property, by a permittee, contractor or other person, and such person fails

to comply with this article, then the Director shall give such person notice as prescribed in this article or if none be prescribed, written notice given pursuant to Section 1-212 of this Code and the following provisions; the notice shall specify the failure and demand compliance with this article and state that if compliance is not achieved within thirty days of the date of the notice, then the Director will cause the work to be done and the cost and expenses thereof to be paid by such person. In the event the failure causes, in the opinion of the Director, an immediate hazard to persons or property, the Director may shorten the thirty day period or cause to be done immediately, without notice, such part of the work or steps necessary to abate the hazard. The cost and expenses of such work, together with attorney's fees and court costs in the event of a suit for collection, shall be paid by such person and may be collectible on or from any bond or other performance security provided to secure that the provisions of this article are complied with. (Added Ord. 6667, 1965).

SEC. 13-226. EXCEPTION FROM ARTICLE.

This article applies to all those things which, when installed, make up and become part of public streets or their substructure and to the manner of their installation, but it shall not be deemed to set standards for the materials in, type, quality, or quantity of, or method of assembly of, property of a public utility or government (such as pipes, manholes, wires, cables, underground vaults, etc.) unless the possibility of failure of the thing to be placed will endanger any property or persons and in such case the thing must be engineered so as to be safe. (Added Ord. 6667, 1965).

SEC. 13-227. OBSTRUCTION TO VISIBILITY AT INTERSECTIONS.

(a) On property at any street corner formed by intersecting streets or on a curved street, it is hereby declared hazardous, a nuisance and unlawful to install, set out, or maintain, or to allow the installation, setting out, or maintenance of any sign exempted by Section 12-1710 from the sign permit requirement, fence, wall, hedge, shrubbery, natural growth or other similar obstruction to the view, higher than three feet above the level of the center of the adjacent intersection, within that triangular area between the property lines and a diagonal line joining points on the property lines, thirty feet from the point of their intersection, or in the case of rounded corners the triangular area between the tangents to the curve and a diagonal line joining points on said tangent thirty feet from the point of their intersection.

(b) The foregoing subsections shall not apply to:

(1) Buildings and other structures for which a permit is required under the Building Code of the city, public utility poles, fire hydrants, trees trimmed to the trunk to a line at least eight feet above the level of the intersection, saplings, plant species of open growth habits and not planted in the form of a hedge, which are so planted and trimmed as to leave at all seasons a clear and unobstructed cross-view for vehicular traffic on the curved or intersecting streets;

(2) Supporting members of appurtenances to permanent buildings existing before September 26, 1953, except as provided herein, no obstruction to cross-visibility of traffic shall be deemed to be excepted from the application of this section because of its being in existence on September 26, 1963;

(3) Official warning signs or signals at places where the contour of the ground is such that there can be no traffic cross-visibility at the intersection;

(4) Signs mounted ten feet or more above the ground or signs whose supports do not constitute an obstruction to cross-visibility of traffic. (Added Ord. 68-1, 1968; Amnd. Ord. 73-51, 1973; Am. Ord. 91-125, § 1, eff. 12-20-91).

SEC. 13-228. INTERSECTION VISIBILITY, INVESTIGATION AND ENFORCEMENT. LIEN.

Whenever any person neglects to conform to, or to provide that property over which he has control, conforms to the provisions of Section 13-230, the City Traffic Engineer may require, upon 20 day's written notice, such compliance. Said person may within said time object to or protest the requirements of said notice by appealing to the Council which shall hear and pass upon the appeal within 15 days. In the event non-compliance continues thereafter, the City Traffic Engineer may cause the work to be done to bring the property into compliance with Section 13-230. The work and a lien therefor shall be accomplished as provided in Sections 13-1217 through 13-1223 of this Code*. As used in said sections, the following words or terms shall have the following meanings:

(1) Director of Public Works, and Building Official shall mean City Traffic Engineer.

(2) Repair, demolish, demolishing or work of repair or demolition shall mean the work of bringing the property into such compliance, including all necessary and proper acts incidental thereto.

(3) Building or structure shall mean the areas of properties which are required to be in such conformance.

(4) Article 4 of Chapter 11, as used in the Notice of Lien, shall mean this section. (Added Ord. 68-1, 1968).

SEC. 13-229. CHARGES AND REIMBURSEMENTS.

(a) **Major Street Zones.** Nine major street zones, as provided by this subsection, and as defined by this article, shall be established in the Urban Growth Management Area. The Official Record Map of each zone shall be kept on file in the Public Works Engineering Division. Each lot within the Urban Growth Management Area shall be subject to the

*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

applicable fees and fee credit schedules for the particular Major Street Zone in which it is located. Said fees and fee credits shall be at the rates designated in the Master Fee Resolution.

(1) Major Street Zone "A" shall consist of all properties within the Urban Growth Management Area located north of the center line of East Nees Avenue, east of the San Joaquin River Bluff Line, and west of the centerline of North Millbrook Avenue extended to East Copper Avenue and west along the center line of East Copper Avenue to the Bluff Line.

(2) Major Street Zone "B" shall consist of all properties within the Urban Growth Management Area located east of the center line of North West Avenue, north of the center line of West Herndon Avenue, west of the center line of North Blackstone Avenue, and south of the center line of West Nees Avenue to the San Joaquin River Bluff line.

(3) Major Street Zone "C/D-2" shall consist of all properties within the Urban Growth Management Area located west of the center line of North West Avenue, north of the center line of West Herndon Avenue to North Marks Avenue, and thence north of the center line of West Shaw Avenue, and east of the right-of-way line of Freeway 99.

(4) Major Street Zone "D-1/E-2" shall consist of all properties within the Urban Growth Management Area located south of the center line of East Ashlan Avenue, and east of the center line of South Cedar Avenue.

(5) Major Street Zone "E-1" shall consist of all properties within the Urban Growth Management Area located east of the center line of North Blackstone Avenue between the center line of East Nees Avenue and the center line of East Herndon, and all the land within the Urban Growth Management Area located east of the center line of North Millbrook Avenue that does not require a financial feasibility study under the adopted 1984 Fresno General Plan.

(6) Major Street Zone "E-3" shall consist of all properties within the Urban Growth Management Area located west of the center line of South Cedar Avenue, and south of the Southern Pacific Railroad Track located at the quarter-mile point between West Nielsen and West Belmont Avenues.

(7) Major Street Zone "E-4" shall consist of all properties within the Urban Growth Management Area located north of the Southern Pacific Railroad Track located at the quarter-mile point between West Nielsen and West Belmont Avenues, and west of the Southern Pacific Railroad Track along Motel Drive.

(8) Major Street Zone "E-5" shall consist of all properties within the Urban Growth Management Area located east of the center line of North Van Ness, south of the center line of West Herndon, west of the center line of North Palm, and north of the center line of West Sierra Avenue.

(9) Major Street Zone "F" shall consist of all properties within the Urban Growth Management Area located south of the center line of East Copper Avenue, west of the center line of North Willow Avenue, generally east of the center lines of North Millbrook Avenue,

North Cedar Avenue, and North Maple Avenue, and generally north of East Herndon Avenue and within the area designated by the adopted 1984 Fresno General Plan as requiring a financial feasibility study.

(b) **Major Street Charge.** A major street charge shall be required for each lot created by subdivision or developed within the Urban Growth Management Area, as designated on the Official Urban Growth Management Map. The charge for each Major Street Zone defined in subsection (a) of this section shall be designated annually each July first in the Master Fee Resolution per gross acre. The Major Street Charge per acre of area in the Major Street Zone shall equal the sum of the actual cost of the completed major street system subject to reimbursement and the estimated cost of the uncompleted major street system in the Major Street Zone. Area calculations shall be based upon the following:

(1) Gross acreage shall be calculated to include street right-of-way and shall include one-half of the right-of-way on boundary streets, except that areas dedicated or condemned for public street purposes for any major street shall be excluded in calculating gross acreage.

(2) Property for which the cost of major streets has wholly or proportionately been paid, when such fact has been or can be established to the satisfaction of the Director, need only be liable for the Major Street Charge applicable to the portion of the property for which the charge has not been paid.

(3) When only a portion of a lot is developed, and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, or when lots created by subdivision are not created for purposes of sale, lease of financing and are not presently intended for further development, the Director may require the payment of the Major Street Charge applicable only to that portion of the property developed or to be developed, provided that the parcel for which such fees are charged shall have an area of not less than twelve thousand five hundred square feet. When the balance of the property is developed, the Major Street Charge shall be paid in the amounts then in effect. The Director shall fix the portion of the property which is to be considered as developed.

(4) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least four net acres in size, when a portion not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence, the Director may require the payment of the Major Street Charge applicable only to the portion of such lot to be improved. The Director shall fix the portion of such lot which is to be considered as improved.

(c) **Major Street Bridge Charge.** A Major Street Bridge Charge shall be required for each lot created by subdivision or developed within the Urban Growth Management Area, as designated on the Official Urban Growth Management Area Map. The Major Street Bridge Charge for each Major Street Zone defined in subsection (a) of this section shall be as designated annually each July first in the Master Fee Resolution and shall equal the actual cost of completed major street bridges subject to reimbursement and the estimated cost of uncompleted major street bridges in the Major Street Zone per gross acre. Area calculations shall be made in the same manner as provided in subsection (b) for the Major Street Charge.

(d) (Repealed).

(e) **Construction of Major Street, Major Street Bridge or Local Street Facilities.** As a condition of development in a Major Street Zone, the construction of each of the following which is designated in the Service Delivery Plan of the development shall be required to facilitate traffic service: the center section of a major street, a major street bridge or a local street.

(f) **Reimbursements.** The following provisions define the reimbursement process within the Urban Growth Management Areas and Non-Urban Growth Management Areas:

(1) Whenever the center section of a major street or major street bridge is installed by a person as a condition of development within the Urban Growth Management Area, the city shall reimburse such person for the actual cost of the construction, including engineering and inspection costs, less the appropriate pro rata share of the major street charge and the major street bridge charge to be paid on behalf of all property contributing to the cost thereof, in the manner and for the period prescribed in Section 12-4.504-C of this Code.

(2) Whenever a person covenants in a form acceptable to the City Attorney to install the center section of the major street or the major street bridge within the Urban Growth Management Area, the estimated cost of construction thereof shall be credited against the major street charge or major street bridge charge, as appropriate, which is due upon granting of the development entitlement on the property contributing to the cost of the major street or major street bridge. The cost of construction of the major street shall be estimated in accordance with the credit schedules designated in the Master Fee Resolution. The estimated cost of construction of the major street bridge shall be established by the Director based on the engineer's estimate prepared in connection with the design of the bridge.

(3) In the event the actual cost of major street or major street bridge exceeds the major street charge or the major street bridge charge within the Urban Growth Management Area, the difference shall be paid from the UGM major street fund or major street bridge fund upon city acceptance of the major street or major street bridge, only to the extent that major street charges or major street bridge charges are paid on behalf of noncontributing properties served by the major street or major street bridge up to the duration of the appropriate reimbursement period, in the manner prescribed by Section 12-4.504-C of the Code, after city acceptance of the major street or major street bridge, and only to the extent that the major street charges or major street bridge charges paid on behalf of such noncontributing properties are not credited against reimbursement for other major streets or major street bridges constructed for the noncontributing properties by the person paying such charges.

(4) Where, as a condition precedent to approval of development in the Urban Growth Management Area, a person has been required to construct the center section of a major street or a major street bridge which has been accepted by the city, he shall within ninety days of such acceptance file with the Director a project accounting stating the cost of acquisition and construction of the major street or major street bridge. The project

accounting shall include a legal description of all properties on behalf of which contributions have been made and a statement of the proportion of the construction costs borne by each property.

(5) Following the receipt of the project accounting, the Director shall make semiannual determinations on or about each April first and October first, in the manner prescribed in Section 12-4.504-C of this Code, of the amounts to be reimbursed to the persons who constructed the major street or major street bridge within the Urban Growth Management Area as shown in the project accounting, subject to the following:

(i) Each determination shall calculate those charges which have been collected during the preceding six months for land developed within the major street zone in which the major street or major street bridge is located.

(ii) No payments or determinations may be made if the project accounting is not timely filed.

(iii) In no event shall payments be made which total more than the cost of the major street or major street bridge as shown on the project accounting.

(iv) The major street charge and major street bridge charge on the property contributing to the cost of the major street or major street bridge shall be increased or decreased, as appropriate, by an amount equal to the difference between the actual cost of construction and the fee credit established at the time of the granting of the entitlement per acre of land in the major street zone in which the property is located.

(v) No payments or determination shall be made after the end of the appropriate reimbursement period as defined in Section 12-4.501.5-F of this Code.

(vi) The priority of reimbursements shall be based upon the date the Director accepts the project accounting statement.

(vii) Reimbursements shall not be made until reimbursements are complete for major streets or major street bridges, as the case may be, which are covered by previously submitted project accounting statements.

(6) Whenever a person is required, as a condition of development in the Urban Growth Management Area, to bear the cost of acquisition of necessary rights-of-way or easements for street construction or facilities incidental thereto, or if a person is required to construct standard frontage improvements described in Section 13-208(d) of this Code or facilities incidental thereto beyond the limits of his development, which for purposes of this section shall mean the centerline of the adjacent street and property boundary lines generally perpendicular to the street centerline, then the city shall, as a condition of and prior to the development or subdivision of the property from which the right-of-way acquisition occurred or from the adjacent property on which the frontage improvements were installed, or from property which would have future responsibility for the construction, require the developer of such adjacent property which received benefit by virtue of the improvements having been previously constructed to pay to the city an amount determined by the Director, based on the project accounting, as representing the cost of street right-of-way acquisition and any

construction. Such payment shall be made prior to approval by the city of any development entitlement or building permit for such adjacent property. The city shall then make reimbursements to the person who bore the initial cost of such right-of-way acquisition or improvements, or both, according to the terms of Section 12-4.504-C of this Code. However, any right to reimbursement under this subdivision (6) shall expire twenty years after city acceptance of such rights-of-way and improvements.

The above is as it applies to major streets shall apply only to standard frontage improvements accepted by the city after September 1, 1985 and only to those adjacent properties on which title has not changed or development entitlements have not been approved between September 1, 1985 and December 19, 1986.

(7) When the acquisition of an entire parcel is necessary for major street right-of-way and construction so that the person required to bear the cost thereof would not have the potential for reimbursement as provided in subdivision (6) above, the Director may authorize reimbursement from the applicable UGM Major Street Service Area Fund. The Director shall then revise the UGM Major Street Fee rate for the affected street zones to include the pro rata cost paid by such person for that portion of the property so acquired for right-of-way necessary for major street construction. The Director shall adjust the major street fee rate pursuant to this subdivision (7) only after he has received written verification of the purchase price of the acquired property. Any such adjustment by the Director shall be based solely on such verified purchase price, prorated as specified herein, when the property is acquired by such person. If the property is acquired by the city through negotiation or eminent domain procedures, such adjustment shall be based upon the actual cost thereof paid by such person to the city, prorated as specified herein.

The priority of reimbursements shall be based on the date the Council approves the adjustment in the UGM Major Street Fee rate pursuant to this subdivision (7) and the priority of reimbursements for major street construction pursuant to subdivision (5)(vi) above. No such reimbursement shall be made until reimbursements are complete for major streets or for right-of-way pursuant to this subdivision (7) which are covered by previously submitted project accounting statements or approved major street fee rates.

(8) The Director shall review the reimbursement and fee schedule semiannually following the evaluation of all project accounting statements and report to the Council with appropriate recommendations for revision of the credits and fees. The major street and major street bridge charges shall be adjusted to reflect the actual cost of major streets and major street bridges constructed and included in project accounting statements received during the previous six months.

(9) (Repealed).

(10) When reimbursements are made pursuant to this Subdivision (f), the city shall reimburse in a manner and for the period prescribed by Section 12-4.504-C of this Code.

(g) **Deferral of Charges.** Major street charges payable pursuant to Subsection 13-229(b) and major street bridge charges payable pursuant to Subsection 13-229(c) may be deferred

until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604. (Added Ord. 78-107, § 2, eff. 7-28-78; Am. Ord. 78-171, § 1, eff. 12-15-78; Am. Ord. 80-115, § 114, eff. 8-8-80; Am. Ord. 82-82, § 3, eff. 9-17-82; Am. Ord. 82-102, § 5, eff. 10-22-82; Am. Ord. 83-163, § 2, eff. 1-20-84; Am. Ord. 84-93, § 1, eff. 7-27-84; Am. Ord. 85-37, § 1, eff. 4-12-85; Am. Ord. 85-46, § 1, eff. 5-10-85; Am. Ord. 86-179, § 1, eff. 12-26-86; Am. Ord. 87-85, § 1, eff. 8-7-87; Am. Ord. 89-85, § 3, eff. 7-28-89; Am. Ord. 91-32, § 2, eff. 5-10-91; Am. Ord. 95-38, § 2, eff. 6-9-95; Am. Ord. 2004-131, §§ 1—4, eff. 2-5-05; Ord. 2007-47, §§ 1—3, eff. 6-11-07; Ord. 2007-50, §§ 1—3, eff. 7-14-07).

SEC. 13-230. GRADE SEPARATION STRUCTURES AND RELATED FACILITIES.

(a) **Purpose.** The purpose of this section is to ensure the provision of grade separation structures and related street facilities, including but not limited to frontage roads, freeway off-ramps, and off-street realignments, necessary for the accommodation of vehicular and pedestrian traffic at or near railroad crossings. This section is further intended to provide a means for the levying and collecting of fees within the Urban Growth Management Area to be used for the purpose of designing and constructing such grade separation structures and related street facilities.

(b) **UGM Grade Separation Service Areas.** The Council may establish by resolution Grade Separation Service Areas within the Urban Growth Management Area for grade separation projects in or near the Urban Growth Management Area.

(c) **UGM Grade Separation Fee.** The council shall designate in the Master Fee Resolution a schedule of UGM Grade Separation Fees for each UGM Grade Separation Service Area. The total amount of fees to be generated shall be based upon an equitable allocation determined by the Council after considering the estimated amount of grant funds available from the state, county, or affected railroad company, traffic generated from future developments, gas tax revenues, and any other funds available to contribute to the engineering, design, and construction of the grade separation and related or alternate facilities. In no event, however, shall the total amount of fees generated equal less than ten per cent of the total cost of designing and constructing such grade separation and facilities. The Council may review and amend the fees set forth in the Master Fee Resolution from time to time to reflect inflation or any change in the factors which were considered in estimating the cost of designing or constructing such grade separation and related or alternate street facilities. Area calculations shall be based upon the following:

(1) Gross acreage shall be calculated to include street right-of-way and shall include one-half of the right-of-way on boundary streets, except that areas dedicated or condemned for public street purposes for any arterial or collector street shown on any master or official plan of streets and highways shall be excluded in calculating gross acreage.

(2) When only a portion of a lot is developed, and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, the Director may require the payment of the Grade Separation Fee applicable only to that portion of the lot developed or to be developed, provided that the parcel for which such fees are charged shall

have an area of not less than twelve thousand five hundred square feet, or one-fourth of the lot, whichever is greater. When the balance of the lot is developed, the Grade Separation Fee shall be paid therefor. The Director shall fix the portion of the lot which is to be considered as developed.

(3) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least four net acres in size, when a portion not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence, the Director may require the payment of the Grade Separation Fee applicable only to the portion of such lot to be improved. The Director shall fix the portion of such lot which is to be considered as improved.

(d) **Reimbursement.** Reimbursement shall be made according to the terms of Section 12-4.504-C of this Code.

(e) **Fees Payable at Final Subdivision Map.** The UGM Grade Separation Fee allocable to any lot shall be payable upon the recordation of the final subdivision or parcel map or in the absence of submittal of a map, at the time of issuance of a building permit. A developer may elect to defer the payment of such fee until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604.

(f) **Construction of Grade Separation and Related Facilities.** All Grade Separation Fees collected from development within an established UGM Grade Separation Service Area shall be deposited in a UGM Grade Separation Fund for the area in which collected. Each fund shall be used solely for the purposes of designing and constructing a grade separation structure and related facilities within the UGM Grade Separation Area in which such fees were generated, and for administration, inspection, and engineering costs of the city directly related thereto. In the event the city determines grant funds from the state, county, or railroad company are unavailable or insufficient to complete the design and construction of a grade separation and all related facilities, the fund shall be used for such alternate facilities as the Council deems most appropriate for the facilitation of vehicular and pedestrian traffic at or near the railroad crossing.

(g) **Agreements.** The Director is authorized to enter into any agreement acceptable to the City Attorney, which is consistent with, and promotes the purposes and goals of, this section. (Added Ord. 80-54, § 1, eff. 5-2-80; Am. Ord. 80-132, § 11, eff. 10-3-80; Am. Ord. 82-82, § 4, eff. 9-17-82; Am. Ord. 89-85, § 4, 7-28-89; Am. Ord. 95-38, § 3, eff. 6-9-95).

SEC. 13-231. AT-GRADE RAILROAD CROSSINGS AND RELATED FACILITIES.

(a) **Purpose.** The purpose of this section is to ensure the provision of at-grade railroad crossings and related facilities necessary for the accommodation of vehicular and pedestrian traffic at or near railroad crossings. This section is further intended to provide a means for the levying and collecting of fees within the Urban Growth Management Area to be used for the purpose of designing and constructing such at-grade railroad crossings and related facilities.

(b) **UGM At-Grade Railroad Crossing Service Areas.** The Council may establish by resolution at-grade railroad service areas within the Urban Growth Management Area for at-grade railroad crossing projects within or near the Urban Growth Management Area.

(c) **UGM At-Grade Railroad Crossing Fee.** The council shall establish by resolution a schedule of UGM at-grade railroad crossing fees for each UGM at-grade railroad crossing service area. The total amount of fees established by such resolution shall be based upon an estimated cost of designing and constructing such at-grade railroad crossing facilities. The Council may review and amend the fees set forth in the fee resolution from time to time to reflect the actual cost of design and construction or any change in the factors which were considered in estimating the cost of designing or constructing such at-grade railroad crossing facilities. Area calculations shall be based upon the following:

(1) Gross acreage shall be calculated to include street right-of-way and shall include one-half of the right-of-way on boundary streets, except that areas dedicated or condemned for public street purposes for any arterial or collector street shown on any master or official plan of streets and highways shall be excluded in calculating gross acreage.

(2) When only a portion of a lot is developed, and the remaining portion is to continue undeveloped or is to be used solely for the growing of agricultural crops, the Director may require the payment of the at-grade railroad crossing fee applicable only to that portion of the lot developed or to be developed, provided that the parcel for which such fees are charged shall have an area of not less than twelve thousand five hundred square feet. When the balance of the lot is developed, the at-grade railroad crossing fee shall be paid therefor at the rate most recently established by the Council. The Director shall fix the portion of the lot which is to be considered as developed.

(3) In the R-A, AE-5 and AE-20 zone districts on a developed lot at least four net acres in size, when a portion not less than twelve thousand five hundred square feet of such lot is to be improved with one additional single-family residence, the Director may require the payment of the at-grade crossing fee applicable only to the portion of such lot to be improved. The Director shall fix the portion of such lot which is to be considered as improved.

(d) **Accelerated Schedule of UGM At-Grade Crossing Fees.** The Council may establish by resolution an accelerated schedule of UGM at-grade crossing fees. The accelerated fee shall apply to the portion designated by Council, of the service area which is developed first and at a rate sufficient to generate funds equalling the estimated cost of the crossing.

(e) **Fees Payable Upon Grant of Development Entitlement.** The UGM at-grade railroad crossing fee allocable to any lot shall be payable upon the recordation of the final subdivision or parcel map or, in the absence of submittal of a map, at the time of issuance of a building permit. A developer may elect to defer the payment of such fee until issuance of a certificate of occupancy pursuant to an agreement which conforms to the requirements of Section 12-4.604.

(f) **UGM At-Grade Railroad Crossing Fund.** All at-grade railroad crossing fees collected from development within an established UGM at-grade railroad crossing service area shall be deposited in a UGM at-grade railroad crossing fund for the area in which collected. Each fund shall be used solely for the purposes of designing and constructing an at-grade railroad crossing and related facilities within the UGM at-grade railroad crossing area in which such fees were generated, and for administration, inspection and engineering costs of the city directly related thereto. In the event the city determines funds are insufficient to complete the design and construction of the at-grade railroad crossing and all related facilities, the fund shall be used for such facilities as the Council deems most appropriate for the facilitation of vehicular and pedestrian traffic at or near the at-grade railroad crossing.

(g) **Construction of At-Grade Railroad Crossing and Related Facilities.** The Council may require, as a condition of development in an at-grade railroad crossing service area, the construction of an at-grade railroad crossing if the development abuts the crossing or if the Council finds the vehicular traffic generated from that development results in a public safety hazard at or in the vicinity of the railroad crossing.

(h) **Reimbursements.** The following provisions shall apply within the Urban Growth Management Area, as designated on the Official Urban Growth Management Area Map:

(1) Whenever an at-grade railroad crossing is installed by a person as a condition of development within the Urban Growth Management Area, the city shall reimburse or credit such person for all costs in excess of that development's proportionate share of the cost of the railroad crossing. This reimbursement or credit schedule shall be based on the estimate of costs prepared by the Director for construction of such work and shall include the estimated cost of construction, engineering and inspection. The amount to be reimbursed or credited shall be credited against the at-grade railroad crossing charge to be paid on behalf of all property contributing to the cost thereof in proportion to the amount of such contribution.

(2) In the event that credit for such property as provided by this section exceeds the at-grade railroad crossing charge, the difference shall be paid from the at-grade railroad crossing fund upon completion of the crossing, only to the extent that at-grade railroad crossing charges are paid on behalf of noncontributing properties served by the at-grade crossing up to the duration of the appropriate reimbursement period, as provided in Section 12-4.504-C of this Code, after city acceptance of the crossing, and to the extent that the at-grade railroad crossing charges paid on behalf of such noncontributing properties are not credited against reimbursement for other crossings constructed for the noncontributing properties by the person paying such charges or for other crossings which have been accepted by the city prior to the city acceptance of the subject crossing and the cost of which has not been totally reimbursed or credited.

(3) Where, as a condition precedent to approval of development in the Urban Growth Management Area, a person has been required to construct an at-grade railroad crossing which has been accepted by the city, he shall file with the Director within ninety days following acceptance of the crossing a project accounting stating the cost of construction of the crossing.

(4) For each UGM at-grade crossing service area established by the Council, following city acceptance of the crossing the Director shall determine semiannually in the manner and for the period prescribed by Section 12-4.504-C of this Code, the amounts to be reimbursed or credited to the person who constructed the crossings as shown in the projecting accounting subject to the following:

(i) Each determination shall calculate those charges which have been collected during the preceding six months for land development within the at-grade crossing service area in which the crossing is located.

(ii) No payments or determinations may be made if the projecting accounting is not filed.

(iii) In no event shall payments be made which total in excess of one hundred per cent of the cost of the crossing as shown on the project accounting.

(iv) No payments or determinations shall be made after the end of the appropriate reimbursement period, as defined in Section 12-4.501.5-F of this Code, following acceptance by the city of the crossing.

(5) In the event a developer has paid fees at an accelerated rate, at such time as sufficient fees have been collected to cover the cost of the crossing, such developer, or his heirs and successors, on a first-in first-out basis, shall be reimbursed on or about each April first and October first from fees collected from subsequent developers during the preceding six months, until such time as the total contribution of each developer is reduced to the service fee rate amount. (Added Ord. 82-86, § 1, eff. 9-17-82; Am. Ord. 83-163, § 3, eff. 1-20-84; Am. Ord. 89-85, § 5, eff. 7-28-89; Am. Ord. 91-32, § 3, eff. 5-10-91; Am. Ord. 95-38, § 4, eff. 6-9-95).

ARTICLE 3 STREET TREES AND PARKWAYS

Sec. 13-301. Definitions.
Sec. 13-302. Public Tree Policy.
Sec. 13-303. Director's Control.
Sec. 13-304. Tree Beautification.
Sec. 13-305. Tree Preservation.
Sec. 13-306. Special Tree List.
Sec. 13-307. Departmental Cooperation.
Sec. 13-308. Nonliability of City.
Sec. 13-309. Appeals.
Sec. 13-310. Tree Trust Fund.
Sec. 13-311. Violations.

SEC. 13-301. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 (commencing with Section 1-201) of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Block" shall mean all property fronting on both sides of a street between intersecting streets, or between an intersecting street and a right-of-way, water way, end of a cul-de-sac, or city-county boundary. Where a street is intercepted between two intersecting streets, the boundaries of the block shall be determined by the Director.

(c) "Director" shall mean the Parks and Recreation Director and/or the Public Works Director and designees thereof, as provided in this article and/or as determined by the Chief Administrative Officer in his/her sole discretion. The Public Works Director shall be designated as the responsible person for street trees, median island trees, and trees planted in association with Lighting and Landscaping Maintenance Districts (LLMD) or Community Facilities Districts (CFD). The Director of Parks and Recreation shall be designated as the responsible person for trees in neighborhood, community and regional parks, and for trees in neighborhood, community and regional trails (including related linear park).

(d) "Parkway" shall mean that portion of public property available for planting between the street curb, or curb alignment, and the abutting private property line.

(e) "Preservation" shall mean acts to promote the life, growth, health, or beauty of trees including, but not limited to, pruning, trimming, topping, root pruning, spraying, mulching, fertilizing, cultivating, supporting, and treating for disease or injury.

(f) "Public Nuisance" shall mean and the City Council, by adoption of this ordinance declares that any violation of this article, and any tree which, for whatever reason including lack of maintenance and/or natural growth/aging processes and/or seasonal changes, may be injurious to public health, safety, and/or property, or an obstruction to the use of public property, so as to interfere with the comfortable enjoyment of life or property and which affects the entire community or neighborhood or a considerable number of persons, is unlawful and shall constitute a public nuisance. Without limitation the following shall constitute a public nuisance for purposes of this article (i) any tree subject to corrective action or removal under this article, (ii) any diseased or insect infested tree on private property so near to any street tree so as to cause damage to said street tree, (iii) any tree on private property that is interfering with, impairing or destroying any city owned street improvements, sidewalks, curbs, gutters, sewers, water or gas lines, block walls, street trees, or other related street facilities, (iv) any street tree which has or will require non-routine maintenance of city infrastructure on a frequency greater than once every ten years, (v) any tree known to be dangerous upon oral or other contact by a person, (vi) any tree growing into or over any street tree, or any public hydrant, pole, street sign, stop sign, or electrical/utility facility other than as allowed by this article, (vii) any tree in direct or intermittent contact with any electrical conductor owned by a utility company, which must be trimmed away from the conductor, (viii) the existence of any branches or foliage which interferes with visibility of, free use of, or access to any portion of any street, sidewalk, or alley improved for vehicular or pedestrian travel, (ix) tree houses, ladders, aerials, swings, ropes, or any other material attached to publicly owned trees.

(g) "Public property" shall mean any property or area owned by or under the control of the city, including public tree easements.

(h) "Public tree easement" shall mean an easement granted by a property owner to the city to permit the city to plant and preserve a tree in the property owner's front or side yard setback abutting public streets.

(i) "Street tree" shall mean any tree planted, or caused to planted, by the city within the: street right-of-way; parkway; any landscape or public tree easement offered for tree planting purposes but excluding common areas maintained by a LLMD or CFD. Street tree may also include trees planted within the public right-of-way that the city accepts through annexation of unincorporated areas of the county.

(j) "Tree" shall mean and include without limitation any tree or shrub.
(Added Ord. 2005-22, § 2, eff. 4-16-05).

SEC. 13-302. PUBLIC TREE POLICY.

It is hereby declared that the public interest and welfare require that the city maintain a program for the planting and preservation of trees on all public property in the city as a municipal affair in order to beautify the city, purify its air, and provide shade for its inhabitants. This article provides for plans and establishes regulations governing the planting and preservation of trees in public property, including parkways of the city. This

article further provides for plans and establishes regulations for the selection of appropriate species of trees to achieve as much uniformity as possible for beauty and economy, and for a consistent and adequate program to preserve such trees. This article further provides for reduction of public nuisance and expense caused by improper tree selection, planting and maintenance. The Director shall enforce, implement, and carry out the policy, provisions, and regulations of this article in a manner which is consistent with other established policies of the city.
(Added Ord. 2005-22, § 2, eff. 4-16-05).

SEC. 13-303. DIRECTOR'S CONTROL.

Except as otherwise provided in this article, the Director shall have exclusive control over the planting, preservation and removal of trees, and the performance of any work incidental thereto in, on or over any public property and any other city controlled property.
(Added Ord. 2005-22, § 2, eff. 4-16-05).

SEC. 13-304. TREE BEAUTIFICATION.

(a) **Master Tree Plan.** The Director is authorized to formulate a Master Tree Plan. Such Plan shall specify the species, spacing, and location of trees to be planted on public property, including parkways of the city. Such Plan shall include a Master Tree List and a Master Tree List-Parkway. The Master Tree List-Parkway shall include those trees which the Director determines may be planted in parkways without causing damage to any adjacent concrete improvement or underground utilities in such parkways. The Master Tree List shall include those trees which the Director determines may be planted in any public tree easement and public property, except parkways. The Director is authorized to amend, modify, and add to such Plan. All planting shall conform to such Plan. The Director shall consider the following factors in formulating such Plan:

(1) Such plan shall be coordinated with other established plans of the city; and

(2) Trees shall be selected and placed on an appropriate tree list based on such trees' desirable characteristics of growth and beauty, their root structure, and their adaptability to local climate and soil.

(3) The Director shall take into consideration species that are known to cause damage to concrete and street improvements and shall minimize or preclude the planting of those trees deemed to cause damage. The list may include provisions that require trees to be of virgin root stock so as to prevent the planting of trees with root stock of trees known to damage city infrastructure. Any property owner and/or his/her occupant who plants or causes to be planted trees that are not listed or that are listed as damaging in nature, shall at their sole expense remove or cause to be removed the unacceptable trees and replace them with trees approved and listed under the Master Tree Plan, as provided in this article.

(b) **Parkway Trees.** The city's policy shall be to plant in parkways only those trees included on the Master Tree List-Parkway. In selecting any particular species of trees from the Master Tree List-Parkway for planting in any parkway, the Director shall consider the following factors:

(1) Overhead and underground facilities surrounding or in the parkway;

(2) Location of any street and traffic signs;

(3) Width of the parkway and the location of any concrete installation adjacent thereto;

(4) Setback of any building from the parkway;

(5) Parkway's soil condition; and

(6) Existing landscape of the area.

(c) **New Development, Number and Size of Parkway Trees.** The Director shall cause to be planted, in parkways, or public tree easements, at not more than forty-foot intervals, at least one tree taken from a minimum of a five-gallon container for each lot or parcel. If the property owner desires more trees than the Master Tree Plan indicates that he is entitled to, or larger trees, or a combination of both, the Director may cause the planting of such tree or trees provided that such property owner pays the additional cost in advance and such trees, considering the criteria specified in subsection (b) of this section, are acceptable to the Director.

(d) **Existing Development.Residential Property Owner's Option.** Any residential property owner may request that a tree on the Master Tree List be planted in such property's front yard or side setback instead of the abutting parkway. The Director may cause the planting of such tree provided that such property owner gives a public tree easement to the city which provides as follows:

(1) The city, acting through the Director, is granted the right of access to such front yard or side yard setback solely for the purpose of planting, preserving, and, if necessary, removal of such tree;

(2) The property owner agrees not to remove such tree without the written permission of the Director; and

(3) The property owner agrees to pay for installation of such tree and agrees to irrigate and maintain such tree.

(e) **Commercial or Industrial Property.** Tree planting in a parkway fronting commercial or industrial property may be waived by the Director if he/she determines that such property owner's proposed or existing landscaping is consistent with the Master Tree Plan. (Added Ord. 2005-22, § 2, eff. 4-16-05; Am. Ord. 2015-39, § 10, eff. 1-9-16).

SEC. 13-305. TREE PRESERVATION.

(a) **Policy.** It shall be the city's policy to utilize whatever techniques, methods, and procedures are required to preserve, whenever feasible, all trees in the city including, but not limited to, trees which are affecting surface improvements or underground facilities or which are diseased, or located where construction is being considered or will occur.

(b) **By the City.** The Director shall be responsible for the preservation and, when required herein, the removal of all trees on public property.

(c) **By the Property Owner.** Every property owner or his/her occupant shall be responsible for the normal care, including watering, of trees in such property owner's abutting parkway, front yard or side yard setback, or in any public tree easement.

(d) **Tree Removal or Maintenance by Property Owners.** The Director may issue a permit to property owners to remove or maintain a street tree if all of the following apply:

(1) Tree removal or maintenance will occur under the direction of a certified arborist and completed by a City licensed contractor. Tree removal or maintenance must adhere to standards issued by the International Society of Arboriculture:

(2) All removal or maintenance costs are borne by the applicant. Removal or replacement of trees by Property Owners, which do not meet the removal criteria set forth in Section 13-305(g)(6), shall not utilize any City funding appropriated by the Council for the Street Tree Program in the Public Works Department; however, this section shall not preclude the City's ability to use discretionary infrastructure funds, if desired by the Council.

(3) An applicant shall pay a refundable permit fee for tree planting to the City in an amount established by City Council resolution and set forth in the master fee schedule. A city arborist shall inspect and verify applicant has completed planting of the replacement tree(s) at which time applicant's permit fee shall be refunded. Applicant's failure to plant replacement tree(s) as set forth in this section shall result in forfeiture of the permit fee, which shall be deposited into the city's Tree Trust Fund.

(4) The City, through the use of door hangers, shall notify homeowners of any proposed tree removals within two hundred feet of the front or side of their property line. These persons have fourteen days to protest the removal to the Director.

(5) The applicant must comply with all other permit conditions listed in this chapter including, without limitation, entering into a hold harmless agreement with the City;

(6) Trees shall be replaced by a replacement tree approved by the Director as set forth in the City's Approved Tree List. Alternatively, the applicant may pay a fee in lieu of replacement as set forth in Section 13-305(f).

(7) Trees on the Special Tree List in Section 13-306 or otherwise determined to be protected by the City are not eligible for removal or replacement under this Section.

An exception to this section applies to minor trimming to alleviate a dangerous condition presented with the Director's prior consent, by the property owner without a permit. Any such trimming must be performed in a manner that ensures tree preservation.

(e) **Permit Conditions.** The Director shall promulgate and implement permit procedures and standards to facilitate the issuance of such permits. The Director shall condition a tree permit on the following:

(1) That the applicant plant another tree in the place of the one removed or destroyed at the applicant's sole cost or pay a fee in lieu of replacing the tree(s) as set forth in this Section.

(2) That a particular species of tree, as determined by the City's Approved Tree List, be used as a replacement. The Director may select the species of tree that may be planted.

(3) That the applicant enters into a hold harmless agreement with the City which will, in part, indemnify the City, its officers, employees, and agents, from any liability arising from the applicant's activities in a form approved by the city attorney.

At a minimum a permit application shall include the number and location of each tree to be removed, the species and approximate size of the tree, the reason for removal and such additional information as the Director may require. The Director shall render his/her decision within thirty (30) days after the filing of the application for a permit. The Director may grant, conditionally grant, or deny the application. Any denial shall state the reasons for denial. The decision of the Director shall be mailed to the applicant and to all owners of record of the subject property on the same day the decision is made. In addition, the site or tree shall be posted with a sign by the Department for at least ten calendar days indicating the decision of the Director. No tree for which a Tree Removal Permit is required shall be removed until all conditions of the permit have been satisfied and the decision has become final.

(f) **Payment in-lieu of Fees.**

(1) Payment of a fee in-lieu-of replacing a removed tree shall be the same as the refundable permit fee for tree planting established by City Council resolution and set forth in the master fee schedule.

(2) The payment in-lieu-of fees will be used to purchase trees that will be planted within the public right-of-way or on other public property as determined by the Director. Where feasible, trees will be planted in the vicinity in which the tree(s) was removed .

(3) Payment of the in-lieu fee shall be made before the issuance of the Tree Removal Permit.

(g) **Tree Inspection and Removal by Director.** The Director may inspect, remove, or maintain trees from the public right-of-way, if the Director determines one or more of the following conditions exist:

(1) At such times and on such occasions as he deems appropriate, the Director shall inspect trees on any public property and on any private property if the trees overhang or project into public property.

(2) If any city-planted tree in the city appears to the Director to be dead, liable to fall, dangerous, poses a public nuisance including an obstruction to public travel and/or is not pruned or trimmed to a height of fourteen feet, six inches above the paved portion of the street to accommodate such vehicles as garbage trucks, buses, moving vans and street maintenance trucks, and seven feet above the pedestrian path of travel, the Director shall take the necessary corrective action.

(3) It shall be the responsibility of the property owner and/or his/her occupant to prevent any tree on his/her private property or in the abutting parkway, other than city-planted trees, from overhanging or projecting into public property, as provided in this subsection. The Director shall have the authority to require the property owner or his/her occupant to prune, trim, cut down or remove any such tree, or part or parts thereof, if it appears to the Director to be dead, structurally hazardous, dangerous, poses a public nuisance, an obstruction to public travel, or is not pruned or trimmed to a height of fourteen feet, six inches above the paved portion of the street to accommodate such vehicles as garbage trucks, buses, moving vans and street maintenance trucks and seven feet above the pedestrian path of travel. Except in case of immediate public danger, no such tree, shall be pruned, trimmed, cut down or removed by the Director unless the Director has given the property owner and/or his/her occupant ten (10) days' written notice to take corrective action. If the necessary corrective action is not taken by the property owner or his/her occupant within ten (10) days, the Director shall perform the services and the costs thereof shall be assessed to the property owner and/or occupant, including the cost of labor (including overhead), equipment and materials, and disposal of removed material pursuant to the procedures as set forth in Chapter 1, Article 5 of the Fresno Municipal Code.

In the event the Director determines that there is immediate public danger, the Director may cause the offending tree or portion thereof to be trimmed or removed without prior notice. The trimmed material shall be placed on the property of the responsible party, outside of the public right-of-way, for disposal by the responsible party. The Director shall cause to be provided to the responsible property owner, and/or occupant, notification of the corrective action taken by the city. The notice shall include a statement that the property owner and/or occupant is responsible for proper disposal of the trimmed material within ten (10) days. If the property owner and/or occupant fails to properly dispose of the trimmed material the city may cause

the material to be disposed of with the costs thereof assessed to the property owner and/or occupant pursuant to the procedures as set forth in Chapter 1, Article 5 of the Fresno Municipal Code.

(4) If any tree on public property is infected or infested with insects, pests or disease, the Director may cause such condition to be treated or, if any such tree is infected or infested to such a degree that such condition cannot be eradicated by treatment, the Director may order the removal and replacement of such tree.

(5) It shall be the responsibility of the property owner and/or his/her occupant to treat or remove any tree, grass or other vegetation on his/her private property or in the abutting parkway, other than city-planted trees, if it is so diseased or insect-infected as to constitute a public nuisance.

(6) The Director, after unsuccessfully utilizing all techniques, methods and procedures which he deems reasonable to save trees planted on public property which are dead, dying, in a dangerous condition, unsafe, a public nuisance, or likely to cause damage, shall remove and replace such trees.

(7) The Director may cause the removal of any tree on private property that is a public nuisance.

(8) Tree replacement ratios under this article shall be in the Director's discretion. For any tree removal occurring under this article, the tree replacement ratio shall be at least 1:1.

(h) **Interference with Employees.** No person shall interfere with or cause or permit any person to interfere with employees of the city who are engaged in the planting, preserving, maintaining, treating, trimming or removing of any tree or plant or related work in the city.

(i) **Other Unlawful Acts.** No person, except authorized city personnel, shall remove, destroy, deface or injure any tree on public property by any means including, but not limited to, the following:

(1) By pouring any material on any tree or on the ground which would be harmful to the tree;

(2) By attaching any sign or notice or other object on any tree or fastening any guy wire, cable, rope, nails or screws or any other device to any tree, except that agencies may, under the supervision of the Director, temporarily affix no parking signs to trees when necessary in conjunction with activities in the public interest, such as street improvement work, tree maintenance work, or parades;

(3) By causing or encouraging any unnecessary fire or burning near or around any tree;

(4) By constructing a concrete, asphalt, brick surface, or otherwise covering the ground within a four-foot radius of any tree so as to shut off air or water from the roots, except under written authority from the Director.

(j) **Unauthorized Plantings.**

(1) No person shall plant any tree in any public property of the city or public tree easement without written permission of the Director.

(2) The Director may cause to be removed a tree planted within any parkway or public tree easement without a written permit of the Director. The Director shall notify the property owner and/or his/her occupant in writing, listing the unlawfully planted tree(s) ordering their removal within ten days. In the event the removal is not accomplished within a specified time, the Director is authorized to remove, or cause to be removed, such trees and all cost thereof shall be assessed to the property owner and/or occupant pursuant to the procedures as set forth in Chapter 1, Article 5 of the Fresno Municipal Code. The charge assessed shall be equal to the cost of labor (including overhead), equipment, disposal costs and materials.

(k) **Construction Areas.**

(1) Any tree growing upon public property which is to be removed for construction purposes shall be replaced, if it is possible to do so in accordance with the city's tree planting policy. If the Director determines that a tree can be replaced, the person causing its removal shall, at his/her own expense, remove and replace such tree with a tree in a location and of a size and species to be determined by the Director. If the Director determines that a tree cannot be replaced, the person causing its removal shall, at his/her own expense, remove the tree and pay to the city the replacement value of the tree, as fixed by the Director.

(2) Any tree growing upon public property near any excavation, construction or street work shall be sufficiently guarded and protected by those responsible for such work so as to prevent any injury to said tree. No person shall excavate any ditches, tunnels or trenches, or install pavement adjacent to any public tree without the written permission of the Director.

(3) Whenever any parkway is paved, openings at intervals and sizes determined by the Director shall be left unpaved or uncovered in a manner acceptable to the Director.

(Added Ord. 2005-22, § 2, eff. 4-16-05; Ord. No. 2005-124, § 1, eff. 12-15-05; Am. Ord. 2018-14, § 1, eff. 5-10-18; Am. Ord. 2024-038, § 1, eff. 12-5-24).

SEC. 13-306. SPECIAL TREE LIST.

The Director is authorized to develop and maintain a Special Tree List. Such list is intended to include those trees of special interest to the city, including, but not limited to, landmark trees or trees of outstanding size or beauty. The City Council may also designate trees on the Special Tree List by resolution. The Director shall give and encourage others to give such trees special treatment and care to retain and protect them.

The Public Works Director shall review all tree removal requests for special trees filed independent of a development application. The Director shall render his/her decision within thirty (30) days after the filing of the request. Any denial shall state the reasons for denial.

The decision of the Director shall be mailed to the applicant and to all owners of record of the subject property on the same day the decision is made. In addition, the site or tree shall be posted with a sign by the Department for at least ten calendar days indicating the decision of the Director.

Decisions of the Public Works Director may be appealed to the City Council by the Councilmember of the district in which the project is located or by the Mayor, either on their own initiative or upon receiving a petition from any person. Appeals must be initiated by filing a letter with the Public Works Director. Such action shall require a statement of reasons for the appeal. Unless otherwise specified in a governing State or federal law, all appeals shall be filed with the Public Works Director in writing within 15 days of the date of the decision.
(Added Ord. 2005-22, § 2, eff. 4-16-05; Am. Ord. 2018-14, § 2, eff. 5-10-18).

SEC. 13-307. DEPARTMENTAL COOPERATION.

(a) The Director and the city departments and agencies shall cooperate in the enforcement of the provisions of this article. Such cooperation includes, but is not limited to, the provisions of this section.

(b) The Director of Public Works, or his/her designee, shall notify the Director of Parks and Recreation, or his/her designee of any permits issued for new improvements which might require the removal of, or cause injury to any tree in a neighborhood, community and regional park, or in a neighborhood, community and regional trail (including related linear park), or which might interfere with the fulfillment of the Master Tree Plan.

(c) If the installation or maintenance of any overhead or underground facility by a public utility, telephone company, common carrier, or franchisee is likely to cause injury to or any defacing, pruning, or scarring of any tree on city public property, such public utility, telephone company, common carrier, or franchisee shall, in addition to and not in lieu of any legal or contractual obligations owed, discuss with the Director alternatives to avoid such injury to or defacing, pruning or scarring of such tree, and shall be bound by the Director's decision regarding the implementation of any such alternative or the implementation of measures designed to protect such tree. Notwithstanding the foregoing, public utilities subject to the jurisdiction of the State Public Utilities Commission may take such action as may be necessary to comply with the safety regulations of the Commission and as may be necessary to maintain a safe operation of their facilities, provided the Director may stop any tree pruning performed by a utility company if good pruning practices are not being followed.
(Added Ord. 2005-22, § 2, eff. 4-16-05).

SEC. 13-308. NONLIABILITY OF CITY.

Nothing in this article shall be deemed to impose any liability upon the city or upon any of its officers or employees nor to relieve the owner and occupant of any private property from the duty to keep trees upon private property or under his/her control or upon sidewalks and parkways in front of such private property in a safe condition.
(Added Ord. 2005-22, § 2, eff. 4-16-05).

SEC. 13-309. APPEALS.

Any decision of the Director under this Article 3 including relating to the Master Tree Plan, Master Tree List, Master Tree List-Parkway, utility construction, emergency hazard removal, installation or maintenance, or requiring notice to a private property owner and/or his/her occupant, may be appealed de novo to the City Council by any aggrieved person (appellant), by filing a written request with the City Clerk stating the grounds for appeal and signed by appellant, within fifteen (15) days of the date of service of the decision of the Director. After public hearing, the Council shall have authority to confirm, modify, or overrule the decision of the Director and the decision of Council shall be final. For purposes of this article, service of the decision shall be the date said decision, if written, is mailed to the appellant, or, if the decision is given orally, service shall be the date the decision is orally given to the appellant. If no appeal is timely taken to the Council, the decision of the Director shall become final.
(Added Ord. 2005-22, § 2, eff. 4-16-05).

SEC. 13-310. TREE TRUST FUND.

All fees, fines, or assessments as defined in this chapter or the tree policy will be deposited in a Tree Trust Fund and reinvested into the City's urban forest.
(Added Ord. 2018-14, § 3, eff. 5-10-18).

SEC. 13-311. VIOLATIONS.

Any person who removes or causes to be removed any tree in violation of this article shall be required to:

(a) Apply for and obtain a Tree Removal Permit and pay double the cost of a permit, which shall be non-refundable, and

(b) Act as the responsible for property restoration which shall include:

(1) Replacing the tree(s) removed with tree(s) of reasonably equivalent value and largest size feasible to the tree(s) removed or alternatively paying the replacement cost of the removed tree(s).

(2) The number, size, and location of the replacement trees shall be determined by the Director after receipt or a report and recommendation by a licensed arborist.

(Added Ord. 2018-14, § 4, eff. 5-10-18).

ARTICLE 4 STREET GRADES

Sec. 13-401. Establishment of Official Street Grade Monument.

SEC. 13-401. ESTABLISHMENT OF OFFICIAL STREET GRADE MONUMENT.

(a) That for the purpose of establishing a record of the official grades for certain streets of the City of Fresno, it is hereby declared that the bronze metal top of that certain concrete monument located at the northwest corner of the City Hall, at "M" and Fresno Streets, in the City of Fresno, be taken as a bench mark, the elevation of which shall be two hundred ninety-two and 29/100 feet above an assumed datum-plane at or near the elevation of sea level, for all that area lying between the South property line of SHAW AVENUE and the north property line of CHURCH AVENUE, and that portion lying between the east property line of MARKS AVENUE and the west property line of CHESTNUT AVENUE.

(b) For the purpose of determining the official grades of all streets in the City of Fresno lying outside of the area described above, including the boundary avenues, the United States Coast and Geodetic Survey Datum shall be used.

(c) The grade book of the City Engineer is hereby entitled the Official Grade Book and the figures shown in said grade book are hereby declared to be the official elevations, in feet, of curbs and gutters, at the points indicated, from which the grades are to be determined. (Added Ord. 5699, 1960).

ARTICLE 5 TELEPHONES IN PUBLIC PLACES

Sec. 13-501. Telephones Permitted in Public Places.
Sec. 13-502. Application.
Sec. 13-503. Telephone Permit May be Issued.
Sec. 13-504. Permit Terms.
Sec. 13-505. Permit Fee.

SEC. 13-501. TELEPHONES PERMITTED IN PUBLIC PLACES.

Whenever it is desired that a public telephone be installed on or over public property owned or controlled by the City, such installation may be permitted pursuant to the following procedure.
(Added Ord. 6439, 1964).

SEC. 13-502. APPLICATION.

An applicant for installation of a public telephone on public property owned or controlled by the city, shall apply in writing therefor to the Director of General Services upon a form approved by the Director. The application shall contain the name and address of the applicant, a description of the telephone installation, its exact location, telephone and electrical services thereto, and a plot plan thereof, and such other and further information as the Director may require.
(Added Ord. 6439, 1964; Am. Ord. 87-110, § 1, eff. 9-25-87).

SEC. 13-503. TELEPHONE PERMIT MAY BE ISSUED.

The Director of General Services is authorized to issue such permits, with the approval of the City Manager, from time to time. The Director and the City Manager shall approve the number and location of such public telephones so as to best serve the public interest. The installation of the public telephones is to be in a manner acceptable to the Director.
(Added Ord. 6439, 1964; Am. Ord. 87-110, § 2, eff. 9-25-87).

SEC. 13-504. PERMIT TERMS.

Permits issued pursuant to this article shall include the following provisions:

(a) The permittee shall maintain the public telephones and any associated booths in good repair and safe and sightly condition at permittee's expense and to the satisfaction of the Director of General Services. The permittee shall ensure that the public telephones and any associated booths comply with the current Federal and State regulations for accessibility for persons with disabilities, including signage, clearances, installation height, floor area, and telephone equipment.

(b) The permittee shall save the city harmless from any and all losses, claims, or judgments for damages to any person or property arising from the installation, maintenance, or presence of the public telephones.

(c) The permit shall be issued subject to the successful negotiation of a contract document which details the specific remuneration to be paid to the city for a term not to exceed five years.

(d) With the approval of the City Manager, the Director of General Services may give the permittee written notice of revocation of the permit. Within thirty days the permittee shall remove its installation.

The permittee in its discretion may remove any telephone installation after sixty days written notice to the city. In the event of the removal by the permittee of any such installation or installations, either at the request of the city or in the exercise of the permittee's discretion, permittee shall restore the public property as nearly as practicable to its condition prior to such installation or installations, or to the condition which would have existed if the telephone had not been installed. In addition, the permittee shall compensate the city for any lost revenue during the contract period as a result of the removal of telephonic equipment.
(Added Ord. 6439, 1964; Am. Ord. 87-110, § 4, eff. 9-25-87; Am. Ord. 2011-6, § 6, eff. 4-10-11).

SEC. 13-505. PERMIT FEE.

The permittee shall pay the city an amount as set forth in the contract document for each public telephone installed pursuant to this article. Payments shall be made to the city not less frequently than monthly.
(Added Ord. 6439, 1964; Am. Ord. 87-110, § 5, eff. 9-25-87).

ARTICLE 6 UNDERGROUND UTILITY DISTRICTS

Sec. 13-601. Title.
Sec. 13-602. Definitions.
Sec. 13-603. Public Hearing by Council.
Sec. 13-604. Council May Designate Underground Utility Districts by Resolution.
Sec. 13-605. Unlawful Acts.
Sec. 13-606. Exception, Emergency or Unusual Circumstances.
Sec. 13-607. Other Exceptions.
Sec. 13-608. Notice to Property Owners and Utility Companies.
Sec. 13-609. Responsibility of Utility Companies.
Sec. 13-610. Responsibility of Affected Persons.
Sec. 13-611. Responsibility of City.
Sec. 13-612. Extension of Time.
Sec. 13-613. Recordation of District.
Sec. 13-614. Amendment of Resolution.

SEC. 13-601. TITLE.

This article shall be known as the Fresno City Underground Utility District Ordinance. (Added Ord. 68-170, 1968).

SEC. 13-602. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning, and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 3 of Chapter 1 of this Code shall also govern the construction, meaning, and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Commission" means the Public Utilities Commission of the State of California.

(c) "Director" means the Public Works Director.

(d) "District" or "Underground Utility District" means that area in the city within which any poles, overhead wires, and associated overhead structures are prohibited as such area is described in a resolution adopted pursuant to the provisions of Section 13-604 hereof, or pursuant to other competent authority.

(e) "Person" means and includes individuals, firms, corporations, partnerships and their agents and employees.

(f) "Poles, overhead wires and associated overhead structures" means poles, towers, supports, wires, conductors, guys, stubs, platforms, crossarms, braces, transformers, insula-

tors, cutouts, switches, communication circuits, appliances, attachments and appurtenances located aboveground within a District and used or useful in supplying electric, communication, cable television, or similar associated service.

(g) "Utility" means all persons or entities supplying electric, communication, or similar or associated service by means of electrical materials or devices. (Added Ord. 68-170, 1968; Am. Ord. 79-139, § 1, 9-21-79).

SEC. 13-603. PUBLIC HEARING BY COUNCIL.

The Council may from time to time call public hearings to ascertain whether the public necessity, health, safety, or welfare requires the full removal of poles, overhead wires and associated overhead structures within designated areas of the city and the full underground installation of wires and facilities for supplying electric, communication, cable television, or similar or associated service, subject to such exceptions as may be authorized by Section 13-607. The City Clerk shall notify all affected property owners as shown on the last assessment roll and utilities concerned by mail of the time and place of such hearings at least ten days prior to the date thereof. Each such hearing shall be open to the public and may be continued from time to time. At each such hearing all persons interested shall be given an opportunity to be heard. The decision of the Council shall be final and conclusive. (Added Ord. 68-170, 1968; Am. Ord. 68-175, 1968).

SEC. 13-604. COUNCIL MAY DESIGNATE UNDERGROUND UTILITY DISTRICTS BY RESOLUTION.

If, after any such public hearing, the Council finds that the public necessity, health, safety, or welfare requires such removal and such underground installation within a designated area, for the reason that such acts will avoid or eliminate an unusually heavy concentration of overhead facilities; or streets involved are extensively used and carry a heavy volume of traffic; or the facilities or streets involved adjoin or pass through scenic, civic, park, recreation, or other special areas in which undergrounding is of a special necessity or effect; the Council shall, by resolution, declare such designated area an Underground Utility District and order such removal and underground installation. Such resolution shall fix the time within which such removal and underground installation shall be accomplished and within which affected persons must be ready to receive underground service. A reasonable time shall be allowed for such removal and underground installation, having due regard for the availability of labor, materials, and equipment necessary for such removal and for the installation of such underground facilities as may be occasioned thereby. The resolution shall include a description of the area comprising such district. The description may be by adoption of a map or drawing by reference. Whenever the description refers to a street or alley, the reference shall be to the boundaries of the street or alley; and the district area shall also include all yards required by the Zoning Ordinance along the street or alley on all properties abutting the street or alley, unless the resolution otherwise provides. (Added Ord. 68-170, 1968, Am. Ord. 68-175, 1968).

SEC. 13-605. UNLAWFUL ACTS.

Whenever the Council creates an Underground Utility District and orders the removal of poles, overhead wires, and associated overhead structures therein as provided in Section 13-604 hereof, it shall be unlawful for any person or utility to erect, construct, place, keep, maintain, continue, employ, or operate poles, overhead wires, and associated overhead structures in the District after the date when said overhead facilities are required to be removed by such resolution, except as said overhead facilities may be required to furnish service to an owner or occupant of property prior to the performance by such owner or occupant of the underground work necessary for such owner or occupant to continue to receive utility service as provided in Section 13-610, and for such reasonable time, as determined by the Director, required to remove said facilities after said work has been performed. (Added Ord. 68-170, 1968).

SEC. 13-606. EXCEPTION, EMERGENCY OR UNUSUAL CIRCUMSTANCES.

Notwithstanding the provisions of this article, the Director may grant special permission, on such terms as the Director may deem necessary and proper, in case of an emergency or unusual circumstance or in case of a construction project, to utilities or governmental agencies to temporarily erect, construct, install, maintain, use, or operate poles, overhead wires, and associated overhead structures. (Added Ord. 68-170, 1968).

SEC. 13-607. OTHER EXCEPTIONS.

In any resolution adopted pursuant to Section 13-604 hereof, the city may authorize any or all of the following exceptions:

(a) Any municipal facilities or equipment installed under the supervision and to the satisfaction of the Director.

(b) Poles, or electroliers used exclusively for street lighting, and conductors which serve a single pole or electrolier.

(c) Overhead wires carrying electric power at primary or transmission voltage (exclusive of supporting structures) crossing (at approximately a right angle to the main axis of the District at that point, as the Council may approve) any portion of a District within which overhead wires have been prohibited.

(d) Poles, overhead wires, and associated overhead structures used for the transmission of electric energy at nominal voltages in excess of 21,000 volts.

(e) Overhead wires attached to the exterior surface of a building by means of a bracket or other fixture and extending from one location on the building to another location on the same building or to an adjacent building without encroaching upon or over any public street.

(f) Equipment appurtenant to underground facilities, such as surface-mounted transformers, pedestal-mounted terminal boxes and meter cabinets, and concealed ducts.

(g) Poles, overhead wires, and associated overhead structures presently in existence at the time of adoption of the resolution which had been theretofore approved by the city as complying with requirements of partial undergrounding of the area, i.e., those which were erected as a "streamline" system or other partial system of similar denomination. (Added Ord. 68-170, 1968; Am. Ord. 95-78, § 4, eff. 12-1-95).

SEC. 13-608. NOTICE TO PROPERTY OWNERS AND UTILITY COMPANIES.

Within thirty days after the effective date of a resolution adopted pursuant to Section 13-604 hereof, the City Clerk shall notify all affected utilities and all affected property owners, as shown on the last assessment roll, within the District created by said resolution of the adoption thereof. The City Clerk shall further notify such affected property owners of the necessity that, if they or any person occupying such property desire to continue to receive electric, communication or similar, or associated service, they or such occupant shall provide all necessary facility changes on their premises so as to receive such service from the lines of the supplying utility or utilities at a new location. (Added Ord. 68-170, 1968).

SEC. 13-609. RESPONSIBILITY OF UTILITY COMPANIES.

If underground construction is necessary to provide utility service within a District created by any resolution adopted pursuant to Section 13-604 hereof, the supplying utility shall furnish that portion of the conduits, conductors, and associated equipment required to be furnished by it under its applicable rules, regulations, and tariffs on file with the Commission. (Added Ord. 68-170, 1968).

SEC. 13-610. RESPONSIBILITY OF AFFECTED PERSONS.

(a) Every person owning, operating, leasing, occupying, or renting a building or structure within a District shall construct and provide that portion of the service connection on his property between the facilities referred to in Section 13-609 and the termination facility on or within said building or structure being served; all in accordance with applicable rules, regulations, and tariffs on file with the Commission.

(b) In the event any person owning, operating, leasing, occupying, or renting said property does not comply with the provisions of subsection (a) of this section within the time provided for in the resolution enacted pursuant to Section 13-604 hereof, or pursuant to other competent authority, the Director shall post written notice on the property being served and thirty days thereafter shall have the authority to order the disconnection and removal of any and all overhead service wires and associated facilities supplying utility service to said property. Upon such order, any affected utility shall so disconnect and remove the wires and facilities. (Added Ord. 68-170, 1968; Am. Ord. 79-139, § 2, 9-21-79).

SEC. 13-611. RESPONSIBILITY OF CITY.

The city shall remove at its own expense all city-owned equipment from all poles required to be removed hereunder in ample time to enable the owner or user of such poles to remove the same within the time specified in the resolution enacted pursuant to Section 13-604 hereof. (Added Ord. 68-170, 1968).

SEC. 13-612. EXTENSION OF TIME.

In the event that any act required by this article or by a resolution adopted pursuant to Section 13-604 hereof cannot be performed within the time provided on account of shortage of materials, war, restraint by public authorities, strikes, labor disturbances, civil disobedience, or any other similar circumstances beyond the control of the actor, then the time within which such act will be accomplished will be determined and extended by the Director for a period equivalent to the time of such limitation.
(Added Ord. 68-170, 1968).

SEC. 13-613. RECORDATION OF DISTRICT.

The City Clerk shall file by map or otherwise, the description of the area comprising a district declared by the Council, for recording by the Recorder of Fresno County.
(Added Ord. 68-170, 1968).

SEC. 13-614. AMENDMENT OF RESOLUTION.

Whenever any resolution adopted pursuant to this article is to be amended to change any provision thereof (other than a change of district boundaries), the procedure of this article shall be followed except that only utility companies and affected property owners need be given required notices.
(Added Ord. 68-170, 1968).

CHAPTER 14

VEHICLES AND TRAFFIC

Art. 1. Definitions.
Art. 2. Administration.
Art. 3. Enforcement and Obedience to Traffic Regulations.
Art. 4. Traffic Control Devices.
Art. 5. Turning Movements.
Art. 6. One-way Streets and Alleys.
Art. 7. Special Stops Required.
Art. 8. Miscellaneous Driving Rules.
Art. 9. Pedestrian Regulations.
Art. 10. Stopping, Standing and Parking for Certain Purposes or in Certain Places.
Art. 11. Stopping, Standing or Parking Restricted or Prohibited on Certain Streets.
Art. 12. Stopping for Loading or Unloading Only.
Art. 13. Restricted Use of Certain Streets.
Art. 14. Parking Meters.
Art. 15. Special Speed Zones.
Art. 16. Traffic Regulations in City Parks and Playgrounds.
Art. 17. Regulations for Bicycles.
Art. 18. Traffic Regulations in Mall, Alleys in the Mall Area and Service Areas.
Art. 19. Use of Aircraft on Streets.
Art. 20. Residential Permit Parking.
Art. 21. Funeral Processions.
Art. 22. Reserved.
Art. 23. Specified Veterans' Permit Parking.
Art. 24. City of Fresno Parade and Other Special Events.
Art. 25. Median Island Safety.
Art. 26. "Semi" Truck and Trailer Parking.

ARTICLE 1 DEFINITIONS

Sec. 14-101. Definitions of Words and Phrases.
Sec. 14-102. Vehicle Code Definitions to be Used.
Sec. 14-103. Other Definitions.

SEC. 14-101. DEFINITIONS OF WORDS AND PHRASES.

The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this article. (Rep. and Added Ord. 6130, 1962).

SEC. 14-102. VEHICLE CODE DEFINITIONS TO BE USED.

Whenever any words or phrases used herein are not defined, but are defined in the Vehicle Code of the State of California and amendments thereto, such definitions shall apply. (Rep. and Added 6130, 1962, based on former Sec. 10-101).

SEC. 14-103. OTHER DEFINITIONS.

(a) "Adjacent" shall mean near, close, or abutting; for example, an Industrial District across the street or highway from a Residential District shall be considered as "Adjacent."

"Alley" is any street less than twenty-five feet in width between property lines.

(b) "Bank service zone" is the space adjacent to a curb reserved during certain hours and days for the exclusive use of vehicles whose operators or passengers are transacting or waiting in line to transact business at a special device installed at the curb to handle banking transactions.

"Bicycle" means a device upon which any person may ride, propelled by human power through a belt, chain or gears, and having either two or three wheels in a tandem or tricycle arrangement.

"Bicycle Lane" or "Bike Lane" means any lane within the roadway designated by signs and markings for the operation of bicycles.

"Bicycle Path" or "Bike Path" means any area physically separated from the roadway and designated for the operation of bicycles.

"Bicycle Route" or "Bike Route" means any route recommended for bicycle travel which may include public streets, bicycle lanes, or bicycle paths.

"Bicycle Taxi" means a bicycle designed to carry passengers for fare.

"Bicycle Way" or "Bike Way" means the same as "Bicycle Route" or "Bike Route".

(c) "Central business district" includes all of that portion of this city bounded by and including the following streets:

(1) Southern Pacific tracks, from Calaveras to Mono;

(2) Calaveras Street, from Southern Pacific tracks to "L" ;

(3) "L" Street, from Calaveras to Merced;

(4) Merced Street, from "L" to "Q" ;

(5) "Q" Street, from Merced to Kern;

(6) Kern Street, from "Q" to "L" ;

(7) "L" Street, from Kern to Mono;

(8) Mono Street, from "L" to Southern Pacific tracks.;

"Congested traffic" means a condition where little or no vehicular flow is occurring and a significant number of vehicles are not promptly and swiftly moving forward because of the heavy traffic load on a particular street or highway.

"Core Area" means any of the following areas in the City:

(1) Ventura Avenue (State Highway 180) from Broadway to Cedar Avenue.

(2) Kings Canyon Road (State Highway 180) from Cedar Avenue to Willow Avenue.

(3) Blackstone Avenue from Hedges Avenue to Nees Avenue.

(4) Belmont Avenue from Weber Avenue to Abby Avenue.

(5) Broadway from Divisadero Street to Santa Clara Street.

"Cruising" means the repetitive driving of a motor vehicle past a traffic control point in traffic which is congested at or near such traffic control point, as determined by the highest ranking Fresno Police Department officer on duty within the affected core areas, three of more times within a three-hour period, after having driven past said control point two times within the same period and having been given an adequate written notice by a peace officer after the second passing, that further driving past the traffic control point shall constitute a violation of this section.

"Curb" means the lateral boundary of the roadway whether such curb be marked by curbing construction, or not so marked; the word "curb" as herein used shall not include the line dividing the roadway of a street from parking strips in the center of a street, nor from tracks or rights-of-way of public utility companies.

"Curb postal mailing zone" means the space adjacent to a curb reserved for the exclusive use of vehicles during the depositing of mail in special mail curb postal boxes.

(d) "Divisional island" means a raised located in the roadway and separating opposing or conflicting streams of traffic.;

(e) (Reserved).

(f) (Reserved).

(g) (Reserved).

(h) "Holidays" means January 1st, February 12th, the third Monday in February, the last Monday in May, July 4th, the first Monday in September, September 9th, the second Monday

in October, November 11th, Thanksgiving Day, December 25th, and any day or part of a day declared by the Council, by ordinance or resolution, to be a holiday. If January 1st, February 12th, July 4th, September 9th, or December 25th falls on a Sunday, the Monday following is a holiday.

(i) (Reserved).

(j) (Reserved).

(k) (Reserved).

(l) "Limited-access roadway" means any highway, street or roadway in respect to which owners or occupants of abutting property or lands and other persons have no legal right of access to or from same, except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

"Loading zone" means the space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

(m) (Reserved).

(n) (Reserved).

(o) "Official car zone" means the space adjacent to a curb reserved for the exclusive use of vehicles belonging to governmental agencies which are equipped with State of California exempt license plates or containing a permit in the windshield issued by an official agency authorized to issue such permits.

"Official Time Standard," whenever certain hours are named herein, shall mean standard time or daylight saving time as may be in current use in this city.

(p) "Park" means to stand or leave standing any vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading of passengers or materials.

"Parking meter" means any mechanical device installed adjacent to a parking meter space for the purpose of recording the period of time for occupancy of such parking meter space by any vehicle.

"Parking meter space" includes the area or space adjacent to a parking meter upon any street or upon any city-owned off-street parking lot designated by lines or other markings and of sufficient size to permit the parking of only one vehicle, or up to four motorcycles.

"Parking meter zone" is an area described and established by ordinance as a zone within which the parking of vehicles shall be controlled, regulated and inspected with the aid of parking meters.

"Parkway" means that portion of a street other than a roadway or a sidewalk.

"Passenger loading zone" means the space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

"Pedestrian" means any person afoot or using a wheelchair. Individuals using other power-driven mobility devices because of a mobility disability may be classified as pedestrians if the devices can be safely operated pursuant to City policy and consistent with the Americans with Disabilities Act.

"Police officer" means every officer of the Police Department of this city or any other officer authorized to regulate traffic or to make arrests for violations of traffic regulations.

(q) (Reserved).

(r) (reserved).

(s) "Stop," when required, means complete cessation of movement.

"Stop or stand" when prohibited, means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device.

(t) "Taxicab stand" means the space adjacent to a curb reserved for the legal parking of taxicabs while awaiting employment.

"Traffic" includes pedestrian, ridden or herded animals, vehicles, and other conveyances either singly or together while using any street for purposes of travel.

"Traffic control point" means a location along a public street or highway utilized by a Fresno Police Department officer on duty in the affected areas as an observation point in order to monitor traffic conditions.

(u) (Reserved).

(v) "Vehicle Code" means the Vehicle Code of the State of California.

(w) "West Fresno Business district" includes all that portion of this city bounded by and including the following streets:

(i) 99 Freeway right-of-way, from Fresno Street to Inyo Street;

(ii) Inyo Street, from 99 Freeway right-of-way to "G" Street;

(iii) "G" Street, from Inyo to Fresno Street;

(iv) Fresno Street, from "G" Street to the 99 Freeway right-of-way.

(x) (Reserved).

(y) (Reserved).

(z) (Reserved).

(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-102; Am. Ord. 6511, 1964; Am. Ord. 76-24, § 1, eff. 4-18-76; Am. Ord. 76-126, § 2, eff. 1-23-77; Am. Ord. 83-134, § 1, eff. 10-28-83; Am. Ord. 89-136, §§ 1, 2, eff. 12-8-89; Am. Ord. 93-4, § 1, eff. 2-12-93; Am. Ord. 2003-74, § 1, eff. 10-5-03; Am. Ord. 2006-74, § 1, eff. 7-22-06; Am. Ord. 2011-6, § 7, eff. 4-10-11).

ARTICLE 2 ADMINISTRATION

Sec. 14-201. City Traffic Engineer.
Sec. 14-202. Powers and Duties of City Traffic Engineer—Delegation.
Sec. 14-203. Emergency and Experimental Regulations.

SEC. 14-201. CITY TRAFFIC ENGINEER.

The office of City Traffic Engineer is hereby established under the Director of Public Works. The City Traffic Engineer shall exercise the powers and duties as approved in this chapter and in the other provisions of the Code relating to traffic.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 89-116, § 1, eff. 10-27-89).

SEC. 14-202. POWERS AND DUTIES OF CITY TRAFFIC ENGINEER—DELEGATION.

It shall be the general duty of the City Traffic Engineer to determine the installation and proper timing and maintenance of traffic control devices and signals, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering and traffic investigations of traffic conditions and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by provisions of this Code. Whenever, by the provisions of this chapter a power is granted to the City Traffic Engineer or a duty imposed upon him, the power may be exercised or the duty performed by his deputy or by a person authorized in writing by him.
(Orig. Ord. 3811; Am. Ord. 4789, 1955; Rep. and Added Ord. 6130, 1962).

SEC. 14-203. EMERGENCY AND EXPERIMENTAL REGULATIONS.

(a) The Chief of Police is hereby empowered to place or remove or cause to be placed or removed signs, signals and markings temporarily to cover emergencies, special conditions or events. Such signs, signals and markings shall be removed or reinstated in such a manner to restore the original traffic control immediately upon termination of the emergency, condition or event unless otherwise directed by the Council.

(b) The City Traffic Engineer is hereby empowered to make regulations necessary to make effective the provisions of this chapter, to cover emergencies or special conditions and to make temporary or experimental regulations. No such temporary or experimental regulation shall remain in effect for more than ninety days. In the event that after ninety days the experimental regulations have proved satisfactory, they may be placed into effect permanently by Council authorization.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

ARTICLE 3 ENFORCEMENT AND OBEDIENCE TO TRAFFIC REGULATIONS

Sec. 14-301. Authority of Police and Fire Department Officials.
Sec. 14-302. Persons Other Than Officials Shall Not Direct Traffic.
Sec. 14-303. Infractions.
Sec. 14-304. Required Obedience to Traffic Ordinance.
Sec. 14-305. Traffic Regulations Apply to Persons Riding Bicycles, Shared Mobility Devices or Animals.
Sec. 14-306. Obstruction or Interference with Police or Authorized Officer.
Sec. 14-307. Public Employees to Obey Traffic Regulations.
Sec. 14-308. Exemption of Certain Vehicles.
Sec. 14-309. When Vehicles May Be Removed from Streets and City-Owned Parking Lots or Immobilized.
Sec. 14-310. Enforcement of Traffic Laws.
Sec. 14-311. Parking and Use of Shared Mobility Devices.

SEC. 14-301. AUTHORITY OF POLICE AND FIRE DEPARTMENT OFFICIALS.

Officers of the Police Department and such other persons as are designated by the Chief of Police are hereby authorized to direct all traffic by voice, hand, audible or other signal in conformance with traffic laws, except that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the Police Department or members of the Fire Department may direct traffic as conditions may require, notwithstanding the provisions to the contrary contained in this Code or the Vehicle Code.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-302. PERSONS OTHER THAN OFFICIALS SHALL NOT DIRECT TRAFFIC.

No person other than an officer of the Police Department or members of the Fire Department or a person authorized by the Chief of Police or a person authorized by law shall direct or attempt to direct traffic by voice, hand or other signal, except that persons may operate, when and as herein provided, any mechanical pushbutton signal erected by order of the City Traffic Engineer.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-303).

SEC. 14-303. INFRACTIONS.

Notwithstanding the provisions of Section 1-304(a), violation of any provision of this chapter is an infraction unless otherwise specified.
(Added Ord. 75-44, § 4, eff. 6-2-75; Am. Ord. 76-64, § 2, eff. 7-1-76; Am. Ord. 80-143, § 1, eff. 10-17-80).

SEC. 14-304. REQUIRED OBEDIENCE TO TRAFFIC ORDINANCE.

No pedestrian, or person driving a vehicle or other conveyance on any street, shall do any act prohibited by, or fail to perform any act required by, any provision of this chapter applicable to such pedestrian or person.
(Rep. and Added Ord. 6130, 1962).

SEC. 14-305. TRAFFIC REGULATIONS APPLY TO PERSONS RIDING BICYCLES, SHARED MOBILITY DEVICES OR ANIMALS.

Every person riding a bicycle, a shared mobility device as defined in Section 9-3403 or riding or driving an animal upon a highway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this Chapter, except those provisions which by their very nature can have no application.
(Rep. and Added Ord. 6130, 1962; Am. Ord. 2019-034, § 2, eff. 11-11-19).

SEC. 14-306. OBSTRUCTION OR INTERFERENCE WITH POLICE OR AUTHORIZED OFFICER.

No person shall interfere with or obstruct in any way any police officer or other officer or employee of this city in their enforcement of the provisions of this chapter. The removal, obliteration or concealment of any chalk mark or other distinguishing mark used by any police officer or other employee or officer of this city in connection with the enforcement of the parking regulations of this chapter shall, if done for the purpose of evading the provisions of this chapter, constitute such interference or obstruction. Violation of this section is a misdemeanor.
(Rep. and Added Ord. 6130, 1962; Am. Ord. 80-143, § 2, eff. 10-17-80).

SEC. 14-307. PUBLIC EMPLOYEES TO OBEY TRAFFIC REGULATIONS.

The provisions of this chapter shall apply to the operator of any vehicle owned by or used in the service of the United States Government, this state, any county or city, and it shall be unlawful for any said operator to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by the Vehicle Code.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-304).

SEC. 14-308. EXEMPTION OF CERTAIN VEHICLES.

(a) The provisions of this chapter regulating the operation, parking and standing of vehicles shall not apply to vehicles operated by the Police or Fire Department, any public ambulance or any public utility vehicle or any private ambulance, which public utility vehicle or private ambulance has qualified as an authorized emergency vehicle, when any vehicle mentioned in this section is operated in the manner specified by the Vehicle Code in response to an emergency call.

(b) The foregoing exemptions shall not, however, relieve the operator of any such vehicle from obligation to exercise due care for the safety of others or the consequences of his willful disregard of the safety of others.

(c) The provisions of this chapter regulating the parking or standing of vehicles shall not apply to any vehicle of a city department or public utility while necessarily in use for construction or repair work or any vehicle owned or operated by the United States Post Office Department while in use for the collection, transportation or delivery of United States mail.

(d) The provisions of this chapter regulating the parking or standing of vehicles on public streets and highways in metered or nonmetered one-hour or two-hour parking zones shall not apply to the following:

(1) Public utility service vehicles subject to an agreement with the city, in accordance with rules and regulations as may be established from time to time by the Public Works Director governing such agreements. For parking in metered parking zones, such agreements shall provide for a method of payment to the city of not less than those amounts which would otherwise be payable in the metered parking zone.

(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-306; Am. Ord. 71-102, 1971; Am. Ord. 81-131, § 1, eff. 11-6-81; Am. Ord. 2003-83, § 2, eff. 10-21-03; Am. Ord. 2004-116, § 2, 12-5-04; Am. Ord. No. 2008-11, § 1, eff. 4-14-08; Am. Ord. 2008-65, § 1, eff. 12-15-08).

SEC. 14-309. WHEN VEHICLES MAY BE REMOVED FROM STREETS AND CITY-OWNED PARKING LOTS OR IMMOBILIZED.

(a) Any regularly employed and salaried officer of the Police Department of the city may remove or cause to be removed:

(1) Any vehicle that has been parked or left standing upon a street or alley for seventy-two or more consecutive hours without having been moved more than one-tenth of a mile.

(2) Any vehicle which is parked or left standing upon a street or alley or city-owned parking lot when such parking or standing is prohibited by ordinance or resolution of this city and signs are posted giving notice of such removal.

(3) Any vehicle which is parked or left standing upon a street or alley where the use of such street or alley or a portion thereof is necessary for the cleaning, repair or construction of the street or alley or for the installation of underground utilities or where the use of the street or alley or any portion thereof is authorized for a purpose other than the normal flow of traffic or where the use of the street or alley or any portion thereof is necessary for the movement of equipment, articles or structures of unusual size, and the parking of such vehicle would prohibit or interfere with such use or movement; provided that signs giving notice that such vehicle may be removed are erected or placed at least twenty-four hours prior to the removal.

(b) In addition to, or as an alternative to removal of vehicles, any regularly employed and salaried officer of the police department of the city or any regularly employed and salaried employee of the city who is engaged in directing traffic or enforcing parking laws and regulations of the city may immobilize any vehicles under the requirements set forth in Section 22651.7 of the Vehicle Code, relating to vehicles with parking violations outstanding, as provided in Section 22651.7. An administrative fee or fees for such immobilization may be established by resolution of the city council. Any vehicle immobilized as set forth herein shall remain immobilized until the conditions set forth in Section 22651.7 are met, and all applicable administrative fees are paid to the city.

(c) If any sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this section. Council hereby declares that it would have adopted this section and each sentence, clause or phrase thereof, irrespective of the fact that any one or more subsections, sentences, clauses or phrases be declared invalid or unconstitutional.

(Added Ord. 6130, 1962; Am. Ord. 6546, 1964; Added Ord. 2006-62, § 2, eff. 6-12-06; Am. Ord. 2007-17, § 1, eff. 4-19-07).

SEC. 14-310. ENFORCEMENT OF TRAFFIC LAWS.

The Traffic Engineer is authorized to enforce the provisions of this chapter.

(Added Ord. 79-129, § 1, eff. 8-10-79; Am. Ord. 2025-061, § 2, eff. 1-30-26).

Editor's note—Ord. 2025-061, § 1, effective January 30, 2026, repealed § 14-310, which pertained to use of coasters, roller skates, and similar devices restricted and derived from added Ord. 6130, adopted 1962. Ord. 2025-061, § 2, subsequently renumbered the former §§ 14-311, 14-312 as §§ 14-310, 14-311. The historical notation has been retained with the amended provisions for reference purposes.

SEC. 14-311. PARKING AND USE OF SHARED MOBILITY DEVICES.

(a) Operators shall inform users how and where to properly use and park a shared mobility device.

(b) A shared mobility device parked in violation of this Article, or the permit and franchise agreement authorizing its use in the City, may be removed by the City and taken to a facility designated by the City for storage at the expense of the operator if the operator has not retrieved its shared mobility device that has been marked as inoperable or parked in violation of this code or California Vehicle Code within two hours of receiving notice from the City.

(c) Shared mobility device users shall comply with all applicable provisions of the California Vehicle Code, including without limitation the prohibition on riding a shared mobility device on any sidewalk.

(Added Ord. 2019-034, § 3, eff. 11-11-19; Am. Ord. 2025-061, § 2, eff. 1-30-26).

Editor's note—See Editor's Note attached to § 14-310.

ARTICLE 4 TRAFFIC CONTROL DEVICES

Sec. 14-401. Authority to Install Traffic Control Devices.
Sec. 14-402. Traffic Control Signs Required for Enforcement Purposes.
Sec. 14-403. Obedience to Traffic Control Devices.
Sec. 14-404. Installation of Traffic Signals.
Sec. 14-405. Lane Marking.
Sec. 14-406. Distinctive Roadway Markings.
Sec. 14-407. Authority to Remove, Relocate and Discontinue Traffic Control Devices.
Sec. 14-408. Traffic Control Devices; Hours of Operation.
Sec. 14-409. Unauthorized Painting of Curbs.

SEC. 14-401. AUTHORITY TO INSTALL TRAFFIC CONTROL DEVICES.

(a) The City Traffic Engineer shall have the power and duty to place and maintain or cause to be placed and maintained official traffic control devices when and as required to make effective the provisions of this chapter.

(b) Whenever the Vehicle Code requires for the effectiveness of any provision thereof that traffic control devices be installed to give notice to the public of the application of such law, the City Traffic Engineer is hereby authorized to install or cause to be installed the necessary devices subject to any limitations or restrictions set forth in the law applicable thereto.

(c) The City Traffic Engineer may also place and maintain or cause to be placed and maintained such additional traffic control devices as he may deem necessary or proper to regulate traffic or to guide or warn traffic, but he shall make such determination only upon the basis of traffic engineering principles and traffic investigations and in accordance with such standards, limitations, and rules as may be set forth in this chapter or as may be determined by ordinance or resolution of the Council.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-402. TRAFFIC CONTROL SIGNS REQUIRED FOR ENFORCEMENT PURPOSES.

No provision of the Vehicle Code or of this chapter for which signs are required shall be enforced against an alleged violator unless appropriate legible signs are in place giving notice of such provisions of the traffic laws.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-403. OBEDIENCE TO TRAFFIC CONTROL DEVICES.

The operator of any vehicle or train shall obey the instructions of any official traffic control device placed in accordance with this chapter unless otherwise directed by a police officer or other authorized person subject to the exceptions granted the operator of an authorized emergency vehicle when responding to emergency calls.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-404. INSTALLATION OF TRAFFIC SIGNALS.

(a) The City Traffic Engineer is hereby directed to install and maintain official traffic signals at those intersections and other places where traffic conditions are such as to require that the flow of traffic be alternately interrupted and released in order to prevent or relieve traffic congestion or to protect life or property from exceptional hazard.

(b) The City Traffic Engineer shall ascertain and determine the locations where such signals are required by such field observations, traffic counts, and other traffic information as may be pertinent.

(c) Whenever the City Traffic Engineer installs and maintains an official traffic signal at any intersection, he shall likewise erect and maintain at such intersection street name signs visible to the principal flow of traffic unless such street name signs have previously been placed and are maintained at any said intersection. (Rep. and Added Ord. 6130, based on former Sec. 10-405).

SEC. 14-405. LANE MARKING.

The City Traffic Engineer is hereby authorized to mark center lines and lane lines upon the surface of the roadway to indicate the course to be traveled by vehicles and may place signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the center line of the highway. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-406).

SEC. 14-406. DISTINCTIVE ROADWAY MARKINGS.

The City Traffic Engineer is authorized to place and maintain distinctive roadway markings as described in the Vehicle Code on those streets or parts of streets where the volume of traffic or the vertical or other curvature of the roadway renders it hazardous to drive on the left side of such marking or signs and markings. Such marking or signs and marking shall have the same effect as similar markings placed by the State Department of Public Works pursuant to provisions of the Vehicle Code. (Rep. and Added Ord. 6130, 1962).

SEC. 14-407. AUTHORITY TO REMOVE, RELOCATE AND DISCONTINUE TRAFFIC CONTROL DEVICES.

The City Traffic Engineer is hereby authorized to remove, relocate or discontinue the operation of any traffic control device not specifically required by the Vehicle Code or this chapter whenever he shall determine in any particular case that the conditions which warranted or required the installation no longer exist or obtain. (Rep. and Added Ord. 6130, 1962).

SEC. 14-408. TRAFFIC CONTROL DEVICES; HOURS OF OPERATION.

The City Traffic Engineer shall determine the hours and days during which any traffic control device shall be in operation or be in effect, except in those cases where such hours or days are specified in this chapter. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-409. UNAUTHORIZED PAINTING OF CURBS.

No person, unless authorized by this city, shall paint any street or curb surface; provided, however, that this section shall not apply to the painting of numbers on a curb surface by any person who has complied with the provisions of this Code or any resolution or ordinance of this city pertaining thereto. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

ARTICLE 5 TURNING MOVEMENTS

Sec. 14-501. Authority to Place, and Obedience to, Turning Markers. Intersections. Multiple Lanes.
Sec. 14-502. Authority to Place Restricted Turn Signs.
Sec. 14-503. Obedience to No Turn Signs.
Sec. 14-504. Signal Controlled Intersections — Right Turns.

SEC. 14-501. AUTHORITY TO PLACE, AND OBEDIENCE TO, TURNING MARKERS. INTERSECTIONS. MULTIPLE LANES.

(a) The City Traffic Engineer is authorized to place markers, buttons, or signs within or adjacent to intersections and indicating the course to be traveled by vehicles turning at such intersections, and the City Traffic Engineer is authorized to locate and indicate more than one lane of traffic from which drivers of vehicles may make right or left-hand turns, and the course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.

(b) When authorized markers, buttons, or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-502. AUTHORITY TO PLACE RESTRICTED TURN SIGNS.

The City Traffic Engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right, left, or U turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-503. OBEDIENCE TO NO TURN SIGNS.

Whenever authorized signs are erected indicating that no right or left or U turn is permitted, no driver of a vehicle shall disobey the directions of any such sign. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-504. SIGNAL CONTROLLED INTERSECTIONS—RIGHT TURNS.

(a) No driver of a vehicle shall make a right turn against a red or stop signal at any intersection which is sign-posted giving notice of such restriction as hereinafter provided in this section.

(b) The City Traffic Engineer shall post appropriate signs giving effect to this section where he determines that the making of right turns against a traffic signal "stop" indication would seriously interfere with the safe and orderly flow of traffic. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

ARTICLE 6 ONE-WAY STREETS AND ALLEYS

Sec. 14-601. One-Way Streets and Alleys.

SEC. 14-601. ONE-WAY STREETS AND ALLEYS.

(a) The Council by ordinance may establish one-way traffic flow on streets or alleys. Whenever an ordinance has established a one-way street or alley, the City Traffic Engineer shall place signs giving notice thereof. Authorized signs indicating the lawful traffic movement shall be placed at every intersection and when such signs are in place, the operator of any vehicle shall not drive in the opposite direction, and when parking on such a street or alley must point the front of the vehicle in the direction of the lawful traffic movement.

(b) There is hereby established an official city "List of One-Way Streets and Alleys" established pursuant to this article. The City Traffic Engineer shall cause the one-way streets and alleys to be placed on said list. The City Traffic Engineer shall keep a record of all ordinances hereafter adopted designating such one-way streets or alleys and shall cause notation of such records and such streets or alleys thereof to be placed on said list in his office. Whenever the designation of such a one-way street or alley is hereafter amended, deleted, or changed, the City Traffic Engineer shall cause such fact to be recorded upon said list. Said list and the notation and the contents therein as they may from time to time be kept and amended pursuant to this section shall be evidence of the existence and legality of the one-way streets and alleys and the legality of the placing of the appropriate signing as hereinabove provided. Said list as amended shall be deemed to be incorporated herein. (Orig. Ord. 3811; Am. Ord. 4789, 1955; Am. Ord. 5311, 1958; Rep. and Added Ord. 6130, 1962; Rep. and Added Ord. 73-82, §§ 1, 2, eff. 6-17-73).

ARTICLE 7 SPECIAL STOPS REQUIRED

Sec. 14-701. Through Streets and Stop Intersections.
Sec. 14-702. "Yield Right of Way" Signs.
Sec. 14-703. Emerging from Alley or Private Driveway.

SEC. 14-701. THROUGH STREETS AND STOP INTERSECTIONS.

(a) The Council may designate and describe by ordinance any street or portion thereof of a through street and any intersection or railroad grade crossing as a stop intersection.

(b) There is hereby established an official city "List of Through Streets," and an official city "List of Stop Intersections." Whenever the Council designates a through street or stop intersection pursuant to subsection (a) of this section, the Traffic Engineer shall cause the designated through street or stop intersection to be placed on the pertinent list. The Traffic Engineer shall keep a record of all ordinances hereafter adopted designating such through streets and stop intersections and shall cause notation of such records and such streets and intersections to be placed on said lists in his office. Whenever any description of a through street or stop intersection is hereafter amended, deleted, or changed, the Traffic Engineer shall cause such fact to be recorded upon the pertinent list in the appropriate place. Said lists and the notations and contents therein, as they may from time to time be kept and amended pursuant to this section shall be prima facie evidence of the existence and legality of the designation of said streets as through streets and said intersections as stop intersections, and the legality of the placing of stop signs thereat as hereinafter provided. Said lists, as amended, shall be deemed to be incorporated herein.

(c) The Traffic Engineer shall place and maintain a stop sign on each and every street intersecting a through street unless traffic is controlled thereat all times by traffic control signals, except that at the intersection of two or more through streets stop signs shall be erected at the approaches of any through street as may be determined by the Traffic Engineer upon the basis of an engineering and traffic study to determine the proper place to locate the stop sign which will best facilitate the movement of traffic and the protection of persons and property.

(d) The Traffic Engineer shall place and maintain a stop sign at each stop intersection, on the street that is indicated in the ordinance adopted under subsection (a) above for the location of the stop sign.

(e) All stop signs shall be erected and placed as provided by the California Vehicle Code. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 6381, 1964; Rep. and Added Ord. 70-40, 1970).

SEC. 14-702. "YIELD RIGHT OF WAY" SIGNS.

Whenever the City Traffic Engineer determines, upon a basis of an engineering and traffic investigation, that a "Yield Right of Way" sign is warranted, the City Traffic Engineer may cause to be erected a "Yield Right of Way" sign in accordance with the provisions of the California Vehicle Code. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-704).

SEC. 14-703. EMERGING FROM ALLEY OR PRIVATE DRIVEWAY.

The driver of a vehicle emerging from an alley, driveway, or building, shall stop such vehicle immediately prior to driving onto a sidewalk or into the sidewalk area extending across an alley way. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

ARTICLE 8 MISCELLANEOUS DRIVING RULES

Sec. 14-801. Clinging to a Moving Vehicle.
Sec. 14-802. Vehicles on Private Property.
Sec. 14-803. Motor Vehicles on Canal Banks.
Sec. 14-804. Off-Highway Use of Motorcycles and Motor-Driven Cycles.
Sec. 14-805. Riding or Driving on Sidewalks.
Sec. 14-806. New Pavement and Markings.
Sec. 14-807. Limited Access.
Sec. 14-808. Restrictions on Use of Freeways.
Sec. 14-809. Obedience to Barriers and Signs.
Sec. 14-810. No Entrance into Intersections that Would Obstruct Traffic.
Sec. 14-811. Driving on Bikeways.
Sec. 14-812. Right Turn and Bike Lanes.

SEC. 14-801. CLINGING TO A MOVING VEHICLE.

No person shall attach himself with his hands, or to catch on, or hold on to with his hands or by other means, to any moving vehicle or train for the purpose of receiving motive power therefrom, except on vehicles specifically designed for such use.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-802. VEHICLES ON PRIVATE PROPERTY.

No person shall operate, drive, or leave any vehicle in, over, or upon private property without the express permission of the owner thereof.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-809).

SEC. 14-803. MOTOR VEHICLES ON CANAL BANKS.

(a) **Vehicles Prohibited.** No person shall operate any motor vehicle, motorcycle, motor-driven cycle, minibike, or other vehicle or device by which any person or property may be propelled, moved, or drawn, excepting a vehicle or device moved by human power, along or upon the bank or any ditch or canal where such ditch or canal traverses or abuts upon real property which is subdivided for residential use.

(b) **Exceptions.** This section shall not apply to the following persons:

(1) Officers, employees, and permittees of the owner or operator of the ditch or canal.

(2) Public officers in the discharge of their duties.

(3) Rightful water users in connection with their operations.

(4) The owner of property on which any such ditch or canal is maintained in an easement, and his permittees, in the course of conducting business operations on the property.

(Added Ord. 70-28, 1970).

SEC. 14-804. OFF-HIGHWAY USE OF MOTORCYCLES AND MOTOR-DRIVEN CYCLES.

No person shall ride or operate any motorcycle or motor-driven cycle on any private property or public property within one-quarter of a mile of any school, hospital, convalescent home, or residence except on a regularly established public street or parking lot appurtenant to a structure on the property, or on a private road, or driveway. This section shall not apply to the use of property pursuant to a permit issued for such use by a governmental agency.
(Added Ord. 72-121, 1972).

SEC. 14-805. RIDING OR DRIVING ON SIDEWALK.

No person shall ride, drive, propel, or cause to be propelled any vehicle or animal across or upon any sidewalk excepting over permanently constructed driveways and excepting when it is necessary for any temporary purpose to drive a loaded vehicle across a sidewalk; provided further, that said sidewalk area be substantially protected by wooden planks two inches thick, and written permission be previously obtained from the City Engineer. Such wooden planks shall not be permitted to remain upon such sidewalk area during the hours from 6:00 p.m. to 6:00 a.m.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-806).

SEC. 14-806. NEW PAVEMENT AND MARKINGS.

No person shall ride or drive any animal or any vehicle over or across any newly made pavement or freshly painted markings in any street when a barrier sign, cone-marker or other warning device is in place warning persons not to drive over or across such pavement or marking, or when any such device is in place indicating that the street or any portion thereof is closed.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-811).

SEC. 14-807. LIMITED ACCESS.

No person shall drive a vehicle onto or from any limited access roadway except at such entrances and exits as are lawfully established.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-807).

SEC. 14-808. RESTRICTIONS ON USE OF FREEWAYS.

No person shall drive or operate any bicycle, motor driven cycle, or any vehicle which is not drawn by a motor vehicle upon any street established as a freeway, as defined by state law, nor shall any pedestrian walk across or along any such street so designated and described except in space set aside for the use of pedestrians, provided official signs are in place giving notice of such restrictions.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-812).

SEC. 14-809. OBEDIENCE TO BARRIERS AND SIGNS.

No person, public utility, or department in the City Hall shall erect or place any barrier or sign on any street unless of a type approved by the City Traffic Engineer or disobey the instructions, remove, tamper with or destroy any barrier or sign lawfully placed on any street by any person, public utility, or by any department of this city.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-810).

SEC. 14-810. NO ENTRANCE INTO INTERSECTION THAT WOULD OBSTRUCT TRAFFIC.

No operator of any vehicle shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-808).

SEC. 14-811. DRIVING ON BIKEWAYS.

(a) **Bicycle Path.** No person shall drive a vehicle upon any bicycle path except in an emergency.

(b) **Bicycle Lane.** No person shall drive a vehicle upon any bicycle lane except in an emergency or as follows:

(1) To enter or leave the street or highway.

(2) To prepare for a right turn within 200 feet of an intersection.

(3) To park where parking is permitted.

(4) Any vehicle and other equipment while actually engaged in street work pursuant to the provisions of Article 2 of Chapter 13 of this code.

(5) Any vehicle and other equipment owned or operated by any public agency or public utility while necessarily in use for construction, repair work, work upon the surface of a highway, or work of installation, removal, repairing or maintaining official traffic control devices.

(6) Any rubbish or garbage truck while actually engaged in the collection of rubbish or garbage.

(7) Any streetsweeper while actually engaged in sweeping a street.

(8) Any vehicle owned or operated by the United States Post Office Department while in use for the collection, transportation or delivery of United States mail.

(Added Ord. 72-120, 1972; Am. Ord. 76-24, § 2, eff. 4-18-76; Am. Ord. 2025-061, § 3, eff. 1-30-26).

Editor's note—Ord. 2025-061, § 3, effective January 30, 2026, amended the title of § 14-811 to read as herein set out. The former § 14-811 title pertained to driving on bicycle route.

SEC. 14-812. RIGHT TURN AND BIKE LANES.

When necessary to make a right-hand turn on a roadway which has a bicycle lane to the right of the motor vehicle lane, the motorist must merge into the bicycle lane only within a distance of 200 feet from the intersection in accordance with Vehicle Code Section 21209, including any amendments or successor statutes thereto, and make his turn as close as practicable to the right-hand curb or edge of the roadway in accordance with Vehicle Code Section 22100, including any amendments or successor statutes thereto.
(Added Ord. No. 76-24, § 3, eff. 4-18-76; Am. Ord. 2025-061, § 3, eff. 1-30-26).

ARTICLE 9 PEDESTRIAN REGULATIONS

Sec. 14-901. Traffic Engineer to Establish Marked Crosswalks.

SEC. 14-901. TRAFFIC ENGINEER TO ESTABLISH MARKED CROSSWALKS.

(a) The City Traffic Engineer shall establish, designate and maintain crosswalks at intersections and other places by appropriate devices, marks, or lines upon the surface of the roadway at such intersections and other places within the city where the City Traffic Engineer determines that crosswalks with minimize vehicular conflict with pedestrian traffic.

(b) Other than crosswalks at intersections, no crosswalk shall be established in any block which is less than four hundred feet in length and any such crosswalk shall be located as nearly as practical to the middle of the block.

(c) The City Traffic Engineer may place signs at or adjacent to an intersection in respect to any crosswalk directing that pedestrians shall not cross in the crosswalk so indicated. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962, based on former Sec. 10-046; Am. Ord. 6873, 1966).

ARTICLE 10 STOPPING, STANDING AND PARKING FOR CERTAIN PURPOSES OR IN CERTAIN PLACES

Sec. 14-1001. Application of Regulations.
Sec. 14-1002. Stopping or Standing in Parkways Prohibited.
Sec. 14-1003. Traffic Engineer to Maintain No Stopping Zones and No Parking Areas.
Sec. 14-1004. No Stopping Tow-Away Zone.
Sec. 14-1005. No Parking Areas.
Sec. 14-1006. Use of Streets for Storage of Vehicles Prohibited.
Sec. 14-1007. Parking for Certain Purposes Prohibited.
Sec. 14-1008. Parking Adjacent to Schools.
Sec. 14-1009. Parking Prohibited on Narrow Streets.
Sec. 14-1010. Parking on Grades.
Sec. 14-1011. Emergency Parking Signs.
Sec. 14-1012. Display of Warning Devices when Commercial Vehicle Disabled.
Sec. 14-1013. Parking in Alleys.
Sec. 14-1014. Parking Prohibited on Certain City-Owned or Operated Parking Facilities.
Sec. 14-1015. Parking on Bicycle Route.
Sec. 14-1016. Parking Permitted on Certain City-Owned Parking Areas and Driveways.
Sec. 14-1017. Reckless Driving and Speeding Prohibited on Designated Private Parking Facilities.
Sec. 14-1018. Time Restrictions on Private Parking Facilities.
Sec. 14-1019. Motorcycles Parked in On-Street and Off-Street Parking Spaces.
Sec. 14-1020. [Reserved.]
Sec. 14-1021. Use of Streets for Habitation Prohibited.
Sec. 14-1022. Electric Vehicle Charging Stations.

SEC. 14-1001. APPLICATION OF REGULATIONS.

(a) The provisions of this article prohibiting the stopping, standing or parking of a vehicle shall apply at all times or at those times herein specified, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device.

(b) The provisions of this article prohibiting standing or parking or imposing a time limit on standing or parking shall not relieve any person from the duty to observe other and more restrictive provisions of the Vehicle Code or the ordinances of this city prohibiting or limiting the standing or parking of vehicles in specified places or at specified times.

(c) There is hereby established an official city list of stopping, standing, and parking regulated zones. Whenever any ordinance is adopted establishing zones regulating the stopping, standing or parking of vehicles, the City Traffic Engineer shall cause the designated and affected street locations to be placed on said list. The City Traffic Engineer shall keep a record of all ordinances, hereafter adopted designating such parking regulation and shall cause notations of such records and such regulations with streets and limits to be placed on said lists in his office. Whenever any description of a parking zone is hereafter amended, deleted, or changed, the City Traffic Engineer shall cause such fact to be recorded upon said list in the appropriate place. Said list and the notations and contents therein, as they may from time to time be kept and amended, shall be prima facie evidence of the

existence and legality of the designation of parking regulations on streets with the limits thereof, and the legality of placing signs and markings thereat as hereinafter provided. Said list, as amended, shall be deemed to be incorporated herein.

(d) All signs and markings shall be as specified in, erected and placed pursuant to, the California Vehicle Code. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1101; Am. Ord. 73-10, 1973; Am. Ord. 73-131, eff. 10-7-73).

SEC. 14-1002. STOPPING OR STANDING IN PARKWAYS PROHIBITED.

No person shall stop, stand or park a vehicle within any parkway. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1102).

SEC. 14-1003. TRAFFIC ENGINEER TO MAINTAIN NO STOPPING ZONES AND NO PARKING AREAS.

The City Traffic Engineer is hereby authorized to maintain, by appropriate signs or by paint upon the curb surface, all no stopping zones, no parking areas, and restricted parking areas, as defined and described in this chapter. When said curb markings or signs are in place no operator of any vehicle shall stop, stand or park such vehicle adjacent to any such legible curb marking or sign in violation of any of the provisions of this chapter. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1303).

SEC. 14-1004. NO STOPPING TOW-AWAY ZONE.

(a) The Council by ordinance may establish "No Stopping Tow-away" zones with stopping prohibited at all times or limited to specific hours, days, or either, such restrictions are effective, and the City Traffic Engineer shall designate such restrictions by placing and maintaining appropriate signs or markings indicating that stopping of vehicles is prohibited and, when applicable, to indicate any specific hours, days, or either, when the stopping of vehicles is prohibited. During the time so designated by the signs or markings, it shall be unlawful for the operator of any vehicle to stop in any such zones. Any member of the Police Department authorized by the Chief of Police may remove from a "no stopping tow-away" zone to a garage or other place of safety, in the manner, and subject to the requirements, of the Vehicle Code, any vehicle which has been parked or left standing therein in violation of any such sign or marking which also gives notice that the vehicle may be towed away or removed.

(b) All signs and markings shall be as specified in, erected and placed pursuant to, the California Vehicle Code. (Added Ord. 73-11, 1973).

SEC. 14-1005. NO PARKING AREAS.

No operator of any vehicle shall stop, stand, park, or leave standing such vehicle in any of the following places, except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or other authorized officer, or traffic sign or signal:

(a) Within any divisional island unless authorized and clearly indicated with appropriate signs or markings.

(b) On either side of any street between the projected property lines of any public walk, public steps, street, or thoroughfare terminating at such street, when such area is indicated by appropriate signs or by red paint upon the curb surface.

(c) In any area where the City Traffic Engineer determines that the parking or stopping of a vehicle would constitute a traffic hazard or would endanger life or property, when such area is indicated by appropriate signs or by red paint upon the curb surface.

(d) In any area established by ordinance of the Council as a no parking area, when such area is indicated by appropriate signs or by red paint upon the curb surface. (Subsec. Am. Ord. 70-2, 1970).

(e) Upon, along, or across any railway track in such manner as to hinder, delay, or obstruct the movement of any car traveling upon such track.

(f) In any area where the parking or stopping of any vehicle would constitute a traffic hazard or would endanger life or property.

(g) On any street or highway where the use of such street or highway or a portion thereof is necessary for the repair, or construction of the street or highway or the installation of underground utilities or where the use of the street or highway or any portion thereof is authorized for a purpose other than the normal flow of traffic or where the use of the street or highway or any portion thereof is necessary for the movement of equipment, articles, or structures of unusual size, and the parking of such vehicle would prohibit or interfere with such use or movement; provided that signs giving notice of such no parking are erected or placed at least twenty-four hours prior to the effective time of such no parking.

(h) At any place within twenty feet of a crosswalk at an intersection in the central business district or in any business district when such place is indicated by appropriate signs or by red paint upon the curb surface, except that a bus may stop at a designated bus stop.

(i) In any area established by ordinance of the Council as an Emergency Parking Area, which area shall be effective at all times, or during limited or specific hours or days or both, when such area has been indicated by appropriate signs.

(j) Any place within twenty feet of the approach to any traffic signal, boulevard stop sign, or official electric flashing device when such place is indicated by appropriate signs or by red paint upon the curb surface.

(k) In front of a public or private driveway.

(l) Within fifteen feet of either side of a fire hydrant, unless a different distance is indicated by appropriate signs or by red paint upon the curb surface.

(m) On any street or highway, where the use of such street or highway, or portion thereof is necessary for the purpose of street sweeping, and the parking of such vehicle would prohibit or interfere with the street sweeping, provided; the street or highway, or portion thereof, has been posted in accordance with the uniform standards and

specifications of the Department of Transportation, or the City has caused to be posted in a conspicuous place at each entrance to the street a notice not less than 17 inches by 22 inches in size, with lettering not less than one inch in height setting forth the day or days and hours parking is prohibited. As used in the subsection, "entrance" means the intersection of any street or streets comprising an area of restricted parking for street sweeping purposes on the same day or days and hours with another street or highway not subject to such a parking restriction, or subject to parking restrictions on different days and hours. This subsection shall not affect any commercial vehicle making pickups or deliveries of goods, wares, or merchandise from or to any building or structure located on the restricted street or highway, or for the purposes of delivering materials to be used in the repair, alteration, remodeling, or reconstruction of any building or structure for which a building permit has previously been obtained.

(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-110; Am. Ord. 77-80, § 1, eff. 8-26-77; Am. Ord. 78-135, § 1, eff. 9-29-78; Am. Ord. 80-79, §§ 1, 2, eff. 6-20-80; Ord. No. 98-40, §§ 1, 2, eff. 7-20-98).

SEC. 14-1006. USE OF STREETS FOR STORAGE OF VEHICLES PROHIBITED.

(a) The Council finds that the use of streets for storage of vehicles and the minimal movement of a parked or standing vehicle, including a recreational vehicle or temporary recreational vehicle, travel trailer, mobile home, transport trailer, boat trailer, bus, semi, house car, utility trailer, camper and the like, whether attached to another vehicle or separate, in order to avoid removal as a stored vehicle presents risk to the public health, safety and general welfare based upon the following findings:

(1) Use of streets for storage of vehicles tends to impair public use and enjoyment of streets.

(2) Use of streets for storage of vehicles tends to impair traffic flow.

(3) Use of streets for storage of vehicles tends to obstruct the visibility of drivers using and accessing streets.

(4) Use of streets for storage of vehicles tends to present increased risk of nuisance, or blight, or decrease in property values.

(5) Minimal movement of a parked or standing vehicle in order to avoid removal as a stored vehicle has frustrated and continues to frustrate the intent and purpose of this section.

(b) The on-street parking and storage of recreational vehicles shall be subject to the regulations of parking established pursuant to subsections (b)(1) through (4) of this section and the Vehicle Code of the State.

(1) Any motor-driven recreational vehicle not exceeding twenty feet in length, except a commercial vehicle or motor truck which is not a passenger vehicle, shall be exempt from the provisions of this subsection.

(2) No equipment, other non-vehicular property, or non-motorized vehicle whether attached or unattached to a motor vehicle shall be parked or stored in any residential street, subject to subsection (b)(4) of this section.

(3) Any recreational vehicle (not otherwise exempt pursuant to subsection (b)(1) or (2) of this section) may park on any street for a twenty-four hour period of time without restriction pursuant to this subsection. No person shall park or stand or permit to remain any recreational vehicle for more than twenty- four hours within a consecutive seven day period. A vehicle shall be considered to be in violation of this section when it is parked or standing on a street or alley within one thousand feet of the same location after twenty-four hours.

(4) A bona fide guest of a resident may park a recreational vehicle or trailer on the street in front of the host's residence for a period of seven days upon notification of the Parking Services Department.

(c) An inoperative, wrecked, dismantled or abandoned vehicle shall not be parked on public property or public right-of-way. A vehicle is deemed "inoperative" under this section if the vehicle (1) is mechanically incapable of being driven; (2) does not have a valid and current license plate or visible indication of valid and current vehicle registration; or (3) is prohibited from being operated on a public street or highway pursuant to the Vehicle Code. A vehicle which is temporarily broken down for a time not to exceed four hours is not considered inoperative under this section.

(d) In the event a vehicle is parked or left standing upon a street or alley in violation of this section, the Parking Services Department or any member of the Police Department authorized by the Chief of Police may remove said vehicle from the street in the manner and subject to the requirements of the Vehicle Code.

(e) The Traffic Engineer shall erect and maintain appropriate signs, consistent with any and all Vehicle Code requirements.

(f) If any sentence, clause, or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this section. Council hereby declares that it would have adopted this section and each sentence, clause, or phrase thereof, irrespective of the fact that any one or more subsections, sentences, clauses, or phrases be declared invalid or unconstitutional.
(Added Ord. 6130, 1962, based on former Sec. 10-1105; Am. Ord. 6546, 1964; Am. Ord. 2006-62, § 3, eff. 6-12-06; Am. Ord. 2017-1, § 1, eff. 2-17-17; Am. Ord. 2017-38, § 1, eff. 9-23-17).

SEC. 14-1007. PARKING FOR CERTAIN PURPOSES PROHIBITED.

No person shall park a vehicle upon any street for the principal purpose of washing, greasing, or repairing such vehicle, except repairs necessitated by an emergency.
(Added Ord. 6130, 1962, based on former Sec. 10-1106; Am. Ord. 79-87, § 1, eff. 6-8-76).

SEC. 14-1008. PARKING ADJACENT TO SCHOOLS.

(a) The City Traffic Engineer is hereby authorized to erect signs indicating no parking upon that side of any street adjacent to any school property when such parking would, in his opinion, interfere with traffic or create a hazardous situation.

(b) When official signs are erected prohibiting parking upon that side of a street adjacent to any school property, no person shall park a vehicle in any such designated place.
(Added Ord. 6130, 1962, based on former Sec. 10-1109).

SEC. 14-1009. PARKING PROHIBITED ON NARROW STREETS.

(a) The City Traffic Engineer is hereby authorized to place signs or markings indicating no parking upon any street when the width of a roadway does not exceed twenty feet, or upon one side of a street as indicated by such signs or markings when the width of a roadway does not exceed thirty feet.

(b) When official signs or markings prohibiting parking are erected upon narrow streets as authorized herein, no person shall park a vehicle upon any such street in violation of any such sign or marking.
(Added Ord. 6130, 1962, based on former Sec. 10-1107).

SEC. 14-1010. PARKING ON GRADES.

No person shall park or leave standing any vehicle unattended on a highway when upon any grade exceeding three per cent (within any business or residence district) without blocking the wheels of said vehicle by turning them against the curb or by other means.
(Added Ord. 6130, 1962, based on former Sec. 10-1108).

SEC. 14-1011. EMERGENCY PARKING SIGNS.

(a) Whenever the City Traffic Engineer or Chief of Police shall determine that an emergency traffic congestion is likely to result from the holding of public or private assemblages, gatherings, or functions, or for other reasons, the City Traffic Engineer or Chief of Police shall have power and authority to order temporary signs to be erected or posted indicating that the operation, parking, or standing of vehicles is prohibited on such streets and alleys as the City Traffic Engineer or Chief of Police shall direct during the time such temporary signs are in place. Such signs shall remain in place only during the existence of such emergency and the City Traffic Engineer or Chief of Police shall cause such signs to be removed promptly thereafter.

(b) When signs authorized by the provisions of this section are in place giving notice thereof, no persons shall operate, park, or stand any vehicle contrary to the directions and provisions of such signs.
(Added Ord. 6130, 1962; based on former Sec. 10-1113).

SEC. 14-1012. DISPLAY OF WARNING DEVICES WHEN COMMERCIAL VEHICLE DISABLED.

Every motor truck having an unladen weight of four thousand pounds or more, and every truck tractor irrespective of weight, when operated upon any street or highway during darkness shall be equipped with and carry at least two flares or two red lanterns or two warning lights or reflectors, which reflectors shall be of a type approved by the California Highway Patrol. When any vehicle above mentioned or any trailer or semi-trailer is disabled upon streets or highway outside of any business or residence district within this city, and upon which street or highway there is insufficient street lighting to reveal a vehicle at a distance of two hundred feet during darkness, a warning signal of the character indicated above shall be immediately placed at a distance of approximately one hundred feet in advance of, and one hundred feet to the rear of, such disabled vehicle by the driver thereof. The continuous flashing of at least four approved Class A-Type 1 turn signal lamps, at least two toward the front and at least two toward the rear of the vehicle, shall be considered to meet the requirements of this section until the devices mentioned above can be placed in the required locations. The warning signals herein mentioned shall be displayed continuously during darkness while such vehicle remains disabled upon such street or highway.
(Added Ord. 6130, 1962, based on former Sec. 10-1114).

SEC. 14-1013. PARKING IN ALLEYS.

(a) Except as provided in subsection (b) of this section, no person shall stop, stand, or park a vehicle in any alley for any purpose other than the loading, or unloading, of persons or materials.

(b) The Traffic Engineer may promulgate rules and regulations for permit parking of an indefinite duration of delivery vehicles owned or operated by businesses adjacent to any alleys lying within that certain area bounded by Divisadero Street, O Street, Ventura Street, and Freeway 99.

(c) The Traffic Engineer may limit parking to one side of any alley by posting signs giving notice of such limitation. No person shall stop, stand, or park a vehicle in any alley except as permitted by such signs.

(d) No person shall stop, stand or park a vehicle within an alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for the free movement of vehicular traffic.

(e) No person shall stop, stand, or park a vehicle within an alley in such a position as to block the driveway entrance to any abutting property.

(f) No person shall park a vehicle upon any property adjacent to an alley when any portion of the vehicle or its load projects into such alley. (Added Ord. 6130, 1962, based on former Sec. 10-1103; Am. Ord. 79-126, § 1, eff. 8-3-79).

SEC. 14-1014. PARKING PROHIBITED ON CERTAIN CITY-OWNED OR OPERATED PARKING FACILITIES.

(a) Regulation of parking on certain public property:

(1) Whenever the Chief Administrative Officer shall determine that the orderly, efficient conduct of the city's business requires that parking or standing of vehicles on city property be prohibited, limited or restricted, the Chief Administrative Officer shall have the power and authority to order signs to be erected or posted indicating the parking of vehicles is thus prohibited, limited or restricted.

(2) Whenever the governing body of the Housing Authority of the City of Fresno shall determine by resolution that the orderly, efficient conduct of the Authority's business requires that parking or standing of vehicles on Authority property be prohibited, limited or restricted, the Authority shall have the power and authority to order signs to be erected or posted indicating that the parking of vehicles is thus prohibited, limited or restricted.

(b) The Chief Administrative Officer may designate certain stalls or spaces in city-owned or operated off-street parking facilities for the exclusive use of physically handicapped persons whose vehicles display one of the distinguishing license plates issued by the State Department of Motor Vehicles to disabled persons pursuant to Vehicle Code Section 22511.5, or to disabled veterans as specified in Vehicle Code Section 9105. Such designation shall be made by authorizing the City Traffic Engineer to post immediately adjacent to, and visible from each stall or space, a sign or signs consisting of a profile view of a wheelchair with occupant in white on a blue background together with the language specified in Vehicle Code Section 22511.8.

(c) When signs authorized by the provisions of this section are in place, giving notice thereof, no person shall stop, stand or park any vehicle contrary to the directions or provisions of such signs.

(d) Any member of the Police Department authorized by the Police Chief may remove, in the manner provided by and subject to the requirements of the Vehicle Code for removal of a

vehicle from a highway, any vehicle stopped, left standing or parked in violation of this section. (Added Ord. 6130, 1962, based on former Sec. 10-1112; Am. Ord. 74-16, § 1, eff. 3-10-74; Am. Ord. 74-108, § 1, eff. 11-25-74; Am. Ord. 76-57, § 1, eff. 7-25-76).

SEC. 14-1015. PARKING ON BICYCLE ROUTE.

(a) **Bicycle Path.** No person shall park or stand any vehicle upon any bicycle path except in an emergency.

(b) **Bicycle Lane.** No person shall park or stand any vehicle upon any bicycle lane except in an emergency or as follows:

(1) Any bus in a designated bus zone.

(2) Any vehicle and other equipment while actually engaged in street work pursuant to the provisions of Article 2 of Chapter 11 of this code.

(3) Any vehicle and other equipment owned or operated by any public agency or public utility while necessarily in use for construction, repair work, work upon the surface of a highway, or work of installation, removal, repairing or maintaining official traffic control devices.

(4) Any rubbish or garbage truck while actually engaged in the collection of rubbish or garbage.

(5) Any streetsweeper while actually engaged in sweeping a street.

(6) Any vehicle of any regularly licensed physician while actually engaged in making professional calls.

(7) Where parking is permitted. (Added Ord. 72-120, 1972; Am. Ord. 76-24, § 4, eff. 4-18-76).

SEC. 14-1016. PARKING PERMITTED ON CERTAIN CITY-OWNED PARKING AREAS AND DRIVEWAYS.

Whenever the Chief Administrative Officer determines that the efficient conduct of the city's business requires the parking or standing of vehicles on city property then he may issue parking permits therefor. The permit shall state the conditions under which the permit may be used and the location or locations to which it applies. The permit shall be signed by the Chief Administrative Officer or such other person as he shall designate. The permit shall, at any time, be revocable at discretion of the Chief Administrative Officer. When such permit is prominently displayed on the dashboard facing the front window on the driver's side, the user shall be permitted to park or stand a vehicle on the city property designated on the permit. The requirement of a permit shall not apply to (1) city-owned vehicles (2) vehicles parked in spaces provided expressly for such vehicles or (3) vehicles used in carrying out construction or other service for the city. (Added Ord. 73-131, § 1, eff. 10-7-73).

SEC. 14-1017. RECKLESS DRIVING AND SPEEDING PROHIBITED ON DESIGNATED PRIVATE PARKING FACILITIES.

(a) Privately owned and maintained off-street parking facilities on which Vehicle Code Sections 22350, 23103 and 23109 may be enforced, pursuant to Vehicle Code Section 21107.8, shall be designated by resolution of the Council, following a duly noticed public hearing.

(b) The private parking facilities so designated are generally held open for use of the public for purposes of vehicular parking.

(c) The owner or operator of each designated private parking facility shall cause to be posted in a conspicuous place at each entrance to such facility a notice, not less than seventeen (17) by twenty-two (22) inches in size with lettering not less than one (1) inch in height, to the effect that such facility is subject to the public traffic regulations and control detailed in Vehicle Code Section 21107.8. (Added Ord. 79-165, § 1, eff. 11-16-79; Am. Ord. 82-42, § 1, eff. 5-14-82).

SEC. 14-1018. TIME RESTRICTIONS ON PRIVATE PARKING FACILITIES.

(a) The owner or operator of a private parking facility may impose reasonable time restrictions for parking in designated areas of such parking facility.

(b) The owner or operator of the private parking facility who chooses to impose reasonable time restrictions for parking shall cause to be posted in a conspicuous place at each entrance to such facility a notice, not less than seventeen (17) by twenty-two (22) inches in size with lettering not less than one (1) inch in height, to the effect that such facility is subject to reasonable time restrictions for parking in designated areas. The designated areas of the parking facility subject to time restrictions for parking shall be clearly marked with additional notices at each entrance to the designated areas of the facility indicating the time restrictions imposed within such area of the parking facility.

(c) The owner or operator of a private parking facility may utilize its employees and/or the services of a private security patrol to enforce the time restrictions for parking in the parking facility. Such employees and/or private security patrol are authorized to issue municipal parking citations for violation of the time restrictions. Bail to be paid for violation of this Section shall be payable to and retained by the City.

(d) The City Manager shall adopt any and all written rules and regulations, including a procedure whereby the owners or operators of the private parking facilities shall file a written request with the Traffic Engineer, to implement the provisions in this Section. (Added Ord. 2001-58, § 1, eff. 9-3-01)

SEC. 14-1019. MOTORCYCLES PARKED IN ON-STREET AND OFF-STREET PARKING SPACES.

Up to four motorcycles shall be permitted in any single parking space upon any city street or in any city owned parking facility in the city, whether the parking space is painted or marked by either signs or paint, and whether the parking space is for time limit parking,

hourly parking in an off-street facility, or is a metered space. If fees are charged for the parking space, the rate shall be equal to the "per space charge" for a vehicle parking space as established by the Master Fee Schedule. This Section is intended to encourage the use of motorcycle travel as a part of the City's efforts to reduce vehicle air emissions. (Added Ord. 2003-74, § 1, eff. 10-5-03).

SEC. 14-1020. [RESERVED.]

Editor's note—Ord. 2008-65, § 2, effective December 15, 2008, amended the Code by repealing former section 14-1020 in its entirety. Former § 14-1020 pertained to parking permitted for privately owned low emission vehicles in city-owned off-street parking facilities, and derived from Ord. 2003-83, effective October 21, 2003; Ord. 2004-116, adopted December 5, 2004.

SEC. 14-1021. USE OF STREETS FOR HABITATION PROHIBITED.

(a) The Council finds that use of a vehicle, including a recreational vehicle or temporary recreational vehicle, a travel trailer, a mobile home, a bus, a semi, a camper and the like, whether attached to another vehicle or separate, while it is parked or standing on any street as either temporary or permanent living quarters, abode, or place of habitation either overnight or day by day presents risk to the public's health, safety and general welfare based upon the following findings:

(1) Use of a vehicle upon a street for habitation tends to present risk of injury or death to the occupants thereof in the event of collision.

(2) Use of a vehicle upon a street for habitation tends to present increased opportunity for, and risk of criminal activity.

(3) Use of a vehicle upon a street for habitation tends to present increased risk to the public health, safety and general welfare through lack of available utility and sanitary connections and trash/refuse disposal service, including related creation of a harborage for rodents and insects.

(4) Use of a vehicle upon a street for habitation tends to present increased risk of nuisance, or blight, or decrease in property values.

(b) It is unlawful for any person to use a vehicle while it is parked or standing on any street as either temporary or permanent living quarters, abode, or place of habitation either overnight or day by day.

(c) The Traffic Engineer shall erect and maintain appropriate signs, consistent with any and all Vehicle Code requirements.

(d) If any sentence, clause or phrase of this section is for any reason held to be invalid or unconstitutional by a decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this section. Council hereby declares that it would have adopted this section and each sentence, clause or phrase thereof, irrespective of the fact that any one or more subsections, sentences, clauses or phrases be declared invalid or unconstitutional. (Added Ord. 2006-62, § 1, eff. 6-12-06).

SEC. 14-1022. ELECTRIC VEHICLE CHARGING STATIONS.

(a) The Development Director may designate areas in City-owned on and off-street parking facilities for the exclusive use by electric vehicles. These areas shall be designated by signs or markings indicating the regulations described herein. The Development Director shall designate the time limit for each electric vehicle charging station, which shall not exceed four hours.

(b) Only electric vehicles may stand in areas designated by markings and/or signage as electric vehicle charging stations. It is unlawful for an electric vehicle to stand in a designated electric vehicle charging station when not connected for electric charging purposes. A violation of this Subsection shall result in the issuance of a parking citation pursuant to Fresno Municipal Code section 1-302. The fine for violation of this Section shall be identified in the Master Fee Schedule. Vehicles in violation may be towed in accordance with California Vehicle Code section 22511.

(c) It is unlawful for an electric vehicle to be connected to an electric vehicle charging station and not actively charging for longer than thirty minutes. A violation of this Subsection shall result in a penalty fee as identified in the Master Fee Schedule.

(d) Definitions

(i) "Electric Vehicle" shall mean a battery electric vehicle which is fueled entirely be electricity stored in the onboard battery, or a plug-in hybrid vehicle which is fueled by both an onboard battery and another fuel source.

(ii) "Electric Vehicle Charging station" shall mean a device intended to transfer electricity from the device to an electric vehicle.

(ii) "Actively Charging" shall mean the transfer of electricity to the battery of an electric vehicle.

(iii) Connected shall mean the cable from the charger is inserted into the inlet on the electric vehicle for the purpose of transmitting energy to the vehicle's batteries.

(Added Ord. 2020-030, § 1, eff. 9-1-20).

ARTICLE 11 STOPPING, STANDING OR PARKING RESTRICTED OR PROHIBITED ON CERTAIN STREETS

Sec. 14-1100. Application of Regulations.
Sec. 14-1101. Twenty-four Minute Parking.
Sec. 14-1102. One Hour Parking.
Sec. 14-1103. Two Hour Parking.
Sec. 14-1104. Parking Parallel on One-Way Streets.
Sec. 14-1105. Parking Parallel with Curb—Exceptions.
Sec. 14-1106. Parking Space Markings.
Sec. 14-1107. Stopping or Parking Restricted or Prohibited on Certain Public Streets.
Sec. 14-1108. Parking of Commercial Vehicles.
Sec. 14-1109. Parking Prohibited and Restricted Near Railway Tracks.
Sec. 14-1110. Parking on McKinley Avenue Restricted.

SEC. 14-1100. APPLICATION OF REGULATIONS.

(a) The provisions of this article prohibiting, restricting and regulating the stopping, standing or parking of a vehicle shall apply at all times or at those times herein specified, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device.

(b) The provisions of this article prohibiting standing or parking or imposing a time limit or otherwise regulating the standing or parking shall not relieve any person from the duty to observe other and more restrictive provisions of the Vehicle Code or the ordinances of this City prohibiting or limiting the standing or parking of vehicle in specified places or at specified times.

(c) There is hereby established an official City list of all time limited parking zones. Whenever any ordinance is adopted establishing a time limited parking zone, the City Traffic Engineer shall cause the designated and affected street locations to be placed on said list. The City Traffic Engineer shall keep a record of all ordinances, hereafter adopted, designating such parking regulation and shall cause notations of such records and such regulations with streets and limits to be placed on said lists in his office. Whenever any description of a time limited parking zone is hereafter amended, deleted, or changed, the City Traffic Engineer shall cause such fact to be recorded upon said list in the appropriate place. Said list and the notations and contents therein, as they may from time to time be kept and amended, shall be prima facie evidence of the existence and legality of the designation of time limited parking regulations on streets with the limits thereof, and the legality of placing signs and markings thereat as hereinafter provided. Said list, as amended, shall be deemed to be incorporated herein.

(d) All signs and markings shall be as specified in, erected and placed pursuant to, the California Vehicle Code. (Added Ord. 73-5, 1973).

SEC. 14-1101. TWENTY-FOUR MINUTE PARKING.

Green curb marking shall mean no standing or parking for a period of time longer than twenty-four minutes at any time between 9:00 a.m. and 6:00 p.m. on any day except Sundays

and holidays. When the Council by ordinance has established such a parking limitation, and authorized signs, parking meters or curb markings are in place giving notice of such limited parking, no operator of any vehicle shall stop, stand or park said vehicle adjacent to any such legible curb marking or sign or parking meter for a period of time longer than twenty-four minutes. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1301; Am. Ord. 73-6, 1973).

SEC. 14-1102. ONE HOUR PARKING.

When the Council by ordinance has established a one-hour limited parking zone and authorized signs, parking meters or curb markings are in place giving notice of such a parking limitation, no operator of any vehicle shall stop, stand, or park said vehicle in the zone between the hours of 9:00 A.M. and 6:00 P.M. of any day except Sundays and holidays for a period of time longer than one hour. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1301; Am. Ord. 73-6, 1973).

SEC. 14-1103. TWO HOUR PARKING.

When the Council by ordinance has established a two-hour limited parking zone and authorized signs, parking meters, or curb markings are in place giving notice of such a parking limitation, no operator of any vehicle shall stop, stand, or park said vehicle in the zone between the hours of 9:00 A.M. and 6:00 P.M. of any day except Sundays and holidays for a period of time longer than two hours. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1301; Am. Ord. 73-6, 1973).

SEC. 14-1104. PARKING PARALLEL ON ONE WAY STREETS.

(a) Subject to other and more restrictive limitations, a vehicle may be stopped or parked within eighteen inches of the left-hand curb facing in the direction of traffic movement upon any one-way street unless signs are in place prohibiting such stopping or standing.

(b) In the event a highway includes two or more separate roadways and traffic is restricted to one direction upon any such roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are in place permitting such standing or parking.

(c) The City Traffic Engineer is authorized to determine when standing or parking shall be prohibited upon the left-hand side of any one-way street or when standing or parking may be permitted upon the left-hand side of any one-way roadway of a highway having two or more separate roadways and shall erect signs giving notice thereof. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-602, 10-1102 and 10-1104).

SEC. 14-1105. PARKING PARALLEL WITH CURB—EXCEPTIONS.

No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of traffic and with the wheels of the vehicle within eighteen inches of the curb line or edge of the roadway, except as follows:

(a) On any of the streets or portions of streets established by resolution of the Council as diagonal parking zones, when signs or pavement markings are in place indicating such diagonal parking.

(b) Upon those streets where parking on the left side of the roadway or otherwise is specifically provided in this chapter.

(c) The requirement of parallel parking imposed by this section shall not apply in the event any commercial vehicle is actually engaged in the process of loading or unloading freight or goods. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1003).

SEC. 14-1106. PARKING SPACE MARKINGS.

The City Traffic Engineer is authorized to install and maintain parking space markings to indicate parking spaces adjacent to curbings where authorized parking is permitted. When such parking space markings are placed on the street, subject to other and more restrictive limitations, no vehicle shall be stopped, left standing, or parked other than within a single space unless the size or shape of such vehicle makes compliance impossible. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1004).

SEC. 14-1107. STOPPING OR PARKING RESTRICTED OR PROHIBITED ON CERTAIN PUBLIC STREETS.

(a) The City Traffic Engineer is hereby authorized to restrict or prohibit the stopping or parking of vehicles on public streets when, in his opinion, such stopping or parking would interfere with traffic or create a hazardous situation. Such restriction or prohibition may be indicated by one or more of the following:

(1) By the painting of curbs in accordance with Section 14-1202.

(2) By the erecting of signs indicating the restriction or prohibition.

(b) The City Traffic Engineer is hereby authorized to designate certain parking spaces in, upon, along, or within public streets for the exclusive use of physically handicapped persons whose vehicles display one of the distinguishing license plates issued by the State Department of Motor Vehicles to disabled persons pursuant to Vehicle Code Section 22511.5, or to disabled veterans as specified in Vehicle Code Section 9105. Such designation shall be made by blue paint on the curb or edge of the paved portion of the street adjacent to such designated space or outlining the space with such blue paint. The City Traffic Engineer may, in addition to the use of blue paint, post immediately adjacent to, and visible from each space, a sign or signs consisting of a profile view of a wheelchair with occupant in white on a blue background, together with the language specified in Vehicle Code Section 22511.8.

(c) When curb or pavement painting or signs authorized by the provisions of this section are in place, giving notice thereof, no person shall stop, stand or park any vehicle contrary to the directions or provisions of such curb or pavement painting or signs.

(d) Any member of the Police Department authorized by the Police Chief may remove, in the manner provided by and subject to the requirements of the Vehicle Code for removal of a vehicle from a highway, any vehicle stopped, left standing or parked in violation of this section. (Added Ord. 76-57, § 2, eff. 7-25-76).

SEC. 14-1108. PARKING OF COMMERCIAL VEHICLES.

(a) Except as provided in Subsection (c) below, no person shall park a commercial vehicle with a manufacturer's gross vehicle rating of 10,000 pounds or more on any street in any Residential District as defined in Section 12-105-R of this Code.

(b) Notwithstanding subsection (a), no commercial vehicle with a manufacturer's gross vehicle rating of 10,000 pounds or more shall park on any street between the hours of 2:00 a.m. and 6:00 a.m. except on those streets located in the following zone districts:

(1) M-1P (Industrial Park Manufacturing) as defined in Section 12-225 of this Code.

(2) M-1 (Light Manufacturing District) as defined in Section 12-226 of this Code.

(3) M-2 (General Manufacturing District) as defined in Section 12-227 of this Code, and

(4) M-3 (Heavy Industrial District) as defined in Section 12-228 of this Code.

(c) Subsections (a) and (b) above shall not be effective with respect to any commercial vehicle making pickups or deliveries of goods, wares and merchandise from or to any building or structure located on any street as specified in Subsections (a) and (b) or for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling, or construction of any building or structure located on any street as specified in Subsections (a) and (b) for which a building permit has previously been obtained. Subsections (a) and (b) above shall not be effective with respect to police, fire, sheriff, ambulance, or highway patrol emergency vehicles or tow trucks owned and operated by an individual or business included on any law enforcement tow rotation list and subject to call for service during the hours of 2:00 a.m. and 6:00 a.m.

(d) Severability. If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this ordinance is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this ordinance. The Council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases are declared unconstitutional, invalid, or ineffective. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1305; Am. Ord. 6546, 1964; Am. Ord. 72-165, 1973; Am. Ord. 81-74, § 1, eff. 7-24-82; Am. Ord. 83-134, § 2, eff. 10-28-83; Am. Ord. 94-73, §§ 1, 2, 9-23-94; Am. Ord. 2000-81, § 2, eff. 1-26-01).

SEC. 14-1109. PARKING PROHIBITED AND RESTRICTED NEAR RAILWAY TRACKS.

No person shall park, stop, or stand any vehicle for any purpose on or within ten feet of the nearest rail of any railroad track except while any such vehicle is attended and engaged in loading or unloading passengers or materials. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1306).

SEC. 14-1110. PARKING ON MCKINLEY AVENUE RESTRICTED.

No person shall park, stop or stand any vehicle six feet in height or greater, including any load thereon, for any purpose, at the curb along the south side of McKinley Avenue between First and Millbrook Avenues. This parking restriction is enforceable twenty-four hours a day, seven days per week. (Added Ord. 98-1, § 1, eff. 2-15-98).

ARTICLE 12 STOPPING FOR LOADING OR UNLOADING ONLY

Sec. 14-1201. Authority to Establish Loading Zones.
Sec. 14-1202. Curb Markings to Indicate No Stopping and Parking Regulations.
Sec. 14-1203. Authority to Establish Limited Loading Zones.
Sec. 14-1204. Taxicabs Standing in Streets of Business Districts.
Sec. 14-1205. Standing in Official Car Zones.
Sec. 14-1206. Effect of Permission to Load and Unload.
Sec. 14-1207. Standing for Loading or Unloading Only.
Sec. 14-1208. Standing in Passenger Loading Zone.
Sec. 14-1209. Standing in Bank Service Zone.
Sec. 14-1210. School Buses Loading and Unloading at Transit System Curbspaces.

SEC. 14-1201. AUTHORITY TO ESTABLISH LOADING ZONES.

(a) The City Traffic Engineer, with the approval of the Chief of Police, is hereby authorized to determine and to mark loading zones, passenger loading zones, taxicab zones, and postal mailing zones as follows:

(1) At any place in the central business district or any business district.

(2) Elsewhere in front of the entrance to any place of business or in front of any hall or place used for the purpose of public assembly.

(b) Loading zones shall be indicated by yellow paint upon the top and face of all curbs within such zones.

(c) Passenger loading zones shall be indicated by a white line stenciled with black letters, "PASSENGER LOADING ONLY" upon the top of all curbs in said zones.

(d) Taxicab zones shall be indicated by a white line stenciled with black letters, "TAXI ZONE", upon the top of all curbs in said zones.

(e) Postal mailing zones shall be indicated by a white line stenciled with black letters, "POSTAL MAILING ZONE", upon the top of all curbs in said zones. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962).

SEC. 14-1202. CURB MARKINGS TO INDICATE NO STOPPING AND PARKING REGULATIONS.

(a) The City Traffic Engineer is hereby authorized, subject to the provisions and limitations of this chapter, to place, and when required herein shall place the following curb markings to indicate parking or standing regulations, and said curb markings shall have the meanings as herein set forth:

(1) Red shall mean no stopping, standing, or parking at any time except as permitted by the Vehicle Code, and except that a bus may stop in a red zone marked or signed as a bus zone.

(2) Yellow shall mean no stopping, standing, or parking at any time between 7:00 a.m. and 6:00 p.m. of any day except Sundays and holidays for any purpose other than the

loading or unloading of passengers or materials, provided that the loading or unloading of passengers shall not consume more than three minutes nor the loading and unloading of materials more than thirty minutes, unless the materials loaded or unloaded exceed two and one-half tons, in which event twelve minutes shall be allowed for the loading or unloading of each ton of materials, and provided further that for the purpose of conducting funeral services, a hearse accompanied by a maximum of three passenger vehicles may occupy a yellow zone for a period not to exceed two hours.

(3) White shall mean no stopping, standing, or parking for any purpose other than loading or unloading of passengers which shall not exceed three minutes, and such restrictions shall apply between 7:00 a.m. and 6:00 p.m. of any day except Sundays and holidays and except as follows:

(i) When such zone is in front of a hotel, the restrictions shall apply at all times.

(ii) When such zone is in front of a theater, the restrictions shall apply at all times, except when such theater is closed, materials may be loaded or unloaded for not more than thirty minutes.

(iii) When such a zone is a "Taxicab Zone," the restrictions for the loading or unloading of passengers shall apply for passenger vehicles at all times.

(iv) When such a zone is a "Postal Mailing Zone," the restrictions for the loading and unloading of passengers shall apply at all times. Stopping, standing, or parking for the purpose of depositing mail in a curbside mail box shall not exceed a period of time necessary for the expeditious depositing of mail, and in no event shall this period of time be more than thirty seconds. These restrictions shall apply at all times.

(v) When such zone is immediately adjacent to a bus terminal, the restrictions shall apply at all times.

(4) Green shall mean no standing or parking for longer than twenty-four minutes at any time between 9:00 a.m. and 6:00 p.m. of any day except Sundays and holidays.

(5) Blue shall mean no stopping, standing or parking of any vehicle other than one which displays one of the distinguishing license plates issued by the State Department of Motor Vehicles to disabled persons pursuant to Vehicle Code Section 22511.5 or to disabled veterans, as specified in Section 9105 of the Vehicle Code.

(b) When the City Traffic Engineer as authorized under this chapter has caused curb markings to be placed, no person shall stop, stand, or park a vehicle adjacent to any such legible curb marking in violation of any of the provisions of this section. (Rep. and Added Ord. 6130, 1962; based on former Sec. 1203; Am. Ord. 6873, 1966; Am. Ord. 67-26, 1967; Am. Ord. 68-8, 1968; Am. Ord. 76-57, § 3, 7-25-76).

SEC. 14-1203. AUTHORITY TO ESTABLISH LIMITED LOADING ZONES.

Whenever a survey by the City Traffic Engineer or Traffic Division of the Police Department has established the necessity for loading zones or bus zones only during certain hours of the day, the City Traffic Engineer is hereby authorized to install signs giving notice thereof. If such

loading zones are located in any parking meter district, the sign shall be placed on the parking meter post and indicate the hours during which that parking meter space shall become a loading zone. The deposit of coins in the parking meter shall not be required during the time the space is reserved as a loading zone. If such loading zones are located outside the parking meter district, signs shall be placed designating the hours and limits of such zones. All sections of this Code regulating loading zones shall apply equally to limited loading zones during the designated hours. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1202).

SEC. 14-1204. TAXICABS STANDING IN STREETS OF BUSINESS DISTRICTS.

No driver of a taxicab shall park a taxicab upon any street in any business district at any place other than a taxicab stand, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1206).

SEC. 14-1205. STANDING IN OFFICIAL CAR ZONES.

No person shall stop, stand or park a vehicle in any "Official Car Zone" unless such vehicle is equipped with exempt license plates issued by the State of California, or has on display a permit issued by an official agency authorized to issue such permits. Such zones will be in effect when permanent or temporary signs are installed giving notice thereof. The establishment of these zones may be authorized by the Chief of Police. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1209).

SEC. 14-1206. EFFECT OF PERMISSION TO LOAD AND UNLOAD.

(a) Permission herein granted to stop or stand a vehicle for purposes of loading or unloading of materials shall apply only to commercial vehicles and shall not extend beyond the time necessary therefor, and in no event for more than thirty minutes, unless the materials loaded or unloaded exceed two and one-half tons, in which event twelve minutes shall be allowed for the loading or unloading of each ton of materials.

(b) The loading or unloading of materials shall apply to commercial deliveries, also the delivery or pickup of express and parcel post packages and United States mail.

(c) Permission herein granted to stop or park for purposes of loading or unloading passengers shall include the loading or unloading of personal baggage but shall not extend beyond the time necessary therefor and in no event for more than three minutes, except no passenger vehicle shall stop or stand in a "taxicab zone" or a "postal mailing zone" for the purpose of loading or unloading passengers when such stopping would interfere with a taxicab waiting to enter or about to enter a taxicab stand or would interfere with a vehicle waiting to enter or about to enter a "postal mailing zone" for the purpose of depositing mail.

(d) Within the total time limits above specified, the provisions of this section shall be enforced so as to accommodate necessary and reasonable loading or unloading but without permitting abuse of the privileges hereby granted. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1204).

SEC. 14-1207. STANDING FOR LOADING OR UNLOADING ONLY.

No person shall stop, stand, or park a vehicle in any yellow loading zone for any purpose other than loading or unloading passengers or material for such time as is permitted in Section 14-1206. (Rep. and Added Ord. 6130, 1962).

SEC. 14-1208. STANDING IN PASSENGER LOADING ZONE.

No person shall stop, stand, or park a vehicle in any passenger loading zone for any purpose other than the loading or unloading of passengers for such time as is specified in Section 14-1206. (Rep. and Added Ord. 6130, 1962).

SEC. 14-1209. STANDING IN BANK SERVICE ZONE.

No person shall stop, stand, or park a vehicle in any "bank service zone" for any purpose other than to conduct a banking transaction or waiting in line to conduct a banking transaction at a special device installed at the curb for that purpose under such restrictions and such time as determined by resolution of the Council. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1208).

SEC. 14-1210. SCHOOL BUSES LOADING AND UNLOADING AT TRANSIT SYSTEM CURBSPACES.

School buses owned, or operated by a public school district, or operated under contract for a public school district, may load or unload passengers alongside curbspaces designated for the loading and unloading of passengers of the Fresno Transit System upon agreement between Fresno Transit and the public school district requesting such use, which agreement shall include indemnity, hold harmless, and liability coverage as determined by the City's Risk Management Division and approved by the City Attorney. (Added Ord. 84-53, § 1, eff. 5-18-84).

ARTICLE 13 RESTRICTED USE OF CERTAIN STREETS

Sec. 14-1301. Certain Vehicles Prohibited in Central Business District.
Sec. 14-1302. Advertising Vehicles.
Sec. 14-1303. Truck Routes.
Sec. 14-1304. Commercial Vehicles Prohibited from Using Certain Streets.
Sec. 14-1305. Vehicles Exceeding Maximum Gross Weight.

SEC. 14-1301. CERTAIN VEHICLES PROHIBITED IN CENTRAL BUSINESS DISTRICT.

(a) No person shall operate any of the following vehicles in the central business district between the hours of 10:00 A.M. and 6:00 P.M. of any day except on state highways:

(1) Any freight vehicle more than eight and one-half feet in width, with load, or any freight vehicle so loaded that any part of its load extends more than twenty feet to the front or rear of said vehicle;

(2) Any vehicle carrying building material that has not been loaded, or is not to be unloaded at some point within the central business district;

(3) Any vehicle or combination of vehicles with an over-all length exceeding thirty-five feet;

(4) Any vehicle conveying refuse, rubbish, garbage, or dirt except materials being conveyed from a construction project within the district;

(5) Any animal drawn vehicle;

(6) Any vehicle carrying liquid petroleum gas;

(7) Any funeral procession, except those originating within the central business district.

(b) The vehicles listed in subsection (a) may, however, operate over official truck routes lying within the central business district.

(c) The Chief of Police may, by written permit, authorize the operation of any vehicle listed in subsection (a) for the purpose of making necessary emergency deliveries to or from points within the central business district. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1401).

SEC. 14-1302. ADVERTISING VEHICLES.

No person shall operate or drive any vehicle used for advertising purposes or any advertising vehicle equipped with a sound-amplifying or loudspeaking device upon any street or alley at any time within the central business district. (Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1402).

SEC. 14-1303. TRUCK ROUTES.

(a) The Council by ordinance may designate streets as truck routes for the movement of any vehicle exceeding a maximum gross weight of twelve thousand pounds.

(b) When such truck route or routes are designated by appropriate signs, the operator of any vehicle exceeding the maximum gross weight limit provided in Subsection (a) of this section shall drive on such route or routes and none other, provided that nothing in this section shall prohibit the operator of any vehicle exceeding a said gross weight limit coming from or going to a truck route having ingress and egress by direct route considering origin and destination of trip, to and from restricted streets when necessary for, the purpose of making pickups and deliveries of goods, wares, and merchandise from or to any property located on such restricted streets; or for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling, or construction of any building or structure upon such restricted streets for which a building permit has previously been obtained; or for the actual and bona fide repair or servicing of the vehicle; or delivery of said operator to or from a motel or hotel at which he takes overnight accommodations.

(c) The provisions of this section shall not apply to:

(1) Passenger buses under the jurisdiction of the Public Utilities Commission, or operated by governmental agencies, or

(2) Any vehicle owned by a public utility while necessary in the use or the construction, installation, or repair of any public utility.

(3) Any vehicle operated by the City of Fresno, or any other governmental agency, or any employee thereof in the course of official business or any vehicle operated by a contractor of the city or any other governmental agency while such vehicle is used in the construction, maintenance, or repair of a street, storm drain in a street, or any similar street structure or such vehicle is upon a direct route to or from such work location.

(4) Any vehicle of military or naval forces of the United States, or the duly authorized militia of this State, in the proper performance of their duties.

(d) The City Traffic Engineer is hereby authorized and directed to erect, post, and maintain on all streets designated in this article as truck routes, appropriate signs to carry out the provisions of this article. All signs and marking shall be as specified in, erected and placed pursuant to the California Vehicle Code.

(e) There is hereby established an official city "List of Truck Routes". Whenever the Council has designated a street as a truck route, the City Traffic Engineer shall cause the designated truck route to be placed on the said list. The City Traffic Engineer shall keep a record of all ordinances hereafter adopted designating truck routes and shall cause notation of such records and such streets to be placed on said list in his office. Whenever any truck route is hereafter amended, deleted, or changed, the City Traffic Engineer shall cause such fact to be recorded upon the pertinent list in the appropriate place. Said list and the notation and contents therein as they may from time to time be kept and amended pursuant to this section shall be prima facie evidence of the existence and legality of the designation of said streets as truck routes and the legality of placing appropriate signing thereat as hereinafter provided. Said list, as

amended, shall be deemed to be incorporated herein. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1404; Am. Ord. 6383, 1964; Rep. and Added Ord. 73-14, 1973; Am. Ord. 73-104, § 1, eff. 8-6-73; Am. Ord. 73-130, §§ 1, 2, eff. 9-30-73).

SEC. 14-1304. COMMERCIAL VEHICLES PROHIBITED FROM USING CERTAIN STREETS.

(a) Whenever any resolution of this city designates and describes any street or portion thereof as a street the use of which is prohibited by any commercial vehicle, the City Engineer shall erect and maintain appropriate signs on those streets affected by such resolution.

(b) Those streets and parts of streets so established by resolution of the Council are hereby declared to be streets, the use of which is prohibited by any commercial vehicle. The provisions of this section shall not apply to passenger buses under the jurisdiction of the Public Utilities Commission. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1405).

SEC. 14-1305. VEHICLES EXCEEDING MAXIMUM GROSS WEIGHT.

Except as provided in Public Utilities Code Sections 1031—1036, Vehicles exceeding 6 tons, gross weight are prohibited from traveling on the following city streets:

1. Martin Luther King Boulevard between North Avenue and Jensen Avenue;
2. Clinton Avenue between West Avenue and Blackstone Avenue.

Commercial vehicles exceeding 6 tons gross weight coming from an unrestricted street having ingress or egress by direct route to and from a restricted street may travel upon the restricted street when necessary for the purpose of making pickups or deliveries of goods, wares and merchandise from or to any building or structure located on the restricted street for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling, or construction of any building or structure upon the restricted street for which a building permit has previously been obtained. (Added Ord. 98-12, § 1, eff. 4-3-98)

ARTICLE 14 PARKING METERS

Sec. 14-1401. Parking Meter Zones; Meter Installation.
Sec. 14-1402. Parking Meter Rates and Rules.
Sec. 14-1403. Parking Meters; Deposit of Coins.
Sec. 14-1404. Parking Meters; Times for Operation.
Sec. 14-1405. Parking Meters; Overtime Parking.
Sec. 14-1406. Improper Use of Meter.
Sec. 14-1407. Deposit of Coins in Meter by Unauthorized Person.
Sec. 14-1408. Parking Meters and Parking Meter Standards Not to be Used for Certain Purposes.
Sec. 14-1409. Use of Money Deposited in Parking Meters.
Sec. 14-1410. Application of Other Articles.
Sec. 14-1411. Purpose of Parking Meter Fees.
Sec. 14-1412. Collection of Coins from Parking Meters.
Sec. 14-1413. Method of Parking on City-Owned Parking Lots.
Sec. 14-1414. Regulation of Traffic and Parking on Lots and Parking Structures.

SEC. 14-1401. PARKING METER ZONES; METER INSTALLATION.

(a) **Zones.** Council may adopt parking meter zone(s) by resolution. The limits of any parking meter zone(s) adopted by Council shall be shown on that certain map on file in the office of the City Traffic Engineer entitled "City of Fresno Parking Meter Zone Map," which is hereby referred to and incorporated herein as though set forth in full. Council may amend said map by resolution.

(b) **Meter Installation.** The City Traffic Engineer shall order the installation of parking meters at all locations on public streets within established parking meter zones where parking spaces are available and where any such available spaces are not otherwise designated for special parking purposes (such as loading, taxicab, postal zones, unmetered limited parking zones, etc.), and on city-owned or operated parking lots at all parking spaces except those which are included within the three-hour free parking program or other extended parking program approved by the Council, or which are designated for city or official vehicle use.

(c) **Meter Removal.** The City Traffic Engineer may cause meters to be removed for the repair and routine maintenance thereof, whenever the particular parking spaces are designated for some other purpose as above, or as part of an experimental program subject to the restrictions contained in Section 14-203(b).

(d) **State Highways.** Parking meters shall not be placed on state highways until an ordinance with respect thereto has been submitted to and approved in writing by the Department of Public Works of the State of California. Such ordinance shall cease to be operative with regard to parking meters on state highways within six months after receipt of written notice of the withdrawal of the approval from the State Department of Public Works. (Rep. and Added Ord. 6130, 1962, based on former Secs. 10-1901 and 10-1902; Am. Ord. 6511, 1964; Am. Ord. 67-39, 1967; Am. Ord. 76-126, § 1, eff. 1-23-77; Am. Ord. 83-149, § 1, eff. 12-2-83; Am. Ord. 86-71, § 1, eff. 6-13-86; Am. Ord. 2002-39, § 1, eff. 8-22-02).

SEC. 14-1402. PARKING METER RATES AND RULES.

(a) **Rates.** Parking meter fees charged for on-street and off-street parking shall be designated in the Master Fee Resolution.

(b) **Meter Rate Variations.** Meters need not accept coins in the exact amounts designated, but may accept any variation of coins so long as the applicable rates are maintained. (Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1904; Am. Ord. 67-1967, based on former Sec. 10-1403; Am. Ord. 67-52, 1967; Am. Ord. 69-7, 1967; Am. Ord. 80-102, § 1, eff. 8-1-80; Am. Ord. 80-115, § 109, eff. 8-8-80).

SEC. 14-1403. PARKING METERS; DEPOSIT OF COINS.

No person shall park any vehicle in any parking meter space, except as otherwise permitted in this chapter, without immediately depositing in the parking meter adjacent to such space such lawful coin or coins of the United States as are required by such meter unless the parking meter indicates that at the time such vehicle is parked an unexpired portion remains of the period for which a coin or coins has been previously deposited.

Exceptions: The provisions of this section shall not apply to: holders of monthly parking permits issued by the Controller for use on parking lots pursuant to a resolution of the Council, to vehicles lawfully displaying a license plate issued by the California Department of Motor Vehicles to Medal of Honor recipients, Legion of Valor recipients, Purple Heart recipients, Pearl Harbor Survivors, Former Prisoners of War, Gold Star Family members, and such other license plates issued by another State.
(Rep. and Added Ord. 6130, 1962; Am. Ord. 6435, 1964; Am. Ord. 67-39, 1967; Am. Ord. 95-60, § 1, eff. 9-15-95; Am. Ord. 96-27, § 1, eff. 5-10-96; Am. Ord. 96-75, § 1, eff. 1-17-97; Am. Ord. 2003-83, § 1, eff. 10-21-03; Am. Ord. 2004-116, § 1, 12-5-04; Am. Ord. 2008-65, § 3, eff. 12-15-08; Am. Ord. 2010-41, § 2, eff. 11-11-10).

SEC. 14-1404. PARKING METERS; TIMES FOR OPERATION.

Council shall adopt hours of operation for all parking meter zones by resolution. The hours of operation shall be posted either on the parking meters or on a sign visible from the street. The Chief of Police may, at his discretion, from time to time prohibit all parking in areas included in parking meter zones during times of emergency by causing appropriate "No Parking" signs to be installed.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1906; Am. Ord. 83-50, § 1, eff. 6-3-83; Am. Ord. 2002-39, § 2, eff. 8-22-02).

SEC. 14-1405. PARKING METERS; OVERTIME PARKING.

(a) No operator of any vehicle shall permit said vehicle to remain parked in any parking space during any time that the meter is showing a signal indicating that such space is illegally in use other than such time immediately after the original occupancy as is necessary to operate the meter to show legal parking.

(b) No person shall deposit or cause to be deposited in a parking meter a coin for the purpose of increasing or extending the parking time of any vehicle beyond the legal parking time which has been established for the parking space adjacent to which said parking meter is placed.
(Rep. and Added Ord. 6130, 1962, based on former Sec. 10-1905).

SEC. 14-1406. IMPROPER USE OF METER.

No person shall deposit or cause to be deposited in any parking meter any defaced or bent coin, or any slug, device, or metallic substitute for a coin of the United States, or deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter.
(Added Ord. 6130, 1962, based on former Sec. 10-1907).

SEC. 14-1407. DEPOSIT OF COINS IN METER BY UNAUTHORIZED PERSON.

No person, other than the owner or operator of a vehicle, shall deposit any coin in any parking meter without the knowledge or consent of said owner or operator of the vehicle using the parking space immediately adjacent to said meter.
(Added Ord. 6130, 1962).

SEC. 14-1408. PARKING METERS AND PARKING METER STANDARDS NOT TO BE USED FOR CERTAIN PURPOSES.

No person shall attach anything to, or allow a bicycle, newsrack or any other article or thing to lean against a parking meter or a parking meter standard.
(Added Ord. 6130, 1962).

SEC. 14-1409. USE OF MONEY DEPOSITED IN PARKING METERS.

All moneys collected from parking meters installed under the provisions of this chapter shall be placed in a separate fund which shall be a special trust fund to be known as the "Parking Meter Fund," which fund is hereby created, and which trust fund shall be devoted exclusively to the following purposes:

(a) For the purchasing, leasing, installing, repairing, maintaining, operating, removing, regulating, and policing of parking meters and parking meter spaces; for the collection of the receipts therefrom and for the payment of any and all expenses relating or incidental thereto;

(b) For the installation and maintenance of official traffic signs, signals, and other official traffic control devices;

(c) For the painting and marking of streets and curbs required for the direction of traffic and the parking of motor vehicles;

(d) For the purchasing, leasing, acquiring, improving, operating, and maintaining of off-street or below-street parking facilities within the city. Consistent with the purpose of the regulation of traffic and the prevention of congestion of the city streets, it is the

intention of this city that off-street or below-street parking facilities be acquired in close proximity to the business district in which the parking meter zones are established, and be paid for from the receipts of the parking meters installed in said business districts.

(Added Ord. 6130, 1962; based on former Sec. 10-1910).

SEC. 14-1410. APPLICATION OF OTHER ARTICLES.

No section of this article shall be construed as permitting any parking in violation of any other provision of this chapter.

(Added Ord. 6130, 1962).

SEC. 14-1411. PURPOSE OF PARKING METER FEES.

The coins required to be deposited in parking meters, as provided herein, are hereby levied and assessed as fees to provide for the proper regulation and control of traffic upon the public streets and to cover the cost of supervision, inspection, installation, operation, maintenance, control, and use of the parking spaces and parking meters described herein, and also the cost of supervising and regulating the parking of vehicles in the parking meter zones created hereby.

(Added Ord. 6130, 1962; based on former Sec. 10-1908).

SEC. 14-1412. COLLECTION OF COINS FROM PARKING METERS.

The Controller is hereby authorized, and it shall be his duty, to designate some person or persons to make regular collections of the money deposited in said parking meters. It shall be the duty of such person or persons so designated to collect and deliver to the Controller all money deposited in the parking meters. The Controller shall keep accurate account of all the parking meter money so delivered to him.

(Added Ord. 6130, 1962; based on former Sec. 10-1909).

SEC. 14-1413. METHOD OF PARKING ON CITY-OWNED PARKING LOTS.

The City Traffic Engineer shall install signs and painted lines and markings on city-owned or operated parking lots designating the method, location, and position in which vehicles shall be required to park. When signs and markings are in place giving notice thereof, no person shall park any vehicle across any such lines or markings, and shall park said vehicle in such position and in the manner prescribed by the instructions on such signs.

(Added Ord. 6130, 1962; based on former Sec. 10-1911; Am. Ord. 6435, 1964; Am. Ord. 6885, 1966).

SEC. 14-1414. REGULATION OF TRAFFIC AND PARKING ON LOTS AND PARKING STRUCTURES.

(a) Wherever this article grants a power to or imposes a duty upon the Traffic Engineer in regard to a parking lot or other off-street parking, public or private, the power or duty shall also apply in regard to a parking structure or garage whether on, above, or under ground.

(b) The Traffic Engineer may prohibit or regulate traffic and parking on city owned or controlled parking lots and cause the placing of signs and markings giving reasonable notice of the prohibitions or regulations. When such signs or markings are in place giving notice thereof, no person shall disobey the prohibition or regulation prescribed by such signs or markings.

(Added Ord. 68-167, 1968).

ARTICLE 15 SPECIAL SPEED ZONES

Sec. 14-1501. Special Speed Zones.
Sec. 14-1502. Regulation of Speed by Traffic Signals.

SEC. 14-1501. SPECIAL SPEED ZONES.

(a) The Council may by ordinance establish increased speed zones when on the basis of an engineering and traffic survey it determines that a speed of 30, 35, 40, 45, 50, 55, 60, or 65 miles per hour facilitates the orderly movement of vehicular traffic and would be reasonable and safe upon a street or highway otherwise subject to a prima facie limit of 25 miles per hour applicable under the California Vehicle Code.

(b) The Council may by ordinance establish limited speed zones when on the basis of an engineering and traffic survey it determines that a speed limit of 65 miles per hour is more than is reasonable or safe on any part of a street or highway when such speed limit is 65 miles per hour under the California Vehicle Code and further determines that a speed of 60, 55, 50, 45, 40, 35, 30, or 25 miles per hour is more appropriate to facilitate the orderly movement of vehicular traffic.

(c) When the Council by ordinance has designated a prima facie speed limit other than applicable under the California Vehicle Code, the City Traffic Engineer is authorized and directed to erect, post, and maintain appropriate signs on these streets or portions thereof designating the prima facie speed limit pursuant to the provisions of this article. All signs shall be as specified in, erected and placed pursuant to the California Vehicle Code.

(d) There is hereby established an official City "list of Speed Zones" established pursuant to this article. The City Traffic Engineer shall cause the special speed zones to be placed on said list. The City Traffic Engineer shall keep a record of all ordinances hereafter adopted designating the special speed zones and shall cause notation of such records and such streets or portions thereof to be placed on said list in his office. Whenever any special speed zone is hereafter amended, deleted, or changed, the City Traffic Engineer shall cause such fact to be recorded upon the pertinent list in the appropriate place. Said list and the notation and the contents therein as they may from time to time be kept and amended pursuant to this section shall be prima facie evidence of the existence and legality of the special speed zones on street or portions thereof and the legality of the placing of the appropriate signing as hereinabove provided. Said list as amended shall be deemed to be incorporated herein.
(Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1701; Am. Ord. 6245, 1963; Am. Ord. 6453, 1964; Am. Ord. 6598, 1965; Am. Ord. 6850, 1966; Am. Ord. 6858, 1966; Am. Ord. 68-28, 1968; Am. Ord. 69-119, 1970; Rep. and Added Ord. 73-39, 1973).

SEC. 14-1502. REGULATION OF SPEED BY TRAFFIC SIGNALS.

The City Traffic Engineer is authorized to regulate the timing of traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable within the district or at intersections, and shall erect appropriate signs giving notice thereof.
(Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1702).

ARTICLE 16 TRAFFIC REGULATIONS IN CITY PARKS AND PLAYGROUNDS

Sec. 14-1601. Authority of Director of Parks and Recreation.
Sec. 14-1602. Saddle Horse in Parks.
Sec. 14-1603. Vehicles and Bicycles in Parks and Playgrounds.
Sec. 14-1604. Commercial Vehicles in Parks and Playgrounds.
Sec. 14-1605. Towing of Vehicles.

SEC. 14-1601. AUTHORITY OF DIRECTOR OF PARKS AND RECREATION.

(a) The Director of Parks and Recreation is hereby authorized and directed to post and maintain appropriate signs indicating that parking is limited or prohibited on any park drive, park road, or at any other place within parks, playgrounds, and recreation areas owned or controlled by the city during such hours or on such days or both as is necessary for the safety of the public or the reasonable use or enjoyment by the public of the park, playground, or recreation area; and whenever such authorized signs are in place giving notice thereon that parking is limited or prohibited during such hours or on such days as are indicated on the signs, no person shall park any vehicle, motor vehicle, or motorcycle at any time during such hours or on such days or for any length of time prohibited as indicated by such signs. All signs shall conform with standards established by the City Traffic Engineer.

SEC. 14-1602. SADDLE HORSES IN PARKS.

No person shall lead, ride, or drive any horse on any place in a park or playground other than upon roads or paths designated and posted as a "Bridle Path", except that roads not designated as a bridle path may be crossed at crossings designated and posted therefore by the Director of Parks and Recreation.
(Rep. and Added Ord. 6130, 1962; based on former Sec. 10-1602).

SEC. 14-1603. VEHICLES AND BICYCLES IN PARKS AND PLAYGROUNDS.

No operator of a vehicle or a bicycle shall drive same in any part of a park or playground other than upon roads or drives provided for such purposes.
(Added Ord. 6130, 1962; based on former Sec. 10-1603).

SEC. 14-1604. COMMERCIAL VEHICLES IN PARKS AND PLAYGROUNDS.

No operator of any commercial vehicle carrying merchandise or materials shall drive same upon any road or drive in a park or playground except when same is being done for the improvement of the park and at the direction of the Director of Parks and Recreation.
(Added Ord. 6130, 1962; based on former Sec. 10-1604).

SEC. 14-1605. TOWING OF VEHICLES.

No person shall tow any vehicle of any kind in any park, except that, in case of breakdowns within a park, a disabled vehicle may be towed to the nearest point of exit and, pursuant to a request from any member of the Police Department authorized by the Police Chief or any member of the Park Police authorized by the Parks and Recreation Director, a vehicle found

to be in violation of any section of this chapter which authorizes the towing of any vehicle in violation of such section may be towed from any such park or from any recreation facility to a public garage.
(Added Ord. 6130, 1962; based on former Sec. 10-1605; Am. Ord. 76-57, § 4, eff. 7-25-76).

ARTICLE 17 REGULATIONS FOR BICYCLES

Sec. 14-1701. Obedience to Traffic Control Devices.
Sec. 14-1702. Towing Persons.
Sec. 14-1703. Riding on Sidewalks.
Sec. 14-1704. Speed.
Sec. 14-1705. Emerging from Alley or Driveway.
Sec. 14-1706. Crosswalks.
Sec. 14-1707. Parking.
Sec. 14-1708. Effect of Regulations.

SEC. 14-1701. OBEDIENCE TO TRAFFIC CONTROL DEVICES.

The operator of any bicycle shall obey the instructions of any official traffic control device placed in accordance with this chapter unless otherwise directed by a police officer or other authorized person. (Added Ord. 76-24, § 6, eff. 4-18-76).

SEC. 14-1702. TOWING PERSONS.

No operator of a bicycle shall draw or tow any person who is on roller skates, toy vehicles, coasters, sled, skateboard, or other similar device in any public street, sidewalk, or bicycle path. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 72-120, 1972; Am. Ord. 76-24, § 7, eff. 4-18-76).

SEC. 14-1703. RIDING ON SIDEWALKS.

(a) No person shall operate a bicycle or unicycle on a sidewalk in the central business district, or on any street designated as a mall street by the provisions of this Code.

(b) Whenever any person is riding a bicycle upon a sidewalk, such person shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian. At the intersection of two or more sidewalks, where the vision of the operator of a bicycle is so restricted by hedges, bushes, buildings, or any other obstruction so that the approach of a pedestrian cannot be observed and there is danger of a collision with the pedestrian, the operator of a bicycle shall dismount and walk through the intersection of the sidewalks. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 6495, 1964).

SEC. 14-1704. SPEED.

No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing and in no event at a speed greater than the prima facie speed limit applicable to motor vehicles. (Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 72-120, 1972).

SEC. 14-1705. EMERGING FROM ALLEY OR DRIVEWAY.

The operator of a bicycle emerging from an alley, driveway, or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway, yield the

right-of-way to all pedestrians approaching on said sidewalks or sidewalk area, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on said roadway.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 76-24, § 8, eff. 4-18-76).

SEC. 14-1706. CROSSWALKS.

Whenever any person is riding a bicycle in a crosswalk, such person shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrians.
(Added Ord. 76-24, § 9, eff. 4-18-76; Am. Ord. 2025-061, § 4, eff. 1-30-26).

SEC. 14-1707. PARKING.

No person shall park a bicycle upon any public street, sidewalk, bicycle lane, or bicycle path except as provided in this section.

(a) Bicycles shall be parked in a designated bicycle parking facility or rack, except as permitted in the following sections.

(b) If no designated bicycle parking facility or rack is readily accessible, a bicycle may be parked on a roadway provided that it shall be parked against the curb thereof or the edge thereof if there is no curb.

(c) If no designated bicycle parking facility or rack is readily accessible, a bicycle may be parked upon a sidewalk provided that it shall be parked so as not to obstruct pedestrian traffic.

(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 72-120, 1972; Am. Ord. 76-24, § 10, eff. 4-18-76; Am. Ord. 2025-061, § 4, eff. 1-30-26).

SEC. 14-1708. EFFECT OF REGULATIONS.

No parent of any child or the guardian of any ward shall authorize or knowingly permit such child or ward to violate any of the provisions of this article.
(Orig. Ord. 3811; Rep. and Added Ord. 6130, 1962; Am. Ord. 72-120, 1972).

ARTICLE 18 TRAFFIC REGULATIONS IN MALL, ALLEYS IN THE MALL AREA AND SERVICE AREAS

Sec. 14-1801. Traffic in Mall.
Sec. 14-1802. Vehicles in Alleys in the Historical Fulton Mall Area.
Sec. 14-1803. Reserved.
Sec. 14-1804. Effective Date of Regulations.
Sec. 14-1805. Roller Skates.
Sec. 14-1806. Peddling on Mall Streets.

SEC. 14-1801. TRAFFIC IN MALL.

(a) VEHICLES PROHIBITED. No person shall operate or park any vehicle other than the following on any of the mall streets described herein:

(1) Emergency vehicles.

(2) Pedes-trains authorized by the Council.

(3) Post office vehicles while being used to pick up and deliver United States mail to locations that cannot be reached at other service areas.

(4) Vehicles on display when such has been approved by the Council by resolution.

(5) Construction vehicles and equipment, between the hours of 9:00 p.m. and 9:00 a.m. only, while being used in construction and demolition operations on buildings adjacent to mall streets.

(6) Public vehicles or public utility vehicles or equipment while engaged in construction or maintenance on a mall.

(7) Maintenance vehicles and equipment, between the hours of 9:00 p.m. and 9:00 a.m. only, while being used to maintain buildings and facilities that cannot be reached from other service areas.

(8) Delivery vehicles between the hours of 9:00 p.m. and 10:00 a.m. only, while being used to deliver goods to locations that cannot be reached from other service areas; provided that during the week before Easter, the week before the Fresno public schools open in the fall, and the month of December, such delivery vehicles shall make deliveries between the hours of 9:00 p.m. and 9:00 a.m. only.

(9) Self-propelled wheelchairs or invalid tricycles while being operated by persons who by reason of physical disability are unable to move about as pedestrians, subject to the permission of the Chief of Police, who shall determine the fact of such disability and who shall allow such use only upon conditions reasonably calculated to protect pedestrian traffic on mall streets.

(10) Bicycles.

(11) Bicycle taxis, designed to carry passengers for fare.

(b) No person shall operate or park on any mall in the City any vehicle or equipment which will mark, stain or damage a mall structure or the surface of a mall, by wheel marks, the dripping of oil, or any other means.

(c) Any person operating or causing the operation of any equipment or vehicles which damage a mall or surface of a mall or any fixtures or appurtenances in a mall shall be responsible for replacing or repairing the same to the satisfaction of the City, and upon failing to do so, shall be responsible to the City for the cost thereof.

(d) The vehicular use of mall streets at any time other than as expressly permitted herein shall be subject to the permission of the Chief of Police, who shall allow such use only at times and on any conditions reasonably calculated to protect the mall surfaces, fixtures, appurtenances and pedestrian traffic therein.

(e) The enforcement of this section shall be the responsibility of the Chief of Police.

(f) The following are mall streets:

Mariposa Mall—between the northeast curb line of "O" Street and the southwest curb line of "P" Street, between the northeast curb line of "M" Street and the southwest curb line of "N" Street, between the northeast curb line of the Fulton-Van Ness Alley and the southwest curb line of Van Ness Avenue.

Kern Mall—between the southwest curb line of Fulton Street and the Broadway-Fulton Alley.

(g) The following are Historical Mall Streets:

Fulton Street—between the southeast curb line of Tuolumne Street and the northwest curb line of Inyo Street.

Merced Street—between the Fulton-Van Ness Alley and the Broadway-Fulton Alley.

Mariposa Street—between the northeast curb line of Broadway and the Broadway-Fulton Alley and between the Broadway-Fulton Alley and the northeast curb line of the Fulton-Van Ness Alley.

Kern Street—between the Fulton-Van Ness Alley and Fulton Street.
(Rep. and Added Ord. 6130, 1962; Am. Ord. 6572, 1965; Am. Ord. 6947, 1967; Am. Ord. 75-91, § 2, eff. 10-5-75; Am. Ord. 2006-74, § 2, eff. 7-22-06; Ord. No. 2008-58, § 1, eff. 11-2-08; Am. Ord. 2014-16, §§ 5, 8, eff. 4-18-14).

SEC. 14-1802. VEHICLES IN ALLEYS IN THE HISTORICAL FULTON MALL AREA.

(a) CERTAIN VEHICLES PROHIBITED. No person shall operate or park any vehicle, other than authorized emergency vehicles, commercial vehicles, or pedes-trains authorized by the Council by resolution, on the alleys in the historical mall area listed in subsection (d), except for the purpose of ingress to or egress from private parking spaces adjacent to such alley.

(b) METHOD OF PARKING. No person shall park a vehicle within the alleys listed in subsection (d) in such a manner or under such conditions as to leave available less than ten feet of width of the roadway for the free movement of vehicular traffic, and no person shall stop, stand or park a vehicle in such a position as to block any loading entrance to any abutting property.

(c) TIME LIMITS. Permission is herein granted to park such vehicles in the alleys listed in subsection (d) for the purpose of loading and unloading materials, but only for the time necessary therefor and in no event for more than thirty minutes, unless the materials loaded or unloaded exceed two and one-half tons, in which event twelve minutes shall be allowed for the loading or unloading of each ton of materials. The Chief of Police by special permit may authorize the parking of vehicles for longer periods for the following purposes:

(1) Construction vehicles and equipment while being used in actual construction and demolition operations.

(2) Maintenance vehicles and equipment while being used in connection with maintenance of buildings abutting such alley or the facilities installed in such alley.

(d) LIST OF ALLEYS IN THE HISTORICAL MALL AREA:

Congo Alley between Inyo and Tuolumne;

Federal Alley between Inyo and Tuolumne.
(Rep. and Added Ord. 6130, 1962; Am. Ord. 2014-16, § 6, eff. 4-18-14).

SEC. 14-1803. RESERVED.

Editor's note—Ord. 2014-16, § 1, effective April 18, 2014, amended the Code by repealing former § 14-1803 in its entirety. Former § 14-1803 pertained to vehicles in mall service areas, and derived from Ord. 6130 of 1962.

SEC. 14-1804. EFFECTIVE DATE OF REGULATIONS.

The regulations prescribed by this article shall not be effective as to any street, alley or service area described in this article until the mall thereon or adjacent thereto has been established and installed.
(Rep. and Added Ord. 6130, 1962).

SEC. 14-1805. ROLLER SKATES.

No person shall roller skate or ride on skateboards or operate any device having metal tread wheels on any street designated as a mall street, pursuant to the provisions of this Code.
(Added Ord. 6505, 1964).

SEC. 14-1806. PEDDLING ON MALL STREETS.

No person shall sell, vend or peddle any food, drinks or merchandise on the Mall Streets or the Historical Mall Streets as defined in Section 14-1801(g), including by means of a stand, wagon, pushcart, handcart, bicycle, motorized cart or other vehicle, or from a basket or other

container carried on the person, unless that person is a Mall Street Concessionaire and is prominently displaying on their person or vehicle a city-issued official badge or sign designating them as being approved by the Director of Parks and Recreation as a Mall Street Concessionaire. A person may become a Mall Street Concessionaire by execution of an agreement approved by the Director of Parks and Recreation.

For purposes of Mall Street Concessionaires operating in a Mall Street, as defined in Section 14-1801(f), the concession agreement shall be in a form approved by the Director of Parks and Recreation and may be approved so long as the Director determines that the agreement will improve the pedestrian mall by either being necessary or convenient to the operation of the pedestrian mall or necessary or convenient to serve members of the public using the pedestrian mall. Any process to issue or revoke a concession agreement adopted by the Director of Parks and Recreation for vendors operating in a Mall Street shall be in compliance with due process and all State and Federal laws protecting against unlawful discrimination.

For purposes of Mall Street Concessionaires operating in a Historical Mall Street, as defined in Section 14-1801(g), the concession agreement shall be in the form of an encroachment agreement issued by the Public Works Director under rules and procedures adopted by the Public Works Director. The encroachment permit shall specify the location where vending is permitted under the permit. The City shall charge no more for the encroachment permit than the City's reasonable costs in administering, managing and enforcing the permit and the City's reasonable costs to improve and maintain that area of the historical mall street (and improvements therein) that provide a benefit to the vendor. The permit shall include an indemnity agreement in a form approved by the City Attorney and the Risk Manager and the permittee shall provide proof of insurance in a form approved by the City Attorney and the Risk Manager. Any process to issue or revoke a permit adopted by the Public Works Director for vendors operating in a Historical Mall Street shall be in compliance with due process and all State and Federal laws protecting against unlawful discrimination.

(Added Ord. 2003-67, § 33, eff. 8-31-03; Am. Ord. 2014-16, § 7, eff. 4-18-14).

ARTICLE 19 USE OF AIRCRAFT ON STREETS

Sec. 14-1901. Designation of Streets.
Sec. 14-1902. Certain Aircraft Prohibited.
Sec. 14-1903. Minimum Equipment Required on Aircraft.
Sec. 14-1904. Rules of the Road for Aircraft.
Sec. 14-1905. No Parking of Aircraft and Vehicles.

SEC. 14-1901. DESIGNATION OF STREETS.

All public streets shown on the Sierra Sky Park Subdivision Map, as recorded in the office of the County Recorder of the County of Fresno in Volume 13 of Plats, at Page 27, are hereby designated as streets upon which vehicles and aircraft may be used concurrently except that portion of the following avenues:

(a) Herndon Avenue.

(b) Blythe Avenue.

(c) The southern 75 feet of Spaatz Avenue, from Blythe Avenue to a point 300 feet west of Doolittle Drive.

All aircraft permitted on streets within the Sierra Sky Park Subdivision shall be used solely for the purpose of taxiing of aircraft thereon between the airport and the place where such aircraft are hangared or tied down.
(Added Ord. 79-166, § 1, eff. 11-16-79; Am. Ord. 2021-039, § 1, eff. 9-26-21).

SEC. 14-1902. CERTAIN AIRCRAFT PROHIBITED.

The following aircraft are prohibited from using any street designated herein for use by vehicles and aircraft:

(a) Aircraft which are dependent upon the use of horizontal rotary propellers for propulsion on land.

(b) Aircraft which exceed 12,500 pounds gross weight.
(Added Ord. 79-166, § 1, eff. 11-16-79).

SEC. 14-1903. MINIMUM EQUIPMENT REQUIRED ON AIRCRAFT.

All aircraft shall be equipped and maintained as follows:

(a) Aircraft shall be equipped with brakes adequate to control the movement of the aircraft.

(b) Aircraft operated during the periods between one-half hour after sunset and one-half hour before sunrise and during periods of limited visibility shall be equipped with landing lights. Such lights shall be in operation while the aircraft is taxiing on the streets.
(Added Ord. 79-166, § 1, eff. 11-16-79).

SEC. 14-1904. RULES OF THE ROAD FOR AIRCRAFT.

The operator of an aircraft, when operating on these designated streets, shall comply with all applicable chapters and articles of Division 11 (Rules of the Road) of the State of California "Vehicle Code."
(Added Ord. 79-166, § 1, eff. 11-16-79).

SEC. 14-1905. NO PARKING OF AIRCRAFT AND VEHICLES.

Aircraft and vehicles shall not park on any public street herein designated for their joint use, except the following streets wherein parking of aircraft shall be permitted:

(a) Spaatz Avenue between Doolittle Avenue and a point 300 feet west of Doolittle Avenue;

(b) Doolittle Avenue between Spaatz Avenue and Herndon Avenue.

(Added Ord. 79-166, § 1, eff. 11-16-79; Am. Ord. 2021-039, § 2, eff. 9-26-21).

ARTICLE 20 RESIDENTIAL PERMIT PARKING

Sec. 14-2001. Definitions.
Sec. 14-2002. Designation of Residential Permit Parking Areas.
Sec. 14-2003. Designation Criteria.
Sec. 14-2004. Designation Process.
Sec. 14-2005. Council Determination.
Sec. 14-2006. Amendment of Designation.
Sec. 14-2007. Posting of Residential Permit Parking Area.
Sec. 14-2008. Application for and Duration of Permit.
Sec. 14-2009. Permit Fees.
Sec. 14-2010. Issuance of Permits.
Sec. 14-2011. Prohibited Parking.
Sec. 14-2012. False Representation or Information.
Sec. 14-2013. Use or Display of Permit Prohibited.
Sec. 14-2014. Counterfeit Permits.
Sec. 14-2015. Revocation of Permit.
Sec. 14-2016. Rules and Regulations.
Sec. 14-2017. Downtown Corridor Parking District.

SEC. 14-2001. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Administrative costs" means all costs incurred by the city which are associated with or attributable to the initial and continuing designation of the residential permit parking area, including but not limited to the costs of preparing and processing permits, the costs of preparation, installation, maintenance and removal of the residential parking permit area signs, and the costs of enforcing violations of Section 14-2011 of this article.

(c) "Chief Administrative Officer" means the Chief Administrative Officer of the city or his designated representative.

(d) "Commuter vehicle" means a motor vehicle registered with the State of California Department of Motor Vehicles to an address located outside a residential permit parking area.

(e) "Lease" means that a person pays rent or other remuneration for use of a parcel of real property.

(f) "Motor vehicle" means an automobile, truck, motorcycle or other motor-driven form of transportation not in excess of 6,000 pounds gross weight.

(g) "Owns" means that a person has at least a one-quarter interest in a parcel of real property.

(h) "Parking attractor" means a facility which creates a demand for parking, including but not limited to hospitals and university complexes.

(i) "Person" means a natural person.

(j) "Residential area" means a contiguous or substantially contiguous area in which residents dwell and which contains public streets and highways or parts thereof.

(k) "Residential permit parking area" means a residential area designated as herein provided wherein resident motor vehicles displaying a valid permit as described herein shall be exempt from parking restrictions established pursuant to this article.

(l) "Resident vehicle" means a motor vehicle registered with the State of California Department of Motor Vehicles to an address located within a residential permit parking area for which a parking permit is issued. (Added Ord. 80-143, § 3, eff. 10-17-80; Am. Ord. 83-55, § 1, eff. 6-10-83).

SEC. 14-2002. DESIGNATION OF RESIDENTIAL PERMIT PARKING AREAS.

The Council shall, upon recommendation of the Chief Administrative Officer, consider for designation as residential permit parking areas those residential areas satisfying the designation criteria established in this article. The Council may, in its discretion, and in accordance with the designation criteria set forth herein, designate by resolution certain residential areas as residential permit parking areas in which resident vehicles displaying a valid parking permit may stand or be parked without limitation by parking restrictions established by this article. (Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2003. DESIGNATION CRITERIA.

(a) A residential area shall be deemed eligible for consideration as a residential permit parking area if, based on surveys and studies prepared at the direction of the Chief Administrative Officer or his designee, objective criteria establish that the residential area is impacted by commuter vehicles for any extended period.

(b) In determining whether a residential area may be designated as a residential permit parking area, the Chief Administrative Officer and the Council shall take into account factors which include but are not limited to the following:

(1) The extent to which a hospital, university complex or other parking attractor attracts commuter vehicles parking in the residential area during the period and days proposed for parking restriction;

(2) The extent to which resident vehicles cannot be accommodated by the number of available off-street parking spaces;

(3) The extent of the desire and need of the residents for residential permit parking and their willingness to bear the administrative costs in connection therewith;

(4) The extent to which legal on-street parking spaces are occupied by motor vehicles during the period proposed for parking restriction; and

(5) The extent to which vehicles parking in the area during the period proposed for parking restriction are commuter vehicles rather than resident vehicles. (Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2004. DESIGNATION PROCESS.

(a) Upon receipt of a verified petition by residents of at least 100 dwelling units in the residential area proposed for designation or residents living in 50% of the living units in the area proposed for designation, whichever is lesser, the Chief Administrative Officer or his designee shall undertake or cause to be undertaken such surveys or studies as are deemed necessary to determine whether a residential area satisfies the designation criteria for a residential permit parking area. Such surveys or studies shall be completed within ninety days of receipt of such verified petition, unless otherwise provided by the Council.

(b) Within thirty days of the completion of surveys and studies to determine whether designation criteria are satisfied, the Chief Administrative Officer or his designee shall prepare and file with the City Clerk a written report to the Council recommending whether to designate the residential area under consideration as a residential permit parking area. Such report shall set forth the evidence generated as a result of surveys and studies performed, the findings relative to those designation criteria listed in Section 14-2003 deemed applicable to the residential area, and conclusions as to whether the findings justify preferential residential parking for that particular area and, if so, the proposed boundaries of the residential permit parking area, a proposed time limitation, period of the day, and days for its application, and a proposed fee to be paid upon permit issuance.

(c) Upon filing such report, the Chief Administrative Officer or his designee shall set the matter for public hearing before the Council for the purpose of determining whether a residential permit parking area should be established in the area in question and, if so, for determining the boundaries of such residential permit parking area, the time limitation on parking therein, the period of the day and days for its application, and the fee to be paid upon permit issuance. Notice of the public hearing or hearings provided for herein shall be published in a newspaper of general circulation in the city at least ten days before the hearing date and posted generally in the neighborhood. The notice shall clearly state the purpose of the hearing, the location and boundaries tentatively considered for the proposed residential permit parking area, the proposed time limitation, period of the day and days for its application the permit fee proposed to be charged therefor, and that a copy of the Chief Administrative Officer's report is available for examination in the office of the City Clerk.

(d) The requirements for a verified petition as specified in subsection (a) of this section shall be deemed minimum alternatives. If at the conclusion of the public hearing conducted pursuant to this section the Council finds that the area proposed for designation has unique residential parking problems due to the nature, location, frequency or duration of activities or events causing such problems, the Council may by resolution provide for additional require-

ments as conditions to the approval and adoption of the designation. Such conditions may include but are not limited to requiring the purchase of permits by residents of at least fifty (50) per cent but no more than seventy-five per cent of the number of dwelling units on each block face of such area before implementation of the designation or continuance thereof in any subsequent year. Such other conditions as the Council determines necessary and in the public interest may also be imposed as a condition of approval and continued implementation of the designation.
(Added Ord. 80-143, § 3, eff. 10-17-80; Am. Ord. 83-55, § 2, eff. 6-10-83).

SEC. 14-2005. COUNCIL DETERMINATION.

The Council shall conduct a public hearing on the date established therefor pursuant to Section 14-2004 of this article to consider whether a residential area should be designated as a residential permit parking area. Following such hearing, the Council shall adopt, modify or reject the recommendation of the Chief Administrative Officer. In the alternative, the Council may refer the proposed designation to the Chief Administrative Officer for further consideration or study. Adoption of the designation shall be by resolution. Such resolution shall state the boundaries of such residential permit parking area, the applicable time limitation, period of day and days for its application, and such other conditions as may have been imposed by the Council pursuant to Section 14-2004 of this article. The fee shall be established in accordance with Section 14-2009 of this article.
(Added Ord. 80-143, § 3, eff. 10-17-80; Am. Ord. 83-55, § 3, eff. 6-10-83).

SEC. 14-2006. AMENDMENT OF DESIGNATION.

Any amendment, additions or deletions to a residential permit parking area shall be initiated, considered and approved or disapproved according to the procedures set forth in Sections 14-2003 through 14-2005 of this article, except any such amendment, additions or deletions may be initiated by the Chief Administrative Officer upon his own initiative.
(Added Ord. No. 80-143, § 3, eff. 10-17-80).

SEC. 14-2007. POSTING OF RESIDENTIAL PERMIT PARKING AREA.

Upon the adoption by the Council of a resolution designating a residential permit parking area, the Director of Public Works, upon petition of residents of a majority of dwelling units on a block face and upon satisfaction of all other conditions, if any, imposed by the Council pursuant to Section 14-2004 of this article, shall cause appropriate signs to be erected on each such block face, indicating prominently thereon the parking time limitation, period of the day and days for its application, and that permit parking shall be exempt therefrom.
(Added Ord. 80-143, § 3, eff. 10-17-80; Am. Ord. 83-55, § 4, eff. 6-10-83).

SEC. 14-2008. APPLICATION FOR AND DURATION OF PERMIT.

Each parking permit issued hereunder shall be valid from October 1st of the year of issuance to September 30th of the ensuing year. Permits may be renewed annually upon reapplication in the manner required by the Chief Administrative Officer. Each application

or reapplication for a parking permit shall contain information sufficient to identify the applicant, his residence address or address of real property owned or leased within a residential permit parking area, the license number of the motor vehicle for which application is made, and such other information that may be deemed relevant by the Chief Administrative Officer.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2009. PERMIT FEES.

The fee for a residential parking permit shall be as designated in the Master Fee Resolution, which fee may differ from residential permit parking area to residential permit parking area. In no event shall such fee exceed the cost of administering the residential permit parking program.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2010. ISSUANCE OF PERMITS.

(a) Parking permits shall be issued by the Controller. Each such permit shall be designed by the Controller to state or reflect thereon the particular residential permit parking area as well as the license number of the motor vehicle for which it is issued. No more than one parking permit shall be issued to each motor vehicle for which application is made. The Chief Administrative Officer is authorized to promulgate rules and regulations, not inconsistent with this article, governing the manner in which persons shall qualify for parking permits.

(b) Parking permits may be issued for motor vehicles only to the following persons:

(1) A legal resident of a designated residential permit parking area who has a motor vehicle registered in his name, or who has a motor vehicle for his exclusive use and under his control;

(2) A person who owns or leases commercial property and actively engages in business activity within a residential permit parking area. However, no more than one parking permit may be issued for each business establishment for a motor vehicle registered to or under the control of such a person.

(c) Proof of residency or ownership shall be demonstrated in a manner determined by the Chief Administrative Officer.

(d) Proof of motor vehicle ownership or vehicle use and control shall be demonstrated in a manner determined by the Chief Administrative Officer.

(e) Lost or stolen permits. A replacement permit may be issued upon declaration under penalty of perjury that a previously issued permit has been lost or stolen, and payment of a fee as set forth in the Master Fee Schedule. Permits that have been reported as lost or stolen are immediately cancelled and are no longer valid. Vehicles displaying permits that have been reported as lost, stolen, or cancelled are subject to citation.
(Added Ord. 80-143, § 3, eff. 10-17-80; Am. Ord. 2017-64, § 1, eff. 12-4-17).

SEC. 14-2011. PROHIBITED PARKING.

Except as otherwise provided, no person shall stand or park a motor vehicle within a residential permit parking area for a period exceeding the parking limitation established pursuant to this article.

(a) This section shall not apply to a resident vehicle on which is displayed a valid parking permit in the residential permit parking area for which the permit has been issued.

(b) This section shall not apply to vehicles specified in Section 10-308 of this Code.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2012. FALSE REPRESENTATION OR INFORMATION.

No person shall falsely represent himself as eligible for a parking permit or to [sic] furnish false information in an application therefor to the Controller. Violation of this section is a misdemeanor.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2013. USE OR DISPLAY OF PERMIT PROHIBITED.

No person holding a valid parking permit issued pursuant to this article shall permit the use or display of such permit on a motor vehicle other than that for which the permit is issued. No person shall use or display a valid parking permit issued pursuant hereto on a motor vehicle other than that for which it is issued.
(Added Ord. 80-143, § 3, eff. 10-17-80; Am. Ord. 2013-37, § 1, eff. 1-20-14).

SEC. 14-2014. COUNTERFEIT PERMITS.

No person shall copy, produce or otherwise bring into existence a facsimile or counterfeit parking permit or permits without written authorization from the Controller. No person shall knowingly use or display a facsimile or counterfeit parking permit in order to evade time limitations on parking applicable in a residential permit parking area. Violation of this section is a misdemeanor.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2015. REVOCATION OF PERMIT.

The Controller is authorized to revoke the residential parking permit of any person found to be in violation of this article and, upon written notification thereof, the person shall surrender such permit to the Controller. Failure, when so requested, to surrender a residential parking permit so revoked shall constitute a violation of this article. Any such violation is a misdemeanor.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2016. RULES AND REGULATIONS.

The Chief Administrative Officer may promulgate rules and regulations implementing this article.
(Added Ord. 80-143, § 3, eff. 10-17-80).

SEC. 14-2017. DOWNTOWN CORRIDOR PARKING DISTRICT.

A Downtown Corridor Parking District shall be established for the area bounded on the north by Divisadero, west by H Street, east by U Street, and south by Ventura for the purpose of designating Residential Permit Parking Areas within said District to allow authorized

residents permission to park resident vehicles 24 hours per day in controlled parking areas on-street with a valid permit. Notwithstanding contrary requirements contained in Sections 14-2002 through 14-2007 and 14-2010 of this Article 20 the following shall apply to the designation of Residential Permit Parking Areas within said District:

a. Residential Permit Parking Areas shall be limited to residential areas within the District and shall be designated at the discretion of the Chief Administrative Officer, or his designee. Each Residential Permit Parking Area so designated shall be assigned a unique Identifier consisting of a letter-number combination and/or color.

b. Once designated, the Director of Public Works shall cause appropriate signs to be erected on each block face of the designated Parking Area. Each sign shall prominently display the Identifier for that particular Parking Area, and indicate that resident vehicles properly displaying a valid parking permit shall be exempt from the parking controls.

c. Permits shall be issued as prescribed in Section 14-2010 and be limited to one per residential unit located within the Residential Permit Parking Area. Each permit shall be designed by the Controller to prominently display the Identifier of the Parking Area as well as the resident vehicle license number for which it is issued. No more than one parking permit shall be issued for any residence, or resident vehicle.

   (1) Parking permits may be issued only to a legal resident of a designated residential permit parking area who has a motor vehicle registered in his or her name, or who has a motor vehicle for his or her exclusive use and under his or her control.

   (2) Proof of residency or ownership shall be demonstrated in a manner determined by the Chief Administrative Officer.

   (3) Proof of motor vehicle ownership or vehicle use and control shall be demonstrated in a manner determined by the Chief Administrative Officer.

d. The Chief Administrative Officer shall have the authority, to eliminate any Residential Permit Parking Area within the Downtown Corridor and cancel outstanding permits in the eliminated parking area upon service of notice. The notice shall be in writing and served 90 days in advance of said elimination and cancellation to the record owners of residential units and the then current permit holders within the affected Residential Permit Parking. Notice shall be sent by U.S. Mail and service shall be effective four (4) days after mailing.

e. Sections 14-2008, 14-2009 and 14-2011 through 14-2016 regarding APPLICATION FOR AND DURATION OF PERMIT, PERMIT FEES, PROHIBITED PARKING, FALSE REPRESENTATION OR INFORMATION, USE OR DISPLAY OF PERMIT PROHIBITED, COUNTERFEIT PERMITS, REVOCATION OF PERMIT and RULES AND REGULATIONS respectively are fully applicable and incorporated in this Section.

f. Vehicles utilizing Downtown Corridor Parking Permits shall be subject to all Fresno Municipal Codes and California Vehicle Codes unless exempted in writing on the face of the permit.

(Added Ord. 2013-37, § 2, eff. 1-20-14).

ARTICLE 21 FUNERAL PROCESSIONS

Sec. 14-2101. Purpose.
Sec. 14-2102. Rules Governing Funeral Processions.
Sec. 14-2103. Permit Required.
Sec. 14-2104. Authorized Traffic Direction.
Sec. 14-2105. Permit Procedure.
Sec. 14-2106. Denial of Permit.
Sec. 14-2107. Permit Issuance.
Sec. 14-2108. Indemnity and Hold Harmless.
Sec. 14-2109. Liability Insurance.
Sec. 14-2110. Procedure for Permit Denial and Revocation.
Sec. 14-2111. Traffic Safety Instruction Program.
Sec. 14-2112. Official Insignia.

SEC. 14-2101. PURPOSE.

It is the purpose of this article to use the power conferred to local agencies by Section 21100(e) of the California Vehicle Code which authorizes the appointment of persons other than traffic officers to direct traffic in such prescribed situations and locations as may require traffic direction for orderly traffic flow.
(Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2102. RULES GOVERNING FUNERAL PROCESSIONS.

(a) Each vehicle participating in a funeral procession shall be operated with its headlights and, if so equipped, its emergency flashers turned on.

(b) No operator of any vehicle shall drive between the vehicles comprising a funeral procession, provided that the vehicles comprising such procession are conspicuously so designated by having their headlights and, if so equipped, emergency flashers turned on.

(c) The directing of all vehicles and traffic on any street over which such funeral procession or parade wishes to pass shall be subject to rules and regulations promulgated by the Police Department.
(Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2103. PERMIT REQUIRED.

No person shall stop traffic at intersections or otherwise lead or escort a vehicular funeral procession without first obtaining a permit pursuant to this article.
(Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2104. AUTHORIZED TRAFFIC DIRECTION.

(a) Any person issued a valid funeral escort permit pursuant to this article and leading or escorting a vehicular funeral procession shall obey all traffic laws, including all speed laws, except that such person is authorized to stop cross-traffic, to enable all vehicles in the funeral procession to proceed together as an unbroken chain, at intersections controlled by:

(1) Stop signs, providing that the permittee remains in the intersection until all funeral procession vehicles have cleared the intersection.

(2) Signal lights, providing that the lead vehicle in the procession enters the intersection with a green light and the permittee remains in the intersection at all times when the procession is proceeding through the intersection.

Notwithstanding the above, an escort rider will not be required to remain in an intersection until the procession passes through if the City, its officers, employees, and agents are named as an insured under the insurance policy provided pursuant to Section 14-2109.

(b) A permittee is authorized to direct traffic in the manner specified in this section only when using a vehicle conspicuously designated "Funeral Escort," wearing an official insignia issued by the Police Chief, and carrying a valid permit issued to him or her as an individual pursuant to this article. No permittee shall wear a uniform similar to that of a Fresno Police Officer.

(c) The Finance Director may order the revocation of a funeral escort permit, in accordance with the procedure specified in Section 14-2110, if the permittee has directed traffic in a manner contrary to that specified in this section. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2105. PERMIT PROCEDURE.

Applications for a funeral escort permit shall be filed with the city Licensing Division, and shall contain the following:

(a) Name and address of applicant.

(b) Proof of insurance in compliance with Section 14-2109.

(c) Proof of satisfactory completion of a traffic safety program of instruction, as described in Section 14-2111.

(d) Proof that the applicant holds a valid California vehicle operator's license, properly endorsed for the type of vehicle the applicant intends to use while directing vehicular funeral processions.

(e) Permit and insignia fees, as established by resolution of the Council.

(f) Such other information as may be required by the Police Chief or Finance Director. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2106. DENIAL OF PERMIT.

Permits authorized by this article may be denied by the Finance Director upon original or renewal application upon the following grounds:

(a) The application is incomplete; or

(b) Applicant has been convicted of a crime, and the time for appeal has elapsed, or when an order granting probation is made suspending the imposition of sentence, irrespective of the entry of a subsequent order under California Penal Code Section 1203.4; provided, however,

that the permit may be denied upon this ground only if the crime is substantially related to the qualifications, functions or duties associated with leading or otherwise escorting a vehicular funeral procession. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2107. PERMIT ISSUANCE.

Funeral escort permits shall be issued by the Finance Director and shall expire on September 30 of the calendar year following the date of issuance unless sooner revoked. Permits shall not be transferable. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2108. INDEMNITY AND HOLD HARMLESS.

The funeral escort permittee and his or her funeral escort service employer, if any, shall assume all responsibility for his or her activity and operation, shall bear all losses and damages directly or indirectly resulting to him or her, any subcontractor, the city or city employees that are the result of the performance or character of the operation, unforeseen difficulties, accidents, occurrences or other causes not predicated on negligence of the city. The permittee or his or her funeral escort service employer shall assume the defense of and indemnify and save harmless the city and its officers and employees from all claims, loss, damage, injury, and liability of every kind, nature and description, including punitive damages, directly or indirectly arising from the escorting of a vehicular funeral procession. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2109. LIABILITY INSURANCE. During the term of a permit issued pursuant to this article, the permittee or his or her funeral escort service shall maintain in full force and effect at the permittee's or his or her employer's own cost a comprehensive auto and general liability insurance policy in an amount no less than Three Hundred Thousand Dollars ($300,000.00) single limit per occurrence, and the funeral home engaging the escort service shall maintain in full force and effect such a policy in an amount no less than Five Hundred Thousand Dollars ($500,000.00) single limit per occurrence, which policies shall:

(a) Be issued by an admitted insurer or insurers as defined by the California Insurance Code.

(b) Cover all losses and damages as specified in Section 14-2108 of this article.

(c) Stipulate that the policy will operate as primary insurance and that no other insurance effected by the city or other named insured will be called on to contribute to a loss covered thereunder.

(d) Provide that no cancellation, change in coverage, or expiration by the insurance company or the insured shall occur during the term of the funeral escort service permit, without thirty days' written notice to the city prior to the effective date of such cancellation or change in coverage.

In the event of failure of any permittee or his or her funeral escort employer to maintain in effect such insurance policy, or in the event such permittee escorts a funeral procession for a

funeral home which does not have in effect a policy of insurance as required herein, the Finance Director shall order the cancellation of his or her permit as provided in this Section and Section 14-2110. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2110. PROCEDURE FOR PERMIT DENIAL AND REVOCATION.

(a) The Finance Director may revoke, refuse to issue, or refuse to renew a funeral escort service permit only after a hearing granted upon three days' written notice to the permittee. Such notice shall specify the specific ground for the proposed action. At the hearing, to be held by the Finance Director or his designee, the permittee shall be given the opportunity to present witnesses and documentary evidence, to be represented by counsel and to examine all witnesses presented. Issuance of a written notice of cancellation by an insurance company shall be conclusive proof at the hearing of the effective cancellation of an insurance policy. A decision of the Finance Director revoking or denying the permit shall be effective upon the effective date of the cancellation of said insurance or the date when the written decision is signed by the Finance Director, whichever is earlier. The taking or pendency of an appeal under subsection (b) shall not stay the effectiveness of such decision.

(b) If the permittee is dissatisfied with the decision of the Finance Director in ordering the revocation or denial of the permit, such person may file an appeal under Chapter 1, Article 4. If no appeal is filed in the time provided, the decision shall be considered final. (Added Ord. 86-18, § 2, eff. 3-7-86; Am. Ord. 2005-14, § 43, eff. 4-9-05).

SEC. 14-2111. TRAFFIC SAFETY INSTRUCTION PROGRAM.

Each applicant for a funeral escort permit shall submit to the Police Chief or his designee evidence of the curriculum, including instruction of materials and skills taught and practiced, of an instructional program of traffic safety which the applicant has satisfactorily completed. The Police Chief or his designee shall review and approve each submitted instructional program if the Police Chief or his designee reasonably believes that the program provided the applicant sufficient training to direct traffic as specified in section 14-2104 in a safe and lawful manner. (Added Ord. 86-18, § 2, eff. 3-7-86).

SEC. 14-2112. OFFICIAL INSIGNIA.

The Police Chief shall approve an official insignia which must be worn by all permittees while directing traffic in the manner specified in Section 14-2104. (Added Ord. 86-18, § 2, eff. 3-7-86).

ARTICLE 22 RESERVED*

*__Editor's note—__Ord. 2024-001, § 1, adopted January 11, 2024, and effective February 11, 2024, repealed Art. 22, §§ 14-2201—14-2205, which pertained to cruising and derived from Ord. 89-136, §§ 2, 3, effective December 8, 1989.

ARTICLE 23 SPECIFIED VETERANS' PERMIT PARKING

Sec. 14-2301. Definitions.
Sec. 14-2302. Privileges of Veterans' Parking Permits.

SEC. 14-2301. DEFINITIONS.

(a) Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this article, and, except to the extent that a particular word or phrase is otherwise specifically defined in this section, the definitions and provisions contained in Article 2 of Chapter 1 of this Code shall also govern the construction, meaning and application of words and phrases used in this article unless the particular provisions or the context otherwise requires. The definition of each word or phrase shall constitute, to the extent applicable, the definition of each word or phrase which is derivative from it, or from which it is a derivative, as the case may be.

(b) "Motor vehicle" means an automobile, truck, motorcycle or other motor-driven form of transportation not in excess of 6,000 pounds gross weight.

(c) "Veterans' License Plate" means a valid license plate issued by the California Department of Motor vehicles under Vehicle Code Section 5101.4, 5101.5, 5101.6, 5101.8, and 5156-7 to the extent of Gold Star Family plates issued by the Department of Veterans Affairs, or such other statutes as later enacted which provide for the issuance of license plates to Medal of Honor recipients, Legion of Valor recipients, Purple Heart recipients, Pearl Harbor Survivors, Former Prisoners of War, Gold Star Family members, and such other plates issued by another state which indicate a similar status.

(d) "Controlled parking space" for purposes of this Article means, a parking space in a city-owned lot, or space in a time restricted zone of one hour or more, or a metered space. "Controlled parking space" does not mean a space assigned to city employees, a time controlled space of less than one hour, or space dedicated to disabled persons.
(Added Ord. 96-27, § 2, eff. 5-10-96; Am. Ord. 96-75, § 2, eff. 1-17-97; Am. Ord. 2010-41, § 1, eff. 11-11-10).

SEC. 14-2302. PRIVILEGES OF VETERANS' PARKING LICENSES.

A person may park a motor vehicle upon which a Veterans' Parking license is displayed in any controlled parking space without charge.
(Added Ord. 96-27, § 2, eff. 5-10-96; Am. Ord. 96-75, § 2, eff. 1-17-97).

ARTICLE 24 CITY OF FRESNO PARADE AND OTHER SPECIAL EVENTS

Sec. 14-2401. Title.
Sec. 14-2402. Purpose.
Sec. 14-2403. Definitions.
Sec. 14-2404. Permits Required.
Sec. 14-2405. Application/Procedure/Fee.
Sec. 14-2406. Contents of Application Form.
Sec. 14-2407. Action on Application.
Sec. 14-2408. Grounds for Denial of Application or Revocation for a Special Event Permit.
Sec. 14-2409. Permit Conditions.
Sec. 14-2410. Appeal Procedure.
Sec. 14-2411. Permit Issuance.
Sec. 14-2412. Indemnification Agreement.
Sec. 14-2413. Insurance.
Sec. 14-2414. Traffic Control Fees/Use of Pre-established Parade Routes.
Sec. 14-2415. Cleanup Deposits for Certain Special Events.
Sec. 14-2416. Duties of Permittee/Sponsor of Event.
Sec. 14-2417. Unlawful to Sponsor or Participate in an Event Without a Permit.
Sec. 14-2418. Unlawful to Exceed Scope of Permit.
Sec. 14-2419. Penalties.

SEC. 14-2401. TITLE.

This article shall be known as the City of Fresno Parade and Other Special Events Ordinance.
(Added Ord. 87-76, § 3, eff. 6-16-87).

SEC. 14-2402. PURPOSE.

It is the purpose of this article to establish standards for the issuance of a permits for parades, athletic events, and other special events in the City of Fresno including a coordinated process for managing the event to protect the health and safety of event patrons, residents, workers, and other visitors, to prohibit illegal activities from occurring at such events, and to protect the rights of special event permit holders. It is the intent of the City Council to protect the rights of people to engage in Expressive Activity in the City's public spaces, and to establish reasonable time, place, and manner regulations for these activities. It is further intended to create mechanisms for cost recovery and use charges, to the extent authorized by law, while not unduly impacting the viability of such events.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 1, eff. 7-27-18).

SEC. 14-2403. DEFINITIONS.

(a) "Applicant" shall mean any person or organization that seeks a special event permit from the Controller to conduct or sponsor an event governed by this chapter. An applicant must be 18 years of age or older.

(b) "Athletic Event" shall mean an occasion in which a group of persons collectively engage in a sport, or form of physical exercise, and which is conducted on any city street, sidewalk, alley, or other public right-of-way, or other property owned or controlled by the city, which obstructs, delays, impedes, impairs or interferes with the usual, normal and free pedestrian or vehicular use, or does not comply with traffic laws and controls. Athletic events include, but are not limited to, bicycle and foot races.

(c) "Block Party" shall mean a festive gathering on a residential street requiring a closure of a street, or portion thereof, to vehicular traffic, and use of the street for the festivity including barbecues, picnics, music, games or dances.

(d) "Controller" shall mean ex-officio treasurer of the city.

(e) "Event" shall mean a parade, athletic event, or other special event.

(f) "Expressive Activity" means conduct, the sole or principal object of which is the expression, dissemination, or communication by verbal, visual, literary, or auditory means of opinions, views, or ideas protected under the First Amendment to the United States Constitution and Article I of the California Constitution. Expressive Activity may include, but is not limited to, parades, public oratory, and the distribution of literature.

(g) "Parade Route" shall mean a route (course of travel) along designated streets, sidewalks or other street rights-of-way which shall be pre-established by the City Manager for use by parades or special events whose primary purpose is Expressive Activity. Each Parade Route shall specify the number of officers to be assigned for police crowd and traffic control. Parade Routes shall be published on the city's website, along with the fee schedule for police, crowd, and traffic control services.

(h) "Other Special Event" shall mean street fair, art and craft show, carnival, block party, or other neighborhood activity, picnic, dance, promotional or fund raising activities, community celebrations, and other special events which occur on any city street, sidewalk, alley, or other public right-of-way, or other property owned or controlled by the city, or any event, so as to impede, obstruct, impair, delay, or interfere with the usual, normal and free pedestrian or vehicular use, or which requires, in the judgment of the Chief of Police, the deployment of peace officers for crowd and/or traffic control.

(i) "Parade" shall mean and include a parade, march, procession, pageant, review, ceremony, or exhibition consisting of persons, animals, or vehicles, or a combination thereof, which is conducted in, or upon, or along any portion of any city street, sidewalk, alley, or other public right-of-way, or other property owned or controlled by the city, which obstructs, delays, impedes, impairs or interferes with the usual, normal and free pedestrian or vehicular use, or does not comply with traffic laws or controls.

(j) "Permit Application Fee" shall mean the fee to be paid by the special event permit applicant at the time the application is filed with the Controller. A fee schedule shall be authorized or established by resolution of the Council and shall cover the actual full costs (or a portion thereof) of processing and investigating special event applications.

(k) "Permittee" shall mean any person or organization that has been issued a special events permit by the Controller.

(l) Any authority or responsibility assigned to a city official under this chapter may be delegated to and exercised by an authorized subordinate of that official, with the approval of the City Manager.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 88-32, §§ 1, 2, eff. 3-25-88; Am. Ord. 2018-39, § 2, eff. 7-27-18).

SEC. 14-2404. PERMIT REQUIRED.

Any person desiring to conduct or sponsor a parade, athletic event, or other special event on city property or right of way, shall first obtain a special event permit from the Controller. However, a special event permit is not required for the following:

(a) Parades, athletic events or other special events that occur exclusively on city property under the jurisdiction of the city Parks, After School, Recreation and Community Services Department (those events are governed by Chapter 5, Article 5, of this Code.); or any events taking place pursuant to a lease or other agreement with the city.

(b) Funeral processions;

(c) Parades, marches, walks, demonstrations, and gatherings that take place on city sidewalks (including pedestrian street crossings) and other public property made available for Expressive Activities, where every participant fully complies with all laws, including but not limited to vehicular and pedestrian traffic laws, noise regulations, and all lawful direction from law enforcement authorities. For any such activity under this paragraph in which it is reasonably anticipated or for which the organizer becomes aware the number participating will exceed 50 individuals, the organizer of the activity shall provide notice to the Chief of Police at least 48 hours in advance of the activity, or as soon as the organizer becomes aware the event may exceed 50 people. Any activity otherwise exempt from obtaining a parade permit under this paragraph may be terminated and participants ordered to disperse by the Chief of Police if, after warning the participants and providing them with an opportunity to comply, participants are not in compliance with the regulations set forth in this paragraph.

(d) Spontaneous events, which are prompted, occasioned, or generated by news or affairs coming into public knowledge less than forty-eight hours prior to such event, may be conducted on the public grounds of City Hall, and any other area designated by Council resolution, the City Manager, or as published on the city's website. If practicable, the organizers should give notice to the City Manager at least eight hours prior to the event informing the city of the date and time of the event, and providing an estimate of the approximate number of persons who will be participating.

(e) If, in connection with any event organized pursuant to subsection (c) or (d) of Section 14-2404, any event organizer, or the organizer's officers, employees, agents, or any other person under the organizer's control, is arrested or cited for any unlawful activity, for eighteen months following the arrest or citation, events organized by the event organizer, whether a natural person or organization, or the person arrested or cited, will be required to obtain a permit, even if the event would otherwise be exempt under subsection (c) or (d) of Section 14-2404.

(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 3, eff. 7-27-18).

SEC. 14-2405. APPLICATION PROCEDURE/FEE.

(a) Any person desiring to sponsor a parade, athletic event, or other special event not exempted by Section 14-2404, shall apply for a special event permit by filing a verified application with the Controller on a form supplied by the Controller. If the application is for a parade or other special event along a Parade Route, the application should be filed not less than thirty calendar days before the date on which the event is to occur. All other applications shall be submitted not less than sixty calendar days before the event date.

(b) Upon a showing of good cause, the Controller shall consider an application which is filed after the filing deadline if there is sufficient time to process and investigate the application, and obtain police services for the event. Good cause can be demonstrated by the applicant showing that the circumstances which gave rise to the permit application did not reasonably allow the participants to file within the time prescribed, and that the event is for the purpose of engaging in Expressive Activity.

(c) The application for a permit shall be accompanied by a nonrefundable permit application fee as set forth in the Master Fee Schedule.

(d) Any indigent natural person who cannot apply for a permit because of an inability arising from such indigence to pay the application fee shall not be required to pay the fee. Applications for indigent status shall be made upon application for the permit, and shall be accompanied by such relevant information and documentation as is reasonably necessary to verify indigence and to verify participation in the group or organization promoting the event. For purposes of this Section 14-2405(d), an indigent person is one who is eligible for county relief pursuant to Section 17000 et seq. of the Welfare and Institutions Code, or his or her gross household income is 125% or less of the federal poverty line.

(e) An organization in which a majority of its members meet the criteria for indigent status, as established in subsection (d) of this Section 14-2405, shall also be eligible for application fee waiver.

(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 4, eff. 7-27-18).

SEC. 14-2406. CONTENTS OF APPLICATION FORM.

The application for a special event permit shall provide the following information:

(a) All Events:

(1) The name, address, and telephone number of the applicant and an alternate contact person.

(2) If the event is proposed to be sponsored by an organization, the name, address and telephone number of the organization, and the authorized head of the organization. If requested by the Controller, written authorization to apply for the special event permit by an officer of the organization.

(3) The name, address and telephone number of the person who will be present and in charge of the event on the day of the event.

(4) The nature/purpose of the event.

(5) Date and estimated starting and ending time of the event.

(6) Location of the event including its boundaries.

(7) Estimated number of participants in the event.

(8) The type and estimated number of vehicles, animals, and structures which will be used at the event.

(9) Description of any sound amplification equipment which will be used at the event.

(10) Whether any food or beverages will be sold at the event.

(11) Whether monitors or private security will be employed at the event.

(12) Parking requirements for the event.

(b) Additional information required for parades, races, and other events occurring along a route:

(1) The assembly point for the event, the time at which units of the parade or other event will begin to assemble.

(2) The route to be traveled.

(3) Whether the parade or other event will occupy all or only a portion of the streets proposed to be traversed.

(4) The intervals of space to be maintained between units of a parade or other event.

(5) The number, types, and size of floats.

(6) Material and maximum size of any signs or banners to be carried along the route.

(c) Supplemental Information: Any supplemental information which the Controller shall find reasonably necessary, under the particular circumstances of the special event application, to determine whether to approve, or conditionally approve, a special event permit pursuant to Sections 14-2408 and 14-2409.

(Added Ord. 87-76, § 3, eff. 6-16-87).

SEC. 14-2407. ACTION ON APPLICATION.

The Controller shall approve, conditionally approve, or deny an application for the grounds specified in Section 14-2408. Such action shall be taken no later than five city-business days after receiving a completed application for an event along a pre-established Parade Route. Action on all other special event applications shall be taken no later than ten city-business days after receiving a completed application. If the application is denied, or conditionally approved, the Controller shall inform the applicant of the grounds for denial in writing, or the reason for a change in the date, time, route, or location of the event, and the applicant's right of appeal. If the Controller relied on information about the event other than that contained in the application, the Controller shall inform the applicant in writing what information the Controller considered. The applicant shall be notified of any permit conditions at the time the application is approved and of the applicant's right of appeal of the permit conditions. If the Controller refuses to consider a late application under Section 14-2405(b), the Controller shall inform the applicant in writing of the Controller's reason for the refusal, and of the applicant's right of appeal. The Controller shall send the written notice of decision within two City-business days of making the decision.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 5, eff. 7-27-18).

SEC. 14-2408. GROUNDS OR DENIAL OF APPLICATION OR REVOCATION FOR A SPECIAL EVENT PERMIT.

(a) The Controller or his or her designee shall approve an application for a special event permit unless he or she determines from a consideration of the application, or other pertinent information, any of the following which shall also be justification for the Controller to revoke a previously issued permit:

(1) Information contained in the application, or supplemental information requested from the applicant, is found to be false in any material detail;

(2) The applicant fails to complete the application form within five calendar days after having been notified of the additional information or documents required;

(3) The sole purpose of the event is advertising of any product, good, ware, merchandise or event, and is designed to be held solely for private profit and not for Expressive Activity;

(4) Another special event permit application has been received prior in time, or has already been approved, to hold another event at the same time and place requested by the applicant, or so close in time and place as to cause undue traffic congestion, or the police department is unable to meet the needs for police services for both events;

(5) The time, route, or size of the event will substantially interrupt the safe and orderly movement of traffic contiguous to the event site or route, or disrupt the use of a street between the hours of 7:00 a.m. and 10:00 a.m., or between the hours of 4:00 p.m. and 6:00 p.m., Monday through Friday, unless event will occur on a national holiday;

(6) The concentration of persons, animals, and vehicles at the site of the event, or the assembly and disbanding areas around an event, will prevent proper police, fire, or ambulance services to areas contiguous to the event;

(7) The size of the event will require diversion of so great a number of police officers of the city to ensure that participants stay within the boundaries or route of the event, or to protect participants in the event, as to prevent normal protection to the remainder of the city. Nothing herein authorizes denial of a permit when additional peace officers would be available to the city under applicable State law or mutual aid plans, if requested by the city in advance of the event. Nothing herein authorized denial of a permit because of the need to protect participants from the conduct of others, if reasonable permit conditions can be imposed to allow for adequate protection of event participants with the number of police officers available to police the event;

(8) The parade, or other special event moving along a route, will not move from its point of origin to its point of termination in three hours or less unless approved by the Police Department;

(9) The location of the event will substantially interfere with any construction or maintenance work scheduled to take place upon or along the city streets, or along any public right of way, or where construction work is scheduled in connection with a previously granted encroachment permit;

(10) The event shall occur at a time when a school is in session at a route or location adjacent to the school or class thereof, and the noise created by the activities of the event would substantially disrupt the educational activities of the school or class thereof;

(11) The applicant fails to comply with any conditions of approval including, but not limited to:

(i) Payment of any fees, charges, or deposits due to the city; or

(ii) Submittal of an indemnification agreement or proof of insurance to the extent required; or

(12) The applicant fails to agree as a condition of permit issuance that if city property is destroyed or damaged by reason of permittee's event, and the damage or destruction is directly attributable to the permittee or persons under the control of the permittee, the permittee shall reimburse the city for the actual replacement or repair of the cost of the destroyed or damaged property;

(13) The applicant has damaged city property, and has not paid in full for such damage, or has other outstanding and unpaid debts related to a prior special event permit issued by the city.

(b) When the grounds for denial of an application for permit specified in subsections (a)(4) through (a)(13) above, can be corrected by altering the date, time, duration, route, or location of the event, the Controller shall instead of denying the application conditionally approve the application upon the applicant's acceptance of conditions for permit issuance. The conditions imposed shall provide for only such modification of the applicant's proposed event as are necessary to achieve compliance with subsections (a)(4) through (a)(13) above.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 6, eff. 7-27-18).

SEC. 14-2409. PERMIT CONDITIONS.

The Chief of Police may also condition the issuance of a special events permit by imposing reasonable requirements concerning the time, place, and manner of the event, and such requirements as are necessary to protect the safety of persons and property, and the control of traffic, provided such conditions shall not unreasonably restrict the right of free speech, and provided no consideration may be given to the perspective of the speaker. If the Chief of Police imposes conditions on the issuance of a special events permit, the Chief of Police shall inform the applicant in writing of the reasons for the conditions, and the applicant's right of appeal. Such conditions include:

(a) Alteration of the date, time, route or location of the event proposed on the event application;

(b) Conditions concerning the area of assembly and disbanding of parade or other special events occurring along a route;

(c) Conditions concerning accommodation of pedestrian or vehicular traffic, including restricting the event to only a portion of a street traversed;

(d) Requirements for the use of traffic cones, signage, or barricades;

(e) Requirements for provision of first aid or sanitary facilities;

(f) Requirements for use of event monitors, and providing notice of permit conditions to event participants;

(g) Restrictions on the number and type of vehicles, animals, or structures at the event;

(h) Compliance with animal protection ordinances and laws;

(i) Requirements for use of garbage containers, cleanup and restoration of city property;

(j) Restrictions on use of amplified sound;

(k) An application for a special event permit to conduct a block party may be conditioned on notice and approval by fifty percent of the residents of dwellings along the affected street(s).

(l) Compliance with any relevant ordinance or law and obtaining any legally required permit or license.

(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 7, eff. 7-27-18).

SEC. 14-2410. APPEAL PROCEDURE.

(a) The applicant shall have the right to appeal the denial of a permit or a permit condition, including, but not limited to, any fees associated with a permit condition, to the City Manager by filing a written notice of such appeal with the City Manager within five city-business days of the decision if the applicant wishes to keep the original event date set forth in the application, or within ten city-business days if the applicant chooses to change the date of the event to accommodate a longer appeal period. The City Manager shall decide the appeal within five city-business days. The City Manager's decision may be appealed to the administrative hearing officer, pursuant to Sections 1-401 et seq. of this Code. The applicant shall also have the right to appeal the amount of clean-up deposits imposed pursuant to Section 14-2415, or a determination by the city that the applicant's insurance policy does not comply with the requirements specified in Section 14-2413.

(b) The hearing under Chapter 1, Article 4 shall be held no later than five business days after the filing of the appeal of the City Manager's decision, and the decision shall be rendered no later than two business days after the date of the hearing.

(c) In the event the appeals process extends beyond the original event date set forth in the application, the applicant may select a new date for the event and update its existing application without resubmitting a new application.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 88-32, § 3, eff. 3-25-88; Am. Ord. 98-65, § 27, eff. 10-1-98; Am. Ord. 2005-14, § 44, eff. 4-9-05; Am. Ord. 2018-39, § 8, eff. 7-27-18).

SEC. 14-2411. PERMIT ISSUANCE.

The Controller shall issue the special events permit once the application has been approved, and the applicant has agreed in writing to comply with the terms and conditions of the permit, and the following sections of this ordinance have been complied with:

(a) Section 14-2412 pertaining to indemnification.

(b) Section 14-2413 pertaining to insurance.

(c) Section 14-2415 pertaining to cleanup deposits (when applicable).
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 88-32, § 4, eff. 3-25-88).

SEC. 14-2412. INDEMNIFICATION AGREEMENT.

Prior to the issuance of a special event permit, the permit applicant and authorized officer of the sponsoring organization (if any), must sign an agreement to reimburse the City of Fresno for any costs incurred by it in repairing damage to city property occurring in connection with the permitted event proximately caused by the actions of the permittee/sponsoring organization, its officers, employees, or agents, or any person who was, under the permittee's/sponsoring organization's control insofar as permitted by law. The agreement shall also provide that the permittee/sponsoring organization shall hold harmless, indemnify and defend the City of Fresno, its officials, members, agents and employees against any claims, costs, damages, demands, liability and notices, or any of these, arising or resulting

from any damage or injury proximately caused by actions of the permittee/sponsoring organization in connection with the permitted event. Persons who merely join in a parade or event are not considered by that reason alone to be "under the control" of the permittee/sponsoring organization.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 9, eff. 7-27-18).

SEC. 14-2413. INSURANCE.

(a) The applicant/sponsor of an event must possess or obtain public liability insurance to protect against loss from liability imposed by law for damages on account of bodily injury and property damage occurring in connection with the permitted event proximately caused by the actions of the permittee, its officers, employees, or agents, or any person who was, under the permittee's control insofar as permitted by law. Persons who merely join in a parade or event are not considered by that reason alone to be "under the control" of the permittee. Such insurance shall name on the policy or by endorsement as additional insureds the City of Fresno, its officers, employees, and agents. Insurance coverage must be maintained for the duration of the event. Coverage shall be a comprehensive general liability insurance policy with minimum limits of $1 million per occurrence, $2 million aggregate.

If food or non-alcoholic beverages are sold or served at the event, the policy must also include an endorsement for products liability in an amount not less than $250,000. If alcoholic beverages are sold or served at the event, the policy must also include an endorsement for liquor legal liability in an amount not less than $1 million per occurrence, $2 million aggregate.

(b) A copy of the policy or a certificate of insurance along with all necessary endorsements must be filed with the Controller no less than five days before the date of the event unless the Controller for good cause waives the filing deadline. The special event permit shall not be issued by the Controller until after the insurance policy or certificate of insurance along with necessary endorsements have been filed by the applicant/sponsor and approved by the Controller.

(c) The insurance requirements of subsections (a) and (b) above shall be waived by the Controller for nonathletic events if the applicant or an officer of the sponsoring organization signs a verified statement that he or she believes the event's purpose is Expressive Activity, as defined in Section 14-2403, and the applicant or officer produces satisfactory evidence that complying with the insurance provision would preclude the proposed event from occurring. The statement shall include the name and address of at least one insurance agent or other source for insurance coverage contacted to determine insurance premium rates for insurance coverage.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 10, eff. 7-27-18).

SEC. 14-2414. TRAFFIC CONTROL FEES/USE OF PRE-ESTABLISHED PARADE ROUTES.

(a) **Prepayment of Fees.** Upon approval of an application for a special event permit, the Chief of Police shall provide the applicant with a statement of the estimated cost of providing police officers for crowd and traffic control at the event. The applicant/sponsor of the event

shall be required to prepay the crowd and traffic control fees prior to the issuance of a special event permit. Traffic and crowd control by officers includes clearing the event route or site of unauthorized vehicles, diversion of traffic around the event, and directing pedestrian and vehicular traffic along the route of an event.

(b) **Computing Traffic Control Fees.** The traffic control fees will be computed by determining the number of police officers who will be required for crowd and traffic control in addition to those who would otherwise be on duty at that time, the number of hours the officers will be on duty for the event, and the city's actual cost of providing officers on an hourly basis as established by the Police Department fee schedule. In determining crowd and traffic control fees, the Council shall establish fees upon the recommendation of the Chief of Police based on the applicant/sponsor's use of monitors for the event.

(c) **Refunds or Underpayments.** If the actual cost for crowd and traffic control on the date of the event is less than the estimated cost pursuant to subsection (a) above, the applicant/sponsor will be promptly refunded the difference by the Controller. Should the actual cost to the city by reason of the event exceed the estimated cost, the applicant/sponsor shall pay the balance upon demand by the Controller.

(d) **Pre-established Parade Routes and Fees.** Pre-established Parade Routes shall specify the number of officers assigned for police traffic control on those routes. The fee schedule for police crowd and traffic control services shall be made available to the public.

(e) **Waiver of Fees.** Crowd and traffic control fees shall be waived by the Chief of Police for Expressive Activities if the following conditions are satisfied:

(1) The applicant or an officer of the sponsoring organization signs a verified statement that he or she believes the event's purpose is Expressive Activity, as defined in Section 14-2403, and the applicant qualifies as indigent pursuant to Section 14-2405(d) or (e); and

(2) The applicant or sponsor selects one of the pre-established Parade Routes.

(f) The Council may establish by resolution(s) policies and procedures that may authorize additional designated Parade Routes or locations and/or fee waiver programs for Expressive Activities.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 11, eff. 7-27-18).

SEC. 14-2415. CLEANUP DEPOSITS FOR CERTAIN SPECIAL EVENTS.

(a) The applicant/sponsor of an event involving the sale of food or beverages, erection of structures, horses or other large animals, or water aid stations shall be required to provide a cleanup deposit prior to the issuance of a special event permit. The cleanup deposit shall be in the amount established in the Master Fee Resolution.

(b) The cleanup deposit shall be returned to the applicant/sponsor after the event if the area used for the permitted event has been cleaned and restored to the same condition as existed prior to the event.

(c) If the property used for the event has not been properly cleaned or restored, the applicant/sponsor shall be billed for the actual cost incurred by the city for cleanup and restoration, and the cleanup deposit, or a portion thereof, shall be applied toward payment of the bill. If the applicant/sponsor disputes the bill, he may appeal to the city Controller within five days after receipt of the bill. Should there be any unexpended balance on deposit after completion of the work, this balance shall be refunded to the applicant/sponsor. Should the amount of the bill exceed the cleanup deposit, the difference shall become due and payable to the city upon the applicant's receipt of the bill.

SEC. 14-2416. DUTIES OF PERMITTEE/SPONSOR OF EVENT.

(a) The applicant/sponsor of an event shall comply with all terms, and conditions of the special event permit.

(b) Each permittee/sponsor of an event shall ensure that the person leading a parade or other event along a route, or the person in charge of any other event shall carry the special event permit on his person for the duration of the event.

(c) Each permittee/sponsor of an event shall ensure the area used for the permitted event is cleaned and restored to the same condition as existed prior to the event, immediately following the completion of the event.
(Added Ord. 88-66, § 2, eff. 6-10-88).

SEC. 14-2417. UNLAWFUL TO SPONSOR OR PARTICIPATE IN AN EVENT WITHOUT A PERMIT.

It shall be unlawful for any person to sponsor or conduct a parade, athletic event or other special event requiring a special event permit, under Section 14-2404, unless a permit has been issued for the event. It is unlawful for any person to participate in such an event with the knowledge that the sponsor of the event has not been issued the required permit. Nor shall any person interfere with or disrupt a lawful parade, athletic event, or other special event.
(Added Ord. 87-76, § 3, eff. 6-16-87).

SEC. 14-2418. UNLAWFUL TO EXCEED SCOPE OF PERMIT.

The special event permit authorized the permittee/sponsor to conduct only such event as is described in the permit, and in accordance with the terms and conditions of the permit. It is unlawful for the permittee/sponsor to willfully violate the terms and conditions of the permit, or for any event participant with knowledge thereof, to willfully violate the terms and conditions of the permit.
(Added Ord. 87-76, § 3, eff. 6-16-87).

SEC. 14-2419. PENALTIES.

Any person willfully violating any provision of the Parade and Other Special Events Ordinance shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be

punished by a fine as set forth in the Master Fee Schedule for each violation of the Ordinance. Upon election of the City Attorney, such violations may be addressed by either prosecution as an infraction or administrative citation pursuant to Sections 1-308 et seq. of this Code. Appeal of an administrative citation may be made pursuant to Sections 1-308 et seq. Violators may be liable for penalties in the amount set forth in the Master Fee Schedule and for the actual full costs incurred by the city, including but not limited to attorney's fees, police services and/or traffic control provided for, or because of, the event.
(Added Ord. 87-76, § 3, eff. 6-16-87; Am. Ord. 2018-39, § 12, eff. 7-27-18).

ARTICLE 25 MEDIAN ISLAND SAFETY

Sec. 14-2501. Prohibition of Loitering on Median without a Permit.
Sec. 14-2502. Permit Application.
Sec. 14-2503. City-Approved Median Islands.
Sec. 14-2504. Types of Permits.
Sec. 14-2505. Liability Insurance.
Sec. 14-2506. Hold Harmless.
Sec. 14-2507. Safety Wear.
Sec. 14-2508. Age of Permittee.
Sec. 14-2509. Possession of Permit.
Sec. 14-2510. Signs or Other Objects Prohibited.
Sec. 14-2511. Stepping off Median.
Sec. 14-2512. Vehicles.
Sec. 14-2513. Clean Up of Median.
Sec. 14-2514. Federal, State and Local Laws.
Sec. 14-2515. Written Acknowledgement.
Sec. 14-2516. Number of Permits.
Sec. 14-2517. Permit Time Period.
Sec. 14-2518. Transferability.
Sec. 14-2519. Exceptions.
Sec. 14-2520. Definitions.
Sec. 14-2521. Appeals.
Sec. 14-2522. Violation.
Sec. 14-2523. Review.

SEC. 14-2501. PROHIBITION OF LOITERING ON MEDIAN WITHOUT A PERMIT.

It shall be unlawful for any person to loiter on a median island without a City issued permit.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2502. PERMIT APPLICATION.

The permit shall be obtained by filling out a City application. Said application shall be obtained at the City of Fresno Public Works Department. The fee for the permit shall be as established by Council resolution and contained in the City Master Fee Schedule. A permittee shall have the opportunity to request a waiver of fees for the permit. The Public Works Department, in its sole discretion shall determine whether to grant or deny the waiver request based upon the criteria listed on the Fee Waiver Request document.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2503. CITY-APPROVED MEDIAN ISLANDS.

The Traffic Division of the City of Fresno shall create and provide a document listing the location of median islands in the City on which a permittee may conduct its permitted activities. The list shall be made available to the public at the City Public Works Department.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2504. TYPES OF PERMITS.

There shall be two types of permits:

(a) **Specific Median Island Permit** - A permit that would allow an permittee to occupy a specific, City approved median island.

(b) **Multiple Median Island Permit** - A permit that would allow a permittee to occupy any City approved median island.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2505. LIABILITY INSURANCE.

(a) No permit shall be issued under this section unless the permittee obtains and maintains, at no cost to the City, a personal injury and property damage liability insurance policy, with coverage not less than as required by the City Risk Manager.

(b) A permittee shall have the opportunity to request a waiver of the requirements in this section. The City, in its sole discretion, shall determine whether to grant or deny the waiver request based upon undue hardship as set forth in the criteria listed on the Liability Insurance Waiver Request Form.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2506. HOLD HARMLESS.

A permittee under this article shall, and by acceptance of his permit does, to the furthest extent allowed by law, hereby agree to indemnify, hold harmless and defend the City and each of its officers, officials, employees, agents and volunteers, as provided in a written statement set forth in the permit form, as approved by the City Risk Manager.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2507. SAFETY WEAR.

All permittees shall wear orange colored safety clothing. Such clothing shall include, but not be limited to, orange colored or reflective vests and/or shirts.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2508. AGE OF PERMITTEE.

(a) All permit applicants shall be no younger than 18 years of age. The City shall require proof of age by the permit applicant providing a valid birth certificate, valid California Drivers License or other California State Issued Identification Card containing the permit applicant's birth date.

(b) In the case of a Multiple Median Island permittee, persons no younger than 16 years of age may request and be permitted to act in the approved median islands if they have been given instruction in safety procedures by the permittee and are directly monitored by the adult

permittee or authorized representative. For organizational permittees, all persons to be covered under the permit shall be listed in the application, with proof of age provided by the organization for each person.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2509. POSSESSION OF PERMIT.

All specific median island permittees shall be required to carry and display the permit while on the median island. Any such person must show the permit to any City employee upon request.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2510. SIGNS OR OTHER OBJECTS PROHIBITED.

No permittee shall be allowed to bring any signs, materials or other objects on the median island that will obstruct any signal light or extend into a traffic lane or obscure any traffic sign on the median. No animal shall be allowed on the median island, other than a service animal. No person, sign, material, animal or other object on the median island shall obstruct any signal light or extend into a traffic lane or other traffic sign.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2511. STEPPING OFF MEDIAN.

No person shall step off the median island to exchange any object with a vehicle occupant.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2512. VEHICLES.

No person shall exchange any object with an occupant of a moving vehicle.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2513. CLEAN UP OF MEDIAN.

All permittees shall be required to clean up and remove all litter, junk or any other material before they leave the median island. Any person or organization violating this section shall be required to reimburse the City for any costs related to the clean up and removal of any items left on the median.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2514. FEDERAL, STATE AND LOCAL LAWS.

All permittees shall be required to follow all applicable Federal, State and Local laws while on the median.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2515. WRITTEN ACKNOWLEDGEMENT.

All permittees shall be required at the time of application, to sign an acknowledgement and agreement to abide by all the rules and regulations listed in this Chapter.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2516. NUMBER OF PERMITS.

A Specific Median Island Permit or Multiple Median Island Permit shall not be issued to an individual or organization more than once every six (6) months.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2517. PERMIT TIME PERIOD.

A permit issued under this section shall only be valid from sunrise to sunset of the date listed on the Permit. The Permit is revocable due to unsafe conditions, such as poor visibility, including weather, fog or as determined by a Fresno Police Officer.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2518. TRANSFERABILITY.

Permits issued under this section shall be non-transferable.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2519. EXCEPTIONS.

(a) This Article shall not apply to freeway oriented solicitation prohibited by California Vehicle Code section 22520.5.

(b) The permit procedure for charitable solicitations by public safety personnel shall be as set forth in California Business and Professions Code section 17510.25.

(c) This Article shall not apply to those persons occupying a median while conducting activities related to maintenance, surveying, construction, landscape maintenance, landscape improvements, responding to an emergency, or as otherwise permitted by law.
(Added Ord. No. 2010-5, § 1, eff. 4-17-10)

SEC. 14-2520. DEFINITIONS.

For the purposes of this section, the following definitions shall apply:

(a) "Median" shall mean a paved or planted area separating a street, or highway, into two (2) or more lanes or directions of travel. City-Approved median islands as provided in SEC. 14-2503, shall be not less than four (4) feet wide.

(b) "Permittee" means any person or organization applying for, or issued a median island solicitation permit under this section, or any employee, agent, representative or other person who shall be occupying a median island for that person or organization.

(c) In this Chapter, "Loitering" means standing or lingering in a median island without a permit, or exception as provided in SEC. 14-2519, other than to safely and lawfully cross the street.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10).

SEC. 14-2521. APPEALS.

An applicant that has been denied the issuance of a permit may appeal that decision. The procedure for all appeals regarding denial of a permit shall be as established under Chapter 1, Article 4 of the Fresno Municipal Code.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10).

SEC. 14-2522. VIOLATION.

(a) A violation of this chapter is a misdemeanor, punishable upon conviction by imprisonment in the county jail for a term not to exceed six (6) months, or by a fine not to exceed two hundred fifty dollars ($250) for the first offense, five hundred dollars ($500) for the second offense within six months of the first offense, and one thousand dollars ($1,000) for the third or subsequent offense within six months of the first offense, or by both fine and imprisonment.

(b) In addition, the City Attorney shall also have the power to seek injunctive relief for any violation of this Article.

(c) In addition to any administrative penalty assessed for a violation of this article, any person or organization found in violation of this article will be charged abatement, actual, administrative and enforcement costs as defined in Section 1-503, calculated to recover the total costs incurred by the City in enforcing this Article.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10).

SEC. 14-2523. REVIEW.

This Ordinance shall be reviewed by the Council within one (1) year of the effective date of the Ordinance.

(Added Ord. No. 2010-5, § 1, eff. 4-17-10).

ARTICLE 26 "SEMI" TRUCK AND TRAILER PARKING

Sec. 14-2601. Storage of "Semi" Vehicles.
Sec. 14-2602. Exceptions.
Sec. 14-2603. Violation.
Sec. 14-2604. Vehicle Removal.
Sec. 14-2605. Definitions.
Sec. 14-2606. Reserved.
Sec. 14-2607. Conflicts.
Sec. 14-2608. Reserved.

SEC. 14-2601. STORAGE OF "SEMI" VEHICLES.

It shall be unlawful to place, or have placed, park, keep, or maintain any "Semi" vehicle, as defined in 14-2605(a), on any public street, alley, right of way, or highway, other than a state highway, in the City of Fresno for a period exceeding four (4) hours.
(Added Ord. 2010-21, § 1, eff. 7-31-10; Am. Ord. 2019-004, § 1, eff. 4-5-19).

SEC. 14-2602. EXCEPTIONS.

This Article shall not apply under the following conditions:

(a) Any vehicle as defined under this Article making pickups or deliveries of goods, wares and merchandise from or to any building or structure or for the purpose of delivering materials to be used in the actual and bona fide repair, alteration, remodeling, or construction of any building or structure for which a building permit has previously been obtained. This exception shall apply only to any such vehicles that are attended, and shall not extend beyond the time necessary therefore, and in no event for more than twelve (12) hours;

(b) Any vehicle as defined in this Article parked in connection with, and in the aid of, the performance of a service to or on a property in the block in which such vehicle is parked;

(c) Any school or passenger bus under the jurisdiction of a recognized school district;

(d) Any vehicle as defined in this Article owned by a city, county, state, public entity or licensed contractor engaged in the installation, maintenance, or repair of any public property, utility or highway;

(e) Any authorized emergency vehicle as defined by the California Vehicle Code;

(f) For no more than two (2) additional hours when emergency repairs are in progress, and, the vehicle is attended.

(g) For any tow truck designed to tow vehicles having a manufacturer's gross vehicle weight rating of twelve thousand (12,000) pounds or more, and which is in the act of towing such vehicle.

(Added Ord. 2010-21, § 1, eff. 7-31-10; Am. Ord. 2019-004, § 2, eff. 4-5-19).

SEC. 14-2603. VIOLATION.

(a) A violation of this Article shall result in the issuance of a parking citation pursuant to Fresno Municipal Code section 1-302. The fine for each violation of this Article shall be identified in the Master Fee Schedule.

(b) In addition, the City Attorney shall also have the power to seek injunctive relief for any violation of this Article.
(Added Ord. 2010-21, § 1, eff. 7-31-10; Am. Ord. 2019-004, § 3, eff. 4-5-19).

SEC. 14-2604. VEHICLE REMOVAL.

The City may remove any vehicle defined in 14-2605(a) pursuant to California Vehicle Code Section 22651(n), if left for 48 hours or more in areas where signs are posted notifying of such removal.
(Added Ord. 2010-21, § 1, eff. 7-31-10; Am. Ord. 2019-004, § 4, eff. 4-5-19; Am. Ord. 2019-004, § 4, eff. 4-5-19).

SEC. 14-2605. DEFINITIONS.

For the purposes of this Article, the following definitions shall apply:

(a) "Semi" shall mean any vehicle having a manufacturer's gross vehicle weight rating of twelve thousand (12,000) pounds or more, or any trailer or semitrailer, as defined by California Vehicle Code 550, 630, 635 or 636 used and maintained for commercial purposes, and designed for use with, or actually used in conjunction with a Semi, whether licensed or unlicensed.

(b) "Attended" shall mean that the driver or operator of the vehicle or trailer must be physically present, or within the reasonable proximity of the vehicle. In the case of a delivery or transport vehicle, "attended" shall mean that the driver or operator of the vehicle shall be in the act of delivering or accepting the merchandise to or from the customer, or obtaining signatures from the customer or providing the customer with any necessary receipts or other documentation of the transaction.
(Added Ord. 2010-21, § 1, eff. 7-31-10; Am. Ord. 2019-004, § 5, eff. 4-5-19).

SEC. 14-2606. RESERVED.

Editor's note—Am. Ord. 2019-004, § 6, effective April 5, 2019, amended the Code by repealing former § 14-2606 in its entirety. Former § 14-2606 pertained to issuance of warning, and derived from Ord. 2010-21, effective July 31, 2010.

SEC. 14-2607. CONFLICTS.

Nothing stated herein is intended to conflict with or supersede any other sections in this Chapter related to parking, or any other local, state or federal law.
(Added Ord. 2010-21, § 1, eff. 7-31-10).

SEC. 14-2608. RESERVED.

Editor's note—Am. Ord. 2019-004, § 7, effective April 5, 2019, amended the Code by repealing former § 14-2608 in its entirety. Former § 14-2608 pertained to review, and derived from Ord. 2010-21, adopted July 31, 2010.

CHAPTER 15

CITYWIDE DEVELOPMENT CODE, INCLUDING REVISIONS

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Art. 56. Minor Deviations.
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Art. 60. Development Agreements.
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Art. 64. Reserved.
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Pt. VI: General Terms and Definitions

Art. 67. Use Classifications.
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PART I: GENERAL PROVISIONS

ARTICLE 1 INTRODUCTORY PROVISIONS

Sec. 15-101. Title and Authority.
Sec. 15-102. Purpose.
Sec. 15-103. Structure of Development Code Regulations.
Sec. 15-104. Applicability.
Sec. 15-105. Severability.
Sec. 15-106. Fees.
Sec. 15-107. Districts Established.
Sec. 15-108. Official Zoning Map and District Boundaries.

SEC. 15-101. TITLE AND AUTHORITY.

Chapter 15 of the Fresno Municipal Code shall be known and cited as the "Citywide Development Code," "Development Code of the City of Fresno," "Development Code," "Code," or "Zoning Ordinance."
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-102. PURPOSE.

The purpose of this Development Code is to implement the General Plan and, if applicable, operative plans, to protect and promote the public health, safety, peace, comfort, convenience, prosperity, and general welfare of the City of Fresno. More specifically, the Development Code is adopted to achieve the following, consistent with the goals, objectives, and policies of the General Plan and any other operative plan:

A. To provide a precise guide for the physical development of the city in a manner as to progressively achieve the arrangement of land uses depicted in the General Plan.

B. To foster a harmonious and workable relationship among land uses and ensure compatible infill development.

C. To support economic development and job creation.

D. To provide for the housing needs of all economic segments of the community.

E. To promote high quality architecture and sustainable design. Sustainable Design is a philosophy that seeks to maximize the quality of the built environment, while minimizing or eliminating negative impact to the natural environment.

F. To promote the stability of existing land uses that conform to the General Plan, protecting them from inharmonious influences and harmful intrusions.

G. To promote a safe and efficient traffic circulation system, including bicycle facilities and pedestrian amenities, and to support a multi-modal transportation system.

H. To facilitate the appropriate location of community facilities, institutions, parks, and recreational areas.

I. To protect and enhance real property values.

J. To safeguard and enhance the appearance of the city.

K. To define duties and powers of governing bodies and officials responsible for the implementation of this Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-103. STRUCTURE OF DEVELOPMENT CODE REGULATIONS.

A. **Organization of Regulations.** This Code consists of six parts:

1. Part I: General Provisions
2. Part II: Base and Overlay Districts
3. Part III: Regulations Applying to Some or All Districts
4. Part IV: Land Divisions
5. Part V: Administration and Permits
6. Part VI: General Terms and Definitions

B. **Types of Regulations.** This Code contains five types of regulations controlling the use and development of property:

1. **Use Regulations.** These regulations specify land uses permitted, conditionally permitted, or specifically prohibited in each zoning district, and include special requirements, if any, applicable to specific uses. Use regulations for base zoning districts and for overlay districts are in Part II of this Code. Certain regulations that are applicable in some or all districts, and performance standards which govern special uses, are in Part III.
2. **Development Standards.** These regulations control the height, bulk, location, and appearance of structures. Development regulations for base zoning districts and for overlay districts are in Part II of this Code. Certain development regulations that are applicable to some or all districts are in Part III. These include regulations for specific uses, development and site regulations, performance standards, parking, and signage.
3. **Land Divisions.** Also referred to as Subdivisions Regulations, these regulations control the division of land and specify the design, improvement, and survey data of subdivisions as well as the procedures to be followed to secure final approval for subdivision maps. Subdivision regulations are in Part IV.
4. **Administrative Regulations.** These regulations contain detailed procedures for the administration of this Code, and include common procedures, processes, and standards for discretionary entitlement applications and other permits. Administrative regulations are in Part V.
5. **General Terms and Use Classifications.** Part VI provides definitions and articulates use classifications and terms and definitions used in this Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-104. APPLICABILITY.

A. **General Rules for Applicability of Development Code Regulations.**

1. **Applicability to Property.** This Development Code shall apply, to the extent permitted by State and Federal law, to all private property within the corporate limits of the City of Fresno, including all uses, structures, and land owned by any person, firm, corporation, or organization.

2. **Compliance with Regulations and Uses Expressly Prohibited.** No land shall be used, and no structure shall be constructed, occupied, enlarged, altered, demolished, or moved in any zoning district, except in accordance with the provisions of this Code. Specific uses of land, buildings, and structures listed as prohibited in any zoning district are hereby declared to be detrimental to the public health, safety, and welfare. The enumeration of prohibited uses shall not by implication enlarge the scope of permitted uses; they are for purposes of clarity only. A proposed use within a zoning district must expressly be listed as a permitted use per the applicable base or overlay district, or determined to be such through the determination of the Director, in order to be authorized under the Development Code.

3. Conflict of Standards. If there are found to be internal conflicts within this Code, the applicable standard shall be determined by the Review Authority.

B. **Relation to Other Regulations.**

1. **Permit Streamlining Act.** It is the intent of this Code to be consistent with the requirements of Government Code Section 65920 et seq. (the Permit Streamlining Act) and legislative judgments.

2. **Relation to Prior Ordinance.** The provisions of this Code supersede all prior Zoning Ordinances and Development Codes codified in the Fresno Municipal Code and any amendments. No provision of this Code shall validate any land use or structure established, constructed, or maintained in violation of the prior Zoning Ordinance or Zoning Map, unless such validation is specifically authorized by this Code and is in conformance with all other applicable regulations.

3. **Application During Local Emergency.** During a disaster or emergency declared and confirmed under Chapter 2, Article 5, Emergency Services Ordinance of the Fresno Municipal Code, a deviation from the provisions of the Development Code may be allowed. The City Council may also authorize a deviation from the Development Code during a disaster or emergency by resolution.

4. **Priority of Plans.**

   a. In the event of a conflict between this Code and any operative plan, or between two operative plans, the conflict shall be resolved in the following order:

      (a) Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5

(b) Adopted Design Guidelines

(c) Development Code

(d) General Plan

(e) Specific Plan

(f) Concept Plan

(g) Community Plan

(h) Neighborhood Plan

(i) Redevelopment Agency Guidelines

b. To maintain and improve the consistency between plans, the adoption or amendment of a plan shall be accompanied by corresponding amendments to the General Plan and other plans which affect the same geographic area.

C. **Projects Approved Prior to the Adoption of this Code.**

1. Any building or structure for which a Building Permit has been issued may be completed and used in accordance with the plans, specifications, and permits on which said Building Permit was granted, provided at least one inspection has been requested and posted for the primary structure on the site where the permit is issued and provided construction is diligently pursued and completed within six months of permit issuance. No extensions of time except as provided for in the Building Code shall be granted for commencement of construction, unless the applicant has secured an allowed permit extension from the Development and Resource Management (DARM) Department.

2. Any previously approved permit, entitlement, or subdivision map shall be honored, unless it expires.

D. **Pending Projects.** Planning permit applications that are subject to the Permit Streamlining Act, that have been accepted by the City as complete within the meaning of the Permit Streamlining Act prior to the effective date of the Development Code, and which do not require a plan amendment, rezone, or other legislative decision, shall be subject to the Development Code requirements in effect as of the date the application was deemed complete, unless the applicant chooses to use the updated provisions of the Development Code in their entirety.

E. **Special Period for Text Amendments.** A member of the public, the administration, or a Councilmember may return to Council within a special 180 day period with a text amendment to address something that may have been missed or to address an unforeseen consequence of adoption of this Code, without payment of fee. The 180-day period shall commence from the effective date of 1-3-2016.

F. **Designated Historic Properties.** Any building or structure, including signs, that are identified and designated as a Historic Resource pursuant to the Historic Preservation Ordinance, may, at the discretion of the Review Authority and upon advice from the City

Historic Preservation Specialist, be exempted from any and all property development standards of this Code, with the exception of those rules and regulations imposed in relation to an airport plan.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, §§ 1, 44, eff. 10-21-16; Am. Ord. 2019-030, § 1, eff. 10-31-19).

SEC. 15-105. SEVERABILITY.

If any section, subsection, paragraph, sentence, clause, or phrase of this Code is for any reason held to be later declared invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Code. The City Council hereby declares that it would have passed this Code, and each article, section, subsection, sentence, clause, and phrase thereof, regardless of the fact that any one or more sections, subsections, sentences, clauses, or phrases be declared invalid or unconstitutional.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-106. FEES.

The Council shall establish by resolution, and may amend and revise from time to time, the schedule of fees for processing the discretionary entitlement applications and other permits authorized or required by this Development Code. All fees shall be paid at the time an application is filed, and no processing shall commence until the fees are paid in full.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-107. DISTRICTS ESTABLISHED.

The city shall be classified into districts or zones, the designation and regulation of which are set forth in this Code and as follows.

A. **Base Districts.** Base districts into which the city is divided are established as shown in Table 15-107-A, Base Districts.

Table 15-107-A: Base Districts

Short Name/Map Symbol	*Full Name*
Buffer (B) District	
B	Buffer
Residential Single-Unit (RS) Districts	
RE	Residential Estate
RS-1	Residential Single-Unit, Extremely Low Density
RS-2	Residential Single-Unit, Very Low Density
RS-3	Residential Single-Unit, Low Density
RS-4	Residential Single-Unit, Medium Low Density
RS-5	Residential Single-Unit, Medium Density

Table 15-107-A: Base Districts	
Short Name/Map Symbol	*Full Name*
Residential Multi-Unit (RM) Districts	
RM-1	Residential Multi-Unit, Medium High Density
RM-2	Residential Multi-Unit, Urban Neighborhood
RM-3	Residential Multi-Unit, High Density
RM-MH	Mobile Home Park
Mixed-Use (MX) Districts	
NMX	Neighborhood Mixed-Use
CMX	Corridor/Center Mixed-Use
RMX	Regional Mixed-Use
Commercial (C) Districts	
CMS	Commercial - Main Street
CC	Commercial - Community
CR	Commercial - Regional
CG	Commercial - General
CH	Commercial - Highway and Auto
CRC	Commercial - Recreation
Employment (E) Districts	
O	Office
BP	Business Park
RBP	Regional Business Park
IL	Industrial - Light
IH	Industrial - Heavy
Public and Semi-Public (PSP) Districts	
OS	Open Space
PR	Parks and Recreation
PI	Public and Institutional
Downtown (DT) Districts	
DTN	Downtown - Neighborhood
DTG	Downtown - General
DTC	Downtown - Core

B. **Overlay Districts.** Overlay Districts, one or more of which may be combined with a Base District, are established as shown in Table 15-107-B, Overlay Districts.

Table 15-107-B: Overlay Districts	
Short Name/Map Symbol	*Full Name*
BL	Bluff Protection
EA	Expressway Area
RM	Residential Modifying

Table 15-107-B: Overlay Districts	
Short Name/Map Symbol	*Full Name*
ANX	Annexed Rural Residential Transitional Overlay
EQ	Equine
M	Mining
AH	Apartment House
UC	Urban Campus
NR	Neighborhood Revitalization
KB	Kearney Boulevard Historic Corridor
CA	California Avenue Transit Corridor

C. References to Classes of Base Districts. Throughout this Code, the following references apply:

1. "B District" or "Buffer District" means the following district: B.
2. "R District" or "Residential District" means one or more of the following districts: RE, RS-1, RS-2, RS-3, RS-4, RS-5, RM-1, RM-2, RM-3, RM-MH.
3. "RE District" or "Residential Estate District" means the following district: RE.
4. "RS District" or "Residential Single-Unit District" means one or more of the following districts: RE, RS-1, RS-2, RS-3, RS-4, RS-5.
5. "RM District" or "Residential Multi-Unit District" means one or more of the following districts: RM-1, RM-2, RM-3.
6. "RM-MH District" or "Residential-Multi-Unit District-Mobile Home Park" means the following district: RM-MH.
7. "Non-Residential District" means any base zoning district except the RE, RS, RM, and RM-MH districts.
8. "MX District" or "Mixed-Use District" means one or more of the following districts: NMX, CMX, or RMX.
9. "C District" or "Commercial District" means one or more of the following districts: CMS, CC, CR, CG, CH, CRC.
10. "E District" or "Employment District" means one or more of the following: O, BP, RBP, IL, IH.
11. "Industrial District" means one or more of the following districts: IL, IH.
12. "PSP District" or "Public and Semi-Public District" means one or more of the following districts: OS, PR, PI.
13. "Downtown District" or "DT District" means one or more of the following districts: DTN, DTG, DTC.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 2, eff. 10-21-16; Am. Ord. 2018-25, § 1, eff. 6-11-18; Am. Ord. 2018-66, § 1, eff. 1-18-19; Am. Ord. 2025-024, §§ 1, 2, eff. 7-27-25).

SEC. 15-108. OFFICIAL ZONING MAP AND DISTRICT BOUNDARIES.

The boundaries of the zoning districts established by this Code are not included in this Code, but are shown on the Official Zoning Map. The Official Zoning Map, together with all legends, symbols, notations, references, zoning district boundaries, map symbols, and other information on the maps, adopted by the Council, are hereby incorporated into this Code by reference, together with any amendments previously or hereafter adopted, as though they were fully included here.

A. **Application of Pre-Annexation Zoning.** The City may apply pre-annexation zoning to unincorporated property located within the Sphere of Influence consistent with the Fresno General Plan. The pre-annexation zoning process shall comply with the provisions of Article 61, Concept Plans, Pre-Zoning, and Annexations. The zoning provisions and requirements so established shall become applicable at the same time that the annexation of such territory becomes effective, subject to compliance with any conditions of pre-annexation zoning requirements imposed by the City.

B. **Uncertainty of Boundaries.** If an uncertainty exists as to the boundaries of any district shown on the Official Zoning Map, the following rules shall apply:

1. Boundaries indicated as approximately following the centerlines of alleys, lanes, streets, highways, streams, or railroads shall be construed to follow such centerlines.

2. Boundaries indicated as approximately following lot lines, City Limits, or extraterritorial boundary lines shall be construed as following such lines, limits, or boundaries.

3. In the case of un-subdivided property or where a district boundary divides a lot and no dimensions are indicated, the following shall apply.

   a. Lots Greater than One Acre. The location of such boundary shall be determined by the use of the scale appearing on the Official Zoning Map.

   b. Lots Less than One Acre. The lot shall be deemed to be included within the more restrictive zone.

4. Where any public street or alley is officially vacated or abandoned, the regulations applicable to each parcel of abutting property shall apply to that portion of such street or alley added thereto by virtue of such vacation or abandonment.

5. Where any private right-of-way or easement of any railroad, railway, transportation, or public utility company is vacated or abandoned and said property is unclassified on the Official Zone Map the regulations applicable to each parcel of abutting property shall apply to that portion of such private right-of-way or easement.

6. In the case of any remaining uncertainty, the Director shall determine the location of boundaries.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 1, eff. 7-30-17).

ARTICLE 2 RULES FOR CONSTRUCTION OF LANGUAGE

Sec. 15-201. Purpose.
Sec. 15-202. Rules for Construction of Language.
Sec. 15-203. Rules of Interpretation.

SEC. 15-201. PURPOSE.

The purpose of this article is to provide precision in the interpretation of the Development Code. The meaning and construction of words and phrases defined in this article apply throughout this Development Code, except where the context indicates a different meaning. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-202. RULES FOR CONSTRUCTION OF LANGUAGE.

In interpreting the various provisions of this Development Code, the following rules of construction shall apply:

A. The particular controls the general.

B. Unless the context clearly indicates the contrary, the following conjunctions shall be interpreted as follows:

1. "And" indicates that all connected words or provisions shall apply.

2. "And/or" indicates that the connected words or provisions may apply singularly or in any combination.

3. "Or" indicates that the connected words or provisions may apply singularly or in any combination.

4. "Either … or" indicates that the connected words or provisions shall apply singularly, but not in combination.

C. In case of conflict between the text and a diagram or graphic, the text controls.

D. All references to departments, committees, commissions, or boards are to those of the City of Fresno, unless otherwise indicated.

E. All references to public officials are to those of the City of Fresno, and include designees of such officials, unless otherwise indicated.

1. All references to the Director shall mean the Director of Development and Resource Management, unless otherwise specified.

F. All references to days are to calendar days, unless otherwise indicated. If a deadline falls on a weekend or holiday, or any other day on which the City offices are closed, it shall be extended to the next working day. The end of a time period shall be the close of business on the last day of the period.

G. The words "shall," "will," "must," and "is to" are always mandatory and not discretionary. The words "should" or "may" are permissive.

H. The present tense includes the past and future tenses, and the future tense includes the past.

I. The singular number includes the plural, and the plural includes the singular.

J. Sections and section headings contained herein shall not be deemed to govern, limit, modify, or in any manner affect the scope, meaning, or intent of any section.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-203. RULES OF INTERPRETATION.

In the absence of an ordinance or resolution approved by the City Council, the Director, upon consultation with the City Attorney's Office, shall make the interpretation for any definition not expressly identified in, or provide clarification and interpretation of, this Development Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 3 RULES OF MEASUREMENT

Sec. 15-301. Purpose.
Sec. 15-302. General Provisions.
Sec. 15-303. Fractions.
Sec. 15-304. Measuring Distances.
Sec. 15-305. Measuring Height.
Sec. 15-306. Measuring Lot Width and Depth.
Sec. 15-307. Determining Average Slope.
Sec. 15-308. Determining Floor Area.
Sec. 15-309. Determining Floor Area Ratio.
Sec. 15-310. Determining Residential Density.
Sec. 15-311. Determining Lot Coverage.
Sec. 15-312. Determining Lot Frontage.
Sec. 15-313. Determining Setbacks and Yards.
Sec. 15-314. Measuring Signs.
Sec. 15-315. Measuring Parking Lot Landscaping.
Sec. 15-316. Measuring Pedestrian Clearance.
Sec. 15-317. Determining Frontage Coverage.

SEC. 15-301. PURPOSE.

The purpose of this article is to explain how various measurements referred to in this Code are to be calculated.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-302. GENERAL PROVISIONS.

For all calculations, the applicant shall be responsible for supplying drawings that illustrate the measurements that apply to a project. These drawings shall be drawn to scale and of sufficient detail to allow easy verification upon inspection by the Director.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-303. FRACTIONS.

Whenever this Development Code requires consideration of distances, parking spaces, dwelling units or other aspects of development or the physical environment expressed in numerical quantities, and the result of a calculation contains a fraction of a whole number, the results will be rounded as follows:

A. **General Rounding.** Fractions of one-half (0.5) or greater shall be rounded up to the nearest whole number and fractions of less than one-half (0.5) shall be rounded down to the nearest whole number, except as otherwise provided.

B. **Residential Rounding.** The maximum number of residential units shall not exceed the maximums per the base district unless excepted as described in Subsection C below.

C. **Exception for State Affordable Housing Density Bonus.** For projects eligible for bonus density pursuant to Government Code Section 65915 or any successor statute, and Article 22, Affordable Housing Density Bonus, any fractional number of permitted bonus density units shall be rounded up to the next whole number.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-304. MEASURING DISTANCES.

A. **Measurements are Shortest Distance.** When measuring a required distance, such as the minimum distance between a structure and a lot line, the measurement is made at the closest or shortest distance between the two objects.

B. **Distances are Measured Horizontally.** When determining distances for setbacks and structure dimensions, all distances are measured along a horizontal plane from the appropriate line, edge of building, structure, storage area, parking area, or other object. These distances are not measured by following the topography or slope of the land.

C. **Measurements Involving a Structure.** Measurements involving a structure are made to the closest support wall of the structure. Structures or portions of structures that are entirely underground are not included in measuring required distances.

D. **Measurement of Vehicle Stacking or Travel Areas.** Measurement of a minimum travel distance for vehicles, such as garage entrance setbacks and stacking lane distances, are measured down the center of the vehicle travel area. For example, curving driveways and travel lanes are measured along the center arc of the driveway or traffic lane.

E. **Measuring Radius.** When a specified land use is required to be located a minimum distance from another land use, the minimum distance is measured in a straight line from all points along the lot line of the subject project.

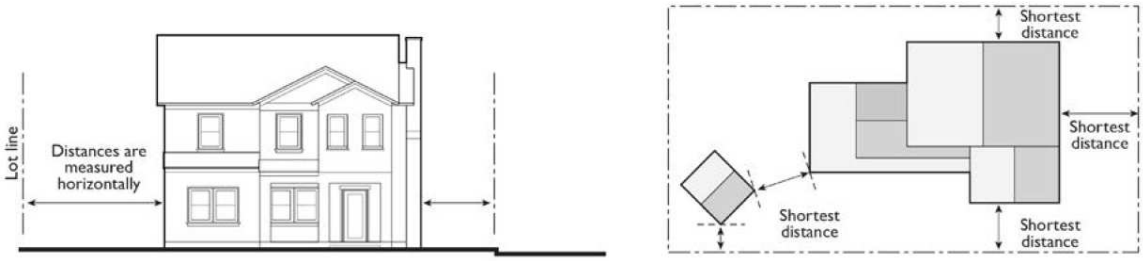


FIGURE 15-304: MEASURING DISTANCES

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-305. MEASURING HEIGHT.

A. **Measuring Building Height.** Building height is measured from the average level of the highest and lowest points where the vertical plane of the exterior walls would touch the natural grade level of the site to the highest point on the roof.

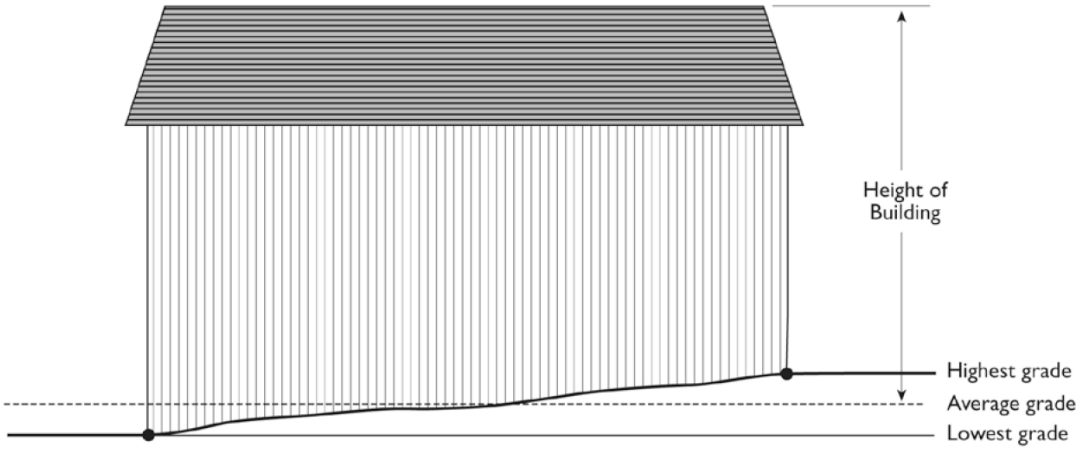
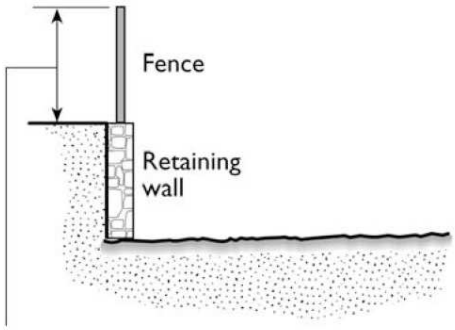


FIGURE 15-305-A: MEASURING BUILDING HEIGHT

B. **Measuring Height of Other Structures.** The height of other structures such as fences is the vertical distance from the ground level immediately under the structure to the top of the structure. Special measurement provisions are also provided below.

1. **Measuring the Height of Fences on Retaining Walls.** The height of a fence that is on top of a retaining wall is measured from the ground level on the highest side of the fence and wall.



Fence height is measured from the ground level on the highest side of the fence.

FIGURE 15-305-B.1: MEASURING HEIGHT OF FENCES ON RETAINING WALLS

2. **Measuring the Height of Decks.** Deck height is determined by measuring from the natural grade of the ground to the top of the floor of the deck.

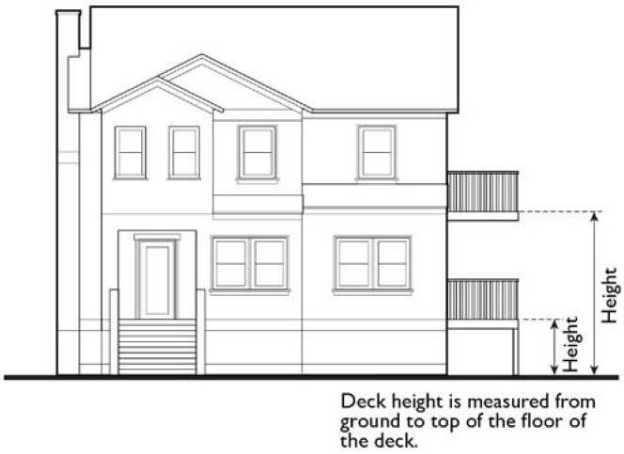


FIGURE 15-305-B.2: MEASURING HEIGHT OF DECKS

C. **Measuring the Number of Stories in a Building.** In measuring the height of a building in stories, a balcony or mezzanine shall be counted as a full story if its floor area exceeds one-third of the total area of the nearest full floor directly below it or if it is enclosed on more than three sides, unless the Building Code provides for other balcony or mezzanine definitions based on building construction type and other factors.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-306. MEASURING LOT WIDTH AND DEPTH.

A. **Lot Width.** Lot width is the horizontal distance between the side lot lines, measured at right angles to the lot depth at a point midway between the front and rear lot lines.

B. **Lot Depth.** Lot depth is measured along an imaginary straight line drawn from the midpoint of the front property line of the lot to the midpoint of the rear property line or to the most distant point on any other lot line where there is no rear lot line. Should the property line encroach into a street, the lot depth shall be measured from the front property line, after any dedications and/or street easements.

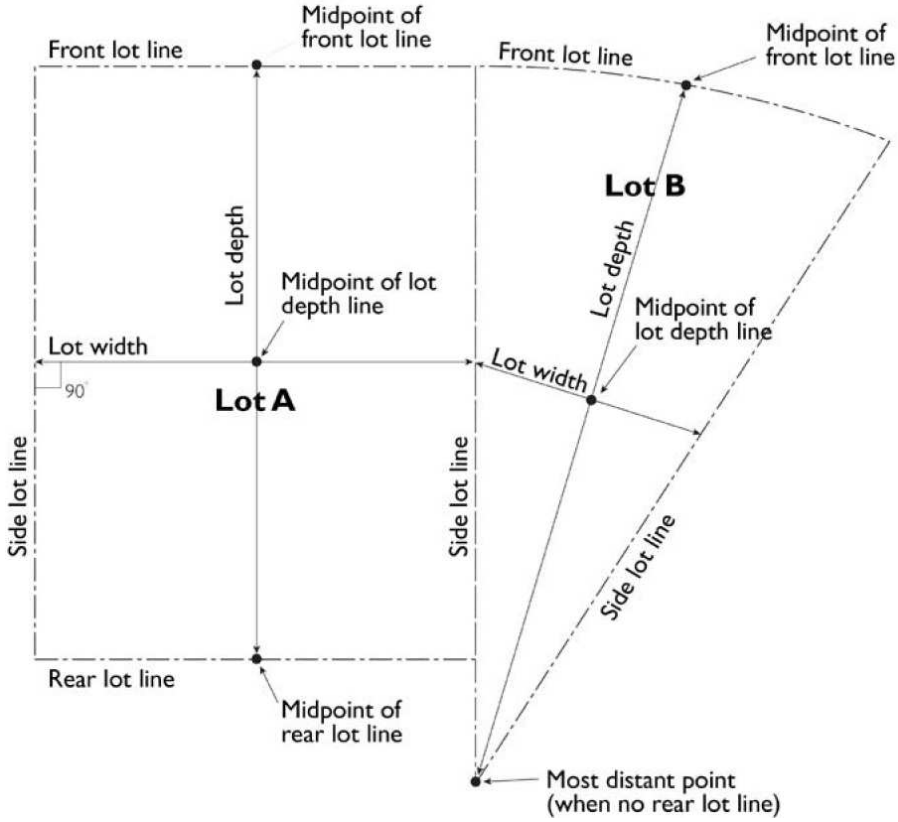


FIGURE 15-306: MEASURING LOT WIDTH AND DEPTH

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-307. DETERMINING AVERAGE SLOPE.

The average slope of a parcel is calculated using the following formula: S = 100(I)(L)/A, where:

S = Average slope (in percent)

I = Contour interval (in feet)

L = Total length of all contour lines on the parcel (in feet)

A = Area of subject parcel (in square feet)

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-308. DETERMINING FLOOR AREA.

The floor area of a building is the sum of the gross horizontal areas of all floors of a building or other enclosed structure.

A. **Included in Floor Area.** Floor area includes, but is not limited to, habitable (as defined in the California Building Code) basements and cellars that are below the

roof and within the outer surface of the main walls of principal or accessory buildings or the centerlines of party walls separating such buildings or portions thereof or within lines drawn parallel to and two feet within the roof line of any building without walls. In the case of a multi-story building that has covered or enclosed stairways, stairwells or elevator shafts, the horizontal area of such features shall be counted only once at the floor level of their greatest area of horizontal extent.

B. **Excluded from Floor Area.** Floor area does not include mechanical, electrical, and communication equipment rooms that do not exceed two percent of the building's gross floor area; bay windows or other architectural projections where the vertical distance between the lowest surface of the projection and the finished floor is 30 inches or greater; areas that qualify as usable open space; and areas used for off-street parking spaces or loading spaces, driveways, ramps between floors of a multi-level parking garage, and maneuvering aisles that are located below the finished grade of the property.

C. **Non-Residential Uses.** For non-residential uses, gross floor area includes pedestrian access interior walkways or corridors, interior courtyards, walkways, paseos, or corridors covered by a roof or skylight. Non-residential gross floor area does not include arcades, porticoes, and similar open areas that are located at or near street level and are accessible to the general public but are not designed or used as sales, display, storage, service, or production areas.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-309. DETERMINING FLOOR AREA RATIO.

Floor area ratio (FAR) is the measure of the intensity of non-residential development. It is the ratio of the non-residential floor area, excluding the areas described below, of all principal and accessory buildings on a site to the site area. To calculate FAR, non-residential floor area is divided by site area, and typically expressed as a decimal. For example, if the non-residential floor area of all buildings on a site totals 20,000 square feet, and the site area is 10,000 square feet, the FAR is expressed as 2.0.

$$\frac{\text{gross non–residential floor area of all buildings on a site}}{\text{total site area}} = \text{floor area ratio (FAR)}$$

A. **Excluded from Floor Area in Calculating FAR.**

1. **Basements.** Usable basements and cellars below finished grade.

2. **Parking.** Surface parking lots, subterranean parking garages, tuck-under parking areas, above ground parking garages, and other such facilities use for automobile parking.

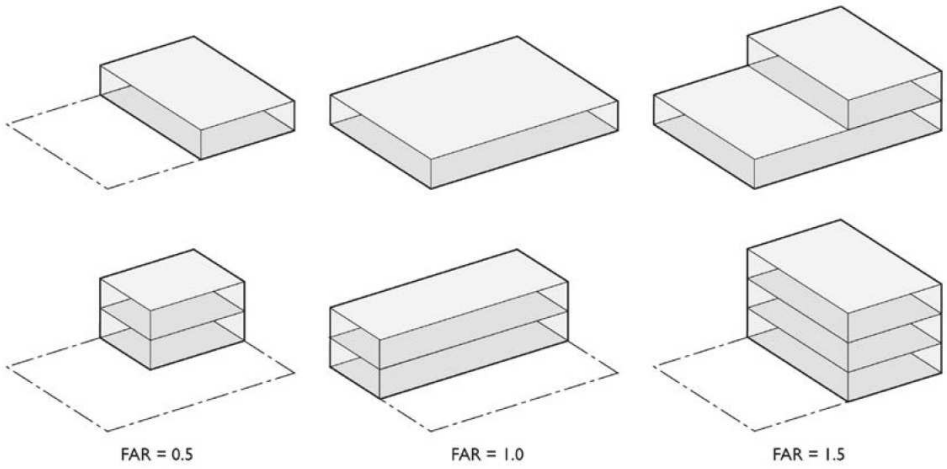


FIGURE 15-309: DETERMINING FLOOR AREA RATIO

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-310. DETERMINING RESIDENTIAL DENSITY.

Residential density measures the number of dwellings on a given unit of land. Residential density shall be calculated as follows:

A. **Residential Single-Unit Districts.** In Residential Single-Unit districts, residential density shall be measured as follows:

1. **Large Sites.** For sites with a pre-subdivided area greater than the Maximum Lot Size for the applicable District, residential density shall be measured in dwelling units per net acre of the subdivision. For example, if a project proposes 150 homes on a site with 30 net acres, it has a residential density of five dwelling units per acre (or five du/ac). The net acreage shall be calculated as the land area of a site remaining after dedication of all areas for major streets, schools, regional trails, certified wetlands or floodplains, and land underneath electric transmission lines. Second/Accessory Dwelling Units (ADUs) shall be excluded from this calculation.

2. **Small Sites.** For sites with a pre-subdivided area equal to or less than the Maximum Lot Size for the applicable District, residential density shall be measured in dwelling units per subdivided residential lot. Second/Accessory Dwelling Units (ADUs) shall be excluded from this calculation.

B. **All Other Districts.** In all other districts, residential density shall be measured in dwelling units per acre of the project's site area. For example, if a project proposes 15 dwellings on a three-acre site, it has a residential density of five dwelling units per acre (or five du/ac). Trails and natural features shall be excluded from this

calculation. For mixed-use projects, the acreage of the entire project site shall be included in the calculation, including portions of the project site which feature only non-residential uses.

C. **Density Transfers.** The number of units per acre prescribed in the applicable plans for an existing or proposed zone district shall not be transferred to another existing or proposed zone district, unless a transfer is approved through the processing of a Planned Development Permit which includes all zone districts involved in the proposed transfer.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 2, eff. 7-30-17; Am. Ord. 2018-66, § 2, eff. 1-18-19; Am. Ord. 2025-024, § 3, eff. 7-27-25).

SEC. 15-311. DETERMINING LOT COVERAGE.

Lot coverage is the ratio of the total footprint area of all structures on a lot to the net lot area, typically expressed as a percentage. The footprints of all principal and accessory structures, including garages, and carports shall be included in the lot coverage calculation, unless otherwise noted. The following structures shall be excluded from the calculation:

A. Uncovered decks, patios, porches, landings, balconies, and unenclosed stairways;

B. Eaves and roof overhangs;

C. Trellises and similar structures;

D. Outdoor swimming pools and hot tubs; and

E. Up to one non-habitable accessory structure of less than 120 square feet in floor area and seven feet in height. Should there be multiple structures that do not exceed 120 square feet in floor area, only one such structure will be omitted for calculating the Lot Coverage.

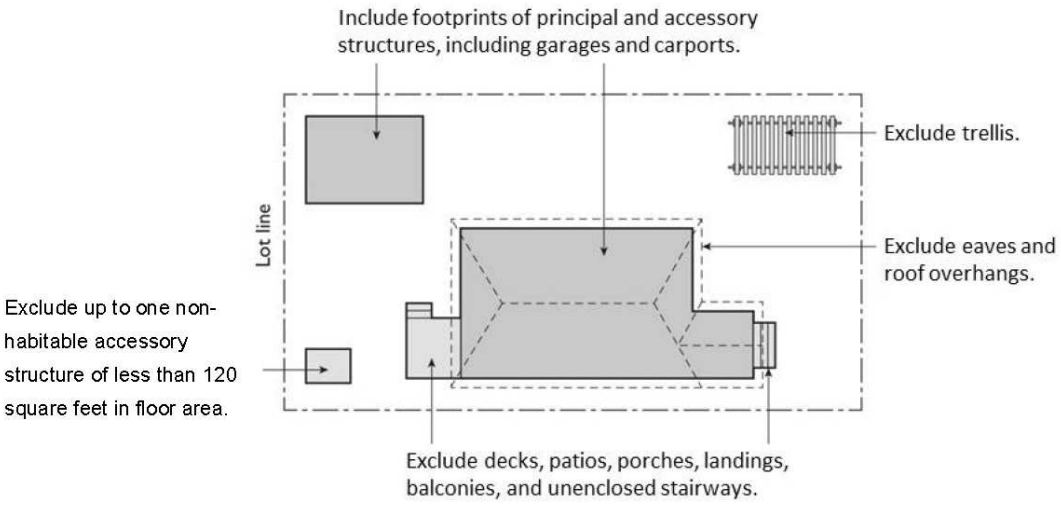


FIGURE 15-311: DETERMINING LOT COVERAGE

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 2, eff. 6-11-18).

SEC. 15-312. DETERMINING LOT FRONTAGE.

A. **Corner Lot.** The front of a lot shall be determined as follows:

1. **Downtown Districts:** The frontage abutting the street with the highest Activity Classification per Section 15-1501-C shall be the front. If all adjacent streets have the same Activity Classification, then the street frontage with the narrowest dimension shall be the front.
2. **All Other Districts:** The frontage abutting the street with the highest classification per the General Plan Circulation Map. If all adjacent streets have the same classification, then the street frontage with the narrowest dimension shall be the front.
3. **Exception:** The Review Authority shall have the discretion to designate the front of a lot in a different manner if item 1 or 2 above would cause an undesirable visual or functional disruption.

B. **Through Lot (Double Frontage Lot).** The front yard borders the street primarily used as frontage by neighboring lots.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 3, eff. 7-30-17).

SEC. 15-313. DETERMINING SETBACKS AND YARDS.

A setback line defining a required yard is parallel to and at the specified distance from the corresponding front, side, or rear property line. For regulations pertaining to projections or encroachments into required yards, refer to Section 15-2014.

A. **Front Setbacks.** Front setbacks shall be measured from the back of the sidewalk (including instances where the back of the sidewalk lies within the project parcel) to

the portion of the structure that is closest to the front of the lot. In the absence of a sidewalk, the minimum front setback shall be measured from the back of the curb. In the absence of a sidewalk and curb, minimum front setbacks shall be measured from the front property line.

B. **Garage Setbacks.** In Residential Single-Unit Districts setbacks for garages shall be regulated and calculated separately from habitable space. However, the measurement to determine the garage setback shall be made in the same manner as Subsection A above.

C. **Side Setbacks.** Side setbacks on interior lot lines shall be measured from the property line. When the side of the lot abuts a street, the measurement to determine the setback shall be made in the same manner as Subsection A above.

D. **Yards on Alleys.** The following special regulations for determining setbacks apply when a lot abuts an alley.

1. If a side lot line abuts an alley, the yard shall be considered an interior side yard rather than a corner side yard.

2. In computing the minimum yard for any lot where such yard abuts an alley, no part of the width of the alley may be considered as part of the required yard.

E. **Yards Abutting Official Plan Lines.** If a property abuts an Official Plan Line, the required setback shall be established from the Official Plan Line or the property line, whichever results in a greater setback.

F. Regardless of the stated setback for a property, in no instance shall a building be allowed to encroach within an easement unless an easement encroachment has been authorized and a covenant recorded for that purpose.

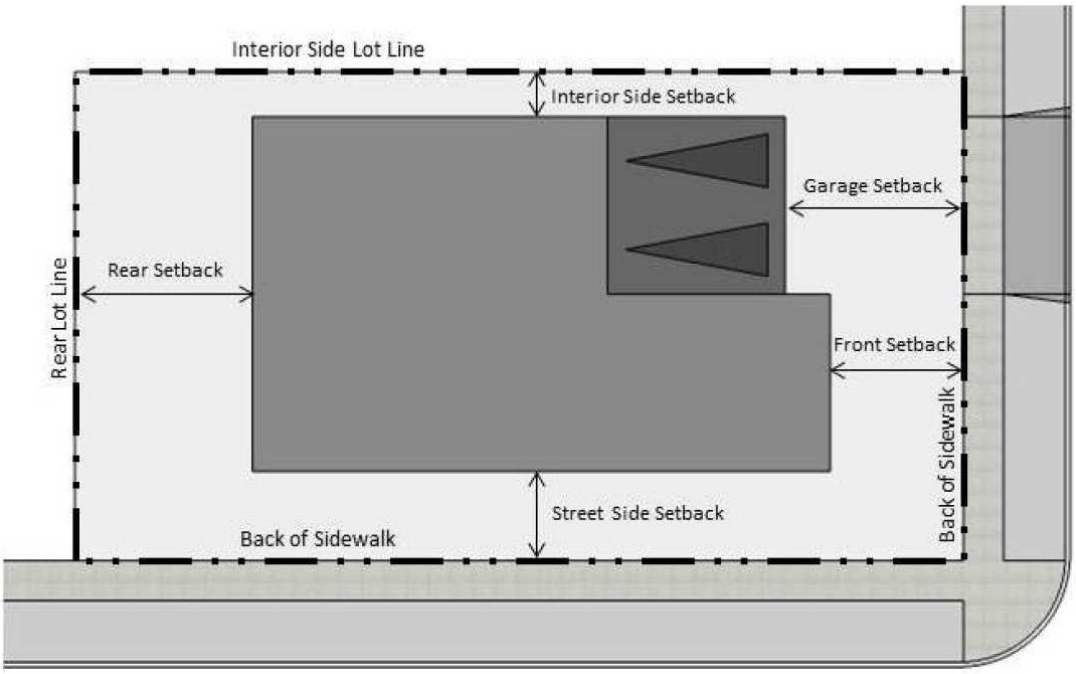


FIGURE 15-313: DETERMINING SETBACKS (YARDS)

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 3, eff. 10-21-16; Am. Ord. 2025-024, § 4, eff. 7-27-25).

SEC. 15-314. MEASURING SIGNS.

The height of signs is measured in the same method as the height of other structures (See 15-305-B). Calculation of sign area is described in Article 26, Signs.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-315. MEASURING PARKING LOT LANDSCAPING.

For the purpose of calculating required parking lot landscaping, parking lot areas are deemed to include parking and loading spaces as well as aisles, vehicle entry and exit areas, and any adjacent paved areas. The parking lot area does not include enclosed vehicle storage areas, carports, or parking structures.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-316. MEASURING PEDESTRIAN CLEARANCE.

The minimum distance shall be measured from the edge of any table, chair, bench, planter, or other appurtenance used as part of an outdoor dining area to any obstruction within and/or the edge of the pedestrian area (e.g., sidewalks).
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-317. DETERMINING FRONTAGE COVERAGE.

Frontage coverage is the portion of the primary enclosed ground floor linear building façade that is located within the area between the minimum and maximum front setback. The following exceptions shall apply:

A. Sites with frontage on multiple streets may not be required to meet the frontage coverage requirement along the streets with the lowest functional classification or the least visual prominence, at the discretion of the Review Authority, except in districts in which a minimum frontage coverage for the side street is specified.

B. Required side and rear setbacks and residential transition setbacks shall be excluded from this calculation.

C. Public plazas, parks, pedestrian passages, alleys, and cross streets (public or private) shall be excluded from this calculation.

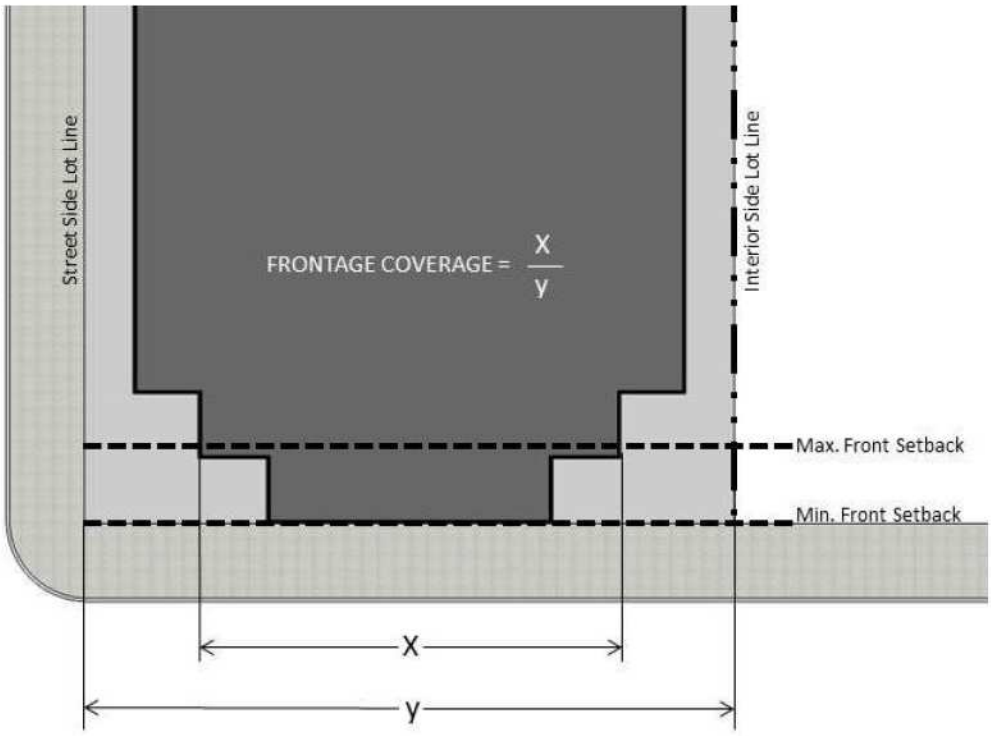


FIGURE 15-317: DETERMINING FRONTAGE COVERAGE

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-43, § 1, eff. 12-9-16).

ARTICLE 4 NON-CONFORMING USES, STRUCTURES, SITE FEATURES, AND LOTS

Sec. 15-401. Purpose.
Sec. 15-402. Determination of Non-Conforming Status.
Sec. 15-403. Illegal Non-Conforming Uses, Structures, and Site Features.
Sec. 15-404. Legal Non-Conforming Uses.
Sec. 15-405. Legal Non-Conforming Structures and Site Features.
Sec. 15-406. Non-Conforming Lots.

Sec. 15-401. Purpose.

The purpose of this article is to permit continued utility and economic viability of uses, structures, site features, and lots that were created lawfully prior to the adoption of this Code, but do not conform to its provisions, while preventing new non-conformities.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-402. DETERMINATION OF NON-CONFORMING STATUS.

A use, structure, site feature, or lot shall be considered non-conforming if it was created prior to the adoption of this Code, or any amendment thereto, and does not conform to its provisions. The Director shall evaluate all available documentation to determine that non-conforming uses, structures, and site features shall have Legal Non-Conforming status or Illegal Non-Conforming status as follows:

A. **Legal Non-Conforming Status.** A use, structure, or site feature shall be designated as having Legal Non-Conforming status if it was lawfully established under the regulations of the jurisdiction in which it was located at the time of its establishment and has continuously remained in compliance with all terms and conditions imposed upon the use, structure, or site feature upon its establishment or imposed upon it any time thereafter, based on evidence provided by the property owner, tenant, or applicant. Legal Non-Conforming status shall also be assigned if non-conformities were created by a public improvement, such as a street widening project.

B. **Illegal Non-Conforming Status.** A use, structure, site feature, or lot shall be designated as having Illegal Non-Conforming status if it was not lawfully established under the regulations of the jurisdiction in which it was located at the time of its establishment or has not continuously remained in compliance with all terms and conditions imposed upon the use, structure, or site feature upon its establishment or imposed upon it any time thereafter.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-403. ILLEGAL NON-CONFORMING USES, STRUCTURES, AND SITE FEATURES.

Nothing in this article shall be deemed to allow the use, change in use, repair, alteration, expansion, enlargement, or reconstruction of an Illegal Non-Conforming use, structure, or site feature. Any such Illegal Non-Conforming use shall be discontinued and any such Illegal Non-Conforming structure or site feature shall be removed.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-404. LEGAL NON-CONFORMING USES.

A. **Continuation of Legal Non-Conforming Uses.** Except as otherwise provided in this article, any Legal Non-Conforming use may be continued indefinitely. No Illegal Non-Conforming use shall be continued unless such use subsequently comes into conformity with the applicable provisions of this Code.

B. **Expansion of Legal Non-Conforming Uses.** A Legal Non-Conforming use shall not be expanded unless a Conditional Use Permit is granted for such expansion. Prior to issuance of a Conditional Use Permit, it must be determined that at least one of the following three circumstances exists:

1. The resultant use and/or project design will reduce current adverse impacts on adjacent properties and/or on the general public;
2. The resultant use and/or project design will aid in the preservation of a historic resource; or
3. The expansion of the use or the enlargement of a structure housing a non-conforming use is necessary to comply with a requirement imposed by law for the operation of the particular use, including, but not limited to, regulations for disabled access or seismic retrofit.

C. **Change of Legal Non-Conforming Use.** A Legal Non-Conforming use shall not be changed to, or substituted for, another non-conforming use unless a Conditional Use Permit is granted for such change or substitution. To grant such a Conditional Use Permit the Director must first find that, in addition to the findings required by Section 15-404-B, the resultant use will be more consistent with the uses permitted in the district than the former use.

D. **Change of a Legal Non-Conforming Industrial Use.** A Legal Non-Conforming Industrial Use shall not be changed to, or substituted for, another use other than to come into compliance with this Code.

E. **Change to a Conforming Use.** When a Legal Non-Conforming use has been changed to a conforming use, the non-conforming use shall not be re-established thereafter, with the following exception: Within Residential Multi-Unit, Mixed-Use, or Commercial districts, structures which are determined by the Director to have been lawfully constructed as single-unit dwellings may be returned to single-unit use at any time. The Director shall base

such a determination on evidence including building permits, County Assessor's data, building design and appearance, or other records which document that the building was originally constructed as a single-unit home.

F. **Abandonment of Legal Non-Conforming Uses.**

1. **Residential Districts.** A Legal Non-Conforming use shall not be re-established in any structure in a Residential District if such Legal Non-Conforming use has ceased for a consecutive six-month period.

2. **Mixed Use Districts.** A Legal Non-Conforming use shall not be re-established in any structure if such Legal Non-Conforming use has ceased for a consecutive five-year period.

3. **All Other Districts.** A Legal Non-Conforming use shall not be re-established in any structure if such Legal Non-Conforming use has ceased for a consecutive 12-month period within five years of January 3, 2016. Once the five year period from the effective date of this Code has passed, a Legal Non-Conforming Use shall not be re-established in any structure in a Non-Residential District if such Legal Non-Conforming Use has ceased for a consecutive period of 90 days or more.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 4, eff. 10-21-16; Am. Ord. 2018-25, § 3, eff. 6-11-18; Am. Ord. 2025-024, § 5, eff. 7-27-25).

SEC. 15-405. LEGAL NON-CONFORMING STRUCTURES AND SITE FEATURES.

A. **Applicability.** This section shall apply to all Legal Non-Conforming buildings, fences, parking, landscaping, and other such physical improvements to a lot, with the exception of non-conforming signs, which are regulated by Article 26.

B. **Continuation of Existing Structures and Site Features.** Except as otherwise stated in this article, any Legal Non-Conforming structure or site feature may be continued indefinitely. Any Illegal Non-Conforming structure or site feature shall be removed or modified to conform to the provisions of this Code.

C. **Completion of Structures or Site Features.** The provisions of this article shall not be construed to preclude the completion of any structure or site feature upon which lawful construction has begun prior to the time of enactment of this Code or any amendment thereto, or prior to the time of inclusion in the city.

D. **Repair and Maintenance of Non-Conforming Structures or Site Features.**

1. **Maintenance.** A Legal Non-Conforming structure or site feature may be maintained as necessary to keep it in good working order.

2. **Repairs and Alterations.** Notwithstanding the provisions of Section 15-404-B, any Legal Non-Conforming structure or site feature may be repaired and/or altered, provided that such repairs and alterations do not increase any non-conformity.

3. **Repair of Unsafe Structures or Site Feature.** The provisions of this article shall not be construed to preclude the repair or alteration of any part of any structure or

site feature declared to be unsafe by the Building Official when such repairs or alterations are for the purpose of restoring the structure or site feature to a safe condition.

E. **Enlargement of Non-Conforming Structures.**

1. **Enlargement of Single-Unit Residential Structures.** A legal non-conforming single-unit use or structure in a Non-Residential District may be enlarged, provided the addition does not reduce the number of parking spaces, alter the size of parking spaces, or the location and size of driveways; and the addition does not change the structure from single-unit use to multi-unit use. Such an expansion shall conform to the property development standards of either the Base District (and Overlay Districts, if applicable) for the site, or a Residential District which is appropriate to the size and configuration of the site at the discretion of the Review Authority.

2. **Enlargement of Other Legal Non-Conforming Structures and Site Features.** A legal non-conforming structure or site feature being used for a conforming use may be enlarged or structurally altered if the new portion of the structure or site feature conforms to the regulations of the district in which it is located. If strict conformance with current setback requirements would cause unsightly or impractical site layouts, and a deviation from such requirements shall not cause impacts on neighboring uses, the Review Authority may exempt the enlargement of a legal non-conforming structure or site feature from setback requirements at their discretion. Unaltered portions of such structures or site features will be allowed to remain non-conforming. A Legal Non-Conforming structure or site feature housing or associated with a non-conforming use shall not be enlarged or altered except as put forth in Section 15-404-B.

F. **Replacement of Involuntarily Destroyed or Damaged Non-Conforming Structures or Site Features.** Any Legal Non-Conforming structure or site feature that is destroyed or damaged by fire, flood, explosion, wind, earthquake, war, riot, or other public calamity or act of nature, may be replaced or reconstructed to the same size and extent as before the damage occurred, provided that rebuilding commences not later than one year after destruction, and so long thereafter as the Building Permit remains valid.

G. **Replacement of Voluntarily Demolished, Destroyed, or Damaged Non-Conforming Structures or Site Features.** Any non-conforming structure or site feature which is demolished, destroyed, or damaged by means other than those listed in the Section 15-405-F shall not be reconstructed unless it complies with all provisions of the district in which the structure is located. Exceptions may be given where all of the following circumstances exist:

1. The structure houses a conforming use;

2. The structure or site feature is replaced or reconstructed to the same or a lesser size and extent as the original structure or site feature; and

3. A Conditional Use Permit is granted, and the Director finds, in addition to the findings required by Section 15-404-B, that compliance with current standards is impractical and that the proposed reconstruction will conform to current standards to the greatest extent practical.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 4, eff. 6-11-18; Am. Ord. 2025-024, § 6, eff. 7-27-25).

SEC. 15-406. NON-CONFORMING LOTS.

A Non-Conforming lot or parcel may be used for development subject to compliance with all other provisions of this article and other applicable codes. A Non-Conforming lot may not be further reduced in area or dimension, except under the application of eminent domain. (Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 5 RESERVED

ARTICLE 6 RESERVED

ARTICLE 7 RESERVED

PART II: BASE AND OVERLAY DISTRICTS

ARTICLE 8 BUFFER DISTRICT (B)

Sec. 15-801. Purpose.
Sec. 15-802. Use Regulations.
Sec. 15-803. Density And Massing Development Standards.
Sec. 15-804. Additional Development Standards.

SEC. 15-801. PURPOSE.

The Buffer (B) District is intended to separate urban uses from commercial agricultural uses to preserve long-term viable agricultural areas and intensive farming operations in adjacent areas. The Buffer District serves to prevent urban residential and related uses from developing near agricultural operations, and thereby infringing on full operation of farmland of importance. Allowable uses include environmental habitat; water conveyance, retention, and recharge; preservation and preparation of gravel resources; beneficial uses related to permanent water resource facilities; limited agriculture and necessary supportive uses, such as agricultural processing (not including animal processing or rendering, nor uses that have the potential to create obnoxious noise, odor, etc.); and residential uses with 20 acres of land required per residence.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-802. USE REGULATIONS.

A. Table 15-802 prescribes the land use regulations for the Buffer District. The regulations for the district are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-802: USE REGULATIONS—BUFFER DISTRICT		
Use Classification	*B*	*Additional Regulations*
Residential Use Classifications		
Residential Housing Types		
Single-Unit Dwelling, Detached	P	§ 15-2738, Manufactured Homes; § 15-2754, Second/Accessory Dwelling Units (ADUs)
Adult Family Day Care		
Small (6 clients or less)	P	
Family Day Care		
Small (8 children or less)	P	§ 15-2725, Day Care Centers and Family Child Care Homes
Group Residential		
Small (6 persons or less)	P	
Residential Care Facilities		
Residential Care, Limited	P	
Public and Semi-Public Use Classifications		
Community Garden	P	§ 15-2720, Community Gardens/Urban Farms
Park and Recreation Facilities, Public	P	
Public Safety Facilities	C	
Commercial Use Classifications		
Animal Care, Sales and Services		
Kennels	C	
Veterinary Services	C	
Lodging		
Bed and Breakfast	P	§ 15-2713, Bed and Breakfast Lodging
Transportation, Communication, and Utilities Use Classifications		
Communication Facilities		
Antenna and Transmission Towers	See § 15-2759, Telecommunications and Wireless Facilities	
Utilities, Major	C	
Utilities, Minor	P	
Agricultural and Extractive Use Classifications		
Agricultural Labor Housing	P	
Agricultural Processing	C(1)	
Agricultural Support Services	P	
Animal Raising	C	
Crop Cultivation	P	§ 15-2716, Crop Cultivation
Dairy	P(1)	
Mining and Quarrying	C	
Produce Stand	P	§ 15-2752, Roadside Fruit Stands/Grower Stands
Sales Lot, Feed Lot, Stockyard	C	
Tasting Room	C	
Urban Farm	P	§ 15-2720, Community Gardens/Urban Farms
Other Applicable Types		
Accessory Uses and Structures	§ 15-2703, Accessory Uses	
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping	

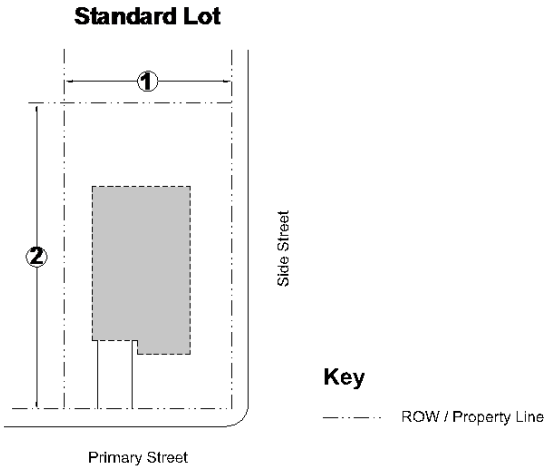
TABLE 15-802: USE REGULATIONS—BUFFER DISTRICT		
Use Classification	*B*	*Additional Regulations*
Home Occupations	§ 15-2735, Home Occupations	
Animal Keeping	§ 15-2707, Animal Keeping	
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots	
Temporary Use	§ 15-2760, Temporary Uses	
Transitional and Supportive Housing	§ 15-2762, Transitional and Supportive Housing	
Specific Limitations: 1. Only on lots 40 acres or more in size.		

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 7, eff. 7-27-25).

SEC. 15-803. DENSITY AND MASSING DEVELOPMENT STANDARDS.

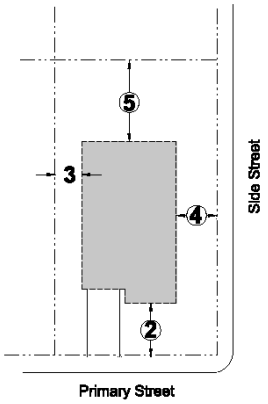
Tables 15-803-1 and 15-803-2 prescribe the density and massing development standards for the Buffer District. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

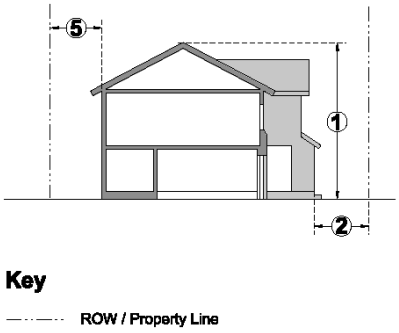
TABLE 15-803-1: LOT AND DENSITY STANDARDS—BUFFER DISTRICT



District	B	Additional Regulations	#
Maximum Density (du/lot)	1		
Minimum Lot Size (acres)	20		
Minimum Lot Width (ft.)	130		①
Minimum Lot Depth (ft.)	200		②

TABLE 15-803-2: BUILDING FORM AND LOCATION STANDARDS—BUFFER DISTRICT





District	B	Additional Regulations	#
Maximum Height (ft.)	35	§ 15-804-A, Additional Height for Agricultural-Related Structures § 15-2012, Heights and Height Exceptions	①
Minimum Setbacks (ft.)			
Front	35	§ 15-313, Determining Setbacks and Yards, and § 15-2014, Projections/Encroachments into Yards	②
Interior Side	20		③
Street Side	35		④
Rear	20		⑤
Maximum Lot Coverage (% of Lot)	5	§ 15-311, Determining Lot Coverage	

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-804. ADDITIONAL DEVELOPMENT STANDARDS.

A. Additional Height for Agricultural-Related Structures. The Director may approve Accessory Structures, up to a height of 75 feet, for agricultural-related structures, per the following standards:

1. The Accessory Structure shall be used only for agricultural products.
2. Any request to exceed the 35 foot maximum shall be subject to a flag test to be performed by the applicant, with a member of City staff in attendance.
3. There shall be no advertising on the structure.
4. Sight lines, shadows, and overall aesthetics shall be considered by the Director when over-height structures are proposed.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 9 RESIDENTIAL SINGLE-UNIT DISTRICTS (RS)*

Sec. 15-901. Purpose.
Sec. 15-902. Use Regulations.
Sec. 15-903. Density and Massing Development Standards.
Sec. 15-904. Site Design Development Standards.
Sec. 15-905. Façade Design Development Standards.
Sec. 15-906. Duplex and Multi-Unit Residential Standards.

SEC. 15-901. PURPOSE.

The purposes of the Residential Single-Unit (RS) Districts are to:

A. Provide for a variety of single-unit residences built to urban or suburban standards to suit a spectrum of individual lifestyles and needs, and to ensure availability throughout the city of the range of housing types necessary for all segments of the community, consistent with the General Plan.

B. Enhance the character of the city's residential neighborhoods, while providing new opportunities for the development of a range of housing types throughout the city.

C. Ensure that the scale and design of new development and alterations and additions to existing residences are compatible with the scale, mass, and character of their neighborhoods.

D. Provide for appropriate densities within the ranges established in the General Plan.

E. Protect the quality of the residential environment and secure the health, safety, and general welfare of the residents.

F. Provide sites for neighborhood-serving uses such as parks, family day cares, libraries, and community facilities.

G. Implement and provide appropriate regulations for General Plan classifications of "Low Density Residential," "Medium Low Density Residential," and "Medium Density Residential."

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 9, eff. 7-27-25).

SEC. 15-902. USE REGULATIONS.

A. Table 15-902 prescribes the proposed land use regulations for Residential Single-Unit Districts. The regulations for the districts are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

***Editor's note—**Ord. 2025-024, § 8, effective July 27, 2025, amended the title of Art. 9 to read as herein set out. The former Art. 9 title pertained to Residential Single-Family Districts (RS).

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director may assign the land use or activity to a classification, should a use be substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-902: USE REGULATIONS—RESIDENTIAL SINGLE-UNIT DISTRICTS

Use Classifications	*RE*	*RS-1*	*RS-2*	*RS-3*	*RS-4*	*RS-5*	*Additional Regulations*
Residential Use Classifications							
Residential Housing Type							
Single-Unit Dwelling, Detached	P	P	P	P	P	P	§ 15-2738, Manufactured Homes; § 15-2754, Second/Accessory Dwelling Units (ADUs)
Single-Unit Dwelling, Attached	-	-	-	-	C	P	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Cottage Housing Development	-	-	-	-	-	P	§ 15-2723, Cottage Housing Developments (Pocket Neighborhoods)
Duplex	-	-	-	-	-	C	§ 15-906, Duplex and Multi-Unit Residential Standards; § 15-2754, Second/Accessory Dwelling Units (ADUs)
Multi-Unit Residential	-	-	-	-	-	C	§ 15-906, Duplex and Multi-Unit Residential Standards; § 15-2754, Second/Accessory Dwelling Units (ADUs)
Adult Family Day Care							
Small (6 clients or less)	P	P	P	P	P	P	
Large (7 to 12 clients)	-	C	C	C	C	C	
Domestic Violence Shelter							
Small (6 persons or less)	P	P	P	P	P	P	
Family Day Care							
Small (8 children or less)	P	P	P	P	P	P	§ 15-2725, Day Care Centers and Family Child Care Homes
Large (9 to 14 children)	-	C	C	C	C	C	

TABLE 15-902: USE REGULATIONS—RESIDENTIAL SINGLE-UNIT DISTRICTS							
Use Classifications	*RE*	*RS-1*	*RS-2*	*RS-3*	*RS-4*	*RS-5*	*Additional Regulations*
Group Residential							
Small (6 persons or less)	P	P	P	P	P	P	
Residential Care Facilities							
Residential Care, General	-	C	C	C	C	C	
Residential Care, Limited	P	P	P	P	P	P	
Public and Semi-Public Use Classifications							
Community and Religious Assembly (less than 2,000 square feet)	-	-	P	P	P	P	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	-	-	C	C	C	C	
Community Garden	P	P	P	P	P	P	§ 15-2720, Community Gardens/ Urban Farms
Cultural Institutions	-	-	-	C	C	C	
Day Care Centers	-	-	-	-	-	C	§ 15-2725, Day Care Centers and Family Child Care Homes
Park and Recreation Facilities, Public	P	P	P	P	P	P	
Public Safety Facilities	C	C	C	C	C	C	
Schools, Public or Private	-	P	P	P	P	P	
Commercial Use Classifications							
Corner Commercial	-	-	-	-	P	P	§ 15-2722, Corner Commercial
Food and Beverage Sales							
Farmer's Markets	-	-	-	-	P(2)	P(2)	§ 15-2730, Farmer's Markets
Lodging							
Bed and Breakfast	P	P	P	P	P	P	§ 15-2713, Bed and Breakfast Lodging
Industrial Use Classifications							
Warehousing, Storage, and Distribution							
Personal Storage	-	-	-	C	C	C	§ 15-2747, Personal (Mini) Storage
Transportation, Communication, and Utilities Use Classifications							
Communication Facilities							
Antenna and Transmission Towers	See § 15-2759, Telecommunications and Wireless Facilities						
Utilities, Minor	P	P	P	P	P	P	
Agricultural and Extractive Use Classifications							
Agricultural Labor Housing	P	P	P	P	P	P	
Crop Cultivation	P	P	P	P	P	P	§ 15-2716, Crop Cultivation
Produce Stand	P	P	P	P	P	P	§ 15-2752, Roadside Fruit Stands / Grower Stands

TABLE 15-902: USE REGULATIONS—RESIDENTIAL SINGLE-UNIT DISTRICTS							
Use Classifications	*RE*	*RS-1*	*RS-2*	*RS-3*	*RS-4*	*RS-5*	*Additional Regulations*
Urban Farm	P	P	P	P	P	P	§ 15-2720, Community Gardens/ Urban Farms
Other Applicable Types							
Accessory Uses and Structures	§ 15-2703, Accessory Uses						
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping						
Home Occupations	§ 15-2735, Home Occupations						
Animal Keeping	§ 15-2708, Animal Keeping						
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots						
Temporary Use	§ 15-2760, Temporary Uses						
Transitional and Supportive Housing	§ 15-2762, Transitional and Supportive Housing						
Specific Limitations: 1. Reserved. 2. Off-street Farmer's Markets are permitted only on non-residential sites, such as schools and religious institutions.							

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 5, eff. 10-21-16; Am. Ord. 2018-25, § 5, eff. 6-11-18; Am. Ord. 2018-66, § 3, eff. 1-18-19; Am. Ord. 2025-024, § 10, eff. 7-27-25).

SEC. 15-903. DENSITY AND MASSING DEVELOPMENT STANDARDS.

Tables 15-903-1 through 15-903-2 prescribe the development standards for the Residential Single-Unit Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

TABLE 15-903-1: LOT AND DENSITY STANDARDS—RESIDENTIAL SINGLE-UNIT DISTRICTS

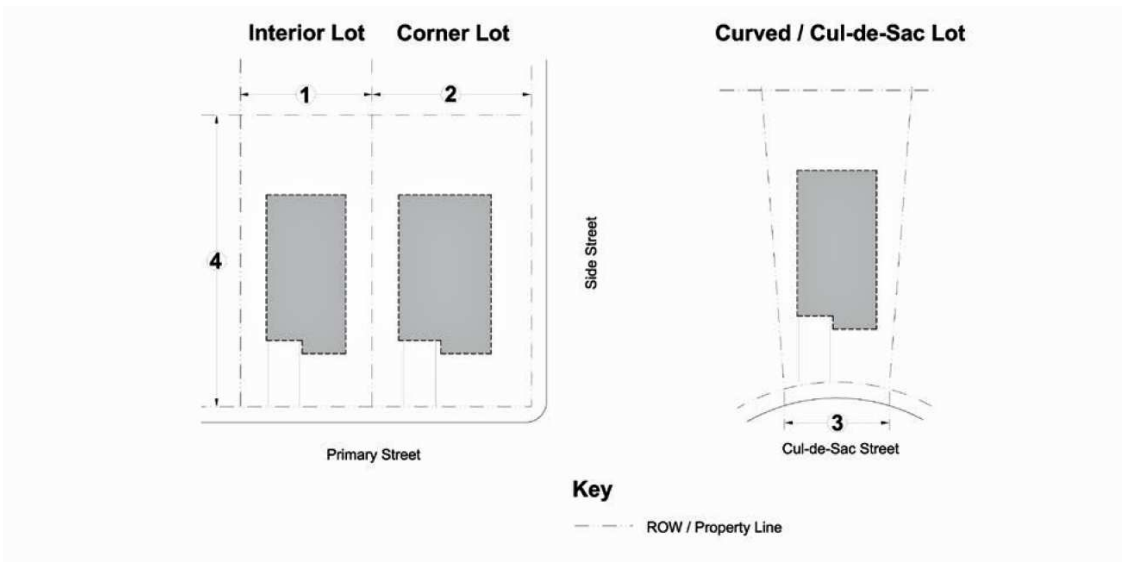
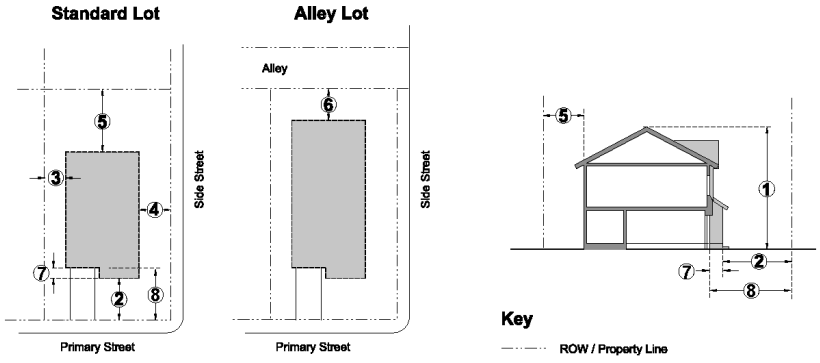


TABLE 15-903-1: LOT AND DENSITY STANDARDS—RESIDENTIAL SINGLE-UNIT DISTRICTS

District	RE	RS-1	RS-2	RS-3	RS-4	RS-5	Additional Regulations	#
Minimum Lot Size (sq. ft.)	5 acres	36,000	20,000	9,000	5,000	4,000		
Minimum Lot Size, with Enhanced Streetscape (sq. ft.)	-	-	-	-	-	2,500[1]	§ 15-904-B, Enhanced Streetscape	
Maximum Lot Size[2]	-	-	-	32,000	9,000	6,500		
Residential Density, Large Sites (dwelling units per net acre)	0.15	1	2.5	3.5	6	12	§ 15-310, Determining Residential Density	
Residential Density, Small Sites (dwelling units per lot)	1	1	1	1	1	1	§ 15-310, Determining Residential Density	
Minimum Lot Width (ft.)								
General Standard	110	110	110	70	50	35		①
Corner	110	110	110	80	55	40		②
Reversed Corner	110	110	110	90	60	50		
Where Side Property Line Abuts a Major Street, Freeway or Railroad	160	160	130	90	70	60		
Curved/Cul-de-Sac	80	80	80	60	40	30		③
Minimum Lot Depth (ft.)								
General Standard	130	130	130	100	85	70		④
Where Front or Rear Property Line Abuts a Major Street	200	200	130	110	100	90		④
Where a Front or Rear Property Line Abuts a Freeway or Railroad	200	200	150	150	120	120		④

1. Provided that the overall density of the development does not exceed the approved General Plan densities.
2. Maximum lot sizes may be exceeded in developments whose overall density does not fall below the approved General Plan density.

TABLE 15-903-2: BUILDING FORM AND LOCATION STANDARDS—RESIDENTIAL SINGLE-UNIT DISTRICTS



District	RE	RS-1	RS-2	RS-3	RS-4	RS-5	Additional Regulations	#
Maximum Height (ft.)	35	35	35	35	35	35	§ 15-2012, Heights and Height Exceptions	①
Minimum Setbacks (ft.)								

TABLE 15-903-2: BUILDING FORM AND LOCATION STANDARDS—RESIDENTIAL SINGLE-UNIT DISTRICTS								
Front	35	35	30	25	13	13	§ 15-313, Determining Setbacks and Yards § 15-904-A, Additional Setback Regulations § 15-904-B, Enhanced Streetscape § 15-2004, Accessory Buildings and Structures § 15-2014, Projections/ Encroachments into Yards	②
Front, with Enhanced Streetscape	-	-	-	-	8	5		
Interior Side	10	10	10	5	10 total, min. 4/side	8 total, min. 3/side		③
Street Side	35	25	25	20	10	10		④
Rear	20	20	20	20	10	10		⑤
Alley	20	20	20	5	5	-		⑥
Freeway/Railroad	50	50	50	50	50	50		
Garage, from back of sidewalk or curb	-	-	35	30	18	18		⑧
Garage, from primary façade	-	-	4	4	4	4		⑦
Maximum Lot Coverage (% of Lot)	30	30	30	35	50	60	§ 15-311, Determining Lot Coverage	

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 4, eff. 1-18-19; Am. Ord. 2025-024, § 11, eff. 7-27-25).

SEC. 15-904. SITE DESIGN DEVELOPMENT STANDARDS.

A. **Additional Setback Regulations.**

1. **Setbacks for Developed Blocks.**

   a. **Front Yards.** Where 50 percent or more of the lots on the same blockface have been improved with buildings, the front setback for new structures shall not be greater than 110 percent of the average of the actual front setbacks of all improved lots on such blockface, nor shall it be less than 90 percent of the average of the actual front setbacks of all improved lots on such blockface.

   b. **Garage Encroachments into Rear and Side Setbacks.** Where 50 percent of the residential properties on a block have detached garages which encroach into the minimum side and/or rear setbacks, new detached garages shall be permitted to encroach into the minimum side and/or rear setback in a similar manner. In such instances the minimum side and rear setback for a detached garage shall each be equal to the average of the equivalent setbacks of the detached garages on the block, unless the average is less than two feet in which case the setback shall be zero feet.

   c. **Garage Setbacks for Developed Blocks.** Where 50 percent or more of the lots on the same blockface feature detached garages, new garages shall be set back no less than 10 feet behind the primary façade.

2. **Side Setbacks for Attached Dwellings.** Required side setbacks shall apply only to the ends of rows of attached dwellings, and shall not be required between attached dwellings.

3. **Interior Side Yards Adjacent to Garages.** If side setbacks are not of an equal width, then the larger side setback shall be adjacent to the garage.

4. **Water-Efficient Landscaping Incentive.** The minimum front setback may be reduced by up to three feet if the front yard complies with the following:

   a. The installed landscaping complies with the State Model Water Efficient Landscape Ordinance (MWELO) regardless of whether the new landscape project meets or does not meet the Applicability criteria in MWELO; and

   b. The Maximum Applied Water Allowance is reduced by 10 percent; and

   c. The setback reduction shall not result in a front setback of less than three feet.

5. **Park Strip Incentive.** When a park strip is provided between the curb and sidewalk in a new subdivision, the minimum front setback for adjacent parcels shall be reduced by the width of the park strip. However, the reduction shall not result in a front setback of less than three feet.

6. **Swing Garages.** A garage with an entrance that is perpendicular to the adjacent street is known as a swing garage. If the wall of a swing garage which faces the street has windows and other architectural treatments which are comparable to that of the primary façade of the living area, then swing garages shall be subject to the minimum front setback and shall not be subject to garage setbacks.

7. **Rear Setback Reduction.** Rear setbacks may be reduced if all of the following conditions are met:

   a. A site plan shall be submitted in accordance with the provisions of Article 52 Development Permit;

   b. The rear setback shall be greater than or equal to the required interior side setback for the Base District, but in no instance shall the rear setback be less than 5 feet;

   c. Space equal to the reduction shall be provided elsewhere on the lot, exclusive of any required yard area. Said replacement space shall have minimum dimensions of five feet by eight feet, and shall be so located that it is suitable for general use by the occupant of the premises; and

   d. The Review Authority shall find that the granting of the reduction will not be materially detrimental to the public welfare or injurious to property and improvements in the area in which the property is located and will not be contrary to the objectives of this Code.

8. **Driveway Paving.** All driveways shall be paved per Public Works standards.

B. **Enhanced Streetscape.** When an Enhanced Streetscape is provided, the minimum lot size and minimum front setback shall be reduced as shown on Tables 15-903-1 and 15-903-2. Enhanced Streetscape shall mean that no fewer than five of the following qualities are present on the site or the adjacent public street:

1. A landscaped parkway strip of no less than four feet in width; or

2. An elevated first floor which is at no less than three feet above the grade of the adjacent sidewalk or curb; or
3. A front porch with a depth of no less than five feet and a width equal to no less than 20 percent of the building frontage; or
4. A street-facing balcony with a depth of no less than five feet and a width equal to no less than 30 percent of the building frontage; or
5. A bay window with a depth of no less than two feet; or
6. An alley-loaded garage; or
7. A front-loaded garage door, the width of which occupies less than 50 percent of the area of the front façade; or
8. A design in which no exterior front street-facing wall has a continuous plane of more than eight feet without an opening such as a window or door or a projection, offset, or recess at least one foot in depth; or
9. Stone or brick cladding accounts for no less than 25 percent of the cladding of ground floor front street-facing facades, excluding windows, doors, and garages; or
10. A two-story front elevation; or
11. Shutters, lintels, sills, awnings, decorative trim or similar architectural treatments on front street-facing windows and doors; or
12. Ornamental architectural elements such as medallions, keystones, or quatrefoils, and decorative vent covers; or
13. Decorative eave treatments such as cornice moldings, modillions, corbels, and outlookers; or
14. 8-foot tall front door; or
15. Juliet balcony.

C. **Pedestrian Access.** Where 50 percent or more of the single-unit homes on the same blockface have a direct path from the main pedestrian entrance to the public sidewalk, new homes shall also provide such a path. In such circumstances the driveway shall not satisfy this requirement.

D. **Driveway Design.** Where 50 percent or more of the lots on the same blockface have a driveway design with a landscaped strip in the center (commonly known as ribbon drives or Hollywood drives), new driveways shall also include a central landscape strip.

E. **Driveway Paving.** The entire length of the driveway, from the street to the garage or carport, shall be paved. The minimum width of the paved area shall equal the width [of] the garage door, however central landscaped strips (commonly known as ribbon drives or Hollywood drives) may be provided.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 6, eff. 10-21-16; Am. Ord. 2017-33, § 4, eff. 7-30-17; Am. Ord. 2018-25, § 6, eff. 6-11-18; Am. Ord. 2018-66, § 5, eff. 1-18-19; Am. Ord. 2025-024, § 12, eff. 7-27-25).

SEC. 15-905. FAÇADE DESIGN DEVELOPMENT STANDARDS.

A. **Façade Alignment.**

1. **Vertical Alignment.** With the exception of mansard roofs, cornices, and other such features, façades shall be oriented vertically and shall have no slope.

2. **Horizontal Alignment.** With the exception of bay windows and similar features, facades that are located within 50 feet of a public street shall run parallel or perpendicular to said street.

B. **Façade Compatibility for Developed Blocks.** Where 50 percent or more of the lots on the same blockface have been improved with buildings, the following standards shall apply. Compliance shall be determined at the discretion of the Review Authority.

1. **Building Materials and Finishes.** Cladding and trim materials and finishes shall be similar to adjacent homes.

2. **Windows.** The size, location, and proportions of windows shall be similar to adjacent homes.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-906. DUPLEX AND MULTI-UNIT RESIDENTIAL STANDARDS.

When Duplex and Multi-Unit Residential uses are identified in Table 15-902 as permitted with a Conditional Use Permit, the following standards shall apply:

A. **Neighborhood Meeting.** Prior to submittal of the project application, the applicant shall conduct a Neighborhood Meeting as put forth in Section 15-5006.

B. **Review Authority.** The Planning Commission shall approve, conditionally approve, or deny applications for Conditional Use Permits following a public hearing.

C. **Public Notice.** Prior to consideration of the Conditional Use Permit, Public Notice shall be provided per Section 15-5007.

D. **Property Development Standards.** The standards of the RM-1 District shall apply, except as follows:

1. **Density.** Residential density shall be measured as put forth in Section 15-310-B.

   a. **Minimum.** Five units per acre.

   b. **Maximum.** Twelve units per acre.

2. **Front Setback.** Where adjacent sites have been improved with buildings, the front setback for new structures shall match the front setbacks of those buildings as determined by the Review Authority.

3. **Façade Compatibility.**

   a. **Building Materials and Finishes.** Cladding and trim materials and finishes shall be similar to adjacent single-unit homes.

b. **Windows.** The size, location, and proportions of windows shall be similar to adjacent single-unit homes.

4. **Other Standards.** When the Review Authority determines that a development standard of the RS-5 District would provide for better compatibility with adjacent single-unit homes than the corresponding RM-1 standard, the RS-5 standard shall apply.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 13, eff. 7-27-25).

ARTICLE 10 RESIDENTIAL MULTI-UNIT DISTRICTS (RM)*

Sec. 15-1001. Purpose.
Sec. 15-1002. Use Regulations.
Sec. 15-1003. Density and Massing Development Standards.
Sec. 15-1004. Site Design Development Standards.
Sec. 15-1005. Façade Design Development Standards.

SEC. 15-1001. PURPOSE.

The purposes of the Residential Multi-Unit (RM) Districts are to:

A. Provide for a variety of multi-unit housing types for individual lifestyles and space needs, and to ensure continued availability of a full range of affordable housing opportunities necessary to sustain a diverse labor force, consistent with the City's economic development and housing objectives of the General Plan.

B. Provide opportunities for the development of higher-density and affordable housing in neighborhoods throughout the city.

C. Preserve, protect, and enhance the character of the city's medium and high-density neighborhoods.

D. Promote development of walkable, transit-supported neighborhoods.

E. Ensure that the scale and design of new development and alterations to existing structures are compatible with the scale, mass, and character of their neighborhoods.

F. Ensure adequate light, air, privacy, and outdoor living area for each dwelling.

G. Ensure the provision of services and facilities needed to accommodate planned population densities and to achieve complete neighborhoods in the city's existing and future residential areas in accordance with the General Plan.

H. Provide for appropriate densities within the ranges established in the General Plan.

I. Protect the quality of the residential environment and secure the health, safety, and general welfare of the residents.

J. Implement and provide appropriate regulations for General Plan classifications of "Medium High Density Residential," "Urban Neighborhood Density Residential," and "High Density Residential."

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 15, eff. 7-27-25).

***Editor's note—**Am. Ord. 2025-024, § 14, effective July 27, 2025, amended the title of Art. 10 to read as herein set out. The former Art. 10 title pertained to Residential Multi-Family Districts (RM).

SEC. 15-1002. USE REGULATIONS.

A. Table 15-1002 prescribes the proposed land use regulations for Residential Multi-Unit Districts. The regulations for the districts are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-1002: USE REGULATIONS—RESIDENTIAL MULTI-UNIT DISTRICTS

Use Classifications	*RM-1*	*RM-2*	*RM-3*	*RM-MH*	*Additional Regulations*
Residential Use Classifications					
Residential Housing Types					
Single-Unit Dwelling, Detached	P(2)	-	-	-	§ 15-2738, Manufactured Homes; § 15-2754, Second/Accessory Dwelling Units (ADUs)
Single-Unit Dwelling, Attached	P	P	-	-	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Duplex	P	P	P	-	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Multi-Unit Residential	P	P	P	-	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Cottage Housing Development	P	-	-	-	§ 15-2723, Cottage Housing Developments (Pocket Neighborhoods)
Adult Family Day Care					
Small (6 clients or less)	P	P	P	P	
Large (7 to 12 clients)	C	C	C	-	
Caretaker Residence	-	-	-	P	
Domestic Violence Shelter					
Small (6 persons or less)	P	P	P	-	
Large (7 persons or more)	P	P	P	-	

TABLE 15-1002: USE REGULATIONS—RESIDENTIAL MULTI-UNIT DISTRICTS					
Use Classifications	*RM-1*	*RM-2*	*RM-3*	*RM-MH*	*Additional Regulations*
Elderly and Long-Term Care	C	C	C	-	
Family Day Care					
Small (8 children or less)	P	P	P	P	§ 15-2725, Day Care Centers and Family Child Care Homes
Large (9 to 14 children)	C	C	C	C	
Group Residential					
Small (6 persons or less)	P	P	P	-	
Large (7 persons or more)	C	C	C	-	
Mobile Home Parks	-	-	-	P	§ 15-2738, Manufactured Homes
Re-Entry Facility	C	C	C	-	
Residential Care Facilities					
Residential Care, General	C	P	P	-	
Residential Care, Limited	P	P	P	-	
Residential Care, Senior	C	P	P	-	
Single Room Occupancy	-	C	C	-	§ 15-2757, Single Room Occupancy Hotels and Boarding Homes
Public and Semi-Public Use Classifications					
Colleges and Trade Schools, Public or Private	C(1)	C(1)	C(1)	-	
Community and Religious Assembly (less than 2,000 square feet)	P	P	P	P	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	C(1)	C(1)	C(1)	-	
Community Garden	P	P	P	P	§ 15-2720, Community Gardens/Urban Farms
Cultural Institutions	C	P	P	-	
Day Care Centers	C	P	P	-	§ 15-2725, Day Care Centers and Family Child Care Homes
Park and Recreation Facilities, Public	P	P	P	P	
Public Safety Facilities	C	C	C	C	
Schools, Public or Private	P	P	P	P	
Social Service Facilities	C	C	C	-	
Commercial Use Classifications					
Corner Commercial	P	P	P	P	§ 15-2722, Corner Commercial
Food and Beverage Sales					
Farmer's Markets	P	P	P	P	§ 15-2730, Farmer's Markets
General Market	-	-	-	P(3)	§ 15-2744, Outdoor Dining and Patio Areas; § 15-2745, Outdoor Retail Sales
Healthy Food Grocer	-	-	-	P(3)	
Lodging					
Bed and Breakfast	P	P	P	P	§ 15-2713, Bed and Breakfast Lodging
Industrial Use Classifications					
Warehousing, Storage, and Distribution					
Personal Storage	C	C	C	C	§ 15-2747, Personal (Mini) Storage

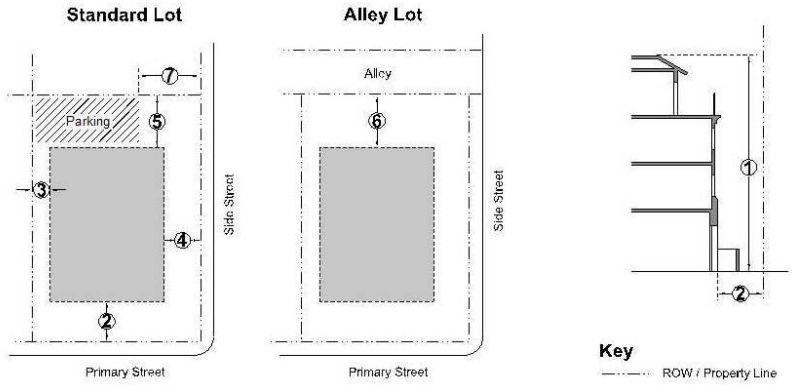
TABLE 15-1002: USE REGULATIONS—RESIDENTIAL MULTI-UNIT DISTRICTS					
Use Classifications	*RM-1*	*RM-2*	*RM-3*	*RM-MH*	*Additional Regulations*
Transportation, Communication, and Utilities Use Classifications					
Communication Facilities					
Antenna and Transmission Towers	See § 15-2759, Telecommunications and Wireless Facilities				
Utilities, Minor	P	P	P	P	
Agricultural and Extractive Use Classifications					
Agricultural Labor Housing	P	P	P	P	
Crop Cultivation	P	P	P	P	§ 15-2716, Crop Cultivation
Produce Stand	P	P	P	P	§ 15-2752, Roadside Fruit Stands/Grower Stands
Urban Farm	P	P	P	P	§ 15-2720, Community Gardens/Urban Farms
Other Applicable Types					
Accessory Uses and Structures	§ 15-2703, Accessory Uses				
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping				
Home Occupations	§ 15-2735, Home Occupations				
Animal Keeping	§ 15-2707, Animal Keeping				
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots				
Temporary Use	§ 15-2760, Temporary Uses				
Transitional and Supportive Housing	§ 15-2762, Transitional and Supportive Housing				
Specific Limitations: 1. Only on parcels with direct access from a major street. 2. Development Standards for the RS-5 District shall apply. 3. Limited to sites that are a minimum of five acres and 1,500 square feet of sales area.					

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 7, eff. 10-21-16; Am. Ord. 2018-25, § 7, eff. 6-11-18; Am. Ord. 2018-66, § 6, eff. 1-18-19; Am. Ord. 2025-024, § 16, eff. 7-27-25).

SEC. 15-1003. DENSITY AND MASSING DEVELOPMENT STANDARDS.

Table 15-1003 prescribes the density and massing development standards for the Residential Multi-Unit Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of this Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

TABLE 15-1003: DENSITY AND MASSING STANDARDS—RESIDENTIAL MULTI-UNIT DISTRICTS
DISTRICTS



District	RM-1	RM-2	RM-3	RM-MH	Additional Regulations	#
Maximum Density (du/ac) (min./max.)	12/16	16/30	30/45	8/16	§ 15-310, Determining Residential Density	
Maximum Height (ft.)	40	50	60	35	§ 15-2012, Heights and Height Exceptions, 15-1003-A, RS Transition Standards	①
Setbacks (ft.)						
Front (min./max.)	10/20(1)	10/20(1)	10/20(1)	10/20(1)	§ 15-313, Determining Setbacks and Yards § 15-1004-A, RS Transition Standards § 15-1004-B, Side Setbacks for Attached Dwellings § 15-1004-C, Parking Setback § 15-2014, Projections/ Encroachments into Yards § 15-2305, Areas to be Landscaped	②
Interior Side (min.)	10 total, min. 4/side	5	5	5		③
Street Side (min.) (Parcel <125 ft. in depth)	10	10	10	10		④
Street Side (min.) (Parcel >125 ft. in depth)	15	15	15	15		④
Rear (min.)	20	15	15	10		⑤
Alley (min.)	3	3	3	3		⑥
Parking, from back of sidewalk or curb (min.)	30	30	30	30		⑦
Minimum Frontage Coverage (%)	50(1)	50(1)	50(1)	-	§ 15-317, Determining Frontage Coverage	
Maximum Lot Coverage (% of lot)	50	50	60	50	§ 15-311, Determining Lot Coverage	
Minimum On-Site Open Space (% of Lot Area)	20	15	10	-		

Specific Limitations:
1. Not applicable outside of the Priority Areas (see Figure IM-1: Priority Areas for Development Incentives in the Fresno General Plan, adopted in 2014).

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 5, eff. 7-30-17; Am. Ord. 2025-024, § 17, eff. 7-27-25).

SEC. 15-1004. SITE DESIGN DEVELOPMENT STANDARDS.

A. **RS Transition Standards.** Where an RM district abuts an RS District, the following standards apply:

1. **Height.** The maximum height within 40 feet of an RS District is limited to 30 feet. The maximum height within 50 feet of an RS District is 40 feet.

2. **Setbacks.** The following additional setback requirements shall be applied to all structures, including accessory structures, on parcels which are adjacent to an RS District:

   a. **Front.** The minimum front setback requirement of the adjacent RS district shall be applied to all structures within 50 feet of the RS District.

   b. **Interior Side.** The interior side setback shall be 10 feet.

   c. **Rear.** The rear setback shall be 20 feet.

3. **Landscape.** See Table 15-2305-C.1, Required Landscape Buffers.

4. **Screening.** When a multi-story building is proposed and the second story or above is located within 50 feet of the side or rear yard of a single-unit lot, screening measures shall be applied to provide a reasonable degree of privacy.

   a. **Screening measures.** Screening measures include, but are not limited to, landscaping, alternate window and balcony placements, placing windows at least six feet from the floor of the interior of the unit, incorporating wing walls or louvers, using glass block or other translucent material, and other such methods.

   b. **Sufficiency of Screening.** The Review Authority shall determine the sufficiency of the proposed screening measures and may require additional measures.

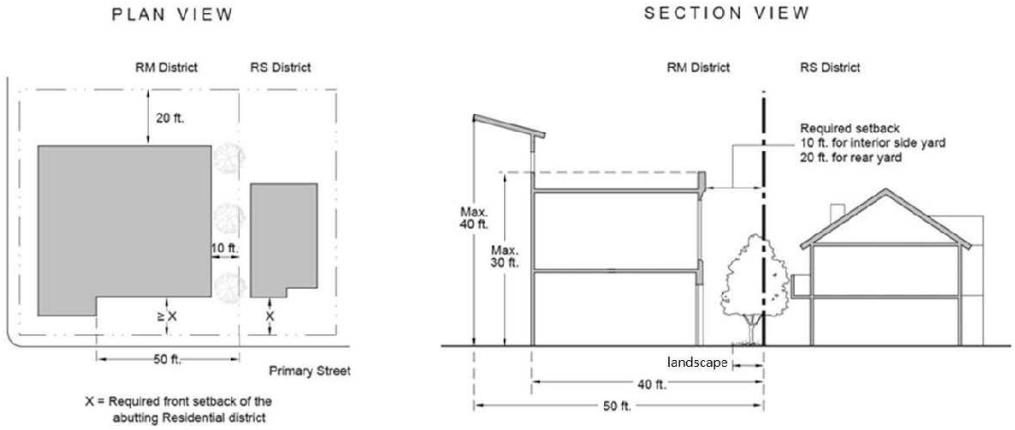


FIGURE 15-1004-A: RS TRANSITION STANDARDS—RM DISTRICTS

B. **Additional Setback Standards.**

1. **Side Setbacks for Attached Dwellings.** Required side setbacks shall apply only to the ends of rows of attached dwellings, and shall not be required between attached dwellings.

2. **Rear Setback Reduction.** Rear setbacks may be reduced if all of the following conditions are met:

   a. A site plan shall be submitted in accordance with the provisions of Article 52 Development Permit;

   b. The rear setback shall be greater than or equal to the required interior side setback for the Base District;

   c. Space equal to the reduction shall be provided elsewhere on the lot, exclusive of any required yard area. Said replacement space shall have minimum dimensions of five feet by eight feet, and shall be so located that it is suitable for general use by the occupant of the premises; and

   d. The Review Authority shall find that the granting of the reduction will not be materially detrimental to the public welfare or injurious to property and improvements in the area in which the property is located and will not be contrary to the objectives of this Code.

   e. Such a reduction would not conflict with the provisions of Section 15-1004-A, RS Transition Standards.

C. **Parking Setback.** Parking shall be setback as shown on Table 15-1003 except as provided below:

1. **Surface Parking.**

   a. Surface parking which is located behind a building shall not be subject to the parking setback requirement.

   b. On lots less than 150 feet in width or depth, surface parking may be set back less than the distance shown on Table 15-1003, if the following conditions are met:

      i. Such parking shall not be set back from the street less than adjacent buildings on the site.

      ii. The parking setback area shall be landscaped.

      iii. There shall be no more than four adjacent parking spaces in surface parking areas located less than 30 feet from a street-facing lot line. The space between groups of four adjacent parking spaces shall be equal in width to the adjacent parking spaces and shall be landscaped.

      iv. Parking spaces shall be screened from the adjacent street with a minimum three foot berm, wall, or hedge, or combination thereof.

   c. If a sound wall is required along a certain frontage, or if other circumstances exist that render the Parking Setback impractical or unnecessary, the Review Authority may waive the Parking Setback requirement.

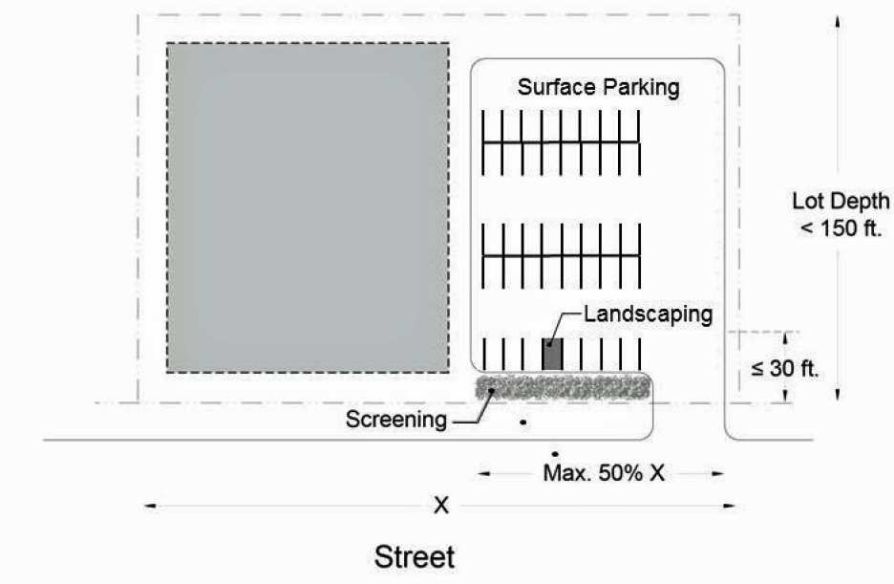


FIGURE 15-1004-C.1: SURFACE PARKING SETBACK REDUCTION

2. **Partially Submerged Podium Parking.** Parking that is partially below the street grade may extend to the setbacks of the main structure, if the following conditions are met:

   a. No more than six feet of the partially submerged parking podium may extend above the street grade.

   b. The partially submerged parking podium shall be screened along street facing elevations by foundation plant materials. Gates need not be screened.

3. **Underground Parking.** Parking that is fully underground and below the street grade may extend from lot line to lot line.

D. **On-Site Open Space.**

1. **Minimum Open Space Required.** The minimum amount of on-site open space required shall be based on the size of the lot, as shown in Table 15-1003. This requirement may be met through a combination of private open space, common open space, or public plazas as follows:

   a. **Private Open Space Requirements.** Private open spaces are those which are attached to a dwelling unit and are available only for the private use of the residents of the dwelling unit, such as balconies, porches, and patios. No fewer than 50 percent of the dwelling units on a site shall have a private open space. The following standards shall apply to private open space:

      i. The minimum dimension of any private open space shall be four feet.

      ii. The minimum area of any private open space shall be 32 square feet.

iii. When located within 30 feet of a public street and located on the ground floor, private open spaces shall be designed as a porch.

iv. When located within 30 feet of a public street and located above the ground floor, private open spaces shall be designed as a balcony.

b. **Common Open Space Requirements.** Common open spaces are those which are available for active or passive use by all tenants, but use by the general public may be restricted. To the extent that common open space is provided, the following standards shall apply:

i. The minimum dimension of any common open space shall be 20 feet.

ii. The minimum area of any common open space shall be 1,000 square feet. The calculation of the common open space area shall exclude structures which are unusable as open space, but shall include structures that enhance its usability, such as swimming pools, changing facilities, fountains, planters, benches, and landscaping.

iii. Not less than 80 percent of common open space shall be unobstructed to the sky. Trellises, pergolas, and similar structures shall be considered open to the sky for the purposes of this measurement.

iv. Common open space may be located at grade, on rooftops, on top of parking podiums, or any other such location that is accessible to tenants. Common open space may not be located within required front setbacks or RS buffer setbacks.

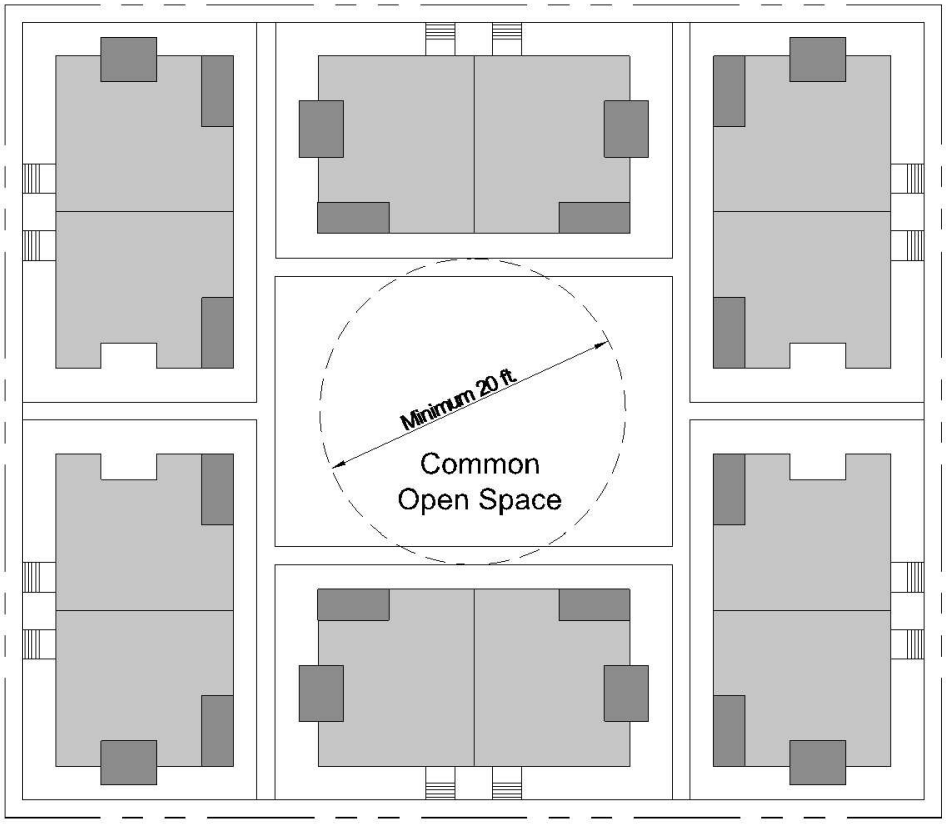


FIGURE 15-1004-D.1.b: MINIMUM REQUIRED COMMON OPEN SPACE DIMENSION

c. **Public Plaza Requirements.** Public plazas are those which are available for use by the general public, as well as tenants of the project. To the extent that public plazas are provided, the following standards shall apply:

i. The minimum dimension of any public plaza shall be 20 feet.

ii. The minimum area of any public plaza shall be 500 square feet. The calculation of the public plaza area shall exclude structures which are unusable as open space, but shall include structures that enhance its usability, such as fountains, planters, benches, and landscaping.

iii. Public plazas shall include benches or other seating, and paving shall be of high-quality materials. Amenities provided shall enhance the comfort, aesthetics, or usability of the space and include, but not be limited to, trees and other landscaping, shade structures, drinking fountains, water features, public art, or performance areas. Landscaping or other aspects of the design shall not discourage the use of the space by the general public.

iv. Public plazas shall be fully accessible from the public right-of-way, shall be located in front of project buildings and shall not be located where public views into the space are obstructed by buildings or other structures.

v. Public plazas may be located within required front setbacks.

vi. A public access covenant shall be provided for the space.

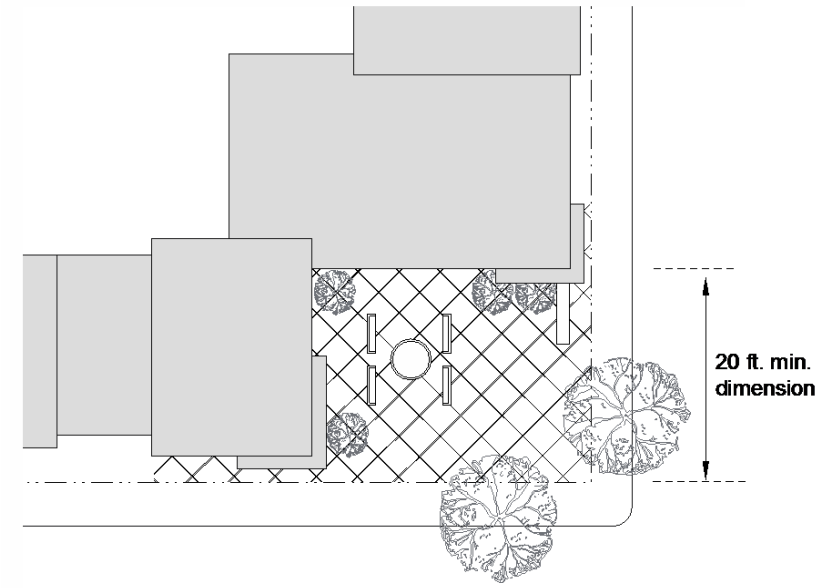


FIGURE 15-1004-D.1.c: MINIMUM REQUIRED PUBLIC PLAZA DIMENSION

2. **Minimum Open Space Reduction.** The minimum amount of open space required shall be reduced by 25 percent in any one of the following circumstances:

a. Any portion of the lot is located within a quarter mile of a transit stop with regular, scheduled service during the weekday hours of 7:00 a.m. to 9:00 a.m. and 5:00 p.m. to 7:00 p.m.

b. There is a public park within 400 feet of the site, and

i. Said park is located on the same side of the street and provides an improved pedestrian path to and from the site; or

ii. The public park is across a local street and the site provides an improved pedestrian path to and from the site.

c. The parcel is 15,000 square feet or less in area.

E. **Pedestrian Access.** Pedestrian access to public streets shall be provided at the preference of the applicant by either the Flexibility Option or the Certainty Option as follows:

1. **Flexibility Option.** The applicant must demonstrate to the satisfaction of the Review Authority that the project meets the following goal:
   a. Provide sufficient opportunities for residents to walk to nearby amenities, services, and transit facilities.
2. **Certainty Option.** Projects which comply with the following standards shall be considered to provide sufficient pedestrian access:
   a. **Common Area Sidewalk Connections.** Common entrances into lobbies or internal pedestrian paths shall be provided at the rates prescribed below. When providing access to a structure, such entrances shall be protected by a portico, canopy, or alcove of no less than four feet in depth.
      i. In the Priority Areas (see Figure IM-1: Priority Areas for Development Incentives in the Fresno General Plan, adopted in 2014). No less than one per 400 feet of linear street frontage.
      ii. Outside of the Priority Areas. No less than one per 600 feet of linear street frontage.
   b. **Residential Unit Sidewalk Connections.** Direct entrances into individual ground-floor dwelling units which are adjacent to streets shall be provided at the rates prescribed below. Such entrances shall be protected by a portico, canopy, or alcove of no less than four feet in depth.
      i. In the Priority Areas. No less than one per 100 feet of linear street frontage.
      ii. Outside of the Priority Areas. None required.
   c. **External Connections to Adjacent Development.** Pedestrian walkways shall connect the project site to adjacent Commercial, Mixed-Use, and Office districts at a frequency of no less than one per 600 feet. Projects may be excepted from this requirement in the following situations:
      i. An interconnected street network with short blocks and sidewalks exists in the surrounding area; or
      ii. The project site is less than one acre in size; or
      iii. The adjacent properties are developed and there are no possible connection points.
   d. If the project is located within an area with adopted design guidelines, all applicable guidelines which relate to pedestrian access and the location of doors and entrances shall also be followed.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-1, § 1, eff. 3-14-16; Am. Ord. 2016-32, §§ 8, 9, eff. 10-21-16; Am. Ord. 2017-33, § 7, eff. 7-30-17; Am. Ord. 2018-66, § 7, eff. 1-18-19; Am. Ord. 2025-024, § 18, eff. 7-27-25).

SEC. 15-1005. FAÇADE DESIGN DEVELOPMENT STANDARDS.

Appropriate façade design shall be provided at the preference of the applicant by either the Flexibility Option or the Certainty Option as follows:

A. **Flexibility Option.** The applicant must demonstrate to the satisfaction of the Review Authority that the project meets the following goals:

1. Present an attractive appearance to public streets.
2. Be aesthetically and functionally compatible to the nearby development context.
3. Demonstrate a high level of quality.
4. Support the growth in value of surrounding properties,

B. **Certainty Option.** Street-facing façades for buildings adjacent to a public street shall comply to the following standards. Other façades shall not be subject to these standards.

1. **Building Length Articulation.** At least one projection or recess will be provided for every 50 horizontal feet of wall in one of the following manners:
   a. Projections or recesses for buildings 50 feet wide or less shall be exempted from the building length articulation requirement; projections or recesses for buildings greater than 50 feet in width but less than 100 feet in width shall be no less than 12 inches in depth; or projections or recesses for buildings 100 feet wide or wider shall be no less than 24 inches in depth.
   b. The depth and width of the projection or recess shall be proportionate to the overall mass of the building.
2. **Building Materials and Finishes.** Materials shall present a durable and attractive appearance through high-quality materials, finishes, and workmanship defined as:
   a. At least two cladding materials (excluding roof and foundation); and
   b. At least three exterior colors (each cladding material shall count as a color, trim/accent colors shall each count as a color, and visually significant colors for doors, balconies, and similar elements may count as a color).
   c. Exception: Buildings which accurately adhere to a recognized architectural style which is appropriately expressed in one cladding material and one color shall be excepted.
   d. Exception: Buildings with all of the following characteristics shall be allowed to use one cladding material:
      i. Building height of 3 stories or less;
      ii. Building width of 100 feet or less; and
      iii. A façade with a comparable form of visual interest.

3. **Window Design.**

   a. **Glazing Ratio.** Street-facing façades of each floor of the building shall have an overall wall composition of at least 25 percent glazing, but not more than 70 percent glazing.

   b. **Vertical Proportion.**, On upper stories, the percentage of all window openings, window panes, or distinct window units specified below shall have a vertical proportion, in which their height exceeds their width by 25 percent or more.

      i. In the Priority Areas (see Figure IM-1: Priority Areas for Development Incentives in the Fresno General Plan, adopted in 2014). At least 50 percent.

      ii. Outside of the Priority Areas. At least 30 percent,

   c. **Window Depth.** In the Priority Areas, windows shall create visual interest and the appearance of depth in one of the following manners:

      i. Trim at least one inch in depth and three inches wide must be provided around all upper story windows and non-commercial ground-floor windows;

      ii. Windows must be recessed at least two inches from the plane of the surrounding exterior wall {for double-hung and horizontal sliding windows, at least one sash shall achieve the two-inch recess); or

      iii. Decorative plaster screed, minimum 2 inches wide;

      iv. Exception: Buildings with all of the following characteristics shall be allowed to use flush windows without trim:

         (1) Building height of 3 stories or less;

         (2) Building width of 100 feet or less; and

         (3) A façade with a comparable form of prominent surface relief and articulation, such as awnings, canopies, balconies, or massing changes.

4. **Façade Alignment.**

   a. In the Priority Areas. Façade alignment shall be as follows;

      i. **Vertical Alignment.** With the exception of mansard roofs, cornices, and other such features, façades shall be oriented vertically and shall have no slope,

      ii. **Horizontal Alignment.** With the exception of bay windows and similar features, façades shall run parallel or perpendicular to the adjacent street,

   b. Outside of the Priority Areas. No requirement.

5. **External Stairs, Corridors, and Hallways.** In the Priority Areas, external stairs, corridors, and hallways that are located within 30 feet of a public street must be architecturally integrated into the building design.

6. **Balconies.** If balconies are provided, they shall not be grouped together into a continuous band across the façade. No more than two balconies shall be contiguous. Each balcony or group of two contiguous balconies shall be distinct and shall have at least six feet of horizontal separation from any other balcony,
7. **Façade Elements.** Development shall incorporate façade elements as follows;
   a. In the Priority Areas. A minimum of one of the following Façade Elements will be incorporated into street-facing building façades:
      i. Forecourts
      ii. Bay Windows
      iii. Balconies
      iv. Porches
      v. Stoops
      vi. Arcades
   b. Outside of the Priority Areas. No requirement.
8. If the project is located within an area with adopted design guidelines, all applicable guidelines which relate to façade design shall also be followed.

(Added Ord. 2016-1, § 1, eff. 3-14-16).

ARTICLE 11 MIXED-USE DISTRICTS (MX)

Sec. 15-1101. Purpose.
Sec. 15-1102. Use Regulations.
Sec. 15-1103. Density, Intensity, and Massing Development Standards.
Sec. 15-1104. Site Design Development Standards.
Sec. 15-1105. Façade Design Development Standards.
Sec. 15-1106. Reserved.

SEC. 15-1101. PURPOSE.

The purposes of the Mixed-Use (MX) Districts are to:

A. Promote pedestrian-oriented infill development, intensification, and reuse of land consistent with the General Plan.

B. Allow and encourage the development of mixed-use centers and corridors with a vibrant concentration of goods and services, multi-unit housing, and community gathering and public spaces at strategic locations.

C. Transform certain auto-oriented boulevards and corridors into vibrant, diverse, and attractive corridors that support a mix of pedestrian-oriented retail, office, and residential uses in order to achieve an active social environment within a revitalized streetscape.

D. Provide options which reduce the need for private automobile use to access shopping, services, and employment and minimize air pollution from vehicle miles traveled.

E. Offer additional housing opportunities for residents seeking to live in an urban environment.

F. Improve access to a greater range of facilities and services for surrounding residential neighborhoods.

G. Establish development and design standards for these centers and corridors that will create a unified, distinctive, and attractive urban character, with appropriate transitions to adjacent residential neighborhoods.

H. Facilitate mixed-use residential development at increased densities and intensities in key locations such as along Bus Rapid Transit (BRT) corridors. Implement and provide appropriate regulations for General Plan classifications of "Neighborhood Mixed-Use," "Corridor/Center Mixed-Use," and "Regional Mixed-Use."

Additional purposes of each Mixed-Use District are as follows:

NMX Neighborhood Mixed-Use. The NMX district is intended to provide for mixed-use residential districts that include local-serving, pedestrian-oriented commercial development, such as smaller independent retail shops and professional offices in two-to three-story buildings. Development is expected to include ground-floor neighborhood retail uses and upper-level housing or offices, with a mix of small lot single-unit houses, townhomes, and multi-unit dwelling units on side streets, in a horizontal or vertical mixed-use orientation.

The NMX district provides for a scale and character of development that is pedestrian-orientated, designed to attract and promote a walk-in clientele, with small lots and frequent pedestrian connections permitting convenient access from residences to commercial space.

CMX Corridor/Center Mixed-Use. The CMX district is intended to allow for either horizontal or vertical mixed-use development along key circulation corridors in the city where height and density can be easily accommodated. Ground-floor retail and upper-floor residential or offices are the primary uses, with residential uses, personal and business services, and public and institutional space as supportive uses. Development will facilitate the transformation of existing transportation corridors into vibrant, highly walkable areas with broad, pedestrian-friendly sidewalks, trees, landscaping, and local-serving uses with new buildings that step down in relationship to the scale and character of adjacent neighborhoods.

RMX Regional Mixed-Use. The RMX district is intended to support regional retail and mixed-use development in large-scale activity centers outside of Downtown, as identified by the General Plan. It accommodates urban-scale mixed-use development that serve residents and businesses of the region at large. Medium-scale retail, housing, office, civic and entertainment uses, and shopping malls with large-format or "big-box" retail are allowed, as are supporting uses such as gas stations, hotels, and residential in mixed-use or single-use buildings. Development and design standards will create a pedestrian orientation within centers and along major corridors, with parking located on the side or rear of, or within, major structures.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 19, eff. 7-27-25).

SEC. 15-1102. USE REGULATIONS.

A. Table 15-1102 prescribes the proposed land use regulations for Mixed-Use Districts. The regulations for the districts are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

Uses listed as "P" or "C" may be restricted in certain locations by Section 15-1104-A.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-1102: USE REGULATIONS—MIXED-USE DISTRICTS

Use Classifications	*NMX*	*CMX*	*RMX*	*Additional Regulations*
Residential Use Classifications				
Residential Housing Types				
Single-Unit Dwelling, Attached	P(1)	P(1)	P(1)	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Multi-Unit Residential	P(1)	P(1)	P(1)	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Adult Family Day Care				
Small (6 clients or less)	P(1)	P(1)	-	
Large (7 to 12 clients)	P(1)	-	-	
Caretaker Residence	P(1)	P(1)	P(1)	
Domestic Violence Shelter				
Small (6 persons or less)	P(1)	P(1)	P(1)	
Large (7 persons or more)	P(1)	P(1)	P(1)	
Elderly and Long-Term Care	P(1)	P(1)	P(1)	
Family Day Care				
Small (8 or fewer children)	P(1)	P(1)	P(1)	§ 15-2725, Day Care Centers and Family Child Care Homes
Large (9 to 14 children)	P(1)	P(1)	P(1)	
Group Residential				
Small (6 persons or less)	P(1)	P(1)	P(1)	
Large (7 persons or more)	P(1)	P(1)	P(1)	
Lodging-to-Dwelling Conversion	C	C	C	§ 15-2737.5 Lodging-to-Dwelling Conversion Requirements
Residential Care Facilities				
Residential Care, Limited	P(1)	P(1)	P(1)	
Residential Care, Senior	P(1)	P(1)	P(1)	
Single Room Occupancy	C	C	C	
Public and Semi-Public Use Classifications				
Colleges and Trade Schools, Public or Private	C	C	C (3)	
Community and Religious Assembly (less than 2,000 square feet)	P	P	P	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	P	P	P	
Community Garden	P	P	P	§ 15-2720, Community Gardens/Urban Farms
Conference/Convention Facility	C	C	C	
Cultural Institutions	P	P	P	
Day Care Centers	P	P	P	§ 15-2725, Day Care Centers and Family Child Care Homes
Emergency Shelter	-	-	P	§ 15-2729, Emergency Shelters

TABLE 15-1102: USE REGULATIONS—MIXED-USE DISTRICTS				
Use Classifications	*NMX*	*CMX*	*RMX*	*Additional Regulations*
Government Offices	P(1)	P(1)	P(1)	
Hospitals and Clinics				
Hospital	-	C(11)	C(11)	
Clinic	P	P	P	
Substance Abuse Treatment Clinic	C(14)	C(14)	C(14)	
Instructional Services	P	P	P	
Park and Recreation Facilities, Public	P	P	P	
Parking, Public or Private	-	C(6)	C(6)	
Public Safety Facilities	C	C	C	
Schools, Public or Private	P	P	P	
Social Service Facilities	P(1)	P(1)	P(1)	
Commercial Use Classifications				
Animal Care, Sales and Services				
Grooming and Pet Stores	P	P	P	
Veterinary Services	-	C(7)	C(7)	
Artist's Studio	P	P	P	
Automobile/Vehicle Sales and Services				
Automobile/Vehicle Sales and Leasing	C(18)	C(13)	C(13)	§ 15-2709, Automobile and Motorcycle Retail Sales and Leasing
Automobile Rentals	C(12)(19)	C(12)	C(12)	
Automobile/Vehicle Repair, Major	C(12)(19)	C(12)	C(12)	
Automobile/Vehicle Service and Repair, Minor	C(12)(19)	C(12)	C(12)	
Automobile Washing	C(12)(19)	C(12)	C(12)	
Service Station	C	C	C	§ 15-2755, Service Stations
Banks and Financial Institutions				
Banks and Credit Unions	P	P	P	
Check Cashing Businesses and Payday Lenders	-	-	-	§ 15-2715, Check Cashing Businesses, Payday Lenders, and Similar Financial Services
Banquet Hall	C	C	C	§ 15-2712, Banquet Hall
Business Services	P	P	P	
Eating and Drinking Establishments				
Bars/Nightclubs/Lounges	C	C	C	§ 15-2743, Outdoor Cooking for Commercial Purposes; § 15-2744, Outdoor Dining and Patio Areas; § 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges
Restaurant with Alcohol Sales	C	C	C	
Restaurant without Alcohol Sales	P	P	P	
Entertainment and Recreation				
Cinema/Theaters	P	P	P	
Cyber/Internet Cafe	C	C	C	§ 15-2724, Cyber/Internet Cafes
Small-Scale	P	P	P	§ 15-2708, Arcades, Video Games, and Family Entertainment Centers, § 9-1801, Billiard Rooms
Food and Beverage Sales				
Farmer's Markets	P	P	P	§ 15-2730, Farmer's Markets
General Market	P	P	P	§ 15-2744, Outdoor Dining and Patio Areas; § 15-2745, Outdoor Retail Sales
Healthy Food Grocer	P	P	P	

TABLE 15-1102: USE REGULATIONS—MIXED-USE DISTRICTS				
Use Classifications	*NMX*	*CMX*	*RMX*	*Additional Regulations*
Liquor Stores	C(12)	C(12)	C(12)	§ 15-2707, Alcohol Sales; § 15-2745, Outdoor Retail Sales
Food Preparation	P(1)	P(1)	P(1)	
Funeral Parlors and Internment Services	P(1)	P(1)	P(1)	§ 15-2714, Body Preparation and Funeral Services
Live/Work	P	P	P	
Lodging				
Bed and Breakfast	P	P	P	
Hotels and Motels	P(8)	P(8)	P	
Maintenance and Repair Services	P	P	P	
Offices				
Business and Professional	P	P	P	
Medical and Dental	P	P	P	
Walk-in Clientele	P	P	P	
Personal Services				
General Personal Services	P(5)	P	P	
Tattoo or Body Modification Parlor	P(5)(12)	P(12)	P(12)	§ 15-2758, Tattoo or Body Modification Parlor
Retail Sales				
Building Materials and Services	-	-	C	§ 15-2745, Outdoor Retail Sales
Convenience Retail	P	P	P	§ 15-2745, Outdoor Retail Sales; 15-2761 Tobacco and Vapor Shops
General Retail	P	P	P	§ 15-2733, Hobby Stores; § 15-2745, Outdoor Retail Sales
Large-Format Retail	P	P	P	§ 15-2737, Large-Format Retail; § 15-2745, Outdoor Retail Sales
Nurseries and Garden Centers	P	P	P	§ 15-2745, Outdoor Retail Sales
Second Hand/Thrift Stores	P	P	P	
Swap Meet/Flea Market	C	C	C	§ 15-2730, Flea Markets
Industrial Use Classifications				
Custom Manufacturing	P(12)(19)	P(12)	P(12)	
Limited Industrial	C(13)(18)(19)	C(13)	C(13)	
Recycling Facility				
Reverse Vending Machine	P	P	P	§ 15-2750, Recycling Facilities
Warehousing, Storage, and Distribution				
Personal Storage	C	C	C	§ 15-2747, Personal (Mini) Storage
Transportation, Communication, and Utilities Use Classifications				
Airports and Heliports	-	-	C(10)	
Communication Facilities				
Antenna and Transmission Towers	See Section 15-2759, Telecommunications and Wireless Facilities			
Transportation Passenger Terminals	-	-	C	
Utilities, Minor	P	P	P	
Agricultural and Extractive Use Classifications				
Produce Stand	P	P	P	§ 15-2752, Roadside Fruit Stands/Grower Stands
Tasting Room	C	C	C	
Urban Farm	P	-	-	§ 15-2719, Community Gardens/Urban Farms

TABLE 15-1102: USE REGULATIONS—MIXED-USE DISTRICTS				
Use Classifications	*NMX*	*CMX*	*RMX*	*Additional Regulations*
Other Applicable Types				
Accessory Uses and Structures	§ 15-2703, Accessory Uses			
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping			
Home Occupations	§ 15-2735, Home Occupations			
Animal Keeping	§ 15-2707, Animal Keeping			
Drive-In and Drive-Through Facilities	C(15)	C(15)	C(15)	§ 15-2728, Drive-In and Drive-Through Facilities
Walk-Up Facilities	§ 15-2766, Walk-Up Facilities			
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots			
Temporary Use	§ 15-2760, Temporary Uses			
Transitional and Supportive Housing	§ 15-2762, Transitional and Supportive Housing			

Specific Limitations:

1. Not allowed on the ground floor within 200 feet of an intersection (measured from the lot line) of two or more major streets with the exception of main building entrances and active community spaces. Other high-activity uses may be approved at the discretion of the Review Authority. Projects with frontage on more than one major street may be excepted from this restriction on one of the major streets at the discretion of the Review Authority.
2. Reserved.
3. Not to include industrial training such as welding or automotive repair involving the use of tools and materials appropriate to an industrial use area.
4. Must be located along a major street.
5. Limited to establishments with a gross floor area of 5,000 square feet or less.
6. Shall be below grade or in structures faced with active uses along the street.
7. Provided that such use shall be completely enclosed in a building of soundproof construction.
8. Limited to upper stories unless at least 50 percent of ground floor street frontage is occupied by food service use.
9. Reserved.
10. Limited to heliports used as accessory to a hospital.
11. Building heights for hospitals shall not exceed 150 ft. There is no maximum Floor Area Ratio for hospitals.
12. Not allowed within 500 feet of an existing or planned Bus Rapid Transit stop.
13. Must take place entirely within a building.
14. Must include an indoor waiting area.
15. Not allowed: a) within 100 feet of a planned or existing Bus Rapid Transit station except for projects involving an existing drive-through that is required to relocate due to property being acquired as a result of a public work project and where the new location is within 1 mile of the original location and where the new establishment complies with, and without deviation from, all applicable property development standards; and b) not allowed between a building and a sidewalk.
16. Reserved.
17. Reserved.
18. Permitted only after review and approval of a Conditional Use permit, and only in the following areas: a) NMX-zoned parcels which are located south of State Route 180 and east of State Route 41 and which are not within 500 feet of a Bus Rapid Transit route; or b) NMX-zoned parcels which are located north of State Route 180 and west of the Union Pacific Railroad.
19. Prohibited in the following areas: Parcels which are located south of State Route 180 and west of the Union Pacific Railroad.

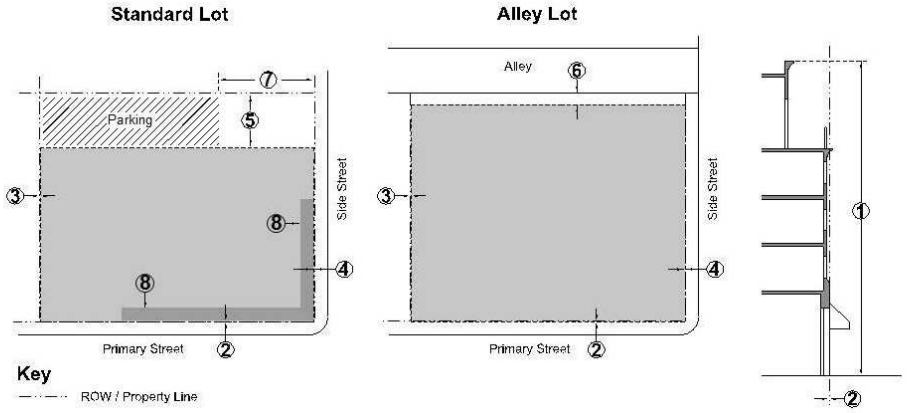
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2015-43, § 1, eff. 1-22-16; Am. Ord. 2016-32, § 10, eff. 10-21-16; Am. Ord. 2017-33, § 6, eff. 7-30-17; Am. Ord. 2018-25, § 8, eff. 6-11-18; Am. Ord. 2018-66, § 8, eff. 1-18-19; Am. Ord. 2020-031, § 2, 9-1-20; Am. Ord. 2022-029, § 1, eff. 11-19-22; Am. Ord. 2025-024, § 20, eff. 7-27-25; Am. Ord. 2025-036, § 1, eff. 10-23-25).

SEC. 15-1103. DENSITY, INTENSITY, AND MASSING DEVELOPMENT STANDARDS.

Table 15-1103 prescribes the density, intensity, and massing development standards for the Mixed-Use Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to

subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

TABLE 15-1103: DENSITY, INTENSITY, AND MASSING STANDARDS—MIXED-USE DISTRICTS



District	NMX	CMX	RMX	Additional Regulations	#
Floor Area Ratio (max.)	1.5	1.5	2.0	§ 15-309, Determining Floor Area Ratio	
Residential Density, du/ac (min.)	12	16	30	§ 15-310, Determining Residential Density Min. res. density shall not be required for the following: projects on lots less than 20,000 sq. ft. in area; projects further than 1,000 feet from a planned or existing BRT route; and projects which submit a Development Permit application prior to January 1, 2019.	
Maximum Height (ft.)	40	60	75	§ 15-1104-B, RS Transition Standards and § 15-2012, Heights and Height Exceptions	①
Setbacks (ft.)					
Front (min./max.)	-/10	-/10	-/10	§ 15-313, Determining Setbacks and Yards § 15-1104-B, RS Transition Standards § 15-1104-D, Parking Setback § 15-2305, Areas to be Landscaped	②
Interior Side (min.)	-	-	-		③
Street Side (min.)	-	-	-		④
Rear (min.)	-	-	-		⑤
Alley (min.)	3	3	3		⑥
Parking, from back of sidewalk or curb (min.)	30	30	30		⑦
Minimum Frontage Coverage (%)	60	70	80	§ 15-317, Determining Frontage Coverage	
Corner Frontage (ft., measured from property corner)	15	30	50	§ 15-1104-C, Corner Frontage	⑧
Minimum On-Site Open Space (% of Lot Area)	15	10	8	§ 15-1104-E, On-Site Open Space	

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2022-029, § 2, eff. 11-19-22).

SEC. 15-1104. SITE DESIGN DEVELOPMENT STANDARDS.

A. **Active Uses Adjacent to Sidewalks.** For buildings located within 20 feet of a public street, the following standards shall apply:

1. **Within 100 Feet in each direction of an Existing or Planned Bus Rapid Transit Station.** No less than 60 percent of the building frontage along public

streets shall be occupied by food and beverage sales, entertainment and recreation, general personal services, artist's studios, eating and drinking establishments, personal services, general retail, or convenience retail uses. Other high-activity uses which typically operate at night and on weekends may be approved at the discretion of the Review Authority.

2. **Other Locations.** Active spaces, such as individual dwelling unit entrances, cinemas/theaters, eating and drinking establishments, offices, personal services, general retail, or residential or office lobbies, or shall occupy no less than 60 percent of building frontage along public streets. Inactive and utilitarian spaces, such as storage, utility rooms, or facilities which are occupied infrequently shall not occupy more than 50 percent of the building frontage along public streets. Sites with frontage on multiple streets may not be required to meet this standard along the street with the lowest functional classification or least visual prominence, at the discretion of the Review Authority.

B. **RS Transition Standards.** Where an MX district abuts an RS District, the following standards apply:

1. **Height.** The maximum height within 40 feet of an RS District is limited to 30 feet. The maximum height within 50 feet of an RS District is 40 feet.

2. **Setbacks.** The following additional setback requirements shall be applied to all structures, including accessory structures, on parcels which are adjacent to an RS District:

   a. **Front and Street Side Yard.** The front setback shall not be less than the required front yard on the abutting RS District lot within 50 feet of the RS District.

   b. **Interior Side and Rear.** The interior side and rear setback abutting an RS District boundary shall be 20 feet.

3. **Landscape.** See Table 15-2305-C.1, Required Landscape Buffers.

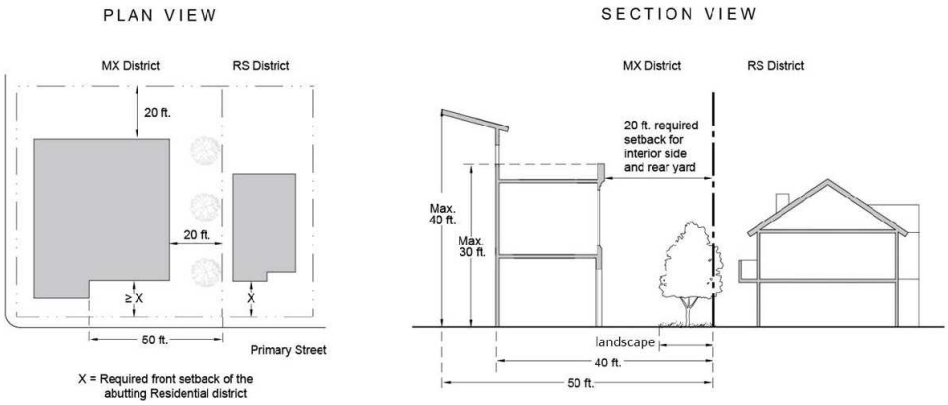


FIGURE 15-1104-B: RS TRANSITION STANDARDS—MX DISTRICTS

4. **Screening.** When a multi-story building is proposed and the second story or above is located within 50 feet of the side or rear yard of a single-unit lot, screening measures shall be applied to provide a reasonable degree of privacy.

   a. Screening measures include, but are not limited to, landscaping, alternate window and balcony placements, placing windows at least six feet from the floor of the interior of the unit, incorporating wing walls or louvers, using glass block or other translucent material, and other such methods.

   b. Sufficiency of Screening. The Review Authority shall determine the sufficiency of the proposed screening measures and may require additional measures.

C. **Corner Frontage.** Buildings on corner lots must be located within five feet of the street property line for the minimum length specified in Table 15-1103. Plazas maybe located at the street corner provided the plaza meets the requirements of Section 15-1104-E.1.c and buildings are built to the edge of the plaza.

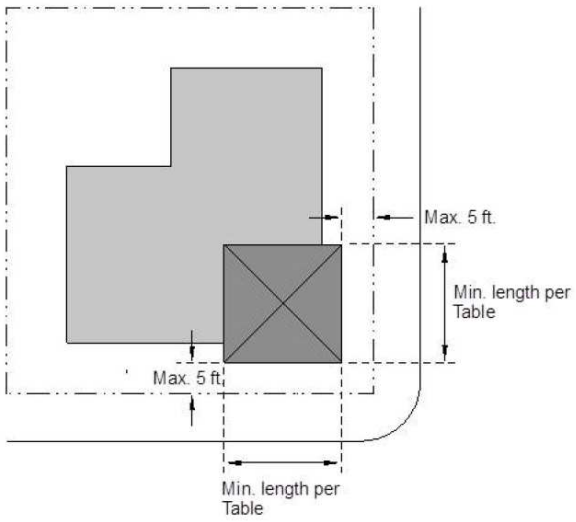


FIGURE 15-1104-C: CORNER FRONTAGE STANDARDS

D. **Parking Setback.** Parking shall be setback as shown on Table 15-1103 except as provided below:

1. **Surface Parking.**

   a. Surface parking which is located behind a building shall not be subject to the parking setback requirement.

   b. On lots less than 150 feet in width or depth or at the discretion of the Review Authority, surface parking may be set back less than the distance shown on Table 15-1103, if the following conditions are met:

      i. Such parking shall not be set back from the street less than adjacent buildings on the site.

      ii. The parking setback area shall be landscaped.

      iii. There shall be no more than four adjacent parking spaces in surface parking areas located less than 30 feet from a street-facing lot line. The space between groups of four adjacent parking spaces shall be equal in width to the adjacent parking spaces and shall be landscaped.

      iv. Parking spaces shall be screened from the adjacent street with a minimum three foot berm, wall, or hedge, or combination thereof.

   c. If a sound wall is required along a certain frontage, or if other circumstances exist that render the Parking Setback impractical or unnecessary, the Review Authority may waive the Parking Setback requirement.

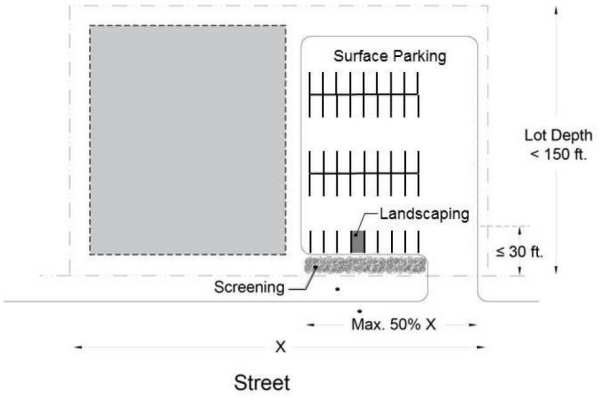


FIGURE 15-1104-D.1: SURFACE PARKING SETBACK REDUCTION

2. **Partially Submerged Podium Parking.** Parking that is partially below the street grade may extend to the setbacks of the main structure, if the following conditions are met:

   a. No more than six feet of the partially submerged parking podium may extend above the street grade.

   b. The partially submerged parking podium shall be screened along street facing elevations by foundation plant materials. Gates need not be screened.

3. **Underground Parking.** Parking that is fully underground and below the street grade may extend from lot line to lot line

E. **On-Site Open Space.**

1. **Minimum Open Space Required.** On-site open space shall be required for projects with more than four dwelling units. The minimum amount of on-site open space required shall be based on the size of the lot, as shown in Table 1.5-1103. This requirement may be met through a combination of private open space, common open space, or public plazas as follows:

   a. **Private Open Space Requirements.** Private open spaces are those which are attached to a dwelling unit and are available only for the private use of the residents of the dwelling unit, such as balconies, porches, and patios. No fewer than 50 percent of the dwelling units on a site shall have a private open space. The following standards shall apply to private open space:

      i. The minimum dimension of any private open space shall be five feet.

      ii. The minimum area of any private open space shall be 32 square feet.

      iii. When located within 30 feet of a public street and located on the ground floor, private open spaces shall follow the requirements for Porches as put forth in Table 15-1105-D.

iv. When located within 30 feet of a public street and located above the ground floor, private open spaces shall follow the requirements for Balconies as put forth in Table 15-1105-D.

b. **Common Open Space Requirements.** Common open spaces are those which are available for active or passive use by all tenants, but use by the general public may be restricted. To the extent that common open space is provided, the following standards shall apply:

i. The minimum dimension of any common open space shall be 20 feet.

ii. The minimum area of any common open space shall be 1,000 square feet. The calculation of the common open space area shall exclude structures which are unusable as open space, but shall include structures that enhance its usability, such as swimming pools, changing facilities, fountains, planters, benches, and landscaping.

iii. At least 80 percent of common open space shall be unobstructed to the sky. Trellises, pergolas, and similar structures shall be considered open to the sky for the purposes of this measurement.

iv. Common open space may be located at grade, on rooftops, on top of parking podiums, or any other such location that is accessible to tenants. Common open space may not be located within required setbacks or parking areas.

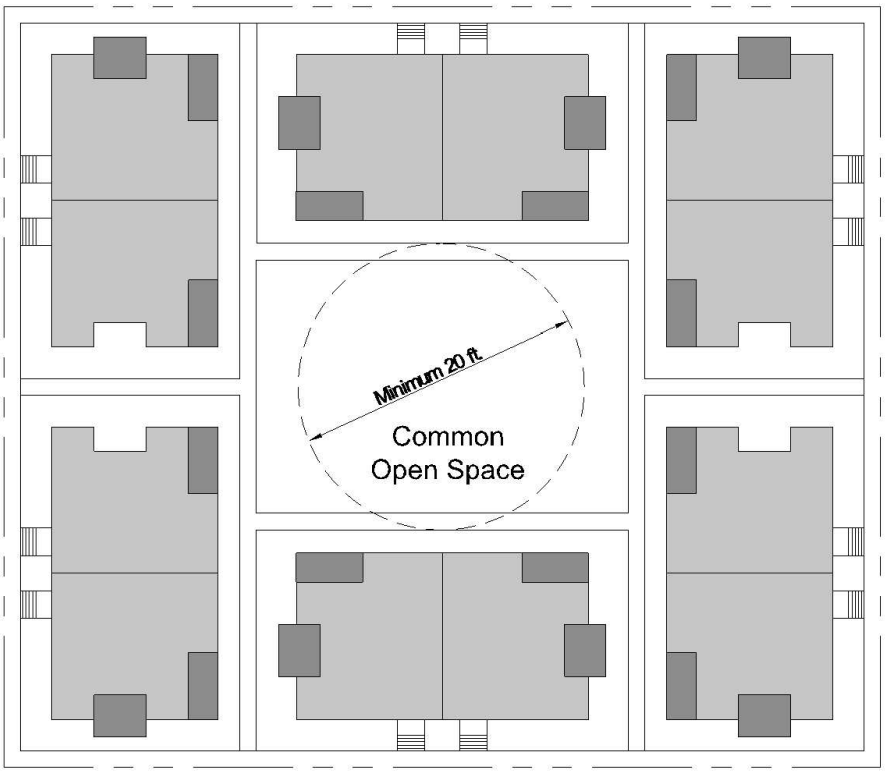


FIGURE 15-1104-E.1.b: MINIMUM REQUIRED COMMON OPEN SPACE DIMENSION

c. **Public Plaza Requirements.** Public plazas are those which are available for use by the general public, as well as tenants of the project. To the extent that public plazas are provided, the following standards shall apply:

i. The minimum dimension of any public plaza shall be 20 feet.

ii. The minimum area of any public plaza shall be 500 square feet. The calculation of the public plaza area shall exclude structures which are unusable as open space, but shall include structures that enhance its usability, such as fountains, planters, benches, and landscaping.

iii. Public plazas shall include benches or other seating, and paving shall be of high-quality materials. Amenities provided shall enhance the comfort, aesthetics, or usability of the space and include, but not be limited to, trees and other landscaping, shade structures, drinking fountains, water features, public art, or performance areas. Landscaping or other aspects of the design shall not discourage the use of the space by the general public.

iv. Public plazas shall be fully accessible from the public right-of-way, shall be located in front of project buildings and shall not be located where public views into the space are obstructed by buildings or other structures.

v. Public plazas may be located within required front setbacks.

vi. A public access easement shall be provided for the space.

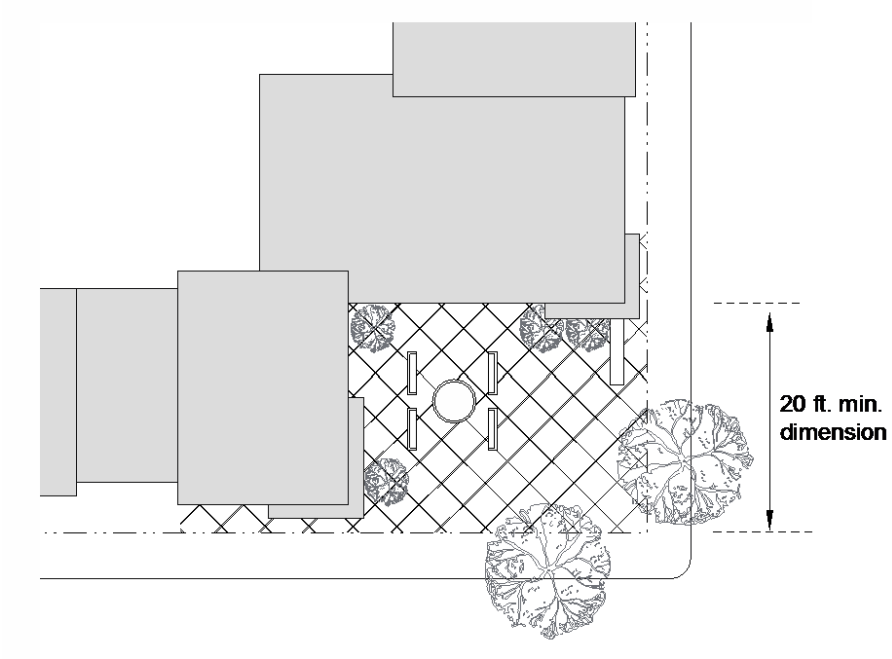


FIGURE 15-1104-E.1.c: MINIMUM REQUIRED PUBLIC PLAZA DIMENSION

2. **Minimum Open Space Reduction.** The minimum amount of open space required shall be reduced by 25 percent in any one of the following circumstances:

   a. Any portion of the lot is located within 400 feet of a transit stop with regular, scheduled service during the weekday hours of 7:00 a.m. to 9:00 a.m. and 5:00 p.m. to 7:00 p.m.

   b. There is a public park within 400 ft. of the site, and

      i. Said park is located on the same side of the street and provides an improved pedestrian path to and from the site; or

      ii. The public park is across a local street and the site provides an improved pedestrian path to and from the site.

   c. The parcel is 15,000 square feet or less in area.

F. **Sidewalk Standards.** Notwithstanding Chapter 13, Section 208 of the Municipal Code, the following shall apply:

1. **Applicability.** All projects shall be required to bring adjacent sidewalk conditions into conformance with the standards of this section, subject to the following exceptions:

   a. Applications for signs only.

b. Additions, remodels, or tenant improvements of less than 50 percent of the current value of the property.

2. **Width.** Sidewalks shall be no less than 12 feet in width. If the current distance between the right-of-way boundary and the face of the adjacent curb is less than 12 feet, the method by which this requirement shall be satisfied shall be determined by Review Authority. The available methods shall be as follows:

a. **Set Back.** The building may be set back from the right-of-way boundary the distance that is necessary to achieve the required sidewalk width. The portion of the sidewalk which lies within the private parcel shall be guaranteed for public access by the enactment of a public access easement.

b. **Reconstruction.** The applicant may demolish and reconstruct the sidewalk for the entirety of the block frontage(s) which the project occupies to the extent necessary to satisfy the requirements of this section.

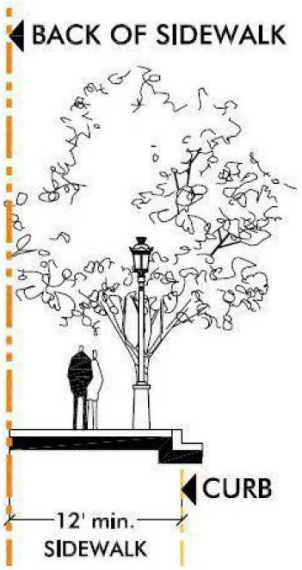
c. **Parklet.** The sidewalk may be expanded into the roadway by a metal or wood deck which does not interfere with the drainage of the street. In such instances the applicant shall enter into an encroachment agreement with the City in which the applicant accepts full responsibility for the maintenance and repair of the parklet, as well as providing the indemnification and insurance as required by the City's Risk Manager.

d. **Width Exemption.** For unusually challenging site conditions, or in instances in which the existing building and sidewalk pattern warrants it, the Director may exempt the applicant providing the full sidewalk width required above. In such instances all other requirements in this section, such as for trees and lighting, shall be met.

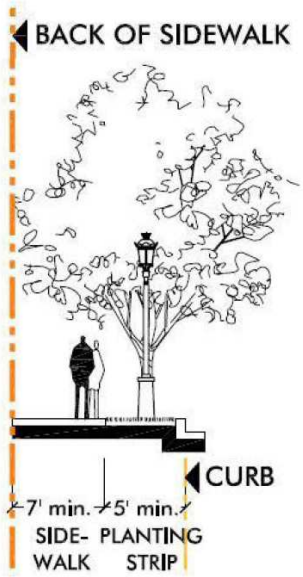
3. **Treatment.** Required sidewalks shall be paved and landscaped as follows:

a. **Adjacent to Mixed-Use or Non-Residential Projects.** The full width of the sidewalk shall be fully paved in uncolored concrete with a simple 30-inch scoring pattern.

b. **Adjacent to Residential-Only Projects.** A seven-foot walkway adjacent to the private parcel shall be paved in uncolored concrete with a simple 30 inch scoring pattern. The five feet adjacent to the curb shall be a parkway strip which shall be landscaped in a manner to be determined by the Director.



Adjacent to Mixed-Use or Non-Residential Projects.



Adjacent to Residential-Only Projects.

4. **Trees.** Street trees shall be provided with sidewalk improvements. Exact tree type and location shall be determined by the Director. Preferred street tree type and location shall be as follows:

   a. **Alignment.** Street trees should be located no more than three feet from the back of curb, and whenever possible should be aligned with other trees on the block.

   b. **Spacing.** Street trees should generally be evenly spaced, no less than 20 feet apart, and not more than 40 feet apart. Whenever possible, trees should not be located directly in front of building entrances.

   c. **Wells.** When a parkway strip is not provided, trees should be placed in tree wells measuring five feet by five feet. To maximize usable sidewalk area, tree wells shall be covered by grates of a design which is approved by the Director. Larger tree wells may be required by the Public Works Director for species requiring more space. The property owner shall assume maintenance responsibilities for the tree grates.

   d. **Species.** Street trees should be deciduous, fast growing, drought tolerant, and should eventually form a tall canopy. Not more than one species should be planted per block. Whenever nearby pre-existing trees are in good condition and meet the intent of this section, new trees should be of the same species.

5. **Lighting.** Pedestrian-scaled street lights shall be provided with sidewalk improvements. Exact design and location shall be determined by the Director. Preferred designs and locations shall be as follows:

   a. **Alignment.** Street lights should be located no more than three feet from the curb, and whenever possible should be aligned with street trees, as well as other lights on the block.

   b. **Spacing.** Street lights should be generally evenly spaced, no less than 30 feet apart, and not more than 80 feet apart. Whenever possible, street lights should be no less than 15 feet from nearby street trees.

   c. **Design.** Street lights should not be of the type commonly known as Cobra Heads or other types which are intended primarily for the illumination of the vehicular roadway. Lights should be ornamental and designed primarily for the illumination of the sidewalk. Whenever nearby pre-existing lights are in good condition and meet the intent of this section, new lights should be of the same type. Intersection safety lights shall be typical cobra-head design, while mid-block lighting should be ornamental and scaled for the pedestrian environment. Lighting shall meet Public Works standards.

6. **Maintenance.** If a Community Facilities District is not established to maintain sidewalks, street trees, and lighting, the applicant shall enter into a maintenance agreement to ensure the maintenance of said facilities.

G. **Service Areas and Loading.** Service and loading areas should be integrated with the design of the building and shall be screened from residential areas. Special attention shall be given when designing loading facilities in a location that is proximate to residential uses. Techniques such as block walls, enhanced setbacks, or enclosed loading shall be used to minimize adverse impacts to residents.

H. **Pedestrian Access.** Pedestrian access to public streets shall be provided at the preference of the applicant by either the Flexibility Option or the Certainty Option as follows:

1. **Flexibility Option.** The applicant must demonstrate to the satisfaction of the Review Authority that the project meets the following goals:

   a. Provide sufficient opportunities to walk to nearby amenities, services, and transit facilities.

   b. Create an interface between the building and the public sidewalk which results in a high level of activity on the sidewalk.

2. **Certainty Option.** Projects which comply with the following standards shall be considered to provide sufficient pedestrian access:

   a. **Common Area Sidewalk Connections.** Common entrances into lobbies or internal pedestrian paths shall be provided at a rate of no less than one per 400 feet of linear street frontage. When providing access to a structure, such

entrances shall be protected by a portico, canopy, or alcove of no less than four feet in depth. When providing access to a structure such entrances shall also feature an architectural element which clearly distinguishes them from entrances into individual dwellings.

b. **Residential Unit Sidewalk Connections.** Direct entrances into individual ground-floor dwelling units which are adjacent to streets shall be provided at a rate of no less than one per 100 feet of linear street frontage. Such entrances shall be protected by a portico, canopy, or alcove of no less than four feet in depth.

c. **Commercial Sidewalk Connections.** Direct entrances into ground-floor commercial establishments which are adjacent to streets shall be provided at a rate of no less than one per 100 feet of linear street frontage. When establishments with dimensions greater than 100 feet occupy a site, they shall be set back and wrapped with smaller spaces that will satisfy this requirement. See Figure 15-1104-H.2.C.

d. **External Connections to Adjacent Development.** Pedestrian walkways shall connect the project site to adjacent Residential, Commercial, Mixed Use, and Office districts at a frequency of no less than one per 600 feet. Projects may be excepted from this requirement in the following situations:

   i. An interconnected street network with short blocks and sidewalks exists in the surrounding area; or

   ii. The project site is less than one acre in size; or

   iii. The adjacent properties are developed and there are no possible connection points via breaks in the perimeter wall/fence.

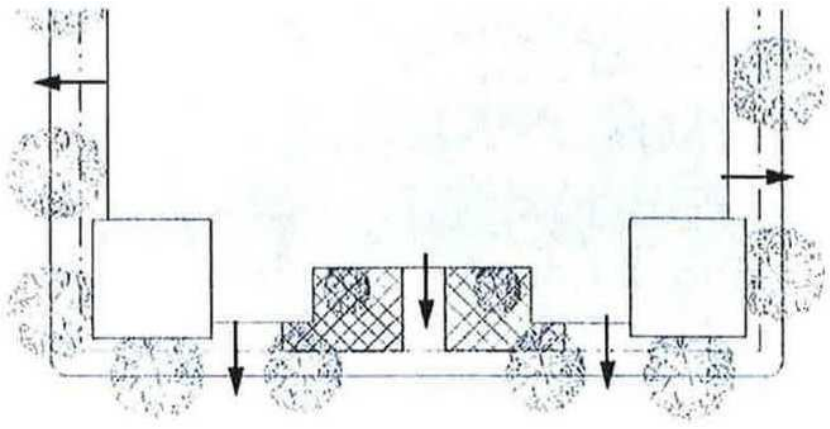


FIGURE 15-1104-H.2: SIDEWALK CONNECTIONS

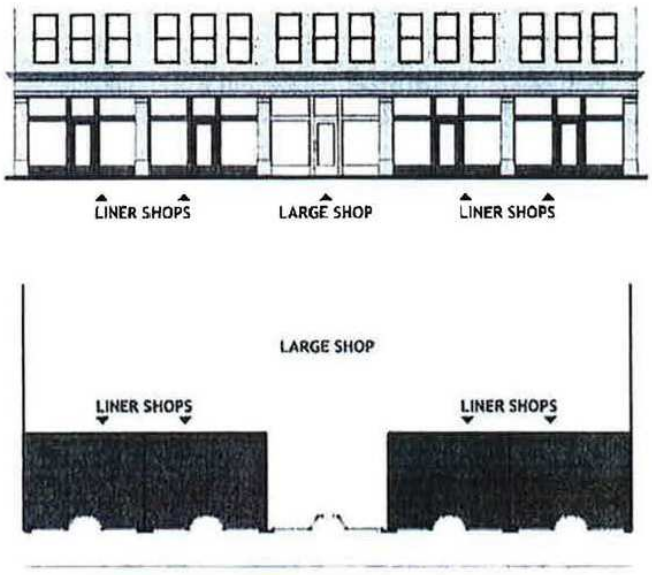


FIGURE 15-1104-H.2.C: WRAPPING OF LARGE USES

a. If the project is located within an area with adopted design guidelines, all applicable guidelines which relate to pedestrian access and the location of doors and entrances shall also be followed.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-1, § 2, eff. 3-14-16; Am. Ord. 2016-32, §§ 11, 12, eff. 10-21-16; Am. Ord. 2018-66, § 9, eff. 1-18-19; Am. Ord. 2022-029, § 3, eff. 11-19-22; Am. Ord. 2025-024, § 21, eff. 7-27-25).

SEC. 15-1105. FAÇADE DESIGN DEVELOPMENT STANDARDS.

Appropriate façade design shall be provided at the preference of the applicant by either the Flexibility Option or the Certainty Option as follows:

A. **Flexibility Option.** The applicant must demonstrate to the satisfaction of the Review Authority that the project meets the following goals:

1. Present an attractive appearance to public streets.

2. Be aesthetically and functionally compatible to the nearby development context,

3. Demonstrate a high level of quality,

4. Support the growth in value of surrounding properties.

B. **Certainty Option.** Street-facing façades for buildings adjacent to a public street shall comply to the following standards. Other façades are not be subject to these standards.

1. **Building Length Articulation.** At least one projection or recess shall be provided for every 50 horizontal feet of wall in one of the following manners:

a. Projections or recesses for buildings 50 feet wide or less shall be exempted from the building length articulation requirement; projections or recesses for buildings greater than 50 feet in width but less than 100 feet in width shall be no less than 12 inches in depth; or projections or recesses for buildings 100 feet wide or wider shall be no less than 24 inches in depth.

b. The depth and width of the projection or recess shall be proportionate to the overall mass of the building.

2. **Building Height Articulation.** In order to maintain a human scale for multi-story buildings, the height of façades shall be broken into smaller increments as follows:

a. **Ground Floor.** A substantial horizontal articulation of the façade shall be applied at the top of the first story, This element shall be no less than 18 inches tall, and should project from the adjacent wall plane. It shall be designed as a cornice, belt course, or a similar architectural element which is appropriate to the style of the building.

b. **Top Floor.** Buildings or portions of buildings which are four stories in height or taller shall also provide articulation for the top story of the building. This may be accomplished by a color change, material change, a cornice/belt course at the bottom of the uppermost story, by stepping the uppermost story back, or similar measures.

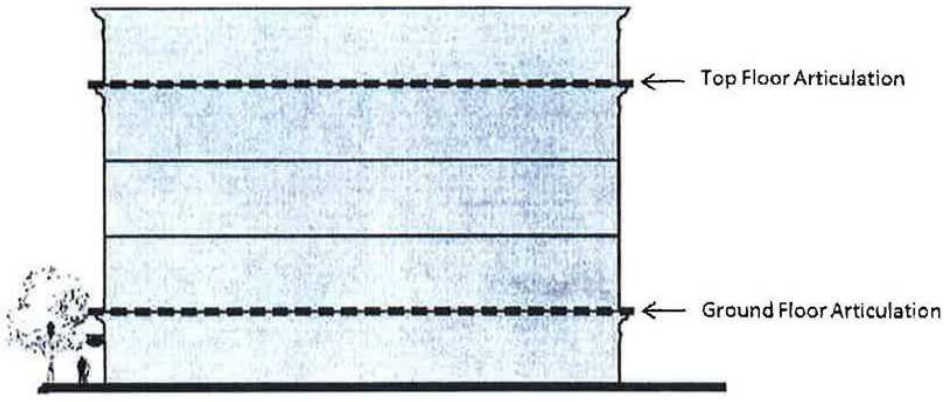


FIGURE 15-1105-B.2: BUILDING HEIGHT ARTICULATION

C. **Building Materials and Finishes.** Materials shall present a durable and attractive appearance through high-quality materials, finishes, and workmanship defined as:

1. At least two cladding materials (excluding roof and foundation); and

2. At least three exterior colors (each cladding material shall count as a color, and trim/accent colors shall each count as a color, and visually significant colors for doors, balconies, and similar elements may count as a color).

3. **Exception:** Buildings which accurately adhere to a recognized architectural style which is appropriately expressed in one cladding material and one color shall be excepted.

4. **Exception:** Buildings with all of the following characteristics shall be allowed to use one cladding material:

   a. Building height of 3 stories or less;

   b. Building width of 100 feet or less; and

   c. A façade with a comparable form of visual interest,

D. **Window Design.**

1. **Glazing Ratio.** Street-facing façades of each floor of the building shall have an overall wall composition of at least 25 percent glazing, but not more than 70 percent glazing, with the exception that commercial portions of the ground floor shall be subject to subsection D-2 below.

2. **Ground Floor Commercial Transparency.** For ground floor street-facing façades on portions of a structure occupied by commercial uses, exterior walls facing a front or street-side tot line shall Include windows, doors, or other openings with transparent glazing for at least 50 percent of the building wall area located between 2.5 and seven feet above the level of the sidewalk. Openings fulfilling this requirement shall have transparent glazing and provide views into work areas, display areas, sales areas, lobbies, or similar active spaces, or into window displays that are at least two feet deep. The Review Authority may waive or reduce this requirement if doing so is necessary to satisfy State or local energy efficiency requirements.

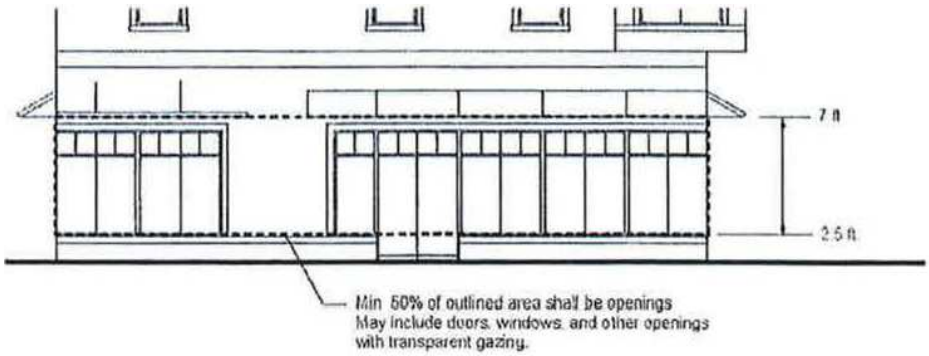


FIGURE 15-1105-D.2: GROUND FLOOR COMMERCIAL TRANSPARENCY

1. **Vertical Proportion.** On upper stories, at least 50 percent of all window openings, window panes, or distinct window units shall have a vertical proportion, in which their height exceeds their width by 25 percent or more.

2. **Window Depth.** Windows shall create visual interest and the appearance of depth in one of the following manners:

   a. Trim at least one inch in depth and three inches wide must be provided around all upper story windows and non-commercial ground-floor windows;

   b. Windows must be recessed at least two inches from the plane of the surrounding exterior wall (for double-hung and horizontal sliding windows, at least one sash shall achieve the two-inch recess); or

   c. Decorative plaster screed, minimum 2 inches wide.

   d. Exception: Buildings with all of the following characteristics shall be allowed to use flush windows without trim:

      i. Building height of 3 stories or less;

      ii. Building width of 100 feet or less; and

      iii. A façade with a comparable form of prominent surface relief and articulation, such as awnings, canopies, balconies, or massing changes.

E. **Façade Alignment.**

1. **Vertical Alignment.** With the exception of mansard roofs, cornices, and other such features, façades shall be oriented vertically and shall have no slope.

2. **Horizontal Alignment.** With the exception of bay windows and similar features, façades shall run parallel or perpendicular to the adjacent street.

3. **External Stairs, Corridors, and Hallways.** External stairs, corridors, and hallways that are located within 30 feet of a public street must be architecturally integrated into the building design.

F. **Balconies.** If balconies are provided, they shall not be grouped together into a continuous band across the façade. No more than two balconies shall be contiguous. Each balcony or group of two balconies shall be distinct and shall have at least six feet of horizontal separation from any other balcony.

G. **Façade Elements.** Development shall incorporate a minimum of one of the following Façade Elements into street-facing building façades.

1. Forecourts;
2. Bay Windows;
3. Balconies;
4. Porches;
5. Stoops;
6. Arcades.

H. If the project is located within an area with adopted design guidelines, all applicable guidelines which relate to façade design shall also be followed.

(Added Ord. 2016-1, § 2, eff. 3-14-2016).

SEC. 15-1106. RESERVED.

Editor's note—Ord. 2025-023, § 1, eff. December 26, 2025, repealed § 15-1106, which pertained to additional standards and derived from Added Ord. 2022-029, § 4, effective November 19, 2022.

ARTICLE 12 COMMERCIAL DISTRICTS (C)

Sec. 15-1201. Purpose.
Sec. 15-1202. Use Regulations.
Sec. 15-1203. Intensity and Massing Development Standards.
Sec. 15-1204. Site Design Development Standards.
Sec. 15-1205. Façade Design Development Standards.

SEC. 15-1201. PURPOSE.

The specific purposes of the Commercial Districts are to:

A. Provide for a full range of commercial uses to serve Fresno and the greater region.

B. Ensure the provision of shops, services, and facilities needed to accommodate future population and employment.

C. Establish development and design standards that create a unified, distinctive, and attractive character along commercial streets.

D. Provide appropriate buffers between commercial and adjacent residential uses to preserve both commercial feasibility and residential environments.

E. Ensure that new development is designed to minimize traffic and parking impacts on surrounding residential neighborhoods and is appropriate to the physical characteristics of the area.

F. Implement and provide appropriate regulations for General Plan classifications of "Main Street Commercial," "Community Commercial," "Regional Commercial," "General Commercial," "Highway and Auto Commercial," and "Commercial Recreation."

Additional purposes of each Commercial District are as follows:

CMS Commercial—Main Street. The CMS district is intended to preserve or promote small-scale, fine-grain commercial development in neighborhoods where single-unit residential and townhomes are predominant. A traditional "Main Street" character is achieved with active storefronts, outdoor seating and pedestrian-oriented design.

CC Commercial—Community. The CC district is intended for commercial development that primarily serves local needs such as convenience shopping and offices. Specific uses allowed include medium-scale retail, office, civic and entertainment uses, supermarkets, drug stores, and supporting uses.

CR Commercial - Regional. The CR district is intended to meet local and regional retail demand, such as large-scale retail, office, civic and entertainment uses, shopping malls with large-format or "big-box" retail, and supporting uses such as gas stations and hotels. Buildings are typically larger-footprint and urban-scaled. Development and design standards will create a pedestrian-orientation within centers and along major corridors, with parking generally on the side or rear of major buildings, but automobile-oriented uses also will be accommodated on identified streets and frontages.

CG Commercial—General. The CG district is intended to accommodate a range of retail and service uses that are not appropriate in other areas because of higher volumes of vehicle traffic and potential impacts on other uses. Examples of allowable uses include: building materials, storage facilities with active storefronts, equipment rental, wholesale businesses, and specialized retail not normally found in shopping centers. The focus of district development standards is to ensure structures fit into the surrounding development pattern and architectural or traffic conflicts are minimized.

CH Commercial—Highway and Auto. The CH district is intended for limited areas near the freeway to accommodate uses that depend on or are supported by freeway access, but do not generate a large volume of traffic. Hotels, restaurants, and auto malls are typical land uses.

CRC Commercial—Recreation. The CRC district is intended to provide areas for private commercial recreation uses where patrons usually pay to participate and to group commercial-recreation uses into a planned, integrated center, including related service and commercial uses. Typical uses include bowling alleys, family entertainment centers, driving ranges, miniature golf courses, skating rinks, tennis courts, swimming pools, sports stadiums, arenas, and the County fairgrounds.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 22, eff. 7-27-25).

SEC. 15-1202. USE REGULATIONS.

A. Table 15-1202 prescribes the proposed land use regulations for Commercial Districts. The regulations for the districts are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-1202: LAND USE REGULATIONS—COMMERCIAL DISTRICTS							
Use Classifications	*CMS*	*CC*	*CR*	*CG*	*CH*	*CRC*	*Additional Regulations*
Residential Use Classifications							
Residential Housing Types							
Single-Unit Dwelling, Attached	P(2) (16)	-	P(2) (16)	-	-	-	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Multi-Unit Residential	P(2) (16)	-	P(2) (16)	-	-	-	§ 15-2754, Second/Accessory Dwelling Units (ADUs)
Adult Family Day Care							
Small (6 clients or less)	P(1)	-	P(2)	-	-	-	
Caretaker Residence	P(2)	P(2)	P(2)	P(2)	P(2)	P(2)	
Elderly and Long-Term Care	-	-	P(2)	-	-	-	
Family Day Care							
Small (8 children or less)	P(2)	P(2)	P(2)	P(2)	-	-	§ 15-2725, Day Care Centers and Family Child Care Homes
Large (9 to 14 children)	P(2)	P(2)	P(2)	P(2)			
Group Residential							
Small (6 persons or less)	P(1)	-	P(2)	-	-	-	
Large (7 persons or more)	P(1)	-	P(2)	-	-	-	
Lodging-to-Dwelling Conversion	C	C	C	C	C	C	§ 15-2737.5 Lodging-to-Dwelling Conversion Requirements
Re-Entry Facility	-	-	-	P	-	-	
Residential Care Facilities							
Residential Care, General	C(1)	-	-	-	-	-	
Residential Care, Limited	P(1)	-	P(2)	-	-	-	
Residential Care, Senior	C(1)	-	-	-	-	-	
Single Room Occupancy	-	-	-	P	-	-	§ 15-2757, Single Room Occupancy Hotels and Boarding Homes
Public and Semi-Public Use Classifications							
Colleges and Trade Schools, Public or Private	-	C(3)	P	P	-	-	
Community and Religious Assembly (less than 2,000 square feet)	P	P	P	P	-	-	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	-	C(4)	P	C	-	C	
Community Garden	P	P	P	P	P	P	§ 15-2720, Community Gardens/Urban Farms
Conference/Convention Facility	-	C(4)	P	-	-	C	

TABLE 15-1202: LAND USE REGULATIONS—COMMERCIAL DISTRICTS							
Use Classifications	*CMS*	*CC*	*CR*	*CG*	*CH*	*CRC*	*Additional Regulations*
Cultural Institutions	P(5)	C	C	-	-	C	
Day Care Centers	P	P	P	P	-	-	§ 15-2725, Day Care Centers and Family Child Care Homes
Emergency Shelter	-	-	-	P	-	-	§ 15-2729, Emergency Shelters
Government Offices	P	P	P	-	-	-	
Hospitals and Clinics							
Hospital	-	C(13)	C(13)	C(13)	-	-	
Clinic	C(5)	P	P	P	-	-	
Substance Abuse Treatment Clinic	C(15)	C(15)	C(15)	C(15)	-	-	
Instructional Services	P	P	P	C	-	-	
Park and Recreation Facilities, Public	P	P	P	P	P	P	
Parking, Public or Private	-	C(6)	C(6)	-	-	-	
Public Safety Facilities	C	C	C	C	C	C	
Schools, Public or Private	C	C	C	C	-	-	
Social Service Facilities	C(1)	C	-	-	-	-	
Commercial Use Classifications							
Animal Care, Sales and Services							
Grooming and Pet Stores	P	P	P	P	-	-	
Veterinary Services	-	P	P	-	-	-	
Artist's Studio	P	P	P	-	-	-	
Automobile/Vehicle Sales and Services							
Automobile Rentals	-	-	C	C	P	-	§ 15-2709, Automobile and Motorcycle Retail Sales and Leasing
Automobile/Vehicle Sales and Leasing	-	-	C	C	P	-	§ 15-2709, Automobile and Motorcycle Retail Sales and Leasing
Automobile/Vehicle Service and Repair, Minor	-	-	C	C	P	-	§ 15-2710, Automobile/Vehicle Service and Repair, Major and Minor
Large Vehicle and Equipment Sales, Service and Rental	-	-	-	C	P	-	§ 15-2710, Automobile and Motorcycle Retail Sales and Leasing
Service Station	-	C	P	C	P	-	§ 15-2755, Service Stations
Washing	-	-	C	C	P	-	§ 15-2711, Automobile/Vehicle Washing
Banks and Financial Institutions							
Banks and Credit Unions	P(5)	P	P	P	-	-	
Check Cashing Businesses and Payday Lenders	-	-	C(7)	C(7)	-	-	§ 15-2715, Check Cashing Businesses, Payday Lenders, and Similar Financial Services
Banquet Hall	C	C	C	-	C	-	§ 15-2712, Banquet Hall

TABLE 15-1202: LAND USE REGULATIONS—COMMERCIAL DISTRICTS							
Use Classifications	*CMS*	*CC*	*CR*	*CG*	*CH*	*CRC*	*Additional Regulations*
Business Services	P(5)	P	P	P	-	-	
Eating and Drinking Establishments							
Bars/Nightclubs/ Lounges	C	C	C	C	C	C(8)	§ 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges; § 15-2744, Outdoor Dining and Patio Areas
Restaurant with Alcohol Sales	C	C	C	C	C	C	
Restaurant without Alcohol Sales	P	P	P	P	P	P	
Entertainment and Recreation							
Cinema/Theaters	C	C	P	P	-	P	
Cyber/Internet Café	C	C	C	C	-	-	§ 15-2724, Cyber/Internet Café
Motorcycle/Riding Club	-	-	-	-	P	-	§ 15-2742, Motorcycle/ Riding Clubs
Shooting/Archery Range	-	-	-	-	-	P	§ 15-2756, Shooting Ranges/Archery Ranges
Large-Scale	-	C	C	C	C	C	
Small-Scale	P	P	P	P	P	P	§ 15-2708, Arcades, Video Games, and Family Entertainment Centers, § 9-1801, Billiard Rooms
Food and Beverage Sales							
Farmer's Markets	P	P	P	P	P	P	§ 15-2730, Farmer's Markets
General Market	P	P	P	P	P	-	§ 15-2744, Outdoor Dining and Patio Areas; § 15-2745, Outdoor Retail Sales
Healthy Food Grocer	P	P	P	P	P	-	
Liquor Stores	C	C	C	C	C	-	§ 15-2706, Alcohol Sales; § 15-2745, Outdoor Retail Sales
Food Preparation	-	P	P	P	-	-	
Funeral Parlors and Internment Services	-	C	P	P	-	-	§ 15-2714, Body Preparation and Funeral Services
Live/Work	P(1)	-	-	-	-	-	
Lodging							
Hotels and Motels	P(14)	P	P	-	P	-	
RV Park	-	-	-	-	-	-	
Maintenance and Repair Services	C(5)	P(9)	C	P	-	-	
Offices							
Business and Professional	P(9) (17)	P	P	P	-	-	
Medical and Dental	P(17)	P	P	P	-	-	
Walk-In Clientele	P(17)	P	P	P	-	-	
Personal Services							
General Personal Services	P	P	P	P	-	-	
Fortune Telling Service	-	-	-	P	-	-	
Massage Establishments	C	C	C	C	-	C	

TABLE 15-1202: LAND USE REGULATIONS—COMMERCIAL DISTRICTS							
Use Classifications	*CMS*	*CC*	*CR*	*CG*	*CH*	*CRC*	*Additional Regulations*
Tattoo or Body Modification Parlor	P(9)	P(9)	P	P	-	-	§ 15-2758, Tattoo or Body Modification Parlor
Retail Sales							
Building Materials and Services	C(12)	C	P	P	-	-	§ 15-2745, Outdoor Retail Sales
Convenience Retail	P	P	P	P	P	C(10)	§ 15-2745, Outdoor Retail Sales; 15-2761 Tobacco and Vapor Shops
General Retail	P	P	P	P	-	C(10)	§ 15-2733, Hobby Stores; § 15-2745, Outdoor Retail Sales
Gun Shop	C	P	P	P	-	P	§ 15-2745, Outdoor Retail Sales
Large-Format Retail	-	C	P	P	-	-	§ 15-2737, Large-Format Retail; § 15-2745, Outdoor Retail Sales
Nurseries and Garden Centers	P(5)	P	P	P	-	-	§ 15-2745, Outdoor Retail Sales
Pawn Shops	-	-	-	P	-	-	
Second Hand/Thrift Stores	P(5)	P	P	P	-	-	
Swap Meet/Flea Market	-	-	-	C	-	C	§ 15-2730, Flea Markets
Industrial Use Classifications							
Construction and Material Yards	-	-	-	C	C	-	§ 15-2721, Concrete Batch Plants, Storage Yards, and Similar Uses
Custom Manufacturing	-	-	-	P(11)	-	-	
Recycling Facility							
Reverse Vending Machine	-	C	P	P	-	-	§ 15-2750, Recycling Facilities
CRV Recycling Center	§ 15-2750, Recycling Facilities						
Warehousing, Storage, and Distribution							
Personal Storage	C	C	C	C	C	C	§ 15-2747, Personal (Mini) Storage
Transportation, Communication, and Utilities Use Classifications							
Communication Facilities							
Antenna and Transmission Towers	§ 15-2759, Telecommunications and Wireless Facilities						
Facilities within Buildings	-	-	-	P	-	-	
Utilities, Minor	P	P	P	P	-	P	
Agricultural and Extractive Use Classifications							
Agricultural Support Services	-	-	-	P	-	-	
Produce Stand	-	-	-	P	-	-	§ 15-2752, Roadside Fruit Stands/Grow Stands
Tasting Room	C	C	C	C	-	C	
Urban Farm	-	-	-	P	-	-	§ 15-2720, Community Gardens/Urban Farms
Other Applicable Types							
Accessory Uses and Structures	§ 15-2703, Accessory Uses						

TABLE 15-1202: LAND USE REGULATIONS—COMMERCIAL DISTRICTS							
Use Classifications	*CMS*	*CC*	*CR*	*CG*	*CH*	*CRC*	*Additional Regulations*
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping						
Home Occupations	§ 15-2735, Home Occupations						
Animal Keeping	§ 15-2707, Animal Keeping						
Drive-in and Drive-Through Facilities	-	C	C	C	C	C	§ 15-2728, Drive In and Drive Through Facilities
Walk-Up Facilities	§ 15-2766, Walk-Up Facilities						
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots						
Temporary Use	§ 15-2760, Temporary Uses						
Transitional and Supportive Housing	§ 15-2762, Transitional and Supportive Housing						

Specific Limitations:

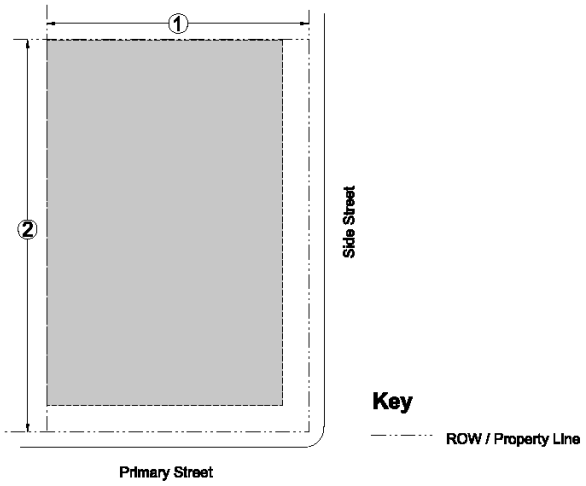
1. Not allowed on the ground floor.
2. Not allowed on the ground floor along arterials or collectors.
3. Not to include industrial training such as welding or automotive repair involving the use of tools and materials appropriate to an industrial use area.
4. Must be located along an arterial or collector.
5. Limited to establishments with a gross floor area of 5,000 square feet or less.
6. Shall be below grade or in structures faced with active uses along the street.
7. Limited to 2,500 square feet in size, located on a collector or higher classification street.
8. Permitted only as an accessory use that supports commercial recreation.
9. Limited to 1,500 square feet in size if on the ground floor.
10. Limited to facilities associated with park and recreation facilities.
11. Provided that such use shall be completely enclosed in a building of soundproof construction.
12. Limited to establishments with a gross floor area of 10,000 square feet or less.
13. Building heights for hospitals shall not exceed 150 ft. There is no maximum Floor Area Ratio for hospitals.
14. Limited to upper stories unless at least 50 percent of ground floor street frontage is occupied by food service use.
15. Must include an indoor waiting area.
16. Housing projects shall meet the requirements of § 15-1104, § 15-1106, and Table 15-1203-1.
17. Not permitted along ground floor on Olive Avenue between Van Ness Avenue and Echo Avenue.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 13, eff. 10-21-16; Am. Ord. 2017-33, § 8, eff. 7-30-17; Am. Ord. 2018-25, § 9, eff. 6-11-18; Am. Ord. 2018-66, § 10, eff. 1-18-19; Am. Ord. 2020-031, § 3, 9-1-20; Am. Ord. 2022-029, § 5, eff. 11-19-22; Am. Ord. 2025-024, § 23, eff. 7-27-25).

SEC. 15-1203. INTENSITY AND MASSING DEVELOPMENT STANDARDS.

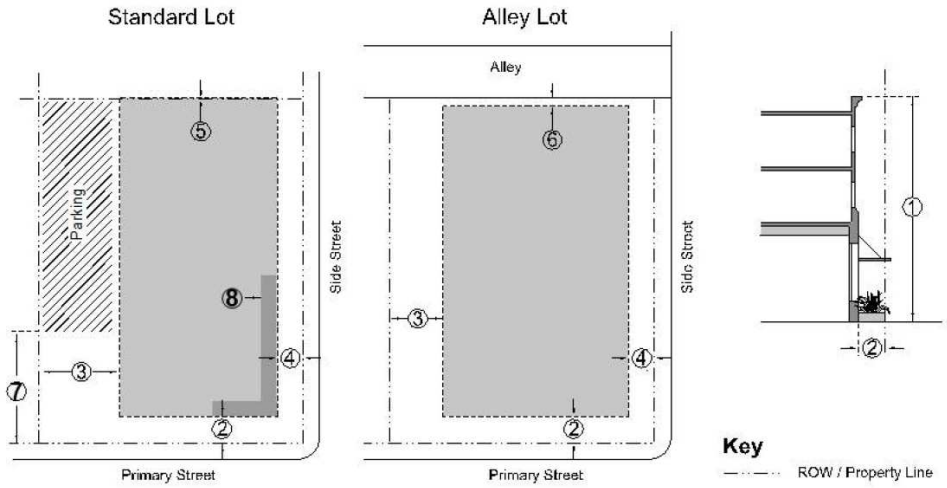
Tables 15-1203-1 to 15-1203-2 prescribe the intensity and massing development standards for the Commercial Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

TABLE 15-1203-1: LOT AND INTENSITY STANDARDS—COMMERCIAL DISTRICTS



District	CMS	CC	CR	CG	CH	CRC	Additional Regulations	#
Minimum District Size (sq. ft., unless otherwise noted)	5,000	32,670	15 acres	12,000	15,000	4 acres		
Minimum Lot Size (sq. ft.)	-	32,670	10,000	12,000	15,000	15,000		
Minimum Lot Width (ft.)	-	75	100	75	100	100		①
Minimum Lot Depth (ft.)	-	100	100	125	125	150		②
Maximum Floor Area Ratio (FAR)	1.0	1.0	1.0	2.0	0.75	0.5	§ 15-309, Determining Floor Area Ratio	
Residential Density, du/ac (min./max.)	No limit	-	No limit	-	-	-	§ 15-310, Determining Residential Density	
Minimum On-Site Open Space (% of Lot Area)	15	-	8	-	-	-	§ 15-1104-E, On-Site Open Space	

TABLE 15-1203-2: BUILDING FORM AND LOCATION STANDARDS—COMMERCIAL DISTRICTS



District	CMS	CC	CR	CG	CH	CRC	Additional Regulations	#

TABLE 15-1203-2: BUILDING FORM AND LOCATION STANDARDS—COMMERCIAL DISTRICTS								
Maximum Height (ft.)	35	35	75	35	35	35	§ 15-1204-A, Residential Transition Standards and § 15-2012, Heights and Height Exceptions	①
Setbacks (ft.)								
Front (min./max.)	-/10	15/-	15/-	15/-	15/-	15/-	§ 15-313, Determining Setbacks and Yards	②
Front (min), with Enhanced Streetscape	-	-	-	-	NA	NA	§ 15-1204-A, Residential Transition Standards	
Interior Side (min.)	-	-	-	-	-	-	§ 15-1204-B, Enhanced Streetscape	③
Street Side (min.)	-	-	-	10	10	10	§ 15-1204-C, Parking	④
Rear (min.)	-	-	-	-	-	-	§ 15-2014, Projections/ Encroachments into Yards	⑤
Alley (min.)	-	-	-	-	-	-	§ 15-2305, Areas to be Landscaped	⑥
Parking, from back of sidewalk or curb (min.)	30	-	-	-	-	-		⑦
Minimum Frontage Coverage (%)	60	-	-	-	-	-	§ 15-317 Determining Frontage Coverage	⑧

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2022-029, § 6, eff. 11-19-22).

SEC. 15-1204. SITE DESIGN DEVELOPMENT STANDARDS.

A. **Residential Transition Standards.** Where a C District is adjacent to a Residential District, the following standards apply:

1. **Height.** The maximum height within 40 feet of an R District is limited to 30 feet. The maximum height within 50 feet of an R District is 40 feet.

2. **Setbacks.**

   a. **Front.** The front setback shall not be less than the required front yard on the abutting R District lot within 50 feet of the R District.

   b. **Interior Side and Rear.** The interior side and rear setback abutting an R District boundary shall be 20 feet. In the CMS District, the interior side yard may be reduced to 10 feet with Director approval.

3. **Landscape.** See Table 15-2305-C.1, Required Landscape Buffers.

4. **Screening.** When a multi-story building is proposed and the second story or above is located within 50 feet of the side or rear yard of a single-unit lot, screening measures shall be applied to provide a reasonable degree of privacy.

   a. Screening measures include, but are not limited to, landscaping, alternate window and balcony placements, placing windows at least six feet from the floor of the interior of the unit, incorporating wing walls or louvers, using glass block or other translucent material, and other such methods.

   b. Sufficiency of Screening. The Review Authority shall determine the sufficiency of the proposed screening measures and may require additional measures.

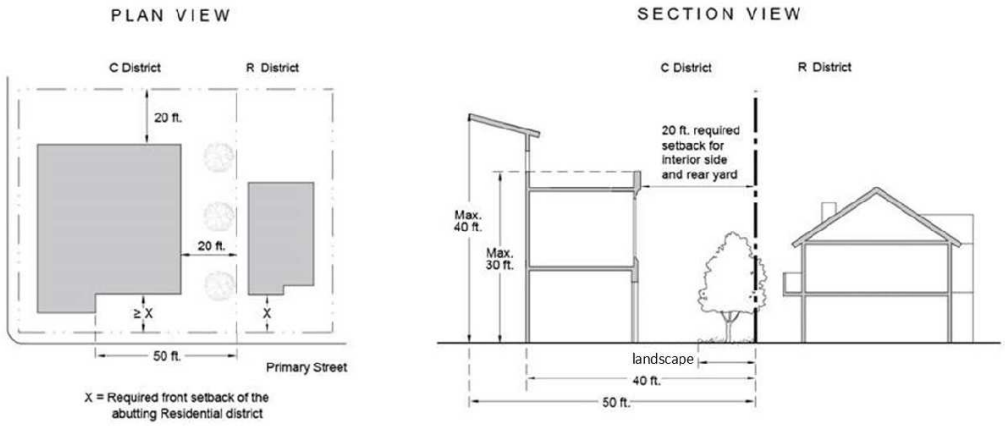


FIGURE 15-1204-A: RESIDENTIAL TRANSITION STANDARDS—C DISTRICTS

B. **Enhanced Streetscape.** As shown on Table 1203-2, projects which provide an enhanced streetscape will not be required to provide a front setback. A project shall be considered to have an enhanced streetscape when it has all of the following characteristics:

1. Sidewalks shall be no less than 12 feet in width. If the current distance between the right-of-way boundary and the face of the adjacent curb is less than 12 feet, the building shall be set back from the right-of-way boundary the distance that is necessary to achieve the required sidewalk width. The portion of the sidewalk which lies within the private parcel shall be guaranteed for public access by the enactment of a public access easement.
2. Street trees shall be provided as follows:
    a. Street trees should be located no more than three feet from the back of curb, and whenever possible should be aligned with other trees on the block.
    b. Street trees should generally be evenly spaced, no less than 20 feet apart, and not more than 40 feet apart.
    c. Whenever possible, trees should not be located directly in front of building entrances.
    d. Trees should be placed in tree wells measuring five feet by five feet. To maximize usable sidewalk area, tree wells shall be covered by grates of a design which is approved by the Director. Larger tree wells may be required by the Public Works Director for species requiring more space. The property owner shall assume maintenance responsibilities for the tree grates.
    e. Street trees should be deciduous, fast growing, drought tolerant, and should eventually form a tall canopy. Not more than one species should be planted per block. Whenever nearby pre-existing trees are in good condition and meet the intent of this section, new trees should be of the same species.

3. Pedestrian-scaled street lights shall be provided as follows:

   a. Street lights should be located no more than three feet from the curb, and whenever possible should be aligned with street trees and other lights on the block.

   b. Street lights should be generally evenly spaced, no less than 30 feet apart, and not more than 80 feet apart. Whenever possible, street lights should be no less than 15 feet from nearby street trees.

   c. Street lights should not be of the type commonly known as Cobra Heads or other types which are intended primarily for the illumination of the vehicular roadway. Lights should be ornamental and designed primarily for the illumination of the sidewalk. Whenever nearby pre-existing lights are in good condition and meet the intent of this section, new lights should be of the same type. Intersection safety lights shall be typical cobra-head design, while mid-block lighting should be ornamental and scaled for the pedestrian environment. Lighting shall meet Public Works standards.

4. If a Community Facilities District is not established to maintain sidewalks, street trees, and lighting, the applicant shall enter into a maintenance agreement to ensure the maintenance of said facilities.

5. Facades located with 15 feet of the public sidewalk shall be oriented to the street as follows:

   a. If there is a primary common building entrance which provides access to reception areas, elevators, stairs, and internal circulation, it shall face and be oriented to the street. If there is a yard between the sidewalk and the building, a paved path six feet in width shall be provided from the public sidewalk to the entrance.

   b. Direct entrances from the sidewalk in to individual establishments located along the street frontage shall be provided. If there is a yard between the sidewalk and the building, a paved path six feet in width shall be provided from the public sidewalk to the entrance.

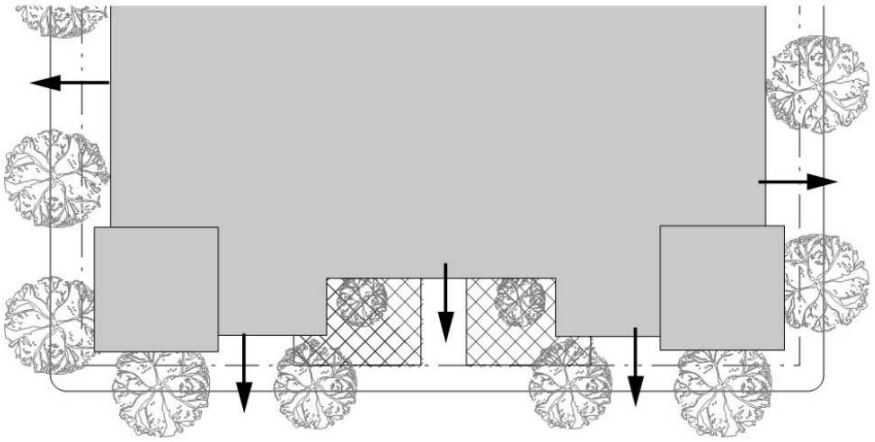


FIGURE 15-1204-B.5: BUILDING ORIENTATION TO THE STREET

6. Exterior walls facing a front or street side lot line shall include windows, doors, or other openings with transparent glazing for at least 60 percent of the building wall area located between 2.5 and seven feet above the level of the sidewalk. Openings fulfilling this requirement shall have transparent glazing and provide views into work areas, display areas, sales areas, lobbies, or similar active spaces, or into window displays that are at least two feet deep.

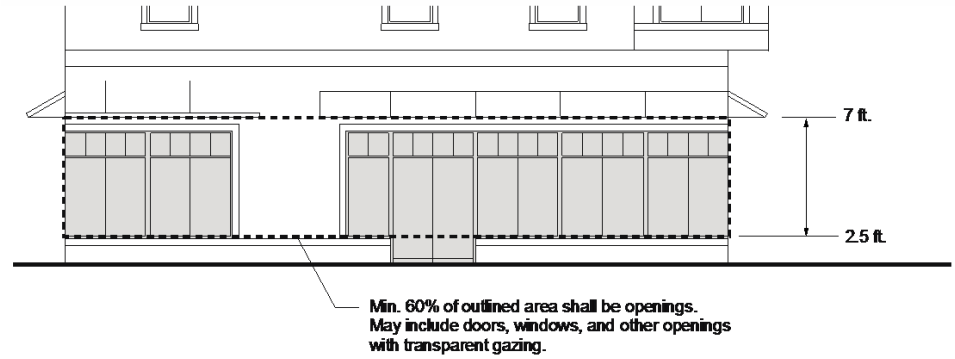


FIGURE 15-1204-B.6: BUILDING TRANSPARENCY

7. Where buildings are located within two feet of a public sidewalk, the sidewalk shall be shaded by awnings or canopies as follows:

   a. Awning or canopy depth shall be no less than four feet and no more than 10 feet.

   b. Clearance shall be no less than eight feet and no more than 12 feet from the finished floor.

C. **Parking.** Parking shall be setback as shown in Table 15-1203-2 except as provided below:

1. **Underground Parking.** Parking that is fully underground and below the street grade may extend from lot line to lot line.

2. **Partially Submerged and Podium Parking.** Parking that is partially below the street grade may extend to the setbacks of the main structure. A maximum six feet of the parking structure height may extend above the street grade if screened along street facing elevations by foundation plant materials. Gates need not be screened.

3. **Surface Parking.** On lots less than 150 feet in width or depth, surface parking may be located within 50 feet of a street facing lot line for a maximum of 50 percent of the lot frontage if the parking area is screened with a garden wall, hedge, trellis, and/or other landscaping or built structures facing the sidewalk.

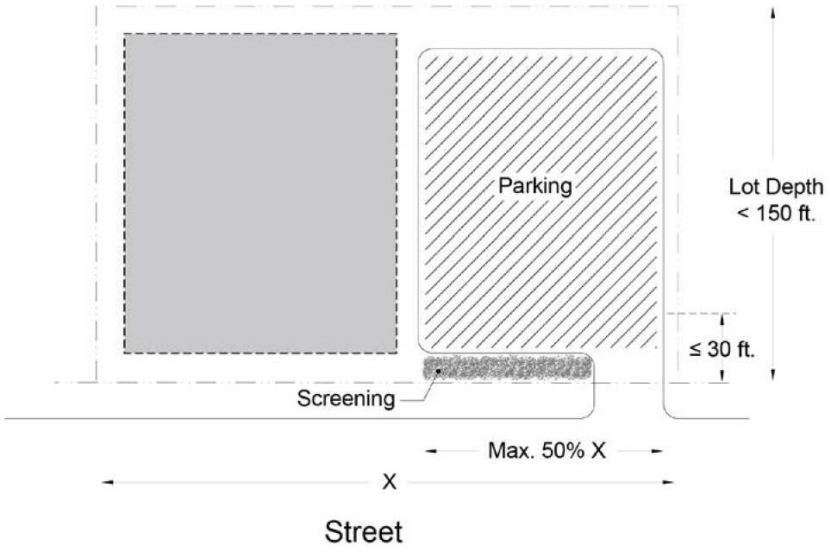


FIGURE 15-1204-C.3: SURFACE PARKING

D. **Public Plazas.** The following standards apply to commercial shopping center developments in the CC and CR Districts.

1. **Entry Plazas/Passenger Loading Areas.** A plaza shall be provided at the entry to each anchor tenant that provides for pedestrian circulation and loading and unloading. Entry plazas and passenger loading areas shall include unique, decorative paving materials, adequate seating areas, and provision of adequate shade, and attractive landscaping, including trees or raised planters.

2. **On-Site Plazas.** Outdoor plazas for the use of customers and visitors shall be provided at a rate of five square feet per 1,000 square feet of floor area, up to 1,500 square feet per plaza.

3. **Location.** Plazas shall be visible from a public street or from on-site areas normally frequented by customers, and shall be accessible during business hours.

4. **Amenities.** Plazas shall include benches or other seating, and paving shall be of high-quality materials. Amenities shall be included that enhance the comfort, aesthetics, or usability of the space, including, but not limited to, trees and other landscaping, shade structures, drinking fountains, water features, public art, or performance areas.

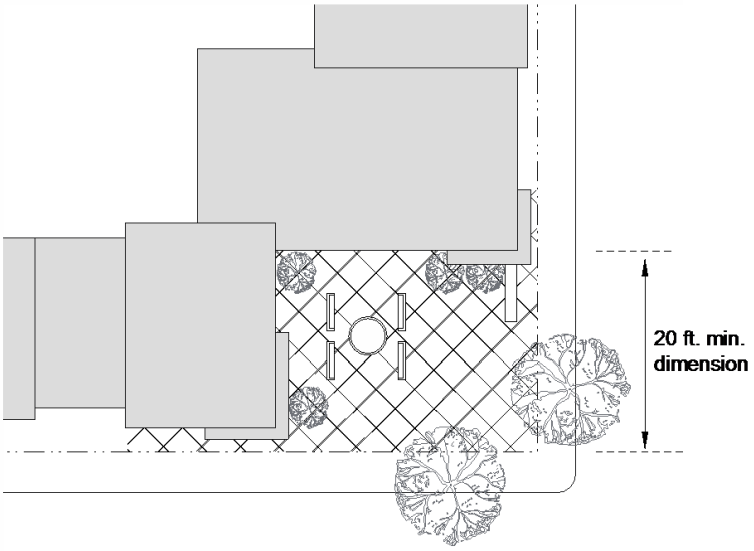


FIGURE 15-1204-D: PUBLIC PLAZAS

E. **Pedestrian Access.** On-site pedestrian circulation and access shall be provided according to the following standards.

1. **Internal Connections.** A system of pedestrian walkways shall connect all buildings on a site to each other, to on-site automobile and bicycle parking areas, and to any on-site open space areas or pedestrian amenities.

2. **External Connections.** A system of pedestrian walkways shall connect the project site to adjacent Residential, Commercial, Mixed-Use, Office districts as follows:

   a. If the adjacent Residential, Commercial, Mixed-Use, and Office districts are undeveloped, stub connections shall be provided at a frequency of one per 600 feet. Upon the development of the adjacent parcels, any fencing or gates at the stubs shall be opened.

   b. If the adjacent Residential, Commercial, Mixed-Use, and Office districts are developed and provide connection points via breaks in the perimeter wall/fence or stub streets, then the project shall provide pedestrian walkway connections at those locations.

c. If the adjacent Residential, Commercial, Mixed-Use, and Office districts are developed there are no possible connection points via breaks in the perimeter wall/fence, then the project shall not be required to provide connections.

3. **To Circulation Network.** Regular connections between on-site walkways and the public sidewalk and other planned or existing pedestrian routes shall be provided. An on-site walkway shall connect the primary building entry or entries to a public sidewalk on each street frontage.

4. **To Streets.** Direct and convenient access shall be provided to adjoining residential and commercial areas to the maximum extent feasible while still providing for safety and security.

5. **To Transit.** Safe and convenient pedestrian connections shall be provided from transit stops to building entrances.

6. **Pedestrian Walkway Design.**

a. Walkways shall be a minimum of four feet wide, shall be hard-surfaced, and paved with concrete, stone, tile, brick, or comparable material.

b. Where a required walkway crosses driveways, parking areas, or loading areas, it must be clearly identifiable through the use of a raised crosswalk, a different paving material, or similar method.

c. Where a required walkway is parallel and adjacent to an auto travel lane, it must be raised or separated from the auto travel lane by a raised curb at least six inches high, bollards, or other physical barrier.

F. **Service Areas and Loading.** Service and loading areas should be integrated with the design of the building and shall be screened from residential areas. Special attention shall be given when designing loading facilities in a location that is proximate to residential uses. Techniques such as block walls, enhanced setbacks, or enclosed loading bays can minimize adverse impacts to residents.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 24, eff. 7-27-25).

SEC. 15-1205. FAÇADE DESIGN DEVELOPMENT STANDARDS.

A. **Building Articulation.** All street-facing façades, including freeway-facing façades, must include at least one projection or recess at least two feet in depth for every 25 horizontal feet of wall.

B. **Building Materials and Finishes.**

1. Each side of a building that is visible from a street or passenger railway shall be designed with a complementary level of detailing and quality of materials.

2. Veneers should turn corners, avoiding exposed edges and continue down the side of a building to a logical break, such as a change in wall plane. Material changes at outside corners should be avoided.

3. Windows shall maintain a consistent design character throughout the development and shall be of the same material on all elevations facing a street.
4. Building entrances and common areas shall be accentuated with enhanced finishes and materials that are durable and high quality and distinguish these spaces from other elements of the building.
5. Parking areas and structures shall be designed to match and be compatible with the architectural character, materials, and colors of the overall development.
6. The design of building additions should follow the same general scale, proportion, massing, and detailing of the original structure, and not in stark contrast to the original structure.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 13 EMPLOYMENT DISTRICTS (E)

Sec. 15-1301. Purpose.
Sec. 15-1302. Use Regulations.
Sec. 15-1303. Intensity and Massing Development Standards.
Sec. 15-1304. Site Design Development Standards.
Sec. 15-1305. Façade Design Development Standards.

SEC. 15-1301. PURPOSE.

The purposes of the Employment Districts are to:

A. Designate adequate land for industrial, office, research and development, and flexible commercial uses to strengthen the city's economic base and provide a range of employment opportunities for the current and future population of the city and region.

B. Provide for the appropriate location of businesses that may have the potential to generate off-site impacts, while providing to ensure compatibility in use and form with existing and planned land uses.

C. Provide appropriate buffers between employment centers and residential uses.

D. Implement and provide appropriate regulations for General Plan classifications of "Office," "Business Park," "Regional Business Park," "Light Industrial," and "Heavy Industrial."

Additional purposes of each Employment District are as follows:

O Office. The O district is intended to provide sites for administrative, financial, business, professional, medical, and public offices, as identified by the General Plan. Retail uses would be limited to business services and food service and convenience goods for those who work in the area. This district is intended for locations where the noise or traffic generated by retail sales, restaurants, and service commercial may be incompatible with surrounding residential neighborhoods.

BP Business Park. The BP district is intended to provide a campus-type office professional environment that is well suited for large offices or multi-tenant buildings on sites identified by the General Plan. This district is intended to accommodate and allow for the expansion of small businesses with limited outdoor storage screened with landscaping proximate to residential uses. Typical land uses include research and development, laboratories, administrative and general offices, medical offices and clinics, and professional offices. Small-scale retail and service uses serving local employees and visitors are permitted as secondary uses.

RBP Regional Business Park. The RBP district is intended for large or campus-like office and technology development that includes office, research and development, manufacturing, and other large-scale, professional uses with limited and properly screened outdoor storage. Permitted uses include incubator-research facilities, prototype manufacturing, testing,

repairing, packaging, and printing as well as offices and research facilities, on sites identified by the General Plan. Small-scale retail and service uses serving local employees and visitors are permitted as secondary uses.

IL Light Industrial. The IL district is intended to provide areas, as identified by the General Plan, for a diverse range of light industrial uses, including limited manufacturing and processing, research and development, fabrication, utility equipment and service yards, wholesaling, warehousing, and distribution activities. Small-scale retail and ancillary office uses are also permitted. Light Industrial areas may serve as buffers between Heavy Industrial Districts and other land uses and otherwise are generally located in areas with good transportation access, such as along railroads and freeways.

IH Heavy Industrial. The IH district is intended to accommodate the broadest range of industrial uses on sites identified in the General Plan. It includes manufacturing, assembly, wholesaling, distribution, and storage activities that are essential to the development of a balanced economic base. Small-scale commercial services and ancillary office uses are also permitted.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1302. USE REGULATIONS.

A. Table 15-1302 below prescribes the proposed land use regulations for Employment Districts. The regulations for the district are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-1302: LAND USE REGULATIONS—EMPLOYMENT DISTRICTS						
Use Classifications	*O*	*BP*	*RBP*	*IL*	*IH*	*Additional Regulations*
Residential Use Classifications						
Caretaker Residence	-	-	-	P(2)	P(2)	
Lodging-to-Dwelling Conversion	C	C	C	C	C	§ 15-2737.5 Lodging-to-Dwelling Conversion Requirements
Multi-Unit Residential	P(17) (18) (19) (20)	-	-	-	-	§ 15-2742.5 Office-to-Dwelling Conversion
Public and Semi-Public Use Classifications						
Colleges and Trade Schools, Public or Private	P(3)	P(3)	P(3)	P	P	
Community and Religious Assembly (less than 2,000 square feet)	P	P	P	P	-	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	P	P (14)	P (14)	P (14)	-	
Community Garden	P	P	P	P	P	§ 15-2720, Community Gardens/ Urban Farms
Conference/Convention Facility	C	C	C	-	-	
Cultural Institutions	P	P	P	-	-	
Day Care Centers	P	P	P	P (15)		§ 15-2725, Day Care Centers and Family Child Care Homes
Emergency Shelter	-	-	P	P	-	§ 15-2729, Emergency Shelters
Government Offices	P	P	P	P	P	
Hospitals and Clinics						
Hospital	C(11)	C(11)	C(11)	C(11)	C(11)	
Clinic	P	P	P	C	-	
Substance Abuse Treatment Clinic	C(13)	C(13)	C(13)	C(13)	-	
Instructional Services	P	P	P	P	P	
Park and Recreation Facilities, Public	P	P	P	P	P	
Parking, Public or Private	P	P	P	P	P	
Public Safety Facilities	P	P	P	P	P	
Schools, Public or Private	P	P	P	P	-	
Social Service Facilities	C	C	C	C	-	
Commercial Use Classifications						
Adult-Oriented Business	-	-	-	C	C	§ 15-2705, Adult-Oriented Businesses; § 9-2001, Picture and Live Arcades
Aircraft Sales, Services, and Storage	-	P	P	P	P	
Animal Care, Sales and Services						
Kennels	-	P	P	P	P	
Veterinary Services	C	P	P	P	P	
Artist's Studio	P	P	-	P	-	
Automobile/Vehicle Sales and Services						
Automobile Rentals	P	P	P	P	P	§ 15-2709, Automobile and Motorcycle Retail Sales and Leasing

TABLE 15-1302: LAND USE REGULATIONS—EMPLOYMENT DISTRICTS						
Use Classifications	*O*	*BP*	*RBP*	*IL*	*IH*	*Additional Regulations*
Automobile/Vehicle Sales and Leasing	-	P	P	P	-	§ 15-2709, Automobile and Motorcycle Retail Sales and Leasing
Automobile/Vehicle Repair, Major	P	P	P	P	P	§ 15-2710, Automobile/Vehicle Service and Repair, Major and Minor
Automobile/Vehicle Service and Repair, Minor	P	P	P	P	P	
Large Vehicle and Equipment Sales, Service and Rental	P	P	P	P	P	
Service Station	P	P	P	P	P	§ 15-2755, Service Stations
Towing and Impound	-	-	-	C	C	§ 15-2765, Vehicle Impound Yard (Tow Yard) and Transit Storage
Washing	P	P	P	P	P	§ 15-2711, Automobile/Vehicle Washing
Banks and Financial Institutions						
Banks and Credit Unions	P	P	P	P	-	
Check Cashing Businesses and Payday Lenders	-	-	-	-	-	§ 15-2715, Check Cashing Businesses, Payday Lenders, and Similar Financial Services
Business Services	P	P	P(6)	P	P	
Banquet Hall	C	C	C	C	-	§ 15-2712, Banquet Hall
Eating and Drinking Establishments						
Restaurant with Alcohol Sales	C	C	C	C	C	§ 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges; § 15-2744, Outdoor Dining and Patio Areas
Restaurant without Alcohol Sales	P	P	P	P	P	
Entertainment and Recreation						
Motorcycle/Riding Club	-	-	-	P	P	§ 15-2742, Motorcycle/Riding Clubs
Shooting/Archery Range	-	-	-	P	P	§ 15-2756, Shooting Ranges/ Archery Ranges
Small-Scale	-	C	C	C	-	§ 15-2708, Arcades, Video Games, and Family Entertainment Centers, § 9-1801, Billiard Rooms
Food and Beverage Sales						
Farmer's Market	P	P	P	P	-	
General Market	P	P	P	P	-	§ 15-2744, Outdoor Dining and Patio Areas; § 15-2745, Outdoor Retail Sales
Healthy Food Grocer	-	P	P	P	-	
Food Preparation	-	P	P	P	P	
Funeral Parlors and Internment Services	-	P	P	P	-	§ 15-2714, Body Preparation and Funeral Services
Live/Work	-	-	-	P	-	
Lodging						
Hotels and Motels	P	P	P	P	-	
Maintenance and Repair Services	-	P	P	P	P	
Offices						
Business and Professional	P	P	P	P	P	
Medical and Dental	P	P	P	P	-	

TABLE 15-1302: LAND USE REGULATIONS—EMPLOYMENT DISTRICTS						
Use Classifications	*O*	*BP*	*RBP*	*IL*	*IH*	*Additional Regulations*
Walk-In Clientele	P	P	P	P	-	
Personal Services						
General Personal Services	P	P	P	P	-	
Tattoo or Body Modification Parlor	-	-	-	P	-	§ 15-2758, Tattoo or Body Modification Parlor
Retail Sales						
Building Materials and Services	-	-	-	P	P	§ 15-2745, Outdoor Retail Sales
Convenience Retail	P(4)	P(4)	P(4)	P(4)	P(4)	§ 15-2745, Outdoor Retail Sales; 15-2761 Tobacco and Vapor Shops
General Retail	P(4)	P(4)	P(4)	P(4)	P(4)	§ 15-2733, Hobby Stores; § 15-2745, Outdoor Retail Sales
Large-Format Retail	-	P(8)	P(8)	P(8)	P(8)	§ 15-2737, Large-Format Retail; § 15-2745, Outdoor Retail Sales
Nurseries and Garden Centers	-	-	-	C	-	§ 15-2745, Outdoor Retail Sales
Swap Meet/Flea Market	-	-	-	C	-	§ 15-2731, Flea Markets
Industrial Use Classifications						
Construction and Material Yards	-	P(16)	P(16)	P(16)	P(16)	§ 15-2721, Concrete Batch Plants, Storage Yards, and Similar Uses
Custom Manufacturing	-	P(8)	P(8)	P	P	
Limited Industrial	-	P(8)	P(8)	P	P	
General Industrial	-	C	C	P	P	
Intensive Industrial	-	-	-	-	C	§ 15-2732, Hazardous Waste Management Facilities
Recycling Facility						
Reverse Vending Machine	P	P	P	P	P	§ 15-2750, Recycling Facilities
CRV Recycling Center	-	-	-	C	C	
Recycling Processing Facility	-	-	-	C	C	
Research and Development	P	P	P	P	P	
Salvage and Wrecking	-	-	-	-	C	§ 15-2768, Wrecking Yards and Auto Dismantling
Warehousing, Storage, and Distribution						
Chemical and Mineral Storage	-	-	-	C	C	§ 15-2732, Hazardous Waste Management Facilities
Indoor Warehousing and Storage	-	P	P	P	P	
Outdoor Storage	-	P(8) (16)	P(8) (16)	P(16)	P(16)	§ 15-2721, Concrete Batch Plants, Storage Yards, and Similar Uses
Personal Storage	C	P	P	P	P	§ 15-2747, Personal (Mini) Storage
Wholesaling and Distribution	-	P	P	P	P	
Transportation, Communication, and Utilities Use Classifications						
Airports and Heliports	-	C(9)	C(9)	C	C	
Communication Facilities						
Antenna and Transmission Towers	§ 15-2759, Telecommunications and Wireless Facilities					
Facilities within Buildings	P	P	P	P	P	
Freight/Truck Terminals and Warehouses	-	P	P	P	P	
Light Fleet-Based Services	C	P	P	P	P	
Utilities, Major	-	-	C	P	P	
Utilities, Minor	P	P	P	P	P	

TABLE 15-1302: LAND USE REGULATIONS—EMPLOYMENT DISTRICTS						
Use Classifications	*O*	*BP*	*RBP*	*IL*	*IH*	*Additional Regulations*
Waste Transfer Facility	-	-	-	C	C	§ 15-2732, Hazardous Waste Management Facilities
Agricultural and Extractive Use Classifications						
Agricultural Labor Housing	-	-	-	P	P	
Agricultural Processing	-	C	C	P	P	§ 15-2732, Hazardous Waste Management Facilities
Agricultural Support Services	-	C	P	P	P	
Animal Raising	-	-	-	-	-	
Crop Cultivation	-	-	-	P	P	§ 15-2716, Crop Cultivation
Dairy	-	-	-	-	-	
Mining and Quarrying	-	-	-	-	C	
Produce Stand	-	-	-	P	P	§ 15-2752, Roadside Fruit Stands/ Grower Stands
Rendering	-	-	-	-	C	
Sales Lot, Feed Lot, Stockyard	-	-	-	C	P	
Slaughterhouse	-	-	-	-	C	
Tasting Room	-	C	C	C	C	
Urban Farm	-	-	-	P	P	§ 15-2720, Community Gardens/ Urban Farms
Other Applicable Types						
Accessory Uses and Structures	§ 15-2703, Accessory Uses					
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping					
Animal Keeping	§ 15-2707, Animal Keeping					
Drive-In and Drive-Through Facilities	C	C	C	C	C	§ 15-2728, Drive-In and Drive-Through Facilities
Walk-Up Facilities	§ 15-2766, Walk-Up Facilities					
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots					
Temporary Use	§ 15-2760, Temporary Uses					

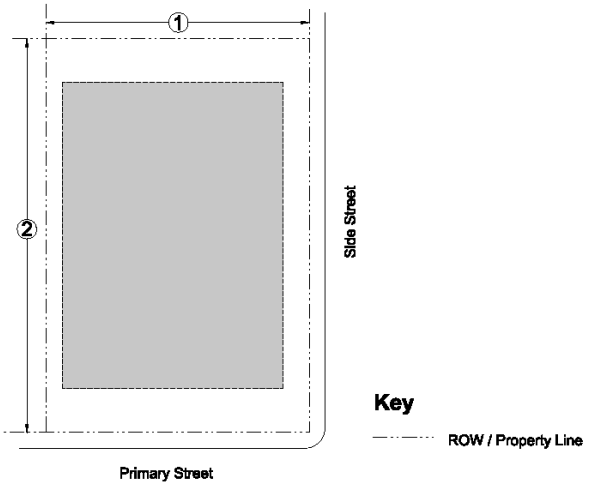
TABLE 15-1302: LAND USE REGULATIONS—EMPLOYMENT DISTRICTS						
Use Classifications	*O*	*BP*	*RBP*	*IL*	*IH*	*Additional Regulations*
Specific Limitations: 1. Permitted if existing, no new units are allowed. 2. One caretaker dwelling is allowed where having a caretaker living on the site is necessary for the conduct of the on-site business. 3. Not to include industrial training such as welding or automotive repair involving the use of tools and materials appropriate to an industrial use area. 4. Limited to establishments with a gross floor area of 6,000 square feet or less. 5. Not allowed on the ground floor. 6. Permitted only as an accessory use that supports business and office parks, corporate offices, and industrial uses. 7. Limited to membership club retailers and located on an arterial or higher classifications street. 8. Outdoor storage shall be incidental to a primary use and screened from public view. 9. Limited to heliports used as accessory to a hospital. 10. Limited to upper stories unless at least 50 percent of ground floor street frontage is occupied by food service use. 11. Building heights for hospitals shall not exceed 150 ft. There is no maximum Floor Area Ratio for hospitals. 12. Must be closed between the hours of 10 p.m. and 6 a.m. 13. Must include an indoor waiting area. 14. When located within 300 of an Intensive Industrial use a Conditional Use Permit shall be required. 15. Shall be required to comply with Master Environmental Impact Report mitigation measures MM AIR-2, MM AIR-3, and MM AIR-4 if applicable. 16. A courtesy notice will be provided to all properties within 1,000 feet of these uses when approved. 17. Permitted in conversions of existing office building(s). 18. Permitted for the construction of new residential uses on vacant or underutilized parcels. Housing projects shall meet the requirements of the RM-1, RM-2 or RM-3 District, § 15-1003. 19. New residential development is prohibited on vacant or underutilized parcels located in the Office Zone District within 500 feet of a school. 20. New residential development building height shall be limited to 45 feet unless the project is located within a half mile of the intersection of two Major Transit Stops as defined in Appendix M of the California Environmental Quality Act Guidelines.						

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 14, eff. 10-21-16; Am. Ord. 2018-66, § 11, eff. 1-18-19; Am. Ord. 2020-031, § 4, 9-1-20; Am. Ord. 2025-024, § 25, eff. 7-27-25; Am. Ord. 2025-023, § 3, eff. 12-26-25).

SEC. 15-1303. INTENSITY AND MASSING DEVELOPMENT STANDARDS.

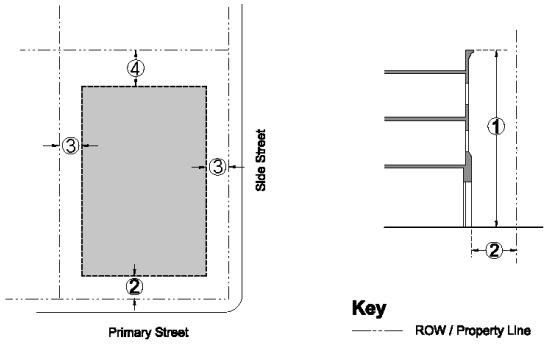
Tables 15-1303-1 to 15-1303-2 prescribe the intensity and massing development standards for the Employment Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

TABLE 15-1303-1: LOT AND INTENSITY STANDARDS—EMPLOYMENT DISTRICTS



District	O	BP	RBP	IL	IH	Additional Regulations	#
Minimum District Size	-	-	5 acres	-	-		
Minimum Lot Size (sq. ft.)	7,500	10,000	-	9,000	9,000		
Minimum Lot Width (ft.)	65	65	150	75	75		①
Minimum Lot Depth (ft.)	110	110	200	120	120		②
Maximum Floor Area Ratio (FAR)	2.0	1.0	1.0	1.5	1.5	§ 15-309, Determining Floor Area Ratio	

TABLE 15-1303-2: BUILDING FORM AND LOCATION STANDARDS—EMPLOYMENT DISTRICTS



District	O	BP	RBP	IL	IH	Additional Regulations	#
Maximum Height (ft.)	60	60	60	60	60	§ 15-2012, Heights and Height Exceptions § 15-1304-A, Residential Transition Standards § 15-1304-C, Exceptions to Maximum Height in IL and IH Districts	①

TABLE 15-1303-2: BUILDING FORM AND LOCATION STANDARDS—EMPLOYMENT DISTRICTS							
Minimum Setbacks (ft.)						§ 15-313, Determining Setbacks § 15-1304-A, Residential Transition Standards § 15-1304-D, Enhanced Streetscape § 15-1304-E, Parking Setbacks § 15-2014, Projections/ Encroachments into Yards § 15-2305, Areas to be Landscaped	
Front (Major Street)	15	15	15	15	15		②
Front (Major Street), with Enhanced Streetscape	-	NA	NA	NA	NA		
Front (Local Street)	-	-	-	-	-		
Side	-	-	-	-	-		③
Rear	-	-	-	-	-		④
Parking, from back of sidewalk or curb	15	15	15	-	-		

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1304. SITE DESIGN DEVELOPMENT STANDARDS.

A. **Residential Transition Standards.** Where an E District abuts a Residential District, the following standards apply:

1. **Height.** The maximum height within 40 feet of a Residential District is limited to 30 feet. The maximum height within 50 feet of a residential district is 40 feet.

2. **Setbacks.**

   a. **Front and Street Side Yards.** The front setback shall not be less than the required front yard on the abutting Residential District lot within 75 feet of the Residential District.

   b. **Interior Side and Rear for the IL and IH Districts.** The interior side and rear setback abutting a Residential District boundary shall be no less than 50 feet.

   c. **Interior Side and Rear Setbacks for All Other Employment Districts.** The interior side and rear setback abutting a Residential District boundary shall be 20 feet.

3. **Landscape.** See Table 15-2305-C.1, Required Landscape Buffers.

4. **Screening.** When a multi-story building is proposed and the second story or above is located within 50 feet of the side or rear yard of a single-unit lot, screening measures shall be applied to provide a reasonable degree of privacy.

   a. Screening measures include, but are not limited to, landscaping, alternate window and balcony placements, placing windows at least six feet from the floor of the interior of the unit, incorporating wing walls or louvers, using glass block or other translucent material, and other such methods.

   b. **Sufficiency of Screening.** The Review Authority shall determine the sufficiency of the proposed screening measures and may require additional measures.

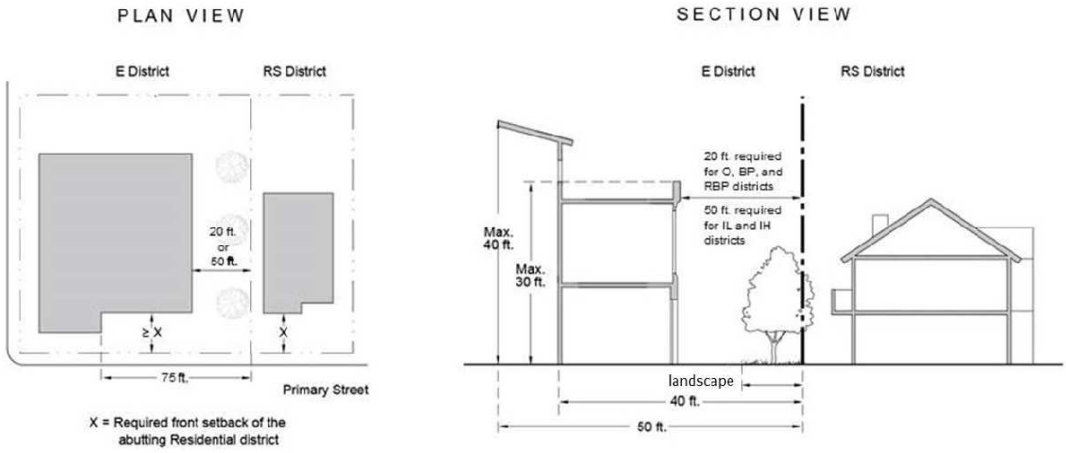


FIGURE 15-1304-A: RESIDENTIAL TRANSITION STANDARDS—E DISTRICTS

B. **Exceptions to Maximum Height in Woodward Park Area.** Within the geographic area that is hatched in Figure 15-1304-B, the maximum permitted building height may be increased to 120 feet. Such projects shall conform to the residential transition standards in Section 1304-A and shall be subject to a Planned Development Permit.

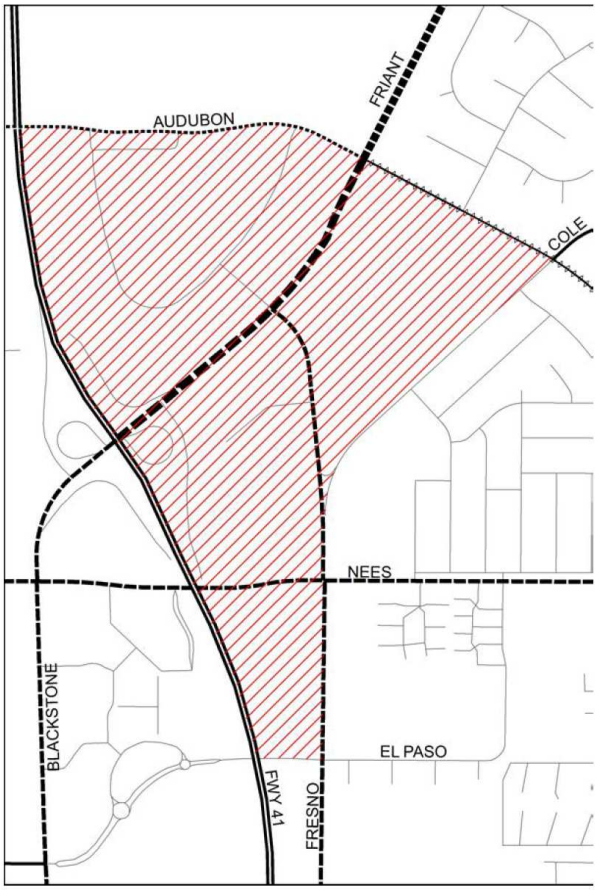


FIGURE 15-1304-B: EXCEPTIONS TO MAXIMUM HEIGHT IN WOODWARD PARK AREA

C. **Exceptions to Maximum Height in IL and IH Districts.** Within the IL and IH Districts, uninhabited structures such as silos, cooling towers, and similar structures used for storage and manufacturing may exceed the maximum height prescribed in 15-1303-2 by no more than 40 feet. Height in excess of 100 feet for such structures is subject to a Conditional Use Permit.

D. **Enhanced Streetscape.** Projects in O Districts which include buildings with a front setback of less than 15 feet shall provide the following streetscape enhancements:

1. Sidewalks shall be no less than 12 feet in width.

2. Street trees shall be provided as follows:

    a. Street trees should be located no more than three feet from the back of curb, and whenever possible should be aligned with other trees on the block.

b. Street trees should generally be evenly spaced, no less than 20 feet apart, and not more than 40 feet apart.

c. Whenever possible, trees should not be located directly in front of building entrances.

d. Trees should be placed in tree wells measuring five feet by five feet. To maximize usable sidewalk area, tree wells shall be covered by grates of a design which is approved by the Director. Larger tree wells may be required by the Public Works Director for species requiring more space. The property owner shall assume maintenance responsibilities for the tree grates.

e. Street trees should be deciduous, fast growing, drought tolerant, and should eventually form a tall canopy. Not more than one species should be planted per block. Whenever nearby pre-existing trees are in good condition and meet the intent of this section, new trees should be of the same species.

3. Pedestrian-scaled street lights shall be provided as follows:

a. Street lights should be located no more than three feet from the curb, and whenever possible should be aligned with street trees and other lights on the block.

b. Street lights should be generally evenly spaced, no less than 30 feet apart, and not more than 80 feet apart. Whenever possible, street lights should be no less than 15 feet from nearby street trees.

c. Street lights should not be of the type commonly known as Cobra Heads or other types which are intended primarily for the illumination of the vehicular roadway. Lights should be ornamental and designed primarily for the illumination of the sidewalk. Whenever nearby pre-existing lights are in good condition and meet the intent of this section, new lights should be of the same type. Intersection safety lights shall be typical cobra-head design, while mid-block lighting should be ornamental and scaled for the pedestrian environment. Lighting shall meet Public Works standards.

4. Facades located with 15 feet of the public sidewalk shall be oriented to the street as follows:

a. If there is a primary common building entrance which provides access to reception areas, elevators, stairs, and internal circulation, it shall face and be oriented to the street. If there is a yard between the sidewalk and the building, a paved path six feet in width shall be provided from the public sidewalk to the entrance.

b. Direct entrances from the sidewalk in to individual establishments located along the street frontage shall be provided. If there is a yard between the sidewalk and the building, a paved path six feet in width shall be provided from the public sidewalk to the entrance.

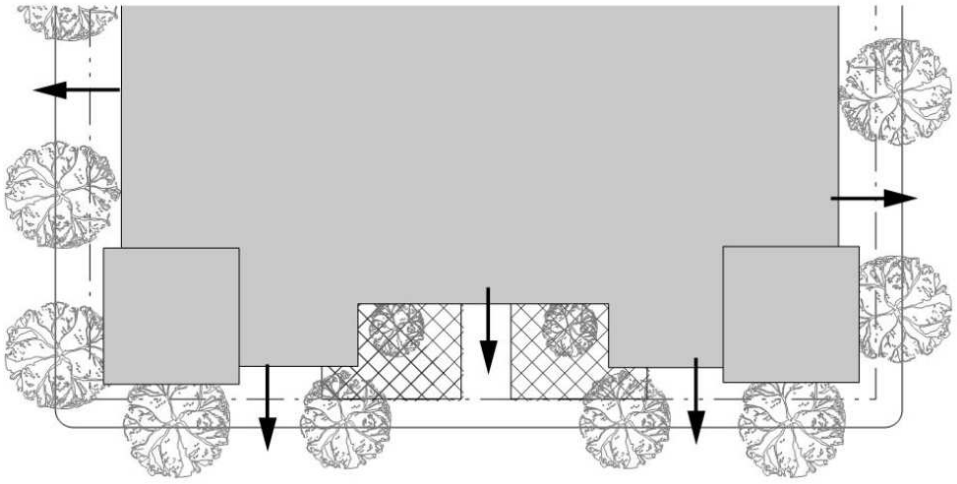


FIGURE 15-1304-D-4: BUILDING ORIENTATION TO THE STREET

5. Exterior walls facing a front or street side lot line shall include windows, doors, or other openings with transparent glazing for at least 60 percent of the building wall area located between 2.5 and seven feet above the level of the sidewalk. Openings fulfilling this requirement shall have transparent glazing and provide views into work areas, display areas, sales areas, lobbies, or similar active spaces, or into window displays that are at least two feet deep.

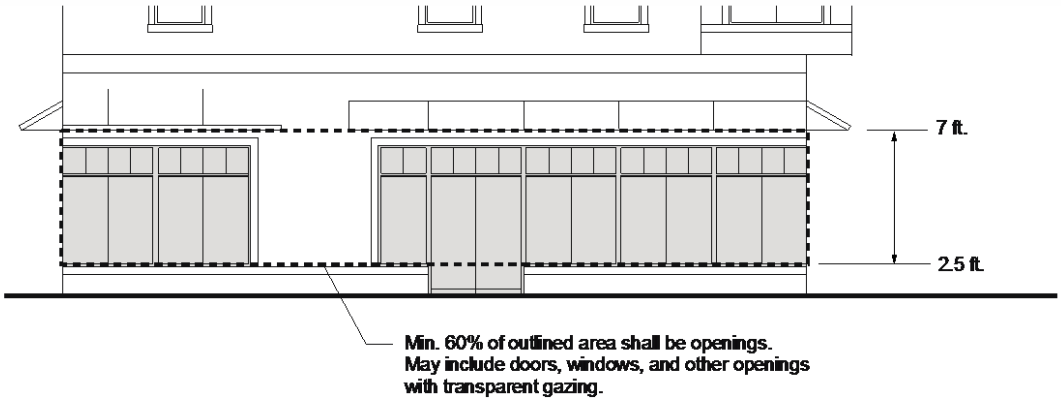


FIGURE 15-1304-D-5: BUILDING TRANSPARENCY

6. Where buildings are located within two feet of a public sidewalk, the sidewalk shall be shaded by awnings or canopies as follows:

   a. Awning or canopy depth shall be no less than four feet and no more than 10 feet.

   b. Clearance shall be no less than eight feet and no more than 12 feet from the finished floor.

E. **Parking Setbacks.** In the O, BP, and RBP Districts, parking shall be set back from the street facing lot line as shown in Table 15-1303-2, except as provided below:

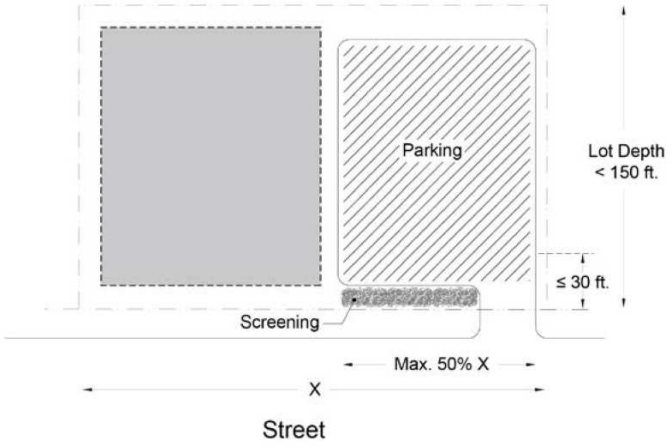


FIGURE 15-1304-E.1: SURFACE PARKING SCREENING

1. **Surface Parking.** On lots less than 150 feet in width or depth, the parking setback may be reduced to six feet. This area shall be landscaped. Parking spaces shall be screened with a minimum three foot high berm, wall, or hedge, or combination thereof.

2. **Partially Submerged and Podium Parking.** Parking that is partially below the street grade may extend to the setbacks of the main structure. A maximum six feet of the parking structure height may extend above the street grade if screened along street facing elevations by foundation plant materials. Gates need not be screened.

3. **Underground Parking.** Parking that is fully underground and below the street grade may extend from property line to property line.

4. **Carports.** If proposed on a Major Street in the O or the BP Districts, carports:

   a. Should generally be located away from major streets.

   b. There shall be no more than six consecutive carport spaces parallel to major streets, with a minimum distance of 20 feet between every six carport spaces.

5. **Driveways.** The location and width of driveways shall be minimized; they are permitted only to provide access to garages, carports, and parking areas. Curb cuts are limited to one for every 50 feet of street frontage.

F. **Pedestrian Access.** Within the O District, on-site pedestrian circulation and access must be provided according to the following standards.

1. **To Streets.** Direct and convenient access shall be provided to adjoining residential and commercial areas to the maximum extent feasible while still providing for safety and security.

2. **To Transit.** Safe and convenient pedestrian connections shall be provided from transit stops to building entrances.

3. **To Circulation Network.** Regular connections between on-site walkways and the public sidewalk and other planned or existing pedestrian routes shall be provided. An on-site walkway shall connect the primary building entry or entries to a public sidewalk on each street frontage.

4. **Internal Connections.** A system of pedestrian walkways shall connect all buildings on a site to each other, to on-site automobile and bicycle parking areas, and to any on-site open space areas or pedestrian amenities.

5. **External Connections.** In the O District, a system of pedestrian walkways shall connect the project site to adjacent Residential, Commercial, Mixed Use, Office districts as follows:

    a. If the adjacent Residential, Commercial, Mixed Use, and Office districts are undeveloped, stub connections shall be provided at a frequency of one per 600 feet. Upon the development of the adjacent parcels, any fencing or gates at the stubs shall be opened.

    b. If the adjacent Residential, Commercial, Mixed Use, and Office districts are developed and provide connection points via breaks in the perimeter wall/fence or stub streets, then the project shall provide pedestrian walkway connections at those locations.

    c. If the adjacent Residential, Commercial, Mixed Use, and Office districts are developed there are no possible connection points via breaks in the perimeter wall/fence, then the project shall not be required to provide connections.

6. **Pedestrian Walkway Design.**

    a. Walkways shall be a minimum of four feet wide, shall be hard-surfaced, and paved with concrete, stone, tile, brick, or comparable material.

    b. Where a required walkway crosses driveways, parking areas, or loading areas, it must be clearly identifiable through the use of a raised crosswalk, a different paving material, or similar method.

    c. Where a required walkway is parallel and adjacent to an auto travel lane, it must be raised or separated from the auto travel lane by a raised curb at least six inches high, bollards, or other physical barrier.

G. **Service Areas and Loading.** Service and loading areas should be integrated with the design of the building and shall be screened from residential areas. Special attention shall be given when designing loading facilities in a location that is proximate to residential uses. Techniques such as block walls, enhanced setbacks, or enclosed loading can minimize adverse impacts to residents.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 10, eff. 6-11-18; Am. Ord. 2025-024, § 26, eff. 7-27-25).

SEC. 15-1305. FAÇADE DESIGN DEVELOPMENT STANDARDS.

A. **Building Articulation.** In the O District, all street-facing façades must include at least one projection or recess at least two feet in depth for every 25 feet of horizontal feet of wall.

B. **Building Materials and Finishes.**

1. In the O District, the following standards shall apply:
    a. Each side of a building that is visible from a Major Street shall be designed with a complementary level of detailing and quality of materials.
    b. There shall be a minimum of two exterior wall finish materials.
    c. Veneers should turn corners, avoiding exposed edges and continue down the side of a building to a logical break, such as a change in wall plane. Material changes at outside corners should be avoided.
    d. Building entrances and common areas shall be accentuated with enhanced finishes and materials that are durable and high quality and distinguish these spaces from other elements of the building.
    e. Metal buildings should employ a variety of building forms shapes, colors, materials, and other architectural treatments to add visual interest and variety to the building. Architectural treatments should emphasize the primary entrance to the building.
    f. Unless roofing materials are part of the design element (for example, tiles, concrete, or metal roofing elements), the ridge line elevation should not exceed the parapet elevation.
    g. Windows shall maintain a consistent design character throughout the development and shall be of the same material on all elevations facing a street.
    h. Parking areas and structures shall be designed to match and be compatible with the architectural character, materials, and colors of the overall development.
2. In the BP and RBP Districts, buildings within 100 feet of a major street shall apply at least two of the following standards:
    a. Use a minimum of two exterior wall finish materials shall be used.
    b. Use a minimum of three exterior paint colors.
    c. Design street-facing façades to have an overall wall composition of at least 20 percent glazing.
    d. Provide one inset of six inches in depth, 10 feet in height, and 20 feet in width for every 50 feet of wall length.
    e. Provide canopies or awnings with at least four feet of projection for at least 50 percent of the wall length.

f. Employ an architectural treatment to the primary entrance(s) such as decorative lighting, increased height, or enhanced materials.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 14 PUBLIC AND SEMI-PUBLIC DISTRICTS (PSP)

Sec. 15-1401. Purpose.
Sec. 15-1402. Use Regulations.
Sec. 15-1403. Intensity and Massing Development Standards.
Sec. 15-1404. Site Design Development Standards.

SEC. 15-1401. PURPOSE.

The specific purposes of the Public and Semi-Public Districts are to:

A. Provide areas for a wide range of public facilities, including parks and open space, educational facilities, cultural and institutional uses, health services, municipal offices, general government operations, utility and public service needs, and other public or quasi-public facilities.

B. Ensure that the development and operation of public and semi-public uses protects and enhances the character and quality of life of surrounding residential areas.

C. Ensure the provision of services and facilities needed to serve residents, businesses, and visitors and maintain a high quality of life standard.

D. Implement and provide appropriate regulations for General Plan classifications of "Open Space," and "Public and Institutional."

Additional purposes of each Public and Semi-Public District are as follows:

OS Open Space. The OS district is intended for undeveloped park lands and permanent open spaces in the community, including environmentally-sensitive lands, waterways, and wetlands. It is also intended to safeguard the health, safety, and welfare of the people by limiting development in areas where police and fire services, protection against flooding by storm water, and mitigation of excessive erosion are not possible without excessive costs to the community. This district may include trails and other low-impact public recreational uses, ponding basins, riverbottoms/riverbeds, and airport approach/clear zones. Access may be restricted to areas of sensitive habitat or which pose a danger to the public.

PR Parks and Recreation. The PR district is intended to maintain areas for active and passive public parks and multi-purpose trails, including outdoor and indoor recreation such as playing fields, trails, playgrounds, community centers, and other appropriate recreational uses. The PR district may include ponding basins or airport approach/clear zones if developed for, programmed, and actively used as recreation fields.

PI Public and Institutional. The PI district is for public or quasi-public facilities, including City facilities, utilities, schools, health services, corporation yards, utility stations, and similar uses. Accessory retail uses and services, including food facilities and childcare, are permitted.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1402. USE REGULATIONS.

A. Table 15-1402 prescribes the proposed land use regulations for Public and Semi-Public Districts. The regulations for the districts are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"-" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Determination.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-1402: LAND USE REGULATIONS—PUBLIC AND SEMI-PUBLIC DISTRICTS

Use Classifications	*OS*	*PR*	*PI*	*Additional Regulations*
Residential Use Classifications				
Multi-Unit Residential	-	-	P(8)	
Public and Semi-Public Use Classifications				
Cemetery	P	-	P	
Colleges and Trade Schools, Public or Private	-	-	P	
Community and Religious Assembly (less than 2,000 square feet)	C(1)	P(1)	P	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	-	P(1)	P	
Community Garden	P	P	P	§ 15-2720, Community Gardens/Urban Farms
Conference/Convention Facility	-	-	P	
Cultural Institutions	-	P	P	
Day Care Centers	-	-	P	§ 15-2725, Day Care Centers and Family Child Care Homes
Emergency Shelter	-	-	P	§ 15-2729, Emergency Shelters
Government Offices	-	-	P	
Hospitals and Clinics				

TABLE 15-1402: LAND USE REGULATIONS—PUBLIC AND SEMI-PUBLIC DISTRICTS				
Use Classifications	*OS*	*PR*	*PI*	*Additional Regulations*
Hospital	-	-	P(5)	
Clinic	-	-	P	
Substance Abuse Treatment Clinic	-	-	C(6)	
Instructional Services	-	-	P	
Park and Recreation Facilities, Public	P	P	P	
Parking, Public or Private	C	C	C	
Public Safety Facilities	C	C	P	
Schools, Public or Private	-	-	P	
Social Service Facilities	-	-	P	
Commercial Use Classifications				
Animal Care, Sales and Services				
Kennels	-	-	C(2)	
Eating and Drinking Establishments				
Restaurant with Alcohol Sales	-	-	C(3)	§ 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges; § 15-2744, Outdoor Dining and Patio Areas
Restaurant without Alcohol Sales	-	P(3)	P(3)	
Entertainment and Recreation				
Large-Scale	-	P(7)	-	
Food and Beverage Sales				
Farmer's Markets	-	C	P	§ 15-2730, Farmer's Markets
Retail Sales				
General Retail	-	-	P(3)	§ 15-2745, Outdoor Retail Sales
Industrial Use Classifications				
Recycling Facility				
Reverse Vending Machine	-	-	-	§ 15-2750, Recycling Facilities
Recycling Processing Facility	-	-	C	
Transportation, Communication, and Utilities Use Classifications				
Airports and Heliports	-	-	C(4)	
Communication Facilities				
Antenna and Transmission Towers	§ 15-2759, Telecommunications and Wireless Facilities			
Facilities within Buildings	-	-	P	
Transportation Passenger Terminals	-	-	P	
Utilities, Major	C	-	P	
Utilities, Minor	P	P	P	
Waste Transfer Facility	-	-	C	
Agricultural and Extractive Use Classifications				
Agricultural Labor Housing	P	-	-	
Crop Cultivation	P	-	-	§ 15-2716, Crop Cultivation
Produce Stand	P	-	-	§ 15-2752, Roadside Fruit Stands/ Grower Stands
Urban Farm	P	-	-	§ 15-2720, Community Gardens/Urban Farms
Other Applicable Types				
Accessory Uses and Structures	§ 15-2703, Accessory Uses			
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping			

TABLE 15-1402: LAND USE REGULATIONS—PUBLIC AND SEMI-PUBLIC DISTRICTS				
Use Classifications	*OS*	*PR*	*PI*	*Additional Regulations*
Animal Keeping	§ 15-2707, Animal Keeping			
Drive-In and Drive-Through Facilities	-	-	-	§ 15-2728, Drive-In and Drive-Through Facilities
Walk-Up Facilities	§ 15-2766, Walk-Up Facilities			
Non-Conforming Use	Article 4, Non-Conforming Uses, Structures, Site Features, and Lots			
Temporary Use	§ 15-2760, Temporary Uses			
Specific Limitations: 1. Limited to facilities associated with park and recreation facilities. 2. Limited to government or non-profit animal shelters located a minimum of 100 feet from a residential use or district. 3. Limited to gift shops, cafes, and restaurants that are an accessory to cultural institutions, community and religious assembly, and conference/convention centers. 4. Heliports used as accessory to a hospital are permitted by right and shall not require a Conditional Use Permit. 5. Building heights for hospitals shall not exceed 150 ft. There is no maximum Floor Area Ratio for hospitals. 6. Must include an indoor waiting area. 7. Limited to golf courses. 8. Limited to on-campus housing operated by an accredited school.				

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 15, eff. 10-21-16); Am. Ord. 2025-024, § 27, eff. 7-27-25).

SEC. 15-1403. INTENSITY AND MASSING DEVELOPMENT STANDARDS.

Table 15-1403 prescribes the intensity and massing development standards for the Public and Semi-Public Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table.

TABLE 15-1403: DEVELOPMENT STANDARDS—PUBLIC AND SEMI-PUBLIC DISTRICTS				
District	*OS*	*PR*	*PI*	*Additional Regulations*
Maximum Density (du/ac)	-	-	45	§ 15-310, Determining Residential Density § 15-1404-E, On-Campus Housing Standards
Maximum Height (ft.)	35	35	35	§ 15-1404-A, Additional Height for Recreational Facilities § 15-2012, Heights and Height Exceptions
Minimum Setbacks (ft.)				
Front	25	25	20	§ 15-1404-B, Residential Transition Standards § 15-1404-D, Setbacks § 15-2014, Projections/Encroachments into Yards § 15-2305, Areas to be Landscaped
Interior Side	20	20	15	
Street Side	25	25	20	
Rear	20	20	15	
Maximum Lot Coverage (%)	10	10	35	
Supplemental Regulations				§ 15-1404, Site Design Development Standards

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1404. SITE DESIGN DEVELOPMENT STANDARDS.

A. **Additional Height for Recreational Facilities.** Additional height for structures related to recreational facilities such as light standards, nets, and fences, may be approved with a Planned Development Permit.

B. **Residential Transition Standards.** See Table 15-2305-C.1, Required Landscape Buffers.

C. **Service Areas and Loading.** Service and loading areas shall be located so that they are oriented away from residences, primary pedestrian entrances and areas, and not adjacent to or parallel to any public right-of-way (except alleys).

D. **Setbacks.** The prescribed setbacks apply to all structures, including, but not limited to, bleachers, dugouts, backstops, lights, etc. Should the parcel be less than one-half acre, the Director may reduce the front and street side yard to 15 feet.

E. **On-Campus Housing Standards.** The provisions set in 15-1004-A, RS Transition Standards and 15-1004-D, On-Site Open Space shall apply.

F. **San Joaquin River Corridor Preservation.** Any development within the San Joaquin River Corridor shall be limited or required to provide an extended buffer in order to protect the natural environs. The limitations and buffers shall be consistent with the General Plan and may be expanded further subject to environmental review.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 11, eff. 6-11-18).

ARTICLE 15. DOWNTOWN DISTRICTS

Sec. 15-1501. Purpose.
Sec. 15-1502. Use Regulations.
Sec. 15-1503. Density, Intensity, and Massing Development Standards.
Sec. 15-1504. Site Design Development Standards.
Sec. 15-1505. Façade Design Development Standards.
Sec. 15-1506. Right to Downtown Operations.
Sec. 15-1507. Additional Standards.

SEC. 15-1501. PURPOSE.

A. The purposes of the Downtown (DT) Districts are to:

1. Ensure that buildings, renovations, and additions are consistent with the goals of the Downtown Neighborhoods Community Plan (DCNP) and the Fulton Corridor Specific Plan (FCSP) for pedestrian-oriented streetscapes, building form, physical character, and quality.

2. Promote pedestrian-oriented infill development, intensification, and reuse of land consistent with the General Plan.

3. Develop a mixed-use Downtown with a vibrant concentration of goods and services, housing, community gathering spaces, and regionally-serving employment, cultural, and entertainment offerings.

4. Transform Downtown's streets into vibrant, diverse, and attractive places that support a mix of pedestrian-oriented retail, office, and residential uses in order to achieve an active social environment within a revitalized streetscape.

5. Provide options which reduce the need for private automobile use to access shopping, services, and employment and minimize air pollution from vehicle miles traveled.

6. Offer additional housing opportunities for residents seeking to live in an urban environment.

7. Create a vibrant, unique Downtown that offers different kinds of experiences—business, dining, culture, and entertainment—for workers, residents, and visitors alike.

8. Establish Downtown development and design standards that will create a unified, yet distinctive, and attractive urban character that respects Fresno's past and serves the city for the long term.

9. Facilitate compact mixed-use development in key locations such as along Bus Rapid Transit (BRT) corridors and near Fresno's train stations.

B. Additional purposes of each Downtown District are as follows:

1. DTN Downtown Neighborhood. The DTN District will create lively, walkable, mixed-use urban neighborhoods surrounding the Downtown Core.

2. DTG Downtown General. The DTG District will support a high concentration of regional activity generators such as governmental buildings and convention centers within a pedestrian-oriented, mixed-use urban setting.

3. DTC Downtown Core. The DTC District will foster the enhancement of Fresno's business, shopping, and cultural heart by guiding the development of the densest, most active, and most interesting mixed-use urban center in the region.

Activity Class A streets feature ground floor retail, restaurant, and entertainment uses.

Activity Class B and C streets may feature ground floor residential units with stoops and porches, or storefront offices. On B streets ground floor retail is also allowed.

C. **Activity Classifications.** Some standards, as specified in this article, shall apply based on the Activity Classification of the adjacent street, as shown in Figure 15-1501. The purposes of the Activity Classifications are as follows:

1. **Activity Class A.** Streets in Activity Class A have the greatest pedestrian activity or the greatest potential for pedestrian activity. Ground floor retail, restaurant, and entertainment uses are required as put forth in Table 15-1502.

2. **Activity Class B.** Streets in Activity Class B are walkable urban corridors with moderate pedestrian activity. As put forth in Table 15-1502, retail, restaurant, and entertainment uses are appropriate in these areas, but ground floor residential or office uses are also appropriate.

3. **Activity Class C.** Streets in Activity Class C are walkable and comfortable for pedestrians, but are not the most active streets within Downtown. Ground floor residential or office uses are appropriate, but retail uses should be small and restricted to corners as put forth in Table 15-1502.

4. **Corners.** When a project is located at the intersection of two streets with different Activity Classifications, the requirements of the higher activity class shall wrap the corner and prevail over the lower order classification for a distance determined by the Review Authority.

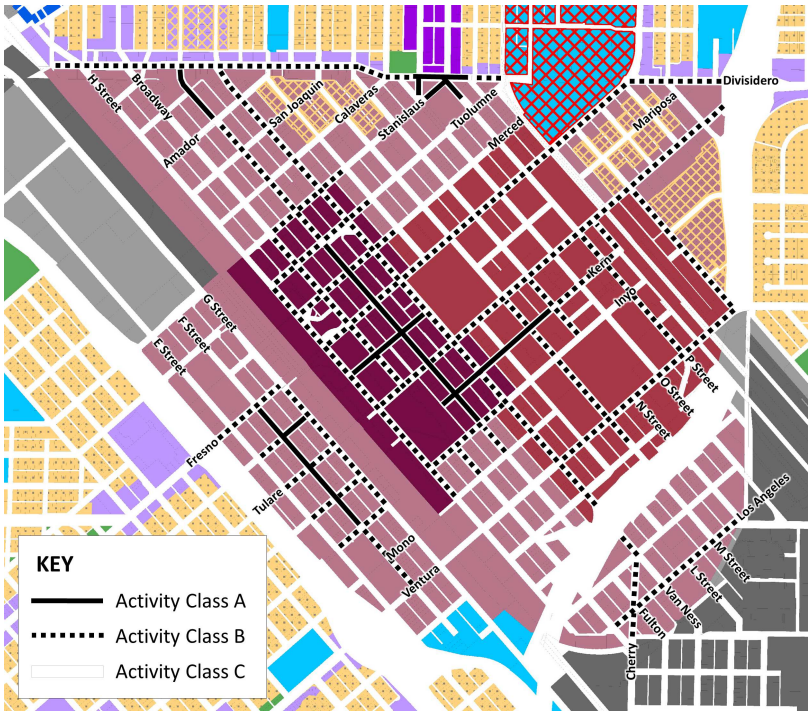


Figure 15-1501 Activity Classifications

(Added Ord. 2016-43, § 2, eff. 12-9-16; Am. Ord. 2018-25, § 12, eff. 6-11-18).

SEC. 15-1502. USE REGULATIONS.

A. Table 15-1502 prescribes the proposed land use regulations for Downtown Districts. The regulations for the districts are established by letter designations listed below. These designations apply strictly to the permissibility of land uses; applications for buildings or structures may require discretionary review.

"P" designates permitted uses.

"C" designates uses that are permitted after review and approval of a Conditional Use Permit.

"(#)" numbers in parentheses refer to specific limitations listed at the end of the table.

"—" designates uses that are not permitted.

B. Land uses are defined in Article 67, Use Classifications.

C. In cases where a specific land use or activity is not defined, the Director shall assign the land use or activity to a classification that is substantially similar in character per Section 15-5020, Director's Classification.

D. All permitted uses are allowed either alone or in combination with other permitted uses unless otherwise stated in this Code.

E. Use classifications and subclassifications not listed in the table or not found to be substantially similar to the uses below are not permitted.

F. The table also notes additional regulations that apply to various uses. Section numbers in the right hand column refer to other sections of this Code.

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS

Use Classifications	*Activity Class (See Figure 15-1501 for Activity Classifications Map)*									*Additional Regulations*
	DTN			*DTG*			*DTC*			
	A	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Residential Use Classifications										
Residential Housing Types										
Single-Unit Dwelling, Attached	—	P	P	—	P	P	—	—	—	§ 15-2754, Second/ Accessory Dwelling Units (ADUs)
Duplex	—	P	P	—	P	P	—	P	P	§ 15-2754, Second/ Accessory Dwelling Units (ADUs)
Multi-Unit Residential	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2754, Second/ Accessory Dwelling Units (ADUs)
Adult Family Day Care										
Small (6 clients or less)	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Large (7 to 12 clients)	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Caretaker Residence	P(1)	P	P	P(1)	P	P	P(1)	P	P	

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS										
	Activity Class (See Figure 15-1501 for Activity Classifications Map)									
	DTN			*DTG*			*DTC*			*Additional Regulations*
Use Classifications	*A*	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Domestic Violence Residence	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Elderly and Long-Term Care	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Family Day Care										
Small (8 children or less)	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2725, Day Care Centers and Family Child Care Homes
Large (9 to 14 children)	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Group Residential										
Small (6 persons or less)	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Large (7 persons or more)	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Lodging-to-Dwelling Conversion	C	C	C	C	C	C	C	C	C	§ 15-2737.5 Lodging-to-Dwelling Conversion Requirements
Re-Entry Facility	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Residential Care Facilities										
Residential Care, General	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Residential Care, Limited	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Residential Care, Senior	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Single Room Occupancy	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2756, Single Room Occupancy Hotels and Boarding Homes
Public and Semi-Public Use Classifications										
Colleges and Trade Schools, Public or Private	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Community and Religious Assembly (less than 2,000 square feet)	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2719, Community and Religious Assembly Facilities
Community and Religious Assembly (2,000 square feet or more)	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Community Garden	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2720, Community Gardens/ Urban Farms
Conference/Convention Facility	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Cultural Institutions	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Day Care Centers	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2725, Day Care Centers and Family Child Care Homes

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS										
	Activity Class (See Figure 15-1501 for Activity Classifications Map)									
	DTN			*DTG*			*DTC*			*Additional Regulations*
Use Classifications	*A*	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Emergency Shelter	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2729, Emergency Shelters
Government Offices	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Hospitals and Clinics										
Hospital	—	C	C	—	C	C	—	C	C	
Clinic	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Instructional Services	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Park and Recreation Facilities, Public	P	P	P	P	P	P	P	P	P	
Parking, Public or Private	P	P	P	P	P	P	P	P	P	§ 15-1504-G, Parking Buffering; § 15-1504-H, Parking Access and Entrance Design
Public Safety Facilities	—	P	P	—	P	P	—	P	P	
Schools, Public or Private	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Social Service Facilities	—	P	P	—	P	P	—	P	P	
Commercial Use Classifications										
Adult-Oriented Business	—	C	C	—	C	C	—	C	C	§ 15-2705, Adult-Oriented Businesses; § 9-2001, Picture and Live Arcades
Animal Care, Sales and Services										
Grooming and Pet Stores	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	
Veterinary Services	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Artist's Studio	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Automobile/Vehicle Sales and Services										
Automobile Rentals	P(8)	P(5)	P(5)	—	P(5)	P(5)	—	—	—	§ 15-2709, Automobile and Motorcycle Sales and Leasing
Automobile/ Vehicle Sales and Leasing	P(8)	P(5)	P(5)	—	P(5)	P(5)	—	—	—	
Automobile/ Vehicle Service and Repair, Minor	P(8)	P(5)	P(5)	—	P(5)	P(5)	—	—	—	§ 15-2710, Automobile/Vehicle Service and Repair, Major and Minor
Large Vehicle and Equipment Sales, Service and Rental	P(8)	P(8)	P(8)	—	—	—	—	—	—	§ 15-2710, Automobile/Vehicle Service and Repair, Major and Minor
Service Station	—	C(5)	C(5)	—	C(5)	C(5)	—	—	—	§ 15-2755, Service Stations

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS										
	Activity Class (See Figure 15-1501 for Activity Classifications Map)									
	DTN			*DTG*			*DTC*			*Additional Regulations*
Use Classifications	*A*	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Banks and Financial Institutions										
Banks and Credit Unions	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Business Services	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Banquet Hall	P	P	P	P	P	P	P	P	P	§ 15-2712, Banquet Hall
Eating and Drinking Establishments										
Bars/Nightclubs/ Lounges	P(3)	P(3)	P(4)	P(3)	P(3)	P(4)	P(3)	P(3)	P(4)	§ 15-2751, Restaurants with Alcohol Sales; Bars, Nightclubs, and Lounges; § 15-2744, Outdoor Dining and Patio Areas
Restaurant, with Alcohol Sales	P(3)	P(3)	P(4)	P(3)	P(3)	P(4)	P(3)	P(3)	P(4)	
Restaurant, without Alcohol Sales	P(3)	P(3)	P(4)	P(3)	P(3)	P(4)	P(3)	P(3)	P(4)	
Entertainment and Recreation										
Cinema/Theaters	P	—	—	P	—	—	P	P	P	
Cyber/Internet Café	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	§ 15-2724, Cyber/ Internet Cafés
Motorcycle/Riding Club	P(5)	P(5)	P(5)	P(5)	P(5)	P(5)	—	—	—	§ 15-2742, Motorcycle/ Riding Clubs
Large-Scale	—	C	C	—	C	C	—	C	C	§ 15-2708, Arcades, Video Games, and Family Entertainment Centers
Small-Scale	P	P	P(4)	P	P	P(4)	P	P	P(4)	§ 15-2708, Arcades, Video Games, and Family Entertainment Centers; § 9-1801, Billiard Rooms
Food and Beverage Sales										
Farmer's Markets	P	P	P	P	P	P	P	P	P	§ 15-2730, Farmer's Markets
General Market	P	P	P	P	P	P	P	P	P	§ 15-2744, Outdoor Dining and Patio Areas; § 15-2745, Outdoor Retail Sales
Healthy Food Grocer	P	P	P	P	P	P	P	P	P	
Liquor Stores	—	C(3)	C(3)	—	C(3)	C(3)	—	C(3)	C(3)	§ 15-2706, Alcohol Sales ; § 15-2745, Outdoor Retail Sales
Food Preparation	—	P(1)	P(1)	—	P(1)	P(1)	—	—	—	
Funeral Parlors and Internment Services	—	P	P	—	P	P	—	—	—	§ 15-2714, Body Preparation and Funeral Services

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS										
	Activity Class (See Figure 15-1501 for Activity Classifications Map)									*Additional Regulations*
	DTN			*DTG*			*DTC*			
Use Classifications	*A*	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Live/Work	P	P	P	P	P	P	P(1)	P	P	
Lodging										
Bed and Breakfast	P(1)	P	P	P(1)	P	P	P(1)	P	P	§ 15-2714, Bed and Breakfast Lodging
Hotels and Motels	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Maintenance and Repair Services	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Offices										
Business and Professional	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Medical and Dental	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Walk-In Clientele	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Personal Services										
General Personal Services	P	P	P	P	P	P	P	P	P	
Fortune Telling Service	P	P	P	P	P	P	P	P	P	
Massage Establishments	C	C	C	C	C	C	C	C	C	
Tattoo or Body Modification Parlor	P	P	P	P	P	P	P	P	P	§ 15-2758, Tattoo or Body Modification Parlors
Retail Sales										
Building Materials and Services	—	P(5)	P(5)	—	P(5)	P(5)	—	—	—	§ 15-2745, Outdoor Retail Sales
Convenience Retail	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	§ 15-2745, Outdoor Retail Sales; 15-2761 Tobacco and Vapor Sales
General Retail	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	§ 15-2733, Hobby Stores; § 15-2745, Outdoor Retail Sales
Large-Format Retail	—	—	—	—	—	—	P	P	P	§ 15-2737, Large-Format Retail; § 15-2745, Outdoor Retail Sales
Nurseries and Garden Centers	P(7)	P(7)	P(7)	P(7)	P(7)	P(7)	P(7)	P(7)	P(7)	§ 15-2745, Outdoor Retail Sales
Pawn Shops	—	P	—	—	P	—	—	P	P	
Second Hand/ Thrift Stores	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	P(2)	P(2)	P(4)	
Swap Meet/Flea Market	—	P	—	—	P	—	—	P	P	§ 15-2730, Flea Markets
Industrial Use Classifications										
Custom Manufacturing	P(1)	P	P	P(1)	P	P	P(1)	P	P	
Limited Industrial	C(8)	P(1) (5)	P(5)	—	P(1) (5)	P(5)	—	—	—	
General Industrial	C(8)	C(8)	C(8)	—	—	—	—	—	—	
Recycling Facility										

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS										
	Activity Class (See Figure 15-1501 for Activity Classifications Map)									
	DTN			*DTG*			*DTC*			*Additional Regulations*
Use Classifications	*A*	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Reverse Vending Machine	—	P	P	—	P	P	—	P	P	§ 15-2750, Recycling Facilities
Research and Development	C(8)	P(5)	P(5)	—	P(5)	P(5)	—	—	—	
Warehousing, Storage, and Distribution										
Indoor Warehousing and Storage	C(8)	C(8)	C(8)	—	—	—	—	—	—	
Outdoor storage	C(8)	C(8)	C(8)	—	—	—	—	—	—	
Personal Storage	—	C(5)	C(5)	—	C(5)	C(5)	—	—	—	§ 2747, Personal (Mini) Storage
Wholesaling and Distribution	C(8)	C(8)	C(8)	—	—	—	—	—	—	
Transportation, Communication, and Utilities Use Classifications										
Communication Facilities										
Antenna and Transmission Towers	§ 15-2759, Telecommunications and Wireless Facilities									
Facilities within Buildings	—	C	C	—	C	C	—	C	C	
Freight/Truck Terminals and Warehouses	C(8)	C(8)	C(8)	—	—	—	—	—	—	
Light Fleet-Based Services	C(8)	P(5)	P(5)	—	P(5)	P(5)	—	—	—	
Transportation Passenger Terminals	P	P	P	P	P	P	P	P	P	
Utilities, Major	—	C	C	—	C	C	—	C	C	
Utilities, Minor	—	C	C	—	C	C	—	C	C	
Agricultural and Extractive Use Classifications										
Produce Stand	P	P	P	P	P	P	P	P	P	§ 15-2752, Roadside Fruit Stands/ Grower Stands
Tasting Room	P	P	P	P	P	P	P	P	P	
Urban Farm	—	P	P	—	P	P	—	P	P	§ 15-2720, Community Gardens/ Urban Farms
Other Applicable Types										
Accessory Uses and Structures	§ 15-2703, Accessory Uses									
Animal Keeping	§ 15-2707, Animal Keeping									
Drive-In and Drive-Through Facilities	—	C(6)	C(6)	—	C(6)	C(6)	—	C(6)	C(6)	§ 15-2728, Drive-In and Drive-Through Facilities
Home Gardens	§ 15-2734, Home Gardens and Edible Landscaping									
Home Occupations	§ 15-2735, Home Occupations									
Nonconforming Use	Article 4, Nonconforming Uses, Structures, Site Features, and Lots									
Temporary Use	§ 15-2760, Temporary Uses									
Transitional and Supportive Housing	§ 15-2762, Transitional and Supportive Housing									

TABLE 15-1502: USE REGULATIONS—DOWNTOWN DISTRICTS										
	Activity Class (See Figure 15-1501 for Activity Classifications Map)									
	DTN			*DTG*			*DTC*			*Additional Regulations*
Use Classifications	*A*	*B*	*C*	*A*	*B*	*C*	*A*	*B*	*C*	
Walk-Up Facilities	§ 15-2766, Walk-Up Facilities									
Specific Limitations: 1. Permitted only on upper floors and rear portions of the ground floor, no closer than 30 feet from a public street, public plaza, or park. Exception: Lobbies may occupy ground floor space adjacent to a public street, public plaza, or park. Lobbies may not occupy more than 25 feet of frontage. 2. Permitted only on ground floor. Prohibited on upper floors. 3. Permitted only on ground floor. Prohibited on upper floors. Exception: Also permitted on uppermost floors of buildings over 4 stories in height. 4. Permitted only on ground floor at intersection of two public streets. May not exceed 2,500 square feet in floor area. 5. Permitted south of Inyo Street only. 6. Not allowed between a building and a sidewalk. 7. Permitted if located entirely within a building. When located outdoors, permitted south of Inyo Street only. 8. East of State Route 41 only.									

(Added Ord. 2016-43, § 2, eff. 12-9-16; Am. Ord. 2018-25, § 13, eff. 6-11-18; Am. Ord. 2018-66, § 12, eff. 1-18-19; Am. Ord. 2020-031, § 5, 9-1-20; Am. Ord. 2025-024, § 28, eff. 7-27-25).

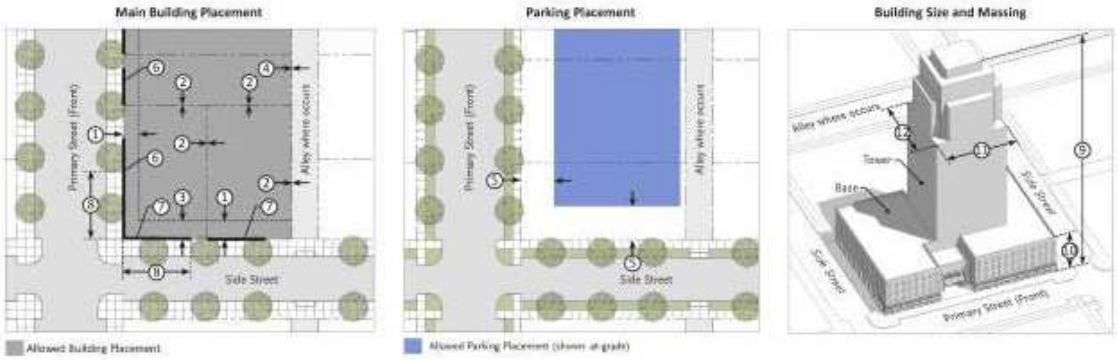
SEC. 15-1503. DENSITY, INTENSITY, AND MASSING DEVELOPMENT STANDARDS.

Table 15-1503 prescribes the density, intensity, and massing development standards for the Downtown Districts. Additional regulations are denoted in a right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

The Downtown Districts promote an urban massing of buildings that is similar to the area's early development.

Storefront glazing and sidewalk-oriented entrances promote pedestrian comfort, convenience, and safety.

TABLE 15-1503: BUILDING AND PARKING PLACEMENT AND BUILDING MASSING STANDARDS—DOWNTOWN DISTRICTS



District	DTN	DTG	DTC	Additional Regulations	#
Floor Area Ratio (min./max.)	No Limit	No Limit	No Limit		
Residential Density, du/ac (min./max.)	No Limit	No Limit	No Limit		
Setbacks (ft.)					
Front, Activity Class A (min./max.)	0/2	0/2	0/2	Figure 1504-A: Activity Classifications	①
Front, Activity Class B and C (min./max.)	0/10	0/10 (1)	0/10		
Interior Side (min.)	0	0	0	§ 15-313, Determining Setbacks and Yards, § 15-1504-E, RS Transition Standards, and § 15-1504-G, Parking Buffering	②
Street Side (min./max.)	0/10	0/10 (2)	0/10		③
Rear (min.)	0	0	0		④
Alley (min.)	0	0	0		
Parking Buffering, from back of sidewalk or curb (min.)	30	30	30		⑤
Front Street Minimum Frontage Coverage (%)	60	75	90	§ 15-317, Determining Frontage Coverage	⑥
Side Street Minimum Frontage Coverage (%)	50	50	50	§ 15-317, Determining Frontage Coverage	⑦
Corner Frontage (ft., measured from property corner)	30	50	75	§ 15-1504-F, Corner Frontage	⑧
Building Size and Massing					
Maximum Height (floors/ft.)	6/90	10/140	15/190	§ 15-1504-E , RS Transition Standards and § 15-2012, Heights and Height Exceptions	⑨
Max. Tower Height (floors/ft.)	n/a	10/140	15/190		
Max. Base Height (floors/ft.)	6/90	6/90	6/90		⑩
Tower Length (ft.)	n/a	200	200		⑪
Tower Width (ft.)	n/a	120	120		⑫
Minimum On-Site Open Space (% of Lot Area)	10	8	5	§ 15-1504-I, On-Site Open Space	

Specific Limitations:
1. Front setback along Mariposa Street between M Street and P Street (min./max.): 10/18 ft.
2. Street Side setback along Mariposa Street between M Street and P Street (min./max.): 10/15 ft.

(Added Ord. 2016-43, § 2, eff. 12-9-16).

SEC. 15-1504. SITE DESIGN DEVELOPMENT STANDARDS.

A. **Active Uses Adjacent to Sidewalks.** In order to promote activity on all sidewalks, and to focus the highest activity levels in the most beneficial areas, the following standards shall apply to all ground-floor building space located within 30 feet of a public street:

1. **Activity Classifications.** Uses shall be Permitted, Conditionally Permitted, or Prohibited based on the adjacent street's activity classification as identified in Figure 1501 and Table 15-1502.

2. **Active to Inactive Space Ratio.**

    a. **Activity Class A.** No less than 90 percent of the length of building frontage along public streets shall be designed to be occupied by active spaces, such as lobbies, dining areas, living areas, and sales floors. The remaining 10 percent may consist of inactive spaces, such as kitchens, hallways, utility rooms, storage, emergency exits, display cases, etc.

    b. **Activity Class B and C.** No less than 60 percent of the length building frontage along public streets shall be designed to be occupied by active spaces, such as lobbies, dining areas, living areas, and sales floors. The remaining 40 percent may consist of inactive spaces, such as kitchens, hallways, utility rooms, storage, emergency exits, display cases, etc.

    c. **Sites with Multiple Frontages.** The street of highest pedestrian importance, as determined by the Review Authority, shall comply with subparagraphs a and b above. Other street frontages may provide reduced active spaces as determined by the Review Authority.

B. **Mixed-Use Configurations.** Buildings shall be designed to minimize the potential conflicts between residential and non-residential uses adjacent to one another or within the same building to the satisfaction of the Review Authority. Potential techniques include:

1. Sound attenuation/transmission requirements of the California Building Code;

2. Distinct entries for non-residential and residential suites/units;

3. Ventilation of ground floor uses so as not to disrupt upper floor tenants.

C. **Required Minimum Height.**

1. Required minimum heights are applicable only in the DTC District as put forth by the following diagram.

FIGURE 1504-C: REQUIRED MINIMUM HEIGHTS

2. New structures shall meet both the minimum number of floors and the minimum height in feet. No more than the front 30 feet of lot depth, measured from all streets on which the project has frontage, shall be subject to Required Minimum Height regulations.
3. Existing structures which are remodeled or otherwise modified shall not be required to comply with Required Minimum Height regulations unless the gross floor area is increased by more than 100 percent.
4. Additions to designated historic resources shall not be required to comply with Required Minimum Height regulations.
5. Portions of the building that are not part of the primary building mass, such as entrance porticos, bays and stoops, are not required to meet minimum height requirements. Parking podiums, garages, and accessory buildings are not required to meet minimum height requirements.

D. **Special Noise Standards.** Within the portion of the DTN District that is south of Inyo Street, the following special noise standards apply.

1. **Stationary Noise Standards.** This area is exempted from Subsection 15-2605-D. The following maximum noise levels in Table 15-1504-D apply.

TABLE 15-1504-D: MAXIMUM NOISE EXPOSURE LEVELS FOR SOUTH OF INYO STREET		
	Daytime 7am—10pm	*Nighttime 10pm—7am*
Maximum Sound Level (Lmax), dBA	70	60

2. **Residential Uses.** New residential development shall anticipate maximum allowable noise levels and provide noise protection to maintain an interior noise level at 45 Leq, dB or lower.

E. **RS Transition Standards.** Where a DT district abuts an RS District, the following standards apply:

1. **Height.** The maximum height within 40 feet of an RS District is limited to 30 feet. The maximum height within 100 feet of an RS District is 40 feet.

2. **Setbacks.** The following additional setback requirements shall be applied to all structures, including accessory structures, on parcels which are adjacent to an RS District:

   a. **Front and Street Side Yard.** The front setback shall not be less than the required front yard on the abutting RS District lot within 50 feet of the RS District.

   b. **Interior Side and Rear.** The interior side and rear setback abutting an RS District boundary shall be 20 feet.

3. **Landscape.** See Section 15-2305, Areas to be Landscaped.

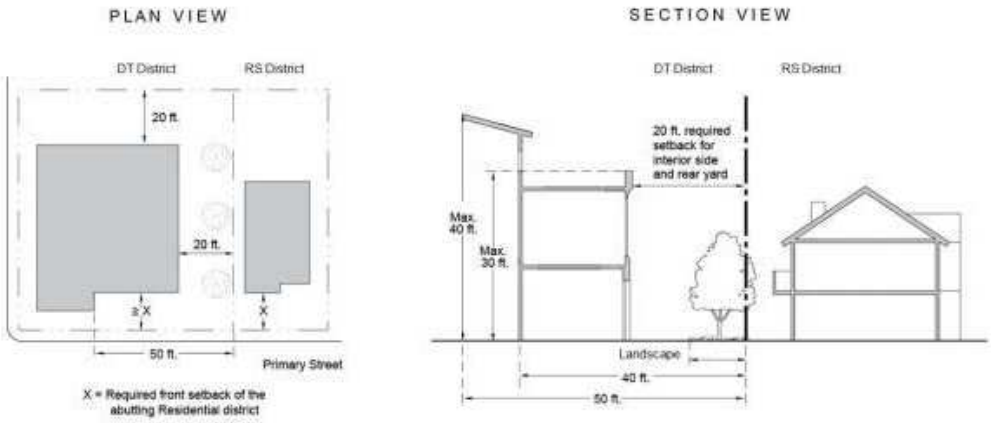


FIGURE 15-1504-E: RS TRANSITION STANDARDS—DT DISTRICTS

F. **Corner Frontage.** Buildings on corner lots must be located within a minimum of five feet of the back of the sidewalk for the minimum length specified in Table 15-1503. As determined by the Review Authority, plazas maybe located at the street corner provided the plaza meets the requirements of Section 15-1504-I.1.c and buildings are built to the edge of the plaza.

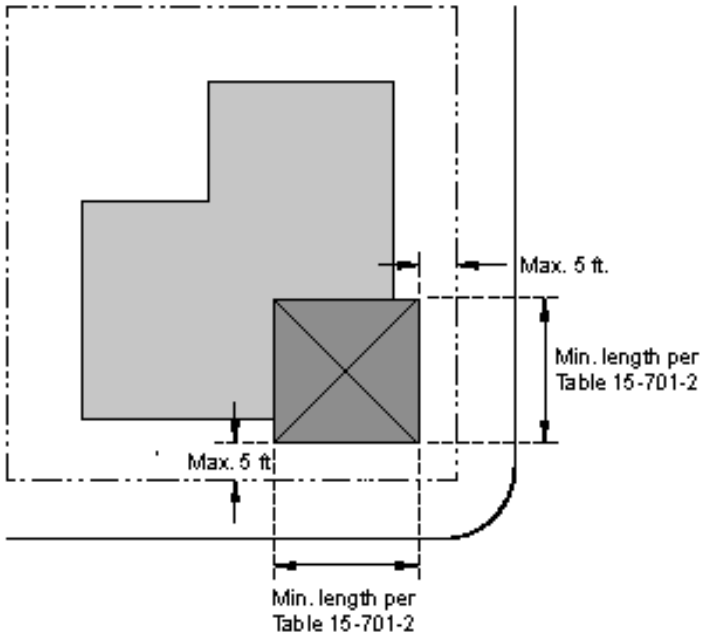


FIGURE 15-1504-F: CORNER FRONTAGE STANDARDS

G. **Parking Buffering.** All parking facilities, whether public or private, shall be buffered as shown on Table 15-1503 based on the adjacent street activity classification as shown in Figure 15-1501 and the physical form of the parking as provided below:

1. **Activity Class A.**
   a. **Surface Parking and Tuck-Under Parking.** Surface and tuck-under (one row of surface parking with building area over it) parking must be located entirely behind a building space which is occupied by a permitted use or uses, which conforms to all applicable development standards, and which is no less than 30 feet deep. Accessory structures, sheds, parking attendant booths, and other such buildings shall not satisfy this requirement.
   b. **Above Grade Structured Parking.** All above grade levels of the parking structure must be located behind active, occupied building space for a depth of no less than 30 feet.
   c. **Partially Submerged Podium Parking.** Parking that is partially below the street grade must be located behind active, occupied space for a depth of no less than 30 feet.

d. **Underground Parking.** Parking that is fully underground and below the street grade may extend from lot line to lot line.

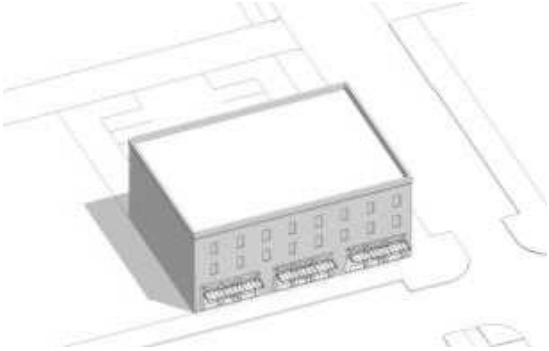
2. **Activity Class B.**

a. **Surface Parking and Tuck-Under Parking.** Surface and tuck-under parking (one row of surface parking with building area over it) must be located entirely behind a building space which is occupied by a permitted use or uses, which conforms to all applicable development standards, and which is no less than 30 feet deep. Accessory structures, sheds, parking attendant booths, and other such buildings shall not satisfy this requirement.

b. **Above Grade Structured Parking.** The ground floor of the parking structure must be located behind active, occupied building space for a depth of no less than 30 feet. Upper floors of the parking structure are not required to be located behind non-parking uses or to be set back more than is required by the building setbacks.

c. **Partially Submerged Podium Parking.** Parking that is partially below the street grade shall be buffered in the same manner as above grade structured parking, however it will not be subject to a buffering requirement if the following conditions are met:

Buffering all levels of structured parking on Activity Class A and B streets balances parking and placemaking goals.



On Activity Class A and B streets, surface parking must be set back from the street and located behind a building.

i. No more than four feet of the partially submerged parking podium may extend above the street grade.

ii. The partially submerged parking podium shall be screened along street facing elevations by foundation plant materials. Gates need not be screened.

d. Underground Parking. Parking that is fully underground and below the street grade may extend from lot line to lot line.

3. **Activity Class C.**

a. **Surface Parking and Tuck-Under Parking.** Surface and tuck-under parking (one row of surface parking with building area over it) shall be set back no less than 30 feet. For no less than 60 percent of the length the lot frontage along public streets, surface parking must be located behind a building space which is occupied by a permitted use or uses and which conforms to all applicable development standards and which is no less than 30 feet deep. Accessory structures, sheds, parking attendant booths, and other such buildings shall not satisfy this requirement. For the remainder of the lot frontage, the setback may be landscaped, a public plaza, an outdoor dining area, or similar treatment as determined by the Review Authority.

b. **Above Grade Structured Parking.** The ground floor of the parking structure must be located behind active, occupied building space for a depth of no less than 30 feet. Upper floors of the parking structure are not required to be located behind non-parking uses or to be set back more than is required by the building setbacks.

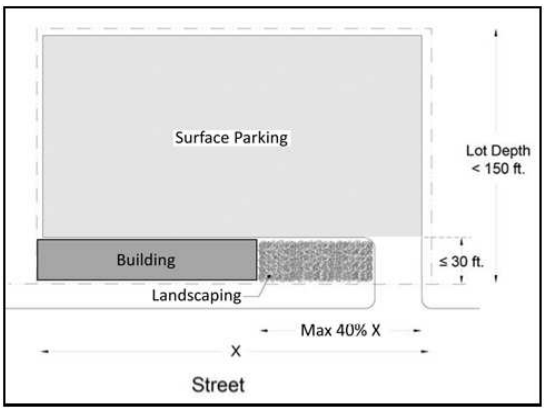
c. **Partially Submerged Podium Parking.** Parking that is partially below the street grade shall be buffered in the same manner as above grade structured parking, however it will not be subject to a buffering requirement if the following conditions are met:

i. No more than four feet of the partially submerged parking podium may extend above the street grade.

ii. The partially submerged parking podium shall be screened along street facing elevations by foundation plant materials. Gates need not be screened.

d. **Underground Parking.** Parking that is fully underground and below the street grade may extend from lot line to lot line.

On Activity Class C streets, only the ground floor or above grade structured parking must be buffered with active uses.



On Activity Class C streets, most surface parking must be behind a building, but some may be behind landscaping.

4. **Sites with Multiple Frontages.** Building frontage along the street(s) of highest pedestrian importance, as determined by the Review Authority, shall comply with applicable subsections 1, 2, and/or 3 above. Along the street of lowest pedestrian importance, frontages may provide reduced buffering if a satisfactory pedestrian environment is maintained, as determined by the Review Authority.

H. **Parking Access and Entrance Design.** The following standards shall apply to vehicular access to off-street parking areas:

1. **Access.**
   a. **Lots with Alley Access.** Service areas shall be accessed through the alley, and access from a street shall not be permitted. For the redevelopment of sites with existing curb cut access from a street, the access shall be taken from the alley and the curb cut on the street shall be removed.
   b. **Corner Lots without Alley Access.** Service areas shall be accessed from the street with the lowest Activity Classification per Figure 15-1501. If all adjacent streets have the same Activity Classification, the parking and service areas shall be accessed from the street with the least potential for pedestrian activity as determined by the Review Authority.
   c. **Interior Lots without Alley Access.** Service areas may be accessed from the street.
2. **Entrance Design.** Private parking garage entrance openings shall be composed as an integral part of the building facade and shall be designed as doorways secured by gates or doors and scaled in proportion to the overall form of the building.

I. **On-Site Open Space.**

1. **Minimum Open Space Required.** On-site open space shall be required for projects with more than four dwelling units. The minimum amount of on-site open space

required shall be based on the size of the lot, as shown in Table 15-1503. This requirement may be met through a combination of private open space, common open space, or public plazas as follows:

a. **Private Open Space Requirements.** Private open spaces are those which are attached to a dwelling unit and are available only for the private use of the residents of the dwelling unit, such as balconies, porches, and patios. No fewer than 50 percent of the dwelling units on a site shall have a private open space. The following standards shall apply to private open space:

   i. The minimum dimension of any private open space shall be five feet.

   ii. The minimum area of any private open space shall be 50 square feet.

   iii. When located within 30 feet of a public street and located on the ground floor, private open spaces shall follow the requirements for Porches as put forth in Table 15-1505-E-2.

   iv. When located within 30 feet of a public street and located above the ground floor, private open spaces shall follow the requirements for Balconies as put forth in Table 15-1505-F.

b. **Common Open Space Requirements.** Common open spaces are those which are available for active or passive use by all tenants, but use by the general public may be restricted. To the extent that common open space is provided, the following standards shall apply:

   i. The minimum dimension of any common open space shall be 20 feet.

   ii. The minimum area of any common open space shall be 1,000 square feet. The calculation of the common open space area shall exclude structures which are unusable as open space, but shall include structures that enhance its usability, such as swimming pools, changing facilities, fountains, planters, benches, and landscaping.

   iii. For sites greater than one acre in size, a minimum of 40 percent of the required common open space shall be developed with gardens, play fields, hard-surfaced game courts, recreation rooms, swimming pools, or other features designed for the active recreational use of residents of the development.

   iv. Common open space may be located at grade, on rooftops, on top of parking podiums, or any other such location that is accessible to tenants. Common open space may not be located within required setbacks or parking areas.

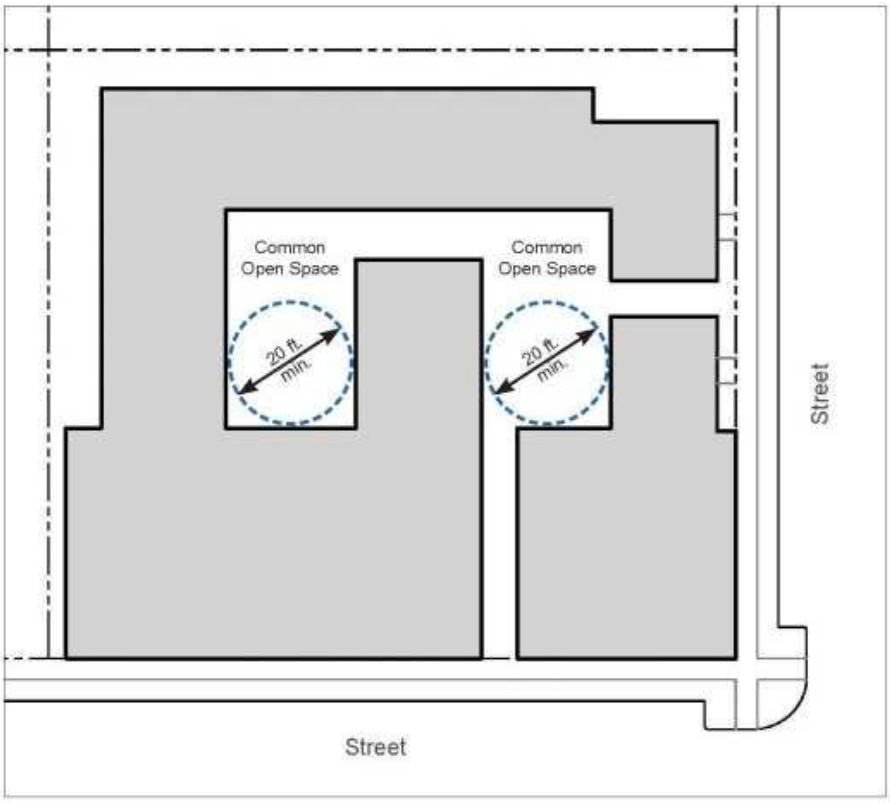


FIGURE 15-1504-I.1.B: MINIMUM REQUIRED COMMON OPEN SPACE DIMENSION

c. **Public Plaza Requirements.** Public plazas are those which are available for use by the general public, as well as tenants of the project. To the extent that public plazas are provided, the following standards shall apply:

i. The minimum dimension of any public plaza shall be 20 feet.

ii. The minimum area of any public plaza shall be 500 square feet. The calculation of the public plaza area shall exclude structures which are unusable as open space, but shall include structures that enhance its usability, such as fountains, planters, benches, and landscaping.

iii. Public plazas shall include benches or other seating, and paving shall be of high-quality materials. Amenities provided shall enhance the comfort, aesthetics, or usability of the space and include, but not be limited to, trees and other landscaping, shade structures, drinking fountains, water features, public art, or performance areas. Landscaping or other aspects of the design shall not discourage the use of the space by the general public, except in conjunction with an outdoor dining area for an adjacent restaurant or other Eating and Drinking Establishment.

iv. Public plazas shall be fully accessible from the public right-of-way, shall be located in front of project buildings and shall not be located where public views into the space are obstructed by buildings or other structures.

v. Public plazas may be located within required front setbacks.

vi. A public access easement shall be provided for the space.

vii. Building walls and façades which face a Public Plaza shall be regulated in the same manner as a street-facing façade. Permitted uses along the Public Plaza frontage shall be based on the Activity Classification of the nearest street.

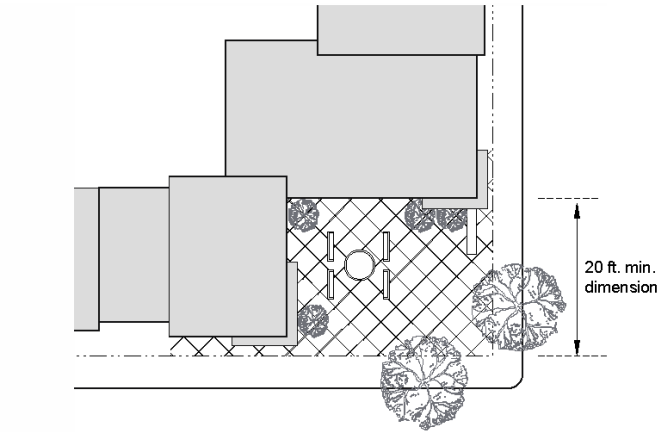


FIGURE 15-1504-I.1.C: MINIMUM REQUIRED PUBLIC PLAZA DIMENSION

2. **Minimum Open Space Reduction.** The minimum amount of open space required shall be reduced by 25 percent in the following circumstances:

a. Any portion of the lot is located within 400 feet of a transit stop with regular, scheduled service during the weekday hours of 7:00 a.m. to 9:00 a.m. and 5:00 p.m. to 7:00 p.m.

b. There is a public park within 400 feet of the site, and

i. Said park is located on the same side of the street and provides an improved pedestrian path to and from the site; or

ii. The public park is across a local street and the site provides an improved pedestrian path to and from the site.

c. The parcel is 15,000 square feet or less in area.

J. **Pedestrian Access.** On-site pedestrian circulation and access must be provided according to the California Building Code and the following standards. Along all public streets, public plazas, and parks, pedestrian entrances from the public sidewalk into structures and/or the site shall be provided as follows:

1. **Residential Unit Sidewalk Connections.** Direct entrances from the sidewalk into individual ground-floor dwelling units which are adjacent to streets shall be provided at a rate of no less than one per 50 feet of linear street frontage. Such entrances shall be accessed through a permitted frontage per Table 15-1505-E-2.

2. **Commercial Sidewalk Connections.** Direct entrances from the sidewalk into ground-floor commercial establishments which are adjacent to streets shall be provided at a rate of no less than one per 50 feet of linear street frontage. When establishments with a greater length occupy a site, they shall be set back and wrapped with smaller spaces that will satisfy this requirement. See Figure 15-1504-J.1.c.

3. **Common Area Sidewalk Connections.** Residential and commercial areas which aren't directly accessed from the sidewalk as put forth in items 1 and 2 above shall be accessed by a common entrance from the sidewalk into lobbies or internal pedestrian paths.

4. Emergency exits, entrances into utility rooms, and other such features shall not count toward to the satisfaction of this requirement.

5. **Pedestrian Access Design.**

    a. If there is a yard between the sidewalk and the building, a paved path six feet in width shall be provided from the public sidewalk to the entrance.

    b. Entry doors shall not swing out to the sidewalk unless the door when fully open does not encroach into the sidewalk.

    c. Handrails or other such improvements shall not block visibility of the building entry or direct access from the sidewalk.

Orienting pedestrian entrances to the sidewalk is an essential ingredient of Downtown revitalization.

Direct entrances into individual ground-floor residential units ensure pedestrian comfort on less active streets.

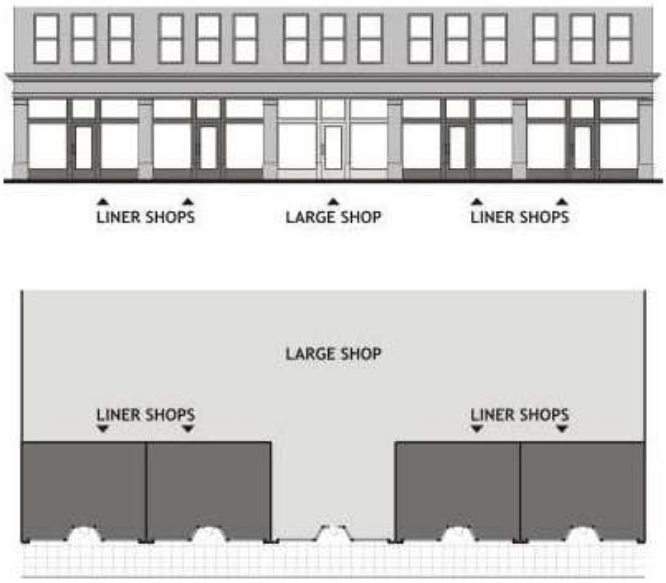


FIGURE 1504-J.1.C: WRAPPING OF LARGE USES

Retail uses along the ground floor of the Warnor's Theater conceal the large, windowless auditorium.

Large department stores can be wrapped with smaller shops, as with the Macy's at River Park.

K. **Sidewalk and Public Frontage Standards.**

1. **Applicability.**

   a. Notwithstanding Chapter 13, Section 208 of the Municipal Code, all projects shall be required to bring adjacent sidewalk conditions into conformance with the standards of this section, subject to the following exceptions:

      i. Applications for signs only.

      ii. Additions, remodels, or tenant improvements of less than 50 percent of the current value of the property.

      iii. Accessory structures less than 1,000 square feet in size.

   b. New development that is below the thresholds noted in item 'a', above, shall replace and maintain missing and/or dead street trees and any other missing or dead landscaping in the public frontage (public right-of-way).

   c. In no case shall an existing sidewalk, or portion thereof, be vacated, even if the minimum width required in the applicable Public Frontage Type is less than the existing sidewalk.

   d. When a public frontage of the subject property is improved to meet the applicable requirements of this section and the adjacent property does not physically align with the new improvement, the improvement shall be designed to the satisfaction of the Review Authority to result in a safe and smooth transition between properties.

2. **Public Frontage Types.** Required sidewalks shall be provided and designed as follows:

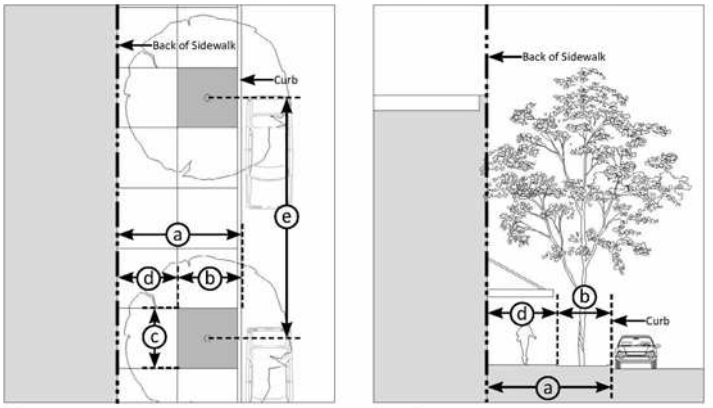
Public frontage is an indispensable component of comfortable, safe, and convenient pedestrian experience.

Appealing public frontage enhances commercial viability, sociability, and civic pride.

TABLE 15-1504-K-2: PUBLIC FRONTAGE TYPES—DOWNTOWN DISTRICTS

A. Sidewalk with Tree Wells

1. Applicable Locations: All locations except those specified in subsections B and C below.
2. Basic Standards
   - ⓐ Total Sidewalk Width: 12 ft. min.
   - ⓑ Well Width: 5 ft. min.
   - ⓒ Well Depth: 5 ft. min.
   - ⓓ Clear Walkway Width: 7 ft. min.
   - ⓔ Tree Spacing: 20 ft. min, 40 ft. max.



B. In-Street Tree Planter

TABLE 15-1504-K-2: PUBLIC FRONTAGE TYPES—DOWNTOWN DISTRICTS

1. Applicable Locations: Areas with narrow sidewalk conditions.

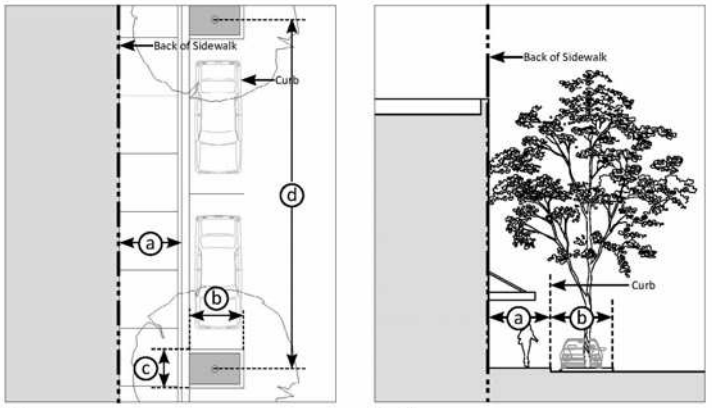
2. Basic Standards

ⓐ Total Sidewalk Width: Less than 12 ft.

ⓑ Well Width: 6 ft. min.

ⓒ Well Depth: 4 ft. min.

ⓓ Tree Spacing: between every two parallel parking spaces or between every five angled or perpendicular spaces (approximately 40 to 50 feet apart)



3. Other Standards

a. Where the existing sidewalk is located immediately adjacent to the curb and where the distance between the curb and the R.O.W. line is too narrow to accommodate both a sidewalk and a parkway strip or tree well, tree planters may be introduced in the parking lane to maximize pedestrian space while providing shade and greenery as determined by the Review Authority.

b. Planters should be placed outside of the gutter to avoid interference with drainage. Planter dimensions shall be least 6 feet by 4 feet with curbs provided on all four sides of the planter, although the side facing the sidewalk may be curbless to permit stormwater to drain into the planter.

c. Planters must contain street trees and may be landscaped or covered with metal tree grates.

C. Raised Sidewalk

1. Applicable Locations: Projects with ground floor commercial uses on sites which must be raised due to potential flooding issues.

2. Basic Standards

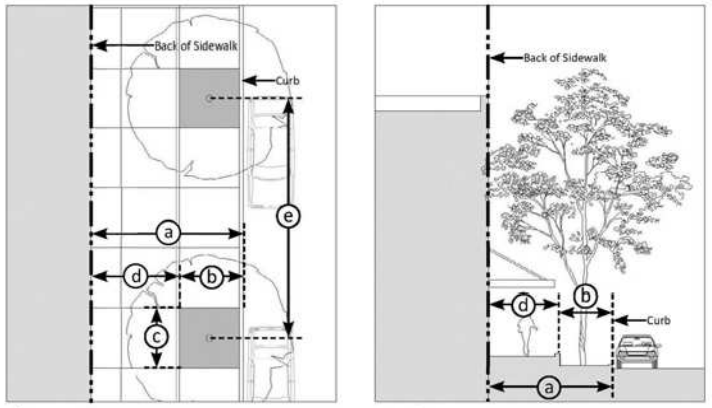
ⓐ Total Sidewalk Width: 12 ft. min.

ⓑ Lower Walkway/Well Width: 5 ft. min.

ⓒ Well Depth: 5 ft. min.

ⓓ Raised Walkway Width: 7 ft. min.

ⓔ Tree Spacing: 20 ft. min, 40 ft. max.



3. Other Standards

a. The walkway nearest to the building shall be raised to match the level of the finished floor of the first story so that it is flush with entrances into commercial spaces.

b. The upper walkway shall be buffered from the lower walkway with a curb, hedge, raised planter, or other method as determined by the Review Authority.

c. Steps from the lower walkway to the upper walkway shall be provided every 100 feet or less as determined by the Review Authority.

d. At block corners the raised walkway shall, via a straight ramp, drop to meet the level of the lower walkway.

e. This sidewalk design shall only be used if the Fresno Metropolitan Flood Control District or other public agency mandates that the lot be raised above the existing sidewalk level due to potential flooding issues and when authorized by the Review Authority.

A raised sidewalk can allow for proper urban retail frontage, while still mitigating flood risk.

In-street tree planters can provide shade and beauty while maximizing the pedestrian walkway in areas with space constraints.

3. **Sidewalk Width.** Sidewalks shall be no less than 12 feet in width. If the current distance between the right-of-way boundary and the face of the adjacent curb is less than 12 feet, the method by which this requirement shall be satisfied shall be determined by the Review Authority. The available methods shall be as follows:

   a. **Set Back.** The building may be set back from the right-of-way boundary the distance that is necessary to achieve the required sidewalk width. The portion of the sidewalk which lies within the private parcel shall be guaranteed for public access by the enactment of a pedestrian easement.

   b. **Reconstruction.** The applicant may demolish and reconstruct the sidewalk for the entirety of the block frontage(s) which the project occupies to the extent necessary to satisfy the requirements of this section.

   c. **Parklet.** The sidewalk may be expanded into the roadway by a metal or wood deck which does not interfere with the drainage of the street. In such instances the applicant shall enter into an encroachment agreement with the City in which the applicant accepts full responsibility for the maintenance and repair of the parklet, as well as providing the indemnification and insurance as required by the City's Risk Manager. The design of the parklet shall be attractive and compatible with its surroundings, as determined by the Director.

   d. **Width Exemption.** For unusually challenging site conditions, or in instances in which the existing building and sidewalk pattern warrants it, the Director may exempt the applicant providing the full sidewalk width required above. Examples include instances in which setting the building back would cause a break in a uniform row of aligned facades, and moving the curb or adding a parklet would interfere with important roadway improvements such as a bike

lane. In such instances all other sidewalk requirements, such as for trees and lighting, shall be met. When a narrow sidewalk is exempted from the width requirement, the standards of the In-Street Tree Planter Public Frontage Type shall be followed if the design of the adjacent roadway permits, at the discretion of the Director.

L. **Block, Street, and Alley Standards.**

1. **Maximum Block Length.** No block shall exceed 400 feet in length. For the purposes of this section, block length shall be measured along a street frontage from an intersecting street to the next intersecting street. Such measurements shall not begin nor end at an alley.

2. **Design of New and Modified Streets.** New streets and modifications to existing streets shall be designed in conformance with the Fulton Corridor Specific Plan (FCSP). Designs may deviate from the FCSP if necessitated by site constraints, at the discretion of the Director.

3. **Vacation of Existing Streets and Alleys.** Existing streets and alleys shall not be removed or vacated, except for street or alley fragments that no longer connect to adjacent streets or provide access to adjacent properties. Such fragments may be vacated with Director approval, provided that such vacation will not result in a block which exceeds 400 feet in length.

(Added Ord. 2016-43, § 2, eff. 12-9-16; Am. Ord. 2017-33, § 9, eff. 7-30-17).

SEC. 15-1505. FAÇADE DESIGN DEVELOPMENT STANDARDS.

A. **Building Articulation and Massing.**

1. **Building Length Articulation.** All building facades over 50 feet in length which face a street, public plaza, or park shall be designed with a minimum of two of the following façade articulation strategies:

   a. **Material Articulation.** Utilize different materials to divide building façades into vertical and/or horizontal increments.

   b. **Structural Expression.** Express building bays, structural elements such as columns and/or beams, or underlying structural elements with pilasters and lintels that project several inches from the façade and/or are clad in a different material from the façade.

   c. **Horizontal Articulation.** Setback a portion of the street-facing façade a minimum of two feet for a minimum distance of 25 feet.

   d. **Architectural Projections.** Append or project façade elements such as balconies, bay windows, cantilevered rooms, and/or awnings.

   e. **Architectural Recessions.** Recess architectural elements or spaces—such as recessed porches, covered passages, recessed balconies, and windows—into the plane of the façade.

2. **Building Height Articulation.** In order to maintain a human scale for multi-story buildings, the height of façades which face a street, public plaza, or park shall be broken into smaller increments as follows:

   a. **Ground Floors.** A substantial horizontal articulation of the façade shall be applied at the top of the first story. On buildings of five stories or taller, this articulation may be applied at the top of the second story. This element shall be no less than 18 inches tall, and shall project no less than four inches from the adjacent wall plane. It shall be designed as a cornice, belt course, or other such architectural element which is appropriate to the style of the building.

   b. **Top Floor.** Buildings or portions of buildings which are four stories in height or taller shall also provide articulation for the top story of the building. This can be accomplished by a color change, material change, a cornice/belt course at the bottom of the uppermost story, or by stepping the uppermost story back at least five feet. On buildings of 8 stories or taller, this articulation may be applied to the top two stories.

   c. **Ground Floor/Upper Floor Differentiation.** Ground floor facades shall be distinct from upper floors through the use or finish of materials, colors, window sizes, or architectural details.

   d. **Exception.** Civic and Cultural buildings located in the Downtown General (DTG) District may be excepted as determined by the Review Authority.

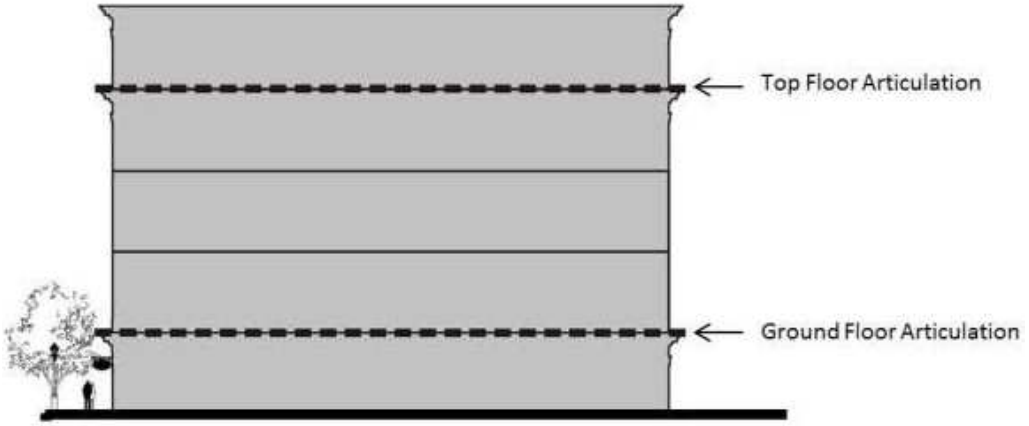


FIGURE 15-1505-A.2: BUILDING HEIGHT ARTICULATION

B. **Building Materials and Finishes.**

1. **General Standards.**

   a. Each side of a building that is visible from a street, public plaza, park, or passenger railway shall be designed with a complementary level of detailing and quality of materials.

b. Each side of a parking structure that is visible from a street, public plaza, park, or passenger railway shall be designed to be compatible with the architectural character, materials, and colors of the overall development.

c. **Durability of Materials.** Exterior materials shall be durable and promote permanence and longevity. Applicants must demonstrate that materials will not unintentionally discolor due to weathering or corrosion. Materials that discolor naturally, such as copper, are encouraged.

d. **Design Consistency.**

i. Finishes, fixtures, and other architectural details shall be designed to be consistent throughout the building.

ii. Attached architectural elements and details such as lighting fixtures, attic vents, custom signage, awnings, hand rails, balconies, and trellises shall be designed to be consistent with other elements throughout the building. Such elements shall relate to the elements or intended general character of surrounding significant resources, potentially significant resources, and other historic-era buildings.

Many of Fresno's cherished historic buildings have articulated upper and lower floors.

Contemporary buildings can also exhibit building height articulation.

e. **Multiple Materials.**

i. Two or more wall materials may be combined on one façade.

ii. A minimum of two exterior wall finish materials shall be used for all mixed-use buildings with a commercial ground floor.

iii. If located one above the other, lighter appearing materials shall be placed above more substantial materials (e.g., wood above stucco or masonry, or stucco and glass above masonry).

iv. In general, vertical joints between different materials shall occur only at inside corners.

2. **Stucco.**

   a. Finishes should be smooth and troweled.

   b. The pattern of joints should be architecturally coordinated with the overall façade composition, and sealant colors should be coordinated with surface and other building colors.

3. **Exposed Wood.**

   a. Exterior walls that are or were originally clad in exposed wood shall not be covered with a non-wood material. Wood-like materials, such as cementitious siding, may be used.

   b. Exposed wood (or wood-like materials) shall be finished in a manner that minimizes maintenance and promotes the material's longevity.

4. **Reflective Materials.** Reflective materials, such as polished metal cladding or chrome, are allowed only if:

   a. The material is applied to small areas such as to highlight signage.

   b. It can be demonstrated that the material will not result in an incompatible adjacency or cause a nuisance to pedestrians, vehicles, and neighboring buildings.

5. **Masonry and Stone.**

   a. Masonry veneer walls shall be detailed with structural integrity, appearing thicker and heavier, especially at corners and window and door openings.

   b. Brick and cut stone shall be laid in true bonding patterns. Mortar joints shall be struck.

   c. River and rubble stone shall be laid from large closest to the ground to small farthest from the ground, with smooth or beaded mortar joints.

   d. Masonry detailing shall transition from stone to other materials through moldings, caps, and other trim elements.

6. **Veneers.** Veneers should turn corners, avoiding exposed edges and continue down the side of a building to a logical break, such as a change in wall plane. Corner pieces should be mitered to hide the joint.

7. **Trim.** Trim materials and finishes shall be differentiated from adjacent wall cladding materials and finishes. Acceptable trim materials shall be wood, precast concrete, stone, tile, or similar materials. Stucco trim shall be permitted at the determination of the Review Authority, and in such instances it shall feature a smooth finish that contrasts significantly from adjacent stucco wall cladding.

8. **Synthetic Materials.** The use of synthetic materials is allowed when the Review Authority determines that the material:

   a. Adequately simulates the appearance of the natural material it imitates.

b. Demonstrates an ability to age similar to or better than the natural material it imitates.

c. Has a permanent texture, color, and character that is acceptable for the proposed application.

d. Can be pressure washed and, in general, withstand anti-graffiti measures.

9. **Prohibited Materials.** Prohibited exterior materials include the following:

a. T1-11.

b. Rough-sawn wood.

c. Vertical siding.

d. Board and batten.

e. Metal siding, except in the DTN zone.

f. Concrete block as an exterior finish material, except in the DTN zone.

g. Plywood, particle board, press board, and similar materials.

10. **Signage Design.** Building signage shall be designed to complement the building while providing adequate visibility from and maintaining compatibility with adjacent suites/units on upper floors near the signage.

11. **Renovations and Alterations.**

a. Modifications to existing buildings shall be architecturally compatible with the existing building as determined by the Review Authority.

b. Exterior walls that are or were originally clad in wood, masonry, or stone shall not be covered with a different material such as stucco.

c. Renovations or alterations to "modernized" pre-World War II buildings shall restore the original façade materials, textures, fenestration, and ornamentation to the extent possible as determined by the Review Authority.

12. **Exception.** Civic and Cultural buildings located in the Downtown General (DTG) District may be excepted from the standards of this subsection as determined by the Review Authority.

C. **Window and Door Opening Design.**

1. **Consistency with Architectural Style.** The orientation and proportion of openings shall be consistent with the architectural style of the building and shall relate to one another proportionally and according to a rational system of design. For example, buildings designed according to traditional architectural styles typically have window openings and panes that are vertically oriented or square or composed of groupings of vertically oriented windows. Mixed-use buildings can have second floor windows that are grouped and centered above the ground floor storefront doors and windows.

2. **Glazing Ratio.**

a. Upper floor façades, and non-commercial portions of ground floor street-facing façades, which face a street, public plaza, or park shall comply with the following requirements for openings:

TABLE 15-1505-C-2-A: GLAZING STANDARDS			
Standard	**DTN**	**DTG**	**DTC**
Min. percentage of upper floor façades that shall consist of openings such as windows and doors to balconies or roofdecks.	25	25	25
Max. percentage of upper floor façades that shall consist of openings such as windows and doors to balconies or roofdecks. Curtain wall systems are allowed as a primary cladding system in the DTG district, and as an accent in the DTN and DTC districts.	70	100	70

b. **Ground Floor Commercial Transparency.**

i. For ground floor façades which face a street, public plaza, or park on portions of a structure occupied by commercial uses, exterior walls facing a front or street side lot line shall include windows, doors, or other openings with transparent glazing for at least 60 percent of the building wall area located between 1.5 and seven feet above the level of the sidewalk.

ii. Openings fulfilling this requirement shall have transparent glazing without reflective glass frosting or dark tinting (to the maximum extent permitted by Title 24 and other energy efficiency regulations) and provide views into work areas, display areas, sales areas, lobbies, or similar active spaces, or into window displays that are at least two feet deep.

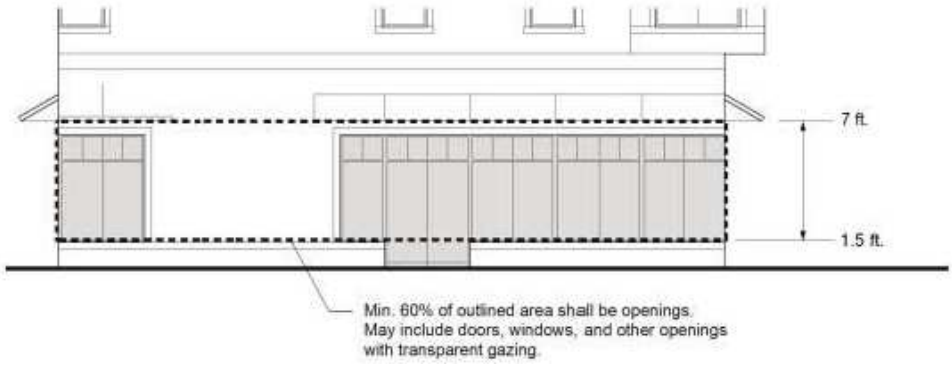


FIGURE 15-1505-C-2-B: GROUND FLOOR COMMERCIAL TRANSPARENCY

3. **Vertical Proportion.** On upper stories, window openings shall have a vertical proportion, in which their height exceeds their width by 25 percent or more. Openings divided by muntins of four inches or more in width shall constitute separate openings.

4. **Window Depth.** Trim at least one inch in depth must be provided around all upper story windows, or windows must be recessed at least two inches from the plane of the surrounding exterior wall. For double-hung and horizontal sliding windows, at least one sash shall achieve the two-inch recess.

5. **Bay Windows.** Bay windows, if provided, shall be habitable spaces.

6. **Window and Door Materials and Detailing.**

   a. Allowed window and door materials include wood, fiberglass, steel, or aluminum.

   b. Muntins, if used, shall be true and divide one pane from the adjoining pane, be of substantial dimension, and not be flat.

   c. Flush "nail-on" aluminum windows, and horizontal aluminum sliding windows are prohibited.

   d. Vinyl and vinyl clad windows shall be consistent with the architectural style of the building. For example, windows of Craftsman style buildings should be brown or hunter's green, not white.

   e. Glazing shall be clear glass (to the maximum extent permitted by Title 24 and other energy efficiency regulations), particularly in storefront and primary window applications. Transom, clerestory, and other specialty windows are not required to be clear and may be decorative.

   f. Window sills shall be detailed to properly shed water.

   g. Head casing shall be equal in width to or wider than jamb casing.

   h. Accessories may include operable shutters sized to match their openings, opaque canvas awnings and other shading devices, and planter boxes supported by visible brackets appropriate to each design.

   i. Security bars and roll down security doors are prohibited on the outside of windows and doors which face a street, public plaza, or park. Retractable interior security bars or gates may be used.

7. **Exception.** With the exception of Section 1505-C.2.b, Civic and Cultural buildings located in the Downtown General (DTG) District may be excepted from the standards of this subsection as determined by the Review Authority.

D. **Façade Alignment.**

1. **Vertical Alignment.** With the exception of mansard roofs, cornices, and other such features, façades shall be oriented vertically and shall have no slope.

2. **Horizontal Alignment.** With the exception of bay windows and similar features, façades that are located within 30 feet of a public street or public plaza shall run parallel or perpendicular to said street or plaza.

3. **Exception.** Civic and Cultural buildings located in the Downtown General (DTG) District may be excepted from the standards of this subsection as determined by the Review Authority.

E. **External Stairs and Corridors.**

1. **External Stairways.** With the exception of stoops and similar steps intended for access for ground-floor spaces, external stairways shall not be located between the primary façade of the building and a public street. Within 30 feet of a public street, stairs shall be architecturally integrated into the building and shall not have open risers.

2. **External Corridors.** External upper-floor corridors located within 30 feet of a public street shall be architecturally integrated into the building.

F. **Private Frontage.** Uses shall be accessed through frontage types as follows. "P" means the frontage type is permitted. "-" means the frontage type is not permitted.

TABLE 15-1505-e-1: PERMITTED PRIVATE FRONTAGE TYPES

Use Classification	*Front Yard*	*Porch*	*Stoop*	*Loading Dock / Terrace*	*Shop-front*	*Forecourt*	*Grand Entry*	*None*
Residential, Individual Entry	P	P	P	—	—	—	—	—
Residential, Common Entry	P	—	—	—	—	P	P	—
Public and Semi-Public	P	—	—	—	P	P	P	—
Commercial, Individual Entry	—	—	—	P	P	—	—	—
Commercial, Common Entry	—	—	—	—	P	P	P	—
Industrial	—	—	—	P	P	P	P	P
Transportation, Communication, and Utilities	—	—	—	—	—	P	P	P
Service Areas	—	—	—	—	—	—	—	P

TABLE 15-1505-E-2: PRIVATE FRONTAGE STANDARDS

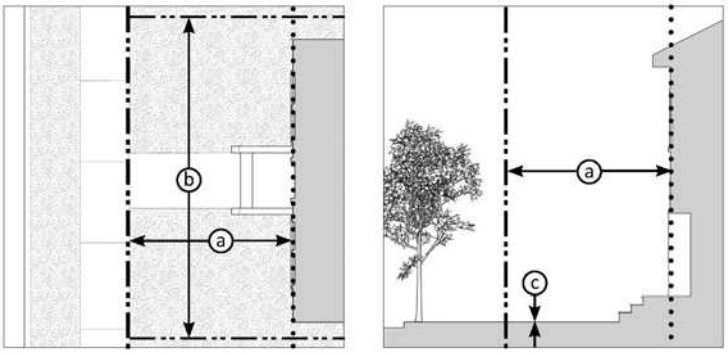
A. Front Yard

1. Basic Standards

ⓐ Clear Depth: 5 ft. min.

ⓑ Length: 15 ft. min.

ⓒ Height above Sidewalk: 3 ft. max.



2. Supplemental Standards

a. Planters, garden walls, fences and hedges are permitted at the sidewalk to a maximum height of 3 ft.. Materials and design shall be compatible with the architectural style of the building.

b. Water features, shade structures, seating, and gardens are encouraged in this area.

c. Vehicular parking, trash collection and storage are not permitted in this area.

d. When Front Yards are raised from the level of the sidewalk, the resulting retaining wall shall be decorative and clad in brick or stone.

B. Porch

TABLE 15-1505-E-2: PRIVATE FRONTAGE STANDARDS

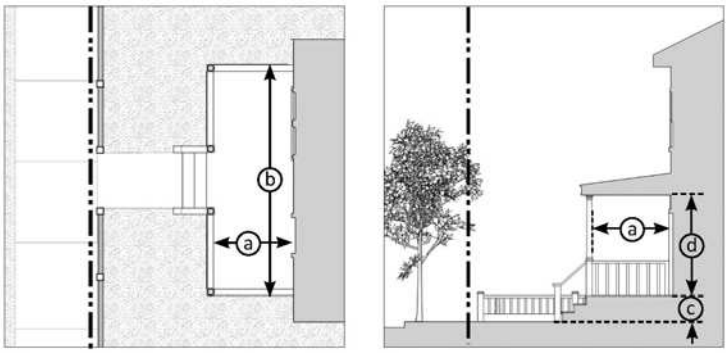
1. Basic Standards

ⓐ Clear Depth: 5 ft. min., 15 ft. max.

ⓑ Length: 8 ft. min.

ⓒ Height above adjacent grade: 18 in. min., 4 ft. max.

ⓓ Height: 8 ft. min. clear from the finish floor



Plan Section

2. Supplemental Standards

a. Provide landscaping in front of and around porch.

b. Railings should be no higher than required by the building code.

c. The porch may extend around to encroach into the street sideyard up to ½ of the required setback. If insufficient distance exists, the minimum porch depth shall be achieved by moving back the façade the necessary distance.

d. Awnings may be attached to the face of the porch if the awning is adequately supported and if the awning is compatible with the architectural style of the porch and building.

e. Porches shall not be enclosed except for insect screens between the structural members of the porch if:

i. Visibility is not reduced between the adjacent sidewalk and the porch.

ii. The insect screen is recessed from the front face of the columns on the porch.

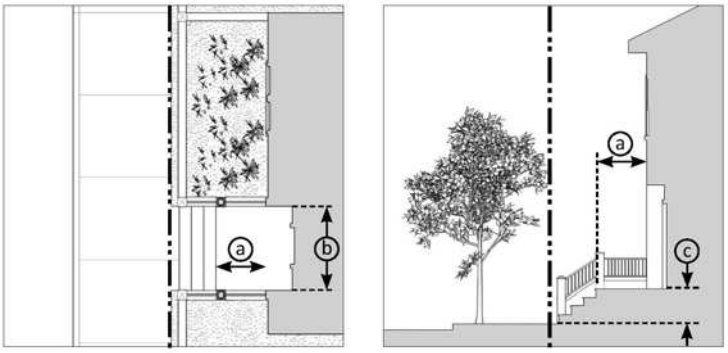
C. Stoop

1. Basic Standards

ⓐ Clear Depth: 6 ft. min., 15 ft. max.

ⓑ Length: 4 ft. min., 10 ft. max.

ⓒ Height: Max. 4 ft. elevation above finish sidewalk grade



Plan Section

2. Supplemental Standards

a. Landscaping encouraged in front, around and/or within walls of stoop.

b. Minimum 3 ft. to maximum 4 ft. high garden wall and gate may be provided at entry to stoop.

c. Entry gates to swing in a direction away from sidewalk.

d. Use of other frontage types at entry stoop (e.g., awning, bay window, arcade) allowed.

e. Exterior stairs may be located perpendicular or parallel to the adjacent sidewalk.

f. The landing may be covered or uncovered, but shall not be enclosed beyond the building façade (e.g., stoop landings may be recessed into the building façade and be enclosed by the walls of the recess).

D. Loading Dock/Terrace

TABLE 15-1505-E-2: PRIVATE FRONTAGE STANDARDS

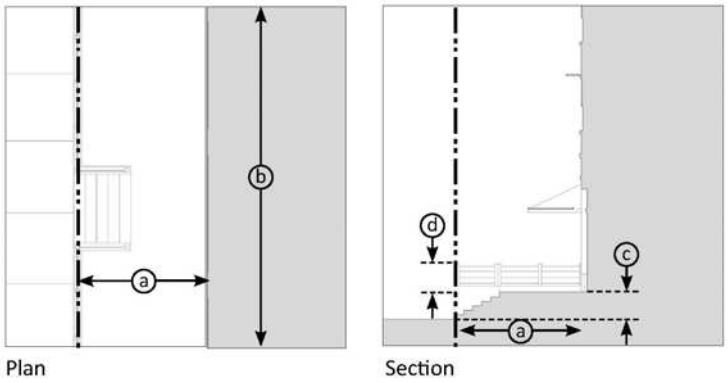
1. Basic Standards

ⓐ Clear Depth: 7 ft. min.

ⓑ Length: no min./no max.

ⓒ Height: Max. 4 ft. elevation above finish sidewalk grade

ⓓ Railing Height: no higher than required by the Building Code



2. Supplemental Standards

a. Exterior stairs may be perpendicular or parallel to the adjacent sidewalk but shall not encroach into the right-of-way. The landing may be covered or uncovered.

E. Storefront

1. Basic Standards

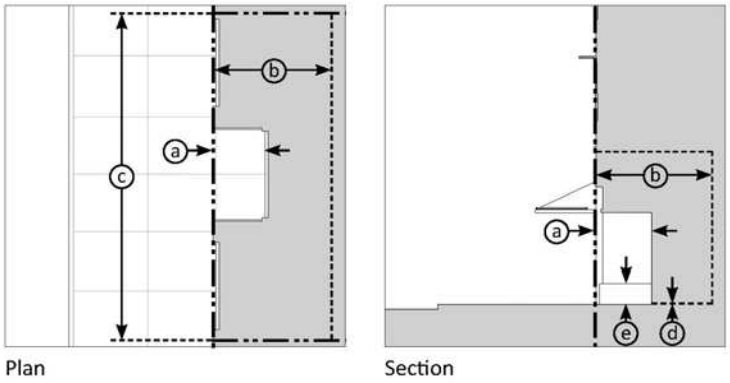
ⓐ Depth of Recessed Storefront Dining Area: 12 ft. max.

ⓑ Depth of Shop: 30 ft. min.

ⓒ Length: min. 75% of required façade length

ⓓ Height above sidewalk: must be at sidewalk grade

ⓔ Bulkhead Height: 18 in. min., 3 ft. max.



2. Supplemental Standards

a. A physical transition or 'bulkhead' shall be provided between the glazing of any storefront and the adjacent sidewalk. The bulkhead shall not consist of aluminum storefront or spandrel panel.

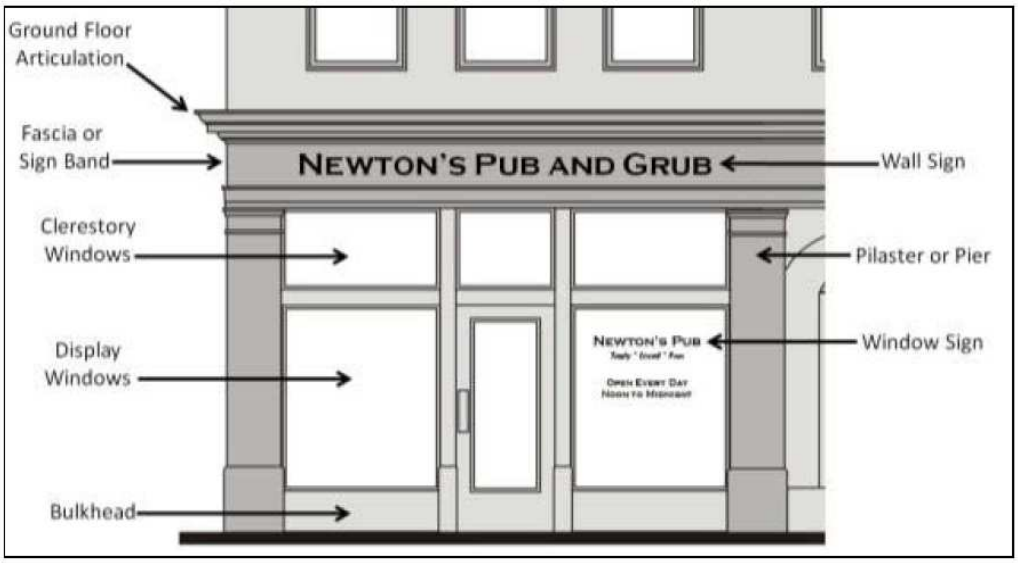
b. Storefront windows may have clerestory windows between the storefront and second floor/top of single-story parapet. Glass in clerestory windows may be of a character to allow light, while moderating it such as stained glass, glass block, painted glass, or frosted glass.

c. Storefronts shall provide clear views of merchandise displays within the shop space and/or maintained and lighted merchandise display(s) within a display zone of at least two feet in depth from the glass.

d. The storefront may be directly illuminated from the sidewalk side of the glass by externally mounted lights.

e. Planter boxes, containers or vine pockets may be located adjacent to storefronts. Such landscape areas shall not be located within required ADA access ways along any public sidewalk.

TABLE 15-1505-E-2: PRIVATE FRONTAGE STANDARDS



This diagram shows how the various components of a storefront can be arranged.

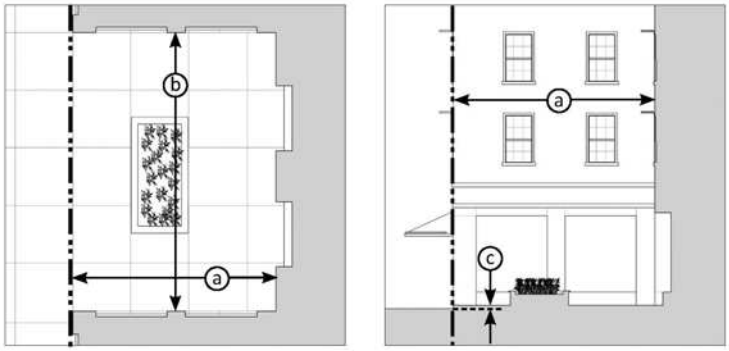
F. Forecourt

1. Basic Standards

ⓐ Clear Depth: 15 ft. min.; 50% of lot depth max.

ⓑ Length: 12 ft. min.; 50% of lot depth max..

ⓒ Height: 4 ft. max. above adjacent sidewalk



2. Supplemental Standards

a. Elevated forecourts shall meet the accessibility code for access to the building and the sidewalk. Railings shall not visually obstruct views to or from the street and shall be designed to match the architectural style of the main building.

b. Arcades, galleries, awnings, or canopies may encroach into the forecourt for a distance of ¼ of the forecourt width or depth with a cumulative encroachment not to exceed a combined distance of ½ of the forecourt width and depth, respectively.

c. Planters, garden walls, fences and hedges are permitted at the entrance to the forecourt to a maximum height of 3 ft. per Section 15-2006, Fences, Walls, and Hedges.

d. Water features, shade structures, seating, and gardens are encouraged in this area.

e. Vehicular parking, trash collection and storage are not permitted in this area.

G. Grand Entry

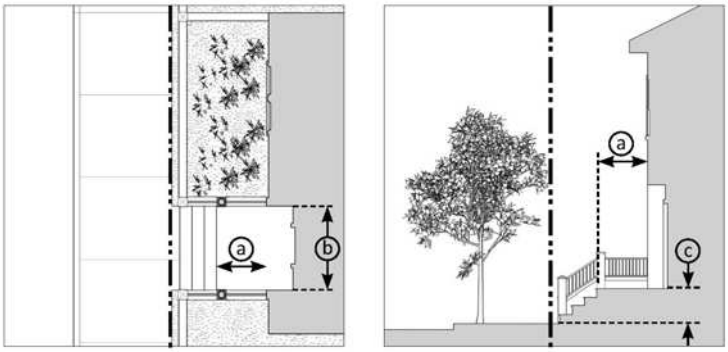
TABLE 15-1505-E-2: PRIVATE FRONTAGE STANDARDS

1. Basic Standards

ⓐ Clear Depth: 6 ft. min., 15 ft. max.

ⓑ Length: 10 ft. min., 25 ft. max.

ⓒ Height: May be at sidewalk grade, or max. 4 ft. elevation above finish sidewalk grade



2. Supplemental Standards

a. The entrance shall be clearly differentiated from entrances into individual commercial or residential spaces through the use of decorative columns or similar ornamentation flanking the entrance, by aligning the entrance with prominent architectural features on upper floors, or through color and material changes.

b. The entrance shall be covered by an awning or canopy or shall be recessed into the building.

G. **Façade Elements.** The following development types shall incorporate a minimum of two of the Façade Elements shown in Table 15-1505-F into front and street-side building façades.

1. New buildings.

2. Building additions (façade elements are not required on the existing part of the structure if it is not being altered).

3. Façade remodels.

4. Exceptions:

   a. Projects or parts of projects involving designated historic resources, or the restoration of historic façades, shall not be required to incorporate Façade Elements if such elements were not part of the historic façade.

   b. Civic and Cultural buildings located in the Downtown General (DTG) District may be excepted from the standards of this subsection as determined by the Review Authority.

TABLE 15-1505-F: FAÇADE ELEMENTS—DOWNTOWN DISTRICTS

A. Gallery

TABLE 15-1505-F: FAÇADE ELEMENTS—DOWNTOWN DISTRICTS

1. Basic Standards

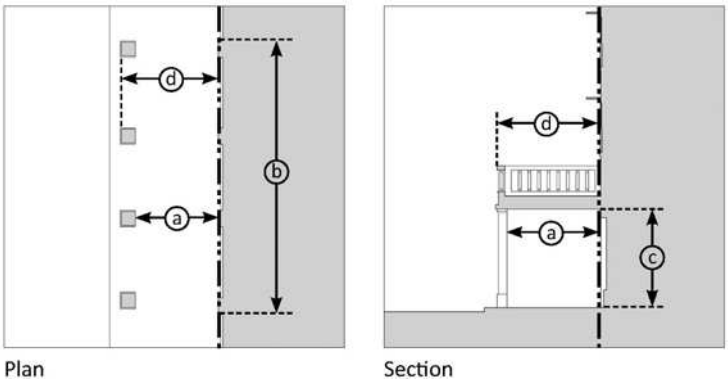
ⓐ Clear Depth: 10 ft. min., 15 ft. max.

ⓑ Length: 50% to 100% of building length

ⓒ Height: 8 ft. min. clear from the finish floor

ⓓ Encroachment into R.O.W.: Galleries may encroach over the sidewalk in the public right-of-way, subject to an encroachment permit prior to issuance of a building permit as follows:

- 10—12 ft. wide sidewalk: 6 ft. max.
- 12—14 ft. wide sidewalk: 8 ft. max.
- 14+ ft. wide sidewalk: ⅔ width of sidewalk max.



2. Supplemental Standards

a. Planter boxes or pots may be placed in between the columns to provide enclosure for uses such as café seating. A Gallery must be a minimum 50% open on two sides.

b. Balconies, awnings, bay windows, verandas, or other structures are allowed above the gallery.

c. Except on residential and civic buildings, Galleries shall be combined with the Storefront frontage type.

d. Column spacing and colonnade detailing, including lighting, shall be consistent with the style of the building to which it is attached.

e. Columns shall be placed in relation to curbs so as to allow passage around and to allow for passengers of cars to exit the vehicle.

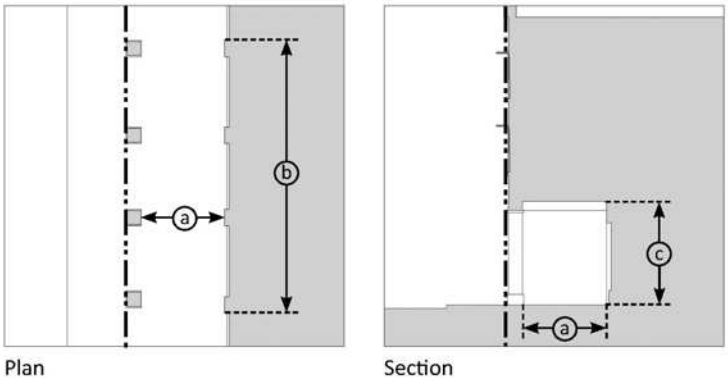
B. Arcade

1. Basic Standards

ⓐ Clear Depth: 10 ft. min., 15 ft. max.

ⓑ Length: 50% to 100% of building length

ⓒ Height: 8 ft. min. clear from the finish floor



2. Supplemental Standards

a. Planter boxes or pots may be placed in between the columns to provide enclosure for uses such as café seating.

b. Arcade to be a minimum 50% open on two sides.

c. Balconies, awnings, bay windows, verandas, or other structures are allowed above the arcade.

d. Column spacing and colonnade detailing, including lighting, shall be consistent with the style of the building to which it is attached.

C. Bay Window

TABLE 15-1505-F: FAÇADE ELEMENTS—DOWNTOWN DISTRICTS

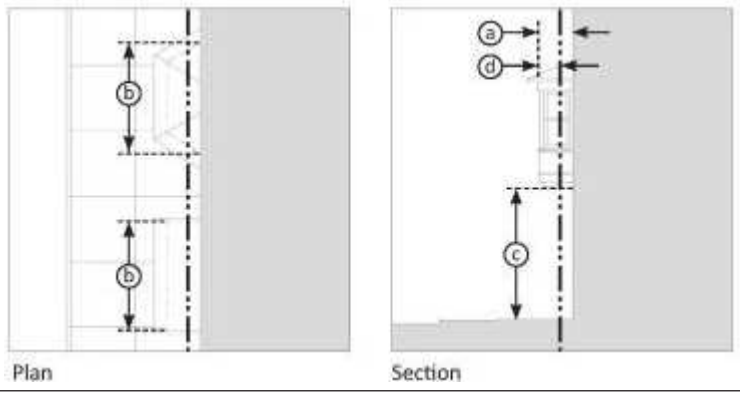
1. Basic Standards

ⓐ Depth: 2 ft. min., 4 ft. max.

ⓑ Length: 15 ft. max.

ⓒ Height: 2nd fl.: 10 ft. min. clear from the ground

ⓓ Encroachment into R.O.W.: 3 ft. max.



2. Supplemental Standards

a. Bay windows are permitted on the ground floor of buildings with residential ground floors.

b. Provide landscape in front and around bay windows on the ground floor.

c. Bay windows to have a minimum 25% glazing.

D. Balcony

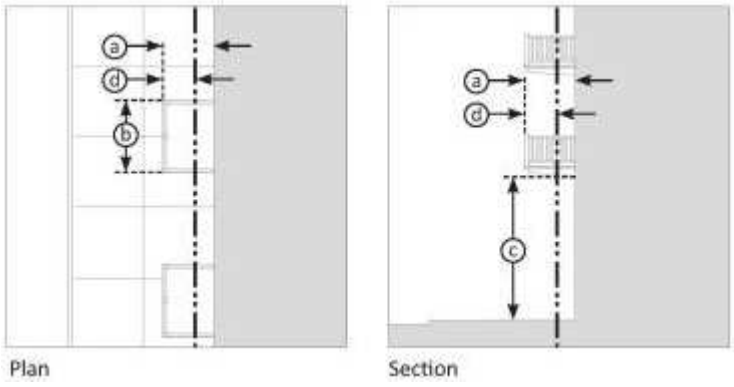
1. Basic Standards

ⓐ Depth: 5 ft. min., 10 ft. max.

ⓑ Length: 8 ft. min.

ⓒ Height: 8 ft. min. clear, 12 ft. max. clear from the finish floor

ⓓ Encroachment into Setback or R.O.W.: 4 ft. max.



2. Supplemental Standards

a. Balcony may be covered but should be a minimum 50% open on three sides.

E. Awning, Canopy, Marquee, Sun Shade, Trellis

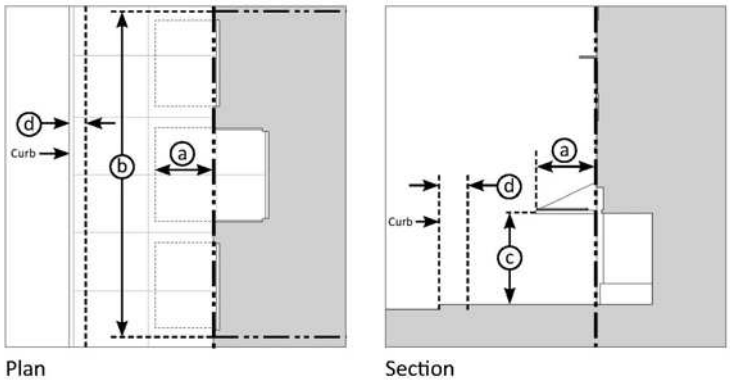
1. Basic Standards

ⓐ Depth: 2 ft. min., 10 ft. max.

ⓑ Length: 25% to 75% of building frontage

ⓒ Height: 8 ft. min. clear from the ground

ⓓ Encroachment into Setback or R.O.W.: within 2 ft. clear of curb



2. Supplemental Standards

a. Awnings, Canopies, Sun Shades, and Trellises shall not cover the entire length of the facade. They may cover individual storefronts and openings or multiple openings as follows:

TABLE 15-1505-F: FAÇADE ELEMENTS—DOWNTOWN DISTRICTS
• Storefront(s) within 5 feet of another storefront. • Up to 2 doors or windows not associated with a storefront if the distance between them does not exceed 3 feet. b. Awnings, Canopies, Sun Shades, and Trellises shall not obscure architectural features such as moldings above the storefront. c. Awnings shall match the shape of the opening they are shading (simple shed shaped awnings for rectangular openings) except for odd shaped awnings. Odd shaped and bubble awnings are prohibited except where a photograph shows they have been previously allowed on the building and were not in conflict with an applicable requirement. d. Awnings, Canopies, Sun Shades, and Trellises may be constructed of metal, wood or fabric. Highly reflective materials should be avoided. e. Lights that illuminate the pedestrian way or sidewalk dining beneath the awning are only allowed upon review and determination by the Director that the proposed lighting is appropriate for the context and consistent with the intended physical character of the zoning district. f. Internally illuminated awnings that glow are prohibited.

(Added Ord. 2016-43, § 2, eff. 12-9-16).

SEC. 15-1506. RIGHT TO DOWNTOWN OPERATIONS.

As Downtown Fresno continues its evolution into a compact, mixed-use center, it is essential that new property owners and tenants understand the present and future nature of the area so that they may function together as harmoniously as possible. Toward that end, this section will ensure that property owners, tenants, and users of property within the Downtown Districts are notified of the vibrant, active Downtown environment, the revitalization efforts and public improvements occurring Downtown, the special events and community and business activities that are part of the vitality of the Downtown, and the expectations and responsibilities associated with owning, purchasing, renting or making other use of property within Downtown.

A. **Definitions.**

1. The following definitions shall apply to the Right to Downtown Operations section:

- Downtown Operations: Any activity, use, facility or operation associated with a permitted temporary or permanent use occurring within the boundaries of the Downtown Districts, as well as any lawful public uses. Downtown operations and their associated impacts include, but are not limited to, the following: music, dancing, singing, and voices associated with permitted uses and Downtown activities; odors associated with operation of restaurants, breweries, coffee roasters, urban wineries, and other businesses; high levels of traffic and traffic congestion; increased vehicular traffic from special events and other activities; street construction, closures and traffic re-routing, including exclusion of vehicle access during certain times due to festivals, parades or other special events; railroad operations, including increased rail activity associated with passenger rail operations; outdoor sales of merchandise and outdoor restaurant seating; festivals, parades and/or cultural events which may result in gatherings of large groups of people, street closures, parking

impacts, noise, odors and other impacts; increased levels of pedestrian activity; operation of delivery trucks and vans, trash and recycling collection trucks, and other such vehicles; impacts associated with artists' studios and spaces, including noise, odors, and vibration; general increases in activity levels occurring on a 24-hour basis, including increases in noise and other impacts during late night and early morning hours; high levels of nighttime lighting and illumination; and trash collection, including trash collection before 6:00 a.m.

- Property: Any real property located within the Downtown Districts, including property intended for residential, commercial, business, public purposes, and other uses.
- Tenant: Any renter or lessee of property.
- Transfer: The sale, lease, trade, exchange, rental, or gift of property.
- Transferee: Any person or entity acquiring an interest in real property in the Downtown Districts from another person or entity, including, but not limited to, a purchaser of property or a person taking possession of property pursuant to a lease or rental agreement.
- Transferor: Any person transferring an interest in real property in the Downtown Districts to another person, including the seller of property or a landlord granting possession of property pursuant to a lease or rental agreement.

B. **Downtown Operations Notification Requirements.**

1. As a condition of approval of any Development Permit, Tentative Subdivision Map, Conditional Use Permit, or similar entitlement relating to property located within the For all housing that is entitled under the Downtown Districts, every property owner shall record the deed notification provided in Section 15-1506-B.3 of this Code on the property for which the Zone Clearance, Development Permit, Tentative Subdivision Map, Conditional Use Permit, or similar entitlement is issued. The Notice of Right to Downtown Operations shall be included in all subsequent deeds and leases for this property until such time as the property is no longer located within the Downtown Districts.

2. Every transferor of property, as transferor is defined herein, subject to the requirements of 15-1506-B.1 shall, upon transfer, also provide to any transferee the Notice of Right to Downtown Operations recited in 15-1506-B.3. The Notice of Right to Downtown Operations may be contained in any form of agreement or contract; however, the notice need be given only once in any transaction. The transferor and transferee shall provide each other with written acknowledgement of delivery and receipt of the notice.

3. The notice provided in this section is intended to advise property owners, tenants and users of property within the Downtown Districts of the inherent

impacts and inconveniences associated with purchase, tenancy or use of property in the Downtown Districts. This notice shall be provided as required by 15-1506-B.1 and 15-1506-B.2.

NOTICE OF RIGHT TO DOWNTOWN OPERATIONS

The City of Fresno permits the operation of a variety of residential, commercial, civic, and cultural activities within the Downtown zoning districts.

You are hereby notified that the property you own, or are renting, leasing, using, occupying, or acquiring an interest in is located within the Downtown zoning districts. You may be subject to impacts, including inconvenience and discomfort, from lawful activities occurring within the Downtown zoning districts. Impacts may include, but are not limited to, noise, odor, glare, and transportation congestion resulting from permitted uses such as, but not limited to, civic, commercial, cultural, public and institutional, recreational, and transportation-related activities. Specific impact-causing sources might include, but are not limited to, music, dancing, talking, singing, laughter, restaurants and bars, outdoor dining/seating, outdoor sales, festivals, parades, special events, street closures, high volumes of traffic, high volumes of pedestrian activity, emergency services, waste collection, commercial and business operations, railroad operations and rail activity, and other permitted Downtown activities. These impacts might occur late at night, early in the morning, or on a 24-hour basis.

One or more of the inconveniences described above might occur as a result of Downtown operations and activities which are in compliance with existing laws and regulations and accepted customs and standards. If you own, lease, rent, or otherwise utilize property within the Downtown zoning districts, you are expected to be prepared to accept such inconveniences or discomfort as a normal and necessary aspect of owning, living in, operating a business in, or otherwise utilizing an area with an active Downtown character.

The City of Fresno's Development Code does not exempt Downtown businesses or other participants in Downtown activities from compliance with the law. Should any business or person not comply with appropriate state, federal, or local laws, legal recourse may be possible by, among other ways, contacting the appropriate agency.

This notification is given in compliance with the Fresno Municipal Code § 15-1506.

4. The failure to give the notice required by this section shall not invalidate any transfer.

C. **Nuisances, Resolution of Disputes, and Contact Persons.**

1. Normal Downtown operations are presumed to not constitute a nuisance, unless such operations are deemed to be a nuisance under California Civil Code

Section 3479 or the Fresno Municipal Code. Downtown operations shall comply with all state, federal, and local laws and regulations applicable to the operations, including applicable noise and other operational standards contained in the Fresno General Plan and/or Fresno Municipal Code.

2. Every developer or owner of commercial, residential, or other property within the Downtown Districts, consisting of two or more residences, businesses or tenant spaces, shall, as a condition of approval of any Development Permit, Tentative Subdivision Map, Conditional Use Permit, or similar entitlement relating to property located within the Downtown Districts, designate an information contact person. The information contact person shall be available to disperse information distributed by the City, PBID, non-profit organizations, or other public or quasi-public organizations, to tenants and property owners within the development. The information contact person role may be undertaken by the property owner, a homeowner's association, a property management company or other similar organization.

(Added Ord. 2016-43, § 2, eff. 12-9-16).

SEC. 15-1507. ADDITIONAL STANDARDS.

A. Projects shall incorporate all relevant mitigation measures required pursuant to applicable environmental assessments prepared pursuant to CEQA that encompass the project area. "Applicable Environmental Assessments" shall include, but may not be limited to the following:

1. A MEIR prepared for the General Plan in effect at the time of project approval;
2. A Program or Project EIR prepared for either a Community Plan or Specific Plan that includes the project area, in effect at the time of project approval.

B. The proposed design shall not lead to an overburdening of existing or planned infrastructure capacities, including, but not limited to, capacities for water, runoff, storm water, wastewater, and solid waste systems. The determination of whether or not the proposed design can be accommodated within existing infrastructure shall be made by the Review Authority in consultation with the Directors of Public Works and Public Utilities.

C. The project shall comply with all applicable Public Works standards.

(Added Ord. 2016-43, § 2, eff. 12-9-16).

ARTICLE 16 OVERLAY DISTRICTS

Sec. 15-1601. Reserved.
Sec. 15-1602. Reserved.
Sec. 15-1603. Bluff Protection (BL) Overlay District.
Sec. 15-1604. Expressway Area (EA) Overlay District.
Sec. 15-1605. Residential Modifying (RM) Overlay District.
Sec. 15-1606. Annexed Rural Residential Transitional (ANX) Overlay District.
Sec. 15-1607. Equine (EQ) Overlay District.
Sec. 15-1608. Mining (M) Overlay District.
Sec. 15-1609. Apartment House (AH) Overlay District.
Sec. 15-1610. Urban Campus (UC) Overlay District.
Sec. 15-1611. Neighborhood Revitalization (NR) Overlay District.
Sec. 15-1612. Kearney Boulevard Historic Corridor (KB) Overlay District.
Sec. 15-1613. California Avenue Transit Corridor (CA) Overlay District.
Sec. 15-1614. Focused Infill (FI) Overlay District.

SEC. 15-1601. RESERVED.

Editor's note—Ord. 2016-32, § 42, effective October 21, 2016, amended the Code by repealing former § 15-1601, which pertained to Planned Development (PD) Overlay Districts, and derived from Ord. 2015-39, § 1, effective January 9, 2016.

SEC. 15-1602. RESERVED.

Editor's note—Ord. 2016-32, § 43, effective October 21, 2016, amended the Code by repealing former § 15-1601, which pertained to Airport Environs (AE) Overlay Districts, and derived from Ord. 2015-39, § 1, effective January 9, 2016.

SEC. 15-1603. BLUFF PROTECTION (BL) OVERLAY DISTRICT.

A. **Purpose.** The Bluff Protection (BL) Overlay District is intended to provide special land development standards that will preserve the integrity of the natural landscape of the southerly San Joaquin River Bluffs, adjacent properties, and adjacent open spaces as areas of special quality by reason of the topography, geologic substratum, and environment of the area. Regulations for the BL Overlay District are deemed necessary for the preservation of the special qualities of the southerly San Joaquin River Bluffs, and for the protection of the health, safety, and general welfare of owners and users of property within the River Bluff Influence Area.

B. **Applicability.** The provisions of this article apply to areas within 300 feet of the toe of the San Joaquin River bluff.

C. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

D. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Bluff Setback.** Development, including buildings, structures, decks, pools, spas, and steps, shall be setback a minimum of 20 feet from the bluff edge or as identified as

necessary for the preservation of the existing state of the bluffs in the soils report prepared pursuant to Section 15-1603-F, Soils Report, whichever is greater. Buildings, structures, decks, pools, spas, and steps include all objects that may be below grade, at grade, or above grade.

2. **Lighting and Illumination.** Streetlights and all exterior lighting shall be directed away from the riverbottom.

3. **Design and Orientation.** The design and orientation of structures, walls and fences shall be in keeping with the natural character of the Bluffs. Fences must be open a minimum of 80 percent (i.e., no more than 20 percent opaque) to allow for the passage of light and air.

4. **Colors and Materials.** Construction shall be permitted only on lots subject to recorded deed restrictions or covenants restricting exterior colors and construction materials to those which are compatible with the natural bluff environment and with surrounding development.

5. **Geologic Impact Standards.** To minimize potential geologic and soil hazards, the following provisions shall apply to all subdivisions and development within Bluff Zones I, II, and III of the San Joaquin River Bluffs environs:

    a. **General Provisions.** General provisions for grading, drainage, and erosion:

        i. Locations of streets, utilities and other facilities shall be approved by the Director and the City Engineer.

        ii. Requirements for the location, design, construction, and maintenance of surface and subsurface drainage facilities shall be as determined by the Fresno Metropolitan Flood Control District.

        iii. All development within Bluff Zones I, II, and III shall comply with the applicable provisions of the Building Code as adopted and amended by the City.

        iv. Drainage of storm and irrigation water shall be directed away from the Bluff Face to public rights-of-way or to drainage facilities approved by the Fresno Metropolitan Flood Control District. A drainage plan shall be provided and approved by the Director for each separate lot within the Bluff Influence Area, establishing methods for conveying surface water from roofs and landscaping, and drain water from all swimming pools or decorative pools to approved locations away from the Bluff Face.

        v. To minimize erosion, the following shall apply to all graded, altered, or unstable bluff areas:

            (1) Landscaping with drought-tolerant, low-fuel plants, compatible with the bluff environs, from a list prepared by the City.

            (2) Landscape irrigation shall utilize drip irrigation or low precipitation systems, and must be approved by the civil engineer prior to installation.

(3) Hydroseeding, netting and mulch shall be utilized to re-establish plant life, to control erosion and to discourage rodent burrowing.

b. **Soils Investigation.** The following types of soil evaluations shall be performed and reported:

i. **Bluff Zone I.** A civil engineer or soils engineer registered in the State of California shall investigate and report on soil and geologic conditions, utilizing methods consistent with accepted practices. The report shall evaluate soils and geologic conditions for development proposals located outside Bluff Zone II and shall be similar in scope to the soils investigation required under Subparagraph ii, below. The investigation and report shall identify potential surface and subsurface drainage problems that may ultimately affect the stability of the bluffs and any measures to mitigate such effects.

ii. **Bluff Zone II.** A civil engineer or soils engineer registered in the State of California shall provide a detailed Soils Investigation and Evaluation Report using methods consistent with accepted practice and shall include the following:

(1) Evaluation of existing stability;

(2) Evaluation of post-development slope stability;

(3) Documentation of existing conditions for rock falls, block caving, creep failures, shear failures, excessive erosion and sloughing;

(4) Evaluation of slope angles, subsurface drainage, proposed grading, structures, utility trenches, potential rodent population, storm drain disposal, surface irrigation and drainage, erosion, traffic vibration, potential seismic hazards, and on-site sewage disposal approximate to the bluffs;

(5) Evaluation of the influence of future development and grading along the Bluff Toe for its effect on slope stability;

(6) Evaluation of the adverse effect of increased surface and subsurface drainage;

(7) Coordination, review, and approval of site grading and drainage plans prepared by the project civil engineer for conformance to soils and geologic reports;

(8) Laboratory tests to evaluate the soil parameters to be used in determination of slope stability;

(9) Determination and establishment of the location of the Bluff Toe, Bluff Edge and of any building setbacks.

iii. **Bluff Zone III.** A civil engineer or soils engineer registered in the State of California shall complete a Soils Investigation and Evaluation Report, involving detailed study of individual lots within the River Bluff Influence Area, as follows:

(1) Zone III soils investigations will address the details of the configuration, location, type, and loading of the proposed structures and drainage plan;

(2) The report shall provide detailed recommendations for foundations, drainage, and other items critical to bluff stability.

c. **Filing.** Filing of Soils Investigation and Evaluation Reports shall be required as follows:

i. A Zone I, Zone II or Zone III Soils Investigation and Evaluation Report and a grading plan shall be filed at the time of filing any tentative tract map or parcel map providing for lots or portions of lots within Zone I, Zone II or Zone III, or at the time of filing any application for rezoning or for special permits for parcels of land within Zone I, Zone II or Zone III;

ii. For parcels of land within Zone I, Zone II or Zone III, that are not the subject of the filing of a tentative map or tentative parcel map, or that are not the subject of any application for rezoning or a special permit, a Zone I, Zone II or Zone III Soils Investigation and Evaluation Report and a grading plan shall be filed with any request for a building permit.

d. **Certification.** The Soils Investigation and Evaluation Reports shall be certified as follows:

i. The engineer responsible for the soils investigation and evaluation report and for the grading plan shall certify that the proposed project will not cause any significant increase in the risk of damage to the bluff from erosion, slippage, subsidence, or other movement when grading, drainage, and other slope protection measures have been done in accordance with the Soils Investigation and Evaluation Report and the grading plan. The certificate may be executed on the face of the subdivision map or parcel map or may be contained in a separate instrument delivered to the Director.

ii. The engineer responsible for the soils investigation and evaluation report and for the grading plan for parcels of land for which certification is not provided above shall file written certification with any request for a building permit that the proposed project will not cause any significant increase in the risk of damage to the bluff from erosion, slippage, subsidence or other movement, when grading, drainage and other slope protection have been done in accordance with the soils investigation and evaluation report and the grading plan.

e. **Completion of Erosion Controls.** All erosion control measures shall be completed before the issuance of occupancy permits for residences constructed on lots within or partially within Zone II, and shall be completed before the issuance of building permits for structures constructed on lots within or partially within Zone III.

E. **Development Permit.** A Development Permit is required for all grading and development, including buildings, structures, decks, pools, spas, and steps, within or abutting the southerly boundary of the BL Overlay District. This section applies to above or below grade objects.

F. **Soils Report.** All applications for development shall provide a soils report. This requirement does not apply to the property between Blythe Avenue and the extension of the Nees Avenue alignment, existing as of August 1, 1979, to the Bluff.

G. **Grading Standards.** No alteration or modification of the existing landscape, including grading or alteration of existing topography, or construction of any structures, shall be permitted on the bluff face or air space above it. This requirement does not apply to the property between Blythe Avenue and the extension of the Nees Avenue alignment, existing as of August 1, 1979, to the Bluff.

H. **Other Development Regulations.** Private access, including gates and/or staircases, irrigation systems, planting, maintenance/weed control, and/or disposing of green waste onto the Bluff, are not permitted.

I. **Commencement of Improvements.** No Building Permit or Grading Permit shall be issued unless all required technical studies required by this Code have been submitted and all applicable permits required by this Code have been obtained.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, §§ 14—16, eff. 6-11-18).

SEC. 15-1604. EXPRESSWAY AREA (EA) OVERLAY DISTRICT.

A. **Purpose.** As used herein, the Expressway Area (EA) Overlay District means major streets that are classified as Expressways, Super Arterials, and other streets that may be designated by the City. The Expressway Area (EA) Overlay District is established to:

1. Protect land uses and residences proximate to designated major streets.

2. Limit development that may potentially be detrimental to the general health, safety, and welfare and to existing and future infrastructure operations and improvements.

3. Mitigate noise to acceptable levels.

B. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Residential Districts.** No building shall be erected within 200 feet of the right-of-way line, except as follows:
    a. An acoustical study determines that interior noise can be mitigated to acceptable levels.
    b. In no case shall the minimum building setback be less than 75 feet from the center line of the nearest moving traffic lane of the abutting roadway.
    c. Any barrier necessary to achieve acceptable noise levels shall not be less than eight feet in height and may be a wall, an earth berm, or any combination of wall and earth berm.
    d. Where no frontage road is required along the expressway, any landscaped open space transition setback separating properties zoned for residential uses shall contain a wall, berm, or any combination of wall and berm, not less than eight feet high and located 50 feet from and parallel to the center line of the nearest moving lane of the abutting roadway.
2. **Non-Residential Districts.** No buildings, nor private signage, shall be erected within 30 feet of the right-of-way.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1605. RESIDENTIAL MODIFYING (RM) OVERLAY DISTRICT.

A. **Purpose.** The Residential Modifying (RM) Overlay District is intended to provide special land development and street development standards which will create, protect, and maintain designated areas, streets, and adjacent properties as residential areas of exceptional public and private value.

B. **Use Regulations.**

1. **Permitted Uses.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.
2. **Uses Subject to a Conditional Use Permit.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.
3. **Uses Not Permitted.**
    a. The uses expressly prohibited by the provisions of the Base District.
    b. Family Day Care.
    c. Community and Religious Assembly.
    d. Schools, Public or Private.
    e. Park and Recreation Facilities.
    f. Cultural Institutions.

g. Hospitals and Clinics.

C. **Development Standards.** Development Standards shall be as required by the Base District except as follows:

1. All yards required by an underlying district and abutting a street, shall be landscaped and maintained by the property owner.

2. Where the underlying district permits farm animals, the front or side yard abutting a street may be designed with a pasture as permitted by the underlying district.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1606. ANNEXED RURAL RESIDENTIAL TRANSITIONAL (ANX) OVERLAY DISTRICT.

A. **Purpose.** The Annexed Rural Residential Transitional (ANX) Overlay District allows rural residential use of properties upon annexation to the city continuing until such time as the properties are further developed consistent with the Base District.

B. **Use Regulations.**

1. **Permitted Uses.** Any permitted Special Use shall be subject to the provisions in Article 27.

   a. The uses permitted by the provisions of the Base District.

   b. Existing Uses. Any use existing at the time the property was annexed to the city so long as the use had been lawfully allowed by the County at the time immediately preceding the annexation, subject to provisions of Article 4, Non-Conforming Uses, Structures, Site Features, and Lots.

   c. One single-unit dwelling per lot and Second/Accessory Dwelling Units per Section 15-2754.

   d. Accessory Buildings.

   e. Garages.

   f. Servants' quarters on parcels of land having a minimum lot area of 36,000 square feet or more.

   g. Barns, stables, corrals, coops and/or animal or fowl pen.

   h. Adult Day Care Facilities for a maximum of six adults when located in a single-unit dwelling.

   i. Crop Cultivation and Community Gardens.

   j. Animal Keeping.

      i. Household Pets.

      ii. Where the lot area is at least one acre in size, a property owner may have adult bovine (cows) or equine (horses) animals, in any combination thereof, and their immature offspring, per acre. In no event shall any property

regardless of size have more than 10 adult bovine or equine, or combination thereof. For every adult bovine or equine allowed on a property, a property owner may substitute two adult ovine (sheep) or adult caprine (goats), including any immature offspring. Other similar animal types may be allowed upon a determination by the Director that they will not detrimentally affect the public health, safety, and/or welfare.

iii. Poultry (limited to hens only), rabbits, or similar small feather-bearing or fur-bearing animals, not to exceed twenty-four of any kind or combination thereof, for domestic purposes only.

iv. Where any of the foregoing animals noted in this section are permitted on site, a stormwater runoff permit may be required in accordance with the requirements of the Regional Water Quality Control Board.

k. Family Day Care Homes, small.

l. Greenhouses, horticultural collections and flower and vegetable gardens, private.

m. Group housing facility for a maximum of six persons when located in a single-unit dwelling.

n. Home Occupations.

o. Petroleum products storage, for use by the occupants of the premises, but not for resale or distribution.

p. Roadside Stands, temporary, for the sale of agricultural products produced upon the premises.

q. Signs, subject to provisions of Article 26.

2. **Uses Subject to a Conditional Use Permit.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

3. **Uses Not Permitted.** Those uses not permitted in the Base District or listed above, subject to the limitations and conditions set forth therein.

C. **Development Standards.** For all properties in the ANX overlay district, the RS-1 zone district standards shall apply with the exception that an animal or fowl pen, coop, stable, bam, or corral may be located within 40 feet of any dwelling or other building used for human habitation, or within 100 feet of the front property line of the subject property under a Conditional Use Permit filed and approved pursuant to Article 53.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 29, eff. 7-27-25).

SEC. 15-1607. EQUINE (EQ) OVERLAY DISTRICT.

A. **Purpose.** The Equine (EQ) Overlay District is established to identify suburban residential areas where horses and other equine are allowed to be kept, while ensuring the protection of the quality of the residential environment and securing the health, safety, and general welfare of the residents.

B. **Applicability.** In the event of a conflict between this section and Section 15-2707, Animal Keeping, the provisions of this section shall prevail.

C. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein, except as follows:

1. **Horse Keeping.** The keeping of horses is permitted, subject to the following:
    a. **Number of Horses Permitted.**
        i. Lots 36,000 Square Feet or Less. Up to two adult horses and one of their offspring less than two years of age are permitted.
        ii. Lots 36,001 Square Feet or More. Up to four horses are permitted.
    b. **Minimum Setback Requirements for Stables and Corrals.**
        i. From Side or Rear Property Lines. 25 feet.
        ii. From Windows or Doors of Buildings Used for Human Habitation. 40 feet.
        iii. From the Front Line of the Property. 100 feet.

D. **Development Standards.** Development Standards shall be as required by the Base District.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1608. MINING (M) OVERLAY DISTRICT.

A. **Purpose.** The Mining (M) Overlay District is established to allow on-going mineral extraction in the San Joaquin Riverbottom in conjunction with open space uses.

B. **Use Regulations.**

1. **Permitted Uses.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.
2. **Uses Subject to a Conditional Use Permit.**
    a. Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.
    b. Mining and Quarrying.
3. **Uses Not Permitted.** Those uses not permitted in the Base District or listed above, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. Exceptions to height and façade standards may be permitted at the discretion of the Review Authority.
2. Additional conditions may be required to ensure compatibility with nearby existing and planned uses.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-1609. APARTMENT HOUSE (AH) OVERLAY DISTRICT.

A. **Purpose.** The Apartment House (AH) Overlay District is intended to preserve and enhance the pattern of pedestrian-oriented small-footprint apartment houses, grand homes, and small commercial buildings that exist in some pre-World War II neighborhoods.

B. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein, except as follows:

1. **Permitted Uses.**
   a. The uses permitted by the provisions of the Base District.
   b. Single Unit Dwelling, Attached; Live/Work; and Multi-Unit Residential shall be permitted in all locations, including the ground floor along major streets.
   c. Office uses, including Business and Professional, Medical and Dental, and Walk-In Clientele, shall be permitted in all locations, including the ground floor along major streets. Base District restrictions on the size of such establishments shall not apply.
2. **Uses Subject to a Conditional Use Permit.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.
3. **Uses Not Permitted.** Those uses not permitted in the Base District or listed above, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Maximum Lot Size.** 15,000 square feet.
2. **Setbacks.**
   a. **Front Setback.** The front setback for new structures shall not be greater than 110 percent nor less than 90 percent of the average of the actual front setbacks of all residential structures on the blockface which were constructed prior to 1945. The following exceptions shall apply:
      i. In no instance shall the front setback be less than 10 feet.
      ii. In no instance shall the setback for a new structure be less than the setback of an adjacent structure which is a designated historic resource.
   b. **Side Setback.** Four feet.
3. **Parking.**
   a. **Garage Encroachment into Rear and Side Setbacks.** Where 50 percent or more of the residential properties on a block have detached garages which encroach into the minimum side and/or rear setbacks, new detached garages shall be permitted to encroach into the minimum side and/or rear setback in a similar manner. In such instances the minimum side and rear setback for a detached garage shall each be equal to the average of the equivalent setbacks of

the detached garages on the block, unless the average is less than two feet in which case the setback shall be zero feet. This provision shall also apply to properties which abut an RS District.

b. In no instance shall parking be located in front of the primary building, between the primary building and the street, or within the required front setback. Surface parking may not be covered with a carport within 50 feet of a public street unless it is designed as a porte cochere that is attached to architecturally integrated with the structure.

4. **Design Compatibility.** The following standards shall apply to all structures, with the exception of Public and Semi-Public uses.

   a. **Building Materials and Finishes.** Cladding and trim materials and finishes shall be similar to adjacent apartment houses and single-unit homes.

   b. **Windows.** The size, location, and proportions of windows shall be similar to adjacent apartment houses and single-unit homes.

   c. **Balconies and Porches.** For new residential structures, the size, location, and proportions of balconies and porches shall be similar to adjacent apartment houses and single-unit homes.

   d. **Massing.** New structures shall have roof forms and massing articulation which is residential in character and is similar to residential structures on the same blockface which were constructed prior to 1945.

5. **Pedestrian Access.** Direct entrances shall be provided into all individual ground-floor dwelling units or commercial spaces which are adjacent to a public street. If the building is set back from the sidewalk, a paved path no less than five feet in width shall be provided from the sidewalk to each entrance.

6. **Height.** Structures shall not exceed 35 feet in height.

7. **Landscaping.** The design of front yard landscaping shall be residential in character and shall be similar to adjacent apartment houses and single-unit homes.

8. **Signs.** Signs shall not be permitted in the AH Overlay District, except as follows:

   a. **Maximum Number and Location.**

      i. **Monument Sign.** One monument sign per building shall be permitted in the front yard setback, if applicable. Such signs shall be set back from the back of the sidewalk by no less than two feet.

      ii. **Porch Sign.** One sign per building shall be permitted to be suspended under the roof of a porch.

      iii. **Wall Sign.** One sign per building may be mounted on the façade near the primary pedestrian entrance.

      iv. **Other Signs.** Not permitted.

b. **Maximum Size.**

i. **Monument Sign.** Monument Signs shall not exceed six square feet in area and shall not exceed five feet in height.

ii. **Porch Sign.** Porch Signs shall not exceed eight square feet in area.

iii. **Wall Sign.** Wall Signs shall not exceed 10 square feet in area.

c. **Illumination.** If illuminated, external illumination is required and shall be mounted in a manner that does direct glare toward adjacent uses.

FIGURE 15-1609-C-8: AH OVERLAY MONUMENT AND PORCH SIGNS

9. **Renovations and Alterations.**

a. Modifications to existing buildings shall be architecturally compatible with the existing building as determined by the Review Authority.

b. Exterior walls that are or were originally clad in wood, masonry, or stone shall not be covered with a different material such as stucco.

c. Renovations or alterations to "modernized" pre-World War II buildings shall restore the original façade materials, textures, fenestration, and ornamentation to the extent possible as determined by the Review Authority.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 16, eff. 10-21-16; Am. Ord. 2016-43, § 3, eff. 12-9-16; Am. Ord. 2018-25, § 17, eff. 6-11-18; Am. Ord. 2025-024, § 30, eff. 7-27-25).

SEC. 15-1610. URBAN CAMPUS (UC) OVERLAY DISTRICT.

A. **Purpose.** The Urban Campus (UC) Overlay District is intended to provide for large, centrally planned and operated campuses which integrate well into a dense, mixed-use, walkable urban environment.

B. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Setbacks.**

   a. **Front.**

      i. **Minimum.** Zero feet.

      ii. **Maximum.** 20 feet.

   b. **Side.** No requirement, unless the site abuts an R District, in which case the side setback shall be no less than 20 feet.

   c. **Rear.** No requirement, unless the site abuts an R District, in which case the rear setback shall be no less than 20 feet.

   d. **Parking:** 30 feet from perimeter streets. The following types of parking shall be exempted from this requirement:

      i. Surface parking which is located behind a building.

      ii. Structured parking above the first floor, provided that the façade is treated with similar materials and ornamentation as non-parking structures on the campus.

      iii. Underground parking.

2. **Frontage Coverage.** 75 percent along public streets at the perimeter of the campus. This requirement shall not apply to streets which run through the campus.

3. **Pedestrian Access.** Each building located within 50 feet of a public street at the perimeter of the campus shall provide pedestrian entrances from the public street into the building at a rate of no less than one per 400 feet of linear street frontage, however in no instance shall there be fewer than one. Such entrances shall be protected by a portico, canopy, or alcove of no less than four feet in depth. If there is a yard between the sidewalk and the building, a paved path six feet in width shall be provided from the public sidewalk to the entrance.

4. **Façade Design.** Street facing facades of buildings located within 50 feet of a public street at the perimeter of the campus shall comply with the following standards:

   a. Exterior walls facing a front or street side lot line shall include windows, doors, or other openings with transparent glazing for at least 25 percent of the building wall area located between 2.5 and seven feet above the level of the sidewalk. Openings fulfilling this requirement shall have transparent glazing and provide views into work areas, lobbies, or similar active spaces.

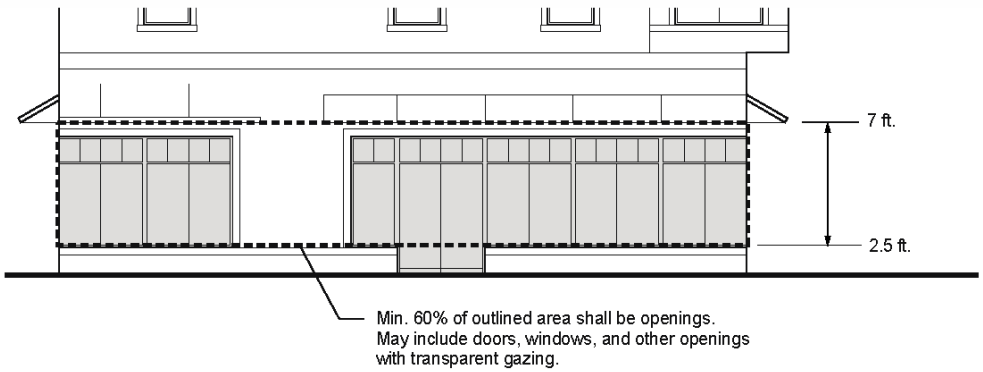


FIGURE 15-1610-C.4.A: BUILDING TRANSPARENCY

b. Where buildings are located within two feet of a public sidewalk at the perimeter of the campus, the sidewalk shall be shaded by awnings or canopies as follows:

i. Awning or canopy depth shall be no less than four feet and no more than 10 feet.

ii. Clearance shall be no less than eight feet and no more than 12 feet from the finished floor.

5. **Parking Access.** Driveways shall be located at the furthest feasible point from nearby residential uses.

6. **Building Height.**

a. The maximum height within 100 feet of an RS District is 45 feet. Exceptions shall be made for parking structures which meet all of the following criteria:

i. Height of 75 feet or less;

ii. Adjacent to a railroad;

iii. South of Illinois Avenue; and

iv. A design which incorporates a "green screen or a similar treatment that buffers the appearance of the structure with ivy or other vegetation.

b. The maximum height within 300 feet of an RS District is 75 feet.

c. In all other locations the maximum height shall be 210 feet. Buildings of exemplary, landmark design may be 235 feet at the discretion of the Review Authority. Buildings of exemplary, landmark design may be 275 feet at the discretion of the Review Authority within the area bounded by Clark Street, Illinois Avenue, Thesta Street, and Divisidero Street, as well as all of the area south of Divisidero.

7. **Lot Coverage.** No requirement.

8. **Sidewalks.** New buildings or additions of 50 percent or more in floor area shall improve adjacent sidewalks. Sidewalks shall be provided per Public Works standards except that sidewalks on Fresno Street shall be provided as follows:

   a. Sidewalks shall be no less than 12 feet in width. If the current distance between the right-of-way boundary and the face of the adjacent curb is less than 12 feet, the building shall be set back from the right-of-way boundary the distance that is necessary to achieve the required sidewalk width. The portion of the sidewalk which lies within the private parcel shall be guaranteed for public access by the enactment of a public access easement.

   b. Street trees shall be provided as follows:

      i. Street trees should be located no more than three feet from the back of curb, and whenever possible should be aligned with other trees on the block.

      ii. Street trees should generally be evenly spaced, no less than 20 feet apart, and not more than 40 feet apart.

      iii. Whenever possible, trees should not be located directly in front of building entrances.

      iv. Trees should be placed in tree wells measuring five feet by five feet. To maximize usable sidewalk area, tree wells shall be covered by grates of a design which is approved by the Review Authority. Larger tree wells may be required by the Public Works Director for species requiring more space. The property owner shall assume maintenance responsibilities for the tree grates.

      v. Street trees should be deciduous, fast growing, drought tolerant, and should eventually form a tall canopy. Not more than one species should be planted per block. Whenever nearby pre-existing trees are in good condition and meet the intent of this section, new trees should be of the same species.

   c. Pedestrian-scaled street lights shall be provided as follows:

      i. Street lights should be located no more than three feet from the curb, and whenever possible should be aligned with street trees and other lights on the block.

      ii. Street lights should be generally evenly spaced, no less than 30 feet apart, and not more than 80 feet apart. Whenever possible, street lights should be no less than 15 feet from nearby street trees.

      iii. Street lights should not be of the type commonly known as Cobra Heads or other types which are intended primarily for the illumination of the vehicular roadway. Lights should be ornamental and designed primarily for the illumination of the sidewalk. Whenever nearby pre-existing lights are in good condition and meet the intent of this section, new lights should

be of the same type. Intersection safety lights shall be typical cobra-head design, while mid-block lighting should be ornamental and scaled for the pedestrian environment. Lighting shall meet Public Works standards.

d. If a Community Facilities District is not established to maintain sidewalks, street trees, and lighting, the applicant shall enter into a maintenance agreement to ensure the maintenance of said facilities.

(Am. Ord. 2016-43, § 4, eff. 12-9-16).

SEC. 15-1611. NEIGHBORHOOD REVITALIZATION (NR) OVERLAY DISTRICT.

A. **Purpose.** The Neighborhood Revitalization (NR) Overlay District is intended to preserve the unique character of neighborhoods near Downtown, enhance their walkability, and promote a diverse population.

B. **Use Regulations.** Those uses permitted and conditionally permitted in the Base District, subject to the limitations and conditions set forth therein, with the following exceptions.

1. Duplex—a neighborhood meeting shall not be required.
2. Multi-Unit Residential at a density of 16 dwelling units per acre or less. A neighborhood meeting shall not be required.
3. Instructional Services which are 3,000 square feet or less and which occupy 30 percent of the building or less.
4. Parks and Recreation Facilities shall not be subject to any size restriction of the Base District.
5. Medical and Dental Offices, which are 3,000 square feet or less and which occupy 30 percent of the building or less shall be permitted.
6. General Retail, which is located within 100 feet of a corner and which is 3,000 square feet in area or less shall be permitted.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Sidewalks.**
   a. Sidewalks shall be provided on both sides of the street. Notwithstanding Chapter 13, Section 208 of the Municipal Code, all projects shall be required to bring adjacent sidewalk conditions into conformance with Public Works standards, subject to the following exceptions:
      i. Applications for signs only.
      ii. Additions, remodels, or tenant improvements of less than 50 percent of the current value of the property.
      iii. Accessory structures less than 1,000 square feet in size.

b. New development that is below the thresholds noted in item 'a', above, shall replace and maintain missing and/or dead street trees and any other missing or dead landscaping in the public frontage (public right-of-way).

c. In no case shall an existing sidewalk, or portion thereof, be vacated, even if the minimum width required is less than the existing sidewalk.

d. When a sidewalk of the subject property is improved to meet the applicable requirements of this section and the adjacent property does not physically align with the new improvement, the improvement shall be designed to the satisfaction of the Review Authority to result in a safe and smooth transition between properties.

2. **Pedestrian Access.** Direct entrances shall be provided into all individual ground-floor dwelling units or commercial spaces which are adjacent to a public street. If the building is set back from the sidewalk, a paved path no less than five feet in width shall be provided from the sidewalk to each entrance.

3. **Front Setback.** The front setback for new structures shall not be greater than 110 percent nor less than 90 percent of the average of the actual front setbacks of all residential structures on the blockface which were constructed prior to 1945. The following exceptions shall apply:

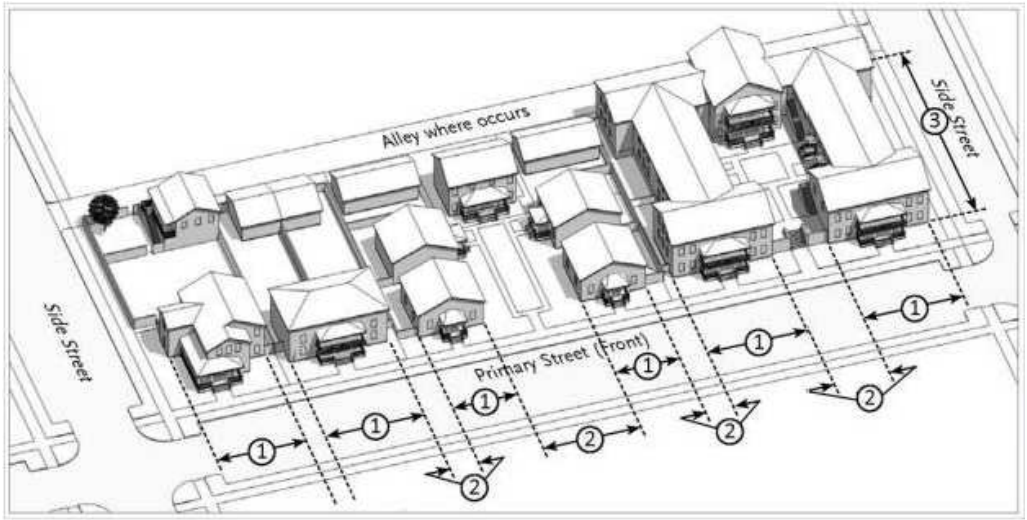
a. In no instance shall the front setback be less than 10 feet.

b. In no instance shall the setback for a new structure be less than the setback of an adjacent structure which is a designated historic resource.

4. **Parking.** In no instance shall parking be located in front of the primary building, between the primary building and the street, or within the required front setback. Surface parking may not be covered with a carport within 50 feet of a public street unless it is designed as a porte cochere that is attached to architecturally integrated with the residential structure.

5. **Building Size and Massing.** Table 15-1611-C.1 prescribes additional development standards for areas governed by the NR Overlay District. Additional regulations are denoted in the right hand column. Section numbers in this column refer to other sections of the Code, while individual letters refer to subsections that directly follow the table. The numbers in each illustration below correspond to the "#" column in the associated table. Drawings are for illustrative purposes and are not drawn to scale.

TABLE 15-1611-C.1: BUILDING SIZE AND MASSING STANDARDS



District	*RS-3*	*RS-5*	#
Maximum Building Length along Primary Street (ft.)	60	60	①
Maximum Space between buildings along Primary Street (ft.)	15	10	②
Maximum Building Depth along Street Side (ft.)	60	120	③

6. **Building Articulation.**

   a. **Street-Facing Façade Articulation.** All street-facing building façades over 35 feet in length shall be designed with a minimum of one of the following façade articulation strategies:

      i. **Horizontal Articulation.** Setback a portion of the street-facing facade a minimum of two feet for a minimum distance of 25 feet.

      ii. **Vertical Articulation.** Step a portion of the façade upward or downward a minimum two feet higher or lower than adjacent portions of the façade for a minimum distance of 25 feet.

      iii. **Architectural Projections.** Append or project facade elements such as porches, balconies, bay windows, cantilevered rooms, and/or awnings.

      iv. **Architectural Recessions.** Recess architectural elements or spaces—such as recessed porches, covered passages, recessed balconies, and windows—into the plane of the façade.

   b. **Roof Forms.** New structures shall have roof forms which are residential in character, such as gabled, hipped, mansard, gambrel, and pyramidal roofs.

7. **Building Materials and Finishes.**

a. **General Standards.**

i. Each side of a building that is visible from a street, park, or passenger railway shall be designed with a complementary level of detailing and quality of materials.

ii. **Building Entrances and Common Areas.** Building entrances and common areas shall include finishes and materials that are durable and high quality and distinguish these spaces from other elements of the building.

iii. **Parking.** Parking structures shall be designed to be compatible with the architectural character, materials, and colors of the overall development.

iv. **Durability of Materials.** Exterior materials shall be durable and promote permanence and longevity. They shall not unintentionally discolor due to weathering or corrosion. Materials that discolor naturally, such as copper, are encouraged.

v. **Design Consistency.**

(1) Architectural materials and constructional assemblies shall be designed to be consistent with the building's architectural style in terms of structural expression, scale, and proportion.

(2) Finishes, fixtures, and other architectural details shall be designed to be consistent throughout the building's exterior.

(3) Attached architectural elements and details such as lighting fixtures, attic vents, custom signage, awnings, hand rails, balconies, and trellises shall be designed to be consistent with other elements throughout the building's exterior.

b. **Multiple Materials.**

i. Two or more wall materials may be combined on one façade.

ii. If located one above the other, lighter appearing materials shall be placed above more substantial materials (e.g., wood above stucco or masonry, or stucco and glass above masonry).

iii. In general, vertical joints between different materials shall occur only at inside corners.

c. **Exposed Wood.**

i. Exterior walls that are or were originally clad in exposed wood shall not be covered with a non-wood material. Wood-like materials, such as cementitious siding, may be used.

ii. Exposed wood (or wood-like materials) shall be finished in a manner that minimizes maintenance and promotes the material's longevity.

d. **Reflective Materials.** Reflective materials are prohibited.

e. **Masonry and Stone.**

i. Brick and cut stone shall be laid in true bonding patterns. Mortar joints shall be struck.

ii. River and rubble stone shall be laid from large stones closest to the ground to small stones farthest from the ground, with smooth or beaded mortar joints.

iii. Masonry detailing shall transition from stone to other materials through moldings, caps, and other trim elements.

f. **Veneers.** Veneers should turn corners, avoiding exposed edges and continue down the side of a building to a logical break, such as a change in wall plane.

g. **Trim.** Trim materials and finishes shall be differentiated from adjacent wall cladding materials and finishes. Acceptable trim materials shall be wood, precast concrete, stone, tile, or similar materials. Stucco trim shall be permitted at the discretion of the Review Authority, and in such instances it shall feature a smooth finish that contrasts significantly from adjacent stucco wall cladding.

h. **Synthetic Materials.** The use of synthetic materials is allowed when the Review Authority determines that the material:

i. Adequately simulates the appearance of the natural material it imitates.

ii. Demonstrates an ability to age similar to or better than the natural material it imitates.

iii. Has a permanent texture, color, and character that is acceptable for the proposed application.

iv. Can be pressure washed and, in general, withstand anti-graffiti measures.

i. **Prohibited Materials.** Prohibited exterior materials include the following:

i. T1-11.

ii. Rough-sawn wood.

iii. Vertical siding, except board and batten.

iv. Metal siding.

v. Concrete block as an exterior finish material.

j. **Renovations and Alterations.**

i. Modifications to existing buildings shall be architecturally compatible with the existing building as determined by the Review Authority.

ii. Exterior walls that are or were originally clad in wood, masonry, or stone shall not be covered with a different material such as stucco.

iii. Renovations or alterations to "modernized" pre-World War II buildings shall restore the original façade materials, textures, fenestration, and ornamentation to the extent possible as determined by the Review Authority.

8. **Window and Door Opening Design.**

   a. **Window Hierarchy.** Building elevations shall exhibit a hierarchy between window sizes to differentiate between public rooms (larger windows) and private rooms (smaller windows).

   b. **Glazing Ratio.** Street-facing facades, shall have an overall wall composition of at least 20 percent glazing, but not more than 60 percent glazing.

   c. **Vertical Proportion.** 75 percent or more of window openings shall have a vertical proportion, in which their height exceeds their width by 25 percent or more. Openings divided by muntins of four inches or more in width shall constitute separate openings.

   d. **Window Depth.** Trim at least three-quarters inch in depth must be provided around all windows, or windows must be recessed at least two inches from the plane of the surrounding exterior wall. For double-hung and horizontal sliding windows, at least one sash shall achieve the two-inch recess. The recess depth shall be specific to the architectural style being utilized.

   e. **Relationship to Surrounding Buildings.** Windows shall be placed on a wall in a manner that maintains existing privacy with neighbors.

   f. **Window and Door Materials and Detailing.**

      i. Allowed window and door materials include wood, fiberglass, steel, or aluminum.

      ii. Muntins, if used, shall be true and divide one pane from the adjoining pane, be of substantial dimension, and not be flat.

      iii. Flush "nail-on" aluminum windows, and horizontal aluminum sliding windows are prohibited.

      iv. The color of vinyl and vinyl clad windows shall be consistent with the overall color scheme of the building. For example, white windows should be used with window trim that is painted a deep color.

      v. Glazing shall be clear glass, particularly in storefront and primary window applications. Transom and other specialty windows are not required to be clear and may be decorative.

      vi. Window sills shall be detailed to properly shed water.

      vii. Head casing shall be equal in width to or wider than jamb casing.

      viii. Accessories may include operable shutters sized to match their openings, opaque canvas awnings and other shading devices, and planter boxes supported by visible brackets appropriate to each design. Security bars are prohibited on façade windows.

9. **Façade Alignment.**

   a. **Vertical Alignment.** With the exception of roofs, cornices, and other such features, façades shall be oriented vertically and shall have no slope.

b. **Horizontal Alignment.** With the exception of bay windows and similar features, facades that are located within 30 feet of a public street shall run parallel or perpendicular to said street. Civic buildings are exempt from this requirement.

10. **Façade Elements.**

a. **Applicability.** Street-facing façades shall incorporate a minimum of two of the Façade Elements shown in Table 15-1611-C.6.

TABLE 15-1611-C.6: FAÇADE ELEMENTS—NR OVERLAY DISTRICT

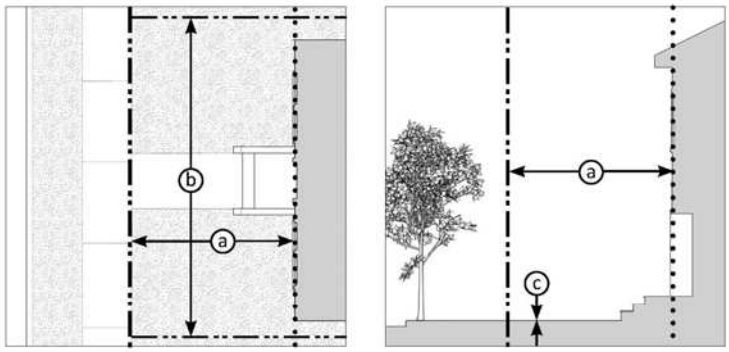
A. Front Yard

1. Basic Standards

ⓐ Clear Depth: 5 ft. min.

ⓑ Length: 15 ft. min.

ⓒ Height above Sidewalk: 3 ft. max.



2. Supplemental Standards

a. Planters, garden walls, fences and hedges are permitted at the sidewalk to a maximum height of 3 ft. per Section 15-2006. Materials and design shall be compatible with the architectural style of the building.

b. Water features, shade structures, seating, and gardens are encouraged in this area.

c. Vehicular parking, trash collection, and storage are not permitted in this area.

d. When Front Yards are raised from the level of the sidewalk, the resulting retaining wall shall be decorative and clad in brick or stone.

B. Porch

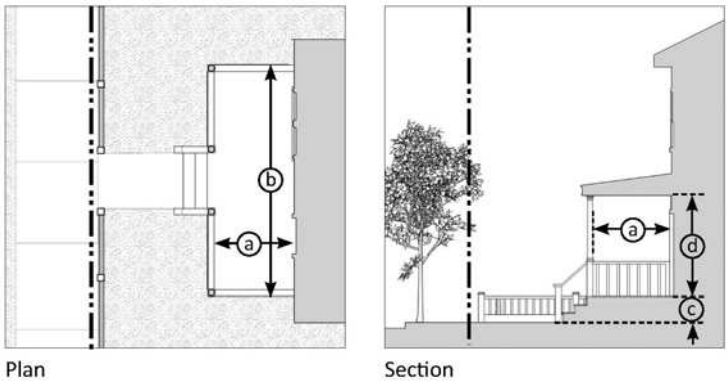
1. Basic Standards

ⓐ Clear Depth: 5 ft. min., 15 ft. max.

ⓑ Length: 8 ft. min.

ⓒ Height above adjacent grade: 18 in. min., 4 ft. max.

ⓓ Height: 8 ft. min. clear from the finish floor



2. Supplemental Standards

a. Provide landscaping in front of and around porch.

b. Railings should be no higher than required by the building code.

c. The porch may extend around to encroach into the street sideyard up to ½ of the required setback. If insufficient distance exists, the minimum porch depth shall be achieved by moving back the façade the necessary distance.

TABLE 15-1611-C.6: FAÇADE ELEMENTS—NR OVERLAY DISTRICT

d. Awnings may be attached to the face of the porch if the awning is adequately supported and if the awning is compatible with the architectural style of the porch and building.

e. Porches shall not be enclosed, including by insect screens.

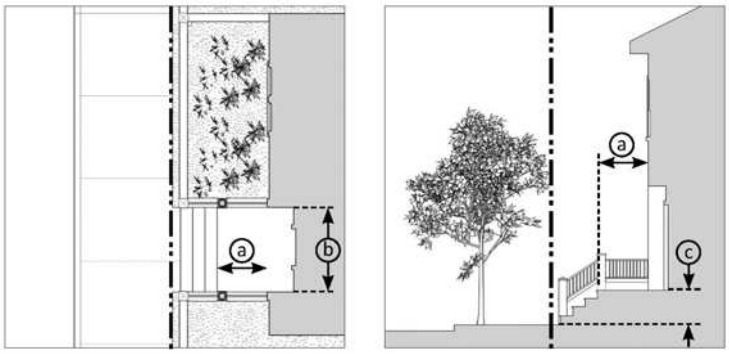
C. Stoop

1. Basic Standards

ⓐ Clear Depth: 6 ft. min., 15 ft. max.

ⓐ Length: 4 ft. min., 10 ft. max.

ⓐ Height: Max. 4 ft. elevation above finish sidewalk grade



2. Supplemental Standards

a. Landscaping encouraged in front, around and/or within walls of stoop.

b. Minimum 3 ft. to maximum 4 ft. high garden wall and gate may be provided at entry to stoop.

c. Entry gates to swing in a direction away from sidewalk.

d. Use of other frontage types at entry stoop (e.g., awning, bay window, arcade) allowed.

e. Exterior stairs may be located perpendicular or parallel to the adjacent sidewalk.

f. The landing may be covered or uncovered, but shall not be enclosed beyond the building façade (e.g., stoop landings may be recessed into the building façade and be enclosed by the walls of the recess.

D. Terrace

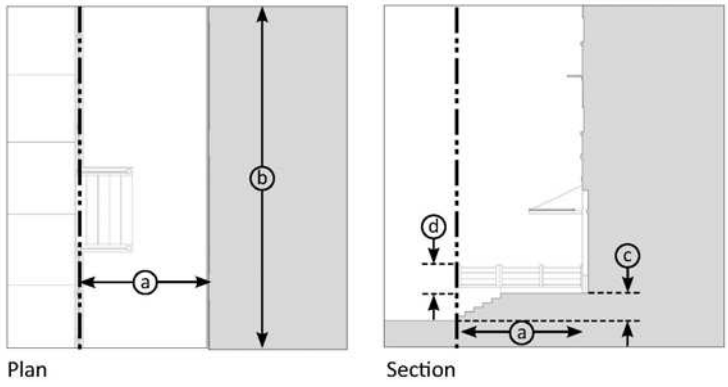
1. Basic Standards

ⓐ Clear Depth: 7 ft. min.

ⓑ Length: no min./no max.

ⓒ Height: Max. 4 ft. elevation above finish sidewalk grade

ⓓ Railing Height: no higher than required by the building code



2. Supplemental Standards

a. Use of other frontage types (e.g., awning, bay window) allowed.

b. Exterior stairs may be perpendicular or parallel to the adjacent sidewalk but shall not encroach into the right-of-way. The landing may be covered or uncovered.

E. Bay Window

TABLE 15-1611-C.6: FAÇADE ELEMENTS—NR OVERLAY DISTRICT

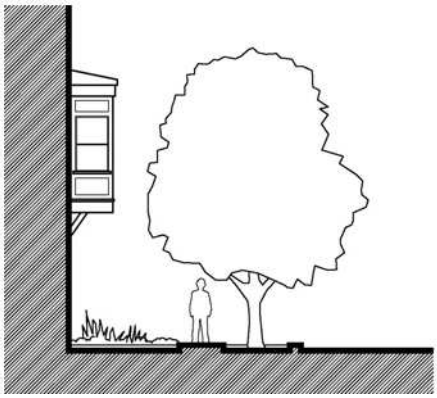
1. Basic Standards

ⓐ Depth: 2 ft. min., 4 ft. max.

ⓑ Length: 15 ft. max.

ⓒ Height for 2nd fl.: 10 ft. min. clear from the ground

ⓓ Encroachment into Setback.: 3 ft. max.



2. Supplemental Standards

a. Bay windows are permitted on the ground floor of buildings with residential ground floors.

b. Provide landscape in front and around bay windows on the ground floor.

c. Bay windows to have a minimum 25% glazing.

F. Balcony

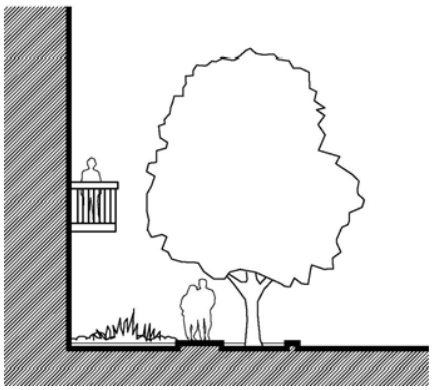
1. Basic Standards

ⓐ Depth: 5 ft. min., 10 ft. max.

ⓑ Length: 8 ft. min.

ⓒ Height: 8 ft. min. clear, 12 ft. max. clear from the finish floor

ⓓ Encroachment into Setback: 4 ft. max.



2. Supplemental Standards

a. Balcony may be covered but should be a minimum 50% open on three sides.

(Am. Ord. 2016-43, § 5, eff. 12-9-16).

SEC. 15-1612. KEARNEY BOULEVARD HISTORIC CORRIDOR (KB) OVERLAY DISTRICT.

A. **Purpose.** The Kearney Boulevard Historic Corridor (KB) Overlay District is intended to preserve and enhance the historic character of Kearney Boulevard.

B. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Front Setback.** The front setback for new structures shall not be greater than 100% nor less than 90% of the average of the actual front setbacks of all residential structures on the blockface. The following exceptions shall apply:

   a. In no instance shall the front setback be less than ten feet.

   b. In no instance shall the setback for a new structure be less than the setback of an adjacent structure which is a designated historic resource.

2. **Building Orientation and Pedestrian Access.** All new structures (excluding accessory structures) shall be oriented toward Kearney Boulevard with front doors facing the street, and a paved path no less than five feet in width shall be provided from the sidewalk to the front door.

3. **Fences, Walls, and Hedges.**

   a. **Height.** Front yard fences shall be a maximum of three feet in height.

   b. **Materials and Opacity.** Front yard fences shall be constructed in one of the following manners:

      1. Wrought iron or tubular steel with no more than 20% opacity; or

      2. Wooden pickets with no more than 50% opacity.

4. **Street Trees and Landscaping.**

   a. **Retention of Existing Landscaping.**

      1. Existing palm trees, eucalyptus trees, and oleander bushes shall be retained unless they are determined by the Review Authority to be a demonstrable health or safety threat, in which case they shall be replaced with a tree or bush or the same species.

      2. Notwithstanding Section 15-2308-C-3, the removal of eucalyptus trees shall require a Tree Removal Permit within the KB Overlay District.

   b. **New Development.** Any activity which requires a Development Permit, Planned Development Permit, or Development Agreement shall plant new palm trees, eucalyptus trees, and oleander bushes along Kearney Boulevard to the full extent necessary to continue and match the historic tree pattern along the entirety of the project's Kearney Boulevard frontage.

5. **Frontage Road.** All development shall continue the historic configuration of the boulevard with frontage roads on either side separated by planted side medians.

(Added Ord. 2017-63, § 1, eff. 12-4-17).

SEC. 15-1613. CALIFORNIA AVENUE TRANSIT CORRIDOR (CA) OVERLAY DISTRICT.

A. **Purpose.** The California Avenue Transit Corridor (CA) Overlay District is intended to create a safe, convenient, and comfortable pedestrian environment along the residential sections of the California Avenue transit corridor.

B. **Use Regulations.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be as required by the Base District, except as follows:

1. **Building Orientation and Pedestrian Access.** All new structures (excluding accessory structures) shall be oriented toward California Avenue with front doors facing the street, and a paved path no less than five feet in width shall be provided from the sidewalk to the front door.

2. **Fences, Walls, and Hedges.**

   a. **Height.** Front yard fences shall be maximum of three feet in height.

   b. **Materials and Opacity.** Front yard fences shall be constructed in one of the following manners:

      1. Wrought iron or tubular steel with no more than 20% opacity; or

      2. Wooden pickets with no more than 50% opacity.

   c. **Walls.** In no instance shall a wall be permitted within the required front yard setback or any other space which lies between residential structures and California Avenue.

(Added Ord. 2017-63, § 2, eff. 12-4-17).

SEC. 15-1614. FOCUSED INFILL (FI) OVERLAY DISTRICT

A. **Purpose.** The purpose of the Focused Infill (FI) Overlay District is to facilitate more intensive development of parcels with MX, CMS, or CR zoning at strategic points along transportation corridors in order to support transit use, housing production, and economic revitalization.

B. **Use Regulations.**

1. **Permitted Uses.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

2. **Uses Subject to a Conditional Use Permit.** Those uses permitted in the Base District, subject to the limitations and conditions set forth therein.

3. **Uses Not Permitted.** Those uses not permitted in the Base District or listed above, subject to the limitations and conditions set forth therein.

C. **Development Standards.** Development Standards shall be asrequired by the Base District, except as follows:

1. **Residential Density.** The maximum permitted residentialdensity for various Base Districts shall be as follows:

   a. NMX, CMS, and CR: 48 du/ac

   b. CMX: 90 du/ac

   c. RMX: 135 du/ac

(Added Ord. 2020-044, § 1, eff. 11-15-20).

ARTICLE 17 RESERVED

ARTICLE 18 RESERVED

ARTICLE 19 RESERVED

PART III: REGULATIONS APPLYING TO SOME OR ALL DISTRICTS

ARTICLE 20 GENERAL SITE REGULATIONS

Sec. 15-2001. Purpose.
Sec. 15-2002. Setbacks from Landscape Easements.
Sec. 15-2003. Trails.
Sec. 15-2004. Accessory Buildings and Structures.
Sec. 15-2005. Pools and Spas.
Sec. 15-2006. Fences, Walls, and Hedges.
Sec. 15-2007. Walls for Noise Attenuation (Noise Barriers).
Sec. 15-2008. Screening Between Differing Land Uses.
Sec. 15-2009. Security Fencing.
Sec. 15-2010. Electrified Fences.
Sec. 15-2011. Screening of Mechanical and Electrical Equipment.
Sec. 15-2012. Heights and Height Exceptions.
Sec. 15-2013. Outdoor Service Yards and Storage.
Sec. 15-2014. Projections/Encroachments into Required Yards.
Sec. 15-2015. Outdoor Lighting and Illumination.
Sec. 15-2016. Trash and Refuse Collection Areas.
Sec. 15-2017. Underground Utilities.
Sec. 15-2018. Intersection Visibility.
Sec. 15-2019. Development on Substandard Lots.
Sec. 15-2020. Lots with Multiple Zone Districts (Split Zoning).

SEC. 15-2001. PURPOSE.

The purpose of this article is to prescribe development and site regulations that apply, except where specifically stated, to development in all districts. These standards shall be used in conjunction with the standards for each zoning district located in Part II, Base and Overlay District Regulations. In any case of conflict, the more strict regulation shall govern. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2002. SETBACKS FROM LANDSCAPE EASEMENTS.

A. Where an approved tentative tract map or tentative parcel map requires a landscaped area, easement, and/or trail abutting a Major Street or any other area where determined appropriate by the Review Authority, and where access rights have been relinquished, a wall per Section 15-2008-C, Screening Wall Standards, shall be placed at the rear of the required landscape area.

B. **Setback Requirements.** For purposes of setbacks, the distance for all structures, pools, fences, etc. shall be measured as follows:

1. **RS Districts:** The setback shall be measured from the rear of the required landscape setback/easement.

2. **All Other Districts.**

a. **Landscape Easements With a Trail.** The setback shall be measured from the back of the walkway or sidewalk, but in no instance shall any structure, pool, fence, etc. be constructed within the easement.

b. **Landscape Easements Without a Trail.** The setback shall be measured from the rear of the required landscape setback/easement.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 18, eff. 6-11-18).

SEC. 15-2003. TRAILS.

A. Whenever a trail is identified on an operative plan, the trail shall be constructed per City standards. Access to trails shall be provided per Section 15-4109-B, Trails and Natural Features.

B. When there is a demonstrated need, landscaping with appropriate adequate physical and visual barriers (e.g., masonry walls, wrought-iron, or tube steel fencing) shall be provided to screen path and trail rights-of-ways and separate paths and trails from mining operations, drainage facilities, and similar locations.

C. **Path and Trail Crossings.** To the extent feasible, vehicle crossings shall be limited to two per 660 feet.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2004. ACCESSORY BUILDINGS AND STRUCTURES.

A. **Applicability.** These provisions apply to:

1. All new structures over seven feet in height, including, but not limited to, garages, carports, porte-cocheres, sheds, workshops, gazebos, greenhouses, cabanas, trellises, play structures, aviaries, covered patios, etc. which collectively shall be referred to as Accessory Structures, that are attached or detached from and accessory to the main building on the site.

2. Decks and patios that are 30 inches above the ground elevation, excluding above-ground pools.

B. **Relation to Other Structures.**

1. A detached accessory building may be constructed on a lot on which there is a permitted main building to which the accessory building is related.

2. Should the ownership of two contiguous and immediately adjoining residential lots be the same and one lot contains a single-unit home, an accessory building (with the exception of required parking) and/or pool, may be permitted on the adjoining vacant lot subject to compliance with all property development standards. The owner shall sign a covenant, which will at a minimum require that any improvements, such as pools, storage sheds, etc., be removed should either parcel be sold separately.

3. An accessory building may be constructed prior to a permitted main building and used for not more than one year in connection with the construction of the main building. The owner shall sign a covenant, which will at a minimum, require that the accessory structure be removed should the main building not be constructed.

C. **Residential Districts.**

1. For habitable accessory structures, including Second/Accessory Dwelling Units (ADUs), refer to Section 15-2754. For outdoor kitchens see 15-2753, Second and Outdoor Kitchens.

2. An Accessory Structure may have plumbing for a washer, dryer, and/or utility sink.

3. An Accessory Structure may contain a toilet, shower, and sink. Bathtubs and stoves are not permitted.

4. Existing accessory structures that do not comply with the strict application of the required setbacks of the underlying zone district, may install a toilet, shower, sink, and plumbing for a washer, dryer, or utility sink, subject to compliance with the adopted Building Code. This exception does not allow for a reduction in required parking spaces, parking space dimensions, building regulations, or any other adopted standards.

D. **Setbacks.** Accessory Structures shall comply with the standards below.

1. **All Districts.**

   a. **Front and Street-Side Yards.** Accessory Structures may not be located within required front yard or street-side setback areas.

   b. Alleys. Accessory Structures shall be set back a minimum of five feet from an alley if the Accessory Structure utilizes the alley for vehicle access.

2. **Single-Unit Districts.**

   a. **Front Yards.** Not permitted, unless on a Double Frontage Lot (e.g., Through Lot). In the case of the latter, both street frontages shall be treated as Front Yards.

   b. **Interior-Side and Rear Yards.** Accessory Structures shall be set back from interior side and rear property lines as follows:

      i. If the Accessory Structure is located closer than six feet from the main building, the Accessory Structure shall comply with the setbacks of the applicable Base and Overlay District.

      ii. If the Accessory Structure is located six feet away or farther from the main building, it may be located on the interior or rear property line. Said structure shall comply with the Building Code.

3. **Multi-Unit Districts.**

   a. **Front Yards.**

      i. Accessory Structures shall be located to the rear of main buildings.

      ii. Detached garages and/or carports shall be located away from adjacent public roadways, to the rear, or shall be perpendicular to adjacent roadways to the greatest extent feasible.

   b. **Interior-Side and Rear Yards.** Accessory Structures shall be set back from interior side and rear property lines as follows:

      i. **If Adjacent to Single-Unit Districts.** Accessory Structures, including garages and covered parking spaces, shall be set back per the underlying district or operative plan, whichever is greater.

      ii. **All Other Districts.** Five feet.

4. **Non-Residential Districts.** Accessory Structures shall comply with the setbacks per the underlying district or operative plan, whichever is greater.

E. **Height.** Accessory Structures are subject to the height limitations specific to the zoning district in which they are located except as provided below in Residential Districts.

1. **Residential Districts.**

   a. **Parcels 10,000 Square Feet and Less.** Accessory Structures shall be no greater than 12 feet high measured from the ground level to the finished height of the structure.

   b. **Parcels Greater than 10,000 Square Feet.** Accessory Structures located a minimum of 10 feet from all property lines may be up to 16 feet high.

2. **Additional Height.** The Director may allow additional height not to exceed the height of the main building provided the Accessory Structure is designed, in terms of materials and architectural styles, to match the main building. The setbacks described above shall still be applicable.

F. **Tree Houses and Play Structures.**

1. When exceeding twelve feet in height, as measured from the ground level to the top of the structure, the structure must be set back to a distance equal or greater than its height.

2. When exceeding 120 square feet, a building permit is required.

3. If the structure overlooks a neighboring residential rear yard, landscaped screening shall be provided. This requirement may be waived with the written agreement of the affected neighbor(s) at the time the structure is constructed.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 10, eff. 7-30-17; Am. Ord. 2018-66, §§ 13, 14, eff. 1-18-19; Am. Ord. 2025-024, § 31, eff. 7-27-25).

SEC. 15-2005. POOLS AND SPAS.

A. Swimming pools, including slides and decorative features, Jacuzzis, and spas shall not be located in the front or street-side yards, and shall be set back a minimum of five feet from interior side and rear property lines.

B. All equipment shall comply with all applicable noise standards. If needed, equipment shall be baffled and/or enclosed to reduce noise to acceptable levels.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 11, eff. 7-30-17).

SEC. 15-2006. FENCES, WALLS, AND HEDGES.

Fences, walls, dense hedges, and similar structures, collectively referred to as "fences" for purposes of this section, shall comply with the following standards.

A. **Applicability.** The standards of this section apply to:

1. New fences, hedges, or walls;

2. New development;

3. Building additions to existing buildings that expand the existing floor area by at least 20 percent, or 2,500 square feet, whichever is less, not including Single-Unit Dwellings or Duplexes. The addition and/or expansion shall be cumulative from the date of adoption of this Code;

4. A new building on a developed site when the new building is more than 300 square feet. The 300 square feet shall be cumulative from the date of adoption of this Code;

5. The demolition and reconstruction of a site;

6. A request for a Discretionary Permit;

7. Change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District; or,

8. Condominium Conversions.

9. Exceptions. The standards of this section do not apply to fences that are part of a designated historic site.

B. **Fence and Height Locations for All Districts.**

1. **Other Regulations.** Fences shall comply with the setback requirements below, unless a greater setback is required by an operative plan, an adopted policy, or a condition of project approval.

2. **Subdivision Approval Conditions.** In certain circumstances, such as at the rear of landscape easements, fence locations are identified as part of the subdivision approval process. In such cases and in the potential case of conflict with this section, the map conditions of approval shall govern.

3. **Street-Facing References.** Street-facing includes all roadways, including highways.

4. **Parking Lot Entrances.** Fence and gate locations may need to provide greater setbacks than those listed in this section to allow for vehicle stacking. This includes fencing that limits access to parking lots.

C. **Fence Height and Locations for Single-Unit Homes.**

1. **Front Yards.**

a. **Wrought Iron or Tubular Steel.** A fence up to four feet in height may be installed within any required front yard setback. Fences must be open a minimum of 80 percent (e.g., no more than 20 percent opaque) to allow for the passage of light and air.

b. **All Other Materials.** A fence up to three feet in height may be placed within any required front yard setback.

i. **Exception.** Front yard fences on parcels within the Pinedale Neighborhood Plan area may be up to four feet in height in the front yard, regardless of material, however fences shall comply with Section 15-2018, Intersection Visibility.

2. **Side-Street Yards.** Fences up to six feet in height may be installed within any required street-side yard setback.

3. **Other Yards.** Fences up to six feet in height may be installed. Fences, regardless of location on the site, shall not exceed six feet in height.

4. **Through Lots.** Both street frontages shall be considered Front Yards.

5. **Setbacks.** Unless a greater setback is required in another section of this Code, fences shall be set back 12 inches from the back of adjacent sidewalks, or from the curb or shoulder if there is no sidewalk. Fences may be placed on interior side and rear property lines.

6. **Right-of-Way.** In no circumstance may any fence be placed in the public right-of-way unless specified elsewhere in this Code.

D. **Fence Height and Locations for Multi-Unit Districts.**

1. **Front Yards.**

a. Where a lot is on the same block frontage with parcels that are zoned for Single-Unit uses, fencing shall comply with fencing standards of the Single-Unit District in Subsection 15-2006-C.

b. If the block does not contain Single-Unit zoned lots:

i. **Wrought Iron or Tubular Steel:** A fence up to four feet in height may be installed within any required front yard setback. Fences must be open a minimum of 80 percent (e.g., no more than 20 percent opaque) to allow for the passage of light and air.

ii. **All Other Materials.** The fence may be placed within any required front yard setback if the fence does not exceed three feet in height.

(1) **Exception.** Fences on parcels within the Pinedale Neighborhood Plan may be up to four feet in height, regardless of material, however fences shall comply with Section 15-2018, Intersection Visibility.

2. **Street-Side Yards.**

a. Lots with a Street-Side Yard of 125 Feet or Less in Length. Fencing up to six feet in height may be placed within any street-side yard.

b. Lots with Street-Side Yards Greater than 125 Feet in Length. Fencing up to six feet in height may be placed per the main building setback of the underlying district minus five feet.

3. **Reserved.**

4. **Through Lots.** All street frontages shall be considered Front Yards.

5. **Private Patios, Yards, Etc.** Fencing for private patios, yards, etc. in multi-unit developments shall comply with the fencing requirements of this section.

6. **Other Yards.** Fences up to six feet in height may be installed on property lines. Fences, regardless of location on the site, shall not exceed six feet in height.

7. **Setbacks.** Unless a greater setback is required in another section of this Code, fences shall be set back 12 inches from the back of adjacent sidewalks, or from the curb or shoulder if there is no sidewalk. Fences may be placed on interior side and rear property lines.

8. **Right-of-Way.** In no circumstance may any fence be placed in the public right-of-way unless specified elsewhere in this Code.

E. **Fence Requirements for DT, MX, and CMS Districts.** In Downtown and other pedestrian-oriented areas it is of critical importance to create an attractive, active, and comfortable pedestrian environment. It is equally important to secure property and to keep unauthorized people out of private areas. This subsection has been structured to balance these two needs by allowing the entire perimeter of a block or property to be secured by a combination of buildings and fences, while not allowing for suburban-style fenced complexes. Buildings should visually dominate private frontage, with taller fencing filling in the gaps along the street and securing sides and rears of properties as put forth below.

1. **Identifying the Front Yard Line.** For the purposes of this subsection only, the Front Yard will be considered to be the area between the Front Yard Line and the back of the sidewalk. The Front Yard Line shall be identified as follows:

a. For sites which abut two or more streets, the Front Yard Line for each street frontage shall be measured individually.

b. The Front Yard shall be the entire area between the back of the sidewalk and a straight parallel line which is located 12 inches behind the façade of the primary building and which extends along the entire frontage (the "front yard line").

c. For complex or highly articulated buildings the front yard line shall be measured from the furthest point back on the street-facing façade of the building, at the discretion of the Review Authority.

d. When there is more than one building along a lot's frontage (as determined by the Review Authority), the front yard line shall be measured from the façade of the building (excluding accessory buildings) along the frontage which is set back the greatest distance.

e. Front yard fence standards shall apply to all fences within the Front Yard, including those which are parallel or perpendicular to the street and including those which enclose porches, patios, and other such spaces.

f. A frontage shall not have a Front Yard Line, and all fences on that frontage shall be considered Interior/Rear Yard Fences, if the following circumstances apply:

   i. The building sits directly at the back of the sidewalk, and no other building exists on that frontage of the lot.

   ii. The site is occupied by a legal non-conforming parking lot without a building on site.

   iii. The site is occupied by legal non-conforming buildings which are set back more than 50 feet.

FIGURE 15-2006-E.1: IDENTIFYING THE FRONT YARD LINE

2. **Front Yard.**

   a. **Minimum Setback.** All fences shall be set back no less than 12 inches from the back of the sidewalk and may not be located in the public right-of-way. No setback is required from side and rear property lines.

   b. **Maximum Height.** Three feet.

   c. **Transparency.** Fences must be open a minimum of 80 percent (e.g., no more than 20 percent opaque) to allow for the passage of light and air.

   d. **Materials.**

      i. Front yard fence materials shall consist only of wood, tubular steel, wrought iron, or other decorative metal. Brick, stone, or stucco piers may be used in combination with these materials. New chain link front yard fences are prohibited.

      ii. Retaining walls shall be designed consistent with the architectural style of the main building. Retaining walls shall consist only of decorative concrete, masonry, stone, or brick. Timber may be permitted unless it is in conflict with the Building Code or applicable Public Works standards.

iii. Veneer or synthetic materials simulating the actual, natural material (e.g., brick or stone veneer in place of actual brick or stone) shall only be allowed upon demonstrating to the Review Authority that the substitute material:

(1) Adequately simulates the natural material; and

(2) Is organized visually to simulate actual construction using the natural material (e.g., organization of brick rows, larger stones at the bottom and smaller stones toward the top).

3. **Interior and Rear Yards.**

a. **Minimum Setback.** All fences shall be set back no less than 12 inches from the back of the sidewalk and may not be located in the public right-of-way. No setback is required from side and rear property lines.

b. **Maximum Height.** Six feet.

c. **Transparency.** No requirement. Fences and walls may be up to 100 percent opaque.

d. **Materials.**

i. Interior and side yard fence and wall materials shall consist only of wood, tubular steel, wrought iron, other decorative metal, brick, stone, stucco, concrete block. Chain link may be used when it is not visible from a public street as determined by the Review Authority.

ii. Interior and side yard fences and walls shall be designed to be consistent with the architectural style of the main building when they are visible from a public street as determined by the Review Authority.

iii. When visible from a public street, veneer or synthetic materials simulating the actual, natural material (e.g., brick or stone veneer in place of actual brick or stone) shall only be allowed upon demonstrating to the Review Authority that the substitute material:

(1) Adequately simulates the natural material; and

(2) Is organized visually to simulate actual construction using the natural material (e.g., organization of brick rows, larger stones at the bottom and smaller stones toward the top).

4. **Through Lots.** All street frontages shall be considered Front Yards.

5. **Private Patios, Yards, Etc.**

a. **Facing Front Yard or Common Open Space.** Fences, walls, or hedges enclosing private patios, yards, or porches that face the Front Yard or the Common Open Space are subject to the requirements of section 15-2006.E.2 above.

b. **Interior Yard and Rear Yards.** Fences and walls up to six feet in height may enclose private patios or yards.

F. **Fence Height and Locations for All Other Uses and Districts.**

1. **Front Yard.**

a. **Wrought Iron or Tubular Steel.** A fence up to four feet in height may be installed within any required front yard setback. Fences must be open a minimum of 80 percent (e.g., no more than 20 percent opaque) to allow for the passage of light and air.

b. **All Other Materials.** All other fences within any required front yard setback are permitted up to three feet in height and shall comply with the main building setback, minus five feet.

2. **Street-Side Yard.**

a. **Wrought Iron or Tubular Steel.** A fence up to four feet in height may be installed within any required front yard setback. Fences must be open a minimum of 80 percent (e.g., no more than 20 percent opaque) to allow for the passage of light and air.

b. **All Other Materials.** All other fences within any required street side yard setback are permitted up to three feet in height and shall comply with the main building setback, minus five feet.

3. **Reserved.**

4. **Through Lots.** Both street frontages shall be considered Front Yards.

5. **Other Yards.** Outside of the required front yard and street-side yards, the maximum height for fences is seven feet (regardless of location on the site) unless the fence is part of Outdoor Storage per Section 15-2013, Outdoor Service Yards and Storage.

6. **Bollards.** Bollards, up to three feet in height may be placed at the rear of required landscape areas.

7. **Setbacks.** Unless a greater setback is required in another section of this Code, fences shall be set back 12 inches from the back of adjacent sidewalks, or from the curb or shoulder if there is no sidewalk. Fences may be placed on interior side and rear property lines.

8. **Right-of-Way.** In no circumstance may any fence be placed in the public right-of-way unless specified elsewhere in this Code.

G. **Temporary Fencing.** For Temporary or Seasonal uses, including Community Gardens, Urban Agricultural, Farming, temporary sales, etc., fencing setbacks shall comply with main building setbacks of the underlying zone district.

H. **Construction Fencing.** Refer to Section 15-2009, Security Fencing.

I. **Vacant Parcels.** Fencing shall be setback a minimum of five feet from the front property line however traffic sight areas shall be respected. Upon development of the site, all fencing shall comply with the provisions of this Code.

J. **Fence and Retaining Wall Combinations.** Where a fence is located on top of a retaining wall, and a six-foot maximum fence height is normally applicable, the Director may allow a combined height of fence and retaining wall up to a maximum of seven feet.

K. **Natural Grade Differences.** Where there is a natural grade difference between two adjacent parcels, or a parcel and a street, the Director may allow a deviation of the fence height based on the slope and may measure the overall fence height from the higher parcel. In no case shall the retaining wall and fence combination exceed seven feet from the lower side unless a deviation is granted.

L. **Decorative Features.**

1. Columns and gates may exceed the maximum height requirements by four inches.

2. On through and corner lots, the exposed (e.g., rough) side of the fence shall face into the subject parcel, rather than the street. The finished side of the fence shall be oriented towards the street.

3. Fences, greater than 125 feet in length in Residential Districts and/or along Major Streets, shall incorporate decorative pilasters with decorative caps spaced no more than 30 feet apart. This shall not apply to industrial districts, unless the industrial district is located on the same side of the street as existing, planned, or zoned residences.

4. Decorative caps, not to exceed four inches, may be added to the columns of walls.

5. A wrought iron decorative entry gate, located outside of required street yard setbacks may be allowed up to seven feet in height in Residential Districts and eight feet in Non-Residential Districts with Director approval.

M. **Additional Materials Standards.**

1. **Limitation on Chain-Link Fencing.** Chain-link fencing is not permitted in:

a. **Single-Unit Districts.** Along a Major Street, unless it is three feet or less in height.

b. **Multi-Unit Districts and Mixed-Use Districts.**

i. Along a Major Street.

ii. Local Streets. Along street-facing yards in developments that contain six or more units.

(1) **Exception.** A fence that is three feet or less in height and located within the Pinedale Neighborhood Plan.

c. **Office and Commercial Districts.** Along Major Street-facing yards, or when the parcel shares a street that also serves a Residential District.

d. **Industrial Districts.** When abutting a residential use or when located across a Local Street from a residential use.

2. **Limitation on Concrete/Masonry Block.** Plain concrete block shall not be the primary material along Major Streets or other situations when block walls are required as part of project approval, such as at the rear of landscape easements. Concrete block or precast concrete walls shall be split face or finished with stucco, and capped with a decorative cap, or other decorative material as may be approved by the Director. Other materials may be approved by the Director should the design provide for an enhanced appearance. For continuity, walls should incorporate similar styles, colors, etc., when located on the same side of the street.

3. **Limitation on Wire Mesh Fencing.** Wire mesh fencing shall be permitted in the following circumstances:

   a. Commercial Districts, O Districts, BP Districts, and RBP districts when not visible from a public street.

   b. Industrial Districts.

4. **Permitted Materials.** The following materials shall be permitted in all districts, except when a district has a more restrictive list of permitted materials:

   a. Materials specifically permitted elsewhere in this Section;

   b. Wood pickets;

   c. Split rail wood;

   d. Wrought iron and tubular steel;

   e. Brick and stone;

   f. Stucco;

   g. Shade cloth when used in combination with permitted fencing such as chain link, wrought iron, or tubular steel, provided it consists of materials specifically manufactured for such a purpose; and

   h. Privacy slats when in combination with chain link fencing (when chain link is allowed) provided it consists of materials specifically manufactured for such a purpose.

5. **Prohibited Materials.** The following materials shall not be permitted to be used as a fence material in any district:

   a. Plywood, oriented strand board, pressboard, and similar wood products;

   b. Chicken wire or similar wire products;

   c. Corrugated metal or corrugated plastic;

   d. Piping (including metal, PVC, and other materials);

   e. Hazardous fencing shall only be allowed as put forth in Section 15-2009, and when allowed shall not consist of improved materials, such as broken glass or nails.

f. Improvised materials, including but not limited to wood scraps, doors, garage doors, refrigerator doors, and mattresses;

g. Improvised screening materials, including but not limited to blankets and tarps; and

h. Any material not listed unless approved by the specifically Review Authority.

6. **Fence Construction.**

a. All fences must be built with a professional and durable appearance and must be maintained in good condition.

b. Permitted materials may be combined (for example, brick columns combined with wrought iron panels), but combinations shall not be haphazard or random in appearance.

N. **Residential Recreational Fencing.**

1. Fencing located around tennis, basketball, or volleyball courts, and similar areas up to 14 feet in height may be allowed outside of required setback areas.

2. For residential batting cages, fencing is permitted up to 14 feet in height, located outside of required setback areas.

3. For other requirements, refer to Section 15-2749, Private Recreational Facilities.

4. Lighting of recreational areas shall comply with Section 15-2015, Outdoor Lighting and Illumination.

O. **Commercial Recreational Fencing.** Refer to Sections 15-2708 Arcades, Video Games, and Family Entertainment Centers and 15-2749, Private Recreational Sports Facilities.

P. **Intersection and Driveway Visibility.** Notwithstanding other provisions of this section, fences, walls, hedges, and related structures must comply with Section 15-2018, Intersection Visibility.

Q. **Exceptions.**

1. Walls used to mitigate noise may exceed the standards above, per Section 15-2506, Noise.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 17, eff. 10-21-16; Am. Ord. 2016-43, §§ 6, 7, eff. 12-9-16; Am. Ord. 2017-33, § 12, eff. 7-30-17; Am. Ord. 2018-66, § 15, eff. 1-18-19; Am. Ord. 2025-024, §§ 32—34, eff. 7-27-25).

SEC. 15-2007. WALLS FOR NOISE ATTENUATION (NOISE BARRIERS).

New development, proximate to transportation corridors or other mobile noise sources in the public right-of-way shall mitigate noise to acceptable levels. See Section 15-2506, Noise. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2008. SCREENING BETWEEN DIFFERING LAND USES.

A. **Applicability.** The standards of this section apply to:

1. New fences, hedges, or walls;
2. The demolition and reconstruction of a site;
3. New development;
4. A new building on a developed site when the new building is more than 300 square feet. The 300 square feet shall be cumulative from the date of adoption of this Code;
5. Building additions to existing buildings that expand the existing floor area by at least 20 percent, or 2,500 square feet, whichever is less, not including Single Unit Dwellings or Duplexes. The addition and/or expansion shall be cumulative from the date of adoption of this Code;
6. A request for a Discretionary Permit;
7. Change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District); or,
8. Condominium Conversions.
9. Exceptions. The standards of this section do not apply to fences that are part of a designated historic site.

B. **Common Property Lines.** A six-foot-high screen wall shall be provided on the interior lot lines where any non-residential use abuts a residential district and where multi-unit development of four or more units abuts a single-unit residential district. Walls shall step down to three feet in height along interior property lines within front yards.

1. **Alleys.** Where residential and non-residential uses are separated by an alley, a screen wall is not required, unless required to screen outdoor storage of material.

C. **Screening Wall Standards.**

1. **Location.** Screening walls shall follow the lot line of the lot to be screened, or shall be so arranged within the boundaries of the lot so as to substantially hide from adjoining lots the building, facility, or activity required to be screened.
2. **Materials.** Walls shall be of stucco, decorative block, decorative concrete panel, or other substantially equivalent material as approved by the Director. Chain-link or double-faced wood fencing does not fulfill the screening wall requirement.
3. **Berms.** Topography, berming, and other alternative methods of mitigating the nuisance of noise and light might be considered at time of project review. An earth berm may be used in combination with the above types of screening walls, but not more than one-third of the required height of such screening may be provided by the berm.

4. **Maintenance.** Screening walls shall be maintained in good repair, including painting, if required, and shall be kept free of litter or advertising.

5. **Graffiti.** Graffiti on a screen wall shall be removed within 48 hours.

6. **Timing.** If a non-residential use develops adjacent to an existing residential development the wall shall be constructed with the new development. Where a six-foot-high wood fence already exists, the masonry wall footing, when constructed, shall comply with City standards.

7. **Pedestrian Access.** Pedestrian access, or breaks in screening walls, shall be provided from commercial to residential land uses in strategic locations to allow for connectivity. Locations shall be determined and negotiated at the time of approval, unless otherwise stated in this Code.

D. **Screening for All Uses Adjacent to Outdoor Sports Facilities.** See Section 15-2749, Private Recreational Sports Facilities.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 16, eff. 1-18-19; Am. Ord. 2025-024, § 35, eff. 7-27-25).

SEC. 15-2009. SECURITY FENCING.

A. **Where Permitted.** The use of barbed wire, razor wire, ultra-barrier, and other hazardous fencing is prohibited with the exception of barbed wire and razor wire in the situations listed below.

1. Where such fencing is required by any law or regulation of the City, the State of California, the federal government, or other public agency.

2. **Livestock.** Where used to contain livestock, the maximum height of a fence shall be five feet, measured from the natural grade of the site to the highest strand of barbed wire or razor wire.

3. **Commercial Districts.** Where not visible from any street, highway, public open space, recreation area, or Residential District, barbed wire or razor wire may be up to 18 inches in height on top of permitted fencing provided the barbed wire or razor wire is located at the top portion of a fence which is at least six feet in height.

4. **Industrial Districts.** Barbed wire or razor wire may be up to 18 inches in height on top of permitted fencing provided it is located at the top portion of a fence which is at least six feet in height. Barbed wire is permitted unless it abuts a Residential District, is located within 100 feet of a Residential District, or is located within 100 feet of a park or other public open space, where it is prohibited.

5. **Specific Uses.** Razor wire is permitted within cemetery, commercial, or industrial uses where the use shares a property line with a freeway or railroad; in such instance razor wire may only be located on the shared property line.

B. **Construction Sites.** Nothing in this Development Code shall be deemed to prohibit the erection of temporary fencing around construction sites in compliance with the Building Code and other applicable provisions of the Fresno Municipal Code.

C. **Location Restrictions—Razor Wire.** Notwithstanding any other provision of this section, razor wire shall be prohibited within 1,000 feet of any sensitive use such as Residential Districts, public or private schools, daycares, churches, and public parks, except where permitted for the keeping of livestock or as temporary fencing around construction sites in compliance with the Building Code and other applicable provisions of the Fresno Municipal Code.

D. **Fencing Encroachments.** All fencing within the public right-of-way requires an encroachment permit from the City Engineer and shall be subject to all requirements of this section, in addition to those of the Public Works Department. Security fencing shall not extend over into any abutting property.

E. **Maintenance.** All walls and fences shall be maintained in a safe, neat, and orderly condition at all times, and shall be kept free of all litter, graffiti, and signs or postings not authorized by Article 26, Signs. Where hedges are used as screening, trimming, or pruning shall be employed as necessary to maintain the maximum allowed height.

F. **Permit.** Property owner(s) shall apply for a permit with the City prior to installation.

G. **City Indemnification.** Prior to the installation of security fencing, the fence owner shall obtain a permit and execute an agreement to defend, hold harmless, and indemnify the City against all claims related to the fencing.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-57, § 1, eff. 11-25-17; Am. Ord. 2018-66, § 17, eff. 1-18-19; Am. Ord. 2024-014, § 1, eff. 7-11-24).

SEC. 15-2010. ELECTRIFIED FENCES.

Electrified fences shall comply with the following regulations. The requirements contained in Section 15-2009 do not apply to Electrified Fencing allowed pursuant to this Section.

A. **Permitted Locations.**

1. In all non-residential zones in which Security Fencing is permitted including all Mixed-Use Districts, all Commercial Districts, all Employment Districts, the Public and Institutional (PI) District, and all Downtown Districts with the exception of the Downtown Core (DTC).

2. Electric fences shall not encroach into the public right-of-way.

B. **Compliance with State and Federal Regulations.**

1. Electrified fencing shall comply with the California Civil Code Section 835 and the California Building Code, as amended from time to time.

2. Only allowed to be installed with a permit issued under the requirements of applicable building and electrical codes, and only allowed to be activated after an approved final inspection of the installation.

3. Fire access, warning signs, electrical connections, etc., shall comply with the Building Code and Fire regulations.

C. **Electricity.**

1. Shall conform to the California Civil Code Section 835 and shall only be powered by a commercial storage battery not to exceed 12 volts of direct current (DC) or another approved 12 volt DC or lower voltage-power source.

2. The electric charge produced by the fence upon contact shall not exceed energizer characteristics set forth in paragraph 22.108 and depicted in Figure 102 of International Electrotechnical Commission (IEC) Standard No. 60335-2-76.

3. Non-low voltage electrical components (e.g., controllers, transformers) of the electric fencing system shall be approved and listed by an Occupational Safety and Health Act (OSHA) Nationally Recognized Testing laboratory (NRTL).

D. **Perimeter Fence or Wall.** No electric fence shall be installed or used unless it is completely surrounded by a nonelectrical fence or wall that is a minimum five feet in height. Should a non-electrical fence not exist, one shall be installed prior to the electric fence being operational. When abutting an existing residential use, the protective barrier shall consist of a solid material (i.e., wooden fence, block wall, an approved mesh material, or equivalent material).

E. **Setbacks.** Non-electrical fencing behind which electric fencing is installed shall comply with setbacks of the underlying zone district unless the non-electrical fence is legally non-conforming.

F. **Height.** Shall have a maximum height of ten feet regardless of location on the property.

G. **Warning Signs.** Shall be clearly identified with warning signs that read: "Warning-Electric Fence" at intervals of not less than 30 feet.

H. **Permit.** Property owner(s) shall apply for a permit with the City prior to installation.

I. **City Indemnification.** Prior to the installation of electric fencing, the fence owner shall obtain a permit and execute an agreement to defend, hold harmless, and indemnify the City against all claims related to the fencing.

J. **Emergency Access.**

1. An electrical disconnect device secured with a Police/Fire X-1 keyway or other approved means for emergency access by Police and Fire Departments shall be provided at a location approved by the Fire Department.

2. The disconnect device shall include an LED pilot light to indicate the status of power to the electric fence.

3. The emergency access disconnect device shall be located outside the primary drive gate entrance of the property and shall not be obscured in any manner from the street/private driveway access. The details and location of the disconnect device shall be shown on the site plan.

4. Approved signs stating the identification of such switches/controls in addition to informational instructions as to how to disable the electrical system shall be installed to the satisfaction of the Fire Marshal.

5. In the event that access by the City of Fresno Fire Department and/or Police Department is required due to an emergency or urgent circumstances and the emergency access disconnect device is absent or non-functional and no authorized property personnel is present to disable the electric fence. City of Fresno Fire or Police personnel shall be authorized to disable the electric fence in order to gain access to the property. All applicants issued building permits to install or use an electric fence as provided in this chapter agree to waive any and all claims for damages to the electric fence against the City of Fresno and/or its personnel under such circumstances.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 13, eff. 7-30-17; Am. Ord. 2017-57, § 2, eff. 11-25-17; Am. Ord. 2018-66, §§ 18—20, eff. 1-18-19; Am. Ord. 2022-028, § 1, eff. 11-19-2022).

SEC. 15-2011. SCREENING OF MECHANICAL AND ELECTRICAL EQUIPMENT.

A. **Applicability.** The standards of this section apply to:

1. New development;

2. New equipment that is added to serve existing buildings; or,

3. Condominium Conversions.

4. **Exceptions.** Existing equipment that serves existing buildings; and Industrial Districts.

B. **Equipment.** All exterior mechanical and electrical equipment shall be screened or incorporated into the design of buildings so as not to be visible from major streets, highways, passenger railways, or abutting Residential Districts.

C. **Residential Districts.** Equipment to be screened includes, but is not limited to, all roof-mounted equipment, air conditioners, heaters, utility meters, cable equipment, telephone entry boxes, backflow preventions, irrigation control valves, electrical transformers, pull boxes, and all ducting for air conditioning, heating, and blower systems. Screening materials shall be consistent with the exterior colors and materials of the building. Above grade equipment by Public Utility providers may be permitted within easements.

D. **Roof Access Ladders and Fire Sprinkler Risers.** Roof access ladders shall be screened from Major Streets. Fire sprinkler risers should be designed for interior installation whenever possible where an exterior location would be visible from a Major Street.

Where site conditions dictate an exterior location for the sprinkler riser, a three foot clear space shall be provided between the screening materials and the riser. The alarm bell and fire department connection shall be installed so that they are visible from the street. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2012. HEIGHTS AND HEIGHT EXCEPTIONS.

A. **Applicability.** The standards of this section apply to:

1. New development or structures; or

2. New equipment that is added to serve existing buildings.

B. **General Standards.** The structures listed in the following table may exceed the maximum permitted building height for the district in which they are located, subject to the limitations stated in the table and further provided that no portion of a structure in excess of the building height limit may be used for sleeping quarters or advertising and all heights shall comply with any operative Airport Plan.

TABLE 15-2012-B: ALLOWED PROJECTIONS ABOVE HEIGHT LIMITS

Structures Allowed Above the Height Limit	*Maximum Coverage, Locational Restrictions*	*Maximum Vertical Projection Above the Height Limit (ft)*
Skylights	No limitation	1
Solar panels, and other energy production facilities located on a rooftop	No limitation	10
Parapets	No limitation	4
Chimneys Elevator and stair towers Rooftop open space features such as sunshade and windscreen devices, open trellises, and landscaping (for multi-unit and non-residential buildings only) Flagpoles	10% of roof area	16 (if no height limit in the underlying district, 35)
Decorative features such as spires, bell towers, domes, cupolas, obelisks, clock towers, and monuments (attached or detached)	10% of roof area	Residential: 6 Non-Residential: 20
Fire escapes, catwalks, and open railings required by law	Per Building Code	Per Building Code
Radio towers	Refer to Section 15-2759, Telecommunications and Wireless Facilities	
Water tanks Windmills Industrial structures where the manufacturing process requires a greater height	25% of the area of the lot, or 10% of the roof area of all on-site structures, whichever is less. Must be located at least 25 ft. from any lot line.	100. May exceed 100 with the approval of a Conditional Use Permit. Public noticing shall be eight times the height of the structure measured in ft.
Building-mounted telecommunications facilities, antennas, and microwave equipment	Subject to the provisions of Section 15-2759, Telecommunications and Wireless Facilities	

C. Building height shall be measured as put forth in Section 15-305, Measuring Height. (Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 36, eff. 7-27-25).

SEC. 15-2013. OUTDOOR SERVICE YARDS AND STORAGE.

A. **Applicability.**

1. Outdoor service yards and the open storage of goods, materials, machines, equipment, and vehicles or parts outside of a building for more than 72 hours must conform to the standards of this section. This applies to goods to be sold or goods being stored that are pending transport to other locales.

2. **Exceptions.** Except as may be permitted by Table 15-2013-B, the regulations of this section do not apply to:

   a. Agricultural and residential uses;

   b. Temporary storage of construction materials reasonably required for construction work on the premises pursuant to a valid building permit or grading permit; or

   c. Outdoor sales or uses that by their very nature provide outdoor storage, such as auto, trailer, and boat dealers, and equipment rental.

B. **Permitted Locations.** Table 15-2013-B states the districts where outdoor storage and service yards are permitted and prohibited.

TABLE 15-2013-B: OPEN STORAGE REGULATIONS BY DISTRICT AND LOCATION

Base Districts	*Permissibility of Open Storage*
Agricultural	Permitted if associated with a permitted agricultural use, located outside of all required setbacks.
Residential and Mixed-Use	Outdoor storage of materials generally found in households is not permitted.
Commercial, Employment, and Public and Semi-Public Districts	Not permitted in front or street-facing side yards. Permitted in interior side and rear yards, or outside of required yards, subject to the standards of this section. Setback minimum 20 feet from Residential Districts.

C. **Surfacing.** Outdoor storage areas shall be surfaced as determined by the Public Works Director. In making a determination, the Public Works Director shall take into consideration:

1. The zone district of the site.

2. If the site will be used to store equipment that is used daily and common drive-aisles will be paved and/or treated to mitigate potential dust from vehicles.

3. Surrounding sensitive uses such as residential uses, schools (K-12), day cares, hospitals, or elderly care facilities.

4. If the proposed surfacing is appropriate to the type of product stored.

5. If the proposed surfacing will conform to all applicable federal and State air and water quality standards.

6. If the surface will comply with adopted regulations of the San Joaquin Valley Air Pollution Control District.

D. **Screening.**

1. Outdoor storage areas and service yards shall be screened so as not to be visible from Major Streets or at-grade highways; Residential Districts; public schools, or public parks.

2. Screening walls and fences shall be architecturally compatible with the main structure on the site.

3. Earth berms or plant material may serve to satisfy screening requirements as alternative materials.

4. No screening wall or fence shall be located within a required setback or landscape area.

5. No stored goods may exceed the height of the screening wall or fence by more than one foot.

6. Service yards may have screen walls up to 15 feet in height and must be attached to the main building and shall be of the same quality and appearance as those used on the building itself. Service yards shall be considered part of the main structure for property development standards and shall be clearly incidental to the primary use. Outdoor storage shall not be the primary use on the property.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2014. PROJECTIONS/ENCROACHMENTS INTO REQUIRED YARDS.

Building projections may extend into, and other encroachments may be located in, required yards according to the standards of Table 15-2014 and are subject to all applicable requirements of the Building Code. The "Limitations" column states any other limitations that apply to such structures when they project into required yards. For standards for measurement of required yards and setbacks, refer to Section 15-313, Determining Setbacks and Yards.

TABLE 15-2014: ALLOWED BUILDING PROJECTIONS AND ENCROACHMENTS INTO REQUIRED YARDS

Projection/Encroachment	*Front or Street Side Yard (ft)*	*Interior Side Yard (ft)*	*Rear Yard (ft)*	*Limitations*
All projections	Notwithstanding any other subsection of this section, no projection may extend closer than three feet to an interior lot line or into a public utility easement.			
Cornices, canopies, eaves, and similar architectural features; chimneys.	2	2	2	
Bay windows	3	2	3	
Outdoor dining areas for restaurants	10	10	10	May not encroach into yards adjacent to residential uses.
Fire escapes required by law or public agency regulation	4	4	4	

TABLE 15-2014: ALLOWED BUILDING PROJECTIONS AND ENCROACHMENTS INTO REQUIRED YARDS				
Projection / Encroachment	*Front or Street Side Yard (ft)*	*Interior Side Yard (ft)*	*Rear Yard (ft)*	*Limitations*
Uncovered stairs, ramps, stoops, or landings that service above the first floor of building	3	2	3	
Depressed ramps or stairways and supporting structures designed to permit access to parts of buildings that are below average ground level	3.5	3.5	3.5	
Basketball Rims and Backboards	No closer than 10 ft. of a street-facing property line or 5 ft. from an interior side or rear property line.			
Decks, porches, and stairs				
Less than 18 inches above ground elevation	6	2	8	Must be open on at least three sides. No closer than 5 ft. of a street-facing property line or 3 ft. of an interior property line.
18 inches or more above ground elevation	3	2	3	
Ramps and similar structures that provide access for persons with disabilities	Reasonable accommodation will be made, consistent with the Americans with Disabilities Act; see Article 57, Reasonable Accommodation for Housing.			

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2015. OUTDOOR LIGHTING AND ILLUMINATION.

A. **Applicability.** The standards of this section apply to on-site lighting under the following circumstances:

1. New lights;
2. The demolition and reconstruction of a site;
3. New development;
4. Building additions to existing buildings that expand the existing floor area by at least 20 percent, or 2,500 square feet, whichever is less, not including Single-Unit Dwellings or Duplexes. The addition and/or expansion shall be cumulative from the date of adoption of this Code;
5. The addition of residential units;
6. A request for a Discretionary Permit;
7. Change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District); or,
8. Condominium Conversions.

B. **Control and Illumination of Outdoor Artificial Light.**

1. **Purpose.** This subsection is intended to minimize outdoor artificial light that may have a detrimental effect on the environment, astronomical research, amateur astronomy, and enjoyment of the night sky. These provisions are also intended to reduce the unnecessary illumination of adjacent properties and the use of energy.

2. **General Standards.**

   a. **Single-Unit Districts.** Each new home shall provide at a minimum, lighting proximate to the main entrance, the garage/carport, and alley, if present.

   b. **Multiple-Unit Residential Buildings.** Aisles, passageways, recesses, etc., related to and within the building complex shall be illuminated with an intensity of at least 0.25 foot-candles at the ground level during the hours of darkness. Lighting devices shall be protected by weather and vandal-resistant covers.

   c. **Pedestrian-Oriented Lighting.** In Multi-Unit, Mixed-Use, and Commercial Districts, exterior lighting with an intensity of at least 0.25 foot-candles at the ground level shall be provided for a secure nighttime pedestrian environment by reinforcing entrances, public sidewalks and open areas with a safe level of illumination.

   d. **Non-Residential Buildings.** All exterior doors, during the hours of darkness, shall be illuminated with a minimum of 0.5 foot-candle of light.

   e. **Trails/Paseos.** As determined by the Public Works Director.

   f. **Parking Lots and Garages.** All parking lots and garages shall be illuminated with a minimum of 0.5 foot-candle of light.

3. **Maximum Height.** Lighting fixtures shall not exceed the maximum heights specified in the following table.

TABLE 15-2015-B.3: MAXIMUM HEIGHT OF LIGHTING FIXTURES

District	*Maximum Height (ft)*
Residential Single-Unit Districts	Shall not exceed the fascia of the home
Residential Multi-Unit Districts	Shall not exceed the fascia of the unit or 16 feet, whichever is greater
Commercial and Mixed-Use Districts	20 within 100 of any street frontage or Residential District; 25 in any other location
Employment Districts	25 within 100 of any street frontage; 30 in any other location
Public and Semi-Public Districts	25, or as necessary for safety and security

4. **Exemptions.** The following types of lighting fixtures are exempt from the requirements of this section:

   a. Public and Private Street Lighting.

   b. Parks/Athletic Field Lights. Athletic field lights used within a school campus or public or private park.

c. Public Safety and Security Lighting. Safety and security lighting as required by State and federal regulations, including, but not limited to, airports, radio towers, antennas, etc.

d. Construction and Emergency Lighting. All construction or emergency lighting fixtures provided they are temporary and are discontinued immediately upon completion of the construction work or abatement of the emergency.

5. **Prohibited Lighting.** The following types of exterior lighting are prohibited:

a. Drop-down lenses;

b. Mercury vapor lights; and,

c. Searchlights, laser lights, or any other lighting that flashes, blinks, alternates, or moves.

6. **Fixture Types.** All lighting fixtures shall be shielded so as not to produce obtrusive glare onto the public right-of-way or adjoining properties. All luminaries shall meet the most recently adopted criteria of the Illuminating Engineering Society of North America (IESNA) for "Cut Off" or "Full Cut Off" luminaries.

7. **Glare.** No use shall be operated such that significant, direct glare, incidental to the operation of the use is visible beyond the boundaries of the property where the use is located.

8. **Light Trespass.** Lights shall be placed to deflect light away from adjacent properties and public streets, and to prevent adverse interference with the normal operation or enjoyment of surrounding properties.

a. Direct or sky-reflected glare from floodlights shall not be directed into any other property or street.

b. No light or combination of lights, or activity shall cast light exceeding one foot candle onto a public street, with the illumination level measured at the centerline of the street.

c. No light, combination of lights, or activity shall cast light exceeding 0.5 foot candle onto a residentially zoned property, or any property containing residential uses.

9. **Alternate Materials and Methods of Installation.** Designs, materials, or methods of installation not specifically prescribed by this section may be approved by the Director, provided that the proposed design, material, or method provides approximate equivalence to the specific requirements of this section or is otherwise satisfactory and complies with the intent of these provisions.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 18, eff. 10-21-16; Am. Ord. 2018-66, §§ 21, 22, eff. 1-18-19; Am. Ord. 2025-024, § 37, eff. 7-27-25).

SEC. 15-2016. TRASH AND REFUSE COLLECTION AREAS.

A. **Applicability.** The standards of this section apply to:

1. New collection areas;
2. New development;
3. The demolition and reconstruction of a site;
4. Building additions to existing buildings that expand the existing floor area by at least 20 percent, or 2,500 square feet, whichever is less, not including Single-Unit Dwellings or Duplexes. The addition and/or expansion shall be cumulative from the date of adoption of this Code;
5. The addition of residential unit(s) that result in five or more dwelling units.
6. A request for a Discretionary Permit;
7. Change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District); or,
8. Condominium Conversions.

B. **Requirements.**

1. **Single-Unit Residential.** As required per Chapter 6, Municipal Services and Utilities, of the Fresno Municipal Code.
2. **Multi-Unit Residential.** Enclosures for solid waste and recycling containers are required when:
   a. Five or more dwelling units are proposed; and,
   b. There should be a minimum of one solid waste and recycling enclosure per 30 units.
3. **Non-Residential Districts.** As required per Chapter 6, Municipal Services and Utilities, of the Fresno Municipal Code.
4. **Uses That Produce Grease.** Uses, such as restaurants, that produce grease shall provide a "grease barrel" enclosure or alternative as approved by the Public Utilities Director.

C. **Location.**

1. Solid waste and recycling storage areas shall not be located within any required setback or any landscaped areas except where a rear yard abuts an alley. Where a rear yard abuts an alley, the solid waste and recycling storage area may be located within the required rear yard setback however the gates may not swing open into the alley.
2. In non-residential developments that abut a Residential District, enclosures shall be located as far as possible from the residential district as feasible and be proximate to

the non-residential development. Enclosure gates shall not open into drive aisles and shall not block the visibility of pedestrians and drivers. Refer to Section 15-2018, Intersection Visibility.

3. Solid waste and recycling areas shall be consolidated to minimize the number of collection sites and located so as to reasonably equalize the distance from the building spaces they serve.

4. Solid waste and recycling storage areas shall be accessible to haulers. Storage areas shall be located so that the trucks and equipment used by the solid waste and recycling collector(s) have sufficient maneuvering areas and, if feasible, so that the collection equipment can avoid backing. Project applicants are responsible for procuring current equipment size and turning radius from the City or its contracted solid waste and recycling collector(s).

D. **Materials, Construction, and Design.**

1. **Enclosure Material.** Enclosures shall be constructed per City standards.

2. **Gate Material.** Gate material shall be solid, heavy-gauge metal or a heavy-gauge metal frame with a covering of a view-obscuring material.

3. **Access to Enclosure.** Each solid waste and recycling enclosure shall be designed to allow walk-in access without having to open the main enclosure gate, to the extent feasible.

4. **Enclosure Pad/Bumpers.** Enclosures shall be constructed per City standards.

5. **Protection for Enclosures.** Concrete curbs or equivalent shall protect enclosures from adjacent vehicle parking and travel ways.

6. **Stormwater Pollution Prevention.** Enclosure pads must be designed to prevent contamination of the stormwater system. Measures that may be taken to achieve this include, but are not limited to, using roofs to divert stormwater away from the enclosures, creating grade breaks to properly direct stormwater away while keeping any water that may be in the enclosure from spilling out, and connecting a drain in the enclosure to the sewer system to collect contaminated water in cases of spillage, washing, etc.

7. **Landscaping.** When visible from a Major Street or a Local Street that serves residential neighborhoods, the perimeter of enclosures, excluding gates, shall be planted, with drought-resistant landscaping, including a combination of shrubs and/or climbing evergreen vines. This subsection does not apply to Industrial Districts.

8. **IH District Exception.** In the IH District, as an alternative to an enclosure, a concrete curb may be provided to minimize bins from rolling about a parking area. Alternative enclosures may not be visible from any street, residential district, and/or school.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 23, 24, eff. 1-18-19; Am. Ord. 2025-024, § 38, eff. 7-27-25).

SEC. 15-2017. UNDERGROUND UTILITIES.

A. **Applicability.** The standards of this section apply to all of the following:

1. New development;

2. The demolition and reconstruction of a site;

3. Any other time deemed appropriate by the Public Works Director.

B. **Standards.** All electrical, telephone, cable television, and similar distribution lines providing direct service to a development site shall be installed underground within the site. This requirement may be waived or deferred by the Public Works Director or the City Engineer upon a determination that the installation is infeasible or premature.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2018. INTERSECTION VISIBILITY.

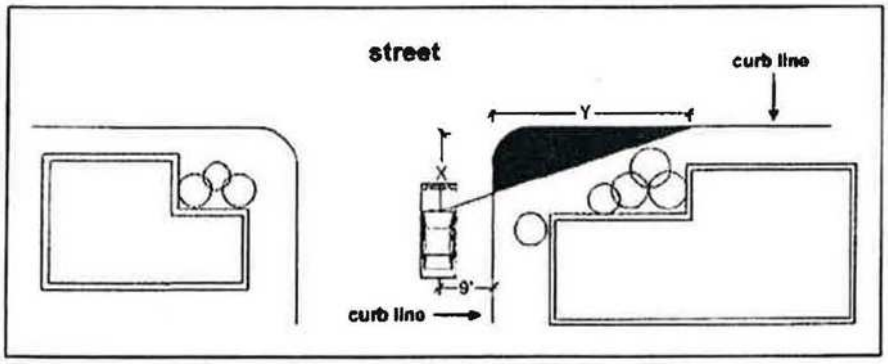


FIGURE 15-2018: INTERSECTION VISIBILITY

A. **Street Intersections.**

1. Vegetation and structures may not exceed a height of three feet within the triangular sight-distance area formed by the intersecting curb lines (or edge of pavement when no curbs exist) and a line joining points on these curb lines at the locations and distances identified in Figure 15-2018 and Table 15-2018-A.

2. Trees that are located within this sight distance triangle shall have a clearance of eight feet high minimum between the lowest portion of the canopy and the sidewalk and street.

3. Applies to all structures, including flag poles and signs.

TABLE 15-2018-A: REQUIRED TRIANGULAR SIGHT-DISTANCE AREA

Circumstance	*X Distance (ft.)*	*Y Distance (ft.)*
Local Street to Local Street	11	100
Local Street to Collector Street	25	25
Local Street to Arterial	20	100

TABLE 15-2018-A: REQUIRED TRIANGULAR SIGHT-DISTANCE AREA		
Circumstance	*X Distance (ft.)*	*Y Distance (ft.)*
Local Street to Super Arterial	20	100
Major Street to Major Street	30	30
Other Requirements: 1. Scaled site plan depicting property lines and dimensioned sidewalk pattern.		

B. **Driveways and Alleys.** Visibility of a driveway crossing a street lot line shall not be blocked above a height of three feet by vegetation or structures for a depth of 12 feet as viewed from the edge of the right-of-way on either side of the driveway at a distance of 12 feet. Street trees shall be pruned at least seven feet above the established grade of the curb so as not to obstruct clear view by motor vehicle drivers are permitted.

C. **Commercial Districts, Refuse Collection Areas, and Drive-Through Lanes.** Vegetation (with the exception of trees) and structures may not exceed a height of three feet within the triangular sight-distance area formed by the intersecting drive aisles and a line joining points on these aisles at a distance of 10 feet along both lines from their intersection. Trees located within this sight distance shall have a minimum clearance of seven feet high between the lowest portion of the canopy and the pavement and shall not be capable of growing to a width that would obstruct the sight area.

D. **Vehicle/Pedestrian Conflicts.** Whenever it is reasonable to expect potential conflicts between vehicles exiting drive-aisles, drive-throughs, etc., and a pedestrian path that traverses said aisle, a visibility triangle per Subsection C above shall be provided.

E. **Exempt Structures and Plantings.** The regulations of this section do not apply to existing buildings or new buildings in compliance with Base District setbacks; fire hydrants; public utility poles; saplings or plant species of open growth habits and not planted in the form of a hedge that are so planted and trimmed as to leave at all seasons a clear and unobstructed cross view; official warning signs or signals at places where the contour of the ground is such that there can be no cross visibility at the intersection.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 19, eff. 10-21-16; Am. Ord. 2017-33, §§ 14, 15, eff. 7-30-17).

SEC. 15-2019. DEVELOPMENT ON SUBSTANDARD LOTS.

Any lot or parcel of land that was legally created may be used as a building site even when consisting of less area, width, or depth than that required by the regulations for the district in which it is located. No substandard lot shall be further reduced in area, width, or depth, unless required as part of a public improvement. A substandard lot shall be subject to the same yard and density requirements as a standard lot, however the Director may reduce the side and rear yard requirements at a ratio equivalent with the non-conformity.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2020. LOTS WITH MULTIPLE ZONE DISTRICTS (SPLIT ZONING).

A. **Generally.** Where a contiguous lot is divided by a zoning district boundary, the regulations applicable to each district shall be applied to the area within the district, and no use, other than parking serving a principal use on the site, shall be located in a district in which it is not a permitted or conditionally permitted use.

B. **Access.** All access to parking serving a use must be from a street abutting that portion of the lot where the use is allowed. Pedestrian or vehicular access from a street to a non-residential use shall not traverse a Residential District in which the non-residential use is not permitted or conditionally permitted.

C. **Accessory Facilities.** Landscaping, fences, screening or retaining walls, and open space may be located on the lot without regard for zone boundaries.

D. **Refuse Collection Areas.** Shall be located on the parcel that permits the primary use.

E. **Minimum Lot Area, Width, and Frontage.** The minimum lot area, width, and frontage requirements of the zone that covers the greatest portion of the lot area shall apply to the entire lot. If the lot area is divided equally between two or more zones, the requirements of the district with greater minimum lot area, width, or frontage shall apply to the entire lot.

F. **Exceptions.** If more than 75 percent of a lot is located in one zoning district, modifications to the provisions of this section may be granted through Review Authority approval of a Planned Development Permit.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 19, eff. 6-11-18).

ARTICLE 21 TOD HEIGHT AND DENSITY BONUS

Sec. 15-2101. Purpose.
Sec. 15-2102. Applicability.
Sec. 15-2103. Maximum Permitted Bonuses.
Sec. 15-2104. Required Findings.

SEC. 15-2101. PURPOSE.

The purpose of the Transit-Oriented Development (TOD) Height and Density Bonus is to provide flexibility for projects which promote walkability, livability, and transit ridership near stations for Bus Rapid Transit and other enhanced transit service.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2102. APPLICABILITY.

At its discretion, the Review Authority, when granting a Development Permit, may allow a project to exceed the maximum height and/or the maximum residential density of the Base District if all three of the following criteria are met:

A. The project site is located entirely within an MX District or a CMS District.

B. The project site is located within 500 feet of an existing or planned Bus Rapid Transit station or a station for a similar enhanced transit service as determined by the Review Authority or is located within ½ mile of the Manchester Transit Center.

C. The project will provide one of the following public benefits:

1. A Public Plaza per Section 15-1104-E.1.c; or

2. Qualifying public art at the discretion of the Review Authority; or

3. Ninety percent or greater frontage coverage along the street which features the Bus Rapid Transit route or other enhanced transit route.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 20, eff. 10-21-16; Am. Ord. 2017-33, § 16, eff. 7-30-17).

SEC. 15-2103. MAXIMUM PERMITTED BONUSES.

Height and Density bonuses granted by the Review Authority may not exceed the following:

A. **Height.** The bonus height may exceed that of the Base District by no more than 25 percent. Portions of buildings in excess of the maximum height of the Base District may not be located within 100 feet of an RS District.

B. **Residential Density.** The bonus density may exceed that of the Base District by no more than 100 percent.

C. **Combination with Affordable Housing Density Bonus.** A TOD Height and Density Bonus may be used in combination with an Affordable Housing Density Bonus.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2104. REQUIRED FINDINGS.

A decision to grant a bonus shall be based on making all of the following findings:

A. The architectural design of the project is of exceptional quality and will add to the beauty and pedestrian comfort of the transit corridor;

B. Granting the bonus shall not cause more housing to be located within the corridor or corridor segment than was identified in the General Plan Master Environmental Impact Report or other applicable environmental review;

C. Granting the bonus shall not cause the capacity of the infrastructure which serves the site to be exceeded; and

D. Granting the bonus will not be detrimental to the health or safety of the public or the occupants of the property.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 22 AFFORDABLE HOUSING DENSITY BONUS

Sec. 15-2201. Purpose.
Sec. 15-2202. Other Regulations and Adopted Plans.
Sec. 15-2203. Applicability.
Sec. 15-2204. Density Bonuses.
Sec. 15-2205. Affordable Housing Concessions and Incentives.
Sec. 15-2206. Application Requirements.
Sec. 15-2207. Affordable Housing Standards.
Sec. 15-2208. Regulatory agreement.
Sec. 15-2209. Enforcement.
Sec. 15-2210. Definitions.

SEC. 15-2201. PURPOSE.

The purposes of the affordable housing regulations are to:

A. Lessen the shortage of housing affordable to moderate, low, and very low income households in the city as partial compliance with California Government Code (Government Code) Section 65583(c);

B. Allow for density bonuses and additional incentives, consistent with Government Code Section 65915, for housing affordable to moderate, low, and very low income households, for seniors and disabled persons, and for development that includes a childcare facility;

C. Implement the policies of the Housing Element to expand the provision of housing for lower and moderate income households, elderly residents and others with special housing needs; and

D. Establish requirements for resale and rental controls to ensure that units remain affordable for at least 30 years or such other term as required by the City, consistent with State law.

E. Nothing in this Article shall be construed as a provision for inclusionary zoning where an applicant is required to provide housing affordable to moderate, low, and very low income households as a condition of approval for a residential development. Furthermore, the Council shall not adopt a provision for inclusionary zoning, as described above, unless and until the Fresno General Plan adopted in December 2014 is updated and superseded by a new General Plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2202. OTHER REGULATIONS AND ADOPTED PLANS.

A. **State Law Governs.** The provisions of this section shall be governed by the requirements of Government Code Section 65915. Where conflict may occur between the provisions of this section and State law, the State law shall govern.

B. **Effect of Granting a Density Bonus.** The granting of a density bonus shall not, in and of itself, require a General Plan amendment, zoning change, or other discretionary approval.

C. **Land Use Compatibility.** When located within the Airport Influence Area (AIA) of any of the operative airport plans (i.e. Sierra Skypark Land Use Policy Plan, Fresno-Chandler Downtown Airport Land Use Compatibility Plan, Fresno Yosemite International Airport Land Use Compatibility Plan) applications for a density bonus project and/or an incentive as authorized by this section shall be subject to the provisions of the adopted land use compatibility policies for residential development established by each plan for noise, airspace protection, safety, and nuisance.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2203. APPLICABILITY.

The bonuses under this article are applicable to the following projects:

A. General residential projects of five or more units.

B. Senior housing projects of more than 35 units.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2204. DENSITY BONUSES.

Pursuant to Government Code Section 65915, the City shall grant a density bonus over the otherwise allowable maximum residential density permitted by this Ordinance, the General Plan, or operative plans, and one or more additional concessions or incentives, consistent with Government Code Section 65915 and this section, if the applicant applies for and proposes to construct any one of the following:

A. **Very Low Income Units.**

1. A density bonus of 20 percent if five percent of the total units of a housing development are affordable to very low income households, as defined in Health and Safety Code Section 50105.

2. For each additional one percent increase above five percent in the proportion of units affordable to very low income households, the density bonus shall be increased by 2.5 percent, not to exceed the maximum density bonus as put forth in Subsection H.

B. **Lower Income Units.**

1. A density bonus of 20 percent if 10 percent of the total units of a housing development are affordable to lower income households, as defined in Health and Safety Code Section 50079.5.

2. For each additional one percent increase above 10 percent units affordable to lower income households, the density bonus shall be increased by 1.5 percent, not to exceed the maximum density bonus as put forth in Subsection H.

C. **Senior Citizen Housing Development.** A density bonus of 20 percent if a housing development qualifies as a Senior Citizen Housing Development, as defined in Civil Code Section 51.3.

D. **Moderate Income Units in Condominium and Planned Use Developments.**

1. A density bonus of five percent if 10 percent of the total dwelling units in a condominium project, as defined in Subdivision (f), or in a Planned Development as defined in Subdivision (k) of Section 1351 of the Civil Code, are affordable to persons and families of moderate income, as defined in Section 50093 of the Health and Safety Code.

2. For each additional one percent increase above 10 percent units affordable to moderate income households, the density bonus shall be increased by one percent, not to exceed the maximum density bonus as put forth in Subsection H.

E. **Conversion of Apartments to Condominiums.**

1. A density bonus of 25 percent if at least 33 percent of the total units of the proposed condominium project are affordable to persons of low or moderate income as defined in Health and Safety Code Section 50093, or if 15 percent of the total units of the condominium project are affordable to lower income households as defined by Health and Safety Code Section 50079.5.

2. Apartments that have already been granted a density bonus are ineligible for a density bonus under this section.

F. **State Childcare Facility Density Bonus.** When an applicant proposes to construct a housing development that conforms to the requirements of the State Density Bonus Law and includes a childcare facility other than a family day care home that will be located on the premises of, as part of, or adjacent to, the project, the City shall grant one of the following:

1. **Additional Density Bonus.** A density bonus of additional residential units equal in gross square footage to the amount of square footage of the childcare facility.

2. **Additional Concession or Incentive.** An additional concession or incentive that contributes significantly to the economic feasibility of the construction of the childcare facility.

3. **Length of Operation.** The childcare facility remains in operation for a period of time that is as long as, or longer than the length of time during which the affordable housing units must remain affordable.

G. **Land Donation.**

1. **Basic Requirements.** When an applicant for a residential development such as a subdivision map or special permit donates land to the City in accordance with this subsection, a density bonus of 15 percent shall be granted if at least 10 percent of the units are for very low income households. For each additional one

percent increase above 10 percent units affordable to very low income households, the density bonus shall be increased by one percent, up to a maximum of 35 percent of the maximum allowable residential density for the site.

a. This density bonus shall be in addition to any increase in density allowed by this section, the combination of which shall not exceed 35 percent, unless approved with good cause by the Director pursuant to this section.

2. **Additional Requirements.** The density bonus for donation of land may be granted if all of the following conditions are met:

a. The applicant donates and transfers the land to the City or to a housing developer approved by the City. The transfer shall be complete (deed recorded) prior to the recordation of a subdivision map or approval of a Special Permit.

b. The transferred land is at least one acre in size or of sufficient size to permit the development of at least 40 dwelling units.

c. The land has the appropriate General Plan designation and zoning for the development at the density described in paragraph (3) of subdivision (c) of Government Code Section 65583.2.

d. Is or will be served by adequate public facilities and infrastructure; and has all permits and approvals, other than building permits, necessary for the development of the very low income housing units on the transferred land, not later than the date of approval of the final subdivision map, parcel map or Special Permit, except that the local government may subject the proposed development to subsequent design review if its design is not reviewed by the City prior to the time of transfer.

e. The transferred land and the affordable units shall be subject to a deed restriction ensuring continued affordability of the units consistent with this section recorded at time of transfer.

f. The transferred land shall be within the boundary of the proposed development or within one-quarter mile of the subject site, if acceptable to the Director.

H. **Maximum Density Bonus.**

1. **Mixed-Use Districts.** No maximum.

2. **Other Districts.** A density bonus over 35 percent may be approved at the discretion of the Review Authority.

I. **Calculation of Density Bonus Units.** When calculating the number of permitted density bonus units, all fractional units shall be rounded to the next higher whole number. The applicant who requests a density bonus for a project that meets two or more of the eligibility requirements shall specify whether the bonus shall be awarded

on the basis of Subsections A-F of this section. The density bonus shall not be included when determining the number of target units to be provided in a development project.

1. **Optional Density Bonus.** The City may grant a proportionally lower density bonus and/or provide concessions and/or incentives set forth in Section 15-2205, Affordable Housing Concessions and Incentives, if an applicant agrees to construct a development containing less than the percentage of housing for lower or very low income households than provided in this section.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2205. AFFORDABLE HOUSING CONCESSIONS AND INCENTIVES.

A. **Number of Incentives or Concessions.** Pursuant to Government Code Section 65915, an applicant is entitled to receive incentives and/or concessions as follows. The applicant who requests incentives or concessions for a mixed-income project shall specify whether the incentives or concessions shall be awarded on the basis of one or more of the points below.

1. One incentive or concession for projects that include:
   a. At least 10 percent of the total units for lower income households;
   b. At least five percent for very low income households; or
   c. At least 10 percent for persons and families of moderate income in a condominium or planned development;
2. One incentive or concession for senior citizen housing developments; or
3. Two incentives or concessions for projects that include;
   a. At least 20 percent of the total units for lower income households;
   b. At least 10 percent for very low income households; or
   c. At least 20 percent for persons and families of moderate income in a condominium or planned development; or
4. Three incentives or concessions for projects that include:
   a. At least 30 percent of the total units for lower income households;
   b. At least 15 percent for very low income households; or
   c. At least 30 percent for persons and families of moderate income in a condominium or planned development.

B. **Proposal of Incentives and Findings.** An applicant may propose specific incentives or concessions pursuant to this section and State law. In addition to any increase in density to which an applicant is entitled, the City shall grant one or more incentives and/or

concessions that an applicant requests, up to the maximum number of incentives and concessions required pursuant to Subsection 15-2205-A unless the City makes a written finding that either:

1. The concession or incentive is not necessary in order to provide the proposed targeted units, or

2. The concession or incentive would have a specific adverse impact that cannot be feasibly mitigated on public health and safety or the physical environment or any property that is listed in the California Register of Historical Resources.

The applicant may propose and the City may approve additional incentives and concessions for an eligible project that provides targeted units that meet two or more of the eligibility requirements based on a written finding that the additional incentives or concessions are necessary in order to make the project economically feasible.

C. **Types of Affordable Housing Incentives.** Affordable housing incentives may consist of any combination of the items listed below:

1. **Modification of Development Standards.** Up to 20 percent in modification of site development standards or zoning code requirements, including, but not limited to:

   a. Reduced minimum lot sizes and/or dimensions.

   b. Reduced minimum building setbacks and building separation requirements, excluding back up treatment for off-street parking spaces.

   c. Reduced minimum outdoor and/or private usable open space requirements.

   d. Increased maximum lot coverage.

   e. Increased maximum building height.

2. **Reduced Parking.** Upon the applicant's request, the following maximum parking standards, inclusive of handicapped and guest parking, shall apply to the entire project. Further reductions in required parking may be requested as one of the incentives allowed under Subsection 15-2205-A.

   a. **Standard Reduction.**

      i. .5 on-site space for studio units;

      ii. .75 on-site space for one or two bedroom units;

      iii. One on-site space for three or more bedrooms; and

      iv. Guest parking shall be provided per the underlying district.

   b. **Transit-Serviced Developments.** When a development is located within one-half mile of a major transit stop and there is unobstructed access to the stop, the following maximum parking ratios apply. For Senior and Special Needs Housing, the development shall have either paratransit service or unobstructed access, within one-half mile, to fixed bus route service that

operates at least eight times per day. For purposes of this subsection, "unobstructed access" means that a resident is able to access the stop without encountering natural or constructed impediments.

i. **Mixed Income Developments.** If the project dedicates 20 percent of the total units for lower income households and 11 percent of the total units for very low income households, then the maximum required parking ratio shall be .5 spaces per bedroom.

ii. **One-Hundred Percent Affordable Developments.** For projects that consist solely of rental units, exclusive of a manager's unit or units, with an affordable housing cost to lower income families, the maximum parking ratios shall be as follows.

(1) **Senior Housing.** If the development is a for-rent housing development for individuals who are 62 years of age or older that complies with Sections 51.2 and 51.3 of the Civil Code, the ratio shall not exceed .5 spaces per unit.

(2) **Special Needs Housing.** If the development is a special needs housing development, as defined in Section 51312 of the Health and Safety Code, the ratio shall not exceed 0.3 spaces per unit.

(3) **All Other Housing.** .5 spaces per unit.

3. **Mixed-Use Zoning.** Approval of mixed-use zoning in conjunction with the housing project if commercial, office, industrial, or other land uses will reduce the cost of the housing development and such uses are compatible with the housing project and the surrounding area.

4. **Other Incentives.** Other regulatory incentives or concessions proposed by the developer or the City that result in identifiable cost reductions or avoidance.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2206. APPLICATION REQUIREMENTS.

An application shall be submitted by an applicant and shall contain the information as outlined by the Director.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2207. AFFORDABLE HOUSING STANDARDS.

A. **Duration of Affordability.** All affordable housing units shall be kept affordable for a minimum period of 30 years or a longer period as required by the financing assistance or subsidy program or the City, consistent with State law.

B. **Timing of Availability.** Affordable housing units shall be constructed concurrently with, and made available for qualified occupants at the same time as the market-rate housing units within the same project unless both the City and the developer agree to an alternative schedule for development.

C. **Design.** The mix and type of affordable units shall be proportionate to those of the project as a whole (with the exception that premium units - e.g., penthouses, top floor view units - shall not be required to be affordable units), and shall be comparable with the design of the base level market rate units prior to purchaser-funded upgrades in terms of appearance, materials, and finished quality.

D. **Parking.** Parking designated for affordable units shall be provided in an equitable manner as that provided for the market rate units.

E. **Location.** Wherever feasible, affordable units shall be dispersed throughout the development.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2208. REGULATORY AGREEMENT.

The City shall enter into a recorded agreement in the form of a covenant with property owner, and take other appropriate steps necessary to assure that the required moderate, low and/or very low income ownership units are provided and that the units remain affordable to moderate, low, or very low income households for the required period. This agreement shall include, but is not limited to, the following:

A. **Number of Units.** The total number of units approved for the projects, including the number of affordable housing units.

B. **Target Units.** The location, unit sizes (in square feet) and number of bedrooms of the affordable housing units.

C. **Household Income Group.** A description of the household income groups to be accommodated by the project and a calculation of the Affordable Sales Price.

D. **Certification Procedures.** The party responsible for certifying sales prices or annual rental rates, and the process that will be used for certification.

E. **Schedule.** A schedule for the completion and occupancy of the affordable housing units.

F. **Required Term of Affordability.** Duration of affordability of the housing units. Provisions should also cover resale control and deed restrictions on targeted housing units that are binding on property upon sale or transfer.

G. **Expiration of Agreement.** Provisions covering the expiration of the agreement, including notice prior to conversion to market-rate units and right of first refusal option for the City and/or the distribution of accrued equity for for-sale units.

H. **Remedies for Breach.** A description of the remedies for breach of the Agreement by either party.

I. **Other Provisions.** Other provisions to ensure implementation and compliance with this article.

J. **Condominium and Planned Developments.** In the case of condominium and planned developments, the Regulatory Agreement shall provide for the following conditions governing the initial resale and use of affordable housing units:

1. Target units shall, upon initial sale, be sold to eligible Very Low, Lower, or Moderate Income Households at an Affordable Sales Price and Housing Cost, or to Qualified Residents as defined by this Ordinance.

2. Target units shall be initially owner-occupied by eligible Very Low or Lower Income Households.

3. Upon resale, the seller of a target unit shall retain the value of any improvements, the down payment, and the seller's proportionate share of appreciation. The City shall recapture its proportionate share of appreciation, which shall be used to promote home ownership opportunities as provided for in Health and Safety Code Section 33334.2. The City's proportionate share shall be equal to the percentage by which the initial sale price to the targeted household was less than the fair market value of the dwelling unit at the time of initial sale.

K. **Rental Housing Developments.** In the case of rental housing developments, the Regulatory Agreement shall provide for the following conditions governing the use of Target Units during the use restriction period:

1. The rules and procedures for qualifying tenants, establishing affordable rent rates, filling vacancies, and maintaining Target Units for qualified tenants.

2. Provisions requiring owners to verify tenant incomes and maintain books and records to demonstrate compliance with this article.

3. Provisions requiring owners to submit an annual report to the City, which includes the name, address, and income of each person occupying Target Units, and which identifies the bedroom size and monthly rent or cost of each Target Unit.

L. **Recordation of Agreement.** The agreement shall be recorded with the Fresno County Recorder's Office and shall run with the property. The agreement shall conform to the provisions of Government Code Sections 65864 to 65869.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2209. ENFORCEMENT.

A. The provisions of this article shall apply to all agents, successors, and assignees of an applicant for development of the site. No building permit or occupancy permit shall be issued, nor any development approval granted, which does not meet the requirements of this article.

B. In addition to, or in lieu of, the provisions of 15-2208-A the City shall institute injunction, mandamus, or any other appropriate legal actions or proceedings for the enforcement of this article.

C. Any person, firm, or corporation, whether as principal, agent, employee or otherwise, violating or causing the violation of any of the provisions of this article, shall be guilty of a misdemeanor, and upon conviction thereof shall be punishable for each offense by a fine of not more than $500.00, or by imprisonment in the County Jail for a term not exceeding six months, or by both fine and imprisonment. Such person, firm, or corporation shall be deemed to be guilty of a separate offense for each and every day during any portion of which any violation of this article is commenced, continued, or permitted by such person, firm, or corporation, and shall be punishable as provided herein.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2210. DEFINITIONS.

Whenever the following terms are used in this article, they shall have the meaning established by this section:

A. **Additional Incentive(s).** Regulatory concessions as specified in California Code Sections 65915(k) to include, but not be limited to, the reduction of site development standards or Zoning Ordinance requirements, approval of mixed-use zoning in conjunction with the housing project, or any other regulatory incentive which would result in identifiable cost reductions that are offered in addition to a density bonus.

B. **Affordable Housing.** Housing units that are affordable to families with very low, low, or moderate incomes.

C. **Affordable Housing Agreement A legally binding agreement between a developer and the City to ensure that the requirements of this section are satisfied.** The agreement establishes, among other things, the number of required inclusionary or affordable housing units, the unit sizes, location, affordability tenure, terms, and conditions of affordability and unit production schedule.

D. **Affordable Unit, For Rent.** A unit for which the total monthly rent plus utilities does not exceed the following:

   1. **Moderate Income Households.** 30 percent of 110 percent of the Fresno County median income.

   2. **Lower Income Households.** 30 percent of 60 percent of the Fresno County median income.

   3. **Very Low Income Households.** 30 percent of 50 percent of the Fresno County median income.

E. **Affordable Unit, For Sale.** A unit for which the total monthly payment including interest, taxes, insurance, and utilities does not exceed the following:

   1. **Moderate Income Households.** 35 percent of 110 percent of the Fresno County median income.

   2. **Lower Income Households.** 30 percent of 70 percent of the Fresno County median income.

3. **Very Low Income Households.** 30 percent of 50 percent of the Fresno County median income.

F. **Conversion.** The change of status of a dwelling unit from a purchased unit to a rental unit or vice versa.

G. **Density Bonus.** A minimum increase in the number of dwelling units authorized for a particular parcel of land over the otherwise maximum residential density.

H. **Density Bonus Dwelling Units.** Those residential units granted pursuant to the provisions of this article which are above the maximum allowable residential density of the project site.

I. **Financial Assistance.** Assistance to include, but not be limited to, the subsidization of fees, infrastructure, land costs, or construction costs, the use of redevelopment set-aside funds, community development block grant (CDBG) funds, or the provision of other direct financial aid in the form of cash transfer payments or other monetary compensation, by the City of Fresno.

J. **Housing Costs.** Defined in accordance with Section 50052.5 of the California Health and Safety Code and shall generally mean the monthly mortgage principal and interest, property taxes and assessments, homeowners insurance, homeowner association fees where applicable, an allowance for utilities and property maintenance and repairs, for ownership dwelling units; and the monthly rent, and allowance for utilities, fees, or service charges charged to all tenants, for rental dwelling units.

K. **Income Eligibility.** The gross annual household income, considering the household size and number of dependents, income of all wage earners, elderly or disabled family members and all other sources of household income. For self-employed households, net annual household income shall be used in determining income eligibility.

L. **In-Lieu Incentives.** Incentives offered by the City, which are of equivalent financial value based upon the land cost per dwelling unit(s), that are offered in-lieu of density bonus and additional incentives.

M. **Income.** Any monetary benefits that qualify as income in accordance with the criteria and procedures used by the City of Fresno.

N. **Income Levels.** For purposes of determining income levels of households under this article, the City shall use the Fresno County income limits in Title 25, Section 6932 of the California Code of Regulations or other income limits adopted by the City Council if the State Department of Housing and Community Development fails to provide timely updates of the income limits in the California Code of Regulations.

O. **Lower-Income Household.** Low-income household whose gross income does not exceed 80 percent of the area median income for Fresno County as determined annually by the U.S. Department of Housing and Urban Development.

P. **Major Transit Stop.** A site containing an existing rail transit station or the intersection of two or more major bus routes with a frequency of service interval of 15

minutes or less during the morning and afternoon peak commute periods. This definition shall additionally include all major transit stops designated in the applicable regional transportation plan. (California Public Resources Code § 21155 and § 21064.3).

Q. **Market-Rate Unit.** A dwelling unit where the rental rate or sales price is not restricted either by this article or by requirements imposed through other local, State, or federal affordable housing programs.

R. **Maximum Allowable Residential Density.** The maximum residential density allowed under this Ordinance and the General Plan, or if a range of density is permitted, the maximum allowable density for the specific zoning range and General Plan applicable to the project.

S. **Median Income.** The median income earned by a household or family, adjusted by size, as published by U.S. Department of Housing and Urban Development.

T. **Moderate-Income Household.** A household whose gross income is more than 80 percent but does not exceed 120 percent of the median income for Fresno County as determined annually by the U.S. Department of Housing and Urban Development.

U. **Offsets.** Concessions or assistance to include, but not be limited to, direct financial assistance, density increases, standards modifications or any other financial, land use, or regulatory concession which would result in an identifiable cost reduction enabling the provision of affordable housing.

V. **Operating Agent.** A nonprofit organization, for-profit corporation, County or City agency chosen by the City to carry out some or all of the administrative provisions of this article.

W. **Project.** A housing development at one location including all dwelling units for which permits have been applied for or approved within a 12 month period.

X. **Qualifying Resident.** Persons 62 years of age or older, or 55 years of age or older in a residential development developed, substantially rehabilitated, or substantially renovated for senior citizens that has at least 35 dwelling units, and as defined in Section 51.3 of the California Civil Code.

Y. **Senior Citizen Housing Development.** A residential development consisting of at least 35 dwelling units which is developed for, or substantially rehabilitated or renovated for persons 55 year of age or older.

Z. **Target Dwelling Unit.** A dwelling unit that will be offered for rent or sale exclusively to and which shall be affordable to the designated income group or qualified resident, as required by this article.

AA. **Very Low Income Household.** A household whose gross income does not exceed 50 percent of the area median income for Fresno County as determined annually by the U.S. Department of Housing and Urban Development.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 23 LANDSCAPE

Sec. 15-2301. Purpose.
Sec. 15-2302. State Codes.
Sec. 15-2303. Applicability.
Sec. 15-2304. Landscape Plans.
Sec. 15-2305. Areas To Be Landscaped.
Sec. 15-2306. Landscape Design Standards.
Sec. 15-2307. General Landscaping Standards.
Sec. 15-2308. Trees.
Sec. 15-2309. Irrigation Specifications.
Sec. 15-2310. Installation and Completion.
Sec. 15-2311. Maintenance.

SEC. 15-2301. PURPOSE.

The purpose of this article is to achieve the following:

A. Enhance the appearance and function of all development by providing standards relating to the quality, quantity, and design of landscaping;

B. Protect public health, safety, and welfare by minimizing the impact of all forms of physical and visual pollution, controlling soil erosion, screening incompatible land uses, preserving the integrity of existing residential neighborhoods, and enhancing pedestrian and vehicle traffic and safety;

C. Preserve, protect, manage, maintain, and enhance the city's community forest to promote scenic beauty, provide habitat, maintain and increase property values, counteract air pollutants, minimize heat island effect, provide shade, store carbon, decrease wind velocities, attract investment, promote active living, foster wellbeing, reduce soil erosion and ground water contamination;

D. Promote energy conservation in buildings by providing shade from the sun in summer, allowing the sun rays to shine through in winter and providing shelter from the cold wind in winter; and

E. Encourage water conservation through the use of native and water-wise, climate-appropriate plants, efficient design, and water-conserving irrigation design and practices.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2302. STATE CODES.

In addition to the provisions of this article, more requirements may apply to landscape plans at time of plan review submittal for building, landscaping and/or plumbing permits as stipulated in the California Green Building Standards Code (CalGreen), the California Model Water Efficient Landscape Ordinance (MWELO), and the California Plumbing Code

(CPC). Where there is potential conflict between CalGreen, MWELO, and the CPC as adopted and amended in Chapter 11 and this article, CalGreen, MWELO, and the CPC shall prevail.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2303. APPLICABILITY.

The standards of this article apply to the following:

A. New construction projects with landscapes;

B. Additions (other than to Single-Unit Dwellings or Duplexes) to an existing building that expands the existing floor area by either 20 percent or more or 2,500 square feet or more, whichever is less. The floor area increases to the existing building shall be cumulative from the date of adoption of this Code;

C. A new building with a floor area of 300 square feet or more on a developed site. The 300 square feet shall be cumulative from the date of adoption of this Code;

D. The demolition and reconstruction of a site;

E. A first time installed landscape or a re-landscaping project where the new or modified landscape area is equal to or greater than 500 square feet; or

F. Change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District); or,

G. **Exceptions.** The standards of this Section do not apply to landscaping that is part of a registered historic site, plant collections as part of botanical gardens and arboretums open to the public, or ecological restoration projects that do not require a permanent irrigation system, or mined-land reclamation projects that do not require a permanent irrigation system.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 25, eff. 1-18-19; Am. Ord. 2025-024, § 39, eff. 7-27-25).

SEC. 15-2304. LANDSCAPE PLANS.

A landscape plan shall be submitted with the permit application whenever landscaping per Section 15-2303 applies.

A. **Information Required.** Landscape plans shall be drawn to scale and shall, at a minimum, include the following:

1. Proposed plant locations, species, sizes, and plant factor. Plants with similar water needs shall be grouped together into hydrozones on the landscape plan. The plant factor according to the California Department of Water Resources study, Water Use Classification of Landscape Species (WUCOLS), shall be

identified for all landscaped areas on a site. All water features shall be identified as high water use and temporarily irrigated areas shall be identified as low water use.

2. Proposed landscape features (mounds, stepping stones, benches, sculptures, decorative stones, or other ornamental features) locations, dimensions, and materials.

3. Proposed water features (fountains, pools and ponds) and paved surfaces locations, dimensions, and materials.

4. Proposed landscape structures (sheds, trellises, arbors, gazebos, fire pits, fireplaces, built-in barbeques, decks, retaining walls, and seat walls) locations, dimensions, and materials.

5. Location of any existing trees over six inches in diameter, as measured 48 inches above natural grade, and whether each such tree is proposed for retention or removal.

6. Identification of areas of preservation or incorporation of existing native vegetation.

7. Identification of areas not intended for a specific use, including areas planned for future phases of a phased development, shown landscaped or left in a natural state.

8. Any additional proposed landscape elements and measures to facilitate plant growth or control erosion.

B. **Authorized to Design a Landscape.** Landscaping for commercial projects and institutional projects equal to or greater than one acre in size, industrial projects equal to or greater than 2.5 acres in size, and residential projects consisting of more than five units shall be prepared by a California registered landscape architect. For all other projects the various professionals, practitioners, and unlicensed persons may offer landscape design services within the scope and limitations that pertain to each as follows:

1. **Landscape Architect.** Must hold a professional license to practice landscape architecture. May perform professional services for the purpose of landscape preservation, development and enhancement, such as consultation, investigation, reconnaissance, research, planning, design, preparation of drawings, construction documents and specifications, and responsible construction observation (Business and Professions Code, Section 5615).

2. **Architect.** Must hold a professional license to practice architecture. May offer, perform, or be in responsible control of professional services which require the skills of an architect in the planning of sites (Business and Professions Code, Sections 5500.1 and 5641.3).

3. **Professional Engineers.** Must hold professional registration to practice engineering. May perform professional services as defined under Business and

Professions Code, Section 5615, as long as the work is incidental to an engineering project (Business and Professions Code, Sections 5615, 5641.3 and 6701 et seq.).

4. **Landscape Contractors.** Must hold a C-27 landscaping contractor's license. May design systems and facilities for work to be performed and supervised by that contractor (Business and Professions Code, Sections 5641.4 and 7027.5 and California Code of Regulations, Title 16, Division 8, Section 832.27).
5. **Nurserypersons.** Must hold a license to sell nursery stock. May prepare planting plans or drawings as an adjunct to merchandizing nursery stock and related products (Business and Professions Code, Section 5641.2 and Food and Agricultural Code, Section 6721 et seq.).
6. **Landscape/Garden Designers including Master Gardeners, etc.** May prepare plans, drawings, and specifications for the selection, placement, or use of plants for single-unit dwellings; may prepare drawings for the conceptual design and placement of tangible objects and landscape features; may not prepare construction documents, details, or specifications for tangible landscape objects or landscape features; and may not prepare grading and drainage plans for the alteration of sites.
7. **Personal Property Owners (Homeowner).** May prepare plans, drawings or specifications for any one- or two-unit dwelling property owned by that person.
8. **Golf Course Architect.** May engage in the practice of, or offer to practice as, a golf course architect. May perform professional services such as consultation, investigation, reconnaissance, research, design, preparation of drawings and specifications, and responsible supervision, where the dominant purpose of such service is the design of a golf course, in accordance with accepted professional standards of public health and safety.
9. **Irrigation Consultants.** May engage in the practice of, or offer to practice as, an irrigation consultant. May perform consultation, investigation, reconnaissance, research, design, preparation of drawings and specifications, and responsible supervision, where the dominant purpose of such service is the design of landscape irrigation, in accordance with accepted professional standards of public health and safety.

The applicable statutes which govern the above unlicensed categories are Business and Professions Code, Sections 5641, 5641.1, 5641.5 and 5641.6 (10-02, Amended, 02/02/2010). (Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 40, eff. 7-27-25).

SEC. 15-2305. AREAS TO BE LANDSCAPED.

The following areas shall be landscaped and may count toward the total area of site landscaping required by the zoning district regulations.

A. **Parking Areas.** Parking areas shall be landscaped in compliance with Article 24, Parking and Loading.

B. **Required Setbacks.**

1. **All Districts.** For permitted paved areas, refer to the underlying Base District.

2. **Residential Uses that are Single-Unit Dwellings, Duplexes, and Triplexes.** All required front and street-facing side yards, except for areas used for exit and entry shall be landscaped. If a solid fence is provided on a street side yard property line, the street side yard is not required to be landscaped.

3. **Residential Uses with Four or More Dwelling Units and Mixed-Use.** All required setbacks, except for areas used for exit and entry, shall be landscaped.

4. **Non-Residential Uses.** All required setbacks, except for areas used for exit and entry, shall be landscaped. If an Industrial District abuts another Industrial District, side and rear yards are not required to be landscaped. However should an Industrial District abut any other district or a street, it shall be landscaped. Where adjacent to residential, non-residential uses may require a larger setback under Residential Transition Standards and landscaping shall be provided as prescribed in Table 15-2305-C.1.

C. **Lot Perimeters.** Landscape buffers shall be installed and maintained alongside and rear lot lines between differing land uses, in accordance with the sections of this article and the following standards:

1. **Required Landscape Buffers.** Table 15-2305-C-1, Required Landscape Buffers, shows when a buffer treatment is required, and of what type, based on the proposed use and the adjoining district. Only the proposed use is required to provide the buffer yard. The type of buffer yard required refers to buffer yard-type designations (Type 1 or Type 2) as shown in Table 15-2305-C-2, Buffer Yard Requirements. A dashed line, "-", means that a buffer yard is not necessary unless required by another section of this Code.

TABLE 15-2305-C-1: REQUIRED LANDSCAPE BUFFERS

Proposed Use	*Adjoining District*						
	Park or Open Space	*Single-Unit Residential*	*Multi-Unit Residential*	*Mixed-Use*	*Commercial, Office, and Business Park*	*Industrial*	*Public Facility*
Park or Open Space	-	Type 1	Type 1	Type 1	-	-	-
Multi-Unit Residential	Type 1	Type 1	-	-	-	-	-
Mixed-Use	Type 2	Type 2	Type 2	-	-	-	-
Commercial, Office and Business Park	Type 2	Type 2	Type 2	-	-	Type 1	Type 1
Industrial	Type 2	Type 2	Type 2	Type 2	Type 2	-	Type 2
Public Facility	Type 2	Type 2	Type 2	Type 2	Type 2	Type 1	-
Other Non-Residential Uses	Type 1	Type 1	Type 1	-	-	-	Type 1

2. **Buffer Yard Types.** Table 15-2305-C-2, Buffer Yard Requirements, describes the minimum width and plant materials, and wall requirements for each type of buffer yard. The listed number of trees and shrubs are required for each 100 linear feet of buffer yard. Natural areas with native vegetation or alternative planting materials which achieve equivalent buffering effects may be approved by the Review Authority. For wall requirements, refer to Section 15-2008, Screening Between Differing Land Uses.

TABLE 15-2305-C-2: BUFFER YARD REQUIREMENTS

Buffer Yard Type	*Minimum Width (feet)*	*Trees*		*Shrubs*	
		Large	*Small to Medium*	*Large*	*Small to Medium*
Type 1	10	2	2	6	8
Type 2	15	2	3	8	10

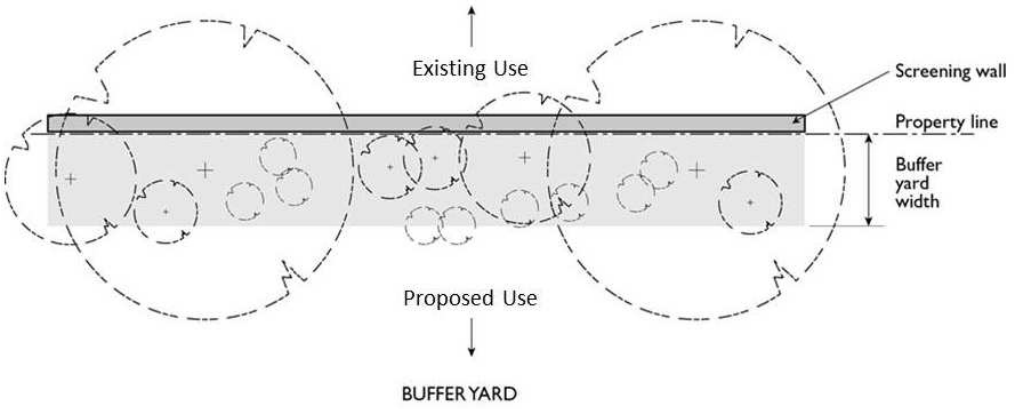


FIGURE 15-2305-C-2: BUFFER YARD REQUIREMENTS

3. **Patio Allowance.** An employee or dining patio is allowed within the buffer yard for up to 50 percent of the depth of the required buffer yard.

D. **Landscape Setback.** All areas between site perimeter walls/fencing and lot lines facing a street shall be landscaped. Landscaping shall be installed and maintained in accordance with the sections of this article and the following standards:

1. Planting areas more than 10 feet in width shall be planted with medium and large trees and medium and large shrubs to span the entire length.

2. Planting areas 10 feet or less in width shall at the very least be planted with small trees and small to medium size shrubs to span the entire length.

3. Vines may be included for areas adjacent to concrete or masonry walls.

4. The landscape design shall provide total wall/fence screening from top to bottom for the entire length within five years.

5. Trees shall be planted so the canopies could touch for the entire length within fifteen years.

E. **Building Perimeters.**

1. All portions of a building that face a public street shall have one or more landscape planters installed along a minimum of 20 percent of that building face. This standard does not apply where a building is located within three feet of a public sidewalk, in which case the building perimeter shall be paved and treated in a manner similar to the adjacent sidewalk.
2. The minimum width of the planter shall be three feet. Planters may be raised or at grade and may include potted plants.

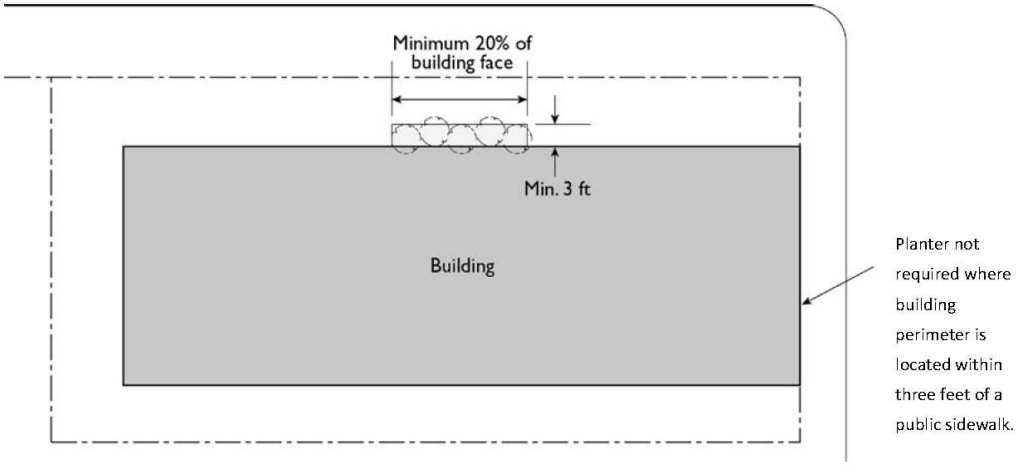


FIGURE 15-2305-E: BUILDING PERIMETERS

F. **Unused Areas.** All areas of a project site not intended for a specific use, including areas planned for future phases of a phased development, shall be maintained clear and free of refuse, debris, or other accumulated matter.

G. **Public Property.** Refer to Chapter 13, Article 3, Street Trees and Parkways for street tree, parkway (park strip), and median island requirements in public property.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 21, eff. 10-21-16; Am. Ord. 2017-33, § 17, eff. 7-30-17; Am. Ord. 2018-66, § 26, eff. 1-18-19; Am. Ord. 2025-024, §§ 41, 42, eff. 7-27-25).

SEC. 15-2306. LANDSCAPE DESIGN STANDARDS.

The following design standards are to be used by decision-makers in evaluating whether landscape plans conform to the requirements of this Section:

A. **Composition.** The quality of a landscape design is dependent not only on the quantity and selection of plant materials but also on how that material is arranged. Landscape materials must be arranged in a manner as to provide the following qualities and characteristics:

1. **Texture.** Landscape designs must provide a textured appearance through the use of a variety of plant material rather than a single species, by contrasting

large leaf textures with medium and small leaf textures, and with a variety of plant heights. Spacing of key landscaping components, such as trees and shrubs, shall be consistent with the overall design approach of the landscape plan. Formal landscape designs benefit from a uniform spacing of plants, whereas varied spacing and clustering of trees is more compatible with a naturalistic design.

2. **Color.** Landscape designs shall include a variety of plants to provide contrasting color to other plants in the design. Designs are encouraged to include flowering plants and especially a mix of plants that display colorful flowers throughout the year.

3. **Form.** Landscape designs will consider the complete three-dimensional form of the landscaping, not simply the form of individual elements. The interrelationship of all landscape elements shall be considered so that the final design presents a coherent whole.

B. **Buffering and Screening.** Natural landscape materials (trees, shrubs, and hedges) must be used alone or with walls and/or berms to screen or buffer differing land uses, prevent graffiti, provide transition between adjacent lots, and screen the view of parking, storage, service areas, refuse collection facilities and enclosures, utility enclosures, drive-throughs, utility pipes and boxes visible from a public street, alley, or pedestrian space or walkway. Plant material must be mature enough at the time of planting and appropriately located to provide an effective buffer or screen within five years of planting.

C. **Water-Wise Landscaping.** Landscape designs shall feature plant species such as drought-tolerant and climate adaptive plants that thrive in the San Joaquin Valley region to take advantage of the adaptability of regionally appropriate plants to local environmental conditions and to conserve energy and water.

D. **Continuity and Connection.** Landscaping must be designed within the context of the surrounding area, provided that the adjacent landscaping is consistent with the landscape design standards of this section. Where the adjacent property landscaping meets the landscape design standards of this section, plant materials shall blend well with adjacent properties, particularly where property edges meet, to create a seamless and natural landscape. Exceptions can be made when seeking to create a transition between uses or zoning districts.

1. **Buffers for Natural Areas.** When located adjacent to an area of high ecological value, the proposed development shall incorporate natural features that will provide continuity and connection to the natural area and serve as an appropriate buffer space.

E. **Enhancing Architecture.** Landscape designs shall be compatible with the architectural character and features of the buildings on site. Major landscape elements must be designed to complement exterior elevations and roof lines of the buildings through texture, color, and form.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2307. GENERAL LANDSCAPING STANDARDS.

A. **Materials.**

1. **General.**

   a. Landscaping may consist of a combination of turf, groundcovers, shrubs, vines, trees, incidental features such as stepping stones, benches, fountains, sculptures, decorative stones, and other ornamental features placed within a landscaped setting.

   b. Plant materials shall be selected from among those species and varieties known to thrive in the Fresno climate.

   c. Paved (e.g., concrete, stone and masonry) surfaces, gravel (e.g., decomposed granite) surfaces, and rocks may not exceed 35 percent of the area required to be landscaped.

   d. Recirculating water shall be used for decorative water features.

   e. Areas dedicated to edible plants are considered landscaped areas and count toward required landscaping.

2. **Non-Plant Materials.** Non-plant materials such cinder, bark, and similar materials may not be used to meet the minimum planting area required by this section.

3. **Synthetic Lawns.** Synthetic lawns may be considered as turf, and shall cover no more than 75 percent of the required landscape area.

4. **Mulch.** A minimum three-inch layer of mulch shall be applied on all exposed soil surfaces of planting areas except in turf areas, creeping or rooting ground covers or other special planting situations where mulch is not recommended. Stabilizing mulching products shall be used on slopes. Mulch must be confined to areas underneath shrubs and trees and is not a substitute for ground cover plants.

5. **Size and Spacing.** Plant materials shall be grouped in hydrozones in accordance with their respective water, cultural (soil, climate, sun, and light), and maintenance needs. Plants shall be of the following size and spacing at the time of installation:

   a. **Ground Covers.** Ground cover plants must be at least of a four-inch pot size and spaced to provide full coverage within the time frame specified for the species planted.

   b. **Shrubs.** Spacing of shrubs shall be according to local conditions; the species, cultivars, or varieties used; and their mature height, spread, and form. When planted to serve as a hedge or screen, shrubs shall be spaced at 75 percent of their mature length.

      i. **Small Shrub.** A small shrub shall have a mature height of three to less than five feet and shall be planted at minimum from one-gallon containers.

ii. **Medium Shrub.** A medium shrub shall have a mature height of between five and eight feet and shall be planted at minimum from five-gallon containers.

iii. **Large Shrub.** A large shrub shall have a mature height of greater than eight feet and shall be planted at minimum from five-gallon containers.

c. **Trees.** All trees shall be a minimum of 15 gallons in size. Spacing of trees shall be according to local conditions; the species, cultivars, or varieties used; and their mature height, spread, and form. Newly planted trees shall be supported with stakes or guy wires.

i. **Small Tree.** A small tree shall have a mature height of less than 25 feet and be at least one inch in diameter at six inches above ground level. Small trees, generally, shall be planted 25 feet apart.

ii. **Medium Tree.** A medium tree shall have a mature height of between 25 and 45 feet and be at least 1¼ inch in diameter at six inches above ground level. Medium trees, generally, shall be planted 35 feet apart.

iii. **Large Tree.** A large tree shall have a mature height of greater than 45 feet and be at least 1½ inch in diameter at six inches above ground level. Large trees, generally, shall be planted 45 feet apart.

6. **Landscaping Mound.** Landscaping mounds shall be constructed on slopes not to exceed 4:1. The toe of the mound shall be set back from buildings and property boundaries as far as necessary for safety of the adjacent properties and to prevent damage resulting from water runoff or erosion of the slope. In no case shall the toe of the mound be within five feet of any building or one foot of the street right-of-way.

B. **Dimension of Landscaped Areas.** Landscaped areas shall have a minimum horizontal dimension of four and one-half feet to count towards required landscaping.

C. **Prescribed Heights.** The prescribed heights of landscaping shall indicate the height to be attained within fifteen years after planting.

D. **Drivers' Visibility.** Trees and shrubs shall be planted and maintained so that at maturity they do not interfere with traffic safety sight areas, or public safety. Notwithstanding other provisions of this section, landscaping must comply with Section 15-2018, Intersection Visibility and Chapter 13, Article 2, Sections 13-227, Obstruction to Visibility at Intersections and 13-228, Intersection Visibility, Investigation, and Enforcement.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2308. TREES.

A. **Trees.** Trees shall be provided as follows:

1. **Residential Single-Unit Districts.** A minimum of two trees per lot and if part of a Planned Development then trees may be provided in common areas in addition to the two provided on each residential lot.

a. One of the required trees must be oriented to the street.

b. One of the required trees must be a passive solar-oriented tree (Deciduous) or a wind buffer-oriented tree (Evergreen).

2. **Multi-Unit Residential and Mixed-Use Districts.** A minimum of one tree per unit.

3. **Commercial, Office, Business Park, and Regional Business Park Districts.** A minimum of one tree for every 2,000 square feet of lot coverage.

4. **Industrial Districts.** A minimum of one tree for every 10,000 square feet of lot coverage (Trees required in other sections of this code, such as parking lot trees or street trees, shall count toward the satisfaction of this requirement).

5. **Planned Development Districts.** For requirements in single-unit residential development see Residential Single-Unit Districts, for multi-unit and mixed-use development see Residential Multi-Unit and Mixed-Use Districts, and for commercial and employment development see Commercial and Employment Districts above.

6. Trees planted near public curbs or sidewalks shall be installed in a manner that minimizes physical damage to the curbs, gutters, sidewalks, and other public improvements.

B. **Heritage Tree Designations.**

1. **Applications.** Applications for designation of a heritage tree on private or public property may be initiated by any person subject to the property owners' written consent. The applicant requesting heritage tree designation shall submit an application in compliance with instructions provided by the Director and shall include the following:

   a. Assessor's parcel number of the site;

   b. Description detailing the proposed heritage tree's special aesthetic, cultural, or historic value of community interest; and

   c. Photographs of the tree(s).

2. **Review.** The Director shall conduct a review of the proposed heritage tree, based upon information or documentation they may require from the applicant, staff, or other available sources. A tree may be designated as a heritage tree upon a finding that it is unique and important to the community due to any of the following factors:

   a. It is an outstanding specimen of a desirable species;

   b. It is one of significant age and/or girth in the city; or

   c. It has agricultural, cultural, economic, educational, historical, indigenous, or social heritage significance in the city.

3. **Hearing.** The Planning Commission shall hold a public hearing on any proposed designation within 30 days after the application is deemed complete and shall render a decision to approve, deny, or continue the hearing for more information.

4. **Posting and Notice.** Hearings for heritage tree designation shall be subject to public hearing notice procedures specified in Section 15-5007, Public Notice. In addition, the Department shall post to the site or tree under consideration at least ten calendar days before the hearing date with a sign identifying the nature of the application and the date, time, and place of the hearing.

5. **Recordation of Heritage Tree Designation.** If the heritage tree designation is approved, the City shall record the designation with the County Recorder's Office and a copy shall be provided to the property owner and the DARM Department. A listing of designated heritage trees and their locations shall be listed on the historic resources inventory and maintained by the Department.

C. **Protected Trees.** The following apply to Protected Trees:

1. No Protected Tree shall be removed, pruned, or otherwise materially altered without a Tree Removal Permit except as provided in this section. Trimming of a Protected Tree is allowed without such a permit.

2. Protected Trees are as follows:

   a. Heritage Trees.

   b. Multi-Trunk Trees. Any multi-trunk tree which has at least one trunk 12 inches or greater in diameter or 38 inches or greater in circumference, measured four feet above the adjacent grade, except for developed single-unit residential properties.

   c. Any Tree 12 Inches or Greater in Diameter. Any tree which measures 12 inches or greater in diameter or 38 inches or greater in circumference, measured four feet above the adjacent grade, except for developed single-unit residential properties.

   d. Parkway Trees and Any Trees Located on Public Property.

   e. **Condition of Approval.** Any tree required to be planted or retained as a condition of approval of a development application or a Building Permit.

   f. **Trees Required by a Development Permit.** Trees required or memorialized under a Development Permit.

3. The following trees may be removed without approval of a Tree Removal Permit:

   a. **Emergencies.** Trees may pose an immediate threat to persons or property during an emergency or are determined to constitute an emergency upon order of the Director, the Public Utilities Director, the Public Works Director, or any member of the Police or Fire Departments.

   b. **Public Nuisance.** Any tree in a condition to constitute a public nuisance as determined the Building Official, the Director, the Fire Chief, the Public Utilities Director, or the Public Works Director.

c. **Public Utilities.** Trees that undermine or impact the safe operation of public utilities.

d. **Fruit Trees.** Any fruit tree.

e. **Eucalyptus Trees.** All trees of the genus Myrtaceae.

f. **Developed Single-Unit Residential.** Any tree located on developed single-unit residential property, except as specified in Subsection 15-2308-C.2.

4. Chemicals or other construction materials shall not be stored within the drip line of Protected Trees.

5. Signs, wires, or similar devices shall not be attached to Protected Trees.

6. If the proposed development, including any site work for the development, will encroach upon the drip line of a Protected Tree, then the following apply:

a. Special measures shall be utilized as approved by the review authority, to allow the roots to obtain oxygen, water, and nutrients as needed.

b. Any excavation cutting, filling, or compaction of the existing ground surface within the protected perimeter, if authorized at all by the review authority, shall be minimized and subject to such conditions as may be imposed by the review authority.

c. No significant change in existing ground level shall be made within the drip line of a Protected Tree.

d. No burning or use of equipment with an open flame shall occur near or within the protected perimeter.

7. Underground trenching for utilities shall avoid major support and absorbing tree roots of Protected Trees. If avoidance is impractical, tunnels shall be made below the roots. Trenches shall be consolidated to service as many utilities as possible. Trenching within the drip line of Protected Trees shall be avoided to the greatest extent possible and shall only be done under the at-site directions of a certified arborist.

8. No concrete or asphalt paving shall be placed over the root zones of oaks.

9. No compaction of the soil within the root zone of Protected Trees shall occur.

10. All trees, protected or otherwise, to be removed shall include the removal of the stump or be cut to at least six inches below the ground, and soil shall be replaced and the area leveled. If the area where the tree is removed is to be paved, the tree shall be cut or stump removed to at least eight inches below the ground.

D. **Tree Removal Permit/Application Requirements.**

1. **Application Information.**

a. Applications for a tree removal permit shall be available from and filed with the DARM Department and shall contain the following:

i. A written explanation of why the tree(s) should be removed;

ii. A tree survey plan indicating the number, location(s), variety or species, and size(s) (measured four feet above grade) of the tree(s) to be removed is required for all properties except developed single-unit residential;

iii. Photograph(s) of the tree(s);

iv. Arborist report;

v. Signature of the property owner and homeowners association (when applicable) and proof of a vote of the homeowners association;

vi. Replanting plan (see Table 15-2308-E-4, Replacement Trees);

vii. Other information deemed necessary by the Director to evaluate the tree removal request; and

viii. Permit fee, if applicable.

b. The Director may modify or waive the requirements of this section if deemed appropriate (e.g., arborist reports for properties in RS Districts).

E. **Determination on Permit Application.**

1. **General Criteria.** The review authority shall issue a Tree Removal Permit if any of the following general criteria is met:

a. **Diseased or Danger of Falling.** The tree(s) is irreparably diseased or presents a danger of falling that cannot be controlled or remedied through reasonable preservation and/or preventative procedures and practices so that the public health or safety requires its removal.

b. **Potential Damage.** The tree(s) can potentially cause substantial damage to existing or proposed main structure(s) (e.g., dwellings, other main structures, or public infrastructure) or interfere with utility services and cannot be controlled or remedied through reasonable relocation or modification of the structure or utility services.

c. **Economic Enjoyment and Hardship.** The retention of the tree(s) restricts the economic enjoyment of the property or creates an unusual hardship for the property owner by severely limiting the use of the property in a manner not typically experienced by owners of similarly zoned and situated properties, and the applicant has demonstrated to the satisfaction of the Review Authority that there are no reasonable alternatives to preserve the tree(s). A minor reduction of the potential number of residential units or structural size due to tree location does not represent a severe limit of the economic enjoyment of the property.

2. **Additional Recommendations.** The applicable review authority may refer the application to another department or the Planning Commission for a report and recommendation.

3. **Inspections and Permit Availability.** City staff shall have the authority to conduct on-site inspections of all trees proposed for removal. If a tree removal permit is approved, the permit shall be on site at all times before and during the removal of a tree and/or shall be made available to any City official at the site, upon request.

4. **Action.** Based on the criteria identified in this section, the Review Authority shall approve, conditionally approve, or deny the application. Conditions of approval may include any of the following:

   a. Revisions to development plans to accommodate existing trees;

   b. Payment of an in-lieu fee.

      i. Payment of a fee shall be based on the fair market value of the number of trees required by Table 15-2308-E-4 for the same or equivalent species, delivered and installed, as determined by the Director.

      ii. The fees will be used to purchase trees that will be planted within the public right-of-way or on other public property as directed by the Public Works Department. Where feasible, trees will be planted in the vicinity in which the tree(s) was removed.

      iii. Payment of the in-lieu fee shall be made before the issuance of the Tree Removal Permit.

   c. Replacement trees of a species and size planted at locations designated by the Review Authority in compliance with Table 15-2308-E-4; or

   d. A combination of replacement trees and in-lieu fees that in total provide for the number of replacement trees required by this article.

TABLE 15-2308-E-4: REPLACEMENT TREE REQUIREMENTS

Trunk Size of Removed Tree (measured at 4 feet above grade)		*Replacement Ratio Required (per tree removed)*	
Diameter (in inches)	*Circumference (in inches)*	*Number of replacement trees required*	*Minimum size of replacement trees*
12 to 24	30 to 75	2	24 inch box
Greater than 24	Greater than 75	3	36 inch box
Heritage Trees		4	48 inch box

5. **Expiration.** If no action on an approved tree removal permit is taken within a period of one year from the date of approval, the permit shall be considered void.

F. **Review Authority and Permit Process.**

1. **Tree Removal Requests Filed Independent of Development Applications.**

   a. **Director's Review.** The Director shall be the Review Authority for tree removal requests, except for heritage trees, filed independent of a development application. The Director shall render a decision within ten business days from the date a tree removal application is filed and deemed complete. The Director

may refer any application to another department, committee, board, or commission of the City for a report and recommendation, and may require the applicant to provide an arborist's report.

b. **Posting and Notice.** The decision of the Director shall be mailed to the applicant and to all owners of record located within a three-hundred-foot radius of the subject property on the same day the decision is made. In addition, the site or tree shall be posted with a sign by the Department for at least ten calendar days indicating the decision of the Director, and specifying the appeal period and the method of appeal.

2. **Tree Removal Requests Filed with a Development Application.**

a. **Review Authority.** The Review Authority for tree removal requests filed in conjunction with a development application shall be the same review authority as established for the accompanying development application.

b. **Public Hearing.** If a public hearing is normally required by this Development Code, the tree removal request shall be considered concurrently, in compliance with Section 15-5007, Public Notice.

c. **Posting.** The DARM Department shall also post to the site or tree under consideration a sign indicating the proposed removal and the date, time, and place of the hearing at least ten calendar days before the hearing date.

3. **Heritage Tree Removal Requests.** Notwithstanding any other provision of this section, the following provisions shall apply to requests for the removal of heritage trees.

a. **Requests Filed Independent of Development Applications.** The Planning Commission shall be the Review Authority for all tree removal requests for heritage trees filed independent of a development application.

b. **Requests Filed in Conjunction with a Development Application.** The Review Authority for heritage tree removal requests filed in conjunction with a development application shall be the same review authority as established for the accompanying development application. Before the hearing by the Review Authority, requests to remove heritage trees filed in conjunction with a development application shall be referred to the Protected Tree Advisory Committee who shall make a recommendation to the review authority.

c. **Public Hearing.** A public hearing by the review authority shall be required for all heritage tree removal requests in compliance with Section 15-5007, Public Notice.

d. **Posting.** The Department shall post to the site or tree under consideration a sign indicating the proposed removal and the date, time, and place of the hearing at least ten calendar days before the hearing date.

4. **Final Decision/Timing of Tree Removal.** No tree for which a Tree Removal Permit is required shall be removed until all conditions of the permit have been

satisfied and the decision has become final. In addition, tree(s) approved for removal in conjunction with a development application shall not be removed before the issuance of a Building Permit or unless all of the conditions of approval of the development application are satisfied.

5. **Concurrent Filing.** All tree removal requests associated with a development application shall be filed concurrently.

G. **Appeals.**

1. **Appeals.** Any person aggrieved by a decision of the Review Authority as specified in Section 15-2308-B through F may appeal the decision in compliance with Section 15-5017, Appeals.

2. **Decisions on Appeals.** No decision made in compliance with Section 15-2308-B through F shall be final until all appeal rights have expired. All appeal hearings shall be public hearings subject to Section 15-5017, Appeals.

3. **Posting and Notice.** In addition to the public hearing procedures specified in Section 15-5007, Public Notice, the site or tree under consideration shall also be posted with a sign at least ten calendar days before the hearing date of the appeal. The sign shall state the nature of the appeal under consideration by the appeal body, and the date, time, and place of the hearing.

TABLE 15-2308-G: TREE TYPE AND PERMIT PROCESS SUMMARY

Type of Tree Removal Request	*Protected Tree Types*	*Size Tree Protected*[1]	*Review Authority for Removal Permit*	*Appeal Process*[2]
Tree removal requests on all properties (except RS Districts[3]) not in conjunction with a development application	Any tree except fruit trees[4] and trees of the genus Myrtaceae[5]	None Specified	Director	Planning Commission and then Council
Tree removal requests in RS Districts not in conjunction with a development application	Trees of the species: Quercus (oaks) Cedrus (cedars) Fraxinus (ash) Sequoia (redwoods)	12 inch diameter or 38 inch circumference	Director	Planning Commission and then Council
Tree removal requests on all properties in conjunction with a development application	Any tree except fruit trees and trees of the genus Myrtaceae[5]	12 inch diameter or 38 inch circumference	Director	Planning Commission and then Council
Heritage Tree removal requests in all zoning districts (not in conjunction with a development application)[6]	Any Heritage Tree	None Specified	Planning Commission	Council
Heritage Tree removal requests in all zoning districts (in conjunction with a development application)[6]	Any Heritage Tree	None Specified	Planning Commission or Council, as applicable to the permit application	Council

TABLE 15-2308-G: TREE TYPE AND PERMIT PROCESS SUMMARY				
Type of Tree Removal Request	*Protected Tree Types*	*Size Tree Protected*[1]	*Review Authority for Removal Permit*	*Appeal Process*[2]
Trees required as a condition of a development approval	Any tree required to be retained or planted	None Required	Director	Planning Commission and then Council
Trees within the City public right-of-way and parkway strip	Any tree required to be retained or planted	None Required	Director	Planning Commission and then Council

Notes:

1. Minimum size and greater—measured four feet above grade adjacent to trunk.
2. Appeals shall be filed in writing with the City Clerk within 10 days from the decision of the permit.
3. Developed single-unit residential property in RS Districts or Planned Development.
4. Fruit trees, defined as any tree that has the characteristics of being edible fruit, common to commercial production varieties including stone fruits (e.g., prunes, peaches etc.), citrus (e.g., lemons, oranges), nut varieties (e.g., almonds), English walnut (except for California Black Walnut), Peppers (Schinus), and Olives (Oleaceae), etc. A "fruit tree" shall mean any tree that bears a fruit or nut not produced primarily as seed (e.g., oaks, pines, etc.).
5. Any variety of eucalyptus tree.
6. Includes any development application that requires Planning Commission or Council Approval, except development applications not involving addition of new single-unit dwellings in RS Districts or Planned Development Single-Unit developments (e.g., fence exception or Conditional Use Permit).

H. **Delegation of Functions.** The Director may delegate any or all of the administrative duties authorized by this section to one or more Department or City staff members.

I. **Violation.** In addition to the provisions of Article 63, Enforcement, any person who removes or causes to be removed any Protected Tree in violation of this article shall be required to:

1. Apply for and obtain a Tree Removal Permit and pay a double application fee.
2. Be responsible for property restoration which shall include:
   a. Replacing the tree(s) removed with tree(s) of reasonably equivalent value and largest size feasible to the tree(s) removed per Table 15-2308-E-4;
   b. The number, size, and location of replacement trees shall be determined by the Director after receipt of a report and recommendation by a licensed arborist;
   c. Paying the fees of the licensed arborist, including any fees for the valuation under Subsection 15-2308-E.4.
3. Pay a civil penalty to the City, with the funds placed in the City's tree planting fund, in the amount of $2,500 or the actual monetary value of the tree(s), as determined by

a licensed arborist, whichever is less. The arborist shall use the then-current issue of the "Guide for Plant Appraisal" published by the International Society of Arboriculture. Said funds from the tree planting fund shall be allocated for the planting of new trees or shall be directed to a non-profit organization that specializes in the preservation and/or planting of trees in the city.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 43, eff. 7-27-25).

SEC. 15-2309. IRRIGATION SPECIFICATIONS.

A. **General.** New landscaping shall have an automatic irrigation system designed to provide adequate and efficient coverage of all plant material.

B. **Systems.** Irrigation systems shall comply with the requirements of the California Green Building Standards Code and/or the California Model Water Efficient Landscape Ordinance and/or the California Plumbing Code as may be amended.

C. **Plans.** No plans are required to be submitted as part of this article, but may be required otherwise elsewhere in the Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2310. INSTALLATION AND COMPLETION.

A. **Consistency with Approved Plans.** All landscaping shall be installed consistent with approved plans and specifications, in a manner designed to encourage and maintain healthy plant growth.

B. **Timing of Installation.** Required landscaping shall be installed prior to the issuance of a Certificate of Occupancy for the project.

C. **Exception: Assurance of Landscaping Completion.** The Director may permit the required landscaping to be installed within 120 days after the issuance of a Certificate of Occupancy in special circumstances related to weather conditions or plant availability. A surety in the amount equal to 150 percent of the estimated cost of landscaping, including materials and labor, as well as an agreement that the required landscaping will be installed within 120 days, must be filed with the City to assure completion of landscaping installation within such time. The surety may take the form of cash deposit, irrevocable letter of credit or bond; and together with the agreement, would provide for payment to the City of any costs incurred in contracting for completion of the required landscaping.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2311. MAINTENANCE.

A. **General.** All planting and other landscape elements required by this article shall be permanently maintained in good growing condition. Such maintenance shall include, where appropriate, pruning, mowing, weeding, cleaning, fertilizing, and regular watering. Once planted, healthy, thriving trees and shrubs may not be removed without replacement by

similar or better plantings providing a similar impact or function on the site. Plantings which show signs of damage or injury shall be replaced with other plant materials to insure continued compliance with applicable landscaping requirements.

1. **Non-Single-Unit Districts.** Trees may not be trimmed or pruned to reduce the natural height and crown.

B. **Unoccupied.** All landscaping shall be provided and maintained prior to occupancy of the main building or open use other than agriculture.

C. **Public Safety.** Property owners and occupants of lots fronting on any portion of a street shall maintain private trees and landscaping in such condition that the trees or landscaping will not interfere with the public safety and convenience in the use of streets or sidewalks. Such owners and occupants shall maintain such trees so that there is an eight-foot pedestrian clearance from the top of the sidewalk or pathway, and a thirteen-foot vehicular clearance from the top of the curb or the top of the pavement. Street trees and parkways shall be protected and preserved according to Chapter 13, Article 3, Section 305, Tree Preservation.

D. **Retention Basins.** Retention basins shall be maintained free of debris and trash, and all planting shall be maintained in good growing condition. Such maintenance shall include, where appropriate, pruning, mowing, weeding, cleaning, fertilizing, and regular watering. (Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 44, eff. 7-27-25).

ARTICLE 24 PARKING AND LOADING

Sec. 15-2401. Purpose.
Sec. 15-2402. Applicability.
Sec. 15-2403. General Provisions.
Sec. 15-2404. Buffer District.
Sec. 15-2405. Recreational Vehicles, Boats, Trailers, and Portable Storage.
Sec. 15-2406. Inoperable Vehicles.
Sec. 15-2407. Required Parking for Downtown Districts.
Sec. 15-2408. Required Parking for Mixed-Use Districts and CMS District.
Sec. 15-2409. Required Parking, Other Districts.
Sec. 15-2410. Reserved.
Sec. 15-2411. Calculation of Required Spaces.
Sec. 15-2412. Parking Exceptions.
Sec. 15-2413. Parking Reductions.
Sec. 15-2414. Location of Required Parking.
Sec. 15-2415. Parking Availability.
Sec. 15-2416. Parking Area Development Standards.
Sec. 15-2417. Driveways.
Sec. 15-2418. Parking Access.
Sec. 15-2419. Parking Lot Surface Standards.
Sec. 15-2420. Parking Area Lighting.
Sec. 15-2421. Parking Lot Landscaping and Shading.
Sec. 15-2422. Reserved.
Sec. 15-2423. Circulation and Safety.
Sec. 15-2424. Reserved.
Sec. 15-2425. Parking Garages.
Sec. 15-2426. Alternative Parking Area Designs.
Sec. 15-2427. Parking In-Lieu Fee.
Sec. 15-2428. Shopping Cart Collection Areas.
Sec. 15-2429. Bicycle Parking.
Sec. 15-2430. On-Site Loading.

SEC. 15-2401. PURPOSE.

The specific purposes of the parking and loading regulations are to:

A. Minimize design impacts that can result from parking lots, driveways, and drive aisles within parking lots;

B. Offer flexible means of minimizing the amount of area devoted to vehicle parking by allowing reductions in the number of required spaces in transit-served locations, shared parking facilities, and other situations expected to have lower vehicle parking demand;

C. Require that parking areas are designed to reduce potential environmental impacts, including minimizing stormwater runoff and the heat island effect;

D. Ensure that parking is provided for new land uses and alterations to existing uses, to avoid the negative impacts associated with spillover parking into adjacent neighborhoods;

E. Ensure that adequate off-street bicycle parking facilities are provided and promote parking lot designs that offer safe and attractive pedestrian routes;

F. Establish standards and regulations of any specific use occurring outdoors or within an existing, newly constructed, or relocated building to provide well-designed, on-site parking areas; and,

G. Provide loading and delivery facilities in proportion to the needs of allowed uses.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2402. APPLICABILITY.

The requirements of this article apply to the establishment, alteration, expansion, or change in any use or structure, as provided in this section.

A. **New Buildings and Land Uses.** Parking shall be provided according to the provisions of this article.

B. **Building Expansions.** Should a building be expanded, parking shall be provided according to the provisions of this article.

C. **Use Expansions.** Should a use expand without necessarily expanding a building, such as an auto dealership, parking shall be provided according to the provisions of this article.

D. **Change in Use.**

1. When a change in use from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District) creates an increase of 10 percent or more in the number of required on-site parking or loading spaces, on-site parking and loading shall be provided according to the provisions of this article. The number of existing stalls shall be maintained, and additional stalls shall be required only for such addition, enlargement, or change in use. The change in use that creates an increase of 10 percent or more shall be cumulative from the date of adoption of this Code.

2. If the number of existing parking spaces is greater than the requirements for such use, the number of spaces in excess of the prescribed minimum may be counted toward meeting the parking requirements for the addition, enlargement, or change in use.

E. **Reconstruction of Non-Residential Buildings.** Should a building be damaged and/or demolished due to an Act of Nature, a building may be reconstructed and may provide the same number of stalls provided that there is no increase in building floor area.

F. **Alterations that Increase the Number of Dwelling Units.** The creation of additional dwelling units through the alteration of an existing building or construction of an additional structure or structures requires the provision of on-site parking

to serve the new dwelling units. If the number of existing parking spaces is greater than the requirements for the existing units, the number of spaces in excess of the prescribed minimum may be counted toward meeting the parking requirements for the new dwelling units.

G. **Non-Conforming Parking or Loading.** An existing use of land or structure shall not be deemed to be non-conforming solely because of a lack of on-site parking and/or loading facilities required by this article, provided that facilities used for on-site parking and/or loading as of the date of adoption of this Code are not reduced in number to less than what this article requires.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 27, eff. 1-18-19).

SEC. 15-2403. GENERAL PROVISIONS.

A. **Timing of Parking Requirements.** On-site parking facilities required by this article shall be constructed or installed prior to the issuance of a Certificate of Occupancy for the uses that they serve.

B. **Existing Parking and Loading to be Maintained.** No existing parking or loading serving any use may be reduced in amount or changed in design, location, or maintenance below the requirements for such use, unless equivalent substitute facilities are provided.

C. **Advertising on Vehicles.** Vehicles shall not be parked solely for the purpose of advertising. Advertising shall comply with Article 26, Signs.

D. **Maintenance.** Parking lots and pedestrian areas, including landscaped areas, driveways, and loading areas, shall be maintained free of refuse, debris, or other accumulated matter and shall be kept in good repair at all times.

E. **Vehicles for Sale.** Vehicle sales may occur under the following parameters. All areas shall be paved.

1. On lots approved for vehicle sales per Section 15-2709, Automobile and Motorcycle Retail Sales and Leasing.

2. Companies may sell excess vehicles on their property. No more than one excess vehicle may be sold on the lot at a time.

3. Personal vehicles parked for the purpose of being sold so long as it is for non-commercial purposes.

F. **Temporary Parking Lots.** For Temporary Parking Lots, refer to Section 15-2760-B, Temporary Uses Requiring a Temporary Use Permit.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2404. BUFFER DISTRICT.

A. Off-street parking of the following specified classes of vehicles shall be permitted in the Buffer District:

1. Trucks of 1½ ton or more capacity;
2. Trucks of 1¼ ton or more capacity with trailer attached;
3. Buses;
4. Trailers, if screened; and
5. Any two-axle or three-axle truck tractor.

B. **Pavement.** The parcel shall provide a 100 feet shake-off area prior to reaching the street to minimize dirt, mud, etc. from being carried onto street.

C. Vehicles described above shall be limited to non-commercial uses however the resident of the property may store their own vehicles on-site. Space may not be leased to commercial haulers.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2405. RECREATIONAL VEHICLES, BOATS, TRAILERS, AND PORTABLE STORAGE.

Recreational vehicles, fifth wheel trailers, boats, trailers, etc., collectively referred to as Recreation Vehicles in this section, may be permitted per the provisions below.

A. **Habitation.** Recreational Vehicles may not be used for sleeping or habitation, unless permitted per Subsections E, F, and G below.

B. **Single-Unit Districts.**

1. **Parking and Screening.** Recreational Vehicles shall be parked on a non-permeable surface in a fenced area, or in the rear yard or side yard, screened by a wall or solid fence not less than five feet in height.
2. **Location.** Recreational Vehicles shall not project beyond the front limits of the home.
3. **Exceptions.** A Recreational Vehicle may be parked in the driveway for purposes of loading and unloading for up to 72 hours in any month and shall not encroach into the public right-of-way. For purposes of this article, parking for up to 72 hours includes being parked in the front yard, the driveway, and/or the street.
4. **Commercial rated vehicles not commonly found in residential areas are prohibited.**

C. **Multi-Unit Residential Districts.**

1. Recreational vehicles may not be parked and/or stored in multi-unit districts, unless stored in a fully enclosed garage with a non-permeable surface.

2. Trailers used for loading and unloading, may be parked temporarily and strictly for moving purposes and shall not encroach into the public right-of-way or landscape area.

3. Construction-related trailers shall be removed upon completion of the construction or repairs.

D. **Moving Trailers/Portable Storage/ISO Containers in Residential and Mixed-Use Districts.**

1. Portable storage units may be parked on a driveway in single-unit districts, or a parking space in multi-unit and mixed-use districts for the purposes of loading and unloading.

2. Units may not be on a site for more than 96 hours in any month.

3. Units shall not encroach into the public right-of-way (i.e., sidewalk), nor be placed on the street or front lawn, unless the lot does not have a driveway, then it may be placed in the front yard.

E. **Recreational Vehicles at Fraternal and/or Service Organizations.** Overnight parking may be permitted at Fraternal or Service Organizations for their members. Areas used for this purpose shall be screened from the public right-of-way with a six-foot block wall, hedge, or building. Areas used for this purpose shall be located outside of required yard, and/or landscape areas. No individual Recreational Vehicle may park for more than 48 hours in any month on a site and shall not encroach into the public right-of-way. Outdoor camping is not permitted. Areas used for this purpose are not required to be paved.

F. **Recreational Vehicles in Commercial Districts.** Overnight parking may be permitted in Commercial Districts. No individual Recreational Vehicle may park for more than 12 hours in any month on a site and shall not encroach into the public right-of-way. Areas used for this purpose shall be located outside of required yard, and/or landscape areas. Outdoor camping is not permitted. Areas shall be paved.

G. **Recreational Vehicles at Hospitals.** Hospitals may provide Recreational Vehicle parking areas for visitors, provided that the hospital provides utility connection areas. A Recreational Vehicle may park so long as an acquaintance is under medical care of the hospital. Areas shall be paved.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 45, eff. 7-27-25).

SEC. 15-2406. INOPERABLE VEHICLES.

A. **Residential Districts.** Inoperable vehicles in residential districts shall not be visible from the public right-of-way. Inoperable vehicles may be stored on non-permeable surfaces in residential garages, or rear or side yards. Inoperable vehicles shall be limited to one per lot.

B. **Non-Residential Districts.** In non-residential districts inoperable vehicles shall be screened from public streets. If staging for repair, vehicles may only be visible for up to eight hours prior to being moved into the repair garage. Inoperable vehicles may not be stored in public view overnight unless the vehicle was transported to the site after business hours. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2407. REQUIRED PARKING FOR DOWNTOWN DISTRICTS.

A. The required number of on-site parking spaces are stated in Table 15-2407, Required Parking for Downtown Districts. The parking requirement for any use not listed in Table 15-2407 shall be the same as required for the land use in other districts as stated in Table 15-2409, Required Parking, Other Districts.

TABLE 15-2407: REQUIRED ON-SITE PARKING SPACES, DOWNTOWN DISTRICTS

Use	*Required Parking Spaces*
Residential	
Studio, and one-bedroom units	0.5 space per unit
Two bedrooms	0.5 space per unit
Three or more bedrooms	0.5 space per unit
Non-Residential	
Office	None Required
Retail	None Required
Restaurant	None Required
All other Non-Residential uses	None Required

(Added Ord. 2016-43, § 8, eff. 12-9-16).

SEC. 15-2408. REQUIRED PARKING FOR MIXED-USE DISTRICTS AND CMS DISTRICT.

The required numbers of on-site parking spaces are stated in Table 15-2408, Required Parking for Mixed-Use Districts and CMS District. The parking requirement for any use not listed in Table 15-2408 shall be the same as required for the land use in other districts as stated in Table 15-2409, Required Parking, Other Districts.

TABLE 15-2408: REQUIRED ON-SITE PARKING SPACES, MIXED-USE DISTRICTS AND CMS DISTRICT

Use	*Required Parking Spaces*	
Residential		
Studio, and one-bedroom units	.75 space per unit	Required parking shall be covered. One additional guest parking space must be provided for every 4 units for projects greater than 4 units.
Two bedrooms	1 space per unit	
Three or more bedrooms	1.5 spaces per unit	
Non-Residential		
Office	1 space per 600 square feet	
Retail	1 space per 600 square feet	
Restaurant	1 space per 600 square feet	
All other Commercial uses	1 space per 600 square feet	

TABLE 15-2408: REQUIRED ON-SITE PARKING SPACES, MIXED-USE DISTRICTS AND CMS DISTRICT	
Use	*Required Parking Spaces*
On-street parking along a lot's corresponding frontage lines shall be counted toward the parking requirement for mixed-use projects.	

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2409. REQUIRED PARKING, OTHER DISTRICTS.

The required numbers of on-site parking spaces are stated in Table 15-2409, Required On-Site Parking Spaces, Other Districts. The parking requirement for any use not listed in Table 15-2409 shall be determined by the Director based upon the requirements for the most similar comparable use, the particular characteristics of the proposed use, and any other relevant data regarding parking demand.

TABLE 15-2409: REQUIRED ON-SITE PARKING SPACES, OTHER DISTRICTS		
Use Classification	*Required Parking Spaces*	
Residential Use Classifications		
Single-Unit Residential constructed prior to the adoption date of this Code	1 space per dwelling unit	Must be covered.
Single-Unit Residential, up to two bedrooms	1 space per dwelling unit	Must be within a garage.
Single-Unit Residential, three or more bedrooms	1 space per dwelling unit	Must be within a garage.
Duplex	1 space per dwelling unit	Must be within a garage.
Second/Accessory Dwelling Units (ADUs)	Refer to Section 15-2754, Second/Accessory Dwelling Units (ADUs).	
Affordable Housing Developments (Moderate Income and Below, Single-Unit or Multi-Unit)		
Studio, one- or two-bedroom	.75 space per unit	
Three or more bedrooms	1.5 spaces per unit	
Multi-Unit Residential (2 or more units)		
Studio	1 space per unit	One covered space shall be designated for each unit. One additional uncovered guest parking space must be provided for every 4 units.
One- or two-bedroom	1 space per unit	One covered space shall be designated for each unit. One additional uncovered guest parking space must be provided for every 2 units.
Three or more bedrooms	1.5 spaces per unit	
Small Family Day Care	None in addition to what is required for the residential use.	
Large Family Day Care	1 per employee plus an area for loading and unloading children, on or off-site. Required spaces and the residential driveway for the primary residential use may be counted toward meeting these requirements.	
Elderly and Long-Term Care	1 for every 7 residents plus 1 for each live-in caregiver. Facilities serving more than 15 residents shall also provide 1 space for each caregiver, employee, and doctor on-site at any one time.	
Group Residential	1 spaces for the owner-manager plus 1 for every 5 beds and 1 for each non-resident employee.	
Residential Care, Limited	None in addition to what is required for the residential use.	
Residential Care, General	2 spaces for the owner-manager plus 1 for every 5 beds and 1 for each non-resident employee.	
Residential Care, Senior	1 for every 7 residents plus 1 for each live-in caregiver. Facilities serving more than 15 residents shall also provide 1 space for each caregiver, employee, and doctor on-site at any one time.	

TABLE 15-2409: REQUIRED ON-SITE PARKING SPACES, OTHER DISTRICTS	
Use Classification	*Required Parking Spaces*
Single Room Occupancy	0.5 space per unit.
Public and Semi-Public Use Classifications	
Colleges and Trade Schools, Public or Private	1 per 5 members of the school population (including students, faculty, and staff) based on maximum enrollment.
Community and Religious Assembly	1 for each 5 permanent seats in main assembly area, or 1 for every 50 sq. ft. of assembly area for group activities or where temporary or moveable seats are provided, whichever is greater. For auxiliary classrooms, there shall be 1 parking space per classroom.
Cultural Institutions	Stage theaters and auditoriums: 1 for each 6 permanent seats in main assembly area, or 1 for every 60 sq. ft. of assembly area where temporary or moveable seats are provided, whichever is greater. Galleries, Libraries, and Museums: 1 for every 1,000 sq. ft. of floor area. Other establishments: determined by the Director.
Day Care Center	1 per employee plus 2 loading spaces.
Emergency Shelter	1 per 500 sq. ft. of floor area.
Government Offices	1 per 500 sq. ft. of floor area.
Hospitals, Rehabilitation Centers	1 per 1.5 beds; plus 1 per 300 sq. ft. of area used for office, clinics, testing, research, administration, and similar activities associated with the principal use.
Clinics or Urgent Care	1 per exam room; plus 1 per 300 sq. ft. of area used for office, clinics, testing, research, administration, and similar activities associated with the principal use.
Instructional Services	1 per 200 sq. ft. of public or instruction area.
Schools, Public or Private	Elementary and Middle Schools: 1 per classroom, plus 1 per 300 sq. ft. of office area. High Schools: 5 per classroom.
Social Service Facilities	1 per 350 sq. ft. of floor area.
Commercial Use Classifications	
Large Commercial Shopping Center (greater than 300,000 square feet of floor area).	1 per 350 sq. ft. or the total required for each individual use, whichever is less.
Adult-Oriented Business	1 per 300 sq. ft. of floor area.
Animal Care, Sales and Services	
Grooming and Pet Stores	1 per 500 sq. ft. of floor area.
Kennels	1 per employee plus three spaces for loading and unloading animals on-site.
Veterinary Services	1 per 350 sq. ft. of floor area.
Artist's Studio	1 per 1,000 sq. ft. of floor area.
Automobile/Vehicle Sales and Services	
Automobile/Vehicle Rentals	1 per 250 sq. ft. of office area in addition to spaces for all vehicles for rent.
Automobile/Vehicle, and Motorcycle Sales and Leasing	1 per 2,500 sq. ft. of lot area. Any accessory auto repair: 2 per service bay.
Automobile/Vehicle Repair, Major or Minor	1 space plus 1.5 per service bay. 1 per 250 sq. ft. of any retail or office on site.
Automobile/Vehicle Washing, Automated	1 per 250 sq. ft. of any indoor sales, office, or lounge areas.
Automobile/Vehicle Washing, Detail	.50 per service bay plus 1 per 250 sq. ft. of any indoor sales, office, or lounge areas.
Service Station	1.5 per service bay, if service bays are included on site. 1 per 250 sq. ft. of any retail or office on site.
Boat/Recreational Vehicle Sales and Leasing	1 per 6,000 sq. ft. of lot area. Any accessory auto repair: 1.5 per service bay.
Towing and Impound	1 per 500 sq. ft. of building area plus 1 per 0.5 acre of gross outdoor use area.
Banks and Financial Institutions	1 per 400 sq. ft. of floor area.

TABLE 15-2409: REQUIRED ON-SITE PARKING SPACES, OTHER DISTRICTS	
Use Classification	*Required Parking Spaces*
Banquet Hall	1 for each 5 permanent seats in main assembly area, or 1 for every 50 sq. ft. of assembly area for group activities or where temporary or moveable seats are provided, whichever is greater.
Business Services	1 per 400 sq. ft. of floor area.
Entertainment and Recreation	Establishments with seating: 1 for each 4 fixed seats, or 1 for every 50 sq. ft. of seating area where temporary or moveable seats are provided, whichever is greater. Athletic Clubs/Fitness Centers: 1 per 200 sq. ft. of main floor area. Bowling Alleys: 1.5 per lane. Cinema/Theaters: 1 for each 6 permanent seats in main assembly area, or 1 for every 60 sq. ft. of assembly area where temporary or moveable seats are provided, whichever is greater. Game Courts (e.g., tennis): 1.5 per court. Golf Courses: 3 per hole (Additional parking may be required for ancillary uses such as Banquet Rooms) Golf Driving Range/Putting Greens: .75 per station/hole. Parks: 1 per 7,500 sq. ft. of active recreational area (pocket parks are exempt from providing parking). Skating Rinks: 1 per 150 sq. ft. of gross floor area. Swimming Pools: 1 per 200 square feet of pool area plus 1 per 500 feet of area related to the pool. Other Entertainment and Recreation uses: 1 per every 3 persons permitted to occupy the floor space of the facility.
Eating and Drinking Establishments	
Convenience	1 per 125 sq. ft. of floor area.
Coffee Shops/Cafes	1 per 150 sq. ft. of floor area; For Outdoor Dining, refer to Section 15-2744, Outdoor Dining and Patio Areas.
Restaurants Take-Out Only	1 per 250 sq. ft. of floor area.
Restaurants, Full Service	1 per 150 sq. ft. of floor area; For Outdoor Dining, refer to Section 15-2744, Outdoor Dining and Patio Areas.
Bars/Nightclubs/Lounges	1 per 100 sq. ft. of floor area.
Food and Beverage Sales	
Farmer's Markets	Refer to Section 15-2730, Farmer's Markets.
General Market	1 per 450 sq. ft. of floor area.
Healthy Food Grocer	1 per 1,000 sq. ft. of floor area.
Liquor Store	1 per 450 sq. ft. of floor area.
Food Preparation	1 per 1,500 sq. ft. of use area plus 1 per 300 sq. ft. of office area.
Funeral Parlors and Internment Services	1 for each 6 permanent seats in assembly areas or 1 for every 60 sq. ft. of assembly area where temporary or moveable seats are provided, whichever is greater, plus 1 per 250 sq. ft. of office area.
Lodging	
Bed and Breakfast	1 per room for rent plus 1 space adjacent to registration office.
Hotels and Motels	1 per each sleeping unit, plus 2 spaces adjacent to registration office. Meeting/banquet rooms or restaurants under 1,500 sq. ft. are not required to provide additional parking when located within a hotel. Additional parking shall be required for ancillary uses, such as Meeting Rooms, Banquet Centers, etc. that exceed 1,500 sq. ft.
Live-Work	1 per unit or 1 for every 1,000 sq. ft. of floor area, whichever is greater.
Maintenance and Repair Services Offices	1 per 600 sq. ft. of floor area, plus one space for each fleet vehicle.
Business and Professional	1 per 400 sq. ft. of floor area up to 100,000 sq. ft. 1 per 350 sq. ft. over 100,000 sq. ft.
Medical and Dental	1 per 275 sq. ft. of floor area.
Walk-In Clientele	1 per 300 sq. ft. of floor area.
Personal Services	1 per 400 sq. ft. of floor area.
Retail Sales	

TABLE 15-2409: REQUIRED ON-SITE PARKING SPACES, OTHER DISTRICTS	
Use Classification	*Required Parking Spaces*
Building Materials and Services	1 per 650 sq. ft. of floor area; plus 1 per 2,000 sq. ft. of outdoor display area.
Nurseries and Garden Centers	1 per 500 sq. ft. of floor area; plus 1 per 2,000 sq. ft. of outdoor display area.
All Other Retail Sales Subclassifications	1 per 450 sq. ft. of floor area. 1 per 750 sq. ft. of floor area for appliance and furniture stores.
Swap Meet/Flea Market	1 per vendor, plus 5 per every 0.5 acre of gross outdoor use area.
Employment Use Classifications	
Construction and Material Yards	1 per 2,500 sq. ft. up to 10,000 sq. ft. plus 1 per 5,000 sq. ft. over 10,000 sq. ft.
Custom Manufacturing	1 per 1,500 sq. ft. plus 1 per 300 sq. ft. of office.
Limited Industrial	1 per 1,500 sq. ft. plus 1 per 300 sq. ft. of office.
General Industrial	1 per 1,500 sq. ft. plus 1 per 300 sq. ft. of office.
Intensive Industrial	1 per 1,500 sq. ft. plus 1 per 300 sq. ft. of office.
Recycling Facility	
CRV Recycling Centers	See Section 15-2750, Recycling Facilities.
Recycling Processing Facility	1 for each 2 employees on the maximum work shift, or 1 per 1,000 sq. ft. of floor area, whichever is greater.
Research and Development	1 per 600 sq. ft. of manufacturing and assembly; 1 per 300 sq. ft. of office; 1 per 1,500 sq. ft. of warehousing; and 1 per 800 sq. ft. of laboratory.
Salvage and Wrecking	1 per 500 sq. ft. of building area plus 1 per 0.5 acre of gross outdoor use area.
Warehousing, Storage, and Distribution	
Chemical and Mineral Storage	1 per 300 sq. ft. of office area.
Warehousing	1 per 2,000 sq. ft. of area up to 10,000 sq. ft.; 1 per 5,000 sq. ft. over 10,000 sq. ft., plus 1 per 300 sq. ft. of office.
Personal Storage	1 space per 100 storage units, plus 1 space per 300 sq. ft. of office area. A minimum of 3 spaces shall be provided, plus one enclosed space per caretaker's residence should one be proposed.
Wholesaling and Distribution	1 per 1,500 sq. ft. of use area up to 10,000 sq. ft., 1 per 5,000 sq. ft. over 10,000 sq. ft., plus 1 per 300 sq. ft. of office.
Transportation, Communication, and Utilities Use Classifications	
Light Fleet-Based Services	1 per 300 sq. ft. of office floor area, plus one space for each fleet vehicle.
Utilities, Major	1 for each employee on the largest shift plus 1 for each vehicle used in connection with the use. Minimum of 2.
Utilities, Minor	None.
Transportation Facilities/Bus Depots/Bus Terminal	1 per bus bay, plus 1 per 250 sq. ft. of building/waiting area.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 28, eff. 1-18-19; Am. Ord. 2025-024, § 46, eff. 7-27-25).

SEC. 15-2410. RESERVED.

SEC. 15-2411. CALCULATION OF REQUIRED SPACES.

The number of required parking spaces shall be calculated according to the following rules:

A. **Fractions.** If the calculation of required parking or loading spaces results in the requirement of a fractional space, such fraction, if the fraction is less than one-half, it shall result in no additional spaces; if one-half or greater, it shall be considered one additional space.

B. **Floor Area.** Where an on-site parking or loading requirement is stated as a ratio of parking spaces to floor area, the floor area is assumed to be gross floor area, unless otherwise stated.

C. **Employees.** Where an on-site parking or loading requirement is stated as a ratio of parking spaces to employees, the number of employees shall be based on the largest shift that occurs in a typical week.

D. **Bedrooms.** Where an on-site parking requirement is stated as a ratio of parking spaces to bedrooms, any rooms having the potential of being a bedroom or meeting the standards of the California Building Code as a sleeping room shall be counted as a bedroom. Offices or other rooms that have the ability of being converted into bedrooms shall be considered bedrooms for parking purposes.

E. **Students or Clients.** Where a parking or loading requirement is stated as a ratio of parking spaces to students (including children in day care), the number is assumed to be the number of students or clients at the State-certified capacity or at Building Code Occupancy where no State-certification is required.

F. **Seats.** Where parking requirements are stated as a ratio of parking spaces to seats, each 24 inches of bench-type seating at maximum seating capacity is counted as one seat.

G. **Sites with Multiple Uses.** If more than one use is located on a site, the number of required on-site parking spaces and loading spaces shall be equal to the sum of the requirements calculated separately for each use unless a reduction is approved pursuant to Section 15-2413, Parking Reductions.

H. **Queuing Area.** The number of parking spaces required by Tables 15-2408 and 15-2409 does not include queuing space that may be required for vehicles and customers waiting in vehicles for service pump stations, drive-throughs, auto service bays, or similar uses.

I. **Gas Stations.** Parking spaces providing for fueling stations shall not count towards meeting parking standards per Tables 15-2408 and 15-2409.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2412. PARKING EXCEPTIONS.

A. **Buildings Constructed Prior to February 13, 1954.** The parking area or space requirements imposed by the provisions of this Code shall not apply upon a Change of Occupancy, as defined by the Building Code, or the building code in affect at the time of the permit, for any building or structure which was constructed prior to February 13, 1954.

B. 30-Year-Old or Older Buildings. The parking area or space requirements imposed by the provisions of this Code shall not apply upon a change of use for any building or structure which is older than 30 years old, provided:

1. The parking area or space is not reduced; and

2. The new use does not involve:
   a. Convenience Stores that are 3,000 square feet or less with off-site alcohol sales;
   b. Schools (K-12; private or public);
   c. Drive-through restaurants;
   d. Banquet Halls and Religious Assembly Facilities with direct access to local street(s); or
   e. Auto-related uses.

C. **Building Expansions.** Buildings constructed prior to Subsections A and B above may be expanded. Parking for the expanded area shall be provided per Tables 15-2408 and 15-2409. Buildings constructed prior to this date may not be altered when it would result in additional dwelling units without providing parking for the additional dwellings.

D. **Small Commercial Uses.** The following commercial uses are not required to provide on-site parking when they contain less than 1,000 square feet of floor area: Retail Sales (except off-site alcohol sales), Personal Services, Eating and Drinking Establishments, Food and Beverage Retail Sales, Offices: Walk-in Clientele, and Banks and Financial Institutions. However, when two or more such establishments are located on a single lot or a shopping center, their floor areas shall be aggregated with all other establishments located on the lot in order to determine required parking.

E. Streamlined Development as defined in Section 65913.4 of the California Government Code shall not be required to provide on-site parking.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 20, eff. 6-11-18; Am. Ord. 2018-66, § 29, eff. 1-18-19).

SEC. 15-2413. PARKING REDUCTIONS.

The number of on-site parking spaces required by Sections 15-2408 and 15-2409, may be reduced as follows:

A. **Affordable Housing Developments.** See 15-2205, Affordable Housing Concessions and Incentives.

B. **Transit Accessibility.** For any land use except residential single-unit, duplex, and triplex development, if any portion of the lot is located within ¼ mile of a transit stop with a 15 minute or more frequent service during the hours of 7 a.m. to 9 a.m. and 5 p.m. and 7 p.m., the number of required parking spaces may be reduced by 30 percent of the normally required number of spaces.

C. **Shared Parking.** Where a shared parking facility serving more than one use will be provided, the total number of required parking spaces may be reduced up to 50 percent at the discretion of the Review Authority, if all of the following findings are made:
   1. The peak hours of uses will not overlap or coincide to the degree that peak demand for parking spaces from all uses will be greater than the total supply of spaces;

2. The adequacy of proposed shared parking provided will equal or exceed the level that can be expected if parking for each use were provided separately;

3. A parking demand study prepared by an independent traffic engineering professional approved by the City supports the proposed reduction; and,

4. When a shared parking facility serves more than one property, a parking agreement shall be prepared consistent with the provisions of Section 15-2414-D, Off-Site Parking Facilities for Non-Residential Uses.

D. **Other Parking Reductions.** Required parking for any use may be reduced up to 20 percent through Review Authority approval of a Planned Development Permit, however the 20 percent reduction may not be made in addition to any reductions for A) Shared Parking, or B) Transit Accessibility.

1. **Criteria for Approval.** The Review Authority may only approve a Planned Development Permit for reduced parking if it finds that:

a. The site is fully developed and it would be infeasible or impractical to provide additional parking;

b. Special conditions—including, but not limited to, the nature of the proposed operation; proximity to frequent transit service; transportation characteristics of persons residing, working, or visiting the site;

c. The use will adequately be served by the proposed on-site parking; and

d. Parking demand generated by the project will not exceed the capacity of or have a detrimental impact on the supply of on-street parking in the surrounding area.

2. **Parking Demand Study.** In order to evaluate a proposed project's compliance with the above criteria, a parking demand study shall be prepared by an independent traffic engineering professional approved by the City that substantiates the basis for granting a reduced number of spaces and includes any of the following information:

a. Total square footage of all uses within existing and proposed development and the square footage devoted to each type of use.

b. A survey of existing accessibility via a defined pedestrian path (i.e., sidewalk) to on-street parking within 350 feet of the project site.

c. Parking requirements for the net change in square footage and/or change in use, based on the requirements of Sections 15-2408 and 15-2409.

d. Estimated net change in parking demand between existing and proposed development, using any available existing parking generation studies from the Institute for Transportation Engineers (ITE) or other sources. If appropriate parking demand studies are not available, the City may require the applicant to conduct a parking demand survey of a development similar to the proposed project.

e. Comparison of proposed parking supply with parking requirements and net change in parking demand.

f. A shared parking analysis, as appropriate.

g. A description of possible Transportation Demand Management measures, such as preferential carpool spaces; telecommuting or staggered work shifts; provision of transit passes or other transit incentives for residents, employees, and/or students; incorporation of spaces for car share vehicles, bicycles, or other measures that could result in reduced parking demand.

h. Other information as required by the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 21, eff. 6-11-18).

SEC. 15-2414. LOCATION OF REQUIRED PARKING.

A. **Located on Same Parcel.** Required parking shall be located on the same parcel as the uses served, unless otherwise provided by this article.

B. **Front and Street-Side Setbacks.** No parking spaces shall be located within the front and street side setback areas. In single-unit districts it is appropriate to park vehicles on driveways, however this parking shall not count towards meeting the required parking.

C. **Residential Districts.**

1. **Single-Unit Dwellings, Duplexes, Triplexes, and Second Units.** Required parking for a Single-Unit Dwelling, Duplex, Triplexes, or Second Units shall be located on the same lot as the dwelling(s) served. Parking shall not be located within required setbacks with the exception of the rear yard. Tandem parking may be permitted if authorized by this article.

2. **Other Residential Uses.** Required parking for residential uses other than Single-Unit Dwellings, Duplexes, and Triplexes shall be on the same lot as the dwelling or use they serve or in an off-site facility as provided in Subsection D. Parking shall not be located within a required front or street-facing side yard.

D. **Off-Site Parking Facilities for Non-Residential Uses.** Parking facilities for uses other than residential uses (not including mixed-use projects), may be provided off-site with approval of a Conditional Use Permit if:

1. The off-street parking is proposed in a district that permits the proposed use that the parking is serving. A parcel may not house parking for a use that is not permitted on the site;

2. The parking site is located within 400 feet of the use;

3. The site is along an improved pedestrian route that connects to the principal entrance containing the use(s) for which the parking is required;

4. On the same side of the street, across an alley, or across a local street; and

5. There is a written agreement between the landowner(s) and the City in the form of a covenant guaranteeing among the landowner(s) for access to and use of the parking facility and that the spaces will be maintained and reserved for the uses served for as long as such uses are in operation.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 47, eff. 7-27-25).

SEC. 15-2415. PARKING AVAILABILITY.

A. **Accessible Parking.** Where parking is provided for the public as clients, guests, or employees, it shall include parking accessible to persons with disabilities in accordance with the standards in Chapter 71, Site Development Requirements for Handicapped Accessibility of Title 24 of the California Code of Regulations.

B. **Parking to be Unrestricted.**

1. Parking required by this article shall be available to the public without charge. A fee for parking may only be charged for spaces that exceed the minimum requirements of this article.

2. **Residential Parking.** Where this article requires communal parking areas in residential areas, said parking spaces shall not be restricted to individual units.

C. **Access to Adjacent Sites.** Applicants are encouraged to provide shared vehicle and pedestrian access between adjacent properties for convenience, safety, and efficient circulation. A joint access covenant shall be required.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2416. PARKING AREA DEVELOPMENT STANDARDS.

All parking areas except those used exclusively for Stacked Parking, shall be designed and developed consistent with the following standards.

A. **Automated Parking Garages.** Permitted in any district.

B. **Electric Vehicle (EV) Parking.**

1. **Residential Districts.** Per the California Building Code.

2. **Office and Commercial Districts.**

a. For Parking Lots with Less than 250 Spaces. Refer to the California Building Code.

b. For Parking Lots with 250 Spaces or More. Per the California Building Code or the following, whichever shall provide the greater amount of EV spaces.

i. There shall be one vehicle charging station for every 250 spaces.

ii. At least one space shall be 15 feet in width.

iii. Signage shall clearly state that spaces are to be used for actively charging vehicles only.

C. **Motorcycle Parking.** Motorcycle parking may substitute for up to five percent of required automobile parking. Each motorcycle space must be at least four feet wide and seven feet deep.

D. **Tandem Parking.** Tandem parking may be permitted to satisfy the off-street parking requirement in accordance with the following:

1. No more than two vehicles shall be placed one behind the other;
2. Both spaces shall be assigned to a single dwelling unit;
3. Both spaces shall be assigned as employee only parking for a non-residential establishment. Tandem parking under this scenario shall be for the same establishment;
4. Tandem parking to meet required parking for a multi-unit development shall be located within an enclosed structure or a parking structure and the number of tandem parking spaces shall not exceed 50 percent of the total number of spaces;
5. Tandem parking shall not be used to satisfy the parking requirement for guest parking; and,
6. Tandem parking to meet required parking for non-residential uses may be used for employee parking and the number of tandem parking spaces shall not exceed 25 percent of the total number of spaces.

E. **Stacked Parking.** Stacked or valet parking is allowed for non-residential uses if an attendant is present to move vehicles. If stacked parking managed by an attendant is used for required parking spaces, the property owner shall enter into an agreement in the form of a covenant with the City ensuring that an attendant will always be present when the lot is in operation. Stacked parking shall not account for more than 50 percent of the required parking.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 48, eff. 7-27-25).

SEC. 15-2417. DRIVEWAYS.

Driveways providing site access shall be from an improved street, alley, or other public and/or private right-of-way, and shall be designed, constructed, and properly maintained per the standards below.

A. **Number of Driveways.**

1. Access to Major Streets shall be spaced to provide for reasonable access to properties while maximizing traffic safety and traffic flow. Emphasis should be placed on maximizing on-site reciprocal access and minimizing the number of street access points.
2. Access spacing and control requirements shall be determined by the City Engineer.

B. **Distance from Street Corners.** As determined by the City Engineer.

C. **Driveway Widths and Lengths.**

1. All Driveways. If designated as a Fire Lane, the minimum width shall be 20 feet, unless a greater width is required by the Fire Chief.

2. Residential Driveway Width. As determined by the City Engineer and the Fire Chief.

3. Residential Driveway Length. Driveways providing direct access from a public street to a garage or carport shall be at least 18 feet in depth.

4. Commercial and Industrial Driveway Width. As determined by the City Engineer and the Fire Chief.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2418. PARKING ACCESS.

A. Whenever possible, new Commercial and Office development shall provide shared vehicle and pedestrian access to adjacent non-residential properties for convenience, safety, and efficient circulation. A joint access agreement in the form of a covenant shall be recorded ensuring that access will be maintained. The following exceptions shall apply:

1. If either site is developed and there is no feasible location to gain access, the Director may waive this condition, however the removal of excess parking may not be considered a barrier to gaining access.

2. Shared access shall not be required for development in areas with a highly interconnected street grid, short blocks (less than 500 feet on average), and a complete sidewalk network.

B. **Forward Entry.** Parking lots shall be provided with suitable maneuvering room so that all vehicles therein may enter an abutting street in a forward direction.

C. **Distance from Driveways on Local Streets.** Parking spaces shall not be located within 20 feet of an access driveway, measured from the property line.

D. **Distance from Driveways on Major Streets.** Parking spaces and drive aisles shall be configured in such a way as to promote smooth flow of traffic onto the site from adjacent streets. The length of driveways or "throat length" shall be designed to prevent vehicles from backing into the flow of traffic on the public street or causing unsafe conflicts with on-site circulation. Entrance designs shall be subject to approval by the City Engineer.

E. **Commercial Developments that Exceed 10 Acres.** Drive entrances to centers that are 10 acres or larger shall generally provide a driveway length of 100 feet prior to the first parking stall.

F. **Alleys.** For Non-Residential access, parking spaces shall provide a backup area of 27 feet. For Residential Districts, refer to Section 15-2004, Accessory Buildings and Structures.

G. **Size of Parking Spaces and Maneuvering Aisles.** Parking spaces and maneuvering aisles shall meet the minimum dimensions as may be established by the Public Works Director.

H. **Parking Spaces Abutting a Wall or Fence.** Each parking space adjoining a wall, fence, column, or other obstruction higher than 0.5 feet shall be increased by one foot on each obstructed side. At the discretion of the Review Authority, the increased width may not be required if the obstruction is located within the front 4.5 feet of the stall, leaving the remainder of the stall unobstructed, and the obstruction is a column with a width of 6 inches or less.

I. **Minimum Dimensions for Residential Garages and Carports.** Garages and carports serving residential uses shall be constructed to meet the following minimum inside dimensions.

1. A single car garage or carport shall have a minimum inside dimension of 10 feet in width by 20 feet in length.
2. A two-car garage or carport shall have a minimum inside dimension of 20 feet in width by 20 feet in length.
3. A garage or carport containing three or more spaces shall have a minimum inside dimension of nine feet in width by 19 feet in length per space.
4. The vertical clearance for garage or carport parking spaces shall not be less than seven feet six inches.
5. Stairs may encroach in the parking area of a garage provided that the front end of the average automobile can fit under the stair projection. The bottom of the stairwell (including exterior finish) should be a minimum of five feet above the garage floor.
6. For the purpose of determining the existing number of garage spaces for an existing dwelling unit the following dimensions shall apply:
    a. An existing garage with minimum interior dimensions of 8.5 feet in width and 18 feet in length shall qualify as one existing enclosed parking space.
    b. An existing garage with minimum interior dimensions of 17 feet in width and 18 feet in length shall qualify as two existing enclosed parking spaces.
    c. If the minimum interior dimensions of an existing garage parking space exceed the minimum dimensions in this subsection, the existing enclosed space dimensions shall be maintained.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 30, eff. 1-18-19).

SEC. 15-2419. PARKING LOT SURFACE STANDARDS.

A. **Parking Lot Striping.** All parking stalls shall be clearly outlined with striping, and all aisles, approach lanes, and turning areas shall be clearly marked with directional arrows and lines as necessary to provide for safe traffic movement.

B. **Wheel Stops.** Concrete bumper guards or wheel stops shall be provided for all unenclosed parking spaces on a site with four or more unenclosed parking spaces. A six-inch-high concrete curb surrounding a landscape area may be used as a wheel stop, provided that the overhang will not damage or interfere with plant growth or its irrigation. A concrete sidewalk may be used as a wheel stop if the overhang will not reduce the minimum required walkway width.

C. **Surfacing.** All parking areas shall be graded, paved, and improved and all sites shall be properly drained and subject to the approval of the City Engineer. No unpaved area shall be used for parking unless used as Temporary Parking per Section 15-2760.

1. **Cross-Grades.** Cross-grades shall be designed for slower stormwater flow and to direct stormwater toward landscaping, bio-retention areas, or other water collection/ treatment areas.

2. **Landscaping Alternative.** Up to three feet of the front of a parking space as measured from a line parallel to the direction of the bumper of a vehicle using the space may be landscaped with ground cover plants instead of paving.

3. **Permeable Paving.** Permeable paving may be used in all overflow parking areas and emergency access-only drives if approved by the Public Works Director.

4. **Turf Grids/Grassy Pavers.** Turf grids/grassy pavers may be installed in areas of low traffic or infrequent use, such as emergency vehicles lanes, if approved by the Fire Department and the Public Works Director.

D. **Perimeter Curbing.** A six-inch-wide and six-inch-high concrete curb shall be provided along the outer edge of the parking facility pavement, except where said pavement abuts a fence or wall. Curbs separating landscaped areas from parking areas shall be designed to allow stormwater runoff to pass through to the extent feasible.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 31—33, eff. 1-18-19).

SEC. 15-2420. PARKING AREA LIGHTING.

Parking areas designed to accommodate four or more vehicles shall be provided with light over the parking surface as follows:

A. Lighting design shall be coordinated with the landscape plan to ensure that vegetation growth will not substantially impair the intended illumination.

B. Parking lot lighting shall, to the maximum extent feasible, be designed and installed so that light and glare is not directed onto residential use areas or adjacent public rights-of-way, consistent with Article 25, Performance Standards. Such parking lot illumination shall be no less than 0.5 foot-candles.

C. Carport lighting shall be integrated into carport structures, and there shall have no bare light bulbs.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 34, eff. 1-18-19).

SEC. 15-2421. PARKING LOT LANDSCAPING AND SHADING.

A. **Heat Island Reduction.** A heat island is the increase in ambient temperature that occurs over large paved areas compared to natural landscape. In order to reduce ambient surface temperatures in parking areas, 50 percent of areas not landscaped shall be shaded, of light colored materials with a Solar Reflectance Index (SRI) of at least 29, or a combination of shading and light colored materials as follows:

1. **Permitted Types of Shading.** Shade may be provided by solar shade structures, trees, or other equivalent mechanism.

2. **Shading Tree Standards.** Trees provided to satisfy the requirements of this section shall meet the following standards:

    a. **Shading Tree Distribution.** Trees provided to satisfy the requirements of this section shall be distributed relatively evenly throughout the parking area.

    b. **Species.** Trees provided to satisfy the requirements of this section shall be selected from a list maintained by the City and shall be of a species which can reasonably be expected to provide the required amount of shading within 15 years.

    c. **Size.** Trees provided to satisfy the requirements of this section shall trees shall be a minimum 15-gallon size with a one-inch diameter as measured 48 inches above natural grade.

3. **Exception:** This requirement shall not apply to RS Districts and truck loading and truck parking areas within Employment Districts.

B. **Landscaping.** Landscaping of parking areas shall be provided and maintained according to the general standards of Article 23, Landscape, as well as the standards of this subsection.

1. **Clearance from Vehicles.** All required landscaped areas shall be designed so that plant materials, at maturity, are protected from vehicle damage by providing a minimum two-foot clearance of low-growing plants where a vehicle overhang is permitted, or by wheel stops set a minimum of two feet from the back of the curb.

2. **Planters.** All required parking lot landscaping shall be within planters bounded by a concrete curb at least six inches wide and six inches high. Curbs separating landscaped areas from parking areas shall be designed to allow storm-water runoff to pass through.

C. **Perimeter Parking Lot Landscaping.** The following shall apply to Multi-Unit, Mixed-Use, Office, Business Park, Regional Business Park, and Commercial developments.

1. **Layout.** Landscaped areas shall be well-distributed throughout the parking lot area. A minimum of 10 percent of any parking lot area shall be landscaped. For the purpose of calculating required parking lot landscaping, parking lot areas are deemed to include parking and loading spaces as well as aisles, vehicle entry and exit

areas, and any adjacent paved areas. Parking lot area does not include enclosed vehicle storage areas. Parking lot landscaping may be provided in any combination of:

a. Landscaped planting strips between parking areas and adjacent buildings or internal pedestrian walkways;

b. On-site landscaping at the parking lot perimeter.

2. **Adjacent to Streets.** Parking areas adjoining a public street shall be designed to provide a landscaped planting strip equivalent to the required setback for the subject zoning district.

a. Landscaping shall be designed and maintained to screen cars from view from the street to a height of between 24 and 36 inches.

b. Screening materials may include a combination of plant materials, earth berms, solid masonry walls, raised planters, or other screening devices that meet the intent of this requirement.

c. Trees shall be provided at a rate of at least one for every 20 lineal feet of landscaped area. A lower ratio of tree planting may be approved by the Director when larger species of trees are used.

d. Plant materials, signs, or structures within a traffic safety sight area of a driveway shall not exceed 36 inches in height.

3. **Adjacent to Other Uses.** Refer to the underlying Zone District and Section 15-2305-C, Lot Perimeters, landscape buffer requirements.

4. **End of Row Islands.** A landscaped island at least six feet in all interior dimensions and containing at least one 15-gallon-size tree shall be provided at each end of each interior row of parking stalls and dispersed throughout the parking lot.

5. **Planters Required.** Trees shall be in planters located throughout the parking area. Planters shall have a minimum interior dimension of five feet and be of sufficient size to accommodate tree growth.

6. **Landscaped Buffer.** When four or more parking spaces are provided, a landscaped area at least five feet wide shall be provided between any surface parking area and any property line for the length of the parking area, unless a different dimension is specified in the base district standards applicable to a site or in Section 15-2305-C, Lot Perimeters, landscape buffer requirements.

7. **Large Projects (100 Stalls or More).** Large projects shall provide a concentration of landscape elements at main entrances, including specimen trees (e.g., 24 inch, 36 inch and 48 inch box), flowering plants, enhanced paving, and project identification.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 35, eff. 1-18-19; Am. Ord. 2025-024, § 49, eff. 7-27-25).

SEC. 15-2422. RESERVED.

Editor's note—Am. Ord. 2018-66, § 36, effective January 18, 2019, amended the Code by repealing former § 15-2422 in its entirety. Former § 15-2422 pertained to parking lot trees, and derived from Ord. 2015-39, effective January 9, 2016.

SEC. 15-2423. CIRCULATION AND SAFETY.

A. **Visibility and Clearance.** Landscaping in planters at the end of parking aisles shall be maintained as to not impair the sight line of drivers and pedestrian cross-traffic. Mature trees shall have a foliage clearance maintained at eight feet from the surface of the parking area. Other plant materials located in the interior of a parking lot shall not exceed 30 inches in height. See also Section 15-2018, Intersection Visibility.

B. Parking lots shall be designed so that sanitation, emergency, and other public service vehicles can provide service without backing unreasonable distances or making other dangerous or hazardous turning movements, as determined by the Review Authority.

C. Separate vehicular and pedestrian circulation systems shall be provided where possible and where the following occurs:

1. Multi-unit residential developments of five or more units must provide pedestrian access that is separate and distinct from driveways.

2. Parking areas for commercial and mixed-use developments that provide 25 or more parking spaces must have distinct and dedicated pedestrian access from the commercial use to parking areas and public sidewalks, according to the following standards:

    a. **Connection to Public Sidewalk.** An on-site walkway shall connect the main building entry to a public sidewalk on each street frontage. Such walkway shall be the shortest practical distance between the main building entry and sidewalk, generally no more than 125 percent of the straight-line distance.

    b. **Materials and Width.** Walkways shall provide at least five feet of unobstructed width and be hard-surfaced.

    c. **Identification.** Pedestrian walkways shall be clearly differentiated from driveways, parking aisles, and parking and loading spaces through the use of elevation changes, a different paving material, or similar method.

    d. **Separation.** Where a pedestrian walkway is parallel and adjacent to an auto travel lane, it must be raised or be of a different material, and separated from the auto travel lane by a raised curb at least four inches high, bollards, or other physical barrier.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2424. RESERVED.

Editor's note—Am. Ord. 2018-66, § 37, effective January 18, 2019, amended the Code by repealing former § 15-2424 in its entirety. Former § 15-2424 pertained to solar panels on carports, and derived from Ord. 2015-39, effective January 9, 2016.

SEC. 15-2425. PARKING GARAGES.

A. **Step-Back Provisions.** A parking garage that does not incorporate ground-floor non-residential or residential use or is not otherwise screened or concealed at street frontages on the ground level, must provide a landscaped area at least 15 feet wide between the parking garage and public street and shall set back an additional two feet for every story above two. If there is another building between the parking garage and the public street, this subsection shall not apply.

B. **Rooftop Planting.** Uncovered parking on the top level of a parking structure shall have rooftop planters with a minimum dimension of 24 inches around the perimeter of the top floor which is visible from a public street. Shrubs shall be visible.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2426. ALTERNATIVE PARKING AREA DESIGNS.

Where an applicant can demonstrate to the satisfaction of the Director that variations in the dimensions otherwise required by this section are warranted in order to achieve to environmental design and green building objectives, including, but not limited to, achieving certification under the LEED™ Green Building Rating System, an alternative parking area design may be approved.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2427. PARKING IN-LIEU FEE.

If a parking assessment district is established, a fee may be paid to the City in-lieu of providing required parking within the district. The assessment district would determine fees, timing, fund appropriations, etc.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2428. SHOPPING CART COLLECTION AREAS.

When there are businesses that utilize shopping carts, including grocery and home improvement stores, shopping cart storage areas shall be provided throughout the parking lots. Stores that do not allow shopping carts to be taken out of the store are excepted. Shopping cart collection areas shall comply with the following:

A. Collection areas shall consist of a corral surrounded by a six inch concrete curb to prevent carts from straying into pedestrian and automobile paths;

B. Highly visible signage shall be provided to mark a collection area's location; and

C. Collection areas shall be distributed throughout the parking lot.

D. Additional outdoor collection areas shall be provided proximate to the store and shall be screened with a four foot wall.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2429. BICYCLE PARKING.

A. **Short-Term Bicycle Parking.** Short-term bicycle parking shall be provided in order to serve shoppers, customers, messengers, guests, and other visitors to a site who generally stay for two hours or less.

1. **Requirement Thresholds.** Short-term parking shall be provided when any of the following occur:
   a. New development;
   b. The demolition and reconstruction of a site;
   c. A new building on a developed site when the new building is more than 300 square feet. The 300 square feet shall be cumulative from the date of adoption of this Code;
   d. Building additions to existing buildings that expand the existing habitable floor area by at least 20 percent, or 2,500 square feet, whichever is less, not including Single-Unit Dwellings or Duplexes. The addition and/or expansion shall be cumulative from the date of adoption of this Code;
   e. There is an addition of 10 vehicle parking stalls or more;
   f. A Discretionary Permit is required;
   g. There is a change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District); or,
   h. If required per California Green Building Standards Code, as may be amended.
2. **Number of Spaces Required.** Refer to Table 15-2429-D.
3. **Location.**
   a. Short-term bicycle parking shall be located outside of the public right-of-way and walkways and as close to the primary entrance as vehicle parking, excepting Accessible Parking stalls, or within 35 feet of a main entrance to the building it serves, whichever is closer.
   b. **Existing Shopping Centers/Multiple Tenants.** In centers with multiple tenants, where bicycle parking becomes required because of a discretionary permit request or a change in use, the number of stalls shall be determined by the need of the subject tenant space. Parking shall be conspicuously located and shall be visible from the tenant space.
   c. **New Shopping Centers/Multiple Tenants.** In centers with multiple tenants, bicycle parking shall be distributed throughout the center. Parking shall be

conspicuously located and shall be visible from tenant spaces. While bicycle parking cannot always be within 35 feet of all tenants, it shall be located as to minimize the distance to tenant spaces to the greatest extent feasible. Satellite pads shall provide separate bicycle parking if necessary.

d. **Mixed-Use Districts or Buildings Built Proximate to the Front Property Line.** Bicycle parking may be located within the public right-of-way with approval from the Public Works Department, provided an unobstructed sidewalk width clearance of six feet is maintained for pedestrians.

4. **Vehicle Parking Reduction.** In an existing development a bicycle parking corral may replace existing vehicle parking stalls. Should a bicycle corral cause a reduction in the number of vehicle parking spaces to less than what is prescribed in this Code, an exemption (i.e., Variance or Deviation) for the reduced vehicle parking shall not be required. This reduction shall not exceed three vehicle parking stalls for centers less than 10 acres in area, and six for centers greater than 10 acres.

5. **Anchoring and Security.**

a. For each parking space required, a stationary, securely anchored rack shall be provided. Racks shall be either an inverted "U", a bike hitch, a swerve rack, or per the City's qualified product list, maintained by DARM. Racks may serve multiple bicycle parking spaces.

6. **Size and Accessibility.**

a. Each bicycle parking space shall be a minimum of 30 inches in width and eight feet in length and shall be accessible without moving another bicycle.

b. At least 30 inches of clearance shall be provided between bicycle parking spaces and adjacent walls, poles, landscaping, street furniture, drive aisles, and pedestrian ways and at least five feet from vehicle parking spaces to allow for the maneuvering of bikes.

c. Overhead clearance shall be a minimum of seven feet.

d. **Multiple Rows.** A minimum five foot aisle between each row of bicycle parking shall be provided for bicycle maneuvering beside or between each row, when multiple rows are proposed.

B. **Long-Term Bicycle Parking.** Long-term bicycle parking shall be provided in order to serve employees, students, residents, commuters, and others who generally stay at a site for longer than two hours.

1. **Requirement Thresholds.** Long-Term Bicycle Parking shall be provided when required by the California Green Building Standards Code, as may be amended.

2. **Number of Spaces Required.** Refer to Table 15-2429-D.

3. **Location.**

   a. Long-term bicycle parking must be located on the same lot as the use it serves, unless an alternative agreement is approved to the satisfaction of the Director. The signed statement shall be in the form of a covenant prepared by the City, and shall be recorded with the County Recorder.

   b. In parking garages, long-term bicycle parking shall be proximate to the entrance of the garage.

4. **Covered Stalls.** Covered stalls shall be:

   a. Inside buildings, in a bike room or clearly designated area;

   b. Under roof overhangs or awnings;

   c. In bicycle lockers; or

   d. Within or under other structures.

5. **Anchoring and Security.** Long-term bicycle parking must be in:

   a. A permanently anchored rack or stand inside a building. Racks shall be either an inverted "U", a bike hitch, a swerve rack, or per the City's qualified product list. Racks may serve multiple bicycle parking spaces;

   b. An enclosed permanently anchored bicycle locker; or

   c. A fenced, covered, locked, or guarded bicycle storage area or room.

6. **Size and Accessibility.**

   a. Each bicycle parking space shall be a minimum of 30 inches in width and six feet in length and shall be accessible without moving another bicycle.

   b. At least 30 inches of clearance shall be provided between bicycle parking spaces and adjacent walls, poles, landscaping, street furniture, drive aisles, and pedestrian ways and at least five feet from vehicle parking spaces.

7. **Vehicle Parking Reduction.** Should an applicant seek to install bicycle lockers for an existing development, they may reduce vehicle parking to less than the prescribed number in this Code in order to accommodate them. In such an instance, an exemption (i.e., Variance or Deviation) for the reduced vehicle parking shall not be required.

C. **Showers and Changing Rooms.** In the O District, showers and changing room(s) for employees that engage in active modes of transportation are required per the following standards.

1. **Requirement Thresholds.** New office development greater than 20,000 square feet. The 20,000 square foot minimum applies to single buildings.

2. **Number of Showers Required.** Refer to Table 15-2429-C-2.

TABLE 15-2429-C-2: EMPLOYEE SHOWERS REQUIRED FOR NEW CONSTRUCTION	
Land Use Classification	*Showers and Changing Rooms Required*
Office	Less than 20,000 sq. ft.: None More than 20,000 sq. ft.: 1

D. **Number of Spaces Required.** The following table identifies the number of short-term and long-term bicycle parking stalls required per use.

TABLE 15-2429-D: REQUIRED ON-SITE BICYCLE PARKING SPACES		
Land Use Classification	*Short-Term Spaces*	*Long-Term Spaces*
Residential Use Classifications		
Multi-Unit (more than 15 units)	None	1 per 15 units. Not required if units provide individual garages
Dormitory/student housing	None	1 per 4 residents. Not required if units provide individual garages
Public and Semi-Public Use Classifications		
Schools (e.g., public, private, charter)	Per the California Green Building Standards	Per the California Green Building Standards Code
Colleges and Trade Schools, Public or Private (excluding dormitories, see above)	1 per 10,000 sq. ft. of building area	1 per 20,000 square feet of building area
Community and Religious Assembly & Cultural Institutions	2 per 3,000 sq. ft. of assembly area Or Per the California Green Building Standards Code, whichever is greater	Per the California Green Building Standards Code
Stadiums	Per the California Green Building Standards Code	Per the California Green Building Standards
Parks and Open Space (excluding pocket parks)	Per project review	None
Commercial Use Classifications		
Retail Sales and Service	2, or 1 per 10,000 sq. ft. of net building area whichever is greater Or Per the California Green Building Standards, whichever is greater	Per the California Green Building Standards Code
Office	2, or 1 per 25,000 sq. ft. of net building area whichever is greater Or Per the California Green Building Standards Code, whichever is greater	Per the California Green Building Standards
Hotels/Motels	Per the California Green Building Standards Code	Per the California Green Building Standards Code
Parking Structures	None	1 space per 75 vehicle spaces
Employment Use Classifications		
Manufacturing and Production	Per the California Green Building Standards Code	Per the California Green Building Standards Code
Warehousing and Storage	Per the California Green Building Standards Code	Per the California Green Building Standards Code
Personal Storage	None	None

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 38, 39, eff. 1-18-19; Am. Ord. 2025-024, §§ 50, 51, eff. 7-27-25).

SEC. 15-2430. ON-SITE LOADING.

A. **Applicability.** Loading spaces are required when a building is to be occupied by a manufacturing establishment, storage facility, warehouse facility, retail store, eating and drinking, wholesale store, market, hotel, hospital, mortuary, laundry, dry-cleaning establishment, or other use similarly requiring the receipt or distribution by vehicles or trucks of material or merchandise per Table 15-2430-A when any of the following are met:

1. Every new building;

2. When a building is enlarged by 20 percent or more or 2,500 square feet, whichever is less. This standard shall be cumulative from the date of adoption of this Code;

3. There is a change from one category of use classification to another (i.e., changing from a Commercial Use Classification to a Residential Use Classification as identified in the Use Regulation table of the Base District.)

4. **Exemption.** This section does not apply to Downtown Districts.

TABLE 15-2430-A: REQUIRED LOADING SPACES	
Square Footage	*Required Loading Spaces*
0—6,999	0
7,000—40,000	1
40,001—90,000	2
90,001—150,000	3
150,001—230,000	4
230,001+	1 per each additional 100,000 square feet or portion thereof.

B. **Multi-Tenant Buildings.** The square footage of the entire building shall be used in determining spaces for multi-tenant buildings. A common loading area may be required, if each tenant space is not provided a loading area. Drive-in, roll-up doors for multi-tenant industrial projects may be substituted for required loading areas.

C. **Reduction in Number of Loading Spaces Required.** The loading space requirement may be waived if the Director finds that the applicant has satisfactorily demonstrated that due to the nature of the proposed use, such loading space will not be needed.

D. **Additional Loading Spaces Required.** The required number of loading spaces may be increased to ensure that trucks will not be loaded, unloaded, or stored on public streets. Such requirement shall be based on the anticipated frequency of truck pickups and deliveries and of the truck storage requirements of the use for which the on-site loading spaces are required.

E. **Location.**

1. All required loading berths shall be located on the same site as the use served.

2. No loading berth for vehicles over two-ton capacity shall be closer than 50 feet to any property in a Residential District unless completely enclosed by building walls, or a uniformly solid fence or wall, or any combination thereof, not less than 10 feet in height.

3. No permitted or required loading berth shall be located within 25 feet of the nearest point of any street intersection.

F. **Access.** When the lot upon which the loading spaces are located abuts any alley, such loading space shall adjoin or have access from said alley.

G. **Dimensions.** Loading spaces shall be not less than 12 feet in width, 40 feet in length, with a 14 foot vertical clearance.

H. **Lighting.** Loading areas shall have lighting capable of providing adequate illumination for security and safety. Lighting standards shall be energy efficient and in scale with the height and use of adjacent uses in compliance with Section 15-2508, Lighting and Glare.

I. **Driveways for Ingress and Egress and Maneuvering Areas.** Each on-site loading space required by this section shall be provided with driveways for ingress and egress and maneuvering space of the same type and meeting the same criteria required for on-site parking spaces. Truck-maneuvering areas shall not encroach into required parking areas,

travelways, or street rights-of-way. This requirement may be modified if the Director finds that sufficient space is provided so that truck-maneuvering areas will not interfere with traffic and pedestrian circulation.

J. **Loading Bays.** The following apply to commercial and office districts, or any non-residential district that abuts a residential district.

1. Loading bays and roll-up doors shall be painted to blend with the exterior structure walls and generally located on the rear of the structure.
2. Areas for loading and unloading shall be designed to avoid potential adverse noise, visual, air quality, and illumination impacts on neighboring residences. These areas shall be concealed from view of the public and adjoining land uses. Concealment and screening may be accomplished by use of any of the following, subject to the review and approval:
    a. Design the structures to enclose the loading and unloading service areas thereby providing for their concealment; or
    b. A perimeter eight foot high solid grout walls for depressed loading areas, 12 feet for at-grade loading areas, to be architecturally coordinated with the main structures and on-site landscaping. Additional heights may be required to mitigate noise.
3. Loading bays shall have signage requiring drivers to limit idling to five minutes or less.
4. When it is not possible or desirable to locate the loading/unloading facilities at the rear of the structures, the loading docks and loading doors shall be located on the side of the structures and shall be screened from the public street rights-of-way by a suitable combination of walls and landscaped berms.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 40, eff. 1-18-19).

ARTICLE 25 PERFORMANCE STANDARDS

Sec. 15-2501. Purpose.
Sec. 15-2502. Applicability.
Sec. 15-2503. General Standard.
Sec. 15-2504. Location of Measurement for Determining Compliance.
Sec. 15-2505. Maintenance.
Sec. 15-2506. Noise.
Sec. 15-2507. Vibration.
Sec. 15-2508. Lighting and Glare.
Sec. 15-2509. Shadow Casting.
Sec. 15-2510. Odors.
Sec. 15-2511. Heat and Humidity.
Sec. 15-2512. Air Contaminants.
Sec. 15-2513. Liquid or Solid Waste.
Sec. 15-2514. Fire and Explosive Hazards.
Sec. 15-2515. Electromagnetic Interference.
Sec. 15-2516. Radioactivity.

SEC. 15-2501. PURPOSE.

The purpose of this article is to:

A. Establish permissible limits and allow objective measurement of nuisances, hazards, and objectionable conditions;

B. Ensure that all uses will provide necessary control measures to protect the community from nuisances, hazards, and objectionable conditions;

C. Protect industry from arbitrary exclusion from areas of the city; and

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2502. APPLICABILITY.

The minimum requirements in this article apply to land uses in all zoning districts, unless otherwise specified.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2503. GENERAL STANDARD.

Land or buildings shall not be used or occupied in a manner creating any dangerous, injurious, or noxious conditions, chemical fires, explosive, blight, or other hazards that could adversely affect the surrounding area.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2504. LOCATION OF MEASUREMENT FOR DETERMINING COMPLIANCE.

Measurements necessary for determining compliance with the standards of this article shall be taken at the property line of the establishment or use that is the source of a potentially objectionable condition, hazard, or nuisance.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2505. MAINTENANCE.

Sites and facilities shall be maintained free of refuse, debris, or other accumulated matter and shall be kept in good repair at all times.

A. **Fences, Hedges, and Walls.** Collectively referred to as fences, shall be maintained in good repair, including painting, if required, and shall be kept free of litter or advertising. Where hedges are used as screening, trimming or pruning shall be employed as necessary to maintain the maximum allowed height. Fences shall be maintained and shall stand upright and shall not lean.

B. **Signs.** Every sign displayed within the city, including exempt signs, shall be maintained in good physical condition and shall comply with adopted regulations. All defective or broken parts shall be replaced. Exposed surfaces shall be kept clean, in good repair, and painted where paint is required.

C. **Landscaping/Yards.** All planting and other landscape elements shall be permanently maintained in good growing condition. Such maintenance shall include, where appropriate, pruning, mowing, weeding, cleaning, fertilizing, and regular watering. Wherever necessary, plantings shall be replaced with other plant materials to insure continued compliance with applicable landscaping requirements. Yards shall be maintained free of refuse, debris, rubbish, or other accumulated matter and/or materials, and shall be maintained clean. Grass shall not exceed six inches in height.

D. **Trees.** Trees shall be maintained by property owners to be free from physical damage or injury arising from lack of water, chemical damage, accidents, vandalism, insects, and disease. Any tree showing such damage shall be replaced with another tree.

E. **Parking Lots.** Parking lots, including landscaped areas, driveways, and loading areas, shall be maintained free of refuse, debris, or other accumulated matter and shall be kept in good repair at all times.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2506. NOISE.

The provisions of this section apply to noise sources resulting from and relating to new development or the expansion of a use or activity. Should there be a conflict between this section and any rule or regulation set forth in an airport plan, the airport plan shall govern. Exceptions to this section are listed in Subsection G. Noise-Related Definitions are located in Section 15-6802. All projects are subject to FMC Chapter 10, Article 1, Noise Regulations.

A. **Acoustic Study.**

1. An acoustic study shall be required for any proposed project which could create or be subject to noise exposure in excess of the standards set by Tables 15-2506-B and 15-2506-C. Noise attenuation measures determined from the results of the acoustic study shall be applied in order to meet said standards.

2. An acoustic study shall also be required when a project proposes to be located in an area where existing and/or future transportation-related noise exposure levels are identified as requiring study in Table 15-2506-C.

3. Any required acoustic study shall be paid for by the project applicant and shall be prepared by a qualified acoustical consultant as determined by, and managed under the supervision of, the Review Authority.

B. **Transportation Noise Standards.** The standards listed in Table 15-2506-B represent maximum allowable noise exposure from transportation-related (vehicles and trains) noise sources.

TABLE 15-2506-B: NOISE EXPOSURE FROM TRANSPORTATION NOISE SOURCES

	Maximum Exterior Noise Level[1, 2]	*Maximum Interior Noise-Level*	
Noise-Sensitive Land Use	*(Ldn/CNEL, dB)*	*(Leq, dB)*	
Residential	65[3]	45	-
Transient Lodging	65[3]	45	-
Medical Care Facility	65[3]	45	-
Religious Assembly Facility, Meeting Hall	65[3]	-	45
Theatre, Auditorium	-	-	35
Office Building	-	-	45
School, Library, Museum	-	-	45
Other Noise-Sensitive Uses	As determined by the Review Authority		

Notes:

1. Exterior noise areas
hg;Exclude: a) front and side yards and b) outdoor areas for projects along Bus Rapid Transit (BRT) corridors and/or within Activity Centers (where application of the standards will be detrimental to the realization of mixed-use, multi-modal oriented-objectives).
Include: a) rear yards and courtyards and b) balconies or roof decks (not adjacent to BRT), if they are included in on-site open space calculations.
2. Where the location of exterior areas is unknown or not applicable, the exterior noise level standard shall be applied at the property line.
3. While 65 db is the maximum level, projects should strive to reach 60 db.

C. **Land Use Compatibility for New Development Proposed near Transportation Noise Sources.** Table 15-2506-C establishes the range of acceptable and unacceptable transportation noise exposure levels in order to determine whether a project is allowed to be sited near a transportation noise source and if noise attenuation measures would be required.

1. **A: Satisfactory.** The project may be permitted without requiring noise attenuation.

2. **B: Analysis Required.** The project is required to provide an analysis that details noise reduction measures that shall be integrated into the project design in order to reduce noise exposure to a conforming level.

3. **C: Acoustic Study Required.** The project is required to perform an acoustic study (see Subsection A of this section) and incorporate the resulting noise attenuation measures to reduce noise exposure to a conforming level.

4. **D: Not Allowed.** The project shall not be permitted.

5. **E: Restricted.** Only the specified project types shall be permitted.

TABLE 15-2506-C: LAND USE COMPATIBILITY FOR NEW DEVELOPMENT PROPOSED NEAR TRANSPORTATION NOISE SOURCES		
Noise-Sensitive Land Use	*Day/Night Average Sound Level (Ldn or CNL, dB)*	*Requirements and Limitations*
Residential; Transient Lodging; Medical Care Facility; Religious Assembly Facility, Meeting Hall; School, Library, Museum	Less than 65	A: Satisfactory
	65 to 70	B: Analysis and integration of noise reduction measures in project design
	70 to 75	C: Acoustic study and noise attenuation measures required
	Over 75	D: Not allowed
Theater, Auditorium, Concert Hall, Amphitheater	Less than 70	B: Analysis and integration of noise reduction measures in project design
	Over 70	D: Not allowed
Office Building	Less than 70	A: Satisfactory
	70 to 75	B: Analysis and integration of noise reduction measures in project design
	Over 75	C: Acoustic study and noise attenuation measures required
Industrial	Less than 75	A: Satisfactory
	Over 75	C: Acoustic study and noise attenuation measures required
Outdoor sports and recreation, parks	Less than 65	A: Satisfactory
	65 to 80	C: Acoustic study and noise attenuation measures required; avoid uses involving concentrations of people or animals
	Over 80	E: Limited to open space; avoid uses involving concentrations of people or animals

D. **Stationary Noise Standards.**

1. New or expanded development of noise-sensitive uses shall not be permitted if noise levels, due to existing stationary noise sources, would exceed the standards of Table 15-2506-D. Such projects shall be permitted with the incorporation of noise attenuation measures stipulated in an acoustic study per Subsection A to reduce the noise exposure to compliant levels.
2. New or expanded development of major noise-generating stationary uses shall not be permitted if noise levels impinging on existing adjacent noise-sensitive uses would exceed the standards of Table 15-2506-D. Such projects shall be permitted with the incorporation of noise attenuation measures stipulated in an acoustic study per Subsection A to reduce the noise exposure to compliant levels.
3. The Director shall determine uses that qualify as "noise-sensitive."
4. When ambient noise levels exceed or equal the levels in this table, mitigation shall only be required to limit noise to the ambient plus five dB.

TABLE 15-2506-D: NOISE EXPOSURE FROM STATIONARY NOISE SOURCES[1]		
	Daytime 7:00 am—10:00 pm	*Nighttime 10:00 pm—7:00 am*
Hourly Equivalent Sound Level (Leq), dBA	50	45

TABLE 15-2506-D: NOISE EXPOSURE FROM STATIONARY NOISE SOURCES[1]		
	Daytime 7:00 am—10:00 pm	*Nighttime 10:00 pm—7:00 am*
Maximum Sound Level (Lmax), dBA	70	60
Notes: 1. As determined at outdoor activity areas. Where the location of outdoor activity areas is unknown or not applicable, the noise exposure standard shall be applied at the property line of the receiving land use.		

E. **Best Available Technology.** New noise sources shall use the best available control technology to minimize noise emissions.

F. **Noise Attenuation Measures.** Any project subjected to an acoustic study may be required, as a condition of approval, to incorporate noise attenuation measures deemed necessary to ensure that noise standards are not exceeded.

1. Noise attenuation measures identified in an acoustic study shall be incorporated into the project to reduce noise impacts to satisfactory levels.

2. Emphasis shall be placed upon site planning and project design measures.

3. Operation-related measures may be incorporated, such as regulating the hours of operation, deliveries, etc.

4. The use of noise barriers (i.e. walls) shall be considered only after all feasible design-related and operation-related noise measures have been incorporated into the project.

G. **Noise Barriers.** When noise attenuation measures require the construction of a noise barrier to reduce overall noise levels, it shall comply with the following standards:

1. The noise barrier shall be a masonry block or concrete wall. The Review Authority may approve new wall materials that become available in the future for use as an alternative to a masonry block or concrete wall based on its proven comparable properties for durability, sound, light, and glare attenuation.

2. Topography, berming, and other alternative methods of mitigating the nuisance of noise and light might be considered and required at time of project review.

3. The additional standards represented in Table 15-2506-G shall apply for noise barriers that are used to mitigate noise from vehicles and trains.

TABLE 15-2506-G: NOISE BARRIER MINIMUM STANDARDS		
Overall Height of Wall	*Earth Berm*	*Setback from Major Streets and railroad tracks (all streets require a min. 10 ft. setback. This standard shall be added to the min.[1])*
Less than 9 ft.	No requirement	No additional setback
9 ft. or taller (max. of 15 ft.)	6 inches for every ft. of wall height above 9 ft.	Additional ft. for every ft. that exceeds 10 ft.
1. A greater setback shall be provided if required by an Overlay District or a trail.		

H. **Exemptions.** The following are exempted from conformance to the noise standards of this section.

1. **Noise-Sensitive Sites Adjacent to Elevated Noise-Generating Land Uses.** In instances where noise-generating land uses are elevated 12 feet or more (i.e., elevated State Routes) from the natural grade of a noise-sensitive site, and the Review Authority determines that a masonry wall would not mitigate outdoor noise to acceptable levels, a wall may be waived, however the interior of the noise-sensitive use shall not exceed the indoor space standards in Table 15-2506-B.

2. **Emergencies.** The emission of sound for the purpose of alerting persons to the existence of an emergency, or the emission of sound in the performance of emergency work.

3. **Warning Devices.** Warning devices necessary for the protection of the public safety, such as police, fire, and ambulance sirens.

4. **Special Events.** Occasional outdoor gatherings, public dances, shows, and sporting and entertainment events, provided that such events are conducted pursuant to a permit or license issued by the City.

5. **Municipal Solid Waste Collection.** Collection of solid waste, vegetative waste, and recyclable materials by the City or under contract with the City.

6. **Public Works Construction Projects, Maintenance, and Repair.** Street, utility, and similar construction projects undertaken by or under contract to the City, or the State of California or a public utility regulated by the California Public Utilities Commission, as well as maintenance and repair operations conducted by such parties, including street sweeping, debris and litter removal, removal of downed wires, restoring electrical service, repairing traffic signals, unplugging sewers, vacuuming catch basins, repairing of damaged poles, removal of abandoned vehicles, repairing of water hydrants and mains, gas lines, oil lines, sewers, storm drains, roads, and sidewalks.

7. **Schools.** School bells and school-sanctioned outdoor activities such as pep rallies, sports games, and band practice.

8. **Religious Assembly Facilities and Other Similar Organizations.** Unamplified bells, chimes, or other similar devices used by religious assembly facilities and other houses of religious worship, as such devices are played between the time period of 7 a.m. and 10 p.m. and the playing period does not exceed five minutes in any one hour.

9. **Agricultural.** Noise resulting from Crop Cultivation.

10. **Public Utility Facilities.** Facilities including, but not limited to, 60-cycle electric power transformers and related equipment, sewer lift stations, municipal wells, and pumping.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2507. VIBRATION.

No vibration shall be produced that is transmitted through the ground and is discernible without the aid of instruments by a reasonable person at the lot lines of the site. Vibrations from temporary construction, demolition, and vehicles that enter and leave the subject parcel (e.g., construction equipment, trains, trucks, etc.) are exempt from this standard. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2508. LIGHTING AND GLARE.

Activities, processes, and uses shall be operated in compliance with the following provisions:

A. **Mechanical or Chemical Processes.** Light or glare from mechanical or chemical processes, high-temperatures processes such as combustion or welding, or from reflective materials on buildings or used or stored on a site, shall be shielded or modified to prevent emission of adverse light or glare onto other properties.

B. **Lighting.** Lights shall be placed to deflect light away from adjacent properties and public streets, and to prevent adverse interference with the normal operation or enjoyment of surrounding properties. Direct or sky-reflected glare from floodlights shall not be directed into any other property or street. Except for public street lights and stadium lights, no light, combination of lights, or activity shall cast light onto a residentially zoned property, or any property containing residential uses, exceeding one-half foot-candle.

C. **Glare.**

1. No use shall be operated such that significant, direct glare, incidental to the operation of the use is visible beyond the boundaries of the lot where the use is located.

2. Windows shall not cause glare that may disrupt adjoining properties, traffic on adjacent streets, etc.

3. Glare or heat reflected from building materials shall be mitigated so as to not disrupt surrounding properties.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2509. SHADOW CASTING.

A. When a structure will exceed 50 feet in height, the developer must submit an analysis of the shadows that the structure will cast on planned or existing residential property.

1. The shadow analysis should demonstrate the maximum extent of the shadows cast by a building through at least the four quarters of the year, between one hour after sunrise and one hour before sunset.

2. If the analysis indicates that the project shadow does not reach or significantly impact any residential properties, no further review of the project shadow will be

required. However, if there is indication that the shadow would significantly impact residential properties, alternative designs or other mitigation measures shall be presented.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2510. ODORS.

No use, process, or activity shall produce objectionable odors that are perceptible without instruments by a reasonable person at the lot lines of a site. Odors from temporary construction, demolition, and vehicles that enter and leave the subject parcel (e.g., construction equipment, trains, vehicle emissions, trucks, etc.) are exempt from this standard.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2511. HEAT AND HUMIDITY.

Uses, activities, and processes shall not produce any emissions of heat or humidity that cause distress, physical discomfort, or injury to a person of reasonable sensitivity or interfere with ability to perform work tasks or conduct other customary activities. In no case shall heat emitted by a use cause a temperature to noticeably increase on another property.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2512. AIR CONTAMINANTS.

Uses, activities, and processes shall not operate in a manner that emit dust, fumes, smoke, or particulate matter adverse to the public health, safety, or general welfare of the community or detrimental to surrounding properties or improvements.

A. **Compliance.** Sources of air pollution shall comply with rules identified by the Environmental Protection Agency (Code of Federal Regulations, Title 40), the California Air Resources Board, and the San Joaquin Valley Air Pollution Control District (SJVAPCD).

B. **SJVAPCD Permits.** Applicants shall be responsible for obtaining permits from the SJVAPCD.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2513. LIQUID OR SOLID WASTE.

A. **Discharges to Water or Sewers.** Liquids and solids of any kind shall not be discharged, whether directly or indirectly, into a public or private body of water, sewage system, watercourse, or into the ground, except in compliance with applicable regulations of the California Regional Water Quality Control Board (California Administrative Code, Title 23, Chapter 3 and California Water Code, Division) and as may be permitted by the City.

B. **Solid Wastes.** Solid wastes shall be handled and stored so as to prevent nuisances, health, safety, and fire hazards; and to facilitate recycling. Any solid wastes that would be conducive to the breeding of rodents and/or insects may only be stored outside in closed containers.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2514. FIRE AND EXPLOSIVE HAZARDS.

A. All activities, processes and uses involving the use of, or storage of flammable and explosive materials shall be provided with adequate safety devices against the hazard of fire and explosion in accordance with the Fire Code. Fire-fighting and fire suppression equipment and devices standard in industry shall be approved by the Fire Department. All incineration is prohibited with the exception of those substances such as, but not limited to, chemicals, insecticides, hospital materials and waste products, required by law to be disposed of by burning, and those instances wherein the Fire Department deems it a practical necessity.

B. The use, handling, storage and transportation of hazardous and extremely hazardous materials shall comply with the provisions of the California Hazardous Materials Regulations and the California Fire and Building Code, as well as the laws and regulations of the California Department of Toxic Substances Control and the County Environmental Health Agency. Activities, processes, and uses shall not generate or emit any fissionable or radioactive materials into the atmosphere, a sewage system or onto the ground.

C. The use, handling, transportation, and storage of hazardous and extremely hazardous materials shall comply with the laws and regulations of Occupational Safety and Health Administration (OSHA), United States Department of Transportation (US DOT) and Environmental Protection Agency (EPA). Also add a requirement for compliance with all applicable federal and State laws, including, but not limited to, the Hazardous Materials Transportation Act of 1975, as may be amended.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2515. ELECTROMAGNETIC INTERFERENCE.

No use, activity, or process shall cause electromagnetic interference with normal radio and television reception in any Residential District, or with the function of other electronic equipment beyond the lot line of the site in which it is situated. All uses, activities, and processes shall comply with applicable Federal Communications Commission regulations. This restriction shall not apply to activities related to amateur radio within the meaning of Title 47 of the Code of Federal Regulations, Part 97, et. seq.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2516. RADIOACTIVITY.

No radiation of any kind shall be emitted that is dangerous to humans or other animals. This restriction shall not apply to radiation emitted in the course and scope of medical uses subject to the requirements of the Health and Safety Code (Sections 114840 through 114896).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 26 SIGNS

Sec. 15-2601. Purpose.
Sec. 15-2602. Applicability.
Sec. 15-2603. Permits Required.
Sec. 15-2604. Exempt Signs.
Sec. 15-2605. Prohibited Signs.
Sec. 15-2606. Rules for Sign Measurement.
Sec. 15-2607. General Standards.
Sec. 15-2608. Permitted Sign Types by District.
Sec. 15-2609. Signage Allowances for Specific Uses.
Sec. 15-2610. Standards for Specific Sign Types.
Sec. 15-2611. Other Signs.
Sec. 15-2612. Master Sign Program (MSP).
Sec. 15-2613. Historic Signs.
Sec. 15-2614. Electronic Copy.
Sec. 15-2615. Non-Conforming Signs.
Sec. 15-2616. Maintenance of Signs.
Sec. 15-2617. Removal of Signs.

SEC. 15-2601. PURPOSE.

The purpose of this article is to regulate signs as an information system that expresses the character and environment of Fresno and implements the General Plan, consistent with State and federal law. These regulations recognize the importance of business activity to the economic vitality of the city as well as the need to protect the visual environment. Specifically, these regulations are intended to:

A. Provide adequate opportunity for the exercise of the free speech rights, while balancing that opportunity with other community and public interests;

B. Provide minimum standards to safeguard life, health, property, public welfare, and traffic safety by controlling the design, quality of materials, construction, illumination, size, location, and maintenance of signs and sign structures;

C. Preserve and enhance the visual attractiveness of the city, for residents, businesses, and visitors;

D. Protect and enhance property values and community appearance by encouraging signs that are compatible with the architectural style, character, and scale of the building to which they relate and with adjacent buildings and businesses;

E. Restrict signs that may create visual clutter or a nuisance to nearby properties, violate privacy, or create hazards or unreasonable distractions for pedestrians and drivers;

F. Ensure that commercial signs are accessory or auxiliary to a principal business or establishment on or near the same premises, rather than functioning as general advertising for hire; and

G. Prohibit signs that may cause traffic or pedestrian safety hazards or interfere with ingress and egress.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2602. APPLICABILITY.

This article regulates all signs on public and private property, except where expressly stated otherwise. No sign shall be erected or maintained anywhere in the city except in conformity with this article.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2603. PERMITS REQUIRED.

Permits shall be required as follows, unless otherwise stated.

A. **Building Permit Required.** No person shall erect, alter, repair, or relocate any sign without first obtaining any required building permit for such work from the Building Official. No permit shall be issued until the Building Department determines that such work is in accordance with the building or electrical codes of the City. Except as otherwise provided, permits required by this article will be issued pursuant to the same terms and according to the same fee schedule as all other building permits.

B. **Zone Clearance Required.** Subject to Article 51, Zone Clearance, the Planning Division will review applications for building permits for signs and determine if the proposed signs are consistent with the requirements contained in this article.

C. **Encroachment Permit.** Signs that project over a public street or sidewalk shall be subject to an Encroachment Permit approval by the Public Works Department pursuant to the provisions of Chapter 13 of the Municipal Code.

D. **Master Sign Program.** A Master Sign Program is required for signage proposals as specified in Section 15-2612, Master Sign Program (MSP).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2604. EXEMPT SIGNS.

The following signs are exempt from the permit requirements of this article and do not count toward the total sign area limit for a site, provided that they conform to applicable standards:

A. **Address Signs and Name Plates.** Each residence and establishment may post one address sign and one name plate, with display faces per Article 62, Street Names & Addressing.

B. **Barber Poles.** Barber poles less than 18 inches in height.

C. **City Property/Bus Stop Signs.** Signs placed by the City on property or public right-of-way held by the City, subject to any applicable environmental review pursuant to CEQA.

D. **Equipment Signs.** Signs incorporated into permitted displays, machinery, or equipment by a manufacturer, distributor, or vendor and identifying or advertising only the product or service dispensed by the machine or equipment, such as signs customarily fixed to automated teller machines (ATMs) and gasoline pumps.

E. **Holiday Decorations.**

F. **Interior Graphics or Signage.** Visual communicative devices that are located entirely within a building or other enclosed structure and are not visible from the exterior thereof, or located on the inside of a building and at least three feet from the window.

G. **Official Notices.** Official and legal notices used by any court, public body, person, or officer in the performance of a public duty; any legal or official notices posted by a utility or other quasi-public agency; temporary or permanent signs erected and maintained by or required by the City, State, or federal government, or government transportation or transit agencies, for the purpose of providing official governmental information to the general public, including, but not limited to: traffic direction, city entrance, or for designation of direction to any school, hospital, historical site, or public service, property, or facility; public hearing or meeting notices; seismic warning signs; or other signs required or authorized by law.

H. **Public Carrier Graphics.** Graphic images mounted on carrier vehicles such as buses, taxicabs, and limousines that legally pass through the city.

I. **Operational Window Signs.** Window signs limited to the hours of operation, address, occupancy, and emergency information, subject to the following standards:

1. **Limitations on Placement.** Operational window signs shall not be mounted or placed on windows higher than the second story.

2. **Maximum Area.** The maximum area of exempt window signage shall not exceed three square feet in area.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2605. PROHIBITED SIGNS.

Unless expressly allowed by another subsection of this article or other applicable law, the following sign types, locations, and materials are prohibited:

A. **Animated Signs.** Animated, flashing, blinking, reflecting, revolving, or other similar signs, or signs with visibly moving or rotating parts or visible mechanical movement of any kind, rolling or running letters or message.

B. **Outdoor Advertising Signs.** Billboards and any other off-premises outdoor advertising signs which convey a commercial message as their primary purpose. This provision, however, does not prohibit agreements to relocate presently existing, legal billboards, pursuant to Business and Professions Code Section 5412. The new

billboards which replace existing billboards may be located on City-owned property and may feature electronic copy, at the discretion of the City Manager. Replacement billboards shall comply with all applicable federal, State, and local regulations. This exception shall only apply to the City of Fresno.

C. **Signs Blocking Doors or Windows.** Signs shall not be located or installed on any door, window, or fire escape in a manner that will prevent free ingress or egress.

D. **Signs on Standpipes or Fire Escapes.** No sign shall be attached to any standpipe or fire escape, except those required by other codes.

E. **Snipe Signs.** All off-site signs, tacked, nailed, posted, pasted, glued, or otherwise attached to trees, poles, stakes, fences, trailers, temporary construction barriers, or other supporting structures.

F. **Signs in the Public Rights-of-Way.** Unless otherwise noted, no sign shall be affixed within median strips or islands, on sidewalks, trees, retaining walls, bridges, benches, traffic signals, public fences, poles or utility equipment, street lighting, utility poles, traffic signs, or traffic sign posts, supporting structures, anchor wires, or guy wires. This provision, however, does not prohibit subdivision monument signs, which shall be permitted at the discretion of the City Engineer.

G. **Signs That Produce Noise or Emissions.** Signs that produce noise or sounds that can be heard at the property line, excluding voice units at menu boards, and signs that emit visible smoke, vapor, particles, or odors.

H. **Signs Creating a Traffic Hazard or Affecting Pedestrian Safety.** Signs placed or located in such a manner as to constitute a safety hazard or to impede the public use of the public right-of-way.

1. **Exits and Entrances.** No sign shall be placed, mounted, erected, or installed in any manner that obstructs the use of any door, window, or fire escape.

2. **Sidewalks.** No sign shall be mounted or displayed in such a manner that it blocks or impedes the normal pedestrian use of public sidewalks.

3. **Intersections.** No sign shall be erected or maintained at or near any street intersection that will obstruct the free and clear vision of drivers and pedestrians. Other than traffic control signals, no sign shall be installed in the visibility triangle at intersections pursuant to Section 15-2018, Intersection Visibility.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 19, eff. 7-30-17).

SEC. 15-2606. RULES FOR SIGN MEASUREMENT.

A. **Calculation of Sign Area.** The area of an individual sign shall be calculated as follows.

1. **Single-Faced Signs.** Sign area shall include the entire area within a single continuous perimeter composed of squares or rectangles (consisting of horizontal and

vertical lines and no more than 12 corners) that enclose the extreme limits of all sign elements, including, but not limited to, sign structures or borders, written copy, logos, symbols, illustrations, and color. Supporting structures such as sign bases and columns are not included in the sign area provided that they contain no lettering or graphics except for addresses or required tags. The calculation of sign area for various types of single-faced signs is illustrated in Figure 15-2606-A.1.

FIGURE 15-2606-A.1: MEASURING SIGN AREA

2. **Double-Faced Signs.** Where two faces of a double-faced sign are parallel, or less than an interior angle of 45 degrees or less from one another, the sign area shall be computed as the area of one face. Where the two faces are not equal in size, the larger sign face shall be used. Where two faces of a double-faced sign are located more than 45 degrees from one another, both sign faces shall be counted toward sign area.

3. **Multi-Faced Signs.** On a three-faced sign, where at least one interior angle is 45 degrees or less, the area of two faces (the largest and smallest face) shall be summed to determine sign area. In all other situations involving a sign with three or more sides, sign area shall be calculated as the sum of all faces.

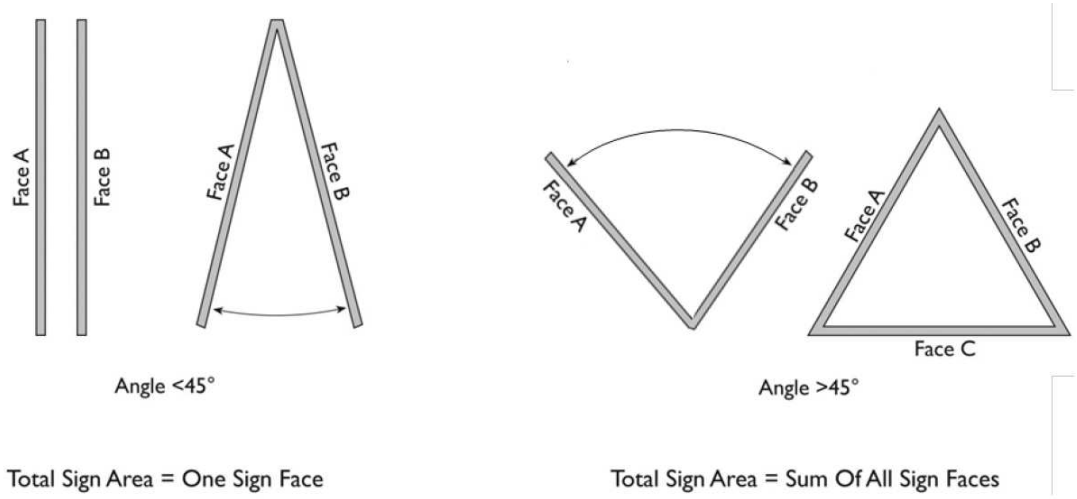


FIGURE 15-2606-A.3: DOUBLE AND MULTI-FACED SIGNS

4. **Three-Dimensional Signs.** Signs that consist of, or have attached to them, one or more three-dimensional objects (i.e., balls, cubes, clusters of objects, sculpture, or statue-like trademarks), shall have a sign area of the sum of two adjacent sides of the smallest cuboid that will encompass the sign.

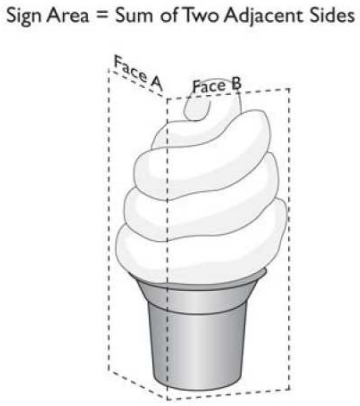


FIGURE 15-2606-A.4: THREE DIMENSIONAL SIGNS

B. **Measuring Sign Height.** The height of a sign is the vertical distance measured from the ground level directly beneath the sign to the highest point at the top of the sign

C. **Measuring Sign Clearance.** Sign clearance shall be measured as the smallest vertical distance between finished grade and the lowest point of the sign, including any framework or other embellishments.

D. **Building Frontage.** Building frontage is the building facade that directly abuts a public street, private street, parking lot driveway, or parking spaces. For buildings with two or more frontages, the length of the wall and allowable sign area shall be calculated separately for each building frontage.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2607. GENERAL STANDARDS.

A. **Identification Decal.** Every sign for which a permit is issued shall be plainly marked with the corresponding permit number issued for the sign. Tags may be displayed on signs or at the base of a structure in a visible location. Tags for freestanding or monument signs must be located on the structure between one and three feet above grade.

B. **Visibility Triangles.** No sign, permanent or temporary, flag, flagpole, etc. may be erected within the visibility triangle per Section 15-2018, Intersection Visibility.

C. **Residential and Non-Residential Interface.** Signs and flags on commercial and industrial zoned property shall be set back a minimum distance of 45 feet from a residential district.

D. **Materials and Mounting Required.**

1. **Materials.** Signs shall be made of sturdy, durable materials. Paper, cardboard, and other materials subject to rapid deterioration may only be used for temporary signs.

2. **Mounting Required.** All permanent signs shall be firmly anchored, shall comply with all requirements for public safety, and shall satisfy all applicable safety codes and all other applicable governmental enactments, rules, regulations, or policies.

E. **Message Substitution.** A non-commercial message of any type may be substituted, in whole or in part, for any duly permitted commercial message, and any on-site commercial message may be substituted, in whole or in part, for any other on-site commercial message.

1. **No Additional Approval.** Such substitution of message may be made without any additional approval, permitting, registration or notice to the City.

2. **Limitations.** This message substitution provision does not: 1) create a right to increase the total amount of signage on a parcel, lot, or land use; 2) affect the requirement that a sign structure or mounting device be properly permitted; 3) allow a change in the physical structure of a sign or its mounting device; or 4) authorize the substitution of an off-site commercial message in place of an on-site commercial message or in place of a non-commercial message.

F. **Changeable Copy.** Non-electronic changeable copy shall cover no more than 20 percent of the total sign area, except for the following uses which are allowed up to 75 percent of the maximum sign area to be changeable copy: all public and semi-public uses, indoor theaters, and fuel price signs. Copy shall not be changed more than once every 24 hours.

G. **Illumination.** The illumination of signs shall be designed, installed, and maintained to avoid negative impacts on surrounding right-of-ways and properties. The following standards shall apply to all illuminated signs:

1. **Shielding Required.** To the extent feasible, and at the discretion of the Review Authority, light sources shall be concealed or shielded to prevent or minimize light spillage, glare, momentary blindness, or other annoyance, disability, or discomfort to persons within the view of such light sources.

2. **Colored Lights.** Colored lights shall not be used at a location or in a manner so as to be confused or construed as traffic control devices.

3. **Light Sources Adjacent to Residential Areas.** Illuminated signs located adjacent to any residential area shall be controlled by a rheostat or other acceptable method to reduce glare that will create a nuisance for residential buildings in a direct line of sight to the sign.

H. **Concealed Electrical Systems.** External conduits, boxes, and other connections related to the function of a sign and associated lighting shall not be exposed. A switch disconnecting each circuit shall be placed in plain sight and near the inspection opening. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2608. PERMITTED SIGN TYPES BY DISTRICT.

The following table establishes the types of signs allowed by district.

TABLE 15-2608: PERMITTED SIGN TYPES BY ZONING DISTRICT							
Zoning District (Frontage)	*Permitted Sign Types*						
	Awning	*Monument*	*Pole*	*Projecting*	*Roof*	*Wall*	*Window*
Buffer, Residential, and Public and Semi-Public Districts							
All Districts	See Section 15-2609, Signage Allowances for Specific Uses						
Downtown Districts							
DTC	Permitted	—	—	Permitted	Permitted	Permitted	Permitted
DTG	Permitted	Permitted (1)	—	Permitted	Permitted	Permitted	Permitted
DTN	Permitted	—	—	Permitted	Permitted	Permitted	Permitted
Mixed-Use Districts							
NMX	Permitted	-	-	Permitted	Permitted	Permitted	Permitted
CMX	Permitted	Permitted	—	Permitted	Permitted	Permitted	Permitted
RMX	Permitted	Permitted	Permitted	Permitted	Permitted	Permitted	Permitted
Commercial Districts							
CMS	Permitted	—	—	Permitted	—	Permitted	Permitted
CC	Permitted	Permitted	—	Permitted	—	Permitted	Permitted
CR	Permitted	Permitted	Permitted	Permitted	—	Permitted	Permitted
CG	Permitted	Permitted	Permitted	Permitted	—	Permitted	Permitted
CH	Permitted	Permitted	Permitted	Permitted	—	Permitted	Permitted
CRC	Permitted	Permitted	Permitted	Permitted	—	Permitted	Permitted
Employment Districts							
O	Permitted	Permitted	—	Permitted	—	Permitted	Permitted
BP	Permitted	Permitted	—	Permitted	—	Permitted	Permitted
RBP	Permitted	Permitted	Permitted	Permitted	—	Permitted	Permitted
IL	Permitted	Permitted	Permitted(2)	Permitted	—	Permitted	Permitted
IH	Permitted	Permitted	Permitted(2)	Permitted	—	Permitted	Permitted

Notes:
1. Only permitted within the Downtown General (DTG) District along Mariposa Street between M Street and P Street or in conjunction with a legal non-conforming building that is set back from the sidewalk 30 feet or more.
2. Not allowed within 100 feet of a major street or residential district.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-43, § 9, eff. 12-9-16; Am. Ord. 2017-33, § 20, eff. 7-30-17).

SEC. 15-2609. SIGNAGE ALLOWANCES FOR SPECIFIC USES.

This section establishes signage allowances for specific uses. These signs are allowed in addition to the signs allowed by Zoning District in Section 15-2608, Standards for Signs by District and in Section 15-2609, Total Maximum Sign Area.

A. **Agricultural Operations.** Signs for agricultural operations conducted on parcels 20 acres or more in size may be erected subject to the following standards:

1. **Maximum Number of Signs.** One sign per street frontage.

2. **Location.** Shall be setback back a minimum of five feet from the public right-of-way.

3. **Maximum Sign Area per Sign.** 100 square feet in area.

4. **Maximum Sign Height.** 20 feet.

B. **Public and Semi-Public Uses.** Signs for Public and Semi-Public Uses may be erected subject to the following standards:

1. **Maximum Number of Signs.** One freestanding sign per street frontage plus one wall sign per building.

2. **Maximum Sign Area per Signs.** Freestanding signs shall not be more than 32 square feet in area. Wall signs shall not exceed 10 percent of the wall area.

3. **Height Limit, Freestanding Signs.** Five feet when located within a required front or street-side setback, eight feet otherwise.

4. **Illumination.** Signs may be internally illuminated.

C. **Residential Subdivisions.** Permanent entrance signs for residential areas with more than 10 residential parcels shall be permitted for the purpose of identifying a development subject to the following standards:

1. **Maximum Number of Signs.** Two signs per entrance from a public street plus one sign per street frontage with no entrance from a public street.

2. **Maximum Sign Area per Sign.** 32 square feet. In the case of a CUP, this area can be increased at the discretion of the Review Authority.

3. **Height Limit.** Eight feet when located within a required front or street side setback, 10 feet otherwise. In the case of a subdivision with a CUP, this height can be increased at the discretion of the Review Authority."

4. **Illumination.** Signs shall not be internally illuminated.

D. **Menu Display Boards.**

1. Menu displays, not exceeding two square feet in area mounted on a wall or in a window near the main entrance of establishments serving food to customers who eat on the premises. For free standing menu display boards, refer to Section 15-2728, Drive-In and Drive-Through Facilities.

E. **Service Stations.**

1. Signs on service station canopies are not to exceed 50 square feet on each side.

2. Freestanding or monument signs may provide electronic fuel prices. A freestanding and/or monument sign that is to be converted to an electronic fuel price sign shall comply with the size requirements and setbacks required by the Development Code.

3. Fuel prices shall be static and shall not be blinking, flashing, continuously changing colors, etc.

4. Prices shall not change more than once in a 24 hour period.

5. Only one electronic fuel price sign is permitted per site. The use of one electronic fuel price sign on a site shall not require a Master Sign Program.

6. Electronic numbers shall not exceed 24 inches in height.

F. **Theaters.**

1. Developments containing theaters are allowed one additional pole or monument sign with changeable copy. The maximum height is 20 feet and the maximum size is 80 square feet.

2. Theatres may provide additional walls signs. Said signs shall not exceed 200 square feet. Show times may be displayed electronically.

G. **Outdoor Scoreboards.** Outdoor scoreboards are allowed in public or private athletic complexes. Size and location shall consider safety and sensitivity to nearby uses (e.g., residential).

H. **Multi-Unit Residential, excluding MX, CMS, and DT Districts.** Permanent entrance signs for multi-unit residential complexes areas of 1 acre or more in size shall be permitted for the purpose of identifying a development subject to the following standards:

1. **Maximum Number of Signs.** Two signs per entrance from a public street plus one sign per street frontage with no entrance from a public street.

2. **Maximum Sign Area per Sign.** 32 square feet. In the case of a CUP, this area can be increased at the discretion of the Review Authority.

3. **Height Limit.** Eight feet when located within a required front or street side setback, 10 feet otherwise.

4. **Illumination.** Signs shall not be internally illuminated.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 22, eff. 10-21-16; Am. Ord. 2017-33, § 22, eff. 7-30-17; Am. Ord. 2018-66, §§ 41, 42, eff. 1-18-19; Am. Ord. 2025-024, § 52, eff. 7-27-25).

SEC. 15-2610. STANDARDS FOR SPECIFIC SIGN TYPES.

This section establishes location and other general standards for specific sign types that apply to all areas where such signs are permitted. Additional standards applicable to these signs in specific zoning districts or associated with specific uses are located in Sections 15-2608, Standards for Signs by District, and 15-2609, Signage Allowances for Specific Uses.

A. **Awning and Canopy Signs.** Signs painted or printed on awnings, mounted to canopies, or similar features or structures are subject to the following standards:

1. **Location.** Awnings/canopies that display signage shall be located on the ground floor of buildings.

2. **Maximum Sign Area Per Sign.** 10 square feet or 25 percent of the surface area of the awning, whichever is less. Signs mounted to canopies shall be no taller than 24 inches.

3. **Minimum Sign Clearance.** Eight feet.

4. **Illumination.** Internal illumination of awnings is prohibited.

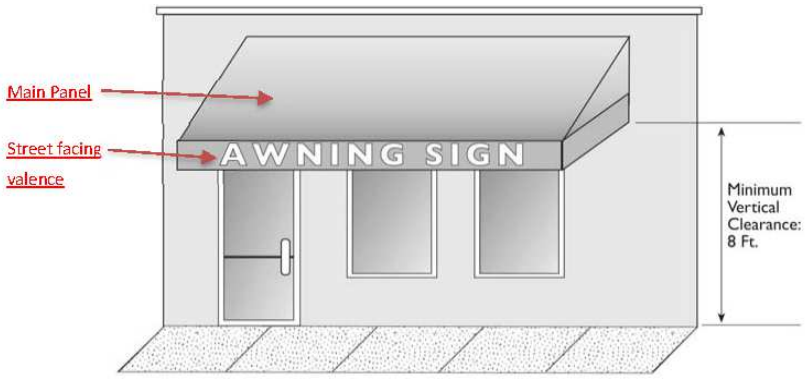


FIGURE 15-2610-A: AWNING SIGN

FIGURE 15-2610-B: CANOPY SIGN

B. **Pole Signs.** Pole signs are subject to the following standards:

1. **Maximum Number.** One per 600 feet of street frontage.
2. **Maximum Sign Area per Sign.** The sign area shall not exceed 80 square feet. In cases in which a pole sign of more than 20 feet in height is permitted per the table in subsection B-4 below, the maximum sign area shall be determined at the discretion of the Review Authority.
3. **Minimum Separation.** Pole signs shall have a minimum separation of 75 feet from any other pole sign.
4. **Required Setback.** Signs shall be setback back a minimum of ten feet from the property line. No pole sign is permitted within 660 feet of the nearest edge of any travel lane of Freeway 41, Freeway 180, Freeway 168, or any future freeway which may be opened to public travel, if any said sign is visible from any part of such travel lane.

5. **Maximum Height.** Maximum height of pole signs shall be based on the gross floor area of the habitable, enclosed, non-residential structures on the subject parcel and the classification of the adjacent or nearest street as follows:

Gross square footage	*Classification of Street*			
	Freeway	*Expressway*	*Arterial*	*Collector/Other*
300,000 or more	90 feet	80 feet	75 feet	50 feet
100,000 to 299,999	60 feet	50 feet	40 feet	25 feet
Less than 100,000	40 feet	30 feet	20 feet	20 feet

6. **Minimum Sign Clearance.** Eight feet.

7. **Landscaping Required.** All pole signs shall require landscaping at the base equivalent to two times the area of the sign copy.

8. **Lighting.** Lighting systems shall not exceed 100 foot Lamberts (FT-L) when adjacent to streets which have an average light intensity of less than 2.0 horizontal foot candles. When adjacent to streets with a greater average light intensity, systems shall not exceed 500 FT-L.

C. **Monument Signs.** Monument signs are subject to the following standards:

1. **Maximum Number.** One per 600 feet of street frontage.

2. **Maximum Sign Area per Sign.**

a. RMX, CR, CG, CH, and RBP districts: 60 square feet.

b. Other permitted districts: 32 square feet.

3. **Minimum Separation.** Monument signs shall have a minimum separation of 50 feet from any other monument sign.

4. **Required Setback.**

a. Five feet from the property line.

b. No monument sign is permitted within 660 feet of the nearest edge of any travel lane of Freeway 41 or any future freeway which may be opened to public travel, if any said sign is visible from any part of such travel lane.

5. **Height Limit.** Eight feet.

a. **Exception.** When permitted within a Downtown (DT) District: five feet.

6. **Lighting.** Lighting systems shall not exceed 100 foot Lamberts (FT-L) when adjacent to streets which have an average light intensity of less than 2.0 horizontal foot candles. When adjacent to streets with a greater average light intensity, systems shall not exceed 500 FT-L.

D. **Projecting Signs.** Signs under canopies or covers in conjunction with pedestrian walkways, or signs projecting from buildings are allowed, subject to the following additional standards:

1. **Maximum Number.** One per or tenant space per frontage.

2. **Maximum Sign Area Per Sign.**
   a. **Projecting Signs.**
      i. DT Districts: 150 square feet.
      ii. MX and CMS Districts: 50 square feet.
      iii. All Other Districts: 12 square feet.
   b. **Under Canopy or Awning Signs.** Eight square feet.
3. **Height Limit.**
   a. DT, MX, and CMS Districts: 10 feet above roof.
   b. All Other Districts: 12 feet above finished grade.
4. **Minimum Sign Clearance.** Eight feet.
5. **Projection Allowed.** A projecting sign cannot extend more than four feet from the building to which it is attached and shall be designed and located so as to cause no harm to street trees.
6. **Illumination.** Within DT, MX, and CMS Districts. If illuminated, Projecting Signs may be only illuminated by one of the following methods:
   a. **External Illumination.** Externally illuminated with decorative lamps mounted in a manner that does not block the view of the sign from the street or sidewalk.
   b. **Exposed Neon.** Individual letters may be internally illuminated with exposed neon tubes or a similar light source, but shall not have a translucent panel, lens, or face.
   c. **Halo.** The illumination of a sign by projecting light behind an opaque letter or emblem which results in the appearance of ring of light around the unilluminated letter or emblem.

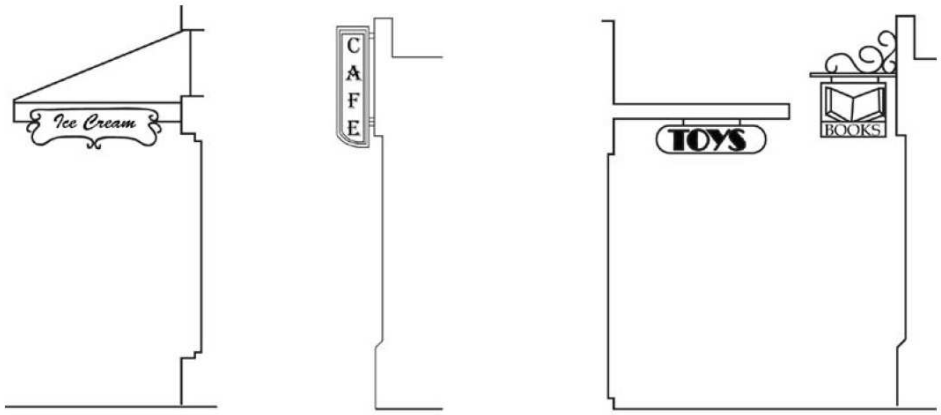


FIGURE 15-2610-D: PROJECTING SIGNS

E. **Wall Signs.** Wall signs are subject to the following standards:

1. **Maximum Number.** One per building frontage or tenant space plus one building identification sign per building frontage located on the uppermost story of a building with four or more stories.

2. **Maximum Sign Area Per Sign.** 10 percent of the wall area.

3. **Height Limit.** The top of Wall Signs shall be no higher than the following:

   a. **Downtown Districts.** Wall Signs shall not be located closer than 12 inches to the eve or parapet.

   b. **Other Districts, Buildings Which Include Residential Uses.** 20 feet or the height of the wall of the building to which the sign is attached, whichever is lower. Building identification signs located on the uppermost story of a building shall be no higher than the wall of the building to which the sign is attached.

   c. **Other Districts, Buildings Which Do Not Include Residential Uses.** The height of the wall of the building to which the sign is attached.

4. **Projection Allowed.** Wall signs shall not extend more than 12 inches beyond the face of the wall to which they are attached.

5. **Placement.**

   a. No wall sign may cover, wholly or partially, any wall opening.

   b. Wall signs shall not occupy more than 80 percent of any architectural element that they occupy (frieze, pilaster, etc.).

   c. Buildings within Downtown Districts. Wall Signs shall not be located closer than 24 inches from openings or the edge of the building façade.

6. **Orientation.** Unless a different orientation is specifically authorized, each wall-mounted sign shall be placed flat against the wall of the building.

7. **Illumination within DT and CMS Districts.** If illuminated, Wall Signs may be only illuminated by one of the following methods:

   a. **External Illumination.** Externally illuminated with decorative lamps mounted in a manner that does not block the view of the sign from the street or sidewalk.

   b. **Exposed Neon.** Individual letters may be internally illuminated with exposed neon tubes or a similar light source, but shall not have a translucent panel, lens, or face.

   c. **Halo.** The illumination of a sign by projecting light behind an opaque letter or emblem which results in the appearance of ring of light around the unilluminated letter or emblem.

FIGURE 15-2610-E: WALL SIGN

F. **Window Signs.** Window signs are subject to the following standards:

1. **Maximum Number.** One per window.
2. **Location.** Ground floor window area.
3. **Window Transparency.** A minimum 75 percent of the window shall be transparent and free of signage features. Signage inside the building is not allowed within three feet of the window.

G. **Roof Signs.** Roof signs are subject to the following standards:

1. **Maximum Number.** One per building.
2. **Maximum Sign Area Per Sign.**
   a. **Buildings Less than Five Stories in Height.** 300 square feet.
   b. **Buildings Five Stories in Height or Taller.** 500 square feet.
3. **Maximum Height.**
   a. **Buildings Less than Five Stories in Height.** 10 feet.
   b. **Buildings Five Stories in Height or Taller.** 20 feet.
4. **Projection Allowed.** Roof signs shall not project beyond the face of the building.
5. **Placement.** No roof sign may cover, wholly or partially, any wall opening.
6. **Illumination.** If illuminated, Roof Signs may be only illuminated by one of the following methods:
   a. **External Illumination.** Externally illuminated with concealed flood lighting.

b. **Exposed Neon.** Individual letters may be internally illuminated with exposed neon tubes or a similar light source, but shall not have a translucent panel, lens, or face.

c. **Halo.** The illumination of a sign by projecting light behind an opaque letter or emblem which results in the appearance of ring of light around the unilluminated letter or emblem.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 23, eff. 10-21-16; Am. Ord. 2016-43, §§ 10—12, eff. 12-9-16; Am. Ord. 2017-33, § 21, eff. 7-30-17; Am. Ord. 2018-25, §§ 22—24, eff. 6-11-18).

SEC. 15-2611. OTHER SIGNS.

A. **Sidewalk Signs.** Sidewalks signs shall comply with the standards below. A permit is not required.

1. **Quantity.** A maximum of one sidewalk sign per business is allowed.

2. **Locations.**

a. Sidewalk signs shall be located away from important paths of pedestrian travel. A five foot wide travel path shall be maintained for through pedestrian traffic, for travel from crosswalks to the primary path of through pedestrian traffic, and for travel into and out of the establishment.

b. Sidewalk signs shall not be located less than 18 inches from a curb.

c. Sidewalk signs shall not be located in front of another commercial establishment.

d. Sidewalk signs shall not be located more than 50 feet from the establishment for which it is advertising.

3. **Design:**

a. Sidewalk signs shall have no more than two sides.

b. The height of sidewalk signs shall be no less than 18 inches and no more than 36 inches.

c. The width of sidewalk signs shall be no less than 18 inches and no more than 24 inches.

d. Sidewalk signs shall not be illuminated except by ambient sources.

B. **Banners, Streamers, Moving Signs, and Inflatables.** Banners, streamers, moving signs, and inflatables (including air dancers, balloons, and similar objects) are allowed subject to Temporary Use Permit approval for establishments within Non-Residential Districts, subject to the following standards. Signs of this type do not count towards total maximum sign area.

1. **Maximum Number.** A maximum of one type of sign is allowed per Major Street frontage.

2. **Maximum Height.** If a banner is on a freestanding pole, the pole height shall not exceed 20 feet; all other signs shall not be located above the roofline.

3. **Maximum Size.** The maximum total sign area is 60 square feet.

4. **Minimum Separation.** Air-inflated signs shall have a minimum separation of one-half mile from other air-inflated signs on abutting parcels or adjacent to a Buffer or Residential Zoning District. Air inflated signs shall not exceed 20 feet in height.

5. **Duration.** No sign per this section shall be displayed for more than 30 days, and a period of 30 days must lapse before displaying another sign. Signs shall not be displayed for more than 60 total days during a calendar year.

6. **Removal.** Signs shall be removed within 24 hours of completion of the event.

C. **Temporary Subdivision Signs.**

1. **On-Site.** Temporary real estate signs advertising real property which has been subdivided for purposes of sale or lease shall be permitted, subject to the following conditions:

   a. **Maximum Number.** Four per site.

   b. **Maximum Total Sign Area.** 320 square feet plus 20 square feet for every 20 acres over 60 acres of site area.

   c. **Maximum Sign Area per Sign.** 80 square feet for sites 20 acres or less in size. 160 square feet for sites more than 20 acres in size.

   d. **Height Limit.** 16 feet.

   e. **Duration.** The sign shall remain only as long as some portion of the property advertised for sale remains unsold, or for a period of two years, whichever period is shorter. The two year period shall begin on a date determined by the Director. The Director may extend this period, but not it shall not exceed one year.

2. **Off-Site.** Temporary real estate signs directing prospective purchasers to a subdivision having lots or houses for sale may be erected and maintained on private property, with the owner's permission, provided said signs do not adversely affect the use or appearance of existing buildings or landscaping and do not create hazardous traffic conditions.

   a. **Maximum Number.** Four per subdivision.

   b. **Maximum Sign Area Per Sign.** 32 square feet.

   c. **Required Setback.** Five feet from the property line.

   d. **Location.** Within one mile of the exterior boundary of the subdivision.

   e. **Height Limit.** 12 feet.

   f. **Duration.** The sign shall remain only as long as some portion of the property advertised for sale remains unsold, or for a period of two years, whichever

period is shorter. The two year period shall begin on a date determined by the Director. The Director may provide a one-time extension, but the extended period shall not exceed one year.

3. **Subdivision Flags.** Any residential subdivision with lots for sale may display decorative flags pursuant to the following conditions:

   a. **Number and Spacing.**

      i. One flag every 60 linear feet of subdivision property along a major street (freeway, expressway, arterial, collector).

      ii. One flag every 30 linear feet of subdivision property within 660 feet of the main subdivision entrance.

      iii. One flag every 20 linear feet of the main entryway into the subdivision.

      iv. Two flags for each model home lot. These model home flags are allowed in addition to the number of flags determined by the above linear footage measurements.

   b. **Height Limit.** The maximum height of a flag pole shall be 20 feet.

   c. **Maximum Sign Area per Sign.** The maximum area of a flag shall be 24 square feet. No single dimension shall exceed eight feet.

   d. **Duration.** All pole structures and flags must be removed no later than five days after sales activity in the subdivision ceases.

   e. **Building Permit Required.** Residential subdivision flagpoles shall not be installed without issuance of a building permit, and must conform to the above listed regulations.

   f. **Standard Subdivisions.** The number, location, height, and size of flags for a standard subdivision shall be determined through Development Permit approval.

   g. **Planned Unit Developments.** The number, location, height, and size of flags for a subdivision created as a Planned Unit Development (PUD) shall be determined through the processing of a Conditional Use Permit for the PUD.

D. **Real Estate Signs.** Real estate signs are subject to the regulations below. A permit is not required. Real estate signs advertising real property for sale after being subdivided shall not be subject to this subsection, but shall be subject to Section 15-2612-C.

1. **On-Site Real Estate Signs.** On-premises signs conveying information about the sale, rental, or lease of the lot, premises, dwelling, or structure on which they are located, provided that they comply with the following standards:

   a. No more than one real estate sign per lot in residential districts, or one real estate sign per street frontage per lot in non-residential districts, is displayed at any one time;

   b. The sign or signs do not exceed an aggregate area of six square feet in residential districts or 32 square feet in non-residential districts;

c. Wall signs shall not be higher than seven feet above grade in residential districts or fifteen feet in non-residential districts. Freestanding signs shall not exceed six feet in height in residential districts or eight feet in height in non-residential districts.

d. The sign or signs are not illuminated; and

e. The sign or signs are removed within 15 days after the sale, lease, or rental of the property has been completed.

2. **Directional Signs for Open Houses.** Up to three off-site signs directing the public to "open house" events for the viewing of lots, premises, dwellings, or structures that are for sale, lease, or rent, are permitted on public or private land, provided that they comply with the following standards:

a. No sign or signs shall exceed six square feet in area, or three feet in height from finished grade.

b. The sign or signs may not be placed more than 12 hours before the start or remain more than 12 hours after the conclusion of the open house event.

c. Signs shall not inhibit circulation nor be within the visibility triangle per Section 15-2018, Intersection Visibility.

E. **Signs Associated with Projects Under Construction.** Signs located on project sites that are under construction are subject to compliance with the regulations below. A permit is not required.

1. One sign per street frontage except for projects having an excess of 500 lineal feet of street frontage, one additional sign may be allowed.

2. Signs shall be limited to a maximum of 80 square feet in area and 10 feet in height.

3. Signs shall be removed before occupancy of the site.

F. **Flags.** Free standing flagpoles or decorative flags on light posts may be installed in accordance with the following standards:

1. **Location.** Flagpoles shall not be located within any required front yard, street side or side yard setbacks. Flagpoles shall be located outside of the visibility triangle. Refer to Section 15-2018, Intersection Visibility.

2. **Maximum Flagpole Height.** The pole height shall not exceed 25 feet.

3. **Maximum Size.** The maximum total flag area is 24 square feet.

4. **Decorative Flags.** Flags may be for non-commercial purposes. Permitted flags include, but are not limited to, countries, counties, cities, etc., or decorative flags that do not contain a commercial message.

G. **Yard Signs.** Yard signs, which are typified by an impermanent nature; are usually constructed from lightweight materials (ex.: corrugated plastic); are typically located in a street-facing setback and supported by poles, stakes, or wire frames; are permitted subject to the following standards. A permit is not required.

1. **In Residential Districts.**
   a. **Maximum Size.** Signs shall not exceed six square feet in area.
   b. **Maximum Height/Width.** Signs (including support structure) shall not exceed three feet in height or width.
2. **All Other Districts.**
   a. **Maximum Size.** Signs shall not exceed 32 square feet in area.
   b. **Maximum Height/Width.** Signs (including support structure) shall not exceed eight feet in height or width.
3. **Timing.** Yard Signs relating to an event are permitted within 90 days before the event and up to 10 days after the event.
4. **Location.** Signs shall not be attached to any utility pole and such sign, or portion thereof, is not placed in any public right-of-way or on any property owned by the City. Such signs may be placed on private property with the permission of the property owner or may be attached to an existing sign on private property with the permission of the sign owner or lessee.
5. **Shall Not Obstruct.** Such signs shall not be erected in such a manner that they will, or reasonably may be expected to, interfere with, obstruct, confuse, or mislead traffic.
6. **Maintenance.** Signs not erected or maintained in accordance with the provisions of this subsection shall be the responsibility of the owner of the property upon which the sign is located, shall be deemed a public nuisance, and may be abated by such property owner, the candidate or person advocating the vote described on the sign (if applicable), or the Director. The cost of removal incurred by the Director shall be assessed against the property owner and/or, if applicable, the candidate and/or the person advocating the vote described on the sign.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 24, eff. 10-21-16).

SEC. 15-2612. MASTER SIGN PROGRAM (MSP).

A. **Projects Requiring a Master Sign Program.** A Master Sign Program is required for the following types of projects:

1. **Multi-Unit Residential.** Developments of 50 or more units.
2. **Non-Residential or Mixed-Use Projects.** All new non-residential or mixed-use projects of five or more separate non-residential tenants.
3. **Multiple Signs.** Proposals for 10 or more signs on the same building or site with two or more separate tenants.

4. **Planned Development Permit.** Any project using the Planned Development provisions of this Code.

5. **Pole Signs.** Proposals to erect a pole sign.

6. **Electronic Signs.** Signs with electronic copy.

7. **Roof Signs.** Proposals to erect a roof sign.

8. **Alternative Designs.** Projects which seek flexibility for sign designs which are of a high quality and which contribute to the attractiveness and economic viability of their surroundings, but which do not meet the standards for their location.

9. **Exceptions.** Projects within Downtown Districts for sign types described in items 1, 2, 3, 6, and 7 above shall not require a Master Sign Program.

B. **Required Submittals.** An application of approval of a Master Sign Program shall contain the following information:

1. A site plan showing the location of buildings, parking lots, driveways, and landscaped areas;

2. Computation of the maximum area for individual signs, the height of signs, and the number of freestanding signs allowed;

3. An accurate indication on the site plan of the proposed location of each proposed sign and existing sign which is to remain;

4. Color schemes, lettering, and graphic styles (if tenants are not known, generic styles may be presented);

5. Lighting and sign construction materials; and

6. Sign dimensions (if tenants are not known, generic dimensions may be presented).

C. **Review Authority.** A Master Sign Program shall be reviewed and acted upon by the Development Director. In the case of projects that require other approvals from the Planning Commission or City Council, the decision-making authority for the other approval shall be the decision-making authority for the Master Sign Program.

D. **Required Findings.** A Master Sign Program may be approved only if the following findings are made:

1. The proposed signs are compatible in style and character with any building to which the signs are to be attached, any surrounding structures, and any adjoining signage on the site;

2. Future tenants will be provided with adequate opportunities to construct, erect, or maintain a sign for identification; and

3. Directional signage and building addressing is adequate for pedestrian and vehicular circulation and emergency vehicle access.

4. Light and glare will not negatively affect nearby residential uses.

5. Additional findings for Alternative Designs which do not conform to some or all of the applicable sign standards:

   a. The sign design and materials are of equal or greater quality than existing signs in the surrounding area and the standard requirements for signs on the site;

   b. The sign design and materials of are equal or greater quality than that which is required by the applicable sign standards;

   c. The location of the sign would not be unnecessarily distracting to motorists and would not cause inconvenience to pedestrians;

   d. The design of the proposed sign(s) would contribute positively to the attractiveness of the area;

   e. The alternative design would not be incompatible with nearby residential uses;

   f. The alternative design would enhance the economic viability of its surroundings.

E. **Conditions.** Reasonable conditions of approval may be imposed by the Review Authority to achieve the purposes of this section and ensure compatibility with adjacent land uses and signage.

F. **Post-Approval Procedures.** After approval of a Master Sign Program, no signs shall be erected, placed, painted, or maintained, except in conformance with such program, and such program may be enforced in the same way as any provision in this section.

1. **Lease Agreements.** The Master Sign Program and all conditions of approval shall be attached to the lease agreements for all leasable space within a project.

2. **Individual Signs.** Any sign that conforms to an approved Master Sign Program may be approved by the Director; however, approval of a Master Sign Program does not waive the permit requirements for individual signs.

3. **Amendments.** The Director may approve minor amendments to a Master Sign Program that are in substantial conformance with the original approval. All other amendments, including amendments to conditions of approval shall be processed as a new application.

G. **Public Notice.** Public Notice shall be provided 10 days prior to the date of action pursuant to Section 15-5007.

H. **Appeals.** Master Sign Program decisions are subject to the appeal provisions of Section 15-5017, Appeals.

I. **Modifications.** Master Sign Programs may only be modified as provided for in Article 50.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, §§ 23, 24, eff. 7-30-17; Am. Ord. 2018-25, § 25, eff. 6-11-18; Am. Ord. 2018-66, § 43, eff. 1-18-19; Am. Ord. 2025-024, § 53, eff. 7-27-25).

SEC. 15-2613. HISTORIC SIGNS.

A. **Designation.** The Council may designate historic signs following a duly-noticed public hearing and a recommendation from the Historic Preservation Commission.

B. **Criteria.** Historic signs must meet defined criteria, including, but not limited to, the fact that the sign is 50 or more years old and has significance to the Fresno community because it is associated with a significant historical event or it is associated with a historic business.

C. **Allowances for Historic Signs.**

1. **Structural Improvements.** Historic signs may have structural improvements completed in order to extend the life of the sign.
2. **Damage Repairs.** If the sign is damaged, it may be repaired and replaced with the original sign area and original height, even if the sign does not conform to the standards of this article.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2614. ELECTRONIC COPY.

Electronic copy is subject to approval of a Master Sign Program and the following standards:

A. **Display Duration.** Copy display is limited to a minimum duration of eight seconds and shall have an unlighted interval between copy displays of one second or more.

B. **Light Intensity.** The intensity of the sign lighting shall not exceed 100 foot Lamberts (FT-L) when adjacent to streets which have an average light intensity of less than 2.0 horizontal footcandles and shall not exceed 500 FT-L when adjacent to streets which have an average light intensity of 2.0 horizontal footcandles or greater. No change of lighting intensity may occur during a display or between displays except to respond to a change in ambient lighting conditions.

C. The use of one electronic fuel price sign on a site shall not require a Master Sign Program.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 44, eff. 1-18-19).

SEC. 15-2615. NON-CONFORMING SIGNS.

All permanent signs which were erected and in existence prior to the effective date of this section or prior to annexation to the city, and which were at the time of such erection or establishment in compliance with all applicable statues and ordinances, are non-conforming signs and subject to the provisions of Article 4, Non-Conforming Uses, Structures, Site Features, and Lots, and the following:

A. **Continuance and Maintenance.** Non-conforming signs that were legal when first installed, and which have not been modified so as to become illegal, may be continued, except as otherwise provided for in this subsection.

1. Routine maintenance and repairs may be performed on signs that are non-conforming.

2. A sign that did not conform to law existing at the time of its erection shall be deemed an illegal sign and shall not be a non-conforming sign. The passage of time shall not cure illegality from the outset.

B. **Alterations and Additions to Non-Conforming Signs.** No non-conforming sign shall be moved, altered, or enlarged unless required by law or unless the moving, alteration or enlargement will result in the elimination of the nonconformity.

C. **Restoration of a Damaged Sign.** Whenever a non-conforming sign is destroyed by fire or other calamity to the extent of 50 percent or less, the sign may be restored to display the pre-existing sign area and the non-conforming use of the sign may be resumed, provided that restoration is started within one year and diligently pursued to completion and the height of the restored sign conforms to the standards of this article.

1. Whenever a non-conforming sign is destroyed by fire or other calamity to a greater extent than 50 percent, or is voluntarily razed or shall be required by law to be razed, the sign shall not be restored except in full conformity with this article.

D. **Signs Rendered Non-Conforming by Annexation.** Any sign that becomes non-conforming subsequent to the effective date of this Code by reason of annexation to the city of the territory upon which the sign is located, shall be subject to the provisions of this article.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2616. MAINTENANCE OF SIGNS.

All signs and associated supporting structures shall be maintained in good condition, without rips, tears, and similar damage.

A. **Deteriorated Signs.** Any sign or sign structure that is sagging, leaning, fallen, decayed, broken, deteriorated, or in an otherwise dilapidated condition shall be promptly repaired, to the satisfaction of the City, or removed.

B. **Graffiti.** Graffiti on a sign shall be removed within 48 hours of notice of its placement on such sign.

C. **Maintenance Standards.** All parts, portions, units, and materials composing a sign, together with the frame, background, surface, support, or enclosure shall be maintained in a safe condition, painted, and adequately protected from weathering with all braces, bolts, and structural parts, supporting frames, and fastenings reasonably free from deterioration, rot, rust, and loosening so that they do not create a hazard to persons, or property or constitute a nuisance.

D. **Summary Removal of Hazards.** Whenever any sign, by virtue of its physical nature and condition, poses an immediate and serious threat to the public safety, it

may be removed by City personnel, or have its physical deficiency cured, to the extent necessary to protect the public safety. The cost of such removal or repair shall be assessed against the sign owner.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2617. REMOVAL OF SIGNS.

A. **Signs That Have Been Abandoned.** An on-site sign that identifies a business, lessor, or owner whose use of the premises has ceased for a period of not less than 60 days shall be removed by the owner or lessee of the premises upon which the sign is located. Any sign and, if applicable, its supporting structure (e.g., pole) not removed within the required period shall constitute a nuisance and shall be removed.

B. **Demolition or Clearance of the Site.** Should a site be cleared, signs, including poles, foundations, etc., shall be removed. This includes sites that are cleared for redevelopment.

C. **Non-Conforming Sign Removal.** See Section 15-2615, Non-Conforming Signs.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 27 STANDARDS FOR SPECIFIC USES AND ACTIVITIES

Sec. 15-2701. Purpose.
Sec. 15-2702. Applicability.
Sec. 15-2703. Accessory Uses.
Sec. 15-2704. Abandoned Service Stations and Carwashes.
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Sec. 15-2706. Alcohol Sales—The Responsible Neighborhood Market Act.
Sec. 15-2707. Animal Keeping.
Sec. 15-2708. Arcades, Video Games, and Family Entertainment Centers.
Sec. 15-2709. Automobile And Motorcycle Retail Sales and Leasing.
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Sec. 15-2712. Banquet Hall.
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Sec. 15-2714. Body Preparation and Funeral Services.
Sec. 15-2715. Check Cashing Businesses, Payday Lenders, and Similar Financial Services.
Sec. 15-2716. Crop Cultivation.
Sec. 15-2717. Commercial Modular Buildings.
Sec. 15-2718. Commercial Truck Storage.
Sec. 15-2719. Community and Religious Assembly Facilities.
Sec. 15-2720. Community Gardens/Urban Farms.
Sec. 15-2721. Concrete Batch Plants, Storage Yards, and Similar Uses.
Sec. 15-2722. Corner Commercial.
Sec. 15-2723. Cottage Housing Developments (Pocket Neighborhoods).
Sec. 15-2724. Cyber/internet cafés.
Sec. 15-2725. Child Care Centers and Family Child Care Homes.
Sec. 15-2726. Demolition and House Moving.
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Sec. 15-2730. Farmer's Markets.
Sec. 15-2731. Flea Markets.
Sec. 15-2732. Hazardous Waste Management Facilities.
Sec. 15-2733. Hobby Stores.
Sec. 15-2734. Home Gardens and Edible Landscaping.
Sec. 15-2735. Home Occupations.
Sec. 15-2736. ISO Containers.
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Sec. 15-2737.5. Lodging-to-Dwelling Conversion Requirements.
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Sec. 15-2739. Adult Use and Medicinal Cannabis Retail Business and Commercial Cannabis Business.
Sec. 15-2739.1. Reserved.
Sec. 15-2740. Mobile Commercial Washing.
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Sec. 15-2742.5. Office-to-Dwelling Conversion.
Sec. 15-2743. Outdoor Cooking for Commercial Purposes.
Sec. 15-2744. Outdoor Dining and Patio Areas.

Sec. 15-2745. Outdoor Retail Sales.
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Sec. 15-2747. Personal (Mini) Storage.
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Sec. 15-2749. Private Recreational Sports Facilities.
Sec. 15-2750. Recycling Facilities.
Sec. 15-2751. Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges.
Sec. 15-2752. Roadside Fruit Stands/Grower Stands.
Sec. 15-2753. Second and Outdoor Kitchens.
Sec. 15-2754. Second/Accessory Dwelling Units (ADUs).
Sec. 15-2755. Service Stations.
Sec. 15-2756. Shooting Ranges/Archery Ranges.
Sec. 15-2757. Single Room Occupancy Hotels and Boarding Homes.
Sec. 15-2758. Tattoo or Body Modification Parlors.
Sec. 15-2759. Telecommunications and Wireless Facilities.
Sec. 15-2760. Temporary Uses.
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Sec. 15-2762. Transitional and Supportive Housing.
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Sec. 15-2765. Vehicle Impound Yard (Tow Yard) and Transit Storage.
Sec. 15-2766. Walk-Up Facilities.
Sec. 15-2767. Water Wells.
Sec. 15-2768. Wrecking Yards and Auto Dismantling.

SEC. 15-2701. PURPOSE.

The purpose of this article is to establish standards for specific uses and activities that are permitted or conditionally permitted in some or all districts. These provisions are supplemental standards and requirements to minimize the impacts of these uses and activities on surrounding properties and to protect the health, safety, and welfare of their occupants and of the general public.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2702. APPLICABILITY.

A. Each land use and activity covered by this article shall comply with the requirements of the section applicable to the specific use or activity.

B. The uses that are subject to the standards in this article are allowed only when authorized by the base district regulations, except where this article establishes a different planning permit requirement for a specific use.

C. When there is a conflict between the provisions of this article and a Conditional Use Permit which was granted prior to the effective date of this Code, the Conditional Use Permit shall prevail.

D. **Existing Specific Uses and Activities.** Unless otherwise noted, the following shall apply:

1. Land uses and activities covered by this article which were in place prior to the adoption of this Code which are not considered to be Non-Conforming uses under

section 15-402 shall be subject to all operational standards, including, but not limited to, hours of operation, litter and graffiti removal, product restrictions, and similar regulations within two years of the effective date of this Code, unless otherwise specified.

2. Legal Non-Conforming uses shall be subject to all operational standards, including, but not limited to, hours of operation, litter and graffiti removal, product restrictions, and similar regulations. Legal Non-Conforming uses shall not be subject to requirements of this article which affect permanent physical improvements which existed on the site prior to the adoption of this Code.

E. **Permit Required.** Specific Uses and Activities which are required by this Article to make physical improvements to a structure or site shall be subject to a Development Permit as put forth in Article 52.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 45, eff. 1-18-19).

SEC. 15-2703. ACCESSORY USES.

An accessory use shall be incidental, related, appropriate, and clearly subordinate to the principal use or building to which it relates; under the same regulations applied to the principal use in any zoning district; and where the accessory use does not alter the principal use. These regulations are found in the use regulations tables in Part II, Base and Overlay Districts, and may be subject to specific standards found in this article or within each district, as specified in the tables. Accessory uses and structures are also subject to the development and site regulations found in Article 20, General Site Regulations.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2704. ABANDONED SERVICE STATIONS AND CARWASHES.

A. **Abandonment.** Any service station and/or carwash shall, in the case of abandonment or non-operation of the primary use, be declared a Public Nuisance and shall be dismantled and the site cleared within 12 months subsequent to the close of the last business day or whenever the facility stops selling fuel, whichever occurs first.

1. **Exception.** Any service stations or carwashes certified on the Local Official Register of Historic Resources.

B. **Conversions of Service Stations.** A Discretionary Permit authorizing the conversion of a service station to any other use shall be subject to the following:

1. Ancillary equipment, not including the main building, including all pumps, pump islands, fuel pump canopies, signs, insignias, trademarks, their supporting structures, mountings, foundations, and gas price signs, and all other above-ground improvements which are uniquely associated with service station and/or carwash operations shall be dismantled and removed from the site to a waste disposal or recycling facility permitted for receipt of such debris.

2. Pumps and pipes related to the delivery and disposal of petroleum products shall be removed.

3. Aboveground and underground apparatus need to be removed in accordance with directives of all regulatory agencies.

4. The converted service station and/or carwash site shall be resurfaced and landscaped in a manner appropriate to the proposed use.

C. **Site Clearance.** Should the site be cleared, all equipment per Subsection B above, including signs shall be removed.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2705. ADULT-ORIENTED BUSINESSES.

A. **Purpose.** Certain types of Adult-Oriented Businesses possess characteristics that may be determined to be objectionable, and, when concentrated, may be found to have a deleterious effect upon adjacent areas. Therefore, special regulation of these uses is necessary to ensure that these adverse effects will not contribute to the blighting or downgrading of the surrounding neighborhood nor create an adverse effect on minors.

B. **Public Nudity.** Refer to Section 9-2602 of the Municipal Code.

C. **Criteria for Granting a Conditional Use Permit.** Where an Adult-Oriented Business is conditionally permitted by the zoning district regulations, the Planning Commission, or City Council upon appeal, shall approve a Conditional Use Permit only if it finds that the proposed facility or use complies with the regulations specified in this section. Reasonable conditions may be imposed, such as limitation on hours of operation, exterior lighting, display materials, and other similar conditions, as may be necessary to protect the public health, safety, and welfare.

D. **Standards.** Adult-Oriented Businesses shall comply with all applicable State and federal laws in addition to the following development and operational standards.

1. **Location.** Adult-Oriented Businesses shall be located the following minimum distances:

   a. From any Residential District or existing residence: 1,000 feet.

   b. From any educational institution, including, but not limited to, public or private schools, nursery schools or child-care nurseries, religious and/or cultural institution or, private or public park: 1,000 feet.

   c. From another Adult-Oriented Business: 1,000 feet. This minimum separation requirement shall not apply to businesses forced to relocate due to a public taking of property for a public infrastructure project.

2. **Hours of Operation.** Hours of operation of the business shall be limited to the time period between 8 a.m. and 10 p.m. on Sunday, Monday, Tuesday, Wednesday and Thursday, and from 8 a.m.to 11 p.m. on Friday and Saturday.

3. **Display.** No Adult-Oriented Business shall display or exhibit any material in a manner which exposes to the public view photographs or illustrations of specified sexual activities or naked adults in poses which emphasize or direct the viewer's attention to the subject's genitals. Adult newsracks are subject to this limitation.

4. **Security Program.** An on-site security program shall be prepared and implemented as follows:

   a. **Exterior Lighting.** All off-street parking areas and building entries serving an adult business shall be illuminated during all hours of operation with a minimum maintained horizontal illumination of one foot-candle of light on the parking surface and/or walkway.

   b. **Interior Lighting.** All interior portions of the adult business, except those devoted to mini-motion or motion pictures, shall be illuminated during all hours of operation with a lighting system that provides a minimum maintained horizontal illumination of not less than two foot-candles of light on the floor surface.

   c. **Security Guards.** Security guards for adult businesses may be required if it is determined by the Fresno Police Department that their presence is necessary in order to prevent any unlawful conduct from occurring on the premises.

E. **Site Conditions.**

1. **Façade.** For existing buildings, pictures of the building(s) must be provided to the City upon submittal of a Conditional Use Permit application. The exterior of the building(s) may be required to be repainted and repaired if needed.

2. **Landscaping.** The site shall comply with all landscaping requirements in place at the time of application.

3. **Litter.** The exterior, including all signs and accessory buildings and structures, shall be maintained free of litter at all times. The owner or operator shall provide for daily removal of trash, litter, and debris from premises and on all abutting sidewalks within 20 feet of the premises.

4. **Graffiti.** The owner or operator shall remove graffiti within 48 hours.

5. **Pay Telephones.** Pay phones shall comply with Section 15-2746, Pay Phones.

F. **Definitions.** Unless otherwise specifically provided, the terms used in this section shall have the following meanings:

1. **Specified Sexual Activities.** Specified sexual activities means:

   a. Actual or simulated sexual intercourse, oral copulation, anal intercourse, oral anal copulation, bestiality, direct physical stimulation of unclothed genitals, flagellation or torture in the context of sexual relationship, or the use of excretory functions in the context of a sexual relationship, and any of the

following depicted sexually oriented acts or conduct: analingus, buggery, coprophagy, coprophilia, cunnilingus, fellatio, necrophilia, pederasty, pedophilia, piquerism, sapphism or zooerasty;

b. Clearly depicted human genitals in a state of sexual stimulation, arousal, or tumescence;

c. Use of human or animal masturbation, sodomy, oral copulation, coitus, or ejaculation;

d. Fondling or touching of nude human genitals, pubic region, buttocks, or female breast;

e. Masochism, erotic or sexually oriented torture, beating, or infliction of pain;

f. Erotic or lewd touching, fondling, or other contact with an animal by a human being;

g. Human excretion, urination, menstruation, vaginal, or anal irrigation in the context of a sexual relationship;

h. Any combination of the above items a through g.

2. **Specified Anatomical Areas.** Specified anatomical areas means less than completely and opaquely covered:

a. Mature human genitals,

b. Mature human buttock,

c. Mature human female breast below a point immediately above the top of the areola;

d. Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

3. Exposes to Public View. Exposes to the view of persons outside the building in which such adult entertainment facility is located.

G. **Adult-Oriented Business Types.** Adult-Oriented Businesses include, but are not limited to the following types of businesses.

1. **Adult Newsrack.** Any coin-operated machine or device that dispenses material substantially devoted to the depiction of "specified sexual activities" or "specified anatomical areas."

2. **Adult Bookstore.** Any building, or portion thereof, where space devoted to adult materials composes 25 percent or more or 500 square feet, whichever is less, of any one or more of the following:

a. Wall space;

b. Any display area other than wall space (e.g. tables, racks, and/or any other display areas or structures) or stock in trade (inventories not on display, but on site).

3. **Adult Entertainment Facility.** An adult newsrack, adult bookstore, adult motion picture theater, adult hotel or motel, adult motion picture arcade, cabaret, model studio, sexual encounter center, or any other sex business, or any combination of two or more of such uses.

4. **Adult Motion Picture Arcade.** Any place to which the public is permitted or invited wherein coin- or slug-operated or electronically, electrically, or mechanically controlled still or motion picture machines, projectors, or other image-producing devices are maintained to show images where the images so displayed are distinguished or characterized by an emphasis on depicting or describing "specified sexual activities" or "specified anatomical areas."

5. **Adult Motion Picture Theater.** A building or portion thereof, or area, whether open or enclosed, used for presenting material in the form of motion picture film, videotape, or other means which is substantially devoted to the depiction of "specified sexual activities" or "specified anatomical areas" for observation by persons therein.

6. **Adult Novelty Store.** A building, or portion thereof, in which 25 percent or more of the display area for devices, instruments, or paraphernalia is used for the distribution, sale, offer for sale and/or rental or offer for rental of any device, instrument, or paraphernalia evidently designed or marketed for sexual stimulation of human genital organs or for sadomasochistic use or abuse of themselves or others. Such devices, instruments, or paraphernalia include, but are not limited to, phallic-shaped vibrators, dildos, muzzles, whips, chains, bather restraints, racks, non-medical enema kits, body-piercing implements (excluding earrings or other decorative jewelry) or other evident tools of sadomasochistic abuse.

7. **Adult Video Store.** A building, or portion thereof, in which 25 percent or more of any one or more of the following: Wall space or any display area other than wall space (e.g. tables, racks, and/or any other display areas or structures) or stock in trade (inventories not on display but on site) or gross revenues or advertising and other promotion of video, video cassettes, slides, tapes, films, compact discs, Blu-ray, etc., motion pictures in which 25 percent or more of the description, display time, or depiction is devoted to the presentation of "specified sexual activities" or "specified anatomical areas" as defined in this article.

8. **Cabaret.** A nightclub, theater, or other establishment which features live performances by topless and/or bottomless dancers, "go-go" dancers, exotic dancers, strippers or similar entertainers, where such performances are distinguished or characterized by an emphasis on "specified sexual activities" or "specified anatomical areas."

9. **Model Studio.** Any business where, for any form of consideration or gratuity, figure models who display "specified anatomical areas" are provided to be observed, sketched, drawn, painted, sculptured, photographed, or similarly depicted by persons paying such consideration or gratuity. This does not include accredited educational institutions which may employ models in fine art courses.

10. **Sexual Encounter Center.** Any business, agency, or person who, for any form of consideration or gratuity, provides a place where two or more persons, not all members of the same family, may congregate, assemble, or associate for the purpose of engaging in "specified sexual activities" or exposing "specified anatomical areas."

11. **Other Sex Business.** Any other business or establishment which offers its patrons goods, services, or entertainment, or any combination thereof, characterized by an emphasis on matter depicting, describing, or relating to "specified sexual activities" or "specified anatomical areas," including such types of business known as adult dance studios, men's social clubs, and music studios which meet such definition.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2706. ALCOHOL SALES—THE RESPONSIBLE NEIGHBORHOOD MARKET ACT.

A. **Regulations for On-Site Consumption.** Refer to Section 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges for standards.

B. **Regulations for Wholesalers.** Operators who hold a Type 17 ABC license for the purpose of selling beer and wine to retailers or a Type 18 ABC license for the purpose of selling distilled spirits to retailers, who meet the definition of a "wholesaler" within the meaning of California Business and Professions code section 23021, and who are located within the City of Fresno are subject to the following restrictions:

1. Wholesalers shall not supply establishments (as defined below) with any items that would violate this section of the Fresno Municipal Code.

C. **Purpose.** The following regulations, known as "The Responsible Neighborhood Market Act," are for establishments that sell alcoholic beverages for off-site consumption not otherwise exempt under Section 15-2706.D.2 (henceforth "establishment"). These establishments possess certain characteristics that have the potential to cause deleterious effects and nuisances on surrounding neighborhoods and businesses, especially when such establishments are concentrated near one another. In order to ensure that establishments operate in a manner that is mutually beneficial to surrounding uses and to also provide mechanisms to prevent and correct any associated problems, the following special regulations are provided.

D. **Applicability.**

1. **New or Expanded Use.** Any proposed new establishment or any existing establishment that requests to modify their alcohol or business license type(s), reinstate their alcohol or business license(s) after an expiration or revocation, extend their hours of alcohol sales, or expand their floor area for retail sales of alcohol, shall obtain a Conditional Use Permit issued in compliance with the standards of this section. An existing establishment that expands their floor area for non-alcohol related retail sales is allowed to retain the conditions on their existing Conditional Use Permit in relation to alcohol requirements. Should an establishment not comply with the strict application of the regulations provided for in this section, said improvements shall be made prior to commencing the sale of alcoholic beverages. Violation of these standards at any time may result in the revocation of a Conditional Use Permit.

2. **Exemptions.** This section does not apply to the following:

    a. Establishments that serve alcohol for on-site consumption, where an off-site sales component is incidental to the main use and as permitted through an establishment's ABC Conditional Use Permit License Type.

    b. Temporary uses issued a Temporary License by the California Department of Alcoholic Beverage Control and established in compliance with all City laws and ordinances.

3. **Conditional Use Permit.** Conditional Use Permits issued pursuant to this section shall also be subject to the following:

    a. ABC Conditional Use Permit:

        i. Establishments seeking to sell alcoholic beverages for off-site consumption, whether as a new or expanded use, shall obtain a Conditional Use Permit for alcohol sales.

E. **Modifications to Existing Establishments.** A modification to an existing establishment shall not be approved when a condition exists that has caused or resulted in repeated activities that are harmful to the health, peace, or safety of persons residing or working in the surrounding area.

F. **Location Restrictions for New Establishments.** The following location restrictions apply to new establishments, unless the establishment can be found qualified for exception by the Review Authority. These location restrictions shall apply to existing establishments that must obtain a CUP pursuant to this ordinance due to proposed expansion or improvement of an existing use that is currently operating pursuant to a CUP issued prior to the effective date of this ordinance unless the proposed expansion or improvement is only with respect to a necessary repair, or bringing the existing establishment into compliance with current building codes, including but not limited to the California Building Code, the California Fire Code, and the California Electrical Code, as may be amended and any local amendments thereto.

1. **Near Sensitive Uses.** The establishment shall not be located within 1,000 feet of the following:

    a. A public park, playground, recreational area including a trail that is immediately adjacent to a public park, or youth facility, including a nursery school, preschool, or day care facility;

    b. A public or private State-licensed or accredited school; or

    c. An alcohol or other drug abuse recovery or treatment facility.

2. **Near Other Alcoholic Beverage Establishments.** The establishment shall not be located within 1,000 feet of an existing establishment, nor may it lead to a grouping of more than four establishments within a 1,000 foot radius. Notwithstanding this

requirement, an establishment shall not be located within 500 feet of an existing establishment when an establishment is located in a Census Tract that is not oversaturated with off-sale licenses.

3. **Within High Crime Areas.** The establishment shall not be located in an area of high crime, as defined by the California Business and Professions Code 23958.4(a)(1) et seq., and as determined by the Department of Alcoholic Beverage Control.

4. **Within High Concentration Areas.** The establishment shall not be located in an area of high concentration, as defined by the California Business and Professions Code 23958.4(a)(3) et seq., and as determined by the Department of Alcoholic Beverage Control.

5. **Citywide Ratio.** No establishment shall be granted a Conditional Use Permit under this Section if the number of sites selling alcohol for off-site consumption will exceed one license per 2,500 residents. This ratio requirement shall not apply to: (1) existing establishments that must obtain a CUP pursuant to this ordinance due to proposed expansion or improvement of an existing use that is currently operating pursuant to a CUP issued prior to the effective date of this ordinance; (2) new establishments that utilize the Cancel and Transfer provisions stated in Section S., below: or (3) an existing establishment that is in good standing which has a change in the ABC License holder, specifically partner franchisees.

6. **Exceptions.** A new establishment may be excepted from location restrictions if the Review Authority determines all of the following:

   a. The proposed use is not located within an area in which the Chief of Police has determined, based upon quantifiable information, that the proposed use: (a) would be detrimental to the public health, safety, or welfare of persons located in the area; or (b) would increase the severity of existing law enforcement or public nuisance problems in the area.

   b. The proposed off-premises sale of alcoholic beverages is incidental and appurtenant to a larger retail use and provides for a more complete and convenient shopping experience.

   c. The proposed outlet for the off-premises sale of alcoholic beverages would act as a public convenience or necessity to an underserved portion of the community and/or enhance the vitality of an existing commercial area without presenting a significant adverse impact on public health or safety.

   d. The primary use of the establishment, based on information provided by the applicant, has been determined by the Review Authority to meet the definition of a General Market including a supermarket, neighborhood grocery store or a Healthy Food Grocer.

7. **Existing establishment relocation exception.** An existing establishment that relocates and holds a Conditional Use Permit pursuant to this ordinance may be excepted from the location restrictions if the proposed relocation is located: (a) across

the street and within a 1/4 mile radius of the current location; (b) within the same Council District: (c) within the same Census Tract: (d) not within 500 feet of a nursery school, preschool, a public or private State-licensed or accredited school or daycare facility; and (e) not in an area of high crime, as defined by the California Business and Professions Code 23958.4(a)(1) et seq., and as determined by the Department of Alcoholic Beverage Control. The original location will be required to forfeit its existing alcohol entitlements for the original location. Written notice shall be provided to all property owners within a 1,500-foot radius of the subject property for the proposed relocation.

8. **Full-Service Grocery Store exception.** New establishments may be excepted from the location restrictions if the primary use of the establishment, based on information provided by the applicant, that has been determined by the Review Authority to meet the definition of a Full-Service Grocery Store, including a supermarket, neighborhood grocery store or a Healthy Food Grocer as defined in the Fresno Municipal Code.

G. **Landscaping.**

1. **New Buildings.** Landscaping shall be provided per the underlying District.

2. **Existing Buildings.** Perimeter landscaping and Parking Lot Shading shall be provided per the underlying district. The Review Authority, at their discretion, may make exceptions to the prescribed standards, however in no case shall the reduction result in a net reduction of 35 percent or greater in the amount of landscaping provided. Landscaping may also be aggregated to minimize the impact on existing parking areas.

H. **Lighting.** The exterior of the premise, including adjacent public sidewalks and all parking lots under the control of the establishment, shall be illuminated during all hours of darkness during which the premises are open for business in a manner so that persons standing in those areas at night are identifiable by law enforcement personnel. However, required illumination shall be placed and/or shielded in a way that minimizes interference with the neighboring residences.

I. **Litter and Graffiti.**

1. Trash and recycling receptacles shall be provided by public entrances and exits from the building.

2. The owner or operator shall provide for daily removal of trash, litter, and debris from premises and on all abutting sidewalks within 20 feet of the premises.

3. The owner or operator shall remove graffiti within 48 hours.

J. **Pay Phones and Vending Machines.** External pay phones and snack vending machines are prohibited.

K. **Video Surveillance.**

1. Establishments must equip a fully functional color digital video camera system.
2. The system must continuously record, store, and be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The system must be maintained in a secured location inside of the business.
3. The system shall have the correct date and time stamped onto the image at all times.
4. The camera storage capacity should be for at least two weeks (14 calendar days). Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.
5. If utilizing a digital video recorder, it must be capable of storing at least 14 days of real-time activities.
6. The system shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department within 24 hours of the initial request relating to a criminal investigation only.
7. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area.
8. There shall be four exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.
9. All interior cameras shall record in color.
10. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.

L. **Signage.**

1. The provisions specified under Article 26, Signs and this subsection shall apply. Where conflict may occur between the provisions of Article 26 and this subsection, the more restrictive provisions shall govern.
2. The following copy is required to be prominently posted in a readily visible manner on an interior wall or fixture and not on windows:
    a. "California State Law Prohibits the Sale of Alcoholic Beverages to Persons Under 21 Years of Age."
    b. "No Loitering is Allowed On or In Front of These Premises."
    c. "No Open Alcoholic Beverage Containers are Allowed on These Premises."

3. No more than 5 percent of the square footage of each window and clear door that is visible to the public from a public thoroughfare, sidewalk, or parking lot of an off-sale alcohol retail outlet shall bear advertising, signs, or other obstructions of any sort.

    a. The area covered by signs or advertising includes all clear areas within signs or advertising, such as the clear area within neon signs.

    b. Signage, advertising, or other obstructions inside or outside the establishment that are not physically attached to the windows or doors, but are visible from a public thoroughfare, sidewalk, or parking lot in the same manner as if they were physically attached is included in the 5 percent limitation.

    c. Any signage required by law shall not count towards the 5 percent limitation, but shall nonetheless follow rules related to visual obstruction.

4. Advertising and signage on windows and clear doors shall be placed and maintained in a manner that ensures that law enforcement personnel have a clear and unobstructed view of the interior of the outlets, including the area in which the cash registers are maintained, from exterior public sidewalks, parking lots, or entrance to the outlets.

5. Any establishment located within 250 feet of a sensitive use, as listed in Subsection E.1, shall not advertise alcohol sales in a manner visible from the outside of the establishment, such as from a public thoroughfare, sidewalk, or parking lot.

6. Displays of alcoholic beverages, freestanding advertising structures of any kind such as cardboard floor stands, or other free-standing signs shall be prohibited within 10 feet of consumer entrance points, shall not be visible from the exterior of the establishment, and shall be prohibited on the exterior of the establishment.

M. **Loitering and Other Nuisance Activities.** The operation of the establishment shall not result in repeated nuisance activities on the property, which may include, but are not limited to, repeated disturbances of the peace, illegal drug activity, public drunkenness, drinking in public, alcoholic beverage and tobacco sales to minors, harassment of passerby, gambling, prostitution, sale of stolen goods, public urination, theft, assaults, batteries, acts of vandalism, loitering, excessive littering, graffiti, illegal parking, excessive loud noises (especially in the late night or early morning hours), traffic violations, curfew violations, lewd conduct, or other violations of City, State, or federal laws, especially when contributing to a proportionally high rate of police reports and arrests to the area. This section shall not apply to operators where offenses are the result of third party conduct beyond the operators' control.

N. **Training.** The owners and all employees of the establishment who are involved in the sale of alcoholic beverages must complete approved course(s) in training of liquor sales and handling within sixty days after approval of the Conditional Use Permit becomes final, or for employees hired after the approval of the Conditional Use Permit, within sixty days from the

date of hire. To satisfy this requirement, a certified program must meet the standards of the California Coordinating Council on Responsible Beverage Service (CCC/RBS) or other certifying or licensing body designated by the State of California.

O. **Compliance with Laws.** The establishment must remain in compliance with all local, State, and federal laws, regulations, and orders, as well as all conditions of approval imposed on the use. This includes compliance with annual City business license fees. In the event of non-compliance, the operator shall be given written notice by the City and an opportunity to cure. Article 63 of Chapter 15, regarding Enforcement of the Citywide Development Code shall also apply in relation to compliance issues, in addition to the annual inspection requirements listed within Section R, below.

P. **Posting of Conditions.** A copy of all conditions of approval and training requirements shall either be posted in a conspicuous and unobstructed place near the entrance, cashier counter, or customer service area of the establishment or posted in an employee area and provided upon request (e.g. via flyer or brochure) to patrons and enforcement officials.

Q. **Prohibited Products.** The sale or distribution of one or more of the following shall be prohibited.

1. Wine in containers of less than 750 milliliters.
2. Single containers of beer, malt liquor, wine coolers, and similar alcoholic beverages not in original factory packages of three-packs or greater, subject to the following exception:
   a. Craft beer which is originally packaged in a single 22 oz. bottle.
3. Distilled spirits in containers of less than 375 milliliters.
4. Paper or plastic cups in quantities less than their usual and customary packaging.

R. **Additional Requirements.**

1. The Director may require the applicant to submit additional information, of such type and in such form as the Director may specify, as the Director may deem relevant to the application, including, but not limited to, an operational statement, floor plans, architectural renderings, and technical studies, as appropriate.
2. The Director may refer the application to other City departments to determine whether the establishment's location will comply with building, health, zoning, and fire ordinances or other applicable ordinances or laws. City departments may conduct an inspection of the premises to determine compliance with the ordinances and other laws they administer, and may subsequently prepare reports summarizing their inspections and recommend whether to approve or deny the application based on their inspections.
3. Additional and/or security measures such as reduced hours of operation, security guards, door monitors, and burglar alarm systems may be required if harm,

nuisance, or related problems are demonstrated to occur as a result of business practices or operations. This will be determined on a case-by-case basis upon review by the Police Department.

4. Establishments shall not acquire an ABC license for use that has been temporarily surrendered by another establishment in any jurisdiction, or is from an establishment located outside the City of Fresno or a County island within the City of Fresno. Establishments must comply with the Cancel and Transfer provisions, set forth below, which require an establishment to acquire active ABC licenses from overconcentrated areas in the City of Fresno.

5. Establishments shall be subject to annual inspection to ensure compliance with this Section and any additional conditions of the Conditional Use Permit. If an annual inspection results in a finding that an operator is not in compliance with this section or the specific conditions of the CUP, that finding may be used as a basis for revoking the CUP. An establishment that is subject to a revocation proceeding will be referred to the Responsible Neighborhood Market Act Committee for review and prior to the start of the revocation process.

    a. If an operator is determined to be out of compliance with this section or the specific conditions of the CUP, that operator shall be subject to administrative fines set forth in the Master Fee Schedule as may be amended; the fine structure shall consist of progressively higher fines for violations occurring within twelve months of a prior violation, and upon the fourth violation being upheld within a three year period of the first violation, the CUP for the business shall be subject to revocation.

    b. If an establishment operating under an existing ABC license is purchased by a unassociated and unrelated new operator seeking to continue operation of the establishment, and the new operator is not subject to administrative fines as set forth above at any other establishment in the City, the City Manager, with concurrence of the City Attorney, may waive any administrative fines imposed upon the existing establishment upon transfer to the new operator, if the new operator agrees to and obtains a new CUP.

S. **Cancel and Transfer.**

1. New establishments shall transfer and cancel ABC licenses in good standing as set forth in Table 15-2706 below, from within a Council District identified as having an overconcentration of ABC licenses for off-sale use, as determined by the Director following review of data prepared by the California Department of Alcoholic Beverage Control. The ABC license will be submitted to the Alcoholic Beverage Control for permanent cancellation. A canceled ABC license cannot be reactivated or reinstated.

TABLE 15-2706: CANCEL AND TRANSFER RATIO

Retail Floor Area	*Transfer*	*Cancel*
Less than 10,000 square feet	2	1
10,000 to 30,000 square feet	3	2
More than 30,000 square feet	4	3

2. Each ABC license that is canceled also includes surrender of the alcohol-sales portion of all related Conditional Use Permits and waiver of any legal non-conforming use rights related to the sale of alcohol for off-site consumption.

3. Exemptions.

   a. The Cancel and Transfer requirements shall not apply when an establishment is required to relocate as the result of a taking by eminent domain and a license transfer to a new establishment site is necessary due to such taking.

   b. Existing establishments that seek to expand their floor area or extend their operating hours.

   c. Existing establishments that seek to relocate if the proposed relocation meets the requirements of Section 15-2706.F.7.

   d. Establishments with the primary use, based on information provided by the applicant, that has been determined by the Review Authority to meet the definition of a Full-Service Grocery Store, including a supermarket, neighborhood grocery store or a Healthy Food Grocer as defined in the Fresno Municipal Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2020-045, § 1, eff. 11-15-20; Am. Ord. 2021-050, § 1, 1-17-22; Am. Ord. 2024-015, § 1, eff. 7-11-24).

SEC. 15-2707. ANIMAL KEEPING.

Animal keeping is allowed as an accessory use to a primary residential use. Animals may be kept in compliance with the following standards. Enforcement of this section is the duty of the Poundmaster (FMC 10-302). Other regulations related to animals are located under FMC 10-200 et seq. and FMC-300 et seq.

A. **Pre-Existing Uses.** Any legally established non-conforming animal keeping use shall be allowed to continue however animals may not be replaced after they are removed from the home and/or are deceased.

B. **Lots of 36,000 Square Feet or Less in Residential Districts.** Household Pets are permitted subject to the following.

   1. **Permitted Household Pets.** Household Pets such as domestic dogs, cats, birds, etc., that are ordinarily permitted inside of a dwelling and kept only for

the company and pleasure provided to the occupants shall be permitted. Owners must ensure that the keeping of permitted animals shall not create a health or nuisance problem.

a. **Cats or Dogs.** At no time shall the number of cats or dogs exceed a total of four animals in any combination over the age of four months.

b. **Aviaries (Raising for Non-Commercial Purposes).** Not to exceed 24 animals.

c. **Falcons.** Permitted with a valid falconry license issued by the California Department of Fish and Game.

d. **Small Household Pets (Domesticated Rodents Such as Hamsters and Cavy, Nonpoisonous Amphibians, Nonpoisonous Reptiles Such as Turtles).** Any combination not to exceed 10.

e. **Fish.** Unlimited (for non-commercial purposes).

2. **Prohibited Pets.** Household Pets shall not include horses, miniature horses (except as a guide animal), cows, goats, sheep or other equine, bovine, ovine or ruminant animals, pigs, chickens, ducks, geese, turkeys, game birds, or fowl that normally constitute an agricultural use.

a. **Fish Farms.** Not permitted.

b. **Bee Keeping.** Not permitted.

C. **Lots Greater than 36,000 Square Feet in Residential Districts.** In addition to Household Pets, the following are permitted:

1. **Permitted Pets.** The keeping of horses, cows, goats, sheep or other equine, bovine, ovine or ruminant animals is permitted, as are those identified in Subsection B above.

a. **Cats or Dogs.** At no time shall the number of cats or dogs exceed a total of six animals in any combination, over the age of four months.

b. **Aviaries (Including Aviaries for Commercial Purposes).** Not to exceed 75 animals.

c. **Large Animals.** Up to two animals per acre; however their immature off-spring less than one year of age is also permitted. Pigs are not permitted.

d. **Chickens, Ducks, Geese, Turkeys, Game Birds, or Fowl.** Total number shall not exceed 12 birds per gross acre.

2. **Fish Farms.** Not permitted.

3. **Bee Keeping.** Not permitted.

4. **Setbacks.** All animals other than household pets shall be housed or penned at a minimum distance of 40 feet from property lines and 50 feet from neighboring

residences (e.g. residential structure). All areas and structures used in conjunction with the keeping of animals other than household pets shall be maintained and cleaned so as not to present a public hazard or nuisance.

D. **Buffer Districts.**

1. **Household and Other Pets.** As permitted pursuant to Subsections B and C based on lot size.

2. **Large Animals.** For parcels greater than one acre, Large Animals shall not exceed two animals per acre; however their immature off-spring less than one year of age is also permitted. Pigs are not permitted.

3. **Bee Keeping.** Limited to Apis Mellifera and a maximum ratio of one hive per two acres. A fresh water source must be provided within 20 feet of all hives and a sustaining food source must be provided on the property. Each hive must be located at least 50 feet from property lines. Beehives shall be properly maintained according to apiary standards administered by the Fresno County Agricultural Commissioner. Discovery of aggressive or "Africanized" beehives shall cause the immediately removal of the hives by the operator/owner.

E. **Annexation Overlay Districts.** See Section 15-1606.

F. **Residential in Non-Residential Districts.** Household pets are permitted pursuant to Subsection B.

G. No wild animals, roosters, endangered, exotic, or protected animals are allowed to be kept or raised within the city, except within an accredited zoological park.

H. The offspring of any permitted animal may be kept until weaned.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 25, eff. 10-21-16).

SEC. 15-2708. ARCADES, VIDEO GAMES, AND FAMILY ENTERTAINMENT CENTERS.

A. **Video Games and Amusement Devices.**

1. **Twelve or Less Amusement Devices/Rides.** Any commercial establishment may have up to 12 amusement devices/rides, including skilled or non-skilled games (e.g., electronic video games, pinball machines, pinball, target games, air hockey, foosball, ping pong, darts, shooting games (with nonlethal projectiles), bowling games, shuffleboard, movie machines, etc.) for the enjoyment of patrons.

2. **Thirteen or More Amusement Devices/Rides.** If 13 or more, skilled or non-skilled devices are provided, the use shall be classified as a Video Game Arcade, unless the amusement devices are part of a Family Entertainment Center (refer to Subsection C).

3. Employee Presence. An establishment with video games, amusement devices/rides, regardless of the number, shall have an employee present during all hours of operation.

4. **Amusement Device Permit.** See Chapter 9, Article 5, Amusement Devices for permit requirements.

B. **Family Entertainment Restaurants.**

1. **Food Sales.** Food sales shall be the primary use on the site.

2. **Number of Devices.** Per Subsection A above, there shall be no more than 12 amusement devices, rides and/or attractions, or combination thereof.

3. **Children's Indoor Play Areas.** May be permitted in any district in conjunction with a bona fide restaurant. Activities commonly include skilled and non-skilled games, including children's play stations, video games, pinball, and air hockey.

4. **Children's Outdoor Play Areas.**

   a. Restaurants of 750 Square Feet or Less. Restaurants may have up to 500 square feet dedicated to playgrounds/children's equipment.

   b. Restaurants Greater than 750 Square Feet. Should the outdoor area exceed 500 square feet, it shall be considered a Family Entertainment Center for permit purposes.

5. **Outdoor Dining.** For Outdoor Dining, refer to Section 15-2744, Outdoor Dining and Patio Areas.

6. **Nightclub/Dancing.** Permitted in accordance with Section 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges.

7. **Parking.** Parking shall be determined per Article 24, Parking and Loading.

C. **Family Entertainment Centers.**

1. **Food.** Family Entertainment Centers may, but are not required to serve food.

2. **Activities and Attractions.** Attractions typically include, but are not limited to, water slides, wake boarding facilities, amusement rides, bumper cars and boats, go-karts, miniature golf, trampolines, bounce houses, rock climbing, video arcades, laser tag, paintball, airsoft, batting cages, skate ramps, miniature basketball, miniature bowling, etc. Additional attractions may be appropriate, as determined by the Director.

   a. **Projectiles.** For activities using projectiles (e.g. batting cages, paintball, airsoft, or similar activities), fences, nets, or walls shall be provided that are capable of stopping all projectiles fired and/or hit by containing or redirecting the projectile to the backstop.

   b. **Noise.** Any activities that generate noise shall comply with all applicable noise standards. Outdoor activities that generate noise (e.g. batting cages, paintball, amusement rides, and go-karts), shall cease at 10 p.m., unless separated by 400 feet or greater from a Residential District.

3. **Fencing for Outdoor Activities.** Fencing for outdoor activities shall be reviewed on a case-by-case basis. Consideration shall be given to streets, homes, etc. Should a fence be proposed, it shall comply with setbacks of the underlying zone district, however materials and height shall be determined on a case-by-case basis.

4. **Nightclub/Dancing.** Permitted in accordance with Section 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges.

5. **Parking.** Parking shall be determined per Article 24, Parking and Loading.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2709. AUTOMOBILE AND MOTORCYCLE RETAIL SALES AND LEASING.

Automobile, Recreational Vehicle, Boat and/or Motorcycle Retail Sales and Leasing establishments (collectively referred to as Dealerships in this section), shall be located, developed, and operated in compliance with following standards.

A. **Existing Dealerships.** Existing Dealerships may continue to operate and may change ownership if either of the following apply:

   1. **Existing Dealerships Established by Development Permit/Site Plan Review or Prior to December 14, 2001.** An existing Dealership may continue to operate and change ownership if the site has had a continuous business license to operate as a Dealership and any of the following apply:

      a. There is an approved entitlement for the site for use as a Dealership and all conditions have been met;

b. The owner or applicant provides evidence satisfactory to the Director that the site is in compliance with an approved entitlement for a Dealership; or

c. There is evidence, to the satisfaction of the Director, that the site was established as a Dealership prior to December 14, 2001 and that the site has been continuously used as such.

d. In addition to a, b, and c above, the site has not been used for any use other than a Dealership.

2. **Existing Dealerships Established After December 14, 2001.** An existing Dealership may continue to operate and change ownership if the following conditions are met:

a. There is an approved Conditional Use Permit or Development Permit/Site Plan Review for the site for use as a Dealership and all conditions have been met;

b. The site has not been vacant for longer than one year;

c. The site has not been used for any use other than a Dealership;

d. The site has had a business license to operate as a Dealership within one year; and

e. The owner or applicant provides evidence satisfactory to the Director that the site is in compliance with an approved entitlement for a Dealership.

B. **New Dealerships.** New Dealerships shall comply with the following conditions:

1. **Outdoor Dealership Minimum Parcel Size.** One-half acre (21,780 square feet). Should multiple uses exist on a site, a minimum 21,780 square feet shall be dedicated for the sole use as a Dealership.

2. **Display Areas.** Products may only be displayed in approved areas.

3. **Landscaping and Screening.**

a. A screen wall of seven feet in height shall be provided along all property lines adjacent to a residential use or district. For Screening Wall standards, refer to Section 15-2008-C.

b. A landscaped planter with a minimum inside width of 10 feet and enclosed within a six-inch-high curb shall be provided along the front and street side property lines, except for vehicular circulation openings, unless a greater landscape setback is required by the underlying zone district or operative plan. Vehicles may not be displayed in required landscaped areas.

c. Additional screening and landscaping, as determined by the Director may be required where necessary to prevent visual impacts on adjacent properties.

4. **Lighting.** Lighting of the facility shall be oriented away, and shielded from neighboring residential properties. In addition, the lighting shall not be excessively intense so as to impact neighboring properties nor passing traffic on adjacent streets.
5. **Signs.** On-site signs advertising the business shall strictly adhere to the requirements of the Fresno Municipal Code and adopted plans and policies. Any non-conforming sign must be removed or made to conform prior to operation of the facility.
6. **Parking.** Refer to Article 24, Parking and Loading.
7. **Access.** Unused or blocked drive approaches shall be removed in accordance with Public Works Standards. Blocked drive approaches include, but are not limited to, those blocked by non-operable fences or those that lead into a display area that would restrict vehicles from entering the site.
8. **Operational Conditions.**
    a. Vehicles for sale shall not be displayed outside of the display area as designated by the approved permit.
    b. There shall be no test driving of vehicles into residential neighborhoods.
    c. There shall be no off-site sales conducted by any dealership.
    d. Vehicles being worked on or awaiting service or pick-up shall be stored within an enclosed building or in a parking lot on the property that is screened. Unattended vehicles may not be parked or stored on the sidewalk adjoining the property, in the street, or in any portion of the public right-of-way within the city.
    e. Automotive servicing or repair is permitted as an accessory use for automobile/vehicle dealers that offer maintenance and servicing of the type of vehicles sold on site. All auto repairs shall occur within an enclosed building.
9. **Indoor Dealerships.** Dealerships that display vehicles solely indoors shall be approved via a Zone Clearance, and the applicant shall submit a notarized letter stating that vehicles shall be indoors during all hours. Indoor Dealerships are subject to the following minimum parcel sizes.
    a. **MX Districts.** Shall be a minimum of 5,000 square feet in area.
    b. **All Other Districts Where Allowed.** No minimum.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2710. AUTOMOBILE/VEHICLE SERVICE AND REPAIR, MAJOR AND MINOR.

A. **Applicability.** This section applies to all automobile/vehicle service and repair uses which include, but are not limited to:

1. Engine service and repair;

2. Tire service and repair;

3. Wheel alignment;

4. Brake service and repair;

5. Cooling/heating system service and repair;

6. Radiator, muffler, and transmission service and repair;

7. Body and fender repair;

8. Emissions testing, service, and repair;

9. Window tinting and repair;

10. Radio, video, and alarm service and repair;

11. Preventative maintenance (such as lube, oil, and filter change; fan belt and windshield wiper replacement; etc.); and

12. Any other uses, including auto dealerships and service stations that perform auto services as an accessory activity.

B. **Design.**

1. Service bay openings shall be designed to minimize the visual intrusion on surrounding streets and properties. Bay doors shall be screened from public right-of-way to the greatest degree feasible. On corner lots fronting two or more streets with different classifications in the General Plan, bay doors shall face the street with the highest classification, unless the bay doors are screened from both streets.

2. Designs shall incorporate landscaping and half screen walls to screen vehicles while allowing eye level visibility into the site.

C. **Work Areas.** All work shall be conducted within an enclosed building except: pumping motor vehicle fluids, checking and supplementing fluids, and mechanical inspection and adjustments not involving any disassembly.

D. **Vehicle Storage.** Vehicles being worked on or awaiting service or pick-up shall be stored within an enclosed building or in a parking lot on the property that is adequately screened, with an earth berm or Screen Wall, or combination thereof or a building. Screen Walls shall be located on property lines with the exception of yards along streets, where the Screen Wall shall be located at outside of required setbacks. Unattended vehicles may not be parked or stored on the sidewalk adjoining the property, in the street, or in any portion of the public right-of-way within the city. Screen Walls are not required when the site is located in an Industrial District that abuts a local street (Major Streets are required to have a Screen Wall). For Screening Wall standards, refer to Section 15-2008-C.

E. **Equipment, Product, and Vehicle Parts Storage.** Exterior storage, including tires, shall not be visible from Major Streets or residential districts.

F. **Water Runoff.** Water runoff shall be property treated as determined by the Department of Public Utilities and the Fresno Metropolitan Flood Control District.

G. **Spray/Paint Booths.** Spray Booths shall be screened from Major Streets and shall be separated a minimum of 100 feet from Residential Districts, Parks, public or private Schools (K-12), and Daycare Centers. Evidence, in the form of the letter, shall be submitted to the City prepared by the San Joaquin Valley Air Pollution Control District that the proposed paint booth complies with adopted standards.

H. **Litter.** The premises shall be kept clean and in an orderly condition at all times.

I. **Inoperable Vehicles and Junked Parts.** No used or discarded automotive parts or equipment or permanently disabled, junked, or wrecked vehicles may be stored outside a building, unless screened.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2711. AUTOMOBILE/VEHICLE WASHING.

A carwash facility shall undergo a design review of architecture, style, and appearance to ensure similarity and compatibility with surrounding residential, commercial, and industrial development. Facilities are subject to the following standards:

A. **Attendant.** An attendant shall be present during all hours of operation for all carwashes. A store clerk that also accepts payment for a carwash may constitute as an attendant.

B. **Design.**

1. Buildings shall incorporate similar design features as the main building. Should a main building not exist, and a carwash be the primary building, it shall comply with the design standards of the underlying district.

2. Significant architectural or landscape features shall be provided at the corner of intersecting streets to enhance the streetscape.

3. No building or structure shall be located within 30 feet of any public street or within 20 feet of any property line of a residential use or residential district. Customer waiting areas and/or carwash offices may be excepted should the Review Authority determine that they will not disrupt the residential area.

4. Noise-generating uses, such as auto service bays, car wash openings, vacuum stations, outdoor loading areas, garbage storage, and stacking lanes, shall be located away from sensitive uses such as residential areas, daycares, and schools.

5. All canopies/shade structures shall be made of permanent material.

6. Buildings and equipment shall be painted in similar color tones to those found in the surrounding neighborhood.

C. **Landscaping.**

1. There shall be a 20 foot landscape setback along all streets.

2. There shall be a 15 foot landscape setback along Residential Districts.

3. Building setbacks shall comply with the underlying district, or the operative plan, whichever is greater.

4. Vehicle lanes for car wash openings shall be screened from public streets to a height of 30 inches. Screening devices shall consist of walls and/or berms with supplemental plant materials to screen vehicles while allowing eye-level visibility into the site.

D. **Washing Facilities.**

1. Building openings for vehicle access shall be designed to minimize the visual intrusion on surrounding streets and properties.

2. Service bay and/or drive-through openings shall be designed to minimize the visual intrusion on surrounding streets and properties.

3. Lighting shall be designed to be low-profile, indirect or diffused, create a pleasing appearance, and avoid adverse impacts on surrounding uses.

4. Shall comply with all regulations pertaining to water conservation and/or run-off.

E. **Self-Service.** Self-service car washes are not permitted, unless in conjunction with an automatic and/or a hand car wash where an attendant washes the vehicle. Self-service bays shall not exceed 50 percent of the overall number of bays.

F. **Hours of Operation.** Washing facilities are limited to 7 a.m. to 11 p.m. When abutting or adjacent to a Residential District, the hours of operation are limited to 8 a.m. to 9 p.m., seven days a week.

G. **Litter.** Trash and recycling receptacles shall be available. The premises shall be kept in an orderly condition at all times. Litter shall be collected daily.

H. **Noise.** All vacuuming, amplified music, intercoms, or similar noise-generating equipment shall be reduced according to all applicable noise standards.

I. **Temporary Fundraising Carwashes.** Refer to Section 15-2760, Temporary Uses. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2712. BANQUET HALL.

Banquet Halls or event facilities, collectively referred to as Banquet Halls, may operate in conjunction with hotels or as standalone facilities. Banquet Hall activities include, but are not limited to, formal dinners, receptions, reunions, business meetings, benefits, and club meetings. Dancing may be provided in conjunction with said events. Should a Banquet Hall

or event facility offer admission to the general public for the primary purpose of dancing, concerts, or similar activities, it shall be considered a Nightclub and shall comply with Section 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs, and Lounges.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2713. BED AND BREAKFAST LODGING.

Bed and breakfast establishments shall be located, developed, and operated in compliance with the following standards:

A. **Type of Residence.** Bed and breakfast establishments must be located, developed, and operated within a single-unit dwelling.

B. **Number of Rooms.** No more than two rooms may be rented. Additional rooms may be rented only with approval of a Discretionary Permit.

C. **Appearance.** In all Residential Districts, the exterior appearance of a structure housing a bed and breakfast establishment shall not be altered from its single-unit character.

D. **Limitation on Services Provided.** Provisions for meals and rental of bedrooms shall be limited to registered guests. Separate or additional kitchens for guests are prohibited.

E. **Parking.** Refer to Article 24, Parking and Loading.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 54, eff. 7-27-25).

SEC. 15-2714. BODY PREPARATION AND FUNERAL SERVICES.

Body preparation, including embalming and cremations, and body viewing may be permitted subject to the regulations below and those established by the State of California Department of Consumer Affairs, Cemetery and Funeral Bureau. The following also applies to pets.

A. **Body Viewing/Visitation.**

1. **Traditional Facilities.** Body viewing, including funeral and chapel services, may be permitted in Community and Religious Assembly, Cemeteries, Funeral Parlors and Internment Services.

2. **Non-Traditional Facilities.** Occasional funeral/chapel services may be held at Banquet Halls, Cultural Institutions, stadiums, or similar facilities, however the use shall be clearly incidental to the primary use. "Occasional," for this subsection, shall be defined as no more than twice per month.

B. **Body Preparation.** Body preparation, including the embalming of the body, may be permitted in Funeral Parlors and Internment Services.

C. **Body Cremation.** In addition to the permit requirements of this Code, a permit is also required from the San Joaquin Valley Air Pollution Control District.

D. **Home Death Care.** A person may prepare a body for disposition in their home per the State of California Department of Consumer Affairs, Cemetery and Funeral Bureau. Funeral services may not be held in homes.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2715. CHECK CASHING BUSINESSES, PAYDAY LENDERS, AND SIMILAR FINANCIAL SERVICES.

This section pertains to check cashing businesses, payday lenders (also known as Deferred Deposit Originators), auto-title lenders, consumer loan financers, and similar financial services, hereafter referred to as Check Cashers. This section and the regulations herein do not apply to State and federally chartered banks, savings associations, credit unions, or industrial loan companies.

A. **Applicability.** The standards of this section apply to new establishments and existing establishments where there is a 20 percent or greater expansion in serviceable floor area. For the purposes of this section, an establishment is considered new when no previous Check Casher existed at that location for a period of 90 days or greater.

B. **Discontinuance and Termination.** Any Check Casher, whether existing or subsequently granted under this section, that voluntarily discontinues active operation for more than 90 consecutive days; does not maintain a valid City business license for more than 90 consecutive days; or ceases to be licensed by the State of California or the Department of Justice, shall be considered a termination of the use and all privileges and rights held therein.

1. **Notification of Termination.** The Director shall notify the licensee of the termination of the use and shall inform the licensee of their right to appeal the decision. The process used in Section 15-5016, Revocation of Permits, shall apply. For existing establishments that originally did not need a special permit to lawfully operate, the same revocation process shall apply except that it shall be for a revocation of rights for use as a Check Casher instead of a revocation of rights granted under a special permit.

C. **Compliance.**

1. Check Cashers shall be subject to and shall comply with all of the restrictions and conditions set forth in this section, in addition to those restrictions and conditions that may be imposed on a Check Casher under or pursuant to other provisions of the Fresno Municipal Code or any other applicable federal, State, or local laws regulations, or policies.

2. Check Cashers shall hold, maintain, and be in compliance with all applicable valid licenses and permits issued by the State of California and the Department of Justice.

3. Check Cashers shall hold, maintain and be in compliance with a Business License issued pursuant to Section 7-1001 through 7-1301 of the Fresno Municipal Code.

D. A copy of all applicable licenses and permits shall be provided at the time of application submittal.

E. **Location.** In addition to the Use Regulations as put forth for the base and overlay districts, locations in which Check Cashers are permitted shall also be subject to the following restrictions:

1. May not be located within a Census Tract where, according to the latest available Census data, half of all households have a median household income of less than 80 percent of the county's median household income.

2. May not be located within 1,320 feet of any parcel on which an existing Check Casher is located or on which a conditional use permit for a Check Casher has been approved and the permit remains valid.

3. May not be located within 500 feet of the following:

a. A Residential District.

b. A State or federally chartered bank, savings association, credit union, or industrial loan company.

c. Schools, public or private.

d. Off-site alcohol sales (excluding stores 10,000 square feet or greater).

e. Existing or planned Bus Rapid Transit station.

F. **Lighting.** Exterior lighting of the premises shall be provided at a level sufficient to recognize the features of persons at any point on the property.

G. **Litter and Graffiti.**

1. The owner or operator shall provide for daily removal of trash, litter, and debris from premises and on all abutting sidewalks within 20 feet of the premises.

2. The owner or operator shall remove graffiti within 48 hours.

H. **Pay Phones and Vending Machines.** External pay phones and vending machines are permitted if located within 10 feet of the main entrance. Pay Phones shall comply with Section 15-2746, Pay Phones.

I. **Video Surveillance.** Check Cashers must equip a fully functional color digital video camera system.

1. The system must continuously record, store, be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The system must be maintained in a secured location inside of the business.

2. The system shall have the correct date and time stamped onto the image at all times.

3. The camera storage capacity should be for at least two weeks (14 calendar days). Such cameras must be capable of producing a retrievable and identifiable image than can be made a permanent record and that can be enlarged through projection or other means.

4. If utilizing a digital video recorder, it must be capable of storing at least 14 days of real-time activities.

5. The system shall be capable of producing a CD or digital playback feature and may be provided to an authorized representative of the Fresno Police Department within 24 hours of the initial request relating to a criminal investigation only.

6. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area.

7. There shall be four exterior cameras placed so as to record activities in the primary customer parking areas of their business. These cameras should be of sufficient quality to be able to identify persons and or vehicles utilizing the business parking lot.

8. All interior cameras shall record in color.

9. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.

J. **Signage.**

1. All advertising and signage on windows and clear doors shall be placed and maintained in a manner that ensures that law enforcement personnel have a clear and unobstructed view of the interior of the outlets, including counter/cashier area, from exterior public sidewalks, parking lots, or entrance to the outlets.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2716. CROP CULTIVATION.

A. **Applicability.** This section applies to all crop cultivation activities, inclusive of plant nurseries. It does not apply to community gardens, edible landscaping on residential property, or Nurseries and Garden Centers.

B. **Agricultural Labor Housing.** Regarding Agricultural Labor Housing, in the event of a conflict between this Code and California Health and Safety Code section 17021.6, relating to agricultural land use designations for employee housing, the Health and Safety Code shall prevail.

C. **Grading.** Grading is required for site clearance and leveling prior to commencement of any activity.

D. **Ag Conservation.** Any Agricultural Land Conservation ("Williamson Act") Contract that was in force prior to (re)establishment of agricultural uses on land designated for single-unit residential uses shall be permitted to continue in effect under the terms of Resolution No. 2006-130 and any successor Resolution or Ordinance enacted by the City.

1. No new application for an Agricultural Land Conservation Contract shall be approved for land designated for urban uses, as the agricultural use will forthwith be considered as incidental or transitional to the planned urban use.

E. **Street Rights-of-Way.** Plantings of trees and vines, buildings, and water wells shall not be installed on portions of a property planned for right-of-way for Major Streets.

F. **Storage Tanks.** Private storage tanks for fuel shall be installed and maintained pursuant to the appropriate permits and required approvals from the County Environmental Health and the Fire Department. Tanks shall be located at least 20 feet from property lines and are subject to additional setback requirements at the discretion of regulatory agencies.

G. **Water Management.**

1. Irrigation tailwater and stormwater runoff shall be managed on-site by means of grading, vegetated swales, and on-site detention facilities so as to prevent drainage to abutting property and to prevent silt and contaminants from entering the municipal stormwater management system, irrigation canals, and natural watercourses.

2. For sites greater than one acre, a grading permit shall be obtained that identifies tailwater and stormwater management features.

3. On-site water detention facilities shall conform to City standards for construction and management to prevent breeding of mosquitoes.

4. Irrigated cropland shall be managed in compliance with California Water Code Section 13260, pertaining to the Irrigated Lands Program, pursuant to regulations of the California Water Boards.

H. **Water Usage.** Use of water for irrigation for crop cultivation.

1. When feasible and permissible, surface water supplies and/or recycled water shall be used for irrigation. When irrigation district surface water supplies allocated to a property have been assigned to the City of Fresno as part of the annexation process, the City Water Division must approve in writing any subsequent re-direction of those irrigation district surface water allocation to growing crops on the property. When growing activity ceases, the surface water allocation shall revert to the City of Fresno.

2. Construction of any new non-potable water delivery facilities shall comply with Fresno Irrigation District regulations. Appropriate easement covenants shall be recorded for conveyance of non-potable water.

3. Installation of irrigation pipelines shall be minimized to the extent possible in portions of a property planned for right-of-way of major streets. Where it is unavoidable to avoid planned right-of-way, such pipelines shall be constructed of appropriate material to allow subsequent street construction without replacement of the pipeline.

4. At the conclusion of crop cultivation activities, irrigation pipelines shall be removed unless the City approves their retention for non-potable water conveyance. Irrigation easements no longer needed for conveyance of water supplies shall be vacated. Surface water rights shall accrue to the City of Fresno when the irrigation water is no longer being delivered for agricultural activity.

5. Any premises having both a potable water utility connection and a separate source of water for agricultural irrigation must have an approved backflow prevention device (meeting to City Water Division standards) on the potable water connection. The backflow device shall be installed with required City permits and is subject to periodic testing.

6. Installation of any water line used to deliver a potable water supply for irrigation of a crop cultivation site requires approved plumbing permits from the City. Any hose bibb or sprinkler connection to a potable water utility system shall be equipped with backflow protection approved by the City, such as a vacuum breaker fitting.

7. Any crop cultivation use of water from a potable water utility system shall be metered.

8. Efficient Water Management Practices identified in Fresno Irrigation District's adopted Agricultural Water Management Plan shall be implemented as feasible.

9. When 20 or more contiguous acres are involved in agricultural or horticultural activity, a private water well may be developed, reconstructed, or rehabilitated on the premises to supply irrigation water, subject to all of the following:

    a. Submittal of an irrigation water use plan for Water Division approval.

    b. City Water Division's written approval of an irrigation water well application pursuant to Fresno Municipal Code Sections 6-402 and 6-505, including siting of the proposed well and portions of the well casing with perforations or screening.

    c. Approval of the appropriate level of environmental review for the irrigation well development project.

    d. Execution of an agreement with the Water Division to do the following: maintain well production metering and records of well production; to pay the applicable Recharge Fee or provide alternative groundwater extraction mitigation acceptable to the Water Division; and to limit the well's groundwater extraction to a sustainable yield as shall be determined after well development based on the Water Division's review of pump tests.

10. Wells used for crop cultivation irrigation must be improved pursuant to State of California Department of Water Resources standards and Water Division requirements based on water well application review. Irrigation wells shall additionally be equipped with a meter accessible for periodic readings by the City for the purpose of assessing the City's Private Well Irrigation Fee.

11. Water from an irrigation well must be used solely on the premises where the well is located.

12. Water from a private off-site well shall not be used for irrigating agricultural or horticultural activity.

13. The practices of "chemigation" and "fertigation," and any other means of distributing agrichemicals via irrigation water, shall only be permitted if there is no risk of such chemicals flowing back into a well.

14. At the conclusion of crop cultivation activities, any associated well shall be destroyed in accordance with the provisions of California Department of Water Resources Water Well Standards and the standards of the City Water Division. Alternatively, and only if approved by the Water Division, a well no longer needed for irrigation may be retained and secured for subsequent public pump station use if the well has been appropriately constructed.

I. Fencing shall be located on the property, not on street rights-of-way. For parcels comprising over five acres, perimeter fencing for crop cultivation uses shall be set back from property lines as necessary to allow at least six feet for safe pedestrian access along any roadway. For parcels comprising less than five acres, fencing for these uses shall conform to the regulations of the underlying zone district with regard to setbacks from rights-of-way and heights. Fences shall comply with Section 15-2006, Fences, Walls, and Hedges.

J. All pesticides, fertilizers, and hazardous materials used and stored at the premises shall be subject to use, storage, handling, disposal, disclosure and inventory requirements administered by the Fresno County Agricultural Commissioner, Fresno County Environmental Health, California Environmental Protection Agency Division of Toxic Substance Control, and Fresno Fire Department. No application of pesticides shall be allowed by means of aircraft (unless such spraying is ordered by the State of California or the Agricultural Commissioner for the entire municipal area to address a serious pest outbreak). All pesticides, fertilizers, and hazardous materials shall be stored in securely locked structures having an impervious floor. All such storage structures shall be located at least 20 feet from property lines and are subject to additional setback requirements at the discretion of regulatory agencies.

K. Properties proposed for cultivation shall not be on the list of hazardous materials sites compiled pursuant to California Government Code Section 65962.5; or, if a property does appear on that list, prior to it being cultivated the California Environmental Protection

Agency Department of Toxic Substances Control or Fresno County Certified Unified Permit Agency shall provide written clearance that hazardous material residues will not harm persons cultivating the site or consuming any produce grown on the site.

L. Cultivation and soil amendment activities shall conform to applicable regulations of the San Joaquin Valley Air Pollution Control District, including controls for particulate matter, fugitive dust, bulk material handling, and odors. No mechanized cultivation activities which generate dust (including, but not limited to, tillage, harvest, and ground sweeping) shall be done when ambient moisture levels are low and wind speed exceeds 12 miles per hour.

M. No on-site burning of waste material shall be allowed. Waste material and litter associated with agricultural operations shall be properly disposed of in a timely manner, and shall not be permitted to blow onto adjacent properties.

N. When permitted by the underlying zone district, plant products grown on the premises may be sold on the premises by means of an on-site stand subject to provisions of subsection 15-2752, Roadside Fruit Stands/Grower Stands.

O. Beehives may be temporarily placed on crop cultivation sites 20 acres or more in size, regardless of the underlying district, for pollination purposes. A source of water shall be provided within twenty 20 feet of all hives and the hives shall be located at least 40 feet from property lines. Beehives shall be properly maintained according to apiary standards administered by the Fresno County Agricultural Commissioner. Aggressive or "Africanized" beehives shall be immediately removed by the owner or operator.

P. Except where the setback requirements of this subsection are more restrictive, setback and lot coverage requirements of the underlying zone district shall apply. Greenhouses and agricultural or horticultural storage facilities shall be classified as buildings in determining lot coverage. The property development standards of the underlying zone district shall apply with regard to building heights.

Q. Sonic hail disruptors ("hail cannons") and noisemaking devices for repelling birds and other crop pests shall not be permitted.

R. Soil amendments and waste material that attracts nuisance flies or supports growth of such flies shall not be permitted.

S. Any agricultural operation located in an area regulated under an Airport Land Use Compatibility Plan or airport specific plan shall be operated in conformance with the applicable Wildlife Hazard Mitigation Plan for that airport.

T. Street trees and trees established to satisfy shading criteria of applicable permits and subdivision maps shall not be removed to accommodate crop cultivation activity.

U. Prior to tillage or excavation for cultivation, parties undertaking the activity shall confirm that there are no Fresno Metropolitan Flood Control or Fresno Irrigation District underground facilities and shall call the Underground Service Alert Program (the "811—

Call Before You Dig") line. Parties intending to cultivate trees or trellis crops shall conform to utility company policies and regulations with regard to separations from overhead lines.

V. On a property being cultivated, any maintenance, repair stabilization, rehabilitation, restoration, preservation, conservation, or reconstruction of an identified historical resource shall be done consistent with the Secretary of the Interior's Standards for the Treatment of Historic Properties with Guidelines for Preserving, Rehabilitating, Restoring, and Reconstructing Historic Buildings, available from the City of Fresno Historic Preservation Project Manager.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 55, eff. 7-27-25).

SEC. 15-2717. COMMERCIAL MODULAR BUILDINGS.

A. **General Requirements.** Commercial Modular Buildings generally fall under two categories: permanent modular or temporary modular, both of which shall be collectively be referred to as "Modulars" for this section.

1. Permanent Modular buildings are usually considered real property, built to the same codes as conventional buildings.

2. Temporary Modular buildings are commonly considered personal property or equipment and are not permanently affixed to real estate. Temporary Modular buildings are often used as sales offices, classrooms, or for healthcare services.

B. **Government Owned Property.** City-owned sites (e.g., parks) and buildings used during construction as either offices or to temporarily house offices are excepted from this section.

C. **Underlying Districts.** The underlying District Standards shall apply to Modular buildings, including, but not limited to, building height, access, setbacks, open space, parking requirements, etc., or operative plan, if applicable.

D. **Location.**

1. Buildings may be installed on industrial, commercial, and residential districts that are developed with non-residential uses.

2. Reserved.

3. Buildings may not be visible from Major Streets.

E. **Design Criteria.**

1. Permanent Modular Buildings shall be reviewed similar to buildings that employ conventional building techniques.

2. Temporary Modular buildings shall be compatible in design and appearance with structures in the vicinity and shall meet the following standards:

    a. **Foundation.** A building shall be built on a permanent foundation system approved by the Building Official.

b. **Date of Construction.** Temporary Modular buildings shall have been manufactured within 10 years of the date of issuance of a permit to install the building on the site.

c. **Roof Overhang.** The roof overhang shall not be less than 12 inches around the entire perimeter of the Temporary Modular building as measured from the vertical side of the home. The overhang requirement may be waived at the point of connection where an accessory structure is attached to the building.

d. **Roof Material.** Roof material shall consist of material customarily used for conventional buildings, such as tile or composition shingles. If shingles are used, the pitch of the roof shall be not less than three inches vertical to 12 inches horizontal.

e. **Siding Material.** Siding material shall consist of exterior material customarily used for conventional buildings, such as stucco, wood, brick, stone or decorative concrete. Metal siding, if utilized, shall be non-reflective and horizontally lapping. Siding material utilized as skirting shall be the same as the material used on the exterior wall surface of the building.

f. **Skirting.** The unit's skirting shall extend to the finished grade.

g. **Building Orientation.** The building, including the primary entrance, shall face the street.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 46, eff. 1-18-19).

SEC. 15-2718. COMMERCIAL TRUCK STORAGE.

Commercial Truck Storage, not specifically related to the primary use on the site, is permitted subject to the following standards.

A. **Minimum Lot Size.** One acre.

B. **Access.** The site shall have direct access to a street designated for the type of vehicles that will be parking on the site.

C. **Landscaping and Screening.**

1. There shall be a minimum 10 foot landscape area along all streets, unless a greater setback is required elsewhere in this Code or operative plan.

2. Chain link fencing is prohibited along major streets, except along State highways if the fence is erected by Caltrans.

3. Graffiti along perimeter Screen Walls shall be removed within 48 hours.

4. Additional screening and landscaping, as determined by the Director may be required where necessary to prevent visual impacts on adjacent properties.

D. **Surface Paving.** All parking and maneuvering areas shall be paved per Public Works Standards for Parking Lots. Parking on unimproved lots is prohibited.

E. **Operational Requirements.**

1. Vehicles and/or trailers may only be stored within designated areas per the approved entitlement.
2. All auto repairs, including the changing of tires and fluids (e.g., oil) shall occur within an enclosed building.
3. There shall be no dismantling of motor vehicles.
4. Personal storage of vehicles, such as boats or RVs, is prohibited.
5. Trailers oriented to passerby for the sole purpose of advertising are prohibited.
6. Retail sales of vehicles is prohibited.

F. **Parking Lot Shading.** Parking Lot Shading is required for non-truck/trailer parking areas.

G. **Infrastructure Requirements.**

1. Off-site improvements may be required by the City.
2. The facility shall be served by a public sewer system. Private septic sewer systems are prohibited.
3. Adequate facilities and infrastructure shall be provided for fire protection as determined by the City.

H. **San Joaquin Valley Air Pollution Control District.** Applicants shall gain written or permit approval from the SJVAPCD.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2719. COMMUNITY AND RELIGIOUS ASSEMBLY FACILITIES.

Community and religious assembly facilities shall be located, developed, and operated in compliance with the following standards:

A. **Property Development Standards.** Development shall comply with the Property Development Standards of the District in which the project is located.

B. **Access.** Community and religious assembly facilities shall take primary access from a public street that is improved with curbs, gutters, sidewalks, and street lights. If these improvements do not exist on the subject site, they shall be installed prior to operation of the proposed facility.

C. **Buffer.** A minimum 20-foot perimeter buffer shall be included adjacent to any residential use or district. This buffer area may be used for parking or landscaping but shall not be used for structures or outside activities, however there shall always be a minimum 10-foot landscape setback when abutting a Residential District.

D. **Outdoor Recreation.** Outdoor recreation areas for programmed activities, such as basketball courts, soccer fields, softball fields, etc., shall be at least 20 feet from any residential use or district.

E. **Shared Parking.** Parking for a facility may be shared with other uses as long as the operating hours of the other uses do not conflict with the operating hours of the proposed facility.

F. **Outdoor Lighting.** Outdoor lighting shall not exceed an intensity of one foot candle of light throughout the facility.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2720. COMMUNITY GARDENS/URBAN FARMS.

Community Gardens and/or Urban Farms, collectively referred to as Gardens, may be located, developed, and operated in compliance with the following standards.

A. **Management.**

1. **Community Gardens.**

a. Shall be organized by community groups, nonprofit organizations, the City, or land owners. A manager shall be designated for each Community Garden who shall serve as liaison between gardeners, property owner(s), and the City.

b. If located within a Planned Development or Multi-Unit Residential Complex, the Homeowner's Association and/or property management company shall be responsible for the site and shall designate a liaison between the property owner(s) and the City.

2. **Urban Farm.** May be operated by a sole proprietor or an organization. A manager shall be designated who shall serve as liaison between the owner(s) and the City.

B. **Operational Plan.** The applicant shall submit an operational plan that identifies roles and responsibilities, contact information, and operations of the Garden.

C. **Location.** Refer to Table 15-2720-C.

TABLE 15-2720-C PERMITTED DISTRICTS AND AREA LIMITATIONS

District/Site Location	*Minimum Lot Size*	*Maximum Lot Size*
Residential District with access to a local street	3,000 sq. ft.	21,780 sq. ft.
Residential District with direct access to a major street	No minimum	2 acres
Residential Districts if part of a Planned Development, Multi-Unit Complex (must be for the sole use of residents), or Religious Assembly Facility	No minimum	No maximum
Non-Residential Districts	No minimum	3 acres
Publicly-Owned Site (e.g., Gov't Agency)	No minimum	No maximum

D. **Hours of Operation.** Gardens shall only be tended between dawn and dusk.

E. **Buildings and Structures.**

1. Garden sheds for storage of gardening tools and supplies; greenhouses that consist of buildings made of glass, plastic, or fiberglass in which plants are

cultivated; outdoor furniture such as benches, bike racks, picnic tables, fences, children's play areas; raised/accessible planting beds; garden art; rain barrel systems; and structures for the sale of produce may be permitted.

2. Buildings and structures, including temporary structures, shall comply with the property development standards of the underlying district.

3. The combined area of all buildings or structures shall not exceed 25 percent of the garden site lot area.

F. **Front Yards.** Yards along streets shall contain landscaping and/or planting.

G. **Fencing.**

1. Fences shall comply with Section 15-2006, Fences, Walls, and Hedges.

2. If proposed, fences shall be located at the rear of front yard setbacks. For street side yards, refer to Section 15-2006, Fences, Walls, and Hedges.

3. Security wire, including concertina, electrical fencing, etc. is prohibited.

H. **Equipment.** Only household garden tools and equipment, applicators and products, may be used. This includes, but is not limited to, soil preparation, cultivation, planting, application of chemicals, dust control, harvesting, etc. Pull-behind equipment is prohibited.

I. **Tillage/Excavation.** Prior to tillage or excavation for cultivation, parties shall be responsible for contacting the Underground Service Alert Program (telephone number 811).

J. **Maintenance.**

1. Curbside residential solid waste service is required. No burning of any material is permitted.

2. The operator shall be responsible for the overall maintenance of the site and shall remove weeds, debris, etc. in a timely manner.

3. Soil amendments, composting, and waste material shall be managed and shall not attract nuisance animals or support growth of flies.

K. **Sale of Produce.** Incidental sales may be permitted. Sales are limited to items that are grown on-site. Incidental, for purposes of this subsection, shall be defined as once per week.

L. **Animal Keeping.** Animal keeping is prohibited.

M. **Utilities.** The land shall be served by a water supply sufficient to support the cultivation practices used on the site.

N. **Restrooms.** If proposed, restrooms shall be connected to public utilities. Portable restrooms are not permitted.

O. **Drainage.** Water or fertilizer shall not drain onto adjacent properties, and no permanent retention of water shall be permitted. Dirt from the site shall not be tracked onto adjacent sidewalk, gutter, or street.

P. **Composting.** Composting is allowed as a minor accessory use to the site.

1. Composting must be done within a sealable container and may only consist of materials generated on-site.

2. The container must be setback at least three feet from property lines.

3. Composting must not lead to runoff of contaminated water nor expose adjacent properties to adverse noise, odors, pests, etc.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, §§ 56, 57, eff. 7-27-25).

SEC. 15-2721. CONCRETE BATCH PLANTS, STORAGE YARDS, AND SIMILAR USES.

A. **Applicability.** This section applies to facilities that by their very nature generally occur and provide for outdoor storage. More specifically, this section applies to:

1. Contractor's Storage Yards;

2. Outdoor Storage Yards;

3. Outdoor Lumber and Material Yards;

4. Concrete Batch Plants;

5. Commercial Landscaping suppliers (e.g., rockeries);

6. Pallet manufacturing, repair and storage; and

7. Other similar uses that are not directly associated with a specific construction site.

B. **Existing Facilities.** Existing facilities established prior to January 24, 2006 may continue to operate subject to the following conditions:

1. Compliance with all Conditions of Project Approval per the pertinent entitlement.

2. If an entitlement was not required per zoning regulations, the applicant shall provide evidence, satisfactory to the Director, that the facility:

a. Was established prior to January 1, 2012 and that the use has been in continuous use;

b. The site has had a valid business license since January 1, 2012; and

c. The site does not have any outstanding violations from Code Enforcement or the Fire Department.

C. **New Facilities.**

1. **Minimum Lot Size.** 10,000 square feet

2. **Location.** There shall be a minimum setback of 200 feet from property planned or zoned for:

   a. Residential uses;

   b. Office Uses;

   c. An integrated commercial shopping center; or

   d. A freeway, unless the freeway is depressed a minimum 10 feet from the natural grade of the subject site and there is a six foot masonry wall that screens visibility into the site.

3. **Landscaping and Screening.**

   a. There shall be a minimum 10 foot landscape area along all streets, unless a greater setback is required elsewhere in this Code or operative plan.

   b. A Screen Wall and gate, of seven feet in height shall be provided along all property lines. Said wall shall be located at the rear of required landscaping along streets, including freeways. Screen Walls, when located on a local industrial street or between industrial uses, may be a material other than masonry, subject to review and approval by the Director.

   c. Graffiti along perimeter Screen Walls shall be removed within 48 hours.

   d. Additional screening and landscaping, as determined by the Director may be required where necessary to prevent visual impacts on adjacent properties.

4. **Paving.** All storage areas shall be paved per the following standards:

   a. Public Works Standards for Parking Lots, or

   b. The surfacing shall consist of a minimum of two inches of asphalt concrete or three inches of road-mixed asphalt surfacing over native soil compacted in accordance with Public Works Standards. An alternative soil stabilizing agent may be applied and maintained, in lieu of asphalt concrete or road-mixed asphalt surfacing if approved in writing by the Public Works Director and the San Joaquin Valley Air Pollution Control District.

5. **Operational Requirements.**

   a. The operational statement shall articulate what items shall be stored on-site and for what purposes.

   b. There shall be no loading/unloading of vehicles and/or materials in the public right-of-way or within customer parking areas.

   c. Vehicles and/or materials may only be stored within designated areas per the approved entitlement.

   d. Personal storage of vehicles, such as boats or RVs, is prohibited.

   e. Retail Sales are prohibited.

6. **Stacking.** The stacking of products may not exceed two feet above the required screen wall, unless it is not visible from a Residential Use or District or a public street.

7. **Infrastructure Requirements.**

   a. Off-site improvements may be required by the City.

   b. The facility shall be served by a public sewer system. Private septic sewer systems are prohibited.

   c. Adequate facilities and infrastructure shall be provided for fire protection as determined by the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2722. CORNER COMMERCIAL.

A. **Purpose.** The purpose of this section is to allow for the development of small-scale, neighborhood-serving commercial establishments that can provide convenient, walkable access to important amenities and that can increase the sense of community and value to the surrounding neighborhood.

B. **Permit Required.** A proposal for a Corner Commercial use shall require a Zone Clearance subject to Article 51.

C. **Reserved.**

D. **Permitted Types.** Corner Commercial uses are limited to the following:

1. Counter-Service cafes and coffee shops;

2. Delicatessens;

3. Bakeries;

4. General Markets and Healthy Food Grocers;

5. Flower shops; and

6. Bike shops and bike repair services.

E. **Design Standards.** Per the underlying district and the following:

1. The building must maintain the appearance of a single-unit home and fit architecturally with the neighborhood.

2. The commercial use must be easily recognizable from the front façade through the use of large windows or an active outdoor use such as produce stands or café seating.

3. Outdoor seating for cafes, etc. is allowed in the front and rear yards, setback at least 10 feet from adjacent residential property lines or fences, whichever is closer to the use, and shall be oriented to minimize impacts on any adjacent residences.

4. The commercial area shall be limited to 1,500 square feet.

5. **Signage.**

   a. Illuminated signage is not permitted.

   b. Up to two outdoor signs, with a combined total of 24 square feet or less in size, are permitted. Signs must be visually compatible with the building and surrounding neighborhood.

   c. Wall or window-mounted Menu Display Boards (less than two square feet in area) and A-Frame (sandwich) signs that display daily specials, etc. are permitted, but may not be located in the public right-of-way.

F. **General Regulations.**

1. Reserved.

2. Alcohol sales are prohibited.

3. Hours of operation shall be limited to 6 a.m. to 10 p.m.

4. Amplified music is not permitted outside.

5. Drive-throughs are prohibited.

6. Any storage of materials or trash outside must be enclosed.

G. **Parking.** On-site parking shall be limited to residents.

H. **Location.**

1. Must be located on a corner lot where intersecting a Major Street.

2. The building must front the Major Street with the main access to the commercial area provided from that street.

I. **Findings.** The following shall be added as required Zone Clearance findings.

1. The use must be oriented to serve the immediate neighborhood, promoting health and facilitating a sense of community between neighbors.

2. The use must complement the residential character of the neighborhood and will not adversely impact adjacent properties.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 26, eff. 6-11-18; Am. Ord. 2018-66, § 47, eff. 1-18-19; Am. Ord. 2025-024, § 58, eff. 7-27-25).

SEC. 15-2723. COTTAGE HOUSING DEVELOPMENTS (POCKET NEIGHBORHOODS).

A. **Purpose.**

1. To provide a diverse range of housing to support a diversity of households.

2. To provide infill development opportunities.

3. To protect the character of single-unit neighborhoods.

4. To promote community interaction and safety through design.

B. **Alterations Required by the Fire Department.** Any of the provisions found in this section may be altered by request of the Fire Department in order to meet safety standards.

C. **Unit Types and Sizes.** One-unit and two-unit cottages are permitted.

D. **Density and Number of Units.**

1. The allowed number of units is up to 1.33 percent of the number permitted in the underlying district.
2. There shall be a minimum of four units and a maximum of twelve units per cluster.
3. A two-unit cottage is allowed for the fifth and sixth, and eleventh and twelfth units.

E. **Common Open Space.**

1. Four hundred square feet of common open space shall be provided per unit. If multiple clusters are located within a development, up to 200 square feet per unit may be used for a development-wide or multi-cluster common open space.
2. Required setbacks, private open space, utility areas, and areas less than 10 feet in width cannot count toward the common open space requirement.
3. Common open space for each cluster shall be in one contiguous, useable piece with a minimum dimension of 15 feet on all sides.
4. Common open space and community buildings shall be centrally located and easily accessible to all units.
5. Common open space should have a sense of openness and be maintained to provide for passive and/or active recreational activities. Some encouraged uses are lawns, gardens, patios with tables and chairs, etc. More active uses such as playing courts are also encouraged as long as they do not dominate the common open space.
6. Fences may not be located within required common open space areas.
7. Required trails may count towards the common open space requirement provided each unit has pedestrian access to the trail(s).
8. Any open space that cannot be used for enjoyment of residents may not count towards the required total. These include, but are not limited to, ponding basins, buffers, areas with a steep slope, etc.
9. **Community Building.**
    a. If a community building is provided, it may count for 200 square feet of required common open space per unit up to 25 percent of the total requirement.
    b. Community buildings must be limited to one story, be incidental in size and use, and be architecturally consistent with the rest of the development.
    c. Community buildings must be located on the same site as the cottage housing development and be easily accessible to all units within the development.
    d. Community buildings must be under common ownership by the residents.

F. **Design Standards of Units.** Dwellings within a cottage housing development should be oriented to promote a sense of community both within the development and with respect to the larger community. They must be architecturally compatible with the surrounding neighborhood and must not be designed to be enclosed or hidden from the surrounding neighborhood.

1. **Orientation to Public Street.**

   a. For units abutting a public street, no less than 20 percent and no more than 40 percent of street-facing elevations shall consist of windows. Windows shall have a vertical orientation, meaning the height of each window is greater than its width.

   b. Units abutting a public street shall orient their primary entrance to the public street.

2. **Orientation to Common Open Space.**

   a. With the exception of units abutting a public street, all units must have their primary entryway oriented towards the common open space.

   b. Cottages must surround the common open space on at least two sides.

3. **Pedestrian Circulation.**

   a. Pedestrian paths shall link all units to common open space within the development, to parking areas, and to sidewalks, especially where there are transit stops. Paths entering the development from the sidewalk shall be at least five feet wide to promote a sense of openness.

4. **Private Open Space.**

   a. A minimum of 250 square feet of private open space is required per unit. This is inclusive of required porch and yard space.

   b. Each unit must have a covered porch over the primary entryway with a minimum area of 64 square feet per unit and a minimum of seven feet on all sides. Railings are encouraged.

   c. A yard, with a minimum dimension of 10 feet, is required adjacent to primary entryway porch.

   d. Fences or hedges shall not exceed three feet in height.

   e. Yards and porches should add to the visual variation of each unit.

5. **Floor Area and Height.**

   a. Unit floor area shall be between 600 and 1,200 square feet.

   b. Cottages shall not have the appearance of "tall, skinny houses."

   c. Cottages shall be no more than two stories. Height must comply with the underlying zone district.

6. **Variation between Units.**

   a. There shall be variation between units, while maintaining architectural consistency, to prevent repetitive use of building styles within any cluster, development, and adjacent dwellings. Some ways to achieve this variation include varied rooflines, elevations and height, floor area, stories, entryways, yards, etc. Multi-cluster developments may repeat one design per every three clusters, but repeated designs may not be placed in proximity to one another.

7. **Roof Design.**

   a. Units shall have a minimum 6:12 pitched roof. Roof slopes lower than 6:12 are limited to architectural features such as dormers and porch roofs and may not be less than 4:12.

   b. Alternate roof designs may be approved if it is found that they meet all other compatibility and design requirements prescribed by this section.

8. **Windows.**

   a. Placement of windows shall avoid creating privacy issues for adjacent units and neighboring properties.

   b. Window trim shall be provided.

9. **Setbacks.**

   a. All buildings shall be separated by at least eight feet. Minor architectural projections are allowed.

G. **Parking.**

1. **Required Amount.**

   a. One garage is required per unit for use by residents of that unit.

   b. 0.5 guest spaces are required per unit and may be provided under carports or on surface lots.

   c. Guest parking may be provided off-site if the Director deems there is adequate space.

2. **Design and Orientation.** Parking areas shall be separated from the common open space area and, to the extent possible, shall not be visible from the street.

   a. **Attached Garages.**

      i. May be accessed from the side or rear of the unit.

      ii. If oriented towards the street, may not dominate the façade, and must be either flush with or set back from the rear of the building.

      iii. Garage doors shall provide windows, moldings, or other architectural features to help blend with the rest of the home.

      iv. The first 250 square feet shall not be counted towards maximum floor area.

b. **Detached Garages and Carports.**

i. Must be architecturally consistent with the development (e.g., similar rooflines).

ii. May not exceed a total of four spaces per parking structure.

iii. If located in-between units, may not exceed two spaces and must be setback 10 feet from the primary façade.

c. **Surface Lots.**

i. For every six spaces provided there must be a landscaped area of no less than 10 square feet, which may include a pedestrian path.

ii. If located in-between units, may not exceed two spaces and must be setback 10 feet from the primary façade.

d. **Private Driveways.**

i. Must be designed as a woonerf.

ii. Driveways must be located to the rear of units.

e. **Preferred Location of Lots and Structures.**

i. 1. To the rear of the development, accessed via an alley.

2. To the side or rear of the development, accessed by a private driveway.

3. To the side of the development accessed from a non-primary street.

H. **Trash Enclosures.** See Section 15-2016, Trash and Refuse Collection Areas.

I. **Homeowners' Association.** A homeowners' association is required for the maintenance of common areas.

J. **General Provisions.**

1. Reserved.

2. An existing single-unit home or duplex that does not meet the requirements of this section is permitted to remain on the site, provided that the extent of its nonconformity is not increased.

3. A covenant restricting any increases in unit size after initial construction shall be recorded against the property.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 59, eff. 7-27-25).

SEC. 15-2724. CYBER/INTERNET CAFÉS.

A. The establishment shall have an employee present during all hours of operation.

B. Alcohol sales shall be limited to beer and wine for on-site consumption.

C. Gambling, including sweepstakes, and gambling simulation games such as video versions of slot and table games are prohibited. Other uses may be prohibited as determined by Council action or by State and federal laws.

D. The establishment shall not create nor contribute to public nuisance or criminal activities which are harmful to the health, peace, safety, or general welfare of people residing, working, or visiting in the surrounding area.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2725. CHILD CARE CENTERS AND FAMILY CHILD CARE HOMES.

A. **Types of Day Care Facilities.**

1. **Child Care Facility.** A facility that provides nonmedical care to children under 18 years of age in need of personal services, supervision, or assistance essential for sustaining the activities of daily living or for the protection of the individual on less than a 24-hour basis. Child care facility includes child care centers, employer-sponsored child care centers, and family child care homes. Each of these different types of child care facilities is subject to different regulations and land use requirements.

2. **Child Care Center.** A child care facility that does not include a Family Child Care Home and is usually located in a commercial building that provides non-medical care and supervision to children (infant through school age) in a group setting for periods of less than 24 hours.

3. **Family Child Care Home.** A child care facility that provides supervision to children (infant through school age) in the caregiver's own home for periods of less than 24 hours per day. Per State law, Family Child Care Homes are not limited to

detached single-unit homes. The operation of a family child care home constitutes an accessory use of residentially zoned and occupied properties and does not fundamentally alter the nature of the underlying residential use.

a. **Large Family Child Care Home.** A home that provides family day care for 7 to 14 children, inclusive, including children under the age of 10 years who reside at the home.

b. **Small Family Child Care Home.** A home that provides family day care for eight or fewer children, including children under the age of 10 years who reside at the home. The use of a single-unit residence as a small family child care home shall be considered a residential use of property for the purposes of all local ordinances, and shall not require an entitlement or business tax certificate.

B. **Minimum Standards for Child Care Centers.**

1. **License.** The operator shall secure and maintain a child care center license from the State of California Department of Social Services.

C. **Standards for Family Child Care Homes.**

1. **License.** The operator shall secure and maintain a license from the State of California Department of Social Services.

2. **Large Family Child Care Separation.** A proposed Family Child Care Home shall not be located closer than 300 feet from the nearest lot line of another large family day care home for which a Discretionary Permit has already been issued and is in effect. However, the Director may allow the proposed large family day care home to be located closer than 300 feet if it is determined that such closer location will not have an adverse effect on surrounding properties or on vehicular or pedestrian safety in the area.

3. **Fire Clearance.** A fire safety clearance approved by Fresno Fire Department is required for Large Family Child Care Homes.

4. **Play structures.** Large family child care homes must meet play structure setback and placement requirements in section 15-2004 that apply to all single-unit dwellings.

D. **Additional Standards.**

1. All Large Family Child Care providers are required to obtain a Conditional Use Permit, as put forth in Article 53, Conditional Use Permits. Conditions associated with the Conditional Use Permit shall not exceed the standards and conditions outlined in this Section 15-2725.

2. All Child Care Centers and Family Child Care Homes shall provide parking as required in Article 24, Parking and Loading.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 25, eff. 7-30-17; Am. Ord. 2025-024, § 60, eff. 7-27-25).

SEC. 15-2726. DEMOLITION AND HOUSE MOVING.

A. **Demolition.** All structures proposed for demolition shall be reviewed by the City's Historic Preservation Officer and the San Joaquin Valley Air Pollution Control District.

B. **House Moving.**

1. **On-Site.** Prior to a structure being moved onto a site, the home shall be reviewed to ensure compatibility with the neighborhood as determined by the Director. Homes shall be subject to the Property Development Standards and adopted policies and procedures of the underlying District.

2. **Off-Site.** Prior to a structure being relocated off-site, the home shall be reviewed by the City's Historic Preservation Officer.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2727. DEVELOPMENT OF FORMER LANDFILL SITES AND HAZARDOUS SITES.

A Conditional Use Permit shall be required for the development of all former Landfill Sites and other sites deemed hazardous, regardless of the proposed use. As part of the application, the applicant shall at a minimum, provide a geotechnical report that provides a complete analysis of on-site soil conditions, fault hazards, underground water conditions, and recommendations as well as a post-closure plan that outlines remediation measures. Applicants shall comply with all State and Federal regulations related to operation, post-closure remediation, and monitoring.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2728. DRIVE-IN AND DRIVE-THROUGH FACILITIES.

Drive-in or drive-through facilities shall be located, developed, and operated in compliance with the following standards:

A. **Where Allowed.** Drive-in and drive-through facilities are allowed per base district land use regulations.

B. **Separation Requirements.**

1. **From Residential Districts.** Drive-through ordering intercoms or other amplified speaker interface shall not be located within 100 feet of a Residential District.

2. **Space between Drive-Throughs.** A building with a drive-through lane shall not be located within 400 feet of another structure containing a drive-through facility.

a. **Exceptions.**

i. This requirement does not apply in the CH Commercial—Highway and Auto district. However, compatibility with traffic flow shall still be assessed.

ii. This requirement does not apply within 1,000 feet of a freeway exit.

iii. This requirement does not apply to projects involving an existing drive-through that is required to relocate due to property being acquired as a result of a public work project and where the new location is within 1 mile of the original location.

C. **Drive-In and Drive-Through Aisles.** Drive-in and drive-through aisles shall be designed to allow safe, unimpeded movement of vehicles at street access points and within the travel aisles and parking space areas. Aisles shall be designed to provide adequate visibility at their intersection with streets or travel aisles. See Section 15-2018, Intersection Visibility.

D. **Landscaping.** Each drive-through aisle shall be screened with a combination of decorative walls and landscape to a minimum height of 30 inches to prevent headlight glare and direct visibility of vehicles from adjacent streets, parking lots, and the public right-of-way.

E. **Menu Boards.** A maximum of two menu boards, not exceeding 20 square feet in area apiece, with a maximum height of six feet are permitted per drive-through. Should a facility have two drive-throughs, each drive-through may have two menu boards. All outdoor speakers shall be directed away from any residential district or residential use.

F. **Pedestrian Walkways.**

1. Pedestrian walkways shall not intersect drive-in or drive-through aisles, unless no alternative exists due to physical site constraints. In such cases, pedestrian walkways shall have clear visibility, emphasized by enhanced paving or markings.

2. A pedestrian walkway crossing a drive-through lane will be allowed when it is the pedestrian pathway that links the site to the rest of the shopping center. This pathway must be located at the end of the drive-through lane and must be clearly delineated with striping or contrasting paving. Signage notifying drivers in the drive-through lane of the pedestrian crossing shall be provided.

G. **Site and Building Design.**

1. Walls along the street face and visible from the street, shall be transparent with windows, doors, and other forms of transparent building materials to maximize views in and out of the building and the relationship between interior and exterior to support and animate the public street and sidewalk.

2. Drive-through elements shall be placed to the side or rear of the building.

3. Drive-through aisles shall be designed to reduce idling. Signage to encourage customers not to idle shall be placed either before or at the entrance of a drive-through aisle.

H. **Hours of Operation.** Should a drive-through facility be located closer than 100 feet from a Residential District, the drive-through shall close no later than 10 p.m.

I. **Equal Access.** Whenever service is limited to drive-through facilities, customers using non-motorized transportation shall have equal access to service.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 26, eff. 7-30-17; Am. Ord. 2018-25, § 27, eff. 6-11-18; Am. Ord. 2025-036, § 2, eff. 10-23-25).

SEC. 15-2729. EMERGENCY SHELTERS.

Emergency shelters shall be located, developed, and operated in compliance with the applicable base district and the following standards:

A. **Number of Residents.** The number of adult residents, not including staff, who may be housed on a lot that is smaller than one acre shall not exceed the number of persons that may be accommodated in any hospital, elderly and long term care facility, residential, transient occupancy, or similar facility allowed in the same district.

B. **Length of Occupancy.** Occupancy by an individual or family may not exceed 180 consecutive days unless the management plan provides for longer residency by those enrolled and regularly participating in a training or rehabilitation program.

C. **Outdoor Activities.** All functions associated with the shelter must take place within the building proposed to house the shelter, except for children's play areas, outdoor recreation areas, parking, and outdoor waiting. Outdoor waiting for clients, if any, may not be in the public right-of-way, must be physically separated from the public right-of-way, and must be large enough to accommodate the expected number of clients.

D. **Minimum Hours of Operation.** At least eight hours every day between 7 a.m. and 7 p.m.

E. **Employee Presence.** On-site employee presence must be provided at all times.

F. **Toilets.** At least one toilet must be provided for every 15 shelter beds, unless a greater number is required by State law.

G. **Management Plan.** The operator of the shelter must submit a management plan for approval by the Director. The Plan must address issues identified by the Director, including transportation, client supervision, security, client services, staffing, and good neighbor issues.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2730. FARMER'S MARKETS.

Farmer's Markets may be located, developed, and operated in compliance with the following standards:

A. **General Provisions.**

1. **Types of Farmer's Markets.**

a. **Permanent Indoor Farmer's Market.** A Farmer's Market which takes place within a fully enclosed building which is not able to be disassembled when the Farmer's Market is not in operation. Permanent Indoor Markets shall be considered a Healthy Food Grocer and shall not be subject to this section.

b. **Permanent Off-Street Farmer's Market.** A Farmer's Market which takes place off-street within structures that are open to the sky on one more side and which are not able to be disassembled when the Farmer's Market is not in operation.

c. **Temporary Off-Street Farmer's Market.** A Farmer's Market which takes place in a parking lot or other off-street location within structures that are able disassembled when the Farmer's Market is not in operation.

d. **On-Street Farmer's Market.** A Farmer's Market which takes place within a street.

2. **Permits Required.**

a. **City Permits.**

i. A Zone Clearance or Conditional Use Permit shall be required as specified in the applicable Base or Overlay District.

ii. A Street Closure Permit shall be required for On-Street Farmer's Markets.

iii. A Building Permit shall be required for permanent structures and tents larger than 400 square feet.

b. **Other Agencies.** Review and approval may be required from other agencies, including the Fresno County Health Department. Issuance of a Zone Clearance or Conditional Use Permit by the City does not relieve an applicant of the obligation to secure all permits required by other agencies prior to commencement of operations.

3. **Submittal Requirements.** In addition to standard submittal requirements for the applicable permits, the following information shall be provided with applications for Farmer's Markets:

a. **Site Plan.** A site plan showing the proposed layout shall be provided. The site plan shall show all information necessary to demonstrate compliance with this section and other applicable regulations, including the following:

i. The site plan should clearly show the location of Farmer's Market stands, and restroom locations as they relate to all of the existing buildings, landscaping, and access points on the site.

ii. Both vendor and customer parking need to be indicated on a site plan. This can be accomplished on the same property as the proposed farmer's market or on an adjacent property with the permission of the owner.

b. **Traffic Control Plan.** On-Street Farmer's Markets shall submit a traffic control plan that shows the exact area of the streets to be closed, detour routes, barricade locations, and traffic control signage.

c. **Insurance.** On-Street Farmer's Markets may require additional insurance, as determined by the City's Risk Manager.

4. **Public Notice.** When proposed in a Residential District or on a site which abuts a Residential District, public noticing shall be required per Section 15-5007 prior to issuance of a Zone Clearance or Conditional Use Permit.

B. **Site Design Development Standards.** Unless otherwise specified, Farmer's Markets shall follow all applicable site design development standards of the Base or Overlay District. The following shall also apply:

1. **Sales Area Paving.**

a. **Permanent Off-Street Farmer's Market.** Sites shall be paved with asphalt, concrete, pavers, or similar materials as determined by the Review Authority. The sales area shall not consist of turf, dirt, or gravel.

b. **Temporary Off-Street Farmer's Market.** The sales area may be paved with asphalt, concrete, pavers, or similar materials, and may also consist of turf or artificial turf. The sales area shall not consist of dirt or gravel.

2. **Setbacks.** Display areas shall comply with the setbacks of the applicable Base or Overlay District, however in no case shall setbacks be less than 10 feet from any side or rear property line.

3. **Parking.**

a. **Permanent Off-Street Farmer's Market.** Permanent Outdoor Farmer's Markets shall provide parking per one space per 1,000 square feet of sales area.

b. **Temporary Off-Street Farmer's Market.** None required, however available parking spaces for other uses on the site shall not be reduced by more than 40 percent. An exception may be made if a parking study, prepared by a Licensed Traffic Engineer, concludes that there is adequate parking in the area, not including on-street parking in Residential Districts.

c. **On-Street Farmer's Markets.** None required.

4. **Layout.**

a. Aisles shall be no less than 20 feet wide.

b. A group of adjacent tents shall not exceed 700 square feet. Each group must be separated by no less than 12 feet.

c. Other safety requirements may be applied by the Police Department, Fire Department, or Building Division.

5. **Appearance.** Stands should be uniform in appearance and be covered by a white pop-up canopy or tent that measures approximately 10 feet x 10 feet. Other colors and designs may be considered at the discretion of the Review Authority, but in no circumstances shall tarps be permitted in lieu of a tent or canopy.

6. **Signs.** Signs, including directional signs, shall comply with Article 26, Signs.

C. **Operational Requirements.**

1. **Products.**

a. **Agricultural Products.** Unprocessed agricultural products in their natural state shall comprise at least 60 percent of the retail space available.

b. **Other Allowed Products.** The exhibition and sale of the following shall not exceed 40 percent of the retail space available:

i. Processed foods such as dried fruit, cheese, or bread, and similar agricultural products.

ii. Artisan handiwork or art.

iii. Mobile Vendors.

iv. Beer and Wine. The Vendor must be a licensed beer manufacturer or winegrower and shall obtain approval from the Police Department, a sales permit from the Department of Alcoholic Beverage Control, and a Temporary Use Permit from the City. Vendor operations, including sales and tastings, shall comply with all State and County rules and regulations.

c. **Prohibited Products.**

i. Alcoholic beverages other than wine or beer.

ii. New, commercially produced merchandise that is not agricultural-related.

iii. Second-hand or used merchandise.

iv. Tobacco products.

v. Livestock.

2. **Management.** There shall be a Market Manager, which may be a vendor, during all hours of operation. The Market Manager shall ensure compliance with City regulations and for resolving issues that may arise as part of the operation of the Farmer's Market. The Manager's contact information shall kept on file with the Planning Division.

3. **Time Limits.** In Residential Districts Farmer's Markets shall not operate, including setting-up, between the hours of 9 p.m. and 7 a.m.

4. **Refuse/Litter.** The operator or Market Manager shall provide trash and recycling collection bins and shall be responsible for collecting refuse after each event, including in the parking lot. The site, including parking areas, must be left in a clean condition when not in operation.

5. **Noise.** In Residential Districts, or abutting a Residential District, there shall not use amplified sound for any purpose.

6. **Truth in Advertising Disclaimer.** If the vendors are not the actual farmers, then that should be made clear to the consumer by use of a small sign at each vendor stand.

7. **Post-Operation Clean Up.** All evidence of the Farmer's Market must be removed from the site (including all tables, tents, canopies, temporary membranes, barricades, products, signs, litter, etc.) when it is not in operation. Permanent structures and signs are excepted.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2731. FLEA MARKETS.

Flea Markets, including Swap Meets and Open-Air Markets, that do not meet the strict definition of a Farmer's Market, may be permitted subject to the following standards.

A. **Size.** Flea Markets shall be a minimum of five acres in area.

B. **Sales Area Paving.** The site shall be paved, per Public Works Standards (Parking Lots) to mitigate dust.

C. **Parking.** Refer to Article 24, Parking and Loading. Parking shall be paved per Public Works Standards.

D. **Screening.**

1. **Along Public Streets.** The perimeter of the area used by vendors shall be screened. Screening shall be located at the rear of the required landscaping along public streets.

2. **Customer Parking Area.** The customer parking area is not required to be screened, unless adjacent to a Residential District. If adjacent to a Residential District, refer to Article 24, Parking and Loading.

3. **Screening Material.** Refer to 15-2008-C, Screening Wall Standards.

E. **Perimeter Landscaping.** Flea Markets shall provide 20 feet of landscaping along public streets and along a shared property line with residential districts, unless a greater landscape setback is required by another Article or operative plan.

F. **Restrooms.** Permanent restrooms, connected to City utilities, shall be provided.

G. **Alcohol.** Alcohol consumption is prohibited.

H. **Time Limit.** Hours shall be limited from 6 a.m. to 5 p.m. Vendors may arrive one hour prior to opening and may remain one hour after 5 p.m. to load their merchandise. An exception to the hours of operation may be permitted should the Flea Market also serve as a drive-in movie theatre.

I. **Number of Events.** The Flea Market shall not operate more than three days per week.

J. **Refuse/Litter.**

1. The facility shall provide adequate trash and recycling enclosures for the collection of refuse.

2. The operator shall be responsible for collecting trash after each event, including in the parking lot.

K. **Management.** An establishment shall have an employee present during all hours of operation.

L. **Products.**

1. **Display Areas.** All products shall be sold within a designated area.

2. **Animals.** Only Household Pets may be sold, including birds, fish, dogs, cats, and reptiles.

3. **Vehicles.** Vehicles shall be showcased within a designated area and shall not occupy required parking spaces.

4. **Food Vendors.** Food Vendors, including Mobile Vendors may sell within a designated area accessed from within the facility.

5. **Contraband/Stolen Goods.** The operator shall take measures to prevent the sale of contraband, including stolen goods, 'knock-off' merchandise that violates patents and trademarks, firearms, fireworks, firecrackers, drugs, etc. The operator shall provide a written statement articulating what security measures will be implemented to prohibit the sale of contraband.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2732. HAZARDOUS WASTE MANAGEMENT FACILITIES.

All hazardous waste management facilities, except household hazardous waste collection centers authorized by the City and the Fresno County Health Department, shall be located, developed, and operated in compliance with applicable Federal and State laws and regulations, as well as the following:

A. **Application Content.** Applications for hazardous waste management facilities shall include the following:

1. **Site Plan.** A detailed site plan depicting all buildings, land uses, storage areas, parking areas, driveways, internal and surrounding traffic circulation. Occupancy type and rating for each building or structure shall be identified.

2. **Best Management Practices.** Demonstrate and certify that they are minimizing the generation of hazardous waste through the use of the best available technology within their manufacturing, and/or product development processes. Applicants shall also demonstrate and certify that facilities will be using the best available control technology in minimizing air emissions and processing hazardous waste. Such demonstration and certification shall be provided prior to the issuance of any building permit or other land use entitlement.

3. **Waste Characteristics and Capacity.** Identify the amounts (in tons) and types of hazardous waste to be treated and stored; the duration of stored waste on the facility site and the ultimate destination of the waste. The owner-operator shall make this information available on a yearly basis to the City of Fresno. If the application is for a transfer station the applicant shall identify the capacity of the facility to store each type of waste stream, service area(s) of the facility and ultimate disposition of the waste.

4. **Air Quality Analysis.** An analysis of all anticipated air quality impacts and proposed mitigation measures. The hazardous waste facility shall comply with all applicable State and federal laws as well as all rules and regulations of the San Joaquin Valley Air Pollution Control District.

5. **Risk Assessment.** A risk assessment which analyzes in detail all probabilities of accidents or spills at the site, including transportation related, or accidents from the point of origin to the facility, and any other risk assessment requested by either the City Manager, Director, Fire Chief, or the City Council. Such analyses shall identify mitigation measures to reduce the identified risks. The risk assessment shall identify the most probable routes for transporting hazardous wastes to and from the facility.

6. **Emergency Response Plan.** An Emergency Response Plan that indicates at a minimum:

    a. That the proposed plan is consistent with any and all applicable County and regional Emergency Response Plans and all City, County, State and federal regulatory requirements regarding Emergency Response Procedure.

    b. Detailed procedures to be employed at the time of emergency for each type of chemical substances utilized including contingency procedures.

    c. Anticipated impacts on local fire, police, and medical services.

    d. Names, home, and business addresses, and home and business telephone numbers of all management personnel at the facility, if known, and a detailed description of uncontrolled release and emergency situation reporting procedures.

B. **Flooding Information.** An analysis of the potential of flooding on the site. Note residual repositories are prohibited in areas of special flood hazards as depicted by FEMA Flood Hazard Maps.

C. **Traffic Analysis.** Applicants shall submit a traffic analysis which addresses, at a minimum, vehicle-truck trips, effects on nearby intersections, and any special characteristics of the project site. Applicants shall also identify the most likely transportation routes within the city and the county.

D. **Closure Plan.** The owner or operator of a hazardous waste facility shall, prior to any local land use decision, submit a written Closure Plan to the Fresno County Health Department. The Closure Plan shall be approved the Fresno County Health Department. All revisions to such Closure Plans shall also be submitted to the Fresno County Health Department.

E. **Safety.** The owner/operator shall demonstrate that the separation between the hazardous waste facility and residential areas is adequate to protect the health, safety, welfare, and property values of residents.

F. **Monitoring.** At minimum, hazardous waste facilities are subject to the following monitoring requirements:

1. Upon reasonable notice, and for the purpose of ensuring compliance with all standards, conditions, and other requirements which the City is authorized to enforce under its police power, City Officials or their designated representatives may enter the premises on which a hazardous waste facility permit has been granted.

2. The owner or operator of a facility shall report yearly to the Fresno County Department of Health, Environmental Division the amount, type, and disposition of all wastes processed by the facility. Included in the report shall be copies of all manifests showing the delivery and types of hazardous wastes and include a map showing the exact location (coordinates and elevation) of quantities and types of materials placed in repositories or otherwise stored or disposed of on-site.

3. The owner or operator of a hazardous waste facility shall immediately send copies of all complaints as to facility operations and copies of all inspection reports made by other local, State, or federal agencies to the Fire Chief and City Engineer.

4. Owners/Operators of all facilities shall prepare and submit an Annual Emergency Response Preparedness Report to the Fire Department and all other local emergency response agencies. Such report shall be signed by all management personnel at the facility and each person at the facility who has emergency response responsibilities.

5. Owners/Operators of all facilities shall submit an annual Air, Soil, and Groundwater Monitoring Report to the City Engineer.

G. **Modifications.** Any modifications of the types and quantities of hazardous waste to be managed at the facility which were not included in the approved application for a Conditional Use Permit shall be approved by the Fire Chief and City Engineer before such modifications occur at the facility.

H. **Contingency Plan.** Every hazardous waste facility shall have a contingency operation plan approved by the California Department of Health Services. A copy of the contingency plan shall be maintained at the facility and sent to the Police Department, Fire Department, Engineering Division, and the County Department of Environmental Health.

I. **Financial Assurance.** Prior to issuance of an "Occupancy Permit" to begin the use of a hazardous waste facility, the applicant shall show proof that it has met all of the financial responsibility requirements imposed by the California Department of Health Services and any other federal or State agency.

J. **Indemnification.** The applicant agrees to indemnify, defend, and render harmless the City, and its City Council and all officers, employees, and agents of the City against and from all claims, actions, and liabilities relating to the land use decision or arising out of the operation of the facility.

K. **Enforcement.** All costs of compliance with this Ordinance shall be borne by the facility owner/operator. The City shall employ any and all methods permitted by law to enforce this Ordinance.

L. **Maintenance.** The owner/operator shall keep all equipment and buildings in good repair and shall employ technological advances as may be required by the California Department of Health Services, San Joaquin Valley Air Pollution Control District, or U.S. Environmental Protection Agency.

M. **Findings.** The following findings shall be made in writing prior to making a land use decision which will allow the siting of a hazardous waste facility project:

1. The project is consistent with the General Plan.
2. The project will not be detrimental to the health, safety, general welfare, or property values of the community or nearby residents.
3. The project will not significantly reduce incentives for waste minimization by hazardous waste generators.
4. There are adequate City services available to service the project.
5. The project has met or exceeded each requirement of this Ordinance.
6. Any potential impacts identified in the CEQA analysis may be adequately mitigated.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2733. HOBBY STORES.

Hobby stores may have outdoor activity areas subject to the following standards:

A. For outdoor facilities that provide batting cages, paintball, airsoft, or similar activities, fences, nets, or walls shall be provided that are capable of stopping all projectiles fired and/or hit by containing or redirecting the projectile to the backstop.

B. Activities, such as batting cages, paintball, remote control race tracks, hobby helicopters, and go-karts that may generate unwanted noise, shall cease by 10 p.m. (and may not renew operations until 8 a.m. the following morning) unless separated by 400 feet or greater from a Residential District. A greater distance or additional mitigation measures may be required to mitigate noise to acceptable levels.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2734. HOME GARDENS AND EDIBLE LANDSCAPING.

Gardens, as part of existing and new single-unit homes, may be incorporated into all yards. Raised garden/accessible garden beds are permitted, but not required. Raised garden beds shall comply with site line requirements per this Ordinance. Only household garden tools and equipment, applicators, and products, may be used. This includes, but not limited to, soil preparation, cultivation, planting, application of chemicals, dust control, harvesting, etc.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 61, eff. 7-27-25).

SEC. 15-2735. HOME OCCUPATIONS.

A. **Purpose.** The purpose of this section is to:

1. Permit home occupations as an accessory use in a dwelling unit;
2. Allow residents to operate small businesses in their homes, under certain specified standards, conditions, and criteria;
3. Allow for "telecommuting" and reduced vehicle use;
4. Ensure that home occupations are compatible with, and do not have an adverse effect on, adjacent and nearby residential properties and uses;
5. Ensure that public and private services, such as streets, sewers, water, or utility systems, are not burdened by the home occupation to the extent that usage exceeds that normally associated with a residential use; and
6. Preserve the livability of residential areas and the general welfare of the community.

B. **Applicability.** This section applies to all residential units and properties in the city regardless of their zoning designation. It does not apply to family day care homes, which are regulated separately in Section 15-2725, Day Care Centers and Family Child Care Homes.

C. **Zoning Clearance Required, Not Transferable.** A Zoning Clearance is required for each home occupation, pursuant to the provisions of Article 51, Zone Clearance. A Zoning Clearance to conduct a home occupation at a particular address is not transferable from one party to another, nor may the type of business be modified. A new Zoning Clearance must be obtained for each new home occupation.

D. **Operational and Performance Standards.** Home occupations must be located and operated consistent with the standards of this Code.

E. **Residential Appearance.** The residential appearance of the unit within which the home occupation is conducted shall be maintained, and no exterior indication of a home occupation is permitted.

1. **Location.** All home occupation activities shall be conducted entirely within the residential unit, or within a garage that is reserved for the residential unit. When conducted within a garage, the doors thereof shall be closed, and the area occupied shall not preclude the use of required parking spaces.
2. **Structural Modification Limitation.** No structural alterations shall be made to create features not customary in dwellings.
3. **Maximum Size.** The space exclusively devoted to the home occupation (including any associated storage) shall not exceed 25 percent of the residential unit floor area.
4. **Employees.** One employee or independent contractor other than residents of the dwelling may be permitted to work at the location of a home occupation. All work conducted by employees shall be conducted completely within the home or garage.
5. **On-Site Client Contact.** No customer or client visits are permitted except for personal instruction services (e.g., musical instruction or training, art lessons, academic tutoring). A total of eight clients and/or students per day may be permitted, however there may be no more than three clients/students at any one time. Clients/students hours of arrival and/or departure shall be staggered as to not disrupt the surrounding properties.
6. **Employee/Client Parking.**
    a. Customers, clients, and/or employees shall park on-site. If the site cannot accommodate an on-site parking space for the lack of drive approach or parcel width, they may park off-site.
    b. Parking required for customers/clients/employees may be tandem.
    c. The home occupation shall not cause resident occupants to park their vehicles in other locations.
7. **Hours.** Employees, visitors, students, and/or clients are permitted between the hours of 7 a.m. to 7 p.m.
8. **Direct Sales Prohibition.** Home occupations involving the display or sale of products or merchandise are not permitted from the site except by mail, telephone, Internet, or other mode of electronic communication, unless permitted per Cottage Food Preparation as detailed below.
9. **Storage.** There shall be no storage of materials, supplies, and/or equipment in an accessory building, or outdoors. Storage may only occur within a garage if it does not occupy or obstruct any required parking space. Contractors whose work is conducted entirely off-site (and who use their home solely for administrative purposes related to the contracting business) may store construction, electrical, landscaping, plumbing, or similar supplies or materials within a single vehicle of one ton or less.

10. **Traffic and Parking Generation.** Home occupations shall not generate a volume of passenger or commercial traffic that is inconsistent with the normal level of traffic on the street on which the dwelling is located or which creates the need for additional parking spaces, or involve deliveries to or from the premises in excess of that which is customary for a dwelling unit. There shall be no deliveries and/or pick-ups from commercial vehicles, except those used by mail carriers.

11. **Vehicles.** Only one vehicle, owned by the operator of the home occupation, and not to exceed one ton in capacity, may be used by the operator in conjunction with the home occupation.

12. **Commercial Vehicles and Attachments.** Home occupations involving more than one commercial vehicle parked on-site shall not be permitted. No attachments of equipment or machinery used for business purposes shall be permitted either on the vehicle or on the site when the vehicles are not in use and such equipment or machinery is within view from the public right-of-way or neighboring properties. Storage of attachments of equipment and machinery or trailers are not permitted in areas visible from public rights-of-way or neighboring properties, unless part of an active approved construction project on the site.

13. **Equipment.** Home occupations, which involve mechanical or electrical equipment which is not customarily incidental to domestic use shall not be permitted. Facsimile machines, copy machines, computers, and other similar business equipment are permitted. Small power tools and similar equipment/machinery not exceeding two horsepower are also permitted. Commercial kitchens are prohibited.

14. **Cottage Food Preparation.** Cottage Food Preparation is permitted subject to compliance with Government Code 51035 and Health and Safety Code 113758. Food preparation and storage shall be done within the primary residence. There shall be no outdoor storage of material while all activities must occur within the primary residence, not including the garage and/or accessory buildings.

15. **Hazardous Materials.** Activities conducted and equipment or materials used shall not change the fire safety or occupancy classifications of the premises, nor use utilities different from those normally provided for residential use. There shall be no storage or use of toxic or hazardous materials other than the types and quantities customarily found in connection with a dwelling unit.

16. **Nuisances.** A home occupation shall be conducted such that no offensive or objectionable noise, dust, vibration, smell, smoke, heat, humidity, glare, refuse, radiation, electrical disturbance, interference with the transmission of communications, interference with radio or television reception, or other hazard or nuisance is perceptible at or beyond any lot line of the unit or structure within which the home occupation is conducted, or outside the dwelling unit if conducted in other than a single-unit detached residence.

F. **Multiple Home Occupations.** Only one home occupation per home is permitted.

G. **Signage.** Signs for Home Occupation uses may be erected subject to the following standards:

1. **Quantity.** A maximum of one sign is permitted.
2. **Type.** A wall or window sign is permitted. Freestanding signs of any type shall not be permitted.
3. **Size.** Shall not exceed two square feet in area.
4. **Design.** Signs shall be visually compatible with the building and surrounding neighborhood.
5. **Illumination.** Illuminated signage is not permitted.

H. **Prohibited Home Occupations.** The following specific businesses are not permitted as home occupations.

1. Adult-oriented business;
2. Ambulance services;
3. Automotive/vehicle repair, painting, body/fender work, upholstering, detailing, washing, including motorcycles, trucks, trailers, and boats;
4. Automotive/vehicle sales with any on-site storage or sale of vehicles;
5. Barber, beauty, nail salons, tattoo, body piercing. Shops with one station are excepted. Visits shall be by appointment;
6. Animal boarding, care, training, breeding, raising or grooming, or veterinary services, conducted on the premises;
7. Carpentry and cabinet-making businesses;
8. Commercial food preparation, food handling, processing, or packing other than Cottage Food Preparation as described above;
9. Firearms manufacture, sales, or repair;
10. Furniture refinishing or upholstery;
11. Gymnastic facilities;
12. Massage parlor;
13. Medical and dental offices, clinics, and laboratories, or any type of physical therapy, psychotherapy, or massage therapy;
14. Medical marijuana distribution;
15. Mini-storage;
16. Mortuaries;
17. Instructional services for more than three students at one time;
18. Pharmacies;

19. Print shops/Copy centers;
20. Recording studio (electronic composition, recording, and re-mixing conducted with headphones and using no amplification, live instruments or live performance excepted);
21. Repair, fix-it, or plumbing shops;
22. Restaurant;
23. Retail sales;
24. Tanning salon;
25. Towing service;
26. Welding, metal working, and machining businesses;
27. Yoga/spa retreat center; and
28. Any other use that the Director determines would be detrimental to the public health, safety, and general welfare or would be incompatible with nearby residential uses.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 26, eff. 10-21-16; Am. Ord. 2025-024, § 62, eff. 7-27-25).

SEC. 15-2736. ISO CONTAINERS.

ISO Containers, also known as sea, ocean, or shipping containers, shall comply with the following standards.

A. **Residential and/or Commercial Use.** ISO Containers used as structures containing residential or commercial uses, or any other such occupied space, shall secure all entitlements that are required of conventional structures, shall comply with all provisions of the Base District and other applicable provisions of this Code, and shall secure a Building Permit.

B. **Storage Use.**

1. **Exceptions.** City-owned sites and ISO Containers used during construction to temporarily store equipment or material are exempt from this section. The ISO Containers shall be removed upon occupancy of the building and/or expiration of the building permit, whichever occurs first.
2. **Incidental Use.** ISO Containers shall be incidental to the primary use on the site and/or shopping center. They are not permitted as an accessory use to a stand-alone parking lot.
3. **Condition.** ISO Containers shall be kept in good condition and free of damage, rust, graffiti, signs, banners, etc. Repairs shall be made within 48 hours of being damaged. Graffiti shall be removed within 48 hours.
4. **Vacant Property.** Not permitted on vacant property.

5. **Residential and Mixed-Use Districts.** Refer to Section 15-2405, Recreational Vehicles, Boats, Trailers, and Portable Storage.
6. **Commercial Districts.**
   a. Shall be located to the rear of the building and shall be screened from Major Streets to the satisfaction of the Director.
   b. Shall be limited to one per each 20,000 square feet of building area. For buildings less than 20,000 square feet, one.
7. **Industrial Districts.**
   a. **IL District.**
      i. Shall be screened, to the greatest extent feasible, from Major Streets, including State Highways.
      ii. Shall not be visible from a local street that also serves existing residences and/or planned Residential Districts.
      iii. Shall not be stacked.
   b. **IH Districts.**
      i. Shall not be visible from a local street that also serves existing residences and/or planned Residential Districts.
      ii. Shall not be stacked higher than two containers.
8. **Separation from Residential Districts.** ISO Containers shall be separated by a minimum of 200 feet from Residential Districts and/or residential uses. Caretaker's Residences are exempted from this subsection.
9. **Separation from Property Lines and Buildings.** Ten feet. There shall be no structures between the containers that connect them.
10. **Paving.** Containers shall be placed on paved areas, per Public Works standards, to mitigate dust. Industrial Districts are excepted.
11. **Prohibited Storage.** The ISO may not be used to store flammable liquids or other hazard materials as determined by the Fire Chief.
12. **Utilities.** There shall be no utility connections to the ISO container.
13. **Fire Clearances.** The container shall provide adequate access as determined by the Fire Chief.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2737. LARGE-FORMAT RETAIL.

Large Format Retail, defined as a single tenant that occupies a minimum of 80,000 square feet shall be designed, located, and operated to meet the requirements of the applicable Base District and the following standards.

A. **Applicability.** If a Large-Format Retail space is vacant for a period of at least one year the following standards shall apply:
   1. **Landscaping.** Perimeter landscaping and Parking Lot Shading standards per the applicable Property Development Standards for the District in which it is

located. The Director may make exceptions to the strict application of the prescribed standards, however in no case shall the reduction result in a net reduction of 35 percent or greater in the amount of landscaping provided. Landscaping may also be aggregated to minimize the impact on parking areas. In addition, the Director may enter into an agreement that allows the property owner to defer the installation of landscaping for a period not to exceed 18 months from the date of occupancy. The deferment agreement shall be recorded with the County Recorder.

2. **Bicycling Parking.** Bicycling Parking shall be provided per Section 15-2429.

3. **Refuse.** Refuse Collection Areas shall be provided per Section 15-2016, Trash and Refuse Collection Areas.

4. **Recycling.** All new shopping centers or supermarket sites that are required by the State of California Department of Conservation to have a Recycling Center shall have an area designated and improved for the use of a recycling center as part of its original site plan. This area shall be permanently integrated and architecturally compatible with the center and shall provide adequate screening and design features so as to not detract from the design of the center.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 48, eff. 1-18-19).

SEC. 15-2737.5. LODGING-TO-DWELLING CONVERSION REQUIREMENTS.

A. **Purpose.** The purpose of this section is to allow for the conversion of existing hotels or motels from a commercial lodging use to a residential use which will provide housing to non-transient residents and facilitate bringing these hotel or motel buildings into safe and habitable condition as required by State and local law.

B. **Applicability.**

1. Hotels and motels that were constructed prior to January 1, 2020, and have previously accommodated or currently accommodate non-transient residents are eligible to apply for a lodging-to-dwelling conversion.

2. Lodging-to-Dwelling Conversions shall be permitted in any Base District and/or Overlay District in which an Eligible Hotel may exist, including any Base District and/or Overlay District that does not permit Residential Use Classifications.

3. This section shall not apply to a conversion that involves the construction of new structures for residential use or a significant enlargement of existing structures. For purpose of this section, the term "significant enlargement" shall mean a new building or expansion of existing buildings such that the number of individual units is increased.

C. **Permit required.** An application for a Lodging-to-Dwelling Conversion shall require a Conditional Use Permit subject to Article 53 and an assessment pursuant to the California Environmental Quality Act (CEQA) shall be conducted.

D. **Definitions.**

1. "Eligible Hotel" shall be defined as an existing hotel or motel building, constructed prior to January 1, 2020, that offers lodging to non- transient residents, for all or a portion of the facility that is eligible to apply for a lodging-to-dwelling conversion. Provision of one residential unit for an on-site manager shall not disqualify a hotel or motel from being defined as an "Eligible Hotel."

2. "Non-transient residents" shall be defined as a person who resides in a non-transient facility for a period of thirty-one or more consecutive days.

E. **Compliance with Existing Regulations.** The following requirements shall apply to all lodging-to-dwelling conversions and are currently enforceable in relation to existing hotels, motels and non-transient facilities under state and local laws and regulations:

a. An Eligible Hotel shall bring the subject hotel or motel building into full compliance with the California Building Code, the California Fire Code, and the California Electrical Code, as may be amended and any local amendments thereto.

b. An Eligible Hotel shall be subject to the occupancy classifications and change of occupancy requirements in the California Building Code based upon the classification most similar to the primary use of the facility, as determined by the Building Official.

c. An Eligible Hotel offering rooms to non-transient residents shall not operate if the facility or any portion of the facility exists with any of the conditions necessary to be declared a substandard building within the meaning of California Health and Safety Code section 17920.3, as may be amended.

d. In the event an Eligible Hotel is declared a substandard building or otherwise exists with any of the conditions necessary to be declared a substandard building, the Eligible Hotel shall be subject to the provisions of Fresno Municipal Code sections 1-301 et. seq.

F. **Minimum Standards for Lodging-to-Dwelling Conversions.**

a. **Fire Safety.** Eligible Hotels shall either:

   i. Be built with fire-resistive construction; or

   ii. Be equipped with fire-extinguishing systems or equipment as set forth in the California Building Code and California Health and Safety Code.

b. **Lavatory.** All bedrooms shall provide private lavatory and bathing facilities in each unit, including but not limited to the following:

   i. Bathroom sink.

   ii. Toilet.

   iii. Shower or tub and shower combined facility.

c. **Heating and Cooling.** Eligible hotels shall provide heating and cooling equipment in each unit.

d. **Food Storage and Preparation.** Eligible hotels shall provide access to cooking and refrigeration spaces to non-transient residents by either of the following options:

i. **Efficiency Unit Kitchens.** Providing a refrigerator of at least two thirds the size of a standard refrigerator, a separate sink for food preparation, microwave, a cooking appliance such as an oven and stove or efficiency cooktop with unobstructed ventilation, and a non-porous washable surface suitable for food preparation, constructed in compliance with the California Building Code, and an optional microwave; or

ii. **Common Use Kitchen.** Providing a dedicated common-use space on the premises with kitchen facilities to be used by non-transient residents. A full kitchen will be required for every 6 units. A full kitchen is defined as being a minimum of 100 square feet in size and containing the following fixtures: a sink, food preparation counter, storage cabinets, and permanent cooking facilities such as an oven and range or cooktop. Kitchen and food storage facilities shall be constructed in compliance with the Americans with Disabilities Act, California Code of Regulations, California Building Code, California Plumbing Code, California Electrical Code, and California Fire Code, as may be amended (including local amendments). In addition to the requirements of the above applicable codes, kitchen facilities shall be constructed with unobstructed ventilation for all cooking appliances, non-porous materials shall be used for all food preparation surfaces, and all surfaces shall be washable.

e. **Electrical Capacity.** Eligible hotels shall provide electrical capacity, subject to review, inspection, and approval of the Building Official as follows:

i. A main electrical panel sufficient to accommodate non-transient occupants in all units; and

ii. A sub-electrical panel for each unit in the facility. Each sub-electrical panel shall have sufficient capacity to accommodate a refrigerator, a cooktop, and a microwave, in addition to any electrical capacity needs generated by lighting, heating and cooling appliances, televisions, and personal appliances including but not limited to computers or cellular phones; and

iii. Any other improvements related to the provision of electricity deemed necessary by the Building Official to preserve the public health and safety.

f. **Converted Efficiency Units.** Units converted to residential efficiency units shall comply with Health and Safety Code section 17958.1 and occupancy by no more than two persons is permitted when the unit has a minimum floor area of 150 square feet, and partial kitchen or bathroom facilities as set forth in the Minimum Standards, above.

G. **Maximum Density.** Density limitations set forth in the applicable Base District and/or Overlay District shall not apply to Lodging-to-Dwelling Conversions. The number of dwelling units that are created shall not exceed the number of lodging units that are removed from the Eligible Hotel.

H. **Other Capacity Inspections.** Eligible Hotels shall complete plumbing, structural, and mechanical improvements sufficient to accommodate non-transient residents, and as deemed necessary by the Building Official to preserve the public health and safety. These improvements are subject to review, inspection, and approval of the Building Official.

I. **Legal Non-Conforming Uses, Structures and Site Features.** Except for any and all changes, including but not limited to structural changes, required for the conversion of an Eligible Hotel, the provisions of FMC 15-404 and 15-405 will apply to uses, structures and site features that are related to an Eligible Hotel. An Eligible Hotel is permitted to convert any use, structure or site feature to become a conforming use that is compliant will all state and local codes.
(Added Ord. 2020-031, § 1, 9-1-20).

SEC. 15-2738. MANUFACTURED HOMES.

Manufactured homes shall be designed and operated in compliance with the following standards:

A. **General Requirements.** Manufactured homes may be used for residential purposes subject to the provisions of this section and the Government Code (Section 65852.3).

B. **Underlying Districts.** The underlying District Standards shall apply to manufactured homes, including, but not limited to, building height, access, setbacks, open space, parking requirements, etc. If the home is located in an Infill Area or a site under the auspices of an operative plan, the home shall comply with the standards per the adopted plan or guidelines.

C. **Design Criteria.** A manufactured home shall be compatible in design and appearance with residential structures in the vicinity and shall meet the following standards:

1. **Foundation.** A manufactured home shall be built on a permanent foundation system approved by the Building Official.

2. **Date of Construction.** Each manufactured home shall have been manufactured within 10 years of the date of issuance of a permit to install the manufactured home and shall be certified under the National Manufactured Home Construction and Safety Act of 1974.

3. **Roof Overhang.** The roof overhang shall not be less than 12 inches around the entire perimeter of the manufactured home as measured from the vertical side of the home. The overhang requirement may be waived at the point of connection where an accessory structure is attached to the manufactured home.

4. **Roof Material.** Roof material shall consist of material customarily used for conventional single-unit dwellings, such as tile or composition shingles. If shingles are used, the pitch of the roof shall be not less than three inches vertical to 12 inches horizontal.

5. **Siding Material.** Siding material shall consist of exterior material customarily used for conventional single-unit dwellings, such as stucco, wood, brick, stone, or decorative concrete. Metal siding, if utilized, shall be non-reflective and horizontally lapping. Siding material utilized as skirting shall be the same as the material used on the exterior wall surface of the manufactured home.

6. **Skirting.** The unit's skirting shall extend to the finished grade. Skirting that touches the earth shall be treated.

7. **Building Orientation.** The home, including the primary entrance, shall face the street, if required by the underlying zone district.

D. **Mobile Home Parks.** Manufactured Homes within a Mobile Home Park must comply with California Health and Safety Code Sections 18200 et seq. and are exempted from the development and design standards given in Subsections B through C, except as the standards may relate to public street frontage (including perimeter walls), signs, access, and vehicle parking.

E. **Tiny House on Wheels (THOW).** A Tiny House on Wheels (THOW) may be considered a manufactured home and therefore used as a primary dwelling unit. THOWs shall comply with Subsections A, B, C.6, C.7, and D above. THOWs must additionally be ANSI certified and be placed on an engineered foundation system.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 63, eff. 7-27-25).

SEC. 15-2739. ADULT USE AND MEDICINAL CANNABIS RETAIL BUSINESS AND COMMERCIAL CANNABIS BUSINESS.

A. **Definitions**

1. The definitions within Section 9-3304 of this Code, as may be amended, apply to adult use and medicinal cannabis retail businesses and commercial cannabis businesses.

B. **Location and Design of Cannabis Retail Businesses**

1. Comply with the requirements within Section 9-3307 of this Code, as may be amended, relating to location and design requirements for a retail cannabis business, including, but not limited to, the following:

   a. All cannabis retail businesses must be located on property zoned DTN (Downtown Neighborhood), DTG (Downtown General), CMS (Commercial Main Street), CC (Commercial Community), CR (Commercial Regional), CG (Commercial General), CH (Commercial Highway), NMX (Neighborhood Mixed-Use),

CMX (Corridor/Center Mixed Use), RMX (Regional Mixed-Use), and must meet all of the requirements for development in these zones, including, but not limited to, parking, lighting, building materials, etc.

b. All buildings in which a cannabis retail business is located shall be no closer than eight hundred (800) feet from any property boundary containing any of the following:

1. A cannabis retail business.

2. A school providing instruction for any grades pre-school through 12 (whether public, private, or charter, including pre-school, transitional kindergarten, and K-12).

3. A day care center licensed by the state Department of Social Services that is in existence at the time a complete commercial cannabis business permit application is submitted.

4. A youth center that is in existence at the time a complete commercial cannabis business permit application is submitted.

c. Each applicant shall provide a neighborhood responsibility plan so the review authority may find that the proposed use and its operating characteristics are not detrimental to the public health, safety, convenience, or welfare of persons residing, working, visiting, or recreating in the surrounding neighborhood and will not result in the creation of a nuisance.

d. In addition to the requirements within Section 9-3307 of this Code, as may be amended, each proposed cannabis retail business shall meet the following building design guidelines:

1. Demonstrate compatibility with the surrounding character of the neighborhood and blend in with existing buildings. The establishment should look like any other similarly situated building. New and existing buildings shall meet the minimum Façade Design Development Standards of the associated zone district unless compliance would cause the building to not be compatible with the surrounding character of the neighborhood and existing buildings.

C. **Location and Design of Commercial Cannabis Businesses**

1. Comply with the requirements within Section 9-3308 of this Code, as may be amended, relating to location and design requirements for a commercial cannabis business, including, but not limited to, the following:

a. Laboratory testing may take place in a Commercial, Employment, or Downtown District and must meet all of the requirements for development in these zones, including, but not limited to, parking, lighting, building materials, etc.

b. Cultivators, distributors, or manufacturers must be located within the Cannabis Innovation Zone, inside a Cannabis Innovation Hub, or within one-half (1/2) mile of State Route 99 between Shaw Ave. and Clinton Ave., one (1) mile

of State Route 99 north of Shaw Ave. or south of Clinton Ave., or within one (1) mile of State Route 180 west of State Route 99, must be zoned either IL (Light Industrial) or IH (Heavy Industrial), and must meet all of the requirements for development in these zones. If not located within the Cannabis Innovation Zone, any building in which a cultivator, distributor, or manufacturer is located shall be no closer than one thousand (1,000) feet from any property boundary containing any of the following:

1. Any residentially zoned parcel in the city, including any legal non-conforming residential uses as of the date a complete commercial cannabis business permit application is submitted.
2. A school providing instruction for any grades pre-school through 12 (whether public, private, or charter, including pre-school, transitional kindergarten, and K-12).
3. A day care center licensed by the state Department of Social Services that is in existence at the time a complete commercial cannabis business permit application is submitted.
4. A youth center that is in existence at the time a complete commercial cannabis business permit application is submitted.

c. All Cannabis Innovation Hubs must be located within one-half (1/2) mile of State Route 99 between Shaw Ave. and Clinton Ave., one (1) mile of State Route 99 north of Shaw Ave. or south of Clinton Ave., or within one (1) mile of State Route 180 west of State Route 99, and must be zoned either IL (Light Industrial) or IH (Heavy Industrial), and must meet all of the requirements for development in these zones. All Cannabis Innovation Hub building shall be located no closer than one thousand (1,000) feet from any property boundary containing any of the following:

1. Any residentially zoned parcel in the city, including any legal non-conforming residential uses as of the date a complete commercial cannabis business permit application is submitted.
2. A school providing instruction for any grades pre-school through 12 (whether public, private, or charter, including pre-school, transitional kindergarten, and K-12).
3. A day care center licensed by the state Department of Social Services that is in existence at the time a complete commercial cannabis business permit application is submitted.
4. A youth center that is in existence at the time a complete commercial cannabis business permit application is submitted.

d. Each applicant shall provide a neighborhood responsibility plan so the review authority may find that the proposed use and its operating characteristics are

not detrimental to the public health, safety, convenience, or welfare of persons residing, working, visiting, or recreating in the surrounding neighborhood and will not result in the creation of a nuisance.

e. In addition to the requirements within Section 9-3308 of the Fresno Municipal Code, all buildings associated with a commercial cannabis business shall meet the following building design guidelines:

1. Demonstrate compatibility with the surrounding character of the neighborhood and blend in with existing buildings. The establishment should look like any other similarly situated building. New and existing buildings shall meet the minimum Façade Design Development Standards of the associated zone district unless compliance would cause the building to not be compatible with the surrounding character of the neighborhood and existing buildings. For existing buildings, pictures and elevations of the building(s) must be provided to the City upon submittal of a Conditional Use Permit application.

D. **Operating Requirements for All Commercial Cannabis Activity**

1. Comply with the requirements within Section 9-3309 of this Code, as may be amended, relating to operating requirements for all commercial cannabis activity.

E. **Operating Requirements for a Cannabis Retail Business**

1. Comply with the requirements within Section 9-3310 of this Code, as may be amended, relating to operating requirements for a cannabis retail business.

F. **Operating Requirements for a Distributor**

1. Comply with the requirements within Section 9-3311 of this Code, as may be amended, relating to operating requirements for a cannabis distributor.

G. **Operating Requirements for a Cultivator**

1. Comply with the requirements within Section 9-3312 of this Code, as may be amended, relating to operating requirements for a cannabis cultivator.

H. **Operating Requirements for a Testing Laboratory**

1. Comply with the requirements within Section 9-3313 of this Code, as may be amended, relating to operating requirements for a cannabis testing laboratory.

I. **Operating Requirements for a Manufacturer**

1. Comply with the requirements within Section 9-3314 of this Code, as may be amended, relating to operating requirements for a cannabis manufacturer.

J. **Signage**

1. Signage shall conform to the requirements of Chapter 15, Article 26 of this Code, Section 9-3309(h) of this Code, and this subsection. Where conflict may occur, the more restrictive provisions shall govern.

2. No signs placed on the premises of a cannabis retail business or a commercial cannabis business shall obstruct any entrance or exit to the building.

3. No signs of a cannabis retail business or a commercial cannabis business shall be placed on any window.

4. Business identification signage shall be limited to that needed for identification only and shall not contain any logos or information that identifies, advertises, or lists the services or the products offered. No cannabis retail business or commercial cannabis business may advertise by having a person holding a sign and advertising the business to passersby, whether such person is on the premises or elsewhere including, but not limited to, the public right-of-way.

5. Signage shall not be directly illuminated, internally or externally. No banners, flags, billboards may be used at any time.

6. No cannabis or cannabis products or graphics depicting cannabis or cannabis products shall be visible from the exterior of any property issued a Cannabis Conditional Use Permit, or on any of the vehicles owned or used as part of the commercial cannabis business or cannabis retail business.

K. **Landscaping**

1. **New Buildings.** Landscaping shall be provided per the underlying District.

2. **Existing Buildings.** Perimeter landscaping and Parking Lot Shading shall be provided per the underlying district. The Review Authority, at their discretion, may make exceptions to the prescribed standards, however in no case shall the reduction result in a net reduction of 35 percent or greater in the amount of landscaping provided. Landscaping may also be aggregated to minimize the impact on existing parking areas.

L. **Lighting**

1. Lighting. The exterior of the premise, including adjacent public sidewalks and all parking lots under the control of the establishment, shall be illuminated during all hours of darkness in a manner so that persons standing in those areas at night are identifiable by law enforcement personnel. However, required illumination shall be placed and/or shielded in a way that minimizes interference with the neighboring residences. Provide the hours of operation of the lighting within the required neighborhood responsibility plan.

M. **Litter and Graffiti**

1. Litter must be removed daily from the premises, including adjacent public sidewalks and all parking lots under the control of the cannabis retail business or commercial cannabis business; these areas must be swept or cleaned, either mechanically or manually, on a weekly basis to control debris.

2. The owner or operator shall remove graffiti within 48 hours.

N. **Cannabis Conditional Use Permit**

1. Prior to commencing operations, a commercial cannabis business or cannabis retail business must obtain a Cannabis Conditional Use Permit from the Planning and Development Department. Prior to applying for a Cannabis Conditional Use Permit, an applicant must first obtain a Commercial Cannabis Business Permit from the city.

2. Cannabis Conditional Use Permit applications shall be reviewed by the respective Council District Project Review Committee.

3. Cannabis Conditional Use Permit applications shall be routed for review to the respective school district in which the property is located.

4. Land use approvals shall include compliance with all applicable provisions of CEQA.

5. The process described in Chapter 15, Article 50 of this Code shall apply to a Cannabis Conditional Use Permit. Where conflict may occur with Chapter 15, Article 50, this section shall govern.

O. **Review Authority**

1. The Director shall approve, conditionally approve, or deny applications for Cannabis Conditional Use Permits based on consideration of the requirements of this article. The Director may, at their discretion, refer any application that may have significant public interest to the Planning Commission for a decision. In the event of a referral, the Planning Commission shall hold a public hearing prior to making the decision.

P. **Application Requirements**

1. Applications for a Cannabis Conditional Use Permit shall be submitted in accordance with the provisions set forth in Section 15-5002, Application and Fees.

2. The Cannabis Conditional Use Permit application shall be accompanied by a written narrative, operational statement, site plans, floor plans, elevations, and other evidence in support of the applicable findings required by subsection R, Required Findings.

3. The Director may require the applicant to submit additional information, of such type and in such form as the Director may specify, as the Director may deem relevant to the application, including, but not limited to, statements, numeric data, and technical studies, as appropriate.

Q. **Public Notice**

Public Notice shall be provided 10 days prior to the date of action pursuant to Section 15-5007.

R. **Required Findings**

A Cannabis Conditional Use Permit shall only be granted if the decision-maker determines that all of the required findings of Section 15- 5306 of this Code can be made for the project as submitted or as modified. If the decision-maker determines that it is not possible to make ail of the required findings, the application shall be denied.

S. **Conditions of Approval**

In approving a Cannabis Conditional Use Permit, the decisionmaker may impose reasonable conditions or restrictions deemed necessary in accordance with Section 15-5307 of this Code[.]

T. **Appeals**

Cannabis Conditional Use Permit decisions are subject to the appeal provisions of Section 15-5017, Appeals.

U. **Expiration of Cannabis Conditional Use Permit.**

1. A Cannabis Conditional Use Permit granted under this Code shall automatically expire five years after the date of issuance.
2. A Cannabis Conditional Use Permit granted under this Code runs with the land for up to five years. Should an operator discontinue operations at an existing Retail Cannabis Business or Commercial Cannabis Business, a new operator may take over the existing Cannabis Conditional Use Permit for the unexpired time period. Prior to commencing operations, the new operator must obtain a commercial cannabis business permit, submit an approved operational statement, and submit an approved neighborhood responsibility plan.

V. **Indemnification.**

1. All applicants for a Cannabis Conditional Use Permit and related environmental approval pursuant to the California Environmental Quality Act (CEQA) shall be responsible to fully indemnify, defend, and hold harmless the City, its officers, employees, agents, and volunteers, for any and all claims and legal challenges related to the City's actions in approving their applications. Applicant's obligations under the preceding sentence shall apply regardless of whether City or any of its officers, officials, employees, agents or volunteers are actively or passively negligent, but shall not apply to any loss, liability, fines, penalties, forfeitures, costs or damages caused by the sole negligence or willful misconduct of City or any of its officers, officials, employees, agents or volunteers. Indemnification and defense shall be considered a condition of approval for all Cannabis Conditional Use Permit approvals.
2. The responsibility to indemnify and defend the City as required under this Section shall be stated in all application documents provided by the City; however the failure to do so shall not negate the requirement to indemnify and defend.
3. If an applicant fails to accept responsibility to indemnify and defend as required in this Section, then the Cannabis Conditional Use Permit approval shall become null

and void upon notice from the City Manager, as approved by the City Attorney, and the applicant shall be liable to the City for all costs, settlements, and/or judgments incurred by the City with respect to the challenge to the Cannabis Conditional Use Permit approval. If an applicant fails to indemnify and defend the City, the City may, at the discretion of the City Attorney, concede the challenge to the Cannabis Conditional Use Permit approval.

(Added Ord. 2020-038, § 1, eff. 9-29-20).

Editor's note—Ord. 2020-038, § 1, effective September 29, 2020, amended the Code by repealing former § 15-2739, and replacing it with a new § 15-2739. Former § 15-2739 pertained to medical marijuana dispensaries, and derived from Ord. 2015-39, effective January 9, 2016.

SEC. 15-2739.1. RESERVED.

Editor's note—Ord. 2020-038, § 1, effective September 29, 2020, amended the Code by repealing former § 15-2739.1 in its entirety. Former § 15-2739.1 pertained to recreational marijuana activities, and derived from Ord. 2017-52, effective November 2, 2017.

SEC. 15-2740. MOBILE COMMERCIAL WASHING.

A. **Location.**

1. **Residential Districts.** Permitted when the commercial vehicle belongs to the tenant and/or occupant of the building.

2. **Non-Residential Districts.** Permitted in Non-Residential Districts, not to exceed one day per week. Vehicles shall be limited to only employees that work on-site.

3. The washing of vehicles shall only occur on private property.

B. **Pavement.** Sites shall be paved with asphalt concrete, concrete, or other acceptable impervious surface per City standards.

C. **Structures.**

1. Temporary canopies and shade structures are permitted. Temporary canopies may be required to obtain a Building Permit.

2. When not in operation, all evidence of its use must be removed from the site including all tents, canopies, temporary membranes, barricades, products, signs, litter, etc. Temporary canopies and shade structures shall be removed daily. The parking lot must be left in a clean condition, free of waste. Permanent buildings, structures, and signs are excepted.

D. **Business License.** Operators shall obtain a business license.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2741. MOBILE VENDORS.

A. **General Provisions.**

1. Noise and amplified music shall comply with all applicable noise standards.

2. Odors shall comply with Section 15-2510, Odors.

3. The sale of alcohol and tobacco products by Vendors is prohibited.

4. The operator shall provide waste removal and shall be responsible for collecting trash/debris and recycling after each stop. Trash includes material dispensed from the Vendor as well as items that may be left by their patrons.

5. Free-standing signs, such as A-frame signs and sidewalk signs, shall comply with Article 26, Signs.

6. **Permits.** Mobile Vendors shall have a current Tax Certificate, a Mobile Vendor Permit from the City when required by Section 9-1104, and shall have all applicable permits required by the County Health Department.

    a. **Display of Permit.** No mobile vendor shall operate in the city without prominently displaying on their person or vehicle a City-issued sticker or badge designating them as a duly permitted mobile vendor.

    b. **Display of Name.** The mobile vendor's name, the business name, address, telephone number, City permit number, City tax permit, and Fresno County Department of Health number shall be visible on both sides of any vehicle (including, ice cream trucks, bakery wagons, push carts, and bicycles). If the

vehicle is a truck, the display shall also be on the rear of the vehicle. The letter size for the name, telephone number and City permit number shall comply with Fresno County requirements and shall be clearly visible at 50 feet.

7. **Restaurant, Residential, and School Spacing for Food Vendors.** Notwithstanding sections B and C below, Vendors shall not operate within specified distances of the following uses as set forth below:

   a. Vendors shall not operate within 300 feet of an existing restaurant, during the restaurant's normal business hours, with the following exceptions:

      i. Vendors operating as part of a Farmer's Market per Section 15-2730 or a Special Event per Section 15-2760-B,

      ii. The restaurant and the Vendor are operated by the same entity.

      iii The Vendor has prior written permission of a business owner to operate on the property of that existing business.

      iv. Within the area bounded by Divisidero Street, Highway 41, and Highway 99, non-motorized Vendors may operate within 300 feet of an existing restaurant with prior written permission of the City Manager.

   b. Vendors shall not operate within 100 feet of residential uses, with the following exceptions:

      i. Caretaker's Residence

      ii. Residential units that are part of a vertical mixed-use development.

      iii. Vendors operating as part of a Farmer's Market per Section 15-2730 or a Special Event per Section 15-2760-B.

   c. Vendors shall not operate within 100 feet of schools, with the following exceptions:

      i. Vendors which sell only fresh produce.

      ii. Vendors operating as part of a Farmer's Market per Section 15-2730 or a Special Event per Section 15-2760-B.

      iii. Any motorized food vendor may not operate within 1,000 feet of a school during regular school hours unless authorized by the school.

B. **Off-Street Locations and Time Limits.** The following restrictions shall apply except for Vendors operating as part of a Farmer's Market per Section 15-2730 or a Special Event per Section 15-2760-B.

1. **Residential Districts.** Vendors may not operate within residential districts, with the exception of properties for non-residential uses, such as schools and religious assembly facilities. Vendors shall have prior written authorization from the property owner.

   a. **Time Limit.** Two hours, after which the Vendor must move to a new location that is no less than 500 feet away.

2. **Non-Residential Districts.** Vendors may operate within non-residential districts. Vendors shall have prior written authorization from the property owner.

    a. **Time Limit.** A vendor may stay in a single location for up to 12 hours in a 24 hour period after which the Vendor must move to a new location that is no less than 500 feet away.

    b. **Unpaved Surfaces.** Notwithstanding any other provisions of this Code, Vendors shall be permitted to operate on unpaved surfaces in non-residential districts with prior written authorization of the property owner.

3. **City-Owned Property.** Vendors may not operate on City-owned property, such as parks, without prior written authorization from the City.

    a. **Time Limit.** At the discretion of the City Manager or his/her designee.

C. **On-Street Locations and Time Limits.** Vendors may operate on the public right-of-way subject to the following restrictions. Vendors operating as part of a Farmer's Market per Section 15-2730 or a Special Event per Section 15-2760-B are excepted.

1. **Residential Districts.**

    a. **Time Limit, Non-Motorized Vendors.** Thirty minutes, after which the Vendor must move to a new location that is no less than 300 feet away.

    b. **Time Limit, Motorized Vendors.** Motorized Vendors (including, but not limited to, ice cream trucks) may circulate and stop temporarily for sales, but shall not remain stationary for more than five minutes.

2. **Non-Residential Districts.**

    a. **Time Limit.** The posted time limit of the parking stall or one hour, whichever is less, after which the Vendor must move to a new location that is no less than 500 feet away.

    b. **Location.** Vendors shall operate from valid on-street parking stalls

    c. **Customer Transaction Area.** Vendors shall park in such a manner that the customer transaction area is on the public sidewalk adjacent to the curb.

3. **Compliance with Traffic and Parking Laws.** While operating in the public right-of-way, Vendors shall follow all applicable traffic laws and parking regulations, including time limits, payment of parking meters, and no-parking zones.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2015-43, § 2, eff. 1-22-16; Am. Ord. 2016-32, § 27, eff. 10-21-16; Am. Ord. 2017-33, § 27, eff. 7-30-17; Am. Ord. 2018-66, § 49, eff. 1-18-19).

SEC. 15-2742. MOTORCYCLE/RIDING CLUBS.

Motorcycle Clubs may be permitted in accordance with the standards below.

A. **Location.**

1. Motorcycle Clubs shall not have access to a local street that also serves a Residential District, a public or private school, a day care center, a hospital or care facility, or a park.

2. Clubs shall be a minimum 500 feet from any planned or zoned residential districts, public or private schools, day care centers, or parks. Caretaker's Units are excepted.

B. **Hours of Operation.** Club activities shall end, and the club shall be closed, between 2 a.m. and 8 a.m. daily. No club activities shall take place between 10 p.m. and 2 a.m. except within an enclosed building.

C. **Activities Open to the General Public.** Should a Club offer event admission to the general public for the primary purpose of dancing, concerts, and similar activities, it shall obtain a permit for a Nightclub.

D. **Parking.** Refer to Article 24, Parking and Loading.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2742.5. OFFICE-TO-DWELLING CONVERSION.

A. **Purpose.** The purpose of this section is to allow for the conversion of an existing office building(s) from an office use to a multi-unit residential use which will provide housing to residents and facilitate compliance of said structures into safe and habitable condition as required by State and local law.

B. **Applicability.** Office-to-Dwelling Conversions shall be permitted in locations where an Eligible Office may exist.

C. **Permit Required.** An application for an Office-to-Dwelling Conversion shall require a Zone Clearance per § 15-5102.

D. **Definitions.**

1. "Eligible Office" shall be defined as an existing office building(s) located in the O District.

E. **Compliance with Existing Regulations.** The following requirements shall apply to all Office-to-Dwelling Conversions:

1. An Eligible Office shall bring the subject office building(s) into full compliance with the most recently adopted California Building Code(s), as may be amended and any local amendments thereto.

2. An Eligible Office shall be subject to the occupancy classifications and change of occupancy requirements in the California Building Code(s) based upon the classification most similar to the primary use of the facility, as determined by the Building Official.

3. An Eligible Office shall not operate if the building(s) or any portion of the building(s) exists with any of the conditions necessary to be declared a substandard building within the meaning of California Health and Safety Code Section 17920.3, as may be amended.

4. In the event an Eligible Office is declared a substandard building(s) or otherwise exists with any of the conditions necessary to be declared a substandard building(s), the Eligible Office shall be subject to the provisions of Fresno Municipal Code Sections 11-324 et seq.

F. **Maximum Density.** There is no maximum density, rather, the number of allowable units shall be determined by compliance with the California Building Code(s) for minimum dwelling unit square footage requirements.

G. **Other Capacity Inspections.** Office-to-Dwelling Conversions shall complete plumbing, structural, and mechanical, and any other improvements sufficient to accommodating residents, and as deemed necessary by the Building Official to preserve the public health and safety. These improvements are subject to review, inspection, and approval of the Building Official.

H. **Legal Non-Conforming Uses, Structures, and Site Features.** The provisions of Sections 15-404 and 15-405 shall apply to any legal non-conforming uses, structures, and site features of an Eligible Office that are not subject or related to an Office-to-Dwelling Conversion. Should an Eligible Office choose to additionally alter any use, structure, or site feature not associated with an Office-to-Dwelling Conversion, such alterations shall be done in compliance with all applicable State and local codes.

1. The construction of ancillary structures required for the conversion of office to residential uses is permitted. Construction of these structures must comply with the RM-3 District standards for new development, as identified in Section 15-1003.1

(Added Ord. 2025-023, § 2, eff. 12-26-25).

SEC. 15-2743. OUTDOOR COOKING FOR COMMERCIAL PURPOSES.

Outdoor cooking, in conjunction with a restaurant or grocery store, may be permitted in accordance with the conditions below.

A. **Part of an Established Business.** Sales shall be part of the normal business of the establishment. Transactions may be made outdoors however patrons shall also have the option of making transactions inside of the establishment. Should transactions solely be made outdoors and not part of the normal business, it shall be considered a Mobile Vendor.

B. **Setback from Residential.** A minimum separation of 100 feet from Residential Districts is required to ensure that outdoor cooking facilities do not emit odors into homes. The scale of the operations, prevailing wind patterns, and building orientation will be taken into consideration during the review process and a greater setback may be required to mitigate obnoxious odor.

C. **Setbacks from Property Lines.** Cooking apparatus shall comply with all setbacks for the underlying zone district, however in no case shall it be closer than 15 feet to any property line.

D. **Smells/Odors.** The applicant shall provide a written statement outlining how smoke, smells and/or odors will be confined and limited from traveling into Residential Districts.

E. **Hours of Operation.** For facilities located within 100 feet of residential units that are not part of a Mixed-Use development, outdoor cooking shall be limited between 8 a.m. and 10 p.m. An exception, to extend the hours of Outdoor Cooking, may be made if the operator obtains written approval from all owners and tenants within 100 feet from the subject site.

F. **Location of Equipment.**

1. If located in a parking area, grills shall be located in a designated area and may not be relocated freely throughout the parking area. The area dedicated to the use shall be permanently blocked and barriers shall be installed to protect the public.

2. Equipment shall not encroach into designated fire lanes and egress paths from buildings, and shall be located no closer than 10 feet to building openings, and no closer than 10 feet from buildings of combustible construction.

G. **Attendance.** Fires must be attended at all times.

H. **Grease.** The applicant shall detail how grease will be captured and disposed of.

I. **Cleanliness.** The area shall be cleaned daily and shall be free of oil, grease, etc.

J. **Traffic Circulation.** If proposed on an existing parking area, a plan depicting drive aisles, parking areas, etc., shall be submitted for review and approval.

K. **Other Approvals.** The applicant shall be responsible for obtaining permits from other agencies, if applicable, including, but not limited to, the County Health Department, the Fire Department, and San Joaquin Valley Air Pollution Control District.

L. **Additional Conditions.** The Director may impose additional conditions to ensure that the use does not create a nuisance to surrounding properties.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2744. OUTDOOR DINING AND PATIO AREAS.

Eating and drinking establishments, including bars, nightclubs, and smoking establishments, with outdoor dining and/or patio areas shall be located, developed, and operated in compliance with the following standards:

A. **General Requirements.**

1. **Application Information.** In addition to any other application materials required, an application for an outdoor dining area shall state the anticipated periods of use during the year, and the proposed hours of daily use, including Saturdays, Sundays, and holidays; and whether any liquor will consumed.

2. **Hours of Operation.** Hours of operation shall be limited to the hours outlined in Table 15-2744-A.

TABLE 15-2744-A ALLOWED HOURS OF OPERATION

Hours of Operation	*Outdoor Area Hours of Operation*
Establishments not serving alcohol	
Establishments closer than 100 feet from Residential Districts[1]	Not earlier than 7 a.m. or later than 10 p.m.
Establishments further than 100 feet from Residential Districts[1]	Not earlier than 7 a.m. or later than 12 a.m.
Establishments further than 250 feet from Residential Districts[1]	No limitations
Establishments serving alcohol	
Refer to Section 15-2751, Restaurants with Alcohol Sales, Bars, Nightclubs and Lounges	
Establishments closer than 250 feet from Residential Districts[1]	Not earlier than 7 a.m. or later than 10 p.m.
Establishments further than 250 feet from Residential Districts[1]	No limitations
Smoke/Hookah/Cigar Lounges	
Establishments 250 feet or closer from Residential Districts	Not earlier than 7 a.m. or later than 12 a.m.
Establishments further than 250 feet from Residential Districts[1]	No limitations

[1] Distance measured from the establishment to the nearest residential property line. Excludes residential use in the same development.

3. **Misters/Heaters.** Misters, heaters, and other such devises for moderating temperatures of the outdoor dining area shall be permitted at the discretion of the Review Authority based on considerations such as aesthetics, safety, and resource efficiency.

4. **Lighting.** Lighting shall not disrupt or unnecessarily impact adjoining properties or roadways. See Section 15-2015, Outdoor Lighting and Illumination.

5. **Residential Spacing.** Outdoor patio areas for hookah, cigar, and similar establishments shall not operate within 100 feet of a Residential District.

B. **Outdoor Dining Area on Private Property.**

1. **Music.** Music may not be amplified. All music, live or recorded, shall comply with all applicable noise standards.

2. **Barriers.**

a. If required and/or proposed, barriers shall be reviewed and approved by the Review Authority. Barriers shall not exceed four feet in height.

b. If alcohol is served, barriers may be required as part of the Conditional Use Permit process, as well as by the State of California Alcoholic Beverage Control.

3. **Shade Structures.**

a. Covers, including umbrellas, tents, and/or awnings to protect patrons from inclement weather are permitted subject to review and approval by the Review Authority. Weathered and/or damaged coverings shall be removed immediately.

b. Enclosed tents are permitted year round, however they shall only be permitted on a temporary basis and shall not substitute for permanent structures.

c. A building permit is required for any temporary tent or canopy larger than 400 square feet.

4. **Access and Walkways.**

a. Outdoor dining areas shall not interfere with required pedestrian and/or vehicular access.

b. Walkways shall be provided per California Code of Regulations, Title 24, Part 2, California Building Code.

5. **Parking.**

a. Additional parking is not required when the outdoor area is less than 800 square feet.

b. If the outdoor dining area exceeds 800 square feet, parking is required for the area in excess of 800 square feet at a ratio of 50 percent of what is required for the use.

c. For centers with multiple tenants, each tenant may have up to 800 square feet of outdoor dining area.

C. **Outdoor Dining Area within Public Right-of-Way.**

1. **Permit Required.** A Zone Clearance is required for any outdoor dining/seating located in the public right-of-way. An encroachment permit approved by the City Engineer is required for any furniture or structures which are permanently attached to the public right-of-way.

2. **Music.**

a. **Downtown Districts.** Amplified sounds from the establishments must not be audible from a distance of 200 feet outside of the outdoor dining area.

b. **All Other Districts.** Amplified sounds from the establishments must not be audible at the property line.

3. **Barriers.** Barriers must be in a manner acceptable to the City Engineer, and the design must be approved by the Review Authority.

4. **Shade Structures and Furniture.**

a. No part of an outdoor dining area shall be permanently attached to the sidewalk or building unless authorized by the Review Authority.

b. Awnings or umbrellas may be used in conjunction with an outdoor eating area. Permanent covered shade structures and awnings shall obtain a building permit.

c. The design of all improvements and furniture shall be of a quality to sustain weather and wear, and shall be of a material other than molded plastic. Furniture shall be of durable materials such as wrought iron, wood, steel, or cast aluminum. Planter boxes, where used, shall be of quality materials such as precast concrete, terra cotta, or other pottery, and shall not be of plastic.

5. **Access and Walkways.**

a. A minimum of six feet of unobstructed sidewalk must remain available for pedestrians. For purposes of the minimum clear path, parking meters, traffic signs, trees, planters, benches, and all similar obstacles shall constitute obstructions within the sidewalk area.

b. Where the outdoor dining area is located adjacent to a street, and in addition to obtaining an encroachment permit, an 18-inch clearance shall be maintained from the face of the curb to the outdoor dining area unless there is parking parallel to the street, in which case a two-foot clearance is required.

c. No outdoor dining area shall obstruct any points of building ingress and/or egress.

6. **Parking.** Additional parking is not required when dining is within the public right-of-way.

7. **Maintenance.**

   a. The permit holder and the property owner shall maintain the outdoor dining area and the adjoining street, curb, gutter, and sidewalk in a neat, clean, and orderly condition at all times, regardless of the source of the refuse and litter.

   b. If necessary, the permit holder or the property owner shall clean the surface of the sidewalk by washing or buffing to remove any stains, marks, or discoloration to the satisfaction of the Department of Public Works and in accordance with prevailing storm water and water quality regulations.

   c. Umbrellas shall be kept clean and in good condition, secure in windy conditions, and fire-treated.

8. **Insurance.** An applicant for a permit for an outdoor dining area shall, prior to issuance of such a permit, provide and maintain in full force and effect while the permit is in effect, public liability insurance in an amount specified by the City Manager or designee sufficient to cover potential claims for bodily injury, death, or disability and for property damage, which may arise from or be related to the use of sidewalk area for outdoor dining purposes, naming the City of Fresno as an additional insured.

9. **Use of Property/Public Right-of-Way for Purposes of Operating an Outdoor Dining Area.** The applicant shall be charged a fee for use of the area to be included in the outdoor dining area, as set by City. In addition, the applicant shall enter into an agreement with the City, which shall contain a provision that the permit is wholly of a temporary nature, that it vests no permanent right whatsoever, that upon 30 days' notice, posted on the premises, or by publication in the official newspaper of the City, or without such notice, in case the permitted use shall become dangerous or unsafe, the same may be revoked and the sidewalk furniture ordered removed. Every such agreement shall be filed for record with the Office of the County Clerk.

10. **Suspension of Permit.** The City shall have the right to suspend or prohibit the operation of an outdoor dining area at any time because of anticipated or actual problems or conflicts in the use of the sidewalk area.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, §§ 28, 29, eff. 10-21-16).

SEC. 15-2745. OUTDOOR RETAIL SALES.

Outdoor retail sales shall be located, developed, and operated in compliance with the following standards:

A. **Seasonal Sales.** For Seasonal Sales, such as Christmas Tree and pumpkin lots, refer to Section 15-2760, Temporary Uses.

B. **Temporary Outdoor Sales.** For Temporary Outdoor Sales, refer to Section 15-2760, Temporary Uses.

C. **Permanent Outdoor Display/Sales.** The permanent outdoor display of merchandise—except for Automobile and Motorcycle Retail Sales and Leasing, which is subject to Section 15-2709—requires a Development Permit and shall comply with the following minimum standards:

1. **Relationship to Main Use.** The outdoor display and sales area shall be directly related to a business occupying a primary structure on the subject parcel.

2. **Display Locations.** Displayed merchandise shall occupy a fixed, specifically approved and defined location that does not disrupt the normal function of the site or its circulation and does not encroach upon parking spaces, driveways, pedestrian walkways, or required landscaped areas. These displays shall also not obstruct sight distances or otherwise create hazards for vehicle or pedestrian traffic. Specifically:

   a. A four-foot pedestrian pathway shall be maintained and not blocked by merchandise.

   b. If a portion of the pedestrian pathway is shaded by a building overhang, the four-foot pedestrian pathway rather than the merchandise must be located under the overhang.

   c. If located in the public right-of-way, an encroachment from the Public Works Department is required.

   d. Location of the displayed merchandise may not disrupt the normal circulation of the site, nor encroach upon driveways, pedestrian walkways, or required landscaped areas, or obstruct sight distances or otherwise create hazards for vehicle or pedestrian traffic.

3. **Building Setback of 15 Feet or Less.** Merchandise shall be no closer than 15 feet from a public street unless the building is located closer to the street. If so, merchandise may be located closer than 15 feet.

4. **Building Setback Greater than 15 Feet.** Outdoor sales shall be located entirely on private property outside any required setback (or landscaped planter in zoning districts that do not have required setbacks), fire lane, or fire access way. A minimum setback of 15 feet from any public right-of-way is required.

5. **Merchandise.** Only merchandise generally sold at the business shall be permitted to be displayed outdoors.

6. **Screening.** Screening is not required, however when proposed in a Commercial District and when visible from a major street, a decorative fence is required (chain link is prohibited). This requirement shall not apply to:

   a. Seasonal Sales (i.e., Christmas Trees, Pumpkin Lots).

b. Temporary Outdoor Sales.

7. **Signs.** Additional signs, beyond those normally allowed for the subject use, shall not be provided as a result of the outdoor display and sales area;

8. **Refuse/Litter.** The operator shall provide waste removal and shall be responsible for collecting trash and recycling after each event, including the parking lot.

9. **Transactions/Point-of-Sale.** All sales shall occur as part of the normal business activity of the establishment, via a register, or hand-held device. Patrons shall have the option of paying for purchases in the establishment as part of normal business activity.

10. **Other Conditions.** The Director may impose other conditions that would ensure the operation of the proposed temporary outdoor sales in an orderly and efficient manner.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2746. PAY PHONES.

Pay phones installed outside of a building are permitted subject to the following requirements.

A. Pay phones are permitted in non-residential districts.

B. Pay phones shall comply with the property development standards of the underlying District and in no case shall they be located closer than 20 feet to Single-Unit Districts.

C. Pay phones shall be within 10 feet of the main entrance of a business.

D. Pay phones shall be restricted to outgoing calls.

E. Pay phones may only be installed and operated where there is a legitimate business. Should a business close, the pay phone shall be removed.

F. Pay phones, and the area immediately around the phone, shall be kept clean of litter, graffiti, etc.

G. Adequate lighting shall be provided to light the pay phone and the area immediately around the phone.

H. Inoperative and/or abandoned pay phones, including booths shall be removed within 30 days.

I. Pay phones shall comply with Section 10-605, Public Nuisance of the Fresno Municipal Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 64, eff. 7-27-25).

SEC. 15-2747. PERSONAL (MINI) STORAGE.

Personal storage facilities shall be located, developed, and operated in compliance with the following standards. Where the standards of this section appear to conflict with the standards of the base district, the standards of this section shall prevail.

A. **Business Activity.** All personal storage facilities shall be limited to dead storage only. No retail, repair, or other commercial use (such as storage for commercial gain) shall be conducted out of the individual rental storage units.

B. **Uses Allowed.** Such use shall consist of the renting and leasing of individual storage space for storing personal property, stock-in-trade materials and equipment, automobiles, and recreational vehicles. The following shall be allowed as accessory uses:

1. A caretaker's residence;

2. The retail sale of items appurtenant to the on-site rental of storage spaces;

3. The lien sale of stored goods as authorized by California Business and Professions Code, Chapter 10, Division 8, Section 21700 et. seq.; and,

4. The rental of trucks, trailers, and dollies.

C. **Notice to Tenants.** As part of the rental process, the facility manager shall inform all tenants of conditions restricting storage of hazardous materials and limitation on the use of the storage units.

D. **Open Storage.** Open storage (outside an enclosed building) shall be limited to vehicles, boats, recreational vehicles, and trailers. Outdoor storages areas shall be screened from public view by building façades or solid fences. At the discretion of the Review Authority, the treatment of the ground surface of the open storage area may be gravel or other materials as prescribed by the San Joaquin Valley Air Pollution Control District, the Public Works Department, the Fire Department, and the Fresno Metropolitan Flood Control District.

E. **Exterior Wall Treatments and Design.** Exterior walls/fences visible from a public street or Residential District shall be constructed of decorative block, concrete panel, stucco, or similar material. These walls shall include architectural relief through articulation, trim, change in color at the base, the use of architectural "caps," attractive posts, or similar measures. Columns visible from public streets shall be spaced a maximum of 25 feet apart. Gate(s) shall be decorative iron or similar material.

F. **Fencing.**

1. A six-foot-high security fence shall be provided around the perimeter of the development at locations where the solid façades of the storage structures do not provide a perimeter barrier.

2. A wrought iron fence or gate or an approved equivalent shall be required at the entrance to the facility.

3. A storage building located on the side or rear property line may be used as a required fence or wall.

G. **Hours of Operation.** Hours of operation shall be limited to the hours of 7 a.m. to 7 p.m. if the facility abuts Residential Uses or Districts, including residential that may be part of a mixed-use development. If the facility abuts commercial, industrial, or public facilities, it may remain open until 10 p.m.

H. **Setbacks.**

1. **Front and Street Side.** When the subject site abuts a street, a yard of 10 feet or more (as required elsewhere in this Code) shall be provided, landscaped, and maintained in accordance with the requirements of this Code. Fences/walls shall be located behind this landscaping.

2. **Interior Side and Rear.** None required if the building height does not exceed 11 feet.

I. **Other Requirements.**

1. When adjacent to parcels within an RS or RM district, the roof of any building exceeding 11 feet in height shall incorporate colors and angles commensurate with those of the adjacent properties.

2. Lighting which is provided to illuminate parking or building areas shall be hooded and arranged and controlled to eliminate any nuisance to the surrounding uses. The height of lighting which illuminates outdoor vehicular storage areas shall be approved at the discretion of the Review Authority.

3. The height of any building when located less than 40 feet from any property line that abuts property that is zoned or planned for single-unit residential uses, shall not exceed 11 feet.

4. A public address system shall not be allowed when the facility is located within 1,000 feet of any property zoned or planned for residential uses. This does not include alarm systems.

5. **Caretaker's Residence.** A Caretaker's Residence shall provide a minimum of one parking space in an enclosed garage and a private yard for use by the residence with a minimum of 100 square feet where at least one dimension is at least eight feet in length.

J. **Design Standards within Mixed Use Districts.**

1. **Location.** Storage uses shall not be located within 300 feet of an existing or planned Bus Rapid Transit station.

2. **Site Size.** Shall not exceed two acres.

3. **Setback from Major Streets.** The storage use shall be set back no less than 50 feet from all Major Streets. No less than 60 percent of the building frontage along Major Streets shall be occupied by food and beverage sales, entertainment and recreation, general personal services, artist's studios, eating and drinking establishments, personal services, general retail, or convenience retail uses. Other high-activity uses may be approved at the discretion of the Review Authority.

4. **Façade Design.** The facades of the storage structures shall appear to be buildings used for non-storage purposes, such as office or multi-unit, and shall not have an industrial appearance.

5. **MX Development Standards.** Unless otherwise stated, all MX development standards shall apply.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 30, eff. 10-21-16; Am. Ord. 2025-024, § 65, eff. 7-27-25).

SEC. 15-2748. POWER POLES.

Power Poles on private property for either a temporary period or permanently may be permitted subject to a valid Building Permit, and/or active Temporary Use Permit per Section 15-2760, Temporary Uses.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2749. PRIVATE RECREATIONAL SPORTS FACILITIES.

Private Recreational Sports Facilities, as part of a gymnasium/health club, on residential property, or as the primary use on a site (ex: golf course, golf-driving range, archery range, rock climbing course, kart racing, motocross and BMX tracks, ice hockey, ice skating, roller skating, roller hockey, roller derby, inline skating, skate parks, basketball courts, or soccer, baseball, softball, cricket, field hockey, or lacrosse fields, horse riding courses, or similar activities as determined by the Director), shall be subject to the following standards:

A. Whenever a proposed use contains, or is placed adjacent to, outdoor facilities that provide batting cages, golf courses, golf-driving ranges, paintball, archery, or similar activities, the proposed use shall include fences, nets, walls, or other methods that are capable of stopping all projectiles fired and/or hit by containing or redirecting the projectile to a safe location. This does not apply when an existing use already has measures in place that are adequate enough to protect the proposed use.

B. **In Non-Residential Districts.** Activities, such as batting cages and paintball, that may generate unwanted noise, shall cease at 10 p.m. (and may not renew operations until 8 a.m. the following morning) unless separated by a minimum of 400 feet from a Residential District. A greater distance may be required if the proposed use, such as motocross, generates above-average ambient noise levels.

1. **Fencing.** Fencing for outdoor activities shall be reviewed on a case-by-case basis. Consideration shall be given to streets, homes, etc.

C. **In Residential Districts.** Any outdoor activities, such as batting cages, that may generate unwanted noise, shall be limited to the hours of 8 a.m. to 8 p.m. Additional measures may be required to mitigate noise to acceptable levels. Any enclosures used for activities must not be visible from the street and must be screened from adjoining residences. Artificial lighting is not permitted.

1. **Fencing.** Refer to Section 15-2006, Fences, Walls, and Hedges.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2750. RECYCLING FACILITIES.

Recycling facilities shall be located and operated in compliance with the following standards:

A. **Reverse Vending Machines.**

1. **Accessory Use.** Reverse vending machines may be installed as an accessory use to a permitted or conditionally permitted primary use on the same site.

2. **Location.** Machines shall be located adjacent or as near as feasibly possible, to the entrance of the commercial host use and shall not obstruct pedestrian or vehicular circulation. Machines shall be located against a wall and may not be located in parking areas.

3. **Identification.** Machines shall be clearly marked to identify the type of material to be deposited, operating instructions, and the identity and phone number of the operator or responsible person to call if the machine is inoperative.

4. **Signs.** Machines shall have a maximum sign area of four square feet exclusive of operating instructions.

5. **Lighting.** Machines shall be illuminated to ensure comfortable and safe operation between dawn and dusk.

6. **Trash Receptacle.** Machines shall provide a 40-gallon garbage can for non-recyclable materials located adjacent to the reverse vending machine.

7. **Hours of Operation.** No restrictions.

B. **CRV Recycling Centers.** California Redemption Value (CRV) Recycling Centers are facilities available for the general public for the recycling of products such as glass, aluminum cans, and plastic beverage containers as defined by the State's Department of Resources Recycling and Recovery.

1. **Permanent Location.** CRV Recycling Centers shall not be temporary. All associated improvements shall be permanent in nature.

2. **Hours of Operation.** CRV Recycling Centers shall not be open for business on the same day as regularly scheduled refuse collection for nearby residential areas.

3. **Materials.** CRV and Commingled Materials as defined by Government Code 14506.5 and 14512 of the California Beverage Container Recycling & Litter Reduction Act may be accepted. Newspapers, cardboard, copper, or industrial materials may not be accepted, unless the facility is located within an industrial district.

4. **Minimum Lot/District Size.**

   a. If a CRV Recycling Center is ancillary to a primary use, the site shall be a minimum of one acre in area.

   b. If the Recycling Center is the sole or primary use on the site, the site shall be a minimum of one-half acre in area.

5. **Permitted Locations.** Facilities are permitted as shown in the applicable base district. The following provisions shall also apply:

   a. In Industrial Districts CRV Recycling Centers may be the primary use.

   b. In all other districts a CRV Recycling Center shall be operated in conjunction with a retailer such as a supermarket, super drug store, or other retailer that sells CRV-type goods.

   c. Recycling Centers may be located in a Commercial District that does not house a retailer that sells CRV-type goods, subject to the following:

      i. The parcel must within 1,320 feet of an existing supermarket, super drug store, or other retailer that sells CRV type goods.

      ii. The site shall be a minimum one acre in area.

      iii. The facility shall comply with all property development standards, including setbacks, landscaping, parking, etc., of the zone district in which the facility is located.

   d. New Recycling Centers in Commercial Districts shall only be permitted in unserved (and non-exempt) convenience zones.

6. **Maximum Size.** The Recycling Center shall be limited to a maximum footprint of 700 square feet. Of these 700 square feet, only 500 square feet may be used for building and/or storage area. The remaining 200 square feet may be used for office space, staging areas, or patios/permanent shade structures. If the facility is proposed in a permanent building, a larger building area will be allowed on a case-by-case basis.

7. **Separation.** Except where mandated by State law, CRV Recycling Centers shall physical maintain separation from specific uses as follows. Distances shall be measured from the boundaries of the actual facility and not the property line.

   a. **From Residential Uses.** 75 feet.

   b. **From Public Streets.** 20 feet.

   c. **From Parks.** ½ mile.

   d. **From Liquor Stores.** ½ mile.

e. **From Schools.** ½ mile.

f. **From Another Recycler.** New CRV Recycling Centers shall not be located within a half-mile of an existing recycling center (or an existing light processing facility that accepts CRV material from the general public).

8. **Parking.** Patrons and the attendant shall not reduce available parking spaces below the minimum number required for the existing buildings.

9. **Pavement.** The area used for recycling, parking, and/or storage shall be paved per Public Works Standards for parking lots.

10. **Equipment.** No power-driven processing equipment, except for reverse vending machines, may be used.

11. **Containers.** Containers shall be constructed of durable waterproof and rustproof material(s) and secured from unauthorized removal of material. Capacity sufficient to accommodate materials collected in the collection schedule. ISO containers shall comply with Section 15-2736.

12. **Identification.** Containers shall be clearly marked to identify the type of accepted material, the name and telephone number of the facility operator, and the hours of operation.

13. **Signs.** Signs shall be a maximum of 20 percent per side of facility or container or 16 square feet, whichever is larger. In the case of a wheeled facility, the side is measured from the pavement to the top of the container.

14. **Site Maintenance.** Sites shall be maintained clean, sanitary, and free of graffiti, litter, and any other undesirable materials.

15. **Voucher System.** Upon recommendation by the Fresno Police Department, the Director may require that a Recycling Center implement a voucher system. No money shall be kept in or about the licensed premises. The petitioner shall implement and utilize a voucher system to compensate patrons for raw recycled materials purchased by the business. The center shall provide the patron with a "voucher" which can be exchanged for cash at a predetermined business establishment (e.g. stores, check cashing locations, etc.).

16. **Video Surveillance.** Upon recommendation by the Fresno Police Department, the Director may require that the site be monitored by video surveillance.

17. **Building/Structure Design and Architectural Compatibility.**

a. Recycling Centers shall be limited to single story-structures with a height no greater than 10 feet (12 feet if the structure includes architectural features), unless proposed in a permanent building.

b. A typical ISO container or other type of metal building or structure may be permitted if it is:

i. Screened by a permanent decorative wall consistent with the architecture of the shopping center; or

ii. Contained within a permanent or semi-permanent sheath- type structure that is consistent or compatible with the architecture of the shopping center.

c. The storage container shall be painted to match the existing shopping center including the body color and all trim existing. Prominent architectural features of the center (such as tile accents) shall be incorporated into the design of the storage container.

d. Screen walls shall be architecturally compatible with the existing shopping center. Chain link fencing may be permitted if it is not visible from a public street or a Residential District.

e. If the facility conducts most of its business outdoors and is not shaded by adjacent trees or buildings during operating hours, a shade structure is allowed for employees. Permanent shade structures are encouraged, but portable shade structures, tents, or umbrellas may be provided for the comfort and safety of the customers and attendant on a case-by-case basis. Shade structures shall remain clean and in good order and shall be replaced if damage or excessive wear becomes visible. To the extent possible, this shade structure or tent shall be architecturally compatible with the shopping center and recycling facility (i.e., of similar colors as the building). The maximum square footage of these shade structures is 120 square feet. Details of the shade structure(s) shall be included in the operational statement. Elevations will be required with application submittal.

18. **Landscaping.**

a. Sites shall be in compliance with approved Landscape Plans.

b. If the site was developed prior to existing landscaping requirements, landscaping within the immediate vicinity of the storage container and sorting area shall be provided.

19. **Site Maintenance and Operational Requirements.**

a. Recyclable materials shall be stored in containers or in the storage unit.

b. CRV Centers shall maintain an adequate on-site refuse container for disposal of non-hazardous waste and a container for customers to pour remaining liquids into from their CRV materials. These refuse containers shall be screened from public view.

c. The storage unit and surrounding area shall be cleaned and washed and all litter surrounding the site removed as needed to maintain a safe and healthy environment.

d. The operator shall ensure compliance with the Fresno Metropolitan Flood Control District.

e. All shopping carts found within 25 feet of the recycling center not belonging to the existing shopping center shall be returned to their owners. Shopping carts are prohibited on the premises and within 25 feet of the area used to accept recyclable materials.

i. The applicant shall indicate in the operational statement how these requirements will be accomplished,

ii. The operator shall post a sign advising that it is illegal to take shopping carts or that possession of stolen shopping carts is a misdemeanor.

iii. The operator must comply with the Abandoned Shopping Carts Ordinance, Fresno Municipal Code Section 9-3101 et seq., as may be amended.

f. Signs shall be posted informing customers of the Abandoned Shopping Cart Ordinance (Section 9-3103 of the Fresno Municipal Code).

g. An on-site restroom facility or a written letter from a nearby store within in the shopping center that allows the recycling center employees to use the store's on-site restroom facilities is required.

h. The Recycling Center shall be illuminated to ensure comfortable and safe operation.

20. **Other Requirements.**

a. Recycling facilities must obtain a Solid Waste Recycling Permit from the Code Enforcement Division.

b. Frequent responses by the Fresno Police Department (FPD) arising out of or relating to the operation or management of the real property owned or controlled by the permit-holder causing any combination of the following: animal disturbances; violent criminal acts; illegal consumption of intoxicants in public view; gaming activities; and juvenile disturbances, or any of the other activities set forth in the Fresno Municipal Code (FMC) Section 10-708(g) may result in an FPD recommendation to the Director to commence proceedings to revoke the Site Plan Review/Development Permit or Conditional Use Permit application for violation of the Management of Real Property Ordinance. In addition to recommending the commencement of revocation proceedings, the FPD may pursue any of the other remedies set forth in FMC, Section 10-710, Violation, including assessing fines against the proprietor for the violations of the Management of Real Property Ordinance.

c. "Frequent," for this subsection, means response by the Fresno Police Department is occurring more than 1.5 times the average number of such responses (three calls for every two) for property of a similar size and character within the same policing district.

C. **Recycling Processing Facility.**

1. **Minimum Lot Size.** Three acres.
2. **Location.** Facilities shall not abut a residential district or use and shall have direct access to a Major Street that is properly designated to accommodate the type of traffic that will be generated by the facility.
3. **Screening.** The facility shall be screened from public rights-of-way, by a Screening Wall, per 15-2008-C, or within an enclosed structure. Frontage landscaping (a minimum of 10 feet) is required.
4. **Pavement.** The area used for recycling, parking, and/or storage shall be paved per Public Works Standards for parking lots.
5. **Outdoor Storage.**
   a. Exterior storage of material shall be in sturdy containers or enclosures that are secured and maintained in good condition. Storage shall not be visible above the height of the required Screen Wall.
   b. Exterior storage of materials, other than baled material, shall be in sturdy containers or enclosures which are covered, secured, and maintained in good condition.
   c. Outdoor storage shall comply with the Fire Code for pile size, fire apparatus access, and fire hydrant protection.
6. **Identification.** Facilities shall be clearly marked with the name and phone number of the facility operator and hours of operation.
7. **Processing.** Processing facilities are limited to baling, briquetting, crushing, compacting, grinding, shredding, and sorting of source- separated recyclable and reusable materials.
8. **Noise.** Shall comply with all applicable Noise standards.
9. **Fluids.** A processing facility may accept used motor oil and/or used oil filters for recycling from the generator in accordance with Government Code 25250.11 of the California Health and Safety Code. All storage of used motor oil and/or used oil filters must be within a containment apparatus capable of containing all stored oil in the event of a spill or leak. No containment apparatus shall exceed a capacity greater than 55 gallons. All used motor oil and/or used oil filter storage containers shall be located on an approved surface.
10. **Batteries.** A processing facility may accept used lead-acid batteries in accordance with Government Code 25215.1 of the California Health and Safety Code Section 25215.1. All batteries must be stored inside an enclosed building.
11. **Hours of Operation.** If the facility is within 500 feet of a Residential District, or an existing home, it may not operate between the hours of 7 p.m. and 7 a.m.
12. **Personnel.** The facility shall be administered by on-site personnel during the hours the facility is open,

13. **Maintenance.** If CRV materials are accepted, compliance with the Site Maintenance and Operational Requirements of Subsection 15-2750-B.19 is required.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2015-43, § 2, eff. 1-22-16; Am. Ord. 2017-54, § 1, eff. 11-18-17; Am. Ord. 2018-33, § 1, eff. 6-14-18).

SEC. 15-2751. RESTAURANTS WITH ALCOHOL SALES, BARS, NIGHTCLUBS, AND LOUNGES.

A. **Permitted Districts.** Restaurants that serve alcohol for on-site consumption, Bars, and Nightclubs may be established as allowed in the applicable base or overlay district.

B. **Conditional Use Permit Required.**

1. Unless otherwise specified, restaurants with alcohol sales, bars, nightclubs, and lounges shall not be established without first securing a Conditional Use Permit. A conditional Use Permit shall not be required in Downtown Districts.
2. A Conditional Use Permit shall not be required for on-site alcohol consumption for the uses below subject to review and approval of an operational statement from the applicant to the Director. If, in the opinion of the Director, the request is for retail purposes, the use must be permitted per the Base District.
    a. Daily Licenses;
    b. Membership organizations and clubs that are restricted to members and their guests only;
    c. Nonprofit Temporary Licenses;
    d. Hospitals;
    e. Cultural and Art Museums operated by non-profit organizations;
    f. Bed and Breakfast Inns that offer complimentary drinks to their guests; and
    g. Hotels and Motels that offer complimentary drinks to their guests.

C. **Operational Statement.** Applicants shall submit an operational statement which shall include, but not be limited to, the following:

1. Information as to persons doing business under fictitious names, members of partnerships, and officers of corporations or associations.
2. Exhibits that include a site plan and a detailed floor plan of the premises.
3. An evacuation plan in case of emergency (Bars and Nightclubs).
4. Hours of operation.
5. Security Plan (including efforts to ensure that the parking area is monitored to prohibit loitering and crowd and line control).
6. Efforts that have been taken to discuss the proposal with neighbors.
7. Copy of a valid Business Tax Certificate, if in business.

8. Any additional information as the Director may reasonably require to properly evaluate the application.

D. **Multiple Phases of Operation.** If a business proposes to operate in more than one mode of operation (e.g., a Restaurant that converts to a Nightclub in the evening), each use shall be evaluated and conditions shall be assigned accordingly. All proposed uses must be allowed in the district.

E. **Alcohol Sales.** If the business serves alcoholic beverages, it is required to obtain the appropriate license from the State of California Department of Alcohol Beverage Control (ABC).

F. **Types of Dancing Establishments.**

1. **Restaurant.** Dancing is permitted, however it shall be incidental to the primary use.

2. **Bar.** Dancing is permitted, however it shall be incidental to the primary use.

3. **Nightclub.** Dancing is permitted.

4. **Single Event.** Single event dances may be conducted by nonprofit organizations where such dances are not open to the general public. A total of 10, single event dances may be held per calendar year per nonprofit organization. A permit is not required. Should an establishment conduct more than 10 dances, a permit to establish a Nightclub shall be required.

G. **Special Standards.**

TABLE 15-2751-G: SPECIAL STANDARDS

Use	*Time to Stop Sales, Service, & Consumption of Alcohol*	*Separation from Residential*[1]	*Neighborhood Meeting*
Restaurants (Should an establishment seek to stay open after 12 a.m., it shall be considered a Bar or Nightclub for permit purposes)	12 am.	NA	No
Tasting Room (Should an establishment seek to stay open after 11 p.m. or serve alcoholic beverages other than beer or wine, it shall be considered a Bar or Nightclub for permit purposes)	11 p.m.	NA	No
Bar	2 a.m.	Less than 300 ft.	Yes
		300 ft. or greater	No
Nightclub (whether or not they sell alcoholic beverages; for under aged persons, refer to Table 15-2751-H)	2 a.m.	Less than 400 ft.	Yes
		400 ft. or greater	No

1. Minimum horizontal distance, measured in feet, between the building, or portion of a building, occupied by the use, and the closest property line of property planned or zoned for residential uses, not including residential part of the project or part of a vertical mixed-use development. The separation criteria is not subject to modification by a permit.

H. **Nightclub Hours of Operation.**

TABLE 15-2751-H: NIGHTCLUB HOURS		
Age of Participants	*Closing Hour*	*Extensions*
Under 18 years of age	12 midnight	Dances in partnership with an accredited School, nonprofit youth organization, such as sober graduation, may stay later if approved by the Police Department. Evidence of the partnership shall be provided to the City in advance of any scheduled event.
18 and over	2 a.m. if closer than 300 ft. from a Residential District	5 a.m. on New Year's Day
Restricted Hours	Nightclubs may not be open between 4:00 a.m. and 8 a.m.	

I. **Last Call for Alcohol.** Each establishment may establish the time of "last call" for ordering alcoholic beverages, so long as the hours to stop consumption are respected.

J. **Outdoor Patios.** Refer to Section 15-2744, Outdoor Dining and Patio Areas.

K. **Parking Area.** The designated parking area shall be oriented away from residences as much as possible, and shall be clearly depicted on the site plan submitted for the Development Permit or Conditional Use Permit.

L. **Noise.**

1. Noise decibel levels shall be monitored by the establishment to ensure compliance with all applicable Noise Standards.

2. Doors and windows shall remain closed, after 10 p.m. to minimize noise, except as needed to allow for the normal entry and exit of patrons to and from the establishment. Emergency access shall be maintained per City standards. This subsection shall not apply to businesses that are separated a minimum of 400 feet from Residential Districts.

M. **Posting Hours of Operation and Address.** The owner and/or proprietor and/or applicant shall be responsible to conspicuously post the hours of operation for each phase type (i.e., restaurant, nightclub) near the entrance of the establishment. It shall be 8.5 × 11 inches in size, to be in a format provided by the City. This posting shall be made available to City officials upon request.

N. **Security.** The Police Department shall make a recommendation to the Director for security measures for each application based upon the function of the establishment as described in the operational statement. Additional and/or security measures such as reduced hours of operation, security guards, door monitors, and burglar alarm systems may be required if harm, nuisance, or related problems are demonstrated to occur as a result of business practices or operations. This will be determined on a case-by-case basis upon review by the Police Department.

O. **Loitering.**

1. The owner and/or proprietor and/or operator of the establishment is responsible to provide supervision (i.e. security) to prevent loitering in the immediate vicinity of the establishment.

2. During operating hours, the owner and/or proprietor shall prohibit loitering in the parking area.

3. After closing hours, the immediate vicinity of the establishment including its designated parking area, shall be cleared within 15 minutes, except for employees of the establishment.

4. In the event that there is more than one establishment sharing a parking area, adjustments to the conditions of approval for each establishment shall be made so that there is a shared responsibility.

P. **Third Party Promoters.** Whenever an event is promoted by a Third Party the licensee/owner and/or proprietor and/or operator of the premises shall require that said Third Party obtain a business tax certificate from the City prior to holding such event.

Q. **Neighborhood Meeting.** An application for a Bar less than 300 feet from Residential per Table 15-2751-G or Nightclub less than 400 feet from Residential per Table 15-2751-G shall be required to conduct a Neighborhood Meeting as put forth in Section 15-5006.

R. **Non-Operating Rule.** Whenever all of the rights granted by a permit are discontinued, the following rules to reestablish the use shall apply:

1. **One Year or Less.** The same operator or a different operator may reestablish the use pursuant to the preexisting Conditional Use Permit and all conditions applicable thereto.

2. **More Than One Year.** A new permit is required.

S. **Existing Uses.**

1. **Non-Conforming.** Existing establishments that have been legally established under previous regulations, but do not conform to current law, may continue to operate as a recognized non-conforming use pursuant to Article 4, Non-Conforming Uses, Structures, Site Features, and Lots.

2. **Loss of Non-Conforming Status.** Changes to an existing use that would cause the loss of a non-conforming status are, but not limited to, the following:

   a. When a business is closed for one continuous year;

   b. Change of use (e.g., from restaurant to a nightclub), or if a single use would like to establish multiple uses;

   c. An increase of floor area (including patio area) for the existing use; and

   d. A request to close at a later time.

3. Pursuant to § 23790 of the California Business and Professional Code, a change in license type (ABC License) for the sale of alcoholic beverages (e.g., from type 41 to type 47) shall be considered an interruption of use, requiring that the new license type be consistent with current zoning and land use regulations.

4. When a non-conforming status is lost, any subsequent use must be consistent with current zoning and land use regulations and a new permit is required.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 31, eff. 10-21-16).

SEC. 15-2752. ROADSIDE FRUIT STANDS/GROWER STANDS.

Roadside Fruit Stands may be located, developed, and operated in compliance with the following standards. The rights and privileges extend to active farms per the use regulations of the underlying base district.

A. **Products.**

1. Agricultural products produced on the premise shall account for 75 percent of all products.

2. Up to 25 percent of products may be produced off-site, however all products shall be agriculturally related.

3. Nonagricultural products, livestock, alcohol, and tobacco products are prohibited.

B. **Seasonal and Holiday Sales.** Sales shall be limited to the products being sold per Subsection A above.

C. **Structures.**

1. When not in operation, all tables, tents, canopies, temporary membranes, barricades, products, signs, litter, etc. shall be removed. Permanent buildings and structures are excepted.

2. Any structures remaining after a closure of a Fruit Stand for six months or longer shall be considered a public nuisance and shall be abated pursuant to the Public Nuisance Ordinance.

D. **Setbacks.**

1. **Streets.** Structures and parking areas shall be setback a minimum 20 feet from the nearest travel lane.

2. **Interior and Rear Property Lines.** Structures and parking areas shall be setback a minimum 35 feet from interior and rear property lines.

E. **Refuse/Litter.** The operator shall provide waste removal and shall be responsible for collecting refuse, including the parking lot.

F. **Other Agencies.** Review and approval may be required from other agencies, including Fresno County Health Department.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2753. SECOND AND OUTDOOR KITCHENS.

An outdoor, enclosed, or second kitchen may be permitted in a Single-Unit District subject to the property development standards of the underlying district and the following:

1. The additional kitchen shall be incidental, related, and clearly subordinate to the principle use and shall not alter the principal use.

2. If enclosed, the enclosed kitchen area shall not exceed 110 square feet. If the area exceeds 110 square feet, it shall comply with Section 15-2754, Second/Accessory Dwelling Units (ADUs).
3. The kitchen area shall meet all yard setback requirements.
4. If enclosed, the enclosed area shall not be converted to a separate living unit.
5. If attached to the main building, the second kitchen shall have direct access to the main building.
6. Cooking shall only be for the enjoyment of the residents and/or their guests and shall be limited to non-commercial purposes.
7. Only one electric/gas meter is permitted per single-unit parcel.
8. The kitchen in the main building shall remain in safe working order.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 66, eff. 7-27-25).

SEC. 15-2754. SECOND/ACCESSORY DWELLING UNITS (ADUS).

A. **Purpose.** The purpose of this section is to allow for the ministerial development of Second Dwelling Units in a manner that is consistent with the requirements identified in Government Code Section 66310 et seq.

B. **General Requirements.**

1. **Preemption.** Should there be any conflict with the provisions in this section and those within Government Code Section 66310 et seq., as may be amended, the Government Code shall prevail.
2. **Areas where Second Dwelling Units are allowed.**
    a. Accessory Dwelling Units may be permitted in any zone district that allows single-unit and multi-unit residential dwellings, mixed-use development, or where a single-unit structure, duplex, or multi-unit structure is either existing or proposed.
    b. Junior ADUs are limited to single-unit districts or where a single-unit dwelling is existing or proposed.

C. **Types of Second Dwelling Units.** Second Dwelling Units include Accessory Dwelling Units (ADUs) and Junior Accessory Dwelling Units (JADUs),

1. **Accessory Dwelling Unit (ADU).** An ADU provides separate, independent living quarters for one or more persons. Units may be attached, detached, or located within the structure of a primary dwelling unit. An ADU must have its own entrance and include facilities for daily living including, at minimum, a kitchen, bathroom, and bedroom.
    a. A Tiny House on Wheels (THOW) may be considered an ADU if it meets all the requirements of this section. In addition, THOWs must be ANSI certified, be placed on an engineered foundation system, and use skirting to enclose the area between the home and the ground.

2. **Junior Accessory Dwelling Unit (JADU).** A JADU shall not be larger than 500 square feet and must be contained entirely within a single-unit primary residence. Attached garages are considered part of a primary residence. A JADU must have its own entrance and include, at minimum, a kitchen and bedroom.

    a. **Shared Facilities.** A JADU is allowed to share sanitation facilities with the primary residence. When this occurs, the JADU must include an interior entrance to the main living area that is separate from the main entrance to the JADU.

    b. **Efficiency Kitchen.** A JADU is allowed to have an efficiency kitchen, which includes, at minimum, a cooking facility with appliances and a food preparation counter and storage cabinets that are of reasonable size in relation to the size of the JADU.

3. **Conversions.** An ADU may be created through the conversion of a portion of the primary residence (including an attached garage), a detached garage, or another existing accessory structure. A JADU may be created through the conversion of a portion of the primary residence (including an attached garage).

D. **Density and Massing Development Standards.**

1. **Lot Coverage.** Second Dwelling Units are not included in calculations for lot coverage requirements.

2. **Density.** Second Dwelling Units are not included in calculations for density requirements.

3. **Number Allowed.**

    a. **Single-Unit Lots.** Up to two ADUs and one JADUs per lot.

    b. **Multi-Unit Lots.**

        i. Detached. Up to eight detached ADUs per lot, not to exceed the number of existing units. The units must be detached from the primary unit(s), but do not need to be detached from each other or other accessory structures on the lot.

        ii. Conversions. Either up to 25 percent of the number of existing units or one ADU, whichever is greater, may be created through the conversion of existing non-livable space (such as enclosed garages, leasing office, common rooms, etc.).

4. **Maximum Size.**

    a. **ADUs.** Not to exceed 50 percent of the average floor area of the primary unit(s) or 1,400 square feet, whichever is greater.

        i. Exceptions for Conversions. An ADU that is created within the proposed space of a single-unit structure, or in the existing space of a single-unit

structure or accessory structure may expand up to 150 beyond the same physical dimensions of the existing accessory structure for the purpose of accommodating ingress and egress.

b. **JADUs.** Not to exceed 500 square feet.

5. **Maximum Height.** Per the underlying district or 30 feet, whichever is greater. Second Dwelling Units are allowed to be multiple stories or located above the ground floor.

6. **Minimum Setbacks.** In all instances, when a recorded utility easement is present, the setback shall include such easement even if it would result in a setback greater than the required minimum.

a. **Rear and Side.** Per the underlying base district or four feet, whichever is less.

i. Properties abutting alleys. Zero feet. If the ADU has its main entrance on the alley, however, the setback shall be at least two feet.

b. **Front.** Per the underlying district, however the applicable setback may not preclude the development of an ADU of at least 800 square feet.

7. **Placement.** Unless it would preclude the development of an ADU of at least 800 square feet, detached ADUs must be located behind the front facade of the primary unit.

E. **Parking.** No parking is required.

F. **Additional Regulations.**

1. **Owner Occupancy.**

a. **ADUs.** Owner-occupancy is not required.

b. **JADUs.** The owner must reside in either the primary residence or in the JADU.

i. Exception. Owner-occupancy is not required when the property owner is a governmental agency, land trust, or housing organization.

2. **Conveyance.**

a. **ADUs.** An ADU may be sold, or title thereto transferred, separate and apart from the rest of the property in compliance with one of the following:

i. The creation of a common interest development pursuant to Article 39—Common Interest Developments (Condominiums and Conversions) and Government Code Section 66342; or

ii. The filing of a Parcel Map pursuant to Article 35—Parcel Maps.

b. **JADUs.** JADUs that rely on shared facilities are required to record a deed restriction prohibiting the sale of the JADU separate from the primary residence.

3. **Rental Restrictions.** Second Dwelling Units that are rented must be for terms of 30 consecutive days or longer.

(Added Ord. 2025-024, § 67, eff. 7-27-25).

Editor's note—Ord. 2025-024, § 67, effective July 27, 2025, repealed the former § 15-2754, and enacted a new § 15-2754 as set out herein. The former § 15-2754 pertained to Second Dwelling Units, Backyard Cottages, and Accessory Living Quarters and derived from Ord. 2015-39, § 1, effective January 9, 2016; Ord. 2016-32, § 32, effective October 21, 2016; Ord. 2018-25, § 28, effective June 11, 2018; Ord. 2018-66, §§ 50, 51, effective January 18, 2019.

SEC. 15-2755. SERVICE STATIONS.

Service stations and any other commercial use that provide fuel pumps for retail sales of gasoline are subject to the following standards:

A. **Site Design.**

1. **Access.**

a. There shall be no more than two vehicular access points to/from a public street. Additional access may be provided by neighboring properties.

b. Should a site be redeveloped (i.e., the existing building and/or fuel canopy is removed and reconstructed), and more than two vehicular points of access exist, they shall be removed per Public Works Standards.

c. Fleet Fuel Stations in Industrial Districts may provide additional access points, as determined by the Public Works Director.

2. Designs shall incorporate landscaping and half screen walls to screen vehicles while allowing eye level visibility into the site. Fleet Fuel Stations in Industrial Districts are excepted from this provision.

3. Significant architectural or landscape features shall be provided at the corner of intersecting streets to enhance the streetscape.

4. Noise-generating uses, such as auto service bays, car wash openings, vacuum stations, outdoor loading areas, garbage storage, and stacking lanes, shall be located away from sensitive uses such as residential areas.

5. Propane tanks, vapor recovery systems, air compressors, utility boxes, garbage, recycling containers/enclosures, and other similar mechanical equipment shall be screened from public view. Propane tanks, vapor recovery tanks, etc. shall be laid horizontally and shall be screened with a hedge and/or wall.

B. **Air and Water Stations.** Air and Water Stations shall be identified on plans and shall comply with the setbacks of the underlying District.

C. **Pump Islands.** Pump islands shall be located a minimum of 15 feet from any property line to the nearest edge of the pump island, unless a greater setback is required by an operative plan. A canopy or roof structure over a pump island may

encroach up to 10 feet within this distance. In areas with distinct architecture (to be determined by the Director), the canopy must match the architecture of the main building on the site.

D. **Auto Repair.** Auto Repair shall comply with Section 15-2710, Automobile/Vehicle Service and Repair, Major and Minor.

E. **Temporary Car Washes.** Refer to Section 15-2760, Temporary Uses.

F. **Proximity to Other Service Stations.** No more than two service stations may be located on the corners of the same intersection.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2756. SHOOTING RANGES/ARCHERY RANGES.

Indoor Shooting Ranges and/or Archery Ranges are permitted in accordance with the standards below. The standards below are intended to prevent damage to neighboring properties and to mitigate potential noise from guns and filtration systems used to diminish lead dust and other particulates. Outdoor Ranges are not permitted.

A. Buildings shall incorporate indoor walls and partitions capable of stopping all projectiles fired on the range by containing or redirecting them to the backstop. In addition, buildings shall contain all sound.

B. Exterior walls shall be made of masonry or concrete, or combination thereof.

C. Buildings shall be a minimum 400 feet from existing and/or planned residential dwellings, schools (K-12), and/or day cares. Caretakers Units and Mixed-Use Districts are excepted.

D. Shooting activities are limited to occur between the hours of 7 a.m. and 10 p.m.

E. Ranges shall, at a minimum, meet the requirements established by the National Rifle Association, or the standards above. In the case where standards may conflict, the more restrictive standard(s) shall govern.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2757. SINGLE ROOM OCCUPANCY HOTELS AND BOARDING HOMES.

Single room occupancy (SRO) hotels and/or Boarding Homes, which house between five and 15 guests, which shall collectively be referred to as SROs, shall be located, developed, and operated in compliance with the standards below. SROs do not include Group Homes or Emergency Shelters.

A. **Facility.** There shall be no more than 15 guests.

B. **Maximum Occupancy.** Each SRO living unit shall be designed to accommodate a maximum of two adults.

C. **Minimum Size.** An SRO living unit must have at least 150 square feet of floor area, excluding closet and restroom. No individual unit may exceed 400 square feet.

D. **Minimum Width.** An SRO of one room shall not be less than 12 feet in width.

E. **Entrances.** All SRO units must be independently accessible from a single main entry, excluding emergency and other service support exits.

F. **Cooking Facilities.** Cooking facilities shall be provided either in individual units or in a community kitchen. Where cooking is in individual SRO units, SRO units shall have a sink with hot and cold water; a counter with dedicated electrical outlets and a microwave oven or properly engineered cook top unit pursuant to Building Code requirements; and a refrigerator.

G. **Restroom.** An SRO unit is not required to, but may contain partial or full restroom facilities. A partial restroom facility shall have at least a toilet and sink; a full facility shall have a toilet, sink, and bathtub, shower, or bathtub/shower combination. If a full bathroom facility is not provided, common bathroom facilities shall be provided in accordance with the California Building Code for congregate residences with at least one full bathroom per floor and one full bathroom per four units.

H. **Closet.** Each SRO unit shall have a separate enclosed all-weather closet. The closet shall be at least 120 cubic feet with a minimum four-foot horizontal dimension along one plane.

I. **Common Area.** Four square feet per living unit shall be provided, excluding janitorial storage, laundry facilities, and common hallways. At least 200 square feet in area of interior common space provided as a ground floor entry area that provides a central focus for tenant social interaction and meetings.

J. **Exterior Common Area.** There shall be a minimum of 50 square feet in area of exterior common space per unit, with a minimum horizontal dimension of six feet. This open space may be located in a required front or street side but shall be no closer than nine feet to the lot line, or the rear yard.

K. **Tenancy.** Tenancy of SRO units shall be offered for a minimum of 30 days or longer.

L. **Facility Management.**

1. **Ten or More Guests.** The facility shall provide on-site management. The manager shall live on-site however the manager's unit shall not count as one of the 10 guests.

2. **Less Than 10 Guests.** There shall be an on-site manager's office. The office shall be staffed for a minimum of six hours per day between the hours of 7 a.m. and 8 p.m., six days a week. The manager's hours shall be posted in a conspicuous location.

M. **Management Plan.** A management plan shall be submitted with the permit application for all SRO projects. At minimum, the management plan must include the following:

1. **Security/Safety.** Proposed security and safety features such as lighting, security cameras, defensible space, central access, and user surveillance;

2. **Management Policies.** Management policies including desk service, visitation rights, occupancy restrictions, and use of cooking appliances;

3. **Rental Procedures.** All rental procedures, including monthly tenancy requirements;

4. **Maintenance.** Maintenance provisions, including sidewalk cleaning and litter control, recycling programs, general upkeep, and the use of durable materials.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2758. TATTOO OR BODY MODIFICATION PARLORS.

It is the purpose and intent of these standards to regulate the operation of facilities that perform tattooing and body modification to provide for the health, safety, and welfare of the public and ensure compliance with California Health and Safety Code Section 119300 et seq.

A. **Registration Required.** Any person who is engaged in the business of tattooing or body modification shall provide evidence of registration with the Fresno County Department of Health.

B. **No Persons Under 18.** A sign shall be posted on the door or in view of the entrance stating that no person under the age of 18 is allowed on site, unless accompanied by their parent or documented legal guardian. The operator of the establishment shall require all customers to show proof of age.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2759. TELECOMMUNICATIONS AND WIRELESS FACILITIES.

A. **Amateur (Ham) Radios.** In R and MX Districts, one amateur radio antenna structure and one whip antenna shall be permitted subject to the following restrictions:

1. Such equipment shall be operated by a federally licensed amateur radio station operator who resides on the same property;
2. No part of the antenna exceeds 65 feet in height or 30 feet above the height of the roof when fully extended;
3. Antenna capable of a maximum extended height exceeding 40 feet, with the exception of whip antennas, are equipped with a motorized or hand cranked device to allow the antenna to be easily lowered when it is not in operation;
4. When an amateur radio facility is not in operation, no part of any antenna, except for whip antennas, shall extend to a height that exceeds the maximum height permitted in the district; and
5. No part of the antenna shall be located in the area between the front of a building and the front property line, in a required side yard or required rear yard, or in any parking or loading area.

B. All other Telecommunications and Wireless Facilities shall comply with the City's policy pertaining to said uses. Said policy shall establish standards and procedures to regulate the development, siting, installation, and operation of wireless telecommunications antennas and related facilities consistent with the applicable requirements of federal law. The regulations are intended to provide for the appropriate development of wireless telecommunication facilities within the city to meet the needs of residents, business-owners, and visitors while protecting public health and safety and preventing visual blight and degradation of the community's aesthetic character.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 28, eff. 7-30-17).

SEC. 15-2760. TEMPORARY USES.

This section establishes standards for certain uses that are intended to be of a limited duration of time and that will not permanently alter the character or physical facilities of the property where they occur.

A. **Temporary Uses Not Requiring a Temporary Use Permit.** The following types of temporary uses may be conducted without a Temporary Use Permit. Other permits, such as building permits, may be required.

1. **Yard/Garage Sales.** Garage sales of personal property conducted by a resident of the premises may be conducted in accordance with the following standards.
    a. **Number.** No more than four garage sales shall be conducted on a premise in any calendar year.
    b. **Nonprofit Organizations.** A nonprofit organization may conduct a yard sale at the residence of one or more of its members pursuant to all of the

requirements of this section. One such sale may be held per year without such sale being deemed one chargeable to the premises in question for the purpose of applying the four sales per year limitation set forth in Subparagraph 1 above.

c. **Time Limitations.**

i. No single sale event shall be conducted for longer than two consecutive days.

ii. Garage sales shall not be held for more than two consecutive weekends. Each weekend that sales are conducted constitutes a single sale event.

iii. Garage sales may only be conducted between the hours of 7 a.m. and 7 p.m.

d. **Display Area.** Property offered for sale at a garage sale may be displayed only on the property of the residence.

e. **Signs.** Signs may be displayed only during the hours the garage sale is actively being conducted and shall be removed at the completion of the sale. No signs shall be placed on utility poles or cabinets or in the public right-of-way.

f. **Permitted Products.** The conduct of general retail sales or commercial activities in residential zones, except as is otherwise expressly authorized under this Ordinance, shall be prohibited.

g. **Block Sales.** Block Sales that include a closure of a street shall obtain a street closure permit from the Public Works Department.

2. **Nonprofit Fundraising.** Fundraising sales are permitted on a site by a nonprofit organization, with the owner's permission. Nonprofit fundraising shall not exceed 30 calendar days per year on any single site. Sites shall be cleared of all merchandise and shall be cleaned daily.

3. **Nonprofit Fundraising Events.** Outdoor events for fundraising purposes may be permitted on a site, however events shall be for non-commercial purposes and shall not directly benefit the establishment where the event is held. No site shall hold more than three events per year, while events shall not last more than three consecutive days.

4. **Temporary Carwashes for Fundraising.** Temporary vehicle carwashes may be conducted in accordance with the following standards.

a. The site shall be developed with Commercial, Industrial, and/or Public Uses (i.e., Civic, Institutional).

b. No more than two carwashes shall be conducted on a site in any given month.

c. No event shall be conducted for longer than two consecutive days.

d. Carwashes may be conducted between the hours of 7 a.m. and 7 p.m.

e. The site shall be paved with an impervious surface.

f. Signs may be displayed only during the carwash and shall be removed at the end of the carwash. Signs shall not be placed on utility poles/ structures or in the public right-of-way.

g. Vehicles, either being washed or in queue to be washed, shall not block required drive aisles, drive approaches, and/or public rights-of-way.

h. **Appearance.** When a Temporary Carwash is not in operation, all evidence of its use must be removed from the site including all tables, tents, temporary membranes, canopies, barricades, products, signs, litter, etc. The parking lot must be left in a clean condition.

i. **Refuse/Litter.** The operator shall provide waste removal and shall be responsible for collecting trash and recycling after each event, including in the parking lot.

5. **Moving Trailers/Portable Storage.** Refer to Article 24, Parking and Loading

6. **Temporary Construction Office Trailers.** On-site temporary construction offices are permitted during the period of construction.

B. **Temporary Uses Requiring a Temporary Use Permit.** Other temporary uses may be permitted pursuant to Article 54, Temporary Use Permits, subject to the following standards. Additional or more stringent requirements may be established through the Temporary Use Permit process in order to prevent the use from becoming a nuisance with regard to the surrounding neighborhood or the city as a whole.

1. **Permanent Outdoor Display and Sales.** Refer to Section 15-2745, Outdoor Retail Sales.

2. **Seasonal Sales.** The annual sales of holiday related items such as Christmas Trees, pumpkin lots/patches and similar items may be permitted in accordance with the following standards:

a. **Time Period.** Seasonal sales, including Christmas Tree and pumpkin lots, associated with holidays are allowed up to a month preceding and one week following the holiday.

b. **Goods, Signs, and Temporary Structures.** All items for sale, as well as signs and temporary structures, shall be removed within five days after the end of sales, and the appearance of the site shall be returned to its original state.

c. **Parking.** The Director may require a shake-off area or alternative design to ensure that dirt is not deposited onto public streets.

3. **Temporary Outdoor Display and Sales.** Temporary Outdoor Sales, including, but not limited to, grand opening events, and other special sales events, shall obtain a Temporary Use Permit and shall be subject to the following:

a. **Relationship to Principle Use.** The outdoor display and sales area shall be directly related to a business occupying a primary structure on the same site.

b. **Display Locations.**

i. If located in the public right-of-way, an encroachment from the Public Works Department is required.

ii. Location of the displayed merchandise may not disrupt the normal circulation of the site, nor encroach upon driveways, pedestrian walkways, or required landscaped areas; or obstruct sight distances; or otherwise create hazards for vehicle or pedestrian traffic.

c. **Building Setback of 15 Feet or Less.** Merchandise shall be no closer than 15 feet from a public street unless the building is located closer to the street. If so, merchandise may be located closer than 15 feet.

d. **Building Setback Greater Than 15 Feet.** Outdoor sales shall be located entirely on private property outside any required setback (or landscaped planter in zoning districts that do not have required setbacks), fire lane, or fire access way. A minimum setback of 15 feet from any public right-of-way is required.

e. **Hours.** Outdoor events may only be held during the normal business hours of the establishment.

f. **Number of Events.** No more than six events at one site shall be allowed within any 12-month period. Events shall not last more than five days per event and there shall be a minimum of 14 days between events.

g. **Existing Parking.** The available parking shall not be reduced to less than 90 percent of the minimum number of spaces required by Article 24, Parking and Loading.

h. **Tents/Structures.** Temporary canopies and shade structures may be permitted. Temporary canopies may be required to obtain a Building Permit. A building permit is required for any temporary tent, shade structure canopy larger than 400 square feet.

i. **Appearance.** When Temporary Sales are not in operation, all evidence shall be removed from the site including all tables, tents, temporary membranes, canopies, barricades, products, signs, litter, etc. The parking lot must be left in a clean condition, free of waste. Permanent buildings, structures, and signs are excepted.

j. **Refuse/Litter.** The operator shall provide waste removal and shall be responsible for collecting trash and recycling after each event, including in the parking lot.

k. **Signs.** Additional signs beyond those normally allowed for the subject use shall not be provided as a result of the outdoor display and sales area.

l. **Transactions/Point of Sale.** All sales shall occur as part of the normal business activity of the establishment, via a register, or hand-held device. Patrons shall have the option of paying for purchases in the establishment as part of normal business activity.

m. **Other Conditions.** The Director may impose other conditions that would ensure the operation of the proposed temporary outdoor sales in an orderly and efficient manner.

4. **Special Events and Sales.** Other short term special events may be permitted in accordance with the standards below.

   a. **Location.** Events are limited to non-residential districts.

   b. **Number of Events.** No more than six events at one site shall be allowed within any 12-month period. Events shall not last more than five days per event and there shall be a minimum of 14 days between events.

   c. **Products.** The outdoor display and sales area shall be directly related to a business occupying a primary structure on the same site.

   d. **Signs.** Refer to Article 26, Signs.

   e. **Existing Parking.** The available parking shall not be reduced to less than 90 percent of the minimum number of spaces required by Article 24, Parking and Loading.

5. **Carnivals, Fairs, and Festival Events.** Carnivals, fairs, and festival events are subject to the following standards:

   a. **Location.** Carnivals, fairs, and festival events are limited to areas within Commercial or Employment districts, or on property owned by a public school.

   b. **Time Limit.** When abutting or adjacent to a Residential District or a street that serves a Residential District the hours of operation shall be limited to 7 a.m. to 10 p.m.

   c. **Lighting.** Lighting shall be hooded and directed away from residential uses.

6. **Temporary Parking Lots.**

   a. **Unpaved Temporary Parking Lots.** Temporary Parking on unpaved surfaces may be permitted for up to 14 days for special events in accordance with the standards below. Unpaved temporary parking lots may not be used to fulfill required off-street parking standards per Article 24, Parking and Loading, rather Temporary Parking Lots may be used to periodically accommodate larger than normal crowds at special events.

      i. **Parking Plan.** An applicant shall submit a parking plan to the City for review and approval.

      ii. **Location.** Temporary Parking shall be limited to nonresidential districts, unless the site is developed with nonresidential uses.

      iii. **Number of Events.** Temporary Parking Lots may not be used more than 14 days within any 12-month period.

iv. **Access.** Access shall be from an approved drive approach. An on-site shake-off area is required to ensure that dirt and/or mud are not deposited onto the public street.

v. **Attendants.** An attendant shall be present during the duration of the event and until the last vehicle is removed from the site to guide drivers.

vi. **San Joaquin Valley Air Pollution.** The applicant shall contact the San Joaquin Valley Air Pollution District (District Regulation 8071) for its permitting procedures.

vii. **Dust Mitigation.** Dust mitigation may be required to ensure that the parking lot does not create a nuisance.

viii. **Trash/Debris.** All trash, debris, etc., shall be collected daily and the appearance of the site shall be returned to its original state.

ix. **Temporary Lighting.** Refer to Section 15-2508, Lighting and Glare.

b. **Paved Temporary Parking Lots.** Paved Temporary Parking Lots may be permitted for up to 36 months for non-permanent and unusual needs, such the accommodation of parking displaced by construction activity.

i. **Parking Plan.** An applicant shall submit a parking plan to the City for review and approval.

ii. **Location.** Paved Temporary Parking Lots shall not be permitted in RS Districts.

iii. **Findings.** The Review Authority shall not approve the Paved Temporary Parking Lot unless the following findings can be made:

(a) No other feasible option to accommodate the parking need exists: and

(b) The location of the temporary parking lot will not disrupt an important pedestrian environment, including but not limited to Downtown streets with an Activity Classification of A and sites within 500 feet of a Bus Rapid Transit station.

iv. **Time Limits and Extensions.** The Temporary Use Permit for a Paved Temporary Parking Lot shall be valid for up to 12 months at the discretion of the Review Authority. Extensions may be granted at the discretion of the Review Authority If granted, each extension shall be valid for a maximum period of 12 months. The combined period of the initial permit and all extensions shall not exceed 36 months.

v. The Owner of the temporary parking area shall execute an agreement in a form approved by the City Attorney holding the city harmless from all liabilities resulting from the allowance and utilization of reduced standards.

vi. **Development Standards.**

(a) The surfacing applied to the Paved Temporary Parking Lot shall consist of a minimum of two inches of asphalt concrete or three inches of road-mixed asphalt surfacing over native soil compacted in accordance with Standard Specifications of the City of Fresno. An alternative soil stabilizing agent may be applied and maintained, in lieu of asphalt concrete or road-mixed asphalt surfacing if approved in writing by the Public Works Director. If solid waste pick-up service is to be provided, the portion of the parking area utilized by the service vehicles shall be constructed with a minimum of three inches of asphalt concrete over six inches of aggregate base over compacted native soil.

(b) The area shall be paved to the back of sidewalk when sidewalk exists or is constructed. When no sidewalk exists, the area shall be paved only to the property line. Barriers shall be placed to prevent vehicles from encroaching into public right-of-way and to protect adjacent property.

(c) Pavement marking may be required at the discretion of the Review Authority if the area is of such size or shape that the pattern of parking is not obvious. The required site plan shall indicate the imaginary layout of parking stalls in all cases where actual striping is not proposed.

(d) In DT Districts, standards for parking access locations shall apply. In other districts, use of existing driveways will be acceptable, but the Review Authority may review and approve the design and location of driveway access to the streets and alleys and require that driveways be added or closed. Where driveway approaches are to be constructed, they shall meet Public Works standards.

(e) The site shall be graded to drain onto an adjacent paved street or paved alley.

(f) The Paved Temporary Parking Lot shall be Public Works standards for drive aisles dimensions, stall size, turning radii, lighting, and related matters shall apply.

(g) New street improvements such as curb, gutter, sidewalk and permanent street pavement shall not be required except when the Review Authority determines they are necessary for proper functioning of the lot. If required, such improvements shall meet Public Works standards.

(h) Street lights, on-site lighting, on-site trees, landscaping shall be permitted but not required.

(i) Development Code standards for buffering, setbacks, and related matters shall not apply.

vii. **Use.** The Paved Temporary Parking Lot must only be used for the parking of operable motor vehicles, and overnight parking or camping shall not be permitted. No other temporary or permanent use of the property will be allowed during the life of the temporary use permit for parking.

viii. Upon expiration of the permit and any applicable extensions, the paved Temporary Parking Lot shall cease operations and shall be demolished or upgraded to meet all applicable standards within 90 days.

ix. The Owner of the Paved Temporary Parking Lot shall execute an agreement in a form approved by the City Attorney holding the city harmless from all liabilities resulting from the allowance and utilization of reduced standards.

7. **Other Temporary Uses.** Other special events, outdoor sales, and displays that exceed three consecutive days but not more than 30 days in any 12-month period, may be allowed with the approval of a Zone Clearance so long as the use is related to the primary use on the site and it does not impact neighboring uses or otherwise create significant impacts.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 18, eff. 7-30-17).

SEC. 15-2761. SMOKE SHOPS—PERMIT AND OPERATIONAL REQUIREMENTS.

A. **Purpose.** The purpose of this section is as follows:

1. To establish regulations for Smoke Shops, as defined in Section 15-6802 of this Code.

2. To amortize existing Smoke Shops and allow up to seven Smoke Shops per City Council District, unless otherwise provided pursuant to Subsection 15-2761(D)(4) hereinunder.

B. **Applicability; Exemptions.**

1. All Smoke Shops will be required to comply with this section.

a. **New Smoke Shops.** Any New Smoke Shop established after the effective date of this section shall obtain a Conditional Use Permit as provided herein and shall comply with all requirements of this section.

b. **Existing Smoke Shops.** All Existing Smoke Shops must comply with all the requirements of this section, including the amortization provisions.

c. **Exemptions.** This section does not apply to temporary uses issued a Temporary Use Permit for special events such as fairs or cultural festivals and established in compliance with all City laws and ordinances.

C. **Legal Nonconforming Smoke Shops; Amortization.**

1. Existing Smoke Shops, lawfully established pursuant to the Municipal Code prior to the effective date of this ordinance, must come into compliance with all operational requirements within 30 days of the Effective Date of this Ordinance. No Existing Smoke Shop may make a substantial change of mode or character of their operation. A substantial change of mode or character shall include, but not be limited to, structural changes which expand the sales area of Smoke and Vapor Products and related items by more than a cumulative 5% commencing from the effective date of the ordinance, or a period of closure for more than 30 days; transfers of ownership shall not be considered a substantial change of mode or character of operation.

2. Existing Smoke Shops may sell or transfer their existing Business License, but the new owner shall also be subject to all provisions of this Code applicable to Existing Smoke Shops.

3. Existing Smoke Shops may continue operation for 18 months from the effective date of this Ordinance (the "Amortization Period"), provided they comply with Subsection C.1. The Amortization Period shall be outlined by the City Manager, or designee, pursuant to Section I.1., below. Existing Smoke Shops which are not awarded a Conditional Use Permit, as required by Section D., below, may operate until the end of the Amortization Period. Once the Amortization Period has expired, the Existing Smoke Shop must immediately cease all operations in perpetuity.

    a. Existing Smoke Shops that can demonstrate that 18 months is an insufficient amount of time to amortize their investment, must submit a request for reconsideration to the Director no later than 90 days prior to the expiration of the Amortization Period. The request for reconsideration shall be subject to the appeal provisions of Section 15-5017, Appeals. Each request for a longer term for amortization shall be considered on the basis of the submitted evidence and any extension provided shall be specific to the individual request. Factors to be considered by the Review Authority in determining if the time provided hereinabove is insufficient for the Existing Smoke Shop which requests reconsideration shall include:

        i. The precise nature of the nonconforming use.

        ii. The portion of the business that will be affected, on a pro rata basis.

        iii. The total amount of the investment made for the business, including on the property and any improvements thereon, as well as the total investment for the pro rata portion of the business that sells Smoke and Vapor Products, including the present or depreciated value of any property owned.

        iv. The expiration date and termination rights under leases related to the operation of an Existing Smoke Shop. Any new leases or lease extensions, amendments, or renewals entered into in close proximity to the passage of this Ordinance may be a basis for denial of the request for extension.

v. The ability of the business to recover its investment by changing the use of the property, and the amount of time and additional investment needed to do so.

vi. Any violations of Federal, State, or local law.

vii. Any other information the Smoke Shop Operator deems relevant for the City to consider.

viii. Any other information requested by the City to clarify the request for extension of the Amortization period.

D. **Establishment of New Smoke Shops.** Up to seven Smoke Shops may operate in each City Council District. New Smoke Shops shall be required to obtain a Conditional Use Permit pursuant to the requirements of Chapter 15, Article 53, Conditional Use Permits. New Smoke Shops and Existing Smoke Shops may apply for available Conditional Use Permits in any given District immediately following the effective date of this ordinance. Any Smoke Shop which receives a Conditional Use Permit shall be subject to all provisions of Chapter 15, Article 53, Conditional Use Permits, including the expiration provisions therein.

1. The City shall provide public notice of an available Conditional Use Permit any time one or more Smoke Shop vacancies become available in a District. Public Notice shall be provided in a newspaper of general circulation for a period of 10 consecutive days. Applicants shall have 60 days from the date of the notice to apply for any available Conditional Use Permit. City shall review timely-filed applications within 60 days of the close of the application period to ensure they meet all requirements set forth in this Ordinance. Should no applications be received within 60 days of publishing the notice, the City shall re-notice the availability following the above process. Councilmembers shall be provided with notice of any applications received for their respective District.

2. The City shall hold a lottery within 120 days of the close of the application period whenever the number of qualified applications exceeds the number of Conditional Use Permits available within a given Council District. The lottery shall be conducted in a manner determined by the City Manager, or designee, under the authority granted by Section I.1., below. A lottery selection does not confer any right to operate a Smoke Shop, only the right to file an application for a Conditional Use Permit. All other requirements of this Ordinance must be met for the issuance of a Conditional Use Permit.

3. At any time that one or more Smoke Shop vacancies become available in a District, the City shall grant a Conditional Use Permit for a New Smoke Shop following the above process.

4. City Council may increase the number of new Smoke Shops permitted in any given District upon passage of a Council resolution brought forward by the Councilmember

of the District for which the limit increase is being requested. The Councilmember who brings forward the Resolution to Increase may do so at any time after the passage of this ordinance.

5. City Council may decrease the number of Smoke Shops permitted in any given District upon passage of a Council resolution brought forward by the Councilmember of the District for which the limit decrease is being requested. In no event shall the number of Smoke Shops permitted in any given District be reduced to below seven.

E. **Business License Required.** All Smoke Shops must obtain a Business License in accordance with Chapter 7 of the Fresno Municipal Code. Every Smoke Shop location must have an individual Business License. It shall not be permitted for multiple Smoke Shop locations to operate under the same Business License or Conditional Use Permit.

F. **Location restrictions.** The following location restrictions apply to all Smoke Shops, except Existing Smoke Shops not seeking a Conditional Use Permit to continue operations after expiration of the Amortization Period.

1. **Near Sensitive Uses.** The Smoke Shop shall not be located within 1,000 feet of the following:
   a. A public park, playground, recreational area including a trail that is immediately adjacent to a public park, or youth facility, including a boys and girls club, nursery school, preschool, or day care facility;
   b. A public or private State-licensed or accredited school; or
   c. An alcohol or other drug abuse recovery or treatment facility.
2. **Near Other Smoke Shops.** The Smoke Shop shall not be located within 1,000 feet of another Smoke Shop. Smoke Shop Conditional Use Permits shall be granted first come first served, on the basis of the date the application is deemed complete and the provisions of Chapter 15, Article 53. Conditional Use Permits are met.
3. **Concentration.** Up to seven Smoke Shops may be permitted within each City Council District following the effective date of this Ordinance, except for Existing Smoke Shops during the Amortization Period.

G. **Operational Requirements.**

1. **Landscaping.**
   a. **New Buildings.** Landscaping shall be provided per the underlying zone district's development standards, and applicable Conditions of Approval.
   b. **Existing Buildings.** Perimeter landscaping and Parking Lot Shading standards shall be provided per the underlying zone district. The Review Authority, at their discretion, may make exceptions to the prescribed standards, however in no case shall the reduction result in a net reduction of 35% or greater in the amount of landscaping provided. Landscaping may also be aggregated to minimize the impact on existing parking areas.

2. **Lighting.** The exterior of the premises, including adjacent public sidewalks and all parking lots under the control of the Smoke Shop, shall be illuminated in accordance with the lighting requirements of the underlying zone district, and applicable Conditions of Approval.

3. **Litter and Graffiti.**

   a. Trash and recycling receptacles shall be provided near public entrances to and exits from the building.

   b. The Smoke Shop Operator shall provide for daily removal of trash, litter, and debris from the premises and on all sidewalks that abut the premises, including the Smoke Shop's parking areas.

   c. The Smoke Shop Operator shall remove graffiti in accordance with the requirements of Section 9-2514 of the Fresno Municipal Code, including any amendments or successor ordinances thereto.

4. **Vending Machines.** Internal and external vending machines are prohibited.

   a. No tobacco products or paraphernalia may be sold via vending machine or automatic sales dispenser on the premises of the Smoke Shop.

   b. No food or beverage products may be sold via vending machine or automatic sales dispenser on the premises of the Smoke Shop.

5. **Video Surveillance.**

   a. Smoke Shops must equip a fully functional color digital video camera system.

   b. The system must continuously record, store, and be capable of playing back images and be fully functional at all times, including during any hours the business is closed. The system must be maintained in a secured location inside of the business.

   c. The system shall have the correct date and time stamped onto the image at all times.

   d. The camera storage capacity should be for at least two weeks (14 calendar days). Such cameras must be capable of producing a retrievable and identifiable image that can be made a permanent record and that can be enlarged through projection or other means.

   e. If utilizing a digital video recorder, it must be capable of storing at least 14 days of real-time activities.

   f. The system shall be capable of producing a CD or digital playback feature. The Fresno Police Department may request such digital media in relation to a criminal investigation; in such case, the digital media shall be provided to an authorized representative of the Fresno Police Department, upon request, within 24 hours of the request.

g. The interior of the business must have at least one camera placed to focus on each cash register transaction to include the clerk as well as the customer waiting area.

h. There shall be a minimum of three cameras placed so as to record activities in the primary customer areas of the business; such cameras must, at minimum, provide surveillance for all entry and exit areas, customer parking, and the cash register. These cameras should be of sufficient quality to be able to identify persons and/or vehicles utilizing the business parking lot.

i. All interior cameras shall record in color.

j. All exterior cameras shall record in color and have automatic low light switching capabilities to black and white. Exterior cameras should be in weatherproof enclosures and located in a manner that will prevent or reduce the possibility of vandalism.

k. An inoperable system may be good cause for revocation of the Conditional Use Permit.

l. In the event of a security breach, vandalism, theft, or other offense, the Smoke Shop Operator must ensure preservation of the relevant security footage beyond the required two weeks in coordination with the Fresno Police Department.

6. **Signage.**

a. The provisions specified under Article 26, Signs, and this subsection shall apply. Where conflict may occur between the provisions of Article 26 and this subsection, the more restrictive provisions shall govern.

b. In addition to the requirements found in the California Cigarette and Tobacco Products Licensing Act of 2003 and all updated and related State and Federal Laws, including any amendments and successor statutes thereto including any State or Federal regulations, the following copy is required to be prominently posted in a readily visible manner on an interior wall or fixture and not on windows:

i. "California State Law Prohibits the Sale of Tobacco Products to Persons Under 21 Years of Age."

ii. "No Persons Under the Age of 21 May Enter These Premises."

iii. "No Loitering is Allowed On or In Front of These Premises."

iv. "No Smoking or Vaping Allowed on These Premises."

7. **Glazing.** At least 50% of any street facing facade must be glazed with a clear, non-tinted material.

a. No more than 5% of the square footage of each window that is visible to the public from a public thoroughfare, sidewalk, or parking lot of tobacco and vapor sales retail outlet shall bear advertising, signs, or other obstructions of any sort.

b. Doors must be free from signs regardless of door type or material.

c. The area covered by signs or advertising shall be measured using the border of such sign. and shall include all areas within a sign or advertisement that may not include writing, such as the clear area within neon signs.

d. Signage, advertising, or other obstructions inside or outside the Smoke Shop that are not physically attached to the windows or doors, but are visible from a public thoroughfare, sidewalk, or parking lot in the same manner as if they were physically attached is included in the 5% limitation.

e. Any signage required by law shall not count towards the 5% limitation, but shall nonetheless follow rules related to visual obstruction.

f. Advertising and signage on windows shall be placed and maintained in a manner that ensures that law enforcement personnel have a clear and unobstructed view of the interior of the business, including the area in which the cash registers are maintained, from exterior public sidewalks, parking lots, or entrance to the business.

g. Any Smoke Shop located within 1,000 feet of a sensitive use, as listed in Subsection F.1, shall not advertise tobacco or vapor sales in a manner visible from the outside of the Smoke Shop, such as from a public thoroughfare, sidewalk, or parking lot.

8. **Loitering and Other Nuisance Activities.**

a. The operation of a Smoke Shop shall not result in repeated nuisance activities on the property, which may include, but are not limited to, disturbances of the peace, illegal drug activity, public intoxication, drinking in public, Smoke and Vapor Product sales to minors, harassment of passersby, gambling, prostitution, sale of stolen goods, public urination, theft, assaults, batteries, acts of vandalism, loitering, excessive littering, graffiti, illegal parking, excessive loud noises (especially in the late night or early morning hours), traffic violations, curfew violations, lewd conduct, or other violations of City, State, or federal laws, especially when contributing to a proportionally high rate of police reports and arrests to the area. Any violations of this section shall be considered an egregious violation of this ordinance and a public nuisance that is imminently dangerous to life, health, safety or adjacent property such that it requires immediate correction or elimination. Such a violation shall subject the Smoke Shop Operator to immediate suspension, pursuant to Section 10-609 of the Fresno Municipal Code, of their right to operate a Smoke Shop within the limits of the City. Suspension of a Smoke Shop Operator's right to operate a Smoke Shop shall continue for 30 calendar days or until the Smoke Shop Operator remediates the egregious violation, and receives written permission from the City Manager, or designee, to resume operation of the Smoke Shop after inspection of the premises to confirm remediation of the egregious violation. Should an egregious violation not be remedied, or a second violation of this

section occurs after resumption of operations, the Director may begin proceedings to revoke the Smoke Shop's Conditional Use Permit pursuant to Fresno Municipal Code Section 15-5016. This section shall not apply to Smoke Shop Operators where offenses are the result of third-party conduct beyond the Smoke Shop Operators' control.

b. The Smoke Shop Operator shall post the property with the appropriate Fresno Municipal Code signs advising that consumption of alcoholic beverages, gambling, trespassing, or loitering on private property is a violation of municipal ordinances. The Smoke Shop Operator must send a letter to the Fresno Police Department, signed and dated by the applicant, every 12 months that authorizes Fresno Police Department peace officers to enter the Smoke Shop premises and remove trespassers when the business is closed to the public, in accordance with Section 602(o) of the California Penal Code, including any amendments or successor statutes thereto. The owners and employees are responsible for abating nuisance activities when they occur during business hours.

9. **Training.**

a. **Initial Training.** The Smoke Shop Operator and all employees of the Smoke Shop who are involved in the sale of Smoke and Vapor Products must complete approved course(s) in training of Smoke and Vapor Product sales and handling within 60 days after approval of the Conditional Use Permit becomes final, or for employees hired after the approval of the Conditional Use Permit, within 60 days from the date of hire. Existing Smoke Shop Operators and employees shall have 60 days from the effective date of this ordinance to come into compliance with the training requirement, and thereafter new owners and employees shall obtain the necessary training within 60 days of the date of hire or from the date of ownership. To satisfy this requirement, a certified program must meet the standards of the California Department of Public Health on the Stop Tobacco Access to Kids Enforcement (STAKE) Act or other certifying or licensing body designated by the State of California. If the Smoke Shop Operator is a legal entity, the manager or executive responsible for the Smoke Shop shall obtain the requisite training.

b. **Annual Training.** The Smoke Shop Operator and all employees shall also be required to complete annual trainings which comply with State standards, including changes to tobacco sales laws and regulations. Smoke Shops shall be required to keep up-to-date records which prove that all individuals listed above have completed the requisite annual trainings and shall furnish these records to the City during inspections and upon a reasonable request from the City.

10. **Compliance with Laws.** The Smoke Shop must remain in compliance with all local, State, and federal laws, regulations, and orders, as well as all conditions of approval imposed on the use. This includes compliance with annual City business license fees.

In the event of non-compliance, the Smoke Shop Operator shall be given written notice by the City and an opportunity to cure. Article 63 of Chapter 15, regarding Enforcement of the Citywide Development Code shall also apply in relation to compliance issues, in addition to the annual inspection requirements listed within Section G.14.e, below.

11. **Posting of Conditions.** A copy of all conditions of approval and training requirements shall either be posted in a conspicuous and unobstructed place near the entrance, cashier counter, or customer service area of the Smoke Shop or posted in an employee area and provided upon request (e.g., via flyer or brochure) to patrons and enforcement officials.

12. **Prohibited Products.** The sale or distribution of one or more of the following is prohibited.

    a. Cannabis or Cannabinoid products. Sale of this product shall immediately subject the Smoke Shop to Conditional Use Permit revocation proceedings pursuant to Fresno Municipal Code Section 15-5016.

    b. Drug paraphernalia not directly related to legal Smoke and Vapor Products.

    c. Nitrous oxide.

    d. Flavored tobacco. Sale of this product shall immediately subject the Smoke Shop to Conditional Use Permit revocation proceedings pursuant to Fresno Municipal Code Section 15-5016. Should flavored tobacco products be found during an inspection of the Smoke Shop, the Fresno Police Department or the City's Code Enforcement may seize and destroy said products.

    e. A maximum of 25% of the floor area of the premises may display Smoking Paraphernalia for sale or viewing.

    f. Other products prohibited by law.

    g. Onsite or online gambling activities not related to the California Lottery.

13. **Hours of Operation.** All Smoke Shops must operate within the maximum hours of operation. A Smoke Shop may operate for fewer hours than provided herein but in no case shall the operations extend beyond the hours listed:

TABLE 15-2761-G: SMOKE SHOP HOURS		
	Opening	Closing
Daily	8 AM	10 PM

14. **Non-Operating Rule.** Whenever all of the rights granted by a Conditional Use Permit are discontinued, the following rules to reestablish the use shall apply:

    a. **One Year or Less.** The same Smoke Shop Operator or a different Smoke Shop Operator may reestablish the use pursuant to the preexisting Conditional Use Permit and all conditions applicable thereto.

    b. **More Than One Year.** A new permit is required.

15. **Additional Requirements.**

a. Security Plan required. Smoke Shop Operators/Applicants shall submit a security plan consistent with Fresno Police Department policy on sale of age-restricted materials. Prior to the approval of the Conditional Use Permit, the Applicant shall prepare and submit for review by the Fresno Police Department District Commander, a security plan for approval. Approval of the security plan by the District commander or their designee shall not be unreasonably denied. The contents of the Security Plan shall be incorporated as conditions of approval to the Conditional Use Permit. As a part of the annual inspection process, the Security Plan shall be resubmitted for approval by the District Commander.

b. The Director may require the Smoke Shop Operator/Applicant to submit additional information, of such type and in such form as the Director may specify, as the Director may deem relevant to the application, including, but not limited to, an operational statement, floor plans, architectural renderings, and technical studies, as appropriate.

c. The Director may refer the application to other City departments to determine whether the Smoke Shop's location will comply with building, health, zoning, and fire ordinances or other applicable ordinances or laws. City departments may conduct an inspection of the premises to determine compliance with the ordinances and other laws they administer, and may subsequently prepare reports summarizing their inspections and recommend whether to approve or deny the application based on their inspections.

d. Additional and/or security measures such as reduced hours of operation, security guards, door monitors, and burglar alarm systems may be required if harm, nuisance, or related problems are demonstrated to occur as a result of business practices or operations. This will be determined on a case-by-case basis upon review by the Police Department.

e. Smoke Shops shall be subject to routine unannounced inspections at least annually, to ensure compliance with this section and any additional conditions of the Conditional Use Permit. The Smoke Shop Operator shall reimburse the City for the cost of such inspection(s) pursuant to the City's Master Fee Schedule. If an annual inspection results in a finding that a Smoke Shop Operator is not in compliance with this section or the specific conditions of the Conditional Use Permit, that finding may be used as a basis for amending or revoking the Conditional Use Permit, pursuant to Article 50 of Chapter 15 of the Fresno Municipal Code.

i. If a Smoke Shop is determined to be out of compliance with its Conditions of Approval, the person or entity acting as the Smoke Shop Operator may be subject to administrative fines as set by City Council resolution. The fine structure shall consist of progressively higher fines for violations

occurring within 24 months of a prior violation, and upon the fourth violation being upheld within a three-year period of the first violation, the Conditional Use Permit for the business shall be subject to revocation. These fines shall be levied in accordance with the Master Fee Schedule.

ii. If an Existing Smoke Shop is purchased by a unassociated and unrelated new Smoke Shop Operator seeking to continue operation of the Smoke Shop, and the new Smoke Shop Operator is not subject to administrative fines as set forth above at any other Smoke Shop in the City, the City Manager, with concurrence of the City Attorney, may waive any administrative fines imposed upon the Existing Smoke Shop upon transfer to the new Smoke Shop Operator and upon proof that the new Smoke Shop Operator has cured all previous violations to the satisfaction of the City Manager.

H. **Violations of this Section.**

1. Violation of these standards at any time may result in the amendment or revocation of a Conditional Use Permit.

2. Fines may be imposed upon business owner and/or Conditional Use Permit holder, in accordance with Sections 1-305 and 1-308 of this Code. Fines pursuant to Section 1-305 shall be imposed in accordance with the Master Fee Schedule, except as follows:

TABLE 15-2761-H: FINES FOR VIOLATIONS		
	Sales to Minors	External Advertising
Misdemeanor	$2,500 per offense	$1,000 per offense

3. The City may seek recovery of its costs of enforcement and abatement pursuant to Article 5 (Cost and Penalty Recovery) of Chapter 1 (General Provisions) of this Code. Both the property owner and the Smoke Shop Operator shall be liable to the City for recovery costs as specified under Section 1-504.

4. Remedies shall not be exclusive of each other, and may also include any remedy available to the City at law or equity.

5. Any violation of this section is deemed a public nuisance and may be abated.

I. **Promulgation of Regulations, Standards and Other Legal Duties.**

1. In addition to any regulations adopted by the City Council, the City Manager or designee is authorized to establish any additional rules, regulations and standards governing the issuance, denial or renewal of Smoke Shop Conditional Use Permits and Business Licenses, the ongoing operation of Smoke Shops and the City's oversight, or concerning any other subject determined to be necessary to carry out the purposes of this ordinance.

2. Regulations shall be published on the City's website.

3. Regulations promulgated by the City Manager shall become effective upon date of publication.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-011, § 1, eff. 6-5-25).

Editor's note—Ord. 2025-011, § 1, adopted April 24, 2025, and effective June 5, 2025, amended the title of § 15-2761 to read as herein set out. The former § 15-2761 title pertained to tobacco and vapor sales.

SEC. 15-2762. TRANSITIONAL AND SUPPORTIVE HOUSING.

Transitional and supportive housing, as defined in the Government Code (Sections 50675.2 and 50675.14) constitute a residential use and are subject only to those restrictions that apply to other residential uses of the same type in the same district.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2763. UTILITY METERS/SECOND METERS.

In Single-Unit Residential Districts, one public utility meter per parcel may be permitted, with the exception of an additional meter for a Second Dwelling Unit, or to permit an electric vehicle charging station as may be permitted per the California Public Utilities Commission.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 68, eff. 7-27-25).

SEC. 15-2764. UNATTENDED DONATION BINS.

A. **Location.** Unattended Donation Bins (UDBs) are allowed in Commercial Districts only. Bins must be located in the following manner:

1. Outside of the public right-of-way.
2. In compliance with all setbacks and visibility triangle requirements (Section 15-2018).
3. Outside of required parking spaces.
4. To the side or rear of buildings, unless the operating organization is also the primary use on the site.
5. In a location that does not impede circulation.

B. **Business License.** Operators must obtain a Business License from the City of Fresno Business Tax Division.

C. **Property Owner's Permission.** A written letter from the property owner or their representative certifying their consent for the bin to be located on the property, must be filed with the Planning Division prior to the placement of the bin on the site.

D. **Required Display of Information.** All donation bins must display, in a clear and easy-to-read manner, the following information:

1. Contact information, including the name, address, email, telephone number, and website, for the person or organization responsible for maintaining the bin.
2. Business license number.

3. Contact information for the parent company, if applicable.

4. A statement indicating what materials are accepted and how the donated goods will be used, sold, dispersed, etc.

5. A statement indicating that donated items must fit in the bin and that dumping is prohibited.

6. A statement indicating how someone may report a problem associated with the bin.

E. **Maintenance.** Bins shall be kept in good repair and the surrounding site shall be kept free of litter and debris. Overflow of materials and graffiti must be removed within 48 hours. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2765. VEHICLE IMPOUND YARD (TOW YARD) AND TRANSIT STORAGE.

Tow Yards, Transit Storage, and Freight Storage may be permitted subject to the following standards:

A. **Existing Facilities.** Existing facilities established prior to January 24, 2006 may continue to operate subject to the following conditions:

1. Compliance with all Conditions of Project Approval per the pertinent entitlement.

2. If an entitlement was not required per zoning regulations, the applicant shall provide evidence, satisfactory to the Director, that the facility:

a. Was established prior to January 24, 2006 and that the use has been in continuous use;

b. The site has had a valid business license since January 24, 2006; and

c. The site does not have any outstanding items from Code Enforcement.

B. **New Facilities.**

1. **Minimum Lot Size.** 6,000 square feet.

2. **Location.** There shall be a minimum separation of 200 feet from property planned or zoned for:

a. Residential Uses;

b. Office Uses; or

c. A freeway, unless the freeway is depressed a minimum 10 feet from the natural grade of the subject site and there is a six-foot masonry screen wall.

3. **Landscaping and Screening.**

a. There shall be a minimum 10-foot landscape area along all streets, unless a greater setback is required in this Code or operative plan.

b. A Screening Wall, per Section 15-2008-C, of seven feet in height shall be provided along all property lines. Said wall shall be located at the rear of required landscaping along streets, including freeways. Screen Walls, when located on a local industrial street or between industrial uses, may be a material other than masonry, subject to review and approval by the Director. However, alternative Screen Walls, including gates, shall not be transparent.

c. Graffiti along perimeter Screen Walls shall be removed within 48 hours.

d. Additional screening and landscaping, as determined by the Director may be required where necessary to prevent visual impacts on adjacent properties.

4. **Lighting.** Refer to Section 15-2015, Outdoor Lighting and Illumination.

5. **Parking.** Refer to Article 24, Parking and Loading.

6. **Paving.** All storage areas shall be paved per Public Works Standards for Parking Lots.

7. **Operational Requirements.**

a. There shall be no loading/unloading of vehicles in the public right-of-way or within customer parking areas.

b. Vehicles and/or materials may only be stored within designated areas per the approved entitlement.

c. There shall be no dismantling of motor vehicles.

d. All auto repairs shall occur within an enclosed building.

e. Any property stored on-site, other than motor vehicles, is limited to personal property found inside the impounded vehicle.

8. **Retail Sales.**

a. Shall be limited to lien sales of vehicles and/or personal property not claimed by the owner. A statement shall be submitted by the applicant outlining how sales will be conducted.

b. Vehicles for sale shall not be displayed outside of the display area as designated by the approved permit

c. There shall be no test driving of vehicles into adjacent or nearby residential neighborhoods.

9. **Infrastructure Requirements.**

a. Off-site improvements may be required by the City.

b. The facility shall be served by a public sewer system. Private septic sewer systems are prohibited.

c. Adequate facilities and infrastructure shall be provided for fire protection as determined by the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2766. WALK-UP FACILITIES.

Walk-Up Facilities, such as food service windows and Automatic Teller Machines (ATMs), shall comply with the following regulations.

A. **Regulations Applying to All Walk-Up Facilities.**

1. **Location Requirements.**

a. Set back from an adjacent street curb by a minimum of eight feet;

b. Located not to eliminate or substantially reduce any landscaped areas; and

c. Located not to result in undue traffic congestion.

2. **Architectural Design.** Construction and modifications to the exterior of structures shall be completed in a manner consistent with the architectural design of the surrounding setting. If there is no uniform design, the facility shall incorporate common elements and materials found in the surrounding setting.

3. **Trash Disposal.** Trash and recycling receptacles shall be provided in proximity to the service.

4. **Weather Protection.** An awning, portico, or other form of weather protection must be provided for the transaction area and for a reasonable amount of space where customers may wait or queue.

B. **Automatic Teller Machines (ATMs).**

1. **Location.** In addition to the requirements set forth under Subparagraph A.1. above, ATMs must be located a minimum of 30 feet from any property line corner at a street intersection;

2. **Lighting.** Each ATM shall be provided with lighting in compliance with State law.

3. **Drive-Up ATMs.** ATMs that are located outside, but are designed to be accessed by a vehicle must comply with Section 15-2728, Drive-In and Drive-Through Facilities.

4. **Video Surveillance.** Each ATM that is not directly supervised by an on-site employee or manager shall equip a rear-view mirror and a camera that can record activity for surveillance purposes. The camera shall record in color and have automatic low light switching capabilities to black and white.

C. **Food Service Windows.** The operator must ensure cleanliness of the site and an unimpeded flow of traffic in the public right-of-way. Service of alcoholic beverages is prohibited.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2767. WATER WELLS.

Public Utility water wells, and related equipment, such as water treatment facilities shall be subject to the following standards:

A. **Major Streets.** Equipment may not be within 100 feet of Major Streets in Mixed-Use or Commercial Districts. Properties developed with retention and/or recharge basins and State highways are excepted.

B. **Screening.** Sites shall be enclosed by Screening Walls per Section 15-2008-C. Screen walls shall be located at the rear of landscaping areas along front yards, and on the property line alongside and rear yards, unless stricter requirements are required in this Code or operative plan.

C. **Separation.** Equipment shall be separated a minimum 10 feet from Residential Districts and shall be adequately screened with trees.

D. **Property Development Standards.** Development shall comply with the standards of the underlying District, unless stricter requirements are required in this Code or operative plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-2768. WRECKING YARDS AND AUTO DISMANTLING.

Wrecking Yards may be permitted subject to the following standards:

A. **Existing Facilities.** Existing facilities established prior to January 24, 2006 may continue to operate subject to the following conditions:

1. Compliance with all Conditions of Project Approval per the pertinent entitlement.

2. If an entitlement was not required per zoning regulations, the applicant shall provide evidence, satisfactory to the Director, that the facility:

a. Was established prior to January 24, 2006 and that the use has been in continuous use;

b. The site has had a valid business license since January 24, 2006; and

c. The site does not have any outstanding items from Code Enforcement.

B. **New Facilities.**

1. **Minimum Lot Size.** Five acres.

2. **Location.** There shall be a minimum setback of 300 feet from property planned or zoned for:

   a. Residential Uses;

   b. Office Uses;

   c. An integrated commercial shopping center;

   d. Passenger rail; or

   e. A freeway, unless the freeway is depressed a minimum 10 feet from the natural grade of the subject site and there is a six-foot masonry screen wall.

3. **Landscaping and Screening.**

   a. There shall be a minimum 10 foot landscape area along all streets, unless a greater setback is required in this Code or operative plan.

   b. A Screening Wall, per Section 15-2008-C of seven feet in height shall be provided along all property lines. The Screen Wall shall be located at the rear of required landscaping along streets, including freeways, if applicable.

   c. Graffiti along perimeter Screen Walls shall be removed within 48 hours.

   d. Additional screening and landscaping, as determined by the Director may be required where necessary to prevent visual impacts on adjacent properties.

4. **Lighting.** Refer to Section 15-2015, Outdoor Lighting and Illumination.

5. **Parking.** Refer to Article 24, Parking and Loading.

6. **Paving.** All storage and production areas shall be paved per:

   a. Public Works Standards for Parking Lots, or

   b. The surfacing shall consist of a minimum of two inches of asphalt concrete or three inches of road-mixed asphalt surfacing over native soil compacted in accordance with Public Works Standards. An alternative soil stabilizing agent may be applied and maintained, in lieu of asphalt concrete or road-mixed asphalt surfacing if approved in writing by the Public Works Director.

7. **Operational Requirements.**

   a. There shall be no loading/unloading of vehicles in the public right-of-way or within customer parking areas.

   b. Vehicles and/or materials may only be stored within designated areas.

c. Stacked vehicles, or material, such as tires, shall not exceed 10 feet in height.

d. Tires must be stored in a manner that does not facilitate the breeding of mosquitoes.

e. Machinery and equipment shall not exceed 25 feet in height. Any equipment greater than 10 feet in height shall be setback a minimum of 200 from all property lines.

f. Crushing operations shall not occur on Sundays or California Holidays.

g. No automobile repair or installation of parts shall occur on the site.

h. The main yard entrance gate shall remain closed when not in operation. The main gate shall not allow visibility into the site.

i. Operations shall comply with all applicable Environmental Protection Agency regulations.

8. **Infrastructure Requirements.**

a. Off-site improvements may be required by the City.

b. The facility shall be served by a public sewer system. Private septic sewer systems are prohibited.

c. Adequate facilities and infrastructure shall be provided for fire protection as determined by the City.

9. **Hazardous Materials Plan.** Prior to operating, the owner or operator shall submit a Hazardous Materials Plan to the Planning Department. The Plan shall explain the processing and storage procedures of potentially hazardous materials such as oil, antifreeze, gas, wiper fluid, and used tires.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 28 RESERVED

ARTICLE 29 RESERVED

ARTICLE 30 RESERVED

PART IV: LAND DIVISIONS

ARTICLE 31 GENERAL PROVISIONS

Sec. 15-3101. Introductory Provisions.
Sec. 15-3102. Applicability.
Sec. 15-3103. Interpretation.
Sec. 15-3104. Severability.
Sec. 15-3105. Administration And Common Procedures.
Sec. 15-3106. Review Authorities For Subdivision Decisions.

SEC. 15-3101. INTRODUCTORY PROVISIONS.

A. **Citation and Authority.** Chapter 15, Part IV of the Fresno Municipal Code shall be known and cited as the Subdivision Ordinance of the City. Authority for this Part is found in Title 7, Division 2 of the California Government Code, which is referred to as the Subdivision Map Act (Map Act; Sections 66410 et. seq. of the California Government Code).

B. **Purpose.** The purpose of this Subdivision Ordinance is to regulate the division of land within the city. These provisions implement and supplement the requirements of the Map Act concerning the design and improvement of subdivisions and regulating other divisions of land within the city including the form and content of all maps and the procedure to be followed in securing official approval. This Ordinance is intended to protect and preserve public health, safety, and general welfare and promote orderly growth and development. The provisions of this Subdivision Ordinance are more specifically intended to:

1. Ensure that the design and improvement of subdivisions is consistent with and promotes the goals and policies of the General Plan and applicable operative plans;
2. Provide for adequate access and circulation across all modes of transportation;
3. Ensure the availability of adequate public facilities;
4. Provide options for the future development of adjacent properties; and
5. Protect and enhance property values.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3102. APPLICABILITY.

A. **Applicability.** This Subdivision Ordinance shall apply to all, or parts of subdivisions or Parcel Modifications within the city.

B. **Subdivision Approval Required.** The regulations set forth in this Subdivision Ordinance apply to all parts of subdivisions within the city and to the preparation of subdivision maps and to other maps provided for by the Map Act. Each subdivision and each part thereof lying within the city shall be made and each map shall be prepared and presented for approval as provided for and required by this Subdivision Ordinance.

C. **Compliance with Other Regulations.**

1. Per the Map Act (Section 66473.5), a map may only be approved if the proposal complies with the General Plan and operative plan, if applicable.

2. The approval or conditional approval of a subdivision map, Lot Line Adjustment, or Parcel Merger shall not authorize an exception or deviation from any zoning regulation or operative plan, or as an approval to proceed with any development in violation of other applicable provisions.

D. **References to the Map Act.** Where the Subdivision Ordinance references applicable provisions of the Map Act, the reference shall be interpreted to be to the applicable Map Act provisions as they may be amended from time to time.

E. **Map Act Reference Numbers.** Map Act section numbers provided in references to the Map Act are for the convenience of readers. Numbers may be superseded by more recent Map Act amendments.

F. **Conflicts with the Map Act.** In the event of any conflicts between the provisions of this Subdivision Ordinance and the Map Act, the Map Act shall govern.

G. **Definitions.** Refer to Section 15-6802 and the Map Act. In the event of any conflicts between the definitions of this Subdivision Ordinance and the Map Act, the Map Act shall govern.

H. **Pre-Annexation Filing of a Subdivision.** In accordance with the Map Act (Section 66454), an application for a proposed subdivision of unincorporated territory adjacent to the city within the Sphere of Influence may be filed with the City pursuant to the Memorandum of Understanding between the City and County. The map, in the discretion of the City, may be acted upon as outlined in the Map Act (Section 66452), except that if it is approved, such approval shall be conditioned upon annexation of the property to the city.

I. **Determining the Legality of Parcels.**

1. **Parcels Created Before January 1, 1968.**

   a. **Incorporated.** Parcels created before January 1, 1968 shall be deemed to be legally created if the parcel was created in compliance with the City's Parcel Map Ordinance in effect at that time.

   b. **Unincorporated.** Refer to the Map Act (Section 66412.6).

2. **Parcels Created Before March 4, 1972.** Parcels shall be deemed to be legally created if the parcel was created in compliance with the City of Fresno's Parcel Map Ordinance in effect at that time.

3. **Parcels Created After March 4, 1972.** Parcels created after March 4, 1972 shall be deemed to have been legally created if the parcel was created in compliance with the Subdivision Map Act.

4. **Substandard Parcels.**

   a. Substandard parcels that were created after 1956 and for which a City permit was issued and created in conformance with the Subdivision Ordinance in effect at that time is considered to be a legal parcel.

   b. Substandard parcels shall not be deemed legal parcels unless evidence can be provided to the City that they were created pursuant to City-issued permits, approvals, and/or the Map Act.

   c. Substandard parcels which are deemed to be illegal parcels shall submit a Conditional Certificate of Compliance to be reviewed and approved by the Development Services Division.

J. **Grading and Erosion Control.** Every map approved pursuant to this Ordinance shall be conditioned on compliance with the requirements for grading and erosion control, including the prevention of sedimentation or damage to off-site property, set forth in the Fresno Municipal Code.

K. **Fees.** All persons submitting maps and other documents required by the Subdivision Ordinance shall pay all required fees at the time of application and/or when environmental documentation is filed, whichever occurs first. Fees shall be established by the City pursuant to the Map Act (Section 66451.2) and the Mitigation Fee Act (Sections 66000 to 66025 of the Government Code).
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3103. INTERPRETATION.

None of the provisions in the Subdivision Ordinance or in any other ordinance or resolution of the City, or in any rule or regulation promulgated pursuant thereto, whether pre-existing, existing, or in the future, are intended to create or to be construed to create an imposition of civil liability on the City, its Council, commissioners, officers, or employees while acting in accordance with such provisions.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3104. SEVERABILITY.

The sections, paragraphs, sentences, clauses and phrases of the Subdivision Ordinance are severable. If any phrase, clause, sentence, paragraph, or section of the Subdivision Ordinance is declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs, and sections of the Subdivision Ordinance.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3105. ADMINISTRATION AND COMMON PROCEDURES.

A. **Responsibility for Administration.** The Director and City Engineer are authorized and directed to administer and enforce the provisions of this Subdivision Ordinance and applicable provisions of the Map Act for subdivisions within the city.

B. **Powers and Responsibilities.**

1. **Council.** The Council shall:

   a. Act as the final appeal board for hearing appeals of the approval, conditional approval, or denial of maps for all land divisions and adjustments;

   b. Consider all dedications in the event that the City Engineer does not take action;

   c. Take action on Final Maps pursuant to the Map Act (Section 66458);

   d. Consider actions on Appeal. The Council shall take action on items brought before the Council on appeal of the Commission decision, which may include, Tentative Maps, Vesting Tentative Maps, Parcel Maps, Lot Line Adjustments, and Voluntary Parcel Mergers. For actions on appeal, the Council may approve, conditionally approve, or deny the above submissions, subject to the requirements of the Map Act; and

   e. Accept dedications and improvements for subdivisions and offsite dedications lying outside a subdivision boundary that require a separate grant deed.

2. **Planning Commission.** The Planning Commission shall:

   a. Approve, conditionally approve, or deny Tentative Maps and impose requirements or conditions thereon per the Map Act (Section 66474.7); and

   b. Where provided by this Code, the Commission shall serve as the appeal body for decisions of the Director and City Engineer.

3. **Director.** The Development and Resource Management Department Director (the "Director") shall:

   a. Determine if application is complete and provide notification to applicant;

   b. Approve, conditionally approve, or deny Parcel Maps;

   c. Report the findings together with any recommendations for approval, or conditional approval, to the Commission for Tentative Maps;

   d. In consultation with the City Engineer, determine if proposed subdivision improvements comply with the provisions of this Subdivision Ordinance and the Map Act; and

   e. In consultation with the City Engineer, determine if Final Maps are in substantial conformance with approved Tentative Maps.

4. **City Engineer.** The City Engineer shall:

   a. Establish design and construction details, standards, and specifications;

   b. Approve, conditionally approve, or deny Lot Line Adjustments and Voluntary Parcel Mergers;

   c. Determine that all public facilities and improvements required of land divisions are adequate are provided per City standards;

d. Process Final Maps, reversion to acreage maps; the processing and approval of subdivision improvement plans, and certificates of compliance;

e. Examine and conclude that Final Maps are in substantial conformance with the approved Tentative Map;

f. Inspect and approve of subdivision improvements; and

g. Record a notice of completion of private subdivision improvements when not to be maintained by the City.

5. **Subdivision Review Committee (SRC).**

a. **SRC Members.** The Subdivision Review Committee (SRC) shall be comprised of public service providers, City staff, and others the Director determines should comment on proposed maps.

b. **SRC Review.**

i. The SRC shall review all Tentative Maps, while the Director at his/her discretion, may also refer Tentative Parcel Maps to the SRC.

ii. The SRC shall review maps for:

(1) Compliance and consistency with applicable provisions of this Development Code, the Municipal Code, the General Plan, operative plan (if applicable), utility plan, the City's standard specifications and plans, and the Map Act;

(2) Conditions necessary for the map to comply with the above requirements; and

(3) Basis for determining that the map complies with the required findings in Section 15-3310, Required Findings for Tentative Parcel Maps and Tentative Maps.

c. **SRC Role.** The SRC shall provide pre-application consultation in accordance with Section 15-3304 of this Code and advise the Director and City Engineer.

6. **Planning Division.** The Planning Division shall:

a. Collects fees related to the processing of Tentative Maps and Tentative Parcel Maps;

b. Process Tentative Maps and Tentative Parcel Maps; and

c. Investigate proposed subdivisions for conformity to the General Plan, Specific and operative plans, and the Zoning Ordinance, and reporting findings together with recommendations for approval, conditional approval, or denial of Tentative Maps.

7. **Public Works Department.** The Public Works Department shall:

a. Be responsible for the processing of Final Maps; and

b. Process Lot Line Adjustments and Mergers.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 52, 53, eff. 1-18-19).

SEC. 15-3106. REVIEW AUTHORITIES FOR SUBDIVISION DECISIONS.

Pursuant to the Map Act (Sections 66415, 66452.1, & 66458) Table 15-3106 identifies the City official or authority responsible for reviewing and making decisions on each type of subdivision application and other decision required by this Subdivision Ordinance. Any reference to a City official or authority shall include their authorized representative(s).

TABLE 15-3106: REVIEW AUTHORITIES FOR SUBDIVISION DECISIONS

Type of Subdivision Application	*Role of Review Authority*					*Reference*
	Director	*City Engineer*	*Subdivision Review Committee*	*Commission*	*Council*	
Parcel Maps (four or fewer parcels)[1]						
Parcel Map Waivers	Recommend	Decision		Appeal	Appeal	Article 35
Tentative Parcel Maps	Decision	Recommend	Advise	Appeal	Appeal	Article 33
Parcel Maps	Recommend	Decision		Appeal	Appeal	Article 35
Tentative Parcel Map Time Extensions	Decision			Appeal		Article 33
Tentative Maps (more than four parcels)[1]						
Tentative Maps	Recommend		Advise	Decision	Appeal	Article 33
Final Maps	Advise	Recommend			Action	Article 36
Tentative Map Time Extensions	Recommend		Advise	Decision	Appeal	Article 33
Adjustments/Mergers/Reversions/Condominium Conversions						
Lot Line Adjustment	Recommend	Decision			Appeal	Article 42
Voluntary Parcel Merger	Recommend	Decision			Appeal	Article 42
Reversion to Acreage	Recommend	Decision			Appeal	Article 42
Condo Conversion				Recommend	Decision	Article 39

[1]Refer to the Map Act for the various map categories (Section 66426)

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 32 REQUIRED MAPS

Sec. 15-3201. Purpose.
Sec. 15-3202. Required Maps.
Sec. 15-3203. Exceptions from Subdivision Approval Requirements.

SEC. 15-3201. PURPOSE.

The provisions of this article shall determine the need for Tentative or Vesting Tentative Maps, Final Maps, Tentative Parcel, and Parcel Maps.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3202. REQUIRED MAPS.

Any subdivision of land shall require the filing and approval of either a Tentative Map and Final Map or Tentative Parcel Map and Parcel Map, except as provided by the Map Act (Section 66426) and/or Section 15-3203, Exemptions from Subdivision Approval Requirements.

A. **Tentative Parcel Map and Parcel Maps (Four or Fewer Parcels).** Tentative Parcel and Parcel Maps shall be required for the following:

1. Parcel Maps, as authorized by the Map Act (Section 66248; four or fewer parcels).

2. Divisions of land into five or more parcels that meet any of the following criteria and are consistent with the Map Act (Section 66426):

   a. The land before division contains less than five acres, each parcel created by the division abuts upon a maintained public street or highway, and no dedications or improvements are required.

   b. Each parcel created by the division has a gross area of 20 acres or more and has an approved access to a public street or highway.

   c. The land consists of a parcel or parcels of land having approved access to a public street or highway, which comprises part of a tract of land zoned for industrial or commercial development, and which has the approval of the City as to street alignments and widths.

   d. Each parcel created by the division has a gross area of not less than 40 acres or is not less than one quarter of a quarter section.

   e. The land being subdivided is solely for the creation of an environmental subdivision pursuant to Map Act (Section 66418.2).

3. **Exceptions.** Pursuant to the Map Act (Sections 66411, 66412, 66412.1, 66412.2, and 66426.5) a subdivision map shall not be required for:

   a. **Public/Government Agency or Utility Conveyances.** Any conveyance of land, including a fee interest, an easement, or a license, to or from a governmental agency, public entity, public utility, or a subsidiary of a

public utility for rights-of-way, unless the Director determines, based on substantial evidence, that public policy necessitates a Parcel Map in an individual case;

b. **Rail Right-of-Way Leases.** Subdivisions of a portion of the operating right-of-way of a railroad corporation as defined by California Public Utilities Code Section 230, which are created by short-term leases (terminable by either party on not more than 30 days' notice in writing); or

c. **Waived Parcel Map.** A subdivision that has been granted a waiver of Parcel Map requirements in compliance with Section 15-3503, Waiver of Parcel Map.

B. **Tentative Maps and Final Maps (Five or More Parcels).** Tentative Maps and Final Maps shall be required for subdivisions of five or more parcels that do not meet the criteria for Tentative Parcel Maps and Parcel Maps listed in Subsection A above.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3203. EXCEPTIONS FROM SUBDIVISION APPROVAL REQUIREMENTS.

The requirements for a Tentative Map, Parcel Map, or Final Maps shall not apply to the exclusions enumerated in the Map Act (Sections 66412, 66412.1, 66412.2, 66412.5 and 66426.5).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 33 TENTATIVE PARCEL AND TENTATIVE MAP FILING AND PROCESSING

Sec. 15-3301. Purpose.
Sec. 15-3302. Form and Contents.
Sec. 15-3303. Concurrent Processing of Related Applications.
Sec. 15-3304. Pre-Application Consultation.
Sec. 15-3305. Application Filing and Completeness Review.
Sec. 15-3306. Applicable Standards.
Sec. 15-3307. Referrals and Review.
Sec. 15-3308. Decision.
Sec. 15-3309. Required Findings.
Sec. 15-3310. Grounds for Denial.
Sec. 15-3311. Conditions of Approval.
Sec. 15-3312. Automatic Approval if No Action.
Sec. 15-3313. Applicant Notification.
Sec. 15-3314. Appeals.
Sec. 15-3315. Effective Date of Approval.
Sec. 15-3316. Time Limits and Expiration of Approved Maps.
Sec. 15-3317. Termination.
Sec. 15-3318. Compliance with Conditions, Improvement Plans.
Sec. 15-3319. Parcel or Final Map Preparation, Filing and Recordation.
Sec. 15-3320. Approved Map to Run with the Land.
Sec. 15-3321. Subsequent Tentative Maps.

SEC. 15-3301. PURPOSE.

This article establishes the application requirements, submittals, review, and required findings for approval and disapproval of Tentative Parcel Maps and Tentative Maps, consistent with the requirements of the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3302. FORM AND CONTENTS.

A. **Application Requirements.** Tentative Parcel Map and Tentative Map application submittals shall include:

1. Application forms as required by the City.

2. Maps shall be prepared in compliance with all applicable City standards and specifications and the Map Act.

3. Maps shall be clearly and legibly drawn, printed, or reproduced and shall contain the information specified by the City Engineer and Director and shall be prepared pursuant to the Map Act (Sections 66434 et. seq. and 66444 et. seq.).

4. If the subdivider plans to develop the site in phases such that multiple Final Maps will be filed following the approval of a single Tentative Map in compliance with the Map Act (Section 66456.1).

B. **Accompanying Data and Reports.** Applications for Tentative Maps and Tentative Parcel Maps shall be accompanied by the following data or reports:

1. **Title Report.** A preliminary title report, showing the legal owners at the time of filing the Tentative Map.

2. **Environmental Assessment.** The subdivider shall provide data and information as may be required for the preparation and processing of environmental documents pursuant to the California Environmental Quality Act.

3. **Soils Report.** The City Engineer may require the preparation of a preliminary soils report. If a preliminary soils report indicates the presence of critically expansive soils or other soil problems which, if not corrected, could lead to structural defects, the soils report accompanying the final map shall contain an investigation of each lot within the subdivision. The City Engineer may require additional information or reject the report if it is found to be incomplete, inaccurate, or unsatisfactory. The preliminary soils report may be waived if the City Engineer determines that, due to knowledge of the soil qualities in the subdivision, no preliminary analysis is necessary.

4. **Geotechnical Report.** For subdivisions within the Alquist-Priolo Fault Zone or other area with geologic or seismic hazards per State Hazard Mapping Act or the General Plan, a preliminary geotechnical report that evaluates seismic hazards and recommends appropriate mitigation measures, prepared in compliance with the requirements of the State Seismic Hazard Mapping Act, shall be submitted with the Tentative Map. The report shall identify mitigation measures that will be incorporated in design of the subdivision to mitigate hazards from liquefaction and other seismic hazards. If this preliminary report identifies hazards, an engineering report on each lot in subdivision must be submitted with Final Map.

5. **Other Reports.** Any other data or reports deemed necessary by the City (refer to Section 15-3305, Application Filing and Completeness Review).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3303. CONCURRENT PROCESSING OF RELATED APPLICATIONS.

A. **Related Applications.** Other applications required by this Code that are related to a Tentative Map and/or Tentative Parcel Map may be submitted prior to or concurrently with the Tentative Map and Tentative Parcel Map application(s) and shall contain clear, legible, and accurate information. Each application shall accurately reference other applications.

B. **Approval of Related Application(s).**

1. Concurrent processing of other applications required by this Code that are related to a Tentative Map and/or Tentative Parcel Map application(s) shall occur in accordance with the provisions and requirements included within Section 15-5018 of this Code.

C. **Time Limit Waiver/Extensions by Mutual Consent.** Time limits may be extended or waived by mutual consent of the City and the applicant for the processing of a Tentative Map and/or Tentative Parcel Map for the purpose of permitting concurrent processing of related entitlement applications or an environmental review of the same project per the Map Act (Section 66451.1).
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 54, eff. 1-18-19).

SEC. 15-3304. PRE-APPLICATION CONSULTATION.

Prior to filing an application for a Tentative Map and/or Tentative Parcel Map, the prospective subdivider shall meet with Planning staff and the Subdivision Review Committee, to review the proposed subdivision design, including a discussion of the location of open space, connectivity to surrounding streets and/or property, trails, safe routes to school, bus stops, dedication requirements, applicable processing procedures, etc.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 55, eff. 1-18-19).

SEC. 15-3305. APPLICATION FILING AND COMPLETENESS REVIEW.

A. **Filing.** The Director shall maintain application forms and lists that specify the information that will be required from applicants for maps.

B. **Initial Application Review.**

1. The Director shall review and evaluate each Tentative Map or Tentative Parcel Map as to its compliance and consistency with applicable provisions of this Development Code, the General Plan, any operative plan or master utility plan, and the Map Act; and

2. The Director may determine the extent to which the proposed subdivision complies with the findings identified in Section 15-3309, Required Findings.

C. **Complete and Accepted for Processing.** Staff shall provide written notification to the applicant whether the application is complete and accepted for processing within 30 days of receipt of a filed application. In the course of processing the application, the City may require the applicant to clarify, amplify, correct, or otherwise supplement the information required for the application.

D. **Incomplete.** Staff shall notify the applicant that the application is incomplete and has not been accepted for processing and shall notify the applicant of the manner in which the application may be made complete. If the applicant fails to provide requested information within 30 days of notification, the application shall be deemed incomplete, processing shall be suspended, and application shall be returned to applicant less fees to cover initial review.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 56, eff. 1-18-19).

SEC. 15-3306. APPLICABLE STANDARDS.

The approval, conditional approval, or denial of a Tentative Map and/or Tentative Parcel Map shall be based on the ordinances, policies, and standards in effect on the date of

notification to the developer of the determination that the application is complete according to Section 15-3305, Application Filing and Completeness Review. If the City has initiated formal proceedings and published notice of an ordinance or resolution amending ordinances, policies, and standards applicable to the developer's project prior to acceptance of a complete application, the amended ordinances, policies, and standards in effect on the date of tentative map approval shall apply. If the developer requests changes in applicable ordinances, policies, and standards, and they are adopted, the changes shall apply.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3307. REFERRALS AND REVIEW.

A. **Referrals.** A Tentative Parcel Map or Tentative Map application shall be referred to the agencies outlined in this subsection as required by the Map Act (Section 66453), as well as any other City department, County, State, or federal agency, or other individual or group that the Director believes may be affected by the subdivision or may have information useful to the City about issues raised by the proposed subdivision.

B. **Time Limits for Referrals.** As required by the Map Act (Section 66453(b)), referral of maps shall occur within five days of determining that the Tentative Parcel Map or Tentative Map application is deemed complete in compliance with Section 15-3305, Application Filing and Completeness Review.

C. **Affected Agencies.** The Director shall refer Tentative Parcel Map and Tentative Map applications for review and comment to each of the following public service providers:

1. **Caltrans.** The California Department of Transportation shall be referred any map located within an area shown on a territorial map filed with the City in compliance with the Map Act (Section 66455);

2. **Other Cities and Local Agencies.** Other cities and other local agencies shall be referred any Map that is located within the area shown on a territorial map filed with the City in compliance with the Map Act (Section 66453); and

3. **Others.** Other agencies (such as municipal service providers, city departments, and school districts), departments, groups, or individuals that the Director determines should review the project.

D. **Subdivision Review Committee (SRC).** Tentative Maps shall be reviewed by the SRC in accordance with Section 15-3304, Pre-Application Consultation. The SRC shall advise the Director pursuant to Section 15-3105-B.5.b; and, based on the findings in Section 15-3305, Application Filing and Completeness Review.

E. **Presumption.** Along with the subdivision application referral, the Department shall include notification that if no written response to the referral is received within 15 days of receiving a copy of the proposed project, per the Map Act (Section 66453(c)), the City shall presume that no recommendations or comments are forthcoming.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 57, eff. 1-18-19).

SEC. 15-3308. DECISION.

A. **Tentative Parcel Map.**

1. **Review Authority.** The Director is the Review Authority for Tentative Parcel Maps and map exceptions identified in the Map Act (Section 66426).

2. **Decision.** The Director shall approve, conditionally approve, or disapprove a Tentative Parcel Map. The Director shall:

   a. Consider the recommendations of any agency comments on the map, and any testimony;

   b. Consider comments received from the SRC;

   c. Review and evaluate each Tentative Parcel Map as to its compliance and consistency with applicable provisions of this Development Code, the Municipal Code, the General Plan, any operative plan, the City's standard specifications and plans, and the Map Act;

   d. Consider any environmental assessment, where applicable;

   e. Approve or conditionally approve a Tentative Parcel Map only after all findings required by Section 15-3309, Required Findings, are made; and

   f. Impose conditions of approval in compliance with Section 15-3311, Conditions of Approval.

3. **Timing/Action.** In accordance with the Map Act (Section 66452.1), the Director shall take action within 50 days after:

   a. The Tentative Parcel Map application has been deemed complete; and

   b. The 50-day time period shall commence after the adoption and/or certification of applicable environmental document consistent with Division 13 (commencing with Section 21000) of the Public Resources Code.

4. **Planning Commission Referral.** Alternatively, the Director, at their discretion and for good cause, may refer a Tentative Parcel Map to the Commission for consideration. The Commission shall make the findings for approval per Section 15-3309, Required Findings. The Director shall provide public notice per Section 15-3308-B.4, Notice of Hearing.

B. **Tentative Map.**

1. **Review Authority.** The Planning Commission is the Review Authority for Tentative Maps.

2. **Director.** The Director shall prepare a staff report to the Commission describing the conclusions of the evaluations of the map, and recommending that the Commission approve, conditionally approve, or disapprove the Tentative Map.
3. **Timing/Action.** In accordance with the Map Act (Section 66452.1), a public hearing on a Tentative Map shall be scheduled, and action shall be taken, within 50 days after:
   a. The Tentative Map application has been deemed complete; and
   b. The 50-day time period shall commence after the adoption and/or certification of applicable environmental document consistent with Division 13 (commencing with Section 21000) of the Public Resources Code.
4. **Notice of Hearing.** Public hearings for maps shall be noticed per the following:
   a. **Publication.** Notice shall be given by publication once in a newspaper of general circulation publication and circulated in the City at least 10 days prior to the hearing. The notice shall be at least one-eighth page in size; and
   b. **Public Notice.** Refer to Section 15-5007, Public Notice.
5. **Distribution of Staff Report.** In compliance with the Map Act (Section 66452.3) the staff report shall be made available at least three days before any hearing or action by the Review Authority.
6. **Planning Commission.** The Planning Commission shall:
   a. Consider the recommendations of the Director, any agency comments, and any public comment, including written and verbal testimony;
   b. Review and evaluate each Tentative Map as to its compliance and consistency with applicable provisions of this Development Code, the Municipal Code, the General Plan, any operative plan, or Concept Plan, and the Map Act;
   c. Review and make a determination on the environmental document, and any public comment, including written and verbal testimony received;
   d. Approve or conditionally approve a Tentative Map only after the Commission has first made all findings required by Section 15-3309, Required Findings; and
   e. Impose conditions of approval in compliance with Section 15-3311, Conditions of Approval.
7. **City Council.** Shall consider appeals of the Commission's action per Section 15-3314, Appeals, and pursuant to the Map Act (Section 66452.5).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3309. REQUIRED FINDINGS.

A. **Findings.** The Review Authority may approve or conditionally approve a Tentative Parcel Map or Tentative Map if it makes all of the following findings:

1. **Consistency.** The proposed subdivision, together with the provisions for its design and improvement, is consistent with the General Plan, any applicable operative plan, adopted policies or guidelines, and the Municipal Code.

2. **Passive and Natural Heating and Cooling.** A subdivision for which a Tentative Map is required shall provide pursuant to the Map Act (Section 66473.1), to the extent feasible, for future passive or natural heating or cooling opportunities in the subdivision. Examples of passive or natural heating opportunities in subdivision design include:

    a. Design of lot size and configuration to permit orientation of a structure in an east-west alignment for southern exposure and to take advantage of shade or prevailing breezes. Consideration shall be given to local climate, to contour, to configuration of the parcel to be divided, and to other design and improvement requirements, and such provision shall not result in reducing allowable densities or the percentage of a lot which may be occupied by a building or structure.

    b. The requirements of this section do not apply to condominium projects that consist of the subdivision of airspace in an existing building when no new structures are added.

    c. For the purposes of this section, "feasible" means capable of being accomplished in a successful manner within a reasonable period of time, taking into account economic, environmental, social, and technological factors.

3. **Availability of Water.** Water will be available and sufficient to serve a proposed subdivision with more than 500 dwelling units in accordance with the Map Act (Section 66473.7).

4. **Infrastructure Capacity.** There exists sufficient infrastructure capacity for water, runoff, storm water, wastewater, and solid waste systems to serve the proposed subdivision. In cases where existing infrastructure is found to be deficient, plans shall show how sufficient capacity will be provided.

5. **Compliance with Floodplain Regulations.** The proposed subdivision is compliant with the City of Fresno Floodplain Management Ordinance and the State of California Code of Regulations Title 23, as well as any other applicable State or federal law.

B. **Supplemental Findings.** In addition to the findings required for approval of a Tentative Map or Tentative Parcel Map by Subsection A above, the Review Authority shall not approve a Tentative Parcel Map or Tentative Map unless it can also make the following findings, when they are applicable to the specific subdivision proposal.

1. **Construction of Improvements.** It is in the interest of public health and safety, and it is necessary as a prerequisite to the orderly development of the surrounding area, to require the construction of improvements within a specified time after recordation of a Parcel Map of four or fewer parcels where improvements are required.

2. **Condominiums.** Any applicable findings required by Section 15-3913, Findings, for Condominium Conversions.

3. **Dedications or Exactions.** Any applicable findings required by Article 37, Dedications and Reservations, if dedications or exactions are required.

4. **Waiver of Parcel Map.** The findings required by Section 15-3503, Waiver of Parcel Map, if waiver of a Parcel Map has been requested with the Tentative Map application.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3310. GROUNDS FOR DENIAL.

In accordance with the Map Act (Section 66474), the Review Authority shall deny approval of a Tentative Map and/or Tentative Parcel Map if it makes any of the following findings:

A. The proposed map, including design and improvements, is not consistent with the General Plan, any applicable operative plan, adopted policies/guidelines, or any applicable provision of this Code.

B. The design of the subdivision or the proposed improvements are likely to cause substantial environmental damage or substantially and avoidably injure fish or wildlife or their habitat unless an environmental impact report was prepared for the project and a finding has been made pursuant to Section 21081 (3)(a) of the Public Resources Code that specific economic, social, or other considerations make infeasible the mitigation measures or project alternatives that the environmental impact report identified.

C. The site is not physically suitable for the type of development proposed.

D. The site is not physically suitable for the proposed density of development.

E. The design of the subdivision or the type of improvements are likely to cause serious public health problems.

F. The design of the subdivision or the type of improvements will conflict with easements, acquired by the public at large, for access through or use of, property within the proposed subdivision. In this connection, the City may approve a map if it finds that alternate easements, for access or for use, will be provided, and that these will be substantially equivalent to ones previously acquired by the public. This subsection shall apply only to easements of record or to easements established by judgment of a court of competent jurisdiction and no authority is hereby granted to a legislative body to determine that the public at large has acquired easements for access through or use of property within the proposed subdivision.

G. The site is subject to a contract under the Williamson Act and the resulting parcels following subdivision would be too small to sustain agricultural use and the land meets all the requirements of the Map Act (Section 66474.4).

H. The subdivision is located in a State responsibility area or very high fire hazard zone as defined in Section 51177 of the Government Code and the Review Authority is unable to make the findings required by the Map Act (Section 66474.02).

I. The subdivision is located within a flood zone pursuant and design of the subdivision would not provide for compliance with State and federal floodplain regulations (Section 66474.5).

J. The waste discharge into the City sewer system from the proposed subdivision would add to, or result in, violations of requirements imposed by the California Regional Water Quality Control Board (Section 66474.6).

K. **Exceptions.** To the extent permitted by State law, the Review Authority may make exceptions to the standards set forth in this section provided that it makes the following findings based on information in the record:

1. That the strict application of any such standard would result in practical difficulties or unnecessary hardships inconsistent with the general purpose and intent of this section;

2. That there are exceptional circumstances or conditions applicable to the property involved or to the intended use or development of the property being re-subdivided; and

3. That the granting of the exception will not be materially detrimental to the public welfare nor injurious to the property or improvements in the immediate vicinity.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3311. CONDITIONS OF APPROVAL.

In approving an application for a Tentative Map and/or Tentative Parcel Map, the Review Authority may impose any conditions necessary to make the findings required in Section 15-3309, Required Findings, and to meet the requirements of this Ordinance. Along with the approval of a Tentative Parcel Map or Tentative Map, the adoption of conditions of approval shall occur in compliance with this section, provided that all conditions shall be consistent with the requirements of the Map Act.

A. **Authority and Limitations.** The Review Authority may modify or delete any recommended conditions of approval, except conditions required by City ordinance or by the City Engineer related to public health and safety or to standards approved by the City Engineer.

B. **Indemnification of the City.** Whether or not such a condition is explicitly listed as a condition of approval, every approved Tentative Map and Tentative Parcel Map shall be deemed to include a condition requiring the subdivider to defend, indemnify, and hold harmless the City and its agents, officers, and employees from any claim,

action, or proceeding against the City or its agents, officers, or employees to attach, set aside, void, or annul an approval of the Director, Commission, or Council concerning a subdivision per the Map Act (Section 66499.37).

C. **Mandatory Conditions.** The Review Authority shall adopt conditions of approval that:

1. Require that parcels, easements or rights-of-way be provided for streets, water supply and distribution systems, sewage disposal systems, storm drainage facilities, solid waste disposal, and public utilities providing electric, gas, and communications services, as may be required to properly serve the subdivision. Easements for public utilities shall be limited to those needed to provide service to present and future development;
2. Mitigate or eliminate environmental impacts to the extent feasible as identified through the environmental review process, except where a statement of overriding consideration has been adopted in compliance with CEQA;
3. Carry out the specific requirements of Article 38, Improvements and Security.
4. Secure compliance with the requirements of this Development Code, the General Plan and any applicable operative plans;
5. Require public access through the subdivision to public waterways, rivers, streams, shorelines, lakes, and reservoirs, and the dedication of public easements along the banks of rivers and streams, in compliance with the Map Act (Section 66478.1); and
6. Require the waiver of direct access rights to any existing or proposed streets in compliance with the provisions of the Development Code, General Plan, operative plan, and/or as required by the Director pursuant to the Map Act (Section 66476).
7. Ensure long-term maintenance of adequate clean water resources.

D. **Optional Conditions.** The Review Authority may also include as conditions of approval:

1. Any fees or charges related to the transportation impacts;
2. Dedications of land required to satisfy all or part of the required fee or for transportation improvements such as bicycle paths and transit facilities;
3. The reservation or dedication of sites for public facilities, including fire stations, parks, libraries, and other public uses in compliance with the Map Act (Chapter 4, Article 3; commencing with Section 66475);
4. Time limits or phasing schedules for the completion of conditions of approval, when deemed appropriate;
5. Any other conditions deemed necessary by the Review Authority to:
   a. Promote orderly growth;

b. Achieve compatibility between the proposed subdivision, its immediate surroundings, and the community;

c. Achieve consistency with City planning policies, design guidelines, ordinances or State law;

d. Ensure that the open space meets the needs of future residents and that it is properly located and accessible;

e. Ensure safe routes to schools, trails, connectivity to surrounding streets, bus stops, etc.; or

f. Require the formation of a maintenance entity to maintain those improvements included in Government Code Section 22500, also known as the Landscaping and Lighting Act of 1972.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3312. AUTOMATIC APPROVAL IF NO ACTION.

If no action is taken by the Director, Commission, or Council within the specified time limits, the map shall be deemed to be approved by the Commission if it complies with other applicable provisions of the Map Act, this Subdivision Ordinance, other City ordinances and the General Plan pursuant to the Map Act (Section 66452.4). The appeal period to the Council shall begin on the date of such certification.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3313. APPLICANT NOTIFICATION.

The Planning Division shall notify the applicant in writing of the Review Authority's decision. If the Tentative Map is denied, the Director shall notify the subdivider of the denial together with a statement of the reasons for such denial. If appealed, the Director shall notify the applicant of the appeal hearing.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3314. APPEALS.

A. **Decision Final Unless Appealed.** The decision of the Review Authority shall be considered final unless an appeal is filed.

B. **Time of Appeals.** Appeals shall be filed within 10 days after the action of the Review Authority (Map Act Section 66452.5).

C. **Right to Appeal.** Any interested person may file an appeal of the Review Authority's action per the Map Act (Sections 66473.5, 66474, 66474.1 and 66474.6) to the Council.

D. **Form of Appeal.** The written appeal form shall include the appellant's interest in or relationship to the subject property, the action or decision appealed, and specific reasons why the appellant believes the action or decision appealed from should not be upheld.

E. **Hearing Date.** Shall be held within 45 days after the notice of filing the appeal, or as amended per the Map Act (Section 66452.5).

F. **Notice of Hearing.** Notice shall be given per Section 15-5007, Public Notice, for appeal hearings for either Tentative Maps or Tentative Parcel Maps.

G. **Withdrawal of Appeal.** Refer to Section 15-5017, Appeals.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2024-002, § 1, eff. 2-18-24).

Sec. 15-3315. EFFECTIVE DATE OF APPROVAL.

The approval of a Tentative Map or Tentative Parcel Map shall become effective for the purposes of filing a Parcel or Final Map, including compliance with conditions of approval, on the 11th day following the date the public/final decision is rendered by the applicable Review Authority, provided that an appeal of the Review Authority's decision has not been filed in compliance with Section 15-5017, Appeals.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3316. TIME LIMITS AND EXPIRATION OF APPROVED MAPS.

A. **Time Limits.** An approved Tentative Map or Tentative Parcel Map is valid for 24 months after its effective date, except as otherwise provided by the Map Act (Sections 66452.6, 66452.11, 66452.13, 66452.21, 66452.22, 66452.23, 66452.24 and/or 66463.5).

B. **Expiration.** At the end of the time period per Subsection A of this section, the approval shall expire and become void unless:

1. A signed Parcel or Final Map has been timely filed with the City. The City may process, approve, and record the map if it is prepared in accordance with the approved tentative map, subject to the limitations and requirement of the Map Act.
2. An extension of time has been granted in compliance with this section.

C. **Extensions of Time.**

1. When a subdivider has not completed all Tentative Map or Tentative Parcel Map conditions of approval and filed a Parcel or Final Map with the City within the time limits established by Subsection A of this section, an extension of the expiration date may be granted in compliance with this section.
2. The subdivider may request an extension of the map by filing a written application with the Director at least 60 days, but no more than six months prior, to the expiration of the approval per the Map Act (Sections 66452.6, 66452.11, 66452.13, 66452.21, 66452.22, 66452.23, 66452.24, and/or 66463.5).The granting of extension to the initial time limit may occur only after the Review Authority finds that:
    a. There have been no changes to the provisions of the General Plan or any operative plan, or development plan that would cause the map to no longer be in conformity with the General Plan, operative plan, or development plan;

b. There have been no changes to the provisions of this Development Code that would cause the map to no longer be in conformity with this Development Code;

c. There have been no changes in the character of the site or its surroundings that affect how the policies of the General Plan or other standards of this Development Code apply to the project; and

d. There have been no changes to the capacities of community resources, including roads, schools, sewage treatment or disposal facilities, or water supply, so that there is no longer sufficient remaining capacity to serve the project.

D. **Amendments to Conditions for Map Extensions.** The City may impose conditions on map extensions in accordance with Article 43, Corrections and Amendments of Maps.

E. **Amendments to Approved Tentative Maps.** The City may amend an approved Tentative Map in accordance with Article 43, Corrections and Amendments of Maps. However, under no circumstances shall an amendment be approved for an expired map.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3317. TERMINATION.

The expiration of an approved or conditionally approved Tentative Parcel Map or Tentative Map shall terminate all proceedings.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3318. COMPLIANCE WITH CONDITIONS, IMPROVEMENT PLANS.

After approval of a Tentative Map or Tentative Parcel Map and the filing of a Final or Parcel Map in compliance with this article, the developer shall proceed to fulfill the conditions of approval within the time limits specified by the conditions and the expiration of the map. Where applicable, the developer shall prepare, file, and receive approval of improvement plans in compliance with Article 38, Improvements and Security before constructing any required improvements.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3319. PARCEL OR FINAL MAP PREPARATION, FILING AND RECORDATION.

Final Maps and Parcel Maps shall be prepared, filed, processed, and recorded in compliance with Article 35, Parcel Maps, and Article 36, Final Maps, to complete the subdivision, unless a Parcel Map has been waived in compliance with Section 15-3503, Waiver of a Parcel Map.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3320. APPROVED MAP TO RUN WITH THE LAND.

A Tentative Map or Tentative Parcel Map that is valid and in effect, and was granted in compliance with the provisions of this Development Code, shall run with the land and continue to be valid if there is any change in ownership of the land.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3321. SUBSEQUENT TENTATIVE MAPS.

A subdivider may file as many maps as desired for the same property. The most recent map approval shall supersede previous map approvals. Previous map approvals shall become null and void if superseded.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 34 VESTING TENTATIVE MAPS

Sec. 15-3401. Vesting Tentative Maps.
Sec. 15-3402. Findings for Approval.
Sec. 15-3403. Expiration of Vesting Tentative Map.
Sec. 15-3404. Changes to Approved Map or Conditions.
Sec. 15-3405. Development Rights of Vested Maps.

Sec. 15-3401. VESTING TENTATIVE MAPS.

A. **General Provisions.**

1. Whenever this Development Code requires that a Tentative Map or Tentative Parcel Map be filed, a Vesting Tentative Map or Vesting Tentative Parcel Map may instead be filed, provided that the Vesting Tentative Map or Vesting Tentative Parcel Map is prepared, filed, and processed in compliance with this article and the Map Act (Chapter 4.5; commencing with Section 66498.1).

2. A Vesting Tentative Map or Vesting Tentative Parcel Map may be filed for residential, commercial, or industrial developments.

3. If a subdivider does not seek the rights conferred by a Vesting Tentative Map, the filing of a Vesting Tentative Map shall not be a prerequisite to any approval for any proposed subdivision, permit for construction, or work preparatory to construction.

B. **Filing and Processing.** A Vesting Tentative Map or Vesting Tentative Parcel Map shall be filed in the same form, have the same contents and accompanying data and reports and, shall be processed in the same manner identified in this chapter as a Tentative Map, except as hereinafter provided:

1. **Application Content.** The Vesting Tentative Map or Vesting Tentative Parcel Map shall include the following information in addition to that required by Section 15-3302, Form and Contents.

2. **Title.** At the time a Vesting Tentative Map is filed it shall have printed conspicuously on its face the words "Vesting Tentative Map" while a Parcel Map shall have "Vesting Tentative Parcel Map" per the Map Act (Section 66452).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3402. FINDINGS FOR APPROVAL.

The Review Authority shall determine that the intended development of the subdivision is consistent with the zoning regulations applicable to the property at the time of filing, in addition to all other findings required for Tentative Map or Tentative Parcel Map approval by Section 15-3309, Required Findings.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3403. EXPIRATION OF VESTING TENTATIVE MAP.

The development rights vested by this section shall expire if a Parcel Map or Final Map is not approved before the expiration of the Vesting Tentative Map or Vesting Tentative Parcel Map in compliance with Section 15-3316, Time Limits and Expiration of Approved Maps. If the Parcel or Final Map is approved and recorded, the development rights shall be vested for:

A. An initial time period of 24 months from the date of recordation of the parcel or Final Map. Where several Final Maps are recorded on various phases of a project covered by a single Vesting Tentative Map, this initial time period shall begin for each phase when the Final Map for that phase is recorded.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3404. CHANGES TO APPROVED MAP OR CONDITIONS.

The developer may apply for an application to amend the Vesting Tentative Map or Vesting Tentative Parcel Map or conditions of approval at any time before the expiration of the Vesting Tentative Map or Vesting Tentative Parcel Map. An amendment request shall be considered and processed through the same procedures as a new application, in compliance with Article 43, Corrections and Amendments of Maps and in compliance with the Map Act (Section 66498.2).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3405. DEVELOPMENT RIGHTS OF VESTED MAPS.

A. The approval of a Vesting Tentative Map or Vesting Tentative Parcel Map shall confer a vested right to proceed with development of the subdivided parcels in substantial compliance with the ordinances, policies, and standards as identified in the Map Act (Section 66498.1).

B. Fees charged for building or land use permits, filed after the approval of a Vesting Tentative Map or Vesting Tentative Parcel Map shall be as required at the time the subsequent permit applications are filed. Building or land use permit application contents shall comply with City requirements in effect at the time the subsequent application is filed.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 35 PARCEL MAPS

Sec. 15-3501. Applicability.
Sec. 15-3502. Timing of Filing a Parcel Map.
Sec. 15-3503. Waiver of a Parcel Map.
Sec. 15-3504. Preparation.
Sec. 15-3505. Form and Content.
Sec. 15-3506. Filing with the City Engineer.
Sec. 15-3507. Processing of Parcel Maps.
Sec. 15-3508. Recording a Final Map.

SEC. 15-3501. APPLICABILITY.

A Parcel Map shall be prepared, filed, and processed as set forth in this article for all divisions of land that require a Tentative Parcel Map and Parcel Map pursuant to Article 32, Required Maps for a subdivision of four or fewer parcels, except when the requirement for a Parcel Map is waived in compliance with this article.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3502. TIMING OF FILING A PARCEL MAP.

Upon the approval of the Tentative Parcel Map, the subdivider may file a Parcel Map which substantially conforms to the approved Tentative Parcel Map and which is in the form required by the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3503. WAIVER OF A PARCEL MAP.

A subdivider may request the waiver of the requirement for a Parcel Map, and the waiver may be granted, in compliance with the Map Act (Section 66428), provided that the Director shall first find that the proposed subdivision complies with all applicable requirements of this Development Code and the Map Act as to area, improvement and design, floodwater drainage control, appropriate improved public roads, sanitary disposal facilities, water supply availability, environmental protection, and all other applicable requirements of this Development Code and the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3504. PREPARATION.

A Parcel Map shall be prepared by or under the direction of a person authorized to do so under the Map Act. Parcel Map submittals shall include all information and other materials as required by City policies, adopted standards, and the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3505. FORM AND CONTENT.

A. Parcel map submittals shall include information and other material prepared as required by the City Engineer, City policies, adopted standards, and the Map Act. This includes, but is not limited to, sheet sizes, scope of area depicted on the map, scale of the

map, border size, affidavits, certificates, mathematical information, and data necessary to locate monuments, interior and exterior boundary lines, titles, title sheet, and other information deemed necessary by the City Engineer.

B. The Parcel Map shall be based upon a field survey.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3506. FILING WITH THE CITY ENGINEER.

After receipt of the action of the review authority approving or conditionally approving the Tentative Parcel Map, the subdivider may cause the real property included within the map, or any part thereof, to be surveyed and a Parcel Map prepared in compliance with the approved or conditionally approved Tentative Parcel Map application. All documents necessary for adequate review of the Parcel Map shall be submitted to the City Engineer. The subdivider shall submit the following documents:

A. **Dedications.** All dedications or offers of dedication shall have been accomplished or shall be made by notation and a certificate on the map. Dedications or offers of dedication made on the map may be accepted, accepted subject to improvement, or rejected at the time the map is approved. The City Clerk shall certify the City Engineer's action with regard to such dedications or offers of dedication.

B. **Improvements.** All required improvements shall have been made, or an agreement providing for the construction of such improvements shall have been entered into with the City.

C. **Additional Documents.** The subdivider shall file the following documents with the City Engineer:

1. A statement from the County Officer computing redemptions, that according to the records of their office there are no liens for unpaid municipal taxes or special assessments collected as taxes, except taxes or special assessments not yet payable, against said subdivision or any part thereof, and as to the latter, an estimate of taxes and assessments which are a lien, but not yet payable.

2. In the event of any proposed dedication for public use, a certificate of title, a subdivision guarantee, or a dedication letter in the name of the owner of the land, issued to or for the benefit and protection of the City by a title company authorized by the laws of the State to write the same, showing all parties whose consent is necessary to pass clear title to the land being subdivided, together with the nature of their interests therein except where the land contained in such subdivision is registered under the Land Registration Act (i.e. Torrens Act) in which latter case a certified copy of the certificate of title shall be furnished.

3. Whenever property is subdivided with the intention that it shall have a use other than designated on the then existing zoning map, such use shall be stated, and the building setback lines and other regulations affecting such other use shall be shown and noted on the plot.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3507. PROCESSING OF PARCEL MAPS.

A. **Documents Required for Review.** The document package submitted for review shall include a copy of the Parcel Map, survey closure calculations, and any other documents required by the City Engineer and/or identified in the Tentative Parcel Map conditions of approval.

B. **Review of Parcel Map for Condition and Government Code Compliance.** The City Engineer shall be responsible for seeing that the conditions of approval and applicable provisions of the Government Code have been fulfilled. The City Engineer shall transmit maps to and request written reports from the City departments which have submitted conditions on the approved Tentative Parcel Map.

C. **Examination by City Engineer.** The City Engineer shall examine it as to sufficiency of affidavits and acknowledgements, correctness of surveying data, mathematical data and computations, and other matters which may require checking to ensure compliance with the provisions of the Map Act, this Division, and applicable City standards. If the Parcel Map does not conform as required above, the subdivider shall be notified, and given the opportunity to make necessary changes and resubmit the Parcel Map, together with all required data, if the Tentative Parcel Map has not expired.

D. **Filing Official Copy of Parcel Map.** If the Parcel Map and accompanying documents have been found satisfactory by the Director, the subdivider shall cause the Parcel Map to be officially filed with the City Engineer at least 20 days before the expiration of the approved or conditionally approved Tentative Parcel Map or any approved extension of time granted. The Parcel Map shall not be officially filed until the engineer or surveyor has received notification from the City Engineer that all provisions of the Tentative Parcel Map approval, the Map Act, this Development Code, the Municipal Code, and applicable City standards have been complied with. The filing of the official copy of the Parcel Map with the City Engineer shall constitute the timely filing of the Parcel Map.

E. **Improvement Agreements and Security Requirements.** The filing and recording of a Parcel Map shall be subject to the requirements of Section 15-3806, Improvement Agreements and Security.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3508. RECORDING A FINAL MAP.

After determining that the Parcel Map is technically correct and in full compliance with this article, the City Engineer may approve the Parcel Map in compliance with the Map Act (Section 66463(b)) or, if deemed appropriate, forward it to the Council for approval or

disapproval. After approval, the Parcel Map shall be transmitted by the City Engineer to the office of the County Recorder for recordation in compliance with the Map Act (Section 66450).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 36 FINAL MAPS

Sec. 15-3601. Final Maps.
Sec. 15-3602. Timing of Filing of a Final Map.
Sec. 15-3603. Submittal by Units.
Sec. 15-3604. Preparation.
Sec. 15-3605. Form and Content.
Sec. 15-3606. Filing with the City Engineer.
Sec. 15-3607. Processing of the Final Map.
Sec. 15-3608. Action on Final Maps.
Sec. 15-3609. Recording of Final Map.

SEC. 15-3601. FINAL MAPS.

A Final Map shall be filed and approved to complete the subdivision process for a subdivision of five or more parcels.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3602. TIMING OF FILING OF A FINAL MAP.

Upon the approval of the Tentative Map, the subdivider may file a Final Map which substantially conforms to the approved Tentative Map and which is in the form required by the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3603. SUBMITTAL BY UNITS.

A. Multiple Final Maps relating to an approved or conditionally approved Tentative Map may be filed prior to the expiration of the Tentative Map if the subdivider, at the time the Tentative Map is filed, informs the City Engineer in writing of the subdivider's intention to file multiple Final Maps on the Tentative Map, or after the filing of the Tentative Map the subdivider and City Engineer concur in the filing of multiple Final Maps.

B. The Commission or Council, acting on an appeal, shall approve the sequence of map approvals. The filing of a Final Map on a portion of an approved or conditionally approved Tentative Map shall not invalidate any part of the Tentative Map. Each Final Map that constitutes a part, or unit, or the approved or conditionally approved Tentative Map shall have a separate subdivision number. The public improvement agreement executed by the subdivider shall provide for the construction of improvements as required to constitute a logical and orderly development of the whole subdivision.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3604. PREPARATION.

A Final Map shall be prepared by or under the direction of a person authorized to do so under the Map Act. Final Map submittal shall include all information and other materials as required by City policies, adopted standards, and the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3605. FORM AND CONTENT.

A. Final map submittals shall include information and other material prepared as required by the City Engineer, City policies, adopted standards, and the Map Act. This includes, but is not limited to, sheet sizes, scope of area depicted on the map, scale of the map, border size, affidavits, certificates, mathematical information and data necessary to locate monuments, interior and exterior boundary lines, titles, title sheet, and other information deemed necessary by the City Engineer.

B. The Final Map shall be based upon a field survey.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3606. FILING WITH THE CITY ENGINEER.

After receipt of the action of the Review Authority approving or conditionally approving the Tentative Map, the subdivider may cause the real property included within the map, or any part thereof, to be surveyed and a Final Map prepared in compliance with the approved or conditionally approved Tentative Map application. All documents necessary for adequate review of the Final Map shall be submitted to the City Engineer. Documents required for review include the following:

A. **Dedications.** All dedications or offers of dedication shall have been accomplished or shall be made by notation and a certificate on the map. Dedications or offers of dedication made on the map may be accepted, accepted subject to improvement, or rejected at the time the map is approved. The City Clerk shall certify the City Engineer's action with regard to such dedications or offers of dedication.

B. **Improvements.** All required improvements shall have been made, or an agreement providing for the construction of such improvements shall have been entered into with the City.

C. **Additional Documents.** The subdivider shall file the following documents with the City Engineer:

1. A statement from the County Officer computing redemptions, that according to the records of their office there are no liens for unpaid municipal taxes or special assessments collected as taxes, except taxes or special assessments not yet payable, against said subdivision or any part thereof, and as to the latter, an estimate of taxes and assessments which are a lien, but not yet payable.

2. In the event of any proposed dedication for public use, a certificate of title, a subdivision guarantee, or a dedication letter in the name of the owner of the land, issued to or for the benefit and protection of the City by a title company authorized by the laws of the State to write the same, showing all parties whose consent is necessary to pass clear title to the land being subdivided, together with the nature of their interests therein except where the land contained in

such subdivision is registered under the Land Registration Act (i.e. Torrens Act) in which latter case a certified copy of the certificate of title shall be furnished.

3. Whenever property is subdivided with the intention that it shall have a use other than designated on the then existing zoning map, such use shall be stated, and the building setback lines and other regulations affecting such other use shall be shown and noted on the plot.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3607. PROCESSING OF THE FINAL MAP.

A. **Review of Final Map.** The City Engineer shall be the primary coordinator in seeing that conditions of approval of the Tentative Map have been fulfilled.

B. **Review of Final Map for Condition and Government Code Compliance.** The City Engineer shall be responsible for seeing that the conditions of approval and applicable provisions of the Government Code have been fulfilled. The City Engineer shall transmit maps to and request written reports from the City departments which have submitted conditions on the approved Tentative Map.

C. **Examination by the City Engineer.** Upon receipt of the Final Map, the City Engineer shall examine it as to sufficiency of affidavits and acknowledgements, correctness of survey data, mathematical data and computations, and other matters which may require checking to ensure compliance with the provisions of the Map Act, this Division, and applicable City standards. If the Final Map is found to be in substantial compliance with the Tentative Map and is to form, the matters shown on the map are sufficient, and the City Engineer is satisfied that all of the conditions of approval have been met, the City Engineer shall endorse approval of the Final Map.

D. **Filing of Official Copy of Final Map.** If the Final Map and the accompanying documents have been found satisfactory by the City Engineer, the subdivider shall cause the Final Map to be officially filed with the City Engineer at least 20 days before the expiration of the approved or conditionally approved Tentative Map or any approved extension of time granted. The Final Map shall not be officially filed until the engineer or surveyor has received notification from the City Engineer that all provisions of the Tentative Map approval, the Map Act, this Development Code, the Municipal Code, and applicable City standards have been complied with. The filing of the official copy of the Final Map with the City Engineer shall constitute the timely filing of the Final Map.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3608. ACTION ON FINAL MAPS.

The City Engineer shall submit the final map to the Council per the Map Act (Section 66474.1) for action as follows:

A. **Referral to the Council.** Upon receipt of the Final Map, the City Engineer shall check it as to correctness of surveying data, plans, profiles, and specifications of

improvements, certificates of dedication, acceptance of dedication, and acknowledgments, and such other matters as require checking to ensure compliance with the provisions of law and of this article.

B. **Criteria for Approval.** If the map conforms to all of the requirements of the Map Act and this Code, the Council shall approve the map. If the map does not conform, the Council shall disapprove the map.

C. **Timing of Council's Review.** The Council shall take action not more than 10 days after the filing of the Final Map, or at the next available hearing date.

D. **City Engineer's Certificate.** Following approval by the Council, the City Engineer shall execute the City Engineer's certificate.

E. **Map with Dedications.** If a dedication or offer of dedication is required on the Final Map, the Council shall accept, accept subject to improvements, or reject any or all offers of dedication, at the same time as it takes action to approve the Final Map. If the Council rejects the offer of dedication, the offer shall remain open and may be accepted by the Council at a later date in compliance with the Map Act (Section 66477.2). Any termination of an offer of dedication shall be processed in compliance with the Map Act (Section 66477.2) and the street vacation procedures in the Streets and Highways Code (Sections 8300 et seq.).

F. **Improvement Agreements and Security Requirements.** If improvements required by this Development Code, conditions of approval, or by law have not been completed at the time of approval of the Final Map, the Council shall require the developer to enter into an agreement with the City as specified in the Map Act (Section 66462), and Article 37, Dedications and Reservations, as a condition precedent to the approval of the Final Map.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3609. RECORDING OF FINAL MAP.

A. **Transmittal to Recorder.** After approval of the Final Map by the Council, and after the required signatures and seals have been affixed, the City Engineer shall transmit the Final Map to County Recorder for filing, in compliance with Section 15-3609-B, Recordation of Maps.

B. **Recordation of Maps.** At the time of filing of a Parcel or Final Map with the County Recorder, the subdivider shall present to the County Recorder evidence that, at the time of filing the map, the parties consenting to the filing are all parties having vested fee interest in the property being subdivided and are parties required to sign the certificate described in the Map Act (Section 66445(e)).

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 37 DEDICATIONS AND RESERVATIONS

Sec. 15-3701. Dedications and Reservations.
Sec. 15-3702. Acceptance of Dedications.
Sec. 15-3703. Reservations.

SEC. 15-3701. DEDICATIONS AND RESERVATIONS.

A. **Purpose.** The purpose of this article is to establish the dedications and reservations that may be imposed as a condition for approval of a Tentative Map or a Tentative Parcel Map.

B. **Streets, Alleys, and Other Public Rights-of-Way or Easements.** When required as a condition for approval of a map, the subdivider shall dedicate or make an irrevocable offer of dedication of land within the subdivision that is needed for streets and alleys, including access rights and abutters' rights, drainage, open space, scenic easements, public utility easements, and other public easements according to City standards. In addition, the subdivider shall improve or agree to improve all streets and alleys, including access rights and abutters' rights, drainage, public utility easements and other public easements as follows:

1. **Streets.** The subdivider shall dedicate land for streets according to adopted City standards.

2. **Alleys.** The subdivider shall dedicate land or easements for alleys according to adopted City standards.

C. **Public Utilities and Utility Easements.** Public utilities, including electricity, gas, water, sewer, storm drains, telecommunications services, cable television, and traffic signal detector loops shall be installed as part of the improvements within all subdivisions as provided by this section.

1. **Width.** A minimum of 10 feet, unless a greater distance is required, as determined by the City Engineer.

2. **Overhead Lines.** New overhead utility lines shall not be permitted, while existing overhead lines shall be placed underground, unless otherwise waived and/or deferred by the City Engineer or otherwise provided for in this Ordinance.

    a. **Exceptions.** The undergrounding of existing overhead wires and associated overhead structures used for conveyance of electrical energy at transmission voltages, nominally in excess of 21,000 volts, or major transmission trunk communication lines shall not be required.

3. **Installation.** Lateral connections to all underground utilities, water lines, and sanitary sewers shall be laid to sufficient lengths to avoid the need for disturbing the street improvements when service connections are made.

D. **Bicycle Paths/Trails.** When required as a condition for approval, the subdivider shall dedicate or make an irrevocable offer of dedication of land that is needed to provide bicycle paths/trails for the use, safety, and benefit of the residents of the subdivision.

E. **Pedestrian Paths/Paseos.** When required as a condition for approval, the subdivider shall dedicate or make an irrevocable offer of dedication of land that is needed to provide pedestrian paths/paseos for the use, safety, and benefit of the residents of the subdivision.

F. **Access to Public Resources.** When required as a condition of approval, the subdivider shall dedicate or make an irrevocable offer of land that is needed to provide access to public natural resources and rivers and streams per the Map Act (Sections 66478.3 through 66478.6).

G. **Transit Facilities.** When required as a condition for approval, the subdivider shall dedicate or make an irrevocable offer of dedication of land for local transit facilities such as bus turnouts, benches, shelters, landing pads, and similar items that directly benefit the residents of a subdivision.

H. **Watercourses and Drainage Facilities.** The subdivider shall provide the necessary right-of-way dedication or easements for buffer areas and setbacks for watercourses, streams, and storm drains as required by the City Engineer and the following:

1. Except as may be approved by the Commission, there shall be sufficient right-of-way dedicated to the City to maintain a natural channel, floodplain, or open space as may be shown the General Plan, or operative plan, if applicable, including right-of-way for a trail as may be shown on the City's Trails Master Plan.
2. Drainage facilities shall be installed in accordance with the appropriate Flood Control District and City requirements.
3. Storm drain easements not less than 10 feet in width shall be provided by the subdivider where required for construction and maintenance purposes.

I. **School Site Dedication.** A subdivider may be required to dedicate land necessary to construct an elementary school necessary to ensure adequate public school service to the residences of the subdivision in compliance with the Map Act (Section 66478).

J. **Dedication of Land or Payment of Fees for Park and Recreation Purposes.**

1. **Authority.** This section is enacted pursuant to authority granted by the Map Act (Section 66477, "Quimby Act").
2. **Identifying Open Space.** At the time of submittal of a Tentative Map, the applicant shall clearly depict the location and the amount of open space being proposed.
3. **Requirement.** Each subdivider of land classified by the City for, or otherwise proposed for, residential use shall, as a condition to filing a final subdivision map, dedicate or reserve lands, pay fees in lieu thereof, or a combination of both, for park or recreational purposes. In accordance with the Map Act (Section 66477(b)), land or fees required under this section shall be conveyed or paid directly to the City.

4. **Accepting Land.** The City shall determine if it will accept the proposed land, in fee, for meeting the provisions of this Code.

5. **Suitability.** Each park site proposed for dedication in compliance with this section shall be physically suited for the intended use and shall meet all criteria established by the City.

6. **Limitations.** For limitations and exclusions from this article, refer to the Map Act (Section 66477).

7. **Amount of Land to Be Dedicated.** The amount of land to be dedicated or fees to be paid in lieu thereof shall bear a reasonable relationship to the use of the park and recreation facilities by the future inhabitants of the subdivision (Map Act Section 66477).

8. **Formula for Calculating Amount of Land.** In accordance with the Map Act (Section 66477(a)(2)), the amount of land to be dedicated shall be calculated according to the following formula:

A × B = Land to be dedicated

a. "A" means the park and recreation area required per dwelling unit, based on the type of dwelling units of the proposed subdivision and the park area per 1,000 city residents, which is calculated as follows:

   i. The park area of the city is determined to be three acres per 1,000 people, or .003 acres per person.

   ii. The park and recreation area required per dwelling unit is established as follows:

      (1) **Single-Unit Development.** For dwelling units to be constructed on property zoned RS each unit is assigned 3.11 people. Therefore, A = 3.11 x .003 = 0.00933 acres per unit.

      (2) **Multi-Unit Development.** For dwelling units to be constructed on property zoned other than RS, each unit is assigned 2.53 people. Therefore, A = 2.53 x .003 = 0.00759 acres per unit.

   iii. "B" means the number of dwelling units in the proposed subdivision. For the purpose of this section, the number of dwelling units in the proposed subdivision shall be determined as follows:

      (1) **Single-Unit Development.** The number of dwelling units shall equal the number of parcels indicated on the Final Map.

      (2) **Multi-Unit Development.** The number of dwelling units shall equal the maximum number of dwelling units allowed under that zone.

      (3) **Condominium Developments.** The number of dwelling units shall equal the number of condominium units indicated on the Final Map, or the maximum number of dwelling units allowed under that zone if the Final Map does not indicate the number of units.

9. **In-Lieu Fees.** If fees are paid in lieu of land dedication, such fees shall be equal to the then-current Parkland Dedication In-Lieu Fee.

10. **Credits.**

    a. Per the Map Act (Section 66477(a)(9)), if a subdivider provides park and recreational improvements, the value of the park and recreational improvements, together with any equipment located thereon, shall be a credit against the payment of fees or dedication of land otherwise required by this section.

    b. To be authorized and approved by the City, park and recreational improvements and equipment provided by subdividers pursuant to this section shall be generally consistent with applicable principles and standards for local and neighborhood parks contained in the General Plan, as determined by the City.

    c. **Condominiums.** In accordance with the Map Act (Section 66477(e)), common interest developments such as community apartments, condominiums, and stock cooperatives, shall be eligible to receive a credit not to exceed 25 percent, as determined by the City, against the land required to be dedicated, or the amount of the fee imposed pursuant to this section, for the value of private open space within the development which is usable for active recreational uses. For the purposes of this section, private open space usable for active recreational uses means private open space that is:

        i. At least ¾ of an acre in area with the smallest dimension being at least 100 feet clear, excluding front and street side yards normally required by zoning provisions;

        ii. Owned and maintained by a homeowners' association, available to all residents of the subdivision without restriction, and designated for park and recreational purposes by recorded covenants which run with the land and cannot be defeated or eliminated without consent of the Council;

        iii. Suitable for active park and recreation purposes taking into consideration such factors as shape, topography, access, and improvements proposed; and

        iv. Generally consistent, as determined by the City, with applicable principles and standards for parks contained in the General Plan.

11. **Procedures.**

    a. Prior to approval of a subdivision, the Review Authority shall consider:

        i. The amount of land required for open space purposes;

        ii. That a fee be charged in lieu of land;

        iii. That a combination of land and fee be required; and

        iv. The location of the park land and, where appropriate, the siting and conceptual design of the park facilities appurtenant thereto, to be dedicated or used in lieu of fees.

b. At the time of approval, the Review Authority shall determine whether land, in-lieu fees, or a combination of land and fees shall be dedicated and/or paid by the subdivider.

c. The Review Authority may approve, modify, or disapprove the recommendations of City staff; provided, however, that any modification of the recommendation not previously considered shall first be referred back to City staff for further report and recommendation.

12. Off-Site Dedication. Dedication of land outside of the subdivision may be authorized by the City, by action on the Tentative Map and be credited toward the developer's park land dedication requirement pursuant to this section.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 69, eff. 7-27-25).

Sec. 15-3702. ACCEPTANCE OF DEDICATIONS.

A. At the time of approval by the Council, the Council shall accept, accept subject to improvement, or reject dedications and offers of dedications that are made by a statement on the map, and the City Clerk shall certify or state on the map the action taken by the Council.

B. Acceptance of offers of dedication on a Final Map and the transfer of title to the property so accepted shall not be effective until the Final Map is duly recorded under the provisions of the Map Act (Section 66439) and this Subdivision Ordinance.

C. As a condition precedent to the acceptance of any streets or easements, the City Engineer or the Council may require that the subdivider, at subdivider's option, to either improve or agree to improve said streets or easements in accordance with Article 38, Improvements and Security. Upon the execution by the subdivider of such an agreement and the posting of improvement security required by Section 15-3806, Improvement Agreements and Security, the map may be approved as set forth in this section and recorded in the office of the County Recorder.

D. If at the time the Final Map is approved, any streets, paths, alleys, public utility easements, rights-of-way for local transit facilities such as bus turnouts, benches, shelters, landing pads, and similar items, which directly benefit the residents of a subdivision, or storm drainage easements are rejected, subject to Section 771.010 of the Code of Civil Procedure as may be amended, the offer of dedication shall remain open and the Council may by resolution at any later date, and without further action by the subdivider, rescind the action by the City Engineer or Council and accept and open the streets, paths, alleys, public utility easements, rights-of-way for local transit facilities such as bus turnouts, benches, shelters, landing pads, and similar items, which directly benefit the residents of a subdivision, or storm drainage easements for public use, which acceptance shall be recorded in the office of the County Recorder.

E. If a map showing a reversion to acreage of the tract is subsequently filed for approval, any offer of dedication previously rejected shall be deemed to be terminated upon the approval of the map by the Council subject to the reversion to acreage procedures of Article

1, Chapter 6 of the Map Act. If a map showing a resubdivision is subsequently filed for approval, any offer of dedication previously rejected shall be deemed to be terminated upon approval of the map by the City Engineer pursuant to this section. The map showing a reversion to acreage or resubdivision shall contain a notation identifying the offer or offers of dedication terminated by this subsection.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3703. RESERVATIONS.

A. **General.** As a condition of approval of a Tentative Map, the subdivider shall reserve sites, appropriate in area and location, for parks, recreational facilities, fire stations, libraries, water wells, sewer lift stations, etc. according to the standards contained in this section.

B. **Standards for Reservation.** Where a park, recreational facility, fire station, library, or other public use is shown on the General Plan, the subdivider may be required by the City to reserve sites determined by the City to be in accordance with the policies and standards of the Plan and the following:

1. The reserved area must be of such size and shape as to permit the balance of the property to develop in an orderly and efficient manner;
2. The amount of land reserved shall not make development of the remaining land held by the subdivider economically unfeasible; and
3. The reserved area shall conform to the General Plan, and shall be in such multiples of streets and parcels as to permit an efficient division of the reserved area in the event that it is not acquired within the prescribed period.

C. **Procedure.** Pursuant to the Map Act (Section 66480), the public agency for whose benefit an area has been reserved shall, at the time of approval of the final, enter into a binding agreement to acquire the reserved area within two years after the completion and acceptance of all improvements, unless the period of time is extended by mutual agreement.

D. **Payment.** The purchase price shall be the market value of the reserved land at the time of the filing of the Tentative Map, plus the taxes against the reserved land from the date of the reservation and any maintenance costs incurred by the subdivider including interest costs incurred on any loan covering the reserved area.

E. **Termination.** If the public agency for whose benefit an area has been reserved does not enter into a binding agreement, as provided for in the Map Act (Section 66480), the reservation of the area shall automatically terminate.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 38 IMPROVEMENTS AND SECURITY

Sec. 15-3801. Purpose.
Sec. 15-3802. Improvements Required.
Sec. 15-3803. Submittal and Review of Plans.
Sec. 15-3804. Installation of Improvements.
Sec. 15-3805. Inspection of Improvements.
Sec. 15-3806. Improvement Agreements and Security.
Sec. 15-3807. Form of Security.
Sec. 15-3808. Completion of Improvements.

Sec. 15-3801. PURPOSE.

This Division provides standards for the preparation and review of improvement plans, the installation of improvements, and for security to guarantee installation of the improvements.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3802. IMPROVEMENTS REQUIRED.

The subdivider shall construct or cause to be constructed all on-site and off-site improvements required as a condition of approval of any Tentative Map, Parcel Map, or other division of land subject to the provisions of this Subdivision Ordinance or the Map Act according to standards approved by the City.

A. **Preparation and Content.** After the approval of a Tentative Map and before the construction of any improvements, the subdivider shall submit plans to the City as follows:

1. Improvement plans shall be prepared by a California registered professional engineer;
2. Any drawings, specifications, calculations, design reports, and other information required by the City Engineer;
3. Grading, drainage, erosion, and sediment control, and a storm water pollution prevention plan (SWPPP) for the entire subdivision; and
4. The improvement plan/specification checking and construction inspection fees required by the City's Fee Schedule.

B. **Requirements.** All improvements as may be required as conditions of approval of a Tentative Map, Tentative Parcel Map, or City ordinance, together with, but not limited to, the following shall be required of all subdivisions.

1. As a condition of approval of a Tentative Map or Tentative Parcel Map, there may be imposed a requirement that improvements installed by the subdivider for the benefit of the subdivision contain supplemental size, capacity, number or length for the benefit of property not within the subdivision and that those improvements be dedicated to the public, subject to the provisions of the Map Act (Sections 66485-66489).

2. All improvements shall be constructed to meet City standards and specifications.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3803. SUBMITTAL AND REVIEW OF PLANS.

A. **Submittal.** Improvement plans shall be submitted to the City Engineer and other appropriate reviewing agencies for review and approval. Upon the approval of improvement plans, the subdivider shall also submit to the City Engineer a detailed cost estimate of all improvements, based on guidelines provided by the City.

B. **Review and Approval.** Improvement plans shall be reviewed and approved by the applicable agency within the time limits specified by Map Act (Section 66456.2).

C. **Effect of Approval.** The final approval of improvement plans shall be required before approval of a Parcel or Final Map. The approval of improvement plans shall not bind the City to accept the improvements nor waive any defects in the improvements as installed.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3804. INSTALLATION OF IMPROVEMENTS.

The subdivider shall improve, or execute a secured written agreement to improve, all streets, highways, and public ways in the subdivision. Improvements shall be installed to permanent line and grade to the satisfaction of the City Engineer in accordance with the Standard Specifications. The minimum improvements which the subdivider shall make or agree to make, prior to acceptance and approval of a Parcel Map or a Final Map, shall consist of:

A. **Grading.** Grading of streets and alleys, installation of street lighting, drainage pipes or lines, and drainage structures.

B. **Curbs, Gutters, and Sidewalks.** Installation of sidewalks, curbs, gutters, and driveway approaches, unless the Standard Specifications for the Street Section do not require the improvements.

C. **Surfacing.** Surfacing of a width and quality suitable for the particular type of street or alley as established in specifications adopted therefore.

D. **Pedestrian Ways.** Pedestrian ways, including paving, landscaping, and fences and walls as may be required.

E. **Bikeways.** Bikeways as may be required.

F. **Trails, Greenways, or Parks.** As may be required.

G. **Water System.** A water system of sufficient design and capacity to furnish an adequate water supply for each lot in the subdivision and for adequate fire protection to the area, as determined by the City Engineer.

H. **Sewer Facilities.** Sanitary sewer facilities and connections for each lot.

I. **Utilities.** Services from all utilities for each lot, made in such manner that will avoid or minimize disturbance of completed street improvements.

J. **Median Island Landscaping.** The installation and planting of median islands, as may be required.

K. **Street Trees.** The planting of street trees in planting strips and landscaping in frontage road islands and in all required landscape areas, as may be required.

L. **Street Signs.** The installation of street signs as may be required.

M. **Street Lighting.** The installation of an underground street lighting system approved by the City Engineer, provided that undergrounding shall not be required for that portion of the system located in a public right-of-way, where the Council makes the following findings:

1. The frontage of any lot upon which the underground street lighting system would be installed is within an area in which there currently exists an adequate overhead serviced street lighting system; and

2. The underground lighting system is not required based upon the nature of the neighborhood, the amount and type of existing development, and the existing or potential traffic in the area.

N. **Irrigation and Drainage Canals.** All irrigation or drainage canals of a capacity which can be accommodated by a pipeline having an inside diameter of 54 inches or less shall be piped and trash racks shall be installed at all newly constructed headwalls or pipe inlets.

O. **Railroads.** If in any subdivision there is a railroad grade crossing, adequate right-of-way, as determined by the City, shall be reserved for grade separation as determined by the City Engineer.

P. **Drainage.** The subdivider either shall pay drainage fees at the time of the approval of the Final Map, or shall agree in the subdivision agreement to pay such sum within 30 days after the approval of the Final Map. Whenever, in the opinion of the City Engineer, the subdivision and improvements will cause a flooding or drainage problem which will not be solved within a reasonable time by the Fresno Metropolitan Flood Control District (FMFCD) or other public agency, the subdivider shall be required to dedicate or allocate sufficient land and provide temporary facilities to alleviate the flooding or drainage problem, and to provide a single payment of funds for the maintenance thereof (by depositing sufficient money with the City to reasonably cover said costs). In addition, said land and facilities shall be required to remain in such use until the water can be handled or disposed of by facilities constructed by the FMFCD or other public agency.

Q. **Exemption from Improvements.** The following described exemptions apply only to improvements and payments required by this section at the time of the division of land described in this article and are not exemptions from any other requirement.

1. When property is divided solely because of acquisition of lands by governmental agencies for public projects, purposes or improvements, only the parcel or parcels so acquired need be provided with the improvements or be the basis for payments required by Subsection B.

2. The improvements and payments required by this shall not be required on or in front of any undeveloped portion of a net acreage of 10 acres or more which exists after the division of land.

3. The improvements and payments required by Subsection B are not required in whole or in part or in front of any parcel of more than four or less than 10 net acres which exists after the division of land, whenever the City Engineer in his or her discretion determines that the omission of all or part of the improvements will not be materially detrimental to the public welfare, safety, or convenience, will not adversely affect the rights of adjacent property owners or occupants, or be injurious to property or improvements in the area, and that the installation thereof would be premature in relation to the public needs of the present and immediate future.

R. **Deferment of Improvements.** The City Engineer may permit postponement of any or all of the improvements required by Subsection B when plans have been formulated for a federally assisted neighborhood improvement program which will accomplish or financially aid accomplishment of the installation of the improvements, and the owner enters into a recordable written agreement in a form approved by the Director waiving the parcel owner's right to protest the formation of an assessment district to construct the improvements and waiving their rights for time payment for the cost to construct improvements should the program not proceed within three years and the City Engineer causes the improvements to be installed at the owner's expense as provided for in Chapter 27 of Part 3 of Division 7 of the Streets and Highways Code.

S. **Improvement Plans and Profiles.** The plans and profiles of all improvements to be installed by the subdivider in, over, or under any street or right-of-way, easement, or parcel of land where improvements are required or proposed, shall be approved by the City Engineer. If all plans and profiles are not filed at the time of filing the Final Map, the Improvement Security shall include a guarantee that the remaining plans and profiles will be prepared in accordance with the requirements of the City Engineer.

T. **Agreement.** An agreement to make the improvements required under this section shall be in such form and executed in such manner as may be required by the Director, as approved by the City Attorney, and shall be secured by a bond, cash

deposit, or other security as may be approved by the Director and City Attorney. The agreement may provide for improvements to be installed in phases and reasonable time limits may be placed upon any and all construction.

U. **Deferral of Sidewalks to Occupancy.** At the request of the Subdivider, the Director may determine that it is appropriate to allow the deferral of sidewalk construction, including driveway approaches and street trees, along the frontage of certain single-unit residential lots until after the acceptance of the subdivision by the City. The Director may only accept the subdivision and defer sidewalk construction, including driveway approaches and street trees, to occupancy of the homes provided that all of the following conditions have been satisfied:

1. The construction of the sidewalk along said single-unit residential lots is made a condition upon the building permit for the particular home, with completion of the sidewalk, including the driveway approach and street trees, required prior to occupancy.
2. All other conditions of approval have been satisfied by the subdivider and all other public improvements have been completed.
3. All sidewalks along residential side yards, or any side of the lot that does not have a planned driveway approach, have been constructed.
4. All sidewalks along the perimeter major streets have been constructed.
5. All sidewalks along the entry streets to the subdivision have been constructed, from the major street to the first local residential street intersection within the subdivision.
6. Either (a) All sidewalks have been constructed on the side of the street containing street lighting or underground street light conduit; or (b) all underground street light conduits have been protected by an alternative method to the satisfaction of the Director.
7. All sidewalks have been constructed along the complete frontage of any temporary ponding basins and any outlots being dedicated to the City, including but not limited to park sites and well sites.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2024-003, § 1, eff. 4-1-24; Am. Ord. 2025-024, § 70, eff. 7-27-25).

Sec. 15-3805. INSPECTION OF IMPROVEMENTS.

All improvements shall be inspected by the City per adopted policies, procedures, ordinances, or under other circumstances as determined by the City Engineer.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3806. IMPROVEMENT AGREEMENTS AND SECURITY.

If all required improvements, engineering, and inspections are not satisfactorily completed before a Parcel or Final Map is approved, the subdivider shall, before the approval of the

Parcel or Final Map, enter into an agreement with the City whereby in consideration of the acceptance by the Council of the streets, easements, and any other land offered for dedication, the subdivider agrees to furnish the equipment, labor, and material necessary to complete the work within the time specified in the agreement in compliance with Map Act (Section 66499.3).

A. **Required Security.** Improvement security must be furnished to guarantee that the improvement work or act specified in the agreement or contract identified will be completed and that all stakes and monuments will be set as may be required by the City.

B. **Performance Security.** The improvement security for faithful performance shall be:

   1. One hundred percent of the total estimated cost of the improvement or act to be performed; and

   2. Five percent of such amount shall be cash or a certificate of deposit conditioned upon the faithful performance of the act or agreement.

C. **Payment Security.** The improvement security for payment shall be in the amount of 50 percent (minimum) of the total estimated cost of the improvement or act to be performed securing payment to the contractor, the subcontractors, and to persons furnishing labor, materials, or equipment to them for the improvement or the performance of the required act.

D. **Warranty Security.** Upon performance of the act or final completion and acceptance of the required work, the following amount, in the form of cash or a certificate of deposit, shall be retained by or furnished to the City as security for guarantee and warranty of the work for a period of one year following the completion and acceptance thereof against any defective work or labor done, or defective materials furnished:

   1. Five percent of the first $50,000 of the total estimated cost of the improvement or act to be performed; plus,

2. Three percent of the next $50,000; plus,

3. One percent of the next $400,000; plus,

4. Half of one percent of the total estimated cost of the improvement or act to be performed exceeding $500,000.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3807. FORM OF SECURITY.

Security required pursuant to this article shall be in such form as may be required by the City Engineer, and approved by the City Attorney, and may include bond, or bonds by one or more duly authorized corporate sureties, certificate of deposit, or cash deposit.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3808. COMPLETION OF IMPROVEMENTS.

A. **Parcel Maps.**

1. Requirements for the construction of improvements shall be noticed by certificate on the Parcel Map, on the instrument evidencing the waiver of such Parcel Map, or by separate instrument and shall be recorded on, concurrently with, or prior to the Parcel Map or instrument of waiver of a Parcel Map being filed for record.

2. The construction of such improvements shall be required prior to subsequent issuance of a permit or other grant of approval by the City for the development of such parcel. Any agreement shall be subject to review and approval of the City Attorney.

3. The Director may require fulfillment of such construction requirements within a reasonable time following approval of the Parcel Map and prior to the issuance of a permit or other grant of approval for the development of a parcel upon a finding by the City Engineer that fulfillment of the construction requirements is necessary for reasons of public health and safety or as a prerequisite to the orderly development of the surrounding area.

B. **Final Maps.**

1. If the required improvement work is not completed to the satisfaction of the City Engineer before the Final Map is filed, the owner or owners of the subdivision shall concurrently with the approval of such map enter into an agreement with the City agreeing to have the work completed within the time specified in said agreement. Said agreement may provide for the improvements to be installed in units for extensions of time under specified conditions, or for the termination of the agreement upon a reversion of the subdivision or a part thereof to acreage. The subdivider, in lieu of the agreement to construct improvements may enter into a contract with the City by which they agree within such time as may be provided in the contract to initiate and to consummate proceedings under an appropriate special assessment act

for the formation of a special assessment district covering the subdivision or part thereof for the financing and construction of designated improvements upon the streets or easements dedicated by the map.

2. Any such agreement or contract shall by its terms provide for the acceptance of the work as it progresses and for partial withdrawal of any deposit in bonds or money upon certification of the City Engineer, in a manner similar to cash payments under cash contracts and under rules established by the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 39 COMMON INTEREST DEVELOPMENTS (CONDOMINIUMS AND CONVERSIONS)

Sec. 15-3901. Purpose.
Sec. 15-3902. Condominiums.
Sec. 15-3903. Standards for New Condominiums and Condominium Conversions.
Sec. 15-3904. Required Reports for Condominium Conversions.
Sec. 15-3905. Site Requirements for Residential Condominiums.
Sec. 15-3906. Building and Mechanical Conditions.
Sec. 15-3907. Condition of Equipment and Appliances.
Sec. 15-3908. Processing and Consideration of Applications.
Sec. 15-3909. Notice of Intent to Convert.
Sec. 15-3910. Tenant and Buyer Protection.
Sec. 15-3911. Scheduling of Hearing(s).
Sec. 15-3912. Recommendation and Decision.
Sec. 15-3913. Findings.
Sec. 15-3914. Expiration of Residential Condominium Conversion Permit.
Sec. 15-3915. Commercial and Industrial Condominium Conversions.

SEC. 15-3901. PURPOSE.

This purpose of this article is to establish the requirements for applications for the creation of a condominium or other common interest residential development, including a community apartment project, or planned development, as provided by the Map Act (Section 66424). This article applies to the construction of a new structure and the conversion of an existing structure to a condominium, consistent with the requirements of the Map Act. (Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3902. CONDOMINIUMS.

A. **Condominium Application.** When a structure is proposed at the time of construction as a condominium, community apartment project, or stock cooperative, a Tentative Map for the project shall be filed in the same form, have the same contents and accompanying data and reports and shall be processed, approved or disapproved in the same manner as a subdivision per Article 33, Tentative Parcel and Tentative Map Filing and Processing.

B. **Condominium Conversion Application.** A conversion shall require the approval of:

1. **Parcel Map.** A Parcel Map may be waived for a condominium conversion in compliance with the Map Act (Section 66428(b)), or for the conversion of a mobile home park in compliance with the Map Act (Section 66428.1). If a Parcel Map is waived, a Tentative Map shall be required.

2. **Application for Tentative Map.** An applicant shall submit a Tentative Map or Tentative Parcel Map for a residential condominium conversion project which shall include the items identified in Section 15-3904, Required Reports for Condominium Conversions.

3. **Conditional Use Permit.** A Conditional Use Permit shall be filed which shall constitute a Condominium Conversion Permit.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 58, eff. 1-18-19).

SEC. 15-3903. STANDARDS FOR NEW CONDOMINIUMS AND CONDOMINIUM CONVERSIONS.

A. **Warranty and Reserves.**

1. **Warranty for Improvements.** The subdivider shall provide to the condominiums' association and/or purchaser a one-year warranty on all physical improvements required under this article.

2. **Long Term Reserves.** Prior to approval of the Final Map, or Parcel Map if no Final Map is required, the subdivider shall provide evidence to the City that a long-term reserve fund for replacement has been established in the name of the condominiums' association. Such fund shall equal two times the estimated monthly condominium's assessment for each unit.

B. **Covenants, Conditions, and Restrictions.** Project covenants, codes, and restrictions (CC&Rs) in accordance with Article 40, Covenants, Conditions, and Restrictions, shall be developed, and shall be reviewed and approved by the City Attorney and Director prior to approval of the Final Map or Parcel Map.

C. **Budget for Maintenance.** The subdivider shall provide to the condominiums' association and/or purchaser a copy of the approved proposed budget for maintenance and operation of common facilities, plus reserves, including the estimated monthly costs to the owner of each unit, projected over a five-year period. Such budget shall be reviewed or prepared by a professional management firm or by a qualified individual familiar with costs of similar properties, and that firm or person shall provide a statement of recommendations on the budget, together with a statement of professional qualifications.

D. **Relocation Assistance Program.** For residential condominium conversions where the residential units are more than six months old, the applicant shall prepare a Relocation Assistance Program (RAP) detailing the relocation assistance which will be provided. The RAP shall be prepared in a manner which is responsive to tenant composition, sales policy to tenants, lengths of tenancies, and number of tenants willing to purchase a unit in the project. The program shall include, but not be limited to, the following items and additional items required in the Map Act:

1. A relocation fee equal to a minimum of two months' rent for each unit which is vacated due to the conversion, after receipt of the 180 day notice of conversion prior to termination of tenancy required by the Map Act (Section 66427.1);

2. Lifetime leases for elderly tenants (ages 62 years and older) and extended leases for student tenants, of the unit occupied by any such tenant, at the rate in existence at the time the Final Map is approved. The rental rate may be increased during the term of the lease only in the manner provided in detail by the subdivider in the

program and approved by the Council at the time the tentative subdivision map is approved, provided that in no event shall any such increase be greater than eight percent per year.

a. Extended leases for students shall be required for the period of time of enrollment in courses totaling at least two-thirds of the units/credits required to be considered a full time student, during the school year;

b. Extended leases for family with school-aged children until 14 days after the start of summer break.

3. A report describing the following:

a. The extent that tenants will be reimbursed for the expenses of moving;

b. The extent that tenants will be individually assisted in finding replacement housing;

c. The extent that assistance payments will be made to those tenants who are unable to find comparable replacement housing, and the conditions of such assistance payments;

d. The extent that long-term leases or extra time to locate housing will be allowed to tenants;

e. The number of lifetime leases secured by elderly tenants.

f. Any other plans of the subdivider to provide for assistance to low-income tenants, families with children in school, students, elderly tenants, tenants with disabilities, or long-term tenants; and

g. The extent that the provisions of the RAP will be applicable to tenants who begin their tenancies after and with knowledge of the filing by the applicant of the notice of intent to convert.

4. The developer/owner/applicant must file the required relocation assistance plan and a summary of all assistance provided demonstrating compliance with required relocation assistance plan prior to new Condo occupancy.

E. **Restriction of Rent Increases.** While an application for a condominium conversion is pending, the rental rate for existing residential units shall not be increased.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 59, eff. 1-18-19).

SEC. 15-3904. REQUIRED REPORTS FOR CONDOMINIUM CONVERSIONS.

A. **Pre-Application Inspection Report.** The following shall occur prior to an application being submitted for a conversion:

1. The subdivider shall apply to the Building Official for an inspection of the proposed residential condominium conversion project. The inspection shall cover the applicable building, safety, and housing requirements of Section 15-3904-B, Physical Elements.

2. The subdivider shall include with the building inspection application a complete set of building plans, including electrical wiring and plumbing diagrams, of the buildings of the project as they presently exist.

3. The Building Official shall perform a complete inspection and shall make a written report of their findings as to compliance or noncompliance with the requirements of Section 15-3903, Standards for New Condominiums and Condominium Conversions.

4. The final report prepared by the Building Official shall be submitted with the application.

B. **Physical Elements.** A report shall be provided, detailing the following:

1. The structural condition of all physical elements as they exist at the time of application.

2. Report of proposed improvements as they are to be made by the subdivider prior to the sale of any units in order to refurbish and restore the project and to achieve a high degree of appearance, safety, comfort, and utility. Such elements include, but are not limited to: foundations, interior and exterior walls, ceilings, floors, roofs, insulation, sound transmission characteristics, water heaters, furnaces, air conditioners, recreational facilities and equipment, and maintenance equipment. Regarding each such element, the report shall state the age and present condition, the cost of maintenance and replacement, and the proposed means of paying for the maintenance or replacement of the element.

C. **Project Plan.** A plan prepared by a licensed civil engineer or architect, containing the following information pertaining to the project as it exists at the time of application and as it is proposed:

1. Site and structure information, including all buildings, structures, and number and sizes of residential dwelling units;

2. Accessory facilities information showing the locations and describing the nature and extent of recreation facilities, laundry facilities, maintenance facilities, office areas, and storage areas;

3. Easement information showing the locations and dimensions of public utility, water, sewer, and drainage easements;

4. Parking and access information, showing access, the locations, dimensions, and total number of covered and/or uncovered parking spaces provided, and the dimensions and locations of all aisles, driveways, turning areas, and obstructions, which may include columns, poles, walls, and trees;

5. Open space and yards, including pools and recreational facilities;

6. Landscaping;

7. Refuse collection facilities;

8. On-site lighting; and

9. Fencing.

D. **Residential Tenant Information.** A report shall be submitted containing the name and address of each tenant and general information about the tenants of the proposed project including, but not limited to:

1. Total number of occupants;
2. Makeup of existing tenant households, including:
   a. Size of households;
   b. Lengths of residence;
   c. Ages of tenants;
   d. Number of tenants estimated to be receiving federal or State rent subsidies;
   e. Number of tenants with disabilities; and
   f. Number of elderly tenants, and number of student tenants.
3. Detailed history of the project, including vacancy rates, rents, and rent increases applicable to each unit during the 24 months preceding the application; and
4. Proof of compliance with the provisions of the Map Act relating to noticing of tenants and future tenants of intention to convert.

E. **Residential Sales Information.** The following information regarding unit sales shall be provided:

1. Proposed sales price of units;
2. Proposed owners' association fees;
3. Statement regarding policy of sales to families with minor children; and
4. Terms of sale and discounts, if any, to be offered to existing tenants.

F. **Project Documents.** The applicant shall submit the proposed declaration of covenants, conditions, and restrictions to be applied to the project. The declaration shall include, but not be limited to, the information required pursuant to Article 40, Covenants, Conditions, and Restrictions, and the following information:

1. An agreement providing for common area maintenance including recreational facilities, landscaping of the project and all public right-of-way abutting the project, and all structural, mechanical, and utility elements of the proposed project, together with an estimate of initial assessment fees anticipated for the initial and future maintenance and replacement of such facilities and elements.
2. A requirement that the owners' association maintain all private water, sewer, and storm drainage lines serving the project, and pay all charges for water, sewer, and waste collection service for the project.
3. A provision granting emergency access to the project site by, and right of entry to, the City.

4. A provision granting to the City the right to enforce the declaration.

5. The assignment of parking and storage spaces.

6. A grant of all easements and cross-easements for access, utilities, and maintenance necessitated by the conversion.

7. A requirement that the owners' association provide or require adequate fire insurance protection for the project, including each structure, each unit and its contents, and the common area and facilities.

8. A provision prohibiting the alteration of any party wall or fixture along any party wall, or the doing of anything which may impair its integrity as a fire wall.

9. A provision granting the City the right to veto any amendment to the declaration with respect to any of the requirements of this subsection.

10. Additional Information. Any other information deemed necessary by the Director that will assist in determining whether the proposed project will be consistent with the purposes of this article.

11. Unavailability of Information. When the applicant can demonstrate that information required by this section is not available, this requirement may be modified by the Director if they determine that such modification is consistent with the purposes of this article.

G. **Mobile Home Parks.** Reporting on the conversion of Mobile Home Parks shall comply with Section 66427.5 of the Map Act.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 60—62, eff. 1-18-19).

SEC. 15-3905. SITE REQUIREMENTS FOR RESIDENTIAL CONDOMINIUMS.

The following requirements shall be satisfied prior to the approval of the Final Map; provided, however, that the Final Map may be approved subject to an agreement between the subdivider and the City guaranteeing the performance of the requirements and conditions prior to the sale of the first unit. These standards shall be required in all circumstances. If the site does not meet the strict application of the following standards, they shall be made conditions of project approval.

The following subsections (A-L) shall apply to new condominiums and Condominium Conversions.

A. **Building Materials.** Exterior cladding materials shall be brought into compliance with the standards of the Base District.

B. **Parking.** Parking shall be provided in accordance Article 24, Parking and Loading.

1. **Exceptions.** Uncovered parking may count towards the satisfaction of the off-street parking requirements, however the overall number of stalls may not be decreased to less than prescribed in Article 24, Parking and Loading.

C. **Lighting.** An exterior lighting plan shall be submitted. All parking areas, drive aisles, walkways, and communal areas shall be properly lit per Section 15-2015, Outdoor Lighting and Illumination. If the site abuts an alley, alley lighting shall also be provided.

D. **Fences/Walls.**

1. Fences and walls shall comply with Section 15-2006, Fences, Walls, and Hedges.

2. Screen walls shall be required between all residential uses and the subject site.

E. **Open Space/Landscaping.** Common Open Space and Landscaping (including trees), including irrigation systems, shall comply with the base district and with Article 23, Landscape.

F. **Private Open Space.** In addition to the required common open space, a minimum of 75 percent of all dwelling units must have a minimum 50 square feet of private, exterior, usable open space directly accessible from the unit, with no dimension less than five feet. This private open space may be located in a required front, street side or rear yard, but shall be no closer than nine feet to the lot line. At grade private patios shall be provided with an irrigation system and/or a hose bib. Private open space areas shall provide a minimum of one exterior light.

G. **Laundry Facilities.** A laundry room shall be provided in each unit, or if common laundry areas are provided, such facilities shall consist of not less than one automatic washer and dryer for each five units or fraction thereof.

H. **Private Storage Space.** Each dwelling unit shall have at least 120 cubic feet of enclosed, weather-proofed, and lockable private storage. Such space shall be in addition to closet space (i.e., bathroom, linen/coat closet, bedroom closet) normally expected within each unit. The storage units shall be attached to the dwelling unit and shall be constructed of similar material of the unit. If the unit provides a garage, the garage shall satisfy this requirement.

I. **Pedestrian Access.** Pedestrian access shall be provided to Major Streets, trails, schools, on-site amenities, etc.

J. **Parking Lot Shading.** Parking Lot Shading shall comply with Article 24, Parking and Loading.

K. **Rooftop Equipment.** Rooftop equipment shall be incorporated into the design of the roof and/or screened by a parapet that is architecturally integral to the building.

L. **Refuse Collection Areas.** Refuse Collection Areas shall comply with Section 15-2016, Trash and Refuse Collection Areas. Refuse areas shall be strategically located to best serve the residents.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3906. BUILDING AND MECHANICAL CONDITIONS.

The following shall be inspected and approved by the Building Official.

A. **Housing Regulations.** The project shall conform to the applicable standards of the City Housing Code.

B. **Electrical Requirements.**

1. All indoor and outdoor receptacles shall have three-wire grounding.
2. Ground-fault circuit interrupters shall be provided in areas as required by the Building Official.
3. All bedrooms shall have at least four receptacles.
4. The combined living and dining room area shall be provided with at least four receptacles.
5. A receptacle shall be provided for kitchen counter space of more than 30 linear inches.
6. Separate electrical meters and overcurrent devices shall be provided for each unit.
7. Any other electrical systems deemed necessary.

C. **Plumbing Requirements.** All cross-connections shall be corrected.

D. **Building Requirements.**

1. Access shall be provided for the entire attic area.
2. Draft stops shall be provided in the attic area.
3. All glass doors and panels subject to human impact shall comply with Federal Glazing Standards.
4. All applicable provisions of the Municipal Code relating to stairs, exits, and occupant loads, and to fire extinguishing systems.
5. Smoke/Carbon Monoxide alarms, of a type and in numbers and locations as per the Building Code as approved by the Building Official, shall be installed.
6. Each sleeping area shall be provided with a window of a size and in a location which will allow its use as an emergency exit.
7. Compliance with the applicable provisions of the California Fire Code, as adopted in Chapter 10, Article 5 of the Fresno Municipal Code, shall be required. The installation of fire sprinklers is required in accordance with NFPA 13R for multi-unit residential buildings. For buildings with existing fire sprinkler systems, all portions of the system shall be inspected, repaired as necessary, and certified as to full compliance with applicable standards by a licensed fire sprinkler contractor.
8. The applicable provisions of relevant State and local codes.

E. **Mechanical Requirements.** All combustion air for water heaters, furnaces, and clothes dryers shall be provided from outside the building.

F. **Energy Requirements.**

1. R-11 wall insulation and R-19 ceiling insulation shall be provided for each unit.
2. All exterior doors and windows shall be weather-stripped.
3. Heating and cooling air ducts shall be insulated according to the requirements of the Uniform Mechanical Code.
4. Heating and cooling air duct joints shall be sealed with pressure-sensitive tape.
5. Heat pumps with electric resistance back-up shall be controlled with a two-stage thermostat.

G. **Noise Requirements.** An interior noise level of no more than 45 dB CNEL attributable to exterior sources shall be allowable in any dwelling unit.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 71, eff. 7-27-25).

Sec. 15-3907. CONDITION OF EQUIPMENT AND APPLIANCES.

A. **Identification of Equipment.** Mechanical equipment shall be permanently identified as to the area or space served.

B. **Condition of Equipment.** The subdivider shall provide written certification to the buyer of each unit at the close of escrow that any dishwashers, garbage disposals, stoves, refrigerators, hot water tanks, furnaces, and air conditioners which are provided are in operable working condition as of the close of escrow, and shall state specifically the warranty provisions which are included. At such time as the owners' association takes over management of the project, the subdivider shall provide written certification to the association that any swimming pool and pool equipment and any appliances and mechanical equipment to be owned by the association are in operable working condition, and shall specifically include the warranty to be applied thereto.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3908. PROCESSING AND CONSIDERATION OF APPLICATIONS.

A. **Pre-Application, Application Filing, and Completeness Review.** Refer to Section 15-3302, Form and Contents, 15-3304, Pre-Application Consultation, and 15-3305, Application Filing and Completeness Review.

B. **Referrals and Review.** Refer to Section 15-3307, Referrals and Review.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-3909. NOTICE OF INTENT TO CONVERT.

A. **Obligation to Provide Notice of Intent to Convert Residential Real Property.** The subdivider shall provide notice of intent to convert to all existing and/or prospective tenants and sublessees, at the subdivider's expense, in compliance with this section and Sections 66452.9 and 66452.51 of the Map Act.

B. **Approval of Notice.** The Director shall approve the notice of intent to convert before it is sent to the tenants.

C. **Contents of the Notice of Intent to Convert.** The notice of intent to convert shall be submitted with the application for a residential condominium conversion. The form of the notice shall be as approved by the Director and shall contain not less than the following:

1. Name and address of current owner;
2. Name and address of the proposed subdivider;
3. Approximate date on which the Tentative Map is proposed to be filed;
4. Approximate date on which the Final Map is expected to be filed;
5. Approximate date on which the unit is to be vacated by nonpurchasing tenants;
6. Tenant's right to oppose the proposed project by petition to, and appearance and testimony before the Commission and/or Council;
7. Tenant's right to purchase;
8. Tenant's right of written notification to vacate;
9. Tenant's right to terminate lease;
10. Statement regarding rent increase limitation;
11. The Relocation Assistance Program required by Section 15-3903-D;
12. The sales information required by Section 15-3904-E;
13. A copy of Section 15-3913, Findings;
14. A list of resources for tenant relocation support; and
15. A list of nearby and comparable vacant residential units.

D. **Verification.** The subdivider shall provide the Director with satisfactory proof that the notice was given in compliance with this section.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, § 63, eff. 1-18-19).

Sec. 15-3910. TENANT AND BUYER PROTECTION.

A. **Right to Purchase.** As provided by the Map Act (Section 66427.1(b)), tenants, at the time the application is filed, shall be given a nontransferable right of first refusal to purchase the unit occupied by the tenant at a price no greater than the price offered to the general public; provided, however, that the subdivider may reserve the right to repurchase the unit at the same price if the subdivider offers a discount or special terms of sale to tenants, and the tenant sells or offers for sale the unit within six months of the date of the close of escrow for such unit.

B. **Rent Increase Limitation.** A tenant's rent shall not be increased more than eight percent per year from the time of filing of the application for a Tentative Map until relocation takes place, the subdivision is denied, the approved Tentative Map expires, or the subdivision is reverted to acreage.

C. **Conditions of Map Approval.** The information required by this article shall be conditions of any approved Tentative Map and requirements of the Final Map. The RAP shall specify that the plan will become effective upon the occurrence of the approval Final Map by the City, or the receipt by any tenant of a notice that tenancy will be terminated for purposes of conversion, whichever is earlier. Failure to comply with such conditions or any notice requirement as set forth in this article shall be grounds for denial of the Final Map and for denial of occupancy permits for individual units. In addition to any other findings required by law, no Final Map shall be approved unless the Council makes the findings required by the Map Act (Section 66427.1) relating to tenant noticing. Tenant concerns regarding the subdivider's failure to comply with conditions of the map approval and requirements of this article shall be investigated by the Department of Housing and Community Development.

D. **Buyer Information.** Prior to the execution of any agreement for sale, the subdivider shall provide each purchaser with a copy of the information required by this article. Copies of the report shall be made available at all times at the project sales office.

E. **Cooling Off Period.** Any tenant or other prospective buyer who signs a binding agreement for purchase shall be released without penalty from that obligation if, within 96 hours, the buyer notifies the seller in writing of his or her desire to rescind the agreement.

F. **Pest Report.** Prior to the signing of any binding agreement for purchase, a structural pest report shall be made available to the prospective purchaser.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3911. SCHEDULING OF HEARING(S).

A. **Notice and Hearing(s).** Following the review and recommendation by the Director, who shall consult the SRC, the Commission and Council shall conduct public hearings. Notice and conduct of the hearings shall comply with Section 15-3309, Decision. The City shall mail written notice of all public hearings conducted for the project to residents within the proposed project area.

B. **Timing.** In compliance with the Map Act (Section 66452.1), a public hearing on a Tentative Map shall be scheduled, and action shall be taken, within 50 days after:

1. The Tentative Map application has been deemed complete; and
2. The 50 day time period shall commence after certification of the environmental impact report, adoption of a negative declaration, or an environmental assessment that the project is exempt from the requirements of Division 13 (commencing with Section 21000) of the Public Resources Code.

C. **Distribution of Staff Report.**

1. In compliance with the Map Act (Section 66452.3), the staff report shall be made available and served to the subdivider and tenants of subject property at least three days before any hearing or action on the Tentative Map by the Commission.

2. Wherever the Map Act requires that each tenant be notified of either an upcoming hearing and/or a copy of a report of the pending conversion, the applicant, at their own expense, shall be responsible for providing such notification. Proof shall be provided to the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3912. RECOMMENDATION AND DECISION.

A. **Commission.** The Commission shall:

1. Consider the recommendations of the Director, any agency comments, and any public comment, including written and verbal testimony;

2. Review and evaluate each conversion as to its compliance and consistency with applicable provisions of this Development Code, the Municipal Code, the General Plan, any operative plan, or development plan, and the Map Act. The Commission's evaluation shall be based on the staff report, information provided by an environmental assessment, and any public comment, including written and verbal testimony received;

3. Make a recommendation on the proposed conversion to the Council.

B. **Council.** The Council shall take action on all application(s) and shall approve, conditionally approve, or deny the application.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3913. FINDINGS.

A. **Grounds for Approval.** In addition to the findings required by this Subdivision Ordinance, the Council shall make all of the following findings:

1. The proposed conversion complies with State regulations.

2. The proposed conversion is consistent with the General Plan and any applicable operative plan;

3. The conversion is consistent with the purposes of this article;

4. The proposed conversion complies with the strict application of this article, including the Property Development Standards; and

5. Each tenant has received or will receive a notice of the pending conversion in accordance with this article and the Map Act (Sections 66427.1 and 66452.3).

B. **Grounds for Denial.** The Council may deny an application for a residential condominium conversion upon making one or more of the following findings:

1. The overall design and physical condition of the condominium conversion do not achieve a high degree of appearance, safety, comfort, and utility;

2. The cumulative effect of the proposed conversion will cause a significant percentage of low- and moderate-income rental units to be removed from the city's housing stock;

3. The RAP proposed by the subdivider, will not sufficiently reduce the detrimental impact of the conversion on the tenants.

4. Vacancies in the project have been caused by the subdivider for the purpose of preparing the project for conversion, from and after the 24-month period preceding the application for the conversion, by means of substantive rent increases or substantive increases in the number of evictions or tenancies terminated by the subdivider;

5. Approval of the proposed project would cause the displacement of any of the following in an area where sufficient available comparable replacement housing does not exist:

    a. Families having minor children;

    b. Elderly tenants;

    c. Tenants with disabilities;

    d. Low-income tenants; or

    e. Student tenants during the school year.

6. The subdivider has engaged in discriminatory rental practices against persons within the groups referred to in Subparagraph 5 of this subsection. Discriminatory rental practices include, but are not limited to, refusal to enter into a lease, termination of an existing lease, and eviction from a leasehold.

7. Based upon information contained in the application, the report, and recommendations of the Director; or presented at the hearing, approval of the residential condominium conversions would be inconsistent with the purposes of this article and with the general health and well-being of the residents of the city.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3914. EXPIRATION OF RESIDENTIAL CONDOMINIUM CONVERSION PERMIT.

A condominium conversion permit shall lapse and become void 36 months after the date on which the permit became effective, unless a certificate of occupancy is issued prior to the expiration date. A condominium conversion permit may be extended by the Council upon the written request of the permittee prior to the initial expiration date.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-3915. COMMERCIAL AND INDUSTRIAL CONDOMINIUM CONVERSIONS.

A. **Purpose.** The ownership of commercial and industrial condominiums is distinguished by a sharing of responsibility that is not common to most other types of development. As a result, the purpose of this section is to establish criteria for the conversion of existing buildings to commercial or industrial condominiums to prevent problems inherent in community ownership that might be detrimental to the health, safety, and welfare of residents of such projects and the community at large.

B. **Applicability.** The regulations set forth in this section shall apply to the conversion of existing buildings into commercial or industrial condominiums. If a commercial or industrial condominium conversion is proposed in combination with a residential condominium conversion, the requirements of this section and Section 15-3902, Residential Condominiums, shall be read together, with the relevant requirements applying to the portions of the project.

C. **Application.** In addition to other required permit application material, the applicant of a proposed commercial or industrial condominium conversion project shall submit:

1. **Physical Elements Report.** A report shall be provided, detailing the structural condition of all physical elements of the proposed project as they exist at the time of application and as they are to be made by the subdivider prior to the sale of any units in order to refurbish and restore the project and to achieve a high degree of appearance, safety, comfort, and utility. Such elements include, but are not limited to: foundations, interior and exterior walls, ceilings, floors, roofs, insulation, sound transmission characteristics, water heaters, furnaces, air conditioners, recreational facilities and equipment, and maintenance equipment. Regarding each such element, the report shall state the age and present condition, the approximate useful remaining life, the cost of maintenance and replacement, and the proposed means of paying for the maintenance or replacement of the element.

2. **Project Plan.** A complete plan certified as to accuracy by a licensed civil engineer or architect, containing the following information pertaining to the project as it exists and as it is proposed:

    a. Site and structure information, including all buildings, structures, yards, landscaping, open spaces, signs, and number and sizes of buildings;

    b. Accessory facilities information showing the locations and describing the nature and extent of recreation facilities, laundry facilities, maintenance facilities, office areas, storage areas, and trash storage areas;

    c. Easement information showing the locations and dimensions of public utility, water, sewer, and drainage easements; and

    d. Parking and access information, showing all points of regular access and emergency vehicle access, the locations, dimensions and total number of covered

and uncovered parking spaces provided for employees and guests, and the dimensions and locations of all aisles, driveways, turning areas, and obstructions, including, but not limited to, columns, poles, walls, and trees.

3. **Site Amenities.** A report outlining the condition and responsibility of the parking lot, landscaping, signs, communal areas, etc.

4. **Notice to Tenants.** Evidence of written notice provided to each tenant explaining that the owner intends to apply to the City for a condominium conversion. The notice to tenants must be sent at least six months before the application is submitted to the City, and further notice must be given to any tenant who occupies the building after the original notice was sent.

5. **Project Documents.** The applicant shall submit the proposed declaration of covenants, conditions, and restrictions to be applied to the project. The declaration shall include, but shall not be limited to, the following information:

   a. An agreement providing for common area maintenance including recreational facilities, landscaping of the project and all public right-of-way abutting the project, and all structural, mechanical, and utility elements of the proposed project, together with an estimate of initial assessment fees anticipated for the initial and future maintenance and replacement of such facilities and elements;

   b. A requirement that the owners' association maintain all private water, sewer, and storm drainage lines serving the project, and pay all charges for water, sewer, and waste collection service for the project;

   c. A provision granting emergency access to the project site by, and right of entry to, the City;

   d. A provision granting to the City the right to enforce the declaration;

   e. The assignment of parking and storage spaces;

   f. A grant of all easements and cross-easements for access, utilities, and maintenance necessitated by the conversion;

   g. A requirement that the owners' association provide or require adequate fire insurance protection for the project, including each structure, each unit and its contents, and the common area and facilities;

   h. A provision prohibiting the alteration of any party wall or fixture along any party wall, or the doing of anything which may impair its integrity as a fire wall; and

   i. A provision granting the City the right to veto any amendment to the declaration with respect to any of the requirements of this subsection.

6. **Unavailability of Information.** When the applicant can demonstrate that information required by this section is not available, this requirement may be modified by the Director if they determine that such modification is consistent with the purposes of this article.

7. **Additional Information.** Any other information shall be submitted by the applicant which, in the opinion of the Director, will assist in determining whether the proposed project will be consistent with the purposes of this article.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 40 COVENANTS, CONDITIONS, AND RESTRICTIONS

Sec. 15-4001. Purpose.
Sec. 15-4002. When Required.
Sec. 15-4003. Requirements.
Sec. 15-4004. Additional Requirements for Common Interest Developments.
Sec. 15-4005. Conditions of Approval.

SEC. 15-4001. PURPOSE.

This article outlines the requirements for Covenants, Conditions, and Restrictions (CC&Rs) that are required for various approvals of land divisions.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4002. WHEN REQUIRED.

Whenever a subdivision includes area under common ownership, the use and operation of which is administered by an owners' association, it shall be regulated by Covenants, Conditions, and Restrictions (CC&Rs).
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4003. REQUIREMENTS.

CC&Rs shall incorporate the following provisions:

A. Applicable State regulations;

B. The City shall be granted the right of immediate access to all portions of the common areas for the purpose of preserving the public health, safety, and welfare;

C. The association shall have the duty to maintain and repair all on-site sewer, water, and storm drainage facilities, unless the City or Flood Control District have determined that a particular facility should be public to provide necessary system completion or otherwise protect public health, safety, and welfare;

D. The association shall have the duty to pay all utility and waste collection charges which are not separately metered and billed, including, but not limited to, charges for sewer, water, gas, solid waste, sanitation, and electric service;

E. Should public utilities, including, but not limited to, sewer and water be located underneath private streets, or should the street be public while said utilities be private, language shall be provided indicating that the City shall not be responsible for private pavement repairs beyond the minimum amount this is directly related to the future utility main repair work.

F. No property owner shall alter, modify, reconstruct, or do any other thing to any party wall or to any plumbing, electrical, or mechanical fixture located along such wall which will impair the integrity of the wall as a fire separation without the review and approval of the Building Official;

G. Landscaping shall be provided and maintained by the association in those common areas adjacent to public streets and highways. The association shall provide and maintain the landscaping in such areas in a manner compatible with the requirements of the Development Code, and shall not decrease the amount of assessments charged against members of the association if such decrease will adversely affect the ability of the association to perform this maintenance; and

H. The association shall be responsible to provide street sweeping/cleaning within the common areas. The association shall be responsible for the cost(s).

I. Any amendment by the association to the above provisions or any other provision specifying any right of the City shall require the prior written consent of the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4004. ADDITIONAL REQUIREMENTS FOR COMMON INTEREST DEVELOPMENTS.

In addition to the above provisions, CC&Rs for Common Interest Developments (Condominiums) shall incorporate the following provisions:

A. **Enforcement.** The Association shall be responsible for enforcing and implementing its CC&Rs.

B. **Conveyance of Private Open Space.** The surface area and appurtenant air space of private open space areas, including, but not limited to, the patio, deck, balcony, solarium, or atrium and any integral portion of that space that may exceed the minimum area requirements, shall be described and conveyed in the grant deed as an integral part of the unit.

C. **Assignment and Use of Required Parking Spaces.** Required parking spaces shall be permanently and irrevocably specifically assigned to particular units within the project. To the maximum practicable extent, the spaces assigned to each unit shall be contiguous. In no case shall the private storage area of one unit overhang or take its access from the required parking space of another unit.

D. **Right of Public Entry to Common Area.** Officers, agents, and employees of the City, the County, the State, and the United States Government, and any department, bureau, or agency thereof, shall have the right of immediate access to all common areas at all times for the purpose of preserving the public health, safety, and welfare, except in those instances where a common area is accessible only through a private unit.

E. **Maintenance of Common Area.** Provision shall be made both for annual assessments of the owners for maintenance and special assessments for capital improvements. The amount of the regular annual assessment and the procedure for its change shall be specified. The manner in which special assessments may be levied for the purpose of defraying, in whole or in part, the cost of any construction, reconstruction, repair, or replacement of a capital improvement upon the common

area shall be specified. Both annual and special assessments may be collected on a monthly basis. The remedies which the condominiums' association may bring for the nonpayment of assessments shall be specified and may include penalties for late payment. Assignment of the maintenance responsibilities of all improvements and utility systems for each unit shall be specified.

F. **Utility Easements over Private Streets and Other Areas.** Required public utility easements shall be referenced as well as any required access routes necessary to assure that firefighting or emergency equipment can reach and operate efficiently in all areas.

G. **Access for Construction, Maintenance, or Repairs.** Each owner and the condominiums' association shall have an easement for entry upon any privately owned unit, where necessary, in connection with construction, maintenance, or repair for the benefit of the common area or the owners of the units in common.

H. **Right to Terminate Management and Maintenance Contracts.** Unless otherwise prohibited by law, or any local, State, or federal regulation, reference shall be made to the condominiums' association's right to terminate the contract of any person or organization engaged by the developer to perform management or maintenance duties three months after the condominiums' association assumes control of the project, or at that time renegotiate any such contracts.

I. **Fire Access.** The condominium association shall be responsible for enforcing fire lane parking restrictions, maintaining fire access gates, and for the maintenance and repair of fire hydrant, fire sprinkler, and other fire protection systems and devices. The condominium association shall notify the Fire Dept. within 72 hours of any change to responsible party contact information regarding property maintenance and parking enforcement.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4005. CONDITIONS OF APPROVAL.

CC&Rs shall reference by incorporation any Conditions of Approval approved by the Review Authority.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 41 SUBDIVISION DESIGN STANDARDS

Sec. 15-4101. Purpose.
Sec. 15-4102. Applicability.
Sec. 15-4103. Intensity and Location of Uses.
Sec. 15-4104. Blocks.
Sec. 15-4105. Lots.
Sec. 15-4106. Street Dedications.
Sec. 15-4107. Connectivity.
Sec. 15-4108. Street Design.
Sec. 15-4109. Incorporation of Site Constraints.
Sec. 15-4110. Gated Subdivisions.
Sec. 15-4111. Restricted Access Barriers.
Sec. 15-4112. Parks and Playgrounds.
Sec. 15-4113. Energy Conservation.
Sec. 15-4114. Underground Utilities.
Sec. 15-4115. Maintenance of Improvements.

Sec. 15-4101. PURPOSE.

This article establishes standards for the design and layout of subdivisions, and the design of subdivisions. The purpose of these standards is to ensure, through careful site evaluation and design, the creation of new usable parcels that are consistent with the General Plan, any applicable operative plan, and zone-specific standards.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4102. APPLICABILITY.

The following design and improvement standards apply to all subdivisions and shall be imposed on a subdivider as a condition of approval of a tentative map or parcel map. Exceptions to design standards may be approved if the City finds that an alternative design substantially conforms to the intent of the standards of this article, the General Plan, and/or applicable operative plans.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4103. INTENSITY AND LOCATION OF USES.

When a variety of housing types and lot sizes are proposed, more intense residential development such as small lot single-unit, townhomes, row-housing, and apartments, should generally be located along Connector streets and Major Streets, while less intense residential land uses, such as larger lot single-unit homes, should generally be located in the interior of the neighborhood.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 72, eff. 7-27-25).

Sec. 15-4104. BLOCKS.

A. **Length.** Residential blocks shall be no less than 200 feet in length and no more than 600 feet in length. A deviation from this requirement may be allowed if the alignment of existing streets on adjacent properties justify it, at the discretion of the Review Authority.

B. **Width.** Residential block widths shall be of such dimension as to allow an ultimate layout of two tiers of lots therein of a size required by the provisions of this article, unless:

1. The subdivision provides a trail and homes would front onto the said amenity or other communal space.

2. Topographic conditions justify a variation from this requirement; or

3. The proposed homes would back onto a non-residential district or a Major Street.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4105. LOTS.

A. **Lot Size and Dimensions.** Lots shall comply with the minimum size and dimension requirements of the base zoning district.

1. **Exceptions.** In any Residential subdivision of five or more lots, up to 25 percent of lots may be up to 20 percent smaller in area and/or width than the normally required minimum lot area and width of the applicable base zoning district, as long as the average lot area and width for the subdivision are no less than the required minimum for the district.

B. **Oversize Lots.**

1. When a subdivision is divided into lots of a size substantially larger than those allowed in any applicable zoning district, the lots shall be designed to provide for the extension of streets, and the later division of any parcel into lots of the probable legal minimum size. This requirement may be waived when plans submitted and approved by the Commission indicate restrictions on future sub-dividing such as topography or other natural and man-made features.

2. A covenant shall be recorded against oversized lots that have the potential to be further divided that may cause the original subdivision to exceed the permitted residential density requirements of the underlying planned land use designation.

C. **Lot Consolidation.** Lot consolidation is encouraged when such consolidation results in a superior subdivision that includes some of the elements of a complete neighborhood such as a range of housing opportunities, connectivity, open space, and a well landscaped streetscape. Lot consolidation that does not include such elements is discouraged.

D. **Side Lines.** The side lines of any lot, so far as is practicable, shall be at right angles to the street which the lot faces, or radial if the street is curved.

E. **Lot Frontage.** Every lot shall have frontage on a public street, except under the following circumstances:

1. Adequate internal circulation is provided by a private street or streets in an approved Planned Unit Development;

2. Lots may have access via a rose garden or paseo in a subdivision served by communal parking spaces or an alley; or

3. The lots are within a C or E District and the following conditions are met:

   a. Execution and recordation of a covenant with the City which, at minimum, creates mutual easements and reciprocal use agreements for cross-access, cross-drainage and shared public utility services or fire suppressions systems in a manner which affords adequate access, drainage and public services to/from a dedicated public street for the benefit of any/all lots proposed to be created without frontage on a public street.

      The Mutual Easement and Reciprocal Use Agreement shall include provisions identifying obligations and responsibilities for retention and maintenance of any common or easement areas, shared utility services, systems, facilities and/or improvements which are required for the benefit of lots proposed to be created without frontage on a public street.

   b. When a lot which does not have public street frontage is proposed to be created for developed land, the subdivider shall submit a revised site plan depicting the location of proposed lot lines and the locations of all existing or proposed structures and improvements for review and approval in conjunction with the tentative or tentative parcel map.

F. **Double Frontage Lots.**

1. Double frontage residential lots are discouraged, however may be approved where conditions warrant.

2. **Major Street.** If a Double Frontage lot abuts a Major Street, access shall be relinquished along the Major Street, and:

   a. A minimum 10 foot landscape area shall be provided with a minimum six-foot masonry wall at the rear thereof.

   b. Should an operative plan require a greater landscape area, the wall shall be placed at the rear of the landscape setback.

   c. A greater landscape area may be required to ensure that visibility is maintained for adjacent properties. This includes, but is not limited to, driveway and garage locations, fences, trees, etc. of neighboring properties.

   d. A greater landscape area may also be required by the Review Authority, when in the opinion of the Review Authority, a greater landscape area would be more in harmony and would add visual interest to the streetscape when adjacent properties also face a Major Street.

3. **Local Street.** Double frontage lots which abut two approximately parallel streets and have a depth of less than 200 feet shall only be approved when access rights to one of streets is relinquished. In all cases, both sides of a Double Frontage Lot shall be considered front yards.

G. **Corner Lots.**

1. **Major Street.** A corner lot on the intersection of a Major Street shall have a property line radius as determined by the City Engineer.

2. **Local Street.**

   a. When a Local Street intersects a Major Street and the corner lot sides onto the Local Street, the corner lot shall provide a ten foot landscape easement. A minimum six-foot masonry wall shall be placed at the rear of the landscape easement. A greater landscape easement may be necessary for visibility purposes. In the case of the latter, such cases shall be reviewed on a case-by-case basis.

   b. When the street side yard faces the front yard of a home across the street, a minimum landscape easement of five feet is required, unless a four foot park strip is provided between the curb and sidewalk. A minimum six-foot masonry wall shall be placed at the rear of the landscape easement. An opening in the masonry wall may be permitted to provide a gate for access if approved by the Public Works Director.

H. **Lot Access.**

1. **Street Frontage Required.** Each proposed parcel shall have frontage on a public street. The frontage width shall be at least the minimum parcel width required by the applicable zoning district. The Review Authority may exempt parcels created under a Planned Unit Development or pursuant to Section 15-4105-E from the requirements of this subsection.

2. **Single-Unit Homes on Major Streets.** Lots may front a Major Street if a Frontage Road is provided, to protect a natural resource, or:

   a. The majority of the homes on the block face the Major Street and it is unlikely that the existing homes will be redeveloped with more urban uses;

   b. The backing of the home could potentially cause visibility issues for neighboring properties which are attempting to access the Major Road;

   c. The subdivision layout is considered superior in comparison to what could otherwise be developed with homes backing onto the Major Street;

   d. The site provides a circular driveway or access is provided via an alley or private easement; and

   e. The Public Works Director approves of the parcel configuration.

3. **Multi-Unit.**

   a. **Existing Multi-Unit Lots.** May access a Major Street, however lots shall provide an on-site turnaround.

   b. **New Multi-Unit Lots.** Shall only be approved if an on-site turnaround is provided or if served by a public alley.

c. **Multi-Unit Private Access Easements.**

i. Private easements and access drives that only serve multi-unit lots are prohibited. For such development, access shall be from a dedicated public alley and/or public street.

(1) An exception may be made if the number of multi-unit homes served by the private alley, easement, or street account for less than 20 percent of the total number of units within the subdivision. The maintenance of any private road or easement shall be the responsibility of the Homeowner's Association or shall be incorporated by the City's Community Facility District.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 64—66, eff. 1-18-19; Am. Ord. 2025-024, § 73, eff. 7-27-25).

Sec. 15-4106. STREET DEDICATIONS.

All land lying within the alignment of any street shown on the circulation element of the General Plan, the City's Official Maps for a system of streets, or shown on any precise or other plan of streets adopted by the Council or other legally constituted body of the city, county, or state, or within the alignment of any local street approved by the Public Works Director, shall be dedicated consistent with the proposed alignment of said streets and with the ownership of said land.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4107. CONNECTIVITY.

Subdivisions of one-half acre or more in non-residential districts or resulting in five or more residential lots shall provide vehicular, bicycle, and pedestrian connectivity to all uses within a subdivision, to adjacent development, and to the surrounding street system in accordance with the following:

A. **Continuous Street System.** All streets, alleys, bicycle facilities, and pedestrian ways shall connect to other streets, alleys, bicycle facilities, and pedestrian ways to form a continuous vehicular, bicycle, and pedestrian network with numerous connections within the subdivision and to adjacent development.

B. **Connector Streets.** Connector Streets (refer to Section 15-4108, Street Design) connecting Major Streets shall be provided within quarter sections or other area of roughly 160 acres and surrounded by major streets.

1. One Connector Street shall be provided approximately through the center of the quarter section which runs north to south, linking the northern and southern Major Streets. A second Connector Street shall be provided approximately through the center of the quarter section which runs east to west, linking the eastern and western Major Streets.

2. Should the alignment of a Connector Street be impractical due to an existing feature, it shall be developed as close as reasonably possible to the alignment described in item 15-4107-B.1 above.

3. At the discretion of the Review Authority, Connector streets may be designed with some curves and bends in order to calm traffic.

4. Connector Streets are not required for Industrial Districts.

C. **Non-Contiguous Sites.** Subdivisions that are not contiguous with other subdivisions shall provide stub streets and other potential vehicular and non-vehicular connection points to non-contiguous subdivisions within the same 160 acre quarter section. These connection points shall be within the public right-of-way and private easements when necessary.

D. **Connections to Adjacent Areas.**

1. **Connections to Existing Subdivisions.**

a. Connections shall be provided to all stub streets in all adjacent subdivisions.

2. **Connections to Future Subdivisions.**

a. Where the subdivision adjoins unsubdivided land, stub end streets in the subdivision shall be extended to the adjacent unsubdivided land to provide access to the unsubdivided land in the event of its future subdivision. There shall be one such connection for every 600 feet of adjacency.

b. In the case of stub end streets extending to the boundary of the property, a barricade, the design to be approved by the City Engineer, shall be constructed at the end of the stub end street, pending the extension of the street into adjacent property. A temporary connection to another street, or a temporary turnaround, may be required by the Review Authority.

E. **Emergency Vehicle Access.** Emergency vehicle access shall be determined on a case-by-case basis by emergency responders.

F. **Access Points to a Major Street.** Ingress and egress into a subdivision from a Major Street to a local or connector street shall be provided at a spacing of no less than 600 feet.

G. **Pedestrian and Bicycle Paths.** Continuous and convenient bicycle and pedestrian access shall be provided from every home within a subdivision area to the nearest neighborhood center, school, and park.

1. **Safe Routes to Schools.** Pedestrian and bicycle routes to schools shall be identified at the time of project submittal.

2. **Barriers.** Fencing, sound walls, and other barriers between residential and non-residential uses shall provide openings or other mechanisms to allow

bicycle and pedestrian access between uses. If the residential use is a private, gated community, such openings may be locked if all residents have a code, key, or other means of access.

3. **Links between Residential and Non-Residential Areas.** Pedestrian paths from residential areas shall be provided to adjacent Commercial, Mixed-Use, and Office districts. Pedestrian paths shall be a minimum of 15 feet in width, lit, and provided at a rate of approximately 1 per 600 feet. The exact locations may be adjusted at the discretion of the Review Authority based on site conditions, safety, and pedestrian convenience. If existing development blocks all possible access points to adjacent Commercial, Mixed-Use, and Office districts, this section shall not apply.

4. **Access to Major Streets.** For subdivisions adjacent to a Major Street, a pedestrian path (including sidewalks and trails) to the Major Street shall be spaced no more than 600 feet apart. For dead-end streets, except where there's no existing or planned pedestrian facilities, refer to Subsection 15-4108-K, Cul-de-Sacs and Dead-End Streets.

5. **Access to Bus Stops.** For subdivisions adjacent to a Major Street, future bus stops locations shall be identified and pedestrian access shall be identified to minimize circuitous routes for pedestrians except in locations with no existing or planned pedestrian access.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4108. STREET DESIGN.

Streets shall be designed and constructed consistent with the City's Standard Drawings and Specifications and Public Works Director approval and as provided below.

A. **Street Orientation.** Streets shall be planned in a primarily east-west orientation in order to best implement Section 15-4113, Energy Conservation, and the Map Act (Section 66473).

B. **Local Streets.** Local streets shall have minimum right-of-way and roadway widths in accordance with the local street details and development density criteria of the Standard Drawings and Specifications.

C. **Connector Streets.** Connector Streets shall incorporate coordinated street trees spaced to provide continuous shade for pedestrians. Connector Streets shall be designed with non-contiguous sidewalks to allow the street trees to be planted in a landscape strip between the curb and sidewalk. The planting area shall be a minimum of four feet in width.

D. **Major Streets.**

1. Major streets shall be as shown on the circulation element of the General Plan, any operative plan or any Official Plan Line, the select system of streets, or as shown on any precise or other plan of streets adopted by the Council or by other legally constituted bodies of city, county or state.

2. All Major Streets shall be designed as Complete Streets. Complete Streets are those that provide for all users of a corridor, including pedestrians, bicyclists, transit riders, people with disabilities, senior citizens, motorists, freight providers, emergency responders, and adjacent land users. Complete Streets support all modes of transportation safely and independently in current and future conditions.

E. **Frontage Roads.** Existing frontage roads in adjacent subdivisions shall be continued into the proposed subdivision in the same manner as related to width and design. Pedestrian sidewalks and bike paths are required with frontage roads.

F. **Private Streets.** Private streets are prohibited except where approved as part of a Planned Unit Development or otherwise approved by the City Council. All widths and alignments of private streets shall be as shown on any precise or other plan of streets adopted by the Council and shall conform to the private street details and development criteria of the Standard Drawings and Standard Specifications. Private streets that serve multi-unit dwellings shall comply with Section 15-4105, Lot Access.

G. **Street Intersections.**

1. All streets shall intersect each other at angles as near to right angles as is practicable.

2. All local street intersections and all intersections with Major Streets shall have minimum curb radii as established in the Standard Drawings, except that at the intersections with State highways, the standards of the California Department of Transportation shall apply.

H. **Curves.**

1. Unless the curve radius has been established on an adopted map, a curve radius shall be required as determined by the Public Works Director where a street deflects more than five degrees from a straight line.

2. On all streets having reverse curves, a tangent of at least 100 feet between reverse curves shall be required. Subject to the approval of the Public Works Director, these requirements may be varied for local streets or when topography requires other treatment of streets to secure the best overall design.

I. **Alleys.**

1. Where alleys are planned, required, or proposed, an alley with a minimum width of 20 feet shall be installed, and the alley shall be designed to conform to Public Works Standards.

2. Where two alleys intersect or where an alley deflects with an interior angle of less than 135 degrees, corner cut-offs of 15 feet measured from the point of any interior angle shall be required.

J. **Traffic Calming.** Traffic calming street design or devices such as bulb-outs, chokers, center islands / raised medians, traffic circles, textured pavement, and painted intersections, shall be included, if required by an operative plan, or when determined to be necessary by the City Engineer, to ensure safe conditions for all users.

K. **Cul-de-Sacs and Dead-End Streets.**

1. The combined length of all cul-de-sacs and other dead-end streets in any subdivision shall not exceed 35 percent of the combined total length of all local residential streets within the subdivision. Cul-de-sacs that are connected by a trail shall be exempt from this calculation. Additional exceptions may be made at the discretion of the Review Authority if any of the following circumstances apply:
    a. The average block length of all blocks in the proposed subdivision is 400 feet or less;
    b. The applicant can demonstrate, to the satisfaction of the City Engineer, that the subdivision design will result in a rate of Vehicle Miles Travelled which is equal to or less than a subdivision which follows the cul-de-sac limit in item K-1 above;
    c. The site is 6 acres or less in gross area;
    d. The site is surrounded by developed properties which lack stubs to connect to; or
    e. The site is blocked by canals and expressways.
2. Cul-de-sacs and dead-end streets may not exceed 600 feet unless there are unforeseen issues or topographical challenges or other opportunities to promote pedestrian connectivity such as access to another street or trail.
3. All cul-de-sacs and dead-end streets shall have a turnaround per Public Works Standards.
4. A cul-de-sacs and or dead end street may be approved as a temporary facility, without a turnaround, provided the street is designed to provide access to adjoining land that is not yet subdivided or developed. A temporary turnaround or access may be required.
5. Cul-de-sacs and dead-end streets shall provide pedestrian and bike connections to neighboring streets, trails, commercial centers, etc.

L. **Street Names.** Refer to Article 62, Street Names & Addressing.

M. **Sidewalks.**

1. All public streets shall have sidewalks constructed to City standards on at least one side of the street if there is connectivity to one of the following:
    a. An adjacent street with a sidewalk;
    b. An adjacent trail; or

c. An adjacent alley.

2. Streets with a sidewalk on only one side shall have two 15-gallon street trees in the front of the lot on both sides of the street.

3. Streets that do not provide any of the connections set forth in Subsection 1.a—c above shall have sidewalks constructed to City standards on both sides of the street.

4. Private streets are exempt from this section.

N. **Street Trees.**

1. Street tree species shall be selected from the Fresno Street Tree Palette.

2. Street trees shall be planted per applicable Public Works standards.

3. Street trees shall be located within a landscaped park strip of no less than four feet in width between the curb and sidewalk.

4. Trees within the front yard of adjacent parcels may be counted toward the satisfaction of this requirement at the discretion of the Review Authority, in which case the landscape strip between the curb and sidewalk will not be required and the spacing shall be one tree per lot.

O. **Street Lighting.**

1. **Installation Required.** The subdivider shall cause the installation of street lighting on all streets within the subdivision and on all streets adjacent to the subdivision unless existing lighting conforms to City standards.

2. **Specifications.** The type, location, and mounting heights of the luminaries shall be determined by the Public Works Director based upon the Standard Specifications and sound engineering practices consistent with the City policy for street lighting.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-66, §§ 67—69, eff. 1-18-19; Am. Ord. 2025-024, § 74, eff. 7-27-25).

Sec. 15-4109. INCORPORATION OF SITE CONSTRAINTS.

Areas with development constraints shall be incorporated into the overall subdivision design and layout to support and enhance park and open space amenities.

A. **Major Utility Easements.** Easements for major utilities such as high-tension lines and utility trunk lines shall be integrated into the proposed subdivisions such they are incorporated as open space or recreation use and shall be developed as a regional trail system. Such easements shall be designed as part of an overall open space or recreation element. Said easements shall not be blocked by fences, yards, gates, and other similar barriers. The use and treatment of such easements is subject to the policies and restrictions of the utility provider and City.

B. **Trails and Natural Features.** Proposed subdivisions that are adjacent to a trail or a canal shall incorporate them into the subdivision plan as a design feature in conformance with the City's trails plan and the following:

1. Proposed subdivisions that are adjacent to a trail shall incorporate it into the subdivision plan as a design feature. Development adjacent to a trail shall be planned to provide pedestrian access to the trail(s) at intervals identified below.
2. Homes should front onto a trail, or other communal area, unless:
   a. Topographic conditions justify a variation from this requirement;
   b. The proposed homes would face a Major Street; or
   c. The Review Authority determines that there are no feasible alternatives.
3. Development adjacent to a trail shall be planned to provide pedestrian access to the trail(s) at intervals of approximately 1 per 600 feet if homes or a commercial center back onto to the natural feature. The exact locations may be adjusted at the discretion of the Review Authority based on site conditions, safety, and pedestrian convenience. Should cul-de-sacs terminate near the feature, each cul-de-sac shall provide a path to the feature.
4. Where development is backed onto an adjacent trail, privacy walls and security walls shall be set back from the trail by a minimum distance of 10 feet and such setback shall be landscaped to be compatible with the trail landscape.
5. Subject to approval by the Fresno Irrigation District, where canals are piped, the area above shall be integrated into the subdivision as a trail or part of an open space and/or trail system subject to Fresno Irrigation District approval.

C. **Safety and Environmental Zones.** Buffers, setbacks, and no-build zones associated with safety or environmental impacts such as airport safety or noise, and freeway noise and air pollution shall be integrated into the proposed subdivision plan by designating them for alternative, allowable uses. These uses may be open space, parking, recreation, or other allowed uses. The plan shall integrate these areas and uses such that they are part of an overall system of open space, parking, or recreation and not separated from the subdivision by walls or barriers unless required by the regulation agency.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4110. GATED SUBDIVISIONS.

A. Subdivisions with private streets may be gated provided consideration shall be given to surrounding properties to ensure that pedestrian and bicycle access is maintained, in particular along tails and natural features.

B. Should a gated subdivision be conditioned to dedicate and/or incorporate, as a public right-of-way, a Regional Trail (e.g., Class 1) pedestrian and other non-motorized traffic shall have the ability to move freely through the trail. Access into the residential areas may be fenced and gated, but access to the trail shall be unimpeded.

C. Should a gated subdivision be proposed that abuts a street that was previously dedicated to provide access to the parcel where the subdivision is being proposed, the subdivider of the gated subdivision shall:

1. Construct a cul-de-sac to provide turn-around access. Emergency access shall be provided via the cul-de-sac. Fencing shall be provided behind a minimum 10 foot landscape setback. The landscaping and the fencing shall be maintained by the Homeowner's Association of the gated subdivision, unless it is accepted into the City's Community Facilities District; or
2. In situations where there are no driveways from said stub street, the developer may petition the City to vacate the stub street to the adjoining parcels, provided the owners are willing to accept the property and the developer bears all cost(s)

associated with fulfilling the conditions of the vacation. Moreover, all indications of a street, such as curb, gutter, sidewalk, etc., shall be removed by the petitioner and shall be converted to private ownership.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4111. RESTRICTED ACCESS BARRIERS.

Restricted access barriers controlling the access to other streets or other public right-of-way from adjoining property shall not be approved unless such barriers are necessary for the protection of the public welfare or of substantial property rights, and in no case will they be approved unless and until the control and disposition of the land comprising such strips are dedicated to the City under conditions approved by the Review Authority.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4112. PARKS AND PLAYGROUNDS.

Subdivisions shall reserve land for pedestrian-accessible parks and playgrounds. The size and location of such reserved land shall be consistent with the General Plan's park and open space policies and policies and standards of other adopted applicable planning documents.

A. **Standards for Reservations.**

1. The reserved area is of such size and shape as to permit the balance of the land within which the reservation is located to develop in an orderly and efficient manner.

2. The amount of land shall be determined per Article 37, Dedications and Reservations and the Open Space Design Guidelines.

B. **Park Frontage.** A minimum of 50 percent of the perimeter of any public park must abut a street, external trail, internal lit trail that connects to an external trail or sidewalk, sidewalk, or similar facility that is accessible and visible to people traversing the neighborhood. Homes shall generally face or side the park.

C. **Park Accessibility.** Park sites shall be centrally located, providing access within a half-mile walking distance to new residential development. Multiple Pocket and Neighborhood parks may serve to satisfy this requirement.

D. **Pocket Parks.** Pocket parks shall be distributed throughout the subdivision.

E. **Detention Basins.** In coordination with the Flood Control District, detention basins that serve residential neighborhoods shall be designed to accommodate recreational uses and shall be treated as an aesthetic amenity.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4113. ENERGY CONSERVATION.

Per the Map Act (Section 66473), the subdivision design shall provide for passive or natural heating or cooling opportunities and for other measures that conserve nonrenewable energy resources, consistent with the General Plan. Design measures to accomplish these

objectives may include, but are not limited to, the arranging of streets, lots, buildings and landscaping. The purpose of such design measures shall be to provide solar access for active solar water and space heating systems and passive space heating, minimize solar heat gain in the summer, and take advantage of prevailing breezes.

A. **Design Guidance; No Reduction in Density.** In providing for future passive or natural heating or cooling opportunities in the design of a subdivision, consideration shall be given to local climate, to contour, to configuration of the parcel to be divided, and to other design and improvement requirements, and such provision shall not result in reducing the maximum allowable densities or the percentage of a lot that may be occupied by a building or structure under applicable standards of this Code in force at the time the tentative map is filed.

B. **Exemptions.** The requirements of this section do not apply to condominium conversion projects which consist of the subdivision of airspace in an existing building when no new structures are added.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4114. UNDERGROUND UTILITIES.

All existing utilities, including electrical systems, and communication systems, and street lighting distribution systems shall be placed underground throughout a subdivision, which includes a tract or parcel map, except as follows:

A. **Existing Major Lines.** Undergrounding of existing overhead wires and associated overhead structures used for conveyance of electrical energy at transmission voltages, nominally in excess of 21,000 volts, or major transmission trunk communication lines shall not be required.

B. **Existing Utilities in Industrial Districts.** Undergrounding of existing overhead wires and associated overhead structures used for the distribution of electrical energy or communication lines within certain industrial zone districts shall not be required provided the subdivider shall:

1. Execute a covenant, which shall be recorded and run with the land, agreeing to participate and support any improvement district formed for the purpose of undergrounding the existing overhead utilities; and

2. Install or agree to install conduit of sufficient number and size, as determined by the utility company, to accommodate the future undergrounding of existing overhead utilities.

C. **Appurtenant Equipment.** Equipment appurtenant to underground facilities, such as transformers, terminal boxes, amplifiers, splice boxes, meter cabinets and concealed ducts, may be surface-mounted provided that such equipment is located in utility easements outside the street right-of-way.

D. **Waiver by Public Works Director.** The Public Works Director may waive the requirement to underground existing overhead services to street lighting or other utility systems as a condition of approval of any subdivision as provided below:

1. **Required Findings.**

a. The property is located in an area where 90 percent or more of the surrounding properties have overhead utilities; and

b. The property is not in a Growth Area as defined by the General Plan.

2. **Stipulations.** If a waiver is granted, the subdivider shall:

a. Execute a Covenant, which shall be recorded and run with the land, agreeing to participate in and support any improvement district or underground utility district formed for the purpose of undergrounding the existing overhead utilities; and

b. Install or agree to install conduit of sufficient number and size, as determined by the utility company, to accommodate the future undergrounding of existing overhead utilities.

E. **Utility Operator Objection.** The requirement to place utilities underground may be waived at the discretion of the Review Authority if the entity which operates the utility finds the underground placement to be infeasible.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4115. MAINTENANCE OF IMPROVEMENTS.

Maintenance of landscaping, trails, open space, lighting, street furniture, local street improvements, etc., outlined in this article shall be included in the Community Facility District and/or Homeowner's Association as determined by the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 42 LOT LINE ADJUSTMENTS, MERGERS, AND REVERSIONS

Sec. 15-4201. Purpose.
Sec. 15-4202. Lot Line Adjustments.
Sec. 15-4203. Voluntary Parcel Mergers.
Sec. 15-4204. Reversion to Acreage.

SEC. 15-4201. PURPOSE.

This article provides for the adjustment of the size and configuration of lots through a Lot Line Adjustment or Lot Merger. This includes the procedures for the preparation, filing, processing, and approval or denial of Lot Line Adjustment applications, consistent with the policies of the General Plan, the requirements of the Map Act (Section 66412(d)), and the procedures for voluntary Parcel Mergers.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4202. LOT LINE ADJUSTMENTS.

A. **Applicability.** As provided by the Map Act (Section 66412(d)), a Lot Line Adjustment procedure is for the purpose of relocating lot lines between four or fewer existing adjacent parcels, where land taken from one parcel is added to an adjacent parcel and where:

1. No more parcels are created than originally existed;
2. No additional lots or building sites are created; and
3. The Lot Line Adjustment shall not result in the creation of an additional substandard lot, nor in a decrease in the size of an existing substandard lot.

B. **Application.** A Lot Line Adjustment application shall include the following information as required by the City Engineer:

1. Proof of the legal status of the parcel;
2. Plot plan showing existing lot dimensions;
3. Deed or record of survey showing proposed lot dimensions; and
4. Other information necessary to conform with the General Plan, Building Code, and this Code.

C. **Criteria for Approval of Lot Line Adjustments.** The City Engineer shall approve a Lot Line Adjustment based on a determination that it will meet all of the following criteria:

1. The adjustment is between four or fewer parcels and no additional parcels are created;
2. No street or alley dedication or improvement is necessary to adequately serve the properties affected by the proposed Lot Line Adjustment;
3. The lots proposed in the adjustment will comply with the provisions of this article, the Subdivision Map Act, the General Plan, and the Development Code;
4. The zoning and the Planned Land Use are consistent per the operative plan(s);

5. The lots proposed in the adjustment will comply with the provisions of the Building Code;

6. The adjustment shall not result in the creation of an any new nonconformities, including, but not limited to, signage, parking, fencing, etc.;

7. The resulting parcels do not interfere with existing utilities, infrastructure, or easements;

D. **Completion.**

1. Recording with County Recorder. A Lot Line Adjustment shall not be effective until a deed signed by the record owners has been recorded. The applicant shall submit the legal description to the City Engineer for review and approval of this, before recordation of the grant deed. The legal descriptions provided in the deeds shall be prepared by a person authorized to practice land surveying in the State.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4203. VOLUNTARY PARCEL MERGERS.

A. **Required Mergers.** Pursuant to the Map Act (Section 66451.10) and the requirements of this Subdivision Ordinance, the City may initiate the merger of two or more contiguous parcels or units held by the same owner if any one of the contiguous parcels or units does not conform to the standards for minimum parcel or lot size established by the Development Code, and if the requirements as stipulated in the Map Act (Section 66451.11) are satisfied.

B. **Mergers Initiated by the Property Owner.**

1. **Applicability.** Upon request of the legal owners of contiguous parcels, the City Engineer, following a recommendation by the Director, may approve the merger of the property in compliance with the Map Act (Section 66499.20 3/4).

2. **Review.** An application shall be made to the City Engineer.

3. **Request for Determination.** Upon written application by the owner to the City Engineer, the City Engineer shall determine whether the affected parcels shall be merged and shall notify the owner of the determination. If the City determines that the parcels shall not be merged, the owner may file a written request for a hearing with the City Engineer pursuant to the requirements of this section. If the City determines that the parcels shall be merged, a determination of merger shall be recorded.

4. **Recording with the County Recorder.** Upon approval, a notice of the Lot Merger shall be filed with the County Recorder. The form and content of the notice shall be as required by the City Engineer.

C. **Mergers Initiated by the City.**

1. **Notice of Intention to Determine Status.** The Director shall mail, by certified mail, a notice of intention to determine status to the current record owner of the property. The notice shall state that the affected parcels may be merged, and the owner may request a hearing on the determination of status before the Planning Commission to present evidence that the property does not meet the criteria for merger. The notice of intention to determine status shall be filed for record at the County Recorder on the same day that the notice is mailed to the property owner.

2. **Hearing on Determination of Status.** The owner of the affected property may file a written request for a hearing with the Director within 30 days after the recording of the notice of intention to determine status. Upon receipt of the request, the Director shall set a time, date and place for a hearing and notify the owner by certified mail. The hearing shall be conducted not more than 60 days following the receipt of the owner's request, or may be postponed or continued by mutual consent of the Director and the property owner. At the hearing, the property owner shall be given the opportunity to present any evidence that the affected property does not meet the requirements of this article.

3. **Determination of Merger.** At the conclusion of the hearing, the Commission shall determine whether the affected parcels shall be merged or not and shall notify the owner of the determination.

    a. If the Commission makes a determination that the parcels are to be merged, the City Engineer shall record a determination of merger within 30 days of the Commission's decision unless the owner files an appeal.

    b. If, within the 30 day period following the recording of the notice of intention to determine status, the owner did not file a request for a hearing, the Director and City Engineer shall make a determination that the affected parcels are to be merged or are not to be merged. If the Director and City Engineer determine that the parcels shall be merged, the City Engineer shall record a determination of merger within 90 days following the mailing of the notice of intention to determine status if there is no hearing.

    c. The determination of merger shall specify the name of the record owners and a description of the property.

    d. If the City determines that the parcels shall not be merged, the City Engineer shall record a release of the notice of intention to determine status and shall mail a clearance letter to the owner of record.

D. **Unmerged Parcels.** A property owner may apply to the City for a determination that any parcels or units of land for which a notice of merger had not been recorded on or before January 1, 1984 are deemed not to have been merged under Section 66451.30 of the Map Act.

If the Director determines that the parcels meet the standards specified in Section 66451.30, the City shall issue the owner, and record with the County Recorder, a notice of the status of the parcels and a declaration that the parcels are not merged.

E. **Allowance for Minor Deviation.** For small, oddly shaped, and hard-to-develop lots, a greater Minor Deviation allowance may be permitted. See Section 15-5602-B.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4204. REVERSION TO ACREAGE.

Subdivided property may be reverted to acreage in compliance with the procedures and requirements of the Map Act (Sections 66499.11 et. seq.).
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 43 CORRECTIONS AND AMENDMENTS OF MAPS

Sec. 15-4301. Purpose.
Sec. 15-4302. Types of Amendments to an Approved Tentative Map and/or Tentative Parcel Map.
Sec. 15-4303. Processing of Amendments.
Sec. 15-4304. Findings for Approval.
Sec. 15-4305. Effect of Amendments on Time Limits.
Sec. 15-4306. Tentative Maps with Multiple Final Maps.
Sec. 15-4307. Amendments to Final and Parcel Maps after Recordation.
Sec. 15-4308. Expansion of the Map Outside of the Original Boundaries.

SEC. 15-4301. PURPOSE.

The purpose of this article is to establish procedures for the correction and amendment of maps. A subdivider may request amendments to an approved Tentative Map or Tentative Parcel Map, or conditions of approval of a map.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4302. TYPES OF AMENDMENTS TO AN APPROVED TENTATIVE MAP AND/OR TENTATIVE PARCEL MAP.

A. **Minor Revision.** Changes determined by the Director to be in substantial compliance and that are consistent with the intent of the approved Tentative Map or Tentative Parcel Map may be approved where:

1. The size, shape, and dimensions of lots and streets are in substantial compliance and are consistent with the Tentative Map;
2. The number of lots, units, or building sites is not reduced to less than prescribed by the planned land use designation, zone district, or operative plan;
3. No lots, units, building sites, or structures are added;
4. The amount of open space is not reduced;
5. Pedestrian connectivity to schools, trails, open space, etc. is not reduced;
6. Changes, in the opinion of the Director, are consistent with the intent of the original Tentative Map approval;
7. There are no significant changes in parcel size and dimensions, pedestrian connectivity, and overall design; and
8. There are no resulting violations of the Municipal Code.

B. **Major Revision.** Major Revisions to an approved Tentative Map, Tentative Parcel Map, or amendments to conditions of approval may be approved by filing an application with the Department, if:

1. The amendments are consistent with the intent of the original Tentative Map or Tentative Parcel Map approval;

2. There are no resulting violations of the Municipal Code; and

3. A one-time increase in the number of lots contained in the subdivision does not exceed the following number, provided that the permitted density is not exceeded. Should the additional lots result in the preparation of a Traffic Impact Analysis, the CEQA documentation shall be recirculated and the project shall be returned to the Review Authority for consideration.

   a. Subdivisions of 25 Lots or Less. No more than two additional lots.

   b. Subdivisions with 26-50 Lots: No more than three additional lots.

   c. Subdivisions with 51-75 Lots. No more than four additional lots.

   d. Subdivisions with 76-100 Lots. No more than five additional lots.

   e. Subdivisions in Excess of 100 Lots. No more than five lots for the first 100 lots plus two additional lots for each full 100 lots in excess of the first 100 lots.

C. **Other Amendments.** Other amendments to an approved Tentative Map or Tentative Parcel Map or amendments to the conditions of approval, that in the opinion of the Director do not meet the criteria above, shall be treated as a new application.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4303. PROCESSING OF AMENDMENTS.

A. **Procedure for Filing an Amendment.** The subdivider shall file an application with the City, together with the following additional information:

1. A statement identifying the features of the map or particular conditions to be changed and the changes requested, the reasons why the amendment is requested, and any facts that justify the changes; and

2. Any additional information deemed appropriate by the Director.

B. **Revisions to Tentative Parcel Maps.** The Director shall act as the Review Authority and may approve the modification as part of the Final Map process for either a Minor or Major Revision.

C. **Revisions to Tentative Maps.**

1. **Minor Revision.** The Director may act as the Review Authority and may approve the modification as part of the Final Map process. Alternatively, the Director, at his/her discretion, may refer the matter to the Commission for consideration. At the Director's discretion, they may or may not provide a Public Notice per Section 15-3308-B.4.

2. **Major Revision to a Tentative Map.** The Director may act as the Review Authority, or the Director, at their discretion, may defer their decision to the Commission. The Director shall provide notice per the following:

   a. **Commission Notification.** If the Director elects to approve or disapprove the map, the Director shall notify the Commission at its next meeting that the

Director is reviewing the map and whether the Director intends to approve or disapprove the map. The Director shall take action after notifying the Commission.

b. **No Director Action.** Should the Director not take action, the Director shall refer the item to the Commission for consideration. If the matter is referred to the Commission for consideration, Public Notice shall be provided per Section 15-3308-B.4.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4304. FINDINGS FOR APPROVAL.

A. The Review Authority shall not amend the approved Tentative Map or Tentative Parcel Map or conditions of approval unless it first finds that:

1. There was a material mistake of fact in the deliberations leading to the original approval; or

2. There has been a change of circumstances related to the original approval.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2024-008, § 1, eff. 5-2-24).

Sec. 15-4305. EFFECT OF AMENDMENTS ON TIME LIMITS.

A. Approved amendments to an approved Tentative Map or Tentative Parcel Map or conditions of approval shall not be considered as an approval of a new Tentative Map or Tentative Parcel Map, and shall not extend the time limits of the original approval as provided by Section 15-3316, Time Limits and Expiration of Approved Maps.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4306. TENTATIVE MAPS WITH MULTIPLE FINAL MAPS.

The following provision regarding automatic extensions of time, or later enacted State law provisions that supersede the following, shall apply.

A. Where a developer has expended funds outside the boundaries of the approved Tentative Map in compliance with the Map Act (Section 66452.6), each filing of a Final Map shall extend the expiration of the Tentative Map per the Map Act.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4307. AMENDMENTS TO FINAL AND PARCEL MAPS AFTER RECORDATION.

A. **Amendments to Final and Parcel Maps.** A Final Map or Parcel Map that has been filed with the County Recorder may be amended by a certificate of correction or an amending map pursuant to the Map Act (Sections 66469—66472).

B. **Amendments to Conditions of Approval.** The conditions on a Final Map or Parcel Map may be modified by a certificate of correction or an amending map pursuant to the Map Act (Section 66472.1) and this subsection.

C. **Initiation.** An amendment to a condition of a Final Map or Parcel Map may be initiated by the Director, the City Engineer, or any subdivider or owner of the real property subject to the Final Map.

1. **Parcel Maps.** The Director, in consultation with the City Engineer, shall approve or deny amendments.
2. **Final Maps.** The Commission shall consider amendments to a tentative map. The Commission hearing shall be noticed pursuant to the Public Noticing requirements per Subsection 15-3308-B.4.

D. **Findings.** Amendments shall only be approved if all of the following are true:

1. There are changes in circumstances which make such conditions no longer appropriate or necessary;
2. The amendments do not impose any additional burden(s) on the present owner(s) of the property subject to the map;
3. The map, as amended, is not subject to disapproval under the findings in the Map Act (Section 66474) and conforms to this Subdivision Ordinance;
4. The amendment does not affect any previous findings made under Federal and/or State environmental review;
5. The amendments do not alter any right, title, or interest in the real property reflected on the recorded map.
6. If located within the review area of one of the airport specific plans, the amendment shall be subject to the provisions of said plan.

E. **Hearing.** Any hearing on the amendment of conditions shall be limited in scope to consideration and action on the proposed amendment.

F. **Recordation.** If the amendment of the condition is approved, an amending map or certificate of correction shall be recorded with the County Recorder in the manner specified in the Map Act (Section 66472). If the amendment to the map does not require an amending map or certificate of correction, the amendment shall be memorialized in a letter to the applicant and/or record owner(s). A copy of the letter and resolution shall be placed in the official file for the map.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4308. EXPANSION OF THE MAP OUTSIDE OF THE ORIGINAL BOUNDARIES.

A new map shall be filed for the area that is being added.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 44 ENFORCEMENT AND JUDICIAL REVIEW

Sec. 15-4401. Enforcement And Judicial Review.

SEC. 15-4401. ENFORCEMENT AND JUDICIAL REVIEW.

A. **Purpose.** This article establishes procedures that the City will use to enforce the requirements of the Subdivision Ordinance, including compliance with any conditions of approval imposed to protect public health, safety, and welfare and promote development in accordance with the General Plan.

B. **Prohibitions.** Pursuant to the Map Act (Section 66499.30):

1. No Sale or Lease until Final or Parcel Map is in Full Compliance. No person shall sell, lease, or finance any parcel of real property or begin construction of any building for sale, lease, or financing, except for model homes, or allow occupancy of any parcel or parcels for which a Final or Parcel Map is required by the Map Act or this Ordinance, until a map that is in full compliance with the provisions of this Subdivision Ordinance and the Subdivision Map Act has been filed with the Fresno County Recorder.

2. No Conveyance by Parcel Number until Final Map is Filed. The conveyance of any part of a division of real property for which a Final or Parcel Map is required shall not be made by parcel or block number, letter, or other designation until the map has been filed for record with the County Recorder.

3. **Exceptions.**

    a. This section does not apply to a parcel of a subdivision offered for sale or lease, contracted for sale or lease, or sold or leased in compliance with or exempt from any law, including this article, regulating the design and improvement of subdivisions in effect at the time the subdivision was established.

    b. This section does not prohibit an offer or contract to sell, lease, or finance real property or to construct improvements where the sale, lease, or financing or the beginning of construction, is expressly conditioned upon the approval and filing of a Final Map or Parcel Map.

    c. This section shall not, in any way, modify or affect the provisions of Section 11018.2 of the Business and Professions Code.

C. **Voidability of Illegal Conveyance.** Any deed of conveyance, sale, or contract to sell made contrary to the provisions of this article is voidable at the sole option of the grantee, buyer, or person contracting to purchase, their heirs, personal representative, or trustee in insolvency or bankruptcy within one year after the date of execution of the deed of conveyance, sale, or contract to sell, but the deed of conveyance, sale, or contract to sell is binding upon any assignee or transferee of the grantee, buyer, or person contracting to purchase, other than those above enumerated, and upon the grantor, vendor, or person contracting to sell, or their assignee, heir, or advisee.

D. **Other Legal Action.** Any grantee, or successor in interest, of real property which has been divided, or which has resulted from a division, in violation of the provisions of this Subdivision Ordinance or the Map Act may, within one year of the date of discovery of such violation, bring an action in the superior court to recover any damages suffered by reason of the division of property. The action may be brought against the person who divided the property in violation and against any successors in interest who have actual or constructive knowledge of such division of property.

E. **Effect on City Permits and Approvals.** No commission, officer, or employee of the City shall issue any permit or certificate, or grant any approval necessary to develop any real property within the city, if it is known or suspected that the property was divided, or resulted from a division in violation of the Map Act (Section 66499.30).

F. **Certificate of Compliance.**

1. Any person owning real property or an authorized representative of such person who is under contract of sale may request, and the Director shall determine, whether such real property complies with the provisions of the Map Act and of this Subdivision Ordinance. Upon making such a determination the Director shall cause a certificate of compliance to be filed for record with the County Recorder. The Certificate of Compliance shall identify the real property and shall state that the division thereof complies with applicable provisions of the Map Act and of this Subdivision Ordinance. The Director may impose a reasonable fee to cover the cost of issuing and recording the certificate of compliance.

2. If the Director determines that such real property does not comply with the provisions of the Map Act or of this Subdivision Ordinance, he or she may, as a condition to granting a certificate of compliance, impose such conditions as would have been applicable to the division of the property at the time the current owner of record acquired the property, and which had been established at such time by the Map Act or this Subdivision Ordinance. Such conditions may include, but are not limited to, requiring approval of a parcel or tentative map prior to development of the property. Upon making such a determination and establishing such conditions the Director shall cause a Conditional Certificate of Compliance to be filed for record with the County Recorder.

    a. Such Certificate shall serve as notice to the property owner who has applied for the certificate pursuant to this section, a grantee of the property owner, or any subsequent transferee or assignee of the property that the fulfillment and implementation of such conditions shall be required prior to subsequent issuance of a permit or other grant of approval for development of the property.

    b. Compliance with such conditions shall not be required until such time as a permit or other grant of approval for development of such property is issued by the City.

c. Compliance with the requirements of a certificate of compliance shall not constitute a determination of compliance with all applicable approved plans or zoning requirements.

G. **Remedies.** Any deed of conveyance, sale, or contract to sell real property which has been divided, or which has resulted from a division, in violation of the provisions of this Subdivision Ordinance or the Map Act shall be subject to the remedies provided in the Map Act (Sections 66499.32 through 66499.34).

H. **Notice of Violation.** Whenever the Director and/or City Engineer has received information from any source that real property has been divided in violation of the Map Act or this Subdivision Ordinance, the City shall take the actions described in the Map Act (Section 66499.36).
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 45 SURVEYS AND MONUMENTS

Sec. 15-4501. Survey Requirements.
Sec. 15-4502. Monument Material.
Sec. 15-4503. Monument Locations.
Sec. 15-4504. Monument Acceptance.

SEC. 15-4501. SURVEY REQUIREMENTS.

The procedure and practice of all survey work done upon any subdivision shall conform to accepted standards of the engineering profession, the Map Act (Sections 66495, 66496, and 66497) and this Ordinance.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4502. MONUMENT MATERIAL.

Monuments, including markings, material, length, durability, etc. shall be established by the City Engineer.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4503. MONUMENT LOCATIONS.

A. Rectangular-shaped subdivisions shall have the four corners of the property marked with a durable monument. All irregular-shaped subdivisions shall have all angle and curve points in the exterior boundary of the subdivision marked with a durable monument. All boundary monuments which fall in streets shall be referred to a similar durable monument which may be set for an adjacent block or lot corner. Subdivisions having curved streets and no block corners shall have all control or angle points of the streets marked with a durable corner referenced out to an adjacent lot corner which is also marked with a durable monument;

B. Block corners, unless otherwise marked with a durable monument, shall be marked with a semi-durable monument;

C. All lot corners shall be marked with not less than a standard ¾ inch inside diameter steel pipe, 30 inches long solidly set in the ground six inches below the surface and may be referenced by a mark not to exceed two inches in any dimension visible in the edge of the concrete sidewalk. All monuments shall bear the engineer's or surveyor's number and exact survey point except as follows:

1. In planned unit developments where lot corners are coincidental to building corners, an offset monument system may be used, provided that sufficient information is given on the map such that:
    a. Exact lot corner can be established;
    b. Lot surveys can be retraced; and
    c. Offset monument system is approved by the City Engineer.

2. Any other monument that is approved in writing by the City Engineer may be used.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-4504. MONUMENT ACCEPTANCE.

A. Before any improvements are accepted, all monuments and stakes must be set, and any monuments or stakes disturbed by said improvements shall be reset. Where no streets are to be improved, the subdivider shall post a faithful performance bond to guarantee the setting of all the above stakes and monuments;

B. The location of any boundary corner shall be proved by surveying and by showing on the Final Map the relationship of such boundary corners to section corners involved or one-fourth section corners or other well established corners;

C. All bearings shall be with reference to the true meridian, or with reference to an assumed bearing of a section or fractional section line monumented with durable monuments for a distance of not less than one-half mile, or a previously recorded subdivision, provided such subdivision tie is approved by the City Engineer; and

D. All measurements and angles turned shall be made to a standard which will insure an accuracy of not less than one in 10,000.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 46 RESERVED

ARTICLE 47 RESERVED

ARTICLE 48 RESERVED

PART V: ADMINISTRATION AND PERMITS

ARTICLE 49 PLANNING AUTHORITIES

Sec. 15-4901. Purpose.
Sec. 15-4902. City Council.
Sec. 15-4903. Planning Commission.
Sec. 15-4904. Director.
Sec. 15-4905. Historic Preservation Commission.
Sec. 15-4906. Council District Project Review Committees.
Sec. 15-4907. Summary of Primary Planning Permits and Actions.

Sec. 15-4901. PURPOSE.

The purpose of this article is to identify the bodies, officials, and administrators with designated responsibilities under various articles of the Development Code. Subsequent articles of Part V provide detailed information on procedures, applications, and permits, including Code text and zoning map amendments, and enforcement. When carrying out their assigned duties and responsibilities, all bodies, administrators, and officials shall interpret and apply the provisions of this Code to implement the policies and achieve the objectives of the General Plan.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4902. CITY COUNCIL.

The powers and duties of the City Council as the legislative body under this Code include, but are not limited to the following:

A. Consider and adopt amendments to the General Plan, operative plans, the Zoning Map, and the text of this Code pursuant to the provisions of Article 58, Amendments to Development Code Text, Rezones, and Plan Amendments, following a public hearing and recommended action by the Planning Commission.

B. Initiate new plans, amendments to operative plans, and the rezoning of property.

C. Consider and make decisions on land use entitlements.

D. Hear and decide applications for Development Agreements, pursuant to Article 60.

E. Hear and decide appeals from decisions of the Planning Commission on Conditional Use Permits, Variances, and any other permits that can be appealed, pursuant to Section 15-5017, Appeals.

F. Hear and make environmental determinations on projects that require Council action.

G. Hear and decide appeals on environmental determinations by the Director or the Planning Commission, pursuant to Section 15-5005, Environmental Review.

H. Establish, by resolution, a Master Fee Schedule listing fees, charges, and deposits for various applications and services provided, pursuant to this Code.

I. Shall designate the authority of the Planning Commission, Historic Preservation Commission, and the Planning Director. The Council shall authorize Planning Commission, Historic Preservation Commission, and the Director to take acts as specified in the Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4903. PLANNING COMMISSION.

The Planning Commission is established and organized pursuant to Article IX, Boards and Commissions, of the City Charter and the requirements of the Government Code. The powers and duties of the Planning Commission under this Code include, but are not limited to, the following:

A. All duties set forth in the City Charter (Section 907).

B. Consider and make decisions on land use entitlements.

C. Hear and decide if projects are consistent with City policies relating to architectural design, site design, connectivity to surrounding uses, performance standards, the fabric of the existing neighborhoods, etc.

D. Annually review progress towards implementation of the General Plan and recommend to the City Council changes needed to meet community needs.

E. Initiate, conduct hearings, and make recommendations to the City Council on proposed amendments to operative plans, the General Plan, Zoning Map and to the text of this Code, pursuant to Article 58, Amendments to Development Code Text, Rezones, and Plan Amendments.

F. Make environmental determinations on any approvals it grants that are subject to environmental review under the California Environmental Quality Act or the City of Fresno's adopted environmental review guidelines pursuant to State law and the procedures in Section 15-5005, Environmental Review.

G. Conduct hearings and make recommendations to the City Council on proposed revocations of permits, pursuant to Section 15-5016, Revocation of Permits.

H. Hear and decide appeals from decisions of the Director and City Engineer, and on decisions, determinations, or interpretations made in the enforcement of this Code and any other decisions that are subject to appeal, pursuant to Section 15-5017, Appeals.

I. Such other duties and powers as assigned or directed by the City Council.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4904. DIRECTOR.

The following powers and duties of the Development and Resource Management Director (the "Director") under this Code include, but are not limited to, the following.

A. Maintain and administer the Development Code, including acceptance and processing of applications, abatements, and other enforcement actions.

B. Prepare and implement rules and procedures necessary or convenient for the conduct of the Director's business. These rules and procedures must be as approved by a resolution of the City Council following review and recommendation of the Planning Commission. They may include the administrative details of notice and hearings officiated by the Director (e.g., scheduling, rules of procedure, appeals, and record-keeping).

C. Issue administrative regulations for the submission and review of applications subject to the requirements of this Code.

D. Review applications for permits and licenses for conformance with this Code and issue a Zone Clearance when the proposed use or building is allowed by right and conforms to all applicable development and use standards and other requirements of this Code.

E. Review applications for discretionary permits and approvals under this Code for conformance with applicable submission requirements and time limits.

F. Review applications for discretionary permits and approvals to make a preliminary determination as to whether a project is subject to review under the California Environmental Quality Act or the City's environmental review requirements.

G. Make recommendations to the City Council on all applications, amendments, appeals, and other matters upon which the Council has the authority and the duty to act under this Code.

H. Serve as the Secretary of the Planning Commission.

I. Make recommendations to the Planning Commission on all applications, appeals, and other matters upon which the Planning Commission has the authority and the duty to act under this Code.

J. Approve, conditionally approve, modify, or deny projects pursuant to Table 15-4907, Planning Permits and Actions.

K. Approve, conditionally approve, modify, or deny requests for deviations to dimensional requirements and requests for reasonable accommodation, pursuant to Article 56, Minor Deviations, and Article 57, Reasonable Accommodation for Housing.

L. Approve, conditionally approve, modify, or deny modifications to approved permits and modifications to approved Conditional Use Permits and Variances, pursuant to Article 50, Common Procedures.

M. Refer items to the Planning Commission where, in their opinion, the public interest would be better served by a Planning Commission public hearing and action.

N. Provide required notice and conduct public hearings and make recommendations to the City Council about Development Agreements, pursuant to Article 60.

O. Negotiate the components and provisions of Development Agreements for recommendation to the City Council.

P. Delegate administrative functions as they so deem to members of the Planning Department.

Q. Other duties and powers as may be assigned by the City Council or established by legislation.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4905. HISTORIC PRESERVATION COMMISSION.

The Historic Preservation Commission shall have the powers and duties established in the City's Historic Preservation Ordinance.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-4906. COUNCIL DISTRICT PROJECT REVIEW COMMITTEES.

A. **Purpose.** The purpose of Council District Project Review Committees is to:

1. Provide the opportunity for citizen review on every entitlement request to insure the voices of the community are heard;

2. Allow for citizens of each council district to provide insight on the unique needs and concerns that exist in the different districts; and

3. Act as advisors to the Planning Commission and City Council on the adopted plans that affect individual council districts.

B. **Number and Name.** The number of committees shall be equal to the number of the City's council districts and the boundaries of each committee shall be coterminous with the council district boundaries. The committees shall be referred to collectively as the "Council District Project Review Committees" and individually by reference to the council district number. For example, the committee for Council District 1 would be referred to as "Council District 1 Project Review Committee."

C. **Structure and Members.**

1. Each Councilmember shall determine the number of members and appropriate qualifications for their district's committee.

2. Each Councilmember shall appoint members to their district's committee. At minimum, one member on each district committee shall be appointed by the Mayor.

3. Committee members, upon appointment, shall make themselves familiar with every adopted City plan that falls within the boundaries of their committee's area.

4. Committee members shall serve at the pleasure of the appointing authority.

5. Organizational Form to Establish the Committee. The Councilmember shall complete the Organizational Form for City of Fresno Boards, Commission, Committees, and Similar Bodies attached to Resolution No. 2004-185 to establish the structure of the committee, the qualifications of the members, the number and frequency of meetings,

and any other provisions as the Councilmember deems appropriate. The Organizational Form shall be filed with the City Clerk and the Director of the Planning and Development Department before any appointments may be made.

a. Changes to the Organizational Form. Any changes to the Organizational Form shall be made in writing and filed with the City Clerk and the Director of the Development and Resource Management Department prior to implementation of the changes. A new Councilmember assuming office may adopt a different structure for their district's committee and different qualifications for committee members by filing a new Organizational Form.

D. **Committee Duties.** Committees shall have the following duties.

1. Committees shall review and provide recommendations to the Planning Commission and Council on every application for a Plan Amendment, Rezone, Tentative or Parcel Map, Conditional Use Permit, Planned Development Permit, or Variance to develop property within the committees' boundaries. Development applications may be reviewed by multiple committees if a development project crosses committee boundaries. In providing its review and recommendations, the committee shall consider every plan to which the development is subject.

   a. Development Permit applications submitted in multi-unit and mixed-use districts consistent with the Certainty Option set forth in sections 15-1004, 15-1005, 15-1104, and 15-1105 of this Code shall not be subject to review and recommendation by Council District Project Review Committees.

      Development Permit applications submitted in said districts consistent with the Flexibility Option set forth in the aforementioned sections of this Code shall be subject to review and recommendation by Council District Project Review Committees.

2. Committees shall act as liaisons between property owners, residents, business people, the community-at-large, the Council, and staff, providing a forum for public participation.

3. Committees may make recommendations to the Planning Commission and Council on any matters related to planning and zoning and the plans in the Councilmember's district, including adoption of guidelines to implement the goals and policies of adopted City plans.

4. Committees shall have any additional duties that the Councilmember provides in the Organizational Form.

E. **By-Laws.** Council shall adopt written by-laws by resolution to be applicable to all of the committees. The by-laws may only be altered by Council. These by-laws may be made applicable to committees that advise on City plans other than the Council Project Review Committees.

F. **Staff Duties.** Each committee shall be staffed by the Development and Resource Management (DARM) Department with at least one person. DARM staff shall perform the following duties:

1. Keep records for the committees and be responsible for keeping the records of the agendas and any recommendations of the committees.

2. Provide a copy (in written or electronic form) of all plans to the committees, the committee by-laws, and the Organizational Form for the committee.

3. Provide reports to the committees as requested on matters within the scope of planning and land use.

4. **Council Staff.** To the extent that a Councilmember assigns tasks to a committee that are outside the scope of land use planning, the Councilmember's office shall provide staff to the committee to assist with those tasks and otherwise perform those responsibilities that would be the duties of the staff person from the DARM Department.

G. **Brown Act and State Conflict Laws.** The committees and the committee members are subject to the Brown Act (Cal. Gov't Code §§ 54950 et seq.) and the State laws on conflicts regarding public officials (including Cal. Gov't Code §§ 87100 et seq.).

H. **Additional Committees.** Nothing in this section is intended to limit the ability of Council or the Mayor after the effective date of this Ordinance from establishing committees in addition to the Council District Project Review Committees to advise on plans or guidelines adopted under the City's plans; including committees created to help draft new plans.

1. Development Permit applications submitted in multi-unit and mixed-use districts consistent with the Certainty Option set forth in sections 15-1004, 15-1005, 15-1104, and 15-1105 of this Code shall be subject to review by applicable Specific Plan Design Review Committees as follows:

    a. Upon completion of an application following internal departmental review, DARM Department staff shall provide the completed application to members of any applicable Specific Plan Design Review Committee.

    b. If a Committee member chooses to request a meeting to discuss the application, they must submit the request to DARM Department staff within three business days of their receipt of the application.

    c. A meeting of the applicable Specific Plan Design Review Committee must be set within 5 business days of the first request for a meeting.

    d. If no members of a Committee request a meeting to discuss the application within the allotted time, it shall move forward without review by the Committee.

e. The Committee's review is limited to verification of the project's compliance with the requirements of the Certainty Options set forth in sections 15-1004, 15-1005, 15-1104, and 15-1105 of this Code, and the requirements of any applicable Specific Plan, including all applicable design guidelines.

I. **Compensation.** Council may provide a stipend to committee members through the Master Fee Schedule.

J. **Suspension.** Notwithstanding any other provision in this section, Councilmembers, may, at their discretion, suspend meetings of their Council District Project Review Committee. The suspension will be documented by a written notice filed with the City Clerk. At their discretion, Councilmembers may resume their Council District Project Review Committee meetings by written notice filed with the City Clerk. In the event of such a suspension, projects shall not be subject to the review of the suspended committee.

K. Nothing within this section shall be construed as to cause the dissolution or suspension of any committee in existence at the time of the adoption of this Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, §§ 33, 34, eff. 10-21-16; Am. Ord. 2018-25, § 30, eff. 6-11-18; Am. Ord. 2025-024, §§ 75, 76, eff. 7-27-25).

Sec. 15-4907. SUMMARY OF PRIMARY PLANNING PERMITS AND ACTIONS.

The following table shows, for ease of reference, a brief summary of the permits and actions that are administered under this Code. The table is not regulatory. For complete regulations, procedures, and requirements, see Articles 49 through 66.

TABLE 15-4907: PLANNING PERMITS AND ACTIONS

Proposed Activity	*Permit or Action Required*	*Type of Decision*
Use-Only Proposals		
Establishment of a (P) Permitted use, not associated with development of property	Zone Clearance	Ministerial
Establishment of a (C) Conditional use	Conditional Use Permit	Discretionary Quasi-Judicial
Establishment of a Temporary use	Temporary Use Permit	Discretionary Quasi-Judicial
Establishment of use which is not listed in this Code	Director's Determination	Ministerial
Development Proposals		
Second Dwelling Unit	Building permit	Ministerial
Development of one single-unit home, duplex, or qualifying Downtown housing which complies with all provisions of this Code	Zone Clearance	Ministerial
Development of property to a greater extent than is covered by a Zone Clearance	Development Permit (Formerly Site Plan Review)	Discretionary Quasi-Judicial
Request for relief from property development standards due to unique conditions in conjunction w/a Development Permit	Variance	Discretionary Quasi-Judicial
Request for relief from property development standards of 10% or less in conjunction with a Development Permit	Minor Deviation	Discretionary Quasi-Judicial

TABLE 15-4907: PLANNING PERMITS AND ACTIONS		
Proposed Activity	*Permit or Action Required*	*Type of Decision*
Innovative development proposal which does not comply with the provisions of any zone district within this Code	Planned Development Permit	Discretionary Quasi-Judicial
Development of new multi-unit residential or Office-to-Dwelling conversions in the O District	Zone Clearance	Ministerial
Development of a multi-unit residential project in Multi-Unit districts within half a mile of a Major Transit Stop as defined in Appendix M of the California Environmental Quality Act Guidelines	Zone Clearance	Ministerial
Development of housing in Mixed-Use Districts within the City Infill Priority Area	Zone Clearance	Ministerial
Other Proposals or Actions		
Formal interpretation of this Code, verifications of prior permits, or confirmation of zoning district	Zoning Inquiry	Ministerial
Minor changes to approved plans, consistent with original findings and conditions	Minor Modification	Ministerial
Change to discretionary permit or change to approved plans that would affect findings or conditions	Major Modification	Discretionary Quasi-Judicial
Violation of conditions or terms of permit	Revocation of Permit	Discretionary Quasi-Judicial
Modifications of or exceptions from regulations to ensure equal access to housing for individuals with disabilities	Reasonable Accommodation for Housing	Discretionary Quasi-Judicial
Proposals to change a regulation within this Code	Development Code Text Amendment	Discretionary Legislative
Proposal for development which complies to regulations of an existing district, but not the one currently applied to the site	Rezone	Discretionary Legislative
Change of the General Plan land use designation for a site	Plan Amendment	Discretionary Legislative
Large, multi-phase project which needs certainty regarding regulations over time in exchange for public benefits	Development Agreement	Discretionary Legislative

NOTE: This table is not regulatory, and is provided only as an overview of permits and actions for ease of reference. For complete regulations, procedures, and requirements, see Articles 49 through 66.
PC = Planning Commission and CC= City Council

TABLE 15-4907: PLANNING PERMITS AND ACTIONS (CONTINUED)						
Permit or Action	*Advisory Body*	*Review Authority*	*Appeal Body*	*Public Notice?*	*Public Hearing?*	*Article*
Use-Only Proposals						
Zone Clearance	-	Director	PC	No	No	51
Conditional Use Permit	-	Director (PC on referral)	PC (CC if referred)	Yes	No (Yes w/PC referral)	53
Temporary Use Permit	-	Director	PC	No	No	54
Director's Determination	-	Director	PC	No	No	50
Development Proposals						
Zone Clearance	-	Director	PC	No	No	51
Development Permit (Formerly Site Plan Review)	-	Director (PC on referral)	PC (CC if referred)	No	No (Yes w/PC referral)	52

TABLE 15-4907: PLANNING PERMITS AND ACTIONS (CONTINUED)						
Permit or Action	*Advisory Body*	*Review Authority*	*Appeal Body*	*Public Notice?*	*Public Hearing?*	*Article*
Variance	-	Director (PC on referral)	PC (CC if referred)	Yes	No (Yes w/PC referral)	55
Minor Deviation	-	Director	PC	No	No	56
Planned Development Permit	-	Director (PC on referral)	PC (CC if referred)	Yes	No (Yes w/PC referral)	59
Other Proposals or Actions						
Zoning Inquiry	-	Director	PC	No	No	50
Minor Modification	-	Director	PC	No	No	50
Major Modification	Director	Review Authority of Original Permit	PC or CC	Yes	Same as Original Permit	50
Modification or Revocation of Permit	See Section 15-5016					
Reasonable Accommodation for Housing	-	Director	PC	No	No	57
Development Code Text Amendment	PC	CC	None	Yes	Yes	58
Rezone	PC	CC	None	Yes	Yes	58
Plan Amendment	PC	CC	None	Yes	Yes	58
Development Agreement	PC	CC	None	Yes	Yes	60

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-43, § 13, eff. 12-9-16; Am. Ord. 2024-043, § 1, eff. 1-16-25; Am. Ord. 2025-024, § 77, eff. 7-27-25; Am. Ord. 2025-023, § 4, eff. 12-26-25).

Editor's note—Ord. 2024-043, § 1, adopted December 12, 2024, and effective January 16, 2025, amended the title of § 15-4907 to read as herein set out. The former § 15-4907 title pertained to summary of primary planning permits and actions. Subsequently, Ord. 2025-023, § 4, effective December 26, 2025, amended the title of § 15-4907 to read as herein set out. The former § 15-4907 title pertained to planning permits and actions.

ARTICLE 50 COMMON PROCEDURES

Sec. 15-5001. Purpose.
Sec. 15-5002. Application and Fees.
Sec. 15-5003. Pre-Application Review.
Sec. 15-5004. Review of Applications.
Sec. 15-5005. Environmental Review.
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Sec. 15-5013. Expiration of Planning Entitlements.
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Sec. 15-5015. Modification of Approved Plans.
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Sec. 15-5019. Zoning Inquiry.
Sec. 15-5020. Director's Determination.
Sec. 15-5021. Building Permit.
Sec. 15-5022. Certificates of Occupancy.

SEC. 15-5001. PURPOSE.

This article establishes procedures that are common to the application and processing of all permits and approvals provided for in this Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5002. APPLICATION AND FEES.

A. **Applicant.**

1. The property owner(s) shall sign all applications.
2. If the application is made by someone other than the owner, written proof, satisfactory to the Director, of the right to act as the owner's agent or to use and possess the property as applied for, shall accompany the application.
3. Written proof of authorization must be signed and dated by the property owner and expressly state what the agent is authorized to do on behalf of the owner.

B. **Forms and Materials.**

1. **Application Forms.** The Director shall prepare and issue application forms and lists that specify the information that will be required from applicants for projects subject to the provisions of this Code.
2. **Supporting Materials.** The Director may require the submission of supporting materials as part of the application, including, but not limited to, operational

statements, photographs, plans, drawings, renderings, models, material and color samples, and other items necessary to describe existing conditions on the project site and in the vicinity and the proposed project and to determine the level of environmental review pursuant to the California Environmental Quality Act.

3. **Availability of Materials.** All material submitted becomes the property of the City, may be distributed to the public, and shall be made available for public inspection. At any time, upon reasonable request, and during normal business hours, any person may examine an application and materials submitted in support of or in opposition to an application in the Planning Division offices. Unless prohibited by law, copies of such materials shall be made available at a reasonable cost.

C. **Application Fees.**

1. **Payment of Application and Processing Fees.** No application or covenant shall be accepted as complete and processed without payment in full of the required application and review fee per the Master Fee Schedule.

2. **Multiple Applications.** The City's processing fees are cumulative. For example, if an application for a Conditional Use Permit also includes a Variance, both fees shall be charged. Cost savings may be incurred due to similar documents being prepared for a single project, such as CEQA review, should the applications be filed simultaneously.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5003. PRE-APPLICATION REVIEW.

Pre-application review is a process that is intended to provide information on relevant General or Specific Plan policies, zoning and subdivision regulations, and procedures related to projects requiring discretionary approval pursuant to this Code.

A. **Applicability.** Pre-application review is required for any project that requires a discretionary approval, including, but not limited to, Development Permits, Conditional Use Permits, Variances, Planned Developments, Rezones, General Plan Amendments, subdivisions, and Annexations.

B. **Exemption from Permit Streamlining Act.** Pre-application review is not subject to the requirements of the California Permit Streamlining Act (the "Act"). An application that is undergoing pre-application review shall not be considered complete pursuant to the requirements of the Act unless and until the Director has received an application for approval of a development project, reviewed it, and determined it to be complete under Section 15-5004, Review of Applications. Applications undergoing pre-application review shall not constitute submission and receipt by the City of an application.

C. **Review Procedure.** The DARM Department shall conduct pre-application review. The Director may consult with or request review by any City agency or official, group, or persons with interest in the application.

D. **Summary of Recommendations.** The Director shall provide the applicant with a written summary of the procedures and requirements applicable to the potential project.

E. **Recommendations Are Advisory.** Neither the pre-application review nor the provision of information and/or pertinent policies shall be construed as a recommendation for approval or denial of the application(s) by City representatives. Any recommendations that result from pre-application review are considered advisory only and shall not be binding on either the applicant or the City. During the formal review of applications, additional information, applications, etc., may be required.

F. **Formal Submittal.** Following completion of the pre-application review procedure, the applicant may submit the application and filing fees to the City.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 35, eff. 10-21-16).

SEC. 15-5004. REVIEW OF APPLICATIONS.

A. **Determination of Completeness.** In compliance with Government Code Section 65920 (the "Permit Streamlining Act" or "PSA"), within 30 days upon receipt of an application for a development project, the Director shall determine and notify the applicant in writing as to whether an application is complete.

B. **Incomplete Application.** If an application is incomplete, the Director shall provide written notification to the applicant listing the applications for permit(s), forms, information, and any additional fees that are necessary to complete the application.

1. **Appeal of Determination.** Determinations of incompleteness are subject to the provisions of Section 15-5017, Appeals, except there shall be a final written determination on the appeal no later than 60 days after receipt of the appeal.

2. **Submittal of Additional Information.**

   a. The applicant shall provide the additional information within the time limit specified by the Director, which must be no sooner than 30 days. The Director may grant one extension of up to 90 days.

   b. Upon submission of additional requested materials, the Director shall make a new determination and notify the applicant in writing as to whether the application is complete within 30 days of the date the additional materials are received by the City.

3. **Expiration of Application.** If an applicant fails to correct the specified deficiencies within the specified deadline set forth in the Director's letter setting forth the application's deficiencies, or an extended deadline consistent with the maximum time-frames set forth in Subparagraph 2 above, the application shall expire and be deemed withdrawn. After the expiration of an application, project review shall require the submittal of a new, complete application, along with all required fees.

4. **Refund of Fees for Terminated Applications.** The Director shall determine an appropriate refund for fees that may have been collected.

C. **Extensions.** The Director may, upon written request and for good cause, grant extensions of any time limit for review of applications imposed by this Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5005. ENVIRONMENTAL REVIEW.

A. **Purpose.**

1. The purpose of this section is to comply with Public Resources Code, Section 21082 that mandates local agencies to adopt by ordinance, resolution, rule or regulation, objectives, criteria, and procedures for the evaluation of projects and the preparation of environmental impact reports, and negative declarations. As part of the review to determine whether an application for a development project is complete, the Director shall conduct a preliminary assessment of potential environmental issues.

2. The purpose of this review is to help the City decide if the project is subject to environmental review and, if so, which issues may require analysis. An application subject to environmental review pursuant to the California Environmental Quality Act (CEQA) shall not be considered complete until the applicant has submitted all studies and other documentation the Director has deemed necessary to make an environmental determination.

B. **Applicability.** The California Environmental Quality Act (CEQA), Public Resources Code Section 21000 et seq., applies to development projects as may be determined by the City.

C. **CEQA References.** Any reference to "CEQA," includes Public Resources Code 21000 et. seq.

D. **Review for Exemption.** If the Director determines that the application is subject to review under CEQA, within 30 days after determining that the application is complete, the Director shall determine if the project is exempt from environmental review pursuant to State law, CEQA Guidelines and any environmental guidelines that the City has adopted in compliance with CEQA.

1. If the Director has determined that a project is exempt from environmental review under CEQA, such determination shall be supported with necessary written findings and substantial evidence and included in any public notice required for the project. The notice shall include a citation to the applicable statute or CEQA Guideline section under which it is found to be exempt.

2. Following approval of a project that is exempt from CEQA review, the Director or the applicant may file a Notice of Exemption with the Fresno County Clerk. The applicant for a project shall be responsible for any fees required to file such notice.

E. **Environmental Review Application.** If the proposed project is not exempt from environmental review, the applicant shall submit an application for environmental review. After receiving an environmental review application and required studies, the Director shall determine whether to require preparation of an Environmental Impact Report (EIR), Negative Declaration or Mitigated Negative Declaration or whether the project is within the scope of a Master EIR, or other appropriate document authorized by CEQA. In order to make this determination, the Director shall prepare or cause the preparation of an Initial Study at the applicant's expense.

F. **Preparation of Initial Study.**

1. The Initial Study shall be prepared in compliance with State law, CEQA Guidelines and any environmental guidelines that the City has adopted in compliance with CEQA.

2. Following completion of the Initial Study, the Director shall notify the applicant in writing of changes to the project deemed necessary to reduce or avoid any significant effects or revise the project to reduce its impacts to less than significant identified in the Initial Study; or

3. Within 30 days following the date of the notification described above, the applicant shall provide written notification to the Director indicating that the proposed modifications are acceptable or shall propose alternative measures that will achieve the same result. If the applicant does not agree to revise the project, an EIR shall be prepared. Alternatively, if the applicant does not respond to letter, the application shall be terminated by the City.

4. If an EIR is being prepared, an Initial Study is not mandatory as outlined by CEQA.

G. **Determination of Environmental Significance.** Based on the Initial Study, the Director will make one of the following findings and prepare the appropriate environmental documentation in compliance with State law, CEQA Guidelines and any environmental guidelines that the City has adopted in compliance with CEQA.

1. The project will have "No Significant Impacts" on the environment, and a Negative Declaration will be prepared;

2. The project has been modified to mitigate potential environmental impacts to a level of insignificance and a Mitigated Negative Declaration will be prepared;

3. The project is within the scope of a Master EIR or other appropriate document authorized by CEQA, no additional significant environmental effect will result, and no additional mitigation measures or alternatives may be required; or

4. The proposed project will have, or may have, significant impact(s) and an EIR will be required.

H. **Review Authority for the CEQA Finding.** The Review Authority of the entitlement shall also have the authority to adopt the related CEQA finding. For example, should the Director be the Review Authority, the Director shall also have the authority to approve the related CEQA finding.

I. **Appeals.** Notwithstanding other provisions of this Code, the applicant or any aggrieved person may appeal the following environmental determinations made by non-elected decision making bodies of the City directly to Council in the manner described in Section 15-5017, Appeals, unless the Council is the approving authority for the project:

1. Determination that a project is or is not subject to environmental review.
2. Determination that a project is exempt from environmental review.
3. Approval of a Negative Declaration or Mitigated Negative Declaration.
4. Approval of a Finding of Conformity with the Master EIR.
5. Certification of a Final EIR.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5006. NEIGHBORHOOD MEETING.

Neighborhood Meetings shall be conducted as follows:

A. **Applicability.** Neighborhood meetings shall not be required except when specifically stated in this Code or when otherwise required by the Director.

B. **Responsibility.** When required, a neighborhood meeting shall be conducted by the applicant at the applicant's expense.

C. **Purpose.** The purpose of the neighborhood meeting shall be to acquaint the neighborhood with the proposed operation and to receive comment.

D. **Timing.** A neighborhood meeting shall held be prior to the submission of the associated project application.

E. **Notice.** Notices of the meeting shall be mailed by first class mail, a minimum 10 days prior to the meeting date, to every owner whose name and address appears on the last equalized County Assessment Roll for any property within 500 feet of the exterior boundaries of the subject property. Proof shall be submitted to the City that such a notice was mailed.

F. **Meeting Location, Date, and Time.**

1. The meeting shall be held at a location acceptable to the Director.
2. The meeting shall begin between the hours of 6:00 p.m. and 7:00 p.m.
3. The meeting shall not be held on a Friday, Saturday, Sunday, or on any of the following days: Federal Holidays, New Year's Day, New Year's Eve, Birthday of Martin Luther King, Jr., Mardi Gras Day, Washington's Birthday, St. Patrick's Day, Memorial Day, May 5th (Cinco de Mayo), Independence Day, Halloween,

Labor Day, Thanksgiving Day Eve, Columbus Day, Veterans Day, Thanksgiving Day, Christmas Day, or other days of celebration as determined by the Director.

G. **Posting.** The applicant shall be responsible to post required notices in a prominent place near the entrance to the premises to make it apparent that a neighborhood meeting will be held. It shall be 11 × 17 inches in size, in a form acceptable to the City.

H. **Materials.** The applicant shall provide participants with a detailed operational statement which shall also be submitted to the City.

I. **Report.** A detailed report of the meeting shall be submitted to the City with the project application.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5007. PUBLIC NOTICE.

Unless otherwise specified, whenever the provisions of this Code require public notice, the City shall provide notice as follows.

A. **Timing of Notice.** The Director shall provide a notice at least 10 days before the date of the public hearing or the date of action when no public hearing is required.

1. **Dual Notice.** When two hearings for the same project will occur within 20 days of one another, a single notice for both hearings is permitted.

B. **Mailed Notice.** The Director shall provide notice by First Class mail delivery to:

1. The applicant and the property owner; and

2. All property owners of record within a minimum 1,000-foot radius of the subject property as shown on the latest available assessment role; and

3. Any person or group who has filed a written request with the Director for notice regarding the specific application.

4. **Additional Notices.** The Director, at their discretion, may increase the public notice distance requirements if, in their opinion, the project has the potential to impact properties outside of the standard mailing radius.

5. **Conditions of Zoning.** For modifications to Conditions of Zoning that were placed on a property that was also subject to a Plan Amendment, the rezone public notice distance shall be increased to a minimum 500-foot radius of the subject property while a public notice shall also be posted on the site per Subsection C below.

C. **Posting of the Site.** For other instances where the posting of a site may be required by this Code, the applicant shall post a public notice on the subject property per the following:

1. The public notice shall be posted at least 10 days prior to the public hearing or action;

2. At least one notice per street frontage shall be posted;

3. There shall be at least one notice per 500 feet of street frontage;

4. The City shall prepare the notice;

5. The notice shall contain the information per Subsection E below;

6. The notice shall be a minimum of 11 × 17 inches; and

7. Should the site be developed, a notice shall be posted in a conspicuous location proximate to the entrance(s) of the subject property. This notice shall be in addition to the notices that are required to be posted along the street frontage(s).

D. **Alternative Method for Large Mailings.** If the number of owners to whom notice would be mailed or delivered is greater than 1,000, instead of mailed notice, the Director may provide notice by placing a display advertisement of at least one-eighth page in at least one newspaper of general circulation in the city at least 10 days prior to the hearing.

E. **Contents of Notice.** The notice shall include the following information:

1. The location of the real property, if any, that is the subject of the application;

2. A general description of the proposed project or action;

3. The date, time, location, and purpose of the public hearing or the date of action when no public hearing is required;

4. The identity of the hearing body or officer;

5. The names of the applicant and the owner of the property that is the subject of the application;

6. The location and times at which the complete application and project file, including any environmental assessment or determination of exemption from CEQA prepared in connection with the application, may be viewed by the public;

7. A statement that any interested person or authorized agent may appear and be heard and that failure to object to the approval and state said reasons prior to or at the hearing on the decision shall potentially bar any later court challenge to the project approval;

8. A statement describing how to submit written comments;

9. A statement describing how to obtain additional information; and

10. For Council hearings, the Commission's recommendation, if available at the time of the notice.

F. **Posting to City Website.** When public noticing is required, the notice shall be posted to a designated, central location on the City's website at least 10 days before

the public hearing. However a failure to post to the website due to technical difficulties shall not constitute grounds to postpone the hearing or invalidate the decision made at the hearing.

G. **Failure to Notify Does Not Affect Validity.** The validity of the proceedings shall not be affected by typographical errors in the notice or the failure of any property owner, resident, neighborhood, or interested party to receive a notice.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, §§ 36, 37, eff. 10-21-16).

SEC. 15-5008. CONDUCT OF PUBLIC HEARINGS.

Whenever the provisions of this Code require a public hearing, the hearing shall be conducted in compliance with the bylaws and meeting procedures for said decision-making body and/or review authority.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5009. NOTICE OF ACTION.

A. After the Director or Planning Commission takes any action to approve, modify, or deny an application that is subject to appeal under the terms of this Code, the Director shall issue a Notice of Action. The Notice shall describe the action taken, including any applicable conditions, and shall list the findings that were the basis for the decision.

B. The Director shall mail the Notice of Action within 10 days from the date of taking the action to the applicant and to any other person or entity that has filed a written request for such notification with the Planning Division.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5010. SCOPE OF APPROVALS.

A. **Scope.** Any approval shall only be for those uses and activities proposed in the application, and excludes other uses and activities. Approvals run with the land and/or building/tenant space, not the applicant. Unless otherwise specified, the approval of a new use shall terminate all rights and approvals for previous uses that are no longer occupying the same site or tenant space.

B. **Conditions of Approval.** The site plan, floor plans, building elevations, and/or any additional information or representations, indicating the proposed structure or manner of operation submitted with an application or submitted during the approval process shall be deemed conditions of approval. Any approval may be subject to requirements that the applicant guarantees, warranties, or insures that the applicant will comply with permit's plans and conditions in all respects.

C. **Actions Voiding Approval.** If the construction of a building or structure or the use established is contrary to the description or illustration in the application or based on misrepresentations, so as to either violate any provision of this Code or require additional permits, then the development may be deemed out of compliance with issued permits and the FMC and will be subject to revocation procedures set forth within this Development Code.

D. **Periodic Review.** All approvals may be subject to periodic review to determine compliance with the permit and applicable conditions. If a condition specifies that activities or uses allowed under the permit are subject to periodic reporting, monitoring, or assessments, it shall be the responsibility of the permit holder and the property owner, or successor property owners, to comply with such reporting, monitoring and assessment requirements as stipulated as part of the granting of the permit. Failure to comply may constitute grounds for revocation.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5011. COVENANTS, AGREEMENTS, AND STATEMENTS.

A. Whenever performance of any condition or accomplishment of any development is required by the grant of an approval, and the performance or accomplishment is to occur at or after a specified time, the Director may require the record owner of the land involved to execute a covenant running with the land outlining responsibilities. All covenants and/or agreements shall be approved as to form by the City Attorney and shall be recorded at the Fresno County Recorder's Office.

B. **Releases from Covenants.** The Director shall issue written releases from required covenants, to be recorded with the County, when they are no longer applicable.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5012. EFFECTIVE DATES.

A final decision on an application for any approval subject to appeal shall become effective after the expiration of the 15-day appeal period following the date of action on an application, unless an appeal is filed. Appeals shall be filed with the Director before the close of business on the 15th day. No building permit or permits shall be shall be issued until the 16th day following the date of the action. Should the permit not include a building permit, activities of said permit shall not commence until the 16th day.

A. **Planning Commission Decision.** Unless the Planning Commission decision is appealed for hearing to the Council in accordance with Section 15-5017, Appeals, the decision of the Commission shall be final, subject to writ of administrative mandamus under 1094.6 of the Code of Civil Procedures.

B. **Failure to Appeal Commission Decision.** Failure by any interested person to petition a Councilmember or the Mayor for an appeal shall constitute a failure to exhaust administrative remedies.

C. **Failure to Appeal the CEQA Finding.** In accordance with Section 15-5005-I, Appeals, any person may appeal a CEQA Finding not made by the Council to the Council.

D. **New Application.** A new application for a project on the same site may be applied for after the expiration of the appeal period.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5013. EXPIRATION OF PLANNING ENTITLEMENTS.

A. **Expiration.** A permit granted under this Code shall automatically expire if it is not exercised or extended within three years of its issuance.

1. **Extension for Permit with no Tentative Map.** A time extension not exceeding one year beyond the initial three-year period may be requested by applying to the Director at least 30 days prior to the expiration date of the permit. In no case shall the expiration period extend more than four years from the date of final approval. After that time, a new application shall be required. In order to grant an extension, the Director shall find:

   a. That the permit holder has clearly documented that they have made a good faith effort to commence work upon the use;

   b. That it is in the best interest of the City to extend the permit; and

   c. That there are no substantial changes to the project, no substantial changes to the circumstances under which the project is undertaken, and no new information of substantial importance that would require any further environmental review pursuant to the California Environmental Quality Act.

2. **Extension for Permit Granted in Conjunction with Tentative Map.** The time limits for any permit granted in conjunction with an approved tentative map shall be automatically extended to be the same as the term of such tentative map.

B. **Exercise of a Development Permit Approval.** A Development Permit approval is exercised when a City Building Permit or Grading Permit is secured and physical construction lawfully commenced. After a Grading Permit is issued, the applicant shall maintain an active permit until completion of the project.

C. **Exercise of Conditional Use Permit.** A permit for the use of a building or a property is exercised when all of the following have occurred:

1. If required, a Certificate of Occupancy has been issued;

2. If required, a valid City business license has been granted;

3. The permitted use(s) has commenced on the site; and

4. If required, a City Building Permit or Grading Permit is secured and construction lawfully commenced. After a Grading Permit is issued, the applicant shall maintain an active permit until completion of the project.

D. **Exercise of Building Permit.** A permit for the construction of a building or structure is exercised when a valid City Building Permit, if required, is issued, and construction has lawfully commenced.

E. **Expiration of a Grading or Building Permit.** Should a Grading or Building Permit expire and the time limits specified in this subsection elapse, a new entitlement shall be required.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-5014. PHASED PROJECTS.

A. Phased projects may be permitted subject to the following:

1. Future phases were identified as part of the original permit.

2. Future Special Uses shall be required to submit and gain approval at the time the use will be established.

B. **Commencement of Phases.** The initial phase of a project shall commence within the time periods identified in Section 15-5013, Expiration of Planning Entitlements, above. For future phases:

1. For projects less than five acres in area or less than 100,000 sq. ft. of building area, all phases shall be commenced within six years of the original project approval.

2. For all other projects, all future phases shall commence within 10 years.

C. **New Permits Required.** For phased projects that do not commence within the specified periods, a new permit shall be required.

D. **Subdivisions.** The time limits for any permit granted in conjunction with an approved tentative map shall be automatically extended to be the same as the term of such tentative map.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-5015. MODIFICATION OF APPROVED PLANS.

No change in the use or structure for which a permit or other approval has been issued is permitted unless the permit is modified as provided for in this Code. For the purpose of this section, the modification of a discretionary permit may include modification of a Development Permit approval.

A. **Minor Modifications.** The Director may approve minor changes to approved plans that are consistent with the original findings and conditions approved by the Review Authority and would not intensify any potentially detrimental effects of the project or create a new unanticipated impact that may or may not be significant.

B. **Major Modifications.** A request for changes in conditions of approval of a Discretionary Permit or a change in an approved site plan or building plan that would affect a condition of approval or increase the project's density or intensity or

create a potentially significant environmental impact shall be treated as a new application, except that the Director may approve changes that they determine to be minor.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-5016. REVOCATION OF PERMITS.

Any permit granted under this Code may be revoked or modified if any of the conditions or terms of the permit are violated or if any law or code is violated.

A. **Initiation of Proceedings.** Revocation proceedings may be initiated by the City Council, Planning Commission, or Director. The Council or Commission may initiate revocation proceedings with adoption of a resolution, whereas the Director shall prepare a letter per Subsection B below.

B. **Notice of Initiation.** The Director shall give notice of the initiation of revocation proceedings together with the reasons therefor to the property owner. The Director shall set forth in such notice a tentative hearing date for consideration of the proposed revocation which shall be not less than 30 days after the giving and posting of such notice.

C. **Notice and Opportunity to Cure.** The property owner shall be granted an opportunity to remedy any violations. If such violation is not corrected to the reasonable satisfaction of the City within the time stipulated by the Notice of Initiation, or within such reasonable time as may be required to cure the violation, the City may pursue any remedy available under local, State, or federal law.

D. **Revocation Authority.** The Modification or Revocation Authority for permits is identified in Table 15-5016. The body identified shall hold an evidentiary hearing.

TABLE 15-5016: MODIFICATION OR REVOCATION AUTHORITY

Original Decision Making Body	*May Initiate Modification or Revocation Proceedings?*	*Modification or Revocation Authority*	*Public Notice and Posting of the Site?*
Director	Yes	Planning Commission	Yes
Planning Commission	Yes	Planning Commission	Yes
City Council	Yes	City Council	Yes

E. **Public Notice and Hearing.**

1. The decision-making body shall hear and consider all relevant evidence, including, but not limited to, applicable staff reports, objections or protests by the permit holder with regard to the alleged violations of required conditions, the public, and recommendations proposed by staff.

2. The decision-making body may revoke or modify the permit if it makes a finding on any one or more of the grounds listed in Subsection G below.

F. **Revocation Hearing Procedures.** The decision-making body shall establish the revocation hearing procedures.

G. **Required Findings.** The decision-making body may revoke or modify the permit if it makes any of the following findings:

1. The approval was obtained by means of fraud or misrepresentation of a material fact.

2. The use, building, or structure has been substantially changed in character or expanded beyond what is set forth in the permit.

3. The use in question has ceased to exist or has been discontinued for one year or more.

4. There is or has been a violation of or failure to observe the terms or conditions of approval of the permit or variance, or the use has been conducted in violation of the provisions of this Code, or any applicable law or regulation.

5. The use to which the permit or variance applies has been conducted in a manner detrimental to the public safety, health, and welfare, or so as to be a nuisance.

H. **Notice of Action.** Following action to revoke or modify a permit, the Director shall within 10 days issue a Notice of Action describing the decision-making body's action, with its findings. The notice shall be mailed to the property owner and to any person who requested the revocation proceeding.

I. **Appeals.** Revocation decisions are subject to the appeal provisions of Section 15-5017, Appeals.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2024-043, § 1, eff. 1-16-25).

Sec. 15-5017. APPEALS.

A. **Applicability.** Any action by the Director or Planning Commission in the administration or enforcement of the provisions of this Code may be appealed in accordance with this section.

1. **Appeals of Director Decisions.** Decisions of the Director made pursuant to this Code may be appealed to the Planning Commission by filing a written appeal with the Director. Appeals may be filed by any person aggrieved by the decision. The appeal shall identify the decision being appealed and shall clearly and concisely state the reasons for the appeal. The appeal shall be signed by the person making the appeal and accompanied by the required fee.

2. **Appeals of Planning Commission Decisions.** Decisions of the Planning Commission may be appealed to the City Council by the Councilmember of the district in which the project is located or by the Mayor, either on their own initiative or upon receiving a petition from any person. Appeals must be initiated by filing a letter with the Director. Such action shall require a statement of reasons for the appeal.

3. **CEQA Appeals.** CEQA appeals shall be made pursuant to Section 15-5005, Environmental Review, including CEQA appeals per Section 15-5005-I, Appeals.

B. **Time Limits.** Unless otherwise specified in governing State or federal law, all appeals shall be filed with the Director in writing within 15 days of the date of the action, decision, CEQA determination, motion, or resolution from which the action is taken.

C. **Procedures.**

1. **Proceedings Stayed by Appeal.** The timely filing of an appeal shall stay all proceedings in the matter appealed including, but not limited to, the issuance of City building permits and business licenses.

2. **Transmission of Record.** The Director shall schedule the appeal for consideration by the authorized hearing body within 40 days of the date the appeal is filed. The Director shall forward the appeal, the Notice of Action, and all other documents that constitute the record to the decision making body hearing the appeal. The Director shall also prepare a staff report. The Director, at their discretion, may include a recommendation for action.

3. **Withdrawal.** Any person who files an appeal of any decision rendered under any of the procedures included in this article may withdraw their appeal in accordance with the following rules:

    a. All withdrawals shall be in writing and signed by all persons who signed the appeal.

    b. Any appeal may be withdrawn by the appellant prior to the giving of the notice of hearing on appeal with the consent of the Director, who shall have the discretion to withhold such consent if the Director is of the opinion that such withdrawal might act to deprive other interested persons of an opportunity to oppose the action appealed from.

    c. The body appealed to may permit the withdrawal of an appeal at any time prior to rendering a decision upon the merits of the appeal.

    d. Any withdrawal effectively made pursuant to the above rules shall be an abandonment of the appeal and the decision appealed from shall be reinstated as though no appeal had been made.

    e. Refunds shall not be issued for the withdrawal of appeals.

D. **Public Notice and Hearing.** Public notice shall be provided and the hearing conducted by the applicable appeal body pursuant to Article 50, Common Procedures. Notice of the hearing shall also be given to the applicant and party filing the appeal and any other interested person who has filed with the City Clerk a written request for such notice. In the case of an appeal of a Planning Commission decision, notice of such appeal shall also be given to the Planning Commission. The Planning Commission may be represented at the hearing.

E. **Action.** An action to grant an appeal shall require a majority vote of the appellate body members present representing a quorum. A tie vote shall have the effect of rejecting the appeal.

F. **Effect of Council Decision.** Unless otherwise provided in the City Charter or Fresno Municipal Code, the Council decision shall be final and effective and subject to a writ under Code of Civil Procedure Section 1094.5 or CEQA Section 1085 immediately upon Council action.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5018. CONCURRENT PROCESSING.

Notwithstanding Section 15-5021-C.3 (Building Permit), if requests for multiple Planning entitlements, permits, or approvals are submitted concurrently, they shall all be heard and acted upon at the same time and in the same manner as the entitlement, permit, or approval with the most stringent requirements, as determined by the Director.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5019. ZONING INQUIRY.

Requests for formal interpretations of this Code, verifications relating to prior approvals or permits, or confirmation of the applicable zone district for a parcel may be made to the Director. Requests shall be in writing. The decision of the Director shall be made consistent with resolutions adopted by the Commission and Council. This decision may be appealed under Section 15-5017, Appeals.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5020. DIRECTOR'S DETERMINATION.

Should this Code not list a permitted use, either directly or indirectly, an applicant may petition the Director to make a determination per this section.

A. **Application.** The applicant shall provide a detailed operational statement that, at a minimum, provides:

1. A clear definition of the use and a thorough explanation that outlines how the proposed use differs from other uses already identified in the Code.
2. A minimum of three examples how other communities administer the proposed use.
3. A minimum of three local land use examples, including photographs of how the proposed use is different than similar uses.

B. **Public Outreach.** Prior to making a determination, the Director shall:

1. Present the project to each advisory group (i.e., Plan Implementation and/or Council District Project Review Committees) for comments;
2. Discuss the matter with the Commission at a regularly scheduled hearing; and
3. Shall refer the proposal to the Airport Land Use Commission.

C. **Review Authority.** The Director, after consulting those identified in Subsection B, may take action per the required findings in Subsection D below, or at their

discretion may refer the proposal to the Commission and the Council for consideration. Alternatively, the Director, Commission, or the Council may require a Text Amendment pursuant to Article 58, Amendments to Development Code Text, Rezones, and Plan Amendments.

D. **Required Findings.** In classifying an unlisted use, the Review Authority shall first make a finding that all of the following conditions exist:

1. The subject use and its operation are compatible with the uses permitted in the district where it is proposed to be allowed;

2. The subject use is similar to three or more uses permitted in the district within which it is proposed to be allowed;

3. The subject use will not cause substantial injury to the value of the property in neighborhoods or districts within which it is likely to be located; and,

4. The subject use will be so controlled that the public health, safety, and general welfare will be protected.

E. **Commission and Council Updates.** The Director shall provide an annual update on any new uses that were added via this process during the previous year.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5021. BUILDING PERMIT.

Before commencing any work pertaining to the erection, construction, reconstruction, moving, conversion, or alteration of any structure or any addition to any structure, including the grading of land and the demolition of a structure, a Building Permit shall be secured from the Department.

A. **Form.** Application for a Building Permit shall be made on a form provided by the Department and shall be accompanied by accurate information and dimensions as to the size and location of the lot; the size and location of the buildings on the lot; the dimensions of all yards and open spaces; and such other information as may be necessary for the enforcement of these regulations. Where complete and accurate information is not readily available from existing records, the Department may require the applicant to furnish a survey of the lot prepared by a licensed surveyor.

B. **Conformance with Associated Planning Entitlements.** Prior to issuance of a Building Permit, site plans, elevations, construction documents, and other information provided with a Building Permit application shall be determined to substantially conform to the project plans which were approved with a Development Permit, Conditional Use Permit, or other entitlement for the project by the Director. Substantial inconsistencies between Building Permit application information and approved plans, as determined by the Director, may be subject to revocation of Planning permits or rejection of the Building Permit application.

C. **Timing.**

1. No application for a Building Permit shall be accepted within 90 days of initiation of a change of zone, planned land use designation, or Code regulations that would be affected by the proposed changes.

2. The Director may issue a permit authorizing construction in accordance with the impending zoning district regulations on property being rezoned after the Council has taken affirmative action adopting an ordinance rezoning the property, provided the permit holder and owner of the land and owner of the property being constructed shall have entered into a written agreement with the Director for the City to the effect that should the zoning for any reason whatsoever not become effective, the permit holder or owner shall remove from such property, within 30 days after written notice from the Director, any improvements or construction authorized by such permit and in conflict with existing zoning district regulations and restore said property as nearly as practicable to its prior condition. The written agreement may include provisions dealing with a cash deposit, bond, entry permission, covenants running with the land, hold harmless clause, lien clause, and similar provisions to assure that should the permit holder or owner fail to so remove the improvements or construction, the City could accomplish such removal without cost to the City.

3. Building Permits shall not be considered concurrently with entitlements unless written authorization is provided by the Director. In such instances, the applicant shall affirm in writing that the concurrent review is being done at the applicant's risk, and if the entitlement is rejected for the project, the Building Permit review shall be halted and shall not resume until all necessary entitlements are granted and new, corresponding building plans are submitted.

D. **Demolition.** Before any structure is demolished, the City's Historic Preservation Officer shall review the request for potential historic significance.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5022. CERTIFICATES OF OCCUPANCY.

A. **Use of Buildings.** No existing building hereafter enlarged or altered while unoccupied or erected, or moved, shall be occupied or used, and no building shall be changed in use, until after a Certificate of Occupancy has been issued by the Department. Such certificate shall be applied for coincident with the application for a Building Permit, and shall be issued only after such building enlargement or alteration has been completed in conformity with the provisions of this Code and with an approved Development Permit or other entitlement and applicable required conditions and where the proposed use conforms to this Code and applicable required conditions. Any use legally occupying an existing building on June 11, 1960, may be continued, but shall not be changed unless a Certificate of Occupancy for the new use is issued by the Department after finding that such use conforms to this Code and applicable required conditions.

B. **Use of Land.** No vacant land shall be used, and no existing use of land shall be changed, until a Certificate of Occupancy for such use or change in use has been issued by the Department. Such certificate shall be issued only when such use or change in use conforms to this Code, including any required conditions.

C. **Contents.** The Certificate of Occupancy shall provide information as determined by the Building Official.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 51 ZONE CLEARANCE

Sec. 15-5101. Purpose.
Sec. 15-5102. Applicability.
Sec. 15-5103. Review Authority.
Sec. 15-5104. Application Requirements.
Sec. 15-5105. Public Notice.

Sec. 15-5101. PURPOSE.

This article establishes procedures for conducting a Zone Clearance to verify that each new or expanded use or structure complies with all of the applicable requirements of this Code and with any applicable policies or standards of the General Plan and any operative plans.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-5102. APPLICABILITY.

A. **Establishment of a Permitted Use.** A Zone Clearance is required to confirm that the establishment of a new use is permitted as a matter of right and that no Conditional Use Permit or other entitlements are required prior to securing a tax certificate and commencing operations.

B. **Development of One Single-Unit Home or One Duplex.** A Zone Clearance is required to confirm that the construction of one single-unit house or one duplex is permitted as a matter of right and that such a project is being proposed in a manner which is compliant with, and without any deviations from, all applicable development standards prior to securing a building permit. If a proposed development project does not meet the threshold for a Zone Clearance it shall be required to secure a Development Permit.

C. **Signs.** Unless a Master Sign Program is required per Section 15-2612, a Zone Clearance is required to confirm that proposals for new signage are consistent with all applicable regulations of this Code.

D. **Downtown Housing.**

1. Downtown projects which meet all of the following criteria shall require a Zone Clearance to confirm that their construction is permitted as a matter of right and that such a project is being proposed in a manner which is compliant with, and without any deviations from, all applicable development standards prior to securing a Building Permit:

    a. Located within a DT District;

    b. A minimum of 16 total dwelling units in the project;

    c. A residential density of no less than 20 du/ac;

    d. Residential uses must occupy 50% or more of the total floor area; and

    e. No historic resources or potential historic resources are located on the site.

2. Downtown projects which do not meet the threshold for a Zone Clearance shall be required to secure a Development Permit.

E. **Additional Housing Streamlining.**

1. Permitted Uses. The following types of projects shall be permitted with a Zone Clearance if the additional standards within the section are met:

   a. Office-to-Dwelling Conversions (also § 15-2742.5).

   b. New standalone multi-unit residential development in the O District.

   c. Multi-unit residential development in the RM-1, RM-2, and RM-3 Districts on parcels that are within ½ mile of an existing bus stop.

   d. Multi-unit residential uses in NMX, CMX, RMX, CMS, and CR Districts on parcels within the City's Infill Priority Area.

2. Exceptions.

   a. Sensitive Areas. A project that is located on a parcel that contains any of the following characteristics must obtain a Development Permit.

      i. Important Farmland (Prime Farmland, Unique Farmland, or Farmland of Statewide Importance), as designated by the State Department of Conservation;

      ii. Williamson Act contract(s);

      iii. Special flood hazard area (A, AE, etc.) as designated by the Federal Emergency Management Agency;

      iv. Safety Zones 1 (RPZ), 2 (IADZ) or 3 (ITZ) within the Airport Influence Areas as designated by the Airport Land Use Commission of Fresno County;

      v. Hazardous sites (e.g., Cortese List reference);

      vi. The Project would involve the modification or demolition of a designated Historic Resource.

3. Development or Impact Thresholds. A project site that is determined to require additional review or improvements based on a technical study or analysis required pursuant to any of the following, must obtain a Development Permit unless otherwise specified below.

   a. If after a Phase I ESA is completed, a Phase II ESA is recommended.

   b. If the project is located on land where no urban development has ever occurred, or on site that could provide suitable habitat for special-status species (trees, natural habitat, etc.), a technical study as required pursuant to General Plan PEIR mitigation measures is required. If it is determined that the property could not provide suitable habitat for special-status species, then the project can be processed as a zone clearance.

c. If the Project involves the demolition or change to the exterior building elevations of a building over 50 years old, a Historic Resource evaluation is required. If the building is determined to be a potentially significant historic resource, a discretionary development permit is required.

d. If a project involves changes on previously undisturbed land, a CHRIS record search is required. If no additional recommendations are provided in this letter that would trigger a cultural resource study, then the project can be processed as a zone clearance.

e. If the Project would exceed 224 units for low-rise (1-2 levels), 225 units for mid-rise (3-10 levels), or 340 units for high-rise (10+ levels) apartments, and generate more than 800 average daily one-way trips. If the project exceeds this threshold but a technical assessment for operational and construction emissions determines the project will be below applicable air district thresholds, then the project can be processed as a zone clearance.

f. Projects within traffic zones TIZ 1, TIZ 2, and TIZ 4 that would generate more than 100 new peak hour trips, projects in TIZ 3 that would generate more than 200 new peak hour trips, projects within the Neighborhood Mixed-Use (NMX), Corridor/Center Mixed-Use, (CMX), Regional Mixed-Use (RMX), Commercial-Main Street (CMS), and Commercial Regional (CR) that generate more than 300 peak hour trips, or projects proposing less than 80% residential development within NMX, CMX, RMX, CMS or CR zone district within the Infill Priority Area. However, if a Traffic Impact Analysis is completed and no off-site improvements beyond standard requirements are recommended, and the project will not exceed LOS thresholds, the application can be processed subject to a zone clearance.

g. If a project does not meet at least one of the project screening criteria contained in the City of Fresno, CEQA Guidelines for VMT Thresholds (Adopted June 2020) according to the Fresno County VMT Screening Application, a discretionary development permit is required.

h. It shall be determined that the proposed project can be accommodated within existing infrastructure by the Review Authority in consultation with the Directors of Public Works and Public Utilities. If major infrastructure improvements are required beyond what is contained in the conditions below in Section 15-1006-D-2 and E (i.e., a well, and off-site traffic signal, transmission mains beyond the project frontage, etc.) in order to accommodate the proposed development, a Discretionary Permit is required.

4. Compliance with Environmental Assessment. Projects shall incorporate all relevant mitigation measures in the following documents as environmental design features:

a. An EIR prepared for the General Plan, in effect at the time of project approval.

b. An EIR prepared for either a Community Plan or Specific Plan that includes the project area, in effect at the time of project approval.

c. An environmental assessment reviewing the removal of density limits in mixed use zone districts.

d. An environmental assessment prepared for projects subject to ministerial approval as noted in Subsection A of this Section General Plan mitigation measures identified in this environmental document that reference "Discretionary Projects" shall also apply to these ministerial Zone Clearance applications.

5. Infrastructure Requirements. The proposed design shall not lead to an overburdening of existing or planned infrastructure capacities, including, but not limited to, capacities for water, runoff, storm water, wastewater, and solid waste system.

a. The project shall comply with the following standards to ensure it can be adequately served by City Public Utility Services:

i. Pipelines that are downstream (between the project site and wastewater treatment plant or lift station) from the proposed project shall maintain a sewer flow capacity of 1.15 g/Q ratio. Projects that result in a pipeline exceeding the flow capacity of 1.15 g/Q shall construct upsized replacement pipelines for those found to be deficient per the requirements of the Department of Public Utilities Director.

ii. On-site retention or storm drainage system modifications are required for projects within Priority Development Areas and the O District that are: 1) proposed at a density exceeding 16 du/ac in CMS. CR. and NMX, 30 du/ac in CMX, and 45 du/ac in RMX; and 2) within areas where storm drain facilities are already constructed. Projects proposed outside Priority Development Areas and O Districts shall comply with General Plan EIR mitigation measures related to stormwater.

iii. The City shall evaluate additional landfill locations at the time of discretionary projects are submitted and shall not approve development that could contribute solid waste to a landfill that is at capacity until additional capacity is provided.

iv. For any project that would cause the existing water system pipeline in the surrounding area to no be able to meet maximum day demand plus the project required fire flow of 2,500 gallons per minute (gpm), the project developer shall construct upsized replacement pipelines, per the requirements of the Department of Public Utilities Director, in the project vicinity to increase flow for the maximum day demand plus fire flow condition.

6. The project shall comply with the following standards and all applicable Public Works standards:

a. When a proposed residential development consisting of more than 200 units is in close proximity to a school or activity center (e.g., a mixed-use urban area

where there is a concentration of commercial and other land uses), is near a bus stop or pedestrian or bicycle route (existing or planned per the Active Transportation Plan as amended), the following may be required:

i. Bicycle and pedestrian facilities such as signalized crossings, traffic signal upgrades, such as left-turn phasing, sidewalks or asphalt paths, and bicycle facilities.

ii. Construction of improvements in accordance with the City of Fresno's Complete Street Policy (as amended).

b. When LOS reaches E or F on High Frequency Transit Corridors, development projects within the Corridors may be conditioned to provide transit street design treatments and operational strategies, or in-lieu fees, set for by the City of Fresno, including intersection treatments, dedicated transit lanes, business access and transit (BAT) lanes, Transit Signal Priority (TSP), and/or others.

F. **Other Activities.** A Zone Clearance shall be required for any other activity for which a Zone Clearance is specifically required elsewhere in this Code.

G. Streamlined Development as defined in Section 65913.4 of the California Government Code.

H. **Exceptions.**

1. No Zone Clearance shall be required for the continuation of previously approved or permitted uses and structures, or uses and structures that are not subject to any Building Code or Development Code regulations.

2. A change in building use that complies with this Code shall require a Building Permit if the use is in a different Building Code occupancy group class, such as conversion of a retail building to public assembly or residential use.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-43, § 14, eff. 12-9-16; Am. Ord. 2018-66, § 70, eff. 1-18-19; Am. Ord. 2025-024, § 78, eff. 7-27-25; Am. Ord. 2025-023, § 5, eff. 12-26-25).

Sec. 15-5103. REVIEW AUTHORITY.

If the Director determines that the proposed use or building is allowed as a matter of right by this Code, and conforms to all the applicable development and use standards, the Director shall issue a Zone Clearance.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-5104. APPLICATION REQUIREMENTS.

A. Applications for a Zone Clearance shall be submitted in accordance with the provisions set forth in Section 15-5002, Application and Fees.

B. The Director may request that the Zone Clearance application be accompanied by a written narrative, operational statement, plans, and other related materials necessary to show that the proposed development, alteration, or use of the site complies with all applicable provisions of this Code. The Director may require attachments of other written or graphic information, including, but not limited to, statements, numeric data, site plans, floor plans, and building elevations and sections, as a record of the proposal's conformity with the applicable regulations of this Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-5105. PUBLIC NOTICE.

Public notice shall not be required.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 52 DEVELOPMENT PERMIT (FORMERLY SITE PLAN REVIEW)

Sec. 15-5201. Purpose.
Sec. 15-5202. Applicability.
Sec. 15-5203. Review Authority.
Sec. 15-5204. Application Requirements.
Sec. 15-5205. Public Notice.
Sec. 15-5206. Required Findings.
Sec. 15-5207. Conditions of Approval.
Sec. 15-5208. Appeals.
Sec. 15-5209. Modifications.

SEC. 15-5201. PURPOSE.

Development Permit approval is required to ensure that new development is carried out in accord with this Code and the goals and objectives of the General Plan and any other adopted plans and guidelines.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5202. APPLICABILITY.

A. **Development.** A Development Permit shall be required for all development of property which is ineligible for a Zone Clearance as put forth in Article 51 to confirm that the project is being proposed in a manner which is compliant with all applicable development standards prior to securing a building permit.

B. **Deviations.** Deviations from applicable standards will require a Variance or Minor Deviation in conjunction with a Development Permit as put forth in Articles 55 and 56.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5203. REVIEW AUTHORITY.

The Director shall approve, conditionally approve, or deny applications for a Development Permit based on consideration of the requirements of this article. The Director may refer items directly to the Planning Commission when in their opinion the public interest would be better served by having the Planning Commission conduct the Development Permit review. In the event a referral, the Planning Commission shall hold a public hearing prior to making the decision.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5204. APPLICATION REQUIREMENTS.

A. Applications for a Development Permit shall be submitted in accordance with the provisions set forth in Section 15-5002, Application and Fees.

B. The Development Permit application shall be accompanied by a written narrative, operational statement, site plans, elevations, three-dimensional renderings, and other related materials necessary to show that the proposed development, alteration, or use of the site complies with all applicable provisions of this Code. The Director may require

attachments of other written or graphic information, including, but not limited to, statements, numeric data, floor plans, and building cross sections, as a record of the proposal's conformity with the applicable regulations of this Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5205. PUBLIC NOTICE.

Public notice shall not be required.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5206. REQUIRED FINDINGS.

The Director or Planning Commission may only approve a Development Permit application if it finds that the application is consistent with the purposes of this article and with the following:

A. The applicable standards and requirements of this Code.

B. The General Plan and any operative plan or policies the City has adopted.

C. Any applicable design guidelines adopted by the City Council.

D. Any approved Tentative Map, Conditional Use Permit, Variance, or other planning or zoning approval that the project required.

E. Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670—21679.5.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 2, eff. 10-31-19).

SEC. 15-5207. CONDITIONS OF APPROVAL.

In granting Development Permit approval, the Review Authority may impose conditions that are reasonably related to the application and deemed necessary to achieve the purposes of this article and ensure compliance with the applicable criteria and standards established by this Code or mitigation required pursuant to environmental review. Conditions may be related to the following objectives:

A. Ensure long-term maintenance of adequate clean water resources.

B. The proposed design will not lead to an overburdening of existing or planned infrastructure capacities, including, but not limited to, capacities for water, runoff, storm water, wastewater, and solid waste systems.

C. The proposed design incorporates air quality measures or can demonstrate that it will not negatively impact air quality.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 31, eff. 6-11-18).

SEC. 15-5208. APPEALS.

Development Permit decisions are subject to the appeal provisions of Section 15-5017, Appeals.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5209. MODIFICATIONS.

Development Permit approval may only be modified as provided for in Article 50, Common Procedures.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 53 CONDITIONAL USE PERMITS

Sec. 15-5301. Purpose.
Sec. 15-5302. Applicability.
Sec. 15-5303. Review Authority.
Sec. 15-5304. Application Requirements.
Sec. 15-5305. Public Notice.
Sec. 15-5306. Required Findings.
Sec. 15-5307. Conditions of Approval.
Sec. 15-5308. Expiration.
Sec. 15-5309. Appeals.
Sec. 15-5310. Modifications.

SEC. 15-5301. PURPOSE.

The Conditional Use Permit review process is intended to apply to uses that are generally consistent with the purposes of the district where they are proposed but require special consideration to ensure that they can be designed, located, and operated in a manner that will not interfere with the use and enjoyment of surrounding properties or adversely affect the City's infrastructure, the built or natural environment, City resources, or the City's ability to provide public services.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5302. APPLICABILITY.

Conditional Use Permit approval is required for the following:

A. Uses specifically identified in Part II, Base and Overlay Districts, and/or any other section of this Code which requires a Conditional Use Permit.

B. Alcoholic beverage sales.

1. **Exception.** Within Downtown Districts, uses with alcoholic beverage sales shall not require a Conditional Use Permit, but shall comply with the requirements of the California Department of Alcoholic Beverage Control.

C. Any use with drive-in or drive-through facilities.

D. When a Conditional Use Permit is required for exceptions to certain development standards that are specifically identified in Part II, Base and Overlay Districts.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 38, eff. 10-21-16).

SEC. 15-5303. REVIEW AUTHORITY.

The Director shall approve, conditionally approve, or deny applications for Conditional Use Permits based on consideration of the requirements of this article. The Director may, at their discretion, refer any application that may have significant public interest to the Planning Commission for a decision. In the event of a referral, the Planning Commission shall hold a public hearing prior to making the decision.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5304. APPLICATION REQUIREMENTS.

A. Applications for a Conditional Use Permit shall be submitted in accordance with the provisions set forth in Section 15-5002, Application and Fees.

B. The Conditional Use Permit application shall be accompanied by a written narrative, operational statement, site plans, and other evidence in support of the applicable findings required by Section 15-5306, Required Findings.

C. The Director may require attachments of other written or graphic information, including, but not limited to, statements, numeric data, site plans, floor plans, and building elevations and sections, as a record of the proposal's conformity with the applicable regulations of this Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5305. PUBLIC NOTICE.

Public Notice shall be provided 10 days prior to the date of action pursuant to Section 15-5007.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5306. REQUIRED FINDINGS.

A Conditional Use Permit shall only be granted if the decision-maker determines that the project as submitted or as modified conforms to all of the following criteria. If the decision-maker determines that it is not possible to make all of the required findings, the application shall be denied.

A. The proposed use is allowed within the applicable zoning district and complies with all other applicable provisions of this Code and all other chapters of the Municipal Code;

B. The proposed use is consistent with the General Plan and any other applicable plan and design guideline the City has adopted;

C. The proposed use will not be substantially adverse to the public health, safety, or general welfare of the community, nor be detrimental to surrounding properties or improvements;

D. The design, location, size, and operating characteristics of the proposed activity are compatible with the existing and reasonably foreseeable future land uses in the vicinity; and

E. The site is physically suitable for the type, density, and intensity of use being proposed, including access, emergency access, utilities, and services required; and

F. The proposed use is consistent with the Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 3, eff. 10-31-19).

SEC. 15-5307. CONDITIONS OF APPROVAL.

In approving a Conditional Use Permit, the decision-maker may impose reasonable conditions or restrictions deemed necessary to:

A. Ensure that the proposal conforms in all significant respects with the General Plan and with any other applicable plans or policies and design guidelines adopted by the City Council;

B. Achieve the general purposes of this Code or the specific purpose of the zoning district in which the project is located;

C. Achieve the findings for a Conditional Use Permit listed in Section 15-5306, Required Findings; or

D. Mitigate any potential impacts identified as a result of environmental review conducted in compliance with the California Environmental Quality Act.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5308. EXPIRATION.

An expiration date of seven years from the date of approval shall be established by the Review Authority, except as follows:

A. Uses which may have a substantial public interest may be given an expiration date of less than seven years.

B. Conditional Use Permits for permanent physical property improvements, such as building height, shall not have an expiration date if deemed appropriate by the Review Authority.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5309. APPEALS.

Conditional Use Permit decisions are subject to the appeal provisions of Section 15-5017, Appeals.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5310. MODIFICATIONS.

Conditional Use Permits may only be modified as provided for in Article 50, Common Procedures. Conditional Use Permits for projects that are anticipated to develop over the course of six years or more may require reallocation or adjustment to residential densities. Such adjustments may be processed through the modification procedures set forth in section 15-5015.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 54 TEMPORARY USE PERMITS

Sec. 15-5401. Purpose.
Sec. 15-5402. Applicability.
Sec. 15-5403. Review Authority.
Sec. 15-5404. Application Requirements.
Sec. 15-5405. Public Notice.
Sec. 15-5406. Determination.
Sec. 15-5407. Required Findings.
Sec. 15-5408. Conditions of Approval.

SEC. 15-5401. PURPOSE.

This article establishes a process for review and approval of certain uses that are intended to be of limited duration of time and will not permanently alter the character or physical facilities of the site where they occur.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5402. APPLICABILITY.

A. Temporary Use Permit approval is required for temporary uses as described in Section 15-2760-B, Temporary Uses Requiring a Temporary Use Permit.

B. If the Director determines that the application is subject to review under CEQA and the project does not qualify for an exemption pursuant to State law or CEQA Guidelines, the Temporary Use Permit shall be processed as a Conditional Use Permit application, pursuant to Article 50, Common Procedures, and Article 53, Conditional Use Permits.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5403. REVIEW AUTHORITY.

The Director shall approve, conditionally approve, or deny applications for Temporary Use Permits based on consideration of the requirements of this article. The Director may refer an application for a Temporary Use Permit to the Planning Commission if the Director finds that the temporary use may have substantial and detrimental impacts to surrounding land that warrant Commission review.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5404. APPLICATION REQUIREMENTS.

An application for a Temporary Use Permit shall be submitted at least 30 days before the use is intended to begin. The application shall be on the required form and include an operational statement and the written consent of the owner of the property or the agent of the owner.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5405. PUBLIC NOTICE.

Public notice shall not be required.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5406. DETERMINATION.

Within 10 days of accepting an application for a Temporary Use Permit as complete, the Director shall render a written decision per Section 15-5009, Notice of Action.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5407. REQUIRED FINDINGS.

The Director may approve an application for a Temporary Use Permit upon making both of the following findings:

A. The proposed use will not unreasonably affect adjacent properties, their owners and occupants, or the surrounding neighborhood, and will not in any other way constitute a nuisance or be detrimental to the health, safety, peace, comfort, or general welfare of persons residing or working in the area of such use or to the general welfare of the City; and

B. The proposed use will not unreasonably interfere with pedestrian or vehicular traffic or circulation in the area surrounding the proposed use, and will not create a demand for additional parking that cannot be safely and efficiently accommodated by existing parking areas or a parking management plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5408. CONDITIONS OF APPROVAL.

The Director may impose reasonable conditions deemed necessary to ensure compliance with the findings for a Temporary Use Permit listed in Section 15-5407, Required Findings, including, but not limited to:

A. Regulation of ingress and egress and traffic circulation; valet or off-site parking; fire protection and access for fire vehicles; regulation of lighting and noise; regulation of hours and/or other characteristics of operation; removal of all trash, debris, signs, sign supports, and temporary structures; and electrical service.

B. Time limits, as follows:

1. Time limits prescribed in Section 15-2760-B, Temporary Uses Requiring a Temporary Use Permit.

2. Unless otherwise prescribed in this Code, the Director shall prescribe the duration of the use, however in no case shall a Temporary Use exceed 30 consecutive days or a total of 60 days in a one year period.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 55 VARIANCES

Sec. 15-5501. Purpose.
Sec. 15-5502. Applicability.
Sec. 15-5503. Review Authority.
Sec. 15-5504. Application Requirements.
Sec. 15-5505. Public Notice.
Sec. 15-5506. Required Findings.
Sec. 15-5507. Conditions of Approval.
Sec. 15-5508. Appeals.
Sec. 15-5509. Modifications.

Sec. 15-5501. PURPOSE.

This article is intended to provide a mechanism for relief from the strict application of this Code where this will deprive the property owner of privileges enjoyed by similar properties because of the subject property's unique and special conditions.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5502. APPLICABILITY.

A. Variances may be granted in conjunction with a Development Permit to vary or modify dimensional and performance standards, but Variances may not be granted to allow uses or activities or increase density that this Code does not authorize for a specific lot or site.

B. Any lawfully established use, site features, structure, or lot that is in existence on the effective date of this Code or any subsequent amendment, but was made non-conforming when a portion was acquired by a governmental entity so that the parcel or a property development standard, such as landscaping or parking, is reduced from the prescribed standards of the underlying Zone District, shall be exempted from obtaining a Variance. Future improvements shall comply with the strict application of the District, unless a deviation is granted.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5503. REVIEW AUTHORITY.

The Review Authority of the associated Development Permit shall approve, conditionally approve, or deny applications for Variances based on consideration of the requirements of this article.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5504. APPLICATION REQUIREMENTS.

A. Applications for a Variance shall be filed with the Planning Division on the prescribed application forms in accordance with the procedures in Article 50, Common Procedures.

B. In addition to any other application requirements, the application for a Variance shall include data or other evidence showing that the requested Variance conforms to the required findings set forth in Section 15-5506, Required Findings.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5505. PUBLIC NOTICE.

All applications for Variances shall be noted on the public notice that is required for the associated Development Permit pursuant to Section 15-5007, Public Notice.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5506. REQUIRED FINDINGS.

A Variance, including variances from the terms of open-space zoning, shall only be granted if the Review Authority determines that the project as submitted or as modified conforms to all of the following criteria. If the Review Authority determines that it is not possible to make all of the required findings, the application shall be denied.

A. There are exceptional or extraordinary circumstances or conditions applicable to the property involved that do not apply generally to property in the vicinity and identical zoning classification, and that the granting of a Variance will not constitute a granting of a special privilege inconsistent with the limitations on the property in the vicinity and identical zone classifications;

B. The granting of the application is necessary to prevent a physical hardship which is not of the applicant's own actions or the actions of a predecessor in interest;

C. The granting of the application will not be detrimental or injurious to property or improvements in the vicinity, and will not be detrimental to the public health, safety, general welfare, or convenience, nor the preservation and conservation of open space lands; and

D. The granting of the Variance will be consistent with the general purposes and objectives of this Code, any applicable operative plan, the Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5, and of the General Plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 4, eff. 10-31-19).

SEC. 15-5507. CONDITIONS OF APPROVAL.

In approving a Variance, the Review Authority may impose reasonable conditions deemed necessary to ensure compliance with the findings required in Section 15-5506, Required Findings.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5508. APPEALS.

A decision on a Variance may be appealed pursuant to the provisions of Section 15-5017, Appeals.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5509. MODIFICATIONS.

Variances may only be modified as provided for in Article 50, Common Procedures.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 56 MINOR DEVIATIONS

Sec. 15-5601. Purpose.
Sec. 15-5602. Applicability.
Sec. 15-5603. Review Authority.
Sec. 15-5604. Application Requirements.
Sec. 15-5605. Public Notice.
Sec. 15-5606. Calculation of Deviation.
Sec. 15-5607. Required Findings.
Sec. 15-5608. Conditions of Approval.
Sec. 15-5609. Appeals.
Sec. 15-5610. Modifications.

SEC. 15-5601. PURPOSE.

The purpose of this article is to establish an alternate means of granting relief from the requirements of this Code when so doing would be consistent with the purposes of the Code and it is not possible or practical to approve a Variance. It also allows the Review Authority to grant deviations when necessary to accommodate religious uses protected by the Federal Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA) and deviations to ensure compliance with the Americans with Disabilities Act (ADA).
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5602. APPLICABILITY.

A. **Façade Design Development Standards.** In conjunction with a Development Permit, the Review Authority may grant deviations from applicable Façade Design Development Standards in RS and E districts if the proposed design accomplishes the same goals pertaining to visual interest, pedestrian orientation, connectivity, durability, and longevity.

B. **All Other Development Standards.** In conjunction with a Development Permit, the Review Authority may grant relief from the property development standards specified in this Code, not to exceed 10 percent of the requirement, with the following exceptions:

1. **Green Building and Public Art.** The Review Authority may grant relief of up to 20 percent deviation from property development standards where the Review Authority determines the request involves qualifying "green" or public art features. If both public art and green features are incorporated, the Review Authority may grant relief of up to 25 percent deviation.
2. **Lot Consolidation.** The Review Authority may grant relief of up to 15 percent deviation from property development standards where the Review Authority determines the request involves the consolidation of very small, oddly shaped, and hard-to-develop lots.
3. **Density and Intensity.** Minor Deviations cannot be granted for residential density or maximum floor area ratio (FAR).

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 39, eff. 10-21-16).

SEC. 15-5603. REVIEW AUTHORITY.

The Review Authority of the associated Development Permit shall approve, conditionally approve, or deny applications for Minor Deviations based on consideration of the requirements of this article.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5604. APPLICATION REQUIREMENTS.

An application for a deviation shall be filed with the Review Authority in accordance with Article 50, Common Procedures. The application shall state in writing the nature of the deviation requested and explain why the findings necessary to grant the deviation are satisfied. The applicant shall also submit plans delineating the requested deviation.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5605. PUBLIC NOTICE.

An additional public notice beyond that required for the associated Development Permit shall not be required.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5606. CALCULATION OF DEVIATION.

The maximum deviation shall not exceed 10 percent, unless the proposal meets the strict application of Green Building and Public Art or Lot Consolidation exceptions. Ten percent shall be calculated of the standard. For example, if a site is 5,000 square feet in area, and it is required to provide 20 percent open space of lot area, the site would be required to provide 1,000 square feet. A 10 percent deviation would equate to a reduction of 100 square feet of open space (1,000 x 10% = 100). As a result, the site would need to provide 900 square feet of open space. This calculation shall not apply to deviations to Façade Design Development Standards.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5607. REQUIRED FINDINGS.

A decision to grant a deviation shall be based on making all of the following findings:

A. **Façade Design Development Standards.**

1. The design accomplishes the same goals pertaining to visual interest, pedestrian orientation, connectivity, durability, and longevity as the individual standards which are deviated from;

2. The design achieves all stated purposes of the Base District to and equal to greater degree than a project design in strict compliance with the Façade Design Development Standards;

3. The architectural design of the project is of exceptional quality and will add to the beauty and pedestrian comfort of its surroundings; and

4. Granting the bonus will not be detrimental to the health or safety of the public or the occupants of the property.

B. **All Other Development Standards.**

1. The deviation is necessary due to the physical characteristics of the property and the proposed use or structure or other circumstances, including, but not limited to, topography, noise exposure, irregular property boundaries, or other unusual circumstance;

2. There are no alternatives to the requested deviation that could provide an equivalent level of benefit to the applicant with less potential detriment to surrounding owners and occupants or to the general public;

3. The granting of the requested deviation will not be detrimental to the health or safety of the public or the occupants of the property or result in a change in land use or density that would be inconsistent with the requirements of this Code; and

4. If the deviation requested is to accommodate religious uses protected by RLUIPA, the decision-maker must also find that the denial of the requested deviation would impose a substantial burden on religious exercise.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5608. CONDITIONS OF APPROVAL.

In approving a deviation, the decision-maker may impose reasonable conditions deemed necessary to:

A. Ensure that the proposal conforms in all significant respects with the General Plan and with any operative plans or policies adopted by the City;

B. Achieve the general purposes of this Code or the specific purposes of the zoning district in which the project is located;

C. Achieve the findings for a deviation granted; or

D. Mitigate any potential impacts identified as a result of review conducted in compliance with the California Environmental Quality Act.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5609. APPEALS.

Minor Deviation decisions are subject to the appeal provisions of Section 15-5017, Appeals.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5610. MODIFICATIONS.

Deviations granted under this article may only be modified as provided for in Article 50, Common Procedures.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 57 REASONABLE ACCOMMODATIONS FOR HOUSING

Sec. 15-5701. Purpose.
Sec. 15-5702. Applicability.
Sec. 15-5703. Application Requirements.
Sec. 15-5704. Public Notice.
Sec. 15-5705. Determination.
Sec. 15-5706. Required Findings.
Sec. 15-5707. Conditions of Approval.
Sec. 15-5708. Appeals.
Sec. 15-5709. Modifications.
Sec. 15-5710. Other Procedures.

SEC. 15-5701. PURPOSE.

In order to ensure equal access to housing for individuals with disabilities, the Director shall provide reasonable accommodation that may include a modification or exception to the rules, standards, and practices within this Code for the siting, development, and use of housing or housing-related facilities when an applicant requests reasonable accommodation.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5702. APPLICABILITY.

An applicant may request reasonable accommodation that may include a modification or exception to the rules, standards and practices for the siting, development, and use of housing or housing-related facilities that would modify regulatory barriers and provide an individual with a disability equal opportunity to the use and enjoyment of the housing of their choice.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5703. APPLICATION REQUIREMENTS.

A. **Application Form.** A request for reasonable accommodation may be submitted on a form provided by the City or be made orally to the Director, and shall contain the following information:

1. The applicant's name, address, and telephone number;
2. The name, address, and telephone number of the representative if designated;
3. Address of the property for which the request is being made;
4. The current actual use of the property;
5. The basis for the claim that the individual is qualified for accommodation;
6. The Code, policy, procedure, rule, or regulation from which reasonable accommodation is being requested; and
7. Why the reasonable accommodation is necessary to make the specific property accessible to the individual.

B. **Filing Period.** An application for reasonable accommodation may be made or filed at any time. However, if the request for reasonable accommodation is related to an application for a land use entitlement pursuant to this Code, the request for reasonable accommodation must be made or filed with that application.

C. **Assistance.** The City will provide assistance as necessary to ensure that the process in its entirety is accessible to the applicant. The applicant shall be entitled to be represented at all stages of the proceeding by a person designated by the applicant. If the applicant designates a representative, the applicant shall provide authorization in writing.

D. **Obligations.** A request for reasonable accommodation does not affect a person's obligation to comply with other applicable City laws and regulations not at issue in the requested accommodation.

E. **Other Remedies.** The procedures set forth herein does not limit an individual's right to any other available remedy under federal or State law.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5704. PUBLIC NOTICE.

Public notice shall not be required.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5705. DETERMINATION.

Except as provided below, within 30 days of the date of the application, a written decision shall be made to grant, grant with conditions, or deny the request for reasonable accommodation.

A. **Additional Information.** The Director may require that the applicant provide any additional information that the Director deems necessary to determine disposition of the requested accommodation. In the event a request for further information is made, the 30-day period to issue a written determination shall be stayed from the date of the request for additional information until the applicant responds to the request.

B. **Property Development Standard Deviation.** If the request for accommodation is to modify a property development standard of this Code, it shall be processed pursuant to Article 56, Minor Deviations, and is not subject to the 30-day review period.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5706. REQUIRED FINDINGS.

The written decision shall be consistent with fair housing laws and reasonable accommodation and shall only be granted when it is found that:

A. The housing, which is the subject of the request for reasonable accommodation, is to be used by an individual protected under fair housing laws;

B. The requested accommodation is necessary to make specific housing available to an individual protected under fair housing laws;

C. The requested accommodation does not impose an undue financial or administrative burden on the City; and

D. The requested accommodation does not require a fundamental alteration in the nature of a City plan, policy, rule, regulation, or code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5707. CONDITIONS OF APPROVAL.

In granting a request for reasonable accommodation, the Director may impose any condition of approval deemed reasonable and necessary to ensure that the accommodation complies with the findings required by this section, and any other applicable State or federal law. The imposition of any condition in accordance with this section will not impose any additional development entitlements other than what entitlements would otherwise be required by law or this Code.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5708. APPEALS.

Accommodation decisions are subject to the appeal provisions of Section 15-5017, Appeals.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5709. MODIFICATIONS.

Accommodations granted under this article may only be modified as provided for in Article 50, Common Procedures.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5710. OTHER PROCEDURES.

A. **Notice to the Public of Availability.** In all offices where application is made for a permit, license, or other authorization for the siting, funding, development, or use of housing, a notice and explanation shall be displayed announcing the availability of reasonable accommodation for qualified applicants. Application forms shall be available at these locations.

B. **Disclosures of Information.** Private or personal information regarding the nature of an individual's disability provided by an applicant requesting reasonable accommodation shall not be disclosed except as follows:

1. Information necessary to make or review a decision to grant or deny a request for reasonable accommodation may be disclosed to any person whose consideration of such information is necessary to make or review that decision.

2. Information may be disclosed if otherwise required by law.

C. **Withdrawal of Request.** Upon written notice to the City, an applicant for reasonable accommodation may withdraw a request for reasonable accommodation without prejudice. (Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 58 AMENDMENTS TO DEVELOPMENT CODE TEXT, REZONES, AND PLAN AMENDMENTS

Sec. 15-5801. Purpose.
Sec. 15-5802. Applicability.
Sec. 15-5803. Initiation.
Sec. 15-5804. Application Requirements.
Sec. 15-5805. Neighborhood Meeting.
Sec. 15-5806. Review Procedures and Public Notice.
Sec. 15-5807. Committee Review.
Sec. 15-5808. Airport Land Use Commission Review.
Sec. 15-5809. Planning Commission Hearing and Recommendation.
Sec. 15-5810. City Council Hearing and Action.
Sec. 15-5811. Criteria for Development Code Text Amendment.
Sec. 15-5812. Criteria for Rezones and Plan Amendments.

SEC. 15-5801. PURPOSE.

This article provides procedures by which changes may be made to the text of this Development Code, the Zoning Map, or the General Plan or any operative plan whenever public necessity, convenience, and general welfare require such amendment to maintain consistency with the General Plan.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5802. APPLICABILITY.

The procedures in this article shall apply the following proposals:

A. **Development Code Text Amendment.** A change to the text of the Development Code.

B. **Rezone.** An application to change the zoning for a site from one Zone District to another.

C. **Plan Amendment.** A change in the text of the General Plan or any operative plan, or a change to the General Plan's planned land use designation for a site, including pre-zoning as provided for in Article 61, Concept Plans, Pre-Zoning, and Annexation Procedure.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5803. INITIATION.

A. **Development Code Text Amendment.**

1. An amendment to the text of the Development Code may be initiated by the Director, by a resolution of initiation by the City Council or the Planning Commission, or an applicant identified in Section 15-5002, Application and Fees.

2. For land uses not identified in Part II, Base and Overlay Districts, a proposal for a new use may be considered pursuant to Section 15-5020, Director's Determination. Should the Director determine that a use may not be added said procedures, a Text Amendment pursuant to this article may be processed.

B. **Rezone.** An amendment to the Zoning Map (i.e. Rezone) may be initiated by a property owner identified in Section 15-5002, Application and Fees, the Director, or by a resolution of initiation of the City Council or the Planning Commission.

C. **Plan Amendment.** An amendment to the General Plan or operative plan may be initiated by an applicant identified in Section 15-5002, Application and Fees, the Director, or by a resolution of initiation of the City Council or the Planning Commission. Plan Amendments include changes to text in said plans, maps, and planned land use designations.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5804. APPLICATION REQUIREMENTS.

A. **Application.** A qualified applicant, the Director, the Council or Commission shall submit an application for a Rezone or Plan Amendment on a form prescribed by the Director. The Director may require an applicant to submit such additional information and supporting data as considered necessary to process the application. The resolution of initiation may act as the application for the Council or Commission.

B. **Coordination with Other Applications.** The Director may allow any necessary applications for amendments to zoning regulations or for approval of discretionary permits to be processed simultaneously with the proposed Development Code Text Amendment, Rezone, or Plan Amendment.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5805. NEIGHBORHOOD MEETING.

The Director, at their discretion, may require that the applicant conduct a neighborhood meeting prior to an application being submitted or during the review of an application as put forth in Section 15-5006, Neighborhood Meeting. Such meeting(s) may be required when, in the opinion of the Director, the project may have an impact on a neighborhood, the project is unique, the project is of such scale or scope that it is likely to generate community interest, or for any other reason.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5806. REVIEW PROCEDURES AND PUBLIC NOTICE.

A. **Staff Report.** The Director shall prepare a report and recommendation to the Planning Commission. The report shall include, but not be limited to, a discussion of how the proposed amendment meets the criteria in Section 15-5811, Criteria for Development Code Text Amendment and Section 15-5812, Criteria for Rezones and Plan Amendments, for

approving an amendment and an environmental document prepared in compliance with the California Environmental Quality Act, the General Plan, and any applicable operative plan.

B. **Public Hearing Required.** All applications shall be referred to the Planning Commission, which shall hold at least one public hearing on any proposed amendment.

C. **Public Notice.** In addition to the mailed Public Notice requirements of Section 15-5007-B, Mailed Notice, notice of the hearing for a proposed amendment shall be delivered to the applicable school district and any other local agency expected to provide essential facilities or services to the property that is the subject of the proposed amendment.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5807. COMMITTEE REVIEW.

Active plan or council district committees shall review and provide comments on text amendment applications, Rezones, or Plan Amendments. Committees shall review proposed amendments within their purview, unless the text amendment is applicable citywide, then review is required by each committee. Should a committee not meet due to a lack of quorum or any other reason, the Director, at their discretion, may schedule the item for consideration by the Commission and/or Council.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5808. AIRPORT LAND USE COMMISSION REVIEW.

The Airport Land Use Commission (ALUC) shall review all text amendments affecting projects or property within an Airport Influence Area for consistency with the adopted Airport Land Use Compatibility Plan which affect the height, density, land use designation, safety, noise, or related aspects of properties within the ALUC's purview, as determined by the Director and/or ALUC staff. The ALUC shall also review all Rezones and Plan Amendments that are within the ALUC's purview. ALUC review shall be completed prior to consideration of the matter by the City Council. Nothing in this Section alters the City's authority or obligations under the laws of the State of California, including but not limited to Article 3.5 of Chapter 4 of the State Aeronautics Act (California Public Utilities Code sections 21670 et seq.).
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 32, eff. 6-11-18).

SEC. 15-5809. PLANNING COMMISSION HEARING AND RECOMMENDATION.

A. **Planning Commission Hearing.** The Planning Commission shall conduct a public hearing in conformance with Article 50, Common Procedures.

B. **Recommendation to Council.** Following the public hearing, the Planning Commission shall make a recommendation on the proposed application to the City Council. Such recommendation shall include the reasons for the recommendation, findings supporting the recommendation, and the relationship of the proposed change to the General Plan, Code, and applicable operative plans.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5810. CITY COUNCIL HEARING AND ACTION.

A. After receiving the report from the Planning Commission, the City Council shall hold a duly-noticed public hearing. The notice shall include a summary of the Planning Commission recommendation, if available at the time of the notice.

B. After the conclusion of the hearing, the City Council may approve, modify, or deny the proposed application. If the Council proposes any substantial modification, such as introducing a new zone district or planned land use designation, not previously considered by the Planning Commission during its hearings, the proposed modification shall first be referred back to the Planning Commission for report and recommendation, but the Planning Commission shall not be required to hold a public hearing. The failure of the Planning Commission to report within 40 days after the referral shall be deemed a recommendation to approve and the amendment shall be returned to Council for adoption.

C. Action by the Council shall be final.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 40, eff. 10-21-16).

SEC. 15-5811. CRITERIA FOR DEVELOPMENT CODE TEXT AMENDMENT.

The Planning Commission shall not recommend and the City Council shall not approve an application unless the proposed amendment meets the following criteria:

A. Development Code Text Amendment findings:

1. The Code text amendment is consistent with the General Plan, the Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5, and any applicable operative plans; and

2. The amendment is consistent with the purpose of the Development Code to promote the growth of the city in an orderly and sustainable manner and to promote and protect the public health, safety, peace, comfort, and general welfare.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 5, eff. 10-31-19).

SEC. 15-5812. CRITERIA FOR REZONES AND PLAN AMENDMENTS.

The Planning Commission shall not recommend and the City Council shall not approve an application unless the proposed Rezone or Plan Amendment meets the following criteria:

A. The change is consistent with the General Plan goals and policies, any operative plan, or adopted policy;

B. The change is consistent with the purpose of the Development Code to promote the growth of the city in an orderly and sustainable manner and to promote and protect the public health, safety, peace, comfort, and general welfare; and

C. The change is necessary to achieve the balance of land uses desired by the City and to provide sites for needed housing or employment-generating uses, consistent with the General Plan, any applicable operative plan, or adopted policy; and to increase the inventory of land within a given zoning district to meet market demand.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 59 PLANNED DEVELOPMENT PERMITS

Sec. 15-5901. Purpose.
Sec. 15-5902. Applicability.
Sec. 15-5903. Procedures.
Sec. 15-5904. Regulations.
Sec. 15-5905. Required Findings.
Sec. 15-5906. Conditions of Approval.
Sec. 15-5907. Expiration and Renewal.
Sec. 15-5908. Amendments of Approved Plans.
Sec. 15-5909. Individual Development Plan Review for Phased Projects.
Sec. 15-5910. Failure to Comply With Conditions.
Sec. 15-5911. Revocation or Modification of Planned Development Permit.

SEC. 15-5901. PURPOSE.

The purpose of this article is to articulate regulations and establishing minimum thresholds for Planned Developments. More specifically this article applies to:

A. Establish a procedure for development on large areas of land and infill sites in order to allow for projects that desire greater flexibility than already provided for in this Code.

B. Promote variety and avoid monotony in developments by allowing greater freedom in selecting the means to provide access, light, open space, and amenities.

C. Facilitate the assembly of properties that might otherwise be developed in unrelated increments to the detriment of surrounding neighborhoods.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5902. APPLICABILITY.

The procedures in this article shall apply to all proposals for approval of a Planned Development (PD) Permit. PD approval is required to authorize a PD Plan that provides for better coordinated development and specifies customized development standards crafted to respond to site conditions.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5903. PROCEDURES.

A. **Processing.** An application for a PD Permit shall be processed as a Conditional Use Permit, according to the procedures of Article 53, Conditional Use Permits.

B. **Initiation.** An application for a PD Permit shall be initiated by a property owner or authorized agent. If the property is not under a single ownership, all owners must join the application, and a map showing the extent of ownership shall be submitted with the application.

C. **Application Content.** An application for a PD shall be filed with the Director. At a minimum applications shall contain all of the following:

1. **List of Modifications.** A detailed list of deviations from the Development Code, General Plan, applicable operative plan, or adopted policy being proposed, and an explanation as to why the project cannot be successful should it comply with the strict application of adopted regulations.
2. **Community Benefits.** The applicant shall provide a list of types of community benefits. For example, the amount of common open space or design is of higher quality than would otherwise be required.
3. **Project Boundaries.** A map showing the proposed project boundaries, the perimeter of the ownership, location, and dimensions of any existing property lines and easements within the site, and the location of buildings, roads, parking, and open areas.
4. **Planned Development Plan.** A PD Plan indicating the proposed land uses and the total floor area or land area devoted to each; the proposed density or intensity of development; the location of proposed streets, pedestrian ways, and bike ways; and the location of proposed lot lines, structures, buildings, parking, yards, pathways, open spaces, and other public or private facilities.
5. **Utilities.** The locations and capacities of existing utilities in the vicinity of the site, and tentative extensions to the site.
6. **Development Guidelines.** Guidelines for the physical development of the property, including illustrations of proposed architectural, urban design, and landscape concepts.
7. **Development Schedule.** A development schedule, including anticipated timing for commencement and completion of each phase of development, tabulation of the total number of acres in each separate phase and percentage of such acreage to be devoted to particular uses, and an indication of the proposed number and type of dwelling units by phase of development, if applicable.
8. **Other Information.** Any other information deemed necessary by the Director to ascertain if the project meets the required findings for a PD Plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 29, eff. 7-30-17).

SEC. 15-5904. REGULATIONS.

A. **Land Use Regulations.** Any use authorized by this Code may be included in an approved PD consistent with the zoning district for the property.

B. **Development Regulations.**

1. **Minimum Area.**

   a. **Infill Areas (within the city limits as of December 31, 2012).** No minimum area.

b. **All Other Areas.** Two acres.

2. **Residential Unit Density.** The total number of dwelling units in a PD shall not exceed the maximum number permitted by the General Plan or operative plan density for the total area of the planned development designated for residential use.

   a. A transfer of residential densities, as set forth in 15-310-C, is permitted for sites with two or more residential zones districts. Design of said sites must be planned, integrated development.

3. **Other Development Regulations.** Other development regulations shall be as prescribed by the PD Plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 30, eff. 7-30-17).

SEC. 15-5905. REQUIRED FINDINGS.

A PD shall only be approved if all of the following findings are made:

A. The proposed development is consistent with the General Plan, the Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5, any applicable operative plan, and adopted policies, including the density and intensity limitations that apply;

B. The subject site is physically suitable for the type and intensity of the land use being proposed;

C. Adequate transportation facilities, utilities, and public services exist or will be provided, in accord with the conditions of PD approval, to serve the proposed development; and the approval of the proposed development will not result in a reduction of public services so as to be a detriment to public health, safety, or welfare;

D. The proposed development will not have a substantial adverse effect on surrounding land uses and will be compatible with the existing and planned land use character of the surrounding area; and

E. The proposed development is demonstratively superior to the development that could occur under the standards applicable to the underlying base district, and will achieve superior community design, environmental preservation, and/or substantial public benefit. In making this determination, the following factors should be considered:

   1. Appropriateness of the use(s) at the proposed location.

   2. The mix of uses, housing types, and housing price levels.

   3. Provision of infrastructure improvements.

   4. Provision of open space. For example, a greater amount of open space than would otherwise be provided under the strict application of this code.

   5. Connectivity to public trails, schools, etc.

6. Compatibility of uses within the development area.
7. Creativity in design and use of land.
8. Quality of design, and adequacy of light and air to the interior spaces of the buildings.
9. Overall contribution to the enhancement of neighborhood character and to the built and natural environment of Fresno in the long term.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 6, eff. 10-31-19).

SEC. 15-5906. CONDITIONS OF APPROVAL.

In approving a PD, the Director, or the Commission if submitted concurrently with a subdivision map that requires Commission review, may impose reasonable conditions deemed necessary to:

A. Ensure that the proposal conforms in all significant respects with the General Plan and with any other applicable plans or policies and design guidelines that the City has adopted;

B. Achieve the general purposes of this Code or the specific purpose of the zoning district in which the project is located;

C. Achieve the findings listed in Section 15-5905, Required Findings; or

D. Mitigate any potentially significant impacts identified as a result of review conducted in compliance with the requirements of the California Environmental Quality Act.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5907. EXPIRATION AND RENEWAL.

A. **Expiration.**

1. **PD Plan.** A PD shall be effective on the same date the permit is approved. The PD Plan shall expire if it is not exercised or extended within three years of the effective date. An approved PD may specify a phased development program exceeding three years.
2. **Exercise of a PD Plan.** A PD Plan approval is exercised when actions specified in the conditions of approval have been taken, or a Building Permit has been issued and construction is lawfully commenced and diligently pursued.
3. **PD Plan Granted in Conjunction with a Tentative Map.** Where a tentative map has been approved in conjunction with a PD Plan, the PD Plan shall expire upon the expiration of the tentative map.

B. **Renewal.** If site development and construction has not been initiated within three years of project approval or other time specified in the approved phased development program, an approved PD Plan may be renewed for a two-year period by the Director. Application for renewal shall be made in writing between 30 and 120 days prior to expiration

of the original approval. The Director shall only renew a PD Plan if the Director finds the renewal consistent with the purposes of this article and no major amendments, as defined in Section 15-5908, Amendments of Approved Plans, are proposed.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5908. AMENDMENTS OF APPROVED PLANS.

A. **Changed Plans.** Amendments to a PD Plan may be requested by the applicant or its successors. Amendments to the approved Plan shall be classified as major or minor amendments. Upon receipt of an amendment application, the Director shall determine if the proposed amendment constitutes a major or minor amendment.

B. **Major Amendments.** Major Amendments to an approved PD Plan shall be considered by the Planning Commission at a duly noticed public hearing. An amendment will be deemed major if it involves one or more of the following changes:

1. A change in the boundary of the PD Plan;

2. An increase or decrease in the number of dwelling units for the PD Plan that is greater than the maximum or less than the minimum stated in the original approval of the PD Plan;

3. An increase or decrease in the floor area for any non-residential land use that results in the floor area exceeding the minimum or maximum stated in the PD Plan by 10 percent or more;

4. Any change in land use or density that is likely to negatively impact or burden public facilities and utilities infrastructure as determined by the City Engineer;

5. Any change in land use or density that is likely to negatively impact or burden circulation adjacent to the PD Plan or to the overall major street system, as determined by the City Traffic Engineer; or

6. Any other proposed change to the PD Plan or the conditions of approval that substantively alters one or more of its components as determined by the Director.

C. **Minor Amendments.** Amendments not meeting one or more of the criteria listed in Subsection B above shall be considered minor if they are consistent with and would not change any original condition of approval. Minor Amendments may be approved by the Director without a public hearing.

1. **Residential Subdivisions.** Floor plans and plot plans shall be approved concurrently with the PD. Changes to plot plans, such as the addition of patios, shall comply with the underlying District in terms of property development standards, unless they were outlined as part of the PD approval process.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5909. INDIVIDUAL DEVELOPMENT PLAN REVIEW FOR PHASED PROJECTS.

Individual development plans for geographic units within a phased project in a PD Plan area shall be accepted for planning and building permits or subdivisions only if they are consistent with an approved PD Plan and any conditions of approval. No project may be approved and no Building Permit issued unless the project, alteration, or use is consistent with an approved PD Plan.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5910. FAILURE TO COMPLY WITH CONDITIONS.

Failure to comply with any PD Permit condition or development schedule is a violation of this article and subject to Article 63, Enforcement.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-5911. REVOCATION OR MODIFICATION OF PLANNED DEVELOPMENT PERMIT.

A PD Permit may be revoked or modified as provided by Section 15-5016, Revocation of Permits.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 60 DEVELOPMENT AGREEMENTS

Sec. 15-6001. Purpose.
Sec. 15-6002. Applicability.
Sec. 15-6003. Authority and Duties.
Sec. 15-6004. Procedure.
Sec. 15-6005. Public Notice and Hearing.
Sec. 15-6006. Findings and Decision.
Sec. 15-6007. Execution and Recordation of Development Agreement.
Sec. 15-6008. Annual Review.
Sec. 15-6009. Amendment or Cancellation.
Sec. 15-6010. Effect of Approved Agreement.
Sec. 15-6011. Enforcement.

SEC. 15-6001. PURPOSE.

This article establishes procedures and requirements for considering and entering into legally binding agreements with applicants for development projects. Such agreements provide a greater degree of certainty than the normal permit approval process by granting assurance that an applicant may proceed with development in accord with policies, rules, and regulations in effect at the time of approval or as modified by the terms of the Development Agreement subject to conditions to promote the community's needs and provide greater community benefits than otherwise can be achieved through the normal land use regulatory process.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6002. APPLICABILITY.

A. A Development Agreement may be considered for:

1. Large multi-phase development projects that will require a developer to make a substantial investment at the early stages of the project, for planning and engineering for the entire project, and for public facilities and services.

2. Development standards may be modified through a Development Agreement provided the project is consistent with the General Plan and applicable operative plans.

3. Development Agreements shall be not used in lieu of a Variance or to permit a use that would otherwise not be permitted by the underlying District.

B. **Property Subject to Annexation.** An applicant whose property is located within the City's Sphere of Influence, or whose property is the subject of a pending application for inclusion into the sphere of influence, may file an application to enter into a Development Agreement.

1. The agreement shall not become operative unless proceedings annexing the property to the city are completed within the period of time specified by the agreement.

2. If the annexation is not completed within the time specified in the agreement or any extension of the agreement, the agreement shall be null and void.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6003. AUTHORITY AND DUTIES.

A. The Director shall negotiate the specific components and provisions of the Development Agreement on behalf of the City for recommendation to the Planning Commission and the City Council.

B. The Planning Commission shall make a recommendation to the City Council and the City Council shall have the exclusive authority to approve and modify a Development Agreement.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 33, eff. 6-11-18).

SEC. 15-6004. PROCEDURE.

An applicant for a development project may request that the City review the application as a Development Agreement application in accordance with the following procedures:

A. **Application Requirements.** An applicant shall submit an application for a Development Agreement. The Director shall identify submittal requirements for applications for Development Agreements and may require an applicant to submit such additional information and supporting data as considered necessary to process the application. In addition to any other information that the Director requires, each application for a Development Agreement shall be accompanied by the general terms and conditions of the agreement proposed by the applicant and shall include the contents required in Subsection B below.

B. **Contents of Development Agreements.**

1. **Required Contents.** A Development Agreement shall specify its duration; the permitted uses of the subject property; the density or intensity of uses; the general location, maximum height and size of proposed buildings; and provisions for reservation or dedication of land for public purposes. It shall contain provisions concerning its transferability.

2. **Improvements and Fees.** A Development Agreement may include requirements for construction and maintenance of onsite and off-site improvements or payment of fees in lieu of such dedications or improvements.

3. **Subsequent Actions.** A Development Agreement may also include conditions, terms, restrictions, and requirements for subsequent discretionary actions but does not eliminate the applicant's responsibility to obtain all required land use approvals.

4. **Conditions.** A Development Agreement may include, without limitation, conditions and restrictions imposed by the City with respect to the project, including restrictions and mitigation measures proposed in any environmental document prepared for the project.

5. **Phasing.** A Development Agreement may provide that the project be constructed in specified phases, that construction shall commence within a specified time, and that the project or any phase thereof be completed within a specified time.

6. **Financing.** If the Development Agreement requires applicant financing of necessary public facilities, it may include terms relating to subsequent reimbursement over time for such financing.

7. **Indemnity.** A Development Agreement may contain an indemnity clause requiring the applicant to indemnify and hold the City harmless against claims arising out of or in any way related to the actions of the applicant in connection with the application or the development process, including all legal fees and costs.

8. **Performance Obligation Fees.** A Development Agreement may include provisions to guarantee performance of obligations stated in the agreement.

9. **Public Benefits.** The Development Agreement shall articulate public benefits.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6005. PUBLIC NOTICE AND HEARING.

A. **Notice of Intent.** The Director shall publish a notice of intent to consider adoption of a Development Agreement as provided in the Government Code (Sections 65090 and 65091).

B. **Planning Commission.** The Planning Commission shall hold a duly noticed public hearing prior to adoption of any Development Agreement and shall make a recommendation to the City Council to either approve, approve with modifications, or deny the Development Agreement. Notice of the public hearing shall be given in accordance with the requirements of Section 15-5007, Public Notice.

C. **City Council.** The City Council shall hold a duly noticed public hearing prior to adoption of any Development Agreement and shall either approve, approve with modifications, or deny the Development Agreement. Notice of the public hearing shall be given in accordance with the requirements of Section 15-5007, Public Notice. The City Council public hearing may, but need not, be held concurrently with the public hearing(s) on the project.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 34, eff. 6-11-18).

SEC. 15-6006. FINDINGS AND DECISION.

A. **Required Findings.** The City Council shall not approve a proposed Development Agreement unless it finds the following:

1. That its provisions are consistent with the General Plan, the Fresno County Airport Land Use Compatibility Plan (as may be amended) adopted by the Fresno County

Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5, and any applicable operative plan. This requirement may be satisfied by a finding that the provisions of a proposed Development Agreement are consistent with proposed General Plan or applicable operative plan provisions to be adopted concurrently with the approval of the proposed Development Agreement; and

2. The proposed Development Agreement will provide substantial public benefit.

B. **Decision.** After the City Council completes the public hearing, the City Council shall approve, modify, or disapprove the Development Agreement pursuant to adopted Council procedures.

C. **Approval.** A Development Agreement shall be approved by ordinance.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 7, eff. 10-31-19).

SEC. 15-6007. EXECUTION AND RECORDATION OF DEVELOPMENT AGREEMENT.

Within 10 days after an ordinance approving the Development Agreement takes effect, the Director shall execute the Development Agreement on behalf of the City, and the City Clerk shall record the Development Agreement with the County Recorder.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6008. ANNUAL REVIEW.

The applicant shall be required to demonstrate compliance with the provisions of the Development Agreement, including the provision of community benefits, at least once a year at which time the Director shall review each approved Development Agreement.

A. **Finding of Compliance.** If the Director, on the basis of substantial evidence, finds compliance by the applicant with the provisions of the Development Agreement, the Director shall issue a finding of compliance, which shall be in recordable form and may be recorded with the County Recorder after conclusion of the annual review.

B. **Finding of Noncompliance.** If the Director finds the applicant has not complied with the provisions of the Development Agreement, the Director may issue a finding of noncompliance which may be recorded by the City with the County Recorder after it becomes final. The Director shall specify in writing to the applicant the respects in which applicant has failed to comply, and shall set forth terms of compliance and specify a reasonable time for the applicant to meet the terms of compliance. If the applicant does not comply with any terms of compliance within the prescribed time limits, the Development Agreement shall be subject to termination or modification pursuant to Section 15-6009, Amendment or Cancellation.

C. **Appeal of Determination.** Within seven days after issuance of a finding of compliance or a finding of noncompliance, any interested person may file a written appeal of the finding with the City Council. The appellant shall pay fees and charges for the filing and processing of the appeal in amounts established by resolution of the City Council. The appellant shall specify the reasons for the appeal. The issuance of a finding of compliance or finding of noncompliance by the Director and the expiration of the appeal period without appeal, or the confirmation by the City Council of the issuance of the finding on such appeal, shall conclude the review for the applicable period and such determination shall be final.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6009. AMENDMENT OR CANCELLATION.

A. **After Finding of Noncompliance.** If a finding of noncompliance does not include terms of compliance, or if an applicant does not comply with the terms of compliance within the prescribed time limits, the Director may refer the Development Agreement to the City Council for termination or modification. The City Council shall conduct a noticed public

hearing. After the public hearing, the City Council may terminate the Development Agreement, modify the finding of noncompliance, or rescind the finding of noncompliance and issue a finding of compliance.

B. **Mutual Agreement.** Any development may be canceled or amended by mutual consent of the parties following compliance with the procedures specified in this section. A Development Agreement may also specify procedures for administrative approval of minor amendments by mutual consent of the applicant and Director. Amendments or cancellation of the agreements shall be the responsibility of the Council. The Council hearing shall be noticed.

C. **Recordation.** If the parties to the agreement or their successors in interest amend or cancel the Development Agreement, or if the City terminates or modifies the Development Agreement for failure of the applicant to fully comply with the provisions of the Development Agreement, the City Clerk shall record notice of such action with the County Recorder.

D. **Rights of the Parties After Cancellation or Termination.** In the event that a Development Agreement is cancelled or terminated, all rights of the applicant, property owner or successors in interest under the Development Agreement shall be terminated. If a Development Agreement is terminated following a finding of noncompliance, the City may, in its sole discretion, determine to return any and all benefits, including reservations or dedications of land, and payments of fees, received by the City.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6010. EFFECT OF APPROVED AGREEMENT.

A. **Existing Rules and Regulations.** Unless otherwise specified in the Development Agreement, the City's rules, regulations, and official policies governing permitted uses of the property, density, design, and improvement standards and specifications applicable to development of the property shall be those City rules, regulations, and official policies in force on the effective date of the Development Agreement, except as modified by the terms of the Development Agreement. The applicant shall not be exempt from otherwise applicable City codes or regulations pertaining to persons contracting with the City.

B. **Future Rules and Regulations.** A Development Agreement shall not prevent the City, in subsequent actions applicable to the property, from applying new rules, regulations and policies that do not conflict with those set forth in the Development Agreement. A Development Agreement shall not prevent the City from denying or conditionally approving any subsequent land use permit or authorization for the project on the basis of such existing or new rules, regulations, and policies. Unless otherwise specified in the Development Agreement, a Development Agreement shall not exempt the applicant from obtaining future discretionary land use approvals.

C. **State and Federal Rules and Regulations.** In the event that any regulation or law of the State of California or the United States, enacted or interpreted after a Development Agreement has been entered into prevents or precludes compliance with one or more

provisions of the Development Agreement, then the Development Agreement may be modified or suspended in the manner and pursuant to the procedures specified in the Development Agreement, as may be necessary to comply with such regulation or law.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-6011. ENFORCEMENT.

The procedures for enforcement, amendment, modification, cancellation, or termination of a Development Agreement specified in this section and in Government Code Section 65865.4 or any successor statute, are non-exclusive. A Development Agreement may be enforced, amended, modified, cancelled, or terminated by any manner otherwise provided by law or by the provisions of the Development Agreement.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 61 CONCEPT PLANS, PRE-ZONING, AND ANNEXATIONS

Sec. 15-6101. Purpose.
Sec. 15-6102. Concept Plans.
Sec. 15-6103. Pre-Zoning.
Sec. 15-6104. Annexation Criteria.
Sec. 15-6105. Effective Date of Zoning and Time Limit.

Sec. 15-6101. PURPOSE.

The purpose of this article is to establish a procedure for annexation of adjoining unincorporated territory.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-6102. CONCEPT PLANS.

A. **Purpose.** To facilitate the orderly expansion of the city by shaping new growth areas into a series of complete neighborhoods which feature a connected mix of houses, apartments, stores offices, open space, and public facilities.

B. **Applicability.**

1. **Annexation of Certain Land Uses.** A Concept Plan shall be prepared by the applicant when land with one of the following General Plan land use designations is proposed to be annexed:
    a. Residential, Low Density
    b. Residential, Medium Low Density
    c. Residential, Medium Density
2. **Exceptions.** Applications with the following circumstances shall not be required to prepare a Concept Plan:
    a. With the exception of the proposed project, there is no more undeveloped land within the Concept Plan Area with a residential land use designation.
    b. The site is already part of an adopted Concept Plan.
    c. The site is already part of a Specific Plan which was adopted after December 18, 2014. Sites within the boundaries of specific plan which is substantially complete may not be required to prepare a Concept Plan at the discretion of the Review Authority.
    d. If the Director determines that the subject quarter section and/or adjacent quarter sections provide a sufficient amount of land with commercial and multi-unit land use designations, the project shall not be required to submit a Land Use Map as part of their Concept Plan.
    e. Once the Concept Plan is received by the City the development may proceed if no general plan amendment is required.

C. **Review Authority.** The City Council shall approve, conditionally approve, or deny Concept Plans based on consideration of the requirements of this section.

D. **Concept Plan Area.** The Concept Plan Area shall consist of the entire contiguous area surrounding the project which is bounded by existing or planned Major Streets. This will typically be a quarter section, or about 160 acres, but the actual size may vary.

E. **Concept Plan Contents.**

1. **Land Use Map.** The Concept Plan shall feature a land use map which assigns new planned land uses to the Concept Plan Area according to the Complete Neighborhood policies of the General Plan. The land use map shall be designed as follows:

   a. **Residential Capacity.** The residential capacity of the Concept Plan Area shall not be reduced, but may be increased.

   b. **Ratio of Land Use Designations.** The percentage of land within the Concept Plan Land Use Map that is assigned various land use designations shall fit within the parameters of one of the profiles in the table below, unless unique site conditions warrant an alternative profile, to be determined at the discretion of the Review Authority:

Planned Land Use Designations	*Conventional Profile*		*Mixed-Use Profile*	
	Min.	*Max.*	*Min.*	*Max.*
Commercial (Main Street, Community, or General)	10%	15%	0%	0%
Mixed-Use (Neighborhood or Corridor)	0%	0%	15%	40%
Office	5%	15%	0%	0%
Multi-Unit (Medium High Density, Urban Neighborhood, and High Density Residential)	15%	20%	5%	20%
Single-Unit (Low Density, Medium Low Density, or Medium Density Residential)	50%	70%	40%	80%
Public Facility and Open Space	Percentage shall not decrease from what is shown on the General Plan Land Use Map.			

   c. **Location of Land Use Designations.** Land use designations shall be located in the following manner, unless unique site conditions warrant an alternative layout, to be determined at the discretion of the Review Authority:

      i. Commercial designations (Main Street, Community, or General) shall be located at the intersections of Major Streets.

      ii. Mixed-Use designations (Neighborhood or Corridor) shall be located at the intersections of Major Streets. Additional Mixed-Use designations may also be located along Major Streets between major intersections.

      iii. Office designations shall be located along Major Streets between major intersections.

iv. Multi-Unit residential designations (Medium High Density, Urban Neighborhood, or High Density) shall be located along Major Streets between major intersections.

v. Single-Unit residential designations (Low Density, Medium Low Density, or Medium Density) shall be located within the Concept Plan Area, not abutting Major Streets.

vi. Public Facilities and Open Space designations shall be located along Major Streets between major intersections.

2. **Connectivity Map.** The Concept Plan shall feature a Connectivity Map which identifies a potential street and trail system for the entire Concept Plan Area. The Connectivity Map shall feature a street, path, and trail system for the entire Concept Plan Area which complies with all applicable provisions of Article 41, Subdivision Design Standards, including, but not limited to, the following:

a. Connections between the proposed subdivision and adjacent subdivisions or potential future subdivisions shall be identified in conformance with Section 15-4107-D.

b. Connections between single-unit subdivisions and non-single-unit uses shall be identified in conformance with Section 15-4107-G.3.

F. **Adoption.**

1. **Planning Commission Recommendation.** Prior to City Council Action, the Planning Commission shall review the proposed Concept Plan and make a recommendation to the City Council.

2. **Public Notice.** Public Notice shall be provided prior to the date of Planning Commission and City Council hearings pursuant to Section 15-5007, with the exception that notice shall be provided to all owners and residents within the Concept Plan Area, as well as those within 500 feet.

3. **General Plan Amendment.** Concurrent with the adoption of the Concept Plan, a corresponding amendment to the General Plan shall be presented for adoption in order to maintain consistency.

G. **Authority of Concept Plan.**

1. **Land Use Map.** Land uses may not deviate from those shown in the Concept Plan unless the Concept Plan and General Plan Land Use Map are amended accordingly.

2. **Connectivity Map.**

a. The applicant who proposed the annexation and Concept Plan shall build streets and trails within their site as they are shown in the adopted Concept Plan.

b. Subsequent subdividers may build streets as shown in Concept Plan, or may propose an alternative layout which complies with Article 41, Subdivision Design Standards, and which incorporates the connections between subdivisions and non-residential uses put forth in the Concept Plan.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2025-024, § 79, eff. 7-27-25).

Sec. 15-6103. PRE-ZONING.

A. **Scope.** Unincorporated territory adjoining the city may be pre-zoned for the purpose of determining the zoning that will apply to such property in the event of subsequent annexation.

B. **Review Authority.** The City Council shall approve or deny pre-zoning based on consideration of the requirements of this section.

C. **Procedure.**

1. If land proposed for annexation is required to create a Concept Plan per Section 15-6102, the Concept Plan must be created and adopted prior to pre-zoning.

2. Property that is subject to annexation shall be pre-zoned consistent with the General Plan, Concept Plan if applicable, and any applicable operative plan per Section 15-6104, Annexation Criteria. If an applicant proposes to pre-zone to different zone districts than those which are consistent with the General Plan, Concept Plan, and other operable plans, then plan amendments which achieve consistency shall be initiated and processed per Article 58, Amendments to Development Code Text Amendment, Rezones, and Plan Amendments prior to pre-zoning.

3. In such cases where the Local Agency Formation Commission (LAFCO) of Fresno determines that additional land must be included for orderly growth, said land, if not previously pre-zoned by the Council, shall be brought before the Council for consideration prior to formal annexation. In order to potentially avoid such cases, staff should consult with LAFCO to identify potential parcels that would encourage the logical formation of city boundaries.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-6104. ANNEXATION CRITERIA.

Annexation shall not be approved unless the proposed annexation meets all of the following criteria:

A. **Concept Plan.** If land proposed for annexation is required to create a Concept Plan per Section 15-6102, the Concept Plan must be created and adopted prior to annexation.

B. **Plan Consistency.** The proposed annexation and parcel configuration is consistent with the General Plan, the Fresno County Airport Land Use Compatibility Plan (as

may be amended) adopted by the Fresno County Airport Land Use Commission pursuant to California Public Utilities Code Sections 21670-21679.5, Concept Plan, and any applicable operative plan; and

C. **Revenue Neutrality.**

1. **Public Services, Facilities, and Utilities.** Adequate public services, facilities, and utilities meeting City standards are available to the lands proposed for annexation or will be provided within a specific period of time, with financial guarantees and performance requirements, to ensure this will occur.

2. **Fair and Proportional Payments.** Projects requiring annexation will not negatively impact City finances.

a. No City revenue will be used to replace or provide developer funding that has or would have been committed to any mitigation project.

b. The development project will fully fund public facilities and infrastructure as necessary to mitigate any impacts arising from the new development.

c. The development project will pay for public facilities and infrastructure improvements in proportion to the development's neighborhood and citywide impacts.

d. The development will fund its proportionate share of public facility infrastructure, maintenance and public service costs according to the City Council approved Development Impact Fee Schedule and through a uniform application of community facilities district fees.

D. **Disadvantaged Unincorporated Communities.** The City will partner with the community, if there is wide support for annexation, to coordinate terms to initiate and support the annexation process.

E. **LAFCO Approval.** The annexation shall be approved by the Local Agency Formation Commission (LAFCO) of Fresno.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2019-030, § 8, eff. 10-31-19).

Sec. 15-6105. EFFECTIVE DATE OF ZONING AND TIME LIMIT.

The zoning accomplished by pre-zoning of the property shall become effective at the time that annexation to the city becomes effective. If the subject area has not been annexed to the city within six years of the date of City Council approval, the pre-zoning approval shall be brought before the Planning Commission and the Council for reconsideration.

(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 62 STREET NAMES AND ADDRESSING

Sec. 15-6201. Purpose.
Sec. 15-6202. Determining Street Names.
Sec. 15-6203. General Street Name Procedures.
Sec. 15-6204. Street Name Changes.
Sec. 15-6205. Addressing.

SEC. 15-6201. PURPOSE.

This article shall establish the procedures for the assignment of street names.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6202. DETERMINING STREET NAMES.

A. Street names shall be reviewed and approved by the City. The Director may approve street names as deemed appropriate, however at their discretion; the Director may refer street name-related issues to the Planning Commission for consideration.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6203. GENERAL STREET NAME PROCEDURES.

A. Where streets are continuations of existing streets, as determined by the Director, the existing street names shall be used.

B. Proposed street names shall not duplicate or approximate phonetically the name of any street in Fresno or its environs.

C. The word "Street," "Avenue," "Boulevard," "Road," "Place," or other designation shall be spelled out in full on the map and shall have the prefix of "East," "West," "South," or "North," with the exception of downtown streets as determined by City policy.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6204. STREET NAME CHANGES.

Street name changes shall comply with adopted City policies regarding Street Name Procedures.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6205. ADDRESSING.

The Director shall cause addresses to be established per City policy.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 63 ENFORCEMENT

Sec. 15-6301. Purpose.
Sec. 15-6302. Enforcement.
Sec. 15-6303. Revocation.
Sec. 15-6304. Nuisance Defined.
Sec. 15-6305. Penalty for Violation.
Sec. 15-6306. Remedies.
Sec. 15-6307. Nuisance Abatement.
Sec. 15-6308. Standing to Sue.

SEC. 15-6301. PURPOSE.

This article establishes the responsibilities of various departments, officials, and public employees of the City to enforce the requirements of this Code and establishes uniform procedures the City will use to identify, abate, remove, and enjoin uses, buildings, or structures that are deemed to be in violation of this Code. The provisions of this article are in addition to those set forth in Fresno Municipal Code Chapter 1, Article 3, Code Enforcement; Judicial and Administrative Remedies and Procedures, and Chapter 10, Article 6, Public Nuisance Abatement.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6302. ENFORCEMENT.

All departments, officials, and public employees of the City vested with the duty or authority to issue permits or licenses shall conform to the provisions of this Code, and shall issue no permit or license for uses, buildings, or purposes in conflict with the provisions of this Code, and any such permit or license issued in conflict with the provisions of this Code shall be null and void. It shall be the duty of the Building Official of the City to enforce the provisions of this Code pertaining to the erection, construction, reconstruction, moving, conversion, alteration, or addition to or of any building or structure.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6303. REVOCATION.

Any permit granted under the Development Code may be revoked in accordance with the provisions in Section 15-5016, Revocation of Permits, if any of the conditions or terms of such permit are violated or if any law or code is violated in connection therewith. Notwithstanding this provision, no lawful residential use can lapse regardless of the length of time of the vacancy.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6304. NUISANCE DEFINED.

Any building, structure, or planting set up, erected, constructed, altered, enlarged, converted, moved, or maintained contrary to the provisions of this Code, any use of any land,

building, or premises established, conducted, operated, or maintained contrary to the provisions of this Code, and failure to comply with any of the conditions of a permit granted under this Code is declared to be unlawful and a public nuisance.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6305. PENALTY FOR VIOLATION.

Any person, firm, or corporation, whether as principal, agent, employee or otherwise, violating a provision of this Code or failing to comply with a mandatory requirement of this Code shall be guilty of a misdemeanor, but may be cited or charged, at the election of the enforcing officer or City Attorney, as an infraction. Upon conviction, such person shall be punished as set forth in Fresno Municipal Code Chapter 1, Article 3, Code Enforcement; Judicial and Administrative Remedies and Procedures. A person, firm, or corporation shall be deemed guilty of a separate offense for each and every day during any portion of which any violation of this Code is committed, continued or permitted by such person, firm, or corporation, and shall be punished accordingly.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6306. REMEDIES.

The remedies provided for herein shall be cumulative and not exclusive. Upon a finding of nuisance pursuant to this article, and after giving the property owner an opportunity to cure the nuisance and determining that the nuisance still exists, the Director, Planning Commission, or City Council may impose any remedy available at law or in equity, which shall include, but is not limited to, any of the following or combination thereof:

A. Ordering the cessation of the use in whole or in part;

B. Imposing reasonable conditions upon any continued operation of the use, including those uses that constitute existing non-conforming uses;

C. Requiring continued compliance with any conditions so imposed;

D. Requiring the user to guarantee that such conditions shall in all respects be complied with;

E. Imposing additional conditions or ordering the cessation of the use in whole or in part upon a failure of the user to comply with any conditions so imposed; or

F. Imposition of the provisions of Section 1-301 et. seq. of the Municipal Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6307. NUISANCE ABATEMENT.

Notices of violation shall be provided and recorded and nuisances abated, according to the procedures of Fresno Municipal Code Chapter 10, Article 6, Public Nuisance Abatement.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6308. STANDING TO SUE.

Consistent with State law, any resident or property owner in the city and any resident or property owner within one mile of the city limits shall have standing to obtain a mandatory prohibitory injunction to prevent the violation of this Development Code.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

ARTICLE 64 RESERVED

ARTICLE 65 RESERVED

ARTICLE 66 RESERVED

PART VI: GENERAL TERMS AND DEFINITIONS

ARTICLE 67 USE CLASSIFICATIONS

Sec. 15-6701. Purpose and Applicability.
Sec. 15-6702. Residential Use Classifications.
Sec. 15-6703. Public and Semi-Public Use Classifications.
Sec. 15-6704. Commercial Use Classifications.
Sec. 15-6705. Industrial Use Classifications.
Sec. 15-6706. Transportation, Communication, and Utilities Use classifications.
Sec. 15-6707. Agricultural and Extractive Use Classifications.

SEC. 15-6701. PURPOSE AND APPLICABILITY.

Use classifications describe one or more uses of land having similar characteristics, but do not list every use or activity that may appropriately be within the classification. The Director shall determine whether a specific use shall be deemed to be within one or more use classifications, or not within any classification in this article. The Director may also determine that a specific use shall not be deemed to be within a classification, whether or not generally named within the classification, if its unique characteristics are substantially incompatible with those typical of uses named within the classification.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

SEC. 15-6702. RESIDENTIAL USE CLASSIFICATIONS.

Residential Housing Types. For the purposes of determining consistency with applicable sections of the California Government Code 'single/multi-unit' shall have the same meaning as 'single/multi-family' as it is used in the California Government Code.

Single-Unit Dwelling, Detached. A dwelling unit designed for occupancy by one household, and located on a separate lot from any other unit (except second living units, where permitted). This classification includes individual manufactured housing units installed on a foundation system pursuant to Section 18551 of the California Health and Safety Code.

Single-Unit Dwelling, Attached. A dwelling unit designed for occupancy by one household, located on a single lot and typically grouped together in a row of similar units. They may be attached through common vertical party wall(s) to one or more dwellings on abutting lots, or may appear to be attached, but are structurally independent.

Second Dwelling Unit. A dwelling unit providing independent living facilities for one or more persons that is located on a lot with primary dwelling(s). A second unit may be within the same structure as the primary unit, in an attached structure, or in a separate structure on the same lot.

Duplex. A single building on a lot that contains two dwelling units or two single-unit dwellings on a single lot. This use is distinguished from a Second Dwelling Unit, which is an accessory residential unit as defined by State law and this Ordinance.

Multi-Unit Residential. Three or more dwelling units on a site or lot. Types of multiple unit dwellings include townhouses, garden apartments, senior housing developments, and multi-story apartment buildings. This use includes multi-unit development in which individual units are occupied exclusively by one or more persons 62 years of age or older.

Cottage Housing Development. A group of single-unit homes, typically smaller than 1,200 square feet, that are arranged in common relation to one another, usually surrounding a shared landscaped area. Also known as a "pocket neighborhood."

Adult Family Day Care. A day-care facility licensed by the State of California that is located in a single-unit residence or other dwelling unit where a resident of the dwelling provides care and supervision for adults over the age of 18 for periods of less than 24 hours a day.

Small. A facility that provides care for six or fewer adults.

Large. A facility that provides care for seven to 12 adults.

Caretaker Residence. A dwelling unit occupied by employees or caretakers of the primary use on the site.

Domestic Violence Shelter. A facility providing sleeping accommodations for a maximum of eight persons, inclusive of any children or support staff using sleeping accommodations, located in a single-unit residence or other dwelling unit where survivors of domestic violence or sexual abuse are provided temporary housing, food, and other specialized services in compliance with California Welfare and Institutions Code Section 18290 et seq., and which may also be occupied by professional support staff provided by a sponsoring agent.

Elderly and Long-Term Care. Establishments that provide 24-hour medical, convalescent, or chronic care to individuals who, by reason of advanced age, chronic illness, or infirmity, are unable to care for themselves, and is licensed as a skilled nursing facility by the State of California, including, but not limited to, rest homes and convalescent hospitals, but not Residential Care, Hospitals, or Clinics.

Family Day Care. A day-care facility licensed by the State of California that is located in a single-unit residence or other dwelling unit where a resident of the dwelling provides care and supervision for children under the age of 18 for periods of less than 24 hours a day.

Small. A facility that provides care for eight or fewer children, including children who reside at the home and are under the age of 10.

Large. A facility that provides care for nine to 14 children, including children who reside at the home and are under the age of 10.

Group Residential. Shared living quarters without separate kitchen or bathroom facilities for each room or unit, offered for rent for permanent or semi-transient residents on

a weekly or longer basis. This classification includes clean and sober facilities, other types of organizational housing, private residential clubs, and farmworker housing, but excludes Hotels and Motels, Residential Care Facilities, and Re-Entry Facilities.

Small. A facility that houses six or fewer persons.

Large. A facility that houses seven or more persons.

Lodging-to-Dwelling Conversions. The conversion of existing hotels or motels from a commercial lodging use to a residential use which will provide housing to non-transient residents and facilitate bringing such hotel or motel buildings into safe and habitable condition as required by State and local law.

Mobile Home Parks. A development designed and occupied by mobile homes including development with facilities and amenities used in common by occupants who rent, lease, or own spaces for mobile homes through a subdivision, cooperative, condominium, or other form of resident ownership.

Office-To-Dwelling. The conversion of existing office building(s) from an office use to a multi-unit residential use which will provide housing to residents and facilitate compliance of said structures into safe and habitable condition as required by State and local law.

Re-Entry Facility. A facility used for the rehabilitation and overnight accommodations of 25 or more individuals, including staff, who are (a) under the jurisdiction of a court, but not under confinement, or (b) individuals recently released from the jurisdiction of a court. Such facility shall be operated by the City, the State, the federal government, or a private party under contract with the City, the State, or the federal government for the purpose of providing treatment or rehabilitation intended to assist such individuals with their re-entry into the community.

Residential Care Facilities. Facilities that are licensed by the State of California to provide permanent living accommodations and 24-hour primarily non-medical care and supervision for persons in need of personal services, supervision, protection, or assistance for sustaining the activities of daily living. Living accommodations are shared living quarters with or without separate kitchen or bathroom facilities for each room or unit. This classification includes facilities that are operated for profit as well as those operated by public or not-for-profit institutions, including hospices, nursing homes, convalescent facilities, and group homes for minors, persons with disabilities, and people in recovery from alcohol or drug addictions. This use classification excludes Transitional Housing and Social Service Facilities.

Residential Care, General. A facility providing care for more than six persons.

Residential Care, Limited. A facility providing care for six or fewer persons.

Residential Care, Senior. A housing arrangement chosen voluntarily by the resident, the resident's guardian, conservator, or other responsible person; where residents are 60 years of age or older and where varying levels of care and supervision are provided as

agreed to at the time of admission or as determined necessary at subsequent times of reappraisal. This classification includes continuing-care retirement communities and life care communities licensed for residential care by the State of California.

Single Room Occupancy. A residential facility containing housing units that may have kitchen and/or bathroom facilities and are guest rooms or efficiency units as defined by the State Health and Safety Code. Each housing unit is occupied by no more than two adults and is offered on a monthly rental basis or longer. This definition includes Single Room Occupancy Hotels, Boarding Homes, and extended stay hotels that offer rooms intended for long-term occupancy (30 days or more).

Supportive Housing. Dwelling units with no limit on the length of stay, that are occupied by the target population as defined in Section 50675.14 of the California Health and Safety Code, and that are linked to on-site or off-site services that assist the supportive housing resident in retaining the housing, improving their health status, and maximizing their ability to live and, where possible, work in the community.

Transitional Housing. Dwelling units configured as rental housing developments, but operated under program requirements that call for the termination of assistance and recirculation of the assisted unit to another eligible program recipient at some predetermined future point in time, which shall be no less than six months.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 35, eff. 6-11-18; Am. Ord. 2020-031, § 6, 9-1-20; Am. Ord. 2025-024, § 80, eff. 7-27-25; Am. Ord. 2025-023, § 6, eff. 12-26-25).

Sec. 15-6703. PUBLIC AND SEMI-PUBLIC USE CLASSIFICATIONS.

Cemetery. Establishments primarily engaged in operating sites or structures reserved for the interment of human or animal remains, including mausoleums, burial places, and memorial gardens.

Colleges and Trade Schools, Public or Private. Institutions of higher education providing curricula of a general, religious, or professional nature, typically granting recognized degrees, including conference centers and academic retreats associated with such institutions. This classification includes junior colleges, business and computer schools, management training, technical and trade schools, but excludes personal instructional services such as music lessons.

Community and Religious Assembly. A facility for public or private meetings including community centers, religious assembly facilities, civic and private auditoriums, union halls, meeting halls for clubs and other membership organizations. This classification includes functionally related facilities for the use of members and attendees such as kitchens, multi-purpose rooms, and storage. It does not include gymnasiums or other sports facilities, convention centers, or facilities, such as day care centers and schools that are separately classified and regulated.

Community Garden. Use of land for and limited to the cultivation and tillage of soil for the production, growing, and harvesting of any agricultural, floricultural, or horticultural commodity.

Conference/Convention Facility. One or more structures accommodating multiple assembly, meeting, and/or exhibit rooms, and related support facilities (e.g., kitchens, offices, etc.).

Cultural Institutions. Public or non-profit institutions engaged primarily in the display or preservation of objects of interest in the arts or sciences that are open to the public on a regular basis. This classification includes performing arts centers for theater, music, dance, and events; buildings of an educational, charitable, or philanthropic nature; libraries; museums; historical sites; aquariums; art galleries; and zoos and botanical gardens.

Day Care Centers. Establishments providing non-medical care for persons on a less than 24-hour basis other than Family Day Care. This classification includes nursery schools, preschools, and day care facilities for children or adults, and any other day care facility licensed by the State of California.

Emergency Shelter. A temporary, short-term residence providing housing with minimal supportive services for families or individuals experiencing homelessness, where occupancy is limited to 180 days or less, as defined in Section 50801 of the California Health and Safety Code. Medical assistance, counseling, and meals may be provided.

Government Offices. Administrative, clerical, or public contact offices of a government agency, including postal facilities and courts, together with incidental storage and maintenance of vehicles. This classification excludes corporation yards, equipment service centers, and similar facilities that primarily provide maintenance and repair services and storage facilities for vehicles and equipment (see Utilities, Major).

Hospitals and Clinics. State-licensed facilities providing medical, surgical, psychiatric, or emergency medical services to sick or injured persons. This classification includes facilities for inpatient or outpatient treatment, including substance-abuse programs as well as training, research, and administrative services for patients and employees. This classification excludes veterinaries and animal hospitals (see Animal Care, Sales, and Services).

Hospital. A facility providing medical, psychiatric, or surgical services for sick or injured persons primarily on an in-patient basis, and including ancillary facilities for outpatient and emergency treatment, sub-acute care facilities, diagnostic services, training, research, administration, and services to patients, employees, or visitors.

Clinic. A facility providing medical, psychiatric, or surgical service for sick or injured persons exclusively on an out-patient basis including emergency treatment, diagnostic services, administration, and related services to patients who are not lodged overnight. Services may be available without a prior appointment. This classification includes licensed facilities such as blood banks and plasma centers, and emergency medical services offered exclusively on an out-patient basis. This classification does not include

private medical and dental offices that typically require appointments and are usually smaller scale. This classification includes substance abuse treatment and recovery programs which are not residential in nature and which exclusively administer counseling services.

Substance Abuse Treatment Clinic. A facility that administers medication, or supervises the self-administration of medication, for substance abuse treatment.

Instructional Services. Establishments that offer specialized programs in personal growth and development such as music, martial arts, vocal, fitness, and dancing instruction.

Park and Recreation Facilities, Public. Parks, playgrounds, recreation facilities, trails, wildlife preserves, and related open spaces, all of which are noncommercial. This classification also includes noncommercial playing fields, courts, gymnasiums, swimming pools, picnic facilities, tennis courts, golf courses, and botanical gardens, as well as related food concessions or community centers within the facilities.

Parking, Public or Private. Surface lots and structures which offer parking to the public for a fee, when such parking is not associated with another on-site activity.

Public Safety Facilities. Facilities providing public-safety and emergency services, including police and fire protection, correctional facilities, and emergency medical services, with incidental storage, training, and maintenance facilities.

Schools, Public or Private. Facilities for primary or secondary education, including public schools, charter schools, and private and parochial schools having curricula comparable to that required in the public schools of the State of California.

Social Service Facilities. Any noncommercial facility, such as homeless shelters; and facilities providing social services such as job referrals, housing placement, and which may also provide meals, showers, clothing, groceries, and/or laundry facilities, typically for less than 30 days. Specialized programs and services related to the needs of the residents may also be provided.
(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-32, § 41, eff. 10-21-16; Am. Ord. 2018-25, § 36, eff. 6-11-18; Am. Ord. 2025-009, § 1, eff. 6-5-25).

Sec. 15-6704. COMMERCIAL USE CLASSIFICATIONS.

Adult-Oriented Business. An establishment that, as a regular and substantial course of conduct, offers, sells or distributes adult-oriented merchandise, or that offers to its patrons materials, products, merchandise, services, entertainment, or performances that have sexual arousal, sexual gratification, and/or sexual stimulation as their dominant theme, or are characterized by an emphasis on specified sexual activities or specified anatomical areas and are not customarily open to the general public because they exclude minors by virtue of their age. This classification does not include any establishment offering professional services conducted, operated, or supervised by medical practitioners, physical therapists, nurses, chiropractors, psychologists, social workers, marriage and family counselors, osteopaths, and

persons holding licenses or certificates under applicable State law or accreditation from recognized programs when performing functions pursuant to the respective license or certificate.

Aircraft Sales, Services, and Storage. Uses related to the rental, sales and leasing, storage, repair, and washing of aircraft.

Animal Care, Sales and Services. Retail sales and services related to the boarding, grooming, and care of household pets including:

Grooming and Pet Stores. Retail sales of animals and/or services, including grooming, for animals on a commercial basis. Grooming or selling of dogs, cats, and similar small animals. Typical uses include dog bathing and clipping salons, pet grooming shops, and pet stores and shops. This classification excludes dog walking and similar pet care services not carried out at a fixed location, and excludes pet supply stores that do not sell animals or provide on-site animal services.

Kennels. A commercial, non-profit, or governmental facility for keeping, boarding, training, breeding, or maintaining four or more dogs, cats, or other household pets not owned by the kennel owner or operator. Typical uses include pet clinics, pet day care, grooming, animal hospitals for small animals, and animal shelters, but exclude pet shops and animal hospitals that provide 24-hour accommodation of animals receiving medical or grooming services.

Veterinary Services. Veterinary services for household pets. This classification allows 24-hour accommodation of animals receiving medical services, but does not include kennels (see Kennels) nor veterinary care for farm animals (see Agricultural Support Services).

Artist's Studio. Work space for an artist or artisan, including individuals practicing one of the fine arts or performing arts, or skilled in an applied art or craft. This use is distinguished by incidental retail sales of items produced on the premises and does not include joint living and working units (see Live-Work).

Automobile/Vehicle Sales and Services. Retail or wholesale businesses that sell, rent, and/or repair automobiles, boats, recreational vehicles, trucks, vans, trailers, and motorcycles, including the following:

Automobile Rentals. Rental of automobiles. Typical uses include car rental agencies.

Automobile/Vehicle Sales and Leasing. Sale or lease, retail or wholesale, of automobiles, light trucks, motorcycles, motor homes, and trailers, together with associated repair services and parts sales, but excluding body repair and painting. Typical uses include automobile dealers and recreational vehicle sales agencies. This classification does not include automobile brokerage and other establishments which solely provide services of arranging, negotiating, assisting, or effectuating the purchase of an automobile for others.

Automobile/Vehicle Repair, Major. Repair of automobiles, trucks, motorcycles, motor homes, boats, and recreational vehicles, including the incidental sale, installation, and

servicing of related equipment and parts, generally on an overnight basis. This classification includes auto repair shops, body and fender shops, transmission shops, wheel and brake shops, auto glass services, and vehicle painting, but excludes vehicle dismantling or salvaging and tire retreading or recapping.

Automobile/Vehicle Service and Repair, Minor. The service and repair of automobiles, light-duty trucks, boats, and motorcycles, including the incidental sale, installation, and servicing of related equipment and parts. This classification includes the replacement of small automotive parts and liquids as an accessory use to a gasoline sales station or automotive accessories and supply store, and quick-service oil, tune-up, and brake and muffler shops, where repairs are made or service is provided in enclosed bays and no vehicles are stored overnight, including tire sales and installation. This classification excludes disassembly, removal, or replacement of major components such as engines, drive trains, transmissions, or axles; automotive body and fender work; vehicle painting; or other operations that generate excessive noise, objectionable odors, or hazardous materials; and towing services. It also excludes repair of heavy trucks, limousines, or construction vehicles.

Large Vehicle and Equipment Sales, Service, and Rental. Sales, servicing, rental, fueling, and washing of large trucks, trailers, tractors, and other heavy equipment used for construction, moving, agricultural, or landscape gardening activities. Examples include cranes, earth moving equipment, tractors, combines, heavy trucks, etc. Includes large vehicle operation training facilities. Sales of new or used automobiles are excluded from this classification.

Service Station. Establishments primarily engaged in retailing automotive fuels or retailing these fuels in combination with activities, such as providing minor automobile/vehicle repair services; selling automotive oils, replacement parts, and accessories; and/or providing incidental food and retail services.

Towing and Impound. Establishments primarily engaged in towing light or heavy motor vehicles, both local and long distance. These establishments may provide incidental services, such as vehicle storage and emergency road repair services (for automobile dismantling, see Salvage and Wrecking).

Washing. Washing, waxing, detailing, or cleaning of automobiles or similar light vehicles, including self-serve washing facilities.

Banks and Financial Institutions.

Banks and Credit Unions. Financial institutions providing retail banking services. This classification includes only those institutions engaged in the on-site circulation of money, including credit unions, but excludes check-cashing businesses and payday lenders.

Check Cashing Businesses, Payday Lenders, and Similar Financial Services. Establishments that, for compensation, engage in the business of cashing checks, warrants, drafts, money orders, or other commercial paper serving the same purpose; that

offer, originate, or make deferred deposit transactions in which the establishment/lender defers depositing a customer's personal check or electronically accessing a bank account until a specific date, pursuant to a written agreement, for a fee or other charge; or that engage in the business of making consumer or auto-title loans.

This category does not include State or federally chartered banks, savings associations, credit unions, or industrial loan companies. It also does not include retail sellers that are primarily engaged in the business of selling consumer goods, such as consumables to retail buyers, and that cashes checks or issues money orders as a service to its customers (for a fee not exceeding two dollars), incidental to their main purpose or business.

Banquet Hall. A facility, as part of a hotel or as a standalone facility, where various types of gatherings may occur. Banquet Hall activities include, but are not limited to, formal dinners, receptions, reunions, business meetings, benefits, and club meetings.

Business Services. Establishments providing goods and services to other businesses on a fee or contract basis, including printing and copying, blueprint services, advertising and mailing, equipment rental and leasing, office security, custodial services, photo finishing, model building, taxi or delivery services with two or fewer fleet vehicles on-site.

Corner Commercial. Small-scale commercial establishments within residential districts. Limited permitted uses are neighborhood-serving to provide convenient, walkable access to important amenities.

Eating and Drinking Establishments. Businesses primarily engaged in serving prepared food and/or beverages for consumption on or off the premises.

Bars/Nightclubs/Lounges. Businesses serving beverages for consumption on the premises as a primary use and including on-sale service of alcohol including beer, wine, and mixed drinks. This use includes micro-breweries where alcoholic beverages are sold and consumed on-site and any food service is subordinate to the sale of alcoholic beverages.

Restaurant with Alcohol Sales. Restaurants providing food and beverage services, including the sales of alcoholic beverages for consumption on the premises. Takeout or delivery service may be provided. This use includes micro-breweries where the sale and consumption of alcoholic beverages are subordinate to on-site food service.

Restaurant without Alcohol Sales. Restaurants providing food and beverage services without the sales of alcoholic beverages. Food and beverages may be consumed on the premises, taken out, or delivered. This classification also includes catering businesses or bakeries that have a storefront retail component.

Entertainment and Recreation. Provision of participant or spectator entertainment to the general public.

Cinema/Theaters. Facilities for indoor display of films, motion pictures, or dramatic, musical, or live performances. This classification may include incidental food and beverage services to patrons.

Cyber/Internet Café. A private establishment that offers access to the Internet to its customers, usually within the setting of a café where food and drink may be purchased.

Motorcycle/Riding Clubs. Facilities that support the activities of motorcycle interest groups.

Shooting/Archery Range. A facility designed for firearm or archery practice.

Large-Scale. This classification includes large outdoor facilities such as amusement and theme parks, sports stadiums and arenas, racetracks, amphitheaters, drive-in theaters, water parks, zoos, driving ranges, golf courses, miniature golf courses, and riding stables. Fully enclosed sports stadiums and arenas are also included. This classification may include snack bars and other incidental food and beverage services to patrons. Bars or restaurants with alcohol sales shall be treated as a separate use and shall be regulated accordingly, even when operated in conjunction with the entertainment and recreation use.

Small-Scale. This classification includes smaller and primarily indoor facilities such as fitness centers, health clubs, and gymnasiums; handball, racquetball, and tennis club facilities; ice or roller skating rinks; public swimming pools; bowling alleys; card rooms; dance halls; pool and billiards lounges; trampoline and bounce house establishments; and amusement arcades. This classification may include snack bars and other incidental food and beverage services to patrons. Bars or restaurants with alcohol sales shall be treated as a separate use and shall be regulated accordingly, even when operated in conjunction with the entertainment and recreation use.

Food and Beverage Sales. Retail sales of food and beverages for off-site preparation and consumption. Typical uses include food markets, groceries, and liquor stores.

Farmer's Markets. A commercial use primarily consisting of an organized display, indoors or outdoors, of agricultural products in their natural state for retail sale. Other products such as processed food (dried fruit, cheese or bread, for example), or artisan handiwork or art, are sometimes sold at Farmer's Markets as well. Farmer's Markets which take place within a fully enclosed building which is not disassembled when the Farmer's Market is not in operation shall be considered Healthy Food Grocers.

General Market. Retail food markets of food and grocery items for offsite preparation and consumption. Typical uses include full-service grocery stores, neighborhood grocery stores, and specialty food stores, such as retail bakeries; candy, nuts, and confectionary stores; meat or produce markets; vitamin and health food stores; cheese stores; and delicatessens. This classification may include small-scale specialty food production such as pasta shops with retail sales.

Healthy Food Grocer. A food and beverage retail sales establishment that (1) dedicates at least 50 percent of retail space to a general line of grocery products intended for home preparation, consumption and use; and (2) dedicates at least 30 percent of retail space to perishable goods including dairy, fresh, produce, fresh meats, poultry and fish, and frozen foods.

Liquor Stores. An establishment less than 10,000 square feet in size that sells liquor for off-site consumption and/or that devotes 30 percent or greater floor area to the selling of packaged alcoholic beverages (such as ale, beer, wine, and liquor) for off-site consumption.

Food Preparation. Businesses preparing and/or packaging food for off-site consumption, excluding those of an industrial character in terms of processes employed, waste produced, water used, and traffic generation. Typical uses include catering kitchens, bakeries with on-site retail sales, and small-scale specialty food production. This use includes micro-breweries, but does not include tasting rooms open to the public or sales for consumption on-site.

Funeral Parlors and Internment Services. An establishment primarily engaged in the provision of services involving the care, preparation, or disposition of human remains and conducting memorial services. Typical uses include crematories, columbaria, mausoleums, mortuaries, funeral chapels, and funeral homes.

Live/Work. A unit that combines a work space and incidental residential occupancy occupied and used by a single household in structure that has been constructed for such use or converted from commercial or industrial use and structurally modified to accommodate residential occupancy and work activity in compliance with the Building Code. The working space is reserved for and regularly used by one or more occupants of the unit.

Lodging. An establishment providing overnight accommodations to transient patrons for payment for periods of less than 30 consecutive calendar days.

Bed and Breakfast. A residential structure that is in residential use with one or more bedrooms rented for overnight lodging and where meals may be provided.

Hotels and Motels. An establishment providing overnight lodging to transient patrons. These establishments may provide additional services, such as conference and meeting rooms, restaurants, bars, or recreation facilities available to guests or to the general public. This use classification includes motor lodges, motels, and tourist courts, but does not include rooming houses, boarding houses, private residential clubs, or bed and breakfast establishments within a single-unit residence, which are separately defined and regulated.

RV Parks. A form of lodging designed to specifically accommodate travelers with recreational vehicles and/or trailers.

Maintenance and Repair Services. Establishments engaged in the maintenance or repair of office machines, household appliances, furniture, and similar items. This classification excludes maintenance and repair of vehicles or boats (see Automotive/Vehicle Sales and Services) and personal apparel (see Personal Services).

Offices. Offices of firms or organizations providing professional, executive, management, administrative or design services, such as accounting, architectural, computer software design, engineering, graphic design, interior design, investment, insurance, and legal offices, excluding banks and savings and loan associations (see Banks and Financial Institutions).

This classification also includes offices where medical and dental services are provided by physicians, dentists, chiropractors, acupuncturists, optometrists, and similar medical professionals, including medical/dental laboratories within medical office buildings but excluding clinics or independent research laboratory facilities and hospitals (see Hospitals and Clinics).

Business and Professional. Offices of firms or organizations providing professional, executive, management, or administrative services, such as accounting, architectural, computer software design, engineering, graphic design, interior design, legal offices, and tax preparation offices.

Medical and Dental. Office use providing consultation, diagnosis, therapeutic, preventive, or corrective personal treatment services by doctors, dentists, medical and dental laboratories, and similar practitioners of medical and healing arts for humans licensed for such practice by the State of California. Incidental medical and/or dental research within the office is considered part of the office use, where it supports the on-site patient services.

Walk-In Clientele. An office business providing direct services to patrons or clients that may or may not require appointments. This use classification includes employment agencies, insurance agent offices, real estate offices, travel agencies, utility company offices, and offices for elected officials. It does not include banks or check-cashing facilities that are separately classified and regulated.

Personal Services.

General Personal Services. Provision of recurrently needed services of a personal nature. This classification includes barber shops and beauty salons, seamstresses, tailors, day spas, dry cleaning agents (excluding large-scale bulk cleaning plants), shoe repair shops, self-service laundries, video rental stores, photocopying, photo finishing services, and travel agencies mainly intended for the consumer.

Fortune Telling Service. An establishment engaged in or that professes to foretell future or past events or that is engaged in the practice of palmistry (the art or practice of reading a person's character or future from the lines on the palms of hands). Examples of this use type include astrologers, fortune tellers, palm and card readers, and psychics.

Massage Establishments. Any business, including a sole proprietorship, which offers massage therapy in exchange for compensation, whether at a fixed place of business or at a location designated by the patron. Massage therapy includes the application of various techniques to the muscular structure and soft tissues of the human body, including, but not limited to, any method of pressure or friction against, or stroking, kneading, rubbing, tapping, compression, pounding, vibrating, rocking or stimulating of, the external surfaces of the body with the hands or with any object or appliance. Exempted from this definition are massage therapists operating in conjunction with and on the same premises as a physician, surgeon, chiropractor, osteopath, nurse or any physical therapist who is duly

State-licensed to practice their respective profession in the State of California, and out-service massage therapists certified pursuant to the California Business and Professions Code Section 4612.

Medical Marijuana Collective. A location where marijuana is cultivated collectively by more than one qualified patient (with valid identification card) or designated primary caregiver of a person with a valid identification card, in order to collectively or cooperatively cultivate and/or store marijuana for medical purposes, as provided in Health and Safety Code Section 1362.775.

Tattoo or Body Modification Parlor. An establishment whose principal business activity is one or more of the following: 1) using ink or other substances that result in the permanent coloration of the skin through the use of needles or other instruments designed to contact or puncture the skin; or 2) creating an opening in the body of a person for the purpose of inserting jewelry or other decoration.

Retail Sales.

Building Materials and Services. Retail sales or rental of building supplies or equipment. This classification includes lumber yards, tool and equipment sales or rental establishments, and includes establishments devoted principally to taxable retail sales to individuals for their own use. This definition does not include Construction and Material Yards or plant nurseries.

Convenience Retail. Establishments primarily engaged in the provision of frequently or recurrently needed small personal items or services for residents within a reasonable walking distance. These include various general retail sales and personal services of an appropriate size and scale to meet the above criteria. Liquor Stores shall not be considered Convenience Retail.

General Retail. The retail sale or rental of merchandise not specifically listed under another use classification. This classification includes retail establishments with 80,000 square feet or less of sales area; including department stores, clothing stores, furniture stores, pet supply stores, hardware stores, and businesses retailing the following goods: toys, hobby materials, handcrafted items, jewelry, cameras, photographic supplies and services (including portraiture and retail photo processing), medical supplies and equipment, pharmacies, electronic equipment, sporting goods, kitchen utensils, hardware, appliances, antiques, art galleries, art supplies and services, paint and wallpaper, carpeting and floor covering, office supplies, bicycles, and new automotive parts and accessories (excluding vehicle service and installation). Retail sales may be combined with other services such as office machine, computer, electronics, and similar small-item repairs.

Gun Shop. Any retail sales business engaged in selling, leasing, purchasing, or lending of guns, firearms, or ammunition.

Large-Format Retail. Retail establishments (over 80,000 square feet of sales area) that sell merchandise and bulk goods for individual consumption, including membership warehouse clubs.

Nurseries and Garden Centers. Establishments primarily engaged in retailing nursery and garden products—such as trees, shrubs, plants, seeds, bulbs, and sod—that are predominantly grown elsewhere. These establishments may sell a limited amount of a product they grow themselves. Fertilizer and soil products are stored and sold in package form only. This classification includes wholesale and retail nurseries offering plants for sale.

Pawn Shops. Establishments engaged in the buying or selling of new or secondhand merchandise and offering loans in exchange for personal property.

Second Hand/Thrift Store. A retail establishment that buys and sells used products, including through consignment, that may include clothing, furniture and household goods, jewelry, household appliances, musical instruments, business machines and office equipment, hand tools, and similar items. This use does not include book stores, antique stores, sale of used farm or construction equipment, junk dealers, scrap/dismantling yards, sale of used cars or other vehicles, or pawn shops.

Swap Meet/Flea Market. Any indoor or outdoor place, in an approved location, or for an approved activity where new or used goods or secondhand personal property is offered for sale or exchange to the general public by a multitude of individual licensed vendors, usually in compartmentalized spaces. The term swap meet is interchangeable with and applicable to: flea markets, auctions, open air markets, or other similarly named or labeled activities; but the term does not include supermarket or department store retail operations.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2018-25, § 37, eff. 6-11-18; Am. Ord. 2018-66, § 71, eff. 1-18-19; Am. Ord. 2024-015, § 1, eff. 7-11-24).

Sec. 15-6705. INDUSTRIAL USE CLASSIFICATIONS.

Construction and Material Yards. Storage of construction materials or equipment on a site other than a construction site.

Custom Manufacturing. Establishments primarily engaged in on-site production of goods by hand manufacturing or artistic endeavor, which involves only the use of hand tools or small mechanical equipment and the incidental direct sale to consumers of only those goods produced on-site. Typical uses include ceramic studios, candle making shops, woodworking, and custom jewelry manufacturers.

Limited Industrial. Establishments engaged in light industrial activities taking place primarily within enclosed buildings and producing minimal impacts on nearby properties. This classification includes manufacturing finished parts or products primarily from previously prepared materials; micro-breweries where retail sales are clearly incidental and

no alcoholic beverages are consumed on-site; commercial laundries and dry cleaning plants; monument works; printing, engraving and publishing; computer and electronic product manufacturing; furniture and related product manufacturing; and industrial services.

General Industrial. Manufacturing of products from extracted or raw materials or recycled or secondary materials, or bulk storage and handling of such products and materials. This classification includes operations such as food and beverage processing (excluding animal food manufacturing); production apparel manufacturing; photographic processing plants; leather and allied product manufacturing; wood product manufacturing; paper manufacturing; plastics and rubber products manufacturing; nonmetallic mineral product manufacturing; primary metal manufacturing; fabricated metal product manufacturing; and automotive and heavy equipment manufacturing. This classification does not include recycling or rendering.

Food and Beverage Processing. A facility combining raw food ingredients to produce packaged food products that can be easily prepared and served by the consumer. Examples include: parboiling, cooking, canning, bottling, freezing, or other methods to provide shelf-stable or freezer commodities for sale for human consumption. Additionally, this classification does not include the processing of animals.

Intensive Industrial. Industrial uses that regularly use hazardous chemicals or procedures or produce hazardous byproducts, including the following: manufacturing of acetylene, cement, lime, gypsum or plaster-of-Paris, chlorine, corrosive acid or fertilizer, insecticides, disinfectants, poisons, explosives, paint, lacquer, varnish, petroleum products, coal products, plastic and synthetic resins, and radioactive materials. This subcategory also includes biomass energy conversion, chemical manufacturing, animal food manufacturing, petrochemical tank farms, gasification plants, smelting, animal slaughtering, oil refining, asphalt and concrete plants, and tanneries. Intensive industrial uses have high potential for external impacts on the surrounding area in terms of noise, vibration, odor, hours of operation, and traffic. This classification does not include rendering.

Recycling Facility. A facility for receiving, temporarily storing, transferring and/or processing materials for recycling, reuse, or final disposal. This use classification does not include facilities that deal with animal matter nor does it include waste transfer facilities that operate as materials recovery, recycling, and solid waste transfer operations, which are classified as utilities.

Reverse Vending Machine. An automated mechanical device that accepts, sorts, and processes recyclable materials and issues a cash refund or a redeemable credit slip.

CRV Recycling Center. A facility available for the general public for the recycling of California Redemption Value (CRV) products such as glass, aluminum cans, and plastic beverage containers as defined by the State's Department of Resources Recycling and Recovery. Processing and sorting is not conducted on-site.

Recycling Processing Facility. A facility that receives, sorts, stores and/or processes recyclable materials.

Research and Development. A facility for scientific research and the design, development, and testing of electrical, electronic, magnetic, optical, pharmaceutical, chemical, and biotechnology components and products in advance of product manufacturing. Includes assembly of related products from parts produced off-site where the manufacturing activity is secondary to the research and development activities.

Salvage and Wrecking. Storage and dismantling of vehicles and equipment for sale of parts, as well as their collection, storage, exchange or sale of goods including, but not limited to, any used building materials, used containers or steel drums, used tires, and similar or related articles or property.

Warehousing, Storage, and Distribution. Storage and distribution facilities without sales to the public on-site or direct public access except for public storage in small individual spaces exclusively and directly accessible to specific tenants. This classification includes mini-warehouses.

Chemical and Mineral Storage. Storage of hazardous materials including, but not limited to: bottled gas, chemicals, minerals and ores, petroleum or petroleum-based fuels, and fireworks.

Indoor Warehousing and Storage. Storage within an enclosed building of commercial goods prior to their distribution to wholesale and retail outlets and the storage of industrial equipment, products and materials including, but not limited to, automobiles, feed, and lumber. Also includes cold storage, draying or freight, moving and storage, and warehouses. This classification excludes the storage of hazardous chemical, mineral, and explosive materials.

Outdoor Storage. Storage of vehicles or commercial goods or materials in open lots.

Personal Storage. Facilities offering enclosed storage with individual access for personal effects and household goods including mini-warehouses and mini-storage. This use excludes workshops, hobby shops, manufacturing, or commercial activity.

Wholesaling and Distribution. Indoor storage and sale of goods to other firms for resale; storage of goods for transfer to retail outlets of the same firm; or storage and sale of materials and supplies used in production or operation, including janitorial and restaurant supplies. Wholesalers are primarily engaged in business-to-business sales, but may sell to individual consumers through mail or internet orders. They normally operate from a warehouse or office having little or no display of merchandise, and are not designed to solicit walk-in traffic. This classification does not include wholesale sale of building materials.

(Added Ord. 2015-39, § 72, eff. 1-9-16; Am. Ord. 2018-66, § 72, eff. 1-18-19).

Sec. 15-6706. TRANSPORTATION, COMMUNICATION, AND UTILITIES USE CLASSIFICATIONS.

Airports and Heliports. Facilities for the takeoff and landing of airplanes and helicopters, including runways, helipads, aircraft storage buildings, public terminal building

and parking, air freight terminal, baggage handling facility, aircraft hangar and public transportation and related facilities, including bus operations, servicing, and storage. Also includes support activities such as fueling and maintenance; storage; airport operations and air traffic control; incidental retail sales, coffee shops and snack shops; and airport administrative facilities, including airport offices, terminals, operations buildings, communications equipment, buildings and structures, control towers, lights; and other equipment and structures required by the United States Government and/or the State for the safety of aircraft operations.

Communication Facilities. Facilities for the provision of broadcasting and other information relay services through the use of electronic and telephonic mechanisms.

Antenna and Transmission Towers. Broadcasting and other communication services accomplished through electronic or telephonic mechanisms, as well as structures and equipment cabinets designed to support one or more reception/transmission systems. Typical uses include wireless telecommunication towers and facilities, radio towers, television towers, telephone exchange/microwave relay towers, cellular telephone transmission/personal communications systems towers, and associated equipment cabinets and enclosures.

Facilities within Buildings. Includes radio, television, or recording studios; telephone switching centers, but excludes Antennae and Transmission Towers.

Freight/Truck Terminals and Warehouses. Facilities for freight, courier, and postal services by truck or rail. This classification does not include local messenger and local delivery services (see Light Fleet-Based Services).

Light Fleet-Based Services. Passenger transportation services, local delivery services, medical transport, and other businesses that rely on fleets of three or more vehicles with rated capacities less than 10,000 lbs. This classification includes parking, dispatching, and offices for taxicab and limousine operations, ambulance services, non-emergency medical transport, local messenger and document delivery services, home cleaning services, and similar businesses. This classification does not include towing operations (see Automobile/Vehicle Sales and Service, Towing and Impound) or taxi or delivery services with two or fewer fleet vehicles on-site (see Business Services).

Transportation Passenger Terminals. Facilities for passenger transportation operations. Includes rail stations and bus terminals, but does not include terminals serving airports or heliports.

Utilities, Major. Generating plants; electric substations; solid waste collection, including transfer stations and materials recovery facilities; solid waste treatment and disposal; water or wastewater treatment plants; and similar facilities of public agencies or public utilities.

Utilities, Minor. Facilities necessary to support established uses involving only minor structures, such as electrical distribution lines, and underground water and sewer lines.

Waste Transfer Facility. A public or private facility that operates as a materials recovery, recycling, and solid waste transfer operation providing solid waste recycling and transfer services for other local jurisdictions and public agencies that are not located within the City of Fresno. The facility sorts and removes recyclable materials (including paper, metal, wood, inert materials such as soils and concrete, green waste, glass, aluminum and cardboard) through separation and sorting technologies to divert these materials from the waste stream otherwise destined for landfill.
(Added Ord. 2015-39, § 1, eff. 1-9-16).

Sec. 15-6707. AGRICULTURAL AND EXTRACTIVE USE CLASSIFICATIONS.

Agricultural Labor Housing. Living accommodations for employees and their immediate families employed for the exclusive purpose of agricultural pursuits either on the premises or off site. It includes single or multi-unit dwellings, including mobile homes and dormitories. See California Health and Safety Code Sections 17021.5 and 17021.6.

Agricultural Processing. Establishments performing a variety of operations on crops after harvest, to prepare them for market on-site or further processing and packaging at a distance from the agricultural area including, but not limited to: alfalfa cubing; hay baling and cubing; corn shelling; drying of corn, rice, hay, fruits, and vegetables; pre-cooling and packaging of fresh or farm-dried fruits and vegetables; grain cleaning and custom grinding; custom grist mills; custom milling of flour, feed, and grain; sorting, grading, and packing of fruits and vegetables, tree nut hulling and shelling; cotton ginning; wineries, alcohol fuel production; and receiving and processing of green material, other than that produced on-site (commercial composting).

Agricultural Support Services. Agriculturally related services, such as storage of agricultural products; sales, maintenance, and repair of farm machinery and equipment; farm animal veterinary clinics; custom farming services; agriculturally related building, feed, and farm supply stores; agricultural waste handling and disposal services (e.g., manure, bedding and litter, composting); and other similar related services. This definition does not include the rendering or transport of deceased animals.

Animal Raising. The raising, grazing, or feeding of animals for animal products, animal increase, or value increase, and dairying as an accessory use on farms with dairy cattle.

Crop Cultivation. The cultivation of tree, vine, field, forage, and other plant crops intended to provide food or fibers. The classification excludes wholesale or retail nurseries (See Nurseries and Garden Centers), but includes plant nurseries where plants are grown for sale either on site or to be sold elsewhere.

Dairy. Shelter and other facilities for the feeding and milking of cattle and the extraction of milk, where the milk may be processed either on or off site.

Mining and Quarrying. The extraction of nonmetallic minerals, including dredging, and sand and gravel pit operations. This classification includes surface mining operations.

Produce Stand. Producer-owned and operated facility for the sale of vegetables, nuts, and other produce grown on the same site or as part of a shared multi-farm operation.

Rendering. A process in which animal tissue waste is converted into value-added materials such as lard, tallow, or high-protein meat and bone meal.

Sales Lot, Feed Lot, Stockyard. An open, fenced lot where cattle are fed prior to slaughter or transport, and which may include auction or other sales activities.

Slaughterhouse. Establishments engaged in the commercial butchering of animals.

Tasting Room. A retail sales facility which is ancillary to an on-site production facility, where customers may purchase and consume beverage and food products grown and/or processed on the site. Products offered for tasting and sale may include wine, beer, olive oil, cheese, and/or other food and beverage products. The floor area of the Tasting Room will not exceed 33% of the production floor area. Tasting Rooms which exceed this ratio will be classified as a Bar/Nightclub/Lounge, Restaurant, or other use as determined by the Review Authority.

Urban Farm. An agricultural use in an urban area, in a zoning district where urban land uses predominate. Urban farms may be of any size, though permit requirements may differ. Community-supported agriculture (CSA) farms, and private farms may all be considered urban farms.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2017-33, § 31, eff. 7-30-17; Am. Ord. 2025-024, § 81, eff. 7-27-25).

ARTICLE 68 TERMS AND DEFINITIONS

Sec. 15-6801. List of Terms.
Sec. 15-6802. Definitions.

Sec. 15-6801. LIST OF TERMS.

Abandoned, Abandonment

Abutting, Adjoining, or Adjacent

Access

Accessory Building

Accessory Structure

Accessory Use

Act of Nature

Alley

Alteration

Animal Keeping

Arcade

Awning

Balcony

Base District

Bathroom

Bay Window

Bedroom

Block

Blockface

Building

Building, Accessory

Building, Principal

Building Code

Building Face

Building Envelope

Building Footprint

Building Height

Building Site

Buffer, Buffering

California Department of Alcoholic Beverage Control (ABC)

California Environmental Quality Act (CEQA)

Canopy

Carport

Change of Use

Change of Occupancy

City

City Council

Clear

Conditionally Permitted

Construction

County

Courtyard

Craft Beer

Curb Cut

Deck

Demolition

Density

Development

Development Agreement

Director

Discretionary Permit

District

Drive-In and Drive-Through Facilities

Driveway

Dwelling
Dwelling Unit
Easement
Effective Date
Emergency
Enclosed
Entitlement
Entrance
Environmental Review
Environmental Impact Report (EIR)
Erect
Excavation
Expressway
Façade
Façade, Street-Facing
Feasible
Fee
Fence
Fire Code
Flood or Flooding
Floor Area
Floor Area Ratio
Footprint
Freeway
Garage
Garage Sales
General Plan
Glare
Government Code
Grade
Average Grade
Existing Grade
Ground Floor
Ground Floor-Street Frontage
Habitable Space
Habitation
Hazardous Materials
Height
Historic Preservation Commission
Home Occupation
Household
Illegal Non-Conforming Use, Structure, or Site Feature
Intensity of Use
Intersection, Street
Kitchen
Land Division-Related Definitions
Arterial
Block
Collector Street
Community Apartment
Community Apartment Project
Condominium
Condominium Project
Conversion
Comparable Replacement Housing
Cul-de-Sac
Dead End Street
Expressway
Final Map
Freeway
Frontage
Frontage Road
Handicapped
Improvements

Improvement Plans
Local Collector Street
Local Street
Lot Line Adjustment
Map Act
Merger
Outlot
Parcel
Parcel Map
Private Street
Public Improvement
Remainder
Restricted Access Strip
Standards Specifications
Stock Cooperative
Subdivider
Subdivision
Temporary Turn-Around
Tentative Map
Tentative Parcel Map
Tract
Vesting Tentative Map

Landscape-Related Definitions
Automatic Irrigation System
California Building Code
California Green Building Standards Code
California Model Water Efficient Landscape Ordinance
California Plumbing Code
Drought-Tolerant Plant
Hedge
Heritage Tree
Hydrozone
Landscape Mound
Landscaping
Mulch
Park Strip
Passive Solar-Oriented Tree
Plant
Private Tree
Pruning
Remove
Retention Basin
Shrub
Trim
Turf
Water-Wise, Climate-Appropriate Plant
Wind Buffer-Oriented Tree

Legal Non-Conforming Use, Structure, or Site Feature

Light Fixture

Loading Space

Loft

Lot
Corner Lot
Flag Lot
Key Lot
Reverse Corner Lot
Through Lot

Lot Area

Lot Depth

Lot Frontage

Lot Line
Front Lot Line
Rear Lot Line

Side Lot Line

Street Side Lot Line

Lot Width

Main Structure

Maintenance and Repair

Mezzanine

Mixed-Use Development

Mobile Vendor

Muntin

Noise-Related Definitions

Community Noise Equivalent Level (CNEL)

Day-Night Average Sound Level (Ldn)

Decibel (dB)

Decibel, A-weighted (dBA)

Equivalent Sound Level (Leq)

Maximum Noise Level (Lmax)

Non-Conforming Building

Non-Conforming Lot

Non-Conforming Use, Structure, or Site Feature

Occupancy Group

On-Site

Open Space Types

Open Space, Common

Open Space, Private

Open Space, Usable

Outdoor Sales, Temporary and Seasonal

Outdoor Storage

Overlay District

Parapet

Parcel

Parking Facility

Accessory Parking

Long-Term Parking

Parking, Bicycle

Long-Term

Short-Term

Parking Space, Off-Street

Parking Structure

Patio

Paving

Permit

Permitted Use

Person

Person with Disabilities

Planning Commission

Plaza

Podium

Pocket Park

Port Cochere

Pre-Existing

Primary Use

Project

Public Land

Public Resources Code

Qualified Applicant

Ramp

Recreational Vehicle (RV)

Residential Use

Review Authority

Right-of-Way

Roof

Screening

Security Grate or Grilles
Service Areas
Setback
Shielded Light Fixture
Sidewalk
Sidewalk Café
Sign-Related Definitions
Animated Sign
Awning
Awning or Canopy Sign
Banner
Billboard
Changeable Copy Sign
Commercial Message
Construction Sign
Copy
Directional Sign
Exempt Sign
Face
Flag
Freestanding Sign
Graffiti
Illuminated Sign
Master Sign Program
Mobile Billboard
Monument Sign
Name Plate
Non-Conforming Sign
Non-Commercial Message
Non-Communicative Aspects
Off-Site or Off-Premise Sign
On-Site or On-Premise Sign
Outdoor Advertising Signs
Pennant
Pole Sign
Projecting Sign
Primary Building Face
Real Estate Sign
Roofline
Roof Sign
Sign
Sign Area
Temporary Sign
Wall Sign
Window Sign
Site
Story
Street
Street Tree
Streetwall
Structural Alterations
Structure
Structure, Accessory
Structure, Main
Structure, Temporary
Sub-Acute Care Facility
Swimming Pool
Telecommunication-Related Definitions
Alternative Tower Structure
Antenna
Antenna Structure
Co-Location
Distributed Antenna System
Equipment Cabinet or Enclosure
Feasible
Mast

Microcell Facility
Readily Visible
Related Equipment
Service Provide
Telestyles
Tower
Wireless Communications Facility
Temporary Structure
Tenant
Tiny House
Trailer
Trash Screen/Enclosure
Unit
Use
Use, Accessory
Use, Primary
Use Classification
Use Permit
Use Type
Utilities
Variance
Vehicle
Vibration
Visible
Walk-Up Facility
Wall
Watercourse
Window
Yard
Yard Sales
Zoning District

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-43, § 15, eff. 12-9-16; Am. Ord. 2020-045, § 2, eff. 11-15-20; Am. Ord. 2025-009, § 2, eff. 6-5-25).

Sec. 15-6802. DEFINITIONS.

In any case of conflicting definitions, the Director shall determine which shall be applied.

Abandoned, Abandonment. When, for a period of over one year, a non-conforming use is either vacated, the business license lapses, the lease is terminated, and/or utilities are terminated.

Abutting, Adjoining, or Adjacent. Having a common property or district line, or separated only by an alley, path, private street, or easement.

Access. The place or way through which pedestrians and/or vehicles shall have safe, adequate, and usable ingress and egress to a property or use as required by this Code.

Accessory Building. See Building, Accessory.

Accessory Structure. See Structure, Accessory.

Accessory Use. See Use, Accessory.

Act of Nature. A natural occurrence such as an earthquake, flood, tidal wave, hurricane or tornado which causes substantial damage to buildings or property.

All Other General Merchandise Retailers. Establishments primarily engaged in retailing new and used general merchandise (except department stores, warehouse clubs, superstores, and supercenters). These establishments retail a general line of new and used merchandise, such as apparel, automotive parts, dry goods, groceries, hardware, housewares or home furnishings, and other lines in limited amounts, with none of the lines predominating. This industry also includes establishments primarily engaged in retailing a general line of new and used merchandise on an auction basis.

Alley. A public way permanently reserved for access to the rear or side of properties otherwise abutting on a street.

Alteration. Any change, addition, or modification that changes the exterior architectural appearance or materials of a structure or object. Alteration includes changes in exterior surfaces, changes in materials, additions, remodels, demolitions, and relocation of buildings or structures, but excludes ordinary maintenance and repairs.

Animal Keeping. The keeping of animals.

Arcade. A public passageway or colonnade open along at least one side, except for structural supports, usually covered by a canopy or permanent roofing.

Awning. An architectural projection that provides weather protection, identity, or decoration and is wholly supported by the building to which it is attached. An awning is typically constructed of non-rigid materials on a supporting framework which projects from and is supported by the exterior wall of a building.

Balcony. A platform that projects from the wall of a building 30 inches or more above grade that is accessible from the building's interior, is not accessible from the ground and is not enclosed by walls on more than two sides. See also Deck.

Base District. See Zoning District.

Bathroom. A room containing a sink, a toilet, and a shower and/or bathtub.

Bay Window. An angular or curved window that projects from the building surface.

Bedroom. Any habitable space in a dwelling unit or accessory structure other than a kitchen or living room that is intended for or capable of being used for sleeping and is at least 70 square feet in area.

Block. Property bounded on all sides by a public right-of-way.

Blockface. All property between two intersections that fronts upon a street or abuts a public right-of-way.

Building. Any structure having a roof supported by columns or walls and intended for the shelter, housing, or enclosure of any individual, animal, process, equipment, goods, or materials.

Building, Accessory. A detached building located on the same parcel as the principal building, which is incidental and subordinate to the principal building in terms of both size and use. A building will be considered part of the principal building if located less than six feet from the principal building or if connected to it by fully enclosed space.

Building, Principal. A building in which the principal use of the parcel on which it is located is conducted.

Building Code. Any ordinance of the City governing the type and method of construction of buildings, signs, and sign structures and any amendments thereto and any substitute therefore including, but not limited to, the California Building Code, other State-adopted uniform codes and the Minimum Building Security Standards Ordinance.

Building Face. The general outer surface of the structure or walls of a building. Where bay windows or pillars project beyond the walls, the outer surface of the windows or pillars shall be considered to be the face of the building.

Building Envelope. The aggregate of building mass and building bulk permitted on a parcel which is defined by height regulations, setbacks, and other property development standards.

Building Footprint. See Footprint.

Building Height. See Height.

Building Site. A parcel or parcel of land occupied, or to be occupied, by a main building and accessory buildings together with such open spaces as are required by the terms of this title and having its principal frontage on a street, road, highway, or waterway.

Buffer, Buffering. An area on a parcel which is designed to separate structures and uses from the general public and/or adjacent properties to reduce negative impacts. It may include landscaping, fences, and walls.

California Department of Alcoholic Beverage Control (ABC). The California State agency that regulates the permitting of alcoholic beverage sales, including the sale of beer, wine, and distilled spirits.

California Environmental Quality Act (CEQA). Public Resources Code Section 21000 et seq. or any successor statute and associated guidelines (California Code of Regulations Section 15000 et seq.) that require public agencies to document and consider the environmental effects of a proposed action before a decision.

Canopy. A roofed shelter projecting over a sidewalk, driveway, entry, window, or similar area that may be wholly supported by a building or may be wholly or partially supported by columns, poles, or braces extending from the ground.

Carport. A permanently roofed structure providing space for parking or temporary storage of vehicles enclosed on not more than two sides.

Change of Use. A discontinuance of an existing use and the substitution therefore of a use such that the new use represents a different use group or is otherwise differently regulated by the zoning code compared to the prior use. A change of ownership alone does not constitute a change of use.

Change of Occupancy. A discontinuance of an existing building use and substitution of a new use that changes the Building Code occupancy group classification and requires a building permit and new Certificate of Occupancy as determined by the Building Official.

Cigarette. Shall have the same meaning as Section 30003 of the Revenue & Taxation Code, including any amendments or successor statutes thereto.

City. The City of Fresno.

City Council. The City Council of the City of Fresno.

Clear. Measured depth of frontage elements such as porches, arcades, galleries are free of encroachments other than allowed signs, light fixtures, sidewalk dining and allowed furnishings, and outdoor display of merchandise.

Conditionally Permitted. Permitted subject to approval of a Conditional Use Permit.

Construction. Construction, erection, enlargement, alteration, conversion, or movement of any building, structures, or land together with any scientific surveys associated therewith.

Convenience Retailers. Establishments primarily engaged in retailing a limited line of groceries that generally includes milk, bread, soda, and snacks, such as convenience stores (except those operating fuel pumps).

County. The County of Fresno.

Courtyard. An unroofed area that is completely or mostly enclosed by walls of a building.

Craft beer. A beer or malt beverage manufactured by a brewer with an annual production of six million barrels of beer or less, where less than 25 percent of the craft brewery is owned or controlled by an alcohol industry member, and where a majority of total beverage alcohol volume is beer that derives flavor from traditional or innovative brewing ingredients and their fermentation.

Curb Cut. A break in a curb allowing vehicle access from the roadway to a legal parking area within the parcel.

Deck. A platform, either freestanding or attached to a building that is used for outdoor space. It typically extends from the façade of a building and is supported by pillars or posts but may be located on a flat portion of a building, such as a roof or setback. It is distinct from a Patio. See also Balcony.

Demolition. The destruction, dismantling, or removal of a building or structure, or substantial portion of a building or structure so that it constitutes demolition pursuant to the provisions of this Code.

Density. See 15-310, Determining Residential Density.

Department Stores. Establishments generally known as department stores that have separate departments for general lines of new merchandise, such as apparel, jewelry, home furnishings, and toys, with no one merchandise line predominating. Department stores may sell perishable groceries, such as fresh fruits, vegetables, and dairy products, but such sales are insignificant. Department stores with fixed point-of-sale locations may have separate customer checkout areas in each department, central customer checkout areas, or both.

Development. Any manmade change to improved or unimproved real estate, including, but not limited to, the division of a parcel of land into two or more parcels; the construction, reconstruction, conversion, structural alteration, relocation, expansion, or enlargement of any structure; any mining, excavation, landfill, or land disturbance; and any use or extension of the use of land.

Development Agreement. An agreement between the City and any person having a legal or equitable interest in real property for the development of such property and which complies with the applicable provisions of the Government Code and local law for such development agreements.

Director. The Director of the Development and Resource Management Department of the City of Fresno or their designee.

Discretionary Permit. A Minor Deviation, Development Permit, Major Permit Modification, Variance, Temporary Use Permit, Planned Development Permit, or Conditional Use Permit, or any other appealable permit that requires findings to be made.

District. See Zoning District.

Drive-In and Drive-Through Facilities. A facility designed to provide service to clients in a manner that does not require them to leave their vehicle.

Driveway. An accessway that provides vehicular access between a street and the parking or loading facilities located on an adjacent property.

Dwelling. A structure or portion thereof that is used principally for residential occupancy.

Dwelling Unit. One or more rooms designed, occupied, or intended for occupancy as separate living quarters, with full cooking, sleeping, and bathroom facilities for the exclusive use of a single household.

Easement. A portion of land created by grant or agreement for specific purpose; an easement is the right, privilege, or interest which one party has in the land of another.

Effective Date. The date on which a permit or other approval becomes enforceable or otherwise takes effect, rather than the date it was signed or circulated.

Electronic Cigarette (or E-Cigarette). Shall have the same meaning as Sections 31001(c) and 30121(c) of the Revenue and Taxation Code, including any amendments or successor statutes thereto.

Emergency. A sudden unexpected occurrence demanding immediate action to prevent or mitigate loss or damage to life, health, property, or essential public services.

Enclosed. Completely surrounded by walls.

Entitlement. Formal permission from the Planning Division to use or develop land, including Zone Clearances, Development Permits, and Conditional Use Permits, but not including legislative actions such as Rezones and Plan Amendments. An individual entitlement may be sufficient for a project to proceed, or may need to be used in conjunction with another entitlement.

Entrance. An opening, such as a door, passage, or gate, that allows access to a place.

Environmental Review. An evaluation process pursuant to CEQA to determine whether a proposed project may have a significant impact on the environment.

Environmental Impact Report (EIR). An Environmental Impact Report as required under the California Environmental Quality Act.

Erect. To build, construct, attach, hang, place, suspend, or affix to or upon any surface.

Excavation. The removal of soils or other materials below grade.

Existing Smoke Shop. Any smoke shop lawfully established, with one business license per Smoke Shop location, pursuant to the Municipal Code prior to the effective date of Section 15-2761.

Expressway. A roadway for through traffic with full control of access and generally with signalized intersections.

Façade. The face of the exterior wall of a building exposed to public view or that wall viewed by persons not within the building. The portion of any exterior elevation of a building extending vertically from the grade to the top of a parapet wall or eave, and horizontally across the entire width of the building elevation.

Façade, Street-Facing. Any building façade whose exterior wall faces or is within 45 degrees of parallel to an adjacent street, right-of-way, or public park, plaza, or open space.

Feasible. Capable of being accomplished in a successful manner within a reasonable period of time, taking into account economic, environmental, social, and technological factors.

Fee. A payment to the City for the processing of a permit, license, or appeal application by a City agency or department.

Fence. An artificially-constructed barrier of any material or combination of materials erected to enclose or screen an area of land. Fences may also be walls, hedges, and screen planting.

Fire Code. An ordinance of the City adopting and amending the California Fire Code governing fire and life safety protection for new and existing buildings and facilities.

Flood or Flooding. Any general inundation of normally dry land from the overflow of tidal waters or from the unusual and rapid accumulation of runoff of surface waters from any source.

Floor Area. The total gross horizontal area of all the floors below the roof and within the outer surface of the walls of a building or structure, including basements, mezzanines, interior balconies, and upper stories or levels in a multi-story building unless otherwise stipulated. See Section 15-304, Measuring Distances, for rules for calculating floor area.

Floor Area Ratio. The ratio of the total floor area of all buildings on a parcel to the total area of the parcel. See Section 15-309, Determining Floor Area Ratio for rules on calculating floor area ratio.

Footprint. The horizontal area, as seen in plain view, of a building or structure, measured from the outside of exterior walls and supporting columns, and excluding eaves.

Freeway. A highway for through traffic with full control of access and grade-separated interchanges.

Full-Service Grocery Store. Establishments generally known as supermarkets and other grocery retailers (except convenience retailers) primarily engaged in retailing a general line of food, such as canned and frozen foods: fresh fruits and vegetables; and fresh and prepared meats, fish, and poultry. Included in this industry are delicatessen-type establishments primarily engaged in retailing a specialized category of food products such as foods from a specific country, ethnicity, or locality not often found in general markets. This definition excludes limited-service restaurants, convenience retailers, gasoline stations with convenience stores, department stores, pharmacies and drug retailers, warehouse clubs and supercenters, and all other general merchandise retailers.

Garage. A building or portion thereof, containing accessible and usable enclosed space designed, constructed and maintained for the parking or storage of one or more motor vehicles.

Garage Sales. The sale or offering for sale to the general public of over five items of personal property on a portion of a parcel in a residentially zoned district, whether inside or outside any building.

Gasoline Stations with Convenience Stores. Establishments primarily engaged in retailing automotive fuels (e.g., gasoline, diesel fuel, gasohol, alternative fuels) in combination with a limited line of groceries. These establishments can either be in a convenience store setting or a gasoline station setting. These establishments may also provide automotive repair services.

General Plan. The City of Fresno General Plan.

Glare. The effect produced by a light source within the visual field that is sufficiently brighter than the level to which the eyes are adapted, such as to cause annoyance, discomfort, or loss of visual performance and ability, and which may also cause damage to property.

Government Code. The Government Code of the State of California.

Grade. The location of the ground surface.

Average Grade. A horizontal line approximating the ground elevation through each building on a site used for calculating the exterior volume of a building. Average grade is calculated separately for each building.

Existing Grade. The elevation of the ground at any point on a parcel as shown on the required survey submitted in conjunction with an application for a building permit or grading permit. Existing grade also may be referred to as natural grade.

Ground Floor. The lowest floor of a building other than a basement that is closest to finished grade.

Ground-Floor Street Frontage. The first level of a building, other than a basement, that borders a public street.

Habitable Space. As defined in Section 202 of the California Building Code.

Habitation. Regular and exclusive use of a space or structure for shelter and other residential purposes in a manner that is private and separate from another residence on the same parcel.

Hazardous Materials. Any material, including any substance, waste, or combination thereof, which because of its quantity, concentration, or physical, chemical, or infectious characteristics may cause, or significantly contribute to, a substantial present or potential hazard to human health, safety, property, or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Height. The vertical distance from a point on the ground below a structure to a point directly above. See also Section 15-305, Measuring Height.

Historic Preservation Commission. The Historic Preservation Commission of the City of Fresno.

Home Occupation. A commercial use conducted on residential property by the inhabitants of the subject residence, which is incidental and secondary to the residential use of the dwelling.

Household. One or more persons living together in a single dwelling unit, with common access to, and common use of, all living and eating areas and all areas and facilities for the preparation and storage of food; who share living expenses, including rent or mortgage payments, food costs and utilities; and who maintain a single mortgage, lease, or rental agreement for all members of the household.

Illegal Non-Conforming Use, Structure, or Site Feature. A use, structure, site feature, or lot shall be designated as having Illegal Non-Conforming status if it was not lawfully established under the regulations of the jurisdiction in which it was located at the time of its establishment or has not continuously remained in compliance with all terms and conditions imposed upon the use, structure, or site feature upon its establishment or imposed upon it any time thereafter.

Intensity of Use. The extent to which a particular use or the use in combination with other uses affects the natural and built environment in which it is located, the demand for services, and persons who live, work, and visit the area. Measures of intensity include, but are not limited to, requirements for water, gas, electricity, or public services; number of

automobile trips generated by a use; parking demand; number of employees on a site; hours of operation; the amount of noise, light, or glare generated; the number of persons attracted to the site, or, in eating establishments, the number of seats.

Intersection, Street. The area common to two or more intersecting streets.

Kitchen. A room or space within a building with appliances used for cooking or preparing food.

Land Division-Related Definitions. The following terms are related to Part IV: Land Divisions.

Arterial. A street designated by the circulation element of the General Plan to serve high-volume inter- and intra-city traffic, and to act as a distributor between freeways, other arterials, and major traffic generators.

Block. An area of land within a subdivision entirely bounded by any streets (other than alleys), freeways, railroad rights-of-way, natural barriers, or the exterior boundaries of the subdivision.

Collector Street. A street designated by the circulation element of the General Plan to collect and distribute traffic between local streets and arterials.

Community Apartment. An undivided interest in common in the land coupled with the right of exclusive occupancy of an apartment unit which is part of a community apartment project.

Community Apartment Project. As defined by Section 11004 of the California Business and Professions Code.

Condominium. As defined by Section 783 of the California Civil Code.

Condominium Project. A development consisting of condominiums.

Conversion. The creation of separate ownership of existing real property together with a separate interest in space of a building.

Comparable Replacement Housing. Available rental housing located within a reasonable proximity to the proposed condominium conversion project, and to public and commercial facilities, with units which are decent, safe, and sanitary, and which are generally similar in size and price to those of the proposed project.

Cul-de-sac. A street which terminates in a permanent turn-around and which by design is not intended to continue beyond its terminal point.

Dead-End Street. A street which is terminated at the boundary line of the subdivision but which will be required to be extended at a later date to provide access to abutting land.

Expressway. A roadway for through traffic with full control of access and generally with signalized intersections.

Final Map. A map showing a subdivision of five or more lots, prepared for filing with the Fresno County Recorder in accordance with the provisions of the Subdivision Map Act and Part IV: Land Divisions, if deemed in substantial compliance with a previously approved tentative subdivision map and with any conditions to such approval.

Frontage. That portion of a parcel of property which abuts on a public street.

Frontage Road. A street adjacent and auxiliary to a Major Street, and separated by a divider strip, which street provides access to abutting property.

Handicapped. As defined by Section 50072 of the California Health and Safety Code.

Improvements. Any street work and utilities to be installed, or agreed to be installed, by the subdivider on the land to be used for public or private streets, highways, ways, and easements, as are necessary for the general use of the lot owners in the subdivision and local neighborhood traffic and drainage needs as a condition precedent to the approval and acceptance of the Final Map thereof. Improvements also refers to any other specific improvements or types of improvements, the installation of which, either by the subdivider, by public agencies, by private utilities, by any other entity approval by the local agency, or by a combination thereof, is necessary to ensure consistency with, or implementation of, the General Plan or any applicable specific plan.

Improvement Plans. The plans, profiles, cross-sections, and specifications of all proposed improvements.

Local Collector Street. A local street also serving as a collector street for several local streets.

Local Street. Any public street that is used or is intended to be used for the principal purpose of serving as access to abutting property.

Lot Line Adjustment. A shift or rotation of an existing lot line or other adjustment where a greater or lesser number of parcels than originally existed is not created.

Map Act. The Subdivision Map Act of the State of California Government Code.

Merger. The joining of two or more contiguous parcels of land under one ownership into one parcel.

Outlot. A lot designated alphabetically on the subdivision map for specific use or nonuse.

Parcel. A single unit of land separated from other units of land by legal description, the boundaries of which are shown on a parcel map or final map, described in a deed, or for which a certificate of compliance has been issued pursuant to the Subdivision Map Act. Parcel shall also include two or more parcels where the owner(s) have recorded a covenant with the Office of the County Recorder that states the intention of the owner(s) to combine and use the parcels as a single unit of land in compliance with City regulations. Also referred to as "lot."

Parcel Map. A map prepared in accordance with the provisions of this Subdivision Ordinance, designed to be placed on record in the office of the Fresno County Recorder, and providing for the division of land which meets the exceptions set forth in Section 66426 of the Map Act.

Private Street. Any street, roadway, accessway or similar, lying in whole or in part within a subdivision which is privately owned and maintained and provides access to a development.

Public Improvement. Street work, utilities, and other facilities proposed or required to be installed within the subdivision for the general use of all the subdivision lot owners and for local neighborhood or community needs.

Remainder. That portion of an existing parcel which is not designated on the required map as part of the subdivision. The remainder shall not be considered as part of the subdivision but shall be shown on the required map as part of the area surrounding the subdivision.

Restricted Access Strip. A strip of land not less than one foot in width for the purpose of regulating access to part-width and dead-end streets until such time as such roads may be completed or extended.

Standard Specifications. The Standard Specifications of the Department of Public Works of the City as may be amended from time to time.

Stock Cooperative. The same as defined by Section 11003.2 of the California Business and Professions Code.

Subdivider. A person, firm, corporation, partnership, or association who proposes to divide, divides, or causes to be divided real property into a subdivision for their self or for others.

Subdivision. The division, by any subdivider, of any unit or units of improved or unimproved land, or any portion thereof, shown on the latest equalized County assessment roll as a unit or as contiguous units, for the purpose of sale, lease, or financing, whether immediate or future. Property shall be considered contiguous units, even if it is separated by roads, streets, utility easement, or railroad rights-of-way. This definition shall specifically include Condominiums, Community Apartment Projects, or Stock Cooperative conversions.

Temporary Turn-Around. A paved area for turning vehicles at the end of a dead-end street, which is constructed either within the dedicated right-of-way or upon a temporary easement, to be obliterated when such street is extended.

Tentative Map. A map made for the purpose of showing the design and improvements of a proposed subdivision and the existing conditions in and around it.

Tentative Parcel Map. A map made for the purpose of showing the design and improvements of a proposed subdivision creating four or fewer parcels or more than four parcels as provided for in the State Subdivision Map Act and Part IV: Land Divisions, and the existing conditions in and around it.

Tract. A subdivision of real property into lots and rights-of-way.

Vesting Tentative Map. A Tentative Map for a subdivision that shall have printed conspicuously on its face the words "Vesting Tentative Map" at the time it is filed in accordance with Part IV: Land Divisions.

Landscape-Related Definitions. The following terms are related to Article 23, Landscape.

Automatic Irrigation System. An irrigation system that utilizes an automatic timing device (automatic controller) to remotely control valves for operation of water supply to landscapes.

California Building Code. A California Code (California Code of Regulations, Title 24, Part 2, California Building Code) adopted by the City of Fresno and incorporated into the Municipal Code Chapter 11.

California Green Building Standards Code. A California Code (California Code of Regulations, Title 24, Part 11, California Green Building Standards Code) adopted by the City of Fresno and incorporated into the Municipal Code Chapter 11.

California Model Water Efficient Landscape Ordinance. A California legislation that took effect in the City of Fresno on January 1, 2010. See California Code of Regulations, Title 23. Waters, Division 2. Department of Water Resources, Chapter 2.7 Model Water Efficient Landscape Ordinance.

California Plumbing Code. A California Code (California Code of Regulations, Title 24, Part 5, California Plumbing Code) adopted by the City of Fresno and incorporated into the Municipal Code Chapter 11.

Drought-Tolerant Plant. A plant that is adapted to arid or drought conditions. The use of drought-tolerant plants is essential to a successful xeriscape, which ideally requires no supplemental irrigation.

Hedge. Any group of shrubs planted in line or in groups so that the branches of any one plant are intermingled or form contact with the branches of any other plant in the line.

Heritage Tree. An indigenous tree whose size, as measured at 48 inches above natural grade, is defined below:

— Quercus lobata (Valley oak) is more than 30 inches in circumference.

— Fraxinus latifolia (Oregon ash) is more than 25 inches in circumference.

— Cephalanthus occidentalis (Buttonbush or Button-willow) is more than 36 inches in circumference.

— Community of trees;

— Founders tree;

— Tree so designated by the City Council, based upon findings that the particular tree is unique and of importance to the public due to its unusual age, appearance, location, or other factors.

Hydrozone. A portion of the landscaped area having plants with similar water needs.

Landscape Mound. Any location on a lot or parcel of land where dirt, soil, top soil, or pile of earth is placed, or otherwise elevated, above the grade of surrounding land for any decorative or functional landscape architectural purpose.

Landscaping. The planting, configuration, and maintenance of trees, ground cover, shrubbery, and other plant material, decorative natural and structural features (walls, fences, hedges, trellises, fountains, sculptures), earth patterning and bedding materials, and other similar site improvements that serve an aesthetic or functional purpose.

"Private landscaping" means any landscaping located within the boundaries of privately owned property, and includes any landscaping located within any unimproved right-of-way abutting a private property and in any park strip other than the City-maintained park strip.

"Public landscaping" means any landscaping located within any street median, City park or other parcel of publicly owned property, including any landscaping located in a City-maintained park strip.

Mulch. Any organic material such as leaves, bark, straw, compost, or inorganic mineral materials such as rocks, gravel, and decomposed granite left loose and applied to the soil surface for the beneficial purposes of reducing evaporation, suppressing weeds, moderating soil temperature, and preventing soil erosion.

Park Strip. The area of the public street located between the face of the curb and closest edge of the sidewalk.

Passive Solar-Oriented Tree. A deciduous tree which drops its leaves in fall and regains them in the spring, located in the south, southwest, or west yard and planted within 15 feet of a building.

Plant. Any turf, ground cover, shrub, vine, and tree suitable for planting.

Private Tree. Any tree located within the boundaries of privately owned property.

Pruning. The removal of more than one-third of the crown or existing foliage of the tree or more than one-third of the root system.

Remove. Cutting to the ground; extraction; killing by spraying, girdling, or any other means; or pruning done without a permit or which does not conform to the provisions of a permit.

Retention Basin. An impoundment created by a dam or an excavation for the purpose of storing and settling sediment and other pollutants from surface water. A retention

basin is designed to hold a specific amount of water until the water can evaporate or infiltrate. Usually the basin is designed to have overflows drain to a receiving conveyance system when the water level exceeds the basin capacity.

Shrub. A bush, hedge, or any woody plant of relatively low height, having several stems arising from the base and lacking a single trunk.

Trim. The cutting or removal of a portion of a tree which removes less than one-third of the crown or existing foliage of a tree, removes less than one-third of the root system, and does not kill the tree.

Turf. The upper stratum of soil bound by grass and plant roots into a thick mat or an artificial substitute thereof.

Water-Wise, Climate-Appropriate Plant. A plant that can survive periods of limited water availability and other environmental factors in the region that it is being planted.

Wind Buffer-Oriented Tree. An evergreen tree which keeps its leaves all year round and is located in a northwest or west yard to protect a building from Fresno's prevailing winds blowing from the northwest direction.

Legal Non-Conforming Use, Structure, or Site Feature. A use, structure, or site feature shall be designated as having Legal Non-Conforming status if it was lawfully established under the regulations of the jurisdiction in which it was located at the time of its establishment and has continuously remained in compliance with all terms and conditions imposed upon the use, structure, or site feature upon its establishment or imposed upon it any time thereafter, based on evidence provided by the property owner, tenant, or applicant. Legal Non-Conforming status shall also be assigned if non-conformities were created by a public improvement, such as a street widening project.

Light Fixture. The assembly that holds a lamp and may include an assembly housing, a mounting bracket or pole socket, a lamp holder, a ballast, a reflector or mirrors, and a refractor or lens.

Limited-Service Restaurants. Establishments primarily engaged in providing food services (except snack and nonalcoholic beverage bars) where patrons generally order or select items and pay before eating. Food and drink may be consumed on premises, taken out, or delivered to the customer's location.

Loading Space. An off-street space or berth on the same parcel with a building for the temporary parking of a vehicle while loading or unloading of goods.

Loft. See Mezzanine.

Lot. A parcel, tract, or area of land whose boundaries have been established by a legal instrument such as a deed or map recorded with the County of Fresno, and which is recognized as a separate legal entity for purposed of transfer or title, except public easements or rights-of-way.

Corner Lot. A parcel of land abutting two or more streets at their intersection, or upon two parts of the same street forming an interior angle of less than 135 degrees.

Flag Lot. A parcel not fronting on or abutting a public road and where access is from a public road by a narrow right-of-way or driveway.

Key Lot. The first interior parcel to the rear of a reversed corner parcel and not separated therefrom by an alley.

Reverse Corner Lot. A corner parcel, the side street line of which is substantially a continuation of the front parcel line of the first parcel to its rear.

Through Lot. A parcel which fronts on two parallel streets or which fronts upon two streets which do not intersect at the boundaries of the parcel.

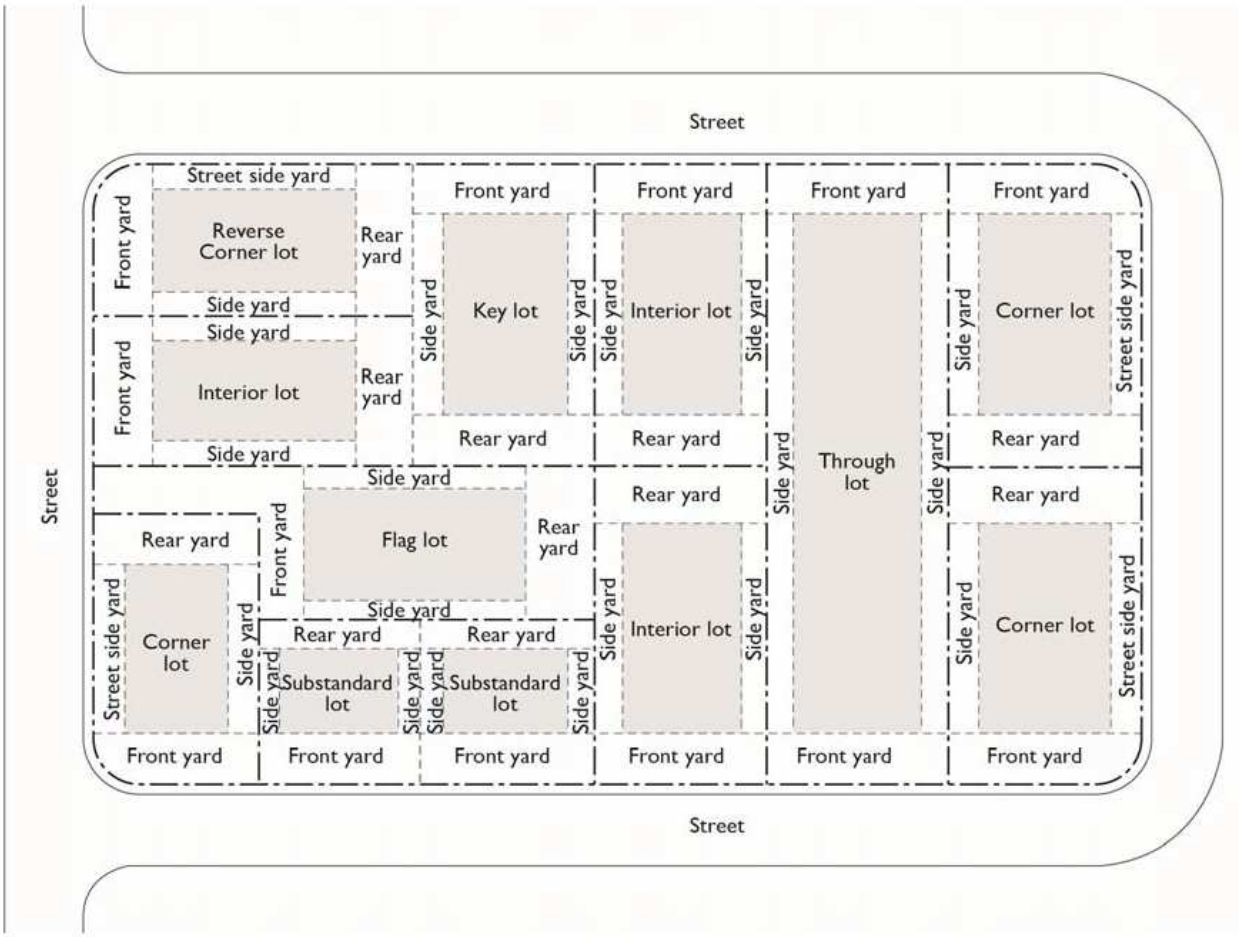

FIGURE 15-6802-1: LOT AND YARD TYPES

Lot Area. The total area within the property lines of a parcel, excluding any street or alley right-of-way.

Lot Depth. The average distance from the front lot line to the rear lot line measured in the general direction of the side lines. See also Section 15-306, Measuring Lot Width and Depth.

Lot Frontage. The width of the front parcel line measured at the street right-of-way.

Lot Line. A line of record bounding a parcel that divides one parcel from another parcel or from a public or private street or any other public space.

Front Lot Line. The parcel line separating a parcel from a street right-of-way. In the case of a corner parcel, the line separating the narrowest street frontage of the parcel from the street shall be considered the front.

Rear Lot Line. The parcel line opposite and most distant from the front parcel line; or in the case of triangular or otherwise irregularly shaped parcel, a line ten feet in length entirely within the parcel, parallel to, and at a maximum distance from the front parcel line.

Side Lot Line. Any parcel line other than a front or rear parcel line.

Street Side Lot Line. A side lot line of a comer lot that is adjacent to a street.

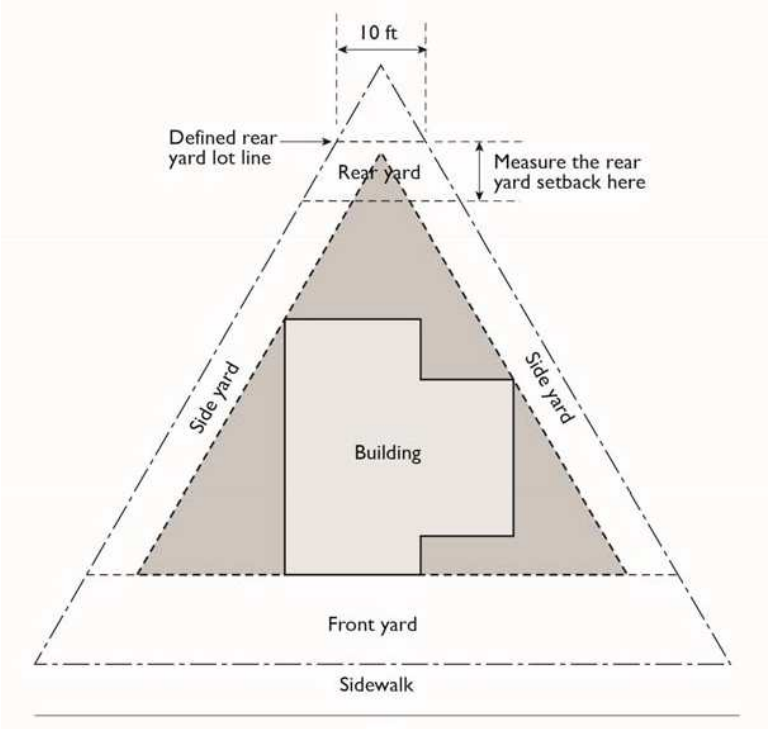

FIGURE 15-6802-2: REAR LOT LINE FOR PURPOSES OF DETERMINING SETBACKS

Lot Width. The horizontal distance between the side lines of a parcel measured at right angles to its depth along a straight line parallel to the front parcel line at the street or public right-of-way that is identified as the parcel's address.

Main Structure. See Structure, Main.

Maintenance and Repair. The repair or replacement of nonbearing walls, fixtures, wiring, roof, or plumbing that restores the character, scope, size, or design of a structure to its previously existing, authorized, and undamaged condition.

Mezzanine. An intermediate floor within a building interior without walls, partitions, closets, screens, or other complete enclosing interior walls or partitions that is open to the floor below and has a floor area that is no greater than one-third of the total floor area of the floor below. When the total floor area of a mezzanine exceeds one-third of the total floor area of the floor below it constitutes an additional story. In some instances, mezzanine may be defined differently by the Building Code.

Mixed-Use Development. The development of a parcel or building with two or more different land uses such as, but not limited to, a combination of residential, office, manufacturing, retail, public, or entertainment in a single or physically integrated group of structures.

Mobile Vendor. Any person that sells, or causes or allows another, whether as an employee or as an independent contractor leasing or renting equipment, to sell any food, drinks, or merchandise by means of a motorized or non-motorized vehicle, such as a wagon, pushcart, handcart, bicycle, motorized cart, or food truck.

Muntin. A bar or rigid supporting strip between adjacent panes of glass.

Noise-Related Definitions.

Community Noise Equivalent Level (CNEL). The average equivalent A-weighted sound level during a 24-hour day, obtained after addition of five decibels to sound levels in the evening from 7 p.m. to 10 p.m. and after addition of 10 decibels to sound levels in the night from 10 p.m. to 7 a.m.

Day-Night Average Sound Level (Ldn). The A-weighted average sound level for a given area (measured in decibels) during a 24-hour period with a 10 dB weighting applied to night-time sound levels (after 10 p.m. and before 7 a.m.). The Ldn is approximately numerically equal to the CNEL for most environmental settings.

Decibel (dB). A unit of measurement used to express the relative intensity of sound as heard by the human ear describing the amplitude of sound, equal to 20 times the logarithm to the base 10 of the ratio of the pressure of the sound measured to the reference pressure, which is 20 micropascals (20 micronewtons per square meter).

Decibel, A-weighted (dBA). The "A-weighted" scale for measuring sound in decibels; weights or reduces the effects of low and high frequencies in order to stimulate human hearing. Every increase of 10 dBA doubles the perceived loudness though the noise is actually ten times more intense.

Equivalent Sound Level (Leq). A single-number representation of the fluctuating sound level in decibels over a specified period of time. It is a sound-energy average of the fluctuating level.

Maximum Noise Level (Lmax). The highest value measured by the sound level meter over a given period of time, based on the time-weighted sound level in dB, using either the Fast or Slow time constant.

Non-Conforming Building. See Non-Conforming Structure.

Non-Conforming Lot. A legally-created lot of land having less area, frontage, or dimensions than the existing Code requires in the Zoning District in which it is located.

Non-Conforming Use, Structure, or Site Feature. See Legal Non-Conforming Use, Structure, or Site Feature.

Occupancy Group. The Building Code use category for determining requirements for building construction elements and life safety system requirements.

Office-To-Dwelling. The conversion of existing office building(s) from an office use to a multi-unit residential use which will provide housing to residents and facilitate compliance of said structures into safe and habitable condition as required by State and local law.

On-Site. Located on the lot that is the subject of discussion.

Open Space Types.

Open Space, Common. Any outdoor area, not dedicated for public use, which is designed and intended for the common use and enjoyment of the residents and guests of more than one dwelling unit.

Open Space, Private. Open areas for outdoor living and recreation that are adjacent and directly accessible to a single dwelling unit, reserved for the exclusive use of residents of the dwelling unit and their guests.

Open Space, Usable. Outdoor areas that provide for outdoor living and/or recreation for the use of residents.

Outdoor Sales, Temporary and Seasonal. The sale or offering for sale to the general public of merchandise outside of a permanent structure on property owned or leased by the person, firm, or corporation. These sales are of a limited duration and conducted on an occasional basis, and are secondary or incidental to the principal permitted use or structure existing on the property.

Outdoor Storage. The keeping, in an unroofed area, of any goods, junk, material, merchandise or vehicles in the same place for more than 72 hours except for the keeping of building materials reasonably required for construction work on the premises pursuant to a valid and current Building Permit issued by the City.

Overlay District. A zoning designation specifically delineated on the Zoning Map establishing land use requirements that govern in addition to the standards set forth in the underlying zoning district.

Parapet. A low wall or railing extending above the roof and along its perimeter.

Parcel. See Land Division-Related Definitions.

Parking Facility. An area of a parcel, structure, or any other area, including driveways, which is designed for and the primary purpose of which is to provide for the temporary storage of operable motor vehicles.

Accessory Parking. An area of a parcel, structure, or any other area, which is designed, reserved for, and the primary purpose of which is to provide off-street parking to serve a building or use that is the primary or main use of the parcel.

Long-Term Parking. An area designed for employee parking, when a vehicle is not normally moved during the period of an employee's work shift, as opposed to customer or visitor parking.

Parking, Bicycle. A covered or uncovered area equipped with a rack or other device designed and useable for the secure, temporary storage of bicycles.

Long-Term. Bicycle parking that is designed to serve employees, students, residents, commuters, and others who generally stay at a site for two hours or longer.

Short-Term. Bicycle parking that is designed to serve shoppers, customers, messengers, guests, and other visitors to a site who generally stay for a period of less than two hours.

Parking Space, Off-Street. An area, covered or uncovered, designed and usable for the temporary storage of a vehicle, which is paved and accessible by an automobile without permanent obstruction.

Parking Structure. A structure used for parking and storage of vehicles.

Patio. An outdoor area, often paved, adjoining a building that is used for outdoor open space. It is not enclosed by walls and typically is located at grade or supported by minimal footings.

Paving. A type of material used over areas of a parcel such as driveways, parking spaces and areas, pathways, patios, and front setbacks used for access by vehicles and pedestrians.

Permit. Any Conditional Use Permit, Temporary Use Permit, Building Permit, license, certificate, approval, or other entitlement for development and/or use of property as required by any public agency.

Permitted Use. Any use or structure that is allowed in a Zoning District without a requirement for approval of a Use Permit, but subject to any restrictions applicable to that Zoning District.

Person. Any individual, firm, association, organization, partnership, business trust, company, or corporation.

Person with Disabilities. Under the Americans With Disabilities Act, an individual with a disability is a person who: (1) has a physical or mental impairment that substantially limits one or more major life activities; or (2) has a record of such an impairment; or (3) is regarded as having such an impairment.

Pharmacies and Drug Retailers. Establishments generally known as pharmacies and drug retailers engaged in retailing prescription or nonprescription drugs and medicines.

Planning Commission. The Planning Commission of the City of Fresno.

Plaza. An outdoor space set aside for gathering or congregating and commercial activities, typically surrounded by building frontages.

Pocket Park. A park of one-half to two acres in size that intended to serve the needs of a smaller, specific neighborhood located within a half-mile radius of the pocket park.

Podium. A continuous raised platform supporting a building or a large block of two or three stories beneath a multi-story block of smaller area.

Porte Cochere. A roofed structure through which a vehicle can pass, extending from the entrance of a building over an adjacent driveway, the purpose of which is to shelter persons entering and exiting a building.

Pre-Existing. In existence prior to the effective date of this Code.

Primary Use. See Use, Primary.

Project. Any proposal for a new or changed use or for new construction, alteration, or enlargement of any structure, that is subject to the provisions of this ordinance. This term includes, but is not limited to, any action that qualifies as a "project" as defined by the California Environmental Quality Act.

Public Land. Any government-owned land, including, but not limited to, public parks, beaches, playgrounds, trails, paths, schools, public buildings, and other recreational areas or public open spaces.

Public Resources Code. The Public Resources Code of the State of California.

Qualified Applicant. The property owner, the owner's agent, or any person or other legal entity that has a legal or equitable title to land that is the subject of a development proposal or is the holder of an option or contract to purchase such land or otherwise has an enforceable proprietary interest in such land.

Ramp. An access driveway leading from one parking level to another, or an access driveway from an entrance leading to parking at a different level.

Recreational Vehicle (RV). A mobile, temporary lodging space, usually housed in a motor vehicle or trailer, generally for the purposes of travelling.

Residential Use. One or more rooms designed, occupied, or intended for occupancy as primary living quarters in a building or portion thereof.

Review Authority. Body responsible for making decisions on zoning and related applications.

Right-of-Way. A strip of land acquired by reservation, dedication, forced dedication, prescription, or condemnation and intended to be occupied or occupied by a road, railroad, electric transmission lines, oil or gas pipeline, water line, sanitary storm sewer, or other similar use.

Roof. That portion of a building or structure above walls or columns that shelters the floor area or the structure below.

Screening. Buffering of a building or activity from neighboring areas or from the street with a wall, fence, hedge, informal planting, or berm.

Security Grate or Grilles. A metal grate that rolls up over, or slides across, a window or door to provide protection against unwanted entry. It also can be a fixed metal fixture over window openings.

Service Areas. Portions of a building which are utilitarian in nature and are not typically frequented by the general public or occupants of the building, such as utility equipment rooms, freight loading areas, trash/recycling rooms, and emergency exit stairways/hallways.

Setback. The distance between the parcel line and a building, not including permitted projections, that must be kept clear or open. See also Section 15-304, Measuring Distances, and Section 15-313, Determining Setbacks (Yards).

Shielded Light Fixture. Outdoor light fixtures shielded or constructed so that light rays emitted by the lamp are projected below the horizontal plane passing through the lowest point on the fixture from which light is emitted.

Sidewalk. A paved, surfaced, or leveled area, paralleling and usually separated from the street, used as a pedestrian walkway.

Sidewalk Café. Any outdoor dining area located in or adjacent to any public sidewalk or right-of-way which is associated with a restaurant or other eating and drinking establishment on a contiguous adjacent parcel.

Sign-Related Definitions. The following terms are related to Article 26, Signs.

Animated Sign. A sign with messages that visually change, or images that move or appear to move, more frequently than once every 24 hours, regardless of the method by which the visual change is affected. This definition does not include traditional barber poles, hand-held signs, personally attended signs, commercial mascots, scoreboards, or signs which merely display time or temperature. Animated signs include electronic message signs, sometimes called electronic reader boards. A sign that displays a series of still images which change more frequently than once per 24 hours, whether by digital, LED, or functionally equivalent method, is within this definition.

Awning. Any structure made of flexible fabric or similar material covering a metal frame attached to a building, whether or not the same is so erected as to permit its being raised to a position flat against the building when not in use.

Awning or Canopy Sign. Sign copy placed on an awning or any other projecting structure made of flexible fabric or similar material covering a metal frame supported by the ground or sidewalk.

Banner. Any sign of lightweight fabric or similar material that is mounted to a pole or a building at one or more edges. Flags are not within this definition.

Billboard. See Outdoor Advertising Display.

Changeable Copy Sign. A sign constructed or designed to allow for periodic changes of copy, and for which the copy is changed not more than once each 24 hour period. Examples include signs for an auditorium, theater, church, meeting hall, or similar uses characterized by public assembly and changing programs or events, or gas station prices. This definition does not include animated signs or electronic reader board signs.

Commercial Message. A message on a sign, or portion of a sign, that promotes, informs, or proposes an economic transaction, primarily concerns the economic interests of the sign sponsor and/or audience, or is intended to further discussion in the marketplace of goods and services.

Construction Sign. A temporary sign displayed on the site of a construction, remodeling, or major landscaping project during the period of time of actual construction activity.

Copy. Any letters, numerals, or symbols displayed on a sign face conveying a message to the public.

Directional Sign. Any sign, other than a highway marker or any sign erected and maintained by public authority, or a public utility which is designed, erected, and maintained for the purpose of directing persons to a place, structure, or activity.

Exempt Sign. A sign which may be legally displayed, erected or maintained, but is not subject to a sign permit requirement. See Section 15-2604, Exempt Signs.

Face. That portion of a sign upon which the copy is mounted or displayed.

Flag. Any fabric or banner containing distinctive colors, patterns, or design that displays the symbol(s) of a nation, state, local government, company, organization, belief system, idea, or other meaning.

Freestanding Sign. A permanent sign that is self-supporting in a fixed location and not attached to a building. Freestanding signs are of two types: monument and pole. Monument signs are connected or attached to a sign structure, fence, or wall that is not an integral part of a building. Pole signs are mounted on a pole(s) or other support(s) that are placed on and anchored in the ground or on a base and that is independent from any building or other structure. Flag poles are not within this definition.

Graffiti. Marks, such as inscriptions, drawings, or designs, which are placed, scratched, etched, painted, or sprayed on public or private property without the owner's consent.

Illuminated Sign. A sign with an artificial light source incorporated internally or externally for the purpose of illuminating the sign. This includes signs made from neon or other gas tube(s) that are bent to form letters, symbols, or other shapes. Ambient lighting, by itself, does not make a sign "illuminated."

Master Sign Program. A coordinated sign plan which includes details of all signs (not including exempt or temporary signs) which are or will be placed on a site, including master identification, individual business, and directory signs.

Mobile Billboard. Any vehicle, or wheeled conveyance which carries, conveys, pulls, displays, or transports any sign or billboard for the primary purpose of advertising a commercial or noncommercial message, or other general advertising for hire.

Monument Sign. See Freestanding Sign.

Name Plate. A sign that identifies an occupant and/or address.

Non-Conforming Sign. A sign lawfully erected and legally existing prior to the effective date of this Code, or of amendments thereto, but which does not conform to the provisions of this Code.

Non-Commercial Message. A message or image on a sign, or portion of a sign, which displays noncommercial speech, e.g., commentary or advocacy on topics of public debate and concern. This definition shall be construed and interpreted in light of relevant court decisions. Noncommercial messages do not have a location factor, such as on-site or off-site.

Non-Communicative Aspects. Those aspects of a sign that are not directly communicative, such as physical structure, mounting device, size and height, setback, illumination, spacing, and scale relative to other structures.

Off-Site or Off-Premise Sign. A sign that identifies, advertises, or attracts attention to a business, product, service, event, or activity sold, existing, or offered at a different location. The off-site/on-site distinction applies only to commercial messages.

On-Site or On-Premise Sign. Any sign or portion thereof that identifies, advertises, or attracts attention to a business, product, service, event, or activity sold, existing, or offered upon the same property or land use as the sign. The off-site/on-site distinction applies only to commercial messages.

Outdoor Advertising Signs. Billboards and any other outdoor advertising signs which convey an off-site commercial message as their primary purpose.

Pennant. Any lightweight plastic, fabric, or other material, whether or not containing a message of any kind, attached to a rope, wire, or string, usually in a series, designed to move in the wind and attract attention. Flags and banners are not within this definition.

Pole Sign. See Freestanding Sign.

Projecting Sign. Any sign that is perpendicular to the face of a building and projects more than 18 inches from the face. This category includes awning and under canopy signs.

Primary Building Face. The wall of a building which contains the principal entrance(s) to the building. If there are principal entrances in more than one wall, the longest of the walls in which principal entrances are located shall be the primary building face. "Primary building face" shall include not only the wall itself but all doors, windows, or other openings therein and projections therefrom.

Real Estate Sign. Any sign, temporary in nature, with copy which concerns a proposed sale, rent, lease, or exchange of real property. This definition does not include occupancy signs at establishments offering transient occupancy, such as hotels, motels, and "bed and breakfast" facilities.

Roofline. The top edge of a roof or building parapet, whichever is higher, excluding any cupolas, pylons, chimneys, or minor projections.

Roof Sign. Any sign located on a roof of a building or having its major structural supports attached to a roof.

Sign. Any identification, description, illustration, or device illuminated or non-illuminated, which is visible to the general public from any exterior public right-of-way, and directs attention to a product, service, place, activity, person, institution, business, or solicitation, including any permanently installed or situated merchandise; or any emblem, painting, banner, pennant, or placard designed to advertise, identify, or convey information. A display, device, or thing need not contain lettering to be a sign. Notwithstanding the generality of the foregoing, the following are not within this definition:

Architectural features. Decorative or architectural features of buildings (not including lettering, trademarks, or moving parts), that do not perform a communicative function;

Fireworks, etc. The legal use of fireworks, candles, and artificial lighting not otherwise regulated by this Code;

Foundation stones, cornerstones;

Grave markers, grave stones, headstones, mausoleums, shrines, and other markers of the deceased;

Personal appearance. Items or devices of personal apparel, decoration, or appearance, including tattoos, makeup, wigs, costumes, and masks, but not including commercial mascots or hand-held signs; and

Symbols embedded in architecture. Symbols of non-commercial organizations or concepts including, but not limited to, religious or political symbols, when such are permanently integrated into the structure of a permanent building, including stained glass windows on churches, carved or bas relief doors or walls, bells, and religious statuary.

Sign Area. The area contained within a single continuous perimeter enclosing all parts of such sign copy, excluding any structural elements outside the limits of the sign required to support the sign.

Temporary Sign. A structure or device used for the public display of visual messages or images, which is typically made of lightweight or flimsy materials which is not intended for or suitable for long term or permanent display.

Wall Sign. Any sign attached to, erected against, or painted upon the wall of a building or structure, the face of which is in a single plane parallel to the plane of the wall. Wall signs also include signs on a false or mansard roof.

Window Sign. Any sign painted, etched, or otherwise affixed to an exterior window of a building, or in the interior of the building, within three feet of a window, intended to be viewed from the exterior of such building. On-site advisory signs are not considered window signs.

Site. A parcel, or group of contiguous parcels, that is proposed for development in accordance with the provisions of this Ordinance and is in a single ownership or under unified control.

Smoke and Vapor Products. Include, but may not be limited to, Tobacco Products and Smoking Paraphernalia.

Smoke Shop. Any business that primarily sells or offers for sale any Smoke and Vapor Products, but shall not include: Tobacco Retailers; establishments that sell Smoke and Vapor Products for onsite consumption (such as cigar lounges); or establishments operating under Article 33 of Chapter 9 (Cannabis Retail Business and Commercial Cannabis Business).

Smoke Shop Operator. Includes all Persons who own and/or operate the Smoke Shop. An owner is any Person who owns 5% or more of the Smoke Shop.

Smoking. Shall have the same meaning as Section 22950.5(c) of the Business and Professions Code, including any amendments or successor statutes thereto.

Smoking Paraphernalia. Any device, substance, or accessory intended for the smoking of tobacco, cannabis, vaping or electronic cigarette, illicit drug use, or any other substance.

Story. That portion of a building included between the upper surface of any floor and the upper surface of the floor next above, except that the topmost story shall be that portion of a building included between the upper surface of the topmost floor and the upper surface of the roof above. A mezzanine with a floor area that exceeds one third of the total floor area of the floor or level below constitutes a story. In some instances, story may be defined differently by the Building Code.

Street. A public or private thoroughfare which affords the access to a block and to abutting property. "Street" includes avenue, place, way, drive, boulevard, highway, road, and any other thoroughfare, except an alley as defined herein.

Street Tree. A tree fronting private property within the street right-of-way.

Streetwall. A wall or portion of a wall of a building facing a street.

Structural Alterations. Any physical change to or the removal of the supporting members of a structure or building, such as bearing walls, columns, beams, or girders including the creation, enlargement, or removal of doors or windows and changes to a roofline or roof shape.

Structure. Anything constructed or erected, which requires a fixed location on the ground, or is attached to a building or other structure having a fixed location on the ground.

Structure, Accessory. A detached subordinate structure, used only as incidental to the main structure on the same parcel.

Structure, Main. A structure housing the principal use of a site or functioning as the principal use.

Structure, Temporary. A structure without any foundation or footings and which is intended to be removed when the designated time period, activity, or use for which the temporary structure was erected has ceased.

Sub-Acute Care Facility. A facility providing a level of care needed by a patient who does not require hospital acute care but who requires more intensive licensed skilled nursing care than is typically provided to patients in a skilled nursing facility. Sub-acute care facilities are licensed by the California Department of Public Health, and are focused on in-patient care, including medical supervision, 24-hour skilled nursing and supportive care, pharmaceutical, dietary, social, and physical activities. Patients are referred by a medical doctor for medical procedures requiring rehabilitative and therapeutic care following a surgical procedure. This use is different from other similar uses which are classified as residential uses (e.g., Elderly and Long-Term Care, Residential Care Facilities) in that patient stays shall not exceed 30 days and facilities have a more institution-like environment. This use does not include treatment facilities for alcoholism, drug abuse, sexual or psychological disorders.

Swimming Pool. A pool, pond, or open tank capable of containing a large and deep enough body of water for people to use to swim.

Telecommunication-Related Definitions. The following terms are related to Section 15-2759, Telecommunication and Wireless Facilities.

Alternative Tower Structure. Artificial trees, clock towers, bell steeples, light poles, and similar alternative-design mounting structures that camouflage or conceal the presence of antennas or towers.

Antenna. Any system of poles, panels, rods, reflecting discs, wires, or similar devices used for the transmission or reception of electromagnetic signals, including, but not limited to, radio waves and microwaves. An antenna does not include the support structure the antenna(s) is mounted upon.

Antenna, Amateur Radio. A ground-, building-, or tower-mounted antenna operated by a federally licensed amateur radio operator that is used for the purpose of transmitting and receiving radio signals as part of the Amateur Radio Service as designated by the Federal Communications Commission (FCC).

Antenna, Building- or Structure-Mounted. An antenna mounted to a building, rooftop equipment screen, or structure that transmits or receives electromagnetic signals.

Antenna, Ground-Mounted. Any antenna that is not mounted on a pole, a structure, or the roof or wall of a building.

Antenna, Satellite Earth Station. An antenna designed and used to receive and/or transmit radio frequency signals directly to and/or from orbiting communications satellites.

Antenna, Whip. An antenna consisting of a single, slender, rod-like element, less than one wave length long, which is supported only at or near its base.

Antenna Structure. An antenna array and its associated support structure, such as a mast or tower (not including a suspended simple wire antenna), that is used for the purpose of transmitting and/or receiving electromagnetic signals, including, but not limited to, radio waves and microwaves.

Antenna Structure, Freestanding. An antenna structure or mast that is not attached to any part of a building, fence, or other such structure. Freestanding antenna structures include communications towers, wooden utility poles, and concrete and steel monopoles. If the total height of the structure, including the antenna, is at least 17 feet high, it shall be treated as a monopole.

Antenna Structure, Monopole. An antenna structure, often tubular in shape, usually made of metal, reinforced concrete, or wood, which is at least 17 feet in height. A monopole may also be an alternative antenna structure that is designed to replicate a tree or other natural feature.

Slim Line Monopole. A continuous, smooth, round cross section monopole with no cut-outs or exterior attachments such as climbing pegs.

Co-Location. The location of two or more wireless communications facilities owned or used by more than one public or private entity on a single support structure or otherwise sharing a common location. Co-location shall also include the location of wireless communications facilities with other facilities such as buildings, water tanks, light standards, and other utility facilities and structures.

Distributed Antenna System. A system of small antennas installed on existing infrastructure such as telephone poles and streetlights throughout an area, which are interconnected by fiber optic cable to a central hub location, and are generally designed to support multiple wireless carriers.

Equipment Cabinet or Enclosure. A cabinet or structure used to house equipment associated with a wireless communications facility.

Feasible. Feasible means in light of technical feasibility, radio signal transmitting and receiving requirements, aesthetics, electromagnetic fields, costs, landowner permission, facility owner permission, and all necessary approvals under this Code and the California Building Code, as well as the common meaning of the term.

Mast. A pole of wood or metal or a tower fabricated of metal that is used to support an antenna and maintain it at the proper elevation.

Microcell Facility. A wireless communication facility serving a single carrier and consisting of an antenna no larger than four feet in height or, if tubular, no more than six feet long and four inches in diameter comprised of a networked set of antennas that are connected with each other and to a wireless service source, such that a one or more high-power antennas that serve a given area are replaced by a group of lower-power antennas to serve the same geographic area.

Readily Visible. An object that can be identified as a wireless telecommunications facility when viewed with the naked eye.

Related Equipment. All equipment ancillary to the transmission and reception of voice and data via radio frequencies. Such equipment may include, but is not limited to, cable, conduit, and connectors.

Service Provider. Any authorized provider of wireless communications services.

Telestyles. Architecturally blended cell towers, the result of cooperation with designers and architects.

Tower. Any structure that is designed or constructed primarily for the purpose of supporting one or more antennas, including self-supporting lattice towers, guy towers, or monopole towers. The term includes, but is not limited to, radio and television transmission towers, microwave towers, common-carrier towers, cellular telephone towers, alternative tower structures and the like.

Wireless Communications Facility. Personal wireless service facilities as defined by the federal Telecommunications Act of 1996 including, but not limited to, facilities that transmit and/or receive electromagnetic signals for cellular radio telephone service, personal communications services, enhanced specialized mobile services, paging systems, and related technologies. Such facilities include antennas, microwave dishes, parabolic antennas, and all other types of equipment used in the transmission or reception of such signals; telecommunication towers or similar structures supporting said equipment; associated equipment cabinets and/or buildings; and all other accessory development used for the provision of personal wireless services. These facilities do not include radio towers, television towers, and government-operated public safety networks.

Temporary Structure. See Structure, Temporary.

Temporary Use. A use that is intended to be of a limited duration of time and that will not permanently alter the character or physical facilities of the property where it occurs.

Tenant. A person who rents, leases, or subleases, through either a written or oral agreement, real property from another.

Tiny House. A structure intended for separate, independent living quarters for one household that meets these six conditions:

1. Is licensed and registered with the California Department of Motor Vehicles and meets ANSI 119.2 or 119.5 requirements;
2. Is towable by a bumper hitch, frame-towing hitch, or fifth-wheel connection. Cannot (and is designed not to) move under its own power. When sited on a parcel per requirements of this Code, the wheels and undercarriage shall be skirted;
3. Is no larger than allowed by California State Law for movement on public highways;
4. Has at least 100 square feet of first floor interior living space;
5. Is a detached self-contained unit which includes basic functional areas that support normal daily routines such as cooking, sleeping, and toiletry; and
6. Is designed and built to look like a conventional building structure.

Tobacco Product. Shall have the same meaning as provided in 22950.5(d) of the Business and Professions Code, including any amendments or successor statutes thereto.

Tobacco Retailer. Any establishment whose business includes the incidental sale of Smoke and Vapor Products, such as supermarkets and convenience stores.

Trailer. A vehicle without motor power, designed to be drawn by a motor vehicle and to be used for human habitation or for carrying persons or property, including a mobile home, trailer coach or house trailer.

Trash Screen/Enclosure. A permanent, immobile structure, designed for the storage of a mobile resource recovery, recycling, or compost bin or container.

Unit. See Dwelling Unit.

Use. The purpose for which land or the premises of a building, structure, or facility thereon is designed, arranged, or intended, or for which it is or may be occupied or maintained.

Use, Accessory. A use that is customarily associated with, and is incidental and subordinate to, the primary use and located on the same parcel as the primary use.

Use, Primary. A primary, principal, or dominant use established, or proposed to be established, on a parcel.

Use Classification. A system of classifying uses into a limited number of use types on the basis of common functional, product, or compatibility characteristics. All use types are grouped into the following categories: residential; public and semi-public; commercial; industrial; transportation, communication, and utilities; and agricultural and extractive.

Use Permit. A discretionary permit, such as a Conditional Use Permit, which may be granted by the appropriate City authority to provide for the accommodation of land uses with special site or design requirements, operating characteristics, or potential adverse effects on surroundings, which are not permitted as of right, but which may be approved upon completion of a review process and, where necessary, the imposition of special conditions of approval by the permit granting authority.

Use Type. A category which classifies similar uses based on common functional, product, or compatibility characteristics.

Utilities. Equipment and associated features related to the mechanical functions of a building(s) and services such as water, electrical, telecommunications, and waste.

Variance. A discretionary grant of permission to depart from the specific requirements of this Code that is warranted when, due to special circumstances regarding the physical characteristics of the property, the strict application of standards would deprive the property of privileges available to other property in the same zoning district. See Article 55, Variances.

Vehicle. Any vehicle, as vehicle is defined by the California Vehicle Code, including any automobile, camper, camp trailer, trailer, trailer coach, motorcycle, house car, boat, or similar conveyance.

Vibration. A periodic motion of the particles of an elastic body or medium in alternately opposite directions from the position of equilibrium.

Visible. Capable of being seen (whether or not legible) by a person of normal height and visual acuity walking or driving on a public road.

Walk-Up Facility. A facility designed to provide service to pedestrian clients, where clients typically are queued on the outside of the main structure or room. Typical facility types include, but are not limited to, automatic teller machines (ATMs) and food-service windows.

Wall. Any exterior surface of building or any part thereof, including windows.

Warehouse Clubs and Supercenters. Establishments generally known as warehouse clubs, superstores, or supercenters, primarily engaged in retailing a general line of groceries, including a significant amount and variety of fresh fruits, vegetables, dairy products, meats, and other perishable groceries, in combination with a general line of new merchandise, such as apparel, furniture, and appliances.

Watercourse. A strip of land over which water flows, having a definite bed, bank, and channel, wherein the water need not flow continually, but usually flows in a particular direction.

Window. An opening in a wall of a building that is filled with glass in a frame. They typically allow light and air into the interior of a building, but also serve as mediums for viewing merchandise in commercial properties.

Yard. See Setback.

Yard Sales. See Garage Sales.

Zoning District. A specifically delineated area or district in the city within which regulations and requirements uniformly govern the use, placement, spacing, and size of land and buildings.

(Added Ord. 2015-39, § 1, eff. 1-9-16; Am. Ord. 2016-43, § 16, eff. 12-9-16; Am. Ord. 2017-33, § 32, eff. 7-30-17; Am. Ord. 2020-045, § 3, eff. 11-15-20; Am. Ord. 2024-015, § 1, eff. 7-11-24; Am. Ord. 2025-009, § 3, eff. 6-5-25; Am. Ord. 2025-011, § 1, eff. 6-5-25; Am. Ord. 2025-023, § 7, eff. 12-26-25).

THE CHARTER OF THE CITY OF FRESNO

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CHARTER OF THE CITY OF FRESNO

ARTICLE I INCORPORATION AND SUCCESSION

SEC. 100. NAME AND BOUNDARIES. The City of Fresno, hereinafter termed the City, shall continue to be a municipal corporation under its present name of "City of Fresno." The boundaries of the City shall be the boundaries as established at the time this Charter takes effect, or as such boundaries may be changed thereafter in the manner authorized by law.

SEC. 101. SUCCESSION, RIGHTS AND LIABILITIES. The City of Fresno shall continue to own, possess and control all rights and property of every kind and nature owned, possessed or controlled by it at the time this Charter takes effect and shall be subject to all its debts, obligations, liabilities and contracts.

SEC. 102. ORDINANCES. All lawful ordinances, resolutions, rules and regulations, or portions thereof, in force at the time this Charter takes effect, and not in conflict or inconsistent herewith, are hereby continued in force until the same shall have been duly repealed, amended, changed or superseded by proper authority.

SEC. 103. CONTINUANCE OF PRESENT OFFICERS AND EMPLOYEES. The appointive officers of the City, except members of boards and commissions, and the employees of the City under the preceding Charter shall continue to perform the duties of their respective offices and employments without interruption and for the same compensations and under the same conditions until the appointment of their successors or until they are specifically relieved of their duties, but subject to the provisions of this Charter.

SEC. 104. TRANSFER OF RECORDS AND PROPERTY. All records, property and equipment of any office, department or agency, or part thereof, all of the powers and duties of which are assigned to any other office, department or agency by or pursuant to this Charter, shall be transferred and delivered to the office, department or agency to which such powers and duties are so assigned. If part of the powers and duties of any office, department or agency or part thereof is assigned to another office, department or agency by or pursuant to this Charter, all records, property and equipment relating exclusively thereto shall be transferred and delivered to the office, department or agency to which said powers and duties are so assigned.

SEC. 105. OPERATIVE DATE OF CHARTER. For the purpose of nominating and electing the first Mayor and first Councilmen, the provisions of this Charter shall become operative when the concurrent resolution of the legislature approving this Charter is filed with the Secretary of State. For all other purposes this Charter shall become operative at twelve o'clock noon on the first Tuesday next following the date of the election of the first Mayor and

first Councilmen and the qualification of not less than five members of the Council so elected. At such time the terms of all elective officers of the City under the preceding Charter shall terminate.

The first council elected hereunder shall immediately by resolution create temporary departments for the administration of the City government and shall appoint temporary heads thereof, said temporary department heads to continue as such until appointment of their successors by the Chief Administrative Officer under the provisions of this Charter.

SEC. 106. GENDER REFERENCES. It is hereby declared that any gender references including but not limited to the terms "man" or "men," "he," "him," or "his" in this Charter or any ordinances, resolutions or other written policies of the City of Fresno should be gender neutral and shall be amended to reflect gender neutrality when the particular Charter Section, ordinance, resolution or other written policy is amended for any purpose.

(Amendment ratified 1988 Primary Election, June 7, 1988.)

ARTICLE II POWERS OF THE CITY

SEC. 200. GENERAL POWERS. The City shall have the power to make and enforce all laws and regulations in respect to municipal affairs, subject only to such restrictions and limitations as may be provided in this Charter and in the Constitution of the State of California. It shall also have the power to exercise any and all rights, powers and privileges heretofore or hereafter established, granted or prescribed by any law of the State, by this Charter, or by other lawful authority, or which a municipal corporation might or could exercise under the Constitution and laws of the State of California.

The enumeration in this Charter of any particular power shall not be held to be exclusive of, or any limitation upon, the generality of the foregoing provisions.

SEC. 201. PROCEDURES. The City shall have the power and may act pursuant to any procedure established by any law of the State, unless a different procedure is established by this Charter or by ordinance.

SEC. 202. CONTRACTS FOR MUNICIPAL SERVICES. The City shall have the power to enter into a contract with any other city or county within the state, with a state department, or with any other public or private agency or firm for the performance of any administrative function of the City.

SEC. 203. CONTINUANCE OF LAWS. All lawful ordinances, resolutions, rules and regulations or portions thereof now in force and not in conflict or inconsistent herewith are continued in force until they have been duly repealed, amended, changed or superseded by proper authority.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 204. FORM OF GOVERNMENT. The government provided by this Charter shall be known as the Mayor-Council form of government.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

ARTICLE III ELECTIVE OFFICERS

SEC. 300. ENUMERATION. The elective officers of the City shall be a mayor and seven Councilmembers. The Council shall consist of seven Councilmembers, each of whom shall have the right to vote on all matters coming before the Council.

(Amendment ratified 1988 Primary Election, June 7, 1988.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 301. MANNER OF ELECTION. The Mayor shall be elected from the City at large at the times and in the manner provided in this Charter. The Councilmembers shall be elected by district at the times and in the manner provided in this Charter.

(Amendment ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1988 Primary Election, June 7, 1988.)

SEC. 302. DESIGNATION OF COUNCILMEMBERS FOR ELECTION. As to the councilmembers there shall be deemed to be seven separate offices to be filled, one of which shall be designated as councilmember Number One, another as Councilmember Number Two, another as Councilmember Number Three, another as Councilmember Number Four, another as Councilmember Number Five, another as Councilmember Number Six, and another as Councilmember Number Seven. No candidate shall file for more than one elective office. Such designation shall be used on all nomination papers, certificates of election and all election papers referring to the office.

(Amendment ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1988 Primary Election, June 7, 1988.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 303. TERM OF OFFICE.

(a) Except as otherwise provided in this Charter, the terms of elective offices shall be for four years.

(b) In 1981 and every fourth year thereafter, the offices of Councilmembers designated as Number Two, Number Four and Number Six and the office of Mayor shall be filled at the general municipal election held in May, or at such other time as provided by this Charter. In 1983 and every fourth year thereafter, the offices of Councilmembers designated as Number One, Number Three, and Number Five shall be filled at the general municipal election held in May, or at such other time as provided by this Charter.

(c) Beginning in 1995, each elected officer shall take office on the first Tuesday following the first Monday in January of the odd-numbered year following his or her election to office except

ion the case of special elections in which the person elected shall take office upon the certification of election results. Incumbents shall hold office until their successors are elected and qualified.

(d) Councilmembers designated as Number 1, Number 3, and Number 5 elected to office in 1991 shall serve in office until the first Tuesday following the first Monday in January of 1995.

(e) Councilmembers designated as Number 1, Number 3, and Number 5 elected to office in 1994 shall commence their terms in office on the first Tuesday following the first Monday in January of 1995.

(f) Councilmembers designated as Number 2, Number 4, and Number 6 and the Mayor elected to office in 1993 shall serve in office until the first Tuesday following the first Monday in January of 1997.

(g) Councilmembers designated as Number 2, Number 4, and Number 6 and the Mayor elected to office in 1996 shall commence their terms in office on the first Tuesday following the first Monday in January of 1997.

(h) The initial term for Councilmember designated as Number 7 shall commence on the first Tuesday following the first Monday in January 1997 and end on the first Tuesday following the first Monday in January 1999. Thereafter, the term of Councilmember designated as Number 7 shall commence and end at the same time as the terms of Councilmembers designated as Numbers 1, 3, and 5.

(Amendment ratified 1975 General Municipal Election.)
(Amendment ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1988 Primary Election, June 7, 1988.)
(Amendment ratified 1993 Primary Election, March 2, 1993.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 303.1. LIMITATION OF TERMS OF OFFICE. No person elected to the office of Councilmember or Mayor for two successive terms shall again be eligible to hold that same office until one full term has intervened. This limitation applies to terms to which persons had been elected or appointed after May, 1985.

(Amendment ratified 1992 General Election, November 3, 1992.)
(Amendment ratified 1996 Consolidated General Election, November 5, 1996.)

SEC. 304. ELIGIBILITY, CITY RESIDENCE. No person shall be eligible to hold an elective office unless that person is, and has been for a period of at least thirty days immediately preceding the filing of nomination papers for such office or appointment to such office, a resident of the City, and unless that person is, and has been at the time of assuming such office, an elector of the City.

(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197, Stat. 1969.)
(Amendment ratified 1973 General Municipal Election.)
(Amendment ratified 1977 Special Municipal Election, May 31, 1977.)

(Amendment ratified 1988 Primary Election, June 7, 1988.)

SEC. 304.1. ELIGIBILITY, DISTRICT RESIDENCE. Commencing with the 1981 general municipal election, no person shall be eligible to hold elective office as a Councilmember unless that person is, and has been for a period of at least thirty days immediately preceding the filing of nomination papers for such office or appointment to such office, a resident within the Council district corresponding in number to the office to which that person is elected or appointed. Each Councilmember shall, during that Councilmember's term of office, reside within such Council district. The boundaries of such districts shall be determined by the Council by ordinance and shall be redetermined by the Council, by ordinance adopted not later than one hundred and twenty days following the publication of each federal census thereafter; provided that the population disparity between districts shall not exceed ten percent at the time of any such boundary determination or redetermination, and no boundary shall be altered so as to exclude any incumbent from office prior to the expiration of that incumbent's term.

(Amendment ratified 1977 Special Municipal Election, May 31, 1977.)
(Amendment ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1988 Primary Election, June 7, 1988.)

SEC. 305. VACANCIES.

(a) An elective office becomes vacant when the incumbent thereof dies, resigns, is removed from office under recall proceedings, is adjudged insane, is convicted of a felony or of an offense involving a violation of his or her duties, ceases to be a resident of the City or the district corresponding in number to the office to which he or she was elected, neglects to qualify within the time prescribed by the provisions of this Charter, is absent from the State without leave for more than sixty consecutive days, or fails the attend the meetings of the body of which he or she is a member for a like period without being excused therefrom by such body.

(b) The Council shall declare the existence of any vacancy except vacancy caused by death or resignation. Such declaration shall be a final determination of the existence of the vacancy unless a court review is sought within thirty days after such declaration.

(c) A resignation is effective when received by the City Clerk unless a different time is stated in the resignation.

(d) A vacancy in an elected office shall be filed as follows:

(1) A vacancy in the office of a Councilmember may be filled by appointment by the Council if:

(i) The Council declares the existence of the vacancy or the incumbent dies or resigns in the final year of the term, and

(ii) The appointment is made within thirty days after the Council declares the existence of the vacancy or the incumbent dies or resigns.

(2) Any vacancy in the office of a Councilmember not filled pursuant to paragraph (1) shall be filled by a special election to be held not sooner than ninety days after the Council calls such election nor later than the next regular election date after the expiration of such ninety days.

(3) In the event of a vacancy in the office of Mayor, the Council shall appoint the Mayor Pro Tempore as Mayor for the period of time from the date of appointment to the date the newly elected Mayor assumes office and the Council shall call a special election for filling the vacancy, which election shall be called within thirty days after such vacancy occurs, provided that if such vacancy occurs within one hundred twenty days, but not less than eighty-eight days from the date of a municipal primary nominating election at which the office of mayor would regularly be filled, the City Council shall not cause a special election to be held to fill the vacancy but said vacancy shall be filled as part of the regular election process. If elected by a specially called election pursuant to this subsection (305)(d), the Mayor so elected shall serve for the remainder of the unexpired term of the Mayor whose vacation of the office has caused the special election to be held.

(e) Any person appointed or elected to fill a vacancy shall serve for the remainder of any unexpired term and until his or her successor qualifies. If a person appointed to fill a vacancy is a candidate for the same office which he or she then holds, the designation under the candidate's name on the ballot may be the words "appointed incumbent" or may be words designating the profession, vacation, or occupation of the candidate.

(f) If the Council fails either to fill a vacancy by appointment or to call a special election within thirty days after the incumbent dies, or his or her resignation is effective, or the declaration of the existence of the vacancy becomes final, the salary or other compensation of each member of the Council shall cease until the Council calls such special election.

(g) At any special election called to fill a council or mayoral vacancy, the candidate receiving the majority of votes cast shall succeed to the vacated office for the unexpired term upon certification of the election results. If no candidate receives a majority of votes cast, Council shall call another special election within thirty days of the certification of the election results and the two candidates receiving the most votes shall be placed on that special election ballot.

(Amendment ratified 1975 General Municipal Election.)
(Amendment ratified 1977 Special Municipal Election, May 31, 1977.)
(Amendment ratified 1988 Primary Election, June 7, 1988.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 306. HOLDING OF OTHER OFFICE. No elective officer shall hold any other municipal office or hold any office or employment the compensation of which is paid out of municipal moneys; nor be elected or appointed to any office created or the compensation of which is increased by the Council, while a member thereof, until one year after the expiration of the term for which that person was elected.

(Amendment ratified 1988 Primary Election, June 7, 1988.)

SEC. 308. COMPENSATION OF ELECTIVE OFFICERS.

(a) The Council shall establish by ordinance the compensation of the elective officers of the City.

(b) Once the compensation of elective officers is fixed pursuant to subsection (a) of this section, the compensation of an elective officer shall not thereafter be increased or diminished during that elective officer's term of office.
(Amendment ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1988 Primary Election, June 7, 1980.)

SEC. 309. OFF-YEAR CONTRIBUTIONS PROHIBITION. No mayoral candidate, Council candidate, or any committee controlled by such person shall solicit or accept any contribution in support of such candidate's election prior to the date fixed by law for the filing of nomination papers with respect to such election, or following the year in which such election is held.

(Amendment ratified 1993 Primary Election, March 2, 1993.)
(Amendment ratified 1988 Primary Election, June 7, 1988.)

ARTICLE IV THE MAYOR

SEC. 400. Powers and Duties. The executive power of the City shall be vested in the office of the Mayor. The Mayor shall have the power to veto legislative and budgetary actions of the Council pursuant to and in accordance with the provisions of this Charter. The Mayor shall be the Chief Executive Officer of the City, responsible for providing leadership and taking issues to the people and marshalling public interest in and support for municipal activity. The Mayor shall be responsible to the People of Fresno for the proper and efficient administration of all affairs of the City.

In addition to these general responsibilities, the Mayor shall have the following specific duties:

(a) The Mayor shall execute and enforce all laws and ordinances and policies of the City.

(b) The Mayor shall have sole authority to appoint and remove the Chief Administrative Officer.

(c) The Mayor shall exercise control over the Chief Administrative Officer.

(d) The Mayor shall prepare or cause to be prepared the proposed annual City budget, and shall submit the same to the Council for its deliberation and approval.

(e) The Mayor shall have the power of veto in all legislative matters which must be passed by the City Council, except as provided in this Chapter.

(f) The Mayor shall have power of veto in all actions of Council relating to the budget, including line item budgetary veto authority over all programs and budgetary units. This authority includes the ability to reduce or eliminate the fiscal year funding to any program or budget unit.

(g) The Mayor shall not directly supervise any City department.

(h) The Mayor shall provide the liaison between the Administrative Service and the Council, fostering a sense of cohesion among Councilmembers and educating the public about the needs and prospects of the City.

(i) The Mayor shall provide community leadership and actively promote economic development to broaden and strengthen the commercial and employment base of the City.

(j) The Mayor shall recommend to the Council such measures and ordinances as he or she may deem necessary or expedient and to make such other recommendations to the Council concerning the affairs of the City as the Mayor finds desirable.

(k) The Mayor shall investigate those affairs of the City under the mayor's supervision.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.) (Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 401. MAYOR PRO TEMPORE. The President of the Council shall serve as Mayor Pro Tempore. In addition to his or her regular duties as Councilmember, the Mayor Pro Tempore shall perform the duties of the Mayor during the Mayor's absence except, however, the Mayor Pro Tempore shall not have veto authority in the absence of the Mayor. If the Mayor Pro Tempore is appointed Mayor pursuant to subsection 305(d)(2) of this Charter, he or she shall exercise all of the powers of the office of Mayor until a successor is elected and qualified.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 402. COMPENSATION.

(Repealed; ratified 1980 Special Municipal Election, June 3, 1980.)

ARTICLE V THE COUNCIL

SEC. 500. POWERS VESTED IN THE COUNCIL. All powers herein granted to and vested in the City of Fresno shall, except as herein otherwise provided, be exercised by a Council to be designated the Council of the City of Fresno. Said Council shall the be governing body of the City and, subject to the express limitations of this Charter, shall be vested with all powers of legislation in municipal affairs adequate to a complete system of local government consistent with the Constitution of the State. Each Councilmember shall have the right to appoint and remove his or her own Council Assistant.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 501. PRESIDENT OF THE COUNCIL. Commencing in 1997 on the first Tuesday after the first Monday in January, the Council shall elect a President of the Council from among its members to serve for a one-year term. The President of the Council shall be the presiding officer of the Council. In addition, upon vacancy in the officer of the Mayor, the office of the Mayor shall be filled by the President of the Council as provided on Article III of this Charter. In the event of a vacancy in the office of President of the Council or in the event the President is required to fill the office of Mayor, the Council shall select an Acting President who shall serve until the previously elected President returns to office or that Councilmember's term expires.

(Repealed; ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 502. MEETINGS. The Council shall hold regular meetings and shall provide the time, place and manner of holding its meetings by resolution. All meetings of the Council shall be opened to the public, except executive sessions permitted by the law of the State.

(Amendment ratified 1973 General Municipal Election.)
(Amendment ratified 1996 Primary Election, March 26, 1996.)

SEC. 503. QUORUM. A Majority of the entire membership of the Council shall constitute a quorum for the transaction of business, but a less number may adjourn from time to time. In the absence of all members of the Council from any regular meeting or adjourned regular meeting the City Clerk may declare the same adjourned to a stated day and hour.

SEC. 504. RULES AND PROCEDURES. The Council shall establish rules for the conduct of its proceedings and to preserve order at its meetings. It shall cause a record of its proceedings to be maintained which shall be open to public inspection.

SEC. 505. ADMINISTERING OATHS. SUBPOENAS. Each member of the Council shall have the power to administer oaths and affirmations in any investigation or proceeding pending before the Council. The Council shall have the power and authority to compel the attendance of witness, to examine them under oath and to compel the production of evidence before it. Subpoenas may be issued in the name of the City and be attested by the City Clerk. Disobedience of such subpoena or the refusal to testify, upon other than constitutional grounds, shall constitute a misdemeanor and shall be punishable in the same manner as violations of this Charter are punishable.

SEC. 506. CITIZEN PARTICIPATION. No citizen shall be denied the right personally, or through counsel, to present grievances or offer suggestions for the betterment of municipal affairs at any regular meeting of the Council or any City advisory board, commission or committee.

ARTICLE VI LEGISLATION

SEC. 600. ENACTMENT OF ORDINANCES. Legislative action, including the establishment of a fine or other penalty or the grant of a franchise, shall be taken by the Council only by means of an ordinance, as follows:

(a) Each ordinance shall be introduced in writing, and its enacting clause shall be substantially as follows:
"The Council of the City of Fresno does ordain as follows:"

(b) No ordinance shall be adopted by the Council on the day of its introduction, or on the day it is altered after introduction, nor within five days thereafter, except as follows:

(1) An ordinance which takes effect upon final passage;

(2) An ordinance changing the land use zoning district of property, or adopting, amending, or repealing a specific plan or a redevelopment plan, when the adoption of such ordinance has been the subject of a noticed public hearing by the Council;

(c) No ordinance, except an emergency ordinance, shall be adopted at any time other than a regular or adjourned regular meeting.

(d) Upon the demand of a member of the Council at the time of the adoption of an ordinance, it shall be read in full, unless the reading thereof is waived by the Council.

(e) No ordinance changing the land use zoning district of property shall be adopted in conflict with any specific plan adopted by ordinance.

(f) An alteration necessary to correct a typographical or clerical error or omission only, may be performed by the City Clerk with the written approval and concurrence of the City Attorney, so long as the alteration does not materially or substantially alter the contents, requirements, rights, responsibilities, conditions, or prescriptions contained in the original text of the ordinance. A typographical or clerical error shall include, but is not limited, incorrect spelling, grammar, numbering, punctuation, transposed words or numbers, and duplicate words or numbers.

(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197, Stat. 1969.)
(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)
(Amendment ratified 1996 Consolidated General Election, November 5, 1996.)

SEC. 601. VOTE REQUIRED. No ordinance shall be passed or become effective without receiving the affirmative vote of at least four members of the Council unless otherwise provided in the Charter.

(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197, Stat. 1969.)

SEC. 602. ROLL CALL VOTE. APPROVED SUBSTITUTE. At the demand of any member or at the request of the City Clerk, upon any question, the members shall individually cast their votes, by audible voice vote at the call of the roll by the City Clerk, or by other means, approved by a majority of the members, which registers and publicly discloses the individual vote of each member. The City Clerk shall cause the ayes and noes cast to be entered into the minutes of the meeting.

(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197, Stat. 1969.) (Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

SEC. 603. EMERGENCY ORDINANCES. Any ordinance declared by the Council to be necessary as an emergency measure for preserving the public peace, health or safety, and containing a statement of the reasons for its urgency, may be introduced, adopted, and become effective at one and the same meeting if passed by at least five affirmative votes.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 604. SIGNATURE AND ATTESTATION. All ordinances and resolutions shall be attested by the City Clerk and when required by law, shall be signed by the Mayor.

SEC. 605. VETO OF CITY COUNCIL ACTIONS BY MAYOR.

(a) The Mayor shall have veto power over all legislative acts of Council, whether such actions be taken by ordinance, resolution, or otherwise. The Mayor's veto power shall not extend to administrative decisions or quasi-judicial decisions of Council. The veto power shall be afforded the Mayor irrespective of any super-majority vote by Council, except that the veto power shall not extend to override votes taken pursuant to Section 609 of this Charter.

(b) For purposes of this Charter Section 605, legislative acts shall include amendments to the Fresno Municipal Code; adoption of general plans, community plans and specific plans; grants of franchise; establishment of fines, penalties, or regulations; tax levies; annexation of property; exemption of property from taxation; ordinances required by state law in matters wherein state law preempts local law; actions calling an election or otherwise relating to an election; resolutions and actions relating to eminent domain; adoption of budget; amendment of budget; fixing of compensation of officers and employees; position authorizations; establishment of fees; issuance of bonds; and all matters subject to the power of initiative and referendum.

(c) Notwithstanding, subsections 605(a) and (b), the Mayor's veto power shall not extend to:

(1) Emergency ordinances;

(2) Certain land use decisions including; the amendment of specific plans, community plans, and general plans; rezonings; conditional use permits or other special use permits approved by Council after consideration by the Planning Commission; or

(3) Any other land use action, other than text amendments to the Fresno Municipal Code, and whether legislative or quasi-judicial in nature, in which the matter has been considered at a public hearing before the City Council and Planning Commission.

(d) Each proposed resolution or ordinance voted on by the Council that is not approved by the Council and each ordinance or resolution adopted by the Council shall, within forty-eight hours of such action, be transmitted to the Mayor by the City Clerk, with appropriate notation of the action of the Council thereon. All ordinances, resolutions, or other action of Council subject to power of the mayor's veto shall be acted upon by the mayor within ten days of receiving the clerk's transmittal by Council.

The Mayor shall either approve each ordinance, resolution or other action adopted by Council subject to power of the mayor's veto adopted by the Council by signing and returning same to the City Clerk within the required time limits, or shall veto any ordinance, resolution or other action adopted by Council and shall return each such ordinance, resolution or action to the City Clerk with his or her written objections within the required time limit. Failure to make such return within the required time limit shall constitute approval and such ordinance, resolution, or action shall take effect without the Mayor's signed approval. The City Clerk shall note such fact on the official copy of such ordinance, resolution or action.

Any proposed ordinance, resolution or other action subject to power of the Mayor's veto which is voted on by the Council that is not approved by the Council shall be reconsidered by the Council on written request of the Mayor, stating his or her reasons therefor, filed with the City Clerk by the mayor within ten days after the Council's action on such resolution or ordinance. The Council shall reconsider such measure at its convenience, but not later than thirty days after the filing of the Mayor's request therefor.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 606. AMENDMENT OF ORDINANCES. The amendment of any section or subsection of an ordinance may be accomplished solely by the re-enactment of such section or subsection at length, as amended.

SEC. 607. CODIFICATION OF ORDINANCES. The Council shall cause to be classified and codified under appropriate heads all general ordinances in force and cause the same to be printed in book, pamphlet, or looseleaf form for the use of the City, its officers, and the public.

SEC. 608. ORDINANCES, VIOLATION PENALTY. The Council may make the violation of its ordinances a misdemeanor or an infraction which may be prosecuted in the name of the People of the State of California, or may be redressed by civil action. The Council may prescribe punishment for a violation which constitutes a misdemeanor by a fine not to exceed one thousand dollars ($1000) or by imprisonment not to exceed one year, or by both such fine and imprisonment, and may prescribe punishment for a violation which constitutes an infraction.

(Amendment ratified 1975 General Municipal Election.)

SEC. 609. ENACTMENT OVER VETO. The Council may reconsider any ordinance, resolution, or other action subject to the Mayor's veto, which has been vetoed by the mayor and if, after such reconsideration, five members of the Council shall vote in favor of passage thereof, it shall become effective notwithstanding the Mayor's veto. If more than five votes are required for the adoption or approval of any resolution, ordinance or other action by the provisions of this Charter or other superseding law, such larger vote shall be required to overcome the veto of the Mayor. If such vetoed ordinance, resolution, or other action is not passed over the Mayor's veto within thirty days of such veto, the resolution, ordinance, or other action shall be deemed disapproved.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 610. EFFECTIVE DATE OF ORDINANCES. An ordinance adopted by the Council shall become effective thirty days from and after the date of its final passage, except the following, which shall take effect on the date of final passage:

(a) An ordinance calling or otherwise relating to an election;

(b) An ordinance declaring the amount of money necessary to be raised by taxation, or fixing the rate of taxation, or levying the annual tax upon property;

(c) An emergency ordinance adopted in the manner provided in this Charter;

(d) An ordinance annexing areas to the City; or

(e) An ordinance providing for a tax levy or an appropriation for the usual current expenses and outlays of the City.

The date of final passage shall be deemed the date of approval by Mayor pursuant to Charter Section 605. In those cases, where the mayor does not have veto power, the date of final passage shall be deemed the date of Council adoption.

If an ordinance becomes law when the time for approval or veto by mayor has expired and no action has been taken, the date of expiration of that time shall be deemed the date of its final passage. If an ordinance is adopted by Council pursuant to a veto override vote, the date of Council's override vote shall be deemed the date of final passage.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

ARTICLE VII CHIEF ADMINISTRATIVE OFFICER

SEC. 700. ADMINISTRATIVE POSITION. There shall be a Chief Administrative Officer who shall be head of administrative branch of the City government.

SEC. 701. QUALIFICATIONS. The Chief Administrative Officer shall be appointed solely on the basis of his executive and administrative qualifications, with special reference to his actual experience in or his knowledge of accepted practice in respect to the duties of his office as hereinafter set forth. He shall have at least five year's experience as the administra-

tive head or assistant administrative head of a city, or he shall have had equivalent experience in the direction and supervision of other governmental, private business, or industrial activities of comparable importance and magnitude. He need not be a resident of the City or State at the time of his appointment, but during his tenure in office, he shall reside in the City of Fresno. No resident of the County of Fresno at the time this Charter becomes fully operative shall be appointed Chief Administrative Officer within twelve months thereafter.

SEC. 702. APPOINTMENT AND REMOVAL. The Chief Administrative Officer shall be appointed by the Mayor. Such appointment must be made within ninety days after the first election held under this Charter and within ninety days after any subsequent vacancy occurs in the office. The Chief Administrative Officer may be removed from office by the Mayor.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 703. RESIGNATION. Before resigning his position, it shall be the duty of the Chief Administrative Offcier to give the Mayor at least thirty days' notice in writing of his or her intention to resign, stating the reasons therefor.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 704. COMPENSATION. The Chief Administrative Officer shall be paid a salary commensurate with his or her responsibilities as Chief Administrative Officer of the City which salary shall be established by Council resolution. In the event of his or her removal from office, the Chief Administrative Officer shall be paid his or her salary through thirty days following the date of his or her removal.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 705. POWERS AND DUTIES. The Chief Administrative Officer shall work under the direct supervision of the Mayor. He or she shall be responsible to the Mayor for the administration of all affairs of the City not otherwise assigned in this Charter. He or she shall have the power and be required to:

(a) Exercise control over all departments, offices and agencies under his or her jurisdiction;

(b) Advise the Mayor concerning the creation, organization, conduct, operation, alteration, or abolition of the various departments, offices and agencies of the city government.

(c) Appoint, and he or she may suspend or remove, subject to the Civil Service System provisions of this Charter, all department heads and officers of the City except elective officers and officers the power of whose appointment is vested by this Charter in the Council, provided, however, that the appointment, removal and suspension of the Controller shall be subject to the approval of the Council; approve or disapprove all proposed appointments and removals of deputies, assistants and subordinate employees by department heads or officers except those officers whose appointment is vested by this Charter in the Council or mayor, and such appointments and removals by such department heads or officers shall be subject to his or her approval;

(d) Administer the budget after adoption;

(e) Establish such financial and accounting records and procedures as will reflect the current financial status of all municipal activities;

(f) Establish a central purchasing system of all city offices, departments and agencies;

(g) Keep the Mayor advised of the financial affairs and conditions and future needs of the City and make recommendations to the Mayor concerning the administration of city affairs;

(h) Prepare and submit to the Mayor reports in answer to requests for information made to him or her by the mayor;

(i) Perform such other duties as may be prescribed by this Charter or required of him or her by the Mayor, not inconsistent with this Charter;

(j) Attend all meetings of the Council, unless excused therefrom by the Mayor.
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 706. INTERFERENCE IN ADMINISTRATIVE SERVICE. Neither the Mayor nor the Council except by official action taken in policy matters, nor any of its members shall interfere with the execution by the Chief Administrative Officer of his powers and duties, or order, directly or indirectly, the appointment by the Chief Administrative Offcier or by any of the department heads in the administrative service of the city, of any person to an office or employment or his removal therefrom. Except for the purpose of inquiry, the Mayor, the Council and its members shall deal with the administrative service under the Chief Administrative Officer solely through the Chief Administrative Officer and neither the Mayor nor the Council nor any member thereof shall give orders to any subordinates of the Chief Administrative Officer, either publicly or privately.

SEC. 707. CHIEF ADMINISTRATIVE OFFICER PRO TEMPORE.

(Repealed; ratified 1993 General Municipal Election, April 27, 1993.)

ARTICLE VIII OFFICERS AND EMPLOYEES

SEC. 800. OFFICERS TO BE APPOINTED BY THE COUNCIL. There shall be a City Attorney and a City Clerk who shall be appointed by and serve at the pleasure of the Council, but who may be removed only by a majority vote of the entire Council.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 801. ADMINISTRATIVE DEPARTMENTS. The Council shall provide by resolution not inconsistent with this Charter, for the organization, conduct and operation of the several offices established by this Charter, and for the creation of departments, divisions, offices and agencies, and for their consolidation, alteration or abolition. The Council by resolution, may assign additional functions or duties to offices, departments or agencies not inconsistent with this Charter. No office provided in this Charter to be filled by appointment

by the Chief Administrative Officer may be consolidated with an office to be filled by appointment by the Council. The Council, subject to the provisions of this Charter, shall provide for the number, titles, qualifications, powers, duties and compensation of all appointive officers and employees.

(Amendment ratified 1996 Primary Election, March 26, 1996.)

SEC. 802. CITY CLERK. POWERS AND DUTIES. The City Clerk shall have power and be required to:

(a) Be responsible for the recording and maintaining of a full and true record of all the proceedings of the Council in books that shall bear appropriate titles and be devoted to such purpose, and attend all meetings of the Council either in person or by deputy:

(b) Maintain separate books, in which shall be recorded respectively all ordinances and resolutions, with the certificate of the Clerk annexed to each thereof stating the same to be the original or a correct copy, and as to an ordinance requiring publication, stating that the same has been published in accordance with this Charter; keep all books properly indexed and open to public inspection when not in actual use;

(c) Maintain separate files, with appropriate indexes thereto, of all contracts the execution of which was specifically authorized by Council action, and of all official bonds of the City;

(d) Be the custodian of the Seal of the City;

(e) Administer oaths or affirmations, take affidavits and depositions pertaining to the affairs and business of the City and certify copies of official records;

(f) Be ex-officio Assessor, unless the Council has availed itself, or does in the future avail itself, of the provisions of the general laws of the State relative to the assessment of property and the collection of City taxes by county officers, or unless the Council by ordinance provides otherwise.

(g) Maintain in appropriate books and files such other records, documents, instruments, and papers as the Council shall provide by ordinance.

Except as may be otherwise provided by ordinance or resolution of the Council the destruction or other disposition of City records, documents, instruments, books, and papers in the custody of the City Clerk shall be governed by the laws of the State regulating the destruction or disposition of the records of general law cities.
(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197, Stat. 1969.)

SEC. 803. CITY ATTORNEY. POWERS AND DUTIES. To become eligible for City Attorney the person appointed shall be an attorney-at-law duly licensed as such under the

laws of the State of California, and shall have been engaged in the practice of law for at least five years prior to his appointment. The City Attorney shall have power and may be required to:

(a) Represent and advise the Council and all city officers in all matters of law pertaining to their offices;

(b) Represent and appear for the city in any or all actions or proceedings in which the city is concerned or is a party, including the prosecution of violations of this Charter and ordinances enacted by the Council, and represent and appear for any city officer or employee, or former city officer or employee, in any or all actions and proceedings in which any such officer or employee is concerned or is a party for any act arising out of his employment or by reason of his official capacity provided the interest of the city in such action or proceeding is not adversely affected;

(c) Attend all regular meetings of the Council and give his advice or opinion in writing whenever requested to do so by the Council or by any of the boards or officers of the city;

(d) Approve the form of all contracts made by and all bonds given to the city, endorsing his approval thereon in writing;

(e) Prepare any and all proposed ordinances or resolutions for the city and amendments thereto;

(f) Surrender to his successor all books, papers, files and documents pertaining to the city's affairs;

(g) The Council shall have control of all legal business and proceedings and may employ other attorneys to take charge of any litigation or matter or to assist the City Attorney therein.

SEC. 804. CITY CONTROLLER. There shall be a Controller appointed by the Chief Administrative Officer with the approval of the Council who shall have power and shall be required to:

(a) Have charge of the Finance Department and of the administration of the financial affairs of the city under the direction of the Chief Administrative Officer;

(b) Supervise and be responsible for the disbursement of all moneys and have control of all expenditures to insure that budget appropriations are not exceeded;

(c) Submit to the Council through the Chief Administrative Officer a monthly statement of all receipts and disbursements in sufficient detail to show the exact financial condition of the city; and as of the end of each fiscal year, submit a complete financial statement and report;

(d) Supervise the keeping of current inventories of all property of the city by all city departments, offices and agencies.

SEC. 805. ADMINISTERING OATHS. Each department head and his deputies shall have the power to administer oaths and affirmations in connection with any official business pertaining to his department.

SEC. 806. DEPARTMENT HEADS. APPOINTMENT POWERS. Each department head and officer authorized by the Charter shall have the power to appoint, suspend or remove such deputies, assistants and subordinate employees as are provided for by the Council for his department or office, subject to the approval of the Chief Administrative Officer, the provisions of this Charter and of the Civil Service System as adopted hereunder.

SEC. 807. NEPOTISM. The Council shall not appoint to a salaried position under the city government any person who is a relative by blood or marriage within the third degree of any one or more of the members of such Council, nor shall any department head or other officer having appointive power or other supervising employee as defined by ordinance appoint any relative of his within such degree to any such position.

SEC. 808. OFFICIAL BONDS. The Council shall fix by ordinance or resolution the amounts and terms of the official bonds of all officials or employees who are required by ordinance to give such bonds. All bonds shall be executed by responsible corporate surety, shall be approved as to form by the City Attorney, and shall be filed with the City Clerk. Premiums on official bonds shall be paid by the City.

There shall be no personal liability upon, or any right to recover against, a superior officer, or his bond, for any wrongful act or omission of his subordinate, unless such superior officer was a party to, or conspired in, such wrongful act or commission.

SEC. 809. SALARIES AND WAGES. Compensation of officers and employees of the City, except where this Charter provides that no salary shall be paid, shall be fixed by the Council as it may from time to time determine; provided further, that city employees shall be paid not less than the prevailing wage paid in private employment in the City of Fresno in the job or position in which said employees work and the City shall not require its employees to work longer hours for the same wage than workers in private employment in said city work for such wage in like employment.

(Amendment ratified 1993 Primary Election, March 2, 1993.)

SEC. 810. HOURS OF WORK. There shall not be established for any position in the city service a regularly scheduled work day of more than eight hours or a regularly scheduled work week of more than five days, except that there may be established a regularly scheduled work day of up to ten hours for any position for which the regularly scheduled work week is not more than four days, or any other work week mutually agreed to between the City and a non-represented employees or between the City and a recognized employee organization. A member of the city fire fighting force shall be required to work, on a twenty-four hour day basis, not more than fifty-six hours per week on an average, said average to be determined in multiples not to exceed ninety days.

(Amendment ratified 1973 General Municipal Election.)
(Amendment ratified 1996 Primary Election, March 26, 1996.)

SEC. 811. HOLIDAYS. All employees, except temporary employees, shall be entitled to or shall receive credit for all holidays during each fiscal year without loss of compensation. The word "holiday" as used in this section, shall mean every state holiday, including that day in November known as Thanksgiving Day, but not including Sundays or any other day appointed by the President of the United States or the Governor of the State as a public fast, thanksgiving, or holiday, unless such appointed day is also declared to be a holiday pursuant to ordinance or resolution of the Council.

The amendment of this section to specify the exclusion of Sunday as a "holiday" under this section is declared to be a restatement, for the purpose of clarification only, of the law of the section in effect prior to such an amendment.

(Amendment ratified 1973 General Municipal Election.)

SEC. 812. STATUS OF EXISTING EMPLOYEES. Persons employed by the city at the time this Charter becomes fully operative, except elective officers and members of appointive boards, commissions, and committees holding positions the same in substance as positions established or continued in the plan of organization provided under this Charter or by ordinance not inconsistent therewith and who have completed the period of probationary employment under the preceding Charter provisions and Civil Service rules or have served satisfactorily an equivalent period of time in positions not subject to probationary employment, shall have the right to remain in such positions or other positions of like duties, responsibilities and authority until promoted, removed, or reduced in rank in accordance with the provisions of this Charter. Any rights previously accumulated by a person under probationary status shall be retained.

Any officer or employee of the city who is appointed to or continued in a position as Department Head and is subsequently removed therefrom, except for malfeasance or misconduct, shall revert to his former position without loss of any rights or privileges and upon the same terms and conditions as if he had remained in said position continuously. Should such person be eligible for retirement under the retirement or pension system, he shall upon recommendation of the Chief Administrative Officer be retired instead of being restored to his former position.

The rights of employees relating to accrued sick leave and vacation or the validity of eligible lists created by virtue of Charter or Civil Service provisions in effect at the time this Charter becomes fully operative shall continue until exhausted pursuant to such provisions.

SEC. 813. POLITICAL ACTIVITIES. Except as otherwise provided by the general laws of this state heretofore or hereafter enacted, no person in the Administrative Service, or

seeking admission thereto, shall be employed, promoted, demoted or discharged or in any way favored or discriminated against because of political opinions or affiliations or because of race, sex, or religious belief.

No officer or employee of the city and no candidate for any city office shall, directly or indirectly, solicit any assessment, subscription, or contribution, whether voluntary or involuntary, for any political purpose whatever, from anyone on the eligible lists or holding any position in the Administrative Service.
(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971. Amendment ratified March 5, 1985 Special Municipal Election; filed with Secretary of State on May 6, 1985.)

ARTICLE IX BOARDS AND COMMISSIONS

SEC. 900. IN GENERAL. There shall be such boards and commissions as are hereinafter established which shall have the powers and duties herein stated. The Council may create by ordinance additional boards or commissions as in its judgment are required, and may grant to them such powers and duties as are consistent with the provisions of this Charter.

SEC. 901. APPROPRIATIONS. The Council shall include in its annual budget such appropriations of funds as in its opinion shall be sufficient for the efficient and proper functioning of such boards and commissions.

SEC. 902. APPOINTMENTS, TERMS. The members of each of such boards or commissions shall be appointed by the Mayor with the approval of the Council from the qualified electors of the City, none of whom shall hold any paid office or employment in the City government. They shall be subject to removal by motion of the Council adopted by at least five affirmative votes. The members thereof shall serve for a term of four years and until their respective successors are appointed and qualified.

The terms of the members first appointed to each board and commission shall be determined by lot so that as nearly as possible the terms of twenty-five per cent of the total membership of each board or commission shall expire each succeeding July 1.

Thereafter, any appointment to fill an unexpired term shall be for such unexpired period.
(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197. Stat. 1969.)

SEC. 903. EXISTING BOARDS AND COMMISSIONS. The respective terms of office of all members of the boards and commissions in existence at the time this Charter becomes fully operative shall terminate.

SEC. 904. MEETINGS, CHAIRMEN. As soon as practicable, following the first day of July of every year, each of such boards and commissions shall organize by electing one of its members to serve as presiding officer at the pleasure of such board or commission. Each board

or commission established by this Charter shall hold regular meetings at least once each month. Each board or commission created by ordinance shall hold regular meetings at such regular intervals as the proper transaction of its business shall require, but not less often than once each year. All proceedings shall be open to the public.

Except as may be otherwise provided in this Charter, the Chief Administrative Officer shall designate a secretary for the recording of minutes for each of such boards and commissions, who shall keep a record of its proceedings and transactions. Each board or commission may prescribe its own rules and regulations which shall be consistent with this Charter and copies of which shall be kept on file in the office of the City Clerk where they shall be available for public inspection. Each board or commission shall have the same power as the Council to compel the attendance of witnesses, to examine them under oath, to compel the production of evidence before it and to administer oaths and affirmations.
(Amendment ratified 1969 General Municipal Election; approved, Assembly Concurrent Resolution No. 172, filed with Secretary of State on June 12, 1969, Res. Ch. 197, Stat. 1969.)

SEC. 905. COMPENSATION. VACANCIES. The members of boards and commissions shall serve without compensation for their services as such unless the Council shall otherwise provide, but may receive reimbursement for necessary traveling and other expenses incurred on official duty when such expenditures have received authorization by the Council.

Any vacancies in any board or commission, from whatever cause arising, shall be filled by appointment by the Mayor with the approval of the Council. Upon a vacancy occurring leaving an unexpired portion of a term, any appointment to fill such vacancy shall be for the unexpired portion of such term. If a member of a board or commission absents himself from three consecutive regular meetings of such board or commission, unless by permission of such board or commission expressed in its official minutes, or is convicted of a felony, or ceases to be a qualified elector of the City, his office shall become vacant and shall be so declared by the Council.

SEC. 906. PLANNING COMMISSION. ESTABLISHED. There shall be a Planning Commission consisting of seven members. Such city officers and employees as shall be designated by the Chief Administrative Officer shall meet with and participate in the discussions of the Planning Commission but shall not have a vote.

SEC. 907. PLANNING COMMISSION. The Planning Commission shall have the power and duty to:

(a) After a public hearing thereon, recommend to the Council the adoption, amendment, or repeal of the General Plan, or any part thereof, for the development of the city;

(b) Exercise such control over land subdivisions as is granted to it by the Council;

(c) Make recommendations concerning proposed public works and for the clearance and rebuilding of blighted or substandard areas within the city;

(d) Exercise such functions with respect to zoning and land use as may be prescribed by ordinance, not inconsistent with the provisions of this Charter.
(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

SEC. 908. CIVIL SERVICE BOARD. The Civil Service Board shall consist of five members, none of whom while a member of the Board, or for a period of one year after he has ceased for any reason to be a member, shall be eligible for appointment to any salaried office or employment in the service of the City. "Salaried office" shall not be deemed to include an elective office or membership on a board or commission of the city.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

SEC. 909. CIVIL SERVICE BOARD, POWERS AND DUTIES. The Civil Service Board shall have the power and duty to:

(a) Recommend to the Council, after a public hearing thereon, the adoption, amendment, or repeal of Civil Service rules and regulations;

(b) Act in an advisory capacity to the Council on problems concerning personnel administration;

(c) Conduct hearings as provided in Section 1002 relative to the suspension, demotion, and removal of any person in the City employment;

(d) Make any investigation which it may consider desirable concerning the conditions of employment and the administration of personnel in the municipal service and report its findings to the Council;

(e) Perform such other duties as may be prescribed by ordinance not inconsistent with the provisions of this Charter.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

SEC. 910. RETIREMENT AND/OR PENSION BOARDS. Notwithstanding any other provisions in this Charter, the City of Fresno Fire and Police Retirement Board and the City of Fresno Employee's Retirement Board shall each consist of five members, selected as follows:

(a) two members elected by and from the City employees affected; and,

(b) two members from management appointed by the Mayor with the approval of the City Council; and,

(c) the fifth member chosen by the previously designated four members.

The members of such boards shall be removable only by the appointing or electing authority.

The Retirement Board shall appoint and direct a Retirement Administrator who shall report to the Board; serve at the Board's pleasure; administer the retirement office and its financial

affairs as directed by the Board; appoint, suspend and remove subordinate employees subject to the Civil Service System provisions of this Charter; and perform such other administrative duties as directed by the Board.
(Amendment ratified 1996 Primary Election, March 26, 1996.)

ARTICLE X CIVIL SERVICE SYSTEM

SEC. 1000. UNCLASSIFIED AND CLASSIFIED SERVICE. The administrative Service of the City shall be divided into Unclassified and Classified Service:

(a) The Unclassified Service shall be comprised of the following officers, employees, and positions:

(1) The Chief Administrative Officer, his or her deputies, if any, the City Clerk, the City Attorney, his or her deputies, if any, Council Assistants and all management employees serving in a class which contains one or more positions at the division head level and above, including the heads of all departments created by the Council.

(2) Positions in any class or grade created for special or temporary purposes for a period of not longer than one year within any two consecutive fiscal years;

(3) Persons employed to render professional, scientific, technical, or expert services of any occasional or exceptional character;

(4) Part-time employees paid on an hourly or per diem basis .

(b) The Classified Service shall be comprised of all positions not specifically included in this section in the Unclassified Service.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)
(Amendment ratified 1981 Municipal Election, March 3, 1981.)
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 1001. MERIT PRINCIPLE. All appointments to and promotions within the Classified Service shall be based upon efficiency and fitness which shall be ascertained by means of recognized personnel selection techniques.

SEC. 1002. SUSPENSION, DEMOTION, AND DISMISSAL. Except as otherwise provided in this Charter, an officer or employee holding a position in the classified service may be suspended without pay, demoted, or removed from his position for malfeasance, misconduct, incompetence, inefficiency or for failure to perform the duties of his position or to observe the established rules and regulations in relation thereto, or to cooperate reasonably with his superiors or fellow employees, but subject to the right to a hearing before the Civil Service Board in the manner set forth herein.

An officer or employee suspended, demoted, or removed shall be given in writing the reasons for his suspension, demotion, or removal. He shall be allowed a reasonable time for answering

the same and may demand a public hearing upon the charges before the Civil Service Board, such hearing to be held in accordance with procedures established therefor. Hearings may be conducted informally and the technical rules of evidence need not apply but the officer or employee whose suspension, demotion, or removal is sought may be heard in person, be permitted to be represented by counsel and to produce testimony in his own behalf.

The decision of the Civil Service Board upon any such hearing shall be final. Any action or proceeding brought to determine the validity of the decision shall be commenced in a court of competent jurisdiction within thirty days after the date of mailing of notice of the decision to the parties.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

ARTICLE XI RETIREMENT

SEC. 1100. RETIREMENT SYSTEM. The Council shall by ordinance provide for and establish a fund or funds for the relief and pensioning of all employees of the City of Fresno, except elective officers and part-time employees, who have been disabled or become superannuated in the service of the City and shall provide for the administration of such fund or funds; provided, however, that retirement benefits established by any ordinance existing at the effective date of this Charter shall not be reduced, decreased or diminished.

SEC. 1101. VETERANS. Notwithstanding any provision of law, any member of the Administrative Service of the City of Fresno who enters or shall have heretofore entered the armed services of the United States or the State of California during time of war or during any emergency declared by the President of the United States while so employed, and shall have been honorably discharged therefrom and thereupon returned to such employment within a reasonable time, after the termination of such war or emergency, shall for all purposes of any pension or retirement ordinance now or hereafter in effect, be entitled to have such time as he may have served in such armed forces deemed as service to the City of Fresno at the rate of compensation received immediately prior to his entry into such armed service. However, no contribution toward any pension or retirement fund shall be required of such person for the time spent in such armed forces.

The provisions of this section shall be cumulative to any provisions of law enacted by the State of California or the United States relating to the reemployment of persons entering the armed forces of the United States or of the State of California.

ARTICLE XII FISCAL ADMINISTRATION

SEC. 1200. TAX SYSTEM. For the purpose of municipal property taxation, the City may continue to use the County system of assessment, tax collection and deposit as such system is now in effect or may hereafter be amended and insofar as such provision is not in conflict with this Charter.

Should there arise any reason whatsoever that prevents the City from using the County system, the Council shall provide by ordinance a system for the assessment, collection and deposit of municipal property taxes.

SEC. 1201. FISCAL YEAR. The fiscal year of the City shall begin on the first day of July of each year and end on the thirtieth day of June of the following year.

SEC. 1202. ANNUAL BUDGET. PREPARATION BY CHIEF ADMINISTRATIVE OFFICER. At such date as the Mayor shall determine, each department head shall furnish to the Mayor through the Chief Administrative Officer, estimates of revenue and expenditures for his or her department, detailed in such manner as may be prescribed by the mayor. In preparing the proposed budget, the Mayor shall review the estimates, hold conferences thereon with the Chief Administrative Officer and respective department heads and may revise the estimates as he or she may deem advisable.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 1203. BUDGET. SUBMISSION TO THE COUNCIL. At least thirty days prior to the beginning of each fiscal year, the Mayor shall submit to the Council the proposed budget as prepared for him or her. The Council may review the proposed budget and make such revisions as it may deem advisable. At the time he or she submits the proposed budget to the Council the Mayor shall determine, and shall advise the Council of, the time for holding of a public hearing thereon, and shall cause notice to be given of the time and place of such hearing, not less than ten days prior to the time fixed therefor, by publication of such notice at least once in a newspaper of general circulation in the City. Copies of the proposed budget shall be available for inspection by the public in the office of the City Clerk at least ten days prior to the hearing.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 1204. BUDGET, PUBLIC HEARING. At the time so advertised or at any time to which such public hearing shall from time to time be adjourned, the Council shall hold a public hearing on the proposed budget, at which interested persons desiring to be heard shall be given such opportunity.

SEC. 1205. BUDGET, FURTHER CONSIDERATION AND ADOPTION. After the conclusion of the public hearing the Council shall further consider the proposed budget and make any revisions thereof that it may deem advisable and on or before June 30, it shall adopt a balanced budget. A copy thereof, certified by the City Clerk, shall be filed with the person retained by the Council to perform auditing functions for the Council and a further copy shall be placed and shall remain on file in the office of the City Clerk, where it shall be available for public inspection. The budget so certified shall be reproduced and copies made available for the use of departments, offices and agencies of the City.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971; amendment ratified 2018 General Election, November 6, 2018)

SEC. 1206. BUDGET, APPROPRIATIONS. From the effective date of the budget, the several amounts stated therein as proposed expenditures shall be and become appropriated

to the several departments, offices and agencies for the respective objects and purposes therein named. All appropriations shall lapse at the end of the fiscal year to the extent that they shall not have been expended or lawfully encumbered.

At any meeting after the adoption of the budget, the Council may amend or supplement the budget by motion adopted by the affirmative votes of at least five members so as to authorize the transfer of unused balances appropriated for one purpose to another purpose or to appropriate available funds not included in the budget.

SEC. 1207. TAX LEVY. On or before the last Tuesday in August in each year, the Council shall, by ordinance, levy such tax as may be necessary to meet the appropriations made (less the estimated amount of revenue from other sources), and all sums required by law to be raised on account of the City debt and interest thereon, together with such addition, not exceeding five per cent, as may be deemed necessary to meet commissions, fees and deficiencies from the estimates in the amount of taxes collected.

SEC. 1208. PROCUREMENT AND COMPETITIVE BIDDING.

(a) Every contract involving an expenditure of city moneys of more than one hundred thousand dollars ($100,000), adjusted annually on the first of July to the nearest one thousand dollars ($1,000) in response to changes in the National Consumer Price Index (United States City Average For All Products), for materials, supplies, equipment or for any public work of improvement, shall be let to the lowest responsive and responsible bidder after notice by publication in a newspaper of general circulation within the city or on the internet, which shall be at least seven days before time for opening bids. For purposes of this subsection, Council shall by ordinance define "public work of improvement."

(1) All bids hereunder shall be accompanied by either a certified, or cashier's check, an irrevocable letter of credit, or a bidder's bond executed by a corporate surety admitted by the California Insurance Commissioner to do business in California, payable and acceptable to the city. Such security shall be in an amount not less than that specified in the notice inviting bids or in the specifications referred to therein, or if no amount be so specified, then in an amount not less than ten percent of the aggregate amount of the bid. A certificate of deposit or other instrument approved by Council may be accepted by the city in lieu of a bidder's bond. If the successful bidder neglects or refuses to enter into the contract within the time specified in the notice inviting bids or specifications referred to therein, the amount of the bidder's security may be declared forfeited to the city and may be collected and paid into a lawful, available city fund, and all bonds so forfeited shall be prosecuted and the amount thereof collected and paid into such fund.

(2) All bids hereunder shall be submitted in a sealed envelope or electronically through the internet. Bids submitted in a sealed envelope or electronically shall be filed with the officer in charge of the purchasing function prior to the opening time specified in

the notice inviting bids. Such officer shall receive and be custodian of such bids and keep the same confidential until they are opened and declared. The City reserves the right to specify that bids be filed only in a sealed envelope or only electronically on any procurement.

(3) All bids received hereunder shall be publicly opened and declared at the time and at the place fixed in the notice inviting bids. Thereafter, the bids shall be tabulated and analyzed by the officer in charge of the purchasing function, who shall submit them, together with recommendations thereon, to the Chief Administrative Officer. The Chief Administrative Officer shall review the bids and submit them to the Council, along with his/her recommendations, at a duly scheduled meeting of the Council.

(4) The Council shall have the right to waive any informality or minor irregularity in a bid. The Council may reject any and all bids presented and may readvertise in its discretion.

(5) The provisions of this subsection (a) shall not apply to any of the following:

(i) A work of improvement obtained through a design build process if authorized pursuant to subsection (c) herein.

(ii) Work done by the city with its own personnel and/or equipment.

(iii) Materials, supplies, equipment or any public work of improvement obtained from or through any governmental agency.

(iv) When Council determines that the work to be done or the goods to be supplied can only be provided by one source, and the purchase is authorized by resolution of the Council containing a declaration of the facts constituting the sole source.

(v) When the purchase is deemed by Council to be of urgent necessity for the preservation of life, health or property, and such purchase is authorized by resolution passed by at least five affirmative votes of the Council and containing a declaration of the facts constituting the urgency.

(6) For those instances when alternative bid forms, or additive or deductive items are included in bid specifications, Council may establish by ordinance the method that will be used to determine the lowest bid. The establishment of any such method by the Council will not preclude the city from adding to or deducting from the contract any of the additive or deductive items after the lowest responsive and responsible bidder has been determined. Nothing in this subsection (a) shall preclude the Council from establishing a method reserving to the Council the right to award, after consideration of the amount of the bids and the combination of work to be performed, to the lowest responsive and responsible bidder of any alternative bid form or any combination of bid prices on the base contract and additive and/or deductive items identified in the city specifications, when in Council's discretion it determines such award to be either in the best interests of the city or obtains for the public the best

economic result. Notwithstanding subdivisions (2) and (3) of this subsection (a), Council may establish by ordinance a method whereby the identity of the bidder is kept confidential until following Council's determination of the lowest bid.

(7) The Council may by resolution or ordinance establish procedures and requirements for hearing appeals by any bidder who has been determined by the Chief Administrative Officer to be nonresponsive or nonresponsible. The Council may also by resolution or ordinance establish procedures and requirements for the debarment of any bidder who has been determined by the Council to be nonresponsible.

(b) Notwithstanding subsection (a) above, the Council may by ordinance authorize the officer in charge of the purchasing function, in the evaluation of any or all sealed bids for the purchase of materials, supplies, equipment and/or any public work of improvement, to extend up to a five percent preference for a local business in award of all contracts except for those contracts funded by the federal or state government when such funding would be jeopardized because of this preference. For purposes of this section, "local business" shall be as defined by Council within such ordinance.

(1) The amount of the preference shall be equal to the amount of the percentage applied to the lowest responsive and responsible bid.

(2) If the bidder submitting the lowest responsive and responsible bid is not a local business, and if a local business has also submitted a responsive and responsible bid, and, with the benefit of the preference, the local business's bid is equal to or less than the original lowest responsive and responsible bid, the city shall award the contract to the local business at its submitted bid price.

(3) The bidder shall certify, under penalty of perjury, that the bidder qualifies as a local business. The preference is waived if the certification does not appear on the bid.

(c) Council may by ordinance establish a "design build process" which may be utilized in lieu of a competitive bid process as required by this section for construction of any public work of improvement.

(d) To be valid hereunder, any contract with the city for property, goods, services, materials, supplies, equipment or work shall be in writing and approved as to form by the City Attorney.

(e) The city shall not be subject to the California Public Contract Code, in whole or in part, unless Council agrees by ordinance.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)
(Amendment ratified 1979 General Municipal Election, March 6, 1979.)
(Amendment ratified 1988 General Election, November 8, 1988.)
(Amendment ratified 1992 General Election, November 3, 1992.)
(Amendment ratified 1996 Primary Election, March 26, 1996.)
(Amendment ratified 2002 Consolidated Direct Primary Election, March 5, 2002.)
(Amendment ratified 2016 General Election, November 8, 2016.)

SEC. 1209. CASH BASIS FUND. The Council may maintain a revolving fund, to be known as the "Cash Basis Fund", for the purpose of placing the payment of the running expenses of the City on a cash basis when so maintained. A reserve shall be built up in this fund from any available sources in an amount which the Council deems sufficient with which to meet all lawful demands against the city for the first five months, or other necessary period, of the succeeding fiscal year prior to the receipt of ad valorem tax revenues. Transfers may be made by the Council from such fund to any other fund or funds of such sum or sums as may be required for the purpose of placing such funds, as nearly as possible, on a cash basis. All moneys so transferred from the Cash Basis Fund shall be returned thereto before the end of the fiscal year.

SEC. 1210. TEMPORARY LOANS. Money may be borrowed in anticipation of the receipts from taxes during any fiscal year, by the issue of notes, certificates of indebtedness or revenue bonds; but the aggregate amount of such loans at any time outstanding shall not exceed twenty-five percent of the receipts from taxes during the preceding fiscal year; and all such loans shall be paid out of the receipts from taxes for the fiscal year in which they are issued.

SEC. 1211. CAPITAL OUTLAYS FUND. A fund for capital outlays, generally is hereby created, to be known as the "Capital Outlays Fund". The Council may create by ordinance a special fund or funds for a special capital outlay purpose. The Council may levy and collect taxes for capital outlays and may include in the annual tax levy a levy for such purposes in which event it must apportion and appropriate to any such fund or funds the moneys derived from such levy; provided, however, that the tax rate for capital outlay purposes does not exceed twenty cents (20¢) in any one year.

Once created, such fund shall remain inviolate for the purpose for which it was created; if for capital outlays generally, then for any such purposes, and if for a special capital outlay, then for such purpose only, unless the use of such fund for some other purpose is authorized by the affirmative votes of a majority of the electors voting on such proposition at a general or special election at which such proposition is submitted.

If the purpose for which any capital outlay fund has been created has been accomplished, the Council may transfer any unexpended or unencumbered surplus remaining in such fund to the fund for capital outlays generally, established by this Charter.

SEC. 1212. POLICY FOR RESERVE MANAGEMENT. The Council shall establish a specific reserve management policy to control future spending, enhance the City's credit rating, and establish reserve policies to meet the City's debt obligations. An affirmative vote of at least five members of the Council shall be required for amendment to the policy.

The Council shall establish a fund known as the "Unappropriated Reserve Fund" for the purpose of meeting unforeseen contingencies and emergencies of the City for such amount as established by the Council. Said fund shall remain intact except by the affirmative vote of at least five members of the Council with a statement declaring the reason for its use.
(Amendment ratified 2012 General Municipal Election, 11-6-12.)

SEC. 1213. BONDED DEBT LIMIT. The City shall not incur indebtedness evidenced by general obligation bonds which shall in the aggregate exceed the sum of twenty percent of the total assessed valuation for purposes of City taxation of all the real and personal property within the City, exclusive of any indebtedness that has been or may hereafter be incurred for

the purposes of acquiring, constructing, extending, or maintaining municipal utilities for which purpose a further indebtedness may be incurred by the issuance of bonds, subject only to the provisions of the State Constitution and of this Charter.

No bonded indebtedness which shall constitute a general obligation of the City may be created unless authorized by the affirmative votes of a majority of the electors voting on such proposition at any election at which the question is submitted to the electors and unless in substantial compliance with the provisions of the State Constitution and of this Charter.
(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130; filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

SEC. 1214. POLICY FOR DEBT MANAGEMENT. The Council shall establish a debt management policy for the purpose of issuing and managing the City's debt consistent with sound financial management practices. The Controller shall certify prior to each issuance decision the specific funding source(s) for the repayment of the debt and the reliability of the funding for the life of the debt. An affirmative vote of at least five members of the Council shall be required to amend the debt management policy, or to authorize debt other than as a part of the adoption of the annual budget.
(Amendment ratified 2012 General Municipal Election, 11-6-12.)

SEC. 1215. POLICY FOR COMPREHENSIVE REVIEW OF APPLICATIONS FOR CITY FINANCIAL ASSISTANCE. The Council shall establish a policy regarding the procedures and scope for conducting a due diligence process for any proposed project that includes a request for direct or indirect financial assistance, including extensions(s) or renewals(s) of assistance, but excluding City requests for proposal(s), that exceeds one million dollars ($1,000,000). The due diligence process shall include any material financial, legal, business, legislative, and regulatory issues associated with the proposed project. Any amendments to the policy describing this due diligence process or approval of a proposed project that requires this due diligence process shall require an affirmative vote of at least five members of the Council.
(Amendment ratified 2012 General Municipal Election, 11-6-12.)

SEC. 1216. INDEPENDENT AUDIT. The Council shall employ at the beginning of each fiscal year a public accountant who shall, at such time or times as may be specified by the Council, and at such other times as he shall determine, examine the books, records, inventories and reports of all officers and employees who receive, handle or disburse public funds and of all such other officers, employees or departments as the Council may direct. As soon as practicable after the end of the fiscal year, a final audit and report shall be submitted by such accountant to the Council, one copy thereof to be distributed to each member, one to the Chief Administrative Officer, Controller, Treasurer, and City Attorney, respectively, and three additional copies to be placed on file in the office of the City Clerk where they shall be available for inspection by the general public.

SEC. 1217. REGISTERING WARRANTS. Warrants on the City Treasurer which are not paid for lack of funds shall be registered. All registered warrants shall be paid in the order of their registration when funds therefor are available and shall bear interest from the date of registration at such rate as shall be fixed by the Council by resolution.

SEC. 1218. MUNICIPALLY OWNED UTILITIES. The Council through the Chief Administrative Officer shall endeavor to make each municipally owned utility financially self-sustaining. After providing for depreciation reserves and amortization of general obligation and revenue bonds issued for such utility and for reasonable accumulation of reserves for improvement and expansion, and for deposits into special funds created to secure revenue bonds issued for such utility, each utility shall apply all annual profits thereafter remaining to rate reductions, subject to any limitations on the application of such profits or on rate reductions contained in any resolution of the Council relating to the issuance of revenue bonds for such utility. No municipally owned utility shall be operated for the benefit of other municipal functions nor be used directly or indirectly as a general revenue-producing agency for the City, but may pay to the City such amounts of money, in lieu of property and other taxes normally placed upon private business enterprises, as the Council may provide by ordinance and may also pay to the City for any lawful purpose such amounts of surplus annual profits as may be permitted by the provisions of any resolution of the Council relating to the issuance of revenue bonds.

SEC. 1219. OFF-STREET VEHICULAR PARKING. That the City of Fresno, in addition to all other powers elsewhere enumerated in this Charter, shall have the power to acquire (whether by purchase, lease, eminent domain or otherwise) construct, establish, improve,

extend, maintain, operate, administer, lease, sublease and let off-street vehicular parking facilities and places within the City of Fresno in order to relieve traffic congestion and promote the welfare of the citizens and inhabitants thereof.

Without limiting the generality of the next preceding paragraph, the City shall have the power:

(a) To acquire lands and property and rights-of-way necessary and convenient for use as parking places;

(b) To acquire lands and property and rights-of-way necessary and convenient for the opening, widening, straightening and extending of streets or alleys necessary or convenient for ingress or egress from any parking place herein established;

(c) To acquire by condemnation, purchase, or gift any property or any interest therein. Any lands or property necessary or convenient for off-street vehicular parking places may be acquired in fee simple by condemnation or otherwise;

(d) To improve any lands acquired by the construction thereon of garages or other buildings or improvements necessary or convenient for off-street vehicular parking purposes;

(e) To collect fees or charges to pay all or any part of purchasing, improving, repairing or operating off-street vehicular parking. To establish and regulate rates and charges for all services provided the users of such facilities;

(f) To establish funds for such system or systems and place limitations upon the use of moneys therefrom;

(g) To establish off-street vehicular parking places only within the City of Fresno;

(h) To make all necessary rules and regulations regarding the operation and maintenance of off-street vehicular parking facilities;

(i) To issue revenue bonds and refunding revenue bonds for the purchase, acquisition, construction, improvement, operation and maintenance of any and all off-street vehicular parking facilities so acquired and to evidence such obligation for payment, discharge and retirement of the cost of such facilities, improvements and projects by the issuance of revenue bonds therefor, including refunding revenue bonds, in negotiable or non-negotiable form and payable solely out of the revenue derived from the operation, and control of such off-street vehicular parking facilities, in accordance with the procedure established by Section 1222 of this Charter;

(j) To bind, allocate, pledge and authorize payment of all or any part of the net revenues collected from the establishment and operation of parking meters within this city for periods of years for the payment of operation and maintenance costs of such off-street vehicular parking facilities and principal and interest on all revenue bonds issued and outstanding, until all of such bonds have been fully paid;

(k) To do any and all acts or things necessary or appropriate to carry out the purpose of this section.

SEC. 1220. AIRPORT FACILITIES. The City of Fresno shall have the power to acquire (whether by lease, purchase, eminent domain or otherwise), construct, establish, improve, extend, maintain, operate, administer, lease, sub-lease and let airport facilities, including but not limited to runways, hangars, warehouses, buildings for the repair or manufacture of airplanes or airplane parts, control towers, traffic control devices and administration facilities within or without the City of Fresno to promote and facilitate air traffic and promote the welfare of the citizens and inhabitants thereof.

Without limiting the generality of the next preceding paragraph, the City shall have the power:

(a) To acquire lands and property and rights-of-way necessary and convenient for use for airport purposes;

(b) To acquire by condemnation, purchase, or gift any property or any interest therein;

(c) To improve any lands acquired by the construction thereon of runways, hangars, warehouses, buildings for the repair or manufacture of airplanes or airplane parts, or other buildings or improvements necessary or convenient for airport purposes;

(d) To collect fees, rentals or charges to pay all or any part of purchasing, improving, repairing or operating airport facilities; to establish and regulate rentals, rates and charges for all services provided the users of such facilities;

(e) To establish funds for any or all such facilities and place limitations upon the uses of the money therefrom;

(f) To make all necessary rules and regulations regarding the operation and maintenance of airport facilities or properties;

(g) To issue revenue bonds and refunding revenue bonds for the purchase, acquisition, construction, improvement, extension, operation or maintenance of any and all airport facilities so acquired and to evidence such obligation for payment, discharge and retirement of the cost of such facilities, improvements and projects by the issuance of revenue bonds therefor, including refunding revenue bonds, in negotiable or non-negotiable form and payable solely out of the revenue derived from the operation, control or leasing of such airport facilities or properties or any part thereof, in accordance with the procedure established by Section 1222 of this Charter;

(h) To bind, allocate, pledge and authorize payment of all or any part of the gross revenues collected from airport operations or from lands owned or held for airport purposes of every kind and nature for periods of years, for the payment of operation and maintenance costs of such airport facilities and principal and interest on all revenue bonds or refunding revenue bonds issued and outstanding until all such bonds have been fully paid;

(i) To do any and all acts or things necessary or appropriate to carry out the purposes of this section.

SEC. 1221. OTHER REVENUE-PRODUCING UTILITIES. The City of Fresno shall have power to acquire (whether by lease, purchase, eminent domain or otherwise), construct, establish, improve, extend, maintain, operate, administer, lease, sublease and sublet any revenue-producing utility, including any and all improvements, buildings, systems, plants, works, facilities or undertakings used or useful in

(i) the obtaining, conserving, treating, and supplying of water for domestic use, irrigation, sanitation, industrial use, fire protection, recreation, or any other public or private uses;

(ii) the collection, treatment or disposal of garbage or other solid waste matter;

(iii) the collection, treatment or disposal of sewage, liquid industrial waste matter, or waste or storm water, including drainage.

Each such utility shall include all parts thereof, whether now in existence or hereafter constructed or acquired, and all improvements and extensions thereof hereafter acquired, and all lands, easements, rights-of-way, water rights, licenses, franchises, equipment, improvements or facilities whatsoever appurtenant or relating thereto, within or without the City of Fresno to promote the welfare of the citizens and inhabitants thereof.

Without limiting the generality of the next preceding paragraph, the City shall have power:

(a) To acquire lands and property and rights-of-way and any rights, licenses or franchises necessary or convenient for use for a revenue-producing utility;

(b) To acquire by condemnation, purchase or gift any property or interest therein;

(c) To improve any lands acquired by any construction necessary or convenient for the purposes of any such utility;

(d) To collect fees, rentals or charges to pay all or any part of purchasing, improving, or operating any such utility; and to establish and regulate rentals, rates and charges for all services provided the users of any such utility;

(e) To establish funds for any such utility and place limitations upon the uses of the money therefrom;

(f) To make all necessary rules and regulations regarding the use, operation and maintenance of any such utility;

(g) To issue revenue bonds and refunding revenue bonds for the purchase, acquisition, construction, improvement, extension, operation or maintenance of any such utility and to evidence such obligation for payment, discharge and retirement of the cost of such facilities, improvements and projects by the issuance of revenue bonds therefor, including refunding revenue bonds, in negotiable or non-negotiable form and payable solely out of the revenue derived from the operation, control or leasing of all or any part of any such utility, in accordance with the procedure established by Section 1222 of this Charter;

(h) To bind, allocate, pledge and authorize payment of all or any part of the gross revenues of any such utility or of any improvement or extension thereof for periods of years,

for the payment of operation and maintenance costs of such utility and principal and interest on all revenue bonds or refunding revenue bonds issued and outstanding until all such bonds have been fully paid;

(i) To do any and all acts or things necessary or appropriate to carry out the purposes of this section.

SEC. 1222. REVENUE BONDS.

(a) Revenue bonds may be authorized by the Council of the City of Fresno by resolution of five affirmative votes of the Council at a duly assembled meeting. All such revenue bonds so issued shall contain a recital on their face that neither the payment of the principal of or interest thereon constitutes a debt, liability, or obligation of the City of Fresno, except as provided in this section. All such revenue bonds shall be payable either

(1) exclusively from the revenues derived from the operation of off-street vehicular parking facilities and revenues from parking meters, or such specific portions thereof as may be allocated and pledged to the payment of such revenue bonds; or

(2) exclusively from the revenues derived from the operation of airport facilities or properties, or such specific portions thereof as may be allocated and pledged to the payment of such revenue bonds; or

(3) exclusively from the revenues derived from the operation of any revenue-producing utility referred to in Section 1221 of this Charter, or such specific portions thereof as may be allocated and pledged to the payment of such revenue bonds, in accordance with the terms of the resolution under which said revenue bonds are authorized to be issued.

Reference on the face of such revenue bonds to such resolution by its date of adoption shall be sufficient to incorporate all of the provisions thereof into the body of said revenue bonds and their appurtenant coupons. Each taker and subsequent holder of said revenue bonds or coupons, whether such coupons are attached to or detached from said revenue bonds, shall have recourse to all of the provisions of such resolution and shall be bound thereby.

(b) The Council of the City of Fresno shall have power and is hereby authorized:

(1) To fix the aggregate principal amount of all revenue bonds which may from time to time be issued for any purpose authorized by this section; to prescribe the purpose or purposes for which the same may be issued and to provide for the issuance of additional bonds and the security therefor;

(2) To prescribe the form and denomination of the revenue bonds and the terms and conditions upon which the same shall be issued, paid, and retired. Revenue bonds may be issued in one or more series; may bear such date or dates; may mature at such time or times not exceeding forty years from their respective dates (provided that if any authorized issue of revenue bonds is divided into two or more series or divisions, the maximum maturity date of each such series or division shall be calculated from the date on the face of each bond separately, irrespective of the fact that different dates may be prescribed for the bonds of each separate series or division of any authorized issue); may be in the form of serial bonds

or sinking fund bonds with serial of term maturities; may bear interest at a rate or rates not exceeding nine percent per annum, payable annually or semi-annually; may be in such denomination or denominations and in such form, either coupon or registered; may carry such registration or conversion privileges; may be executed in such manner may be payable in such medium of payment and at such place or places within or without the State of California; may be subject to such terms of redemption with or without premium; may be subject to call or redemption prior to their fixed maturity date, provided the right to exercise such call is expressly stated on the face of the bonds; all as provided in such resolution or resolutions of said Council; provided further, that all revenue bonds maturing subsequent to five years from their date may be issued as callable bonds, subject to redemption at the option of the City upon such terms as the Council shall determine;

(3) To provide, in and by the resolution or resolutions authorizing the issuance, the terms and conditions upon which all such revenue bonds issued thereunder may be declared or become due and payable in the event of said defaults, if any, as may be specified in said resolution; may also provide for the replacement of mutilated, destroyed, stolen, or lost bonds;

(4) To provide in and by such resolution for the authentication and execution of revenue bonds by manual, lithographed, or mechanically reproduced facsimile signatures of any officers of the Council and also to provide for additional authentication of such revenue bonds by any trustee or fiscal agent appointed by said Council. If any of the officers whose signatures on bonds or coupons cease to be officers before the delivery of said revenue bonds or coupons to the purchasers thereof, their signatures or countersignatures shall nevertheless be valid and of the same force and effect as if such officers had remained in office until the delivery of the revenue bonds and coupons;

(5) To provide by resolution, pending the preparation of the definitive bonds, for the issuance of interim receipts or temporary bonds exchangeable for definitive bonds when such definitive bonds are ready for delivery in such form and with such provisions as may be provided in said resolution, and further to provide that notwithstanding the form or tenor of such interim receipts or temporary bonds that such interim receipts, temporary bonds, and also all revenue bonds shall at all times be, and be treated as, negotiable instruments for all purposes;

(6) To provide that the proceeds of the sale of said revenue bonds shall be applied to the payment of all costs and expenses to be incurred in connection with the issuance of said bonds, including fiscal agents, and legal expenses, working capital and interest, which it is estimated will accrue during the construction period and for not exceeding six months thereafter on money borrowed or which it is estimated will be borrowed through the issuance of such revenue bonds.

(c) Revenue bonds authorized hereby may be sold by the Council from time to time in such manner as the Council may determine and at a price below the par value thereof; provided that

the maximum net interest cost on revenue bonds sold below par or face value shall not exceed an average of nine percent per annum, payable annually or semiannually, to the respective maturity dates of said revenue bonds as determined by standard tables of bond values.

(d) The Council shall have authority to provide for the issuance, sale, or exchange of refunding revenue bonds for the purpose of redeeming, retiring, or refunding any revenue bonds issued under this Charter subject to any limitations contained in the resolution providing for the issuance of such revenue bonds. All provisions of this section applicable to the issuance of revenue bonds are hereby made applicable to the issuance of refunding bonds and to the sale or exchange thereof. Refunding revenue bonds may be issued in the principal amount sufficient to provide funds for the payment of all revenue bonds to be refunded thereby and in addition for the payment of all expenses incident to the calling, retiring, or paying of such outstanding revenue bonds in the issuance of such refunding bonds. Such expenses may include any amount necessary to be made available for the payment of interest upon such refunding bonds from the date of sale thereof to the date of payment of the revenue bonds to be refunded and also the premium, if any, necessary to be paid in order to call and retire the outstanding revenue bonds and the interest accruing thereon to the call date.

(e) All revenue bonds issued by the Council shall be secured by a lien upon the gross revenue of the project for the acquisition, construction and completion of which said revenue bonds are to be issued, and

(1) In the case of revenue bonds for off-street vehicular parking facilities, revenues from parking meters, as shall be more fully described in the resolution of the Council authorizing the issuance of said bonds, and said Council shall have power in and by such resolution to pledge and assign as security for such revenue bonds all or any part of the gross revenues of any project for the acquisition or construction of which said revenue bonds are to be issued, including revenues from improvements and extensions thereof thereafter constructed or acquired, as well as the revenues of existing off-street vehicular parking project operated or controlled by said City of Fresno and also any sums allocated by the Council from the operation of parking meters to the revenue bond fund for payment of expenses, principal, and interest of the revenue bonds; or

(2) In the case of revenue bonds for airport facilities, revenues of any existing airport facilities or properties operated or controlled by the City of Fresno and of any improvements and extensions thereof thereafter constructed or acquired as shall be more fully described in the resolution of the Council authorizing the issuance of said bonds, said Council shall have power in and by such resolution to pledge and assign as security for such revenue bonds all or any part of the gross revenues of any project for the acquisition or construction of which said revenue bonds are to be issued, including revenues from improvements and extensions thereof thereafter constructed or acquired, and also any sums allocated by the Council from the gross revenues collected from any existing airport facilities or properties, including revenues from improvements and extensions thereof thereafter constructed or acquired, to the revenue bond fund for payment of expenses, or for the payment or security of the principal of and interest on the revenue bonds; or

(3) In the case of revenue bonds for any other revenue-producing utility, revenues of any existing portion or portions of such utility operated or controlled by the City of Fresno and of any improvements or extensions thereof thereafter constructed or acquired as shall be more fully described in the resolution of the Council authorizing the issuance of said bonds, and said Council shall have power in and by such resolution to pledge and assign as security for such revenue bonds all or any part of the gross revenues of any project for the acquisition or construction of which said revenue bonds are to be issued, including revenues from improvements and extensions thereof constructed or acquired, and also any sums allocated by the Council from the gross revenues collected from any existing portion or portions of such utility, including revenues from improvements and extensions thereof thereafter constructed or acquired, to the revenue bond fund for payment of expenses, or for the payment or security of the principal of and interest on the revenue bonds.

Sums required to meet the payment of interest on and principal of revenue bonds issued under this Charter shall be secured by a first, direct, and exclusive charge and lien upon all revenues described in the resolution authorizing the issuance of such revenue bonds and upon all sinking funds, reserve funds, or redemption funds created for the further security of said revenue bonds and the income therefrom, and all such revenues and funds and the income therefrom shall constitute a trust fund for the security and payment of such revenue bonds and shall not be used for any other purpose as long as such bonds, or any of them, and the interest thereon are outstanding and unpaid, except that in the resolution providing for the issuance of said revenue bonds, there may be apportioned, so long as the interest on and principal of such revenue bonds is paid as the same becomes due and payable, together with all other charges required by such resolution for the protection of or better securing of such revenue bonds, such sums as may be specified in such resolution for the payment of maintenance and operating costs of such projects and of any existing facilities or utility the revenues of which are pledged and assigned as security for such revenue bonds, or for any other lawful purpose of the City of Fresno, but only to the extent specified and described in said resolution.

(f) Any resolution of the Council providing for the issuance of revenue bonds may also, in addition to all other appropriate agreements deemed necessary or advisable by the Council, contain such covenants and agreements as it deems necessary or advisable for the better security of the revenue bonds issued thereunder. The Council is hereby authorized and empowered in and by the terms of any such resolution to covenant and agree with the holders of any of said revenue bonds so long as the same shall be outstanding as follows:

(1) That the proceeds of the sale of said revenue bonds shall be deposited in a fund separate and apart from all other funds of the City of Fresno and shall be applied solely and exclusively to the object and purpose for which said revenue bonds are herein authorized to be issued and that any proceeds remaining unexpended after the object and purpose for which said revenue bonds are authorized to be issued shall have been completed shall be applied to the payment of principal and interest of such revenue bonds and that none of said moneys shall be transferred to any other fund of the City of Fresno or used for any purpose other than as specified in said resolution;

(2) That the City of Fresno shall operate or cause to be operated, all projects and properties acquired from the proceeds of the sale of said revenue bonds continuously so long as said revenue bonds are outstanding in an efficient manner and in good working order and condition, and will make all needful and necessary repairs, improvements, and replacements;

(3) That the Council will establish and maintain reasonable rentals, rates, tolls, and/or charges for all properties maintained, owned, operated, leased, or controlled by it (including parking meters in the case of off-street parking projects), or acquired from the proceeds of the sale of revenue bonds and that such rentals, rates, tolls, and/or charges shall at all times be adequate to yield annual revenue equal to all redemption payments and interest charges on said revenue bonds as the same fall due, together with such additional sums as may be required for any sinking fund, reserve fund, or any other special fund provided for the security of revenue bonds or for any maintenance and operation, depreciation, reserve fund, or other charges in connection with the operation of any properties of the City of Fresno, and further that such rentals, rates, tolls, and/or charges shall not be reduced below an amount sufficient to provide funds to meet all obligations set forth in the resolution authorizing the issuance of such revenue bonds. No person shall be permitted to use or operate any of the facilities or properties of the City of Fresno or to make use thereof, except upon payment of the regularly established charge therefor, except only, as may be provided in the resolution authorizing the issuance of such revenue bonds, in the case of firemen, policemen, and other essential public employees, to be specifically set forth in such resolution. All such rentals, rates, tolls, and/or charges shall be paid only in such coin or currency as on the date of payment is legal payment for public or private debts, or in scrip or tokens issued only upon payment of the face value of such coin or currency. Any agreement contained in said resolution with respect to such rentals, rates, tolls, and/or charges shall be binding upon the City of Fresno and upon its officers, departments, and boards thereof;

(4) That accurate books and records of account showing all revenues received from the operation of all properties by the City of Fresno, and all expenditures thereof, will be kept and provided, and that all books and records of the City of Fresno pertaining to the operation of such off-street vehicular parking places or airport facilities or other revenue-producing utility shall be open at all times during business hours to the inspection of the holders of one or more of the revenue bonds, or of any percentage of such holders or their duly authorized representatives as may be provided in such resolution. That annual or other periodic statements of the condition of all such off-street vehicular parking properties or airport facilities or other revenue-producing utility operated by the City of Fresno will be furnished to the holders of such revenue bonds and that summaries thereof will be published at least annually in the official newspaper of the City of Fresno. The resolution providing for the issuance of revenue bonds may also provide that the books and records of the City of Fresno pertaining to the operation of such off-street vehicular parking places or airport facilities or other revenue-producing utility shall be audited by independent public accountants in such manner and under such circumstances as may be set forth in the resolution;

(5) That no part of the said properties in the City of Fresno shall be sold, leased, mortgaged, or otherwise encumbered or disposed of except upon such terms and conditions as may be defined in said resolution and that if any part of the properties of the City of Fresno shall be taken by eminent domain or other proceedings authorized by law, the proceeds therefrom shall be applied to the replacement of properties of like kind and character or to the payment and retirement of revenue bonds, or as may be set forth in said resolution;

(6) That said resolution may contain such other terms and conditions with respect to the payment of the bonds, the operation of said off-street vehicular parking facilities or airport facilities or other revenue-producing utility and properties by the City of Fresno, payment of claims, or the obtaining of insurance of any kind or character on any of said properties of the City of Fresno and the payment of the premium therefor, events of default and the rights of the holders of revenue bonds in the event thereof, the procedure under which the terms and conditions of the revenue bonds and of the resolution authorizing the issuance thereof may be amended at a meeting of the bondholders or by written assent of bondholders without a meeting and the manner in which such consent of the bondholders may be given, either with or without a meeting, and the effect of such an amendment or modification upon the rights of all holders of the bonds and coupons and also all other agreements deemed necessary or desirable in order to secure said revenue bonds or to make the same more marketable.

(g) The validity of any revenue bonds issued by the Council of the City of Fresno shall not be dependent on or affected in any way by any proceedings taken by the City of Fresno for acquisition, construction, or completion of any properties or projects for which said bonds are to be issued or any contracts made in connection with the acquisition, construction, or operation of any such properties. Said revenue bonds shall be incontestable and shall by their issuance and delivery conclusively establish the due performance of all conditions precedent to their issue.

(h) The City of Fresno may, at any time after the adoption of a resolution providing for the issuance of any revenue bonds under this Charter and prior to the actual delivery of such bonds to any purchaser thereof, bring an action in the Superior Court of Fresno County to determine the validity of any such bonds. Such action shall be in the nature of a proceeding *in rem*. The jurisdiction of all parties interested may be had by publication of summons for at least once a week for three weeks in some newspaper of general circulation published in Fresno County, such newspaper to be designated by the Judge of the Court having jurisdiction of the proceedings. The jurisdiction shall be completed within ten days after publication of the summons in the manner herein provided. Anyone interested may at any time before the expiration of said ten days appear and by proper proceedings contest the validity of such revenue bonds. Such action shall be speedily tried and judgment rendered declaring the bonds either valid or invalid. Either party shall have the right to appeal to the Supreme Court of the State of California at any time within thirty days after the entry of such judgment and such appeal shall be heard and determined by said Court within three months from the time of submission thereof to said Court.

(i) The provisions of this section constitute full and complete authority for the issuance of revenue bonds as herein provided by the Council of the City of Fresno and no other procedure or proceedings, consents, approvals, orders, or permission from any municipal officer or a board of the City of Fresno shall be required for the acquisition, construction, or completion of any properties or the issuance of any revenue bonds except as specifically provided in Section 1219, 1220, or 1221 of this Charter. The powers and authorities conferred by said sections of this Charter are in addition to and supplemental to all other powers and authorities conferred upon the City of Fresno. The method provided in said sections for the acquisition of properties and the issuance of revenue bonds shall be deemed an additional method for acquiring such properties and providing funds therefor, provided that the City of Fresno may, in its discretion, acquire any properties of a like or similar nature and issue general obligation bonds of the City of Fresno therefor, but subject to the conditions that the City of Fresno shall not, while any revenue bonds are issued or outstanding, acquire, construct, or complete any competing projects or properties similar to those maintained or operated through the issuance of revenue bonds by the Council. Revenue bonds issued under this Charter shall not be taken into consideration in determining the bonded indebtedness which the City of Fresno is authorized to incur pursuant to Section 1213 of this Charter.

(Amendment ratified 1971 General Municipal Election; approved, Assembly Concurrent Resolution No. 130, filed with Secretary of State on June 18, 1971, Res. Ch. 77, Stat. 1971.)

SEC. 1223. REVENUE BONDS. Notwithstanding anything contained in the preceding Sections 1218 to 1222, the Council may issue revenue bonds for any lawful purpose, in such manner and upon such terms and conditions as it may fix and establish by the provisions of a procedural ordinance. Such bonds shall be payable only out of revenues specified by the Council and shall not constitute an indebtedness of the City. This section shall be deemed to provide a complete, additional and alternative method for doing the things authorized by such preceding sections, and shall be regarded as supplemental and additional to the powers conferred thereby or by other laws.

(Amendment ratified 1981 Municipal Election, March 3, 1981.)

SEC. 1224. PROHIBITION ON TAXING UTILITIES USERS. The city shall not tax any person for using any utility service, including but not limited to, intrastate telephone communication service, gas delivered through mains or pipes, and electrical energy. This prohibition shall take effect for the tax year beginning on July 1, following the passage of this amendment and shall also apply to each fiscal year thereafter.

(Amendment ratified 1981 Municipal Election, March 3, 1981.)

SEC. 1225. WATER METERS PROHIBITED. The City shall not, directly or indirectly (1) install or require the installation of water meters at single-family housing units; (2) bill or otherwise levy charges for single-family residential water consumption at a metered rate; or (3) charge the property owner or tenant for the cost of installing, maintaining, or removing residential water meters from single-family residents.

(Amendment ratified 1992 General Election, November 3, 1992.)

ARTICLE XIII FRANCHISES

SEC. 1300. GRANTING OF FRANCHISES. Any person, firm or corporation furnishing the City or its inhabitants with transportation communication, terminal facilities, water, light, heat, electricity, gas, power, refrigeration, storage or any other public utility or service, or using the public streets, ways, alleys or places for operation of plants, works or equipment for the furnishing thereof, or traversing any portion of the City for the transmitting or conveying of any such service elsewhere, may be required by ordinance to have a valid and existing franchise therefor. The Council is empowered to grant such franchise to any person, firm, corporation, whether operating under an existing franchise or not, and to prescribe the terms and conditions of any such grant. It may also provide, by procedural ordinance, the method of procedure and additional terms and conditions of such grants, or the making thereof, all subject to the provisions of this Charter.

Nothing in this section, or elsewhere in this article, shall apply to the City, or to any department thereof, when furnishing any such utility or service.

SEC. 1301. RESOLUTION OF INTENTION. NOTICE AND PUBLIC HEARING. Before granting any franchise, the Council shall pass a resolution declaring its intention to grant the same, stating the name of the proposed grantee, the character of the franchise and the terms and conditions upon which it is proposed to be granted. Such resolution shall fix and set forth the day, hour and place when and where any persons having any interest therein or any objection to the granting thereof may appear before the Council and be heard thereon. It shall direct the City Clerk to publish said resolution at least once, within fifteen days of the passage thereof, in a newspaper of general circulation within the City. Said notice shall be published at least ten days prior to the date of the hearing.

At the time set for the hearing, or at any adjournment thereof, the Council shall proceed to hear and pass upon all protests and its decision thereon shall be final and conclusive. Thereafter it may by ordinance grant the franchise on the terms and conditions specified in the resolution of intention to grant the same, subject to the right of referendum of the people, or it may deny the same. If the Council shall determine that changes should be made in the terms and conditions upon which the franchise is proposed to be granted, a new resolution of intention shall be adopted and like proceedings had thereon.

SEC. 1302. TERM OF FRANCHISE. Every franchise shall state the term for which it is granted, which shall not exceed fifty years.

SEC. 1303. EMINENT DOMAIN. No franchise grant shall in any way, or to any extent, impair or affect the right of the city to acquire the property of the grantee thereof either by

purchase or through the exercise of the right of eminent domain, and nothing therein contained shall be construed to contract away or to modify or to abridge, either for a term or in perpetuity, the city's right of eminent domain with respect to any public utility.

SEC. 1304. RAILROAD CORPORATIONS. In respect of a railroad corporation, as such term is used in Section 7555 of the Public Utilities Code of California, the term "franchise" as used in this article includes "franchise or permit" as used in said Section 7555.

ARTICLE XIV ELECTIONS

SEC. 1400. DIRECT PRIMARY AND GENERAL MUNICIPAL ELECTIONS.

(a) Beginning in 1996, direct primary elections for the nomination of candidates to be voted for at the ensuing general municipal election and for such other purposes as the Council may prescribe shall be held in the City on same date as the statewide direct primary election as provided in the Elections Code of the State of California. If any candidate for a particular office receives a majority of all votes cast for a particular office, that candidate shall be declared elected and no general municipal election shall be held for that office.

(b) Beginning in 1996, general municipal elections for the election of officers and for such other purposes as the Council may prescribe shall be held in the City on the same date as the statewide general election as provided in the Elections Code of the State of California. Notwithstanding subsections 1400(a) and (b), the Council may by ordinance or resolution provide for such elections to be held within thirty-one days of either of such dates for the purpose of consolidation with any election to be conducted in the County of Fresno, State of California.

(Amendments ratified 1965 General Municipal Election; approved, Assembly Concurrent Resolution No. 112, filed with Secretary of State on May 20, 1965, Ch. 96, Stat. 1965.)
(Amendment ratified 1975 General Municipal Election.)
(Amendment ratified 1980 Special Municipal Election, June 3, 1980.)
(Amendment ratified 1996 Primary Election, March 26, 1996.)

SEC. 1401. SPECIAL MUNICIPAL ELECTIONS. All other municipal elections that may be held by authority of this Charter, or of any law, shall be known as special municipal election.

A special municipal election shall be held for the election of the first Mayor and first Councilmen under this Charter on the second Tuesday in April following the filing of the concurrent resolution of the Legislature approving this Charter with Secretary of State.

SEC. 1402. PROCEDURE FOR HOLDING ELECTIONS. Unless otherwise provided by ordinance hereafter enacted, all elections shall be held in accordance with the provisions of the Elections Code of the State of California, as the same now exist or hereafter may be amended, for the holding of elections in general law cities so far as the same are not in conflict with this Charter.

SEC. 1403. INITIATIVE, REFERENDUM AND RECALL.

There are hereby reserved to the electors of the city the powers of initiative and referendum and of the recall of municipal elective officers. The provisions of the Elections Code of the State of California, as the same now exist or hereafter may be amended, governing the initiative and referendum and the recall of municipal officers, shall apply to the use thereof in the City so far as such provisions of the Elections Code are not in conflict with the provisions of this Charter.

SEC. 1404. BALLOT MEASURES.

Any measure submitted to the voters at a municipal election shall be worded so that a "yes" vote indicates approval of the measure proposed and a "no" vote indicates disapproval.
(Amendment ratified 1993 Primary Election, March 2, 1993.)

ARTICLE XV GENERAL PROVISIONS

SEC. 1500. VALIDITY OF CHARTER.

If any provision of this Charter, or the application thereof to any person or circumstance is held invalid, the remainder of the Charter, and the application of such provisions to other persons or circumstances, shall not be affected thereby.

SEC. 1501. DEFINITIONS.

Unless the provision or the context otherwise requires, as used in this Charter:

(a) "Shall" is mandatory, and "may" is permissive;

(b) "City" is the City of Fresno, and "department", "board", "commission", "agency", "officer", or "employee", is a department, board, commission, agency, officer or employee, as the case may be, of the City of Fresno;

(c) "County" is the County of Fresno;

(d) "State" is the State of California;

(e) "Council" is the City Council of the City of Fresno;

(f) A "Councilmember" means any one of the seven members of the Council.

(g) *Reserved.*

(h) "Newspaper of general circulation within the city" is as defined by Section 6000 of the Government Code of the State of California.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 1502. VIOLATIONS.

The violation of any provision of this Charter shall be deemed a misdemeanor and be punishable upon conviction by a fine of not exceeding one thousand dollars ($1000) or by imprisonment for a term of not exceeding one year, or by both such fine and imprisonment.

SEC. 1503. IMPLEMENTATION OF COUNCIL-MAYOR FORM OF GOVERNMENT.

The Mayor-Council form of government shall become operative on the first Tuesday after the first Monday in January, 1997.

The Council shall redraw the current Council office boundaries no later than June 30, 1995, to add a Council office designated as Councilmember Number 7. This office shall be filled for an initial two-year term at either the direct Primary or General Municipal Election of 1996, taking office on the first Tuesday after the first Monday in January, 1997. Thereafter, terms for the office of Councilmember Number 7 shall be for four-year terms.
(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

SEC. 1504. EXPANSION OF COUNCIL MEMBERSHIP.

(a) At such time as the population of the City of Fresno reaches 650,000, the Council shall establish a public review process to consider adding two Council offices to the Council designated as Councilmember Number 8 and Councilmember Number 9. For making a determination as to whether the 650,000 population figure has been reached, the City shall utilize census data from the Demographic Research Unit of the State Department of Finance issued annually on May 1st or a similarly reliable source of population figures in the event the Demographic Research Unit no longer provides such information. Within 180 days of receipt of validated population figures evidencing this population total, the Council shall commence the public review process. Once that is completed, Council shall vote on whether to submit to the voters, a ballot measure adding two Council offices. If the measure receives a majority of votes cast, Council shall redraw the Council district boundaries, to reflect the two additional Council seats in accordance with the applicable laws.

(b) The two seats shall be initially filled in the next regular municipal election held in which City offices are filled. Both Councilmember seats 8 and 9 shall be filled at said next regular municipal election. Thereafter, Councilmember seat number 8 shall be filled in the same electoral cycle as even-numbered Council seats and Councilmember seat number 9 shall be filled in the same electorial cycle as odd-numbered Council seats. Depending on when the election cycle for filling Councilmember seat numbers 8 and 9 falls, the initial term for one of the two seats shall be a two-year term.

(c) At such time as the Councilmembers designated as Councilmember Number 8 and Councilmember Number 9 are installed in office the following provisions shall be deemed changed:

(1) All provisions in this Charter for a requirement of an "affirmative vote of at least four members of the Council" or any similar language requiring four votes shall be deemed changed to require "affirmative vote of at least five members of the Council."

(2) All provision of this Charter for a requirement of an "affirmative vote of at least five members of the Council" or any similar language requiring five votes shall be deemed changed to require "an affirmative vote of at least six members of the Council."

(Amendment ratified 1993 General Municipal Election, April 27, 1993; amendment ratified 2010 Consolidated Direct Primary Election, June 8, 2010.)

SEC. 1505. OPERATIVE DATE OF CHARTER AMENDMENTS.

The provisions of the various amendments to the Charter adopted in the May 4, 1993 ballot shall become effective as provided by law but shall be operative in accordance with the following rules which are intended to provide a smooth and efficient transition from the present municipal election cycle to an election cycle whereby municipal elections are consolidated with statewide elections held in June and November of even-numbered years and from the present Council-Manager form of government to a strong Mayor form of government to be known as Mayor-Council form of government:

(a) The amendments of Sections 303 and 1400 of the Charter as set forth in the resolution submitting the ballot measure to the voters shall be operative on and after January 1, 1994; until that date Sections 303 and 1400 as they existed on May 3, 1993, shall remain in full force and effect; on and after January 1, 1994, Sections 303 and 1400 as they existed on May 3, 1993, shall be deemed repealed, of no further force and effect and superseded by said amended sections as approved on May 4, 1993.

(b) The amendment of Sections 203, 204, 300, 302, 305, 400, 401, 500, 501, 600, 603, 605, 609, 610, 702, 703, 704, 705, 1000, 1202, 1501 of the Charter as set forth in the resolution submitting the ballot measure to the voters shall be operative on and after the first Tuesday after the first Monday in January, 1997; until that date said sections as they existed on May 3, 1993, shall remain in full force and effect; on and after January 1997, said sections as they existed on May 3, 1993, shall be deemed repealed, of no further force and effect and superseded by said amended sections as approved on May 4, 1993.

(c) Sections 609 and 610, as added to the Charter, and the repeal of Section 707 and subsection 1501(g) as set forth in the ballot measure approved by the voters in May 4, 1993 shall be operative only on and after the first Tuesday after the first Monday in January, 1997.

(d) All other amendments to the Charter adopted by the voters on May 4, 1993, shall be deemed operative on their effective date as provided by law or by their operative language.

(Amendment ratified 1993 General Municipal Election, April 27, 1993.)

CHARTER COMPARATIVE TABLE

Ratification Date	Certification Date		Disposition
5-31-77	3-27-78		304, 304.1, 305(a)
3- 6-79	4-11-79		1208
6-30-80	7-16-80		301, 304.1, 302, 303, 1400, 308
		Rpld	402, 501
3- 3-81	4-30-81		1000
			1223
			1224
3- 5-85	5- 6-85		813
6- 7-88	8- 8-88		106, 300—303, 304—308
11- 8-88	5-10-93		1208(a), (b)
11- 3-92	12-18-92		303.1, 1208(a). 1225
3- 2-93	4- 5-93		303, 309, 809, 1404
4-27-93	5-19-93		203, 204, 300, 302, 303, 305, 400, 401, 500, 501, 600, 603, 605, 609, 610, 702—705,
		Rpld	707, 800, 1000
			1202, 1203, 1400, 1501(f)—(h) 1503—1505
3-26-96	4-30-96		502, 801, 810, 910, 1208, 1400
11- 5-96	1-16-97		303.1, 600
3- 5-02	10-30-02		1208
6- 8-10	7- 6-10		1504
11- 6-12	12- 4-12		1212
		Added	1214, 1215
11- 8-16	12-28-16		1208
11- 6-18	12-14-18		1205

APPENDIX A

SPECIAL ORDINANCES NOT CODIFIED

(Commencing with Supplement 1-75)

Ordinance Number	Effective Date	Subject
75-1	2- 3-75	Rezoning
75-2	2- 3-75	Rezoning
75-5	2-10-75	Rezoning
75-6	2-10-75	Rezoning
75-7	2-10-75	Rezoning
75-9	1-16-75	Annexation
75-10	1-16-75	Annexation
75-13	1-23-75	Annexation
75-14	1-23-75	Annexation
75-15	2-24-75	Rezoning
75-17	3- 9-75	Rezoning
75-19	3-16-75	Rezoning
75-20	4-14-75	Tow-away zone
75-22	3-13-75	Annexation
75-24	3- 6-75	Annexation
75-25	4- 7-75	Rezoning
75-26	3-13-75	Annexation
75-27	3-13-75	Annexation
75-28	3-13-75	Annexation
75-32	4-20-75	Rezoning
75-35	5-11-75	Rezoning
75-36	4-17-75	Annexation
75-37	4-17-75	Annexation
75-39	5-18-75	Rezoning
75-40	7- 1-75	Adds 5% to cost of living adjustment under employee's retirement system
75-43	6- 2-75	Rezoning
75-45	6- 8-75	Rezoning
75-49	6-15-75	Rezoning
75-50	6-22-75	Rezoning
75-51	5-29-75	Annexation
75-52	5-29-75	Annexation
75-54	6-30-75	Rezoning
75-56	6-12-75	Annexation
75-57	6-12-75	Annexation
75-58	6-12-75	Annexation
75-60	7-12-75	Rezoning
75-61	7-12-75	Rezoning
75-62	7-12-75	Rezoning

Ordinance Number	Effective Date	Subject
75-63	6-19-75	Annexation
75-64	6-26-75	Annexation
75-65	7-27-75	Special speed zones
75-66	7-27-75	Two-hour parking zones
75-67	7-27-75	One-hour parking zones
75-68	7-27-75	Two-hour parking zones
75-70	7-27-75	Rezoning
75-71	7-27-75	Rezoning
75-72	7-27-75	Rezoning
75-74	8- 4-75	Rezoning
75-75	8- 4-75	Rezoning
75-76	8- 4-75	Rezoning
75-77	7-24-75	Annexation
75-78	7-24-75	Annexation
75-79	7-24-75	Annexation
75-82	8-31-75	Franchise
75-83	8-31-75	Rezoning
75-85	9- 7-75	Rezoning
75-86	8-14-75	Tax levy
75-87	8-21-75	Annexation
75-89	9-28-75	Rezoning
75-90	10- 5-75	Annexation
75-92	10- 5-75	Rezoning
75-93	10- 5-75	Rezoning
75-95	10-12-75	Rezoning
75-99	11- 2-75	Rezoning
75-100	10- 9-75	Annexation
75-103	11- 9-75	Rezoning
75-106	10-16-75	Annexation
75-107	10-16-75	Annexation
75-108	10-16-75	Annexation
75-109	11-16-75	No-stopping tow away zone
75-111	11-30-75	Rezoning
75-112	12- 7-75	No-stopping tow away zone
75-113	12- 7-75	Rezoning
75-114	12-14-75	Rezoning
75-115	11-13-75	Annexation
75-116	12-14-75	Rezoning
75-117	12-14-75	Rezoning
75-118	12-14-75	Rezoning
75-122	12-21-75	Rezoning
75-123	12-21-75	Rezoning
75-124	1- 4-76	Urban renewal plan—Mariposa Medical Center project

Ordinance Number	Effective Date	Subject
75-126	1- 4-76	Rezoning
75-127	1- 4-76	Rezoning
75-131	1-11-76	Rezoning
75-132	12-18-75	Annexation
75-133	12-18-75	Annexation
75-134	1-18-76	Rezoning
75-135	1-18-76	Rezoning
75-137	1-30-76	Rezoning
75-138	1-30-76	Rezoning
76-1	2- 8-76	Specific plan
76-2	2- 8-76	Specific plan
76-5	2-15-76	Rezoning
76-10	2-22-76	Rezoning
76-12	3- 7-76	Rezoning
76-13	3-13-76	Rezoning
76-14	3-13-76	Rezoning
76-15	3-21-76	Rezoning
76-17	3-21-76	Rezoning
76-18	3-28-76	Rezoning
76-19	3-28-76	Rezoning
76-22	4- 4-76	Specific plan
76-23	4- 4-76	Rezoning
76-28	5- 2-76	Franchise
76-31	5- 2-76	Rezoning
76-34	5- 9-76	Rezoning
76-38	4-29-76	Annexation
76-41	5-13-76	Annexation
76-42	6-13-76	Rezoning
76-43	6-13-76	Rezoning
76-44	5-20-76	Annexation
76-47	6-27-76	Rezoning
76-48	6-27-76	Rezoning
76-51	7- 4-76	Rezoning
76-52	7-11-76	Specific plan
76-55	7-11-76	Rezoning
76-58	7-25-76	Rezoning
76-59	7-25-76	Rezoning
76-60	7-25-76	Rezoning
76-61	8- 1-76	Closes avenue
76-63	8- 1-76	Rezoning
76-65	8-22-76	Annexation
76-66	8-22-76	Rezoning
76-67	8-22-76	Rezoning
76-68	8-22-76	Rezoning
76-73	8-29-76	Rezoning
76-74	8-29-76	Rezoning
76-75	8-29-76	Rezoning

Ordinance Number	Effective Date	Subject
76-76	8-29-76	Rezoning
76-77	8-29-76	Rezoning
76-79	9-12-76	Rezoning
76-80	9-12-76	Rezoning
76-81	9-12-76	One-way street
76-82	8-19-76	Calls election
76-83	8-19-76	Levys taxes
76-85	9- 2-76	Repeals Ord. No. 76-82
76-86	10-11-76	Rezoning
76-87	10-17-76	Specific plan
76-88	10-17-76	Plan lines book
76-89	10-17-76	Site lease
76-92	10-24-76	Rezoning
76-93	10-24-76	Rezoning
76-94	10-24-76	Rezoning
76-95	10-24-76	Rezoning
76-96	10-24-76	Rezoning
76-97	10-30-76	Site lease
76-98	10-31-76	Rezoning
76-99	10-31-76	Rezoning
76-102	11- 7-76	Rezoning
76-103	11- 7-76	Rezoning
76-105	11-14-76	Rezoning
76-106	11-14-76	Rezoning
76-107	11-14-76	Rezoning
76-108	12- 5-76	Rezoning
76-109	12-11-76	Rezoning
76-110	12-11-76	Rezoning
76-111	12-19-76	Specific bicycle route
76-114	1- 9-77	Rezoning
76-115	1- 9-77	Rezoning
76-116	1- 9-77	Rezoning
76-117	1- 9-77	Rezoning
76-118	1- 9-77	Rezoning
76-120	12-16-76	Annexation
76-121	12-16-76	Annexation
76-123	1-16-77	Rezoning
76-124	1-16-77	Rezoning
77-1	1- 6-77	Annexation
77-2	2- 6-77	Rezoning
77-3	2- 6-77	Rezoning
77-4	2-13-77	Rezoning
77-5	1-13-77	Annexation
77-6	2-13-77	Rezoning
77-7	2-13-77	Rezoning
77-8	1-20-77	Annexation
77-10	2-20-77	Rezoning

Ordinance Number	Effective Date	Subject
77-11	2-27-77	Rezoning
77-12	2-27-77	Rezoning
77-13	2-27-77	Rezoning
77-14	3-13-77	Rezoning
77-15	3-13-77	Rezoning
77-16	3-13-77	Rezoning
77-17	3-13-77	Rezoning
77-20	2-24-77	Annexation
77-21	3-27-77	Franchise
77-22	2-24-77	Calls election.
77-29	4-17-77	Rezoning
77-30	4-17-77	Rezoning
77-31	4- 5-77	Annexation
77-32	5- 6-77	Rezoning
77-33	5- 6-77	Rezoning
77-34	5- 6-77	Rezoning
77-35	5-13-77	Specific plan
77-37	5-20-77	Rezoning
77-38	5-20-77	Stop streets.
77-39	5-20-77	Rezoning
77-40	5-27-77	Specific plan
77-43	5-27-77	Rezoning
77-44	6- 3-77	Rezoning
77-45	6- 3-77	Rezoning
77-46	6-10-77	Urban renewal plan
77-48	6-10-77	Rezoning
77-49	6-17-77	Rezoning
77-50	6-17-77	One hour parking zone
77-51	6-17-77	Rezoning
77-52	6-17-77	Rezoning
77-53	6-17-77	Rezoning
77-56	7- 1-77	Rezoning
77-57	7- 1-77	One hour parking zone
77-60	7- 8-77	Rezoning
77-61	7- 8-77	Rezoning
77-62	7- 8-77	Rezoning
77-63	7- 8-77	Rezoning
77-65	7-15-77	One hour parking zone
77-66	7-15-77	Rezoning
77-67	7-15-77	Rezoning
77-68	7-22-77	Rezoning
77-69	7-22-77	Rezoning
77-70	7-22-77	Rezoning
77-71	7-29-77	Rezoning
77-72	7-29-77	Rezoning
77-73	7-29-77	Official plan lines
77-74	7-29-77	Plan map.

Ordinance Number	Effective Date	Subject
77-75	8- 5-77	Rezoning
77-76	8- 5-77	Rezoning
77-77	8- 5-77	Closes street.
77-79	7- 5-77	Calls election.
77-82	8-26-77	Rezoning
77-83	8-27-77	Rezoning
77-84	8-26-77	Rezoning
77-85	8-26-77	Rezoning
77-86	8-26-77	Rezoning
77-89	9- 2-77	Truck routes.
77-90	9- 2-77	Rezoning
77-91	9- 2-77	Rezoning
77-92	9- 2-77	Rezoning
77-93	9- 2-77	Rezoning
77-94	9- 9-77	Rezoning
77-96	8-16-77	Annexation
77-100	9-23-77	Rezoning
77-101	8-30-77	Tax levy.
77-102	9-30-77	Rezoning
77-103	9-30-77	Official plan lines
77-105	9- 6-77	Annexation
77-107	10-14-77	Rezoning
77-108	10-14-77	Rezoning
77-109	10-14-77	Rezoning
77-110	10-21-77	Rezoning
77-111	9-20-77	Annexation
77-112	10-21-77	Rezoning
77-114	11- 4-77	Rezoning
77-115	11- 4-77	Rezoning
77-116	11- 4-77	Rezoning
77-117	11- 4-77	Rezoning
77-118	11- 4-77	Rezoning
77-119	11- 4-77	Rezoning
77-121	11-11-77	Rezoning
77-122	11-11-77	Rezoning
77-123	11-11-77	Rezoning
77-124	11-11-77	Rezoning
77-125	11-11-77	Rezoning
77-126	11-11-77	Rezoning
77-127	11-18-77	Rezoning
77-128	11-18-77	Rezoning
77-129	11-18-77	Specific plan
77-130	11-25-77	Specific plan
77-131	12- 2-77	Rezoning
77-132	12- 9-77	Rezoning
77-133	12- 9-77	Rezoning
77-135	12- 9-77	Rezoning

Ordinance Number	Effective Date	Subject
77-136	12- 9-77	Rezoning
77-137	11- 8-77	Annexation
77-139	11-22-77	Annexation
77-140	12-23-77	Rezoning
77-141	11-29-77	Rezoning
77-142	1-13-78	Rezoning
77-143	1-13-78	Rezoning
77-145	1-13-78	Rezoning
77-146	12-20-77	Annexation
77-147	1-20-78	Rezoning
78-4	2- 3-78	Rezoning
78-5	2-10-78	Rezoning
78-6	2-10-78	Rezoning
78-7	2-10-78	Rezoning
78-8	2-17-78	Rezoning
78-9	2-17-78	Rezoning
78-11	2-24-78	Rezoning
78-13	2-24-78	Annexation
78-14	3- 3-78	Rezoning
78-15	3- 3-78	Plan lines
78-16	3- 3-78	Rezoning
78-19	3-24-78	Stop street.
78-20	3-24-78	Rezoning
78-23	3-24-78	Rezoning
78-24	3-24-78	Rezoning
78-25	3-24-78	Rezoning
78-26	3-24-78	Rezoning
78-27	3-24-78	Rezoning
78-29	3-31-78	Rezoning
78-31	4- 7-78	Rezoning
78-32	4- 7-78	Rezoning
78-33	4- 7-78	Rezoning
78-34	4-14-78	Rezoning
78-35	4-14-78	Rezoning
78-36	4-14-78	Rezoning
78-37	(see § 2)	Rezoning
78-38	(see § 2)	Rezoning
78-41	4-21-78	Urban renewal plan
78-42	4-21-78	Rezoning
78-43	4-21-78	Plan lines
78-44	4-21-78	Rezoning
78-45	4-21-78	Rezoning
78-46	4-21-78	Rezoning
78-48	4-28-78	Rezoning
78-49	4-28-78	Rezoning
78-50	4-28-78	Plan lines
78-51	4-28-78	Parking zone

Ordinance Number	Effective Date	Subject
78-53	5- 5-78	Rezoning
78-54	5-12-78	Rezoning
78-55	5-12-78	Rezoning
78-56	5-12-78	Rezoning
78-57	(see § 2)	Rezoning
78-58	5-12-78	Rezoning
78-59	(see § 2)	Rezoning
78-60	(see § 2)	Rezoning
78-62	(see § 2)	Rezoning
78-63	5-19-78	Rezoning
78-65	5-26-78	Rezoning
78-66	(see § 2)	Rezoning
78-67	5-26-78	No parking.
78-68	(see § 2)	Rezoning
78-69	5-26-78	Repealed rezoning ord.
78-70	5-26-78	Specific plan
78-71	5-26-78	Repealed plan ord.
78-72	5-26-78	Rezoning
78-73	(see § 2)	Rezoning
78-75	6- 2-78	Rezoning
78-76	6- 2-78	Rezoning
78-77	6- 2-78	Rezoning
78-79	(see § 2)	Rezoning
78-80	6- 9-78	Rezoning
78-81	6- 9-78	Rezoning
78-84	6-16-78	Rezoning
78-85	6-16-78	Rezoning
78-86	6-16-78	Rezoning
78-87	6-23-78	Rezoning
78-88	6-23-78	Rezoning
78-89	6-23-78	Repealed rezoning ord.
78-90	6-23-78	Rezoning
78-91	(see § 2)	Rezoning
78-92	6-30-78	Rezoning
78-93	6-30-78	Rezoning
78-94	(see § 2)	Rezoning
78-96	7- 7-78	Rezoning
78-97	7- 7-78	Rezoning
78-98	(see § 2)	Rezoning
78-99	(see § 2)	Rezoning
78-100	7-13-78	Rezoning
78-102	7-13-78	Repeals Ord. No. 76-52
78-103	7-13-78	Repeals Ord. No. 76-111
78-104	(see § 2)	Rezoning
78-105	7-28-78	Rezoning
78-106	(see § 2)	Rezoning
78-109	8-11-78	Rezoning

Ordinance Number	Effective Date	Subject
78-110	8-11-78	Rezoning
78-112	8-11-78	Two-hour parking zones
78-116	(see § 2)	Rezoning
78-117	9- 1-78	Rezoning
78-118	9- 1-78	Rezoning
78-121	9-22-78	Rezoning
78-122	9-22-78	Rezoning
78-123	9-22-78	Rezoning
78-126	9-29-78	Rezoning
78-127	9-29-78	Rezoning
78-128	9-29-78	Rezoning
78-129	9-29-78	Rezoning
78-130	9-29-78	Rezoning
78-131	9-29-78	Rezoning
78-132	(see § 2)	Rezoning
78-133	(see § 2)	Rezoning
78-134	8-29-78	Ad valorem taxation.
78-139	10- 6-78	Rezoning
78-140	10- 6-78	Rezoning
78-141	10- 6-78	Rezoning
78-142	10- 6-78	Rezoning
78-143	(see § 2)	Rezoning
78-144	10-13-78	Rezoning
78-146	9-12-78	Annexation
78-147	10-20-78	Rezoning
78-148	11- 3-78	Rezoning
78-149	11- 3-78	Rezoning
78-150	11-10-78	Rezoning
78-151	11-10-78	Rezoning
78-152	11-10-78	Rezoning
78-153	11-10-78	Rezoning
78-154	11-10-78	Rezoning
78-155	11-10-78	Rezoning
78-156	(see § 2)	Rezoning
78-157	(see § 2)	Rezoning
78-158	11-17-78	Rezoning
78-159	11-17-78	Rezoning
78-160	11-24-78	Specific plan
78-166	12- 1-78	Rezoning
78-167	12- 1-78	Rezoning
78-169	(see § 2)	Rezoning
78-170	12- 8-78	Rezoning
78-172	12-27-78	Rezoning
78-176	12-29-78	Rezoning
78-177	12-29-78	Rezoning
78-178	12-29-78	Rezoning
78-179	12-29-78	Rezoning

Ordinance Number	Effective Date	Subject
78-180	12-29-78	Rezoning
78-182	(see § 2)	Rezoning
78-183	1- 5-79	Rezoning
78-184	1- 5-79	Rezoning
78-185	(see § 2)	Rezoning
78-186	(see § 3)	Rezoning
78-188	1-19-79	Rezoning
78-189	1-19-79	Rezoning
79-2	2-29-79	Rezoning
79-3	2- 9-79	Rezoning
79-4	(see § 2)	Rezoning
79-5	(see § 2)	Rezoning
79-7	2-16-79	Rezoning
79-8	2-16-79	Rezoning
79-9	(see § 3)	Rezoning
79-10	2-16-79	Rezoning
79-11	2-16-79	Rezoning
79-12	(see § 2)	Rezoning
79-14	(see § 2)	Rezoning
79-15	(see § 2)	Rezoning
79-19	3- 2-79	Rezoning
79-20	3- 2-79	Rezoning
79-21	3- 2-79	Rezoning
79-29	3-16-79	Rezoning
79-30	3-16-79	Rezoning
79-31	3-16-79	Rezoning
79-38	3-30-79	Rezoning
79-41	3-30-79	Official plan lines
79-42	4- 6-79	Rezoning
79-43	4- 6-79	Rezoning
79-44	4-13-79	Rezoning
79-45	4-13-79	Rezoning
79-46	4-13-79	Rezoning
79-47	4-20-79	Rezoning
79-48	4-20-79	Amends land use.
79-53	5- 5-79	Rezoning
79-54	5- 4-79	Tow-away zone
79-55	7- 1-79	Amends tax levy.
79-56	5-11-79	Rezoning
79-57	5-11-79	Rezoning
79-58	5-11-79	Rezoning
79-59	5-18-79	Rezoning
79-60	5-18-79	Rezoning
79-61	5-18-79	Rezoning
79-62	(see § 2)	Rezoning
79-63	(see § 2)	Rezoning
79-64	5-25-79	Official plan lines

Ordinance Number	Effective Date	Subject
79-67	(see § 2)	Rezoning
79-68	5-25-79	Rezoning
79-69	5-25-79	Rezoning
79-70	5-25-79	Rezoning
79-71	5-25-79	Rezoning
79-73	(see § 2)	Rezoning
79-75	(see § 2)	Amends Ord. No. 79-14.
79-76	(see § 2)	Amends Ord. No. 79-15.
79-77	6- 1-79	Rezoning
79-78	6- 1-79	Rezoning
79-79	(see § 3)	Rezoning
79-82	6- 1-79	Rezoning
79-84	(see § 3)	Rezoning
79-86	(see § 2)	Rezoning
79-88	(see § 2)	Rezoning
79-89	6-15-79	Rezoning
79-90	(see § 2)	Rezoning
79-91	(see § 2)	Rezoning
79-92	6-29-79	Land use plan
79-93	6-29-79	Land use plan
79-94	7- 6-79	Amends Ord. No. 78-84.
79-95	7- 6-79	Rezoning
79-96	7- 6-79	Rezoning
79-97	7- 6-79	Rezoning
79-98	7- 6-79	Rezoning
79-101	(see § 2)	Rezoning
79-102	7-13-79	Rezoning
79-105	(see § 2)	Rezoning
79-106	7-20-79	Rezoning
79-107	7-20-79	Rezoning
79-108	7-20-79	Rezoning
79-109	(see § 2)	Rezoning
79-110	7-20-79	Rezoning
79-111	7-20-79	Rezoning
79-112	7-20-79	Urban renewal plan
79-113	7-27-79	Rezoning
79-114	7-27-79	Rezoning
79-117	7-27-79	Rezoning
79-119	7-27-79	Rezoning
79-121	8- 3-79	Rezoning
79-122	8- 3-79	Rezoning
79-124	8- 3-79	Rezoning
79-125	(see § 4)	Rezoning
79-127	(see § 2)	Rezoning
79-128	8-10-79	Rezoning
79-130	(see § 4)	Rezoning
79-131	8-21-79	Levies taxes

Ordinance Number	Effective Date	Subject
79-132	(see § 2)	Rezoning
79-133	(see § 3)	Rezoning
79-134	9-21-79	Rezoning
79-135	(see § 2)	Rezoning
79-136	9-21-79	Rezoning
79-137	9-21-79	Rezoning
79-138	9-21-79	Rezoning
79-140	9-21-79	Rezoning
79-141	(see § 3)	Rezoning
79-142	(see § 2)	Rezoning
79-144	(see § 2)	Rezoning
79-145	10- 5-79	Rezoning
79-146	10- 5-79	Rezoning
79-148	10- 5-79	Amends specific plan
79-149	10- 5-79	One-hour parking zones
79-150	10- 5-79	Two-hour parking zones
79-151	(see § 2)	Rezoning
79-152	(see § 3)	Rezoning
79-153	(see § 2)	Rezoning
79-154	10-12-79	Rezoning
79-155	(see § 2)	Rezoning
79-156	(see § 3)	Rezoning
79-157	11- 2-79	Rezoning
79-158	11- 2-79	Rezoning
79-159	11- 2-79	Rezoning
79-160	11- 2-79	Adopts official plan lines
79-161	11- 9-79	Rezoning
79-164	(see § 3)	Rezoning
79-170	11-16-79	Amends specific plan
79-171	11-16-79	Amends specific plan
79-172	10-23-79	Amends specific plan
79-173	11-30-79	Rezoning
79-175	(see § 3)	Rezoning
79-179	12-14-79	Rezoning
79-180	12-14-79	Rezoning
79-181	12-14-79	Rezoning
79-182	(see § 3)	Rezoning
79-185	11-13-79	Adopts specific plan
79-186	(see § 2)	Rezoning
79-188	(see § 2)	Rezoning
79-190	(see § 3)	Rezoning
79-191	(see § 2)	Rezoning
79-194	1-18-80	Repeals §§ 5, 6 of Ord. No. 79-169.
79-198	(see § 2)	Rezoning
79-199	(see § 2)	Rezoning
80-1	(see § 2)	Rezoning

Ordinance Number	Effective Date	Subject
80-2	2- 8-80	Rezoning
80-5	2-15-80	Rezoning
80-6	2-15-80	Rezoning
80-7	2-15-80	Rezoning
80-8	2-15-80	Rezoning
80-9	(see § 2)	Rezoning
80-13	2-29-80	Rezoning
80-14	(see § 3)	Rezoning
80-15	(see § 3)	Rezoning
80-18	(see § 3)	Rezoning
80-20	(see § 2)	Rezoning
80-21	(see § 3)	Rezoning
80-24	(see § 2)	Rezoning
80-25	4-11-80	Rezoning
80-27	4-11-80	Amends § 6 of Ord. No. 80-16.
80-30	(see § 2)	Rezoning
80-31	4-11-80	Rezoning
80-32	(see § 2)	Rezoning
80-33	4-11-80	Rezoning
80-34	(see § 2)	Rezoning
80-36	(see § 2)	Rezoning
80-37	4-18-80	Rezoning
80-40	4-18-80	Adopts official plan lines
80-41	4-18-80	Adopts specific plan
80-42	4-25-80	Rezoning
80-43	4-25-80	Rezoning
80-44	4-25-80	Rezoning
80-45	4-25-80	Rezoning
80-46	4-25-80	Rezoning
80-47	(see § 3)	Rezoning
80-48	(see § 2)	Rezoning
80-49	(see § 3)	Rezoning
80-50	(see § 4)	Rezoning
80-51	4-25-80	Rezoning
80-52	(see § 3)	Rezoning
80-53	(see § 2)	Rezoning
80-55	5- 2-80	Rezoning
80-56	5- 9-80	Rezoning
80-60	5-16-80	Amends Ord. No. 80-50.
80-61	(see § 2)	Rezoning
80-63	(see § 2)	Rezoning
80-64	5-23-80	Rezoning
80-65	5-23-80	Rezoning
80-66	(see § 2)	Rezoning
80-67	5-30-80	Rezoning
80-68	(see § 2)	Rezoning

Ordinance Number	Effective Date	Subject
80-73	6- 6-80	Amends official plan lines
80-74	6-13-80	Rezoning
80-75	6-13-80	Rezoning
80-76	6-13-80	Rezoning
80-77	6-13-80	Rezoning
80-78	(see § 3)	Rezoning
80-84	6-27-80	Rezoning
80-85	6-27-80	Rezoning
80-86	(see § 3)	Rezoning
80-87	(see § 2)	Rezoning
80-88	(see § 2)	Rezoning
80-89	(see § 2)	Rezoning
80-90	(see § 3)	Rezoning
80-94	(see § 3)	Rezoning
80-95	7- 4-80	Rezoning
80-96	(see § 2)	Rezoning
80-97	7-18-80	Rezoning
80-98	(see § 2)	Rezoning
80-100	(see § 4)	Rezoning
80-103	(see § 2)	Rezoning
80-104	(see § 2)	Amends Ord. No. 79-186.
80-105	8- 1-80	Adds no-stopping tow away zones
80-106	(see § 2)	Rezoning
80-107	(see § 3)	Rezoning
80-108	(see § 5)	Fixes elective officers' compensation.
80-110	(see § 4)	Rezoning
80-111	8- 8-80	Rezoning
80-112	8- 8-80	Rezoning
80-114	(see § 2)	Rezoning
80-117	(see § 2)	Rezoning
80-118	(see § 4)	Rezoning
80-120	8-19-80	Levies taxes
80-121	(see § 3)	Rezoning
80-122	9-19-80	Rezoning
80-123	9-19-80	Rezoning
80-124	(see § 2)	Rezoning
80-126	9-19-80	Adopts official plan lines
80-127	(see § 4)	Rezoning
80-128	10- 3-80	Rezoning
80-129	10- 3-80	Rezoning
80-133	10- 3-80	Rezoning
80-134	(see § 2)	Rezoning
80-137	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
80-138	10-17-80	Rezoning
80-139	10-17-80	Rezoning
80-140	(see § 3)	Rezoning
80-141	(see § 4)	Rezoning
80-142	10-17-80	Rezoning
80-144	(see § 3)	Rezoning
80-146	10-24-80	Rezoning
80-147	10-24-80	Rezoning
80-148	10-24-80	Rezoning
80-149	10-31-80	Rezoning
80-150	10-31-80	Rezoning
80-151	(see § 3)	Rezoning
80-152	(see § 3)	Rezoning
80-154	(see § 2)	Rezoning
80-155	(see § 2)	Rezoning
80-156	(see § 3)	Rezoning
80-157	11-28-80	Rezoning
80-159	11-28-80	Rezoning
80-160	11-28-80	Adopts official plan lines
80-161	12- 5-80	Rezoning
80-162	(see § 3)	Rezoning
80-163	12- 5-80	Rezoning
80-165	12-19-80	Rezoning
80-166	(see § 2)	Rezoning
80-167	12-19-80	Amends Ord. No. 80-147.
80-168	12-19-80	Amends Ord. No. 80-128.
80-172	(see § 3)	Rezoning
80-173	1- 9-81	Rezoning
80-174	1- 9-81	Rezoning
80-176	1- 9-81	Amends specific plan
80-177	1- 9-81	Adopts official plan lines
80-178	(see § 4)	Rezoning
80-179	(see § 4)	Rezoning
80-180	1-16-81	Rezoning
80-181	1-16-81	Rezoning
80-182	1-16-81	Rezoning
80-183	1-23-81	Rezoning
80-184	(see § 2)	Rezoning
81-1	(see § 3)	Rezoning
81-3	(see § 3)	Rezoning
81-5	(see § 2)	Rezoning
81-6	(see § 4)	Rezoning
81-8	2-27-81	Rezoning
81-9	(see § 2)	Rezoning
81-10	(see § 2)	Rezoning

Ordinance Number	Effective Date	Subject
81-11	(see § 2)	Rezoning
81-12	2-27-81	Amends specific plan
81-13	(see § 2)	Rezoning
81-14	3-13-81	Rezoning
81-15	3-13-81	Rezoning
81-16	(see § 2)	Rezoning
81-17	3-20-81	Rezoning
81-19	3-27-81	Rezoning
81-20	3-27-81	Rezoning
81-21	4- 3-81	Rezoning
81-25	4-10-81	Rezoning
81-26	4-10-81	Rezoning
81-27	4-10-81	Amends specific plan
81-28	4-10-81	Rezoning
81-29	4-24-81	Rezoning
81-30	4-24-81	Rezoning
81-31	4-24-81	Rezoning
81-32	4-24-81	Rezoning
81-33	(see § 2)	Rezoning
81-34	5- 1-81	Rezoning
81-35	5- 1-81	Rezoning
81-36	(see § 2)	Rezoning
81-37	5- 1-81	Add no-stopping tow away zones
81-38	(see § [3])	Rezoning
81-39	(see § 6)	Rezoning (Rpld Ord. No. 81-26).
81-40	(see § 6)	Rezoning (Rpld Ord. No. 81-28).
81-41	5- 7-81	Rezoning
81-43	5- 7-81	Rezoning
81-44	5- 7-81	Adds no-stopping tow away zones
81-46	5-22-81	Rezoning
81-47	5-22-81	Rezoning
81-48	(see § 2)	Rezoning
81-51	(see § 2)	Rezoning
81-52	6- 5-81	Adopts official plan lines
81-53	6- 5-81	Adopts official plan lines
81-56	(see § 3)	Rezoning
81-57	6-19-81	Rezoning
81-58	6-19-81	Rezoning
81-59	6-19-81	Amends specific plan
81-60	(see § 4)	Rezoning
81-62	7- 3-81	Rezoning
81-65	(see § 2)	Rezoning
81-69	(see § 2)	Rezoning

Ordinance Number	Effective Date	Subject
81-70	(see § 2)	Rezoning
81-71	7-24-81	Amends specific plan
81-72	(see § 2)	Rezoning
81-73	(see § 2)	Rezoning
81-75	7-24-81	Rezoning
81-76	7-24-81	Rezoning
81-78	7-31-81	Rezoning
81-79	7-31-81	Rezoning
81-80	7-31-81	Rezoning
81-81	(see § 3)	Rezoning
81-82	7-31-81	Amends Ord. No. 78-91, § 2.
81-84	8- 7-81	Rezoning
81-85	8- 7-81	Rezoning
81-86	8- 7-81	Rezoning
81-87	(see § 3)	Rezoning
81-92	(see § 4)	Rezoning
81-93	(see § 3)	Rezoning
81-93A	9-11-81	Adopts official plan lines
81-94	9-11-81	Rezoning
81-95	(see § 2)	Rezoning
81-98	(see § 3)	Rezoning
81-100	9-25-81	Rezoning
81-101	9-25-81	Amends Ord. No. 79-152, § 2.
81-102	9-25-81	Rezoning
81-103	(see § 3)	Rezoning
81-109	9-25-81	Franchise
81-111	(see § 2)	Rezoning
81-116	(see § 2)	Rezoning
81-117	(see § 2)	Rezoning
81-119	10- 9-81	Rezoning
81-120	(see § 4)	Rezoning
81-121	9-15-81	Levies taxes
81-122	10-16-81	Rezoning
81-123	10-16-81	Amends specific plan
81-124	10-23-81	Rezoning
81-125	(see § 4)	Rezoning
81-126	(see § 4)	Rezoning
81-127	(see § 4)	Rezoning
81-128	(see § 4)	Rezoning
81-129	(see § 3)	Rezoning
81-130	(see § 2)	Rezoning
81-137	(see § 2)	Rezoning
81-138	(see § 3)	Rezoning
81-140	11-13-81	Rezoning
81-141	11-13-81	Rezoning

Ordinance Number	Effective Date	Subject
81-142	11-13-81	Amends Ord. No. 81-128
81-143	(see § 2)	Rezoning
81-144	(see § 4)	Adopts planned community; rezoning
81-145	(see § 4)	Rezoning
81-146	(see § 3)	Rezoning
81-147	(see § 2)	Rezoning
81-148	11-27-81	Amends official plan line
81-150	12- 4-81	Amends Ord. No. 81-109.
81-151	(see § 3)	Rezoning
81-152	12-11-81	Rezoning
81-153	(see § 2)	Rezoning
81-155	12-11-81	Tow-away zones
81-156	12-11-81	Tow-away zones
81-159	(see § 2)	Rezoning
81-160	(see § 2)	Rezoning
81-161	12-18-81	Amends Ord. No. 68-177
81-162	(see § 4)	Rezoning
81-163	(see § 3)	Rezoning
81-164	(see § 2)	Rezoning
81-165	(see § 3)	Rezoning
81-166	(see § 2)	Rezoning
81-167	(see § 2)	Rezoning
81-168	(see § 2)	Rezoning
81-173	1-22-82	Adopts modifications of council districts
81-174	(see § 2)	Rezoning
81-175	(see § 3)	Rezoning
82-1	(see § 3)	Rezoning
82-2	(see § 3)	Rezoning
82-4	2- 5-82	No-stopping, tow-away zones
82-5	2- 5-82	Amends specific plan and community plan
82-6	2-12-82	Adopts redevelopment plan
82-7	(see § 3)	Rezoning
82-8	(see § 3)	Rezoning
82-9	(see § 2)	Rezoning
82-11	(see § 2)	Rezoning
82-12	(see § 2)	Rezoning
82-13	(see § 2)	Rezoning
82-14	2-26-82	Amends specific plan
82-15	(see § 2)	Rezoning
82-17	(see § 3)	Rezoning
82-18	3-12-82	Adopts official plan lines

Ordinance Number	Effective Date	Subject
82-19	(see § 3)	Rezoning
82-20	(see § 3)	Rezoning
82-21	(see § 3)	Rezoning
82-23	(see § 2)	Rezoning
82-24	(see § 4)	Rezoning
82-26	(see § 2)	Rezoning
82-27	(see § 2)	Adopts official plan lines
82-28	4- 2-82	Amends specific plan and community plans
82-29		Voided
82-30	4- 2-82	Rezoning
82-32	(see § 3)	Rezoning
82-33	(see § 2)	Rezoning
82-34	4- 9-82	Amends specific plan
82-36	(see § 2)	Rezoning
82-38	(see § 2)	Repeals official plan lines
82-39	(see § 2)	Rezoning
82-41	(see § 3)	Rezoning
82-43	(see § 4)	Rezoning
82-44	(see § 3)	Rezoning
82-45	(see § 3)	Rezoning
82-46	(see § 2)	Rezoning
82-48	5-21-82	Amends Ord. No. 82-41
82-50	(see § 2)	Rezoning
82-54	6-25-82	Adopts specific plan
82-55	(see § 3)	Rezoning
82-57	(see § 2)	Rezoning
82-60	(see § 2)	Rezoning
82-61	7-16-82	Amends specific plan and community plan
82-62	(see § 4)	Rezoning
82-63	(see § 2)	Rezoning
82-66	(see § 2)	Rezoning
82-70	(see § 3)	Rezoning
82-71	(see § 4)	Rezoning
82-72	(see § 2)	Rezoning
82-73	8-13-82	Amends specific plan and community plan
82-74	(see § 3)	Rezoning
82-75	(see § 4)	Rezoning
82-76	(see § 3)	Rezoning
82-78	9- 3-82	Amends urban renewal plan
82-81	(see § 4)	Rezoning
82-83	(see § 2)	Rezoning
82-84	(see § 2)	Rezoning

Ordinance Number	Effective Date	Subject
82-88	8-17-82	Levies 1982 tax on Waterworks District No. 30
82-89	8-17-82	Adopts official plan line
82-92	10- 1-82	Amends Ord. No. 81-166 effective date
82-93	(see § 3)	Rezoning
82-95	(see § 4)	Rezoning
	10- 1-82	Adopts official plan line
82-98	10- 1-82	Adopts official plan line
82-103	10-22-82	Amends Ord. No. 82-11 effective date
82-104	10-22-82	Rezoning
82-106	(see § 3)	Rezoning
82-107	(see § 3)	Rezoning
82-108	11- 5-82	Rezoning
82-109	(see § 2)	Rezoning
82-111	(see § 3)	Rezoning
82-113	(see § 3)	Rezoning
82-114	(see § 3)	Rezoning
82-115	(see § 3)	Rezoning
82-116	(see § 3)	Rezoning
82-118	12- 3-82	Adds no-stopping tow-away zone
82-119	(see § 3)	Rezoning
82-120	(see § 2)	Rezoning
82-122	(see § 2)	Rezoning
82-124	12-17-82	Rezoning
82-125	12-17-82	Amends specific plan and community plan
82-126	(see § 3)	Rezoning
82-129	12-24-82	Adds no-stopping tow-away zones
82-132	(see § 2)	Rezoning
82-133	(see § 2)	Rezoning
82-134	(see § 2)	Rezoning
82-136	(see § 3)	Rezoning
83-1	(see § 3)	Rezoning
83-3	2- 4-83	Amends specific and community plan
83-4	(see § 4)	Rezoning
83-5	2- 4-83	Adopts plan lines
83-6	(see § 2)	Rezoning
83-7	(see § 3)	Rezoning
83-8	(see § 3)	Rezoning
83-10	(see § 2)	Rezoning
83-11	(see § 2)	Rezoning
83-13	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
83-14	(see § 2)	Rezoning
83-16	3- 4-83	Adds no-stopping tow-away zones
83-18	3- 4-83	Rezoning
83-19	(see § 3)	Rezoning
83-23	(see § 4)	Rezoning
83-24	(see § 2)	Rezoning
83-25	(see § 2)	Rezoning
83-26	(see § 3)	Rezoning
83-27	3-18-83	Amends Ord. No. 79-186 effective date
83-28	(see § 3)	Rezoning
83-30	4- 1-83	Amends Ord. No. 82-126, § 2
83-31	(see § 2)	Rezoning
83-32	4- 1-83	Amends urban renewal plan
83-36	(see § 3)	Rezoning
83-37	4-22-83	Adds no-stopping tow-away zones
83-38	4-22-83	Rezoning
83-42	5-20-83	Amends § 2 of Ord. No. 81-111
83-44	(see § 4)	Rezoning
83-45	(see § 3)	Rezoning
83-47	(see § 4)	Rezoning
83-48	(see § 3)	Rezoning
83-49	(see § 4)	Rezoning
83-51	6-10-83	Rezoning
83-52	(see § 2)	Rezoning
83-53	6-10-83	Adds no-stopping tow-away zone
83-54	(see § 4)	Rezoning
83-56	6-17-83	Repeals Ord. No. 81-37; adds no-stopping tow-away zones
83-58	7- 1-83	Rezoning
83-59	7- 1-83	Rezoning
83-60	7- 1-83	Rezoning
83-61	7- 1-83	Rezoning
83-62	7- 1-83	Rezoning
83-63	7- 1-83	Rezoning
83-64	7- 1-83	Rezoning
83-65	7- 1-83	Rezoning
83-66	7- 1-83	Rezoning
83-67	7- 1-83	Rezoning
83-68	7- 1-83	Rezoning

Ordinance Number	Effective Date	Subject
83-69	7- 1-83	Rezoning
83-70	7- 1-83	Rezoning
83-71	7- 1-83	Rezoning
83-72	7- 1-83	Rezoning
83-73	(see § 2)	Rezoning
83-74	(see § 2)	Rezoning
83-76	7- 8-83	Rezoning
83-77	(see § 3)	Rezoning
83-78	(see § 3)	Rezoning
83-79	(see § 5)	Rezoning
83-80	7- 8-83	One-way street
83-81	7- 8-83	Two-way street
83-82	(see § 2)	Rezoning
83-83	(see § 2)	Rezoning
83-84	(see § 4)	Rezoning
83-89	(see § 3)	Rezoning
83-90	7-22-83	Rezoning
83-91	(see § 3)	Rezoning
83-96	(see § 4)	Rezoning
83-97	(see § 4)	Rezoning
83-98	7-29-83	Adopts official plan line
83-99	7-29-83	Amends specific plan
83-100	(see § 3)	Rezoning
83-101	(see § 2)	Rezoning
83-102	(see § 2)	Rezoning
83-104	8-12-83	Temporarily withheld from supplement
83-105	8-12-83	Amends specific plan and community plan
83-106	9- 2-83	Rezoning
83-108	(see § 3)	Rezoning
83-110	8-16-83	Levies taxes in water-works district
83-113	(see § 3)	Rezoning
83-114	(see § 4)	Rezoning
83-115	(see § 4)	Rezoning
83-116	8-16-83	Levies taxes
83-116-A	9-30-83	Amends § 2 of Ord. No. 81-11
83-120	(see § 4)	Rezoning
83-121	(see § 6)	Rezoning
83-123	(see § 2)	Rezoning
83-124	(see § 2)	Rezoning
83-126	10-14-83	Rezoning
83-127	(see § 2)	Rezoning
83-128	10-14-83	Amends specific plan and community plan

Ordinance Number	Effective Date	Subject
83-128-A	(see § 3)	Rezoning
83-129	(see § 3)	Rezoning
83-130	(see § 3)	Rezoning
83-132	10-21-83	Amends official plan line
83-133	(see § 2)	Rezoning
83-135	(see § 3)	Rezoning
83-137	11-11-83	Adopts official plan line
83-138	(see § 5)	Rezoning
83-139	(see § 2)	Rezoning
83-140	(see § 3)	Rezoning
83-142	(see § 3)	Rezoning
83-143	11-18-83	Amends specific plan
83-145	11-25-83	Rezoning
83-146	(see § 2)	Rezoning
83-147	(see § 2)	Rezoning
83-151	(see § 3)	Rezoning
83-152	(see § 5)	Rezoning
83-154	(see § 4)	Rezoning
83-155	(see § 2)	Rezoning
83-156	12-16-83	Amends Ord. No. 82-107
83-157	12-16-83	Amends Ord. No. 82-62
83-158	12-16-83	Amends Ord. No. 83-44
83-159	(see § 5)	Rezoning
83-160	(see § 3)	Rezoning
83-161	(see § 4)	Rezoning
83-164	(see § 5)	Rezoning
83-165	(see § 4)	Rezoning
83-167	(see § 3)	Rezoning
83-168	1-20-84	Amends specific and community plans
83-169	(see § 3)	Rezoning
83-170	(see § 2)	Rezoning
83-171	(see § 2)	Rezoning
84-1	(see § 2)	Rezoning
84-3	1-10-84	Rezoning
84-4	1-10-84	Amends Ord. No. 83-116, restating § 3 for clarification
84-5	(see § 2)	Rezoning
84-6	(see § 3)	Rezoning
84-7	2-17-84	Adopts official plan line
84-9	2-24-84	Rezoning
84-10	2-24-84	Rezoning
84-11	3- 2-84	Rezoning
84-12	3- 2-84	Rezoning
84-13	3- 2-84	Rezoning
84-14	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
84-15	(see § 2)	Rezoning
84-17	(see § 2)	Rezoning
84-19	(see § 3)	Rezoning
84-21	(see § 4)	Rezoning
84-22	(see § 2)	Rezoning
84-23	(see § 3)	Rezoning
84-24	(see § 4)	Rezoning
84-24A	(see § 3)	Rezoning
84-25	(see § 3)	Rezoning
84-26	(see § 2)	Rezoning
84-27	(see § 3)	Rezoning
84-30	(see § 3)	Rezoning
84-31	(see § 2)	Rezoning
84-32	(see § 2)	Rezoning
84-33	4-20-84	Rezoning
84-34	4-20-84	Amends Ord. No. 81-138, § 3, effective date
84-35	4-20-84	Rezoning
84-36	(see § 2)	Rezoning
84-37	(see § 3)	Rezoning
84-39	(see § 4)	Rezoning
84-40	(see § 3)	Rezoning
84-41	(see § 2)	Rezoning
84-44	5- 4-84	Amends specific plan and community plan
84-45	(see § 2)	Rezoning
84-46	(see § 2)	Rezoning
84-48	5-11-84	Amends specific plan and community plan
84-49	(see § 2)	Rezoning
84-50	(see § 3)	Rezoning
84-51	(see § 2)	Rezoning
84-52	(see § 2)	Rezoning
84-55	(see § 4)	Rezoning
84-56	(see § 3)	Rezoning
84-57	(see § 3)	Rezoning
84-59	(see § 3)	Rezoning
84-60	(see § 4)	Rezoning
84-62	6- 8-84	Grants cable franchise
84-63	6- 8-84	Amends specific and community plans
84-64	(see § 3)	Rezoning
84-65	(see § 3)	Rezoning
84-67	(see § 3)	Rezoning
84-68	(see § 4)	Rezoning
84-69	(see § 2)	Rezoning
84-70	(see § 2)	Rezoning

Ordinance Number	Effective Date	Subject
84-71	(see § 3)	Rezoning
84-72	(see § 2)	Rezoning
84-73	(see § 4)	Rezoning
84-74	6-22-84	Rezoning
84-75	(see § 3)	Rezoning
84-76	(see § 2)	Rezoning
84-77	(see § 3)	Rezoning
84-78	(see § 2)	Rezoning
84-80	(see § 4)	Rezoning
84-81	(see § 2)	Rezoning
84-84	7-13-84	Adopts official plan line
84-85	(see § 3)	Rezoning
84-86	(see § 2)	Rezoning
84-87	(see § 3)	Rezoning
84-88	(see § 3)	Rezoning
84-89	(see § 3)	Rezoning
84-90	7-20-84	Amends specific plan
84-91	(see § 4)	Rezoning
84-94	7-27-84	Rezoning
84-95	7-27-84	Rezoning
84-96	(see § 3)	Rezoning
84-97	(see § 2)	Rezoning
84-98	7-27-84	Rezoning
84-99	(see § 2)	Rezoning
84-100	(see § 2)	Rezoning
84-101	(see § 4)	Rezoning
84-102	(see § 3)	Rezoning
84-102A	(see § 4)	Rezoning
84-103	(see § 4)	Rezoning
84-104	(see § 2)	Rezoning
84-105	(see § 2)	Rezoning
84-106	(see § 4)	Rezoning
84-107	(see § 4)	Rezoning
84-108	(see § 3)	Rezoning
84-109	8-31-84	Amends Ord. No. 84-39, § 1
84-110	(see § 2)	Rezoning
84-111	(see § 4)	Rezoning
84-112	(see § 4)	Rezoning
84-113	(see § 2)	Rezoning
84-114	(see § 3)	Rezoning
84-115	(see § 3)	Rezoning
84-116	(see § 3)	Rezoning
84-117	(see § 2)	Rezoning
84-118	(see § 2)	Rezoning
84-119	9-28-84	Rezoning
84-120	(see § 5)	Rezoning

Ordinance Number	Effective Date	Subject
84-121	9-28-84	Rezoning
84-124	(see § 3)	Rezoning
84-125	(see § 4)	Rezoning
84-126	(see § 3)	Rezoning
84-127	10-12-84	Adopts official plan line
84-128	(see § 3)	Rezoning
84-129	10-12-84	Adopts official plan line
84-130	10-12-84	Adopts official plan line
84-131	(see § 3)	Rezoning
84-132	(see § 3)	Rezoning
84-134	10-19-84	Rezoning
84-135	(see § 4)	Rezoning
84-136	11- 2-84	Rezoning
84-137	(see § 2)	Rezoning
84-138	(see § 3)	Rezoning
84-139	(see § 2)	Rezoning
84-140	11- 2-84	Amends Ord. No. 80-172, § 2
84-141	11- 9-84	Rezoning
84-142	(see § 4)	Rezoning
84-143	11- 9-84	Amends specific plan and community plan
84-144	(see § 3)	Rezoning
84-145	11- 9-84	Amends area specific plan
84-146	(see § 4)	Rezoning
84-147	(see § 2)	Rezoning
84-148	11-16-84	Rezoning
84-149	11-16-84	Rezoning
84-150	(see § 2)	Rezoning
84-151	(see § 2)	Rezoning
84-152	(see § 4)	Rezoning
84-153	(see § 4)	Rezoning
84-154	(see § 3)	Rezoning
84-157	(see § 3)	Rezoning
84-158	(see § 5)	Rezoning
84-159	(see § 4)	Rezoning
84-160	(see § 3)	Rezoning
84-161	(see § 3)	Rezoning
84-162	12-14-84	Amends Ord. No. 81-137, § 2
84-163	12-14-84	Amends one-way street traffic schedule
84-164	(see § 4)	Rezoning
84-165	(see § 3)	Rezoning
84-166	(see § 2)	Rezoning
84-167	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
84-170	(see § 3)	Rezoning
84-171	1- 4-85	Amends area specific plan and community plan
84-172	(see § 4)	Rezoning
84-173	1-11-85	Adds no-stopping tow-away zone
84-174	(see § 3)	Rezoning
84-175	(see § 4)	Rezoning
84-176	(see § 4)	Rezoning
84-177	(see § 3)	Rezoning
84-178	(see § 2)	Rezoning
84-179	(see § 3)	Rezoning
84-180	(see § 4)	Rezoning
84-181	(see § 4)	Rezoning
84-182	1-18-85	Adopts community redevelopment plan
85-1	(see § 30)	Rezoning
85-2	2- 8-85	Amends Exhibit L of Ord. No. 81-95
85-4	(see § 3)	Rezoning
85-5	2-15-85	Rezoning
85-6	2-15-85	Rezoning
85-7	(see § 2)	Rezoning
85-8	(see § 2)	Rezoning
85-10	2-15-85	Amends Exhibit L of Ord. No. 84-125
85-11	(see § 2)	Rezoning
85-12	(see § 2)	Rezoning
85-13	(see § 2)	Rezoning
85-14	(see § 2)	Rezoning
85-15	(see § 2)	Rezoning
85-16	(see § 3)	Rezoning
85-17	3- 1-85	Rezoning
85-18	3- 1-85	Rezoning
85-19	3- 1-85	Rezoning
85-20	3- 1-85	Amends Exhibit L of Ord. No. 83-145
85-21	(see § 4)	Rezoning
85-24	3-22-85	Rezoning
85-25	(see § 3)	Rezoning
85-26	3-22-85	Rezoning
85-27	3-22-85	Rezoning
85-28	3-22-85	Rezoning
85-29	(see § 2)	Rezoning
85-30	(see § 3)	Rezoning
85-32	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
85-33	(see § 3)	Rezoning
85-34	(see § 2)	Rezoning
85-35	(see § 2)	Rezoning
85-36	(see § 4)	Rezoning
85-39	(see § 2)	Rezoning
85-41	(see § 3)	Rezoning
85-42	(see § 2)	Rezoning
85-43	(see § 2)	Rezoning
85-44	(see § 2)	Rezoning
85-47	(see § 3)	Rezoning
85-48	(see § 3)	Rezoning
85-50	(see § 3)	Rezoning
85-51	(see § 2)	Rezoning
85-52	(see § 3)	Rezoning
85-53	(see § 3)	Rezoning
85-54	5-17-85	Rezoning
85-55	(see § 2)	Rezoning
85-56	(see § 2)	Rezoning
85-57	5-17-85	Amends Ord. No. 84-157 legal description
85-58	5-17-85	Repeals Ord. No. 84-97
85-61	(see § 4)	Rezoning
85-62	5-31-85	Repeals Ord. No. 83-167
85-63	6- 7-85	Rezoning
85-64	(see § 2)	Rezoning
85-65	(see § 2)	Rezoning
85-66	(see § 2)	Rezoning
85-67	6- 7-85	Adopts official plan line
85-68	(see § 4)	Rezoning
85-70	(see § 3)	Rezoning
85-71	(see § 2)	Rezoning
85-73	(see § 3)	Rezoning
85-74	6-28-85	Rezoning
85-75	(see § 2)	Rezoning
85-76	(see § 2)	Rezoning
85-77	(see § 4)	Rezoning
85-78	(see § 3)	Rezoning
85-79	6-28-85	Rezoning
85-81	6-28-85	Amends specific and community plans
85-82	(see § 4)	Rezoning
85-83	(see § 2)	Rezoning
85-84	(see § 4)	Rezoning
85-85	(see § 3)	Rezoning
85-86	7- 5-85	Amends Ord. No. 83-97 legal description

Ordinance Number	Effective Date	Subject
85-87	7-12-85	Amends Ord. No. 85-16 legal description
85-90	7-12-85	No stopping tow-away zones
85-92	7-19-85	Amends Ord. No. 84-152 legal description
85-93	(see § 2)	Rezoning
85-94	(see § 3)	Rezoning
85-95	(see § 3)	Rezoning
85-96	(see § 3)	Rezoning
85-97	8-16-85	Amends Ord. No. 85-41 legal description
85-98	8-16-85	Amends Ord. No. 85-48 legal description
85-101	(see § 4)	Rezoning
85-102	8-16-85	Rezoning
85-103	(see § 4)	Rezoning
85-104	(see § 4)	Rezoning
85-105	(see § 3)	Rezoning
85-108	(see § 4)	Rezoning
85-109	8-30-85	Amends official plan line
85-110	(see § 4)	Rezoning
85-113	(see § 4)	Rezoning
85-114	(see § 3)	Rezoning
85-115	(see § 3)	Rezoning
85-116	9-13-85	Rezoning
85-120	(see § 4)	Rezoning
85-122	(see § 3)	Rezoning
85-123	(see § 4)	Rezoning
85-127	(see § 3)	Rezoning
85-128	(see § 3)	Rezoning
85-129	(see § 3)	Rezoning
85-130	9-27-85	Amends area specific plan
85-131	(see § 4)	Rezoning
85-132	(see § 4)	Rezoning
85-133	(see § 4)	Rezoning
85-134	(see § 3)	Rezoning
85-135	(see § 2)	Rezoning
85-136	(see § 2)	Rezoning
85-137	10-11-85	Amends area specific plan
85-138	(see § 4)	Rezoning
85-140	10-18-85	Adopts official plan lines
85-141		Number not used
85-142	(see § 2)	Rezoning
85-143	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
85-144	(see § 3)	Rezoning
85-145	(see § 2)	Rezoning
85-146	(see Ord. 85-115)	Corrects typographical error in 85-115
85-149	(see § 2)	Rezoning
85-150	11-15-85	Amends specific plan
85-151	11-15-85	Amends specific plan
85-152	(see § 4)	Rezoning
85-153	11-22-85	Rezoning
85-154	(see § 3)	Rezoning
85-155	(see § 4)	Rezoning
85-156	(see § 2)	Rezoning
85-157	(see § 3)	Rezoning
85-159	(see § 2)	Rezoning
85-160	(see § 2)	Rezoning
85-161	11-22-85	Adopts official plan lines
85-162	(see § 3)	Rezoning
85-163	(see § 3)	Rezoning
85-164	(see § 4)	Rezoning
85-165	(see § 2)	Rezoning
85-166	(see § 3)	Rezoning
85-168	(see § 4)	Rezoning
85-169	11-29-85	Amends specific plan
85-170	12-13-85	Rezoning
85-171	12-13-85	Rezoning
85-172	(see § 2)	Rezoning
85-173	(see § 3)	Rezoning
85-175	(see § 3)	Rezoning
85-176	(see § 2)	Rezoning
85-177	(see § 2)	Rezoning
85-178	(see § 2)	Rezoning
85-179	(see § 4)	Rezoning
85-181	(see § 3)	Rezoning
85-182	(see § 3)	Rezoning
85-184	(see § 3)	Rezoning
85-188	(see § 3)	Rezoning
85-189	(see § 4)	Rezoning
85-190	1-17-86	Adopts official plan lines
85-192	(see § 2)	Rezoning
85-193	(see § 3)	Rezoning
85-194	(see § 3)	Rezoning
85-195	(see § 3)	Rezoning
85-198	(see § 3)	Amends specific plan
86-1	(see § 3)	Rezoning
86-2	(see § 2)	Rezoning
86-3	(see § 3)	Rezoning
86-4	2-14-86	Adopts official plan lines

Ordinance Number	Effective Date	Subject
86-5	(see § 2)	Rezoning
86-6	(see § 4)	Rezoning
86-7	(see § 3)	Rezoning
86-8	(see § 2)	Rezoning
86-9	(see § 3)	Rezoning
86-10	(see § 3)	Rezoning
86-11	(see § 3)	Rezoning
86-12	(see § 3)	Rezoning
86-13	2-28-86	Adopts community redevelopment plan
86-14	2-28-86	Amends area specific plan
86-15	(see § 3)	Rezoning
86-16	3- 7-86	Rezoning
86-17	(see § 3)	Rezoning
86-19	(see § 2)	Rezoning
86-20	(see § 4)	Rezoning
86-21	(see § 2)	Rezoning
86-23	3-14-86	Amends specific plan
86-24	(see § 2)	Rezoning
86-25	(see § 2)	Rezoning
86-27	3-28-86	Amends Ord. No. 85-12
86-28	3-28-86	Amends specific plan
86-29	(see § 4)	Rezoning
86-30	(see § 3)	Rezoning
86-31	(see § 3)	Rezoning
86-32	3-28-86	Amends area specific plan
86-34	(see § 4)	Rezoning
86-35	(see § 2)	Rezoning
86-36	(see § 3)	Rezoning
86-37	(see § 2)	Rezoning
86-38	(see § 2)	Rezoning
86-40	(see § 2)	Rezoning
86-42	(see § 4)	Rezoning
86-43	(see § 2)	Rezoning
86-44	(see § 5)	Rezoning
86-45	(see § 4)	Rezoning
86-46	(see § 3)	Rezoning
86-47	(see § 4)	Rezoning
86-48	(see § 2)	Rezoning
86-49	(see § 2)	Rezoning
86-50	(see § 2)	Rezoning
86-52	(see § 2)	Rezoning
86-53	(see § 2)	Rezoning
86-54	(see § 2)	Rezoning
86-55	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
86-56	(see § 3)	Rezoning
86-57	(see § 3)	Amends development agreement
86-59	(see § 4)	Rezoning
86-60	(see § 2)	Rezoning
86-61	(see § 4)	Rezoning
86-62	(see § 3)	Rezoning
86-63	(see § 3)	Rezoning
86-64	(see § 3)	Rezoning
86-65	(see § 3)	Rezoning
86-66	(see § 3)	Rezoning
86-67	5-30-86	Amends specific plan
86-68	(see § 2)	Rezoning
86-69	(see § 2)	Rezoning
86-72	(see § 2)	Rezoning
86-73	6-13-86	Amends Ord. No. 80-108
86-74	6-13-86	Adopts official plan lines
86-75	(see § 4)	Rezoning
86-76	(see § 3)	Rezoning
86-77	(see § 3)	Rezoning
86-78	(see § 3)	Rezoning
86-79	6-20-86	Rezoning
86-80	(see § 3)	Rezoning
86-81	(see § 3)	Rezoning
86-82	(see § 3)	Rezoning
86-83	6-20-86	Adopts official plan lines
86-84	6-20-86	Adds no-stopping tow-away zone
86-85	(see § 3)	Rezoning
86-86	(see § 2)	Rezoning
86-87	(see § 3)	Rezoning
86-88	(see § 2)	Rezoning
86-89	(see § 2)	Rezoning
86-90	(see § 3)	Rezoning
86-91	(see § 3)	Rezoning
86-92	(see § 3)	Rezoning
86-93	7- 4-86	Rezoning
86-94	7- 4-86	Rezoning
86-96	(see § 2)	Rezoning
86-97	(see § 4)	Rezoning
86-98	(see § 7)	Amends air terminal master plan
86-99	(see § 4)	Rezoning
86-100	(see § 4)	Rezoning
86-101	(see § 3)	Rezoning
86-102	(see § 4)	Rezoning
86-103	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
86-104	7-18-86	Amends specific plan
86-105	(see § 3)	Rezoning
86-106	(see § 4)	Rezoning
86-107	(see § 4)	Rezoning
86-108	(see § 2)	Rezoning
86-109	(see § 3)	Rezoning
86-110	7-25-86	Amends specific plan
86-111	(see § 2)	Rezoning
86-112	(see § 4)	Rezoning
86-113	6-25-86	Levies property tax
86-114	(see § 3)	Rezoning
86-115	8- 8-86	Amends Ord. No. 85-105
86-116	(see § 3)	Rezoning
86-117	(see § 2)	Rezoning
86-118	8- 8-86	Adopts official plan lines
86-120	(see § 4)	Rezoning
86-121	(see § 2)	Rezoning
86-122	(see § 2)	Rezoning
86-123	(see § 2)	Rezoning
86-124	(see § 2)	Rezoning
86-125	(see § 2)	Rezoning
86-126	(see § 3)	Rezoning
86-127	(see § 4)	Rezoning
86-129	(see § 4)	Rezoning
86-130	(see § 2)	Rezoning
86-135	9-12-86	Adopts official plan lines
86-136	9-12-86	Adopts official plan lines
86-137	(see § 4)	Rezoning
86-138	(see § 3)	Rezoning
86-139	(see § 4)	Rezoning
86-140	(see § 4)	Rezoning
86-141	(see § 3)	Rezoning
86-142	(see § 2)	Rezoning
86-143	(see § 4)	Rezoning
86-144	(see § 3)	Rezoning
86-144A	(see § 3)	Rezoning
86-145	9-26-86	Rescinds property tax levied by Ord. No. 86-113
86-146	(see § 2)	Rezoning
86-147	(see § 4)	Rezoning
86-151	(see § 4)	Rezoning
86-152	(see § 2)	Rezoning
86-153	(see § 4)	Rezoning
86-154	(see § 3)	Rezoning
86-156	10-24-86	Adds no-stopping tow-away zones

Ordinance Number	Effective Date	Subject
86-157	(see § 4)	Rezoning
86-158	(see § 3)	Rezoning
86-159	(see § 4)	Rezoning
86-160	(see § 3)	Rezoning
86-162	(see § 3)	Rezoning
86-163	(see § 4)	Rezoning
86-164	(see § 3)	Rezoning
86-165	(see § 4)	Rezoning
86-166		Number not used
86-167	(see § 3)	Rezoning
86-168	(see § 4)	Rezoning
86-169	(see § 4)	Rezoning
86-170	(see § 2)	Rezoning
86-171	12- 5-86	Adds no-stopping tow-away zone
86-172	12- 5-86	Adds no-stopping tow-away zone
86-173	12- 5-86	Amends specific plan
86-174	(see § 4)	Rezoning
86-175	(see § 4)	Rezoning
86-176	(see § 2)	Rezoning
86-177	12-19-86	Amends specific plan
86-178	(see § 3)	Rezoning
86-180	(see § 2)	Rezoning
86-181	12-26-86	Amends specific plan
86-182	(see § 4)	Rezoning
86-184	(see § 2)	Rezoning
86-185	(see § 3)	Rezoning
86-186	1- 9-87	Amends Ord. No. 85-173
86-187	12- 9-86	Amends specific plan
86-188	(see § 2)	Rezoning
86-190	(see § 3)	Rezoning
86-191	(see § 3)	Rezoning
86-192	1-16-87	Amends Ord. No. 86-124
86-193	1-16-87	Amends Ord. No. 86-141
86-194	(see § 2)	Rezoning
86-195	1-16-87	Amends Exh. "L" of Ord. No. 85-5
86-196	1-16-87	Amends Ord. No. 85-54
86-197	1-16-87	Amends Exh. "L" of Ord. No. 85-153
86-198	1-16-87	South Angus St. Redev. Project
86-199	1-16-87	Central Business Dist. Project One
86-200	1-16-87	West Fresno Project One
86-201	1-16-87	West Fresno Project Two

Ordinance Number	Effective Date	Subject
86-202	1-16-87	West Fresno Project Three
86-203	1-16-87	Southwest Fresno General Neighborhood Renewal Area Project
86-204	1-16-87	Mariposa Project
86-205	1-16-87	Fruit/Church Project
86-206	(see § 6)	Rezoning
86-207	(see § 4)	Rezoning
86-208	(see § 3)	Rezoning
86-209	(see § 4)	Rezoning
86-210	(see § 2)	Rezoning
86-211	(see § 4)	Rezoning
86-212	(see § 3)	Rezoning
86-213	(see § 3)	Rezoning
86-214	(see § 3)	Rezoning
87-2	(see § 3)	Rezoning
87-3	2- 6-87	Amends specific plan
87-4	(see § 4)	Rezoning
87-6	(see § 6)	Rezoning
87-6	(see § 3)	Rezoning
87-9	(see § 4)	Rezoning
87-10	(see § 4)	Rezoning
87-11	(see § 4)	Rezoning
87-12	2-20-87	Amends Ord. No. 86-151
87-14	2-20-87	Adopts specific plan
87-15	(see § 3)	Rezoning
87-16	2-27-87	Amends Ord. No. 86-55
87-17	(see § 3)	Rezoning
87-18	2-27-87	Amends Exh. "L" of Ord. No. 85-133
87-19	(see § 3)	Rezoning
87-20	(see § 4)	Rezoning
87-21	(see § 4)	Rezoning
87-23	(see § 3)	Rezoning
87-24	(see § 2)	Rezoning
87-25	(see § 4)	Rezoning
87-26	(see § 5)	Rezoning
87-27	3-27-87	Amends Ord. No. 85-68
87-28	(see § 3)	Rezoning
87-30	(see § 3)	Rezoning
87-31	(see § 3)	Rezoning
87-33	(see § 3)	Rezoning
87-35	4-24-87	Amends specific plan
87-36	(see § 5)	Rezoning
87-37	(see § 3)	Rezoning
87-38	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
87-39	(see § 3)	Rezoning
87-41	(see § 5)	Rezoning
87-42	(see § 5)	Rezoning
87-43	(see § 4)	Rezoning
87-44	(see § 4)	Rezoning
87-46	(see § 3)	Rezoning
87-47	(see § 4)	Rezoning
87-49	(see § 4)	Rezoning
87-50	(see § 4)	Rezoning
87-51	(see § 3)	Rezoning
87-52	(see § 4)	Rezoning
87-53	(see § 5)	Rezoning
87-54	(see § 3)	Rezoning
87-55	(see § 4)	Rezoning
87-56	(see § 4)	Rezoning
87-57	(see § 4)	Rezoning
87-60	(see § 5)	Rezoning
87-61	(see § 3)	Rezoning
87-63	7- 3-87	Rezoning
87-64	7- 3-87	Adopts official plan line
87-65	7- 3-87	Adopts official plan line
87-66	(see § 3)	Rezoning
87-67	(see § 4)	Rezoning
87-68	(see § 5)	Rezoning
87-69	(see § 3)	Rezoning
87-70	(see § 3)	Rezoning
87-73	(see § 4)	Rezoning
87-74	(see § 5)	Rezoning
87-75	(see § 5)	Rezoning
87-77	(see § 4)	Rezoning
87-78	(see § 4)	Rezoning
87-81	7-24-87	Amends Ord. No. 87-68
87-83	(see § 3)	Rezoning
87-84	6-30-87	Rescinds property tax levy
87-86	(see § 4)	Rezoning
87-87	8- 7-87	Adds no stopping tow-away zones
87-88	(see § 3)	Rezoning
87-89	(see § 5)	Rezoning
87-91	(see § 3)	Rezoning
87-92	(see § 3)	Rezoning
87-93	(see § 3)	Rezoning
87-94	(see § 6)	Rezoning
87-95	9-18-87	Amends § 2 of Ord. No. 86-3
87-96	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
87-97	(see § 5)	Rezoning
87-98	9-18-87	Adopts official plan line
87-99	(see § 5)	Rezoning
87-100	(see § 3)	Rezoning
87-101	(see § 5)	Rezoning
87-102	9-25-87	Rezoning
87-103	(see § 3)	Rezoning
87-104	(see § 4)	Rezoning
87-105	(see § 3)	Rezoning
87-106	(see § 4)	Rezoning
87-107	(see § 3)	Rezoning
87-108	(see § 3)	Rezoning
87-109	(see § 3)	Rezoning
87-111	(see § 4)	Rezoning
87-113	(see § 4)	Rezoning
87-114	(see § 3)	Rezoning
87-115	(see § 4)	Rezoning
87-116	(see § 5)	Rezoning
87-117	(see § 4)	Rezoning
87-118	10-23-87	Amends § 3 of Ord. No. 86-81
87-119	(see § 3)	Rezoning
87-120	(see § 5)	Rezoning
87-121	10-23-87	Amends specific plan
87-122	(see § 5)	Rezoning
87-123	(see § 3)	Rezoning
87-124	(see § 5)	Rezoning
87-125	(see § 5)	Rezoning
87-126	(see § 5)	Rezoning
87-127	(see § 4)	Rezoning
87-128	(see § 5)	Rezoning
87-129	(see § 4)	Rezoning
87-130	10-30-87	Adopts amended official plan line
87-131	(see § 4)	Rezoning
87-132	(see § 5)	Rezoning
87-133	(see § 6)	Rezoning
87-134	(see § 3)	Rezoning
87-135	(see § 4)	Rezoning
87-140	(see § 4)	Rezoning
87-141	(see § 4)	Rezoning
87-142	(see § 4)	Rezoning
87-143	10-13-87	Receives distribution of parimutuel funds
87-144	(see § 5)	Rezoning
87-145	11-27-87	Designates truck routes
87-146	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
87-147	(see § 4)	Rezoning
87-151	(see § 5)	Rezoning
87-153	12-11-87	Amends Ord. No. 87-129
87-154	(see § 3)	Rezoning
87-155	12-11-87	Authorizes tax levy for community facilities district
87-156	12-11-87	60-day suspension of Code & 12-404-K
87-157	(see § 5)	Rezoning
87-158	(see § 4)	Rezoning
87-162	(see § 4)	Rezoning
87-163	12-18-87	Amends area specific plan
87-164	(see § 5)	Rezoning
87-165	(see § 3)	Rezoning
87-166	12-25-87	Amends area specific plan
87-167	(see § 5)	Rezoning
87-168	(see § 6)	Rezoning
87-171	1- 8-88	Amends area specific plan
87-172	(see § 2)	Rezoning
87-173	1-22-88	Rezoning
87-174	(see § 5)	Rezoning
87-176	1-22-88	Rezoning
87-178	(see § 4)	Rezoning
87-180	1-22-88	Rezoning
87-181	(see § 4)	Rezoning
88-1	(see § 4)	Rezoning
88-2	2- 5-88	Amends Ord. No. 87-122
88-4	(see § 4)	Rezoning
88-7	(see § 4)	Rezoning
88-9	2-12-88	Adopts new area specific plan
88-10	(see § 5)	Rezoning
88-11	2-19-88	Rezoning
88-13	(see § 4)	Rezoning
88-15	2-26-88	Rezoning
88-16	(see § 4)	Rezoning
88-18	(see § 5)	Rezoning
88-19	(see § 6)	Rezoning
88-20	3- 4-88	Amends Ord. No. 87-94
88-21	3- 4-88	Amends Ord. No. 87-174
88-22	3- 4-88	Amends Ord. No. 87-172
88-23	3- 4-88	Amends urban renewal plan for Mariposa project

Ordinance Number	Effective Date	Subject
88-26	(see § 5)	Rezoning
88-27	(see § 4)	Rezoning
88-28	(see § 8)	Rezoning
88-29	3-25-88	Rezoning
88-30	(see § 5)	Rezoning
88-33	3-25-88	Adopts official plan line
88-39	(see § 6)	Rezoning
88-40	(see § 5)	Rezoning
88-42	4- 8-88	Rezoning
88-43	(see § 4)	Rezoning
88-44	4-15-88	Amends Ord. No. 88-29
88-45	4-15-88	Amends Ord. No. 88-26
88-47	(see § 6)	Rezoning
88-48	4-15-88	Rezoning
88-49	5- 6-88	Adds tow-away zone
88-50	5- 6-88	Adds diagonal parking zone
88-51	(see § 6)	Rezoning
88-52	(see § 6)	Rezoning
88-54	(see § 9)	Rezoning
88-55	(see § 5)	Rezoning
88-56	5-20-88	Rezoning
88-57	5-20-88	Amends Ord. No. 87-142
88-58	5-20-88	Amends Ord. No. 87-50
88-59	5-20-88	Amends Ord. No. 86-126
88-60	5-20-88	Amends Ord. No. 87-67
88-63	(see § 5)	Rezoning
88-64	6- 3-88	Declares reversion of Ord. No. 85-96
88-68	(see § 6)	Rezoning
88-69	6-10-88	Amends specific plan
88-70	(see § 5)	Rezoning
88-71	6-10-88	Rezoning
88-72	(see § 6)	Rezoning
88-73	(see § 6)	Rezoning
88-74	6-24-88	Amends Exhibit L of Ord. No. 88-7
88-75	(see § 5)	Rezoning
88-77	7- 1-88	Rezoning
88-78	7- 1-88	Rezoning
88-79	7- 1-88	Rezoning
88-80	7- 8-88	Rezoning
88-81	7- 8-88	Amends Ord. No. 87-157
88-82	7-22-88	Amends Official plan lines
88-83	(see § 7)	Rezoning
88-84	7-29-88	Rezoning

Ordinance Number	Effective Date	Subject
88-85	(see § 7)	Rezoning
88-86	7-29-88	Approves development agreement
88-87	(see § 5)	Rezoning
88-88	(see § 5)	Rezoning
88-89	7-29-88	Amends specific plan
88-90	(see § 5)	Rezoning
88-91	(see § 5)	Rezoning
88-92	(see § 6)	Rezoning
88-93	8-12-88	Rezoning
88-95	(see § 6)	Rezoning
88-96	8-18-88	Adopts redevelopment plan
88-97	8-26-88	Rezoning
88-98	(see § 7)	Rezoning
88-99	8-26-88	Adds tow-away zone
88-100	8-26-88	Amends Ord. No. 88-77
88-102	8-26-88	Rezoning
88-103	9-15-88	Rezoning
88-105	9-16-88	Amends specific plan
88-106	(see § 6)	Rezoning
88-107	(see § 6)	Rezoning
88-108	9-16-88	Rezoning
88-111	(see § 5)	Rezoning
88-112	(see § 5)	Rezoning
88-113	(see § 5)	Rezoning
88-114	(see § 5)	Rezoning
88-115	10-14-88	Amends Ord. No. 87-167
88-116	10-14-88	Amends urban renewal plan
88-117	(see § 5)	Rezoning
88-118	10-14-88	Rezoning
88-119	10-14-88	Rezoning
88-120	10-21-88	Adds one-way street
88-121	10-21-88	Amends Ord. No. 62
88-122	10-28-88	Amends Ord. No. 86-121
88-124	(see § 6)	Rezoning
88-125	11- 4-88	Rezoning
88-126	11- 4-88	Amends specific plan
88-127	(see § 6)	Rezoning
88-128	11- 4-88	Adopts official plan line
88-129	11-11-88	Amends specific plan
88-130	(see § 6)	Rezoning
88-131	(see § 4)	Rezoning
88-135	(see § 7)	Rezoning
88-136	(see § 4)	Rezoning
88-137	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
88-138	12- 9-88	Amends Ord. No. 88-15
88-140	(see § 4)	Rezoning
88-141	11- 8-88	Adopts modifications of council districts
88-142	(see § 4)	Rezoning
88-144	(see § 5)	Rezoning
88-147	(see § 4)	Rezoning
88-149	1-12-89	Repeals specific plans
88-150	(see § 8)	Rezoning
88-151	1-13-89	Amends specific plan
88-152	(see § 5)	Rezoning
88-153	(see § 6)	Rezoning
88-154	(see § 5)	Rezoning
89-1	(see § 3)	Rezoning
89-4	1- 3-89	Moratorium on off-site billboards
89-5	(see § 5)	Rezoning
89-6	(see § 5)	Rezoning
89-7	(see § 5)	Rezoning
89-8	(see § 4)	Rezoning
89-11	2-24-88	Repeals specific plan
89-13	(see § 7)	Rezoning
89-14	(see § 4)	Rezoning
89-23	(see § 5)	Rezoning
89-24	(see § 3)	Rezoning
89-25	(see § 3)	Rezoning
89-27	(see § 6)	Rezoning
89-28	(see § 4)	Rezoning
89-29	(see § 6)	Rezoning
89-30	(see § 5)	Rezoning
89-31	(see § 5)	Rezoning
89-32	(see § 5)	Rezoning
89-33	(see § 6)	Rezoning
89-34	(see § 5)	Rezoning
89-35	(see § 6)	Rezoning
89-36	(see § 5)	Rezoning
89-37	(see § 4)	Rezoning
89-38	(see § 4)	Rezoning
89-39	(see § 4)	Rezoning
89-40	(see § 3)	Rezoning
89-42	(see § 4)	Rezoning
89-43	5-19-89	Amends specific plan
89-44	(see § 5)	Rezoning
89-45	5-19-89	Amends specific plan
89-46	(see § 5)	Rezoning
89-47	5-19-89	Adopts plan lines
89-49	5-26-89	Adds tow-away zones

Ordinance Number	Effective Date	Subject
89-52	(see § 3)	Rezoning
89-54	(see § 4)	Rezoning
89-55	(see § 4)	Rezoning
89-56	5- 2-89	Imposes moratorium on off-site billboards
89-57	6-16-89	Amends Ord. No. 88-43
89-58	(see § 4)	Rezoning
89-59	(see § 7)	Rezoning
89-60	(see § 5)	Rezoning
89-61	(see § 3)	Rezoning
89-62	(see § 5)	Rezoning
89-63	6-30-89	Amends specific plan
89-64	(see § 4)	Rezoning
89-68	(see § 5)	Rezoning
89-69	(see § 6)	Rezoning
89-70	7- 7-89	Amends Ord. No. 88-42
89-71	(see § 4)	Rezoning
89-72	(see § 4)	Rezoning
89-78	(see § 5)	Rezoning
89-79	(see § 5)	Rezoning
89-80	(see § 5)	Rezoning
89-81	(see § 5)	Rezoning
89-82	7-21-89	Amends Ord. No. 87-21
89-83	7- 1-89	Levies property tax
89-84	(see § 3)	Rezoning
89-87	(see § 4)	Rezoning
89-88	8-18-89	Amends Ord. No. 85-103
89-89	(see § 4)	Rezoning
89-90	(see § 3)	Rezoning
89-91	(see § 4)	Rezoning
89-92	(see § 4)	Rezoning
89-93	(see § 6)	Rezoning
89-94	(see § 5)	Rezoning
89-95	9-15-89	Rezoning
89-96	9-15-89	Amends Ord. No. 88-117
89-97	(see § 4)	Rezoning
89-98	(see § 5)	Rezoning
89-99	(see § 4)	Rezoning
89-100	9-26-89	Amends Ord. No. 87-81
89-101	9-22-89	Adds no-stopping tow-away zone
89-103	(see § 4)	Rezoning
89-104	(see § 4)	Rezoning
89-105	(see § 3)	Rezoning
89-106	(see § 4)	Amends development agreement for Dominion community

Ordinance Number	Effective Date	Subject
89-107	(see § 4)	Rezoning
89-108	(see § 3)	Rezoning
89-109	(see § 7)	Rezoning
89-111	(see § 6)	Rezoning
89-112	10-20-89	Amends Ord. No. 87-63
89-113	(see § 4)	Rezoning
89-114	(see § 5)	Rezoning
89-115	(see § 4)	Rezoning
89-117	(see § 5)	Rezoning
89-118	10-27-89	Rezoning
89-119	(see § 6)	Rezoning
89-122	(see § 3)	Rezoning
89-123	(see § 4)	Rezoning
89-126	(see § 5)	Rezoning
89-127	(see § 6)	Rezoning
89-128	(see § 5)	Rezoning
89-129	(see § 7)	Rezoning
89-131	(see § 4)	Rezoning
89-132	(see § 5)	Rezoning
89-133	(see § 5)	Rezoning
89-137	12-15-89	Amends Ord. No. 89-104
89-139	(see § 4)	Rezoning
89-141	(see § 5)	Rezoning
89-142	1-12-90	Amends Ord. No. 89-72
89-143	(see § 4)	Rezoning
89-144	(see § 6)	Rezoning
89-146	(see § 4)	Rezoning
90-3	2- 9-90	Amends Ord. No. 89-117
90-4	2- 9-90	Rezoning
90-5	2- 9-90	Rezoning
90-6	2- 9-90	Rezoning
90-8	2- 9-90	Adds no-stopping tow away zones
90-9	2-23-90	Amends specific plan
90-10	2-23-90	Rezoning
90-12	(see § 3)	Rezoning
90-13	(see § 4)	Rezoning
90-14	2- 6-90	Amends specific plan
90-15	(see § 4)	Rezoning
90-16	(see § 4)	Rezoning
90-17	(see § 4)	Rezoning
90-19	3-23-90	Rezoning
90-20	(see § 5)	Rezoning
90-21	(see § 5)	Rezoning
90-22	(see § 3)	Rezoning
90-23	4-20-90	Amends Ord. No. 87-43
90-24	4-20-90	Amends Ord. No. 88-147

Ordinance Number	Effective Date	Subject
90-25	(see § 4)	Rezoning
90-26	(see § 4)	Rezoning
90-29	3-20-90	Extends moratorium on off-site billboards
90-30	(see § 5)	Rezoning
90-32	(see § 4)	Rezoning
90-33	5- 4-90	Amends Ord. No. 87-37
90-34	5- 4-90	Amends Ord. No. 89-38
90-35	(see § 5)	Rezoning
90-36	(see § 4)	Rezoning
90-37	(see § 5)	Rezoning
90-38	(see § 4)	Rezoning
90-39	(see § 4)	Rezoning
90-41	(see § 5)	Rezoning
90-42	(see § 5)	Rezoning
90-43	5-18-90	Amends specific plan
90-44	(see § 6)	Rezoning
90-47	6- 8-90	Rezoning
90-48	(see § 4)	Rezoning
90-49	6-29-90	Amends Ord. No. 89-33
90-50	7- 6-90	Amends specific plan
90-51	(see § 9)	Rezoning
90-52	(see § 4)	Rezoning
90-56	(see § 3)	Rezoning
90-57	(see § 5)	Rezoning
90-58	(see § 4)	Rezoning
90-59	(see § 5)	Rezoning
90-60	6-26-90	Levies tax on personal property
90-62	(see § 6)	Rezoning
90-64	7-27-90	Rezoning
90-65	(see § 4)	Rezoning
90-66	(see § 4)	Rezoning
90-67	(see § 4)	Rezoning
90-68	8-24-90	Amends Ord. No. 89-109
90-69	8-24-90	Amends Ord. No. 89-105
90-75	8-24-90	Amends specific plan
90-76	(see § 7)	Rezoning
90-77	8-24-90	Amends specific plan
90-78	8-24-90	Rezoning
90-79	(see § 5)	Rezoning
90-80	(see § 4)	Rezoning
90-81	(see § 4)	Rezoning
90-82	(see § 5)	Rezoning
90-83	8-31-90	Adopts plan lines
90-85	(see § 4)	Rezoning
90-89	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
90-90	(see § 3)	Rezoning
90-91	9-28-90	Omitted per city
90-93	(see § 4)	Rezoning
90-94	(see § 4)	Rezoning
90-95	(see § 4)	Rezoning
90-96	(see § 6)	Rezoning
90-98	10-19-90	Amends Ord. No. 89-146
90-99	(see § 4)	Rezoning
90-100	(see § 7)	Rezoning
90-101	(see § 4)	Rezoning
90-102	(see § 4)	Rezoning
90-103	(see § 4)	Rezoning
90-104	11- 2-90	Rezoning
90-105	(see § 4)	Rezoning
90-106	(see § 5)	Rezoning
90-109	11- 9-90	Repealed Ord. No. 90-91
90-111	11- 9-90	Amends Ord. No. 89-70
90-114	(see § 4)	Rezoning
90-121	12- 7-90	Amends Ord. No. 90-30
90-122	(see § 4)	Rezoning
90-124	12- 7-90	Rezoning
90-125	(see § 4)	Rezoning
90-125A	(see § 5)	Rezoning
90-128	12-14-90	Amends Ord. No. 90-10
90-131	(see § 5)	Rezoning
90-132	(see § 8)	Rezoning
90-133	12-28-90)	Rezoning
90-134	12-28-90	No Stopping Tow-Away Zones
90-135	(see § 5)	Rezoning
90-136	(see § 4)	Rezoning
90-137	(see § 4)	Rezoning
90-138	(see § 4)	Rezoning
90-139	(see § 4)	Rezoning
90-140	(see § 4)	Rezoning
90-141	(see § 5)	Rezoning
90-142	(see § 5)	Rezoning
90-143	(see § 5)	Rezoning
90-144	(see § 4)	Rezoning
91-1	(see § 5)	Rezoning
91-4	(see § 3)	Rezoning
91-6	(see § 4)	Rezoning
91-7	(see § 4)	Rezoning
91-8	(see § 4)	Rezoning
91-9	(see § 5)	Rezoning
91-10	(see § 4)	Rezoning
91-12	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
91-13	(see § 4)	Rezoning
91-15	(see § 5)	Rezoning
91-16	(see § 3)	Rezoning
91-17	(see § 4)	Rezoning
91-18	(see § 6)	Amends Ord. No. 80-108
91-20	(see § 4)	Rezoning
91-21	(see § 5)	Rezoning
91-22	(see § 5)	Rezoning
91-23	4-19-91	Adopts official plan line for the Church Avenue alignment from Peach Avenue to Clovis Avenue
91-24	(see § 5)	Rezoning
91-25	(see § 4)	Rezoning
91-26	4-26-91	Adopts specific plan
91-28	(see § 5)	Rezoning
91-29	(see § 5)	Rezoning
91-30	(see § 3)	Rezoning
91-31	(see § 5)	Rezoning
91-38	(see § 5)	Rezoning
91-39	5-24-91	Amends specific plan
91-40	(see § 4)	Rezoning
91-42	(see § 4)	Rezoning
91-43	(see § 4)	Rezoning
91-45	(see § 5)	Rezoning
91-47	6- 7-91	Repeals Ord. No. 91-27
91-50	(see § 4)	Rezoning
91-53	(see § 4)	Rezoning
91-54	(see § 4)	Rezoning
91-55	5-21-91	Moratorium on subdivision signs
91-59	(see § 5)	Rezoning
91-60	(see § 3)	Rezoning
91-63	7- 5-91	Amends Ord. No. 87-60
91-65	(see § 4)	Rezoning
91-66	(see § 4)	Rezoning
91-67	(see § 4)	Rezoning
91-70	6-27-91	Levies tax on personal property
91-71	(see § 4)	Rezoning
91-72	8-16-91	Rezoning
91-73	7-16-91	Amends specific plan
91-74	(see § 5)	Rezoning
91-75	(see § 5)	Rezoning
91-76	(see § 4)	Rezoning
91-77	(see § 4)	Rezoning
91-78	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
91-79	(see § 4)	Rezoning
91-80	(see § 4)	Rezoning
91-81	(see § 4)	Rezoning
91-82	(see § 4)	Rezoning
91-83	(see § 4)	Rezoning
91-84	(see § 4)	Rezoning
91-86	(see § 4)	Rezoning
91-87	(see § 4)	Rezoning
91-88	(see § 4)	Rezoning
91-89	(see § 4)	Rezoning
91-90	7-23-91	Moratorium on certain multiple-family residences
91-91	(see § 5)	Rezoning
91-92	(see § 7)	Rezoning
91-93	(see § 5)	Rezoning
91-94	(see § 4)	Rezoning
91-95	(see § 6)	Rezoning
91-96	9-13-91	Amends Ord. No. 87-123
91-97	(see § 5)	Rezoning
91-98	(see § 4)	Rezoning
91-99	(see § 4)	Rezoning
91-100	(see § 4)	Rezoning
91-101	(see § 5)	Rezoning
91-103	10-11-91	Adopts official plan line
91-105	(see § 4)	Rezoning
91-106	(see § 4)	Rezoning
91-107	(see § 4)	Rezoning
91-108	10-25-91	Amends Ord. No. 90-124
91-109	(see § 4)	Rezoning
91-110	(see § 4)	Rezoning
91-111	11- 8-91	Amends Ord. No. 91-29
91-113	(see § 7)	Rezoning
91-114	(see § 5)	Rezoning
91-115	(see § 4)	Rezoning
91-116	(see § 4)	Rezoning
91-120	(see § 5)	Rezoning
91-122	(see § 6)	Rezoning
91-123	(see § 5)	Rezoning
91-124	(see § 5)	Rezoning
91-126	(see § 4)	Rezoning
91-127	(see § 7)	Rezoning
91-129	(see § 4)	Rezoning
91-130	(see § 4)	Rezoning
91-131	(see § 4)	Rezoning
91-132	(see § 4)	Rezoning
91-133	(see § 6)	Rezoning

Ordinance Number	Effective Date	Subject
91-134	(see § 4)	Rezoning
92-1	(see § 4)	Rezoning
92-2	(see § 6)	Rezoning
92-3	(see § 4)	Rezoning
92-4	(see § 4)	Rezoning
92-10	3-13-92	Amends Ord. No. 91-114
92-11	(see § 4)	Rezoning
92-12	3-20-92	Adopts official plan line
92-13	3-27-92	Rezoning
92-14	(see § 6)	Rezoning
92-15	(see § 4)	Rezoning
92-16	4-17-92	Amends Ord. No. 91-17
92-17	4-17-92	Amends Ord. No. 91-107
92-18	4-17-92	Rezoning
92-19	5- 1-92	Approves development agreement
92-20	(see § 4)	Rezoning
92-21	5-8-92	Amends Ord. No. 90-30
92-23	5-8-92	Amends Ord. No. 71-116
92-24	5-8-92	Amends Ord. No. 87-14
92-25	5-15-92	Amends Ord. No. 90-133
92-29	(see § 4)	Rezoning
92-31	(see § 4)	Rezoning
92-32	(see § 5)	Rezoning
92-33	(see § 5)	Rezoning
92-34	(see § 5)	Rezoning
92-35	(see § 5)	Rezoning
92-36	7-10-92	Amends Ord. No. 90-76
92-37	7-10-92	Amends Ord. No. 91-100
92-38	6-9-92	Approves mitigation and plan line
92-39	(see § 4)	Rezoning
92-40	(see § 4)	Rezoning
92-41	(see § 6)	Rezoning
92-42	6-30-92	Tax levy for police and fire retirement
92-43	(see § 4)	Rezoning
92-44	7-31-92	Amends Ord. No. 81-144
92-52	8-21-92	Amends Ord. No. 91-1
92-53	(see § 4)	Rezoning
92-55	8-28-92	Amends urban renewal plan for Mariposa Project
92-57	(see § 4)	Rezoning
92-58	(see § 5)	Rezoning
92-59	(see § 4)	Rezoning
92-60	(see § 5)	Rezoning
92-61	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
92-62	9-18-92	Amends Ord. No. 91-92
92-64	(see § 4)	Rezoning
92-65	(see § 5)	Rezoning
92-66	(see § 4)	Rezoning
92-67	(see § 4)	Rezoning
92-68	(see § 6)	Rezoning
92-70	(see § 5)	Rezoning
92-70A	(see § 5)	Rezoning
92-71	10-16-92	Approves mitigation and adopts plan line
92-72	(see § 5)	Rezoning
92-74	(see § 5)	Rezoning
92-75	(see § 4)	Rezoning
92-76	(see § 7)	Rezoning
92-77	10-30-92	Amends air terminal master plan
92-78	11-6-92	Amends Ord. No. 89-144
92-79	(see § 6)	Rezoning
92-80	11-6-92	Rezoning
92-81	(see § 4)	Rezoning
92-82	(see § 5)	Rezoning
92-83	(see § 5)	Rezoning
92-84	(see § 5)	Rezoning
92-85	(see § 6)	Rezoning
92-89	(see § 3)	Rezoning
92-90	(see § 4)	Rezoning
92-91	(see § 6)	Rezoning
92-92	(see § 5)	Rezoning
92-93	(see § 4)	Rezoning
92-94	(see § 4)	Rezoning
92-95	(see § 4)	Rezoning
92-96	(see § 5)	Rezoning
92-102	(see § 6)	Rezoning
92-104	(see § 4)	Rezoning
92-105	(see § 4)	Rezoning
93-1	(see § 4)	Rezoning
93-3	(see § 5)	Rezoning
93-5	(see § 6)	Rezoning
93-6	(see § 4)	Rezoning
93-7	3- 5-93	Rezoning
93-8	(see § 4)	Rezoning
93-10	(see § 4)	Rezoning
93-11	(see § 4)	Rezoning
93-12	(see § 6)	Rezoning
93-15	(see § 4)	Rezoning
93-16	(see § 4)	Rezoning
93-17	3-16-93	Gen. elec. of 3-5-93

Ordinance Number	Effective Date	Subject
93-19	4-23-93	Rezoning
93-23	(see § 4)	Rezoning
93-24	(see § 4)	Rezoning
93-26	5-21-93	Rezoning
93-28	5-28-93	Development/Agreement
93-29	4-27-93	Rezoning
93-30	(see § 5)	Rezoning
93-34	(see § 4)	Rezoning
93-35	(see § 5)	Rezoning
93-36	(see § 7)	Rezoning
93-37	(see § 3)	Rezoning
93-38	6-18-93	Rezoning
93-39	6-25-93	Rezoning
93-40	(see § 4)	Rezoning
93-41	(see § 4)	Rezoning
93-42	(see § 2)	Suspended
93-43	6-29-93	Rezoning
93-44	(see § 6)	Rezoning
93-45	(see § 5)	Rezoning
93-46	(see § 4)	Rezoning
93-47	(see § 3	Rezoning
93-48	(see § 6)	Rezoning
93-49	(see § 5)	Rezoning
93-50	(see § 5)	Rezoning
93-54	(see § 5)	Rezoning
93-55	10- 1-93	Rezoning
93-56	(see § 4)	Rezoning
93-57	(see § 5)	Rezoning
93-58	(see § 4)	Rezoning
93-59	10- 1-93	Rezoning
93-61	10-29-93	Rezoning
93-62	(see § 4)	Rezoning
93-67	12- 3-93	Amends Ord. No. 93-50
93-69	(see § 6)	Rezoning
93-70	(see § 4)	Rezoning
93-72	(see § 4)	Rezoning
93-73	1- 7-94	Amends Ord. No. 93-70
93-74	(see § 4)	Rezoning
93-75	1 7-74	Rezoning
93-78	(see § 4)	Rezoning
93-79	(see § 4)	Rezoning
94-4	(see § 4)	Rezoning
94-7	(see § 5)	Rezoning
94-11	(see § 4)	Rezoning
94-12	(see § 4)	Rezoning
94-13	(see § 8)	Rezoning

Ordinance Number	Effective Date	Subject
94-14	(see § 4)	Rezoning
94-19	(see § 4)	Rezoning
94-20	(see § 5)	Rezoning
94-21	5- 6-94	Rezoning
94-22	5-13-94	Rezoning
94-24	(see § 4)	Rezoning
94-25	(see § 3)	Rezoning
94-26	(see § 5)	Rezoning
94-30	6- 4-94	Rezoning
94-31	(see § 4)	Rezoning
94-32	6- 4-94	Central Business Dist. Project
94-34	(see § 3)	Rezoning
94-35	6- 4-94	Industrial Development
94-43	7-15-94	Rezoning
94-44	7-22-94	Rezoning
94-46	7-22-94	Rezoning
94-47	7-22-94	Rezoning
94-48	(see § 5)	Property Tax
94-51	(see § 4)	Rezoning
94-54	8-26-94	Rezoning
94-57	(see § 4)	Rezoning
94-59	(see § 4)	Rezoning
94-61	(see § 5)	Rezoning
94-63	9-16-94	Amends Ord. No. 92-70
94-64	9-16-94	Amends Ord. No. 92-95
94-65	9-16-94	Amends Ord. No. 94-14
94-66	9-16-94	Amends Ord. No. 90-59
94-67	9-16-94	Amends Ord. No. 94-52
94-68	9-16-94	Amends Ord. No. 92-28
94-69	9-16-94	Rezoning
94-70	9-23-94	Rezoning
94-71	(see § 4)	Rezoning
94-72	9-23-94	Rezoning
94-74	(see § 5)	Rezoning
94-75	(see § 4)	Rezoning
94-77	10-21-94	Amends Ord. No. 90-82
94-78	10-21-94	Amends Ord. No. 90-143
94-79	10-21-94	Amends Ord. No. 91-09
94-80	10-21-94	Amends Ord. No. 90-66
94-81	10-21-94	Amends Ord. No. 92-75
94-82	10-21-94	Amends Ord. No. 92-83
94-83	10-21-94	Amends Ord. No. 92-57
94-84	10-21-94	Amends Ord. No. 92-60
94-85	10-21-94	Amends Ord. No. 93-01
94-87	10-28-94	Amends Ord. No. 90-131
94-88	10-28-94	Amends Ord. No. 92-65

Ordinance Number	Effective Date	Subject
94-89	10-28-94	Amends Ord. No. 93-19
94-90	10-28-94	Amends Ord. No. 92-85
94-91	(see § 4)	Rezoning
94-92	10-28-94	Rezoning
94-93	10-28-94	Urban Renewal Plan
94-94	10-28-94	Rezoning
94-96	(see § 4)	Rezoning
94-97	(see § 4)	Rezoning
94-98	(see § 4)	Rezoning
94-100	(see § 5)	Rezoning
94-101	(see § 4)	Rezoning
94-102	12- 2-94	Amends Ord. No. 90-135
94-103	12- 2-94	Amends Ord. No. 93-37
94-104	(see § 5)	Rezoning
94-107	(see § 4)	Rezoning
94-109	(see § 6)	Rezoning
94-110	(see § 4)	Rezoning
94-112	1- 6-95	Urban Renewal Plan
94-113	1- 6-95	Redevelopment Plan
94-114	1- 6-95	Urban Renewal Plan
94-115	1- 6-95	Urban Renewal Plan
94-116	1- 6-95	Redevelopment Plan
94-117	1- 6-95	Urban Renewal Plan
94-118	1- 6-95	Redevelopment Plan
94-119	1- 6-95	Redevelopment Plan
94-120	1- 6-95	Urban Renewal Plan
94-121	1- 6-95	Urban Renewal Plan
94-122	1- 6-95	Urban Renewal Plan
94-123	1- 6-95	Redevelopment Plan
94-124	(see § 3)	Rezoning
94-125	(see § 4)	Rezoning
94-126	1-13-95	Rezoning
94-128	(see § 4)	Rezoning
95-1	(see § 5)	Rezoning
95-3	(see § 4)	Rezoning
95-5	2-24-95	Rezoning
95-6	(see § 4)	Rezoning
95-8	(see § 5)	Rezoning
95-9	(see § 4)	Rezoning
95-11	(see § 3)	Rezoning
95-12	(see § 4)	Rezoning
95-13	(see § 4)	Rezoning
95-14	3-10-95	Amends Ord. No. 93-11
95-15	(see § 5)	Rezoning
95-17	3-24-95	Rezoning
95-18	3-13-95	Redevelopment Plan
95-19	3-31-95	Urban Renewal Plan

Ordinance Number	Effective Date	Subject
95-20	(see § 4)	Rezoning
95-21	4-14-95	Rezoning
95-24	(see § 4)	Rezoning
95-25	(see § 5)	Rezoning
95-26	(see § 5)	Rezoning
95-30	(see § 4)	Rezoning
95-31	(see § 4)	Rezoning
95-32	(see § 4)	Rezoning
95-34	5-19-95	Council District Boundaries
95-35	(see § 3)	Rezoning
95-36	(see § 5)	Rezoning
95-37	6- 8-95	Administrative Services
95-43	6-23-95	Rezoning
95-44	6-30-95	Amends Ord. No. 92-79
95-45	6-30-95	Amends Ord. No. 91-1
95-46	6-30-95	Amends Ord. No. 91-4
95-47	7-14-95	Adopts Official Plan Line
95-48	7-14-95	Amends Redevelopment Plan
95-49	7-21-95	Amends Ord. No. 91-17
95-50	(see § 4)	Amends Ord. No. 93-30
95-51	7-21-95	Amends Ord. No. 93-8
95-52	(see § 5)	Levies Property Tax
95-53	8-18-95	Amends Ord. No. 91-40
95-54	8-18-95	Amends Ord. No. 93-45
95-56	(see § 4)	Rezoning
95-57	9-15-95	Issuance of building permits
95-58	9-15-95	Amends Ord. No. 93-5
95-59	9-15-95	Amends Ord. No. 93-46
95-61	(see § 5)	Rezoning
95-63	(see § 4)	Rezoning
95-64	(see § 4)	Rezoning
95-65	(see § 4)	Rezoning
95-66	(see § 3)	Rezoning
95-67	(see § 4)	Rezoning
95-68	(see § 4)	Rezoning
95-69	(see § 4)	Rezoning
95-70	(see § 4)	Rezoning
95-71	(see § 6)	Rezoning
95-72	(see § 4)	Rezoning
95-76	(see § 4)	Rezoning
95-77	(see § 4)	Rezoning
95-79	12-28-95	Amends Ord. No. 91-93
95-80	12-28-95	Amends Ord. No. 93-49
95-81	12-28-95	Amends Ord. No. 93-47

Ordinance Number	Effective Date	Subject
95-82	(see § 4)	Rezoning
95-83	(see § 4)	Rezoning
95-84	12-15-95	Amends Ord. No. 91-26
95-85	(see § 4)	Rezoning
95-97	12-29-95	Amends Ord. No. 80-108
96-1	(see § 4)	Rezoning
96-2	(see § 5)	Rezoning
96-3	(see § 4)	Rezoning
96-4	(see § 4)	Rezoning
96-5	(see § 5)	Rezoning
96-6	2-23-96	Rezoning
96-7	2-23-96	Adopts Specific Plan
96-8	(see § 4)	Rezoning
96-9	3- 2-96	Amends Specific Plan
96-10	(see § 4)	Rezoning
96-11	3- 8-96	Rezoning
96-19	(see § 4)	Rezoning
96-20	(see § 4)	Rezoning
96-21	(see § 3)	Rezoning
96-22	(see § 3)	Rezoning
96-24	4-26-96	Amends Ord. No. 92-102
96-25	4-26-96	Amends Urban Renewal Plan
96-26	5-10-96	Rezoning
96-28	(see § 4)	Rezoning
96-29	(see § 4)	Rezoning
96-30	(see § 3)	Rezoning
96-34	6-14-96	Rezoning
96-35	6-14-96	Amends § 5 of Ord. No. 94-26
96-36	6-14-96	Amends § 5 of Ord. No. 94-7
96-37	6-14-96	Amends § 4 of Ord. No. 94-19
96-38	6-14-96	Amends § 4 of Ord. No. 94-11
96-39	(see § 4)	Rezoning
96-40	(see § 3)	Rezoning
96-42	(see § 5)	Rezoning
96-43	7-12-96	Adopts official plan line
96-46	(see § 5)	Levies property tax
96-47	(see § 4)	Rezoning
96-48	(see § 4)	Rezoning
96-49	7-26-96	Accepts peace officer standards
96-52	8-16-96	Amends Tower District Specific Plan

Ordinance Number	Effective Date	Subject
96-53	8-16-96	Adopts redevelopment plan
96-55	9-20-96	Repeals Ord. No. 96-25
96-56	9-20-96	Amends § 5 of Ord. No. 91-21
96-57	9-20-96	Amends Tower District Specific Plan
96-58	9-27-96	Approves development incentives agreement
96-61	(see § 4)	Rezoning
96-63	(see § 3)	Rezoning
96-65	(see § 5)	Rezoning
96-66	11-22-96	Approves agreement
96-72	(see § 5)	Rezoning
96-73	(see § 3)	Rezoning
96-74	1-17-97	Rezoning
96-76	(see § 4)	Rezoning
96-77	(see § 5)	Rezoning
96-78	(see § 5)	Rezoning
97-1	2-14-97	Rezoning
97-2	(see § 4)	Rezoning
97-3	2-21-97	Amends the Fresno General Plan, the Woodward Park Community Plan, and the specific plan for the Dominion Planned Community
97-4	(see § 8)	Rezoning
97-6	(see § 5)	Rezoning
97-7	(see § 4)	Rezoning
97-8	(see § 4)	Rezoning
97-9	3- 7-97	Approves agreement
97-10	3-28-97	Rezoning
97-11	(see § 4)	Rezoning
97-12	(see § 3)	Rezoning
97-13	(see § 5)	Rezoning
97-14	4- 4-97	Rezoning
97-15	(see § 3)	Rezoning
97-17	(see § 5)	Rezoning
97-18	(see § 3)	Rezoning
97-19	(see § 4)	Rezoning
97-24	(see § 3)	Rezoning
97-25	(see § 4)	Rezoning
97-26	(see § 3)	Rezoning
97-27	7-18-97	Rezoning
97-28	(see § 5)	Levies property tax

Ordinance Number	Effective Date	Subject
97-30	7-25-97	Amends Fresno Air Terminal Airport and Environs Plan
97-31	(see § 4)	Rezoning
97-35	8-16-97	Adopts official plan line for West Fir Avenue
97-36	8-15-97	Rezoning
97-37	(see § 3)	Rezoning
97-41	8-29-97	Amends Tower District Specific Plan
97-42	8-29-97	Rezoning
97-43	(see § 3)	Rezoning
97-44	8-29-97	Rezoning
97-46	(see § 5)	Levies special tax
97-47	9-19-97	Amends Tower District Specific Plan
97-48	(see § 4)	Rezoning
97-49	(see § 4)	Rezoning
97-50	(see § 4)	Rezoning
97-51	9-26-97	Adding playground zone
97-53	(see § 5)	Rezoning
97-54	10-30-97	Effective date of zoning approval
97-56	(see § 3)	Rezoning
97-58	11- 7-97	Amends Roeding Business Park Redevelopment Plan
97-59	(see § 4)	Rezoning
97-60	(see § 5)	Levies special tax
97-61	(see § 6)	Rezoning
97-63	11-28-97	Rezoning
97-64	(see § 6)	Rezoning
97-68	(see § 6)	Rezoning
98-2	(see § 5)	Rezoning
98-3	2- 6-98	Adopts Highway City Neighborhood Specific Plan
98-4	2- 6-98	Modifies Highway City Neighborhood Specific Plan
98-5	(see § 3)	Rezoning
98-6	(see § 5)	Levies special tax
98-8	(see § 3)	Rezoning
98-9	3-27-98	Rezoning
98-13	4- 3-98	Amends Specific Plan for Butler/Willow Area
98-14	3-31-98	Levies special tax

Ordinance Number	Effective Date	Subject
98-15	5- 1-98	Rezoning
98-16	(see § 5)	Rezoning
98-17	5-15-98	Amends Airport and Environs Plan
98-18	(see § 6)	Rezoning
98-20	5-22-98	Designation of special speed zones
98-21	(see § 4)	Rezoning
98-22	(see § 3)	Rezoning
98-23	6- 5-98	Amends Fresno Air Terminal Airport and Environs Specific Plan
98-24	(see § 6)	Rezoning
98-25	(see § 4)	Rezoning
98-31	6-12-98	Amends Official Plan Lines
98-32	6-12-98	Amends Official Plan for the Hughes-West Connector
98-33	(see § 6)	Rezoning
98-37	7-10-98	Rezoning
98-38	6-11-98	Levies property tax
98-41	(see § 5)	Levies special tax
98-42	8- 6-98	Adopts redevelopment plan for the Fulton Redevelopment Project
98-43	8- 6-98	Adopts redevelopment plan for the South Van Ness Redevelopment Project
98-44	8- 6-98	Adopts amendment to the Urban Renewal Plan for the Central Business District Project One
98-45	8- 6-98	Adopts amendment to the Community Redevelopment Plan for the Chinatown Expanded Area
98-46	8- 6-98	Adopts amendment to the Redevelopment Plan for the Convention Center Redevelopment Area
98-47	8- 6-98	Adopts amendment to the Redevelopment Plan for the Jefferson Redevelopment Project

Ordinance Number	Effective Date	Subject
98-48	8- 6-98	Adopts amendment to the Urban Renewal Plan for the Mariposa Project
98-49	8- 6-98	Adopts amendment to the Urban Renewal Plan for the West Fresno Project One
98-50	8- 6-98	Adopts amendment to the Urban Renewal Plan for the West Fresno Project Two
98-51	8- 6-98	Adopts amendment to the Urban Renewal Plan for the West Fresno Project Three
98-52	8-21-98	Rezoning
98-55	7-28-98	Levies tax
98-56	(see § 5)	Rezoning
98-58	8- 4-98	Levies tax
98-59	8-28-98	Rezoning
98-59A	(see § 4)	Rezoning
98-67	(see § 6)	Rezoning
98-68	(see § 5)	Rezoning
98-69	(see § 6)	Rezoning
98-70	10-16-98	Rezoning
98-75	9-23-98	Levies tax
98-77	(see § 5)	Rezoning
98-78	11- 6-98	Rezoning
98-80	(see § 5)	Rezoning
98-81	(see § 14)	Adopts amendment to the Urban Renewal Plan for the Southwest Fresno General Neighborhood Renewal Area Project
98-82	(see § 16)	Adopts amendment to the Urban Renewal Paln for the Southwest Fresno General Neighborhood Renewal Area Project
98-83	11-20-98	Adopts amendment to the Redevelopment Plan for the Fruit/Church Project
98-84	(see § 3)	Rezoning
98-85	(see § 4)	Rezoning
98-86	(see § 4)	Rezoning
98-88	12-11-98	Rezoning

Ordinance Number	Effective Date	Subject
98-90	(see § 6)	Rezoning
98-92	(see § 5)	Rezoning
98-93	1- 1-99	Amends Table E-2 of Air Terminal Airport and Environs Plan
98-94	(see § 4)	Rezoning
98-95	1- 8-99	Rezoning
98-100	1-15-99	Amends Air Terminal Airport and Environs Plan
98-101	(see § 5)	Rezoning
98-102	1-15-99	Rezoning
98-103	1-15-99	Rezoning
98-104	(see § 4)	Rezoning
98-105	12-21-98	Special tax
98-106	12-21-98	Special tax
99-1	(see § 4)	Rezoning
99-2	2-12-99	Rezoning
99-3	2-12-99	Rezoning
99-4	2-12-99	Rezoning
99-7	(see § 7)	Special tax
99-9	(see § 5)	Special tax
99-10	(see § 3)	Rezoning
99-12	4-23-99	Rezoning
99-13	4-23-99	Plan line for West Gettysburg Avenue
99-14	4-23-99	Amends Tower District Specific Plan
99-15	(see § 4)	Rezoning
99-17	(see § 4)	Rezoning
99-18	(see § 4)	Rezoning
99-19	(see § 5)	Levies special tax
99-22	5-14-99	Approves mitigated negative declaration for Fresno-Chandler Downtown Airport Master and Environs Specific Plan
99-23	(see § 5)	Rezoning
99-24	(see § 4)	Rezoning
99-25	5-21-99	Rezoning
99-26	5-21-99	Amends Airport and Environs Plan Fresno Yosemite International Airport
99-27	(see § 5)	Rezoning

Ordinance Number	Effective Date	Subject
99-28	5-28-99	Amends Civic Center Master Development Plan
99-29	5-28-99	Rezoning
99-30	(see § 5)	Rezoning
99-31	(see § 5)	Rezoning
99-32	6-11-99	Rezoning
99-33	(see § 5)	Rezoning
99-36	7- 9-99	Repeals Ord. No. 96-58
99-38	(see § 5)	Levies collection of property tax
99-43	8-12-99	Approves and adopts redevelopment plan for the South Fresno Industrial Revitalization Redevelopment Project
99-44	8-20-99	Approves and adopts redevelopment plan for the Airport Area Revitalization Redevelopment Project
99-45	8-12-99	Approves and adopts redevelopment plan for the Southeast Fresno Revitalization Redevelopment Project
99-46	9-24-99	Approves and adopts redevelopment plan for the Central City Commercial Revitalization Redevelopment Project
99-47	8- 2-99	Levies special tax
99-48	8-20-99	Rezoning
99-49	(see § 4)	Rezoning
99-52	(see § 4)	Rezoning
99-53	(see § 3)	Rezoning
99-54	(see § 3)	Rezoning
99-57	(see § 4)	Rezoning
99-58	(see § 5)	Rezoning
99-59	(see § 5)	Levies special tax
99-60	(see § 5)	Rezoning
99-61	11-19-99	Rezoning
99-62	12- 2-99	Issuance of one-time retail licenses for sale of fireworks
99-66	(see § 4)	Rezoning
99-67	(see § 3)	Rezoning

Ordinance Number	Effective Date	Subject
99-68	(see § 4)	Rezoning
99-69	(see § 5)	Rezoning
99-70	12-17-99	Rezoning
99-72	12-31-99	Rezoning
99-73	12- 1-99	Rezoning
99-74	12-31-99	Rezoning
99-75	(see Ord.)	Rezoning
2000-6	2-11-00	Rezoning
2000-7	2-11-00	Amends Tower District Specific Plan
2000-8	2-11-00	Rezoning
2000-9	2- 1-00	Levies special tax
2000-10	2- 1-00	Levies special tax
2000-14	(see § 4)	Rezoning
2000-15	(see § 6)	Rezoning
2000-16	2-10-00	Levies special tax
2000-17	(see § 6)	Rezoning
2000-19	3-17-00	Rezoning
2000-21	3-31-00	Rezoning
2000-22	(see § 3)	Amends development agreement
2000-23	(see § 4)	Rezoning
2000-24	4-14-00	Rezoning
2000-26	4-21-00	Rezoning
2000-27	(see § 5)	Rezoning
2000-30	(see § 5)	Levies special tax
2000-31	4-28-00	Rezoning
2000-32	5-18-00	Levies special tax
2000-35	5-26-00	Rezoning
2000-36	6- 9-00	Rezoning
2000-37	5-30-00	Levies special tax
2000-38	6-23-00	Rezoning
2000-40	(see § 5)	Levies special tax
2000-41	7- 7-00	Rezoning
2000-42	7- 7-00	Rezoning
2000-43	6-26-00	Levies property tax
2000-44	(see § 3)	Rezoning
2000-45	(see § 3)	Rezoning
2000-46	7-28-00	Amends Fresno Yosemite International Airport and Environs Plan
2000-47	(see § 4)	Rezoning
2000-48	(see § 3)	Rezoning
2000-49	9-15-00	Amends compensation of elective officers
2000-50	(see § 3)	Rezoning
2000-51	(see § 4)	Rezoning

Ordinance Number	Effective Date	Subject
2000-52	8-25-00	Rezoning
2000-53	8-28-00	Levies special tax
2000-54	(See § 3)	Rezoning
2000-55	9-15-00	Rezoning
2000-56	9-15-00	Amending official plan line for East Shaw Avenue, East San Jose Avenue, North Thesta Street and North Fresno Street
2000-59	(See § 6)	Rezoning
2000-60	9-29-00	Rezoning
2000-61	9-11-00	Levies special tax
2000-64	(See § 5)	Rezoning
2000-65	(See § 3)	Rezoning
2000-66	(See § 4)	Rezoning
2000-67	11- 3-00	Rezoning
2000-68	(See § 5)	Rezoning
2000-69	(See § 5)	Rezoning
2000-70	12- 1-00	Amends Butler/Willow Area specific plan
2000-71	12- 1-00	Amends Butler/Willow Area specific plan
2000-75	(See § 3)	Rezoning
2000-76	(See § 5)	Rezoning
2000-77	(See § 5)	Rezoning
2000-78	12-11-00	Levies a special tax
2000-79	(See § 5)	Rezoning
2000-80	(See § 4)	Rezoning
2000-82	1- 2-01	Levies a special tax
2000-84	1-19-01	Amends specific plan for the Dominion Planned Community
2000-85	(See § 3)	Rezoning
2000-86	(See § 3)	Rezoning
2001-1	1-22-01	Levies a special tax
2001-2	(See § 4)	Rezoning
2001-3	(See § 4)	Rezoning
2001-4	(See § 4)	Rezoning
2001-5	(See § 5)	Rezoning
2001-7	(See § 4)	Rezoning
2001-8	(See § 4)	Rezoning
2001-10	(See § 5)	Rezoning
2001-19	(See § 5)	Rezoning
2001-20	3-30-01	Amends Fresno-Chandler Downtown Airport Master and Environs Specific Plan

Ordinance Number	Effective Date	Subject
2001-21	(See § 4)	Rezoning
2001-22	(See § 4)	Rezoning
2001-23	(See § 3)	Rezoning
2001-24	(See § 4)	Rezoning
2001-25	(See § 5)	Rezoning
2001-27	(See § 4)	Rezoning
2001-28	4- 6-01	Rezoning
2001-29	4-20-01	Amends Yosemite School Area Specific Plan
2001-30	(See § 4)	Rezoning
2001-33	(See § 3)	Rezoning
2001-34	(See § 4)	Rezoning
2001-35	5- 4-01	Rezoning
2001-36	4- 3-01	Prohibits approval of land entitlements for automobile dealerships
2001-38	5-18-01	Rezoning
2001-42	5-18-01	Rezoning
2001-44	5-21-01	Levies special tax
2001-45	(See § 5)	Rezoning
2001-46	5-15-01	Extends Ord. 2001-36
2001-50	(See § 3)	Rezoning
2001-51	6-30-01	Levies property tax
2001-52	7-27-01	Rezoning
2001-53	(See § 3)	Rezoning
2001-54	7-27-01	Rezoning
2001-55	(See § 3)	Rezoning
2001-56	(See § 3)	Rezoning
2001-57	8-20-01	Amends development agreement between City and Zacky Farms, Inc.
2001-59	9- 3-01	Redetermination of council districts of City
2001-60	8- 3-01	Levies special tax
2001-61	(See § 3)	Rezoning
2001-63	(See § 5)	Rezoning
2001-64	(See § 3)	Rezoning
2001-65	(See § 4)	Rezoning
2001-66	(See § 3)	Rezoning
2001-67	(See § 5)	Rezoning
2001-68	(See § 4)	Rezoning
2001-69	9-27-01	Levies special tax
2001-70	(See § 4)	Rezoning
2001-71	(See § 4)	Rezoning
2001-74	10-10-01	Levies special tax
2001-75	(See § 4)	Rezoning

Ordinance Number	Effective Date	Subject
2001-76	11-16-01	Amends Tower District Specific Plan
2001-77	(See § 5)	Rezoning
2001-78	(See § 5)	Rezoning
2001-80	11-13-01	Levies special tax
2001-81	(See § 3)	Rezoning
2001-82	(See § 5)	Rezoning
2001-83	(See § 4)	Rezoning
2001-84	(See § 5)	Rezoning
2001-85	(See § 4)	Rezoning
2001-86	12-28-01	Rezoning
2001-90	12-14-01	Levies special tax
2001-91	(See § 6)	Rezoning
2001-92	1-18-02	Rezoning
2001-93	1-18-02	Rezoning
2002-1	1-11-02	Levies special tax
2002-2	(See § 3)	Rezoning
2002-3A	2-15-02	Adopts official plan line for Willow Avenue
2002-8	(See § 5)	Rezoning
2002-13	(See § 3)	Rezoning
2002-14	(See § 4)	Rezoning
2002-15	(See § 4)	Rezoning
2002-16	4-19-02	Rezoning
2002-19	4-20-02	Levies special tax
2002-20	(See § 5)	Rezoning
2002-21	4-29-02	Levies special tax
2002-23	6- 7-02	Rezoning
2002-24	(See § 4)	Rezoning
2002-26	6-21-02	Rezoning
2002-27	6-21-02	Amends 1996 Fulton/ Lowell Specific Plan
2002-28	6-21-02	Rezoning
2002-29	(See § 3)	Rezoning
2002-30	(See § 3)	Rezoning
2002-31	(See § 4)	Rezoning
2002-32	(See § 4)	Rezoning
2002-33	6-14-02	Levies special tax
2002-34	6-30-02	Levies property tax
2002-35	6-26-02	Levies special tax
2002-38	8-16-02	Rezoning
2002-41	8-29-02	Rezoning
2002-42	8-29-02	Rezoning
2002-44	9-27-02	Amends Tower District Specific Plan
2002-45	(See § 4)	Rezoning
2002-48	10-28-02	Levies special tax

Ordinance Number	Effective Date	Subject
2002-50	10-25-02	Rezoning
2002-53	11- 1-02	Rezoning
2002-55	(See § 5)	Levies special tax
2002-56	11-26-02	Levies special tax
2002-57	(See § 5)	Levies special tax
2002-58	(See § 3)	Rezoning
2002-59	11-20-02	Rezoning
2002-60	12-22-02	Amends Fresno Yosemite International Airport and Environs Specific Plan
2002-62	(See § 5)	Levies special tax
2002-63	(See § 4)	Rezoning
2002-64	(See § 3)	Rezoning
2002-66	(See § 5)	Levies special tax
2002-67	12-21-02	Levies special tax
2002-69	1-18-03	Amends sections of Roeding Business Park Redevelopment Project
2002-70	1-17-03	Rezoning
2002-71	(See § 4)	Rezoning
2002-72	(See § 3)	Rezoning
2003-1	(See § 5)	Levies special tax
2003-2	2- 7-03	Rezoning
2003-3	2-14-03	Rezoning
2003-4	3- 1-03	Amends Highway City Neighborhood Specific Plan
2003-5	3- 1-03	Rezoning
2003-6	2-28-03	Rezoning
2003-7	2-28-03	Rezoning
2003-8	(See § 3)	Rezoning
2003-9	2-28-03	Rezoning
2003-10	3- 7-03	Rezoning
2003-14	3-17-03	Rezoning
2003-15	3-28-03	Rezoning
2003-16	4-11-03	Rezoning
2003-18	3-29-03	Levies special tax
2003-19	4-18-03	Rezoning
2003-21	4-19-03	Levies special tax
2003-22	5- 2-03	Rezoning
2003-23	5- 2-03	Rezoning
2003-26	5- 9-03	Rezoning
2003-27	5- 9-03	Rezoning
2003-28	4-19-03	Levies special tax
2003-29	5- 8-03	Rezoning
2003-30	5-23-03	Rezoning
2003-31	5-23-03	Rezoning

Ordinance Number	Effective Date	Subject
2003-32	5- 6-03	Levies special tax
2003-33	5-30-03	Amends Dominion Planned Community Specific Plan
2003-34	5-30-03	Amends Dominion Planned Community Specific Plan
2003-36	(See § 4)	Rezoning
2003-37	6- 6-03	Rezoning
2003-38	6- 6-03	Rezoning
2003-41	6-20-03	Rezoning
2003-42	6-20-03	Rezoning
2003-43	6-10-03	Levies special tax
2003-44	6-10-03	Levies special tax
2003-45	7- 4-03	Rezoning
2003-46	7-11-03	Rezoning
2003-47	7-11-03	Rezoning
2003-49	6-27-03	Levies special tax
2003-50	6-27-03	Levies special tax
2003-52	7-13-03	Rezoning
2003-53	8- 5-03	Approves redevelopment plan for Free 99-Golden State Boulevard Corridor Redevelopment Project
2003-54	7- 5-03	Levies special tax
2003-55	7-25-03	Rezoning
2003-56	7-25-03	Rezoning
2003-58	8-15-03	Rezoning
2003-59	8-15-03	Rezoning
2003-60	8-15-03	Rezoning
2003-61	8-15-03	Rezoning
2003-62	8-15-03	Rezoning
2003-63	8-15-03	Rezoning
2003-64	8-15-03	Rezoning
2003-68	8-29-03	Rezoning
2003-69	(See § 5)	Levies special tax
2003-70	8-30-03	Levies special tax
2003-73	9-19-03	Rezoning
2003-76	(See § 5)	Levies special tax
2003-77	9-26-03	Rezoning
2003-78	9-26-03	Rezoning
2003-79	9-26-03	Rezoning
2003-80	9-26-03	Rezoning
2003-81	9-26-03	Rezoning
2003-82	9-26-03	Rezoning
2003-85	10- 2-03	Levies special tax

Ordinance Number	Effective Date	Subject
2003-86	10- 2-03	Levies special tax
2003-87	10-24-03	Rezoning
2003-88	10-24-03	Rezoning
2003-89	10-30-03	Rezoning
2003-91	10-24-03	Levies special tax
2003-92	11-21-03	Rezoning
2003-93	11-21-03	Rezoning
2003-94	11- 3-03	Levies special tax
2003-95	11-28-03	Rezoning
2003-97	12- 5-03	Rezoning
2003-98	12-19-03	Rezoning
2003-99	12-10-03	Levies special tax
2003-103	1-16-04	Rezoning
2003-104	1-16-04	Amends Fresno Yosemite International Airport and Environs specific plan
2003-105	1-16-04	Rezoning
2003-106	1-16-04	Rezoning
2004-2	2- 6-04	Amends Tower District specific plan
2004-3	2- 6-04	Rezoning
2004-4	2- 6-04	Rezoning
2004-5	1-16-04	Levies special tax
2004-6	2-27-04	Rezoning
2004-7	2-27-04	Rezoning
2004-8	2-27-04	Rezoning
2004-9	2-27-04	Rezoning
2004-10	2-27-04	Rezoning
2004-11	3- 5-04	Rezoning
2004-12	3-12-04	Rezoning
2004-13	3-12-04	Rezoning
2004-14	3- 8-04	Levies special tax
2004-15	3- 8-04	Levies special tax
2004-16	2-24-04	Levies special tax
2004-17	3-26-04	Rezoning
2004-18	3-26-04	Rezoning
2004-19	4- 9-04	Rezoning
2004-21	3-12-04	Levies special tax
2004-22	3-12-04	Levies special tax
2004-23	3-12-04	Levies special tax
2004-24	4- 9-04	Rezoning
2004-25	4- 9-04	Rezoning
2004-27	4- 9-04	Rezoning
2004-28	4- 9-04	Rezoning
2004-29	4- 9-04	Rezoning
2004-30	4- 9-04	Rezoning
2004-33	3-24-04	Levies special tax

Ordinance Number	Effective Date	Subject
2004-34	4-16-04	Rezoning
2004-35	4-30-04	Rezoning
2004-36	4-30-04	Rezoning
2004-37	5- 1-04	Rezoning
2004-38	4-30-04	Rezoning
2004-39	4-30-04	Rezoning
2004-40	4-30-04	Rezoning
2004-43	5-28-04	Rezoning
2004-44	5-28-04	Rezoning
2004-45	6- 4-04	Rezoning
2004-46	6- 4-04	Rezoning
2004-47	6- 4-04	Rezoning
2004-48	6-11-04	Rezoning
2004-49	6-11-04	Rezoning
2004-50	6-11-04	Rezoning
2004-51	6-11-04	Amends Butler-Willow Area specific plan
2004-52	6-11-04	Rezoning
2004-53	6-18-04	Rezoning
2004-54	6-18-04	Rezoning
2004-55	6-18-04	Rezoning
2004-56	6- 3-04	Levies special tax
2004-58	7-23-04	Rezoning
2004-59	7- 2-04	Levies special tax
2004-60	7-10-04	Levies special tax
2004-61	7-30-04	Rezoning
2004-62	7-30-04	Rezoning
2004-63	7-30-04	Rezoning
2004-64	7-30-04	Rezoning
2004-65	7-30-04	Rezoning
2004-66	7-30-04	Rezoning
2004-68	7-31-04	Levies special tax
2004-69	(See § 5)	Levies special tax
2004-70	8-20-04	Rezoning
2004-72	8-20-04	Rezoning
2004-74	(See § 4)	Rezoning
2004-76	(See § 4)	Rezoning
2004-77	8-27-04	Rezoning
2004-78	8-27-04	Rezoning
2004-79	9-17-04	Rezoning
2004-80	9- 2-04	Levies special tax
2004-81	10- 1-04	Rezoning
2004-82	9- 2-04	Levies special tax
2004-83	9- 2-04	Levies special tax
2004-84	10- 1-04	Rezoning
2004-85	10- 1-04	Rezoning
2004-86	10- 1-04	Rezoning

Ordinance Number	Effective Date	Subject
2004-88	10-29-04	Establishes criteria on the use of public resources and reimbursement of expenses for the mayor and councilmembers
2004-89	9-28-04	Levies special tax
2004-90	9-28-04	Levies special tax
2004-91	10-22-04	Rezoning
2004-93	10-29-04	Rezoning
2004-94	10-29-04	Rezoning
2004-95	10-29-04	Rezoning
2004-96	10-29-04	Rezoning
2004-104	11- 5-04	Rezoning
2004-106	(See § 4)	Rezoning
2004-107	11-19-04	Rezoning
2004-108	11-20-04	Amending Urban Renewal Plan for Southwest Fresno General Neighborhood Renewal Area Project
2004-109	11-20-04	Amending Redevelopment Plan for the Fruit/Church Project
2004-110	(See § 4)	Rezoning
2004-113	11- 4-04	Levies special tax
2004-114	11- 4-04	Levies special tax
2004-115	11-26-04	Rezoning
2004-119	(See § 4)	Rezoning
2004-120	(See § 5)	Rezoning
2004-121	12-10-04	Rezoning
2004-122	12-10-04	Rezoning
2004-123	12-10-04	Rezoning
2004-124	12- 7-04	Levies special tax
2004-125	12- 7-04	Levies special tax
2004-126	12- 7-04	Levies special tax
2004-127	12- 7-04	Levies special tax
2004-128	12-31-04	Rezoning
2004-129	12-31-04	Rezoning
2004-130	12-31-04	Rezoning
2004-135	1- 7-05	Rezoning
2004-139	(See § 4)	Rezoning
2005-1	2-14-05	Amending Fresno Yosemite International Airport and Environs Specific Plan
2005-2	1-14-05	Levies special tax

Ordinance Number	Effective Date	Subject
2005-3	2- 4-05	Rezoning
2005-5	(See § 4)	Rezoning
2005-6	2-11-05	Rezoning
2005-7	2- 5-05	Levies special tax
2005-8	3-15-05	Amends official list of designated special speed zones
2005-10	2-16-05	Levies special tax
2005-11	2-16-05	Levies special tax
2005-12	2-16-05	Levies special tax
2005-13	3-18-05	Rezoning
2005-15	3- 9-05	Levies special tax
2005-16	4- 1-05	Amends Highway City Neighborhood Specific Plan
2005-17	4- 1-05	Rezoning
2005-18	4- 1-05	Amends the Tower District Specific Plan
2005-19	4- 1-05	Rezoning
2005-20	4- 1-05	Rezoning
2005-21	4- 1-05	Rezoning
2005-23	4-15-05	Rezoning
2005-24	4-15-05	Rezoning
2005-25	4-29-05	Adopts annual weed abatement program
2005-26	4-29-05	Rezoning
2005-27	4-29-05	Rezoning
2005-28	4-29-05	Rezoning
2005-29	4-29-05	Rezoning
2005-30	4- 7-05	Levies special tax
2005-31	(See § 4)	Rezoning
2005-32	5-13-05	Rezoning
2005-33	5-13-05	Rezoning
2005-34	5-13-05	Rezoning
2005-35	(See § 4)	Rezoning
2005-36	5-13-05	Rezoning
2005-37	5-13-05	Rezoning
2005-38	(See § 4)	Rezoning
2005-39	5-13-05	Rezoning
2005-40	5-13-05	Rezoning
2005-41	(See § 4)	Rezoning
2005-42	4-21-05	Levies special tax
2005-43	6-16-05	Amends official list of truck routes
2005-45	6- 3-05	Rezoning
2005-46	6- 3-05	Rezoning
2005-48	6-10-05	Rezoning

Ordinance Number	Effective Date	Subject
2005-49	(See § 4)	Rezoning
2005-50	6-17-05	Rezoning
2005-51	6-17-05	Rezoning
2005-52	6-14-05	Levies special tax
2005-53	6-14-05	Levies special tax
2005-54	6-14-05	Levies special tax
2005-55	6-14-05	Levies special tax
2005-56	7- 8-05	Rezoning
2005-57	7- 8-05	Rezoning
2005-58	(See § 4)	Rezoning
2005-59	7- 8-05	Rezoning
2005-60	(See § 4)	Rezoning
2005-61	7-8-05	Rezoning
2005-63	(See § 5)	Rezoning
2005-64	7-15-05	Amends Tower District Specific Plan
2005-65	(See § 5)	Rezoning
2005-66	7- 1-05	Levies special tax
2005-67	7- 1-05	Levies special tax
2005-68	7- 1-05	Levies special tax
2005-69	7- 1-05	Levies special tax
2005-70	7- 1-05	Levies special tax
2005-71	7- 1-05	Levies special tax
2005-72	7- 1-05	Levies special tax
2005-73	7- 1-05	Levies special tax
2005-74	7- 1-05	Levies special tax
2005-75	7-29-05	Rezoning
2005-76	7-29-05	Amends the Highway City Neighborhood Specific Plan
2005-77	7-29-05	Rezoning
2005-78	7-11-05	Levy and collection of property tax
2005-79	9- 8-05	Amends official list of special speed zones
2005-80	8-26-05	Rezoning
2005-81	8- 8-05	Levies special tax
2005-82	8-26-05	Rezoning
2005-86	9-25-05	Amends official list of truck routes
2005-87	9-16-05	Rezoning
2005-88	9-16-05	Rezoning
2005-90	9-25-05	Grants non-exclusive towing franchises
2005-91	9-23-05	Rezoning
2005-92	(See § 4)	Rezoning
2005-94	9-30-05	Rezoning

Ordinance Number	Effective Date	Subject
2005-95	9-30-05	Rezoning
2005-96	9-12-05	Levies special tax
2005-97	9-12-05	Levies special tax
2005-98	9-12-05	Levies special tax
2005-99	9-12-05	Levies special tax
2005-100	9-30-05	Rezoning
2005-103	10-21-05	Rezoning
2005-104	9-28-05	Levies special tax
2005-105	9-28-05	Levies special tax
2005-107	10-21-05	Rezoning
2005-108	(See § 4)	Rezoning
2005-110	10- 7-05	Levies special tax
2005-111	(See § 4)	Rezoning
2005-116	11- 4-05	Rezoning
2005-117	10-14-05	Levies amended special tax
2005-119	11-11-05	Rezoning
2005-120	11-24-05	Amends redevelopment plan for the Convention Center Redevelopment Project Area
2005-122	11-25-05	Rezoning
2005-123	11-25-05	Rezoning
2005-125	12- 2-05	Rezoning
2005-126	(See § 4)	Rezoning
2005-127	12- 2-05	Rezoning
2005-128	12- 2-05	Rezoning
2005-129	12- 2-05	Rezoning
2005-130	12- 2-05	Rezoning
2005-131	12- 2-05	Rezoning
2005-132	12- 2-05	Rezoning
2005-133	(See § 5)	Rezoning
2005-134	12- 2-05	Rezoning
2005-135	12- 2-05	Rezoning
2005-136	12- 2-05	Rezoning
2005-137	11-28-05	Levies special tax
2005-138	12-16-05	Rezoning
2005-139	12-16-05	Rezoning
2005-140	12-16-05	Rezoning
2005-141	12-16-05	Rezoning
2005-143	12-12-05	Levies special tax
2005-144	(See § 4)	Rezoning
2005-145	(See § 4)	Rezoning
2005-146	12-12-05	Levies special tax
2005-147	12-30-05	Rezoning
2005-148	(See § 5)	Rezoning
2005-150	1- 6-06	Rezoning

Ordinance Number	Effective Date	Subject
2005-151	1- 6-06	Rezoning
2005-152	1- 6-06	Rezoning
2005-155	1-13-06	Rezoning
2005-156	1-13-06	Rezoning
2005-157	1-13-06	Rezoning
2005-158	1-13-06	Rezoning
2005-159	(See § 4)	Rezoning
2005-160	1-20-06	Rezoning
2005-161	1-20-06	Rezoning
2005-162	1-20-06	Rezoning
2005-163	1-20-06	Rezoning
2005-164	1-20-06	Rezoning
2005-165	(See § 6)	Rezoning
2006-1	1-19-06	Levies special tax
2006-2	(See § 4)	Rezoning
2006-3	2- 3-06	Levies special tax
2006-4	2- 3-06	Levies special tax
2006-5	2-24-06	Rezoning
2006-6	2-24-06	Rezoning
2006-7	(See § 4)	Rezoning
2006-11	3- 3-06	Rezoning
2006-12	(See § 4)	Rezoning
2006-13	3- 3-06	Rezoning
2006-14	3-13-06	Amends Ord. No. 2004-88 relating to the criteria on the use of public resources and reimbursement of expenses for the mayor and councilmembers
2006-18	3-10-06	Rezoning
2006-19	3-13-06	Levies special tax
2006-20	3-13-06	Levies special tax
2006-21	3-13-06	Levies special tax
2006-22	3-31-06	Rezoning
2006-23	3-31-06	Rezoning
2006-24	3-31-06	Rezoning
2006-25	4- 7-06	Rezoning
2006-26	4- 7-06	Rezoning
2006-27	4-24-06	Adopts annual weed abatement program
2006-28	4-14-06	Rezoning
2006-29	4- 7-06	Levies special tax
2006-30	4- 7-06	Levies special tax
2006-31	4-27-06	Rezoning
2006-35	4-17-06	Levies special tax
2006-36	4-17-06	Levies special tax

Ordinance Number	Effective Date	Subject
2006-37	4-17-06	Levies special tax
2006-38	4-17-06	Levies special tax
2006-39	(See § 4)	Rezoning
2006-40	5-18-06	Amends redevelopment plan for the Chinatown Expanded Community Redevelopment Plan
2006-41	4-17-06	Levies special tax
2006-42	(See § 4)	Rezoning
2006-43	5- 5-06	Rezoning
2006-44	4-21-06	Levies special tax
2006-45	5-19-06	Rezoning
2006-46	5-19-06	Rezoning
2006-47	(See § 4)	Rezoning
2006-48	5-19-06	Rezoning
2006-49	5-19-06	Rezoning
2006-51	5-26-06	Rezoning
2006-52	5-26-06	Rezoning
2006-53	(See § 4)	Rezoning
2006-54	(See § 4)	Rezoning
2006-55	(See § 4)	Rezoning
2006-56	5-26-06	Rezoning
2006-57	5-26-06	Rezoning
2006-58	5-26-06	Rezoning
2006-59	5-26-06	Amends the Fresno Yosemite International Airport and Environs Specific Plan
2006-60	5-26-06	Rezoning
2006-61	6- 2-06	Rezoning
2006-63	(See § 3)	Amends the Fresno-Chandler Downtown Airport Master and Environs Specific Plan
2006-64	(See § 5)	Rezoning
2006-65	(See § 4)	Rezoning
2006-67	6-16-06	Rezoning
2006-68	6-16-06	Rezoning
2006-69	6-16-06	Rezoning
2006-70	6-19-06	Levies special tax
2006-71	6-19-06	Levies special tax
2006-72	6-19-06	Levies special tax
2006-73	(See § 4)	Rezoning
2006-75	6-21-06	Levies special tax
2006-76	6-21-06	Levies special tax
2006-77	(See § 4)	Rezoning
2006-78	7-14-06	Rezoning

Ordinance Number	Effective Date	Subject
2006-79	7-14-06	Rezoning
2006-82	7- 3-06	Levies special tax
2006-83	7- 3-06	Levies special tax
2006-84	(See § 4)	Rezoning
2006-85	(See § 4)	Rezoning
2006-86	7-28-06	Rezoning
2006-87	(See § 4)	Rezoning
2006-88	7- 7-06	Levies property tax
2006-89	7-31-06	Levies special tax
2006-90	7-31-06	Levies special tax
2006-91	7-31-06	Levies special tax
2006-92	7-31-06	Levies special tax
2006-93	7-31-06	Levies special tax
2006-94	7-31-06	Levies special tax
2006-95	7-31-06	Levies special tax
2006-96	7-31-06	Levies special tax
2006-97	7-31-06	Levies special tax
2006-98	8-18-06	Rezoning
2006-99	(See § 4)	Rezoning
2006-100	9-22-06	Compensation of elective officers
2006-102	(See § 3)	Amends the Fresno-Chandler Downtown Airport Master and Environs Specific Plan
2006-103	(See § 5)	Rezoning
2006-104	8-25-06	Rezoning
2006-105	8-25-06	Amends the Yosemite School Area Specific Plan
2006-106	8-25-06	Rezoning
2006-107	8-25-06	Rezoning
2006-108	8-25-06	Rezoning
2006-109	8-25-06	Rezoning
2006-110	8-25-06	Amends the Fresno Yosemite International Airport and Environs Specific Plan
2006-111	8-25-06	Rezoning
2006-113	8-28-06	Levies special tax
2006-114	8-28-06	Levies special tax
2006-115	8-28-06	Levies special tax
2006-116	(See § 4)	Rezoning
2006-117	9-15-06	Rezoning
2006-118	9-15-06	Rezoning
2006-121	9- 5-06	Levies special tax
2006-122	9-22-06	Rezoning
2006-123	9-22-06	Rezoning

Ordinance Number	Effective Date	Subject
2006-124	9-22-06	Rezoning
2006-125	9-22-06	Rezoning
2006-126	9-22-06	Amends the Fresno-Chandler Downtown Airport Master and Environs Specific Plan
2006-127	9-22-06	Rezoning
2006-128	(See § 4)	Rezoning
2006-129	10- 7-06	Amends official list of designated special speed zones
2006-132	9- 6-06	Levies special tax
2006-133	9-29-06	Rezoning
2006-134	9-29-06	Rezoning
2006-135	(See § 4)	Rezoning
2006-136	(See § 4)	Rezoning
2006-137	(See § 4)	Rezoning
2006-142	(See § 4)	Rezoning
2006-144	10-20-06	Rezoning
2006-145	10-20-06	Rezoning
2006-146	(See § 4)	Rezoning
2006-147	(See § 4)	Rezoning
2006-148	11- 3-06	Rezoning
2006-149	11- 3-06	Rezoning
2006-150	11- 3-06	Rezoning
2006-151	10-16-06	Levies special tax
2006-152	11-24-06	Rezoning
2006-153	11-24-06	Rezoning
2006-157	11-27-06	Levies special tax
2006-158	11-27-06	Levies special tax
2006-159	11-27-06	Levies special tax
2006-161	11-28-06	Interim ordinance prohibiting the approval of land entitlements and special permits for adult bookstores, adult motion picture theaters and adult theaters
2006-162	(See § 4)	Rezoning
2006-163	(See § 5)	Rezoning
2006-164	12-29-06	Rezoning
2006-165	12-29-06	Rezoning
2006-166	12-29-06	Rezoning
2006-167	12-29-06	Rezoning
2006-168	12-29-06	Amends the Chinatown Expanded Redevelopment Planning Area

Ordinance Number	Effective Date	Subject
2006-169	12-29-06	Rezoning
2006-170	1-18-07	Approves San Joaquin Valley Power Authority Joint Powers Agreement
2006-171	1- 5-07	Rezoning
2006-172	12-22-06	Levies special tax
2006-173	12-22-06	Levies special tax
2006-174	(See § 4)	Rezoning
2006-175	(See § 4)	Rezoning
2006-176	(See § 4)	Rezoning
2007-2	1- 9-07	Extends moratorium established by Ord. 2006-161
2007-3	2- 5-07	Levies special tax
2007-4	2-23-07	Rezoning
2007-5	2-23-07	Rezoning
2007-6	(See § 4)	Rezoning
2007-7	2-23-07	Rezoning
2007-8	2-23-07	Rezoning
2007-9	(See § 6)	Rezoning
2007-10	(See § 4)	Rezoning
2007-12	3-23-07	Modifies boundaries of council districts
2007-13	3-12-07	Levies special tax
2007-14	3-30-07	Rezoning
2007-15	3-30-07	Rezoning
2007-18	(See § 4)	Rezoning
2007-19	(See § 5)	Rezoning
2007-20	(See § 6)	Rezoning
2007-22	4-22-07	Annual weed abatement program
2007-23	3-22-07	Levies special tax
2007-24	3-22-07	Levies special tax
2007-25	3-13-07	Extends moratorium established by Ord. 2006-161
2007-26	4- 2-07	Levies special tax
2007-28	4-20-07	Rezoning
2007-29	3-27-07	Levies special tax
2007-30	4-27-07	Rezoning
2007-31	4-27-07	Rezoning
2007-32	4-27-07	Rezoning
2007-33	4-27-07	Rezoning
2007-34	(See § 4)	Rezoning
2007-35	4-27-07	Amends Fulton/Lowell Specific Plan
2007-36	5-18-07	Rezoning

Ordinance Number	Effective Date	Subject
2007-37	5-18-07	Rezoning
2007-38	4-30-07	Levies special tax
2007-39	5-25-07	Rezoning
2007-40	5-25-07	Rezoning
2007-41	5-25-07	Rezoning
2007-43	6- 1-07	Rezoning
2007-45	6-15-07	Rezoning
2007-46	6-15-07	Rezoning
2007-48	6-18-07	Approves Fresno Redevelopment Agency's programs to acquire real property by eminent domain
2007-49	7- 6-07	Rezoning
2007-51	7-20-07	Rezoning
2007-52	6-29-07	Levies property tax
2007-56	7-20-07	Rezoning
2007-58	8- 2-07	Levies special tax
2007-59	(See § 4)	Rezoning
2007-60	8-31-07	Rezoning
2007-61	8-31-07	Rezoning
2007-62	8-31-07	Rezoning
2007-63	8-31-07	Rezoning
2007-64	8-31-07	Rezoning
2007-65	9-28-07	Rezoning
2007-68	9-28-07	Rezoning
2007-69	9-28-07	Amends Fresno-Chandler Downtown Airport Master and Environs Specific Plan
2007-70	9-28-07	Rezoning
2007-71	9-28-07	Rezoning
2007-72	11- 1-07	Amends Official List of Designated Special Speed Zones
2007-73	10-19-07	Rezoning
2007-74	10- 5-07	Levies special tax
2007-76	10-22-07	Levies special tax
2007-77	11-16-07	Rezoning
2007-78	11-16-07	Rezoning
2007-79	11- 5-07	Levies special tax
2007-80	(See § 4)	Rezoning
2007-81	(See § 5)	Rezoning
2007-82	12- 7-07	Rezoning
2007-83	12- 7-07	Rezoning

Ordinance Number	Effective Date	Subject
2007-84	1-10-07	Approves development agreement between the City and Betts Spring Company
2007-85	12-10-07	Levies special tax
2007-86	(See § 4)	Rezoning
2007-87	12-28-07	Rezoning
2007-88	12-28-07	Rezoning
2007-89	12-28-07	Rezoning
2007-90	12-28-07	Rezoning
2007-91	12-28-07	Rezoning
2007-98	1-19-08	Relating to local improvement procedures, assessments, and bonds
2007-99	12-20-07	Levies special tax
2007-100	12-20-07	Levies special tax
2007-101	1-11-08	Rezoning
2007-103	1-11-08	Rezoning
2007-104	1-11-08	Rezoning
2007-106	1-18-08	Rezoning
2007-107	1-18-08	Rezoning
2007-108	1-18-08	Rezoning
2007-109	(See § 5)	Rezoning
2007-110	1-18-08	Rezoning
2007-111	1-18-08	Rezoning
2008-1	2-29-08	Rezoning
2008-2	(See § 4)	Rezoning
2008-3	2-29-08	Rezoning
2008-4	2-29-08	Rezoning
2008-5	3- 7-08	Rezoning
2008-6	(See § 4)	Rezoning
2008-7	(See § 4)	Rezoning
2008-8	(See § 4)	Rezoning
2008-9	3-27-08	Amending time limits of effectiveness of and extending time limit for payment of indebtedness and receipt of property taxes under redevelopment plans
2008-14	(See § 5)	Rezoning
2008-15	(See § 5)	Rezoning
2008-16	4- 4-08	Rezoning
2008-17	4-24-08	Weed abatement program
2008-18	(See § 4)	Rezoning
2008-19	(See § 4)	Rezoning

Ordinance Number	Effective Date	Subject
2008-20	(See § 5)	Rezoning
2008-21	4-25-08	Rezoning
2008-22	4-25-08	Rezoning
2008-24	(See § 4)	Rezoning
2008-25	5-16-08	Rezoning
2008-26	6- 5-08	Fresno Air Terminal Redevelopment Plan
2008-27	(See § 5)	Rezoning
2008-28	6-22-08	Copper River Ranch impact fees
2008-29	5-22-08	Levies special tax
2008-30	5-22-08	Levies special tax
2008-31	5-22-08	Levies special tax
2008-32	(See § 5)	Rezoning
2008-34	6-11-08	Levies special tax
2008-39	7-18-08	Rezoning
2008-40	7-25-08	Repealing official plan line
2008-41	7- 7-08	Levies special tax
2008-42	7-25-08	Rezoning
2008-43	(See § 5)	Rezoning
2008-44	7- 7-08	Levies property tax
2008-45	(See § 5)	Levies special tax
2008-46	(See § 5)	Rezoning
2008-47	9- 3-08	Amending redevelopment plans
2008-48	9-11-08	Official list of designated special speed zones
2008-49	9- 2-08	Levies special tax
2008-50	(See § 4)	Rezoning
2008-51	10- 4-08	Deferral of fees for affordable housing projects
2008-52	(See § 4)	Rezoning
2008-54	(See § 4)	Rezoning
2008-55	(See § 5)	Rezoning
2008-56	(See § 5)	Rezoning
2008-57	10-17-08	Rezoning
2008-60	10-10-08	Levies special tax
2008-61	10-10-08	Levies special tax
2008-62	10-10-08	Levies special tax
2008-63	10-31-08	Levies special tax
2008-64	11-21-08	Rezoning
2008-66	12- 5-08	Rezoning
2008-69	1- 2-09	Rezoning
2008-71	1- 9-09	Rezoning
2008-72	1- 9-09	Rezoning
2008-73	1- 9-09	Rezoning

Ordinance Number	Effective Date	Subject
2008-75	(See § 6)	Rezoning
2008-77	(See § 5)	Rezoning
2008-78	1-16-09	Adopts development agreement between City and Ashlan/Hayes No. 1 L.P.
2008-79	1-16-09	Rezoning
2009-1	(See § 5)	Rezoning
2009-2	2-13-09	Amends Fresno Yosemite International Airport and Environs Specific Plan
2009-3	2-27-09	Rezoning
2009-5	3-20-09	Amends Official Plan of Streets and Highways
2009-6	3-13-09	Rezoning
2009-7	(See § 6)	Rezoning
2009-8	3-27-09	Rezoning
2009-9	4-26-09	Weeds abatement program
2009-13	4-24-09	Rezoning
2009-14	5- 1-09	Rezoning
2009-15	5- 9-09	Amends two redevelopment plans
2009-17	4-28-09	Amends special tax
2009-18	(See § 5)	Rezoning
2009-19	5-31-09	Amends Fresno Yosemite International Airport and Environs Specific Plan
2009-20	(See § 6)	Rezoning
2009-21	6-14-09	Rezoning
2009-23	(See § 5)	Rezoning
2009-24	7- 6-09	Levies property tax
2009-27	8-16-09	Rezoning
2009-28	8-16-09	Rezoning
2009-30	8-23-09	Rezoning
2009-31	(See § 5)	Rezoning
2009-32	8-30-09	Rezoning
2009-33	10-18-09	Rezoning
2009-34	(See § 5)	Rezoning
2009-35	(See § 4)	Rezoning
2009-36	11-15-09	Rezoning
2009-37	11-30-09	Rezoning
2009-39	11-22-09	Rezoning
2010-6	3-14-10	Rezoning
2010-7	4-25-10	Weed abatement program
2010-8	4-25-10	Rezoning

Ordinance Number	Effective Date	Subject
2010-9	4-25-10	Amends official plan of streets and highways
2010-12	(See § 6)	Rezoning
2010-16	6-27-10	Franchise
2010-18	7-18-10	Rezoning
2010-19	6-28-10	Levies special tax
2010-20	7-18-10	Rezoning
2010-22	7- 1-10	Levies special tax
2010-24	(See § 5)	Levies special tax
2010-25	8-29-10	Amends Central Business District Project One Urban Renewal Plan
2010-26	8-29-10	Amends Chinatown Expanded Community Redevelopment Project
2010-27	8-29-10	Amends Convention Center Redevelopment Project Area
2010-28	8-29-10	Amends Fulton Redevelopment Project
2010-29	8-29-10	Amends Jefferson Area Project
2010-30	8-29-10	Amends Mariposa Medical Center Project
2010-31	8-29-10	Amends South Van Ness Redevelopment Project
2010-32	8-29-10	Amends West Fresno Project One Urban Renewal Plan
2010-33	8-29-10	Amends West Fresno Project Two Urban Renewal Plan
2010-34	8-29-10	Rezoning
2010-35	8-29-10	Rezoning
2010-36	8-26-10	Levies a special tax
2010-40	10-31-10	Rezoning
2010-42	11-28-10	Rezoning
2010-43	11-28-10	Rezoning
2010-45	11-15-10	Levies a special tax
2010-46	12- 5-10	Adopts Official Plan Line for West Dakota Avenue
2010-47	12-31-10	Disestablishing Business Improvement Area No. One and levy of special business tax
2010-51	12-16-10	Levies special tax

Ordinance Number	Effective Date	Subject
2010-52	1-16-11	Amends Redevelopment Plan for Airport Revitalization Redevelopment Project Area
2010-54	1-16-11	Rezoning
2010-55	1-16-11	Rezoning
2010-56	1- 4-11	Levies special tax
2010-57	2- 3-11	Amends Redevelopment Plan for Fruit/Church Project
2010-58	2- 3-11	Amends Redevelopment Plan for Southwest Fresno General Neighborhood Renewal Area Project
2010-59	1-16-11	Rezoning
2010-60	1-16-11	Development agreement
2011-5	3-13-11	Rezoning
2011-7	4-10-11	Rezoning
2011-8	4-10-11	Rezoning
2011-9	4-25-11	Annual weed abatement program
2011-11	4-11-11	Levies special tax
2011-12	5- 1-11	Amends Fresno Yosemite International Airport and Environs Plan
2011-13	5-29-11	Rezoning
2011-15	6-19-11	Rezoning
2011-17	6- 7-11	Levies special tax
2011-18	6-27-11	Levies special tax
2011-19	7-24-11	Rezoning
2011-20	7-24-11	Repeals official plan lines
2011-21	7- 1-11	Levies property tax
2011-22	7-30-11	Rezoning
2011-24	9- 1-11	Franchises for roll-off collection services
2011-26	8- 1-11	Levies special tax
2011-27	8-28-11	Rezoning
2011-28	9-30-11	Compliance with "Voluntary Alternative Redevelopment Program"
2011-29	9- 1-11	Council district boundaries
2011-30	10-16-11	Adopts official plan line for West Ashlan Avenue
2011-31	11- 3-11	Designated special speed zones

Ordinance Number	Effective Date	Subject
2011-32	11-10-11	Grants exclusive franchises for collection of solid waste, recyclable materials and organic materials
2011-33	11-20-11	Rezoning
2011-35	12-24-11	Grants non-exclusive franchise to participate in police department's tow car rotation list
2011-37	1- 1-12	Rezoning
2011-38	1- 1-12	Rezoning
2011-39	1- 9-12	Rezoning
2011-40	1-19-12	Grants non-exclusive franchises for roll-off collection services
2011-41	12-15-11	Places a moratorium on outdoor cultivation of medical marijuana
2012-1	2-12-12	Rezoning
2012-2	1-23-12	Levies special tax
2012-3	1-26-12	Extends moratorium on outdoor cultivation of medical marijuana
2012-7	3-19-12	Levies special tax
2012-8	4-26-12	Rezoning
2012-9	7-15-12	Rezoning
2012-10	7-15-12	Rezoning
2012-12	6-29-12	Levies special tax
2012-14	7- 3-12	Levies property tax
2012-15	8-19-12	Rezoning
2012-18	9-30-12	Amends Fresno Yosemite International Airport Land Use Compatibility Plan, the Hoover, McLane and Roosevelt Community Plan and 2025 Fresno General Plan
2012-19	10- 8-12	Levies special tax
2012-20	11-19-12	Levies special tax
2012-26	1-20-13	Exclusive franchise for collection of residential solid waste, recyclable materials and organic materials
2013-1	3-10-13	Rezoning

Ordinance Number	Effective Date	Subject
2013-2	3-17-13	Rezoning
2013-4	3-31-13	Rezoning
2013-5	3-31-13	Adopts official plan line for North Winery Avenue from East Herndon Avenue to North Willow Avenue
2013-6	4- 7-13	Special speed zones
2013-8	4- 7-13	Rezoning
2013-9	4- 1-13	Levies special tax
2013-12	5-14-13	Levies special tax
2013-14	5-23-13	Levies special tax
2013-15	6-23-13	Rezoning
2013-17	6-17-13	Levies special tax
2013-18	7- 7-13	Rezoning
2013-19	7- 1-13	Levies property tax
2013-20	7-28-13	Rezoning
2013-22	7-30-13	Levies special tax
2013-23	8-18-13	Rezoning
2013-24	8- 5-13	Levies special tax
2013-25	9-15-13	Rezoning
2013-26	8-26-13	Levies special tax
2013-29	10-13-13	Rezoning
2013-30	10- 7-13	Levies special tax
2013-31	10- 7-13	Levies special tax
2013-32	10-15-13	Dissolves Community Facilities District No. 2005-1
2013-33	11-13-13	Dissolves Community Facilities District No. 14
2013-38	1-12-14	Rezoning
2013-39	1-19-14	Rezoning
2013-40	1-19-14	Amends official plan lines for West Gettysburg Avenue between North Garfield Avenue and North Motel Drive
2013-41	1-19-14	Rezoning
2013-42	1-19-14	Rezoning
2013-43	1-19-14	Rezoning
2014-4	2-10-14	Rezoning
2014-5	1-29-14	Levies special tax
2014-6	1-29-14	Levies special tax
2014-7	2-18-14	Rezoning
2014-10	3- 9-14	Rezoning
2014-12	3-30-14	Rezoning
2014-13	3-30-14	Rezoning

Ordinance Number	Effective Date	Subject
2014-14	3-30-14	Rezoning
2014-21	4-27-14	Rezoning
2014-23	5- 6-14	Levies special tax
2014-25	6-15-14	Rezoning
2014-28	6-30-14	Levies property tax
2014-30	7-27-14	Rezoning
2014-33	7-29-14	Levies special tax
2014-35	8- 1-14	Four Year Water Rate Plan
2014-37	9- 2-14	Levies special tax
2014-39	9-28-14	Designated special speed zones
2014-40	10-12-14	Rezoning
2014-41	10-26-14	Adopts official plan line modifications for West McKinley Avenue
2014-42	10-26-14	Rezoning
2014-43	10-13-14	Levies special tax
2014-44	12- 4-14	Non-exclusive franchise for tow car rotation list
2014-46	11-23-14	Rezoning
2014-47	11-30-14	Rezoning
2014-48	12-11-14	Non-exclusive franchises for roll-off collection services
2014-52	12- 2-14	Levies special tax
2014-53	12-21-14	Rezoning
2014-54	12-29-14	Levies special tax
2015-1	2- 9-15	Levies changed maximum special tax
2015-2	2-17-15	Levies special tax
2015-3	4-16-15	Annual weed abatement program
2015-4	4-26-15	Cancels development agreement between city and Ashlan/Hayes No. 1 L.P.
2015-7	4-20-15	Levies special tax
2015-8	(See § 5)	Levies special tax
2015-9	5-31-15	Rezoning
2015-12	5-14-15	Rezoning
2015-15	6-15-15	Levies special tax
2015-16	(See § 4)	Rezoning
2015-19	6-22-15	Levies special tax
2015-20	7-12-15	Rezoning
2015-21	7-25-15	Levies property tax
2015-25	(See § 4)	Rezoning

Ordinance Number	Effective Date	Subject
2015-28	9-28-15	Non-exclusive franchise for roll-off collection services
2015-30	(See § 4)	Rezoning
2015-31	10- 5-15	Levies special tax
2015-35	11-22-15	Rezoning
2015-36	11-29-15	Rezoning
2015-41	12-21-15	Levies special tax
2015-42	12-21-15	Levies special tax
2015-46	1-17-16	Rezoning
2015-47	12-29-15	Levies special tax
2016-2	3- 7-16	Rezoning
2016-3	(See § 4)	Rezoning
2016-4	3- 6-16	Rezoning
2016-5	3- 7-16	Levies special tax
2016-6	3- 7-16	Levies special tax
2016-7	4-14-16	Annual weed abatement program
2016-8	4-17-16	Rezoning
2016-13	5- 9-16	Levies special tax
2016-14	6-12-16	Repealing official plan lines for North Winery Avenue from East Herndon Avenue to North Willow Avenue
2016-15	6-12-16	Rezoning
2016-17	5-31-16	Levies special tax
2016-18	5-31-16	Levies special tax
2016-19	5-31-16	Levies special tax
2016-20	6-20-16	Levies special tax
2016-21	6-20-16	Levies special tax
2016-22	7-24-16	Levies property tax
2016-23	(See § 4)	Rezoning
2016-24	8- 5-16	Levies special tax
2016-26	9-18-16	Rezoning
2016-27	9-29-16	Special speed zones
2016-28	9-25-16	Repealing official plan lines for G Street from East Divisadero Street to West Belmont Avenue
2016-29	10- 2-16	Rezoning
2016-30	10-14-16	Franchise for roll-off collection services
2016-31	10- 2-16	Rezoning
2016-34	10- 3-16	Levies special tax
2016-35	10- 3-16	Levies special tax
2016-36	10-23-16	Rezoning
2016-37	11-26-16	Development agreement
2016-39	(See § 4)	Rezoning

Ordinance Number	Effective Date	Subject
2016-40	11-21-16	Fulton/Lowell Specific Plan
2016-41	11-21-16	Rezoning application
2016-46	12-18-16	Rezoning
2016-49	1- 1-17	Rezoning
2016-56	1- 8-17	Adopting official plan lines for East McKinley Avenue between North Sunnyside and North Temperance Avenues
2016-58	1-15-17	Rezoning
2016-59	1-15-17	Rezoning
2017-3	2-12-17	Rezoning
2017-4	2-12-17	Rezoning
2017-6	2-14-17	Levies special tax
2017-7	2-14-17	Levies special tax
2017-8	2-14-17	Levies special tax
2017-9	2-21-17	Levies special tax
2017-10	3- 8-17	Reimbursement of expenses for elected officials
2017-12	3- 8-17	Levies special tax
2017-13	4- 2-17	Rezoning
2017-14	4-16-17	Annual weed abatement program
2017-16	3-24-17	Levies special tax
2017-17	4-10-17	Levies special tax
2017-18	4-10-17	Levies special tax
2017-20	4-17-17	Levies special tax
2017-21	5- 2-17	Levies special tax
2017-22	5- 2-17	Levies special tax
2017-23	5- 2-17	Levies special tax
2017-24	6-15-17	Reauthorizing PEG fee
2017-25	5-15-17	Levies special tax
2017-26	5-31-17	Levies special tax
2017-27	6-25-17	Rezoning
2017-28	6-25-17	Rezoning
2017-29	7-13-17	Development agreement between City and High and Mighty Farms, Inc.
2017-31	7- 9-17	Rezoning
2017-32	7-16-17	Rezoning
2017-34	7-27-17	Levies property tax
2017-35	6-23-17	Levies special tax
2017-36	9- 3-17	Rezoning
2017-39	9-17-17	Rezoning
2017-41	8-29-17	Amends special tax
2017-42	8-29-17	Levies special tax
2017-43	8-24-17	Rezoning
2017-44	9-24-17	Rezoning

Ordinance Number	Effective Date	Subject
2017-45	10- 1-17	Rezoning
2017-47	10- 2-17	Levies special tax
2017-48	10- 2-17	Levies special tax
2017-49	10- 2-17	Levies special tax
2017-50	10- 2-17	Levies special tax
2017-51	10- 2-17	Levies special tax
2017-53	10- 2-17	Levies special tax
2017-55	11-18-17	Special speed zones
2017-59	11-26-17	Rezoning
2017-60	12-11-17	Rezoning
2017-61	11-26-17	Rezoning
2017-62	12- 4-17	Agreement between city and Darling Ingredients, Inc.
2017-65	11-14-17	Levies special tax
2017-69	12-18-17	Levying changed maximum special tax
2017-70	12-18-17	Levying changed maximum special tax
2017-71	12-18-17	Non-exclusive franchise for roll-off collection services
2018-4	1-19-18	Levies special tax
2018-5	1-19-18	Levies special tax
2018-7	3-11-18	Rezoning
2018-8	3-11-18	Rezoning
2018-9	2-18-18	Rezoning
2018-11	3- 7-18	Levies special tax
2018-12	4- 1-18	Adopts official plan lines
2018-15	5- 6-18	Adopts official plan lines
2018-16	5- 6-18	Rezoning
2018-20	5-20-18	Rezoning
2018-21	4-24-18	Levies special tax
2018-22	4-24-18	Levies special tax
2018-26	5-11-18	Levies special tax
2018-27	5-11-18	Levies special tax
2018-28	5-11-18	Levies special tax
2018-30	6-17-18	Rezoning
2018-31	6-24-18	Rezoning
2018-32	6-24-18	Adopts official plan lines
2018-34	6-19-18	Levies special tax
2018-35	6-19-18	Levies special tax

Ordinance Number	Effective Date	Subject
2018-36	7-27-18	Amends agreement between City and John Allen Company, LLC.
2018-40	7-29-18	Rezoning
2018-41	8- 2-18	Levies property tax
2018-42	7-30-18	Levies special tax
2018-43	7-30-18	Levies special tax
2018-44	7-30-18	Levies special tax
2018-47	8-31-18	Levies special tax
2018-48	8-31-18	Levies special tax
2018-49	9-30-18	Rezoning
2018-50	9-30-18	Adopts official plan lines for North Temperance Avenue
2018-51	9-27-18	Levies special tax
2018-52	9-27-18	Levies special tax
2018-53	9-27-18	Levies special tax
2018-54	9-27-18	Levies special tax
2018-56	11-15-18	Special speed zones
2018-57	10-30-18	Levies special tax
2018-59	(See § 4)	Rezoning
2018-60	12-10-18	Levies special tax
2018-61	1-10-19	Non-exclusive franchises for roll-off collection services
2018-62	(See § 6)	Rezoning
2018-63	1- 6-19	Rezoning
2018-67	1-24-19	Compensation of elective officers
2018-69	12-18-18	Levies special tax
2019-001	1-28-19	Levies special tax
2019-002	1-28-19	Levies special tax
2019-005	3- 5-19	Levies special tax
2019-006	3- 5-19	Levies special tax
2019-007	3-25-19	Levies special tax
2019-008	4-22-19	Rezoning
2019-009	4-16-19	Levies special tax
2019-010	5-13-19	Rezoning
2019-012	5-26-19	Rezoning
2019-013	5- 6-19	Levies special tax
2019-017	8- 7-19	Levies property tax
2019-018	8-25-19	Rezoning
2019-020	9-15-19	Rezoning

Ordinance Number	Effective Date	Subject
2019-022	9-28-19	Disposition agreement and development agreement between city and Darling Ingredients, Inc.
2019-024	8-28-19	Levies special tax
2019-025	8-28-19	Levies special tax
2019-026	9-22-19	Rezoning
2019-027	9-30-19	Levies special tax
2019-028	9-30-19	Levies special tax
2019-029	10-31-19	Non-exclusive franchises for roll-off collection services
2019-033	11-11-19	Special speed zones
2019-040	11-12-19	Levies special tax
2019-041	11-12-19	Levies special tax
2019-045	12-11-19	Levies special tax
2019-046	12-11-19	Levies special tax
2019-047	1- 5-20	Rezoning
2019-049	1-12-20	Rezoning
2019-050	12-20-19	Levies special tax
2020-001	2-16-20	Rezoning
2020-005	3-15-20	Rezoning
2020-006	4- 5-20	Development agreement between City and 2500 MLK LLC
2020-007	3-10-20	Levies special tax
2020-008	3-10-20	Levies special tax
2020-011	3-28-20	Levies special tax
2020-013	5-10-20	Rezoning
2020-014	4-28-20	Levies special tax
2020-017	6-30-20	Levies special tax
2020-019	6- 1-20	Levies special tax
2020-021	7-19-20	Rezoning
2020-023	8- 1-20	Levies special tax
2020-025	7-17-20	Levies special tax
2020-026	7-16-20	Levies special tax
2020-028	9- 1-20	Levies special tax
2020-029	9- 1-20	Levies special tax
2020-032	8-27-20	Rezoning
2020-033	8-27-20	Rezoning
2020-034	9-25-20	Levies special tax
2020-035	10-18-20	Rezoning
2020-042	9-28-20	Levies special tax
2020-046	11-15-20	Rezoning
2020-047	11-15-20	Rezoning
2020-048	11-15-20	Rezoning
2020-049	11-30-20	Special speed zones
2020-053	10-30-20	Levies special tax

Ordinance Number	Effective Date	Subject
2020-055	12-17-20	Non-exclusive franchise for roll-off collection services
2020-056	11-30-20	Levies special tax
2020-057	12-15-20	Levies special tax
2021-001	2- 3-21	Levies special tax
2021-002	2- 3-21	Levies special tax
2021-003	2-28-21	Rezoning
2021-006	3- 9-21	Levies special tax
2021-007	3- 9-21	Levies special tax
2021-008	4- 4-21	Tower District Specific Plan
2021-009	4- 4-21	Rezoning
2021-011	3-29-21	Levies special tax
2021-019	5-20-21	Levies special tax
2021-020	5-20-21	Levies special tax
2021-024	6- 7-21	Levies special tax
2021-025	7-11-21	Adopts development agreement between the City and Lennar Homes of California, Inc.
2021-031	6-23-21	Levies special tax
2021-033	7-29-21	Levies property tax
2021-034	7-21-21	Levies special tax
2021-035	7-21-21	Levies special tax
2021-037	8-26-21	Levies special tax
2021-038	8-26-21	Levies special tax
2021-040	9-13-21	Levies special tax
2021-042	10-11-21	Levies special tax
2021-043	10-11-21	Levies special tax
2021-046	10-22-21	Levies special tax
2021-047	12- 4-21	Special speed zones
2021-049	1-17-22	Development agreement by and between City of Fresno and Fagundes Bros. Dairy
2021-051	12-17-21	Levies special tax
2021-055	1-23-22	Adopts new council boundaries
2022-006	5- 2-22	Levies special tax
2022-012	6-13-22	Levies special tax
2022-015	7-30-22	Amendment to development agreement between city and 2500 MLK, LLC
2022-016	6-29-22	Levies special tax
2022-020	8- 5-22	Levies property tax
2022-021	7- 5-22	Levies special tax
2022-022	8-27-22	Compensation of elective officers
2022-023	7-27-22	Levies special tax

Ordinance Number	Effective Date	Subject
2022-025	9-11-22	Rezoning
2022-027	11-10-22	Adopting official plan lines for West North Avenue
2022-030	11-13-22	Rezoning
2022-031	11-13-22	Rezoning
2022-032	10-19-22	Levies special tax
2022-035	12-10-22	Amending official list of special speed zones
2022-036	12- 4-22	Rezoning
2023-001	1-27-23	Levies special tax
2023-002	2-19-23	Zoning map
2023-004	3- 1-23	Levies special tax
2023-005	4- 4-23	Levies special tax
2023-006	4- 4-23	Levies special tax
2023-007	4-30-23	Zoning map
2023-008	4-20-23	Levies special tax
2023-009	4-20-23	Levies special tax
2023-011	4-25-23	Levies special tax
2023-014	6-11-23	Zoning map
2023-015	6- 1-23	Levies special tax
2023-016	6- 1-23	Levies special tax
2023-017	6- 1-23	Levies special tax
2023-018	6- 5-23	Levies special tax
2023-021	7-24-23	Levies property tax
2023-022	7- 5-23	Levies special tax
2023-026	9-15-23	Grants non-exclusive franchise for roll-off collection services
2023-027	8-15-23	Levies special tax
2023-028	9-10-23	Zoning map
2023-029	9-10-23	Zoning map
2023-033	11-29-23	Amending official list of special speed zones
2023-034	12-18-23	Levies special tax
2023-035	1-14-24	Zoning map
2024-004	4- 7-24	Zoning map
2024-005	3-12-24	Levies special tax
2024-007	4-21-24	Zoning map
2024-009	5- 5-24	Zoning map
2024-011	5-19-24	Zoning map
2024-013	5-13-24	Levies special tax
2024-016	7-27-24	Levies property tax
2024-019	6-28-24	Levies special tax
2024-021	8-25-24	Zoning map
2024-022	8-23-24	Levies special tax
2024-023	8-23-24	Levies special tax
2024-029	9-16-24	Levies special tax

Ordinance Number	Effective Date	Subject
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2024-031	10- 2-24	Levies special tax
2024-032	10- 2-24	Levies special tax
2024-033	11- 2-24	Grants non-exclusive franchise for roll-off collection services
2024-035	10-15-24	Levies special tax
2024-036	10-15-24	Levies special tax
2024-039	11-26-24	Levies special tax
2024-040	12-22-24	Zoning map
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2025-001	1-13-25	Levies special tax
2025-004	3-30-25	Zoning map
2025-012	5- 5-25	Levies special tax
2025-013	5-12-25	Levies special tax
2025-014	5-12-25	Levies special tax
2025-015	5-12-25	Levies special tax
2025-016	5-12-25	Levies special tax
2025-017	5-28-25	Levies special tax
2025-018	6-22-25	Zoning map
2025-019	5-28-25	Levies special tax
2025-025	7-18-25	Levies special tax
2025-027	7- 1-25	Levies special tax
2025-028	7- 1-25	Levies special tax
2025-029	7- 1-25	Levies special tax
2025-030	7- 1-25	Levies special tax
2025-031	7-27-25	Zoning map
2025-032	8-17-25	Zoning map
2025-033	8-17-25	Rezoning
2025-034	9-14-25	Zoning map
2025-035	9- 3-25	Levies special tax
2025-038	9-22-25	Levies special tax
2025-042	10-21-25	Levies special tax
2025-044	11-16-25	Zoning map
2025-045	11-16-25	Rezoning
2025-047	11- 6-25	Levies special tax
2025-049	12- 7-25	Zoning map
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2025-051	12-21-25	Approving plan amendment No. P25-03197, to repeal the Tower District Design Guidelines
2025-052	12-21-25	Rezoning

Ordinance Number	Effective Date	Subject
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82-22	3-19-82	1	9-501(bb)
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82-37	4-16-82	1	12-231.6(note)
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82-50	(see ord.)			App. A
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82-52	6-11-82	1		2-1811.1
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82-58	7- 2-82	1		11-208(e)
82-59	7- 9-82	1		12-306-I-3
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83-6	(see ord.)			App. A
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83-34	4-15-84	1	Rpld	13-160.100—13-160.107
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83-35	4-22-83	1		12-105-F-3.1
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83-49	(see ord.)		App. A
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83-60	7- 1-83		App. A
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83-65	7- 1-83		App. A
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83-72	7- 1-83		App. A
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83-86	7-15-83	1		12-105-A-4.1
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83-87	7-15-83	1	Rpld	6-701—6-708, 6-710—6-720, 6-722—6-726
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83-88	7-15-83	1		5-306
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83-93	7-22-83	1		5-202(c)
83-94	7-22-83	1		8-411
83-95	7-29-83	1		13-1302.2
		2		13-1303(g)
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83-98	7-29-83			App. A
83-99	7-29-83			App. A
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83-101	(see ord.)			App. A
83-102	(see ord.)			App. A
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83-104	8-12-83			5-306
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83-106	9- 2-83			App. A
83-107	9-16-83	1	Rpld	12-224.4-E
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83-111	9-16-83	1		2-1650(b)
83-112	9-16-83	1		2-1515(c)
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83-122	9-30-83	1		9-503(a)
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83-128-A	(see ord.)			App. A
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83-131	10-21-83	1		2-1508(b)
83-132	10-21-83			App. A
83-133	(see ord.)			App. A
83-134	10-28-83	1		10-103(a)
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83-139	(see ord.)			App. A
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83-149	12- 2-83	1		10-1401(a)
83-150	12- 2-83	1		11-208(g)
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83-153	12- 2-83	1		2-2901(a)
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84-45	(see ord.)		App. A
84-46	(see ord.)		App. A
84-47	5-11-84	1	2-1723(a)
		2	2-1732(e)
84-48	5-11-84		App. A
84-49	(see ord.)		App. A
84-50	(see ord.)		App. A
84-51	(see ord.)		App. A
84-52	(see ord.)		App. A
84-53	5-18-84	1	10-1210
84-54	5-25-84	1	12-220.1-B
		2	12-220.3-B
		3	12-221.1-B
		4	12-221.3-B
		5	12-222.1
		6	12-222.3-B
		7	12-405-A-2
84-55	(see ord.)		App. A
84-56	(see ord.)		App. A
84-57	(see ord.)		App. A
84-58	6- 1-84	1	9-701.101 9-702.102, 9-702.103 9-702.107 9-702.202 9-702.301— 9-702.303 9-703.101

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84-59	(see ord.)		App. A
84-60	(see ord.)		App. A
84-61	6- 8-84	1	12-1206(c)
84-62	6- 8-84		App. A
84-63	6- 8-84		App. A
84-64	(see ord.)		App. A
84-65	(see ord.)		App. A
84-66	6-15-84	1	12-306-I-1
84-67	(see ord.)		App. A
84-68	(see ord.)		App. A
84-69	(see ord.)		App. A
84-70	(see ord.)		App. A
84-71	(see ord.)		App. A
84-72	(see ord.)		App. A
84-73	(see ord.)		App. A
84-74	6-22-84		App. A
84-75	(see ord.)		App. A
84-76	(see ord.)		App. A

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84-78	(see ord.)		App. A
84-79	7- 6-84	1	2-2203(a)
84-80	(see ord.)		App. A
84-81	(see ord.)		App. A
84-82	7-13-84	1	8-120(f)
84-83	7-13-84	1	18-701—18-703
84-84	7-13-84		App. A
84-85	(see ord.)		App. A
84-86	(see ord.)		App. A
84-87	(see ord.)		App. A
84-88	(see ord.)		App. A
84-89	(see ord.)		App. A
84-90	7-20-84		App. A
84-91	(see ord.)		App. A
84-92	7-27-84	1	2-1637.2
84-93	7-27-84	1	11-226(f)
84-94	7-27-84		App. A
84-95	7-27-84		App. A
84-96	(see ord.)		App. A
84-97	(see ord.)		App. A
84-98	7-27-84		App. A
84-99	(see ord.)		App. A
84-100	(see ord.)		App. A
84-101	(see ord.)		App. A
84-102	(see ord.)		App. A
84-102A	(see ord.)		App. A
84-103	(see ord.)		App. A
84-104	(see ord.)		App. A
84-105	(see ord.)		App. A
84-106	(see ord.)		App. A
84-107	(see ord.)		App. A
84-108	(see ord.)		App. A
84-109	8-31-84		App. A
84-110	(see ord.)		App. A
84-111	(see ord.)		App. A
84-112	(see ord.)		App. A
84-113	(see ord.)		App. A
84-114	(see ord.)		App. A
84-115	(see ord.)		App. A
84-116	(see ord.)		App. A
84-117	(see ord.)		App. A
84-118	(see ord.)		App. A
84-119	9-28-84		App. A
84-120	(see ord.)		App. A
84-121	9-28-84		App. A
84-122	9-28-84	1	13-1305(b)

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		2		13-1306(a)
84-123	9-28-84	1		2-1675.1
84-124	(see ord.)			App. A
84-125	(see ord.)			App. A
84-126	(see ord.)			App. A
84-127	10-12-84			App. A
84-128	(see ord.)			App. A
84-129	10-12-84			App. A
84-130	10-12-84			App. A
84-131	(see ord.)			App. A
84-132	(see ord.)			App. A
84-133	10-19-84	1		13-150.1—13-150.6, 13-150.335-3, 13-150.384.2, 13-150.680.20, 13-150.901—13-150.910
84-134	10-19-84			App. A
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84-136	11- 2-84			App. A
84-137	(see ord.)			App. A
84-138	(see ord.)			App. A
84-139	(see ord.)			App. A
84-140	11- 2-84			App. A
84-141	11- 9-84			App. A
84-142	(see ord.)			App. A
84-143	11- 9-84			App. A
84-144	(see ord.)			App. A
84-145	11- 9-84			App. A
84-146	(see ord.)			App. A
84-147	(see ord.)			App. A
84-148	11-16-84			App. A
84-149	11-16-84			App. A
84-150	(see ord.)			App. A
84-151	(see ord.)			App. A
84-152	(see ord.)			App. A
84-153	(see ord.)			App. A
84-154	(see ord.)			App. A
84-155	11-23-84	1		12-306-I-1
84-156	11-23-84	1		12-203-A
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84-157	(see ord.)			App. A
84-158	(see ord.)			App. A
84-159	(see ord.)			App. A
84-160	(see ord.)			App. A
84-161	(see ord.)			App. A

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84-163	12-14-84		App. A
84-164	(see ord.)		App. A
84-165	(see ord.)		App. A
84-166	(see ord.)		App. A
84-167	(see ord.)		App. A
84-168	1- 4-85	1	13-130.100 13-130.304 13-130.503(a) 13-130.504 13-130.710(e)—(h) 13-130.1009 13-130.1105 13-130.1301 13-130.1800 13-130.1903 13-130.2002(b) 13-130.2004(c)
84-169	1- 4-85	1	13-140.100 13-140.150 13-140.212 13-140.313 13-140.317 13-140.320.1 13-140.401(a-2) 13-140.503(a-2) 13-140.601 13-140.601.1 13-140.610 13-140.613 13-140.701(e) 13-140.1002(e) 13-140.1003(i) 13-140.1004(a) 13-140.1106(a) 13-140.1206(c-2) 13-140.1206(e) 13-140.1311(f) 13-140.1400(C) 13-140.1400(D1-a) 13-140.1400(D1-e) 13-140.1400 (D2.1-d) 13-140.1400(D2.2) 13-140.1400(G6) 13-140.1400(G7)

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			13-140.1400(I7-d)
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84-172	(see ord.)		App. A
84-173	1-11-85		App. A
84-174	(see ord.)		App. A
84-175	(see ord.)		App. A
84-176	(see ord.)		App. A
84-177	(see ord.)		App. A
84-178	(see ord.)		App. A
84-179	(see ord.)		App. A
84-180	(see ord.)		App. A
84-181	(see ord.)		App. A
84-182	1-18-85		App. A
85-1	(see ord.)		App. A
85-2	2- 8-85		App. A
85-3	2- 8-85	1	2-3205(o)
85-4	(see ord.)		App. A
85-5	2-15-85		App. A
85-6	2-15-85		App. A
85-7	(see ord.)		App. A
85-8	(see ord.)		App. A
85-9	2-15-85	1	9-503(a), 14-107(a)
85-10	2-15-85		App. A
85-11	(see ord.)		App. A
85-12	(see ord.)		App. A
85-13	(see ord.)		App. A
85-14	(see ord.)		App. A
85-15	(see ord.)		App. A
85-16	(see ord.)		App. A
85-17	3- 1-85		App. A
85-18	3- 1-85		App. A
85-19	3- 1-85		App. A
85-20	3- 1-85		App. A
85-21	(see ord.)		App. A
85-22	3-22-85	1	9-502(d)
		2	9-503(a)
		3	9-602(c)
		4	14-104(a)
		5	14-105(e)
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		7	14-126
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85-26	3-22-85		App. A
85-27	3-22-85		App. A
85-28	3-22-85		App. A
85-29	(see ord.)		App. A
85-30	(see ord.)		App. A
85-31	3-28-85	1	12-209.5-C-2
		2	12-210.5-C-2
85-32	(see ord.)		App. A
85-33	(see ord.)		App. A
85-34	(see ord.)		App. A
85-35	(see ord.)		App. A
85-36	(see ord.)		App. A
85-37	4-12-85	1	11-226(f)
85-38	4-12-85	1	12-4.501.5-M
		2	12-4.510
		3	14-101(hh)
		4	14-107(a)
		5	14-107.1(d)
		6	14-112(b)
85-39	(see ord.)		App. A
85-40	4-19-85	1	12-105-C-5.5
		2	12-217.3-B
		3	12-306-N-39
85-41	(see ord.)		App. A
85-42	(see ord.)		App. A
85-43	(see ord.)		App. A
85-44	(see ord.)		App. A
85-45	5-10-85	1	13-401(h)
85-46	5-10-85	1	11-226(a)
85-47	(see ord.)		App. A
85-48	(see ord.)		App. A
85-49	5-10-85	1	12-4.508-G-3
		2	12-4.509-F-3
85-50	(see ord.)		App. A
85-51	(see ord.)		App. A
85-52	(see ord.)		App. A
85-53	(see ord.)		App. A
85-54	5-17-85		App. A
85-55	(see ord.)		App. A
85-56	(see ord.)		App. A
85-57	5-17-85		App. A
85-58	5-17-85		App. A
85-59	5-24-85	1, 2	2-1520(a), (b)
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			13-120.301(b)
			13-120.304

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			13-120.402
			13-120.420
			13-120.504(c)
			13-120.505(e)
			13-120.508
			13-120.509
			13-120.603
			13-120.708
			13-120.803
			13-120.1001
			13-120.1107
			13-120.1214
			13-120.1508
			13-120.1709(a)
			13-120.2311(i)
			13-120.2312(m)
			13-120.2516(g)2.1
			13-120.2905(f)
			13-120.3202(b)
			13-120.3205(a)
			13-120.3304(a)
			13-120.3304(b)
			13-120.3304(c)
			13-120.3305(a)
			13-120.3802(a)
			13-120.3802(a)1
			13-120.3802(a)2
			13-120.3802(a)3
			13-120.4402(a)4
			13-120.4505(a)
			13-120.4701(b)
			13-120.4706(e)
			13-120.7012
			13-120.9000
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85-62	5-31-85		App. A
85-63	6- 7-85		App. A
85-64	(see ord.)		App. A
85-65	(see ord.)		App. A
85-66	(see ord.)		App. A
85-67	6- 7-85		App. A
85-68	(see ord.)		App. A
85-69	6-14-85	1	9-779.113
		2	9-779.409
		3	9-779.509(b)
85-70	(see ord.)		App. A

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85-73	(see ord.)			App. A
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85-75	(see ord.)			App. A
85-76	(see ord.)			App. A
85-77	(see ord.)			App. A
85-78	(see ord.)			App. A
85-79	6-28-85			App. A
85-80	6-28-85	1		12-215.1-B
		2		12-215.3-B
		3		12-216.1-B
		4		12-216.3-B
85-81	6-28-85			App. A
85-82	(see ord.)			App. A
85-83	(see ord.)			App. A
85-84	(see ord.)			App. A
85-85	(see ord.)			App. A
85-86	7- 5-85			App. A
85-87	7-12-85			App. A
85-88	7-12-85	1		5-305(d)
85-89	7-12-85	1		2-1212
85-90	7-12-85			App. A
85-91	7-19-85	1		11-305(c)
85-92	7-19-85			App. A
85-93	(see ord.)			App. A
85-94	(see ord.)			App. A
85-95	(see ord.)			App. A
85-96	(see ord.)			App. A
85-97	8-16-85			App. A
85-98	8-16-85			App. A
85-99	8-16-85	1		12-216.5-E-1
85-100	8-16-85	1		12-207.5-H-2
85-101	(see ord.)			App. A
85-102	8-16-85			App. A
85-103	(see ord.)			App. A
85-104	(see ord.)			App. A
85-105	(see ord.)			App. A
85-106	8-30-85	1	Rpld	7-101—7-103
85-107	8-30-85	1	Rpld	6-111
85-108	(see ord.)			App. A
85-109	8-30-85			App. A
85-110	(see ord.)			App. A
85-111	9-13-85	1	Rpld	2-2001—2-2011
		2		2-2001, 2-2002
85-112	9-13-85	1		13-1306(a)
85-113	(see ord.)			App. A

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85-115	(see ord.)			App. A
85-116	9-13-85			App. A
85-117	9-13-85	1		13-401(a)
		2		13-402(b)
		3		13-402(g)
		4		13-410
85-118	9-13-85	1		5-306(d)
85-119	9-13-85	1		2-1710.1(f)—(i)
		2		2-1811.1(f)—(i)
85-120	(see ord.)			App. A
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		2		12-105-P-12.5
		3		12-209.3-B-9
		4	Rpld	12-209.5-A-2
		5	Rpld	12-209.5-C-2
		6	Rpld	12-209.5-F-2
		7		12-210.3-B-10
		8	Rpld	12-210.5-A-2
		9	Rpld	12-210.5-C-2
		10	Rpld	12-210.5-F-2
		11		12-211.3-B-10
		12		12-211.5-C-1
		13	Rpld	12-225.3-B-9
		14		12-304-B-12
		15		12-306-N-21
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85-122	(see ord.)			App. A
85-123	(see ord.)			App. A
85-124	9-27-85	1		2-1515
85-125	9-27-85	1		5-207
85-126	9-27-85	1		12-1005.2
		2, 3		12-1205(d), (e)
85-127	(see ord.)			App. A
85-128	(see ord.)			App. A
85-129	(see ord.)			App. A
85-130	9-27-85			App. A
85-131	(see ord.)			App. A
85-132	(see ord.)			App. A
85-133	(see ord.)			App. A
85-134	(see ord.)			App. A
85-135	(see ord.)			App. A
85-136	(see ord.)			App. A
85-137	10-11-85			App. A
85-138	(see ord.)			App. A
85-139	10-18-85	1		2-1701
		2		2-1717.1

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85-141		Number not used	
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85-143	(see ord.)		App. A
85-144	(see ord.)		App. A
85-145	(see ord.)		App. A
85-146	(see ord.)		App. A
85-147	11- 1-85	1	13-904(p)
85-148	11- 1-85	1	9-1006
85-149	(see ord.)		App. A
85-150	11-15-85		App. A
85-151	11-15-85		App. A
85-152	(see ord.)		App. A
85-153	11-22-85		App. A
85-154	(see ord.)		App. A
85-155	(see ord.)		App. A
85-156	(see ord.)		App. A
85-157	(see ord.)		App. A
85-158	11-22-85	1	12-4.506-B
85-159	(see ord.)		App. A
85-160	(see ord.)		App. A
85-161	11-22-85		App. A
85-162	(see ord.)		App. A
85-163	(see ord.)		App. A
85-164	(see ord.)		App. A
85-165	(see ord.)		App. A
85-166	(see ord.)		App. A
85-167	11-29-85	1	2-1703
		2	2-1736
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85-169	11-29-85		App. A
85-170	12-13-85		App. A
85-171	12-13-85		App. A
85-172	(see ord.)		App. A
85-173	(see ord.)		App. A
85-174	12-13-85	1	7-401—7-403
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		5	12-317-B-1
85-175	(see ord.)		App. A
85-176	(see ord.)		App. A
85-177	(see ord.)		App. A
85-178	(see ord.)		App. A

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85-181	(see ord.)		App. A
85-182	(see ord.)		App. A
85-183	1- 3-86	1	12-406-A
85-184	(see ord.)		App. A
85-185	1- 3-86	1	9-701.101 9-702.102, 9-702.103 9-702.107 9-702.202 9-702.301— 9-702.303 9-703.101 9-704.101 9-709.102 9-710.102 9-710.203 9-710.209 9-710.301, 9-710.302 9-710.308 9-711.101 9-711.201, 9-711.202 9-711.204 9-711.210 9-711.301 9-711.405 9-725.116 9-732.110 9-745.206 9-777.202 9-779.114 9-779.116 9-779.409 9-779.501 9-779.804 9-779.902 9-780.101, 9-780.102 9-780.112, 9-780.113 9-782.102, 9-782.103 9-785.108 9-788.101

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85-187	1-17-86	1		2-1513(a)
85-188	(see ord.)			App. A
85-189	(see ord.)			App. A
85-190	1-17-86			App. A
85-191	1-17-86	1		6-901
		2		6-904(a)
		3		6-905(a)
		4		6-907
		5, 6		6-908(a), (b)
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		10, 11		6-910(g), (h)
		12		6-912(a)
		13	Rpld	6-912(b)
		14		6-912(c)
		15		6-915
		16		6-916(c)
		17		6-918(c)
		18		6-919(a)
		19—42		6-919(c)—(z)
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		46		6-920
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85-193	(see ord.)			App. A
85-194	(see ord.)			App. A
85-195	(see ord.)			App. A
85-196	1-31-86	1		12-1002.1
		2, 3		12-1004, 12-1005
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		7		12-1006(a)
		8		12-1007(d)
		9		12-1202
		10		12-1205(a)
		11		12-1205(e)
		12		12-1205.1
85-197	1-31-86	1		13-120.305(e)
		2		13-120.3205(a)
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86-1	(see ord.)			App. A
86-2	(see ord.)			App. A
86-3	(see ord.)			App. A
86-4	2-14-86			App. A

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86-5	(see ord.)			App. A
86-6	(see ord.)			App. A
86-7	(see ord.)			App. A
86-8	(see ord.)			App. A
86-9	(see ord.)			App. A
86-10	(see ord.)			App. A
86-11	(see ord.)			App. A
86-12	(see ord.)			App. A
86-13	2-28-86			App. A
86-14	2-28-86			App. A
86-15	(see ord.)			App. A
86-16	3- 7-86			App. A
86-17	(see ord.)			App. A
86-18	3- 7-86	1	Rpld	10-801—10-803
		2		10-2201—10-2212
86-19	(see ord.)			App. A
86-20	(see ord.)			App. A
86-21	(see ord.)			App. A
86-22	3-14-86	1		13-911(f)
86-23	3-14-86			App. A
86-24	(see ord.)			App. A
86-25	(see ord.)	1		App. A
86-26	3-28-86			3-107(b)
86-27	3-28-86			App. A
86-28	3-28-86			App. A
86-29	(see ord.)			App. A
86-30	(see ord.)			App. A
86-31	(see ord.)			App. A
86-32	3-28-86			App. A
86-33	4- 4-86	1, 2		12-404-J, K
86-34	(see ord.)			App. A
86-35	(see ord.)			App. A
86-36	(see ord.)			App. A
86-37	(see ord.)			App. A
86-38	(see ord.)			App. A
86-39	4-18-86	1		2-1715.1
		2		2-1817.1
86-40	(see ord.)			App. A
86-41	4-18-86	1		12-105-5-1.1
		2		12-306-N-40
86-42	(see ord.)			App. A
86-43	(see ord.)			App. A
86-44	(see ord.)			App. A
86-45	(see ord.)			App. A
86-46	(see ord.)			App. A
86-47	(see ord.)			App. A

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86-48	(see ord.)		App. A
86-49	(see ord.)		App. A
86-50	(see ord.)		App. A
86-51	5- 2-86	1	12-4.508-B
		2, 3	12-4.508-D-3, 4
		4	12-4.509-A
		5, 6	12-4.509-C-3, 4
86-52	(see ord.)		App. A
86-53	(see ord.)		App. A
86-54	(see ord.)		App. A
86-55	(see ord.)		App. A
86-56	(see ord.)		App. A
86-57	(see ord.)		App. A
86-58	5- 9-86	1	9-1401(a)
		2	9-1402(c)—(e)
		3	13-120.1107
86-59	(see ord.)		App. A
86-60	(see ord.)		App. A
86-61	(see ord.)		App. A
86-62	(see ord.)		App. A
86-63	(see ord.)		App. A
86-64	(see ord.)		App. A
86-65	(see ord.)		App. A
86-66	(see ord.)		App. A
86-67	5-30-86		App. A
86-68	(see ord.)		App. A
86-69	(see ord.)		App. A
86-70	6- 6-86	1	12-105-B-2.5
		2	12-216.3-B
		3	12-219.3-B
		4	12-220.3-B
		5	12-222.3-B
		6	12-223.3-B
		7	12-306-I-2
86-71	6-13-86	1	10-1401(a)
86-72	(see ord.)		App. A
86-73	6-13-86		App. A
86-74	6-13-86		App. A
86-75	(see ord.)		App. A
86-76	(see ord.)		App. A
86-77	(see ord.)		App. A
86-78	(see ord.)		App. A
86-79	6-20-86		App. A
86-80	(see ord.)		App. A
86-81	(see ord.)		App. A
86-82	(see ord.)		App. A
86-83	6-20-86		App. A

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86-84	6-20-86		App. A
86-85	(see ord.)		App. A
86-86	(see ord.)		App. A
86-87	(see ord.)		App. A
86-88	(see ord.)		App. A
86-89	(see ord.)		App. A
86-90	(see ord.)		App. A
86-91	(see ord.)		App. A
86-92	(see ord.)		App. A
86-93	7- 4-86		App. A
86-94	7- 4-86		App. A
86-95	7- 4-86	1	12-405-B-6
86-96	(see ord.)		App. A
86-97	(see ord.)		App. A
86-98	(see ord.)		App. A
86-99	(see ord.)		App. A
86-100	(see ord.)		App. A
86-101	(see ord.)		App. A
86-102	(see ord.)		App. A
86-103	(see ord.)		App. A
86-104	7-18-86		App. A
86-105	(see ord.)		App. A
86-106	(see ord.)		App. A
86-107	(see ord.)		App. A
86-108	(see ord.)		App. A
86-109	(see ord.)		App. A
86-110	7-25-86		App. A
86-111	(see ord.)		App. A
86-112	(see ord.)		App. A
86-113	6-25-86		App. A
86-114	(see ord.)		App. A
86-115	8- 8-86		App. A
86-116	(see ord.)		App. A
86-117	(see ord.)		App. A
86-118	8- 8-86		App. A
86-119	8-18-86	1	9-1101(e)
		2	9-1105
		3	12-306-O
		4	12-405-B-7
		5	12-1012(a)
		6	12-1206(c)
86-120	(see ord.)		App. A
86-121	(see ord.)		App. A
86-122	(see ord.)		App. A
86-123	(see ord.)		App. A
86-124	(see ord.)		App. A
86-125	(see ord.)		App. A

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86-126	(see ord.)		App. A
86-127	(see ord.)		App. A
86-128	9-12-86	1	9-805(c)
		2	9-806.1
		3	9-808(a)
86-129	(see ord.)		App. A
86-130	(see ord.)		App. A
86-131	9-12-86	1	12-4.505-D
86-132	9-12-86	1	11-204(f)
86-133	9-12-86	1	13-120.4100
86-134	9-12-86	1, 2	12-404-K(1), (2)
86-135	9-12-86		App. A
86-136	9-12-86		App. A
86-137	(see ord.)		App. A
86-138	(see ord.)		App. A
86-139	(see ord.)		App. A
86-140	(see ord.)		App. A
86-141	(see ord.)		App. A
86-142	(see ord.)		App. A
86-143	(see ord.)		App. A
86-144	(see ord.)		App. A
86-144A	(see ord.)		App. A
86-145	9-26-86		App. A
86-146	(see ord.)		App. A
86-147	(see ord.)		App. A
86-148	10-17-86	1	3-107(b)
86-149	10-17-86	1, 2	2-1812.1(e), (f)
86-150	10-17-86	1	2-1106(d)
86-151	(see ord.)		App. A
86-152	(see ord.)		App. A
86-153	(see ord.)		App. A
86-154	(see ord.)		App. A
86-155	10-24-86	1	14-107.1(a)
86-156	10-24-86		App. A
86-157	(see ord.)		App. A
86-158	(see ord.)		App. A
86-159	(see ord.)		App. A
86-160	(see ord.)		App. A
86-161	10-31-86		12-211.5-H
86-162	(see ord.)		App. A
86-163	(see ord.)		App. A
86-164	(see ord.)		App. A
86-165	(see ord.)		App. A
86-166			Number not used.
86-167	(see ord.)		App. A
86-168	(see ord.)		App. A

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86-169	(see ord.)		App. A
86-170	(see ord.)		App. A
86-171	12- 5-86		App. A
86-172	12- 5-86		App. A
86-173	12- 5-86		App. A
86-174	(see ord.)		App. A
86-175	(see ord.)		App. A
86-176	(see ord.)		App. A
86-177	12-19-86		App. A
86-178	(see ord.)		App. A
86-179	12-26-86	1	11-226(f)
86-180	(see ord.)		App. A
86-181	12-26-86		App. A
86-182	(see ord.)		App. A
86-183	12-26-86	1	7-401—7-403
86-184	(see ord.)		App. A
86-185	(see ord.)		App. A
86-186	1- 9-87		App. A
86-187	12- 9-86		App. A
86-188	(see ord.)		App. A
86-189	1-16-87	1	12-317-H
86-190	(see ord.)		App. A
86-191	(see ord.)		App. A
86-192	1-16-87		App. A
86-193	1-16-87		App. A
86-194	(see ord.)		App. A
86-195	1-16-87		App. A
86-196	1-16-87		App. A
86-197	1-16-87		App. A
86-198	1-16-87		App. A
86-199	1-16-87		App. A
86-200	1-16-87		App. A
86-201	1-16-87		App. A
86-202	1-16-87		App. A
86-203	1-16-87		App. A
86-204	1-16-87		App. A
86-205	1-16-87		App. A
86-206	(see ord.)		App. A
86-207	(see ord.)		App. A
86-208	(see ord.)		App. A
86-209	(see ord.)		App. A
86-210	(see ord.)		App. A
86-211	(see ord.)		App. A
86-212	(see ord.)		App. A
86-213	(see ord.)		App. A
86-214	(see ord.)		App. A
87-1	2- 6-87	1	2-1614

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		2	2-1645(j)
87-2	(see ord.)		App. A
87-3	2- 6-87		App. A
87-4	(see ord.)		App. A
87-5	(see ord.)		App. A
87-6	(see ord.)		App. A
87-7	2-13-87	1	3-303
		2	3-307
		3	3-306(d)
87-8	2-13-87	1	2-2704
		2	2-2706
87-9	(see ord.)		App. A
87-10	(see ord.)		App. A
87-11	(see ord.)		App. A
87-12	2-20-87		App. A
87-13	2-20-87	1	12-306-N-10
		2, 3	12-105-B
		4	12-105-C
87-14	2-20-87		App. A
87-15	(see ord.)		App. A
87-16	2-27-87		App. A
87-17	(see ord.)		App. A
87-18	2-27-87		App. A
87-19	(see ord.)		App. A
87-20	(see ord.)		App. A
87-21	(see ord.)		App. A
87-22	2-10-87	1	12-204.5-A
87-23	(see ord.)		App. A
87-24	(see ord.)		App. A
87-25	(see ord.)		App. A
87-26	(see ord.)		App. A
87-27	3-27-87		App. A
87-28	(see ord.)		App. A
87-29	3-17-87	1	9-501.1(x)
		2	9-505
		3	9-513(a)
87-30	(see ord.)		App. A
87-31	(see ord.)		App. A
87-32	4-24-87	1	9-779.103
87-33	(see ord.)		App. A
87-34	4-24-87	1	8-106.1(2)
87-35	4-24-87		App. A
87-36	(see ord.)		App. A
87-37	(see ord.)		App. A
87-38	(see ord.)		App. A
87-39	(see ord.)		App. A
87-40	5- 1-87	1—3	12-226.3-B

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		4—6	12-227.3-B
		7—9	12-228.3-B
		10	12-306-N-30
87-41	(see ord.)		App. A
87-42	(see ord.)		App. A
87-43	(see ord.)		App. A
87-44	(see ord.)		App. A
87-45	5-15-87	1	2-1826(b)
87-46	(see ord.)		App. A
87-47	(see ord.)		App. A
87-48			Number not used.
87-49	(see ord.)		App. A
87-50	(see ord.)		App. A
87-51	(see ord.)		App. A
87-52	(see ord.)		App. A
87-53	(see ord.)		App. A
87-54	(see ord.)		App. A
87-55	(see ord.)		App. A
87-56	(see ord.)		App. A
87-57	(see ord.)		App. A
87-58	6-26-87	1	11-208.1(a)
87-59	6-26-87	1	12-104-J
		2	12-105-C-19.5
		3	12-105-D-7.1
		4	12-105-G-6.1
		5	12-105-P-11.1
		6	12-105-R-4.1
		7	12-105-S-20.1
		8	12-403
		9	12-410
		10	12-601—12-610
		11	12-1025
87-60	(see ord.)		App. A
87-61	(see ord.)		App. A
87-62	7- 3-87	1	12-4.508-E-1
87-63	7- 3-87		App. A
87-64	7- 3-87		App. A
87-65	7- 3-87		App. A
87-66	(see ord.)		App. A
87-67	(see ord.)		App. A
87-68	(see ord.)		App. A
87-69	(see ord.)		App. A
87-70	(see ord.)		App. A
87-71	7-17-87	1	12-218.1-B-28
		2	12-306-N-41
87-72	7-17-87	1	13-911(i)

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87-73	(see ord.)			App. A
87-74	(see ord.)			App. A
87-75	(see ord.)			App. A
87-76	6-16-87	1	Rpld	7-306.7
		2	Rpld	10-804
		3		11-901—11-915
				11-917, 11-918
87-77	(see ord.)			App. A
87-78	(see ord.)			App. A
87-79	7-24-87	1		12-105-B-21
		2		12-204.3-B-4
		3		12-204.3-B-6
		4		12-304-B-4
		5		12-306-N-2
		6		12-322
87-80	7-24-87	1		13-910(l)
87-81	7-24-87			App. A
87-82	7-24-87	1		2-1843
87-83	(see ord.)			App. A
87-84	6-30-87			App. A
87-85	8- 7-87	1		11-226(f)
87-86	(see ord.)			App. A
87-87	8- 7-87			App. A
87-88	(see ord.)			App. A
87-89	(see ord.)			App. A
87-90	9-18-87	1		9-806.1(h)
87-91	(see ord.)			App. A
87-92	(see ord.)			App. A
87-93	(see ord.)			App. A
87-94	(see ord.)			App. A
87-95	9-18-87			App. A
87-96	(see ord.)			App. A
87-97	(see ord.)			App. A
87-98	9-18-87			App. A
87-99	(see ord.)			App. A
87-100	(see ord.)			App. A
87-101	(see ord.)			App. A
87-102	9-25-87			App. A
87-103	(see ord.)			App. A
87-104	(see ord.)			App. A
87-105	(see ord.)			App. A
87-106	(see ord.)			App. A
87-107	(see ord.)			App. A
87-108	(see ord.)			App. A
87-109	(see ord.)			App. A
87-110	9-25-87	1, 2		11-702, 11-703
		3	Rpld	11-704

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		4, 5		11-705, 11-706
87-111	(see ord.)			App. A
87-112				Number not used
87-113	(see ord.)			App. A
87-114	(see ord.)			App. A
87-115	(see ord.)			App. A
87-116	(see ord.)			App. A
87-117	(see ord.)			App. A
87-118	10-23-87			App. A
87-119	(see ord.)			App. A
87-120	(see ord.)			App. A
87-121	10-23-87			App. A
87-122	(see ord.)			App. A
87-123	(see ord.)			App. A
87-124	(see ord.)			App. A
87-125	(see ord.)			App. A
87-126	(see ord.)			App. A
87-127	(see ord.)			App. A
87-128	(see ord.)			App. A
87-129	(see ord.)			App. A
87-130	10-30-87			App. A
87-131	(see ord.)			App. A
87-132	(see ord.)			App. A
87-133	(see ord.)			App. A
87-134	(see ord.)			App. A
87-135	(see ord.)			App. A
87-136	11-13-87	1—3		12-313-B—D
87-137	11-13-87	1		12-105-C-20.5
		2, 3		12-105-U-3.5, 4
87-138	11-13-87	1		2-2912
87-139	11-13-87	1		2-201—2-209
87-140	(see ord.)			App. A
87-141	(see ord.)			App. A
87-142	(see ord.)			App. A
87-143	10-13-87			App. A
87-144	(see ord.)			App. A
87-144A	11-27-87	1		12-607-A-5
87-145	11-27-87			App. A
87-146	(see ord.)			App. A
87-147	(see ord.)			App. A
87-148	12- 4-87	1		12-306-I-2
87-149	12- 4-87	1		9-1402(a)
		2		9-1402(c)
87-150	12- 4-87	1	Rpld	8-1101—8-1107
87-151	(see ord.)			App. A
87-152	12- 4-87	1	Rpld	8-213

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		2	9-1601—9-1610
87-153	12-11-87		App. A
87-154	(see ord.)		App. A
87-155	12-11-87		App. A
87-156	12-11-87		App. A
87-157	(see ord.)		App. A
87-158	(see ord.)		App. A
87-159	12-18-87	1	2-806
		2	8-402
		3	8-411
		4	8-903
87-160	12-18-87	1	6-1802(b)
		2	6-1802(d)
		3	6-1802(f)
		4	6-1803(b)
		5—10	6-1804—6-1809
		11	6-1811
		12	6-1813
		13—15	6-1816—6-1819
		16, 17	6-1820, 6-1821
		18	6-1823
		19	6-1827
87-161	12-18-87	1	2-2003
87-162	(see ord.)		App. A
87-163	12-18-87		App. A
87-164	(see ord.)		App. A
87-165	(see ord.)		App. A
87-166	12-25-87		App. A
87-167	(see ord.)		App. A
87-168	(see ord.)		App. A
87-169	1- 8-88	1	6-1001—6-1006
87-170	1- 8-88	1	8-1201—8-1217
87-171	1- 8-88		App. A
87-172	(see ord.)		App. A
87-173	1-22-88		App. A
87-174	(see ord.)		App. A
87-175	1-22-88	1	12-221.3-B-14.1
87-176	1-22-88		App. A
87-177	1-22-88	1	12-218.5-K
87-178	(see ord.)		App. A
87-179	1-22-88	1	12-317-B-1
		2	12-317-C-1
87-180	1-22-88		App. A
87-181	(see ord.)		App. A
87-182	1-22-88	1	9-1701—9-1710
88-1	(see ord.)		App. A
88-2	2- 5-88		App. A

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88-3	2- 5-88	1		12-321
88-4	(see ord.)			App. A
88-5	2- 5-88	1		9-1711
88-6				Not yet codified
88-7	(see ord.)			App. A
88-8	2-12-88	1—3		1-404—1-406
		4	Rpld	4-602(i)
		5		4-615
		6	Rpld	4-616
		7		6-1708
		8		9-1011.1
88-9	2-12-88			App. A
88-10	(see ord.)			App. A
88-11	2-19-88			App. A
88-12	2-19-88	1		9-1602(a)
		2		9-1603(d)
		3, 4		9-1604, 9-1605
		5	Rpld	9-1607(e)
		6		9-1611(a)
		7		9-1612(a)
		8, 9		9-1614, 9-1615
		10		9-1618
88-13	(see ord.)			App. A
88-14	2-19-88	1		12-304-B-13
		2		12-304-B-15
88-15	2-26-88			App. A
88-16	(see ord.)			App. A
88-17	2-26-88	1		4-407(a)
88-18	(see ord.)			App. A
88-19	(see ord.)			App. A
88-20	3- 4-88			App. A
88-21	3- 4-88			App. A
88-22	3- 4-88			App. A
88-23	3- 4-88			App. A
88-24	3-11-88	1		8-205
88-25	3-18-88	1		5-305(d)
88-26	(see ord.)			App. A
88-27	(see ord.)			App. A
88-28	(see ord.)			App. A
88-29	3-25-88			App. A
88-30	(see ord.)			App. A
88-31	7- 1-88	1		4-704(a)
88-32	3-25-88	1		11-903(g)
		2		11-903(j)
		3		11-910(a)
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88-33	3-25-88			App. A

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88-35	3-25-88	1		9-403(a)
88-36	3-25-88	1		2-2202(d)
		2		2-2203
88-37	4- 1-88	1		8-1205(c)
		2		8-1210(b)
88-38	4- 8-88	1		12-215.5-E-1-b
		2		12-215.14-E-1-b
		3		12-216.5-E-1-b
		4		12-217.5-E
		5		12-218.5-E
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		7		12-220.5-E
		8		12-221.5-E
		9		12-222.5-E
		10		12-225.5-E
		11		12-226.5-E
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		13		12-306-N-24-j, k
88-39	(see ord.)			App. A
88-40	(see ord.)			App. A
88-41	4- 8-88	1		9-201
		2	Rpld	9-207
		3		9-208.1
		4		9-209(a)
		5—7		9-210—9-212
		8		9-217
		9—11		9-222—9-224
88-42	4- 8-88			App. A
88-43	(see ord.)			App. A
88-44	4-15-88			App. A
88-45	4-15-88			App. A
88-46	4-15-88	1		11-208.2
		2		12-1206(e)
88-47	(see ord.)			App. A
88-48	4-15-88			App. A
88-49	5- 6-88			App. A
88-50	5- 6-88			App. A
88-51	(see ord.)			App. A
88-52	(see ord.)			App. A
88-53	5-13-88	1		2-1736
88-54	(see ord.)			App. A
88-55	(see ord.)			App. A
88-56	5-20-88			App. A
88-57	5-20-88			App. A
88-58	5-20-88			App. A
88-59	5-20-88			App. A

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		3	9-203(a)
		4	9-222
		5	9-224(b)
		6	9-224(i)
88-62			Number not used
88-63	(see ord.)		App. A
88-64	6- 3-88		App. A
88-65	6-10-88	1	13-160.102
		2, 3	13-160.104, 13-160.105
88-66	6-10-88	1, 2	11-915, 11-916
88-67	6-10-88	1	6-1003(c)
88-68	(see ord.)		App. A
88-69	6-10-88		App. A
88-70	(see ord.)		App. A
88-71	6-10-88		App. A
88-72	(see ord.)		App. A
88-73	(see ord.)		App. A
88-74	(see ord.)		App. A
88-75	(see ord.)		App. A
88-76	7- 1-88	1	12-222.4
88-77	7- 1-88		App. A
88-78	7- 1-88		App. A
88-79	7- 1-88		App. A
88-80	7- 8-88		App. A
88-81	7- 8-88		App. A
88-82	7-22-88		App. A
88-83	(see ord.)		App. A
88-84	7-29-88		App. A
88-85	(see ord.)		App. A
88-86	7-29-88		App. A
88-87	(see ord.)		App. A
88-88	(see ord.)		App. A
88-89	7-29-88		App. A
88-90	(see ord.)		App. A
88-91	(see ord.)		App. A
88-92	(see ord.)		App. A
88-93	8-12-88		App. A
88-94	8-12-88	1	12-105-C-10.1
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		14		12-208.12-B-3
		15		12-209.1-I
		16		12-209.3-B-3
		17		12-210.1-I
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		32		12-230.3-B-4
		33		12-230.11-I
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		35		12-242.3-B-3
		36	Rpld	12-306-N-5
		37		12-306-N-5
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88-97	8-26-88			App. A
88-98	(see ord.)			App. A
88-99	8-26-88			App. A
88-100	8-26-88			App. A
88-101	8-26-88	1		12-607-A-5
88-102	8-26-88			App. A
88-103	9-15-88			App. A
88-104	9-15-88	1		12-608-A
88-105	9-16-88			App. A
88-106	(see ord.)			App. A
88-107	(see ord.)			App. A
88-108	9-16-88			App. A

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88-112	(see ord.)			App. A
88-113	(see ord.)			App. A
88-114	(see ord.)			App. A
88-115	10-14-88			App. A
88-116	10-14-88			App. A
88-117	(see ord.)			App. A
88-118	10-14-88			App. A
88-119	10-14-88			App. A
88-120	10-21-88			App. A
88-121	10-21-88			App. A
88-122	10-28-88			App. A
88-124	(see ord.)			App. A
88-125	11- 4-88			App. A
88-126	11- 4-88			App. A
88-127	(see ord.)			App. A
88-128	11- 4-88			App. A
88-129	11-11-88			App. A
88-130	(see ord.)			App. A
88-131	(see ord.)			App. A
88-132	12- 2-88	1		13-150.1
		2—4	Rpld	13-150.2—13-150.4
		5, 6		13-150.5, 13-150.6
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		9		13-150.225-26
		10		13-150.336-3
		11		13-150.348-1
		12	Rpld	13-150.384-2
		13		13-150.384-4
		14, 15		13-150.902(c), (d)
		16		13-150.905
88-133	12- 2-88	1		12-609-B
88-134	12- 2-88	1		8-1002(g)
		2		8-1028
88-135	(see ord.)			App. A
88-136	(see ord.)			App. A
88-137	(see ord.)			App. A
88-138	12- 9-88			App. A
88-139	12- 9-88	1		14-104(a)
88-140	(see ord.)			App. A
88-141	11- 8-88			App. A

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88-144	(see ord.)			App. A
88-145	12-23-88	1		2-1718
88-146	12-23-88	1		12-4.505
		2		12-1019
		3—6		12-1024(d)—(g)
88-147	(see ord.)			App. A
88-148	1-12-89	1		2-1604.2
88-149	1-12-89			App. A
88-150	(see ord.)			App. A
88-151	1-13-89			App. A
88-152	(see ord.)			App. A
88-153	(see ord.)			App. A
88-154	(see ord.)			App. A
88-155	1-20-89	1, 2		9-1011.1, 9-1011.2
		1		2-2202(b)
		2		2-2202(f)
		3—5		2-2202(i)—(k)
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		10		2-2207
89-1	(see ord.)			App. A
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89-3	2- 3-89	1		14-104(a)
89-4	1- 3-89			App. A
89-5	(see ord.)			App. A
89-6	(see ord.)			App. A
89-7	(see ord.)			App. A
89-8	(see ord.)			App. A
89-9	2-17-89	1	Rpld	8-205
89-10	2-17-89	1		9-501.1(x)
		2		9-510(i)
		3		9-513(b)
89-11	2-24-89			App. A
89-12	2-24-89	1		13-402(b)
		2		13-405.1
		3		13-419
89-13	(see ord.)			App. A
89-14	(see ord.)			App. A
89-15	3- 3-89	1—3		8-1203(d)—(f)
89-16	3- 3-89	1		8-1203(l)
89-17	3- 3-89	1		8-1205(a)
89-18	3- 3-89	1		8-1206(a)
89-19	3- 3-89	1		8-1212(a)
89-20	3- 3-89	1		8-1210(a)
89-21	3- 3-89	1		8-1211(a)

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89-24	(see ord.)			App. A
89-25	(see ord.)			App. A
89-26	3-17-89	1		9-1603(h)
		2, 3		9-1606(d), (e)
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		5		9-1609(d)
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89-28	(see ord.)			App. A
89-29	(see ord.)			App. A
89-30	(see ord.)			App. A
89-31	(see ord.)			App. A
89-32	(see ord.)			App. A
89-33	(see ord.)			App. A
89-34	(see ord.)			App. A
89-35	(see ord.)			App. A
89-36	(see ord.)			App. A
89-37	(see ord.)			App. A
89-38	(see ord.)			App. A
89-39	(see ord.)			App. A
89-40	(see ord.)			App. A
89-41	5-19-89	1		11-208
89-42	(see ord.)			App. A
89-43	5-19-89			App. A
89-44	(see ord.)			App. A
89-45	5-19-89			App. A
89-46	(see ord.)			App. A
89-47	5-19-89			App. A
89-48	4-18-89	1, 2		14-119(c), (d)
89-49	5-26-89			App. A
89-50	5-26-89	1		9-806(d)
89-51	5-26-89	1		14-107(a)
		2		14-107(d)
		3	Rpld	14-116(b)—(e)
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89-52	(see ord.)			App. A
89-53	6- 2-89	1		8-133
89-54	(see ord.)			App. A
89-55	(see ord.)			App. A
89-56	4- 2-89			App. A
89-57	6-16-89			App. A
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89-59	(see ord.)			App. A
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89-62	(see ord.)			App. A
89-63	6-30-89			App. A
89-64	(see ord.)			App. A
89-65	7- 7-89	1, 2		12-105-T-11.1, 11.2
89-66	7- 7-89	1		12-216.1-C-5.1
		2		12-220.1-B-12.1
		3	Rpld	12-216.3-B-2.1
89-67	7- 7-89	1		12-240.5-E-2
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89-69	(see ord.)			App. A
89-70	7- 7-89			App. A
89-71	(see ord.)			App. A
89-72	(see ord.)			App. A
89-73				number not used
89-74	6- 7-89	1, 2		14-104(a)
89-75	6- 7-89	1, 2		14-101(ii), (jj)
89-76				number not used
89-77	6- 7-89	1		14-119(e)
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89-79	(see ord.)			App. A
89-80	(see ord.)			App. A
89-81	(see ord.)			App. A
89-82	7-21-89			App. A
89-83	7- 1-89			App. A
89-84	(see ord.)			App. A
89-85	7-28-89	1		9-503.2(b)
		2		9-503.2(d)
		3		11-226(f)
		4		11-227(d)
		5		11-228(h)
		6		12-4.504-C
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		9		14-107.1(c)
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89-86	7-28-89	1		12-306-O
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89-88	8-18-89			App. A
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89-90	(see ord.)			App. A
89-91	(see ord.)			App. A
89-92	(see ord.)			App. A
89-93	(see ord.)			App. A
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89-99	(see ord.)		App. A
89-100	9-22-89		App. A
89-101	9-22-89		App. A
89-102	9-22-89	1	14-119(c)
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89-104	(see ord.)		App. A
89-105	(see ord.)		App. A
89-106	(see ord.)		App. A
89-107	(see ord.)		App. A
89-108	(see ord.)		App. A
89-109	(see ord.)		App. A
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		2	12-4.510-C
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89-112	10-20-89		App. A
89-113	(see ord.)		App. A
89-114	(see ord.)		App. A
89-115	(see ord.)		App. A
89-116	10-27-89	1	10-201
89-117	(see ord.)		App. A
89-118	10-27-89		App. A
89-119	(see ord.)		App. A
89-120	10- 3-89	1	2-1510(e)
89-121	11-10-89	1	2-1203(a)
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89-123	(see ord.)		App. A
89-124	11-10-89	1	12-221.3-B.15.1
89-125	11-10-89	1	12-317-H-2
		2	12-318-B
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89-127	(see ord.)		App. A
89-128	(see ord.)		App. A
89-129	(see ord.)		App. A
89-130	11-17-89	1	2-1654.3
89-131	(see ord.)		App. A
89-132	(see ord.)		App. A
89-133	(see ord.)		App. A
89-134	12- 1-89	1	12-212.5-H
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		2	10-103(t)
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89-138	12-15-89	1	12-406-H
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89-146	(see ord.)		App. A
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90-7	2- 9-90	1	2-101(a)
90-8	2- 9-90		App. A
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90-10	2-23-90		App. A

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90-15	(see ord.)			App. A
90-16	(see ord.)			App. A
90-17	(see ord.)			App. A
90-18	3-23-90	1		2-2906
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90-21	(see ord.)			App. A
90-22	(see ord.)			App. A
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90-31	3-27-90	1		14-119(c)
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90-36	(see ord.)			App. A
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90-40	5-18-90	2		9-402
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		2	Added	13-140.100, 13-140.150, 13-140.212, 13-140.313, 13-140.317, 13-140.320, 13-140.401, 13-140.503, 13-140.601, 13-140.610, 13-140.616, 13-140.701, 13-140.908, 13-140.1002, 13-140.1004, 13-140.1007, 13-140.1106, 13-140.1206, 13-140.1307, 13-140.1311, Appendix C, Appendix D, Appendix I
90-46	6- 8-90	1		12-215.4-B,

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			12-215.13-B, 12-216.4-C
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90-47	6- 8-90		App. A
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90-49	6-29-90		App. A
90-50	7- 6-90		App. A
90-51	(see ord.)		App. A
90-52	(see ord.)		App. A
90-53	7-13-90	1	12-105-A-8.1
		2	12-105-R-4.2
		3	12-204.11-P
		4	12-204.11-Q
		5	12-204.13-B-18
		6	12-205.1-O
		7	12-205.1-P
		8	12-205.3-B-29
		9	12-206.1-N
		10	12-206.1-O
		11	12-206.3-B-13
		12	12-207.1-M
		13	12-207.1-N
		14	12-207.3-B-13
		15	12-208.12-B-14
		16	12-209.1-J
		17	12-209.1-K
		18	12-209.3-B-11
		19	12-210.1-J
		20	12-210.1-K
		21	12-210.3-B-12
		22	12-211.1-K
		23	12-211.1-L
		24	12-211.3-B-12
		25	12-212.3-B-12
		26	12-213.3-B-6
		27	12-213.3-B-11
		28	12-214.1-E
		29	12-214.3-B-4
		30	12-214.3-B-10
		31	12-215.1-B-3
		32	12-215.1-C-8
		33	12-215.3-B-13
		34	12-216.1-B-2
		35	12-216.1-C-24
		36	12-220.3-B-20
		37	12-220.3-B-21
		38	12-221.3-B-15

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		40		12-222.3-B-30
		41		12-222.3-B-31
		42		12-230.1-G
		43		12-230.1-H
		44		12-230.11-J
		45		12-230.11-K
		46		12-306-I-2
		47		12-306-N-43
90-54	7-13-90	1, 2		2-1803(b)
90-55	7-13-90	1, 2		2-1703(b)
90-56	(see ord.)			App. A
90-57	(see ord.)			App. A
90-58	(see ord.)			App. A
90-59	(see ord.)			App. A
90-60	6-26-90			App. A
90-61	7-27-90	1		9-503.1(c)
90-62	(see ord.)			App. A
90-63	7-27-90	1	Rpld	13-130.100, 13-130.304, 13-130.503(a), 13-130.504, 13-130.710(e), 13-130.710(g), 13-130.710(h), 13-130.1009, 13-130.1301, 13-130.1800, 13-130.1903, 13-130.2002(b), 13-130.2004(c)
		2	Added	13-130.100, 13-130.304, 13-130.504, 13-130.710, 13-130.1009, 13-130.1301, 13-130.1800, 13-130.2004
90-64	7-27-90			App. A
90-65	(see ord.)			App.A
90-66	(see ord.)			App.A
90-67	(see ord.)			App. A
90-68	8-24-90			App. A
90-69	8-24-90			App. A
90-70	8-24-90	1		2-1513(i)
90-71	8-24-90	1		12-609-A-2

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		2	12-609-B-1
90-72	8-24-90	1	14-119(c)
90-73	8-27-90	1	2-1701A— 2-1702A.1, 2-1703A, 2-1703A.1, 2-1704A— 2-1710A.1, 2-1711A— 2-1715A.1, 2-1716A— 2-1717A.1, 2-1718A— 2-1722A.1, 2-1723A— 2-1732A.2, 2-1733A— 2-1736A
90-74	8-24-90	2	8-207
		3	9-409(d)
		4	12-105-B-4.9
		5	12-105-C-13.5
		6	12-105-G-6.5
		7	12-105-P-5.1
		8	12-224.4-B-6.5
		9	12-225.4-B-6.5
		10	12-226.4-B-6.5
		11	12-227.4
		12	12-228.3-B-55
		13	12-228.4-B
		14—16	12-306-I-1—3
		17	12-306-I-5
		18	12-306-N-7.2
		19	12-306-N-44
		20	12-403-A.
		21	12-405-B-8
90-75	8-24-90		App. A
90-76	(see ord.)		App. A
90-77	8-24-90		App. A
90-78	8-24-90		App. A
90-79	(see ord.)		App. A
90-80	(see ord.)		App. A
90-81	(see ord.)		App. A
90-82	(see ord.)		App. A
90-83	8-31-90		App. A
90-84	8-31-90	1	9-501.1(dd)
		2	9-501.1(tt)

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		7		9-503.2(e)
90-85	(see ord.)			App. A
90-86	9-21-90	1		12-105-C-10.2
		2		12-105-C-10.3
		3	Rpld	12-105-D-6
		4		12-206.4-F
		5		12-207.4-G
		6		12-209.4-F
		7		12-210.4-F
		8		12-211.4-F
		9		12-214.1-C
		10		12-215.1-C-4
		11		12-215.11-C-4
		12		12-216.1-C-5.1
		13		12-220.1-B-12.1
		14		12-228.4-C
		15		12-229.4-G
		16		12-230.4-D
		17		12-230.13-F
		18		12-304-B-22
		19		12-306-N-45
90-87	9-21-90	1		12-306-N-33
90-88	9-28-90	1		13-1411
90-89	(see ord.)			App. A
90-90	(see ord.)			App. A
90-91	9-28-90			App. A
90-92	9-28-90	1		12-1303(c)—(e)
90-93	(see ord.)			App. A
90-94	(see ord.)			App. A
90-95	(see ord.)			App. A
90-96	(see ord.)			App. A
90-97	10-12-90	1		14-119(d)
90-98	10-19-90			App. A
90-99	(see ord.)			App. A
90-100	(see ord.)			App. A
90-101	(see ord.)			App. A
90-102	(see ord.)			App. A
90-103	(see ord.)			App. A
90-104	11- 2-90			App. A
90-105	(see ord.)			App. A
90-106	(see ord.)			App.A
90-107	11- 9-90	1		12-404-D-3
90-108	11- 9-90	1		12-215.5-E-1
		2		12-215.14-E-1

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90-110	11- 9-90	1	12-204.1
		2	12-204.11
		3	12-205.1
		4	12-206.1
		5	12-207.1
		6	12-208.1
		7	12-208.11
		8	12-209.1
		9	12-210.1
		10	12-211.1
		11	12-211.11
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		14	12-213.1
		15	12-214.1
		16	12-215.1-A
		17	12-215.11-A
		18	12-216.1-A
		19	12-217.1-A
		20	12-218.1-A
		21	12-219.1-A
		22	12-220.1-A
		23	12-221.1-A
		24	12-222.1
		25	12-223.1
		26	12-224.1
		27	12-225.1
		28	12-226.1
		29	12-227.1
		30	12-228.1
		31	12-229.1
		32	12-230.1
		33	12-230.11
		34	12-231.1-A
		35	12-232.1-A
		36	12-408
		37	12-408-D-1
		38	12408-E
90-111	11- 9-90		App. A
90-112	11-16-90	1	2-1724
90-113	11-16-90	1	2-1830
90-114	(see ord.)		App. A
90-115	11-30-90	2	13-130.100(c)
		3	13-130.304(a)

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		4		13-130.304(g)—(j)
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		9		13-130.418
		10		13-130.421
		11		13-130.425
		12		13-130.504.(h)
90-116	11-30-90	2		13-130.304(a)
		3		13-130.304(k)
90-117	10-30-90	1		5-306(c)
90-118	10-30-90	1		5-305(e)
90-119	10-30-90	1		5-302
90-120	12- 7-90	1		11-208(f)
90-121	12- 7-90			App. A
90-122	(see ord.)			App. A
90-123	12- 7-90	1		9-503(a)
90-124	12- 7-90			App. A
90-125	(see ord.)			App. A
90-125A	(see ord.)			App. A
90-127	12-14-90	1		9-601(c)
		2		9-602(a)
		3		9-602(g)
		4		9-608(c)
		5		9-611
90-128	12-14-90			App. A
90-129	12-14-90	2		12-219.1-B 2.
		3		12-219.4-B 5.
		4		12-219.5-K
		5		12-220.1-B 28.
		6		12-220.4-B 5.
		7	Rpld	12-221.1-B 1.
		8		12-222.1-B 41.
		9		12-222.4-E
		10		12-222.5-K
		11		12-224.1-C
		12		12-224.4-E
		13		12-224.5-K
		14		12-225.4-C
		15		12-225.5-K
		16		12-226.1-B.1
		17		12-226.3-B 1.1
		18		12-226.5-K
		19		12-227.3-B
		20		12-228.3-B 2.1

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		22		12-306-K
		23		12-317-D
		24		13-913(e)
		25		13-914(d)(4)
		26		13-916
		27		13-918(b)
90-130	12-14-90	1		8-203
90-131	(see ord.)			App. A
90-132	(see ord.)			App. A
90-133	12-28-90)			App. A
90-134	12-28-90			App. A
90-135	(see ord.)			App. A
90-136	(see ord.)			App. A
90-137	(see ord.)			App. A
90-138	(see ord.)			App. A
90-139	(see ord.)			App. A
90-140	(see ord.)			App. A
90-141	(see ord.)			App. A
90-142	(see ord.)			App. A
90-143	(see ord.)			App. A
90-144	(see ord.)			App. A
91-1	(see ord.)			App. A
91-2	2- 8-91	1	Rpld	13-110.508—13-110.514
		2—5	Added	13-110.508—13-110.511
91-3	2- 8-91	1	Rpld	13-110.406—13-110.408, 13-110.411—13-110.415
		2	Added	13-110.406
91-4	(see ord.)			App. A
91-5	2- 8-91	1		12-217.5-I
91-6	(see ord.)			App. A
91-7	(see ord.)			App. A
91-8	(see ord.)			App. A
91-9	(see ord.)			App. A
91-10	(see ord.)			App. A
91-11	3- 1-91	1		8-1214(d), (e)
91-12	(see ord.)			App. A
91-13	(see ord.)			App. A
91-14	3-15-91	1		9-501.1(g)
		2		9-501.1(x)
		3		9-501.1(gg)
		4		9-501.1(ww)
		5		9-501.1(kkk)

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		6		9-511(a)
		7		9-511(d)
		8—11		9-511.1(a)—(d)
		12		9-513(a)
		13, 14		9-513(c), (d)
		15		9-513(h)
91-15	(see ord.)			App. A
91-16	(see ord.)			App. A
91-17	(see ord.)			App. A
91-18	(see ord.)			App. A
91-19	3- 5-91	1, 2		4-504, 4-505
91-20	(see ord.)			App. A
91-21	(see ord.)			App. A
91-22	(see ord.)			App. A
91-23	4-19-91			App. A
91-24	(see ord.)			App. A
91-25	(see ord.)			App. A
91-26	4-26-91			App. A
91-27	5- 3-91	1		12-212.5-E 1.
		2		12-213.5-E 1.
		3		12-215.5-E 1.
		4		12-216.5-E 1.
		5		12-306-N 21.
91-28	(see ord.)			App. A
91-29	(see ord.)			App. A
91-30	(see ord.)			App. A
91-31	(see ord.)			App. A
91-32	4- 9-91	1		9-503(a)
		2		11-226(b)
		3		11-228(c)
		4		14-107(a)
91-33	4- 9-91	1		12-4.508-D
		2		12-5.509-C
91-34	4-16-91	1		2-1512.2
91-35	5-24-91	1		9-201(c)
		2		9-221
		3		12-105-K 1.
		4	Rpld	12-306-N 23.
91-36	5-24-91	1		12-306-I 1.
91-37	5-24-91	1		15-20.1001—15-20.1012
91-38	(see ord.)			App. A
91-39	5-24-91			App. A
91-40	(see ord.)			App. A
91-42	(see ord.)			App. A
91-43	(see ord.)			App. A
91-44	5- 3-91	1		2-1515(a)

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		2		2-1515(c)
91-45	(see ord.)			App. A
91-46	6- 7-91	1		12-212.5-E1
		2		12-213.5-E1
		3		12-215.5-E1
		4		12-216.5-E1
		5		12-306-N21
91-47	(see ord.)			App. A
91-48	6- 7-91	1		2-1718
		2		2-1719
		3		2-1718A
		4		2-1719A
91-49	6- 7-91	1		2-1821(a)
		2		2-1824
91-50	(see ord.)			App. A
91-51	6-14-91	1		9-503.1(c)
		2		14-107(d)
91-52	6-14-91	1		14-101(p)
91-53	(see ord.)			App. A
91-54	(see ord.)			App. A
91-55	(see ord.)			App. A
91-56	6-29-91	1		2-1845
91-57	6-29-91	1		2-1737A
91-58	6-29-91	1		2-1737
91-59	(see ord.)			App. A
91-60	(see ord.)			App. A
91-61	6-29-91	1	Rpld	4-701—4-714
91-62	6-29-91	1	Rpld	14-101(p)
		2	Added	14-101(p)
91-63	(see ord.)			App. A
91-64	76-12-91	1		12-206.3-B12
		2		12-203.3-B12
		3		12-209.3-B10
		4		12-210.3-B11
		5		12-211.3-B11
		6		12-212.3-B11
		7		12-213.3-B10
		8		12-214.3-B 8
		9		12-215.3-B11
		10		12-215.12-B 2
		11		12-215.12-B 3
		12		12-216.3-B14
		13		12-217.3-B12
		14		12-218.3-B14
		15		12-219.3-B12
		16		12-220.3-B19
		17		12-223.3-B5

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		18		12-230.3-B2
		19		12-230.12-F
		20		12-304-B10
		21		12-306-N46
91-65	(see ord.)			App. A
91-66	(see ord.)			App. A
91-67	(see ord.)			App. A
91-68	7-26-91	1		12-204.13-B8.1
		2		12-204.14-C
		3		12-205.3-B13.1
		4		12-305.4-C
		5		12-306-N47
91-69	7-26-91	1	Rpld	6-1001—6-1006
		2	Added	6-1001—6-1006
91-70	(see ord.)			App. A
91-71	(see ord.)			App. A
91-72	(see ord.)			App. A
91-73	(see ord.)			App. A
91-74	(see ord.)			App. A
91-75	(see ord.)			App. A
91-76	(see ord.)			App. A
91-77	(see ord.)			App. A
91-78	(see ord.)			App. A
91-79	(see ord.)			App. A
91-80	(see ord.)			App. A
91-81	(see ord.)			App. A
91-82	(see ord.)			App. A
91-83	(see ord.)			App. A
91-84	(see ord.)			App. A
91-85	8-23-91	1		12-307
91-86	(see ord.)			App. A
91-87	(see ord.)			App. A
91-88	(see ord.)			App. A
91-89	(see ord.)			App. A
91-90	(see ord.)			App. A
91-91	(see ord.)			App. A
91-92	(see ord.)			App. A
91-93	(see ord.)			App. A
91-94	(see ord.)			App. A
91-95	(see ord.)			App. A
91-96	(see ord.)			App. A
91-97	(see ord.)			App. A
91-98	(see ord.)			App. A
91-99	(see ord.)			App. A
91-100	(see ord.)			App. A
91-101	(see ord.)			App. A

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91-102	9-20-91	1—6		12-226.10—12-226.15
		6		12-403-C
91-103	(see ord.)			App. A
91-104	10-18-91	1		14-119(c)
91-105	(see ord.)			App. A
91-106	(see ord.)			App. A
91-107	(see ord.)			App. A
91-108	(see ord.)			App. A
91-109	(see ord.)			App. A
91-110	(see ord.)			App. A
91-111	(see ord.)			App. A
91-112	11-22-91	1		14-119(d)
91-113	(see ord.)			App. A
91-114	(see ord.)			App. A
91-115	(see ord.)			App. A
91-116	(see ord.)			App. A
91-117	12-13-91	1	Added	2-1652.4
91-118	12-13-91	1		2-1680(n)
91-119	12-13-91	1		2-1508(a)(1)
91-120	(see ord.)			App. A
91-121	12-13-91	1		12-217.5-M
		2		12-218.5-M
91-122	(see ord.)			App. A
91-123	(see ord.)			App. A
91-124	(see ord.)			App. A
91-125	12-20-91	1		11-224
		2		12-105-L-4
		3		12-105-S-16
		4		12-105-Y
		5		12-206-3-B
		6		12-206.5-K
		7		12-207.3-B
		8		12-207.5-E
		9		12-207.5-K
		10		12-209.3-B
		11		12-210.3-B
		12		12-211.3-B
		13		12-212.3-B
		14		12-212.5-K-2
		15		12-213.3-B
		16		12-214.3-B
		17		12-215.5-E
		18		12-215.5-K
		19		12-215.14-E
		20		12-216.3-B
		21		12-216.5-E

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		22	12-216.5-K
		23	12-217.3-B
		24	12-217.5-E
		25	12-217.5-K
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		27	12-218.5-K
		28	12-219.5-K
		29	12-220.5-K
		30	12-221.5-K
		31	12-222.5-K
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		33	12-225.5-K
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		44	13-904(i)
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		46	13-904(o)
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			Amnd	13-004—13-006
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91-127	(see ord.)			App. A
91-128	1- 3-92	1	Rpld	2-2201—2-2207
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91-129	(see ord.)			App. A
91-130	(see ord.)			App. A
91-131	(see ord.)			App. A
91-132	(see ord.)			App. A
91-133	(see ord.)			App. A
91-134	(see ord.)			App. A
92-1	(see ord.)			App. A
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92-5	2-21-92	1—10		9-510(c)—(i)
		11		9-511(a)
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92-6	2-21-92	1		2-1103
92-7	3- 6-92	1		2-1104(g)
92-8	3- 6-92	1, 2		2-1203(b), (c)
		3		2-1210(b)
92-9	3- 6-92	1		12-1304
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92-11	(see ord.)			App. A
92-12	(see ord.)			App. A
92-13	(see ord.)			App. A
92-14	(see ord.)			App. A
92-15	(see ord.)			App. A
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92-17	(see ord.)			App. A
92-18	(see ord.)			App. A
92-19	(see ord.)			App. A
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92-24	5- 8-92			App. A
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		2		2-1710A.1(f), (g)
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92-28	5-22-92	1		8-1002(g)
		2		8-1005(a)(9), (10)
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92-30	6-19-92			8-133.1
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92-34	(see Ord.)			App. A
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92-36	7-10-92			App. A
92-37	7-10-92			App. A
92-38	6- 9-92			App. A
92-39	(see Ord.)			App. A
92-40	(see Ord.)			App. A
92-41	(see Ord.)			App. A
92-42	6-30-92			App. A
92-43	(see Ord.)			App. A
92-44	7-31-92			App. A
92-45	8-21-92	1	Rpld	9-701.101—9-790.101
		2	Added	9-701.101—9-789.101
92-46	8-21-92	1	Rpld	13.110.100—13-110.210
		2	Added	13-110.100—13-110.205
92-47	8-21-92	1	Rpld	13-120.100—13-120.9000
		2	Added	13-120.100—13-120.7013
92-48	8-21-92	1	Rpld	13-110.400—13-110.406
		2	Added	13-110.400—13-110.406
92-49	8-21-92	1	Rpld	13-140.100—13-140.1400-I
		2	Added	13-140.100—13-140.1400-I
92-50	8-21-92	1	Rpld	13-130.100—13-130.2004

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		3	Rpld	2-206(e)
		4	Rpld	2-206(f)
		5		2-206(e)
		6	Rnbd	2-206(h) as 2-206(f)
		7	Rnbd	2-206(i) as 2-206(g)
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92-55	8-28-92			App. A
92-56	8-28-92	1		12-218.3-B-12.2
92-57	(see Ord.)			App. A
92-58	(see Ord.)			App. A
92-59	(see Ord.)			App. A
92-60	(see Ord.)			App. A
92-61	(see Ord.)			App. A
92-62	9-18-92			App. A
92-63	9-25-92		Added	19-101—19-107
92-64	(see Ord.)			App. A
92-65	(see Ord.)			App. A
92-66	(see Ord.)			App. A
92-67	(see Ord.)			App. A
92-68	(see Ord.)			App. A
92-69	9-25-92	1		9-501.1(tt)
		2		9-501.1(eee)
		3		9-501.1(lll)
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		6		9-503(a)
		7		9-503(b)
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92-70A	(see Ord.)			App. A
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92-72	(see Ord.)			App. A
92-73	10-23-92	1		12-513(a), (c), (e)
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92-75	(see Ord.)			App. A
92-76	(see Ord.)			App. A
92-77	10-30-92			App. A
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92-79	(see Ord.)			App. A
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92-82	(see Ord.)			App. A
92-83	(see Ord.)			App. A
92-84	(see Ord.)			App. A
92-85	(see Ord.)			App. A
92-86	12- 4-92	1		13-130.509
		2		13-130.607(a)
92-87	12- 4-92	1		13-140.601(b)
92-88	12- 4-92	1		2-2202
		2—8		2-2208—2-2214
92-89	(see Ord.)			App. A
92-90	(see Ord.)			App. A
92-91	(see Ord.)			App. A
92-92	(see Ord.)			App. A
92-93	(see Ord.)			App. A
92-94	(see Ord.)			App. A
92-95	(see Ord.)			App. A
92-96	(see Ord.)			App. A
92-97	12-18-92	1		3-105(a)
92-98	12-18-92	1		12-1016(e)
92-99	1- 8-93	1	Rpld	8-1217
92-100	1- 8-93	1		12-215.1-B-4
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		3		12-217.1-B-36.5
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92-101	1- 8-93	1, 2		12-317-H
92-102	(see Ord.)			App. A
92-103	1-15-93	1		14-101(o)
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		4		14-107(a)(6), (7)
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92-105	(see Ord.)			App. A
93-1	(see Ord.)			App. A
93-2	12-28-92	1		3-404
93-3	(see Ord.)			App. A
93-4	2-12-93	1		10-103(c)
93-5	(see Ord.)			App. A
93-6	(see Ord.)			App. A
93-7	3- 5-93	App. A		
93-8	(see Ord.)	App. A		
93-9	2- 2-93	1		4-504(a)(1), 4-505(a)
93-10	(see Ord.)	App. A		
93-11	(see Ord.)	App. A		
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93-13	3-26-93	1		8-133.2

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93-16	(see Ord.)	App. A	
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93-18	4-16-93	1	12-4.504-C, 12-4.510-G
93-19	4-23-93	App. A	
93-20	4-30-93	1, 2	14-101(m), 14-119(d)
93-21	4- 6-93	1, 2	4-504(a)(1), 4-505(a)
93-22	5- 7-93	1	15-2901—15-2937
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93-24	(see Ord.)	App. A	
93-25	6-28-94	1	9-1606
93-26	5-21-93	App. A	
93-27	4-20-93	1	6-916(a)
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93-29	4-27-93	App. A	
93-30	(see Ord.)	App. A	
93-32	5- 4-93	1—4	2-1403—2-1406
93-33	6- 4-93	1	8-1203(c)
		2	8-1203(m)
		3	8-1206(a), (b)
		4, 5	8-1208, 8-1209
		6	8-1210(a), (b)(2)
		7	8-1211(a)
		8	8-1211(f)—(k)
		9	8-1212.1
		10	8-1217
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93-35	(see Ord.)		App. A
93-36	(see Ord.)		App. A
93-37	(see Ord.)		App. A
93-38	6-18-93		App. A
93-39	6-25-93		App. A
93-40	(see Ord.)		App. A
93-41	(see Ord.)		App. A
93-42	(see Ord.)		App. A
93-43	6-29-93		App. A
93-44	(see Ord.)		App. A
93-45	(see Ord.)		App. A
93-46	(see Ord.)		App. A
93-47	(see Ord.)		App. A
93-48	(see Ord.)		App. A

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93-50	(see Ord.)			App. A
93-51	9-24-93	1		18-1209(d)
93-52	9-24-93	1		12-215.3-B
93-53	9-24-93	1		12-105-C-10
		2		12-232.2-B
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93-54	(see Ord.)			App. A
93-55	10- 1-93			App. A
93-56	(see Ord.)			App. A
93-57	(see Ord.)			App. A
93-58	(see Ord.)			App. A
93-59	10- 1-93			App. A
93-61	10-29-93			App. A
93-62	(see Ord.)			App. A
93-63	11- 5-93			2-1652.4(b)
93-64	11-12-93	1	Rpld	2-1710.1(f)—(i)
		2	Rpld	2-1710A.1(f)—(i)
		3	Rpld	2-1811.1(f)—(i)
93-65	11-12-93	1, 2		8-107
93-66	11-12-93	1		8-108
93-67	12- 3-93			App. A
93-68	12- 3-93	1		12-105-I
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		3		12-406B.
93-69	(see Ord.)			App. A
93-70	(see Ord.)			App. A
93-71	12-17-93	1		12-306-I.2.2
93-72	(see Ord.)			App. A
93-73	1- 7-94			App. A
93-74	(see Ord.)			App. A
93-75	(see Ord.)			App. A
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93-77	1-14-93	1		21-101—21-103
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93-78	(see Ord.)			App. A
93-79	(see Ord.)			App. A
94-1	2- 4-94	1		21-101—21-103
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94-2	2- 4-94	1		2-1616.1
94-3	2- 4-94	1		20-101—20-103
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94-4	(see Ord.)			App. A
94-5	2-11-94	1		18-513

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		2		12-211.5.G.
94-7	(see Ord.)			App. A
94-9	3-11-94	1		8-1015(h)
94-10	3-11-94	1, 2		9-501.1
		3		9-505(c)
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94-12	(see Ord.)			App. A
94-13	(see Ord.)			App. A
94-14	(see Ord.)			App. A
94-15	4-22-94	1		8-1002(h)
		2		8-1020(a)
94-16	4-22-94	1	Rpld	12-404-J, 12-404-K
		2	Added	12-404-J—12-404-L
94-17	4-29-94	1	Added	12-218.3.B.7.1
94-18	4-29-94	2		8-1016(h)
94-19	(see Ord.)			App. A
94-20	(see Ord.)			App. A
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94-22	5-13-94			App. A
94-23	4-12-94	1		4-504(a)
		2		4-505(a)
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94-25	(see Ord.)			App. A
94-26	(see Ord.)			App. A
94-27	5-27-94	1	Added	2-1701(a)(5)
		2	Rnbd as	2-1701(a)(5)—(7) 2-1701(a)(6)—(8)
		3	Added	2-1737—2-1739
94-28	5-27-94	1	Added	2-1701A
		2	Rnbd as	2-1701A(a)(5)—(7) 2-1701A(a)(6)—(8)
		3	Added	2-1737A—2-1739A
94-29	5-27-94	1	Added	2-1801(b)
		2	Rnbd as	2-1801(b)—(n) 2-1801(c)—(10)
		3	Added	2-1845—2-1847
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94-31	(see Ord.)			App. A
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94-37	6-24-94	1	Rnbd	2-1737A—2-1739A
			as	2-1738A—2-1740A
94-38	6-24-94	1	Rnbd	2-1845—2-1847
			as	2-1846—2-1848
94-39	6-24-94	1	Added	3-109.1
94-41	7- 8-94	1		2-1603.1
94-42	7- 8-94	1	Added	12-105-A.12.6
		2		12-217.3
		3		12-218.3
		4		12-219.3
		5		12-220.3
		6		12-221.3
		7		12-222.3
		8		12-223.3
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		10	Added	12-323
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94-47	7-22-94			App. A
94-48	(see Ord.)			App. A
94-49	8-19-94	1	Added	1-105(a)(4)
		2, 3		1-105(b), (f)
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94-50	8-19-94	1	Rpld	8-101—8-106.5
		2	Added	7-501—7-550
94-51	(see Ord.)			App. A
94-52	8-26-94	1		2-1642
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94-53	8-26-94	2		12-105-R
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94-56	8-26-94	1		12-306-L.1
94-57	(see Ord.)			App. A
94-58	7-26-94	1, 2		12-306.I.2.1, 2.2
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94-61	(see Ord.)			App. A
94-62	9-16-94	1		2-1642
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94-64	9-16-94			App. A
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94-67	9-16-94			App. A
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94-80	10-21-94			App. A
94-81	10-21-94			App. A
94-82	10-21-94			App. A
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94-93	10-28-94		App. A
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94-95	11-11-94	1	2-1662
94-96	(see Ord.)		App. A
94-97	(see Ord.)		App. A
94-98	(see Ord.)		App. A
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94-101	(see Ord.)		App. A
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94-103	12- 2-94		App. A
94-104	(see Ord.)		App. A
94-105	12- 2-94	1	8-128.1
94-106	12- 9-94	1	2-1632
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94-108	12-30-94	1	12-306-N-23(b)(4)(iii)6.c.
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94-109	(see Ord.)		App. A
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94-113	1- 6-95		App. A
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94-116	1- 6-95		App. A
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94-120	1- 6-95		App. A
94-121	1- 6-95		App. A
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95-4	3-19-95	1—6		12-4.501.5(M)—(R)
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		18, 19		14-107(a)(5), (6)
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		24		14-110.1—14-110.3
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95-8	(see Ord.)			App. A
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		5	Rpld	12-4.501.5-M—R
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95-93	12-28-98	1	Rpld	13-110.500—13-110.511
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95-94	12-28-95	1	Rpld	13-150.1—13-150.912
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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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